The Canadian Constitutional Law Open Access Casebook – 2nd Edition

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Chapter 1: Introduction

By Robert Danay

1 An open access constitutional law casebook

This open-access constitutional law casebook is the product of a collaborative effort involving more than 40 constitutional law teachers from across Canada.

While primarily intended as a teaching tool for law students, this casebook is also designed to serve a broader audience. Whether you are a student, researcher, practitioner, or simply a curious reader seeking to better understand the Canadian constitutional order, we hope you will find this resource useful and accessible.

The casebook focuses on many of the foundational elements of Canada’s constitutional structure. It addresses themes such as federalism, the separation of powers, constitutional rights and Indigenous sovereignty. That said, this is not a comprehensive treatment of the entire field. Choices had to be made about scope and depth, and some areas are treated more fully than others.

We believe, however, that this casebook offers a strong foundation for critical engagement with Canadian constitutional law. We are grateful to the many contributors who volunteered their time and expertise to make this resource possible, and we hope it will continue to evolve and grow through feedback and future collaboration.

2 What is a constitution?

Virtually every society around the world has something called a “constitution.” But they differ from one another significantly. Some bind only the government of the country, some bind private actors as well. Some constitutions are written (like those of the United States, France, South Africa and India), some (like that of the United Kingdom, New Zealand and Israel) are unwritten (or “uncodified”) and some (like Canada) are hybrids of the two. Some (like Canada, the United States and South Africa) contain protections for human rights, and some (like Australia) do not.

At a basic level, however, the function of a constitution is to define and limit the institutions that govern a society. In terms of limiting governmental power, constitutions define a set of fundamental principles by which future governments must abide. Otherwise, the state can operate for the short-term benefit of those in currently in government, to the detriment of those that are not.

A corollary of this principle is that constitutions tend to be difficult to amend, often requiring the assent of a “supermajority” (e.g. two thirds or three fourths) of legislators (or legislatures in countries with federal arrangements). The notion that a special (and often more difficult) process must be followed to change constitutional rules is known as “entrenchment.” Entrenchment gives a degree of stability to the rules. As well, because constitutional rules allocate powers to different parts of the governing system - and establish limits on those powers – then at least in principle no one part of the system should be able to easily change those rules.

Constitutions also serve an important symbolic purpose. In this sense, aside from any rules that a constitution may include that define and constrain the powers of government, a constitution can create a nation’s identity. That this is so in Canada can be evidenced by Statistics Canada’s 2013 General Social Survey, in which Canadians ranked the *Canadian Charter of Rights and Freedoms* as the most important symbol for national identity (beating out the national anthem, the RCMP and even hockey).[1]

3 What is in the Canadian constitution?

The Canadian constitution is a hybrid of written constitutional texts and unwritten principles and conventions. As explained by Justice Rowe in *Canada (Attorney General) v. Power*, 2024 SCC 26 (in dissent, but not on this point):

> [263] The Canadian Constitution consists of written and unwritten components. They set out how sovereign authority is constituted, who can exercise that authority, for what purposes, by which means, and with what limitations.

The written constitutional texts are:

- The Constitution Act, 1867 (originally known as the British North America Act);
- The Constitution Act, 1982; and

- The statutes listed in the Schedule to the Constitution Act, 1982. These include the terms of union incorporating various provinces and territories into Canada after 1867 and the 1931 Statute of Westminster,[2] which granted Canada legislative independence (save for the power to amend Canada's constitution, which Britain retained until the passage of the Constitution Act, 1982).

As Justice Rowe notes, the Canadian constitution also includes a number of important unwritten constitutional principles and conventions, which are discussed in greater detail below.

In sum, however, unwritten constitutional *principles*, which include federalism, democracy, constitutionalism and the rule of law, and respect for minorities,[3] form part of the context and backdrop to the Constitution's written terms. As we will see, their precise role in constitutional law remains very much in dispute.

By contrast, unwritten constitutional *conventions* are the rules about the functioning of government that have evolved by way of custom over many years. A good example of this is the convention that the prime minister will only appoint cabinet members who are elected to the House of Commons or appointed to the Senate.[4] Constitutional conventions are fundamentally political in nature and while the courts might declare whether a particular convention exists and has been breached in a particular circumstance, they will not otherwise enforce them.[5]

3.1 The Constitution Act, 1867

The *Constitution Act*, *1867*, which was originally known as the *British North America Act*, is in many ways the foundational document of Canada's constitution. It was passed by the British Parliament to create the Dominion of Canada, which was then comprised of three of the five British North American colonies at the time. The Act came into effect on July 1, 1867, which is today celebrated annually as a national holiday.

The idea of unifying the British North American colonies into a single country was the result of a number of economic and geo-political factors. One factor was growing concern about the possibility of American military aggression and expansion, which was exacerbated by Britain's reluctance to pay for the defence of its colonies in North America. Another concern was the United States' increasingly protectionist trade policies, which made free trade between the British North American colonies an attractive proposition.[6]

The *Constitution Act, 1867* has a number of key features:

- A Preamble declaring that colonies of New Brunswick, Nova Scotia and the Province of Canada (which included Ontario and Québec) "have expressed their Desire to be federally united into One Dominion under the Crown of the United Kingdom of Great Britain and Ireland, with a Constitution similar in Principle to that of the United Kingdom." The Preamble also provides that "it is expedient that Provision be made for the eventual Admission into the Union of other Parts of British North America."[7]
- The creation of the executive branch of the federal government. While overall executive authority in the federal government is "vested in the Queen" (s. 9), that authority is to be carried on by the Governor General "on behalf and in the Name of the Queen" (s. 10). The executive branch also includes a "Council to aid and advise in the Government of Canada, to be styled the Queen's Privy Council for Canada" (s. 11) and the "Governor General in Council" (colloquially known as Cabinet) which is the "Governor General acting with the advice of the Privy Council" (s. 13);
- The creation of a federal Parliament similar to the Parliament of the United Kingdom. Parliament is "bicameral": an Upper House called the Senate (analogous to the UK House of Lords), and a House of Commons (s. 21). The Senate is divided up regionally, with (unelected) Senators representing different parts of the country being appointed by the Governor General (ss. 21-22).
- Section 23 sets out a number of qualifications that must be met in order for a person to be eligible to be appointed as a senator. These include being at least 30 years old, residing in the province that one is appointed to represent and being the owner of land in that province worth at least $4000. It was only in 1929 that the applicable provisions in the *Constitution Act, 1867* were interpreted by the Judicial Committee of the Privy Council (in the famous *Person's Case*, discussed in greater detail in Part 4.1 below)[8] to allow both men and women to be appointed as Senators (if they met all of the other qualifications). While Senators originally held office for life, this was changed in 1965 to require retirement at age 75 (s. 29).[9]
- The House of Commons consists of elected members representing electoral districts (or ridings) around the country. Legislation must be passed by both the Senate and the House of Commons and assented to by the Governor General before having the force of law (s. 55);
- The creation of provincial executive governments and legislatures similar to those of the federal government, with representatives of the Queen called Lieutenant Governors General and cabinets known as Lieutenant Governors in Council (ss. 58, 66);
- The creation of superior courts in each province with judges appointed by the Governor General (s. 96), as well as a "General Court of Appeal for Canada" (which became the Supreme Court of Canada) and "Courts for the better Administration of the Laws of Canada," which are now the Federal Court and Federal Court of Appeal (s. 101).
- A distribution of legislative powers between the federal Parliament and provincial legislatures (ss. 91-95), with Parliament having jurisdiction over areas such as criminal law, marriage and divorce, banking and national defence, and provincial legislatures having jurisdiction over areas such as hospitals, municipalities as well as property and civil rights. The key provisions in terms of division of powers as between the federal and provincial governments are sections 91 and 92, which provide:

  > VI. Distribution of Legislative Powers
  >
  > Powers of the Parliament
  >
  > Legislative Authority of Parliament of Canada
  >
  > 91 It shall be lawful for the Queen, by and with the Advice and Consent of the Senate and House of Commons, to make Laws for the Peace, Order, and good Government of Canada, in relation to all Matters not coming within the Classes of Subjects by this Act assigned exclusively to the Legislatures of the Provinces; and for greater Certainty, but not so as to restrict the Generality of the foregoing Terms of this Section, it is hereby declared that (notwithstanding anything in this Act) the exclusive Legislative Authority of the Parliament of Canada extends to all Matters coming within the Classes of Subjects next hereinafter enumerated; that is to say
  >
  > 1. Repealed.
  >
  > 1A. The Public Debt and Property.
  >
  > 2. The Regulation of Trade and Commerce.
  >
  > 2A. Unemployment insurance.
  >
  > 3. The raising of Money by any Mode or System of Taxation.
  >
  > 4. The borrowing of Money on the Public Credit.

5. Postal Service.

6. The Census and Statistics.

7. Militia, Military and Naval Service, and Defence.

8. The fixing of and providing for the Salaries and Allowances of Civil and other Officers of the Government of Canada.

9. Beacons, Buoys, Lighthouses, and Sable Island.

10. Navigation and Shipping.

11. Quarantine and the Establishment and Maintenance of Marine Hospitals.

12. Sea Coast and Inland Fisheries.

13. Ferries between a Province and any British or Foreign Country or between Two Provinces.

14. Currency and Coinage.

15. Banking, Incorporation of Banks, and the Issue of Paper Money.

16. Savings Banks.

17. Weights and Measures.

18. Bills of Exchange and Promissory Notes.

19. Interest.

20. Legal Tender.

21. Bankruptcy and Insolvency.

22. Patents of Invention and Discovery.

23. Copyrights.

24. Indians, and Lands reserved for the Indians.

25. Naturalization and Aliens.

26. Marriage and Divorce.

27. The Criminal Law, except the Constitution of Courts of Criminal Jurisdiction, but including the Procedure in Criminal Matters.

28. The Establishment, Maintenance, and Management of Penitentiaries.

29. Such Classes of Subjects as are expressly excepted in the Enumeration of the Classes of Subjects by this Act assigned exclusively to the Legislatures of the Provinces.

And any Matter coming within any of the Classes of Subjects enumerated in this Section shall not be deemed to come within the Class of Matters of a local or private Nature comprised in the Enumeration of the Classes of Subjects by this Act assigned exclusively to the Legislatures of the Provinces.

Exclusive Powers of Provincial Legislatures

Subjects of exclusive Provincial Legislation

92 In each Province the Legislature may exclusively make Laws in relation to Matters coming within the Classes of Subjects next hereinafter enumerated; that is to say,

1. (Repealed).

2. Direct Taxation within the Province in order to the raising of a Revenue for Provincial Purposes.

3. The borrowing of Money on the sole Credit of the Province.

4. The Establishment and Tenure of Provincial Offices and the Appointment and Payment of Provincial Officers.

5. The Management and Sale of the Public Lands belonging to the Province and of the Timber and Wood thereon.

6. The Establishment, Maintenance, and Management of Public and Reformatory Prisons in and for the Province.

7. The Establishment, Maintenance, and Management of Hospitals, Asylums, Charities, and Eleemosynary Institutions in and for the Province, other than Marine Hospitals.

8. Municipal Institutions in the Province.

9. Shop, Saloon, Tavern, Auctioneer, and other Licences in order to the raising of a Revenue for Provincial, Local, or Municipal Purposes.

10. Local Works and Undertakings other than such as are of the following Classes:

(a) Lines of Steam or other Ships, Railways, Canals, Telegraphs, and other Works and Undertakings connecting the Province with any other or others of the Provinces, or extending beyond the Limits of the Province:

(b) Lines of Steam Ships between the Province and any British or Foreign Country:

(c) Such Works as, although wholly situate within the Province, are before or after their Execution declared by the Parliament of Canada to be for the general Advantage of Canada or for the Advantage of Two or more of the Provinces.

11. The Incorporation of Companies with Provincial Objects.

12. The Solemnization of Marriage in the Province.

13. Property and Civil Rights in the Province.

14. The Administration of Justice in the Province, including the Constitution, Maintenance, and Organization of Provincial Courts, both of Civil and of Criminal Jurisdiction, and including Procedure in Civil Matters in those Courts.

> 15. The Imposition of Punishment by Fine, Penalty, or Imprisonment for enforcing any Law of the Province made in relation to any Matter coming within any of the Classes of Subjects enumerated in this Section.
>
> 16. Generally, all Matters of a merely local or private Nature in the Province.

Why did the framers of the *Constitution Act, 1867* pursue a federal system and not a unitary system with a central government, like that of the United Kingdom? After all, as the Preamble states, the colonies that were forming this new country had a "Desire to be…united into One Dominion under the Crown of the United Kingdom of Great Britain and Ireland, with a Constitution similar in Principle to that of the United Kingdom [emphasis added]." While the answer is not entirely straightforward, some of the reasons included:

- One of the most pressing concerns was the coexistence of French-speaking Catholics in Lower Canada (Quebec) and English-speaking Protestants in Upper Canada (Ontario). A unitary system might have led to assimilationist policies or domination by one group, threatening minority rights and social cohesion. Federalism allowed Quebec to preserve its language, religion, and civil law tradition by granting provinces control over education, civil law, and cultural matters.[10]
- The British North American colonies were geographically vast and economically diverse, with distinct regional interests (e.g., fisheries in the Maritimes, agriculture in Ontario, French civil law in Quebec). A federal system permitted local governments to tailor policies to regional needs, while a central government could address matters of national concern, such as defence, criminal law, trade and commerce.
- At the same time, the Canadian model of federalism was designed with a strong central government (e.g., residual power in s. 91; the "disallowance" power, etc.) to prevent fragmentation and secure national unity, especially in defense and economic integration.

In a federal system - at least in its ideal form - neither order of government is superior or subordinate to the other - in the sense that neither level/order depends on the other level/order for the grant, definition, or exercise of its powers. The powers of the two levels of government are set out in the Constitution, which is a written document that is supreme law and can only be changed through a special amendment process. In other words, neither level of government can, on its own, add to its own powers or take away from the powers of the other level of government. That at least is the ideal model.

However, there are many ways in which the Canadian constitution does not conform to this ideal form of federalism. Most notable in this regard is perhaps the federal "disallowance power." This is a mechanism found in section 90 of the *Constitution Act, 1867* that allows the federal government to disallow (i.e., invalidate) provincial legislation even after it has been validly passed by a provincial legislature and given royal assent. Notably, while the power was used over 100 times after Confederation and remains in the text of the *Constitution Act, 1867*, it has not been used since 1943. Some scholars believe that a constitutional convention now exists that prohibits the federal government from using the disallowance power in the future.[11]

3.1.1 Questions

1. Does the distribution of powers as between the federal and provincial governments in sections 91 and 92 of the *Constitution Act, 1867* seem logical to you?
2. What appears to be the underlying rationale that was being utilized by the framers of the constitution?
3. Do the powers in ss. 91 and 92 overlap or are they clearly distinct from one another?

3.1.2 A Constitution similar in Principle to that of the United Kingdom?

It is notable that the Preamble to the *Constitution Act, 1867* provides that the federal dominion shall have a "Constitution similar in Principle to that of the United Kingdom." On its face, this seems somewhat peculiar since in 1867 the United Kingdom did not have (a) an entrenched, written/codified constitutional document analogous to the *Constitution Act, 1867*; or (b) a federal system of government with provinces or states that had governments and areas of responsibility that were different from the federal or national government.

For these reasons, renowned constitutional legal scholar Albert Venn Dicey wrote that, "if preambles were intended to express the truth," the *Constitution Act, 1867* should have indicated that it was a constitution similar in principle to that of the United States (which, like Canada, had an entrenched and written constitution that divided powers between states and a federal government).[12]

Scholars other than Dicey, however, viewed the matter differently, suggesting that a "Constitution similar in Principle to that of the United Kingdom" indicated an intention to set up "Westminster"-style Parliamentary and executive institutions modelled on those employed by the United Kingdom.[13] This view is explained by Peter Oliver in his article 'A Constitution Similar in Principle to that of the United Kingdom': The Preamble, Constitutional Principles, and a Sustainable Jurisprudence" (2019) 65:2 McGill Law Journal 207 at 217-219 as follows:

> The most salient similarities to the constitution of the United Kingdom were the following: the Queen, prime minister, cabinet, and system of responsible government; the sovereignty of Parliament and the protection of rights by means of the common law; and the law and custom of Parliament.
>
> 1. The Queen, Prime Minister, Cabinet, and the System of Responsible Government
>
> The 1867 Act referred to the legislative institutions (House of Commons and Senate) and the courts, but it said very little about the executive, or very little that was recognizable to lay observers. Executive power was vested in the Queen and in the Governor General and Lieutenant-Governors, with little mention of the establishment of and limits on the exercise of that power. The detailed rules regarding succession to the throne, like the detailed rules regarding the election, composition, and functioning of the Westminster Parliament (the de facto general amending formula of the Canadian Constitution), were nowhere to be found. In a way this was not surprising, seeing as the Crown (and the Crown-in-Parliament) were British institutions of long standing. If Canadians needed to know more about them, the preamble referred them to the United Kingdom and its laws and other traditions, without the need to adopt them into Canadian law.
>
> The cabinet was referred to only obliquely, and the prime minister and premiers not at all. Similarly, the collective and individual responsibility of ministers to Parliament and the legislatures were not mentioned. Most of these latter "omissions" from the written text were, according to the constitution of the United Kingdom, governed by constitutional convention. Given that responsible government had already been achieved in the British North American colonies of Canada, New Brunswick, and Nova Scotia, it was inevitable that responsible government would also exist in the new Canada.
>
> All this is to say that while the 1867 Act provided a substantial number of written constitutional rules, it did not in any sense purport to be codified. The Queen, prime minister, the cabinet, and the system of responsible government that were governed by unwritten constitutional conventions in the United Kingdom would be governed by similar rules in Canada. Unless this assumption is made, the 1867 Act makes very

little sense. It is therefore safe to assume that the phrase "a Constitution similar in Principle to that of the United Kingdom" was at least intended to import unwritten conventional rules of this type. It is part of a broader post-1867 story (which is not emphasized in this particular narrative) that those same conventions evolved as Canada moved from colony to independent nation.

2. Sovereignty of Parliament and the Protection of Rights by Means of the Common Law

Other than rights regarding the use of the English and French languages, the 1867 Act made no attempt to protect rights in a manner similar to the famous American Bill of Rights. As Dicey would soon point out, rights in the UK constitution were protected in the common law, and (so it was said) in the good sense and tolerance of the British people and Parliament. In cases such as Entick v. Carrington, British judges ensured that the executive respected the rule of law and the liberties of subjects.

Courts would not, however, invalidate acts of Parliament; Parliament remained supreme. Yet while only Parliament (not the executive) could trump the common law, it was assumed that a democratically elected Parliament would not cede its powers to the executive or attack the liberties of its own citizens. If "a Constitution similar in Principle to that of the United Kingdom" is to be given a likely meaning, then the long-standing British approach to parliamentary sovereignty and rights would have to be close to the core of that meaning.

3. The Law and Custom of Parliament

Section 18 of the 1867 Act made clear that the Parliament of Canada could define the privileges, immunities, and powers of the Senate and House of Commons. However, until Parliament did so, the privileges, immunities, and powers of the Senate, House of Commons, and provincial legislatures were presumably those that had already existed in the legislatures of the British North American colonies, and in the British parliamentary tradition for far longer. These rules are essential to the running of Parliament in the British tradition. Although such rules have often been overlooked or under-emphasized by constitutional lawyers, they too are essential to the proper functioning of the Constitution in the British tradition. And again, it is difficult to understand the 1867 Act without them. It is likely, therefore, that the preamble is also referring to the law and custom of Parliament where it speaks of "a Constitution similar in Principle to that of the United Kingdom".

3.1.3 Was the Constitution Act, 1867 ahead of its time?

The *Constitution Act, 1867* was the product of negotiations at several conferences between 1864-67 among the thirty-six "Fathers of Confederation" who represented the various British North American colonies at the time. Notably absent from the negotiation table: women, people of colour, and representatives of the many Indigenous nations that had continuously occupied what would become the Dominion of Canada for thousands of years. Consistent with their absence from the negotiating table, the only mention of Indigenous people in the *Constitution Act, 1867* is in s. 91(24), in which the federal Parliament was given jurisdiction over "Indians, and Lands reserved for the Indians."

While the *Constitution Act, 1867* was primarily the product of negotiations between the 36 Fathers of Confederation, former Chief Justice Beverley McLachlin has argued that one can nevertheless finds within the document several modern Canadian constitutional values, such as respect and accommodation for minorities, as well as democracy and federalism:

> Our first constitutional moment was – by definition – the birth of the Canadian Confederation. The canned version of Canadian Confederation is simple. In 1867, a few British-ruled colonies in the north-eastern part of North America got together to form a country with its own Parliament and provincial Legislatures. Well, sort of a country, since ties to England remained firmly fixed both in culture and letter of the law.
>
> The reality, however, was more complicated. Confederation was the result of a need to accommodate three diverse groups that signed the original Confederation pact – the English Canadians in Ontario, the French Canadians in Quebec, and the eastern colonies. English-Canadian politicians from central Canada, admiring the highly centralized form of government in the United Kingdom, and influenced by the influx of United Empire Loyalists who fled the American Civil War, wanted a strong central government, which incidentally, they would control. French Canadian politicians, by contrast, were acutely aware that they would be a minority in the new Parliament of Canada, and therefore insisted that the provincial Legislatures be vested with enough power to safeguard the French language and culture, the civil law, and the Roman Catholic religion in Quebec. And on the seaboard, the politicians wanted to protect their way of life, their privileges and their traditions.
>
> These concerns dictated the constitutional form of the new country of Canada: a federation that gave each colony the powers necessary to protect its interests and culture. Only a federal union could provide each colony with the safeguards needed to preserve the new country's distinct culture and traditions.
>
> Looking back, we can identify three values that animated the Constitution that was conceived and ultimately subscribed to: democracy; federalism; and respect for minorities and accommodation.
>
> The new country was democratic. The pre-confederation colonies had fought long and hard for the principles of representation by population and responsible government, and were not about to let them go. It was therefore no surprise that the new constitution should be grounded in the basic democratic idea that the people should rule through their elected representatives.
>
> The new country was also federalist. The differences between the colonies – particularly between Quebec and the other colonies – made any other solution untenable. At the heart of the Constitution lay sections 91 and 92, listing the respective federal and provincial powers. Scholars argue that the original intent of the framers of the Constitution – as expressed through the allocation of federal-provincial powers, the federal Parliament's power to disallow provincial statutes, and the residual federal responsibility over peace, order and good government – was that the federal power should dominate. Be that as it may, over the decades that followed the Judicial Committee of the Privy Council put a distinctly regional stamp on the Constitution and today, cooperative federalism is the dominant norm.
>
> The third value that animated the 1867 Constitution is respect for diversity and minorities. Deep linguistic and religious differences divided the country at its inception. Respect of differences and the equal worth of different cultures were radical ideas in 1867 – an era when nation states defined themselves in terms of uniformity and fought wars to oust diversity. The new nation of Canada, uniting French Catholic and Anglo-Protestant colonies, had no choice but to take a different course and accept diversity. Difference and the right to preserve difference were, quite simply, the price of unity. And continue to be, to this day.
>
> To recap, Canada's first and defining moment, Confederation, grounded the nation in three values that were to prove lasting – democracy, federalism, and respect for difference and diversity.[14]

Do you agree with Chief Justice McLachlin's characterization of the *Constitution Act, 1867*?

3.2 Independence from the United Kingdom

Canada's path to independence from the United Kingdom was a gradual process, not a single event. It involved the evolution of self-governance within the British Empire and culminated in full legal sovereignty (including the power to amend its own constitution) with the passage of the *Constitution Act, 1982*. Some of the key milestones in that regard include:

- 1867: **Confederation**. As discussed above, the *British North America Act* united Ontario, Quebec, Nova Scotia, and New Brunswick into the Dominion of Canada. While this marked a significant step towards self-governance, Canada remained under British control in some areas.
- 1926: The **Balfour Declaration**. It declared that the United Kingdom and the "Dominions" (which included Canada) were "...autonomous Communities within the British Empire, equal in status, in no way subordinate one to another in any aspect of their domestic or external affairs, though united by a common allegiance to the Crown, and freely associated as members of the British Commonwealth of Nations." This declaration acknowledged, among other things, Canada's autonomy in the area of foreign affairs.
- 1931: The ***Statute of Westminster***. This statute gave full legislative independence from the United Kingdom to Canada (as well as the Dominions of Australia, New Zealand South Africa, Ireland and Newfoundland, which did not become a Canadian province until 1949).
- 1949: The **Supreme Court Act** was amended to abolish appeals to the Judicial Committee of the Privy Council in civil matters (appeals to the Privy Council for criminal matters were abolished in 1933). This made the Supreme Court of Canada a true apex court of final appeal that was no longer subject to overturn from the courts of the United Kingdom.
- 1982: The ***Constitution Act, 1982***. Canada's constitution was "patriated," giving Canada the sole authority to amend the Constitution in the future (without needing to request that the UK Parliament pass legislation to give such an amendment effect).

3.3 The Constitution Act, 1982

After a protracted period of difficult negotiations between the federal government of Prime Minister Pierre Trudeau and provincial governments, in 1981, the Parliament of Canada formally requested that the Parliament of the United Kingdom give up its power to amend the Constitution of Canada. This led to the enactment of the *Canada Act, 1982* by the Parliament of the United Kingdom. This legislation represented the formal "patriation" of the Constitution in that it transferred to Canada the power to amend its own Constitution. Schedule B to the *Canada Act, 1982* was the newly entrenched *Constitution Act, 1982*.

The *Constitution Act, 1982* has several parts:

- Part I, which includes ss. 1-34, sets out the *Canadian Charter of Rights and Freedoms*.
- Part II, which includes s. 35, recognizes and affirms the "existing aboriginal and treaty rights of the aboriginal peoples of Canada." The "aboriginal peoples of Canada" are defined as including the "Indian, Inuit and Métis peoples of Canada."
- Part III, which includes ss. 36, commits the federal Parliament and government to "the principle of making equalization payments to ensure that provincial governments have sufficient revenues to provide reasonably comparable levels of public services at reasonably comparable levels of taxation.
- Part IV, which included the now repealed ss. 37 and 37.1, provided for the convening of constitutional conferences involving the Prime Minister and the premiers of the provinces.
- Part V, which includes ss. 38-51, sets out a detailed procedure for the amendment of the Constitution.
- Part VII, which includes ss. 52-61 covers various general provisions. Most notably, the "supremacy clause" in s. 52 provides that "[t]he Constitution of Canada is the supreme law of Canada, and any law that is inconsistent with the provisions of the Constitution is, to the extent of the inconsistency, of no force or effect."
- A Schedule, which lists a number of statutes that are incorporated by reference into the Constitution of Canada. These include the *Constitution Act, 1867*, the *Statute of Westminster, 1931* and various statutes through which different provinces joined confederation after 1867.

3.3.1 The Canadian Charter of Rights and Freedoms

> Rights and freedoms in Canada
>
> 1 The *Canadian Charter of Rights and Freedoms* guarantees the rights and freedoms set out in it subject only to such reasonable limits prescribed by law as can be demonstrably justified in a free and democratic society.
>
> Fundamental freedoms
>
> 2 Everyone has the following fundamental freedoms:
>
> (a) freedom of conscience and religion;
>
> (b) freedom of thought, belief, opinion and expression, including freedom of the press and other media of communication;
>
> (c) freedom of peaceful assembly; and
>
> (d) freedom of association.
>
> Democratic rights of citizens
>
> 3 Every citizen of Canada has the right to vote in an election of members of the House of Commons or of a legislative assembly and to be qualified for membership therein.
>
> …
>
> Mobility of citizens
>
> 6 (1) Every citizen of Canada has the right to enter, remain in and leave Canada.
>
> Rights to move and gain livelihood
>
> (2) Every citizen of Canada and every person who has the status of a permanent resident of Canada has the right
>
> (a) to move to and take up residence in any province; and
>
> (b) to pursue the gaining of a livelihood in any province.
>
> Limitation
>
> (3) The rights specified in subsection (2) are subject to

(a) any laws or practices of general application in force in a province other than those that discriminate among persons primarily on the basis of province of present or previous residence; and

(b) any laws providing for reasonable residency requirements as a qualification for the receipt of publicly provided social services.

Affirmative action programs

(4) Subsections (2) and (3) do not preclude any law, program or activity that has as its object the amelioration in a province of conditions of individuals in that province who are socially or economically disadvantaged if the rate of employment in that province is below the rate of employment in Canada.

Life, liberty and security of person

7 Everyone has the right to life, liberty and security of the person and the right not to be deprived thereof except in accordance with the principles of fundamental justice.

Search or seizure

8 Everyone has the right to be secure against unreasonable search or seizure.

Detention or imprisonment

9 Everyone has the right not to be arbitrarily detained or imprisoned.

Arrest or detention

10 Everyone has the right on arrest or detention

(a) to be informed promptly of the reasons therefor;

(b) to retain and instruct counsel without delay and to be informed of that right; and

(c) to have the validity of the detention determined by way of *habeas corpus* and to be released if the detention is not lawful.

Proceedings in criminal and penal matters

11 Any person charged with an offence has the right

(a) to be informed without unreasonable delay of the specific offence;

(b) to be tried within a reasonable time;

(c) not to be compelled to be a witness in proceedings against that person in respect of the offence;

(d) to be presumed innocent until proven guilty according to law in a fair and public hearing by an independent and impartial tribunal;

(e) not to be denied reasonable bail without just cause;

(f) except in the case of an offence under military law tried before a military tribunal, to the benefit of trial by jury where the maximum punishment for the offence is imprisonment for five years or a more severe punishment;

(g) not to be found guilty on account of any act or omission unless, at the time of the act or omission, it constituted an offence under Canadian or international law or was criminal according to the general principles of law recognized by the community of nations;

(h) if finally acquitted of the offence, not to be tried for it again and, if finally found guilty and punished for the offence, not to be tried or punished for it again; and

(i) if found guilty of the offence and if the punishment for the offence has been varied between the time of commission and the time of sentencing, to the benefit of the lesser punishment.

Treatment or punishment

12 Everyone has the right not to be subjected to any cruel and unusual treatment or punishment.

…

Equality before and under law and equal protection and benefit of law

15 (1) Every individual is equal before and under the law and has the right to the equal protection and equal benefit of the law without discrimination and, in particular, without discrimination based on race, national or ethnic origin, colour, religion, sex, age or mental or physical disability.

Affirmative action programs

(2) Subsection (1) does not preclude any law, program or activity that has as its object the amelioration of conditions of disadvantaged individuals or groups including those that are disadvantaged because of race, national or ethnic origin, colour, religion, sex, age or mental or physical disability.

…

Enforcement of guaranteed rights and freedoms

24 (1) Anyone whose rights or freedoms, as guaranteed by this Charter, have been infringed or denied may apply to a court of competent jurisdiction to obtain such remedy as the court considers appropriate and just in the circumstances.

Exclusion of evidence bringing administration of justice into disrepute

(2) Where, in proceedings under subsection (1), a court concludes that evidence was obtained in a manner that infringed or denied any rights or freedoms guaranteed by this Charter, the evidence shall be excluded if it is established that, having regard to all the circumstances, the admission of it in the proceedings would bring the administration of justice into disrepute.

…

Multicultural heritage

27 This Charter shall be interpreted in a manner consistent with the preservation and enhancement of the multicultural heritage of Canadians.

Rights guaranteed equally to both sexes

28 Notwithstanding anything in this Charter, the rights and freedoms referred to in it are guaranteed equally to male and female persons.

…

Application of Charter

32 (1) This Charter applies

(a) to the Parliament and government of Canada in respect of all matters within the authority of Parliament including all matters relating to the Yukon Territory and Northwest Territories; and

(b) to the legislature and government of each province in respect of all matters within the authority of the legislature of each province.

Exception

(2) Notwithstanding subsection (1), section 15 shall not have effect until three years after this section comes into force.

Exception where express declaration

33 (1) Parliament or the legislature of a province may expressly declare in an Act of Parliament or of the legislature, as the case may be, that the Act or a provision thereof shall operate notwithstanding a provision included in section 2 or sections 7 to 15 of this Charter.

Operation of exception

(2) An Act or a provision of an Act in respect of which a declaration made under this section is in effect shall have such operation as it would have but for the provision of this Charter referred to in the declaration.

Five-year limitation

(3) A declaration made under subsection (1) shall cease to have effect five years after it comes into force or on such earlier date as may be specified in the declaration.

Re-enactment

(4) Parliament or the legislature of a province may re-enact a declaration made under subsection (1).

Five-year limitation

(5) Subsection (3) applies in respect of a re-enactment made under subsection (4).

Citation

34 This Part may be cited as the *Canadian Charter of Rights and Freedoms*.

3.3.1.1 Notes/Questions:

- Section 27 of the South African *Bill of Rights* provides that "27. (1) Everyone has the right to have access to— (a) health care services, including reproductive health care; (b) sufficient food and water; and (c) social security, including, if they are unable to support themselves and their dependants, appropriate social assistance. (2) The state must take reasonable legislative and other measures, within its available resources, to achieve the progressive realisation of each of these rights. (3) No one may be refused emergency medical treatment." The *Charter* does not have any comparable provisions that seem to explicitly require the state to act positively in order to ensure that rights are protected. Why do you think that such provisions were not included in the *Charter*? Should they have been?

3.4 Constitutional Amendment

The topic of constitutional amendment is covered more thoroughly in Chapter 4. For now, recall that Part V of the *Constitution Act, 1982* sets out the procedure by which the Constitution may be amended. It sets out four categories of amending procedures:

- The general amending procedure — the "7/50" procedure — (s. 38) which requires resolutions of the Senate, the House of Commons, and legislative assemblies of at least seven provinces whose population represents, in the aggregate, at least half of the current population of all the provinces.
- The unanimous consent procedure (s. 41), which applies to certain changes deemed fundamental by the framers of the *Constitution Act, 1982*.
- The special arrangements procedure (s. 43), which applies to amendments in relation to provisions of the Constitution that apply to some, but not all, of the provinces.
- The unilateral federal and provincial procedures, which allow unilateral amendment of aspects of government institutions that engage purely federal or provincial interests (ss. 44 and 45).

These amendment procedures were described and discussed in *Reference re Senate Reform*, 2014 SCC 32 (CanLII), [2014] 1 SCR 704, in which the Court had to determine what procedure was required in order to reform or abolish the Senate:

C. The Part V Amending Procedures

[28] Part V of the *Constitution Act, 1982* provides the blueprint for how to amend the Constitution of Canada (see Appendix). It tells us what changes Parliament and the provincial legislatures can make unilaterally, what changes require substantial federal and provincial consent, and what changes require unanimous agreement.

(1) History

[29] The Part V amending formula reflects the principle that constitutional change that engages provincial interests requires both the consent of Parliament and a significant degree of provincial consent. Prior to patriation, constitutional amendment in Canada required the adoption of a law by the British Parliament following a joint resolution addressed to it by the Senate and the House of Commons, since the *Constitution Act, 1867* was an Act of the British Parliament. There was no formal requirement for consultation with the provinces. However, in practice, throughout the 20th century, the federal government consulted with the provinces on constitutional amendments that directly affected federal-provincial relations, and obtained their consent before putting a joint address to the British Parliament: Canada, Minister of Justice, The Amendment of the Constitution of Canada (1965) ("Favreau"), at pp. 15-16. By the time of patriation, this practice had ripened into a constitutional convention requiring substantial consent to constitutional change directly affecting federal-provincial relations: Reference re Resolution to amend the Constitution, 1981 CanLII 25 (SCC), [1981] 1 SCR 753 (the "Patriation Reference"), at pp. 889-95; Reference re Objection by Quebec to a Resolution to amend the Constitution, 1982 CanLII 219 (SCC), [1982] 2 SCR 793.

[30] Beginning in the 1930s, the federal government and the provinces held a series of conferences to discuss the possibility of adopting a formal amending formula. This produced several proposals: see in particular the Fulton-Favreau formula in Favreau, at pp. 110-15; and the Victoria Charter, in Constitutional Conference: Proceedings (1971), App. B. In October 1980, amid efforts to achieve broad constitutional reform, the federal government tabled a new proposed amending formula in the House of Commons and the Senate: "Proposed Resolution for a Joint Address to Her Majesty the Queen respecting the Constitution of Canada", in The Canadian Constitution 1980: Proposed Resolution respecting the Constitution of Canada (1980). In response, the provincial premiers developed a counter-proposal that became the template for Part V of the *Constitution Act, 1982* — the "April Accord" of 1981: Constitutional Accord: Canadian Patriation Plan (1981).

[31] The April Accord, and ultimately Part V, reflect the political consensus that the provinces must have a say in constitutional changes that engage their interests. The "underlying purpose" of these documents is "to constrain unilateral federal powers to effect constitutional change": P. J. Monahan and B. Shaw, Constitutional Law (4th ed. 2013), at p. 204; Supreme Court Act Reference, at paras. 98-100. They also consecrate the principle of "the constitutional equality of provinces as equal partners in Confederation": Constitutional Accord: Canadian Patriation Plan, General Comment in Part A, at p. 1. In principle, no province stands above the others with respect to constitutional amendments, and all provinces are given the same rights in the process of amendment. The result is an amending formula designed to foster dialogue between the federal government and the provinces on matters of constitutional change, and to protect Canada's constitutional status quo until such time as reforms are agreed upon.

(2) The Amending Procedures

[32] Part V contains four categories of amending procedures. The first is the general amending procedure (s. 38, complemented by s. 42), which requires a substantial degree of consensus between Parliament and the provincial legislatures. The second is the unanimous consent procedure (s. 41), which applies to certain changes deemed fundamental by the framers of the *Constitution Act, 1982*. The third is the special arrangements procedure (s. 43), which applies to amendments in relation to provisions of the Constitution that apply to some, but not all, of the provinces. The fourth is made up of the unilateral federal and provincial procedures, which allow unilateral amendment of aspects of government institutions that engage purely federal or provincial interests (ss. 44 and 45).

3.5 Unwritten Constitutional Principles

3.5.1 *Toronto (City) v. Ontario (Attorney General)*, 2021 SCC 34

[This case concerned a constitutional challenge to provincial legislation that significantly reduced the number of electoral districts in the city of Toronto. Controversially, the legislation was passed well into an ongoing election. The legislation was challenged as being unconstitutional both on the grounds that it violated the right to freedom of expression in s. 2(b) of the *Charter*, but also on the basis that it violated the unwritten constitutional principle of democracy. This gave the Court the opportunity to lay out the proper role that unwritten constitutional principles play and, crucially, whether they can be deployed on their own to invalidate legislation.]

The judgment of Wagner C.J. and Moldaver, Côté, Brown and Rowe JJ. was delivered by

THE CHIEF JUSTICE AND BROWN J. —

…

(1) Interpretive and Gap-Filling Roles of Unwritten Constitutional Principles

[49] The Constitution of Canada embodies written and unwritten norms. This Court has recognized that our Constitution describes an architecture of the institutions of state and of their relationship to citizens that connotes certain underlying principles (*Reference re Remuneration of Judges of the Provincial Court of Prince Edward Island*, 1997 CanLII 317 (SCC), [1997] 3 SCR 3, at para. 93; *Reference re Secession of Quebec*, 1998 CanLII 793 (SCC), [1998] 2 SCR 217, at paras. 50-51). These principles, such as democracy and the rule of law, "infuse our Constitution" (*Secession Reference*, at para. 50). Although not recorded outside of "oblique reference[s]" in the preamble to the *Constitution Act, 1867* and to the *Constitution Act, 1982* (para. 51), these principles are "foundational" (para. 49), without which "it would be impossible to conceive of our constitutional structure" (para. 51). These principles have "full legal force" and may give rise to substantive legal obligations (para. 54, quoting *Reference re Resolution to Amend the Constitution*, 1981 CanLII 25 (SCC), [1981] 1 SCR 753, at p. 845). "[L]ike all principles of political morality, [they] can guide and constrain the decision-making of the executive and legislative branches" (C.A. reasons, at para. 84, citing *British Columbia v. Imperial Tobacco Canada Ltd.*, 2005 SCC 49, [2005] 2 SCR 473, at para. 52).

[50] Unwritten principles are therefore part of *the law* of our Constitution, in the sense that they form part of the context and backdrop to the Constitution's written terms. Our colleague Abella J. seizes upon a statement from a dissenting opinion in *Reference re Resolution to Amend the Constitution* to support the proposition that "full legal force" necessarily includes the power to invalidate legislation. But the complete passage in *Reference re Resolution to Amend the Constitution*, and the jurisprudence cited therein, demonstrates that Martland and Ritchie JJ. are discussing *federalism* and, while specific aspects of federalism may be unwritten and judicially developed, it is indisputable that federalism has a strong textual basis. Nor does our colleague's reliance upon *MacMillan Bloedel Ltd. v. Simpson*, 1995 CanLII 57 (SCC), [1995] 4 SCR 725 (at para. 176), support the capacity of unwritten constitutional principles to invalidate legislation, since the finding there was that granting exclusive jurisdiction to the youth court would infringe ss. 96 to 101 and 129 of the *Constitution Act, 1867*. Regardless, any uncertainty on the question of whether unwritten constitutional principles may invalidate legislation that may have remained after the *Reference re Resolution to Amend the Constitution* and the *Secession Reference* was, as we will explain, fully put to rest in *Imperial Tobacco*.

[51] Further, the authorities she cites as "recogniz[ing] that unwritten constitutional principles have full legal force and can serve as substantive limitations on all branches of government" (para. 166) do not support the proposition that unwritten constitutional principles can be applied to invalidate legislation. Indeed, it is quite the contrary — for example, in *R. (on the application of Miller) v. Prime Minister*, [2019] UKSC 41, [2020] A.C. 373, at para. 41, the Supreme Court of the United Kingdom stated that the constitutional principle of parliamentary sovereignty means that *legislation itself* ("laws enacted by the Crown in Parliament"), under the Constitution of the United Kingdom, remains "the supreme form of law". While courts in the United Kingdom may find primary legislation to be inconsistent with the *European Convention on Human Rights*, 213 U.N.T.S. 221, they may only issue a declaration of incompatibility (*Human Rights Act 1998* (U.K.), 1998, c. 42, s. 4); they have not used unwritten constitutional principles to invalidate legislation.

[52] Our colleague is concerned about the "rare case" where "legislation [that] elides the reach of any express constitutional provision . . . is fundamentally at odds with our Constitution's 'internal architecture' or 'basic constitutional structure'" and recourse must be had to unwritten constitutional principles (para. 170, quoting *Secession Reference*, at para. 50, and *OPSEU v. Ontario (Attorney General)*, 1987 CanLII 71 (SCC), [1987] 2 SCR 2, at p. 57). But it is inconceivable that legislation which is repugnant to our "basic constitutional structure" would not infringe the Constitution itself. And that structure, recorded in the Constitution's text (as we discuss below), is interpreted with the

aid of unwritten constitutional principles. This is clear from the context of Martland and Ritchie JJ.'s statement that unwritten principles have "full legal force in the sense of being employed to strike down legislative enactments" (*Reference re Resolution to Amend the Constitution*, at p. 845). As noted above, that case was about federalism, as was the jurisprudence cited in support of their statement; Martland and Ritchie JJ. were describing the "constitutional requirements that are derived from the federal character of Canada's Constitution" (pp. 844-45 (emphasis added)). And this is precisely the point while the specific aspects of federalism at issue there may not have been found in the express terms of the Constitution, *federalism is*.

[53] To explain, federalism is fully enshrined *in the structure* of our Constitution, because it is enshrined *in the text* that is constitutive thereof —— particularly, but not exclusively, in ss. 91 and 92 of the *Constitution Act*, *1867*. Structures are not comprised of unattached externalities; they are embodiments of their constituent, conjoined parts. The structure of our Constitution is identified by way of its actual provisions, recorded in its text. This is why our colleague can offer no example of legislation that would undermine the structure of the Constitution that cannot be addressed as we propose, which is via purposive textual interpretation. It is also why, once "constitutional structure" is properly understood, it becomes clear that, when our colleague invokes "constitutional structure", she is in substance inviting judicial invalidation of legislation in a manner that is wholly untethered from that structure.

[54] Ultimately, what "full legal force" means is dependent on the particular context. Any legal instrument or device, such as a contract or a will or a rule, has "full legal force" within its proper ambit. Our colleague's position — that because unwritten constitutional principles have "full legal force", they must necessarily be capable of invalidating legislation — assumes the answer to the preliminary but essential question: what is the "full legal force" of unwritten constitutional principles? And in our view, because they are unwritten, their "full legal force" is realized not in supplementing the written text of our Constitution as "provisions of the Constitution" with which no law may be inconsistent and remain of "force or effect" under s. 52(1) of the Constitution Act, 1982. Unwritten constitutional principles are not "provisions of the Constitution". Their legal force lies in their representation of general principles within which our constitutional order operates and, therefore, by which the Constitution's written terms — its provisions — are to be given effect. In practical terms, this means that unwritten constitutional principles may assist courts in only two distinct but related ways.

[55] First, they may be used in the interpretation of constitutional provisions. Indeed, that is the "full legal force" that this Court described in *Secession Reference* (para. 54). In this way, the unwritten constitutional principles of judicial independence and the rule of law have aided in the interpretation of ss. 96 to 100 of the *Constitution Act, 1867*, which have come to safeguard the core jurisdiction of the courts which fall within the scope of those provisions (*Provincial Court Judges Reference*, at paras. 88-89; *MacMillan Bloedel*, at paras. 10-11 and 27-28; *Trial Lawyers Association of British Columbia v. British Columbia (Attorney General)*, 2014 SCC 59, [2014] 3 SCR 31, at paras. 29-33). When applied to *Charter* rights, unwritten principles assist with purposive interpretation, informing "the character and the larger objects of the *Charter* itself, . . . the language chosen to articulate the specific right or freedom, [and] the historical origins of the concepts enshrined" (*Quebec (Attorney General)*, at para. 7, quoting *Big M Drug Mart Ltd.*, at p. 344; see also *R. v. Poulin*, 2019 SCC 47, at para. 32).

[56] Secondly, and relatedly, unwritten principles can be used to develop structural doctrines unstated in the written Constitution *per se*, but necessary to the coherence of, and flowing by implication from, its architecture. In this way, structural doctrines can fill gaps and address important questions on which the text of the Constitution is silent, such as the doctrine of full faith and credit (*Morguard Investments Ltd. v. De Savoye*, 1990 CanLII 29 (SCC), [1990] 3 SCR 1077; *Hunt v. T&N plc*, 1993 CanLII 43 (SCC), [1993] 4 SCR 289); the doctrine of paramountcy (*Huson v. The Township of South Norwich* (1895), 1895 CanLII 1 (SCC), 24 SCR 145); the remedy of suspended declarations of invalidity (*Reference re Manitoba Language Rights*, 1985 CanLII 33 (SCC), [1985] 1 SCR 721); and the obligations to negotiate that would follow a declaration of secession by a province (*Secession Reference*).

[57] Neither of these functions support the proposition advanced by the City that the force of unwritten principles extends to invalidating legislation. Indeed, the truth of the matter is to the contrary. Attempts to apply unwritten constitutional principles in such a manner as an independent basis to invalidate legislation, whether alone or in combination, suffer from a normative and a practical deficiency, each related to the other, and each fatal on its own.

[58] First, such attempts trespass into legislative authority to amend the Constitution, thereby raising fundamental concerns about the legitimacy of judicial review and distorting the separation of powers (*Imperial Tobacco*, at paras. 53-54, 60 and 64-67; J. Leclair, "Canada's Unfathomable Unwritten Constitutional Principles" (2002), 27 *Queen's L.J.* 389, at pp. 427-32). Our colleague's approach, which invites the use of unwritten constitutional principles in a manner that is wholly untethered from the text, ignores this fundamental concern.

[59] Secondly, unwritten constitutional principles are "highly abstract" and "[u]nlike the rights enumerated in the *Charter* — rights whose textual formulations were debated, refined and ultimately resolved by the committees and legislative assemblies entrusted with constitution-making authority — the concep[t] of democracy . . . ha[s] no canonical formulatio[n]" (C.A. reasons, at para. 85). Unlike the written text of the Constitution, then, which "promotes legal certainty and predictability" in the exercise of judicial review (*Secession Reference*, at para. 53), the nebulous nature of the unwritten principles makes them susceptible to be interpreted so as to "render many of our written constitutional rights redundant and, in doing so, undermine the delimitation of those rights chosen by our constitutional framers" (*Imperial Tobacco*, at para. 65). Accordingly, there is good reason to insist that "protection from legislation that some might view as unjust or unfair properly lies not in the amorphous underlying principles of our Constitution, but in its text and the ballot box" (para. 66). In our view, this statement should be understood as covering all possible bases for claims of right (i.e., "unjust or unfair" *or otherwise normatively deficient*).

[60] We add this. Were a court to rely on unwritten constitutional principles, in whole or in part, to invalidate legislation, the consequences of this judicial error would be of particular significance given two provisions of our *Charter*. First, s. 33 preserves a limited right of legislative override. Where, therefore, a court invalidates legislation using s. 2(b) of the *Charter*, the legislature may give continued effect to *its* understanding of what the Constitution requires by invoking s. 33 and by meeting its stated conditions (D. Newman, "Canada's Notwithstanding Clause, Dialogue, and Constitutional Identities", in G. Sigalet, G. Webber and R. Dixon, eds., *Constitutional Dialogue: Rights, Democracy, Institutions* (2019), 209, at p. 232). Were, however, a court to rely *not* on s. 2(b) but *instead* upon an unwritten constitutional principle to invalidate legislation, this undeniable aspect of the constitutional bargain would effectively be undone, since s. 33 applies to permit legislation to operate "notwithstanding a provision included in section 2 or sections 7 to 15" *only*. Secondly, s. 1 provides a basis for the state to justify limits on "the rights and freedoms set out" in the *Charter*. Unwritten constitutional principles, being *unwritten*, are not "set out" in the *Charter*. To find, therefore, that they can ground a constitutional violation would afford the state no corresponding justificatory mechanism.

[61] Our colleague says that the application of s. 33 "is not directly before us" (para. 182). As the City has advanced its claim on the basis of s. 2(b), coupled with the unwritten principle of democracy, the prospect of circumventing s. 33's application to the invalidation of legislation under s. 2(b) by recourse to unwritten constitutional principles is indeed squarely before us.

…

[63] In sum, and contrary to the submissions of the City, unwritten constitutional principles cannot serve as bases for invalidating legislation. A careful review of the Court's jurisprudence supports this conclusion.

…

V. Conclusion

[85] We would dismiss the appeal.

3.6 Unwritten Constitutional Conventions

In 1981, the federal Parliament, led by Prime Minister Pierre Trudeau, wished to pass a resolution requesting that the Parliament of the United Kingdom pass legislation that would amend the *Constitution Act, 1867*, add a domestic amendment formula (which would allow Canada to modify the Constitution itself) and entrench a new *Charter of Rights and Freedoms*. At the time, eight provinces opposed the plan, while Ontario and New Brunswick approved.

In what became known as the *Patriation Reference*, the Supreme Court of Canada was asked to determine whether (a) it was within the legislative competence of the federal Parliament to unilaterally make the request without provincial consent; and (b) whether there existed a constitutional convention that required provincial governments to agree before any such request was made by the federal government.

With regard to the first question, a majority of the Court concluded that the proposed resolution requesting the amendment of the Canadian Constitution by the United Kingdom Parliament was within the legislative competence of the Houses of the Parliament of Canada notwithstanding the fact that it affected provincial legislative powers. The Court's discussion of the second question is set out below.

3.6.1 *Re: Resolution to amend the Constitution*, 1981 CanLII 25 (SCC), [1981] 1 SCR 753

MARTLAND, RITCHIE, DICKSON, BEETZ, CHOUINARD AND LAMER JJ.—

I—The nature of constitutional conventions

A substantial part of the rules of the Canadian constitution are written. They are contained not in a single document called a constitution but in a great variety of statutes some of which have been enacted by the Parliament at Westminster, such as the *British North America Act, 1867, 1867 (U.K.),* c. 3, (the *B.N.A. Act)* or by the Parliament of Canada, such as *The Alberta Act, 1905 (Can.),* c. 3, *The Saskatchewan Act,* 1905 (Can.), c. 42, the *Senate and House of Commons Act, R.S.C.* 1970, c. S-8, or by the provincial legislatures, such as the provincial electoral acts. They are also to be found in orders in council like the Imperial Order in Council of May 16, 1871 admitting British Columbia into the Union, and the Imperial Order in Council of June 26, 1873, admitting Prince Edward Island into the Union.

Another part of the Constitution of Canada consists of the rules of the common law. These are rules which the courts have developed over the centuries in the discharge of their judicial duties. An important portion of these rules concerns the prerogative of the Crown. Sections 9 and 15 of the *B.N.A. Act* provide:

> 9. The Executive Government and Authority of and over Canada *is* hereby declared to continue and be vested in the Queen.
>
> 15. The Commander-in-Chief of the Land and Naval Militia, and of all Naval and Military Forces, of and in Canada, is hereby declared to continue and be vested in the Queen.

But the Act does not otherwise say very much with respect to the elements of "Executive Government and Authority" and one must look at the common law to find out what they are, apart from authority delegated to the executive by statute.

The common law provides that the authority of the Crown includes for instance the prerogative of mercy or clemency[52] and the power to incorporate by charter so as to confer a general capacity analogous to that of a natural person[53]. The royal prerogative puts the Crown in a preferred position as a creditor[54] or with respect to the inheritance of lands for defect of heirs[55] or in relation to the ownership of precious metals[56] and *bona vacantia**[57]*. It is also under the prerogative and the common law that the Crown appoints and receives ambassadors, declares war, concludes treaties and it is in the name of the Queen that passports are issued.

Those parts of the Constitution of Canada which are composed of statutory rules and common law rules are generically referred to as the law of the constitution. In cases of doubt or dispute, it is the function of the courts to declare what the law is and since the law is sometimes breached, it is generally the function of the courts to ascertain whether it has in fact been breached in specific instances and, if so, to apply such sanctions as are contemplated by the law, whether they be punitive sanctions or civil sanctions such as a declaration of nullity. Thus, when a federal or a provincial statute is found by the courts to be in excess of the legislative competence of the legislature which has enacted it, it is declared null and void and the courts refuse to give effect to it. In this sense it can be said that the law of the constitution is administered or enforced by the courts.

But many Canadians would perhaps be surprised to learn that important parts of the constitution of Canada, with which they are the most familiar because they are directly involved when they exercise their right to vote at federal and provincial elections, are nowhere to be found in the law of the constitution. For instance, it is a fundamental requirement of the constitution that if the opposition obtains the majority at the polls, the government must tender its resignation forthwith. But fundamental as it is, this requirement of the constitution does not form part of the law of the constitution.

It is also a constitutional requirement that the person who is appointed prime minister or premier by the Crown and who is the effective head of the government should have the support of the elected branch of the legislature; in practice this means in most cases the leader of the political party which has won a majority of seats at a general election. Other ministers are appointed by the Crown on the advice of the prime minister or premier when he forms or reshuffles his cabinet. Ministers must continuously have the confidence of the elected branch of the legislature, individually and collectively. Should they lose it, they must either resign or ask the Crown for a dissolution of the legislature and the holding of a general election. Most of the powers of the Crown under the prerogative are exercised only upon the advice of the prime minister of the cabinet which means that they are effectively exercised by the latter, together with the innumerable statutory powers delegated to the Crown in council.

Yet none of these essential rules of the constitution can be said to be a law of the constitution. It was apparently Dicey who, in the first edition of his *Law of the Constitution,* in 1885, called them the "conventions of the constitution", (see W. S. Holdsworth, "The Conventions of the Eighteenth Century Constitution" (1932), 17 Iowa Law Rev. 161), an expression which quickly became current. What Dicey described under these terms are the principles and rules of responsible government, several of which are stated above and which regulate the relations between the Crown, the prime minister, the cabinet and the two Houses of Parliament. These rules developed in Great Britain by way of custom and precedent during the nineteenth century and were exported to such British colonies as were granted self-government.

Dicey first gave the impression that constitutional conventions are a peculiarly British and modern phenomenon. But he recognized in later editions that different conventions are found in other constitutions. As Sir William Holdsworth wrote *(supra,* at p. 162):

> "In fact conventions must grow up at all times and in all places where the powers of government are vested in different persons or bodies—where in other words there is a mixed constitution. "The constituent parts of a state," said Burke, [French Revolution, 28.] "are obliged to hold their public faith with each other, and with all those who derive any serious interest under their engagements, as much as the whole state is bound to keep its faith with separate communities." Necessarily conventional rules spring up to regulate the working of the various parts of the constitution, their relations to one another, and to the subject."

Within the British Empire, powers of government were vested in different bodies which provided a fertile ground for the growth of new constitutional conventions unknown to Dicey and from which self-governing colonies acquired equal and independent status within the Commonwealth. Many of these culminated in the *Statute of Westminster, 1931,* 1931 (U.K.), *c.* 4.

A federal constitution provides for the distribution of powers between various legislatures and governments and may also constitute a fertile ground for the growth of constitutional conventions between those legislatures and governments. It is conceivable for instance that usage and practice might give birth to conventions in Canada relating to the holding of federal-provincial conferences, the appointment of lieutenant governors, the reservation and disallowance of provincial legislation. It was to this possibility that Duff C.J. alluded when he referred to "constitutional usage or constitutional practice" in *Reference re Disallowance and Reservation of Provincial Legislation**[58]**,* at p. 78. He had previously called them "recognized constitutional conventions" in *Wilson v. Esquimalt and Nanaimo Railway Co.**[59]**,* at p. 210.

The main purpose of constitutional conventions is to ensure that the legal framework of the constitution will be operated in accordance with the prevailing constitutional values or principles of the period. For example, the constitutional value which is the pivot of the conventions stated above and relating to responsible government is the democratic principle: the powers of the state must be exercised in accordance with the wishes of the electorate; and the constitutional value or principle which anchors the conventions regulating the relationship between the members of the Commonwealth is the independence of the former British colonies.

Being based on custom and precedent, constitutional conventions are usually unwritten rules. Some of them, however, may be reduced to writing and expressed in the proceedings and documents of imperial conferences, or in the preamble of statutes such as the *Statute of Westminster, 1931,* or in the proceedings and documents of federal-provincial conferences. They are often referred to and recognized in statements made by members of governments.

The conventional rules of the constitution present one striking peculiarity. In contradistinction to the laws of the constitution, they are not enforced by the courts. One reason for this situation is that, unlike common law rules, conventions are not judge-made rules. They are not based on judicial precedents but on precedents established by the institutions of government themselves. Nor are they in the nature of statutory commands which it is the function and duty of the courts to obey and enforce. Furthermore, to enforce them would mean to administer some formal sanction when they are breached. But the legal system from which they are distinct does not contemplate formal sanctions for their breach.

Perhaps the main reason why conventional rules cannot be enforced by the courts is that they are generally in conflict with the legal rules which they postulate and the courts are bound to enforce the legal rules. The conflict is not of a type which would entail the commission of any illegality. It results from the fact that legal rules create wide powers, discretions and rights which conventions prescribe should be exercised only in a certain limited manner, if at all.

Some examples will illustrate this point.

As a matter of law, the Queen, or the Governor General or the Lieutenant Governor could refuse assent to every bill passed by both Houses of Parliament or by a Legislative Assembly as the case may be. But by convention they cannot of their own motion refuse to assent to any such bill on any ground, for instance because they disapprove of the policy of the bill. We have here a conflict between a legal rule which creates a complete discretion and a conventional rule which completely neutralizes it. But conventions, like laws, are sometimes violated. And if this particular convention were violated and assent were improperly withheld, the courts would be bound to enforce the law, not the convention. They would refuse to recognize the validity of a vetoed bill. This is what happened in *Gallant v. The King**[60]**, a* case in keeping with the classic case of *Stockdale v. Hansard**[61]* where the English Court of Queen's Bench held that only the Queen and both Houses of Parliament could make or unmake laws. The Lieutenant Governor who had withheld assent in *Gallant* apparently did so towards the end of' his term of office. Had it been otherwise, it is not inconceivable that his withholding of assent might have produced a political crisis leading to his removal from office which shows that if the remedy for a breach of a convention does not lie with the courts, still the breach is not necessarily without a remedy. The remedy lies with some other institutions of government; furthermore it is not a formal remedy and it may be administered with less certainty or regularity than it would be by a court.

Another example of the conflict between law and convention is provided by a fundamental convention already stated above: if after a general election where the opposition obtained the majority at the polls the government refused to resign and clung to office, it would thereby commit a fundamental breach of convention, one so serious indeed that it could be regarded as tantamount to *a coup d'état.* The remedy in this case would lie with the Governor General or the Lieutenant Governor as the case might be who would be justified in dismissing the ministry and in calling on the opposition to form the government. But should the Crown be slow in taking this course, there is nothing the courts could do about it except at the risk of creating a state of legal discontinuity, that is, a form of revolution. An order or a regulation passed by a minister under statutory authority and otherwise valid could not be invalidated on the ground that, by convention, the minister ought no longer be a minister. A writ of *quo warranto* aimed at ministers, assuming that *quo warranto* lies against a minister of the Crown, which is very doubtful, would be of no avail to remove them from office. Required to say by what warrant they occupy their ministerial office, they would answer that they occupy it by the pleasure of the Crown under a commission issued by the Crown and this answer would be a complete one at law, for at law the government is in office by the pleasure of the Crown although by convention it is there by the will of the people.

This conflict between convention and law which prevents the courts from enforcing conventions also prevents conventions from crystallizing into laws, unless it be by statutory adoption.

It is because the sanctions of convention rest with institutions of government other than courts, such as the Governor General or the Lieutenant Governor, or the Houses of Parliament, or with public opinion and ultimately, with the electorate, that it is generally said that they are political.

We respectfully adopt the definition of a convention given by the learned Chief Justice of Manitoba, Freedman C.J.M., in the Manitoba Reference, *supra,* at pp. 13-14:

> What is a constitutional convention? There is a fairly lengthy literature on the subject. Although there may be shades of difference among the constitutional lawyers, political scientists, and Judges who have contributed to that literature, the essential features of a convention may be set forth with some degree of confidence. Thus there is general agreement that a convention occupies a position somewhere in between a usage or custom on the one hand and a constitutional law on the other. There is general agreement that if one sought to fix that position with greater precision he would place convention nearer to law than to usage or custom. There is also general agreement that "a convention is a rule which is regarded as obligatory by the officials to whom it applies". Hogg, *Constitutional Law of Canada* (1977), p. *9.* There is, if not general agreement, at least weighty authority, that the sanction for breach of a convention will be political rather than legal.

It should be borne in mind however that, while they are not laws, some conventions may be more important than some laws. Their importance

depends on that of the value or principle which they are meant to safeguard. Also, they form an integral part of the constitution and of the constitutional system. They come within the meaning of the word "Constitution" in the preamble of the *British North America Act, 1867:*

> "Whereas the Provinces of Canada, Nova Scotia, and New Brunswick have expressed their Desire to be federally united ... with a Constitution similar in Principle to that of the United Kingdom."

That is why it is perfectly appropriate to say that to violate a convention is to do something which is unconstitutional although it entails no direct legal consequence. But the words "constitutional" and "unconstitutional" may also be used in a strict legal sense, for instance with respect to a statute which is found *ultra vires* or unconstitutional. The foregoing may perhaps be summarized in an equation: constitutional conventions plus constitutional law equal the total constitution of the country.

…

III—Whether the convention exists

It was submitted by counsel for Canada, Ontario and New Brunswick that there is no constitutional convention, that the House of Commons and Senate of Canada will not request Her Majesty the Queen to lay before the Parliament at Westminster a measure to amend the Constitution of Canada affecting federal-provincial relationships, etc., without first obtaining the agreement of the provinces.

It was submitted by counsel for Manitoba, Newfoundland, Quebec, Nova Scotia, British Columbia, Prince Edward Island and Alberta that the convention does exist, that it requires the agreement of all the provinces and that the second question in the Manitoba and Newfoundland References should accordingly be answered in the affirmative.

Counsel for Saskatchewan agreed that the question be answered in the affirmative but on a different basis. He submitted that the convention does exist and requires a measure of provincial agreement. Counsel for Saskatchewan further submitted that the Resolution before the Court has not received a sufficient measure of provincial consent.

We wish to indicate at the outset that we find ourselves in agreement with the submissions made on this issue by counsel for Saskatchewan.

1. The class of constitutional amendments contemplated by the question

Constitutional amendments fall into three categories: (1) amendments which may be made by a provincial legislature acting alone under s. 92(1) of the *B.N.A. Act; (2)* amendments which may be made by the Parliament of Canada acting alone under s. 91(1) of the *B.N.A. Act; (3)* all other amendments.

The first two categories are irrelevant for the purposes of these References. While the wording of the second and third questions of the Manitoba and Newfoundland References may be broad enough to embrace all amendments in the third category, it is not necessary for us to consider those amendments which affect federal-provincial relationships only indirectly. In a sense, most amendments of the third category are susceptible of affecting federal-provincial relationships to some extent. But we should restrict ourselves to the consideration of amendments which

"... directly affect federal-provincial relationships in the sense of changing federal and provincial legislative powers…"

(Senate Reference, supra, at p. 65.)

The reason for this is that the second and third questions of the Manitoba and Newfoundland References must be read in the light of the first question. They must be meant to contemplate the same specific class of constitutional amendments as the ones which are sought in the "Proposed Resolution for a Joint Address to Her Majesty the Queen respecting the Constitution of Canada". More particularly, they must be meant to address the same type of amendments as the *Charter of Rights,* which abridges federal and provincial legislative powers, and the amending formula, which would provide for the amendment of the Constitution including the distribution of legislative powers.

These proposed amendments present one essential characteristic: they directly affect federal-provincial relationships in changing legislative powers and in providing for a formula to effect such change.

Therefore, in essence although not in terms, the issue raised by the second question in the Manitoba and Newfoundland References is whether there is a constitutional convention for agreement of the provinces to amendments which change legislative powers and provide for a method of effecting such change. The same issue is raised by Question B of the Quebec Reference above quoted in part.

2. Requirements for establishing a convention

The requirements for establishing a convention bear some resemblance with those which apply to customary law. Precedents and usage are necessary but do not suffice. They must be normative. We adopt the following passage of Sir W. Ivor Jennings, *The Law and the Constitution* (5th ed., 1959), at p. 136:

> "We have to ask ourselves three questions: first, what are the precedents; secondly, did the actors in the precedents believe that they were bound by a rule; and thirdly, is there a reason for the rule? A single precedent with a good reason may be enough to establish the rule. A whole string of precedents without such a reason will be of no avail, unless it is perfectly certain that the persons concerned regarded them as bound by it."

[The majority of the Court went on to apply this test to the proposed constitutional convention.]

…

IV—Conclusion

We have reached the conclusion that the agreement of the provinces of Canada, no views being expressed as to its quantification, is constitutionally required for the passing of the "Proposed Resolution for a Joint Address to Her Majesty the Queen respecting the Constitution of Canada" and that the passing of this Resolution without such agreement would be unconstitutional in the conventional sense.

3.6.2 Notes/ Questions:

- On September 28, 1981, the Supreme Court of Canada released its decision in the *Patriation Reference* (on live television, for the first time). The Court ruled that the federal government had the right, by letter of the law, to proceed with the unilateral patriation of the constitution.
- However, the Court also ruled that a unilateral patriation was not in accordance with constitutional convention. Although the courts enforce laws, not constitutional conventions, the court's decision stated that agreement by a "substantial" number of premiers would be required to abide by the convention. This number was not defined.
- Prime Minister Trudeau, in his memoirs, paraphrased the court's decision in the *Patriation Reference* as saying that "patriation was legal, but not nice."

- What are some of the advantages and disadvantages of having significant aspects of a governmental system operate in accordance with constitutional conventions that may not be enforced by the courts?

4 How is the Constitution Interpreted?

While the courts have deployed a variety of methods when interpreting the Canadian constitution (e.g. textual, historical, structural, or contextual analyses), two dominant approaches stand out: (a) the "living tree" doctrine (which can be contrasted with an "originalist" or "frozen concepts" approach); and (b) the "purposive" approach to constitutional interpretation.

4.1 The Living Tree Doctrine

The crux of the living tree doctrine is that since society changes over time, the interpretation given to the broad terms set out in a constitution, which are capable of a wide variety of meanings, must change as well.

Though it is now a foundational doctrine that is frequently invoked by Canadian courts when interpreting the constitution,[15] the living tree doctrine was first articulated by Lord Sankey of the Judicial Committee of the Privy Council in *Edwards v. Canada (Attorney General)*, [1930] AC 124, 1929 CanLII 438 (UK JCPC). As is noted above, this famous decision has become known as the "Persons Case" because it concerned the question of whether women were "persons" within the meaning of s. 24 of the *British North America Act* such that they were eligible for appointment to the Senate.

Notably, the Privy Council in the *Persons Case* overturned the decision of the Supreme Court of Canada, whose interpretation typified the "frozen concepts" or originalist approach to constitutional interpretation. What follows are excerpts from the Supreme Court of Canada's decision and then that of the Privy Council.

4.1.1 *Reference re meaning of the word "Persons" in s.24 of British North America Act,* 1928 CanLII 55 (SCC), [1928] SCR 276

> Anglin C.J.C.—By Order of the 19th of October, 1927, made on a petition of five ladies, His Excellency the Governor in Council was pleased to refer to this court "for hearing and consideration" the question:
>
> "Does the word 'Persons' in section 24 of the *British North America Act,* 1867, include female persons?"
>
> …
>
> Section 24 is one of a group, or fasciculus of sections in the *British North America Act,* 1867, numbered 21 to 36, which provides for the constitution of the Senate of Canada. This group of sections (omitting three which are irrelevant to the question before us) reads as follows:
>
> THE SENATE
>
> 21. The Senate shall, subject to the Provisions of this Act, consist of Seventy-two Members, who shall be styled Senators.
>
> * * * *
>
> 23. The Qualification of a Senator shall be as follows:
>
> (1) He shall be of the full age of Thirty Years;
>
> (2) He shall be either a Natural-born Subject of the Queen, or a Subject of the Queen naturalized by an Act of the Parliament of Great Britain, or of the Parliament of the United Kingdom of Great Britain and Ireland, or of the Legislature of One of the Provinces of Upper Canada, Lower Canada, Canada, Nova Scotia, or New Brunswick, before the Union, or of the Parliament of Canada after the Union;
>
> (3) He shall be legally or equitably seised as of Freehold for his own Use and Benefit of Lands or Tenements held in free and common Socage, or seised or possessed for his own Use and Benefit of Lands or Tenements held in Francalleu or in Roture, within the Province for which he is appointed, of the value of Four thousand Dollars, over and above all Rents, Dues, Debts, Charges, Mortgages, and Incumbrances due or payable out of or charged on or affecting the same;
>
> (4) His Real and Personal Property shall be together worth Four Thousand Dollars over and above his Debts and Liabilities;
>
> (5) He shall be resident in the Province for which he is appointed;
>
> (6) In the case of Quebec he shall have his Real Property Qualification in the Electoral Division for which he is appointed, or shall be resident in that Division.
>
> 24. The Governor General shall from Time to Time, in the Queen's Name, by Instrument under the Great Seal of Canada, summon qualified Persons to the Senate; and, subject to the Provisions of this Act, every Person so summoned shall become and be a Member of the Senate and a Senator.
>
> 25. Such Persons shall be first summoned to the Senate as the Queen by Warrant under Her Majesty's Royal Sign Manual thinks fit to approve, and their Names shall be inserted in the Queen's Proclamation of Union.
>
> 26. If at any Time on the Recommendation of the Governor General the Queen thinks fit to direct that Three or Six Members be added to the Senate, the Governor General may by Summons to Three or Six qualified Persons (as the Case may be), representing equally the Three Divisions of Canada, add to the Senate accordingly.
>
> 27. In case of such Addition being at any Time made the Governor General shall not summon any Person to the Senate, except on a further like Direction by the Queen on the like Recommendation, until each of the Three Divisions of Canada is represented by Twenty-four Senators and no more.
>
> 28. The Number of Senators shall not at any Time exceed Seventy-eight.
>
> 29. A Senator shall, subject to the Provisions of this Act, hold his Place in the Senate for Life.
>
> 30. A Senator may by Writing under his Hand addressed to the Governor General resign his Place in the Senate, and thereupon the same shall be vacant.
>
> 31. The Place of a Senator shall become vacant in any of the following Cases:—
>
> (1) If for Two consecutive Sessions of the Parliament he fails to give his Attendance in the Senate.
>
> (2) If he takes an Oath or makes a Declaration or Acknowledgment of Allegiance, Obedience, or Adherence to a Foreign Power, or does an Act whereby he becomes a Subject or Citizen, or entitled to the Rights or Privileges of a Subject or Citizen, of a Foreign Power;
>
> (3) If he is adjudged Bankrupt or Insolvent, or applies for the Benefit of any Law relating to Insolvent Debtors, or becomes a public Defaulter;
>
> (4) If he is attainted of Treason or convicted of Felony or any Infamous Crime;

(5) If he ceases to be qualified in respect of Property or of Residence; provided that a Senator shall not be deemed to have ceased to be qualified in respect of Residence by reason only of his residing at the Seat of the Government of Canada while holding an Office under that Government requiring his Presence there.

32. When a Vacancy happens in the Senate by Resignation, Death, or otherwise, the Governor General shall by summons to a fit and qualified Person fill the Vacancy.

33. If any question arises respecting the qualification of a Senator or a Vacancy in the Senate the same shall be heard and determined by the Senate.

* * *

35. Until the Parliament of Canada otherwise provides, the Presence of at least Fifteen Senators, including the Speaker, shall be necessary to constitute a Meeting of the Senate for the Exercise of its Powers.

* * *

The *British North America Act,* 1867, does not contain provisions in regard to the Senate corresponding to its sections 41 and 52, which, respectively, empower the Parliament of Canada from time to time to alter the qualifications or disqualifications of persons to be elected to the House of Commons and to determine the number of members of which that House shall consist. Except in regard to the number of Senators required to constitute a quorum (s. 35), the provisions affecting the constitution of the Senate are subject to alteration only by the Imperial Parliament.

Section 33 which empowers the Senate to hear and determine any question that may arise respecting the qualification of a Senator, applies only after the person whose qualification is challenged has been appointed or summoned to the Senate. That section is probably no more than declaratory of a right inherent in every parliamentary body. (*Vide* clause 1 of the preamble to the B.N.A. Act and the quotation of Lord Lyndhurst's language made from Mac-Queen's Debates on The Life Peerage Question, at p. 300, by Viscount Haldane in Viscountess Rhondda's Claim[1].

It should be observed that, while the question now submitted by His Excellency to the court deals with the word "Persons," section 24 of the B.N.A. Act speaks only of "qualified Persons"; and the other sections empowering the Governor General to make appointments to the Senate (26 and 32) speak, respectively, of "qualified Persons" and of "fit and qualified Persons." The question which we have to consider, therefore, is whether "female persons" are qualified to be summoned to the Senate by the Governor General; or, in other words—Are women eligible for appointment to the Senate of Canada? That question it is the duty of the court to "answer" and to "certify to the Governor in Council for his information * * * its opinion * * * with the reasons for * * * such answer." *Supreme Court Act,* R.S.C. [1927] c. 35, s. 55, subs. 2.

In considering this matter we are, of course, in no wise concerned with the desirability or the undesirability of the presence of women in the Senate, nor with any political aspect of the question submitted. Our whole duty is to construe, to the best of our ability, the relevant provisions of the B.N.A. Act, 1867, and upon that construction to base our answer.

Passed in the year 1867, the various provisions of the B.N.A. Act (as is the case with other statutes, *Bank of Toronto* v. *Lambe*)[2] bear to-day the same construction which the courts would, if then required to pass upon them, have given to them when they were first enacted. If the phrase "qualified persons" in s. 24 includes women to-day, it has so included them since 1867.

…

"In deciding the question before us", said Turner L. J., in *Hawkins v. Gathercole*,

> we have to construe not merely the words of the Act of Parliament but the intent of the Legislature as collected, from the cause and necessity of the Act being made, from a comparison of its several parts and from foreign (meaning extraneous) circumstances so far as they can be justly considered to throw light upon the subject.

Two well-known rules in the construction of statutes are that, where a statute is susceptible of more than one meaning, in the absence of express language an intention to abrogate the ordinary rules of law is not to be imputed to Parliament (*Wear Commissioners* v. *Adamson*[5]); and, as they are framed for the guidance of the people, their language is to be considered in its ordinary and popular sense, per Byles J., in *Chorlton* v. *Lings*[6].

Two outstanding facts or circumstances of importance bearing upon the present reference appear to be

(*a*) that the office of Senator was a *new* office first created by the B.N.A. Act. It is an office, therefore, which no one apart from the enactments of the statute has an inherent or common law right of holding, and the right of any one to hold the office must be found within the four corners of of the statute which creates the office, and enacts the conditions upon which it is to be held, and the persons who are entitled to hold it; (*Beresford-Hope* v. *Sandhurst*[7], per Lord Coleridge, C.J.);

(*b*) that by the common law of England (as also, speaking generally, by the civil and the canon law: *foeminae ab omnibus officiis civilibus vel publicis remotae sunt*) women were under a legal incapacity to hold public office, referable to the fact (as Willes J., said in *Chorlton* v. *Lings*[8], that in this country in modern times, chiefly out of respect to women, and a sense of decorum, and not from their want of intellect, or their being for any other such reason unfit to take part in the government of the country, they have been excused from taking any share in this department of public affairs.

…

Prior to 1867 the common law legal incapacity of women to sit in Parliament had been fully recognized in the three provinces—Canada (Upper and Lower), Nova Scotia and New Brunswick, which were then confederated as the Dominion of Canada.

Moreover, paraphrasing an observation of Lord Coleridge C.J., in *Beresford-Hope* v. *Sandhurst*, it is not also perhaps to be entirely left out of sight, that in the sixty years which have run since 1867, the questions of the rights and privileges of women have not been, as in former times they were, asleep. On the contrary, we know as a matter of fact that the rights of women, and the privileges of women, have been much discussed, and able and acute minds have been much exercised as to what privileges ought to be conceded to women. That has been going on, and surely it is a significant fact, that never from 1867 to the present time has any woman ever sat in the Senate of Canada, nor has any suggestion of women's eligibility for appointment to that House until quite recently been publicly made.

Has the Imperial Parliament, in sections 23, 24, 25, 26 and 32 of the B.N.A. Act, read in the light of other provisions of the statute and of relevant circumstances proper to be considered, given to women the capacity to exercise the public functions of a Senator? Has it made clear its intent to effect, so far as the personnel of the Senate of Canada is concerned, the striking constitutional departure from the common law for which the petitioners contend, which would have rendered women eligible for appointment to the Senate at a time when they were neither qualified to sit in the House of Commons nor to vote for candidates for membership in that House? Has it not rather by clear implication, if not expressly, excluded them from membership in the Senate? Such an extraordinary privilege is not conferred furtively, nor is the purpose to grant

it to be gathered from remote conjectures deduced from a skilful piecing together of expressions in a statute which are more or less precisely accurate. (*Nairn* v. *University of St. Andrews*[19]). When Parliament contemplates such a decided innovation it is never at a loss for language to make its intention unmistakable. "A judgment", said Lord Robertson in the case last mentioned, at pp. 165-6

> is wholesome and of good example which puts forward subject-matter and fundamental constitutional law as guides of construction never to be neglected in favour of verbal possibilities.

There can be no doubt that the word "persons" when standing alone *prima facie* includes women. (Per Lore-burn L.C., *Nairn* v. *University of St. Andrews*[18]). It connotes human beings—the criminal and the insane equally with the good and the wise citizen, the minor as well as the adult. Hence the propriety of the restriction placed upon it by the immediately preceding word "qualified" in ss. 24 and 26 and the words "fit and qualified" in s. 32, which exclude the criminal and the lunatic or imbecile as well as the minor, who is explicitly disqualified by s. 23 (1). Does this requirement of qualification also exclude women?

Ex facie, and apart from their designation as "Senators" (s. 21), the terms in which the qualifications of members of the Senate are specified in s. 23 (and it is to those terms that reference is made by the word "qualified" in s. 24) import that men only are eligible for appointment. In every clause of s. 23 the Senator is referred to by the masculine pronoun—"he" and "his"; and the like observation applies to ss. 29 and 31. *Frost* v. *The King*[20]. Moreover, clause 2 of section 23 includes only "natural-born" subjects and those "naturalized" under statutory authority and not those who become subjects by marriage—a provision which one would have looked for had it been intended to include women as eligible.

…

We are, for these reasons, of the opinion that women are not eligible for appointment by the Governor General to the Senate of Canada under Section 24 of the British North America Act, 1867, because they are not "qualified persons" within the meaning of that section. The question submitted, understood as above indicated, will, accordingly, be answered in the negative.

4.1.2 *Edwards v. Canada (Attorney General)*, 1929 CanLII 438 (UK JCPC)

The judgment of their Lordships was delivered by *Lord Sankey, L.C.*:

By sec. 24 of the *British North America Act, 1867*, it is provided that:

> The governor general shall from time to time, in the Queen's name, by instrument under the Great Seal of Canada, summon qualified persons to the Senate; and, subject to the provisions of this Act, every person so summoned shall become and be a member of the Senate and a senator.

The question at issue in this appeal is whether the words "qualified persons" in that section include a woman, and consequently whether women are eligible to be summoned to and become members of the Senate of Canada.

Of the appellants, Henrietta Muir Edwards is the vice-president for the province of Alberta of the National Council of Women for Canada; Nellie L. McClung and Louise C. McKinney were for several years members of the Legislative Assembly of the said province; Emily F. Murphy is a police magistrate in and for the said province; and Irene Parlby is a member of the Legislative Assembly of the said province and a member of the Executive Council thereof.

On August 29, 1927, the appellants petitioned the Governor-General in Council to refer to the Supreme Court certain questions touching the powers of the Governor-General to summon female persons to the Senate, and upon October 19, 1927, the Governor-General in Council referred to the Supreme Court the aforesaid question. The case was heard before Chief Justice Anglin, Mr. Justice Duff, Mr. Justice Mignault, Mr. Justice Lamont and Mr. Justice Smith, and upon April 24, 1928, the Court answered the question in the negative (1928 CanLII 55 (SCC), [1928] SCR 276); the question being understood to be "Are women eligible for appointment to the Senate of Canada?"

The Chief Justice, whose judgment was concurred in by Mr. Justice Lamont and Mr. Justice Smith, and substantially by Mr. Justice Mignault, came to this conclusion upon broad lines mainly because of the common-law disability of women to hold public office and from a consideration of various cases which had been decided under different statutes as to their right to vote for a member of Parliament.

Mr. Justice Duff, on the other hand, did not agree with this view. He came to the conclusion that women are not eligible for appointment to the Senate upon the narrower ground that upon a close examination of the *British North America Act* of 1867 the word "persons" in sec. 24 is restricted to members of the male sex. The result therefore of the decision was that the Supreme Court was unanimously of opinion that the word "persons" did not include female persons, and that women are not eligible to be summoned to the Senate.

Their Lordships are of opinion that the word "persons" in sec. 24 *does* include women, and that women are eligible to be summoned to and become members of the Senate of Canada.

It coming to a determination as to the meaning of a particular word in a particular Act of Parliament it is permissible to consider two points, viz.: (i) The external evidence derived from extraneous circumstances such as previous legislation and decided cases; (ii) The internal evidence derived from the Act itself.

As the learned counsel on both sides have made great researches and invited their Lordships to consider the legal position of women from the earliest times, in justice to their argument they propose to do so and accordingly turn to the first of the above points, viz.: (i) The external evidence derived from extraneous circumstances.

The exclusion of women from all public offices is a relic of days more barbarous than ours, but it must be remembered that the necessity of the times often forced on man customs which in later years were not necessary. Such exclusion is probably due to the fact that the deliberative assemblies of the early tribes were attended by men under arms, and women did not bear arms. *"Nihil autem neque publicae neque privatae rei, nisi armati, agunt:" Tacitus Germania*, ch. 13. Yet the tribes did not despise the advice of women: *"Inesse quin etiam sanctum et providum putant, nec aut consilia earum aspernantur aut responsa neglegunt:" Germania*, ch. 8.

The likelihood of attack rendered such a proceeding unavoidable, and after all what is necessary at any period is a question for the times upon which opinion grounded on experience may move one way or another in different circumstances. This exclusion of women found its way into the opinions of the Roman jurists, *Ulpian* (A.D. 211) laying it down: *"Feminae ab omnibus officiis civilibus vel publicis remotae sunt:"* Dig. 1.16.195.

The barbarian tribes who settled in the Roman Empire and were exposed to constant dangers naturally preserved and continued the tradition.

In England no woman under the degree of a Queen or a Regent, married or unmarried, could take part in the government of the state. A woman was under a legal incapacity to be elected to serve in Parliament and even if a peeress in her own right she was not, nor is, entitled as an incident of peerage to receive a writ of summons to the House of Lords.

Various authorities are cited in the recent case of *Viscountess Rhondda's Claim*, [1922] 2 A.C. 339, 38 T.L.R. 759, where it was held that a woman was not entitled to sit in the House of Lords. Women were, moreover, subject to a legal incapacity to vote at the election of members of

parliament: *Coke*, 4 Inst., p. 5; *Chorlton v. Lings* (1868) L.R. 4 C.P. 374, 38 L.J.C.P. 25; or of town councillor: *Reg. v. Harrold* (1872) L.R. 7 Q.B. 361, 41 L.J.Q.B. 173; or to be elected members of the county council: *Beresford-Hope v. Sandhurst (Lady)* (1889) 23 Q.B.D. 79, 58 L.J.Q.B. 316.

They were excluded by the common law from taking part in the administration of justice either as Judges or as jurors, with the single exception of inquiries by a jury of matrons upon a suggestion of pregnancy: *Coke*, 2 Inst. 119, 3 B1. Comm. 362.

Other instances are referred to in the learned judgment of Mr. Justice Willes in *Chorlton v. Lings, supra*.

No doubt in the course of centuries there may be found cases of exceptional women and exceptional instances, but as Lord Esher said in *De Souza v. Cobden*, [1891] 1 Q.B. 687, at 691, 60 L.J.Q.B. 533:

By the Common Law of England women are not in general deemed capable of exercising public functions, although there are certain exceptional cases where a well-recognized custom to the contrary has become established.

…

No doubt in any code where women were expressly excluded from public office the problem would present no difficulty, but where instead of such exclusion those entitled to be summoned to or placed in public office are described under the word "person" different considerations arise.

The word is ambiguous and in its original meaning would undoubtedly embrace members of either sex. On the other hand, supposing in an Act of Parliament several centuries ago it had been enacted that any person should be entitled to be elected to a particular office it would have been understood that the word only referred to males, but the cause of this was not because the word "person" could not include females but because at common law a woman was incapable of serving a public office. The fact that no woman had served or has claimed to serve such an office is not of great weight when it is remembered that custom would have prevented the claim being made, or the point being contested.

Customs are apt to develop into traditions which are stronger than law and remain unchallenged long after the reason for them has disappeared.

The appeal to history therefore in this particular matter is not conclusive.

As far back as *Stradling v. Morgan* (1560) 1 Plowd. 199, at 209, 75 E.R. 305, it was laid down that extraneous circumstances may be admitted as an aid to the interpretation of a statute and in *Herron v. Rathmines and Rathgar Improvement Commrs.*, [1892] A.C. 498, 67 L.T. 658, Lord Halsbury said: The subject-matter with which the legislature was dealing, and the facts existing at the time with respect to which the legislature was legislating, are legitimate topics to consider in ascertaining what was the object and purpose of the legislature in passing the Act, but the argument must not be pushed too far and their Lordships are disposed to agree with Farwell, L.J., in *Rex v. West Riding of Yorkshire County Council*, [1906] 2 K.B. 676, "although it may, perhaps, be legitimate to call history in aid to show what facts existed to bring about a statute the inferences to be drawn therefrom are exceedingly slight:" see *Craies Statute Law*, 3rd ed., p. 118.

Over and above that, their Lordships do not think it right to apply rigidly to Canada of to-day the decisions and the reasonings therefor which commended themselves, probably rightly, to those who had to apply the law in different circumstances, in different centuries to countries in different stages of development. Referring therefore to the judgment of the Chief Justice and those who agreed with him, their Lordships think that the appeal to Roman Law and to early English decisions is not of itself a secure foundation on which to build the interpretation of the *British North America Act* of 1867.

Their Lordships fully appreciate the learned arguments set out in his judgment, but prefer, on this part of the case, to adopt the reasonings of Mr. Justice Duff who did not agree with the other members of the Court, for reasons which appear to their Lordships to be strong and cogent. As he says: Nor am I convinced that the reasoning based upon the "extraneous circumstances" we are asked to consider -- the disabilities of women under the common law, and the law and practice of Parliament in respect of appointment to public place or office -- establishes a rule of interpretation for the *British North America Act*, by which the construction of powers, legislative and executive, bestowed in general terms is controlled by a presumptive exclusion of women from participating in the working of the institutions set up by the Act.

Their Lordships now turn to the second point, namely: (ii) The internal evidence derived from the Act itself.

Before discussing the various sections they think it necessary to refer to the circumstances which led up to the passing of the Act.

The communities included within the Britannic system embrace countries and peoples in every stage of social, political and economic development and undergoing a continuous process of evolution.

…

The *British North America Act* planted in Canada a living tree capable of growth and expansion within its natural limits. The object of the Act was to grant a Constitution to Canada. Like all written constitutions it has been subject to development through usage and convention. [*Canadian Constitutional Studies, Sir Robert Borden* (1922) p. 55.]

Their Lordships do not conceive it to be the duty of this Board -- it is certainly not their desire -- to cut down the provisions of the Act by a narrow and technical construction, but rather to give it a large and liberal interpretation so that the Dominion to a great extent, but within certain fixed limits, may be mistress in her own house, as the provinces to a great extent, but within certain fixed limits, are mistresses in theirs. "The Privy Council, indeed, has laid down that Courts of law must treat the provisions of the *British North America Act* by the same methods of construction and exposition which they apply to other statutes. But there are statutes and statutes; and the strict construction deemed proper in the case, for example, of a penal or taxing statute or one passed to regulate the affairs of an English parish, would be often subversive of Parliament's real intent if applied to an Act passed to ensure the peace, order and good government of a British Colony." See *Clement's Canadian Constitution*, ed. 3, p. 347.

The learned author of that treatise quotes from the argument of Mr. Mowat and Mr. Edward Blake before the Privy Council in *St. Catherine's Milling and Lbr. Co. v. Reg.* (1888) 1888 CanLII 209 (UK JCPC), 14 App. Cas. 46, at 50, 58 L.J.P.C. 54: The Act should be on all occasions interpreted in a large, liberal and comprehensive spirit, considering the magnitude of the subjects with which it purports to deal in very few words.

With that their Lordships agree, but as was said by the Lord Chancellor in *Brophy v. Atty.-Gen. for Man.*, [1895] A.C. 202, at 216, 64 L.J.P.C. 70, the question is not what may be supposed to have been intended, but what has been said.

It must be remembered, too, that their Lordships are not here considering the question of the legislative competence either of the Dominion or its provinces which arise under secs. 91 and 92 of the Act providing for the distribution of legislative powers and assigning to the Dominion and its provinces their respective spheres of government.

Their Lordships are concerned with the interpretation of an Imperial Act, but an Imperial Act which creates a constitution for a new country. Nor are their Lordships deciding any question as to the rights of women but only a question as to their eligibility for a particular position. No one either male or female has a right to be summoned to the Senate. The real point at issue is whether the Governor-General has a right to summon women to the Senate.

The Act consists of a number of separate heads.

The preamble states that the provinces of Canada, Nova Scotia and New Brunswick have expressed their desire to be federally united into one Dominion under the Crown of the United Kingdom of Great Britain and Ireland with a constitution similar in principle to that of the United Kingdom.

Head No. 2 refers to the Union; Head No. 3, secs. 9 to 16, to the executive power.

It is in sec. 11 that the word "persons" which is used repeatedly in the Act, occurs for the first time.

It provides that the persons who are members of the Privy Council shall be from time to time chosen and summoned by the Governor-General.

The word "person" as above mentioned may include members of both sexes, and to those who ask why the word should include females, the obvious answer is why should it not.

In these circumstances the burden is upon those who deny that the word includes women to make out their case.

Head No. 4 (secs. 17-21) deals first with the legislative power. Sec. 17 provides there shall be one Parliament for Canada consisting of the Queen, an Upper House styled the Senate, and the House of Commons. Secs. 21-36 deal with the creation, constitution and powers of the Senate. They are the all-important sections to consider in the present case and their Lordships return to them after briefly setting out the remaining sections of the Act.

[Lord Sankey then summarizes the rest of the *British North America Act*]

…

Such being the general analysis of the Act, their Lordships turn to the special sections dealing with the Senate.

It will be observed that sec. 21 provides that the Senate shall consist of 72 members who shall be styled senators. The word "member" is not in ordinary English confined to male persons. Sec. 24 provides that the Governor-General shall summon qualified persons to the Senate.

As already pointed out, "persons" is not confined to members of the male sex, but what effect does the adjective "qualified" before the word "persons" have?

In their Lordships' view it refers back to the previous section, which contains the qualifications of a senator. Subsecs. 2 and 3 appear to have given difficulties to the Supreme Court. Subsec. 2 provides that the qualification of a senator shall be that he shall be either a natural born subject of the Queen naturalized by an Act of Parliament of Great Britain or of one of the provincial Legislatures before the Union or of the Parliament of Canada after the Union. The Chief Justice in dealing with this says that it does not include those who become subjects by marriage, a provision which one would have looked for had it been intended to include women as being eligible.

The attention of the Chief Justice, however, was not called to the *Aliens Act*, 1844 (7 and 8 Vict., ch. 66), sec. 16 of which provides that any woman married or who shall be married to a natural born subject or person naturalized shall be deemed and taken to be herself naturalized and have all the rights and privileges of a natural born subject. The Chief Justice assumed that by common law a wife took her husband's nationality on marriage, but by virtue of that section any woman who marries a natural born or naturalized British subject was deemed and taken to be herself naturalized. Accordingly, sec. 23, subsec. 2, uses language apt to cover the case of those who become British subjects by marriage.

Their Lordships agree with Mr. Justice Duff when he says "I attach no importance ... to the use of the masculine personal pronoun in section 23, and, indeed, very little importance to the provision in section 23 with regard to nationality" and refer to sec. 1 of the *Interpretation Act, 1889*, 52-53 Vict., ch. 63, which in sec. 1 (2) provides that words importing the masculine gender shall include females.

The reasoning of the Chief Justice would compel their Lordships to hold that the word "persons" as used in sec. 11 relating to the constitution of the Privy Council for Canada was limited to "male persons" with the resultant anomaly that a woman might be elected a member of the House of Commons but could not even then be summoned by the Governor-General as a member of the Privy Council.

Subsec. 3 of sec. 23 provided that the qualification of a senator shall be that he is legally and equitably seized of a freehold for his own use and benefit of lands and tenements of a certain value. This section gave some trouble to Mr. Justice Duff who says that subsection points to the exclusion of married women and would have been expressed in a different way if the presence of married women had been contemplated.

Their Lordships think that this difficulty is removed by a consideration of the rights of a woman under the *Married Women's Property Acts*. A married woman can possess the property qualification required by this subsection. Apart from statute a married woman could be equitably seized of free hold property for her own use only and by an Act respecting certain separate rights of property of married women, Consolidated Statutes of Upper Canada, ch. 73, sec. 1, it was provided: Every woman who has married since the 4th May, 1859, or who marries after this Act takes effect, without any marriage contract or settlement, shall and may, notwithstanding her coverture, have, hold and enjoy all her real and personal property ... in as full and ample a manner as if she continued sole and unmarried...

Their Lordships do not think it possible to interpret the word "persons" by speculating whether the framer of the *British North America Act* purposely followed the system of Legislative Councils enacted in the Acts of 1791 and 1840 rather than that which prevailed in the maritime province for the model on which the Senate was to be formed, neither do they think that either of these subsections is sufficient to rebut the presumption that the word "persons" includes women. Looking at the sections which deal with the Senate as a whole (secs. 21-36) their Lordships are unable to say that there is anything in those sections themselves upon which the Court could come to a definite conclusion that women are to be excluded from the Senate.

So far with regard to the sections dealing especially with the Senate -- Are there any other sections in the Act which shed light upon the meaning of the word "persons"?

Their Lordships think that there are. For example, sec. 41 refers to the qualifications and disqualifications of persons to be elected or to sit or vote as members of the House of Assembly or Legislative Assembly and by a proviso it is said that until the Parliament of Canada otherwise provides at any election for a member of the House of Commons for the district of Algoma in addition to persons qualified by the law of the province of Canada to vote every male British subject aged 21 years or upwards being a householder shall have a vote. This section shows a distinction between "persons" and "males." If persons excluded females it would only have been necessary to say every person who is a British subject aged 21 years or upwards shall have a vote.

Again in sec. 84 referring to Ontario and Quebec a similar proviso is found stating that every male British subject in contra-distinction to "person" shall have a vote.

Again in sec. 133 it is provided that either the English or the French language may be used by any person or in any pleadings in or issuing from any Court of Canada established under this Act and in or from all of any of the Courts of Quebec. The word "person" there must include females as it can hardly have been supposed that a man might use either the English or the French language but a woman might not.

> If Parliament had intended to limit the word "persons" in sec. 24 to male persons it would surely have manifested such intention by an express limitation as it has done in secs. 41 and 84. The fact that certain qualifications are set out in sec. 23 is not an argument in favour of further limiting the class, but is an argument to the contrary because it must be presumed that Parliament has set out in sec. 23 all the qualifications deemed necessary for a senator and it does not state that one of the qualifications is that he must be a member of the male sex.
>
> Finally with regard to sec. 33, which provides that if any question arises respecting the qualifications of a senator or a vacancy in the Senate the same shall be heard and determined by the Senate that section must be supplemented by sec. 1 of the *Parliament of Canada Act, 1875*, and by sec. 4 of ch. 10 of R.S.C., and their Lordships agree with Mr. Justice Duff when he says: As yet, no concrete case has arisen to which the jurisdiction of the Senate could attach. We are asked for advice on the general question, and that, I think, we are bound to give. It has, of course, only the force of an advisory opinion.
>
> The existence of this jurisdiction of the Senate does not, I think, affect the question of substance. We must assume that the Senate would decide in accordance with the law.
>
> The history of these sections and their interpretation in Canada is not without interest and significance.
>
> From Confederation to date both the Dominion Parliament and the provincial Legislatures have interpreted the word "persons" in secs. 41 and 84 of the *British North America Act* as including female persons and have legislated either for the inclusion or exclusion of women from the class of persons entitled to vote and to sit in the Parliament and Legislature respectively, and this interpretation has never been questioned. From Confederation up to 1916 women were excluded from the class of persons entitled to vote in both Federal and provincial elections.
>
> From 1916 to 1922 various Dominion and provincial Acts were passed to admit women to the franchise and to the right to sit as members in both Dominion and provincial legislative bodies.
>
> At the present time women are entitled to vote and to be candidates: (1) At all Dominion elections on the same basis as men; (2) At all provincial elections save in the province of Quebec.
>
> From the date of the enactment of the *Interpretation Acts* in the province of Canada, Nova Scotia and New Brunswick prior to Confederation and in the Dominion of Canada since Confederation and until the franchise was extended, women have been excluded by express enactment from the right to vote.
>
> Neither is it without interest to record that when upon May 20, 1867, the *Representation of the People Bill* came before a committee of the House of Commons, John Stuart Mill moved an amendment to secure women's suffrage and the amendment proposed was to leave out the word "man" in order to insert the word "person" instead thereof. See *Hansard*, 3rd series, vol. 187, column 817.
>
> A heavy burden lies on an appellant who seeks to set aside a unanimous judgment of the Supreme Court, and this Board will only set aside such a decision after convincing argument and anxious consideration, but having regard
>
> 1. To the object of the Act, viz., to provide a constitution for Canada, a responsible and developing state;
> 2. that the word "person" is ambiguous and may include members of either sex;
> 3. that there are sections in the Act above referred to which show that in some cases the word "person" must include females;
> 4. that in some sections the words "male persons" is expressly used when it is desired to confine the matter in issue to males, and
> 5. to the provisions of the *Interpretation Act*;
>
> their Lordships have come to the conclusion that the word "persons" in sec. 24 includes members both of the male and female sex and that, therefore, the question propounded by the Governor-General must be answered in the affirmative and that women are eligible to be summoned to and become members of the Senate of Canada, and they will humbly advise His Majesty accordingly.

4.1.3 Questions

1. How does the living tree doctrine reconcile with democratic principles when judges (who are not democratically elected and have security of tenure until the age of 75) overturn the decisions of democratically elected bodies?
2. How can judges determine what values are sufficiently "settled" to justify constitutional updating through the use of the living tree doctrine? ? Are judges well-placed to make read society's evolving values in this way?

4.2 The "Purposive" Approach to Constitutional Interpretation

Closely related to the "living tree" doctrine, the Supreme Court of Canada has, particularly since the enactment of the *Canadian Charter of Rights and Freedoms* in 1982, invoked a "purposive" approach to constitutional interpretation. That is, in order to interpret the constitution with the "large, liberal and comprehensive spirit" suggested by Lord Sankey in the *Persons Case*, the courts have considered both the purpose of the constitution in general, and the purposes or interests meant to be protected by particular provisions in the constitution.

This approach is taken up in greater detail in Chapter 14. It was outlined by Justice Dickson (as he then was) in *Hunter et al. v. Southam Inc.*, 1984 CanLII 33 (SCC), [1984] 2 SCR 145, which was the first case in which the Supreme Court of Canada interpreted the newly entrenched *Charter*. In particular, the Court was tasked with interpreting the meaning of s. 8 of the *Charter* which provides that "[e]veryone has the right to be secure against unreasonable search or seizure."

4.2.1 *Hunter et al. v. Southam Inc.*, 1984 CanLII 33 (SCC), [1984] 2 SCR 145

> The judgment of the Court was delivered by
>
> DICKSON J.—The Constitution of Canada, which includes the *Canadian Charter of Rights and Freedoms*, is the supreme law of Canada. Any law inconsistent with the provisions of the Constitution is, to the extent of the inconsistency, of no force or effect. Section 52(1) of the *Constitution Act, 1982* so mandates. The constitutional question posed in this appeal is whether s. 10(3), and by implication s. 10(1), of the *Combines Investigation Act*, R.S.C. 1970, c. C-23, (the "Act") are inconsistent with s. 8 of the *Charter* by reason of authorizing unreasonable searches and seizures and are therefore of no force and effect.
>
> …
>
> As is clear from the arguments of the parties as well as from the judgment of Prowse J.A., the crux of this case is the meaning to be given to the term "unreasonable" in the s. 8 guarantee of freedom from unreasonable search or seizure. The guarantee is vague and open. The American courts have had the advantage of a number of specific prerequisites articulated in the Fourth Amendment to the United States Constitution, as well as a history of colonial opposition to certain Crown investigatory practices from which to draw out the nature of the interests protected by that Amendment and the kinds of conduct it proscribes. There is none of this in s. 8. There is no specificity in the section beyond the bare guarantee of freedom from "unreasonable" search and seizure; nor is there any particular historical, political or philosophic context capable of providing an obvious gloss on the meaning of the guarantee.

> It is clear that the meaning of "unreasonable" cannot be determined by recourse to a dictionary, nor for that matter, by reference to the rules of statutory construction. The task of expounding a constitution is crucially different from that of construing a statute. A statute defines present rights and obligations. It is easily enacted and as easily repealed. A constitution, by contrast, is drafted with an eye to the future. Its function is to provide a continuing framework for the legitimate exercise of governmental power and, when joined by a *Bill* or a *Charter of Rights*, for the unremitting protection of individual rights and liberties. Once enacted, its provisions cannot easily be repealed or amended. It must, therefore, be capable of growth and development over time to meet new social, political and historical realities often unimagined by its framers. The judiciary is the guardian of the constitution and must, in interpreting its provisions, bear these considerations in mind. Professor Paul Freund expressed this idea aptly when he admonished the American courts "not to read the provisions of the Constitution like a last will and testament lest it become one".
>
> The need for a broad perspective in approaching constitutional documents is a familiar theme in Canadian constitutional jurisprudence. It is contained in Viscount Sankey's classic formulation in *Edwards v. Attorney-General for Canada,* 1929 CanLII 438 (UK JCPC), [1930] A.C. 124, at p. 136, cited and applied in countless Canadian cases:
>
> > The British North America Act planted in Canada a living tree capable of growth and expansion within its natural limits. The object of the Act was to grant a Constitution to Canada… Their Lordships do not conceive it to be the duty of this Board—it is certainly not their desire—to cut down the provisions of the Act by a narrow and technical construction, but rather to give it a large and liberal interpretation.
>
> More recently, in *Minister of Home Affairs v. Fisher,* [1980] A.C. 319, dealing with the Bermudian Constitution, Lord Wilberforce reiterated at p. 328 that a constitution is a document "sui generis, calling for principles of interpretation of its own, suitable to its character", and that as such, a constitution incorporating a *Bill of Rights* calls for:
>
> > …a generous interpretation avoiding what has been called "the austerity of tabulated legalism," suitable to give individuals the full measure of the fundamental rights and freedoms referred to.
>
> Such a broad, purposive analysis, which interprets specific provisions of a constitutional document in the light of its larger objects is also consonant with the classical principles of American constitutional construction enunciated by Chief Justice Marshall in *M'Culloch v. Maryland,* 17 U.S. (4 Wheat.) 316 (1819). It is, as well, the approach I intend to take in the present case.
>
> I begin with the obvious. The *Canadian Charter of Rights and Freedoms* is a purposive document. Its purpose is to guarantee and to protect, within the limits of reason, the enjoyment of the rights and freedoms it enshrines. It is intended to constrain governmental action inconsistent with those rights and freedoms; it is not in itself an authorization for governmental action. In the present case this means, as Prowse J.A. pointed out, that in guaranteeing the right to be secure from unreasonable searches and seizures, s. 8 acts as a limitation on whatever powers of search and seizure the federal or provincial governments already and otherwise possess. It does not in itself confer any powers, even of "reasonable" search and seizure, on these governments. This leads, in my view, to the further conclusion that an assessment of the constitutionality of a search and seizure, or of a statute authorizing a search or seizure, must focus on its "reasonable" or "unreasonable" impact on the subject of the search or the seizure, and not simply on its rationality in furthering some valid government objective.
>
> Since the proper approach to the interpretation of the *Charter of Rights and Freedoms* is a purposive one, before it is possible to assess the reasonableness or unreasonableness of the impact of a search or of a statute authorizing a search, it is first necessary to specify the purpose underlying s. 8: in other words, to delineate the nature of the interests it is meant to protect.
>
> Historically, the common law protections with regard to governmental searches and seizures were based on the right to enjoy property and were linked to the law of trespass. It was on this basis that in the great case of *Entick v. Carrington* (1765), 19 St. Tr. 1029, 1 Wils. K.B. 275, the Court refused to countenance a search purportedly authorized by the executive, to discover evidence that might link the plaintiff to certain seditious libels. …
>
> …
>
> In my view the interests protected by s. 8 are of a wider ambit than those enunciated in *Entick v. Carrington.* Section 8 is an entrenched constitutional provision. It is not therefore vulnerable to encroachment by legislative enactments in the same way as common law protections. There is, further, nothing in the language of the section to restrict it to the protection of property or to associate it with the law of trespass. It guarantees a broad and general right to be secure from unreasonable search and seizure.
>
> …

4.2.2 Questions

1. Like the "living tree" doctrine, the use of a purposive approach to constitutional interpretation has been criticized by some on the basis that it gives too much discretion to unelected judges, allowing them to read into the constitution values or rights that were never intended by its framers or expressed by the democratic will of legislatures. Do you agree?
2. If they accept such concerns as valid, what alternatives to a purposive mode of interpretation might courts employ?

Chapter 2: Parliament and Crown

By Mark Walters and Jean-Christophe Bédard-Rubin

1 Introduction

The modern state is generally acknowledged to be a juridical entity endowed with plenary authority, or *sovereignty*, that permits it to engage with other states on the international stage and to govern peoples within its boundaries. A central task for the constitutional law of any state is to establish an institutional structure for the exercise of state sovereignty. In most states, the key governmental institutions are identified by the tripartite division between Legislature, Executive, and Judiciary—a separation, that is, between *legislative* institutions that make laws that guide the conduct of people within the state, *executive* institutions that represent the state internationally and govern the state internally through administering or executing the laws, and *judicial* institutions that interpret and apply the laws in the course of adjudicating disputes that arise under the laws. In Canada, the separation of powers between legislative, executive, and judicial institutions is recognized as "part of the foundational architecture of our constitutional order", though the separation is not "watertight" and permits a degree of overlap and flexibility.[16]

In this chapter, we introduce the legislative and executive branches of government in Canada. The next chapter introduces the judicial branch. The title of this chapter—Parliament and Crown—signals the importance of the *Westminster common law/parliamentary system* of governance for understanding how legislative and executive power is constituted in Canada. The Westminster system in Canada manifests legislative and executive power through institutions of *Parliament* and *Crown* modelled on the British constitution as adjusted to fit Canadian constitutional values and aspirations including, especially, the commitment to federalism. The adjustments are significant. The Westminster system in Canada has been called "*our* Westminster system".[17]

Canada's foundational constitutional document, the *Constitution Act, 1867*, announces the adoption of this model for governance in its preamble. The desire of the confederating provinces is, the preamble states,

> to be federally united into One Dominion under the Crown of the United Kingdom of Great Britain and Ireland, with a Constitution similar in Principle to that of the United Kingdom ...

The preamble then states that it is expedient to provide for both "the Constitution of the Legislative Authority in the Dominion" as well as "the Nature of the Executive Government therein". The substantive provisions of the Act go on to identify the main legislative and executive institutions of state in terms that might be somewhat surprising to many Canadians. Only by reading the text in a broader constitutional context does a more familiar system of legislative and executive power emerge and take shape.

2 Crown, state, and sovereignty

In the next two sections of this chapter, we shall see that the king or queen is a component of federal and provincial legislatures and the head of federal and provincial executive governments in Canada. Before looking at legislative and executive power, it will therefore be helpful to begin, in this section, with some general observations on the relationship between the king or queen—or *crown*—and broader conceptions of state and state sovereignty.

In certain respects, it is true to say that "the Crown is the centrepiece of the working constitution"[18], that the crown is "an integral, and indeed pivotal, part of our constitution".[19] Yet it is an institution, a concept, and sometimes a person that must be approached with caution. Over a century ago, a famous legal historian, Frederick Maitland, said this to his students: "There is one term against which I wish to warn you, and that term is 'the crown.' You will certainly read that the crown does this and the crown does that. As a matter of fact we know that the crown does nothing but lie in the Tower of London to be gazed at by sight-seers. No, the crown is a convenient cover for ignorance: it saves us from asking difficult questions".[20]

2.1 The crown as hieroglyphic for the state

What difficult questions does the concept of crown obscure? Two centuries before Maitland lectured, Sir Edward Coke described the "Crown" as a "hieroglyphic"[21], a symbol or metaphor—but standing for what? The short answer is: the *state*. The common law regarded the king as having two bodies, one natural and one political, and his body politic was a corporation in which he was the head and his subjects the members—the "great corporation or body politick of the kingdome".[22] The resulting corporate body politic represented by the king was "the common law's closest approximation to the state".[23]

We have not come much closer since. Indeed, the *crown*—or king or queen—as *state* is ubiquitous in Canadian law. Here are just two examples. If the Canadian state prosecutes you for a crime, the prosecutor will be His Majesty the King and the prosecution will be conducted "on behalf of the Crown" by federal prosecutors[24] or by provincial "crown attorneys".[25] And if you wish to bring a civil action against the Canadian state for damages caused by its officials, the "Crown" is liable.[26] In this latter instance, we know that *crown* equals *state* because although crown is defined in the English version of the *Crown Liability and Proceeding Act* to mean "Her Majesty [now His Majesty] in right of Canada", in the French version of the Act, which is equally authoritative, the term "Crown" is replaced by "État" (State) which is defined as "Sa Majesté du chef du Canada".[27]

2.2 Crown sovereignty and crown honour

If the crown is or represents the state as a matter of law, then it would seem to follow that state sovereignty is *crown sovereignty*. Indeed, the "sovereignty of the Crown" was an expression used to describe the geographical extent and juridical identity of the United Kingdom and the larger British empire.[28] Canadian judges rarely refer to crown sovereignty today except in relation to one particular field of law—the law relating to Aboriginal and treaty rights that has emerged under section 35 of the *Constitution Act, 1982*.

The doctrine of Aboriginal rights recognizes the prior occupation of Canada by Indigenous societies and the need to reconcile those societies with the unilateral assertion of crown sovereignty over them, an ongoing process of reconciliation shaped by distinctive obligations placed on governments arising from the principle of the "honour of the Crown".[29] Historic treaties made between Indigenous nations and the crown must be interpreted consistently with the honour of the crown.[30] Where no historic treaties were made, modern treaties are required "to reconcile pre-existing Aboriginal sovereignty with assumed Crown sovereignty", or "*de facto* Crown sovereignty", the respective "sovereignty claims" being "reconciled through the process of honourable negotiation".[31]

The topic of Aboriginal and treaty rights is the subject of Chapter 12. For present purposes, however, several observations are important. First, the law just summarized is premised upon a judicial recognition that the moral (and possibly legal?) foundations of crown sovereignty and thus the Canadian state are flawed—that there is an "ongoing rift in the national fabric"[32]—and the crown's "honour" must be redeemed through a process of reconciliation that imposes special duties upon governments. Thinking back to Maitland's point, are we confronting or avoiding difficult questions by this emphasis on the crown and its honour in this context?

Second, references to crown and crown sovereignty obscure important points of constitutional law. The crown as the juridical embodiment of the *state* may be sovereign, but within domestic constitutional law we shall find that the principal legal manifestation of sovereignty lies within the doctrine of *parliamentary* not *crown* sovereignty—or rather we must say that the crown-in-parliament rather than the crown alone is sovereign.

Third, the idea of crown sovereignty coupled with the identification of the crown in the preamble of the *Constitution Act, 1867* as "the Crown of the United Kingdom" obscures the legal reality of Canadian state sovereignty. This topic deserves further attention.

2.3 Dividing the crown: the independence of Canada

Canada emerged as a sovereign, independent state in the early twentieth century: "Its sovereignty was acquired in the period between its separate signature of the Treaty of Versailles in 1919 and the *Statute of Westminster, 1931*".[33] However, its foundational constitutional text, the *British North America Act, 1867*, now labelled the *Constitution Act, 1867*, has not been amended to reflect this development.

In a series of Imperial Conferences in the late 1920s, it was recognized that the United Kingdom and the self-governing Dominions, including Canada, were "equal in status ... though united by a common allegiance to the Crown".[34] The independence of the Dominions was confirmed legally by the *Statute of Westminster, 1931*, 22 Geo. V, c. 4 (UK), by which the UK renounced the ability to legislate for the Dominions (subject in Canada's case to an exception, made at Canada's request, regarding the *British North America Act, 1867* which would be removed by the *Canada Act, 1982* (UK), c. 11).

The *Statute of Westminster, 1931* is listed in the Schedule to the *Constitution Act, 1982* and is therefore part of the supreme "Constitution of Canada" today. Its preamble affirms a constitutional convention that addresses how independent states would manage the identity of a common crown:

> And whereas it is meet and proper to set out by way of preamble to this Act that, inasmuch as the Crown is the symbol of the free association of the members of the British Commonwealth of Nations, and as they are united by a common allegiance to the Crown, it would be in accord with the established constitutional position of all the members of the Commonwealth in relation to one another that any alteration in the law touching the Succession to the Throne or the Royal Style and Titles shall hereafter require the assent as well of the Parliaments of all the Dominions as of the Parliament of the United Kingdom ...

The line of succession, then and now, was established in 1701[35], and Charles III is the latest successor. When the law of succession was amended by Act of the UK Parliament in 2013 to ensure equality between males and females in the succession and to repeal a rule that barred from the throne anyone married to a Roman Catholic[36], the Parliament of Canada followed the "established constitutional position" expressed in the preamble to the *Statute of Westminster, 1931* and assented to the changes.[37] The changes were not considered an amendment to the "office of the Queen" in the Constitution of Canada, which would have required unanimous federal and provincial consent (*Constitution Act, 1982*, s. 41(a)).[38]

The *Statute of Westminster, 1931* confirmed legally Canada's legislative independence from the UK. But if the crown remains a central part of Canada's constitutional architecture, what prevents British interference at an executive level? The answer, which we will explore in greater detail in section IV of this chapter, is the principle of "responsible government"—the principle that the crown must act on advice of ministers responsible to elected representatives, and, in Canada's case, beginning in the 1840s, local Canadian ministers. For now, it is important simply to indicate how this point was reinforced in 1947 by the issuance of new letters patent constituting the office of governor general in Canada. The 1947 letters patent, which remain the constitutive instrument for the office of governor general today, confirm that all crown powers in relation to Canada are delegated to the governor general to be exercised upon the advice of Canadian ministers (or, on provincial matters, crown powers are exercised by lieutenant governors advised by provincial ministers).

Letters Patent Constituting
the Office of Governor
General of Canada

Effective October 1, 1947

"GEORGE R."

CANADA

George the Sixth, by the Grace of God, of Great Britain, Ireland and the British Dominions beyond the Seas King, Defender of the Faith.

[SEAL]

To All To Whom these Presents shall come,

GREETING:

...

And We do declare Our Will and pleasure as follows:

I**.** We do hereby constitute, order, and declare that there shall be a Governor General and Commander-in-Chief in and over Canada, and appointments to the Office of Governor General and Commander-in-Chief in and over Canada shall be made by Commission under Our Great Seal of Canada.

II**.** And We do hereby authorize and empower Our Governor General, with the advice of Our Privy Council for Canada or of any members thereof or individually, as the case requires, to exercise all powers and authorities lawfully belonging to Us in respect of Canada, and for greater certainty but not so as to restrict the generality of the foregoing to do and execute, in the manner aforesaid, all things that may belong to his office and to the trust We have reposed in him according to the several powers and authorities granted or appointed him by virtue of the British North America Acts, 1867 to 1946 and the powers and authorities hereinafter conferred in these Letters Patent and in such Commission as may be issued to him under Our Great Seal of Canada and under such laws as are or may hereinafter be in force in Canada.

III. And We do hereby authorize and empower Our Governor General to keep and use Our Great Seal of Canada for sealing all things whatsoever that may be passed under Our Great Seal of Canada.

IV. And We do further authorize and empower Our Governor General to constitute and appoint, in Our name and on Our behalf, all such Judges, Commissioners, Justices of the Peace, and other necessary Officers (including diplomatic and consular officers) and Ministers of Canada, as may be lawfully constituted or appointed by Us.

...

VI. And We do further authorize and empower Our Governor General to exercise all powers lawfully belonging to Us in respect of summoning, proroguing or dissolving the Parliament of Canada.

...

In witness whereof We have caused these Our Letters to made Patent, and for the greater testimony and validity thereof, We have caused Our Great Seal of Canada to be affixed to these presents, which We have signed with Our Royal Hand.

BY HIS MAJESTY'S COMMAND,

W. L. MACKENZIE KING,

Prime Minister of Canada

After the imperial conferences of the 1920s, governors general were appointed upon recommendation of the Canadian prime minister, though they remained British until the first Canadian governor general, Vincent Massey, was appointed in 1952. The appointment itself remains by the king or queen, but on the advice of the prime minister of Canada, and the commission is under the Great Seal of Canada. Commissions follow this template:

Canada

Elizabeth the Second, by the Grace of God of the United Kingdom, Canada and Her other Realms and Territories Queen, Head of the Commonwealth, Defender of the Faith.

To

Our Trusty and Well-beloved

ROLAND MICHENER

A Member of Our Privy Council for Canada and One of Our Counsel learned in the Law.

Greeting:

We do, by this Our Commission under Our Great Seal of Canada, appoint you, ROLAND MICHENER to be, during Our Pleasure, our Governor General and Commander-in-Chief in and over Canada, with all the powers, rights, privileges and advantages belonging or appertaining to the office.

AND We do hereby authorize, empower and command you, as Our representative, to exercise and perform all the singular the powers and directions contained in certain Letters Patent under Our Great Seal of Canada, bearing date the Eight day of September, 1947, constituting the Office of the Governor General and Commander-in-Chief in and over Canada, or in any other Letters Patent adding to, amending or substituted for the same.

...

And We do hereby command all and singular Our Officers, Ministers and loving subjects in Canada and all others whom it may concern, to take due notice hereof and to give their ready obedience accordingly.

GIVEN under our Royal Hand and under Our Great Seal of Canada, this 29th day of March in the year of our Lord one thousand nine hundred and sixty-seven and in the Sixteenth year of Our Reign.

By Her Majesty's Command

(Sgd.) L.B. Pearson

Prime Minister of Canada

The adoption of the title used for the queen in the above commission was itself a step in the Canadianization of the crown taken by the *Royal Style and Titles Act*, RSC 1985, c. 12, in 1953. Upon the accession of Charles III to the throne, the Canadian title for the King was adjusted (*Royal Style and Titles Act, 2023*, S.C. 2023, c. 26, s. 510). Following a form adopted in many other realms of the king, the formal title today is:

Charles the Third, by the Grace of God King of Canada and His other Realms and Territories, Head of the Commonwealth.

Canada's constitution had evolved significantly between 1952 and 2023, including the development of a complex body of law relating to freedom of religion under the *Canadian Charter of Rights and Freedoms* that places particular importance on the concept of state neutrality regarding religious matters—and so one wonders whether the efforts at further Canadianizing the crown in 2023 might have involved dropping, in addition to "Defender of the Faith", the reference to "by the Grace of God".

2.4 Judicial recognition of the Canadian crown

The constitutional moments summarized above—1926, 1931, 1947, 1953—are pivotal points in the story of how the crown evolved into a Canadian institution. The story is one of legal continuity rather than revolution and the legal moments that punctuate the story often follow events after the fact. The legal idea of the Queen or King of Canada is explained in the following two cases.

2.4.1 *The Queen v The Secretary of State for Foreign and Commonwealth Affairs,ex parte Indian Association of Alberta*, [1982] QB 892

Court of Appeal for England and Wales

Lord Denning M.R.

Over 200 years ago, in the year 1763, the King of England made a Royal Proclamation under the Great Seal. In it he gave solemn assurances to the Indian peoples of Canada. These assurances have been honoured for the most part ever since. But now the Indian peoples feel that the assurances are in danger of being dishonoured. They are anxious about the Canada Bill which is now before the Parliament of the United Kingdom [Lord Denning is referring to the bill that became the *Canada Act, 1982* that patriated the Canadian constitution and enacted the *Constitution Act, 1982*]. Under it there is to be a new constitution for Canada. The Indian peoples distrust the promoters of the Bill. They feel that, if it is passed, their own special rights and freedoms will be in peril of being reduced or extinguished. They have not gone to the courts of Canada for redress. They have come to this court. They say that the assurances which were given 200 years ago — and repeated in treaties 100 years later — were binding on the Crown of the United Kingdom. So they come to the courts of this country to plead their case. They come in particular from Alberta, Nova Scotia and New Brunswick. But the other Indian peoples from the other provinces are watching closely too. They want to see what happens. Seeing that their claim is against the Crown in respect of the United Kingdom, they are entitled, I think, to come here to put their case. They ask this court to make a declaration:

> "that treaty [or other] obligations entered into by the Crown to the Indian peoples of Canada are still owed by Her Majesty in right of Her Government in the United Kingdom."

This is disputed by the Department of State in the United Kingdom, the Foreign and Commonwealth Office. When the matter was under consideration by the Foreign Affairs Committee of the House of Commons, the question was put to the Foreign and Commonwealth Office. "Has the United Kingdom any treaty or other responsibilities to Indians in Canada?" The answer given by that Office on November 11, 1980, was:

> "No. All relevant treaty obligations in so far as they still subsisted became the responsibility of the Government of Canada with the attainment of independence, at the latest with the *Statute of Westminster 1931*."

The Indian peoples dispute that answer. In order to challenge it, they have brought these proceedings for judicial review.

...

Our long experience .... [of empire] taught us how to treat the indigenous peoples. As matter of public policy, it was of the first importance to pay great respect to their laws and customs: and never to interfere with them except when necessary in the interests of peace and good order. It was the responsibility of the Crown of England — and those representing the Crown — to see that the rights of the indigenous people were secured to them, and that they were not imposed upon by the selfish or the thoughtless or the ruthless. ...

In all these matters in the 18th and 19th centuries it was a settled doctrine of constitutional law that the Crown was one and indivisible. The colonies formed one realm with the United Kingdom, the whole being under the sovereignty of the Crown. The Crown had full powers to establish such executive, legislative and judicial arrangements [for the colonies] as it thought fit. In exercising these powers, it was the obligation of the Crown (through its representatives on the spot) to take steps to ensure that the original inhabitants of the country were accorded their rights and privileges according to the customs coming down the centuries — except in so far as these conflicted with the peace and good order of the country or the proper settlement of it. This obligation is evidenced most strikingly in the case of Canada by the Royal Proclamation of 1763.

...

[T]here was a series of important treaties made with the Indian peoples across the greater part of Canada affecting all the provinces. They follow the same pattern but suffice it to state as an example a treaty made in 1873 [Treaty No. 3 or the Northwest Angle Treaty] between "The Queen of Great Britain and Ireland, by Her Commissioners" and "The Saulteaux Tribe of the Ojibbeway Indians … by their Chiefs …" After describing a tract of land, the treaty goes on to provide that the Tribe and all other Indians:

> "do hereby cede, release, surrender and yield up to the Government of the Dominion of Canada for Her Majesty the Queen and Her successors forever, all their rights, titles and privileges whatsoever, to the lands … To have and to hold the same to Her Majesty the Queen, and Her successors forever."

In return Her Majesty the Queen entered into several obligations to the Indians [Lord Denning sets out treaty terms in which Her Majesty recognized Ojibway rights to reserves and the right to hunt and fish within the surrendered lands until lands are taken up for settlement or other uses].

... [At that time, the] Crown was single and indivisible. ...[T]he Indian title ... was a title superior to all others save in so far as the Indians themselves surrendered or ceded it to the Crown. ... Then by treaties which covered much of Canada the Indians did cede and surrender their right in some lands to the Crown and in return the Crown undertook to fulfil the obligations set out in the treaties. Those treaty obligations were obligations of the Crown — the single and indivisible Crown — which was at that time the Crown of the United Kingdom.

...

Hitherto I have said that in constitutional law the Crown was single and indivisible. But that law was changed in the first half of this century—not by statute—but by constitutional usage and practice. The Crown became separate and divisible—according to the particular territory in which it was sovereign. This was recognised by the Imperial Conference of 1926 (1926) (Cmd. 2768). It framed the historic definition (p. 14) of the status of Great Britain and the Dominions as

> "autonomous Communities within the British Empire, equal in status, in no way subordinate one to another in any respect of their domestic or external affairs, though united by a common allegiance to the Crown, and freely associated as members of the British Commonwealth of Nations."

It was also agreed, at p. 16:

> "the Governor-General of a Dominion is the representative of the Crown, holding in all essential respects the same position in relation to the administration of public affairs in a Dominion as is held by His Majesty the King in Great Britain, and that he is not the representative or agent of His Majesty's Government in Great Britain or of any Department of that Government."

Thenceforward the Crown was no longer single and indivisible. It was separate and divisible for each self-governing dominion or province or territory. ...

As a result of this important constitutional change, I am of opinion that those obligations which were previously binding on the Crown *simpliciter* are now to be treated as divided. They are to be applied to the Dominion or Province or territory to which they relate: and confined to it. Thus the obligations to which the Crown bound itself in the Royal Proclamation of 1763 are now to be confined to the territories to which they related and binding only on the Crown in respect of those territories: and the treaties by which the Crown bound itself ... are to be confined to those territories and binding on the Crown only in respect of those territories. None of them is any longer binding on the Crown in respect of the United Kingdom.

...

[N]ow that the Crown is separate and divisible, I think that the obligations under the Proclamation and the treaties are obligations of the Crown in respect of Canada. They are not obligations of the Crown in respect of the United Kingdom.

...

May L.J.

Although at one time it was correct to describe the Crown as one and indivisible, with the development of the Commonwealth this is no longer so. Although there is only one person who is the Sovereign within the British Commonwealth, it is now a truism that in matters of law and government the Queen of the United Kingdom, for example, is entirely independent and distinct from the Queen of Canada. Further, the Crown is a constitutional monarchy and thus when one speaks today, and as was frequently done in the course of the argument on this application, of the Crown "in right of Canada," or of some other territory within the Commonwealth, this is only a short way of referring to the Crown acting through and on the advice of Her Ministers in Canada or in that other territory within the Commonwealth.

...

As a result of this process and on the authorities to which I have referred, I have no doubt that any treaty or other obligations which the Crown had entered into with the Indian peoples of Canada in right of the United Kingdom had become the responsibility of the Government of Canada with the attainment of independence, at the latest with the *Statute of Westminster 1931*. I therefore think that this application must fail.

2.4.2 *McAteer v. Canada (Attorney General)*, 2014 ONCA 578, (2014) 121 O.R. (3d) 1

Court of Appeal for Ontario

Weiler J.A.

[1] Permanent residents of Canada over 14 years old who wish to become Canadian citizens are required to swear an oath or make an affirmation: see *Citizenship Act*, R.S.C. 1985, c. C-29 (the "Act"), s. 3(1)(*c*). ... Section 24 of the Act requires a person to take the oath in the form set out in the Schedule to the Act as follows:

> I swear (or affirm) that I will be faithful and bear true allegiance to Her Majesty Queen Elizabeth the Second, Queen of Canada, Her Heirs and Successors, and that I will faithfully observe the laws of Canada and fulfil my duties as a Canadian citizen.

[3] The appellants assert that the requirement in the Act to swear or affirm allegiance to the Queen in order to become a Canadian citizen is a violation of their rights under ss. 2(*a*) (freedom of conscience and religion), 2(*b*) (freedom of expression), and 15(1) (equality) of the *Canadian Charter of Rights and Freedoms*.

...

[6] ... The appellants' arguments are based on a literal "plain meaning" interpretation of the oath to the Queen in her personal capacity. Adopting the purposive approach to interpretation mandated by the Supreme Court of Canada leads to the conclusion that their interpretation is incorrect because it is inconsistent with the history, purpose and intention behind the oath. The oath in the Act is remarkably similar to the oath required of members of Parliament and the Senate under [section 128 of] the *Constitution Act, 1867*. In that oath, the reference to the Queen is symbolic of our form of government and the unwritten constitutional principle of democracy. The harmonization principle of interpretation leads to the conclusion that the oath in the Act should be given the same meaning.

...

[48] The evolution of Canada from a British colony into an independent nation and democratic constitutional monarchy must inform the interpretation of the reference to the Queen in the citizenship oath. As Canada has evolved, the symbolic meaning of the Queen in the oath has evolved. ...

[50] ... Viewing the oath to the Queen as an oath to an individual is disconnected from the reality of the Queen's role in Canada today. During the heyday of the Empire, British constitutional theory saw the Crown as indivisible. At that time, there was no need to distinguish between the sovereign's role as an individual and as the head of the executive; nor was there any need in unitary Great Britain to differentiate between the roles that the Crown plays: see the Hon. Bora Laskin, *The British Tradition In Canadian Law* (London: Stevens & Sons, 1969), at pp. 117-19.

[51] However, as Canada developed as an independent federalist state, the conception of the Queen (commonly referred to as the Crown) evolved. Unlike the unitary role of the Crown at the height of the British Empire, its role in Canada is divided into three distinct roles. First, the Queen of Canada plays a legislative role in assenting to refusing assent to, or reserving bills of the provincial legislature or Parliament—a role that is performed through the Governor General and the Lieutenant Governors. Second, the Queen of Canada is the head of executive authority pursuant to ss. 9 and 12 of the *Constitution Act, 1867*. Third, the Queen of Canada is the personification of the State ... [In Canada,] the Crown may for some purposes fall within provincial power under s. 92 of the *Constitution Act, 1867*, and for other purposes fall within federal power under s. 91. For the purposes of Canadian federalism, the Crown therefore cannot be viewed as a single indivisible entity: Laskin, at p. 119. The Crown is "separate and divisible for each self-governing dominion or province or territory": *R. v. Secretary of State for Foreign and Commonwealth Affairs, ex parte Indian Assn. of Alberta*, [1982] Q.B. 892, [1982] 2 All E.R. 118 (Eng. C.A.), at p. 917 Q.B., *per* Lord Denning.

[52] ...[T]he Queen of Canada fulfils these varying roles figuratively, not literally. The Hon. Bora Laskin explains, at pp. 118-19, that "Her Majesty has no personal physical presence in Canada ... [O]nly the legal connotation, the abstraction that Her Majesty or the Crown represents, need be considered for purposes of Canadian federalism. The fact that *Interpretation Acts*, whether the federal Act or provincial Acts, give the term 'Her Majesty' or the 'Crown' a personal meaning, is [an] anachronism." The oath to the Queen of Canada is an oath to our form of government, as symbolized by the Queen as the apex of our Canadian parliamentary system of constitutional monarchy.

...

[54] Although the Queen is a person, in swearing allegiance to the Queen of Canada, the would-be citizen is swearing allegiance to a symbol of our form of government in Canada. This fact is reinforced by the oath's reference to "the Queen of Canada", instead of "the Queen". It is not an oath to a foreign sovereign.

...

[62] Applying a purposive and progressive approach to the wording of the oath, with regard to its history in Canada and the evolution of our country, leads to the conclusion that the oath is a symbolic commitment to be governed as a democratic constitutional monarchy unless and until democratically changed. Inasmuch as the oath to the Queen is a requirement in the Constitution for members of Parliament and is seen as an oath to our form of government, the harmonization principle supports the conclusion that the oath to the Queen in the *Citizenship Act* be given a consistent interpretation. This interpretation of the oath, as a symbolic commitment to our form of government and the unwritten constitutional principle of democracy, is supported by the legal norms of rationality and coherence.

[Weiler J.A. proceeded to analyse the various *Charter* claims in light of this interpretation of the oath, concluding that none of the Charter claims could succeed.]

3 Parliament and Parliamentary Sovereignty

3.1 The Federal Parliament and Provincial Legislatures

Legislative power under the constitution is divided between the federal Parliament and the provincial legislatures. This section focuses on the federal Parliament and provincial legislature and leaves the question of Indigenous peoples' law-making power to Chapter 12.

The rules relating to the federal Parliament and provincial legislatures are found in different sources. Some come from statutes and constitutional documents, others have their origin in Imperial orders in council, and others result from the exercise by Parliament and the provincial legislatures of their inherent privilege to regulate their own internal proceedings. The relationship between legislative institutions, courts, and the Crown is governed by the common law and constitutional conventions. Notably, the common law establishes the principle of parliamentary sovereignty, discussed in the next section. The constitutional conventions that relate to Parliament are mostly concerned with the relation between the two houses of Parliament, the House of Commons and the Senate, and between the executive and the legislative branches. The purpose and content of these conventions have evolved over time. Today their central purpose is to ensure that the members of Parliament, who form the committee of the King's Privy Council for Canada (the cabinet or Ministry) are collectively accountable to the elected chamber of Parliament. With some minor adaptations, similar common law rules and constitutional conventions operate at the provincial level. Taken together, these principles support the system of responsible government.

The federal Parliament was a new institution created at Confederation. Section 17 of the *Constitution Act, 1867* provides:

> **17**. There shall be One Parliament for Canada, consisting of the Queen, an Upper House styled the Senate, and the House of Commons.

The *Constitution Act, 1867* contains a number of rules relating to Parliament. These include rules relating to the number, regional distribution and qualification of senators, some general voting rules and some procedural rules, the most important of which are discussed below. Beyond these, most of the rules governing the operation of Parliament are set out in ordinary statutes or internal rules of proceedings of the Senate or House of Commons or the equivalent at the provincial level. For example, the *Parliament of Canada Act*, RSC 1985, c. P-1 concerns everything from the election of the Speaker to the formation of caucuses, the remuneration of members of Parliament, parliamentary ethics and conflicts of interests, etc.

Provincial legislatures have more diverse origins. Some legislatures existed before the particular province joined Confederation, such as the legislatures of New Brunswick and Nova Scotia. Others, like the legislatures of Quebec and Ontario, were established as separate bodies in the *Constitution Act, 1867,* following a twenty-seven year period in which Canada East (Quebec) and Canada West (Ontario) had a single legislature. Others still, such as the legislatures of Manitoba, Saskatchewan and Alberta, were created by constitutional statute when they joined Confederation as distinct provinces, although each territory had a form of representative institution before their formal entry into Confederation.

One of the most important differences between the federal Parliament and provincial legislatures concerns their internal structure. The federal Parliament is bicameral, meaning that it is composed, like the United Kingdom Parliament, of two chambers (*camera* in Latin): the House of Commons, sometimes called the Lower House, and the Senate, called the Upper House. The members of the House of Commons are elected, while Senators are appointed by the Governor General in Council, which in practice (by convention) means the federal government. The provincial legislatures are all unicameral, meaning that they are composed of only one chamber, an elected legislature. While most provinces and territories have had a bicameral legislature at one time or another, all provincial Upper Houses have been abolished, the last one being Quebec's Legislative Council in 1968.

The House of Commons, the elected chamber of Parliament, is composed of 343 members (as of 2025). Provided that certain constitutional requirements are met, this number can be increased or decreased by regular statute (see *Constitution Act, 1867*, s. 51 & 52). The Senate is composed of 105 Senators. The number and regional allocation of Senate seats is set out in the *Constitution Act, 1867*. The last time the number of seats was modified was in 1999, when the constitutional amendment creating Nunavut (*Constitution Act, 1999*), allotted one Senator to the territory.

Section 17 of the *Constitution Act, 1867* provides that Parliament is composed of three elements: the Senate and the House of Commons (the two legislative chambers), and the Monarch or King. A bill becomes law only after it has been "read" three times in both chambers and receives royal assent from the Governor General, as the King's representative (*Constitution Act, 1867*, s. 55). The concurrence of all three parts of Parliament is required before a bill becomes law. The same applies at the provincial level with the concurrence of the legislative chamber and the Lieutenant-Governor is required before a bill becomes law.

In the case of certain constitutional amendments, the assent of the Senate may not be required. While the Senate alone may not defeat such an amendment, it may exercise a six-months suspensive veto. If the amendment resolution is passed by the House of Commons and the requisite number of provincial legislatures but is not adopted by the Senate, it can nevertheless be proclaimed by the Governor General if, after one hundred and eighty days, the House of Commons adopts the same amendment resolution again (See *Constitution Act, 1982*, s. 47(1)). Constitutional Amendment is addressed in Chapter 4.

While the Governor General or the Lieutenant-Governors are formally part of the legislative process, in practice they will not withhold royal assent. This well-settled constitutional convention is central to the system of responsible government. In the exceedingly rare occasion that royal assent has been withheld, as happened in the case of *Gallant* v. *R.*, 1948 CanLII 316 (PE SCTD), [1949] 2 D.L.R. 425, the courts have refused to enforce a bill that never became a statute. In the *Patriation Reference*, the majority accepted that while *Gallant* was good law, the case was a reminder of the central importance of constitutional conventions in the legislative process and (by convention) the merely formal role of the Governor General or the Lieutenant Governor:

> As a matter of law, the Queen, or the Governor General or the Lieutenant Governor could refuse assent to every bill passed by both Houses of Parliament or by a Legislative Assembly as the case may be. But by convention they cannot of their own motion refuse to assent to any such bill on any ground, for instance because they disapprove of the policy of the bill. We have here a conflict between a legal rule which creates a complete discretion and a conventional rule which completely neutralizes it. But conventions, like laws, are sometimes violated. And if this particular convention were violated and assent were improperly withheld, the courts would be bound to enforce the law, not the convention. They would refuse to recognize the validity of a vetoed bill. This is what happened in *Gallant v. The King*.... The Lieutenant Governor who had withheld assent in *Gallant* apparently did so towards the end of' his term of office. Had it been otherwise, it is not inconceivable that his withholding of assent might have produced a political crisis leading to his removal from office which shows that if the remedy for a breach of a convention does not lie with the courts, still the breach is not necessarily without a remedy. The remedy lies with some other institutions of government; furthermore it is [882] not a formal remedy and it may be administered with less certainty or regularity than it would be by a court. (*Re: Resolution to amend the Constitution*, 1981 CanLII 25 (SCC), [1981] 1 S.C.R. 753, at 881-882)

Sections 53 and 54 of the *Constitution Act, 1867* provide:

> **53** Bills for appropriating any Part of the Public Revenue, or for imposing any Tax or Impost, shall originate in the House of Commons.
>
> **54** It shall not be lawful for the House of Commons to adopt or pass any Vote, Resolution, Address, or Bill for the Appropriation of any Part of the Public Revenue, or of any Tax or Impost, to any Purpose that has not been first recommended to that House by Message of the Governor General in the Session in which such Vote, Resolution, Address, or Bill is proposed.

Under section 53 appropriation bills (i.e. spending legislation) and the raising of new taxes or impost must originate in the House of Commons, the elected chamber of Parliament, a right that the UK House of Commons asserted for itself beginning in the late 16th century. Section 54 provides that such bills must, in addition, be recommended by the Crown. In practice, this generally means that, except on rare occasions, financial measures can only be introduced by a member of the government. By convention, the Crown must also consent to any bill that purports to limit its prerogative, hereditary revenues, personal property or interest. This is generally done through a verbal message delivered by a Minister of the Crown sitting in the House of Commons to the effect that the Crown has consented to the measure considered before the third reading of the relevant bill.

In the case of *Mikisew Cree II*, which concerned the difference between the role of the Crown in its executive and its legislative capacity, Justice Brown summarized, in his concurring opinion, the three roles of the Crown in the legislative process.

***Mikisew Cree First Nation v. Canada (Governor General in Council)*, [2018] 2 SCR 765, 2018 SCC 40**

> Brown J — […]

> [130] By way of explanation, Parliament consists of the House of Commons, the Senate and the Queen (*Constitution Act, 1867*, s. 17). The scope of the Queen's legislative role — that is, the role of the Crown-in-Parliament — embraces "three determinative acts that are part of Parliament's core functions as a legislative body: royal recommendation, royal consent and royal assent" (C. Robert, "The Role of the Crown-in-Parliament: A Matter of Form and Substance", in M. Bédard and P. Lagassé, eds., *The Crown and Parliament* (2015), 95, at p. 96 (emphasis added)).
>
> [131] Royal recommendation, which is retained in s. 54 of the *Constitution Act, 1867*, provides for the procedure to be followed in respect of authorizing expenditure of public monies. Royal consent is a practice based on a convention limiting Parliament's right to take measures infringing the Crown prerogative or other Crown rights and interests. Of relevance here, however, is royal assent. […] Royal assent is also expressly required by s. 55 of the *Constitution Act, 1867*, which provides that, upon a bill passed by both the House of Commons and the Senate being presented to the Governor General for the Queen's assent, the Queen's assent (or withholding of consent, or reservation of the bill) shall be declared.
>
> [132] Sections 54 and 55 appear within Part IV of the *Constitution Act, 1867* and are therefore designated by the Constitution as falling within "Legislative Power". This makes sense, because royal recommendation, royal consent and royal assent are distinct from other exercises of Crown authority. Unlike, for example, statutory bodies such as the National Energy Board, or ministers of the Crown acting under delegated statutory powers, the Crown-in-Parliament does not "exis[t] to exercise executive power as authorized by legislatures"; and, the steps taken as part of the parliamentary process of law-making, including royal assent, are not "the vehicle through which the Crown acts" (*Clyde River (Hamlet) v. Petroleum Geo-Services Inc.*, 2017 SCC 40, [2017] 1 S.C.R. 1069, at para. 29).

While royal assent is generally (and by convention) a formality, this is not the case for royal recommendation and royal consent. These are among the most fundamental rules governing the relation between the Houses of Parliament and the Crown. In practice, the combined effect of these rules is that the government — i.e. the members of Parliament who collectively form the special committee of the King's Privy Council for Canada called the cabinet — exercises a key role in the parliamentary process. Legislation relating to the spending of money (a spending bill) or to the raising of revenue through taxes must be introduced by the government or obtain the government's approval. A minister of the Crown must explicitly express the Crown's consent before a bill to similar effect is introduced by a backbencher or a member of the opposition. And, in practice, the government decides whether a measure limiting the Crown's prerogative can be debated in Parliament. This means that two of the most important constraints that Parliament can impose on the Crown (how money is spent and the scope of the executive's prerogative powers) are essentially self-imposed constraints by the government on itself and on future governments (provided that the measures are not repealed).

While the government – the executive – must retain the confidence of the House of Commons to remain in power, Parliament is limited in its ability to impose its will on the executive in day-to-day affairs. This, combined with the fact that the volume of delegated legislation (regulations) adopted by the executive now far exceeds that of primary legislation adopted by Parliament, it is fair to say that Parliament is more often an overseer or watchdog of the executive and the legislative process than a law-maker.

According to constitutional convention, when the government loses the confidence of the House of Commons, the Prime Minister must either tender their resignation and that of their government, or advise the Governor General to exercise the prerogative of dissolution and call new elections.

The maximum term for a Parliament is five years. Before the expiry of the five year period, the House of Commons must be dissolved and an election called. This is set out in section 50 of the *Constitution Act, 1867*:

> **50**. Every House of Commons shall continue for Five Years from the Day of the Return of the Writs for choosing the House (subject to be sooner dissolved by the Governor General), and no longer.

Note that s. 50 does not refer to provincial legislatures, which meant that provinces could extend the term of their legislatures beyond five years. The *Canadian Charter of Rights and Freedoms* changed this in 1982. Section 4(1) of the Charter now provides:

> **4(1).** No House of Commons and no legislative assembly shall continue for longer than five years from the date fixed for the return of the writs of a general election of its members.

The drafters of the *Charter* were alert to the possibility that a strict five-year term might sometimes cause problems. They included in paragraph 4(2) an exception for "real or apprehended war, invasion or insurrection". In this case, the House of Commons or the legislative assembly can be continued beyond five years provided that no more than one third of the assembly's members vote to oppose such an extension.

Section 5 of the *Charter* also provides that there shall be a sitting of Parliament and of each legislature at least once every twelve months.

3.2 A Note on Reservation and Disallowance

The legislative process in Canada also contains remnants of its colonial origin. The powers of reservation and disallowance were originally used to subject corporations, such as municipalities, to the oversight of the Crown who could nullify their delegated legislation. This mechanism was subsequently extended to the British colonies in North America and was retained in the *Constitution Act, 1867*. Consider ss. 55, 56, and 90 of the *Constitution Act, 1867*:

> **55.** Where a Bill passed by the Houses of the Parliament is presented to the Governor General for the Queen's Assent, he shall declare, according to his Discretion, but subject to the Provisions of this Act and to Her Majesty's Instructions, either that he assents thereto in the Queen's Name, or that he withholds the Queen's Assent, or that he reserves the Bill for the Signification of the Queen's Pleasure.
>
> **56.** Where the Governor General assents to a Bill in the Queen's Name, he shall by the first convenient Opportunity send an authentic Copy of the Act to One of Her Majesty's Principal Secretaries of State, and if the Queen in Council within Two Years after Receipt thereof by the Secretary of State thinks fit to disallow the Act, such Disallowance (with a Certificate of the Secretary of State of the Day on which the Act was received by him) being signified by the Governor General, by Speech or Message to each of the Houses of the Parliament or by Proclamation, shall annul the Act from and after the Day of such Signification.
>
> […]
>
> **90**. The following Provisions of this Act respecting the Parliament of Canada, namely, — the Provisions relating to Appropriation and Tax Bills, the Recommendation of Money Votes, the Assent to Bills, the Disallowance of Acts, and the Signification of Pleasure on Bills reserved, — shall extend and apply to the Legislatures of the several Provinces as if those Provisions were here re-enacted and made applicable in Terms to the respective Provinces and the Legislatures thereof, with the Substitution of the Lieutenant Governor of the Province for the Governor General, of the Governor General for the Queen and for a Secretary of State, of One Year for Two Years, and of the Province for Canada.

In practice, no statute of the federal Parliament was ever reserved or disallowed by the British Crown since Confederation. This power, at least in the case of the federal Parliament, has now fallen into desuetude. Paul Gérin-Lajoie explains the evolution of constitutional conventions and diplomatic relations between Canada and the United Kingdom that resulted in the desuetude of the power of reservation and disallowance in the early part of the twentieth century.

Paul Gérin-Lajoie, *Constitutional Amendment in Canada*, Toronto, University of Toronto Press, 1950, pp. 25-29.

> It is easy to understand how much conventions may change the working of the fundamental law if it is borne in mind that conventions are the flesh giving a form to the skeleton Constitution. A Constitution may thus have a result far from that intended by its framers. Although such a development usually takes place *en marge* of the Constitution without conflicting with its express terms, the opposite may also arise. It is an unquestioned rule of law that usage, however well established, can never supersede the provisions of an act of Parliament. But law and practice, Constitution and government, are quite different matters. What is prohibited in law and cannot be recognized by the courts may well become an established practice which will never be or is not even susceptible of being submitted to the courts. This situation may happen in the internal working of government or in the relations of government with government whenever private rights are not directly involved. A situation then arises where a political stand according to the law but in violation of such practice would be faced by disapproval at the general elections, or by universal dis-obedience, or even by revolution. The force of things prevails over the force of law.
>
> Such a situation (where conventions override the acts of Parliament) arose in Canada mainly with respect to Imperial and Commonwealth relations. Under sections 55, 56, and 57 of the British North America Act, 1867, for example, the King on the advice of his Ministers in the United Kingdom originally gave instructions to the Governor-General concerning the assent and reservation of the bills passed by the Canadian Houses of Parliament; the Governor-General, according to his discretion, but subject to such instructions, assented to or reserved the bills or even withheld his assent completely; after assenting to a bill, he forwarded an authentic copy of the act to one of His Majesty's principal Secretaries of State (the Colonial Secretary) ; and within two years after its receipt by the Secretary of State such an act was subject to disallowance by the King on the advice of his British Ministers. These sections 55, 56, and 57 are still in the Constitution and have full force of law.
>
> Despite the text of the law the constitutional position and practice as recognized or established at Imperial Conferences are quite different. At the Conferences of 1929-30, applying the principles laid down in 1926, it was recognized as an established principle that the British Government would not advise the King to give the Governor-General any instructions to reserve bills presented to him for assent; and if a discretionary power of reservation existed it could be exercised by the Governor-General only "in accordance with the constitutional practice in the Dominion," in which case, as regards the signification of the King's pleasure, "it would not be in accordance with constitutional practice for advice to be tendered to His Majesty by the British Government, against the views of the Government of the Dominion concerned." In all these matters—instructions to the Governor-General, the discretionary power of reservation which the Governor-General may have, the signification of the King's pleasure—the King or his representative in a Dominion acts on the exclusive advice of his Ministers in the Dominion concerned. This was considered to be an established practice up to the point that it could be formally recognized by an amendment to the Constitution of any Dominion which so desired. The position is the same with respect to the power of disallowance of Dominion legislation formerly exercised by the King on the advice of his Ministers in the United Kingdom. Such power can no longer be exercised.
>
> Change has also occurred in the practice under which the acts of the Canadian Parliament were forwarded to London by the Governor-General, in accordance with section 56 of the British North America Act, 1867, which provides for the power of disallowance of federal legislation. The obligation of the Canadian Government under this section was implemented by the Publication of Statutes Act which provided for the delivery to the Governor-General by the clerk of the Parliaments, after each session, of a certified copy of the new statutes. The Imperial Conference, 1926, recognized that it was not wholly in accordance with the constitutional position of the Governor-General that the latter be the formal official channel of communication between the Government of the United Kingdom and the Governments of the Dominions. It was thought that the channel of communication should be from Government to Government direct. This new procedure, so far as Canada was concerned, came into force on July 1, 1927.
>
> From then until 1942, although the text of the Constitution was still unchanged, after each session of Parliament a bound copy of the statutes (certified by the clerk of the Parliaments) was sent direct by the Canadian Secretary of State for External Affairs to the British Secretary of State for Dominion Affairs. Moreover, in 1942, "in view of the complete obsolescence of the power of disallowance, and in order to bring the actual practice into conformity with the constitutional position," as later explained by Prime Minister Mackenzie King in the House of Commons, the transmission to London was stopped. Under the Publication of Statutes Act, however, the clerk of the Parliaments remained under the obligation to forward to the Governor-General, after each session, a copy of the new statutes. Actually he did send it to the Secretary of State for External Affairs who, since 1942, simply deposited it in the library of Parliament. In 1947, the Canadian Parliament finally amended the Publication of Statutes Act by deleting all references to disallowance of Canadian acts in London and reservation of the Governor-General's assent, and by relieving the clerk of the Parliaments of his former obligation. (footnotes omitted)

There is no question that the power of reservation and disallowance is now extinguished at the federal level. The adoption of the *Constitution Act, 1982*, confirmed in law what had become a reality by convention.

The matter is more disputed, though no less politically explosive, at the provincial level. The power to reserve or disallow a provincial statute was used relatively frequently by the Governor General on the advice of the federal cabinet in the first decades after Confederation. The power continued to be used, although less frequently until the 1940s. In total, 112 statutes were disallowed by the federal government between Confederation and 1943, which was the last year a provincial statute was disallowed. (See Gerard L. V. La Forest, *Disallowance and Reservation of Provincial Legislation*, Ottawa, Department of Justice, 1955). A provincial bill in Saskatchewan was reserved as late as 1962.

3.3 Parliamentary Sovereignty

3.3.1 Content of the doctrine – force and scope

The doctrine of parliamentary sovereignty is among the most fundamental constitutional principles in the English legal system and in those systems, such as Canada's, that derive from this system. The doctrine evolved in England over centuries and so its meaning is fluid and sometimes open to debate. (See Jeffrey Goldsworthy, *The Sovereignty of Parliament: History and Philosophy*, Oxford, Oxford University Press, 1999.) For our purposes, it is helpful to start with the formulation that the principle received in the writings of an English jurist, Albert Venn Dicey (1835-1922), who wrote around the turn of the twentieth century. Dicey's formulation of parliamentary sovereignty has been influential in both the United Kingdom and Canada. Even if it does not fully capture how the doctrine applies in a federation with a written constitution and formal amendment rules like Canada, it provides a helpful starting point to understand the various manifestations of the doctrine.

A.V. Dicey, Introduction to the Study of the Law of the Constitution, 8th edition, London, MacMillan, 1915.

[Dicey's most famous work is the *Introduction to the Study of the Law of the Constitution*, originally published in 1885 and reedited throughout his life. The eighth edition, published in 1915, was the last one published by Dicey himself. As you read the excerpt below, ask yourself whether the world that Dicey describes corresponds to the Canadian constitutional system that you know.]

The sovereignty of Parliament is (from a legal point of view) the dominant characteristic of our political institutions. My aim in this chapter is, in the fist place, to explain the nature of Parliament sovereignty and to show that it its existence is a legal fact, fully recognised by the law of England; in the next place, to prove that none of the alleged legal limitations on the sovereignty of Parliament have any existence; and, lastly, to state and meet certain speculative difficulties which hinder the ready admission of the doctrine that Parliament is, under the British constitution, an absolutely sovereign legislature.

A. Nature of Parliamentary Sovereignty. — Parliament means, in the mouth of a lawyer (though the word has often a different sense in ordinary conversation), the King, the House of Lords, and the House of Commons; these three bodies acting together may be aptly described as the "King in Parliament," and constitute Parliament.

The principle of Parliamentary sovereignty means neither more nor less than this, namely, that Parliament thus defined has, under the English constitution, the right to make or unmake any law whatever ; and, further, that no person or body is recognised by the law of England as having a right to override or set aside the legislation of Parliament.

A law may, for our present purpose, be defined as "any rule which will be enforced by the Courts." The principle then of Parliamentary sovereignty may, looked at from its positive side, be thus described: Any Act of Parliament, or any part of an Act of Parliament, which makes a new law, or repeals or modifies an existing law, will be obeyed by the Courts. The same principle, looked at from its negative side, may be thus stated: There is no person or body of persons who can, under the English constitution, make rules which override or derogate from an Act of Parliament, or which (to express the same thing in other words) will be enforced by the Courts in contravention of an Act of Parliament. Some apparent exceptions to this rule no doubt suggest themselves. But these apparent exceptions, as where, for example, the Judges of the High Court of Justice make rules of court repealing Parliamentary enactments, are resolvable into cases in which Parliament either directly or indirectly sanctions subordinate legislation. This is not the place for entering into any details as to the nature of judicial legislation; the matter is mentioned here only in order to remove an obvious difficulty which might present itself to some students.

It will be necessary in the course of these lectures to say a good deal more about Parliamentary sovereignty, but for the present the above rough description of its nature may suffice. The important thing is to make clear that the doctrine of Parliamentary sovereignty is, both on its positive and on its negative side, fully recognised by the law of England.

[Dicey went on to describe the "positive side" of parliamentary sovereignty. Dicey gave many examples, from acts of indemnity to the extension of the term of Parliaments and the modification of the rule of succession to the British Crown, etc.

Dicey then turned to what he called the "negative side" of parliamentary sovereignty which is "the absence of any competing legislative power". Dicey proceeded by showing that the King could not make laws. He cited the Henry VIII clause, discussed above, and the *Case of Proclamations* by which judges affirmed that, at common law, executive orders or proclamations cannot alter the rights and obligations of legal subjects. Dicey then considered the case of resolutions of either Houses of Parliament. He discussed the case of *Stockdale* v. *Hansard* as conclusive that a resolution of the House of Commons to the effect that a document printed on its order is not libelous does not change the law of libel. Dicey then considered the vote of parliamentary electors. Compared with countries like Switzerland, the electors in the United Kingdom do not have any legal power other than that of electing members of Parliament. Finally, Dicey considered the case of courts.]

All that we need note is that the adhesion by our judges to precedent, that is, their habit of deciding one case in accordance with the principle, or supposed principle, which governed a former case, leads inevitably to the gradual formation by the Courts of fixed rules for decision, which are in effect laws**.** This judicial legislation might appear, at first sight, inconsistent with the supremacy of Parliament. But this is not so. English judges do not claim or exercise any power to repeal a Statute, whilst Acts of Parliament may override and constantly do override the law of the judges. Judicial legislation is, in short, subordinate legislation, carried on with the assent and subject to the supervision of Parliament.

Alleged Limitations on the Legislative Sovereignty of Parliament

Our whole business is now to carry a step further the proof that, under the English constitution, Parliament does constitute such a supreme legislative authority or sovereign power as, according to Austin and other jurists, must exist in every civilised state, and for that purpose to examine into the validity of the various suggestions, which have from time to time been made, as to the possible limitations on Parliamentary authority, and to show that none of them are countenanced by English law.

The suggested limitations are three in number.

First, Acts of Parliament, it has been asserted, are invalid if they are opposed to the principles of morality or to the doctrines of international law. Parliament, it is in effect asserted, cannot make a law opposed to the dictates of private or public morality […] and expressions are sometimes used by modern judges which imply that the Courts might refuse to enforce statutes going beyond the proper limits (internationally speaking) of Parliamentary authority. But to words such as those […] we must give a very qualified interpretation. There is no legal basis for the theory that judges, as exponents of morality, may overrule Acts of Parliament. Language which might seem to imply this amounts in reality to nothing more than the assertion that the judges, when attempting to ascertain what is the meaning to be affixed to an Act of Parliament, will presume that Parliament did not intend to violate the ordinary rules of morality, or the principles of international law, and will therefore, whenever possible, give such an interpretation to a statutory enactment as may be consistent with the doctrines both of private and of international morality. A modem judge would never listen to a barrister who argued that an Act of Parliament was invalid because it was immoral, or because it went beyond the limits of Parliamentary authority. The plain truth is that our tribunals uniformly act on the principle that a law alleged to be a bad law is *ex hypothesi* a law, and therefore entitled to obedience by the Courts.

Secondly, doctrines have at times been maintained which went very near to denying the right of Parliament to touch the Prerogative.

In the time of the Stuarts the doctrine was maintained, not only by the King, but by lawyers and statesmen who, like Bacon, favoured the increase of royal authority, that the Crown possessed under the name of the "prerogative" a reserve, so to speak, of wide and indefinite rights and powers, and that this prerogative or residue of sovereign power was superior to the ordinary law of the land. This doctrine combined with the deduction from it that the Crown could suspend the operation of statutes, or at any rate grant dispensation from obedience to them, certainly suggested the notion that the high powers of the prerogative were to a certain extent beyond the reach of Parliamentary enactment. We need not, however, now enter into the political controversies of another age. All that need be noticed is that though certain powers—as, for example, the right of making treaties—are now left by law in the hands of the Crown, and are exercised in fact by the executive government, no modem lawyer would maintain that these powers or any other branch of royal authority could not be regulated or abolished by Act of Parliament, or, what is the same thing, that the judges might legally treat as invalid a statute, say, regulating the mode in which treaties are to be made, or making the assent or the Houses of Parliament necessary to the validity of a treaty.

> *Thirdly,* language has occasionally been used in Acts of Parliament which implies that one Parliament can make laws which cannot be touched by any subsequent Parliament, and that therefore the legislative authority of an existing Parliament may be limited by the enactments of its predecessors.
>
> That Parliaments have more than once intended and endeavoured to pass Acts which should tie the hands of their successors is certain, but the endeavour has always ended in failure. [Dicey then discussed examples such as Acts of Union with Scotland and Ireland, many of which were subsequently explicitly or implicitly repealed or amended by Parliament.]
>
> […]
>
> Parliamentary sovereignty is therefore an undoubted legal fact. It is complete both on its positive and on its negative side. Parliament can legally legislate on any topic whatever which, in the judgment of Parliament, is a fit subject for legislation. There is no power which, under the English constitution, can come into rivalry with the legislative sovereignty of Parliament.
>
> No one of the limitations alleged to be imposed by law on the absolute authority of Parliament has any real existence, or receives any countenance, either from the statute-book or from the practice of the Courts.
>
> This doctrine of the legislative supremacy of Parliament is the very keystone of the law of the constitution. […]

Dicey's theory of parliamentary sovereignty was extremely influential. But, as has often been noted, he often straddled the line between prescription and description and tended sometimes to idealize the working of the English constitution. Dicey's theory was put to test in the context of the Empire, which became a focal point for his critics.

One of the first cases that put Dicey's theory to test was released just a few years before the publication of the first edition of the *Introduction*. *Hodge* v. *The Queen* concerned a tavern owner, Archibald Hodge, who operated his billiard room after the operating hours authorized by Ontario legislation. The province's *Liquor License Act* or Crooks Act, took the regulation of liquor out of the hands of municipalities and gave it to newly created Boards of License Commissioners, who were appointed by the provincial government. These boards were in charge of the administration of the statute, and held the power to decide the number of licenses issued. Hodge was charged and convicted under the *Liquor License Act*. In his appeal Hodge argued that provincial legislatures could not delegate their law-making powers to administrative boards like the Board of License Commissioners. (Another argument raised by Hodge concerning provincial powers under s. 92 of the Constitution Act, 1867 is discussed in Chapter 5).

3.3.2 Hodge v. The Queen, [1883] 9 A.C. 117

> [In this excerpt from the judgment, Sir Barnes Peacock of the Judicial Committee of the Privy Council addresses the argument that the Ontario legislature could not delegate its power to commissioners because the provincial legislature held only delegated powers and so could not sub-delegate those powers to another entity.]
>
> […]
>
> Assuming that the Local Legislature had power to legislate to the full extent of the Resolutions passed by the License Commissioners […], it was further contended that the Imperial Parliament had conferred no authority on the Local Legislature to delegate those powers to the License Commissioners or any other persons. In other words, that the power conferred by the Imperial Parliament on the Local Legislature should be exercised in full by that body, and by that body alone. The maxim *delegatus non potest delegare* was relied on.
>
> It appears to their Lordships, however, that the objection thus raised by the appellants is founded on an entire misconception of the true character and position of the Provincial Legislatures. They are in no sense delegates of or acting under any mandate from the Imperial Parliament. When the British North America Act enacted that there should be a Legislature for Ontario, and that its Legislative Assembly should have exclusive authority to make laws for the province and for provincial purposes in relation to the matters enumerated in Sect. 92, it conferred powers not in any sense to be exercised by delegation from or as agents of the Imperial Parliament, but authority as plenary and as ample within the limits prescribed by Sect. 92, as the Imperial Parliament in the plenitude of its power possessed and could bestow. Within these limits of subjects and area the Local Legislature is supreme, and has the same authority as the Imperial Parliament, or the Parliament of the Dominion, would have had under like circumstances to confide to a municipal institution or body of its own creation authority to make bye-laws or resolutions as to subjects specified in the enactment, and with object of carrying the enactment into operation and effect.
>
> It is obvious that such an authority is ancillary to legislation, and without it an attempt to provide for varying details and machinery to carry them out might become oppressive, or absolutely fail. The very full and elaborate judgment of the Court of Appeal contains abundance of precedents for this legislation entrusting a limited discretionary authority to others, and has many illustrations of its necessity and convenience. It was argued at the bar that a Legislature committing important regulations to agents or delegates effaces itself. That is not so. It retains its powers intact, and can, whenever it pleases, destroy the agency it has created and set up another, or take the matter directly into its own hands. How far it shall seek the aid of subordinate agencies, and how long it shall continue them, are matters for each Legislature, and not for courts of law, to decide. […]

Hodge v. *The Queen* clarified the status of provincial legislatures and the legal framework applicable to them. The maxim *delegatus non potest delegare,* discussed by Lord Peacock, is a rule of administrative law that precludes a body, on which Parliament has conferred law-making powers, from further delegating these powers to another body - to sub-delegate. In deciding that the powers of a provincial legislature are "not in any sense to be exercised by delegation from or as agents of the Imperial Parliament", the JCPC seemed then to be saying that not all law-making power flows from a single source, the UK Parliament, contrary to Dicey's view.

At the same time, *Hodge* v. *The Queen* also illustrated one of the consequences flowing from the finding that provincial legislatures are sovereign within their jurisdiction. When Parliament or a provincial legislature creates an entity to which it delegates some legislative powers, that entity must exercise those powers for the purpose for which they were granted. Its discretion can be relatively wide or narrow. But regardless of the breadth of its discretion, delegated law-making bodies must exercise their discretion in a way that is reasonable.

For example, in the English case of *Kruse* v. *Johnson*, [1898] 2 Q.B. 91, decided a few years after *Hodge* v. *The Queen*, the English Court of Queen's Bench held that a municipal by-law could be *ultra vires*, even though the law-making process was democratic and was subject to administrative oversight. The Chief Justice, Lord Russell, explained in his opinion the circumstances in which a court might make such a determination:

> If, for instance, [the by-laws] were found to be partial and unequal in their operation as between different classes, if they were manifestly unjust, if they disclosed bad faith, if they involved such oppressive or gratuitous interference with the rights of those subject to them as could find no justification in the minds of reasonable men, the court might well say Parliament never intended to give authority to make such rules; they are unreasonable and *ultra vires.*

This statement by Lord Russell points to an important clarification of the legal status of provincial legislatures recognized in by *Hodge* v. *The Queen*. While delegated law-making bodies, like municipal councils, receive a delegation of power for a specific *purpose*, provincial legislatures are not created for a purpose. They are free to pursue any purpose they wish, as long as they remain within their jurisdiction (and

provided, since 1982, that they do not unjustifiably limit *Charter* rights). Some judges and lawyers have used the expression "quasi-sovereign" to characterize provincial legislatures and the federal Parliament, and distinguish them from other (delegated) law-making bodies.

This offers an opportunity to return to Dicey's classical definition of parliamentary sovereignty and its applicability to Canada. Dicey's definition allows us to distinguish between the *scope* and the *force* of the law-making power of parliament. Parliamentary sovereignty means that the legal *force* of a statute is stronger than other forms of law. A statutory rule has precedence over any other conflicting rule of law (other than a constitutional rule in Canada). Other 'laws' must be compatible with statute law, or the courts will hold that they have been *pro tanto* repealed, amended, or displaced. At the same time, this also means that a court of law cannot ignore a duly enacted statute, because it conflicts with the common law or any other source of law, for example. In the Canadian system, only a constitutional provision takes precedence over a statute.

Parliamentary sovereignty also means that the *scope* of Parliament's (or a legislature's) law-making power is not substantively limited. A sovereign parliament can make and unmake laws about any subject matter whatsoever. While this statement may be true of the UK Parliament, it needs to be qualified in the case of Canada. As we saw, legislative power in Canadian constitutional law is divided between the federal Parliament and the provincial legislatures. The federal Parliament and provincial legislatures may legislate in relation to any matter they choose within the scope of the powers granted to them under the constitution. In contrast to bodies, such as municipal government, that are exercising delegated law-making powers, Parliament and the provincial legislatures do not have to exercise their powers "reasonably". when so doing. They must only stay within their general jurisdiction.

Even if parliamentary sovereignty is a central component of Canadian constitutional law, courts rarely have the opportunity to discuss it directly. Most often, it only forms the background against which other constitutional doctrines and conventions are elaborated or developed, like the doctrine of implied repeal discussed in the next section. However, in the *Reference re Pan-Canadian Securities Regulation*, reproduced below, the Supreme Court of Canada explained how the doctrine of parliamentary sovereignty applies in Canada. It also explained the ways in which the doctrine needs to be adapted to the Canadian constitutional system where there is a written constitution amendable through specific procedures and a federal division of powers between two orders of government.

3.3.3 Reference re Pan-Canadian Securities Regulation, [2018] 3 SCR 189, 2018 SCC 48

[The case concerned an agreement between the federal government and five provinces and one territory to create a pan-Canadian scheme for securities regulation. The province of Quebec argued that the agreement was incompatible with parliamentary sovereignty. A second issue dealing with the scope of the federal government's power to enact laws in relation to trade and commerce is discussed in Chapter 9.

In the excerpt reproduced here, the Court explains what the doctrine of parliamentary sovereignty is and how it applies, with variations, in the Canadian context.]

The Court — […]

(b) *Parliamentary Sovereignty*

[…]

[54] Parliamentary sovereignty is a foundational principle of the Westminster model of government, and it is based on a recognition that the legislature's power to make laws exists without any legal limits or constraints […]. In its traditional form, parliamentary sovereignty means that the legislature has the *exclusive* authority to enact, amend, and repeal any law as it sees fit, and that there is no matter in respect of which it may not make laws. [The Court then went on to cite an excerpt from A.V. Dicey's *Introduction to the Study of the Law of the Constitution*, reproduced above.]

[55] The sovereignty of the legislature is central to the United Kingdom's uncodified constitutional structure (*Jackson v. Her Majesty's Attorney General*, [2005] UKHL 56, [2006] 1 A.C. 262, at para. 9 (per Lord Bingham)). Because there are no constituent instruments that either restrict the U.K. Parliament's jurisdiction over certain subject matters or enshrine certain civil rights and liberties, "[a]ny law, upon any subject matter, is within Parliament's competence" (P. W. Hogg, *Constitutional Law of Canada* (5th ed. Supp.), at p. 12-1). Parliamentary sovereignty therefore means that the legislative branch of government has supremacy over the executive and the judiciary: both must act in accordance with statutory enactments, and neither can usurp or interfere with the legislature's law-making function.

[56] While the principle of parliamentary sovereignty is an equally important feature of Canadian law, various aspects of our written Constitution have qualified the basic Diceyan rule that Parliament has the power "to make or unmake any law whatever". One such qualification lies in the federal structure of the Canadian state, which restricts the subject matters over which each legislature has jurisdiction. The distribution of legislative power between Parliament and the provincial legislatures is set out in Part VI of the *Constitution Act, 1867*. Since neither level of government has the power to legislate in respect of matters that fall within the exclusive competence of the other, the sovereignty of Parliament and of the provincial legislatures has been limited in Canada since Confederation. This was explained by the Judicial Committee of the Privy Council in *Hodge v. The Queen* (1883), 9 App. Cas. 117 (P.C.), as follows:

> When the British North America Act [now known as the *Constitution Act, 1867*] enacted that there should be a legislature for Ontario, and that its legislative assembly should have exclusive authority to make laws for the Province and for provincial purposes in relation to matters enumerated in sect. 92, it conferred . . . authority as plenary and as ample within the limits prescribed by sect. 92 as the Imperial Parliament in the plenitude of its power possessed and could bestow. Within these limits of subjects and area the local legislature is supreme, and has the same authority as the Imperial Parliament, or the Parliament of the Dominion, would have had under like circumstances . . . . [Emphasis added; p. 132.]

Given this constitutional division of powers, therefore, neither Parliament nor the provincial legislatures have the authority to enact laws that touch on all subject matters. Rather, the effect of parliamentary sovereignty in the context of Canadian federalism is that Parliament and the provincial legislatures are supreme with respect only to matters that fall within their respective spheres of jurisdiction.

[57] Further limits were placed upon parliamentary sovereignty in Canada following the enactment of the *Constitution Act, 1982*, a constitutional document which (among other things) protects the various civil rights and freedoms enshrined in the *Canadian Charter of Rights and Freedoms* (ss. 1 to 34), recognizes and affirms existing Aboriginal and treaty rights (s. 35), and provides that any laws which are inconsistent with the provisions of the Constitution are, "to the extent of the inconsistency, of no force or effect" (s. 52(1)). Not only does this constitutional instrument impose substantive limits on the content of statutory enactments, but it also codifies the authority of superior courts to review legislation for constitutional compliance (an authority that had previously been only assumed to exist). Professor Monahan et al. had the following to say about the effect of the *Constitution Act, 1982* on the principles of parliamentary supremacy and of the rule of law:

> All laws, regardless of the subject matter, are subject to review on the basis that they offend fundamental rights of individuals or groups under the *Charter*, or Indigenous rights under [s. 35]. . . . In this sense, the principle of constitutionalism and the rule of law — which requires that all actions of the state must be authorized by law and consistent with constitutional requirements — has now significantly narrowed the

> principle of parliamentary supremacy in Canada. [p. 86]
>
> [58] In *Reference re Secession of Quebec*, 1998 CanLII 793 (SCC), [1998] 2 S.C.R. 217, this Court observed that, "with the adoption of the *Charter*, the Canadian system of government was transformed to a significant extent from a system of parliamentary supremacy to one of constitutional supremacy" (para. 72). This is of course true, insofar as the Constitution places limits on the law-making powers of Parliament and the provincial legislatures. However, the principle of parliamentary sovereignty remains foundational to the structure of the Canadian state: aside from these constitutional limits, the legislative branch of government remains supreme over both the judiciary and the executive.
>
> [59] An important corollary to parliamentary sovereignty is the rule that the executive cannot unilaterally fetter the legislature's law-making power. [The Court then went on to discuss the decision *Re Anti-Inflation Act*, 1976 CanLII 16 (SCC), [1976] 2 SCR 373 to underscore the fact that an intergovernmental agreement cannot, in and of itself, bind Parliament or a provincial legislature.]
>
> […]
>
> [62] When an action of the executive branch appears to clash with the legislature's law-making powers, parliamentary sovereignty can be invoked for the purpose of determining the legal *effect* of the impugned executive action, but not its underlying *validity*. For example, the executive of one province may act within the confines of its constitutional authority when entering into an intergovernmental agreement with that of another province. If a term in such an agreement purports to bind the province's legislature, the result is not that the agreement itself is constitutionally invalid; the principle of parliamentary sovereignty simply means that the legislature's hands cannot be tied, and therefore that the impugned term is ineffective. In other words, because the legislature's law-making powers are supreme over the executive, the latter cannot bind the former. The result is that any executive agreement that purports to fetter the legislature is not inherently unconstitutional, but will quite simply not have the desired effect.
>
> [63] This understanding of the principle of parliamentary sovereignty is firmly established in this Court's jurisprudence. The advisory opinion in *Reference Re Canada Assistance Plan (B.C.)* is particularly illustrative in this regard. At the centre of that case was an agreement entered into in 1967 between the governments of Canada and British Columbia, pursuant to the *Canada Assistance Plan*, S.C. 1966-67, c. 45 ("*Plan*"). Section 4 of the *Plan* authorized the federal government to enter into agreements with individual provinces to share the cost of expenditures on social assistance and welfare, and s. 5 authorized payments to each contracting province of roughly 50 percent of that province's eligible expenditures. The *Plan* also provided that any such agreement would continue in force so long as the relevant provincial law remained in operation (s. 8(1)), and could be amended or terminated only by mutual consent or by giving one year's notice (s. 8(2)). In response to a budget deficit, however, the federal government introduced legislation into Parliament that would limit the growth of payments to financially stronger provinces — including British Columbia — to less than 50 percent. This Court rejected the Government of British Columbia's challenge to the bill (which was eventually passed into law). Sopinka J., writing for a unanimous Court, held on the basis of the principle of parliamentary sovereignty that Parliament was free to amend the *Plan* as it did, and that the terms of the agreement could not restrict its power to effect such change. On this, he specifically acknowledged that the federal executive "could not bind Parliament from exercising its powers to legislate amendments to the *Plan*" (p. 548), and that parliamentary sovereignty "prevents a legislative body from binding itself as to the substance of its future legislation" (p. 563).
>
> [64] A similar issue arose in *Wells v. Newfoundland*, 1999 CanLII 657 (SCC), [1999] 3 S.C.R. 199, in which this Court considered a claim for damages brought by Mr. Wells, a member of the Public Utilities Board, after amendments made to the *Public Utilities Act*, R.S.N. 1970, c. 322, by the Newfoundland House of Assembly had led to his position being abolished. As per the terms of his appointment, he was entitled to serve as a commissioner of the Board during good behaviour until the age of 70. This Court found that these terms were part of an enforceable contract of employment with the Crown and could thus form the basis of a claim for breach of contract. Relying on the opinion in *Reference re Canada Assistance Plan*, however, it unanimously affirmed that this employment contract did not in any way fetter the House of Assembly's authority to restructure or eliminate the Public Utilities Board pursuant to its constitutionally protected law-making powers. Although this Court found that Mr. Wells was still entitled to pursue a claim for breach of contract against the Government of Newfoundland, it relied on the principle of parliamentary sovereignty in affirming the primacy of the legislature's will over acts of the executive.
>
> [65] Interestingly, in both *Reference Re Canada Assistance Plan* and *Wells*, this Court supported its decision by quoting the following passage from the Supreme Court of South Australia in *West Lakes*:
>
> > Ministers of State cannot, however, by means of contractual obligations entered into on behalf of the State fetter their own freedom, or the freedom of their successors or the freedom of other members of parliament, to propose, consider and, if they think fit, vote for laws, even laws which are inconsistent with the contractual obligations. [p. 390]
>
> […]
>
> [67] In short, the foregoing makes clear that the principle of parliamentary sovereignty is precisely what preserves the provincial legislatures' right to enact, amend and repeal their securities legislation *independently* of the Council of Ministers' approval. Therefore, even if the Memorandum actually purported to fetter this legislative power, it would be merely *ineffective* in this regard (since it cannot bind the legislature), and not *constitutionally invalid*.

When discussing parliamentary sovereignty, judges and lawyers do not always distinguish between questions of force and questions of scope. Indeed, the difference between the two may not always be easy to identify. Some scholars, for example, argue that basic moral principles form part of the common law and that judges can refuse to apply legislation when it directly conflicts with these principles. Is this because these principles form the outer boundary of parliament's jurisdiction and thus limit the *scope* of its lawmaking power? Or is it because, instead, the legal *force* of a statute is weak when it conflicts with an important legal principle that might thus override it?

This is a debate that is particularly relevant in countries that do not have a written and entrenched constitution, like the United Kingdom. In Canada, judges have been reluctant to add constraints that are not already provided for in the written texts that form the "Constitution of Canada". One exception concerns the principle of free and open political discourse, sometimes interpreted (in limited circumstances) by courts as a necessary component of a parliamentary system of government. Those cases are discussed in Chapter 13, "Charter Antecedents". The case of *Toronto (City)* v. *Ontario (Attorney General)*, [2021] 2 SCR 845, 2021 SCC 34 is illustrative of the foregoing. In this case, the majority declined to rely on the "unwritten constitutional principle" of democracy to strike down legislation. The case is discussed in the chapters dealing with Charter interpretation, freedom of expression, and democratic rights.

3.4 Implied Repeal, Clear Statement Rules and Interpretive Presumptions

Another element of parliamentary sovereignty is the doctrine of implied repeal: a principle of statutory interpretation that Parliament will be taken to have impliedly repealed a previous statutory provision if it is inconsistent with a more recent enactment. The rule of law requires that the law not make contradictory demands on its subjects or on the courts which must apply the law. As A.V. Dicey emphasized in the excerpt above from his *Introduction to the Study of the Law of the Constitution*, the sovereignty of parliament entails the power to make *and unmake*

any law whatsoever. Thus, where two statutes seem to be in conflict, the last to be enacted will be understood as the expression of parliament's will. Parliament then does not need to say explicitly that it is repealing an earlier statute, though it ordinarily does make this explicit.

In England, the doctrine of implied repeal received its clearest expression in two decisions of the Court of King's Bench in the 1930s. In 1919 the UK Parliament enacted a statute, which provided that "The provisions of the Act or order by which the land is authorised to be acquired, or of any Act incorporated therewith, shall, in relation to the matters dealt with in this Act, have effect subject to this Act, and so far as inconsistent with this Act those provisions shall cease to have or shall not have effect". In 1925, the Parliament passed another statute that conflicted with the 1919 law without expressly repealing it. The cases of *Vauxhall Estates Ltd* v. *Liverpool Corporation*, [1932] 1 K.B. 732 and *Ellen Street Estate* v. *Minister of Health*, [1934] 1 K.B. 590 considered the effect of this later statute. In both cases, the Court refused to give effect to the 1919 statute. In *Ellen Street Estate*, Lord Maugham expressed the matter thus:

> [Counsel] contends that as regards subsequent legislation, in the absence of an express repeal of this provision of the Acquisition of Land (Assessment of Compensation) Act, 1919, the provisions of that Act must apply, however clear the intention of Parliament, as expressed in the subsequent Act, is to modify the provisions of the Act of 1919. I am quite unable to accept that view. The Legislature cannot, according to our constitution, bind itself as to the form of subsequent legislation, and it is impossible for Parliament to enact that in a subsequent statute dealing with the same subject matter there can be no implied repeal. If in a subsequent Act Parliament chooses to make it plain that the earlier statute is being to some extent repealed, effect must be given to that intention just because it is the will of the Legislature.

It should be noted that the doctrine of implied repeal is a corollary of parliamentary sovereignty, but it does not depend on it. For example, the doctrine is also applied to municipal by-laws, even though municipalities are not sovereign legislatures. It is also recognized in international law and in other jurisdiction that do not have parliamentary sovereignty. The Latin maxim *Lex posterior derogate lex priori* expresses this general rule of statutory interpretation whereby later laws trump former laws. The leading text on constitutional law in Canada adopts this view, that "[t]he incapacity of an elected legislative assembly to bind its successors as to the substance of future legislation seems such a fundamental requirement of democracy that one is tempted to suggest that the incapacity must be inherent in all elected assemblies." (Peter Hogg & Wade Wright, *Constitutional Law of Canada*, 5th ed online, Toronto, Carswell, 2025, § 12:9, fn 4.)

There are of course other rules of statutory interpretation that a court may employ to resolve apparent conflicts between statutes. The Latin maxim *Lex specialis derogate lex generalis* expresses the interpretive principle that a more specific law derogates from and thus prevails over a more general law. As Elmer Driedger writes, "In some cases [judges and lawyers] say that a special statute overrides a general statute. If the special statute is also later, they say that the special has impliedly repealed the earlier in so far as they are inconsistent, or that the special amended the general by subtracting the subject-matter of the special from the subject-matter of the general. If the special statute is earlier, they cannot say it repealed the later, but they can say that the subject-matter of the general does not include the subject-matter of the special. Whatever they say, they are in fact simply ignoring the general statute and applying the special to the facts before them." (Elmer A. Driedger, "The Meaning and Effect of the Canadian Bill of Rights: A Draftman's Viewpoint", (1977) 9:2 Ottawa Law Review 303, p. 309).

In the 1970s, the Canadian courts began to regard some statutes as "quasi-constitutional", and to adapt their interpretive approach to these statutes in a way that recognized their fundamental importance. This recognition of "quasi-constitutional" legislation, provides a third way in which the courts may sometimes resolve conflicts between statutes.

In *Ontario Human Rights Commission* v. *Simpson-Sears*, Justice McIntyre when interpreting a provincial human rights code noted that: "The accepted rules of construction are flexible enough to enable the Court to recognize in the construction of a human rights code the special nature and purpose of the enactment […], and give to it an interpretation which will advance its broad purposes. Legislation of this type is of a special nature, not quite constitutional but certainly more than the ordinary--and it is for the courts to seek out its purpose and give it effect." (*Ontario Human Rights Commission* v. *Simpson-Sears*, 1985 CanLII 18 (SCC), [1985] 2 SCR 536, para. 12)

The Canadian courts have not yet developed a clear or comprehensive account of quasi-constitutional legislation. In the absence of such an account, it may be difficult to determine which statutes are quasi-constitutional. The courts have said that quasi-constitutional statutes have "a special status in the Canadian legal framework" (*Lavigne* v. *Canada (Office of the Commissioner of Official Languages)*, 2002 SCC 53, para. 23) that reflects "certain basic goals of our society" and that they must be interpreted so "as to advance the broad policy considerations underlying [them]" (*Robichaud* v. *Canada (Treasury Board)*, 1987 CanLII 73 (SCC), [1987] 2 SCR 84, para. 8). Also, courts are now more willing to accept "clear statement rules" like the one in the *Canadian Bill of Rights*, which provide that this statute will prevail over any other conflicting statute, even when the conflicting statute is a later enactment, unless the later statute clearly provides otherwise. One can find such provisions, for example, in the federal *Official Languages Act* (s. 82(1)) or the *Quebec Charter of Human Rights* (s. 52). (See Vanessa MacDonnell, "A Theory of Quasi-Constitutional Legislation", (2016) 53:2 Osgoode Hall Law Journal 508).

Other examples of statutes that courts have recognized as "quasi-constitutional" even if they do not include such clear statement rules include the *Privacy Act*, the *Access to Information Act*, and human rights codes like the *Canadian Human Rights Act* or the *Ontario Human Rights Code*.

These interpretative presumptions —the doctrine of implied repeal, the doctrine that a specific law derogates from a general law, and the recognition of quasi-constitutional legislation — serve to mitigate conflicts between statutes. But there are other important interpretive presumptions that courts have long used to address conflicting laws and that may have the effect of tempering parliamentary sovereignty. For example, courts have generally required that parliament use clear and plain language to extinguish a common law right or the royal prerogative.

In the case of *Wells* v. *Newfoundland*, the Supreme Court of Canada recognized that the legislature of Newfoundland could abolish the office of Mr. Wells (a public position with quasi-judicial responsibility), but that mere abolition of his office would not be interpreted as a statutory extinguishment of Wells' contractual right to compensation under his employment agreement with the Crown: "While the legislature may have the extraordinary power of passing a law to specifically deny compensation to an aggrieved individual with whom it has broken an agreement, clear and explicit statutory language would be required to extinguish existing rights previously conferred on that party." (*Wells* v. *Newfoundland*, 1999 CanLII 657 (SCC), [1999] 3 SCR 199, para. 41.)

The courts will also require clear and plain language when the legislature wants to limit the Crown prerogative. This interpretive rule is now provided by statute in the *Interpretation Act*, RSC 1985 c. I-21: "No enactment is binding on Her Majesty or affects Her Majesty or Her Majesty's rights or prerogatives in any manner, except as mentioned or referred to in the enactment."

We can see that the doctrine of parliamentary sovereignty is thus tempered by different interpretive presumptions. While courts will give effect to parliamentary law-making, courts may still require Parliament or the legislature to use clear, plain, and unambiguous language in some contexts. In other words, if statutory language is unclear, courts are unlikely to interpret legislation in a way that will negatively affect someone's rights or interests, such as stripping someone of their rights at common law, or important statutory rights, such as those protected by human rights statutes, or limiting the Crown's prerogative. It is the lawmakers' constitutional responsibility to express clearly and plainly what they intend to do and, presumably, to explain the overriding reasons that justify their legislative decision in these instances.

4 Crown – executive government in Canada

4.1 Preliminary observations: what is government?

When people refer to the "government" of Canada, what do they have in mind? The term is often used in different ways. We may think of government as a massive, faceless bureaucracy that requires us to pay taxes, complete forms, obtain licences and permits, *etc*. We may think of government in terms of political personalities or parties—*e.g.* the "Harper government" or the "Liberal government". We will often praise or criticize government for its handling of the economy or its stand on international affairs or the laws it has made or failed to make. Some of these uses of the term are what McIntyre J. called "government in its generic sense ... meaning the whole of the governmental apparatus of the state"; but, he insisted, this sense of government must be distinguished from the narrower understanding of government as "the executive government" of the state. [39]

It is this latter understanding of government that is baked into Canadian constitutional law. As we have seen, the *Constitution Act, 1867* states in its preamble that it is expedient to provide for both "the Constitution of the Legislative Authority in the Dominion" as well as "the Nature of the Executive Government therein". With this preambular commitment to establishing an *executive government* separate from *legislative authority*, we can turn to the substantive provisions of the Act to discover what the executive government is. In doing so, however, we immediately confront a kind of constitutional cognitive dissonance.

Most Canadians would, upon reflection, probably agree that the executive government of the day, federally or provincially, is centred within a *cabinet* of *ministers* led by a *prime minister* or *premier*, with each cabinet minister leading a department of government relating to some aspect of public affairs (defence, health, transportation, finance, education, *etc*.). Yet the provisions on executive government in the *Constitution Act, 1867* make no mention of cabinets, prime ministers, or premiers. Instead, the text introduces us to another set of offices and institutions—the queen, governor general, lieutenant governors, privy council, and executive councils. Today's reader of the written constitution may be forgiven for thinking that they have entered a museum of constitutional relics.

From the beginning, however, the *Constitution Act, 1867* was premised upon the possibility of a kind of double constitutional life: that institutions could be described one way in law with an understanding that they would operate another way in practice. To work out this distinctive constitutional arrangement, we need to begin by setting out the written provisions of the Constitution of Canada that address the executive branch of state—keeping in mind that these provisions tell at best only half the story.

4.2 The legal framework for executive power

4.2.1 Provisions of the Constitution of Canada relating to the crown and executive government

Constitution Act, 1867

...

III. Executive Power

Declaration of Executive Power in the Queen

9. The Executive Government and Authority of and over Canada is hereby declared to continue and be vested in the Queen.

Application of Provisions referring to Governor General

10. The Provisions of this Act referring to the Governor General extend and apply to the Governor General for the Time being of Canada, or other the Chief Executive Officer or Administrator for the Time being carrying on the Government of Canada on behalf and in the Name of the Queen, by whatever Title he is designated.

Constitution of Privy Council for Canada

11. There shall be a Council to aid and advise in the Government of Canada, to be styled the Queen's Privy Council for Canada; and the Persons who are to be Members of that Council shall be from Time to Time chosen and summoned by the Governor General and sworn in as Privy Councillors, and Members thereof may be from Time to Time removed by the Governor General.

..

Application of Provisions referring to Governor General in Council

13. The Provisions of this Act referring to the Governor General in Council shall be construed as referring to the Governor General acting by and with the Advice of the Queen's Privy Council for Canada.

...

Command of Armed Forces to continue to be vested in the Queen

15. The Command-in-Chief of the Land and Naval Militia, and of all Naval and Military Forces, of and in Canada, is hereby declared to continue and be vested in the Queen.

Seat of Government of Canada

16 Until the Queen otherwise directs, the Seat of Government of Canada shall be Ottawa.

...

V. Provincial Constitutions

Executive Power

Appointment of Lieutenant Governors of Provinces

58. For each Province there shall be an Officer, styled the Lieutenant Governor, appointed by the Governor General in Council by Instrument under the Great Seal of Canada.

Tenure of Office of Lieutenant Governor

59. A Lieutenant Governor shall hold Office during the Pleasure of the Governor General; but any Lieutenant Governor appointed after the Commencement of the First Session of the Parliament of Canada shall not be removeable within Five Years from his Appointment, except for Cause assigned, which shall be communicated to him in Writing within One Month after the Order for his Removal is made, and shall be

> communicated by Message to the Senate and to the House of Commons within One Week thereafter if the Parliament is then sitting, and if not then within One Week after the Commencement of the next Session of the Parliament.
>
> **...**
>
> **Application of Provisions referring to Lieutenant Governor**
>
> **62.** The Provisions of this Act referring to the Lieutenant Governor extend and apply to the Lieutenant Governor for the Time being of each Province, or other the Chief Executive Officer or Administrator for the Time being carrying on the Government of the Province, by whatever Title he is designated.
>
> **Appointment of Executive Officers for Ontario and Quebec**
>
> **63.** The Executive Council of Ontario and of Quebec shall be composed of such Persons as the Lieutenant Governor from Time to Time thinks fit, and in the first instance of the following Officers, namely, — the Attorney General, the Secretary and Registrar of the Province, the Treasurer of the Province, the Commissioner of Crown Lands, and the Commissioner of Agriculture and Public Works, with in Quebec the Speaker of the Legislative Council and the Solicitor General. [
>
> **Executive Government of Nova Scotia and New Brunswick**
>
> **64.** The Constitution of the Executive Authority in each of the Provinces of Nova Scotia and New Brunswick shall, subject to the Provisions of this Act, continue as it exists at the Union until altered under the Authority of this Act.
>
> ...
>
> **Application of Provisions referring to Lieutenant Governor in Council**
>
> **66.** The Provisions of this Act referring to the Lieutenant Governor in Council shall be construed as referring to the Lieutenant Governor of the Province acting by and with the Advice of the Executive Council thereof.
>
> ...
>
> **Seats of Provincial Governments**
>
> **68.** Unless and until the Executive Government of any Province otherwise directs with respect to that Province, the Seats of Government of the Provinces shall be as follows, namely, — of Ontario, the City of Toronto; of Quebec, the City of Quebec; of Nova Scotia, the City of Halifax; and of New Brunswick, the City of Fredericton.

These provisions from Parts III and V of the *Constitution Act, 1867* establish a skeletal legal framework for executive authority in Canada. The Queen is confirmed to be vested with the "Executive Government and Authority of and over Canada" (s. 9); a Governor General "carr[ies] on the Government of Canada on behalf and in the Name of the Queen" (s. 10); and the Queen's Privy Council for Canada, whose members are appointed by the governor general, is established "to aid and advise in the Government of Canada" (s. 11).

The *Constitution Act, 1867* was not meant to be a complete constitutional code; a background legal world brings its terms to life. The Act constitutes neither the office of queen nor governor general. The provisions on executive government refer to "the Queen", who in 1867 was Victoria, but it originally stated in section 2 that references to "the Queen" extend "also to the Heirs and Successors of Her Majesty, Kings and Queens of the United Kingdom". Rather than establish the office of governor general, the Act simply says that references to the office are to the governor general "for the Time being" of Canada. The office of governor general is constituted by letters patent issued by the queen or king, the present version dating from 1947 and each occupant of the office is appointed by commission issued by the king or queen. On these points, see section 2.3 above.

With each of its bald pronouncements about executive government, then, the *Constitution Act, 1867* draws upon a long lineage of legal ideas. "Behind the written word is an historical lineage stretching back through the ages".[40] The vesting of executive government in "the Queen" follows ancient notions about monarchical governance. In his famous *Commentaries on the Laws of England*, Sir William Blackstone wrote in 1765: "The supreme executive power is vested by our laws in a single person, the king or queen".[41] The establishment of a Canadian privy council also tracks ancient forms. Medieval kings governed through a *curia regis*—a court or council—from which over the course of centuries there evolved separate bodies with distinct executive, legislative, and judicial functions, including, according to Blackstone, a "noble, honorable, and reverend assembly" known as the "privy council" to which the king summoned "the principal officers [or ministers] of state" to provide advice on executive or administrative affairs (as well as on certain judicial affairs through a distinct judicial committee consisting of judges).[42] In Canada, the governor general is to summon and seek the aid and advice of a similar body of councillors in relation to governmental affairs (but not on judicial matters).

4.2.2 The crown and provincial executive government

Any thought that references to the "Government of Canada" in Part III of the *Constitution Act, 1867* might refer to executive authority over Canada in a global sense—over both federal and provincial affairs—is precluded by the provisions on provincial executive power in Part V of the Act which contemplate separate provincial governments in the form of a "Lieutenant Governor" tasked with "carrying on the Government of the Province" (s. 62) acting where necessary "by and with the Advice of" an "Executive Council" (s. 66).

The provisions of the *Constitution Act, 1867* on provincial executive government are at first glance confusing because they treat the new provinces, Ontario and Quebec, formed out of the predecessor province of Canada, differently from the pre-existing provinces of Nova Scotia and New Brunswick, and because they have not been amended to reflect the subsequent admission of six other provinces: Manitoba (1870), British Columbia (1871), Prince Edward Island (1873), Saskatchewan (1905), Alberta (1905), and Newfoundland and Labrador (1949).

The instruments admitting new provinces are listed in the Schedule to the *Constitution Act, 1982* and are therefore included within the "Constitution of Canada" as defined by section 52(2) of the *Constitution Act, 1982*. These instruments either establish lieutenant governors and executive councils for the new province[43] or provide for the continuity of the pre-existing "Constitution of Executive Authority" (and thus lieutenant governor and executive council) in the province[44], and all instruments of admission provide that each new province occupies the same position as the original provinces.[45]

It should be noted that the constitutions of the Northwest Territories, Yukon, and Nunavut are found in federal statutes that are not listed in the Schedule to the *Constitution Act, 1982* and so are not expressly included within the "Constitution of Canada", but the structure of executive authority in the territories resembles that found in the provinces, with a "Commissioner" (rather than a lieutenant governor) appointed by the governor in council and an "Executive Council" appointed by the commissioner (in Nunavut appointments being "on the recommendation of the Legislative Assembly of Nunavut").[46]

The "Government of Canada" and the "Government of the Province" are thus two separate sets of executive governments established or recognized by the Constitution of Canada. However, the references to the queen in the provisions constituting the federal government are not paralleled with similar references to the queen in the provisions on provincial governments. Also, the lieutenant governors are appointed by

the governor general in council (s. 58), not the queen. These points are consistent with the prevailing view upon confederation that the lieutenant governors represented the federal government rather than the crown directly, and this in turn was consistent with the subordination of provinces to federal authority. In *Lenoir v. Ritchie*, 1879 SCC 37, Gwynne J. said:

> ... the Provincial Governments are, as it were, carved out of, and subordinated to, the Dominion. The head of their executive Government is not an officer appointed by Her Majesty, or holding any commission from her, or in any manner personally representing her, but an officer of the Dominion Government, appointed by the Governor-General, acting under the advice of a council, which the act constitutes the Privy Council of the Dominion. The Queen forms no part of the Provincial Legislatures, as she does of the Dominion Parliament. [47]

The subsequent rejection of this view by the courts (two leading cases follow) was a critical step in the emergence of a robust version of federalism in Canada.

4.2.2.1 *Maritime Bank of Canada (Liquidators of) v.New Brunswick (Receiver-General)*, [1892] A.C. 437

Judicial Committee of the Privy Council

APPEAL from a judgment of the Supreme Court of Canada (Dec. 14, 1889), affirming a judgment of the Supreme Court of New Brunswick (Oct. 19, 1888) upon a special case submitted.

[*Background:* A bank in New Brunswick became insolvent and declared bankruptcy. The law of bankruptcy provides that unsecured creditors will be paid from whatever funds are still available in order of a ranking (*e.g.*, employees, shareholders, customers, *etc*.). It is one peculiar feature of British constitutional law that the Crown, if it is a creditor, stands *first* in line to be paid, and this priority is an established right by virtue of the Crown's "royal prerogative", or inherent common law powers. The government of New Brunswick had deposits in the insolvent bank. The question of constitutional law in this case was whether New Brunswick could claim priority by virtue of the crown prerogative.]

The Attorney General (Sir R. Webster), Stockton, Q.C. (of the New Brunswick bar), and R. Brown, for the appellants:

The prerogative rights of the Crown cannot be invoked and exercised by the provincial government, as distinguished from the Dominion Government. There is no section in the *British North America Act of 1867* which gives this Crown right to the province. Accordingly, if the province possesses that right it must be on the general principle that the Lieutenant-Governor is entitled to exercise the prerogative of the Crown. But the effect of the Act of 1867 is that the Dominion Government represents the four provinces existing at the time of the Union and other provinces which were thereafter to be constituted; and, consequently, the direct connection between the Crown and the provinces has ceased. The Governor-General of Canada is the real representative of the Crown as the Dominion is at present constituted; and the Lieutenant-Governor of each province is not.

Sir H. Davey, Q.C., Blair, Q.C. (Attorney General for New Brunswick), and Ingle Joyce, for the respondent:

Before the [British North America] Act of 1867 each provincial government exercised the prerogatives of the Crown. They are reserved to them by the [1867] Act. Sects. 64 and 65 read together mean that the powers and authorities vested in and exercised by the provincial government at the time of the Union should continue. These powers cannot be cut down except by express enactment, and there is nothing either in the Act of 1867 or in any subsequent Act which abolishes or alters them. According to the true effect of that Act the provincial governments and legislatures are within their respective spheres supreme. They are not made in any way subordinate to the legislature and government of the Dominion. The intention was that the Dominion and the provinces should have co-ordinate authority within their respective spheres, all subject to the control of the Imperial Parliament.

The judgment of their Lordships was delivered by

Lord Watson: --

Their Lordships do not think it necessary to examine, in minute detail, the provisions of the [British North America] Act of 1867, which nowhere profess to curtail in any respect the rights and privileges of the Crown, or to disturb the relations then subsisting between the Sovereign and the provinces. The object of the Act was neither to weld the provinces into one, nor to subordinate provincial governments to a central authority, but to create a federal government in which they should all be represented, entrusted with the exclusive administration of affairs in which they had a common interest, each province retaining its independence and autonomy. That object was accomplished by distributing, between the Dominion and the provinces, all powers executive and legislative, and all public property and revenues which had previously belonged to the provinces; so that the Dominion Government should be vested with such of these powers, property, and revenues as were necessary for the due performance of its constitutional functions, and that the remainder should be retained by the provinces for the purposes of provincial government. ...

It is clear, therefore, that the provincial legislature of New Brunswick does not occupy the subordinate position which was ascribed to it in the argument of the appellants. It derives no authority from the Government of Canada, and its status is in no way analogous to that of a municipal institution, which is an authority constituted for purposes of local administration. ...

In asking their Lordship to draw that inference from the terms of the statute [*i.e.*, that the provinces are akin to municipal governments and subordinate to the federal government], the appellants mainly, if not wholly, relied upon the fact that, whereas the Governor-General of Canada is directly appointed by the Queen, the Lieutenant-Governor of a province is appointed, not by Her Majesty, but by the Governor-General, who has also the power of dismissal. If the Act had not committed to the Governor-General the power of appointing and removing Lieutenant-Governors, there would have been no room for the argument, which, if pushed to its logical conclusion, would prove that the Governor-General, and not the Queen, whose Viceroy he is, became the sovereign authority of the province whenever the Act of 1867 came into operation. But the argument ignores the fact that, by sect. 58, the appointment of a provincial governor is made by the "Governor-General in Council by Instrument under the Great Seal of Canada," or, in other words, by the Executive Government of the Dominion, which is, by sect. 9, expressly declared "to continue and be vested in the Queen." There is no constitutional anomaly in an executive officer of the Crown receiving his appointment at the hands of a governing body who have no powers and no functions except as representatives of the Crown. The act of the Governor-General and his Council in making the appointment is, within the meaning of the statute, the act of the Crown; and a Lieutenant-Governor, when appointed, is as much the representative of Her Majesty for all purposes of provincial government as the Governor-General himself is for all purposes of Dominion government.

...

Being of opinion that the decisions of both Courts below were sound, and agreeing with the reasons assigned by the learned judges, their Lordships will humbly advise Her Majesty to affirm the judgment appealed from, and to dismiss the appeal.

4.2.2.2 *Reference re: Initiative and Referendum Act (Man.)*, 1919 CanLII 426 (UK JCPC), [1919] A.C. 935

Judicial Committee of the Privy Council

Viscount Haldane

> In this case, questions were raised in the Province of Manitoba as to the validity of an Act passed by its Legislature and entitled the *Initiative and Referendum Act*. ... [Viscount Haldane explained the gist of the impugned statute: it allowed for laws to be made in Manitoba by direct vote of the electors—by a referendum—rather than through the passage of a bill by the Legislative Assembly and the granting of assent by the Lieutenant Governor.]
>
> The framework of the constitution of Canada was enacted in 1867 by the Imperial Parliament in order to give effect to the desire expressed in the resolutions adopted by the conference of Canadian and other delegates held at Quebec in October, 1864. The object was to form in the first instance out of the old Province of Canada, along with Nova Scotia and New Brunswick, a Dominion with a constitution similar in principle to that of the United Kingdom. Provision was made for the extension of this constitution to other Colonies, such as Newfoundland and Prince Edward Island, should they desire to come in, and also to Rupert's Land and the N.W.T. [Northwest Territories]. It is out of these last [territories] that the Province of Manitoba was formed [in 1870] ...
>
> The Executive Government of Canada was declared by the Act of 1867 to remain vested in the Queen, and, by s. 12, all powers, authorities and functions vested in or exercisable by the Governors or Lieutenant-Governors of the Provinces brought into Confederation were, so far as the same continued in existence and were capable of being exercised after the Union in relation to the Government of Canada, to be vested in and exercisable by the Governor-General. A Parliament was then set up for Canada.
>
> Part V of the Act established analogous constitutions for the Provinces. For each of these there was to be a Lieutenant-Governor. Although he is under s. 58 appointed by the Governor-General, it has been settled by decisions of the Judicial Committee, such as that in *Liquidators of the Maritime Bank of Canada v. The Receiver-General of New Brunswick* [1892], A.C. 437, that, as the appointment of a Provincial Governor is made under the Great Seal of Canada, and therefore really by the Executive Government of the Dominion which is in the Sovereign, the Lieutenant-Governor is as much the representative of His Majesty for all purposes of Provincial government as is the Governor-General for all purposes of Dominion government. ... The scheme of the Act passed in 1867 was thus, not to weld the Provinces into one, nor to subordinate Provincial Governments to a central authority, but to establish a Central Government in which these Provinces should be represented, entrusted with exclusive authority only in affairs in which they had a common interest. Subject to this, each Province was to retain its independence and autonomy, and to be directly under the Crown as its head. ...
>
> ... The analogy of the British constitution is that on which the entire scheme is founded, and that analogy points to the impropriety, in the absence of clear and unmistakable language, of construing s. 92 as permitting the abrogation of any power which the Crown possesses through a person who directly represents it. For when the Lieutenant-Governor gives to or withholds his assent from a Bill passed by the Legislature of the Province, it is in contemplation of law the Sovereign that so gives or withholds assent. Moreover, in accordance with the analogy of the British constitution which the Act of 1867 adopts, the Lieutenant-Governor who represents the Sovereign is a part of the Legislature. ... It follows that if the *Initiative and Referendum Act* has purported to alter the position of the Lieutenant-Governor in these respects, this Act was insofar *ultra vires*.

The above two cases confirm that the executive government of the provinces vests in the crown as represented directly by the lieutenant governor. As Taschereau J. later said: "the Lieutenant-Governor stands in a unique position, fulfilling in the Province, for which he is appointed the duties fulfilled by the King himself in England, and which no one else can exercise".[48] That the provincial lieutenant governors came to be seen as crown and not federal government representatives was profoundly important for the emergence of provinces as equal and co-ordinate constitutional entities with the federal level. There is, in other words, a crown in right of each province as well as a crown in right of Canada.[49]

Does the *Indian Association of Alberta* case (section 2.4.1 above) mean that therefore there is a King of Ontario, King of Manitoba, King of Quebec, *etc.*, as well as a King of Canada? Full divisibility of kingships followed upon Canada's independence from the UK. Within the state of Canada, however, "divisibility of the Crown ... does not mean that there are eleven Queens or eleven Sovereigns"; it means, rather, that internally the single queen or king has eleven jurisdictional manifestations.[50] Federalism produces a "compound monarchy" in Canada.[51] It is important to observe that the Yukon, Northwest Territories, and Nunavut occupy the position provinces were thought to have in *Lenoir v. Ritchie*: unlike provincial lieutenant governors, the territorial commissioners do not represent the crown directly and "there is not, in law, a 'territorial' Crown ... or Her Majesty the Queen 'in right of the Territories'".[52]

Just as the crown in right of Canada embodies the juridical identity of the Canadian state, the provincial crowns can be seen to embody the juridical identities of the provincial polities. Several examples illustrate this point. If you wish to sue "Ontario" for the negligence of one of its officials, you sue "the Crown in right of Ontario".[53] Lands that that are no longer subject to aboriginal title and have not yet been granted are *crown* lands. Ontario's *Land Titles Act* assumes that public lands in the province are "owned by Her Majesty the Queen in right of Canada or Ontario"[54]—though by virtue of section 109 of the *Constitution Act, 1867* most public land belongs to the crown in right of the provinces rather than in right of Canada.

These two examples, crown liability and crown title to land, illustrate how the representation of the crown as the polity may be legally contemplated at the provincial level—but they may not be constitutionally mandated. Both appear to have been abolished in Quebec: one sues the "State" for wrongdoing committed by a provincial official in Quebec[55], and public lands in Quebec are lands that "belong to the State and form part of its domain".[56] Since the 1960s, Quebec has gradually eliminated statutory references to the crown where constitutionally permissible.

4.2.3 Filling in the details of the legal framework for executive government: common law and statutory contexts

The written provisions of the *Constitution Act, 1867* (set out in section IV.B.1 above) provide only a skeletal legal framework for executive government in Canada. Upon reading these provisions, the obvious question is: where is the prime minister, premiers, and cabinet ministers? We confront that question in section IV.B.6 below. First, however, let's consider two other questions. The term "Executive Government" is used in relation to both federal and provincial governments in the Act—but what are the functions or tasks ascribed by the constitution to executive government? And what are the sources of legal power or authority to perform those functions or tasks?

The specific functions or tasks that the *Constitution Act, 1867* expressly allocates to the executive government are very important, but not very many. One rather large job it confirms for the king or queen is that she is to be commander-in-chief of land and naval forces (s. 15). The Act also gives specific functions to the crown's representatives to carry out on behalf of the king or queen—*e.g.*, the governor general appoints privy councillors (s. 11), appoints senators (s. 24), summons and dissolves the House of Commons (ss. 38, 50), gives or withholds royal assent to bills passed by the houses of parliament (s. 55), appoints lieutenant governors (s. 58), and appoints provincial superior court judges (s. 96). Certain of these tasks the governor general performs on behalf of the king or queen in their capacity as a component of parliament, in particular giving or withholding royal assent to bills, and are therefore part of the legislative rather than executive function. In

contrast, appointment powers and summoning, proroguing, and dissolving legislatures are executive functions. As important as these tasks are, however, they do not come close to defining the role of a proper government in a modern society. The Act does not say much at all about what the executive does or should do in carrying out the day-to-day government of Canada and its provinces.

In fact, there was no mystery about this question in 1867. Transitional provisions meant that the new country hit the road running. The governor general and lieutenant governors assumed whatever statutory powers pre-confederation governors enjoyed (ss. 12, 65), and the laws of the confederating provinces continued in force and governmental officers at all levels remained in office (s. 129), with those officers exercising powers falling *outside* the newly defined legislative competences of the provinces becoming, instantly, *federal* officers (s. 130). For the new provinces of Ontario and Quebec, specific members for the first sitting of the executive councils were even identified, e.g., the Treasurer of the Province, Commissioner of Crown Lands, and Commissioner of Agriculture and Public Works (s. 63), and these and other officers retained pre-existing powers (s. 135).

All of these transitional provisions were prefaced with the same important qualification: existing executive offices continued until the relevant legislature, federal or provincial, "otherwise provides". So, in 1867 Canada inherited an executive departmental infrastructure, which automatically divided between federal and provincial levels, but with the expectation that federal and provincial legislatures would define and redefine that infrastructure in the years to come. The Constitution of Canada leaves a largely open canvass upon which federal and provincial legislatures may give shape and colour to executive government.

Indeed, from the beginning provincial legislative authority even included the authority to *amend* provincial constitutions, including the executive government of the province, "except as regards the Office of Lieutenant Governor" (s. 92(1)), an analogous power being allocated to the federal parliament in 1949 (s. 91(1)). This authority to amend constitutional rules relating to the executive (and legislative) institutions, unilaterally by ordinary statute, is now conferred upon federal and provincial legislatures by sections 44 and 45 of the *Constitution Act, 1982* —except, it must be emphasized, as regards constitutional amendments to "the office of the Queen, the Governor General and the Lieutenant Governor of a province" which require unanimous federal and provincial consent (s. 41(a)).[57]

In short, ordinary legislation has always been the primary method by which executive government is legally defined. However, we might imagine someone saying that, surely, there must be certain inherent and general powers of executive government above and beyond powers that happen to be given or taken by ordinary statute, powers that vest in the executive government by virtue of the *Constitution Act, 1867* itself. Surely, it may be argued, there are general executive powers flowing directly or indirectly from the vesting of the "Executive Government and Authority" over Canada in the queen (s. 9). On this point, the following excerpt from the *Patriation Reference* suggests an answer.

4.2.3.1 *Reference re Amendment of the Constitution of Canada [the Patriation Reference]*, 1981 CanLII 25 (SCC), [1981] 1 SCR 753

Supreme Court of Canada

Martland, Ritchie, Dickson, Beetz, Chouinard and Lamer JJ.

A substantial part of the rules of the Canadian constitution are written. They are contained not in a single document called a constitution but in a great variety of statutes some of which have been enacted by the Parliament at Westminster, such as the *British North America Act, 1867*, 1867 (U.K.), c. 3, (the B.N.A. Act) or by the Parliament of Canada, such as *The Alberta Act*, 1905 (Can.), c. 3, *The Saskatchewan Act, 1905* (Can.), c. 42, the *Senate and House of Commons Act*, R.S.C. 1970, c. S-8, or by the provincial legislatures, such as the provincial electoral acts. They are also to be found in orders in council like the Imperial Order in Council of May 16, 1871 admitting British Columbia into the Union, and the Imperial Order in Council of June 26, 1873, admitting Prince Edward Island into the Union.

Another part of the Constitution of Canada consists of the rules of the common law. These are rules which the courts have developed over the centuries in the discharge of their judicial duties. An important portion of these rules concerns the prerogative of the Crown. Sections 9 and 15 of the B.N.A. Act provide:

> 9. The Executive Government and Authority of and over Canada is hereby declared to continue and be vested in the Queen.
>
> 15. The Commander-in-Chief of the Land and Naval Militia, and of all Naval and Military Forces, of and in Canada, is hereby declared to continue and be vested in the Queen.

But the Act does not otherwise say very much with respect to the elements of "Executive Government and Authority" and one must look at the common law to find out what they are, apart from authority delegated to the executive by statute.

The common law provides that the authority of the Crown includes for instance the prerogative of mercy or clemency ... and the power to incorporate [companies] by charter so as to confer a general capacity analogous to that of a natural person. ... The royal prerogative puts the Crown in a preferred position as a creditor ... It is also under the prerogative and the common law that the Crown appoints and receives ambassadors, declares war, concludes treaties and it is in the name of the Queen that passports are issued.

The above passage from the *Patriation Reference* recognizes one of the most important points about constitutionalism in Canada: leaving aside specific functions or powers mentioned in the *Constitution Act, 1867* itself, executive government has only those functions and powers delegated by regular statutes enacted by provincial or federal legislatures or recognized by common law. The point of section 9 seems to be to confirm *who* has the executive government and not to provide an independent source of executive power; it tells us that the *queen* will govern Canada, and implicitly it tells us that she will govern in the way that kings and queens normally govern. In the Westminster common law/parliamentary system, the crown as executive government has *only* two sources of legal power: powers conferred by ordinary statute law and powers recognized by ordinary common law. We now examine both sources of power briefly.

4.2.4 The royal prerogative as a source of executive power in Canada

The common law provides legal resources for governance in two ways. The crown as a juridical person representing the polity has rights and duties under the general law. The common law, or in Quebec the civil code, may allow governments to advance certain policy objectives through managing property or making contracts with private entities. However, private law provides only limited authority for carrying on the day-to-day governance of the modern state. In contrast, the branch of the common law known as the *royal prerogative* (which is public rather than private common law and so applies in Quebec as in common law provinces), consists of powers, privileges, and immunities derived from the crown's historic position as sovereign and thus provides significant resources for governance. Yet, the royal prerogative is also limited as a practical basis for day-to-day modern governance. Once seemingly absolute, the various prerogative powers have over the centuries been boxed or cabined by common law and at least some of them have been superseded, limited, or even eliminated by statute.

The courts in Canada have generally adopted the definition of the prerogative offered by Albert Venn Dicey. In 1933, Duff C.J. stated:

> The nature of prerogative is, in our opinion, rightly set forth by Mr. Dicey at p. 420 of his *Law of the Constitution* (8th ed.):
>
> > The "prerogative" appears to be both historically and as a matter of actual fact nothing else than the residue of discretionary or arbitrary authority, which at any given time is legally left in the hands of the Crown. The King was originally in truth what he still is in name, "the sovereign," or, if not strictly the "sovereign" in the sense in which jurists use that word, at any rate by far the most powerful part of the sovereign power. [58]

Prerogative powers are thus the remnant of medieval royal powers still vested in the crown. Prerogative power is also, as the judges suggest in the *Patriation Reference*, determined by the common law. The Supreme Court of Canada has more recently adopted Peter Hogg's straightforward definition: "the royal prerogative means 'the powers and privileges accorded by the common law to the Crown'". [59]

These two points about the prerogative have significant implications. First, if the prerogative is simply the remnant of medieval powers enjoyed by the crown, it is unlikely to provide significant legal resources for the day-to-day governance of the modern state. After all, times have changed. Second, if the prerogative consists of mere common law powers and privileges, then its scope is subject to further diminution by ordinary statute: "as statute law expands and encroaches upon the purview of the royal prerogative, to that extent the royal prerogative contracts". [60] This proposition comes with an important yet still rather fuzzy qualification: certain prerogative powers may be integral to the "office" of the crown and thus immune from abolition or limitation without formal constitutional amendment through unanimous federal and provincial consent (see section IV.B.3 above).

The manner in which the prerogative has been boxed or cabined by the common law is of central importance to the way we understand constitutionalism in Canada and other Westminster systems. It will be helpful to sketch the relationship between *prerogative* and *common law*. We will venture back in time to consider several classic statements—which have all been endorsed by modern Canadian courts.

4.2.4.1 Prohibitions del Roy (1607) and the Case of Proclamations (1611)

Prohibitions del Roy (1607) 12 Co. Rep. 63, is a memorandum written by Sir Edward Coke (1552-1634), then Lord Chief Justice of the Common Pleas, summarizing a meeting held between King James I and the common law judges. The king insisted that he had the power by virtue of the royal prerogative (which provides that the crown is the 'fountain of justice') to adjudicate common law cases personally. It should be remembered that, in general, James advanced a theory of royal absolutism. Coke rejected this assertion of royal power. Recording his exchange with the king on this point, Coke wrote:

> "[I]t was answered by me, in the presence, and with the clear consent of all the Judges of England, and Barons of the Exchequer, that the King in his own person cannot adjudge any case, either criminal, as treason, felony, *&c*., or betwixt party and party, concerning his inheritance, chattels, or goods, *&c*., but this ought to be determined and adjudged in some Court of Justice, according to the law and custom of England ... [T]he King cannot take any cause out of any of his Courts, and give judgment upon it himself … [T]hen the King said, that he thought the law was founded upon reason, and that he and others had reason, as well as the Judges: to which it was answered by me, that true it was, that God had endowed His Majesty with excellent science, and great endowments of nature; but His Majesty was not learned in the laws of his realm of England, and causes which concern the life, or inheritance, or goods, or fortunes of his subjects, are not to be decided by natural reason but by the artificial reason and judgment of law, which law is an act which requires long study and experience, before that a man can attain to the cognizance of it: that the law was the golden met-wand and measure to try the causes of the subjects; and which protected His Majesty in safety and peace: with which the King was greatly offended, and said, that then he should be under the law, which was treason to affirm, as he said; to which I said, that Bracton saith, *quod Rex non debet esse sub homine, sed sub Deo et lege.*"

At the end of this testy exchange, Coke resorted to authority. Henry de Bracton was a judge who wrote one of the first treatises on English law in about 1260. The Latin phrase from Bracton may be translated as: *The King is under no man but is under God and law*.

The *Case of Proclamations* (1611) 12 Co. Rep. 74, is a memorandum in which Coke recorded his responses to assertions by James I, conveyed by the Lord Chancellor, that his royal prerogative allowed him to make new laws by proclamation. The Lord Chancellor said that "he would advise the Judges to maintain the power and prerogative of the King; and in cases in which there is no authority and precedent, to leave it to the King to order in it, according to his wisdom, and for the good of his subjects, or otherwise the King would be no more than the Duke of Venice". Coke recorded his response: "I answered ... that the King cannot change any part of the common law, nor create any offence by his proclamation, which was not an offence before, without Parliament ... [T]he law of England is divided into three parts, common law, statute law, and custom; but the King's proclamation is none of them ... [T]he King hath no prerogative, but that which the law of the land allows him."

These memoranda by Coke are brief but powerful: the crown has no inherent or prerogative power to make or change the law without the consent of the houses of parliament or to interfere with the adjudication of cases before the common law courts. The *inherent* prerogative or common law powers of the crown, whatever they are, are purely *executive* and not *legislative* or *judicial*. In Rand J.'s words, "as Bracton laid it down and as Coke admonished James I, he himself [James] was under the law, a law which brooded over England encompassing all persons". [61] Strayer J. cited *Prohibitions del Roy* as articulating "an aspect of the rule of law" that "has been recognized for centuries in the system of public law we inherited in Canada". [62] Brown J. cited the *Case of Proclamations* for the proposition that "parliamentary and judicial functions have been clearly separated from [executive] Crown control". [63]

The powers associated with the expression "Executive Government" in the *Constitution Act, 1867* are constrained by common law principles that—to the posthumous chagrin of James I—put the crown in its executive capacity "*under* the law". As the next case confirms, the law under which the crown and crown ministers are under is just the ordinary law. There is no special *law of state* outside the common law that the executive government can draw upon.

4.2.4.2 *Entick* v. *Carrington,* (1765) 19 St. Tr. 1030

Background: The plaintiff brought an action in trespass against the defendants, the "King's Messengers", who had broken into his house and spent some four hours rummaging through his belongings, breaking boxes and locks, and then carrying off his private papers. The defendants pleaded that they were authorized to conduct this search and seizure under a general warrant issued by the Earl of Halifax, who was the Secretary of State and thus a prominent minister of the crown. The warrant alleged that the plaintiff was guilty of seditious libel and that his papers were to be seized. The plaintiff, who was an outspoken critic of the government of the day, argued that the Secretary of State had no legal authority to issue the warrant.

Court of Common Pleas (England)

Lord Camden C.J.

> [I]f this point should be determined in favour of the jurisdiction [of the Secretary of State], the secret cabinets and bureaus of every subject in this kingdom will be thrown open to the search and inspection of a messenger, whenever the secretary of state shall think fit to charge, or even to suspect, a person to be the author … of a seditious libel. …
>
> This power, so claimed by the Secretary of State, is not supported by one single citation from any law book extant. …
>
> The arguments, which the defendants' counsel have thought fit to urge in support of this practice, are of this kind ... that this power is essential to government, and the only means of quieting clamours and sedition.
>
> Before I state the question, it will be necessary to describe the power claimed by this warrant in its full extent. If honestly exerted, it is a power to seize that man's papers, who is charged upon oath to be the author or publisher of a seditious libel; if oppressively, it acts against every man, who is so described in the warrant, though he is innocent. It is executed against the party, before he is heard or even summoned; and the information, as well as the informers, is unknown. It is executed by messengers with or without a constable … in the presence or the absence of the party, as the messengers shall think fit, and without a witness to testify what passes at the time of the transaction; so that when the papers are gone, as the only witnesses are the trespassers, the party injured is left without proof. If this injury falls upon an innocent person, he is as destitute of remedy as the guilty: and the whole transaction is so guarded against discovery, that if the officer should be disposed to carry off a bank-bill, he may do it with impunity….
>
> Such is the power, and therefore one should naturally expect that the law to warrant it should be clear in proportion as the power is exorbitant.
>
> If it is law, it will be found in our books. If it is not to be found there, it is not law.
>
> The great end, for which men entered into society, was to secure their property. That right is preserved sacred and incommunicable in all instances, where it has not been taken away or abridged by some public law for the good of the whole. The cases where this right of property is set aside by positive law, are various. Distresses, executions, forfeitures, taxes, &c. are all of this description; wherein every man by common consent gives up that right, for the sake of justice and the general good.
>
> By the laws of England, every invasion of private property ... is a trespass. No man can set his foot upon my ground without my licence, but he is liable to an action, though the damage be nothing; which is proved by every declaration in trespass, where the defendant is called upon to answer for bruising the grass and even treading upon the soil. If he admits the fact, he is bound to shew by way of justification, that some positive law has empowered or excused him. The justification is submitted to the judges, who are to look into the books; and see if such a justification can be maintained by the text of the statute law, or by the principles of the common law. If no such excuse can be found or produced, the silence of the books is an authority against the defendant, and the plaintiff must have judgment.
>
> According to this reasoning, it is now incumbent upon the defendants to shew the law, by which this seizure is warranted. If that cannot be done, it is a trespass.
>
> … Where is the written law that gives any magistrate such a power? I can safely answer, there is none …
>
> What would the Parliament say, if the judges should take upon themselves to mould an unlawful power into a convenient authority, by new restrictions? That would be, not judgment, but legislation. …
>
> As therefore no authority in our books can be produced to support such a doctrine ... I cannot be persuaded, that such a power can be justified by the common law. ...
>
> It is then said, that it is necessary for the ends of government to lodge such a power with a state officer; and that it is better to prevent the publication [of seditious libel] before than to punish the offender afterwards. I answer, if the legislature be of that opinion, they will revive the *Licensing Act* [which, in former times, strictly regulated all publishing]. But if they have not done that, I conceive they are not of that opinion. And with respect to the argument of State necessity, or a distinction that has been aimed at between State offences and others, the common law does not understand that kind of reasoning, nor do our books take notice of any such distinctions.
>
> Serjeant Ashley was committed to the Tower in the 3rd of Charles Ist, by the House of Lords only for asserting in argument, that there was a 'law of State' different from the common law; and the Ship-Money judges were impeached for holding, first, that State-necessity would justify the raising money without consent of parliament; and secondly, that the king was judge of that necessity [*This was a reference to* R v Hampden *or the* Case of Ship-money *(1637) 3 St. Tr. 826.*]
>
> If the king himself has no power to declare when the law ought to be violated for reason of State, I am sure we his judges have no such prerogative. …
>
> I have now taken notice of everything that has been urged upon the present point; and upon the whole we are all of opinion, that the warrant to seize and carry away the party's papers in the case of a seditious libel, is illegal and void.

Entick v. Carrington remains an important statement concerning the principle of legality and the powers of the crown and crown ministers in the common law tradition. Whatever powers the crown prerogative might include, it does not include powers drawn from a special or separate 'law of state' or 'reason of state' giving crown officials authority to set the legal rights of subjects aside, even in the face of perceived threats to the peace or security of the state.

A.V. Dicey cited *Entick v. Carrington* in a famous passage in *Law of the Constitution*, first published in 1885, in which he insisted that one central aspect of the "rule of law" is that "every official, from the Prime Minister down to a constable" is subject to the ordinary law of the land enforced by the ordinary courts.[64] This passage was quoted and applied by Abbott J. in *Roncarelli v. Duplessis*, perhaps still the leading case on the rule of law in Canada (though more for Rand J.'s than Abbott J.'s reasons).[65] In this case, the actions of the prime minister and attorney general of Quebec, Maurice Duplessis, actions that Duplessis insisted were undertaken in the sincere belief that he was protecting the public welfare or common good from vicious criticisms by a religious minority, were held to be unlawful because they were unsupported by any power clearly delegated by statute. Inherent executive powers are indeed limited. As Dicey observed, the king or queen may be "head of the executive government" but is not a "sovereign monarch" capable of "interfering with the regular course of law".[66] In the common law tradition, the king-in-parliament is sovereign, not the king alone and certainly not the king's ministers; there is legislative but not executive sovereignty.

4.2.4.3 The *Case of the Five Knights* and the Petition of Right, 1628

The curious reference in *Entick v. Carrington* (above) to Serjeant Ashley being committed to the Tower is worth explaining. The story begins with *Darnel's Case* or the *Case of the Five Knights* (1627) 3 St Tr 1. The case arose after five 'knights' were imprisoned without charge or trial for refusing to make loans to the King. King Charles I had imposed these 'loans' (really a form of taxation) in order to raise money without summoning parliament for statutory authorization to impose taxes. Writs of *habeas corpus* were issued to challenge the detention of the knights. The writ of *habeas corpus* is a judicial order requiring that the detention of a person be legally justified (the right to *habeas corpus* is now constitutionally protected in Canada by section 10(c) of the *Canadian Charter of Rights and Freedoms*.)

Before the Court of King's Bench, it was stated that the knights were held *per special mandatum domini Regis* and no cause for their imprisonment was given—a result that was, according to counsel for one of the knights, contrary to *Magna Carta* and "the fundamental laws and statutes of this realm"—the reference being to the article in *Magna Carta, 1215* which famously protects the subject from deprivation of liberty or property "except by the lawful judgment of his equals or by the law of the land [*lex terræ*]".

In response, the Attorney General, Sir Robert Heath, argued that when subjects are detained according to law, cause must be shown, but when imprisonment is "not in a legal and ordinary way", but "extraordinarily done" for "reason of state", cause need not be shown. Heath insisted that the king's "*absoluta potestas*" in this respect was integral to sovereignty, vesting when "the first stone of sovereignty was ... laid", and although the king "hath rules to govern himself by" and must act as "the head of the common wealth" rather than as a "private person" when using this absolute power, compliance with these rules was not a question into which "we ... as lawyers, who govern themselves by the rules of the law ... [may] make inquiries". The refusal by the judges to release the knights gave the impression that they may have accepted this argument about an extraordinary "law of state" outside the common law and outside the domain of the ordinary courts.

The implications of *Darnel's Case* were immediately apparent and concerns were expressed that the case, although only an interim order, might be cited as precedent in future cases. Parliamentarians met in conference to argue the legal points raised by the judges' order.[67] Sir Edward Coke, by then a member of Parliament and no longer a judge, insisted that although the royal prerogative is "highly tendered and respected ... it hath bounds set unto it by the laws of England", for "the common law has admeasured the king's prerogative".

Attorney General Heath and Sir Francis Ashley, a Serjeant or high-ranking barrister, attended the parliamentary conference to argue the king's position. Ashley submitted that *lex terræ* in *Magna Carta* included a "Law of State" that governed in areas where "the common law extends not", giving the king power to act "when the necessity of state requires it" subject only to "natural equity", the king's power to commit "acts of state" upon subjects in virtue of his "supreme power in matters of state" being a power "too high to be determined by any legal direction". Coke and his colleagues from the Commons objected in no uncertain terms: "we read of no Law of State" and no law is meant by the expression *lex terræ* "save the Common Law".

This was no mere quibble about where to draw boundaries between different kinds of prerogative power. The depth of the theoretical difference between the legal positions advanced is perhaps reflected in the fact that Ashley was briefly taken into custody after making his point—to which Lord Camden referred in *Entik v. Carrington*.

It was unseemly, to say the least, for those fighting unjust detention to resort to it themselves. But a more judicious response to *Darnel's Case* was in the works: parliamentarians drew up a *Petition of Right* to denounce the imprisonment of subjects without cause as contrary to the "law of the land" and "due process of law" affirmed by *Magna Carta* and other "good laws and statutes".

The *Petition of Right* was drafted as a bill by the House of Commons. When the bill was before the House of Lords, an amendment was sought to include a clause stating that liberties were therein affirmed "but with due regard to leave entire that Sovereign Power, wherewith your majesty is trusted for the protection, safety, and happiness of the people"—but the Commons refused. "If we grant this," Coke argued (it is said that he spoke with tears in his eyes), "by implication we give a sovereign power above all these laws", referring here primarily to *Magna Carta*, and he added that "*Magna Charta* is such a fellow, that he will have no sovereign".

In the end, the Lords and Commons passed the *Petition of Right* without the amendment, and it was given royal assent by Charles I (*Petition of Right, 1628*, 3 Cha. 1. c. 1 (Eng.)).

That crown or executive government may not claim sovereign powers under a purported law of state, that its inherent powers come from and are admeasured by the ordinary common law as enforced by the ordinary common law courts, and that any other powers it seeks must be delegated by parliament, are principles enormously significant for Canada. In recent times, theories of an unbounded, sovereign executive that upend the idea of the rule of law have (re)emerged and are gaining traction in various countries around the world.[68] Executive power in Canada is defined by ordinary statute and common law, and when it comes to claims about a special law of state based on a sovereign executive power unbounded by ordinary law it must be remembered that "the common law does not understand that kind of reasoning" (Camden), and "*Magna Charta* is such a fellow, that he will have no sovereign" (Coke).

This is not to say that the prerogative powers inherent in the crown are not important in Canada. They are extremely important in at least two main areas:

1. the crown (governor general or lieutenant governor) appoints and dismisses prime ministers, premiers, and other ministers of the crown and summons, prorogues, and dissolves legislatures (though some of these tasks are also confirmed by express provisions in the *Constitution Act, 1867*); and,
2. the crown prerogatives in relation to foreign affairs and defence, though regulated in some respects by statute[69], are still largely intact, in the hands of the governor general (not lieutenant governors), and often exercised directly by ministers of the crown or other governmental officials.

Can the exercise of these kinds of executive power be policed by law through judicial review? Or are they far too political to make judicial supervision possible? We return to this important question in Part 4.3.5 below.

4.2.5 Statute law and the legal framework for executive government

The royal prerogative does not provide a sufficient legal basis for day-to-day domestic governance. The executive powers necessary for domestic governance of the state are therefore mostly delegated by statutes enacted by federal or provincial legislatures.

How do we know which functions and powers of executive government relate to the "Government of Canada" and which to the "Government of the Province"? By now, the answer is probably clear—but let's make it explicit. The *Constitution Act, 1867* divides *legislative* authority between federal and provincial legislatures through lists of substantive subject matters, found mainly in sections 91 and 92, over which each is empowered to make laws. There are no parallel lists dividing federal and provincial *executive* powers. However, as Viscount Haldane put it, "The distribution under the new grant of executive authority [in 1867] in substance follows the distribution under the new grant of legislative powers".[70] Each head of federal and provincial legislative power defined by sections 91 and 92 of the Act establishes a sphere of jurisdiction over the relevant subject matter that includes the authority to define how the matter will be governed or regulated and what executive offices, powers, and responsibilities (if any) shall exist in relation to the matter. As Dickson J. (as he then was) put it:

> ... [I]n that division, ss. 91 and 92 of the *British North America Act* redistributed in an exhaustive fashion the legislative functions ... and the executive functions must have followed, of necessity, the distribution of legislative power. Executive power is nurtured by and is dependent upon legislative power. Executive functions, federal and provincial, must be exercised with due regard to, and within the limits prescribed by, ss. 91 and 92 respectively.[71]

Dickson J.'s point is worth underscoring: federal and provincial executive powers track or follow the division between federal and provincial legislative powers at least in part because "[e]xecutive power is nurtured by and is dependent upon legislative power."

If prerogative executive powers are limited, statutory executive powers are potentially vast: the "growing complexity of modern government" has entailed the "unprecedented delegation" of powers by statute "to the executive branch of government".[72] And although delegated to the *executive branch*, many such powers are *functionally judicial (or quasi-judicial) or legislative*; they may include the power to adjudicate matters arising under complex new regulatory regimes or the power to make subordinate or delegated legislation. Indeed, the growth in delegated legislation since 1867 has been "phenomenal".[73]

The principle of parliamentary sovereignty gives legislatures tremendous scope in configuring the regulatory state. It must be recalled, however, that the powers so delegated are always subordinate powers and their exercise may be reviewed in the ordinary superior courts to ensure that decisions are consistent with the legislature's intentions and general principles of procedural fairness and substantive reasonableness associated with the rule of law.[74] The principle of parliamentary sovereignty means that statutes or *primary* legislation enacted by the federal parliament or a provincial legislature may not be judicially reviewed except to ensure compliance with *constitutional* limitations. In contrast, *subordinate* or *secondary* powers exercised by the executive government, whether functionally executive, legislative, or judicial, may be reviewed on a broader range of common law, statutory, and constitutional grounds—a subject that falls within the field of administrative law (which is beyond the scope of this chapter).

Specific executive, administrative, or regulatory powers are conferred by statutes, federal and provincial, on three main categories of office or institution:

1. upon the *crown* as advised by the relevant *council* in the form of the "Governor in Council" federally or the "Lieutenant Governor in Council" provincially;
2. upon individual *ministers of the crown* who are appointed by the governor general federally or lieutenant governor provincially; and,
3. various other subordinate officials, boards, commissions, tribunals, agencies, *etc.* that are established by statute (many of which enjoy an important degree of independence from the federal or provincial government of the day).

We may pause at this point and re-visit the question of labels, in particular 'the crown', 'the government', the 'executive government', and 'the executive'. In considering the meaning of "Crown" in section 17(1) of the *Federal Courts Act*, RSC 1985, c. F-7, which gives the Federal Court "concurrent original jurisdiction in all cases where relief is claimed against the Crown", Décary J.A. stated:

> The "federal Crown" is an expression used to refer to the [federal] executive power, which in practice is exercised by the prime minister and his cabinet. ... "When 'the Crown' is spoken of in a statute, the term is symbolic of the executive power and means the King acting in his executive capacity. This, in effect, means 'the Government'" [*McArthur, Matthew v. The King*, 1943 CanLII 296 (CA EXC), [1943] Ex. C.R. 77, *per* Thorson P., at page 104].[75]

Said Martland J. with respect to the "Government of Canada" and "the Crown", "the two terms are equivalent".[76]

These comments are helpful but still leave open questions about the range of what is covered by the various terms. Crown, government, the executive, *etc.*, may have narrower or broader meanings depending on the context. The crown may refer to His Majesty the King, but also his representatives in Canada, the governor general and lieutenant governors, and in other contexts 'crown' may be used to describe the government generally or indeed the state of Canada or the provincial polity.

How much of the massive regulatory or administrative infrastructure that has been built up since the beginning of the twentieth century is part of the executive government or the crown may, again, depend upon the context. Are decisions on whether to approve a pipeline or other energy project made by the National Energy Board (NEB) pursuant to the *Canada Oil and Gas Operations Act* (COGOA)[77], actions of the crown that trigger the duty to consult Indigenous communities under the principle of the 'honour of the crown'? The Supreme Court of Canada, in *Clyde River (Hamlet) v. Petroleum Geo-Services Inc.*, 2017 SCC 40, said yes:

> ... [T]he term "Crown" is commonly used to symbolize and denote executive power. ...
>
> By this understanding, the NEB is not, strictly speaking, "the Crown". Nor is it, strictly speaking, an agent of the Crown, since—as the NEB operates independently of the Crown's ministers—no relationship of control exists between them ... As a statutory body holding responsibility under s. 5(1)(b) of *COGOA*, however, the NEB acts on behalf of the Crown when making a final decision on a project application. Put plainly, once it is accepted that a regulatory agency exists to exercise executive power as authorized by legislatures, any distinction between its actions and Crown action quickly falls away. In this context, the NEB is the vehicle through which the Crown acts. Hence this Court's interchangeable references in *Carrier Sekani* [*Rio Tinto Alcan Inc. v. Carrier Sekani Tribal Council*, 2010 SCC 43, [2010] 2 SCR 650] to "government action" and "Crown conduct" (paras. 42-44). It therefore does not matter whether the final decision maker on a resource project is Cabinet or the NEB. In either case, the decision constitutes Crown action that may trigger the duty to consult.[78]

So, "[i]n this context" the decisions of the regulatory agency are actions of the crown; yet, one wonders about other contexts, whether, for example, thinking back to Décray J.A.'s statement, the NEB would be considered "the Crown" for the purposes of section 17(1) of the *Federal Courts Act*. Perhaps not.

4.2.6 Executive departments, ministers, and councils

Although the vast network of federal and provincial administrative or regulatory agencies, like the National Energy Board, may be part of the executive branch acting on behalf of the 'crown' broadly defined in certain contexts, we turn our attention now to the shape of executive government in its narrower sense; we to return to the popular notion of governments as prime ministers or premiers together with cabinet ministers presiding over the key departments of state. Looking at the departments of the federal state, a clear pattern is identifiable. Let's consider at a specific example.

Although the subject matter of health is primarily a matter of provincial legislative authority in Canada, there are aspects of health that justify federal legislation.[79] Indeed, the executive government of Canada includes a federal ministry or Department of Health established by a federal statute and led by a federal Minister of Health. The following excerpts from the statute are instructive:

Department of Health Act, S.C. 1996, c. 8

> 2(1) There is hereby established a department of the Government of Canada, called the Department of Health, over which the Minister of Health, appointed by commission under the Great Seal, shall preside.
>
> (2) The Minister holds office during pleasure and has the management and direction of the Department.
>
> ...
>
> 4(1) The powers, duties and functions of the Minister extend to and include all matters over which Parliament has jurisdiction relating to the promotion and preservation of the health of the people of Canada not by law assigned to any other department, board or agency of the Government of Canada.

> (2) Without restricting the generality of subsection (1), the Minister's powers, duties and functions relating to health include the following matters ... [*a list of general powers and duties follows and then the Act provides further details of the legal framework for the federal Department of Health*].

Several points about this federal statute are worth emphasizing. First, this statute is not unique. In fact, it follows a template commonly adopted for acts of the federal parliament that establish departments of the executive government of Canada and confer powers and impose responsibilities on ministers presiding over those departments.[80]

Second, the departmental and ministerial powers and responsibilities established under this and similar statutes are expressly defined and limited by reference to the federal legislative authority over the relevant subject matter (see *Department of Health Act*, s. 4(1) above)—a limitation that would exist even if not expressly mentioned.

Third, although governmental departments and ministerial powers and responsibilities are established by federal statutes like the *Department of Health Act*, the arrangements can be reconfigured without statutory amendment. The governor in council is empowered by statute to divide departments and/or transfer powers and responsibilities from one department or minister to another as deemed expedient[81]—something that happens frequently when cabinets are formed or reshuffled—which means one must look beyond the statute to what may be a bewildering trail of orders in council to determine which minister is responsible for what.[82]

Fourth, the *Department of Health Act* and similar statutes provide that the minister presiding over the department will be appointed by commission under the great seal and will hold office during pleasure, but the statute does not say who appoints and dismisses the minister and it is unclear as to whether the office of minister is established by the statute or through some other mechanism. We must look beyond the statute to understand the legal status of these offices.

When we do, we find that the ministers who preside over departments of the federal executive government are *ministers of the crown* who are appointed by the governor general. We also find that there is an invariable practice followed whereby upon appointment each minister is also (if they have not been before) sworn in for life as a privy councillor.[83]

The governor general's legal authority to appoint members of the privy council is, as we have seen, conferred by section 11 of the *Constitution Act, 1867*. In contrast, the legal power to appoint and dismiss privy councillors to and from the office of *minister of the crown*, including the office of *prime minister*, is not mentioned in the *Constitution Act, 1867* at all. This power is one of the most important executive powers derived from the crown's royal prerogative and it is expressly delegated to the governor general (see the 1947 Letters Patent, art. IV, reproduced in section II.C above). One becomes a privy councillor for life, but one is a prime minister or other minister of the crown only during pleasure—and legally speaking that pleasure is the crown's pleasure as expressed by the governor general.

That ministers are also privy councillors is assumed or required in certain statutes.[84] But the statutes identifying a minister for a department do not generally indicate that the minister be selected from the privy council.[85] We return below to the important yet somewhat obscure relationship between the members of the privy council and the ministers of the crown who preside over departments and collectively form cabinet. For now, we shall simply note that 'cabinet' is not an institution established by law, but it is the active part of the privy council.

The following is an example of a prime minister's 'advice' regarding a cabinet minister's appointment and the formal instrument of appointment of a minister:

> To His Excellency
>
> General the Right Honourable Georges P. Vanier, D.S.O., M.C., C.D.,
>
> Governor General and Commander-in-Chief of Canada
>
> Your Excellency:
>
> The undersigned submits for Your Excellency's pleasure that Edgar John Benson, of Kingston, in the Province of Ontario, be chosen and summoned to be a Member of the Queen's Privy Council for Canada.
>
> The undersigned has the honour to recommend further that a commission under the Great Seal of Canada do issue appointing the said Edgar John Benson to be Minister of National Revenue.
>
> Respectfully submitted,
>
> (Sgd.) Lester B. Pearson
>
> Prime Minister
>
> Sgd. { Approved
>
> Georges P. Vanier
>
> 29th June, 1964

> Canada
>
> Elizabeth the Second, by the Grace of God of the United Kingdom, Canada and Her other Realms and Territories Queen, Head of the Commonwealth, Defender of the Faith.
>
> To
>
> The Honourable _____ a Member of Our Privy Council for Canada,
>
> Know You that reposing special trust and confidence in your loyalty, integrity and ability,
>
> We do hereby constitute and appoint you the said _____ to be
>
> Minister of Trade and Commerce.

To have, hold, exercise and enjoy the said office of Minister of Trade and Commerce unto you the said _____ with all and every the powers, rights, authority, privileges, profits, emoluments and advantages unto the said office of right and by law appertaining during Our Pleasure

In Testimony Whereof We have caused these Our Letters to be made Patent and the Great Seal of Canada to be hereunto affixed.

Witness:

Our Trusty and Well-beloved _____, Governor General and Commander-in-Chief of Canada.

At Our Government House, in Our City of Ottawa, this ____ day of ____ in the year of Our Lord one _____ and in the _____year of Our Reign.

By Command

(Sgd.) _____

Attorney General of Canada

Let's turn now the structure of provincial executive government. The *Constitution Act, 1867* refers to the lieutenant governor and executive council. Provincial executive councils are analogous to the federal privy council, in that they aid and advise the crown's representative (the lieutenant governor) with one significant difference—membership in the provincial executive council is at pleasure not for life. The link between provincial executive councils and ministers of the crown presiding over governmental departments is generally defined in a more systematic way than the link between the federal privy council and federal departmental ministers. Provincial departments and ministers are often, as in the federal case, defined by statute; but, similarly, the power to reconfigure arrangements for government is invariably granted to the lieutenant governor to ensure maximum flexibility. The framework for provincial executive government is found in an *Executive Council Act* (or the equivalent) in each province. Excerpts from the Ontario *Executive Council Act* are illustrative:

Executive Council Act, R.S.O. 1990, c. E.25

1 The Executive Council shall be composed of such persons as the Lieutenant Governor from time to time appoints, and all executive councillors so appointed are ministers of the Crown, and rank among themselves in the order of their appointments.

2(1) The Lieutenant Governor may appoint under the Great Seal such ministers of the Crown as are provided for under any Act or as the Lieutenant Governor sees fit to appoint, to hold office during pleasure.

(2) The Lieutenant Governor may by order in council prescribe the duties of the ministers of the Crown and the duties of any ministries over which they preside, and of the public servants under their jurisdiction.

...

5(1) Any of the powers and duties that have been heretofore or may be hereafter assigned by law to any minister of the Crown may from time to time by order in council be assigned and transferred either for a limited period or otherwise to any other minister by name or otherwise.

...

8(1). Despite any other Act, the authority of the Lieutenant Governor under this Act to prescribe duties of a minister of the Crown or to assign and transfer powers and duties that have been assigned by law to a minister of the Crown to any other minister includes authority, by order in council, to,

(a) assign responsibility for the administration of an Act or a part of an Act to a minister of the Crown;

(b) transfer responsibility for the administration of an Act or a part of an Act from a minister of the Crown to another minister of the Crown;

(c) assign a power, duty, function or responsibility of a minister of the Crown under an Act to a minister of the Crown;

(d) transfer a power, duty, function or responsibility of a minister of the Crown under an Act to another minister of the Crown;

(e) direct that two or more ministers share responsibility for the administration of an Act or a part of an Act;

(f) specify how the ministers are to share responsibility for the administration of an Act or a part of an Act;

(g) direct that two or more ministers share a power, duty, function or responsibility under an Act; and

(h) specify how the ministers are to share a power, duty, function or responsibility under an Act.

The office of prime minister or premier, federally or provincially, is a rather shadowy one in terms of statute law. However, in some provinces, there is express provision for membership in the executive council of the premier, in some cases as president of the council.[86] In Quebec, the *Executive Power Act* provides that the lieutenant governor may appoint, from among the members of the executive council, a long list of named ministers, including "a Prime Minister who shall, *ex officio*, be president of the Conseil" as well as (for example) a Minister of Justice, a Minister of International Relations, a Minister of Finance, a Minister of Transport, *etc.* (s. 4)—though the names and responsibilities of ministerial offices may be changed by order of the "Government", i.e., lieutenant governor in council (s. 9).[87] As with the federal cabinet, provincial 'cabinets' are not legally recognized; however, because only the present provincial ministers of the crown are members of the executive council, 'executive council' and 'cabinet' are just labels, one formal the other informal, for the same institution.

4.2.7 Completing the legal picture: the interlocking constitutional law, statute law, and common law framework for executive government

We are now in a position to summarize the executive government in Canada as a matter of law.

By the *Constitution Act, 1867*, the king or queen is vested with the executive government of Canada but exercises that authority through a governor general who is aided and advised by members of a privy council that the governor general appoints. In a separate legal track, the *Constitution Act, 1867* gives legislative authority to the federal parliament to enact laws in relation to various subject matters, and through this authority governmental departments for the Government of Canada have been established under the leadership of departmental ministers. The two tracks are joined together because the ministers who by statute preside over governmental departments are also made members of the privy council that has the constitutional mandate to aid and advise the governor general in carrying out the government of Canada on behalf of the king or queen. We may therefore say that the executive government of Canada is, as a matter of law, vested in the king or

queen and carried on by the governor general aided and advised by those members of the privy council who are presently ministers of the crown having been appointed by the governor general pursuant to the royal prerogative to that office and who have also been clothed by federal legislation with legal powers and responsibilities as ministers presiding over the key departments of the government of Canada.

This structure reappears at the provincial level with some modifications: the lieutenant governor is advised by an executive council, but the council consists only of ministers of the crown and the relevant *Executive Council Act* (or its equivalent) may supplant the prerogative power of appointing ministers of the crown (see e.g., Ontario's *Executive Council Act*, s. 2(1), above).

This legal structure for executive government is still only part of the story. The system just sketched leaves far too much to crown discretion. At the federal level, for example, what if the governor general doesn't appoint departmental ministers as privy councillors, or doesn't listen to them after they are made privy councillors? What if a governor general acts upon the advice of members of the privy council who are no longer ministers of the crown? Where in the arrangements sketched does the prime minister fit in? What if Charles III rescinds the 1947 Letters Patent and begins exercising the powers of executive government under section 9 of the *Constitution Act, 1867* personally? What ensures democracy in this system?

These and many similar constitutional quandaries are addressed by what is generally known as the principle of *responsible government*. The curious thing about constitutions that follow the Westminster parliamentary model is that this critical constitutional principle is a rule of *convention* rather than *law*. What is the difference between constitutional convention and constitutional law? And how does the principle of responsible government work?

4.3 The conventions of the constitution and responsible government

4.3.1 Conventions versus law

Canada's constitution is similar in principle to the United Kingdom constitution (*Constitution Act, 1867*, preamble), and so it will be helpful to set out the classic statement in British legal literature on the relationship between constitutional law and constitutional convention written by Albert Venn Dicey in 1885. We then turn to the leading statement on law and convention from the Supreme Court of Canada.

4.3.1.1 A.V. Dicey, Introduction to the Study of the Law of the Constitution, 7th edition (London: Macmillan, 1908)

[excerpts from Chapter XIV]

E. Nature of Conventions of the Constitution

IN an earlier part of this work stress was laid upon the essential distinction between the 'law of the constitution', which, consisting (as it does) of rules enforced or recognized by the courts, makes up a body of 'laws' in the proper sense of that term, and the 'conventions of the constitution', which consisting (as they do) of customs, practices, maxims, or precepts which are not enforced or recognized by the courts, make up a body not of laws, but of constitutional or political ethics ...

These [conventional] rules ... make up the constitutional morality of the day. They are all constantly acted upon, and, since they cannot be enforced by any court of law, have no claim to be considered laws. They are multifarious, differing, as it might at first sight appear, from each other not only in importance but in general character and scope. They will be found however, on careful examination, to possess one common quality or property; they are all, or at any rate most of them, rules for determining the mode in which the discretionary powers of the Crown (or of the Ministers as servants of the Crown) ought to be exercised ...

... [T]he prerogative ... [is] a term which has caused more perplexity to students than any other expression referring to the constitution. …

... The prerogative is the name for the remaining portion of the Crown's original authority, and is therefore, as already pointed out, the name for the residue of discretionary power left at any moment in the hands of the Crown, whether such power be in fact exercised by the Queen herself or by her Ministers. Every act which executive government can lawfully do without the authority of the Act of Parliament is done in virtue of this prerogative. If therefore we omit from view ... powers conferred on the Crown or its servants by Parliamentary enactments ... we may use the term 'prerogative' as equivalent to the discretionary authority of the executive, and then lay down that the conventions of the constitution are in the main precepts for determining the mode and spirit in which the prerogative is to be exercised, or (what is really the same thing) for fixing the manner in which any transaction which can legally be done in virtue of the Royal prerogative ... ought to be carried out. ... Thus, to say that a Cabinet when outvoted [in the House of Commons] on any vital question are bound in general to retire from office, is equivalent to the assertion, that the prerogative of the Crown to dismiss its servants at the will of the Queen must be exercised in accordance with the wish of the Houses of Parliament ...

Having ascertained that the conventions of the constitution are (in the main) rules for determining the exercise of the prerogative, we may carry our analysis of their character one step farther. They have all one ultimate object. Their end is to secure that Parliament, or the Cabinet which is indirectly appointed by Parliament, shall in the long run give effect to the will of that power which in modern England is the true political sovereign of the State—the majority of the electors or (to use popular though not quite accurate language) the nation.

... The conventions of the constitution now consist of customs which (whatever their historical origin) are at the present day maintained for the sake of ensuring the supremacy of the House of Commons, and ultimately, through the elective House of Commons, of the nation. Our modern code of constitutional morality secures, though in a roundabout way, what is called abroad the 'sovereignty of the people'.

That this is so becomes apparent if we examine into the effect of one or two among the leading articles of this code. The rule that the powers of the Crown must be exercised through Ministers who are members of one or other House of Parliament and who 'command the confidence of the House of Commons', really means, that the elective portion of the legislature in effect, though by an indirect process, appoints the executive government; and, further, that the Crown, or the Ministry, must ultimately carry out, or at any rate not contravene, the wishes of the House of Commons. But as the process of representation is nothing else than a mode by which the will of the representative body or House of Commons is made to coincide with the will of the nation, it follows that a rule which gives the appointment and control of the government mainly to the House of Commons is at bottom a rule which gives the election and ultimate control of the executive to the nation.

4.3.1.2 *Reference re Amendment of the Constitution of Canada* [the *Patriation Reference*], 1981 CanLII 25 (SCC), [1981] 1 SCR 753

Background:

As we saw (section II.C above), the *Statute of Westminster, 1931* granted Dominions such as Canada the right to amend or repeal British statutes that extended to them, but Canada requested that this power be withheld from it in relation to the *British North America Act, 1867* (now *Constitution Act, 1867*) until the federal and provincial governments could agree amongst themselves upon a new constitutional amending formula. Until then, amendments to the *BNA Act* were to be, as before, enacted by the UK Parliament upon the request of Canada,

and such requests were communicated in the form of a *resolution* passed by the *two Houses of the federal Parliament* (referred to below as the "*resolution procedure*"). In cases where the proposed amendment to the *BNA Act* affected provincial powers or interests, the Canadian government would first obtain the consent of the provinces affected before submitting the requisite resolution to the UK Parliament.

In 1980, the federal government of Pierre Trudeau sought to introduce a package of constitutional reforms that would: (1) end the nominal authority that the UK retained over Canada's constitution; (2) adopt a local Canadian constitutional amending mechanism; and (3) introduce an entrenched bill of rights (the *Canadian Charter of Rights and Freedoms*). This objective became known, informally, as the *patriation* of the Canadian constitution.

The proposed reforms had obvious and significant implications for provincial powers. However, after negotiations with the provinces, the federal government could get support for its 'patriation' package from only two provinces, Ontario and New Brunswick. The Trudeau government announced its intention to go ahead anyway and submit a resolution to the UK Parliament requesting it to enact the 'patriation' package of reforms. Legal challenges ensued.

The eight opposing provinces argued that the federal government (through the Houses of the federal Parliament) did not have the legal authority to proceed. Governments in three provinces, Manitoba, Newfoundland and Quebec, referred the question to their respective courts of appeal. The decisions were then appealed to the Supreme Court of Canada and heard together. Although worded differently, the reference questions gave rise to two basic issues:

1. As a matter of *law*, did the federal Houses of Parliament have the authority to pass a resolution requesting the UK Parliament to enact the proposed amendments to the *BNA Act* without provincial consent?
2. If they did, as a matter of *constitutional convention* did the federal Houses of Parliament have the authority to pass a resolution requesting the UK Parliament to enact the amendments to the *BNA Act* without provincial consent?

A majority of the Court (Laskin C.J. and Dickson, Beetz, Estey, McIntyre, Chouinard and Lamer JJ; Martland and Ritchie JJ dissenting) held that there were no legal impediments to the Trudeau plan to request the UK Parliament to enact the patriation package of reforms without provincial consent. A differently constituted majority (Martland, Ritchie, Dickson, Beetz, Chouinard and Lamer JJ.; Laskin C.J., Estey and McIntyre JJ. dissenting) concluded that there was, however, a "constitutional convention" that before requests were made to the UK Parliament to amend the *BNA Act* there should be a "substantial measure of provincial consent". The following excerpt includes the majority's discussion on constitutional conventions.

> **Martland, Ritchie, Dickson, Beetz, Chouinard and Lamer JJ.**
>
> A substantial part of the rules of the Canadian constitution are written. ...
>
> Another part of the Constitution of Canada consists of the rules of the common law. ...
>
> The common law provides that the authority of the Crown includes ... [t]he royal prerogative ...
>
> [We have already considered the full statements on each of these points from this case—see section 4.2.3 above.]
>
> Those parts of the Constitution of Canada which are composed of statutory rules and common law rules are generically referred to as the law of the constitution. In cases of doubt or dispute, it is the function of the courts to declare what the law is and since the law is sometimes breached, it is generally the function of the courts to ascertain whether it has in fact been breached in specific instances and, if so, to apply such sanctions as are contemplated by the law, whether they be punitive sanctions or civil sanctions such as a declaration of nullity. Thus, when a federal or a provincial statute is found by the courts to be in excess of the legislative competence of the legislature which has enacted it, it is declared null and void and the courts refuse to give effect to it. In this sense it can be said that the law of the constitution is administered or enforced by the courts.
>
> But many Canadians would perhaps be surprised to learn that important parts of the constitution of Canada, with which they are the most familiar because they are directly involved when they exercise their right to vote at federal and provincial elections, are nowhere to be found in the law of the constitution. For instance it is a fundamental requirement of the constitution that if the opposition obtains the majority at the polls, the government must tender its resignation forthwith. But fundamental as it is, this requirement of the constitution does not form part of the law of the constitution.
>
> It is also a constitutional requirement that the person who is appointed prime minister or premier by the Crown and who is the effective head of the government should have the support of the elected branch of the legislature; in practice this means in most cases the leader of the political party which has won a majority of seats at a general election. Other ministers are appointed by the Crown on the advice of the prime minister or premier when he forms or reshuffles his cabinet. Ministers must continuously have the confidence of the elected branch of the legislature, individually and collectively. Should they lose it, they must either resign or ask the Crown for a dissolution of the legislature and the holding of a general election. Most of the powers of the Crown under the prerogative are exercised only upon the advice of the prime minister of the cabinet which means that they are effectively exercised by the latter, together with the innumerable statutory powers delegated to the Crown in council.
>
> Yet none of these essential rules of the constitution can be said to be a law of the constitution. It was apparently Dicey who, in the first edition of his *Law of the Constitution*, in 1885, called them the "conventions of the constitution" … an expression which quickly became current. What Dicey described under these terms are the principles and rules of responsible government, several of which are stated above and which regulate the relations between the Crown, the prime minister, the cabinet and the two Houses of Parliament. These rules developed in Great Britain by way of custom and precedent during the nineteenth century and were exported to such British colonies as were granted self-government. …
>
> Within the British Empire, powers of government were vested in different bodies which provided a fertile ground for the growth of new constitutional conventions unknown to Dicey and from which self-governing colonies acquired equal and independent status within the Commonwealth. Many of these culminated in the *Statute of Westminster, 1931*, 1931 (U.K.), c. 4.
>
> A federal constitution provides for the distribution of powers between various legislatures and governments and may also constitute a fertile ground for the growth of constitutional conventions between those legislatures and governments. It is conceivable for instance that usage and practice might give birth to conventions in Canada relating to the holding of federal-provincial conferences, the appointment of lieutenant governors, the reservation and disallowance of provincial legislation. ...
>
> The main purpose of constitutional conventions is to ensure that the legal framework of the constitution will be operated in accordance with the prevailing constitutional values or principles of the period. For example, the constitutional value which is the pivot of the conventions stated above and relating to responsible government is the democratic principle: the powers of the state must be exercised in accordance with the wishes of the electorate; and the constitutional value or principle which anchors the conventions regulating the relationship between the members of the Commonwealth is the independence of the former British colonies.

> Being based on custom and precedent, constitutional conventions are usually unwritten rules. Some of them, however, may be reduced to writing and expressed in the proceedings and documents of imperial conferences, or in the preamble of statutes such as the *Statute of Westminster, 1931*, or in the proceedings and documents of federal-provincial conferences. They are often referred to and recognized in statements made by members of governments.
>
> The conventional rules of the constitution present one striking peculiarity. In contradistinction to the laws of the constitution, they are not enforced by the courts. One reason for this situation is that, unlike common law rules, conventions are not judge-made rules. They are not based on judicial precedents but on precedents established by the institutions of government themselves. Nor are they in the nature of statutory commands which it is the function and duty of the courts to obey and enforce. Furthermore, to enforce them would mean to administer some formal sanction when they are breached. But the legal system from which they are distinct does not contemplate formal sanctions for their breach.
>
> Perhaps the main reason why conventional rules cannot be enforced by the courts is that they are generally in conflict with the legal rules which they postulate and the courts are bound to enforce the legal rules. The conflict is not of a type which would entail the commission of any illegality. It results from the fact that legal rules create wide powers, discretions and rights which conventions prescribe should be exercised only in a certain limited manner, if at all.
>
> Some examples will illustrate this point.
>
> As a matter of law, the Queen, or the Governor General or the Lieutenant Governor could refuse assent to every bill passed by both Houses of Parliament or by a Legislative Assembly as the case may be. But by convention they cannot of their own motion refuse to assent to any such bill on any ground, for instance because they disapprove of the policy of the bill. We have here a conflict between a legal rule which creates a complete discretion and a conventional rule which completely neutralizes it. But conventions, like laws, are sometimes violated. And if this particular convention were violated and assent were improperly withheld, the courts would be bound to enforce the law, not the convention. ... [S]till the breach [of the convention] is not necessarily without a remedy. The remedy lies with some other institutions of government; furthermore it is not a formal remedy and it may be administered with less certainty or regularity than it would be by a court.
>
> Another example of the conflict between law and convention is provided by a fundamental convention already stated above: if after a general election where the opposition obtained the majority at the polls the government refused to resign and clung to office, it would thereby commit a fundamental breach of convention, one so serious indeed that it could be regarded as tantamount to a *coup d'état*. The remedy in this case would lie with the Governor General or the Lieutenant Governor as the case might be who would be justified in dismissing the ministry and in calling on the opposition to form the government. But should the Crown be slow in taking this course, there is nothing the courts could do about it except at the risk of creating a state of legal discontinuity, that is, a form of revolution. ...
>
> This conflict between convention and law which prevents the courts from enforcing conventions also prevents conventions from crystallizing into laws, unless it be by statutory adoption.
>
> It is because the sanctions of convention rest with institutions of government other than courts, such as the Governor General or the Lieutenant Governor, or the Houses of Parliament, or with public opinion and ultimately, with the electorate, that it is generally said that they are political.
> ...
>
> It should be borne in mind however that, while they are not laws, some conventions may be more important than some laws. Their importance depends on that of the value or principle which they are meant to safeguard. Also they form an integral part of the constitution and of the constitutional system. They come within the meaning of the word "Constitution" in the preamble of the *British North America Act, 1867*:
>
> > Whereas the Provinces of Canada, Nova Scotia, and New Brunswick have expressed their Desire to be federally united ... with a Constitution similar in Principle to that of the United Kingdom. …
>
> That is why it is perfectly appropriate to say that to violate a convention is to do something which is unconstitutional although it entails no direct legal consequence. But the words "constitutional" and "unconstitutional" may also be used in a strict legal sense, for instance with respect to a statute which is found *ultra vires* or unconstitutional. The foregoing may perhaps be summarized in an equation: constitutional conventions plus constitutional law equal the total constitution of the country.
>
> …. [In this Reference the Court is not asked to enforce a convention.] We are asked to recognize it if it exists. Courts have done this very thing many times in England and the Commonwealth to provide aid for and background to constitutional or statutory construction. …
>
> In so recognizing conventional rules, the courts have described them, sometimes commented upon them and given them such precision as is derived from the written form of a judgment. They did not shrink from doing so on account of the political aspects of conventions, nor because of their supposed vagueness, uncertainty or flexibility.
>
> ...
>
> *Requirements for establishing a convention*
>
> The requirements for establishing a convention bear some resemblance with those which apply to customary law. Precedents and usage are necessary but do not suffice. They must be normative. We adopt the following passage of Sir W. Ivor Jennings, *The Law and the Constitution* (5th ed., 1959), at p. 136:
>
> > We have to ask ourselves three questions: first, what are the precedents; secondly, did the actors in the precedents believe that they were bound by a rule; and thirdly, is there a reason for the rule? A single precedent with a good reason may be enough to establish the rule. A whole string of precedents without such a reason will be of no avail, unless it is perfectly certain that the persons concerned regarded them as bound by it.
>
> …

The majority then applied Jennings' three-part test for determining whether a convention exists and concluded that a convention had emerged that before requests were made to the UK Parliament to amend the BNA Act in a manner affecting provincial interests, there should be a "substantial measure of provincial consent". Although not required by law to do so, the Trudeau government sought to respect the convention and engaged in further negotiations with the provinces. In the end, all provinces except Quebec agreed to patriation and the UK Parliament enacted the *Canada Act, 1982* to which the *Constitution Act, 1982* is appended as a schedule.

The majority of the Supreme Court of Canada in the *Patriation Reference* followed Dicey's approach to law and convention and summarized the ideas with an "equation", namely, "constitutional conventions plus constitutional law equal the total constitution of the country." In Canada, this equation turns an undemocratic hereditary monarchy into a constitutional democracy.

4.3.2 Some constitutional quirks relating to law versus convention and command versus counsel

Dicey focused on the way that non-legal constitutional conventions qualify how the crown's legal powers under the royal prerogative are exercised. In Canada, we must expand the operational scope of the conventions surrounding responsible government. The crown in Canada, through the governor general or lieutenant governors, exercises at least three kinds of legal powers:

1. common law prerogative powers;
2. powers conferred or confirmed by the written text of the Constitution of Canada upon
    a. the governor general
    b. the governor in council
    c. the lieutenant governor, and
    d. the lieutenant governor in council; and,
3. powers conferred by regular federal or provincial statutes upon
    a. the governor in council, and
    b. the lieutenant governor in council.

In the cases of (1), 2(a), and 2(c), the power is legally vested in the crown's representative solely but convention determines that the power must be exercised according to the directions issued by the prime minister or premier or other responsible ministers of the crown. In cases of 2(b), 2(d), 3(a) and 3(b), the power is legally vested in the crown's representative *and* members of the relevant council, and the governor and the privy council federally or the lieutenant governor and the executive council provincially must legally act together to make the decision; however, in these cases, again, convention determines that the crown's representative will follow the directions of responsible ministers who will never consist of all privy councillors federally and may not even consistent of all cabinet ministers federally or provincially.

Internal cabinet rules and practices determine how decisions are made. Full cabinet meetings are not always required; committees of cabinet may meet to make decisions. The governor general or lieutenant governor does not attend cabinet meetings. For run-of-the-mill federal orders in council, the quorum is usually four, including the minister who presides over the relevant department, and their recommendation is then sent to the governor general for signature. On certain matters, the prime minister personally recommends the decision to the governor general, including the dissolution and convocation of parliament and the appointment of privy councillors, cabinet ministers, lieutenant governors, senators, and the chief justices of all courts[88]—though of course the prime minister's approval is generally needed for all important matters of state.

So, in short, power legally vested in the hands of the crown or its representative directly or together with members of a federal or provincial council is, by convention, power in the hands of the prime minister, premier, or other relevant ministers of the crown who together form cabinet. In terms of federal executive power, the observations of MacGuigan J.A. may be helpful: after observing that the *Constitution Act, 1867* vests executive government in the queen, governor general, and privy council, he stated: "Beyond that, the operation of the executive is shrouded in the conventions of responsible government" and it is by virtue of those conventions "that it is the Cabinet, in form merely a Committee of the Privy Council, which in reality constitutes the 'Council' advising the Governor General at any particular time".[89] And even this is not complete, for sometimes cabinet will act through a committee of cabinet.

In Canada, whenever the law (either the common law prerogative or statute) requires that a decision be issued in a formal sense by the crown or its representative, *i.e.*, the governor general or lieutenant governor, the *legal role* of the responsible ministers is to aid and advise or provide counsel on what decision to make, the decision itself being *legally* the decision of the crown. By *convention* we know that the relevant minister (or ministers) actually *directs or commands* the crown's representative what to do, *i.e.*, that *de facto* power is in the hands of the minister or ministers who 'advise' the crown. At law they 'advise', but by convention they 'command'. But what they cannot do is skip the formal step and issue the instrument themselves.

What legal status does the 'advice' have? Even where by convention the minister directs how a prerogative power is exercised, the minister is not exercising the prerogative power itself. Some recent courts describe the giving of ministerial advice as the exercise of a related prerogative power. It may be more appropriate, however, to say that the minister is, as member of the federal privy council or provincial executive council, performing a common law duty that arose historically for an advisor upon being summoned by the crown to attend the *curia regis* (see section IV.A.1 above), though one affirmed by sections 11 and 63 of the *Constitution Act, 1867*. Non-legal conventions may determine that advice is needed, who gives it, and what impact it has—but the advice itself is either the exercise of a legal power or the performance of a legal duty that remains distinct from the exercise of the prerogative power in question (which always remains in the crown).[90]

At this point it is important to clarify something Dicey wrote in the excerpt above, namely, that the prerogative may be "exercised by the Queen herself *or by her Ministers*" (emphasis added). There are many instances where a responsible minister or public servants within their departments may exercise the prerogative power *directly* rather than directing its use through *advice*. This is possible only when the participation of the governor general or lieutenant governor is not formally required. Many of these examples arise in the areas where the prerogative remains most important as a legal source of governmental decision making today, in particular foreign affairs and defence (see the *Black* case below).

The key constitutional conventions related to the principle of responsible government may be summarized as follows:

Rule of constitutional law	Equivalent rule of constitutional convention
The crown (governor general/lieutenant governor) has the legal power by virtue of the royal prerogative to appoint and dismiss the prime minister or premier.	The crown (governor general/lieutenant governor) must appoint a prime minister or premier who enjoys the support and confidence of a majority of the members of the House of Commons or Legislative Assembly (usually the leader of the party whose members have just won the most seats in an election). The prime minister or

	premier must be a member of Parliament or Legislative Assembly or seek and obtain a seat within a reasonable period of time. The crown (governor general/lieutenant governor) may dismiss a prime minister or premier in extraordinary circumstances (e.g., if the prime minister refuses to resign after losing an election)—an example of the crown's so-called 'reserve' power.
The crown (governor general/lieutenant governor) has the legal power by virtue of the royal prerogative to summon, prorogue, and dissolve Parliament or the Legislative Assembly (with dissolution causing a general election). The summoning and dissolving powers are expressly mentioned in the *Constitution Act, 1867* (ss. 38, 82, 50, 85).	The crown (governor general/lieutenant governor) can only summon, prorogue, or dissolve Parliament or the Legislative Assembly at the direction of the prime minister or premier. However, it should be noted that, in rare circumstances, the crown may exercise so-called 'reserve' powers to refuse advice to dissolve (and possible prorogue) Parliament or the Legislative Assembly. Requests by the prime minister or premier to dissolve the legislature and call an election have been refused when an election has recently been held and it appeared that someone else might be able to form a government with support of the House of Commons or Legislative Assembly. Where this has happened, the prime minister or premier whose advice was rejected usually resigns. For examples in Canada, see: the 'King-Byng' affair of 1926 and the events in British Columbia in 2017. For another famous example, where a governor general refused the prime minister's request to call an election, and where the prime minister was *dismissed* by the governor general, see the 'Whitlam' crisis in Australia in 1975.
The crown (governor general/lieutenant governor) has the legal power by virtue of the royal prerogative to appoint and dismiss the ministers that collectively form the government (cabinet) and individually head the primary ministries or departments of the government. (This appointment power may be a statutory power in certain provinces.)	The crown (governor general/lieutenant governor) must appoint and dismiss cabinet ministers at the direction of the prime minister or premier, and the ministers appointed must be members of Parliament or the Legislative Assembly (or seek a seat within a reasonable time) and they must remain individually and collectively accountable and responsible to and maintain the confidence of the elected members of Parliament or the Legislative Assembly. (*Note:* the convention that cabinet ministers are appointed "on the advice of the Premier" is made explicit in the Newfoundland and Labrador: *Executive Council Act, SNL* 1995, c. E-16.1, ss. 4(1), 5(1)).
The crown has the legal power by virtue of the royal prerogative—and in Canada the governor general and the lieutenant governors have this power by virtue of ss. 55 and 90 of the *Constitution Act, 1867*—to withhold royal assent to bills passed by the Houses of Parliament or Legislative Assemblies (thus preventing the bill from becoming law).	The crown (governor general/lieutenant governor) must give royal assent to all bills passed by the Houses of Parliament or Legislative Assembly.

The crown historically had the legal power by virtue of the royal prerogative to appoint judges. In Canada, the governor general has the power to appoint provincial superior court judges (*Constitution Act, 1867*, s. 96) and the governor in council has power to appoint Supreme Court of Canada justices (*Supreme Court Act*, RSC 1985, c. S-26, s. 4(2) and Federal Court justices (*Federal Courts Act* RSC, 1985, c. F-7, s. 5.2). Provincial court judges are typically appointed by the lieutenant governor in council (e.g., *Courts of Justice Act*, RSO 1990, c. C.43, s. 42).	The crown (governor general/lieutenant governor) must appoint judges at the direction of the prime minister, premier, minister of justice, or attorney general (depending upon the court). The Ontario *Courts of Justice Act*, RSO 1990, c. C.43, s. 42(1), specifies that appointments of provincial court judges are by the lieutenant governor in council "on the recommendation of the Attorney General").
The crown (governor general, but not the lieutenant governor*) has the legal power by virtue of the royal prerogative to enter into treaties with foreign states, to command the armed forces, to declare war and peace, to receive ambassadors, and, in general, to conduct foreign affairs. In Canada, the "Queen" has the "Command-in-Chief of the Land and Naval Militia, and of all Naval and Military Forces, of and in Canada" by virtue of s. 15 of the *Constitution Act, 1867*. The governor general is made "commander-in-chief" by the 1947 Letters Patent. [*It may be said that there are limited provincial prerogative powers on foreign affairs within areas of provincial competence. Quebec has been most forceful in making this assertion (the 'Gérin-Lajoie doctrine'), and has a Minister of International Relations and offices in foreign states.]	To the extent that a formal instrument is needed in relation to foreign affairs or defence, the crown (governor general) must only exercise prerogative powers relating to foreign and military affairs upon the direction of ministers of the crown who are responsible to Parliament. However, most foreign affairs and defence prerogative powers do not require a formal crown instrument and so may be exercised directly by the prime minister or relevant cabinet minister and have in some cases been subjected to statute (like the *National Defence Act*).

See in general Andrew Heard, *Canadian Constitutional Conventions: The Marriage of Law and Politics*, 2nd ed. (Oxford: Oxford University Press, 2014) .

4.3.3 Cabinet as hyphen between executive and legislative branches: revisiting the separation of powers

Now that we have examined the central place of cabinet in the system of government, we can see why the separation of powers, although "part of the foundational architecture of our constitutional order", is not "watertight".[91] The prime minister and other ministers of the crown who form cabinet by convention "must be or become members of the Legislature and are expected, individually and collectively, to enjoy the confidence of its elected branch" with the result that there is "a considerable degree of integration between the Legislature and the Government".[92] The central players in the executive government are also central players in the legislature.

The British writer Walter Bagehot famously described "cabinet" as "a combining committee—a *hyphen* which joins, a *buckle* which fastens, the legislative part of the state to the executive part of the state".[93] A large part of what we consider to be the work of government—the work of governmental departments and the ministers presiding over them—is to develop policies, incorporate those policies into draft legislation, and introduce bills into parliament or the legislative assembly that will be debated, voted upon, and, if all goes according to plan, enacted as statutes or primary legislation. In *Mikisew Cree*, which addressed whether the government was under a duty to consult Indigenous communities pursuant to the 'honour of the crown' principle when drafting a bill that might affect them, Karakatsanis J. cited Bagehot's "hyphen" metaphor and concluded that all of the stages of the legislative process, even policy development long before a bill gets to parliament, represent the exercise by ministers and their governmental departments of "legislative" power pursuant to Part IV of the *Constitution Act, 1867* rather than "executive" power under Part III.[94]

Although the same ministers are involved, the hyphen clearly separates the legislative from the executive parts of their jobs. The distinction matters because activities on the legislative side of the hyphen represent the exercise of parliamentary sovereignty and are immune from judicial review or the imposition of procedural or substantive duties (like the duty to consult), though any resulting statute produced will of course be open to legal challenge on constitutional grounds. In contrast, activities on the executive side of the hyphen involve administering or executing the law by decisions made pursuant to powers conferred by statutes (or primary legislation), or by the royal prerogative, and are all in principle judicially reviewable to ensure that appropriate legal standards, whether common law, legislative, or constitutional, are met even before the decision is made—including, for example, consulting affected Indigenous communities to ensure the 'honour of the crown'.

What about the vast body of subordinate or *secondary* legislation made by the executive government, like regulations made by the governor in council or ministers pursuant to powers conferred by primary legislation? Karakatsanis J. was clear: "the process by which subordinate legislation (such as regulations or rules) is adopted ... is clearly executive rather than parliamentary".[95] The real issue, then, is not whether members of the executive government are exercising executive or legislative functions, but whether their activities are *parliamentary* in the sense in which they are an integral part of the distinctive constitutional role allocated to parliament or the provincial legislatures respectively.

4.3.4 Piercing the veil of law to recognize the constitutional importance of conventions

The orthodox view is that courts do not enforce constitutional conventions because they are not law. However, courts do not ignore constitutional conventions; on the contrary, judges have insisted that the proper interpretation of law may require weighing the importance of conventions for securing the principle of responsible government and thus constitutional democracy in Canada.[96]

When reviewing whether an executive or administrative decision is lawful or not, Stratas J.A. has observed that it may be relevant for the court to consider the nature of the body that made the decision. Where the decision being judicially reviewed was made by the governor in council, it may be helpful to pause and recall just who or what the governor in council really is. Wrote Stratas J.A.:

> The "Governor in Council" is the "Governor General of Canada acting by and with the advice of, or by and with the advice and consent of, or in conjunction with the Queen's Privy Council for Canada" ... All the ministers of the Crown ... are active members of the Queen's Privy Council for Canada. They meet in a body known as Cabinet. Cabinet is "to a unique degree the grand co-ordinating body for the divergent provincial, sectional, religious, racial and other interests throughout the nation" and, by convention, it attempts to represent different geographic, linguistic, religious, and ethnic groups: Norman Ward, *Dawson's The Government of Canada*, 6th ed., (Toronto: University of Toronto Press, 1987), at pages 203–204 ...[97]
>
> By vesting decision making authority over a certain matter in the governor in council, then, "Parliament implicated the decision making of Cabinet, a body of diverse policy perspectives representing all constituencies within government".[98] Knowing this may affect how judges review the decision. Judges have often pierced the veil of formal law to see the actual source of executive power.[99] Having said this, the courts also insist that the same principles of law apply regardless of the identity of the decision-maker, even if the decision-maker is the governor or king in council, because decisions or regulations made pursuant to a statute "derive their validity from the statute which creates the power, and not from the executive body by which they are made".[100]

The close relationship between constitutional law and constitutional convention is, at times, too important for judges to ignore. The governor general appoints Senators (*Constitution Act, 1867*, s. 24), but, as the Supreme Court of Canada observed, "constitutional convention requires the Governor General to follow the recommendations of the Prime Minister of Canada when filling Senate vacancies".[101] The Court then concluded that a proposed federal statute that would have introduced the option for provinces to hold non-binding or 'consultative' elections for Senate nominees, even though it left the formal appointment process intact, was unconstitutional because it would have had a profound impact on the "architecture of the Constitution" by transforming the Senate over time into an elected body—a result flowing from the "practical effect" of non-binding senatorial elections given the "political pressures" that would have been created for prime ministers to respect electoral outcomes (paras. 61-62). In effect, the Court ruled that a law that would likely have altered a constitutional convention was unconstitutional because of its impact on the constitution's structure or architecture.

The following case is a recent example of the Supreme Court of Canada insisting that constitutional convention informs the interpretation of constitutional law.

4.3.4.1 *Ontario (Attorney General) v. Ontario (Information and Privacy Commissioner)*, 2024 SCC 4

> The judgment of Wagner C.J. and Karakatsanis, Rowe, Martin, Jamal and O'Bonsawin JJ. was delivered by
>
> **Karakatsanis J. —**
>
> I. Introduction
>
> [1] Freedom of information (FOI) legislation strikes a balance between the public's need to know and the confidentiality the executive requires to govern effectively. Both are crucial to the proper functioning of our democracy. This appeal concerns the balance between these two foundational principles.
>
> [2] Access to information promotes transparency, accountability, and meaningful public participation ...
>
> [3] However, in our Westminster system of government, the executive — like the judicial and legislative branches — also requires certain spheres of confidentiality to fulfill its constitutional role. Each of the executive, legislative branch, and judiciary play "critical and complementary roles in our constitutional democracy" and "each branch will be unable to fulfill its role if it is unduly interfered with by the others" (*Ontario v. Criminal Lawyers' Association of Ontario*, 2013 SCC 43, [2013] 3 SCR 3, at para. 29). Thus, constitutional conventions flow from the separation of powers and protect the spheres of confidentiality needed for a government institution "to perform its constitutionally-assigned functions" (*British Columbia (Attorney General) v. Provincial Court Judges' Association of British Columbia*, 2020 SCC 20, [2020] 2 SCR 506 (*B.C. Judges*), at para. 66). ... Cabinet confidentiality grants the executive the necessary latitude to govern in an effective, collectively responsible manner (*Babcock v. Canada (Attorney General)*, 2002 SCC 57, [2002] 3 SCR 3, at para. 15). ...
>
> [4] ... This appeal implicates that balance in relation to the Cabinet records exemption in s. 12(1) of Ontario's *Freedom of Information and Protection of Privacy Act*, R.S.O. 1990, c. F.31 (*FIPPA*). Section 12(1) exempts a list of records, as well as any other records that would reveal the "substance of deliberations" of Cabinet or its committees. The interpretation of "substance of deliberations" by the Information and Privacy Commissioner of Ontario (IPC or Commissioner) is at the heart of this case. [*Note: it is important to observe that section 12(1) does not actually refer to "Cabinet" but rather refers to the "Executive Council".*]
>
> [5] The access to information dispute in this appeal arises out of a Canadian Broadcasting Corporation (CBC) journalist's request to access 23 letters that the Premier of Ontario delivered to each of his ministers shortly after forming government in 2018 (Letters). These Letters, commonly called "mandate letters", set out the Premier's views on policy priorities for the government's term in office. Cabinet Office declined the journalist's request, claiming the Letters were exempt from disclosure under s. 12(1) of *FIPPA*.
>
> [6] The CBC appealed to the IPC, who found that the Letters were not exempt and ordered their disclosure ... On judicial review, the Ontario Divisional Court found that the IPC's decision was reasonable and a majority of the Ontario Court of Appeal agreed ...
>
> [7] As I shall explain, I conclude that the IPC's decision was unreasonable. The Commissioner paid careful attention to the text of the legislation and considered some of the purposes of Cabinet confidentiality. His reasons were intelligible and transparent. But he did not engage meaningfully with the legal and factual context against which s. 12(1) operates — in particular, constitutional conventions and traditions surrounding Cabinet confidentiality and Cabinet's decision-making process, including the role of the Premier within that process. Cabinet confidentiality creates conditions necessary to ensure an effective government. The Commissioner did not consider a key rationale underlying the convention: promoting the efficiency of the collective decision-making process. His failure to grapple with the broader constitutional dimension of Cabinet confidentiality led him to an overly narrow interpretation of s. 12(1). ...
>
> ...
>
> [14] Section 12(1) protects the confidentiality of records that "would reveal the substance of [Cabinet] deliberations". ... The opening words of s. 12(1) provide that "[a] head shall refuse to disclose a record where the disclosure would reveal the substance of deliberations" of Cabinet or its committees…
>
> ...

[27] Beyond legislation, Cabinet confidentiality is protected as a matter of constitutional convention, or the rules of behavior established by government institutions that are not enforced by the courts, but are considered binding by those who operate the Constitution (A. Heard, *Canadian Constitutional Conventions: The Marriage of Law & Politics* (2nd ed. 2014), at p. 5; see also *Reference re Resolution to amend the Constitution*, 1981 CanLII 25 (SCC), [1981] 1 SCR 753, at p. 880). Because s. 12(1) was designed to preserve the secrecy of Cabinet's deliberative process, the constitutional dimension of Cabinet secrecy was crucial context in interpreting s. 12(1).

[28] In our constitutional democracy, the confidentiality of Cabinet deliberations is a precondition to responsible government because it enables collective ministerial responsibility. Responsible government is a fundamental principle of our system of government (*OPSEU v. Ontario (Attorney General)*, 1987 CanLII 71 (SCC), [1987] 2 SCR 2, at p. 38) and the "most important non-federal characteristic of the Canadian Constitution" (P. W. Hogg and W. K. Wright, *Constitutional Law of Canada* (5th ed. Supp.), at § 9:3). Government is "responsible" in that the executive is accountable to, and must maintain the confidence of, the legislative assembly (§ 9:1; Heard, at p. 90). Cabinet ministers are both *individually* responsible for their own conduct and respective departments, and *collectively* responsible for government policy and action (G. White, *Cabinets and First Ministers* (2005), at pp. 15-16).

[29] Cabinet secrecy derives from the collective dimension of ministerial responsibility (Y. Campagnolo, "The Political Legitimacy of Cabinet Secrecy" (2017), 51 *R.J.T.U.M.* 51, at p. 59). Collective ministerial responsibility requires that ministers be able to speak freely when deliberating without fear that what they say might be subject to public scrutiny (IPC reasons, at paras. 86-87 and 97). ... At base, Cabinet confidentiality promotes executive accountability by permitting private disagreement and candour in ministerial deliberations, despite public solidarity…

...

[32] The IPC demonstrated appreciation for the import of the candour and solidarity rationales supporting Cabinet confidentiality, citing this Court's decision in *Babcock* (see para. 87). ... But the IPC's engagement with the convention of Cabinet confidentiality essentially stopped there (see para. 87). Despite the submissions of Cabinet Office that disclosure of the mandate Letters could harm the efficacy of the Cabinet decision-making process (A.R., vol. III, at pp. 101-2), the Commissioner did not engage with a core purpose of Cabinet secrecy to promote the efficiency of the collective decision making, nor with the ultimate goal of this constitutional convention: effective government. This was critical context to interpreting s. 12(1).

[33] Ministerial candour and solidarity are components of effective governance, to be sure, but they are only part of the foundation on which Cabinet confidentiality and effective governance rests — and thus the legal context within which s. 12(1) operates. To reasonably interpret the opening words of s. 12(1), it was therefore critical that the IPC fully consider the function of Cabinet within our system of government, and the bounds of confidentiality necessary for it to discharge that function effectively (see *Criminal Lawyers' Association 2010*, at para. 40; C.A. reasons, at para. 163). The IPC's failure to do so was material. It led him to: (1) ascribe an overly narrow purpose to s. 12(1); and (2) neglect important arguments made by Cabinet Office that informed the scope of the exemption.

...

[58] In sum, the IPC failed to give meaningful weight to the legal and factual context, including traditions and constitutional conventions concerning Cabinet confidentiality, the role of the Premier, and the fluid, dynamic nature of the Cabinet decision-making process. The IPC's lack of appreciation for the contextual constraints bearing upon its decision led him to unreasonable interpretive approaches and conclusions. He characterized the Letters as outcomes of the *Premier's* deliberative process; found they were mere topics that did not permit accurate inferences as to Cabinet deliberations; and required evidence from Cabinet Office to show that disclosure of the Letters would permit accurate inferences to be drawn as to "actual Cabinet deliberations at a specific Cabinet meeting" (para. 100; see also paras. 116-17). As a result, the IPC's narrow interpretation of the "substance of deliberations" was unreasonable. ...

…

[60] Given the key role Cabinet confidentiality plays in the proper functioning of our Westminster system of government, cases about its proper scope raise important issues for the stability and legitimacy of our democracy. Cabinet confidentiality both enables the proper functioning of responsible government by promoting collective ministerial accountability to the legislature and affords the executive the operational space it needs to function effectively ... These functions are crucial both to the principle of responsible government and to the separation of powers. Spheres of confidentiality insulated from "undue external interference" are essential to the executive's ability to "perform its constitutionally-assigned functions" (*B.C. Judges*, at paras. 66 and 96).

[61] In approaching assertions of Cabinet confidentiality, administrative decision makers and reviewing courts must be attentive not only to the vital importance of public access to government-held information but also to Cabinet secrecy's core purpose of enabling effective government, and its underlying rationales of efficiency, candour, and solidarity. They must also be attentive to the dynamic and fluid nature of executive decision making, the function of Cabinet itself and its individual members, the role of the Premier, and Cabinet's prerogative to determine when and how to announce its decisions.

...

[64] I would allow the appeal and set aside the order of the IPC, with costs to the appellant payable by the CBC. The private record of proceedings filed with this Court will remain in the Court file but shall be confidential, sealed, and not form part of the public record.

4.3.5 Judicial review of executive 'high policy' decisions

The crown and crown ministers may be under the law in their executive capacities, yet many of the executive decisions we've considered—like deciding when to dissolve parliament and call an election or how to engage with other states on the international stage—are inherently political decisions that may defy legal assessment or standards. In this last section, we consider how courts have recently approached the question of whether sensitive executive decisions made pursuant to the royal prerogative are open to judicial review.[102]

4.3.5.1 *Black v. Canada (Prime Minister)*, 2001 CanLII 8537 (ON CA), 2001 ONCA 8537 54 O.R. (3d) 215

Background context: Conrad Black was a well-known newspaper publisher in Canada and the United Kingdom. He was considered for nomination to the House of Lords in Britain, even though he was at the time a Canadian not a British citizen. Appointments to the UK House of Lords are made by the queen or king on the recommendation of the British prime minister. The Canadian prime minister at the time, Jean Chrétien, intervened and informed the queen that the appointment of Black to a peerage would contravene Canadian policies regarding such honours—in particular a resolution of the House of Commons (the 'Nichols' resolution in 1919) on the conferral of titles.

Black brought an action against the prime minister for abuse of power, misfeasance in public office, and negligence. It was argued that the prime minister was acting in his private capacity and was motivated by dislike for Black. The trial judge found that the prime minister, in making the representations to the queen, was exercising prerogative powers relating to honours and foreign affairs and dismissed the actions. On appeal, two of the issues addressed were: could the prime minister exercise powers pursuant to the royal prerogative, and, if so, is the exercise of prerogative power open to challenge in court (is the prerogative 'justiciable')?

Court of Appeal for Ontario

Laskin J.A.

…

[31] Mr. Black's ... submission is that the Prime Minister cannot exercise the Crown prerogative. He submits that in Canada, only the Governor General can exercise the prerogative. I find no support for this proposition in theory or in practice. Admittedly, the Governor General is the Queen's permanent representative in Canada. The 1947 Letters Patent constituting the office of the Governor General of Canada ... is the instrument by which the Monarch delegates her prerogative powers for application in Canada. The Letters Patent empower the Governor General "to exercise all powers and authorities lawfully belonging to Us in respect of Canada" (at para. II). By convention, the Governor General exercises her powers on the advice of the Prime Minister or Cabinet. Although the Governor General retains discretion to refuse to follow this advice, in Canada that discretion has been exercised only in the most exceptional circumstances. See Paul Lordon, Q.C., *Crown Law* (Toronto: Butterworths, 1991) at p. 70.

[32] Still, nothing in the Letters Patent or the case law requires that all prerogative powers be exercised exclusively by the Governor General. As members of the Privy Council, the Prime Minister and other Ministers of the Crown may also exercise the Crown prerogative: see Lordon, *supra*, at p. 71. ... The conduct of foreign affairs, for example, "is an executive act of government in which neither the Queen nor Parliament has any part": F.A. Mann, *Foreign Affairs in English Courts* (Oxford: Clarendon Press, 1986) at p. 2. See also *Barton v. Commonwealth of Australia* (1974), A.L.J.R. 161 at 172.

[33] Counsel for the respondents points out that if Mr. Black were correct, the Prime Minister—whose powers are not enumerated in any statute—would have no legal authority to speak for Canada on foreign affairs. This proposition is, on its face, absurd. I therefore reject Mr. Black's submission that only the Governor General can exercise prerogative powers in Canada. I conclude that the Prime Minister and the Government of Canada can exercise the Crown prerogative as well.

[34] Mr. Black's [next] submission is that even if the Prime Minister can exercise prerogative power relating to the granting of honours or the conduct of foreign affairs, on the facts pleaded in the amended statement of claim, Prime Minister Chrétien was doing neither. He was not deciding whether to grant Mr. Black an honour -- that decision rests with the Queen -- and he was not conducting foreign affairs. Instead, according to Mr. Black, Prime Minister Chrétien intervened personally with the Queen and gave unsolicited and wrong legal advice.

[35] In my view, however, whether one characterizes the Prime Minister's actions as communicating Canada's policy on honours to the Queen, giving her advice on Mr. Black's peerage, or opposing Mr. Black's appointment, he was exercising the prerogative power of the Crown relating to honours.

[36] Unquestionably, the granting of honours is the prerogative of the Crown. The Monarch is "the fountain, parent and distributor of honours, dignities, privileges and franchises": Joseph Chitty, *A Treatise on the Law of the Prerogatives of the Crown: And the Relative Duties and Rights of the Subject* (London: Butterworths and Son, 1820), at p. 6. Because no statute in Canada governs the conferral of honours, this prerogative has not been displaced by federal law. Nor has it been limited by the common law. As Hogg and Monahan, *supra*, observe at pp. 18-19, appointments and honours is one area in which the prerogative power "remains meaningful". Their view is consistent with the opinion of Lord Roskill in the important House of Lords decision, *Council of Civil Service Unions v. Minister for the Civil Service*, [1985] 1 A.C. 374, [1984] 3 All E.R. 935. In his speech in that case Lord Roskill said at p. 418 that the modern exercise of the prerogative includes "the making of treaties, the defence of the realm, the prerogative of mercy, the grant of honours, the dissolution of Parliament and the appointment of ministers as well as others . . .". (Emphasis added.)

[37] It is one thing to state that the honours prerogative still exists in Canada. However, one critical question on this appeal is the scope of that power. Common sense dictates that, at a minimum, the honours prerogative includes the power to grant or refuse to grant an honour to a Canadian citizen. However, in my view the honours prerogative is much broader than that, and is not limited to conferrals the Government of Canada or the Prime Minister might make. The honours prerogative also includes giving advice on, even advising against, a foreign country's conferral of an honour on a Canadian citizen. If that were not so, the three Canadian policy statements on the granting of honours by foreign countries -- the 1919 Nickle Resolution, the 1968 Regulation and the 1988 Policy -- would be meaningless. Because these policy statements guide the exercise of Canada's honours prerogative, the exercise of the prerogative necessarily embraces the communication of these policies to a foreign country considering bestowing a title on a Canadian citizen. Furthermore, the authority to communicate that policy rests with the nation's leader, the Prime Minister.

[38] The policy statements show that Canada has chosen to exercise the honours prerogative differently from England. As we have seen, Canada calls for foreign countries to obtain the Government of Canada's approval before granting honours to Canadian citizens. The underlying rationale of these policies is egalitarianism. Canada disapproves of ranking its citizens according to status and lineage. In communicating Canada's policy to the Queen, in giving her advice on it, right or wrong, in advising against granting a title to one of Canada's citizens, the Prime Minister was exercising the Crown prerogative relating to honours.

...

[40] ... Prime Minister Chrétien's intervention with the Queen was not personal. Whatever his motivation, he was acting as the leader of this country, giving advice or communicating Canada's policy on honours to a foreign head of state.

...

[45] Under the law that existed at least into the 1960s, the court's power to judicially review the prerogative was very limited. The court could determine whether a prerogative power existed and, if so, what its scope was, and whether it had been superseded by statute. However, once a court established the existence and scope of a prerogative power, it could not review how that power was exercised. ... The appropriateness or adequacy of the grounds for its exercise, even whether the procedures used were fair, were not reviewable. The courts insisted that the source of the power -- the prerogative -- precluded judicial scrutiny of its exercise. The underlying rationale for this narrow review of the prerogative was that exercises of prerogative power ordinarily raised questions courts were not qualified or competent to answer.

[46] Even this narrow view of the court's role in reviewing the prerogative power now has to be modified in Canada because of the Canadian Charter of Rights and Freedoms. By s. 32(1)(a), the Charter applies to Parliament and the Government of Canada in respect of all matters within the authority of Parliament. The Crown prerogative lies within the authority of Parliament. Therefore, if an individual claims that the exercise of a prerogative power violates that individual's Charter rights, the court has a duty to decide the claim. See *Operation Dismantle, supra*. However, Mr. Black does not assert any Charter claim.

[47] Apart from the Charter, the expanding scope of judicial review and of Crown liability make it no longer tenable to hold that the exercise of a prerogative power is insulated from judicial review merely because it is a prerogative and not a statutory power. The preferable approach is that adopted by the House of Lords in the *Civil Service Unions* case, supra. There, the House of Lords emphasized that the controlling consideration in determining whether the exercise of a prerogative power is judicially reviewable is its subject matter, not its source. If, in the

words of Lord Roskill, the subject matter of the prerogative power is "amenable to the judicial process", it is reviewable; if not, it is not reviewable. Lord Roskill provided content to this subject matter test of reviewability by explaining that the exercise of the prerogative will be amenable to the judicial process if it affects the rights of individuals. Again, in his words at p. 417 A.C.:

> If the executive in pursuance of the statutory power does an act affecting the rights of the citizen, it is beyond question that in principle the manner of the exercise of that power may today be challenged on one or more of the three grounds which I have mentioned earlier in this speech [legality, rationality, and fairness]. If the executive instead of acting under a statutory power acts under a prerogative power ... so as to affect the rights of the citizen, I am unable to see, subject to what I shall say later, that there is any logical reason why the fact that the source of the power is the prerogative and not statute should today deprive the citizen of that right of challenge to the manner of its exercise which he would possess were the source of the power statutory. In either case the act in question is the act of the executive.

[48] In his speech in that case, Lord Diplock discussed two ways in which the exercise of a prerogative power may affect the rights of an individual: by altering the individual's legal rights and obligations or by affecting the individual's legitimate expectations. ...

[49] I agree with the House of Lords that the proper test for the review of the exercise of the prerogative is the subject matter test. It is that test that I will endeavour to apply in this case.

[50] At the core of the subject matter test is the notion of justiciability. The notion of justiciability is concerned with the appropriateness of courts deciding a particular issue, or instead deferring to other decision-making institutions like Parliament. ... Only those exercises of the prerogative that are justiciable are reviewable. The court must decide "whether the question is purely political in nature and should, therefore, be determined in another forum or whether it has a sufficient legal component to warrant the intervention of the judicial branch": *Reference re Canada Assistance Plan (British Columbia)*, 1991 CanLII 74 (SCC), [1991] 2 SCR 525 at p. 545, 58 B.C.L.R. (2d) 1.

[51] Under the test set out by the House of Lords, the exercise of the prerogative will be justiciable, or amenable to the judicial process, if its subject matter affects the rights or legitimate expectations of an individual. Where the rights or legitimate expectations of an individual are affected, the court is both competent and qualified to judicially review the exercise of the prerogative.

[52] Thus, the basic question in this case is whether the Prime Minister's exercise of the honours prerogative affected a right or legitimate expectation enjoyed by Mr. Black and is therefore judicially reviewable. To put this question in context, I will briefly discuss prerogative powers that lie at the opposite ends of the spectrum of judicial reviewability. At one end of the spectrum lie executive decisions to sign a treaty or to declare war. These are matters of "high policy": *R. v. Secretary of State for Foreign & Commonwealth Affairs, Ex p. Everett*, [1989] 1 All E.R. 655 at p. 660, [1989] Q.B. 811, per Taylor L.J. Where matters of high policy are concerned, public policy and public interest considerations far outweigh the rights of individuals or their legitimate expectations. In my view, apart from *Charter* claims, these decisions are not judicially reviewable.

[53] At the other end of the spectrum lie decisions like the refusal of a passport or the exercise of mercy. The power to grant or withhold a passport continues to be a prerogative power. ... [C]ommon sense dictates that a refusal to issue a passport for improper reasons or without affording the applicant procedural fairness should be judicially reviewable. This was the position taken by the English Court of Appeal in *R. v. Secretary of State for Foreign & Commonwealth Affairs, Ex p. Everett*, supra. ... Taylor L.J. wrote at p. 660 All E.R.:

> At the top of the scale of executive functions under the prerogative are matters of high policy, of which examples were given by their Lordships: making treaties, making law, dissolving Parliament, mobilising the armed forces. Clearly those matters, and no doubt a number of others, are not justiciable. But the grant or refusal of a passport is in a quite different category. It is a matter of administrative decision, affecting the rights of individuals and their freedom of travel. It raises issues which are just as justiciable as, for example, the issues arising in immigration cases.

[60] ... Here, no important individual interests are at stake. Mr. Black's rights were not affected, however broadly "rights" are construed. No Canadian citizen has a right to an honour.

[61] And no Canadian citizen can have a legitimate expectation of receiving an honour. ...

[64] For these reasons, I agree with the motions judge that Prime Minister Chrétien's exercise of the honours prerogative by giving advice to the Queen about granting Mr. Black's peerage is not justiciable and therefore not judicially reviewable.

Note: if Prime Minister Chrétien had been advising the Queen *in her capacity as the Queen of Canada* on how to exercise a power in relation the conferral of an honour in Canada, then he would not have been exercising the prerogative directly but 'advising' her in a *constitutional sense* about how she should exercise the prerogative. But Laskin J.A. found, rightly, that the Prime Minister "was giving advice or communicating Canada's policy on honours to a *foreign head of state*", i.e., he was informing the Queen in her capacity as the *Queen of the United Kingdom* about Canada's position regarding *foreign* honours for Canadian citizens, and this act was thus the exercise of a prerogative power directly not through advice in the constitutional sense. After all, the prime minister of Canada has no more right to advise the Queen of the United Kingdom on how to exercise her powers in that country than the prime minister of the United Kingdom has a right to advise the Queen of Canada on how to exercise her powers in this country. It is regrettable, however, that Laskin J.A. was not clearer as to when the prime minister or other ministers of the crown in Canada may exercise a prerogative power directly and when they may only 'advise' the crown in right of Canada on how a prerogative power in Canada should be exercised—for not all prerogative powers may be exercised directly by ministers (see Part 4.3.2 above).

4.3.5.2 *Canada (Prime Minister) v. Khadr*, 2010 SCC 3, [2010] 1 SCR 44

This was an appeal from a decision of the Federal Court of Appeal requiring the Canadian government to request the United States to return Omar Khadr from the US facility at Guantanamo Bay, Cuba. Khadr, a Canadian citizen, had been at the time detained at Guantanamo Bay without trial for over seven years. He was 15 years old when he was taken prisoner in 2002 by US forces in Afghanistan; it was alleged that he threw a grenade that killed a US soldier during a battle. In February and September 2003, agents from the Canadian Security Intelligence Service ("CSIS") and the Foreign Intelligence Division of the Department of Foreign Affairs and International Trade ("DFAIT") questioned Khadr in Guantanamo Bay on matters connected to the charges pending against him and shared the product of these interviews with US authorities. In March 2004, a DFAIT official interviewed Khadr again, with the knowledge that he had been subjected by US authorities to sleep deprivation. The Court concluded that the conduct of Canadian officials was contrary to Canada's international human rights obligations and were an unjustifiable violation of Khadr's right to liberty and security of the person guaranteed by section 7 of the *Canadian Charter of Rights and Freedoms*. We examine the Court's conclusions on the appropriate remedy here.

> **The Court (McLachlin C.J. and Binnie, LeBel, Deschamps, Fish, Abella, Charron, Rothstein and Cromwell JJ.):**
>
> ...
>
> *Is the Remedy Sought Appropriate and Just in All the Circumstances?*

[27] ... The issue on this appeal is whether the breach of s. 7 of the *Charter* entitles Mr. Khadr to the remedy of an order that Canada request of the United States that he be returned to Canada. Two questions arise at this stage: (1) Is the remedy sought sufficiently connected to the breach? and (2) Is the remedy sought precluded by the fact that it touches on the Crown prerogative power over foreign affairs?

...

[29] First, is the remedy sought sufficiently connected to the breach?

...

[32] We conclude that the necessary connection between the breaches of s. 7 and the remedy sought has been established for the purpose of these judicial review proceedings.

[33] Second, is the remedy sought precluded by the fact that it touches on the Crown prerogative over foreign affairs? A connection between the remedy and the breach is not the only consideration. As stated in *Doucet-Boudreau* [*Doucet-Boudreau v. Nova Scotia (Minister of Education)*, 2003 SCC 62, [2003] 3 SCR 3], an appropriate and just remedy is also one that "must employ means that are legitimate within the framework of our constitutional democracy" (para. 56) and must be a "judicial one which vindicates the right while invoking the function and powers of a court" (para. 57). The government argues that courts have no power under the Constitution of Canada to require the executive branch of government to do anything in the area of foreign policy. It submits that the decision not to request the repatriation of Mr. Khadr falls directly within the prerogative powers of the Crown to conduct foreign relations, including the right to speak freely with a foreign state on all such matters: P. W. Hogg, *Constitutional Law of Canada* (5th ed. Supp.), at p. 1-19.

[34] The prerogative power is the "residue of discretionary or arbitrary authority, which at any given time is legally left in the hands of the Crown": *Reference as to the Effect of the Exercise of the Royal Prerogative of Mercy Upon Deportation Proceedings*, 1933 CanLII 40 (SCC), 1933 SCC 40, [1933] SCR 269, at p. 272, *per* Duff C.J., quoting A. V. Dicey, *Introduction to the Study of the Law of the Constitution* (8th ed. 1915), at p. 420. It is a limited source of non-statutory administrative power accorded by the common law to the Crown: Hogg, at p. 1-17.

[35] The prerogative power over foreign affairs has not been displaced by s. 10 of the *Department of Foreign Affairs and International Trade*, R.S.C. 1985, c. E-22, and continues to be exercised by the federal government. The Crown prerogative in foreign affairs includes the making of representations to a foreign government: *Black v. Canada (Prime Minister)* (2001), 2001 CanLII 8537 (ON CA), 2001 ONCA 8537, 199 D.L.R. (4th) 228 (Ont. C.A.). We therefore agree with O'Reilly J.'s implicit finding (paras. 39, 40 and 49) that the decision not to request Mr. Khadr's repatriation was made in the exercise of the prerogative over foreign relations.

[36] In exercising its common law powers under the royal prerogative, the executive is not exempt from constitutional scrutiny: *Operation Dismantle v. The Queen*, 1985 CanLII 74 (SCC), 1985 SCC 74, [1985] 1 SCR 441. It is for the executive and not the courts to decide whether and how to exercise its powers, but the courts clearly have the jurisdiction and the duty to determine whether a prerogative power asserted by the Crown does in fact exist and, if so, whether its exercise infringes the *Charter* (*Operation Dismantle*) or other constitutional norms (*Air Canada v. British Columbia (Attorney General)*, 1986 CanLII 2 (SCC), 1986 SCC 2, [1986] 2 SCR 539).

[37] The limited power of the courts to review exercises of the prerogative power for constitutionality reflects the fact that in a constitutional democracy, all government power must be exercised in accordance with the Constitution. This said, judicial review of the exercise of the prerogative power for constitutionality remains sensitive to the fact that the executive branch of government is responsible for decisions under this power, and that the executive is better placed to make such decisions within a range of constitutional options. The government must have flexibility in deciding how its duties under the power are to be discharged: see, e.g., *Reference re Secession of Quebec*, 1998 CanLII 793 (SCC), 1998 SCC 793, [1998] 2 SCR 217, at paras. 101-2. But it is for the courts to determine the legal and constitutional limits within which such decisions are to be taken. It follows that in the case of refusal by a government to abide by constitutional constraints, courts are empowered to make orders ensuring that the government's foreign affairs prerogative is exercised in accordance with the constitution: *United States v. Burns*, 2001 SCC 7, [2001] 1 SCR 283.

[38] Having concluded that the courts possess a narrow power to review and intervene on matters of foreign affairs to ensure the constitutionality of executive action, the final question is whether O'Reilly J. misdirected himself in exercising that power in the circumstances of this case ...

[39] Our first concern is that the remedy ordered below gives too little weight to the constitutional responsibility of the executive to make decisions on matters of foreign affairs in the context of complex and ever-changing circumstances, taking into account Canada's broader national interests. For the following reasons, we conclude that the appropriate remedy is to declare that, on the record before the Court, Canada infringed Mr. Khadr's s. 7 rights, and to leave it to the government to decide how best to respond to this judgment in light of current information, its responsibility for foreign affairs, and in conformity with the *Charter*.

[40] As discussed, the conduct of foreign affairs lies with the executive branch of government. The courts, however, are charged with adjudicating the claims of individuals who claim that their *Charter* rights have been or will be violated by the exercise of the government's discretionary powers: *Operation Dismantle*.

[41] In some situations, courts may give specific directions to the executive branch of the government on matters touching foreign policy. For example, in *Burns*, the Court held that it would offend s. 7 to extradite a fugitive from Canada without seeking and obtaining assurances from the requesting state that the death penalty would not be imposed. The Court gave due weight to the fact that seeking and obtaining those assurances were matters of Canadian foreign relations. Nevertheless, it ordered that the government seek them.

[42] The specific facts in *Burns* justified a more specific remedy. The fugitives were under the control of Canadian officials. It was clear that assurances would provide effective protection against the prospective *Charter* breaches: it was entirely within Canada's power to protect the fugitives against possible execution. Moreover, the Court noted that no public purpose would be served by extradition without assurances that would not be substantially served by extradition with assurances, and that there was nothing to suggest that seeking such assurances would undermine Canada's good relations with other states: *Burns*, at paras. 125 and 136.

[43] The present case differs from *Burns*. Mr. Khadr is not under the control of the Canadian government; the likelihood that the proposed remedy will be effective is unclear; and the impact on Canadian foreign relations of a repatriation request cannot be properly assessed by the Court.

[44] This brings us to our second concern: the inadequacy of the record. The record before us gives a necessarily incomplete picture of the range of considerations currently faced by the government in assessing Mr. Khadr's request. We do not know what negotiations may have taken place, or will take place, between the U.S. and Canadian governments over the fate of Mr. Khadr. As observed by Chaskalson C.J. in *Kaunda v. President of the Republic of South Africa*, [2004] ZACC 5, 136 I.L.R. 452, at para. 77: "The timing of representations if they are to be made, the language in which they should be couched, and the sanctions (if any) which should follow if such representations are rejected are matters with which courts are ill-equipped to deal." It follows that in these circumstances, it would not be appropriate for the Court to give direction as to the diplomatic steps necessary to address the breaches of Mr. Khadr's *Charter* rights.

...

[46] In this case, the evidentiary uncertainties, the limitations of the Court's institutional competence, and the need to respect the prerogative powers of the executive, lead us to conclude that the proper remedy is declaratory relief. ...

[47] The prudent course at this point, respectful of the responsibilities of the executive and the courts, is for this Court to allow Mr. Khadr's application for judicial review in part and to grant him a declaration advising the government of its opinion on the records before it which, in turn, will provide the legal framework for the executive to exercise its functions and to consider what actions to take in respect of Mr. Khadr, in conformity with the *Charter*.

Conclusion

[48] The appeal is allowed in part. Mr. Khadr's application for judicial review is allowed in part. This Court declares that through the conduct of Canadian officials in the course of interrogations in 2003-2004, as established on the evidence before us, Canada actively participated in a process contrary to Canada's international human rights obligations and contributed to Mr. Khadr's ongoing detention so as to deprive him of his right to liberty and security of the person guaranteed by s. 7 of the *Charter*, contrary to the principles of fundamental justice. Costs are awarded to Mr. Khadr.

4.3.5.3 *Hupacasath First Nation v. Canada (Foreign Affairs and International Trade Canada)*, 2015 FCA 4

Federal Court of Appeal

Stratas J. (Nadon and Scott J.A. concurring):

[1] In the Federal Court, the appellant, Hupacasath First Nation, alleged that a foreign investment promotion and protection agreement between Canada and the People's Republic of China might affect Aboriginal rights and interests it has asserted over certain lands in British Columbia. Due to that potential effect, the appellant submitted that, as a matter of law, the Minister of Foreign Affairs Canada and the Attorney General of Canada ("Canada") had to consult with it and, if necessary, accommodate its concerns before causing the agreement to come into force. Canada did not do this and so, the appellants said, Canada failed to fulfil its duty.

...

[11] The appellant is a band under the *Indian Act*, R.S.C. 1985, c. I-5. Its 285 members live on two reserves covering roughly 56 acres of land on Vancouver Island. However, it asserts Aboriginal rights, including self-government rights, and title over roughly 573,000 acres of land on Vancouver Island, an area that overlaps with the territory claimed by nine other First Nations.

[12] On September 9, 2012, Canada announced that it had signed a foreign investment promotion and protection agreement with the People's Republic of China. This agreement is known as the *Agreement between the Government of Canada and the Government of the People's Republic of China for the Promotion and Reciprocal Protection of Investments* (hereafter "Agreement"). The Agreement is similar to twenty-four other foreign investment promotion and protection agreements Canada has signed with other nations.

[13] Under the Agreement, Canada and the People's Republic of China must, among other things, treat investors from the other country and their investments in accordance with principles of non-discriminatory treatment and protection from expropriation without compensation. ...

...

[16] Broadly speaking, the appellant says that the Agreement changes the landscape in the sense that it creates incentives for Canada to act in a manner that avoids breaches of the Agreement and resulting monetary awards. This, it says, may cause Canada to act in a manner that injures the appellant and its interests.

[17] On the law set out in cases such as *Rio Tinto Alcan Inc. v. Carrier Sekani Tribal Council*, 2010 SCC 43, [2010] 2 SCR 650, *Mikisew Cree First Nation v. Canada (Minister of Canadian Heritage)*, 2005 SCC 69, [2005] 3 SCR 388, and *Haida Nation v. British Columbia (Minister of Forests)*, 2004 SCC 73, [2004] 3 SCR 511, the appellant says that Canada became obligated in these circumstances to consult with it and accommodate its rights and interests. Before signing the Agreement and, indeed, before the matter was heard in the Federal Court, Canada did not consult with the appellant. The appellant maintains that had Canada consulted with it, Canada would have had to protect the appellant's rights in the Agreement. But Canada did not.

The matter under review and the nature of the jurisdictional issue

[23] The matter under review is the coming into effect of the Agreement. This, the appellant says, will happen without consultation with it, thereby violating its rights.

[24] How does this Agreement come into effect? The parties agree that this happens in two steps.

[25] First, the Governor in Council passes an order in council authorizing the Minister of Foreign Affairs to take the actions necessary to have the Agreement come into effect. At the time of the appellant's judicial review, this had not been done.

[26] Second, the Agreement comes into effect when the Minister signs an instrument of ratification and Canada delivers it to the People's Republic of China, confirming that all of Canada's internal legal procedures for bringing the Agreement into effect have been met. ...

…

[31] In this case, however, the Governor in Council's power to make the order is not conferred by or under an Act of Parliament. What is the source of its power?

[32] The Governor in Council's power to make the order comes from the Crown's prerogative powers. These are the Crown's remaining inherent or historical powers as the common law has shaped them: Peter W. Hogg, Q.C., *et al.*, *Liability of the Crown*, 4th ed. (Toronto: Carswell, 2011) at pages 19-20. Looking at it another way, prerogative powers are "the residue of discretionary or arbitrary authority, which at any given time is legally left in the hands of the Crown": A.V. Dicey, *Law of the Constitution*, 10th ed. (1959) at page 424.

[33] The conduct of foreign affairs is one area where the Crown holds some prerogative powers. These include the power to enter into treaties and international agreements. Properly understood then, to bring the Agreement into effect, the Crown, acting through the Governor in Council, uses its prerogative power to make an order instructing the Minister of Foreign Affairs to issue an instrument of ratification. In turn, the Minister of Foreign Affairs complies with that order.

[34] In principle, exercises of pure Crown prerogative, such as the Governor in Council's exercise of power in this case, can be judicially reviewed: *Council of Civil Service Unions v. Minister for the Civil Service*, [1985] 1 A.C. 374, [1984] 3 All E.R. 935 (H.L.). However, in Canada, in the case of the federal Crown prerogative, the question is where that review can take place. Do the Federal Courts have the power

under the *Federal Courts Act* to review exercises of pure Crown prerogative? If not, provincial superior courts have that power by default because of their inherent jurisdiction.

...

[Stratas J.A. then examined competing arguments as to the jurisdiction of the Federal Court to review exercises of prerogative power by the federal crown.]

[58] In light of the foregoing, I conclude that the Federal Courts can review exercises of jurisdiction or power rooted solely in the federal Crown prerogative.

The justiciability issue

[59] In the course of its written submissions on this Court's jurisdiction, Canada says that if exercises of pure federal Crown prerogative are potentially reviewable, then this Court still cannot consider them. The subject-matter, being policy-oriented and concerned with foreign relations, is not justiciable, *i.e.*, it is not appropriately reviewable in a court of law.

[60] In support of this, Canada submits that exercises of pure federal Crown prerogative are reviewable only where Charter rights are in issue. They cite *Canada (Prime Minister) v. Khadr*, 2010 SCC 3[2010] 1 SCR 44 at paragraphs 36-36 and *Operation Dismantle Inc. v. Canada*, 1985 CanLII 74 (SCC), 1985 SCC 74, [1985] 1 SCR 441, 18 D.L.R. (4th) 481.

[61] It is true that these cases do stand for the narrow proposition that Charter cases are justiciable regardless of the nature of the government action, be it an exercise of the Crown prerogative or otherwise. But these cases do not stand for the broad proposition that all other exercises of the Crown prerogative are not justiciable. In fact, as I shall demonstrate, some are.

[62] Justiciability, sometimes called the "political questions objection," concerns the appropriateness and ability of a court to deal with an issue before it. Some questions are so political that courts are incapable or unsuited to deal with them, or should not deal with them in light of the time-honoured demarcation of powers between the courts and the other branches of government.

[63] Whether the question before the Court is justiciable bears no relation to the source of the government power: *R. v. Ministry of Defence, ex parte Smith*, [1995] 4 All E.R. 427, aff'd [1996] Q.B. 517, [1996] 1 All E.R. 257 (C.A.). For some time now, it has been accepted that for the purposes of judicial review there is no principled distinction between legislative sources of power and prerogative sources of power: *Council of Civil Service Unions*, *supra*. I agree with the following passage from Lord Roskill's speech in that case (at page 417 A.C.):

> If the executive in pursuance of the statutory power does an act affecting the rights of the citizen, it is beyond question that in principle the manner of the exercise of that power may be challenged on one or more…grounds…. If the executive instead of acting under a statutory power acts under a prerogative power…I am unable to see…that there is any logical reason why the fact that the source of the power is the prerogative and not statute should deprive the citizen of that right of challenge to the manner of its exercise which he would possess were the source of the power statutory. In either case the act in question is the act of the executive.

[64] I also agree with the Court of Appeal for Ontario in *Black*, *supra* at paragraph 44 that "the source of the power – statute or prerogative – should not determine whether the action complained of is reviewable."

[65] So what is or is not justiciable?

[66] In judicial review, courts are in the business of enforcing the rule of law, one aspect of which is "executive accountability to legal authority" and protecting "individuals from arbitrary [executive] action": *Reference Re Secession of Quebec*, 1998 CanLII 793 (SCC), 1998 SCC 793, [1998] 2 SCR 217, 161 D.L.R. (4th) 385 at paragraph 70. Usually when a judicial review of executive action is brought, the courts are institutionally capable of assessing whether or not the executive has acted reasonably, *i.e.*, within a range of acceptability and defensibility, and that assessment is the proper role of the courts within the constitutional separation of powers. ... In rare cases, however, exercises of executive power are suffused with ideological, political, cultural, social, moral and historical concerns of a sort not at all amenable to the judicial process or suitable for judicial analysis. In those rare cases, assessing whether the executive has acted within a range of acceptability and defensibility is beyond the courts' ken or capability, taking courts beyond their proper role within the separation of powers. For example, it is hard to conceive of a court reviewing in wartime a general's strategic decision to deploy military forces in a particular way. ...

[68] There are authorities suggesting that executive decisions to sign a treaty, without more, are not justiciable: see, e.g., *R. v. Secretary of State for Foreign and Commonwealth Affairs, Ex. P. Everett*, [1989] 1 All E.R. 655 at page 690, [1989] Q.B. 811, cited in *Black*, *supra* at paragraph 52. This makes sense, as the factors underlying a decision to sign a treaty are beyond the courts' ken or capability to assess, and any assessment of them would take courts beyond their proper role within the separation of powers.

[69] But here the gist of the appellant's challenge is different. It alleges that, regardless of the factors prompting the Agreement, the decision of the executive to bring the Agreement into effect would be unacceptable and indefensible because the appellant has enforceable legal rights to be consulted before that happens. In this case, acceptability and defensibility turns on whether or not the appellant has those legal rights.

[70] Assessing whether or not legal rights exist on the facts of a case lies at the core of what courts do. Under the constitutional separation of powers, determining this is squarely within our province. Canada's justiciability objection has no merit.

...

Was a duty to consult triggered?

[79] The parties agree that the Federal Court identified the correct law concerning what triggers the duty to consult and, if necessary, accommodate Aboriginal rights and title which have been asserted but not yet proven. That law is found in *RioTinto, Mikisew,* and *Haida Nation*, all *supra*.

...

[82] The Supreme Court identified two aims the duty to consult is meant to further. First is "the need to protect Aboriginal rights and to preserve the future use of the resources claimed by Aboriginal peoples while balancing countervailing Crown interests": *Rio Tinto*, *supra* at paragraph 50. Second is the need to "recognize that actions affecting unproven Aboriginal title or rights or Agreement rights can have irreversible [adverse] effects that are not in keeping with the honour of the Crown": *Rio Tinto*, *supra* at paragraph 46.

[83] This last-mentioned idea – that the duty is aimed at preventing a present, real possibility of harm caused by dishonourable conduct that cannot be addressed later – is key:

> The Crown, acting honourably, cannot cavalierly run roughshod over Aboriginal interests where claims affecting these interests are being seriously pursued in the process of [Agreement] negotiation and proof. It must respect these potential, but yet unproven, interests. The Crown is not rendered impotent. It may continue to manage the resource in question pending claims resolution. But, depending on the circumstances,

> discussed more fully below, the honour of the Crown may require it to consult with and reasonably accommodate Aboriginal interests pending resolution of the claim. To unilaterally exploit a claimed resource during the process of proving and resolving the Aboriginal claim to that resource, may be to deprive the Aboriginal claimants of some or all of the benefit of the resource. That is not honourable.
>
> (*Haida*, *supra* at paragraph 27.)
>
> ...
>
> [85] Both before the Federal Court and in this Court, the central issue was whether ... [there was] a causal relationship between the Crown conduct and potential adverse impacts on pending Aboriginal claims or rights ...
>
> [Stratas J.A. then examined this point in detail.]
>
> [118] Assuming the Agreement is successful in achieving its objectives, it is true that there will be more investment in Canada from the People's Republic of China. But more investment in Canada does not necessarily lead to the conclusion that the appellant's Aboriginal rights will be affected. The appellant's case founders on that break in the chain of reasoning, a break that can only be repaired by resort to assumptions, conjectures or guesses. In short, the appellant has failed to show, in the words of *Rio Tinto* at paragraph 45, "a causal relationship between the proposed government conduct or decision and a potential for adverse impacts on [its] pending Aboriginal claims or rights" that rises above the speculative.
>
> ...
>
> [123] Therefore, for the foregoing reasons, I would dismiss the appeal with costs. I wish to thank the parties for their helpful submissions.

4.3.5.4 *MacKinnon v. Canada (Attorney General)*, 2025 FC 422

In this case, it was argued that the Prime Minister Justin Trudeau acted unlawfully when he advised the governor general to prorogue parliament for a lengthy period of time in circumstances in which, had parliament been able to convene, the opposition parties had indicated that they would have voted in favour of a non-confidence motion and thus forced an immediate election. It was argued that the decision to prorogue parliament not only prevented parliament from holding the government accountable, but it was made for partisan political reasons, namely, to allow the Liberal party time to select a new leader before the next election.

Crampton CJ had to address a series of issues. He concluded that (1) the Federal Court has jurisdiction under the *Federal Courts Act* to judicially review the exercise by a federal decision-maker of a prerogative power (rejecting the argument that only the provincial superior courts have that jurisdiction); (2) he concluded that although the prime minister's decision took the form of "advice" to the governor general and was not itself the decision to prorogue parliament, prime ministerial advice in this context has significant legal and practical implications, and so is judicially reviewable so long as it meets the test for justiciability; (3) he applied *Black* and *Hupacasath* and concluded that a decision to advise the governor general to prorogue parliament is not purely political or ideological but has a sufficient legal component and can be measured against legal standards, including unwritten constitutional principles, and so is justiciable; (4) he considered and rejected arguments that the prime minister's decision violated or was inconsistent with section 3 of the *Charter* (the right to vote) and section 5 of the *Charter* (mandating a parliamentary session at least once per year); and (5) he considered and rejected arguments that the prime minister's decision violated the unwritten constitutional principles of parliamentary sovereignty, parliamentary accountability (responsible government), democracy, and the rule of law. In the excerpt below, we focus only on points (2) and (5).

Federal Court of Canada

Crampton C.J.

[4] In this proceeding, the Applicants seek judicial review of the Prime Minister's decision "to advise ... the Governor General of Canada, (the "Governor General"), to exercise her prerogative power to prorogue the first session of the 44th Parliament of Canada until Monday, March 24, 2025 (the "Decision")."

...

[23] Since late September 2024, the House has been seized with a motion relating to privilege. In the intervening period prior to the prorogation, very limited other House business proceeded.

[24] On November 25, 2024, President-elect Trump posted a message on the "Truth Social" social media application ("Truth Social") advising that on his first day in office he would "sign all necessary documents to charge Mexico and Canada a 25% Tariff on ALL products coming into the United States" (the "25% Tariff"). He explained that this "Tariff will remain in effect until such time as Drugs, in particular Fentanyl, and all Illegal Aliens stop the Invasion of our Country!"

[25] Two days later, the Premiers of Canada's provinces and territories reportedly met virtually with the Prime Minister and certain senior members of the federal Cabinet to discuss the 25% Tariff.

[26] Beginning on December 10, 2024, President-elect Trump made successive posts on Truth Social in which he referred to the Prime Minister and Canada as the "Governor" and the "Great State of Canada," respectively. The President-elect also issued posts describing various benefits that Canadians could gain by becoming "the 51st State."

[27] On December 16, 2024, then-Finance Minister Chrystia Freeland resigned from Cabinet by way of an open letter. In her letter, she stated, among other things, that "[o]ur country today faces a grave challenge. The incoming administration in the United States is pursuing a policy of aggressive economic nationalism, including a threat of 25 per cent tariffs."

[28] The following afternoon, Parliament adjourned for its scheduled holiday recess. At that time, the House was scheduled to resume sittings on January 27, 2025, and to be subsequently adjourned from February 15 to February 23, and from March 1 to March 16, 2025.

[29] On January 6, 2025, the Prime Minister held a press conference at which he announced the Decision and his intention to resign as Prime Minister and as leader of the Liberal Party. He added that he had requested the president of the Liberal Party to begin the process of selecting the party's next leader.

[30] Later that day, the *Canada Gazette* Part II, Extra vol. 159, No. 1, was published, containing the Governor General's Proclamation Proroguing Parliament to March 24, 2025 (the "Prorogation").

[31] Prior to the Prorogation, the leaders of all major opposition parties in the House had announced their intention to vote non-confidence in the current government, as soon as there was an opportunity.

...

IV. The Decision

[41] As noted at paragraph 29 above, the Prime Minister announced the Decision on January 6, 2025 [speaking publicly he stated]:

> … [D]espite best efforts to work through it, Parliament has been paralyzed for months, after what has been the longest session of a minority Parliament in Canadian history.
>
> That's why this morning, I advised the Governor General that we need a new session of Parliament. She has granted this request, and the House will now be prorogued until March 24.
>
> Over the holidays, I've also had a chance to reflect and have had long talks with my family about our future. Throughout the course of my career, any success I have personally achieved has been because of their support, and with their encouragement.
>
> So last night over dinner, I told my kids about the decision that I'm sharing with you today. I intend to resign as party leader, as Prime Minister, after the party selects its next leader through a robust, nationwide, competitive process.
>
> Last night, I asked the president of the Liberal Party to begin that process. This country deserves a real choice in the next election, and it has become clear to me that if I'm having to fight internal battles, I cannot be the best option in that election.

...

[65] ... [T]he Applicants rely on the UKSC's [the Supreme Court of the United Kingdom's] analysis in *Miller II* [*R (Miller) v The Prime Minister*, [2019] UKSC 41]. There, a unanimous 11-member panel of the Court granted declarations and orders in relation to the advice given by Prime Minister Boris Johnson to Her Late Majesty Queen Elizabeth II that Parliament should be prorogued. In the course of its analysis, the Court appeared to treat the Prime Minister's advice-giving function and Her Late Majesty's exercise of the prerogative to prorogue to be effectively one and the same: *Miller II* at para 30.

[66] The Respondent maintains that *Miller II* is distinguishable because the UKSC assumed, without deciding, that Her Late Majesty was *obliged* by constitutional convention to accept Prime Minister Johnson's advice: *Miller II* at para 30. By contrast, the Respondent asserts that, in Canada, "many commentators take the view that … the Governor General has a discretion to refuse and certainly to 'warn and encourage' regarding a Prime Minister's request to prorogue."

[67] By convention and under the principle of responsible government, the Governor General acts on the advice of a Prime Minister who enjoys the confidence of the House. As the Respondent itself recognizes, there are no known instances where a Governor General of Canada has ever refused advice by the Prime Minister to prorogue the House. Likewise, there is no evidence before the Court that a Governor General of Canada has ever prorogued Parliament without first being advised to do so by the Prime Minister. ...

[68] In these circumstances, the Respondent's contention that the Prime Minister's advice cannot affect legal rights, impose legal obligations, or cause prejudicial effects fails to reflect the reality of the situation. The Prime Minister's advice is in fact a critical lynchpin of the exercise of the Crown's prerogative to prorogue Parliament. If the Prime Minister exceeded the constitutional or other legal limits of his authority in providing that advice, the elected representatives of the people would unlawfully be prevented from performing their constitutional functions. In my view, this constitutes a sufficient adverse prejudicial effect on those elected representatives and the public at large to give this Court jurisdiction in this matter ...

…

[229] In support of their position that the Decision prevented Parliament from tabling a motion of non-confidence, the Applicants rely on the publicly announced intentions of the leaders of the three main opposition parties to support a motion of non-confidence in the current government, as soon as there was a confidence vote: see paragraphs 31–33 above. ...

…

[231] It has been recognized that the rules governing responsible government are almost entirely conventional in nature ...

[232] ... [However], letters or statements made outside Parliament cannot be accepted by this Court as evidence about confidence, and the stated intent of individual members of the House cannot be conflated with the "will of Parliament," as expressed in its actual actions ...

…

[234] Insofar as the matter at hand is concerned, the Respondent's uncontested evidence is that the House expressed its confidence in the government on three occasions soon before the House adjourned on December 17, 2024 for its winter recess. Specifically, on November 28, 2024, the House passed Bill C-78, *An Act respecting temporary cost of living relief (affordability)*. On December 9, 2024, the House defeated an opposition day motion that the House had lost confidence in the government. The following day, the House passed Bill C-79, *An Act for granting to His Majesty certain sums of money for the federal public administration for the fiscal year ending March 31, 2025*, which is generally considered a confidence matter.

[235] I can understand the Applicants' view that the situation changed on December 20, 2024, when Mr. Jagmeet Singh, the leader of the NDP, announced in an open letter to Canadians that his party would "put forward a clear motion of non-confidence in the next sitting of the House of Commons." However, as stated above, that is not reliable evidence of the House's confidence. Furthermore, it is far from clear when any motion of non-confidence likely would have been placed before the House for a vote, had the House not been prorogued. ...

[238] In the absence of any persuasive evidence as to when any motion of non-confidence likely would have been placed before the House *as a whole* for a vote, it is not possible to gauge the extent to which the actual effect of the Decision was to prevent a vote on a non-confidence motion that would likely have occurred significantly prior to March 24, 2025, if at all.

[239] Beyond asserting that, as a practical matter, the Decision prevented Parliament from tabling a motion of non-confidence, the Applicants assert that it was one of the *intended effects* of the Decision to "stymie the publicly stated intent of a majority of the House of Commons to bring a motion for non-confidence in the government."

[240] The Applicants have not demonstrated on a balance of probabilities that the intended effect of the Prime Minister's Decision was to avoid a motion for non-confidence in the House. The overall circumstances discussed above and below do not permit the Court to draw any inference in this regard.

[241] I pause to observe that the Court must always remain mindful of the SCC's teaching that the courts should refrain from unduly interfering with the other branches of government. I consider it to be implicit in this teaching that the Court should avoid drawing any inference regarding a Prime Minister's unstated intentions in relation to prorogation, in the absence of exceptional circumstances.

[242] Given all of the foregoing, the issue of whether it would be *beyond the Prime Minister's authority* to exercise the prorogation power for the purpose of avoiding a certain confidence vote is best left for another day.

...

[270] In the prepared statement made by the Prime Minister to announce the Decision, he stated: "This country deserves a real choice in the next election, and it has become clear to me that if I'm having to fight internal battles, I cannot be the best option in that election."

[271] Elsewhere in that prepared statement, the Prime Minister stated: ”A new PM and Leader of the Liberal Party will carry its values and ideals into that next election.”

[272] The Applicants maintain that, by invoking the desirability of having a new leader to carry the Liberal Party’s ”values and ideals” into the next election, the Prime Minister conflated his role as leader of the government with his role as leader of the governing party.

[273] I recognize that, in exercising the prerogative power to prorogue Parliament, it is within the Prime Minister’s ”area of responsibility” to consider at least some ”matters of political judgment”: *Miller II* at para 51.

...

[275] It is unnecessary to make any determination on the issue of whether partisan considerations are within the scope of the Prime Minister’s authority to advise the Governor General to prorogue Parliament, because nothing turns on it. This is because it is not possible to disentangle the impugned partisan considerations from the other considerations that supported the Decision, for the purposes of making an overall finding on the issue of whether the Prime Minister exceeded the scope of his authority in making his Decision.

...

[280] In summary, the considerations that supported the making of the Decision by the Prime Minister included a mix of some matters that pertain to the affairs of Parliament and some partisan considerations that pertain to the Liberal Party. The Prime Minister also appears to have considered that it would be in the public interest for Canadians to have ”a real choice in the next election,” presumably as opposed to having an outgoing or interim leader representing the governing party.

[281] The Prime Minister was not obliged to give any reasons for proroguing Parliament. However, having done so, it was open to the Applicants to challenge them.

[282] While the overall circumstances are troubling, it is not possible to disentangle the various considerations identified by the Prime Minister, for the purpose of determining whether, on balance, he exceeded the scope of his constitutional and legal authority in making the Decision.

[283] The Applicants bore the burden of demonstrating on a balance of probabilities that the Prime Minister exceeded the scope of his authority in making the Decision. They failed to meet that burden.

Chapter 3: The Judiciary

By Mark Mancini

1 Introduction and Layout of the Judiciary

At Confederation, the *Constitution Act, 1867* entrenched “a constitution similar in principle to that of the United Kingdom.” This principle, applied to the Canadian judiciary, has certain implications. The first feature of the British system of justice is a central role for courts of *inherent jurisdiction*—those with the power to hear any case, subject only to statutory derogation. Historically, these *superior* courts controlled so-called *inferior* courts that did not generally have inherent subject matter jurisdiction and were established by statute or another legal instrument.

This same, unifying role for the superior courts is protected in several provisions of the *Constitution Act, 1867*. Section 96 vests a power of appointment in the federal government over judges of the superior courts, which supports a continuance of the unitary British system of justice. But it has also come to mean much more than that. In conjunction with ss. 99 of the *Constitution Act, 1867* (security of tenure) and s.100 (salaries set by Parliament), these provisions protect the jurisdiction and independence of the superior courts, consistent with the British system of justice.

However, the framers of the *Constitution Act, 1867*, had to adapt the British system of unitary government to a federal system of government, in which the central and provincial governments are sovereign within their own constitutionally recognized spheres. Subject to ss.96-101 of the *Constitution Act, 1867*, provincial legislatures have the power to establish inferior courts and tribunals, under s. 92(14), “the Administration of justice in the Province”.

The result is a constitutionally protected network of superior courts within the provinces, underwritten by ss.96-101 of the *Constitution Act, 1867*. Constitutional protections for superior courts limit the ability of provinces (and the federal Parliament) to vest certain types of adjudicative power in inferior statutory courts or administrative bodies. From this perspective, ss.96-101 can be seen as a restraint on each order of government’s ability to experiment with adjudication.

The courts have held that ss.96-101 of the *Constitution Act, 1867*, preclude the creation of parallel or “shadow” superior courts (*Reference re Code of Civil Procedure*, 2021 SCC 27) that exercise powers that are part of the historical jurisdiction of “s. 96 courts”. They have also been held to preclude either level of government from divesting those courts of an essential, core area of jurisdiction. That said—and perhaps more importantly—the unwritten principles of the constitution have extended the scope of the protections entrenched in these provisions including fixed salaries and tenure, applying them to other adjudicative bodies.

Courts in Canada are arranged hierarchically. At the top of the hierarchy is the Supreme Court of Canada. Members of the Supreme Court of Canada are appointed by the Governor General on the advice of the Prime Minister (as a practical matter, this means the federal government appoints the judges of the court). In turn, each province has its own appeal courts (the Court of Appeal for Ontario, the Court of Appeal for British Columbia, and so on), with judges appointed by the federal government under s.96. The superior courts of each province, the centrepieces of the Canadian justice system, are composed of judges also appointed by the federal government under s.96, and decisions from these courts are appealed to the Courts of Appeal in each province.

Despite the federal powers contemplated in s.96-100 of the *Constitution Act, 1867,* provinces also play a role in managing the courts, including superior courts – so-called s. 96 courts. Under s.92(14) of the *Constitution Act, 1867*, provinces have power over the “administration of justice” in the province, which includes the maintenance and organization of provincial courts. This empowers provincial governments to establish provincial courts, with judges appointed by the provincial government. Provincial courts are inferior statutory courts. This means that unlike the superior courts of inherent jurisdiction, provincial courts only have the powers and jurisdiction assigned by statute, and that are not part of the established jurisdiction of superior courts.

There are other statutory courts in the Canadian judicial system. The Federal Court system is the most prominent example. These courts were established under s. 101 of the Constitution Act, 1867, which gives the federal government the power to establish courts for “the better Administration of the Laws and Canada”. These statutory courts have jurisdiction over certain matters falling within federal jurisdiction, such

as federal taxation, and judicial review of the decisions of federal boards and tribunals. Like the provincial courts, the Federal Courts differ from the superior courts because their powers are confined to those explicitly or impliedly conferred by statute. The judges of the Federal Court are appointed and managed under the jurisdiction of the federal government.

This chapter proceeds in five parts. The first part explores the history and principles underlying the protected jurisdiction of the superior courts. The second part examines the two tests that the Supreme Court of Canada has constructed to protect the jurisdiction of the superior courts. The third part examines how unwritten constitutional principles have been interpreted by the courts to protect the independence of provincial courts from interference by provincial governments. Finally, in parts 5 and 6, the chapter explores the place of the Federal Courts and the Supreme Court of Canada, respectively.

2 History of the Superior Courts and Constitutional Principle

Most recently, in *Reference re Code of Civil Procedure (Que)*, 2021 SCC 27, the Supreme Court of Canada (per Côté and Martin JJ) explained the historical significance of Canada's system of courts. Côté and Martin JJ emphasize the centrality of the so-called "s.96 courts." These are the courts contemplated in s.96 of the *Constitution Act, 1867*:

> **96** The Governor General shall appoint the Judges of the Superior, District, and County Courts in each Province, except those of the Courts of Probate in Nova Scotia and New Brunswick.

At first blush, this provision merely provides a power of appointment. But the Supreme Court of Canada has held that it is not a "mere appointing power" (*Crevier v AG Quebec,* 1981 CanLII 30 (SCC), [1981] 2 SCR 220 at 237). Instead, s.96—as well as related provisions of the *Constitution Act, 1867* —support a "core" of protected jurisdiction in these courts.

Reference re Code of Civil Procedure explains the significance of two aspects of Canada's judicial system. First, modelled after the United Kingdom's distinction between superior courts and inferior courts, superior courts hold a special position in the constitutional structure. Judges of the superior courts are appointed by the federal government (s.96); the judges appointed to these courts carry guaranteed security of tenure (s.99(1)); and adjustments to their salaries or pensions are constitutionally granted to the federal Parliament (s.100). These provisions ensure the uniform application of law across the country—this is the *unitary* system referred to in *Reference re Code of Civil Procedure.* Second, the exclusive power of the provinces to make law in relation to the administration of justice in the province serves to recognize distinctive realities in each province.

3 *Reference re Code of Civil Procedure (Que.), art. 35*, 2021 SCC 27 (CanLII), [2021] 2 SCR 291

CÔTÉ AND MARTIN JJ

[29] Superior courts are the centrepiece of the unitary judicial system created by ss. 92(14), 96 to 100 and 129 of the Constitution Act, 1867. These provisions lay one of the key foundations of Canada's Constitution, as they represent the balance struck between our federation's national and provincial aspirations […]

[30] Constitutional provisions must be "placed in [their] proper linguistic, philosophic and historical contexts" and interpreted in a broad and purposive manner (*R. v. Big M Drug Mart Ltd.*, 1985 CanLII 69 (SCC), [1985] 1 S.C.R. 295 , at p. 344; see also *Hunter v. Southam Inc.*, 1984 CanLII 33 (SCC), [1984] 2 S.C.R. 145, at pp. 155-56; *R. v. Comeau*, 2018 SCC 15 , [2018] 1 S.C.R. 342, at para. 52; *Reference re Supreme Court Act*, at para. 19). To properly understand the scope of the protection of the superior courts under s. 96, we must therefore consider the historical context, that is, the compromise reached at Confederation that is central to Canada's judicial system, as well as the role and purpose of s. 96.

[31] This Court's jurisprudence on s. 96 of the Constitution Act, 1867 upholds the two fundamental principles underlying this provision, namely national unity and the rule of law. The case law has sought to safeguard the compromise reached at Confederation by preserving the unitary nature of our judicial system. To achieve this objective, the Court has, over the years, developed various tests designed to protect the status of the superior courts. The creation of courts that mirror the superior courts has always been considered an important limit that cannot be overstepped. All the tests have had the purpose, among others, of precluding such an outcome. If the role of the superior courts were undermined by the creation of parallel courts, Canada's judicial system would be stripped of its unitary nature and could be transformed into a dualistic system like that of the United States.

(1) Compromise Reached at Confederation

[32] Historically, the English judicial system was based on a dichotomy between so-called inferior courts and the superior courts whose judges were appointed by the monarch (W. Blackstone, Commentaries on the Laws of England (1765), Book I, at pp. 258 and 327). The term "inferior court" was based on the fact that the powers and jurisdiction of such courts were strictly limited by their constitutions. The superior courts, on the other hand, had an inherent general jurisdiction. The advantage of the inferior courts was their accessibility; their decentralization allowed for justice to be delivered to the door of everyone in the country, whereas the royal courts were less accessible to the ordinary citizen. However, royal courts historically had more extensive legal expertise than inferior courts. For this reason, royal courts exercised a power of control and supervision over decisions of inferior courts (G. Pépin, Les tribunaux administratifs et la Constitution — Étude des articles 96 à 101 de l'A.A.N.B. (1969), at pp. 134-35, quoting Halsbury, The Laws of England (3rd ed. 1954), vol. 9, at pp. 348-50).

[33] This fundamental dichotomy was imported into the colonies of British North America. Although the colonies established a three-tiered system consisting of a superior court, intermediate courts and inferior courts, the classification of the courts of the Canadian provinces reflected the dichotomy of the English system. There were superior courts on the one hand, and the non-superior courts on the other hand (Pépin, at pp. 134-35). This judicial system was maintained until the Constitution Act, 1867 was enacted (J. Baker, An Introduction to English Legal History (5th ed. 2019), at pp. 57-59).

[34] At the time of Confederation, the founding fathers chose to establish a constitution similar in principle to that of the United Kingdom, as recognized in the preamble to the Constitution Act, 1867. The judicial system and the constitutional arrangements passed on to us by the United Kingdom therefore constitute the historical foundation of our judicial system.

[35] However, because the founding provinces opted for a federal union rather than a unitary system like the one that existed in the United Kingdom, the British judicial system required adaptation. It was modified to take into account the fact that powers in Canada are shared by two levels of government — the provinces and the federal government.

[36] To guarantee both national unity and provincial autonomy, the Fathers of Confederation reached a compromise, creating a unitary justice system characterized by federal-provincial cooperation.[2] To begin, all courts of civil and criminal jurisdiction of the founding provinces would continue to exist (s. 129 of the Constitution Act, 1867). Thus, the distinction between superior and non-superior courts that characterized the British system was expressly maintained.

[37] In addition, s. 92(14) of the Constitution Act, 1867 ensured that the provinces' exclusive power over the administration of justice would remain intact, thereby preserving their autonomy in that regard. A province could therefore reorganize its courts to reflect its own reality and needs. However, ss. 96 to 100 created an exception to the provinces' power by conferring on the federal government the power to appoint judges to the superior courts, fix their remuneration and remove them (*Residential Tenancies*, at p. 728). Another exception, s. 101 of the Constitution Act, 1867, gave the federal government the power to create federal statutory courts. This power was limited, however, as such courts would be confined by their constitutional boundaries to the administration of federal laws (*Windsor (City) v. Canadian Transit Co.*, 2016 SCC 54, [2016] 2 S.C.R. 617, at para. 33).

[38] The Fathers of Confederation thus rejected the creation of a dualistic system like the ones established in other federations, including the United States. They preferred instead to establish a unitary system whose objective was national unity (Residential Tenancies, at p. 728).

[39] The superior courts of the various provinces were called upon to form the cornerstone of this system and to act as a "unifying force", thereby enabling the development of the law nationwide (*MacMillan Bloedel*, at paras. 11, 29 and 37; see also *Attorney General of Canada v. Law Society of British Columbia*, 1982 CanLII 29 (SCC) , [1982] 2 S.C.R. 307, at p. 327; *Reference re Young Offenders Act (P.E.I.)*, 1991 CanLII 11713 (SCC), [1991] 1 S.C.R. 252 , at p. 264; *Reference re Amendments to the Residential Tenancies Act (N.S.)*, 1996 CanLII 259 (SCC), [1996] 1 S.C.R. 186 (*Reference re Residential Tenancies Act (N.S.)*), at para. 72; *Windsor*, at para. 32). Because the superior courts were given an inherent general jurisdiction like that of their British predecessors, they were empowered to interpret and apply both provincial and federal law (*Scowby v. Glendinning*, 1986 CanLII 30 (SCC), [1986] 2 S.C.R. 226, at pp. 249-50, per La Forest J., dissenting on another point).

[40] In short, the aim of the compromise reached at Confederation was not simply to maintain the pre-existing justice system. It created a system in which responsibilities were shared between the provinces and the federal government, enabling each province to shape the judicial landscape in its own territory in accordance with local realities. Thus, there is no requirement that the judiciary be structured uniformly from one province to the next; for a province to have established its own standards or made unique choices does not in itself amount to a constitutional defect. On the contrary, ss. 92(14) and 96 work together to advance access to justice by allowing the superior courts to coexist with tribunals and courts with provincially appointed members, as long as the unitary system, of which the superior courts are the cornerstone, is preserved.

…

[46] The rule of law is maintained through the separation of judicial, legislative and executive functions ((A.) J. Johnson, "The *Judges Reference* and the *Secession Reference* at Twenty: Reassessing the Supreme Court of Canada's Unfinished Unwritten Constitutional Principles Project" (2019), 56 *Alta. L. Rev.* 1077, at pp. 1100-1101). In keeping with the principle of the separation of powers, the task of interpreting, applying and stating the law falls primarily to the judiciary (*Reference re Manitoba Language Rights*, 1985 CanLII 33 (SCC) , [1985] 1 S.C.R. 721, at p. 744; *British Columbia v. Imperial Tobacco Canada Ltd.*, 2005 SCC 49, [2005] 2 S.C.R. 473, at para. 50).

[47] This separation allows the courts to implement the three fundamental facets of the rule of law: equality of all before the law, the creation and maintenance of an actual order of positive laws, and oversight of the exercise of public powers (*Reference re Manitoba Language Rights*, at pp. 748-51; *Imperial Tobacco*, at para. 58; *Cooper v. Canada (Human Rights Commission)*, 1996 CanLII 152 (SCC) , [1996] 3 S.C.R. 854, at para. 16). Historically, the superior courts had primary responsibility for this task.

[48] Thus, in order to preserve the superior courts' role as the cornerstone of the judicial system, they must be able to continue acting as primary guardians of the rule of law as they always have (*MacMillan Bloedel*, at para. 29; *Reference re Residential Tenancies Act (N.S.)*, at para. 26, per Lamer C.J., concurring; W. R. Lederman, "The Independence of the Judiciary" (1956), 34 *Can. Bar Rev.* 769, 1139, at p. 1178; A. Lamer, "The Rule of Law and Judicial Independence: Protecting Core Values in Times of Change" (1996), 45 *U.N.B.L.J.* 3, at p. 11; L. Huppé, *Le régime juridique du pouvoir judiciaire* (2000), at pp. 10-11). This role falls to the superior courts because they are ideally placed to ensure the maintenance of the rule of law (*Reference re Residential Tenancies Act (N.S.)*, at paras. 26, per Lamer C.J., concurring, and 72, per McLachlin J. for the majority).

[49] In light of Canada's constitutional architecture, the superior courts are in the best position to preserve the various facets of the rule of law. Because of their independence and national character, they are best suited to resolving disputes over the division of powers between the provinces and the federal government and ensuring that government actions do not conflict with the fundamental rights of citizens (see *Amax Potash Ltd. v. Government of Saskatchewan*, 1976 CanLII 15 (SCC) , [1977] 2 S.C.R. 576, at p. 590; D. P. Jones, "A Constitutionally Guaranteed Role for the Courts" (1979), 57 *Can. Bar Rev*. 669, at p. 675). Moreover, the superior courts' existence and status enjoy constitutional protection against legislative interference (*Reference re Residential Tenancies Act (N.S.)*, at paras. 72-73; *Trial Lawyers*, at para. 30). As a result, the superior courts need not rely on statutorily conferred powers to fully exercise their judicial functions.

4 The Section 96 tests

In determining whether the establishment of a particular tribunal interferes with the jurisdiction of the superior courts, the Supreme Court of Canada has developed two tests. The first test—the so-called *Residential Tenancies* test—asks whether the province or federal government has *transferred a* power that is part of the historic jurisdiction of the superior courts to a statutory body that is not a superior court under s.96.

The second, the "core jurisdiction" test—asks whether a core element of the superior court's jurisdiction has been removed by the legislature, even if the removal of this jurisdiction is not inconsistent with the *Residential Tenancies* test. The core jurisdiction test protects central features of the s. 96 courts, as they exist today, that are necessary to the exercise their functions as courts of law.

5 *Re Residential Tenancies Act*, 1981 CanLII 24 (SCC), [1981] 1 SCR 714

DICKSON J.—The resolution of disputes between landlords and tenants has long been a central preoccupation of the common law courts. As early as 1587, Lord Coke observed that the law of landlord and tenant was vital since, "for the most part, every man is a lessor or a lessee". […]

Within the past few years the Province of Ontario, in common with a number of other provinces, has enacted legislation to redress what was perceived to be an imbalance, in favour of landlords, in the landlord and tenant relationship. On June 21, 1979, the Legislative Assembly of Ontario enacted *The Residential Tenancies Act, 1979,* 1979 (Ont.), c. 78, to come into effect on proclamation. The Act contains a detailed legislative code to govern landlords and tenants and establishes a tribunal, bearing the name the Residential Tenancy Commission, to oversee and enforce the newly enunciated rights and obligations. Questions having been raised as to the authority of the Legislative Assembly of Ontario to empower the Commission to make orders evicting tenants from residential premises and to require landlords and tenants to comply with obligations imposed under the Act, the Executive Council of the Province, pursuant to s. 1 of *The Constitutional Questions Act,* R.S.O. 1970, c. 79, referred the following questions to the Court of Appeal of Ontario for hearing and consideration:

1. Is it within the legislative authority of the Legislative Assembly of Ontario to empower the Residential Tenancy Commission to make an

order evicting a tenant as provided in *The Residential Tenancies Act, 1979?*

2. Is it within the legislative authority of the Legislative Assembly of Ontario as provided in *The Residential Tenancies Act, 1979* to empower the Residential Tenancy Commission to make orders requiring landlords and tenants to comply with obligations imposed under that Act?

…

The jurisprudence since *John East* leads one to conclude that the test must now be formulated in three steps. The first involves consideration, in the light of the historical conditions existing in 1867, of the particular power or jurisdiction conferred upon the tribunal. The question here is whether the power or jurisdiction conforms to the power or jurisdiction exercised by superior, district or county courts at the time of Confederation. This temporary segregation, or isolation, of the impugned power is not for the purpose of turning back the clock and restoring *Toronto v. York* as the governing authority, an approach deplored in *Mississauga.* It is rather the first step in a three step process.

If the historical inquiry leads to the conclusion that the power or jurisdiction is not broadly conformable to jurisdiction formerly exercised by s. 96 courts, that is the end of the matter. As Rand J. noted in *Dupont et al v. Inglis et al.*[26], "Judicial power not of that type, [*i.e.* that exercised by s. 96 courts at Confederation] such as that exercised by inferior courts, can be conferred on a provincial tribunal whatever its primary character" (p. 542). If, however, the historical evidence indicates that the impugned power is identical or analogous to a power exercised by s. 96 courts at Confederation, then one must proceed to the second step of the inquiry.

Step two involves consideration of the function within its institutional setting to determine whether the function itself is different when viewed in that setting. In particular, can the function still be considered to be a 'judicial' function? In addressing the issue, it is important to keep in mind the further statement by Rand J. in *Dupont v. Inglis* that "…it is the subject-matter rather than the apparatus of adjudication that is determinative". Thus the question of whether any particular function is 'judicial' is not to be determined simply on the basis of procedural trappings. The primary issue is the nature of the question which the tribunal is called upon to decide. Where the tribunal is faced with a private dispute between parties, and is called upon to adjudicate through the application of a recognized body of rules in a manner consistent with fairness and impartiality, then, normally, it is acting in a 'judicial capacity'. To borrow the terminology of Professor Ronald Dworkin, the judicial task involves questions of 'principle', that is, consideration of the competing rights of individuals or groups. This can be contrasted with questions of 'policy' involving competing views of the collective good of the community as a whole. (See Dworkin, *Taking Rights Seriously* (Duckworth, 1977) pp. 82-90.)

If, after examining the institutional context, it becomes apparent that the power is not being exercised as a "judicial power" then the inquiry need go no further for the power, within its institutional context, no longer conforms to a power or jurisdiction exercisable by a s. 96 court and the provincial scheme is valid. On the other hand, if the power or jurisdiction is exercised in a judicial manner, then it becomes necessary to proceed to the third and final step in the analysis and review the tribunal's function as a whole in order to appraise the impugned function in its entire institutional context. The phrase—'it is not the detached jurisdiction or power alone that is to be considered but rather its setting in the institutional arrangements in which it appears'—is the central core of the judgment in *Tomko.* It is no longer sufficient simply to examine the particular power or function of a tribunal and ask whether this power or function was once exercised by s. 96 courts. This would be examining the power or function in a 'detached' manner, contrary to the reasoning in *Tomko.* What must be considered is the 'context' in which this power is exercised. *Tomko* leads to the following result: it is possible for administrative tribunals to exercise powers and jurisdiction which once were exercised by the s. 96courts. It will all depend on the context of the exercise of the power. It may be that the impugned 'judicial powers' are merely subsidiary or ancillary to general administrative functions assigned to the tribunal (*John East; Tomko*) or the powers may be necessarily incidental to the achievement of a broader policy goal of the legislature (*Mississauga*). In such a situation, the grant of judicial power to provincial appointees is valid. The scheme is only invalid when the adjudicative function is a sole or central function of the tribunal (*Farrah*) so that the tribunal can be said to be operating 'like a s. 96 court'.

…

Step one, the historical inquiry. The Residential Tenancy Commission is given a broad range of powers under the Act: in this reference, as I have noted, we are concerned with only two, power to make an eviction order and power to make a 'compliance' order. These powers recur constantly throughout the Act; there are nineteen separate provisions which empower the Commission to make an eviction order and seventeen separate provisions empowering the Commission to make a compliance order. Illustrations of the former are found in s. 36(2)(*c*) (eviction for non-payment of rent); s. 38(3)(*d*) (eviction for interference with safety or enjoyment of landlord or other tenants); s. 41(2)(*c*) (eviction for carrying on of illegal activity); and s. 51(1) (eviction where landlord requires premises for own use or for sale). Illustrations of the latter power are found in s. 28(4)(*a*) (landlord may be ordered to comply with obligation to repair); s. 29(2)(*a*) (obligation to supply vital services); s. 37(2)(*a*) (tenant to repair damage wilfully or negligently caused by him). In contrast, the impugned power in *Tomko* to issue "cease and desist" orders was found in one subs., 49(2), forming part of a legislative scheme of some 103 sections.

Section 84(1) of *The Residential Tenancies Act,* subject to certain exceptions, gives the Commission "exclusive jurisdiction to examine into, hear and determine all matters and questions arising under this Act and as to any matter or thing in respect of which any power, authority or discretion is conferred upon the Commission". Section 116(1) permits the filing of a Commission order evicting a tenant in the County or District Court and states that such order once filed: "has the same force and effect and all proceedings may be taken on it, as if it were an order of that court, and the clerk of the court shall issue a writ of possession".

The Ontario Court of Appeal held that the power to order eviction was analogous to the traditional power of the courts to order the ejectment of a tenant, while the power to order compliance was analogous to the power of the courts to award damages or specific performance or to grant injunctive relief. This finding was not challenged on the hearing of this appeal. The Attorney General for Ontario conceded that the powers given to the Residential Tenancy Commission "…are not merely analogous to those [pre-1867] powers but are the same powers".

…

We pass now to the second step of the inquiry, to consideration of the impugned powers within their institutional setting. Is the power to order eviction or compliance when so viewed still a 'judicial power'? I have already indicated that the hallmark of a judicial power is a *lis* between parties in which a tribunal is called upon to apply a recognized body of rules in a manner consistent with fairness and impartiality. The adjudication deals primarily with the rights of the parties to the dispute, rather than considerations of the collective good of the community as a whole.

With very few exceptions, the Residential Tenancy Commission is not free to intervene of its own motion in disputes between landlords and tenants. Virtually all of the provisions of the Act require that either a landlord or a tenant apply to the Commission before any action be taken. Moreover, the power to order eviction or compliance will, in all case, be exercised in the context of a *lis* between parties. This is so even where a. third party may invoke the Commission's intervention. Under s. 29, for example, a Public Utility may notify the Commission that its service has been or is likely to be stopped, and the Commission may intervene. But s. 29 goes on to provide that the Commission shall determine whether a particular landlord is breaching his obligation to supply vital services to his tenants. Thus there will clearly be a *lis* between parties and an issue to be resolved.

When confronted with a *lis,* the task of the Commission will be to determine the respective rights and obligations of the parties according to the

terms of the legislation. The Commission does not have an untrammelled discretion to 'set matters right'. The powers which it may invoke and the remedies which it may award are circumscribed by the terms of the Act. At no point is the individual's right at law surrendered for the benefit of a common group or policy. The Commission deals exclusively with matters of contract and land law as they arise between landlords and tenants.

The Commission has authority to hear and determine disputes in accordance with rules of law, and by the authority of the law. It authorizes actions for which application is made. It has the power to impose penalties and sanctions and to award remedies for the infringement of rights. Disobedience of an order of the Commission is a penal offence. The Commission decides contractual and property rights between individual landlords and tenants and in so doing determines not only the right to land and property, but also other rights. In each case, there is an analysis of the law, an application of the applicable law to the particular facts, and then a judicial decision and a consequent order. It is difficult to conceive that when so acting the Commission acts otherwise than as a curial tribunal. In substance the tribunal is exercising judicial powers roughly in the same way as they are exercised by the courts.

…

We now face the most difficult aspect of this appeal—an examination of the inter-relationship between the Commission's impugned 'judicial powers' and the other powers and jurisdiction conferred under the Act.

…

There is no broad legislative scheme as there was in *Mississauga, supra,* to subsume the judicial functions of the Commission. It was argued that the powers vested in the Residential Tenancy Commission were merely incidental or ancillary to the policy of "security of tenure" for tenants. This submission is unconvincing. The primary purpose and effect of the 1979 Act was to transfer jurisdiction over a large and important body of law, affecting landlords and tenants of one million rental units, from the s. 96 courts where it has been administered since Confederation to a provincially appointed tribunal.

Here the chief role of the Commission is not to administer a policy or to carry out an administrative function. Its primary role is to adjudicate. The administrative features of the legislation can be characterized as ancillary to the main adjudicative function. The power of the Commission to mediate disputes is aimed at the speedy resolution of differences between the parties. So too is the informal nature of the proceedings. The goal of these provisions is to enable the Commission to 'process' controversies in an expeditious manner. As such, they are merely incidental to the main purpose of the legislation.

…

In the result, I would dismiss the appeal, and answer in the negative the constitutional questions which have been posed by the Executive Council of the Province of Ontario. No question of costs arises.

6 *Sobeys Stores v Yeomans and Labour Standards Tribunal (NS)*, 1989 CanLII 116 (SCC), [1989] 1 SCR 238

In the next case, the Supreme Court of Canada (per Wilson J) offered three clarifications to the *Residential Tenancies* test. These clarifications mostly pertain to the first branch of the test. *Sobey's* also explains the function of each of the branches of the *Residential Tenancies* test. The first branch is designed to preserve, as much as possible, the historical jurisdiction of the superior courts. The second and third branches are designed to "save" grants of jurisdiction that nonetheless replicate the historical jurisdiction of the superior court. So long as the adjudicative power is sufficiently integrated in a valid scheme of regulation, it is ancillary to the provincial regulation, and is therefore valid.

WILSON J

The Appeal Division correctly held that the test to be applied in s. 96 cases is that laid down by this Court in the *Residential Tenancies* case. This three-step test represents a consolidation of the principles enunciated in a number of previous decisions, in particular *The Adoption Reference*, 1938 CanLII 2 (SCC), [1938] S.C.R. 398; *John East Iron Works, Ld.*, *supra*; and *Tomko v. Labour Relations Board (Nova Scotia)*, 1975 CanLII 183 (SCC), [1977] 1 S.C.R. 112 . The first stage requires us to consider whether "the challenged power or jurisdiction broadly conform[s] to the power or jurisdiction exercised by Superior, District or County Courts at the time of Confederation": *per* Laskin C.J. in *Massey-Ferguson Industries Ltd. v. Saskatchewan*, 1981 CanLII 209 (SCC), [1981] 2 S.C.R. 413 , at p. 429. But before addressing this question it is necessary to examine three preliminary issues which were raised during the hearing of the appeal:

(1) how broadly should the power or jurisdiction be characterized for purposes of the historical analysis?

(2) do the words "broadly conform" to Superior Court jurisdiction mean that such jurisdiction must have been exclusive to those courts at Confederation?

(3) should the court look only at the jurisdiction of the courts of the province in which the case arose or should the inquiry embrace all or most of the provinces?

…

(i)Characterization of the Power or Jurisdiction at Issue

In argument before this Court both the Attorney General of Nova Scotia (appellant) and the respondent Sobeys initially characterized the jurisdiction under s. 67A as jurisdiction in relation to the equitable remedy of specific performance of employment contracts. Each argued that such a characterization would be determinative in his favour, the appellant because traditionally the courts did not grant such a remedy and the respondent because the remedy, whether actually granted or not, was equitable and therefore clearly part of the exclusive jurisdiction of superior courts at Confederation. This was not, however, the only characterization offered to the Court. When the argument progressed to the second and third stages of the *Residential Tenancies* test the same parties suggested broader characterizations such as "unjust dismissal", "employer-employee relations" and "labour standards". Counsel for the other appellant, Yeomans, argued consistently throughout that the jurisdiction was over "master-servant relations". In the Appeal Division, Hart J.A., while rejecting the argument that specific performance of an employment contract was not a superior court power just because the remedy was never granted, characterized s. 67A as a provision relating to "unjust dismissal". In so doing he rendered nugatory the arguments over specific performance.

It seems to me that this raises two problems pertaining to the characterization of the jurisdiction. How broadly should it be characterized, and can a broader or narrower characterization be used for the different steps of the *Residential Tenancies* test? These questions do not appear to have been canvassed in any previous decision of the Court, yet they could clearly be important. The way in which the power or jurisdiction is characterized can have significant consequences for the historical inquiry in which the courts must search for analogous jurisdiction in inferior courts. Although in the present case both the Attorney General and Sobeys saw an advantage for themselves in a narrow characterization, that is probably only so because of the unusual remedy at issue. In general, those challenging legislation will probably favour the narrower view as

more likely to bring success through the historical test. Those supporting the legislation will no doubt advocate a more expansive view on the assumption that the broader the characterization the more likely it will be that at least some aspects of the jurisdiction will have been within the purview of inferior courts at Confederation.

To resolve these questions on characterization one must look to the different purposes served by the three stages of the *Residential Tenancies* test. The test represents a reconciliation of jurisprudence from two different types of cases, those that dealt with attempted expansions of inferior court jurisdiction and those that involved the assignment of subject areas of superior court jurisdiction to administrative tribunals. This distinction between the two principal types of s. 96 cases was noted in a different context by then Chief Justice Laskin in *Re B.C. Family Relations Act*, 1982 CanLII 155 (SCC), [1982] 1 S.C.R. 62, at p. 68. The first line of cases establish the proposition that, while the jurisdiction of the inferior courts will not be frozen as of the date of Confederation, neither will it be substantially expanded so as to undermine the independence of the judiciary which s. 96 protects: see *The Adoption Reference*, *supra*; *Re B.C. Family Relations Act*, *supra*; *Séminaire de Chicoutimi v. Cité de Chicoutimi*, 1972 CanLII 153 (SCC), [1973] S.C.R. 681; *Re Cour de Magistrat de Québec*, 1965 CanLII 46 (CSC), [1965] S.C.R. 772; *Canadian Broadcasting Corporation v. Quebec Police Commission*, 1979 CanLII 24 (SCC), [1979] 2 S.C.R. 618. The second line of cases, those dealing with administrative tribunals, provide what might be called permissible exceptions to the constitutional stricture against the reduction of superior court jurisdiction. The courts have recognized that s. 96 should not stand in the way of new institutional approaches to social or political problems. Departures from the strict rule against devolving superior court jurisdiction on inferior tribunals are permitted only if the scheme meets the criteria of the second or third stage of the test. Otherwise bald grants of superior court jurisdiction to inferior courts are precluded.

Viewed against this background the first step of the *Residential Tenancies* test, which is drawn from the "inferior court" cases, represents a kind of threshold test, a method of deciding whether, in a formal sense, s. 96 has been violated at all. The second and third steps serve to validate some legislative schemes despite the fact that they trench on the traditional jurisdiction of s. 96 courts. The purposes of s. 96 require a strict, that is to say a narrow, approach to characterization at the first stage. Given what I have to say below on concurrent superior/inferior court jurisdiction at Confederation, any other approach would potentially open the door to large accretions of jurisdiction and thereby defeat the purposes of the constitutional provision. I would therefore reject as too broad characterizations of the s. 67A jurisdiction as being in relation to employer/employee relations or labour standards.

Having rejected broad characterizations, the court is given a choice between two possible narrow ones, jurisdiction over reinstatement or jurisdiction over unjust dismissal. Dealing with a very similar provision in the Quebec *Labour Standards Act* that province's Court of Appeal in *Asselin v. Industries Abex Ltée*, 1985 CanLII 3414 (QC CA), [1985] C.A. 72, 22 D.L.R. (4th) 212, characterized the jurisdiction as being in relation to the mandatory performance of an employment contract. As a result Nolan J.A. concluded that reinstatement "was not a power which the s. 96 courts could exercise in Lower Canada before Confederation" (p. 89 C.A., p. 236 D.L.R.)

I would, however, reject this characterization, preferring again to resolve the issue by reference to the language and purpose of the *Residential Tenancies* test. At the first stage the search is for "broad conformity" with the powers of s. 96 courts at Confederation. It is a search for analogous, not precisely the same, jurisdiction. Even if I were to accept the appellant's contention that the remedy of reinstatement was outside the purview of s. 96 courts, as was done in *Asselin*, I do not think that should be determinative in s. 96 cases. To do so would be to freeze the jurisdiction of those courts at 1867 by a technical analysis of remedies. It is, in my view, the type of dispute that must guide us and not the particular remedy sought. The question of new remedies for traditional causes of action is better suited to the second and third steps of the *Residential Tenancies* test which are specifically designed to allow the courts to consider new approaches to old problems, approaches which are more responsive to changing social conditions. Thus, the jurisdiction in this case should, in my view, be characterized as jurisdiction in relation to unjust dismissal.

The fact that the different stages of the *Residential Tenancies* test serve different purposes also, in my view, militates against any "broadening" of the characterization as the analysis progresses from one stage to another. The characterization chosen is irrelevant to a consideration at stage two of whether the Tribunal is functioning judicially or not. A broad characterization at the third stage would be equally unnecessary because this aspect of the test requires the courts to view the particular power or jurisdiction within a broad context. Thus, in this case, for example, a broadening of the characterization to "labour standards" would require the court to assess whether such a power or jurisdiction is "so integrated with the valid regulatory regime" (*Residential Tenancies*, at p. 736) of labour standards legislation as to take on a different character. The inquiry would have become a tautological one and the *Residential Tenancies* test would be deprived of its essential purpose.

(ii)Must the Superior Court Jurisdiction at Confederation be Exclusive?

The Appeal Division held that jurisdiction over unjust dismissal was exclusively the preserve of Nova Scotia's superior courts in 1867. In his reasons for judgment Hart J.A., speaking for the Court, said at p. 399:

> This was not the type of jurisdiction exercised by any of the inferior courts in existence at that time....The action for wrongful dismissal in Nova Scotia has always been commenced and conducted in the superior courts.

The appellants presented historical evidence in this Court to demonstrate that inferior courts also exercised jurisdiction over unjust dismissal and other breaches of employment contracts. They do not deny that the Supreme Court of Nova Scotia dealt with such matters but argue that because various inferior courts also did so the legislation can be upheld under the historical test. The relevance of such evidence of "shared jurisdiction" depends on the resolution of an issue left uncertain by previous judgments of this Court. It is obvious that at the first stage s. 96 will be violated if provincial tribunals are accorded a power or jurisdiction that belonged exclusively to s. 96 courts at Confederation. It is equally trite law that there will be no violation if the power or jurisdiction was the exclusive preserve of inferior courts. These propositions, however, leave unclear what the consequences are of discovering a shared, or concurrent, jurisdiction between the two levels of court. Moreover, if concurrent jurisdiction will enable the provincial tribunal to pass the historical test, it is necessary to ask how much shared jurisdiction will suffice for this purpose.

…

The foregoing leads me to conclude that a certain gloss must be added to the *Residential Tenancies* test. At the first step, the threshold question is whether at Confederation superior courts exercised an exclusive jurisdiction. This test accords with the general principle that inferior court jurisdiction need not be frozen at its pre-Confederation level: see *Re Cour de Magistrat de Québec*, *supra*. If the jurisdiction was exclusive to superior courts, then the inquiry must pass on to the second and third stages of the test. If the jurisdiction was shared, the legislation under challenge may, in some circumstances, be held valid by the historical test.

How much concurrent jurisdiction is necessary for the purposes of the test? It would obviously largely defeat the purpose of s. 96 if a finding of one small aspect of jurisdiction, limited, for example, by subject matter, geography or monetary amount, in an inferior court were sufficient to permit legislatures to oust the jurisdiction of today's superior courts. However, the dangers of this are not as great as they might at first sight appear, given what I have said earlier about the need to characterize the power or jurisdiction relatively narrowly for the purposes of the historical test. Yet they must be borne in mind in fashioning a test of general application.

In my view the correct approach to this problem can be found in *Grondin*. Chouinard J. summarized inferior court jurisdiction in the following manner at pp. 379-81:

> The Commissioners' Court accordingly had a certain jurisdiction over relations between lessors and lessees, since attachments for rent are the procedure by which a lessor may, in order to guarantee his rights, obtain a seizure before judgment of movables found on the premises and belonging to the lessee (art. 734 *C.C.P.* and art. 1637 *C.C.*).
>
> The Commissioners' Courts were created in 1821 by 1 Geo. IV, c. 2, titled the *Act for the summary Trial of certain small causes in the Country Parishes of this Province* . . . .
>
> The jurisdiction of the Commissioners was undoubtedly very limited as to territory and amount, the latter being $25 in 1867. However, I would add that according to the submissions made by the Attorney General of Quebec and the Régie du logement, which were not contradicted, there were 222 localities in Quebec in 1867 which had a Commissioners' Court, and such courts continued until 1960 . . . .
>
> Further, arts. 1217 and 1219 of the *Code of Civil Procedure* of 1867 conferred jurisdiction on the Recorder's Court in certain cities over disputes between lessors and lessees . . . .
>
> It should be noted that at that time the Montreal Recorder's Court had the same jurisdiction and powers over lessor-lessee relations as the Superior Court and the Circuit Court under the same Act, titled the *Act respecting Lessors and Lessees*, C.S.L.C. 1861, c. 40. The jurisdiction and powers were however limited to "cases where the consideration or annual value of the property occupied shall not exceed the sum of one hundred dollars, and which shall apply to premises or real estate situate within the limits of the said city".
>
> . . .
>
> Not only did the Montreal Recorder's Court have jurisdiction over this matter in 1867, but art. 1217 of the *C.C.P.*, 1867, recognized that jurisdiction over lessor and lessee relations could be conferred on lower courts.

Thus, in *Grondin*, although inferior court jurisdiction was subject to pecuniary limits, it was province-wide and included most matters of dispute between landlords and tenants. Chouinard J. found sufficient jurisdiction to uphold the provincial legislation.

> It seems to me that in *Grondin* this Court laid down a test which requires the practical involvement of inferior courts to have been broadly co-extensive with the work of superior courts. This is not to suggest that jurisdiction must have been entirely or even generally concurrent, for the nature of the inferior-superior court distinction will invariably mean that the former's jurisdiction was limited in some way. But some limits will be more significant than others. A significant geographical limitation would tell against the legislative scheme much more than a purely pecuniary limit. The former might well have prevented recourse to the inferior courts for the majority of colonial residents, while the latter, given inflation, would be a much less dramatic bar. The courts must search for what I would term a general shared <u>involvement</u> in a jurisdiction, not concurrent jurisdiction in all respects. It is impossible to define with precision just how much jurisdiction is enough for a finding of shared involvement in all cases. But the following questions, in my view, are relevant:
>
> (a) was the inferior court jurisdiction geographically restricted? Was it confined to certain municipal or district courts or was it being exercised province-wide?
>
> (b) was the inferior court jurisdiction limited to a few specific situations? For example, in the area of unjust dismissal, did only certain types of employees have recourse to the inferior courts?
>
> (c) was the inferior court jurisdiction restricted by pecuniary limits so as to reduce its scope even after allowing for inflation?
>
> These are by no means the only questions the courts should address and I proffer them by way of illustration only. Others will appear germane in different contexts. In all cases, however, the inquiry should be directed to the question whether or not the work of the inferior courts at the time of Confederation was broadly co-extensive with that of the superior courts. Only if this standard is met will the history of shared jurisdiction validate the contemporary scheme under the historical test.
>
> …
>
> (iii)<u>Extent of the Historical Inquiry</u>
>
> …
>
> Once this principle is accepted, it seems to me unavoidable to conclude that the *Residential Tenancies* test of 1867 jurisdiction should be expanded somewhat to include examination of the general historical conditions in all four original confederating provinces. I say this for two reasons. The first is a practical one. While it might make sense to examine only Ontario in an Ontario case (as was done in *Residential Tenancies*) or Quebec in a Quebec case (as was done in *Grondin*) there would be no reason to choose one or the other in deciding a case emanating from Alberta, Prince Edward Island or elsewhere.
>
> The second and more important reason is that implicit in what I have said above is the principle that s. 96 should apply in the same way across the country. The "strong constitutional base for national unity, through a unitary judicial system" (*Residential Tenancies*, at p. 728) would indeed be undermined by inconsistent results derived from a jurisprudence developed province by province. Indeed, this has already occurred. The Ontario legislative scheme which was struck down in *Residential Tenancies* was practically indistinguishable from the Quebec scheme upheld in *Grondin*. Comparable landlord and tenant legislation in Alberta was invalidated while that of British Columbia and Nova Scotia survived s. 96 challenges: see, respectively, *Reference Re Proposed Legislation Concerning Leased Premises and Tenancy Agreements* (1978), 1978 ALTASCAD 264 (CanLII), 89 D.L.R. (3d) 460 (Alta. C.A.); *Re Pepita and Doukas* (1979), 1979 CanLII 757 (BC CA), 101 D.L.R. (3d) 577 (B.C.C.A.); and *Re Fort Massey Realties and Rent Review Commission* (1982), 1982 CanLII 2957 (NS CA), 132 D.L.R. (3d) 516 (N.S.C.A.) Similarly, reinstatement provisions in employment standards legislation have suffered conflicting fates under the historical test in this case and in *Asselin*.

After *Sobey*'s, and in *Reference re Code of Civil Procedure,* the Supreme Court of Canada helpfully summarized the status of the *Residential Tenancies* test:

> [59] Finally, in *Residential Tenancies*, our Court articulated the three-step test that remains in use today, subject to a few modifications introduced in subsequent cases:
>
> • <u>Characterization of the grant of jurisdiction</u>: To determine whether a grant of jurisdiction is constitutionally infirm, a court must first properly characterize the jurisdiction being transferred.
>
> • <u>Three steps</u>:
>
> (1) Does the transferred jurisdiction conform to a jurisdiction that was dominated by superior, district or county courts at the time of Confederation?
>
> (2) If so, was the jurisdiction in question exercised in the context of a judicial function?

(3) If the first two questions are answered in the affirmative, is the jurisdiction either subsidiary or ancillary to an administrative function or necessarily incidental to the achievement of a broader policy goal of the legislature?

(pp. 734-36; *Attorney General of Quebec v. Grondin*, 1983 CanLII 165 (SCC) , [1983] 2 S.C.R. 364 ; *Sobeys*, at p. 266; *Reference re Residential Tenancies Act (N.S.)*, at paras. 32, per Lamer C.J., concurring, and 74, per McLachlin J. (as she then was) for the majority)

7 Core Jurisdiction

Even if a particular grant of jurisdiction survives the three-part *Residential Tenancies* test, the Supreme Court of Canada has articulated a second test to ensure the preservation of the "core" superior court powers. In *Reference re Code of Civil Procedure*, the Supreme Court of Canada explained the relationship between the *Residential Tenancies* test and the "core jurisdiction test" in this way:

> [64] Until *MacMillan Bloedel*, this Court's decisions protected the superior courts' role by limiting grants of their historical jurisdiction. In *MacMillan Bloedel*, the Court applied the three-step *Residential Tenancies* test to an exclusive grant to youth courts of the power to punish young persons for *ex facie* contempt of court — a power that was traditionally exercised by superior courts. The application of that test was seen as deficient because it did not prevent the removal of this significant power from the superior courts. This Court thought it was necessary to interpret the nucleus of the superior courts as also protecting their core jurisdiction (*Sobeys*, at p. 264). Otherwise, there was a risk that gaps in the *Residential Tenancies* test would undermine the role of superior courts either by allowing the creation of parallel courts with certain powers essential to the superior courts' role or by allowing the defining features of superior courts to be removed.
>
> [65] To preserve the essence of the superior courts, this Court therefore added a second test to the analysis of constitutionality under s. 96. It held that when the core jurisdiction of superior courts is affected, courts must ask whether the legislation has the effect of removing any of the attributes of the superior courts' core jurisdiction (*MacMillan Bloedel*, at paras. 18 and 27). Core jurisdiction includes "critically important jurisdictions which are essential to the existence of a superior court of inherent jurisdiction and to the preservation of its foundational role within our legal system" (*Reference re Residential Tenancies Act (N.S.)*, at para. 56, per Lamer C.J., concurring). These defining features enable a superior court "to fulfil itself as a court of law" (*MacMillan Bloedel*, at paras. 30, 35 and 38 (emphasis deleted), quoting I. H. Jacob, "The Inherent Jurisdiction of the Court" (1970), 23 *Current Legal Problems* 23, at p. 27). Their "inherent" nature is attributable to the fact that they are derived not from legislation, but "from the very nature of the court as a superior court of law" (para. 30, quoting Jacob, at p. 27). If such an attribute is removed, the measure is unconstitutional.

7.1 *MacMillan Bloedel Ltd v Simpson*, 1995 CanLII 57 (SCC), [1995] 4 SCR 725

MacMillan Bloedel was one of the first cases to explain the scope, significance, and constitutional status of the core jurisdiction test. As you read Lamer CJC's opinion, consider several points. First, as Lamer CJC explains, the *Residential Tenancies* test limits the ability of Parliament or a provincial legislature to *grant exclusive* authority to a statutory body to adjudicate disputes as part of an integrated regulatory regime. Second, and importantly, the "core jurisdiction" test is concerned not with whether a legislature can grant a particular power, but whether it *can remove such a power* from the jurisdiction of the superior courts. The import of *MacMillan Bloedel* is that certain "core" functions of the superior courts cannot be removed from these courts, except by constitutional amendment.

MacMillan Bloedel provides a good example of this. Lamer CJC explains that the power to punish youth for *ex facie* contempt of court is an inherent power of the superior courts. For that reason, Parliament's attempt to remove this function from the courts and vest it in in a statutory, inferior youth court was unconstitutional.

> LAMER CJC
>
> 26 Having settled on a characterization of the power being transferred, the three branches of the *Residential Tenancies* test are quickly dealt with in this case. Power to punish youths for *ex facie* contempt of superior courts was within the jurisdiction of superior courts at Confederation. Under the second branch of the test, this power obviously remains judicial in nature even in its new institutional setting. Nonetheless, when considering the institutional function of the youth courts, a transfer of this power is permissible. As we elaborated in *Reference re Young Offenders Act*, the policy objectives of the youth court system are clear and laudable. Our society wishes to establish different treatment for youths accused of criminal offences than for adults. Youth courts have an expertise in providing procedural protections appropriate for youths and in deciding punishments for convicted young offenders. The power to punish youths for *ex facie* contempt of superior courts is indeed a mere ancillary to these primary functions. Accordingly, granting jurisdiction to punish youth for *ex facie* contempt of superior courts does not infringe s. 96. What remains to be considered, however, is whether this jurisdiction can be granted to the exclusion of superior courts.
>
> 28 To determine whether either Parliament or a provincial legislature may remove part of the superior court's jurisdiction, we must consider the contours and contents of the "core" or "inherent" jurisdiction of superior courts. On the facts of this appeal, the British Columbia Supreme Court being the superior court involved, we need only consider whether this jurisdiction can be removed from superior courts of general jurisdiction, that is, the provincial superior courts. Whether jurisdiction to punish youth for *ex facie* contempt of statutorily constituted superior courts can be removed from those courts is a question for another day since neither the parties nor the courts below addressed the issue of whether a distinction might exist between these two kinds of superior courts.
>
> 29 The seminal article on the core or inherent jurisdiction of superior courts is I. H. Jacob's "The Inherent Jurisdiction of the Court" (1970), 23 *Current Legal Problems* 23. Jacob's work is a starting point for many discussions of the subject, figures prominently in analyses of contempt of court, and was cited with approval by Dickson C.J. in *B.C.G.E.U. v. British Columbia (Attorney General)*, 1988 CanLII 3 (SCC), [1988] 2 S.C.R. 214 . While the particular focus of Jacob's work is the High Court of Justice in England, he notes that "[t]he English doctrine of the inherent jurisdiction of the court is reflected in most, if not all, other common law jurisdictions, though not so extensively in the United States" (p. 23, fn. 1). Moreover, the English judicial system is the historic basis of our system and is explicitly imported into the Canadian context by the preamble of the *Constitution Act, 1867*. The superior courts of general jurisdiction are as much the cornerstone of our judicial system as they are of the system which is Jacob's specific referent.
>
> 30 Discussing the history of inherent jurisdiction, Jacob says (at p. 25):
>
> > . . . the superior courts of common law have exercised the power which has come to be called "inherent jurisdiction" from the earliest times, and . . . the exercise of such power developed along two paths, namely, by way of punishment for contempt of court and of its process, and by way of regulating the practice of the court and preventing the abuse of its process.
>
> ...
>
> While inherent jurisdiction may be difficult to define, it is of paramount importance to the existence of a superior court. The full range of powers which comprise the inherent jurisdiction of a superior court are, together, its "essential character" or "immanent attribute". To remove any part of this core emasculates the court, making it something other than a superior court.
>
> …

37 Commenting on the constitutional jurisprudence regarding courts, Cromwell, *supra*, concludes (at p. 1032):

> Thus, through generous interpretation of the constitutional provisions governing appointment and independence of provincial superior court judges and a restrictive reading of the constitutional limits of jurisdiction on the Federal Court, the primacy of the provincial superior courts in constitutional judicial review has been maintained. The basic proposition is that the Canadian conception of constitutional judicial review is deeply committed to the supervisory role of the provincial superior courts, that is, the general jurisdiction trial courts in each province.

> In the constitutional arrangements passed on to us by the British and recognized by the preamble to the *Constitution Act, 1867*, the provincial superior courts are the foundation of the rule of law itself. Governance by rule of law requires a judicial system that can ensure its orders are enforced and its process respected. In Canada, the provincial superior court is the only court of general jurisdiction and as such is the centre of the judicial system. None of our statutory courts has the same core jurisdiction as the superior court and therefore none is as crucial to the rule of law. To remove the power to punish contempt *ex facie* by youths would maim the institution which is at the heart of our judicial system. Destroying part of the core jurisdiction would be tantamount to abolishing the superior courts of general jurisdiction, which is impermissible without constitutional amendment.

38 The core jurisdiction of the provincial superior courts comprises those powers which are essential to the administration of justice and the maintenance of the rule of law. It is unnecessary in this case to enumerate the precise powers which compose inherent jurisdiction, as the power to punish for contempt *ex facie* is obviously within that jurisdiction. The power to punish for all forms of contempt is one of the defining features of superior courts […]

What is in the core jurisdiction of the superior courts? *MacMillan Bloedel* did not offer an exhaustive list of these powers. However, the Supreme Court of Canada has opted for a broad and evolutive approach to the content of the core. In *Reference re Code of Civil Procedure*, it said the following:

> [67] The emergence of a test protecting core jurisdiction thus marks a change in direction. Unlike the *Residential Tenancies* test, the core jurisdiction analysis is not primarily historical in nature. It is the very essence of the superior courts that is protected. The content of the core jurisdiction is therefore not limited to what the superior courts exercised exclusively at the time of Confederation. It extends to whatever is needed in order to preserve the vigour and strength of those courts. The protected powers and jurisdiction are solidly anchored in the role the superior courts are called upon to play in the maintenance of the rule of law in our unitary justice system (*MacMillan Bloedel*, at paras. 37-38 and 41).

> [68] The content of the core jurisdiction includes the inherent jurisdiction and inherent powers of a superior court recognized in *MacMillan Bloedel*: namely, review of the legality and constitutional validity of laws, enforcement of its orders, control over its own process, and its residual jurisdiction as a court of original general jurisdiction.

One of the matters that is undoubtedly part of the core jurisdiction of the superior courts is the power to review administrative action. This power is implicated when courts enact privative clauses—clauses that purport to oust the power of the courts to conduct judicial review of administrative action. Privative clauses create a tension between the principle of parliamentary sovereignty and the rule of law. On one hand, if Parliament is sovereign, the enactment of a privative clause barring judicial review of administrative action is within its powers. On the other hand, the rule of law warrants that there will be an impartial arbiter to determine whether administrative action is authorized by law. A privative clause, taken on its face, can bar this review.

The next case, *Crevier,* involves an attempt by the Quebec Legislature to regulate professions. Decisions made under the regime were protected by a privative clause that purported to oust the review of the superior courts, in the following terms:

> 194. No extraordinary recourse contemplated in articles 834 to 850 of the Code of Civil Procedure shall be exercised and no injunction granted against the persons mentioned in section 193 acting in their official capacities.

In reading *Crevier,* consider how the prohibition against the creation of shadow s.96 courts was violated by the Quebec legislation. How did the legislation purport to divest the s.96 courts of a core function?

7.2 *Crevier v AG (Quebec) et al.*, 1981 CanLII 30 (SCC), [1981] 2 SCR 220

LASKIN CJC

I need make but a brief allusion to the facts. The *Professional Code* governs some 38 professional corporations listed in an annex to the Code. Each of these corporations is required to establish a Discipline Committee in conformity with the Code to deal with allegations of professional misconduct. The Discipline Committees have authority under s. 156 to impose a range of sanctions upon. a finding of guilty, such as a reprimand or a temporary or permanent striking off the rolls of the particular corporation or a fine of at least $200 for each offence. The Discipline Committee has no authority to admit members to the particular profession and hence is not invested with any power to set standards for membership. This is done by Bureaux constituted under the Code for the respective professions.

…

The second issue arising from the reasons of the Quebec Court of Appeal concerns the effect upon s. 96 of a privative clause of a statute which purports to insulate a provincial adjudicative tribunal from any review of its decisions. Is it enough to deflect s. 96 if the privative clause is construed to preserve superior court supervision over questions of jurisdiction, and if (as in this case) such a construction is not open because of the wording of the privative clause, is the clause constitutionally valid? In my opinion, where a provincial Legislature purports to insulate one of its statutory tribunals from any curial review of its adjudicative functions, the insulation encompassing jurisdiction, such provincial legislation must be struck down as unconstitutional by reason of having the effect of constituting the tribunal a s. 96 court.

…

lt is true that this is the first time that this Court has declared unequivocally that a provincially-constituted statutory tribunal cannot constitutionally be immunized from review of decisions on questions of jurisdiction. In my opinion, this limitation, arising by virtue of s. 96, stands on the same footing as the well-accepted limitation on the power of provincial statutory tribunals to make unreviewable determinations of constitutionality. There may be differences of opinion as to what are questions of jurisdiction but, in my lexicon, they rise above and are different from errors of law, whether involving statutory construction or evidentiary matters or other matters. It is now unquestioned that privative clauses may, when properly framed, effectively oust judicial review on questions of law and, indeed, on other issues not touching jurisdiction. However, given that s. 96 is in the *British North America Act* and that it would make a mockery of it to treat it in non-functional formal terms as a mere appointing power, I can think of nothing that is more the hallmark of a superior court than the vesting of power in a provincial statutory tribunal to determine the limits of its jurisdiction without appeal or other review.

…

> In short, what the *Farrah* case decided was that to give a provincially-constituted statutory tribunal a jurisdiction in appeal on questions of law without limitation, and to reinforce this appellate authority by excluding any supervisory recourse to the Quebec Superior Court, was to create a s. 96 court. The present case is no different in principle, even though in ss. 162 and 175 of the *Professional Code,* dealing with the appellate authority of the Professions Tribunal, there is no mention of the word "law" or the word "jurisdiction". When regard is had to the privative terms of ss. 194 and 195, added to the fact that by s. 175 the Professions Tribunal's decisions are final, I see no significant distinction between the present case and the *Farrah* case in the fact that in the latter the authority granted to the appeal tribunal was "to the exclusion of any other court". In both cases there was a purported exclusion of the reviewing authority of any other court, whether by appeal or by evocation.

Crevier, Residential Tenancies, and many of the other "s.96 cases" involve provincially-created statutory bodies. But, in a key case, the Supreme Court of Canada held that s.96 is binding on the federal Parliament as well as the provincial legislatures. At issue in *McEvoy* was a joint plan by the Legislature of New Brunswick and the Parliament of Canada to transfer jurisdiction to try indictable offences to a "unified criminal court" with provincially appointed judges. In concluding that this proposal was unconstitutional, Laskin CJ reasoned that the effect of the proposal would be to establish a shadow s.96 court, and that the prohibition against the establishment of such courts applies also to the federal Parliament.

7.3 *McEvoy v Attorney General for New Brunswick et al*, 1983 CanLII 149 (SCC), [1983] 1 SCR 704

LASKIN CJC

> The questions posed for decision leave open many matters which cannot be ignored when it is intended to replace provincial Superior Courts in the administration of the criminal law, including indictable offences. We have alrady raised the question whether unreviewable authority is to be given to the new provincial court in the proposed grant of exclusive jurisdiction or, at best, only a statutory right of appeal. Unreviewable authority might put the provincially-established Court and its provincially-appointed Judges in a s. 96 position notwithstanding that its jurisdiction comes from Parliament. The Crevier case, 1981 CanLII 30 (SCC), [1981] 2 S.C.R. 220, might be considered as apt.
>
> …
>
> What is proposed in the New Brunswick proposals is the establishment of a statutory Court. As distinguished from what? Certainly not from existing provincial courts which must be fed criminal jurisdiction by federal legislation. No doubt, however, to separate the new Court from provincial Superior Courts. Will that help or advance the matter if functional considerations have to be considered? It has long been the rule that s. 96, although in terms an appointing power, must be addressed in functional terms lest its application be eroded. What then, is the relation between the proposed new statutory Court and s. 96? This is the key constitutional issue in the present case and, as we view the matter, the result is to defeat the new statutory Court because it will effectively be a s. 96 Court.
>
> …
>
> What is being contemplated here is not one or a few transfers of criminal law power, such as has already been accomplished under the *Criminal Code,* but a complete obliteration of Superior Court criminal law jurisdiction. Sections 96 to 100 do not distinguish between courts of civil jurisdiction and courts of criminal jurisdiction. They should not be read as permitting the Parliament of Canada through use of its criminal law power to destroy Superior Courts and to deprive the Governor General of appointing power and to exclude members of the Bar from preferment for Superior Court appointments.
>
> Parliament can no more give away federal constitutional powers than a province can usurp them. Section 96 provides that "The Governor General shall appoint the Judges of the Superior, District, and County Courts in each Province". The proposal here is that Parliament transfer the present Superior Courts' jurisdiction to try indictable offences to a provincial court. The effect of this proposal would be to deprive the Governor General of his power under s. 96 to appoint the judges who try indictable offences in New Brunswick. That is contrary to s. 96. Section 96 bars Parliament from altering the constitutional scheme envisaged by the judicature sections of the *Constitution Act, 1867* just as it does the provinces from doing so.
>
> The traditional independence of English Superior Court judges has been raised to the level of a fundamental principle of our federal system by the *Constitution Act, 1867* and cannot have less importance and force in the administration of criminal law than in the case of civil matters. Under the Canadian constitution the Superior Courts are independent of both levels of government. The provinces constitute, maintain and organize the Superior Courts; the federal authority appoints the judges. The judicature sections of the *Constitution Act, 1867* guarantee the independence of the Superior Courts; they apply to Parliament as well as to the Provincial Legislatures.

8 Judicial Independence and Access to the Superior Courts

In addition to prohibiting the creation of "new" s.96 courts, ss.96-101 of the *Constitution Act, 1867* also serve to protect the independence of superior courts as well as access to these courts. These provisions are supported by, and intertwined with, unwritten constitutional principles such as the rule of law. A commitment to the rule of law requires that individuals have recourse to an independent and impartial adjudicator that resolves disputes through the application of the law. Indeed, as the Supreme Court of Canada noted, "[i]n keeping with the principle of the separation of powers, the task of interpreting, applying and stating the law falls primarily to the judiciary" (*Reference re Code of Civil Procedure*, at para 46).

In the next case, the Supreme Court of Canada extended the protection of judicial independence to provincial court judges. Provincial courts are established by the provincial legislatures, under s.92 (14) of the *Constitution Act, 1867*. At issue in the *Provincial Judges Reference* was a proposal by several provincial legislature to reduce the salaries of their provincial court judges. It is well-established that s.100 of the *Constitution Act, 1867* protects the financial security of superior court judges. The question for the Court was whether the independence of provincial court judges should be protected in the same way. In answering this question, Lamer CJC emphasized that s.96 does not exhaust the meaning and requirements of judicial independence in the Canadian court system.

The specific question for the Court was whether the financial security of provincial court judges was protected. The question is important, because under s.11(d) of the *Charter,* any person facing a criminal charge in provincial court has the right "to be presumed innocent until proven guilty according to law in a fair and public hearing by an independent and impartial tribunal."

9 *Ref re Remuneration of Judges of the Prov Court of PEI*, 1997 CanLII 317 (SCC), [1997] 3 SCR 3

LAMER CJC

…

88 A perusal of the language of s. 96 reveals the same difficulty:

> **96.** The Governor General shall appoint the Judges of the Superior, District, and County Courts in each Province, except those of the Courts of Probate in Nova Scotia and New Brunswick.

Section 96 seems to do no more than confer the power to appoint judges of the superior, district, and county courts. It is a staffing provision, and is once again a subtraction from the power of the provinces under s. 92(14). However, through a process of judicial interpretation, s. 96 has come to guarantee the core jurisdiction of the courts which come within the scope of that provision. In the past, this development has often been expressed as a logical inference from the express terms of s. 96. Assuming that the goal of s. 96 was the creation of "a unitary judicial system", that goal would have been undermined "if a province could pass legislation creating a tribunal, appoint members thereto, and then confer on the tribunal the jurisdiction of the superior courts": *Re Residential Tenancies Act, 1979*, 1981 CanLII 24 (SCC) , [1981] 1 S.C.R. 714, at p. 728. However, as I recently confirmed, s. 96 restricts not only the legislative competence of provincial legislatures, but of Parliament as well: *MacMillan Bloedel*, *supra*. The rationale for the provision has also shifted, away from the protection of national unity, to the maintenance of the rule of law through the protection of the judicial role.

89 The point which emerges from this brief discussion is that the interpretation of ss. 96 and 100 has come a long way from what those provisions actually say. This jurisprudential evolution undermines the force of the argument that the written text of the Constitution is comprehensive and definitive in its protection of judicial independence. The only way to explain the interpretation of ss. 96 and 100, in fact, is by reference to a deeper set of unwritten understandings which are not found on the face of the document itself.

…

94 In my opinion, the existence of many of the unwritten rules of the Canadian Constitution can be explained by reference to the preamble of the *Constitution Act, 1867*. The relevant paragraph states in full:

> Whereas the Provinces of Canada, Nova Scotia, and New Brunswick have expressed their Desire to be federally united into One Dominion under the Crown of the United Kingdom of Great Britain and Ireland, with a Constitution similar in Principle to that of the United Kingdom:

Although the preamble has been cited by this Court on many occasions, its legal effect has never been fully explained. On the one hand, although the preamble is clearly part of the Constitution, it is equally clear that it "has no enacting force": *Reference re Resolution to Amend the Constitution*, 1981 CanLII 25 (SCC) , [1981] 1 S.C.R. 753, at p. 805 (joint majority reasons). In other words, strictly speaking, it is not a source of positive law, in contrast to the provisions which follow it.

95 But the preamble does have important legal effects. Under normal circumstances, preambles can be used to identify the purpose of a statute, and also as an aid to construing ambiguous statutory language: *Driedger on the Construction of Statutes* (3rd ed. 1994), by R. Sullivan, at p. 261. The preamble to the *Constitution Act, 1867*, certainly operates in this fashion. However, in my view, it goes even further. In the words of Rand J., the preamble articulates "the political theory which the Act embodies": *Switzman*, *supra*, at p. 306. It recognizes and affirms the basic principles which are the very source of the substantive provisions of the *Constitution Act, 1867*. As I have said above, those provisions merely elaborate those organizing principles in the institutional apparatus they create or contemplate. As such, the preamble is not only a key to construing the express provisions of the *Constitution Act, 1867*, but also invites the use of those organizing principles to fill out gaps in the express terms of the constitutional scheme. It is the means by which the underlying logic of the Act can be given the force of law.

96 What are the organizing principles of the *Constitution Act, 1867*, as expressed in the preamble? The preamble speaks of the desire of the founding provinces "to be federally united into One Dominion", and thus, addresses the structure of the division of powers. Moreover, by its reference to "a Constitution similar in Principle to that of the United Kingdom", the preamble indicates that the legal and institutional structure of constitutional democracy in Canada should be similar to that of the legal regime out of which the Canadian Constitution emerged. To my mind, both of these aspects of the preamble explain many of the cases in which the Court has, through the normal process of constitutional interpretation, stated some fundamental rules of Canadian constitutional law which are not found in the express terms of the *Constitution Act, 1867*.

…

105 The same approach applies to the protection of judicial independence. In fact, this point was already decided in Beauregard, and, unless and until it is reversed, we are governed by that decision today. In that case (at p. 72), a unanimous Court held that the preamble of the Constitution Act, 1867, and in particular, its reference to "a Constitution similar in Principle to that of the United Kingdom", was "textual recognition" of the principle of judicial independence. Although in that case, it fell to us to interpret s. 100 of the Constitution Act, 1867, the comments I have just reiterated were not limited by reference to that provision, and the courts which it protects.

106 The historical origins of the protection of judicial independence in the United Kingdom, and thus in the Canadian Constitution, can be traced to the Act of Settlement of 1701. As we said in *Valente*, supra, at p. 693, that Act was the "historical inspiration" for the judicature provisions of the *Constitution Act, 1867*. Admittedly, the Act only extends protection to judges of the English superior courts. However, our Constitution has evolved over time. In the same way that our understanding of rights and freedoms has grown, such that they have now been expressly entrenched through the enactment of the Constitution Act, 1982, so too has judicial independence grown into a principle that now extends to all courts, not just the superior courts of this country.

107 I also support this conclusion on the basis of the presence of s. 11(d) of the Charter, an express provision which protects the independence of provincial court judges only when those courts exercise jurisdiction in relation to offences. As I said earlier, the express provisions of the Constitution should be understood as elaborations of the underlying, unwritten, and organizing principles found in the preamble to the *Constitution Act, 1867*. Even though s. 11(d) is found in the newer part of our Constitution, the *Charter*, it can be understood in this way, since the Constitution is to be read as a unified whole: *Reference re Bill 30, An Act to amend the Education Act (Ont.)*, 1987 CanLII 65 (SCC) , [1987] 1 S.C.R. 1148, at p. 1206. An analogy can be drawn between the express reference in the preamble of the Constitution Act, 1982 to the rule of law and the implicit inclusion of that principle in the Constitution Act, 1867: Reference re Manitoba Language Rights, supra, at p. 750. Section 11(d), far from indicating that judicial independence is constitutionally enshrined for provincial courts only when those courts exercise jurisdiction over offences, is proof of the existence of a general principle of judicial independence that applies to all courts no matter what kind of cases they hear.

108 I reinforce this conclusion by reference to the central place that courts hold within the Canadian system of government. In *OPSEU*, as I have mentioned above, Beetz J. linked limitations on legislative sovereignty over political speech with "the existence of certain political institutions" as part of the "basic structure of our Constitution" (p. 57). However, political institutions are only one part of the basic structure of the Canadian Constitution. As this Court has said before, there are three branches of government — the legislature, the executive, and the judiciary: *Fraser v. Public Service Staff Relations Board*, 1985 CanLII 14 (SCC) , [1985] 2 S.C.R. 455, at p. 469; *R. v. Power*, 1994 CanLII 126 (SCC), [1994] 1 S.C.R. 601, at p. 620. Courts, in other words, are equally "definitional to the Canadian understanding of constitutionalism" (*Cooper*, *supra*, at para. 11) as are political institutions. It follows that the same constitutional imperative — the preservation of the basic structure — which led Beetz J. to limit the power of legislatures to affect the operation of political institutions, also extends

protection to the judicial institutions of our constitutional system. By implication, the jurisdiction of the provinces over "courts", as that term is used in s. 92(14) of the *Constitution Act, 1867*, contains within it an implied limitation that the independence of those courts cannot be undermined.

109 In conclusion, the express provisions of the Constitution Act, 1867 and the Charter are not an exhaustive written code for the protection of judicial independence in Canada. Judicial independence is an unwritten norm, recognized and affirmed by the preamble to the Constitution Act, 1867. In fact, it is in that preamble, which serves as the grand entrance hall to the castle of the Constitution, that the true source of our commitment to this foundational principle is located. However, since the parties and interveners have grounded their arguments in s. 11(d), I will resolve these appeals by reference to that provision.

B. Section 11(d) of the Charter

110 As I mentioned earlier, these appeals were heard together because they all raise the question of whether and how s. 11(d) of the Charter restricts the manner by and extent to which provincial governments and legislatures can reduce the salaries of provincial court judges. Before I can address this specific question, I must make some general comments about the jurisprudence under s. 11(d).

111 The starting point for my discussion is *Valente*, where in a unanimous judgment this Court laid down the interpretive framework for s. 11(d)'s guarantee of judicial independence and impartiality. Le Dain J., speaking for the Court, began by drawing a distinction between impartiality and independence. Later cases have referred to this distinction as "a firm line": *Généreux*, *supra*, at p. 283. Impartiality was defined as "a state of mind or attitude of the tribunal in relation to the issues and the parties in a particular case" (Valente, supra, at p. 685 (emphasis added)). It was tied to the traditional concern for the "absence of bias, actual or perceived". Independence, by contrast, focussed on the status of the court or tribunal. In particular, Le Dain J. emphasized that the independence protected by s. 11(d) flowed from "the traditional constitutional value of judicial independence", which he defined in terms of the relationship of the court or tribunal "to others, particularly the executive branch of government" (p. 685). As I expanded in *R. v. Lippé*, 1990 CanLII 18 (SCC), [1991] 2 S.C.R. 114, the independence protected by s. 11(d) is the independence of the judiciary from the other branches of government, and bodies which can exercise pressure on the judiciary through power conferred on them by the state.

112 Le Dain J. went on in *Valente* to state that independence was premised on the existence of a set of "objective conditions or guarantees" (p. 685), whose absence would lead to a finding that a tribunal or court was not independent. The existence of objective guarantees, of course, follows from the fact that independence is status oriented; the objective guarantees define that status. However, he went on to supplement the requirement for objective conditions with what could be interpreted as a further requirement: that the court or tribunal be reasonably perceived as independent. The reason for this additional requirement was that the guarantee of judicial independence has the goal not only of ensuring that justice is done in individual cases, but also of ensuring public confidence in the justice system. As he said (at p. 689):

> Without that confidence the system cannot command the respect and acceptance that are essential to its effective operation. It is, therefore, important that a tribunal should be perceived as independent, as well as impartial, and that the test for independence should include that perception.

However, it would be a mistake to conclude that Le Dain J. intended the objective guarantees and the reasonable perception of independence to be two distinct concepts. Rather, the objective guarantees must be viewed as those guarantees that are necessary to ensure a reasonable perception of independence. As Le Dain J. said himself, for a court or tribunal to be perceived as independent, that "perception must . . . be a perception of whether the tribunal enjoys the essential objective conditions or guarantees of judicial independence" (p. 689).

113 Another point which emerges from Valente relates to the question of whose perceptions count. The answer given is that of the reasonable and informed person. This standard was formulated by de Grandpré J. in *Committee for Justice and Liberty v. National Energy Board*, 1976 CanLII 2 (SCC) , [1978] 1 S.C.R. 369, at p. 394, with respect to a reasonable apprehension of bias, and was cited with approval in *Valente*, supra, at p. 684:

> . . . the apprehension of bias must be a reasonable one, held by reasonable and right minded persons, applying themselves to the question and obtaining thereon the required information. In the words of the Court of Appeal, that test is "what would an informed person, viewing the matter realistically and practically — and having thought the matter through — conclude. . . ."

That test was adapted to the determination of judicial independence by Howland C.J.O. in his judgment in the Ontario Court of Appeal in *R. v. Valente (No. 2)* (1983), 1983 CanLII 1901 (ON CA), 2 C.C.C. (3d) 417, at pp. 439-40:

> The question that now has to be determined is whether a reasonable person, who was informed of the relevant statutory provisions, their historical background and the traditions surrounding them, after viewing the matter realistically and practically would conclude [that the tribunal or court was independent].

To my mind, the decisions of Howland C.J.O. in *Valente*, and de Grandpré J. in *National Energy Board*, correctly establish the standard for the test of reasonable perception for the purposes of s. 11(d).

114 After establishing these core propositions, Le Dain J. in Valente went on to discuss two sets of concepts; the three core characteristics of judicial independence, and what I term the two dimensions of judicial independence.

115 The three core characteristics identified by Le Dain J. are security of tenure, financial security, and administrative independence. Valente laid down (at p. 697) two requirements for security of tenure for provincial court judges: those judges could only be removed for cause "related to the capacity to perform judicial functions", and after a "judicial inquiry at which the judge affected is given a full opportunity to be heard". Unlike the judicature provisions of the Constitution Act, 1867, which govern the removal of superior court judges, s. 11(d) of the Charter does not require an address by the legislature in order to dismiss a provincial court judge.

116 Financial security was defined in these terms (at p. 706):

> The essential point, in my opinion, is that the right to salary of a provincial court judge is established by law, and there is no way in which the Executive could interfere with that right in a manner to affect the independence of the individual judge. [Emphasis added.]

Once again, the Court drew a distinction between the requirements of s. 100 of the Constitution Act, 1867 and s. 11(d); whereas the former provision requires that the salaries of superior court judges be set by Parliament directly, the latter allows salaries of provincial court judges to be set either by statute or through an order in council.

117 Finally, the Court defined the administrative independence of the provincial court, as control by the courts "over the administrative decisions that bear directly and immediately on the exercise of the judicial function" (p. 712). These were defined (at p. 709) in narrow terms as

> assignment of judges, sittings of the court, and court lists — as well as the related matters of allocation of court rooms and direction of the administrative staff engaged in carrying out these functions…

Although this aspect of judicial independence was also referred to as "institutional independence" in *Valente* at p. 708, that term, as I explain below, has a distinct meaning altogether, and should not be confused with administrative independence.

118 The three core characteristics of judicial independence — security of tenure, financial security, and administrative independence — should be contrasted with what I have termed the two dimensions of judicial independence. In Valente, Le Dain J. drew a distinction between two dimensions of judicial independence, the individual independence of a judge and the institutional or collective independence of the court or tribunal of which that judge is a member. In other words, while individual independence attaches to individual judges, institutional or collective independence attaches to the court or tribunal as an institutional entity. The two different dimensions of judicial independence are related in the following way (*Valente*, supra, at p. 687):

> The relationship between these two aspects of judicial independence is that an individual judge may enjoy the essential conditions of judicial independence but if the court or tribunal over which he or she presides is not independent of the other branches of government, in what is essential to its function, he or she cannot be said to be an independent tribunal.

119 It is necessary to explain the relationship between the three core characteristics and the two dimensions of judicial independence, because Le Dain J. did not fully do so in Valente. For example, he stated that security of tenure was part of the individual independence of a court or tribunal, whereas administrative independence was identified with institutional or collective independence. However, the core characteristics of judicial independence, and the dimensions of judicial independence, are two very different concepts. The core characteristics of judicial independence are distinct facets of the definition of judicial independence. Security of tenure, financial security, and administrative independence come together to constitute judicial independence. By contrast, the dimensions of judicial independence indicate which entity — the individual judge or the court or tribunal to which he or she belongs — is protected by a particular core characteristic.

120 The conceptual distinction between the core characteristics and the dimensions of judicial independence suggests that it may be possible for a core characteristic to have both an individual and an institutional or collective dimension. To be sure, sometimes a core characteristic only attaches to a particular dimension of judicial independence; administrative independence, for example, only attaches to the court as an institution (although sometimes it may be exercised on behalf of a court by its chief judge or justice). However, this need not always be the case. The guarantee of security of tenure, for example, may have a collective or institutional dimension, such that only a body composed of judges may recommend the removal of a judge. However, I need not decide that particular point here.

…

163 The relevance of the judicature provisions, and s. 100 in particular, to the interpretation of s. 11(*d*) emerges from their shared commitment to judicial independence. The link between these two sets of provisions can be found in *Beauregard* itself, where the Court developed the distinction between individual independence and institutional independence by reference to *Valente*. I also alluded to the link between these two sets of provisions in my separate reasons in *Cooper*. As I have suggested, this link arises in part as a function of the fact that both ss. 11(*d*) and 100 are expressions of the unwritten principle of judicial independence which is recognized and affirmed by the preamble to the *Constitution Act, 1867*.

164 What the link between s. 11(*d*) and the judicature provisions means is that certain fundamental aspects of judicial independence are enjoyed not only by superior courts, but by provincial courts as well. In my opinion, the constitutional parameters of the power to change or freeze judges' salaries under s. 100, as defined by *Beauregard* and developed in these reasons, fall into this category.

165 In conclusion, the requirements laid down in *Beauregard* and developed in these reasons with respect to s. 100 and superior court judges, are equally applicable to the guarantee of financial security provided by s. 11(*d*) to provincial court judges. Just as Parliament can change or freeze the salaries of superior court judges, legislatures and executives of the provinces can do the same to the salaries of provincial court judges.

As Lamer CJC makes clear in the *Provincial Judges Reference*, the unwritten principle of the rule of law, supported by the principle of judicial independence, does not emerge directly from the express constitutional text. However, the Preamble, alongside the express provisions of the Constitution, protects a nexus of unwritten constitutional norms. Those norms, alongside ss.96-101 of the *Constitution Act, 1867*, serve to protect access to an impartial and independent tribunal which cannot be abridged by provincial legislatures under s.92(14) of the *Constitution Act, 1867.* Indeed, this is the key point of the next case.

10 *Trial Lawyers Association of British Columbia v British Columbia (Attorney General)*, 2014 SCC 59

THE CHIEF JUSTICE—

I. Overview

[1] The issue in this case is whether court hearing fees imposed by the Province of British Columbia that deny some people access to the courts are constitutional. The trial judge, upheld on appeal, held that the legislation imposing the fees was unconstitutional. I agree.

[2] In my view, the fees at issue here violate s. 96 of the *Constitution Act, 1867*. Although the province can establish hearing fees under its power to administer justice under s. 92(14) of the *Constitution Act, 1867*, the exercise of that power must also comply with s. 96 of the *Constitution Act, 1867*, which constitutionally protects the core jurisdiction of the superior courts. For the reasons discussed below, the fees impermissibly infringe on that jurisdiction by, in effect, denying some people access to the courts.

II. Facts

[3] This case began as a family action (2009 BCSC 434 (CanLII)). Ms. Vilardell and Mr. Dunham began a relationship in England and came to British Columbia, Canada, with their daughter. The relationship foundered, and the question arose — who should have custody of the child? Ms. Vilardell wanted to return with the child to Spain, her country of origin. Mr. Dunham wanted to keep the child in British Columbia. Ms. Vilardell also claimed an interest in Mr. Dunham's house.

[4] Ms. Vilardell went to court to have these issues resolved. In order to get a trial date, she had to undertake in advance to pay a court hearing fee. At the outset of the trial, Ms. Vilardell asked the judge to relieve her from paying the hearing fee. The judge reserved his decision on this request until the end of the trial, so he could address the question of ability to pay after hearing evidence respecting the parties' means, circumstances, and entitlement to property.

[5] The parties were not represented by lawyers, and the hearing took 10 days. The hearing fee amounted to some $3,600 — almost the net monthly income of the family (2012 BCSC 748 , 260 C.R.R. (2d) 1, at para. 396). Ms. Vilardell is not an "impoverished" person in the ordinary sense of the word. She is qualified as a veterinary surgeon in Europe. She was unemployed in the year leading up to the

trial; the "family" income appears to have come mainly from her partner. She had some assets, including about $10,000 in savings in a Canadian bank account, $10,000 in a Barclays Investment Savings Account in the United Kingdom, and $4,500 in a registered retirement account in Spain. However, after legal fees had depleted her savings, she could not afford the hearing fee.

[6] Aware that there was some authority for the proposition that hearing fees are unconstitutional (*Pleau v. Nova Scotia (Prothonotary)* (1998), 1998 CanLII 12462 (NS SC) , 186 N.S.R. (2d) 1 (S.C.)), the judge held that the Attorney General should be given an opportunity to intervene on Ms. Vilardell's application. He also invited submissions from the Law Society of British Columbia and the B.C. branch of the Canadian Bar Association. The judge stayed Ms. Vilardell's obligation to pay the hearing fee pending further order.

[7] Ultimately, the B.C. branch of the Canadian Bar Association and the Trial Lawyers Association of British Columbia intervened and challenged the hearing fee scheme as unconstitutional. They argued that people like Ms. Vilardell — possessing some means but not able to pay the hearing fee — have the right to have a court adjudicate their legal disputes, and that the hearing fee regime in British Columbia essentially denies them that right.

[8] The trial judge ruled that the hearing fee provision was unconstitutional. The Court of Appeal agreed that the scheme could not stand as it is, but held that if the exemption provision were expanded by reading in the words "or in need", it would pass constitutional muster (2013 BCCA 65 , 43 B.C.L.R. (5th) 217). The Trial Lawyers Association of British Columbia and the Canadian Bar Association — British Columbia Branch appeal the remedy to this Court. The Province cross-appeals on the issue of the constitutionality of the hearing fees.

III. The Legislative Regime

[9] The *Supreme Court Rules*, B.C. Reg. 221/90, as amended by B.C. Reg. 10/96 and B.C. Reg. 75/98, in place at the time this case began, were enacted as subordinate legislation under the *Court Rules Act*, R.S.B.C. 1996, c. 80. In 2010, the *Supreme Court Rules* were replaced by the *Supreme Court Civil Rules*, B.C. Reg. 168/2009. The appellants challenge the constitutionality of the hearing fees set out in both rules of court.

[10] The current hearing fees are set out in Schedule 1 of Appendix C of the *Supreme Court Civil Rules* and the *Supreme Court Family Rules*, B.C. Reg. 169/2009. The fees escalate from no fee for the first three days of trial, to $500 for days four to ten, to $800 for each day over ten.

[11] Rule 20-5(1) of the *Supreme Court Civil Rules* provides for an exemption from hearing fees:

> If the court, on application made in accordance with subrule (3) before or after the start of a proceeding, finds that a person receives benefits under the *Employment and Assistance Act* or the *Employment and Assistance for Persons with Disabilities Act* or is otherwise impoverished, the court may order that no fee is payable by the person to the government under Schedule 1 of Appendix C in relation to the proceeding unless the court considers that the claim or defence
>
> (a) discloses no reasonable claim or defence, as the case may be,
>
> (b) is scandalous, frivolous or vexatious, or
>
> (c) is otherwise an abuse of the process of the court.

[12] In B.C., the party that sets a case down for trial (usually the plaintiff) is required to undertake to pay the hearing fee — regardless of whether the trial length is based on that party's estimate or the estimate of the other party or the court.

[13] Applications for the impoverishment exemption are usually spoken to in court, often on an *ex parte* basis. The registry provides the applicant with an application form, a blank affidavit, and a draft order (r. 20-5(3)).

IV. Issues

[14] This appeal raises the following issues:

1. Is B.C.'s hearing fee scheme constitutionally valid?
2. If not, what is the appropriate remedy?

[15] The appellants challenge the Province's hearing fees on a number of grounds, including the rule of law and access to an independent judiciary.

[16] The Province argues that the hearing fee scheme is a valid exercise of the provincial power over the administration of justice under s. 92(14) of the *Constitution Act, 1867*.

[17] The question arises: What, if any, are the limits of the scope of provincial authority over the administration of justice under s. 92(14)? The authority is a wide one, but it must be exercised harmoniously with the core jurisdiction of provincial superior courts protected by s. 96. The issue in this case comes down to whether s. 96 is infringed by legislation that imposes hearing fees that deny some people access to the courts.

V. Analysis

A. *The Province Has the Power to Impose Hearing Fees*

[18] The Province has the power to legislate with respect to the administration of justice under s. 92(14) of the *Constitution Act, 1867*. This includes the power to charge fees for court services.

[19] Section 92(14) of the *Constitution Act, 1867* provides:

> **92.** In each Province the Legislature may exclusively make Laws in relation to . . .
>
> 14. The Administration of Justice in the Province, including the Constitution, Maintenance, and Organization of the Provincial Courts, both of Civil and of Criminal Jurisdiction, and including Procedure in Civil matters in those Courts.

[20] In *British Columbia (Attorney General) v. Christie*, 2007 SCC 21 , [2007] 1 S.C.R. 873 , this Court said:

> The legislature has the power to pass laws in relation to the administration of justice in the province under s. 92(14) of the *Constitution Act, 1867*. This implies the power of the province to impose at least some conditions on how and when people have a right to access the courts. Therefore *B.C.G.E.U.* cannot stand for the proposition that every limit on access to the courts is automatically unconstitutional. [Emphasis added; para. 17.]

[21] Hearing fees fall squarely within the "administration of justice" and may be used to defray some of the cost of administering the justice system, to encourage the efficient use of court resources, and to discourage frivolous or inappropriate use of the courts.

[22] It was argued that *all* hearing fees are unconstitutional; as courts are a "first charge on government", charging fees for time in court is as offensive to democracy as charging fees for voting. However, this argument is flawed because it focuses on the type of the fee, rather than the real problem — using fees to deny certain people access to the courts. Moreover, the argument raises policy issues relating to how governments should generate revenue and allocate their funds. Hearing fees paid by litigants who *can* afford them may be a justifiable way of making resources available for the justice system and increasing access to justice overall.

[23] I conclude that levying hearing fees is a permissible exercise of the Province's jurisdiction under s. 92(14) of the *Constitution Act, 1867*.

B. *The Provinces' Power to Impose Hearing Fees Is Not Unlimited*

[24] On its face, s. 92(14) does not limit the powers of the provinces to impose hearing fees. However, that does not mean that the province can impose hearing fees in any fashion it chooses. Its power to impose hearing fees must be consistent with s. 96 of the *Constitution Act, 1867* and the requirements that flow by necessary implication from s. 96. This follows from two related tenets of constitutional interpretation.

[25] First, particular constitutional grants of power must be read together with other grants of power so that the Constitution operates as an internally consistent harmonious whole. Thus s. 92(14) does not operate in isolation. Its ambit must be determined, not only by reference to its bare wording, but with respect to other powers conferred by the Constitution. In this case, this requires us to consider s. 96 of the *Constitution Act*, *1867*.

[26] Second, the interpretation of s. 92(14) must be consistent not only with other express terms of the Constitution, but with requirements that "flow by necessary implication from those terms": *British Columbia v. Imperial Tobacco Canada Ltd.*, 2005 SCC 49, [2005] 2 S.C.R. 473, at para. 66, *per* Major J. As this Court has recently stated, "the Constitution must be interpreted with a view to discerning the structure of government that it seeks to implement. The assumptions that underlie the text and the manner in which the constitutional provisions are intended to interact with one another must inform our interpretation, understanding, and application of the text": *Reference re Senate Reform*, 2014 SCC 32, [2014] 1 S.C.R. 704, at para. 26 (emphasis added).

[27] It follows that in determining the power conferred on the province over the administration of justice, including the imposition of hearing fees, by s. 92(14), the Court must consider not only the written words of that provision, but how a particular interpretation fits with other constitutional powers and the assumptions that underlie the text.

[28] In this case, the other constitutional grant of power that must be considered is s. 96 of the *Constitution Act, 1867*, which has been held to guarantee the core jurisdiction of provincial superior courts throughout the country.

[29] While s. 92(14) gives the provinces the responsibility for the administration of justice, s. 96 gives the federal government the power to appoint judges to the superior, district and county courts in each province. Taken together, these sections have been held to provide a constitutional basis for a unified judicial presence throughout the country: *MacMillan Bloedel Ltd. v. Simpson*, 1995 CanLII 57 (SCC), [1995] 4 S.C.R. 725, at paras. 11 and 52. Although the bare words of s. 96 refer to the appointment of judges, its broader import is to guarantee the core jurisdiction of provincial superior courts: Parliament and legislatures can create inferior courts and administrative tribunals, but "[t]he jurisdiction which forms this core cannot be removed from the superior courts by either level of government, without amending the Constitution" (*MacMillan Bloedel*, at para. 15). In this way, the Canadian Constitution "confers a special and inalienable status on what have come to be called the 'section 96 courts'" (*MacMillan Bloedel*, at para. 52).

[30] Section 96 therefore restricts the legislative competence of provincial legislatures and Parliament — neither level of government can enact legislation that abolishes the superior courts or removes part of their core or inherent jurisdiction: *MacMillan Bloedel*, at para. 37; *Reference re Remuneration of Judges of the Provincial Court of Prince Edward Island*, 1997 CanLII 317 (SCC), [1997] 3 S.C.R. 3 ("*Provincial Judges Reference*"), at para. 88.

[31] It is not suggested that legislating hearing fees that prevent people from accessing the courts would abolish or destroy the existence of the courts. The question is rather whether legislating hearing fees that prevent people from accessing the courts infringes on the core jurisdiction of the superior courts.

[32] The historic task of the superior courts is to resolve disputes between individuals and decide questions of private and public law. Measures that prevent people from coming to the courts to have those issues resolved are at odds with this basic judicial function. The resolution of these disputes and resulting determination of issues of private and public law, viewed in the institutional context of the Canadian justice system, are central to what the superior courts do. Indeed, it is their very book of business. To prevent this business being done strikes at the core of the jurisdiction of the superior courts protected by s. 96 of the *Constitution Act, 1867*. As a result, hearing fees that deny people access to the courts infringe the core jurisdiction of the superior courts.

[33] The jurisprudence under s. 96 supports this conclusion. The cases decided under s. 96 have been concerned either with legislation that purports to transfer an aspect of the core jurisdiction of the superior court to another decision-making body or with privative clauses that would bar judicial review: *Re Residential Tenancies Act, 1979*, 1981 CanLII 24 (SCC), [1981] 1 S.C.R. 714; *MacMillan Bloedel*; *Crevier v. Attorney General of Quebec*, 1981 CanLII 30 (SCC), [1981] 2 S.C.R. 220. The thread throughout these cases is that laws may impinge on the core jurisdiction of the superior courts by denying access to the powers traditionally exercised by those courts.

[34] In *Residential Tenancies*, the law at issue unconstitutionally denied access to the superior courts by requiring that a certain class of cases be decided by an administrative tribunal. In *Crevier*, the law at issue unconstitutionally denied access to the superior courts by imposing a privative clause excluding the supervisory jurisdiction of the superior courts. In *MacMillan Bloedel*, the legislation at issue unconstitutionally barred access to the superior courts for a segment of society — young persons — by conferring an exclusive power on youth courts to try youths for contempt in the face of superior courts. This Court, *per* Lamer C.J., relied on *Crevier*, concluding that "[it] establishes . . . that powers which are 'hallmarks of superior courts' cannot be removed from those courts" (*MacMillan Bloedel*, at para. 35).

[35] Here, the legislation at issue bars access to the superior courts in yet another way — by imposing hearing fees that prevent some individuals from having their private and public law disputes resolved by the courts of superior jurisdiction — the hallmark of what superior courts exist to do. As in *MacMillan Bloedel*, a segment of society is effectively denied the ability to bring their matter before the superior court.

[36] It follows that the province's power to impose hearing fees cannot deny people the right to have their disputes resolved in the superior courts. To do so would be to impermissibly impinge on s. 96 of the *Constitution Act, 1867*. Rather, the province's powers under s. 92(14) must be exercised in a manner that is consistent with the right of individuals to bring their cases to the superior courts and have them resolved there.

[37] This is consistent with the approach adopted by Major J. in *Imperial Tobacco*. The legislation here at issue — the imposition of hearing fees — must conform not only to the express terms of the Constitution, but to the "requirements . . . that flow by necessary implication from those terms" (para. 66). The right of Canadians to access the superior courts flows by necessary implication from

the express terms of s. 96 of the *Constitution Act, 1867* as we have seen. It follows that the province does not have the power under s. 92(14) to enact legislation that prevents people from accessing the courts.

[38] While this suffices to resolve the fundamental issue of principle in this appeal, the connection between s. 96 and access to justice is further supported by considerations relating to the rule of law. This Court affirmed that access to the courts is essential to the rule of law in *B.C.G.E.U. v. British Columbia (Attorney General)*, 1988 CanLII 3 (SCC), [1988] 2 S.C.R. 214. As Dickson C.J. put it, "[t]here cannot be a rule of law without access, otherwise the rule of law is replaced by a rule of men and women who decide who shall and who shall not have access to justice" (p. 230). The Court adopted, at p. 230, the B.C. Court of Appeal's statement of the law ((1985), 1985 CanLII 143 (BC CA), 20 D.L.R. (4th) 399, at p. 406):

> . . . access to the courts is under the rule of law one of the foundational pillars protecting the rights and freedoms of our citizens. . . . Any action that interferes with such access by any person or groups of persons will rally the court's powers to ensure the citizen of his or her day in court. Here, the action causing interference happens to be picketing. As we have already indicated, interference from whatever source falls into the same category. [Emphasis added.]

As stated more recently in *Hryniak v. Mauldin*, 2014 SCC 7, [2014] 1 S.C.R. 87, *per* Karakatsanis J., "without an accessible public forum for the adjudication of disputes, the rule of law is threatened and the development of the common law undermined" (para. 26).

[39] The s. 96 judicial function and the rule of law are inextricably intertwined. As Lamer C.J. stated in *MacMillan Bloedel*, "[i]n the constitutional arrangements passed on to us by the British and recognized by the preamble to the *Constitution Act, 1867*, the provincial superior courts are the foundation of the rule of law itself" (para. 37). The very rationale for the provision is said to be "the maintenance of the rule of law through the protection of the judicial role": *Provincial Judges Reference*, at para. 88. As access to justice is fundamental to the rule of law, and the rule of law is fostered by the continued existence of the s. 96 courts, it is only natural that s. 96 provide some degree of constitutional protection for access to justice.

[40] In the context of legislation which effectively denies people the right to take their cases to court, concerns about the maintenance of the rule of law are not abstract or theoretical. If people cannot challenge government actions in court, individuals cannot hold the state to account — the government will be, or be seen to be, above the law. If people cannot bring legitimate issues to court, the creation and maintenance of positive laws will be hampered, as laws will not be given effect. And the balance between the state's power to make and enforce laws and the courts' responsibility to rule on citizen challenges to them may be skewed: *Christie v. British Columbia (Attorney General)*, 2005 BCCA 631, 262 D.L.R. (4th) 51, at paras. 68-9, *per* Newbury J.A.

[41] This Court's decision in *Christie* does not undermine the proposition that access to the courts is fundamental to our constitutional arrangements. The Court in *Christie* — a case concerning a 7 percent surcharge on legal services — proceeded on the premise of a fundamental right to access the courts, but held that not "every limit on access to the courts is automatically unconstitutional" (para. 17). In the present case, the hearing fee requirement has the potential to bar litigants with legitimate claims from the courts. The tax at issue in *Christie*, on the evidence and arguments adduced, was not shown to have a similar impact.

[42] Nor does the argument that legislatures generally have the right to determine the cost of government services undermine the proposition that laws cannot prevent citizens from accessing the superior courts. (Indeed, the Attorney General does not assert such a proposition.) The right of the province to impose hearing fees is limited by constitutional constraints. In defining those constraints, the Court does not impermissibly venture into territory that is the exclusive turf of the legislature. Rather, the Court is ensuring that the Constitution is respected.

[43] I conclude that s. 92(14), read in the context of the Constitution as a whole, does not give the provinces the power to administer justice in a way that denies the right of Canadians to access courts of superior jurisdiction. Any attempt to do so will run afoul of the constitutional protection for the superior courts found in s. 96.

C. *When Do Hearing Fees Become Unconstitutional?*

[44] The remaining question is how to determine when hearing fees deny access to superior courts.

[45] Litigants with ample resources will not be denied access to the superior courts by hearing fees. Even litigants with modest resources are often capable of arranging their finances so that, with reasonable sacrifices, they may access the courts. However, when hearing fees deprive litigants of access to the superior courts, they infringe the basic right of citizens to bring their cases to court. That point is reached when the hearing fees in question cause undue hardship to the litigant who seeks the adjudication of the superior court.

[46] A hearing fee scheme that does not exempt impoverished people clearly oversteps the constitutional minimum — as tacitly recognized by the exemption in the B.C. scheme at issue here. But providing exemptions only to the truly impoverished may set the access bar too high. A fee that is so high that it requires litigants who are not impoverished to sacrifice reasonable expenses in order to bring a claim may, absent adequate exemptions, be unconstitutional because it subjects litigants to undue hardship, thereby effectively preventing access to the courts.

[47] Of course, hearing fees that prevent litigants from bringing frivolous or vexatious claims do not offend the Constitution. There is no constitutional right to bring frivolous or vexatious cases, and measures that deter such cases may actually increase efficiency and overall access to justice.

[48] It is the role of the provincial legislatures to devise a constitutionally compliant hearing fee scheme. But as a general rule, hearing fees must be coupled with an exemption that allows judges to waive the fees for people who cannot, by reason of their financial situation, bring non-frivolous or non-vexatious litigation to court. A hearing fee scheme can include an exemption for the truly impoverished, but the hearing fees must be set at an amount such that anyone who is not impoverished can afford them. Higher fees must be coupled with enough judicial discretion to waive hearing fees in any case where they would effectively prevent access to the courts because they require litigants to forgo reasonable expenses in order to bring claims. This is in keeping with a long tradition in the common law of providing exemptions for classes of people who might be prevented from accessing the courts — a tradition that goes back to the *Statute of Henry VII*, 11 Hen. 7, c. 12, of 1495, which provided relief for people who could not afford court fees.

D. *Application to Hearing Fee at Issue*

[49] To recap, provinces may impose hearing fees as part of the administration of justice. However, this power does not extend to hearing fees that effectively prevent litigants from accessing the courts because they cannot afford the fees.

[50] On the findings of the trial judge, the hearing fee scheme at issue in this case places an undue hardship on litigants and impedes the right of British Columbians to bring legitimate cases to court.

[51] The trial judge held that the primary purpose of the hearing fee scheme is to provide an incentive for efficient use of court time and a disincentive for lengthy and inefficient trials (para. 309). The secondary purpose of the scheme is to provide sufficient revenue to offset the costs of providing civil justice in Provincial Court Small Claims matters, Supreme Court civil claims, and Supreme Court family

claims (paras. 302-7). To put it in other words, the Province's aim is to establish a revenue-neutral trial service.

[52] The trial judge, affirmed by the Court of Appeal, found that B.C.'s hearing fees go beyond these purposes and limit access to courts for litigants who are not indigent or impoverished (and therefore who do not fall under the exemption provision), but for whom the hearing fees are nonetheless unaffordable. This is supported by the evidence. At trial, the appellants filed a report by economist Robert Carson, who used a "Market Basket Measure" ("MBM") developed in 2003 by Human Resources Development Canada to measure poverty. Assuming that the test for the indigency exemption was based on an MBM measure of poverty, he concluded that a significant percentage of the population would not be exempted from hearing fees (because their income is above MBM), but would nonetheless have great difficulty affording the hearing fees for a 10-day trial, like the one in this case, because the fees would equal or exceed any income in excess of MBM. In other words, the effect of the fees is unconstitutional, because for many litigants, bringing a claim would require

[55] Indeed, the effect of B.C.'s hearing fee scheme is illustrated in this case. Ms. Vilardell is not "impoverished", and is therefore not caught by the exemption provision. However, the fee for Ms. Vilardell's 10-day trial amounted to her family's net monthly income. This was on top of $23,000 already spent on lawyer fees. She could not afford the fee. That the fee arbitrarily was imposed only on Ms. Vilardell and escalated with the length of the trial — even though she did not control the length of the trial — worsened her situation.

[56] The Province argues that the exemption provision for impoverished litigants should be interpreted broadly to allow a judge to waive the hearing fees in appropriate cases, thereby avoiding the potentially unconstitutional impact of the scheme. I cannot accept this submission.

[57] The current exemption, cited above, provides an exemption for people receiving benefits under the *Employment and Assistance Act*, S.B.C. 2002, c. 40, and the *Employment and Assistance for Persons with Disabilities Act*, S.B.C. 2002, c. 41, or for persons who are "otherwise impoverished". The exemption in place at the time of the trial provided that a judge could waive all fees for a person who is "indigent". I conclude that these exemptions do not provide sufficient discretion to the trial judge to exempt litigants from having to pay hearing fees in appropriate circumstances.

[58] I agree with the view of the trial judge that the plain meaning of the words "impoverished" and "indigent" does not cover people of modest means who are nonetheless prevented from having a trial because of the hearing fees:

> The AGBC . . . reconciles the principle that the courts are meant to be accessible by pointing to the indigency exemption. It is clear, however, that if indigency is not redefined to include those who would otherwise be described as middle class, many will be forced to forego the assertion of their rights and interests in a courtroom for lack of money. I again note that in this particular case the cost of hearing fees for 10 days approached the net income of the family for a month.
>
> . . .
>
> . . . The AGBC's answer dares the courts to redefine indigency — while maintaining the label — in a manner that would bring the whole exercise into disrepute. The courts simply do not engage in calling things what they are not, and could not be enlisted into an executive function by administering a more general form of means test to those who come before them, without compromising the appearance of independence, and the fact of equality before the law, as the TLABC has noted: see para. 180 herein. The "indigency" remedy does not cure this obvious impediment to access to justice. [paras. 396 and 398]

[59] Like the trial judge, I am of the view that the courts must read "impoverished" in its ordinary sense. A judge may waive fees for the very poor, and no one else. As the trial judge noted, while a person who cannot afford a fee of $100 or $200 may properly be described as "indigent" or "impoverished", it is awkward to use these terms to describe a middle class family's inability to pay a fee that amounts to a month's net salary. As the trial judge found, there "may be something at odds between the indigency test and the level of the fees" (para. 26).

[60] Other objections to the exemption provision can be raised. Litigants are required to come before the court, explain why they are indigent and beg the court to publicly acknowledge this status and excuse the payment of fees. This is arguably an affront to dignity and imposes a significant burden on the potential litigant of adducing proof of impoverishment — a burden she may be unable or unwilling to assume. This burden may further hamper access to the court. In clear cases of impoverishment, the task may be relatively straightforward. However, if "impoverished" were extended to the large group of additional people that the evidence indicates is prevented from going to court because of the current hearing fees, the task might be much more complex. In such circumstances, there is a practical concern the exemption application itself may contribute to hardship.

[61] The contention that this hearing fee regime promotes proportionality and efficiency by weeding out unmeritorious cases and encouraging shorter trials, thereby actually increasing access to the courts, does not answer the findings of the trial judge that it unconstitutionally prevents access to the courts. Moreover, the trial judge held that it is "dubious" that the hearing fees at issue here increase efficacy and fairness (para. 310). They penalize long trials simply because they are long, and do so by incremental leaps. But long trials are not necessarily inefficient. Prolonged trials may be caused by the nature of the case or the evidence. Litigants in long but efficient trials ought not to be penalized by hearing fees — particularly fees that escalate with the length of the trial.

[62] Moreover, the plaintiff who is required to pay the hearing fee may not control the length or efficiency of the trial — the defendant may be responsible for prolonging the matter. The ability of the trial judge to make orders for costs against such a defendant does not address the real problem — before being able to set a matter down for trial the plaintiff must undertake to pay hearing fees that may escalate through no fault of her own. If she cannot afford the prospective fees, she may reasonably conclude that she cannot bring her dispute to the court.

[63] Most fundamentally, unlike cost awards, the imposition of the hearing fees at issue are not dependent on efficiency or the merit of one's claim. The hearing fees imposed by this scheme escalate to $800 per day after 10 days of trial — the highest price tag in the country — without any relationship to the efficiency of the proceeding. These hearing fees do not promote efficient use of court time; at best they promote *less* use of court time.

[64] I conclude that the hearing fee scheme prevents access to the courts in a manner inconsistent with s. 96 of the *Constitution Act, 1867* and the underlying principle of the rule of law. It therefore falls outside the Province's jurisdiction under s. 92(14) to administer justice.

VI. What Is the Appropriate Remedy?

[65] This leaves the question of the appropriate remedy. The trial judge struck down the scheme as unconstitutional. The Court of Appeal preferred the remedy of "reading in" the words "or in need" into the exemption provision.

[66] "Reading in" is a remedy sparingly used, and available only where it is clear that the legislature, faced with a ruling of unconstitutionality, would have made the change proposed: *Schachter v. Canada*, 1992 CanLII 74 (SCC), [1992] 2 S.C.R. 679. I am not satisfied that this condition is met here. The legislature or Lieutenant Governor in Council has a number of options, from abandoning or

modifying the hearing fee to changing the exemption provision. Moreover, any expansion of the exemption provision will be at odds with the legislative objective of deterring use of the courts. "Reading in" to cure the constitutional defect of the hearing fee scheme would defeat the purpose of the legislation.

[67] I would also note that modifying the exemption as suggested by the Court of Appeal might still not cure the problem; it is not clear that the term "or in need" will cover all litigants who cannot afford the hearing fee and other provisions might be required in order to avoid the onerous or undignified process of proving that one falls within the exception.

[68] The proper remedy is to declare the hearing fee scheme as it stands unconstitutional and leave it to the legislature or the Lieutenant Governor in Council to enact new provisions, should they choose to do so.

VII. Conclusion

[69] The appeal is allowed and the cross-appeal is dismissed, both without costs. I would affirm the declaration of unconstitutionality of the trial judge and set aside the order of the Court of Appeal expanding the exemption provision. Ms. Vilardell is excused from paying the hearing fee.

11 Section 101 Courts: The Federal Courts and The Supreme Court of Canada

Under s.101 of the *Constitution Act, 1867*, Parliament has power to "…provide for…the Establishment of any additional Courts for the better administration of the Laws of Canada." Under this provision, Parliament created the Federal Court and Federal Court of Appeal. Previously enabled by the *Supreme and Exchequer Court Act*, and now the *Federal Courts Act*, the Federal Court has jurisdiction over matters falling within classes of subjects in s.91 of the *Constitution Act, 1867*. Unlike the superior courts of inherent jurisdiction, the Federal Court is a statutory court, meaning its powers derive exclusively from the statute enabling it.

The place of the Federal Courts in the constitutional pattern is somewhat unclear. On the one hand, the Federal Courts are not superior courts, and from that perspective, do not have the same constitutional footing as the provincial superior courts. On the other hand, the principles of judicial independence and the rule of law might bolster the place of the Federal Courts, enabled by s.101 of the *Constitution Act, 1867*.

In the next case, the Supreme Court of Canada interpreted the Federal Court's jurisdiction rather narrowly to protect the constitutional position of the superior courts.

12 *Windsor (City) v Canadian Transit Co*, 2016 SCC 54

KARAKATSANIS J

[1] The Canadian Transit Company owns and operates the Canadian half of the Ambassador Bridge connecting Windsor, Ontario, and Detroit, Michigan. Over the past decade the Company has purchased more than 100 residential properties in Windsor with the intention of eventually demolishing the homes and using the land to facilitate maintenance and expansion of the bridge and its facilities. Most of the homes are now vacant and, according to the City of Windsor, in varying states of disrepair. The City regards them as a blight on the Olde Sandwich Towne neighbourhood and, pursuant to its by-laws, has issued more than 100 repair orders against the properties.

[2] The Company has not complied with the repair orders, claiming that the Ambassador Bridge is a federal undertaking and the City's by-laws and repair orders cannot constitutionally apply to it. The parties have been engaged in proceedings relating to those repair orders in the Ontario Superior Court of Justice. The Company has also sought a number of declarations from the Federal Court.

[3] This appeal deals only with the preliminary issue of whether the Federal Court has jurisdiction to decide whether the Company must comply with the City's by-laws and repair orders. The City says only the Ontario Superior Court of Justice has jurisdiction to settle the issue.

[4] I agree with the City: the Federal Court does not have jurisdiction to decide whether the City's by-laws apply to the Company's residential properties. Rather, the issue must be decided by the Ontario Superior Court of Justice. I would allow the appeal.

…

III. Statutory Provisions

[14] The Federal Court was established by Parliament under s. 101 of the *Constitution Act, 1867*, which provides as follows:

> **101.** The Parliament of Canada may, notwithstanding anything in this Act, from Time to Time provide for the Constitution, Maintenance, and Organization of a General Court of Appeal for Canada, and for the Establishment of any additional Courts for the better Administration of the Laws of Canada.

[15] Pursuant to this constitutional authority, Parliament created the Federal Court "for the better Administration of the Laws of Canada" in 1971 (*Federal Court Act*, R.S.C. 1970, c. 10 (2nd Supp.)). Federal court jurisdiction is now governed by the *Federal Courts Act*, R.S.C. 1985, c. F-7.

[16] The provision at the heart of this appeal is s. 23(c) of the *Federal Courts Act*, on which the Company relies to establish the jurisdiction of the Federal Court:

> **23** Except to the extent that jurisdiction has been otherwise specially assigned, the Federal Court has concurrent original jurisdiction, between subject and subject as well as otherwise, in all cases in which a claim for relief is made or a remedy is sought under an Act of Parliament or otherwise in relation to any matter coming within any of the following classes of subjects:
>
> . . .
>
> **(c)** works and undertakings connecting a province with any other province or extending beyond the limits of a province.

[17] The *Federal Courts Act* defines "relief" to include "every species of relief, whether by way of damages, payment of money, injunction, declaration, restitution of an incorporeal right, return of land or chattels or otherwise" (s. 2).

…

V. Analysis

[24] The sole issue is whether the Federal Court has jurisdiction under the *ITO* test to hear the Company's application. If it is plain and obvious that the Federal Court lacks jurisdiction to hear this application, the motion to strike must succeed (*Hodgson v. Ermineskin Indian Band* (2000), 2000 CanLII 15066 (FC) , 180 F.T.R. 285). First, I identify the essential nature of the Company's claim. I then

review the role and jurisdiction of the Federal Court before applying the *ITO* test for jurisdiction. Given my conclusion that the Federal Court does not have jurisdiction to hear this matter, it is unnecessary to address the issue of whether the court should decline to exercise jurisdiction.

A. *Essential Nature of the Company's Claim*

[25] In order to decide whether the Federal Court has jurisdiction over a claim, it is necessary to determine the essential nature or character of that claim (*JP Morgan Asset Management (Canada) Inc. v. Canada (National Revenue)*, 2013 FCA 250 , [2014] 2 F.C.R. 557, at para. 50; *Sifto Canada Corp. v. Minister of National Revenue*, 2014 FCA 140 , 461 N.R. 184, at para. 25). As discussed in further detail below, s. 23(c) of the *Federal Courts Act* only grants jurisdiction to the Federal Court when a claim for relief has been made, or a remedy has been sought, "under an Act of Parliament or otherwise". The conferral of jurisdiction depends on the nature of the claim or remedy sought. Determining the claim's essential nature allows the court to assess whether it falls within the scope of s. 23(c). Jurisdiction is not assessed in a piecemeal or issue-by-issue fashion.

[26] The essential nature of the claim must be determined on "a realistic appreciation of the practical result sought by the claimant" (*Domtar Inc. v. Canada (Attorney General)*, 2009 FCA 218 , 392 N.R. 200, at para. 28, per Sharlow J.A.). The "statement of claim is not to be blindly read at its face meaning" (*Roitman v. Canada*, 2006 FCA 266 , 353 N.R. 75, at para. 16, per Décary J.A.). Rather, the court must "look beyond the words used, the facts alleged and the remedy sought and ensure . . . that the statement of claim is not a disguised attempt to reach before the Federal Court a result otherwise unreachable in that Court" (*ibid.*; see also *Canadian Pacific Railway v. R.*, 2013 FC 161, [2014] 1 C.T.C. 223, at para. 36; *Verdicchio v. R.*, 2010 FC 117 , [2010] 3 C.T.C. 80, at para. 24).

[27] On the other hand, genuine strategic choices should not be maligned as artful pleading. The question is whether the court has jurisdiction over the particular claim the claimant has chosen to bring, not a similar claim the respondent says the claimant really ought, for one reason or another, to have brought.

[28] In its pleadings at the Federal Court, the Company seeks the following relief:

> 1. A declaration that the Ambassador Bridge, including its approaches, terminal facilities, machinery and appurtenances, is a federal undertaking;
>
> 2. A declaration that the applicant The Canadian Transit Company ("CTC") has, pursuant to its enabling legislation, *An Act to incorporate The Canadian Transit Company*, 11-12 George V., 1921, c. 57, as amended (the "CTC Act"):
>
> (a) the right to purchase, lease or otherwise acquire and hold lands for the Ambassador Bridge and its terminal yards, including its accommodation works and facilities, as CTC thinks necessary in its discretion;
>
> (b) the right to expropriate and take an easement in, over, under or through any lands without the necessity of acquiring a title in fee simple thereto; and
>
> (c) an obligation, as set out in By-Law Number 1606 of The Town of Sandwich ("Sandwich By-Law"), to keep and maintain the Ambassador Bridge and all works connected therewith in good order and condition and of sufficient strength and capacity at all times to sustain and protect such machinery and structures and also the vehicles and traffic that may be carried or allowed thereon;
>
> 3. A declaration that, pursuant to paragraphs 1 and 2 above, the Corporation of the City of Windsor By-Law Number 147-2011, titled a By-Law to Establish Standards for the Maintenance and Occupancy of All Property in the City of Windsor and to Repeal By-Law 156-2005 (the "By- Law"), does not apply to properties purchased, leased or otherwise acquired and held by CTC pursuant to its enabling legislation;
>
> 4. A declaration that certain properties purchased by CTC which are immediately west of and/or adjacent to the Ambassador Bridge (the "Properties") are necessary for the continued operation and maintenance of the Ambassador Bridge;
>
> (A.R., vol. I, at pp. 47-48)

[29] Although the Company has tied each of these declarations to the *CTC Act*, the main federal legislation involved, it is clear that what the Company ultimately seeks is immunity from the requirements of the By-law. The third declaration — that the By-law does not apply to the properties — is the essence of the Company's claim. There has been no suggestion by the Company that the other declarations — that the Ambassador Bridge is a federal undertaking, that the Company enjoys certain rights under the *CTC Act*, and that the properties are necessary for the continued operation of the bridge — would be worthwhile pursuing in the absence of the third declaration. Adopting "a realistic appreciation of the practical result sought by the claimant" (*Domtar*, at para. 28), the real issue is whether the Company's rights under the *CTC Act* are subject to the By-law. The first, second and fourth declarations sought by the Company are valuable to the Company only to the extent they help it establish, by the doctrines of interjurisdictional immunity or paramountcy, that the By-law is inapplicable or inoperative against the Company. In essence, the Company's claim is simply that it is not required to comply with the By-law and repair the properties as the City has ordered.

[30] Stated generally, the issue is whether the Federal Court has jurisdiction to decide a claim that a municipal by-law is constitutionally inapplicable or inoperative in relation to a federal undertaking.

B. *Overview of the Role and Jurisdiction of the Federal Court*

[31] The role and jurisdiction of the Federal Court appear most clearly when seen through the lens of the judicature provisions of the *Constitution Act, 1867*. Section 96 recognized the superior courts of general jurisdiction which already existed in each province at the time of Confederation. Section 101 empowered Parliament to establish "additional Courts for the better Administration of the Laws of Canada" — i.e., to establish new courts to administer federal law (*R. v. Thomas Fuller Construction Co. (1958) Ltd.*, 1979 CanLII 187 (SCC), [1980] 1 S.C.R. 695, at p. 707; *Quebec North Shore Paper Co. v. Canadian Pacific Ltd.*, 1976 CanLII 10 (SCC), [1977] 2 S.C.R. 1054 , at pp. 1065-66; *Consolidated Distilleries, Ltd. v. The King*, 1933 CanLII 316 (UK JCPC), [1933] A.C. 508 (P.C.), at pp. 520-22). Parliament exercised this power in 1875 when it enacted legislation creating the Exchequer Court of Canada, which ultimately became the Federal Court of Canada (see *The Supreme and Exchequer Court Act*, S.C. 1875, c. 11). The Federal Court plays an important role in the interpretation and development of federal law in matters over which it has been granted jurisdiction.

[32] The provincial superior courts recognized by s. 96 "have always occupied a position of prime importance in the constitutional pattern of this country" (*Attorney General of Canada v. Law Society of British Columbia*, 1982 CanLII 29 (SCC), [1982] 2 S.C.R. 307, at p. 327, per Estey J.). Provincially administered (s. 92(14)) and federally appointed (ss. 96 and 100), they weave together provincial and federal concerns and act as a strong unifying force within our federation. As courts of general jurisdiction, the superior courts have jurisdiction in all cases except where jurisdiction has been *removed* by statute (*Québec Téléphone v. Bell Telephone Co. of Canada*, 1971 CanLII 160 (SCC), [1972] S.C.R. 182, at p. 190). The inherent jurisdiction of the superior courts can be constrained by legislation, but s. 96 of the *Constitution Act, 1867* protects the essential nature and powers of the provincial superior courts from legislative incursion (*Ontario v. Criminal Lawyers' Association of Ontario*, 2013 SCC 43 , [2013] 3 S.C.R. 3, at para. 18; *MacMillan Bloedel Ltd. v. Simpson*, 1995 CanLII 57 (SCC) , [1995] 4 S.C.R. 725 , at para. 15).

[33] The Federal Court, by contrast, has only the jurisdiction it has been *conferred* by statute.[1] It is a statutory court, created under the constitutional authority of s. 101, without inherent jurisdiction. While the Federal Court plays a critical role in our judicial system, its jurisdiction is not constitutionally protected in the same way as that of a s. 96 court. It can act only within the constitutional boundaries of s. 101 and the confines of its statutory powers.[2] As this Court noted in *Roberts v. Canada*, 1989 CanLII 122 (SCC), [1989] 1 S.C.R. 322, at p. 331, "[b]ecause the Federal Court is without any inherent jurisdiction such as that existing in provincial superior courts, the language of the [*Federal Court Act*] is completely determinative of the scope of the Court's jurisdiction."

C. *The ITO Test for Jurisdiction*

[34] This Court held in *ITO* that a statutory grant of jurisdiction is necessary, but not alone sufficient, for the Federal Court to have jurisdiction in a given case. Because Parliament established the Federal Court pursuant to its competence, under s. 101 of the *Constitution Act, 1867*, to establish "additional Courts for the better Administration of the Laws of Canada", the role of the Federal Court is constitutionally limited to administering "the Laws of Canada", which in this context means federal law (*Thomas Fuller*, at p. 707; *Quebec North Shore*, at pp. 1065-66; *Consolidated Distilleries*, at pp. 521-22). The three-part *ITO* test for jurisdiction is designed to ensure the Federal Court does not overstep this limited role (*ITO*, at p. 766, per McIntyre J.):

1. There must be a statutory grant of jurisdiction by the federal Parliament.

2. There must be an existing body of federal law which is essential to the disposition of the case and which nourishes the statutory grant of jurisdiction.

3. The law on which the case is based must be "a law of Canada" as the phrase is used in s. 101 of the *Constitution Act, 1867*.

[35] The first part of this test addresses the specific statutory grant of jurisdiction. There is a certain degree of overlap between the second and third aspects of this test, which both address the need to stay within the constitutional limits of s. 101.

D. *ITO Part 1: Statutory Grant of Jurisdiction*

[36] The first part of the *ITO* test requires that a federal statute grant jurisdiction to the Federal Court.

[37] The Federal Court of Appeal found, and the Company submits, that s. 23(c) of the *Federal Courts Act* grants jurisdiction over the Company's application. I cannot agree.

[38] Once again, s. 23(c) reads as follows:

> **23** Except to the extent that jurisdiction has been otherwise specially assigned, the Federal Court has concurrent original jurisdiction, between subject and subject as well as otherwise, in all cases in which a claim for relief is made or a remedy is sought under an Act of Parliament or otherwise in relation to any matter coming within any of the following classes of subjects:
>
> . . .
>
> **(c)** works and undertakings connecting a province with any other province or extending beyond the limits of a province.

[39] As the text of the provision indicates, s. 23(c) grants jurisdiction to the Federal Court only when three criteria are met:

(1) jurisdiction must not have been "specially assigned" to another court;

(2) the claim for relief must be made, or the remedy must be sought, "under an Act of Parliament or otherwise"; and,

(3) the claim for relief must be made, or the remedy must be sought, "in relation to" a work or undertaking connecting a province with any other province or extending beyond the limits of a province.

[40] Only the second criterion is at issue in this appeal. In *Quebec North Shore*, this Court interpreted the phrase "under an Act of the Parliament of Canada or otherwise" (as it read then) to mean under "federal law, whether under statute or regulation or common law" and concluded "[s]ection 23 requires that the claim for relief be one sought under such law" (p. 1066 (emphasis added)). Laskin C.J. reasoned that provisions of the *Federal Court Act* which confer jurisdiction on the Federal Court should not be interpreted as unconstitutionally exceeding Parliament's competence under s. 101 of the *Constitution Act, 1867* to establish courts for the better administration of federal law (pp. 1057-58).

[41] *Quebec North Shore* makes clear that s. 23 grants jurisdiction to the Federal Court only when the claimant is seeking relief under federal law. As I read *Quebec North Shore*, the implication is that the claimant's *cause of action*, or the right to seek relief, must be created or recognized by a federal statute, a federal regulation or a rule of the common law dealing with a subject matter of federal legislative competence. This is what it means to seek relief "under" federal law in s. 23.

[42] In *Roberts*, for example, Wilson J. offered this paraphrase of *Quebec North Shore*: ". . . the cause of action must be founded 'on some existing federal law, whether statute or regulation or common law'" (p. 339, quoting *Quebec North Shore*, at p. 1066 (emphasis added)). If the claimant's cause of action or right to seek relief is not created or recognized by federal law, s. 23 does not confer jurisdiction on the Federal Court.

[43] Thus, in *Quebec North Shore* itself, s. 23 did not confer jurisdiction: although the claimants were seeking relief in relation to an extra-provincial undertaking, the claimants were not seeking relief under federal law. Rather, the claimants were seeking relief under the Quebec law of contract. Similarly, in *Norrail Transport Inc. v. Canadian Pacific Ltd.* (1998), 1998 CanLII 7641 (FC), 154 F.T.R. 161, which also involved an extra-provincial undertaking, s. 23 did not confer jurisdiction because the causes of action were in the Quebec law of contract and the Quebec law of fault.

[44] By contrast, s. 23 did confer jurisdiction in *Prudential Assurance Co. v. Canada*, 1993 CanLII 2948 (FCA), [1993] 2 F.C. 293 (C.A.), which was a claim for damages brought under the federal *Carriage by Air Act*, R.S.C. 1985, c. C-26. *Bensol Customs Brokers Ltd. v. Air Canada*, 1979 CanLII 4235 (FCA), [1979] 2 F.C. 575 (C.A.), was another claim for damages under the federal *Carriage by Air Act* in which s. 23 was held to confer jurisdiction. The claimants in that case brought a tort claim as well; however, the majority of the Federal Court of Appeal held that s. 23 did not confer jurisdiction over the tort claim.

[45] The Federal Court of Appeal in this case did not consider whether the Company was seeking relief under federal law, nor did it refer to *Quebec North Shore*. The court's paraphrase of s. 23(c) — that it empowers a party to seek a declaration in relation to works and undertakings connecting a province with any other province or extending beyond the limits of a province (para. 27) — suggests it is sufficient if the subject matter of the litigation is an extra-provincial undertaking. This paraphrase does not acknowledge or give any meaning to the requirement that relief be sought "under an Act of Parliament or otherwise".

[46] This phrase cannot be ignored or rendered superfluous. Section 23(c) confers jurisdiction "in all cases in which a claim for relief is made or a remedy is sought under an Act of Parliament or otherwise in relation to [an extra-provincial undertaking]". If Parliament had intended the Federal Court to have jurisdiction whenever relief is sought in relation to an extra-provincial undertaking, *whether or not that relief*

is sought under federal law, it would not have added the qualifier that the relief must be sought "under an Act of Parliament or otherwise". The explicit language of s. 23 requires that the relief be sought under — and not merely in relation to — federal law. This is even clearer in the French version of s. 23, which requires relief to be sought "*sous le régime d'une loi fédérale ou d'une autre règle de droit*".

[47] The Federal Court of Appeal stated that a broad scope of Federal Court jurisdiction would promote consistency across the country in the interpretation of federal law. However, such an objective does not justify departing from the explicit language of s. 23. I also note that concerns about consistency can cut both ways. The jurisdiction s. 23 confers on the Federal Court is concurrent with the provincial superior courts. Even if this Court accepted that s. 23 granted the Federal Court jurisdiction in cases like this one, litigants could choose to bring their claim in a superior court rather than the Federal Court.

[48] Requiring the right to seek relief to arise directly from federal law brings clarity to the scope of the Federal Court's concurrent jurisdiction. Giving effect to the explicit wording of s. 23 minimizes jurisdictional disputes by ensuring that litigants know the scope of the Federal Court's jurisdiction in advance. This will avoid unnecessary litigation, including disputes about whether the court should decline to exercise jurisdiction even if it has jurisdiction to hear the matter.

[49] In its written submissions, the Company said it was seeking relief "in relation to" the *CTC Act*. In response to a question asked during oral argument, the Company submitted it is seeking relief under s. 23(c) itself, or alternatively under the *CTC Act*.

[50] The Company stresses that the *Federal Courts Act* defines "relief" to include declarations. In the Company's submission, this definition means that s. 23(c) gives parties the right to apply to the Federal Court for declarations about extra-provincial undertakings.

[51] This argument cannot be sustained. A definition simply provides the meaning for a term used in the legislation. If Parliament had spelled out the full definition of the defined term "relief" — "every species of relief, whether by way of damages, payment of money, injunction, declaration, restitution of an incorporeal right, return of land or chattels or otherwise" — in s. 23, it would not change the meaning of the words of the provision.

[52] Effect must still be given to the words "is sought under an Act of Parliament or otherwise" in s. 23. Had Parliament intended the *Federal Courts Act* to grant jurisdiction to the Federal Court to provide any relief (as defined broadly) in relation to the classes of subjects enumerated in s. 23, it would simply have said so. It would be circular to reason that s. 23 is self-referential: it is not itself a federal law under which the Company can seek relief, however "relief" is defined. Rather, as Shore J. found at first instance, s. 23 confers on the Federal Court jurisdiction over certain claims, including certain claims for declarations, but does not confer on *parties* the right to make those claims in the first place. For that right, parties must look to other federal law.

[53] *Prudential Assurance*, for example, was a claim brought under the *Carriage by Air Act*, which creates a cause of action against air carriers for damage to baggage and cargo. The type of relief the plaintiffs were seeking was damages, which, like declarations, falls within the definition of "relief" in the *Federal Court Act*, but nothing in the jurisdictional analysis turned on the type of relief the plaintiffs were seeking. What mattered was that the plaintiffs were seeking relief under federal law: the cause of action was created by the federal *Carriage by Air Act*. It was the federal *Carriage by Air Act* which gave the plaintiffs the right to seek damages from the carrier.

[54] Other federal causes of action that might satisfy s. 23 include the *Radiocommunication Act*, R.S.C. 1985, c. R-2, s. 18(1) (a person who has suffered a loss as a result of conduct contrary to certain sections of the Act may, "in any court of competent jurisdiction, sue for and recover damages from the person who engaged in the conduct"), and the *Canada Transportation Act*, S.C. 1996, c. 10, s. 116(5) (a person "aggrieved by any neglect or refusal of a company to fulfil its service obligations has . . . an action for the neglect or refusal against the company").

[55] When a party seeks relief under provisions such as these, s. 23 may grant jurisdiction to the Federal Court, assuming the other requirements of s. 23 are met. But a person cannot seek relief under s. 23 itself. It does not create any right of action. It merely confers on the Federal Court jurisdiction to provide relief that a person can otherwise seek "under an Act of Parliament or otherwise".

[56] The Company further submits that *Strickland v. Canada (Attorney General)*, 2015 SCC 37, [2015] 2 S.C.R. 713, which dealt with a similar provision of the *Federal Courts Act*, requires that s. 23 be read as conferring a right to seek relief. But *Strickland* was argued on the *assumption* that s. 18 of the *Federal Courts Act* conferred on the claimants the right to seek a declaration that certain federal regulations were invalid. (Section 18 confers exclusive jurisdiction on the Federal Court "to issue an injunction, writ of *certiorari*, writ of prohibition, writ of *mandamus* or writ of *quo warranto*, or grant declaratory relief, against any federal board, commission or other tribunal".) Cromwell J. expressly stated that he was not endorsing the parties' assumption that s. 18 conferred on the claimants the right to seek the declaration they were seeking (para. 6). The issue in *Strickland* was whether, *assuming* the Federal Court had jurisdiction to make the declaration, it could decline to make the declaration on the ground that it would be more appropriate for the claim to be heard in a provincial superior court. In short, *Strickland* concerned only the scope of the Federal Court's remedial discretion, not the interpretation of s. 18 — let alone the interpretation of s. 23.

[57] The Company's alternative submission, that it is seeking relief under the *CTC Act*, is similarly unpersuasive. Although the *CTC Act* confers certain rights and powers (and imposes certain responsibilities) on the Company, it does not give the Company any kind of right of action or right to seek the relief sought.

[58] The essence of the Company's position is that the By-law is inapplicable by the doctrine of interjurisdictional immunity or inoperative by the doctrine of paramountcy. The Company is seeking relief under constitutional law, because it is constitutional law which confers on parties the right to seek a declaration that a law is inapplicable or inoperative.

[59] A party seeking relief under constitutional law is not seeking relief "under an Act of Parliament or otherwise" within the meaning of s. 23. I agree with the City and the interveners, including the Attorney General of Canada, that constitutional law cannot be said to be federal law for the purposes of s. 23 (see also, e.g., P. W. Hogg, *Constitutional Law of Canada* (5th ed. Supp.), at p. 7-27; B. J. Saunders, D. J. Rennie and G. Garton, *Federal Courts Practice 2014* (2013), at p. 9).

[60] The Federal Court of Appeal effectively concluded otherwise in its discussion of the additional issue that court raised, namely whether the Federal Court has the power to make constitutional declarations. The court suggested that the Constitution is one of the "Laws of Canada" referred to in s. 101, as are the constitutional doctrines of interjurisdictional immunity and paramountcy. On this logic, these doctrines would also qualify as federal law for the purposes of s. 23.

[61] First, this conclusion is contrary to this Court's comments in *Northern Telecom Canada Ltd. v. Communication Workers of Canada*, 1983 CanLII 25 (SCC), [1983] 1 S.C.R. 733, at p. 745, per Estey J.:

> The *Constitution Act, 1867*, as amended, is not of course a "law of Canada" in the sense of the foregoing cases because it was not enacted by the Parliament of Canada. The inherent limitation placed by s. 101, *supra*, on the jurisdiction which may be granted to the Federal Court by Parliament therefore might exclude a proceeding founded on the *Constitution Act*.

This passage is not equivocal on the issue of whether the *Constitution Act, 1867* is one of the "Laws of Canada" denoted by s. 101. Although *obiter*, the comments were intended to provide guidance and should be accepted as authoritative (see *R. v. Henry*, 2005 SCC 76, [2005] 3 S.C.R. 609, at para. 57).

[62] Nor did our Constitution became one of the "Laws of Canada" after 1982. In concluding otherwise, the Federal Court of Appeal reasoned that although the enactments which together make up our Constitution were originally enacted or authorized by the Parliament of the United Kingdom, the *Canada Act 1982* (U.K.), 1982, c. 11, "patriated" our Constitution in part by providing that the *Constitution Act, 1982* "is hereby enacted for and shall have the force of law in Canada" (s. 1)[3]. The *Constitution Act, 1982* in turn empowered Canadians to amend the Constitution (ss. 38 to 49) and referred to the Constitution as the "supreme law of Canada" (s. 52). From this, the Federal Court of Appeal inferred that the enactments which together make up the Constitution became "Laws of Canada" after 1982.

[63] However, "Canada" has two distinct meanings in our Constitution. It can denote the country as a whole or the federal level within it. In section 1 of the *Canada Act 1982* and s. 52 of the *Constitution Act, 1982*, "Canada" denotes the country as a whole. As this Court has confirmed on a number of occasions, in s. 101 of the *Constitution Act, 1867*, "Canada" denotes only the federal level (*Thomas Fuller*, at p. 707; *Quebec North Shore*, at pp. 1065-66; *Consolidated Distilleries*, at pp. 520-22). Further, interpreting "Canada" in s. 101 to denote the country as a whole, such that Parliament could create additional courts of general (federal and provincial) jurisdiction, would be inconsistent with the other judicature provisions of the *Constitution Act, 1867*, which take as their "basic principle . . . the jurisdiction of the superior courts of the provinces in all matters federal and provincial" (*Thomas Fuller*, at p. 713). After the 1982 "patriation", the Constitution is certainly a law of Canada the country, as opposed to a law of the United Kingdom, but it is not one of the "Laws of Canada", the federal laws, referred to in s. 101 of the *Constitution Act, 1867*.

[64] Obviously, the doctrines of interjurisdictional immunity and paramountcy arise from s. 91 of the *Constitution Act, 1867* and can affect the force of federal legislation. However, these constitutional doctrines can also affect the force of provincial legislation. Surely constitutional law is neither federal nor provincial. The Constitution logically precedes that distinction: it is the Constitution itself that bifurcates Canadian law into federal and provincial matters.

[65] In conclusion, the Company is not seeking relief "under an Act of Parliament or otherwise" (i.e., under federal law) as required by s. 23(c) of the *Federal Courts Act*. Section 23(c) therefore does not grant jurisdiction over this application to the Federal Court and the first part of the *ITO* test is not met. There is no statutory grant of jurisdiction. This finding is dispositive: the Federal Court lacks jurisdiction in this case. There is therefore no need to consider whether the second and third parts of the *ITO* test are met in this case.

E. *ITO Part 2: Federal Law Essential to Disposition*

[66] Nonetheless, the approach taken by the Federal Court of Appeal with respect to the second part of the *ITO* test merits comment.

[67] The second part of the *ITO* test requires that federal law be "essential to the disposition of the case" such that it "nourishes the statutory grant of jurisdiction" (p. 766, per McIntyre J.). Indeed, the fact that the claim involves rights and obligations conferred by federal law will be relevant to this question. This requirement is important because it speaks to the constitutional status and role of the Federal Court under s. 101 of the *Constitution Act, 1867*.

[68] The Federal Court of Appeal concluded that this part of the test is met because "there [is] sufficient federal law for the Federal Court to have jurisdiction" (para. 32). The reasons refer to a number of articulations by the Federal Court of Appeal of this part of the *ITO* test: *Bensol Customs Brokers*, at pp. 582-83 (whether the outcome is determined "to some material extent" by federal law or the cause of action is "affected" by federal law); *The Queen v. Montreal Urban Community Transit Commission*, 1980 CanLII 4268 (FCA), [1980] 2 F.C. 151 (C.A.), at p. 153 (whether federal law "has an important part to play" in determining the outcome).

[69] These articulations of the test should not be understood to lower in any way the high threshold articulated in *ITO* itself. The fact that the Federal Court may have to consider federal law as a necessary component is not alone sufficient; federal law must be "essential to the disposition of the case". It must "nourish" the grant of jurisdiction.

…

VI. Disposition

[72] Because the *ITO* test is not met, the application is "bereft of any possibility of success" (*JP Morgan*, at para. 47, quoting *David Bull Laboratories (Canada) Inc. v. Pharmacia Inc.*, 1994 CanLII 3529 (FCA), [1995] 1 F.C. 588 (C.A.), at p. 600). It is plain and obvious that the Federal Court lacks jurisdiction to hear the application. Shore J. did not err in striking the notice of application and the Federal Court of Appeal ought not to have intervened. I would, accordingly, allow the appeal, set aside the order of the Federal Court of Appeal and reinstate the order of Shore J. striking the Company's notice of application. I would also award costs to the City in this Court and in the courts below.

The Supreme Court of Canada sits at the apex of the Canadian judicial system. But its place is not expressly protected by the text of the *Constitution Act, 1867.* However, like the Federal Courts, Parliament established the Supreme Court of Canada under s.101 of the *Constitution Act, 1867,* which gives it the power to "provide for the Constitution, Maintenance, and Organization of a General Court of Appeal for Canada…".

The *Supreme Court Act* sets out the requirements and standards for appointment to the Supreme Court of Canada. Perhaps most controversially, it provides that three of the nine judges of the Supreme Court of Canada must be appointed "from among the judges of the Court of Appeal or of the Superior Court of the Province of Quebec or from among the advocates of that Province" (see *Supreme Court Act*, s.6). This provision exists because the Supreme Court hears appeals on cases involving Quebec civil law.

In 2013, then-Prime Minister Harper announced the nomination of Federal Court of Appeal Justice Marc Nadon to the Supreme Court of Canada. The question was whether the Justice Nadon could be appointed to the Supreme Court, considering he was not strictly "among the advocates" of the Province of Quebec at the time of his appointment.

In concluding that Justice Nadon was not eligible for appointment, the Supreme Court of Canada reasoned that the place of the Supreme Court in Canada's constitutional pattern is protected, even though the Supreme Court—like the Federal Courts—were established by ordinary statute. It did so even in the face of a subsequent amendment to the *Supreme Court Act* which stipulated that former advocates in the province of Quebec would be eligible for appointment to the Supreme Court.

13 *Reference re Supreme Court Act, ss. 5 and 6*, 2014 SCC 21

THE CHIEF JUSTICE AND LEBEL, ABELLA, CROMWELL, KARAKATSANIS AND WAGNER JJ. —

I. Introduction

[1] The *Supreme Court Act* provides that three of the nine judges of the Supreme Court of Canada must be appointed "from among the judges of the Court of Appeal or of the Superior Court of the Province of Quebec or from among the advocates of that Province": R.S.C. 1985, c. S-26, s. 6. This reference seeks our opinion on two aspects of the eligibility requirements for appointment to these three Quebec seats.

[2] The first is whether a person who was at any time an advocate of at least 10 years standing at the Barreau du Québec qualifies for appointment under s. 6 as being "from among the advocates of that Province". If the answer to the first question is no, the second question arises. It is whether Parliament can enact legislation to make such a person eligible for appointment to one of the three Quebec seats on the Court. The answer to these questions — which on their face raise issues of statutory interpretation — engage more fundamental issues about the composition of the Court and its place in Canada's legal and constitutional order.

[3] These questions arise in the context of the appointment under s. 6 of the Honourable Marc Nadon, a supernumerary judge of the Federal Court of Appeal and formerly, but not at the time of this appointment, a member of the Quebec bar of more than 10 years standing. Justice Nadon was not a judge of the Court of Appeal or the Superior Court of the Province of Quebec and therefore was not eligible for appointment on that basis. The narrow question is thus whether he was eligible for appointment because he had previously been a member of the Quebec bar.

[4] In our view, the answer to this question is no: a current judge of the Federal Court of Appeal is not eligible for appointment under s. 6 as a person who may be appointed "from among the advocates of that Province". This language requires that, at the time of appointment, the appointee be a current member of the Quebec bar with at least 10 years standing.

[5] On the question of whether Parliament can enact legislation purporting to declare a binding interpretation of s. 6 and thereby permit the appointment of a former member of the bar to one of the Quebec positions on the Court, our view is that the answer is also no. The eligibility requirements set out in s. 6 relate to the composition of the Court and are, therefore, constitutionally protected. Under s. 41(*d*) of the *Constitution Act, 1982*, any amendment in relation to the composition of the Supreme Court of Canada may only be made by proclamation issued by the Governor General under the Great Seal of Canada authorized by resolutions of the Senate and House of Commons and of the legislative assembly of each province.

[6] The practical effect is that the appointment of Justice Nadon and his swearing-in as a judge of the Court were void *ab initio*. He remains a supernumerary judge of the Federal Court of Appeal.

…

[72] In light of our conclusion that appointments to the Court under s. 6 require current membership of the Barreau du Québec or of the Court of Appeal or Superior Court of Quebec, in addition to the criteria set out in s. 5, it is necessary to consider the second question, which is whether Parliament can enact declaratory legislation that would alter the composition of the Supreme Court of Canada.

[73] The Attorney General of Canada argues that the eligibility requirements for appointments under s. 6 have not been entrenched in the Constitution, and that Parliament retains the plenary power under s. 101 of the *Constitution Act, 1867* to unilaterally amend the eligibility criteria under ss. 5 and 6.

[74] We disagree. Parliament cannot unilaterally change the composition of the Supreme Court of Canada. Essential features of the Court are constitutionally protected under Part V of the *Constitution Act, 1982*. Changes to the composition of the Court can only be made under the procedure provided for in s. 41[1] of the *Constitution Act, 1982* and therefore require the unanimous consent of Parliament and the provincial legislatures. Changes to the other essential features of the Court can only be made under the procedure provided for in s. 42[2] of the *Constitution Act, 1982*, which requires the consent of at least seven provinces representing, in the aggregate, at least half of the population of all the provinces.

[75] We will first discuss the history of how the Court became constitutionally protected, and then answer the Attorney General of Canada's arguments on this issue. Finally, we will discuss the effect of the declaratory provisions enacted by Parliament.

B. *Evolution of the Constitutional Status of the Supreme Court*

[76] The Supreme Court's constitutional status initially arose from the Court's historical evolution into an institution whose continued existence and functioning engaged the interests of both Parliament and the provinces. The Court's status was then confirmed by the *Constitution Act, 1982*, which reflected the understanding that the Court's essential features formed part of the Constitution of Canada.

(1) The Supreme Court's Evolution Prior to Patriation

[77] At Confederation, there was no Supreme Court of Canada. Nor were the details of what would eventually become the Supreme Court expounded in the *Constitution Act, 1867*. It was assumed that the ultimate judicial authority for Canada would continue to be the Judicial Committee of the Privy Council in London. For example, George-Étienne Cartier, then the Attorney General for Canada East, expressed the view that "we shall always have our court of final appeal in Her Majesty's Privy Council", even if a general court of appeal for Canada were to be established domestically: Province of Canada, Legislative Assembly, *Parliamentary Debates on the Subject of the Confederation of the British North American Provinces*, 3rd Sess., 8th Parl., March 2, 1865, at p. 576.

[78] The *Constitution Act, 1867*, however, gave Parliament the authority to establish a general court of appeal for Canada:

> **101.** The Parliament of Canada may, notwithstanding anything in this Act, from Time to Time provide for the Constitution, Maintenance, and Organization of a General Court of Appeal for Canada, and for the Establishment of any additional Courts for the better Administration of the Laws of Canada.

[79] The Parliamentary debates between 1868 and 1875 over whether to create a Supreme Court were instigated by Sir John A. Macdonald, who was Canada's Prime Minister and Minister of Justice from 1867 to 1873. He introduced bills for the establishment of the Supreme Court in 1869 and again in 1870 in the House of Commons. Both bills, which did not reserve any seats on the Court for Quebec jurists, faced staunch opposition from Quebec in Parliament. The first bill died on the Order Paper and the second was withdrawn.

[80] In addition to Quebec's opposition, the nature of the court's jurisdiction was contested, and many questioned whether a general court of appeal was even needed. Since an appeal to the Privy Council was available and Ontario and Quebec already had provincial courts of appeal, a Supreme Court would only be an intermediate step on the way to London.

[81] The bill that finally became the *Supreme Court Act* was introduced in 1875 by the federal Minister of Justice, Télesphore Fournier, and was adopted after several amendments (*1875 Debates*, February 23, 1875, at p. 284). The new Supreme Court had general appellate jurisdiction over civil, criminal, and constitutional cases. In addition, the Court was given an exceptional original jurisdiction not incompatible with its appellate jurisdiction, for instance to consider references from the Governor in Council: *Re References by the Governor-General in Council* (1910), 1910 CanLII 29 (SCC), 43 S.C.R. 536, affirmed on appeal to the Privy Council, 1912 CanLII 407 (UK JCPC), [1912] A.C. 571 (*sub nom. Attorney-General for Ontario v. Attorney-General for Canada*); *Secession Reference*, at para. 9.

[82] Under the authority newly granted by the *Statute of Westminster, 1931*, Parliament abolished criminal appeals to the Privy Council in 1933 (*An Act to amend the Criminal Code*, S.C. 1932-33, c. 53, s. 17). Of even more historic significance, in 1949, it abolished *all* appeals to the Privy Council (*An Act to amend the Supreme Court Act*, s. 3). This had a profound effect on the constitutional architecture of Canada. The Privy Council had exercised ultimate judicial authority over all legal disputes in Canada, including those arising from Canada's Constitution. It played a central role in this country's constitutional structure, by, among other things, delineating the contours of federal and provincial jurisdiction through a number of landmark cases that continue to inform our understanding of the division of powers to this day (John T. Saywell, *The Lawmakers: Judicial Power and the Shaping of Canadian Federalism* (2002); Warren J. Newman, "The Constitutional Status of the Supreme Court of Canada" (2009), 47 *S.C.L.R.* (2d) 429, at p. 439). As Warren Newman explains:

> . . . the supreme appellate function of the Judicial Committee of the Privy Council was an integral part of the Canadian judicial system until it was ultimately displaced by the Parliament of Canada in favour of the Supreme Court. Canadians could do without a general court of appeal for Canada as long as the Judicial Committee continued to play that role. With the abolition of appeals to the Privy Council, the appellate jurisdiction of the Supreme Court of Canada became essential. [p. 439]

[83] The abolition of appeals to the Privy Council meant that the Supreme Court of Canada inherited the role of the Council under the Canadian Constitution. As a result, the Court assumed the powers and jurisdiction "no less in scope than those formerly exercised in relation to Canada by the Judicial Committee" (*Reference re The Farm Products Marketing Act*, 1957 CanLII 1 (SCC), [1957] S.C.R. 198, at p. 212), including adjudicating disputes over federalism. The need for a final, independent judicial arbiter of disputes over federal-provincial jurisdiction is implicit in a federal system:

> Inherent in a federal system is the need for an impartial arbiter of jurisdictional disputes over the boundaries of federal and provincial powers (*Reference re Remuneration of Judges of the Provincial Court of Prince Edward Island*, 1997 CanLII 317 (SCC) , [1997] 3 S.C.R. 3, at para. 124). That impartial arbiter is the judiciary, charged with "control[ling] the limits of the respective sovereignties" (*Northern Telecom Canada Ltd. v. Communication Workers of Canada*, 1983 CanLII 25 (SCC), [1983] 1 S.C.R. 733, at p. 741).

(*Reference re Securities Act*, 2011 SCC 66 , [2011] 3 S.C.R. 837, at para. 55; see also *Secession Reference*, at para. 53.)

[84] In addition, the elevation in the Court's status empowered it to exercise a "'unifying jurisdiction' over the provincial courts": *Hunt v. T&N plc*, 1993 CanLII 43 (SCC) , [1993] 4 S.C.R. 289, at p. 318; *Bank of Montreal v. Metropolitan Investigation & Security (Canada) Ltd.*, 1974 CanLII 183 (SCC), [1975] 2 S.C.R. 546, at p. 556. The Supreme Court became the keystone to Canada's unified court system. It "acts as the exclusive ultimate appellate court in the country" (*Secession Reference*, at para. 9). In fulfilling this role, the Court is not restricted to the powers of the lower courts from which an appeal is made. Rather, the Court may exercise the powers necessary to enable it "to discharge its role at the apex of the Canadian judicial system, as the court of last resort for all Canadians": *R. v. Gardiner*, 1982 CanLII 30 (SCC), [1982] 2 S.C.R. 368, at p. 404, *per* Dickson J.; *Hunt*, at p. 319.

[85] With the abolition of appeals to the Judicial Committee of the Privy Council, the continued existence and functioning of the Supreme Court of Canada became a key matter of interest to both Parliament and the provinces. The Court assumed a vital role as an institution forming part of the federal system. It became the final arbiter of division of powers disputes, and became the final word on matters of public law and provincial civil law. Drawing on the expertise of its judges from Canada's two legal traditions, the Court ensured that the common law and the civil law would evolve side by side, while each maintained its distinctive character. The Court thus became central to the functioning of legal systems within each province and, more broadly, to the development of a unified and coherent Canadian legal system.

[86] The role of the Supreme Court of Canada was further enhanced as the 20th century unfolded. In 1975, Parliament amended the *Supreme Court Act* to end appeals as of right to the Court in civil cases (S.C. 1974-75-76, c. 18). This gave the Court control over its civil docket, and allowed it to focus on questions of public legal importance. As a result, the Court's "mandate became oriented less to error correction and more to development of the jurisprudence": *R. v. Henry*, 2005 SCC 76 , [2005] 3 S.C.R. 609, at para. 53.

[87] As a result of these developments, the Supreme Court emerged as a constitutionally essential institution engaging both federal and provincial interests. Increasingly, those concerned with constitutional reform accepted that future reforms would have to recognize the Supreme Court's position within the architecture of the Constitution.

(2) The Supreme Court and Patriation

[88] We have seen that the Supreme Court was already essential under the Constitution's architecture as the final arbiter of division of powers disputes and as the final general court of appeal for Canada. The *Constitution Act, 1982* enhanced the Court's role under the Constitution and confirmed its status as a constitutionally protected institution.

[89] Patriation of the Constitution was accompanied by the adoption of the *Canadian Charter of Rights and Freedoms*, which gave the courts the responsibility for interpreting and remedying breaches of the *Charter*. Patriation also brought an explicit acknowledgement that the Constitution is the "supreme law of Canada":

> **52.** (1) The Constitution of Canada is the supreme law of Canada, and any law that is inconsistent with the provisions of the Constitution is, to the extent of the inconsistency, of no force or effect.

The existence of an impartial and authoritative judicial arbiter is a necessary corollary of the enactment of the supremacy clause. The judiciary became the "guardian of the constitution" (*Hunter*, at p. 155, *per* Dickson J.). As such, the Supreme Court of Canada is a foundational premise of the Constitution. With the adoption of the *Constitution Act, 1982*, "the Canadian system of government was transformed to a significant extent from a system of Parliamentary supremacy to one of constitutional supremacy": *Secession Reference*, at para. 72.

[90] Accordingly, the *Constitution Act, 1982* confirmed the constitutional protection of the essential features of the Supreme Court. Indeed, Part V of the *Constitution Act, 1982* expressly makes changes to the Supreme Court and to its composition subject to constitutional amending procedures.

[91] Under s. 41(*d*), the unanimous consent of Parliament and all provincial legislatures is required for amendments to the Constitution relating to the "composition of the Supreme Court". The notion of "composition" refers to ss. 4(1), 5 and 6 of the *Supreme Court Act*, which codify the composition of and eligibility requirements for appointment to the Supreme Court of Canada as they existed in 1982. By implication, s. 41(*d*) also protects the continued existence of the Court, since abolition would altogether remove the Court's composition.

[92] The textual origin of Part V was the "April Accord" of 1981 (*Constitutional Accord: Canadian Patriation Plan* (1981)), to which eight provinces, including Quebec, were parties. The explanatory notes to this Accord confirm that the intention was to limit Parliament's unilateral authority to reform the Supreme Court. That sentiment finds particular expression in the explanatory note for what became s. 41, which requires unanimity for amendments relating to five matters, including the composition of the Supreme Court: "This section recognizes that some matters are of such fundamental importance that amendments in relation to them should require the consent of all the provincial Legislatures and Parliament" (p. 9 (note 9)). Pointedly, the explanatory note to s. 41(*d*) states: "This clause would ensure that the Supreme

> Court of Canada is comprised of judges a proportion of whom are drawn from the Bar or Bench of Quebec and are, therefore, trained in the civil law" (p. 9 (note 9(d))). The intention of the provision was demonstrably to make it difficult to change the composition of the Court, and to ensure that Quebec's representation was given special constitutional protection.
>
> [93] The fact that the composition of the Supreme Court of Canada was singled out for special protection in s. 41(*d*) is unsurprising, since the Court's composition has been long recognized as crucial to its ability to function effectively and with sufficient institutional legitimacy as the final court of appeal for Canada. As explained above, the central bargain that led to the creation of the Supreme Court in the first place was the guarantee that a significant proportion of the judges would be drawn from institutions linked to Quebec civil law and culture. The objective of ensuring representation from Quebec's distinct juridical tradition remains no less compelling today, and implicates the competence, legitimacy, and integrity of the Court. Requiring unanimity for changes to the composition of the Court gave Quebec constitutional assurance that changes to its representation on the Court would not be effected without its consent. Protecting the composition of the Court under s. 41(*d*) was necessary because leaving its protection to s. 42(1)(*d*) would have left open the possibility that Quebec's seats on the Court could have been reduced or altogether removed without Quebec's agreement.
>
> [94] Section 42(1)(*d*) applies the 7/50 amending procedure to the essential features of the Court, rather than to all of the provisions of the *Supreme Court Act*.[3] The express mention of the Supreme Court of Canada in s. 42(1)(*d*) is intended to ensure the proper functioning of the Supreme Court. This requires the constitutional protection of the essential features of the Court, understood in light of the role that it had come to play in the Canadian constitutional structure by the time of patriation. These essential features include, at the very least, the Court's jurisdiction as the final general court of appeal for Canada, including in matters of constitutional interpretation, and its independence.
>
> [95] In summary, the Supreme Court gained constitutional status as a result of its evolution into the *final* general court of appeal for Canada, with jurisdiction to hear appeals concerning all the laws of Canada and the provinces, including the Constitution. This status was confirmed in the *Constitution Act, 1982*, which made modifications of the Court's composition and other essential features subject to stringent amending procedures.

14 Conclusion

The words of ss.96-100 of the *Constitution Act, 1867* are simple, but they have come to mean more than they indicate. Supported by unwritten constitutional principles like the rule of law, the jurisprudence has developed to protect the core jurisdiction of superior courts and the independence of judicial actors beyond the superior courts. The courts have built on the bare words of s.96, establishing a set of standards that guarantee the role of the courts and their independence in the constitutional framework. The decision in *Trial Lawyers* also serves to guarantee a certain right of access to the superior courts, one that cannot be unduly limited by government restrictions like fees.

Today, ss.96-100 are the structural framework for a broader set of unwritten constitutional principles, providing an array of guarantees supporting the independence of the judges of the superior courts. Those guarantees, alongside the route of access set out in *Trial Lawyers*, solidifies the centrality of the superior courts in the Canadian constitutional framework.

At the same time, it would be too quick to say the superior courts are the totality of the Canadian judicial system. The Federal Courts play an important function in the Canadian judicial system. The Federal Courts facilitate the uniform application of federal law, promoting rule of law values like certainty and predictability. Similarly, the provincial inferior courts deal with matters of deep importance to the litigants involved. They, too, play a central role in the Canadian judicial system.

Chapter 4: The Law and History of Constitutional Amendment

By Richard Albert, Dave Guénette, and Catherine Mathieu

In this first part, we will look at the main features of the Canadian constitutional amendment procedure, the long process that brought it into being, and the constitutional amendments that have taken place since 1982.

1 Constitutional amendments before patriation

The Confederation of 1867 was the process by which the United Province of Canada was divided into two provinces, to become Ontario and Quebec, these two new provinces then joining New Brunswick and Nova Scotia to form a new "Dominion" named Canada. As mentioned in the preamble to the *British North America Act*, "the Provinces of Canada, Nova Scotia, and New Brunswick have expressed their Desire to be federally united into One Dominion under the Crown of the United Kingdom of Great Britain and Ireland, with a Constitution similar in Principle to that of the United Kingdom."

After Confederation, the power to amend the "Constitution of Canada" remained a prerogative of the British Parliament, as Canada was still a colony. That being said, many provisions allowed "constitutional changes" to happen in Canada, whether they are the work of the provinces or the Federal Parliament. As we shall see, this power has increased over time, in particular with regard to the admission of new provinces, but also to include a more "general" formula for amending the Constitution. After the *Statute of Westminster*, there were many attempts to "patriate" the Constitution, which eventually led to a formal Patriation, in 1982. In this section, we will deal with amendment powers that were in place before Patriation.

1.1 *The Colonial Laws Validity Act*

Even before Confederation, in 1867, the colonies of British North America had the power to amend their own "constitution." While there was some ambiguity on this subject for a while, the *Colonial Laws Validity Act* confirmed this power, in 1865.

> *Colonial Laws Validity Act*, 28 & 29 Victoria, c. 63 (U.K.).
>
> *An Act to remove Doubts as for the Validity of Colonial Laws*
>
> WHEREAS doubts have been entertained respecting the validity of divers laws enacted or purporting to have been enacted by the legislatures of certain of Her Majesty's colonies, and respecting the powers of such legislatures, and it is expedient that such doubts should be removed:
>
> […]
>
> 5. […] **Representative legislatures may alter their constitutions**.

> Every colonial legislature shall have, and be deemed at all times to have had, full power within its jurisdiction to establish courts of judicature, and to abolish and reconstitute the same, and to alter the constitution thereof, and to make provision for the administration of justice therein; and every representative legislature shall, in respect to the colony under its jurisdiction, have, and be deemed at all times to have had, full power to make laws respecting the constitution, powers, and procedure of such legislature; provided that such laws shall have been passed in such manner and form as may from time to time he required by any Act of Parliament, letters patent, Order in Council, or colonial law for the time being in force in the said colony.

1.2 *The British North America Act* and the provinces

Directly in line with the *Colonial Laws Validity Act*, in the *British North America Act* of 1867, provinces kept the power to amend their own constitution:

> *British North America Act*, 30 & 31 Victoria, c. 3 (U.K.).
>
> […]
>
> VI. Distribution of Legislative Powers
>
> […]
>
> Subjects of exclusive Provincial Legislation
>
> 92 In each Province the Legislature may exclusively make Laws in relation to Matters coming within the Classes of Subjects next hereinafter enumerated; that is to say,
>
> 1. The Amendment from Time to Time, notwithstanding anything in this Act, of the Constitution of the Province, except as regards the Office of Lieutenant Governor.

In 1987, in its *Ontario (Attorney General) v OPSEU* case, the Supreme Court wrote the following with regards to section 92(1):

> *Ontario (Attorney General) v OPSEU,* 1987 CanLII 71 (SCC), [1987] 2 SCR 2.
>
> […]
>
> 2. The Amendment of the Constitution of the Province
>
> [82] Section 92(1) of the Constitution Act, 1867 provides for the process whereby the constitution of the province can be amended. This process is an ordinary law or statute of the provincial legislature. But the Constitution Act, 1867 nowhere defines the expression "constitution of the province".
>
> [83] The constitution of Ontario, like that of the other provinces and that of the United Kingdom, but unlike that of many states, is not to be found in a comprehensive, written instrument called a constitution. It is partly contained in a variety of statutory provisions. Some of these provisions have been enacted by the Parliament at Westminster, such as ss. 58 to 70 and ss. 82 to 87 of the Constitution Act, 1867 . Other provisions relating to the constitution of Ontario have been enacted by ordinary statutes of the Legislature of Ontario, for instance The Legislative Assembly Act, R.S.O. 1970, c. 240; The Representation Act, R.S.O. 1970, c. 413, and The Executive Council Act, R.S.O. 1970, c. 153.
>
> [84] Another part of the constitution of Ontario consists of the rules of the common law, developed or recognized over the years by the courts. Many of these common law rules concern the royal prerogative. For instance, they have put the Crown in right of the province in a preferred position as a creditor (Maritime Bank of Canada (Liquidators of) v. Receiver-General of New Brunswick, [1892] App. Cas. 437) and with respect to the inheritance of lands for defect of heirs (Attorney-General of Ontario v. Mercer (1883), 8 App. Cas. 767).
>
> [85] As was explained in Re: Resolution to amend the Constitution, 1981 CanLII 25 (SCC), [1981] 1 SCR 753, at pp. 876-78, with respect to the Constitution of Canada--but the same can generally be said of the constitution of Ontario-- "those parts which are composed of statutory rules and common law rules are generically referred to as the law of the constitution". In addition, the constitution of Ontario comprises rules of a different nature but of great importance called conventions of the constitution. The most fundamental of these is probably the principle of responsible government which is largely unwritten, although it is implicitly referred to in the preamble of the Constitution Act, 1867, and one of its facets is articulated in s. 83 of this Act--possibly spent--which, in Ontario and Quebec, "Until the Legislature of Ontario or of Quebec otherwise provides", puts a restriction on the election of holders of offices other than ministerial offices.

1.3 *The British North America Act* and the Parliament of Canada

Already in 1867, the *British North America Act* also allowed the Federal Parliament to proceed unilaterally with certain constitutional amendments. Here are a few examples, where the words "Until the Parliament of Canada otherwise provides", for instance, include this amendment power:

> *British North America Act*, 30 & 31 Victoria, c. 3 (U.K.).
>
> […]
>
> Quorum of Senate
>
> 35 Until the Parliament of Canada otherwise provides, the Presence of at least Fifteen Senators, including the Speaker, shall be necessary to constitute a Meeting of the Senate for the Exercise of its Powers.
>
> […]
>
> Electoral districts of the four Provinces
>
> 40 Until the Parliament of Canada otherwise provides, Ontario, Quebec, Nova Scotia, and New Brunswick shall, for the Purposes of the Election of Members to serve in the House of Commons, be divided into Electoral Districts as follows:
>
> […]
>
> Continuance of existing Election Laws until Parliament of Canada otherwise provides
>
> 41 Until the Parliament of Canada otherwise provides, all Laws in force in the several Provinces at the Union relative to the following Matters or any of them, namely, — the Qualifications and Disqualifications of Persons to be elected or to sit or vote as Members of the House of Assembly or Legislative Assembly in the several Provinces, the Voters at Elections of such Members, the Oaths to be taken by Voters, the Returning Officers, their Powers and Duties, the Proceedings at Elections, the Periods during which Elections may be continued, the Trial of

controverted Elections, and Proceedings incident thereto, the vacating of Seats of Members, and the Execution of new Writs in case of Seats vacated otherwise than by Dissolution, — shall respectively apply to Elections of Members to serve in the House of Commons for the same several Provinces.

Provided that, until the Parliament of Canada otherwise provides, at any Election for a Member of the House of Commons for the District of Algoma, in addition to Persons qualified by the Law of the Province of Canada to vote, every Male British Subject, aged Twenty-one Years or upwards, being a Householder, shall have a Vote.

[…]

Provision in case of Absence of Speaker

47 Until the Parliament of Canada otherwise provides, in case of the Absence for any Reason of the Speaker from the Chair of the House of Commons for a Period of Forty-eight consecutive Hours, the House may elect another of its Members to act as Speaker, and the Member so elected shall during the Continuance of such Absence of the Speaker have and execute all the Powers, Privileges, and Duties of Speaker.

[…]

Readjustment of representation in Commons

51 (1) The number of members of the House of Commons and the representation of the provinces therein shall, on the completion of each decennial census, be readjusted by such authority, in such manner, and from such time as the Parliament of Canada provides from time to time, subject and according to the following rules:

[…]

Increase of Number of House of Commons

52 The Number of Members of the House of Commons may be from Time to Time increased by the Parliament of Canada, provided the proportionate Representation of the Provinces prescribed by this Act is not thereby disturbed.

[…]

Transfer of Officers to Canada

130 Until the Parliament of Canada otherwise provides, all Officers of the several Provinces having Duties to discharge in relation to Matters other than those coming within the Classes of Subjects by this Act assigned exclusively to the Legislatures of the Provinces shall be Officers of Canada, and shall continue to discharge the Duties of their respective Offices under the same Liabilities, Responsibilities, and Penalties as if the Union had not been made.

Appointment of new Officers

131 Until the Parliament of Canada otherwise provides, the Governor General in Council may from Time to Time appoint such Officers as the Governor General in Council deems necessary or proper for the effectual Execution of this Act.

1.4 *Constitution Act, 1871* and the creation of new provinces

The *British North America Act, 1867* also contained a Part relating to the admission of new colonies, but to ensure that the Federal Parliament had the power to create new provinces, the *British North America Act, 1871* was adopted:

British North America Act, 1871, 34-35 Victoria, c. 28 (U.K.).

An Act respecting the establishment of Provinces in the Dominion of Canada.

WHEREAS doubts have been entertained respecting the powers of the Parliament of Canada to establish Provinces in Territories admitted, or which may hereafter be admitted into the Dominion of Canada, and to provide for the representation of such Provinces in the said Parliament, and it is expedient to remove such doubts, and to vest such powers in the said Parliament:

1. This Act may be cited for all purposes as "The British North America Act, 1871."

2. The Parliament of Canada may from time to time establish new Provinces in any territories forming for the time being part of the Dominion of Canada, but not included in any Province thereof, and may, at the time of such establishment, make provision for the constitution and administration of any such Province, and for the passing of laws for the peace, order, and good government of such Province, and for its representation in the said Parliament. Parliament of Canada may establish new Provinces and provide for the constitution etc., thereof.

3. Alteration of limits of Provinces.

The Parliament of Canada may from time to time, with the consent of the Legislature of any Province of the said Dominion, increase, diminish, or otherwise alter the limits of such Province, upon such terms and conditions as may be agreed to by the said Legislature, and may, with the like consent, make provision respecting the effect and operation of any such increase or diminution or alteration of territory in relation to any Province affected thereby.

4. Parliament of Canada may legislate for any territory not included in a Province.

The Parliament of Canada may from time to time make provision for the administration, peace, order, and good government of any territory not for the time being included in any Province.

5. Confirmation of Acts of Parliament of Canada, 32 & 33 Vict., (Canadian) cap. 3, 33 Vict., (Canadian) cap. 3.

The following Acts passed by the said Parliament of Canada, and intituled respectively: "An Act for the temporary government of Rupert's Land and the North Western Territory when united with Canada," and "An Act to amend and continue the Act thirty-two and thirty-three Victoria, chapter three, and to establish and provide for the government of the Province of Manitoba," shall be and be deemed to have been valid and effectual for all purposes whatsoever from the date at which they respectively received the assent, in the Queen's name, of the Governor General of the said Dominion of Canada.

6. Limitation of powers of Parliament of Canada to legislate for an established Province.

Except as provided by the third section of this Act, it shall not be competent for the Parliament of Canada to alter the provisions of the last mentioned Act of the said Parliament, in so far as it relates to the Province of Manitoba, or of any other Act hereafter establishing new Provinces in the said Dominion, subject always to the right of the Legislature of the Province of Manitoba to alter from time to time the provisions of any law respecting the qualification of electors and members of the Legislative Assembly, and to make laws respecting elections in the said Province.

This procedure enabled Canada to admit, in addition to the original four provinces, Manitoba (1870), British Columbia (1871), Prince Edward

Island (1871), Alberta (1905), Saskatchewan (1905) and Newfoundland (1949).

1.5 *The Statute of Westminster, 1931*, and the beginning of Canadian sovereignty

In 1931, the British Parliament adopted the *Statute of Westminster*, which represented the legal materialization of the Balfour Declaration of a few years earlier. The main effect of the Statute was that, henceforth, the laws of the United Kingdom would only have effect in Canada if the latter had requested and consented to them.

Statute of Westminster, 1931, 22 Geo. V, c. 4 (U.K.).

An Act to give effect to certain resolutions passed by Imperial Conferences held in the years 1926 and 1930

WHEREAS the delegates of His Majesty's Governments in the United Kingdom, the Dominion of Canada, the Commonwealth of Australia, the Dominion of New Zealand, the Union of South Africa, the Irish Free State and Newfoundland, at Imperial Conferences holden at Westminster in the years of our Lord nineteen hundred and twenty-six and nineteen hundred and thirty did concur in making the declarations and resolutions set forth in the Reports of the said Conferences:

And whereas it is meet and proper to set out by way of preamble to this Act that, inasmuch as the Crown is the symbol of the free association of the members of the British Commonwealth of Nations, and as they are united by a common allegiance to the Crown, it would be in accord with the established constitutional position of all the members of the Commonwealth in relation to one another that any alteration in the law touching the Succession to the Throne or the Royal Style and Titles shall hereafter require the assent as well of the Parliaments of all the Dominions as of the Parliament of the United Kingdom:

And whereas it is in accord with the established constitutional position that no law hereafter made by the Parliament of the United Kingdom shall extend to any of the said Dominions as part of the law of that Dominion otherwise than at the request and with the consent of that Dominion:

And whereas it is necessary for the ratifying, confirming and establishing of certain of the said declarations and resolutions of the said Conferences that a law be made and enacted in due form by authority of the Parliament of the United Kingdom:

And whereas the Dominion of Canada, the Commonwealth of Australia, the Dominion of New Zealand, the Union of South Africa, the Irish Free State and Newfoundland have severally requested and consented to the submission of a measure to the Parliament of the United Kingdom for making such provision with regard to the matters aforesaid as is hereafter in this Act contained:

Now, therefore, be it enacted by the King's Most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1. Meaning of "Dominion" in this Act.

In this Act the expression "Dominion" means any of the following Dominions, that is to say, the Dominion of Canada, the Commonwealth of Australia, the Dominion of New Zealand, the Union of South Africa, the Irish Free State and Newfoundland.

2. Validity of laws made by Parliament of a Dominion.

(1) The Colonial Laws Validity Act, 1865, shall not apply to any law made after the commencement of this Act by the Parliament of a Dominion.

(2) No law and no provision of any law made after the commencement of this Act by the Parliament of a Dominion shall be void or inoperative on the ground that it is repugnant to the law of England, or to the provisions of any existing or future Act of Parliament of the United Kingdom, or to any order, rule or regulation made under any such Act, and the powers of the Parliament of a Dominion shall include the power to repeal or amend any such Act, order, rule or regulation in so far as the same is part of the law of the Dominion.

3. Power of Parliament of Dominion to legislate extra-territorially.

It is hereby declared and enacted that the Parliament of a Dominion has full power to make laws having extra-territorial operation.

4. Parliament of United Kingdom not to legislate for Dominion except by consent.

No Act of Parliament of the United Kingdom passed after the commencement of this Act shall extend, or be deemed to extend, to a Dominion as part of the law of that Dominion, unless it is expressly declared in that Act that that Dominion has requested, and consented to the enactment thereof.

5. Powers of Dominion Parliaments in relation to merchant shipping.

Without prejudice to the generality of the foregoing provisions of this Act, sections seven hundred and thirty-five and seven hundred and thirty-six of the Merchant Shipping Act, 1894, shall be construed as though reference therein to the Legislature of a British possession did not include reference to the Parliament of a Dominion.

6. Powers of Dominion Parliaments in relation to Courts of Admiralty.

Without prejudice to the generality of the foregoing provisions of this Act, section four of the Colonial Courts of Admiralty Act, 1890 (which requires certain laws to be reserved for the signification of His Majesty's pleasure or to contain a suspending clause), and so much of section seven of that Act as requires the approval of His Majesty in Council to any rules of Court for regulating the practice and procedure of a Colonial Court of Admiralty, shall cease to have effect in any Dominion as from the commencement of this Act.

7. Saving for British North America Acts and application of the Act to Canada.

(1) Nothing in this Act shall be deemed to apply to the repeal, amendment or alteration of the British North America Acts, 1867 to 1930, or any order, rule or regulation made thereunder.

(2) The provisions of section two of this Act shall extend to laws made by any of the Provinces of Canada and to the powers of the legislatures of such Provinces.

(3) The powers conferred by this Act upon the Parliament of Canada or upon the legislatures of the Provinces shall be restricted to the enactment of laws in relation to matters within the competence of the Parliament of Canada or of any of the legislatures of the Provinces respectively.

8. Saving for Constitution Acts of Australia and New Zealand.

Nothing in this Act shall be deemed to confer any power to repeal or alter the Constitution or the Constitution Act of the Commonwealth of Australia or the Constitution Act of the Dominion of New Zealand otherwise than in accordance with the law existing before the commencement of this Act.

9. Saving with respect to States of Australia.

(1) Nothing in this Act shall be deemed to authorize the Parliament of the Commonwealth of Australia to make laws on any matter within the authority of the States of Australia, not being a matter within the authority of the Parliament or Government of the Commonwealth of Australia.

(2) Nothing in this Act shall be deemed to require the concurrence of the Parliament or Government of the Commonwealth of Australia in any law made by the Parliament of the United Kingdom with respect to any matter within the authority of the States of Australia, not being a matter within the authority of the Parliament or Government of the Commonwealth of Australia, in any case where it would have been in accordance with the constitutional practice existing before the commencement of this Act that the Parliament of the United Kingdom should make that law without such concurrence.

(3) In the application of this Act to the Commonwealth of Australia the request and consent referred to in section four shall mean the request and consent of the Parliament and Government of the Commonwealth.

10. Certain sections of Act not to apply to Australia, New Zealand or Newfoundland unless adopted.

(1) None of the following sections of this Act, that is to say, sections two, three, four, five and six, shall extend to a Dominion to which this section applies as part of the law of that Dominion unless that section is adopted by the Parliament of the Dominion, and any Act of that Parliament adopting any section of this Act may provide that the adoption shall have effect either from the commencement of this Act or from such later date as is specified in the adopting Act.

(2) The Parliament of any such Dominion as aforesaid may at any time revoke the adoption of any section referred to in subsection (1) of this section.

(3) The Dominions to which this section applies are the Commonwealth of Australia, the Dominion of New Zealand and Newfoundland.

11. Meaning of "Colony" in future Acts. 52 & 53 Vict. c. 63.

Notwithstanding anything in the Interpretation Act, 1889, the expression "Colony" shall not, in any Act of the Parliament of the United Kingdom passed after the commencement of this Act, include a Dominion or any Province or State forming part of a Dominion.

12. This Act may be cited as the Statute of Westminster, 1931.

1.6 *Constitution Act, 1949* (no 2) and a general federal formula

Finally, in 1949, the Westminster Parliament adopted an Act granting the Parliament of Canada a general power of constitutional amendments over matters of federal concern only:

British North America (No. 2) Act, 1949, 13 Geo VI, c. 81 (U.K.).

An Act to amend the British North America Act, 1867, as respects the amendment of the Constitution of Canada

WHEREAS the Senate and the House of Commons of Canada in Parliament assembled have submitted an Address to His Majesty praying that His Majesty may graciously be pleased to cause a measure to be laid before the Parliament of the United Kindgom for the enactment of the provisions hereinafter set forth:

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Amendment as to legislative authority of Parliament of Canada 30 & 31 Vict. c. 3

Section ninety-one of the British North America Act, 1867 is hereby amended by renumbering Class 1 thereof as Class 1A and by inserting therein immediately before that Class the following as Class 1:

"1. The amendment from time to time of the Constitution of Canada, except as regards matters coming within the classes of subjects by this Act assigned exclusively to the Legislatures of the provinces, or as regards rights or privileges by this or any other Constitutional Act granted or secured to the Legislature or the Government of a province, or to any class of persons with respect to schools or as regards the use of the English or the French language or as regards the requirements that there shall be a session of the Parliament of Canada at least once each year, and that no House of Commons shall continue for more than five years from the day of the return of the Writs for choosing the House; provided, however, that a House of Commons may in time of real or apprehended war, invasion or insurrection be continued by the Parliament of Canada if such continuation is not opposed by the votes of more than one-third of the members of such House."

Short title and citation

This Act may be cited as the British North America (No. 2) Act, 1949 and shall be included among the Acts which may be cited as the British North America Acts, 1867 to 1949.

2 The patriation of the Canadian constitution

Even after the enactment of the *Statute of Westminster, 1931*, Canada still had to go through the British Parliament to amend its constitutional laws. Canadian sovereignty thus remained imperfect. To remedy the situation, constitutional negotiations took place between the federal government and the provinces to agree on a made-in-Canada procedure that would allow the Constitution to be "patriated" and henceforth amended solely in Canada. This led to the constitutional negotiations of 1981 and the Patriation of 1982.

2.1 Constitutional negotiations before patriation and the 1981 *Re: Resolution to amend the Constitution*

In his famous book *Amending Canada's Constitution. History, Processes, Problems and Prospects*, James Ross Hurley recounts no fewer than fourteen attempts to reach an agreement to patriate the Constitution, the last attempt being the successful one. This latest attempt was the end of a debate that lasted almost two years: faced with the cumulative failures of recent decades, Prime Minister Trudeau had initially decided to proceed unilaterally with the patriation of the Constitution, in 1980. Its project included a charter of rights and freedoms and a two-year process for adopting an amending formula.

Two provinces (Ontario and New Brunswick) supported this unilateral action of the federal government, but the other eight objected. Three provincial courts of appeal (Manitoba, Quebec and Newfoundland) had to rule on the constitutionality of unilateral patriation, the debate finally reaching the Supreme Court. In its *Re: Resolution to amend the Constitution*, the Court came to the conclusion that no formal legal rule prevented the federal government from acting unilaterally, but the consent of a substantial number of provinces was required by constitutional convention.

Re: Resolution to amend the Constitution, 1981 CanLII 25 (SCC), [1981] 1 SCR 753.

[Page 886]

III—Whether the convention exists

It was submitted by counsel for Canada, Ontario and New Brunswick that there is no constitutional convention, that the House of Commons and Senate of Canada will not request Her Majesty the Queen to lay before the Parliament at Westminster a measure to amend the Constitution of Canada affecting federal-provincial relationships, etc., without first obtaining the agreement of the provinces.

It was submitted by counsel for Manitoba, Newfoundland, Quebec, Nova Scotia, British Columbia, Prince Edward Island and Alberta that the convention does exist, that it requires the agreement of all the provinces and that the second question in the Manitoba and Newfoundland References should accordingly be answered in the affirmative.

Counsel for Saskatchewan agreed that the question be answered in the affirmative but on a different basis. He submitted that the convention does exist and requires a measure of provincial agreement. Counsel for Saskatchewan further submitted that the Resolution before the Court has not received a sufficient measure of provincial consent.

We wish to indicate at the outset that we find ourselves in agreement with the submissions made on this issue by counsel for Saskatchewan.

1. The class of constitutional amendments contemplated by the question

Constitutional amendments fall into three categories: (1) amendments which may be made by a provincial legislature acting alone under s. 92(1) of the B.N.A. Act; (2) amendments which may be made by the Parliament of Canada acting alone under s. 91(1) of the B.N.A. Act; (3) all other amendments.

[Page 887]

The first two categories are irrelevant for the purposes of these References. While the wording of the second and third questions of the Manitoba and Newfoundland References may be broad enough to embrace all amendments in the third category, it is not necessary for us to consider those amendments which affect federal-provincial relationships only indirectly. In a sense, most amendments of the third category are susceptible of affecting federal-provincial relationships to some extent. But we should restrict ourselves to the consideration of amendments which

... directly affect federal-provincial relationships in the sense of changing federal and provincial legislative powers …

(Senate Reference, supra, at p. 65.)

The reason for this is that the second and third questions of the Manitoba and Newfoundland References must be read in the light of the first question. They must be meant to contemplate the same specific class of constitutional amendments as the ones which are sought in the "Proposed Resolution for a Joint Address to Her Majesty the Queen respecting the Constitution of Canada". More particularly, they must be meant to address the same type of amendments as the Charter of Rights, which abridges federal and provincial legislative powers, and the amending formula, which would provide for the amendment of the Constitution including the distribution of legislative powers.

These proposed amendments present one essential characteristic: they directly affect federal-provincial relationships in changing legislative powers and in providing for a formula to effect such change.

Therefore, in essence although not in terms, the issue raised by the second question in the Manitoba and Newfoundland References is whether there is a constitutional convention for agreement of the provinces to amendments which change legislative powers and provide for a method of effecting such change. The same issue is raised by Question B of the Quebec Reference above quoted in part.

[Page 888]

2. Requirements for establishing a convention

The requirements for establishing a convention bear some resemblance with those which apply to customary law. Precedents and usage are necessary but do not suffice. They must be normative. We adopt the following passage of Sir W. Ivor Jennings, The Law and the Constitution (5th ed., 1959), at p. 136:

We have to ask ourselves three questions: first, what are the precedents; secondly, did the actors in the precedents believe that they were bound by a rule; and thirdly, is there a reason for the rule? A single precedent with a good reason may be enough to establish the rule. A whole string of precedents without such a reason will be of no avail, unless it is perfectly certain that the persons concerned regarded them as bound by it.

...

[Page 909]

...

IV—Conclusion

We have reached the conclusion that the agreement of the provinces of Canada, no views being expressed as to its quantification, is constitutionally required for the passing of the "Proposed Resolution for a Joint Address to Her Majesty the Queen respecting the Constitution of Canada" and that the passing of this Resolution without such agreement would be unconstitutional in the conventional sense.

2.2 The constitutional agreement of November 1981 and the 1982 *Re: Objection by Quebec to a Resolution to amend the Constitution*

In light of this Supreme Court of Canada decision, Prime Minister Trudeau decided to return to the negotiating table with the premiers of the ten provinces. At a constitutional conference held in Ottawa in November 1981, negotiations were difficult and several options emerged, but an agreement was finally reached between the federal government and the nine English-speaking provinces. Quebec, for its part, was excluded from the final agreement and made its opposition very clear.

The November 1981 agreement included the *Canadian Charter of Rights and Freedoms*, the constitutional amendment formula, greater protection for the rights of Indigenous peoples and the constitutionalization of the principle of equalization. A lengthy correspondence between Prime Minister Trudeau and Premier Lévesque followed (the correspondence is reproduced in the appendices of James Ross Hurley's book, *Amending Canada's Constitution. History, Processes, Problems and Prospects*).

Ultimately, the Constitution was patriated and the Quebec government asked the courts to rule on the possibility that the substantial degree of provincial consent put forward by the Supreme Court in its 1981 Reference might either require unanimous consent by the provinces, or include a veto power for Quebec. The matter once again reached the Supreme Court, which issued its decision in the *Re: Objection by Quebec to a Resolution to amend the Constitution*:

Re: Objection by Quebec to a Resolution to amend the Constitution, 1982 CanLII 219 (SCC), *[1982] 2 SCR 793.*

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...

VI—Whether Quebec has a conventional power of veto

It has already been indicated, with respect to the precedents which are said to establish the conventional rule of a power of veto for Quebec, that the appellant relied upon those which had been invoked by the majority opinion in the First Reference, at pp. 891 to 894.

The reason advanced by the appellant for the existence of a conventional rule of a power of veto for Quebec is the principle of duality, this principle being however understood in a special sense.

The expression "Canadian duality" is frequently used to refer to the two larger linguistic groups in Canada and to the constitutional protection afforded to the official languages by provisions such as s. 133 of the Constitution Act, 1867 and s. 23 of the Manitoba Act, 1870.

Counsel for the appellant characterized this aspect of the Canadian duality as the "federal" aspect and recognized that the central government had a role to play in this respect within the framework of federal institutions as well as outside Quebec. But he also made it clear that what he meant by the principle of duality embraced much more than linguistic or cultural differences. What was meant by the principle of duality was what

[Page 813]

counsel called its "Quebec" aspect which he defined more precisely in his factum at pp. 8 and 16:

[TRANSLATION] In the context of this reference, the word "duality" covers all the circumstances that have contributed to making Quebec a distinct society, since the foundation of Canada and long before, and the range of guarantees that were made to Quebec in 1867, as a province which the Task Force on Canadian Unity has described as "the stronghold of the French-Canadian people" and the "living heart of the French presence in North America". These circumstances and these guarantees extend far beyond matters of language and culture alone: the protection of the British North America Act was extended to all aspects of Quebec society—language, certainly, but also the society's values, its law, religion, education, territory, natural resources, government and the sovereignty of its legislative assembly over everything which was at the time of a "local" nature.

…

In 1867, the French Canadian minority became a majority within the Quebec Legislature. This is what accounts for the special nature of this province, and it is the reason underlying the convention that the powers of its Legislature cannot be reduced without consent.

One finds another expression of the principle of duality understood in this sense in the preamble of the above quoted Decree No. 3367-81, dated December 9, 1981, the fourth paragraph of which states in concise terms:

[TRANSLATION] WHEREAS Quebec forms a distinct society within the Canadian federation;

Another more elaborate expression of the principle of duality understood in the special sense urged by counsel for the appellant is to be found in a resolution passed by the Quebec National Assembly on December 1, 1981, and more particularly in condition no. 1 of the Resolution:

[TRANSLATION] …that the National Assembly of Quebec, having in mind the right of the people of Quebec to self-determination and exercising its historical right to be a party to and approve any change in the Constitution of Canada which might affect the rights and powers of Quebec, states that it cannot approve the proposal to patriate the constitution unless it includes the following conditions:

[Page 814]

"1. It shall be recognized that the two founding people of Canada are fundamentally equal, and that within the Canadian federation Quebec forms a society distinct by its language, culture and institutions, one which possesses all the attributes of a distinct national community;

"2. The constitutional amending formula:

a) shall either preserve Quebec's right of veto, or

b) shall be the one approved in the constitutional agreement signed by Quebec on April 16, 1981, affirming the right of Quebec not to have imposed on it any change which would reduce its powers or rights, and if such a reduction were to take place, to be given reasonable compensation as a matter of right;

"3. …

"4. …

These then are the precedents and the reason for the rule, according to counsel for the appellant.

It will not be necessary in our view to look further into these matters because this submission must in any event be rejected, the appellant having failed completely to demonstrate compliance with the most important requirement for establishing a convention, that is, acceptance or recognition by the actors in the precedents.

We have been referred to an abundance of material, speeches made in the course of parliamentary debates, reports of royal commissions, opinions of historians, political scientists, constitutional experts which endorse in one way or another the principle of duality within the meaning assigned to it by the appellant, and there can be no doubt that many Canadian statesmen, politicians and experts favoured this principle.

But neither in his factum nor in oral argument did counsel for the appellant quote a single statement made by any representative of the federal authorities recognizing either explicitly or by necessary implication that Quebec had a conventional power of veto over certain types of constitutional amendments. The statement made by Minister Favreau on November 20, 1964, and the passage to be found at pp. 46 and 47 of the White Paper have been quoted twice in the appellant's factum, as if they supported the veto rule as well

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as the unanimity one, but they refer only to unanimity and have been above dealt with in this respect.

Furthermore, a convention such as the one now asserted by Quebec would have to be recognized by other provinces. We have not been referred to and we are not aware of any statement by the actors in any of the other provinces acknowledging such a convention. Not only have we not been given any evidence of the acquiescence of other provinces but in the First Reference, three of them, Manitoba, Prince Edward Island and Alberta, explicitly pleaded in favour of the unanimity rule in their factums, a position compatible only with the principle of equality among the provinces and incompatible with a special power of veto for Quebec. It should also be noted that in the First Reference, Ontario and New Brunswick had taken the position that the constitutional amending process was not regulated by conventions involving the provinces.

In order to make up for these fundamental flaws in his submission, counsel for the appellant argued as follows in his factum:

> [TRANSLATION] In the opinion of the Attorney General, custom and a reason suffice by themselves to establish the normative nature of the rule.
>
> Counsel for the appellant also referred to Sir Ivor Jennings' test, adopted by this Court in the First Reference, and more particularly to the last part of this test:
>
> A single precedent with a good reason may be enough to establish the rule. A whole string of precedents without such a reason will be of no avail, unless it is perfectly certain that the persons concerned regarded them as bound by it.
>
> As we understand it, the contention was that recognition by the actors in the precedents is not an absolutely essential requirement for establishing a convention and that the last part of Jennings' test is an authority for that proposition.
>
> This contention is based on two sentences taken out of context and is an over-simplified and
>
> [Page 816]
>
> erroneous view of Jennings' test. In these two sentences, Jennings is merely expanding on what he said in the sentence immediately preceding them about the three requirements and illustrating the interrelation between them. He is not doing away with the requirement that the actors in the precedents believe that they were bound by a rule. Indeed Jennings insists in several passages of his book, The Law and the Constitution, that recognition or acquiescence is an essential ingredient of constitutional conventions. Thus he writes, at p. 81:
>
> "Convention" implies some form of agreement, whether expressed or implied…
>
> And at page 117:
>
> The conventions are like most fundamental rules of any constitution in that they rest essentially upon general acquiescence.
>
> And at page 135:
>
> …if the authority itself and those connected with it believe that they ought to do so, then the convention does exist. This is the ordinary rule applied to customary law. Practice alone is not enough. It must be normative.
>
> In the First Reference, at pp. 852, 857 and 883, these views were approved by all the members of this Court who adopted the definition of convention given by Freedman, C.J.M. in the Manitoba Reference, including, at p. 883, the following quotation of Hogg, Constitutional Law of Canada (1977), at p. 9:
>
> a convention is a rule which is regarded as obligatory by the officials to whom it applies.
>
> Recognition by the actors in the precedents is not only an essential element of conventions. In our opinion, it is the most important element since it is the normative one, the formal one which enables us unmistakably to distinguish a constitutional rule from a rule of convenience or from political expediency.
>
> Counsel for the appellant also contended in reply that recognition by the actors in the precedents need not be explicit, and this contention appears to be supported by the following statement of Jennings already quoted above:
>
> [Page 817]
>
> "Convention" implies some form of agreement, whether expressed or implied…
>
> Again, Jennings' assertion must be qualified. Some conventions have been formulated in writing, for instance in the Reports of Imperial Conferences or in the preamble of the Statute of Westminster, 1931. Such conventions can be said to have been expressly agreed upon in authoritative or official form.
>
> The majority of constitutional conventions however have not so been reduced to writing. Does this mean that they are based on implied agreements strictly so-called in that they have never been the object of any form of utterance? We do not think so.
>
> Conventions are commonly asserted or claimed by some political actors in more or less informal statements, while the other actors similarly acknowledge them in principle if not always in their application to particular facts. Conventions are analysed, dissected, commented upon and sometimes criticized albeit not to the point of rejection. But, in our view, a convention could not have remained wholly inarticulate, except perhaps at the inchoate stage when it has not yet been accepted as a binding rule. We know of no example of a convention being born while remaining completely unspoken, and none was cited to us. It seems to us that the contention of appellant's counsel to the effect that conventions need not be explicitly accepted is impossible to distinguish in practice from a denial of the requirement of acceptance by the actors in the precedents. It is precisely through reported statements by numerous actors that a convention could be identified in the First Reference. Such statements provide the only true test of recognition and, once again, unmistakably to distinguish a constitutional rule from a rule of convenience or from political expediency.
>
> In our view, the Quebec Court of Appeal was correct in holding that the appellant had failed to establish that Quebec had a conventional power of
>
> [Page 818]
>
> veto over constitutional amendments such as those in issue in the present Reference.

3 The amending formula of the Canadian Constitution

When the Canadian Constitution was finally patriated in 1982, it included a new, all-Canadian amending formula. It is a highly complicated process, with no fewer than five different ways of amending the Constitution, and a dozen different provisions. We will focus here as much on the text of the amendment formula as on a decision in which the Supreme Court of Canada discusses it at length.

3.1 Part V of the *Constitution Act, 1982*

The process for amending the Canadian Constitution is set out in Part V of the *Constitution Act, 1982,* and more specifically in sections 38 to 49. In addition to the five different ways in which amendments can be made (unanimity, 7/50, the bilateral procedure and unilateral amendments by the Federal Parliament or provincial legislatures), there are provisions for opting out of a constitutional amendment (with or without financial compensation), constitutional initiative, the Senate's suspensive veto, deadlines and the proclamation procedure.

> *Constitution Act, 1982,* being Schedule B to the *Canada Act 1982* (UK), 1982, c 11.
>
> […]
>
> PART V
>
> Procedure for Amending Constitution of Canada

General procedure for amending Constitution of Canada

38 (1) An amendment to the Constitution of Canada may be made by proclamation issued by the Governor General under the Great Seal of Canada where so authorized by

(a) resolutions of the Senate and House of Commons; and

(b) resolutions of the legislative assemblies of at least two-thirds of the provinces that have, in the aggregate, according to the then latest general census, at least fifty per cent of the population of all the provinces.

Majority of members

(2) An amendment made under subsection (1) that derogates from the legislative powers, the proprietary rights or any other rights or privileges of the legislature or government of a province shall require a resolution supported by a majority of the members of each of the Senate, the House of Commons and the legislative assemblies required under subsection (1).

Expression of dissent

(3) An amendment referred to in subsection (2) shall not have effect in a province the legislative assembly of which has expressed its dissent thereto by resolution supported by a majority of its members prior to the issue of the proclamation to which the amendment relates unless that legislative assembly, subsequently, by resolution supported by a majority of its members, revokes its dissent and authorizes the amendment.

Revocation of dissent

(4) A resolution of dissent made for the purposes of subsection (3) may be revoked at any time before or after the issue of the proclamation to which it relates.

Restriction on proclamation

39 (1) A proclamation shall not be issued under subsection 38(1) before the expiration of one year from the adoption of the resolution initiating the amendment procedure thereunder, unless the legislative assembly of each province has previously adopted a resolution of assent or dissent.

Idem

(2) A proclamation shall not be issued under subsection 38(1) after the expiration of three years from the adoption of the resolution initiating the amendment procedure thereunder.

Compensation

40 Where an amendment is made under subsection 38(1) that transfers provincial legislative powers relating to education or other cultural matters from provincial legislatures to Parliament, Canada shall provide reasonable compensation to any province to which the amendment does not apply.

Amendment by unanimous consent

41 An amendment to the Constitution of Canada in relation to the following matters may be made by proclamation issued by the Governor General under the Great Seal of Canada only where authorized by resolutions of the Senate and House of Commons and of the legislative assembly of each province:

(a) the office of the Queen, the Governor General and the Lieutenant Governor of a province;

(b) the right of a province to a number of members in the House of Commons not less than the number of Senators by which the province is entitled to be represented at the time this Part comes into force;

(c) subject to section 43, the use of the English or the French language;

(d) the composition of the Supreme Court of Canada; and

(e) an amendment to this Part.

Amendment by general procedure

42 (1) An amendment to the Constitution of Canada in relation to the following matters may be made only in accordance with subsection 38(1):

(a) the principle of proportionate representation of the provinces in the House of Commons prescribed by the Constitution of Canada;

(b) the powers of the Senate and the method of selecting Senators;

(c) the number of members by which a province is entitled to be represented in the Senate and the residence qualifications of Senators;

(d) subject to paragraph 41(d), the Supreme Court of Canada;

(e) the extension of existing provinces into the territories; and

(f) notwithstanding any other law or practice, the establishment of new provinces.

Exception

(2) Subsections 38(2) to (4) do not apply in respect of amendments in relation to matters referred to in subsection (1).

Amendment of provisions relating to some but not all provinces

43 An amendment to the Constitution of Canada in relation to any provision that applies to one or more, but not all, provinces, including

(a) any alteration to boundaries between provinces, and

(b) any amendment to any provision that relates to the use of the English or the French language within a province,

may be made by proclamation issued by the Governor General under the Great Seal of Canada only where so authorized by resolutions of the Senate and House of Commons and of the legislative assembly of each province to which the amendment applies.

Amendments by Parliament

44 Subject to sections 41 and 42, Parliament may exclusively make laws amending the Constitution of Canada in relation to the executive government of Canada or the Senate and House of Commons.

Amendments by provincial legislatures

45 Subject to section 41, the legislature of each province may exclusively make laws amending the constitution of the province.

Initiation of amendment procedures

46 (1) The procedures for amendment under sections 38, 41, 42 and 43 may be initiated either by the Senate or the House of Commons or by the legislative assembly of a province.

Revocation of authorization

(2) A resolution of assent made for the purposes of this Part may be revoked at any time before the issue of a proclamation authorized by it.

Amendments without Senate resolution

47 (1) An amendment to the Constitution of Canada made by proclamation under section 38, 41, 42 or 43 may be made without a resolution of the Senate authorizing the issue of the proclamation if, within one hundred and eighty days after the adoption by the House of Commons of a resolution authorizing its issue, the Senate has not adopted such a resolution and if, at any time after the expiration of that period, the House of Commons again adopts the resolution.

Computation of period

(2) Any period when Parliament is prorogued or dissolved shall not be counted in computing the one hundred and eighty day period referred to in subsection (1).

Advice to issue proclamation

48 The Queen's Privy Council for Canada shall advise the Governor General to issue a proclamation under this Part forthwith on the adoption of the resolutions required for an amendment made by proclamation under this Part.

Constitutional conference

49 A constitutional conference composed of the Prime Minister of Canada and the first ministers of the provinces shall be convened by the Prime Minister of Canada within fifteen years after this Part comes into force to review the provisions of this Part.

In addition, the *Constitution Act, 1982*, also contained a Part IV on "Constitutional Conference":

Constitution Act, 1982, being Schedule B to the *Canada Act 1982* (UK), 1982, c 11.

[…]

Part IV – Constitutional Conference

37 (1) A constitutional conference composed of the Prime Minister of Canada and the first ministers of the provinces shall be convened by the Prime Minister of Canada within one year after this Part comes into force.

(2) The conference convened under subsection (1) shall have included in its agenda an item respecting constitutional matters that directly affect the aboriginal peoples of Canada, including the identification and definition of the rights of those peoples to be included in the Constitution of Canada, and the Prime Minister of Canada shall invite representatives of those peoples to participate in the discussions on that item.

(3) The Prime Minister of Canada shall invite elected representatives of the governments of the Yukon Territory and the Northwest Territories to participate in the discussions on any item on the agenda of the conference convened under subsection (1) that, in the opinion of the Prime Minister, directly affects the Yukon Territory and the Northwest Territories.

This Part was automatically repealed in 1983, in accordance with section 54 of the *Constitution Act 1982*:

Constitution Act, 1982, being Schedule B to the *Canada Act 1982* (UK), 1982, c 11.

54 Part IV is repealed on the day that is one year after this Part comes into force and this section may be repealed and this Act renumbered, consequentially upon the repeal of Part IV and this section, by proclamation issued by the Governor General under the Great Seal of Canada.

3.2 The 2014 *Reference re: Senate Reform*

In 2014, more than 30 years after Patriation, the Supreme Court issued a decision in which it had to take an in-depth look at the process of amending the Constitution, in order to give answers on the procedures applicable to different scenarios for reforming or abolishing the Senate. In this decision, the Court discusses the amendment procedure at length. This is the most developed judicial opinion we have on Part V of the *Constitution Act, 1982*.

Reference re Senate Reform, 2014 SCC 32.

[…]

IV. The Part V Amending Procedures

[21] The statute that created the Senate — the *Constitution Act, 1867* — forms part of the Constitution of Canada and can only be amended in accordance with the Constitution's procedures for amendment: s. 52(2) and (3), *Constitution Act, 1982*. Consequently, we must determine whether the changes contemplated in the Reference amend the Constitution and, if so, which amendment procedures are applicable.

[22] Before answering these questions, we discuss constitutional amendment in Canada generally. We examine in turn the nature and content of the Constitution of Canada, the concept of constitutional amendment, and the Constitution's procedures for amendment.

A. *The Constitution of Canada*

[23] The Constitution of Canada is "a comprehensive set of rules and principles" that provides "an exhaustive legal framework for our system of government": *Reference re Secession of Quebec*, 1998 CanLII 793 (SCC), [1998] 2 SCR 217 ("*Secession Reference*"), at para. 32. It defines the powers of the constituent elements of Canada's system of government — the executive, the legislatures, and the courts — as well as the division of powers between the federal and provincial governments: *Reference re Remuneration of Judges of the Provincial Court of Prince Edward Island*, 1997 CanLII 317 (SCC), [1997] 3 SCR 3 ("*Provincial Court Judges Reference*"), at para. 108. And it governs the state's relationship with the individual. Governmental power cannot lawfully be exercised, unless it conforms to the Constitution: s. 52(1), *Constitution Act, 1982*; *Secession Reference*, at paras. 70-78; *Reference re Supreme Court Act*, ss. 5 and 6, 2014 SCC 21 ("*Supreme Court Act Reference*"), at para. 89.

[24] The Constitution of Canada is defined in s. 52(2) of the *Constitution Act, 1982* as follows:

52. …

(2) The Constitution of Canada includes

(*a*) the *Canada Act 1982*, including this Act;

(*b*) the Acts and orders referred to in the schedule; and

(*c*) any amendment to any Act or order referred to in paragraph (*a*) or (*b*).

The documents listed in the Schedule to the *Constitution Act, 1982* as forming part of the Constitution include the *Constitution Act, 1867*. Section 52 does not provide an exhaustive definition of the content of the Constitution of Canada: *Supreme Court Act Reference*, at paras. 97-100; *Secession Reference*, at para. 32.

[25] The Constitution implements a structure of government and must be understood by reference to "the constitutional text itself, the historical context, and previous judicial interpretations of constitutional meaning": *Secession Reference*, at para. 32; see generally H. Cyr, "L'absurdité du critère scriptural pour qualifier la constitution" (2012), 6 *J.P.P.L.* 293. The rules of constitutional interpretation require that constitutional documents be interpreted in a broad and purposive manner and placed in their proper linguistic, philosophic, and historical contexts: *Hunter* v. *Southam Inc*., 1984 CanLII 33 (SCC), [1984] 2 SCR 145, at pp. 155-56; *Edwards* v. *Attorney-General for Canada*, 1929 CanLII 438 (UK JCPC), [1930] A.C. 124 (P.C.), at p. 136; *R*. v. *Big M Drug Mart Ltd*., 1985 CanLII 69 (SCC), [1985] 1 SCR 295, at p. 344; *Supreme Court Act Reference*, at para. 19. Generally, constitutional interpretation must be informed by the foundational principles of the Constitution, which include principles such as federalism, democracy, the protection of minorities, as well as constitutionalism and the rule of law: *Secession Reference*; *Provincial Court Judges Reference*; *New Brunswick Broadcasting Co*. v. *Nova Scotia (Speaker of the House of Assembly*), 1993 CanLII 153 (SCC), [1993] 1 SCR 319; *Reference re Manitoba Language Rights*, 1985 CanLII 33 (SCC), [1985] 1 SCR 721.

[26] These rules and principles of interpretation have led this Court to conclude that the Constitution should be viewed as having an "internal architecture", or "basic constitutional structure": *Secession Reference*, at para. 50; *OPSEU v. Ontario (Attorney General)*, 1987 CanLII 71 (SCC), [1987] 2 SCR 2, at p. 57; see also *Supreme Court Act Reference*, at para. 82. The notion of architecture expresses the principle that "[t]he individual elements of the Constitution are linked to the others, and must be interpreted by reference to the structure of the Constitution as a whole": *Secession Reference*, at para. 50; see also the discussion on this Court's approach to constitutional interpretation in M. D. Walters, "Written Constitutions and Unwritten Constitutionalism", in G. Huscroft, ed., *Expounding the Constitution: Essays in Constitutional Theory* (2008), 245, at pp. 264-65. In other words, the Constitution must be interpreted with a view to discerning the structure of government that it seeks to implement. The assumptions that underlie the text and the manner in which the constitutional provisions are intended to interact with one another must inform our interpretation, understanding, and application of the text.

B. *Amendments to the Constitution of Canada*

[27] The concept of an "amendment to the Constitution of Canada", within the meaning of Part V of the *Constitution Act, 1982*, is informed by the nature of the Constitution and its rules of interpretation. As discussed, the Constitution should not be viewed as a mere collection of discrete textual provisions. It has an architecture, a basic structure. By extension, amendments to the Constitution are not confined to textual changes. They include changes to the Constitution's architecture.

C. *The Part V Amending Procedures*

[28] Part V of the *Constitution Act, 1982* provides the blueprint for how to amend the Constitution of Canada (see Appendix). It tells us what changes Parliament and the provincial legislatures can make unilaterally, what changes require substantial federal and provincial consent, and what changes require unanimous agreement.

(1) History

[29] The Part V amending formula reflects the principle that constitutional change that engages provincial interests requires both the consent of Parliament and a significant degree of provincial consent. Prior to patriation, constitutional amendment in Canada required the adoption of a law by the British Parliament following a joint resolution addressed to it by the Senate and the House of Commons, since the *Constitution Act, 1867* was an Act of the British Parliament. There was no formal requirement for consultation with the provinces. However, in practice, throughout the 20th century, the federal government consulted with the provinces on constitutional amendments that directly affected federal-provincial relations, and obtained their consent before putting a joint address to the British Parliament: Canada, Minister of Justice, *The Amendment of the Constitution of Canada* (1965) ("Favreau"), at pp. 15-16. By the time of patriation, this practice had ripened into a constitutional convention requiring substantial consent to constitutional change directly affecting federal-provincial relations: *Reference re Resolution to amend the Constitution*, 1981 CanLII 25 (SCC), [1981] 1 SCR 753 (the "*Patriation Reference*"), at pp. 889-95; *Reference re Objection by Quebec to a Resolution to amend the Constitution*, 1982 CanLII 219 (SCC), [1982] 2 SCR 793.

[30] Beginning in the 1930s, the federal government and the provinces held a series of conferences to discuss the possibility of adopting a formal amending formula. This produced several proposals: see in particular the Fulton-Favreau formula in Favreau, at pp. 110-15; and the Victoria Charter, in *Constitutional Conference: Proceedings* (1971), App. B. In October 1980, amid efforts to achieve broad constitutional reform, the federal government tabled a new proposed amending formula in the House of Commons and the Senate: "Proposed Resolution for a Joint Address to Her Majesty the Queen respecting the Constitution of Canada", in *The Canadian Constitution 1980: Proposed Resolution respecting the Constitution of Canada* (1980). In response, the provincial premiers developed a counter-proposal that became the template for Part V of the *Constitution Act, 1982* — the "April Accord" of 1981: *Constitutional Accord: Canadian Patriation Plan* (1981).

[31] The April Accord, and ultimately Part V, reflect the political consensus that the provinces must have a say in constitutional changes that engage their interests. The "underlying purpose" of these documents is "to constrain unilateral federal powers to effect constitutional change": P. J. Monahan and B. Shaw, *Constitutional Law* (4th ed. 2013), at p. 204; *Supreme Court Act Reference*, at paras. 98-100. They also consecrate the principle of "the constitutional equality of provinces as equal partners in Confederation": *Constitutional Accord: Canadian Patriation Plan*, General Comment in Part A, at p. 1. In principle, no province stands above the others with respect to constitutional amendments, and all provinces are given the same rights in the process of amendment. The result is an amending formula designed to foster dialogue between the federal government and the provinces on matters of constitutional change, and to protect Canada's constitutional *status quo* until such time as reforms are agreed upon.

(2) The Amending Procedures

[32] Part V contains four categories of amending procedures. The first is the general amending procedure (s. 38, complemented by s. 42), which requires a substantial degree of consensus between Parliament and the provincial legislatures. The second is the unanimous consent procedure (s. 41), which applies to certain changes deemed fundamental by the framers of the *Constitution Act, 1982*. The third is the special arrangements procedure (s. 43), which applies to amendments in relation to provisions of the Constitution that apply to some, but not all, of the provinces. The fourth is made up of the unilateral federal and provincial procedures, which allow unilateral amendment of aspects of government institutions that engage purely federal or provincial interests (ss. 44 and 45).

(a) *The General Amending Procedure*

[33] Section 38 of the *Constitution Act, 1982* provides:

38. (1) An amendment to the Constitution of Canada may be made by proclamation issued by the Governor General under the Great Seal of Canada where so authorized by

(a) resolutions of the Senate and House of Commons; and

(b) resolutions of the legislative assemblies of at least two-thirds of the provinces that have, in the aggregate, according to the then latest general census, at least fifty per cent of the population of all the provinces.

(2) An amendment made under subsection (1) that derogates from the legislative powers, the proprietary rights or any other rights or privileges of the legislature or government of a province shall require a resolution supported by a majority of the members of each of the Senate, the House of Commons and the legislative assemblies required under subsection (1).

(3) An amendment referred to in subsection (2) shall not have effect in a province the legislative assembly of which has expressed its dissent thereto by resolution supported by a majority of its members prior to the issue of the proclamation to which the amendment relates unless that legislative assembly, subsequently, by resolution supported by a majority of its members, revokes its dissent and authorizes the amendment.

(4) A resolution of dissent made for the purposes of subsection (3) may be revoked at any time before or after the issue of the proclamation to which it relates.

[34] The process set out in s. 38 is the general rule for amendments to the Constitution of Canada. It reflects the principle that substantial provincial consent must be obtained for constitutional change that engages provincial interests. Section 38 codifies what is colloquially referred to as the "7/50" procedure — amendments to the Constitution of Canada must be authorized by resolutions of the Senate, the House of Commons, and legislative assemblies of at least seven provinces whose population represents, in the aggregate, at least half of the current population of all the provinces. Additionally, it grants to the provinces the right to "opt out" of constitutional amendments that derogate from "the legislative powers, the proprietary rights or any other rights or privileges of the legislature or government of a province".

[35] By requiring significant provincial consensus while stopping short of unanimity, s. 38 "achieves a compromise between the demands of legitimacy and flexibility": J. Cameron, "To Amend the Process of Amendment", in G.-A. Beaudoin et al., *Federalism for the Future: Essential Reforms* (1998), 315, at p. 324. Its "underlying purpose … is to protect the provinces from having their rights or privileges negatively affected without their consent": Monahan and Shaw, at p. 192.

[36] The s. 38 procedure represents the balance deemed appropriate by the framers of the *Constitution Act, 1982* for most constitutional amendments, apart from those contemplated in one of the other provisions in Part V. Section 38 is thus the procedure of general application for amendments to the Constitution of Canada. As a result, the other procedures in Part V should be construed as exceptions to the general rule.

[37] Section 42 complements s. 38 by expressly identifying certain categories of amendments to which the 7/50 procedure in s. 38(1) applies:

42. (1) An amendment to the Constitution of Canada in relation to the following matters may be made only in accordance with subsection 38(1):

(a) the principle of proportionate representation of the provinces in the House of Commons prescribed by the Constitution of Canada;

(b) the powers of the Senate and the method of selecting Senators;

(c) the number of members by which a province is entitled to be represented in the Senate and the residence qualifications of Senators;

(d) subject to paragraph 41(d), the Supreme Court of Canada;

(e) the extension of existing provinces into the territories; and

(f) notwithstanding any other law or practice, the establishment of new provinces.

(2) Subsections 38(2) to (4) do not apply in respect of amendments in relation to matters referred to in subsection (1).

[38] This provision serves two purposes. First, the express inclusion of certain matters in s. 42 provided the framers of the *Constitution Act, 1982* with greater certainty that the 7/50 procedure would apply to amendments in relation to those matters: J. D. Whyte, "Senate Reform: What Does the Constitution Say?", in J. Smith, ed., *The Democratic Dilemma: Reforming the Canadian Senate* (2009), 97, at p. 102. Second, the provincial right to "opt out" from certain amendments contemplated in s. 38(2) to (4) does not apply to the categories of amendments in s. 42. This ensures that amendments made under s. 42 will apply consistently to all the provinces and allows the changes contemplated in the provision to be implemented in a coherent manner throughout Canada.

[39] Section 42(1) (b) of the *Constitution Act, 1982* expressly makes the general amendment procedure applicable to amendments in relation to "the powers of the Senate and the method of selecting Senators". We discuss below the meaning of this statutory language and its bearing on the questions before us.

(b) *The Unanimous Consent Procedure*

[40] Section 41 of the *Constitution Act, 1982* sets out an amending procedure requiring unanimous consent in relation to certain matters:

41. An amendment to the Constitution of Canada in relation to the following matters may be made by proclamation issued by the Governor General under the Great Seal of Canada only where authorized by resolutions of the Senate and House of Commons and of the legislative assembly of each province:

(a) the office of the Queen, the Governor General and the Lieutenant Governor of a province;

(b) the right of a province to a number of members in the House of Commons not less than the number of Senators by which the province is entitled to be represented at the time this Part comes into force;

(c) subject to section 43, the use of the English or the French language;

(d) the composition of the Supreme Court of Canada; and

(e) an amendment to this Part.

[41] Section 41 requires the unanimous consent of the Senate, the House of Commons, and all the provincial legislative assemblies for the categories of amendments enumerated in the provision. It "accords the highest level of constitutional protection and entrenchment" to the enumerated matters: W. J. Newman, "Living with the Amending Procedures: Prospects for Future Constitutional Reform in Canada" (2007), 37 *S.C.L.R.* (2d) 383, at p. 388. It is an exception to the general amending procedure. It creates an exacting amending procedure that is designed to apply to certain fundamental changes to the Constitution of Canada. Professor Pelletier aptly describes the rationale for requiring unanimity for the enumerated categories of amendments:

[translation] . . . the unanimity rule provided for in section 41 of the 1982 Act is justified by the need . . . to give each of the partners of Canada's federal compromise a veto on those topics that are considered the most essential to the survival of the state.

(B. Pelletier, *La modification constitutionnelle au Canada* (1996), at p. 208)

(c) *The Special Arrangements Procedure*

[42] Section 43 of the *Constitution Act, 1982* provides:

43. An amendment to the Constitution of Canada in relation to any provision that applies to one or more, but not all, provinces, including

(a) any alteration to boundaries between provinces, and

(*b*) any amendment to any provision that relates to the use of the English or the French language within a province,

may be made by proclamation issued by the Governor General under the Great Seal of Canada only where so authorized by resolutions of the Senate and House of Commons and of the legislative assembly of each province to which the amendment applies.

[43] Section 43 applies to amendments in relation to provisions of the Constitution of Canada that apply to some, but not all, of the provinces. The determination of its scope and of the effects of its interaction with other provisions of Part V presents significant conceptual difficulties, leading Professor Scott to term it the "Rubik's Cube" of Part V: S. A. Scott, "Pussycat, Pussycat or Patriation and the New Constitutional Amendment Processes" (1982), 20 *U.W.O. L. Rev.* 247, at pp. 292-98. We will limit our remarks on s. 43 to what is necessary to answer the Reference questions before us.

[44] At the very least, s. 43 is triggered when a constitutional amendment relates to a provision of the Constitution of Canada that contains a "special arrangement" applicable only to one or several, but not all, of the provinces. In such cases, the use of the 7/50 procedure would overshoot the mark, by making adoption of the amendment contingent upon the consent of provinces to which the provision does not apply. Section 43 also serves to ensure that those provisions cannot be amended without the consent of the provinces for which the arrangement was devised: Monahan and Shaw, at p. 210.

(d) *The Unilateral Federal and Provincial Procedures*

[45] Sections 44 and 45 of the *Constitution Act, 1982* provide for unilateral federal and provincial procedures of amendment:

44. Subject to sections 41 and 42, Parliament may exclusively make laws amending the Constitution of Canada in relation to the executive government of Canada or the Senate and House of Commons.

45. Subject to section 41, the legislature of each province may exclusively make laws amending the constitution of the province.

[46] These sections fulfill the same basic function as ss. 91(1) and 92(1) of the *Constitution Act, 1867*, which were repealed when the *Constitution Act, 1982* was enacted: *Constitutional Accord: Canadian Patriation Plan*, Explanatory Notes 7 and 8; P. W. Hogg, *Constitutional Law of Canada* (loose-leaf), at pp. 4-31 to 4-34; Pelletier, "Réponses suggérées", at pp. 462-63; G. Tremblay, "La portée élargie de la procédure bilatérale de modification de la Constitution du Canada" (2011), 41 *R.G.D.* 417, at p. 428; W. J. Newman, "Defining the 'Constitution of Canada' Since 1982: The Scope of the Legislative Powers of Constitutional Amendment under Sections 44 and 45 of the *Constitution Act, 1982*" (2003), 22 *S.C.L.R.* (2d) 423, at p. 494; Pelletier, *La modification constitutionnelle au Canada*, at pp. 117 and 181; see also R. I. Cheffins, "The Constitution Act, 1982 and the Amending Formula: Political and Legal Implications" (1982), 4 *S.C.L.R.*43, at pp. 52-53.

[47] Sections 91(1) and 92(1) of the *Constitution Act, 1867* granted the federal and provincial governments the power to amend their respective constitutions, provided that the amendments did not engage the interests of the other level of government. Section 91(1) was worded broadly, allowing Parliament to amend the "Constitution of Canada", subject to certain restrictions. In 1980, the federal government asked this Court whether Parliament could unilaterally implement sweeping reforms to the Senate under s. 91(1). This Court concluded that s. 91(1) allowed Parliament to amend "the constitution of the federal government in matters of interest only to that government": *Upper House Reference*, at p. 71. It followed that s. 91(1) did not give Parliament the power to unilaterally make constitutional changes such as the abolition of the Senate or the modification of the Senate's essential features, since these changes engaged the interests of the provinces as well as those of the federal government: *ibid*., at pp. 74-75 *et seq*. Likewise, s. 92(1) allowed the provincial legislatures to enact amendments only in relation to "the operation of an organ of the government of the province, provided it is not otherwise entrenched as being indivisibly related to the implementation of the federal principle or to a fundamental term or condition of the union": *OPSEU*, at p. 40, per Beetz J.

[48] As the successors to those provisions, ss. 44 and 45 give the federal and provincial legislatures the ability to unilaterally amend certain aspects of the Constitution that relate to their own level of government, but which do not engage the interests of the other level of government. This limited ability to make changes unilaterally reflects the principle that Parliament and the provinces are equal stakeholders in the Canadian constitutional design. Neither level of government acting alone can alter the fundamental nature and role of the institutions provided for in the Constitution. This said, those institutions can be maintained and even changed to some extent under ss. 44 and 45, provided that their fundamental nature and role remain intact.

The remainder of the *Senate Reference* is below, in the subsection on failed Senate reforms.

4 Multilateral constitutional amendments since 1982

Since the 1982 constitutional Patriation, Canada's Constitution has been amended nine times by a complex procedure. We deliberately leave aside here the two unilateral formulas (federal and provincial), to which we'll return briefly later. What particularly interests us here are the amendments that required some degree of federal-provincial consent.

Of these nine amendments, only one (the first, in 1983) was a multilateral one, involving the 7/50 formula. All the others were bilateral amendments, between the two houses of the Federal Parliament and a given province, made under s 43 of the *Constitution Act, 1982*. We'll take a closer look here at each of these amendments to the Constitution of Canada.

4.1 The *Constitution Amendment Proclamation, 1983*

Immediately after Patriation, constitutional negotiations continued, with a particular focus on issues specific to Indigenous peoples. A constitutional conference was held in 1983, as provided for in section 37 of the *Constitution Act, 1982*. At this conference, an agreement was reached on a multilateral amendment to Canada's Constitution, with all the provinces (except Quebec, which did not participate in the negotiations) in favour, in addition to the federal government.

Among other things, this constitutional amendment modified sections 25 and 35 of the *Constitution Act, 1982*, and added section 35.1 to the *Act*, providing for the participation of Indigenous peoples in any future exercise in which the constitutional provisions concerning them might be amended.

Constitution Amendment Proclamation, 1983, SI/84-102.

...

SCHEDULE

PROCLAMATION AMENDING THE CONSTITUTION OF CANADA

1. Paragraph 25 (b) of the "Constitution Act, 1982" is repealed and the following substituted therefor:

"(b) any rights or freedoms that now exist by way of land claims agreements or may be so acquired."

2. Section 35 of the "Constitution Act, 1982" is amended by adding thereto the following subsections:

"(3) For greater certainty, in subsection "treaty rights" includes rights that now exist by way of land claims agreements or may be so acquired.

Notwithstanding any other provision of this Act, the aboriginal and treaty rights referred to in subsection (1) are guaranteed equally to male and female persons."

3. The said Act is further amended by adding thereto, immediately after section 35 thereof, the following section:

"35.1 The government of Canada and the provincial governments are committed to the principle that, before any amendment is made to Class 24 of section 91 of the "Constitution Act, 1867", to section 25 of this Act or to this Part,

(a) a constitutional conference that includes in its agenda an item relating to the proposed amendment, composed of the Prime Minister of Canada and the first ministers of the provinces, will be convened by the Prime Minister of Canada; and

(b) the Prime Minister of Canada will invite representatives of the aboriginal peoples of Canada to participate in the discussions on that item."

4. The said Act is further amended by adding thereto, immediately after section 37 thereof, the following Part:

"PART IV. 1

CONSTITUTIONAL CONFERENCES

37.1 – (1) In addition to the conference convened in March 1983, at least two constitutional conferences composed of the Prime Minister of Canada and the first ministers of the provinces shall be convened by the Prime Minister of Canada, the first within three years after April 17, 1982 and the second within five years after that date.

(2) Each conference convened under sub-section (1) shall have included in its agenda constitutional matters that directly affect the aboriginal peoples of Canada, and the Prime Minister of Canada shall invite representatives of those peoples to participate in the discussions on those matters.

(3) The Prime Minister of Canada shall invite elected representatives of the governments of the Yukon Territory and the Northwest Territories to participate in the discussions on any item on the agenda of a conference convened under subsection (1) that, in the opinion of the Prime Minister, directly affects the Yukon Territory and the Northwest Territories.

(4) Nothing in this section shall be construed so as to derogate from subsection 35 (1)."

5. The said Act is further amended by adding thereto, immediately after section 54 thereof, the following section:

"54.1 Part iv.l and this section are repealed on April 18, 1987."

6. The said Act is further amended by adding thereto the following section:

"61. A reference to the "Constitution Acts, 1867 to 1982" shall be deemed to include a reference to the "Constitution Amendment Proclamation, 1983".

CITATION

7. This Proclamation may be cited as the "Constitution Amendment Proclamation, 1983".

4.2 The Constitution Amendment Proclamation, 1987 (Newfoundland Act)

The next constitutional amendment came in 1987 and applied to the province of Newfoundland. The purpose of this constitutional amendment was to extend the right to religious education to the Pentecostal Church in Newfoundland. This issue will then be the subject of further amendments for this province.

Constitution Amendment Proclamation, 1987 (*Newfoundland Act*), SI/88-11.

...

SCHEDULE

Amendment to the Constitution of Canada

1. (1) Section 3 of the Newfoundland Act is renumbered as subsection 3(1).

(2) Section 3 of the said Act is further amended by adding thereto the following subsection:

References "(2) A reference to this Act, or a reference to the Terms of Union of Newfoundland with Canada set out in the Schedule to this Act, shall be deemed to include a reference to any amendments thereto."

2. (1) Term 17 of the Terms of Union of Newfoundland with Canada set out in the Schedule to the said Act is renumbered as Term 17(1).

(2) Term 17 of the Terms of Union of Newfoundland with Canada set out in the Schedule to the said Act is further amended by adding thereto the following:

"(2) For the purposes of paragraph one of this Term, the Pentecostal Assemblies of Newfoundland have in Newfoundland all the same rights and privileges with respect to denominational schools and denominational colleges as any other class or classes of persons had by law in Newfound- land at the date of Union, and the words "all such schools" in paragraph (a) of paragraph one of this Term and the words "all such colleges" in paragraph (1)) of paragraph one of this Term include, respectively, the schools and the col- leges of the Pentecostal Assemblies of Newfoundland."

Citation

3. This Amendment may be cited as the *Constitution Amendment, 1987* (*Newfoundland Act*).

4.3 The Constitution Amendment Proclamation, 1993 (New Brunswick Act)

The 1993 constitutional amendment in New Brunswick concerned bilingualism in the province. The main effect of this amendment was to add section 16.1 to the *Canadian Charter of Rights and Freedoms*, which provides that the "English linguistic community and the French linguistic

community in New Brunswick have equality of status and equal rights and privileges, including the right to distinct educational institutions and such distinct cultural institutions as are necessary for the preservation and promotion of those communities".

Constitution Amendment Proclamation, 1993 (*New Brunswick Act*), SI/93-54.

...

SCHEDULE

Amendment to the Constitution of Canada

1. The "Constitution Act, 1982" is amended by adding thereto, immediately after section 16 thereof, the following section:

"16.1 (1) The English linguistic community and the French linguistic community in New Brunswick have equality of status and equal rights and privileges, including the right to distinct educational institutions and such distinct cultural institutions as are necessary for the preservation and promotion of those communities.

(2) The role of the legislature and government of New Brunswick to preserve and promote the status, rights and privileges referred to in subsection (1) is affirmed."

2. This Amendment may be cited as the "Constitution Amendment, 1993 (New Brunswick)".

4.4 *The Constitution Amendment Proclamation, 1993 (Prince Edward Island)*

In the same year, the Constitution was amended once again, but this time as part of a bilateral amendment with the province of Prince Edward Island. This amendment was necessary to authorize the construction of the Confederation Bridge, in order to replace ferry services to Prince Edward Island.

Constitution Amendment Proclamation, 1993 (*Prince Edward Island*), SI/94-50.

...

SCHEDULE

Amendment to the Constitution of Canada

1. The Schedule to the Prince Edward Island Terms of Union is amended by adding thereto, after the portion that reads

"And such other charges as may be incident to, and connected with, the services which by the "British North America Act, 1867 appertain to the General Government, and as are or may be allowed to the other Provinces;"

the following

"That a fixed crossing joining the Island to the mainland may be substituted for the steam service referred to in this Schedule;

That, for greater certainty, nothing in this Schedule prevents the imposition of tolls for the use of such a fixed crossing between the Island and the mainland, or the private operation of such a crossing;"

2. This Amendment may be cited as the "Constitution Amendment, 1993 (Prince Edward Island)".

4.5 *The Constitutional Amendment, 1997 (Newfoundland Act)*

Newfoundland's school system was again the subject of a bilateral constitutional amendment in 1997. This amendment authorized the province to change its denominational school system. It should be noted that this amendment also enabled the use of section 47 of the *Constitution Act, 1982*, whereby the House of Commons was able to vote in place of the Senate, having seen a 180-day delay pass after its own resolution.

Constitutional Amendment, 1997 (*Newfoundland Act*), SI/97-55.

...

SCHEDULE

Amendment to the Constitution of Canada

1. Term 17 of the Terms of Union of Newfoundland with Canada set out in the schedule to the Newfoundland Act is repealed and the following substituted therefor:

"17. In lieu of section ninety-three of the Constitution Act, 1867, the following shall apply in respect of the Province of Newfoundland:

In and for the Province of Newfoundland, the Legislature shall have exclusive authority to make laws in relation to education but

(a) except as provided in paragraphs (b) and (c), schools established, maintained and operated with public funds shall be denominational schools, and any class of persons having rights under this Term as it read on January 1, 1995 shall continue to have the right to provide for religious education, activities and observances for the children of that class in those schools, and the group of classes that formed one integrated school system by agreement in 1969 may exercise the same rights under this Term as a single class of persons;

(b) subject to provincial legislation that is uniformly applicable to all schools specifying conditions for the establishment or continued operation of schools,

(i) any class of persons referred to in paragraph (a) shall have the right to have a publicly funded denominational school established, maintained and operated especially for that class, and

(ii) the Legislature may approve the establishment, maintenance and operation of a publicly funded school, whether denominational or non-denominational;

(c) where a school is established, maintained and operated pursuant to subparagraph (b)(i), the class of persons referred to in that subparagraph shall continue to have the right to provide for religious education, activities and observances and to direct the teaching of aspects of curriculum affecting religious beliefs, student admission policy and the assignment and dismissal of teachers in that school;

(d) all schools referred to in paragraphs (a) and (b) shall receive their share of public funds in accordance with scales determined on a non-discriminatory basis from time to time by the Legislature; and

(e) if the classes of persons having rights under this Term so desire, they shall have the right to elect in total not less than two thirds of the members of a school board, and any class so desiring shall have the right to elect the portion of that total that is proportionate to the population of that class in the area under the board's jurisdiction."

2. This Amendment may be cited as the *Constitution Amendment, 1997* (*Newfoundland Act*).

4.6 *The Constitutional Amendment, 1997 (Quebec)*

That same year, the school system in the province of Quebec was also the subject of a bilateral constitutional amendment. Indeed, the *Constitutional Amendment, 1997 (Quebec)* allowed the province to replace its denominational school system with a linguistic one.

Constitutional Amendment, 1997 (Quebec), SI/97-141.

...

SCHEDULE

Amendment to the Constitution of Canada

Constitution Act, 1867

1. The Constitution Act, 1867, is amended by adding, immediately after section 93, the following:

"93A. Paragraphs (1) to (4) of section 93 do not apply to Quebec."

2. This Amendment may be cited as the *Constitution Amendment, 1997 (Quebec)*.

4.7 *Constitutional Amendment, 1998 (Newfoundland Act)*

The 1998 amendment in Newfoundland also concerns the province's school system, its aim being to enable the province to abolish the denominational school system.

Constitutional Amendment, 1998 (Newfoundland Act), SI/98-25.

...

SCHEDULE

Amendment to the Constitution of Canada

1. Term 17 of the Terms of Union of Newfoundland with Canada set out in the Schedule to the Newfoundland Act is repealed and the following substituted therefor:

"17. (1) In lieu of section ninety-three of the Constitution Act, 1867, this Term shall apply in respect of the Province of Newfoundland.

(2) In and for the Province of Newfoundland, the Legislature shall have exclusive authority to make laws in relation to education, but shall provide for courses in religion that are not specific to a religious denomination.

(3) Religious observances shall be permitted in a school where requested by parents."

2. This Amendment may be cited as the *Constitution Amendment, 1998 (Newfoundland Act)*.

4.8 The *Constitutional Amendment, 2001 (Newfoundland and Labrador)*

The 2001 amendment, still in Newfoundland (and Labrador), concerned the name of this province, its purpose being to formally recognize the addition of the reference to "Labrador" in its designation.

Constitutional Amendment, 2001 (Newfoundland and Labrador), SI/2001-117.

...

SCHEDULE

Amendment to the Constitution of Canada

1. The Terms of Union of Newfoundland with Canada set out in the Schedule to the Newfoundland Act are amended by striking out the words "Province of Newfoundland" wherever they occur and substituting the words "Province of Newfoundland and Labrador".

2. Paragraph (g) of Term 33 of the Schedule to the Act is amended by striking out the word "Newfoundland" and substituting the words "the Province of Newfoundland and Labrador".

3. Term 38 of the Schedule to the Act is amended by striking out the words "Newfoundland veterans" wherever they occur and substituting the words "Newfoundland and Labrador veterans".

4. Term 42 of the Schedule to the Act is amended by striking out the words "Newfoundland merchant seamen" and "Newfoundland merchant seaman" wherever they occur and substituting the words "Newfoundland and Labrador merchant seamen" and "Newfoundland and Labrador merchant seaman", respectively.

5. Subsection (2) of Term 46 of the Schedule to the Act is amended by adding immediately after the word "Newfoundland" where it first occurs the words "and Labrador".

6. This Amendment may be cited as the *Constitution Amendment, 2001 (Newfoundland and Labrador)*.

4.9 *The Constitutional Amendment, 2022 (Saskatchewan Act)*

After more than 20 years without a formal constitutional amendment, the Constitution was amended again in 2022, to abolish a tax exemption enjoyed by a rail company in the province of Saskatchewan. Of particular interest here is the fact that the amendment is retroactive to August 29, 1966, when the company initially agreed to suspend the exemption.

Constitutional Amendment, 2022 (Saskatchewan Act), SI/2022-25.

...

SCHEDULE

Amendment to the Constitution of Canada

1 Section 24 of the Saskatchewan Act is repealed.

2 The repeal of section 24 is deemed to have been made on August 29, 1966, and is retroactive to that date.

3 This Amendment may be cited as the *Constitution Amendment, 2022 (Saskatchewan Act)*.

5 Constitutional reform failures since 1982

As the previous section has shown, complex constitutional amendments that have been successful since Patriation have been rather rare and minor. However, it is important to point out that, in the ten years that followed Patriation, two major attempts were made to reform the Constitution, with the aim of bringing Quebec back into the Canadian constitutional family.

This reminds us of soon-to-be Prime Minister Brian Mulroney's words during the 1984 electoral campaign, when he spoke of allowing Quebec to endorse the *Constitution Act, 1982* "with honour and enthusiasm". Despite the failure of the Meech Lake and Charlottetown accords, it remains important to revisit these two major attempts to reform the Canadian Constitution.

5.1 The Meech lake accord

The Meech Lake Accord, negotiated in 1987, was first and foremost a response to Quebec's constitutional demands. Once approved by federal and provincial first ministers, the ratification process began in Quebec on June 23, 1987. However, three years later (as this deadline is mandatory for amendments covered by the 7/50 formula), some provinces had still not given their final approval to the project, which resulted in its failure.

The text of parts of the Meech Lake Accord, which never came into effect, can be found here:

> *The Meech Lake Accord*, June 3, 1987.
>
> Schedule – Constitutional Amendment, 1987
>
> Constitution Act, 1867
>
> 1. The Constitution Act, 1867 is amended by adding thereto, immediately after section 1 thereof, the following section:
>
> 2. (1) The Constitution of Canada shall be interpreted in a manner consistent with
>
> (a) the recognition that the existence of French-speaking Canadians, centered in Quebec but also present elsewhere in Canada, and English-speaking Canadians, concentrated outside Quebec but also present in Quebec, constitutes a fundamental characteristic of Canada; and
>
> (b) the recognition that Quebec constitutes within Canada a distinct society.
>
> (2) The role of the Parliament of Canada and the provincial legislatures to preserve the fundamental characteristic of Canada referred to in paragraph (1) (a) is affirmed
>
> (3) The role of the legislature and Government of Quebec to preserve and promote the distinct identity of Quebec referred to in paragraph (1)(b) is affirmed.
>
> (4) Nothing in this section derogates from the powers, rights or privileges of Parliament or the Government of Canada, or of the legislatures or governments of the provinces, including any powers, rights or privileges relating to language.
>
> 2. The said Act is further amended by adding thereto, immediately after section 24 thereof, the following section:
>
> 25. (1) Where a vacancy occurs in the Senate, the government of the province to which the vacancy relates may, in relation to that vacancy, submit to the Queen's Privy Council for Canada the names of persons who may be summoned to the senate.
>
> (2) Until an amendment to the Constitution of Canada is made in relation to the Senate pursuant to section 41 of the Constitution Act, 1982, the person summoned to fill a vacancy in the Senate shall be chosen from among persons whose names have been submitted under subsection (1) by the government of the province to which the vacancy relates and must be acceptable to the Queen's Privy Council for Canada.
>
> ...
>
> 4. The said Act is further amended by adding thereto, immediately preceding section 96 thereof, the following heading:
>
> General
>
> 5. The said Act is further amended by adding thereto, immediately preceding section 101 thereof, the following heading:
>
> Courts Established by the Parliament of Canada
>
> 6. The said Act is further amended by adding thereto, immediately after section 101 thereof, the following heading and sections:
>
> Supreme Court of Canada
>
> 101A. (1) The court existing under the name of the Supreme Court of Canada is hereby continued as the general court of appeal for Canada, and as an additional court for the better administration of the laws of Canada, and shall continue to be a superior court of record.
>
> (2) The Supreme Court of Canada shall consist of a chief justice to be called the Chief Justice of Canada and eight other judges, who shall be appointed by the Governor General in Council by letters patent under the Great Seal.
>
> 101B. (1) Any person may be appointed a judge of the Supreme Court of Canada who after having admitted to the bar of any province or territory, has, for a total of at least ten years, been a judge of any courts in Canada or a member of the bar of any province or territory.
>
> (2) At least three judge of the Supreme Court of Canada shall be appointed from among persons who, after having been admitted to the bar of Quebec, have, for a total of at least ten years, been judges of any court of Quebec or of any court established by the Parliament of Canada, or members of the bar of Quebec.
>
> 101C. (1) Where a vacancy occurs in the Supreme Court of Canada, the government of each province may, in relation to that vacancy, submit to the Minister of Justice of Canada the names of any of the persons who have been admitted to the bar of the province and are qualified under section 101B for appointment to that Court.
>
> (2) Where an appointment is made to the Supreme Court of Canada, the Governor General in Council shall, except where the Chief Justice is appointed from among members of the Court, appoint a person whose name has been submitted under subsection (1) and who is acceptable to the Queen's Privy Council for Canada.
>
> (3) Where an appointment is made in accordance with subsection (2) of any of the three judges necessary to meet the requirement set out in subsection 101B(2), the Governor General in Council shall appoint a person whose name has been submitted by the Government of Quebec.
>
> (4) Where an appointment is made in accordance with subsection (2) otherwise than as required under subsection (3), the Governor General in Council shall appoint a person whose name has been submitted by the government of a province other than Quebec.
>
> 101D. Sections 99 and 100 apply in respect of judges of the Supreme Court of Canada.

101E. (1) Sections 101A to 101D shall not be construed as abrogating or derogating from the powers of Parliament to make laws under section 101 except to the extent that such laws are inconsistent with those sections.

(2) For greater certainty, section 101A shall not be construed as abrogating or derogating from the powers of the Parliament of Canada to make laws relating to the reference of questions of law or fact, or any other matters, to the Supreme Court of Canada.

7. The said Act is further amended by adding thereto, immediately after section 106 thereof, the following section:

106A. (1) The Government of Canada shall provide reasonable compensation to the government of a province that chooses not to participate in a national shared cost program that is established by the Government of Canada after the coming force of this section in an area of exclusive provincial jurisdiction, if the province carries on a program or initiative that is compatible with the national objectives.

(2) Nothing in this section extends the legislative powers of the Parliament of Canada or of the legislatures of the provinces.

...

Constitution Act, 1982

9. Sections 40 to 42 of the Constitution Act, 1982 are repealed and the following substituted therefor:

40.Where an amendment is made under subsection 38(1) that transfers legislative powers from provincial legislatures to Parliament, Canada shall provide reasonable compensation to any province to which the amendment does not apply.

41. An amendment to the Constitution of Canada in relation to the following matters may be made proclamation issued by the Governor General under the Great Seal of Canada only where authorized by resolutions of the Senate and House of Commons and of the legislative assembly of each province:

(a) the office of the Queen, the Governor General and the Lieutenant Governor of a province;

(b) the powers of the Senate and the method of selecting Senators;

(c) the number of members by which a province is entitled to be represented in the Senate and the residence qualifications of Senators;

(d) the right of a province to a number of members in the House of Commons not less than the number of Senators by which the province was entitled to be represented on April 17, 1982;

(e) the principle of proportionate representation of the provinces in the House of Commons prescribed by the Constitution of Canada;

(f) subject to section 43, the use of the English or French language;

(g) the Supreme Court of Canada;

(h) the extension of existing provinces into the territories;

(i) notwithstanding any other law or practice, the establishment of new provinces; and

(j) an amendment to this part.

10. Section 44 of the said Act is repealed and the following substituted therefor:

44. Subject to section 41, Parliament may exclusively make laws amending the Constitution of Canada in relation to the executive government of Canada or the Senate and House of Commons.

11. Subsection 46(1) of the said Act is repealed and the following substituted therefor:

46. (1) The procedures for amendment under sections 38, 41, and 43 may be initiated either by the Senate or the House of Commons or by the legislative assembly of a province.

12. Subsection 47(1) of the said Act is repealed and the following substituted therefor:

47. (1) An amendment to the Constitution of Canada made by proclamation under section 38, 41 or 43 may be made without a resolution of the Senate authorizing the issue if, within one hundred and eighty days after the adoption by the House of Commons of a resolution authorizing the issue, the Senate has not adopted such a resolution and if, at any time after the expiration of that period, the House of Commons again adopts the resolution.

13. Part VI of the said Act is repealed and the following substituted therefor:

Part VI

Constitutional Conferences

50. (1) A constitutional conference composed of the Prime Minister of Canada and the first ministers of the provinces shall be convened by the Prime Minister of Canada at least once each year, commencing in 1988.

(2) The conferences convened under subsection (1) shall have included on their agenda the following matters:

(a) Senate reform, including the role and functions of the Senate, its powers, the method of selecting Senators and representation in the Senate;

(b) roles and responsibilities in relation to fisheries; and

(c) such other matters as are agreed upon.

14. Subsection 52(2) of the said Act is amended by striking out the word “and” at the end of paragraph (b) thereof, by adding the word “and” at the end of paragraph (c) thereof, and by adding thereto the following paragraph:

(d) any other amendment to the Constitution of Canada.

15. Section 61 of the said Act is repealed and the following substituted therefor:

61. A reference to the Constitution Act, 1982, or a reference to the Constitution Acts, 1867 to 1982, shall be deemed to include a reference to any amendments thereto.

General

16. Nothing in Section 2 of the Constitution Act, 1867 affects section 25 or 27 of the Canadian Charter of Rights and Freedoms, section 35 of the Constitution Act, 1982 or class 24 of section 91 of the Constitution Act, 1867.

Citation

17. This amendment may be cited as the Constitution Amendment, 1987.

5.2 The *Charlottetown Agreement*

In response to the failure of the Meech Lake Accord, a new round of constitutional negotiations began in 1992, finally giving form to the Charlottetown Agreement. This time, to avoid criticism of the process that had given shape to the Meech Lake Accord, the negotiation process for the Agreement included the participation of Indigenous leaders and a broader process of public consultation.

To enhance the chances of this agreement materializing as a formal constitutional amendment, it was decided to submit it to a pan-Canadian constitutional referendum. This was made possible with the adoption of the *Act to provide for referendums on the Constitution of Canada*. The result, however, was not what had been hoped for: the Agreement was defeated by a majority of the population and in a majority of provinces. Although the referendum was not binding, the Agreement was subsequently abandoned.

Here are some of the most important proposed changes contained in the Agreement:

> *The Charlottetown Agreement*, August 28, 1992.
>
> I: Unity and Diversity
>
> A: People and Communities:
>
> 1. Canada Clause
>
> A new clause should be included as section 2 of the Constitution Act, 1867 that would express fundamental Canadian values. The Canada Clause would guide the courts in their future interpretation of the entire Constitution, including the Canadian Charter of Rights and Freedoms.
>
> The Constitution Act, 1867 is amended by adding hereto, immediately after section 1 thereof, the following section:
>
> 2. (1) The Constitution of Canada, including the Canadian Charter of Rights and Freedoms, shall be interpreted in a manner consistent with the following characteristics:
>
> (a) Canada is a democracy committed to a parliamentary and federal system of government and to the rule of law;
>
> (b) the Aboriginal peoples of Canada, being the first peoples to govern this land, have the right to promote their languages, cultures and traditions and to ensure the integrity of their societies, and their governments constitute one of the three orders of government in Canada;
>
> (c) Quebec constitutes within Canada a distinct society, which includes a French-speaking majority, a unique culture and a civil law tradition;
>
> (d) Canadians and their governments are committed to the vitality and development of official language minority communities throughout Canada;
>
> (e) Canadians are committed to racial and ethnic equality in a society that includes citizens from many lands who have contributed, continue to contribute, to the building of a strong Canada that reflects its cultural and racial diversity;
>
> (f) Canadians are committed to a respect for individual and collective human rights and freedoms of all people;
>
> (g) Canadians are committed to the equality of female and male persons; and
>
> (h) Canadians confirm the principle of the equality of the provinces at the same time as recognizing their diverse characteristics.
>
> (2) The role of the legislature and government of Quebec to preserve and promote the distinct society of Quebec is affirmed.
>
> (3) Nothing in this section derogates from the powers, rights or privileges of the Parliament.
>
> […]
>
> II: Institutions
>
> A: The Senate:
>
> 7. An Elected Senate
>
> The Constitution should be amended to provide that Senators are elected, either by the population of the provinces and territories of Canada or by the members of their provincial or territorial legislative assemblies.
>
> Federal legislation should govern Senate elections, subject to the constitutional provision above and constitutional provisions requiring that elections take place at the same time as elections to the House of Commons and provisions respecting eligibility and mandate of senators. Federal legislation would be sufficiently flexible to allow provinces and territories to provide for gender equality in the composition of the Senate.
>
> Matters should be expedited in order that Senate elections be held as soon as possible, and, if feasible, at the same time as the next federal general election for the House of Commons.
>
> […]
>
> III: Roles and Responsibilities
>
> 25. Federal Spending Power
>
> A provision should be added to the Constitution stipulating that the Government of Canada must provide reasonable compensation to the government of a province that chooses not to participate in a new Canada-wide shared-cost program that is established by the federal government in an area of exclusive provincial jurisdiction, if that province carries on a program or initiative that is compatible with the national objectives.
>
> A framework should be developed to guide the use of the federal spending power in all areas of exclusive provincial jurisdiction. Once developed, the framework could become a multilateral agreement that would receive constitutional protection using the mechanism described in Item 26 of this report. The framework should ensure that when the federal spending power is used in areas of exclusive provincial jurisdiction, it should:
>
> (a) contribute to the pursuit of national objectives;
>
> (b) reduce overlap and duplication;
>
> (c) not distort and should respect provincial priorities; and
>
> (d) ensure equality of treatment of the provinces, while recognizing their different needs and circumstances.

> The Constitution should commit First Ministers to establishing such a framework at a future conference of First Ministers. Once it is established, First Ministers would assume a role in annually reviewing progress in meeting the objectives set out in the framework.
>
> A provision should be added (as Section 106A(3)) that would ensure that nothing in the section that limits the federal spending power affects the commitments of Parliament and the Government of Canada that are set out in Section 36 of the Constitution Act, 1982.
>
> […]
>
> IV: First Peoples
>
> A. The Inherent Right of Self-government:
>
> 41. The Inherent Right of Self-Government
>
> The Constitution should be amended to recognize that the Aboriginal peoples of Canada have the inherent right of self-government within Canada. This right should be placed in a new section of the Constitution Act, 1982, section 35.1(1).
>
> The recognition of the inherent right of self-government should be interpreted in light of the recognition of Aboriginal governments as one of three orders of government in Canada.
>
> A contextual statement should be inserted in the Constitution, as follows:
>
> The exercise of the right of self-government includes authority of the duly constituted legislative bodies of the Aboriginal peoples, each within its own jurisdiction:
>
> (a) to safeguard and develop their languages, cultures, economies, identities, institutions and traditions; and,
>
> (b) to develop, maintain and strengthen their relationship with their lands, waters and environment
>
> so as to determine and control their developments as peoples according to their own values and priorities and ensure the integrity of their societies.
>
> Before making any final determination of an issue arising from the inherent right of self-government, a court or tribunal should take into account the contextual statement referred to above, should enquire into the efforts that have been made to resolve the issue through negotiations and should be empowered to order the parties to take such steps as are appropriate in the circumstances to effect a negotiated resolution.
>
> […]
>
> V: The Amending Formula
>
> 57. Changes to National Institutions
>
> Amendments to provisions of the Constitution related to the senate should require unanimous agreement of Parliament and the provincial legislatures, once the current set of amendments affecting the House of Commons, including Quebec's guarantee of 25 percent of the seats in the House of Commons, and amendments which can now be made under Section 42 should also require unanimity.
>
> Sections 41 and 42 of the Constitution Act, 1982 should be amended so that the nomination and appointment process of Supreme Court judges would remain subject to the general (7/50) amending procedure. All other matters related to the Supreme Court, including its entrenchment, its role as the general court of appeal and its composition, would be matters requiring unanimity.

6 Federal unilateral amendments or attempts

As we have already seen, the Federal Parliament has the power to unilaterally amend certain features of federal institutions. This power has been used on a number of occasions since the patriation of 1982, and its limits have been tested in other attempts.

6.1 The 1985, 2011 and 2022 amendments regarding provincial representation in the House of Commons

With regard to representation in the House of Commons, three federal acts have amended certain provisions of the Canadian Constitution, all with the aim of ensuring proportional representation of the provinces in the House. The first one was the *Constitution Act, 1985 (Representation)*:

> *Constitution Act, 1985 (Representation)*, S.C. 1986, c. 8.
>
> An Act to amend the Constitution Act, 1867 and the Electoral Boundaries Readjustment Act and to provide for certain matters in relation to the 1981 decennial census
>
> Her Majesty, by and with the advice and consent of the Senate and House of Commons of Canada, enacts as follows:
>
> Short Title
>
> 1 This Act may be cited as the Representation Act, 1985.
>
> PART I
>
> Constitution Act, 1867
>
> 2. Subsection 51(1) of the Constitution Act, 1867, as enacted by the Constitution Act, 1974, is repealed and the following substituted therefor:
>
> "51. (1) The number of members of the House of Commons and the representation of the provinces therein shall, on the coming into force of this subsection and thereafter on the completion of each decennial census, be readjusted by such authority, in such manner, and from such time as the Parliament of Canada from time to time provides, subject and according to the following rules:
>
> 1. There shall he assigned to each of the provinces a number of members equal to the number obtained by dividing the total population of the provinces by two hundred and seventy-nine and by dividing the population of each province by the quotient so obtained, counting any remainder in excess of 0.50 as one after the said process of division.
>
> 2. If the total number of members that would be assigned to a province by the application of rule 1 is less than the total number assigned to that province on the date of coming into force of this subsection. there shall be added to the number of members so assigned such number of members as will result in the province having the same number of members as were assigned on that date."
>
> 3. This Part may be cited as the Constitution Act, 1985 (Representation) and a reference to the Constitution Acts 1867 to 1982 shall be deemed to include a reference to the Constitution Act, 1985 (Representation).
>
> […]

A similar amendment was also made in 2011, with the *Fair Representation Act*:

Fair Representation Act, S.C. 2011, c. 26.

An Act to amend the Constitution Act, 1867, the Electoral Boundaries Readjustment Act and the Canada Elections Act

SUMMARY

This enactment amends the rules in the Constitution Act, 1867 for readjusting the number of members of the House of Commons and the representation of the provinces in that House.

It amends the time periods in several provisions of the Electoral Boundaries Readjustment Act and requires that electronic versions of maps be provided to registered parties.

It also amends the Canada Elections Act to permit a returning officer to be appointed for a new term of office in certain circumstances.

Preamble

Whereas the composition of the House of Commons must reflect the principle of proportionate representation of the provinces and the democratic representation of the Canadian people;

Whereas the principle of proportionate representation of the provinces must balance the fair and equitable representation of faster-growing provinces and the effective representation of smaller and slower-growing provinces;

Whereas the populations of faster-growing provinces are currently under-represented in the House of Commons and members of the House of Commons for those provinces therefore represent, on average, significantly more populous electoral districts than members for other provinces;

Whereas estimates of the population of Canada and of each province using modern statistical methodologies and techniques are accurate in determining those populations;

Whereas the electoral quotient for the re-adjustment that follows the completion of the 2011 decennial census should be 111,166, that number being the average population of the electoral districts on July 1, 2001, which was determined by using the estimate of the population of each province as at that date, multiplied by the average of the rates of population growth of the provinces;

Whereas the electoral quotient for the re-adjustment that follows each subsequent decennial census should be determined by multiplying the electoral quotient used for the previous readjustment by the average of the rates of population growth of the provinces;

And whereas the Constitution Act, 1985 (Representation) was enacted by Parliament by virtue of its exclusive authority, in section 44 of the Constitution Act, 1982, to amend the Constitution of Canada in relation to the House of Commons so long as the principle of proportionate representation of the provinces is not disturbed;

Now, therefore, Her Majesty, by and with the advice and consent of the Senate and House of Commons of Canada, enacts as follows:

Short title

1. This Act may be cited as the Fair Representation Act.

CONSTITUTION ACT, 1867

2. Subsection 51(1) of the Constitution Act, 1867 is replaced by the following:

Readjustment of representation in Commons

51. (1) The number of members of the House of Commons and the representation of the provinces therein shall, on the completion of each decennial census, be readjusted by such authority, in such manner, and from such time as the Parliament of Canada provides from time to time, subject and according to the following rules:

Rules

1. There shall be assigned to each of the provinces a number of members equal to the number obtained by dividing the population of the province by the electoral quotient and rounding up any fractional remainder to one.

2. If the number of members assigned to a province by the application of rule 1 and section 51A is less than the total number assigned to that province on the date of the coming into force of the Constitution Act, 1985 (Representation), there shall be added to the number of members so assigned such number of members as will result in the province having the same number of members as were assigned on that date.

3. After the application of rules 1 and 2 and section 51A, there shall, in respect of each province that meets the condition set out in rule 4, be added, if necessary, a number of members such that, on the completion of the readjustment, the number obtained by dividing the number of members assigned to that province by the total number of members assigned to all the provinces is as close as possible to, without being below, the number obtained by dividing the population of that province by the total population of all the provinces.

4. Rule 3 applies to a province if, on the completion of the preceding readjustment, the number obtained by dividing the number of members assigned to that province by the total number of members assigned to all the provinces was equal to or greater than the number obtained by dividing the population of that province by the total population of all the provinces, the population of each province being its population as at July 1 of the year of the decennial census that preceded that readjustment according to the estimates prepared for the purpose of that readjustment.

5. Unless the context indicates otherwise, in these rules, the population of a province is the estimate of its population as at July 1 of the year of the most recent decennial census.

6. In these rules, “electoral quotient” means

(a) 111,166, in relation to the readjustment following the completion of the 2011 decennial census, and

(b) in relation to the readjustment following the completion of any subsequent decennial census, the number obtained by multiplying the electoral quotient that was applied in the preceding readjustment by the number that is the average of the numbers obtained by dividing the population of each province by the population of the province as at July 1 of the year of the preceding decennial census according to the estimates prepared for the purpose of the preceding readjustment, and rounding up any fractional remainder of that multiplication to one.

Population estimates

(1.1) For the purpose of the rules in subsection (1), there is required to be prepared an estimate of the population of Canada and of each province as at July 1, 2001 and July 1, 2011 — and, in each year following the 2011 decennial census in which a decennial census is taken, as at July 1 of that year — by such authority, in such manner, and from such time as the Parliament of Canada provides from time to time.

[…]

A further change in this direction was also made in 2022, with the introduction of *An Act to amend the Constitution Act, 1867 (electoral representation)*:

> *An Act to amend the Constitution Act, 1867 (electoral representation)*, S.C. 2022, c. 6.
>
> RECOMMENDATION
>
> Her Excellency the Governor General recommends to the House of Commons the appropriation of public revenue under the circumstances, in the manner and for the purposes set out in a measure entitled "An Act to amend the Constitution Act, 1867 (electoral representation)".
>
> SUMMARY
>
> This enactment amends section 51 of the Constitution Act, 1867 to provide that, when the number of members of the House of Commons and the representation of the provinces in that House are readjusted on the completion of each decennial census, a province will not have fewer members assigned to it than were assigned during the 43rd Parliament. It also includes transitional measures providing for the application of that amendment to the readjustment of electoral boundaries under the Electoral Boundaries Readjustment Act following the 2021 decennial census.
>
> Her Majesty, by and with the advice and consent of the Senate and House of Commons of Canada, enacts as follows:
>
> Alternative Title
>
> 1 This Act may be cited as the Preserving Provincial Representation in the House of Commons Act.
>
> Constitution Act, 1867
>
> 2 Rule 2 of subsection 51(1) of the Constitution Act, 1867 is replaced by the following:
>
> 2. If the number of members assigned to a province by the application of rule 1 and section 51A is less than the total number assigned to that province during the 43rd Parliament, there shall be added to the number of members so assigned the number of members that will result in the province having the same number of members as were assigned during that Parliament.
>
> […]

6.2 The 1999 amendment regarding the new Nunavut territory

With the creation of the new territory of Nunavut in 1999, the Constitution of Canada also had to be amended, in order to ensure the territory's representation in federal institutions. This led to the adoption of the *Constitution Act, 1999 (Nunavut)*, a part of *An Act to amend the Nunavut Act and the Constitution Act, 1867*:

> *An Act to amend the Nunavut Act and the Constitution Act*, 1867, S.C. 1998, c. 15.
>
> Her Majesty, by and with the advice and consent of the Senate and House of Commons of Canada, enacts as follows:
>
> […]
>
> PART 2
>
> CONSTITUTION ACT, 1867
>
> Number of Senators
>
> 43. (1) The number of Senators provided for in section 21 of the Constitution Act, 1867, as amended, is increased from one hundred and four to one hundred and five.
>
> Maximum number of Senators
>
> (2) The maximum number of Senators referred to in section 28 of that Act is increased from one hundred and twelve to one hundred and thirteen.
>
> Representation for Yukon, NWT and Nunavut in Senate
>
> (3) The Yukon Territory, the Northwest Territories and Nunavut are entitled to be represented in the Senate by one member each.
>
> Meaning of "Province"
>
> 44. For the purposes of this Part, the word "Province" in section 23 of the Constitution Act, 1867 has the same meaning as is assigned to the word "province" by section 35 of the Interpretation Act.
>
> Member of Senate continues
>
> 45. The member of the Senate who represents the Northwest Territories immediately before the day that section 3 of the Nunavut Act comes into force shall, on and after that day, continue as the member of the Senate who represents one of the following:
>
> (a) Nunavut, if the member resides in the part of the Northwest Territories referred to in section 3 of that Act immediately before that day; or
>
> (b) the Northwest Territories, in any other case.
>
> 46. Subsection 51(2) of the Constitution Act, 1867, as enacted by the Constitution Act (No. 1), 1975, is replaced by the following:
>
> Yukon Territory, Northwest Territories and Nunavut
>
> (2) The Yukon Territory as bounded and described in the schedule to chapter Y-2 of the Revised Statutes of Canada, 1985, shall be entitled to one member, the Northwest Territories as bounded and described in section 2 of chapter N-27 of the Revised Statutes of Canada, 1985, as amended by section 77 of chapter 28 of the Statutes of Canada, 1993, shall be entitled to one member, and Nunavut as bounded and described in section 3 of chapter 28 of the Statutes of Canada, 1993, shall be entitled to one member.
>
> Short title and citation
>
> 47. This Part may be cited as the Constitution Act, 1999 (Nunavut), and a reference to the Constitution Acts, 1867 to 1982 is deemed to include a reference to the Constitution Act, 1999 (Nunavut).
>
> […]

6.3 The failed senate reforms

However, the Federal Parliament's power to unilaterally amend the Constitution has its limits, as demonstrated by the episode of attempts to unilaterally reform various aspects of the Senate of Canada. Ultimately, the Supreme Court of Canada had to rule on this issue, which led to

the *Reference re Senate Reform*, seen above (section 3.2). We return here to the Court's reasoning on the procedures applicable to different scenarios for reforming the upper house:

> *Reference re Senate Reform*, 2014 SCC 32.
>
> […]
>
> V. How Can The Senate Changes Contemplated in the Reference Be Achieved?
>
> [49] The Reference questions ask whether Parliament, acting alone, can reform the Senate by creating consultative elections to select senatorial nominees endorsed by the populations of the various provinces and territories, by limiting senatorial tenure to fixed terms, and by removing the personal wealth and real property requirements for Senators. We will address each of these issues in turn.
>
> A. Consultative Elections
>
> [50] The text of the *Constitution Act, 1867* provides for the formal appointment of Senators by the Governor General:
>
> 24. The Governor General shall from Time to Time, in the Queen's Name, by Instrument under the Great Seal of Canada, summon qualified Persons to the Senate; and, subject to the Provisions of this Act, every Person so summoned shall become and be a Member of the Senate and a Senator.
>
> 32. When a Vacancy happens in the Senate by Resignation, Death, or otherwise, the Governor General shall by Summons to a fit and qualified Person fill the Vacancy.
>
> In practice, constitutional convention requires the Governor General to follow the recommendations of the Prime Minister of Canada when filling Senate vacancies.
>
> [51] The Attorney General of Canada (supported by the attorneys general of Saskatchewan and Alberta as well as one of the amici curiae) submits that implementing consultative elections for Senators does not constitute an amendment to the Constitution of Canada. He argues that this reform would not change the text of the Constitution Act, 1867, nor the means of selecting Senators. He points out that the formal mechanism for appointing Senators — summons by the Governor General acting on the advice of the Prime Minister — would remain untouched. Alternatively, he submits that if introducing consultative elections constitutes an amendment to the Constitution, then it can be achieved unilaterally by Parliament under s. 44 of the Constitution Act, 1982.
>
> [52] In our view, the argument that introducing consultative elections does not constitute an amendment to the Constitution privileges form over substance. It reduces the notion of constitutional amendment to a matter of whether or not the letter of the constitutional text is modified. This narrow approach is inconsistent with the broad and purposive manner in which the Constitution is understood and interpreted, as discussed above. While the provisions regarding the appointment of Senators would remain textually untouched, the Senate's fundamental nature and role as a complementary legislative body of sober second thought would be significantly altered.
>
> [53] We conclude that each of the proposed consultative elections would constitute an amendment to the Constitution of Canada and require substantial provincial consent under the general amending procedure, without the provincial right to "opt out" of the amendment (s. 42). We reach this conclusion for three reasons: (1) the proposed consultative elections would fundamentally alter the architecture of the Constitution; (2) the text of Part V expressly makes the general amending procedure applicable to a change of this nature; and (3) the proposed change is beyond the scope of the unilateral federal amending procedure (s. 44).
>
> (1) Consultative Elections Would Fundamentally Alter the Architecture of the Constitution
>
> [54] The implementation of consultative elections would amend the Constitution of Canada by fundamentally altering its architecture. It would modify the Senate's role within our constitutional structure as a complementary legislative body of sober second thought.
>
> [55] The Constitution Act, 1867 contemplates a specific structure for the federal Parliament, "similar in Principle to that of the United Kingdom": preamble. The Act creates both a lower elected and an upper appointed legislative chamber: s. 17. It expressly provides that the members of the lower chamber — the House of Commons — "shall be elected" by the population of the various provinces: s. 37. By contrast, it provides that Senators shall be "summoned" (i.e. appointed) by the Governor General: ss. 24 and 32.
>
> [56] The contrast between election for members of the House of Commons and executive appointment for Senators is not an accident of history. The framers of the Constitution Act, 1867 deliberately chose executive appointment of Senators in order to allow the Senate to play the specific role of a complementary legislative body of "sober second thought".
>
> [57] As this Court wrote in the Upper House Reference, "[i]n creating the Senate in the manner provided in the Act, it is clear that the intention was to make the Senate a thoroughly independent body which could canvass dispassionately the measures of the House of Commons": p. 77 (emphasis added). The framers sought to endow the Senate with independence from the electoral process to which members of the House of Commons were subject, in order to remove Senators from a partisan political arena that required unremitting consideration of short-term political objectives.
>
> [58] Correlatively, the choice of executive appointment for Senators was also intended to ensure that the Senate would be a complementary legislative body, rather than a perennial rival of the House of Commons in the legislative process. Appointed Senators would not have a popular mandate — they would not have the expectations and legitimacy that stem from popular election. This would ensure that they would confine themselves to their role as a body mainly conducting legislative review, rather than as a coequal of the House of Commons. As John A. Macdonald put it during the Parliamentary debates regarding Confederation, "[t]here is . . . a greater danger of an irreconcilable difference of opinion between the two branches of the legislature, if the upper be elective, than if it holds its commission from the Crown": 1865 Debates, February 6, 1865, at p. 37. An appointed Senate would be a body "calmly considering the legislation initiated by the popular branch, and preventing any hasty or ill considered legislation which may come from that body, but it will never set itself in opposition against the deliberate and understood wishes of the people": ibid., at p. 36 (emphasis added).
>
> [59] The appointed status of Senators, with its attendant assumption that appointment would prevent Senators from overstepping their role as a complementary legislative body, shapes the architecture of the Constitution Act, 1867. It explains why the framers did not deem it necessary to textually specify how the powers of the Senate relate to those of the House of Commons or how to resolve a deadlock between the two chambers. Indeed, on its face the Constitution Act, 1867 grants as much legislative power to the Senate as to the House of Commons, with the exception that the House of Commons has the exclusive power to originate appropriation and tax bills (s. 53). As Professor Smith aptly summarizes:
>
> [The framers'] original answer to the clash that would inevitably occur between elected chambers was to make the Senate appointed. This assured that a government enjoying the confidence of the House of Commons would normally be able to have its legislation adopted by Parliament, but gave the Senate the ability to act as a check in those rare instances when it was absolutely necessary.

(D. E. Smith, The Canadian Senate in Bicameral Perspective (2003), at p. 169; see also A. Heard, "Constitutional Doubts about Bill C-20 and Senatorial Elections", in Smith, The Democratic Dilemma, 81, at p. 95.)

[60] The proposed consultative elections would fundamentally modify the constitutional architecture we have just described and, by extension, would constitute an amendment to the Constitution. They would weaken the Senate's role of sober second thought and would give it the democratic legitimacy to systematically block the House of Commons, contrary to its constitutional design.

[61] Federal legislation providing for the consultative election of Senators would have the practical effect of subjecting Senators to the political pressures of the electoral process and of endowing them with a popular mandate. Senators selected from among the listed nominees would become popular representatives. They would have won a "true electoral contest" (Quebec Senate Reference, at para. 71), during which they would presumably have laid out a campaign platform and made electoral promises: Pelletier, "Réponses suggérées", at pp. 470-71. They would join the Senate after acquiring the mandate and legitimacy that flow from popular election.

[62] The Attorney General of Canada counters that this broad structural change would not occur because the Prime Minister would retain the ability to ignore the results of the consultative elections and to name whomever he or she wishes to the Senate. We cannot accept this argument. Bills C-20 and C-7 are designed to result in the appointment to the Senate of nominees selected by the population of the provinces and territories. Bill C-7 is the more explicit of the two bills, as it provides that the Prime Minister "must" consider the names on the lists of elected candidates. It is true that, in theory, prime ministers could ignore the election results and rarely, or indeed never, recommend to the Governor General the winners of the consultative elections. However, the purpose of the bills is clear: to bring about a Senate with a popular mandate. We cannot assume that future prime ministers will defeat this purpose by ignoring the results of costly and hard-fought consultative elections: see for example the discussion in M. D. Walters, "The Constitutional Form and Reform of the Senate: Thoughts on the Constitutionality of Bill C-7" (2013), 7 J. P.P.L. 37, at pp. 47-48. A legal analysis of the constitutional nature and effects of proposed legislation cannot be premised on the assumption that the legislation will fail to bring about the changes it seeks to achieve.

[63] In summary, the consultative election proposals set out in the Reference questions would amend the Constitution of Canada by changing the Senate's role within our constitutional structure from a complementary legislative body of sober second thought to a legislative body endowed with a popular mandate and democratic legitimacy.

(2) The Wording of Part V Indicates That the Proposal for Consultative Elections Attracts the General Amending Procedure

[64] Our view that the consultative election proposals would amend the Constitution of Canada is supported by the language of Part V. The words employed in Part V are guides to identifying the aspects of our system of government that form part of the protected content of the Constitution. Section 42(1)(b) of the Constitution Act, 1982 provides that the general amending procedure (s. 38(1)) applies to constitutional amendments in relation to "the method of selecting Senators" ("le mode de sélection des sénateurs"). This broad wording covers the implementation of consultative elections, indicating that a constitutional amendment is required and making that amendment subject to the general procedure: H. Brun, G. Tremblay and E. Brouillet, Droit constitutionnel (5th ed. 2008), at p. 343; Whyte, at p. 106; see also C.-E. Côté, "L'inconstitutionnalité du projet d'élections fédérales sénatoriales" (2010), 3 R.Q.D.C. 81, at p. 83, cited in the Quebec Senate Reference, at para. 50; Walters, "The Constitutional Form and Reform of the Senate", at p. 52.

[65] The words "the method of selecting Senators" include more than the formal appointment of Senators by the Governor General. "[S]ection 42(b) refers to the method of selecting persons for appointment, not the means of appointment": Whyte, at p. 106 (emphasis in original). By employing this language, the framers of the Constitution Act, 1982 extended the constitutional protection provided by the general amending procedure to the entire process by which Senators are "selected". The proposed consultative elections would produce lists of candidates, from which prime ministers would be expected to choose when making appointments to the Senate. The compilation of these lists through national or provincial and territorial elections and the Prime Minister's consideration of them prior to making recommendations to the Governor General would form part of the "method of selecting Senators". Consequently, the implementation of consultative elections falls within the scope of s. 42(1)(b) and is subject to the general amending procedure, without the provincial right to "opt out".

[66] In like vein, the Attorney General of Canada argues that consultative elections are not "in pith and substance" amendments in relation to the "method of selecting Senators". He draws upon the doctrine of pith and substance, which is employed by courts in division of powers cases to decide whether legislation was validly enacted by a level of government: see Hogg, at pp. 15-7 to 15-10. The courts look to whether legislation, in its purpose and effects, falls within one of the classes of subjects over which the Constitution gives power to the enacting body: Reference re Securities Act, 2011 SCC 66, [2011] 3 SCR 837, at paras. 63-66. The Attorney General's position is that legislation implementing consultative elections would not, in its purpose and effects, constitute an amendment in relation to the "method of selecting Senators". He confines the meaning of this expression to the formal mechanism of appointment of Senators by the Governor General.

[67] As discussed, the plain meaning of the words "the method of selecting Senators" goes beyond the formal mechanism of appointment. Borrowing a doctrine from the division of powers jurisprudence does not avoid this textual difficulty. Even if the doctrine of pith and substance were relevant to the analysis, its application cannot justify a narrow reading of the relevant constitutional amending provisions. It bears repeating that ss. 38 and 42 of the Constitution Act, 1982 are intended to ensure that substantial provincial consent will be obtained for constitutional changes that engage provincial interests. The 7/50 procedure is the general rule for amendments to the Constitution of Canada. The Attorney General's invocation of the language of "pith and substance" does not alter this principle.

(3) The Implementation of Consultative Elections Falls Outside the Scope of the Unilateral Federal Amending Procedure

[68] The Attorney General of Canada argues in the alternative that, if the implementation of consultative elections requires a constitutional amendment, then it can be achieved under the unilateral federal amending procedure (s. 44). More specifically, he argues that the creation of consultative elections would be an amendment "in relation to . . . the Senate", within the meaning of s. 44.

[69] We must reject this argument. As we have seen, s. 42(1)(b) makes the general amending procedure applicable to changes to "the method of selecting Senators". Section 44 is expressly made "[s]ubject to" s. 42 — the categories of amendment captured by s. 42 are removed from the scope of s. 44. It follows that the 7/50 procedure, as opposed to the unilateral federal procedure, applies to the introduction of consultative elections. Moreover, the scope of s. 44 is limited — it does not encompass consultative elections, which would change the Senate's fundamental nature and role by endowing it with a popular mandate.

(4) Conclusion on How Consultative Elections Can Be Achieved

[70] We conclude that introducing a process of consultative elections for the nomination of Senators would change our Constitution's architecture, by endowing Senators with a popular mandate which is inconsistent with the Senate's role as a complementary legislative chamber of sober second thought. This would constitute an amendment to the Constitution of Canada in relation to the method of selecting Senators. It thus attracts the general amending procedure, without the provincial right to "opt out": s. 42(1)(b) , Constitution Act, 1982.

B. Senatorial Tenure

[71] It is not disputed that a change in the duration of senatorial terms would amend the Constitution of Canada, by requiring a modification to the text of s. 29 of the Constitution Act, 1867. Section 29(2) provides:

(2) A Senator who is summoned to the Senate . . . shall . . . hold his place in the Senate until he attains the age of seventy-five years.

The question before us is which Part V procedure applies to amend this provision.

[72] The Attorney General of Canada argues that changes to senatorial tenure fall residually within the unilateral federal power of amendment in s. 44, since they are not expressly captured by the language of s. 42. He also contends that the imposition of the fixed terms contemplated in the Reference would constitute a minor change that does not engage the interests of the provinces, because those terms are equivalent in duration to the average length of the terms historically served by Senators.

[73] In essence, the Attorney General of Canada proposes a narrow textual approach to this issue. Section 44 of the Constitution Act, 1982 provides: "Subject to sections 41 and 42, Parliament may exclusively make laws amending the Constitution of Canada in relation to . . . the Senate . . .". Neither s. 41 nor s. 42 expressly applies to amendments in relation to senatorial tenure. It follows, in his view, that the proposed changes to senatorial tenure are captured by the otherwise unlimited power in s. 44 to make amendments in relation to the Senate.

[74] We agree that the language of s. 42 does not encompass changes to the duration of senatorial terms. However, it does not follow that all changes to the Senate that fall outside of s. 42 come within the scope of the unilateral federal amending procedure in s. 44: see Whyte, at pp. 102-3.

[75] We are unable to agree with the Attorney General of Canada's interpretation of the scope of s. 44. As discussed, the unilateral federal amendment procedure is limited. It is not a broad procedure that encompasses all constitutional changes to the Senate which are not expressly included within another procedure in Part V. The history, language, and structure of Part V indicate that s. 38, rather than s. 44, is the general procedure for constitutional amendment. Changes that engage the interests of the provinces in the Senate as an institution forming an integral part of the federal system can only be achieved under the general amending procedure. Section 44, as an exception to the general procedure, encompasses measures that maintain or change the Senate without altering its fundamental nature and role.

[76] When discussing the scope of the unilateral federal procedure in the federal government's 1980 proposal for an amending formula, the then-Minister of Justice Jean Chrétien made statements to the effect that it would allow Parliament to make constitutional amendments for the Senate's continued maintenance and proper functioning, such as for example a modification of the Senate's quorum requirement at s. 35 of the Constitution Act, 1867 : Minutes of Proceedings and Evidence of the Special Joint Committee of the Senate and of the House of Commons on the Constitution of Canada, No. 53, February 4, 1981, at p. 50. He made clear, however, that significant Senate reform which engages the interests of the provinces could only be achieved with their consent: ibid., at pp. 67-68.

[77] In our view, this understanding of the unilateral federal procedure applies to Part V. The Senate is a core component of the Canadian federal structure of government. As such, changes that affect its fundamental nature and role engage the interests of the stakeholders in our constitutional design — i.e. the federal government and the provinces — and cannot be achieved by Parliament acting alone.

[78] The question is thus whether the imposition of fixed terms for Senators engages the interests of the provinces by changing the fundamental nature or role of the Senate. If so, the imposition of fixed terms can only be achieved under the general amending procedure. In our view, this question must be answered in the affirmative.

[79] As discussed above, the Senate's fundamental nature and role is that of a complementary legislative body of sober second thought. The current duration of senatorial terms is directly linked to this conception of the Senate. Senators are appointed roughly for the duration of their active professional lives.[8] This security of tenure is intended to allow Senators to function with independence in conducting legislative review. This Court stated in the Upper House Reference that, "[a]t some point, a reduction of the term of office might impair the functioning of the Senate in providing what Sir John A. Macdonald described as 'the sober second thought in legislation'": p. 76. A significant change to senatorial tenure would thus affect the Senate's fundamental nature and role. It could only be achieved under the general amending procedure and falls outside the scope of the unilateral federal amending procedure.

[80] The imposition of fixed senatorial terms is a significant change to senatorial tenure. We are not persuaded by the argument that the fixed terms contemplated in the Reference are a minor change because they are equivalent in duration to the average term historically served by Senators. Rather, we agree with the submission of the amici curiae that there is an important "qualitative difference" between tenure for the rough duration of a Senator's active professional life and tenure for a fixed term: factum, at para. 88. Fixed terms provide a weaker security of tenure. They imply a finite time in office and necessarily offer a lesser degree of protection from the potential consequences of freely speaking one's mind on the legislative proposals of the House of Commons.

[81] It may be possible, as the Attorney General of Canada suggests, to devise a fixed term so lengthy that it provides a security of tenure which is functionally equivalent to that provided by life tenure. However, it is difficult to objectively identify the precise term duration that guarantees an equivalent degree of security of tenure. As Professor Desserud writes:

A one-year term would certainly not provide sufficient opportunity for the Senate to fulfill its duty to be a chamber of sober second thought. . . . The question becomes one of degree. If not one year, what about two? What about three? And so on. . . . Drawing an absolute line between when a term limit is too short and acceptably short is impossible.

(D. Desserud, "Whither 91.1? The Constitutionality of Bill C-19: An Act to Limit Senate Tenure", in J. Smith, ed., The Democratic Dilemma, 63, at p. 78)

[82] The difficulty in determining how long senatorial terms should be in order to safeguard the Senate's role as a body of sober second thought suggests that this is at heart a matter of policy. The very process of subjectively identifying a term long enough to leave intact the Senate's independence engages the interests of the provinces and requires their input. The imposition of fixed terms, even lengthy ones, constitutes a change that engages the interests of the provinces as stakeholders in Canada's constitutional design and falls within the rule of general application for constitutional change — the 7/50 procedure in s. 38.

[83] We note that although s. 42 does not apply to the imposition of fixed terms, no province would be able to exercise a right to "opt out" of a reform of tenure that garnered the requisite level of provincial consent. Such a change would constitute an institutional reform that affects the independence of the Senate and the senatorial office. It does not affect the legislative powers, property rights, or any other rights or privileges of the legislature or government of a province. Consequently, it does not trigger the right to "opt out" provided in s. 38(2) of the Constitution Act, 1982.

C. Property Qualifications

[84] The fourth Reference question contemplates the repeal of the provisions setting out the property qualifications for Senators. Sections 23(3) to 23(6) of the Constitution Act, 1867 provide:

23. The Qualifications of a Senator shall be as follows:

. . .

(3) He shall be legally or equitably seised as of Freehold for his own Use and Benefit of Lands or Tenements held in Free and Common Socage, or seised or possessed for his own Use and Benefit of Lands or Tenements held in Franc-alleu or in Roture, within the Province for which he is appointed, of the Value of Four thousand Dollars, over and above all Rents, Dues, Debts, Charges, Mortgages, and Incumbrances due or payable out of or charged on or affecting the same;

(4) His Real and Personal Property shall be together worth Four thousand Dollars over and above his Debts and Liabilities;

(5) He shall be resident in the Province for which he is appointed;

(6) In the Case of Quebec he shall have his Real Property Qualification in the Electoral Division for which he is appointed, or shall be resident in that Division.

[85] The Constitution Act, 1867 established two property qualifications for Senators: a real property qualification requiring them to own land worth at least $4,000 in the province for which they are appointed (s. 23(3)), and a requirement that they have a personal net worth of at least $4,000 (s. 23(4)). The Attorney General of Canada argues that Parliament can repeal the provisions setting out these requirements through the unilateral federal amendment procedure. The Attorney General of Quebec contends that the repeal of the real property qualification in s. 23(3) would affect the operation of s. 23(6), which allows Quebec Senators to either reside in the electoral division for which they are appointed or to fulfill their real property qualification in that division. It follows, in his view, that Quebec's consent is required to repeal the provision.

[86] We conclude that the net worth requirement (s. 23(4)) can be repealed by Parliament under the unilateral federal amending procedure. However, a full repeal of the real property requirement (s. 23(3)) requires the consent of Quebec's legislative assembly, under the special arrangements procedure. Indeed, a full repeal of that provision would also constitute an amendment in relation to s. 23(6), which contains a special arrangement applicable only to the province of Quebec.

(1) The Net Worth Requirement

[87] As discussed above, the unilateral federal procedure to amend the Constitution is limited in scope. It does not permit amendments that engage the interests of the provinces by modifying the Senate's fundamental nature or role. The question is thus whether the removal of the net worth requirement would modify the Senate's fundamental nature or role.

[88] There is nothing in the material before us to suggest that removing the net worth requirement would affect the independence of Senators or otherwise affect the Senate's role as a complementary legislative chamber of sober second thought. This change is qualitatively different than implementing consultative elections for Senators or changing their security of tenure, which affect the fundamental nature and role of the Senate.

[89] Therefore, removing the net worth requirement does not engage the interests of the provinces. This is supported by the fact that none of the intervening provinces opposed the repeal of the requirement or argued that their interests were engaged by the amendment.

[90] We conclude that the repeal of s. 23(4) is precisely the type of amendment that the framers of the Constitution Act, 1982 intended to capture under s. 44. It updates the constitutional framework relating to the Senate without affecting the institution's fundamental nature and role.

(2) The Real Property Requirement

[91] Similarly, the removal of the real property requirement (s. 23(3), Constitution Act, 1867) would not alter the fundamental nature and role of the Senate. However, the removal of the real property requirement for Quebec's Senators would constitute an amendment in relation to a special arrangement. It would thus attract the special arrangements procedure and require the consent of Quebec's National Assembly (s. 43, Constitution Act, 1982).

[92] Section 22 of the Constitution Act, 1867 provides that each Senator from Quebec is appointed to represent one of the province's 24 electoral divisions. Historically, this was intended to ensure that Quebec's Anglophone minorities would be represented in the Senate, by making it mandatory to appoint Senators specifically for divisions in which the majority of the population was Anglophone: J. Woehrling, "Le recours à la procédure de modification de l'article 43 de la Loi constitutionnelle de 1982 pour satisfaire certaines revendications constitutionnelles du Québec", in P. Thibault, B. Pelletier and L. Perret, eds., Essays in Honour of Gérald-A. Beaudoin: The Challenges of Constitutionalism (2002), 449, at pp. 489-90. Section 23(6) is linked to the implementation of this special arrangement: it provides a degree of flexibility to Senators from Quebec by allowing them to either reside in the electoral division for which they are appointed or to simply fulfill their real property qualification in that division.

[93] A full repeal of s. 23(3) would render inoperative the option in s. 23(6) for Quebec Senators to fulfill their real property qualification in their respective electoral divisions, effectively making it mandatory for them to reside in the electoral divisions for which they are appointed. It would constitute an amendment in relation to s. 23(6), which contains a special arrangement applicable to a single province, and consequently would fall within the scope of the special arrangement procedure. The consent of Quebec's National Assembly is required.

[94] However, the real property qualification in s. 23(3) could be partially removed by making the provision inapplicable to Senators from all provinces except those from Quebec. This would not engage the interests of the provinces and can be achieved under the unilateral federal amending procedure.

VI. Senate Abolition: How Can It Be Achieved?

[95] Finally, the Reference asks which of two possible procedures applies to abolition of the Senate: the general amending procedure or the unanimous consent procedure?

[96] The Attorney General of Canada argues that the general amending procedure applies because abolition of the Senate falls under matters which Part V expressly says attract that procedure — amendments in relation to "the powers of the Senate" and "the number of members by which a province is entitled to be represented in the Senate" (s. 42(1)(b) and (c)). Abolition, it is argued, is simply a matter of "powers" and "members": it literally takes away all of the Senate's powers and all of its members. Alternatively, the Attorney General of Canada argues that since abolition of the Senate is not expressly mentioned anywhere in Part V, it falls residually under the general amending procedure.

[97] We cannot accept the Attorney General's arguments. Abolition of the Senate is not merely a matter of "powers" or "members" under s. 42(1)(b) and (c) of the Constitution Act, 1982. Rather, abolition of the Senate would fundamentally alter our constitutional architecture — by removing the bicameral form of government that gives shape to the Constitution Act, 1867 — and would amend Part V, which requires the unanimous consent of Parliament and the provinces (s. 41(e), Constitution Act, 1982).

A. Abolishing the Senate Does Not Fall Within Section 42(1)(b) and (c)

[98] It is argued that s. 42(1)(b) and (c), which expressly make the general amending procedure applicable to changes to the "powers" of the Senate and to the "number" of Senators allotted to each province, brings abolition of the Senate within the scope of the general amending procedure.

[99] We cannot accept this argument. It misunderstands the purpose of the express mention of the Senate in s. 42(1)(b) and (c). This provision captures Senate reform, which implies the continued existence of the Senate: Pelletier, La modification constitutionnelle au Canada, at pp. 221-24. Outright abolition falls beyond its scope.

[100] As discussed above, the references to the Senate in s. 42 were made in anticipation of future Senate reform. The Quebec Court of Appeal aptly captured this historical context and its relevance in interpreting s. 42:

The interpretation of section 42 must also take account, in particular, that because of the inability of the federal government and the provinces to agree in 1982 on a total reform of the Constitution, including the Senate, amongst other institutions, the framers decided to postpone further discussion of the matters it contains, while specifying the applicable amending procedure to incorporate an eventual consensus in the Constitution.

[Quebec Senate Reference, at para. 40]

[101] Abolition of the Senate was not on the minds of the framers of the Constitution Act, 1982. Rather, they turned their minds to the main aspects of Senate reform that were discussed in the years prior to patriation: the distribution of seats in the Senate, the powers of the Senate, and the manner of selecting Senators. They expected ongoing discussion of these aspects of Senate reform and made it clear, through their choice of words in s. 42, that these reforms would require a substantial degree of federal-provincial consensus. However, they assumed that the evolution of Canada's system of government would be characterized by a degree of continuity — that constitutional change would be incremental and that some core institutions would remain firmly anchored in our constitutional order.

[102] To interpret s. 42 as embracing Senate abolition would depart from the ordinary meaning of its language and is not supported by the historical record. The mention of amendments in relation to the powers of the Senate and the number of Senators for each province presupposes the continuing existence of a Senate and makes no room for an indirect abolition of the Senate. Within the scope of s. 42, it is possible to make significant changes to the powers of the Senate and the number of Senators. But it is outside the scope of s. 42 to altogether strip the Senate of its powers and reduce the number of Senators to zero.

B. Abolishing the Senate Would Alter the Part V Amending Formula

[103] The Attorney General of Canada argues that Senate abolition can be accomplished without amending Part V and that it therefore does not fall within the scope of s. 41(e), which requires unanimous federal-provincial consent for amendments to Part V. He argues that the Senate can be abolished without textually modifying the provisions of Part V. The references to the Senate in Part V would simply be viewed as "spent" and as devoid of legal effect.

[104] The Attorney General further submits that the Part V amending procedures would remain functional despite the presence of these "spent" provisions, since the Senate's failure to adopt a resolution authorizing a constitutional amendment can be overridden after the expiration of a 180-day period: s. 47(1), Constitution Act, 1982. Moreover, he submits that the Senate's role in the unilateral federal amending procedure (s. 44) can be eliminated under the general amending procedure, by changing the definition of Parliament in s. 17 of the Constitution Act, 1867 so as to remove the upper house.

[105] The Attorney General supplements these submissions with the argument that the effects of Senate abolition on Part V would be merely incidental and that they should not trigger the application of the unanimous consent procedure. In his view, Senate abolition would not be, "in pith and substance", an amendment in relation to Part V.

[106] We disagree with these submissions. Once more, the Attorney General privileges form over substance. Part V is replete with references to the Senate and gives the Senate a role in all of the amending procedures, except for the unilateral provincial procedure: Pelletier, La modification constitutionnelle au Canada, at pp. 220-21. Part V was drafted on the assumption that the federal Parliament would remain bicameral in nature, i.e. that there would continue to be both a lower legislative chamber and a complementary upper chamber. Removal of the upper chamber from our Constitution would alter the structure and functioning of Part V. Consequently, it requires the unanimous consent of Parliament and of all the provinces (s. 41(e)).

[107] The Attorney General of Canada's argument that the upper chamber could be removed without amending Part V fails to persuade us. As discussed, the notion of an amendment to the Constitution of Canada is not limited to textual modifications — it also embraces significant structural modifications of the Constitution. The abolition of the upper chamber would entail a significant structural modification of Part V. Amendments to the Constitution of Canada are subject to review by the Senate. The Senate can veto amendments brought under s. 44 and can delay the adoption of amendments made pursuant to ss. 38, 41, 42, and 43 by up to 180 days: s. 47 , Constitution Act, 1982 . The elimination of bicameralism would render this mechanism of review inoperative and effectively change the dynamics of the constitutional amendment process. The constitutional structure of Part V as a whole would be fundamentally altered.

[108] The argument that Senate abolition would only have "incidental" or secondary effects on Part V also fails to persuade us. The effects of Senate abolition on Part V are direct and substantial. While it is true that the Senate's role in constitutional amendment is not as central as that of the House of Commons or the provincial legislatures, its ability to delay the adoption of constitutional amendments nevertheless provides an additional mechanism to ensure that they are carefully considered. Indeed, the Senate's refusal to authorize an amendment can give the House of Commons pause and draw public attention to amendments: Smith, at p. 152.

[109] Since the effects of Senate abolition on Part V cannot be characterized as incidental, it is not necessary to decide whether there exists a doctrine — analogous to the "pith and substance" doctrine, discussed above — that justifies applying the general amending procedure to a constitutional amendment that has incidental effects on a matter coming within the unanimous consent procedure.

C. Conclusion on Abolition of the Senate

[110] The review of constitutional amendments by an upper house is an essential component of the Part V amending procedures. The Senate has a role to play in all of the Part V amending procedures, except for the unilateral provincial procedure. The process of constitutional amendment in a unicameral system would be qualitatively different from the current process. There would be one less player in the process, one less mechanism of review. It would be necessary to decide whether the amending procedure can function as currently drafted in a unicameral system, or whether it should be modified to provide for a new mechanism of review that occupies the role formerly played by the upper chamber. These issues relate to the functioning of the constitutional amendment formula and, as such, unanimous consent of Parliament and of all the provinces is required under s. 41(e) of the Constitution Act, 1982.

VII. Conclusion

[111] The majority of the changes to the Senate which are contemplated in the Reference can only be achieved through amendments to the Constitution, with substantial federal-provincial consensus. The implementation of consultative elections and senatorial term limits requires consent of the Senate, the House of Commons, and the legislative assemblies of at least seven provinces representing, in the aggregate, half of

the population of all the provinces (s. 38 and s. 42(1)(b), Constitution Act, 1982). A full repeal of the property qualifications requires the consent of the legislative assembly of Quebec (s. 43, Constitution Act, 1982). As for Senate abolition, it requires the unanimous consent of the Senate, the House of Commons, and the legislative assemblies of all Canadian provinces (s. 41(e), Constitution Act, 1982).

[…]

6.4 The Allegiance Oath (2023-2024)

Drawing on the Quebec experience (see below, section 7.1), the Federal Parliament has also studied the possibility of abolishing the mandatory oath to the king, in 2023-2024. Indeed, in June 2023, Liberal MP René Arsenault tabled Bill C-347 – *An Act to amend the Constitution Act, 1867 (oath of office)*. Relying on the Federal Parliament's power to unilaterally amend the Constitution, as set out in section 44 of the *Constitution Act, 1982*, the text of the bill reads as follows:

Bill C-347 – *An Act to amend the Constitution Act, 1867* (oath of office).

SUMMARY

This enactment amends section 128 of the *Constitution Act, 1867* to provide that every member of the Senate or House of Commons of Canada may, before taking their seat, choose to take and subscribe the oath of allegiance, an oath of office or both.

[…]

His Majesty, by and with the advice and consent of the Senate and House of Commons of Canada, enacts as follows:

Constitution Act, 1867

1 Section 128 of the *Constitution Act, 1867* is renumbered as subsection 128(1) and is amended by adding the following:

Choice of oath

(2) Notwithstanding subsection (1), every Member of the Senate or House of Commons of Canada may take and subscribe the Oath of Office contained in the Fifth Schedule to this Act instead of the Oath of Allegiance or may take and subscribe both.

2 The Fifth Schedule to the Act is amended by adding the following after the Oath of Allegiance:

Oath of Office

I, A.B., do swear that I will carry out my duties in the best interest of Canada while upholding its Constitution.

The Bill was eventually defeated in its second reading in the House of Commons, in April 2024, by a vote of 197 to 113.

7 Provincial constitutional unilateralism since 2021

Despite the constitutional deadlock resulting from failed attempts at constitutional reform under the Meech Lake and Charlottetown accords, a new trend seems to have emerged since 2021: that of constitutional unilateralism by provinces. This new trend is rooted in a variety of events.

7.1 Quebec: Bill 96 and the Abolition of the Oath to the King

In May 2021, the Quebec government tabled Bill 96 in the National Assembly, entitled *An Act respecting French, the official and common language of Québec*. Adopted and assented to a year later, this act amended the *Constitution Act, 1867*, and more specifically the "Quebec part" of the Canadian Constitution. This change was made possible by the amendment procedure set out in section 45 of the *Constitution Act, 1982*.

An Act respecting French, the official and common language of Québec, S.Q. 2022, c. 14.

[…]

CONSTITUTION ACT, 1867

166. The Constitution Act, 1867 (30 & 31 Victoria, c. 3 (U.K.); 1982, c. 11 (U.K.)) is amended by inserting the following after section 90:

"FUNDAMENTAL CHARACTERISTICS OF QUEBEC

"90Q.1. Quebecers form a nation.

"90Q.2. French shall be the only official language of Quebec. It is also the common language of the Quebec nation."

Furthermore, at the end of 2022, Quebec decided to once again amend the *Constitution Act, 1867*, this time to abolish the obligation for members of the National Assembly to swear an oath to the King or Queen of Canada, in order to sit in the National Assembly:

An Act to recognize the oath provided in the Act respecting the National Assembly as the sole oath required in order to sit in the Assembly, S.Q. 2022, c. 30.

[…]

CONSTITUTION ACT, 1867

1. The Constitution Act, 1867 is amended by inserting the following section after section 128:

"128Q.1. Section 128 does not apply to Quebec."

It is worth pointing out that section 128 of the *Constitution Act, 1867* provides as follows:

Constitution Act, 1867, 30 & 31 Victoria, c. 3 (U.K.).

[…]

Oath of Allegiance, etc.

128 Every Member of the Senate or House of Commons of Canada shall before taking his Seat therein take and subscribe before the Governor General or some Person authorized by him, and every Member of a Legislative Council or Legislative Assembly of any Province shall before taking his Seat therein take and subscribe before the Lieutenant Governor of the Province or some Person authorized by him, the Oath of Allegiance contained in the Fifth Schedule to this Act; and every Member of the Senate of Canada and every Member of the Legislative Council of Quebec shall also, before taking his Seat therein, take and subscribe before the Governor General, or some Person authorized by him, the Declaration of Qualification contained in the same Schedule.

These two unilateral amendments made by Quebec have been added to the administrative codification of the Canadian Constitution, which can be found on the Department of Justice Canada website.

7.2 The *Saskatchewan First Act*

Inspired by the Quebec initiative, Saskatchewan also amended its part of the Canadian Constitution, in 2023, with the *Saskatchewan First Act*:

> *The Saskatchewan First Act*, SS 2023, c 9.
>
> […]
>
> PART 2
>
> Amendment to Saskatchewan's Constitution
>
> *Saskatchewan Act* amended
>
> 4 The Constitution of Saskatchewan is amended by adding the following section after section 3 of the *Saskatchewan Act*:
>
> (a) in the English version:
>
> "Autonomy of Saskatchewan
>
> 3.1(1) Saskatchewan has autonomy with respect to all of the matters falling under its exclusive legislative jurisdiction pursuant to the *Constitution Act, 1867*.
>
> (2) Saskatchewan is and always has been dependent on agriculture, and on the development of its non-renewable natural resources, forestry resources and electrical energy generation and production.
>
> (3) Saskatchewan's ability to control the development of its nonrenewable natural resources, its forestry resources and its electrical energy generation and production is critical to the future well-being and prosperity of Saskatchewan and its people; and
>
> (b) in the French version:
>
> Autonomie de la Saskatchewan
>
> 3.1(1) La Saskatchewan jouit d'une autonomie en toute matière relevant de son champ de compétence législative exclusive en vertu de la *Loi constitutionnelle de 1867*.
>
> (2) La Saskatchewan est dépendante, comme depuis toujours, de l'agriculture ainsi que du développement de ses ressources naturelles non renouvelables, de ses ressources forestières et de la production d'énergie électrique.
>
> (3) La capacité de la Saskatchewan de contrôler le développement de ses ressources naturelles non renouvelables, de ses ressources forestières et de la production d'énergie électrique est cruciale pour le bien-être et la prospérité futurs de la Saskatchewan et de sa population".
>
> *Constitution Act, 1867* amended
>
> 5 The Constitution of Saskatchewan is amended by adding the following section after section 90Q.2 of the *Constitution Act, 1867*:
>
> (a) in the English version:
>
> "7. – SASKATCHEWAN 90S.1(1) Saskatchewan has autonomy with respect to all of the matters falling under its exclusive legislative jurisdiction pursuant to this Act.
>
> (2) Saskatchewan is and always has been dependent on agriculture, and on the development of its non-renewable natural resources, forestry resources and electrical energy generation and production.
>
> (3) Saskatchewan's ability to control the development of its nonrenewable natural resources, its forestry resources and its electrical energy generation and production is critical to the future well-being and prosperity of Saskatchewan and its people; and
>
> (b) in the French version:
>
> 7. – SASKATCHEWAN 90S.1(1) La Saskatchewan jouit d'une autonomie en toute matière relevant de son champ de compétence législative exclusive en vertu de la présente loi.
>
> (2) La Saskatchewan est dépendante, comme depuis toujours, de l'agriculture ainsi que du développement de ses ressources naturelles non renouvelables, de ses ressources forestières et de la production d'énergie électrique.
>
> (3) La capacité de la Saskatchewan de contrôler le développement de ses ressources naturelles non renouvelables, de ses ressources forestières et de la production d'énergie électrique est cruciale pour le bien-être et la prospérité futurs de la Saskatchewan et de sa population".

It is interesting to note here the adoption of these provisions in both official languages, as well as the express mention, by section 5 of the *Saskatchewan First Act*, that section 90S.1 is inserted after section 90Q.2, adopted a year earlier by Quebec. This provision, adopted by Saskatchewan, has also been added to the federal government's administrative codification.

7.3 Alberta's constitutional initiative regarding equalization

In 2021, Alberta held a referendum in which the province asked its population whether they were in favour of abolishing equalization. The referendum question was: "Should Section 36(2) of the Constitution Act, 1982 — Parliament and the Government of Canada's commitment to the principle of making equalization payments — be removed from the Constitution?" A majority of 61.7% of the population of the province voted in favour of abolishing equalization.

A month later, the Albertan government formally initiated a multilateral constitutional amendment seeking to abolish equalization. As mentioned above, constitutional reforms are initiated by parliamentary motions in Canada. The motion proposed by the Albertan government was the following:

> Alberta, *Legislative Assembly*, Hansard, 2nd Sess, 30th Leg, November 18, 2021, 6295.
>
> […]
>
> Government Motions
>
> Equalization Payments
>
> 101. Mr. Kenney moved:

Be it resolved that the Legislative Assembly:

(a) recognize the results of the referendum held on October 18, 2021, where 61.7 per cent of voters supported removing section 36(2) of the Constitution Act, 1982, Parliament and the government of Canada's commitment to the principle of making equalization payments,

(b) reaffirm the principle articulated by the Supreme Court of Canada in the 1998 reference re secession of Quebec that it is "the constitutional right of each participant in the federation to initiate Constitutional change" and that "this right implies a reciprocal duty on the other participants to engage in discussions to address any legitimate initiative to change the constitutional order,"

(c) authorize an amendment to the Constitution of Canada to be made by proclamation issued by Her Excellency the Governor General under the Great Seal of Canada in accordance with the schedule set forth below, and

(d) direct the government of Alberta to take all necessary steps to secure a fair deal for Alberta in the Canadian federation, including the reform of federal transfer programs, the defence of provincial powers enumerated in the Constitution, and the right to pursue responsible development of natural resources.

SCHEDULE

AMENDMENT TO THE CONSTITUTION OF CANADA

1. The Constitution Act, 1982 is amended by repealing section 36(2) thereof.

2. This Amendment may be cited as the Constitution Amendment, [year of proclamation].

[VERSION FRANÇAISE]

MODIFICATION DE LA CONSTITUTION DU CANADA

1. Le paragraphe 36(2) de la Loi constitutionnelle de 1982 est abrogé.

2. Titre de la présente modification: Modification constitutionnelle de [l'année de la proclamation]

While the amendment was never adopted, since neither the Federal Parliament nor any other province has adopted it, the fact remains that this is unilateral action, Alberta having acted without any consultation or negotiation with its other federal partners.

7.4 Quebec's constitutional initiative regarding judicial nominations

Following in the footsteps of Alberta and Saskatchewan, and in response to recommendations made by the Advisory Committee on Quebec's Constitutional Issues within the Canadian Federation, Quebec also adopted a resolution in April 2025 concerning a possible amendment to the Constitution of Canada, this time regarding appointments to the province's superior courts. The resolution would require that judges of Quebec's superior courts to be appointed from among those members of the Barreau du Québec recommended by the government of Québec:

Quebec, *National Assembly*, Journal des débats, 1st Sess, 43rd Leg, April 23, 2025, 11h.

[…]

Le Vice-Président (M. Benjamin) : S'il vous plaît, s'il vous plaît! Merci de votre attention. Comme annoncé précédemment, nous allons maintenant procéder au vote reporté sur la motion proposée par M. le ministre responsable des Relations canadiennes et qui se lit comme suit :

« Que l'Assemblée nationale constate que le pouvoir de nomination des juges des cours supérieures des États fédérés appartient au gouverneur général en vertu de l'article 96 de la Loi constitutionnelle de 1867;

« Qu'elle constate que l'exercice de ce pouvoir est circonscrit, en ce qui concerne le Québec, par la condition voulant que les juges soient choisis parmi les membres du Barreau du Québec en vertu de l'article 98 de cette même loi;

« Qu'elle constate que l'article 98 de la Loi constitutionnelle de 1867 vise à assurer que les juges des cours supérieures du Québec maîtrisent le droit qui y est en vigueur;

« Qu'elle souligne que le Québec est le seul État de tradition civiliste au sein de la fédération;

« Qu'elle considère qu'il y a lieu de protéger et de promouvoir cette tradition en précisant davantage la condition de nomination prévue à l'article 98;

« Qu'elle souligne qu'une telle modification peut être effectuée, conformément à l'article 43 de la Loi constitutionnelle de 1982, par proclamation de la gouverneure générale sous le grand sceau du Canada, autorisée par des résolutions de l'Assemblée nationale, du Sénat et de la Chambre des communes;

« Qu'elle précise qu'une telle modification ne constitue en aucune façon une reconnaissance par l'Assemblée nationale de la Loi constitutionnelle de 1982 qui fut adoptée sans son consentement;

« Que l'Assemblée nationale autorise la modification de la Constitution du Canada par proclamation de la Gouverneure générale sous le Grand sceau du Canada, en conformité avec le texte suivant :

« "Modification de la Constitution du Canada, Loi constitutionnelle de 1867 :

« "1° la Loi constitutionnelle de 1867 est modifiée par le remplacement de l'article 98 par le suivant :

« "'98q.1. Les juges des cours supérieures du Québec sont choisis parmi les membres du Barreau du Québec ayant été recommandés par le gouvernement du Québec.";

« "'Titre II — titre de la présente modification : Modification constitutionnelle de (année de proclamation) Québec.'"»

Le vote est maintenant ouvert.

La période de vote est terminée. M. le secrétaire général.

Le Secrétaire : Pour :104

Contre : 0

Abstentions : 0

Le Vice-Président (M. Benjamin) : Cette motion est adoptée. M. le leader adjoint du gouvernement.

> M. Lévesque (Chapleau) : Merci beaucoup, M. le Président. J'aimerais qu'on envoie une copie de cette résolution aux chefs des partis fédéraux, également à la Chambre des communes et aux députés qui seront élus ce lundi, au Sénat, à l'ensemble des sénateurs, au gouvernement fédéral, le prochain premier ministre et le prochain Conseil des ministres à être formé suite à l'élection.
>
> Le Vice-Président (M. Benjamin) : Ce sera fait, M. le leader adjoint du gouvernement.
>
> […]

The future of this initiative remains to be seen, of course, but the duty to negotiate could be put forward by the Quebec government.

8 Questions and controversies in constitutional amendment

Part V of the Constitution Act, 1982 sets out the formal procedures for constitutional amendment in Canada, but leaves several questions unresolved and gives rise to ongoing legal and political controversies, namely the use of referendums [8.1], the possibility of secession of a province [8.2], Quebec's constitutional demands [8.3], Indigenous participation in the amendment process [8.4], and the grievances of Western provinces [8.5].

8.1 The constitutional status of referendums

Part V of the *Constitution Act, 1982* does not provide for direct popular participation in the constitutional amendment process. It remains silent on the necessity—or even the possibility—of organizing a referendum prior to a constitutional amendment. The authority to initiate and approve constitutional amendments lies exclusively with the federal and provincial legislative assemblies.

Although a constitutional referendum is not a mechanism outlined in Part V, political actors have, nonetheless, resorted to the use of popular votes in the past. For instance, in 1992, a nationwide referendum was held to gauge public opinion on the proposed reforms in the Charlottetown Accord. While the outcome of this referendum was not legally binding, it highlighted the potential role of direct democracy in legitimizing significant constitutional changes [8.1.1]. Some provinces have taken this principle further by adopting legislation that explicitly conditions constitutional amendments on prior approval through a referendum [8.1.2.]. Finally, it is worth considering whether a referendum might have been warranted in 1982 to allow the Canadian people to formally endorse the patriation of the Constitution [8.1.3].

8.1.1 The design and legacy of the 1992 pan-Canadian referendum

After the Prime Minister and the 10 provincial premiers reached a consensus on the proposal for constitutional reform in Charlottetown, the federal government chose to submit the agreement to the Canadian people through a national referendum on October 26, 1992.

This initiative aimed to address concerns raised about the Meech Lake Accord, which was criticized for being a closed-door process lacking public consultation and transparency. By taking this step, the federal government also emphasized the importance of securing broad public support for such a significant reform. See Patrick J Monahan, "The Sounds of Silence" in Kenneth McRoberts & Patrick J Monahan, eds, *The Charlottetown Accord, the Referendum, and the Future of Canada* (Toronto: University of Toronto Press, 1993).

The referendum proclamation reads as follows:

> ***Proclamation Directing a Referendum Relating to the Constitution of Canada,* SI/92-180.**
>
> Whereas subsection 3(1) of the *Referendum Act*, being chapter 30 of the Statutes of Canada, 1992, provides that where the Governor in Council considers that it is in the public interest to obtain by means of a referendum the opinion of electors on any question relating to the Constitution of Canada, the Governor in Council may, by proclamation, direct that the opinion of electors be obtained by putting the question to the electors of Canada or of one or more provinces specified in the proclamation at a referendum called for that purpose;
>
> Whereas, pursuant to section 4 of that Act, no proclamation may be issued before the text of the referendum question has been approved under section 5 of that Act;
>
> Whereas the text of the referendum question hereinafter set out was approved by the House of Commons under section 5 of that Act on September 10, 1992 and was concurred in thereunder by the Senate on September 15, 1992;
>
> And Whereas, by Order in Council P.C. 1992-2045, of September 17, 1992, the Governor in Council, considering that it is in the public interest to do so, has ordered that a proclamation do issue directing that the opinion of electors be obtained by means of a referendum on the question hereinafter set out relating to the Constitution of Canada;
>
> Now Know You that We, by and with the advice of Our Privy Council for Canada, do by this Our Proclamation, direct that the opinion of electors be obtained by putting to the electors of the provinces of Ontario, Nova Scotia, New Brunswick, Manitoba, British Columbia, Prince Edward Island, Saskatchewan, Alberta, Newfoundland, the Yukon Territory and the Northwest Territories, at a referendum called for that purpose, the following question relating to the Constitution of Canada:
>
> "Do you agree that the Constitution of Canada should be renewed on the basis of the agreement reached on August 28, 1992?
>
> YesNo"
>
> Of All Which Our Loving Subjects and all others whom these Presents may concern are hereby required to take notice and to govern themselves accordingly.

The Charlottetown Accord was rejected by 54.3% of Canadians electors outside Quebec. A majority of voters in British Columbia (68.3%), Manitoba (61.6%), Alberta (60.2%), Saskatchewan (55.3%), Yukon (56.3%), and Nova Scotia (51.2%) opposed the Accord. In contrast, substantial majorities in New Brunswick (61.8%), Newfoundland (63.2%), the Northwest Territories (61.3%), and Prince Edward Island (73.9%) supported it, while Ontario had a narrow approval with just a slight majority in favor (50.1%). See: See Chief Electoral Officer of Canada, *The 1992 Federal Referendum: A Challenge Met: Report of the Chief Electoral Officer of Canada* (Ottawa: Elections Canada, 1994), at 58-59, online: https://www.elections.ca/res/rep/off/1992/1992_Referendum_Part_1_E.pdf.

Quebec held its own provincial referendum, in which 56.7% of Quebecers also voted "no". See Elections Québec, "Referendum on the Charlottetown Constitutional Accord", online: https://www.electionsquebec.qc.ca/en/results-and-statistics/referendum-on-the-charlottetown-constitutional-accord/.

Canadian electors rejected the Charlottetown Accord largely as a protest against the unpopular government of Prime Minister Brian Mulroney, with many Canadians feeling that it did not adequately address their concerns regarding national unity and decentralization. In Quebec, the rejection stemmed from a belief that the Accord failed to provide sufficient autonomy and recognition of Quebec's distinct society. On the causes of the failure of both referendums, see: Kenneth McRoberts, "Disagreeing on Fundamentals: English Canada and Quebec" in Kenneth McRoberts & Patrick J Monahan, eds, *The Charlottetown Accord, the Referendum, and the Future of Canada* (Toronto: University of Toronto Press, 1993) at p 249; Robert C Vipond, "Seeing Canada Through the Referendum: Still a House Divided" (1993) 23 Publius 39; Kathy L Brock, "Learning from Failure: Lessons from Charlottetown" (1993) 4 Const Forum Const 29.

This dual-referendum dynamic exposed the complexities of addressing national and regional aspirations within the framework of constitutional reform, revealing tensions that continue to shape Canada's political landscape. While the rejection of the Charlottetown Accord marked a significant setback for constitutional renewal, it also highlighted the challenges of crafting agreements capable of satisfying the diverse interests of a country as vast and pluralistic as Canada.

The parallel organization of a nationwide referendum and a provincial referendum in Quebec also highlighted several challenges, as illustrated in the *Haig* case. In this decision, the Supreme Court clarified that the right to vote guaranteed under section 3 of the *Charter* did not extend to the right to participate in a federal referendum. Additionally, the Court confirmed that, under Canadian law, a referendum is non-binding, underscoring its consultative nature rather than its ability to impose legal obligations, unless the legislature explicitly provides otherwise. This reasoning was also adopted by the Newfoundland Court of Appeal in *Hogan*, following the referendum that approved a bilateral constitutional amendment to create a secular school system in 1997.

Haig v. Canada; Haig v. Canada (Chief Electoral Officer), 1993 CanLII 58 (SCC), **[1993] 2 SCR 995**

The judgment of La Forest, L'Heureux-Dubé, Sopinka, Gonthier and Major JJ. was delivered by

L'HEUREUX-DUBÉ J. -- On October 26, 1992, two referenda were held in Canada, each concerning proposed amendments to the Canadian Constitution. Graham Haig was not able to cast a ballot in either. This was unfortunate. The only issue in the present appeal is this: Was Graham Haig entitled to cast a ballot in the federal referendum?

At that specific moment in Canadian history, there was a confluence of political pressures, concerns and events. Among these was the ongoing and often politically heated constitutional dialogue. In order to seek the views of Canadians on this crucial issue of constitutional change, the federal government and the provincial governments who so desired had available a variety of options: commissions, surveys, opinion polls, referenda, etc. Quebec had legally bound itself to hold a referendum on sovereignty, while British Columbia and Alberta had articulated the possibility that they would hold provincial referenda dealing with constitutional change, and that they would consider themselves bound by the results. It was in this context that the federal government undertook to hold a referendum in those provinces where a provincial referendum would not otherwise be held. This choice was in accord with the desire and the authority of the provinces to consult their own electors as they saw fit.

In the end, only two referenda were held: one in Quebec pursuant to Quebec's provincial referendum legislation, the other in the rest of Canada pursuant to the federal referendum legislation. The model chosen by the federal government was one which was open to them under the relevant legislation, which specifically allowed for referenda to be conducted in one or more provinces. The model chosen was, at the time, thought to be politically sound by both the federal and the provincial governments.

The mechanics of the two referenda were governed by the elections legislation of each government. The federal and the Quebec elections legislation, though similar in certain respects, are not mirror images of each other, but contain different provisions on a number of issues including: the preparation of electoral lists, methods of voting, financing, referendum publicity and spending, the roles and functions of the Chief Electoral Officers and their staff, and residency requirements. The residency provisions of the Quebec elections legislation, in particular, diverge from those in the federal legislation by requiring six months residency in order to be eligible to vote. It was this residency requirement which resulted in some Quebec residents, Mr. Haig in particular, not being able to cast their vote, and which is at the heart of this case.

Were the Quebec residents who were not entitled to vote in the Quebec referendum nonetheless entitled to vote in the federal referendum? To answer this question, it is essential to more fully refer to the political events and legislative context leading up to October 26, 1992.

Facts

...

In August of 1992, Graham Haig moved from Ontario to Quebec. On the enumeration day for the federal referendum, Mr. Haig was no longer ordinarily resident in a polling division established for the federal referendum, and so, pursuant to the provisions of the *Canada Elections Act*, he was not included on the list of voters entitled to vote in the federal referendum. At the same time, having been domiciled in Quebec for less than six months, he did not meet the eligibility requirements under the *Election Act*(Quebec), and so was not included on the list of voters eligible to vote in the Quebec referendum. The result was, of course, that Mr. Haig was not enumerated and consequently could not vote in either referendum.

[…]

Section 3: The Right to Vote

The democratic rights contained in ss. 3, 4 and 5 of the *Charter* are quite explicitly articulated. In his discussion in "Democratic Rights", in G.-A. Beaudoin and E. Ratushny, eds., *The Canadian Charter of Rights and Freedoms* (2nd ed. 1989), 265, Professor Beaudoin summarizes these rights at p. 266 as:

> The right to choose the government, the right to seek public office, the right to vote periodically, freely and in secret and the right for those elected to sit regularly are the bases of democratic rights.

The democratic rights guaranteed in the *Charter* are also positive ones. Federal and provincial governments have a mandate to hold regular elections to allow citizens to select their representatives. The failure to hold such regular elections would violate the *Charter*, would open the government to account for such constitutional infringements, and would undoubtedly provoke a constitutional crisis. Since the results of an election are clearly binding upon citizens in a democratic society, failure to act upon such results would entail a serious constitutional breach.

A referendum, on the other hand, is basically a consultative process, a device for the gathering of opinions. Voting in a referendum differs significantly from voting in an election. First, unless it legislatively binds itself to do so, a government is under no obligation to consult its citizens through the mechanism of a referendum. It may, as did Quebec under Bill 150, bind itself to conduct a specific referendum but, in the absence of such legislation, there is no obligation to hold this type of consultation. Second, though a referendum may carry great political weight and a government may choose to act on the basis of the results obtained, such results are non-binding in the absence of legislation requiring a government to act on the basis of the results obtained. In the absence of binding legislation, the citizens of this country would not be entitled to a legal remedy in the event of non-compliance with the results. Were a government to hold a referendum and then ignore the results, the remedy would be in the political and not the legal arena. These differences provide further evidence that the constitutionally guaranteed right to vote does not contemplate the right to vote in a referendum.

Section 3 of the Charter is clear and unambiguous as is its purpose: it is limited to the elections of provincial and federal representatives. Consequently, since a referendum is in no way such a selection, the citizens of this country cannot claim a constitutional right to vote in a referendum under s. 3 of the Charter. Accordingly, Mr. Haig's s. 3 Charter rights were not infringed because he could not cast his ballot in the federal referendum.

[…]

***Hogan v. Newfoundland (Attorney General)*, 2000 NFCA 12**

Cameron, J.A.:

[…]

3) Rule of Law and Respect for Minorities

[105] At its core, this argument is that the actions of the Government of Newfoundland prior to the calling of the referendum of September 1997 and during the period from the calling of the referendum to the vote, including the method of conducting the vote, were in violation of the applicable legislation - the Election Act, R.S.N. 1990, c. E-3, as amended, and were also in violation of the principle of protection of minority rights. None of the alleged deficiencies demonstrates a failure to meet all of the requirements specified in s. 43 of the Constitution Act, 1982. So then, this argument is based on the belief that even if s. 43 could otherwise be said to be the proper amending formula, there are aspects of this case, founded on constitutional principles, which make compliance with s. 43 insufficient to amend Term 17.

[106] While it is conceded that the amending procedure does not require a referendum, the appellants argue that having chosen to make a referendum a part of the process, the Government must abide by the rule of law, applicable laws and the requirements of the Charter and any failure to do so results in an invalid amendment. Here the appellants make an analogy to administrative law and ask that the Court focus not on the result, but on the procedure to determine if the basic rules were met.

[107] In *Reference re Secession of Quebec,* the Supreme Court of Canada emphasized the fact that the Court has no supervisory role over political aspects of constitutional negotiations. At para. [100] the Court added: "equally, the initial impetus for negotiation, namely a clear majority on a clear question in favour of secession, is subject only to political evaluation, and properly so." The comments of the Court were made in the context of a reference. However, the general approach is equally appropriate in this case.

[108] The submission of the A. G. Canada is that the following factors would fall into that political character, at least in relation to the validity of the Constitution Amendment, 1998 (Newfoundland Act), and, therefore, that they have no place in the considerations to be made by this Court: (1) the Provincial Government's policy on educational reform; (2) the quality of the political debate regarding the proposed amendments; (3) the analysis of the results of the vote; (4) the balancing of interest of those favouring and those opposing the amendment; and (5) the specific motivations of members of the Legislative Assembly. The appellants agree respecting the first and third listed topics. As to the others, the appellants argue that the Court can and must examine the referendum process because it is undertaken under law and therefore should be subject to court scrutiny; that any violation of fundamental rights is also subject to court scrutiny and that the court is free, not to tell a member of the Legislature or Parliament how to vote, but to examine the express statements of the members to determine the significance of certain factors in that process. Specifically, the appellants note that in their statements each member spoke of the referendum when describing their reasons for voting as they did. In other words, the appellants look to the "political" statements to support their submission that while the referendum may not have been constitutionally required, it was instrumental in the voting by the members of the legislative bodies.

[109] The Court has no role in examining the motivation of members of the Legislature or the Houses of Parliament in casting their votes. The interpretation of and weight to be given to the results of the referendum is a political matter. I would add further that, at least in respect of the members of the Senate and House of Commons, the very points made by the appellants in this case were made before the Joint Committee and specifically referred to in the report of the Committee which said:

> Some of the denominational interests that testified had specific criticisms of the referendum process. They argued that the original question left the impression that unidenominational education courses would be allowed, that the actual text of the proposed resolution was released too late in the referendum process to allow for full debate, that religious denominations opposed to the amendment were denied government funding, and that scrutineers were not allowed. They also objected to government-funded advertising in favour to the resolution.

It cannot be said that the members of those bodies were unaware of the "deficiencies" pointed to by the appellants.

[110] Counsel for the appellants concedes that the trial judge dealt with the issue of unfairness only in the context of the spending issue. He did not deal with it on any other level. But these submissions were made and the appellants argue that this Court can make the necessary findings here.

[111] I agree that it is not the role of this Court to enter into the policy debate regarding the amendment of Term 17 and the subsequent measures taken respecting education in Newfoundland. The only task before this Court is the determination of the legal issues raised on the appeal.

[…]

[125] In interpreting the Constitution of Canada, one cannot ignore the history of its development. There can be no denying the evolutionary (as opposed to revolutionary) nature of the creation of Canada. Indeed, long after Canada was recognized as an independent country, it continued to evolve and mature constitutionally. However, the fact that we now have constitutional documents to which we can refer collectively as the Constitution does not eliminate all reference to our largely unwritten constitutional past. Not every nuance of the powers of the different heads of government, for example, is written in the Constitution. Even with a written document, certain underlying assumptions will be seen as being self-evident and of constitutional stature. The New Brunswick Broadcasting case required the Court to express what was unwritten. Here the appellants would have this Court defeat a constitutionally mandated process by reference to the "fundamental or original principles." However, unlike the Provincial Court Judges Reference or the New Brunswick Broadcasting case, here the Court is being asked to read in requirements, not to confirm some long accepted unwritten principle of the Constitution but to limit the application of the amending provisions to a right that was granted by the written Constitution. This is not a case where the unwritten assumptions of educational rights need to be stated by the Courts. The rights are fully explored and stated in Term 17. Term 17 is a complete statement of the denominational education rights. No other term written or unwritten of the Constitution need be called upon to interpret Term 17 or to determine how it should be amended. Neither the rule of law nor respect for minorities prevents the application of s. 43 to the amendment of Term 17. The appellants' position ignores the inescapable fact that the Constitution entrusts minority rights to the majority. The structure is designed not to prevent constitutional amendment but to ensure, by making the process more difficult than the passage of an amendment to any other bill, that the rights are given "due regard and protection." The appropriate provision in Part V of the Constitution, having been complied with, the validity of the amendment to Term 17 cannot be questioned.

It is worth considering whether the 1992 Referendum could establish a precedent that might form the foundation for recognizing a constitutional convention, rooted in the underlying constitutional principle of democracy. Such a convention could potentially mandate that any future significant constitutional reforms be subjected to a popular vote. Given that no constitutional amendment has occurred since the failure of the 1992 referendum, the question of whether actors feel bound by such a convention, is still open to debates.

For the view that a convention might exist, see Dave Guénette, "Le référendum constitutionnel dans les sociétés fragmentées – L'expérience canadienne, son ambiguïté et ses conséquences », dans Amélie Binette et Patrick Taillon, (dir.), *L a démocratie référendaire dans les ensembles plurinationaux*, Québec, Presses de l'Université Laval, 2018, p. 181, 194-197; Jeffrey Simpson, "The Referendum and Its Aftermath" in Kenneth McRoberts & Patrick J Monahan, eds, *The Charlottetown Accord, the Referendum, and the Future of Canada* (Toronto: University of Toronto Press, 1993) 193 at 193; Roger Gibbins & David Thomas, "Ten Lessons from the Referendum" (1992) 15 Can Parliamentary Rev 3 at 3. For the view that a convention might not exist Peter Meekison, "Canada's Quest for Constitutional Perfection" (1993) 4 Const Forum Const 55 at 56. For a framework to answer the question on your own, see Richard Albert, "The Conventions of Constitutional Amendment in Canada" (2016) 53 Osgoode Hall LJ 399 at 413-15, 422-33.

8.1.2 Provincial constitutional referendums

The provinces of Alberta and British Columbia have both enacted laws requiring mandatory constitutional referendums for any amendments to the Constitution of Canada. Each of these laws, however, includes distinct provisions.

British Columbia's law imposes an obligation on the provincial government to hold a referendum before introducing any resolution to authorize a constitutional amendment. However, since the law remains silent on the effects of the referendum's outcome, the referendum is, in principle, non-binding.

> ***Constitutional Amendment Approval Act*, RSBC 1996, c 67**
>
> Preamble
>
> WHEREAS Canadians are involved in reassessing the Constitution of Canada;
>
> AND WHEREAS the Constitution of Canada is the Supreme Law of Canada;
>
> AND WHEREAS constitutional amendment has an impact on all British Columbians;
>
> AND WHEREAS it is essential that the Constitution of Canada reflect the values of British Columbians and that British Columbians have an opportunity to indicate their views on any proposed constitutional amendment;
>
> THEREFORE HER MAJESTY, by and with the advice and consent of the Legislative Assembly of the Province of British Columbia, enacts as follows:
>
> Referendum to precede resolution for constitutional change
>
> 1 The government must not introduce a motion for a resolution of the Legislative Assembly authorizing an amendment to the Constitution of Canada unless a referendum has first been conducted under the Referendum Act with respect to the subject matter of that resolution.

The Alberta law, on the other hand, is more restrictive. Not only is the government required to organize a referendum before the Legislative Assembly can vote on a resolution to initiate or approve a constitutional amendment, but it is also obligated to comply with the outcome of the vote and take the steps necessary to give effect to it.

> ***Referendum Act*, RSA 2000, c R-8.4**
>
> […]
>
> 1 The Lieutenant Governor in Council may order that a referendum be held on any question relating to the Constitution of Canada or relating to or arising out of a possible change to the Constitution of Canada.
>
> 2(1) The Lieutenant Governor in Council shall order the holding of a referendum before a resolution authorizing an amendment to the Constitution of Canada is voted on by the Legislative Assembly.
>
> (2) The motion for the resolution may be introduced in the Legislative Assembly before the referendum is held.
>
> 3 The question or questions to be put to the electors at a referendum ordered under section 1 or 2 shall be determined by a resolution of the Legislative Assembly on the motion of a member of the Executive Council.
>
> 4(1) If a majority of the ballots validly ordered under section 1 or 2 vote the same way on a question stated, the result is binding, within the meaning of subsection (2), on the government that initiated the referendum.
>
> (2) If the results of a referendum are binding, the government that initiated the referendum shall, as soon as practicable, take any steps within the competence of the Government of Alberta that it considers necessary or advisable to implement the results of the referendum.
>
> […]
>
> 12 This Act does not apply to a particular proposal to amend the Constitution of Canada if the Legislative Assembly, on the motion of a member of the Executive Council, approves the substitution of a referendum on that proposal held under the Referendum Act (Canada), but
>
> (a) the question on the referendum under the Referendum Act (Canada) must be acceptable to the Legislative Assembly,
>
> (b) that referendum must be held before the resolution authorizing the amendment to the Constitution of Canada is voted on by the Legislative Assembly, and
>
> (c) the result of that referendum, as determined by the majority of ballots validly cast in Alberta, is binding on the Government of Alberta, which shall, as soon as practicable, take whatever steps within its competence that it considers necessary or advisable to implement that result.

It has been argued that these laws could constitute disguised amendments to the amendment formula. Indeed, since both laws technically add a step to the amendment process, they could amount to an indirect amendment to Part V of the Constitution Act, 1982, which requires the unanimous consent of the federal Parliament and the provincial legislatures. See: Sébastien Grammond, « Une province peut-elle subordonner l'approbation d'une modification constitutionnelle à la tenue d'un référendum ? », (1997) 38-3 Les Cahiers de droit 569; Dave Guénette, « Le référendum constitutionnel dans les sociétés fragmentées – L'expérience canadienne, son ambigüité et ses conséquences », dans Patrick Taillon et Amélie Binette (dir.), *La démocratie référendaire dans les États plurinationaux*, Québec, Presses de l'Université Laval, 2018, p. 181.

In addition, if a province wanted to condition its right to unilaterally amend its constitution (s. 45) on holding a binding referendum, it is uncertain that it could make such a change on its own. Indeed, according to the JCPC's decision in *In re The Initiative and Referendum Act,* 1919 CanLII 426 (UK JCPC), [1919] A.C. 935 a referendum with binding effects would interfere with the "office of the lieutenant governor". Given that this matter now falls under section 41(a) of the *Constitution Act, 1982*, such amendment may require the use of the unanimity procedure.

> ***In re The Initiative and Referendum Act*,** 1919 CanLII 426 (UK JCPC), **[1919] A.C. 935, 48 D.L.R. 18 (C.P.).**

(p. 19) VISCOUNT HALDANE :—In this case questions were raised in the Province of Manitoba as to the validity of an Act passed by its Legislature and entitled the Initiative and Referendum Act. In consequence, under a statute which enabled him to do so, the Lieutenant-Governor in Council referred to the Court of King's Bench of the Province the two questions which follow:-

1. Had the Legislative Assembly jurisdiction to enact the said Act, and, if not, in what particular or respect has it exceeded its powers?

2. Had the Legislative Assembly jurisdiction to enact ss. 3, 4, 4a, 7, 8, 11, 12, 17 (sub-s. 1) of the said Act, or any of them; and, if so, which of them?

[…]

(p. 20) The validity of the Initiative and Referendum Act, a statute of a type which is not unknown in parts of the world with constitutions different from that of Canada, of course depends on whether the constitution of Canada as defined by the B.N.A. Act of 1867 permitted a Provincial Legislature to pass it into law for the Province. The first step in the consideration of the matter is therefore to ascertain the exact character of the legislation proposed. In substance it is this. The Legislative Assembly seeks to provide that laws for the Province may be made and repealed by the direct vote of the electors, instead of only by the Legislative Assembly whose members they elect. The machinery created for the accomplishment of this end is that first of all a number of the electors, being not less than 8% of the number of votes polled at the last election, may by petition submit a proposed law to the Legislative Assembly. In the next place, the proposed law, unless enacted without substantial change by the Assembly in the session in which it is submitted, must be submitted by the Lieutenant-Governor in Council to a vote of the electors, to be taken, at the next general Provincial election, unless a special referendum vote has been asked for in the petition. Provision is made for time being available in which to obtain the opinion of the Att'y-Gen'l, and if necessary of the Court, as to whether the proposed law is intra vires. If not it cannot be submitted. If a special referendum vote has been asked for it is usually to be taken within 6 months from the presentation of the petition. In the third place, if a proposed law has been submitted to the electors, and approved by a majority of the votes polled, it is to take effect, "subject, however, to the same powers of veto and disallowance as are provided in the B.N.A. Act or as exist in law with respect to any Act of the Legislative Assembly, as though such law were an Act of the said Assembly," on a date to be proclaimed by the Lieutenant-Governor, and to be not later than 30 days after the official announcement of the result of the vote.

[…]

The Act then, by two well-known sections, 91 and 92, distributes the powers of legislation which it confers between the Dominion Parliament and the Provincial Legislatures. Nothing in s. 91, which relates to Dominion powers, affects the question under consideration, excepting in one important respect. The residuary power of legislation, beyond those powers that are specifically distributed by the two sections, is conferred on the Dominion. Had the Provinces possessed the residuary capacity, as in the case with the States under the constitutions of the United States and Australia, this might have affected the question of the power of their Legislatures to set up new legislative bodies. But it is not so, and it is therefore unnecessary to pursue a point which is merely speculative. The language of s. 92 is important. That section commences by enacting that "in each Province the Legislature may exclusively make laws in relation to matters" coming - within certain classes of subjects. The only one of these classes which is relevant for the present purpose is the first enumerated, "the amendment from time to time, notwithstanding anything in this Act, of the constitution of the Province, except as regards the office of Lieutenant-Governor."

The references their Lordships have already made to the character of the office of Lieutenant-Governor, and to his position Attorney General for New South Wales v. Trethowan, [1932] A.C. 526 (C.P.); as directly representing the Sovereign in the Province, renders natural the exclusion of his office from the power conferred on the Provincial Legislature to amend the constitution of the Province. The analogy of the British constitution is that on which the entire scheme is founded, and that analogy points to the impropriety, in the absence of clear and unmistakable language, of construing s. 92 as permitting the abrogation of any power which the Crown possesses through a person who directly represents it. For when the Lieutenant-Governor gives to or withholds his assent from a Bill passed by the Legislature of the Province, it is in contemplation of law the Sovereign that so gives or withholds assent. Moreover, in accordance with the analogy of the British constitution which the Act of 1867 adopts, the Lieutenant-Governor who represents the Sovereign is a part of the Legislature. This is in terms so enacted in such sections as 69, the principle of which has been applied to Manitoba by s. 2 of the Dominion statute of 1870, which formed the new Province out of Rupert's Land and the N.W.T., and established it with the constitution provided by the Act of 1867. It follows that if the Initiative and Referendum Act has purported to alter the position of the Lieutenant-Governor in these respects, this Act was insofar ultra vires.

Their Lordships are of opinion that the language of the Act cannot be construed otherwise than as intended seriously to affect the position of the Lieutenant-Governor as an integral part of the Legislature, and to detract from rights which are important in the legal theory of that position. For if the Act is valid it compels him to submit a proposed law to a body of voters totally distinct from the Legislature of which he is the constitutional head, and renders him powerless to prevent its becoming an actual law if approved by a majority of these voters. It was argued that the words already referred to, which appear in s. 7, preserve his powers of veto and disallowance. Their Lordships are unable to assent to this contention. The only powers preserved are those which relate to Acts of the Legislative Assembly, as distinguished from Bills, and the powers of veto and disallowance referred to can only be those of the Governor-General under s. 90 of the Act of 1867, and not the powers of the Lieutenant-Governor, which are at an end when a Bill has become an Act. S. 11 of the Initiative and Referendum Act is not less difficult to reconcile with the rights of the Lieutenant-Governor. It provides that when a proposal for repeal of some law has been approved by the majority of the electors voting, that law is automatically to be deemed repealed at the end of 30 days after the Clerk of the Executive Council shall have published in the "Manitoba Gazette" a statement of the result of the vote. Thus the Lieutenant-Governor appears to be wholly excluded from the new legislative authority.

These considerations are sufficient to establish the ultra vires character of the Act. The offending provisions are in their Lordships' view so interwoven into the scheme that they are not severable. The Colonial Laws Validity Act of 1865, therefore, which was invoked in the course of the argument, does not assist the appellants. […]

8.1.3 A referendum in 1982?

Although a referendum was ultimately not included as a condition for constitutional amendments in Part V of the Constitution Act, 1982, the adoption of the Act itself raised the question of whether it should be subjected to a popular vote. Pierre Elliott Trudeau, then Prime Minister of Canada, brought this issue to the forefront by suggesting the possibility to hold a national referendum during a speech before the House of Commons in April 1980:

> "Speech from the Throne", Continuation of Debate on Address in Reply, *House of Commons Debates*, 32-1, No 1 (15 April 1980) at 36 (Rt Hon Pierre E Trudeau).
>
> *I do not discard the idea of an eventual national referendum. If that is the only way in which we can get the people of Canada to affirm their loyalty to Canada over and above their regional loyalties, then I think we should not put the idea aside. Eventually I hope to have occasion to discuss that idea with leaders of other parties and perhaps with the premiers. Perhaps we can find some simple question having to do with constitutional reform upon which there would be a large enough measure of agreement to have a positive vote for Canada in a national referendum. But that is not for today nor indeed perhaps for this particular session, although I hope it might be for this Parliament.*

Trudeau viewed the referendum not only as a tool to confer legitimacy on the proposed Constitution among Canadians, but also as a

strategic last resort to overcome provincial resistance. The threat served to apply significant pressure on the premiers and could be seen as having played a pivotal role in breaking the deadlock. See Albert, Richard, Trudeau's Threat: The Referendum at Patriation (August 3, 2020), in Noura Karazivan and Jean Leclair (eds.), *The Political and Constitutional Legacy of Pierre Elliott Trudeau*, (Toronto: LexisNexis, 2020); Ron Graham, *The Last Act: Pierre Trudeau, the Gang of Eight, and the Fight for Canada* (Toronto: Penguin, 2011). Ultimately, this approach led to the landmark "Kitchen Accord," allowing an agreement to be reached without a referendum being held. See TVO Today, "The Three Amigos of the Constitution", by Steve Paikin, with Jean Chretien, Roy McMurtry and Roy Romanow, April 19, 2012, online (video): https://www.youtube.com/watch?v=-15a773nqnQ. Even if a referendum was not constitutionally required and the provinces consented without one, could holding a referendum have still provided democratic value and enhanced the legitimacy of the 1982 patriation process?

8.2 The secession of a province

The secession of a province is a complex and multifaceted issue in Canada, particularly illustrated by the historical context of the Quebec sovereignty movement. The pivotal 1980 and 1995 referendums framed the questions of sovereignty and reflected the socio-political climate of their times, revealing deep divisions within Quebec and across Canada [8.2.1]. Following these referendums, the *1998 Supreme Court Reference* clarified the legal parameters surrounding secession, establishing key legal foundations for any future attempts at independence and addressing the constitutional implications of a unilateral declaration of secession [8.2.2]. Today, the landscape of secessionist sentiments has evolved, with Quebec's persistent pursuit of autonomy coexisting alongside emerging movements in western provinces, where regional discontent is fostering calls for greater independence from federal governance [8.2.3].

8.2.1 The 1980 and 1995 referendums (questions, context, results)

The Parti Québécois, led by René Lévesque, came to power in 1976 with a mandate to pursue sovereignty-association, proposing a distinct relationship between Quebec and the rest of Canada. In this climate, the government called for a referendum on May 20, 1980, asking voters whether they supported Quebec becoming a sovereign state while maintaining an economic association with Canada. The referendum ultimately resulted in a defeat for the sovereignty movement, with approximately 60% voting against the proposal, but it underscored the ongoing tensions regarding Quebec's status within Canada and set the stage for future discussions on sovereignty and constitutional reform. See: Elections Québec, "Referendum on the 1980 sovereignty-association proposal for Québec", online: https://www.electionsquebec.qc.ca/en/results-and-statistics/referendum-on-the-1980-sovereignty-association-proposal-for-quebec/#anchor2

Following the 1980 referendum, discussions about Quebec's constitutional status continued. The failure of the Meech Lake Accord, which aimed to address Quebec's demands for greater autonomy within Canada, further intensified these discussions. The Commission on the Political and Constitutional Future of Québec was established to explore options for Quebec's future, ultimately recommending sovereignty as a viable path. This culminated in the introduction of *An Act respecting the process for determining the political and constitutional future of Québec*, also known as Bill 150, in May 1991, which sought to empower Quebecers to determine their political status through a referendum and to redefine Quebec's constitutional relationship with Canada. The Act also established special parliamentary committees to explore both the process of achieving sovereignty and any potential new constitutional arrangements with the Canadian government.

> ***An Act respecting the process for determining the political constitutional future of Québec*, LC 1991, c 34.**
>
> 1. The Gouvernment du Quebec shall hold a referendum on the sovereignty of Quebec between 8 June and 22 June 1992 or between 12 October and 26 October 1992.
>
> If the results of the referendum are in favour of sovereignty, they constitute a proposal that Quebec acquire the status of a sovereign State one year to the day from the holding of the referendum.
>
> 2. A special parliamentary committee called the Committee to Examine Matters Relating to the Accession of Quebec to Sovereignty is hereby established, under the authority of the National Assembly.
>
> 3. The order of reference of the committee is to examine and analyse matters relating to the accession of Quebec to full sovereignty, that is, to a position of exclusive jurisdiction, through its democratic institutions, to make laws and levy taxes in its territory and to act on the international scene for the making of agreements and treaties of any kind with other independent States and participating in various international organizations, and to make recommendations to the National Assembly in that regard.
>
> A further order of reference of the committee is to examine and analyse any formal offer of economic partnership that may be made by the Government of Canada, and to make recommendations to the National Assembly with regard to the offer.
>
> 4. A special parliamentary committee called the Committee to Examine any Offer of a New Constitutional Partnership is hereby established, under the authority of the National Assembly.
>
> 5. The order of reference of the committee is to assess any offer of a new constitutional partnership made to the Gouvernement du Québec by the Government of Canada and to make recommendations to the National Assembly with regard to the offer.
>
> 6. No offer of a new constitutional partnership made to the Gouvernement du Québec may be submitted to the assessment of the committee unless it is formally binding on the Government of Canada and the other provinces.
>
> […]

After the adoption of Bill 150, the Quebec government prepared for a referendum on sovereignty, initially scheduled to occur between June 8-22 or October 12-26, 1992. However, during this period, the Charlottetown Accord was proposed as a new constitutional agreement aimed at addressing various regional concerns, including those of Quebec. As we saw, the referendum on the Charlottetown Accord was ultimately rejected by voters across Canada, including in Quebec.

Following this, the Quebec government continued its efforts to engage citizens in discussions about sovereignty, culminating in a referendum on October 30, 1995. Voters were asked : "Do you agree that Quebec should become sovereign, after having made a formal offer to Canada for a new economic and political partnership, within the scope of the bill respecting the future of Quebec and of the agreement signed on June 12, 1995?". See: Secrétariat du Québec aux relations canadiennes, "Historical Background", at para 19, online: Gouvernement of Québec https://www.sqrc.gouv.qc.ca/relations-canadiennes/positions-historiques/politique-affirmation/rappels-historiques-en.asp

This referendum resulted in a narrow defeat for the sovereignty movement, with approximately 50.6% voting against independence.

8.2.2 The 1998 secession reference

In the aftermath of the 1995 referendum, questions emerged regarding the legality of Quebec's potential unilateral declaration of independence. The federal government sought clarity on constitutional issues related to secession, asking the Supreme Court for an opinion on whether Quebec had the right to unilaterally secede from Canada and under what conditions.

The federal government asked three reference questions to the Supreme Court of Canada on September 30, 1996 (*Order in Council PC 1996-1497 (30 September 1996)*:

> 1. Under the Constitution of Canada, can the National Assembly, legislature or government of Quebec effect the secession of Quebec from Canada unilaterally?
>
> 2. Does international law give the National Assembly, legislature or government of Quebec the right to effect the secession of Quebec from Canada unilaterally? In this
>
> regard, is there a right to self-determination under international law that would give
>
> the National Assembly, legislature or government of Quebec the right to effect the secession of Quebec from Canada unilaterally?
>
> 3. In the event of a conflict between domestic and international law on the right of the National Assembly, legislature or government of Quebec to effect the secession of Quebec from Canada unilaterally, which would take precedence in Canada?

The following excerpt presents the section of the Court's judgment that specifically addresses the constitutionality of unilateral secession.

> ***Reference re Secession of Quebec*****,** 1998 CanLII 793 (SCC), **[1998] 2 SCR 217**
>
> […]
>
> (4) The Operation of the Constitutional Principles in the Secession Context
>
> 83 Secession is the effort of a group or section of a state to withdraw itself from the political and constitutional authority of that state, with a view to achieving statehood for a new territorial unit on the international plane. In a federal state, secession typically takes the form of a territorial unit seeking to withdraw from the federation. Secession is a legal act as much as a political one. By the terms of Question 1 of this Reference, we are asked to rule on the legality of unilateral secession "[u]nder the Constitution of Canada". This is an appropriate question, as the legality of unilateral secession must be evaluated, at least in the first instance, from the perspective of the domestic legal order of the state from which the unit seeks to withdraw. As we shall see below, it is also argued that international law is a relevant standard by which the legality of a purported act of secession may be measured.
>
> 84 The secession of a province from Canada must be considered, in legal terms, to require an amendment to the Constitution, which perforce requires negotiation. The amendments necessary to achieve a secession could be radical and extensive. Some commentators have suggested that secession could be a change of such a magnitude that it could not be considered to be merely an amendment to the Constitution. We are not persuaded by this contention. It is of course true that the Constitution is silent as to the ability of a province to secede from Confederation but, although the Constitution neither expressly authorizes nor prohibits secession, an act of secession would purport to alter the governance of Canadian territory in a manner which undoubtedly is inconsistent with our current constitutional arrangements. The fact that those changes would be profound, or that they would purport to have a significance with respect to international law, does not negate their nature as amendments to the Constitution of Canada.
>
> 85 The Constitution is the expression of the sovereignty of the people of Canada. It lies within the power of the people of Canada, acting through their various governments duly elected and recognized under the Constitution, to effect whatever constitutional arrangements are desired within Canadian territory, including, should it be so desired, the secession of Quebec from Canada. As this Court held in the Manitoba Language Rights Reference, supra, at p. 745, "[t]he Constitution of a country is a statement of the will of the people to be governed in accordance with certain principles held as fundamental and certain prescriptions restrictive of the powers of the legislature and government". The manner in which such a political will could be formed and mobilized is a somewhat speculative exercise, though we are asked to assume the existence of such a political will for the purpose of answering the question before us. By the terms of this Reference, we have been asked to consider whether it would be constitutional in such a circumstance for the National Assembly, legislature or government of Quebec to effect the secession of Quebec from Canada unilaterally.
>
> 86 The "unilateral" nature of the act is of cardinal importance and we must be clear as to what is understood by this term. In one sense, any step towards a constitutional amendment initiated by a single actor on the constitutional stage is "unilateral". We do not believe that this is the meaning contemplated by Question 1, nor is this the sense in which the term has been used in argument before us. Rather, what is claimed by a right to secede "unilaterally" is the right to effectuate secession without prior negotiations with the other provinces and the federal government. At issue is not the legality of the first step but the legality of the final act of purported unilateral secession. The supposed juridical basis for such an act is said to be a clear expression of democratic will in a referendum in the province of Quebec. This claim requires us to examine the possible juridical impact, if any, of such a referendum on the functioning of our Constitution, and on the claimed legality of a unilateral act of secession.
>
> 87 Although the Constitution does not itself address the use of a referendum procedure, and the results of a referendum have no direct role or legal effect in our constitutional scheme, a referendum undoubtedly may provide a democratic method of ascertaining the views of the electorate on important political questions on a particular occasion. The democratic principle identified above would demand that considerable weight be given to a clear expression by the people of Quebec of their will to secede from Canada, even though a referendum, in itself and without more, has no direct legal effect, and could not in itself bring about unilateral secession. Our political institutions are premised on the democratic principle, and so an expression of the democratic will of the people of a province carries weight, in that it would confer legitimacy on the efforts of the government of Quebec to initiate the Constitution's amendment process in order to secede by constitutional means. In this context, we refer to a "clear" majority as a qualitative evaluation. The referendum result, if it is to be taken as an expression of the democratic will, must be free of ambiguity both in terms of the question asked and in terms of the support it achieves.
>
> 88 The federalism principle, in conjunction with the democratic principle, dictates that the clear repudiation of the existing constitutional order and the clear expression of the desire to pursue secession by the population of a province would give rise to a reciprocal obligation on all parties to Confederation to negotiate constitutional changes to respond to that desire. The amendment of the Constitution begins with a political process undertaken pursuant to the Constitution itself. In Canada, the initiative for constitutional amendment is the responsibility of democratically elected representatives of the participants in Confederation. Those representatives may, of course, take their cue from a referendum, but in legal terms, constitution-making in Canada, as in many countries, is undertaken by the democratically elected representatives of the people. The corollary of a legitimate attempt by one participant in Confederation to seek an amendment to the Constitution is an obligation on all parties to come to the negotiating table. The clear repudiation by the people of Quebec of the existing constitutional order would confer legitimacy on demands for secession, and place an obligation on the other provinces and the federal government to acknowledge and respect that expression of democratic will by entering into negotiations and conducting them in accordance with the underlying constitutional principles already discussed.
>
> 89 What is the content of this obligation to negotiate? At this juncture, we confront the difficult inter-relationship between substantive obligations flowing from the Constitution and questions of judicial competence and restraint in supervising or enforcing those obligations. This is mirrored by the distinction between the legality and the legitimacy of actions taken under the Constitution. We propose to focus first on the

substantive obligations flowing from this obligation to negotiate; once the nature of those obligations has been described, it is easier to assess the appropriate means of enforcement of those obligations, and to comment on the distinction between legality and legitimacy.

90 The conduct of the parties in such negotiations would be governed by the same constitutional principles which give rise to the duty to negotiate: federalism, democracy, constitutionalism and the rule of law, and the protection of minorities. Those principles lead us to reject two absolutist propositions. One of those propositions is that there would be a legal obligation on the other provinces and federal government to accede to the secession of a province, subject only to negotiation of the logistical details of secession. This proposition is attributed either to the supposed implications of the democratic principle of the Constitution, or to the international law principle of self-determination of peoples.

91 For both theoretical and practical reasons, we cannot accept this view. We hold that Quebec could not purport to invoke a right of self-determination such as to dictate the terms of a proposed secession to the other parties: that would not be a negotiation at all. As well, it would be naive to expect that the substantive goal of secession could readily be distinguished from the practical details of secession. The devil would be in the details. The democracy principle, as we have emphasized, cannot be invoked to trump the principles of federalism and rule of law, the rights of individuals and minorities, or the operation of democracy in the other provinces or in Canada as a whole. No negotiations could be effective if their ultimate outcome, secession, is cast as an absolute legal entitlement based upon an obligation to give effect to that act of secession in the Constitution. Such a foregone conclusion would actually undermine the obligation to negotiate and render it hollow.

92 However, we are equally unable to accept the reverse proposition, that a clear expression of self-determination by the people of Quebec would impose no obligations upon the other provinces or the federal government. The continued existence and operation of the Canadian constitutional order cannot remain indifferent to the clear expression of a clear majority of Quebecers that they no longer wish to remain in Canada. This would amount to the assertion that other constitutionally recognized principles necessarily trump the clearly expressed democratic will of the people of Quebec. Such a proposition fails to give sufficient weight to the underlying constitutional principles that must inform the amendment process, including the principles of democracy and federalism. The rights of other provinces and the federal government cannot deny the right of the government of Quebec to pursue secession, should a clear majority of the people of Quebec choose that goal, so long as in doing so, Quebec respects the rights of others. Negotiations would be necessary to address the interests of the federal government, of Quebec and the other provinces, and other participants, as well as the rights of all Canadians both within and outside Quebec.

93 Is the rejection of both of these propositions reconcilable? Yes, once it is realized that none of the rights or principles under discussion is absolute to the exclusion of the others. This observation suggests that other parties cannot exercise their rights in such a way as to amount to an absolute denial of Quebec's rights, and similarly, that so long as Quebec exercises its rights while respecting the rights of others, it may propose secession and seek to achieve it through negotiation. The negotiation process precipitated by a decision of a clear majority of the population of Quebec on a clear question to pursue secession would require the reconciliation of various rights and obligations by the representatives of two legitimate majorities, namely, the clear majority of the population of Quebec, and the clear majority of Canada as a whole, whatever that may be. There can be no suggestion that either of these majorities "trumps" the other. A political majority that does not act in accordance with the underlying constitutional principles we have identified puts at risk the legitimacy of the exercise of its rights.

94 In such circumstances, the conduct of the parties assumes primary constitutional significance. The negotiation process must be conducted with an eye to the constitutional principles we have outlined, which must inform the actions of all the participants in the negotiation process.

95 Refusal of a party to conduct negotiations in a manner consistent with constitutional principles and values would seriously put at risk the legitimacy of that party's assertion of its rights, and perhaps the negotiation process as a whole. Those who quite legitimately insist upon the importance of upholding the rule of law cannot at the same time be oblivious to the need to act in conformity with constitutional principles and values, and so do their part to contribute to the maintenance and promotion of an environment in which the rule of law may flourish.

96 No one can predict the course that such negotiations might take. The possibility that they might not lead to an agreement amongst the parties must be recognized. Negotiations following a referendum vote in favour of seeking secession would inevitably address a wide range of issues, many of great import. After 131 years of Confederation, there exists, inevitably, a high level of integration in economic, political and social institutions across Canada. The vision of those who brought about Confederation was to create a unified country, not a loose alliance of autonomous provinces. Accordingly, while there are regional economic interests, which sometimes coincide with provincial boundaries, there are also national interests and enterprises (both public and private) that would face potential dismemberment. There is a national economy and a national debt. Arguments were raised before us regarding boundary issues. There are linguistic and cultural minorities, including aboriginal peoples, unevenly distributed across the country who look to the Constitution of Canada for the protection of their rights. Of course, secession would give rise to many issues of great complexity and difficulty. These would have to be resolved within the overall framework of the rule of law, thereby assuring Canadians resident in Quebec and elsewhere a measure of stability in what would likely be a period of considerable upheaval and uncertainty. Nobody seriously suggests that our national existence, seamless in so many aspects, could be effortlessly separated along what are now the provincial boundaries of Quebec. As the Attorney General of Saskatchewan put it in his oral submission:

A nation is built when the communities that comprise it make commitments to it, when they forego choices and opportunities on behalf of a nation, . . . when the communities that comprise it make compromises, when they offer each other guarantees, when they make transfers and perhaps most pointedly, when they receive from others the benefits of national solidarity. The threads of a thousand acts of accommodation are the fabric of a nation. . . .

97 In the circumstances, negotiations following such a referendum would undoubtedly be difficult. While the negotiators would have to contemplate the possibility of secession, there would be no absolute legal entitlement to it and no assumption that an agreement reconciling all relevant rights and obligations would actually be reached. It is foreseeable that even negotiations carried out in conformity with the underlying constitutional principles could reach an impasse. We need not speculate here as to what would then transpire. Under the Constitution, secession requires that an amendment be negotiated.

98 The respective roles of the courts and political actors in discharging the constitutional obligations we have identified follows ineluctably from the foregoing observations. In the Patriation Reference, a distinction was drawn between the law of the Constitution, which, generally speaking, will be enforced by the courts, and other constitutional rules, such as the conventions of the Constitution, which carry only political sanctions. It is also the case, however, that judicial intervention, even in relation to the law of the Constitution, is subject to the Court's appreciation of its proper role in the constitutional scheme.

99 The notion of justiciability is, as we earlier pointed out in dealing with the preliminary objection, linked to the notion of appropriate judicial restraint. We earlier made reference to the discussion of justiciability in Reference re Canada Assistance Plan, supra, at p. 545:

In exercising its discretion whether to determine a matter that is alleged to be non-justiciable, the Court's primary concern is to retain its proper role within the constitutional framework of our democratic form of government.

In Operation Dismantle, supra, at p. 459, it was pointed out that justiciability is a "doctrine . . . founded upon a concern with the appropriate role of the courts as the forum for the resolution of different types of disputes". An analogous doctrine of judicial restraint operates here. Also, as observed in Canada (Auditor General) v. Canada (Minister of Energy, Mines and Resources), 1989 CanLII 73 (SCC), [1989] 2 SCR 49 (the Auditor General's case), at p. 91:

There is an array of issues which calls for the exercise of judicial judgment on whether the questions are properly cognizable by the courts. Ultimately, such judgment depends on the appreciation by the judiciary of its own position in the constitutional scheme.

100 The role of the Court in this Reference is limited to the identification of the relevant aspects of the Constitution in their broadest sense. We have interpreted the questions as relating to the constitutional framework within which political decisions may ultimately be made. Within that framework, the workings of the political process are complex and can only be resolved by means of political judgments and evaluations. The Court has no supervisory role over the political aspects of constitutional negotiations. Equally, the initial impetus for negotiation, namely a clear majority on a clear question in favour of secession, is subject only to political evaluation, and properly so. A right and a corresponding duty to negotiate secession cannot be built on an alleged expression of democratic will if the expression of democratic will is itself fraught with ambiguities. Only the political actors would have the information and expertise to make the appropriate judgment as to the point at which, and the circumstances in which, those ambiguities are resolved one way or the other.

101 If the circumstances giving rise to the duty to negotiate were to arise, the distinction between the strong defence of legitimate interests and the taking of positions which, in fact, ignore the legitimate interests of others is one that also defies legal analysis. The Court would not have access to all of the information available to the political actors, and the methods appropriate for the search for truth in a court of law are ill-suited to getting to the bottom of constitutional negotiations. To the extent that the questions are political in nature, it is not the role of the judiciary to interpose its own views on the different negotiating positions of the parties, even were it invited to do so. Rather, it is the obligation of the elected representatives to give concrete form to the discharge of their constitutional obligations which only they and their electors can ultimately assess. The reconciliation of the various legitimate constitutional interests outlined above is necessarily committed to the political rather than the judicial realm, precisely because that reconciliation can only be achieved through the give and take of the negotiation process. Having established the legal framework, it would be for the democratically elected leadership of the various participants to resolve their differences.

102 The non-justiciability of political issues that lack a legal component does not deprive the surrounding constitutional framework of its binding status, nor does this mean that constitutional obligations could be breached without incurring serious legal repercussions. Where there are legal rights there are remedies, but as we explained in the Auditor General's case, supra, at p. 90, and New Brunswick Broadcasting, supra, the appropriate recourse in some circumstances lies through the workings of the political process rather than the courts.

103 To the extent that a breach of the constitutional duty to negotiate in accordance with the principles described above undermines the legitimacy of a party's actions, it may have important ramifications at the international level. Thus, a failure of the duty to undertake negotiations and pursue them according to constitutional principles may undermine that government's claim to legitimacy which is generally a precondition for recognition by the international community. Conversely, violations of those principles by the federal or other provincial governments responding to the request for secession may undermine their legitimacy. Thus, a Quebec that had negotiated in conformity with constitutional principles and values in the face of unreasonable intransigence on the part of other participants at the federal or provincial level would be more likely to be recognized than a Quebec which did not itself act according to constitutional principles in the negotiation process. Both the legality of the acts of the parties to the negotiation process under Canadian law, and the perceived legitimacy of such action, would be important considerations in the recognition process. In this way, the adherence of the parties to the obligation to negotiate would be evaluated in an indirect manner on the international plane.

104 Accordingly, the secession of Quebec from Canada cannot be accomplished by the National Assembly, the legislature or government of Quebec unilaterally, that is to say, without principled negotiations, and be considered a lawful act. Any attempt to effect the secession of a province from Canada must be undertaken pursuant to the Constitution of Canada, or else violate the Canadian legal order. However, the continued existence and operation of the Canadian constitutional order cannot remain unaffected by the unambiguous expression of a clear majority of Quebecers that they no longer wish to remain in Canada. The primary means by which that expression is given effect is the constitutional duty to negotiate in accordance with the constitutional principles that we have described herein. In the event secession negotiations are initiated, our Constitution, no less than our history, would call on the participants to work to reconcile the rights, obligations and legitimate aspirations of all Canadians within a framework that emphasizes constitutional responsibilities as much as it does constitutional rights.

105 It will be noted that Question 1 does not ask how secession could be achieved in a constitutional manner, but addresses one form of secession only, namely unilateral secession. Although the applicability of various procedures to achieve lawful secession was raised in argument, each option would require us to assume the existence of facts that at this stage are unknown. In accordance with the usual rule of prudence in constitutional cases, we refrain from pronouncing on the applicability of any particular constitutional procedure to effect secession unless and until sufficiently clear facts exist to squarely raise an issue for judicial determination.

[…]

IV. Summary of Conclusions

148 As stated at the outset, this Reference has required us to consider momentous questions that go to the heart of our system of constitutional government. We have emphasized that the Constitution is more than a written text. It embraces the entire global system of rules and principles which govern the exercise of constitutional authority. A superficial reading of selected provisions of the written constitutional enactment, without more, may be misleading. It is necessary to make a more profound investigation of the underlying principles that animate the whole of our Constitution, including the principles of federalism, democracy, constitutionalism and the rule of law, and respect for minorities. Those principles must inform our overall appreciation of the constitutional rights and obligations that would come into play in the event a clear majority of Quebecers votes on a clear question in favour of secession.

149 The Reference requires us to consider whether Quebec has a right to unilateral secession. Those who support the existence of such a right found their case primarily on the principle of democracy. Democracy, however, means more than simple majority rule. As reflected in our constitutional jurisprudence, democracy exists in the larger context of other constitutional values such as those already mentioned. In the 131 years since Confederation, the people of the provinces and territories have created close ties of interdependence (economically, socially, politically and culturally) based on shared values that include federalism, democracy, constitutionalism and the rule of law, and respect for minorities. A democratic decision of Quebecers in favour of secession would put those relationships at risk. The Constitution vouchsafes order and stability, and accordingly secession of a province "under the Constitution" could not be achieved unilaterally, that is, without principled negotiation with other participants in Confederation within the existing constitutional framework.

150 The Constitution is not a straitjacket. Even a brief review of our constitutional history demonstrates periods of momentous and dramatic change. Our democratic institutions necessarily accommodate a continuous process of discussion and evolution, which is reflected in the constitutional right of each participant in the federation to initiate constitutional change. This right implies a reciprocal duty on the other participants to engage in discussions to address any legitimate initiative to change the constitutional order. While it is true that some attempts at constitutional amendment in recent years have faltered, a clear majority vote in Quebec on a clear question in favour of secession would confer democratic legitimacy on the secession initiative which all of the other participants in Confederation would have to recognize.

> 151 Quebec could not, despite a clear referendum result, purport to invoke a right of self-determination to dictate the terms of a proposed secession to the other parties to the federation. The democratic vote, by however strong a majority, would have no legal effect on its own and could not push aside the principles of federalism and the rule of law, the rights of individuals and minorities, or the operation of democracy in the other provinces or in Canada as a whole. Democratic rights under the Constitution cannot be divorced from constitutional obligations. Nor, however, can the reverse proposition be accepted. The continued existence and operation of the Canadian constitutional order could not be indifferent to a clear expression of a clear majority of Quebecers that they no longer wish to remain in Canada. The other provinces and the federal government would have no basis to deny the right of the government of Quebec to pursue secession, should a clear majority of the people of Quebec choose that goal, so long as in doing so, Quebec respects the rights of others. The negotiations that followed such a vote would address the potential act of secession as well as its possible terms should in fact secession proceed. There would be no conclusions predetermined by law on any issue. Negotiations would need to address the interests of the other provinces, the federal government, Quebec and indeed the rights of all Canadians both within and outside Quebec, and specifically the rights of minorities. No one suggests that it would be an easy set of negotiations.
>
> 152 The negotiation process would require the reconciliation of various rights and obligations by negotiation between two legitimate majorities, namely, the majority of the population of Quebec, and that of Canada as a whole. A political majority at either level that does not act in accordance with the underlying constitutional principles we have mentioned puts at risk the legitimacy of its exercise of its rights, and the ultimate acceptance of the result by the international community.
>
> 153 The task of the Court has been to clarify the legal framework within which political decisions are to be taken "under the Constitution", not to usurp the prerogatives of the political forces that operate within that framework. The obligations we have identified are binding obligations under the Constitution of Canada. However, it will be for the political actors to determine what constitutes "a clear majority on a clear question" in the circumstances under which a future referendum vote may be taken. Equally, in the event of demonstrated majority support for Quebec secession, the content and process of the negotiations will be for the political actors to settle. The reconciliation of the various legitimate constitutional interests is necessarily committed to the political rather than the judicial realm precisely because that reconciliation can only be achieved through the give and take of political negotiations. To the extent issues addressed in the course of negotiation are political, the courts, appreciating their proper role in the constitutional scheme, would have no supervisory role.
>
> 154 We have also considered whether a positive legal entitlement to secession exists under international law in the factual circumstances contemplated by Question 1, i.e., a clear democratic expression of support on a clear question for Quebec secession. Some of those who supported an affirmative answer to this question did so on the basis of the recognized right to self-determination that belongs to all "peoples". Although much of the Quebec population certainly shares many of the characteristics of a people, it is not necessary to decide the "people" issue because, whatever may be the correct determination of this issue in the context of Quebec, a right to secession only arises under the principle of self-determination of peoples at international law where "a people" is governed as part of a colonial empire; where "a people" is subject to alien subjugation, domination or exploitation; and possibly where "a people" is denied any meaningful exercise of its right to self-determination within the state of which it forms a part. In other circumstances, peoples are expected to achieve self-determination within the framework of their existing state. A state whose government represents the whole of the people or peoples resident within its territory, on a basis of equality and without discrimination, and respects the principles of self-determination in its internal arrangements, is entitled to maintain its territorial integrity under international law and to have that territorial integrity recognized by other states. Quebec does not meet the threshold of a colonial people or an oppressed people, nor can it be suggested that Quebecers have been denied meaningful access to government to pursue their political, economic, cultural and social development. In the circumstances, the National Assembly, the legislature or the government of Quebec do not enjoy a right at international law to effect the secession of Quebec from Canada unilaterally.
>
> 155 Although there is no right, under the Constitution or at international law, to unilateral secession, that is secession without negotiation on the basis just discussed, this does not rule out the possibility of an unconstitutional declaration of secession leading to a de facto secession. The ultimate success of such a secession would be dependent on recognition by the international community, which is likely to consider the legality and legitimacy of secession having regard to, amongst other facts, the conduct of Quebec and Canada, in determining whether to grant or withhold recognition. Such recognition, even if granted, would not, however, provide any retroactive justification for the act of secession, either under the Constitution of Canada or at international law.

In response to the *Secession Reference*, the Canadian government introduced the *Clarity Act* in 2000, which established guidelines for future referendums on sovereignty. This legislation required that any question posed in a referendum must be clear and that a "clear majority" would be necessary for the federal government to engage in negotiations regarding secession. Concurrently, Quebec's National Assembly passed Bill 99 in 2000, reaffirming the province's right to self-determination and asserting that any future referendum on sovereignty would be valid regardless of the federal government's interpretation of clarity.

> ***An Act to Give Effect to the Requirement for Clarity as Set out in the Opinion of the Supreme Court of Canada in the Quebec Secession Reference*, SC 2000, c 26 ("Clarity Act")**
>
> Preamble
>
> WHEREAS the Supreme Court of Canada has confirmed that there is no right, under international law or under the Constitution of Canada, for the National Assembly, legislature or government of Quebec to effect the secession of Quebec from Canada unilaterally;
>
> WHEREAS any proposal relating to the break-up of a democratic state is a matter of the utmost gravity and is of fundamental importance to all of its citizens;
>
> WHEREAS the government of any province of Canada is entitled to consult its population by referendum on any issue and is entitled to formulate the wording of its referendum question;
>
> WHEREAS the Supreme Court of Canada has determined that the result of a referendum on the secession of a province from Canada must be free of ambiguity both in terms of the question asked and in terms of the support it achieves if that result is to be taken as an expression of the democratic will that would give rise to an obligation to enter into negotiations that might lead to secession;
>
> WHEREAS the Supreme Court of Canada has stated that democracy means more than simple majority rule, that a clear majority in favour of secession would be required to create an obligation to negotiate secession, and that a qualitative evaluation is required to determine whether a clear majority in favour of secession exists in the circumstances;
>
> WHEREAS the Supreme Court of Canada has confirmed that, in Canada, the secession of a province, to be lawful, would require an amendment to the Constitution of Canada, that such an amendment would perforce require negotiations in relation to secession involving at least the governments of all of the provinces and the Government of Canada, and that those negotiations would be governed by the principles of federalism, democracy, constitutionalism and the rule of law, and the protection of minorities;
>
> WHEREAS, in light of the finding by the Supreme Court of Canada that it would be for elected representatives to determine what constitutes a clear question and what constitutes a clear majority in a referendum held in a province on secession, the House of Commons, as the only political institution elected to represent all Canadians, has an important role in identifying what constitutes a clear question and a clear majority

sufficient for the Government of Canada to enter into negotiations in relation to the secession of a province from Canada;

AND WHEREAS it is incumbent on the Government of Canada not to enter into negotiations that might lead to the secession of a province from Canada, and that could consequently entail the termination of citizenship and other rights that Canadian citizens resident in the province enjoy as full participants in Canada, unless the population of that province has clearly expressed its democratic will that the province secede from Canada;

NOW, THEREFORE, Her Majesty, by and with the advice and consent of the Senate and House of Commons of Canada, enacts as follows:

House of Commons to consider question

1 (1) The House of Commons shall, within thirty days after the government of a province tables in its legislative assembly or otherwise officially releases the question that it intends to submit to its voters in a referendum relating to the proposed secession of the province from Canada, consider the question and, by resolution, set out its determination on whether the question is clear.

Extension of time

(2) Where the thirty days referred to in subsection (1) occur, in whole or in part, during a general election of members to serve in the House of Commons, the thirty days shall be extended by an additional forty days.

Considerations

(3) In considering the clarity of a referendum question, the House of Commons shall consider whether the question would result in a clear expression of the will of the population of a province on whether the province should cease to be part of Canada and become an independent state.

Where no clear expression of will

(4) For the purpose of subsection (3), a clear expression of the will of the population of a province that the province cease to be part of Canada could not result from

(a) a referendum question that merely focuses on a mandate to negotiate without soliciting a direct expression of the will of the population of that province on whether the province should cease to be part of Canada; or

(b) a referendum question that envisages other possibilities in addition to the secession of the province from Canada, such as economic or political arrangements with Canada, that obscure a direct expression of the will of the population of that province on whether the province should cease to be part of Canada.

Other views to be considered

(5) In considering the clarity of a referendum question, the House of Commons shall take into account the views of all political parties represented in the legislative assembly of the province whose government is proposing the referendum on secession, any formal statements or resolutions by the government or legislative assembly of any province or territory of Canada, any formal statements or resolutions by the Senate, any formal statements or resolutions by the representatives of the Aboriginal peoples of Canada, especially those in the province whose government is proposing the referendum on secession, and any other views it considers to be relevant.

No negotiations if question not clear

(6) The Government of Canada shall not enter into negotiations on the terms on which a province might cease to be part of Canada if the House of Commons determines, pursuant to this section, that a referendum question is not clear and, for that reason, would not result in a clear expression of the will of the population of that province on whether the province should cease to be part of Canada.

House of Commons to consider whether there is a clear will to secede

2 (1) Where the government of a province, following a referendum relating to the secession of the province from Canada, seeks to enter into negotiations on the terms on which that province might cease to be part of Canada, the House of Commons shall, except where it has determined pursuant to section 1 that a referendum question is not clear, consider and, by resolution, set out its determination on whether, in the circumstances, there has been a clear expression of a will by a clear majority of the population of that province that the province cease to be part of Canada.

Factors for House of Commons to take into account

(2) In considering whether there has been a clear expression of a will by a clear majority of the population of a province that the province cease to be part of Canada, the House of Commons shall take into account

(a) the size of the majority of valid votes cast in favour of the secessionist option;

(b) the percentage of eligible voters voting in the referendum; and

(c) any other matters or circumstances it considers to be relevant.

Other views to be considered

(3) In considering whether there has been a clear expression of a will by a clear majority of the population of a province that the province cease to be part of Canada, the House of Commons shall take into account the views of all political parties represented in the legislative assembly of the province whose government proposed the referendum on secession, any formal statements or resolutions by the government or legislative assembly of any province or territory of Canada, any formal statements or resolutions by the Senate, any formal statements or resolutions by the representatives of the Aboriginal peoples of Canada, especially those in the province whose government proposed the referendum on secession, and any other views it considers to be relevant.

No negotiations unless will clear

(4) The Government of Canada shall not enter into negotiations on the terms on which a province might cease to be part of Canada unless the House of Commons determines, pursuant to this section, that there has been a clear expression of a will by a clear majority of the population of that province that the province cease to be part of Canada.

Constitutional amendments

3 (1) It is recognized that there is no right under the Constitution of Canada to effect the secession of a province from Canada unilaterally and that, therefore, an amendment to the Constitution of Canada would be required for any province to secede from Canada, which in turn would require negotiations involving at least the governments of all of the provinces and the Government of Canada.

Limitation

(2) No Minister of the Crown shall propose a constitutional amendment to effect the secession of a province from Canada unless the Government of Canada has addressed, in its negotiations, the terms of secession that are relevant in the circumstances, including the division of assets and liabilities, any changes to the borders of the province, the rights, interests and territorial claims of the Aboriginal peoples of Canada, and the protection of minority rights.

***An Act respecting the exercise of the fundamental rights and prerogatives of the Québec people and the Québec State*, SQ 2000, c 46**

WHEREAS the Québec people, in the majority French-speaking, possesses specific characteristics and a deep-rooted historical continuity in a territory over which it exercises its rights through a modern national state, having a government, a national assembly and impartial and independent courts of justice ;

WHEREAS the constitutional foundation of the Québec State has been enriched over the years by the passage of fundamental laws and the creation of democratic institutions specific to Québec ;

WHEREAS Québec entered the Canadian federation in 1867 ;

WHEREAS Québec is firmly committed to respecting human rights and freedoms ;

WHEREAS the Abenaki, Algonquin, Attikamek, Cree, Huron, Innu, Malecite, Micmac, Mohawk, Naskapi and Inuit Nations exist within Québec, and whereas the principles associated with that recognition were set out in the resolution adopted by the National Assembly on 20 March 1985, in particular their right to autonomy within Québec ;

WHEREAS there exists a Québec English-speaking community that enjoys long-established rights;

WHEREAS Québec recognizes the contribution made by Quebecers of all origins to its development ;

WHEREAS the National Assembly is composed of Members elected by universal suffrage by the Québec people and derives its legitimacy from the Québec people in that it is the only legislative body exclusively representing the Québec people ;

WHEREAS it is incumbent upon the National Assembly, as the guardian of the historical and inalienable rights and powers of the Québec people, to defend the Québec people against any attempt to despoil it of those rights or powers or to undermine them ;

WHEREAS the National Assembly has never adhered to the Constitution Act, 1982, which was enacted despite its opposition ;

WHEREAS Québec is facing a policy of the federal government designed to call into question the legitimacy, integrity and efficient operation of its national democratic institutions, notably by the passage and proclamation of the Act to give effect to the requirement for clarity as set out in the opinion of the Supreme Court of Canada in the Quebec Secession Reference (Statutes of Canada, 2000, chapter 26) ;

WHEREAS it is necessary to reaffirm the fundamental principle that the Québec people is free to take charge of its own destiny, determine its political status and pursue its economic, social and cultural development ;

WHEREAS this principle has applied on several occasions in the past, notably in the referendums held in 1980, 1992 and 1995 ;

WHEREAS the Supreme Court of Canada rendered an advisory opinion on 20 August 1998, and considering the recognition by the Government of Québec of its political importance ;

WHEREAS it is necessary to reaffirm the collective attainments of the Québec people, the responsibilities of the Québec State and the rights and prerogatives of the National Assembly with respect to all matters affecting the future of the Québec people ;

CHAPTER I

THE QUÉBEC PEOPLE

1. The right of the Québec people to self-determination is founded in fact and in law. The Québec people is the holder of rights that are universally recognized under the principle of equal rights and self-determination of peoples.

2. The Québec people has the inalienable right to freely decide the political regime and legal status of Québec.

3. The Québec people, acting through its own political institutions, shall determine alone the mode of exercise of its right to choose the political regime and legal status of Québec.

No condition or mode of exercise of that right, in particular the consultation of the Québec people by way of a referendum, shall have effect unless determined in accordance with the first paragraph.

4. When the Québec people is consulted by way of a referendum under the Referendum Act (chapter C-64.1), the winning option is the option that obtains a majority of the valid votes cast, namely 50% of the valid votes cast plus one.

CHAPTER II

THE QUÉBEC NATIONAL STATE

5. The Québec State derives its legitimacy from the will of the people inhabiting its territory.

The will of the people is expressed through the election of Members to the National Assembly by universal suffrage, by secret ballot under the one person, one vote system pursuant to the Election Act (chapter E-3.3), and through referendums held pursuant to the Referendum Act (chapter C-64.1).

Qualification as an elector is governed by the provisions of the Election Act.

6. The Québec State is sovereign in the areas assigned to its jurisdiction within the scope of constitutional laws and conventions.

The Québec State also holds, on behalf of the Québec people, any right established to its advantage pursuant to a constitutional convention or obligation.

It is the duty of the Government to uphold the exercise and defend the integrity of those prerogatives, at all times and in all places, including on the international scene.

7. The Québec State is free to consent to be bound by any treaty, convention or international agreement in matters under its constitutional jurisdiction.

No treaty, convention or agreement in the areas under its jurisdiction may be binding on the Québec State unless the consent of the Québec State to be bound has been formally expressed by the National Assembly or the Government, subject to the applicable legislative provisions.

> The Québec State may, in the areas under its jurisdiction, establish and maintain relations with foreign States and international organizations and ensure its representation outside Québec.
>
> 8. The French language is the official language of Québec.
>
> The duties and obligations relating to or arising from the status of the French language are established by the Charter of the French language (chapter C-11).
>
> The Québec State must promote the quality and influence of the French language. It shall pursue those objectives in a spirit of fairness and open-mindedness, respectful of the long-established rights of Québec's English-speaking community.
>
> CHAPTER III
>
> THE TERRITORY OF QUÉBEC
>
> 9. The territory of Québec and its boundaries cannot be altered except with the consent of the National Assembly.
>
> The Government must ensure that the territorial integrity of Québec is maintained and respected.
>
> 10. The Québec State exercises, throughout the territory of Québec and on behalf of the Québec people, all the powers relating to its jurisdiction and to the Québec public domain.
>
> The State may develop and administer the territory of Québec and, more specifically, delegate authority to administer the territory to local or regional mandated entities, as provided by law. The State shall encourage local and regional communities to take responsibility for their development.
>
> CHAPTER IV
>
> THE ABORIGINAL NATIONS OF QUÉBEC
>
> 11. In exercising its constitutional jurisdiction, the Québec State recognizes the existing aboriginal and treaty rights of the aboriginal nations of Québec.
>
> 2000, c. 46, s. 11.
>
> 12. The Government undertakes to promote the establishment and maintenance of harmonious relations with the aboriginal nations, and to foster their development and an improvement in their economic, social and cultural conditions.
>
> CHAPTER V
>
> FINAL PROVISIONS
>
> 13. No other parliament or government may reduce the powers, authority, sovereignty or legitimacy of the National Assembly, or impose constraint on the democratic will of the Québec people to determine its own future.

8.2.3 Secession today: Quebec, Alberta, and beyond

Since the 1995 referendum, the Parti Québécois (PQ), historically the main advocate for sovereignty, has seen fluctuations in popularity, while parties like the Coalition Avenir Québec (CAQ) have emerged, adopting a more autonomist nationalism rather than an explicit quest for independence. Simultaneously, new secessionist movements have arisen in the western provinces, where parties like the Maverick Party advocate for autonomy or secession in response to a growing sentiment of alienation from the federal government. These movements reflect a broader dynamic of discontent that extends beyond Quebec, illustrating regional tensions within Canada regarding perceptions of economic and political injustice. We will address further Western politics in Section 8.5.

8.3 Quebec's traditional demands

Quebec's traditional demands for autonomy and recognition within Canada have evolved significantly over the decades, shaped by a series of constitutional negotiations and political developments.

The period before patriation saw Quebec grappling with its identity and rights within the Canadian federation, leading to critical discussions about its status [8.3.1]. The Meech Lake Accord [8.3.2] and the Charlottetown Accord [8.3.3] aimed to address these concerns by recognizing Quebec as a distinct society, but ultimately failed to gain the necessary support. In response to these challenges, the federal government has attempted to navigate regional interests through initiatives like the *Regional Veto Act* and resolutions by the House of Commons [8.3.4]. More recently, the 2017 document "Québécois, notre façon d'être Canadiens" reflects ongoing efforts to redefine Quebec's place within Canada [8.3.5].

8.3.1 Before patriation

Since the establishment of the Canadian Confederation in 1867, Quebec has consistently articulated specific demands aimed at securing recognition and autonomy within the Canadian federation. These demands have evolved over time but have remained centred around the principles of cultural identity, linguistic rights, and provincial autonomy. Initially, Quebec representatives sought assurances that their unique French-speaking culture and civil law system would be preserved within the new federal framework. Over the decades, Quebec's demands included calls for greater control over its own affairs, particularly in areas such as education, health care, and social services.

As negotiations progressed toward patriation in the 1970s, Quebec's government articulated specific demands that included a veto over significant constitutional amendments and full compensation for opting out of federal programs. These demands reflected a broader aspiration for self-determination and respect for Quebec's unique position within Canada.

During the constitutional negotiations of the 1970s, the Government of Quebec made several key demands in exchange for its support for the patriation plan. These included a redefinition of the division of powers to ensure legislative paramountcy for Quebec in areas related to social policy. This would allow Quebec to exercise greater control over social programs and policies that directly affect its population. Additionally, Quebec sought full compensation from the federal government should it choose to opt out of federal programs.

Another significant demand from Quebec was for recognition as a distinct society within the new constitutional framework. This demand underscored Quebec's desire for acknowledgment of its unique cultural and historical identity within Canada. Furthermore, Quebec requested a veto over substantial constitutional amendments, particularly those involving changes such as the creation of new provinces or significant alterations to provincial powers.

On Quebec's traditional demands before patriation, see : Secrétariat du Québec aux relations canadiennes, "Historical Background", at para 19, online: Gouvernement of Québec https://www.sqrc.gouv.qc.ca/relations-canadiennes/positions-historiques/politique-affirmation/rappels-historiques-en.asp

After the federal government presented the *Resolution to amend the Constitution* to the House of Commons without Quebec's consent, the National Assembly of Quebec passed a motion on November 25, 1981, officially expressing the province's opposition to the resolution. See: "Résolution concernant le rapatriement unilatéral de la Constitution canadienne", online https://www.sqrc.gouv.qc.ca/relations-canadiennes/positions-historiques/motions/1980-11-21.pdf

The same day, Quebec initiated legal action to assert its right to a veto over constitutional amendments by initiating a reference before the Quebec Court of Appeal, asking the following question:

> **Government of Quebec, Decree No 3215-81, dated November 25, 1981.**
>
> "Is the consent of the Province of Quebec constitutionally required, by convention, for the adoption by the Senate and the House of Commons of Canada of a resolution the purpose of which is to cause the Canadian Constitution to be amended in such a manner as to affect:
>
> (i) the legislative competence of the Legislature of the Province of Quebec in virtue of the Canadian Constitution;
>
> (ii) the status or role of the Legislature or Government of the Province of Quebec within the Canadian federation;
>
> and, does the objection of the Province of Quebec render the adoption of such resolution unconstitutional in the conventional sense?"

The Court of Appeal answered this question in the negative, and the Attorney General of Quebec appealed this decision. In *Re: Objection by Quebec to a Resolution to amend the Constitution*, the Supreme Court of Canada concluded that while there was a conventional requirement for a substantial degree of provincial consent for constitutional amendments, there was no specific veto granted to Quebec under constitutional conventions. See the excerpt reproduced above in Section 2.2.

8.3.2 The Meech lake accord

Following the patriation, feelings of alienation and dissatisfaction grew among Quebecers. In this environment, the election of a Liberal government in Quebec in 1985 under Premier Robert Bourassa reignited efforts to secure constitutional recognition and reform that would better accommodate Quebec's aspirations.

The Meech Lake Accord was proposed in 1987 as a response to these ongoing grievances, aiming to bring Quebec back into the constitutional fold by addressing its specific demands. The agreement included five key conditions articulated by the Quebec government, which were seen as essential for gaining Quebec's consent to the Constitution. These conditions included recognizing Quebec as a distinct society within Canada, enhancing Quebec's powers in immigration matters, limiting federal spending power, ensuring Quebec's participation in judicial appointments, and granting Quebec a veto over substantial constitutional amendments. As we have seen in Section 5.1, despite initial support for the Accord, it ultimately failed to achieve ratification by all provinces, leading to its collapse in 1990.

8.3.3 The Charlottetown accord

The Charlottetown Accord, proposed in 1992 aimed at addressing the longstanding demands of Quebec within the broader context of Canadian federalism. This agreement sought to reconcile the aspirations of Quebec with those of other provinces and Indigenous groups.

One of the central demands articulated by Quebec in the Accord was the recognition of its status as a distinct society within Canada. This recognition was intended to affirm Quebec's unique cultural and linguistic identity, particularly its French-speaking population, and to ensure that this identity was acknowledged in the constitutional framework. The Accord aimed to provide a formal acknowledgment that Quebec's distinctiveness warranted special consideration in federal policies and decision-making.

In addition to this recognition, the Accord proposed decentralizing powers from the federal government to the provinces. This decentralization was crucial for Quebec, as it sought greater control over areas such as health care, education, and cultural policies. By transferring powers related to forests, mines, and cultural affairs to provincial jurisdiction, the Accord aimed to empower Quebec to tailor its policies according to its specific needs and values.

Another significant aspect of Quebec's demands within the Accord was related to compensation for provinces opting out of federal programs. The agreement included provisions that would allow provinces to create their own programs while receiving financial compensation from the federal government, provided these programs aligned with national objectives. This aspect was particularly important for Quebec, as it sought to maintain its autonomy while ensuring adequate funding for its initiatives.

The Accord also addressed the need for reform of federal institutions, including changes to the Senate. It proposed transforming the Senate into an elected body that would provide equal representation for all provinces. This reform was seen as a way to enhance provincial influence within federal decision-making processes and ensure that Quebec's interests were adequately represented at the national level.

8.3.4 The federal response: resolutions and the Regional Veto Act

Following the failed Meech Lake Accord and Charlottetown Accord, and the *Secession Reference*, efforts were made to address Quebec's constitutional claims in a more informal manner, avoiding the complexities of formal multilateral negotiation cycles. These initiatives included the introduction of the *Regional Veto Act* [8.3.4.1] and the adoption of two resolutions by the House of Commons that recognized the distinct character of Quebec society [8.3.4.2].

8.3.4.1 *Regional Veto Act*

Enacted in 1996, the primary objective of the *Regional Veto Act* was to establish a framework requiring specific provincial consent before any constitutional amendments could be proposed to the federal Parliament. Under this law, any proposed changes to provisions that can be amended through the 7/50 formula, and for which there is no right of dissent, must receive prior approval from Quebec, Ontario, and British Columbia, as well as from at least two provinces each from the Atlantic region and the Prairie provinces. Since Alberta alone makes up more than 50% of the population of the Prairies, in practice, it also holds a veto power.

As such, the *Regional Veto Act* grants Quebec the veto power it has long sought over constitutional amendments, but it also extends similar veto rights to other regions, requiring broader provincial consent for any significant changes.

> ***An Act respecting Constitutional Amendments*, SC 1996, c 1**
>
> Consent to constitutional amendments
>
> 1 (1) No Minister of the Crown shall propose a motion for a resolution to authorize an amendment to the Constitution of Canada, other than an amendment in respect of which the legislative assembly of a province may exercise a veto under section 41 or 43 of the Constitution Act, 1982 or may express its dissent under subsection 38(3) of that Act, unless the amendment has first been consented to by a majority of the provinces that includes
>
> (a) Ontario;
>
> (b) Quebec;

(c) British Columbia;

(d) two or more of the Atlantic provinces that have, according to the then latest general census, combined populations of at least fifty per cent of the population of all the Atlantic provinces; and

(e) two or more of the Prairie provinces that have, according to the then latest general census, combined populations of at least fifty per cent of the population of all the Prairie provinces.

Definitions

(2) In this section,

Atlantic provinces means the provinces of Nova Scotia, New Brunswick, Prince Edward Island and Newfoundland and Labrador; (provinces de l'Atlantique)

Prairie provinces means the provinces of Manitoba, Saskatchewan and Alberta. (provinces des Prairies)

Note that the Act stipulates that a "Minister of the Crown" must obtain the necessary consents before introducing a resolution to amend the Constitution. While the government could technically bypass this requirement by having a regular Member of Parliament or Senator present the resolution, it is debatable whether such a tactic would respect the spirit of the law. See: Peter W. Hogg, *Constitutional Law in Canada*, vol. 1, 5th ed., (Toronto: Thomson Reuters Canada, 2016), loose-leaf, updated 2018, at p. 4-26; Patrick Taillon, "Les nouveaux obstacles juridiques au renouvellement du fédéralisme canadien", Montréal, Institut de recherche sur le Québec, 2007, p. 19.

This law also added layers of complexity to an already intricate amendment process and could potentially hinder necessary reforms. Indeed, the *Regional Veto Act* technically transforms the traditional 7/50 formula into a 7/90 formula by adding an additional layer of requirements that must be met before any constitutional changes can be made.

The transformation to a 7/90 formula arises because, in practice, this new requirement means that amendments must not only secure the approval of seven provinces but also ensure that these provinces collectively represent a significant majority of the Canadian population—essentially requiring consent from provinces that together account for approximately 90% of the population. Consequently, this additional step complicates and raises the threshold for constitutional amendments, making it significantly more challenging to achieve consensus across diverse regional interests. See: Andrew Heard & Tim Swartz, "The Regional Veto Formula and Its Effects on Canada's Constitutional Amendment Process" (1997) 30 Can J Polit Sci 339; Benoît Pelletier, « La modification et la réforme de la Constitution canadienne » (2017) 47-2 Revue générale de droit 459.

Moreover, some observers consider that the *Regional Veto Act* indirectly modifies Part V of the Constitution Act, 1982, by adding an additional step to the amendment process, which would require the unanimous consent of the provinces under section 41(e) of the Constitution Act, 1982. See: Benoît Pelletier, *La modification constitutionnelle au Canada*, (Scarborough : Carswell, 1996) at p 327.

8.3.4.2 Resolutions

In parallel with the *Regional Veto Act*, the federal government sought to respond to Quebec's longstanding demands for recognition of its distinct societal character through resolutions in the House of Commons.

On November 27, 1995, in response to the close result of the 1995 Quebec referendum on sovereignty, Prime Minister Jean Chrétien introduced a first motion recognizing Quebec as a distinct society within Canada. See CANADA, Debates (Hansard), November , 1995 at p 16971. The resolution stated:

Whereas the People of Quebec have expressed the desire for recognition of Quebec's distinct society;

(1) the House recognize that Quebec is a distinct society within Canada;

(2) the House recognize that Quebec's distinct society includes its French-speaking majority, unique culture and civil law tradition;

(3) the House undertake to be guided by this reality;

(4) the House encourage all components of the legislative and executive branches of government to take note of this recognition and be guided in their conduct accordingly.

In a further acknowledgment of Quebec's status, on November 27, 2006, the House of Commons passed another resolution recognizing the Québécois as a nation within Canada. This motion, introduced by Prime Minister Stephen Harper, stated: "That this House recognize that the Québécois form a nation within a united Canada". See Hansard; 39th Parliament, 1st Session; No. 087; November 27, 2006.

Following these two federal initiatives aimed at politically recognizing the distinct character of Quebec society, Quebec took a step forward in 2022 by unilaterally amending the Constitution Act of 1867 to include a provision stating that "Quebecers form a nation" (90Q.1.) (see section 7.1)

8.3.5 2017 Québécois, notre façon d'être Canadiens

The document "Québécois, notre façon d'être canadien" was adopted in 2017 as a policy framework aimed at affirming Quebec's identity and its relationship with the rest of Canada. It outlines a vision for Quebec that emphasizes its distinct cultural and linguistic heritage while promoting a collaborative partnership within the Canadian federation. The document advocates for increased autonomy for Quebec, recognizing its unique status and the desire of Quebecers to maintain their identity while remaining part of Canada.

In response to this document, the federal government and other provinces exhibited mixed reactions. The federal government, led by Prime Minister Justin Trudeau, promptly dismissed any possibility of reopening the Canadian Constitution to address Quebec's demands.

8.4 Indigenous rights and recognition

The role of federal and provincial legislative assemblies in the amendment process is central in Part V of the *Constitution Act, 1982*, while the involvement of Indigenous communities in this process is notably absent. Instead, their role is primarily addressed in Part II of the Act, specifically in Section 35.1 which establishes a commitment to Indigenous participation by requiring a constitutional conference with federal and provincial leaders before amending provisions affecting Indigenous rights [8.4.1]. However, this participation remains limited, as it does not grant a veto over constitutional changes. The 1992 Charlottetown Accord proposed strengthening Indigenous self-governance by recognizing their inherent self-government rights and requiring Indigenous peoples' consent for amendments affecting them [8.4.2]. While the scope of s. 35.1 remains limited, one might ask whether the constitutional duty to consult, grounded in the Crown's honour, could extend to constitutional amendments and strengthen Indigenous participation in constitutional change [8.4.3].

8.4.1 Section 35.1: a "Commitment of Participation"

Section 35.1 establishes that the federal and provincial governments are bound by a "commitment of participation" requiring the Prime Minister of Canada to convene a constitutional conference with provincial premiers before making any amendments to Section 91(24) of the Constitution Act of 1867, Section 25 of the Constitution Act of 1982, or Part II of the Constitution Act of 1982. This conference must also include representatives from Indigenous peoples in Canada, allowing them to participate in discussions regarding the proposed amendments. S. 35.1 reads as follows:

> 35.1 The government of Canada and the provincial governments are committed to the principle that, before any amendment is made to Class 24 of section 91 of the Constitution Act, 1867, to section 25 of this Act or to this Part,
>
> (a) a constitutional conference that includes in its agenda an item relating to the proposed amendment, composed of the Prime Minister of Canada and the first ministers of the provinces, will be convened by the Prime Minister of Canada; and
>
> (b) the Prime Minister of Canada will invite representatives of the aboriginal peoples of Canada to participate in the discussions on that item.

This provision was introduced during the first conference focused on Indigenous issues following the adoption of the Constitution Act of 1982 and was designed to address the demands of Indigenous peoples for a mechanism that would require their consent for any future constitutional changes that affect their rights. See: *Constitution Amendment Proclamation, 1983*, SI/84-102; Renée DUPUIS, *Le statut juridique des peuples autochtones en droit canadien*, (Scarborough :Carswell, 1999), p. 126.

The scope of the obligation for Indigenous peoples to participate in the amendment process remains relatively limited. Section 35.1 only establishes a procedural requirement to invite them to participate in a conference, without granting them a veto over proposed amendments. Furthermore, this requirement is framed as a "principle" rather than as a clear obligation imposed on the federal Prime Minister.

Note that s. 35.1 was added to Part II of the Constitution Act, 1982 rather than Part V (see the resolution discussed in Section 4.1). This can be explained by the fact that Part V could only be amended with unanimous consent from all provinces and federal chambers. However, unanimity could not be reached during the March 1983 First Ministers' Conference, given that Quebec's position at that time was that participating in the formal amendment of the Constitution Act, 1982 would imply recognition of a Constitution that had been enacted without Quebec's consent. See: Scholtz, Christa, "Part II and Part V: Aboriginal Peoples and Constitutional Amendment", in Emmett Macfarlane (ed), *Constitutional Amendment in Canada*, (Toronto: University of Toronto Press, 2016), at p. 85-102. By placing Section 35.1 in Part II, Indigenous peoples acquired the right to participate in the amendment process without needing unanimous consent, utilizing the more accessible 7/50 procedure instead. It is also the only example of a successful use of s. 38.

For more background on s. 35.1, see Paul L. A. H. Chartrand, "Indigenous Peoples: Negotiating Constitutional Reconciliation and Legitimacy in Canada", (2011) 19 Waikato Law Review 14; Patrick Macklem & Douglas Sanderson, *From Recognition to Reconciliation: Essays on the Constitutional Entrenchment of Aboriginal and Treaty Rights* (Toronto: University of Toronto Press, 2016).

8.4.2 Towards an increased role in the amendment procedure and recognition of a right to self-government

The role of Indigenous peoples in the amendment process was again addressed during the constitutional discussions of 1992 leading to the Charlottetown Accord. The Accord proposed replacing Section 35.1 with provisions recognizing the "inherent right to self-government" for Indigenous peoples within Canada and acknowledging them as one of the three orders of government in the country. Also, under this proposal, a new s. 45.1 would have been added to Part V of the Constitution that would have allowed any changes to the Constitution directly related to Aboriginal peoples to be initiated by them and would require their "substantial consent.":

> 9. Section 35.1 of the said Act is repealed and the following substituted therefore:
>
> "35.1 (1) The Aboriginal peoples of Canada have the inherent right of self-government within Canada.
>
> (2) The right referred to in subsection (1) shall be interpreted in a manner consistent with the recognition of the governments of the Aboriginal peoples of Canada as constituting one of three orders of government in Canada.
>
> (3) The exercise of the right referred to in subsection (1) includes the authority of duly constituted legislative bodies of the Aboriginal peoples, each within its own jurisdiction,
>
> (a) to safeguard and develop their languages, cultures, economies, identities, institutions and traditions, and
>
> (b) to develop, maintain and strengthen their relationship with their lands, waters and environment, so as to determine and control their development as peoples according to their own values and priorities and to ensure the integrity of their societies.
>
> (4) Where an issue arises in any proceedings in relation to the scope of the inherent right of self-government, or in relation to an assertion of that right, a court or tribunal
>
> (a) before making any final determination of the issue, shall inquire into the efforts that have been made to resolve the issue through negotiations under section 35.2 and may order the parties to take such steps as may be appropriate in the circumstances to effect a negotiated resolution; and
>
> (b) in making any final determination of the issue, shall take into account subsection (3).
>
> (5) Neither the right referred to in subsection (1) nor anything in subsection 35.2 (1) creates new aboriginal rights to land or abrogates or derogates from existing aboriginal or treaty rights to land, except as otherwise provided in self-government agreements negotiated under section 35.2.
>
> […]
>
> 33. The said Act is further amended by adding thereto, immediately after section 45 thereof, the following section:
>
> "45.1 (1) An amendment to the Constitution of Canada that directly refers to, or that amends a provision that directly refers to, one or more of the Aboriginal peoples of Canada or their governments, including
>
> (A mechanism for obtaining aboriginal consent would be worked out prior to the tabling of a Constitution resolution in Parliament), including
>
> (a) section 2, as it relates to the aboriginal peoples of Canada class 24 of section 91, and sections 91A, 95E and 127 of the Constitution Act, 1867, and
>
> (A reference to any provision relating to aboriginal representation in the Senate would be added here),
>
> (b) section 25 and Part II of this Act and this section, may be made by proclamation issued by the Governor General under the Great Seal of Canada only where the amendment has been authorized in accordance with this Part and has received the substantial consent of the Aboriginal peoples so referred to.
>
> (2) Notwithstanding section 46, the procedures for amending the Constitution of Canada in relation to any matter referred to in subsection (1) may be initiated by any of the aboriginal peoples of Canada directly referred to as provided in subsection (1)."]

While this proposal never came into force, the right to self-government and self-determination of the Indigenous people has been affirmed in the preamble of the *United Nations Declaration on the Rights of Indigenous Peoples Act*, S.C. 2021, c. 14 (UNDRIP Act), which provided that "the Government of Canada recognizes that all relations with Indigenous peoples must be based on the recognition and implementation of the inherent right to self-determination, including the right of self-government." According to the UNDRIP Act, Indigenous peoples have the right to "autonomy or self-government in matters relating to their internal and local affairs." Indigenous communities can therefore implement changes to their governance structures and processes, reflecting their unique cultural, social, and political needs. See: Colleen Sheppard, "Patriation Paradigms: Sovereignty, Power, and Rights", (2023) *Constitutional Forum* 25, p. 30-32.

8.4.3 A constitutional duty to consult?

The failure of the Charlottetown Accord left Indigenous peoples with only the narrow role provided by Section 35.1 in the amendment process. In this context, it is interesting to examine whether the principle of the Crown's honour could grant Indigenous communities a more substantial role in the constitutional review process.

The Supreme Court of Canada has recognized that the principle of the Crown's honour gives rise to a duty to consult in good faith with Indigenous communities (and, where appropriate, to seek accommodation) before taking any actions that may adversely affect rights protected under Section 35 of the Constitution Act, 1982, whether those rights are claimed or established. This duty plays a central role in ensuring the protection of their ancestral and treaty rights. Such an obligation to consult and accommodate Indigenous peoples applies to all "conduct of the Crown," encompassing all actions undertaken by the executive branch. It includes both the exercise of federal government powers and those of provincial governments. See: *Haida Nation v. British Columbia (Minister of Forests)*, 2004 SCC 73; *R. v. Sparrow*, 1990 CanLII 104 (SCC), [1990] 1 SCR 1075; *Mikisew Cree First Nation v. Canada (Governor General in Council)*, 2018 SCC 40.

Historically applied in the context of executive authority, this obligation could also extend to constitutional powers. It is important to recall that in the *Reference re Secession of Quebec*, the Supreme Court recognized that several principles come into play in exercising constitutional powers, which may justify imposing certain obligations, including the duty to negotiate with other federal partners. The Court emphasized that one of the principles justifying such an obligation is the protection of minorities. This principle encompasses the safeguarding of Indigenous rights, underscored by the explicit guarantees added to Sections 25 and 35 of the Constitution Act, 1982. Moreover, this obligation to negotiate with Indigenous peoples could be further strengthened by Canada's adoption of the UNDRIP Act, which emphasizes the necessity for free, prior, and informed consent in matters affecting their rights. This alignment with international standards could reinforce and expand upon existing legal obligations, potentially leading to a more robust framework for engagement and negotiation with Indigenous communities during constitutional revisions.

Therefore, there could be a requirement to consult Indigenous peoples and, if necessary, accommodate them regarding any constitutional amendments that might impact rights protected by Section 35. For example, the obligation to consult would arise if the proposed amendments pertain to provincial jurisdiction over natural resources or federal jurisdiction concerning fisheries. Thus, this obligation would have a broader scope than that outlined in Section 35.1 of the Constitution Act, 1982, as it would apply to any changes likely to affect Indigenous rights protected by Section 35, rather than being limited to specific provisions.

On this view, see: Patrick J. Monahan, Michael J. Bryant & Nancy C. Côté, "Coming to Terms with Plan B: Ten Principles Governing Secession", (1996) 83 C.D. Howe Institute Commentary 1, at p 37. Patrick J. Monahan & Byron Shaw, *Constitutional Law*, 4th ed. (Toronto: Irwin Law, 2013) at p 517; Peter W. Hogg, *Constitutional Law in Canada*, vol. 1, 5th ed., (Toronto: Thomson Reuters Canada, 2016), loose-leaf, updated 2018, at p. 28-66; Marcella Firmini & Jennifer Smith, "The Crown in Canada", in Peter C. Oliver, Patrick Macklem & Nathalie Des Rosiers (eds.), *The Oxford Handbook of the Canadian Constitution* (New York: Oxford University Press, 2017), 129, at p. 147; Catherine Mathieu, « L'initiative constitutionnelle comme élément déclencheur de la réforme du fédéralisme canadien », in D. Guénette, P. Taillon, and M. Verdussen, eds., *La révision constitutionnelle dans tous ses états* (Montreal:Thomson Reuters, 2020), 245, at pp. 263-267.

8.5 The West wants in

Western Canada has long grappled with feelings of political and economic alienation within the Canadian federation. The ongoing political tensions in the western provinces can be traced back to their integration into Canada [8.5.1]. The rise of western movements, from the emergence of the Reform Party in the late 1980s [8.5.2] to more recent separatist groups like Wexit and the Maverick Party [8.5.3], reflects persistent frustrations with federal policies. In response, governments have attempted to address these grievances through initiatives such as Alberta's Fair Deal Panel, which aimed to redefine the province's relationship with Ottawa [8.5.4].

8.5.1 Western protest politics

While modern federal Canada was officially founded in 1867 with the union of Canada East (now Quebec) and Canada West (now Ontario), along with Nova Scotia and New Brunswick, six additional provinces joined at various times: Manitoba in 1870, British Columbia in 1871, Prince Edward Island in 1873, and finally Alberta and Saskatchewan in 1905, with Newfoundland joining in 1949. Generally, provinces retain ownership of their natural resources upon joining Canada, as stipulated by Section 109 of the *British North America Act of 1867*.

However, this was not the case for Manitoba, Alberta, and Saskatchewan, which were created through federal legislation. Consequently, when these provinces were formed by acts of Parliament, the federal government retained ownership of the natural resources within their borders. This was primarily justified by the need to finance westward expansion and the construction of the transcontinental railway. It wasn't until 1930 that these Prairie provinces gained ownership of their resources through the *British North America Act, 1930,* 20-21 Geo. V, c. 26 (U.K.). Thus, Manitoba had to wait 60 years for this outcome, while Alberta and Saskatchewan waited 25 years. From the outset of their integration into Canada, Western provinces perceived this situation as unjust due to the significant economic disadvantages it imposed on them.

8.5.2 The birth and rise of the reform party

The emergence and rise of the Reform Party of Canada in the late 1980s were driven by a growing discontent among Western Canadians with the existing federal political establishment. This movement was rooted in long-standing grievances regarding economic policies, regional representation, and perceived favouritism towards Eastern Canada, particularly Ontario and Quebec.

The Reform Party was officially founded in October 1987 during a convention in Winnipeg. This gathering was a culmination of efforts by various Western interest groups dissatisfied with the Progressive Conservative (PC) government led by Brian Mulroney. Key figures in this movement included Preston Manning, along with Stan Roberts and Robert Muir. They sought to create a political vehicle that would effectively voice Western concerns, particularly those related to economic policy and constitutional reform.

At its inception, the Reform Party adopted a platform that emphasized direct democracy, fiscal conservatism, and significant reforms to Canada's political institutions. A notable demand was for a "Triple-E Senate," advocating for an elected, equal, and effective Senate to enhance provincial influence in federal decision-making. The party also called for referendums, recall elections, and citizen-initiated

legislation to empower ordinary Canadians in the political process. The slogan “The West Wants In” encapsulated their message of inclusion and representation for Western interests.

In 1990, the party gained further credibility when Deborah Grey won a federal by-election in Alberta, becoming its first Member of Parliament. This victory was pivotal as it demonstrated that the Reform Party could translate grassroots support into electoral success. The early 1990s were marked by growing dissatisfaction with the PC government’s handling of economic issues and constitutional debates, particularly surrounding the failed Meech Lake Accord and Charlottetown Accord. Many Western Canadians perceived these accords as favouring Quebec at their expense, intensifying feelings of alienation. The Reform Party positioned itself as a champion for Western interests, advocating against policies that they believed undermined their economic well-being.

In the 1993 federal election, this strategy paid off as the Reform Party surged to become the largest conservative party in Canada, winning 52 seats in Parliament. Despite its successes, the Reform Party faced challenges in maintaining its momentum as it attempted to transition from a regional party to a national force. In 1997, while still holding the position of Official Opposition, it ran candidates across all provinces and territories but struggled to gain traction in Eastern Canada. In 2000, it merged with other conservative factions to form the Canadian Alliance. This transition marked both an end and a new beginning for many Reform supporters, as they sought to unify Canada’s conservative movement under a more inclusive banner.

For the evolution of the “West Wants in” movement, see : Roger Gibbins, “Western Canada: ‘The West Wants In’”, in Kenneth McRoberts, *Beyond Quebec: Taking Stock of Canada*, (Montreal: McGill-Queen’s University Press) 1995, pp. 45-60.

8.5.3 The Wexit and the Maverick party

After the 2019 Canadian federal election, particularly in Alberta and Saskatchewan, some Western Canadians—frustrated with federal policies, especially those affecting the oil and gas industry, carbon taxation, and equalization payments—felt that the federal government was not representing their interests. Inspired by Brexit, a new movement called Wexit emerged, advocating for Western Canada to separate from the rest of the country and form an independent nation.

In 2020, this movement evolved into the Maverick Party, which still entertained the idea of independence but positioned itself primarily as a Western-rights advocacy party, focusing on constitutional reforms and greater autonomy for Alberta, Saskatchewan, and other Western provinces. Unlike the original Wexit movement, which was explicitly separatist, the Maverick Party adopted a dual-track strategy: (1) Pushing for constitutional changes to give Western provinces more control; (2) Supporting independence as a last resort if reforms failed. The party seeks to reform the equalization payment system, which it argues unfairly redistributes wealth from resource-rich provinces to others. It also supports establishing provincial control over areas like tax collection, policing, and immigration, similar to Quebec’s model. Additionally, it calls for Senate reform to give Western provinces greater representation and pipeline infrastructure protections to ensure federal policies do not hinder resource development. If these reforms fail, the party views Western independence as a viable alternative.

In the federal election in 2021, the Maverick Party only ran candidates in the Western provinces and failed to secure any seats in Parliament. Despite this setback, the Maverick Party continues to advocate for greater Western autonomy and political representation within the Canadian federation.

8.5.4 Alberta fair deal panel and aftermath

Amidst the various movements addressing the grievances of Western provinces, Alberta established the Fair Deal Panel in 2019, an initiative which arose from the province’s long-standing concerns about the equalization formula.

In 1957, the federal government established an equalization program aimed at “reducing fiscal disparities among Canada’s ten provinces.” (Library of Parliament, “Canada’s Equalization Formula”, November 10, 2008, online: https://publications.gc.ca/collections/collection_2013/bdp-lop/eb/2008-20-eng.pdf. This program was funded directly from federal tax revenues; thus, provincial governments did not make payments to contribute to it. Instead, it is the citizens who financed it through their taxes. The federal government used a self-established formula to make payments from this fund to provinces whose fiscal capacity falls below a certain threshold. In 1982, during constitutional repatriation, this program was enshrined in Part III of the Constitution Act.

Since its inception, Quebec has consistently received payments from this program. Alberta received equalization payments in the early years but has not since the early 1960s. Although Quebec generally receives much less per capita than Maritime provinces under equalization, its larger population results in annual payments amounting to several billion dollars. The substantial share Quebec receives from equalization has long fuelled a narrative suggesting that it serves as a means for the federal government to address demands from Quebec nationalists and counter support for independence. See Daniel Béland and André Lecours, “L’Alberta, l’aliénation de l’Ouest et le programme fédéral de péréquation – Identités territoriales, cadrage idéologique et inscription à l’agenda politique“, (2021) 40:3 *Politique et Sociétés* 177, at p 181-186.

This rhetoric was prominently featured during the 2019 electoral campaign in Alberta. Jason Kenney, then leader of the United Conservative Party, pledged to hold a referendum on equalization if elected and if certain concessions were not made to Alberta: “*We will send a clear message to Justin Trudeau that if we do not get a timely completion of a coastal pipeline, if he will not withdraw anti-Alberta laws, like Bill C-69, that we are prepared to put on the table equalization, by holding a constitutional referendum to end equalization, to assert our fight for fairness to the top of the national agenda.*” (Quoted in Emily Mertz, “Alberta Election Fact Check: Could Alberta end or change equalization?”, *Global News*, April 3rd 2019, online : globalnews.ca/news/5113104/alberta-election-fact-check-equalization-referendum/.

Immediately after his election, Jason Kenney established a “Fair Deal Panel,” aimed at consulting Albertans on how to define and secure a fair deal for the province. The panel was also tasked with exploring ways to advance Alberta’s economic interests, such as pipeline construction. Released in May 2020, the report from this committee included 25 recommendations aimed at increasing the province’s autonomy within Canada. Key proposals include creating an Alberta pension plan to replace the Canada Pension Plan, establishing a provincial police force instead of the RCMP, and securing a stronger voice in federal decision-making. The panel also emphasized economic diversification beyond the energy sector and improving market access for Alberta’s exports. Additionally, it recommended using democratic tools, such as referendums and citizen initiatives, to engage Albertans in key policy decisions. (Fair Deal Panel, “Report to Government”, May 2020, online : open.alberta.ca/dataset/d8933f27-5f81-4cbb-97c1-f56b45b09a74/resource/d5836820-d81f-4042-b24e-b04e012f4cde/download/fair-deal-panel-report-to-government-may-2020.pdf.

As discussed in Section 7.3, a key outcome of the Alberta Fair Deal Panel’s recommendations was the 2021 provincial referendum on equalization. Another significant outcome was the adoption of the *Alberta Sovereignty within a United Canada Act* in 2022, c A-33.8 which allows Alberta to refuse the enforcement of certain federal measures deemed by Alberta’s Legislative Assembly to be unconstitutional or harmful to the province. The constitutionality of this law remains a matter of debate, as the courts have not (yet) ruled on it. Among those who support the validity of the law, see Jesse Hartery and Geoffrey T Sigalet, “The Frontiers of Nullification and Anticommandeering: Federalism and Extrajudicial Constitutional Interpretation“, (2024) 54:4 *Publius: The Journal of Federalism* 628. Among those who express doubts about its constitutionality, see Martin Olszynski & Nigel Bankes, “Running Afoul the Separation, Division, and Delegation of Powers: The Alberta Sovereignty Within a United Canada Act“, *ABLawg*, December 6, 2022.

9 Comparative perspectives on constitutional amendment

Comparing the Constitution of Canada with constitutions abroad can deepen our understanding of our own constitution while simultaneously expanding our base of knowledge about constitutionalism, democracy, and the rule of law.

There is much we can learn from comparing the dynamics of constitutional amendment in Canada and the world. In this Section, we introduce you to a few major points of comparison in comparative constitutional amendment, with a focus on similarities and differences between Canada and select countries around the world, including Belize, the Czech Republic, France, Germany, India, South Africa, Taiwan, and the United States.

9.1 Overruling a ruling of the court

There are generally two methods to overrule a ruling of a supreme or constitutional court within a domestic constitutional order: (1) a court can overrule its prior ruling; and (2) a constitutional amendment can overrule a ruling of the court.

In Canada, legislatures possess an extraordinary power in relation to courts. They may invoke Section 33 of the *Canadian Charter of Rights and Freedoms* to temporarily overrule or pre-empt a judicial ruling. This legislative action has only temporary effect, as it may last for up to five years, though it may be renewed indefinitely with separate legislative re-enactments.

> **Canadian Charter of Rights and Freedoms, s. 33 (1982)**
>
> 33 (1) Parliament or the legislature of a province may expressly declare in an Act of Parliament or of the legislature, as the case may be, that the Act or a provision thereof shall operate notwithstanding a provision included in section 2 or sections 7 to 15 of this Charter.
>
> (2) An Act or a provision of an Act in respect of which a declaration made under this section is in effect shall have such operation as it would have but for the provision of this Charter referred to in the declaration.
>
> (3) A declaration made under subsection (1) shall cease to have effect five years after it comes into force or on such earlier date as may be specified in the declaration.
>
> (4) Parliament or the legislature of a province may re-enact a declaration made under subsection (1).
>
> (5) Subsection (3) applies in respect of a re-enactment made under subsection (4).

No amendment in Canada has yet been enacted to overrule a ruling of the Supreme Court. The question has not yet arisen under law.

In the United States, the power of constitutional amendment has been used on several occasions to overrule the U.S. Supreme Court. The procedure to amend the U.S Constitution is far shorter and less complex than it is in Canada.

> **Constitution of the United States, Article V (1789)**
>
> The Congress, whenever two thirds of both houses shall deem it necessary, shall propose amendments to this Constitution, or, on the application of the legislatures of two thirds of the several states, shall call a convention for proposing amendments, which, in either case, shall be valid to all intents and purposes, as part of this Constitution, when ratified by the legislatures of three fourths of the several states, or by conventions in three fourths thereof, as the one or the other mode of ratification may be proposed by the Congress; provided that no amendment which may be made prior to the year one thousand eight hundred and eight shall in any manner affect the first and fourth clauses in the ninth section of the first article; and that no state, without its consent, shall be deprived of its equal suffrage in the Senate.

The case of Chisholm v. Georgia, 2 U.S. (2 Dall.) 419 (1793) was the first to provoke the use of Article V to reverse the U.S. Supreme Court. The case involved a suit against the State of Georgia for payments due for goods supplied to Georgia in the American Revolutionary War. Georgia declined to appear in Court on grounds that, as a sovereign state, it cannot be sued without first giving its consent. The question in the case was whether a citizen of a state can sue the government of a state in a federal court. The Court ultimately ruled that Georgia could indeed be sued in federal court without its consent. The Court rested its reasoning on Article III of the Constitution.

> **Constitution of the United States, Article III (1789)**
>
> The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction;—to Controversies to which the United States shall be a Party;—to Controversies between two or more States;— between a State and Citizens of another State,—between Citizens of different States,—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.
>
> In all Cases affecting Ambassadors, other public Ministers and Consuls, and those in which a State shall be Party, the supreme Court shall have original Jurisdiction. In all the other Cases before mentioned, the supreme Court shall have appellate Jurisdiction, both as to Law and Fact, with such Exceptions, and under such Regulations as the Congress shall make.
>
> The Trial of all Crimes, except in Cases of Impeachment, shall be by Jury; and such Trial shall be held in the State where the said Crimes shall have been committed; but when not committed within any State, the Trial shall be at such Place or Places as the Congress may by Law have directed.

In the end, however, the ruling in *Chisolm* was overruled by the Eleventh Amendment. Proposed in 1794 and ratified in 1795, the Eleventh Amendment requires a state to consent to a suit.

> **Constitution of the United States, Eleventh Amendment (1795)**
>
> The Judicial power of the United States shall not be construed to extend to any suit in law or equity, commenced or prosecuted against one of the United States by Citizens of another State, or by Citizens or Subjects of any Foreign State.

A similar outcome followed after the ruling of the U.S. Supreme Court in Pollock v. Farmers' Loan & Trust Co., 157 U.S. 429 (1895). In *Pollock*, the Court ruled that income taxes are direct taxes that must apportioned among the states according to population. Roughly 15 years later, Congress proposed an amendment in 1909 to reverse the Court. The amendment, ratified in 1913, authorizes the very opposite of what the Court has required in *Pollock*.

> **Constitution of the United States, Sixteenth Amendment (1795)**
>
> The Congress shall have power to lay and collect taxes on incomes, from whatever source derived, without apportionment among the several States, and without regard to any census or enumeration.

The American experience is not unique in the world. Other countries engage in the same practice of amending their constitution to overrule a court.

Could a constitutional amendment in Canada overrule a ruling of the Supreme Court? If yes, which of Canada's procedures of amendment would apply? Would it depend on the subject-matter of the Supreme Court's ruling? More generally, *should* the power of constitutional amendment be deployable in this way in the Canadian context?

9.2 The doctrine of unconstitutional constitutional amendment

In many countries around the world, supreme and constitutional courts have asserted and even exercised the extraordinary power to invalidate a constitutional amendment. Whether a constitutional amendment can be unconstitutional is something of a puzzle of logic: how can a constitutional amendment violate the very constitution it amends? The possibility of an unconstitutional constitutional amendment moreover raises a question about the role of courts: do judges possess the authority, competence, and legitimacy to review the constitutionality of a constitutional amendment? These are some of the most fascinating questions in contemporary comparative constitutionalism—and they arise in Canada in peculiarly Canadian ways.

9.2.1 Codified unamendability

Constitutions sometimes exempt certain rules from amendment. These unamendable rules are codified in the text of the constitution. They are explicitly shielded from the procedures of constitutional reform. To put it another way, these unamendable rules are immune to the power of constitutional amendment.

The most well-known unamendable rule is the "eternity clause" codified in the German Basic Law. It forbids any and all amendments to the principle of the inviolability of human dignity. The German Basic law also forbids amendments to the democratic, social, and federal character of the state. These principles are stated in Articles 1 and 20 of the German Basic Law, and they are made expressly unamendable by Article 79(3).

Human Dignity and Human Rights | German Basic Law, art. 1

1. Human dignity shall be inviolable. To respect and protect it shall be the duty of all state authority.
2. The German people therefore acknowledge inviolable and inalienable human rights as the basis of every community, of peace and of justice in the world.
3. The following basic rights shall bind the legislature, the executive and the judiciary as directly applicable law.

Constitutional Principles | German Basic Law, art. 20

1. The Federal Republic of Germany is a democratic and social federal state.
2. All state authority is derived from the people. It shall be exercised by the people through elections and other votes and through specific legislative, executive and judicial bodies.
3. The legislature shall be bound by the constitutional order, the executive and the judiciary by law and justice.
4. All Germans shall have the right to resist any person seeking to abolish this constitutional order, if no other remedy is available.

Amendment of the Basic Law | German Basic Law, art. 79(3)

Amendments to this Basic Law affecting the division of the Federation into Länder, their participation on principle in the legislative process, or the principles laid down in Articles 1 and 20 shall be inadmissible.

When a constitution codifies an unamendable rule, it requires enforcement by a constitutional actor. Unamendability is typically enforced by a supreme or constitutional court in the course of litigation about whether a given constitutional amendment is constitutional.

For instance, the Constitution of the Czech Republic prohibits amendments that undermine the essential elements of democracy.

Constitutional Amendment | Constitution of the Czech Republic, art. 9

1. This Constitution may be supplemented or amended only by constitutional acts.
2. Any changes in the essential requirements for a democratic state governed by the rule of law are impermissible

The Constitutional Court of the Czech Republic enforced this unamendable rule when a Member of Parliament, Miloš Melčák, asked the Court to assess the constitutionality of an amendment proposing to shorten the duration of the parliamentary term. The Court invalidated the amendment for violating the prohibition in Article 9(2) on amendments that change "the essential requirements for a democratic state governed by the rule of law."

The Court's ruling was delivered by Pavel Rychetský, Chairperson of the Constitutional Court.

Constitutional Court of the Czech Republic, 2009/09/10 - Pl. ÚS 27/09: Constitutional Act on Shortening the Term of Office of the Chamber of Deputies

[The complainant seeks] the annulment of constitutional Act no. 195/2009 Coll., on shortening the Fifth Term of Office of the Chamber of Deputies.

…

In the reasoning of his petition, the complainant states that constitutional Act no. 195/2009 Coll. is a constitutional act only formally, but substantively it contravenes the constitutional order, and in fact suspends the constitutional order – ad hoc, for one term of office, suspends its effect for a period arbitrarily chosen by the momentary qualified majority of deputies and senators, due to which, in this sense it is not an act that supplements or amends the Constitution (under Art. 9 par. 1 of the Constitution). He considers the contested constitutional act to be inconsistent with the constitutional order in the sense that it changes an essential requirement for a democratic state governed by the rule of law, which, under Art. 9 par. 2 of the Constitution cannot be changed. That requirement is that the free competition among political forces be subject to the same rules, and, especially, to rules set in advance.

…

The petition goes on to analyze in detail the significance and meaning of Art. 9 par. 2 of the Constitution, in connection with the guarantees of democratic, free competition among political forces. It refers to the Constitutional Court's legal opinion stated in judgment file no. Pl. ÚS 53/2000 that "Free competition among political forces is based above all on the fact that all political subjects are governed by the same rules specified, defined in advance, which are based on these basic principles. … At the same time, its decision-making may not be arbitrary, but must respect the constitutional principles that are part of the basic principles of the constitutionally guaranteed political system. If the risk of arbitrariness were not ruled out, and even mere circumvention of these regulations were possible, this would undoubtedly always lead to violation of constitutional order, its purpose and meaning, and this would force the intervention of the Constitutional Court, which is, under Art.

83 and 87, the judicial organ for protection of constitutionality and lawfulness." The petitioner considers it a defining element of a legal norm, including a constitution, essential to the understanding of a substantive law-based state, that it is binding for the future, in the same manner, on all who find themselves in a situation that arises in the future. In his opinion, the idea that statutorily provided rules could be suspended in a self-serving manner, and only for a particular instance, would mean accepting arbitrariness and violating the principle of the rule of law. At this point he also refers to the Constitutional Court's legal opinion in judgment file no. Pl. ÚS 24/04.

According to the petitioner, the contested constitutional act violated the constitutional prohibition on retroactivity, by retroactively adjusting a term of office while it was running – the term of office began as a four-year term (Art. 16 par. 1 of the Constitution) and was retroactively adjusted (shortened). The petitioner considers this retroactive effect to be true retroactivity, which is also inconsistent with the principle of legitimate expectation, and he points to the fact that the exceptional acceptance of true retroactivity in public law in the period after World War II was limited to issues of dealing with the totalitarian past, an example of which is the act on illegality of the communist regime or restitution legislation. In this matter, however, similar reasons that would justify true retroactivity do not exist.

The petitioner emphasizes the exceptional significance of the relationship between elections and the functioning of a democratic law-based state; he considers a pre-defined term of office to be important for applying the principles of the sovereignty of the people, equal opportunity, open political competition, the right of a deputy to uninterrupted exercise of a mandate during a pre-determined period, and especially for ensuring protection of the rights of a parliamentary minority. In his opinion, a possible breach of these principles can be allowed only on the basis of the Constitution, under conditions generally provided by the Constitution (those being the conditions of dissolving the Chamber of Deputies). In this regard he refers to a number of decisions in which the Constitutional Court spoke on protection of the cited principles (file no. II. ÚS 275/96, Pl. ÚS 24/04, Pl. ÚS 73/04). Insofar as the Constitutional Court, in judgment file no. Pl. ÚS 73/04, derives the limits of the judicial branch's ability to annul elections due to election offenses, on the grounds that it is impermissible to change the will of the sovereign by a decision by the judicial branch, then, according to the petitioner, it is all the less permissible for the legislative branch.

The petitioner rejects the argument that the constitution can codify everything that receives a constitutional majority, regardless of the provision that the essential requirements for a democratic state governed by the rule of law cannot be changed. He states his belief that these requirements must also include the predictability of the law, which comes from it being general, as well as the opinion that the Constitutional Court already stated this thesis in judgment file no. Pl. ÚS 77/06: "In a substantive law-based state, a statute in the formal sense cannot be understood as a mere repository of a wide variety of changes made throughout the legal order. On the contrary, the substantive conception of the law-based state requires that a statute be, both in terms of form and substance, a predictable, consistent source of law." He also points out, again with reference to the Constitutional Court's case law (file no. Pl. ÚS 73/04) – the importance of fair conditions for political competition. Here he stresses the difference between shortening the term of office of the Chamber of Deputies for one instance, and the general rule for dissolving it. He is aware that in the world's democratic countries there are various constitutional models for dissolving parliaments and calling early elections. In his opinion, in terms of Art. 9 par. 2 of the Constitution, it is possible to enshrine such a model through a general amendment to the Constitution, but it is not possible to rely on the democratic character of a state, proceed formally within the framework of its constitution, and simultaneously suspend the essential, substantive requirements that guarantee its democratic and law-based character.

The petitioner analyzes the purpose of the mechanism for dissolving the Chamber of Deputies, tied to a vote of no confidence in the government (or a refusal to give a vote of confidence), as it is enshrined in the Constitution; he states that this mechanism makes the fall of the government conditional on a seriously intended decision by the opposition to form a government, that it aims to rule out demonstrative, non-serious attempts to destabilize the government, that it lays a precisely weighed responsibility on the participants in political competition.

In his opinion, circumventing this procedure by shortening the term of office of the Chamber of Deputies makes political competition unequal, and preserves the existing circle of competitors, because new political parties or movements will necessarily find themselves under time pressure, if they were aiming their involvement in the contest toward the regular date of elections. He emphasizes that, in terms of political competition, the time when elections to the representative body are held is not politically neutral – in the case of early elections, the only legitimate date is one that arises from procedures described in advance by the Constitution. Therefore, he considers that the contested constitutional act has violated the principle of equal opportunity in political competition (which he supports by reference to the Constitutional Court's legal opinion stated in judgment file no. Pl. ÚS 53/2000). He expressly states in this regard: "The modus operandi of constitutional offenders lies in the fact that the Constitution, or its essential requirements guaranteeing the rules of political competition, are not annulled for a particular time, but are ignored, suspended. Yet, nothing prevents the momentary constitutional majority from amending or supplementing the Constitution – it can codify any easy manner of calling early elections for the next time. A new constitutional rule would be established, to replace the existing one, the next time, and it would mean free (equal and open) competition between political forces in the future, it would conform to the constitutional order, i.e. the essential requirements for a democratic state governed by the rule of law. However, the majority does not do that; for the next time it again returns to the rigid procedure of calling new elections; until such time as the momentary majority again decides that it is politically suitable – for it – to ignore the constitutional procedure again and get out of political competition through an ad hoc statute."

From a historic viewpoint the petitioner points out that the contested constitutional law is identical in content with the one adopted in 1998, and the political circumstances are also analogous. He considers the argument of "constitutional habit" established by the procedure in 1998 to be unacceptable, and outlines the political-cultural consequences of breaching constitutional principles.

In his opinion, constitutional Act no. 195/2009 Coll., because it changes the rules of free, equal and open political competition, which is among the essential requirements of a democratic, law-based state, by suspending the Constitution for one instance, retroactively and in a manner that limits the sovereignty of the people, is thus inconsistent with Art. 21 par. 2 and 4, Art. 22 of the Charter a Art. 9 par. 2, Art. 16 par. 1 and Art. 17 par. 1 of the Constitution. For all these reasons, thus presented, he proposes that constitutional Act no. 195/2009 Coll., on Shortening the Fifth Term of Office of the Chamber of Deputies, be annulled.

…

In judgment file no. Pl. ÚS 36/01 the Constitutional Court applied Art. 9 par. 2 of the Constitution in the position of a basic rule for interpretation of the Constitution and amendments to it: "The constitutional maxim in Art. 9 par. 2 of the Constitution has consequences not only for the framers of the constitution, but also for the Constitutional Court. The inadmissibility of changing the substantive requirements of a democratic state based on the rule of law also contains an instruction to the Constitutional Court, that no amendment to the Constitution can be interpreted in such a way that it would result in limiting an already achieved procedural level of protection for fundamental rights and freedoms." In this connection, we must also mention judgment file no. Pl. ÚS 11/02, in which the Court also included in Art. 9 par. 2 of the Constitution the guarantee of ruling out arbitrariness in its own interpretation of the constitutional order: "If the Constitutional Court itself, as a constitutional body, i.e. a public authority, is not to act arbitrarily, the Constitutional Court also being subject to the prohibition on arbitrary conduct, because it too, or it especially, is required to respect the framework of the constitutional state, in which arbitrary conduct by public authorities is strictly forbidden, it must feel bound by its own decisions, and can depart from them through its case law only under certain circumstances. This postulate can be described as an essential requirement for a democratic state governed by the rule of law (Art. 1 par. 1, in connection with Art. 9, par. 2 of the Constitution.)"

In a number of its decisions the Constitutional Court also outlined the meaning of the term "essential requirements for a democratic state governed by the rule of law" under Art. 9 par. 2 of the Constitution. In judgment file no. III. ÚS 31/97 it stated: "The concept of a democratic state under Art. 9 par. 2 of the Constitution is interpreted by the Constitutional Court, as well as by doctrine. In its decision in the matter file no. Pl. ÚS 19/93, the Constitutional Court included in this concept a substantive, not a formal, understanding of a state governed by the rule of law." The court also referred to doctrinaire positions, according to which the essential requirements for a democratic state governed by the rule of law under Art. 9 par. 2 and 3 of the Constitution include "above all the sovereignty of the people and the principles contained in Art. 5 and 6 of the Constitution and the natural law provisions of the Charter of Fundamental Rights and Freedoms, which establish a constitutional right to resistance (Art. 23 of the Charter)" , or, in other words, these requirements are "concentrated in several articles of Chapter I of the Constitution and in Chapter I and V of the Charter, and ceremonially declared in the Preamble to the Constitution" . From a comparative perspective, the Constitutional Court also pointed to Art. 79 par. 3 of the Grundgesetz of Germany, Art. 110 par. 1 of the Constitution of the Greek Republic, and Art. 288 of the Constitution of the Portuguese Republic.

…

Insofar as the Constitutional Court articulates the need to include the category of constitutional acts within the term "statute" in Art. 87 par. 1 let. a) of the Constitution, in terms of reviewing them for consistency with Art. 9 par. 2 of the Constitution, with direct derogative consequences, it does so in connection to its case law, beginning with the key judgment file no. Pl. ÚS 19/93, and does so in accordance with the values and principles that guide constitutional systems in democratic countries. Protection of the material core of the Constitution, i.e. the imperative that the essential requirements for a democratic state governed by the rule of law, under Art. 9 par. 2 of the Constitution, are non-changeable, is not a mere slogan or proclamation, but a constitutional provision with normative consequences. In No. 78 of The Federalist Papers, Alexander Hamilton wrote that "the courts were designed to be an intermediate body between the people and the legislature, in order, among other things, to keep the latter within the limits assigned to their authority." Without the projection of Art. 9 par. 2 of the Constitution into interpretation of Art. 87 par. 1 let. a) of the Constitution, the non-changeability of the essential requirements for a democratic state governed by the rule of law would lose its normative nature and remain merely a political, or moral challenge.

…

Based on these reasons, the Constitutional Court concluded that constitutional Act no. 195/2009 Coll., on Shortening the Fifth Term of Office of the Chamber of Deputies, is inconsistent with the essential requirements for a democratic state governed by the rule of law under Art. 9 par. 2 of the Constitution, wherefore it annulled it as of 10 September 2009, i.e. the date this judgment is promulgated.

…

9.2.2 Interpretive unamendability

Courts sometimes invalidate constitutional amendments even where the constitution does not expressly shield any codified rules from amendment.

In some cases, courts strike down amendments on the basis of procedural defects in their enactment. For example, where an amendment has been enacted despite failing to secure the required number of votes in a national legislature, a court may rule that the amendment is unconstitutional.

In other cases, courts strike down amendments on grounds involving their substance. For instance, judges may interpret the principles and values of the constitution as foreclosing certain amendments even though the text of the constitution appears to give plenary power to amending actors. The latter case of substantive unconstitutionality is more controversial than the former case of procedural unconstitutionality.

Consider the case of Taiwan. The Constitution codifies no unamendable rules. And yet the Constitutional Court has invalidated constitutional amendment on both procedural and substantive grounds. The Court exercised this power for the first time, in the year 2000.

Constitutional Court of Taiwan, Judicial Yuan Interpretation No. 499 (March 24, 2000)

I. [I]n the enactment and amendment of the Additional Articles, the process of the National Assembly shall be open and transparent. … A constitutional amendment as a state act pertaining to the constitution is null and void inasmuch as a manifest and gross flaw occurs in the amendment procedure. A procedural flaw is considered manifest where the facts of the flaw can be determined without further investigation, whereas it is gross where the facts of the flaw alone render the procedure illegitimate. With such procedural flaws, a constitutional amendment violates the basic norm that underpins the validity of constitutional amendments. The amendment process for the disputed Additional Articles, which passed the third reading by the National Assembly on September 4, 1999, contravenes the principle of openness and transparency … . With such a manifest and gross flaw, the act of disputed constitutional amendment violates the basic norm that underpins the validity of constitutional amendments.

II. [T]he Additional Articles, enacted by the National Assembly via the exercise of its amending power, are at the same level of hierarchy as the original texts of the Constitution. Some constitutional provisions are integral to the essential nature of the Constitution and underpin the constitutional normative order. If such provisions are open to change through constitutional amendment, adoption of such constitutional amendments would bring down the constitutional normative order in its entirety. Therefore, any such constitutional amendment shall be considered illegitimate, in and of itself. Among various constitutional provisions, Article 1 (the principle of a democratic republic), Article 2 (the principle of popular sovereignty), Chapter II (the protection of constitutional rights), and those providing for the separation of powers and the principle of checks and balances are integral to the essential nature of the Constitution and constitute the foundational principles of the entire constitutional order. All the constitutionally-established organs must adhere to the constitutional order of liberal democracy, as emanating from the said constitutional provisions, on which the current Constitution is founded.

III. Article 1 of the Additional Articles adopted by the Third National Assembly on September 4, 1999, stipulates that, from the Fourth National Assembly on, the seats of the Delegates shall be apportioned according to the popular votes that the candidates nominated by each political party and all the independent candidates receive in the parallel election for the Members of the Legislative Yuan, which differs from the National Assembly in function and competence. The Delegates who are to be selected pursuant to the challenged apportionment method but not directly elected by the people, are merely the representatives appointed by respective political parties according to their share of seats in the Legislative Yuan. Accordingly, this amendment is incompatible with the spirit of Article 25 of the Constitution, which provides that the National Assembly, on behalf of the people, exercises sovereign rights. It leads to a conflict between two constitutional provisions. All the powers conferred by Article 1 of the Additional Articles are presupposed to be exercised by the Delegates elected by the people. Should the Delegates, selected pursuant to the challenged apportionment method, be allowed to exercise the powers of the said Article 1, the fundamental principles of constitutional democracy would be thereby violated. Hence, the disputed Additional Article amending the method of election for the Delegates is incompatible with the constitutional order of liberal democracy.

> IV. Article 1, Paragraph 3, Second Sentence of the Additional Articles provides, "The term of office of the Third National Assembly shall be extended to the day when the term of office of the Fourth Legislative Yuan expires;" Article 4, Paragraph 3, First Sentence provides, "The term of office of the Fourth Legislative Yuan shall be extended to June 30, 2002." Thereby, the term of office of the Third National Assembly will be extended by two years and forty-two days, and the term of office of the Fourth Legislative Yuan by five months, respectively. Pursuant to the principle of popular sovereignty, the power and authority of political representatives originate directly from the authorization of the people. Hence, the legitimacy of representative democracy lies in the adherence of elected political representatives to their social contract with the electorate. Its cardinal principle is that the new election must take place at the end of the fixed electoral term unless just cause exists for not holding the election. Failing that, representative democracy will be devoid of legitimacy. J.Y. Interpretation No. 261 held that "periodic election of members of Congress is a sine qua non to reflect the will of the people and implement constitutional democracy" to that effect. The just cause for not holding the election alluded to above must be consistent with the holdings of J.Y. Interpretation No. 31, which stipulated, "The State has been undergoing a severe calamity, which has made the election of both the Second Legislative Yuan and the Second Control Yuan de facto impossible." In this case, no just cause for not holding re-elections can be found to justify the disputed extension of the terms of both the Third National Assembly and the Fourth Legislative Yuan. Such an extension of the terms as effectuated by amending the said two provisions of the Additional Articles is not in conformity with the principle set out above. Furthermore, the self-extension of its own term by the Third National Assembly contravenes the principle of conflict of interest and is also incompatible with the constitutional order of liberal democracy.
>
> …

The most well-known case on the doctrine of unconstitutional constitutional amendment comes from India. In 1973, the Supreme Court held for the first time that the power to amend the constitution cannot be used to do violence to the "basic structure" of the constitution, even though the text of the constitution itself does not codify any substantive limitations on constitutional amendments. In the case that follows below, the Chief Justice explains how an amendment can be unconstitutional in the face of a constitutional text that establishes no restrictions on amendments.

Supreme Court of India, Kesavananda Bharati vs State of Kerala, 24 April 1973, AIR 1973 Supreme Court 1461, 1973 4 SCC 225

> 617. The correct approach to the question of limitations which may be implied in any legislative provisions including a Constitutional document has to be made from the point of view of interpretation. It is not a novel theory or a doctrine which has to be treated as an innovation of those who evolve heterodox methods to substantiate their own thesis. The argument that there are no implied limitations because there are no express limitations is a contradiction in terms. Implied limitations can only arise where there are no express limitations.
>
> …
>
> 618. We are equally unable to hold that in the light of the Preamble, the entire scheme of the Constitution the relevant provisions thereof and the context in which the material expressions are used in Article 368 no implied limitations arise to the exercise of the power of amendment. The respondents do not dispute, that, certain limitations arise by necessary implication e.g., the Constitution cannot be abrogated or repealed in its entirety and that the India's polity has to be a Sovereign Democratic Republic, apart from several other implications arising from Article 368 which have been noticed.
>
> 619. The argument that the Nation cannot grow and that the objectives set out in the Preamble cannot be achieved unless the amending power has the ambit and the width of the power of a Constituent Assembly itself or the People themselves appears to be based on grounds which do not have a solid [basis]. The Constitution makers provided for development of the country in all the fields social, economic and political. The structure of the Constitution has been erected on the concept of an egalitarian society. But the Constitution makers did not desire that it should be a society where the citizen will not enjoy the various freedoms and such rights as are the basic elements of those freedoms, e.g., the right to equality, freedom of religion etc., so that his dignity as an individual may be maintained. It has been strongly urged on behalf of the respondents that a citizen cannot have any dignity if he is economically or socially backward. No one can dispute such a statement but the whole scheme underlying the Constitution is to bring about economic and social changes without taking away the dignity of the individual. Indeed, the same has been placed on such a high pedestal that to ensure the freedoms etc. their infringement has been made justiciable by the highest court in the land.
>
> …
>
> 620. The basic structure of the Constitution is not a vague concept and the apprehensions expressed on behalf of the respondents that neither the citizen nor the Parliament would be able to understand it are unfounded. If the historical background, the Preamble, the entire scheme of the Constitution, the relevant provisions thereof including Article 368 are kept in mind there can be no difficulty in discerning that the following can be regarded as the basic elements of the Constitutional structure. (These cannot be catalogued but can only be illustrated).
>
> 1. The supremacy of the Constitution.
> 2. Republican and Democratic form of Government and sovereignty of the country.
> 3. Secular and federal character of the Constitution.
> 4. Demarcation of power between the legislature, the executive and the judiciary.
> 5. The dignity of the individual (secured by the various freedoms and basic rights in Part III and the mandate to build a welfare State contained in Part IV.
> 6. The unity and the integrity of the nation.
>
> 621. The entire discussion from the point of view of the meaning of the expression "amendment" as employed in Article 368 and the limitations which arise by implications leads to the result that the amending power under Article 368 is neither narrow nor unlimited. On the footing on which we have proceeded the validity of the 25th amendment can be sustained if Article 368, as it originally stood and after the amendment, is read in the way we have read it. The insertion of Articles 13(4) and 368(3) and the other amendments made will not affect the result, namely, that the power in Article 368 is wide enough to permit amendment of each and every Article of the Constitution by way of addition, variation or repeal so long as its basic elements are not abrogated or denuded of their identity.

It did not take long for the Supreme Court of India to deploy the basic structure doctrine to invalidate a constitutional amendment. In one of the earliest instances, an amendment sought to limit the power of the Court to review the constitutionality of amendments. The Court heard a challenge to this amendment. In its ruling, the Court invoked the basic structure doctrine while referring to the *Kesavanda* case, discussed above.

Supreme Court of India, Minerva Mills Ltd. vs Union of India, 31 July 1980, 1980 AIR 1789, 1981 SCR (1) 206

> In Keshavananda Bharati this Court held by a majority that though by Article 368 Parliament is given the power to amend the Constitution. that power cannot be exercised so as to damage the basic features of the Constitution or so as to destroy its basic structure. The question for consideration in this group of petitions under article 32 is whether sections 4 and 55 of the Constitution (42nd Amendment) Act, 1976

transgress that limitation, on the amending power.

Petitioner No. 1 which is a limited company owned a textile undertaking called Minerva Mills situated in the State of Karnataka. This undertaking was nationalised and taken over by the Central Government under the provisions of the Sick Textile Undertakings (Nationalisation) Act, 1974. Petitioners 2 to 6 are shareholders of Petitioner No. 1, some of whom are also unsecured creditors and some secured creditors.

Respondent 1 is the Union of India. Respondent 2 is the National Textile Corporation Limited in which the textile undertaking of Minerva Mills comes to be vested under section 3(2) of the Nationalisation Act of 1974. Respondent 3 is a subsidiary of the 2nd respondent.

On August 20, 1970, the Central Government appointed a Committee under section 15 of the Industries (Development and Regulation Act, 1951 to make a full and complete investigation of the affairs of the Minerva Mills Ltd., as it was of the opinion that there had been or was likely to be substantial fall in the volume of production. The said Committee submitted its report to the Central Government in January 1971, on the basis of which the Central Government passed an order dated October 19, 1971 under section 18A of the Act of 1951, authorising Respondent 2 to take over the management of the Minerva Mills Ltd. On the ground that its affairs were being managed in a manner highly detrimental to public interest.

By these petitions, the petitioners challenge the constitutional validity of certain provisions of the Sick Textile Undertakings (NationaLisation) Act and of the order dated October 19, 1971. We are not concerned with the merits of that challenge at this stage the petitioners further challenge the constitutionality of the Constitution (39th Amendment) Act which inserted the impugned Nationalisation Act as Entry 105 is the 9th Schedule to the Constitution. That raises a question regarding the validity of article 31B of the Constitution with which we propose to deal in another batch of petitions. Finally, the petitioners challenge the constitutionality fo sections 4 and 55 of the Constitution (42nd Amendment) Act, 1976, and it is this contention alone with which we propose to deal in these petitions.

The challenge to the validity of section 4 and SS of the 42nd Amendment rests on the ratio of the majority judgment in Kesavanand Bharati (Supra). The several opinions rendered in that case have been discussed and analysed threadbare in texts and judgments too numerous to mention. All the same, we cannot avoid making a brief resume of the majority judgments since the petitioners must stand or fall by them. Those judgments, on the point now in issue, were delivered by Sikri, CJ., Shelat and Grover JJ., Hegde and Mukherjea JJ., Jaganmohan Reddy J. and Khanna J.

Sikri, CJ., held that the fundamental importance of the freedom of the individual has to be preserved for all times to come and that it could not be amended out of existence According to the learned Chief Justice, fundamental rights conferred by Part III of the Constitution cannot be abrogated, though a reasonable abridgement of those rights could be effected in public interest. There is a limitation on the power of amendment by necessary implication which was apparent from a reading of the preamble and therefore, according to the learned Chief Justice, the expression "amendment of this Constitution" in Article 368 means any addition or change in any of the provisions of the Constitution within the broad contours of the preamble, made in order to carry out the basic objectives of the Constitution. Accordingly, every provision of the Constitution was open to amendment provided the basic foundation or structure of the Constitution was not damaged or destroyed.

Shelat and Grover, JJ. held that the preamble to the Constitution contains the clue to the fundamentals of the Constitution. According to the learned Judges, Parts III and IV of the Constitution which respectively embody the fundamental rights and the directive principles have to be balanced and harmonised. This balance and harmony between two integral parts of the Constitution forms a basic element of the Constitution which cannot be altered. The word 'amendment' occurring in Article 368 must therefore be construed in such a manner as to reserve the power of the Parliament to amend the constitution, but not so as to result in damaging or destroying the structure and identity of the Constitution. There was thus an implied limitation in the amending power which precluded Parliament from abrogating or changing the identity of the Constitution or any of its basic features.

Hegde and Mukherjea, JJ. held that the Constitution of India which is essentially a social rather than a political document, is founded on a social philosophy and as such has two main features: basic and circumstantial. The basic constituent remained constant, the circumstantial was subject to change. According to the learned Judges, the broad contours of the basic elements and the fundamental features of the Constitution are delineated in the preamble and the Parliament has no power to abrogate or emasculate those basic elements or fundamental features. The building of a welfare State, the learned Judges said, is the ultimate goal of every Government but that does not mean that in order to build a welfare state, human freedoms have to suffer a total destruction. Applying these tests, the learned Judges invalidated Article 31C even in its unamended form.

Jaganmohan Reddy, J., held that the word 'amendment' was used in the sense of permitting a change, in contradistinction, to destruction, which the repeal or abrogation brings about. Therefore, the width of the power of amendment could not be enlarged by amending the amending power itself. The learned Judge held that the essential elements of the basic structure of the Constitution are reflected in its preamble and that some of the important features of the Constitution are justice, freedom of expression and equality of status and opportunity. The word 'amendment' could not possibly embrace the right to abrogate the pivotal features and the fundamental freedoms and therefore, that part of the basic structure could not be damaged or destroyed. According to the learned Judge, the provisions of Article 31C. as they stood then, conferring power on Parliament and the State Legislatures to enact laws for giving effect to the principles specified in clauses (b) and (c) of Article 39, altogether abrogated the right given by Article 14 and were for that reason unconstitutional. In conclusion, the learned Judge held that though the power of amendment was wide. it did not comprehend the power to totally abrogate or emasculate or damage any of the fundamental rights or the essential elements on the basic structure of the Constitution or to destroy the identity of the Constitution. Subject to these limitations, Parliament had the right to amend any and every provision of the Constitution.

Khanna, J. broadly agreed with the aforesaid views of the six learned Judges and held that the word 'amendment' postulated that the Constitution must survive without loss of its identity, which meant that the basic structure or framework of the Constitution must survive any amendment of the Constitution. According to the learned Judge. although it was permissible to the Parliament, in exercise of its amending power, to effect changes so as to meet the requirements of changing conditions it was not permissible to touch the foundation or to alter the basic institutional pattern. Therefore, the words "amendment of the Constitution", in spite of the width of their sweep and in spite of their amplitude, could not have the effect of empowering the Parliament to destroy or abrogate the basic structure or framework of the Constitution.

…

The question which we have to determine on the basis of the majority view in Keshavaananda Bharati (Supra) is whether the amendments introduced by sections 4 and 55 of the Constitution (42nd Amendment) Act, 1976 damage the basic structure of the Constitution by destroying any of its basic features or essential elements.

Section 4 of the 42nd Amendment, which was brought into force with effect from January 3, 1977 amended Article 31C of the Constitution by substituting the words and figures "all or any of the principles laid down in Part IV" for the Words and figures "the principles specified in clause (b) or clause (c) of Article 39". Article 31C. as amended by the 42nd Amendment Act reads thus:

> "31C. Notwithstanding anything contained in article 13. no law giving effect to the policy of the State towards securing all or any of the principles laid down in Part IV shall be deemed to be void on the ground that it is inconsistent with, or takes away or abridges any of the rights conferred by article 14, A article 19 or article 31; and no law containing a declaration that it is for giving effect to such policy shall be

called in question in any court on the ground that it does not give effect to such policy:

Provided that where such law is made by the Legislature of a State, the provisions of this article shall not apply thereto unless such law, having been reserved for the consideration of the President, has received his assent."

Section 55 of the Constitution (Forty-second Amendment) Act, 1976, which was also brought into force with effect from January 3, 1977 inserted sub-sections (4) and (5) in Article 368 which read thus:

"(4) No amendment of this Constitution (including the provisions of Part III) made or purporting to have been made under this article (whether before or after the commencement of section 55 of the Constitution (Forty-second Amendment) Act, 1976) shall be called in question in any court on any ground.

(5) For the removal of doubts, it is hereby declared that there shall be no limitation whatever on the constituent power - of Parliament to amend by way of addition, variation or repeal the provisions of this Constitution under this article".

We will first take up for consideration the comparatively easier question as regards the validity of the amendments made by section 55 of the 42nd Amendment. It introduces two new clauses in Article 368, namely, clauses 4 and S. Clause S speaks for itself and is self explanatory. Its avowed purpose is the "removal of doubts" but after the decision of this Court in Kesavananda Bharati (Supra), there could be no doubt as regards the existence of limitations on the Parliament's power to amend the Constitution. In the context of the constitutional history of Article 368, the true object of the declaration contained in Article 368 is the removal of those limitations. Clause S confers upon the Parliament a vast and undefined power to amend the Constitution, even, so as to distort it out of recognition. The theme song of the majority decision in *Kesavananda Bharati* (Supra) is: 'Amend as you may even the solemn document which the founding fathers have committed to your care, for you know best the needs of your generation. But, the Constitution is a precious heritage; therefore, you cannot destroy its identity'. The majority conceded to the Parliament the right to make alterations in the Constitution so long as they are within its basic framework. And what fears can that judgment raise or misgivings generate if it only means this and no more: The Preamble assures to the people of India a polity whose basic structure is described therein as a Sovereign Democratic Republic; Parliament may make any amendments to the Constitution as it deems expedient so long as they do not damage or destroy India's sovereignty and its democratic, republican character. Democracy is not an empty dream. It is a meaningful concept whose essential attributes are recited in the preamble itself: Justice, social, economic and political; Liberty of thought, expression, belief, faith and worship, and Equality of status and opportunity. Its aim, again as set out in the preamble, is to promote among the people an abiding sense of 'Fraternity assuring the dignity of the individual and the unity of the Nation'. The newly introduced clause S of Article 368 demolishes the very pillars on which the preamble rests by empowering the Parliament to exercise its constituent power without any "limitation whatever". No constituent power can conceivably go higher than the sky- high power conferred by clause (S), for it even empowers the Parliament to "repeal the provisions of this Constitution", that is to say, to abrogate the democracy and substitute for it a totally antithetical form of Government. That can most effectively be achieved, without calling a democracy by any other name, by a total denial of social, economic and political justice to the people, by emasculating liberty of thought, expression, belief, faith and worship and by abjuring commitment to the magnificent ideal of a society of equals. The power to destroy is not a power to amend.

Since the Constitution had conferred a limited amending power on the Parliament, the Parliament cannot under the exercise of that limited power enlarge that very power into an absolute power. Indeed, a limited amending power is one of the basic features of our Constitution and therefore, the limitations on that power cannot be destroyed. In other words, Parliament cannot, under Article 368, expand its amending power so as to acquire for itself the right to repeal or abrogate the Constitution or to destroy its basic and essential features. The donee of a limited power cannot by the exercise of that power convert the limited power into an unlimited one.

The very 42nd Amendment which introduced clauses 4 and 5 in Article 368 made amendments to the preamble to which no exception can be taken. Those amendments are not only within the framework of the Constitution but they give vitality to its philosophy, they afford strength and succor to its foundation. By the aforesaid amendments, what was originally described as a 'Sovereign Democratic Republic' became a "Sovereign Socialist Secular Democratic Republic" and the resolution to promote the `unity of the Nation' was elevated into a promise to promote the "unity and integrity of the Nation". These amendments furnish the most eloquent example of how the amending power can be exercised consistently with the creed of the Constitution. They offer promise of more, they do not scuttle a precious heritage.

In Smt. Indira Nehru Gandhi v. Raj Narain, Khanna, J. struck down clause 4 of Article 329A of the Constitution which abolished the forum for adjudicating upon a dispute relating to the validity of an election, on the ground that the particular Article which was introduced by a constitutional amendment violated the principle of free and fair elections which is an essential postulate of democracy and which, in its turn, is a part of the basic structure of the Constitution. Mathew, J. also struck down the Article on the ground that it damaged the essential feature of democracy. One of us. Chandrachud. J. reached the same conclusion by holding that the provisions of the Article were an outright negation of the right of equality conferred by Article 14, a right which, more than any other, is a basic postulate of the Constitution. Thus whereas amendments made to the preamble by the 42nd Amendment itself afford an illustration of the scope of the amending power, the case last referred to affords an illustration of the limitations on the amending power.

Since, for the reasons above mentioned, clause 5 of Article 368 , transgresses the limitations on the amending power, it must be held to be unconstitutional.

The newly introduced clause 4 of Article 368 must suffer the same fate as clause 5 because the two clauses are inter-linked. Clause 5 purports to remove all limitations on the amending power while clause 4 deprives the courts of their power to call in question any amendment of the Constitution. Our Constitution is founded on a nice balance of power among the three wings of the State, namely the Executive, the Legislature and the Judiciary. It is the function of the Judges, nay their duty, to pronounce upon the validity of laws. If courts are totally deprived of that power, the fundamental rights conferred upon the people will become a mere adornment because rights without remedies are as writ in water. A controlled Constitution will then become uncontrolled. Clause (4) of Article 368 totally deprives the citizens of one of the most valuable modes of redress which is guaranteed by Article 32. The conferment of the right to destroy the identity of the Constitution coupled with the provision that no court of law shall pronounce upon the validity of such destruction seems to us a transparent case of transgression of the limitations on the amending power.

If a constitutional amendment cannot be pronounced to be invalid even if it destroys the basic structure of the Constitution, a law passed in pursuance of such an amendment will be beyond the pale of judicial review because it will receive the protection of the constitutional amendment which the courts will be powerless to strike down. Article 13 of the Constitution will then become a dead letter because even ordinary laws will escape the scrutiny of the courts on the ground that they are passed on the strength of a constitutional amendment which is not open to challenge.

Clause 4 of Article 368 is in one sense an appendage of Clause 5, though we do not like to describe it as a logical consequence of Clause 5. If it be true, as stated in clause 5, that the Parliament has unlimited power to amend the Constitution, courts can have no jurisdiction to strike down any constitutional amendment as unconstitutional. Clause 4, therefore, says nothing more or less than what clause 5 postulates. If clause 5 is beyond the amending power of the Parliament, clause 4 must be equally beyond that power and must be struck down as such.

The next question which we have to consider is whether the amendment made by section 4 of the 42nd Amendment to Article 31C of the Constitution is valid. Mr. Palkhiwala did not challenge the validity of the unamended Article 31C, and indeed that would not be done. The unamended Article 31C forms the subject matter of separate proceeding and we have indicated therein that it is constitutionally valid to the extent to which it was upheld in *Keshvananda Bharati* (Supra).

By the amendment introduced by section 4 of the 42nd Amendment, provision is made in Article 31C saying that no law giving effect to the policy of the State towards securing "all or any of the principles laid down in Part IV"

> shall be deemed to be void on the ground that it is inconsistent with or takes away or a bridges any of the rights conferred by Article 14, Article 19 or Article 31. It is manifest that the scope of laws which fall within Article 31C has been expanded vastly by the amendment. Whereas under
>
> the original Article 31C, the challenge was excluded only in respect of laws giving effect to the policy of the State towards securing "the principles specified in clause (b) or clause (c) of Article 39" under the amendment.
>
> all laws giving effect to the policy of the State towards securing "all or any of the principles laid down in Part IV"

are saved from a constitutional challenge under Articles 14 and 19. (The reference to Article 31 was deleted by the 44th Amendment as a consequence of the abolition of the right to property as a fundamental right). The question for consideration in the light of this position is whether section 4 of the 42nd Amendment has brought about a result which is basically and fundamentally different from the one arising under the unamended article. If the amendment does not bring about any such result, its validity shall have to be upheld for the same reasons for which the validity of the unamended article was upheld.

…

The main controversy in these petitions centres round the question whether the directive principles of State policy contained in Art IV can have primacy over the fundamental rights conferred by Part III of the Constitution. That is the heart of the matter. Every other consideration and all other contentions are in the nature of by-products of that central theme of the case. The competing claims of parts III and IV constitute the pivotal point of the case because, Article 31C as amended by section 4 of the 42nd Amendment provides in terms that a law giving effect to any directive principle cannot be challenged as void on the ground that it violates the rights conferred by Article 14 or Article 19. The 42nd Amendment by its section 4 thus subordinates the fundamental rights conferred by Articles 14 and 19 to the directive principles.

The question of questions is whether in view of the majority decision in *Kesavananda Bharati* it is permissible to the Parliament to so amend the Constitution as to give a position of precedence to directive principles over the fundamental rights. The answer to this question must necessarily depend upon whether Articles 14 and 19 which must now give way to laws passed in order to effectuate the policy of the State towards securing all or any of the principles of directive Policy are essential features of the basic structure of the Constitution. It is only if the rights conferred by these two articles are not a part of the basic structure of the Constitution that they can be allowed to be abrogated by a constitutional amendment. If they are a part of the basic structure they cannot be obliterated out of existence in relation to a category of laws described in Article 31C or, for the matter of that, in relation to laws of any description whatsoever, passed in order to achieve any object or policy whatsoever. This will serve to bring out the point that a total emasculation of the essential features of the Constitution is, by the ratio in *Kesavananda Bharati*, not permissible to the Parliament.

There is no doubt that though the courts have always attached very great importance to the preservation of human liberties, no less importance has been attached to some of the Directive Principles of State Policy enunciated in Part IV. In the words of Granville Austin,. (The Indian Constitution: Corner Stone of a Nation, p. 50) the Indian Constitution is first and foremost a social document and the majority of its provisions are aimed at furthering the goals of social revolution by establishing the conditions necessary for its achievement. Therefore the importance of Directive Principles in the scheme of our Constitution cannot ever be over-emphasized. Those principles project the high ideal which the Constitution aims to achieve. In fact Directive Principles of State policy are fundamental in the governance of the country and the Attorney General is right that there is no sphere of public life where delay can defeat justice with more telling effect than the one in which the common man seeks the realisation of his aspirations. The promise of a better to-morrow must be fulfilled to-day; day after to-morrow it runs the risk of being conveniently forgotten. Indeed so many tomorrows have come and gone without a leaf turning that today there is a lurking danger that people will work out their destiny through the compelled cult of their own "dirty hands". Words bandied about in marbled halls say much but fail to achieve as much.

But there is another competing constitutional interest which occupies an equally important place in that scheme. That interest is reflected in the provisions of Part III which confer fundamental rights some on citizens as Articles 15, 16 and 19 do and some on. all persons alike as Articles 14, 20, 21 and 22 do. As Granville Austin says: "The core of the commitment to the social revolution lies in Parts III and IV.. These are the conscience of the Constitution.

It is needless to cite decisions which have extolled and upheld the personal freedoms their majesty, and in certain circumstances, their inviolability. It may however be profitable to see how the American Supreme Court, dealing with a broadly comparable Constitution, has approached the claim for those freedoms.

…

The history of India's struggle for independence and the debates of the Constituent Assembly show how deeply our people value their personal liberties and how those liberties are regarded as an indispensable and integral part of our Constitution. It is significant that though Parts III and IV appear in the Constitution as two distinct fasciculus of articles, the leaders of our independence movement drew no distinction between the two kinds of State's obligations- negative and positive. "Both types of rights had developed as a common demand, products of the national and social revolutions, of their almost inseparable intertwining, and of the character of Indian politics - itself(4)". The demand for inalienable rights traces its origin in India to the 19th Century and flowered into the formation of the Indian National Congress in 1885. Indians demanded equality with their British rulers on the theory that the rights of the subjects cannot in a democracy be inferior to those of the rulers. Out of that demand grew the plants of equality and free speech. Those and other basic rights found their expression in Article 16 of The Constitution of India Bill, 1895. A series of Congress resolutions reiterated that demand between 1917 and 1919. The emergence of Mahatma Gandhi; on the political scene gave to the freedom movement a new dimension: it ceased to be merely anti-British it became a movement for the acquisition of rights of liberty for the Indian Community. Mrs. Besan't Commonwealth of India Bill, 1925 and the Madras Congress resolution of 1928 provided a striking continuity for that movement. The Motilal Nehru Committee appointed by the. Madras Congress resolution said at pp. 89-90:

> "It is obvious that our first care should be to have our Fundamental Rights guaranteed in a manner which will not permit their withdrawal under any circumstances.. Another reason why great importance attaches to a Declaration of Rights is the unfortunate existence of communal differences in the country. Certain safeguards are necessary to create and establish a sense of security among those who look upon each other with distrust and suspicion. We could not better secure the full enjoyment of religious and communal rights to all communities than by including them among the basic principles of the Constitution."

India represents a mosaic of humanity consisting of diverse religious linguistic and caste groups. The rationale behind the insistence on fundamental rights has not yet lost its relevance, alas or not, The Congress session of Karachi adopted in 1931 the Resolution on Fundamental Rights as well as on Economic and Social change. The Sapru Report of 1945 said that the fundamental rights should serve as a "standing warning" to all concerned that:

> "what the Constitution demands and expects is perfect equality between one section of the Community and another in the matter of political and civic rights, equality of liberty and security in the enjoyment of the freedom of religion, worship and the pursuit of the ordinary applications of life". (p. 260).

The Indian nation marched to freedom in this background. The Constituent Assembly resolved to enshrine the fundamental rights in the written text of the Constitution. The interlinked goals of personal liberty and economic freedom then came to be incorporated in two separate parts, nevertheless parts of an integral, indivisible scheme which was carefully and thoughtfully nursed over half a century. The seeds sown in the 19th Century saw their fruition in 1950 under the leadership of Jawaharlal Nehru and Dr. Ambedkar. To destroy the guarantees given by Part III in order purportedly to achieve the goals of Part IV is plainly to subvert the Constitution by destroying its basic structure.

Fundamental rights occupy a unique place in the lives of civilized societies and have been variously described in our Judgments as "transcendental", "inalienable" and "primordial". For us, it has been said in Kesavananda Bharti (p. 991), they constitute the ark of the constitution.

The significance of the perception that Parts III and IV together constitute the core of commitment to social revolution and they, together, are the conscience of the Constitution is to be traced to a deep understanding of the scheme of the Indian Constitution. Granville Austin's observation brings out the true position that Parts III and IV are like two wheels of a chariot, one no less important than the other. You snap one and the other will lose its efficacy. They are like a twin formula for achieving the social revolution, which is the ideal which the visionary founders of the Constitution set before themselves. In other words, the Indian Constitution is founded on the bed-rock of the balance between Parts III and IV. To give absolute primacy to one over the other is to disturb the harmony of the Constitution. This harmony and balance between fundamental rights and directive principles is an essential feature of the basic structure of the Constitution.

This is not mere semantics. The edifice of our Constitution is built upon the concepts crystallised in the Preamble. We resolved to constitute ourselves into a Socialist State which carried with it the obligation to secure to our people justice-social, economic and political. We, therefore, put part IV into our Constitution containing directive principles of State policy which specify the socialistic goal to be achieved. We promised to our people a democratic polity which carries with it the obligation of securing to the people liberty of thought, expression, belief, faith and worship; equality of status and of opportunity and the assurance that the dignity of the individual will at all costs be preserved. We, therefore, put Part III in our Constitution conferring those rights on the people. Those rights are not an end in themselves but are the means to an end. The end is specified in Part IV. Therefore, the rights conferred by Art III are subject to reasonable restrictions and the Constitution provides that enforcement of some of them may, in stated uncommon circumstances, be suspended. But just as the rights conferred by Part III would be without a radar and a compass if they were not geared to an ideal, in the same manner the attainment of the ideals set out in Part IV would become a pretence for tyranny if the price to be paid for achieving that ideal is human freedoms. One of the faiths of our founding fathers was the purity of means. Indeed, under our law, even a dacoit who has committed a murder cannot be put to death in the exercise of right of self-defence after he has made good his escape. So great is the insistence of civilised laws on the purity of means. The goals set out in Part IV have, therefore, to be achieved without the abrogation of the means provided for by Part III. It is in this sense that Parts III and IV together constitute the core of our Constitution and combine to form its conscience. Anything that destroys the balance between the two parts will ipso facto destroy an essential element of the basic structure of our Constitution.

It is in this light that the validity of the. amended Article 31C has to be examined. Article 13(2) says that the State shall not make any law which takes away or abridges the rights conferred by Part Ill and any law made in contravention of that clause shall to the extent of the contravention be void. Article 31C begins with a non- obstante clause by putting Article 13 out of harm's way. It provides for a certain consequence notwithstanding anything contained in Article 13. It then denudes Articles 14 and 19 of their functional utility by providing that the rights conferred by these Articles will be no barrier against passing laws for giving effect to the principles laid down in Part IV. On any reasonable interpretation, there can be no doubt that by the amendment introduced by section 4 of the 42nd Amendment, Articles 14 and 19 stand abrogated at least in regard to the category of laws described in Article 31C. The startling consequence which the amendment has produced is that even if a law is in total defiance of the mandate of Article 13 read with Articles 14 and 19, its validity will not be open to question so long as its object is to secure a directive principle of state Policy. We are disposed to accept, the submission of the learned Solicitor General, considering the two charts of cases submitted by him, that it is possible to conceive of laws which will not attract Article 31C since they may not bear direct and reasonable nexus with the provisions of Part IV. But, that, in our opinion, is beside the point. A large majority of laws, the bulk of them, can at any rate be easily justified as having been passed for the purpose of giving effect to the policy of the State towards securing some principle or the other laid down in Part IV. In respect of all such laws, which will cover an extensive gamut of the relevant legislative activity, the protection of Articles 15 and 19 will stand wholly withdrawn. It is then no answer to say, while determining whether the basic structure of the Constitution is altered, that at least. some laws will fall outside the scope of Article 31C.

We have to decide the matter before us not by metaphysical subtlety, nor as a matter of semantics, but by a broad and liberal approach. We must not miss the wood for the trees. A total deprivation of fundamental rights, even in a limited area, can amount to abrogation of a fundamental right just as partial deprivation in every area can. An author, who writes exclusively on foreign matters, shall have been totally deprived of the right of free speech and expression if he is prohibited from writing on foreign matters. The fact therefore that some laws may fall. Outside the scope of Article 31C is no answer to the contention that the withdrawal of protection of Articles 14 and 19 from a large number of laws destroys the basic structure of the Constitution.

It was repeatedly impressed upon us, especially by the Attorney General, that Article 38 of the Constitution is the king-pin of the directive principles and no law passed in order to give effect to the principle contained therein can ever damage or destroy the basic structure of the Constitution. That Article provides that the State shall strive to promote the welfare of the people by securing and protecting as effectively as it may a social order in which justice, social, economic and political, shall inform all the institutions of the national life. We are unable to agree that all the directive Principles of State Policy contained in part IV eventually verge upon Article 38. Article 38 undoubtedly contains a broad guideline, but the other directive principles are not mere illustrations of the principle contained in Article 38. Secondly, if it be true that no law passed for the purpose of giving effect to the directive principle contained in Article 38 can damage or destroy the basic structure of the Constitution, what was the necessity, and more so the justification. for providing by a constitutional amendment that no law which is passed for giving effect to the policy of the State towards securing any principle laid down in Part IV shall be deemed to be void on the ground that it is inconsistent with or takes away or abridges the rights conferred by Articles 14 and 19 ? The object and purpose of the amendment of Article 31C is really to save laws which cannot be saved under Article 19(2) to (6). Laws which fall under those provisions are in the nature of reasonable restrictions on the fundamental rights in public interest and therefore they abridge but do not abrogate the fundamental rights It was in order to deal with laws which do not get the protection of Article 19(2) to (6) that Article 31 was amended to say that the provisions of Article 19, inter alia, cannot be invoked for voiding the laws of the description mentioned in Article 31C.

Articles 14 and 19 do not confer any fanciful rights. They confer rights which are elementary for the proper and effective functioning of a democracy. They are universally so regarded, as is evident from the universal Declaration of Human Rights. Many countries in the civilised world have parted with their sovereignty in the hope and belief that their citizens will enjoy human freedoms. And they preferred to be bound by the decisions and decrees of foreign tribunals on matters concerning human freedoms. If Articles 14 and 19 are put out of operation in regard to the bulk of laws which the legislatures are empowered to pass, Article 32 will be drained of its life-blood. Article 32(4) provides that the right guaranteed by Article 32 shall not be suspended except as otherwise provided for by the Constitution. Section 4 of the 42nd Amendment found an easy way to circumvent Article 32(4) by withdrawing totally the protection of Articles 14 and 19 in respect of a large category of laws, so that there will be no violation to complain of in regard to which redress can be sought under Article 32. The power to take away the protection of Article 14 is the power to discriminate without a valid basis for classification. By a long series of decisions this Court had held that Article 14 forbids class legislation but it does not forbid classification. The purpose of withdrawing the protection of Article 14, therefore, can only be to acquire the power to enact class legislation. Then again, regional chauvinism will have a field day if Article 19(1)(d) is not available to the citizens. Already, there are disturbing trends on a part of the Indian horizon. Those trends will receive strength and encouragement if laws can be passed with immunity, preventing the citizens from exercising their right to move freely throughout the territory of India. The nature and quality of the amendment introduced by section 4 of the 42nd Amendment is therefore such that it virtually tears away the heart of basic fundamental freedoms.

Article 31C speaks of laws giving effect to the policy of the "State". Article 12 which governs the interpretation of Article 3 LC provides that the word "State" in Part III includes the Government and Parliament of India and the Government and the Legislature of each of the States and all local or other authorities within the territory of India or under the control of the Government of India. Wide as the language of Article 31C is, the definition of the word "State" in Article 12 gives to Article 31C an operation of the widest amplitude. Even if a State Legislature passes a law for the purpose of giving effect to the policy by a local authority towards securing a directive principle, the law will enjoy immunity from the provisions of Articles 14 and 19. The State Legislatures are thus given an almost unfettered discretion to deprive the people of their civil liberties.

The learned Attorney General argues that the State is under an obligation to take steps for promoting the welfare of the people by bringing about a social order in which social, economic and political justice shall inform all the institutions of the national life. He says that the deprivation of some of the fundamental rights for the purpose of achieving this goal cannot possibly amount to a destruction of the basic structure of the Constitution. We are unable to accept this contention. The principles enunciated in Part IV are not the proclaimed monopoly of democracies alone. They are common to all polities, democratic or authoritarian. Every State is goal-oriented and claims to strive for securing the welfare of its people. The distinction between the different forms of Government consists in that a real democracy will endeavour to achieve its objectives through the discipline of fundamental freedoms like those conferred by Articles 14 and 19. Those are the most elementary freedoms without which a free democracy is impossible and which must therefore be preserved at all Costs. Besides, as observed by Brandies, J., the need to protect liberty is the greatest when Government's purposes are beneficent. If the discipline of Article 14 is withdrawn and if immunity from the operation of that article is conferred, not only on laws passed by the Parliament but on laws passed by the State Legislatures also, the political pressures exercised by numerically large groups can tear the country asunder by leaving it to the legislature to pick and choose favoured areas and favourite classes for preferential treatment.

The learned Attorney General and the learned Solicitor General strongly impressed upon us that Article 31C should be read down so as to save it from the challenge of unconstitutionality. It was urged that it would be legitimate to read into that Article the intendment that only such laws would be immunised from the challenge under Articles 14 and 19 as do not damage or destroy the basic structure of the Constitution. The principle of reading down the provisions of a law for the purpose of saving it from a constitutional challenge is well-known. But we find it impossible to accept the contention of the learned counsel in this behalf because, to do so will involve a gross distortion of the principle of reading down, depriving that doctrine of its only or true rationale when words of width are used inadvertently. The device of reading down is not to be resorted to in order to save the susceptibilities of the law makers, nor indeed to imagine a law of one's liking to have been passed. One must at least take the Parliament at its word when, especially, it undertakes a constitutional amendment.

Mr. Palkhivala read out to us an extract from the speech of the then Law Minister who, while speaking on the amendment to Article 31 C, said that the amendment was being introduced because the government did not want the "let and hindrance" of the fundamental rights. If the Parliament has manifested a clear intention to exercise an unlimited power, it is impermissible to read down the amplitude of that power so as to make it limited. The principle of reading down cannot be invoked or applied in opposition to the clear intention of the legislature. We suppose that in the history of the constitutional law, no constitutional amendment has ever been read down to mean the exact opposite of what it says and intends. In fact, to accept the argument that we should read down Article 31C, so as to make it conform to the ratio of the majority decision in Kesavanda Bharti, is to destroy the avowed purposes of Article 31C as indicated by the very heading "Saving of certain laws" under which Articles 31A, 31B and 31C are grouped. Since the amendment to Article 31C was unquestionably made with a view to empowering the legislatures to pass laws of a particular description even if those laws violate the discipline of Articles 14 and 19, it seems to us impossible to hold that we should still save Article 31C from the challenge of unconstitutionality by reading into that Article words which destroy the rationale of that Article and an intendment which is plainly contrary to its proclaimed purpose.

A part of the same argument was pressed upon us by the learned Additional Solicitor General who contended that it would still be open to the Courts under Article 31C to decide four questions: (1) Does the law secure any of the directive principles of the State policy? (ii) Is it necessary to encroach upon fundamental rights in order to secure the object of the directive principles? (iii) what is the extent of such encroachment, if any? and (iv) Does that encroachment violate the basic structure of the Constitution?

This argument is open to the same criticism to which the argument of the learned Attorney General is open and which we have just disposed of. Reading the existence of an extensive judicial review into Article 31C is really to permit the distortion of the very purpose of that article. It provides expressly that no law of a particular description shall be deemed to be void on the ground that it violate Article 14 or Article 19. It would be sheer adventurism of a most extraordinary nature to undertake the kind of judicial enquiry which, according to the learned Additional Solicitor General, the courts are free to undertake.

We must also mention, what is perhaps not fully realised, that Article 31C speaks of laws giving effect to the "Policy of the State", "towards securing all or any of the principles laid down in Part IV."' In the very nature of things it is difficult for a court to determine whether a particular law gives effect to a particular policy. Whether a law is adequate enough to give effect to the policy of the State towards securing a directives principle is always a debatable question and the courts cannot set aside the law as invalid merely because, in their opinion, the law is not adequate enough to give effect to a certain policy. In fact, though the clear intendment of Article 31C is to shut out all judicial review, the argument of the learned Additional Solicitor General calls for a doubly or trebly extensive judicial review than is even normally permissible to the courts. Be it be remembered that the power to enquire into the question whether there is a direct and B. reasonable nexus between the provisions of a law and a directive principle cannot confer upon the courts the power to sit in judgment over the policy itself of the State. At the highest, courts can, under Article 31C, satisfy themselves as to the identity of the law in the sense whether it bears direct and reasonable nexus with a directive principle. If the court is satisfied as to the existence of such nexus, the inevitable consequence provided for by Article 31C must follow. Indeed, if there is one topic on which all the 13 Judges in Kesavananda Bharati were agreed, it is this: that the only question open to judicial review under the unamended Article 31 was whether there is a direct and reasonable nexus between the impugned

law and the provisions of Article 39(b) and (c). Reasonableness is evidently regarding the nexus and not regarding the law. It is therefore impossible to accept the contention that it is open to the courts to undertake the kind of enquiry suggested by the Additional Solicitor General. The attempt therefore to drape Article 31C into a democratic outfit under which an extensive judicial review would be permissible must fail.

We should have mentioned that a similar argument was advanced in regard to the amendment effected by section 55 of the 42nd Amendment to Article 368, by the addition of clauses (4) and (5) therein. It was urged that we should so construe the word "amendment" in clause (4) and the word "amend" in clause 5 as to comprehend only such amendments as do not destroy the basic structure of thy Constitution. That argument provides a striking illustration of the limitations of the doctrine of reading down. The avowed purpose. Of clauses (4) and (5) of Article 368 is to confer power upon the Parliament to amend the Constitution without any "limitation whatever". Provisions of this nature cannot be saved by reading into them words and intendment of a diametrically opposite meaning and content.

The learned Attorney General then contends that Article 31C should be upheld for the same reasons for which Article 31A(1) was upheld. Article 31A (1) was considered as a contemporaneous practical exposition of the Constitution since it was inserted by the very First Amendment which was passed in 1951 by the same body of persons who were members of the Constituent Assembly. We can understand:

> that Article 31A can be looked upon as a contemporaneous Practical exposition of the intendment of the Constitution, but the same cannot be said of Article 31C. Besides, there is a significant qualitative difference between the two Articles. Article 31A, the validity of which has been recognised over the years excludes the challenge under Articles 14 and 19 in regard to a specified category of laws. If by a constitutional amendment, the application of Articles 14 and 19 is withdrawn from a defined field of legislative activity, which is reasonably in public interest, the basic framework of the constitution may remain unimpaired. But if the protection of those articles is withdrawn in respect of an uncatalogued variety of laws, fundamental freedoms will become a 'parchment in a glass case' to be viewed as a matter of historical curiosity.
>
> An attempt was made to equate the provisions of Article 31 with those of Article 31A in order to lend plausibility to the contention that since Article 31A was also upheld on the ground of stare decisis Article 31 can be upheld on the same ground. We see no merit in this contention. In the first place, as we have indicated above. the five matters which are specified in Article 31A are of such quality, nature, content and character that at least a debate can reasonably arise whether abrogation of fundamental rights in respect of those matters will damage or destroy the basic structure of the Constitution. Article 31C does not deal with specific subjects. The directive principles are couched in broad and general terms for the simple reason that they specify the goals to be achieved. Secondly, the principle of stare decisis cannot be treated as a fruitful source of perpetuating curtailment of human freedoms. No court has upheld the validity of Article 31A on the ground that it does not violate the basic structure of the Constitution.

There is no decision on the validity of Article 31A which can be looked upon as a measuring rod of the extent of the amending power. To hark back to Article 31A every time that a new constitutional amendment is challenged is the surest means of ensuring a drastic erosion of the fundamental rights conferred by Part III. Such a process will insidiously undermine the efficacy of the ratio of the majority judgment in Kesavananda Bharati regarding the inviolability of the basic structure. That ratio requires that the validity of each new constitutional amendment must be judged on its own merits.

Nor indeed are we impressed by a limb of the same argument that when Article 31A was upheld on the ground of stare decisis, what was upheld was a constitutional device by which a class of subject-oriented laws was considered to be valid. The simple ground on which Article 31A was upheld, apart from the ground of contemporaneous practical exposition, was that its validity was accepted and recognised over the years and, therefore, it was not permissible to challenge its constitutionality. The principle of stare decisis does not imply the approval of the device or mechanism which is employed for the purpose of framing a legal or constitutional provision.

It was finally urged by the learned Attorney General that if we uphold the challenge to the validity of Article 31C, the validity or clauses (2) to (6) of Article 19 will be gravely imperilled because those clauses will also then be liable to be struck down as abrogating the rights conferred by Article 19(1) which are an essential feature or the Constitution. We are unable to accept this contention. Under clauses (2) to (6) of Article 19, restrictions can be imposed only if they are reasonable and then again, they can be imposed in the interest of a stated class of subjects only. It is for the courts to decide whether restrictions are reasonable and whether they are in the interest of the particular subject. Apart from other basic dissimilarities, Article 31C takes away the power of judicial review to an extent which destroys even the semblance of a comparison between its provisions and those of clauses (2) to (6) of Article 19. Human ingenuity, limitless though it may be, has yet not devised a system by which the liberty of the people can be protected except through the intervention of courts of law.

Three Articles of our Constitution, and only three, stand between the heaven of freedom into which Tagore wanted his country to awake and the abyss of unrestrained power. They are Articles 14, 19 and 21. Article 31C has removed two sides of that golden triangle which affords to the people of this country an assurance that the promise held forth by the preamble will be performed by ushering an egalitarian era through the discipline of fundamental rights, that is. without emasculation of the rights to liberty and equality which alone can help preserve the dignity of the individual.

These then are our reasons for the order which we passed on May 9, 1980 to the following effect:

> "Section 4 of the Constitution 42nd Amendment Act is beyond the amending power of the Parliament and is void since it damages the basic or essential features of the Constitution and destroys its basic structure by a total exclusion of challenge to any law on the ground that it is inconsistent with, or takes away or abridges any of the rights conferred by Article 14 or Article 19 of the Constitution, if the law is for giving effect to the policy of the State towards securing all or any of the principles laid down in Part IV of the Constitution."
>
> "Section 55 of the Constitution 42nd Amendment Act is beyond the amending power of the Parliament and is void since it removes all limitations on the power of the Parliament to amend the Constitution and confers power upon it to amend the Constitution so as to damage or destroy its basic or essential features or its basic structure."

There will be no order as to costs.

Courts have sometimes exercised restraint when faced with a claim that an amendment is unconstitutional. In these cases, they have chosen not to invalidate constitutional amendments on the basis of unwritten rules. In Belize, for example, the Court of Appeal has rejected claims that the basic structure doctrine applies in the country. (The Court of Appeal is the highest domestic court in the land.)

In 2015, the Court of Appeal overturned a ruling from the lower court, which had applied the basic structure doctrine to invalidate sections 15 and 16 of the Sixth Amendment to the Constitution of Belize. The amendment provided that an appointment of a Justice of Appeal would run for one year, with the office become vacant thereafter, where no period is specified in the instrument of appointment. The lower court invalided sections 15 and 16 of the Sixth Amendment on three grounds: (1) they violate section 102 of the Constitution, guaranteeing security of tenure for Justices of Appeal; (2) they violate section 6(7) of the Constitution which requires that the court shall be independent and impartial; and (3) they violate the rule of law, part of the unwritten basic structure of the Constitution of Belize.

Here is the Court of Appeal's reasoning for overruling the lower court.

Court of Appeal of Belize, The Attorney General of Belize v. The Bar Association of Belize, Civil Appeal No. 19 of 2013 (2015)

The law before and after

The Original section 101 (1) and 102(1) of the Belize Constitution Act, Chapter 4

[13] The original sections state:

"101 (1) The Justices of Appeal shall be appointed by the Governor-General, acting in accordance with the advice of the Prime Minister given after consultation with the Leader of the Opposition, for such period as may be specified in the instrument of appointment.

102 (1) Subject to the following provisions of this section, the office of a Justice of Appeal shall become vacant upon the expiration of the period of his appointment to that office or if he resigns his office."

Sections 15 and 16 of the Belize Constitution (Sixth Amendment) Act 2008

[14] The Sixth Amendment added provisos to sections 101(1) and 102(1). Section 15 addressed section 101(1) and section 16 addressed section 102 (1). The provisos are as follows:

Section 101 (1) proviso

"Provided that where no period is specified in an instrument of appointment, such appointment shall be deemed to subsist until-

(a) In the case of an instrument of appointment existing at the date of commencement of the Belize Constitution (Sixth Amendment) Act, 2008 - one year after such commencement;

(b) In the case of an instrument of appointment issued after the commencement of the Belize Constitution (Sixth Amendment) Act, 2008 - one year after the date of issue of such instrument."

Section 102(1) proviso

"Provided that where no period is specified in an instrument of appointment, the office of a Justice of Appeal shall become vacant upon the expiry of the period specified in the proviso to subsection (1) of section 101."

The grounds upon which the Sixth Amendment was challenged before the trial judge

[15] As shown by the Claim Form, the Sixth Amendment was challenged on ten grounds as follows:

"1. By the Act the Legislature has sought to remove two sitting Justices of the Court of Appeal in a manner contrary to the provisions of the Constitution;

2. By the Act, the Legislature has undermined the security of tenure enjoyed by two sitting Justices of the Court of Appeal, being two out of the four justices of appeal, thereby removing the independence of the Court of Appeal which is an essential prerequisite for the existence of the Rule of Law;

3. The effect of the Act is to remove two sitting justices from the Court of Appeal and to accord to the Executive the power to decide whether the two sitting Justices of Appeal will be re-appointed as judges thereby violating the Doctrine of the Separation of Powers which is the foundation of the Belize Constitution;

4. The effect of the Act is that the Legislature has effectively taken away the right, duty and jurisdiction of the Court of Appeal to hear and determine appeals pursuant to section 100 of the Belize Constitution independently and impartially; and thereby unconstitutionally changes the basic structure of the Belize Constitution;

5. The effect of the Act is that the two Justices of Appeal, for so long as they continue to sit, will be incapable of appearing to be fair and impartial and true to their solemn oath of office;

6. The Act is directed at and applies only to two Justices of the Court of Appeal, it therefore ad hominen and contrary to the Rule of Law and unconstitutional;

7. The result of the Act is to operate in order to abolish the office of two Justices of the Court of Appeal contrary to section 101 of the Belize Constitution;

8. To the extent that the Act is likely to deprive and/or deprives the Applicant and other litigants of the right to independent and impartial hearings before the Court of Appeal it is anti-democratic and therefore contrary to the fundamental principles, beliefs and needs enshrined in the Preamble and section 1 of the Belize Constitution;

9. To the extent that the Act by implication seeks to afford security of tenure to two Justices of the Court of Appeal which said security of tenure is denied to the two other Justices of the Court of Appeal, the Act is discriminatory in itself and/or in its effect;

10. To the extent that the Legislature has arrogated unto itself the power to remove two Justices from the Court of Appeal, the Act violates section 102(7) of the Constitution and thereby violates the Doctrine of the Separation of Powers which is the foundation of the Belize Constitution.

The Order made by Legall J

[16] The applicant succeeded on most of the grounds as shown by the three declarations granted by Legall J. The following order was made:

"1. A declaration is granted that sections 15 and 16 of the Belize Constitution (Sixth Amendment) Act 2008, No. 13 of 2008 are unconstitutional, null and void on the ground that the said sections are contrary to the provisions of section 102 of the Constitution conferring security of tenure on Justices of Appeal.

2. A declaration is granted that sections 15 and 16 of the Belize Constitution (Sixth Amendment) Act 2008, No 13 of 2008 are unconstitutional, null and void on the ground that the said sections 15 and 16 are contrary to section 6(7) of the Constitution which requires that the court shall be independent and impartial.

3. A declaration is granted that sections 15 and 16 are contrary to the Rule of Law, a basic structure of the Constitution of Belize.

4. The parties are to bear their own costs."

…

Ground 4: Whether one year appointment disfigures judicial edifice

…

[101] I do not find it necessary to address the differing degrees of security of tenure enjoyed by Magistrates, Justices of the Supreme Court and the Justices of the Court of Appeal (101 as originally worded) since the Association has no quarrel with the security of tenure that they enjoy. The bone of contention is the Sixth Amendment. As shown above, the Amendment is a rule of interpretation, where Justices of Appeal

are given Instruments of Appointment without a fixed term. It is not a provision for removal of Justices of the Court of Appeal so it is misconceived to say that the Sixth Amendment which fixes a period of appointment denies the constitutional protections against removal guaranteed by section 102(2) – (7) of the Constitution. I am fortified in my view because Justices of the Court of Appeal could be appointed for periods of one year under section 101(1) as originally worded. I therefore, accept the argument by the appellant that one year terms does not and cannot disfigure the judicial edifice.

…

Ground 6: Whether it is mandatory that the period of appointment be stated in the Instrument of Appointment

[102] The appellant under this ground submitted that the learned trial judge erred in law in holding that under section 101(1) of the Constitution, 'it is not mandatory that the period of appointment must be stated in the instrument of appointment but that it is the discretion of the persons mentioned in the section to specify the period in the instrument'.

[103] Legall J under the heading of 'Tenure, Independence and Impartiality', and at paragraph 13 construed the word 'may' used under section 101(1). He said:

> "An examination of section 101(1) of the Constitution, in my view, shows that it is not mandatory that the period of appointment must be stated in the instrument of appointment; but it is in the discretion of the persons mentioned in the section to specify the period in the instrument. The section states that the Justice of Appeal shall be appointed for "such period as may be specified in the Instrument of Appointment." (emphasis mine). It does not say such period as is, or shall be, specified in the instrument of appointment. Section 58 of the Interpretation Act, Chapter 1 states that "may shall be construed as permissive and empowering and "shall" imperative. It seems that the appointment could be made for such period as may be specified in the instrument of appointment or otherwise, such as in legislation. But, in my view, the framers of the Constitution could not have intended that the period of appointment could be specified by legislation, such as the amendments, some four years after the date of the instrument of appointment of Mottley P and Morrison JA. The Constitution must have intended that the appointee must know the period of his appointment either at the date of the appointment or reasonably soon thereafter, and certainly not four years after his appointment.

[104] Legall J cannot be faulted for saying the word 'may' is discretionary. However, he recognised that the appointee must know the period of his appointment and has acknowledged that the period of appointment could be specified in legislation. The use of legislation (Sixth Amendment) serves that purpose. The trial judge also said this should not be done four years after the appointment, as was done in the instant case. It was for this reason that Legall J said in paragraph 14 that:

> "The appointment of Mottley P and Morrison JA were not appointments for life, but were appointments that did not, either in the instrument or by legislation, for about four years, specify a period of the appointment. It is unacceptable to say that the amendments sought to rectify the problem, for the simple reason that it could not be the intention of the framers of section 101(1) of the Constitution that the period of appointment could be specified in legislation four years after the instruments of appointment were made. Their appointments therefore maybe considered not in accordance with the intention of section 101 of the Constitution. The claim form in this matter has not expressly requested a ruling on the validity of the appointments of the Justices of Appeal. I make no such ruling….."

[105] The trial judge as shown above, had recognised that an issue could arise as to the validity of an appointment without a period stated in the instrument of appointment or elsewhere. In my view, the four years lapse is no reason not to correct the defect in the instruments whether by legislation or a new instrument. The period of appointment had to be made known to the appointee one way or another despite four years had elapsed. The evidence in this case shows that the period is normally stated in the instrument itself but since this was not done for the two Justices in question, the appellant cannot be faulted for doing so by legislation. The learned trial judge said that it could not be the intention of the framers of section 101(1) of the Constitution that the period of appointment could be specified in legislation four years after the instruments of appointment were made. Certainly, this could not be the intention as on appointment it would be expected that the appointee would be informed of the duration of his appointment. It is precisely the reason why the omission had to be addressed. Therefore, although the word may was used in section 101(1), it was obligatory and not discretionary that the length of period of appointment be specified in the instrument of appointment.

Grounds 7 and 8: The Basic Structure Point

[106] The appellant contended that the basic structure doctrine is not part of the laws of Belize or if it does the trial judge misapplied it to the claim. Legall J granted a declaration that sections 15 and 16 are contrary to the rule of law, a basic structure of the Constitution. At paragraph 26 of the judgment he said:

> "The rule of law has, over the centuries, acquired several meanings; but at its core it means that governmental power must be exercised according to law. A corollary of this is that disputes as to the legality of acts of government are to be decided by judges who are independent of the executive. The root of the Constitution of Belize – the Preamble – states that "the people of Belize … recognize that men and institutions remain free only when freedom is founded upon … the rule of law." The rule of law is a basic feature of the Belize Constitution. The amendments in effect deem the appointment of Mottley P and Morrison JA to subsist for one year and provide that the appointment becomes vacant upon the expiry of the one year. This is inconsistent with the requirement of the rule of law that legality of acts of government are to be decided by judges who are independent and impartial and have security of tenure. This independence and impartially would be illusory, where judges are appointed for such short periods of time. The independence of judges is a part of the rule of law which forms part of the basic structure of the Constitution of Belize. In Supreme Court claims, namely British Caribbean Bank Limited v. AG No. 597 of 2011; Dean Boyce v. AG No. 646 of 2011, the court considered the basic structure doctrine in some detail. I may however be permitted to mention briefly that the basic structure doctrine holds that the fundamental principles of the Preamble of the Constitution have to be preserved for all times to come and that they cannot be amended out of existence, though a reasonable abridgment of fundamental rights could be effected for the 21 public safety or public order as fundamental rights provisions of the Constitution of Belize recognize. There is though a limitation on the power of amendment by implication by the words of the Preamble and therefore every provision of the Constitution is open to amendment, provided the foundation or basic structure of the Constitution is not removed, damaged or destroyed. The Constitutional requirement of security of tenure, and the independence and impartiality of judges are fundamental structures of the Constitution of Belize; and, in my view, the National Assembly is not possessed of the legal power to remove in relation to judges the availability of those structures. The amendments remove with respect to the two Justices of Appeal, their security of tenure and their right to independence and impartiality contrary to the Constitution."

[107] The appellant submitted that Legall J wrongly assumed that the 'basic structure doctrine' is a part of the laws of Belize and in so holding, he -

> "(a) failed to give full effect to section 69 of the Constitution which prescribes the procedure for amending the Constitution, including the entrenched provisions;
>
> (b) failed to take into account the uncontroverted evidence that section 69 of the Constitution was duly complied with in the course of enactment of the Sixth Amendment Act;

(c) failed to appreciate that the provisions of section 69 of the Constitution are all inclusive and exhaustive and that there is no other limitation, whether substantive or procedural, on the power of the National Assembly to alter the Constitution;"

[108] The appellant further submitted that even if it is assumed that the basic structure doctrine is part of the laws of Belize, Legall J erred in applying the said doctrine to the facts of the case, and in so doing he –

"(a) failed to give effect to his own finding that the appointments of Justices Mottley and Morrison were not appointments for life and that their appointments could have been rectified by issuing new instruments of appointment (paras 14, 16, and 22 of the decision);

(b) failed to hold that the issue of basic structure doctrine did not arise on the facts of this case;

(c) in any event, erroneously held that the Amendments were contrary to the Rule of Law and the so-called basic structure doctrine."

[109] The Association in response submitted that this Court has pronounced against the applicability of the basic structure doctrine to the laws of Belize in The Attorney General of Belize and Another v The British Caribbean Bank Limited and The Attorney General v Dean Boyce, Civil Appeal Nos 18, 19 and 21 of 2012.

[110] The present position is that the basic structure doctrine is not part of the laws of Belize. Legall J therefore erred when he granted a declaration that sections 15 and 16 are contrary to the rule of law, a basic structure of the Constitution.

[111] For the sake of argument, even if the doctrine was part of the laws of Belize, it has been shown under ground 1 that Justices of the Court of Appeal enjoy constitutional guarantees of security of tenure and judicial independence with one year appointments. Legall J therefore, erred in finding that the amendments remove with respect to the two Justices of Appeal, their security of tenure and their right to independence and impartiality contrary to the Constitution.

Like the Belizean Court of Appeal, the French Constitutional Council has exercised restraint, too, though it offered a different justification altogether. When asked to invalidate a constitutional amendment approved in an irregular constitutional referendum, the Constitutional Council held that it does not have jurisdiction to review the decisions made by the French people. The result of the Court's choice not to rule on the matter was to decline to invalidate an amendment.

Conseil constitutionnel de France, décision No. 62-20DC, Nov. 6, 1962, Rec. 27

Le Conseil constitutionnel,

Saisi par le Président du Sénat, sur la base de l'article 61 2e alinéa, de la Constitution, du texte de la loi relative à l'élection du Président de la République au suffrage universel direct et adoptée par le Peuple dans le référendum du 28 octobre 1962, aux fins d'appréciation de la conformité de ce texte à la Constitution ;

Vu la Constitution ;

Vu l'ordonnance du 7 novembre 1958 portant loi organique sur le Conseil constitutionnel ;

1. Considérant que la compétence du Conseil constitutionnel est strictement délimitée par la Constitution ainsi que par les dispositions de la loi organique du 7 novembre 1958 sur le Conseil constitutionnel prise pour l'application du titre VII de celle-ci ; que le Conseil ne saurait donc être appelé à se prononcer sur d'autres cas que ceux qui sont limitativement prévus par ces textes ;

2. Considérant que, si l'article 61 de la Constitution donne au Conseil constitutionnel mission d'apprécier la conformité à la Constitution des lois organiques et des lois ordinaires qui, respectivement, doivent ou peuvent être soumises à son examen, sans préciser si cette compétence s'étend à l'ensemble des textes de caractère législatif, qu'ils aient été adoptés par le peuple à la suite d'un référendum ou qu'ils aient été votés par le Parlement, ou si, au contraire, elle est limitée seulement à cette dernière catégorie, il résulte de l'esprit de la Constitution qui a fait du Conseil constitutionnel un organe régulateur de l'activité des pouvoirs publics que les lois que la Constitution a entendu viser dans son article 61 sont uniquement les lois votées par le Parlement et non point celles qui, adoptées par le Peuple à la suite d'un référendum, constituent l'expression directe de la souveraineté nationale ;

3. Considérant que cette interprétation résulte également des dispositions expresses de la Constitution et notamment de son article 60 qui détermine le rôle du Conseil constitutionnel en matière du référendum et de l'article 11 qui ne prévoit aucune formalité entre l'adoption d'un projet de loi par le peuple et sa promulgation par le Président de la République ;

4. Considérant, enfin, que cette même interprétation est encore expressément confirmée par les dispositions de l'article 17 de la loi organique susmentionnée du 7 novembre 1958 qui ne fait état que des « lois adoptées par le Parlement » ainsi que par celles de l'article 23 de ladite loi qui prévoit que « dans le cas où le Conseil constitutionnel déclare que la loi dont il est saisi contient une disposition contraire à la Constitution sans constater en même temps qu'elle est inséparable de l'ensemble de la loi, le Président de la République peut promulguer la loi à l'exception de cette disposition, soit demander aux Chambres une nouvelle lecture » ;

5. Considérant qu'il résulte de ce qui précède qu'aucune des dispositions de la Constitution ni de la loi organique précitée prise en vue de son application ne donne compétence au Conseil constitutionnel pour se prononcer sur la demande susvisée par laquelle le Président du Sénat lui a déféré aux fins d'appréciation de sa conformité à la Constitution le projet de loi adopté par le Peuple français par voie de référendum le 28 octobre 1962 ;

Décide :

Article premier :

Le Conseil constitutionnel n'a pas compétence pour se prononcer sur la demande susvisée du Président du Sénat.

Article 2 :

La présente décision sera publiée au Journal officiel de la République française.

Journal officiel du 7 novembre 1962, page 10778

Recueil, p. 27

ECLI : FR : CC : 1962 : 62.20.DC

The United States has likewise rejected the possibility that a properly enacted constitutional amendment to the U.S. Constitution can be unconstitutional. When asked to invalidate the Nineteenth Amendment—which protects the right to vote without regard to sex—the Supreme Court held that an amendment to the U.S. Constitution is "conclusive upon the courts."

Supreme Court of the United States, Leser v. Garnett, 258 U.S. 130 (1922)

MR. JUSTICE BRANDEIS delivered the opinion of the Court.

> On October 12, 1920, Cecilia Streett Waters and Mary D. Randolph, citizens of Maryland, applied for and were granted registration as qualified voters in Baltimore City. To have their names stricken from the list, Oscar Leser and others brought this suit in the court of common pleas. The only ground of disqualification alleged was that the applicants for registration were women, whereas the Constitution of Maryland limits the suffrage to men. Ratification of the proposed amendment to the federal
>
> Constitution, now known as the Nineteenth, 41 Stat. 362, had been proclaimed on August 26, 1920, 41 Stat. 1823, pursuant to Revised Statutes, § 205. The Legislature of Maryland had refused to ratify it. The petitioners contended, on several grounds, that the amendment had not become part of the federal Constitution. The trial court overruled the contentions and dismissed the petition. Its judgment was affirmed by the Court of Appeals of the state, 114 A. 840, and the case comes here on writ of error. That writ must be dismissed; but the petition for a writ of certiorari, also duly filed, is granted. The laws of Maryland authorize such a suit by a qualified voter against the board of registry. Whether the Nineteenth Amendment has become part of the federal Constitution is the question presented for decision.
>
> The first contention is that the power of amendment conferred by the federal Constitution and sought to be exercised does not extend to this amendment because of its character. The argument is that so great an addition to the electorate, if made without the state's consent, destroys its autonomy as a political body. This amendment is in character and phraseology precisely similar to the Fifteenth. For each, the same method of adoption was pursued. One cannot be valid and the other invalid. That the Fifteenth is valid, although rejected by six states, including Maryland, has been recognized and acted on for half a century. *See United States v. Reese,* 92 U. S. 214 ; *Neale v. Delaware,* 103 U. S. 370 ; *Guinn v. United States,* 238 U. S. 347 ; *Myers v. Anderson,* 238 U. S. 368 . The suggestion that the Fifteenth was incorporated in the Constitution not in accordance with law, but practically as a war measure which has been validated by acquiescence, cannot be entertained.
>
> The second contention is that, in the constitutions of several of the 36 states named in the proclamation of the Secretary of State, there are provisions which render inoperative the alleged ratifications by their legislatures. The argument is that, by reason of these specific provisions, the legislatures were without power to ratify. But the function of a state legislature in ratifying a proposed amendment to the federal Constitution, like the function of Congress in proposing the amendment, is a federal function derived from the federal Constitution, and it transcends any limitations sought to be imposed by the people of a state. *Hawke v. Smith, No. 1,* 253 U. S. 221 ; *Hawke v. Smith, No. 2,* 253 U. S. 231 ; *National Prohibition Cases,* 253 U. S. 350 , 253 U. S. 386 .
>
> The remaining contention is that the ratifying resolutions of Tennessee and of West Virginia are inoperative because adopted in violation of the rules of legislative procedure prevailing in the respective states. The question raised may have been rendered immaterial by the fact that, since the proclamation, the legislatures of two other states -- Connecticut and Vermont -- have adopted resolutions of ratification. But a broader answer should be given to the contention. The proclamation by the Secretary certified that, from official documents on file in the Department of State, it appeared that the proposed amendment was ratified by the legislatures of 36 states, and that it "has become valid to all intents and purposes as a part of the Constitution of the United States." As the Legislatures of Tennessee and of West Virginia had power to adopt the resolutions of ratification, official notice to the Secretary, duly authenticated, that they had done so, was conclusive upon him, and, being certified to by his proclamation, is conclusive upon the courts. The rule declared in *Field v. Clark,* 143 U. S. 649 , 143 U. S. 669 -673, is applicable here. *See also Harwood v. Wentworth,* 162 U. S. 547 , 162 U. S. 562 .
>
> *Affirmed.*

9.2.3 An unconstitutional constitutional amendment in Canada?

In Canada, codified unamendability is inapplicable. No part of the text of the Constitution of Canada is expressly shielded from constitutional amendment. However, a constitutional amendment may nonetheless be held unconstitutional if political actors use the wrong procedure of constitutional amendment. This is called a subject-rule mismatch.

> **Richard Albert, Constitutional Amendments: Making, Breaking, and Changing Constitutions** (Oxford: Oxford University Press, 2019) at 219
>
> [A]n amendment could be ruled unconstitutional because it was made using the wrong procedure. … [S]ome constitutions—like the Constitutions of Canada and South Africa—codify multiple procedures for amendment, and each procedure is keyed to a specific set of rules, meaning that one procedure cannot be used to amend a rule that is expressly made amendable by another procedure. Courts could invalidate an amendment for having been passed using the wrong procedure. We can identify this first justification as a *subject-rule mismatch*.

As discussed earlier in this Chapter, the Constitution of Canada codifies five procedures of constitutional amendment. Each procedure may be used to amend specific parts or principles of the Constitution.

The possibility that an amendment may be unconstitutional arises when political actors use an amendment procedure incorrectly. For instance, the section 41(a) of the *Constitution Act, 1982* specifies that any reform to Canada's status as a constitutional monarchy is possible "only where authorized by resolutions of the Senate and House of Commons and of the legislative assembly of each province." It would therefore be unconstitutional to transform the system of government in Canada from constitutional monarchy to parliamentary republic using the considerably simpler procedure in section 44 , which provides that "Parliament may exclusively make laws amending the Constitution of Canada in relation to the executive government of Canada or the Senate and House of Commons."

In order to avoid the risk of an unconstitutional amendment, political actors in Canada have on several occasions asked the Supreme Court in the context of a reference to determine which amendment procedure must be used to accomplish certain constitutional reforms.

In an important reference involving reforming the Senate of Canada, the Court was asked which amendment procedure must be to enact a suite of constitutional reforms to the Senate, including how to change the method of selecting Senators. The Court agreed to answer the question, and explained why the Constitution requires any such change to be made using one specific amendment procedure in particular. *See* Reference re Senate Reform , 2014 SCC 32 (CanLII), [2014] 1 SCR 704.

In addition to the possibility that an amendment may give rise to a subject-rule mismatch, an amendment in Canada may also violate unwritten constitutional principles. The Supreme Court has held, similarly in the context of a reference, that an amendment to formalize the secession of a province from Canada must respect these unwritten constitutional principles: the rule of law, democracy, constitutionalism and the rule of law, and minority rights.

The *Secession Reference* has already been discussed earlier in this Chapter. Here, we draw attention only to the Court's recourse to interpretive unamendability to impose restrictions on the power of constitutional amendment, and in turn to give rise to the possibility of an unconstitutional constitutional amendment.

> **Supreme Court of Canada, Reference re Secession of Quebec ,** 1998 CanLII 793 (SCC), **[1998] 2 SCR 217**
>
> [49] [O]ur Constitution is primarily a written one, the product of 131 years of evolution. Behind the written word is an historical lineage stretching back through the ages, which aids in the consideration of the underlying constitutional principles. These principles inform and sustain the constitutional text: they are the vital unstated assumptions upon which the text is based. The following discussion addresses the four

foundational constitutional principles that are most germane for resolution of this Reference: federalism, democracy, constitutionalism and the rule of law, and respect for minority rights. These defining principles function in symbiosis. No single principle can be defined in isolation from the others, nor does any one principle trump or exclude the operation of any other.

[50] Our Constitution has an internal architecture, or what the majority of this Court in *OPSEU v. Ontario (Attorney General)*, 1987 CanLII 71 (SCC), [1987] 2 SCR 2, at p. 57, called a "basic constitutional structure". The individual elements of the Constitution are linked to the others, and must be interpreted by reference to the structure of the Constitution as a whole. As we recently emphasized in the *Provincial Judges Reference*, certain underlying principles infuse our Constitution and breathe life into it. Speaking of the rule of law principle in the *Manitoba Language Rights Reference*, *supra*, at p. 750, we held that "the principle is clearly implicit in the very nature of a Constitution". The same may be said of the other three constitutional principles we underscore today.

[51] Although these underlying principles are not explicitly made part of the Constitution by any written provision, other than in some respects by the oblique reference in the preamble to the *Constitution Act, 1867*, it would be impossible to conceive of our constitutional structure without them. The principles dictate major elements of the architecture of the Constitution itself and are as such its lifeblood.

[52] The principles assist in the interpretation of the text and the delineation of spheres of jurisdiction, the scope of rights and obligations, and the role of our political institutions. Equally important, observance of and respect for these principles is essential to the ongoing process of constitutional development and evolution of our Constitution as a "living tree", to invoke the famous description in *Edwards v. Attorney-General for Canada*, 1929 CanLII 438 (UK JCPC), [1930] A.C. 124 (P.C.), at p. 136. As this Court indicated in *New Brunswick Broadcasting Co. v. Nova Scotia (Speaker of the House of Assembly)*, 1993 CanLII 153 (SCC), [1993] 1 SCR 319, Canadians have long recognized the existence and importance of unwritten constitutional principles in our system of government.

[53] Given the existence of these underlying constitutional principles, what use may the Court make of them? In the *Provincial Judges Reference*, *supra*, at paras. 93 and 104, we cautioned that the recognition of these constitutional principles (the majority opinion referred to them as "organizing principles" and described one of them, judicial independence, as an "unwritten norm") could not be taken as an invitation to dispense with the written text of the Constitution. On the contrary, we confirmed that there are compelling reasons to insist upon the primacy of our written constitution. A written constitution promotes legal certainty and predictability, and it provides a foundation and a touchstone for the exercise of constitutional judicial review. However, we also observed in the *Provincial Judges Reference* that the effect of the preamble to the *Constitution Act, 1867* was to incorporate certain constitutional principles by reference, a point made earlier in *Fraser v. Public Service Staff Relations Board*, 1985 CanLII 14 (SCC), [1985] 2 SCR 455, at pp. 462-63. In the *Provincial Judges Reference*, at para. 104, we determined that the preamble "invites the courts to turn those principles into the premises of a constitutional argument that culminates in the filling of gaps in the express terms of the constitutional text".

[54] Underlying constitutional principles may in certain circumstances give rise to substantive legal obligations (have "full legal force", as we described it in the *Patriation Reference*, *supra*, at p. 845), which constitute substantive limitations upon government action. These principles may give rise to very abstract and general obligations, or they may be more specific and precise in nature. The principles are not merely descriptive, but are also invested with a powerful normative force, and are binding upon both courts and governments. "In other words", as this Court confirmed in the *Manitoba Language Rights Reference*, *supra*, at p. 752, "in the process of Constitutional adjudication, the Court may have regard to unwritten postulates which form the very foundation of the Constitution of Canada".

…

[84] The secession of a province from Canada must be considered, in legal terms, to require an amendment to the Constitution, which perforce requires negotiation. The amendments necessary to achieve a secession could be radical and extensive. Some commentators have suggested that secession could be a change of such a magnitude that it could not be considered to be merely an amendment to the Constitution. We are not persuaded by this contention. It is of course true that the Constitution is silent as to the ability of a province to secede from Confederation but, although the Constitution neither expressly authorizes nor prohibits secession, an act of secession would purport to alter the governance of Canadian territory in a manner which undoubtedly is inconsistent with our current constitutional arrangements. The fact that those changes would be profound, or that they would purport to have a significance with respect to international law, does not negate their nature as amendments to the Constitution of Canada.

[85] The Constitution is the expression of the sovereignty of the people of Canada. It lies within the power of the people of Canada, acting through their various governments duly elected and recognized under the Constitution, to effect whatever constitutional arrangements are desired within Canadian territory, including, should it be so desired, the secession of Quebec from Canada. As this Court held in the *Manitoba Language Rights Reference*, *supra*, at p. 745, "[t]he Constitution of a country is a statement of the will of the people to be governed in accordance with certain principles held as fundamental and certain prescriptions restrictive of the powers of the legislature and government". The manner in which such a political will could be formed and mobilized is a somewhat speculative exercise, though we are asked to assume the existence of such a political will for the purpose of answering the question before us. By the terms of this Reference, we have been asked to consider whether it would be constitutional in such a circumstance for the National Assembly, legislature or government of Quebec to effect the secession of Quebec from Canada unilaterally.

[86] The "unilateral" nature of the act is of cardinal importance and we must be clear as to what is understood by this term. In one sense, any step towards a constitutional amendment initiated by a single actor on the constitutional stage is "unilateral". We do not believe that this is the meaning contemplated by Question 1, nor is this the sense in which the term has been used in argument before us. Rather, what is claimed by a right to secede "unilaterally" is the right to effectuate secession without prior negotiations with the other provinces and the federal government. At issue is not the legality of the first step but the legality of the final act of purported unilateral secession. The supposed juridical basis for such an act is said to be a clear expression of democratic will in a referendum in the province of Quebec. This claim requires us to examine the possible juridical impact, if any, of such a referendum on the functioning of our Constitution, and on the claimed legality of a unilateral act of secession.

[87] Although the Constitution does not itself address the use of a referendum procedure, and the results of a referendum have no direct role or legal effect in our constitutional scheme, a referendum undoubtedly may provide a democratic method of ascertaining the views of the electorate on important political questions on a particular occasion. The democratic principle identified above would demand that considerable weight be given to a clear expression by the people of Quebec of their will to secede from Canada, even though a referendum, in itself and without more, has no direct legal effect, and could not in itself bring about unilateral secession. Our political institutions are premised on the democratic principle, and so an expression of the democratic will of the people of a province carries weight, in that it would confer legitimacy on the efforts of the government of Quebec to initiate the Constitution's amendment process in order to secede by constitutional means. In this context, we refer to a "clear" majority as a qualitative evaluation. The referendum result, if it is to be taken as an expression of the democratic will, must be free of ambiguity both in terms of the question asked and in terms of the support it achieves.

[88] The federalism principle, in conjunction with the democratic principle, dictates that the clear repudiation of the existing constitutional order and the clear expression of the desire to pursue secession by the population of a province would give rise to a reciprocal obligation on all parties to Confederation to negotiate constitutional changes to respond to that desire. The amendment of the Constitution begins with a political

process undertaken pursuant to the Constitution itself. In Canada, the initiative for constitutional amendment is the responsibility of democratically elected representatives of the participants in Confederation. Those representatives may, of course, take their cue from a referendum, but in legal terms, constitution-making in Canada, as in many countries, is undertaken by the democratically elected representatives of the people. The corollary of a legitimate attempt by one participant in Confederation to seek an amendment to the Constitution is an obligation on all parties to come to the negotiating table. The clear repudiation by the people of Quebec of the existing constitutional order would confer legitimacy on demands for secession, and place an obligation on the other provinces and the federal government to acknowledge and respect that expression of democratic will by entering into negotiations and conducting them in accordance with the underlying constitutional principles already discussed.

[89] What is the content of this obligation to negotiate? At this juncture, we confront the difficult inter-relationship between substantive obligations flowing from the Constitution and questions of judicial competence and restraint in supervising or enforcing those obligations. This is mirrored by the distinction between the legality and the legitimacy of actions taken under the Constitution. We propose to focus first on the substantive obligations flowing from this obligation to negotiate; once the nature of those obligations has been described, it is easier to assess the appropriate means of enforcement of those obligations, and to comment on the distinction between legality and legitimacy.

[90] The conduct of the parties in such negotiations would be governed by the same constitutional principles which give rise to the duty to negotiate: federalism, democracy, constitutionalism and the rule of law, and the protection of minorities. Those principles lead us to reject two absolutist propositions. One of those propositions is that there would be a legal obligation on the other provinces and federal government to accede to the secession of a province, subject only to negotiation of the logistical details of secession. This proposition is attributed either to the supposed implications of the democratic principle of the Constitution, or to the international law principle of self-determination of peoples.

…

[95] Refusal of a party to conduct negotiations in a manner consistent with constitutional principles and values would seriously put at risk the legitimacy of that party's assertion of its rights, and perhaps the negotiation process as a whole. Those who quite legitimately insist upon the importance of upholding the rule of law cannot at the same time be oblivious to the need to act in conformity with constitutional principles and values, and so do their part to contribute to the maintenance and promotion of an environment in which the rule of law may flourish.

…

[103] To the extent that a breach of the constitutional duty to negotiate in accordance with the principles described above undermines the legitimacy of a party's actions, it may have important ramifications at the international level. Thus, a failure of the duty to undertake negotiations and pursue them according to constitutional principles may undermine that government's claim to legitimacy which is generally a precondition for recognition by the international community. Conversely, violations of those principles by the federal or other provincial governments responding to the request for secession may undermine their legitimacy. Thus, a Quebec that had negotiated in conformity with constitutional principles and values in the face of unreasonable intransigence on the part of other participants at the federal or provincial level would be more likely to be recognized than a Quebec which did not itself act according to constitutional principles in the negotiation process. Both the legality of the acts of the parties to the negotiation process under Canadian law, and the perceived legitimacy of such action, would be important considerations in the recognition process. In this way, the adherence of the parties to the obligation to negotiate would be evaluated in an indirect manner on the international plane.

9.2.4 Can a constitution be unconstitutional?

We have so far discussed whether a constitutional amendment can be unconstitutional. But what about an entire constitution: is it possible for a court to declare a constitution unconstitutional?

In South Africa's transition from apartheid to democracy, the Constitutional Court was required by law to evaluate the constitutionality of the country's draft constitution. In the end, the Court certified the constitutionality of the draft constitution, but not before first ruling in a separate ruling that an earlier draft of the constitution was unconstitutional.

Here, below, is the first ruling of the Court, which found the draft constitution unconstitutional.

The excerpt includes the Court's explanation of the constitution-making process and the Court's role within it. The excerpt also includes the Court's conclusion. Note that the Court was tasked with evaluating the draft constitution against a set of principles agreed-upon by the Constitutional Assembly.

The Court had two options before it: (1) certify the draft constitution, if the Court concludes that the draft constitution respects the agreed-upon set of principles; or (2) return the draft constitution to the Constitutional Assembly to revise its draft, if the Court concludes that the draft constitution fails to respect the agreed-upon set of principles.

Constitutional Court of South Africa, Certification of the Constitution of the Republic of South Africa, Case CCT 23/96, 6 September 1996 (citations omitted)

THE COURT

CHAPTER I. INTRODUCTION

[1] The formal purpose of this judgment is to pronounce whether or not the Court certifies that all the provisions of South Africa's proposed new constitution comply with certain principles contained in the country's current constitution. But its underlying purpose and scope are much wider. Judicial "certification" of a constitution is unprecedented and the very nature of the undertaking has to be explained. To do that, one must place the undertaking in its proper historical, political and legal context; and, in doing so, the essence of the country's constitutional transition, the respective roles of the political entities involved and the applicable legal principles and terminology must be identified and described. It is also necessary to explain the scope of the Court's certification task and the effect of this judgment, not only the extent and significance of the Court's powers, but also their limitations. Only then can one really come to grips with the certification itself.

[2] That is in itself a complex and wide-ranging exercise, dealing with a large number and variety of issues, some interrelated but many not. Virtually all of those issues were raised in written submissions and oral representations received from political parties, special interest groups and members of the public at large. But, as will be shown shortly, the certification task extends beyond considering complaints specifically drawn to the Court's attention. We certainly derived great benefit from such contributions and wish to express our appreciation to counsel for the Constitutional Assembly and the political parties, to the representatives of other bodies and to the persons who submitted written submissions or oral argument. The thoroughness of their research and the cogency of their arguments greatly eased our task. Ultimately, however, it was our duty to measure each and every provision of the new constitution, viewed both singly and in conjunction with one another, against the stated Constitutional Principles, irrespective of the attitude of any interested party. In what follows we intend not only to record our conclusions regarding that exercise, but to make plain our reasons for each such conclusion.

[3] We may however be called upon in future and in the context of a concrete dispute to deal with constitutional provisions we have had to construe in the abstract for the purposes of the certification process. In order to avoid pre-empting decisions in such cases, we have endeavoured, where possible, to be brief and to provide reasons for our decisions without saying more than is necessary.

…

A. HISTORICAL AND POLITICAL CONTEXT

[5] South Africa's past has been aptly described as that of "a deeply divided society characterised by strife, conflict, untold suffering and injustice" which "generated gross violations of human rights, the transgression of humanitarian principles in violent conflicts and a legacy of hatred, fear, guilt and revenge". From the outset the country maintained a colonial heritage of racial discrimination: in most of the country the franchise was reserved for white males and a rigid system of economic and social segregation was enforced. The administration of African tribal territories through vassal "traditional authorities" passed smoothly from British colonial rule to the new government, which continued its predecessor's policy.

[6] At the same time the Montesquieuan principle of a threefold separation of state power - often but an aspirational ideal - did not flourish in a South Africa which, under the banner of adherence to the Westminster system of government, actively promoted parliamentary supremacy and domination by the executive. Multi-party democracy had always been the preserve of the white minority but even there it had languished since 1948. The rallying call of apartheid proved irresistible for a white electorate embattled by the spectre of decolonisation in Africa to the north.

[7] From time to time various forms of limited participation in government were devised by the minority for the majority, most notably the "homeland policy" which was central to the apartheid system. Fundamental to that system was a denial of socio-political and economic rights to the majority in the bulk of the country, which was identified as "white South Africa", coupled with a Balkanisation of tribal territories in which Africans would theoretically become entitled to enjoy all rights. Race was the basic, all-pervading and inescapable criterion for participation by a person in all aspects of political, economic and social life.

[8] As the apartheid system gathered momentum during the 1950s and came to be enforced with increasing rigour, resistance from the disenfranchised - and increasingly disadvantaged - majority intensified. Many (and eventually most) of them demanded non-discriminatory and wholly representative government in a non-racial unitary state, tenets diametrically opposed to those of apartheid. Although there were reappraisals and adaptations on both sides as time passed, the ideological chasm remained apparently unbridgeable until relatively recently.

[9] The clash of ideologies not only resulted in strife and conflict but, as the confrontation intensified, the South African government of the day - and some of the self-governing and "independent" territories spawned by apartheid - became more and more repressive. More particularly from 1976 onwards increasingly harsh security measures gravely eroded civil liberties. The administration of urban black residential areas and most "homeland" administrations fell into disarray during the following decade. The South African government, backed by a powerful security apparatus operating with sweeping emergency powers, assumed strongly centralised and authoritarian control of the country.

[10] Then, remarkably and in the course of but a few years, the country's political leaders managed to avoid a cataclysm by negotiating a largely peaceful transition from the rigidly controlled minority regime to a wholly democratic constitutional dispensation.

After a long history of "deep conflict between a minority which reserved for itself all control over the political instruments of the state and a majority who sought to resist that domination", the overwhelming majority of South Africans across the political divide realised that the country had to be urgently rescued from imminent disaster by a negotiated commitment to a fundamentally new constitutional order premised upon open and democratic government and the universal enjoyment of fundamental human rights. That commitment is expressed in the preamble to the Interim Constitution by an acknowledgement of the

> "... need to create a new order in which all South Africans will be entitled to a common South African citizenship in a sovereign and democratic constitutional state in which there is equality between men and women and people of all races so that all citizens shall be able to enjoy and exercise their fundamental rights and freedoms".

With this end in view the IC

> "... provides a historic bridge between the past of a deeply divided society characterised by strife, conflict, untold suffering and injustice, and a future founded on the recognition of human rights, democracy and peaceful co-existence and development opportunities for all South Africans, irrespective of colour, race, class, belief or sex."

[11] Following upon exploratory and confidential talks across the divide, the transitional process was formally inaugurated in February 1990, when the then government of the Republic of South Africa announced its willingness to engage in negotiations with the liberation movements. Negotiations duly ensued and persevered, despite many apparent deadlocks. Some of the "independent homeland" governments gave their support to the negotiation process. Others did not but were overtaken by the momentum of the ensuing political developments and became part of the overall transition, unwillingly or by default.

[12] One of the deadlocks, a crucial one on which the negotiations all but foundered, related to the formulation of a new constitution for the country. All were agreed that such an instrument was necessary and would have to contain certain basic provisions. Those who negotiated this commitment were confronted, however, with two problems. The first arose from the fact that they were not elected to their positions in consequence of any free and verifiable elections and that it was therefore necessary to have this commitment articulated in a final constitution adopted by a credible body properly mandated to do so in consequence of free and fair elections based on universal adult suffrage. The second problem was the fear in some quarters that the constitution eventually favoured by such a body of elected representatives might not sufficiently address the anxieties and the insecurities of such constituencies and might therefore subvert the objectives of a negotiated settlement. The government and other minority groups were prepared to relinquish power to the majority but were determined to have a hand in drawing the framework for the future governance of the country. The liberation movements on the opposition side were equally adamant that only democratically elected representatives of the people could legitimately engage in forging a constitution: neither they, and certainly not the government of the day, had any claim to the requisite mandate from the electorate.

[13] The impasse was resolved by a compromise which enabled both sides to attain their basic goals without sacrificing principle. What was no less important in the political climate of the time was that it enabled them to keep faith with their respective constituencies: those who feared engulfment by a black majority and those who were determined to eradicate apartheid once and for all. In essence the settlement was quite simple. Instead of an outright transmission of power from the old order to the new, there would be a programmed two-stage transition. An interim government, established and functioning under an interim constitution agreed to by the negotiating parties, would govern the country on a coalition basis while a final constitution was being drafted. A national legislature, elected (directly and indirectly) by universal adult suffrage, would double as the constitution-making body and would draft the new constitution within a given time. But - and herein lies

the key to the resolution of the deadlock - that text would have to comply with certain guidelines agreed upon in advance by the negotiating parties. What is more, an independent arbiter would have to ascertain and declare whether the new constitution indeed complied with the guidelines before it could come into force.

B. LEGAL CONTEXT AND TERMINOLOGY

[14] The settlement was ultimately concluded by the negotiating parties in November 1993. Shortly thereafter and pursuant thereto the South African Parliament duly adopted the Interim Constitution. Although the formal date of commencement of the IC was 27 April 1994 (a date agreed upon in advance by the negotiating parties), its provisions relating to the election of the transitional national legislature came into operation earlier.

[15] The importance of the deadlock-breaking agreement is highlighted by the preamble to the IC which, in its second paragraph, characterises the Constitutional Principles as "a solemn pact" in the following terms:

> "**AND WHEREAS** in order to secure the achievement of this goal, elected representatives of all the people of South Africa should be mandated to adopt a new Constitution in accordance with a solemn pact recorded as Constitutional Principles".

It is also clear from the language that the Constitutional Principles constitute the formal record of the "solemn pact". They are contained in IC sch 4, which is incorporated by a reference under IC 71(1)(a). Although they are numbered from I to XXXIV and are often referred to as the 34 Constitutional Principles, they list many more requirements than that. Henceforth they will be referred to collectively as the "CPs" and individually as "CP I" and so on. The wording and interpretation of the CPs will be discussed later; what is of importance at this stage is to note that they are acknowledged by the preamble to be foundational to the new constitution. As will be shown shortly, they are also crucial to the certification task with which the Court has been entrusted.

[16] IC ch 5, headed "***The Adoption of the New Constitution***", fixes the basic framework and rules for the drafting exercise. First, in IC 68(1), it provides as follows:

> "The National Assembly and the Senate, sitting jointly for the purposes of this Chapter, shall be the Constitutional Assembly."

The body thus created, the Constitutional Assembly, will hereafter be referred to as the "CA". In terms of IC 68(2), read with IC 68(3) and IC 73(1), the CA had to commence its task within seven days from the first sitting of the Senate and draft and adopt a new constitutional text within two years of the first sitting of the National Assembly (the "NA"). For such adoption IC 73(2) required a majority of at least two-thirds of all the members of the CA. The succeeding subsections of IC 73 make detailed provision for what transpires if the requisite majority is not obtained. In the event, such majority was indeed obtained and no more need be said about the alternative mechanisms. The constitution which the CA adopted is formally titled the "Constitution of the Republic of South Africa, 1996" and will hereafter be referred to as the "New Text" or the "NT". Its individual provisions will be identified by the prefix "NT".

[17] IC ch 5 then addresses the issue of certification. It will be recalled that the "solemn pact" envisaged independent determination of the question whether the new constitutional text complies with the CPs. Accordingly IC 71(2) reads as follows:

> "The new constitutional text passed by the Constitutional Assembly, or any provision thereof, shall not be of any force and effect unless the Constitutional Court has certified that all the provisions of such text comply with the Constitutional Principles referred to in subsection (1)(a)."

It should be emphasised that the subsection requires that "all" the provisions be certified as complying with the CPs. Precisely what that entails will be dealt with later. Suffice it at this stage to make two points. First, that this Court's duty - and hence its power - is confined to such certification. Second, certification means a good deal more than merely checking off each individual provision of the NT against the several CPs.

[18] The provisions of IC 71(3), although not directly prescribed by the "solemn pact", form a logical additional safeguard, and warrant quotation:

> "A decision of the Constitutional Court in terms of subsection (2) certifying that the provisions of the new constitutional text comply with the Constitutional Principles, shall be final and binding, and no court of law shall have jurisdiction to enquire into or pronounce upon the validity of such text or any provision thereof."

Once this Court has certified a text in terms of IC 71(2) that is the end of the matter and compliance or non-compliance thereof with the CPs can never be raised again in any court of law, including this Court. That casts an increased burden on us in deciding on certification. Should we subsequently decide that we erred in certifying we would be powerless to correct the mistake, however manifest.

[19] One then turns to IC ch 7 to complete the survey of the constitutional provisions which give effect to the "solemn pact". That chapter deals with the judicial authority in the Republic. Among other things, it established two new organs of state, namely this Court and the Judicial Service Commission. For present purposes it is sufficient to observe that the appointment and dismissal mechanisms and the composition and powers of those two bodies constitute an attempt to create a sufficient safeguard that the decision regarding compliance of the NT with the CPs would be impartial.

C. ADOPTION OF THE NEW TEXT BY THE CONSTITUTIONAL ASSEMBLY

[20] The CA duly commenced its deliberations and all but one of the political parties represented in Parliament participated throughout. Numerous public and private sessions were held and a wide variety of experts on specific topics were consulted on an ongoing basis. In response to an intensive country-wide information campaign, including public meetings and open invitations to the general public, the CA also received numerous representations, both oral and written. Although the final text concerning some contentious issues was drafted only shortly before adoption of the NT, the CA had throughout its deliberations issued interim reports containing progressive drafts of the text and of alternative proposals on outstanding provisions. In the result political parties and other interested bodies or persons were kept up to date and had ample time to consider possible grounds for objecting to certification.

[21] On 8 May 1996 the CA adopted the NT by a majority of some 86 percent of its members. Two days later the Chairperson of the CA, acting in accordance with rule 15 of the Rules of the Constitutional Court, transmitted the draft to this Court, certifying (i) that it had been adopted by the requisite majority, and (ii) that it complied with the CPs. At the same time he requested the Court to perform its certification functions in terms of IC 71(2).

…

E. THE NATURE OF THE COURT'S CERTIFICATION FUNCTION

[26] Notwithstanding publication of the directions by the President, in which the issues were identified, there remained considerable misunderstanding about the Court's functions and powers in relation to certification of the NT. As a result many objections - and even some of the oral arguments - were misdirected. Apparently, therefore, there is a risk that the tenor and import of this judgment may be misunderstood

by some readers unless the more egregious misapprehensions are resolved.

[27] First and foremost it must be emphasised that the Court has a judicial and not a political mandate. Its function is clearly spelt out in IC 71(2): to certify whether all the provisions of the NT comply with the CPs. That is a judicial function, a legal exercise. Admittedly a constitution, by its very nature, deals with the extent, limitations and exercise of political power as also with the relationship between political entities and with the relationship between the state and persons. But this Court has no power, no mandate and no right to express any view on the political choices made by the CA in drafting the NT, save to the extent that such choices may be relevant either to compliance or non-compliance with the CPs. Subject to that qualification, the wisdom or otherwise of any provision of the NT is not this Court's business.

[28] Nor do we have any power to comment upon the methodology adopted by the CA, unless and to the extent that it may amount to a breach of IC ch 5. No such infringement has been alleged, the objections being confined to complaints that submissions to it were ignored by the CA, that its deliberations at times lacked transparency, and the like. Even if such complaints were to be well-founded, which we are manifestly neither legally empowered nor practically able to determine, they would remain irrelevant to our task.

[29] There was also considerable confusion about the comparison the Court had to conduct in the performance of its duty under IC 71(2). That subsection is in itself quite unequivocal; and read in the context discussed above, there can be no doubt at all that the comparison we have to make is between the NT and the CPs. In general, and subject to an important proviso relating to CP XVIII.2, which is discussed in detail later, differences between the NT and the IC are not germane to the certification exercise the Court has to perform. It may be that reference to the IC is of assistance in trying to ascertain the meaning of a word or phrase in either the NT or the CPs, but it is generally of no consequence that some or other provision in the IC has been omitted from the NT, or has been reproduced in a different form. Provided it remained within the boundaries set by the CPs, the CA was fully entitled to do what it wished with any precedent in the IC. That is not only clear from the provisions of IC ch 5, but is inherent in the "solemn pact". The IC was expressly intended to provide "a historic bridge between the past of a deeply divided society ... and a future founded on the recognition of human rights ..." and to facilitate the "continued governance of South Africa while an elected Constitutional Assembly draws up a final Constitution". Compiled as it was by the un-mandated negotiating parties, it has no claim to lasting legitimacy or exemplary status. The CA, composed of the duly mandated representatives of the electorate, was entrusted with the onerous duty of devising a new constitution for the country, unfettered by the provisions of the IC other than those contained in the CPs.

[30] It should also be emphasised that, provided there is due compliance with the prescripts of the CPs, this Court is not called upon to express an opinion on any gaps in the NT, whether perceived by an objector or real. More specifically, there can be no valid objection if the NT contains a provision which in principle complies with the requirements of the CPs, or a particular CP, but does not spell out the details, leaving them to the legislature to flesh out appropriately later. Provided the criteria demanded by the CPs are expressed in the NT, it is quite in order to adopt such a course. The subsequent legislation will be justiciable and any of its provisions that do not come up to the constitutionally enshrined criteria will be liable to invalidation. Here it is important to note that the CPs are principles, not detailed prescripts.

F. OVERVIEW OF THE CERTIFICATION DECISION

[31] Before becoming involved in the detailed analysis of the objections to the certification of the NT, it is necessary to make a general observation. It is true we ultimately come to the conclusion that the NT cannot be certified as it stands because there are several respects in which there has been non-compliance with the CPs. But one must focus on the wood, not the trees. The NT represents a monumental achievement. Constitution making is a difficult task. Drafting a constitution for South Africa, with its many unique features, is all the more difficult. Having in addition to measure up to a set of predetermined requirements greatly complicates the exercise. Yet, in general and in respect of the overwhelming majority of its provisions, the CA has attained that goal.

CHAPTER II. INTERPRETATION OF THE CONSTITUTIONAL PRINCIPLES A. GENERAL APPROACH

[32] It is necessary to underscore again that the basic certification exercise involves measuring the NT against the CPs. The latter contain the fundamental guidelines, the prescribed boundaries, according to which and within which the CA was obliged to perform its drafting function. Because of that pivotal role of the CPs their interpretation forms the logical starting point for the certification exercise.

[33] In the light of the background described and in the context discussed above, the CPs have to be applied and interpreted along the following lines.

[34] The CPs must be applied purposively and teleologically to give expression to the commitment "to create a new order" based on "a sovereign and democratic constitutional state" in which "all citizens" are "able to enjoy and exercise their fundamental rights and freedoms".

[35] The CPs must therefore be interpreted in a manner which is conducive to that objective. Any interpretation of any CP which might impede the realisation of this objective must be avoided.

[36] The CPs must not be interpreted with technical rigidity. They are broad constitutional strokes on the canvas of constitution making in the future.

[37] All 34 CPs must be read holistically with an integrated approach. No CP must be read in isolation from the other CPs which give it meaning and context.

[38] It accordingly follows that no CP should be interpreted in a manner which involves conflict with another. The lawmaker intended each of the CPs to live together with the others so as to give them life and form and nuance.

[39] There is a distinction to be made between what the NT may contain and what it may not. It may not transgress the fundamental discipline of the CPs; but within the space created by those CPs, interpreted purposively, the issue as to which of several permissible models should be adopted is not an issue for adjudication by this Court. That is a matter for the political judgment of the CA, and therefore properly falling within its discretion. The wisdom or correctness of that judgment is not a matter for decision by the Constitutional Court. The Court is concerned exclusively with whether the choices made by the CA comply with the CPs, and not with the merits of those choices.

[40] What follows logically from this is that it is quite unnecessary for the CA to repeat the same constitutional structures and protections which are contained in the IC. Variations and alternatives, additions and even omissions are legitimate as long as the discipline enjoined by the CPs is respected.

[41] The test to be applied is whether the provisions of the NT comply with the CPs. That means that the provisions of the NT may not be inconsistent with any CP and must give effect to each and all of them.

[42] When testing a particular provision or provisions of the NT against the provisions of the CPs it is necessary to give to the provision or provisions of the NT a meaning. More than one permissible meaning may sometimes reasonably be supported. On one construction the text concerned does not comply with the CPs, but on another it does. In such situations it is proper to adopt the interpretation that gives to the NT a construction that would make it consistent with the CPs.

[43] Such an approach has one important consequence. Certification based on a particular interpretation carries with it the implication that if the alternative construction were correct the certification by the Court in terms of IC 71 might have been withheld. In the result, a future court should approach the meaning of the relevant provision of the NT on the basis that the meaning assigned to it by the Constitutional Court in the certification process is its correct interpretation and should not be departed from save in the most compelling circumstances. If it were otherwise, an anomalous and unintended consequence would follow. A court of competent jurisdiction might in the future give a meaning to the relevant part of the NT which would have made that part of the NT not certifiable in terms of IC 71 at the time of the certification process, but there would have been no further opportunity in the interim to refuse a certification of the NT on that ground. This kind of anomaly must be avoided - and will be - if courts accept the approach which we have suggested in this paragraph.

…

CHAPTER VIII. CONCLUSION AND ORDER

A. CONCLUSION

[44] It is therefore our conclusion that the following provisions of the NT do not comply with the CPs:

NT 23, which fails to comply with the provisions of CP XXVIII in that the right of individual employers to engage in collective bargaining is not recognised and protected.

NT 241(1), which fails to comply with the provisions of CP IV and CP VII in that it impermissibly shields an ordinary statute from constitutional review.

NT sch 6 s 22(1)(b), which fails to comply with the provisions of CP IV and CP VII in that it impermissibly shields an ordinary statute from constitutional review.

NT 74, which fails to comply with -

CP XV in that amendments of the NT do not require "special procedures involving special majorities"; and

CP II in that the fundamental rights, freedoms and civil liberties protected in the NT are not "entrenched".

NT 194, which fails in respect of the Public Protector and the Auditor-General to comply with CP XXIX in that it does not adequately provide for and safeguard the independence and impartiality of these institutions.

NT 196, which fails to comply with -

CP XXIX in that the independence and impartiality of the PSC is not adequately provided for and safeguarded; and

CP XX in that the failure to specify the powers and functions of the Public Service Commission renders it impossible to certify that legitimate provincial autonomy has been recognised and promoted.

NT ch 7, which fails to comply with -

CP XXIV in that it does not provide a "framework for the structures" of local government;

CP XXV in that it does not provide for appropriate fiscal powers and functions for LG;

and CP X in that it does not provide for formal legislative procedures to be adhered to by legislatures at LG level.

NT 229, which fails to comply with CP XXV in that it does not provide for "appropriate fiscal powers and functions for different categories of local government".

To the extent set out in this judgment the provisions relating to the powers and functions of the provinces fail to comply with CP XVIII.2 in that such powers and functions are substantially less than and inferior to the powers and functions of the provinces in the IC.

[45] We wish to conclude this judgment with two observations. The first is to reiterate that the CA has drafted a constitutional text which complies with the overwhelming majority of the requirements of the CPs. The second is that the instances of non-compliance which we have listed in the preceding paragraph, although singly and collectively important, should present no significant obstacle to the formulation of a text which complies fully with those requirements.

B. ORDER

[46] We are unable to and therefore do not certify that all of the provisions of the Constitution of the Republic of South Africa, 1996 comply with the Constitutional Principles contained in schedule 4 to the Constitution of the Republic of South Africa Act 200 of 1993.

Chaskalson P	Langa J
Mahomed DP	Madala J
Didcott J	Mokgoro J
Goldstone J	O'Regan J
Kriegler J	Sachs J

…

CONSTITUTIONAL PRINCIPLES ***ANNEXURE 2***

I

The Constitution of South Africa shall provide for the establishment of one sovereign state, a common South African citizenship and a democratic system of government committed to achieving equality between men and women and people of all races.

II

Everyone shall enjoy all universally accepted fundamental rights, freedoms and civil liberties, which shall be provided for and protected by entrenched and justiciable provisions in the Constitution, which shall be drafted after having given due consideration to *inter alia* the fundamental rights contained in Chapter 3 of this Constitution.

III

The Constitution shall prohibit racial, gender and all other forms of discrimination and shall promote racial and gender equality and national unity.

IV

The Constitution shall be the supreme law of the land. It shall be binding on all organs of state at all levels of government.

V

The legal system shall ensure the equality of all before the law and an equitable legal process. Equality before the law includes laws, programmes or activities that have as their object the amelioration of the conditions of the disadvantaged, including those disadvantaged on the grounds of race, colour or gender.

VI

There shall be a separation of powers between the legislature, executive and judiciary, with appropriate checks and balances to ensure accountability, responsiveness and openness.

VII

The judiciary shall be appropriately qualified, independent and impartial and shall have the power and jurisdiction to safeguard and enforce the Constitution and all fundamental rights.

VIII

There shall be representative government embracing multi-party democracy, regular elections, universal adult suffrage, a common voters' roll, and, in general, proportional representation.

IX

Provision shall be made for freedom of information so that there can be open and accountable administration at all levels of government.

X

Formal legislative procedures shall be adhered to by legislative organs at all levels of government.

XI

The diversity of language and culture shall be acknowledged and protected, and conditions for their promotion shall be encouraged

XII

Collective rights of self-determination in forming, joining and maintaining organs of civil society, including linguistic, cultural and religious associations, shall, on the basis of non-discrimination and free association, be recognised and protected.

XIII

1. The institution, status and role of traditional leadership, according to indigenous law, shall be recognised and protected in the Constitution. Indigenous law, like common law, shall be recognised and applied by the courts, subject to the fundamental rights contained in the Constitution and to legislation dealing specifically therewith.

2. Provisions in a provincial constitution relating to the institution, role, authority and status of a traditional monarch shall be recognised and protected in the Constitution.

XIV

Provision shall be made for participation of minority political parties in the legislative process in a manner consistent with democracy.

XV

Amendments to the Constitution shall require special procedures involving special majorities.

XVI

Government shall be structured at national, provincial and local levels.

XVII

At each level of government there shall be democratic representation. This principle shall not derogate from the provisions of Principle XIII.

XVIII

1. The powers and functions of the national government and provincial governments and the boundaries of the provinces shall be defined in the Constitution.

2. The powers and functions of the provinces defined in the Constitution, including the competence of a provincial legislature to adopt a constitution for its province, shall not be substantially less than or substantially inferior to those provided for in this Constitution.

3. The boundaries of the provinces shall be the same as those established in terms of this Constitution.

4. Amendments to the Constitution which alter the powers, boundaries, functions or institutions of provinces shall in addition to any other procedures specified in the Constitution for constitutional amendments, require the approval of a special majority of the legislatures of the provinces, alternatively, if there is such a chamber, a two-thirds majority of a chamber of Parliament composed of provincial representatives, and if the amendment concerns specific provinces only, the approval of the legislatures of such provinces will also be needed.

5. Provision shall be made for obtaining the views of a provincial legislature concerning all constitutional amendments regarding its powers, boundaries and functions.

XIX

The powers and functions at the national and provincial levels of government shall include exclusive and concurrent powers as well as the power to perform functions for other levels of government on an agency or delegation basis.

XX

Each level of government shall have appropriate and adequate legislative and executive powers and functions that will enable each level to function effectively. The allocation of powers between different levels of government shall be made on a basis which is conducive to financial viability at each level of government and to effective public administration, and which recognises the need for and promotes national unity and legitimate provincial autonomy and acknowledges cultural diversity.

XXI

The following criteria shall be applied in the allocation of powers to the national government and the provincial governments:

1. The level at which decisions can be taken most effectively in respect of the quality and rendering of services, shall be the level responsible and accountable for the quality and the rendering of the services, and such level shall accordingly be empowered by the Constitution to do so.

2. Where it is necessary for the maintenance of essential national standards, for the establishment of minimum standards required for the rendering of services, the maintenance of economic unity, the maintenance of national security or the prevention of unreasonable action taken by one province which is prejudicial to the interests of another province or the country as a whole, the Constitution shall empower the national government to intervene through legislation or such other steps as may be defined in the Constitution.

3. Where there is necessity for South Africa to speak with one voice, or to act as a single entity - in particular in relation to other states - powers should be allocated to the national government.

4. Where uniformity across the nation is required for a particular function, the legislative power over that function should be allocated predominantly, if not wholly, to the national government.

5. The determination of national economic policies, and the power to promote interprovincial commerce and to protect the common market in respect of the mobility of goods, services, capital and labour, should be allocated to the national government.

6. Provincial governments shall have powers, either exclusively or concurrently with the national government, *inter alia* -

(a) for the purposes of provincial planning and development and the rendering of services; and

(b) in respect of aspects of government dealing with specific socio-economic and cultural needs and the general well-being of the inhabitants of the province.

7. Where mutual co-operation is essential or desirable or where it is required to guarantee equality of opportunity or access to a government service, the powers should be allocated concurrently to the national government and the provincial governments.

8. The Constitution shall specify how powers which are not specifically allocated in the Constitution to the national government or to a provincial government, shall be dealt with as necessary ancillary powers pertaining to the powers and functions allocated either to the national government or provincial governments.

XXII

The national government shall not exercise its powers (exclusive or concurrent) so as to encroach upon the geographical, functional or institutional integrity of the provinces.

XXIII

In the event of a dispute concerning the legislative powers allocated by the Constitution concurrently to the national government and provincial governments which cannot be resolved by a court on a construction of the Constitution, precedence shall be given to the legislative powers of the national government.

XXIV

A framework for local government powers, functions and structures shall be set out in the Constitution. The comprehensive powers, functions and other features of local government shall be set out in parliamentary statutes or in provincial legislation or in both.

XXV

The national government and provincial governments shall have fiscal powers and functions which will be defined in the Constitution. The framework for local government referred to in Principle XXIV shall make provision for appropriate fiscal powers and functions for different categories of local government.

XXVI

Each level of government shall have a constitutional right to an equitable share of revenue collected nationally so as to ensure that provinces and local governments are able to provide basic services and execute the functions allocated to them.

XXVII

A Financial and Fiscal Commission, in which each province shall be represented, shall recommend equitable fiscal and financial allocations to the provincial and local governments from revenue collected nationally, after taking into account the national interest, economic disparities between the provinces as well as the population and developmental needs, administrative responsibilities and other legitimate interests of each of the provinces.

XXVIII

Notwithstanding the provisions of Principle XII, the right of employers and employees to join and form employer organisations and trade unions and to engage in collective bargaining shall be recognised and protected. Provision shall be made that every person shall have the right to fair labour practices.

XXIX

The independence and impartiality of a Public Service Commission, a Reserve Bank, an Auditor-General and a Public Protector shall be provided for and safeguarded by the Constitution in the interests of the maintenance of effective public finance and administration and a high standard of professional ethics in the public service.

XXX

1. There shall be an efficient, non-partisan, career-orientated public service broadly representative of the South African community, functioning on a basis of fairness and which shall serve all members of the public in an unbiased and impartial manner, and shall, in the exercise of its powers and in compliance with its duties, loyally execute the lawful policies of the government of the day in the performance of its administrative functions. The structures and functioning of the public service, as well as the terms and conditions of service of its members, shall be regulated by law.

2. Every member of the public service shall be entitled to a fair pension.

XXXI

Every member of the security forces (police, military and intelligence), and the security forces as a whole, shall be required to perform their functions and exercise their powers in the national interest and shall be prohibited from furthering or prejudicing party political interest.

XXXII

The Constitution shall provide that until 30 April 1999 the national executive shall be composed and shall function substantially in the manner provided for in Chapter 6 of this Constitution.

XXXIII

The Constitution shall provide that, unless Parliament is dissolved on account of its passing a vote of no-confidence in the Cabinet, no national election shall be held before 30 April 1999.

XXXIV

1. This Schedule and the recognition therein of the right of the South African people as a whole to self-determination, shall not be construed as precluding, within the framework of the said right, constitutional provision for a notion of the right to self-determination by any community sharing a common cultural and language heritage, whether in a territorial entity within the Republic or in any other recognised way.

2. The Constitution may give expression to any particular form of self-determination provided there is substantial proven support within the community concerned for such a form of self-determination.

3. If a territorial entity referred to in paragraph 1 is established in terms of this Constitution before the new constitutional text is adopted, the new Constitution shall entrench the continuation of such territorial entity, including its structures, powers and functions.

Chapter 5: Early Federalism

By David Schneiderman

1 Introduction

This chapter introduces you to the division of powers between the federal and provincial governments as laid down in Sections 91 and 92 of the Constitution Act, 1867. This was Canada's fifth Constitution, since the conquest of 1759, enacted by the Britain's Imperial Parliament. The cases in this chapter will introduce you to the law of Canadian federalism, to the main legal points of contention between federal and provincial governments and, in addition, to some of the interpretive techniques adopted by the judiciary to help resolve constitutional disputes. The path taken up by the Judicial Committee of the Privy Council (JCPC) – which was to invest provincial jurisdiction with vast authority over matters falling within 'property and civil rights' – continues to shape Canadian federalism today. It has, as a consequence, produced one of the most decentralized federations in the world.

There are a few things to note before beginning. First, the phrase 'property and civil rights' are traceable to the Quebec Act, 1774, an imperial statute which restored local law as governing civil disputes between *les Canadiens*, the empire's French-speaking British subjects. Also, in 1866, under the leadership of George-Étienne Cartier, Attorney General for Canada East, the government enacted a Civil Code for Lower Canada. The Code was meant to govern private law disputes associated with property, contracts and torts (as they are called in common law jurisdictions). The outlines of Canadian Confederation were clearly in view at the final stages of its drafting. As declared in the introduction to the first English-language edition of the Civil Code: 'In view of a union of the British American provinces, the codification of our laws is perhaps better calculated than any other available means to secure to Lower Canada an advantage which the proposed plan of confederation appears to have already contemplated, that of being the standard of assimilation and unity, and of entering into new political relations without undergoing disturbing alterations in her laws or institutions.' See Thomas McCord*, The Civil Code of Lower Canada Together with a Synopsis of the Changes in the Law Effect by the Civil Code of Lower Canada*, 2nd ed. (Montreal: Dawson 1870) at i-ii. This power to regulate private law matters was juxtaposed to claims by the federal government to make laws in regard to trade and commerce, criminal law, and the power to make laws for the peace, order and good government of Canada (POGG). This latter phrase was commonly used in Royal Instructions to Governors in British North America in the eighteenth and nineteenth centuries, granting to the Crown's representatives' plenary power to makes laws governing their territories.

> *Is it proper to liken the POGG power to a plenary authority when the provinces are allocated jurisdiction over most subjects associated with private law subjects? What does this history say about the content of s. 94, which provides for the federal uniformity of laws respecting property and civil rights for those provinces outside of Quebec that grant consent?*

Second, it was thought that the federal government would supervise the exercise of provincial power through use of the federal power of reservation and disallowance (s. 90). The Lieutenant Governor of the Province, as the Crown's representative in the province, was entitled to 'reserve' (withhold) if concerned about the law's impact on a wide range of legal and policy grounds, and 'disallow' (veto) a law, so that it could not go into effect, within one year of its enactment. This power was used aggressively early on and gave rise to some important constitutional disputes. See W.P.M. Kennedy, 'The Disallowance of Provincial Acts in the Dominion of Canada' (1924) *Journal of Comparative Legislation* 3rd series, 6: 80 and Robert C. Vipond, *Liberty and Community: Canadian Federalism and the Failure of the Constitution* (Sate University of New York Press, 1991) c.5. Though we will not examine those cases in this chapter, the important thing to note is that the federal power of disallowance – equivalent to one held by the Imperial cabinet over federal laws (s. 56) – was thought by some to serve functions equivalent to judicial review. For discussion, see Gordon Bale, *Chief Justice William Johnstone Ritchie: Responsible Government and Judicial Review* (Ottawa: Carleton University Press, 1991), c. 10.

> *If the practice of disallowing provincial laws had not been abandoned, would this method of policing jurisdictional lines of authority have been preferred over judicial review? What are the advantages of having the judicial branch review provincial measures for their constitutionality?*

Finally, 'rights talk' was prevalent in this early period – it did not arrive only in 1982 with the advent of the Charter of Rights and Freedoms. In this era, proponents of provincial autonomy, led by Ontario Premier Oliver Mowat, invoked their 'rights' in opposition to the threat of overwhelming federal power, particularly by the executive branch led by Prime Minister John A. Macdonald. Provincial rights advocates spoke in the language of 'political liberty,' which were best safeguarded in local legislatures. Provincial legislatures were the locus for the protection of individual rights to property or the rights of workers or prohibiting liquor consumption. They were better situated to 'determine limits on rights because their members would be closer to people and more sensitive to the rights of individuals than would a "foreign" official.' It followed that 'legislatures, not courts, were the appropriate bodies to the determine the limits on rights, and at the same time to protect individual liberty. They were the bodies through which political liberty was best expressed.' See Richard Risk and Robert C. Vipond, "Rights Talk in Canada and Right Feeling of the People" (1996) 14 *Law and History Review* 1 at 2-3, 19.

2 *Citizens Insurance Company v. Parsons* (1881), 7 AC 96 (PC), aff'g. (1880), 1880 CanLII 6 (SCC), 4 SCR 215

One of the first major rulings of the JCPC, concerned a challenge to provincial regulation by two insurance companies. The Government of Ontario attached mandatory conditions to policies of fire insurance in 1876. These standard conditions were "deemed to be a part of every policy of fire insurance" made in the province and were directed to be "printed on every such policy with the heading 'Statutory Conditions.'" An insurer could deviate from these conditions so long as this was done "in conspicuous type and in ink of a different colour."

Parsons brought action to recover against two different insurers for failure to compensate him for fire damage. The companies refused to pay because of Parsons' failure to disclose material information. Parsons sued to recover funds based on the companies' failure to respect the statutory conditions set out in provincial legislation. Citizens Insurance Company and Queen Insurance Company replied that the statutory conditions were ultra vires of the province.

At trial court and at the Ontario Court of Appeal, Parsons succeeded. The Supreme Court of Canada, by a 4:2 ruling, affirmed the lower court decisions. Chief Justice Ritchie, for the majority, wrote: 'I do not think the local legislatures are to be deprived of all power to deal with property and civil rights, because parliament, in the plenary exercise of its power to regulate trade and commerce, may possibly pass laws inconsistent with the exercise by the local legislatures of their powers—the exercise of the powers of the local legislatures being in such a case subject to such regulations as the Dominion may lawfully prescribe.' He could 'scarcely know how one could better illustrate the exercise of the power of the local legislatures to legislate with reference to property and civil rights, and matters of a merely local and private nature, than by a local Act of incorporation, whereby a right to hold or deal with real or personal property in a province is granted, and whereby the civil right to contract and sue and to be sued as an individual in reference thereto is also granted.' Justice Gwynne, in dissent, feared what the majority ruling forebode for federal power: 'Within this Dominion the right of exercise of National Sovereignty is vested solely in Her Majesty, the Supreme Sovereign Head of the State, and in the Parliament of which Her Majesty is an integral part; these powers are, within this Dominion, the sole administrators and guardians of the Comity of Nations. To prevent all possibility of the local legislatures creating any difficulties embarrassing to the Dominion Government, by presuming to interfere in any matter affecting trade and commerce, and by so doing violating, it might be, the Comity of Nations, all matters coming within those subjects are placed under the exclusive jurisdiction of the Dominion parliament; that the Act in question does usurp the jurisdiction of the Dominion parliament, I must say I entertain no doubt. The logical result of a contrary decision would afford just grounds to despair of the stability of the Dominion. The object of the BNA Act was to lay in the Dominion Constitution the foundations of a nation, and not to give to provinces carved out of, and subordinated to, the Dominion, anything of the nature of a national or quasi national existence.'

The Premier of Ontario, Oliver Mowat, directed the provincial government's argument. He outlined his strategy in a report to the legislature in January 1882: "Some insurance Companies, however, doing business in the Province, were unwilling to be hampered by these conditions, and raised before the Courts the question of the power of a Provincial Legislature to deal with the subject.' Discussing Parsons' case, Mowat continued, 'During the litigation the plaintiff became insolvent, owing, it is said, to the delay and expense to which he had been put by the litigation of the Companies,' and that, due to his impecuniosity, no leading counsel would be employed to argue the case before the Judicial Committee of the Privy Council.' Due to the importance of the appeal, Mowat arranged to retain counsel to argue the case on the Province's behalf. The Premier visited London and had 'repeated interviews' with his solicitors. He also prepared a paper to assist counsel on the 'important constitutional questions involved.' Among the grounds Mowat directed his lawyers to advance was that s. 91 confers power to 'regulate' trade and commerce and that these words 'were evidently intended to indicate a limitation' of federal jurisdiction. Also, the enumerations in ss. 91 & 92 were meant to embrace 'all possible subjects of legislative action in Canada not expressly excluded by the Act. As for POGG, Mowat wrote that: 'Resort therefore should be had to the general words in the 91st section as to possible unassigned matters, in the event only of a case happening to arise which could not by any just construction be brought within any of the enumerated particulars of either section. An unnecessary reference to the general words, in order to give or support a wider interpretation of the enumerated powers of the federal authority than these might otherwise bear, is contrary to the intention and (it is submitted) to the proper construction of the Act.' From Ontario, Sessional Papers (No. 31) (1882).

***Citizens Insurance Company v. Parsons (1881)*, 7 AC 96 (PC), aff'g. (1880),** 1880 CanLII 6 (SCC), **4 SCR 215**

> SIR MONTAGUE SMITH: The scheme of this legislation, as expressed in the first branch of s. 91, is to give to the dominion parliament authority to make laws for the good government of Canada in all matters not coming within the classes of subjects assigned exclusively to the provincial legislature. If s. 91 had stopped here, and if the classes of subjects enumerated in s. 92 had been altogether distinct and different from those in s. 91, no conflict of legislative authority could have arisen. The provincial legislatures would have had exclusive legislative power over the sixteen classes of subjects assigned to them, and the dominion parliament exclusive power over all other matters relating to the good government of Canada. But it must have been foreseen that this sharp and definite distinction had not been and could not be attained, and that some of the classes of subjects assigned to the provincial legislatures unavoidably ran into and were embraced by some of the enumerated classes of subjects in s. 91; hence an endeavour appears to have been made to provide for cases of apparent conflict; and it would seem that with this object it was declared in the second branch of the s. 91, "for greater certainty, but not so as to restrict the generality of the foregoing terms of this section" that (notwithstanding anything in the Act) the exclusive legislative authority of the parliament of Canada should extend to all matters coming within the classes of subjects enumerated in that section. With the same object, apparently, the paragraph at the end of s. 91 was introduced, though it may be observed that this paragraph applies in its grammatical construction only to s. 92(16).
>
> Notwithstanding this endeavour to give pre-eminence to the dominion parliament in cases of a conflict of powers, it is obvious that in some cases where this apparent conflict exists, the legislature could not have intended that the powers exclusively assigned to the provincial legislature should be absorbed in those given to the dominion parliament. Take as one instance the subject "marriage and divorce," contained in the enumeration of subjects in s. 91; it is evident that solemnization of marriage would come within this general description; yet "solemnization of marriage in the province" is enumerated among the classes of subjects in s. 92, and no one can doubt, notwithstanding the general language of s. 91, that this subject is still within the exclusive authority of the legislatures of the provinces. So "the raising of money by any mode or system of taxation" is enumerated among the classes of subjects in s. 91; but, though the description is sufficiently large and general to include "direct taxation within the province, in order to the raising of a revenue for provincial purposes," assigned to the provincial legislatures by s. 92, it obviously could not have been intended that, in this instance also, the general power should override the particular one. With regard to certain classes of subjects, therefore, generally described in s. 91, legislative power may reside as to some matters falling within the general description of these subjects in the legislatures of the provinces. In these cases it is the duty of the Courts, however difficult it may be, to ascertain in what degree, and to what extent, authority to deal with matters falling within these classes of subjects exists in each legislature, and to define in the particular case before them the limits of their respective powers. It could not have been the intention that a conflict should exist; and, in order to prevent such a result, the two sections must be read together, and the language of one interpreted, and, where necessary, modified, by that of the other. In this way it may, in most cases, be found possible to arrive at a reasonable and practical construction of the language of the sections, so as to reconcile the respective powers they contain, and give effect to all of them. In performing this difficult duty, it will be a wise course for those on whom it is thrown, to decide each case which arises as best they can, without entering more largely upon an interpretation of the statute than is necessary for the decision of the particular question in hand.

The first question to be decided is, whether the Act impeached in the present appeal falls within any of the classes of subjects enumerated in s. 92, and assigned exclusively to the legislatures of the provinces; for if it does not, it can be of no validity, and no other question would then arise. It is only when an Act of the provincial legislature prima facie falls within one of these classes of subjects that the further questions arise, viz., whether, notwithstanding this is so, the subject of the Act does not also fall within one of the enumerated classes of subjects in s. 91, and whether the power of the provincial legislature is or is not thereby overborne.

The main contention on the part of the respondent was that the Ontario Act in question had relation to matters coming within the class of subjects described in s. 92(13), viz., "Property and civil rights in the province." The Act deals with policies of insurance entered into or in force in the province of Ontario for insuring property situate therein against fire, and prescribes certain conditions which are to form part of such contracts. These contracts, and the rights arising from them, it was argued, came legitimately within the class of subject, "Property and civil rights." The appellants, on the other hand, contended that civil rights meant only such rights as flowed from the law, and gave as an instance the status of persons. Their Lordships cannot think that the latter construction is the correct one. They find no sufficient reason in the language itself, nor in the other parts of the Act, for giving so narrow an interpretation to the words "civil rights." The words are sufficiently large to embrace, in their fair and ordinary meaning, rights arising from contract, and such rights are not included in express terms in any of the enumerated classes of subjects in s. 91.

It becomes obvious, as soon as an attempt is made to construe the general terms in which the classes of subjects of ss. 91 and 92 are described, that both sections and the other parts of the Act must be looked at to ascertain whether language of a general nature must not by necessary implication or reasonable intendment be modified and limited. In looking at s. 91, it will be found not only that there is no class including, generally, contracts and the rights arising from them, but that one class of contracts is mentioned and enumerated, viz., "18, bills of exchange and promissory notes," which it would have been unnecessary to specify if authority over all contracts and the rights arising from them had belonged to the dominion parliament.

The provision found in s. 94 of the British North America Act, which is one of the sections relating to the distribution of legislative powers, was referred to by the learned counsel on both sides as throwing light upon the sense in which the words "property and civil rights" are used. By that section the parliament of Canada is empowered to make provision for the uniformity of any laws relative to "property and civil rights" in Ontario, Nova Scotia, and New Brunswick, and to the procedure of the Courts in these three provinces, if the provincial legislatures choose to adopt the provision so made. The province of Quebec is omitted from this section for the obvious reason that the law which governs property and civil rights in Quebec is in the main the French law as it existed at the time of the cession of Canada, and not the English law which prevails in the other provinces. The words "property and civil rights" are, obviously, used in the same sense in this section as in s. 92(13), and there seems no reason for presuming that contracts and the rights arising from them were not intended to be included in this provision for uniformity. If, however, the narrow construction of the words "civil rights," contended for by the appellants were to prevail, the dominion parliament could, under its general power, legislate in regard to contracts in all and each of the provinces and as a consequence of this the province of Quebec, though now governed by its own Civil Code, founded on the French law, as regards contracts and their incidents, would be subject to have its law on that subject altered by the dominion legislature, and brought into uniformity with the English law prevailing in the other three provinces, notwithstanding that Quebec has been carefully left out of the uniformity section of the Act.

It is to be observed that the same words, "civil rights," are employed in the Act of 14 Geo. 3, c. 83, [the Quebec Act of 1774] which made provision for the Government of the province of Quebec. Sect. 8 of that Act enacted that His Majesty's Canadian subjects within the province of Quebec should enjoy their property, usages, and other civil rights, as they had before done, and that in all matters of controversy relative to property and civil rights resort should be had to the laws of Canada, and be determined agreeably to the said laws. In this statute the words "property" and "civil rights" are plainly used in their largest sense; and there is no reason for holding that in the statute under discussion they are used in a different and narrower one.

The next question for consideration is whether, assuming the Ontario Act to relate to the subject of property and civil rights, its enactments and provisions come within any of the classes of subjects enumerated in s. 91. The only one which the Appellants suggested as expressly including the subject of the Ontario Act is s. 91(2), "the regulation of trade and commerce."

A question was raised which led to much discussion in the Courts below and this bar, viz., whether the business of insuring buildings against fire was a trade. This business, when carried on for the sake of profit, may, no doubt, in some sense of the word, be called a trade. But contracts of indemnity made by insurers can scarcely be considered trading contracts, nor were insurers who made them held to be "traders" under the English bankruptcy laws; they have been made subject to those laws by special description. Whether the business of fire insurance properly falls within the description of a "trade" must, in their Lordships' view, depend upon the sense in which that word is used in the particular statute to be construed; but in the present case their Lordships do not find it necessary to rest their decision on the narrow ground that the business of insurance is not a trade.

The words "regulation of trade and commerce," in their unlimited sense are sufficiently wide, if uncontrolled by the context and other parts of the Act, to include every regulation of trade ranging from political arrangements in regard to trade with foreign governments, requiring the sanction of parliament, down to minute rules for regulating particular trades. But a consideration of the Act shews that the words were not used in this unlimited sense. In the first place the collocation of s. 91(2) with classes of subjects of national and general concern affords an indication that regulations relating to general trade and commerce were in the mind of the legislature, when conferring this power on the dominion parliament. If the words had been intended to have the full scope of which in their literal meaning they are susceptible, the specific mention of several of the other classes of subjects enumerated in s. 91 would have been unnecessary; as, s. 91(15), banking; s. 91(17), weights and measures; s. 91(18), bills of exchange and promissory notes; s. 91(19), interest; and even s. 91(21), bankruptcy and insolvency.

"Regulation of trade and commerce" may have been used in some such sense as the words "regulations of trade" in the Act of Union between England and Scotland (6 Anne, c. 11), and as these words have been used in Acts of State relating to trade and commerce. Article V of the Act of Union enacted that all the subjects of the United Kingdom should have "full freedom and intercourse of trade and navigation" to and from all places in the United Kingdom and the Colonies; and Article VI enacted that all parts of the United Kingdom from and after the Union should be under the same "prohibitions, restrictions, and regulations of trade." Parliament has at various times since the Union passed laws affecting and regulating specific trades in one part of the United Kingdom only, without its being supposed that it thereby infringed the Articles of Union. Thus the Acts for regulating the sale of intoxicating liquors notoriously vary in the two kingdoms. So with regard to Acts relating to bankruptcy, and various other matters.

Construing therefore the words "regulation of trade and commerce" by the various aids to their interpretation above suggested, they would include political arrangements in regard to trade requiring the sanction of parliament, regulation of trade in matters of inter-provincial concern, and it may be that they would include general regulation of trade affecting the whole dominion. Their Lordships abstain on the present occasion from any attempt to define the limits of the authority of the dominion parliament in this direction. It is enough for the decision of the present case to say that, in their view, its authority to legislate for the regulation of trade and commerce does not comprehend the power to regulate by legislation the contracts of a particular business or trade, such as the business of fire insurance in a single province, and therefore that its legislative authority does not in the present case conflict or compete with the power over property and civil rights assigned to the legislature of Ontario by s. 92(13).

Having taken this view of the present case, it becomes unnecessary to consider the question how far the general power to make regulations of trade and commerce, when competently exercised by the dominion parliament, might legally modify or affect property and civil rights in the provinces, or the legislative power of the provincial legislatures in relation to those subjects; …

On the best consideration they have been able to give to the arguments addressed to them and to the judgments of the learned judges in Canada, their Lordships have come to the conclusion that the Act in question is valid. …

Appeal dismissed

2.1.1 Questions

1. What interpretive techniques were employed by Sir Montague Smith to allocate jurisdiction to regulate fire insurance contracts (text, history, mutual modification)?
2. Outside of international and interprovincial trade, what room did the JCPC leave for the general regulation of trade?

3 The Regulation of Alcohol

"Liquor was a large part of Victorian life; people drank, debated drinking, and regulated drinking. Local governments regulated taverns for decades before Confederation, and had powers to impose temperance measures, such as limitations on the numbers of taverns. Fees for tavern licences and taxes on the import and manufacture of liquor were important sources of government revenue, and the tavern licences were a major source of patronage and political loyalty, especially for the Liberal government of Ontario and its leader, Oliver Mowat. After the 1860s the campaign for temperance became one of the most powerful and divisive social and political movements of the late nineteenth and early twentieth centuries. A wide array of legislation was enacted, which spawned much work for the courts, including constitutional challenges. Some of these challenges - for example, Russell, Hodge, and the Local Prohibition Reference, have been read by students and debated by courts and scholars ever since" from R.C.B. Risk, 'Canadian Courts Under the Influence' (1990) 40 University of Toronto Law Journal 687**.**

3.1 *Russell v. The Queen* (1882), 7 AC 829 (PC)

SIR MONTAGUE SMITH: … The general scheme of the British North America Act with regard to the distribution of legislative powers, and the general scope and effect of ss. 91 and 92, and their relation to each other, were fully considered and commented on by this Board in the case of the Citizens Insurance Company v. Parsons (1881), 7 AC 96 (PC). According to the principle of construction there pointed out, the first question to be determined is, whether the Act now in question falls within any of the classes of subjects enumerated in s. 92, and assigned exclusively to the Legislatures of the Provinces. If it does, then the further question would arise, viz., whether the subject of the Act does not also fall within one of the enumerated classes of subjects in s. 91, and so does not still belong to the Dominion Parliament. But if the Act does not fall within any of the classes of subjects in s. 92, no further question will remain, for it cannot be contended, and indeed was not contended at their Lordships' bar, that, if the Act does not come within one of the classes of subjects assigned to the Provincial Legislatures, the Parliament of Canada had not, by its general power "to make laws for the peace, order, and good government of Canada," full legislative authority to pass it.

Three classes of subjects enumerated in s. 92 were referred to, under each of which, it was contended by the appellant's counsel, the present legislation fell. These were:—

9. Shop, saloon, tavern, auctioneer, and other licenses in order to the raising of a revenue for provincial, local, or municipal purposes.

13. Property and civil rights in the province.

16. Generally all matters of a merely local or private nature in the province.

With regard to the first of these classes, s. 92(9), it is to be observed that the power of granting licenses is not assigned to the Provincial Legislatures for the purpose of regulating trade, but "in order to the raising of a revenue for provincial, local, or municipal purposes."

The Act in question is not a fiscal law; it is not a law for raising revenue; on the contrary, the effect of it may be to destroy or diminish revenue; indeed it was a main objection to the Act that in the city of Fredericton it did in point of fact diminish the sources of municipal revenue. It is evident, therefore, that the matter of the Act is not within the class of subject No. 9, and consequently that it could not have been passed by the Provincial Legislature by virtue of any authority conferred upon it by that sub-section. …

Next, their Lordships cannot think that the Temperance Act in question properly belongs to the class of subjects, "Property and Civil Rights." It has in its legal aspect an obvious and close similarity to laws which place restrictions on the sale or custody of poisonous drugs, or of dangerously explosive substances. These things, as well as intoxicating liquors, can, of course, be held as property, but a law placing restrictions on their sale, custody, or removal, on the ground that the free sale or use of them is dangerous to public safety, and making it a criminal offence punishable by fine or imprisonment to violate these restrictions, cannot properly be deemed a law in relation to property in the sense in which those words are used in s. 92. What Parliament is dealing with in legislation of this kind is not a matter in relation to property and its rights, but one relating to public order and safety. That is the primary matter dealt with, and though incidentally the free use of things in which men may have property is interfered with, that incidental interference does not alter the character of the law. Upon the same considerations, the Act in question cannot be regarded as legislation in relation to civil rights. In however large a sense these words are used, it could not have been intended to prevent the Parliament of Canada from declaring and enacting certain uses of property, and certain acts in relation to property, to be criminal and wrongful. Laws which make it a criminal offence for a man wilfully to set fire to his own house on the ground that such an act endangers the public safety, or to overwork his horse on the ground of cruelty to the animal, though affecting in some sense property and the right of a man to do as he pleases with his own, cannot properly be regarded as legislation in relation to property or to civil rights. Nor could a law which prohibited or restricted the sale or exposure of cattle having a contagious disease be so regarded. Laws of this nature designed for the promotion of public order, safety, or morals, and which subject those who contravene them to criminal procedure and punishment, belong to the subject of public wrongs rather than to that of civil rights. They are of a nature which fall within the general authority of Parliament to make laws for the order and good government of Canada, and have direct relation to criminal law, which is one of the enumerated classes of subjects assigned exclusively to the Parliament of Canada. It was said in the course of the judgment of this Board in the case of the Citizens Insurance Company of Canada v. Parsons, that the two sections (91 and 92) must be read together, and the language of one interpreted, and, where necessary, modified by that of the other. Few, if any, laws could be made by Parliament for the peace, order, and good government of Canada which did not in some incidental way affect property and civil rights; and it could not have been intended, when assuring to the provinces exclusive legislative authority on the subjects of property and civil rights, to exclude the Parliament from the exercise of this general power whenever any such incidental interference would result from it. The true nature and character of the legislation in the particular instance under discussion must always be determined, in order to ascertain the class of subject to which it really belongs. In the present case it appears to their Lordships, for the reasons already given, that the matter of the Act in question does not properly belong to the class of subjects "Property and Civil Rights" within the meaning of ss. 92(13). …

It was lastly contended that this Act fell within s. 92(16)—"Generally all matters of a merely local or personal nature in the province."

It was not, of course, contended for the appellant that the Legislature of New Brunswick could have passed the Act in question, which embraces in its enactments all the provinces; nor was it denied, with respect to this last contention, that the Parliament of Canada might have passed an Act of the nature of that under discussion to take effect at the same time throughout the whole Dominion. Their Lordships understand the contention to be that, at least in the absence of a general law of the Parliament of Canada, the provinces might have passed a local law of a like kind, each for its own province, and that, as the prohibitory and penal parts of the Act in question were to come into force in those counties and cities only in which it was adopted in the manner prescribed, or, as it was said, "by local option," the legislation was in effect, and on its face, upon a matter of a merely local nature. …

Their Lordships cannot concur in this view. The declared object of Parliament in passing the Act is that there should be uniform legislation in all the provinces respecting the traffic in intoxicating liquors, with a view to promote temperance in the Dominion. Parliament does not treat the promotion of temperance as desirable in one province more than in another, but as desirable everywhere throughout the Dominion. The Act as soon as it was passed became a law for the whole Dominion, and the enactments of the first part, relating to the machinery for bringing the second part into force, took effect and might be put in motion at once and everywhere within it. It is true that the prohibitory and penal parts of the Act are only to come into force in any county or city upon the adoption of a petition to that effect by a majority of electors, but this conditional application of these parts of the Act does not convert the Act itself into legislation in relation to a merely local matter. The objects and scope of the legislation are still general, viz., to promote temperance by means of a uniform law throughout the Dominion.

The manner of bringing the prohibitions and penalties of the Act into force, which Parliament has thought fit to adopt, does not alter its general and uniform character. Parliament deals with the subject as one of general concern to the Dominion, upon which uniformity of legislation is desirable, and the Parliament alone can so deal with it. There is no ground or pretence for saying that the evil or vice struck at by the Act in question is local or exists only in one province, and that Parliament, under colour of general legislation, is dealing with a provincial matter only. It is therefore unnecessary to discuss the considerations which a state of circumstances of this kind might present. The present legislation is clearly meant to apply a remedy to an evil which is assumed to exist throughout the Dominion, and the local option, as it is called, no more localises the subject and scope of the Act than a provision in an Act for the prevention of contagious diseases in cattle that a public officer should proclaim in what districts it should come in effect, would make the statute itself a mere local law for each of these districts. In statutes of this kind the legislation is general, and the provision for the special application of it to particular places does not alter its character.

Their Lordships having come to the conclusion that the Act in question does not fall within any of the classes of subjects assigned exclusively to the Provincial Legislatures, it becomes unnecessary to discuss the further question whether its provisions also fall within any of the classes of subjects enumerated in s. 91. In abstaining from this discussion, they must not be understood as intimating any dissent from the opinion of the Chief Justice of the Supreme Court of Canada and the other Judges, who held that the Act, as a general regulation of the traffic in intoxicating liquors throughout the Dominion, fell within the class of subject, "the regulation of trade and commerce," enumerated in that section, and was, on that ground, a valid exercise of the legislative power of the Parliament of Canada.

In the result, their Lordships will humbly recommend Her Majesty to affirm the judgment of the Supreme Court of Canada, and with costs.

Appeal dismissed with costs.

3.1.1 Questions

1. Why wasn't the JCPC more specific about the federal authority to enact the Canada Temperance Act or was reliance on POGG sufficient to dispose of this constitutional question?
2. There was no provincial representation at the hearings in the Russell case. Do you think the outcome would have been different if the provinces had appeared to make argument?

3.2 *Hodge v. The Queen*, (1883) 9 AC 117

3.2.1 R.C.B. Risk, 'Canadian Courts Under the Influence' (1990) 40 University of Toronto Law Journal 687 at 709-10

"The next major case was *Hodge*, which was decided by the Privy Council in late 1883, about a year and a half after *Russell*. It was a challenge to Ontario's Crooks Act, named after the Ontario Provincial Treasurer who steered the act through the legislature to its final passage in 1876. It transferred the powers over liquor licensing from the municipalities to newly created Boards of Licence Commissioners, appointed and controlled by the provincial government, and added powers to enable the boards to the numbers of licences issued. The control over the boards greatly increased the government's patronage powers, which Mowat used openly and shrewdly to encourage loyalty to the provincial Liberal party. Hodge, proprietor of a tavern the St. James Hotel in Toronto, was convicted for violating his liquor licence by permitting billiards to be played after 7:00 p.m. on a Saturday night, after which hour the tavern should have been shut. Hodge advanced three grounds to challenge his conviction: (1) the act conflicted with the federal power over trade and commerce; (2) the provincial legislature could not delegate law-making powers to the Boards of Commissioners; and (3) the province could not impose imprisonment with hard labour as a punishment, because section 92(15) of the BNA Act spoke only of imprisonment. The trial judge was persuaded by the argument about delegation, but the Court of Appeal and the Privy Council dismissed all three contentions. None had much chance of succeeding, and it was the reasoning that was crucial, not the results. … The argument about delegation was based on the fact that the Canadian legislatures were created by the British Parliament: they were therefore delegates and not sovereign legislatures, and they were limited by the maxim delegatus non potest delegare."

The third argument about punishment was prompted by the sentence imposed on another the tavern keeper, Frawley, who was charged with operating his tavern entirely without a licence. Because this was his second offence, he was sentenced to imprisonment with hard labour. Frawley challenged this sentence which raised the third ground of appeal: that the province could not impose imprisonment with hard labour as a punishment due to s. 92(15) which spoke only of 'the imposition of punishment by fine, penalty or imprisonment for enforcing any law of the Province.'

*****Hodge v. The Queen**, (1883) 9 AC 117**

LORD FITZGERALD: … The appellants contended that the legislature of Ontario had no power to pass any Act to regulate the liquor traffic; that the whole power to pass such an Act was conferred on the Dominion Parliament, and consequently taken from the provincial legislature, by s. 91 of the British North America Act, 1867; and that it did not come within any of the classes of subjects assigned exclusively to the provincial legislatures by s. 92. The class in s. 91 which the Liquor License Act, 1877, was said to infringe was s. 91(2), "The Regulation of Trade and Commerce," and it was urged that the decision of this Board in Russell v. The Queen (1882), 7 AC 829 (PC) was conclusive that the whole subject of the liquor traffic was given to the Dominion Parliament, and consequently taken away from the provincial legislature. It appears to their Lordships, however, that the decision of this tribunal in that case has not the effect supposed, and that, when properly considered, it should be taken rather as an authority in support of the judgment of the Court of Appeal.

The sole question there was, whether it was competent to the Dominion Parliament, under its general powers to make laws for the peace, order, and good government of the Dominion, to pass the Canada Temperance Act, 1878, which was intended to be applicable to the several Provinces of the Dominion, or to such parts of the Provinces as should locally adopt it. It was not doubted that the Dominion Parliament had such

> authority, under s. 91 unless the subject fell within some one or more of the classes of subjects, which by s. 92 were assigned exclusively to the legislatures of the Provinces. …
>
> It appears to their Lordships that Russell v. The Queen, when properly understood, is not an authority in support of the appellant's contention, and their Lordships do not intend to vary or depart from the reasons expressed for their judgment in that case. The principle which that case and the case of the Citizens Insurance Company illustrate is, that subjects which in one aspect and for one purpose fall within s. 92, may in another aspect and for another purpose fall within s. 91.
>
> Their Lordships proceed now to consider the subject matter and legislative character of ss. 4 and 5 of the Liquor License Act of 1877. That Act is so far confined in its operation to municipalities in the province of Ontario, and is entirely local in its character and operation. It authorizes the appointment of License Commissioners to act in each municipality, and empowers them to pass, under the name of resolutions, what we know as by-laws, or rules to define the conditions and qualifications requisite for obtaining tavern or shop licenses for sale by retail of spirituous liquors within the municipality; for limiting the number of licenses; for declaring that a limited number of persons qualified to have tavern licenses may be exempted from having all the tavern accommodation required by law, and for regulating licensed taverns and shops, for defining the duties and powers of license inspectors, and to impose penalties for infraction of their resolutions. These seem to be all matters of a merely local nature in the Province, and to be similar to, though not identical in all respects with, the powers then belonging to municipal institutions under the previously existing laws passed by the local parliaments.
>
> Their Lordships consider that the powers intended to be conferred by the Act in question, when properly understood, are to make regulations in the nature of police or municipal regulations of a merely local character for the good government of taverns, & c., licensed for the sale of liquors by retail, and such as are calculated to preserve, in the municipality, peace and public decency, and repress drunkenness and disorderly and riotous conduct. As such they cannot be said to interfere with the general regulation of trade and commerce which belongs to the Dominion Parliament, and do not conflict with the provisions of the Canada Temperance Act, which does not appear to have as yet been locally adopted. …
>
> Their Lordships are, therefore, of opinion that, in relation to ss. 4 and 5 of the Act in question, the legislature of Ontario acted within [ss. 92(8), (15) and (16) of] the Imperial Act of 1867, and that in this respect there is no conflict with the powers of the Dominion Parliament.
>
> Assuming that the local legislature had power to legislate to the full extent of the resolutions passed by the License Commissioners, and to have enforced the observance of their enactments by penalties and imprisonment with or without hard labour, it was further contended that the Imperial Parliament had conferred no authority on the local legislature to delegate those powers to the License Commissioners, or any other persons. In other words, that the power conferred by the Imperial Parliament on the local legislature should be exercised in full by that body, and by that body alone. The maxim delegatus non potest delegare was relied on.
>
> It appears to their Lordships, however, that the objection thus raised by the appellants is founded on an entire misconception of the true character and position of the provincial legislatures. They are in no sense delegates of or acting under any mandate from the Imperial Parliament. When the British North America Act enacted that there should be a legislature for Ontario, and that its legislative assembly should have exclusive authority to make laws for the Province and for provincial purposes in relation to the matters enumerated in s. 92, it conferred powers not in any sense to be exercised by delegation from or as agents of the Imperial Parliament, but authority as plenary and as ample within the limits prescribed by s. 92 as the Imperial Parliament in the plenitude of its power possessed and could bestow. Within these limits of subjects and area the local legislature is supreme, and has the same authority as the Imperial Parliament, or the Parliament of the Dominion, would have had under like circumstances to confide to a municipal institution or body of its own creation authority to make by-laws or resolutions as to subjects specified in the enactment, and with the object of carrying the enactment into operation and effect. …
>
> If, as their Lordships have decided, the subjects of legislation come within the powers of the provincial legislature, then s. 92(15) of the British North America Act, which provides for "the imposition of punishment by fine, penalty, or imprisonment, for enforcing any law of the Province made in relation to any matter coming within any of the classes of subjects enumerated in this section," is applicable to the case before us, and is not in conflict with s. 91(27); under these very general terms, "the imposition of punishment by imprisonment for enforcing any law," it seems to their Lordships that there is imported an authority to add to the confinement or restraint in prison that which is generally incident to it —"hard labour"; in other words, that "imprisonment" there means restraint by confinement in a prison, with or without its usual accompaniment, "hard labour." …
>
> Their Lordships do not think it necessary or useful to advert to some minor points of discussion, and are, on the whole, of opinion that the decision of the Court of Appeal of Ontario should be affirmed, and this appeal dismissed, with costs, and will so humbly advise Her Majesty.
>
> Appeal dismissed

3.2.2 Questions

1. Lord Fitzgerald introduced the 'double aspect' doctrine in Hodge. Does this grant license to governments to duplicate laws at both levels? Does this make it more difficult for citizens to know which level of government is responsible for what?
2. Note that the JCPC uses the language of 'supremacy,' and not of 'sovereignty,' to describe federal and provincial authority. Why is the term sovereignty avoided?

3.3 Note: *The McCarthy Act Reference*

Emboldened by the ruling in *Russell*, Prime Minister Macdonald concluded that it gave the federal government exclusive power over liquor licensing. In the Speech from the Throne at the opening of Parliament in February 1883, Macdonald promised legislation that would 'prevent the unrestrained sale of intoxicating liquors, and to regulate the granting of shop, saloon and tavern licenses." When pressed by Edward Blake, leader of the opposition and a champion of provincial rights, Macdonald declared that Russell made it 'quite clear to every lawyer, and any man who is not a lawyer, who reads that judgment, that the very reasons on which the Privy Council decided … are the reasons showing that the Provincial legislature had not a right to deal with that subject under the Crooks Act [upheld in Hodge], except as a matter of revenue.' During the prior election campaign, Macdonald promised, 'if he carried the country, as he would do (cheers), he would tell Mr. Mowat – that little tyrant, who had attempted control public opinion by taking hold of every little office, from that of a Division Court bailiff to a tavern-keeper – that he would get a Bill passed at Ottawa returning to the municipalities the power taken away from them by the Licence Act (cheers).' See Canada, House of Commons, Debates, 1st sess., 5th Parl. (1883) p. 237, 239.

In the following May, Parliament enacted the *McCarthy Act*. The Act established licensing requirements for hotel, saloon, shop, vessel, and wholesale sales to be administered by the Dominion and the Conservative party. It was quickly referred to the Supreme Court, which decided in early 1885 that it was ultra vires, except for wholesale sales and sales on vessels. On appeal, the Privy Council held that it was *ultra vires* entirely. Like the result in *Hodge*, the result was hardly startling. Unfortunately, however, in accordance with the prevailing practice about references, no written reasons were given. We do have some indication of what may have swayed the members of the JCPC due to the transcript of oral argument. Sir Farrer Herschell for the Dominion argued that there was 'no distinction in principle between *Russell v. The Queen* and this case. Both deal with intemperance as being an evil affecting the whole Dominion.' This distinguishing feature was the

'machinery of the legislation' and not the 'purpose and object of the legislation.' Sir Montague Smith expressed doubt: "*Russell v. The Queen* was a prohibitive Act applying to the whole Dominion regardless of what had been done, and prohibiting the liquor traffic; the question is, whether this is not regulating in each province the local traffic. This Act is not really to prohibit, but to limit, not to prevent the liquor traffic, but to regulate it." Lord Watson also was suspect, when posing a question form the bench: "Do you maintain that the terms of sec. 91(2), give to the Dominion legislative power to prohibit or abolish a particular trade? … If it had been 'Trade and Commerce those words might imply abolition as well as regulation, but where the power given is expressly confined to 'regulation' of the liquor trade, could they abolish it?"

During the course of argument, Lord Watson later raised this point: 'In one province there may exist an evil peculiar to that province, wholly local, and apparently sec. 92 gives the local legislature the right to deal with it; then it may attain such dimensions as to threaten danger to the whole Dominion, and in that case I should be sorry to doubt that there is power given to the Dominion Parliament to intervene."

Edward Blake, appearing for the Brewers and Distillers Association. Complained that there should be no distinction between regulation and prohibition. Section 91(2) is among the numerous powers available to the federal government to enact laws for "social and moral" purposes or on "grounds of safety order and peace." The power of taxation, for instance, is available so that "some imports are pretty well taxed to death. … Therefore regulation of trade and commerce does and must include prohibition: and that there is no inference against the prohibition of a particular trade to be drawn from the use of the word regulation." See Canada, Sessional Papers, no. 85 (1885).

The distinction between prohibition and regulation, though not widely understood and accepted in earlier cases, emerges as an important categorical mode of argumentation. The question then arose: did the provinces have power to prohibit or was the power given by Russell exclusive?

Mowat decided to force the question in 1890 by enacting a statute (SC 1890, c. 56) that, by s. 18, gave municipalities power to impose prohibition in the same terms that had existed at Confederation—which was a power to prohibit only retail sales. By agreement with the Dominion government, seven questions were referred to the Supreme Court; the first six were abstract questions about the powers to prohibit sales, manufacturing, and import, and the seventh asked whether the 1890 Act was valid.

The Supreme Court 3:2 held, relying upon s. 91(2), that the provinces had no power to impose prohibition. This was a major victory for those Justices, like Gwynne J. who liked to channel the political preferences of Prime Minister John A. Macdonald. Relying on s. 91(2), the majority offered a vision of a powerful Dominion that was threatened by provincial authority. Justice Gwynne, writing for the majority, declared that: "we must keep ever present to our minds the fact that the main object of these provincial statesmen, who were the authors and founders of our new constitution, in framing their project of confederation, was to devise a scheme by which the best features of the constitution of the United States of America, rejecting the bad should be grafted upon the British constitution; and to vest in the provincial legislatures exclusive jurisdiction over all matters of a purely provincial, local, municipal and domestic character, and in the general or central legislature exclusive jurisdiction over all matters in which, as being of a general, quasi-national and sovereign character, the inhabitants of the several provinces might be said to have a common interest distinct from the particular interest they would have in matters affecting the local, municipal and domestic affairs of the particular province in which each should reside.

That this was the main design of the scheme of confederation proposed by the framers of our constitution, and as intended by the resolutions adopted by them, is abundantly apparent from the speeches accompanying the submission of the resolutions to the legislatures of the provinces for their adoption. The late Sir John A. Macdonald …" in 1895 CanLII 95 (SCC) at 205.

An appeal was taken to the Privy Council.

3.4 *AG Ontario v. AG Canada (The Local Prohibition Reference)*, [1896] AC 348 (PC)

LORD WATSON: … The seventh question raises the issue, whether, in the circumstances which have just been detailed, the provincial legislature had authority to enact s. 18. In order to determine that issue, it becomes necessary to consider, in the first place, whether the Parliament of Canada had jurisdiction to enact the Canada Temperance Act; and, if so, to consider in the second place, whether, after that Act became the law of each province of the Dominion, there yet remained power with the Legislature of Ontario to enact the provisions of s. 18.

The authority of the Dominion Parliament to make laws for the suppression of liquor traffic in the provinces is maintained, in the first place, upon the ground that such legislation deals with matters affecting "the peace, order, and good government of Canada," within the meaning of the introductory and general enactments of s. 91 of the British North America Act; and, in the second place, upon the ground that it concerns "the regulation of trade and commerce," being No. 2 of the enumerated classes of subjects which are placed under the exclusive jurisdiction of the Federal Parliament by that section. These sources of jurisdictions are in themselves distinct, and are to be found in different enactments.

It was apparently contemplated by the framers of the Imperial Act of 1867 that the due exercise of the enumerated powers conferred upon the Parliament of Canada by s. 91 might, occasionally and incidentally, involve legislation upon matters which are prima facie committed exclusively to the provincial legislatures by s. 92. In order to provide against that contingency, the concluding part of s. 91 enacts that "any matter coming within any of the classes of subjects enumerated in this section shall not be deemed to come within the class of matters of a local or private nature comprised in the enumeration of the classes of subjects by this Act assigned exclusively to the legislatures of the provinces." It was observed by this Board in Citizens' Insurance Co. of Canada v. Parsons (1881), 7 AC 96 at 108 (PC) that the paragraph just quoted "applies in its grammatical construction only to s. 92(16)." The observation was not material to the question arising in that case, and it does not appear to their Lordships to be strictly accurate. It appears to them that the language of the exception in s. 91 was meant to include and correctly describes all the matters enumerated in the sixteen heads of s. 92, as being, from a provincial point of view, of a local or private nature. It also appears to their Lordships that the exception was not meant to derogate from the legislative authority given to provincial legislatures by these sixteen sub-sections, save to the extent of enabling the Parliament of Canada to deal with matters local or private in those cases where such legislation is necessarily incidental to the exercise of the powers conferred upon it by the enumerative heads of clause 91. That view was stated and illustrated by Sir Montague Smith in Citizens' Insurance v. Parsons and [several other cases].

The general authority given to the Canadian Parliament by the introductory enactments of s. 91 is "to make laws for the peace, order, and good government of Canada, in relation to all matters not coming within the classes of subjects by this Act assigned exclusively to the legislatures of the provinces"; and it is declared, but not so as to restrict the generality of these words, that the exclusive authority of the Canadian Parliament extends to all matters coming within the classes of subjects which are enumerated in the clause. There may, therefore, be matters not included in the enumeration, upon which the Parliament of Canada has power to legislate, because they concern the peace, order, and good government of the Dominion. But to those matters which are not specified among the enumerated subjects of legislation, the exception from s. 92, which is enacted by the concluding words of s. 91, has no application: and, in legislating with regard to such matters, the Dominion Parliament has no authority to encroach upon any class of subjects which is exclusively assigned to provincial legislatures by s. 92. These enactments appear to their Lordships to indicate that the exercise of legislative power by the Parliament of Canada, in regard to all matters not enumerated in s. 91, ought to be strictly confined to such matters as are unquestionably of Canadian interest and importance, and ought not to trench upon provincial legislation with respect to any of the classes of subjects enumerated in s. 92. To attach any other construction to the general power which, in supplement of its enumerated powers, is conferred upon the Parliament of Canada by s. 91, would, in their Lordships' opinion, not only be

contrary to the intendment of the Act, but would practically destroy the autonomy of the provinces. If it were once conceded that the Parliament of Canada has authority to make laws applicable to the whole Dominion, in relation to matters which in each province are substantially of local or private interest, upon the assumption that these matters also concern the peace, order, and good government of the Dominion, there is hardly a subject enumerated in s. 92 upon which it might not legislate, to the exclusion of the provincial legislatures.

In construing the introductory enactments of s. 91, with respect to matters other than those enumerated, which concern the peace, order, and good government of Canada, it must be kept in view that s. 94, which empowers the Parliament of Canada to make provision for the uniformity of the laws relative to property and civil rights in Ontario, Nova Scotia, and New Brunswick does not extend to the province of Quebec; and also that the Dominion legislation thereby authorized is expressly declared to be of no effect unless and until it has been adopted and enacted by the provincial legislature. These enactments would be idle and abortive, if it were held that the Parliament of Canada derives jurisdiction from the introductory provisions of s. 91, to deal with any matter which is in substance local or provincial, and does not truly affect the interest of the Dominion as a whole. Their Lordships do not doubt that some matters, in their origin local and provincial, might attain such dimensions as to affect the body politic of the Dominion, and to justify the Canadian Parliament in passing laws for their regulation or abolition in the interest of the Dominion. But great caution must be observed in distinguishing between that which is local and provincial, and therefore within the jurisdiction of the provincial legislatures, and that which has ceased to be merely local or provincial, and has become matter of national concern, in such sense as to bring it within the jurisdiction of the Parliament of Canada. An Act restricting the right to carry weapons of offence, or their sale to young persons, within the province would be within the authority of the provincial legislature. But traffic in arms, or the possession of them under such circumstances as to raise a suspicion that they were to be used for seditious purposes, or against a foreign State, are matters which, their Lordships conceive, might be competently dealt with by the Parliament of the Dominion.

The judgment of this Board in Russell v. The Queen (1882), 7 AC 829 (PC) has relieved their Lordships from the difficult duty of considering whether the Canada Temperance Act of 1886 relates to the peace, order, and good government of Canada, in such sense as to bring its provisions within the competency of the Canadian Parliament. In that case the controversy related to the validity of the Canada Temperance Act of 1878; and neither the Dominion nor the Provinces were represented in the argument. It arose between a private prosecutor and a person who had been convicted, at his instance, of violating the provisions of the Canadian Act within a district of New Brunswick, in which the prohibitory clauses of the Act had been adopted. But the provisions of the Act of 1878 were in all material respects the same with those which are now embodied in the Canada Temperance Act of 1886; and the reasons which were assigned for sustaining the validity of the earlier, are, in their Lordships' opinion, equally applicable to the later Act. It therefore appears to them that the decision in Russell v. The Queen must be accepted as an authority to the extent to which it goes, namely, that the restrictive provisions of the Act of 1886, when they have been duly brought into operation in any provincial area within the Dominion, must receive effect as valid enactments relating to the peace, order, and good government of Canada.

That point being settled by decision, it becomes necessary to consider whether the Parliament of Canada had authority to pass the Canada Temperance Act of 1886 as being an Act for the "regulation of trade and commerce" within the meaning of s. 91(2). If it were so, the Parliament of Canada would, under the exception from s. 92 which has already been noticed, be at liberty to exercise its legislative authority, although in so doing it should interfere with the jurisdiction of the provinces. The scope and effect of s. 91(2) were discussed by this Board at some length in Citizens' Insurance Co. v. Parsons, where it was decided that, in the absence of legislation upon the subject by the Canadian Parliament, the Legislature of Ontario had authority to impose conditions, as being matters of civil right, upon the business of fire insurance, which was admitted to be a trade, so long as those conditions only affected provincial trade. Their Lordships do not find it necessary to reopen that discussion in the present case. The object of the Canada Temperance Act of 1886 is, not to regulate retail transactions between those who trade in liquor and their customers, but to abolish all such transactions within every provincial area in which its enactments have been adopted by a majority of the local electors. A power to regulate, naturally, if not necessarily, assumes, unless it is enlarged by the context, the conservation of the thing which is to be made the subject of regulation. In that view, their Lordships are unable to regard the prohibitive enactments of the Canadian statute of 1886 as regulations of trade and commerce. They see no reason to modify the opinion which was recently expressed on their behalf by Lord Davey in Municipal Corporation of the City of Toronto v. Virgo, [1896] AC 88 at 93 (PC) in these terms: "Their Lordships think there is marked distinction to be drawn between the prohibition or prevention of a trade and the regulation or governance of it, and indeed a power to regulate and govern seems to imply the continued existence of that which is to be regulated or governed."

The authority of the Legislature of Ontario to enact s. 18 of [the 1890 Act] was asserted by the appellant on various grounds. [Arguments based upon s. 92(8), the power to create municipal institutions and s. 92(9), the power of licensing for the purposes of raising revenue, were dismissed.] …

The only enactments of s. 92 which appear to their Lordships to have any relation to the authority of provincial legislatures to make laws for the suppression of the liquor traffic are to be found in ss. 92(13) and (16), which assign to their exclusive jurisdiction, (1.) "property and civil rights in the province," and (2.) "generally all matters of a merely local or private nature in the province." A law which prohibits retail transactions and restricts the consumption of liquor within the ambit of the province, and does not affect transactions in liquor between persons in the province and persons in other provinces or in foreign countries, concerns property in the province which would be the subject-matter of the transactions if they were not prohibited, and also the civil rights of persons in the province. It is not impossible that the vice of intemperance may prevail in particular localities within a province to such an extent as to constitute its cure by restricting or prohibiting the sale of liquor a matter of a merely local or private nature, and therefore falling prima facie within s. 92(16). In that state of matters, it is conceded that the Parliament of Canada could not imperatively enact a prohibitory law adapted and confined to the requirements of localities within the province where prohibition was urgently needed. …

It is not necessary for the purposes of the present appeal to determine whether provincial legislation for the suppression of the liquor traffic, confined to matters which are provincial or local within the meaning of ss. 92(13) and (16), is authorized by the one or by the other of these heads. It cannot, in their Lordships' opinion, be logically held to fall within both of them. In s. 92, ss. (16) appears to them to have the same office which the general enactment with respect to matters concerning the peace, order, and good government of Canada, so far as supplementary of the enumerated subjects, fulfils in s. 91. It assigns to the provincial legislature all matters in a provincial sense local or private which have been omitted from the preceding enumeration, and, although its terms are wide enough to cover, they were obviously not meant to include, provincial legislation in relation to the classes of subjects already enumerated.

In the able and elaborate argument addressed to their Lordships on behalf of the respondents it was practically conceded that a provincial legislature must have power to deal with the restriction of the liquor traffic from a local and provincial point of view, unless it be held that the whole subject of restriction or abolition is exclusively committed to the Parliament of Canada as being within the regulation of trade and commerce. In that case the subject, in so far at least as it had been regulated by Canadian legislation, would, by virtue of the concluding enactment of s. 91, be excepted from the matters committed to provincial legislatures by s. 92. Upon the assumption that s. 91(2) does not embrace the right to suppress a trade, Mr. Blake maintained that, whilst the restriction of the liquor traffic may be competently made matter of legislation in a provincial as well as a Canadian aspect, yet the Parliament of Canada has, by enacting the Canada Temperance Act of 1886,

occupied the whole possible field of legislation in either aspect, so as completely to exclude legislation by a province. That appears to their Lordships to be the real point of controversy raised by the question with which they are at present dealing; and, before discussing the point, it may be expedient to consider the relation in which Dominion and provincial legislation stand to each other.

It has been frequently recognised by this Board, and it may now be regarded as settled law, that according to the scheme of the British North America Act the enactments of the Parliament of Canada, in so far as these are within its competency, must override provincial legislation. But the Dominion Parliament has no authority conferred upon it by the Act to repeal directly any provincial statute, whether it does or does not come within the limits of jurisdiction prescribed by s. 92. The repeal of a provincial Act by the Parliament of Canada can only be effected by repugnancy between its provisions and the enactments of the Dominion; and if the existence of such repugnancy should become a matter of dispute, the controversy cannot be settled by the action either of the Dominion or of the provincial legislature, but must be submitted to the judicial tribunals of the country. In their Lordships' opinion the express repeal of the old provincial Act of 1864 by the Canada Temperance Act of 1886 was not within the authority of the Parliament of Canada. …

In like manner, the express repeal, in the Canada Temperance Act of 1886, of liquor prohibitions adopted by a municipality in the province of Ontario under the sanction of provincial legislation, does not appear to their Lordships to be within the authority of the Dominion Parliament.

The question must next be considered whether the provincial enactments of s. 18 to any, and if so to what, extent come into collision with the provisions of the Canadian Act of 1886. In so far as they do, provincial must yield to Dominion legislation, and must remain in abeyance unless and until the Act of 1886 is repealed by the parliament which passed it.

The prohibitions of the Dominion Act have in some respects an effect which may extend beyond the limits of a province, and they are all of a very stringent character. …

On the other hand, the prohibitions which s. 18 authorizes municipalities to impose within their respective limits do not appear to their Lordships to affect any transactions in liquor which have not their beginning and their end within the province of Ontario. …

It thus appears that, in their local application within the province of Ontario, there would be considerable difference between the two laws; but it is obvious that their provisions could not be in force within the same district or province at one and the same time. In the opinion of their Lordships the question of conflict between their provisions which arises in this case does not depend upon their identity or non-identity, but upon a feature which is common to both. Neither statute is imperative, their prohibitions being of no force or effect until they have been voluntarily adopted and applied by the vote of a majority of the electors in a district or municipality. In Russell v. The Queen it was observed by this Board, with reference to the Canada Temperance Act of 1878, "The Act as soon as it was passed became a law for the whole Dominion, and the enactments of the first part, relating to the machinery for bringing the second part into force, took effect and might be put in motion at once and everywhere within it." No fault can be found with the accuracy of that statement. Mutatis mutandis, it is equally true as a description of the provisions of s. 18. But in neither case can the statement mean more than this, that, on the passing of the Act, each district or municipality within the Dominion or the province, as the case might be, became vested with a right to adopt and enforce certain prohibitions if it thought fit to do so. But the prohibitions of these Acts, which constitute their object and their essence, cannot with the least degree of accuracy be said to be in force anywhere until they have been locally adopted.

If the prohibitions of the Canada Temperance Act had been made imperative throughout the Dominion, their Lordships might have been constrained by previous authority to hold that the jurisdiction of the Legislature of Ontario to pass s. 18 or any similar law had been superseded. In that case no provincial prohibitions such as are sanctioned by s. 18 could have been enforced by a municipality without coming into conflict with the paramount law of Canada. For the same reason, provincial prohibitions in force within a particular district will necessarily become inoperative whenever the prohibitory clauses of the Act of 1886 have been adopted by that district. But their Lordships can discover no adequate grounds for holding that there exists repugnancy between the two laws in districts of the province of Ontario where the prohibitions of the Canadian Act are not and may never be in force. …

Their Lordships, for these reasons, … are of opinion that the Ontario Legislature had jurisdiction to enact s. 18, subject to this necessary qualification [the Province lacked the jurisdiction to prohibit the importation of liquor], that its provisions are or will become inoperative in any district of the province which has already adopted, or may subsequently adopt, the second part of the Canada Temperance Act of 1886.

3.4.1 Questions and Notes

1. What motivated Lord Watson to confine the availability of POGG authority in the opening words of s. 91 only to matters rising to national dimensions?
2. Though he never used the term, did Lord Watson find there was a 'double aspect' to the subject of liquor prohibition?
3. Are you convinced that s. 91(2) encompasses only the power to regulate and not to prohibit?
4. Note that Lord Watson, in the last paragraph, applies an older rule of federal paramountcy. It does not represent modern trends. He concludes that whenever two laws are in operation, the provincial law will yield to the federal one. The modern paramountcy rule is less broad than that. Operational conflict, for instance, renders a provincial law inoperative only to the extent of the inconsistency. See discussion in Chapter 6, Part 7.
5. Richard Burdon Haldane appeared in numerous Canadian appeals before the JCPC. He was elevated to the House of Lords and eventually also sat on Privy Council appeals, holding the pen in a number of decisive Canadian cases that you will read below. This is what he wrote in tribute to Lord Watson upon his passing:

"He was an Imperial judge of the very first order. The function of such a judge, sitting in the supreme tribunal of the Empire, is to do more than decide what abstract and familiar legal conceptions should be applied to particular cases. His function is to be a statesman as well as a jurist, to fill in the gaps which Parliament has deliberately left in the skeleton constitutions and laws that it has provided for the British Colonies. The Imperial legislature has taken the view that these constitutions and laws must, if they are to be acceptable, be in a large measure unwritten, elastic, and capable of being silently developed and even altered as the Colony develops and alters. This imposes a task of immense importance and difficulty upon the Privy Council judges, and it was this task which Lord Watson had to face when some fifteen years ago he found himself face to face with what threatened to be a critical period in the history of Canada. Lord Carnarvon's Confederation Act of 1867, which had given separate legislatures and executives to the Provinces, had by no means completely defined the relations of these legislatures and their Lieutenant-Governors to the Parliament and Governor-General of the Dominion. Two views were being contended for. The one was that, excepting in such cases as were specially provided for, a general principle ought to be recognised which would tend to make the Government of Ottawa paramount, and the Governments of the Provinces subordinate. The other was that of federalism through and through, in executive as well as legislative concerns, whenever the contrary had not been expressly said by the Imperial Parliament. The Provincial Governments naturally pressed this latter view very strongly. The Supreme Court of Canada, however, which had been established under the Confederation Act, and was originally intended by all parties to be the practically final Court of Appeal for Canada, took the other view. Great unrest was the result, followed by a series of appeals to the Privy Council, à I happened to be engaged in a number of these cases, and had to give assistance as

I could to the various Prime Ministers of the Provinces who came over to argue in person. Lord Watson made the business of laying down the new law that was necessary his own. He completely altered the tendency of the decisions of the Supreme Court, and established in the first place the sovereignty (subject to the power to interfere of the Imperial Parliament alone) of the legislatures of Ontario, Quebec and the other Provinces. He then worked out as a principle the direct relation, in point of exercise of the prerogative, of the Lieutenant-Governors to the Crown. In a series of masterly judgments he expounded and established the real constitution of Canada. The liquor laws, the Indian reserve lands, the title to regalia, including the precious metals, were brought before a Judicial Committee, in which he took the leading part, for consideration as to which of the rival claims to legislate ought to prevail. Nowhere is his memory likely to be more gratefully preserved than in those distant Canadian Provinces whose rights of self-government he placed on a basis that was both intelligible and firm." From Lord R.B. Haldane, 'Lord Watson' (1899) 11 Juridical Review 278 at 279-81

4 *Canada (AG) v Alberta (AG)*, 1921 CanLII 399, [1922] 1 AC 191 (UKJCPC) [Reference Re the Board Commerce Act 1919]

Viscount HALDANE: …

The first question to be answered is whether the Dominion Parliament could validly enact such a law. Their Lordships observe that the law is not one enacted to meet special conditions in war time. It was passed in 1919, after peace had been declared, and it is not confined to any temporary purpose, but is to continue without limit in time, and to apply throughout Canada. No doubt the initial words of sec. 91 of the B.N.A. Act, confer on the Parliament of Canada power to deal with subjects which concern the Dominion generally, provided that they are not withheld from the powers of that Parliament to legislate, by any of the express heads in sec. 92, untrammelled by the enumeration of special heads in sec. 91. It may well be that the subjects of undue combination and hoarding are matters in which the Dominion has a great practical interest. In special circumstances, such as those of a great war, such an interest might conceivably become of such paramount and overriding importance as to amount to what lies outside the heads in sec. 92, and is not covered by them. The decision in Russell v. The Queen (1882), 7 App. Cas. 829, appears to recognise this as constitutionally possible, even in time of peace; but it is quite another matter to say that under normal circumstances general Canadian policy can justify interference, on such a scale as the statutes in controversy involve, with the property and civil rights of the inhabitants of the Provinces. It is to the Legislatures of the Provinces that the regulation and restriction of their civil rights have in general been exclusively confided, and as to these the provincial Legislatures possess quasi-sovereign authority. It can, therefore, be only under necessity in highly exceptional circumstances, such as cannot be assumed to exist in the present case, that the liberty of the inhabitants of the Provinces may be restricted by the Parliament of Canada, and that the Dominion can intervene in the interests of Canada as a whole in questions such as the present one. For, normally, the subject matter to be dealt with in the case would be one falling within sec. 92. Nor do the words in sec. 91, the Regulation of Trade and Commerce, if taken by themselves, assist the present Dominion contention. It may well be, if the Parliament of Canada had, by reason of an altogether exceptional situation, capacity to, interfere, that these words would apply so as to enable that Parliament to oust the exclusive character of the provincial powers under sec. 92. In the case of Dominion companies their Lordships in deciding the case of John Deere Plow Company v. Wharton (annotated), 1914 CanLII 603 (UK JCPC), 18 D.L.R. 353 at 359, [1915] A.C. 330 expressed the opinion that the language of sec. 91 (2) could have the effect of aiding Dominion powers conferred by the general language of sec. 91. But that was because the regulation of the trading of Dominion companies was sought to be invoked only in furtherance of a general power which the Dominion Parliament possessed independently of it. Where there was no such power in that Parliament, as in the case of the Dominion Insurance Act, it was held otherwise, and that the authority of the Dominion Parliament to legislate for the regulation of trade and commerce did not, by itself, enable interference with particular trades in which Canadians would, apart from any right of interference conferred by these words above, be free to engage in the Provinces. This result was the outcome of a series of well-known decisions of earlier dates which are now so familiar that they need not be cited.

For analogous reasons the words of head 27 of sec. 91 do not assist the argument for the Dominion. It is one thing to, construe the words "the Criminal Law, except the Constitution of Courts of Criminal Jurisdiction, but including the 'Procedure in criminal matters," as enabling the Dominion Parliament to exercise exclusive legislative power where the subject matter is one by which its very nature belongs to the domain of criminal jurisprudence. A general law, to take an example, making incest a crime, belongs to, this class. It is quite another thing, first to attempt to interfere with a class of subject committed exclusively to the Provincial Legislature, and then to justify this by enacting ancillary provisions, designated as new phases of Dominion Criminal law which require a title to so interfere as basis of their application. …

As their Lordships have already indicated, the jurisdiction attempted to be conferred on the new Board of Commerce appears to them to be ultra vires for the reasons now discussed. It implies a claim of title, in the cases of non-traders as well as of traders, to make orders prohibiting the accumulation of certain articles required for everyday life, and the withholding of such articles from sale at prices to be defined by the Board, whenever they exceed the amount of the material which appears to the Board to be required for domestic purposes or for the ordinary purposes of business. The Board is also given jurisdiction to regulate profits and dealings which may give rise to profit. The power sought to be given to the Board applies to articles produced for his own use by the householder himself, as well as to articles accumulated, not for the market but for the purposes of their own processes of manufacture by manufacturers. The Board is empowered to inquire into individual cases and to deal with them individually, and not merely as the result of applying principles to be laid down as of general application. This would cover such instances as those of coal mines and of local provincial undertakings for meeting provincial requirements of social life.

Legislation setting up a Board of Commerce with such powers appears to their Lordships to be beyond the powers conferred by sec. 91. They find confirmation of this view in sec. 41 of the Board of Commerce Act, which enables the Dominion Executive to review and alter the decisions of the Board. It has already been observed that circumstances are conceivable, such as those of war or famine, when the peace, order and good government of the Dominion might be imperilled under conditions so exceptional that they require legislation of a character in reality beyond anything provided for by the enumerated heads in either sec. 92 or sec. 91 itself. Such a case, if it were to arise would have to be considered closely before the conclusion could properly be reached that it was one which could not be treated as falling under any of the heads enumerated. Still, it is a conceivable case, and although great caution is required in referring to it, even in general terms, it ought not, in the view their Lordships take of the B.N.A. Act, read as a whole, to be excluded from what is possible. For throughout the provisions of that Act there is apparent the recognition that subjects which would normally belong exclusively to a specifically assigned class of subject may, under different circumstances and in another aspect, assume a further significance. Such an aspect may conceivably become of paramount importance, and of dimensions that give rise to other aspects. This is a principle which, although recognised in earlier decisions, … has always been applied with reluctance, and its recognition as relevant can be justified only after scrutiny sufficient to render it clear that the circumstances are abnormal. In the case before them, however important [the policy] may seem to the Parliament of Canada … , their Lordships do not find any evidence that the standard of necessity referred to has been reached, or that the attainment of the end sought is practicable … without the cooperation of the Provincial Legislatures. It may well be that it is within the power of the Dominion Parliament to call, for example, for statistical and other information which may be valuable for guidance in questions affecting Canada as a whole. Such information may be required before any power to regulate trade and commerce can be properly exercised, even where such power is construed in a fashion much

narrower than that in which it was sought to interpret it in the argument at the Bar for the Attorney-General for Canada. But even this consideration affords no justification for interpreting the words of sec. 91 (2) in a fashion which would, as was said in the argument on the other side, make them confer capacity to regulate particular trades and businesses.

For the reasons now given their Lordships are of opinion that the first of the questions brought before them must be answered in the negative. As a consequence the second question does not arise…

Appeal dismissed

4.1 Questions and Notes

1. Was Viscount Haldane faithful to Lord Watson's 'national dimensions' formulation for the POGG power? How did he depart from that formulation?
2. Haldane speaks of a subject attaining a federal 'aspect' which renders that subject of 'paramount importance.' Is this what Lord Fitzgerald had in mind in Hodge?
3. Note that Viscount Haldane's shrinking of federal trade and commerce authority – it would only be available 'in aid' of other enumerations – was not followed in JCPC rulings after 1928 (the year of Haldane' death). Nor was Haldane, himself, entirely faithful to this interpretation. See discussion in David Schneiderman, "Harold Laski, Viscount Haldane, and the Law of the Canadian Constitution in the Early Twentieth Century" (1998) 48 University of Toronto Law Journal 521 at 555.

5 *Fort Frances Pulp and Paper Co v Manitoba Free Press Co*, 1923 CanLII 429, [1923] AC 695 (UKJCPC)

Viscount HALDANE: …

It is clear that in normal circumstances the Dominion Parliament could not have so legislated as to set up the machinery of control over the paper manufacturers which is now in question. The recent decision of the Judicial Committee in the Board of Commerce Case, Att'y-Gen'l of Canada v. Att'y-Gen'l of Alberta, 1921 CanLII 399 (UK JCPC), 60 D.L.R. 513, [1922] 1 A.C. 191, as well as earlier decisions, shew that as the Dominion Parliament cannot ordinarily legislate so as to interfere with property and civil rights in the Provinces, it could not have done what the two statutes under consideration purport to do had the situation been normal. But it does not follow that in a very different case, such as that of sudden danger to social order arising from the outbreak of a great war, the Parliament of the Dominion cannot act under other powers which may well be implied in the constitution. The reasons given in the Board of Commerce case recognise exceptional cases where such a power may be implied.

In the event of war, when the national life may require for its preservation the employment of very exceptional means, the provision of peace, order and good government for the country as a whole may involve effort on behalf of the whole nation, in which the interests of individuals may have to be subordinated to that of the community in a fashion which requires sec. 91 to be interpreted as providing for such an emergency. The general control of property and civil rights for normal purposes remains with the Provincial Legislatures. But questions may arise by reason of the special circumstances of the national emergency which concern nothing, short of the peace, order and good government of Canada as a whole.

The overriding powers enumerated in sec. 91, as well as the general words at the commencement of the section, may then become applicable to new and special aspects which they cover of subjects assigned otherwise exclusively to the Provinces. It may be, for example, impossible to deal adequately with the new questions which arise without the imposition of special regulations on trade and commerce of a kind that only what the emergency has created places within the competency of the Dominion Parliament. It is proprietary and civil rights in new relations, which they do not present in normal times, that have to be dealt with; and these relations, which affect Canada as an entirety, fall within sec. 91 because in their fullness they extend beyond what sec. 92 can really cover. The kind of power adequate for dealing with them is only to be found in that part of the constitution which establishes power in the state as a whole. For it is not one that can be reliably provided for by depending on collective action of the legislatures of the individual Provinces agreeing for the purpose. That the basic instrument on which the character of the entire constitution depends should be construed as providing for such centralised power in an emergency situation follows from the manifestation in the language of the Act of the principle that the instrument has among its purposes to provide for the State regarded as a whole, and for the expression and influence of its public opinion as such. This principle of a power so implied has received effect also in countries with a written and apparently rigid constitution such as the United States, where the strictly federal character of the national basic agreement has retained the residuary powers not expressly conferred on the Federal Government for the component Slates. The operation of the scheme of interpretation is all the more to be looked for in a constitution such as that established by the B.N.A. Act, where the residuary powers are given to the Dominion Central Government, and the preamble of the statute declares the intention to be that the Dominion should have a constitution similar in principle to that of the United Kingdom.

Their Lordships, therefore, entertain no doubt that however the wording of secs. 91 and 92 may have laid down a framework under which, as a general principle, the Dominion Parliament is to be excluded from trenching on property and civil rights in the Provinces of Canada, yet in a sufficiently great emergency such as that arising out of war, there is implied the power to deal adequately with that emergency for the safety of the Dominion as a whole. The enumeration in sec. 92 is not in any way repealed in the event of such an occurrence, but a new aspect of the business of Government is recognised as emerging, an aspect which is not covered or precluded by the general words in which powers are assigned to the legislatures of the Provinces as individual units. Where an exact line of demarcation will lie in such cases it may not be easy to lay down a priori, nor is it necessary. For in the solution of the problem regard must be had to the broadened field covered, in case of exceptional necessity, by the language of sec. 91, in which the interests of the Dominion generally are protected. As to these interests the Dominion Government, which in its Parliament represents the people as a whole, must be deemed to be left with considerable freedom to judge.

The other point which arises is whether such exceptional necessity as must be taken to have existed when the war broke out, and almost of necessity for some period subsequent to its outbreak, continued through the whole of the time within which the questions in the present case arose.

When war has broken out it may be requisite to make special provision to ensure the maintenance of law and order in a country, even when it is in no immediate danger of invasion. Public opinion may become excitable, and one of the causes of this may conceivably be want of uninterrupted information in newspapers. Steps may have to be taken to ensure supplies of these and to avoid shortage, and the effect of the economic and other disturbance occasioned originally by the war may thus continue for some time after it is terminated. The question of the extent to which provision for circumstances such as these may have to be maintained is one on which a Court of law is loathe to enter. No authority other than the central government is in a position to deal with a problem which is essentially one of statesmanship. It may be that it has become clear that the crisis which arose is wholly at an end and that there is no justification for the continued exercise of an exceptional interference which becomes ultra vires when it is no longer called for. In such a case the law as laid down for distribution of powers in the ruling instrument would have to be invoked. But very clear evidence that the crisis had wholly passed away would be required to justify the

judiciary, even when the question raised was one of ultra vires which it had to decide, in overruling the decision of the Government that exceptional measures were still requisite. In saying what is almost obvious, their Lordships observe themselves to be in accord with the view taken under analogous circumstances by the Supreme Court of the United States, and expressed in such decisions as that in October, 1919, in Hamilton v. Kentucky Distilleries (1919), 251 U.S. Rep. 146.

When then, in the present instance, can it be said that the necessity altogether ceased for maintaining the exceptional measure of control over the newspaper print industry introduced while the war was at its height? At what date did the disturbed state of Canada which the war had produced so entirely pass away that the legislative measures relied on in the present case became ultra vires? It is enough to say that there is no clear and unmistakable evidence that the Government was in error in thinking that the necessity was still in existence at the dates on which the action in question was taken by the Paper Control Tribunal. No doubt late in 1919 statements were made to the effect that the war itself was at an end. For example, in the Order in Council made at Ottawa on December 20, 1919, it is stated that it must:

> "be realised that although no proclamation has been issued declaring that the was no longer exists, actual war conditions have in fact long ago ceased to exist, and consequently existence of war can no longer be urged as a reason in fact for maintaining these extraordinary regulations as necessary or advisable for the security of Canada."

The Order in Council then goes on to say that in consequence of the armistice of November, 1918, the Expeditionary Force had since been withdrawn and demobilised, and the country generally is devoting its energies to re-establishment in the ordinary avocations of peace. In these circumstances, it states, the Minister of Justice considers that the time has arrived when the emergency Government legislation should cease to operate. (This was in December, 1919). The order then goes on to declare repealed all orders and regulations of the Governor in Council which depend for their sanction upon sec. 6 of the War Measures Act, 1914, and repeals them as from January 1, 1920. But from this repeal it expressly excepts, among other orders and regulations specified, those relating to paper control, which are to remain in force until the end of another Session of Parliament.

It will be observed that this Order in Council deals only with the results following from the cessation of actual war conditions. It excepts from repeal certain measures concerned with consequential conditions arising out of war, which may obviously continue to produce effects remaining in operation after war itself is over.

Their Lordships find themselves unable to say that the Dominion Government had no good reason for thus temporarily continuing the paper control after actual war had ceased, but while the effects of war conditions might still be operative. …

Appeal dismissed

5.1 Questions

1. Why was Viscount Haldane so deferential to federal authority in Fort Frances? Did the fact that Haldane served as Secretary of State, and reorganized the British Army and Navy in the lead up to the first World War, play a role?
2. Haldane invites litigants to challenge continuing exercises of the federal emergency power should they have 'clear and unmistakable evidence' that the emergency has passed. Was Haldane welcoming the introduction of social science evidence into Canadian constitutional litigation? Is this a helpful innovation? What standard of review would Haldane have applied in order to determine that the lingering effects of an emergency had ended?

6 *Toronto Electric Commissioners v Snider*, 1925 CanLII 331, [1925] AC 396 (UKJCPC)

Lord HALDANE: …

Their Lordships are of opinion that, on authority as well as on principle, they are today precluded from accepting the arguments that the Dominion Act in controversy can be justified as being an exercise of the Dominion power under s. 91 in relation to criminal law. What the Industrial Disputes Investigation Act … aimed at accomplishing was to enable the Dominion Government to appoint anywhere in Canada a Board of Conciliation and Investigation to which the dispute between an employer and his employees might be referred. The Board was to have power to enforce the attendance of witnesses and to compel the production of documents. It could under the Act enter premises, interrogate the persons there, and inspect the work. It rendered it unlawful for an employer to lock-out or for a workman to strike, on account of the dispute, prior to or during the reference, and imposed an obligation on employees and employers to give 30 days' notice of any intended change affecting wages or hours. … It is obvious that these provisions dealt with civil rights, and it was not within the power of the Dominion Parliament to make this otherwise by imposing merely ancillary penalties. The penalties for breach of the restrictions did not [lessen] the statute['s] … interference with civil rights in its pith and substance. The Act is not one which aims at making striking generally a new crime. Moreover, the employer retains under the general common law a right to lock-out, only slightly interfered with by the penalty. In this connection their Lordships are therefore of opinion that the validity of the Act cannot be sustained. …

Nor does the invocation of the specific power in s. 91 to regulate trade and commerce assist the Dominion contention. …

It is, in their Lordships' opinion, now clear that, excepting so far as the power can be invoked in aid of capacity conferred independently under other words in s. 91, the power to regulate trade and commerce cannot be relied on as enabling the Dominion Parliament to regulate civil rights in the Provinces.

A more difficult question arises with reference to the initial words of s. 91, which enable the Parliament of Canada to make laws for the peace, order and good government of Canada in matters falling outside the provincial powers specifically conferred by s. 92. …

It appears to their Lordships that it is not now open to them to treat Russell v. The Queen as having established the general principle that the mere fact that Dominion legislation is for the general advantage of Canada or is such that it will meet a mere want which is felt throughout the Dominion, renders it competent if it cannot be brought within the heads enumerated specifically in s. 91. Unless this is so, if the subject-matter falls within any of the enumerated heads in s. 92, such legislation belongs exclusively to provincial competency. No doubt there may be cases arising out of some extraordinary peril to the national life of Canada, as a whole, such as the cases arising out of a war, where legislation is required of an order that passes beyond the heads of exclusive provincial competency. Such cases may be dealt with under the words at the commencement; of s. 91, conferring general powers in relation to peace, order and good government, simply because such cases are not otherwise provided for. But instances of this, as was pointed out in the judgment in Fort Frances Pulp & Paper Co. v. Manitoba Free Press, 1923 CanLII 429 (UK JCPC), [1923] 3 D.L.R. 629, [1923] A.C. 695, are highly exceptional. Their Lordships think that the decision in Russell v. The Queen can only be supported today, not on the footing of having laid down an interpretation, such as has sometimes been invoked of the general words at the beginning of s. 91, but on the assumption of the Board, apparently made at the time of deciding the case of Russell v. The Queen, that the evil of intemperance at that time amounted in Canada to one so great and so general that at least for the period it was a menace to the national life of Canada so serious and pressing that the National Parliament was called on to intervene to protect the nation from disaster. An epidemic of pestilence might conceivably have been regarded as analogous. It is plain from the decision in the case, Att'y-Gen'l of Canada v.

Att'y-Gen'l of Alberto, supra, that the evil of profiteering could not have been so invoked, for provincial powers, if exercised, were adequate to it. Their Lordships find it difficult to explain the decision in Russell v. The Queen as more than a decision of this order upon facts, considered to have been established at its date rather than upon general law. …

As the result of consideration, their Lordships have come to the conclusion that they ought humbly to advise the Sovereign that the appeal should be allowed, and that judgment should be entered for the appellants for the declaration and injunction claimed. …

Appeal allowed

6.1 Questions and Notes

1. The federal law in Snider had been in force for 18 years before it was declared ultra vires. It seemed to be working quite well, bringing some peace to industrial disputes. Why would Lord Haldane (now Lord Chancellor in the first British Labour government) upset this regime which was, by then, well settled law?
2. Are you convinced by Haldane's interpretation of *Russell v. The Queen*?
3. What explains Haldane's penchant for preferring provincial authority? Some attribute this to Haldane's Scottish roots in civil law, others to his preoccupation with Hegelian philosophy, or to his economic liberalism (he authored a book on Adam Smith in 1887). After the First World War, however, Haldane famously declared that 'We are all Socialists now' and served as the first Lord Chancellor for the new Labour Government. Consider whether the following excerpt provides a convincing explanation:

"Federalistic feeling' was described as 'curiously widespread' in Britain in the early part of the twentieth century... [The theory of political pluralism] merged these economic and political streams, attacking the all-absorptive state and promoting the inherent worthiness of group associations. . . [Political scientist Harold Laski was one of the leading figures of the British political pluralist movement.] Laski believed that citizens derived meaning and identity from the plurality of groups with which they were associated. The individual was portrayed as a complex of multiple loyalties and belongings with many forms of association competing for his or her allegiance. He described the individual as 'a point towards which a thousand associations converge.' Whether we will it or not, he wrote, we are all a 'bundle of hyphens.' . . .

If the state had no privileged existence over group life, it could not legitimately attempt to absorb or control the diverse allegiances of its citizens. Each of these associations - 'the club, trade-union, church, society, town, country, university' - has a 'group-life, a group-will, to enrich the imagination.' English law treated organized groups largely as incapable of having an existence independent of the state - group life was contingent upon, rather than independent of, state recognition…

The modern state was in need of more, not less, decentralization. To consider Ottawa or Washington as reserves of nascent power capable of resolving conflict by simple generalizable solutions was to risk local stagnation. Centralized government, wrote Laski, 'cannot grasp ... the genius of place:' 'To multiply the centres of authority is to multiply the channels of discussion and so promote the diffusion of healthy and independent opinion.' In contrast, the vices of centralized government for Laski were numerous:

> It is so baffled by the very vastness of its business as necessarily to be narrow and despotic and over-formal in character. It tends to substitute for a real effort to grapple with special problems an attempt to apply wide generalisations that are in fact irrelevant. It involves the decay of local energy by taking real power from its hands. It puts real responsibility in a situation where, from its very flavour of generality, an unreal experiment is postulated. It prevents the saving grace of experiment. It invites the congestion of business...

For the pluralists, then, self-government was exercised preferably at local levels where the implications of social policy choices could be felt and better understood. The object of the pluralist state was to partition power along these lines so that the diversity of group life could be given expression. Functional devolution along territorial and non-territorial lines not only facilitated the expression of individual moral development through participation in associational life, it also created a 'corporate sense of responsibility' or 'training in self-government.' Like Hegel (and Mill), Laski believed that local self-government was 'educative in perhaps a higher degree, at least contingently, than any other part of government.' This training in self-government would lead, ultimately, to connections being made between associational life and 'the general background of social life.'

In a highly decentralized society, what role remained for the national state? On this, Laski moved from a position of radical polyarchy in 1915 to one of centralized authority for the performance of key public functions in 1925. For just as associations had social functions to fulfil, so did the state. 'The state exists as the most adequate means we have yet invented for the promotion of an end we deem good,' admitted Laski…

[Lord Haldane befriended Laski and wrote, in his review of Laski's 1922 book The Foundation of Sovereignty and Other Essays, that Laski] had 'achieved a remarkable success' with this book. Regarding the personality of associations, Laski had 'no difficulty in showing that the reluctance of our jurisprudence to treat an association as a person that can be made responsible in law has given rise to many obscurities and difficulties.' Haldane contrasted the monistic with the pluralistic view of the state and concluded that the doctrine of political pluralism 'is an ethical ideal' greatly superior to the monistic state. It is those 'institutions which have genuine popular power expressed in them that become organs of ethical ideals and of true citizenship, and so the superiority of the pluralistic State becomes evident,' wrote Haldane. Decentralization, therefore, was 'essential.' Haldane also could agree with Laski's desire to remodel government from time to time, not only in the direction of devolution, but also in the other direction: 'In wartime, a highly centralized control may be essential. In peacetime it may be politically and ethically very undesirable.'…

The true nature of state sovereignty, then, was not revealed in the arguments of either the monists or the pluralists. The 'real source of sovereignty,' according to Haldane, was 'general opinion,' which lay behind the institutional apparatus of state and society. Acknowledging merit in the monist case, Haldane argued that the minds that constitute the general will cohere into a 'unitary and monistic' form represented by the state, though this is not the exclusive vehicle of public opinion. Its 'forms of expression may be diverse,' Haldane conceded to the pluralists. The true source of sovereignty, though, was constituted neither wholly in the state nor in group life; rather, it could be found in 'public opinion,' which he equated with the general will…

The distribution of sovereignty to organizational groups did not exclude the general will 'which may manifest itself as supreme, and may arm Govt. with extended authority on occasion.' The general will, as an expression of homogeneous opinion, could emerge to supersede the heterogeneity of sovereignty in such extreme circumstances. Ernest Barker, in his modified defence of the pluralists, agreed: 'If it comes to a pinch, we shall forget that we are anything but citizens."

From David Schneiderman, "Harold Laski, Viscount Haldane, and the Law of the Canadian Constitution in the Early Twentieth Century" (1998) 48 University of Toronto Law Journal 521.]

Chapter 6: Characterization of Laws and Interpretation Doctrines

By Asha Kaushal and *Jodi Lazare*

1 Foundations

Sections 91 through 95 of the *Constitution Act, 1867*, divide legislative power between the federal Parliament and the provincial legislatures. These provisions provide legislative authority in relation to 'matters coming within classes of subjects', tasking courts to determine the matter and then assign it to one of the classes of subjects.

This describes the two main components of federalism analysis: characterization and classification. Courts must first *characterize* the legislation in order to next *classify* the legislation under the appropriate head of power. In *Re Impact Assessment Act* and *Murray Hall*, the Court insisted that these two stages should be kept analytically separate. Courts and commentators alike have found this extraordinarily difficult to achieve; but these recent judgments nonetheless reiterate the importance of analytical separation. This chapter is concerned with the *characterization* stage, while subsequent chapters examine the *classification* stage and the various heads of power in detail.

The characterization inquiry always begins with pith and substance analysis. Sometimes that analysis will conclusively determine the validity of the legislation. Where pith and substance analysis is not conclusive, however, courts will turn to other interpretation doctrines and the inquiry will continue. All of these interpretation doctrines are considered part of the characterization stage of analysis.

The first task for courts is to determine the 'matter' of the legislation. They use 'pith and substance doctrine' to do so. The term 'matter' is derived from the wording of sections 91 and 92 of the *Constitution Act, 1867*. The introductory parts of sections 91 and 92, which allocate power between the federal government and the provincial and territorial governments, read as follows:

> **91** It shall be lawful for the Queen, by and with the Advice and Consent of the Senate and House of Commons, to make Laws for the Peace, Order, and good Government of Canada, in relation to all Matters not coming within the Classes of Subjects by this Act assigned exclusively to the Legislatures of the Provinces; and for greater Certainty, but not so as to restrict the Generality of the foregoing Terms of this Section, it is hereby declared that (notwithstanding anything in this Act) the exclusive Legislative Authority of the Parliament of Canada extends to *all Matters coming within the Classes of Subjects* next hereinafter enumerated; that is to say,
>
> **92** In each Province the Legislature may exclusively make Laws in relation to *Matters coming within the Classes of Subjects* next hereinafter enumerated; that is to say,

The 'matter' is the concern of the characterization stage, while the 'classes of subjects' or heads of power are the concern of the classification stage. The term 'matter' has been variously described by courts and commentators to refer to the 'dominant characteristic', 'main thrust', 'true character', 'leading feature', or 'real character'.

Courts will consider several aspects of the statute in their determination, including those that go beyond the four corners of the legislation, as Sopinka J explained in *Morgentaler.* These include purpose and effects, but also legislative debates and speeches, reports, and related legislation.

As you read the case excerpts below, think about how the pith and substance approaches they embody differ from one another as well as what they have in common.

Legislation will often deal with several subjects in relation to a given matter. For example, a federal statute that is centrally concerned with the matter of banking may also deal with insurance and civil rights of action. Both insurance and civil rights of action fall under provincial classes of subjects. In such circumstances, pith and substance analysis takes on heightened importance. If the banking statute is mischaracterized, then it will likely also be misclassified as falling under provincial jurisdiction. Some of the other interpretation doctrines may be relevant in such a situation. The first section, below, focuses squarely on pith and substance doctrine.

2 Pith and substance

In recent years, the Court has clarified the pith and substance doctrine. In *Reference re Impact Assessment Act,* 2023 SCC 23, reflecting on the multiple articulations of pith and substance put forward by the parties, intervenors, and judges in the court below, Chief Justice Wagner pressed the distinction between characterization and classification analyses.

> [65] When formulating the pith and substance of a law, litigants and courts may be inclined to glance ahead to the classification step and the catalogue of potential heads of power. It is imperative, however, that the characterization and classification analyses be kept distinct (*References re GGPPA*, at para. 56). In determining the pith and substance of a law, courts must not refer to the heads of power contained within the *Constitution Act, 1867*. Only after precisely stating the matter to which the law relates should a court proceed to the classification phase of the analysis and consider specific heads of power.
>
> [66] The judges in the court below, the parties and the interveners adopt differing articulations of the impugned scheme's pith and substance. With respect, several of these articulations erroneously combine or conflate the characterization of the scheme with its classification.
>
> [67] The Attorney General of Canada submits that the pith and substance of the *IAA* is to "establish a federal environmental assessment process to safeguard against adverse environmental effects in relation to matters within federal jurisdiction" (A.F., at para. 47). The latter part of this characterization — "in relation to matters within federal jurisdiction" — predetermines the classification of the matter of the scheme under federal heads of power. It amounts to a statement that the main thrust of the scheme is to do what it does in a constitutionally valid manner.
>
> [68] The majority of the Court of Appeal fell into the same error when it concluded, as part of its characterization inquiry, that the scheme's purpose and effects reveal an "impermissible degree of federal jurisdictional overreach" (para. 373). This is the language of classification; the characterization step of the analysis must focus exclusively on the "pith and substance" or "dominant characteristic" of the law.

This approach requires judges to characterize the pith and substance of the legislation without regard to its classification under the possible heads of power.

2.1 *Murray Hall v Quebec (Attorney General)*, 2023 SCC 10

In 2018, the federal government decriminalized the recreational sale and use of cannabis in Canada. This national decriminalization effort required a complex legislative scheme and provincial and territorial cooperation. Provinces passed legislation governing the retail sale and storage of cannabis. The *Cannabis Act,* SC 2018 c. 16, is the federal legislation that decriminalizes cannabis by excluding it from the *Controlled Drugs and Substances Act,* SC 1996, c. 19. Sections 8 and 9 of the *Cannabis Act* prohibit the possession and cultivation of cannabis plants but exempts four plants from those prohibitions:

Possession

8 (1) Unless authorized under this Act, it is prohibited …

(e) for an individual to possess more than four cannabis plants that are not budding or flowering; …

Production

12 Cultivation, propagation and harvesting — 18 years of age or older

(4) Unless authorized under this Act, it is prohibited for an individual who is 18 years of age or older to cultivate, propagate or harvest, or to offer to cultivate, propagate or harvest, …

(b) more than four cannabis plants at any one time in their dwelling house.

On June 12, 2018, the Quebec legislature passed *Cannabis Regulation Act,* CQLR, c. C-5.3. Sections 5 and 10 of the provincial Act prohibit the possession of cannabis plants and the cultivation of such plants in a dwelling-house altogether. These prohibitions were accompanied by fines. Sections 5 and 10 read as follows:

5. It is prohibited to possess a cannabis plant.

Anyone who contravenes the first paragraph commits an offence and is liable to a fine of $250 to $750. Those amounts are doubled for a subsequent offence.

10. It is prohibited to cultivate cannabis for personal purposes.

That prohibition against cultivating cannabis applies, in particular, to the planting of seeds and plants, the propagation of plants from cuttings, the cultivation of plants and the harvesting of their production.

Anyone who contravenes the first paragraph by cultivating four cannabis plants or less in their dwelling-house commits an offence and is liable to a fine of $250 to $750. Those amounts are doubled for a subsequent offence.

In October 2018, Janick Murray-Hall brought a claim in the Quebec Superior Court arguing that section 5 and 10 of the provincial Act were *ultra vires* the jurisdiction of Québec. The resulting unanimous decision, *Murray Hall v Quebec (Attorney General), 2023 SCC 10* delivered by Wagner CJC, helpfully sets out a singular pith and substance analysis.

[22] To decide whether a law or some of its provisions are constitutionally valid under the division of powers, courts must first characterize the law or provisions and then, on that basis, classify them by reference to the heads of power listed in ss. 91 and 92 of the *Constitution Act, 1867* (*Reference re Genetic Non-Discrimination Act*, 2020 SCC 17, [2020] 2 SCR 283, at para. 26, citing *Reference re Firearms Act (Can.)*, 2000 SCC 31, [2000] 1 SCR 783, at para. 15).

[23] At the characterization stage, what must be determined is the pith and substance of the law (*Reference re Genetic Non-Discrimination Act*, at para. 28, citing *Canadian Western Bank v. Alberta*, 2007 SCC 22, [2007] 2 SCR 3, at para. 26). In its jurisprudence, the Court has described the aim of this exercise as being to identify the "dominant purpose" of the law (*RJR-MacDonald Inc. v. Canada (Attorney General)*, 1995 CanLII 64 (SCC), [1995] 3 SCR 199, at para. 29), its "dominant or most important characteristic" (*Friends of the Oldman River Society v. Canada (Minister of Transport)*, 1992 CanLII 110 (SCC), [1992] 1 SCR 3, at pp. 62-63) or its "leading feature or true character" (*R. v. Morgentaler*, 1993 CanLII 74 (SCC), [1993] 3 SCR 463, at pp. 481-82). At the classification stage, in turn, what must be determined is whether the pith and substance thereby defined comes within one of the heads of power of the enacting legislature (*Reference re Firearms Act*, at para. 25).

[24] To ascertain the pith and substance of a law, courts look at its purpose and effects (*Reference re Firearms Act*, at para. 16). This essentially interpretative exercise is meant to be neither technical nor formalistic, to use the words of the late Professor Peter W. Hogg (*Constitutional Law of Canada* (loose-leaf ed.), vol. 1, at p. 15-12, cited in *Ward v. Canada (Attorney General)*, 2002 SCC 17, [2002] 1 SCR 569, at para. 18). Indeed, in addition to the words used in the law itself, courts may consider the circumstances surrounding its enactment (*Ward*, at para. 17, citing *Reference re Firearms Act*, at paras. 17-18, and *Morgentaler*, at p. 483).

[25] To analyze the purpose of a law, courts rely on intrinsic evidence, that is, the actual text of the law, including its preamble and purpose clauses, as well as extrinsic evidence, such as parliamentary debates and minutes of parliamentary committees (*Canadian Western Bank*, at para. 27; *Kitkatla Band v. British Columbia (Minister of Small Business, Tourism and Culture)*, 2002 SCC 31, [2002] 2 SCR 146, at paras. 53-54; *Reference re Assisted Human Reproduction Act*, 2010 SCC 61, [2010] 3 SCR 457 ("*Reference re AHRA*"), at paras. 22 and 184). In looking at the effects of the law, courts consider both its legal effects, namely those related directly to the provisions of the law itself, and its practical effects, that is, the "side" effects arising from its application (*Kitkatla Band*, at para. 54, citing *Morgentaler*, at pp. 482-83).

[26] That being said, I would nonetheless emphasize that textual analysis is the focus of the characterization exercise. As Kasirer J. noted in *Reference re Genetic Non-Discrimination Act*, "[i]n the final analysis, it is the substance of the legislation that needs to be characterized, not speeches in Parliament or utterances in the press" (para. 165).

[27] I will devote the next few sections to these two stages of the analysis — characterization and classification — in order to determine whether the Court of Appeal correctly held that ss. 5 and 10 of the provincial Act are constitutionally valid.

(2) Characterization of the Impugned Provisions

[28] In my view, the pith and substance of the impugned provisions is to ensure the effectiveness of the state monopoly in order to protect the health and security of the public, and of young persons in particular, from cannabis harm. It follows that the prohibitions against the possession of cannabis plants and their cultivation at home set out in ss. 5 and 10 of the provincial Act are a *means* of serving the public health and security *objectives* pursued by that Act. With a few slight differences, my conclusion at the characterization stage is the same as that of the Court of Appeal.

[29] Before embarking on the analysis, I will provide a brief overview of the principles that apply in characterizing provisions that are alleged to be an integral part of a regulatory scheme. It is helpful to clarify the extent to which courts should analyze a law as a whole in order to characterize some of its provisions. The question is relevant in this case because the parties' disagreement at the characterization stage essentially stems from the emphasis they place, respectively, on the impugned provisions and on the provincial Act considered in its entirety. Mr. Murray-Hall focuses on the provisions themselves and criticizes the Court of Appeal for not truly considering the possibility that their purpose differs from that of the Act as a whole. The Attorney General of Quebec instead stresses the role played by the provisions in the scheme, endorsing the Court of Appeal's statement that [translation] "their real purpose emerges only when they are analyzed in the overall context of the [provincial Act]" (para. 43).

[30] Where, as in this case, only very specific provisions are being challenged and not the entire law, certain principles apply. A court should begin by characterizing the provisions rather than considering the validity of the law as a whole, a principle articulated by Dickson J. (as he then was) in *Attorney General of Canada v. Canadian National Transportation, Ltd.*, 1983 CanLII 36 (SCC), [1983] 2 SCR 206. However,

Dickson J. added, this does not mean that the provisions must be read in isolation. A contextual analysis of the provisions is necessary when they are part of a regulatory scheme. Dickson J.'s remarks in this regard are as follows:

> It is obvious at the outset that a constitutionally invalid provision will not be saved by being put into an otherwise valid statute, even if the statute comprises a regulatory scheme under the general trade and commerce branch of s. 91(2). The correct approach, where there is some doubt that the impugned provision has the same constitutional characterization as the Act in which it is found, is to start with the challenged section rather than with a demonstration of the validity of the statute as a whole. I do not think, however, this means that the section in question must be read in isolation. If the claim to constitutional validity is based on the contention that the impugned provision is part of a regulatory scheme it would seem necessary to read it in its context. If it can in fact be seen as part of such a scheme, attention will then shift to the constitutionality of the scheme as a whole. [Emphasis added; p. 270.]

[31] This Court has repeatedly emphasized the need to consider the impugned provisions in light of their interaction with the scheme to which they belong. In *Quebec (Attorney General) v. Canada (Attorney General)*, 2015 SCC 14, [2015] 1 SCR 693 ("*Quebec (Attorney General) 2015*"), one of the issues was whether a provision requiring the destruction of long-gun registration data related to the same matter — public safety — as the legislation repealing the registration scheme. Writing for the majority, Cromwell and Karakatsanis JJ. stated the following: ". . . the 'matter' of the provision must be considered in the context of the larger scheme, as its relationship to that scheme may be an important consideration in determining its pith and substance . . ." (para. 30).

[32] The principle enunciated by McLachlin C.J. in *Ward*, where the issue was whether a section of federal fisheries regulations prohibiting the sale of young seals was constitutionally valid, is also relevant: "The question is not whether the *Regulations* prohibit the sale so much as why it is prohibited" (para. 19 (emphasis in original)). In that case, therefore, the Court could not simply focus on the fact that the impugned provision imposed a prohibition on sale, trade or barter, which could have suggested that it fell within provincial jurisdiction over property or trade. When the *why* of the prohibition and its interaction with the rest of the scheme were considered, it became apparent that the purpose of the prohibition was to curtail commercial hunting and that Parliament was validly exercising its fisheries power.

[33] I would also note that reading the impugned provisions in the context of the scheme into which they are integrated is crucial in distinguishing the *purpose* of the law from the *means* chosen to achieve it. Indeed, in *Ward*, McLachlin C.J. cautioned against "confus[ing] the purpose of the legislation with the means used to carry out that purpose" (para. 25).

[34] Bearing in mind the principles laid down in *National Transportation* and the note of caution sounded in *Ward*, I will now characterize ss. 5 and 10 of the provincial Act. I will consider the purpose of these provisions first and then their effects.

(a) Purpose of the Impugned Provisions

(i) Intrinsic Evidence

[35] Sections 5 and 10 of the provincial Act set out absolute prohibitions against, respectively, the possession and the cultivation of cannabis plants in a dwelling-house, accompanied by fines of $250 to $750. If we simply focused on the wording of these provisions, as the appellant urges us to do, the concept of prohibition is what would stand out.

[36] However, it is essential to analyze ss. 5 and 10 in light of their context and not just their wording, because it is the Attorney General of Quebec's contention that they are an integral part of the regulatory scheme established by the provincial Act. To echo the words of McLachlin C.J. in *Ward*, it is not just a matter of finding that the prohibitions against possession and cultivation exist; it is important to look at *why* they are incorporated into the provincial Act's very specific regulatory scheme.

[37] It is also my view that the impugned provisions must not be read "separately" or "individually" on the pretext that they may relate to a very different matter than the rest of the provisions. As the Court of Appeal said, [translation] "[t]he constitutionality of sections 5 and 10 of the [provincial Act] cannot properly be analyzed in isolation, separately from the [Act] as a whole" (para. 41). Of course, it is quite possible that some provisions of a law may be of "a completely different order" than its other provisions (*Westendorp v. The Queen*, 1983 CanLII 1 (SCC), [1983] 1 SCR 43, at p. 51). But such a conclusion cannot be reached without a contextual analysis of the impugned provisions. Logically, it cannot be determined whether there is a marked difference between the purpose of ss. 5 and 10 and that of the rest of the provincial Act's provisions, as Mr. Murray-Hall alleges, without having considered the Act as a whole.

[38] An overview of the provincial Act reveals the scope of the regulatory scheme introduced by the Quebec legislature. Like the Court of Appeal, I see this undertaking as involving the creation of a state monopoly that oversees each step leading up to the purchase of cannabis by citizens in order to protect the health and security of the public. The prohibitions set out in ss. 5 and 10, along with the other controls put in place by the Act, are the machinery of this undertaking. Specifically, prohibiting the possession and cultivation of cannabis plants contributes to the effectiveness of the state monopoly by steering consumers to the only legally authorized source of supply, that is, the state-owned enterprise.

[39] It is helpful to recall that, at the same time the provincial Act was enacted, the Quebec legislature amended the *Act respecting the Société des alcools du Québec*, CQLR, c. S-13, to create the SQDC, a subsidiary of the Société des alcools du Québec that would ensure the sale of cannabis "from a health protection perspective, in order to integrate consumers into, and maintain them in, the legal market without encouraging cannabis consumption" (s. 16.1 para. 1; see also s. 3 of Bill 157).

[40] The provincial Act sets out the various aspects governing the exercise of the SQDC's monopoly on the sale of cannabis (s. 25), including control over the location of retail outlets (ss. 27 and 33), control of the quality of the products offered (ss. 29, 44 and 45), a prohibition against selling to persons under 21 years of age (ss. 34 to 39), education of consumers on the health risks of cannabis (ss. 30, 31 para. 2, 41 and 57 para. 2), and compliance with display, signage and packaging standards (ss. 40 to 42, 56 and 57). In my view, the prohibitions and control mechanisms provided for by the provincial Act must be regarded as *means* chosen to achieve the *purposes* stated in the first paragraph of s. 1, that is, "to prevent and reduce cannabis harm in order to protect the health and security of the public and of young persons in particular" and "to ensure the preservation of the cannabis market's integrity". These prohibitions and control mechanisms follow logically from the stated purposes because they make it possible, as the second paragraph of the same section says, to regulate "the possession, cultivation, use, sale and promotion of cannabis".

[41] Like the provisions just mentioned, ss. 5 and 10 are part of the monopolistic logic intended by the Quebec legislature, and the prohibitions they impose are a means of achieving the objectives of public health and security.

[42] In reality, the impossibility of possessing and cultivating cannabis plants at home without risking penal sanctions has the effect of steering Quebec consumers to the safe source of supply that is the SQDC. As a result, they receive quality-controlled products and advice from sales employees who have been trained on the risks associated with cannabis consumption (on the first point, see ss. 29, 44 and 45 of the provincial Act and the *Regulation to determine other classes of cannabis that may be sold by the Société québécoise du cannabis and certain standards respecting the composition and characteristics of cannabis*, CQLR, c. C-5.3, r. 0.1; on the second point, see s. 1 and Sch. I of the *Regulation respecting training on the retail sale of cannabis and information to be communicated to a purchaser in the course of a cannabis sale*, CQLR, c. C-5.3, r. 1). The fact that consumers buy from the SQDC also means that they are subject to a series of requirements, the most important of which seems to me to be the one setting a minimum age of 21 years for purchasing cannabis from the SQDC.

[43] The essence of the position advanced by the appellant in this Court is that the purpose of the provincial Act could have been achieved by regulating — rather than completely prohibiting — home cannabis cultivation, for example by allowing the possession and cultivation for personal purposes of one, two or three cannabis plants. He argues that, by choosing absolute prohibitions instead, the provincial legislature interfered unduly in the exercise of the federal criminal law power. I note that the absolute nature of the prohibitions was also raised by the trial judge, who saw it as an indication that the Quebec legislature [translation] "in fact sought to mitigate the repeal of the former provisions criminalizing the personal cultivation and possession of cannabis plants" (para. 45).

[44] In my opinion, however, this distinction between the absolute prohibitions being challenged and the more flexible prohibitions mentioned with respect to the permitted number of plants is of no assistance to the appellant. Even if it is accepted that the objective of protecting the health and security of the public could have been achieved by regulating home cannabis cultivation less strictly *and not only* by completely prohibiting it, this argument is far from being determinative in identifying the pith and substance of the impugned provisions. When two approaches are considered to be potentially effective, it falls to legislative bodies to choose the one that is most likely to further the intended objectives. Indeed, this Court has pointed out on several occasions that considerations relating to the efficacy or wisdom of the means chosen are not helpful at the characterization stage (*Ward*, at paras. 18 and 22; *Reference re Firearms Act*, at para. 18, citing *Morgentaler*, at pp. 487-88; *Reference re Securities Act*, 2011 SCC 66, [2011] 3 SCR 837, at para. 90; *Reference re Anti-Inflation Act*, 1976 CanLII 16 (SCC), [1976] 2 SCR 373, at p. 425).

[45] In short, when viewed together with the other provisions of the provincial Act, ss. 5 and 10 do not have the separate and independent objective of prohibiting the possession and cultivation of cannabis plants for personal purposes. The prohibitions themselves must be seen as one means among a broad range of measures that the Quebec legislature has deemed necessary in order to achieve the provincial Act's public health and security objectives. In particular, the prohibitions act as strong incentives for the integration of "consumers into . . . the legal market" that ensures, among other things, control of the quality of the products offered, education on the risks of cannabis consumption and compliance with rules on the minimum age for purchasing cannabis (see s. 16.1 para. 1 of the *Act respecting the Société des alcools du Québec*; see also R.F., at para. 12).

(ii) Extrinsic Evidence

[46] In my view, the usefulness of the legislative debates in this appeal is relative. I adopt the Court of Appeal's observation that [translation] "[r]eading them tends . . . to show that the remarks made about the impugned provisions are consistent with the purpose identified earlier in analyzing the intrinsic evidence" (para. 72). The remarks made by the members of the Quebec legislature thus serve to confirm what was already apparent from the interaction between the impugned provisions and the rest of the prohibitions and control mechanisms provided for by the provincial Act, namely that the prohibitions against possession and cultivation at home help to ensure that consumers will buy from the SQDC.

[47] It can be seen from the proceedings of the Standing Committee on Health and Social Services that the members of the Quebec legislature considered two approaches to home cultivation: one relying on an absolute prohibition against the possession and cultivation of cannabis plants to ensure that consumers would buy from the state, and the other relying on tolerance of these practices as a lever in the fight against organized crime and the "empowerment" of low-income consumers (see National Assembly, *Journal des débats de la Commission permanente de la santé et des services sociaux*, vol. 44, No. 189, 1st Sess., 41st Leg., March 21, 2018, at pp. 22 (S. Jolin-Barrette) and 35 (M. Massé); National Assembly, *Journal des débats de la Commission permanente de la santé et des services sociaux*, vol. 44, No. 191, 1st Sess., 41st Leg., March 27, 2018, at p. 3 (S. Pagé)). The Quebec legislature clearly chose the first of these two approaches.

[48] A comment made by a member of the opposition, which the Minister responsible for Public Health later endorsed, is revealing: [translation] "Out of a concern for public security, out of a concern for public health, out of a concern for proceeding gradually, we make the choice, as a state, not to allow home cultivation, and for purposes of public health and security, we want to guide consumers to the stores of a subsidiary of the state-owned enterprise to make sure that cannabis is consumed responsibly" (*Journal des débats de la Commission permanente de la santé et des services sociaux*, March 21, 2018, at p. 22 (S. Jolin-Barrette)). The legislature's intention was to promote responsible consumption of the substance by establishing a scheme in which individuals, denied the option of cultivating their own cannabis, would be steered to SQDC outlets.

[…]

(b) Effects of the Impugned Provisions

[58] The effects of the impugned provisions are clear, and I agree with the manner in which the Superior Court described them in its reasons:

> [translation] ... the practical consequence of applying ss. 5 and 10 is one, to prevent citizens from possessing and cultivating cannabis plants for personal purposes and two, to force consumers to purchase cannabis from the SQDC.
>
> The legal consequences of the provincial provisions are one, to prohibit the possession of cannabis plants and the personal cultivation of cannabis and two, to impose penal sanctions for any violation. They also result in penal consequences for acts that were formerly criminal under federal legislation, the CDSA . [paras. 49-50]

[59] I would add, however, that while the impugned provisions do bring otherwise decriminalized conduct into the sphere of penal law, the consequences flowing from a contravention are very different from those arising under the provisions of the *CDSA* . Persons who contravene ss. 5 and 10 of the provincial Act are liable to fines that could be said to be relatively modest, since they range from $250 to $750.

[60] Together, the legal and practical effects described above confirm the conclusion I reached earlier after analyzing the intrinsic and extrinsic evidence. The purpose of ss. 5 and 10 of the provincial Act is not to suppress possession and cultivation at home as such, but rather to ensure the effectiveness of the state monopoly in order to protect the health and security of the public from cannabis harm.

[61] One final point concerning the effects of the impugned provisions warrants further comment. The intervener the Canadian Association for Progress in Justice submits that the colourability of the impugned provisions may be revealed by considering their effects, in addition to looking at the legislative debates. Specifically, it argues that ss. 5 and 10 of the provincial Act and a series of criminal offences set out in the federal Act have the *combined* effect of recriminalizing conduct that has nonetheless been decriminalized. The provincial prohibitions allegedly transform cannabis plants possessed or cultivated by individuals in Quebec into a form of "illicit cannabis" within the meaning of s. 2 of the federal Act, which defines this term as follows: ". . . cannabis that is or was sold, produced or distributed by a person prohibited from doing so under this Act or any provincial Act . . . ." The possession, distribution, cultivation and production of "illicit cannabis" are the subject of criminal offences under ss. 8(1)(b), 9(1)(a)(iv), 12(4)(a) and 13(1), respectively, of the federal Act. According to the intervener, the impugned provisions of the provincial Act therefore create not only regulatory offences but also criminal offences because of the "illicit" nature of the plants cultivated in Quebec dwelling-houses.

[62] I accept the premise that considering the legislative debates and analyzing effects may be helpful in establishing the colourability of a law. The Court stated this itself in *Reference re Firearms Act*, noting that "the effects of the law may suggest a purpose other than that which is stated in the law" and that a law "is sometimes said to be 'colourable'" where its effects diverge substantially from its stated aim (para. 18).

That being said, however, I cannot accept the argument that the recriminalization of conduct that has been decriminalized in this case is an effect of the provincial provisions, when their interaction with the federal Act is taken into account. Parliament drafted the definition of "illicit cannabis" by reference to provincial legislation and in such a way that conduct for which penal sanctions are imposed by the provinces is subject to the criminal prohibitions set out in ss. 8(1)(b), 9(1)(a)(iv), 12(4)(a) and 13(1) of the federal Act. The possibility that the possession or cultivation of one to four cannabis plants at home could be recriminalized therefore arises *solely* from the decision made by Parliament to contemplate provincial regulatory action in s. 2 of the federal Act. To put it simply, any possible recriminalization results not from the provincial provisions but only from the federal provisions.

[63] To accept the intervener's argument would mean that the enactment by a province of any prohibition against cannabis for regulatory purposes would be *ultra vires* because it would already be covered by the definition of "illicit cannabis" and by the possible application of the criminal prohibitions set out in ss. 8(1)(b), 9(1)(a)(iv), 12(4)(a) and 13(1) of the federal Act. In practical terms, this would negate the provinces' power to regulate the use of this substance. Such a result would be contrary to the view of federalism espoused by this Court and to the clear intention of Parliament. On this last point, Parliament obviously assumed that the provinces would be able to legislate with respect to cannabis within their fields of jurisdiction — hence the reference to provincial legislation in the definition of "illicit cannabis".

(c) Conclusion on Pith and Substance

[64] For the reasons given above, I conclude that the pith and substance of ss. 5 and 10 is to ensure the effectiveness of the state monopoly on the sale of cannabis in order to protect the health and security of the public, and of young persons in particular, from the harm caused by this substance. Prohibiting the possession and cultivation of cannabis plants is not in itself the *purpose* of the impugned provisions, but rather a *means* of steering consumers to the only source of supply considered to be reliable and safe.

2.2 *References re Greenhouse Gas Pollution Pricing Act*, 2021 SCC 11

In *References re Greenhouse Gas Pollution Pricing Act, 2021 SCC 11*, Chief Justice Wagner set out the overarching principles of the pith and substance doctrine, explaining its purpose and reviewing three central features of the pith and substance analysis:

(1) Overarching Principles

[51] At the first stage of the division of powers analysis, a court must consider the purpose and effects of the challenged statute or provision in order to identify its "pith and substance", or true subject matter: *2018 Securities Reference*, at para. 86; *Reference re Genetic Non-Discrimination Act*, 2020 SCC 17, at paras. 28 and 166. The court does so with a view to identifying the statute's or provision's main thrust, or dominant or most important characteristic: *Desgagnés Transport Inc. v. Wärtsilä Canada Inc.*, 2019 SCC 58, at para. 31. To determine the purpose of the challenged statute or provision, the court can consider both intrinsic evidence, such as the legislation's preamble or purpose clauses, and extrinsic evidence, such as Hansard or minutes of parliamentary committees: *Kitkatla Band v. British Columbia (Minister of Small Business, Tourism and Culture)*, 2002 SCC 31, [2002] 2 SCR 146, at para. 53; *Canadian Western Bank*, at para. 27. In considering the effects of the challenged legislation, the court can consider both the legal effects, those that flow directly from the provisions of the statute itself, and the practical effects, the "side" effects that flow from the application of the statute: *Kitkatla*, at para. 54; *R. v. Morgentaler*, 1993 CanLII 74 (SCC), [1993] 3 SCR 463, at p. 480. The characterization process is not technical or formalistic. A court can look at the background and circumstances of a statute's enactment as well as at the words used in it: *Ward v. Canada (Attorney General)*, 2002 SCC 17, [2002] 1 SCR 569, at para. 18.

[52] Three further points with respect to the identification of the pith and substance are important here. First, the pith and substance of a challenged statute or provision must be described as precisely as possible. A vague or general description is unhelpful, as it can result in the law being superficially assigned to both federal and provincial heads of powers or may exaggerate the extent to which the law extends into the other level of government's sphere of jurisdiction: *Desgagnés Transport*, at para. 35; *Reference re Assisted Human Reproduction Act*, 2010 SCC 61, [2010] 3 SCR 457 ("Assisted Human Reproduction Act"), at para. 190. However, precision should not be confused with narrowness. Instead, the pith and substance of a challenged statute or provision should capture the law's essential character in terms that are as precise as the law will allow: *Genetic Non-Discrimination*, at para. 32. It is only in this manner that a court can determine what the law is in fact "all about": *Desgagnés Transport*, at para. 35, quoting A. S. Abel, "The Neglected Logic of 91 and 92" (1969), 19 *U.T.L.J.* 487, at p. 490.

[53] Second, it is permissible in some circumstances for a court to include the legislative choice of means in the definition of a statute's pith and substance, as long as it does not lose sight of the fact that the goal of the analysis is to identify the true subject matter of the challenged statute or provision. In the courts below, a central issue was the permissibility of including the means of the statute in the definition of the subject matter of the GGPPA. In *Ward* and other cases, this Court cautioned against "confus[ing] the purpose of the legislation with the means used to carry out that purpose": *Ward*, at para. 25; see also *Quebec (Attorney General) v. Canada (Attorney General)*, 2015 SCC 14, [2015] 1 SCR 693, at para. 29; *Goodwin v. British Columbia (Superintendent of Motor Vehicles)*, 2015 SCC 46, [2015] 3 SCR 250, at para. 24. However, those cases did not establish a blanket prohibition on considering the means in characterizing the pith and substance of a law. Rather, they stand for the basic proposition that Parliament's or a provincial legislature's choice of means is not determinative of the legislation's true subject matter, although it may sometimes be permissible to consider the choice of means in defining a statute's purpose. This Court has in fact frequently included references to legislative means when defining the pith and substance of laws: *Ward*, at para. 28; *Reference re Firearms Act (Can.)*, 2000 SCC 31, [2000] 1 SCR 783 ("*Firearms*"), at paras. 4 and 19; *Reference re Employment Insurance Act (Can.), ss. 22 and 23*, 2005 SCC 56, [2002] 2 SCR 669, at para. 34; *2011 Securities Reference*, at para. 106. And there may be cases in which an impugned statute's dominant characteristic or main thrust is so closely tied to its means that treating the means as irrelevant to the identification of the pith and substance would make it difficult to define the matter of a statute or a provision precisely. In such a case, a broad pith and substance that does not include the means would be the very type of vague and general characterization, like "health" or "the environment", that this Court described as unhelpful in *Desgagnés Transport*, at paras. 35 and 167 (citing Assisted Human Reproduction Act, at para. 190).

[54] Even this Court's jurisprudence on the national concern doctrine illustrates that there is nothing impermissible about defining a matter with reference to the legislative means. In *Munro v. National Capital Commission*, 1966 CanLII 74 (SCC), [1966] SCR 663, the Court defined the matter in terms of both the overarching objective — ensuring that "the nature and character of the seat of the Government of Canada may be in accordance with its national significance" — and the legislative means for achieving this objective — "development, conservation and improvement of the National Capital Region": pp. 669 and 671. Similarly, in *Crown Zellerbach*, the Court did not define the matter of the statute broadly in terms of marine pollution. The definition of the matter was in fact a combination of the overarching purpose — controlling marine pollution — and the particular means that had been chosen — controlling the dumping of substances into the sea: pp. 436-37. La Forest J., dissenting, pointed out that regulating the dumping of substances into the sea was only one of multiple means to control marine pollution, given that pollution could also enter the sea through fresh water and through the air: p. 457.

[55] … [In] some cases the choice of means may be so central to the legislative objective that the main thrust of a statute or provision, properly understood, is to achieve a result in a particular way, which would justify including the means in identifying the pith and substance….

[56] Third, the characterization and classification stages of the division of powers analysis are and must be kept distinct. In other words, the pith and substance of a statute or a provision must be identified without regard to the heads of legislative competence. As Binnie J. noted in *Chatterjee v. Ontario (Attorney General)*, 2009 SCC 19, [2009] 1 SCR 624, at para. 16, a failure to keep these two stages of the analysis

distinct would create "a danger that the whole exercise will become blurred and overly oriented towards results". The characterization exercise must ultimately be rooted in the purpose and the effects of the impugned statute or provision.

2.3 *R. v. Morgentaler*, 1993 CanLII 74 (SCC), [1993] 3 SCR 463

R. v. Morgentaler, 1993 CanLII 74 (SCC), *[1993] 3 SCR 463* is an older example of the practical application of the pith and substance analysis. It marked the full acceptance of extrinsic evidence that goes 'beyond the four corners of the Act' for pith and substance doctrine. The case also goes through the classification stage of the analysis, but there was no controversy around the established principle that prohibiting abortion was the proper subject of the criminal law. As you read the excerpt below, consider whether the Sopinka J separates the characterization stage from the classification stage of analysis.

At issue in *Morgentaler* was the constitutionality of a Nova Scotian provincial law that made it an offence to perform an abortion outside a hospital. This prohibition on abortions outside of hospitals raised the spectre of invalidity because five years prior, in 1988, the Court had ruled that the *Criminal Code* provisions criminalizing abortion were unconstitutional because they violated women's *Charter* guarantee of security of the person (*R. v. Morgentaler*, 1988 CanLII 90 (SCC), [1988] 1 SCR 30). That 1988 decision meant that it was no longer a criminal offence to obtain or perform an abortion. In 1989, Dr. Henry Morgentaler confirmed that he planned to establish an abortion clinic in Halifax. The provincial legislation making it an offence to perform an abortion outside a hospital quickly followed. Thus, the crux of the issue concerned the 'true nature' or 'precise matter' of the provincial legislation.

> On March 16, 1989, the … Governor in Council approved two identical regulations, one under the Health Act, R.S.N.S. 1989, c. 195 (N.S. Reg. 33/89), and one under the Hospitals Act, R.S.N.S. 1989, c. 208 (N.S. Reg. 34/89), which prohibited the performance of an abortion anywhere other than in a place approved as a hospital under the Hospitals Act. At the same time it made a regulation (N.S. Reg. 32/89) pursuant to the Health Services and Insurance Act, R.S.N.S. 1989, c. 197, denying medical services insurance coverage for abortions performed outside a hospital. These regulations are referred to collectively as the "March regulations".
>
> … [O]n June 6, 1989, when the Minister of Health and Fitness introduced the Medical Services Act for first reading. The Act progressed rapidly through the legislature. It received third reading and Royal Assent on June 15, the last day of the legislative session. The relevant portions of the Act are as follows:
>
> 2 The purpose of this Act is to prohibit the privatization of the provision of certain medical services in order to maintain a single high-quality health-care delivery system for all Nova Scotians.
>
> 3 In this Act,
>
> (a) "designated medical service" means a medical service designated pursuant to the regulations;
>
> ...
>
> 4 No person shall perform or assist in the performance of a designated medical service other than in a hospital approved as a hospital pursuant to the Hospitals Act.
>
> 5 Notwithstanding the Health Services and Insurance Act, a person who performs or for whom is performed a medical service contrary to this Act is not entitled to reimbursement pursuant to that Act.
>
> 6 (1) Every person who contravenes this Act is guilty of an offence and liable upon summary conviction to a fine of not less than ten thousand dollars nor more than fifty thousand dollars.
>
> ...
>
> 7 Notwithstanding any other provision of this Act, where designated medical services are being performed contrary to this Act, the Minister may, at any time, apply to a judge of the Supreme Court for an injunction, and the judge may make any order that in the opinion of the judge the case requires.
>
> 8 (1) The Governor in Council, on the recommendation of the Minister, may make regulations
>
> (a) after consultation by the Minister with the Medical Society of Nova Scotia, designating a medical service for the purpose of this Act;
>
> ...
>
> The Medical Society was consulted after the passage of the Act, and a list of medical services was finalized. On July 20, 1989, the *Medical Services Designation Regulation*, N.S. Reg. 152/89, was made, designating the following medical services for the purposes of the Act:
>
> (a) Arthroscopy
>
> (b) Colonoscopy (which, for greater certainty, does not include flexible sigmoidoscopy)
>
> (c) Upper Gastro-Intestinal Endoscopy
>
> (d) Abortion, including a therapeutic abortion, but not including emergency services related to a spontaneous abortion or related to complications arising from a previously performed abortion
>
> (e) Lithotripsy
>
> (f) Liposuction
>
> (g) Nuclear Medicine
>
> (h) Installation or Removal of Intraocular Lenses
>
> (i) Eletromyography, including Nerve Conduction Studies
>
> The March regulations were revoked on the same day by N.S. Regs. 149-151/89. Item (d) of the new regulation continued the March regulations' prohibition of the performance of abortions outside hospitals. Section 5 of the Act continued the denial of health insurance coverage for abortions performed in violation of the prohibition.
>
> Despite these actions, Dr. Morgentaler opened his clinic in Halifax as predicted. At first the clinic only provided counselling and referrals to Dr. Morgentaler's Montreal clinic. On October 26, 1989, however, Dr. Morgentaler defied the Nova Scotia legislation by performing seven abortions. He announced that he had done so at a press conference later that day. Several days later he performed seven more abortions. He was charged with 14 counts of unlawfully performing a designated medical service, to wit, an abortion, other than in a hospital approved as such under the Hospitals Act, contrary to s. 6 of the Medical Services Act. Dr. Morgentaler publicly announced his resolve to continue his activities in contravention of the Act, and on November 6, 1989 the government of Nova Scotia obtained an interim injunction under s. 7 of the

Act to restrain him from further violations of the Act pending the resolution of the charges and the constitutional challenge in court: *Nova Scotia (Attorney General) v. Morgentaler* (1989), 1989 CanLII 5201 (NS SC), 64 D.L.R. (4th) 297 (N.S.S.C.T.D.), aff'd (1990), 1990 CanLII 7937 (NS CA), 69 D.L.R. (4th) 559 (N.S.S.C.A.D.), leave to appeal refused [1990] 2 SCR ix.

When the case proceeded to trial in June 1990, Dr. Morgentaler did not dispute that he had performed the abortions as alleged. He argued, instead, that the Act and the regulation were inconsistent with the Constitution of Canada and consequently of no force or effect, on the grounds that they violate women's *Charter* rights to security of the person and equality and that they are an unlawful encroachment on the federal Parliament's exclusive criminal law jurisdiction. He also argued that the regulation was an abuse of discretion by the provincial cabinet and therefore in excess of its jurisdiction.

[…]

B. Classification of Laws

(1) "What's the `Matter'?"

Classification of a law for purposes of federalism involves first identifying the "matter" of the law and then assigning it to one of the "classes of subjects" in respect to which the federal and provincial governments have legislative authority under ss. 91 and 92 of the Constitution Act, 1867. This process of classification is "an interlocking one, in which the British North America Act and the challenged legislation react on one another and fix each other's meaning": B. Laskin, "Tests for the Validity of Legislation: What's the `Matter'?" (1955), 11 *U.T.L.J.* 114, at p. 127. Courts apply considerations of policy along with legal principle; the task requires "a nice balance of legal skill, respect for established rules, and plain common sense. It is not and never can be an exact science": F. R. Scott, *Civil Liberties and Canadian Federalism* (1959), at p. 26.

A law's "matter" is its leading feature or true character, often described as its pith and substance: *Union Colliery Co. of British Columbia v. Bryden*, [1899] A.C. 580 (P.C.), at p. 587; see also *Whitbread v. Walley*, 1990 CanLII 33 (SCC), [1990] 3 SCR 1273, at p. 1286. There is no single test for a law's pith and substance. The approach must be flexible and a technical, formalistic approach is to be avoided. See Hogg, *Constitutional Law of Canada* (3rd ed. 1992), vol. 1, at p. 15-13. While both the purpose and effect of the law are relevant considerations in the process of characterization (see, e.g., *Attorney-General for Alberta v. Attorney-General for Canada*, 1938 CanLII 251 (UK JCPC), [1939] A.C. 117 (P.C.) (the *Alberta Bank Taxation Reference*), at p. 130; *Starr v. Houlden*, 1990 CanLII 112 (SCC), [1990] 1 SCR 1366, at pp. 1389, 1392), it is often the case that the legislation's dominant purpose or aim is the key to constitutional validity. Rand J. put it this way in *Switzman v. Elbling*, 1957 CanLII 2 (SCC), [1957] SCR 285, at pp. 302-3:

> The detailed distribution made by ss. 91 and 92 places limits to direct and immediate purposes of provincial action.... The settled principle that calls for a determination of the "real character", the "pith and substance", of what purports to be enacted and whether it is "colourable" or is intended to effect its ostensible object, means that the true nature of the legislative act, its substance in purpose, must lie within s. 92 or some other endowment of provincial power.

See also *Carnation Co. v. Quebec Agricultural Marketing Board*, 1968 CanLII 82 (SCC), [1968] SCR 238; *Canadian Indemnity Co. v. Attorney-General of British Columbia*, 1976 CanLII 195 (SCC), [1977] 2 SCR 504, at p. 512; *R. v. Big M Drug Mart Ltd.*, 1985 CanLII 69 (SCC), [1985] 1 SCR 295, at pp. 354-55, 357-58; and *R. v. Edwards Books and Art Ltd.*, 1986 CanLII 12 (SCC), [1986] 2 SCR 713, at pp. 744-45, 747 and 751 (Dickson C.J.), at p. 788 (Beetz J.), and at p. 807 (Wilson J.).

(2) Purpose and Effect

(a) "Legal Effect" or Strict Legal Operation

Evidence of the "effect" of legislation can be relevant in two ways: to establish "legal effect" and to establish "practical effect". The analysis of pith and substance necessarily starts with looking at the legislation itself, in order to determine its legal effect. "Legal effect" or "strict legal operation" refers to how the legislation as a whole affects the rights and liabilities of those subject to its terms, and is determined from the terms of the legislation itself. See Hogg, *supra*, at pp. 15-13 and 15-15. Legal effect is often a good indicator of the purpose of the legislation (see, e.g., *Attorney-General for Alberta v. Attorney-General for Canada*, 1947 CanLII 347 (UK JCPC), [1947] A.C. 503 (P.C.) (the *Alberta Bill of Rights case*), and *Saumur v. City of Quebec*, 1953 CanLII 3 (SCC), [1953] 2 SCR 299, at p. 326, Rand J.)), but is relevant in constitutional characterization even when it is not fully intended or appreciated by the enacting body. Thus in *Starr v. Houlden*, *supra*, the terms of reference of the Patricia Starr inquiry were held to duplicate the purposes and functions of a police investigation and preliminary inquiry into criminal allegations against specific individuals, which are criminal law matters, even though the province may not have intended that result.

The analysis of pith and substance is not, however, restricted to the four corners of the legislation (see, e.g., *Reference re Anti-Inflation Act*, 1976 CanLII 16 (SCC), [1976] 2 SCR 373, at pp. 388-89). Thus the court "will look beyond the direct legal effects to inquire into the social or economic purposes which the statute was enacted to achieve", its background and the circumstances surrounding its enactment (Hogg, *supra*, at p. 15-13) and, in appropriate cases, will consider evidence of the second form of "effect", the actual or predicted practical effect of the legislation in operation (*Alberta Bank Taxation Reference, supra*, at p. 130). The ultimate long-term, practical effect of the legislation will in some cases be irrelevant. See *Reference re Anti-Inflation Act*, *supra*, at p. 389.

(b)The Use of Extrinsic Materials

In determining the background, context and purpose of challenged legislation, the court is entitled to refer to extrinsic evidence of various kinds provided it is relevant and not inherently unreliable: *Reference re Residential Tenancies Act, 1979*, 1981 CanLII 24 (SCC), [1981] 1 SCR 714, at p. 723, *per* Dickson J. This clearly includes related legislation (such as, in this case, the March regulations and the former s. 251 of the Criminal Code), and evidence of the "mischief" at which the legislation is directed: *Alberta Bank Taxation Reference, supra*, at pp. 130-33. It also includes legislative history, in the sense of the events that occurred during drafting and enactment; as Ritchie J., concurring in *Reference re Anti-Inflation Act*, *supra*, wrote at p. 437, it is "not only permissible but essential" to consider the material the legislature had before it when the statute was enacted.

The former exclusionary rule regarding evidence of legislative history has gradually been relaxed (*Reference re Upper Churchill Water Rights Reversion Act*, 1984 CanLII 17 (SCC), [1984] 1 SCR 297, at pp. 317-19), but until recently the courts have balked at admitting evidence of legislative debates and speeches. Such evidence was described by Dickson J. in *Reference re Residential Tenancies Act, 1979, supra*, at p. 721 as "inadmissible as having little evidential weight", and was excluded in *Reference re Upper Churchill Water Rights Reversion Act, supra*, at p. 319, and *Attorney General of Canada v. Reader's Digest Association (Canada) Ltd.*, 1961 CanLII 84 (SCC), [1961] SCR 775. The main criticism of such evidence has been that it cannot represent the "intent" of the legislature, an incorporeal body, but that is equally true of other forms of legislative history. Provided that the court remains mindful of the limited reliability and weight of Hansard evidence, it should be admitted as relevant to both the background and the purpose of legislation. Indeed, its admissibility in constitutional cases to aid in determining the background and purpose of legislation now appears well established. See *Reference re Anti-Inflation Act, supra*, at p. 470, *per* Beetz J. (dissenting); *R. v. Edwards Books and Art Ltd.*, *supra*, at p. 749; *Starr v. Houlden, supra*, at pp. 1375-76, 1404 (distribution of powers); *R. v.*

Whyte, 1988 CanLII 47 (SCC), [1988] 2 SCR 3, at pp. 24-25; *Irwin Toy Ltd. v. Quebec (Attorney General)*, 1989 CanLII 87 (SCC), [1989] 1 SCR 927, at pp. 983-84 (Charter); and *R. v. Mercure*, 1988 CanLII 107 (SCC), [1988] 1 SCR 234, at pp. 249-251 (language rights). I would adopt the following passage from Hogg, *supra*, as an accurate summary of the state of the law on this point (at pp. 15-14 and 15-15):

> In determining the "purpose" of a statute in this special sense, there is no doubt as to the propriety of reference to the state of law before the statute and the defect in the law (the "mischief") which the statute purports to correct. These may be referred to under ordinary rules of statutory interpretation. Until recently, there was doubt about the propriety of reference to parliamentary debates (Hansard) and other sources of the "legislative history" of the statute. The relevance of legislative history is obvious: it helps to place the statute in its context, gives some explanation of its provisions, and articulates the policy of the government that proposed it. Legislative history has usually been held inadmissible in Canada under ordinary rules of statutory interpretation. But the interpretation of a particular provision of a statute is an entirely different process from the characterization of the entire statute for purposes of judicial review. There seems to be no good reason why legislative history should not be resorted to for the latter purpose, and, despite some earlier authority to the contrary, it is now established that reports of royal commissions and law reform commissions, government policy papers and even parliamentary debates are indeed admissible. [Footnotes omitted.]

I would therefore hold, as did Freeman J.A. in the Court of Appeal, that the excerpts from Hansard were properly admitted by the trial judge in this case. In a nutshell, this evidence demonstrates that members of all parties in the House understood the central feature of the proposed law to be prohibition of Dr. Morgentaler's proposed clinic on the basis of a common and almost unanimous opposition to abortion clinics *per se*. I will return to the evidence below.

(c) *Practical Effect*

In the present case the Attorney General of Nova Scotia submits that the evidence shows that the future administration of the Act will not result in a restriction on abortion services; the respondent submits the opposite. This raises the question of the relevance of evidence of practical effect. I have noted that the legal effect of the terms of legislation is always relevant. Barring material amendments, it does not change over time. The practical effect of legislation, on the other hand, has a less secure status in constitutional analysis. Practical effect consists of the actual or predicted results of the legislation's operation and administration (see, e.g., *Saumur*, *supra*). Courts are often asked to adjudicate the constitutionality of legislation which is not yet in force or which, as here, has only been in force a short time. In such cases any prediction of future practical effect is necessarily short-term, since the court is not equipped to predict accurately the future consequential impact of legislation.

In the *Anti-Inflation Act* reference, *supra*, Laskin C.J. was willing to admit evidence of the circumstances in which the legislation was passed (at p. 391), but did not admit evidence of its predicted operation and effect, finding that "no general principle of admissibility or inadmissibility can or ought to be propounded by this Court" (at p. 389). The difficulty with practical effect is that whereas in one context practical effect may reveal the true purpose of the legislation (see *Saumur*, *supra*), in another context it may be incidental and entirely irrelevant even though it is drastic (*Attorney-General for Saskatchewan v. Attorney-General for Canada*, 1948 CanLII 317 (UK JCPC), [1949] A.C. 110 (P.C.), *Canadian Indemnity Co. v. Attorney-General of British Columbia, supra*, *Whitbread v. Walley*, *supra*, at p. 1286); and in yet another context provincial and federal enactments with the same practical impact may both stand if the matter to which they relate has two "aspects" of roughly equivalent importance, one within federal and the other within provincial competence (*Hodge v. The Queen* (1883), 9 App. Cas. 117 (P.C.), at p. 130; *Bell Canada v. Quebec (Commission de la santé et de la sécurité du travail)*, 1988 CanLII 81 (SCC), [1988] 1 SCR 749).

In the majority of cases the only relevance of practical effect is to demonstrate an *ultra vires* purpose by revealing a serious impact upon a matter outside the enacting body's legislative authority and thus either contradicting an appearance of *intra vires* or confirming an impression of *ultra vires*. It was in light of the difficult status of practical effect (particularly as exemplified in *Walter v. Attorney General of Alberta*, 1969 CanLII 64 (SCC), [1969] SCR 383, wherein provincial legislation banning communal landholding was held *intra vires* even though the legislation drastically infringed the Hutterite community's religious freedom) that Wilson J., concurring in *R. v. Big M Drug Mart Ltd., supra*, held that legislative purpose is the focal point in distribution of powers analysis. One of the issues in that case was whether the *Lord's Day Act*, R.S.C. 1970, c. L-13, was enacted pursuant to Parliament's criminal law power. Dickson J. (as he then was), writing for the majority, held that the Act was valid criminal law because its purpose was to compel religious observance of a Sunday sabbath (at p. 352), and emphasized that his conclusion depended on the identification of the purpose of the Act (at p. 355). Wilson J. held, in a passage not in conflict with Dickson J.'s approach to division of powers, that the pith and substance of legislation is determined through "an examination of the primary legislative purpose with a view to distinguishing the central thrust of the enactment from its merely incidental effects" (at p. 357). She concluded, at p. 358, that:

> Only when the effects of the legislation so directly impinge on some other subject matter as to reflect some alternative or ulterior purpose do the effects themselves take on analytic significance.

If, however, pith and substance can be determined without reference to evidence of practical effect, the absence of evidence that the legislation has a practical effect in line with this characterization will not displace the conclusion as to the legislation's invalidity. In such a case, "evidence as to the likely effect of legislation would not add anything useful to the task of characterization, but would merely bear on the wisdom or efficacy of the statute. In those cases the evidence is not relevant" (Hogg, *supra*, at p. 15-16). See also *Reference re Anti-Inflation Act, supra*, at pp. 424-25. Such evidence will not change the legislation's "matter", and only goes to the effectiveness of the statute to fulfil its object. The court is not concerned with the wisdom of a statute, and the government surely cannot justify legislation already determined to be *ultra vires* by arguing that it will not realize its aim or objective. Moreover, as I have said, legislation is often considered before experience has shown its actual impact, and prediction of future impact is necessarily short-term. I would adapt what La Forest J. said in another context (*R. v. Edwards Books and Art Ltd., supra*, at p. 803) to this situation: "[i]t is undesirable that an Act be found constitutional today and unconstitutional tomorrow" simply because of the absence of conclusive evidence as to future impact or the possibility of a change in practical effect.

[…]

An examination of the terms and legal effect of the Medical Services Act and the *Medical Services Designation Regulation*, their history and purpose and the circumstances surrounding their enactment leads to the conclusion that the legislation's central purpose and dominant characteristic is the restriction of abortion as a socially undesirable practice which should be suppressed or punished. Although the evidence of the legislation's practical effect is equivocal, it is not necessary to establish that its immediate or future practical impact will actually be to restrict access to abortions in order to sustain this conclusion.

(1) Legal Effect: the Four Corners of the Legislation

Starting with the terms of the legislation, the Medical Services Act makes it an offence subject to significant fines (s. 6) to perform abortions or other services designated by the *Medical Services Designation Regulation* outside a hospital approved as such under the Hospitals Act (s. 4). It is impossible to tell from the legislation itself whether this amounts to a total prohibition of abortion (which all parties concede would be *ultra vires* the province), since extrinsic evidence is necessary to establish that abortions are available in Nova Scotia hospitals. The Act also denies

public health insurance coverage for the performer and recipient of such services (s. 5), and provides for injunctive relief against violations of its terms (s. 7). It is entitled "An Act to Restrict the Privatization of Medical Services", and its purpose is expressed to be the prohibition of the privatization of certain medical services in order to maintain a single high-quality health care delivery system in the province (s. 2). The allegation of *ultra vires* and the decisions in the courts below focused on the offence provisions of the legislation. No argument was directed toward the "de-insurance" section in this Court (s. 5). Although the "de-insurance" and injunction provisions clearly enhance the practical clout of the prohibition, they do not require independent consideration in the context of this case. It is sufficient for the purposes of characterizing this legislation to concentrate on the prohibition of the performance of a designated service outside a hospital. It is apparent from the combined effect of the offence and the regulation that one purpose of the legislation is to prohibit the establishment of free-standing abortion clinics.

The majority in the Court of Appeal conceded that the province had the legislative authority to pass a law in the present form. I acknowledge that the legislation has the legal effect of preventing privatization by prohibiting the private (i.e., outside a hospital) provision of the designated services. But the legislation expressly prohibits the performance of abortions in certain circumstances with penal consequences, a subject, as I have said, traditionally regarded as part of the criminal law. In *Scowby v. Glendinning*, 1986 CanLII 30 (SCC), [1986] 2 SCR 226, a majority of this Court held provincial legislation creating an offence of arbitrary arrest or detention and a right to relief in the form of *habeas corpus* to be suspect on its face since arbitrary arrest or detention and the availability of *habeas corpus* in such circumstances have been dealt with by Parliament in the criminal law "almost since the advent of Confederation" (at p. 240). Likewise, one of the reasons behind this Court's invalidation of a municipal by-law prohibiting street prostitution in *Westendorp v. The Queen*, 1983 CanLII 1 (SCC), [1983] 1 SCR 43, was that conduct relating to prostitution has long been regarded as criminal. The present legislation, prohibiting traditionally criminal conduct, is therefore of questionable validity on its face: cf. *Rio Hotel Ltd. v. New Brunswick (Liquor Licensing Board)*, 1987 CanLII 72 (SCC), [1987] 2 SCR 59, at p. 80, *per* Estey J. (concurring in the result).

This conclusion makes it unnecessary to invoke the "colourability doctrine", but since it figured prominently in the courts below and in argument before us, I will address it briefly. The respondent attacks the legislation on the basis that it is colourable criminal law. The "colourability doctrine" in the distribution of powers is invoked when a law looks as though it deals with a matter within jurisdiction, but in essence is addressed to a matter outside jurisdiction: *Starr v. Houlden, supra*, at p. 1403; *Reference re Upper Churchill Water Rights Reversion Act, supra*, at p. 332; *Ladore v. Bennett*, 1939 CanLII 270 (UK JCPC), [1939] A.C. 468 (P.C.), at p. 482. There is no need to invoke the doctrine in this case because while the Act states in its title and s. 2 that its aim is to prohibit the privatization of medical services, there are doubts about the legislation's *vires* on its face due to the fact that it appears to occupy ground historically occupied by the criminal law. Moreover the ordinary approach to pith and substance entitles the Court to look beyond the terms of the legislation. As Rand J. declared in the *Margarine Reference, supra*, at p. 48, a statement of purpose is at most "a fact to be taken into account, the weight to be given to it depending on all the circumstances".

In any event, the colourability doctrine really just restates the basic rule, applicable in this case as much as any other, that form alone is not controlling in the determination of constitutional character, and that the court will examine the substance of the legislation to determine what the legislature is really doing:

> [t]he legislative bodies cannot, by statutory recitals, settle the classification of their own statutes for purposes of the distribution of powers.... Selection of the aspect that matters is the exclusive prerogative of the court, and the so-called doctrine of colourability is simply an instance of this rule....
>
> See W. R. Lederman, "The Balanced Interpretation of the Federal Distribution of Legislative Powers in Canada" (1965), reprinted in Lederman, *Continuing Canadian Constitutional Dilemmas* (1981), 266, at p. 282; see also A. S. Abel, "The Neglected Logic of 91 and 92" (1969), 19 *U.T.L.J.* 487, at p. 494; *Attorney-General for Ontario v. Reciprocal Insurers*, 1924 CanLII 460 (UK JCPC), [1924] A.C. 328 (P.C.), at p. 337; and *Central Canada Potash Co. v. Saskatchewan*, 1978 CanLII 21 (SCC), [1979] 1 SCR 42, at p. 76. Under either the basic approach to pith and substance or the "colourability doctrine", therefore, we need to look beyond the four corners of the legislation to see what it is really about. As stated by Laskin C.J. in *Potash*, *supra*, at p. 76, "[i]t is nothing new for this Court, or indeed, for any Court in this country seized of a constitutional issue, to go behind the words used by a Legislature and to see what it is that it is doing".

(2) Beyond the Four Corners

Duplication of Criminal Code Provisions

Once the legal effect of legislation is ascertained, it can be compared with that of any relevant legislation passed by the other level of government. The majority of the Court of Appeal found that the present legislation effectively duplicated s. 251 (now s. 287) of the Criminal Code. Freeman J.A. held, at pp. 367 and 371-72, that:

Using s. 251 as a starting point, even a cursory examination discloses that the Medical Services Act has an impact and effect on abortions in private clinics virtually indistinguishable from that of s. 251.

...

> If a distinction exists, it is a philosophical one too subtle to alter the outcome. Under either piece of legislation, a doctor who performed an abortion in a private clinic might find a policeman in the waiting room. He or she could be convicted on precisely the same evidence under either enactment.

Provincial legislation has been held invalid when it employs language "virtually indistinguishable" from that found in the Criminal Code: *Nova Scotia Board of Censors v. McNeil*, 1978 CanLII 6 (SCC), [1978] 2 SCR 662, at p. 699; *Rio Hotel Ltd. v. New Brunswick (Liquor Licensing Board), supra*, at pp. 70-71 and 80; and *Starr v. Houlden, supra*, at pp. 1402 and 1405-6. However, even when the legal effect of federal and provincial legislation is virtually identical this does not necessarily determine validity, since the provinces can enact provisions with the same legal effect as federal legislation provided this is done in pursuit of a provincial head of power: *O'Grady v. Sparling*, 1960 CanLII 70 (SCC), [1960] SCR 804; *Smith v. The Queen*, 1960 CanLII 12 (SCC), [1960] SCR 776; *Stephens v. The Queen*, 1960 CanLII 71 (SCC), [1960] SCR 823; *R. v. Chiasson* (1982), 1982 CanLII 2959 (NB CA), 39 N.B.R. (2d) 631 (C.A.), at p. 636, aff'd 1984 CanLII 136 (SCC), [1984] 1 SCR 266. The duplication of Criminal Code language may raise an inference that the province has stepped into the realm of the criminal law; the more exact the reproduction, the stronger the inference that this is the dominant purpose of the enactment.

The guiding principle is that the provinces may not invade the criminal field by attempting to stiffen, supplement or replace the criminal law (*Reference re Freedom of Informed Choice (Abortions) Act* (1985), 1985 CanLII 2909 (SK CA), 44 Sask. R. 104 (C.A.)) or to fill perceived defects or gaps therein (*Scowby v. Glendinning, supra*, at p. 238). The legal effect of s. 251 and the present legislation, each taken as a whole, is quite different: among other things, s. 251 made it an offence for a woman to obtain an abortion, and prescribed the burdensome "therapeutic abortion committee" system and the "life or health" criterion for a legal abortion, none of which are present in the Act and regulation; and the present legislation prohibits other services besides abortion and directly concerns public health insurance coverage. Freeman J.A. was clearly right, however, that in so far as it prohibits abortion clinics the legal effect of the medical services legislation is completely embraced by s. 251

and, had the latter provision not been struck down, the present legislation would have been redundant in that respect. Section 251 is now, of course, inoperative. The absence of operative federal legislation does not enlarge provincial jurisdiction, though. It simply means that if the provincial legislation is found to be *intra vires*, no problem of paramountcy arises.

In my opinion the overlap of legal effects between the now defunct criminal provision and the Nova Scotia legislation is capable of supporting an inference that the legislation was designed to serve a criminal law purpose. It is a piece in the puzzle which along with the other evidence may demonstrate the true purpose of the legislation.

Background and Surrounding Circumstances

The events leading up to and including the enactment of the Act and regulation do not support the appellant's assertions that the pith and substance of the legislation relate to provincial jurisdiction over health. On the contrary, they strengthen the inference that the impugned Act and regulation were designed to serve a criminal law purpose.

(i) The Course of Events

It is clear that the catalyst for government action was the rumour and later announcement of Dr. Morgentaler's intention to open his clinic. The Crown concedes this. The respondent was clearly, as the trial judge concluded, a "mischief" against which the legislation was directed. The government knew of Dr. Morgentaler's intention to open a clinic by some time in January 1989. It responded with the March regulations, which prohibited abortions outside hospitals and "de-insured" such services. The direct and exclusive aim of this action was to stop the Morgentaler clinic and no one disputes that. The Minister of Health made this clear upon announcing the regulations:

> ... Cabinet has today approved two new regulations relating to the provision of abortion services.
>
> As all members know, it is not the policy of this government to endorse or support in any way the provision of these services through free-standing clinics or other facilities which do not fall within the category of an approved hospital.

(Nova Scotia, House of Assembly, *Debates and Proceedings* (March 16, 1989), at p. 1008.)

The March regulations singled out abortion, and the Morgentaler clinic in particular.

In May 1989, the March regulations were challenged in court by CARAL on the ground that they were unconstitutional: see *Canadian Abortion Rights Action League Inc. v. Nova Scotia (Attorney General), supra*. Shortly before the date when that action was first to come on for hearing (June 22, 1989), and days before the close of the legislative session, the government introduced and rushed the Act through the House of Assembly. It was introduced on June 6 and received third and final reading and royal assent on June 15. The legislation was enacted in what can only be considered great haste. The Act, considered along with the services that were proposed to be designated, accomplished all the purposes of the March regulations. Yet instead of singling out abortion, it took the form of a general "floating" prohibition of the performance of medical services other than in a hospital, which would crystallize upon the designation of several services among which abortion was to be found. On July 20, 1989, the Executive Council made the *Medical Services Designation Regulation* and simultaneously revoked the March Regulations. I am in complete agreement with Freeman J.A.'s characterization of the course of events, at pp. 376-77, which I reproduce again here for convenience:

> 2. The "March regulations" were obviously aimed at Morgentaler clinics. Hon. David Nantes, Health Minister, made that clear when he announced them to the legislature .... The Medical Services Act was presented to the legislature following a court challenge to the March regulations. It was introduced on June 6, 1989, and passed, with the appearance of last-minute haste, the day the House closed on June 15, 1989. The March regulations were encompassed by the Medical Services Act and its regulation. They were revoked, no longer necessary, on July 20, 1989, the day the regulation was passed under the Medical Services Act.

Neither the timing nor the overlap of subject matter can be viewed as coincidental. It is reasonable to infer, as did the trial judge, that the government believed that the new legislation would accomplish the purpose of the March regulations, and intended it to do so. The March regulations were the first response to Dr. Morgentaler's announcement, and the subsequent legislation was the continuation and consolidation of that response. Together they constituted a hastily devised plan aimed directly at ridding the province of Dr. Morgentaler and his proposed clinic. The course of events suggests that this purpose was the principal purpose of the legislation and contributes to the impression that privatization and quality assurance were only incidental concerns at best.

(ii) Hansard

I have reviewed the evidence of the legislative debates on the Medical Services Act, and have concluded that they give a clear picture of what the members of the House, both government and opposition, saw as being in issue. Both the trial judge and Freeman J.A. referred extensively to excerpts from Hansard. The following passage from the trial judge's reasons, at pp. 300-301, fairly captures the flavour of the proceedings:

> During the debate at the time of second reading on June 12, 1989, the Opposition Health Critic, Sandra Jolly, says at page 4678:
>
> "... It is a dilemma that is both complex and emotional and the Liberal caucus of Nova Scotia agrees with the Minister of Health and Fitness that the Morgentaler clinic should not be set up in this province. I want to make that point very clear. (Applause)
>
> "The Liberal caucus is of the opinion that it is unnecessary for the clinic to come to Nova Scotia, so in that part of the bill, we do agree with the current government. We are in agreement and we have stated that right from the very beginning, that we do not feel that the clinic is required here. What concerns me is that the government has very hurriedly put together this legislation, and what they are doing is not only trying to work at keeping the Morgentaler clinic out, but we really do see it as a regression or a step backwards in regard to medical services for the people of Nova Scotia."
>
> The Opposition critic went on at length expressing concerns about the broad implications of the Bill.
>
> When the Minister of Health had a chance to respond, he states: (at page 4716):
>
> "I heard the most weak-kneed, weak-hearted support for the question of the control of free-standing abortion clinics that I heard yet in this entire session of the Legislature. It was always the Liberal caucus that has this position, we have this position. Well, I am going to make mine personal and say I, as the Minister of Health and I, as an MLA, am not supportive of free-standing abortion clinics." (Applause)
>
> On June 5, 1989, the day before the proposed *Act* was introduced in First Reading, the Minister of Health and Fitness, in discussions concerning the budget estimates for the Department of Health said at p. 785:
>
> "... we have adopted a policy as government that we are not going to be supportive [of free-standing abortion clinics] and we will do everything in our effort to stop them. That is what we have said and that is what we are doing, if we need more steps, if we have to take more steps, we are going to take them. I am going to be carrying out that policy at the direction of my government and I am going to be supportive of that policy."
>
> Freeman J.A. made reference, among others, to the following excerpts, at pp. 375-76:

Paul MacEwan, member for Cape Breton Nova, said:

> "So certainly, you know, if this government wants to pose as being the great champion of those that want to keep Mr. Morgentaler out of Nova Scotia, let it be noted that it was the very last thing that they thought of before they adjourned the House for the year....
>
> "Now we are led to believe that this is a bill that is not really just to restrict the privatization of medical services, whatever that is, but it is a bill to make it impossible or to make it unlikely I suppose that the abortion clinic that Morgentaler wants to establish can be set up ..."

Following the remarks by members of opposition parties Mr. Nantes spoke again:

> "I do not think you can play both sides of this issue. You cannot criticize the health care system and say, we do it all wrong and talk about clinics and all that sort of thing without coming out on this particular element. Do you support or do you not support a free-standing abortion clinic? I want you to know that not only can I speak personally, but also, I think we represent the consensus and overwhelming view of this side of the legislature. (Applause)
>
> "I think I am even prepared to go a little further and say that I do think it represents the majority view of quite a number of members on the other side of the house, also." (Applause)

The Hansard evidence demonstrates both that the prohibition of Dr. Morgentaler's clinic was the central concern of the members of the legislature who spoke, and that there was a common and emphatically expressed opposition to free-standing abortion clinics *per se*. The Morgentaler clinic was viewed, it appears, as a public evil which should be eliminated. The concerns to which the appellant submits the legislation is primarily directed -- privatization, cost and quality of health care, and a policy of preventing a two-tier system of access to medical services -- were conspicuously absent throughout most of the legislative proceedings. They were emphasized by the Minister, Mr. Nantes, on moving second reading of the bill on June 12, 1989. This does not, however, in my view, detract significantly from the overall impression left by the debates.

Of course, one must be mindful of the limited use to which such evidence can be put, as I discussed earlier. To quote Kennedy Prov. Ct. J., at first instance, at p. 301:

I recognize that it would be folly for a court to conclude that everything that is said in a political forum has meaning in relation to the characterization of the legislation produced by that body.

Nonetheless, I see no reason to interfere with Freeman J.A.'s assessment of the tone of the proceedings, at p. 367:

> One need not look beyond the pages of Hansard ... to realize the sense of moral outrage of representatives in the House of Assembly engendered by the prospect of Morgentaler clinics in Nova Scotia. Moral considerations attach not only to the performance of abortions, but to where they are performed and under what circumstances.

The appellant argues that even if the object of the legislation was to suppress free-standing abortion clinics on grounds of public morals, this is not fatal to provincial jurisdiction. Although there has been some recognition of a provincial "morality" power, it is clear that the exercise of such a power must be firmly anchored in an independent provincial head of power: *Rio Hotel Ltd. v. New Brunswick, supra*, at pp. 71-80; *Attorney General for Canada and Dupond v. City of Montreal*, 1978 CanLII 201 (SCC), [1978] 2 SCR 770; R. Pepin, "Le pouvoir des provinces canadiennes de légiférer sur la moralité publique" (1988), 19 *R.G.D.* 865; *Attorney General of Canada v. Law Society of British Columbia*, 1982 CanLII 29 (SCC), [1982] 2 SCR 307, at p. 364.

While legislation which authorizes the establishment and enforcement of a local standard of morality does not *ipso facto* "invade the field of criminal law" (see *Nova Scotia Board of Censors v. McNeil*, *supra*, at pp. 691-92), it cannot be denied that interdiction of conduct in the interest of public morals was and remains one of the classic ends of the criminal law, as established in the *Margarine Reference, supra*, at p. 50: see *Westendorp v. The Queen*, *supra*, and *Johnson v. Attorney General of Alberta*, 1954 CanLII 68 (SCC), [1954] SCR 127, at pp. 148-49.

As Wilson J. recognized in *Morgentaler (1988), supra*, at p. 171, a woman's decision to have an abortion is "profound[ly] social and ethical;" indeed it is "essentially a moral decision" (cf. M.L. McConnell, "`Even by Commonsense Morality': *Morgentaler, Borowski* and the Constitution of Canada" (1989), 68 *Can. Bar Rev.* 765, at p. 766) and it seems clear to me that the present legislation, whose primary purpose is to prohibit abortions except in certain circumstances, treats of a moral issue.

In view of the foregoing, there is a strong inference that the purpose of the legislation and its true nature relate to a matter within the federal head of power in respect of criminal law. In order to determine whether this is its dominant purpose or characteristic, it is necessary to compare the above indicia of federal subject matter with indications of provincial objectives.

(iii) Searching for Provincial Objectives

At trial the appellant presented evidence that the Act's objectives were to prevent privatization and the consequent development of a two-tier system of medical service delivery, to ensure the delivery of high-quality health care, and to rationalize the delivery of medical services so as to avoid duplication and reduce public costs. The principal Crown witness on these points, John Malcom, the Health Department Administrator, testified that Nova Scotia's health care system evolved around the public hospital and that there have never been private, "for-profit" medical clinics in the province. He said that Nova Scotia has a policy of equal access to health care services, and that duplication of health care services creates a two-tier system. Moreover, his evidence was that rationalization of health care services was the most cost-effective approach.

It may be that this evidence represented the policy of the government of Nova Scotia at one time. The respondent correctly pointed out, however, that this evidence was not established at trial to have been the basis for the impugned legislation. Indeed, Kennedy Prov. Ct. J. considered the evidence and found that any privatization concerns were "incidental to the paramount purpose of the legislation" (at p. 302). I see no good reason to question this finding.

First, as to the health and safety of women and the argument that the in-hospital requirement was enacted because of a concern over quality assurance, there is no evidence in the record to indicate that abortions performed in clinics like Dr. Morgentaler's pose any danger to the health of women. Counsel conceded that the quality of medical service in free-standing abortion clinics is comparable to that available in hospitals. I also note that in *Morgentaler (1988)*, *supra*, Beetz J. held that studies, experience and expert evidence established that abortions can safely be performed in clinics and that the in-hospital requirement was no longer justified from a medical point of view. Since the appellant agrees that the quality of medical service in clinics is comparable to that in hospitals, the argument that the legislation was directed at quality assurance and women's health and safety is deprived of any force.

Second, the government did not express concerns about privatization in relation to this legislation or the March regulations until the Act was moved for second reading. Again, I would adopt Freeman J.A.'s statement of the relevant facts, at pp. 376-77:

> 1. Privatization of medical services had not been enunciated as a government objective prior to the introduction of the Medical Services Act. It was not mentioned in the Throne Speech on February 23, 1989. The Throne Speech did say that a Royal Commission Report was being awaited. The order-in-council establishing the Royal Commission made no reference to privatization.

...

3. In explaining the desirability of avoiding the pitfalls of privatization, the Crown relied heavily on economic considerations. The report of the Royal Commission on Health Costs was being awaited, as the Throne Speech noted. In passing the Medical Services Act on June 15, 1989, the legislature elected to do so without the benefit of observations or recommendations by the Royal Commission....

On February 23, 1989, just three weeks before the adoption of the March regulations, the Throne Speech was delivered. Although it discussed health care policy, it made no mention of a policy with respect to privatization. As Freeman J.A. observes, it did refer to the Royal Commission on Health Care, which had been established in 1987 to undertake a thorough examination of the province's health care system. The Throne Speech indicated that the government was awaiting the Commission's report.

That report was delivered in December 1989. Its recommendations were inconsistent with a policy of opposing privatization. It recommended, *inter alia*, moving as many services as possible out of hospitals and minimizing the length of hospital stays, in order to reduce public health care costs. It stated, in part, that while institutions should continue to be the focal points of health care delivery in Nova Scotia:

... there is increasing understanding that many health care services can be provided safely and appropriately outside of institutional settings.

John Malcom, the Crown health care policy expert, testified, on cross-examination, that the directions enunciated in the report were consistent with the approach the Department of Health had been taking. The Throne Speech of 1990, delivered two months after the report, discussed the report, and again -- understandably, in light of the Commission's recommendations -- made no mention of a policy of opposing the private delivery of health care services.

Third, it is significant that there is no evidence of any prior study or consultation regarding the cost-effectiveness or quality of medical services delivered in private clinics. Again, Freeman J.A.'s words, at p. 377, are apropos and I repeat them for convenience:

5. The Department of Health had been engaged in discussions with the Medical Society of Nova Scotia to have more health care services delivered outside of hospitals. The Medical Society was not consulted about the *Act* prior to its introduction. The evidence suggests the *Act* runs counter to the direction of the talks.

The Medical Society was not consulted until after the legislation was introduced, and then only to discuss the services to be designated. This would not be particularly significant on its own, but, according to the evidence of Dr. Vincent Audain, who was the president of the Medical Society at the relevant time, the Medical Society had been engaged in discussions with government toward moving more health care services outside hospitals. Dr. Audain learned of the Act through a telephone message the day the bill was introduced. He testified that the Society was perturbed by this unexpected action and suspected that the motive behind it was the "abortion issue". The Society passed a resolution, which it communicated to the government, condemning the legislation on the basis that it would have a negative impact on the delivery of medical care, would add to the cost of hospital care and conflict with emerging technological advances in medicine. The legislation was seen to contradict the government's stated policy goals of moving more services outside hospitals. Furthermore, according to Dr. Audain, when the Medical Society was consulted in June 1989 as to the medical services to be designated, the restriction of abortion was non-negotiable.

Although the Crown's expert witness, Mr. Malcom, testified as to the adequacy of access to abortion in Nova Scotia, no studies or consultation on the delivery of, access to, or cost-effectiveness of abortion services in hospitals or clinics were conducted, and the Crown relied at trial on dated statistical evidence as to the adequacy of existing facilities. The appellant argued, on the basis of Mr. Malcom's opinion evidence, that quality assurance is best ensured through the Canadian Council on Hospital Accreditation. There is no evidence, however, that the government had inquired into either the quality of services provided in hospitals *vis-à-vis* clinics or the existence of standards for the delivery of abortion services.

The appellant refers to a meeting of the House of Assembly's Committee on Community Services at the abortion unit of the Victoria General Hospital ("VGH"), in Halifax, on May 30, 1989, as evidence of prior consultation. Eighty-three per cent of all abortions performed in Nova Scotia are performed at this hospital. The topic of the meeting was the VGH's termination of pregnancy unit. The Committee met with the head of the gynaecology department, the head of the abortion unit and the charge nurse of the ambulatory care unit. The head of the abortion unit said that in his view Nova Scotia adequately met its own abortion needs and a Morgentaler clinic was unnecessary; however, he also said that such a clinic would serve all the Atlantic provinces. The three guests generally praised the efficiency and safety of existing abortion services, although it was revealed that average delays at the VGH were from a week to ten days, the medical staff willing to perform abortions at the hospital had fallen from ten to five, the quarters were cramped, and the greatest concern was a lack of information and counselling for both patients and doctors. Little hard data was provided. The meeting, indeed, seems to have provided more of a political platform for the expression of the views of the politicians on the committee than a forum for consultation and fact-finding regarding the issues the legislation was purported to address.

The lack of prior study or consultation is not raised to show that the province acted indiscreetly or ineffectually in pursuing provincial objectives, but rather to indicate that the evidence simply does not support the submission that these provincial objectives were the basis for the legislative action in question.

Another factor I consider relevant is that the "cost-effectiveness" rationale appears to be divorced from reality. Dr. Morgentaler's clinic will not represent a direct increase in the cost to the province of the provision of health care services. The parties dispute the actual cost of abortion services in and out of hospitals, but I do not propose to enter into that argument. In response to questions from the bench, appellant's counsel agreed that the fee paid to the respondent in respect of abortion services would be the same as that provided to a doctor who performed an abortion in a hospital. Consequently the establishment of an abortion clinic would not result in an increased direct cost to the province in the form of doctors' fees. The appellant's argument, as developed through Mr. Malcom's evidence, was that the duplication of services would lower the number of abortions performed in hospitals and eventually lead to an increase in the cost per procedure. The evidence did not establish, however, that the erosion in the number of abortions performed in hospitals would be great enough to have this effect.

A fifth consideration is the list of designated medical services itself. There is no apparent link between the different services. The only common denominator suggested by the appellant is that the government anticipated that these services might be attractive to private facilities. The appellant argued at trial and maintained before us, however, that the government's policy was to oppose the performance of any and all surgical procedures outside hospital. If that were the case, one might wonder why the Act did not prohibit the performance of surgical procedures generally outside a hospital. Designating nine apparently unrelated procedures does not accomplish this purpose.

If the means employed by a legislature to achieve its purported objectives do not logically advance those objectives, this may indicate that the purported purpose masks the legislation's true purpose. In Westendorp v. The Queen, supra, Laskin C.J. held that it was specious to regard a by-law which prohibited street prostitution as relating to control of the streets, since if that were its true purpose, "it would have dealt with congregation of persons on the streets or with obstruction, unrelated to what the congregating or obstructing persons say or otherwise do" (at p. 51). Here, one would expect that if the province's policy were to prohibit the performance of any surgical procedures outside hospitals, the legislation would have simply done so.

> Finally, although I put little weight on this factor, I agree with both courts below that the relatively severe penalties provided for by the Act are relevant to its constitutional characterization. Section 6(1) of the Act prescribes fines of $10,000 to $50,000 for each infraction of the Act. Kennedy Prov. Ct. J. and Freeman J.A. considered the relative severity of the fines as one indication that the fines were not simply measures to enforce a regulatory scheme, but penalties to punish abortion clinics as inherently wrong. Of course, s. 92(15) of the Constitution Act, 1867 allows the provinces to impose punishment to enforce valid provincial law, and the mere addition of penal sanctions to an otherwise valid provincial legislative scheme does not make the legislation criminal law: Smith v. The Queen, supra, at p. 800; Nova Scotia Board of Censors v. McNeil, supra, at p. 697; Irwin Toy Ltd. v. Quebec (Attorney General), supra, at p. 965. However, the unusual severity of penalties may be taken into account in characterizing legislation: Westendorp v. The Queen, supra, at p. 51.
>
> D. Conclusion
>
> (1) Pith and Substance
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> This legislation deals, by its terms, with a subject historically considered to be part of the criminal law -- the prohibition of the performance of abortions with penal consequences. It is thus suspect on its face. Its legal effect partially reproduces that of the now defunct s. 251 of the Criminal Code, in so far as both precluded the establishment and operation of free-standing abortion clinics. Its legislative history, the course of events leading up to the Act's passage and the making of N.S. Reg. 152/89, the Hansard excerpts and the absence of evidence that privatization and the cost and quality of health care services were anything more than incidental concerns, lead to the conclusion that the Medical Services Act and the *Medical Services Designation Regulation* were aimed primarily at suppressing the perceived public harm or evil of abortion clinics. The legislation meets the tests set out in the *Margarine Reference*, *supra*, and of *Morgentaler (1975)* and *Morgentaler (1988)*, *supra*. The primary objective of the legislation was to prohibit abortions outside hospitals as socially undesirable conduct, and any concern with the safety and security of pregnant women or with health care policy, hospitals or the regulation of the medical profession was merely ancillary. This legislation involves the regulation of the place where an abortion may be obtained, not from the viewpoint of health care policy, but from the viewpoint of public wrongs or crimes, to echo Cannon J.'s words in *Reference re Alberta Statutes*, 1938 CanLII 1 (SCC), [1938] SCR 100, at p. 144 (appeal dismissed as moot in *Alberta Bank Taxation Reference, supra*, at pp. 127-28):
>
> I agree with the submission of the Attorney-General for Canada that this bill deals with the regulation of the press of Alberta, not from the viewpoint of private wrongs or civil injuries resulting from any alleged infringement or privation of civil rights which belong to individuals, considered as individuals but from the viewpoint of public wrongs or crimes, i.e., involving a violation of the public rights and duties to the whole community, considered as a community, in its social aggregate capacity. [Emphasis added.]
>
> Paraphrasing what Lamer J. said in *Starr v. Houlden, supra*, at p. 1405: I find unpersuasive the argument that this legislation is solidly anchored in s. 92(7), (13) or (16) of the Constitution Act, 1867. There is nothing on the surface of the legislation or in the background facts leading up to its enactment to convince me that it is designed to protect the integrity of Nova Scotia's health care system by preventing the emergence of a two-tiered system of delivery, to ensure the delivery of high-quality health care, or to rationalize the delivery of medical services so as to avoid duplication and reduce public health care costs. Any such objectives are clearly incidental to the central feature of the legislation, which is the prohibition of abortions outside hospitals as socially undesirable conduct subject to punishment.
>
> (2) Practical Effect
>
> This legislation will certainly restrict abortion in the sense that it makes abortions unavailable in any place other than hospitals. But will it lead to a practical restriction of access to abortion in Nova Scotia? Will the present hospital system be able and willing to accommodate all the women who desire to terminate a pregnancy, given among other things that the hospital in which 83 percent of all abortions are performed has lost half of its medical staff willing to perform the procedure? These are questions that the trial judge did not answer, and on which the parties are resolutely divided. Women may not wish to have an abortion in a hospital for any number of legitimate reasons. Clearly restrictions as to place can have the effect of restricting abortions in practice, and indeed it was the operation of s. 251 of the Criminal Code in restricting abortions to certain hospitals that contributed largely to its demise. One of the reasons that the former s. 251 of the Criminal Code was struck down in *Morgentaler (1988)*, *supra*, was that the in-hospital requirement in that section led to unacceptable delays, undue stress and trauma, and a severe practical restriction of access to abortion services. Several years of experience under s. 251 showed that the combined decisions and actions of individual anti-abortion hospital boards could render access to legal abortion non-existent in large areas of the country. Something similar may occur in Nova Scotia but that is something we have no way of predicting. One of the effects of the legislation is consolidation of abortions in the hands of the provincial government, largely in one provincially controlled institution. This renders free access to abortion vulnerable to administrative erosion.
>
> Having applied the ordinary tests as to the matter of the present legislation, I am able to conclude that the legislation was an *ultra vires* invasion of the field of criminal law. I am able to reach this conclusion without predicting the ultimate practical effect of this legislation, and it is consequently unnecessary to adjudicate the intractable dispute between the parties as to whether this legislation will, in fact, restrict access to abortion in Nova Scotia. The appellant's evidence that the legislation will not have the practical effect of restricting abortions is simply evidence that the legislation will not actually accomplish what it set out to do. In view of my conclusion as to the pith and substance of the legislation, I am not concerned with whether the legislation is effective and such evidence can no more be used to validate *ultra vires* legislation than to invalidate *intra vires* legislation, as was held in *Reference re Anti-Inflation Act*, *supra*.
>
> […]
>
> As a result, the Act and regulation are *ultra vires* in their entirety.

2.4 The presumption of constitutionality

The presumption of constitutionality is a principle of statutory interpretation and a "cardinal principle" of our division of powers jurisprudence. In this excerpt from *Reference re Impact Assessment Act, 2023 SCC 23,* Wagner CJ explains the delicate dance between presumption and shield:

> [69] The presumption of constitutionality "remains a cardinal principle of our division of powers jurisprudence" (*Murray-Hall v. Quebec (Attorney General)*, 2023 SCC 10, at para. 79; *Reference re The Farm Products Marketing Act*, 1957 CanLII 1 (SCC), [1957] SCR 198, at p. 255; *Nova Scotia Board of Censors v. McNeil*, 1978 CanLII 6 (SCC), [1978] 2 SCR 662, at pp. 687-88; *Reference re Firearms Act*, at para. 25; see also *Severn v. The Queen* (1878), 1878 CanLII 29 (SCC), 2 SCR 70, at p. 103; *Rogers Communications Inc. v. Châteauguay (City)*, 2016 SCC 23, [2016] 1 SCR 467, at para. 81). Several consequences flow from the application of the presumption of constitutionality in federalism cases. Two of these consequences are germane for our purposes.
>
> [70] First, according to this presumption, "every legislative provision is presumed to be *intra vires* the level of government that enacted it" (*Murray-Hall*, at para. 79; P. W. Hogg and W. K. Wright, *Constitutional Law of Canada* (5th ed. Supp.), at § 15:13). In other words, a court should approach any question as to the validity of legislation "on the assumption that it was validly enacted", unless the party challenging the validity of the legislation demonstrates otherwise (*McNeil*, at pp. 687-88; *Reference re The Farm Products Marketing Act*, at p. 255; *Murray-Hall*, at para. 80).

> [71] Second, the presumption of constitutionality functions as a principle of statutory interpretation. It directs a court to assume that "a legislative body does not intend to exceed its powers under the Constitution" (*Osborne v. Canada (Treasury Board)*, 1991 CanLII 60 (SCC), [1991] 2 SCR 69, at p. 103). As this Court explained in *McKay v. The Queen*, 1965 CanLII 3 (SCC), [1965] SCR 798, at pp. 803-4:
>
> > ... if an enactment, whether of Parliament or of a legislature or of a subordinate body to which legislative power is delegated, is capable of receiving a meaning according to which its operation is restricted to matters within the power of the enacting body it shall be interpreted accordingly. An alternative form in which the rule is expressed is that if words in a statute are fairly susceptible of two constructions of which one will result in the statute being *intra vires* and the other will have the contrary result the former is to be adopted.
>
> [72] Therefore, when characterizing a challenged law, a court faced with "competing, plausible characterizations . . . should normally choose that one that would support the validity of the law" (Hogg and Wright, at § 15:13; see also *Siemens v. Manitoba (Attorney General)*, 2003 SCC 3, [2003] 1 SCR 6, at para. 33; *Desgagnés Transport Inc. v. Wärtsilä Canada Inc.*, 2019 SCC 58, [2019] 4 SCR 228, at para. 28). And "where a law is open to both a narrow and a wide interpretation, and under the wide interpretation the law's application would extend beyond the powers of the enacting legislative body, the court should 'read down' the law so as to confine it to those applications that are within the power of the enacting legislative body" (Hogg and Wright, at § 15:13).
>
> [73] I emphasize, however, that the presumption of constitutionality is not an impermeable shield that protects legislation from constitutional review by courts. Nor can courts employ the presumption of constitutionality to rewrite legislative text as they see fit in order to bring it into compliance with the Constitution. Courts cannot rely on the presumption of constitutionality to disregard a statute that speaks clearly and is *ultra vires* its enacting body. As Justice Gonthier held in *Law Society of British Columbia v. Mangat*, 2001 SCC 67, [2001] 3 SCR 113, at para. 66, the presumption of constitutionality "only applies when both competing interpretations are reasonably open to the court". In that case, Justice Gonthier declined to interpret the impugned provisions as being consistent with constitutional norms because doing so "would be repugnant to the text and context of the federal legislation" (para. 66; see also *McKay*, at pp. 803-4; J. M. Keyes and C. Diamond, "Constitutional Inconsistency in Legislation — Interpretation and the Ambiguous Role of Ambiguity" (2017), 48 *Ottawa L. Rev.* 313, at pp. 321-22). Thus, while the presumption of constitutionality is a "cardinal principle" that must be borne in mind, it does not displace the duty of courts to meaningfully review the constitutionality of legislation.
>
> [74] Similarly, a court cannot circumvent its duty to meaningfully review the constitutionality of legislation by suggesting that, insofar as an administrative decision maker applies a law unconstitutionally, the application of that law may be judicially reviewed. The constitutional validity of a law and its administrative application are distinct concepts. Where a constitutionally valid law grants a decision maker broad and imprecise discretion, that discretion must be exercised reasonably and in accordance with the purpose for which it was given (*References re GGPPA*, at para. 73). But where a law is ultra vires and therefore unconstitutional, it cannot be saved by the prospect of administrative judicial review. As Lamer C.J. and Iacobucci J. explained in Hydro-Québec, at para. 73:
>
> > ... the constitutional validity of a statute cannot depend on the ebb and flow of existing government practice or the manner in which discretionary powers appear thus far to be exercised. It is the boundaries to the exercise of that discretion and the scope of the regulatory power created by the impugned legislation that are at issue here. It is no answer to a charge that a law is unconstitutional to say that it is only used sparingly. If it is unconstitutional, it cannot be used at all. [Emphasis in original.]

2.5 The colourability doctrine

In *Morgentaler*, Justice Sopinka reasoned that the "colourability doctrine" did not apply to Nova Scotia's legislation. His discussion and explanation of the doctrine is nonetheless informative:

> … The "colourability doctrine" in the distribution of powers is invoked when a law looks as though it deals with a matter within jurisdiction, but in essence is addressed to a matter outside jurisdiction: Starr v. Houlden, supra, at p. 1403; Reference re Upper Churchill Water Rights Reversion Act, supra, at p. 332; Ladore v. Bennett, 1939 CanLII 270 (UK JCPC), [1939] A.C. 468 (P.C.), at p. 482. …
>
> In any event, the colourability doctrine really just restates the basic rule, applicable in this case as much as any other, that form alone is not controlling in the determination of constitutional character, and that the court will examine the substance of the legislation to determine what the legislature is really doing:
>
> > [t]he legislative bodies cannot, by statutory recitals, settle the classification of their own statutes for purposes of the distribution of powers.... Selection of the aspect that matters is the exclusive prerogative of the court, and the so-called doctrine of colourability is simply an instance of this rule....
>
> See W. R. Lederman, "The Balanced Interpretation of the Federal Distribution of Legislative Powers in Canada" (1965), reprinted in Lederman, Continuing Canadian Constitutional Dilemmas (1981), 266, at p. 282….

In other words, it might be (and was) argued that Nova Scotia's law was colourable in nature as its purported purpose—the provision of health services and protection of the health care system—did not correspond with its actual purpose—to prohibit abortion as a social evil. For the Court, however, as the doctrine of pith and substance led to the same result, it was not necessary to invoke the doctrine of colourability.

The colourability doctrine is not, however, irrelevant. Almost a decade after *Morgentaler*, in *Reference re Firearms Act (Can.)*, 2000 SCC 31 (CanLII), [2000] 1 SCR 783, the Supreme Court again described the doctrine and its function, writing (at para 18): "a law may say that it intends to do one thing and actually do something else. Where the effects of the law diverge substantially from the stated aim, it is sometimes said to be 'colourable'."

Then, after another period of abeyance, the colourability doctrine reappeared in *Murray Hall v Quebec (Attorney General), 2023 SCC 10*:

> [50] The concept of "colourable legislation" refers to legislation that seemingly deals with a matter within the jurisdiction of the enacting level of government but that is actually addressed to a matter outside that jurisdiction (Morgentaler, at p. 496). It has long been accepted that recourse may be had to extrinsic evidence, insofar as it reflects the legislative intent, in order to determine the alleged "colourability" of legislation (Reference re Upper Churchill Water Rights Reversion Act, 1984 CanLII 17 (SCC), [1984] 1 SCR 297, at pp. 318-19).
>
> [51] The appellant submits that the members of the Quebec legislature demonstrated on a number of occasions that their intent was to thwart Parliament's chosen approach to home cultivation and thus to enact, in "colourable" form, the provisions of the *CDSA* that formerly prohibited the possession and cultivation of cannabis. This argument cannot be accepted.
>
> [52] It is true that some uneasiness was expressed within the walls of the National Assembly over the decriminalization bill, which was introduced on the sole initiative of the federal government. The members of the Quebec legislature also deemed it appropriate to reiterate the dangerousness of cannabis because of the risk — perceived or recognized — that this substance would be normalized by the passage of the federal Act. The appellant refers us to the speech made by the Minister responsible for Public Health during the last stages leading to the passage of the final version of Bill 157:

> [translation] This bill positions and prepares Quebec for the imminent legalization of cannabis, unilaterally imposed, let us be honest, Madam President, by the federal government. I want citizens to clearly understand that neither the Quebec government nor the members of the opposition nor anyone here in Quebec requested this. It ended up on our agenda following a decision of the federal government. So, we had to work with extremely tight deadlines and a high degree of uncertainty with respect to federal intentions. To say that it was a real challenge is an understatement, Madam President. Our ultimate goal, the same from the outset, was to offer the best possible regulation of this substance on our territory, given the stakes. And, I would like to repeat, Madam President, that cannabis is not a benign, harmless substance. I say to young persons: It is not a great idea to smoke cannabis. [Emphasis added.]
>
> (National Assembly, Journal des débats, vol. 44, No. 346, 1st Sess., 41st Leg., June 6, 2018, at pp. 21972-73 (L. Charlebois))

[53] Statements like these are, however, far from sufficient for a finding of colourability. As Cromwell and Karakatsanis JJ. noted in Quebec (Attorney General) 2015, "[c]ourts are, for good reasons, reluctant to find legislation to be colourable" (para. 31). If the colourability doctrine were applied less narrowly, there would be a danger that courts would overstep their judicial role and make decisions based on policy considerations, thereby expressing "disapproval of either the policy of the statute or the means by which the legislation seeks to carry it out" (ibid.).

[54] In my view, the Minister's statements do not show an intent to recriminalize what Parliament sought to decriminalize. Rather, they reflect a general concern about the risks arising from cannabis consumption, particularly for younger individuals. As the Court of Appeal pointed out, this concern was expressed repeatedly in the House of Commons when Bill C-45 was being examined (para. 102). Quite a few members of Parliament noted that "Canadians, including children and youth", have some of the highest rates of cannabis use in the world and that the effects of cannabis may be particularly dangerous for young people who use it (ibid., quoting House of Commons Debates, vol. 148, No. 183, 1st Sess., 42nd Parl., May 30, 2017, at p. 11706 (M. Mendicino)). Viewed in such a context, the Minister's statements simply show that concerns about the harmful effects of cannabis on health did not disappear merely because this substance was decriminalized. In other words, the concerns expressed by members of Parliament while debating Bill C-45 were echoed in the National Assembly of Quebec.

[55] A parallel was drawn by the trial judge between the circumstances of this case and those of Morgentaler, in which the pith and substance of a Nova Scotia statute that prohibited abortion, other than in a hospital, was not control over private health care institutions but rather the restriction of abortion as a socially undesirable practice that should be suppressed or punished. Among other things, Morgentaler reiterated "[t]he guiding principle . . . that the provinces may not invade the criminal field by attempting to stiffen, supplement or replace the criminal law . . . or to fill perceived defects or gaps therein" (p. 498). In the present case, the appellant argues that this principle is undermined by ss. 5 and 10 of the provincial Act, which are designed to remedy the repeal of the provisions that once criminalized the personal production of cannabis.

[56] I agree with the Court of Appeal that the circumstances of this case differ from those of Morgentaler. The statements made by the members of the provincial legislature in Morgentaler showed direct opposition to freestanding abortion clinics as a "public evil" to be eliminated and left no ambiguity regarding the intent behind the impugned legislation (p. 503). Moreover, many important concerns relating to the stated purpose of the statute — for example, health care costs or objections to a two-tier system of access to medical services — had not been mentioned during the legislative debates. The same cannot be said of the conduct of the debates that led to the enactment of the provincial Act and the provisions challenged in this case. When the prohibitions against the possession and cultivation of cannabis plants were debated by the members of the Quebec legislature, they were clearly viewed from the perspective of the stated purposes of the Act, that is, preserving the cannabis market's integrity and protecting the health and security of the public.

2.6 Questions

1. In *Morgentaler*, Sopinka J cautioned against a formalistic approach to the pith and substance determination. He described the process of classification as 'interlocking', in which the validity of legislation and the enumerated classes of subjects 'react on one another and fix each other's meaning', and observed that figuring out the matter 'is not and never can be an exact science'.

   How does Sopinka J's description of pith and substance analysis differ from Wagner CJC's more recent prescriptions in *Re IAA* and *Murray Hall*? Which one do you think most accurately describes the task of figuring out the matter of a statute? Do you think it is possible to characterize legislation without regard to the heads of power or is this an artificial demarcation?

2. Regardless of the method, pith and substance doctrine is arguably most helpful when judges agree on the matter of the legislation. In *Re GGPPA*, for example, there were several minority opinions, each with their own pith and substance for the legislation and none of them the same.

   Do you think that the authoritative weight of a judgment should be impacted by whether the judges could agree on the pith and substance of the legislation? In *Re GGPPA*, do you think it would have helped or hindered the judges to characterize the legislation with reference to the heads of power? Why or why not?

3. Make a list of the aspects of the legislation that courts may consider in their determination of a statute's pith and substance. Separate them into the internal aspects derived from within the four corners of the legislation and the external aspects derived from the context and legislative history of the legislation. Are all of these aspects equally relevant? If not, which parts of the legislation and its context are most helpful in settling on the true character or leading feature of the legislation?

4. The 'colourability doctrine' referred to in *Morgentaler* and *Re Firearms Act* makes only rare appearances in federalism cases. It could be argued that characterizing legislation as 'colourable' acts as a kind of political sanction. As Sopinka J observed in *Morgentaler*, pith and substance doctrine is equally competent to the task of determining the substance of the legislation. What do you think colourability adds to the characterization analysis? Why do you think courts have been loath to use the doctrine?

For early discussions about pith and substance doctrine, see: Bora Laskin, "Tests for the Validity of Legislation: What's the `Matter'?" (1955), 11 *U.T.L.J.* 114; F. R. Scott, "Civil Liberties and Canadian Federalism" (1959); W. R. Lederman, "The Balanced Interpretation of the Federal Distribution of Legislative Powers in Canada" (1965); Paul Weiler, "The Supreme Court and the Law of Canadian Federalism" (1973) 23 UTLJ 307 at 340-41.

3 Double aspect

Overlap between the contents of the respective levels of governments' powers is inevitable. Courts have had to craft ways to accommodate that overlap, where both the federal and provincial governments adopt laws dealing with similar, or even the same, subject matter, but where both levels of government are acting within their areas of jurisdiction. This is inevitable, because some subjects, or activities, have both federal and provincial aspects and can therefore be the subject of both federal and provincial legislation.

The regulation of public roads, or, more specifically, driving under the influence of alcohol, is a good example of the potential for legislative overlap because roads have both federal and provincial aspects. The federal government can adopt legislation related to roads using the criminal law power found in section 91(27). For example, the criminal prohibition on drunk driving (s. 320.14(1)(b)) of the *Criminal Code*) is a

valid federal law governing the use of public roadways. At the same time, provinces, pursuant to their jurisdiction over property and civil rights, in section 92(13) adopt similar prohibitions on driving with a certain blood-alcohol limit.

Courts have dealt with such overlap using the double aspect doctrine. The origins of this doctrine date back to an 1883 Privy Council case, *Hodge v. The Queen* (1883), 9 App. Cas. 117, which observed: "subjects which in one aspect and for one purpose fall within Sect. 92, may in another aspect and for another purpose fall within Sect. 91." In other words, to quote Justices Binnie and LeBel in *Canadian Western Bank v. Alberta*, 2007 SCC 22:

> 30 Also, some matters are by their very nature impossible to categorize under a single head of power: they may have both provincial and federal aspects. Thus the fact that a matter may for one purpose and in one aspect fall within federal jurisdiction does not mean that it cannot, for another purpose and in another aspect, fall within provincial competence: Hodge v. The Queen (1883), 9 App. Cas. 117 (P.C.), at p. 130; Bell Canada v. Quebec (Commission de la santé et de la sécurité du travail), 1988 CanLII 81 (SCC), [1988] 1 SCR 749 ("Bell Canada (1988)"), at p. 765. The double aspect doctrine, as it is known, which applies in the course of a pith and substance analysis, ensures that the policies of the elected legislators of both levels of government are respected. A classic example is that of dangerous driving: Parliament may make laws in relation to the "public order" aspect, and provincial legislatures in relation to its "Property and Civil Rights in the Province" aspect (O'Grady v. Sparling, 1960 CanLII 70 (SCC), [1960] SCR 804). The double aspect doctrine recognizes that both Parliament and the provincial legislatures can adopt valid legislation on a single subject depending on the perspective from which the legislation is considered, that is, depending on the various "aspects" of the "matter" in question.

In *Quebec (Attorney General) v. Lacombe*, 2010 SCC 38, the dissenting judges explain the double aspect doctrine as the ability to look at a particular matter, activity, or set of facts, from two different legal perspectives:

> [101] … [The] double aspect doctrine can be viewed at three different levels: (1) that of the facts themselves regardless of their legal characterization; (2) that of the legal perspectives represented by the various rules (statutory, regulatory, etc.) — each of which has its own pith and substance — adopted by the central government or the provinces to govern the fact situations; and (3) that of the power — in the context of the constitutional division of powers — to adopt a given rule. The double aspect doctrine relates first to the two different normative aspects at level (2) that certain facts at level (1) might have, it being understood that because of the pith and substance of each of these aspects, each one may, at level (3), be connected primarily with a different power, one of which may be federal while the other is provincial. In other words, the double aspect doctrine does not involve a dual connection with different powers at level (3) of a single legal perspective that necessarily has a single pith and substance and is necessarily situated at level (2). This possibility of a dual connection exists in our law…. We will see below that the failure by the Chief Justice to consider the location of aerodromes from both legal perspectives — of the regulation of aeronautics on the one hand, and of zoning or, more broadly, of land use planning in and development of the territory on the other — prevents her from recognizing that the double aspect doctrine applies in this case [emphasis added].

3.1 *Multiple Access Ltd. v. McCutcheon*, 1982 CanLII 55 (SCC), [1982] 2 SCR 161

In *Multiple Access Ltd. v. McCutcheon*, 1982 CanLII 55 (SCC), [1982] 2 SCR 161, Justice Dickson, as he then was, relied on the double aspect doctrine to reason that two statutes, one federal and one provincial, dealing with the same activity (insider trading in securities) could both be valid:

> The facts are of little importance. Multiple Access Limited (the Company) is a public company incorporated under the laws of Canada having its head office in Metropolitan Toronto and capital stock listed for trading by the public on the Toronto Stock Exchange. The defendant McCutcheon was President and Director, Lowrie a director and the other defendants senior managing officers of the Company. By an order of Addy J., on a motion made by two shareholders of the Company pursuant to s. 114(1) of The Securities Act, R.S.O. 1970, c. 426, it was ordered that the Ontario Securities Commission commence action, in the name of and on behalf of the Company, to enforce the liability created by the alleged "insider trading" of the defendants.
>
> It is alleged that (i) it was known to the defendants but not the public that the Company made a formal written offer to purchase certain radio and television assets of Canadian Marconi Limited for a purchase price of $18 million dollars, (ii) the offer was accepted, (iii) the defendants made use of such confidential knowledge to their own advantage by purchasing securities in the capital stock of the Company at $1.76, and the stock rose to $7 and later to $10. The cause of action is based on the allegation that the defendants were 'insiders' of the Company as that term is defined in The Securities Act of Ontario, s. 109(1)(c) and, as such, were liable to the Company for losses suffered as a result of the use of confidential information in connection with transactions relating to the capital securities of the Company in accordance with ss. 113 and 114 of The Securities Act.
>
> The defendants, in their statement of defence, maintained that ss. 113 and 114 of The Securities Act of Ontario were duplications of ss. 100.4 and 100.5 of the Canada Corporations Act and therefore, with respect to the plaintiff, ss. 113 and 114 are suspended and inoperative due to the doctrine of paramountcy, and also ultra vires the Legislature of Ontario with respect to the plaintiff, a federally incorporated Company.
>
> …
>
> I turn now to the main question. Does the 'matter' (or pith and substance) of the insider trading provisions of the federal act fall within a "class of subject" (or head of power) allocated to Parliament? Counsel for the Company and for the Attorney General of Ontario contends that s. 100.4 applies to a very large class of individuals or companies and the apparent purpose of the section is to impose possible civil liability on members of a large class of persons who are involved in transactions relating to the securities of the company. These provisions, it is said, do not relate to the status of a federal company or to domestic or internal constitution of the company but rather create civil rights or obligations which can only be the subject matter of provincial legislation in relation to property and civil rights in a province.
>
> With respect, I do not agree. Sections 100.4 and 100.5 put teeth into s. 100 of the Act. Viewed in isolation it can no doubt be argued that their matter is the trading in securities. Viewed in context, however, they are, in my opinion, company law. They fit properly and comfortably into Part I of the Canada Corporations Act. The provisions deal with obligations attached to the ownership of shares in a federal company, which extend to shareholders, officers and employees of such companies, a subject matter that is not within the exclusive jurisdiction of provincial legislatures. The provisions are also directed to the relationship between management and shareholders of federal companies. Their enactment by Parliament is in the discharge of its company law power.
>
> [Dickson J. then proceeds to review the case law in support of the validity of the federal regulation of the trade in securities.]
>
> Providing safeguards against the malfeasance of the managers is strictly within what might properly be called the constitution of the company. The proper relationship between a company and its insiders is central to the law of companies and, from the inception of companies, that relationship has been regulated by the legislation sanctioning the company's incorporation. I agree with the submission of counsel for the Attorney General of Canada that the impugned provisions of the Canada Corporations Act are directed at preserving the integrity of federal companies and protecting the shareholders of such companies; they aim at practices, injurious to a company or to shareholders at large of a company, by persons who because they hold positions of trust or otherwise are privy to information not available to all shareholders.

> Insiders should not benefit, either at the expense of the company or at the expense of other shareholders, from their access to confidential information intended to be available only for a corporate purpose and not for the personal benefit of anyone. Information so acquired is at the expense of the enterprise. Confidential company information is a corporate asset the benefit of which is intended to benefit the company, its shareholders and creditors. See Brudney "Insiders, Outsiders and Informational Advantages under the Federal Securities Laws", (1979) 93 Harv. L. Rev. 322, at p. 344.
>
> It is true that the net cast by s. 100.4 of the Canada Corporations Act is a broad one but it must be broad if it is to be effective. Section 100.4 speaks of insiders, employees, associates, and affiliates. It may catch more than just directors or managers. There is no reason in principle why this should be fatal to constitutional integrity. Practical considerations no doubt dictated that the net be broad if confidential information, vital to the financial integrity of the company, were to be adequately protected from those unprincipled insiders who were in a position to be privy to such information.
>
> Because "[t]he language of [ss. 91 and 92] and of the various heads which they contain obviously cannot be construed as having been intended to embody the exact disjunctions of a perfect logical scheme" (*John Deere Plow Co. v. Wharton, supra,* at p. 338 *per* Viscount Haldane), a statute may fall under several heads of either s. 91 or s. 92. For example, a provincial statute will often fall under both s. 92(13), property and civil rights and s. 92(16), a purely local matter, given the broad generality of the language. There is, of course, no constitutional difficulty in this. The constitutional difficulty arises, however, when a statute may be characterized, as often happens, as coming within a federal as well as a provincial head of power. "To put the same point in another way, our community life—social, economic, political, and cultural—is very complex and will not fit neatly into any scheme of categories or classes without considerable overlap and ambiguity occurring. There are inevitable difficulties arising from this that we must live with so long as we have a federal constitution" (Lederman, "The Concurrent Operation of Federal and Provincial Laws in Canada" (1963), 9 McGill L.J. 185). As Professor Ziegel has stated "[s]ecurities legislation clearly has a double character ("Constitutional Aspects of Canadian Companies" in *Canadian Company Law* (1967), chapter 5, at p. 167) and, "there is no simple dichotomy between legislation of a company law character and legislation affecting property and civil rights in the province. Viewed in its proper social and economic context the legislation may well have a double character" (at pp. 192-93).
>
> I incline to the view that the impugned insider trading provisions have both a securities law and a companies law aspect and would adopt as the test for applying the double aspect doctrine to validate both sets of legislative provisions, that formulated by Professor Lederman:
>
> > But if the contrast between the relative importance of the two features is not so sharp, what then? Here we come upon the double-aspect theory of interpretation, which constitutes the second way in which the courts have dealt with inevitably overlapping categories. When the court considers that the federal and provincial features of the challenged rule are of roughly equivalent importance so that neither should be ignored respecting the division of legislative powers, the decision is made that the challenged rule could be enacted by either the federal Parliament or provincial legislature. In the language of the Privy Council, "subjects which in one aspect and for one purpose fall within sect. 92, may in another aspect and for another purpose fall within sect. 91".
> >
> > ("Classification of Laws and the British North America Act" in *The Courts and the Canadian Constitution* (1964), 177, at p. 193).
>
> The double aspect doctrine is applicable, as Professor Lederman says, when the contrast between the relative importance of the two features is not so sharp. When, as here, the corporate-security federal and provincial characteristics of the insider trading legislation are roughly equal in importance there would seem little reason, when considering validity, to kill one and let the other live.
>
> Although the application of the double aspect doctrine has been most prevalent in the highway traffic field there is ample precedent for its use in the field of provincial securities regulations. Kerwin C.J. in *Smith v. The Queen,* 1960 CanLII 12 (SCC), [1960] SCR 776 applied the doctrine to prospectuses (at p. 781):
>
> > Parliament undoubtedly had power to enact s. 343 of the Criminal Code, but a prospectus may in one aspect and for one purpose be the subject of valid provincial legislation, while, in another aspect and for another purpose, it may be the subject of valid federal legislation: *Provincial Secretary of Prince Edward Island v. Egan.* Since the Provincial Legislature has power to prescribe certain information to be supplied to the Commission and since the Legislature has power to provide for punishment of infractions, the enactments of the Legislature and of Parliament may co-exist.
>
> Concurrent matters or fields have also been recognized, among others, in the realms of temperance, insolvency, highways, and aspects of Sunday observance (at pages 169-182).

Justice Dickson then approvingly referred to duplication as 'the ultimate in harmony":

> With Mr. Justice Henry I would say that duplication is, to borrow Professor Lederman's phrase, "the ultimate in harmony". The resulting "untidiness" or "diseconomy" of duplication is the price we pay for a federal system in which economy "often has to be subordinated to […] provincial autonomy" (Hogg, at p. 110). Mere duplication without actual conflict or contradiction is not sufficient to invoke the doctrine of paramountcy and render otherwise valid provincial legislation inoperative.
>
> The following passage from Professor Lederman's article "The Concurrent Operation of Federal and Provincial Laws in Canada", supra, at p. 199 (fn. 39) is apposite:
>
> > As Dr. J.A. Corry has pointed out, our country is increasingly moving away from the older classical federalism of 'water-tight compartments' with provincial legislatures and federal parliament carefully keeping clear of one another. We seem to be moving towards a co-operative federalism. "The co-ordinate governments no longer work in splendid isolation from one another but are increasingly engaged in cooperative ventures in which each relies heavily on the other." See J.A. Corry, "Constitutional Trends and Federalism", in the volume of essays Evolving Canadian Federalism (Durham, N.C., U.S.A., 1958), p. 96.
>
> The multiplication of concurrent fields is one of the facets of this trend (pages 190-91).

4 Incidental effects

The pith and substance analysis focuses on the "dominant purpose" or "central thrust" of the legislation under review. But legislation will often have other less central, or secondary, features or effects, some of which might overlap with the other government's jurisdiction. The case law tells us that these kinds of incidental effects are permissible, provided they do not detract from a law or provision's central purpose, or pith and substance. Moreover, a law's incidental effects on a subject of the other government's jurisdiction does not undermine its constitutionality, or *vires*, if the law's pith and substance properly aligns with the jurisdiction of the government that adopted it.

Chief Justice McLachlin explains the doctrine of incidental effects in *Quebec (Attorney General) v. Lacombe*, 2010 SCC 38 (at para 36):

> The incidental effects rule … applies when a provision, in pith and substance, lies within the competence of the enacting body but touches on a subject assigned to the other level of government. It holds that such a provision will not be invalid merely because it has an incidental effect on a legislative competence that falls beyond the jurisdiction of its enacting body.

In *Canadian Western Bank v Alberta,* 1007 SCC 22, the Court explained the doctrine of incidental effects as a "corollary" of pith and

substance analysis. Justices Binnie and LeBel explained:

> 28 The fundamental corollary to this approach to constitutional analysis is that legislation whose pith and substance falls within the jurisdiction of the legislature that enacted it may, at least to a certain extent, affect matters beyond the legislature's jurisdiction without necessarily being unconstitutional. At this stage of the analysis of constitutionality, the "dominant purpose" of the legislation is still decisive. Its secondary objectives and effects have no impact on its constitutionality: "merely incidental effects will not disturb the constitutionality of an otherwise *intra vires* law" (*Global Securities Corp. v. British Columbia (Securities Commission)*, [2000] 1 SCR 494, 2000 SCC 21, at para. 23). By "incidental" is meant effects that may be of significant practical importance but are collateral and secondary to the mandate of the enacting legislature: see *British Columbia v. Imperial Tobacco Canada Ltd.*, [2005] 2 SCR 473, 2005 SCC 49, at para. 28. Such incidental intrusions into matters subject to the other level of government's authority are proper and to be expected: *General Motors of Canada Ltd. v. City National Leasing*, 1989 CanLII 133 (SCC), [1989] 1 SCR 641, at p. 670. In *Bank of Toronto v. Lambe* (1887), 12 App. Cas. 575, by way of further example, and in contrast to the *Alberta Banks* case already mentioned, the Privy Council upheld the validity of legislation levying a tax on banks, holding that the pith and substance of the legislation was indeed to generate revenue for the province, and its essential purpose was therefore in relation to direct taxation, not banks or banking. See P. W. Hogg, *Constitutional Law of Canada* (loose-leaf ed.), vol. 1, at para. 15.5(a).
>
> 29 The "pith and substance" doctrine is founded on the recognition that it is in practice impossible for a legislature to exercise its jurisdiction over a matter effectively without incidentally affecting matters within the jurisdiction of another level of government. For example, as Brun and Tremblay point out, it would be impossible for Parliament to make effective laws in relation to copyright without affecting property and civil rights, or for provincial legislatures to make effective laws in relation to civil law matters without incidentally affecting the status of foreign nationals (H. Brun and G. Tremblay, *Droit constitutionnel* (4th ed. 2002), at p. 451)

In any constitutional analysis pursuant to the division of powers, the pith and substance, or characterization, is the starting point from which the rest of the analysis flows. The incidental effects doctrine means that for the purpose of characterization, incidental effects, provided they remain incidental and are not central to the impugned law, can safely be ignored. As the Court said in *CWB*, "[W]here problems results from incidental effects arise, it may often be possible to resolve them by a firm application of the pith and substance analysis" (at para. 31).

5 Ancillary powers doctrine

Incidental effects doctrine sometimes bumps up against ancillary powers doctrine—and not only because ancillary powers doctrine has sometimes gone by the name "necessarily incidental doctrine". Ancillary powers doctrine is distinguished from incidental effects doctrine in two primary ways: first, ancillary powers doctrine is generally used to save a provision, or a set of provisions, that are part of a larger, valid legislative scheme; and second, ancillary powers doctrine applies to provisions that are otherwise invalid or outside the authority of the enacting legislature.

Indeed, the Supreme Court of Canada has come a long way from Lord Atkin's characterization of the division of powers as "watertight compartments", with no room for overlap between subjects of federal and provincial jurisdiction. The ancillary powers doctrine confirms that the "dominant tide" of constitutional interpretation has shifted toward a more flexible and cooperative form of federalism. It functions to uphold statutory provisions which, if adopted in isolation, would be *ultra vires* the adopting legislature. However, where an *ultra vires* provision is contained within a valid broader legislative scheme, and is "ancillary" to that scheme's operation, the ancillary powers doctrine can save, or justify, the impugned provision(s). Unlike the doctrines of interjurisdictional immunity and federal paramountcy examined later in this chapter, ancillary powers is a validity doctrine; where *prima facie ultra vires* provisions do not meet the test laid out in *General Motors of Canada Ltd. v. City National Leasing*, 1989 CanLII 133 (SCC), [1989] 1 SCR 641, the provision will be invalidated or declared of no force or effect.

5.1 *General Motors of Canada Ltd. v. City National Leasing*, 1989 CanLII 133 (SCC), [1989] 1 SCR 641

General Motors of Canada Ltd. (GM) is a car and truck manufacturer. City National Leasing (CNL) leases cars and trucks on a nation-wide basis. CNL purchases most of its vehicles for lease from GM franchises. In order to finance those purchases, CNL received interest rate support from General Motors Acceptance Corporation (GMAC). As Dickson CJC set out:

> CNL alleges that during that time GM, directly or indirectly, had been paying "preferential" interest rate support to competitors of CNL in respect of competitors' purchases of GM manufactured automobiles and trucks, in addition to the interest rate support available to CNL. It is further alleged that the exclusion of CNL from the preferential interest rate support program from 1970 to 1980 was a practice of price discrimination contrary to s. 34(1)(*a*) of the Act, giving CNL an action under s. 31.1. CNL claims that it lost profits equivalent to monies saved by its competitors, and that it is entitled to recover from GM damages equivalent to the lost profits and compound interest thereon. CNL also sued GM for breach of contract for damages arising after March 1980.

The case concerned the Combines Investigation Act, RSC 1970, c. C-23, the precursor of the *Competition Act*, RSC 1985, c. C-34.

> THE CHIEF JUSTICE -- The principal issue in this appeal is the constitutional validity of s. 31.1 of the Combines Investigation Act, R.S.C. 1970, c. C-23. Section 31.1 creates a civil cause of action for certain infractions of the Combines Investigation Act. It is this fact which makes the section constitutionally suspect: a civil cause of action is within the domain of the provinces to create. The essential question raised by this appeal is whether s. 31.1 can, nevertheless, be upheld as constitutionally valid by virtue of its relationship with the Combines Investigation Act. Answering this question requires addressing two issues: first, is the Act valid under the federal trade and commerce power, expressed in s. 91(2) of the Constitution Act, 1867; and second, is s. 31.1 integrated with the Act in such a way that it too is intra vires under s. 91(2).
>
> For the reasons which follow, I have found s. 31.1 to be intra vires the federal Parliament. In answering the two aforementioned issues, I have decided, first, that the Combines Investigation Act is valid under the federal trade and commerce power, in particular, it is valid under the "second branch" of that power, the power over "general" trade and commerce. Second, I have found that s. 31.1 is constitutionally valid by virtue of being functionally related to the Act.
>
> Legislation
>
> Section 31.1 of the Act reads as follows:
>
> **31.1** (1) Any person who has suffered loss or damage as a result of
>
> (a) conduct that is contrary to any provision of Part V, or
>
> (b) the failure of any person to comply with an order of the Commission or a court under this Act,
>
> may, in any court of competent jurisdiction, sue for and recover from the person who engaged in the conduct or failed to comply with the order an amount equal to the loss or damage proved to have been suffered by him, together with any additional amount that the court may allow not exceeding the full cost to him of any investigation in connection with the matter and of proceedings under this section.

Among the offences covered by Part V of the Act, referred to in s. 31.1(1)(a) above, are those set out in s. 34(1) which reads:

> **34. (1)** Every one engaged in a business who
>
> (a) is a party or privy to, or assists in, any sale that discriminates to his knowledge, directly or indirectly, against competitors of a purchaser of articles from him in that any discount, rebate, allowance, price concession or other advantage is granted to the purchaser over and above any discount, rebate, allowance, price concession or other advantage that, at the time the articles are sold to such purchaser, is available to such competitors in respect of a sale of articles of like quality and quantity;
>
> (b) engages in a policy of selling products in any area of Canada at prices lower than those exacted by him elsewhere in Canada, having the effect or tendency of substantially lessening competition or eliminating a competitor in such part of Canada, or designed to have such effect; or
>
> (c) engages in a policy of selling products at prices unreasonably low, having the effect or tendency of substantially lessening competition or eliminating a competitor, or designed to have such effect,
>
> is guilty of an indictable offence and is liable to imprisonment for two years.

The following two constitutional questions were stated by the Court:

> Is the Combines Investigation Act, R.S.C. 1970, c. C-23 (the "Act"), as amended, either in whole or in part, within the legislative competence of the Parliament of Canada under s. 91(2) of the Constitution Act, 1867?
>
> Is section 31.1 of the Act within the legislative competence of the Parliament of Canada?

…

In *Canadian National Transportation*, *supra*, I considered the relevant approach for determining the constitutional validity of a section of the *Combines Investigation Act* under the general trade and commerce power at p. 270:

> It is obvious at the outset that a constitutionally invalid provision will not be saved by being put into an otherwise valid statute, even if the statute comprises a regulatory scheme under the general trade and commerce branch of s. 91(2). The correct approach, where there is some doubt that the impugned provision has the same constitutional characterization as the Act in which it is found, is to start with the challenged section rather than with a demonstration of the validity of the statute as a whole. I do not think, however, this means that the section in question must be read in isolation. If the claim to constitutional validity is based on the contention that the impugned provision is part of a regulatory scheme it would seem necessary to read it in its context. If it can in fact be seen as part of such a scheme, attention will then shift to the constitutionality of the scheme as a whole.

The conclusion was then reached, on the basis of the above analysis, that s. 32(1)(*c*) was not an isolated provision but part of a regulatory scheme.

The approach just outlined was essentially that suggested by Laskin C.J. in *Vapor Canada*, *supra*, in the context of s. 7(*e*) of the *Trade Marks Act* (at p. 159):

> Since s. 7(*e*) is not a trade mark provision, its inclusion in the *Trade Marks Act* does not stamp it with validity merely because that Act in its main provisions is quantitatively unchallenged. I come back to the question whether s. 7, and particularly s. 7(*e*), can stand as part of the scheme of the *Trade Marks Act* and other related federal legislation. If it can stand alone, it needs no other support; if not, it may take on a valid constitutional cast by the context and association in which it is fixed as complementary provision [*sic*] serving to reinforce other admittedly valid provisions. [Emphasis added.]

…

In my view, in circumstances such as exist in the case at bar, it will normally be necessary to consider both the impugned provision and the Act as a whole (or a significant part of it) when undertaking a constitutional analysis. This approach coheres with that undertaken in *Canadian National Transportation*, *supra*, and *Vapor Canada*, *supra*. The first step should be to consider whether and to what extent the impugned provision can be characterized as intruding into provincial powers. If it cannot be characterized as intruding at all, i.e., if in its pith and substance the provision is federal law, and if the act to which it is attached is constitutionally valid (or if the provision is severable or if it is attached to a severable and constitutionally valid part of the act) then the investigation need go no further. In that situation both the provision and the act are constitutionally unimpeachable. If, as may occur in some instances, the impugned provision is found to be constitutionally unimpeachable while the act containing it is not, then the act must be assessed on it own. In these instances, it is clear that the claim of invalidity should originally have been made against the act and not against the particular provision. In most cases like the present, however, it will be concluded that the impugned provision can be characterized, *prima facie*, as intruding to some extent on provincial powers: the question is to what extent. I emphasize that in answering this initial question the court is considering the provision on its own and not assessing the act; thus the answer it reaches does not provide a conclusion with respect to the ultimate constitutional validity of the provision. The purpose is merely to ascertain the degree to which the provision could be said to intrude on provincial powers, so that this intrusion can be weighed in light of the possible justification for the section.

Such a justification will result from the impugned provision's relationship to valid legislation. Thus the next step in the process is to ascertain the existence of valid legislation. In considering cases argued under the general trade and commerce power, such as the present, this step involves ascertaining whether the act, or a severable part of the act which includes the impugned provision, contains a regulatory scheme. The presence of a scheme of legislation is one of the most basic characteristics, although not a *sine qua non*, of valid trade and commerce legislation. Most provisions upheld under the second branch of s. 91(2) will be connected to a regulatory scheme. In cases where a regulatory scheme is not found the court will then have to consider whether the legislation to which the provision is attached can nonetheless be supported by virtue of the existence of the other requirements for a valid exercise of the general trade and commerce power.

A regulatory scheme may be found in only a part of the act in question, if that part can stand alone, or it may found in the entire act. The portion of the statute necessary to establish the existence of a regulatory scheme will not always be easy to discern. In those instances where a challenged provision, taken alone, comprehends a complete regulatory mechanism, the provision itself constitutes the appropriate starting point. In other cases, it will be necessary to examine the entire statute before a regulatory scheme may be identified. Once the presence of a regulatory scheme has been shown it will be necessary, using the factors outlined in *Vapor Canada*, *supra*, and *Canadian National Transportation*, *supra*, to determine its constitutional validity. Only after this has been done should the court turn to more careful consideration of the relationship between the particular impugned provision and the scheme.

The final question is whether the provision can be constitutionally justified by reason of its connection with valid legislation. As Laskin C.J. remarked in *Vapor Canada*, *supra*, inclusion of an invalid provision in a valid statute does not necessarily stamp the provision with validity. Here the court must focus on the relationship between the valid legislation and the impugned provision. Answering the question first requires deciding what test of "fit" is appropriate for such a determination. By "fit" I refer to how well the provision is integrated into the scheme of the legislation and how important it is for the efficacy of the legislation. The same test will not be appropriate in all circumstances. In arriving at the correct standard the court must consider the degree to which the provision intrudes on provincial powers. The case law, to which I turn

below, shows that in certain circumstances a stricter requirement is in order, while in others, a looser test is acceptable. For example, if the impugned provision only encroaches marginally on provincial powers, then a "functional" relationship may be sufficient to justify the provision. Alternatively, if the impugned provision is highly intrusive *vis-à-vis* provincial powers then a stricter test is appropriate. A careful case by case assessment of the proper test is the best approach.

In determining the proper test it should be remembered that in a federal system it is inevitable that, in pursuing valid objectives, the legislation of each level of government will impact occasionally on the sphere of power of the other level of government; overlap of legislation is to be expected and accommodated in a federal state. Thus a certain degree of judicial restraint in proposing strict tests which will result in striking down such legislation is appropriate. I reiterate what I said on this general theme (although in a slightly different context) in *OPSEU v. Ontario (Attorney General)*, 1987 CanLII 71 (SCC), [1987] 2 SCR 2, at p. 18:

> The history of Canadian constitutional law has been to allow for a fair amount of interplay and indeed overlap between federal and provincial powers. It is true that doctrines like interjurisdictional and Crown immunity and concepts like "watertight compartments" qualify the extent of that interplay. But it must be recognized that these doctrines and concepts have not been the dominant tide of constitutional doctrines: rather they have been an undertow against the strong pull of pith and substance, the aspect doctrine and, in recent years, a very restrained approach to concurrency and paramountcy issues.
>
> The above comments also emphasize that the question in this appeal of how far federal legislation may validly impinge on provincial powers is one part of the general notion of the "pith and substance" of legislation; i.e., the doctrine that a law which is federal in its true nature will be upheld even if it affects matters which appear to be a proper subject for provincial legislation (and vice versa). On page 334 of his book *Constitutional Law of Canada* (2nd ed. 1985), Professor Hogg explains this in the following way:
>
> > The pith and substance doctrine enables a law that is classified as "in relation to" a matter within the competence of the enacting body to have incidental or ancillary effects on matters outside the competence of the enacting body.
>
> I emphasize that these comments should not be seen as altering the balance of constitutional powers. Both provincial and federal governments have equal ability to legislate in ways that may incidentally affect the other government's sphere of power. I quote from Professor Hogg again, where at p. 336 he states: "I think it is plain both on principle and on authority that the provincial enumerated powers have exactly the same capacity as the federal enumerated powers to `affect' matters allocated to the other level of government."

In the present appeal, the appellant focusses its attack on a particular section of the Act. The issue is not whether the Act as a whole is rendered *ultra vires* because it reaches too far, but whether a particular provision is sufficiently integrated into the Act to sustain its constitutionality. In numerous cases courts have considered the nature of the relationship which is required, between a provision which encroaches on provincial jurisdiction and a valid statute, for the provision to be upheld. In different contexts courts have set down slightly different requirements, *viz.*: "rational and functional connection" in *Papp v. Papp*, 1969 CanLII 219 (ON CA), [1970] 1 O.R. 331; *R. v. Zelensky*, 1978 CanLII 8 (SCC), [1978] 2 SCR 940, and *Multiple Access Ltd. v. McCutcheon*, 1982 CanLII 55 (SCC), [1982] 2 SCR 161; "ancillary", "necessarily incidental" and "truly necessary" in the *Regional Municipality of Peel v. MacKenzie*, *supra*; "intimate connection", "an integral part" and "necessarily incidental" in *Northern Telecom Ltd v. Communications Workers of Canada*, 1979 CanLII 3 (SCC), [1980] 1 SCR 115; "integral part" in *Clark v. Canadian National Railway Co.*, 1988 CanLII 18 (SCC), [1988] 2 SCR 680; "a valid constitutional cast by the context and association in which it is fixed as a complementary provision" in *Vapor Canada*, *supra*; and "truly necessary" in *R. v. Thomas Fuller Construction Co. (1958) Ltd.*, 1979 CanLII 187 (SCC), [1980] 1 SCR 695. I believe the approach I have outlined is consistent with the results of this jurisprudence. These cases are best understood as setting out the proper test for the particular context in issue, rather than attempting to articulate a test of general application with reference to all contexts. Thus the tests they set out are not identical. As the seriousness of the encroachment on provincial powers varies, so does the test required to ensure that an appropriate constitutional balance is maintained. In surveying past jurisprudence it is to be expected that some example of patterns between the appropriate test of fit, and the head of power under which the federal legislation is valid, will be found. Such patterns exist not only because of a possible degree of similarity between the federal legislation which falls under any one head of power, but also for the reason that certain federal heads of power, for example, s. 92(10), are narrow and distinct powers which relate to particular works and undertakings and are thus quite susceptible to having provisions "tacked-on" to legislation which is validated under them, while other federal heads of power, for example, trade and commerce, are broad and therefore less likely to give rise to highly intrusive provisions.

The steps in the analysis may be summarized as follows: First, the court must determine whether the impugned provision can be viewed as intruding on provincial powers, and if so to what extent (if it does not intrude, then the only possible issue is the validity of the act). Second, the court must establish whether the act (or a severable part of it) is valid; in cases under the second branch of s. 91(2) this will normally involve finding the presence of a regulatory scheme and then ascertaining whether that scheme meets the requirements articulated in *Vapor Canada*, *supra*, and in *Canadian National Transportation*, *supra*. If the scheme is not valid, that is the end of the inquiry. If the scheme of regulation is declared valid, the court must then determine whether the impugned provision is sufficiently integrated with the scheme that it can be upheld by virtue of that relationship. This requires considering the seriousness of the encroachment on provincial powers, in order to decide on the proper standard for such a relationship. If the provision passes this integration test, it is *intra vires* Parliament as an exercise of the general trade and commerce power. If the provision is not sufficiently integrated into the scheme of regulation, it cannot be sustained under the second branch of s. 91(2). I note that in certain cases it may be possible to dispense with some of the aforementioned steps if a clear answer to one of them will be dispositive of the issue. For example, if the provision in question has no relation to the regulatory scheme then the question of its validity may be quickly answered on that ground alone. The approach taken in a number of past cases is more easily understood if this possibility is recognized.

Does Section 31.1 Encroach on Provincial Powers?

The first step, therefore, in assessing the validity of s. 31.1 of the *Combines Investigation Act* is to determine whether the impugned provision can be seen as encroaching on provincial powers, and if so, to what extent. As section 31.1 creates a civil right of action it is not difficult to conclude that the provision does, on its face, appear to encroach on provincial power to some extent. The creation of civil actions is generally a matter within provincial jurisdiction under s. 92(13) of the Constitution Act, 1867. This provincial power over civil rights is a significant power and one that is not lightly encroached upon. In assessing the seriousness of this encroachment, however, three facts must be taken into consideration. The first is that s. 31.1 is only a remedial provision; its purpose is to help enforce the substantive aspects of the Act, but it is not in itself a substantive part of the Act. By their nature, remedial provisions are typically less intrusive *vis-à-vis* provincial powers. The second important fact is the limited scope of the action. Section 31.1 does not create a general cause of action; its application is carefully limited by the provisions of the Act. The third relevant fact is that it is well-established that the federal government is not constitutionally precluded from creating rights of civil action where such measures may be shown to be warranted. This Court has sustained federally-created civil actions in a variety of contexts: see *Nykorak v. Attorney General of Canada*, 1962 CanLII 38 (SCC), [1962] SCR 331 (allowing the federal Crown to sue a private party for the loss of services of a member of the armed forces); *Jackson and Jackson*, 1972 CanLII 141 (SCC), [1973] SCR 205; *Zacks v. Zacks*, 1973 CanLII 137 (SCC), [1973] SCR 891 (upholding the corollary relief provisions of the Divorce Act respecting alimony,

maintenance or custody); and *Multiple Access Ltd. v. McCutcheon*, *supra* (upholding a civil remedy against directors and officers of federally incorporated companies who engaged in insider trading). In the last mentioned case, at pages 182-83, the following passage, adopted by six of the seven members of the Court, appears:

One reservation with respect to the impugned sections of the federal act may be in the imposition of civil liability in s. 100.4(1). Does this imposition of civil liability in a federal statute so invade the provincial domain as to render the sections imposing liability *ultra vires*? This, in essence, was the argument of the appellants. But as Professors Anisman and Hogg point out: "Judicial decisions concerning a number of disparate matters such as federal elections, railways, federal corporations and even divorce have upheld Parliament's jurisdiction to provide civil relief in order to effectuate its legislative policies" ("Constitutional Aspects of Federal Securities Legislation" in *Proposals for a Securities Market Law for Canada* (1979), vol. 3, chap. III, at p. 192). In my opinion, ss. 100.4 and 100.5 have a general corporate purpose and a "rational, functional connection" with company law. The sections in my view are *intra vires* the Parliament of Canada.

It is clear that the inclusion of a private right of action in a federal enactment is not constitutionally fatal. The following excerpt from p. 415 of *Cushing v. Dupuy* (1880), 5 App. Cas. 409, a case cited by Sir Montague Smith at p. 113 in *Parsons*, *supra*, is apposite:

> It was contended for the Appellant that the provisions of the *Insolvency Act* interfered with property and civil rights, and was therefore *ultra vires*. This objection was very faintly urged. ...
>
> ...
>
> It would be impossible to advance a step in the construction of a scheme for the administration of insolvent estates without interfering with and modifying some of the ordinary rights of property, and other civil rights, nor without providing some mode of special procedure for the vesting, realisation, and distribution of the estate, and the settlement of the liabilities of the insolvent.
>
> In sum, the impugned provision encroaches on an important provincial power; however, the provision is a remedial one; federal encroachment in this manner is not unprecedented and, in this case; encroachment has been limited by the restrictions of the Act.
>
> …

The second step in determining the validity of s. 31.1 is to establish whether the Act contains a regulatory scheme. …

…

The Validity of s. 31.1 of the *Combines Investigation Act*

Having found that the *Combines Investigation Act* contains a regulatory scheme, valid under s. 91(2) of the Constitution Act, 1867, the only issue remaining to be addressed is the constitutional validity of s. 31.1. As I have already noted, mere inclusion in a valid legislative scheme does not *ipso facto* confer constitutional validity upon a particular provision. The provision must be sufficiently related to that scheme for it to be constitutionally justified. The degree of relationship that is required is a function of the extent of the provision's intrusion into provincial powers. I have already discussed this issue and concluded that s. 31.1 intrudes, though in a limited way, on the important provincial power over civil rights. In this light, I do not think that a strict test, such as "truly necessary" or "integral", is appropriate. On the other hand, it is not enough that the section be merely "tacked on" to admittedly valid legislation. The correct approach in this case is to ask whether the provision is functionally related to the general objective of the legislation, and to the structure and the content of the scheme. A similar test has been applied in other cases, as I have noted, and I think it is also the proper test for the circumstances of this appeal.

The nature of this relationship is addressed in this last stage of constitutional analysis. If section 31.1 cannot be characterized as functionally related to the scheme of combines regulation, it will be *ultra vires*. Neither the respondent nor the Attorney General of Canada submitted that s. 31.1 could be sustained under a head of power other than s. 91(2).

I am of the opinion that the necessary link between s. 31.1 and the Act exists. Section 31.1 is an integral, well-conceived component of the economic regulation strategy found in the *Combines Investigation Act*. Even if a much stricter test of fit were applied -- for instance, one of "necessarily incidental" -- s. 31.1 would still pass the test. Under the test of "functionally related" the section is clearly valid.

Section 31.1 is one of the arsenal of remedies created by the Act to discourage anti-competitive practices. Section 31.1 simply serves to reinforce other sanctions of the Act. The other remedial responses include orders of the Restrictive Trade Practices Commission (Part IV.1), interim injunctions (Part IV), and criminal sanctions (Part V). Like the other remedies, s. 31.1 is intimately linked to the *Combines Investigation Act*. It takes on meaning only by reference to other provisions of the Act and has no independent content. As a result, the section is carefully bounded by the parameters of the *Combines Investigation Act*. It provides a private remedy only for particular violations of the Act and does not create a private right of action at large.

Section 31.1 of the *Combines Investigation Act* is also fundamentally integrated into the purpose and underlying philosophy of the *Combines Investigation Act*. There is a close congruence between the goal of enhancing healthy competition in the economy and s. 31.1 which creates a private remedy dependent for its effectiveness on individual initiative. The very exercise of the remedy in s. 31.1 by a company against a competitor whose behaviour has transgressed the code of conduct established by the Act may be said to reflect and promote the spirit of competition informing the *Combines Investigation Act*. In my view, the intimate tie between the purpose of the Act and a privately initiated and privately conducted enforcement mechanism is a strong indication that s. 31.1 is enmeshed in the fabric in the Act.

It is important to note that s. 31.1 does not create a general action for damages. Before any person can recover under s. 31.1 he or she must have suffered loss or damage as a result of (i) conduct contrary to Part V of the Act or (ii) the failure of the defendant to comply with an order of the Commission or a court under the Act. Section 31.1(2) of the Act provides in part that in any action under subs. (1) against a person, the record of proceedings in any court in which that person was convicted of an offence under Part V or convicted of or punished for failure to comply with an order of the Commission or a court under the Act is, in the absence of any evidence to the contrary, proof that the person against whom the action is brought engaged in conduct that was contrary to a provision of Part V or failed to comply with an order of the Commission or a court under the Act. It seems to me that s. 31.1 is fully integrated into the Act, indeed, it is a core provision of the very pith and substance of the Act. …

…

For these reasons, I conclude that s. 31.1 is an integral part of the *Combines Investigation Act* scheme regulating anti-competitive conduct. The relationship between the section and the Act easily meets the test for the section to be upheld. This finding should not be interpreted as authority for upholding all provisions creating private civil action that are attached to a valid trade and commerce regulatory scheme or any other particular type of scheme. Section 31.1 is carefully constructed and restricted by the terms of the *Combines Investigation Act*.

This conclusion rebuts the appellant's argument that s. 31.1 tilts the constitutional balance between the federal domain and the domain of the provinces in favour of Parliament. Satisfying all of the concerns which I have discussed ensures that the constitutional balance will not be upset.

…

> For all of the foregoing reasons I am of the view that s. 31.1 is *intra vires* Parliament by virtue of its relationship to the scheme of economic regulation found in the *Combines Investigation Act*.

In *General Motors*, Chief Justice Dickson set out the general framework for applying the ancillary powers doctrine (referred to as "necessarily incidental" in the decision). *Quebec (Attorney General) v. Lacombe*, 2010 SCC 38, expands on the required fit between the *ultra vires* provision and the valid regulatory scheme for the ancillary powers doctrine to apply. *Lacombe* also helpfully sets out the relationships between various interpretative doctrines, including the incidental effects and ancillary powers doctrines. The case deals with construction of an aerodrome contrary to municipal zoning regulations.

Lacombe concerned the operation of an aerodrome on Gobeil Lake, a popular vacation spot in Quebec. Mr. Lacombe operated a float plane business that carried out activities on Gobeil Lake. After receiving complaints about aviation activities on the lake, in 1995, the municipality passed Bylaw No. 260. Bylaw No. 260, which amended Bylaw No. 210, prohibited the construction and use of aerodromes in Zone 33-RF, which encompassed parts of the municipality and included Gobeil Lake. Since Bylaw No. 260 amended Bylaw No. 210, the case raised the issue of ancillary powers. Specifically: was Bylaw No. 260 sufficiently connected to Bylaw No. 210 to benefit from its validity?

5.2 *Quebec (Attorney General) v. Lacombe*, 2010 SCC 38

> [31] Although the amendments brought by by-law No. 260 relate to the federal authority over aeronautics rather than the provincial competence of zoning, they may nevertheless be found valid if they are "ancillary" to the exercise of a provincial power.
>
> (1) The Ancillary Powers Doctrine
>
> [32] The ancillary powers doctrine may be briefly described. Recognizing that a degree of jurisdictional overlap is inevitable in our constitutional order, the law accepts the validity of measures that lie outside a legislature's competence, if these measures constitute an integral part of a legislative scheme that comes within provincial jurisdiction: *General Motors of Canada Ltd. v. City National Leasing*, 1989 CanLII 133 (SCC), [1989] 1 SCR 641, at pp. 668-70.
>
> [33] The Constitutions of the United States and Australia expressly provide for the exercise of ancillary powers: *Constitution of the United States of America*, art. I, § 8, cl. 18; *Commonwealth of Australia Constitution Act*, s. 51(xxxix). However, Canada's Constitution is silent on the issue: *Papp v. Papp*, 1969 CanLII 219 (ON CA), [1970] 1 O.R. 331 (C.A.), at p. 336. On occasion, in the past, it has been held that this silence, coupled with the wording of ss. 91 and 92 of the Constitution Act, 1867, deprives Canadian legislative bodies of the ability to make use of competencies assigned to the other level of government: *Attorney General of Nova Scotia v. Attorney General of Canada*, 1950 CanLII 26 (SCC), [1951] SCR 31, *per* Rinfret C.J.; *St. Catharines Milling and Lumber Co. v. The Queen* (1887), 1887 CanLII 3 (SCC), 13 SCR 577, at p. 637.
>
> [34] However, it is now well established that both Parliament and the legislatures may avail themselves of ancillary legislative powers: *Attorney-General of Ontario v. Attorney-General for the Dominion of Canada*, [1894] A.C. 189 (P.C.) (the "*Insolvency Reference*"), at pp. 200-201; *Grand Trunk Railway Company of Canada v. Attorney-General of Canada*, [1907] A.C. 65 (P.C.); *Attorney-General for Canada v. Attorney-General for British Columbia*, 1929 CanLII 439 (UK JCPC), [1930] A.C. 111 (P.C.), at p. 118; *Attorney-General for Canada v. Attorney-General for the Province of Quebec*, 1946 CanLII 354 (UK JCPC), [1947] A.C. 33 (P.C.), at p. 43; *Fowler v. The Queen*, 1980 CanLII 201 (SCC), [1980] 2 SCR 213, at p. 226; *Multiple Access Ltd. v. McCutcheon*, 1982 CanLII 55 (SCC), [1982] 2 SCR 161, at p. 183.
>
> [35] The ancillary powers doctrine permits one level of government to trench on the jurisdiction of the other in order to enact a comprehensive regulatory scheme. In pith and substance, provisions enacted pursuant to the ancillary powers doctrine fall outside the enumerated powers of their enacting body: *General Motors*, at pp. 667-70. Consequently, the invocation of ancillary powers runs contrary to the notion that Parliament and the legislatures have sole authority to legislate within the jurisdiction allocated to them by the Constitution Act, 1867. Because of this, the availability of ancillary powers is limited to situations in which the intrusion on the powers of the other level of government is justified by the important role that the extrajurisdictional provision plays in a valid legislative scheme. The relation cannot be insubstantial: *Nykorak v. Attorney General of Canada*, 1962 CanLII 38 (SCC), [1962] SCR 331, at p. 335; *Gold Seal Ltd. v. Attorney-General for the Province of Alberta* (1921), 1921 CanLII 25 (SCC), 62 SCR 424, at p. 460; *Global Securities*, at para. 23.
>
> [36] The ancillary powers doctrine is not to be confused with the incidental effects rule. The ancillary powers doctrine applies where, as here, a provision is, in pith and substance, outside the competence of its enacting body. The potentially invalid provision will be saved where it is an important part of a broader legislative scheme that is within the competence of the enacting body. The incidental effects rule, by contrast, applies when a provision, in pith and substance, lies within the competence of the enacting body but touches on a subject assigned to the other level of government. It holds that such a provision will not be invalid merely because it has an incidental effect on a legislative competence that falls beyond the jurisdiction of its enacting body. Mere incidental effects will not warrant the invocation of ancillary powers.
>
> [37] Nor is the ancillary powers doctrine to be confused with the double aspect doctrine. In *Canadian Western Bank*, at para. 30, Binnie and LeBel JJ. explained that the double aspect doctrine recognizes the overlapping jurisdiction of the two levels of government: ". . . some matters are by their very nature impossible to categorize under a single head of power: they may have both provincial and federal aspects. Thus, the fact that a matter may for one purpose and in one aspect fall within federal jurisdiction does not mean that it cannot, for another purpose and in another aspect, fall within provincial competence . . . ." By contrast, ancillary powers apply only where a legislative provision does not come within those heads of power assigned to its enacting body under the Constitution Act, 1867.
>
> [38] In summary, only the ancillary powers doctrine concerns legislation that, in pith and substance, falls outside the jurisdiction of its enacting body. Laws raising a double aspect come within the jurisdiction of their enacting body, but intrude on the jurisdiction of the other level of government because of the overlap in the constitutional division of powers. Similarly, the incidental effects rule applies where the main thrust of the law comes within the jurisdiction of its enacting body, but the law has subsidiary effects that cannot come within the jurisdiction of that body.
>
> [39] The jurisprudence reveals that there has been some debate about the precise nature of the connection required to validate a provision under the ancillary powers doctrine.
>
> [40] In an earlier era, when constitutional powers were thought of in terms of watertight compartments, a strict necessity test prevailed. The view then was that "it is within the competence of the Dominion Parliament to provide for matters which, though otherwise within the competence of the Provincial legislature, are necessarily incidental to effective legislation by the Parliament of the Dominion on a subject of legislation expressly enumerated in s. 91": *Attorney-General for Canada v. Attorney-General for the Province of Quebec*, at p. 43 (emphasis added), *per* Lord Porter. See also *Insolvency Reference*, at pp. 200-201; *Attorney-General for Canada v. Attorney-General for British Columbia*, at p. 118; *Attorney General of Canada v. C.P.R.*, 1958 CanLII 41 (SCC), [1958] SCR 285, at p. 290. The necessity standard continued to be affirmed into the 1980s: *R. v. Thomas Fuller Construction Co. (1958) Ltd.*, 1979 CanLII 187 (SCC), [1980] 1 SCR 695, *per* Pigeon J.; and *Regional Municipality of Peel v. MacKenzie*, 1982 CanLII 53 (SCC), [1982] 2 SCR 9, *per* Martland J.

[41] As a more flexible conception of division of powers took hold, the necessity test gave way to a rational, functional connection test. In *Papp*, decided in 1970, Laskin J.A. (as he then was) stated that the test for the integration of an otherwise *ultra vires* legislative provision was "whether there is a rational, functional connection between what is admittedly good and what is challenged" (p. 336). A jurisdictional overhang would be permitted where the impugned portions of the law were complementary to the overarching purpose of the legislative scheme. The more flexible rational functional test was affirmed in *R. v. Zelensky*, 1978 CanLII 8 (SCC), [1978] 2 SCR 940, and in *McCutcheon*, at p. 183.

[42] In *General Motors*, Dickson C.J. proposed a qualification on the rational functional test: the necessity test should apply to serious intrusions on the powers of the other branch of government, while the rational functional test should apply to lesser intrusions. The required degree of integration increases in proportion to the seriousness of the encroachment. Where the impugned legislation encroaches only slightly on the jurisdiction of the other level of government, a rational, functional connection is required. As the degree of intrusion grows more serious, the required degree of integration tends toward a test of necessity. A particularly serious encroachment will attract a standard of strict necessity. See *Reference re Goods and Services Tax*, 1992 CanLII 69 (SCC), [1992] 2 SCR 445 ("*GST Reference*"), at pp. 469-70, on the application of this continuum.

[43] The *General Motors* test has been applied, *mutatis mutandis*, in all subsequent decisions of this Court in which the possibility of ancillary jurisdiction was canvassed: see the *GST Reference*; *Kitkatla*; *Global Securities*; *Kirkbi AG v. Ritvik Holdings Inc.*, 2005 SCC 65, [2005] 3 SCR 302; *Canadian Western Bank*. It has been criticized on the basis that it involves a difficult distinction between serious and less serious intrusions (one's view of the seriousness of an intrusion may vary depending on whether one is intruding or being intruded upon, for example), and on the basis that it is not really a logical synthesis of the *Attorney-General for Canada v. Attorney-General for the Province of Quebec* and *Papp* lines of authority. It has also been pointed out that in applying the combined test, this Court has always backed away from a test of strict necessity, almost always applying the more flexible rational functional test. See P. W. Hogg, *Constitutional Law of Canada* (5th ed. Supp.), vol. 1, at p. 15-39 *et seq.* (The exception in this Court's jurisprudence being the *GST Reference*, at p. 471, where Lamer C.J. accepted that the non-revenue-generating provisions of the *GST Act* intruded substantially on provincial jurisdiction. Even then, he upheld their validity not because they were necessary, but merely because they were "highly integrated".)

[44] It is unnecessary to decide the merits of these criticisms in the present appeal because the legislation here at issue does not constitute a serious intrusion on federal jurisdiction. In my view, the rational functional test is applicable to this case.

[45] Under the rational functional test used by Laskin J.A. in *Papp*, and repeatedly affirmed in the jurisprudence of this Court, ancillary powers will only save a provision that is rationally and functionally connected to the purpose of the legislative scheme that it purportedly furthers. It is not enough that the measure supplement the legislative scheme; it must actively further it.

[46] In *Kirkbi*, for example, LeBel J. found a "functional relationship" on the basis that "the passing-off action plays a clear role in the federal scheme", filling a gap and thus avoiding inconsistencies in patent protection and uncertainty (para. 36). Similarly, in *Papp*, Laskin J.A. stated: "I can pose the issue shortly, if not more illuminatingly, by asking whether the custody provisions of the Divorce Act complement rather than supplement the admittedly valid divorce portions" (p. 336).

(2) Application of the Ancillary Powers Doctrine

[47] The question is whether the amendments brought by by-law No. 260, which in pith and substance lie outside the provincial power, are nevertheless valid because they are ancillary to valid provincial provisions — in other words, whether the amendments are rationally and functionally connected to valid provincial zoning objectives in the sense described in the preceding section.

[48] As is illustrated by the above cited examples from the jurisprudence, the application of ancillary powers to habilitate *prima facie* invalid legislation requires that the impugned provision, both rationally and in its function, further the purposes of the valid legislative scheme of which it is said to be part. One may ask, as LeBel J. did in *Kirkbi*, whether there is a "functional relationship" between the scheme and the impugned provision. One might also ask whether the intruding measure "fills a gap" in the legislative scheme, or whether it serves some other purpose related to the scheme, such as avoiding inconsistent application or uncertainty. Regardless of the precise wording of the test, the basic purpose of this inquiry is to determine whether the impugned measure not only supplements, but complements, the legislative scheme; it is not enough that the measure be merely supplemental: *Papp*.

[49] This brings us to the inquiry at hand. The starting point is the purpose of the legislative scheme that by-law No. 260 is alleged to further. This scheme is found in by-law No. 210, the broader zoning framework of the municipality of Sacré-Cœur. By-law No. 210 is generally valid legislation in relation to land use planning: see *Ontario Home Builders' Association v. York Region Board of Education*, 1996 CanLII 164 (SCC), [1996] 2 SCR 929, at para. 50. The question is whether the general ban on aerodromes in zone 33-RF introduced by by-law No. 260 is rationally and functionally connected to by-law No. 210, such that it should be sustained as a functional part of the whole — notwithstanding its *prima facie* constitutional invalidity. In my view, the answer to this question is no.

[50] Zoning legislation, such as by-law No. 210, has as its purpose the regulation of land use, having regard to the underlying characteristics and uses of the land in question: see *Johannesson*, at pp. 319-20, *per* Estey J. It functions by establishing zones, or regions, where particular activities may be conducted, having regard to the nature of the territory and related factors. It thus seeks to establish a rational and fair basis upon which land users may predicate their behaviour. It generally seeks to treat similar areas similarly, and avoids stand-alone one-off prohibitions. The underlying purpose of zoning legislation, such as by-law No. 210, is to rationalize land use for the benefit of the general populace.

[51] A close examination of the purposes and effects of by-law No. 260 reveals that it does not further the objectives of zoning law generally, or by-law No. 210 in particular.

[52] As discussed earlier in the context of the pith and substance of the amendments brought by by-law No. 260, the Province asserts that by-law No. 260 was passed to protect the use of Gobeil Lake and similar areas by vacationers. However, by-law No. 260 does not confine its ban on aerodromes to vacation areas. Rather, it bans aerodromes *throughout the municipality*, which spans a variety of land uses.

[53] The lack of connection between by-law No. 260 and the general zoning purposes of by-law No. 210 is evidenced by the lack of correlation between the nature of the areas affected and the ban on aerodromes.

[54] By-law No. 260 treats similar parcels of land differently by expressly permitting aerodromes in zone 61-RF, but not in the adjacent zone 33-RF. These two zones are identical in essentially banning all but a few land uses. The only difference between the zoning of 33-RF and 61-RF is that the latter permits aerodromes. If the purpose of the broader zoning scheme in zone 33-RF — to protect use by vacationers — is established by these land use restrictions, then the same must hold for zone 61-RF. Yet it does not.

[55] Conversely, by-law No. 260 treats different parcels the same by broadly banning water aerodromes throughout the municipality, not only in areas used by vacationers. Again, this broad prohibition does not correlate with the land uses in the area covered.

[56] Like the impugned law in *Johannesson*, by-law No. 260 purports to regulate the location of aerodromes without reference to the underlying land use regime. It does not function as zoning legislation, but rather, is a stand-alone prohibition. It treats similar parcels differently, and different parcels the same, belying the first principle of zoning legislation.

[57] At the end of the day, what is missing is evidence of any purpose for by-law No. 260 other than the prohibition of certain aeronautical activities in a significant portion of the municipality. There is no evidence of a gap in by-law No. 210 that by-law No. 260 fills. There is no evidence of a feature of by-law No. 210 that by-law No. 260 enhances; no evidence of an inconsistency or uncertainty that it removes from by-law No. 210's operation. There is no evidence that by-law No. 260 is an integrated feature of the zoning scheme, viewed as a whole. Indeed, it is difficult to say that by-law No. 260 is even supplemental to the zoning scheme, given its arbitrary focus on banning aeronautics without regard to underlying land use, and in any event supplementation would not be enough to save it: Papp. In sum, there simply is not the kind of connection one finds in the cases where invalid legislation has been resuscitated through the ancillary powers doctrine.

[58] I conclude that the amendments brought by by-law No. 260 do not meet the rational functional connection test in General Motors. It has not been shown that the amendments further the zoning purposes of by-law No. 210, in either purpose or effect. These amendments are simply, on their face and in their impact, measures directed at removing aviation activities from a significant part of the municipality. No redeeming connection is established, and the impugned legislation cannot be habilitated by invoking ancillary powers.

In *Lacombe*, the Supreme Court of Canada revisited the "fit test" from *General Motors* and set out the requirement that the impugned provision must be "rationally and functionally connected" to the broader legislative scheme. In *Reference re Assisted Human Reproduction Act*, 2010 SCC 61, the Court offered further guidance on how to assess the scope of the intrusion of the *ultra vires* provision into the competing level of government's jurisdiction.

5.3 *Reference re Assisted Human Reproduction Act*, 2010 SCC 61

After significant consultation and review, the federal government enacted the *Assisted Human Reproduction Act*, S.C. 2004, c. 2 in March 2004. The lengthy *Act* covered a wide swath of activities, including human cloning, the commercialization of human reproductive material, the manipulation and use of human reproductive material and *in vitro* embryos, transgenic engineering, and the repayment of expenses to donors and surrogates. Sections 5 to 9 referred to prohibited activities, such as the sale of eggs or sperm and cloning. Sections 10 to 13, meanwhile, referenced a number of controlled activities—activities that would be prohibited only if they were unregulated. The remainder of the *Act* established an agency that administered and enforced the *Act* and regulated activities and penalties, among other things.

C. Are the Administrative Provisions of the Act (Sections 14 to 61 and 65 to 68) Ancillary to the Prohibition Regime in Sections 5 to 13?

[124] The criminal prohibitions in ss. 5 to 13 are followed by a number of sections that provide for their administration and enforcement. Sections 14 to 19 set up a system of information management. Sections 20 to 39 of the Act establish the Assisted Human Reproduction Agency of Canada. Sections 40 to 59 charge the Agency with administering and enforcing the Act and regulations, and authorize it to issue licences for certain activities related to assisted reproduction. Finally, ss. 60 and 61 provide for penalties, ss. 65 to 67 authorize the promulgation of regulations, and s. 68 addresses the equivalency agreements with the provinces.

[125] In pith and substance, many of these provisions do not come within Parliament's criminal law power. However, the Attorney General of Canada argues that these provisions (the "ancillary provisions") support the criminal law prohibitions in ss. 5 to 13 of the Act and are valid under the doctrine of ancillary powers (also known as the ancillary doctrine: see *Global Securities Corp. v. British Columbia (Securities Commission)*, 2000 SCC 21, [2000] 1 SCR 494, at para. 45).

[126] The ancillary powers doctrine holds that legislative provisions which, in pith and substance, fall outside the jurisdiction of the government that enacted them, may be upheld on the basis of their connection to a valid legislative scheme. This doctrine addresses the reality in federal states that one level of government will often be unable to legislate effectively on matters within its jurisdiction without trenching on subjects that belong to the other level of government. At the same time, however, the doctrine of ancillary powers seeks to maintain the basic division of federal and provincial powers established by the Constitution Act, 1867.

[127] The Court has developed a rational, functional test to describe the required connection, with the caveat that a test of necessity will apply where the encroachment on the jurisdiction of the other level of government is substantial: *General Motors*, at pp. 667-70; *Reference re Goods and Services Tax*, 1992 CanLII 69 (SCC), [1992] 2 SCR 445, at pp. 469-70; *Kirkbi AG v. Ritvik Holdings Inc.* The idea of proportionality underlies the idea of a rational and functional standard for some cases and standard of necessity for others. The more an ancillary provision intrudes on the competency of the other level of government, the higher the threshold for upholding it on the basis of the ancillary powers doctrine. Though this test has been criticized as too dependent on a subjective classification of the severity of the intrusion (see Hogg, at p. 15-43), for the purposes of this decision it need not be revisited.

[128] In General Motors, Dickson C.J. noted a number of factors that would determine the severity of an extrajurisdictional incursion. These factors may be summarized as follows.

[129] The first factor concerns the scope of the heads of power in play — whether they are broad or narrow. Dickson C.J. focussed on the head of power that validates the scheme in which the impugned provision appears. Broad heads of power lend themselves to jurisdictional overlap, and are "therefore less likely to give rise to highly intrusive provisions" (General Motors, at p. 671). This stands in contrast to narrow heads of power, which are "quite susceptible to having provisions 'tacked-on' to legislation which is validated under them" (ibid.). Dickson C.J. thus concluded that the intrusion on the powers of the other level of government will usually be less serious where the impugned provision appears in a legislative scheme that is validated under a broad head of power. This logic suggests that it is also important to consider the head of power that the impugned provision is said to infringe. If it intrudes upon a broad head of power, the intrusion will generally be less serious because it does not overwhelm the jurisdiction of the other level of government. Conversely, an intrusion on a narrow legislative competency will be more serious because it threatens to obliterate that head of power.

[130] The second factor concerns the nature of the impugned provision. In General Motors, Dickson C.J. considered the intrusion on provincial powers less serious because the nature of the impugned provision in that case was remedial. The provision was designed "to help enforce the substantive aspects of the Act, but it [was] not in itself a substantive part of the Act" (p. 673). Dickson C.J. also noted that the incursion on the jurisdiction of the other level of government would be less serious where the impugned provision was limited in scope, and did not create general rights. Another relevant aspect of the nature of the impugned provision is whether it is intended to replace legislation introduced by the other level of government, or merely supplement it. An intrusion will be less serious when the impugned provision is meant to coexist with legislation enacted by the other level of government.

[131] Finally, Dickson C.J. considered whether the impugned provision's enacting body had a history of legislating on the matter in question. A history of legislation in the area supports the legitimacy of the impugned provisions and suggests they will not prove unduly intrusive on the other level of government. Thus the enacting body is "not constitutionally precluded" from enacting similar legislation "where such measures may be shown to be warranted" (p. 673). In General Motors, it sufficed that Parliament had a history of intruding on provincial jurisdiction by creating rights of civil action. This track record demonstrated that the inclusion of such a right was "not constitutionally fatal" (p. 674).

[132] Dickson C.J.'s list of factors did not purport to be exhaustive, and the assessment of the seriousness of an intrusion must ultimately be grounded in the facts of each case. However, the General Motors factors align well with the facts of the present appeal.

[133] Before turning to the question of how seriously the ancillary provisions intrude on provincial jurisdiction, it is useful to describe the nature of the intrusions. Some of the ancillary provisions are criminal in nature and do not significantly intrude on provincial powers. The provisions for enforcement (ss. 45 to 59), promulgation of regulations (ss. 65 to 67), and imposition of penalties (ss. 60 and 61) are essentially part of the criminal prohibitions in ss. 5 to 13. Indeed, many of them are rough analogues to provisions in the Criminal Code. The organizational provisions in ss. 20 to 39 are similar in nature. However, other provisions intrude directly on provincial powers. Of particular significance are the information management provisions in ss. 14 to 19, which define standards of consent and privacy, charge the Agency with managing personal health information, and establish rules for the medical profession. Additionally, the administrative provisions in ss. 40 to 44 endow the Agency with broad powers to grant licences that affect the who, where, when, and how of assisted reproduction.

[134] The question is whether these provisions, taken as a whole, represent a minor incursion on provincial powers, or a substantial one. The first consideration is the scope of the provincial head of power in play. In the present appeal, the ancillary provisions generally fall under the provincial powers over property and civil rights (s. 92(13)) and matters of a merely local or private nature (s. 92(16)). Both of these heads of power are very broad, and they are often seen as sources of residual jurisdiction: see Hogg, at pp. 17-2 and 17-3. The breadth of these heads of power renders the intrusion less serious.

[135] This brings us to the second factor, the nature of the ancillary provisions. None of these provisions purport to create a substantive right. Rather, as explained below, they function merely to assist in enforcing the Act. Without the prohibition regime in ss. 5 to 13, these provisions would serve no purpose; they would establish an agency with nothing to enforce. Consent is obtained, information flows, and privacy is protected — all to ensure the smooth functioning of the criminal prohibitions. Moreover, the ancillary provisions are tailored to a small corner of the vast topography of the provincial power over health: namely, the harmful aspects of assisted human reproduction, insofar as they are specifically targeted by the Act and regulations. The impact of the law on provincial powers is real, but it is confined in a manner consistent with the purpose of the Act. Furthermore, the ancillary provisions are designed to supplement, rather than exclude, provincial legislation. The Act imposes federal rules on the practice of assisted reproduction, but it does not prevent the provinces from regulating this field, especially for the promotion of its beneficial aspects. This conclusion is underscored by the equivalency provision in s. 68, which provides that the Governor in Council may consent to suspending certain portions of the Act and regulations in favour of equivalent provincial laws. The nature of the ancillary provisions points in the direction of a minor intrusion on provincial powers.

[136] Finally, I turn to Parliament's history of legislating in the field occupied by the ancillary provisions. Parliament has long sought to address issues of morality, health, and security. As discussed above, it has also invoked the criminal law power to uphold regulatory schemes. Of particular relevance is Parliament's history of administering and enforcing these statutes, often by way of licensing bodies like the Agency: see Firearms Reference; Hydro-Québec. These historical comparisons suggest that the ancillary provisions constitute only a minor intrusion on provincial powers.

[137] In light of these factors, I conclude that the ancillary provisions constitute a minor incursion on provincial jurisdiction. Accordingly, the rational and functional connection test should be applied in this case.

[138] The rational and functional connection test assesses the relationship between the ancillary provisions and the otherwise valid legislative scheme in which they appear. The ancillary provisions must support the scheme in a way that is rational in purpose and functional in effect. This means that they must "complement rather than supplement" the legislative scheme: *Papp v. Papp*, 1969 CanLII 219 (ON CA), [1970] 1 O.R. 331 (C.A.), at p. 336. It also means they must be appropriately tailored to fill "gaps" in the legislative scheme that might otherwise lead to inconsistency, uncertainty, or ineffectiveness: *Kirkbi AG v. Ritvik Holdings Inc.* It need not be shown that the scheme would fail without the ancillary provisions; that would be a test of necessity. Rather, the ancillary provisions must themselves perform a function that complements the other provisions in the scheme, and they cannot have been tacked on merely as a matter of convenience.

[139] The rational, functional connection test recognizes the need to protect the supremacy of each level of government in the areas of jurisdiction assigned to it by the Constitution Act, 1867. However, it also recognizes that these heads of power are no longer watertight. The complexity of modern legislation will often render it impossible for one level of government to fulfill its constitutional mandate without trespassing on the jurisdiction of the other level. The Court's endorsement of a flexible, cooperative approach to federalism suggests that this kind of pragmatic lawmaking should be encouraged: see Dickson C.J. in *OPSEU v. Ontario (Attorney General)*, 1987 CanLII 71 (SCC), [1987] 2 SCR 2, at p. 18; *Canadian Western Bank v. Alberta*, at para. 42.

[140] The final question is whether the ancillary provisions are rationally and functionally connected to the valid criminal law provisions in ss. 5 to 13 of the Act.

[141] The first set of ancillary provisions are ss. 14 to 19, which address access to information. These provisions harness the flow of information, first to deal appropriately with consent and related privacy issues, and second to facilitate compliance with the Act. Both these goals are rationally connected to the scheme in ss. 5 to 13. The only purpose of these information management provisions is to further the scheme. Functionally, they fill gaps that would otherwise undermine the operation of the prohibition regime.

[142] Consent is central to the scheme established by the Act. Section 2(*d*) declares that "the principle of free and informed consent must be promoted and applied as a fundamental condition of the use of human reproductive technologies". This concern is reflected in the consent provisions of s. 8, which bar the use of human reproductive material to create an embryo, or the use of an *in vitro* embryo, unless the donor consents. The importance of consent is intimately tied to moral concerns, as discussed earlier.

[143] Sections 14 to 19 contain a number of provisions to ensure that participants give consent, have sufficient information to make this consent meaningful, and that their privacy is protected throughout. These provisions ensure that donors are aware of the requirements and protections of the Act and have adequate counselling services so as to give full and informed consent (s. 14(2)). Additionally, they provide for disclosure of relevant health information to participants in, and offspring of the processes (s. 18(3), (4) and (7)) so that they, too, will have the necessary information to manage their own reproductive lives. Furthermore, the information management provisions provide for the withdrawal of consent, requiring the destruction of personal information and reproductive material (s. 16(2) and (3)). Finally, these provisions also protect privacy interests, so that the laudable ends of informed consent do not unduly compromise human dignity (ss. 15(1) and 18(2)).

[144] Compliance is also central to the operation of the Act, because a prohibition regime would be useless if it did not have a mechanism to ensure that its provisions are respected. Sections 14 to 19 achieve this end by coordinating information sharing between the relevant actors: donors, practitioners, the Agency, and the public. With regard to donors, s. 14(2) provides that they will be informed of the prohibitions and protections of the Act, ensuring that they have sufficient information to comply with the Act and demand compliance of practitioners. As for practitioners and other licensees, s. 14(1) provides that they will have sufficient information about donors to avoid contravening the prohibitions in the Act (e.g., by accepting a donation of reproductive material from an underage donor, in contravention of s. 9). Sections 15 and 16 cover the disclosure of personal information to the Agency, the courts and insurers, while s. 17 charges the Agency with maintaining a personal health information registry to assist in administering and enforcing the Act (see also s. 18(1)). Finally, s. 19 gives the public a right to access certain information about the Agency's activities, thereby promoting compliance by subjecting enforcement of the Act to public scrutiny.

> [145] It is not difficult to see how the collection of information will help to ensure that the Act's prohibitions are respected and, if defied, that such conduct will be effectively prosecuted.
>
> [146] I conclude that ss. 14 to 19 are closely tied to the valid criminal prohibitions in ss. 5 to 13. These prohibitions fill a gap by addressing the practical considerations inherent in the functioning of the legislative scheme. Because they do so in a tailored manner, they constitute a proper exercise of ancillary powers.

In the end, there were three different judgments in *Reference re Assisted Human Reproduction Act*. Each made different validity findings with respect to the provisions at issue.

5.4 Questions

1. The three doctrines described above—pith and substance doctrine, incidental effects doctrine, and ancillary doctrine—are fundamentally cooperative in nature. They are concerned with narrow interpretation, generous overlap, and saving provisions which might otherwise be *ultra vires*. As you read about the next two doctrines, paramountcy and interjurisdictional immunity, consider whether they are animated by different considerations or prioritize different interpretative values. Consider, in particular, the extent to which the outcome in each case could be different if the decision maker took a less cooperative stance and looked through a different interpretation doctrine.
2. To what extent do you think that the outcomes in any of these cases turns on judicial values? What might some of those values be? For example, would the *Multiple Access* decision take a different approach to double aspect doctrine if Justice Dickson prioritized provincial rights and autonomy? Efficiency? Predictability?

For helpful discussions of values and models of federalism, see: Richard Simeon, "Criteria for Choice in Federal Systems" (1982-83) 8 Queen's LJ 131; Bruce Ryder, "The Demise and Rise of the Classical Paradigm in Canadian Federalism: Promoting Autonomy for the Provinces and First Nations" (1991) 36:2 McGill LJ 309; Jean Leclair, "The Supreme Court of Canada's Understanding of Federalism" (2003) 28 Queen's LJ 411; Wade Wright, "Federalism(s) in the Supreme Court During the McLachlin Years" (2018) 86 SCLR (2d) 213.

Sometimes, the nature or scale of the intrusion or conflict may require something more than firm application of pith and substance doctrine, generous tolerance of double aspects, or close connection to an otherwise valid legislative scheme. In such circumstances, courts rely on two other doctrines: interjurisdictional immunity doctrine and paramountcy doctrine.

6 Interjurisdictional immunity doctrine

Whereas the double aspect doctrine relates to matters with both federal and provincial dimensions, the doctrine of interjurisdictional immunity, or "IJI", says that some matters can only be dealt with by a single level of government. These matters are immune, in other words, from the application of legislation adopted by the other level of government. Although the doctrine has not always been consistently applied, aeronautics tends to me the most frequent example of where the doctrine of IJI limits, or immunizes, activities from the application of provincial laws. In *Quebec (Attorney General) v. Canadian Owners and Pilots Association*, 2010 SCC 39, for example, a majority of the Supreme Court ruled that the doctrine of interjurisdictional immunity meant that an aerodrome, or small airport, the operation of which lies exclusively under federal jurisdiction, was immune from the application of valid provincial legislation governing the use of agricultural land. Another area of relatively frequent application is telecommunications—a subject of federal jurisdiction, or, a federal "undertaking".

The scope of the doctrine of interjurisdictional immunity has been narrowed over the years, largely in recognition of the need for a flexible form of federalism and the related erosion of the concept of exclusivity in the division of powers. Indeed, interjurisdictional immunity reflects the "watertight compartments" approach to the division of powers set out by the Privy Council in 1937. But the doctrine is still alive, and it is worth understanding how it works and when it applies.

Importantly, as the interjurisdictional immunity cases demonstrate, where an activity is found to be immune from the operation of a valid law adopted by the level of government without jurisdiction over that activity, the law remains valid, or *intra vires*. But where interjurisdictional immunity applies, the law becomes *inapplicable* to the activity in question. This is so regardless of whether any legislation from the competing area of government governs the activity. Interjurisdictional immunity, then, is not about managing conflicting laws, nor is it a doctrine of validity. Rather, it deals with the *applicability* of valid laws to certain activities, or "undertakings", as the following cases illustrate.

Robin Elliot described the interjurisdictional immunity case law as cases where otherwise valid provincial legislation was held not to apply in certain contexts because of the strongly federal character of those contexts. The doctrine originated in cases about federally incorporated companies and then expanded to reach federally regulated undertakings, works, things, or persons. An "undertaking" is not a physical thing but an arrangement in which physical things are used. Some examples of undertakings include telecommunications, radio and television, pipelines, and aeronautics. In *CWB,* the Court confirmed that interjurisdictional immunity did not extend to all federal *activities*.

Section 91(29), read together with section 92(10), of the *Constitution Act, 1867,* plays an important role here:

> s. 91... it is hereby declared that (notwithstanding anything in this Act) the exclusive Legislative Authority of the Parliament of Canada extends to all Matters coming within the Classes of Subjects next hereinafter enumerated; that is to say,-
>
> 29. Such Classes of Subjects as are expressly excepted in the Enumeration of the Classes of Subjects by this Act assigned exclusively to the Legislatures of the Provinces.
>
> 92. In each Province the Legislature may exclusively make Laws in relation to Matters coming within the Classes of Subjects next hereinafter enumerated; that is to say,-
>
> 10. Local Works and Undertakings other than such as are of the following Classes:-
>
> (a) Lines of Steam or other Ships, Railways, Canals, Telegraphs, and other Works and Undertakings connecting the Province with any other or others of the Provinces, or extending beyond the Limits of the Province:
>
> (b) Lines of Steam Ships between the Province and any British or Foreign Country:
>
> (c) Such Works as, although wholly situate within the Province, are before or after their Execution declared by the Parliament of Canada to be for the general Advantage of Canada or for the Advantage of Two or more of the Provinces.

An early case, *McKay et al. v The Queen*, 1965 CanLII 3 (SCC), [1965] SCR 798, provides a helpful example of the rationale for interjurisdictional immunity. The McKays were convicted for displaying a sign on their on their property in contravention of a municipal zoning bylaw. The bylaw prohibited all signs except for real estate signs, trespassing signs, and safety signs. Their sign urged people to vote for a particular candidate during a federal election. The McKays argued that the bylaw was not intended to forbid the display of such a sign during a federal election.

> The majority found that the bylaw was *inapplicable* to the McKays. The Court split 5:4 and the decision generated significant debate and some criticism. In the excerpt below, Cartwright J explains the rationale for reading down the bylaw (pp. 804-807).

> A municipal corporation which derives its legislative power from an act of the Provincial Legislature, of course, cannot have power to enact a provision which would be *ultra vires* of that legislature.
>
> In the case at bar the learned Justice of the Peace and the Court of Appeal have given effect to the by-law as if it provided:
>
> > During an election to Parliament no owner of property in an R2 zone in Etobicoke shall display on his property any sign soliciting votes for a candidate at such election. I cannot think that it was the intention of the Council to so enact or that it was the intention of the Legislature to empower it to do so. Such an enactment would, in my opinion, be *ultra vires* of the provincial legislature. The power of the legislature to enact such a law, if it exists, must be found in s. 92 of the *British North America Act.* It is argued for the respondent that it falls within head 13, " Property and Civil Rights in the Province." Whether or not the right of an elector at a federal election to seek by lawful means to influence his fellow electors to vote for the candidate of his choice is aptly described as a civil right need not be discussed; it is clearly not a civil right in the province. It is a right enjoyed by the elector not as a resident of Ontario but as a citizen of Canada.
>
> A political activity in the federal field which has theretofore been lawful can, in my opinion, be prohibited only by Parliament. This rule is, I think, implicit in every judgment delivered in this Court in the recent case of *Oil Chemical and Atomic Workers International Union Local 16-601 V. Imperial Oil Ltd. et al.* The division of opinion in that case was not as to the soundness of the rule but as to whether the legislation there in question infringed it. The reasons of the majority, who upheld the provincial legislation which was under consideration, were given by Mart-land J. and by Ritchie J. Martland J. said, at page 594:
>
> > The legislation, however, does not affect the right of any individual to engage in any form of political activity which he may desire. It does not prevent a trade union from engaging in political activities.
>
> Ritchie J. said at page 608:
>
> > The impugned legislation does not, in my view, have the effect of in any sense precluding any trade union from indulging in political activity or from collecting political party funds from its members.
>
> If by-law 11737 is construed as it has been by the learned Justice of the Peace and by the Court of Appeal, it does not merely affect, it destroys the right of the appellants to engage in a form of political activity in the federal field which has heretofore been possessed and exercised by electors without question.
>
> I incline to agree with Mr. Brewin's submission that Parliament has "occupied the field" in enacting *The Canada Elections Act* and particularly s. 71 which reads as follows:
>
> > 71. Every printed advertisement, handbill, placard, poster or dodger having reference to any election shall bear the name and address of its printer and publisher, and any person printing, publishing, distributing or posting up, or causing to be printed, published, distributed or posted up, any such document unless it bears such name and address is guilty of an offence against this Act punishable on summary conviction as provided in this Act, and if he is a candidate or the official agent of a candidate is further guilty of an illegal practice.
>
> This indicates that Parliament contemplates that persons other than candidates may post up placards and posters having reference to an election and subjects the practice to a limited form of regulation. The impugned by-law forbids such posting up altogether on residential property, which will often be the only place on which the owner of that property has the right to post up such a placard. However, I do not find it necessary to reach a definite conclusion on this branch of Mr. Brewin's argument. In my opinion, the legislature has no power to enact a prohibition of the sort which by-law 11737, as construed by the Court of Appeal, contains as such a prohibition would be a law in relation to proceedings at a federal election and not in relation to any subject-matter within the provincial power. As was said by Lord Watson in *Union Colliery v. Bryden* :
>
> > The abstinence of the Dominion Parliament from legislating to the full limit of its powers, could not have the effect of transferring to any provincial legislature the legislative power which had been assigned to the Dominion by s. 91 of the Act of 1867.
>
> While that case dealt with an attempted invasion by the provincial legislature of a field exclusively reserved to Parliament by head 25 of s. 91 of the *British North America Act,* the subject matter of elections to Parliament appears to me to be from its very nature one which cannot be regarded as coming within any of the classes of subjects assigned to the legislatures of the provinces by section 92. As to this I agree with the following statement of Taschereau J., as he then was, in *Valin v. Langlois*:
>
> > It is admitted, and is beyond doubt, that the Parliament of Canada has the exclusive power of legislation over Dominion controverted elections. By the *lex Parliamentaria,* as well as by the 41st, 91st, and 92nd sections of the *British North America Act,* this power is as complete as if it was specially and by name contained in the enumeration of the federal powers of section 91, just as promissory notes, Insolvency, &c., are.
>
> It will be noted that the Judicial Committee in refusing leave to appeal stated that, although the questions dealt with in the judgment of this Court were undoubtedly of great importance, leave should be refused because the judgment sought to be appealed was clearly right; see *Valin v. Langlois*, particularly at page 122.
>
> It is scarcely necessary to add that, just as the legislature cannot do indirectly what it cannot do directly, it cannot by using general words effect a result which would be beyond its powers if brought about by precise words. An enactment in general words which, if literally construed, would bring about such a result is one to which the maxim, *Verba generalia restringuntur ad habilitatem rei vel personae,* is peculiarly applicable.
>
> Earlier in these reasons I have stated that counsel for the appellants did not question the validity of the by-law or of the enabling provincial legislation, I should make it plain that this admission on his part depended upon the acceptance of his argument that on its proper construction the by-law did not prohibit the display of the sign in regard to which the appellants were convicted. It was implicit in his argument that if the by-law should be construed so as to prohibit that display it would be *pro tanto* invalid.
>
> For these reasons I agree with the conclusion of Hughes J, that on its proper construction by-law number 11737 does not prohibit the display of the sign displayed by the appellants during the period mentioned in the charge against them. [Emphasis added]

The text emphasized in the excerpt above cautions that legislatures should not be able to do indirectly what they are not authorized to do directly. In other words, if a narrowly framed law would be *ultra vires* an enacting legislature, then a more broadly framed law should not avoid that *ultra vires* outcome. For example, if the municipality made a bylaw prohibiting all federal election campaign signs, that would be struck down as encroaching federal jurisdiction over elections. If, however, the municipality made a bylaw prohibiting all signs without exception under its property and civil rights jurisdiction, the breadth and generality of that bylaw ought not shield it from being struck down.

6.1 *Bell Canada v. Quebec (CSST)*, 1988 CanLII 81 (SCC), [1988] 1 SCR 749

In *Bell Canada v. Quebec (CSST)*, 1988 CanLII 81 (SCC), [1988] 1 SCR 749, the Court had to decide whether Quebec's legislation governing occupational health and safety could apply to Bell Canada, a federal undertaking. Importantly, the decision explains how severely the impugned law must impact the activity in question in order of the doctrine of interjurisdictional immunity to render the impugned law inapplicable.

17. To facilitate an understanding of the judgments of the lower courts and the arguments put forward by the parties, I think it is best to summarize at the outset the rules which have so far been applied by the courts and in accordance with which this Court must resolve the question stated at the start of these reasons and presented by the three appeals. These rules are well known and most of them need only be stated in the form of propositions: a more critical study of them can be made when it comes time to apply them to the circumstances of the case at bar, namely the classification of the impugned legislation.

Proposition One

18. General legislative jurisdiction over health belongs to the provinces, subject to the limited jurisdiction of Parliament ancillary to the powers expressly conferred by s. 91 of the Constitution Act, 1867 or the emergency power relating to the peace, order and good government of Canada: *Schneider v. The Queen*, 1982 CanLII 26 (SCC), [1982] 2 SCR 112, at p. 137, reasons of Dickson J.--as he then was--writing for seven judges of this Court. This jurisdiction has historically been seen as resting with the provinces under s. 92(16) of the Constitution Act, 1867, "Generally all Matters of a merely local or private Nature in the Province", although the considerable dimensions of this jurisdiction were probably not foreseen in 1867.

Proposition Two

19. In principle, labour relations and working conditions fall within the exclusive jurisdiction of the provincial legislatures: these matters fall into the class of subjects mentioned in s. 92(13) of the Constitution Act, 1867, "Property and Civil Rights in the Province": *Toronto Electric Commissioners v. Snider*, 1925 CanLII 331 (UK JCPC), [1925] A.C. 396 ("*Snider*").

Proposition Three

20. Notwithstanding the rule stated in proposition two, Parliament is vested with exclusive legislative jurisdiction over labour relations and working conditions when that jurisdiction is an integral part of its primary and exclusive jurisdiction over another class of subjects, as is the case with labour relations and working conditions in the federal undertakings covered by ss. 91(29) and 92(10)*a*., *b*. and *c*. of the Constitution Act, 1867, that is undertakings such as Alltrans Express Ltd., Canadian National and Bell Canada. It follows that this primary and exclusive jurisdiction precludes the application to those undertakings of provincial statutes relating to labour relations and working conditions, since such matters are an essential part of the very management and operation of such undertakings, as with any commercial or industrial undertaking: *Reference re Minimum Wage Act of Saskatchewan*, 1948 CanLII 36 (SCC), [1948] SCR 248 (the "*Postal Service Case 1948*"); *Reference re Industrial Relations and Disputes Investigation Act*, 1955 CanLII 1 (SCC), [1955] SCR 529 (the "*Stevedoring Case*"); *Commission du salaire minimum v. Bell Telephone Co. of Canada*, 1966 CanLII 1 (SCC), [1966] SCR 767 ("*Bell Canada 1966*"). This third proposition reflects, at least in part, a constitutional theory which commentators who have criticized it have called the theory of "interjurisdictional immunity". I will return to this below.

21. It should however be noted that the rules stated in this third proposition appear to constitute only one facet of a more general rule: works, such as federal railways, things, such as land reserved for Indians, and persons, such as Indians, who are within the special and exclusive jurisdiction of Parliament, are still subject to provincial statutes that are general in their application, whether municipal legislation, legislation on adoption, hunting or the distribution of family property, provided however that the application of these provincial laws does not bear upon those subjects in what makes them specifically of federal jurisdiction: *Canadian Pacific Railway Co. v. Corporation of the Parish of Notre Dame de Bonsecours*, [1899] A.C. 367 ("*Bonsecours*"); *Natural Parents v. Superintendent of Child Welfare*, 1975 CanLII 143 (SCC), [1976] 2 SCR 751 ("*Natural Parents*"); *Dick v. The Queen*, 1985 CanLII 80 (SCC), [1985] 2 SCR 309; *Derrickson v. Derrickson*, 1986 CanLII 56 (SCC), [1986] 1 SCR 285.

[…]

Whether ss. 33, 36, 37 and 40 to 45 of an Act respecting occupational health and safety (R.S.Q., c. S-2.1) are constitutionally applicable to Bell Canada?

[…]

192. I will now consider propositions two and three.

193. The *Act* deals with the following matters: working conditions, labour relations and the management of undertakings. Under proposition two, these subjects in principle fall into the class of subject mentioned in s. 92(13) of the Constitution Act, 1867: "Property and Civil Rights in the Province". The *Act* is therefore *intra vires*, valid and applicable to undertakings which it may constitutionally cover.

194. However, consistent with proposition three and by exception to proposition two, the *Act* characterized as above cannot be applied to the federal undertakings mentioned in s. 91(29) and s. 92(10)*a*., *b.* and *c.* of the Constitution Act, 1867, without regulating essential parts of those undertakings and without making the *Act*, as a consequence of such an application, a statute dealing with matters that fall within the classes of subjects mentioned in those subsections. The *Act* is therefore not applicable to undertakings such as Bell Canada and Canadian National.

195. However, it will be necessary to look further at proposition three and the cases on which it is based.

[…]

4. Impairment of Federal Undertakings

305. As I observed earlier, appellants and the Attorney General of Quebec argued that the *Act* does not impair the operations and functioning of Bell Canada.

306. This argument might be relevant if it were held that the application of the *Act* does not bear upon working conditions and labour relations as well as the management of a federal undertaking. Yet precisely because it must be held that the *Act* encroaches on a field that falls within the exclusive jurisdiction of Parliament and is, for this reason, not applicable to federal undertakings, it is not relevant whether the *Act* impairs or not the operations and functioning of Bell Canada and Canadian National. It suffices that the application of the *Act* bear upon the undertaking in what makes it specifically of federal jurisdiction for that undertaking to fall outside the ambit of this legislation. The same must be said of the Regulations in *Alltrans*.

307. I believe this analysis is consistent with that used in *Bell Canada 1966*. What was immediately at issue in that case was the requirement that the undertaking pay a levy of some $50,000 a year from 1959 to 1965, and it is unlikely that Bell Canada would not have ample funds to pay such amounts. It can also be assumed that Bell Canada was already paying its employees at least the minimum wage specified by the provincial statute. The undertaking was therefore not impaired by application of the provincial statute. Nonetheless, at p. 770 Martland J. cited s. 13 of the Minimum Wage Act, which gave the Commission the power to determine by ordinance the minimum wage, terms of payment,

working hours, conditions of apprenticeship "and the other working conditions deemed in conformity with the spirit of the act". Martland J. noted that the Commission had in fact adopted such an ordinance which, by its terms, applied to Bell Canada. He subsequently concluded that the power to regulate wages and working conditions, such as the wage scale of the undertaking, affects a vital part of the management and operation of the undertaking. What was held inapplicable to Bell Canada was thus not only the regulations imposing a levy of $50,000 which gave rise to the case, but also the ordinance enacted pursuant to s. 13, the regulatory power created by that section and the Minimum Wage Act as a whole.

308. Appellants and the Attorney General of Quebec argued in the case at bar that the re-assignment of a pregnant worker would not impair the undertaking, especially as the pregnant worker would eventually have to leave her work in any case, at least temporarily. I am quite prepared to admit that the exercise of this right by a pregnant worker would not go so far as to impair or paralyze the undertaking. However, given that it deprives the undertaking of part of its work force in the long distance communication sector requiring the aid of an operator, I would not be ready to concede that such a right of re-assignment does not by its very nature affect a vital or essential part of the Bell Canada undertaking.

[…]

310. I am therefore of the view that the test of impairment is insufficient and is not conclusive in cases where, without going so far as to impair or paralyze federal undertakings, such application affects a vital part of those undertakings.

[…]

314. The impairment test is not necessary in cases in which, without going so far as to impair the federal undertaking, the application of the provincial law affects a vital part of the undertaking. This appears to be the notion which Professor Hogg quite properly mentions at p. 329 of his text, subject to our disagreement on another point:

From the company cases a similar idea of immunity was carried over to cases concerning federally regulated undertakings.

315. Professor Hogg comments, in a footnote:

> The issue is not quite the same. The federal incorporation power does not authorize regulation of the activities of federally-incorporated companies, and therefore there can be no immunity from provincial laws regulating the activities of such companies. Undertakings (whether incorporated federally or provincially or outside Canada or even if unincorporated) operating in fields of federal legislative competence are, by definition, subject to federal regulation of their activities, and therefore some immunity from provincial laws purporting to regulate the activities of such undertakings is possible. I argue later that no immunity is necessary, but, if there is to be some immunity, one would expect it to be narrower for undertakings whose only "federal" characteristic is that they are federally-incorporated companies than for undertakings operating within fields of federal legislative competence.

316. In order for the inapplicability of provincial legislation rule to be given effect, it is sufficient that the provincial statute which purports to apply to the federal undertaking affects a vital or essential part of that undertaking, without necessarily going as far as impairing or paralyzing it. Moreover, appellants and the Attorney General of Quebec only put forward the impairment argument because they contend that the Act has no effect on working conditions and labour relations or on the management of Bell Canada. It is on this assumption that, according to a certain line of authority, they would have to show that the Act does not impair a federal undertaking. As I reject this assumption, I would ordinarily have nothing more to say on the point.

317. However, I think it is worth making certain clarifications regarding the concept of impairment. If the application of a provincial statute to a federal undertaking has the effect of impairing or paralyzing it, that a fortiori is an almost certain sign that such application bears upon the specifically federal nature of the undertaking and constitutes an encroachment on the exclusive legislative authority of Parliament. It is for this reason that it would appear to me to be useful to show how various provisions of the Act are in fact likely to impair the operations and functioning of federal undertakings, which is an additional reason for regarding it as inapplicable to those undertakings, regardless of any conflict between federal and provincial legislation.

[…]

330 Before passing on to the next heading and then to my conclusions, I must qualify the opinion I have expressed throughout these reasons, that the *Act* as a whole is inapplicable to federal undertakings. It is clear, for example, that the provisions creating the *C.S.S.T.* remain applicable for the purposes of administering other legislation, which may apply to federal undertakings. It is also possible that regulations adopted pursuant to other statutes, which under the transitional provisions of the *Act* are deemed to be adopted pursuant to the *Act*, continue to be applicable to federal undertakings. This was not raised in the written or oral arguments. I must also mention that there was no discussion of the severability of the *Act* in terms of applying it to federal undertakings. What I have said regarding the *Act* as a whole must therefore be limited to the provisions I have analysed in order to characterize and classify it, which were the only ones discussed by the parties.

Justice Beetz was well-known for taking a hard line in disputes over the division of powers and often ruled in favour of a clear division between federal and provincial powers. Indeed, by lowering the threshold for the application of the doctrine of interjurisdictional immunity to where a law "affects" the operation of the affected undertaking, *Bell* had the effect of expanding the doctrine. For some, that expansion went too far. In *Canadian Western Bank v. Alberta*, 2007 SCC 22, the Supreme Court of Canada seized the opportunity to limit the doctrine's application going forward. The decision, authored by Binnie and LeBel JJ, remains authoritative.

6.2 *Canadian Western Bank v. Alberta*, 2007 SCC 22

1 The framers of the Constitution Act, 1867 must have thought that the content of the federal power over "Banking, Incorporation of Banks, and the Issue of Paper Money" (s. 91(15)) was tolerably clear. Banking, according to one early authority, is more or less what "com[es] within the legitimate business of a banker" (*Tennant v. Union Bank of Canada*, [1894] A.C. 31 (P.C.), at p. 46). Bankers today are not limited in their activities to the activities their predecessors pursued in the nineteenth century. In recent years, they have persuaded Parliament to open the door to lines of business formerly closed to them, such as the promotion (though not underwriting) of certain lines of insurance. Indeed, more generally, there has been a blurring of the traditional "four pillars" of the Canadian financial services industry, which formerly were neatly divided into banks, trust companies, insurance companies, and security dealers, the first under federal regulation and the last three regulated by the provinces.

2 The question that arises on this appeal is the extent to which banks, as federally regulated financial institutions, must comply with provincial laws regulating the promotion and sale of insurance. Specifically, we are required to consider whether and to what extent the market conduct rules enacted for consumer protection in Alberta's Insurance Act, R.S.A. 2000, c. I-3, govern the promotion of credit-related insurance by banks as now permitted under the Bank Act, S.C. 1991, c. 46, as amended.

3 The appellant banks say that the provincial insurance regulations strike at the core of what banking is all about, namely enhancing the security of loan portfolios. As the appellants' counsel puts it, "the primary character of this insurance, tied as it is to the provision of loans by banks of their own loans, is security collateral for bank loans" (transcript, at p. 23) and such promotion therefore "lies at the core of what the bank does, lend money and take security" (transcript, at p. 11). Further, "the lending of money and the promotion of security are intimately tied

together and together go to the core of banking" (transcript, at p. 13). The regulations cannot, the appellants say, be allowed to affect such a vital part of their banking undertaking. Alternatively, the appellants argue, the provincial regulations are in operational conflict with the Bank Act and its regulations, and the application of the provincial law would frustrate Parliament's purpose.

4 We agree with the conclusion of the courts in Alberta that the appellants' claim to interjurisdictional immunity should be rejected. The fact that Parliament allows a bank to enter into a provincially regulated line of business such as insurance cannot, by federal statute, unilaterally broaden the scope of the exclusive legislative power granted by the Constitution Act, 1867. When promoting insurance, the banks are participating in the business of insurance and only secondarily furthering the security of their loan portfolios, as the evidentiary record clearly established. This means, it is true, that banks will have to comply with both federal and provincial laws, but when federally regulated entities take part in provincially regulated activities there will inevitably result a measure of jurisdictional overlap. Nevertheless, the paramountcy doctrine is not engaged. Absent conflict with a valid federal law, valid provincial legislation will apply. Here there is no operational conflict. Compliance by the banks with provincial insurance laws will complement, not frustrate, the federal purpose. On both branches of the appellants' argument, the appeal should be dismissed.

II. Facts

5 Revisions to the Bank Act in 1991 permitted banks to engage in the promotion of certain types of insurance, an activity from which, historically, they had been excluded. The Canadian Bankers Association chronicled this evolution in a consumer information booklet entitled Your Guide to Financial Services: An overview of Canadian financial products and services (1999), as follows:

> Up until the mid-20th century, the bank's main function was to act as society's "financial intermediary," pooling the funds of savers through deposit-taking and making them available to borrowers. While their core services are still deposits and loans, banks have expanded to offer hundreds of different products and services to a diverse clientele. Offerings include basic savings and chequing accounts, RRSPs, money orders, foreign exchange, letters of credit, mortgages, financial planning, insurance products such as creditor life insurance and investment products. [Emphasis added; p. 5.]

6 Specifically, the Bank Act and its Insurance Business (Banks and Bank Holding Companies) Regulations, SOR/92-330 ("IBRs"), now authorize banks to promote at their branches eight kinds of insurance ("authorized insurance") as follows:

[…]

7 The evidence showed that a large percentage of the banks' customers purchase credit-related insurance. Therefore, even though the purchase is optional, the fact is that promotion of insurance as collateral may to some extent increase the security of the banks' overall loan portfolio. The trial judge considered this effect to be small. He found that banks generally insist on adequate collateral *before* the loan is made, and the decision to grant credit is not afterwards reconsidered if the borrower declines the offer of optional insurance. From the bank's perspective, its position is already fully protected. The availability of yet more collateral in the form of after-acquired insurance may therefore simply pile Mount Pelion on Olympus.

8 The trial judge noted that of these eight types of insurance "products" only mortgage insurance and export credit insurance actually insure against the risk of default in the payment of a loan. In contrast, credit-card related insurance and travel insurance, including personal accident insurance, have no significant connection to the amount of a loan owed to a bank and are payable irrespective of any default. While he recognized that insurance against the risk of a customer's disability or of loss of life or of employment enhances the safety of the bank's loan portfolio, the risk insured against is not default on the payment of the loan but the insured's disability or loss of life or of employment. The insurance, which is entirely optional for the borrower, is promoted on the basis of providing the borrower (not the bank) with peace of mind. The insurer will generally be required to pay the proceeds of the insurance directly to the bank in the event the risk materializes, even if the loan remains in good standing and there is no question about the insured's ability to pay. As the trial judge noted, "[r]emoving the necessity for the bank to pursue widows and orphans can undoubtedly improve the bank-customer relationship, although it is difficult to determine how big a factor this would be" ((2003), 343 A.R. 89, 2003 ABQB 795, at para. 41).

9 The trial judge added that the way in which banks promote insurance varies somewhat from product to product. Credit card and travel insurance coverage are generally sold as a feature of credit cards. Mortgage insurance is promoted in concert with the granting of mortgages (although it is mandatory under s. 418 of the Bank Act in the case of a high-ratio mortgage worth more than 75 percent of the value of the mortgaged residence). The insurance relating to a calamity in the life of a debtor (disability, unemployment and death) is sometimes promoted at the time the loan is taken out but is also promoted quite independently by direct mail or through telemarketers. If the borrower answers certain health questions in the negative, the insurance is automatically approved through a group policy.

10 In 2000, Alberta enacted changes to its Insurance Act purporting to make federally chartered banks subject to the provincial licensing scheme governing the promotion of insurance products. Under s. 454, a bank wanting to promote insurance must obtain a "restricted insurance agent's certificate of authority". The banks thereby became subject to market standards regulation including, for example, s. 486 that requires training procedures to be in place, s. 500 that targets misrepresentations about the levels of premiums, and ss. 480 and 764 that provide sanctions for non-compliance and improper market conduct. In addition, the statute empowers the provincial Minister of Finance to make regulations respecting the ethical, operational and trade practices of agents. It is consumer protection legislation.

11 Upon the coming into force of the Insurance Act, the appellant banks sought a declaration that their promotion of insurance is "banking" under s. 91(15) of the Constitution Act, 1867 and that the Insurance Act and its associated regulations are constitutionally inapplicable and/or inoperative to the banks' promotion of insurance.

…

1. Are Alberta's *Insurance Act*, R.S.A. 2000, c. I-3, and the regulations made thereunder, in whole or in part, constitutionally inapplicable to the promotion by banks of an "authorized type of insurance" or "personal accident insurance" as defined in the Insurance Business (Banks and Bank Holding Companies) Regulations, SOR/92-330, by reason of the doctrine of interjurisdictional immunity?

…

20 In the present appeal, we are not confronted with a dispute between the federal government and Alberta. Rather, the appellant banks are independently making the claim to carry on their insurance activities in Alberta free of the insurance regulations imposed on all other promoters and vendors of insurance products in the province. The banks assert that as federal undertakings they are "immune" from provincial insurance regulation aimed generally at fair market practices and consumer protection in the province. At the same time, the appellants acknowledge that for 125 years the regulation of insurance has been held generally to be a matter of "Property and Civil Rights in the Province" within provincial jurisdiction under s. 92(13) of the Constitution Act, 1867; see *Citizens Insurance Co. of Canada v. Parsons* (1881), 1880 CanLII 6 (SCC), 7 App. Cas. 96 (P.C.); *Canadian Indemnity Co. v. Attorney-General of British Columbia*, 1976 CanLII 195 (SCC), [1977] 2 SCR 504; and *Canadian Pioneer Management Ltd. v. Labour Relations Board of Saskatchewan*, 1979 CanLII 180 (SCC), [1980] 1 SCR 433. The appellants' argument is that when banks promote credit-related insurance, they are carrying on the business of banking, not the business of

insurance. As the Attorney General of Canada put it in oral argument, the issue is "whether the authorized creditor insurance products are themselves so vital and essential to lending that they join lending at the core of banking" (transcript, at p. 34). On that issue, as stated, the Alberta courts flatly rejected the banks' position. We agree.

B. Principle of Federalism

21 The disposition of this case requires the consideration and application of important constitutional doctrines governing the operation of Canadian federalism. Despite the doubts sometimes expressed about the nature of Canadian federalism, it is beyond question that federalism has been a "fundamental guiding principle" of our constitutional order since the time of Confederation, as our Court emphasized in the *Reference re Secession of Quebec*, 1998 CanLII 793 (SCC), [1998] 2 SCR 217, at para. 55.

22 As the Court noted in that decision, federalism was the legal response of the framers of the Constitution to the political and cultural realities that existed at Confederation. It thus represented a legal recognition of the diversity of the original members. The division of powers, one of the basic components of federalism, was designed to uphold this diversity within a single nation. Broad powers were conferred on provincial legislatures, while at the same time Canada's unity was ensured by reserving to Parliament powers better exercised in relation to the country as a whole. Each head of power was assigned to the level of government best placed to exercise the power. The fundamental objectives of federalism were, and still are, to reconcile unity with diversity, promote democratic participation by reserving meaningful powers to the local or regional level and to foster co-operation among governments and legislatures for the common good.

23 To attain these objectives, a certain degree of predictability with regard to the division of powers between Parliament and the provincial legislatures is essential. For this reason, the powers of each of these levels of government were enumerated in ss. 91 and 92 of the Constitution Act, 1867 or provided for elsewhere in that Act. As is true of any other part of our Constitution — this "living tree" as it is described in the famous image from *Edwards v. Attorney-General for Canada*, 1929 CanLII 438 (UK JCPC), [1930] A.C. 124 (P.C.), at p. 136 — the interpretation of these powers and of how they interrelate must evolve and must be tailored to the changing political and cultural realities of Canadian society. It is also important to note that the fundamental principles of our constitutional order, which include federalism, continue to guide the definition and application of the powers as well as their interplay. Thus, the very functioning of Canada's federal system must continually be reassessed in light of the fundamental values it was designed to serve.

24 As the final arbiters of the division of powers, the courts have developed certain constitutional doctrines, which, like the interpretations of the powers to which they apply, are based on the guiding principles of our constitutional order. The constitutional doctrines permit an appropriate balance to be struck in the recognition and management of the inevitable overlaps in rules made at the two levels of legislative power, while recognizing the need to preserve sufficient predictability in the operation of the division of powers. The doctrines must also be designed to reconcile the legitimate diversity of regional experimentation with the need for national unity. Finally, they must include a recognition that the task of maintaining the balance of powers in practice falls primarily to governments, and constitutional doctrine must facilitate, not undermine what this Court has called "co-operative federalism" (Husky Oil Operations Ltd. v. Minister of National Revenue, 1995 CanLII 69 (SCC), [1995] 3 SCR 453, at para. 162; Reference re Employment Insurance Act (Can.), ss. 22 and 23, [2005] 2 SCR 669, 2005 SCC 56, at para. 10). We will now turn to the issue of how, in our view, the main constitutional doctrines and the interplay between them should be construed so as to facilitate the achievement of the objectives of Canada's federal structure.

Constitutional Doctrines and How They Interrelate

[…]

31 When problems resulting from incidental effects arise, it may often be possible to resolve them by a firm application of the pith and substance analysis. The scale of the alleged incidental effects may indeed put a law in a different light so as to place it in another constitutional head of power. The usual interpretation techniques of constitutional interpretation, such as reading down, may then play a useful role in determining on a case-by-case basis what falls exclusively to a given level of government. In this manner, the courts incrementally define the scope of the relevant heads of power. The flexible nature of the pith and substance analysis makes it perfectly suited to the modern views of federalism in our constitutional jurisprudence.

32 That being said, it must also be acknowledged that, in certain circumstances, the powers of one level of government must be protected against intrusions, even incidental ones, by the other level. For this purpose, the courts have developed two doctrines. The first, the doctrine of interjurisdictional immunity, recognizes that our Constitution is based on an allocation of exclusive powers to both levels of government, not concurrent powers, although these powers are bound to interact in the realities of the life of our Constitution. The second, the doctrine of federal paramountcy, recognizes that where laws of the federal and provincial levels come into conflict, there must be a rule to resolve the impasse. Under our system, the federal law prevails. We will now discuss these doctrines, beginning with interjurisdictional immunity.

(2) The Doctrine of Interjurisdictional Immunity and its Sources

33 Interjurisdictional immunity is a doctrine of limited application, but its existence is supported both textually and by the principles of federalism. The leading modern formulation of the doctrine of interjurisdictional immunity is found in the judgment of this Court in *Bell Canada (1988)* where Beetz J. wrote that "classes of subject" in ss. 91 and 92 must be assured a "basic, minimum and unassailable content" (p. 839) immune from the application of legislation enacted by the other level of government. Immunity from such intrusion, Beetz J. observed in the context of a federal undertaking, is an integral and vital part of [Parliament's] primary legislative authority over federal undertakings. If this power is exclusive, it is because the Constitution, which could have been different but is not, expressly specifies this to be the case; and it is because this power is exclusive that it pre-empts that of the legislatures both as to their legislation of general and specific application, in so far as such laws affect a vital part of a federal undertaking. [p. 840]

34 The doctrine is rooted in references to "exclusivity" throughout ss. 91 and 92 of the Constitution Act, 1867. The opening paragraph of s. 91 refers to the "exclusive [l]egislative [a]uthority of the Parliament of Canada" in relation to matters coming within the listed "[c]lasses of [s]ubjects" including "Banking, Incorporation of Banks, and the Issue of Paper Money" (s. 91(15)). If that authority is truly exclusive, the reasoning goes, it cannot be invaded by provincial legislation even if the federal power remains unexercised. "The abstinence of the Dominion Parliament from legislating to the full limit of its powers, could not have the effect of transferring to any provincial legislature the legislative power which had been assigned to the Dominion by s. 91 of the [Constitution Act, 1867]": Union Colliery Co. of British Columbia v. Bryden, [1899] A.C. 580 (P.C.), at p. 588. Equally, s. 92 (headed "Exclusive Powers of Provincial Legislatures") is introduced by the words "In each Province the Legislature may exclusively make Laws in relation to Matters coming within the Classes of Subjects next herein-after enumerated", including "Property and Civil Rights in the Province" (s. 92(13)) and "Generally all Matters of a merely local or private Nature in the Province" (s. 92(16)). The notion of exclusivity and the reciprocal notion of non-encroachment by one level of legislature on the field of exclusive competence of the other gave rise to Lord Atkin's famous "watertight compartments" metaphor, where he wrote of Canadian federalism that "[w]hile the ship of state now sails on larger ventures and into foreign waters she still retains the watertight compartments which are an essential part of her original structure" (Attorney-General for Canada v. Attorney-General for Ontario, 1937 CanLII 362 (UK JCPC), [1937] A.C. 326 (P.C.), at p. 354). Its modern application expresses a continuing concern about risk of erosion of provincial as well as federal

competences (Bell Canada (1988), at p. 766). At the same time, the doctrine of interjurisdictional immunity seeks to avoid, when possible, situations of concurrency of powers (Laskin C.J., in Natural Parents v. Superintendent of Child Welfare, 1975 CanLII 143 (SCC), [1976] 2 SCR 751, at p. 764).

(3) The Dominant Tide of Constitutional Interpretation Does Not Favour Interjurisdictional Immunity

35 Despite the efforts to find a proper role for the doctrine, the application of interjurisdictional immunity has given rise to concerns by reason of its potential impact on Canadian constitutional arrangements. In theory, the doctrine is reciprocal: it applies both to protect provincial heads of power and provincially regulated undertakings from federal encroachment, and to protect federal heads of power and federally regulated undertakings from provincial encroachment. However, it would appear that the jurisprudential application of the doctrine has produced somewhat "asymmetrical" results. Its application to federal laws in order to avoid encroachment on provincial legislative authority has often consisted of "reading down" the federal enactment or federal power without too much doctrinal discussion, e.g., *Attorney General of Canada v. Law Society of British Columbia*, 1982 CanLII 29 (SCC), [1982] 2 SCR 307, *Dominion Stores Ltd. v. The Queen*, 1979 CanLII 57 (SCC), [1980] 1 SCR 844, and *Labatt Breweries of Canada Ltd. v. Attorney General of Canada*, 1979 CanLII 190 (SCC), [1980] 1 SCR 914. In general, though, the doctrine has been invoked in favour of federal immunity at the expense of provincial legislation: Hogg, at p. 15-34.

36 A view of federalism that puts greater emphasis on the legitimate interplay between federal and provincial powers was championed by the late Chief Justice Dickson, who described the doctrine of interjurisdictional immunity as "not . . . particularly compelling" (*OPSEU v. Ontario (Attorney General)*, 1987 CanLII 71 (SCC), [1987] 2 SCR 2, at p. 17):

> The history of Canadian constitutional law has been to allow for a fair amount of interplay and indeed overlap between federal and provincial powers. It is true that doctrines like interjurisdictional and Crown immunity and concepts like "watertight compartments" qualify the extent of that interplay. But it must be recognized that these doctrines and concepts have not been the dominant tide of constitutional doctrines; rather they have been an undertow against the strong pull of pith and substance, the aspect doctrine and, in recent years, a very restrained approach to concurrency and paramountcy issues. [p. 18]

This statement was reproduced in Dickson C.J.'s judgment (for a unanimous bench that included Beetz J.) in *General Motors*, at p. 669.

37 The "dominant tide" finds its principled underpinning in the concern that a court should favour, where possible, the ordinary operation of statutes enacted by *both* levels of government. In the absence of conflicting enactments of the other level of government, the Court should avoid blocking the application of measures which are taken to be enacted in furtherance of the public interest. Professor Paul Weiler wrote over 30 years ago that

> the court should refuse to try to protect alleged, but as yet unoccupied, enclaves of governmental power against the intrusions of another representative legislature which has ventured into the area. Instead, the court should try to restrict itself to the lesser but still important role of interpreting statutes of different jurisdictions in the same area, in order to avoid conflict, and applying a doctrine of paramountcy in the few situations which are left.

("The Supreme Court and the Law of Canadian Federalism" (1973), 23 *U.T.L.J.* 307, at p. 308)

38 In our view, the sweeping immunity argued for by the banks in this appeal is not acceptable in the Canadian federal structure. The argument exposes the dangers of allowing the doctrine of interjurisdictional immunity to exceed its proper (and very restricted) limit and to frustrate the application of the pith and substance analysis and of the double aspect doctrine. The latter have the ability to resolve most problems relating to the validity of the exercise of legislative powers under the heads of power applicable to the activities in question.

39 It is not without interest that the present doctrine of interjurisdictional immunity, which is the result of a long process of constitutional evolution, was originally developed in a very special context, namely to protect federally incorporated companies from provincial legislation affecting the essence of the powers conferred on them as a result of their incorporation (*John Deere Plow Co. v. Wharton*, 1914 CanLII 603 (UK JCPC), [1915] A.C. 330 (P.C.); *Great West Saddlery Co. v. The King*, 1921 CanLII 408 (UK JCPC), [1921] 2 A.C. 91 (P.C.)). Since the creation of corporations by letters patent issued by the Crown constituted an exercise of the Crown's prerogative to create corporations, it would have seemed natural to the Privy Council to extend the Crown's immunity to the entities it incorporated. Thus, to apply a province's general statutes to these corporations could be conceived as interfering with the exercise of the prerogative of incorporation.

40 The doctrine of interjurisdictional immunity was subsequently applied to protect "essential" parts of federal "undertakings" (*Attorney-General for Ontario v. Winner*, 1954 CanLII 289 (UK JCPC), [1954] 4 D.L.R. 657 (P.C.); see also *Toronto Corporation v. Bell Telephone Co. of Canada*, [1905] A.C. 52 (P.C.) ("*Toronto Corporation*")). Still later, the courts resorted to interjurisdictional immunity to shield Aboriginal peoples and their lands from provincial legislation of general application affecting certain aspects of their special status (*Natural Parents*; *Derrickson v. Derrickson*, 1986 CanLII 56 (SCC), [1986] 1 SCR 285).

41 Thus, broadly speaking, the doctrine of interjurisdictional immunity was used to protect that which makes certain works or undertakings, things (e.g., Aboriginal lands) or persons (e.g., Aboriginal peoples and corporations created by the federal Crown) specifically of federal jurisdiction. As Gonthier J. observed in *Commission de transport de la Communauté urbaine de Québec v. Canada (National Battlefields Commission)*, 1990 CanLII 87 (SCC), [1990] 2 SCR 838:

> The immunity pertaining to federal status applies to <u>things or persons falling within federal jurisdiction</u>, some specifically federal aspects of which would be affected by provincial legislation. This is so because these specifically federal aspects are an integral part of federal jurisdiction <u>over such things or persons</u> and this jurisdiction is meant to be exclusive. [Emphasis added; p. 853.]

Of course, what is of specific federal interest may well be the federally regulated activity itself rather than the identity of the participants. In *Natural Parents*, at p. 760, Laskin C.J. observed:

> It cannot be said therefore that because a provincial statute is general in its operation, in the sense that its terms are not expressly restricted to matters within provincial competence, it may embrace <u>matters</u> within exclusive federal competence. ... This is because to construe the provincial legislation to embrace such activities would have it encroaching on an exclusive federal legislative area. [Emphasis added.]

(Cited with approval by Beetz J. in *Bell Canada (1988)*, at p. 834.)

In *Ordon Estate v. Grail*, 1998 CanLII 771 (SCC), [1998] 3 SCR 437, in the course of considering federal jurisdiction over maritime law, the Court acknowledged that the doctrine could potentially apply to all "activities" within Parliament's jurisdiction. See also *McKay v. The Queen*, 1965 CanLII 3 (SCC), [1965] SCR 798, where the issue was the applicability of a municipal sign law to a federal activity, namely a federal election; *OPSEU*, *per* Beetz J., at p. 30; and *Scowby v. Glendinning*, 1986 CanLII 30 (SCC), [1986] 2 SCR 226, *per* La Forest J., at p. 257.

42 While the text and logic of our federal structure justifies the application of interjurisdictional immunity to certain federal "activities", nevertheless, a broad application of the doctrine to "activities" creates practical problems of application much greater than in the case of works or undertakings, things or persons, whose limits are more readily defined. A broad application also appears inconsistent, as stated, with the flexible federalism that the constitutional doctrines of pith and substance, double aspect and federal paramountcy are designed to promote. See

F. Gélinas, "La doctrine des immunités interjuridictionnelles dans le partage des compétences: éléments de systématisation", in *Mélanges Jean Beetz* (1995), at p. 471, and Hogg, at para. 15.8(c). It is these doctrines that have proved to be most consistent with contemporary views of Canadian federalism, which recognize that overlapping powers are unavoidable. Canadian federalism is not simply a matter of legalisms. The Constitution, though a legal document, serves as a framework for life and for political action within a federal state, in which the courts have rightly observed the importance of co-operation among government actors to ensure that federalism operates flexibly.

43 Excessive reliance on the doctrine of interjurisdictional immunity would create serious uncertainty. It is based on the attribution to every legislative head of power of a "core" of indeterminate scope — difficult to define, except over time by means of judicial interpretations triggered serendipitously on a case-by-case basis. The requirement to develop an abstract definition of a "core" is not compatible, generally speaking, with the tradition of Canadian constitutional interpretation, which favours an incremental approach. While it is true that the enumerations of ss. 91 and 92 contain a number of powers that are precise and not really open to discussion, other powers are far less precise, such as those relating to the criminal law, trade and commerce and matters of a local or private nature in a province. Since the time of Confederation, courts have refrained from trying to define the possible scope of such powers in advance and for all time: *Citizens Insurance*, at p. 109; *John Deere Plow*, at p. 339. For example, while the courts have not eviscerated the federal trade and commerce power, they have, in interpreting it, sought to avoid draining of their content the provincial powers over civil law and matters of a local or private nature. A generalized application of interjurisdictional immunity related to "trade and commerce" would have led to an altogether different and more rigid and centralized form of federalism. It was by proceeding with caution on a case-by-case basis that the courts were gradually able to define the content of the heads of power of Parliament and the legislatures, without denying the unavoidable interplay between them, always having regard to the evolution of the problems for which the division of legislative powers must now provide solutions.

44 Moreover, as stated, interjurisdictional immunity means that despite the absence of law enacted at one level of government, the laws enacted by the other level cannot have even incidental effects on the so-called "core" of jurisdiction. This increases the risk of creating "legal vacuums", as this Court recognized in *Law Society of British Columbia v. Mangat*, [2001] 3 SCR 113, 2001 SCC 67, at para. 52. Generally speaking, such "vacuums" are not desirable.

45 Further, a broad use of the doctrine of interjurisdictional immunity runs the risk of creating an unintentional centralizing tendency in constitutional interpretation. As stated, this doctrine has in the past most often protected federal heads of power from incidental intrusion by provincial legislatures. The "asymmetrical" application of interjurisdictional immunity is incompatible with the flexibility and co-ordination required by contemporary Canadian federalism. Commentators have noted that an extensive application of this doctrine to protect federal heads of power and undertakings is both unnecessary and "undesirable in a federation where so many laws for the protection of workers, consumers and the environment (for example) are enacted and enforced at the provincial level" (Hogg, at p. 15-30; see also Weiler, at p. 312; J. Leclair, "The Supreme Court of Canada's Understanding of Federalism: Efficiency at the Expense of Diversity" (2003), 28 *Queen's L.J.* 411). The asymmetrical effect of interjurisdictional immunity can also be seen as undermining the principles of subsidiarity, i.e. that decisions "are often best [made] at a level of government that is not only effective, but also closest to the citizens affected" (*114957 Canada Ltée (Spraytech, Société d'arrosage) v. Hudson (Town)*, [2001] 2 SCR 241, 2001 SCC 40, at para. 3).

46 Finally, the doctrine would seem as a general rule to be superfluous in that Parliament can always, if it sees fit to do so, make its legislation sufficiently precise to leave those subject to it with no doubt as to the residual or incidental application of provincial legislation. As we shall see, sufficient confirmation of this can be found in the history and operation of the doctrine of federal paramountcy.

47 For all these reasons, although the doctrine of interjurisdictional immunity has a proper part to play in appropriate circumstances, we intend now to make it clear that the Court does not favour an intensive reliance on the doctrine, nor should we accept the invitation of the appellants to turn it into a doctrine of first recourse in a division of powers dispute.

D. A More Restricted Approach to Interjurisdictional Immunity

(1) Impairment Versus Affects

48 Even in situations where the doctrine of interjurisdictional immunity is properly available, we must consider the level of the intrusion on the "core" of the power of the other level of government which would trigger its application. In *Bell Canada (1988)*, Beetz J. wrote, at pp. 859-60:

In order for the inapplicability of provincial legislation rule to be given effect, it is sufficient that the provincial statute which purports to apply to the federal undertaking affects a vital or essential part of that undertaking, without necessarily going as far as impairing or paralyzing it. [Emphasis added.]

Our colleague Bastarache J. agrees with the substitution in *Bell Canada (1988)* of "affects" for "impairs". He writes:

... the meaning of the word "affects" should be interpreted as a kind of middle ground between the perhaps overly vague or broad standard of "touches on" and the older and overly restrictive standard of "sterilizes" or "impairs". Without requiring complete paralysis of the core of the federal power or the operations of the undertaking, the impact of the application of the by-law must be sufficiently severe and serious to trigger immunity.

(*British Columbia (Attorney General) v. Lafarge Canada Inc.*, [2007] 2 SCR 86, 2007 SCC 23, at para. 139)

With great respect, we cannot agree. We believe that the law as it stood prior to *Bell Canada (1988)* better reflected our federal scheme. In our opinion, it is not enough for the provincial legislation simply to "affect" that which makes a federal subject or object of rights specifically of federal jurisdiction. The difference between "affects" and "impairs" is that the former does not imply any adverse consequence whereas the latter does. The shift in *Bell Canada (1988)* from "impairs" to "affects" is not consistent with the view subsequently adopted in *Mangat* that "[t]he existence of a double aspect to the subject matter . . . favours the application of the paramountcy doctrine rather than the doctrine of interjurisdictional immunity" (para. 52). Nor is the shift consistent with the earlier application by Beetz J. himself of the "impairment" test in *Dick v. The Queen*, 1985 CanLII 80 (SCC), [1985] 2 SCR 309, at pp. 323-24. It is when the adverse impact of a law adopted by one level of government increases in severity from "affecting" to "impairing" (without necessarily "sterilizing" or "paralyzing") that the "core" competence of the other level of government (or the vital or essential part of an undertaking it duly constitutes) is placed in jeopardy, and not before.

49 In *Irwin Toy Ltd. v. Quebec (Attorney General)*, 1989 CanLII 87 (SCC), [1989] 1 SCR 927, Dickson C.J. and Lamer and Wilson JJ. observed in passing that a distinction could be drawn between the *direct* application of provincial law (where the operative verb is "affects") and the *indirect* application (where the operative verb may still be "impairs") (p. 957). This further exercise in line drawing signalled a measure of dissatisfaction with the "affects" test without doing anything about it. At this point, we should complete the reassessment begun in *Irwin Toy* and hold that, in the absence of impairment, interjurisdictional immunity does not apply.

(2) Identification of the "Basic, Minimum and Unassailable" Content of a Legislative Power

50 One of the important contributions of *Bell Canada (1988)* was to limit the scope of the doctrine to the "basic, minimum and unassailable content" (p. 839) sometimes referred to as the "core" of the legislative power in question. (By "minimum", we understand that Beetz J. meant the minimum content necessary to make the power effective for the purpose for which it was conferred.) This is necessary,

according to Beetz J., to give effect to what he called "the principle of federalism underlying the Canadian Constitution" (p. 766). Thus, the success of the appellants' argument in this appeal depended in part on locating the promotion of "peace of mind" insurance at the core of banking. For the reasons already discussed, and particularized below, we do not believe that this aspect of the appellants' argument can be sustained.

(3) The Vital or Essential Part of an Undertaking

51 In the exercise of their legislative powers, federal and provincial legislators bring into existence "undertakings". The appellant banks are "federal undertakings" constituted pursuant to the s. 91(15) banking power. In *Bell Canada (1988)*, Beetz J. spoke of interjurisdictional immunity in relation to "essential and vital elements" of such undertakings (pp. 839 and 859-60). In our view, some text writers and certainly the appellants have been inclined to give too wide a scope to what should be considered "vital or essential" to a federal undertaking. We believe that Beetz J. chose his words carefully and intended to use "vital" in its ordinary grammatical sense of "[e]ssential to the existence of something; absolutely indispensable or necessary; extremely important, crucial" (*Shorter Oxford English Dictionary* (5th ed. 2002), vol. 2, at p. 3548). The word "essential" has a similar meaning, e.g. "[a]bsolutely indispensable or necessary" (vol. 1, at p. 860). The words "vital" and "essential" were not randomly chosen. The expression "vital part" was used as a limitation on the scope of interjurisdictional immunity by Abbott J. in *Reference re Industrial Relations and Disputes Investigation Act*, 1955 CanLII 1 (SCC), [1955] SCR 529, at p. 592, and by Martland J. in *Commission du salaire minimum v. Bell Telephone Co. of Canada*, 1966 CanLII 1 (SCC), [1966] SCR 767 ("*Bell Canada (1966)*"), at p. 774. Martland J. also referred to an "essential part of the operation of such an undertaking", at p. 777. What is "vital" or "essential" is, by definition, not co-extensive with every element of an undertaking incorporated federally or subject to federal regulation. In the case of federal undertakings, Beetz J. referred to a "general rule" that there is *no* interjurisdictional immunity, provided that "the application of [the] provincial laws does not bear upon those [federal] subjects in what makes them specifically of federal jurisdiction" (*Bell Canada (1988)*, at p. 762 (emphasis added)). In the present appeal, for example, the appellants' argument inflates out of all proportion what could reasonably be considered "vital or essential" to their banking undertaking. The promotion of "peace of mind" insurance can hardly be considered "absolutely indispensable or necessary" to banking activities unless such words are to be emptied of their ordinary meaning.

52 In this respect, following the sage common law adage that it is wise to look at what the courts do as distinguished from what they say, a useful approach to understanding the limited scope of the doctrine of interjurisdictional immunity in respect of undertakings is to see how it has been applied to the facts. A comparison between *Bell Canada (1988)* and the present case is instructive. In *Bell Canada (1988)*, the Court concluded that the application of a provincial *Act respecting occupational health and safety* could not apply to a federal telephone undertaking because such application would "enter directly and massively into the field of working conditions and labour relations . . . and . . . management and operation" of the federal utility (p. 798). Amongst other things, the provincial Act would impose "a system of partial co-management of the undertaking by the workers and the employer" (p. 810), thereby regulating the federal undertaking in a manner not sanctioned by Parliament. To the same effect is *Canadian National Railway Co. v. Courtois*, 1988 CanLII 82 (SCC), [1988] 1 SCR 868, released concurrently with *Bell Canada (1988)*, where the same provincial Act was declared inapplicable to a federally regulated railway (p. 890). In the third case of the 1988 trilogy, *Alltrans Express Ltd. v. British Columbia (Workers' Compensation Board)*, 1988 CanLII 83 (SCC), [1988] 1 SCR 897, the Court held that the preventative (as distinguished from compensatory) aspects of the B.C. provincial *Workers Compensation Act* could not apply to an interprovincial and international trucking undertaking because to do so would intrude on the management of the federally regulated undertaking, including the "B.C. Board's power to order an employer to close down all or part of the place of employment to prevent injuries" (p. 911). These cases may usefully be contrasted with *Canadian Pacific Railway Co. v. Corporation of the Parish of Notre Dame de Bonsecours*, [1899] A.C. 367 (P.C.), where it was held *not* to be vital or essential for the federal government to regulate the clearance of trash and debris from the ditch on the south side of the railway undertaking's roadbed. (See also *Ontario v. Canadian Pacific Ltd.*, 1995 CanLII 111 (SCC), [1995] 2 SCR 1028.) Yet it seems that clearing debris from the roadbed is at least as essential to the operations of a rail service as is selling optional "peace of mind" insurance to bank borrowers.

53 Nor do the other authorities relied on by the appellants, in our view, justify their expansive view of the elements that are vital and essential to their banking operations. It is simply not credible, in our view, to suggest that the promotion of "peace of mind" insurance is "absolutely indispensable or necessary" to enable the banks to carry out their undertakings in what makes them specifically of federal jurisdiction.

…

67 In our view, the above review of the case law cited by the appellants, the respondent and interveners shows that not only *should* the doctrine of interjurisdictional immunity be applied with restraint, but with rare exceptions it *has* been so applied. Although the doctrine is in principle applicable to all federal and provincial heads of legislative authority, the case law demonstrates that its natural area of operation is in relation to those heads of legislative authority that confer on Parliament power over enumerated federal things, people, works or undertakings. In most cases, a pith and substance analysis and the application of the doctrine of paramountcy have resolved difficulties in a satisfactory manner.

…

G. Order of Application of the Constitutional Doctrines

76 The above review of constitutional doctrines inevitably raises questions about the logical order in which they should be applied. It would be difficult to avoid beginning with the "pith and substance" analysis, which serves to determine whether the legislation in question is in fact *valid*. The other two doctrines serve merely to determine whether a valid law is *applicable* or *operative* in specific circumstances.

77 Although our colleague Bastarache J. takes a different view on this point, we do not think it appropriate to *always* begin by considering the doctrine of interjurisdictional immunity. To do so could mire the Court in a rather abstract discussion of "cores" and "vital and essential" parts to little practical effect. As we have already noted, interjurisdictional immunity is of limited application and should in general be reserved for situations already covered by precedent. This means, in practice, that it will be largely reserved for those heads of power that deal with federal things, persons or undertakings, or where in the past its application has been considered absolutely indispensable or necessary to enable Parliament or a provincial legislature to achieve the purpose for which exclusive legislative jurisdiction was conferred, as discerned from the constitutional division of powers as a whole, or what is absolutely indispensable or necessary to enable an undertaking to carry out its mandate in what makes it specifically of federal (or provincial) jurisdiction. If a case can be resolved by the application of a pith and substance analysis, and federal paramountcy where necessary, it would be preferable to take that approach, as this Court did in *Mangat*.

78 In the result, while in theory a consideration of interjurisdictional immunity is apt for consideration after the pith and substance analysis, in practice the absence of prior case law favouring its application to the subject matter at hand will generally justify a court proceeding directly to the consideration of federal paramountcy.

…

Following *Canadian Western Bank*, interjurisdictional immunity has become a doctrine of last resort, except in situations where the case law has already applied it in the same situation, or to the same activity or undertaking.

Where the doctrine is applicable, *Quebec (Attorney General) v. Canadian Owners and Pilots Association*, 2010 SCC 39 sets out the framework for its application.

6.3 *Quebec (Attorney General) v. Canadian Owners and Pilots Association*, 2010 SCC 39

I. Introduction

[1] Air transportation is an indispensable part of modern life. Yet as our dependence on aircraft has grown, the demands of aviation have increasingly collided with other interests. Aircraft must take off and land. For this they need soil or water. The soil or water they use is not available for other purposes. The question posed in this and the companion appeal, *Quebec (Attorney General) v. Lacombe*, 2010 SCC 38, [2010] 2 SCR 453, is which level of government has the final say on where airfields and aerodromes may be located.

[2] The federal government has jurisdiction over matters relating to air travel under its general power "to make Laws for the Peace, Order, and good Government of Canada": s. 91 of the Constitution Act, 1867, also known as the "POGG" power. In these appeals, the province of Quebec argues that notwithstanding this settled proposition, provincial legislation governing the placement of airfields and aerodromes should prevail. In essence, this dispute pits the local interest in land use planning against the national interest in a unified system of aeronautical navigation.

[3] The case concerns an aerodrome that was built by two private citizens on land zoned as agricultural and was registered under the federal Aeronautics Act, R.S.C. 1985, c. A-2. The Province says this violates its law and the aerodrome must be removed. The Canadian Owners and Pilots Association ("COPA") and the Attorney General of Canada argue that the Province should not be able to shut down the aerodrome, for a variety of reasons. First, they say that the provincial legislation, insofar as it affects the location of aerodromes, is *ultra vires*, and hence invalid. Second, they say that the location of aeronautical facilities lies at the protected core of the federal aeronautics power, which the doctrine of interjurisdictional immunity protects from any adverse provincial effect. Third, they say that, in any event, if the provincial legislation were valid and applicable, it would be inoperative under the doctrine of federal paramountcy.

[4] Like the Quebec Court of Appeal, I conclude that the provincial legislation limiting non-agricultural land uses in designated agricultural regions is valid. However, I find that the provincial law impairs the protected core of the federal jurisdiction over aeronautics, and is inapplicable to the extent that it prohibits aerodromes in agricultural zones. My conclusion renders it unnecessary to consider federal paramountcy, but in any event, I find that this doctrine has no application on the facts of this case. Consequently, I would dismiss the appeal on the basis of interjurisdictional immunity.

…

B. Interjurisdictional Immunity

[25] The next question is whether s. 26 of the Act, having been found valid, *applies* in a situation where it impacts on the federal power over aeronautics. The Attorney General of Canada and COPA argue that it does not. They rely on the doctrine of interjurisdictional immunity, which they submit protects core federal competences from impairment by provincial legislation.

[26] Interjurisdictional immunity was initially developed in the context of federal undertakings (*Canadian Pacific Railway Co. v. Corporation of the Parish of Notre Dame de Bonsecours*, [1899] A.C. 367 (P.C.)) and federally incorporated companies (see *John Deere Plow Co. v. Wharton*, 1914 CanLII 603 (UK JCPC), [1915] A.C. 330 (P.C.); *Great West Saddlery Co. v. The King*, 1921 CanLII 408 (UK JCPC), [1921] 2 A.C. 91 (P.C.); *Attorney-General for Manitoba v. Attorney-General for Canada*, 1928 CanLII 513 (UK JCPC), [1929] A.C. 260 (P.C.)). However, the doctrine was then applied more widely, and was understood to protect a certain minimum content of every federal head of power: *Bell Canada v. Quebec (Commission de la santé et de la sécurité du travail)*, 1988 CanLII 81 (SCC), [1988] 1 SCR 749, at p. 839; *OPSEU v. Ontario (Attorney General)*, 1987 CanLII 71 (SCC), [1987] 2 SCR 2, at p. 18, *per* Dickson C.J.; *Ordon Estate v. Grail*, 1998 CanLII 771 (SCC), [1998] 3 SCR 437. Following *Canadian Western Bank v. Alberta*, 2007 SCC 22, [2007] 2 SCR 3, the prevailing view is that the application of interjurisdictional immunity is generally limited to the cores of every legislative head of power already identified in the jurisprudence (paras. 43 and 77).

[27] The first step is to determine whether the provincial law — s. 26 of the Act — *trenches on the protected "core" of a federal competence*. If it does, the second step is to determine whether the provincial law's effect on the exercise of the protected federal power is *sufficiently serious* to invoke the doctrine of interjurisdictional immunity.

(1) Does Section 26 of the Provincial Act Trench on the Protected Core of a Federal Competence?

[28] The jurisprudence establishes that Parliament has power over aeronautics. Because commercial aviation was not foreseen in 1867, aviation is not articulated as a head of power under s. 91 of the Constitution Act, 1867. However, it has been held to be a matter of national importance and hence supported under the federal POGG power.

[29] The matter was settled in 1951 in *Johannesson v. Rural Municipality of West St. Paul*, 1951 CanLII 55 (SCC), [1952] 1 SCR 292. In five separate opinions, the Supreme Court of Canada unanimously held that Parliament has exclusive jurisdiction to regulate the field of aviation, confirming earlier dicta that aerial navigation is a matter of national interest and importance: *In re Regulation and Control of Aeronautics in Canada*, 1931 CanLII 466 (UK JCPC), [1932] A.C. 54 (P.C.).

[30] *Johannesson* established that Parliament not only has power over aeronautics, but has *exclusive* jurisdiction to determine *the location of aerodromes*. As Estey J. explained, "the aerodrome, as the place of taking off and landing, [is] an essential part of aeronautics and aerial navigation" (p. 319).

[31] This proposition was most recently affirmed in *Air Canada v. Ontario (Liquor Control Board)*, 1997 CanLII 361 (SCC), [1997] 2 SCR 581, at para. 72, *per* Iacobucci J.: the federal aeronautics jurisdiction "encompasses not only the regulation of the operation of aircraft, but also the regulation of the operation of airports". Elaborating, Iacobucci J. held that this aspect of federal jurisdiction extends to the location and design of airports. See also *Construction Montcalm Inc. v. Minimum Wage Commission*, 1978 CanLII 18 (SCC), [1979] 1 SCR 754, at pp. 770-71.

[32] The Attorney General of British Columbia, intervener, conceded that airports come under the POGG power because of their national dimension, but argued that local aerodromes are excluded from POGG because they are not themselves matters of national importance. In support, he noted that the Aeronautics Act distinguishes between aerodromes and airports, and argued that most interprovincial and international flights pass through airports, rather than aerodromes.

[33] This argument cannot prevail. As Kellock J. noted in *Johannesson*, the local aspects of aviation come under federal jurisdiction because the subject matter of aerial navigation is "non-severable". Using the term "airport" interchangeably with "aerodrome", he held that "just as it is impossible to separate intra-provincial flying from inter-provincial flying, the location and regulation of airports cannot be identified with either or separated from aerial navigation as a whole" (p. 314). This view reflects the reality that Canada's airports and aerodromes constitute a network of landing places that together facilitate air transportation and ensure safety.

[34] It is thus clear that the federal jurisdiction over aeronautics encompasses the power to determine the location of aerodromes. The next question is whether this power lies at the protected core of the federal power.

[35] The test is whether the subject comes within the essential jurisdiction — the "basic, minimum and unassailable content" — of the legislative power in question: *Bell Canada*, at p. 839; *Canadian Western Bank*, at para. 50. The core of a federal power is the authority that is absolutely necessary to enable Parliament "to achieve the purpose for which exclusive legislative jurisdiction was conferred": *Canadian Western Bank*, at para. 77.

[36] In *Canadian Western Bank*, Binnie and LeBel JJ. explained that the jurisprudence will frequently serve as a useful guide to identify the core of a federal head of power, and they concluded that interjurisdictional immunity should "in general be reserved for situations already covered by precedent" (para. 77).

[37] Here precedent is available and resolves the issue. This Court has repeatedly and consistently held that the location of aerodromes lies within the core of the federal aeronautics power. In *Johannesson*, which concerned a municipal by-law that prevented the plaintiff from constructing an aerodrome on the outskirts of Winnipeg, the Court held that the location of aerodromes is an essential and indivisible part of aeronautics. As noted above, Estey J. held that aerodromes are "an essential part of aeronautics and aerial navigation" (p. 319). The location of aerodromes attracts the doctrine of interjurisdictional immunity because it is essential to the federal power, and hence falls within its core: see *Canadian Western Bank*, at para. 54; *Construction Montcalm*, at pp. 770-71; *Air Canada*, at para. 72; *Greater Toronto Airports Authority v. Mississauga (City)* (2000), 2000 CanLII 16948 (ON CA), 50 O.R. (3d) 641 (Ont. C.A.); *Comox Strathcona (Regional District) v. Hansen*, 2005 BCSC 220, [2005] 7 W.W.R. 249; *Venchiarutti v. Longhurst* (1989), 1989 CanLII 4293 (ON SC), 69 O.R. (2d) 19 (H.C.J.), aff'd (1992), 1992 CanLII 8680 (ON CA), 8 O.R. (3d) 422 (C.A.).

[38] Again in *Construction Montcalm* this Court held that while some provincial laws will be applicable to airports because they do not impair an essential part of a federal competence, the *location* of an airport comes within Parliament's core of exclusive federal jurisdiction: "To decide whether to build an airport and where to build it involves aspects of airport construction which undoubtedly constitute matters of exclusive federal concern" (p. 770 (emphasis added)).

[39] The Province sought to undermine the strength of these precedents on the basis that lower courts have declined to follow *Johannesson* on two occasions: *Re The Queen in Right of British Columbia and Van Gool* (1987), 1987 CanLII 2756 (BC CA), 36 D.L.R. (4th) 481 (B.C.C.A.); *St-Louis*. This Court's decision in *OPSEU* constructively overruled *Van Gool*: see *Hansen*, at paras. 21-23. As for *St-Louis*, I agree with the Quebec Court of Appeal in the companion case of *Lacombe v. Sacré-Cœur (Municipalité de)*, 2008 QCCA 426, [2008] R.J.Q. 598, that it must be rejected because it wrongly held that incidental effects cannot trigger the doctrine of interjurisdictional immunity: see *Bell Canada*, at p. 842, *per* Beetz J.

[40] I conclude that the location of aerodromes lies at the core of the federal aeronautics power. Long-standing precedent establishes that where aircraft may take off and land is a matter protected by the doctrine of interjurisdictional immunity. Since s. 26 of the ARPALAA purports to limit where aerodromes can be located, it follows that it trenches on the core of the federal aeronautics power.

[41] The remaining question is whether the impact of s. 26 on the federal power is sufficiently serious to attract the doctrine of interjurisdictional immunity.

(2) Does Section 26 of the Act Unacceptably Interfere With a Federal Competency?

[42] It is not enough that s. 26 of the ARPALAA strike at the heart of a federal competency; it must be shown that this interference is constitutionally unacceptable. This raises the issue of how serious an interference must be to render a provincial law inapplicable.

[43] After a period of inconsistency, it is now settled that the test is whether the provincial law *impairs* the federal exercise of the core competence: *Canadian Western Bank*, *per* Binnie and LeBel JJ. This decision resolved a debate about whether the provincial law must "sterilize" the essential content of a federal power (the language used in *Dick v. The Queen*, 1985 CanLII 80 (SCC), [1985] 2 SCR 309, at pp. 323-24), or whether it is sufficient that the provincial law "affect" a vital part of the management and operation of the undertaking (*Commission du Salaire minimum v. Bell Telephone Co. of Canada*, 1966 CanLII 1 (SCC), [1966] SCR 767, at p. 774; *Bell Canada*, at pp. 859-60). See also *Irwin Toy Ltd. v. Quebec (Attorney General)*, 1989 CanLII 87 (SCC), [1989] 1 SCR 927, at p. 955, *per* Dickson C.J., Lamer J. (as he then was) and Wilson J.

[44] The impairment test established in *Canadian Western Bank* marks a midpoint between sterilization and mere effects. The move away from the "affects" test of *Bell Canada* reflects growing resistance to the broad application of interjurisdictional immunity based on modern conceptions of cooperative federalism and a perceived need to promote efficacy over formalism. As Binnie and LeBel JJ. put it in *Canadian Western Bank*, "[t]he Constitution, though a legal document, serves as a framework for life and for political action within a federal state, in which the courts have rightly observed the importance of co-operation among government actors to ensure that federalism operates flexibly" (para. 42). (See also Dickson C.J. in *OPSEU*, at p. 18.) To quote Binnie and LeBel JJ. in *Canadian Western Bank*:

> A broad application [of interjurisdictional immunity] . . . appears inconsistent, as stated, with the flexible federalism that the constitutional doctrines of pith and substance, double aspect and federal paramountcy are designed to promote. . . . It is these doctrines that have proved to be most consistent with contemporary views of Canadian federalism, which recognize that overlapping powers are unavoidable. [para. 42]

[45] "Impairment" is a higher standard than "affects". It suggests an impact that not only affects the core federal power, but does so in a way that seriously or significantly trammels the federal power. In an era of cooperative, flexible federalism, application of the doctrine of interjurisdictional immunity requires a significant or serious intrusion on the exercise of the federal power. It need not paralyze it, but it must be serious.

[46] The question is whether applying s. 26 of the ARPALAA to prohibit aerodromes would impair the exercise of the core of a federal power, in this case Parliament's ability to decide when and where aerodromes should be built.

[47] I conclude that the s. 26 prohibition does impair the federal power to decide when and where aerodromes should be built. It prohibits the building of aerodromes in designated agricultural regions unless prior authorization has been obtained from the Commission. As the facts of this case illustrate, the effect may be to prevent the establishment of a new aerodrome or require the demolition of an existing one. This is not a minor effect on the federal power to determine where aerodromes are built.

[48] Section 26 of the ARPALAA significantly restricts, or impairs, Parliament's power to determine where aerodromes may be constructed. Section 26 of the ARPALAA does not *sterilize* Parliament's power to legislate on aeronautics; the doctrine of paramountcy would permit Parliament to legislatively override provincial zoning legislation for the purpose of establishing aerodromes. But the ARPALAA would nevertheless seriously affect the manner in which the power can be exercised. Instead of the current permissive regime, Parliament would be obliged to legislate for the specific location of particular aerodromes. Such a substantial restriction of Parliament's legislative freedom constitutes an impairment of the federal power. Though the focus of the inquiry must be on the power itself, it is worth noting that the practical

effect of the ARPALAA is hardly trivial. It effectively removes 63,000 km^2, the total area of the designated agricultural regions, from the territory that Parliament has designated for aeronautical uses. This is not an insignificant amount of land, and much of it is strategically located.

[49] The Province advances two arguments in support of its contention that the doctrine of interjurisdictional immunity does not render s. 26 of the ARPALAA inapplicable to aerodromes.

[50] First, the Province argues that s. 26 of the ARPALAA does not impair the federal power because Parliament remains free to designate particular locations where airfields should be constructed, overriding the provincial law by the doctrine of federal paramountcy. In essence, this argument asserts that the doctrine of paramountcy suffices to render the intrusion on the core federal power insignificant. With respect, I do not agree.

[51] First, the argument effectively applies a sterilization test to interjurisdictional immunity. It asserts that the doctrine does not apply because the federal power will not be sterilized, given the doctrine of paramountcy. This test is contrary to *Canadian Western Bank*.

[52] Second, it impermissibly mingles the distinct doctrines of interjurisdictional immunity and paramountcy, in a way that distorts the former. In those circumstances where interjurisdictional immunity applies, the doctrine asks whether the core of the legislative *power* has been impaired, not whether or how Parliament has, in fact, chosen to exercise that power.

[53] Third, this argument does not answer the fact that the impact of s. 26 is to impair the federal aeronautics power to designate land for the construction of airfields. If Parliament wished to override s. 26 of the ARPALAA by way of federal paramountcy, it would be forced to establish a legislative conflict with each of the Commission's decisions regarding aerodromes, since the doctrine of paramountcy deals with conflict in the exercise of power in the situation where there is overlapping federal and provincial legislation: *Rothmans, Benson & Hedges Inc. v. Saskatchewan*, 2005 SCC 13, [2005] 1 SCR 188, at para. 11. Parliament would not be free to introduce broad, permissive legislation, should it so choose (and as it has chosen to do). Acceptance of this argument would narrow Parliament's legislative options and impede the exercise of its core jurisdiction. See *Re Orangeville Airport Ltd. and Town of Caledon* (1976), 1976 CanLII 743 (ON CA), 11 O.R. (2d) 546 (C.A.), at p. 550, *per* MacKinnon J.A. (as he then was). It might also result in rival systems of regulation, which would be a "source of uncertainty and endless disputes" (*Bell Canada*, at p. 843, *per* Beetz J.) and a "jurisdictional nightmare" (*British Columbia (Attorney General) v. Lafarge Canada Inc.*, 2007 SCC 23, [2007] 2 SCR 86, at para. 140, *per* Bastarache J.).

[54] The Province's second argument is that interjurisdictional immunity does not apply to the case at bar because s. 26 of the ARPALAA raises a double aspect. The Province relies on the statement in *Lafarge Canada*, at para. 4, that interjurisdictional immunity "should not be used where, as here, the legislative subject matter (waterfront development) presents a double aspect" — one provincial, one federal.

[55] This comment should be read in the context of the reasons as a whole. Binnie and LeBel JJ. went on to consider the application of interjurisdictional immunity, despite having identified a clear double aspect (para. 43). Indeed, at para. 42 of *Lafarge Canada*, they cited with approval *Bell Canada*, at pp. 839 and 859-60, in which it was found that interjurisdictional immunity actually rendered the impugned legislation inapplicable, even though the law in question raised a double aspect.

[56] The Province's real objection appears to be that a law which presents a double aspect, and which is valid in its provincial aspect, should not have its application cut down merely because it impairs the core of a federal competence. Why, the Province asks, should a valid provincial law not apply, simply because Parliament has duplicative authority under the Constitution Act, 1867? If Parliament wants to prevent the impact, let it enact positive legislation creating an operative conflict and rely on the doctrine of federal paramountcy.

[57] This objection misapprehends the doctrine of interjurisdictional immunity. The interjurisdictional immunity analysis presumes the validity of a law and focuses exclusively on the law's effects on the core of a federal power: *Canadian Western Bank*, at para. 48. What matters, from the perspective of interjurisdictional immunity, is that the law has the effect of impairing the core of a federal competency. In those cases where the doctrine applies, it serves to protect the immunized core of federal power from any provincial impairment.

[58] The Province's argument that interjurisdictional immunity cannot apply to laws possessing a double aspect is, at bottom, a challenge to the very existence of the doctrine of interjurisdictional immunity. Among the reasons for rejecting a challenge to the existence of the doctrine is that the text of the Constitution Act, 1867, itself refers to exclusivity: *Canadian Western Bank*, at para. 34. The doctrine of interjurisdictional immunity has been criticized, but has not been removed from the federalism analysis. The more appropriate response is the one articulated in *Canadian Western Bank* and *Lafarge Canada*: the doctrine remains part of Canadian law but in a form constrained by principle and precedent. In this way, it balances the need for intergovernmental flexibility with the need for predictable results in areas of core federal authority.

[59] For these reasons, even if s. 26 of the ARPALAA raises a double aspect (a matter which I need not decide), I conclude that the Province's position must be rejected.

[60] To sum up, the doctrine of interjurisdictional immunity is applicable in this case. The location of aerodromes lies at the core of the federal competence over aeronautics. Section 26 of the Act impinges on this core in a way that impairs this federal power. If s. 26 applied, it would force the federal Parliament to choose between accepting that the province can forbid the placement of aerodromes on the one hand, or specifically legislating to override the provincial law on the other hand. This would seriously impair the federal power over aviation, effectively forcing the federal Parliament to adopt a different and more burdensome scheme for establishing aerodromes than it has in fact chosen to do.

[61] To be sure, this result limits the ability of provincial and municipal authorities to unilaterally address the challenges that aviation poses to agricultural land use regulation. However, as Binnie and LeBel JJ. noted in *Canadian Western Bank*, at para. 54, Parliament's exclusive power to decide the location of aircraft landing facilities is vital to the viability of aviation in Canada. As stated in *Lafarge Canada*: "The transportation needs of the country cannot be allowed to be hobbled by local interests. Nothing would be more futile than a ship denied the space to land or collect its cargo and condemned like the *Flying Dutchman* to forever travel the seas" (para. 64).

Most recently, in *Opsis Airport Services Inc. v. Quebec (Attorney General), 2025 SCC 17 (CanLII)*, the Court clarified the two conditions that must be met to trigger the application of interjurisdictional immunity.

6.4 *Opsis Airport Services Inc. v. Quebec (Attorney General)*, 2025 SCC 17 (CanLII)

The Court —

[1] These appeals afford this Court an opportunity to look once again at the contours of the doctrine of interjurisdictional immunity. Since the landmark case of *Canadian Western Bank v. Alberta*, 2007 SCC 22, [2007] 2 SCR 3, the Court has continued, for the reasons mentioned in that case, to take a cautious approach to the applicability and scope of this doctrine. Despite this Court's hesitation to make increased use of this doctrine, our jurisprudence shows that it still remains useful. The reasons that follow are in line with the decisions rendered by this Court since *Canadian Western Bank*.

[2] In the two cases in question, the appellants received statements of offence charging them with having contravened certain provisions of the *Private Security Act*, CQLR, c. S-3.5 ("*PSA*"), a statute enacted by the Quebec legislature. It is common ground that the appellants did not comply with the requirements of the *PSA*. However, the appellants contested their statements of offence on the basis that the *PSA* is inapplicable to them by virtue of the doctrine of interjurisdictional immunity. … Some aspects of the licensing scheme established by the *PSA* have the effect of giving the administrative body created by the provincial legislature the final say on the manner in which the appellants' security activities falling within the core of an exclusive federal power are conducted. These impairing aspects of the *PSA* cannot be severed from the rest of the statute, which means that the statute must be declared wholly inapplicable to the appellants pursuant to the doctrine of interjurisdictional immunity. …

[…]

I. Background

A. Opsis Case

[3] The appellant Opsis Airport Services Inc. ("Opsis") is an enterprise that provides airport security services. It was retained by the Aéroports de Montréal corporation to operate the emergency call centre at the Pierre Elliott Trudeau International Airport. Opsis's responsibilities at that airport include: operating the call centre's computer systems, interpreting the various signals from the surveillance monitors, providing camera surveillance of various interior and exterior locations to detect anomalies or identify why an alarm has sounded, and answering emergency calls. … Opsis's activities are highly regulated by federal legislation. In particular, the *Canadian Aviation Security Regulations, 2012*, SOR/2011-318, under the *Aeronautics Act*, R.S.C. 1985, c. A-2, impose numerous requirements on the operator of an aerodrome like the Pierre Elliott Trudeau International Airport. …

[4] The dispute between the respondents and Opsis arose when the latter received two statements of offence charging it with having [TRANSLATION] "operated an enterprise that carries on a private security activity without holding an agency licence of the appropriate class", thereby contravening ss. 4 and 114 *PSA* ….

B. *QMS Case*

[5] The appellant Quebec Maritime Services Inc. ("QMS") is an enterprise that works in the international marine transportation sector. It performs loading operations on transatlantic ships out of the Pointe-au-Pic terminal in La Malbaie. The role of the appellant Michel Fillion, as an employee, is to monitor and control access to this port facility. … QMS's activities at the Pointe-au-Pic terminal are highly regulated by federal legislation, including the *Canada Shipping Act, 2001*, S.C. 2001, c. 26, and the *Marine Transportation Security Act*, S.C. 1994, c. 40, under which a large number of regulations have been made. …

[6] The dispute between the respondents and QMS and its employee, Mr. Fillion, arose following the receipt of statements of offence served by the Bureau de la sécurité privée ("Bureau"). Mr. Fillion was charged with having [TRANSLATION] "carried on a private security activity without holding an agent licence of the appropriate class", thereby contravening ss. 16 and 116 *PSA* …. QMS was charged with having [translation] "employed a person referred to in section 16 who did not hold an agent licence as required under that section", thereby contravening s. 117 *PSA* (p. 88).

[…]

IV. Issues

[27] …

2. Should the *PSA* be declared constitutionally inapplicable to the appellants pursuant to the doctrine of interjurisdictional immunity?

[…]

VI. Should the *PSA* Be Declared Constitutionally Inapplicable to the Appellants Pursuant to the Doctrine of Interjurisdictional Immunity?

A. *General Principles*

[32] The doctrine of interjurisdictional immunity serves to protect the core of an exclusive power — either federal or provincial — from being impaired by the other level of government. It is rooted in the notion of exclusivity that appears in the text of ss. 91 and 92 of the *Constitution Act, 1867* (*Canadian Western Bank*, at para. 34) and is thus anchored in our law, since the primacy of the written Constitution is "one of the fundamental tenets of our constitutional framework" (*Quebec (Attorney General) v. Canada (Attorney General)*, 2015 SCC 14, [2015] 1 SCR 693, at para. 18; *Reference re Secession of Quebec*, 1998 CanLII 793 (SCC), [1998] 2 SCR 217, at para. 53).

[33] In *Canadian Western Bank*, this Court stated that the doctrine of interjurisdictional immunity should be applied with restraint (para. 67). This approach can be explained by the tension that exists between this doctrine and the modern conception of cooperative federalism, which favours, "where possible, the ordinary operation of statutes enacted by *both* levels of government" (para. 37 (emphasis in original); *Bank of Montreal v. Marcotte*, 2014 SCC 55, [2014] 2 SCR 725, at para. 63).

[34] Though it is "constrained by principle and precedent", the doctrine of interjurisdictional immunity continues to play an essential role in relation to federalism, because it makes it possible to "balanc[e] the need for intergovernmental flexibility with the need for predictable results" (*Quebec (Attorney General) v. Canadian Owners and Pilots Association*, 2010 SCC 39, [2010] 2 SCR 536 ("*COPA*"), at para. 58).

[35] When the doctrine applies, "the impugned provisions remain valid but are declared inapplicable to matters that would fall under the core of the exclusive head of power of the other order of government" (*Desgagnés Transport Inc. v. Wärtsilä Canada Inc.*, 2019 SCC 58, [2019] 4 SCR 228, at para. 90; *Marcotte*, at para. 64). This involves reading down the impugned provisions (*Sharp v. Autorité des marchés financiers*, 2023 SCC 29, at para. 113, quoting P. W. Hogg and W. K. Wright, *Constitutional Law of Canada* (5th ed. Supp.), at §§ 15:15-15:16, and citing H. Brun, G. Tremblay and E. Brouillet, *Droit constitutionnel* (6th ed. 2014), at para. VI-2.56).

[36] The application of the doctrine depends on two conditions being met: (1) intrusion on the core of an exclusive head of power and (2) impairment of the core of the exclusive head of power. Each of these conditions, as will be discussed below, significantly limits the scope of the doctrine of interjurisdictional immunity.

(1) First Condition: Intrusion on the Core of an Exclusive Head of Power

[37] For the doctrine of interjurisdictional immunity to apply, the first requirement is that the impugned provision or provisions intrude on the core of an exclusive head of power of the other level of government. The core of a power is its "basic, minimum and unassailable" content (*Bell Canada v. Quebec (Commission de la santé et de la sécurité du travail)*, 1988 CanLII 81 (SCC), [1988] 1 SCR 749 ("*Bell Canada (1988)*"), at p. 839; *Canadian Western Bank*, at para. 50; *COPA*, at para. 35; *Desgagnés Transport*, at para. 93). This notion serves to identify and delineate "the authority that is absolutely necessary" to enable Parliament or a provincial legislature to effectively achieve the purpose for

which the power was conferred (*Canadian Western Bank*, at para. 77; *COPA*, at para. 35; *Desgagnés Transport*, at para. 93). The consideration of evidence can sometimes assist in determining the core of an exclusive head of power (see, e.g., *Rogers Communications Inc. v. Châteauguay (City)*, 2016 SCC 23, [2016] 1 SCR 467, at para. 66).

[38] It is clear that the concept of core is "necessarily narrower" than the concept of the scope of the power (*Desgagnés Transport*, at para. 95; see also Brun, Tremblay and Brouillet, at para. VI-2.62). The jurisprudence will frequently serve as a "useful guide" in identifying the core of an exclusive head of power (*COPA*, at para. 36, citing *Canadian Western Bank*, at para. 77; *Marine Services*, at para. 55). It was noted in *Canadian Western Bank* that the application of the doctrine of interjurisdictional immunity should "in general" be reserved for situations already covered by precedent (para. 77). As the Quebec Court of Appeal has rightly observed, the words used by Binnie and LeBel JJ. in that case reflect an intention "to favour the application of the doctrine of interjurisdictional immunity when a precedent exists, without, however, necessarily prohibiting it in the other situations" (*Attorney General of Quebec v. IMTT-Québec inc.*, 2019 QCCA 1598, 30 C.E.L.R. (4th) 1, at para. 173).

[39] The jurisprudence subsequent to *Canadian Western Bank* has maintained the flexibility of the approach adopted by the Court (see, e.g., *Rogers*, at para. 61, where the adverb "generally" is used, and *Desgagnés Transport*, at para. 93, where the adverb "usually" is used). In *Canada (Attorney General) v. PHS Community Services Society*, 2011 SCC 44, [2011] 3 SCR 134, McLachlin C.J. also noted that the fact that the core of a power has never been recognized in the jurisprudence "is not determinative", since it remains possible that new exclusive fields of jurisdiction will be identified in the future (para. 67).

(2) Second Condition: Impairment of the Core of the Exclusive Head of Power

[40] Since *Canadian Western Bank*, it has been well settled that not every degree of intrusion will trigger the application of the doctrine of interjurisdictional immunity: there must be an impairment (para. 48; *COPA*, at para. 43; *Desgagnés Transport*, at para. 92). Impairment implies that there are adverse consequences, and it must therefore involve more than mere effects, without necessarily amounting to paralysis or sterilization (*Canadian Western Bank*, at para. 48). The core of the exclusive power of Parliament or a provincial legislature must be seriously or significantly trammeled (*COPA*, at para. 45; *Marine Services*, at paras. 56, 60 and 64; *Marcotte*, at para. 64; *Rogers*, at paras. 59 and 70).

[41] The impairment test strikes an appropriate balance and continues to reflect a "growing resistance to the broad application of interjurisdictional immunity based on modern conceptions of cooperative federalism and a perceived need to promote efficacy over formalism" (*COPA*, at para. 44). Moreover, for the doctrine of interjurisdictional immunity to apply, it is not necessary to show that there is a conflict between the laws of the two levels of government or even that "the government benefiting from the immunity [is] exercising its exclusive authority" (*PHS*, at para. 59; see also *Canadian Western Bank*, at para. 34; *COPA*, at para. 52; Brun, Tremblay and Brouillet, at para. VI-2.66; G. Régimbald and D. Newman, *The Law of the Canadian Constitution* (2nd ed. 2017), at §5.91).

[42] Determining whether the core of an exclusive power has been impaired is a question of law: the analysis focuses solely on the effects of the statute of the other level of government on the core of an exclusive power (COPA, at para. 57). Even though the evidence adduced by the parties will in most cases be helpful, the analysis does not depend on it. Indeed, "the focus of the inquiry must be on the power itself" (para. 48).

[43] It has been said in our jurisprudence that an impairment must relate to the core of the exclusive power of the other level of government or to "the vital or essential part of an undertaking it duly constitutes" (Canadian Western Bank, at para. 48; see also paras. 51-52). …. However, it must be emphasized that the focal point of the doctrine is the core of the exclusive power. From this perspective, assessing how the impugned statute affects "the vital or essential part" of an undertaking is rather an approach that can indicate in concrete terms that the impugned statute has an impairing effect on the core of the exclusive power (J. G. Furey, "Interjurisdictional Immunity: The Pendulum Has Swung" (2008), 42 S.C.L.R. (2d) 597, at p. 601).

[44] This is in fact what was suggested in Bell Canada (1988), which still contains some relevant teachings despite those regarding the necessary degree of intrusion being rendered obsolete by Canadian Western Bank. Beetz J. clearly stated that consideration of a statute's effects on the activities of an undertaking may provide a strong indication of whether there is an unacceptable degree of intrusion:

> If the application of a provincial statute to a federal undertaking has the effect of impairing or paralyzing it, that *a fortiori* is an almost certain sign that such application bears upon the specifically federal nature of the undertaking and constitutes an encroachment on the exclusive legislative authority of Parliament. [p. 860]

[45] … ultimately, considering the effects of an impugned statute on a vital or essential part of an undertaking relates to the analysis of the second condition that must be met for the doctrine to apply, namely an impairment of the core of an exclusive power.

[46] Even where the evidence is silent in this regard, it is possible to take into account the effects of the impugned statute's application that may amount to an impairment:

> In deciding what constitutes impairment the Court cannot disregard potential impairment or effects, especially when, as here, far-reaching provincial statutes are at issue here designed to be accompanied by a large number of regulations, ordinances or remedial orders, or which can have major as well as minor effects on the undertaking, effects which cannot be foreseen at the time the Court must rule on whether the statute is applicable, as is true for example with exercise of the right of refusal.
>
> (Bell Canada (1988), at p. 862)

[47] While much water has flowed under the bridge since Beetz J. made these remarks, they remain relevant. *COPA* provides a good illustration of this point. In that case, two private citizens had built an aerodrome that was registered under a statute enacted by Parliament. The aerodrome was situated in a designated agricultural region. However, a provision of a provincial statute relating to the preservation of agricultural land prohibited the use of a lot in such a region for any purpose other than agriculture without the prior authorization of an administrative body (para. 9). The Court held that this provincial provision "does impair the federal power to decide when and where aerodromes should be built" (para. 47). Discussing the nature of the impairment, McLachlin C.J. did not confine her analysis to the particular facts of the appeal in *COPA*; she considered the effects of the application of the provision in issue:

[…]

[48] Similar reasoning was applied by Gonthier J. in *Commission de transport de la Communauté urbaine de Québec v. Canada (National Battlefields Commission)*, 1990 CanLII 87 (SCC), [1990] 2 SCR 838, where the effects of the application of a permit system created by a provincial statute were considered. Gonthier J. found that, if it applied, "[t]he consequence . . . would be to make the setting up, substance and maintenance of the federal transport service subject to the largely discretionary control of the Commission des transports and the government, when these aspects are within exclusive federal jurisdiction" (p. 860). ….

[…]

[50] We agree with that approach. Predictability is key to "the proper functioning of the division of powers" (*PHS*, at para. 65, citing *Canadian Western Bank*, at paras. 23-24), and for predictability to be ensured, it is important to take into account the effects of the application of the impugned statute, whether they have materialized or not. This must be so because the analysis is essentially based on the

interpretation of the statute of the other level of government. There is no valid reason to take a "wait and see" position (see *Halton*, at para. 76) when the interpretation of a legislative provision or scheme clearly reveals the potential (*Bell Canada (1988)*, at p. 862) for impairment of the core of an exclusive power.

B. *Application to the Facts*

(1) Preliminary Remarks

[51] We note that a court must conduct a pith and substance analysis "before inquiring into the application of the doctrines of interjurisdictional immunity and federal paramountcy, both of which are predicated on the constitutional validity of the impugned statute or measure" (*Rogers*, at para. 35; see also *Canadian Western Bank*, at para. 76; *Alberta (Attorney General) v. Moloney*, 2015 SCC 51, [2015] 3 SCR 327, at para. 17). In these appeals, it is not in dispute that the *PSA*'s purpose is to regulate the private security industry and that this statute comes within provincial jurisdiction over property and civil rights (s. 92(13) of the *Constitution Act, 1867*; C.A. reasons (Opsis), at para. 134; C.A. reasons (QMS), at para. 95). Its validity is not in issue.

[52] In addition, this Court has previously suggested that it is "generally" preferable for federal paramountcy to be considered before interjurisdictional immunity in "the absence of prior case law favouring its application to the subject matter at hand" (*Canadian Western Bank*, at para. 78). This suggestion was made in order to favour, where possible, the concurrent application of statutes enacted by both levels of government. However, some authors have criticized this suggestion, noting that a statute's *applicability* should be considered before its *operability* (see Hogg and Wright, at § 15:16; R. Elliot, "Interjurisdictional Immunity after *Canadian Western Bank* and *Lafarge Canada Inc.*: The Supreme Court Muddies the Doctrinal Waters — Again" (2008), 43 S.C.L.R. (2d) 433, at pp. 495-96). It must in fact be recognized that, in most cases, this latter approach will be the most logical and appropriate one. Indeed, in all of our decisions subsequent to *Canadian Western Bank* that have dealt with both doctrines, namely *British Columbia (Attorney General) v. Lafarge Canada Inc.*, 2007 SCC 23, [2007] 2 SCR 86, *COPA*, *Marine Services*, *Marcotte* and *Desgagnés Transport*, the doctrine of interjurisdictional immunity has been addressed first. That being said, it is not out of the question that, in some circumstances, it will be expedient to consider the doctrine of federal paramountcy before that of interjurisdictional immunity. It sometimes also happens that only the doctrine of federal paramountcy is relied upon. A party is not required to raise the doctrine of interjurisdictional immunity first, or even at all, if it chooses to base its challenge exclusively on the doctrine of federal paramountcy.

[53] Here, the debate has focused on the applicability of the doctrine of interjurisdictional immunity, …. In this context, it is appropriate to proceed directly to consider the doctrine of interjurisdictional immunity.

(2) First Condition

(a) *Opsis Case*

[54] Aeronautics falls within Parliament's exclusive jurisdiction as part of its power to make laws for the peace, order and good government of Canada (s. 91 of the *Constitution Act, 1867*). It has been recognized to be a matter of national importance (see *COPA*, at paras. 28-31, citing *Johannesson v. Rural Municipality of West St. Paul*, 1951 CanLII 55 (SCC), [1952] 1 SCR 292, and *Air Canada v. Ontario (Liquor Control Board)*, 1997 CanLII 361 (SCC), [1997] 2 SCR 581, at para. 72).

[55] A number of precedents have dealt more specifically with the relationship between this exclusive federal jurisdiction and airports. It is now accepted that "the federal aeronautics jurisdiction encompasses not only the regulation of the operation of aircraft, but also the regulation of the operation of airports" (*Air Canada*, at para. 72; *COPA*, at para. 31). As McLachlin C.J. noted, "Canada's airports and aerodromes constitute a network of landing places that together facilitate air transportation and ensure safety" (*COPA*, at para. 33). Estey J. also recognized several decades ago that "in any practical consideration it is impossible to separate the flying in the air from the taking off and landing on the ground and it is, therefore, wholly impractical, particularly when considering the matter of jurisdiction, to treat them as independent one from the other" (*Johannesson*, at p. 319; *Quebec (Attorney General) v. Lacombe*, 2010 SCC 38, [2010] 2 SCR 453, at para. 27).

[…]

[57] It can be inferred from the guidance provided in our jurisprudence that airport security, insofar as it is related to the security of air transportation itself, is at the core of the aeronautics power. This is self-evident, because [TRANSLATION] "[w]ithout safety and security measures, there would simply be no civil aviation" (C.A. reasons (Opsis), at para. 12, per Ruel J.A., dissenting; see also para. 67). Indeed, this observation echoes the statement in *Canadian Western Bank* that "interprovincial and international carriers have a vital and essential interest in being able to land at an airport or having access to a safe harbour" (para. 54).

[58] The tasks associated with Opsis's mandate at the Pierre Elliott Trudeau International Airport include providing camera surveillance of interior and exterior locations at the airport and operating the computer systems of the call centre, which receives some of its calls from the control tower (A.R., vol. II, at p. 137; Sup. Ct. reasons (Opsis), at para. 73). These activities unquestionably fall within the core of the aeronautics power because they are related to the security of air transportation itself. The application of the *PSA* to Opsis's activities leads to the conclusion that the first condition for the applicability of the doctrine is met. There is an intrusion on the core of an exclusive head of power.

(b) *QMS Case*

[59] Parliament has jurisdiction over navigation and shipping under s. 91(10) of the *Constitution Act, 1867*. It is a broad power that "encompasses those aspects of navigation and shipping that engage national concerns which must be uniformly regulated across the country, regardless of their territorial scope" (*Marine Services*, at para. 61, quoting *Tessier Ltée v. Quebec (Commission de la santé et de la sécurité du travail)*, 2012 SCC 23, [2012] 2 SCR 3, at para. 22). This Court has held that "dockside unloading and storage operations are 'integral' to shipping" (*Lafarge*, at para. 35, quoting *ITO — International Terminal Operators Ltd. v. Miida Electronics Inc.*, 1986 CanLII 91 (SCC), [1986] 1 SCR 752). In *Lafarge*, Binnie and LeBel JJ. stated the following about this exclusive head of power:

> Historically, the federal navigation and shipping power has been broadly construed (Queddy River Driving Boom Co. v. Davidson (1883), 1883 CanLII 60 (SCC), 10 SCR 222). The transportation needs of the country cannot be allowed to be hobbled by local interests. Nothing would be more futile than a ship denied the space to land or collect its cargo and condemned like the Flying Dutchman to forever travel the seas. Authority for the proposition that transportation undertakings need facilities to pick up and drop cargo, if any is required, is to be found in Attorney-General for Ontario v. Winner, 1954 CanLII 289 (UK JCPC), [1954] A.C. 541 (P.C.). Effective regulation of harbour facilities are as essential to shipping as airports to aeronautics. [para. 64]

[60] Even without any specific precedent in this regard, there is no doubt that the security of marine facilities and their operations is at the core of the federal navigation and shipping power. A port facility plays the same role for ships that an aerodrome does for aircraft. As in the case of air transportation, [TRANSLATION] "[w]ithout robust and uniform safety and security measures, there could be no navigation and marine commerce" (C.A. reasons (QMS), at para. 60, per Ruel J.A., dissenting). The security of marine facilities is therefore a condition that is absolutely necessary for Parliament to "achieve the purpose for which exclusive legislative jurisdiction was conferred" (*COPA*, at para. 35, quoting *Canadian Western Bank*, at para. 77).

[61] QMS's international longshoring activities at the Pointe-au-Pic terminal — and by extension the security guard activities carried on by its employee, Mr. Fillion — fall squarely within the core of this exclusive federal power. Indeed, the monitoring tasks performed by Mr. Fillion are part of a security plan required by federal marine security regulations, whose conformity must be approved by Transport Canada. The link between the security of marine facilities and QMS's operations, whose purpose is to ensure the security of the Pointe-au-Pic terminal, is therefore clear. The application of the *PSA* to the appellants QMS and Mr. Fillion thus constitutes, as in the Opsis case, an intrusion on the core of an exclusive head of power.

(3) Second Condition

(a) *Methodological Clarifications*

[62] In these appeals, the respondents argue that the Court should apply a narrow approach that examines only the provisions on *obtaining* agency and agent licences to determine whether there is an impairment. They contend that this should be the case because the other aspects of the *PSA* are not [TRANSLATION] "in issue" (R.F. (Opsis), Attorney General of Quebec, at paras. 98-99; R.F. (QMS), at paras. 31-32).

[63] Respectfully, a licensing scheme like the one established by the *PSA* does not lend itself to a siloed analysis. There is very often no point in obtaining a licence if it cannot be kept or renewed. As a matter of logic, therefore, a licensing scheme will generally be "taken as a whole" (*National Battlefields Commission*, at p. 860), although this may vary depending on the specifics of a dispute and the impugned legislation. That being said, given the narrow scope of the doctrine of interjurisdictional immunity, its application must be limited to the specific provisions of the impugned statute that impair the core of the exclusive power (*Marcotte*, at para. 65; *IMTT*, at para. 274; see also *COPA*, at paras. 15-16).

(b) *Impugned Aspects of the PSA and the Regulations Thereunder*

[64] Although the appellants are asking that the *PSA* as a whole be declared inapplicable, their arguments are focused on specific provisions that, in their opinion, constitute sources of impairment of the core of an exclusive federal power. To facilitate the analysis, we will deal separately with the various impugned aspects of the PSA in order to precisely identify the sources of impairment. It must nevertheless be borne in mind that the impugned provisions are interrelated and are part of the whole formed by the PSA, as will be discussed in the last part of these reasons.

(i) Requirements for Obtaining an Agency Licence

[65] As mentioned above (at paras. 21 et seq.), issuing an agency licence under the *PSA* is subject to various conditions. …. Similar requirements apply to the owner of the enterprise, to every director and to every partner or shareholder having a major interest in the enterprise (s. 8). …

[66] An enterprise must meet these administrative requirements in order to carry on activities referred to in the *PSA*. Given the mandatory nature of these requirements, when they are applied to an enterprise whose activities fall within the core of one of Parliament's exclusive fields of jurisdiction, they necessarily intrude on the core of such jurisdiction. This is not to say that the mere existence of a licensing scheme is sufficient to find an impairment that triggers the application of the doctrine of interjurisdictional immunity (*Procureure générale du Québec v. Leclerc*, 2018 QCCA 1567, at paras. 79-82; Halton, at para. 73, citing *Regina v. TNT Canada Inc.*, 1986 CanLII 2632 (ON CA), 58 O.R. (2d) 410 (C.A.)). However, this might be the case, for example where the requirements for obtaining a licence are so unreasonable that they constitute an impairment. Similarly, if training costs for the enterprise's employees are inordinately high, it will be possible to say that the licence is so restrictive that it can "be characterized as a colourable attempt to regulate or 'sterilize'" activities falling within the core of an exclusive power (*Aeroguard Co. v. British Columbia (Attorney General) (1998)*, 1998 CanLII 2300 (BC SC), 50 B.C.L.R. (3d) 88 (S.C.), at para. 23). This will also be the case where obtaining a licence is subject to the exercise of a broad discretion that has the effect of giving the other level of government the final say on the possibility of carrying on activities falling with the core of an exclusive power (see *National Battlefields Commission*, at pp. 859-60; *IMTT*, at paras. 218-22; *Halton*, at paras. 75-77). Everything depends on the legislative context in question.

[67] Here, it cannot be said that the conditions for obtaining a licence adversely affect the activities of an enterprise like Opsis. Several of these conditions are intended only to ensure that private security services are provided by enterprises with a minimum level of financial health. The conditions relating to representatives, owners, major shareholders or partners and directors are also not very onerous. …

[68] The conditions for obtaining an agency licence do not in themselves have any impact on the manner in which Opsis must conduct its activities or on the airport security standards with which it must comply. From this perspective, there is no basis — at this stage of the analysis — for finding an impairment of the core of an exclusive power of Parliament. …

(ii) Requirements for Obtaining an Agent Licence

[69] Most of the preceding comments can also be applied to the requirements for obtaining an agent licence. …

[…]

(ii) Requirements Relating to Standards of Conduct

[71] Section 30 para. 1(5) *PSA* provides in particular that the Bureau has the power to "suspend, cancel or refuse to renew the agent licence of a licence holder" where the holder "has violated the standards of conduct determined by regulation".

[…]

[73] The majority of the Court of Appeal found that the standards of conduct established by regulation are of general application and do not permit the Bureau to control the manner in which the employees of Opsis or QMS must carry on their activities (C.A. reasons (Opsis), at para. 176; C.A. reasons (QMS), at para. 185). To conclude otherwise would be to rely on "hypotheticals and conjectures" (C.A. reasons (Opsis), at para. 176; see also C.A. reasons (QMS), at paras. 222-23). The respondents share this view. The appellants instead urge the Court to adopt the position of the dissenting judge, who found that by seeking to take action in relation to agent licence holders as regards these standards of conduct, the Bureau [TRANSLATION] "would necessarily find itself having to regulate and applying the rules of aeronautical safety and security" (C.A. reasons (Opsis), at para. 81). He reached the same conclusion in the QMS case as regards the core of maritime jurisdiction (para. 64).

[74] We come to the same conclusion as the dissenting judge. The power to suspend, cancel or refuse to renew an agent licence conferred on the Bureau by s. 30 *PSA* clearly reveals the potential for impairment. ….

[75] The agent licensing scheme established by the *PSA* thus allows an administrative body created by the provincial legislature to have "the final say" on the manner in which activities — including those of the appellants — falling within the core of an exclusive federal power must be conducted, as was the case in *COPA* (paras. 1 and 46-48). In other words, such activities are "at the mercy" of the Bureau (*National Battlefields Commission*, at p. 859). But one of the purposes of the doctrine of interjurisdictional immunity is precisely to prevent one level of

government from being able to "achieve indirectly what it lacks the authority to achieve directly" (K. Wilkins, "Exclusively Yours: Reconsidering Interjurisdictional Immunity" (2019), 52 *U.B.C. L. Rev.* 697, at p. 712). We therefore have no difficulty in concluding that … there is in the instant cases an impairment of the core of Parliament's exclusive aeronautics and maritime jurisdiction.

(iv) Power of the Bureau To Issue Directives Regarding an Agency Licence Holder's Activities

[76] To "protect the public", the Bureau may, in particular, issue "directives to an agency licence holder regarding the agency licence holder's activities" (s. 42(1) *PSA*). … Section 29(4) *PSA* provides that if an agency licence holder "fails to follow the directives issued by the Bureau", its licence may be suspended, cancelled or not renewed.

[77] The majority of the Court of Appeal noted that this power represents at most a [TRANSLATION] "purely speculative impairment" as there is no certainty that the Bureau will exercise it and, furthermore, that if it does, it will exercise it in a manner that impairs the core of the federal aeronautics power (C.A. reasons (Opsis), at paras. 202-3 (emphasis deleted)).

[78] Respectfully, we cannot accept that view for reasons similar to those just stated. Like the Bureau's powers in relation to standards of conduct, the power to issue to an agency licence holder "directives . . . regarding the agency licence holder's activities" gives the Bureau a broad discretion. This power is a sword of Damocles hanging over the head of an enterprise like Opsis, given that the Bureau has the authority to dictate how it must carry on its airport security activities and that, it if fails to comply, it may lose its agency licence (s. 29(4) *PSA*) and thus no longer be able to carry on private security activities (s. 4 *PSA*). It therefore seems clear that the application of s. 29(4) … has the effect of subjecting Opsis's activities falling within the core of an exclusive power of Parliament to the control of an administrative body created by the provincial legislature. Here again, we have no difficulty in concluding that there is an impairment of the core of Parliament's exclusive aeronautics power.

[…]

(4) Scope of the Declaration of Inapplicability

[80] To summarize, two aspects of the *PSA*'s licensing scheme meet the second condition for the applicability of the doctrine of interjurisdictional immunity in these two appeals. ….

[81] We must now determine whether only these two aspects of the *PSA* should be declared inapplicable to the appellants or whether it is instead appropriate to declare that the entire licensing scheme created by this statute is inapplicable to them. Given that the impairing provisions cannot be severed from the coherent whole formed by the *PSA*, this second avenue, in our view, is to be preferred.

[82] The fact is that the two impairing aspects of the *PSA* are related to the Bureau's essential function, namely its mission to protect the public, including by ensuring the enforcement of the *PSA* and the regulations thereunder (s. 41). Morissette J.A. rightly pointed out that the *PSA* gives the Bureau [TRANSLATION] "functions analogous to that of a professional order" (*Société québécoise des infrastructures*, at para. 12). …

[83] If the Bureau loses its power to suspend, cancel or refuse to renew the agent licence of a holder who violates the standards of conduct determined by regulation (s. 30 para. 1(5) *PSA*), this would significantly limit its ability to supervise private security activities. The same is true as regards the exercise of this power where an agency licence holder fails to follow the directives issued to it by the Bureau (s. 29(4)). The absence of these two impairing aspects of the *PSA* would deprive the Bureau of important tools to accomplish its primary mission of protecting the public. …

[84] From this perspective, it seems clear that the Quebec legislature would not have enacted the *PSA* without the impairing provisions, which are truly unseverable from the rest of the statute and essential to the whole of which they form part. Since a targeted declaration of inapplicability might change the nature of the legislative scheme intended by the legislature, the appropriate remedy is to read down the statute as a whole so that the appellants are excluded from its scope (see, by analogy, *Ontario (Attorney General) v. G*, 2020 SCC 38, [2020] 3 SCR 629, at para. 114; *R. v. Ferguson*, 2008 SCC 6, [2008] 1 SCR 96, at paras. 50-51).

VII. Conclusion

[85] In light of our conclusions …. The *PSA* is declared constitutionally inapplicable to the appellants pursuant to the doctrine of interjurisdictional immunity. ….

6.5 Questions

In *Canada (Attorney General) v. PHS Community Services Society*, 2011 SCC 44, the Court confirmed that interjurisdictional immunity doctrine could, in principle, protect a provincial (rather than a federal) core. Ultimately, however, the Court found that interjurisdictional immunity did not apply.

PHS concerned the continued operation of *Insite,* a safe drug injection site in Vancouver's Downtown Eastside neighbourhood. Insite provides a supervised environment with trained staff and clean equipment so that drug users may safely inject their illicit drugs. Drug users must bring their own drugs. Evidence showed that *Insite* reduced overdose deaths, injuries, and the spread of infectious diseases from shared equipment. In order for the Province of British Columbia to continue to operate *Insite*, it required the extension of its federal exemption under section 56 of the *Controlled Drugs and Substances Act (CDSA)*. Otherwise, the drugs on site would be prohibited. The federal government at the time refused to extend the exemption, which would have triggered the closure of *Insite*.

The Province of British Columbia made several constitutional arguments, one of which concerned the inapplicability of sections 4 and 5 of the *CDSA*. They argued that the core of provincial jurisdiction over health care was protected from federal intrusion by the doctrine of interjurisdictional immunity. In other words, they reversed the usual direction of interjurisdictional immunity doctrine to claim a protected *provincial* core, one that would permit the continued operation of Insite without an extension of the *CDSA* exemption.

[57] British Columbia, Mr. Wilson, Ms. Tomic and PHS argue that Insite is shielded from the operation of the *CDSA* by virtue of the doctrine of interjurisdictional immunity. The argument, accepted by the majority of the Court of Appeal, is that decisions about what treatment may be offered in provincial health facilities lie at the core of the provincial jurisdiction in the area of health care, and are therefore protected from federal intrusions by the doctrine of interjurisdictional immunity. Accordingly, they say that ss. 4(1) and 5(1) of the *CDSA* are of no force or effect to the extent that they impair the Province's ability to make decisions about health care services.

[58] The doctrine of interjurisdictional immunity is premised on the idea that there is a "basic, minimum and unassailable content" to the heads of powers in ss. 91 and 92 of the *Constitution Act, 1867* that must be protected from impairment by the other level of government: *Bell Canada v. Quebec (Commission de la santé et de la sécurité du travail)*, 1988 CanLII 81 (SCC), [1988] 1 SCR 749, at p. 839. In cases where interjurisdictional immunity is found to apply, the law enacted by the other level of government remains valid, but has no application with regard to the identified "core".

> [59] It is not necessary to show that there is a conflict between the laws adopted by the two levels of government for interjurisdictional immunity to apply: *Quebec (Attorney General) v. Canadian Owners and Pilots Association*, 2010 SCC 39, [2010] 2 SCR 536, at para. 52 ("*COPA*"). Indeed, it is not even necessary for the government benefiting from the immunity to be exercising its exclusive authority: *Canadian Western Bank*, at para. 34.
>
> [60] The doctrine of interjurisdictional immunity has been applied to circumscribed areas of activity referred to in the cases as undertakings. These include aviation, ports, interprovincial rail and federal communications works. The doctrine has also been applied to federal things like Aboriginal land, and federally regulated persons such as Aboriginal peoples: *Derrickson v. Derrickson*, 1986 CanLII 56 (SCC), [1986] 1 SCR 285; *Natural Parents v. Superintendent of Child Welfare*, 1975 CanLII 143 (SCC), [1976] 2 SCR 751; see also *Canadian Western Bank*, at para. 41. It has never been applied to a broad and amorphous area of jurisdiction.
>
> [61] Recent jurisprudence has tended to confine the doctrine of interjurisdictional immunity. In *Canadian Western Bank*, the majority stated that "although the doctrine of interjurisdictional immunity has a proper part to play in appropriate circumstances, we intend now to make it clear that the Court does not favour an intensive reliance on the doctrine, nor should we accept the invitation of the appellants to turn it into a doctrine of first recourse in a division of powers dispute" (para. 47). More recently, in *COPA*, the majority held that the doctrine "has not been removed from the federalism analysis", but rather remains "in a form constrained by principle and precedent" (para. 58).
>
> [62] This caution reflects three related concerns. First, the doctrine of interjurisdictional immunity is in tension with the dominant approach that permits concurrent federal and provincial legislation with respect to a matter, provided the legislation is directed at a legitimate federal or provincial aspect, as the case may be. This model of federalism recognizes that in practice there is significant overlap between the federal and provincial areas of jurisdiction, and provides that both governments should be permitted to legislate for their own valid purposes in these areas of overlap.
>
> [63] Second, the doctrine is in tension with the emergent practice of cooperative federalism, which increasingly features interlocking federal and provincial legislative schemes. In the spirit of cooperative federalism, courts "should avoid blocking the application of measures which are taken to be enacted in furtherance of the public interest": *Canadian Western Bank*, at para. 37. Where possible, courts should allow both levels of government to jointly regulate areas that fall within their jurisdiction: *Canadian Western Bank*, at para. 37.
>
> [64] Third, the doctrine of interjurisdictional immunity may overshoot the federal or provincial power in which it is grounded and create legislative "no go" zones where neither level of government regulates. Since it is not necessary for the government benefiting from the immunity to actually regulate in the field in question, extension of the doctrine of interjurisdictional immunity risks creating "legal vacuums": *Canadian Western Bank*, at para. 44.
>
> [65] While the doctrine of interjurisdictional immunity has been narrowed, it has not been abolished. Predictability, important to the proper functioning of the division of powers, requires recognition of previously established exclusive cores of power: *Canadian Western Bank*, at paras. 23-24. Nor, in principle, is the doctrine confined to federal powers: *Canadian Western Bank*. However, in areas of overlapping jurisdiction, the modern trend is to strike a balance between the federal and provincial governments, through the application of pith and substance analysis and a restrained application of federal paramountcy. Therefore, before applying the doctrine of interjurisdictional immunity in a new area, courts should ask whether the constitutional issue can be resolved on some other basis.
>
> [66] The question in this case is whether the delivery of health care services constitutes a protected core of the provincial power over health care in s. 92(7), (13) and (16) of the *Constitution Act, 1867*, and is therefore immune from federal interference. I conclude that it is not, for three related reasons.
>
> [67] First, the proposed core of the provincial power over health has never been recognized in the jurisprudence. This is not determinative since new areas of exclusive jurisdiction could in theory be identified in the future. However, as noted above, courts are reluctant to identify new areas where interjurisdictional immunity applies.
>
> [68] Second, and more importantly, the claimants in this case have failed to identify a delineated "core" of an exclusively provincial power. The provincial health power is broad and extensive. It extends to thousands of activities and to a host of different venues. Such a vast core would sit ill with the restrained application of the doctrine called for by the jurisprudence. To complicate the matter, Parliament has power to legislate with respect to federal matters, notably criminal law, that touch on health. For instance, it has historic jurisdiction to prohibit medical treatments that are dangerous, or that it perceives as "socially undesirable" behaviour: *R. v. Morgentaler*, 1988 CanLII 90 (SCC), [1988] 1 SCR 30; *Morgentaler v. The Queen*, 1975 CanLII 8 (SCC), [1976] 1 SCR 616; *R. v. Morgentaler*, 1993 CanLII 74 (SCC), [1993] 3 SCR 463. The federal role in the domain of health makes it impossible to precisely define what falls in or out of the proposed provincial "core". Overlapping federal jurisdiction and the sheer size and diversity of provincial health power render daunting the task of drawing a bright line around a protected provincial core of health where federal legislation may not tread.
>
> [69] Third, application of interjurisdictional immunity to a protected core of the provincial health power has the potential to create legal vacuums. Excluding the federal criminal law power from a protected provincial core power would mean that Parliament could not legislate on controversial medical procedures, such as human cloning or euthanasia. The provinces might choose not to legislate in these areas, and indeed might not have the power to do so. The result might be a legislative vacuum, inimical to the very concept of the division of powers.
>
> [70] In summary, the doctrine of interjurisdictional immunity is narrow. Its premise of fixed watertight cores is in tension with the evolution of Canadian constitutional interpretation towards the more flexible concepts of double aspect and cooperative federalism. To apply it here would disturb settled competencies and introduce uncertainties for new ones. Quite simply, the doctrine is neither necessary nor helpful in the resolution of the contest here between the federal government and the provincial government.

PHS was ultimately decided on *Charter* grounds. This case was heard and decided by the Court one year after the *COPA* decision.

1. Are you persuaded by the different outcomes in *COPA* and *PHS*? Are those outcomes explained by the fact that aerodromes are settled federal undertakings while safe injection sites are a new and novel subject matter?
2. What would you characterize as the "core" of provincial jurisdiction in *PHS*? Do you think that the "core" needs to be capable of precise articulation?
3. While it is true that we are in an era of cooperative federalism, should that necessarily preclude a role for interjurisdictional immunity doctrine and confine it to matters of precedent? Do you think there is a role for interjurisdictional immunity doctrine that might bring the meaning of the exclusivity of the heads of power into the modern age?
4. Does it change your mind if interjurisdictional immunity is not asymmetrical, in light of what the Court said in *PHS*? Do you think that different provinces and territories may have different perspectives on the interjurisdictional immunity doctrine, depending on their location and position in the federation?
5. In the ongoing scholarly debates and judicial interpretations about interjurisdictional immunity and its place among interpretation doctrines, which position do you find most persuasive? Why?

For reactions to and comments on the various points of contention in interjurisdictional immunity doctrine, see: Robin Elliot, "Constitutional Law – Division of Powers – Interjurisdictional Immunity, Reading Down and Pith and Substance: Ontario Public Service Employees Union v

Attorney-General for Ontario" (1988) 67 Can Bar Rev 523; Robin Elliot, "Interjurisdictional Immunity After *Canadian Western Bank* and *Lafarge Canada Inc.*: The Supreme Court Muddies the Doctrinal Waters – Again" (2008) 43 Sup Ct L Rev (2d) 433; Peter W Hogg & Rahat Godil, "Narrowing Interjurisdictional Immunity" (2008) 42 SCLR (2d) 623; John G Furey, "Interjurisdictional Immunity: The Pendulum Has Swung" (2008) 43 SCLR (2d) 597.

7 Federal paramountcy

We have seen that interjurisdictional immunity doctrine is of limited application and, unless the jurisprudence has already applied to the same activity, is a doctrine of last resort. What, then, should courts do when both levels of government have adopted valid legislation governing the same activity, as we know they can, pursuant to the double aspect doctrine? *Multiple Access v McCutcheon* tells us (at p 182) that where this is the case, there is no good reason to "to kill one and let the other live". In other words, provided both laws can peacefully coexist, courts should allow them to live and let live. But what of the situation where two laws, one federal and one provincial, say conflicting things? In addition to defining a conflict, the doctrine of federal paramountcy governs how to deal with conflicting legislation.

As discussed above, public roads may be the quintessential example of a matter with a double aspect. Both Parliament and the provinces have jurisdiction to adopt legislation governing roads. *Ross v. Registrar of Motor Vehicles et al.*, 1973 CanLII 176 (SCC), [1975] 1 SCR 5, an early case on federal paramountcy, provides some clarity on how to deal with potentially conflicting federal and provincial legislation governing roads.

7.1 *Ross v. Registrar of Motor Vehicles et al.*, 1973 CanLII 176 (SCC), [1975] 1 SCR 5

On August 22, 1972, Gordon Russell Ross was convicted under s. 234 of the *Criminal Code* of driving while his ability was impaired. As varied on appeal, his sentence provides:

> The accused shall be prohibited from driving for a period of six months except Monday to Friday, 8:00 a.m. to 5:45 p.m., in the course of employment and going to and from work.

The order thus made on January 3, 1973 further provided that Ross' operator's licence was not to be suspended and that the Registrar of Motor Vehicles be advised of the order. However, s. 21 of the *Highway Traffic Act,* R.S.O. 1970, c. 202, provides that, subject to s. 25, the licence of a person who is convicted of an offence under any of several sections of the *Criminal Code* including s. 222 (now 234) is thereupon suspended for a period of, upon the first offence, three months, but where personal injury, death or damage to property occurred in connection with the offence, six months. A six or twelve-month suspension is provided for a second offence. Section 25 contemplates the issue in some cases of a restricted licence for the last three months of a six-month suspension or the last six months of a twelve-month suspension, upon the recommendation of the provincial judge, leaving mandatory the complete suspension for the first three or six months.

On January 29, 1973, Ross instituted an action in the Supreme Court of Ontario claiming against the Registrar of Motor Vehicles and the Attorney General for Ontario a declaration that s. 21 of the *Highway Traffic Act* is inoperative and that the suspension of his operator's licence is of no effect.

In 1941, a substantially similar question concerning the validity and effect of provincial motor vehicle legislation was raised in the case of *Provincial Secretary of Prince Edward Island v. Egan*. Although a conclusion on the appeal could have been reached on a question of jurisdiction of the court below, this Court went on unanimously to determine that the operation and validity of provincial legislation suspending driving licences upon conviction of certain offences under the *Criminal Code* remained unaffected by the enactment, by the Parliament of Canada, of a provision for the making of orders prohibiting a convicted person from driving a motor vehicle during a period not exceeding three years. This enactment was subs. 7 of s. 285 of the *Criminal Code* then in force.

…

The first sentence of the subsection had been enacted the previous year (c. 44, s. 16). At that time, s. 285 included all the *Criminal Code* offences specifically pertaining to the operation of motor vehicles. The subsections mentioned in subs. 7 related to negligent driving, hit and run, driving while impaired and dangerous driving respectively. Duff C.J. said (at pp. 402, 403):

> …Primarily, responsibility for the regulation of highway traffic, including authority to prescribe the conditions and the manner of the use of motor vehicles on highways and the operation of a system of licences for the purpose of securing the observance of regulations respecting these matters in the interest of the public generally, is committed to the local legislatures.

Sections 84(1)(*a*) and (*c*) are enactments dealing with licences. The legislature has thought fit to regard convictions of the classes specified as a proper ground for suspending the licence of the convict. Such legislation, I think, is concerned with the subject of licensing, over which it is essential that the Province should primarily have control. In exercising such control it must, of course, abstain from legislating on matters within the enumerated subjects of section 91. Suspension of a driving licence does involve a prohibition against driving; but so long as the purpose of the provincial legislation and its immediate effect are exclusively to prescribe the conditions under which licences are granted, forfeited, or suspended, I do not think, speaking generally, it is necessarily impeachable as repugnant to section 285(7) of the *Criminal Code* in the sense above mentioned.

It is, of course, beyond dispute that where an offence is created by competent Dominion legislation in exercise of the authority under section 91(27), the penalty or penalties attached to that offence, as well as the offence itself, become matters within that paragraph of section 91 which are excluded from provincial jurisdiction.

There is, however, no adequate ground for the conclusion that these particular enactments (section 84(1)(*a*) and (*c*)) are in their true character attempts to prescribe penalties for the offences mentioned, rather than enactments in regulation of licences.

The provisions of the *Criminal Code* presently in force concerning the making of orders prohibiting a person from driving are in s. 238.

As amended by 1972, c. 13, s. 18, the first four subsections read as follows:

> **238.** (1) Where an accused is convicted of an offence under section 203, 204 or 219 committed by means of a motor vehicle or of an offence under section 233, 234, 235, 236 or subsection (3) of this section, the court, judge, justice or magistrate, as the case may be, may, in addition to any other punishment that may be imposed for that offence, make an order prohibiting him from driving a motor vehicle in Canada *at all times or at such times and places as may be specified in the order*
>
> (*a*) during any period that the court, judge, or magistrate considers proper, if he is liable to imprisonment for life in respect of that offence, or
>
> (*b*) during any period not exceeding three years, if he is not liable to imprisonment for life in respect of that offence.
>
> (2) Where an order is made pursuant to subsection (1), a copy of the order certified under the hand of the justice or magistrate or under the hand of the judge or the clerk of the court and sealed with the seal, if any, of the court, shall

(*a*) where the accused holds a permit or licence to drive a motor vehicle, be sent to the registrar of motor vehicles for the province in which the licence or permit was issued, or

(*b*) where the accused does not hold a permit or licence to drive a motor vehicle, be sent to the registrar of motor vehicles for the province in which the accused resides.

(3) Every one who drives a motor vehicle in Canada while he is disqualified or prohibited from driving a motor vehicle by reason of

(*a*) the legal suspension or cancellation, in any province, of his permit or licence or of his right to secure a permit or licence to drive a motor vehicle in that province, or

(*b*) an order made pursuant to subsection (1),

is guilty of

(*c*) an indictable offence and is liable to imprisonment for two years, or

(*d*) an offence punishable on summary conviction.

(3.1) Subsection (3) does not apply to a person who drives a motor vehicle in Canada while he is disqualified or prohibited from driving a motor vehicle by reason of the legal suspension or cancellation, in any province, of his permit or licence or of his right to secure a permit or licence to drive a motor vehicle in that province, where that suspension or cancellation is inconsistent with an order made with respect to him under subsection (1).

…

… The direction that Ross' operator's licence was not to be suspended shows that the judge who made the prohibitory order considered not only that the prohibition may be limited as to time and place, but also that the person to whom the order is directed should enjoy the right to drive at specified time and place, irrespective of provincial legislation concerning the suspension of driving privileges. In terms, the *Criminal Code* merely provides for the making of prohibitory orders limited as to time and place. If such an order is made in respect of a period of time during which a provincial licence suspension is in effect, there is, strictly speaking, no repugnancy. Both legislations can fully operate simultaneously. It is true that this means that as long as the provincial licence suspension is in effect, the person concerned gets no benefit from the indulgence granted under the federal legislation. But, is the situation any different in law from that which was considered in the *Egan* case namely, that due to the provincial legislation, the right to drive was lost by reason of the conviction, although the convicting magistrate had made no prohibitory order whatsoever?

Reference was made in this case to s. 5(1) of the *Criminal Code* which reads:

5. (1) Where an enactment creates an offence and authorizes a punishment to be imposed in respect thereof,

(*a*) a person shall be deemed not to be guilty until he is convicted thereof; and

(*b*) a person who is convicted of that offence is not liable to any punishment in respect thereof other than the punishment prescribed by this Act or by the enactment that creates the offence.

It should now be taken as settled that civil consequences of a criminal act are not to be considered as "punishment" so as to bring the matter within the exclusive jurisdiction of Parliament. In Lymburn v. Mayland Lord Atkin said (at p. 36):

…Registered persons must enter into a personal bond, and may be required to enter into a surety bond each in the sum of $500, conditioned for payment if the registered person amongst other events, is (in the former bond) "charged with", (in the later bond) "convicted of", a criminal offence, or found to have committed an offence against the Act or the regulations made thereunder. It was contended on behalf of the Attorney-General for the Dominion that to impose a condition making the bond fall due upon conviction for a criminal offence was to encroach upon the sole right of the Dominion to legislate in respect of the criminal law. It indirectly imposed an additional punishment for a criminal offence. Their Lordships do not consider this objection well founded. If the legislation be otherwise intra vires, the imposition of such an ordinary condition in a bond taken to secure good conduct does not appear to invade in any degree the field of criminal law.

Subs. (3.1) indicates that in enacting the 1972 amendments, Parliament was conscious of the differences that could arise between prohibitory orders and licence suspensions. The subsection goes no further that to provide that in such case, the penalty provided under the *Criminal Code* for driving while under suspension shall not apply.

In *O'Grady v. Sparling* the question of repugnancy between *Criminal Code* provisions and provincial motor vehicle legislation was considered by the full Court. The problem was whether provincial legislation making it an offence to drive "without due care and attention" was repugnant to s. 221.1 (now s. 233.1) of the *Criminal Code.* It was determined that the federal enactment did not make a crime of inadvertent negligence and provincial legislation making any negligence in driving an offence was valid. Only the two dissenting judges considered that "by necessary implication", the *Criminal Code* said not only what kinds or degrees of negligence shall be punishable, but also what kinds or degrees shall not. In other words, the majority decided that Parliament did not implicitly permit conduct which did not come within the description of the *Criminal Code* offence. Therefore, the legislatures could validly prohibit such conduct under penalty as long as this was done for a proper provincial purpose. This was reaffirmed in *Mann v. The Queen.* I would also point out that in *The Queen v. Boisjoly*, this Court held that an oath that was simply not prohibited could not be considered as "permitted by law" within the meaning of s. 114 (now s. 122) of the *Criminal Code.*

In my view, it should be said in the present case that Parliament did not by the amendments to s. 238 of the *Criminal Code* purport to deal generally with the right to drive a motor vehicle after a conviction for certain offences. The only change effected was that a larger area of discretion was given to the convicting magistrate. Instead of being authorized only to make an order prohibiting driving for a definite length of time not exceeding the period stated, the magistrate was empowered to issue an order limited as to time and place. No authorization was given to make an order such as made in the present case, directing that the licence of the person convicted be not suspended. It seems clear to me that this order was made by an inferior court completely without jurisdiction and is to be ignored.

On my view of the enactment, I can see no reason for which it could be considered as going beyond parliament's competence. Apparently, the contention that Parliament thereby invaded provincial jurisdiction was advanced solely on the basis that s. 238 might operate to prevent the application of provincial legislation either of itself or by virtue of orders made thereunder.

It may be of some interest to observe that under the Australian constitution, a principle was developed to determine whether a field of legislation is to be considered as occupied by federal legislation so as to exclude or make inoperative State legislation. The rule was stated by Dixon J. in *Ex Parte McLean* (at p. 483), in the following statement that was subsequently approved by the Privy Council (*O'Sullivan v. Noarlunga Ltd.*, at p. 28):

…The inconsistency does not lie in the mere coexistence of two laws which are susceptible of simultaneous obedience. It depends upon the intention of the paramount Legislature to express by its enactment, completely, exhaustively, or exclusively, what shall be the law governing the particular conduct or matter to which its attention is directed. When a Federal statute discloses such an intention, it is inconsistent with it

> for the law of a State to govern the same conduct or matter.
>
> Of course, if we were to apply that rule, it would have to be said that Parliament did not purport to state exhaustively the law respecting motor driving licences, or the suspension or cancellation for driving offences. Therefore, the question whether this could validly be done by Parliament does not arise.
>
> For those reasons, I would answer the questions of law stated in the order of the Supreme Court of Ontario by stating that s. 21 of the *Highway Traffic Act,* R.S.O. 1970, c. 202 is valid and operative legislation, and that s. 238 of the *Criminal Code,* R.S.C. 1970, c. C-34 as amended is also valid. I would make no order as to costs as none were demanded.
>
> …

Like interjurisdictional immunity, the doctrine of federal paramountcy is not primarily concerned with whether legislation is valid. Rather, it examines whether legislation can *operate* in the presence of a competing law governing the same activity. Whether, in other words, two laws—one federal and provincial—can operate side by side, or whether the operation of the federal law makes the provincial law *inoperable* to the extent of the conflict.

Ross suggests that the concept of a conflict between federal and provincial legislation is narrow, leaving plenty of room for legislation to operate concurrently. The majority uses the concept of "repugnancy" as the guiding factor. Thus, only where the operation of a provincial law is repugnant to federal legislation, does the provincial law become inoperable to the extent of the repugnancy.

In *Multiple Access v McCutcheon*, an excerpt of which discusses the double aspect doctrine, above, Justice Dickson (as he then was) expands on the federal paramountcy doctrine and sets out an early iteration of the framework for applying the doctrine.

7.2 *Multiple Access Ltd. v. McCutcheon*, 1982 CanLII 55 (SCC), [1982] 2 SCR 161

> Having found ss. 100.4 and 100.5 of the Canada Corporations Act to be *intra vires* the Parliament of Canada and ss. 113 and 114 of the Ontario *Securities Act* to be *intra vires* the Legislature of Ontario there remains but to respond to the third and final question. Are sections 113 and 114 of the Ontario Act suspended and rendered inoperative in respect of corporations incorporated under the laws of Canada. This is the issue Mr. Justice Henry faced at trial:
>
> The next issue that arises before me is whether the insider trading provisions in Sections 113 and 114 of *The Securities Act* are suspended by the operation of the insider trading provisions in Sections 100.4 and 100.5 of the Canada Corporations Act, R.S.C. 1970, c. C-32.
>
> He said:
>
> > It is common ground that the corporate Plaintiff is a federally incorporated company, that it was competent to Parliament and the Legislature to enact respectively these provisions so that each is *intra vires.*
> >
> > There was no dispute between Counsel that the two sets of provisions are for all material purposes identical, with the exception that if proceedings are taken under the federal provisions, the agency that will have carriage of the proceedings is the director of the Corporations Branch of the federal Department of Consumer and Corporate Affairs, whereas if proceedings are undertaken under the provincial *Securities Act,* the Ontario Securities Commission has carriage of the proceedings. It was also not a matter of dispute that if both sets of provisions are in operation together, both would apply to the circumstances of this case.
> >
> > Although the appellant argues, weakly, that there are minor differences in the legislation, Henry J. found an identity of purpose, conduct and remedy. Does mere duplication constitute "the conflict" required by the paramountcy doctrine in order to render a provincial statutory provision inoperative? This is the issue upon which Mr. Justice Henry at trial and Mr. Justice Morden in the Divisional Court parted ways. The same difference of opinion is reflected by the commentators.
>
> Mr. Justice Henry chose a more narrow and if I may say so, more modern, test of conflict with the concomitant result of leaving to the provinces ample legislative room. He adopted the test propounded by Mr. Justice Martland in *Smith v. The Queen, supra,* at p. 800:
>
> > It may happen that some acts might be punishable under both provisions and in this sense that these provisions overlap. However, even in such cases, there is no conflict in the sense that compliance with one law involves breach of the other. It would appear, therefore that they can operate concurrently.
>
> Parenthetically, and interestingly, the test adopted by Martland J. in *Smith v. The Queen* was the very test propounded by the Attorney General of Canada in *Smith.* If one refers to the factum of the federal Attorney General in *Smith,* prepared by W.R. Jackett and S. Samuels, one will find the following passage (at p. 8):
>
> > It might happen that the same facts might be punishable under both provisions. In this sense they overlap. However there is no conflict in the sense that compliance with one law involves breach of the other. That being so, it is submitted that they can live together and are not only both valid but are operative concurrently.
>
> The express contradiction test was reaffirmed in *Construction Montcalm Inc. v. Minimum Wage Commission, supra,* by Mr. Justice Beetz (at p. 780):
>
> > *Montcalm's* third submission cannot succeed unless the impugned provisions are in conflict with the *Fair Wages and Hours of Labour Act: Ross v. Registrar of Motor Vehicles,* 1973 CanLII 176 (SCC), [1975] 1 SCR 5. Here again, it was incumbent upon *Montcalm* to establish that it could not comply with provincial law without committing a breach of the federal Act. *Montcalm* did not even attempt any such demonstration. It argues in its factum that the federal Act provides not only for wages but also for overtime, unfair labour practices, etc., and that, in several instances, such provisions 'may' differ from those of provincial law. This is not good enough. *Montcalm* had to prove that federal and provincial law were in actual conflict for the purposes of this case. It did not so prove.
> >
> > See also *Robinson v. Countrywide Factors Ltd.,* 1977 CanLII 175 (SCC), [1978] 1 SCR 753.
>
> On the basis of the "overwhelming weight of recent authority" Mr. Justice Henry found that the two sets of statutory provisions could "live together and operate concurrently". Any "diseconomies" resulting from the proliferation of laws and administration were inherent in the federal system. Double liability would be avoided by "cooperation between administrators and the ordinary supervision of the courts over duplication of proceedings before them".
>
> Mr. Justice Henry and Professor Hogg are of one mind. Professor Hogg writes:
>
> > There is no reason why duplication should be a case of inconsistency once the negative implication or covering the field test is rejected. On the contrary, duplication is "the ultimate in harmony". The argument that it is untidy, wasteful and confusing to have two laws when only one is needed reflects a value which in a federal system often has to be subordinated to that of provincial autonomy. Nor does the latter value

> disappear when provincial law merely duplicates federal law, because the suspension of a provincial law may create a gap in a provincial scheme of regulation which would have to be filled by federal law—a situation as productive of untidiness, waste and confusion as duplication.
>
> (Hogg, Constitutional Law of Canada, supra, at p. 110)

He continued (at p. 111):

> In any event, arguments against duplication of federal and provincial laws can have little weight once overlapping is admitted. After all, overlapping legislation is duplicative to the extent of the overlap; and yet it is clear that provincial law is not inoperative to the extent of its overlap with federal law. It must be remembered too that the differences between the federal and provincial laws in *O'Grady* and *Stephens* were small, and in *Smith* and *Mann* they were virtually non-existent. If paramountcy does not apply when 999 cases out of 1,000 are covered by both laws, why should paramountcy apply when all 1,000 are covered by both laws? It is submitted that duplication is not a test of inconsistency. The one case which decides that it is should be treated as overruled by the recent decisions, especially *Smith* and *Mann.*
>
> Morden J. adopts the older and more prevalent view of the commentators that "The authorities establish one of the implications of Dominion paramountcy to be that provincial duplicative legislation is suspended and inoperative. Simple duplication by a province is not permitted" (Lederman, "The Concurrent Operation of Federal and Provincial Laws in Canada, *supra,* at p. 195; see also Abel, *Laskiris Canadian Constitutional Law* (1975), at p. 117: "If member and federal measures are substantial duplicates, every situation covered by the one is likewise covered by the other and there is no provincial room left, given full operation of the federal law"). Morden J. finds that "Resort to one statute, from a practical point of view, precludes the other from having any application."

The conflict between the reasons of Mr. Justice Henry and the reasons of Mr. Justice Morden lies in large measures upon the opinion of the latter that the paramountcy doctrine became applicable because a plaintiff could resort to one set of provisions only and, having done so, there would be no scope for the other to have operational effect. That is unquestionably an important consideration but it is not, in my view, conclusive. The provincial legislation merely duplicates the federal; it does not contradict it. The fact that a plaintiff may have a choice of remedies does not mean that the provisions of both levels of government cannot "live together" and operate concurrently. In the *Smith* case the provincial and federal provisions were virtually identical in substance, and the law authorities could prosecute the proscribed conduct as a provincial offence or as a federal offence under the *Criminal Code.*

I agree with the submissions of counsel for Saskatchewan that it would be ironic if a province, by adding elements of differentiation in its legislation (which do not conflict with federal provisions governing the same conduct but which, in effect, go further than the federal) could create valid operative provisions whereas in regard to the same legislative field, it could not merely duplicate the federal provisions; the cases where overlapping provincial legislation has not been rendered inoperative cannot be validly distinguished on the basis that in each of them there were elements of difference between the provincial and the federal legislation; there is no true repugnancy in the case of merely duplicative provisions since it does not matter which statute is applied; the legislative purpose of Parliament will be fulfilled regardless of which statute is invoked by a remedy-seeker; application of the provincial law does not displace the legislative purpose of Parliament.

The respondents strenuously support Mr. Justice Morden's reasons in this Court. Counsel for the respondent McCutcheon argues "Where two actions are brought under the federal and provincial legislation against the insider, either concurrently or *seriatim,* the Court will not permit both to proceed to judgment […] Both pieces of legislation cannot operate concurrently in that resort to one precludes resort to the other. The legislation under which one action is commenced operates to prevent the application of the other. In such case, the two statutes meet and are in conflict". I am not of that opinion.

With Mr. Justice Henry I would say that duplication is, to borrow Professor Lederman's phrase, "the ultimate in harmony". The resulting "untidiness" or "diseconomy" of duplication is the price we pay for a federal system in which economy "often has to be subordinated to […] provincial autonomy" (Hogg, at p. 110). Mere duplication without actual conflict or contradiction is not sufficient to invoke the doctrine of paramountcy and render otherwise valid provincial legislation inoperative.

The following passage from Professor Lederman's article "The Concurrent Operation of Federal and Provincial Laws in Canada", *supra,* at p. 199 (fn. 39) is apposite:

> As Dr. J.A. Corry has pointed out, our country is increasingly moving away from the older classical federalism of 'water-tight compartments' with provincial legislatures and federal parliament carefully keeping clear of one another. We seem to be moving towards a co-operative federalism. "The co-ordinate governments no longer work in splendid isolation from one another but are increasingly engaged in cooperative ventures in which each relies heavily on the other." See J.A. Corry, "Constitutional Trends and Federalism", in the volume of essays *Evolving Canadian Federalism* (Durham, N.C., U.S.A., 1958), p. 96. The multiplication of concurrent fields is one of the facets of this trend.

In principle, there would seem to be no good reasons to speak of paramountcy and preclusion except where there is actual conflict in operation as where one enactment says "yes" and the other says "no"; "the same citizens are being told to do inconsistent things"; compliance with one is defiance of the other. The courts are well able to prevent double recovery in the theoretical and unlikely event of plaintiffs trying to obtain relief under both sets of provisions. The fact that a court must authorize proceedings under the Ontario Act provides a safeguard against double recovery if the company has already proceeded under the federal Act. In addition the Court at the final stage of finding and quantifying liability could prevent double recovery if in fact compensation and an accounting had already been made by a defendant. No court would permit double recovery.

I find that ss. 113 and 114 of *The Securities Act* of Ontario are not suspended or rendered inoperative in respect of corporations incorporated under the laws of Canada by ss. 100.4 and 100.5 of the Canada Corporations Act.

…

As in *Ross*, *Multiple Access v McCutcheon* seems to suggest that unless two statutes actually "conflict in operation", the provincial law will remain operable in the face of a potential conflict. The key questions, then, are:

- Does one law say 'yes' and the other says 'no'?
- Are the same citizens … being told to do inconsistent things?
- Is compliance with one defiance of the other?

In sum, per *Multiple Access v McCutcheon*, the doctrine federal paramountcy has a limited application; duplicative laws, rather than conflicting, are "the ultimate in harmony".

In reading *Bank of Montreal v. Hall*, 1990 CanLII 157 (SCC), [1990] 1 SCR 121, think about what Justice La Forest adds to the analysis in determining whether the federal paramountcy doctrine should apply.

7.3 *Bank of Montreal v. Hall*, 1990 CanLII 157 (SCC), [1990] 1 SCR 121

The judgment of the Court was delivered by

LA FOREST J. -- The principal issue in this appeal is whether a security interest created pursuant to ss. 178 and 179 of the Bank Act may constitutionally be subjected to the procedures for enforcement of security interests prescribed by the Saskatchewan Limitation of Civil Rights Act. It also raises the constitutional validity of the relevant provisions of both the federal and provincial Acts.

Facts

The respondent, Arthur Hall, a farmer in Saskatchewan, contracted loans from the appellant Bank of Montreal in the early 1980s. As collateral, Mr. Hall granted two mortgages on his real property in favour of the Bank. The loans were also secured by a security interest in a piece of farm machinery, a 1980 Versatile swather, pursuant to s. 88 of the Bank Act, R.S.C. 1970, c. B-1, subsequently s. 178 of the Banks and Banking Law Revision Act, 1980, S.C. 1980-81-82-83, c. 40, now s. 178 of the Bank Act, R.S.C., 1985, c. B-1.

Mr. Hall defaulted on his loan, and in August 1984, the Bank, pursuant to the provisions of the Bank Act, seized the swather and commenced an action to enforce its real property mortgage loan agreement. By way of defence to the foreclosure proceedings, Mr. Hall alleged that the Bank had not served the Notice of Intention to Seize required under the provisions of The Limitation of Civil Rights Act, R.S.S. 1978, c. L-16, and accordingly sought to have the foreclosure proceedings dismissed. He also brought action for cancellation of the security agreement and to recover all monies paid thereon as provided by this Act. The Bank of Montreal countered by alleging that it was not subject to the Act in respect of proceedings taken under the Bank Act.

In November 1985, the parties, by Notice of Motion filed before the Court of Queen's Bench for Saskatchewan, applied for a determination of the question whether the plaintiff, as a chartered bank, was required to comply with The Limitation of Civil Rights Act in enforcing a security interest under the Bank Act.

…

The Question of Paramountcy

Do sections 178 and 179 of the *Bank Act* conflict with ss. 19 to 36 of *The* Limitation of Civil Rights Act so as to render inoperative ss. 19 to 36 in respect of security taken pursuant to s. 178 by a chartered bank?

The decision of this Court in *Multiple Access Ltd. v. McCutcheon*, *supra*, has delimited the circumstances that will justify application of the doctrine of paramountcy, whereby otherwise validly enacted provincial legislation will be held to be inoperative to the extent that it conflicts with federal legislation. In a widely quoted passage, Dickson J., as he then was, espoused the view that the doctrine of paramountcy would only need to be invoked in instances where it is impossible to comply with both legislative enactments. He stated, at p. 191:

> In principle, there would seem to be no good reasons to speak of paramountcy and preclusion except where there is actual conflict in operation as where one enactment says "yes" and the other says "no"; "the same citizens are being told to do inconsistent things"; compliance with one is defiance of the other.

Multiple Access Ltd. v. McCutcheon was a case involving duplicative federal and provincial legislation. This Court rejected the view that such enactments could not operate concurrently simply because resort to the one would preclude resort to the other. On the contrary, Dickson J., borrowing the phrase coined by Professor Lederman in his seminal article "The Concurrent Operation of Federal and Provincial Laws in Canada" (1963), 9 *McGill L.J.* 185, expressed the view that in a federal system such legislation was expressive of the "ultimate in harmony". In the following excerpt Dickson J. provides a cogent and succinct rationale for this view, at pp. 189-90:

> ... the cases where overlapping provincial legislation has not been rendered inoperative cannot be validly distinguished on the basis that in each of them there were elements of difference between the provincial and the federal legislation; there is no true repugnancy in the case of merely duplicative provisions since it does not matter which statute is applied; the legislative purpose of Parliament will be fulfilled regardless of which statute is invoked by a remedy-seeker; application of the provincial law does not displace the legislative purpose of Parliament. [Emphasis added.]

On the basis of these principles, the question before me is thus reducible to asking whether there is an "actual conflict in operation" between the *Bank Act* and *The* Limitation of Civil Rights Act in the sense that the legislative purpose of Parliament stands to be displaced in the event that the appellant bank is required to defer to the provincial legislation in order to realize on its security. This calls for an examination of the provincial legislation.

As is apparent from s. 20, the purpose of ss. 21 to 35 of *The* Limitation of Civil Rights Act is to prescribe, in a comprehensive manner, the procedure which a secured creditor must follow in Saskatchewan in order to take possession of his security. Failure to follow the prescribed procedure results in the imposition of a sweeping penalty provision; s. 27 provides, in these circumstances, for the determination of the security agreement and the release of the debtor from all liability. I shall assume for the purposes of this appeal that the Court of Appeal correctly interpreted the provision as applying to federally created securities.

The most salient feature of the procedure set out in ss. 21 to 35 of the Act, as I understand it, is that it is designed to ensure that a judge determine the terms and conditions under which a creditor may repossess and seize articles. Section 33 makes this clear. It is a judge who is to decide if, when, and under what circumstances the pledged article is to be returned to the secured party.

The contrast with the comprehensive regime provided for in ss. 178 and 179 of the *Bank Act* could not be more striking. The essence of that regime, it hardly needs repeating, is to assign to the bank, on the taking out of the security, right and title to the goods in question, and to confer, on default of the debtor, an immediate right to seize and sell those goods, subject only to the conditions and requirements set out in the *Bank Act*.

On a comparison of the two enactments, can it be said that there is an "actual conflict in operation" between them, giving that phrase the meaning above described? I am led inescapably to the conclusion that there is. The *Bank Act* provides that a lender may, on the default of his borrower, seize his security, whereas *The* Limitation of Civil Rights Act forbids a creditor from immediately repossessing the secured article on pain of determination of the security interest. There could be no clearer instance of a case where compliance with the federal statute necessarily entails defiance of its provincial counterpart. The necessary corollary to this conclusion is that to require the bank to defer to the provincial legislation is to displace the legislative intent of Parliament. As the dissenting judge, Wakeling J., put it in the Court of Appeal, at pp. 34-35:

> The provincial legislation obviously intends that the unqualified right of seizure granted to the bank is to be restricted. It does so by saying a bank may exercise the right of seizure given by s. 178(3) but only by leave of a judge, who will apply criteria formulated by the Province as to when and under what circumstances seizure can take place.
>
> I do not think it is open to a provincial legislature to qualify in this way a right given and defined in a federal statute; see *Attorney-General for Alberta and Winstanley v. Atlas Lumber Co.*, 1940 CanLII 33 (SCC), [1941] SCR 87, *per* Duff C.J., at p. 95.

I am not, with respect, dissuaded from this conclusion by the reasoning of the majority in the Court of Appeal to the effect that requiring a bank to defer to the provisions of *The* Limitation of Civil Rights Act would, in any given instance, have, in all likelihood, the sole effect of delaying the bank's ability to take possession of its security. As Sherstobitoff J.A. put it, at p. 40:

> The **Limitations** [*sic*] **of Civil Rights Act** simply requires that a creditor give notice to a debtor before seizure of property so as to enable the debtor to make application to the court. The application and resulting order may have the effect of delaying the taking of possession by the creditor. It does not affect the amount of the indebtedness or liability for payment of same except in cases of noncompliance with the terms of the **Act** so as to bring s. 27 into play. Put simply, it requires the Bank to follow certain procedures before realizing upon its security, and nothing more.

The reasoning of the majority on this point cannot be determinative of the question of paramountcy. Such a view, with respect, rests on a misinterpretation of what was said in *Multiple Access Ltd. v. McCutcheon*. For, as we have seen, dual compliance will be impossible when application of the provincial statute can fairly be said to frustrate Parliament's legislative purpose. In this instance, as I have already noted, Parliament's legislative purpose in defining the unique security interest created by ss. 178 and 179 of the *Bank Act* was manifestly that of creating a security interest susceptible of uniform enforcement by the banks nationwide, that is to say a lending regime *sui generis* in which, to borrow the phrase of Muldoon J. in *Canadian Imperial Bank of Commerce v. R.*, *supra*, at p. 159, the "bank obtains and may assert its right to the goods and their proceeds against the world, except as only Parliament itself may reduce or modify those rights" (emphasis added). This, of course, is merely another way of saying that Parliament, in its wisdom, wished to guard against creating a lending regime whereby the rights of the banks would be made to depend solely on provincial legislation governing the realization and enforcement of security interests.

I can only conclude that it was Parliament's manifest legislative purpose that the sole realization scheme applicable to the s. 178 security interest be that contained in the *Bank Act* itself. Again, as I pointed out earlier, I am firmly of the view that the security interest and realization procedure must, in essence, be viewed as a single whole in that both components of the legislation are fully integral to Parliament's legislative purpose in creating this form of financing. In other words, a s. 178 security interest would no longer be cognizable as such the moment provincial legislation might operate to superadd conditions governing realization over and above those found within the confines of the *Bank Act*. To allow this would be to set at naught the very purpose behind the creation of the s. 178 security interest.

Accordingly, the determination that there is no repugnancy cannot be made to rest on the sole consideration that, at the end of the day, the bank might very well be able to realize on its security if it defers to the provisions of the provincial legislation. A showing that conflict can be avoided if a provincial Act is followed to the exclusion of a federal Act can hardly be determinative of the question whether the provincial and federal acts are in conflict, and, hence, repugnant. That conclusion, in my view, would simply beg the question. The focus of the inquiry, rather, must be on the broader question whether operation of the provincial Act is compatible with the federal legislative purpose. Absent this compatibility, dual compliance is impossible. Such is the case here. The two statutes differ to such a degree in the approach taken to the problem of realization that the provincial cannot substitute for the federal.

I have dealt with this case on the basis of paramountcy to meet the arguments put forward by counsel. But the issue can, I think, be answered more directly. At the end of the day, I agree with counsel for the Attorney General of Canada that this is simply a case where Parliament, under its power to regulate banking, has enacted a complete code that at once defines and provides for the realization of a security interest. There is no room left for the operation of the provincial legislation and that legislation should, accordingly, be construed as inapplicable to the extent that it trenches on valid federal banking legislation.

In response to the third question, then, I would hold that ss. 19 to 36 of *The* Limitation of Civil Rights Act, if interpreted to include a s. 178 security, conflict with ss. 178 and 179 of the *Bank Act* so as to render ss. 19 to 36 inoperative in respect of the security taken pursuant to s. 178 by a chartered bank. To put it another way, ss. 19 to 36 of *The* Limitation of Civil Rights Act are inapplicable to security taken pursuant to ss. 178 and 179 of the *Bank Act*.

Disposition

I would allow the appeal and set aside the judgment of the Court of Appeal, and reply to the legal question put to the Chambers Judge in the same manner as he did, with costs throughout.

…

Unlike the earlier paramountcy cases, in *Bank of Montreal v Hall*, Justice La Forest makes explicit reference to Parliament's purpose in adopting the conflicting legislation. Following from this, it looks like there are two different questions at play in the application of the federal paramountcy doctrine. In *Rothmans, Benson & Hedges Inc. v. Saskatchewan*, 2005 SCC 13, the Court sets out both questions, laying out a clearer framework for applying the doctrine.

7.4 *Rothmans, Benson & Hedges Inc. v. Saskatchewan*, 2005 SCC 13

The judgment of the Court was delivered by

1 MAJOR J. — The question on this appeal is whether Saskatchewan legislation, and in particular s. 6 of *The* Tobacco Control Act, S.S. 2001, c. T-14.1, is sufficiently inconsistent with s. 30 of the federal Tobacco Act, S.C. 1997, c. 13, so as to be rendered inoperative pursuant to the doctrine of federal legislative paramountcy. At the end of the hearing, the Court concluded that that question should be answered in the negative and allowed the appeal, with reasons to follow.

I. Facts

2 In 1997, Parliament enacted the Tobacco Act. Section 4 of the statute speaks to its purpose as follows:

> **4.** The purpose of this Act is to provide a legislative response to a national public health problem of substantial and pressing concern and, in particular,
>
> (*a*) to protect the health of Canadians in light of conclusive evidence implicating tobacco use in the incidence of numerous debilitating and fatal diseases;
>
> (*b*) to protect young persons and others from inducements to use tobacco products and the consequent dependence on them;
>
> (*c*) to protect the health of young persons by restricting access to tobacco products; and
>
> (*d*) to enhance public awareness of the health hazards of using tobacco products.

3 Section 19 of the Tobacco Act prohibits the promotion of tobacco products and tobacco product-related brand elements, except as authorized elsewhere in the Tobacco Act or its regulations. Section 18 of the Tobacco Act defines "promotion" as:

> ... a representation about a product or service by any means, whether directly or indirectly, including any communication of information about a product or service and its price and distribution, that is likely to influence and shape attitudes, beliefs and behaviours about the product or service.

4 The provisions that follow s. 19 both prohibit specific types of tobacco product promotion, and permit other types of promotion that s. 19 would otherwise prohibit. Among those provisions, s. 30(1) provides that, "[s]ubject to the regulations, any person may display, at retail, a tobacco product or an accessory that displays a tobacco product-related brand element." Section 30(2) further provides that retailers may post signs indicating the availability and price of tobacco products.

5 On March 11, 2002, *The Tobacco Control Act* came into force in Saskatchewan. Section 6 of that Act bans all advertising, display and promotion of tobacco or tobacco-related products in any premises in which persons under 18 years of age are permitted.

6 The respondent sued the appellant in the Saskatchewan Court of Queen's Bench, seeking two forms of relief: a declaration that s. 6 of *The Tobacco Control Act* is inoperative in light of s. 30 of the Tobacco Act, and a declaration that ss. 6 and 7 of *The Tobacco Control Act* are of no force and effect in light of s. 2(*b*) of the Canadian Charter of Rights and Freedoms. The respondent applied pursuant to Rule 188 of *The Queen's Bench Rules* of Saskatchewan for a summary determination by the court as to whether s. 6 of *The Tobacco Control Act* is inoperative in light of s. 30 of the Tobacco Act by virtue of the doctrine of federal legislative paramountcy.

…

III. Analysis

11 The doctrine of federal legislative paramountcy dictates that where there is an inconsistency between validly enacted but overlapping provincial and federal legislation, the provincial legislation is inoperative to the extent of the inconsistency. *Multiple Access Ltd. v. McCutcheon*, 1982 CanLII 55 (SCC), [1982] 2 SCR 161, is often cited for the proposition that there is an inconsistency for the purposes of the doctrine if it is impossible to comply simultaneously with both provincial and federal enactments. Dickson J. (as he then was) wrote, at p. 191:

> In principle, there would seem to be no good reasons to speak of paramountcy and preclusion except where there is actual conflict in operation as where one enactment says "yes" and the other says "no"; "the same citizens are being told to do inconsistent things"; compliance with one is defiance of the other.

See also *Rio Hotel Ltd. v. New Brunswick (Liquor Licensing Board)*, 1987 CanLII 72 (SCC), [1987] 2 SCR 59, at p. 65; *M & D Farm Ltd. v. Manitoba Agricultural Credit Corp.*, 1999 CanLII 648 (SCC), [1999] 2 SCR 961, at paras. 17 and 41-42; and *114957 Canada Ltée (Spraytech, Société d'arrosage) v. Hudson (Town)*, [2001] 2 SCR 241, 2001 SCC 40, at para. 35.

12 However, subsequent cases indicate that impossibility of dual compliance is not the sole mark of inconsistency. Provincial legislation that displaces or frustrates Parliament's legislative purpose is also inconsistent for the purposes of the doctrine. In *Bank of Montreal v. Hall*, 1990 CanLII 157 (SCC), [1990] 1 SCR 121, at p. 155, La Forest J. wrote:

> A showing that conflict can be avoided if a provincial Act is followed to the exclusion of a federal Act can hardly be determinative of the question whether the provincial and federal acts are in conflict, and, hence, repugnant. That conclusion, in my view, would simply beg the question. The focus of the inquiry, rather, must be on the broader question whether operation of the provincial Act is compatible with the federal legislative purpose.

See also *Spraytech*, at para. 35, and *Law Society of British Columbia v. Mangat*, [2001] 3 SCR 113, 2001 SCC 67, at paras. 69-70.

13 This concern about frustration of Parliament's legislative purpose may find its roots in *McCutcheon*, in which Dickson J. stated, at p. 190:

> ... [T]here is no true repugnancy in the case of merely duplicative provisions since it does not matter which statute is applied; the legislative purpose of Parliament will be fulfilled regardless of which statute is invoked by a remedy-seeker; application of the provincial law does not displace the legislative purpose of Parliament. [Emphasis added.]

14 In my view, the overarching principle to be derived from *McCutcheon* and later cases is that a provincial enactment must not frustrate the purpose of a federal enactment, whether by making it impossible to comply with the latter or by some other means. In this way, impossibility of dual compliance is sufficient but not the only test for inconsistency.

15 It follows that in determining whether s. 6 of *The Tobacco Control Act* is sufficiently inconsistent with s. 30 of the Tobacco Act so as to be rendered inoperative through the paramountcy doctrine, two questions arise. First, can a person simultaneously comply with s. 6 of *The Tobacco Control Act* and s. 30 of the Tobacco Act? Second, does s. 6 of *The Tobacco Control Act* frustrate Parliament's purpose in enacting s. 30 of the Tobacco Act?

16 Before answering those questions, it is necessary to examine the character of s. 30 of the Tobacco Act.

17 Read in the context of the Tobacco Act as a whole, it is clear that the purpose and effect of s. 30 is to define with greater precision the prohibition on the promotion of tobacco products contained in s. 19. Specifically, it serves to exclude from the wide net of s. 19 promotion by way of retail display. In this way, it is like ss. 22(2), 26(1) and 28(1) of the Tobacco Act, which also exclude from the s. 19 prohibition certain types of tobacco product promotion that it might otherwise capture. This demarcation of the s. 19 prohibition represents a measured approach to protecting "young persons and others from inducements to use tobacco products", one of the purposes of the Tobacco Act set out in s. 4.

18 However, in demarcating the scope of the s. 19 prohibition through s. 30, Parliament did not grant, and could not have granted, retailers a positive entitlement to display tobacco products. That is so for two reasons.

19 First, like the *Tobacco Products Control Act*, S.C. 1988, c. 20, before it, the Tobacco Act is directed at a public health evil and contains prohibitions accompanied by penal sanctions. Accordingly, and as the Saskatchewan courts correctly concluded in light of this Court's decision in *RJR-MacDonald Inc. v. Canada (Attorney General)*, 1995 CanLII 64 (SCC), [1995] 3 SCR 199, it falls within the scope of Parliament's criminal law power contained in s. 91(27) of the Constitution Act, 1867. It might be noted that no argument was made regarding the possibility that the legislation was adopted under the "peace, order, and good government" clause of s. 91, nor could any have been made, given the concessions on the basis of which this chambers motion proceeded. As the criminal law power is essentially prohibitory in character, provisions enacted pursuant to it, such as s. 30 of the Tobacco Act, do not ordinarily create freestanding rights that limit the ability of the provinces to legislate in the area more strictly than Parliament. This limited reach of s. 91(27) is well understood: see, for example, *O'Grady v. Sparling*, 1960 CanLII 70 (SCC), [1960] SCR 804; *Ross v. Registrar of Motor Vehicles*, 1973 CanLII 176 (SCC), [1975] 1 SCR 5; and *Spraytech*.

20 Second, it is difficult to imagine how granting retailers a freestanding right to display tobacco products would assist Parliament in providing "a legislative response to a national public health problem of substantial and pressing concern" (Tobacco Act, s. 4). To put it slightly differently, an interpretation of s. 30 as granting retailers an entitlement to display tobacco products is unsupported by, and perhaps even contrary to, the stated purposes of the Tobacco Act.

> 21 I do not accept the respondent's argument that Parliament, in enacting s. 30, intended to make the retail display of tobacco products subject only to its own regulations. In my view, to impute to Parliament such an intention to "occup[y] the field" in the absence of very clear statutory language to that effect would be to stray from the path of judicial restraint in questions of paramountcy that this Court has taken since at least *O'Grady* (p. 820).
>
> A. Impossibility of Dual Compliance
>
> 22 It is plain that dual compliance is possible in this case. A retailer can easily comply with both s. 30 of the Tobacco Act and s. 6 of *The Tobacco Control Act* in one of two ways: by admitting no one under 18 years of age on to the premises or by not displaying tobacco or tobacco-related products.
>
> 23 Similarly, a judge called upon to apply one of the statutes does not face any difficulty in doing so occasioned by the existence of the other. The judge, like this Court, can proceed on the understanding that *The Tobacco Control Act* simply prohibits what Parliament has opted not to prohibit in its own legislation and regulations.
>
> 24 For an impossibility of dual compliance to exist, s. 30 of the Tobacco Act would have to require retailers to do what s. 6 of *The Tobacco Control Act* prohibits — i.e., to display tobacco or tobacco-related products to young persons.
>
> B. Frustration of Legislative Purpose
>
> 25 Section 6 of *The Tobacco Control Act* does not frustrate the legislative purpose underlying s. 30 of the Tobacco Act. Both the general purpose of the Tobacco Act (to address a national public health problem) and the specific purpose of s. 30 (to circumscribe the Tobacco Act's general prohibition on promotion of tobacco products set out in s. 19) remain fulfilled. Indeed, s. 6 of *The Tobacco Control Act* appears to further at least two of the stated purposes of the Tobacco Act, namely, "to protect young persons and others from inducements to use tobacco products" (s. 4(*b*)) and "to protect the health of young persons by restricting access to tobacco products" (s. 4(*c*)).
>
> 26 The conclusion that s. 6 of *The Tobacco Control Act* does not frustrate the purpose of s. 30 of the Tobacco Act is consistent with the position of the Attorney General of Canada, who intervened in this appeal to submit that the Tobacco Act and *The Tobacco Control Act* were enacted for the same health-related purposes and that there is no inconsistency between the two provisions at issue. While the submissions of the federal government are obviously not determinative of the legal question of inconsistency, there is precedent from this Court for bearing in mind the other level of government's position in resolving federalism issues: see *Kitkatla Band v. British Columbia (Minister of Small Business, Tourism and Culture)*, [2002] 2 SCR 146, 2002 SCC 31, at paras. 72-73.
>
> IV. Conclusion
>
> 27 There is no inconsistency between s. 6 of *The Tobacco Control Act* and s. 30 of the Tobacco Act that would render the former inoperative pursuant to the doctrine of federal legislative paramountcy. The appeal is allowed with costs to the appellant throughout.
>
> 28 The constitutional question is answered as follows:
>
> Is s. 6 of *The* Tobacco Control Act, S.S. 2001, c. T-14.1, constitutionally inoperative under the doctrine of federal legislative paramountcy, having regard to s. 30 of the Tobacco Act, S.C. 1997, c. 13?
>
> No.
>
> Appeal allowed with costs.

Rothmans, Benson & Hedges Inc. v. Saskatchewan leaves us with two questions to determine whether federal paramountcy applies so that a provincial law is inoperable.

- First, is there an impossibility of dual compliance?
- Second, does the operation of the provincial law frustrate Parliament's purpose in adopting the legislation?

If the answer to either of the questions is yes, the provincial law ceases to operate to the extent of the conflict. Remember, where that is the case, the law is merely *inoperable* to the extent of the conflict, and not invalid.

7.5 *Alberta (Attorney General) v. Moloney*, 2015 SCC 51

One of the more recent developments at the Supreme Court of Canada with respect to federal paramountcy deals with a conflict between the federal *Bankruptcy and Insolvency Act* and Alberta's *Traffic Safety Act*. Moloney was driving uninsured in Alberta and injured someone in a car accident. The Province of Alberta compensated the injured person and then sought to recover that amount from Moloney. He made an assignment into bankruptcy and was ultimately discharged. According to the federal *Bankruptcy and Insolvency Act,* upon discharge from bankruptcy, Moloney was released from all debts that were claims provable in bankruptcy. However, the provincial *Traffic Safety Act*, which governs driving, permits the Province of Alberta to suspend licenses and permits until such compensated amounts are paid. Alberta suspended Moloney's license and vehicle permits. Moloney argued that the provincial *Act* frustrated the federal purpose of bankruptcy. Alberta argued that the provincial *Act* was regulatory in nature and did not purport to enforce a discharged debt.

In reading the following excerpt, consider whether and how Alberta (Attorney General) v. Moloney, 2015 SCC 51, changes the federal paramountcy doctrine. Justice Gascon authored the majority judgment.

> [2] The alleged conflict in this case concerns, on the one hand, the federal Bankruptcy and Insolvency Act, R.S.C. 1985, c. B-3 ("BIA"), and on the other hand, Alberta's Traffic Safety Act, R.S.A. 2000, c. T-6 ("TSA"). It stems from a car accident caused by the respondent while he was uninsured, contrary to s. 54 of the TSA. The province of Alberta compensated the individual injured in the accident and sought to recover the amount of the compensation from the respondent. The latter, however, made an assignment in bankruptcy and was eventually discharged. The *BIA* governs bankruptcy and provides that, upon discharge, the respondent is released from all debts that are claims provable in bankruptcy. The *TSA* governs the activity of driving, including vehicle permits and driver's licences, and allows the province to suspend the respondent's licence and permits until he pays the amount of the compensation.
>
> [3] As a result of his bankruptcy and subsequent discharge, the respondent did not pay the amount of the compensation in full; because of this failure to pay, Alberta suspended his vehicle permits and driver's licence. The respondent contested this suspension, arguing that the TSA conflicted with the BIA, in that it frustrated the purposes of bankruptcy. The province replied that there was no conflict since the TSA was regulatory in nature and did not purport to enforce a discharged debt. The Court of Queen's Bench and the Court of Appeal found that there was a conflict between the federal and provincial laws. Relying on the doctrine of federal paramountcy, they declared the impugned provision of the TSA to be inoperative to the extent of the conflict. I agree with the outcome reached by the lower courts, and I would dismiss the appeal.
>
> II. Facts

[4] The car accident caused by the respondent occurred in 1989. In 1996, the individual injured in the accident obtained judgment against the respondent in the amount of $194,875. The Administrator appointed under the Motor Vehicle Accident Claims Act, R.S.A. 2000, c. M-22 ("MVACA"), indemnified the injured party for the amount of the judgment debt and was assigned the debt in accordance with the MVACA. Initially, the respondent made arrangements with the Administrator to pay the debt in instalments. Some years later, however, in January 2008, he made an assignment in bankruptcy. He listed the Administrator's claim in his Statement of Affairs. It is not disputed that the judgment debt assigned to the Administrator was a claim provable in bankruptcy. It was, by far, the respondent's most substantial debt and, in fact, the reason for his financial difficulties. At the time of the assignment, the outstanding amount due to the Administrator stood at $195,823.

[5] In June 2011, the respondent obtained an absolute discharge, which no one opposed. In October of the same year, he received a letter from the Director, Driver Fitness and Monitoring, notifying him that, by application of s. 102(1) of the TSA, his operator's licence and vehicle registration privileges would be suspended until payment of the outstanding amount of the judgment debt. Later, in November, his lawyer received another letter, this time from Motor Vehicle Accident Recoveries, advising the respondent that he "remains indebted for the judgment debt obtained against him . . . 'until the judgment is satisfied or discharged, otherwise than by a discharge in bankruptcy'" (A.R., at p. 49). The letter proposed that new payment arrangements be made, failing which the suspension of his driving privileges would continue.

[6] Given this situation, in March 2012, the respondent sought an order from the Court of Queen's Bench to stay the suspension of his driving privileges. He claimed that he had been discharged in bankruptcy and that s. 178 of the BIA precluded the Administrator from enforcing the judgment debt.

…

[12] The Chief Justice formulated the following constitutional question:

> Is s. 102(2) of the Alberta Traffic Safety Act, R.S.A. 2000, c. T-6, constitutionally inoperative by reason of the doctrine of federal paramountcy?

…

[14] Each level of government — Parliament, on the one hand, and the provincial legislatures, on the other — has exclusive authority to enact legislation with respect to certain subject matters. Sections 91 and 92 of the Constitution Act, 1867 assign each power to the level of government best suited to exercise it: *Reference re Secession of Quebec*, 1998 CanLII 793 (SCC), [1998] 2 SCR 217 ("*Secession Reference*"), at para. 58. Broad powers were given to the provincial legislatures with respect to local matters, in recognition of regional diversity, while powers relating to matters of national importance were given to Parliament, to ensure unity: *Canadian Western Bank v. Alberta*, 2007 SCC 22, [2007] 2 SCR 3, at para. 22.

[15]Legislative powers are exclusive, and one government is not subordinate to the other: *Secession Reference*, at para. 58, citing *Re the Initiative and Referendum Act*, 1919 CanLII 426 (UK JCPC), [1919] A.C. 935 (P.C.), at p. 942. However, the legislative matrix is not as clearly defined as ss. 91 and 92 might suggest. It is often impossible for one level of government to legislate effectively within its jurisdiction without affecting matters that are within the other level's jurisdiction: *Western Bank*, at para. 29; H. Brun, G. Tremblay and E. Brouillet, *Droit constitutionnel* (6th ed. 2014), at p. 465. Furthermore, it is often impossible to make a statute fall squarely within a single head of power: *Multiple Access Ltd. v. McCutcheon*, 1982 CanLII 55 (SCC), [1982] 2 SCR 161, at pp. 180-81. This leads to overlap in the exercise of provincial and federal powers. The tendency has been to allow these overlaps to occur as long as each level of government properly pursues objectives that fall within its jurisdiction: *Reference re Securities Act*, 2011 SCC 66, [2011] 3 SCR 837, at para. 57; *Canada (Attorney General) v. PHS Community Services Society*, 2011 SCC 44, [2011] 3 SCR 134, at para. 62; *Western Bank*, at paras. 37 and 42. This tendency reflects the theory of co-operative federalism: *Western Bank*, at para. 24; *Husky Oil Operations Ltd. v. Minister of National Revenue*, 1995 CanLII 69 (SCC), [1995] 3 SCR 453, at para. 162.

[16] That said, there comes a point where legislative overlap jeopardizes the balance between unity and diversity. In certain circumstances, the powers of one level of government must be protected against intrusions, even incidental ones, by the other level: *Western Bank*, at para. 32. To protect against such intrusions, the Court has developed various constitutional doctrines. For the purposes of this appeal, I need only refer to one: the doctrine of federal paramountcy. This doctrine "recognizes that where laws of the federal and provincial levels come into conflict, there must be a rule to resolve the impasse": *Western Bank*, at para. 32. When there is a genuine "inconsistency" between federal and provincial legislation, that is, when "the operational effects of provincial legislation are incompatible with federal legislation", the federal law prevails: *Marine Services International Ltd. v. Ryan Estate*, 2013 SCC 44, [2013] 3 SCR 53, at para. 65, quoting *Western Bank*, at para. 69; see also *Marine Services*, at paras. 66-68; *Multiple Access*, at p. 168. The question thus becomes how to determine whether such a conflict exists.

[17] First and foremost, it is necessary to ensure that the overlapping federal and provincial laws are independently valid: *Western Bank*, at para. 76; *Husky Oil*, at para. 87. This means determining the pith and substance of the impugned provisions by looking at their purpose and effect: *Western Bank*, at para. 27; *Reference re Firearms Act (Can.)*, 2000 SCC 31, [2000] 1 SCR 783, at para. 16. Once a provision's true purpose is identified, its validity will depend on whether it falls within the powers of the enacting government: *Law Society of British Columbia v. Mangat*, 2001 SCC 67, [2001] 3 SCR 113, at para. 24. If the legislation of one level of government is invalid, no conflict can ever arise, which puts an end to the inquiry. If both laws are independently valid, however, the court must determine whether their concurrent operation results in a conflict.

[18] A conflict is said to arise in one of two situations, which form the two branches of the paramountcy test: (1) there is an operational conflict because it is impossible to comply with both laws, or (2) although it is possible to comply with both laws, the operation of the provincial law frustrates the purpose of the federal enactment.

[19] What is considered to be the first branch of the test was described as follows in *Multiple Access*, the seminal decision of the Court on this issue:

> In principle, there would seem to be no good reasons to speak of paramountcy and preclusion except where there is actual conflict in operation as where one enactment says "yes" and the other says "no"; "the same citizens are being told to do inconsistent things"; compliance with one is defiance of the other. [Emphasis added; p. 191.]

In *Western Bank*, Binnie and LeBel JJ. referred to this passage as "the fundamental test for determining whether there is sufficient incompatibility to trigger the application of the doctrine of federal paramountcy" (para. 71). Under that test, the question is whether there is an actual conflict in operation, that is, whether both laws "can operate side by side without conflict" (*Marine Services*, at para. 76) or whether both "laws can apply concurrently, and citizens can comply with either of them without violating the other": *Western Bank*, at para. 72; see also *Sun Indalex Finance, LLC v. United Steelworkers*, 2013 SCC 6, [2013] 1 SCR 271, at para. 60; *Marine Services*, at para. 68; *British Columbia (Attorney General) v. Lafarge Canada Inc.*, 2007 SCC 23, [2007] 2 SCR 86, at paras. 77 and 81-82; *Garland v. Consumers' Gas Co.*, 2004 SCC 25, [2004] 1 SCR 629, at para. 53; *Smith v. The Queen*, 1960 CanLII 12 (SCC), [1960] SCR 776, at p. 800, per Martland J.

[20] In her concurring reasons, my colleague Côté J. formulates this first branch of the test as impossibility of dual compliance as a result of or caused by "an express conflict" (paras. 93 and 122). She cites in support (paras. 102-3) this Court's use of the terms "express contradiction" in *114957 Canada Ltée (Spraytech, Société d'arrosage) v. Hudson (Town)*, 2001 SCC 40, [2001] 2 SCR 241, at para. 34, and *M & D Farm Ltd. v. Manitoba Agricultural Credit Corp.*, 1999 CanLII 648 (SCC), [1999] 2 SCR 961, at para. 17, as well as the use by Bastarache J. of the terms "express or 'operational conflict'" in *Western Bank* (para. 126) and *Lafarge* (para. 113). She insists that under this first branch, the express conflict or express contradiction must be found merely on the basis of the "actual words" of the provisions at issue (paras. 105 and 108) and their "literal" sense or requirement (para. 97). She considers that prior cases in which this Court found that an operational conflict existed either mischaracterized the test (at paras. 116-17, she cites *Lafarge*) or conflated it with the second branch pertaining to frustration of purpose (at paras. 115 and 118, she cites *Husky Oil* and *M & D Farm*).

[21] I respectfully disagree with these propositions and with my colleague's assessment of this Court's past cases on the first branch of the paramountcy test. I would not characterize these as being "not helpful authority" (para. 118) and as having "confused" the two branches (para. 114). Rather, in my view, this Court's decisions on operational conflict have been coherent and consistent since *Multiple Access*.

[22] First, the expression "express contradiction" used in those cases originated in *Multiple Access*. Dickson J. initially used it — at p. 187, in discussing prior decisions of the Court — to describe the test that he ultimately formulated, in the above-quoted passage, as that of "actual conflict in operation" or operational conflict (p. 191). An express contradiction is nothing more than a clear, direct or definite conflict in operation, as opposed to an indirect or imprecise one. It is not an additional condition for a finding of actual conflict in operation.

[23] Second, I find no indication in the Court's decisions pertaining to this first branch that the assessment of an actual conflict in operation is limited to the actual words or to the literal meaning of the words of the provisions at issue; quite the contrary. In its recent decision in *Marine Services* for instance, in assessing whether there was an actual conflict in operation under the first branch (paras. 71-83), the Court did not limit itself to a mere literal reading of the provisions at issue. Rather, it found that a proper reading of the provisions based on the modern approach to statutory interpretation (paras. 77-79) led to the conclusion that the provincial and federal laws could operate side by side without conflict (para. 76). With respect, my colleague misreads my remarks when she states that I support in this regard a broad interpretation of ambiguous federal statutes under this first branch (paras. 111-13). This is not so. *Marine Services* emphasizes that it is the proper meaning of the provision that remains central to the analysis, not merely its literal sense. As I explain below, the provisions at issue in this case are not ambiguous, and I do not give them a broad interpretation to find their ordinary and undisputed meaning. The harmonious interpretation referred to by my colleague is a rule of constitutional interpretation that applies to both branches of the paramountcy test, not merely the first one: *Saskatchewan (Attorney General) v. Lemare Lake Logging Ltd.*, 2015 SCC 53, [2015] 3 SCR 419, at para. 68. It has, however, no bearing on the actual conflict in operation that is, in my view, established here when both laws operate.

[24] Finally, I consider that in *Husky Oil* (para. 87) and *M & D Farm* (para. 40), Gonthier J. and Binnie J. respectively referred to the "actual conflict in operation" concept drawn from *Multiple Access* without confusing the two branches of the paramountcy test. As for the reasons of Binnie and LeBel JJ. in *Lafarge*, issued on the same day as *Western Bank* (in which they also penned the majority reasons), I find it hard to suggest that they misstated the test or conflated its two branches, which they in fact analyzed separately (the first at paras. 81-82 and the second at paras. 83-85). On operational conflict, their reference to an "impossibility of . . . simultaneous application" (*Lafarge*, at para. 77) echoed the similar comments made in *Western Bank* to the effect that the test amounts to assessing whether "the [two] laws can apply concurrently" (*Western Bank*, at para. 72): see also, on the concept of possible concurrent "application" of both laws, *Rothmans, Benson & Hedges Inc. v. Saskatchewan*, 2005 SCC 13, [2005] 1 SCR 188, at para. 23.

[25] If there is no conflict under the first branch of the test, one may still be found under the second branch. In *Bank of Montreal v. Hall*, 1990 CanLII 157 (SCC), [1990] 1 SCR 121, the Court formulated what is now considered to be the second branch of the test. It framed the question as being "whether operation of the provincial Act is compatible with the federal legislative purpose" (p. 155). In other words, the effect of the provincial law may frustrate the purpose of the federal law, even though it does "not entail a direct violation of the federal law's provisions": *Western Bank*, at para. 73.

[26] That said, the case law assists in identifying typical situations where overlapping legislation will not lead to a conflict. For instance, duplicative federal and provincial provisions will generally not conflict: *Bank of Montreal v. Marcotte*, 2014 SCC 55, [2014] 2 SCR 725, at para. 80; *Western Bank*, at para. 72; *Multiple Access*, at p. 190; *Hall*, at p. 151. Nor will a conflict arise where a provincial law is more restrictive than a federal law: *Lemare Lake*, at para. 25; *Marine Services*, at paras. 76 and 84; *Quebec (Attorney General) v. Canadian Owners and Pilots Association*, 2010 SCC 39, [2010] 2 SCR 536 ("*COPA*"), at paras. 67 and 74; *Western Bank*, at para. 103; *Rothmans*, at paras. 18 ff.; *Spraytech*, at para. 35; *Irwin Toy Ltd. v. Quebec (Attorney General)*, 1989 CanLII 87 (SCC), [1989] 1 SCR 927, at p. 964. The application of a more restrictive provincial law may, however, frustrate the federal purpose if the federal law, instead of being merely permissive, provides for a positive entitlement: *Quebec (Attorney General) v. Canada (Human Resources and Social Development)*, 2011 SCC 60, [2011] 3 SCR 635, at paras. 32-33 and 36; *Lafarge*, at paras. 84-85; *Mangat*, at para. 72; *Hall*, at p. 153. As will become evident from the discussion below, this appeal involves two laws that directly contradict each other, rather than a provincial law which does not fully contradict the federal one, but is only more restrictive than it: see *M & D Farm*; *Clarke v. Clarke*, 1990 CanLII 86 (SCC), [1990] 2 SCR 795.

[27] Be it under the first or the second branch, the burden of proof rests on the party alleging the conflict. Discharging that burden is not an easy task, and the standard is always high. In keeping with co-operative federalism, the doctrine of paramountcy is applied with restraint. It is presumed that Parliament intends its laws to co-exist with provincial laws. Absent a genuine inconsistency, courts will favour an interpretation of the federal legislation that allows the concurrent operation of both laws: *Western Bank*, at paras. 74-75, citing *Attorney General of Canada v. Law Society of British Columbia*, 1982 CanLII 29 (SCC), [1982] 2 SCR 307 ("*Law Society of B.C.*"), at p. 356; see also *Rothmans*, at para. 21; *O'Grady v. Sparling*, 1960 CanLII 70 (SCC), [1960] SCR 804, at pp. 811 and 820. Conflict must be defined narrowly, so that each level of government may act as freely as possible within its respective sphere of authority: *Husky Oil*, at para. 162, per Iacobucci J. (dissenting, but not on this particular point), referring to *Deloitte Haskins and Sells Ltd. v. Workers' Compensation Board*, 1985 CanLII 82 (SCC), [1985] 1 SCR 785, at pp. 807-8, per Wilson J.

[28] This is not to say, however, that courts must refrain from applying the doctrine where the two laws are genuinely inconsistent. In the assessment of such inconsistency for the purposes of paramountcy, a provincial intention to interfere with the federal jurisdiction is neither necessary nor sufficient. In fact, an intention to intrude may call into question the independent validity of the provincial law: *Husky Oil*, at paras. 44-45. The focus of the paramountcy analysis is instead on the effect of the provincial law, rather than its purpose:

> ... there need not be any provincial intention to intrude into the exclusive federal sphere of bankruptcy . . . in order to render the provincial law inapplicable. It is sufficient that the effect of provincial legislation is to do so. [Emphasis added.]

(*Husky Oil*, at para. 39)

Assessing the effect of the provincial law requires looking at the substance of the law, rather than its form. The province cannot do indirectly what it is precluded from doing directly: *Husky Oil*, at para. 39.

[29] In sum, if the operation of the provincial law has the effect of making it impossible to comply with the federal law, or if it is technically possible to comply with both laws, but the operation of the provincial law still has the effect of frustrating Parliament's purpose, there is a conflict. Such a conflict results in the provincial law being inoperative, but only to the extent of the conflict with the federal law: *Western Bank*, at para. 69; *Rothmans*, at para. 11; *Mangat*, at para. 74. In practice, this means that the provincial law remains valid, but will be read down so as to not conflict with the federal law, though only for as long as the conflict exists: *Husky Oil*, at para. 81; E. Colvin, "Constitutional Law — Paramountcy — Duplication and Express Contradiction — Multiple Access Ltd. v. McCutcheon" (1983), 17 *U.B.C. L. Rev.* 347, at p. 348.

[…]

[31] The first step of the analysis is to ensure that the impugned federal and provincial provisions are independently valid. Early in the proceedings, the parties recognized the validity of the relevant provisions of the BIA and the TSA. Before this Court, they again conceded the validity of both laws. The only question is whether their concurrent operation results in a conflict. This requires analyzing the legislative schemes at issue at the outset so as to reach a proper understanding of the provisions that are allegedly in conflict.

(a) *The* Bankruptcy and Insolvency Act

[32] Parliament enacted the BIA pursuant to its jurisdiction over matters of bankruptcy and insolvency under s. 91(21) of the Constitution Act, 1867. The *BIA*, notably through the specific provisions discussed below, furthers two purposes: the equitable distribution of the bankrupt's assets among his or her creditors and the bankrupt's financial rehabilitation (*Husky Oil*, at para. 7).

[33] The first purpose of bankruptcy, the equitable distribution of assets, is achieved through a single proceeding model. Under this model, creditors of the bankrupt wishing to enforce a claim provable in bankruptcy must participate in one collective proceeding. This ensures that the assets of the bankrupt are distributed fairly amongst the creditors. As a general rule, all creditors rank equally and share rateably in the bankrupt's assets: s. 141 of the BIA; *Husky Oil*, at para. 9. In *Century Services Inc. v. Canada (Attorney General)*, 2010 SCC 60, [2010] 3 SCR 379, at para. 22, the majority of the Court, per Deschamps J., explained the underlying rationale for this model:

> The single proceeding model avoids the inefficiency and chaos that would attend insolvency if each creditor initiated proceedings to recover its debt. Grouping all possible actions against the debtor into a single proceeding controlled in a single forum facilitates negotiation with creditors because it places them all on an equal footing, rather than exposing them to the risk that a more aggressive creditor will realize its claims against the debtor's limited assets while the other creditors attempt a compromise.
>
> Avoiding inefficiencies and chaos, and favouring an orderly collective process, maximizes global recovery for all creditors: *Husky Oil*, at para. 7; R. J. Wood, *Bankruptcy and Insolvency Law* (2009), at p. 3.

[34] For this model to be viable, creditors must not be allowed to enforce their provable claims individually, that is, outside the collective proceeding. Section 69.3 of the BIA thus provides for an automatic stay of proceedings, which is effective as of the first day of bankruptcy:

> **69.3** (1) Subject to subsections (1.1) and (2) and sections 69.4 and 69.5, on the bankruptcy of any debtor, no creditor has any remedy against the debtor or the debtor's property, or shall commence or continue any action, execution or other proceedings, for the recovery of a claim provable in bankruptcy.

(See *R. v. Fitzgibbon*, 1990 CanLII 102 (SCC), [1990] 1 SCR 1005, at pp. 1015-16.)

[35] Yet there are exceptions to the principle of equitable distribution. Section 136 of the BIA provides that some creditors will be paid in priority. These creditors are referred to as "preferred creditors". There are also creditors that are paid only after all ordinary creditors have been satisfied: ss. 137(1), 139 and 140.1 of the BIA. Furthermore, the automatic stay of proceedings does not prevent secured creditors from realizing their security interest: s. 69.3(2) of the BIA; *Husky Oil*, at para. 9. A court may also grant leave permitting a creditor to begin separate proceedings and enforce a claim: s. 69.4 of the BIA. These exceptions reflect the policy choices made by Parliament in furthering this purpose of bankruptcy.

[36] The second purpose of the BIA, the financial rehabilitation of the debtor, is achieved through the discharge of the debtor's outstanding debts at the end of the bankruptcy: *Husky Oil*, at para. 7. Section 178(2) of the BIA provides:

> (2) Subject to subsection (1), an order of discharge releases the bankrupt from all claims provable in bankruptcy.

From the perspective of the creditors, the discharge means they are unable to enforce their provable claims: *Schreyer v. Schreyer*, 2011 SCC 35, [2011] 2 SCR 605, at para. 21. This, in effect, gives the insolvent person a "fresh start", in that he or she is "freed from the burdens of pre-existing indebtedness": Wood, at p. 273; see also *Industrial Acceptance Corp. v. Lalonde*, 1952 CanLII 2 (SCC), [1952] 2 SCR 109, at p. 120. This fresh start is not only designed for the well-being of the bankrupt debtor and his or her family; rehabilitation helps the discharged bankrupt to reintegrate into economic life so he or she can become a productive member of society: Wood, at pp. 274-75; L. W. Houlden, G. B. Morawetz and J. Sarra, *Bankruptcy and Insolvency Law of Canada* (4th ed. rev. (loose-leaf)), at p. 6-283. In many cases of consumer bankruptcy, the debtor has very few or no assets to distribute to his or her creditors. In those cases, rehabilitation becomes the primary objective of bankruptcy: Wood, at p. 37.

[37] Although it is an important purpose of the BIA, financial rehabilitation also has its limits. Section 178(1) of the BIA lists debts that are not released by discharge and that survive bankruptcy. Furthermore, s. 172 provides that an order of discharge may be denied, suspended, or granted subject to conditions. These provisions demonstrate Parliament's attempt to balance financial rehabilitation with other policy objectives, such as confidence in the credit system, that require certain debts to survive bankruptcy: Wood, at pp. 273 and 289.

[38] Discharge is the main rehabilitative tool contained in the BIA, but it is not the only one. As Professor Wood, at p. 273, observes:

> The bankruptcy discharge is one of the primary mechanisms through which bankruptcy law attempts to provide for the economic rehabilitation of the debtor. However, it is not the only means by which bankruptcy law seeks to meet this objective. The exclusion of exempt property from distribution to creditors, the surplus income provisions, and mandatory credit counselling also are directed towards this goal.

[39] Another means of rehabilitation is the automatic stay of proceedings contained in s. 69.3 of the BIA. The stay not only ensures that creditors are redirected into the collective proceeding described above, it also ensures that creditors are precluded from seizing property that is exempt from distribution to creditors. This is an important part of the bankrupt's financial rehabilitation:

> The rehabilitation of the bankrupt is not the result only of his discharge. It begins when he is put into bankruptcy with measures designed to give him the minimum needed for subsistence.

(*Vachon v. Canada Employment and Immigration Commission*, 1985 CanLII 12 (SCC), [1985] 2 SCR 417, at p. 430)

[40] In many aspects, the BIA is a complete code governing bankruptcy. It sets out which claims are treated as provable claims and which assets are distributed to creditors, and how. It then sets out which claims are released on discharge and which claims survive bankruptcy. That said, the fact remains that the operation of the BIA depends upon the survival of various provincial rights: *Husky Oil*, at para. 85; *Hall*, at p. 155. In this regard, s. 72(1) of the BIA provides:

> **72.** (1) The provisions of this Act shall not be deemed to abrogate or supersede the substantive provisions of any other law or statute relating to property and civil rights that are not in conflict with this Act, and the trustee is entitled to avail himself of all rights and remedies provided by that law or statute as supplementary to and in addition to the rights and remedies provided by this Act.

On the one hand, given the procedural nature of the BIA, the bankruptcy regime relies heavily on the continued existence of provincial substantive rights, and thus the continued operation of provincial laws: Wood, at pp. 7-8; *Husky Oil*, at para. 30. The ownership of certain assets and the existence of particular liabilities depend upon provincial law: P. W. Hogg, *Constitutional Law of Canada* (5th ed. Supp.), at p. 25-8. On the other hand, the BIA cannot operate without affecting property and civil rights. Section 72(1) confirms this by stating that, where there is a genuine inconsistency between provincial laws regarding property and civil rights and federal bankruptcy legislation, the BIA prevails: see *GMAC Commercial Credit Corp. — Canada v. T.C.T. Logistics Inc.*, 2006 SCC 35, [2006] 2 SCR 123, at para. 47.

[41] In the context of this appeal, we are specifically concerned with an alleged conflict between, on the one hand, one provision of the BIA, namely s. 178, the purpose of which is to ensure the financial rehabilitation of the debtor, and, on the other hand, one provision (s. 102) of the provincial scheme, to which I will now turn.

(b) *The* Alberta Traffic Safety Act

[42] The *TSA* is the provincial scheme with which the BIA is alleged to conflict. Pursuant to s. 92(13) of the Constitution Act, 1867, provincial legislatures have the power to legislate with regard to property and civil rights. The Court has long recognized that this power includes traffic regulation and the authority to set conditions for driver's licences and vehicle permits: *Ross v. Registrar of Motor Vehicles*, 1973 CanLII 176 (SCC), [1975] 1 SCR 5, at pp. 13-14; *O'Grady*, at p. 810; *Provincial Secretary of Prince Edward Island v. Egan*, 1941 CanLII 1 (SCC), [1941] SCR 396, at pp. 402 and 415; see also *Thomson v. Alberta (Transportation and Safety Board)*, 2003 ABCA 256, 232 D.L.R. (4th) 237, at para. 25. The *TSA* is a comprehensive legislative scheme for traffic regulation, "covering virtually all aspects of the regulation of highways and motor vehicles in Alberta", with the aim of ensuring road safety: *Thomson*, at para. 5; Alberta Legislative Assembly, *Alberta Hansard*, 3rd Sess., 24th Leg., April 12, 1999, at p. 927.

[43] Under s. 54(1) of the TSA, no one is allowed to drive or have a motor vehicle on a public road unless the vehicle is insured. Under s. 54(4), a person who contravenes s. 54(1) is liable to a fine or imprisonment. The Registrar of Motor Vehicle Services may also disqualify a person from driving and cancel his or her vehicle registration until that person shows proof of insurance: s. 54(5) and (7).

[44] In the event that an uninsured driver causes an accident, Alberta has implemented a compensation program governed by the MVACA. A victim injured in the accident may sue the uninsured driver for damages. If the victim is successful but the uninsured driver does not pay, the victim may then apply to the Administrator under the MVACA for compensation in the amount of the unsatisfied judgment: s. 5(1). If authorized, the payment is drawn from the General Revenue Fund of the province: s. 5(2). The judgment is then assigned to the Administrator, who can take steps to enforce it against the judgment debtor. The Administrator is thus deemed to be the judgment creditor: s. 5(7).

[45] Section 102 of the TSA, the provision at issue in this appeal, complements the MVACA program. It allows the Registrar to suspend the debtor's driver's licence and vehicle permits until the judgment debt is paid, up to a maximum amount of $200,000:

[…]

(2) The Conflict Between the BIA and the TSA

(a) Operational Conflict

[60] The Court of Appeal concluded that there was no operational conflict, although it used that term throughout its judgment in reference to conflict generally. It explained that the respondent could resist the payment by foregoing his driving privileges and choosing not to drive (para. 10). The reasons of the Court of Appeal, as well as the submissions of the parties, save for those of the Superintendent of Bankruptcy, relate almost exclusively to the second branch of the applicable test. I believe the Court of Appeal and the parties are mistaken on this point. I therefore respectfully disagree with my colleague Côté J., who holds in her concurring reasons that there is no operational conflict, since a bankrupt "can either opt not to drive or voluntarily pay the discharged debt" (para. 123). In a case like this one, the test for operational conflict cannot be limited to asking whether the respondent can comply with both laws by renouncing the protection afforded to him or her under the federal law or the privilege he or she is otherwise entitled to under the provincial law. In that regard, the debtor's response to the suspension of his or her driving privileges is not determinative. In analyzing the operational conflict at issue in this case, we cannot disregard the fact that whether the debtor pays or not, the province, as a creditor, is still compelling payment of a provable claim that has been released, which is in direct contradiction with s. 178(2) of the BIA:

> If [the respondent] pays the debt, then the provincial law will have required him to pay a debt that has been released by the federal law. If [he] does not pay the debt, then the provincial law will have punished him — by withholding his driver's licence — for failing to pay a debt that has been released by the federal law.

(*Gorguis v. Saskatchewan Government Insurance*, 2011 SKQB 132, 372 Sask. R. 152, at para. 25; sent back for rehearing by the Saskatchewan Court of Appeal, which did not address the court's comments on this point (2013 SKCA 32, 414 Sask. R. 5).)

Thus, the laws at issue give inconsistent answers to the question whether there is an enforceable obligation: one law says yes and the other says no.

[61] On the one hand, s. 178(2) of the BIA provides that "an order of discharge releases the bankrupt from all claims provable in bankruptcy". In my view, it is undisputed that a discharge under s. 178 of the BIA releases a debtor, thus preventing creditors from enforcing claims that are provable in bankruptcy. My colleague appears to suggest (at para. 96) that, since the actual words of the section say "nothing more" than that the bankrupt is discharged, or since the discharge merely releases provable claims, an interpretation to the effect that the release of such claims means that they cannot be enforced would "add words to the provision". With respect, this amounts to depriving the words of s. 178(2) of their obvious and ordinary meaning. In *Schreyer*, LeBel J. wrote that, "[a]s is clear from the words of s. 178(2) BIA, the discharge operates to release the bankrupt from all claims provable in bankruptcy". He added that, "[f]or creditors, the discharge means that they 'cease to be able to enforce claims against the bankrupt that are provable in bankruptcy'" (para. 21). I know of no authority that suggests that the words "order of discharge" or "releases" in that context mean anything other than that the provable claim is unenforceable. To give the words used in s. 178(2) their proper meaning is not to interpret the provision broadly.

[62] On the other hand, s. 102(2) of the TSA empowers the province to continue to pressure a debtor by withholding his or her driving privileges "until the judgment is satisfied or discharged, otherwise than by a discharge in bankruptcy". As I mentioned above in my analysis of the legislative schemes, the language of this provision is clear: it provides for the satisfaction of the judgment debt by excluding the impact of a discharge in bankruptcy.

[63] One law consequently provides for the release of all claims provable in bankruptcy and prohibits creditors from enforcing them, while the other disregards this release and allows for the use of a debt enforcement mechanism on such a claim by precisely excluding a discharge in bankruptcy. This is a true incompatibility. Both laws cannot operate concurrently (*Sun Indalex*, at para. 60; *Lafarge*, at para. 82; *M & D Farm*,

at para. 41; *Multiple Access*, at p. 191), "apply concurrently" (*Western Bank*, at para. 72) or "operate side by side without conflict" (*Marine Services*, at para. 76). The facts of this appeal indeed show an actual conflict in operation of the two provisions. This is a case where the provincial law says "yes" ("Alberta can enforce this provable claim"), while the federal law says "no" ("Alberta cannot enforce this provable claim"). The provincial law gives the province a right that the federal law denies, and maintains a liability from which the debtor has been released under the federal law. This conflict can hardly be characterized as "indirect" as my colleague suggests (paras. 92 and 128). Nor can I characterize as merely "implicit" the clear prohibition in s. 178(2) against enforcing provable claims that have been discharged. It is not in dispute that s. 178(2) is a prohibitive provision; considering the meaning of the words "order of discharge" and "releases", what the provision "exactly" prohibits is the enforcement of discharged provable claims. There is no other "possible ramification" in terms of what this section prohibits.

[64] There was indeed much discussion about the effect of a discharge in the parties' submissions. To avoid a finding of conflict, Alberta submitted that in bankruptcy, the debt is not extinguished but merely "released". It asserted that the BIA precludes only the "civil enforcement" of the debt through "civil process"; it does not affect the province's ability to insist on licensing requirements.

[65] In *Schreyer*, LeBel J. described the effect of discharge. While recognizing that the debt is not extinguished, he explained that a discharge prevents creditors from enforcing those claims that are provable in bankruptcy:

> ... every claim is swept into the bankruptcy and . . . the bankrupt is released from all of them upon being discharged unless the law sets out a clear exclusion or exemption. ...

The only reservation I have with the decision of the Court of Appeal in the case at bar relates to its numerous statements that the operation of s. 178(2) BIA has the effect of "extinguishing" the equalization claim. With respect, this provision does not purport to extinguish claims that are provable in bankruptcy pursuant to s. 121 BIA, but "releases" the debtor from such claims: see, on this point, *Re Kryspin* (1983), 1983 CanLII 1703 (ON SC), 40 O.R. (2d) 424 (H.C.J.), at pp. 438-39; and *Ross, Re* (2003), 2003 CanLII 64260 (ON SC), 50 C.B.R. (4th) 274 (Ont. S.C.J.), at para. 15. As is clear from the words of s. 178(2) BIA, the discharge operates to release the bankrupt from all claims provable in bankruptcy. For creditors, the discharge means that they "cease to be able to enforce claims against the bankrupt that are provable in bankruptcy". [Emphasis added; paras 20-21.]

(Citing Houlden, Morawetz and Sarra, at p. 6-283.)

[66] This description is consistent with the term "releases" found in s. 178(2), which means "[l]iberation from an obligation, duty, or demand; the act of giving up a right or claim to the person against whom it could have been enforced": *Black's Law Dictionary* (10th ed. 2014), at p. 1480. As a result of s. 178(2), creditors are deemed to give up their right to enforce their provable claims. The verb "enforce", as used by LeBel J. and Houlden, Morawetz and Sarra, means "to compel obedience": *Black's Law Dictionary*, at p. 645. The non-extinguishment of the debt may be relevant in some cases, such as those involving the liability of a third party (see *Buchanan v. Superline Fuels Inc.*, 2007 NSCA 68, 255 N.S.R. (2d) 286; *Miller, Re* (2001), 2001 CanLII 28479 (ON SC), 27 C.B.R. (4th) 107 (Ont. S.C.J.)). This is, however, of no practical relevance to this appeal. Section 178(2) is clear: a creditor cannot compel the debtor to pay a debt that was released on discharge.

[67] In this appeal, the payment which the province seeks to recover is a provable claim. In substance, the purpose and effect of s. 102 are to compel payment of that provable claim. That claim was properly released, since neither the province's judgment debt, nor the resulting regulatory charge, is exempt from discharge under s. 178(1). As a provable claim is subject to s. 178(2), the province is precluded from compelling payment of the judgment debt.

[68] Contrary to the appellant's contention, nothing suggests that s. 178(2) merely precludes civil enforcement of provable claims. Accepting the appellant's argument would amount to adding words to the provision that do not exist, and that the legislator did not include. While being expressly precluded from compelling payment of a discharged provable claim, the province could create an administrative scheme that had the effect of coercing a discharged debtor to pay a debt that has been released. The appellant's argument must be rejected. Pursuant to s. 178(2) of the BIA, creditors are precluded from compelling payment of a claim provable in bankruptcy, through either civil or administrative processes.

[69] Neither can the question under the operational conflict branch of the paramountcy test be whether it is possible to refrain from applying the provincial law in order to avoid the alleged conflict with the federal law. To argue that the province is not required to use s. 102 in the context of bankruptcy, or that it can choose not to withhold the respondent's driving privileges, leads to a superficial application of the operational conflict test. To suggest that a conflict can be avoided by complying with the federal law to the exclusion of the provincial law cannot be a valid answer to the question whether there is "actual conflict in operation", as the majority of the Court put it in *Multiple Access*: see also *COPA*, at para. 64. To so conclude would render the first branch of the paramountcy test meaningless, since it is virtually always possible to avoid the application of a provincial law so as not to cause a conflict with a federal law. Furthermore, any provincial law that could survive the first branch under the latter argument would necessarily also survive the second branch. If it is possible to avoid operational conflict simply by declining to apply the provincial law, the same could be done to avoid any frustration of the federal purpose under the second branch.

[70] In fact, this would be tantamount to rendering the provincial law inoperative to the extent of the conflict even before a conflict is found. Under the doctrine of paramountcy, this is precisely the remedy that courts grant once a conflict is found; it is not a tool courts can use to avoid finding a conflict. The remedy of not applying the provincial law cannot be determinative of whether a conflict exists in the first place. In this case, whether or not the province has discretion not to apply s. 102 is irrelevant: see *Lafarge*, at para. 75. The province chose to take advantage of the scheme. The question is whether it can do so while also complying with the BIA.

[71] This view, with which my colleague disagrees, appears to me to be consistent with this Court's jurisprudence on operational conflict. For instance, in *M & D Farm*, the creditor held a mortgage on the debtors' family farm. After defaulting on the mortgage, the debtors obtained a stay of proceedings under the federal *Farm Debt Review Act*, R.S.C. 1985, c. 25 (2nd Supp.). While the stay was still in effect, the creditor sought, and was granted, leave under the provincial Family Farm Protection Act, C.C.S.M., c. F15, which authorized the immediate commencement of foreclosure proceedings. The question arose as to whether there was a conflict between the federal stay and the provincial leave. The Court concluded that there was an operational conflict (pp. 982-85), and this conclusion was later reaffirmed in *Lafarge*, at para. 82, and again in *Lemare Lake*, at para. 18. As I read *M & D Farm*, the fact that the debtors could choose to voluntarily pay the mortgage debt, as my colleague suggests, did not mean that there was no operational conflict. Nor was conflict avoided because the creditor could have chosen not to seek leave to commence foreclosure proceedings. There was an operational conflict because the provincial law expressly authorized the very proceedings that the federal stay precluded.

[72] More recently, in *Sun Indalex*, Deschamps J., with Moldaver J. concurring, found that there was an operational conflict (the Court was unanimous on this point). On the one hand, there was an order made under the federal Companies' Creditors Arrangement Act, R.S.C. 1985, c. C-36, which authorized an insolvent company to obtain debtor-in-possession ("DIP") financing and granted priority to the DIP lender. On the other hand, the provincial Personal Property Security Act, R.S.O. 1990, c. P.10, gave priority to the administrator of the company's employee pension plans: para. 60. Deschamps J. did not avoid the operational conflict by concluding, for instance, that the debtor could have chosen not to seek DIP financing in the first place.

[73] My analysis does not "expan[d] the definition of conflict in the first branch" of the paramountcy test, nor does it "conflat[e]" its two branches, contrary to what my colleague indicates (paras. 93 and 106). In my view, this analysis instead applies the principles developed by this Court on federal paramountcy to the operational conflict situation at issue here, where the federal law includes a prohibition that the provincial law effectively disregards. I discuss the two legislative schemes separately from the application of the two branches of the paramountcy test. My analysis of the operational conflict focuses on the existence of an actual and direct conflict between the provisions at issue. The two branches are not "conflated" simply because, in a situation like the current one, the wording of s. 178(2) and the clear prohibition it contains happen to exemplify the goal behind the provision and one of the key objectives of the BIA, that is, the financial rehabilitation of the debtor. I consider that my colleague's remarks to the effect that impossibility of dual compliance is a "secondary consideration" in my discussion of operational conflict (para. 99) are misplaced as well. The classic statement of the test for operational conflict in *Multiple Access* that she cites with approval (para. 100) is precisely the one I am relying upon here. It is in light of that statement that I find there is no real possibility of dual compliance as understood by this Court. Indeed, the opposite conclusion would depend on a creditor refusing to apply (or a debtor refusing to comply with) the provincial law, or, alternatively, on a debtor renouncing (or a creditor refusing to comply with) the protection afforded by the federal law. To find a possibility of dual compliance with the conflicting laws at issue — on the basis of hypotheticals that call for "single" compliance, by any one of the actors involved, with one law but not with the other — would be inconsistent with this Court's precedents on federal paramountcy.

[74] In this regard, this case is distinguishable from precedents like *Rothmans* and *COPA*, on which my colleague relies. Those cases both dealt with provincial laws that took a more restrictive approach to matters covered by permissive federal laws. In each of them, the relevant statutes were held not to create an operational conflict. In *COPA*, the federal Aeronautics Act, R.S.C. 1985, c. A-2, allowed private citizens to build airports, while the provincial Act respecting the preservation of agricultural land and agricultural activities, R.S.Q., c. P-41.1, prohibited such activities on agricultural land absent an administrative authorization: para. 8. In *Rothmans*, s. 30 of the federal Tobacco Act, S.C. 1997, c. 13, permitted the display of tobacco products at retail, while the provincial Tobacco Control Act, S.S. 2001, c. T-14.1, banned the advertising, display and promotion of tobacco products in places where persons under 18 years of age were allowed. *Rothmans* and *COPA* did not involve a direct contradiction between the two applicable laws as does the instant case. They merely involved one law that imposed stricter conditions in allowing activities that were also permitted by the government at the other level. In the case at bar, the question with respect to operational conflict is whether debts incurred while driving uninsured can be enforced even though the debtor has been discharged from bankruptcy. On this question, the two laws directly contradict each other.

[75] I therefore conclude that s. 102 of the TSA allows the province, or a third party creditor, to enforce a provable claim that has been released. To that extent, it conflicts with s. 178(2) of the BIA. It is impossible for the province to apply s. 102 without contravening s. 178(2) and, as a result, for the respondent to simultaneously be liable to pay the judgment debt under the provincial scheme and be released from that same claim pursuant to s. 178(2): *Lafarge*, at para. 82; *M & D Farm*, at para. 41. Section 178 is a complete code in that it sets out which debts are released on discharge and which debts survive bankruptcy. In effect, s. 102 creates a new class of exempt debts that is not listed in s. 178(1). Hence, in the words used by my colleague in her reasons (paras. 95, 110 and 128), "the provincial law allows the very same thing" — the enforcement of a debt released under s. 178(2) of the BIA — that "the federal law prohibits". The result is an operational conflict between the provincial and federal provisions.

[76] Although this conclusion makes it unnecessary to discuss the second branch of the test, I will nonetheless address it in order to respond to the province's arguments.

(b) Frustration of Federal Purpose

(i) Financial Rehabilitation

[77] Like the lower courts, I find that the province's use of its administrative powers relating to driving privileges to burden the respondent until he repays a discharged debt frustrates the financial rehabilitation of the bankrupt. The effect of s. 102 directly contradicts and defeats the purpose of the discharge provided for in s. 178(2):

> The *BIA* permits an honest but unfortunate debtor to obtain a discharge from debts subject to reasonable conditions. The *Act* is designed to permit a bankrupt to receive, after a specified period a complete discharge of all his or her debts in order that he or she may be able to integrate into the business life of the country as a useful citizen free from the crushing burden of debts . . . . [Emphasis added.]

(Houlden, Morawetz and Sarra, at p. 1-2.1)

As explained already, the language of s. 178(2) makes it clear that the purpose of this provision is to give effect to one of the goals underlying the BIA regime — the financial rehabilitation of the debtor — by releasing "the bankrupt from all claims provable in bankruptcy". In other words, s. 178(2) is aimed precisely at providing the bankrupt with a fresh start. The facts of this case establish that the province's use of s. 102 despite the respondent's discharge undermines this purpose.

[78] The respondent was a truck driver. In 1996, after the accident, the province was assigned the judgment rendered against him in the amount of $194,875. In 2008, after attempting to pay the debt in instalments for about 12 years, he made an assignment in bankruptcy. At that time, the outstanding amount of the debt had increased to $195,823; it was, by far, the largest of the respondent's financial liabilities. In 12 years, the respondent had not been able to keep up with his interest payments. The crushing burden of the province's claim against him was the main reason for his bankruptcy. In 2012, at the time his application for discharge was heard, the respondent had only managed to pay the judgment debt down to $192,103.79. By the effect of s. 102, he was exiting bankruptcy while carrying the same financial burden that had caused his bankruptcy four years earlier. If s. 102 is allowed to operate despite the respondent's discharge, the respondent is not offered the opportunity to rehabilitate that Parliament intended to give him. This is particularly compelling in the respondent's case. As a truck driver, his ability to gain a livelihood is tied to his ability to drive. But more generally, inability to drive can constitute a significant impediment to any person's capacity to earn income: see *Lucar, Re* (2001), 2001 CanLII 28289 (ON SC), 32 C.B.R. (4th) 270 (Ont. S.C.J.), at paras. 22-23.

[79] In furthering financial rehabilitation, Parliament expressly selected which debts survive bankruptcy and which are discharged: s. 178(1) and (2). It did so having regard to competing policy objectives. This is a delicate exercise, because the more claims that survive bankruptcy, the more difficult it becomes for a debtor to rehabilitate: *AbitibiBowater*, at para. 35; *Schreyer*, at para. 19. In 1970, the Study Committee on Bankruptcy and Insolvency Legislation emphasized this concern:

> ... much of the rehabilitative effect of his discharge and release from debts is lost, when a bankrupt is left with substantial debts after his discharge. Indeed, in some cases, it may almost be regarded as a mockery of the bankruptcy system to take all of the sizable property of a debtor, distribute it among the creditors and then leave the debtor to cope with some of his largest creditors from whose debts he has not been released.

(Bankruptcy and Insolvency: Report of the Study Committee on Bankruptcy and Insolvency Legislation (1970), at para. 3.2.085)

When operating in the context of bankruptcy, s. 102 undermines this balancing exercise and imperils the bankrupt's ability to rehabilitate. In effect, s. 102 creates a new class of debts that survive bankruptcy. As such, it leaves the debtor with a substantial financial liability that was not contemplated by Parliament. Had Parliament intended judgment debts arising from motor vehicle accidents, or the resulting regulatory charges,

to survive bankruptcy, it would have stated so expressly in s. 178(1) of the BIA. It did not. Together, s. 178(1) and (2) are comprehensive. It is beyond the province's constitutional authority to interfere with Parliament's discretion in that regard.

[80] Notwithstanding this, Alberta asserts that, like any creditor, the province is allowed to form a new binding contract with the discharged bankrupt for the repayment of the debt. In its view, the respondent's driving privileges can serve as fresh consideration for such a contract. I disagree. Like the Court of Appeal, I conclude that this alleged fresh consideration is neither genuine nor consistent with the purpose of s. 178(2).

[81] As a general rule, a creditor cannot cause a debtor to revive an obligation from which the debtor was released, unless the creditor offers fresh consideration: Wood, at p. 301. Between private parties, it is arguable that a debtor may freely agree to revive a discharged debt in exchange for the creditor's provision of goods or services. The province, however, is unlike any private creditor. While a private creditor is under no obligation to provide goods or services, the province cannot withhold the respondent's driving privileges arbitrarily. Suspension of privileges by administrative bodies must be based on a legal rule: see *Roncarelli v. Duplessis*, 1959 CanLII 50 (SCC), [1959] SCR 121, at pp. 141-42; *British Columbia v. Imperial Tobacco Canada Ltd.*, 2005 SCC 49, [2005] 2 SCR 473, at para. 59; *Secession Reference*, at para. 71; *Reference re Remuneration of Judges of the Provincial Court of Prince Edward Island*, 1997 CanLII 317 (SCC), [1997] 3 SCR 3, at para. 10. In the case at bar, the effect and purpose of s. 102 are to compel payment of a discharged debt, which conflicts with s. 178(2). As a result, s. 102 is, to that extent, inoperative and cannot ground the province's authority to withhold the respondent's privileges. If those privileges are being suspended on the sole basis that the respondent refuses to satisfy a judgment debt that was released in bankruptcy, the province is acting without authority. The province's promise to refrain from doing what it has no authority to do cannot constitute fresh consideration capable of supporting any contract. This includes a contract for the repayment of a discharged debt. More importantly, the respondent need not enter into such a contract in order to recover his driving privileges, because the province has no authority to withhold them.

[82] Finally, Alberta's other assertion, to the effect that Parliament's power over bankruptcy and insolvency matters does not extend to the regulation of driving privileges, does not entail that the province can withhold those privileges on the basis of an unpaid released debt. In my view, the province is conflating the scope of Parliament's authority and the consequences of the conflict between the BIA and the TSA. The financial responsibility of drivers is a valid matter of provincial concern and jurisdiction, and the province can set the conditions for driving privileges with this consideration in mind. Nonetheless, when the province denies a person's driving privileges on the sole basis that he or she refuses to pay a debt that was discharged in bankruptcy, the province's condition conflicts with s. 178(2) of the BIA and is, to that extent, inoperative. To so conclude does not transfer the power to regulate driving privileges to Parliament. The obligation to grant those privileges flows from the provisions of the provincial law that remain operative.

[83] The rehabilitative purpose of s. 178(2) is not meant to give debtors a fresh start in all aspects of their lives. Bankruptcy does not purport to erase all the consequences of a bankrupt's past conduct. However, by ensuring that all provable claims are treated as part of the bankruptcy regime, the BIA gives debtors an opportunity to rehabilitate themselves financially. While this does not amount to erasing all regulatory consequences of their past conduct, it is certainly meant to free them from the financial burden of past indebtedness.

(ii) Equitable Distribution

[84] The Court of Appeal concluded that the TSA also disrupts the equitable distribution purpose of the BIA. In that court's view, the province's legislative scheme allows it to obtain more than the ordinary dividend paid under the bankruptcy regime, which is contrary to the objective of the BIA to "treat all creditors of the same class equally" (para. 50). For its part, the province asserts that s. 102 does not alter the priorities set out in the BIA, since payment for the privilege of driving does not draw on the estate of the bankrupt that is available to other creditors.

[85] I disagree with this conclusion of the Court of Appeal. The purpose of s. 178, the only provision of the BIA that is at issue in this appeal, is to give the discharged bankrupt a fresh start. The section sets out the limits of this fresh start by excluding specific debts from being released by the order of discharge (s. 178(1)), and it provides for the consequences of that order by releasing the bankrupt from all other provable claims (s. 178(2)). Section 178 does not further the purpose of equitable distribution of assets. What the Court of Appeal points to are the consequences of survival of the judgment debt as a result of s. 102 of the TSA, despite the discharge contemplated in s. 178. This concerns the financial rehabilitation purpose of the BIA and nothing more.

[86] This Court has repeatedly cautioned against giving "too broad a scope to paramountcy on the basis of frustration of federal purpose": *Lemare Lake*, at para. 23, quoting *Marcotte*, at para. 72; *Marine Services*, at para. 69; *Western Bank*, at para. 74. In the federal paramountcy analysis, it is therefore always essential to ascertain the exact purpose of the specific provision of the federal law that is at issue. The Court of Appeal does not cite any authority supporting the assertion that s. 178 has purposes other than the debtor's financial rehabilitation. Although other provisions of the BIA, discussed earlier in these reasons and dealing mostly with the property of the bankrupt and the administration of the bankrupt's estate, are meant to ensure this equitable distribution purpose, those provisions are not at issue in the case at bar. At best, the assertion made by the Court of Appeal unduly broadens the BIA's equitable distribution purpose and the related single proceeding model. This is contrary to the presumption of constitutionality according to which, "[w]hen a federal statute can be properly interpreted so as not to interfere with a provincial statute, such an interpretation is to be applied in preference to another applicable construction which would bring about a conflict between the two statutes": *Western Bank*, at para. 75, quoting *Law Society of B.C.*, at p. 356; *Marine Services*, at para. 69.

[87] Professor Wood, at p. 3, explains as follows the rationale behind the collective proceeding through which equitable distribution is achieved:

> The race to grab assets in the absence of a collective insolvency regime does not provide an environment within which an efficient and orderly liquidation can occur. The process is inefficient because each creditor must separately attempt to enforce their claims against the debtor's assets, and this produces duplication in enforcement costs. The piecemeal selling off of assets also results in a much smaller recovery than if a single person were in control of the liquidation. Similarly, the race to seize assets does not produce an environment within which negotiations with creditors can easily occur. A reasonable creditor who is inclined to negotiate with the debtor will be unlikely to do so if other creditors are actively taking steps to make away with the debtor's realizable assets; instead, the creditor will feel compelled to join the wild dash to seize assets. Although some of the creditors (those who are able to strike first) are better off in such a scenario, the creditors as a group receive less than if a more orderly liquidation or negotiated arrangement had taken place.

(See also *Husky Oil*, at para. 7.)

[88] The single proceeding model is focused on ensuring the orderly distribution of assets and reducing inefficiencies, and ultimately on maximizing global recovery for creditors. If, after the bankrupt's discharge, that is, after the administration of the estate and the orderly distribution contemplated by the BIA, the province is allowed to compel a bankrupt to make payments outside the collective proceeding and to obtain property that would not, in any event, be distributed to the creditors as part of the bankruptcy process, I fail to see how the single proceeding model is disrupted. The assets to be distributed to creditors remain the same, and they are still allocated according to the bankruptcy scheme and any priorities it dictates. Whether or not s. 102 of the TSA operates after the discharge does not impact the orderly distribution to creditors, nor does it affect the pool of assets to be distributed to them. In this regard, the judgment debt is not "preferred" or given any kind of

priority under the BIA scheme; it is quite simply unaffected by the bankruptcy process as a result of the provincial scheme in the same way as the other debts listed in s. 178(1) that are not released by the order of discharge. The operation of s. 102 does not cause any chaos or inefficiencies in the bankruptcy process. If anything, allowing s. 102 to operate increases global recovery for the other creditors while leaving the single proceeding intact.

[89] Thus, although it is clear that the purpose of s. 178(2) is to ensure the debtor's financial rehabilitation and that s. 102 frustrates that purpose, I am not convinced that the operation of the provincial scheme in the context of this appeal interferes with the equitable distribution of assets, a purpose that is undoubtedly served by other provisions of the BIA, but not by s. 178.

VI. Disposition

[90] In my view, the doctrine of paramountcy dictates that s. 102 of the TSA is inoperative to the extent that it conflicts with the BIA, and in particular s. 178(2). Therefore, the province cannot withhold the respondent's driving privileges on the basis of an unsatisfied but discharged judgment debt. I would dismiss the appeal with costs and answer the constitutional question as follows:

> Is s. 102(2) of the Alberta Traffic Safety Act, R.S.A. 2000, c. T-6, constitutionally inoperative by reason of the doctrine of federal paramountcy?

Answer: Yes, s. 102 of the Alberta Traffic Safety Act is inoperative to the extent that it is used to enforce a debt discharged in bankruptcy.

…

Justice Côté authored the concurring opinion, which was joined by Chief Justice McLachlin. As you read their concurrence, consider which framework and outcome you find most persuasive? Which judgment hews most closely to precedent?

The reasons of McLachlin C.J. and Côté J. were delivered by

[91] Côté J. — I agree that what is at the core of this appeal is the frustration of a federal purpose. Therefore, I concur with Gascon J. insofar as he finds that s. 102 of the Alberta *Traffic Safety Act*, R.S.A. 2000, c. T-6 ("*TSA*"), frustrates the purpose of financial rehabilitation that underlies s. 178(2) of the federal *Bankruptcy and Insolvency Act*, R.S.C. 1985, c. B-3 ("*BIA*"), and that s. 102 is accordingly inoperative to the extent of the conflict by reason of the doctrine of federal paramountcy. However, I do not believe that there is an operational conflict to speak of in this appeal.

[92] There is no doubt in my mind that s. 102 of the *TSA* allows Alberta to do indirectly what it is implicitly prohibited from doing under s. 178(2) of the *BIA*, but in light of the indirect nature of the conflict, this issue is properly dealt with on the basis of the second branch of the federal paramountcy test, not the first.

[93] In my respectful view, Gascon J.'s analysis contrasts with the clear standard that has been adopted for the purpose of determining whether an operational conflict exists in the context of the federal paramountcy test: impossibility of dual compliance as a result of an express conflict. My colleague's approach conflates the two branches of the federal paramountcy test, or at a minimum blurs the difference between them and returns the jurisprudence to the state it was at before the second branch was recognized as a separate branch. And it has an additional serious adverse effect: by expanding the definition of conflict in the first branch, it increases the number of situations in which a federal law might be found to pre-empt a provincial law without an in-depth analysis of Parliament's intent.

[94] To support his approach, my colleague relies on cases that were decided before "frustration of purpose" was recognized as a separate branch of the test. He also relies on subsequent decisions in which the two branches were confused. In my view, *M & D Farm Ltd. v. Manitoba Agricultural Credit Corp.*, 1999 CanLII 648 (SCC), [1999] 2 SCR 961 ("*M & D Farm*"), and *British Columbia (Attorney General) v. Lafarge Canada Inc.*, 2007 SCC 23, [2007] 2 SCR 86 ("*Lafarge*"), cannot be found to represent a consistent and coherent approach to the interplay between the two branches.

[95] In the case at bar, it is clear from the provisions themselves that as a result of how the two legislatures decided to exercise their respective powers, dual compliance is not impossible. The provincial and federal provisions at issue do not expressly conflict; they are different in terms of their contents and of the remedies that they provide. One of them does not permit what the other specifically prohibits.

[96] Under s. 178 of the *BIA*, a bankrupt is discharged from all claims provable in bankruptcy. That section says nothing more. One must be careful, in light of the federal purpose of financial rehabilitation, not to add words to the provision.

[97] Thus, s. 102 of the *TSA* does not revive an extinguished claim *per se*; if a debtor chooses not to drive, the province simply cannot enforce its claim. Rather, s. 102 allows the province to suspend a driver's licence, which gives it some leverage to compel payment of the debt *if the driver decides to drive*. The bankrupt is still discharged in the literal sense of the words of s. 178(2) of the *BIA*. This is not a situation of express conflict in which one law says "yes" while the other says "no". The two statutes answer different questions. In the end, the literal requirement of the federal statute is, strictly speaking, met. It therefore follows that the two acts can operate side by side without conflict. To conclude otherwise would be to disregard the distinct contents of the two provisions and the remedies that they provide.

[98] This is why I am of the view that this appeal must be decided on the basis of the frustration of a federal purpose, an issue in respect of which the applicable standard is higher, and that requires an in-depth analysis of Parliament's intent.

VII. Impossibility of Dual Compliance

[99] In my colleague's discussion of operational conflict, *impossibility* of dual compliance, instead of being at the forefront of the analysis, seems to be a secondary consideration. Yet it is the undisputed standard for determining whether an operational conflict exists, and one that very few cases will meet.

[100] In the jurisprudence, impossibility of dual compliance has become synonymous with operational conflict: see e.g. P. W. Hogg, *Constitutional Law of Canada* (5th ed. Supp.), at p. 16-4 ("Impossibility of dual compliance"). This may largely be due to this Court's repeated emphasis on the definition of operational conflict articulated by Dickson J. (as he then was) in *Multiple Access Ltd. v. McCutcheon*, 1982 CanLII 55 (SCC), [1982] 2 SCR 161 ("*Multiple Access*"): ". . . there is actual conflict in operation . . . where one enactment says 'yes' and the other says 'no'; 'the same citizens are being told to do inconsistent things'; compliance with one is defiance of the other" (p. 191 (emphasis added)).

[101] In *Rothmans, Benson & Hedges Inc. v. Saskatchewan*, 2005 SCC 13, [2005] 1 SCR 188 ("*Rothmans*"), Major J. stressed that *Multiple Access* is "often cited for the proposition that there is an inconsistency for the purposes of the doctrine if it is impossible to comply simultaneously with both provincial and federal enactments" (para. 11). Major J. also described an operational conflict as a situation in which the provincial law "mak[es] it impossible to comply" with the federal law (para. 14). Binnie and LeBel JJ. would subsequently state in *Canadian Western Bank v. Alberta*, 2007 SCC 22, [2007] 2 SCR 3, that provincial and federal laws are incompatible where "it is impossible to comply with both laws" (para. 75). Impossibility of dual compliance continues to be the standard for conceptualizing operational conflict and determining whether one exists: see e.g. *Quebec (Attorney General) v. Canadian Owners and Pilots Association*, 2010 SCC 39, [2010] 2 SCR 536 ("*COPA*"), at para. 64.

[102] The requirement of an "express contradiction", discussed in *114957 Canada Ltée (Spraytech, Société d'arrosage) v. Hudson (Town)*, 2001 SCC 40, [2001] 2 SCR 241 ("*Spraytech*"), at para. 34, is inseparable from impossibility of dual compliance as a clear expression of the prudent measure of restraint displayed in the line of cases in which the first branch of the federal paramountcy test was developed. It echoes the proposition that for the two laws to conflict, each one has to say exactly the opposite of what the other says (one law says "yes" and the other says "no"). A less direct conflict is simply not enough.

[103] In *Canadian Western Bank*, Bastarache J. indicated that the only type of conflict capable of triggering the first branch is one that is "express" (para. 126). See also *Lafarge*, at para. 113. In *M & D Farm*, on which my colleague relies extensively, Binnie J., writing for the Court, acknowledged that the federal enactment will prevail only in the event of "an express contradiction" (para. 17). The Court had also previously used the expression "direct conflict" to characterize this requirement: *Rio Hotel Ltd. v. New Brunswick (Liquor Licensing Board)*, 1987 CanLII 72 (SCC), [1987] 2 SCR 59, at pp. 64-65. Peter W. Hogg states that the requirement is "a very tight restriction on the paramountcy doctrine, since cases where the provincial law expressly contradicts the federal law are few and far between": "Paramountcy and Tobacco" (2006), 34 *S.C.L.R.* (2d) 335, at p. 338 (emphasis added). In the absence of an express conflict, the two provisions are deemed to be capable of operating side by side. This idea also underlies the reasons of the majority in *COPA*, who found that there was no operational conflict, because the federal statute did not require the construction of an aerodrome, whereas the provincial law prohibited it (para. 65).

[104] In light of the modern jurisprudence, this restrained approach to operational conflict is therefore inescapable. There are good reasons for maintaining such a strict standard for operational conflict. Iacobucci J. (dissenting, but not on this point) explained the rationale behind it in *Husky Oil Operations Ltd. v. Minister of National Revenue*, 1995 CanLII 69 (SCC), [1995] 3 SCR 453:

> In closing, although I find there to be no conflict between s. 133(1) and the *Bankruptcy Act*, I posit that, even if there were to be some element of conflict, this must be evaluated in light of the fact that the provincial legislation is *intra vires*. Legislation that is *intra vires* is permitted to have an incidental and ancillary effect on a federal sphere. I would emphasize again that this Court has traditionally declined to invoke the paramountcy doctrine in the absence of actual operational conflict. I am uncomfortable with the "water-tight" approach to federal bankruptcy legislation propounded by the respondents. To interpret the quartet as requiring the invalidation of provincial laws which have any effect on the bankruptcy process is to undermine the theory of co-operative federalism upon which (particularly post-war) Canada has been built. In *Deloitte Haskins* [*and Sells Ltd. v. Workers' Compensation Board*, 1985 CanLII 82 (SCC), [1985] 1 SCR 785], at pp. 807-8, Wilson J. recognized it to be appropriate to adopt as narrow a definition of operational conflict as possible in order to allow each level of government as much area of activity as possible within its respective sphere of authority. [Emphasis added; para. 162.]

Such a high standard is consistent with co-operative federalism and with the idea, as eloquently expressed by my colleague Abella J. for the majority in *NIL/TU,O Child and Family Services Society v. B.C. Government and Service Employees' Union*, 2010 SCC 45, [2010] 2 SCR 696, that "[t]oday's constitutional landscape is painted with the brush of co-operative federalism", which requires that courts accept an overlap "between the exercise of federal and provincial competencies" as inevitable (para. 42). If, in practice, the wording of the statutes makes it possible to comply with both of them, then co-operative federalism requires this Court to find that the federal and provincial statutes are compatible, at least at the first stage of the analysis. If there is a doubt in this regard, the issue should be addressed at the second stage, since an interpretation of the federal and provincial legislation that results in a finding of compatibility should be favoured at the first stage.

[105] This is where I cannot agree with my colleague. Rather than assessing the possibility of dual compliance and the existence or absence of an express operational conflict, Gascon J. begins by characterizing the effect of s. 102 of the *TSA*. In his view, that effect is to permit the enforcement of a discharged debt. He then finds that compelling the payment of such a debt is prohibited by s. 178(2) of the *BIA*, as its purpose is to give the bankrupt a fresh start. My colleague interprets s. 178(2) of the *BIA* broadly on the basis of Parliament's intent to foster the financial rehabilitation of the bankrupt, and this results in a conflict. In other words, rather than considering whether to comply with one statute is to defy the other, he considers whether the effects of the provincial statute seem to be incompatible with the federal prohibition. Instead of considering only the actual words of both provisions, he takes into account their purposes and their effects.

[106] As I mentioned above, his analysis thus conflates the two branches of the federal paramountcy test, or at a minimum blurs the difference between them and returns the jurisprudence to the state it was at before the second branch was recognized as a separate branch.

[107] With all due respect, as the Chief Justice stated in *COPA*, the two branches of the modern federal paramountcy test relate to "two different forms of conflict" (para. 64). See also *Marine Services International Ltd. v. Ryan Estate*, 2013 SCC 44, [2013] 3 SCR 53 ("*Marine Services*"), at para. 68. While it is true that they overlap, it is not true that a finding of an operational conflict in the first branch will necessarily entail a finding of frustration of a federal purpose in the second branch. An overlap between the two forms of conflict does not mean the branches are necessarily redundant. The party that invokes the frustration of a federal purpose bears the burden of proof, and the standard of proof is high: *COPA*, at para. 66. The federal scheme may be drafted in a manner that does not match the record of Parliament's intent, but that results in an express conflict with a provincial law. If the frustration of a federal purpose can be used to find that an operational conflict exists, there is really no point in having two branches of the test. If the Court wishes to merge the two branches, it cannot do so without overruling *Rothmans*, *COPA* and *Marine Services* on this point.

[108] The first branch of the federal paramountcy test is concerned with incompatibility *of the provisions*, that is, an incompatibility that is evident on the face of the provisions themselves. An analysis in this regard takes the federal statute as a starting point and focusses on its actual wording. This analysis requires an inquiry, based on the wording of the federal statute, into whether there is room for the provincial law to operate. In this context, the content of each of the laws and the remedies that they provide are of considerable importance.

[109] For all these reasons, even a superficial possibility of dual compliance will suffice for a court to conclude that there is no operational conflict: *Law Society of British Columbia v. Mangat*, 2001 SCC 67, [2001] 3 SCR 113 ("*Mangat*"), at para. 72. By the same logic, a duplication of federal and provincial legislation will not on its own amount to operational conflict: *Multiple Access*, at p. 190, per Dickson J. for the majority. In addition, where federal legislation is broad and permissive, a restrictive provincial scheme will usually be deemed not to conflict with it, because it will be possible to comply with both of them by conforming to the more restrictive provincial law: *Quebec (Attorney General) v. Canada (Human Resources and Social Development)*, 2011 SCC 60, [2011] 3 SCR 635, at para. 20. Such was the case in *Bank of Montreal v. Hall*, 1990 CanLII 157 (SCC), [1990] 1 SCR 121 ("*Bank of Montreal*"), *Spraytech*, *Rothmans* and *COPA*.

[110] If the federal law is prohibitive, as in the case at bar, the question becomes what *exactly* it prohibits. If the provincial law allows the very same thing the federal law prohibits, there is an operational conflict. If it does not do so, the analysis shifts to the second branch.

[111] My colleague contends, relying on *Marine Services*, that the modern approach to statutory interpretation applies to ambiguous federal statutes. According to him, the analysis regarding an express conflict cannot be limited to a literal reading of the statute. Parliament's intent can thus be used to find that an operational conflict exists where there would otherwise be none.

[112] With all due respect, *Marine Services* does not stand for that proposition; rather, it reaffirms the idea that co-operative federalism supports an interpretation of the federal and provincial legislation that results in a finding of compatibility at the first stage of the test. In *Marine Services*, this Court resolved the ambiguity in the *Marine Liability Act*, S.C. 2001, c. 6, by finding that "[a]n interpretation recognizing the

absence of conflict between the statutes is borne out by the broader context, the scheme and object of the *MLA* and Parliament's intent" (para. 79). Yet Gascon J. is doing the opposite, that is, concluding that an operational conflict exists even though there is an interpretation of the two laws that results in a finding of compatibility.

[113] If permissive federal legislation is to be interpreted restrictively in order to avoid an operational conflict, I see no reason to generally treat ambiguous provisions differently. Following my colleague's approach, the frustration of federal purpose analysis can result in findings of two different forms of conflict. That is clearly not the conclusion this Court reached in *Bank of Montreal*. It should be noted that the federal provision at issue in that case could easily have been characterized as being ambiguous. Thus, a broader interpretation could have been adopted to the effect that Parliament's intent resulted in an operational conflict; instead, the Court considered it necessary to extend the federal paramountcy test by creating the frustration of purpose branch. Whereas Parliament's intent had originally been irrelevant to the federal paramountcy test, it would now be the touchstone of this new branch.

[114] The Court has never really addressed the interrelation between the two branches. In many cases from both before and after *Rothmans*, *Canadian Western Bank* and *COPA*, it seems to me that the two branches have been confused, as the Court has concluded that there was an operational conflict in the context of the first branch while referring to the federal purpose.

[115] For instance, Gonthier J., writing for the majority in *Husky Oil*, found that there was a "clear operational conflict in that ss. 133(1) and (3) in their operation together entail a reordering or subverting of the federal order of priorities under the *Bankruptcy Act*" (para. 87). As the Ontario Court of Appeal noted in its reasons in the companion case, *Canada (Superintendent of Bankruptcy) v. 407 ETR Concession Company Ltd.*, 2013 ONCA 769, 118 O.R. (3d) 161, the decision of the majority in *Husky Oil* is best understood as one involving frustration of federal purpose rather than operational conflict:

Although not so described in the case, in my view, the majority in *Husky Oil* is best understood as a decision involving frustration of a federal purpose rather than an operational conflict. Firstly, the majority did not rely on *Multiple Access* but on *Hall*, a case which is now viewed as a frustration of purpose decision. Secondly, the majority relied on the effect of the provincial legislation and indirect conflict to ground its paramountcy analysis and not the strict operational conflict test found in *Multiple Access*. [para. 75]

[116] In *Lafarge*, the majority did recognize the two branches of the federal paramountcy test, but stated the test incorrectly:

> We restated the requirements for federal paramountcy in our reasons in *Canadian Western Bank*. The party raising the issue must establish the existence of valid federal and provincial laws and the impossibility of their simultaneous application by reason of an operational conflict or because such application would frustrate the purpose of the enactment, as explained by our Court in *Rothmans, Benson & Hedges Inc. v. Saskatchewan*, [2005] 1 SCR 188, 2005 SCC 13, at paras. 11-14. (See also *Law Society of British Columbia v. Mangat*, [2001] 3 SCR 113, 2001 SCC 67, at paras. 68-71; *Bank of Montreal v. Hall*, 1990 CanLII 157 (SCC), [1990] 1 SCR 121.) [para. 77]

[117] The conflation of frustration of a purpose with impossibility of dual compliance is even more apparent at para. 75 of that case, where the majority stated that the two statutes "would create an operational conflict that would flout the federal purpose". Interestingly, the majority did not refer to an operational conflict in terms of impossibility of dual compliance or a situation in which one enactment says "yes" and the other says "no". They merely applied *M & D Farm* and found that there was an operational conflict, just as my colleague proposes to do in the case at bar. In my opinion, *Lafarge* should also be understood as a decision involving the frustration of a federal purpose rather than an operational conflict.

[118] Although *M & D Farm* was decided on the basis of an operational conflict, it is not helpful authority on the modern doctrine of federal paramountcy either, as Binnie J. made no distinction between the first and second branches of the federal paramountcy test. At the time that case was decided, the concept of frustration of purpose had been referred to in *Bank of Montreal*, but this Court had not yet explicitly recognized the two branches of the federal paramountcy test. Although the Court found in *M & D Farm* that there was an operational conflict, in doing so it relied on passages from *Bank of Montreal* in which La Forest J. had inquired into whether "requir[ing] the bank to defer to the provincial legislation is to displace the legislative intent of Parliament" (*Bank of Montreal*, at p. 153; see *M & D Farm*, at para. 41). I agree that there was in fact an operational conflict in *M & D Farm*, but for different reasons, as I will explain below.

[119] Finally, in *Mangat*, the federal legislation (*Immigration Act*, R.S.C. 1985, c. I-2) permitted non-lawyers to appear on behalf of clients before the Immigration and Refugee Board (ss. 30 and 69(1)). The provincial legislation (*Legal Profession Act*, S.B.C. 1987, c. 25) prohibited non-lawyers from practising law. As defined in s. 1 of the *Legal Profession Act*, the expression "practice of law" included "appearing as counsel or advocate" in the expectation of a fee. Mr. Mangat was an immigration consultant. The Law Society of British Columbia applied for a permanent injunction to prevent him from practising law. The Court found the law to be inoperative, but used the term "operational conflict" in respect of both branches of the paramountcy test:

> In this case, there is an operational conflict as the provincial legislation prohibits non-lawyers to appear for a fee before a tribunal but the federal legislation authorizes non-lawyers to appear as counsel for a fee. At a superficial level, a person who seeks to comply with both enactments can succeed either by becoming a member in good standing of the Law Society of British Columbia or by not charging a fee. Complying with the stricter statute necessarily involves complying with the other statute. However, following the expanded interpretation given in cases like *M & D Farm* and *Bank of Montreal*, *supra*, dual compliance is impossible. . . .
>
> This case should be distinguished from *114957 Canada Ltée (Spraytech, Société d'arrosage) v. Hudson (Town)*, [2001] 2 SCR 241, 2001 SCC 40. In that case, it was possible to comply with the federal, provincial, and municipal statutes or regulations without defeating Parliament's purpose. As previously shown, in this case, it is impossible to comply with the provincial statute without frustrating Parliament's purpose. [Emphasis added; paras. 72-73.]

[120] In my view, the Court actually found in that case that there was no operational conflict (as that concept is understood today), as it noted in the above passage that the statutes at issue allowed dual compliance at a "superficial level"; the words "superficial level" corresponded to the operational conflict branch. And it then found that dual compliance was not possible on the basis of an "expanded interpretation", citing *M & D Farm* and *Bank of Montreal*; the words "expanded interpretation" referred to the frustration of purpose branch.

[121] In light of the above cases, I find it difficult to conclude, as my colleague urges me to do, that the approach taken by this Court on this issue has been entirely consistent.

[122] Although this Court's past decisions are not always helpful when it comes to drawing a distinction between the two branches, they do support three propositions: (1) that the applicable standard for the first branch is *impossibility* of dual compliance caused by an express conflict, (2) that this is a high standard that should be applied with restraint, and only in very few cases, and (3) that the two branches are distinct and address different forms of conflict.

[123] Consequently, I find that the analysis at the first stage should really be as simple as the Alberta Court of Appeal put it, and it is no surprise to me that both parties made next to no submissions on the point. The determining question is whether the province's legislation provides a path on which dual compliance is possible. Because such a path exists in this case as a result of the wording of the two provisions, dual compliance cannot be found to be impossible. Unlike in *M & D Farm*, the two statutes in the instant case have different contents and

provide for different remedies. Since the bankrupt is under no compulsion in this regard, he or she can either opt not to drive or voluntarily pay the discharged debt, in which case there will be no operational conflict between the provincial and federal laws. The only thing Alberta can do is suspend a bankrupt's driver's licence.

[124] It is important to note that although operational conflict and frustration of purpose are described as two "branches" of a single test, either one is sufficient to trigger the application of the doctrine of federal paramountcy. Where enactments are found to be in operational conflict, the inquiry can end there without further investigation into the purposes of the enactments. A high standard at the first stage merely means that in most cases, the purpose and effects of the legislation at issue will need to be analyzed at the second stage.

[125] Requiring courts to deal with the issue in the second branch has many advantages. For the frustration of purpose analysis, the federal legislative intent with which the provincial law is alleged to be incompatible must be established by the party relying on it. Clear proof of intent is required. The party must first establish the purpose of the relevant federal statute and then prove that the provincial law is incompatible with or frustrates this purpose: *COPA*, at para. 66.

[126] In the second branch, the court can proceed with a careful analysis of Parliament's intent and, if possible, interpret the federal law so as not to interfere with the provincial law: *Canadian Western Bank*, at para. 75. Before concluding that the provincial law is inoperative, the court can also consider whether the federal government supports the operation of that law. In *Rothmans*, this Court emphasized that in resolving federalism issues, a court must bear in mind the position of the government at the other level (para. 26). In that case, the federal government intervened in favour of the provincial law, arguing that it had been enacted for the same health-related purpose as the federal law. The Court found that there was no frustration of purpose.

[127] Considering that the doctrine of federal paramountcy operates at the expense of provincial jurisdiction and reduces legislative overlap, these principles encourage governments at both levels to take the lead in defining the scope of their legislative powers. They facilitate intergovernmental dialogue and serve as safeguards of provincial autonomy. In my view, the approach I suggest is more consistent with the principle of co-operative federalism as applied in *Canadian Western Bank*. It also sets a clear precedent by reaffirming that a provincial law will rarely be found to be inoperative in the first branch of the analysis.

[128] My colleague concludes that this approach would render the first branch of the federal paramountcy test meaningless; in his opinion, it is virtually always possible to avoid the application of a provincial law so as not to cause a conflict with a federal law. I disagree that the "impossibility" standard, if applied strictly, would render the first branch of the federal paramountcy test meaningless. If the provincial law *allows or requires* something that the federal law explicitly *prohibits*, or if the conflict is direct rather than indirect, there will be an operational conflict. But that is just not the case here. In fact, the effect of my colleague's approach is to render the *second* branch meaningless, since a frustration of federal purpose analysis can now be used to interpret federal statutes broadly in order to find that an operational conflict exists where there would otherwise be none.

[129] Following my approach, one would still find that there was an operational conflict in *M & D Farm*, in which the federal law imposed an absolute stay of proceedings on the very procedures the provincial statute allowed to commence or to continue. In that case, the express requirement of the federal statute was in direct conflict with the provincial law. On the one hand, the federal *Farm Debt Review Act*, R.S.C. 1985, c. 25 (2nd Supp.), permitted a farmer to obtain a stay of a creditor's proceedings and required the creditor, before demanding payment, to give notice that it intended to commence foreclosure proceedings. On the other hand, under the provincial statute, the creditor could obtain an order authorizing the immediate commencement of such proceedings. Unlike in the case at bar, the two statutes had similar contents and provided for similar remedies: both dealt specifically with the process for realizing on farmers' debts, and both established procedures for commencing or continuing proceedings against farmers.

[130] The approach I suggest would also result in a finding that there was an operational conflict in *Sun Indalex Finance, LLC v. United Steelworkers*, 2013 SCC 6, [2013] 1 SCR 271, in which the federal statute, the *Companies' Creditors Arrangement Act*, R.S.C. 1985, c. C-36, gave a court the power to order that a security or charge rank in priority *over the claim of any secured creditor of the company*, whereas the provincial statute created a priority in favour of the administrator of the company's employee pension plan. The federal legislation was not only permissive, but granted the court a very specific power; the provincial legislature was left little leeway to interfere with this power. Because the provincial statute provided, on a mandatory basis, for a different order of priority, it was impossible to comply with both laws without rendering the court's power under the federal statute meaningless.

[131] I would add that what is "virtually always possible", as my colleague puts it, at para. 69, is to find *some* conflict in the application of two laws. This is why the case law requires something more, namely impossibility of dual compliance and an express conflict. It is also why the focus is on the wording of the federal statute and not on its every possible ramification.

[132] In the end, the issue in this case is whether the *effect* of the province withholding driving privileges in this manner produces a conflict with the purposes of the *BIA*, thereby accomplishing indirectly what the province cannot do directly. Thus, it is on the basis of the second branch of the federal paramountcy test, not the first, that this appeal must be decided.

[133] I adopt my colleague's analysis and conclusion on this point. As the frustration of one federal purpose is sufficient to trigger the application of the doctrine of federal paramountcy, I need not address the second proposed ground for frustration of purpose, that of equitable distribution.

In the Court's most recent application of paramountcy doctrine, Chief Justice Wagner assessed the operability of sections 5 and 10 of the provincial Act, which completely prohibited the possession of cannabis plants and their cultivation for personal purposes in a dwelling-house. You will recall from the earlier excerpt of *Murray Hall* that the federal *Cannabis Act*, SC 2018, c 16 permitted individuals to possess and cultivate up to four cannabis plants at any one time.

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[83] In this second part, I will address whether the doctrine of federal paramountcy applies in this case, which would mean that ss. 5 and 10 of the provincial Act would be declared to be of no force or effect only to the extent of their inconsistency with the federal Act. Like the Court of Appeal, I am of the view that the impugned provisions are operative. The application of the absolute prohibitions set out in the provincial Act does not frustrate the federal purpose identified by the appellant. Contrary to what he argues, the purpose of the federal Act is not to create — with a view to reducing illicit activities in relation to cannabis — positive rights to possess and cultivate up to four cannabis plants for personal purposes. Such an interpretation of the purpose of the federal Act does not reflect the essentially prohibitory nature of the criminal law power and is not supported by the wording of that Act.

[84] By way of introduction, I will outline the circumstances in which the doctrine of federal paramountcy applies. There is an inconsistency that justifies giving precedence to a federal law over a valid provincial law when there is an operational conflict or when the purpose of the federal law is frustrated. In the former case, the operational conflict means that it is impossible to comply with both laws simultaneously, such as "where one enactment says 'yes' and the other says 'no'", as it was put in *Multiple Access Ltd. v. McCutcheon*, 1982 CanLII 55 (SCC), [1982] 2 SCR 161, at p. 191. In the latter case, "imposing an obligation to comply with provincial legislation would in effect frustrate the

purpose of a federal law" (*Canadian Western Bank*, at para. 73). As Major J. noted in *Rothmans, Benson & Hedges Inc. v. Saskatchewan*, 2005 SCC 13, [2005] 1 SCR 188, at paras. 14-15, the existence of *either* of these situations is enough to trigger the application of the federal paramountcy doctrine, but this does not mean that proving their existence is easy.

[85] Indeed, the burden of proof that rests on the party alleging an operational conflict or a conflict of purposes is a high one (*Alberta (Attorney General) v. Moloney*, 2015 SCC 51, [2015] 3 SCR 327, at para. 27; *Saskatchewan (Attorney General) v. Lemare Lake Logging Ltd.*, 2015 SCC 53, [2015] 3 SCR 419, at paras. 21-23). This requirement arises from the cardinal rule of constitutional interpretation that "[w]hen a federal statute can be properly interpreted so as not to interfere with a provincial statute, such an interpretation is to be applied in preference to another applicable construction which would bring about a conflict between the two statutes" (*Attorney General of Canada v. Law Society of British Columbia*, 1982 CanLII 29 (SCC), [1982] 2 SCR 307, at p. 356). I am also of the view that the need for the greatest possible precision in the analysis of operability takes on particular importance in circumstances such as those in this case, where the legislative subject matter has a double aspect. It is essential "to avoid eroding the importance attached to provincial autonomy", a concern I expressed in, among other cases, *References re Greenhouse Gas Pollution Pricing Act*, 2021 SCC 11, at para. 128.

[86] For the reasons that follow, and in light of the "restrained" approach to paramountcy that guides the Court, I am of the view that the appellant has not met his burden of proof.

[87] I want to dispel at once any notion that there is an operational conflict between the impugned provisions and the federal Act. When questioned by the Court on this point, the appellant in fact conceded that it is possible to obey both laws, which suggests that there is no operational conflict. By not possessing or cultivating cannabis plants in their homes, individuals in Quebec can thus easily comply with both the federal Act, which exempts the possession and cultivation of up to four cannabis plants from the application of its scheme of criminal offences, and the provincial Act, which prohibits the possession and cultivation of any cannabis plant in a dwelling-house.

[88] Therefore, the only question to be answered is rather whether a federal purpose is being frustrated, which in this case involves first establishing the purpose of the federal Act and then determining whether the provisions of the provincial Act are incompatible with that purpose (*Quebec (Attorney General) v. Canadian Owners and Pilots Association*, 2010 SCC 39, [2010] 2 SCR 536, at para. 66).

[89] The appellant's position on the frustration of the federal Act's purpose can be briefly summarized. He alleges that the incompatibility results from the fact that the provincial Act does not merely limit what the federal Act allows, namely the cultivation and possession of up to four cannabis plants in a dwelling-house, but instead prohibits it completely. In making such an argument, the appellant assumes that ss. 8(1)(e) and 12(4)(b) of the federal Act have in fact created a *positive right* to self-cultivate cannabis. According to the appellant, *positively and expressly authorizing* the home cultivation of a maximum of four cannabis plants is the purpose of the federal provisions. In its more refined form, this argument amounts to suggesting that granting Canadians a positive right to possess or cultivate up to four cannabis plants is the *specific* purpose of ss. 8(1)(e) and 12(4)(b). Such a purpose is allegedly being pursued in order to achieve other more *general* purposes of the federal Act set out in s. 7 of that Act, including eliminating or reducing the illicit cannabis market (s. 7(c)) (see the distinction drawn between a specific purpose and a general purpose in *Rothmans*, at para. 25).

[90] In my opinion, the appellant's position cannot be accepted. The purpose of the federal Act's provisions is not to create a positive right to self-cultivate cannabis as part of a broader objective of limiting the influence of organized crime. Such a purpose would be inconsistent with the fact that "the criminal law power is essentially prohibitory in character" (*Rothmans*, at para. 19), a fact that has been recognized in Canadian law since the leading case of *Proprietary Articles Trade Association v. Attorney General for Canada*, 1931 CanLII 385 (UK JCPC), [1931] A.C. 310 (P.C.). As McLachlin C.J. noted in *Reference re AHRA*, "[t]he federal criminal law power may only be used to prohibit conduct" (para. 38). It follows that when exceptions are carved out for practices that Parliament does not wish to prohibit, this "only means that a particular practice is not prohibited, not that the practice is positively allowed by the federal law" (*ibid.* (emphasis deleted)).

[91] It is true that, in everyday language and even in the speeches of some parliamentarians, the creation of exceptions or exemptions under a scheme of criminal offences is often described as a "legalization" effort. However, this way of speaking is incorrect and falsely suggests that positive rights authorizing particular conduct have been granted to the public. In this case, the statement by the federal Minister of Health that "limited home growing should be allowed" therefore cannot be seen as a clear expression of Parliament's intent to confer a positive right to self-cultivation (*House of Commons Debates*, vol. 148, No. 314, 1st Sess., 42nd Parl., June 13, 2018, at p. 20875). I would also point out that courts must be careful when relying on parliamentary debates as an expression of legislative intent. The use of this type of extrinsic evidence must be approached "with caution" given the fact that "statements by members of Parliament can be poor indicators of parliamentary purpose" (*R. v. Sharma*, 2022 SCC 39, at para. 89).

[92] Furthermore, I note that nothing in the language of ss. 8(1)(e) and 12(4)(b) indicates that Parliament's intention was to authorize the self-cultivation of cannabis. On the contrary, these provisions read as classic criminal law: they contain a prohibition and a penalty, and they are directed at an evil relating to public health and safety. They include exemptions for the cultivation and possession of one to four cannabis plants. Their wording leaves no ambiguity regarding the fact that the possession and cultivation of one to four cannabis plants were simply excluded from the scope of the criminal offences provided for in the federal Act. Pointing to the absence of provisions conferring an express right to cultivate cannabis for personal purposes, the Court of Appeal correctly found that [translation] "it seems more accurate to say not that the [federal Act] legalized certain aspects related to the use of this substance, but rather that it decriminalized them" (para. 117).

[93] The appellant attaches great importance to the fact that s. 7(c) of the federal Act is framed in much more positive or permissive terms, since it states that one of the purposes of the Act is to "provide for the licit production of cannabis to reduce illicit activities in relation to cannabis". He sees this as an indication that Parliament truly intended to confer a positive right to self-cultivate. Once again, I cannot accept the appellant's contentions.

[94] First, it is not clear that Parliament, through the term "licit production" in s. 7(c), was referring specifically to the home production of cannabis. Rather, I believe that this term conveys a general intention to allow production within the legal framework established by the federal Act. The concept of "licit production" could also be seen, *a contrario*, as the converse of the concept of "illicit cannabis", which s. 2 of the federal Act defines as any "cannabis that is or was sold, produced or distributed by a person prohibited from doing so under this Act or any provincial Act or that was imported by a person prohibited from doing so under this Act."

[95] Second, even if it is accepted that the concept of "licit production" may refer to home production, the words "provide for" in s. 7(c) cannot be read as indicating that Parliament granted authorization or permission that created positive rights. They cannot be read in this way because, as I noted above, the creation of positive rights is not a valid exercise of the criminal law power and because the federal Act must be presumed to be constitutionally valid in our review of the operability of the provincial provisions.

[96] The guidance provided in *Rothmans* is relevant for the purposes of this appeal. In my view, the principles arising from that case are determinative of the issue of the operability of the impugned provisions. The question in *Rothmans* was whether provincial legislation that prohibited the promotion of tobacco products in any place accessible to young persons frustrated the purpose of federal legislation that prohibited the promotion of tobacco products except in retail businesses. The Saskatchewan Court of Appeal had found that the provincial legislation negated the authorization otherwise afforded by the federal legislation for the promotion of tobacco in retail businesses. This Court

came to a different conclusion, stating that "Parliament did not grant, and could not have granted, retailers a positive entitlement to display tobacco products" (para. 18 (emphasis added)). In addition, statutes enacted pursuant to the criminal law power "do not ordinarily create freestanding rights that limit the ability of the provinces to legislate in the area more strictly than Parliament" (para. 19 (emphasis added)).

[97] The principle to be drawn from these excerpts is that the making of exceptions or exemptions under a criminal law scheme cannot serve to confer *positive rights* to engage in the activities covered by those exceptions or exemptions. This is an important point in a case like the one before us. The provinces can legitimately undertake regulatory initiatives to provide a framework for decriminalized activities without thereby frustrating a purpose — the creation of positive rights — that by definition is outside the scope of the federal criminal law power.

[98] I acknowledge that the circumstances of *Rothmans* differed from those of this case in one important respect. In *Rothmans*, the exemption for the retail display of tobacco products did not seem closely related to the achievement of the criminal law purpose of the legislation as a whole, which was to address a national public health problem. As the Court stated in that case, even if it were to be accepted that the federal legislation granted retailers a positive right to display tobacco products, it would be difficult to imagine that such a right could actually help combat a public health evil (para. 20). In the instant case, on the other hand, it could be argued that the exemptions for the possession and cultivation of cannabis plants at home play a direct part in achieving a criminal law purpose, namely discouraging the illicit trade of cannabis. By this logic, the recognition of a positive right to self-cultivate could thus assist in limiting the demand for cannabis from illicit sources or criminal organizations, a purpose that would be undermined by the application of the absolute prohibitions enacted by the Quebec legislature.

[99] However, I cannot accept that exceptions or exemptions made under a scheme of criminal offences may give rise to positive rights, even where the exceptions or exemptions are closely related to the achievement of criminal law purposes. In recent years, the Court has circumscribed the scope of the federal criminal law power. In *Reference re AHRA*, for example, McLachlin C.J. cautioned that "a limitless definition [of what constitutes a valid criminal law purpose], combined with the doctrine of paramountcy, has the potential to upset the constitutional balance of federal-provincial powers" (para. 43). In my opinion, modifying the principles from *Rothmans* would present a similar risk to the constitutional balance of the federal system. The recognition of positive rights created out of exceptions or exemptions closely related to a valid criminal law purpose would improperly extend the scope of the federal criminal law power.

[100] The principles that emerge from *Rothmans* are relevant without having to be modified in any way and are applicable to this appeal. This means that the exemptions set out in ss. 8(1)(e) and 12(4)(b) of the federal Act are not sources of positive rights, despite the fact that they appear to be closely related to the criminal law purpose of combating illicit activities.

[101] Although this is not in itself determinative in deciding the question of operability, I would observe that the objectives pursued by Parliament and the provincial legislature are consistent. Protecting the health and security of the public and of young persons in particular, combating organized crime and ensuring access to quality-controlled products are all considerations that clearly motivated the enactment of the federal Act and the provincial Act.

[102] I note in this regard that the provincial prohibitions directly address several of the objectives set out in s. 7 of the federal Act. The provincial Act's absolute prohibitions against possession and cultivation presumably protect the health of young persons by restricting access to cannabis (s. 7(a)), since home cultivation by persons of full age could make this substance more accessible to minors living under the same roof. The prohibitions also prevent inducements to use cannabis (s. 7(b)), since the presence of cannabis plants in the home may *de facto* be considered an inducement. They assist in controlling the quality of the products offered (s. 7(f)), since home-cultivated cannabis is not subject to quality standards, such as the maximum concentration of the main active compound in cannabis, tetrahydrocannabinol ("THC"). They clearly contribute to public awareness of the health risks associated with cannabis consumption (s. 7(g)), since consumers can be provided with information more easily if they are within a regulated selling framework.

[103] Finally, I would add that even though Parliament and the provincial legislature have taken different approaches to self-cultivation, the provincial Act reflects a concern with combating organized crime, just as the federal Act does (s. 7(c) and (d)). The provincial legislature was of the view that, by contributing to the creation of a single market, the absolute prohibitions against possession and cultivation at home would serve to limit trafficking in cannabis from unauthorized sources. Furthermore, it is not this Court's role to decide which of the two approaches — prohibiting personal production or tolerating it — is most likely to reduce illicit activities in relation to cannabis. It is sufficient to note that this objective is what guided the legislative action of both levels of government in this case.

[104] Accordingly, I conclude that ss. 5 and 10 of the provincial Act do not frustrate the purposes stated in the federal Act, including that of reducing the presence of criminal organizations in the cannabis market, and that they are operative under the doctrine of federal paramountcy. The provincial Act's public health and security objectives and its prohibitions are, to a large degree, in harmony with the objectives of the federal Act, and there is no basis for finding a conflict of purposes.

7.7 Questions

1. How can we reconcile *BMO v Hall* with earlier cases such as *Ross* that upheld provincial laws so long as one could comply with both laws by complying with the stricter one? For example, in *Ross*, the driver could comply with the provincial license suspension simply by not driving at all. Similarly, in *BMO*, the bank could have provided notice of its intention to seize its collateral and then seized the farm machinery after that notice period had expired. It would simply have delayed the bank in realizing on its security interest. Does that delay constitute conflict?
2. Do you think *Moloney* clarifies the doctrine of paramountcy or further muddies the waters? Is it helpful to think about an older understanding of conflict which focused on the impossibility of dual effect? This understanding queries whether a judge could give effect to both provisions (for example, s. 102 of the TSA and s. 178(2) of the BIA)—which a judge could not do in *Moloney*. Is the impossibility of dual effect captured by either branch of paramountcy doctrine?
3. Justice Côté's concurring opinion in *Moloney* stated that the province should not be able to do indirectly what it cannot do directly. Recall this phrase from the *McKay* case about whether municipal bylaws (and, by extension, provincial legislation) could prohibit election signs on property as part of provincial jurisdiction over property and civil rights.
4. How would you characterize the operational conflict definition applied by the Supreme Court in *Murray Hall*? Is it the same definition as the one used by the Supreme Court in *Ross*? Has the case law consistently applied the same definition of conflict?
5. Do you agree with how the Court in *Murray Hall* interpreted the *Rothmans* case? Are you persuaded by the concept of a positive entitlement or a positive right? If not, how would you characterize the sections 8 and 12 of the federal *Cannabis Act*, which permit the possession and cultivation of up to four cannabis plants? Is there an alternative explanation for the outcome in *Murray Hall*?

For an overview of these doctrines, see: Eugénie Brouillet & Bruce Ryder, "Key Doctrines in Canadian Legal Federalism" in Peter Oliver, Patrick Macklem & Nathalie Des Rosiers, eds, The Oxford Handbook of the Canadian Constitution (Oxford: Oxford University Press, 2017).

8 Conclusion

Pith and substance analysis is the starting point and the heart of any division of powers question. The first question is: what is the matter? The answer to that first question may raise several others: does the legislation intrude on the other government's jurisdiction? If so, is that intrusion 'merely incidental'? If not, are the intruding provisions connected to an otherwise valid legislative scheme? Is the intrusion of a 'core' activity or undertaking of the other government? Is there duplication? Is that duplication harmonious or conflictual? What is the nature of the conflict?

It is important to remember that these interpretative doctrines constitute the toolbox of federalism analysis. Mastery of the tools in this toolbox is the prerequisite to the categorization stage, which comes only after the pith and substance of legislation has been determined. As you read the chapters which follow, consider the extent to which you think these two stages of federalism analysis can be held apart.

Chapter 7: Peace, Order, and Good Government

By Sujit Choudhry

1 The Historical Development of the POGG Power

Section 91 of the Constitution Act, 1867 sets out the "Classes of Subjects" that fall within the legislative authority of the Federal Parliament. However, the opening words of the section grant to the federal government a general power to make laws for the peace, order, and good government of the country. The classes of subjects (or heads of power) set out in s. 91 are provided "for greater Certainty" and do not "restrict the Generality" of the federal government's law-making power:

> **91** It shall be lawful for the Queen, by and with the Advice and Consent of the Senate and House of Commons, to make Laws for the Peace, Order, and good Government of Canada, in relation to all Matters not coming within the Classes of Subjects by this Act assigned exclusively to the Legislatures of the Provinces; and for greater Certainty, but not so as to restrict the Generality of the foregoing Terms of this Section, it is hereby declared that (notwithstanding anything in this Act) the exclusive Legislative Authority of the Parliament of Canada extends to all Matters coming within the Classes of Subjects next hereinafter enumerated;

In *Russell v. The Queen* and the *Local Prohibition Reference*, which are discussed in the Early Federalism chapter, the Judicial Committee of the Privy Council (JCPC) interpreted the POGG power broadly so that Parliament had the power to regulate matters "of general concern to the Dominion where uniformity of legislation is desirable" (*Russell*), or "matters, in their origin local and provincial [which] might attain such dimension as to affect the body politic of the Dominion" – i.e., "that has ceased to be merely local or provincial, and has become matter of national concern". However, in the early part of the 20th Century the JCPC adopted a narrower reading of scope of POGG, limiting its application to emergency situations or to matters not addressed under the division of powers (*Toronto Electric Commission* v. *Snider)*. The JCPC also defined such situations very narrowly. In *Reference re Natural Products Marketing Act*) the JCPC refused to accept that the Great Depression was an economic emergency that would support federal legislative intervention under the POGG power.

However, in the latter half of the 20th Century, beginning with the decision of Viscount Simon in *AG Ontario v Canada Temperance Federation*, 1946 CanLII 351 (UK JCPC), [1946] AC 193, there has been a re-emergence of the national concern or national dimension doctrine (terms that are used interchangeably).

With the abolition of appeals to the Privy Council in 1949, the Supreme Court of Canada (SCC) became Canada's final court of appeal. In decisions dealing with aeronautics and the national capital region, the SCC applied the national concern doctrine in a broad way. The SCC also applied the rarely used "gap" branch of the POGG to uphold federal legislation on official languages.

Johannesson v Rural Municipality of West St Paul, 1951 CanLII 55 (SCC), [1952] 1 SCR 292, struck down a municipal bylaw controlling the location of airports. The majority of the court held that aeronautics was a national concern that fell within exclusive federal jurisdiction, and therefore precluded the provinces from legislating "in relation to" aeronautics.

In an earlier decision of the JCPC, *Aeronautics Reference*, 1931 CanLII 466 (UK JCPC), [1932] AC 54 (PC), the Court had held that the federal government had jurisdiction to regulate aeronautics under the treaty power in s 132 of the *Constitution Act, 1867*. Section 132 conferred on Parliament the power to enact legislation implementing Imperial treaties entered into on behalf of Canada. However, once the Government of Canada assumed responsibility for the conduct of its own foreign affairs and began to enter treaties on its own behalf s 132 no longer provided a constitutional basis for federal laws implementing treaties that affected matters within provincial jurisdiction.

Five judges, in separate judgments, held that the federal government had exclusive jurisdiction over aeronautics under the POGG power. Justice Locke's reasons were representative:

> There has been since the First World War an immense development in the use of aircraft flying between the various provinces of Canada and between Canada and other countries. … The maintenance and extension of this traffic, particularly to the North, is essential to the opening up of the country and the development of the resources of the nation. It requires merely a statement of these well recognized facts to demonstrate that the field of aeronautics is one which concerns the country as a whole. It is an activity, which to adopt the language of Lord Simon in the *Attorney General for Ontario v Canada Temperance Federation*, must from its inherent nature be a concern of the Dominion as a whole. The field of legislation is not, in my opinion, capable of division in any practical way.

In *Munro v National Capital Commission*, 1966 CanLII 74 (SCC), [1966] SCR 663, Mr. Munro's property had been expropriated by the NCC as part of its development plan for the National Capital Region. Munro argued that the federal legislation, empowering the NCC to expropriate property, was a planning and zoning law that fell within provincial jurisdiction under s 92(13), property and civil rights. The SCC, however, held, unanimously, that the *National Capital Act*, RSC 1985, c N-3, was valid federal legislation under the POGG power. The purpose of the National Capital Commission (NCC) was to "prepare plans for and assist in the development, conservation and improvement of the National Capital Region in order that the nature and character of the seat of the Government of Canada may be in accordance with its national significance."

Cartwright J, writing for the SCC, held that the development of the National Capital Region was a "single matter of national concern." His judgment also foreshadowed what would become the "provincial inability" test in later national concern cases.

In *Jones v AG of New Brunswick*, 1974 CanLII 164 (SCC), [1975] 2 SCR 182, the SCC upheld the constitutionality of the federal *Official Languages Act*, which provided for the equal status of French and English in federal institutions. Laskin CJ, writing for the entire court, noting that federal institutions are "clearly beyond provincial reach" held that even if the subject matter of the federal law did not fall under a

particular federal head of power, it was covered by the opening words of s. 91 because "of the purely residuary character of the legislative power thereby conferred." This power to legislate in relation to residual matters is sometimes referred to as the “gap” branch of POGG.

In the modern era, the principal function of the “gap” branch has been used to uphold federal legislative authority over those parts of Canada which are physically outside the provinces – for example, the territories (Nunavut, the Northwest Territories, and the Yukon), the territorial sea, and the continental shelf.

2 The *Anti-Inflation Reference*: POGG and economic regulation

2.1 Introduction

A major turning point in the modern case-law on the national concern and emergency branches was the *Anti-Inflation Reference*, 1976 CanLII 16 (SCC), [1976] 2 SCR 373, which considered the constitutionality of the *Anti-Inflation Act*, SC 1974-75-76, c 75. The Act established a system of price, profit, and income controls. It applied to private sector firms with more than 500 employees, members of designated professions, construction firms with more than 20 employees, and other private sector firms declared to be of strategic importance to the scheme. Most of these private sector firms fell within provincial jurisdiction.

The Act was also binding on the federal public sector, but applicable to the public sector of each province only if an agreement was made between the federal government and the government of the province. 8 of 10 provinces entered into such agreements.

The Act was carefully drafted, to assert its validity under either the national concern branch or the emergency branch. The long title and preamble of the Act were as follows:

> *An Act to provide for the restraint of profit margins, prices, dividends and compensation in Canada*
>
> WHEREAS the Parliament of Canada recognizes that inflation in Canada at current levels is contrary to the interests of all Canadians and that the containment and reduction of inflation has become a matter of serious national concern;
>
> AND WHEREAS to accomplish such containment and reduction of inflation it is necessary to restrain profit margins, prices, dividends and compensation. …

The Act was temporary – it expired after three years.

The Governor in Council directed a reference to the Supreme Court of Canada to determine whether the Act was *ultra vires* and whether the Ontario agreement, purporting to make the Act applicable to the Ontario public sector, was valid.

A 7-2 majority (Justice Laskin CH, Judson, Spence, Dickson, Ritchie, Martland, and Pigeon JJ vs. Beetz and de Grandpré JJ) held upheld the Act under the emergency branch of the POGG power.

A different 5 judge majority (Ritchie, Martland, Pigeon, Beetz, and de Grandpré JJ) refused to uphold the Act under the national dimension branch. Four judges declined to consider the issue, because they had upheld the Act under the emergency branch.

Strictly speaking, Beetz J’s decision is *obiter*, because the case was decided on the emergency power. Nevertheless, it became one of the major modern statements on the national concern branch. The Supreme Court’s decision marked the end of the Court’s expansion of the national concern branch, when the federal government attempted to deploy it in a core area of provincial jurisdiction – the regulation of intraprovincial economic activity. Although the Court broadened the scope of the national concern branch to encompass the regulation of environmental pollution (in *Crown Zellerbach* and *References re Greenhouse Gas Pricing Act*, below), the *Anti-Inflation Reference* remains the leading decision on the national concern branch and economic policy. Moreover, Beetz J’s arguments have been relied on by the Court to hold that the environment is not a matter of national concern.

2.2 LASKIN CJ (Judson, Spence, and Dickson JJ concurring)

> [Laskin CJC first addressed the extrinsic evidence that had been filed by the federal government.]
>
> …
>
> The Attorney-General of Canada, having the carriage of the Reference, included in the case (1) the Order of Reference and the annexes thereto; (2) the federal Government’s White Paper, entitled “Attack on Inflation,” being the policy statement of the Minister of Finance tabled in the House of Commons on October 14, 1975, as a prelude to the introduction of the Bill, which became the *Anti-Inflation Act*, and to the Guidelines promulgated thereunder; and (3) the monthly bulletin of Statistics Canada for October, 1975, containing, *inter alia*, various consumer price indices showing the index position for certain periods up to and including September of 1975. Leave was given in the order for directions of April 6, 1976, to other interested parties to file additional materials, and the Canadian Labour Congress included as an appendix to its factum an untitled study by Professor Richard G. Lipsey, now a professor of economics at Queen’s University, Kingston, Ontario, in which he dealt with (1) the harm caused by inflation, (2) Canadian inflationary experience, (3) the state of the Canadian economy in 1975, and (4) various policy options in dealing with inflation, among them a prices and incomes policy. Telegrams from a large number of economists supporting the analysis made by Professor Lipsey were also submitted by the Canadian Labour Congress. The Attorney-General of Canada, following the filing of Professor Lipsey’s study and as permitted by the order for directions, filed in answer a transcript of a speech delivered on September 22, 1975, by the Governor of the Bank of Canada, Mr. Gerald Bouey. The Attorney-General of Ontario filed, after the permitted period for submitting answering material, a comment, prepared by the Ontario Office of Economic Policy, on the 1975 Economic Environment and the Anti-Inflation Programme, designed to show the need for national action; and it also submitted a critique of Professor Lipsey’s study, directed to the emphases of that study and to its interpretation of the historical context in which the federal anti-inflation programme was instituted.
>
> In order to assess how relevant and, if relevant, what weight should be assigned to the extrinsic material, it is necessary to examine the ambit of the legislative power under which the *Anti-Inflation Act* was enacted. … It may well be that in most situations it is unnecessary to go beyond the terms of the impugned legislation to determine its validity. Yet, even where this has been deemed sufficient Courts have thought it proper to consider the operation and effect of the legislation as providing a key to its purpose, especially where the allegation is that the legislation has been cast in a colourable form. …
>
> [N]o general principle of admissibility or inadmissibility can or ought to be propounded by this Court, and … questions of resort to extrinsic evidence and what kind of extrinsic evidence may be admitted must depend on the constitutional issues on which it is sought to adduce such evidence. …
>
> The present case is … one in which federal legislation is challenged as involving unconstitutional regulation, and I am of the opinion that extrinsic material, bearing on the circumstances in which the legislation was passed, may be considered by the Court in determining whether the legislation rests on a valid constitutional base. There is no issue in this case as to the meaning of the terms of the legislation nor, in my opinion, is there any issue as to the object of the legislation. As will appear from what follows, the arguments of the proponents and the opponents of the

Anti-Inflation Act turn substantially on whether the social and economic circumstances upon which Parliament can be said to have proceeded in passing the Act were such as to provide support for the Act in the power of Parliament to legislate for the peace, order and good government of Canada. The extrinsic material proffered in this case was directed to this question and may, hence, be properly considered thereon.

—II—

I turn, therefore, for the purposes of the present case and in order to answer the first question referred to this Court, to an examination of the constitutional basis for the *Anti-Inflation Act* … Simply put, the *Anti-Inflation Act* is supported by the Attorney-General of Canada under the opening words of s. 91 of the *British North America Act*, 1867 as being a law for the peace, order and good government of Canada in relation to matters not coming within the classes of subjects assigned exclusively to the Legislatures of the Provinces. …

The Attorney-General of Canada, supported by the Attorney-General of Ontario, put his position in support of the *Anti-Inflation Act* on alternative bases. He relied, primarily, on the *Canada Temperance Federation* case, contending that the Act, directed to containment and reduction of inflation, concerned a matter which went beyond local or private or provincial concern and was of a nature which engaged vital national interests, among them the integrity of the Canadian monetary system which was unchallengeably within exclusive federal protection and control. He urged, in the alternative, that there was an economic crisis amounting to an emergency or exceptional peril to economic stability sufficient to warrant federal intervention, and, if not an existing peril, there was a reasonable apprehension of an impending one that justified federal intervention through the legislation in question which was designed to support measures and policies of a fiscal and monetary character which were undoubtedly within Parliament's legislative authority. …

Since there was, in general, a concession by those opposing the legislation that it would be valid if it were what I may call crisis legislation, and since the proponents of the legislation urged this as an alternative ground on which its validity should be sustained, it appears to me to be the wise course to consider first whether the *Anti-Inflation Act* can be supported on that footing. If it is sustainable as crisis legislation, it becomes unnecessary to consider the broader ground advanced in its support [i.e., under the national concern doctrine], and this because, especially in constitutional cases, Courts should not, as a rule, go any farther than is necessary to determine the main issue before them.

The competing arguments on the question whether the Act is supportable as crisis legislation raised four main issues: (1) Did the *Anti-Inflation Act* itself belie the federal contention because of the form of the Act and, in particular, because of the exclusion of the provincial public sector from its imperative scope, notwithstanding that it is framed as a temporary measure albeit subject to extension of its operation? (2) Is the federal contention assisted by the preamble to the statute? (3) Does the extrinsic evidence put before the Court, and other matters of which the Court can take judicial notice without extrinsic material to back it up, show that there was a rational basis for the Act as a crisis measure? (4) Is it a tenable argument that exceptional character could be lent to the legislation as rising beyond local or provincial concerns because Parliament could reasonably take the view that it was a necessary measure to fortify action in other related areas of admittedly federal authority, such as that of monetary policy?

I have referred to the first of these issues earlier in these reasons. It goes to the form of the *Anti-Inflation Act* and to the question whether the scope of the compulsory application of the *Anti-Inflation Act* may be taken to indicate that the Parliament of Canada did not act through any sense of crisis or urgency in enacting it. I note that the federal public service, a very large public service, is governed by the Act and the Guidelines, that private employers of five hundred or more persons are subject to the Act and Guidelines, that the construction industry is particularly dealt with by making those who employ twenty or more persons in that industry subject to the Act and Guidelines and that the Act and Guidelines apply also to persons in various professions, including architects, accountants, dentists, engineers, lawyers, doctors and management consultants. Again, the Act provides for bringing within the Act and Guidelines businesses, irrespective of numbers employed, which are declared by Order in Council to be of strategic importance to the containment and reduction of inflation in Canada. Having regard to the enormous administrative problems which the programme entails, the coverage is comprehensive indeed in its immediately obligatory provisions. What is left out of compulsory coverage is the provincial public sector, including the municipal public sector, but provision is made for bringing this area into the programme under the Guidelines by agreements under s. 4(3) or s. 4(4) or s. 5.

I do not regard the provisions respecting the provincial public sector as an indicator that the Government and Parliament of Canada were not seized with urgency or manifested a lack of any sense of crisis in the establishment of the programme. Provincial governmental concern about rising inflation and concurrent unemployment was a matter of public record prior to the inauguration of the programme, and this Court was provided with copies of agreements that eight of the ten Provinces had made with the federal Government for the application therein of the federal Guidelines. Only British Columbia and Saskatchewan had not entered into agreements. With private industry and private services bound to the extent that they are, and with the federal public service also bound, I see it as a reasonable policy from the standpoint of administration to allow the Provinces to contract into the programme in respect of the provincial public sector under their own administration if this was their preference rather than by simply accepting, as they could, the federal administration. Since the "contracting in" is envisaged on the basis of the federal Guidelines the national character of the programme is underlined.

One of the submissions made by counsel [opposing the legislation] concerned provincial co-operation, but it was put in terms of an objection to the validity of the federal legislation, the proposition being that inflation was too sweeping a subject to be dealt with by a single authority, *i.e.*, the federal Parliament, and that the proper constitutional approach, at least as a first approach, was through federal–provincial co-operation in terms of their respective powers under the respective enumerations in ss. 91 and 92. If this is meant to suggest that Parliament cannot act in relation to inflation even in a crisis situation, I must disagree. No doubt, federal–provincial co-operation along the lines suggested might have been attempted, but it does not follow that the federal policy that was adopted is vulnerable because a co-operative scheme on a legislative power basis was not tried first. Co-operative federalism may be consequential upon a lack of federal legislative power, but it is not a ground for denying it. …

The Attorney-General of Canada … emphasized the words [in the preamble] "that the containment and reduction of inflation has become a matter of *serious* national concern" and as well the following words that "to accomplish such containment and reduction of inflation it is *necessary* to restrain profit margins, prices, dividends and compensation" (the italicized words were especially emphasized). I do not regard it as telling against the Attorney-General's alternative position that the very word "emergency" was not used. Forceful language would not carry the day for the Attorney-General of Canada if the circumstances attending its use did not support the constitutional significance sought to be drawn from it. Of course, the absence of any preamble would weaken the assertion of crisis conditions, and I have already drawn attention to the fact that no preamble suggesting a critical economic situation, indeed no preamble at all was included in the legislation challenged in the *Board of Commerce* case.

The preamble in the present case is sufficiently indicative that Parliament was introducing a far-reaching programme prompted by what in its view was a serious national condition. The validity of the *Anti-Inflation Act* does not, however, stand or fall on that preamble, but the preamble does provide a base for assessing the gravity of the circumstances which called forth the legislation.

This brings me to the third of the four issues above-mentioned, namely, the relevancy and weight of the extrinsic evidence and the assistance to be derived from judicial notice. When, as in this case, an issue is raised that exceptional circumstances underlie resort to a legislative power which may properly be invoked in such circumstances, the Court may be asked to consider extrinsic material bearing on the circumstances alleged, both in support of and in denial of the lawful exercise of legislative authority. In considering such material and assessing its weight, the Court does not look at it in terms of whether it provides proof of the exceptional circumstances as a matter of fact. The matter concerns social and economic policy and hence governmental and legislative judgment. It may be that the existence of exceptional circumstances is so notorious as to enable the Court, of its own motion, to take judicial notice of them without reliance on extrinsic material to inform it. Where this is not so evident, the extrinsic material need go only so far as to persuade the Court that there is a rational basis for the legislation which it is attributing to the head of power invoked in this case in support of its validity.

There is before this Court material from Statistics Canada, upon which the Court is justified in relying, which, proceeding from a base of 100 in 1971, shows that the purchasing power of the dollar dropped … What the Consumer Price Index shows, and Professor Lipsey himself relies on its figures, is that for the first time in many years Canada had a double digit inflation rate for successive years, *i.e.*, in 1974 and 1975, the index rising 10.9% in 1974 above its reading for 1973 and being 10.8% higher in 1975 than it was in 1974. Some monthly drops slightly below double digit rises do not materially affect the relevance of the annual figures.

There have been inflationary periods before in our history but, again referring to Professor Lipsey's study, "the problem of the coexistence of high unemployment and high inflation rates was not, however, encountered before the late 1960's." These twin conditions continued to the time that the Government and Parliament acted in establishing its prices and incomes policy under the *Anti-Inflation Act* and Guidelines, and were the prime reason for the policy. …

There is another consideration that arises from the submissions, particularly those of the Canadian Labour Congress, in opposition to the validity of the *Anti-Inflation Act* as a measure justified by crisis circumstances. The consideration I refer to is based on Professor Lipsey's study and on his conclusion that the policy adopted in the *Anti-Inflation Act* is not one that can, on the basis of experience elsewhere and on his appraisal as an economist, be expected to reduce the rate of inflation by more than one to two per cent. The answer to this submission is simple, and it is an answer that has been consistently given by the Courts, namely, that the wisdom or expediency or likely success of a particular policy expressed in legislation is not subject to judicial review. Hence, it is not for the Court to say in this case that because the means adopted to realize a desirable end, *i.e.*, the containment and reduction of inflation in Canada, may not be effectual, those means are beyond the legislative power of Parliament.

I would not exclude the possibility that the means chosen to deal with an alleged evil may be some indicator of whether that evil exists as a foundation for legislation. Professor Lipsey is candid enough to say in his study that whether "a problem is serious enough to be described as a crisis must be partly a matter of judgment." The general question to which his study is directed is, to use his words, "could an economist say that the Canadian economy faced an economic crisis, or was in a critical situation, in October 1975?" He answers this question in the negative on the basis, *inter alia*, of comparative assessment of different periods, and he is supported in this view by many other economists. The Court cannot, however, be concluded by the judgment of an economist, distinguished as he is in the opinion of his peers, on a question of the validity of the exercise of the legislative power invoked in this case. The economic judgment can be taken into account as an element in arriving at an answer to the question whether there is a rational basis for the governmental and legislative judgment exercised in the enactment of the *Anti-Inflation Act*. It cannot determine the answer.

In my opinion, this Court would be unjustified in concluding, on the submissions in this case and on all the material put before it, that the Parliament of Canada did not have a rational basis for regarding the *Anti-Inflation Act* as a measure which, in its judgment, was temporarily necessary to meet a situation of economic crisis imperilling the well-being of the people of Canada as a whole and requiring Parliament's stern intervention in the interests of the country as a whole. That there may have been other periods of crisis in which no similar action was taken is beside the point.

The rationality of the judgment so exercised is, in my view, supported by a consideration of the fourth of the issues which I enumerated above. The fact that there had been rising inflation at the time federal action was taken, that inflation is regarded as a monetary phenomenon and that monetary policy is admittedly within exclusive federal jurisdiction persuades me that the Parliament of Canada was entitled, in the circumstances then prevailing and to which I have already referred, to act as it did from the springboard of its jurisdiction over monetary policy and, I venture to add, with additional support from its power in relation to the regulation of trade and commerce. The Government White Paper refers to a prices and incomes policy as one element in a four-pronged programme of which the first engages its fiscal and monetary authority; and although the White Paper states that the Government rejects the use of severe monetary and fiscal restraints to stop inflation because of the alleged heavy immediate cost in unemployment and foregone output, it could seek to blend policies in those areas with a prices and incomes policy under the circumstances revealed by the extrinsic material. …

For all the foregoing reasons, I would hold that the *Anti-Inflation Act* is valid legislation for the peace, order and good government of Canada and does not, in the circumstances under which it was enacted and having regard to its temporary character, invade provincial legislative jurisdiction. …

2.3 BEETZ J (de Grandpré J concurring) (dissenting):

… The control and regulation of local trade and of commodity pricing and of profit margins in the provincial sectors have consistently been held to lie, short of a national emergency, within exclusive provincial jurisdiction. … The same is true generally of the contract of employment, including wages, whether concluded on an individual basis or collectively in the context of labour relations. …

The *Anti-Inflation Act*, therefore, and the Guidelines directly and ostensibly interfere with classes of matters which have invariably been held to come within exclusive provincial jurisdiction, more particularly property and civil rights and the law of contract. They do not interfere with provincial jurisdiction in an incidental or ancillary way, but in a frontal way and on a large scale. *Prima facie*, the *Anti-Inflation Act* is *pro tanto ultra vires* of the Parliament of Canada which, under s. 91 of the Constitution, cannot make laws in relation to matters "coming within the classes of subjects by this Act assigned exclusively to the Legislatures of the Provinces." …

I

The first submission made by counsel for Canada and for Ontario is that the subject-matter of the *Anti-Inflation Act* is the containment and the reduction of inflation. This subject-matter, it is argued, goes beyond local provincial concern or interest and is from its inherent nature the concern of Canada as a whole and falls within the competence of Parliament as a matter affecting the peace, order and good government of Canada. It was further submitted that the competence of Parliament over the subject of inflation may be supported by reference to the following heads of s. 91 of the Constitution: [ss 91(2), (3), (4), (14), (15), (16), (19), and (20)].

…

If the first submission is to be accepted, then it must be conceded that the *Anti-Inflation Act* could be compellingly extended to the provincial public sector. Parliament has not done so in this case as a matter of legislative policy but, it could decide to control and regulate at least the maximum salaries paid to all provincial public servants notwithstanding any provincial appropriations, budgets and laws. Parliament could also regulate wages paid by municipalities, educational institutions, hospitals and other provincial services as well as tuition or other fees charged by some of these institutions for their services. Parliament could occupy the whole field of rent controls. Since in time of inflation there can be a great deal of speculation in certain precious possessions such as land or works of arts, Parliament could move to prevent or control that speculation not only in regulating the trade or the price of those possessions but by any other efficient method reasonably connected with the control of inflation. For example Parliament could presumably enact legislation analogous to mortmain legislation and even extend it to individuals. Parliament could control all inventories in the largest as in the smallest undertakings, industries and trades. Parliament could ration not only food but practically everything else in order to prevent hoarding and unfair profits. One could even go further and argue that since inflation and productivity are greatly interdependent, Parliament could regulate productivity, establish quotas and impose the output of goods or services which corporations, industries, factories, groups, areas, villages, farmers, workers, should produce in any given period. Indeed, since practically any activity or lack of activity affects the gross national product, the value of the Canadian dollar and, therefore, inflation, it is difficult to see what would be beyond the reach of Parliament. Furthermore, all those powers would belong to Parliament permanently; only a constitutional amendment could reduce them. Finally, the power to regulate and control inflation as such would belong to Parliament to the exclusion of the Legislatures if, as is contended, that power were to vest in Parliament in the same manner as the power to control and regulate aeronautics or radio communication or the power to develop and conserve the national capital (*Aeronautics*, *Radio*, *Johannesson* and *Munro* cases): the Provinces could probably continue to regulate profit margins, prices, dividends and compensation if Parliament saw fit to leave them any room; but they could not regulate them in relation to inflation which would have become an area of exclusive federal jurisdiction.

Such are the constitutional imports of the first submission in terms of the so-called subject-matter of inflation.

Its effects on the principles which underlie the distribution of other powers between Parliament and the Legislatures are even more far-reaching assuming there would be much left of the distribution of powers if Parliament has exclusive authority in relation to the "containment and reduction of inflation."

If the first submission is correct, then it could also be said that the promotion of economic growth or the limits to growth or the protection of the environment have become global problems and now constitute subject-matters of national concern going beyond local provincial concern or interest and coming within the exclusive legislative authority of Parliament. It could equally be argued that older subjects such as the business of insurance or labour relations, which are not specifically listed in the enumeration of federal and provincial powers and have been held substantially to come within provincial jurisdiction have outgrown provincial authority whenever the business of insurance or labour have become national in scope. It is not difficult to speculate as to where this line of reasoning would lead: a fundamental feature of the Constitution, its federal nature, the distribution of powers between Parliament and the provincial Legislatures, would disappear not gradually but rapidly. …

This submission is predicated upon the proposition that the subject-matter of the *Anti-Inflation Act*, its pith and substance, is inflation or the containment and reduction of inflation. …

The "containment and reduction of inflation" can be achieved by various means including monetary policies—a federal field; the reduction of public expenditures—federal, provincial and municipal; and the restraint of profits, prices and wages—a federal or a provincial field depending on the sector.

I have no reason to doubt that the *Anti-Inflation Act* is part of a more general programme aimed at inflation and which may include fiscal and monetary measures and Government expenditure policies. I am prepared to accept that inflation was the occasion or the reason for its enactment. But I do not agree that inflation is the subject-matter of the Act. In order to characterize an enactment, one must look at its operation, at its effects and at the scale of its effects rather than at its ultimate purpose where the purpose is practically all-embracing. If for instance Parliament is to enact a tax law or a monetary law as a part of an anti-inflation programme no one will think that such laws have ceased to be a tax law or a monetary law and that they have become subsumed into their ultimate purpose so that they should rather be characterized as "anti-inflation laws," an expression which, in terms of actual content, is not meaningful. They plainly remain and continue to be called a tax law or a monetary law, although they have been enacted by reason of an inflationary situation. When the Bank of Canada changes its rate of interest, it must obviously take inflation into account; even if inflation is the main reason for such a measure, this measure will still be characterized by everyone as a central banking measure relating to interest. The same would also be said of a measure relating to the issue of currency; although it may have been dictated by inflationary trends, it remains a measure relating to currency, coinage or the issue of paper money. Similarly, the *Anti-Inflation Act* is, as its preamble states, clearly a law relating to the control of profit margins, prices, dividends and compensation, that is, with respect to the provincial private sector, a law relating to the regulation of local trade, to contract and to property and civil rights in the Provinces, enacted as part of a programme to combat inflation. Property and civil rights in the Provinces are, for the greater part, the pith and substance or the subject-matter of the *Anti-Inflation Act*. According to the Constitution, Parliament may fight inflation with the powers put at its disposal by the specific heads enumerated in s. 91 or by such powers as are outside of s. 92. But it cannot, apart from a declaration of national emergency or from a constitutional amendment, fight inflation with powers exclusively reserved to the Provinces, such as the power to make laws in relation to property and civil rights. This is what Parliament has in fact attempted to do in enacting the *Anti-Inflation Act*.

The authorities relied upon by Counsel for Canada and Ontario in support of the first submission are connected with the constitutional doctrine that became known as the national concern doctrine or national dimension doctrine. …

In my view, the incorporation of companies for objects other than provincial, the regulation and control of aeronautics and of radio, the development, conservation and improvement of the National Capital Region are clear instances of distinct subject-matters which do not fall within any of the enumerated heads of s. 92 and which, by nature, are of national concern.

I fail to see how the authorities which so decide lend support to the first submission. They had the effect of adding by judicial process new matters or new classes of matters to the federal list of powers. However, this was done only in cases where a new matter was not an aggregate but had a degree of unity that made it indivisible, an identity which made it distinct from provincial matters and a sufficient consistence to retain the bounds of form. The scale upon which these new matters enabled Parliament to touch on provincial matters had also to be taken into consideration before they were recognized as federal matters: if an enumerated federal power designated in broad terms such as the trade and commerce power had to be construed so as not to embrace and smother provincial powers (*Parsons* ' case) and destroy the equilibrium of the Constitution, the Courts must be all the more careful not to add hitherto unnamed powers of a diffuse nature to the list of federal powers.

The "containment and reduction of inflation" does not pass muster as a new subject matter. It is an aggregate of several subjects some of which form a substantial part of provincial jurisdiction. It is totally lacking in specificity. It is so pervasive that it knows no bounds. Its recognition as a federal head of power would render most provincial powers nugatory.

I should add that inflation is a very ancient phenomenon, several thousand years old, as old probably as the history of currency. The Fathers of Confederation were quite aware of it. …

For those reasons, the first submission fails.

II

The second submission made in support of the validity of the *Anti-Inflation Act* is that the inflationary situation was in October of 1975, and still is such as to constitute a national emergency of the same significance as war, pestilence or insurrection and that there is in Parliament an implied power to deal with the emergency for the safety of Canada as a whole; that such situation of exceptional necessity justified the enactment of the impugned legislation.

Before I deal with this second submission I should state at the outset that I am prepared to assume the validity of the following propositions:

- the power of Parliament under the national emergency doctrine is not confined to war situations or to situations of transition from war to peace; an emergency of the nature contemplated by the doctrine may arise in peace time;
- inflation may constitute such an emergency;
- Parliament may validly exercise its national emergency powers before an emergency actually occurs; a state of apprehended emergency or crisis suffices to justify Parliament in taking preventive measures including measures to contain and reduce inflation where inflation amounts to state of apprehended crisis.

In order to decide whether the *Anti-Inflation Act* is valid as a national emergency measure, one must first consider the way in which the emergency doctrine operates in the Canadian Constitution; one must find, in the second place whether the *Anti-Inflation Act* was in fact enacted on the basis that it was a measure to deal with a national emergency in the constitutional sense.

In referring to the emergency doctrine, the Judicial Committee has sometimes used expressions which would at first appear to indicate that there is no difference between the national dimension or national concern doctrine and the emergency doctrine, the latter being but an instance of the first, or that the distribution of powers between Parliament and the provincial Legislatures is not altered by a state of emergency, or again that when Parliament deals with a matter which in normal times would be an exclusively provincial matter, it does so under a federal aspect or in a new relation which lies outside of s. 92 of the Constitution. …

I disagree with the proposition that the national concern or national dimension doctrine and the emergency doctrine amount to the same. Even if it could be said that "where an emergency exists it is the emergency which gives the matter its dimension of national concern or interest" (Le Dain, *op. cit.*, p. 291) the emergency does not give the matter the same dimensions as the national concern doctrine applied for instance in the *Aeronautics* case or in the *Munro* case. The national concern doctrine illustrated by these cases applies in practice as if certain heads such as aeronautics or the development and conservation of the national capital were added to the categories of subject-matters enumerated in s. 91 of the Constitution when it is found by the Courts that, in substance, a class of subjects not enumerated in either s. 91 or s. 92 lies outside the first fifteen heads enumerated in s. 92 and is not of a merely local or private nature. Whenever the national concern theory is applied, the effect is permanent although it is limited by the identity of the subject newly recognized to be of national dimensions. By contrast, the power of Parliament to make laws in a great crisis knows no limits other than those which are dictated by the nature of the crisis. But one of those limits is the temporary nature of the crisis. …

… if one looks at the practical effects of the exercise of the emergency power, one must conclude that it operates so as to give to Parliament for all purposes necessary to deal with the emergency, concurrent and paramount jurisdiction over matters which would normally fall within exclusive provincial jurisdiction. To that extent, the exercise of that power amounts to a temporary *pro tanto* amendment of a federal Constitution by the unilateral action of Parliament. The legitimacy of that power is derived from the Constitution: when the security and the continuation of the Constitution and of the nation are at stake, the kind of power commensurate with the situation "is only to be found in that part of the constitution which establishes power in the state as a whole" (Viscount Haldane in the *Fort Frances* case, p. 704).

The extraordinary nature and the constitutional features of the emergency power of Parliament dictate the manner and form in which it should be invoked and exercised. It should not be an ordinary manner and form. At the very least, it cannot be a manner and form which admits of the slightest degree of ambiguity to be resolved by interpretation. In cases where the existence of an emergency may be a matter of controversy, it is imperative that Parliament should not have recourse to its emergency power except in the most explicit terms indicating that it is acting on the basis of that power. Parliament cannot enter the normally forbidden area of provincial jurisdiction unless it gives an unmistakable signal that it is acting pursuant to its extraordinary power. Such a signal is not conclusive to support the legitimacy of the action of Parliament but its absence is fatal. It is the duty of the Courts to uphold the Constitution, not to seal its suspension, and they cannot decide that a suspension is legitimate unless the highly exceptional power to suspend it has been expressly invoked by Parliament. Also, they cannot entertain a submission implicitly asking them to make findings of fact justifying even a temporary interference with the normal constitutional process unless Parliament has first assumed responsibility for affirming in plain words that the facts are such as to justify the interference. The responsibility of the Courts begins after the affirmation has been made. If there is no such affirmation, the Constitution receives its normal application. Otherwise, it is the Courts which are indirectly called upon to proclaim the state of emergency whereas it is essential that this be done by a politically responsible body.

We have not been referred to a single judicial decision, and I know of none, ratifying the exercise by Parliament of its national emergency power where the constitutional foundation for the exercise of that power had not been given clear utterance to. And, apart from judicial decisions, I know of no precedent where it could be said that Parliament had attempted to exercise such an extraordinary power by way of suggestion or innuendo.

The use of the national emergency power enables Parliament to override provincial laws in potentially every field: it must be explicit.

This is not to say that Parliament is bound to use ritual words. Words such as "emergency" are not necessarily required and they may indeed be used in a non-constitutional sense since Parliament can enact emergency or urgent legislation in fields *prima facie* coming within its normal authority. …

… What is required from Parliament when it purports to exercise its extraordinary emergency power in any situation where a dispute could arise as to the existence of the emergency and as to the constitutional foundation of its action, is an indication, I would even say a proclamation, in the title, the preamble or the text of the instrument, which cannot possibly leave any doubt that, given the nature of the crisis, Parliament in fact purports to act on the basis of that power. The Statutes of Canada and the Canada Gazette contain several examples of laws, proclamations and Orders in Council which leave room for no doubt that they have been enacted pursuant to the exceptional emergency power of Parliament, or issued or passed under the authority of an Act of Parliament enacted by virtue of that power. Those dealing with wartime or post-wartime conditions usually present no difficulty given the global aspect of modern warfare, the total conscription of activities which it is susceptible to impose upon nations, and the general recognition of the factual situation. …

The *Anti-Inflation Act* fails in my opinion to pass the test of explicitness required to signal that it has been enacted pursuant to the national emergency power of Parliament.

The preamble has been much relied upon:

> WHEREAS the Parliament of Canada recognizes that inflation in Canada at current levels is contrary to the interests of all Canadians and that the containment and reduction of inflation has become a matter of serious national concern;

> AND WHEREAS to accomplish such containment and reduction of inflation it is necessary to restrain profit margins, prices, dividends and compensation;
>
> The words "a matter of serious national concern" have been emphasized.
>
> I remain unimpressed.
>
> The death penalty is a matter of national concern. So is abortion. So is the killing or maiming of innumerable people by impaired drivers. So is the traffic in narcotics and drugs. One can conceive of several drastic measures, all coming within the ordinary jurisdiction of the Parliament of Canada, and which could be preceded by a preamble reciting that a given situation had become a matter of serious national concern. I fail to see how the adding of the word "serious" can convey the meaning that Parliament has decided to embark upon an exercise of its extraordinary emergency power. …
>
> There is nothing in the rest of the Act and in the Guidelines to show that they have been passed to deal with a national emergency. There is much, on the other hand, within the Act and the Guidelines, in terms of actual or potential exemptions which is inconsistent with the nature of a global war launched on inflation considered as a great emergency. It would not be within our province to judge the efficacy and wisdom of the legislation if it were truly enacted to deal with an extraordinary crisis but its lack of comprehensiveness may be indicative of its ordinary character.
>
> [Beetz J reviewed the various exemptions under the Act and the optional application to the provincial public sector by provincial consent.]
>
> It may be argued that those exemptions and options were put into the Act and the Guidelines in order to make their administration lighter and easier or as a matter of federal–provincial comity. Still, a situation of national emergency does not, at first sight, lend itself to opting in and opting out formulae nor to large scale exemptions.
>
> We have been invited to go outside the Act and the Guidelines and consider extrinsic evidence and take judicial notice of facts of public knowledge.
>
> It is a fact for instance that provincial Governments were seriously concerned about rising inflation and that eight of the ten Provinces have entered into agreements with the Government of Canada for the application of the federal guidelines. But I cannot regard that concern and these agreements as a recognition that Parliament was acting under its national emergency power when it enacted the *Anti-Inflation Act*. Only Parliament, or under a law of Parliament, the Government of Canada, can assume responsibility for declaring a state of national emergency; it would be delicate and probably unwarranted for the Courts to count Provinces and to evaluate the degree of provincial support in such a matter. …
>
> We were provided with a wealth of extrinsic material the consideration of which, it was expected, would enable us to make a finding of fact as to whether or not inflation had reached a level which justified Parliament's reliance on its extraordinary power or as to whether or not there was a rational basis for Parliament to judge that it could rely upon that power. I do not reach that point, of course, since I hold the view that Parliament did not rely upon its extraordinary power. It seems to me, however, that, if we are entitled to look at extrinsic material such as a policy statement tabled in the House of Commons by the Minister of Finance, statistics, an economic study, a speech delivered by the Governor of the Bank of Canada, it is not improper for us to read Hansard in this case, in order not to construe and apply the provisions of the *Anti-Inflation Act*, but to ascertain its constitutional pivot. A perusal of the debates reveals that between October 14, 1975, when the policy statement was tabled—the *Anti-Inflation Bill* C-73 was read for the first time in the Commons on October 16, 1975—and the third reading and the passing of the Bill in the Senate on December 10, 1975, the question was raised repeatedly in both Houses and in Committee as to what was the constitutional foundation of the Bill and as to whether it was not necessary expressly to declare a state of emergency in order to insure its constitutionality. The replies vary but slightly; their general tenor is to the effect that Parliament has jurisdiction to pass the bill as drafted under the peace, order and good government power—which is rather unrevealing—in addition to other specific federal powers enumerated in s. 91 of the Constitution. …
>
> Reliance upon those statements is not essential to my conclusions. However, they reinforce my opinion that the *Anti-Inflation Act* was enacted in this form because it was believed, erroneously, that Parliament had the ordinary power to enact it under the national concern or national dimension doctrine, that is, a basis which coincides identically with the first submission made to us by counsel for Canada. Parliament did not purport to enact it under the extraordinary power which it possesses in time of national crisis.
>
> The *Anti-Inflation Act* is in my opinion *ultra vires* of Parliament in so far at least as it applies to the provincial private sector; but severability having not been pleaded by counsel for Canada, I would declare the Act *ultra vires* of Parliament in whole.

2.4 RITCHIE J (Martland and Pigeon JJ concurring)

> [Ritchie J, with Martland and Pigeon JJ concurring, agreed with Beetz J that the national concern doctrine did not apply. He went on to find that the legislation was justified under the national emergency doctrine, relying on the Act's preamble and the government's White Paper to show that Parliament was motivated "by a sense of urgent necessity created by highly exceptional circumstances." In his view, the opponents of the legislation had failed to show by "very clear evidence that an emergency had not arisen when the statute was enacted.]

2.5 Other implications of the *Anti-Inflation Reference*

2.5.1 Extrinsic Evidence

The *Anti-Inflation Reference* admitted social-science briefs in constitutional cases where legislative facts are in issue. *Re Residential Tenancies Act*, 1981 CanLII 24 (SCC), [1981] 1 SCR 714 elaborated on the admissibility of extrinsic evidence in constitutional cases in (at 723):

> We should be loathe, it seems to me, to enunciate any inflexible rule governing the admissibility of extrinsic materials in constitutional references. The effect of such a rule might well be to exclude logically relevant and highly probative evidence. It is preferable, I think, to follow the practice adopted in the *Anti-Inflation Reference* and give timely directions establishing the evidence or extraneous materials to be admitted to serve the ends of the Court in the particular reference. Generally speaking, for the purpose of constitutional characterization of an Act we should not deny ourselves such assistance as Royal Commission reports or Law Reform Commission reports underlying and forming the basis of the legislation under study, may afford. The weight to be given such reports is, of course, an entirely different matter. They may carry great, little, or no weight, but at least they should, in my view, generally be admitted as an aid in determining the social and economic conditions under which the Act was enacted. … The mischief at which the Act was directed, the background against which the legislation was enacted and institutional framework in which the Act is to operate are all logically relevant.

Reference re Upper Churchill Water Rights Reversion Act, 1984 CanLII 17 (SCC), [1984] 1 S.C.R. 297 at 318, emphasized that the purpose to which extrinsic evidence could be put: "in constitutional cases, particularly where there are allegations of colourability, extrinsic evidence may be considered to ascertain not only the operation and effect of the impugned legislation but its true object and purpose as well." In that case, the SCC refused to admit as evidence speeches that were made in the Newfoundland Legislative Assembly at the time the relevant law

was enacted. The SCC thought that the speeches of individual political actors could not be said to represent the intent of the legislature. However, in *R v Morgentaler*, 1993 CanLII 74 (SCC), [1993] 3 SCR 463 at 484-85 (which is discussed in other chapters) the SCC decided that Hansard evidence could be admitted:

> Provided that the court remains mindful of the limited reliability and weight of Hansard evidence, it should be admitted as relevant to both the background and the purpose of legislation. Indeed, its admissibility in constitutional cases to aid in determining the background and purpose of legislation now appears well established.

2.5.2 The federal Emergencies Act

Parliament enacted new legislation to deal with national emergencies in 1988: the *Emergencies Act*, RSC 1985, c 22 (4th Supp), enacted SC 1988, c 29. Several features of the Act reflect the concern expressed by Beetz J in the *Anti-Inflation Reference*: that the exercise of the emergency power "amounts to a *temporary pro tanto* amendment of a federal Constitution by the unilateral action of Parliament". They also reflect Laskin CJC's view that there must be a "rational basis" for the emergency.

First, section 3 defines a "national emergency" as

> an urgent and critical situation of a temporary nature that
>
> (a) seriously endangers the lives, health or safety of Canadians and is of such proportions or nature as to exceed the capacity or authority of a province to deal with it, or
>
> (b) seriously threatens the ability of the Government of Canada to preserve the sovereignty, security and territorial integrity of Canada
>
> and that cannot be effectively dealt with under any other law of Canada.

The definition establishes two kinds of emergency. The first kind of emergency that "seriously endangers the lives, health or safety of Canadians" includes the requirement that the emergency be "of such proportions or nature as to exceed the capacity or authority of a province to deal with it". This definition presupposes that the provinces, in the first instance, will respond to these emergencies. It also requires that the federal government demonstrate that the situation exceed provincial capacity or authority. Provincial authority refers to legal powers, whereas capacity refers to operational capabilities (for example, personnel, equipment, expertise). The definition does not refer to situations where provinces have capacity and authority but choose not to act. The second kind of emergency – threats to Canada's sovereignty, security and territorial integrity – do not incorporate this requirement, as they are external threats that the federal government has core responsibility for addressing through its power over national defence under s. 91(7) of the *Constitution Act*, 1867.

In addition, the requirement that the situation "cannot be effectively dealt with under any other law of Canada" also raises questions of federalism, in cases where provinces enforce federal laws. The principal area where this occurs is criminal law, local and provincial police, the RCMP, when acting as contract police for provinces or municipalities, enforce the federal *Criminal Code*.

Second, the Act sets out four kinds of emergencies: public welfare, public order, international, and war emergencies. What is notably absent from this list is economic emergencies, which was at the heart of the *Anti-Inflation Reference*. Moreover, each kind of emergency must be a national emergency, and meet additional criteria. Public welfare and public order emergencies fall in areas of provincial jurisdiction. Section 5 defines a "public welfare emergency" as:

> an emergency that is caused by a real or imminent
>
> **(a)** fire, flood, drought, storm, earthquake or other natural phenomenon,
>
> **(b)** disease in human beings, animals or plants, or
>
> **(c)** accident or pollution
>
> and that results or may result in a danger to life or property, social disruption or a breakdown in the flow of essential goods, services or resources, so serious as to be a national emergency.

Section 16 defines a "public order emergency" as "an emergency that arises from threats to the security of Canada and that is so serious as to be a national emergency", and further defines "threats to the security of Canada" as having the same meaning as under the *Canadian Security Intelligence Service Act*.

Third, the Act vests the federal Cabinet (Governor in Council) with the power to declare an emergency, but only if it has "reasonable grounds" doing so – akin to a reasonable basis. The declaration must concisely describe the state of affairs constituting the emergency and it must be confirmed by Parliament. The declaration must be temporary, which reflects the extraordinary nature of the emergency power. The "reasonable grounds" requirement

Fourth, a declaration of an emergency cannot be made without prior consultation with affected provincial governments. The nature of provincial consultation varies. It is mandatory for public welfare and public order emergencies. If the federal government declares a public order or public welfare emergency in a single province, that province must consent.

For many years, the *Emergencies Act* was not used – for example, after 9/11, and in response to the global public health emergency caused by the COVID-19 pandemic. But in February 2022, the federal Cabinet declared a public order emergency across Canada, in response to protests regarding public health restrictions to address COVID-19, which at their peak blocked several major border crossings (including the Ambassador Bridge in Windsor) and occupied downtown Ottawa. Pursuant to its emergency powers, Cabinet promulgated regulations that prohibited participation in a public assembly that may reasonably be expected to lead to a breach of the peace, and travel to/within such assemblies. It also issued a regulation that sought gather financial information about those participating in the unlawful assemblies and to freeze their assets.

Cabinet's invocation of the Act was successfully challenged on administrative law grounds in the Federal Court: *Canadian Front Line Nurses et al. v. AGC*, 2024 FC 42. Federalism was a central theme. According to the Court, Cabinet had not justified its "conclusion that it [i.e. the protests] could not have been effectively dealt with under other laws of Canada … or that it exceeded the capacity or authority of a province to deal with it" in the face of the evidence (para. 254). For example, Cabinet asserted that the purported emergency "exists throughout Canada" but had not justified this conclusion in the face of evidence that showed this assertion was "an overstatement of the situation known to the Government at that time" (para. 248). The Court also rejected the AG of Canada's argument that "new blockades could emerge", because Cabinet had not justified this conclusion in the face of "the evidence available to Cabinet … that these were being dealt with by local and provincial authorities, through arrests and superior court injunctions, aside from the impasse which remained in Ottawa" (paras. 248, 249). As for Ottawa, Cabinet had not addressed the fact that "there appears to have been no obstacle to assembling the large number of police officers from a variety of other forces ultimately required to assist the OPS [Ottawa Police Service] to remove the blockade participants", and the impasse was a product of "the overwhelming volume of protesters" and "a failure of leadership and determination, together with a mistaken assumption that the protest would be short lived."(paras. 250, 252).

At the time of writing, the Federal Court's decision is on appeal to the Federal Court of Appeal.

3 *Crown Zellerbach*: Environmental Pollution

Prior to *References Re Greenhouse Gas Pollution Pricing Act*, 2021 SCC 11 (discussed below), the leading modern case on the national dimension doctrine was R. *v. Crown Zellerbach*, 1988 CanLII 63 (SCC), [1988] 1 SCR 401. It is also a leading case on the scope of federal jurisdiction over environmental pollution.

The majority judgment was issued by Le Dain J (Dickson C.J. and McIntyre, Wilson JJ concurring). La Forest J. (Beetz and Lamer JJ) dissented. The debate between Le Dain and La Forest JJ anticipated many of the themes in *References Re Greenhouse Gas Pollution Pricing Act* (which is included later in this chapter), including the interprovincial and international character of pollution and the provincial inability test.

3.1 LE DAIN J (Dickson C.J. and McIntyre, Wilson JJ concurring)

[1] The question raised by this appeal is whether federal legislative jurisdiction to regulate the dumping of substances at sea, as a measure for the prevention of marine pollution, extends to the regulation of dumping in provincial marine waters. In issue is the validity of s. 4(1) of the *Ocean Dumping Control Act*, S.C. 1974-75-76, c. 55, which prohibits the dumping of any substance at sea except in accordance with the terms and conditions of a permit, the sea being defined for the purposes of the Act as including the internal waters of Canada other than fresh waters. …

[3] The general purpose of the *Ocean Dumping Control Act* is to regulate the dumping of substances at sea in order to prevent various kinds of harm to the marine environment. The Act would appear to have been enacted in fulfillment of Canada's obligations under the *Convention on the Prevention of Marine Pollution by Dumping of Wastes and other Matter*, which was signed by Canada on December 29, 1972. That is not expressly stated in the Act, but there are several references to the Convention in the Act … .

[4] The concerns of the Act are reflected in the nature of the prohibited and restricted substances in Schedules I and II and in the factors to be taken into account by the Minister of the Environment in granting permits to dump, which are set out in ss. 9 and 10 of the Act and in Schedule III. What these provisions indicate is that the Act is concerned with marine pollution and its effect on marine life, human health and the amenities of the marine environment. There is also reference to the effect of dumping on navigation and shipping and other legitimate uses of the sea. …

[12] The respondent [i.e. Crown Zellerbach] carries on logging operations on Vancouver Island in connection with its forest products business in British Columbia and maintains a log dump on a water lot leased from the provincial Crown for the purpose of log booming and storage in Beaver Cove, off Johnstone Strait, on the northeast side of Vancouver Island. The waters of Beaver Cove are *inter fauces terrae*, or as put in the stated case, "Beaver Cove is of such size that a person standing on the shoreline of either side of Beaver Cove can easily and reasonably discern between shore and shore of Beaver Cove." On August 16 and 17, 1980 the respondent, using an 80-foot crane operating from a moored scow, dredged woodwaste from the ocean floor immediately adjacent to the shoreline at the site of its log dump in Beaver Cove and deposited it in the deeper waters of the cove approximately 60 to 80 feet seaward of where the woodwaste had been dredged. The purpose of the dredging and dumping was to allow a new A-frame structure for log dumping to be floated on a barge to the shoreline for installation there and to give clearance for the dumping of bundled logs from the A-frame structure into the waters of the log dump area. The woodwaste consisted of waterlogged logging debris such as bark, wood and slabs. There is no evidence of any dispersal of the woodwaste or any effect on navigation or marine life. At the relevant time the only permit held by the respondent under the Act was one issued on or about July 28, 1980, effective until July 25, 1981, to dump at a site in Johnstone Strait some 2.2 nautical miles from the place where the woodwaste was dumped. …

[Crown Zellerbach was charged with dumping of substances at "sea" accept in accordance with the terms and conditions of a permit. In defence to the charge, Crown Zellerbach challenged the constitutionality of the Act in its application to provincial marine waters, on federalism grounds]

[16]… The respondent concedes, as it must, that Parliament has jurisdiction to regulate dumping in waters lying outside the territorial limits of any province. It also concedes that Parliament has jurisdiction to regulate the dumping of substances in provincial waters to prevent pollution of those waters that is harmful to fisheries … . It further concedes, in view of the opinion expressed in this Court in *Interprovincial Co-operatives Ltd. v. The Queen*, 1975 CanLII 212 (SCC), [1976] 1 SCR 477, that Parliament has jurisdiction to regulate the dumping in provincial waters of substances that can be shown to cause pollution in extra-provincial waters. What the respondent challenges is federal jurisdiction to control the dumping in provincial waters of substances that are not shown to have a pollutant effect in extra-provincial waters. The respondent contends that on the admitted facts that is precisely the present case. The respondent submits that in so far as s. 4(1) of the Act can only be read as purporting to apply to such dumping it is *ultra vires* and, alternatively, that it should be read, if possible, so as not to apply to such dumping. In either case the appeal must fail. The Attorney General of British Columbia, who supported the attack on s. 4(1), as applied to the dumping of waste in Beaver Cove, and with whom the Attorney General of Quebec agreed, made a similar submission that s. 4(1) should be read down so as not to apply to dumping in provincial waters. …

[17] In this Court … [the Attorney General of Canada's] principal submission in this court was that the control of dumping in provincial marine waters, for the reasons indicated in the Act, was part of a single matter of national concern or dimension which fell within the federal peace, order and good government power. He characterized this matter as the prevention of ocean or marine pollution. …

[18] … The respondent, on the other hand, contends that by its terms the Act is directed at dumping which need not necessarily have a pollutant effect. It prohibits the dumping of any substance, including a substance not specified in Schedule I or Schedule II, except in accordance with the terms and conditions of a permit. In my opinion, despite this apparent scope, the Act, viewed as a whole, may be properly characterized as directed to the control or regulation of marine pollution, in so far as that may be relevant to the question of legislative jurisdiction. The chosen and perhaps only effective, regulatory model makes it necessary, in order to prevent marine pollution, to prohibit the dumping of any substance without a permit. … The Act is concerned with the dumping of substances which may be shown or presumed to have an adverse effect on the marine environment. The Minister and not the person proposing to do the dumping must be the judge of this… There is no suggestion that the Act purports to authorize the prohibition of dumping without regard to perceived adverse effect or the likelihood of such effect on the marine environment. The nature of the marine environment and its protection from adverse effect from dumping is a complex matter which must be left to expert judgment. …

[22] I agree with Schmidt Prov. Ct. J. and the British Columbia Court of Appeal that federal legislative jurisdiction with respect to seacoast and inland fisheries is not sufficient by itself to support the constitutional validity of s. 4(1) of the Act because that section, viewed in the context of the Act as a whole, fails to meet the test laid down in *Fowler* and *Northwest Falling*. While the effect on fisheries of marine pollution caused by the dumping of waste is clearly one of the concerns of the Act it is not the only effect of such pollution with which the Act is concerned. A basis for federal legislative jurisdiction to control marine pollution generally in provincial waters cannot be found in any of the specified heads of federal jurisdiction in s. 91 of the *Constitution Act, 1867*, whether taken individually or collectively. …

[23] It is necessary then to consider the national dimensions or national concern doctrine (as it is now generally referred to) of the federal peace, order and good government power as a possible basis for the constitutional validity of s. 4(1) of the Act, as applied to the control of dumping in provincial marine waters.

[Le Dain J then turned to the national concern doctrine, and gave the following summary:]

[33] From this survey of the opinion expressed in this Court concerning the national concern doctrine of the federal peace, order and good government power I draw the following conclusions as to what now appears to be firmly established:

1. The national concern doctrine is separate and distinct from the national emergency doctrine of the peace, order and good government power, which is chiefly distinguishable by the fact that it provides a constitutional basis for what is necessarily legislation of a temporary nature;

2. The national concern doctrine applies to both new matters which did not exist at Confederation and to matters which, although originally matters of a local or private nature in a province, have since, in the absence of national emergency, become matters of national concern;

3. For a matter to qualify as a matter of national concern in either sense it must have a singleness, distinctiveness and indivisibility that clearly distinguishes it from matters of provincial concern and a scale of impact on provincial jurisdiction that is reconcilable with the fundamental distribution of legislative power under the Constitution;

4. In determining whether a matter has attained the required degree of singleness, distinctiveness and indivisibility that clearly distinguishes it from matters of provincial concern it is relevant to consider what would be the effect on extra-provincial interests of a provincial failure to deal effectively with the control or regulation of the intra-provincial aspects of the matter.

[34] This last factor, generally referred to as the "provincial inability" test and noted with apparent approval in this Court in *Labatt*, *Schneider* and *Wetmore*, was suggested, as Professor Hogg acknowledges, by Professor Gibson in his article, "Measuring `National Dimensions'" (1976), 7 *Man. L.J.* 15, as the most satisfactory rationale of the cases in which the national concern doctrine of the peace, order and good government power has been applied as a basis of federal jurisdiction. As expounded by Professor Gibson, the test would appear to involve a limited or qualified application of federal jurisdiction. As put by Professor Gibson at pp. 34-35, "By this approach, a national dimension would exist whenever a significant aspect of a problem is beyond provincial reach because it falls within the jurisdiction of another province or of the federal Parliament. It is important to emphasize however that the entire problem would not fall within federal competence in such circumstances. Only that aspect of the problem that is beyond provincial control would do so. Since the "P.O. & G.G." clause bestows only residual powers, the existence of a national dimension justifies no more federal legislation than is necessary to fill the gap in provincial powers. For example, federal jurisdiction to legislate for pollution of interprovincial waterways or to control "pollution price-wars" would (in the absence of other independent sources of federal competence) extend only to measures to reduce the risk that citizens of one province would be harmed by the non-co-operation of another province or provinces." To similar effect, he said in his conclusion at p. 36: "Having regard to the residual nature of the power, it is the writer's thesis that "national dimensions" are possessed by only those aspects of legislative problems which are beyond the ability of the provincial legislatures to deal because they involve either federal competence or that of another province. Where it would be possible to deal fully with the problem by co-operative action of two or more legislatures, the "national dimension" concerns only the risk of non-co-operation, and justifies only federal legislation addressed to that risk." …

[35] As expressed by Professor Hogg in the first and second editions of his *Constitutional Law of Canada*, the "provincial inability" test would appear to be adopted simply as a reason for finding that a particular matter is one of national concern falling within the peace, order and good government power: that provincial failure to deal effectively with the intra-provincial aspects of the matter could have an adverse effect on extra-provincial interests. In this sense, the "provincial inability" test is one of the indicia for determining whether a matter has that character of singleness or indivisibility required to bring it within the national concern doctrine. It is because of the interrelatedness of the intra-provincial and extra-provincial aspects of the matter that it requires a single or uniform legislative treatment. The "provincial inability" test must not, however, go so far as to provide a rationale for the general notion, hitherto rejected in the cases, that there must be a plenary jurisdiction in one order of government or the other to deal with any legislative problem. In the context of the national concern doctrine of the peace, order and good government power, its utility lies, in my opinion, in assisting in the determination whether a matter has the requisite singleness or indivisibility from a functional as well as a conceptual point of view. …

[37] Marine pollution, because of its predominantly extra-provincial as well as international character and implications, is clearly a matter of concern to Canada as whole. The question is whether the control of pollution by the dumping of substances in marine waters, including provincial marine waters, is a single, indivisible matter, distinct from the control of pollution by the dumping of substances in other provincial waters. The *Ocean Dumping Control Act* reflects a distinction between the pollution of salt water and the pollution of fresh water. The question, as I conceive it, is whether that distinction is sufficient to make the control of marine pollution by the dumping of substances a single, indivisible matter falling within the national concern doctrine of the peace, order and good government power.

[38] Marine pollution by the dumping of substances is clearly treated by the Convention on the Prevention of Marine Pollution by Dumping of Wastes and other Matter as a distinct and separate form of water pollution having its own characteristics and scientific considerations. This impression is reinforced by the United Nations Report of the Joint Group of Experts on the Scientific Aspects of Marine Pollution, Reports and Studies No. 15, *The Review of the Health of the Oceans* (UNESCO 1982) (hereinafter referred to as the "UN Report"), which forms part of the materials placed before the Court in the argument. It is to be noted, however, that, unlike the *Ocean Dumping Control Act*, the Convention does not require regulation of pollution by the dumping of waste in the internal marine waters of a state. Article III, para. 3, of the Convention defines the "sea" as "all marine waters other than the internal waters of the States." The internal marine waters of a state are those which lie landward of the baseline of the territorial sea, which is determined in accordance with the rules laid down in the United Nations Convention on the Law of the Sea (1982). The limitation of the undertaking in the Convention, presumably for reasons of state policy, to the control of dumping in the territorial sea and the open sea cannot, in my opinion, obscure the obviously close relationship, which is emphasized in the UN Report, between pollution in coastal waters, including the internal marine waters of a state, and pollution in the territorial sea. Moreover, there is much force, in my opinion, in the appellant's contention that the difficulty of ascertaining by visual observation the boundary between the territorial sea and the internal marine waters of a state creates an unacceptable degree of uncertainty for the application of regulatory and penal provisions. This, and not simply the possibility or likelihood of the movement of pollutants across that line, is what constitutes the essential indivisibility of the matter of marine pollution by the dumping of substances.

[39] There remains the question whether the pollution of marine waters by the dumping of substances is sufficiently distinguishable from the pollution of fresh waters by such dumping to meet the requirement of singleness or indivisibility. In many cases the pollution of fresh waters will have a pollutant effect in the marine waters into which they flow, and this is noted by the UN Report, but that report, as I have suggested, emphasizes that marine pollution, because of the differences in the composition and action of marine waters and fresh waters, has its own characteristics and scientific considerations that distinguish it from fresh water pollution. Moreover, the distinction between salt water and fresh water as limiting the application of the *Ocean Dumping Control Act* meets the consideration emphasized by a majority of this Court in the *Anti-Inflation Act* reference—that in order for a matter to qualify as one of national concern falling within the federal peace, order and good government power it must have ascertainable and reasonable limits, in so far as its impact on provincial jurisdiction is concerned.

[La Forest J wrote a dissenting opinion. In his view, the POGG power could only justify federal legislation to control marine pollution in two circumstances: (a) an emergency (which did not exist), and (b) in relation to marine waters lying outside provincial jurisdiction (which fell under federal jurisdiction under the "gap" branch of POGG – i.e. the federal residual power).]

3.2 LA FOREST J. (Beetz and Lamer JJ) (dissenting)

[56] I start with the proposition that what is sought to be regulated in the present case is an activity wholly within the province, taking place on provincially owned land. Only local works and undertakings are involved, and there is no evidence that the substance made subject to the prohibition in s. 4(1) is either deleterious in any way or has any impact beyond the limits of the province. It is not difficult, on this basis, to conclude that the matter is one that falls within provincial legislative power unless it can somehow be established that it falls within Parliament's general power to legislate for the peace, order and good government of Canada.

Peace, Order and Good Government

[57] There are several applications of the peace, order and good government power that may have relevance to the control of ocean pollution. One is its application in times of emergency. The federal Parliament clearly has power to deal with a grave emergency without regard to the ordinary division of legislative power under the Constitution. The most obvious manifestation of this power is in times of war or civil insurrection, but it has in recent years also been applied in peacetime to justify the control of rampant inflation; see *Re: Anti-Inflation Act*, *supra*. But while there can be no doubt that the control of ocean pollution poses a serious problem, no one has argued that it has reached such grave proportions as to require the displacement of the ordinary division of legislative power under the Constitution.

[58] A second manner in which the power to legislate respecting peace, order and good government may be invoked in the present context is to control that area of the sea lying beyond the limits of the provinces. The federal government may not only regulate the territorial sea and other areas over which Canada exercises sovereignty, either under its power to legislate respecting its public property, or under the general power respecting peace, order and good government under s. 91 (*Reference re Offshore Mineral Rights of British Columbia*, 1967 CanLII 71 (SCC), [1967] SCR 792) or under s. 4 of the *Constitution Act, 1871* (U.K.), 34 & 35 Vict., c. 28. I have no doubt that it may also, as an aspect of its international sovereignty, exercise legislative jurisdiction for the control of pollution beyond its borders; see *Reference re Newfoundland Continental Shelf*, 1984 CanLII 132 (SCC), [1984] 1 SCR 86.

[59] In legislating under its general power for the control of pollution in areas of the ocean falling outside provincial jurisdiction, the federal Parliament is not confined to regulating activities taking place within those areas. It may take steps to prevent activities in a province, such as dumping substances in provincial waters that pollute or have the potential to pollute the sea outside the province. Indeed, the exercise of such jurisdiction, it would seem to me, is not limited to coastal and internal waters but extends to the control of deposits in fresh water that have the effect of polluting outside a province. Reference may be made here to *Interprovincial Co-operatives Ltd. v. The Queen*, *supra*, where a majority of this Court upheld the view that the federal Parliament had exclusive legislative jurisdiction to deal with a problem that resulted from the depositing of a pollutant in a river in one province that had injurious effects in another province. This is but an application of the doctrine of national dimensions triggering the operation of the peace, order and good government clause.

[60] It should require no demonstration that water moves in hydrologic cycles and that effective pollution control requires regulating pollution at its source. That source may, in fact, be situated outside the waters themselves. … Given the way substances seep into the ground and the movement of surface and ground waters into rivers and ultimately into the sea, this can potentially cover a very large area. Indeed, since the pollution of the ocean in an important measure results from aerial pollution rather than from substances deposited in waters, similar regulations could be made in respect of substances that so pollute the air as to cause damage to the ocean or generally outside the provinces. …

[61] The power above described can be complemented by provisions made pursuant to the criminal law power. … The combination of the criminal law power with its power to control pollution that has extra-provincial dimensions gives the federal Parliament very wide scope to control ocean pollution. … a combination of the general federal legislative power and the criminal power could go a long way towards prohibiting the pollution of internal waters as well as those in territorial waters and the high seas.

[62] In fact, as I see it, the potential breadth of federal power to control pollution by use of its general power is so great that, even without resort to the specific argument made by the appellant, the constitutional challenge in the end may be the development of judicial strategies to confine its ambit. It must be remembered that the peace, order and good government clause may comprise not only prohibitions, like criminal law, but regulation. Regulation to control pollution, which is incidentally only part of the even larger global problem of managing the environment, could arguably include not only emission standards but the control of the substances used in manufacture, as well as the techniques of production generally, in so far as these may have an impact on pollution. This has profound implications for the federal-provincial balance mandated by the Constitution. The challenge for the courts, as in the past, will be to allow the federal Parliament sufficient scope to acquit itself of its duties to deal with national and international problems while respecting the scheme of federalism provided by the Constitution.

[63] These considerations underline the importance of linking the prohibition to the purpose sought to be achieved. At times, that link can readily be inferred, for example in the case of dumping noxious fluid into coastal waters. In other cases, such as the depositing of noxious solid material inland, cogent proof will be required. …

[64] However widely one interprets the federal power to control ocean pollution along the preceding line of analysis, it will not serve to support the provision impugned here, one that … is a blanket prohibition against depositing any substance in waters without regard to its nature or amount, and one moreover where there is [no attempt to link the proscribed conduct to actual or potential harm] to what is sought to be protected …. [T]here is no evidence to indicate that the full range of activities caught by the provision cause the harm sought to be prevented. … Here, Parliament may undoubtedly prohibit the dumping of anything into federal waters, but unless a more comprehensive theory for applying the national dimensions doctrine can be found, prohibitions against dumping substances into provincial waters must be linked to some federal power. …

[72]… I shall … attempt to look at it in terms of the qualities or attributes that are said to mark the subjects that have been held to fall within the peace, order and good government clause as being matters of national concern. Such a subject, it has been said, must be marked by a singleness, distinctiveness and indivisibility that clearly distinguishes it from matters of provincial concern. In my view, ocean pollution fails to meet this test for a variety of reasons. In addition to those applicable to environmental pollution generally, the following specific difficulties may be noted. First of all, marine waters are not wholly bounded by the coast; in many areas, they extend upstream into rivers for many miles. … . Apart from this, the line between salt and fresh water cannot be demarcated clearly … . In any event, it is not so much the waters, whether fresh or salt, with which we are concerned, but their pollution. And the pollution of marine water is contributed to by the vast amounts of effluents that are poured or seep into fresh waters everywhere … . Nor is the pollution of the ocean confined to pollution emanating from substances deposited in water. In important respects, the pollution of the sea results from emissions into the air, which are then transported over many miles and deposited into the sea … . I cannot, therefore, see ocean pollution as a sufficiently discrete subject upon which to found the kind of legislative power sought here. It is an attempt to create a federal pollution control power on unclear geographical grounds and limited to part only of the causes of ocean pollution. Such a power then simply amounts to a truncated federal pollution control power only partially effective

to meet its supposed necessary purpose, unless of course one is willing to extend it to pollution emanating from fresh water and the air, when for reasons already given such an extension could completely swallow up provincial power, no link being necessary to establish the federal purpose.

[73] This leads me to another factor considered in identifying a subject as falling within the general federal power as a matter of national domain: its impact on provincial legislative power. Here, it must be remembered that in its supposed application within the province the provision virtually prevents a province from dealing with certain of its own public property without federal consent. A wide variety of activities along the coast or in the adjoining sea involves the deposit of some substances in the sea. In fact, where large cities like Vancouver are situated by the sea, this has substantial relevance to recreational, industrial and municipal concerns of all kinds. As a matter of fact, the most polluted areas of the sea adjoin the coast; see *UN Report*, op. cit., at pp. 3-4. Among the major causes of this are various types of construction, such as hotels and harbours, the development of mineral resources and recreational activities (*ibid.*, at p. 3). These are matters of immediate concern to the province. They necessarily affect activities over which the provinces have exercised some kind of jurisdiction over the years. Whether or not the "newness" of the subject is a necessary criterion for inventing new areas of jurisdiction under the peace, order and good government clause, it is certainly a relevant consideration if it means removing from the provinces areas of jurisdiction which they previously exercised. As I mentioned, pollution, including coastal pollution, is no new phenomenon, and neither are many of the kinds of activities that result in pollution.

[74] A further relevant matter, it is said, is the effect on extra-provincial interests of a provincial failure to deal effectively with the control of intra-provincial aspects of the matter. I have some difficulty following all the implications of this, but taking it at face value, we are dealing here with a situation where, as we saw earlier, Parliament has extensive powers to deal with conditions that lead to ocean pollution wherever they occur. The difficulty with the impugned provision is that it seeks to deal with activities that cannot be demonstrated either to pollute or to have a reasonable potential of polluting the ocean. The prohibition applies to an inert substance regarding which there is no proof that it either moves or pollutes. The prohibition in fact would apply to the moving of rock from one area of provincial property to another. I cannot accept that the federal Parliament has such wide legislative power over local matters having local import taking place on provincially owned property. …

3.3 Commentary

Do you agree with Le Dain J's conclusion that marine pollution is sufficiently indivisible to constitute a matter of national concern? Consider the views expressed by Jean Leclair, "The Elusive Quest for the Quintessential 'National Interest'", (2005) 38 UBC L Rev 353 at 360-66 (footnotes omitted):

> [A]lthough Justice Le Dain asserts that a matter must be both functionally and conceptually indivisible to be of a national dimension, his own application of the test is limited to an examination of the first dimension of indivisibility. By emphasizing functional indivisibility, he seems to forget that the purpose of the national interest doctrine is not to confer [on] Parliament a property right over a particular matter, but rather a power to regulate in relation to such a matter. In *Crown Zellerbach*, the Court had to decide whether marine pollution was a matter of national interest. Justice Le Dain concluded that it was, based on the fact that it was difficult to ascertain "by visual observation the boundary between the territorial sea and the internal marine waters of a state," and because marine pollution "… has its own characteristics and scientific considerations that distinguish it from fresh water pollution." Justice Le Dain limited his inquiry to the functional, if not the physical, dimension of the indivisibility criterion. However, as correctly underlined by the dissenting Justice La Forest, "it is not so much the waters, whether fresh or salt, with which we are concerned, but their pollution." Justice La Forest had previously emphasized that "… effective pollution control requires regulating pollution at its source." In other words, a conceptual approach to indivisibility was required, as Parliament had claimed the exclusive power to regulate the sources of marine pollution … .
>
> Had Justice Le Dain conducted a careful analysis of the legislative means necessary to regulate the wide range of polluting activities, he would have recognized that treating marine pollution as a matter of national interest would greatly affect provincial spheres of enumerated powers. Indeed, the exclusive authority to regulate the sources of marine pollution is a *carte blanche* to regulate every conceivable activity known to humankind, be they inter- or intra-provincial in nature. …
>
> However, this interpretation is most erroneous. The conceptual indivisibility test must be applied using the approach of Justice Beetz in *Anti-Inflation*; that is, to the matter said to be of national interest (tobacco use), and not to the legislative means employed to ensure its regulation (control of advertising). In other words, the conceptual indivisibility of a particular matter should hinge upon whether the totality of legislative means necessary for its overall regulation amounts to an important invasion of provincial spheres of power. Otherwise, the central government could adopt a law said to be confined to a very limited aspect of a particular trade, argue successfully that it was sufficiently indivisible to qualify as a matter of national interest and, after having established its "… exclusive jurisdiction of a plenary nature to legislate in relation to that matter," Parliament could select, this time in all impunity, any other legislative means it would find appropriate to adopt. …
>
> [In addition,] Justice Le Dain's functional test is extremely obscure. Recall that in order to determine the existence of indivisibility, one must "consider what would be the effect on extra-provincial interests of a provincial failure to deal effectively with the control or regulation of the intra-provincial aspects of the matter." Is Justice Le Dain referring to political incapacity, political unwillingness, or legal inability to deal with a problem? …
>
> Notwithstanding the problems described above, the most troubling aspect of Justice Le Dain's test is that it gives the impression that Canada's federal system was designed to achieve functional efficiency to the exclusion of other normative concerns. Functional efficiency, though important, has never been the sole normative concern of our federal regime. In reality, Canadian federalism has been much more preoccupied with establishing a just and coherent balance between the legitimate demands of both national and regional communities. …
>
> Justice Le Dain's functional approach, with its obviously centralist slant, is impervious to this need for diversity. By unduly favouring federal exclusivity to the detriment of federal/provincial concurrency, Justice Le Dain also puts into jeopardy federalism's capacity to promote "… democratic participation by distributing power to the government thought to be most suited to achieving the particular societal objective having regard to th[e] diversity [of the component parts of Confederation]." Moreover, by placing the interests of the national community before those of the regions, Justice Le Dain's centralist approach could very well hamper, in certain circumstances, Quebec's ability to exercise "… the considerable provincial powers conferred by the *Constitution Act, 1867* in such a way as to promote [its] language and culture."

Sujit Choudhry, by contrast, defended the provincial inability test and the holding in *Crown Zellerbach* ("Recasting Social Canada: A Reconsideration of Federal Jurisdiction Over Social Policy" (2002) 52 UTLJ 163 at 227, 236-8):

> [T]he provincial inability test reflects the Dickson court's central contribution, and its major legacy, to the enduring problem of legal federalism. The basic intuition underlying the test is that the federal government can act only in those circumstances in which the provinces are unable to act. Although the Court provided little in the way of theoretical explanation to justify this principle, the test is consistent with at least the following account of the nature of the Canadian political community. Canada consists not of one political community but, rather, of a multiplicity of political communities, which often disagree on questions of public policy but which nevertheless have come together and have

created common institutions with the power to act on matters of common interest. To the question of when matters are of common interest, the answer provided by the Dickson court is those subject-matters where the provinces are unable to act alone—that is, when pursuing their self-interest requires them to act together. On this conception, the Canadian federation is imagined as a scheme for mutual advantage. …

But what does the provincial inability test mean? …

"Externality" is a term used by economists to describe situations in which an entity (a person, a corporation) does not bear all of the costs, or receive all of the benefits, of decisions they take. In cases of negative externalities, some or all of the costs of a decision are borne by another entity; in cases of positive externalities, some or all of the benefits of a decision are received by another party. The basic idea behind an externality is that the disjuncture between the entity that makes a decision and the entities that bear the costs or receive the benefits of a decision means that that decision is made differently than it would be where the costs and benefits were strictly private. In cases of negative externalities, because costs can be shifted onto other entities, an entity may engage in more of an externality-causing activity than they otherwise would. The opposite is true for positive externalities.

… Governments can make decisions that impose costs on other governments. In a federation, a province can externalize the costs of its public policies onto other provinces, or onto the federal government. A case study of the former can be found in *Interprovincial Co-Operatives Ltd. v. Dryden Chemicals Ltd.* [1975 CanLII 212 (SCC), [1976] 1 SCR 477]. In that case, two companies, one operating in Saskatchewan, the other in Ontario, operated chlor-alkali plants close to rivers that flow into Manitoba. The allegation was that both companies discharged mercury into these rivers, which then carried the mercury into Manitoba, where it was ingested by fish. According to the Manitoba government, the mercury ultimately had a negative impact upon the commercial fishery by rendering fish unfit for human consumption.

… *Crown Zellerbach* … clearly contemplated that this kind of scenario would count as an example of provincial inability. But, on further reflection, we find that "provincial inability" is a bit of a misnomer. Consider the legal position of Manitoba. Because of the territorial limits on provincial jurisdiction, Manitoba lacked the legal power to regulate mercury discharges in waters outside its borders. Manitoba, therefore, was clearly unable to regulate pollution that harmed interests within the province. As the Court said, it was "impossible to hold that … Manitoba can … require the shutting down of plants erected and operated in another province." But no one seriously doubted that Ontario and Saskatchewan possessed jurisdiction to regulate the mercury discharges; the operative assumption throughout the judgment was that mercury discharges were legal under Ontario and Saskatchewan law. At most, we can say that those provinces were not unable but merely *unwilling* to regulate these discharges.

…There was no provincial inability as such. Nonetheless, in *Crown Zellerbach* … the Court considered that this scenario warranted shifting jurisdiction to the federal government. And, indeed, this was the holding of the plurality (*per* Ritchie J) in *Interprovincial Co-operatives*. Why did the Court reach this conclusion? One obvious solution would have been a negotiated or cooperative arrangement whereby Saskatchewan and Ontario regulated industries within their borders for Manitoba's benefit. The Court must have reasoned that because of the incentives at play, there were reasons to doubt that bilateral or multilateral bargains to address inter-provincial spillovers would be easy to achieve. If so, federal jurisdiction under the national dimensions doctrine was premised on the risk of inter-provincial non-cooperation. And this is exactly what Gibson said, in passages quoted with approval by Le Dain J in *Crown Zellerbach*.

4 Friends of the Oldman River: Environmental Assessment

In *Friends of the Oldman River Society v Canada (Minister of Transport)*, 1992 CanLII 110 (SCC), [1992] 1 SCR 3,the Supreme Court held that the environment, and environmental control, lacked the requisite distinctiveness to be matters of national concern. It addressed this issue in the context of jurisdiction over environmental assessment – an issue it revised in *Reference re Impact Assessment Act*, 2023 SCC 23.

LA FOREST J (Lamer C.J. and L'Heureux-Dubé, Sopinka, Gonthier, Cory, McLachlin and Iacobucci JJ. concurring)

… s. 6 of the *Department of the Environment Act*, R.S.C., 1985, c. E-10, empowered the Minister for the purposes of carrying out his duties relating to environmental quality, by order, with the approval of the Governor in Council, to establish guidelines for use by federal departments, agencies and regulatory bodies in carrying out their duties, functions and powers. Pursuant to this provision the *Environmental Assessment and Review Process Guidelines Order* ("*Guidelines Order*") was established and approved in June 1984, SOR/84-467. In general terms, these guidelines require all federal departments and agencies that have a decision-making authority for any proposal, i.e., any initiative, undertaking or activity that may have an environmental effect on an area of federal responsibility, to initially screen such proposal to determine whether it may give rise to any potentially adverse environmental effects. If a proposal could have a significant adverse effect on the environment, provision is made for public review by an environmental assessment panel whose members must be unbiased, free of political influence and possessed of special knowledge and experience relevant to the technical, environmental and social effects of the proposal.

The present case raises the constitutional and statutory validity of the *Guidelines Order* as well as its nature and applicability. These issues arise in a context where the respondent Society, an environmental group from Alberta, by applications for *certiorari* and mandamus, seeks to compel two federal departments, the Department of Transport and the Department of Fisheries and Oceans, to conduct a public environmental assessment pursuant to the *Guidelines Order* in respect of a dam constructed on the Oldman River by the Government of Alberta. … since the project affects navigable waters, fisheries, Indians and Indian lands, federal interests are involved. Specifically, the Society argues that the Minister of Transport must approve the project under the *Navigable Waters Protection Act*, R.S.C., 1985, c. N-22, and in doing so is required to provide for public assessment of the project pursuant to the *Guidelines Order*. It also argues that the Minister of Fisheries and Oceans has a similar duty in the performance of his functions under the *Fisheries Act*, R.S.C., 1985, c. F-14.

… Alberta argues that Parliament has no plenary jurisdiction over the environment, it being a matter of legislative jurisdiction shared by both levels of government, and that the *Guidelines Order* has crossed the line which circumscribes Parliament's authority over the environment. The appellant Ministers argue that in pith and substance the *Guidelines Order* is merely a process to facilitate federal decision-making on matters that fall within Parliament's jurisdiction -- a proposition with which the respondent substantially agrees.

The substance of Alberta's argument is that the *Guidelines Order* purports to give the Government of Canada general authority over the environment in such a way as to trench on the province's exclusive legislative domain. Alberta argues that the *Guidelines Order* attempts to regulate the environmental effects of matters largely within the control of the province and, consequently, cannot constitutionally be a concern of Parliament. In particular, it is said that Parliament is incompetent to deal with the environmental effects of provincial works such as the Oldman River Dam.

I agree that the *Constitution Act, 1867* has not assigned the matter of "environment" *sui generis* to either the provinces or Parliament. The environment, as understood in its generic sense, encompasses the physical, economic and social environment touching several of the heads of power assigned to the respective levels of government. … I earlier referred to the environment as a diffuse subject, echoing what I said in *R. v. Crown Zellerbach Canada Ltd.*, *supra*, to the effect that environmental control, as a subject matter, does not have the requisite distinctiveness to meet the test under the "national concern" doctrine as articulated by Beetz J. in *Reference re Anti-Inflation Act*, *supra*. Although I was writing

for the minority in *Crown Zellerbach*, this opinion was not contested by the majority. The majority simply decided that marine pollution was a matter of national concern because it was predominately extra-provincial and international in character and implications, and possessed sufficiently distinct and separate characteristics as to make it subject to Parliament's residual power.

It must be recognized that the environment is not an independent matter of legislation under the *Constitution Act, 1867* and that it is a constitutionally abstruse matter which does not comfortably fit within the existing division of powers without considerable overlap and uncertainty. …

In my view the solution to this case can more readily be found by looking first at the catalogue of powers in the *Constitution Act, 1867* and considering how they may be employed to meet or avoid environmental concerns. When viewed in this manner it will be seen that in exercising their respective legislative powers, both levels of government may affect the environment, either by acting or not acting. This can best be understood by looking at specific powers. A revealing example is the federal Parliament's exclusive legislative power over interprovincial railways under ss. 92(10)(*a*) and 91(29) of the *Constitution Act, 1867*. The regulation of federal railways has been entrusted to the National Transportation Agency pursuant to the *National Transportation Act, 1987* …

This gives some insight into the scope of Parliament's legislative jurisdiction over railways and the manner in which it is charged with the responsibility of weighing both the national and local socio-economic ramifications of its decisions. Moreover, it cannot be seriously questioned that Parliament may deal with biophysical environmental concerns touching upon the operation of railways so long as it is legislation relating to railways. This could involve issues such as emission standards or noise abatement provisions.

To continue with the example, one might postulate the location and construction of a new line which would require approval under the relevant provisions of the *Railway Act*, R.S.C., 1985, c. R-3. That line may cut through ecologically sensitive habitats such as wetlands and forests. The possibility of derailment may pose a serious hazard to the health and safety of nearby communities if dangerous commodities are to be carried on the line. On the other hand, it may bring considerable economic benefit to those communities through job creation and the multiplier effect that will have in the local economy. The regulatory authority might require that the line circumvent residential districts in the interests of noise abatement and safety. In my view, all of these considerations may validly be taken into account in arriving at a final decision on whether or not to grant the necessary approval. To suggest otherwise would lead to the most astonishing results, and it defies reason to assert that Parliament is constitutionally barred from weighing the broad environmental repercussions, including socio-economic concerns, when legislating with respect to decisions of this nature.

The same can be said for several other subject matters of legislation, including one of those before the Court, namely navigation and shipping. [omitted] …

The provinces may similarly act in relation to the environment under any legislative power in s. 92. Legislation in relation to local works or undertakings, for example, will often take into account environmental concerns. What is not particularly helpful in sorting out the respective levels of constitutional authority over a work such as the Oldman River dam, however, is the characterization of it as a "provincial project" or an undertaking "primarily subject to provincial regulation" as the appellant Alberta sought to do. That begs the question and posits an erroneous principle that seems to hold that there exists a general doctrine of interjurisdictional immunity to shield provincial works or undertakings from otherwise valid federal legislation. …

What is important is to determine whether either level of government may legislate. One may legislate in regard to provincial aspects, the other federal aspects. Although local projects will generally fall within provincial responsibility, federal participation will be required if the project impinges on an area of federal jurisdiction as is the case here. …

5 References re Greenhouse Gas Pollution Pricing Act

5.1 Introduction

The major modern case on the national dimension doctrine is *References re Greenhouse Gas Pollution Pricing Act*, 2021 SCC 11 – the *GGPPA*.

As explained below, Part 1 of the *GGPPA* establishes a consumer carbon price (a fuel charge), and Part 2 sets out a pricing mechanism for large industrial emitters. In addition, the *GGPPA* functions as "backstop" to both limbs of the *GGGPA*.

On March 2025, the newly elected federal government announced the elimination of the consumer carbon price, and removed the "backstop" – the requirement that provinces and territories have a consumer carbon price. Nonetheless, the case is an important statement on the scope of federal authority over greenhouse gas emissions, which remain in force for large industrial emitters.

5.2 WAGNER CJ (Abella, Moldaver, Karakatsanis, Martin and Kasirer JJ concurring):

…

A. Basic Architecture of the GGPPA

[26] The *GGPPA* comprises four parts and four schedules. Part 1 of the *GGPPA* establishes a fuel charge that applies to producers, distributors and importers of various types of carbon-based fuel. Part 2 sets out a pricing mechanism for industrial GHG emissions by large emissions-intensive industrial facilities. Part 3 authorizes the Governor in Council to make regulations providing for the application of provincial law concerning GHG emissions to federal works and undertakings, federal land and Indigenous land located in that province, as well as to internal waters located in or contiguous with the province. And Part 4 requires the Minister of the Environment to prepare an annual report on the administration of the *GGPPA* and have it tabled in Parliament. Only the first two parts and the four schedules are at issue in these appeals. The parties do not challenge the constitutionality of Parts 3 and 4 of the *GGPPA*.

[27] Because the *GGPPA* operates as a backstop, the GHG pricing mechanism described in Parts 1 and 2 of the *GGPPA* does not automatically apply in all provinces and territories. A province or territory will only be subject to Part 1 or 2 of the *GGPPA* if the Governor in Council determines that its GHG pricing mechanism is insufficiently stringent. However, the *GGPPA* itself always applies in the sense that provincial and territorial GHG pricing mechanisms are always subject to assessment to ensure they are sufficiently stringent. At the time of the hearing of these appeals, Ontario, New Brunswick, Manitoba, Saskatchewan, Yukon and Nunavut were subject to both Parts 1 and 2 of the *GGPPA*. Alberta was subject only to Part 1, and Prince Edward Island only to Part 2. After the hearing, the *GGPPA* was amended such that Part 1 no longer applies to New Brunswick: *Regulations Amending Part 1 of Schedule 1 and Schedule 2 to the Greenhouse Gas Pollution Pricing Act and the Fuel Charge Regulations*, SOR/2020-261. The federal government has also announced that Ontario will be subject only to Part 1, but the *GGPPA* has not yet been amended to reflect this announcement.

B. Characterization of the GGPPA …

[57] In this case, the judges in the courts below, the parties and the interveners have proposed various formulations of the GGPPA's pith and substance. These formulations can be grouped in three basic categories: (1) a broad formulation to the effect that the GGPPA's pith and substance is the regulation of GHG emissions; (2) a national standards-based formulation to the effect that the GGPPA's pith and substance is to establish minimum national standards to reduce GHG [i.e. greenhouse gas] emissions; and (3) a national standards pricing-based formulation to the effect that the GGPPA's pith and substance is to establish minimum national standards of GHG price stringency to reduce GHG emissions. I would adopt a national standards pricing-based formulation of the pith and substance of the GGPPA. In my view, the true subject matter of the GGPPA is establishing minimum national standards of GHG price stringency to reduce GHG emissions. Allow me to explain why. …

[Wagner CJ concluded that establishing minimum national standards for GHG pricing, as opposed to GHG emissions generally, was the pith and substance of the GGPPA based on: (a) intrinsic evidence, consisting of its title ("Greenhouse Gas Pollution Pricing Act") and the preamble; (b) extrinsic evidence, including the policy process leading up to the enactment of the GGPPA, in which GHG pricing emerged as the central policy proposal, as opposed to federal regulation of GHG emissions, and the legislative debates surrounding the GGPPA, where the focus was also on GHG pricing, not regulating GHG emissions; (c) legal effects, which are to create a GHG pricing scheme for Canada, and not to regulate GHG-emitting activities or otherwise reduce GHG emissions, and to function as a backstop that will only come into force of a province or territory does not have a sufficiently stringent GHG pricing system; and (d) practical effects, which to date consisted of a flexible federal approach to assessing if provincial pricing regimes were of comparable stringency.]. …

C. Classification of the GGPPA

...

(2) Clarifying the National Concern Doctrine

…

[111] As can be seen from the decisions of the courts below and from the parties' arguments, there is significant uncertainty regarding a number of issues that are central to the national concern doctrine. This is unsurprising, given that there are very few recent cases concerning the doctrine, which in turn flows from the fact that one of its defining features is its restrictive application. This case presents an opportunity to clarify these issues. …

[113] Throughout my analysis on these issues, I will be relying in part on this Court's trade and commerce jurisprudence, and in particular on *2011 Securities Reference* and *2018 Securities Reference*. As the Court has observed, the national concern doctrine and the trade and commerce power pose similar challenges to federalism. In both contexts, the Court has interpreted the federal power narrowly to ensure that it does not overwhelm provincial jurisdiction and undermine the federal-provincial division of powers… Although the Court has not addressed the national concern doctrine in any detail for many years, the more recent cases of *2011 Securities Reference* and *2018 Securities Reference*, in which it applied the general branch of the trade and commerce power, offer useful insight and are consistent with the modern approach to federalism. However, my citing these cases should not be taken as an invitation to conflate the two powers. …

(a) "Matter" of National Concern …

[119] Therefore, the matter to consider in this national concern analysis is establishing minimum national standards of GHG price stringency to reduce GHG emissions. I agree with the majority of the Court of Appeal for Saskatchewan that stringency in this context is not limited to the charge per unit of GHG emissions. It encompasses the scope or breadth of application of the charge in the sense of the fuels, operations and activities to which the charge applies and the authority to implement regulatory schemes that are necessary in order to implement such a charge: para. 139.

(b) Exclusive Federal Jurisdiction Based on the National Concern Doctrine

[120] There is no doubt that a finding that a matter is of national concern confers exclusive jurisdiction over that matter on Parliament… However, the nature and consequences of this exclusive federal jurisdiction is contested by the parties in this case and requires clarification. Understanding the consequences of the recognition of a new matter of national concern is critical in order to properly undertake the scale of impact analysis at the third step of the national concern test. …

[125] A closely related question concerns the applicability of the double aspect doctrine to a matter of national concern. The double aspect doctrine "recognizes that the same fact situations can be regulated from different perspectives, one of which may relate to a provincial power and the other to a federal power…. If a fact situation can be regulated from different federal and provincial perspectives and each level of government has a compelling interest in enacting legal rules in relation to that situation, the double aspect doctrine may apply….

[126] In my view, the double aspect doctrine can apply in cases in which the federal government has jurisdiction on the basis of the national concern doctrine, but whether or not it does apply will vary from case to case. …

[129] The double aspect doctrine takes on particular significance where, as in the case at bar, Canada asserts jurisdiction over a matter that involves a minimum national standard imposed by legislation that operates as a backstop. The recognition of a matter of national concern such as this will inevitably result in a double aspect situation. This is in fact the very premise of a federal scheme that imposes minimum national standards: Canada and the provinces are both free to legislate in relation to the same fact situation — in this case by imposing GHG pricing — but the federal law is paramount. …

[131] Beetz J.'s caution about the double aspect doctrine [in *Bell Canada v. Quebec (Commission de la santé et de la sécurité du travail),* 1988 CanLII 81 (SCC), [1988] 1 SCR 749] thus applies with particular force where Canada asserts jurisdiction over a matter that involves a minimum national standard. In such a case, even if the national concern test would otherwise be met, Beetz J.'s caution should act as an additional check. The court must be satisfied that Canada in fact has a "compelling interest" in enacting legal rules over the federal aspect of the activity at issue and that the "multiplicity of aspects is real and not merely nominal" …. As I will explain in greater detail below, the court must be satisfied at the scale of impact step that the consequences of finding that the proposed matter is one of national concern are reconcilable with the division of powers.

(3) National Concern Test

[132] I will now turn to the specifics of the test for identifying matters that are inherently of national concern. As I will explain below, the applicable framework involves a three-step process: the threshold question; the singleness, distinctiveness and indivisibility analysis; and the scale of impact analysis. …

(a) Threshold Question

[142] Courts must approach a finding that the federal government has jurisdiction on the basis of the national concern doctrine with great caution. The analysis therefore begins by asking, as a threshold question, whether the matter is of sufficient concern to Canada as a whole to warrant consideration under the doctrine. This invites a common-sense inquiry into the national importance of the proposed matter.

[143]… Although this inquiry was not identified as a distinct step of the analysis in *Crown Zellerbach*, it serves an important purpose. The threshold question ensures that the national concern doctrine cannot be invoked too lightly and provides essential context for the analysis that follows. Requiring that this question be asked as the first step of the test is an appropriate, incremental development in the law to ensure that federal power under the national concern doctrine is properly constrained.

[144] At the threshold step, Canada must adduce evidence to satisfy the court that the matter is of sufficient concern to Canada as a whole to warrant consideration in accordance with the national concern doctrine. If Canada discharges this burden, the analysis proceeds. This approach does not open the door to the recognition of federal jurisdiction simply on the basis that a legislative field is "important"; it operates to limit the application of the national concern doctrine.

(b) Singleness, Distinctiveness and Indivisibility

…

[147]… the proposed federal matter must be specific and readily identifiable. … The specific and identifiable matter must also be qualitatively different from matters of provincial concern. It is clearly not enough for a matter to be quantitatively different from matters of provincial concern — the mere growth or extent of a problem across Canada is insufficient to justify federal jurisdiction …

[148] One key consideration for determining whether the matter is qualitatively different from matters of provincial concern is whether it is predominantly extraprovincial and international in character, having regard both to its inherent nature and to its effects. The case law demonstrates that this inquiry is central to the national concern doctrine. The finding that marine pollution is extraprovincial and international in its character and implications was critical to the recognition of a matter of national concern in *Crown Zellerbach* … In *Ontario Hydro*, the judges were unanimous in grounding the federal government's jurisdiction over atomic energy based on the POGG power in the potential for catastrophic interprovincial and international harm. By contrast, in *Hydro-Québec*, the judges who considered the issue concluded that the fact that the statute regulated substances whose effects were entirely intraprovincial and localized was a barrier to its recognition as a matter of national concern. However, they accepted that a matter dealing with toxic substances that originate in a particular province may nonetheless be predominantly extraprovincial and international in character if the substances in question have serious effects that can cross provincial boundaries….

[149] International agreements may in some cases indicate that a matter is qualitatively different from matters of provincial concern. … Significantly, the existence of treaty obligations is not determinative of federal jurisdiction: there is no freestanding federal treaty implementation power and Parliament's jurisdiction to implement treaties signed by the federal government depends on the ordinary division of powers … Treaty obligations and international agreements can be relevant to the national concern analysis, however. Depending on their content, they may help to show that a matter has an extraprovincial and international character, thereby supporting a finding that it is qualitatively different from matters of provincial concern.

[150] Furthermore, to be qualitatively different from matters of provincial concern, the matter must not be an aggregate of provincial matters …. The federal legislative role must be distinct from and not duplicative of that of the provinces. Once again, the Court's trade and commerce jurisprudence is helpful in this regard. The Court's opinions with respect to securities regulation show that a regulatory field with an international or extraprovincial dimension can also have local features. While there are aspects of securities regulation that are national in character and have genuine national goals, much of this sphere is primarily focused on local concerns related to investor protection and market fairness: *2011 Securities Reference*, at paras. 115 and 124-28; *2018 Securities Reference*, at paras. 105-6. As the *2011 Securities Reference* and the *2018 Securities Reference* confirm, federal legislation will not be qualitatively distinct if it overshoots regulation of a national aspect of the field and instead duplicates provincial regulation or regulates issues that are primarily of local concern.

[151] Thus, the first principle underpinning the requirement of singleness, distinctiveness and indivisibility is that federal jurisdiction may only be recognized over a specific and identifiable matter that is qualitatively different from matters of provincial concern. At this stage, the court should inquire into whether the matter is predominantly extraprovincial and international in its nature or its effects, into the content of any international agreements in relation to the matter, and into whether the matter involves a federal legislative role that is distinct from and not duplicative of that of the provinces.

[152] I will now turn to the second principle, that is, that federal jurisdiction should be found to exist only where the evidence establishes provincial inability to deal with the matter. This Court's jurisprudence in relation to the general branch of the trade and commerce power is helpful on this point, too. The starting point for this analysis should be the provincial inability test expressed through the fourth and fifth indicia discussed in *General Motors*, at p. 662: (1) the legislation should be of a nature that the provinces jointly or severally would be constitutionally incapable of enacting; and (2) the failure to include one or more provinces or localities in a legislative scheme would jeopardize the successful operation of the scheme in other parts of the country. For provincial inability to be established for the purposes of the national concern doctrine, both of these factors are required.

[153] But there is a third factor that is required in the context of the national concern doctrine in order to establish provincial inability: a province's failure to deal with the matter must have grave extraprovincial consequences. …

[155] The requirement of grave extraprovincial consequences sets a high bar for a finding of provincial inability for the purposes of the national concern doctrine. This requirement can be satisfied by actual harm or by a serious risk of harm being sustained in the future. It may include serious harm to human life and health or to the environment, though it is not necessarily limited to such consequences. Mere inefficiency or additional financial costs stemming from divided or overlapping jurisdiction is clearly insufficient …Moreover, as I noted above, the onus is on Canada to establish that provincial inability is made out, and evidence is required, "for the questions of provincial inability and the harm that flows therefrom are both factual in part"….

[157] In conclusion, there are two principles that apply in relation to singleness, distinctiveness and indivisibility: first, federal jurisdiction based on the national concern doctrine should be found to exist only over a specific and identifiable matter that is qualitatively different from matters of provincial concern; and second, federal jurisdiction should be found to exist only where the evidence establishes provincial inability to deal with the matter. Provincial inability will be established only if the matter is of a nature that the provinces cannot address either jointly or severally, because the failure of one or more provinces to cooperate would prevent the other provinces from successfully addressing it, *and* if a province's failure to deal with the matter within its own borders would have grave extraprovincial consequences. …

(c) Scale of Impact

[160] At the final step of the national concern test, Canada must show that the proposed matter has "a scale of impact on provincial jurisdiction that is reconcilable with the fundamental distribution of legislative power under the Constitution" ...

[161] The purpose of the scale of impact analysis is to prevent federal overreach: S. Choudhry, *Constitutional Law and the Politics of Carbon Pricing in Canada* (2019), IRPP Study 74, at p. 15; *2011 Securities Reference*, at para. 61. In other words, it is designed to protect against unjustified intrusions on provincial autonomy. In accordance with this purpose, at this stage of the analysis, the intrusion upon provincial

autonomy that would result from empowering Parliament to act is balanced against the extent of the impact on the interests that would be affected if Parliament were unable to constitutionally address the matter at a national level. Identifying a new matter of national concern will be justified only if the latter outweighs the former.

(d) Summary of the Framework

[162] In summary, finding that a matter is one of national concern involves a three-step analysis.

[163] First, Canada must establish that the matter is of sufficient concern to the country as a whole to warrant consideration as a possible matter of national concern. This question arises in every case, regardless of whether the matter can be characterized as historically new. If Canada discharges its burden at the step of this threshold inquiry, the analysis will proceed.

[164] Second, the court must undertake the analysis explained in *Crown Zellerbach* through the language of "singleness, distinctiveness and indivisibility". More important than this terminology, however, are the principles underpinning the inquiry. The first of these principles is that, to prevent federal overreach, jurisdiction based on the national concern doctrine should be found to exist only over a specific and identifiable matter that is qualitatively different from matters of provincial concern. The second principle to be considered at this stage of the inquiry is that federal jurisdiction should be found to exist only where the evidence establishes provincial inability to deal with the matter.

[165] If these two principles are satisfied, the court will proceed to the third and final step and determine whether the scale of impact of the proposed matter of national concern is reconcilable with the division of powers.

[166] The onus is on Canada throughout this analysis, and evidence is required. Where a proposed federal matter satisfies the requirements of all three steps of the framework, there is a principled basis to conclude that the matter is one that, by its nature, transcends the provinces and should be recognized as a matter of national concern.

(4) Application to the GGPPA

(a) Threshold Question

[167] Canada has adduced evidence that clearly shows that establishing minimum national standards of GHG price stringency to reduce GHG emissions is of sufficient concern to Canada as a whole that it warrants consideration in accordance with the national concern doctrine. To begin, this matter's importance to Canada as a whole must be understood in light of the seriousness of the underlying problem. All parties to this proceeding agree that climate change is an existential challenge. It is a threat of the highest order to the country, and indeed to the world. This context, on its own, provides some assurance that in the case at bar, Canada is not seeking to invoke the national concern doctrine too lightly. The undisputed existence of a threat to the future of humanity cannot be ignored.

[168] That being said, the matter at issue here is not the regulation of GHG emissions generally, and Canada is not seeking to have all potential forms of GHG regulation classified as matters of national concern. Rather, the specific question before the Court is whether establishing minimum national standards of GHG price stringency to reduce GHG emissions is a matter of national concern.

[169] The history of efforts to address climate change in Canada reflects the critical role of carbon pricing strategies in policies to reduce GHG emissions. As discussed above, Canada and all the provinces committed, in the *Vancouver Declaration*, to including carbon pricing in the country's efforts to reduce GHG emissions. The subsequently established Working Group on Carbon Pricing Mechanisms recognized in its final report that many experts regard carbon pricing as a necessary tool for efficiently reducing GHG emissions: … The Working Group's final report had the support of all provinces and of Canada at the time it was published, and its affirmation of the importance of carbon pricing is supported by the record in this case. Similarly, the Specific Mitigation Opportunities Working Group, one of the other three working groups established under the *Vancouver Declaration*, listed, in its final report, "broad, economy-wide carbon pricing" as one of "three essential elements of a comprehensive approach to mitigating GHG emissions…

[170] Furthermore, there is a broad consensus among expert international bodies such as the World Bank, the Organization for Economic Cooperation and Development and the International Monetary Fund that carbon pricing is a critical measure for the reduction of GHG emissions. ….

[171] In summary, the evidence clearly shows that establishing minimum national standards of GHG price stringency to reduce GHG emissions is of concern to Canada as a whole. This matter is critical to our response to an existential threat to human life in Canada and around the world. As a result, it readily passes the threshold test and warrants consideration as a possible matter of national concern.

(b) Singleness, Distinctiveness and Indivisibility

[172] As I explained above, the first principle to be considered in the singleness, distinctiveness and indivisibility inquiry is that federal jurisdiction based on the national concern doctrine should be found to exist only over a specific and identifiable matter that is qualitatively different from matters of provincial concern. Recognizing minimum national standards of GHG price stringency to reduce GHG emissions as a matter of national concern satisfies this requirement.

[173] Given that the matter at issue is establishing minimum national standards of GHG price stringency to reduce GHGs, it is important to begin by observing that these gases are a specific and precisely identifiable type of pollutant. The harmful effects of GHGs are known, and the fuel and excess emissions charges are based on the global warming potential of the gases (see Sch. 3 of the GGPPA). Moreover, GHG emissions are predominantly extraprovincial and international in their character and implications. This flows from their nature as a diffuse atmospheric pollutant and from their effect in causing global climate change. GHG emissions are precisely the type of diffuse and persistent substances with serious deleterious extraprovincial effects that the dissent in *Hydro-Québec* suggested might appropriately be regulated on the basis of the national concern doctrine: para. 76. In *Interprovincial Co-operatives*, a case concerning one province's emission of pollutants into an interprovincial river, Pigeon J. observed that the Court was "faced with a pollution problem that is not really local in scope but truly interprovincial": p. 514. GHG emissions represent a pollution problem that is not merely interprovincial, but global, in scope.

[174] The international response to GHG emissions over the past three decades confirms this. As early as 1992, the preamble to the *UNFCCC* recognized climate change as "a common concern of humankind", and also acknowledged its "global nature". The acknowledgment that climate change is a common concern of humankind was reiterated in the *Paris Agreement*. As well, the need for an effective international response to climate change was recognized in both agreements. Specifically, the *Paris Agreement* identifies imperatives of holding the increase in the global average temperature to well below 2.0°C above pre-industrial levels and achieving net zero emissions in the second half of the 21st century: arts. 2(1)(a) and 4(1). States parties are therefore required to make nationally determined contributions that are increasingly ambitious and to implement domestic mitigation measures for the purpose of ensuring that those contributions are achieved: arts. 4(2) and (3). Both the *UNFCCC* and the *Paris Agreement* help illustrate the predominantly extraprovincial and international nature of GHG emissions and support the conclusion that the matter at issue is qualitatively different from matters of provincial concern.

[175] Not only is the type of pollutant to which the matter applies identifiable and qualitatively different from matters of provincial concern, but the regulatory mechanism of GHG pricing is a specific, and limited, one. It operates in a particular way, seeking to change behaviour by internalizing the cost of climate change impacts, incorporating them into the price of fuel and the cost of industrial activity. …GHG pricing

does not amount to the regulation of GHG emissions generally. It is also different in kind from regulatory mechanisms that do not involve pricing, such as sector-specific initiatives concerning electricity, buildings, transportation, industry, forestry, agriculture and waste.

[176] Minimum national standards of GHG price stringency, which are implemented in this case by means of the backstop architecture of the GGPPA, relate to a federal role in carbon pricing that is qualitatively different from matters of provincial concern. The *2011 Securities Reference* and *2018 Securities Reference* illustrate this point. The proposed legislation at issue in the *2011 Securities Reference* did not have a distinctly national focus; it ran afoul of the division of powers by replicating existing provincial schemes: para. 116. However, the Court held that "[l]egislation aimed at imposing minimum standards applicable throughout the country and preserving the stability and integrity of Canada's financial markets might well relate to trade as a whole" and could be a matter of national importance to which the federal general trade and commerce power applies: para. 114. This was the approach the federal government took in the proposed legislation at issue in the *2018 Securities Reference*. The focus of that legislation was on controlling systemic risks that represented a threat to the stability of the country's financial system as a whole. Its effect was "to address any risk that 'slips through the cracks' and poses a threat to the Canadian economy": para. 92. Rather than displacing provincial securities legislation by ensuring the day-to-day regulation of securities trading, it sought to complement provincial legislation by addressing national economic objectives: para. 96.

[177] The backstop approach taken in the GGPPA is analogous to the approach taken in the proposed legislation that was at issue in the *2018 Securities Reference*. The *GGPPA* establishes minimum national standards of price stringency to reduce GHG emissions in order to ensure that Canada's nationally determined contribution under the *Paris Agreement* is achieved. It does so on a distinctly national basis, one that neither represents an aggregate of provincial matters nor duplicates provincial GHG pricing systems. …

[179] The *GGPPA* is tightly focused on this distinctly federal role and does not descend into the detailed regulation of all aspects of GHG pricing. While it is true that the administrative pricing mechanism set out in the GGPPA is detailed, it can apply only to provinces that fail to meet the federal stringency standard. Thus, the GGPPA's fundamental role is a distinctly federal one: evaluating provincial pricing mechanisms against an outcome-based legal standard in order to address national risks posed by insufficient carbon pricing stringency in any part of the country. The *GGPPA* does not prescribe any rules for provincial pricing mechanisms as long as they meet the federally designated standard. Even if the GGPPA were to apply so as to supplement an insufficiently stringent provincial pricing scheme, the prior existence of similar provincial legislation is not, as this Court confirmed in the *2018 Securities Reference*, a constitutional bar to federal legislation that pursues a qualitatively different national concern …

[181] The second principle to be considered at this stage of the inquiry is that federal jurisdiction should be found to exist only where the evidence establishes provincial inability to deal with the matter. I find that provincial inability is established in this case.

[182] First, the provinces, acting alone or together, are constitutionally incapable of establishing minimum national standards of GHG price stringency to reduce GHG emissions. The situation here is much like the one in the *2018 Securities Reference*, in which the provinces would be able to enact legislation to address national goals relating to systemic risk but could not do so on a sustained basis, because any province could choose to withdraw at any time: para. 113; see also *2011 Securities Reference*, at paras. 119-21. In the instant case, while the provinces could choose to cooperatively establish a uniform carbon pricing scheme, doing so would not assure a sustained approach to minimum national standards of GHG price stringency to reduce GHG emissions: the provinces and territories are constitutionally incapable of establishing a binding outcome-based minimum legal standard — a national GHG pricing floor — that applies in all provinces and territories at all times.

[183] Second, a failure to include one province in the scheme would jeopardize its success in the rest of Canada. It is true that a cooperative scheme might continue to *exist* if one province withdrew from it, but the issue here is whether it would be successful. The withdrawal of one province from the scheme would clearly threaten its success for two reasons: emissions reductions that are limited to a few provinces would fail to address climate change if they were offset by increased emissions in other Canadian jurisdictions; and any province's failure to implement a sufficiently stringent GHG pricing mechanism could undermine the efficacy of GHG pricing everywhere in Canada because of the risk of carbon leakage.

[184] The evidence in the instant case shows that even significant emissions reductions in some provinces have failed to further the goals of any cooperative scheme, because they were offset by increased emissions in other provinces. Between 2005 and 2016, Canada's total GHG emissions declined by only 3.8 percent … In that period, emissions fell by 22 percent in Ontario, 11 percent in Quebec and 5.1 percent in British Columbia, three of the five provinces with the highest levels of emissions in Canada, as well as by over 10 percent in New Brunswick, Nova Scotia, Prince Edward Island and Yukon. But these decreases were largely offset by increases of 14 percent in Alberta and 10.7 percent in Saskatchewan, the other two provinces among the five with the highest levels of GHG emissions: p. 13. As a result, Canada failed to honour its commitment under the *Kyoto Protocol* before withdrawing from that agreement in 2011, and it is not currently on track to honour its *Copenhagen Accord* commitment.

[185] More recently, even though all the provinces made a commitment in the *Vancouver Declaration* in March 2016 to work collectively to significantly reduce GHG emissions, Saskatchewan had withdrawn by the time of the *Pan-Canadian Framework* seven months later, and Ontario and Alberta also subsequently withdrew. Together, these three provinces accounted for 71 percent of Canada's total GHG emissions in 2016 …. It is true that their withdrawal from the *Pan-Canadian Framework* does not mean that Saskatchewan, Ontario and Alberta will necessarily fail to reduce their GHG emissions. But when provinces that are collectively responsible for more than two thirds of Canada's total GHG emissions opt out of a cooperative scheme, this illustrates the stark limitations of a non-binding cooperative approach. The participating provinces can only reduce their own emissions — less than one third of Canada's total — and are vulnerable to the consequences of the lion's share of the emissions being generated by the non-participating provinces.

[186] What is more, any province's refusal to implement a sufficiently stringent GHG pricing mechanism could undermine GHG pricing everywhere in Canada because of the risk of carbon leakage. Carbon leakage is a phenomenon by which businesses in sectors with high levels of carbon emissions relocate to jurisdictions with less stringent carbon pricing policies…. I am referring to the environmental consequences, and the resulting harm to humans, of carbon leakage — the risk that any emissions reductions achieved by pricing in one province would be offset by an increase in emissions in another province as a result of the relocation of businesses. Thus, provincial cooperation may not result in national emissions reductions, as businesses could simply relocate to non-cooperating provinces, leaving Canada's net emissions unchanged and people across Canada vulnerable to the consequences of those emissions.

[187] Third, a province's failure to act or refusal to cooperate would in this case have grave consequences for extraprovincial interests. It is uncontroversial that GHG emissions cause climate change. It is also an uncontested fact that the effects of climate change do not have a direct connection to the source of GHG emissions; every province's GHG emissions contribute to climate change, the consequences of which will be borne extraprovincially, across Canada and around the world. And it is well-established that climate change is causing significant environmental, economic and human harm nationally and internationally, with especially high impacts in the Canadian Arctic, in coastal regions and on Indigenous peoples. This includes increases in average temperatures and in the frequency and severity of heat waves, extreme weather events like floods and forest fires, significant reductions in sea ice and sea level rises, the spread of life-threatening diseases like Lyme disease and West Nile virus, and threats to the ability of Indigenous communities to sustain themselves and maintain their traditional ways of life.

[188] Furthermore, I reject the notion that because climate change is "an inherently global problem", each individual province's GHG emissions cause no "measurable harm" or do not have "*tangible* impacts on other provinces"… Each province's emissions are clearly measurable and contribute to climate change. The underlying logic of this argument would apply equally to all individual sources of emissions everywhere, so it must fail. …

[190] While each province's emissions do contribute to climate change, there is no denying that climate change is an "inherently global problem" that neither Canada nor any one province acting alone can wholly address. This weighs in favour of a finding of provincial inability. As a global problem, climate change can realistically be addressed only through international efforts. Any province's failure to act threatens Canada's ability to meet its international obligations, which in turn hinders Canada's ability to push for international action to reduce GHG emissions. Therefore, a provincial failure to act directly threatens Canada as a whole. This is not to say that Parliament has jurisdiction to implement Canada's treaty obligations — it does not — but simply that the inherently global nature of GHG emissions and the problem of climate change supports a finding of provincial inability in this case.

[191] … in the absence of a federal law binding the provinces, there is nothing whatsoever to protect individual provinces or the country as a whole from the consequences of one province's decision, in exercising its authority, to take insufficient action to control GHGs, or to take no steps at all. In short, federal action is indispensable, and GHG pricing in particular is an integral aspect of any scheme to reduce GHG emissions. …

[194] The analogy between this case and *Crown Zellerbach* is clear. Le Dain J. emphasized the international character of marine pollution; GHG emissions represent a truly global pollution problem that demands a coordinated international response. Le Dain J. focused on the unique scientific characteristics of marine pollution that distinguish it from fresh water pollution; GHG emissions, like marine pollution, are a precisely identifiable form of pollution that can readily be scientifically distinguished from other atmospheric pollutants.

[195] But the case for finding that the matter is of national concern is even stronger here than in *Crown Zellerbach*. This is true for two reasons. First, in the case at bar, there is uncontested evidence of grave extraprovincial harm as a result of one province's failure to cooperate. In other words, this is a true interprovincial pollution problem of the highest order. … Second, the proposed federal matter in the instant case relates only to the risk of non-cooperation that gives rise to this threat of grievous extraprovincial harm. In other words, this matter would empower the federal government to do only what the provinces cannot do to protect themselves from this grave harm, and nothing more.

(c) Scale of Impact

[196] I conclude that, while it is true that finding that the federal government has jurisdiction over this matter will have a clear impact on provincial autonomy, the matter's impact on the provinces' freedom to legislate and on areas of provincial life that fall under provincial heads of power will be limited and will ultimately be outweighed by the impact on interests that would be affected if Parliament were unable to constitutionally address this matter at a national level.

[197] I accept that finding that this matter is one of national concern has a clear impact on provincial jurisdiction. It leads to the recognition of a previously unidentified area of double aspect in which the federal law is paramount. Provinces can regulate GHG pricing from a local perspective (e.g., under ss. 92(13) and (16) and 92A), but legislation enacted on the basis of these provincial powers would apply concurrently in a field also occupied by a paramount federal law that establishes minimum standards of GHG price stringency. There is a clear impact on provincial autonomy. Provincial governments and their residents may well wish to pursue GHG pricing standards lower than those set by the federal government in order to protect the vitality of local industries, or may wish to choose policies that do not involve GHG pricing.

[198] However, I am persuaded that there is a real, and not merely nominal, federal perspective on the fact situation of GHG pricing: Canada can regulate GHG pricing from the perspective of addressing the risk of grave extraprovincial and international harm associated with a purely intraprovincial approach to GHG pricing. This is manifestly not the "same aspect of the same matter". On the contrary, the compelling federal interest is in doing precisely — and only — what the provinces cannot do: protect themselves from the risk of grave harm if some provinces were to adopt insufficiently stringent GHG pricing standards. Moreover, the matter's impact on the provinces' freedom to legislate and on areas of provincial life that would fall under provincial heads of power is qualified and limited.

[199] First, the matter's impact on the provinces' freedom to legislate is minimal. It is important to mention that the issue in this case is not the freedom of the provinces and territories to legislate in relation to GHG emissions generally. Here, the matter is limited to GHG pricing of GHG emissions — a narrow and specific regulatory mechanism. Any legislation that related to non-carbon pricing forms of GHG regulation — legislation with respect to roadways, building codes, public transit and home heating, for example — would not fall under the matter of national concern.

[200] Nor is the freedom of the provinces and territories to legislate in relation to all methods of pricing GHG emissions at issue. Even where the specific regulatory mechanism of GHG pricing is concerned, the extent to which the matter interferes with provincial jurisdiction is strictly limited. Under the GGPPA, provinces and territories are free to design and legislate any GHG pricing system as long as it meets minimum national standards of price stringency. If a province wants to exceed the federal standards, it is free to do so without fear of federal legislation rendering its legislation inoperative, because the federal matter concerns minimum standards, not maximum standards. If a province fails to meet the minimum national standards, the GGPPA imposes a backstop pricing system, but only to the extent necessary to remedy the deficiency in provincial regulation in order to address the extraprovincial and international harm that might arise from the province's failure to act or to set sufficiently stringent standards. … The federal matter thus deals with GHG pricing stringency in a way that relates only to the risk of non-cooperation and the attendant risk of grave extraprovincial harm and has the ascertainable and reasonable limits required by *Crown Zellerbach* so as to ensure that provincial jurisdiction is not eroded more than necessary.

[201] Second, the matter's impact on areas of provincial life that would generally fall under provincial heads of power is also limited. Although the identified matter of national concern could arguably apply to types of fuel and to industries to which the GGPPA does not apply at present, that matter is, crucially, restricted to standards for GHG pricing stringency. … Indeed, the federal power recognized in this case is significantly less intrusive than the one at issue in *Crown Zellerbach*, in which, as La Forest J. noted, the effect of finding that the federal government has jurisdiction over ocean pollution caused by the dumping of waste was to "virtually preven[t] a province from dealing with certain of its own public property without federal consent…

[202] Nor does the federal "supervisory" jurisdiction of the GGPPA increase the matter's scale of impact on provincial jurisdiction. As I explained above, the Governor in Council's discretion under the GGPPA is limited by the purpose of the statute, by specific guidelines set out in it and by administrative law principles. The Governor in Council does not have an unfettered discretion to determine whether a provincial GHG pricing system is desirable, but is confined to determining whether it meets results-based standards.

[203] Moreover, the Governor in Council's decision-making role in the GGPPA is an incident of the flexibility the provinces retain in relation to GHG pricing within their borders. If provincial pricing systems are to be taken into account and federal intervention is to be limited to remedying deficiencies in those systems, the GGPPA must include a mechanism for determining whether provincial pricing systems meet federal standards. It would not be feasible for the statute itself to indicate which provincial pricing systems meet federal standards, as provincial

pricing schemes and policies frequently change. The Governor in Council's decision-making role thus seems to be an incident of a flexible model designed to preserve provincial regulation. Furthermore, the discretion of the Governor in Council is necessary in order to ensure that some provinces do not subordinate or unduly burden the other provinces through their unilateral choice of standards.

[204] Indeed, the design of the GGPPA to ensure provincial flexibility is consistent with the *2018 Securities Reference*. In that case, the proposed law also involved a "supervisory" aspect, given that the federal regulator's intervention was contingent upon there being a risk that "slips through the cracks" of a provincial scheme that posed a threat to the Canadian economy: para. 92. The Court found that this feature weighed in favour of constitutionality, because the statute was a "carefully tailored" response to "this provincial incapacity"…

[206] On the whole, I am of the view that the scale of impact of this matter of national concern on provincial jurisdiction is reconcilable with the fundamental distribution of legislative power under the Constitution. The *GGPPA* puts a Canada-wide price on carbon pollution. Emitting provinces retain the ability to legislate, without any federal supervision, in relation to all methods of regulating GHG emissions that do not involve pricing. They are free to design any GHG pricing system they choose as long as they meet the federal government's outcome-based targets. The result of the GGPPA is therefore not to limit the provinces' freedom to legislate, but to partially limit their ability to refrain from legislating pricing mechanisms or to legislate mechanisms that are less stringent than would be needed in order to meet the national targets. Although this restriction may interfere with a province's preferred balance between economic and environmental considerations, it is necessary to consider the interests that would be harmed — owing to irreversible consequences for the environment, for human health and safety and for the economy — if Parliament were unable to constitutionally address the matter at a national level. This irreversible harm would be felt across the country and would be borne disproportionately by vulnerable communities and regions, with profound effects on Indigenous peoples, on the Canadian Arctic and on Canada's coastal regions. In my view, the impact on those interests justifies the limited constitutional impact on provincial jurisdiction.

(d) Conclusion on the National Concern Doctrine

[207] In conclusion, the GGPPA is *intra vires* Parliament on the basis of the national concern doctrine. Canada has adduced evidence that shows that the proposed matter of establishing minimum national standards of GHG price stringency to reduce GHG emissions is of clear concern to Canada as a whole and that the two principles underpinning the "singleness, distinctiveness and indivisibility" inquiry are satisfied. Considering the impact on the interests that would be affected if Canada were unable to address this matter at a national level, the matter's scale of impact on provincial jurisdiction is reconcilable with the division of powers. …

5.3 CÔTÉ J (dissenting)

[Justice Côté struck down the Act on the basis that it had delegated the power to amend parts of the Act legislation – a so-called Henry VIII clause. She did not address the national concern branch of the POGG power.]

5.4 BROWN J (dissenting)

A. Characterization …

[323] … the Attorney General of Canada acknowledges that his approach has "evolved", having been "informed" along the way "by the characterizations of [the] courts below" (R.F., at para. 61). So where has this "evolution" brought him? Before this Court, it has at last brought him to the revelation that the Act's dominant subject matter is "establishing minimum national standards integral to reducing nationwide GHG emissions" (para. 56 (emphasis deleted)). …

[326] The principal difficulty with these submissions is the invocation of "minimum national standards". It adds nothing to the pith and substance of a matter, which is directed *not* to the fact of *a standard*, but to *the subject matter* to which the standard is to be applied. In other words, identifying "minimum national standards" as part of the dominant subject matter begs the very question which the characterization analysis seeks to answer: minimum national standards *of what*?

[327] "Minimum national standards" is a *nothing*. It is an *artifice* — or, as the Attorney General of Alberta puts it, a rhetorical "sleight of hand" … *Only* federally enacted standards can be both "national" (in the sense that only federal legislation can apply nationwide, while provincial legislative authority cannot extend beyond its borders) *and* a "minimum" (since, if a provincial standard is different from a corresponding federal standard, the operation of paramountcy ensures that the federal standard will prevail). In the result, using "minimum" and "national" to describe the Act's pith and substance is empty and misleading. …

[338] The difficulty with many of the submissions before us, however, including those of the Attorney General of Canada, is that they attempt to characterize the pith and substance of the Act as if Parts 1 and 2 were each doing the same thing in the same way. The majority's pith and substance analysis is based on the same premise (para. 71). … While Part 1 of the Act increases the cost of producing, delivering, using, or importing fuels that produce GHG emissions (which is expected to be passed on to consumers through an increase in the ultimate retail cost of those fuels), Part 2 does something quite different: it increases the cost of certain industrial activities by charging large facilities for producing GHG emissions over prescribed limits based on their particular industry and production processes. Part 2 also alleviates the impact of carbon pricing on *some* industries, but *not all*: the OBPS covers only the emissions-intensive trade-exposed industries that carry out an activity that the federal Cabinet chooses to list in the regulations. Picking winners and losers in this way is the stuff of industrial policy, not carbon price stringency. …

[340] It follows from the foregoing that the pith and substance of Parts 1 and 2 of the Act ought to be characterized separately. And it also follows from the foregoing that the pith and substance of Part 1 of the Act is the reduction of GHG emissions by raising the cost of fuel. The pith and substance of Part 2 of the Act is the reduction of GHG emissions by pricing emissions in a manner that distinguishes among industries based on emissions intensity and trade exposure.

B. Classification …

[342] It must be remembered that the Act's entire scheme is *premised* on the provinces *having* jurisdiction to do precisely what Parliament has presumed to do in the Act —— that is, to impose carbon pricing through a comparable scheme.

[343] Provincial jurisdiction over property and civil rights authorized by s. 92(13) stands out as the most relevant source of legislative authority for the pith and substance of Parts 1 and 2 of the Act. Regulating trade and industrial activity, all within the boundaries of specified provinces, is indisputably captured by this broad head of power, which includes the regulation of business not coming within one of the enumerated federal heads of power, as well as, of course, the law of property and of contracts … Indeed, as I have explained, the Act operates as a backstop, operating only where provincial legislative authority is not exercised, or not exercised in a manner acceptable to the federal Cabinet. …

[345] The provincial residuum in s. 92(16), granting authority over all matters of a local or private nature, could also authorise Parts 1 and 2 of the Act in the alternative (Hogg, at pp. 21-4 to 21-5).

[346] Part 2 of the Act, as a deep foray into industrial policy, also falls within matters of provincial legislative authority granted by s. 92(10) over local works and undertakings. Also relevant to Part 2 of the Act — with its emphasis on heavy industrial emitters, trade exposure, and international competitiveness — is s. 92A. This head of power gives the provinces the exclusive jurisdiction to make laws in relation to the exploration, development, conservation, and management of non-renewable natural resources in the province. Though not intended to derogate from the existing powers of Parliament, the resource amendment fortifies the pre-existing provincial powers in this area and gives the provinces indirect taxation powers, and greater control over, their natural resources…

(2) The National Concern Branch of POGG

(a) Defining the Matter of National Concern

[370] …Defining a matter of national concern that encompasses *both* the reduction of GHG emissions by raising the cost of fuel (Part 1) and the reduction of GHG emissions by pricing emissions in a manner that distinguishes among industries based on emissions intensity and trade exposure (Part 2) requires broad strokes. The legislative means employed by Parts 1 and 2 are mutually distinct. Indeed, each is quite different from the other, sharing only a purpose: the reduction of GHG emissions. This, and my conclusion stated above that the definition of the matter of national concern should not tie Parliament to a particular legislative means, tend to support the identification of the matter said to be of national concern as the purpose of the Act: *the reduction of GHG emissions*. The only remaining question, then, is whether the reduction of GHG emissions satisfies the test stated in *Crown Zellerbach* for a valid national concern.

(b) Singleness, Distinctiveness and Indivisibility

[371] "The reduction of GHG emissions" does not meet the requirements of *Crown Zellerbach*. This would be so, even if it were appropriate to consider each of the pith and substance of Parts 1 and 2 as proposed matters of national concern, since the reduction of GHG emissions by raising the cost of fuel (Part 1) and by pricing emissions in a manner that distinguishes among industries based on emissions intensity and trade exposure (Part 2) each fail to meet the requirement of distinctiveness. Neither of these matters is distinct from matters falling under provincial jurisdiction under s. 92. ….

(i) The Pith and Substance of Each Part Is Not Distinct

[372] Here again, the backstop model of the Act is of significance. The principal difficulty in finding that the reduction of GHG emissions (whether by raising the cost of fuel, or by pricing emissions in a manner that distinguishes among industries based on emissions intensity and trade exposure) has the requisite distinctiveness to be recognized as a matter of national concern is illustrated by the very quality of the scheme that Parliament has legislated. Through the Act, Parliament encourages provinces to enact substantially *the same* scheme to serve *the same* regulatory purpose of altering behaviour. Again, this demonstrates that Parliament has legislated in respect of a matter that falls within provincial legislative authority, specifically, ss. 92(10) (local works and undertakings), (13) (property and civil rights), (16) (matters of a local nature) and 92A (natural resources). …

[373] Proponents of the Act urge us to find that, even if the Act and provincially legislated GHG pricing schemes address the same matter, they each address different *aspects* of that matter. This argument rests on the applicability of the double aspect doctrine, whose application here the majority not only accepts but describes as *inevitable* whenever minimum national standards are employed (Chief Justice's reasons, at paras. 125-31). But the majority is simply wrong -- the double aspect doctrine has no application here.

[374] The double aspect doctrine arose because "some matters are by their very nature impossible to categorize under a single head of power: they may have both provincial and federal aspects" (*Canadian Western Bank v. Alberta*, 2007 SCC 22, [2007] 2 SCR 3, at para. 30). It therefore contemplates that "both Parliament and the provincial legislatures can adopt valid legislation on a single subject depending on the perspective from which the legislation is considered, that is, depending on the various 'aspects' of the 'matter' in question" (para. 30). Whether the doctrine applies to the national concern doctrine of POGG is a question of some controversy, given this Court's statement in *Crown Zellerbach* that Parliament acquires "exclusive jurisdiction of a plenary nature to legislate in relation to" the matter of national concern (p. 433; see, for instance, *Lacombe*, at paras. 26-27). Assuming without deciding, however, that the double aspect doctrine may, in some instances, apply to matters of national concern recognized as such under POGG, it has no application here.

[375] As the provinces clearly have jurisdiction to establish standards of GHG price stringency in the province, this leaves as the only difference between the federal aspect and the provincial aspect "minimum national standards". Obviously, adopting "minimum national standards" as part of the matter of national concern allows the majority to invoke the double aspect doctrine, since it has defined the matter in terms of something (enacting "national standards") which, as a practical matter, only Parliament could possibly do. And just as obviously, when the matter is defined in terms of something only Parliament could possibly do, *whatever it is* that the provinces are doing *must* be *something different*. This reasoning, however, could easily be applied to create federal "aspects" of all sorts of matters falling within provincial jurisdiction. Indeed, the majority suggests *just that*, acknowledging that whenever the device of "minimum national standards" is used, a double aspect "will inevitably result" (para. 129).

[376] The device of minimum national standards, combined with the double aspect doctrine, artificially meets many aspects of the *Crown Zellerbach* test, as diluted by the majority. By definition, "minimum national standards", being *national*, would presumably, and in every case, qualify as "qualitatively different from matters of provincial concern" and as "predominantly extraprovincial . . . in character" (Chief Justice's reasons, at para. 148). And, of course provinces, being provinces, are *unable* to establish binding minimum national standards (para. 182). Further, because the *Act* leaves the provinces free to adopt their own schemes *as long as* (or *provided*) they meet federal approval, the impact on provincial jurisdiction is "qualified and limited" (paras. 198, 205 and 211). In short, the device of "minimum national standards", where applied, deprives the majority's framework of much of its "exacting" quality.

[377] It is, however, this simple. While the double aspect doctrine "allows for the *concurrent application* of both federal and provincial legislation, . . . it does not create *concurrent jurisdiction*" (*2011 Securities Reference*, at para. 66 (underlining added)). …

[378] The Attorney General of Quebec offers a particularly compelling and constitutionally sound encapsulation of the problem with the majority's invocation of the double aspect doctrine in this case, and of the damage to the federation that will follow. The Attorney General of Quebec -- no stranger to carbon pricing and legislative action to mitigate climate change -- says that the proposed matter does not contemplate two aspects of the same matter; rather, it contemplates the same aspect of the same matter. And because the provinces may legislate in this area only where such legislation meets the criteria unilaterally set by the federal government, defining the matter so as to artificially conjure a double aspect effectively amounts to a *transfer of jurisdiction* from the provinces to the federal government. …

(ii) "The Reduction of GHG Emissions" Is Not Single or Indivisible …

[380]… While aspects of "the reduction of GHG emissions" may be distinct from matters falling under s. 92, as a matter of national concern it still fails to meet the *Crown Zellerbach* requirements of singleness and indivisibility. In *Crown Zellerbach*, it was "not simply the possibility or likelihood of the movement of pollutants across [the boundary between the territorial sea and the internal marine waters of a state]", but "the difficulty of ascertaining by visual observation" that boundary that meant uniform legislative treatment was required for marine pollution (p. 437).

This proposition could not be clearer. The matter was indivisible in that case *not* because pollutants might cross an invisible boundary; rather, the matter was indivisible because of the difficulty of knowing the source and physical location (federal territorial seas vs. provincial inland waters) of the pollution at any given time, and therefore whose regulatory and penal provisions might apply.

[381] Here, however, the territorial jurisdiction from which GHG emissions are emitted is readily identifiable. The matter is divisible, because whenever fuel is purchased, or an industrial activity is undertaken, no question arises as to physical location and, therefore, no difficulty arises in identifying whose jurisdiction might apply. Responsibility for the reduction of GHG emissions among the provinces can therefore be readily identified for regulation at the source of such emissions. This is not a concern which, absent exclusive federal jurisdiction, the provinces could not address. Rather, both Parliament and the provinces may within their respective spheres of legislative authority "operate in tandem" to reduce GHG emissions (*Hydro-Québec*, at para. 59). The reduction of GHG emissions therefore lacks the degree of unity required to qualify as an indivisible matter of national concern. …

[383] Of course, uniform legislative treatment in the area of GHG emissions reduction might be *desirable*, as it might assist Canada in meeting its international commitments in relation to GHG emission targets. But the desirability of uniform treatment is hardly the marker of a matter of national concern. Here, the non-participation of one province does not prevent any other province from reducing its own GHG emissions. While a provincial failure to deal effectively with the control or regulation of GHG emissions may cause more emissions from that province to cross provincial boundaries, that is *precisely* what this Court held was insufficient to meet the requirement of indivisibility in *Crown Zellerbach*. To be clear, even if this *could* be said to meet the provincial inability test —— that is, even if *Crown Zellerbach* could be read as understanding "provincial inability" as including a provincial failure to act —— my conclusion on this point would not change. This is because, properly understood -- and contrary to the framework developed by the majority -- the provincial inability test is but one indicium of singleness and indivisibility. …

[385] Obviously, uniform legislative treatment might be desirable in that it could alleviate concerns about carbon leakage. But, and again as the Court of Appeal of Alberta observed, the evidence on this record of the harms of interprovincial carbon leakage is equivocal at best. …

(c) Scale of Impact

[387] Even *were* the reduction of GHG emissions a single and indivisible area of jurisdiction, its impact on provincial jurisdiction would be of a scale that is completely irreconcilable with the division of powers.

[388] The power to legislate to reduce GHG emissions effectively authorizes an array of regulations, "the boundaries of [which] are limited only by the imagination" (Sask. C.A. reasons, at para. 128). It extends to the regulation of any activity that requires carbon-based fuel, including manufacturing, mining, agriculture, and transportation. Indeed, Part 2 of the Act, much like the impugned law in the *2011 Securities Reference*, descends into the detailed regulation of industrial GHG emissions reduction by imposing different carbon prices on different industrial activities. As Huscroft J.A. recognized, in dissent, the power to create minimum standards for GHG emissions could potentially authorize minimum standards related to home heating and cooling, public transit, road design and use, fuel efficiency, manufacturing and farming prices (Ont. C.A. reasons, at para. 237).

[389] Unlike previously recognized matters of national concern, including aeronautics, the development and conservation of the national capital region, atomic energy and marine pollution, the power to legislate to reduce GHG emissions has the potential to undo Canada's division of powers. It is in this respect comparable to the broad topics of environmental regulation and inflation, which this Court has expressly refused to recognize as independent legislative subjects. …

[390] In an attempt to minimize the scale of impact on provincial jurisdiction, the Attorney General of British Columbia reminds us that the Act does not forbid any *activity*, but only increases the *cost* of certain activities. …

[391] The majority adopts this line of argument, describing "establishing minimum national standards of GHG price stringency to reduce GHG emissions" as an exclusively "pricing-based formulation" of the Act's pith and substance (para. 57). …

[392] This view ignores two problems. First, "just paying money" is an odd way of describing the impact of a law. The *goal* of the financial charges — "just paying money" — is *to influence behaviour*, in this case both consumer and industrial. And that is precisely the point. …

[394] The second problem with the "just paying money" line of defence is that the contrasting degree of potential impact on provincial jurisdiction of a hypothetical law validly promulgated under Parliament's criminal law power, or its taxation power for that matter, has absolutely no bearing on whether another matter should be recognized as a matter of national concern. Contrary to the submissions of the Attorneys General of Canada and British Columbia at the hearing of these appeals, the Constitution does not require provinces to happily accept a severe intrusion on their jurisdiction under POGG simply because Parliament *could* have passed a *criminal* law. Likewise, an intrusion into provincial jurisdiction is no less severe simply because it leaves the provinces with authority to enact *more* stringent regulatory requirements. This argument misses the point of the division of powers analysis, which -- *pace* the majority -- allows no recourse to balancing or proportionality considerations. The Constitution Act, 1867 does not permit federal overreach *as long as* it preserves provincial autonomy to the greatest extent possible. It sets out spheres of exclusive jurisdiction. It *divides* powers -- *exclusive* powers -- between Parliament and the provincial legislatures. And within their sphere of jurisdiction, the provincial legislatures are sovereign, which sovereignty connotes provincial power to act —— or not act —— as they see fit, not *as long as* they do so in a manner that finds approval at the federal Cabinet table …

[451] But the real problem with my colleagues' scale of impact analysis is their significant understatement of the intrusion into provincial jurisdiction effected by the Act. It will be recalled that the majority finds that the impact on provincial jurisdiction is limited, in part because the "impact on the provinces' freedom to legislate is minimal" and "strictly limited", since provinces "are free to design and legislate any GHG pricing system as long as it meets minimum national standards of price stringency" (paras. 199-200 (emphasis added)). As I have noted, this ignores the detailed industrial regulations authorized by Part 2 of the Act. But it also ignores that the federal benchmark is *not static*, and can be set to an increasingly stringent level so as to correspondingly narrow provincial jurisdiction in the field. It is only by ignoring such things that the majority is able to claim that the federal power that it recognizes here is "significantly less intrusive than [that recognized] in *Crown Zellerbach*" (para. 201).

[452] More fundamentally, and even if federalism *were* a thing whose terms were not constitutionally enshrined but could instead be judicially balanced, the majority's overall approach is not one of balance. Rather, the majority puts its thumb heavily on the federal side of the scale —— by legitimating as a national concern the device of "minimum national standards" on matters of importance that otherwise fall within provincial jurisdiction, and by insisting that doing so still preserves provincial autonomy (*as long as* it is exercised in accordance with federal priorities). Parliament now knows how to ensure that the balance will always tip its way, whenever provinces choose to exercise their legislative authority in a way that impedes the federal agenda. …

5.5 ROWE J (dissenting)

[457] The national concern doctrine is a residual power of last resort. I have come to this view through a close reading of *R. v. Crown Zellerbach Canada Ltd.*, 1988 CanLII 63 (SCC), [1988] 1 SCR 401, and the cases that preceded it. Faithful adherence to the doctrine leads inexorably to the conclusion that the national concern branch of the "Peace, Order, and good Government" ("POGG") power cannot be the basis for the constitutionality of the [*GGPPA*] …

III. The National Concern Doctrine

A. Singleness, Distinctiveness, Indivisibility …

[540] Given the residual nature of POGG, the importance of a matter has nothing to do with whether it is a matter of national concern. …The role of the general residual power is to maintain the exhaustiveness of the division of powers, not to centralize "important" matters that can be legislated upon by the provinces or by both orders of government. …

B. Provincial Inability

(1) Extra-Provincial Effects Are Relevant to, But Not Determinative of, Provincial Inability

[554] … "extra-provincial effects", on their own, are insufficient to satisfy the "provincial inability" test. Rather, the extra-provincial effects must be such that the matter, or part of the matter, is beyond the powers of the provinces to deal with on their own or in tandem. …

[556] Clearly, some extra-provincial effects are compatible with provincial jurisdiction, considering that, under the federal structure, provinces can adversely affect extra-provincial interests if they are acting within their sphere of jurisdiction … If the pith and substance of provincial legislation comes within the classes of subjects assigned to the provinces, incidental or ancillary extra-provincial effects are irrelevant to its validity …Given the potential displacement of provincial authority, courts should have a "strong empirical base" for concluding that the extra-provincial effects are such that the matter is beyond the powers of the provinces to deal with on their own or in tandem …

[557] Evidence that provinces are not cooperating, even combined with the presence of extra-provincial effects, is also insufficient to make out provincial inability. Provinces are sovereign within their sphere of jurisdiction and can legitimately choose different policies than other provinces. The sovereign and democratic will of provincial legislatures entitles them to agree or disagree that uniformity of laws is a desirable goal, and to change their mind in the future … Moreover, since the possibility of one or more provinces not cooperating is always hypothetically present, such lax criteria would be ineffective protection for provincial jurisdiction … It is worth repeating that striking a balance between diversity and uniformity is precisely why the Canadian constitution has a federal structure. In certain fields, the Constitution Act, 1867, places diversity and the right to provincial difference above uniformity. This is not a defect of our Constitution, it is a strength.

(2) Provincial Inability Is Relevant to, But Not Determinative of, "Singleness, Distinctiveness and Indivisibility"

[558] Second, the residual role of the national concern doctrine explains why Le Dain J. in *Crown Zellerbach* indicated that the "provincial inability" test is only a "factor" to evaluate whether a subject matter has the required singleness, distinctiveness and indivisibility.

[559] Many matters are "beyond the power of the provinces to deal with" but do not meet the requirements of singleness, distinctiveness and indivisibility, and are therefore not matters of national concern. Obviously, matters that fall squarely within federal jurisdiction are one example (i.e. currency and coinage, the postal service, etc.). This is also the case when matters are mere divisible aggregates that span provincial and federal jurisdiction …. For instance, there is no denying that the containment of inflation is "beyond the power of the provinces to deal with", since it involves measures that fall squarely under federal jurisdiction, such as central banking measures relating to the rate of interest (*Anti-Inflation*, at p. 452). This does not mean that the containment of inflation has the required singleness and indivisibility to qualify as a matter of national concern since it can be divided and distributed to both orders of government. Since there is no constitutional gap, there is no need for the national concern doctrine to be applied such that the entire matter comes under federal jurisdiction.

[560] Provincial inability is no more than Le Dain J. says it is in *Crown Zellerbach*: an indicium of "singleness, distinctiveness and indivisibility". Extra-provincial effects resulting in provincial inability may indicate that the matter is not of a local or private nature (i.e. "distinct" from provincial matters), or is not separable from the local and private aspects of the matter (i.e. "indivisible" or "single"). This will be the case where the extra- and intra-provincial aspects of a matter are interrelated and inseparable (*Crown Zellerbach*, at p. 434). This makes sense. In line with the residual role of POGG, federal authority over what was formerly within provincial competence is only justified where a matter has become distinct from what the provinces can do, and cannot be shared between orders of government because of its indivisibility. In such a case, reliance on POGG is the only way to maintain the exhaustiveness of the division of powers. Otherwise, there would be a jurisdictional void — if the federal Parliament did not have jurisdiction over such a matter, no one would.

C. Scale of Impact

[561] When determining if a matter can pass muster as a subject matter falling under POGG, the final step is to consider whether it has "a scale of impact on provincial jurisdiction that is reconcilable with the fundamental distribution of legislative power under the Constitution" (*Crown Zellerbach*, at p. 432). If the "singleness, distinctiveness and indivisibility" inquiry has been carried out correctly such that reliance on POGG is necessary to avoid a jurisdictional vacuum, then the scale of impact will necessarily be reconcilable with the division of powers. This stage of the test should therefore be understood as a "check" or "litmus test", rather than as an independent requirement. The evaluation of the scale of impact on the federal balance illustrates the need for caution when determining whether a new permanent head of exclusive power should, in effect, be added to the federal list of powers (*Anti-Inflation*, at p. 444).

[562] This prong of the test requires courts to determine whether recognizing the proposed new federal power would be compatible with the federal structure. It does *not* ask whether the importance of the proposed new federal power *outweighs* the infringement on provincial jurisdiction. Importance is irrelevant because it does not indicate whether there is a jurisdictional gap that must be filled with the general residual power. Important matters can and should be dealt with by the provinces. Further, assessing importance requires courts to assess the desirability of certain policies, something which is not their role.

[563] Rather, the notion of scale of impact on the fundamental distribution of powers is a manifestation of the principle of federalism. …

[566] Although the modern conception of federalism is flexible and accommodates overlapping jurisdiction, courts must be careful not to let the double aspect doctrine undermine the scale of impact inquiry by suggesting that provinces retain ample means to regulate the matter. The double aspect doctrine recognizes that the same fact situation or "matter" may possess both federal and provincial aspects, which means that both orders of government can legislate from their respective perspective …

[569] Moreover, the double aspect doctrine must be applied carefully, since increasing overlap between provincial and federal competence can severely disrupt the federal balance. Under the paramountcy doctrine, "where there is an inconsistency between validly enacted but overlapping provincial and federal legislation, the provincial legislation is inoperative to the extent of the inconsistency" (*Saskatchewan (Attorney General) v. Lemare Lake Logging Ltd.*, 2015 SCC 53, [2015] 3 SCR 419, at para. 15; *Rothmans, Benson & Hedges Inc. v. Saskatchewan*, 2005 SCC 13, [2005] 1 SCR 188, at para. 11). The combined operation of the doctrines of double aspect and federal paramountcy can have profound implications for the federal structure and for provincial autonomy. …

> [572] The Chief Justice also takes issue with my account of the national concern test. I agree that our understandings of POGG are fundamentally different. Mine is that POGG confers residual authority, by which I mean authority to legislate in relation to only those matters which would otherwise fall into a jurisdictional vacuum. As such, it can only be the basis of jurisdiction for matters that do not come within heads of power listed in ss. 91 and 92, and *cannot be divided between them*. Such residual authority is necessary to ensure that the division of powers is exhaustive. To put it in the simplest terms, the matters falling under the competence conferred on Parliament by s. 91 and that conferred on the legislatures of the provinces by s. 92, or any combination of the two, by definition, cannot come within a residual authority.
>
> [573] Therein lies the conceptual difference that the Chief Justice highlights. In his framework, POGG is a primary source of authority conferred on Parliament in relation to "matters of inherent national concern" (para. 139). Moreover, it is a source of authority that can be used to deal with federal "aspects" of matters under enumerated powers within the exclusive jurisdiction of provincial legislatures. Thus, he states at para. 130: ". . . where Canada is empowered to impose a minimum national standard, a double aspect situation arises: federal and provincial laws apply concurrently, but the federal law is paramount."
>
> [574] By means of "minimum national standards", a federal aspect is *generated*, and this federal aspect can be used as a basis to supervise provinces in the exercise of their authority. This is not residual authority. It is the antithesis of residual authority, as it would operate to encroach on jurisdiction conferred on the provinces. Most respectfully, I disagree. …
>
> [594] In conclusion, … for the reasons of my colleague Brown J., conclude that Parliament did not have jurisdiction to enact the Act under its general residual power. …

5.6 Note: linking s. 91(2) and POGG

An important doctrinal development in *References re Greenhouse Gas Pollution Pricing Act* is to link the jurisprudence under the general regulation of trade branch of s. 91(2) with the national concern branch of POGG, in relation to the provincial inability test. Sujit Choudhry made this proposal in an article that appeared prior to the Supreme Court's hearing ("Constitutional Law and the Politics of Carbon Pricing in Canada" (2019) 74 *Institute for Research in Public Policy Study*, 19-23). Choudhry also argued that the Supreme Court should determine that GHG emissions pose a "systemic risk", and that the federal government had jurisdiction over systemic risks, whether of an economic or environmental nature:

> … at the heart of the *Greenhouse Gas Reference* is this question: What are the circumstances under which the federal government can legislate unliterally to address interjurisdictional spillovers in the form of negative extraprovincial externalities, even if it is possible for a federal-provincial- territorial or provincial-territorial agreement to functionally replicate federal legislation? The Supreme Court must squarely address this issue.
>
> **From provincial inability to provincial incapacity and systemic risk**
>
> Even though the federal government has sought to uphold the *GGPPA* under the POGG power, the answer to this question can be found in the jurisprudence under the federal trade and commerce power…
>
> The most important development in the trade and commerce case law since *General Motors* is the emergence of the concept of "systemic risks," which the Supreme Court of Canada introduced in *Reference re Securities Act*. This concept appeared in expert evidence from Michael Trebilcock, who defined them as "risks that occasion a 'domino effect' whereby the risk of default by one market participant will impact the ability of others to fulfil their legal obligations, setting off a chain of negative economic consequences that pervade an entire financial system" (paragraph 103).
>
> …In *Reference re Securities Act*, the Supreme Court found draft federal securities legislation for a comprehensive regime of securities regulation to be unconstitutional because it intruded into provincial jurisdiction. However, the Court opined that federal legislation confined to systemic risks would fall within federal jurisdiction. …
>
> The obvious rejoinder is that the provinces could enact coordinated legislation to address systemic risk. For example, "[b]y way of administrative delegation, they could delegate provincial regulatory powers to a single pan-Canadian regulator" (paragraph 118). … However, the Supreme Court in *Reference re Securities Act* rejected this argument …
>
> The Supreme Court accepted the factual proposition that withdrawal by a province could undermine the effectiveness of an interprovincial arrangement — for example, by creating a negative extraprovincial externality. It reasoned that this would be the price of federalism "in many areas," which the Court referred to as "lesser regulatory matters" (paragraph 123). But in the case of "managing systemic risk," the Court held that that price would be too high, because achieving "truly national goals" or "genuine national goals" (paragraph 121) would be jeopardized by unilateral provincial action. In respect of these issues, "a federal regime would be qualitatively different from a voluntary interprovincial scheme" (paragraph 123), and the federal government could legislate unilaterally. …
>
> **Provincial incapacity and the systemic risk of global climate change: the constitutional case for the *GGPPA***
>
> The concept of systemic risk — developed under the general regulation of trade branch of the trade and commerce power — is one that the Supreme Court should incorporate into the test for the national dimensions branch of POGG in the *Greenhouse Gas Reference*. The Court should distinguish "lesser regulatory areas" from "truly national goals" — the latter term being tantamount to matters of national concern. For the former, negative extraprovincial externalities are the price of federalism, and the policy area remains within provincial jurisdiction. But for the latter, negative extraprovincial externalities are a reason why the matter "must be regulated federally." Systemic risks are a kind of negative extraprovincial externality that falls into this category.
>
> The constitutional question is whether GHG emissions pose a systemic risk — and hence fall under federal jurisdiction. The federal government's argument would have to run as follows. If global temperatures rise beyond a certain level, a tipping point will be reached, leading to an uncontrollable cascade of events. GHGs would be released into the atmosphere at an ever-accelerating rate, which would fuel a self-reinforcing feedback loop that, once commenced, would be impossible for humanity to arrest, and that would make the planet uninhabitable. This is a "domino effect" of the kind referred to by the Supreme Court in *Reference re Securities Act*.
>
> In *Reference re Securities Act*, the Court stated that "[b]y definition" systemic "risks can be evasive of provincial boundaries and usual methods of control." In other words, systemic risks transcend jurisdictional boundaries. In that case, the systemic risk was economic, and the boundaries were interprovincial. In the case of GHG emissions and climate change, the systemic risk is environmental, and the boundaries are international.

5.7 Note: double aspect doctrine and the national concern branch of the POGG

The Supreme Court divided on the applicability of the double aspect doctrine to the national concern branch of the POGG. The majority, per Wagner CJ, held that it was applicable under certain circumstances. Brown and Rowe JJ, on the other, held it was inapplicable.

Consider the concerns raised by the dissenting judges. Do you agree? How does the majority respond to these concerns? Are you persuaded?

6 *Reference re Impact Assessment Act*: the latest word on the POGG power

6.1 Introduction: the presumption of constitutionality

In *Reference re Impact Assessment Act*, 2023 SCC 23, the Supreme Court once again considered the federal-provincial division of powers over environmental assessment. Although the Court reaffirmed that jurisdiction over environmental assessment was divided – as it had held in *Oldman River* – it struck down the federal *Impact Assessment Act*. The notable feature of the decision is that the Court read its holding in *References re Greenhouse Gas Pollution Pricing Act* on the scope of federal environmental jurisdiction very narrowly. In particular, despite the link between carbon emissions and large infrastructure projects, the Court firmly held that federal jurisdiction over carbon pricing did not extend to environmental assessment generally. The dissent concurred.

This chapter also includes material in this extract on the presumption of constitutionality. As the majority explains, this is the principle of statutory interpretation that a law is presumed to lie within the jurisdiction of the enacting level of government. Although *Oldman River* did not cite the presumption, it lies at the core of that decision. In essence, *Oldman River* interpreted broadly worded federal environmental assessment legislation to apply only to aspects of projects within with federal jurisdiction. Moreover, the principle is symmetric – it applies to provincial legislation as well. For several decades, the presumption of constitutionality has enabled both levels of government to conduct environmental assessments of the same projects. For the first time, the Court refused to apply the doctrine to narrow the application of federal environmental assessment legislation. The dissent sharply disagreed on this point.

6.2 Background

In 2019, following a review of the existing federal environmental assessment process, Parliament enacted the *Impact Assessment Act* and the Governor in Council made the *Physical Activities Regulations* under the *IAA*. The *IAA* and the Regulations establish a complex information gathering and regulatory scheme, which was essentially two schemes in one. First, a discrete portion of the scheme — contained in ss. 81 to 91 of the *IAA* — deals with projects carried out or financed by federal authorities on federal lands or outside Canada. The assessment process set forth in ss. 81 to 91 focuses on a narrow set of projects: physical activities carried out on federal lands or outside Canada, while the designated projects that attract environmental impact has the potential of affecting purely intraprovincial matters.

Controversy turned on the second part of the scheme. This concerned the ability of the federal government to identify "designated projects" for which an environmental impact assessment is required and federal restrictions on projects potentially imposed. The relevant provision outlined the mandatory public interest factors that the decision maker must take into account:

> *The Minister's determination under paragraph 60(1)(a) in respect of a designated project referred to in that subsection, and the Governor in Council's determination under section 62 in respect of a designated project referred to in that subsection, must be based on the report with respect to the impact assessment and a consideration of the following factors:*
>
> *(a) the extent to which the designated project contributes to sustainability;*
>
> *(b) the extent to which the adverse effects within federal jurisdiction and the adverse direct or incidental effects that are indicated in the impact assessment report in respect of the designated project are significant;*
>
> *(c) the implementation of the mitigation measures that the Minister or the Governor in Council, as the case may be, considers appropriate;*
>
> *(d) the impact that the designated project may have on any Indigenous group and any adverse impact that the designated project may have on the rights of the Indigenous peoples of Canada recognized and affirmed by section 35 of the Constitution Act, 1982; and*
>
> *(e) the extent to which the effects of the designated project hinder or contribute to the Government of Canada's ability to meet its environmental obligations and its commitments in respect of climate change.*

6.3 WAGNER CJ (Côté, Rowe, Martin and Kasirer JJ. concurring):

> [2] Three decades ago, this Court acknowledged that the "protection of the environment has become one of the major challenges of our time" (*Friends of the Oldman River Society v. Canada (Minister of Transport)*, 1992 CanLII 110 (SCC), [1992] 1 SCR 3, at p. 16). In a long line of cases since then, this Court has affirmed that both Parliament and the provincial legislatures have the ability to enact laws to address various facets of environmental protection, including schemes of environmental assessment [cites to cases including *Crown Zellerbach* and *References re Greenhouse Gas Pollution Pricing Act*]. But this Court has also affirmed that each level of government must confine its legislative efforts to its own constitutional sphere.
>
> [3] … This Court must ensure that, in its laudable pursuit of environmental protection and sustainability, Parliament has not overstepped its constitutional limits.
>
> [4] … Given the "sweeping" nature of environmental regulation, division of powers disputes in the environmental context must be approached with "[g]reat sensitivity" (see *Hydro-Québec*, at para. 154). Respect for the division of powers drives the enactment of robust environmental protection legislation and facilitates cooperation between the two levels of government.
>
> [5] Having carefully considered the complex legislative scheme at issue in this appeal, I conclude that it is unconstitutional in part. As I will explain, the scheme is essentially two schemes in one. First, a discrete portion of the scheme — contained in ss. 81 to 91 of the *IAA* — deals with projects carried out or financed by federal authorities on federal lands or outside Canada. In pith and substance, this portion of the scheme directs the manner in which federal authorities assess the significant adverse environmental effects that such projects may have. This portion of the scheme is clearly *intra vires*.
>
> [6] Second, the balance of the scheme — made up of the *IAA*'s remaining provisions and the Regulations — deals with "designated projects" as defined in the *IAA*. The pith and substance of this designated projects scheme is to assess and regulate designated projects with a view to mitigating or preventing their potential adverse environmental, health, social and economic impacts. In my view, Parliament has plainly overstepped its constitutional competence in enacting this designated projects scheme. This scheme is *ultra vires* for two overarching reasons. First, it is not in pith and substance directed at regulating "effects within federal jurisdiction" as defined in the *IAA* because these effects do not drive the scheme's decision-making functions. Second, I do not accept Canada's contention that the defined term "effects within federal jurisdiction" aligns with federal legislative jurisdiction. The overbreadth of these effects exacerbates the constitutional frailties of the scheme's decision-making functions. …
>
> III. The Legislative Scheme
>
> …

A. *The "Designated Projects" Regulatory Scheme*

[34] Like its predecessor, the *IAA* applies to "designated projects", which are defined in s. 2 as "physical activities . . . carried out in Canada or on federal lands [that] are designated by regulations made under paragraph 109(b) or designated in an order made by the Minister under subsection 9(1)". This includes "any physical activity that is incidental to those physical activities" (s. 2). …

[36] In addition, pursuant to s. 9(1), the Minister may "designate a physical activity that is not prescribed by regulations . . . if, in his or her opinion, either the carrying out of that physical activity may cause adverse effects within federal jurisdiction or adverse direct or incidental effects" (two defined terms, to which I will return), or public concerns related to those effects warrant the designation. The *IAA* imposes some limitations on ministerial designation, including that it must occur before the carrying out of the physical activity has substantially begun (s. 9(7)(a)). …

[52] The majority [of the Alberta Court of Appeal] considered s. 92A of the *Constitution Act, 1867*, which it referred to as the "Resource Amendment". It held that s. 92A assures "exclusive provincial jurisdiction over the exploration, development, management and conservation of the province's . . . natural resources" and that approval of natural resource projects is therefore "vested exclusively" in the province that owns the resources (paras. 72 and 81 (emphasis deleted)). The majority referred to projects that are wholly within a province and are primarily regulated by the province as "intra-provincial projects".

[53] The majority then turned to the two-step constitutional validity analysis. At the characterization step, the majority concluded that the pith and substance of the *IAA* and the Regulations is "the establishment of a federal impact assessment and regulatory regime that subjects all activities designated by the federal executive to an assessment of all their effects and federal oversight and approval" (para. 372). The majority held that this matter "intrudes fatally into provincial jurisdiction and the provinces' proprietary rights as owners of their public lands and natural resources" (para. 372).

[54] Turning to classification, the majority concluded that the matter of the scheme does not fall under any of the federal heads of power relied upon by Canada: sea coast and inland fisheries (s. 91(12) of the *Constitution Act, 1867*), imperial treaties (s. 132), "Indians, and Lands reserved for the Indians" (s. 91(24)) and the national concern branch of the peace, order and good government ("POGG") power (s. 91). Nor does the matter fall under the federal heads of power proposed by the interveners: trade and commerce (s. 91(2)) and the criminal law power (s. 91(27)). Instead, the majority held that the matter of the scheme, when applied to intra-provincial designated projects, falls squarely within multiple heads of provincial power, including the development and management of natural resources (s. 92A) and property and civil rights in the province (s. 92(13)).

[55] The majority thus found the *IAA* and the Regulations to be *ultra vires* Parliament and unconstitutional in their entirety. Canada argued before the Court of Appeal that the *IAA* and the Regulations are not severable and must therefore stand or fall as a whole. The majority agreed and noted that it would not be practical to sever offending provisions from the *IAA* or to sever the Regulations from the *IAA* (para. 426).

[56] Finally, the majority considered the doctrine of interjurisdictional immunity. It held, in the alternative, that if the scheme were valid, then the doctrine of interjurisdictional immunity would apply to protect the "core" of relevant provincial heads of power (para. 430).

[57] The dissenting justice characterized the pith and substance of the *IAA* and the Regulations as the establishment of "a federal environmental assessment regime that facilitates planning and information gathering with respect to specific projects to inform decision-making, cooperatively with other jurisdictions, as to whether the project should be authorized to proceed on the basis that identified adverse environmental effects purported to be within federal jurisdiction are in the public interest" (para. 593).

[58] The dissenting justice concluded that this matter can be classified under a number of federal heads of power. She found that each of the "effects within federal jurisdiction" defined in the *IAA* falls within Parliament's legislative authority (paras. 605-6 and 611). In addition, she rejected the majority's characterization of the public interest determination as a federal "veto" power (para. 717). Instead, she concluded that the *IAA* is designed to facilitate interjurisdictional cooperation rather than creating a competitive veto (paras. 723 and 730). The Attorney General of Canada appeals as of right to the Court. …

VI. Step 1: Characterization

A. *The Governing Principles*

(3) The Presumption of Constitutionality

…

[70] … according to this presumption, "every legislative provision is presumed to be *intra vires* the level of government that enacted it" (*Murray-Hall*, at para. 79; P. W. Hogg and W. K. Wright, *Constitutional Law of Canada* (5th ed. Supp.), at § 15:13). In other words, a court should approach any question as to the validity of legislation "on the assumption that it was validly enacted", unless the party challenging the validity of the legislation demonstrates otherwise (*McNeil*, at pp. 687-88; *Reference re The Farm Products Marketing Act*, at p. 255; *Murray-Hall*, at para. 80). …

[73] …the presumption of constitutionality is not an impermeable shield that protects legislation from constitutional review by courts. Nor can courts employ the presumption of constitutionality to rewrite legislative text as they see fit in order to bring it into compliance with the Constitution. Courts cannot rely on the presumption of constitutionality to disregard a statute that speaks clearly and is *ultra vires* its enacting body. …

[74] Similarly, a court cannot circumvent its duty to meaningfully review the constitutionality of legislation by suggesting that, insofar as an administrative decision maker applies a law unconstitutionally, the application of that law may be judicially reviewed. The constitutional validity of a law and its administrative application are distinct concepts. …

B. *The Application of the Governing Principles*

…

[76] In my view, a careful analysis of the purpose and effects of the impugned statute and Regulations reveals that the scheme they establish has two distinct components: one dealing with "designated projects" and another addressing projects carried out or financed by federal authorities on federal lands or outside Canada. In my view, the pith and substance of the "designated projects" component of the scheme is to assess and regulate designated projects with a view to mitigating or preventing their potential adverse environmental, health, social and economic impacts. By contrast, the pith and substance of the secondary component in ss. 81 to 91 is to direct the manner in which federal authorities that carry out or finance a project on federal lands or outside Canada assess the significant adverse environmental effects that the project may have.

…

VII. Step 2: Classification

(2) The Environmental Context

(a) *The "Environment" Is an Aggregate of Matters*

[114] Classifying environmental legislation presents a challenge because the "environment" is not a head of power under s. 91 or 92 of the *Constitution Act, 1867*. This Court has recognized that the environment is a "constitutionally abstruse matter which does not comfortably fit within the existing division of powers without considerable overlap and uncertainty" (*Oldman River*, at pp. 16 and 63-64; see also *Hydro-Québec*, at para. 86). …

[118] This is consistent with the double aspect doctrine, which reflects the idea that the same fact situation can be regulated from different perspectives, one falling within s. 91 and the other falling within s. 92 …

[119] Many significant legislative matters cannot be reduced to one discrete subject. Indeed, Canadian governments must address complex and multifaceted issues that may fall within multiple heads of power (Downey et al., at p. 282). The double aspect doctrine explains how laws enacted by both the federal and provincial levels of government may validly regulate the same fact scenario from different perspectives, pursuant to their respective heads of power. Overlaps of this nature are an inevitable and legitimate feature of the Canadian federal system (*Desgagnés Transport*, at para. 83; *Multiple Access Ltd. v. McCutcheon*, 1982 CanLII 55 (SCC), [1982] 2 SCR 161, at pp. 180-81; *Canadian Western Bank*, at paras. 36 and 42).

[120] Nonetheless, the double aspect doctrine must be applied with caution. First, not all fact situations have a double aspect, and each fact situation must be identified with precision. Environmental assessment of physical activities may or may not have a double aspect in relation to a specific project. …

(1) The "Designated Projects" Scheme

[131] As discussed, there is no doubt that Parliament can enact impact assessment legislation that is directed at the federal aspects of projects. The breadth of these "federal aspects" will vary with the circumstances. Where Parliament is vested with jurisdiction to legislate in respect of a particular *activity*, it has broad discretion to regulate that activity and its effects (*Oldman River*, at pp. 67-68; Harrison, at p. 36; Kennett (1993), at pp. 187-89). But Parliament's jurisdiction is more restricted where the activity falls outside of its legislative competence; in these cases, it can validly legislate only from the perspective of the federal aspects of the activity, such as the *impacts* of the activity on federal heads of power. Federal legislation that is insufficiently tailored — that is, whose pith and substance is to regulate the activity *qua* activity, rather than only its federal aspects — is *ultra vires* (*Reference re Environmental Management Act* (BCCA), at paras. 98-101). …

[133] Canada relies on four heads of power to support the "designated projects" scheme: sea coast and inland fisheries (s. 91(12)), "Indians, and Lands reserved for the Indians" (s. 91(24)), imperial treaties (s. 132) and the national concern branch of the POGG power (s. 91). It argues that the scheme's grounding in these heads of power achieves the necessary tailoring and confines Parliament to its constitutional lane. The crux of Canada's position is that the scheme targets "effects within federal jurisdiction" and "direct or incidental effects", two defined terms in the *IAA* that are said to align with Parliament's legislative jurisdiction under the *Constitution Act, 1867*.

[134] In my view, the pith and substance of the portion of the scheme that deals with "designated projects" exceeds the bounds of federal jurisdiction, and this portion of the scheme is therefore *ultra vires*. This is so for two overarching reasons.

[135] First, even if I were to accept Canada's contention as to the defined federal effects, these effects do not drive the scheme's decision-making functions. Consequently, the scheme is not in pith and substance directed at regulating these effects.

[136] Second, I do not accept that the defined term "effects within federal jurisdiction" aligns with federal legislative jurisdiction under s. 91. This overbreadth exacerbates the constitutional frailties of the scheme's decision-making functions. …

(ii) The Screening Decision

[148] While all designated projects are subject to the *IAA*'s planning phase, they are not automatically subject to an impact assessment. Rather, following the planning phase, the Agency is empowered to make a screening decision as to whether an impact assessment is required for a particular project. …

[150] In my view, the Agency's broad discretion to require an impact assessment of a designated project demonstrates that the matter of the scheme exceeds the bounds of federal legislative competence. The decision to require an assessment must be rooted in the possibility of adverse federal effects (MacLean, Doelle and Tollefson, at pp. 44-45). This is a corollary of the scheme's broad designation mechanism: the wider the scheme casts its net, the more critical the funneling function of the screening decision becomes to keeping the overall scheme within the bounds of federal legislative powers. As drafted, the screening decision under s. 16(2) is not driven by possible federal effects and therefore fails to focus the scheme on the federal aspects of designated projects.

[151] The *IAA* requires the Agency to "take into account" an open-ended list of factors, all of seemingly equal importance. Only s. 16(2)(b) and (c) relate to adverse effects within federal jurisdiction and adverse direct or incidental effects. As a result, an impact assessment of a designated project could be required for reasons other than, or not sufficiently tied to, the project's possible impacts on areas of federal jurisdiction. Given the breadth of the considerations permitted to drive the screening decision, I am not satisfied that this decision performs the funneling function necessary to maintain the scheme's focus on federal impacts.

[152] Canada argues that the "key" decision-making factor is "the possibility that the carrying out of the designated project may cause Adverse Federal Effects" (A.F., at para. 92). This submission is not reflected in the text of s. 16(2), which gives no primacy to the possibility of adverse effects relative to the other mandatory considerations.

[153] Canada also argues that "[w]here there is insufficient linkage to federal jurisdiction, a reasonable exercise of the Agency's discretion under s. 16(1) will not require an impact assessment" (A.F., at para. 113). However, under s. 16(2), the discretion granted to the Agency is not limited to projects that may cause federal effects. The Agency can require projects with little or no possibility of federal effects to undergo an impact assessment on the basis of, for example, "any comments received . . . from the public", regardless of whether such comments are in respect of areas of federal jurisdiction (s. 16(2)(d)). The *IAA*'s expansive purposes, set out in s. 6, do little to confine the exercise of this discretion.

[154] Due to the wide net cast by the scheme's designation mechanism, the screening decision is constitutionally problematic. The risk is that projects with little or no potential for adverse federal effects will nonetheless be required to undergo an impact assessment on the basis of less relevant, yet mandatory, considerations. The fact that this decision is not driven by the likelihood of federal impacts demonstrates that the "main thrust" of the scheme strays from federal matters. I am unable to resort to the presumption of constitutionality in relation to s. 16 because its text, context, and purpose preclude a reasonable interpretation consistent with constitutional validity. …

(iv) *Public Interest Decision*

…

[166] In my view, s. 63 of the *IAA* represents an unconstitutional arrogation of power by Parliament. Even if this Court were to accept Canada's submission that the defined "effects within federal jurisdiction" are aligned with federal legislative competence … the public interest decision is constitutionally vulnerable. This decision-making process transforms what is *prima facie* a determination of whether adverse federal effects are in the public interest into a determination of whether the project as a whole is in the public interest. …

[169] The central problem with the public interest decision is not the s. 63 factors themselves but rather the manner in which these factors drive decision making. The public interest decision must reflect a focus on the project's federal effects. … s. 63 permits the decision maker to blend their assessment of adverse federal effects with other adverse effects that are not federal, such as the project's anticipated greenhouse gas emissions (under s. 63(e)). Put another way, the adverse *non-federal* effects can amplify the perceived severity of the adverse *federal* effects and, effectively, become the underlying basis for the conclusion that the latter are not in the public interest. The mandatory cumulation of adverse non-federal effects shifts the focus of the decision from the adverse effects within federal jurisdiction to the overall adverse effects of the project. …

[173] … as I have explained, the *IAA* makes no distinction between the assessment of *activities* that fall under federal jurisdiction and the assessment of *impacts* of activities that are primarily regulated by the provinces.

[174] The hypothetical scenarios set out above demonstrate how the dominant thrust of the public interest decision-making process veers away from federal heads of power because there are so few constraints on how the s. 63 factors may be used.

…

[177] For this scheme to be *intra vires*, it must be consistently focused on federal matters. … at the ultimate decision-making juncture, the focus on federal impacts must be restored. Parliament can validly regulate only the impacts that fall within its jurisdiction or that arise from activities within its jurisdiction. …

(b) *As Defined, "Effects Within Federal Jurisdiction" Exceed Federal Jurisdiction*

[179] The constitutional frailties of the scheme's decision-making functions are exacerbated by its focus on regulating an overbroad range of impacts. The mere fact that certain effects are defined as being "within federal jurisdiction" is, of course, not determinative of their status within the constitutional division of powers (*Desgagnés Transport*, at para. 137, per Wagner C.J. and Brown J., concurring). In my view, the defined "effects within federal jurisdiction" go far beyond the limits of federal legislative jurisdiction. This overbreadth reinforces the conclusion that the pith and substance of the scheme cannot be classified under federal heads of power.

[180] The overbreadth of the defined "effects within federal jurisdiction" is manifested in two distinct ways. First, the definition is central to the scheme's decision-making functions. Its overbreadth dilutes the decision maker's focus at the key decision-making junctures, shifting it away from federal aspects and encompassing aspects that are within provincial jurisdiction. Second, the defined "effects within federal jurisdiction" form the basis of the s. 7 prohibitions. Due to the overbreadth of these defined effects, the conduct prohibited by s. 7 extends beyond the range of conduct that Parliament can validly regulate pursuant to its assigned heads of power.

(i) The Defined "Effects Within Federal Jurisdiction" Dilute the Decision Maker's Focus at the Key Decision-Making Junctures

[181] As discussed, the scheme contains four decision-making junctures: (i) the designation of physical activities as "designated projects"; (ii) the screening decision; (iii) the delineation of the scope of the impact assessment and the factors to be considered therein; and (iv) the public interest decision and resulting regulation and oversight. The definition of "effects within federal jurisdiction" is of central importance to most of these key decision-making junctures. First, it is on the basis of potential adverse "effects within federal jurisdiction" that some physical activities are designated as "designated projects" (s. 9(1); see also Regulatory Impact Analysis Statement). Second, the ultimate decision made under the scheme is, at least on its face, concerned with whether the adverse "effects within federal jurisdiction" are in the public interest (ss. 60(1) and 62). Finally, conditions imposed along with a positive public interest determination must be "in relation to the adverse effects within federal jurisdiction" (s. 64(1)).

[182] The defined "effects within federal jurisdiction" thus influence each of these key decision-making junctures. Due to the overbreadth of this definition, the scheme permits the Minister to designate a project based on effects that cannot be regulated from a federal perspective, to impose conditions in relation to these effects, or to declare these effects not to be in the public interest and put a permanent halt to the project as planned.

[183] For example, one of the "effects within federal jurisdiction" is "a change to the environment that would occur . . . in a province other than the one where the physical activity or the designated project is being carried out" (s. 2 "effects within federal jurisdiction" (b)(ii)). The breadth of this "interprovincial effects" clause is astonishing. The *IAA*'s expansive definition of "environment" captures every component of the Earth (s. 2):

> ***environment*** means the components of the Earth, and includes
>
> **(a)** land, water and air, including all layers of the atmosphere;
>
> **(b)** all organic and inorganic matter and living organisms; and
>
> **(c)** the interacting natural systems that include components referred to in paragraphs (a) and (b).

[184] The "interprovincial effects" clause therefore captures an unlimited range of interprovincial environmental changes. This would include, for example, greenhouse gas emissions, which this Court has acknowledged "represent a pollution problem that is not merely interprovincial, but global, in scope" (*References re GGPPA*, at para. 173). As a result, the *IAA* expressly permits projects to be designated, assessments to be required and public interest decisions to be made on the basis that a project emits greenhouse gases that cross provincial and national borders.

[185] Canada submits that this clause of the definition is supported by the POGG power. Specifically, Canada relies on this Court's treatment of the POGG power as the basis for legislation aimed at preventing certain environmental harms. In *Crown Zellerbach*, this Court considered and applied the national concern branch of the POGG power to legislation that, in pith and substance, was aimed at preventing marine pollution (pp. 431-32 and 436-38). In *Interprovincial Co-operatives Ltd. v. The Queen*, 1975 CanLII 212 (SCC), [1976] 1 SCR 477, Justice Pigeon, for the majority, recognized that the federal government can legislate in relation to the pollution of interprovincial rivers, which is a "pollution problem that is not really local in scope but truly interprovincial" (p. 514). Although Justice Pigeon did not explicitly refer to the POGG power, the application of that power explains the result (*References re GGPPA*, at para. 99).

[186] In the *References re GGPPA*, this Court upheld a law whose matter was limited to carbon pricing of greenhouse gas emissions, "a narrow and specific regulatory mechanism" (para. 199). By contrast, the "designated projects" scheme's defined interprovincial effects lack specificity as to the type or scale of the "change to the environment" that is said to be a federal effect. In the *References re GGPPA*, this Court expressly cautioned that "[a]ny legislation that related to non-carbon pricing forms of [greenhouse gas] regulation — legislation with respect to roadways, building codes, public transit and home heating, for example — would not fall under the matter of national concern"

(para. 199). If the matter of national concern recognized by this Court in the *References re GGPPA* does not extend to enabling the federal government to comprehensively regulate greenhouse gas emissions, then the inclusion of such sweeping regulatory powers in impact assessment legislation is likewise impermissible.

…

[189] Accordingly, while Canada asserts that it is simply relying on this Court's prior holdings, it is, in substance, attempting to do an end run around this Court's recent national concern jurisprudence. Our jurisprudence has recognized that preventing marine pollution and preventing pollution of interprovincial rivers are matters of national concern. However, Canada has made no attempt to apply the clarified national concern framework set out in the *References re GGPPA* or to lead any evidence on which to base the recognition of a new and broader matter of national concern (para. 133 and 162-66). With respect, neither have my colleagues, who simply assert that the "interprovincial effects" clause is a matter of national concern without applying the legal framework or evidentiary requirements endorsed by this Court in the *References re GGPPA*. …

6.4 KARATKASANIS and JAMAL JJ. (dissenting in part)

…

II. Federalism and the Environment

[228] Because the Constitution is a framework for life and political action in Canada, this Court has directed that courts must approach constitutional interpretation in a way that allows governments to address complex and evolving issues and that "foster[s] co-operation among governments and legislatures for the common good" (*Canadian Western Bank*, at para. 22; see also para. 42). The "dominant tide" of modern constitutional interpretation finds expression in the idea "that a court should favour, where possible, the ordinary operation of statutes enacted by *both* levels of government" (para. 37 (emphasis in original)). Thus, "[i]n the absence of conflicting enactments of the other level of government, the Court should avoid blocking the application of measures which are taken to be enacted in furtherance of the public interest" (para. 37; see also *Canada (Attorney General) v. PHS Community Services Society*, 2011 SCC 44, [2011] 3 SCR 134, at para. 63; *Reference re Pan-Canadian Securities Regulation*, 2018 SCC 48, [2018] 3 SCR 189, at para. 17). This Court has repeatedly stressed that "overlap of legislation is to be expected and accommodated in a federal state" (*Reference re Firearms Act (Can.)*, 2000 SCC 31, [2000] 1 SCR 783, at para. 26, quoting *General Motors of Canada Ltd. v. City National Leasing*, 1989 CanLII 133 (SCC), [1989] 1 SCR 641, at p. 669). Cooperative federalism and the modern approach to constitutional interpretation must guide every step of the analysis in this reference.

[229] This modern approach to constitutional interpretation is reflected in the "presumption of constitutionality". According to this presumption, "every legislative provision is presumed to be *intra vires* the level of government that enacted it" (*Murray-Hall*, at para. 79). The party challenging legislation that has "emerged from the democratic process" bears the onus of demonstrating that the enactment does not fall within the legislature's jurisdiction …

[230] It bears emphasis that legislation is not unconstitutional simply because it could conceivably be misused. Rather, the *particular exercises of discretion* in such cases would be unreasonable and properly subject to judicial review based on an appropriate evidentiary record. That approach flows from what Professor Daly calls the "presumption of constitutionally conforming administration" (p. 1). As he explains, "[w]here there is a constitutional challenge to a legislative regime which is administered by an administrative decision-maker, the courts will presume that the regime will be administered in a constitutionally compliant manner" (p. 7). Because any statute enacted by Parliament or a legislature that is inconsistent with the Constitution is *ultra vires* and invalid, "any body exercising statutory authority . . . is also bound" by the Constitution (Hogg and Wright, at § 37:8). The alternative — treating broad grants of statutory discretion as unconstitutional based on the text's furthest reaches, without regard for constitutional or administrative law constraints — would render *ultra vires* many provincial and federal statutes currently in force.

[231] For present purposes, the presumption of constitutionality has two related legal consequences. First, as noted by Professors Hogg and Wright, "in choosing between competing, plausible characterizations of a law, the court should normally choose that one that would support the validity of the law" (§ 15:13; see also Daly, at p. 7; Brun, Tremblay and Brouillet, at para. IV.57; G.-A. Beaudoin, in collaboration with P. Thibault, *La constitution du Canada* (3rd ed. 2004), at p. 338). Second, "where a law is open to both a narrow and a wide interpretation, and under the wide interpretation the law's application would extend beyond the powers of the enacting legislative body, the court should 'read down' the law so as to confine it to those applications that are within the power of the enacting legislative body" (Hogg and Wright, at § 15:13; Daly, at p. 10; Brun, Tremblay and Brouillet, at paras. IV.47 and IV.57). The presumption of constitutionality operates as a principle of "[j]udicial restraint in determining the validity of statutes" that has "the effect of reducing interference by unelected judges with the affairs of the elected legislative branch of government" (Hogg and Wright, at § 15:13). The presumption "remains a cardinal principle of our division of powers jurisprudence" (*Murray-Hall*, at para. 79).

[232] In applying these principles of constitutional interpretation, courts have upheld the constitutionality of both federal and provincial environmental legislation …

V. *Analysis*

…

A. Characterization of the Impact Assessment Act Scheme

…

[255] As part of the characterization exercise, the law should be described as precisely as possible, without considering potential heads of power that might support the law, to avoid the characterization stage being overly influenced by the classification stage.

…

[257] … In our view, the pith and substance of the designated projects scheme is, more specifically, to establish an environmental assessment process to (1) assess the effects of physical activities or major projects on federal lands, Indigenous peoples, fisheries, migratory birds, and lands, air, or waters outside Canada or in provinces other than where a project is located, and (2) determine whether to impose restrictions on the project to safeguard against significant adverse federal effects, unless allowing those effects is in the public interest. This description of the pith and substance is more precise and highlights the critical role of the public interest decision-making process under the legislation.

…

[280] In sum, the statutory text, context and purpose, along with the applicable interpretive principles, show that Parliament did not intend to capture *de minimis* effects. Moreover, even if interpreting the *IAA* to capture *de minimis* effects were a reasonably available interpretation, the presumption of constitutionality demands that it be rejected in favour of our constitutionally conforming interpretation. …

B. Classification of the IAA Scheme ...

[302] Consistent with these principles of flexible and cooperative federalism, both orders of government have constitutional authority to enact environmental legislation. Thus, Parliament is competent to enact federal environmental legislation under the federal powers over fisheries (*Northwest Falling Contractors*; *Oldman River*), navigable waters (*Oldman River*), Indians and lands reserved for Indians (*Oldman River*), criminal law (*Hydro-Québec*), international and interprovincial rivers (*Interprovincial Co-operatives*), and the national concern branch of the peace, order, and good government power (*Crown Zellerbach*; *References re GGPPA*). There is also no doubt about the authority of the provinces to enact environmental legislation under a host of provincial legislative powers, including the powers over property and civil rights in the province, local works and undertakings, municipal institutions, and matters of a local or private nature, to name but a few …

[319] We therefore agree with the majority that a federal environmental assessment "is not restricted to considering environmental effects that are 'federal' in nature" and has "wide latitude to evaluate the project's anticipated effects" (paras. 157 and 161). This is essential for federal authorities to make *an integrated decision* as to the designated project's overall costs and benefits. …

[321] In our view, the integrated public interest decision-making process contemplated under the *IAA* — a process involving a cost-benefit balancing of the adverse federal effects and all other relevant public interest considerations relating to the project — falls within federal legislative jurisdiction.

…

[326] It also bears noting that the *IAA* provides for joint federal-provincial environmental review and assessment and requires federal authorities to consider provincial comments and assessments to promote cooperative federalism and help alleviate potential jurisdictional concerns (Johnston, at pp. 110-11). The *IAA* allows federal authorities to substitute a provincial assessment for the federal assessment on the request of provincial authorities (s. 31(1)), to delegate a federal assessment to provincial authorities (s. 29), and to provide for a joint federal-provincial assessment (s. 39(1)). A federal impact assessment must also consider comments from provincial authorities received during consultations, a relevant provincial assessment, and any study or plan conducted or prepared by a province (s. 22(1)(o), (p) and (r)). Provincial participation is thus integrated into the *IAA* scheme as a matter of cooperative federalism. …

[327] In our view, as long as the public interest decision is anchored in federal jurisdiction based on adverse federal effects, federal authorities are entitled to make an integrated and proportionate decision that weighs the costs and benefits of allowing the project to proceed, and, if it is allowed to proceed, whether conditions should be imposed.

…

[335] In closing on this point, we hasten to add that, if federal authorities tried to rely on a trivial adverse federal effect as a "constitutional Trojan horse" enabling them, "on the pretext of some narrow ground of federal jurisdiction", to conduct a far ranging inquiry into a designated project, the federal action would be subject to judicial review on administrative law grounds (*Oldman River*, at p. 71). Such a federal decision in a particular case would be unreasonable as being contrary to the object and purpose of the *IAA*. …

(b) *Protecting "Migratory Birds" Falls Under Parliament's Imperial Treaty Power …*

[342] The *IAA* defines "effects within federal jurisdiction" as including a change to the component of the environment including "migratory bird[s]", as defined in s. 2(1) of the *Migratory Birds Convention Act, 1994*, S.C. 1994, c. 22. …

[343] The Migratory Birds Convention is an imperial treaty entered into between the United Kingdom and the United States of America, and thus falls under Parliament's legislative power to implement imperial treaties under s. 132 of the *Constitution Act, 1867*. Canada implemented the Migratory Birds Convention through the *Migratory Birds Convention Act*, S.C. 1917, c. 18. When Canada and the United States amended the Migratory Birds Convention in 1994, Parliament implemented the amended Convention by adopting the *Migratory Birds Convention Act, 1994* …

[344] Protecting migratory birds under the *IAA* as an "effect within federal jurisdiction" is properly anchored in Parliament's exclusive authority to implement imperial treaties under s. 132 of the *Constitution Act, 1867*. …

(c) *Protecting the Indigenous Peoples of Canada and Their Rights Falls Under Parliament's Power Over "Indians, and Lands Reserved for the Indians"*

[346] The *IAA* defines "effects within federal jurisdiction" as including a change to the component of the environment with respect to the Indigenous peoples of Canada — occurring in Canada and resulting from a change to the environment — on (i) physical and cultural heritage, (ii) the current use of lands and resources for traditional purposes, or (iii) any structure, site, or thing that is of historical, archaeological, paleontological or architectural significance. It also includes any change occurring in Canada to the health, social, or economic conditions of the Indigenous peoples of Canada.

[347] Protecting the components of the environment affecting Indigenous peoples and their rights falls under Parliament's exclusive legislative jurisdiction over "Indians, and Lands reserved for the Indians" in s. 91(24) of the *Constitution Act, 1867*. A critical aspect of s. 91(24) relates to the protection of, and concern for, the welfare of the Indigenous peoples of Canada …

[348] … In our view, the definition of effect within federal jurisdiction involving the Indigenous peoples of Canada and their rights is constitutional.

(d) *The Protection Against Interprovincial and International Pollution Falls Under the National Concern Branch of Parliament's Peace, Order, and Good Government Power …*

[349] The *IAA* defines "effects within federal jurisdiction" as meaning, among other things, a change to a component of the environment that would occur in a province other than one in which the act or thing is done and a change to the environment that would occur outside Canada. Collectively, these aspects of the definition of effects within federal jurisdiction target interprovincial and international pollution.

[350] This Court has accepted that federal jurisdiction over several forms of international and interprovincial pollution can be grounded under the national concern branch of Parliament's residuary power of peace, order, and good government in the introductory words of s. 91 of the *Constitution Act, 1867*. …

[351] We agree with Canada's concession that greenhouse gas ("GHG") emissions — although relevant to the public interest determination — will generally not be an effect within federal jurisdiction under the *IAA*'s definition. Under the *IAA*'s project-specific approach, the federal government would need to show that an individual project's GHG emissions would cause a non-trivial change to the environment in another province or outside Canada. If Canada attempts to treat a project's GHG emissions as an effect within federal jurisdiction, then whether an individual project's GHG emissions, in context of the global scale of the climate crisis, may cause non-trivial changes to the environment is best assessed through case-specific judicial review of whether a particular exercise of discretion is consistent with the national concern test, set out in the *References re GGPPA*. Nor, we would add, is there any evidence that Canada has ever treated GHG

> emissions as an effect within federal jurisdiction in administering the *IAA*. While the Minister has referred to a project's GHG emissions when discussing the impacts of a project that was otherwise not in the public interest, we are not aware of any instance in which GHG emissions have themselves ever been relied on as an effect within federal jurisdiction …
>
> [352] … to repeat: if particular exercises of federal authority under the *IAA* seek to stretch the boundaries of Parliament's constitutional authority to regulate international and interprovincial pollution, including potentially GHG emissions, such instances can be addressed in future cases reviewing concrete government action and with the benefit of a well-developed evidentiary record. It is "neither necessary nor desirable" to address "speculative concern[s]" regarding potential misuse of the *IAA* in this reference (*References re GGPPA*, at para. 220).
>
> [353] As a result, in our view, the component of the definition of "effects within federal jurisdiction" involving interprovincial and international pollution is constitutional. …
>
> *C. Provincial Undertakings Are Not Immune From Federal Environmental Assessment Under the Doctrine of Interjurisdictional Immunity ...*
>
> [357] Alberta asserts that applying federal environmental assessment legislation would impair the "core" of the province's legislative powers under several provisions of the *Constitution Act, 1867*: ss. 92(5) (management and sale of the public lands belonging to the province and of the timber and wood thereon), 92(10) (local works and undertakings), 92(13) (property and civil rights in the province), 92(16) (matters of a merely local or private nature in the province), 92A(1) (non-renewable natural resources, forestry resources, and electrical energy), and 109 (property in all lands, mines, minerals, and royalties). We would not give effect to this argument. …
>
> [360] Alberta offered no precedent to support the application of the doctrine of interjurisdictional immunity to the heads of provincial power invoked here. As a result, we see no basis to apply the doctrine in the circumstances.
>
> VI. Conclusion
>
> [361] In our opinion, the *IAA* and the Regulations fall within the legislative competence of the Parliament of Canada under the *Constitution Act, 1867*. As a result, the constitutional questions should be answered in the negative and the appeal allowed.

Chapter 8: S 91(27), The Federal Criminal Law Power

By Benjamin L. Berger and Hoi Kong

1 Introduction

Section 91(27) of the *Constitution Act, 1867* assigns to the Parliament of Canada jurisdiction over "[t]he Criminal Law, except the Constitution of Courts of Criminal Jurisdiction, but including the Procedure in Criminal Matters." This means that both the substance of the criminal law—what the criminal law prohibits—and the rules of criminal procedure are, in Canada, a federal matter. Many criminal laws are found in the Criminal Code, but—as you will see in this chapter—many are found in other federal statutes passed pursuant to the criminal law power.

From the perspective of constitutional design, the decision as to which level of government ought to have jurisdiction over criminal law is one of considerable significance. The criminal law has direct and meaningful effects on the rights, liberties, and security of subjects and, as this chapter will show, the criminal law power grants government a broad scope of authority, backed by the force of the state. Some federal constitutional orders vest this important power in the sub-national level of government. Notably, this is the arrangement in the United States, where criminal law is primarily a state, not a federal, matter. The decision to centralize this power at the federal level in Canada was made in reaction to this approach in the United States, viewed by some as a defect in American constitutional design that contributed to the Civil War. Sir John A. Macdonald, Attorney-General at the time of the constitutional debates in 1865, emphasized the importance of having the same criminal law throughout the country, ensuring common protections of life and property across the nation. (On this history, see Martin L. Friedland, "Criminal Justice and the Division of Power in Canada" in Martin L. Friedland, ed, *A Century of Criminal Justice: Perspectives on the Development of Canadian Law* (Toronto: Carswell, 1984), ch 2).

Though the substance of the criminal law is a matter for the Parliament of Canada, it is important to acknowledge the important role that provinces play in the criminal justice system, according to the division of legislative authority. Critically, provinces are responsible for the administration of justice in the provinces (s 92(14)). This sees the provinces responsible for the running and maintenance of the courts, policing, and the prosecution of most *Criminal Code* offences. Provincial legislatures also have authority over jails (s 92(6)), though Parliament has authority over penitentiaries under s 91(28). Additionally, under s 92(15), provincial legislatures have the power to impose fines and penalties (including imprisonment) to enforce laws validly passed pursuant to their other legislative competencies. The provincial laws that impose such penalties are often referred to as "regulatory offences," which, together with federal criminal law, constitute the "penal law"—the law of offences and punishment. The scope of this provincial authority over regulatory offences, particularly as it relates to the federal criminal law power, is a difficult and delicate question that will be touched upon in the second substantial section below.

In what follows, the cases are first and centrally concerned with the definition and scope of the federal criminal law power. It will become apparent that it is a vast power, affording federal Parliament authority over matters touching on a breadth of subjects, concerns, and aspects of Canadian life and public policy. In that, it plays a similar role federally as that played by the s 92(13) provincial authority over "Property and Civil Rights in the Province". Indeed, in the *Reference re Genetic Non-Discrimination Act*, 2020 SCC 17, Justice Karakatsanis explained that both powers are "broad and plenary, and may overlap when a given subject is approached from two different perspectives, one supporting the exercise of federal authority and the other supporting the exercise of provincial authority" (para 69). For that reason, this head of power gives rise to many disputes about the shape and scope of the respective federal and provincial powers.

2 The federal criminal law power

In *Re Board of Commerce* Act, 1921 CanLII 399 (UK JCPC), [1922] 1 A.C. 191, Viscount Haldane held that the criminal law power was confined to cases "where the subject matter is one which by its very nature belongs to the domain of criminal jurisprudence" (198-199) — a construal of the power that appeared both narrow and frozen in pre-Confederation views of the scope of criminal law. In 1928, in *P.A.T.A. v. A.-G. Can*, 1931 CanLII 385 (UK JCPC), [1931] A.C. 310, Lord Atkin changed course, clarifying that the power was not circumscribed by the shape of criminal law at Confederation and offering a much more expansive definition: "The criminal quality of an act cannot be discerned by intuition; nor can it be discovered by reference to any standard but one: Is the act prohibited with penal consequences?" (324) But this formulation is too broad, granting the federal Parliament jurisdiction so long as legislation takes the form of a prohibition and a penalty.

A third, constraining element was added in *Reference re Validity of Section 5 (a) Dairy Industry Act*, 1948 CanLII 2 (SCC), [1949] SCR 1, known today as the *Margarine Reference*. That third element, still essential to the modern definition of the criminal law power, is that the legislation pursues a valid criminal law purpose, being directed at addressing "some evil or injurious or undesirable effect upon the public". As you read the *Margarine Reference*, try to identify what those public purposes—purposes that qualify it as criminal law—include.

2.1 *Reference re Validity of Section 5 (a) Dairy Industry Act*

Reference re Validity of Section 5 (a) Dairy Industry Act**,** 1948 CanLII 2 (SCC), **[1949] SCR 1**

RAND, J.: His Excellency in Council has referred to this Court the following question:—

Is section 5(a) of the *Dairy Industry Act*, R.S.C. 1927, Chapter 45, *ultra vires* of the Parliament of Canada either in whole or in part and if so in what particular or particulars and to what extent?

The section is as follows:—

5. No person shall

(a) manufacture, import into Canada, or offer, sell or have in his possession for sale, any oleomargarine margarine, butterine, or other substitute for butter, manufactured wholly or in part from any fat other than that of milk or cream;

…

The appearance of the provision in a statute dealing comprehensively with the dairy industry and the inclusion of prohibition of importation, the ordinary mode of protection of industry in its ultimate form, are, for this initial purpose, of considerable significance. On the other hand, the scope and importance of agriculture in the economy of this country, the part played by the dairy industry as an essential branch of it, and the desirability of maintaining a market demand for butter to meet the seasonal exigencies of that industry, are beyond controversy. What, then, in that whole background is the true nature of the enactment?

Mr. Varcoe argues that it is simply a provision of criminal law, a field exclusively Dominion, and the issue, I think, depends upon the validity of that contention. In *The Proprietary Articles Trade Association vs. Attorney-General of Canada*, 38, Lord Atkin rejected the notion that the acts against which criminal law is directed must carry some moral taint. A crime is an act which the law, with appropriate penal sanctions, forbids; but as prohibitions are not enacted in a vacuum, we can properly look for some evil or injurious or undesirable effect upon the public against which the law is directed. That effect may be in relation to social, economic or political interests; and the legislature has had in mind to suppress the evil or to safeguard the interest threatened.

In examining the question, we are to consider not only the matters and conditions upon which the legislation will operate but as well its consequences; and in addition to what will be judicially noticed, evidence may be presented in a case which calls for it […].

Criminal law is a body of prohibitions; but that prohibition can be used legislatively as a device to effect a positive result is obvious; […] Under a unitary legislature, all prohibitions may be viewed indifferently as of criminal law; but as the cases cited demonstrate, such a classification is inappropriate to the distribution of legislative power in Canada.

Is the prohibition then enacted with a view to a public purpose which can support it as being in relation to criminal law? Public peace, order, security, health, morality: these are the ordinary though not exclusive ends served by that law, but they do not appear to be the object of the parliamentary action here. That object, as I must find it, is economic and the legislative purpose, to give trade protection to the dairy industry in the production and sale of butter; to benefit one group of persons as against competitors in business in which, in the absence of the legislation, the latter would be free to engage in the provinces. To forbid manufacture and sale for such an end is prima facie to deal directly with the civil rights of individuals in relation to particular trade within the provinces…

The public interest in this regulation lies obviously in the trade effects: it is annexed to the legislative subject matter and follows the latter in its allocation to the one or other legislature. But to use it as a support for the legislation in the aspect of criminal law would mean that the Dominion under its authority in that field, by forbidding the manufacture or sale of particular products, could, in what it considered a sound trade policy, not only interdict a substantial part of the economic life of one section of Canada but do so for the benefit of that of another. Whatever the scope of the regulation of interprovincial trade, it is hard to conceive a more insidious form of encroachment on a complementary jurisdiction.

…

Finally, it was said the legislation related to Agriculture. Its object, I agree, is to benefit the trade in a product of agriculture; but that is a mere consequential effect and does not of itself relate the legislation to agriculture. […]

Then undoubtedly the dairy industry has an aspect of concern to this country as a whole, but […] if the fact of such an interest or that the matter touched the peace, order and good government of Canada was sufficient to attach the jurisdiction of Parliament, "there is hardly a subject enumerated in sec. 92 upon which it might not legislate, to the exclusion of the provincial legislatures". There is nothing before us from which it can be inferred that the industry has attained a national interest, as distinguished from the aggregate of local interests, of such character as gives it a new and preeminent aspect within the rule of the Russell case […]. Until that state of things appears, the constitutional structure of powers leaves the regulation of the civil rights affected to the legislative judgment of the province.

…

My answers to the questions, therefore, are:—

1. The prohibition of importation of the goods mentioned in the section is intra vires of Parliament.

2. The prohibition of manufacture, possession and sale is *ultra vires* of Parliament.

Since the *Margarine Reference*, this three-part structure for the definition of the criminal law power—a prohibition, a penalty, and a valid criminal law purpose—has been accepted. Though the Court has addressed important issues relative to the requirements of form (the prohibition and the penalty), the dominant story in the development of the jurisprudence on s 91(27) has been about working through how expansively the courts are willing to view the range of valid criminal law purposes.

The Supreme Court's judgment in *RJR-MacDonald Inc. v. Canada (Attorney General)*, 1995 CanLII 64 (SCC), [1995] 3 SCR 199, advanced this central story, clarifying an important formal point in the process: that the prohibitions contained in legislation passed pursuant to the criminal law power may include exemptions—the inclusion of such exemptions does not render the legislation a regulatory, rather than criminal, scheme. As you read *RJR-MacDonald*, ask yourself, what is the criminal law purpose pursued by this legislation?

2.2 *RJR-MacDonald Inc. v. Canada (Attorney General)*

RJR-MacDonald Inc. v. Canada (Attorney General), 1995 CanLII 64 (SCC), **[1995] 3 SCR 199**

2 LA FOREST J. (dissenting, [but not on the federalism point – here he wrote for himself, Lamer C.J., L'Heureux-Dubé, Gonthier, Cory, McLachlin and Iacobucci JJ.]) -- The issues in these appeals are whether the *Tobacco Products Control Act*, S.C. 1988, c. 20 (the "Act"), falls within the legislative competence of the Parliament of Canada under s. 91 of the Constitution Act, 1867, either as criminal law or under the peace, order and good government clause, and if so whether it constitutes an infringement of freedom of expression under s. 2(b) of the Canadian Charter of Rights and Freedoms which is not justified under s. 1 of the Charter. In broad terms, the Act prohibits, subject to specified exceptions, all advertising and promotion of tobacco products, and prohibits the sale of a tobacco product unless the package containing it sets forth prescribed health warnings and a list of the toxic constituents of the product and of the smoke produced from its combustion.

…

The Legislative Scheme

5 The Act, the long title of which is *An Act to prohibit the advertising and promotion and respecting the labelling and monitoring of tobacco products*, received Royal Assent on June 28, 1988 and came into force on January 1, 1989. The purpose of the Act is set out in s. 3, which reads:

> 3. The purpose of this Act is to provide a legislative response to a national public health problem of substantial and pressing concern and, in particular,
>
> (a) to protect the health of Canadians in the light of conclusive evidence implicating tobacco use in the incidence of numerous debilitating and fatal diseases;
>
> (b) to protect young persons and others, to the extent that is reasonable in a free and democratic society, from inducements to use tobacco products and consequent dependence on them; and
>
> (c) to enhance public awareness of the hazards of tobacco use by ensuring the effective communication of pertinent information to consumers of tobacco products.

Section 3 thus states that Parliament's purpose in enacting the legislation is to address the "national public health problem of substantial and pressing concern" arising from the use of tobacco, by protecting young persons and others from inducements to use tobacco products, and by enhancing public awareness concerning the hazards of tobacco use. However, it is of significance to these appeals that, with the exception of a prohibition on the distribution of free samples of tobacco products under s. 7, the Act does not purport to proscribe the sale, distribution or use of tobacco products. Rather, as its long title indicates, the Act seeks to attain its purpose through the institution of a prohibition on the advertising and promotion of tobacco products offered for sale in Canada and through the institution of a requirement that manufacturers of tobacco products display health warnings on tobacco product packages.

6 In furtherance of the purpose set out in s. 3, Parliament has created a legislative scheme that targets three distinct categories of commercial activity: advertising, promotion and labelling. Sections 4 and 5 of the Act, which fall under the title "ADVERTISING", deal with the advertisement and display of tobacco products. Section 4 prohibits the advertisement, by publication, broadcast or otherwise, of tobacco products offered for sale in Canada. An exception to this prohibition is created by s. 4(3) and (4), which stipulate that the prohibition does not extend to foreign advertising in foreign publications imported into Canada or foreign broadcasts retransmitted in Canada, as long as those advertisements are not intended primarily for the purpose of promoting the sale of a tobacco product in Canada. Section 5 is directed to the retail display of tobacco products in retail establishments and vending machines. Section 5(1) stipulates that a retailer may expose tobacco products for sale and may post signs that indicate, other than by their brand names or trade marks, the tobacco products offered for sale on the premises. Section 5(2) permits the operation of tobacco vending machines, and the identification of products and prices on the exterior of the machines.

7 Sections 6 to 8 of the Act fall under the title "PROMOTION", and deal with various direct and indirect promotional activities involving tobacco products. Section 6(1) stipulates that the full name of a tobacco manufacturer may be used in a representation to the public that promotes a cultural or sporting event, but prohibits the use of brand names in such representations unless the use of a brand name is required by a contract made before January 25, 1988. Section 6(2) stipulates that, where a contract requiring the use of a brand name was in place before January 25, 1988, the value of contributions under that contract are frozen at 1987 levels. Section 7 prohibits the free distribution of tobacco products in any form. Section 8 prohibits the use of a tobacco trade mark on any article other than a tobacco product, and also prohibits the use and distribution of tobacco trade marks in advertising for products other than tobacco products; however, a special exemption from the s. 8 prohibition is created under s. 8(3) for the "Dunhill" trade mark.

8 Section 9 falls under the title "LABELLING", and prohibits tobacco manufacturers from selling their products unless they display on the package containing the product unattributed messages describing the health effects of the product as well as a list of the product's toxic constituents and the quantities of those constituents present in it. Section 17(f) authorizes the Governor in Council to adopt regulations prescribing the content, position, configuration, size and prominence of the health messages. Under the Tobacco Products Control Regulations, amendment, SOR/93-389, s. 11 (July 21, 1993), every tobacco package must display one of the following messages:

> 11. (1) . . .
>
> (*a*) . . .
>
> (i) "Cigarettes are addictive" . . .
>
> (ii)"Tobacco smoke can harm your children" . . .
>
> (iii) "Cigarettes cause fatal lung disease" . . .
>
> (iv) "Cigarettes cause cancer" . . .
>
> (v)"Cigarettes cause strokes and heart disease" . . .
>
> (vi) "Smoking during pregnancy can harm your baby" . . .
>
> (vii) "Smoking can kill you" . . .
>
> (viii) "Tobacco smoke causes fatal lung disease in non-smokers" . . .

Section 17(*g*) also authorizes the Governor in Council to require leaflets providing health information to be placed inside packages of a tobacco product and to prescribe their content, form and manner of placement in those packages. Under s. 9(2), tobacco manufacturers are prohibited from displaying on their packages any writing other than the name, brand name, trade mark, and other information required by legislation.

9 One further provision of the Act is of relevance to these appeals. Section 17(*a*) gives the Governor in Council power to make regulations exempting a tobacco product from the application of ss. 4 and 7 where, in the opinion of the Governor in Council, that product is likely to be used as a substitute for other tobacco products and poses less risk to the health of users than those other products.

10 The enforcement provisions of the Act are found in ss. 11 to 16. These provisions confer upon the Minister the power to designate a "tobacco product inspector" with powers of inspection, search and seizure, analysis, detention of things seized, and forfeiture. The "offences and punishments" for contravention of the Act are set out in ss. 18 and 19. Section 18 stipulates that every person who contravenes ss. 4, 6(2), 7, 8, 9 or 10 is guilty of an offence punishable on summary conviction or an indictable offence. The penalties range in seriousness from a fine not exceeding two thousand dollars or six months' imprisonment, or both, for a first offence on summary conviction, to a fine not exceeding three hundred thousand dollars or two years' imprisonment, or both, for a second or subsequent offence pursued by way of indictment.

[…]

Issues Before This Court

27 The argument before this Court was conducted on the basis of two constitutional questions, stated by Chief Justice Lamer on November 4, 1993:

> 1 Is the Tobacco Products Control Act, S.C. 1988, c. 20, wholly or in part within the legislative competence of the Parliament of Canada as being a law enacted for the peace, order and good government of Canada pursuant to s. 91 of the Constitution Act, 1867; as being enacted pursuant to the criminal law power in s. 91(27) thereof; or otherwise?
>
> [The Court also dealt the constitutional validity of the labeling requirements under s. 2(b) of the *Canadian Charter of Rights and Freedoms*. Those parts of the decision are reproduced elsewhere in these materials.]

[…]

Analysis

1. *Jurisdiction under the Constitution Act, 1867*

The Criminal Law Power

28 The first question arising on these appeals is whether the Act constitutes a valid exercise of the federal criminal law power and is therefore *intra vires* the federal Parliament. Section 91(27) of the Constitution Act, 1867 confers on the federal Parliament the exclusive power to legislate in relation to the criminal law. The criminal law power is plenary in nature and this Court has always defined its scope broadly. As Estey J. observed in *Scowby v. Glendinning* […] "[t]he terms of s. 91(27) of the Constitution must be read as assigning to Parliament exclusive jurisdiction over criminal law in the widest sense of the term" […]. In developing a definition of the criminal law, this Court has been careful not to freeze the definition in time or confine it to a fixed domain of activity […]. In *Proprietary Articles Trade Association v. Attorney-General for Canada*, […] the Privy Council defined the federal criminal law power in the widest possible terms to include any prohibited act with penal consequences. Subsequent to that decision, this Court recognized that the Privy Council's definition was too broad in that it would allow Parliament to invade areas of provincial legislative competence colourably simply by legislating in the proper form […]. So, as Estey J. put it in *Scowby*, […] "it was accepted that some legitimate public purpose must underlie the prohibition". This necessary adjustment was introduced in […] (the *Margarine Reference*). Rand J. drew attention, at pp. 49-50, to the need to identify the evil or injurious effect at which a penal prohibition was directed. He stated:

> A crime is an act which the law, with appropriate penal sanctions, forbids; but as prohibitions are not enacted in a vacuum, we can properly look for some evil or injurious or undesirable effect upon the public against which the law is directed. That effect may be in relation to social, economic or political interests; and the legislature has had in mind to suppress the evil or to safeguard the interest threatened.
>
> . . .
>
> Is the prohibition . . . enacted with a view to a public purpose which can support it as being in relation to criminal law? Public peace, order, security, health, morality: these are the ordinary though not exclusive ends served by that law . . . . [Emphasis added.]

See also *R. v. Morgentaler*, 1993 CanLII 74 (SCC), [1993] 3 SCR 463, at p. 489.

29 Taking into account the broad definition of the criminal law developed by this Court, I am satisfied that the Act is, in pith and substance, criminal law. A law's pith and substance, or "matter", is best described as its dominant purpose or true character; see *Morgentaler*, *supra*, at pp. 481-82. From a plain reading of the Act, it seems clear that Parliament's purpose in enacting this legislation was to prohibit three categories of acts: advertisement of tobacco products (ss. 4 and 5), promotion of tobacco products (ss. 6 to 8) and sale of tobacco products without printed health warnings (s. 9). These prohibitions are accompanied by penal sanctions under s. 18 of the Act, which, […] creates at least a prima facie indication that the Act is criminal law. However, the crucial further question is whether the Act also has an underlying criminal public purpose in the sense described by Rand J. in the *Margarine Reference, supra*. The question, as Rand J. framed it, is whether the prohibition with penal consequences is directed at an "evil" or injurious effect upon the public.

30 In these cases, the evil targeted by Parliament is the detrimental health effects caused by tobacco consumption. This is apparent from s. 3, the Act's "purpose" clause […]. Quite clearly, the common thread running throughout the three enumerated purposes in paras. 3(a) to (c) is a concern for public health and, more specifically, a concern with protecting Canadians from the hazards of tobacco consumption. This is a valid concern. A copious body of evidence was introduced at trial demonstrating convincingly, and this was not disputed by the appellants, that tobacco consumption is widespread in Canadian society and that it poses serious risks to the health of a great number of Canadians. I note in passing the well-established principle that a court is entitled, in a pith and substance analysis, to refer to extrinsic materials, such as related legislation, Parliamentary debates and evidence of the "mischief" at which the legislation is directed; see *Morgentaler*, *supra*, at pp. 483-84; *Reference Re Anti-Inflation Act*, 1976 CanLII 16 (SCC) […]. An appropriate starting point in an examination of these extrinsic materials is the speech given by Jake Epp, the Minister of National Health and Welfare, on November 23, 1987 before second reading of Bill C-51, which was later given Royal Assent to the Act. He stated (House of Commons Debates, vol. IX, at p. 11042):

> The federal Government has taken an active role in addressing the issue of cigarette smoking. It is important for people to understand why smoking, which was thought of as merely a personal habit, has become a legitimate public concern. There is overwhelming evidence that tobacco smoke is the largest preventable cause of illness, disability and premature death in Canada. Moreover, it has also become evident that Canadians who are consistently exposed to smoke in the environment may suffer from adverse health effects. Not surprisingly, the public is increasingly asking for an environment that protects non-smokers from tobacco smoke.
>
> As Minister of National Health and Welfare, my primary concern is the health of Canadians. Therefore, I must do all that I can to protect their health by discouraging the advertising and promotion of tobacco, and by increasing public health knowledge of the health hazards of smoking.
>
> This is not a moral crusade. It is not a case of some overzealous individuals attempting to force their life-style on others. It is responsible government action in reaction to overwhelming evidence that tobacco, despite its widespread use by a third of the adult population, is actually responsible for 100 deaths a day in Canada.

31 Apart from shedding light upon the government's intent in introducing this legislation, this speech also gives some indication of the nature and scope of the societal problem posed by tobacco consumption. Statistics show that approximately 6.7 million Canadians, or 28 percent of Canadians over the age of 15, consume tobacco products […]. The harm tobacco consumption causes each year to individual Canadians, and to the community as a whole, is tragic. Indeed, it has been estimated that smoking causes the premature death of over 30,000 Canadians annually […]. Overwhelming evidence was introduced at trial that tobacco use is a principal cause of deadly cancers, heart disease and lung disease. In our day and age this conclusion has become almost a truism. […]

32 It appears, then, that the detrimental health effects of tobacco consumption are both dramatic and substantial. Put bluntly, tobacco kills. Given this fact, can Parliament validly employ the criminal law to prohibit tobacco manufacturers from inducing Canadians to consume these products, and to increase public awareness concerning the hazards of their use? In my view, there is no question that it can. "Health", of course, is not an enumerated head under the Constitution Act, 1867. As Estey J. observed in *Schneider v. The Queen*, 1982 CanLII 26 (SCC), [1982] 2 SCR 112, at p. 142:

> . . . "health" is not a matter which is subject to specific constitutional assignment but instead is an amorphous topic which can be addressed by valid federal or provincial legislation, depending in the circumstances of each case on the nature or scope of the health problem in question.
>
> Given the "amorphous" nature of health as a constitutional matter, and the resulting fact that Parliament and the provincial legislatures may both validly legislate in this area, it is important to emphasize once again the plenary nature of the criminal law power. In the *Margarine Reference*, *supra*, at pp. 49-50, Rand J. made it clear that the protection of "health" is one of the "ordinary ends" served by the criminal law, and that the criminal law power may validly be used to safeguard the public from any "injurious or undesirable effect". The scope of the federal power to create criminal legislation with respect to health matters is broad, and is circumscribed only by the requirements that the legislation must contain a prohibition accompanied by a penal sanction and must be directed at a legitimate public health evil. If a given piece of federal legislation contains these features, and if that legislation is not otherwise a "colourable" intrusion upon provincial jurisdiction, then it is valid as criminal law; see *Scowby*, *supra*, at pp. 237-38.

33 As I have indicated, it is clear that this legislation is directed at a public health evil and that it contains prohibitions accompanied by penal sanctions. Is it colourable? In my view, it is not. Indeed, it is difficult to conceive what Parliament's purpose could have been in enacting this legislation apart from the reduction of tobacco consumption and the protection of public health. If Parliament's underlying purpose or intent had been to encroach specifically upon the provincial power to regulate advertising, it would surely have enacted legislation applying to advertising in more than one industry. Similarly, if Parliament's intent had been to regulate the tobacco industry as an industry, and not merely to combat the ancillary health effects resulting from tobacco consumption, then it would surely have enacted provisions that relate to such matters as product quality, pricing and labour relations. In this respect, the present cases must be distinguished from cases such as *Morgentaler*, *supra*, where there was evidence that Nova Scotia's major purpose in enacting the Medical Services Act, R.S.N.S. 1989, c. 281, which purported to be for the control of private health care facilities, was in fact the elimination of free-standing abortion clinics […]. In [that case], it was clear that the provincial legislature was attempting to intrude indirectly upon federal powers when it could not do so directly […]. By contrast, there is no evidence in the present cases that Parliament had an ulterior motive in enacting this legislation, or that it was attempting to intrude unjustifiably upon provincial powers under ss. 92(13) and (16). They thus differ from the *Margarine Reference, supra,* where the prohibition was not really directed at curtailing a public evil, but was in reality, in pith and substance, aimed at regulating the dairy industry.

34 Why, then, has Parliament chosen to prohibit tobacco advertising, and not tobacco consumption itself? In my view, there is a compelling explanation for this choice. It is not that Parliament was attempting to intrude colourably upon provincial jurisdiction but that a prohibition upon the sale or consumption of tobacco is not a practical policy option at this time. It must be kept in mind that the very nature of tobacco consumption makes government action problematic. Many scientists agree that the nicotine found in tobacco is a powerfully addictive drug. For example, the United States Surgeon General has concluded that "[c]igarettes and other forms of tobacco are addicting" and that "the processes that determine tobacco addiction are similar to those that determine addiction to other drugs, including illegal drugs"; see The Health Consequences of Smoking -- Nicotine Addiction -- A report of the Surgeon General (1988). Given the addictive nature of tobacco products, and the fact that over one-third of Canadians smoke, it is clear that a legislative prohibition on the sale and use of tobacco products would be highly impractical. Indeed a prohibition on the manufacture and sale of tobacco products would likely lead many smokers to resort to alternative, and illegal, sources of supply. As legislators in this country discovered earlier in the century, the prohibition of a social drug such as tobacco or alcohol leads almost inevitably to an increase in smuggling and crime.

35 However, the mere fact that it is not practical or realistic to implement a prohibition on the use or manufacture of tobacco products does not mean that Parliament cannot, or should not, resort to other intermediate policy options. […]

36 It is apparent […] that the social problems created by tobacco consumption are complex and that innovative legislative solutions are required to address them effectively. Faced with the insurmountable difficulties a complete prohibition upon tobacco consumption would create, the federal Parliament has undertaken the task of devising such solutions. Indeed, the Act forms only one part of a comprehensive and multi-faceted federal and provincial program to control and reduce the consumption of tobacco. This program has been in development for over 25 years. […]

38 Subsequent to the passage of the Act, Parliament has also introduced an array of legislative measures as part of its larger initiative to curb tobacco consumption. These include a law prohibiting the sale of tobacco to minors (*Tobacco Sales to Young Persons Act*, S.C. 1993, c. 5.), a law eliminating smoking in federal government work environments (*Non-smokers' Health Act*, S.C. 1988, c. 21), and the prohibition of the sale of cigarettes in the small package formats often purchased by children (so-called "kiddie packs" of less than 20 cigarettes); see *An Act to amend the Excise Act, the Customs Act and the Tobacco Sales to Young Persons Act*, S.C. 1994, c. 37. Parliament has also sought to reduce smoking through major tax increases in 1985, 1989 and 1991, although taxes were partially rolled back in 1994 due to a large contraband problem. Also relevant is that nine provinces have introduced legislation respecting the sale of tobacco to young persons and smoking in public places […].

39 Quite clearly, then, Parliament has been innovative in seeking to find alternatives to a prohibition on the sale or use of tobacco. In light of the practical difficulties entailed in prohibiting the sale or consumption of tobacco, and the resulting need for innovative legislative solutions, Parliament's decision to criminalize tobacco advertisement and promotion is, in my view, a valid exercise of the criminal law power. This Court has long recognized that Parliament may validly employ the criminal law power to prohibit or control the manufacture, sale and distribution of products that present a danger to public health, and that Parliament may also validly impose labelling and packaging requirements on dangerous products with a view to protecting public health. This was recognized as early as the *Margarine Reference, supra*. […]

43 From the foregoing, it is clear that Parliament could, if it chose, validly prohibit the manufacture and sale of tobacco products under the criminal law power on the ground that these products constitute a danger to public health. Such a prohibition would be directly analogous to the prohibitions on dangerous drugs and unsanitary foods or poisons mentioned earlier, which quite clearly fall within the federal criminal law power. In my view, once it is accepted that Parliament may validly legislate under the criminal law power with respect to the manufacture and sale of tobacco products, it logically follows that Parliament may also validly legislate under that power to prohibit the advertisement of tobacco products and sales of products without health warnings. In either case, Parliament is legislating to effect the same underlying criminal public purpose: protecting Canadians from harmful and dangerous products.

44 Seen in this light, the only true distinction that can be drawn between the measures adopted under the Act and an outright prohibition on the sale or consumption of tobacco is with respect to the form employed by Parliament to combat the "evil" of tobacco consumption. However, such a distinction, unaccompanied by any evidence of colourability, is not constitutionally significant. Once it is conceded, as I believe it must be, that tobacco consumption has detrimental health effects and that Parliament's intent in enacting this legislation was to combat these effects, then the wisdom of Parliament's choice of method cannot be determinative with respect to Parliament's power to legislate. The goal in a pith and substance analysis is to determine Parliament's underlying purpose in enacting a particular piece of legislation; it is not to determine whether Parliament has chosen that purpose wisely or whether Parliament would have achieved that purpose more effectively by legislating in other ways […].

The Appellants' Principal Arguments

45 The foregoing considerations, it seems to me, are sufficient to establish that the pith and substance of the Act is criminal law for the purpose of protecting public health and that Parliament accordingly has the legislative authority under s. 91(27) of the *Constitution Act, 1867* to enact this legislation. However, I think it right to address directly the three principal arguments raised by the appellants in support of their submission that the Act is not valid as criminal law: first, that the conduct prohibited by the Act does not have an "affinity with a traditional criminal law concern"; second, that Parliament cannot criminalize an activity ancillary to an "evil" if it does not criminalize the "evil" itself; and, third, that the Act is more properly characterized as regulatory, not criminal, legislation. I will now address each of these arguments in turn.

i. *Affinity of the Act with a Traditional Criminal Law Concern*

46 The appellants' first argument is that the Act is not a valid exercise of the criminal law power because it does not involve conduct having an affinity with a traditional criminal law concern. The appellants observe that both tobacco consumption and tobacco advertising have always been legal in this country and, on this basis, argue that this legislation does not serve a "public purpose commonly recognized as being criminal in nature"; see *Swain, supra*, at p. 998.

47 In my view, this argument fails because it neglects the well-established principle that the definition of the criminal law is not "frozen as of some particular time" […]. It has long been recognized that Parliament's power to legislate with respect to the criminal law must, of necessity, include the power to create new crimes. This was made clear as early as 1931, when the Privy Council upheld the validity of the *Combines Investigation Act*, R.S.C. 1927, c. 26 […]. That legislation criminalized a wide array of commercial activities not hitherto perceived to have an affinity with criminal law concerns.

[…]

48 In my view, the reasoning in *PATA* and *Goodyear Tire* is directly applicable here. The simple fact that neither tobacco consumption nor tobacco advertising have been illegal in the past in no way precludes Parliament from criminalizing either of those activities today. Indeed, given the fact that the first medical reports linking cigarette smoking to disease did not emerge until the 1950s, and that governments have only recently been made aware of the truly devastating health consequences of tobacco consumption, it is clear that Parliament had no reason, before that time, to criminalize this activity. The evolution in medical knowledge since the 1950s has radically altered the social and political landscape, producing a growing consensus, both nationally and internationally, that tobacco consumption is a sui generis problem that can only be properly addressed with an array of innovative and multifaceted legislative responses. In Canada, the decision to criminalize tobacco advertising was made incrementally, as part of a 25-year public policy process, and only after Parliament had determined that there was compelling evidence concerning the health effects of tobacco consumption and that the variety of non-criminal measures then in place were not sufficiently effective in reducing consumption. It would be artificial, if not absurd, to limit Parliament's power to legislate in this emerging area of public health concern simply because it did not, and logically could not, legislate at an earlier time.

ii. *The Ancillary Nature of the Prohibited Act*

49 The appellants' second argument is that the Act lacks the requisite "criminal public purpose" because Parliament cannot criminalize an activity ancillary to an "evil" (the advertisement and promotion of tobacco), when the underlying activity the legislation is designed to combat (the manufacture, sale and consumption of tobacco) is itself legal.

50 In my view, this argument fails because it cannot be reconciled with the recent jurisprudence of this Court. In both *Reference re ss. 193 and 195.1(1)(c) of the Criminal Code (Man.)*, 1990 CanLII 105 (SCC), [1990] 1 SCR 1123 (the Prostitution Reference), and *Rodriguez v. British Columbia (Attorney General)*, 1993 CanLII 75 (SCC), [1993] 3 SCR 519, this Court upheld the constitutionality of legislation that criminalized an ancillary activity without also criminalizing the underlying activity or "evil". …

iii. *The Creation of Exemptions Under the Criminal Law Power*

52 The appellants' third argument is that the Act is fundamentally regulatory, not criminal, in nature. In support of this argument, they observe that the Act contains exemptions for publications and broadcasts originating outside Canada (s. 4(3)), for the Dunhill trademark (s. 8(3)), and for tobacco product substitutes exempted by the Governor in Council on the ground that they pose less risk to the health of users (s. 17(a)). The practical effect of these exemptions, the appellants argue, is that the very same act can be legal when committed by one party in Canada but illegal when committed by another.

53 In my view, this argument fails because it disregards the long-established principle that the criminal law may validly contain exemptions for certain conduct without losing its status as criminal law. […]

54 This principle was reiterated in *Morgentaler v. The Queen*, 1975 CanLII 8 (SCC), [1976] 1 SCR 616, where this Court addressed the constitutionality of s. 251 of the *Criminal Code*, R.S.C. 1970, c. C-34. Under s. 251(1) of the Code, the intentional procurement of a miscarriage was declared to be unlawful. However, under s. 251(4) and (5), Parliament had also created an exemption for miscarriages carried out by qualified medical practitioners where the life of the woman was in danger. Laskin C.J., dissenting in the result but not on this issue, made it clear that the creation of such an exemption did not detract from the validity of the provision as criminal law, at p. 627:

> I need cite no authority for the proposition that Parliament may determine what is not criminal as well as what is, and may hence introduce dispensations or exemptions in its criminal legislation. It has done this in respect of gaming and betting by prescribing for lawful operation of pari-mutuel systems…,by exempting agricultural fairs or exhibitions from certain of the prohibitions against lotteries and games of chance… and by expressly permitting lotteries under stated conditions…

[…]

56 The clear implication of this Court's decisions in *Lord's Day Alliance*, *Morgentaler* and *Furtney*, is that the creation of a broad status-based exemption to criminal legislation does not detract from the criminal nature of the legislation. On the contrary, the exemption helps to define the crime by clarifying its contours. In my view, this is precisely what Parliament has done in creating exemptions under the Act. The crime created by Parliament is the advertisement and promotion of tobacco products offered for sale in Canada. Rather than diluting the criminality of these acts, the exemptions to which the appellants refer serve merely to delineate the logical and practical limits to Parliament's exercise of the criminal law power in this context. For example, it is clear that the exemption for foreign media under s. 4(3) was created to

avoid both the extraterritorial application of Canadian legislation and the page-by-page censorship of foreign publications at the border. … Given the fact that foreign tobacco products comprise less than 1 percent of the Canadian market, it is apparent that the exemption has an extremely limited scope. There is an equally logical and practical explanation for the exemptions created under ss. 17(a) and 8(3). With respect to the exemption under s. 17(a), which permits the Governor in Council to make regulations exempting substitute tobacco products from the application of ss. 4 and 7 where they pose less risk to the health of users, it is clear that Parliament was seeking to encourage the development of alternatives to tobacco. Such an exemption is, of course, completely consistent with the Act's underlying purpose of protecting public health. […] Thus, none of these exemptions serves in any way to confuse, or detract from, the category of acts Parliament has validly criminalized under the Act.

57 For all the foregoing reasons, I am of the view that the Act is a valid exercise of the federal criminal law power.

[…]

The following are the reasons delivered by

193 MAJOR J. [(Sopinka J. concurring) (dissenting)] --

[…]

195 It is undisputed that Parliament may legislate with respect to hazardous, unsanitary, adulterated and otherwise dangerous foods and drugs pursuant to its power to legislate in the field of criminal law.

196 It follows that Parliament can require manufacturers to place warnings on tobacco products which are known to have harmful effects on health. Manufacturers of tobacco products are under a duty to disclose and warn of the dangers inherent in the consumption of tobacco products. Failure to place warnings on tobacco products can validly constitute a crime, a "public wrong" which merits proscription and punishment and ought to be suppressed as "socially undesirable conduct" […]. […]

197 However, I do not agree that Parliament under its criminal law power is entitled to prohibit all advertising and promotion of tobacco products and restrict the use of tobacco trademarks as provided for in ss. 4, 5, 6, 8 and 9 of the Act. […]

200 A definitive and all-encompassing test to determine what constitutes a "criminal offence" remains elusive but the activity which Parliament wishes to suppress through criminal sanction must pose a significant, grave and serious risk of harm to public health, morality, safety or security before it can fall within the purview of the criminal law power. While there is a range of conduct between the most and less serious, not every harm or risk to society is sufficiently grave or serious to warrant the application of the criminal law.

201 The heart of criminal law is the prohibition of conduct which interferes with the proper functioning of society or which undermines the safety and security of society as a whole. *Reference re Alberta Statutes*, 1938 CanLII 1 (SCC), [1938] SCR 100, held that a crime is a public wrong involving a violation of the public rights and duties to the whole community, considered as a community, in its social aggregate capacity. Matters which pose a significant and serious risk of harm or which cause significant and serious harm to public health, safety or security can be proscribed by Parliament as criminal.

202 Consequently, lesser threats to society and its functioning do not fall within the criminal law, but are addressed through non-criminal regulation, either by Parliament or provincial legislatures, depending on the subject matter of the regulation.

[…]

204 […] I agree that criminal law is not frozen in time. Parliament can decriminalize what once was thought criminal, and can also criminalize conduct which was not part of the criminal law at the time of Confederation. I disagree that affinity with a traditional criminal law concern has no part to play in the analysis, whether the conduct proscribed by Parliament has an affinity with a traditional criminal law concern is a starting point in determining whether a particular matter comes within federal criminal competence. Cases such as *Morgentaler*, *supra*, and *Knox Construction*, *supra*, demonstrate that courts will often look for an affinity with a traditional criminal law concern, or affinity with activities historically recognized as criminal, to determine whether a certain exercise of legislative power falls within the field of criminal law.

[…]

208 The objective of the advertising ban and trade mark usage restrictions, as stated by McLachlin J., is to prevent Canadians from being persuaded by advertising and promotion to use tobacco products. I respectfully disagree with La Forest J. that this type of persuasion constitutes criminal conduct.

209 Tobacco advertising and promotion may encourage some people to start or to continue to smoke. For that reason, it is viewed by many as an undesirable form of commercial expression. I do not disagree that it may be an undesirable form of expression, but is this undesirability sufficient to make such expression criminal? Does tobacco advertising pose a significant, grave and serious danger to public health? Or does it simply encourage people to consume a legal but harmful product? I cannot agree that the commercial speech at issue poses such a significant, grave and serious danger to public health to fall within the purview of the federal criminal law power. In my opinion, the Act is too far removed from the injurious or undesirable effects of tobacco use to constitute a valid exercise of Parliament's criminal law power. Legislation prohibiting all advertising of a product which is both legal and licensed for sale throughout Canada lacks a typically criminal public purpose and is *ultra vires* Parliament under s. 91(27) of the Constitution Act, 1867. Such advertising can hardly be considered to be a public wrong involving a violation of public rights and duties to the whole community, the type of conduct that Parliament is entitled to proscribe and punish as harmful and socially undesirable under its criminal law power.

[…]

212 Since Parliament has chosen not to criminalize tobacco use, it is difficult to understand how tobacco advertising can somehow take on the character of criminal activity. The Act does not deal in any way with the regulation or prohibition of dangerous products or drugs. The underlying "evil" of tobacco use which the Act is designed to combat remains perfectly legal. Tobacco advertising is in itself not sufficiently dangerous or harmful to justify criminal sanctions. In my view, it is beyond Parliament's competence to criminalize this type of speech where Parliament has declined to criminalize the underlying activity of tobacco use.

213 On a final note, La Forest J. addressed the exemptions contained within the Act, most notably the exemption for foreign periodicals. He concluded that notwithstanding the exemptions, tobacco advertising still constitutes criminal law. I disagree. […] While exemptions do not necessarily take a statute out of criminal law, broadly based exemptions are a factor which may lead a court to conclude that the proscribed conduct is not truly criminal. […]

215 In these appeals, McLachlin J. notes that despite the advertising ban, 65 percent of the Canadian magazine market will contain tobacco advertisements, given that the ban applies only to Canadian media and not to imported publications. The exemptions for advertising cannot be seen as being limited in nature because most Canadians will be exposed to advertising for tobacco products in newspapers, magazines and so forth. It is hard to understand how the respondent on the one hand claims that nothing short of a total ban will accomplish the goal of reducing tobacco consumption while at the same time the Act allows a very significant amount of advertising to enter the country. It is difficult to

imagine how tobacco advertising produced by the United States or other countries and distributed in Canada through publications somehow becomes criminal when produced and distributed by Canadians. The broadly based exemptions contained in the Act, combined with the fact that the Act does not engage a typically criminal public purpose, leads to the conclusion that the prohibitions on advertising cannot be upheld as a valid exercise of Parliament's criminal law power.

For an engaging and critical analysis of this decision that focusses on the politics of the criminal law power, see Allan Hutchinson and David Schneiderman, "Smoking Guns: The Federal Government Confronts the Tobacco and Gun Lobbies" (1995) 7 Const Forum Const 16.

R. v. Hydro-Québec, 1997 CanLII 318 (SCC), [1997] 3 SCR 213 dealt with similar questions as those taken up in *RJR-MacDonald*. In this case, the Supreme Court held that the protection of the environment is a valid criminal law purpose and that, in addition to including exemptions, criminal prohibitions may also provide for broad ministerial discretion.

2.3 *R. v. Hydro-Québec*

This case concerned the constitutionality of provisions of the *Canadian Environmental Protection Act*, RSC 1985, c 16 (4th Supp). Hydro-Québec had been charged with violating an order made pursuant to the Act that restricted its emissions of certain hazardous substances. It challenged the relevant provisions on the basis that they were *ultra vires* federal Parliament. The federal government sought to defend the legislation as a valid exercise of Parliament's POGG and criminal law powers. The complex scheme at issue was summarized in the dissenting reasons of Chief Justice Lamer and Justice Iacobucci, which appeared first in the reasons. The majority reasons, written by La Forest J., follow. Only the portions of the judgments addressing the criminal law power are included below.

***R. v. Hydro-Québec*,** 1997 CanLII 318 (SCC), **[1997] 3 SCR 213**

The reasons of Lamer C.J. and Sopinka, Iacobucci and Major JJ. were delivered by

1 THE CHIEF JUSTICE and IACOBUCCI J. (dissenting) – This appeal arose as a result of an interim order made in 1989 by the then Minister of the Environment of Canada, the Honourable Lucien Bouchard. It restricted the emission of chlorobiphenyls ("PCBs") to 1 gram per day. The respondent, Hydro-Québec, was charged with breaching this Interim Order and challenged the charges by claiming that the Interim Order, as well as the underlying provisions supporting it, were *ultra vires* Parliament as invading provincial territory.

2 We have had the advantage of reading the lucid reasons of La Forest J. While we share his concern for the protection of the environment, we are of the view that the impugned provisions cannot be justified under s. 91 of the Constitution Act, 1867, and are therefore *ultra vires* the federal government. Because of our disagreement with our colleague's approach, we will set out the relevant factual and judicial background.

[…]

A. *The Legislative Structure of the Act*

15 The *Canadian Environmental Protection Act* was adopted by Parliament in 1988. It consolidated and replaced several other laws dealing with various kinds of environmental protection. Part II of the Act, which contains ss. 34 and 35, is called "Toxic Substances" and deals with the identification and regulation of substances which could potentially pose a risk to the environment and/or to human health. According to s. 11 of the Act, a substance is toxic where "it is entering or may enter the environment" under conditions "having or that may have an immediate or long-term harmful effect on the environment", "constituting or that may constitute a danger to the environment on which human life depends", or "constituting or that may constitute a danger in Canada to human life or health". Section 3 broadly defines a "substance" as "any distinguishable kind of organic or inorganic matter, whether animate or inanimate" and the "environment" as "the components of the Earth". "Harmful effect" and "danger" are not defined.

16 The Act instructs the Ministers of the Environment and Health to compile and maintain four lists: the Domestic Substances List (DSL), the Non-Domestic Substances List (NDSL), the Priority Substances List (PSL) and the List of Toxic Substances (LTS). The DSL includes all substances in use in Canada since 1986 (some 21,700 substances as of January 1991). The NDSL contains all other substances. At present, the NDSL list includes over 41,000 substances. See E. A. Fitzgerald, "The Constitutionality of Toxic Substances Regulation Under the Canadian Environmental Protection Act" (1996), 30 *U.B.C. L. Rev.* 55, at p. 70. There is a blanket restriction on importing NDSL substances into Canada until they are approved (s. 26).

17 Sections 12 and 13 of the Act require the Ministers to compile a "Priority Substances List" specifying those substances to which priority should be given in determining whether or not they should be placed on the List of Toxic Substances. […]

18 Once a priority listed substance is found to be toxic within the meaning of s. 11, the Ministers may recommend adding it to the List of Toxic Substances. After a federal-provincial advisory committee (established under s. 6) has been given an opportunity to provide its advice, the Governor in Council may add the substance to the list and bring it under the regulatory control of s. 34.

19 Section 34 provides for the regulation of substances on the List of Toxic Substances. The Governor in Council is given extensive powers to prescribe regulations dealing with every conceivable aspect of the listed substance, including: the quantity or concentration in which it can be released; the commercial or manufacturing activity in the course of which it can be released; the quantity of that substance that can be manufactured, imported, owned, sold, or used -- including total prohibitions on its manufacture, importation, ownership, use or sale -- and likewise the manner in and purposes for which it can be manufactured, imported, processed, used, offered for sale or sold; the manner and conditions in which the substance may be advertised, stored, displayed, handled, transported or offered for transport; the manner, conditions, places and method of disposal of the substance; the maintenance of books and records in respect of the substance; and the extent to which reports must be made to the Minister regarding the monitoring of the substance. Section 34(1)(*x*) allows the Governor in Council to regulate "any other matter necessary to carry out the purposes of this Part".

20 Where a substance is not on the List of Toxic Substances (or where it is listed, but the Ministers believe that it is not adequately regulated), and where the Ministers believe that immediate action is necessary in respect of that substance, s. 35 allows for the making of "interim orders" without going through the usual procedure. These orders can contain any regulation which could have been made under s. 34, but they remain in effect for only 14 days unless they are approved by the Governor in Council. Approval can be given only if, *inter alia*, the Ministers have offered to consult with the governments of any affected provinces to see whether they are prepared to take sufficient action to deal with the threat posed by the substance (s. 35(4)). According to s. 35(8), interim orders expire after two years, even if such approval is granted.

[…]

22 Finally, the Act prescribes a number of civil and criminal penalties. Section 113(*f*), for example, creates an offence of contravening regulations made under s. 34. The punishment ranges from a maximum $300,000 fine or six months imprisonment (or both) on summary conviction to a maximum $1 million fine or three years imprisonment (or both) on indictment. A defence of due diligence is allowed

for all offences under the Act except those under s. 114 (knowingly providing false or misleading information), s. 115(1)(*a*) (intentionally or recklessly causing an environmental disaster) or s. 115(1)(*b*) (showing wanton or reckless disregard for the lives or safety of other persons). These offences require a higher standard of moral culpability.

[…]

C. The Criminal Law Power

34 Parliament has been given broad and exclusive power to legislate in relation to criminal law by virtue of s. 91(27) […]. This power has traditionally been construed generously. As La Forest J. noted in *RJR-MacDonald*, at p. 240, "[i]n developing a definition of the criminal law, this Court has been careful not to freeze the definition in time or confine it to a fixed domain of activity".

35 Nevertheless, the criminal law power has always been made subject to two requirements: laws purporting to be upheld under s. 91(27) must contain prohibitions backed by penalties; and they must be directed at a "legitimate public purpose" […]. As Rand J. stated in the *Margarine Reference* […]:

> A crime is an act which the law, with appropriate penal sanctions, forbids; but as prohibitions are not enacted in a vacuum, we can properly look for some evil or injurious or undesirable effect upon the public against which the law is directed. That effect may be in relation to social, economic or political interests; and the legislature has had in mind to suppress the evil or to safeguard the interest threatened.
>
> . . .
>
> Is the prohibition then enacted with a view to a public purpose which can support it as being in relation to criminal law? Public peace, order, security, health, morality: these are the ordinary though not exclusive ends served by that law....

36 These two criteria have been consistently applied: […]. Criminal law under s. 91(27) must attempt to achieve a criminal public purpose through the imposition of prohibitions and penalties. Colourable attempts to invade areas of provincial jurisdiction under the guise of criminal legislation will be declared *ultra vires*. As La Forest J. wrote in *RJR-MacDonald*, at p. 246:

> The scope of the federal power to create criminal legislation with respect to health matters is broad, and is circumscribed only by the requirements that the legislation must contain a prohibition accompanied by a penal sanction and must be directed at a legitimate public health evil. If a given piece of federal legislation contains these features, and if that legislation is not otherwise a "colourable" intrusion upon provincial jurisdiction, then it is valid as criminal law.... [Emphasis added.]

37 These comments were made in the context of criminal legislation concerning health, but we see no reason why they should not be of general application as regards s. 91(27). […].

38 The next step is therefore to examine the impugned provisions and determine whether they meet these criteria. In our view, they fall short. While the protection of the environment is a legitimate public purpose which could support the enactment of criminal legislation, we believe the impugned provisions of the Act are more an attempt to regulate environmental pollution than to prohibit or proscribe it. As such, they extend beyond the purview of criminal law and cannot be justified under s. 91(27).

(i) A Legitimate Public Purpose

39 The appellant and several interveners urged us to uphold the provisions as related to health, one of the criminal public purposes recognized in the *Margarine Reference*, *supra*. In this regard, they cited numerous studies outlining the hazardous effects of PCBs, which were the subject of the Interim Order that gave rise to this litigation. […]. With respect, the toxicity of PCBs, while clearly important to the environment itself, is not directly relevant to this appeal, since what is at issue is not simply the Interim Order, but the enabling provisions under which that order was enacted. That is, the question is not whether PCBs pose a danger to human health, which it appears they clearly do, but whether the Act purports to grant federal regulatory power over substances which may not pose such a danger.

40 In our view, there is no question but that the Act does so. […]

42 […] As such, we cannot see how the provisions can be upheld as legislation relating to health. Their scope extends well beyond matters relating to human health into the realm of general ecological protection. Parliament's clear intention was to allow for federal intervention where the environment itself was at risk, whether or not the substances concerned posed a threat to human health and whether or not the aspect of the environment affected was one on which human life depended. Having specifically excluded both direct and indirect danger to human health as preconditions for the application of these provisions, Parliament cannot now say that they were enacted in order to guard against such dangers.

43 To the extent that La Forest J. suggests that this legislation is supportable as relating to health, therefore, we must respectfully disagree. We agree with him, however, that the protection of the environment is itself a legitimate criminal public purpose, analogous to those cited in the *Margarine Reference, supra*. We would not add to his lucid reasoning on this point, save to state explicitly that this purpose does not rely on any of the other traditional purposes of criminal law (health, security, public order, etc.). To the extent that Parliament wishes to deter environmental pollution specifically by punishing it with appropriate penal sanctions, it is free to do so, without having to show that these sanctions are ultimately aimed at achieving one of the "traditional" aims of criminal law. The protection of the environment is itself a legitimate basis for criminal legislation.

44 However, we still do not feel that the impugned provisions qualify as criminal law under s. 91(27). While they have a legitimate criminal purpose, they fail to meet the other half of the *Maragarine Reference* test. The structure of Part II of the Act indicates that they are not intended to prohibit environmental pollution, but simply to regulate it. As we will now explain in further detail, they are not, therefore, criminal law […].

(ii) Prohibitions Backed by Penalties

45 Ascertaining whether a particular statute is prohibitive or regulatory in nature is often more of an art than a science. […] Some guidelines have, however, emerged from previous jurisprudence.

46 The fact that a statute contains a prohibition and a penalty does not necessarily mean that statute is criminal in nature. Regulatory statutes commonly prohibit violations of their provisions or regulations promulgated under them and provide penal sanctions to be applied if violations do, in fact, occur. Any regulatory statute that lacked such prohibitions and penalties would be meaningless. However, as La Forest J. himself recognized […], the penalties that are provided in a regulatory context serve a "pragmatic" or "instrumental" purpose and do not transform the legislation into criminal law. […] In environmental law, as in competition law or income tax law, compliance cannot always be ensured by the usual regulatory enforcement techniques, such as periodic or unannounced inspections. Hence, in order to ensure that legal standards are being met, a strong deterrent, the threat of penal sanctions, is necessary. […]

47 […] [A] criminal law does not have to consist solely of blanket prohibitions. It may, as La Forest J. noted in *RJR-MacDonald* […], "validly contain exemptions for certain conduct without losing its status as criminal law". […] These exemptions may have the effect of establishing "regulatory" schemes which confer a measure of discretionary authority without changing the character of the law, as was the case in *RJR-MacDonald*.

48 Determining when a piece of legislation has crossed the line from criminal to regulatory involves, in our view, considering the nature and extent of the regulation it creates, as well as the context within which it purports to apply. A scheme which is fundamentally regulatory, for example, will not be saved by calling it an "exemption". As Professor Hogg suggests, *supra*, at p. 18-26, "the more elaborate [a] regulatory scheme, the more likely it is that the Court will classify the dispensation or exemption as being regulatory rather than criminal". At the same time, the subject matter of the impugned law may indicate the appropriate approach to take in characterizing the law as criminal or regulatory.

49 Having examined the legislation at issue in this case, we have no doubt that it is essentially regulatory in nature, and therefore outside the scope of s. 91(27). In order to have an "exemption", there must first be a prohibition in the legislation from which that exemption is derived. Thus, the *Tobacco Products Control Act* […] at issue in *RJR-MacDonald*, *supra*, contained broad prohibitions against the advertising and promotion of tobacco products in Canada. […].

[…]

51 In the legislation at issue in this appeal, on the other hand, no such prohibitions appear…

52 [Section 34] is not ancillary to existing prohibitions found elsewhere in the Act or to exemptions to such prohibitions. It is not itself prohibitory in nature. In fact, the only time the word "prohibition" appears in s. 34(1) is in s. 34(1)(*l*), which provides that the Governor in Council may, at his or her discretion, prohibit the manufacture, import, use or sale of a given substance. Clearly, this is not analogous to the broad general prohibitions found in the statutes cited above.

[…]

54 Moreover, as Professor Hogg notes […]:

> A criminal law ordinarily consists of a prohibition which is to be self-applied by the persons to whom it is addressed. There is not normally any intervention by an administrative agency or official prior to the application of the law. The law is "administered" by law enforcement officials and courts of criminal jurisdiction only in the sense that they can bring to bear the machinery of punishment after the prohibited conduct has occurred.

55 In this case, there is no offence until an administrative agency "intervenes". Sections 34 and 35 do not define an offence at all: which, if any, substances will be placed on the List of Toxic Substances, as well as the norms of conduct regarding these substances, are to be defined on an on-going basis by the Ministers of Health and the Environment. It would be an odd crime whose definition was made entirely dependent on the discretion of the Executive. This further suggests that the Act's true nature is regulatory, not criminal, and that the offences created by s. 113 are regulatory offences, not "true crimes": […]. Our colleague, La Forest J., would hold that the scheme of the impugned act is an effective means of avoiding unnecessarily broad prohibitions and carefully targeting specific toxic substances. The regulatory mechanism allows the schemes to be changed flexibly, as the need arises. Of course, simply because a scheme is effective and flexible does not mean it is *intra vires* the federal Parliament.

[…]

57 Moreover, this process is further complicated by the equivalency provisions in s. 34(6) of the Act. Under this provision, the Governor in Council may exempt a province from the application of regulations made under ss. 34 or 35 if that province already has equivalent regulations in force there. This would be a very unusual provision for a criminal law. Provinces do not have the jurisdiction to enact criminal legislation, nor can the federal government delegate such jurisdiction to them […]. Any environmental legislation enacted by the provinces must, therefore, be of a regulatory nature. Deferring to provincial regulatory schemes on the basis that they are "equivalent" to federal regulations made under s. 34(1) creates a strong presumption that the federal regulations are themselves also of a regulatory, not criminal, nature.

58 The appellant relies on this Court's decision in *RJR-MacDonald*, *supra*, arguing that the statutory regime in this case is analogous to that upheld (on division of powers grounds) in *RJR-MacDonald*. We believe this reliance is, with respect, misplaced. As noted above, the legislation at issue in *RJR-MacDonald* contained broad prohibitions, tempered by certain exemptions. The impugned provisions in this case, on the other hand, involve no such general prohibition. In our view, they can only be characterized as a broad delegation of regulatory authority to the Governor in Council. The aim of these provisions is not to prohibit toxic substances or any aspect of their use, but simply to control the manner in which these substances will be allowed to interact with the environment.

59 *RJR-MacDonald*, may be further distinguished, in our view. The *Tobacco Products Control Act* addressed a narrow field of activity: the advertising and promotion of tobacco products. The impugned provisions here deal with a much broader area of concern: the release of substances into the environment. This Court has unanimously held that the environment is a subject matter of shared jurisdiction, that is, that the Constitution does not assign it exclusively to either the provinces or Parliament: *Oldman River*, *supra*, at p. 63 […]. A decision by the framers of the Constitution not to give one level of government exclusive control over a subject matter should, in our opinion, act as a signal that the two levels of government are meant to operate in tandem with regard to that subject matter. One level should not be allowed to take over the field so as to completely dwarf the presence of the other. This does not mean that no regulation will be permissible, but wholesale regulatory authority of the type envisaged by the Act is, in our view, inconsistent with the shared nature of jurisdiction over the environment. As La Forest J. noted in his dissenting reasons in *Crown Zellerbach*, at p. 455, "environmental pollution alone [i.e. as a subject matter of legislative authority] is itself all-pervasive. It is a by-product of everything we do. In man's relationship with his environment, waste is unavoidable."

60 We agree completely with this statement. Almost everything we do involves "polluting" the environment in some way. The impugned provisions purport to grant regulatory authority over all aspects of any substance whose release into the environment "ha[s] or ... may have an immediate or long-term harmful effect on the environment" (s. 11(*a*)). One wonders just what, if any, role will be left for the provinces in dealing with environmental pollution if the federal government is given such total control over the release of these substances. Moreover, the countless spheres of human activity, both collective and individual, which could potentially fall under the ambit of the Act are apparent. Many of them fall within areas of jurisdiction granted to the provinces under s. 92. Granting Parliament the authority to regulate so completely the release of substances into the environment by determining whether or not they are "toxic" would not only inescapably preclude the possibility of shared environmental jurisdiction; it would also infringe severely on other heads of power assigned to the provinces. […]

61 For all of the above reasons, we are unable to uphold the impugned provisions of the Act under the federal criminal law power. That being said, we wish to add that none of this should be read as foredooming future attempts by Parliament to create an effective national -- or, indeed, international -- strategy for the protection of the environment. We agree with La Forest J. that achieving such a strategy is

a public purpose of extreme importance and one of the major challenges of our time. There are, in this regard, many measures open to Parliament which will not offend the division of powers set out by the Constitution, notably the creation of environmental crimes. Nothing, in our view, prevents Parliament from outlawing certain kinds of behaviour on the basis that they are harmful to the environment. But such legislation must actually seek to outlaw this behaviour, not merely regulate it.

[…]

The judgment of La Forest, L'Heureux-Dubé, Gonthier, Cory and McLachlin JJ. was delivered by

85 LA FOREST J. -- This Court has in recent years been increasingly called upon to consider the interplay between federal and provincial legislative powers as they relate to environmental protection. Whether viewed positively as strategies for maintaining a clean environment, or negatively as measures to combat the evils of pollution, there can be no doubt that these measures relate to a public purpose of superordinate importance, and one in which all levels of government and numerous organs of the international community have become increasingly engaged. In the opening passage of this Court's reasons in what is perhaps the leading case, *Friends of the Oldman River Society v. Canada (Minister of Transport)*, 1992 CanLII 110 (SCC), [1992] 1 SCR 3, at pp. 16-17, the matter is succinctly put this way:

> The protection of the environment has become one of the major challenges of our time. To respond to this challenge, governments and international organizations have been engaged in the creation of a wide variety of legislative schemes and administrative structures.

86 The all-important duty of Parliament and the provincial legislatures to make full use of the legislative powers respectively assigned to them in protecting the environment has inevitably placed upon the courts the burden of progressively defining the extent to which these powers may be used to that end. In performing this task, it is incumbent on the courts to secure the basic balance between the two levels of government envisioned by the Constitution. However, in doing so, they must be mindful that the Constitution must be interpreted in a manner that is fully responsive to emerging realities and to the nature of the subject matter sought to be regulated. Given the pervasive and diffuse nature of the environment, this reality poses particular difficulties in this context.

87 This latest case in which this Court is required to define the nature of legislative powers over the environment is of major significance. The narrow issue raised is the extent to and manner in which the federal Parliament may control the amount of and conditions under which Chlorobiphenyls (PCBs) -- substances well known to pose great dangers to humans and the environment generally -- may enter into the environment. However, the attack on the federal power to secure this end is not really aimed at the specific provisions respecting PCBs. Rather, it puts into question the constitutional validity of its enabling statutory provisions. What is really at stake is whether Part II ("Toxic Substances") of the *Canadian Environmental Protection Act*, R.S.C., 1985, c. 16 (4th Supp.), which empowers the federal Ministers of Health and of the Environment to determine what substances are toxic and to prohibit the introduction of such substances into the environment except in accordance with specified terms and conditions, falls within the constitutional power of Parliament.

[…]

Analysis

Introduction

112 In considering how the question of the constitutional validity of a legislative enactment relating to the environment should be approached, this Court in *Oldman River, supra*, made it clear that the environment is not, as such, a subject matter of legislation under the Constitution Act, 1867. As it was put there, "the Constitution Act, 1867 has not assigned the matter of 'environment' sui generis to either the provinces or Parliament" (p. 63). Rather, it is a diffuse subject that cuts across many different areas of constitutional responsibility, some federal, some provincial (pp. 63-64). Thus Parliament or a provincial legislature can, in advancing the scheme or purpose of a statute, enact provisions minimizing or preventing the detrimental impact that statute may have on the environment, prohibit pollution, and the like. In assessing the constitutional validity of a provision relating to the environment, therefore, what must first be done is to look at the catalogue of legislative powers listed in the Constitution Act, 1867 to see if the provision falls within one or more of the powers assigned to the body (whether Parliament or a provincial legislature) that enacted the legislation (ibid. at p. 65). If the provision in essence, in pith and substance, falls within the parameters of any such power, then it is constitutionally valid.

[…]

The Criminal Law Power

118 Section 91(27) of the Constitution Act, 1867 confers the exclusive power to legislate in relation to criminal law on Parliament. The nature and ambit of this power has recently been the subject of a detailed analytical and historical examination in *RJR-MacDonald, supra*, where it was again described (p. 240), as it has for many years, as being "plenary in nature" (emphasis added). I shall not attempt to repeat the analysis so recently set forth at length by this Court, or attempt to refer extensively to all of the many authorities there cited, but will confine myself to underlining the findings in that case that are most salient to the issues raised here. […]

119 What appears from the analysis in *RJR-MacDonald* is that as early as 1903, the Privy Council, […] had made it clear that the power conferred on Parliament by s. 91(27) is "the criminal law in its widest sense" (emphasis added). […] This approach has been consistently followed ever since and, as *RJR-MacDonald* relates, it has been applied by the courts in a wide variety of settings. Accordingly, it is entirely within the discretion of Parliament to determine what evil it wishes by penal prohibition to suppress and what threatened interest it thereby wishes to safeguard, to adopt the terminology of Rand J. in the *Margarine Reference*, *supra*, at p. 49, cited *infra*.

[…]

121 The *Charter* apart, only one qualification has been attached to Parliament's plenary power over criminal law. The power cannot be employed colourably. Like other legislative powers, it cannot, as Estey J. put it in *Scowby v. Glendinning*, 1986 CanLII 30 (SCC), [1986] 2 SCR 226, at p. 237, "permit Parliament, simply by legislating in the proper form, to colourably invade areas of exclusively provincial legislative competence". To determine whether such an attempt is being made, it is, of course, appropriate to enquire into Parliament's purpose in enacting the legislation. As Estey J. noted in *Scowby*, at p. 237, since the *Margarine Reference*, it has been "accepted that some legitimate public purpose must underlie the prohibition". […]

122 […] [T]he listed purposes by no means exhaust the purposes that may legitimately support valid criminal legislation. […] [T]his is, of course, consistent with the view, most recently reiterated in *RJR-MacDonald*, at pp. 259-61, that criminal law is not frozen in time.

127 What the foregoing underlines is what I referred to at the outset, that the protection of the environment is a major challenge of our time. It is an international problem, one that requires action by governments at all levels. And, as is stated in the preamble to the Act under review, "Canada must be able to fulfil its international obligations in respect of the environment". I am confident that Canada can fulfil its international obligations, in so far as the toxic substances sought to be prohibited from entering into the environment under the Act are concerned, by use of the criminal law power. The purpose of the criminal law is to underline and protect our fundamental values. While many environmental issues could be criminally sanctioned in terms of protection of human life or health, I cannot accept that the criminal law is limited to that because "certain forms and degrees of environmental pollution can directly or indirectly, sooner or later, seriously harm or

endanger human life and human health", as the paper approvingly cited by Gonthier J. in *Ontario v. Canadian Pacific*, *supra*, observes. But the stage at which this may be discovered is not easy to discern, and I agree with that paper that the stewardship of the environment is a fundamental value of our society and that Parliament may use its criminal law power to underline that value. The criminal law must be able to keep pace with and protect our emerging values.

123 During the argument in the present case, however, one sensed, at times, a tendency, even by the appellant and the supporting interveners, to seek justification solely for the purpose of the protection of health specifically identified by Rand J. Now I have no doubt that that purpose obviously will support a considerable measure of environmental legislation, as perhaps also the ground of security. But I entertain no doubt that the protection of a clean environment is a public purpose within Rand J.'s formulation in the *Margarine Reference*, cited *supra*, sufficient to support a criminal prohibition. It is surely an "interest threatened" which Parliament can legitimately "safeguard", or to put it another way, pollution is an "evil" that Parliament can legitimately seek to suppress. Indeed, as I indicated at the outset of these reasons, it is a public purpose of superordinate importance; it constitutes one of the major challenges of our time. It would be surprising indeed if Parliament could not exercise its plenary power over criminal law to protect this interest and to suppress the evils associated with it by appropriate penal prohibitions.

[…]

128 In saying that Parliament may use its criminal law power in the interest of protecting the environment or preventing pollution, there again appears to have been confusion during the argument between the approach to the national concern doctrine and the criminal law power. The national concern doctrine operates by assigning full power to regulate an area to Parliament. Criminal law does not work that way. Rather it seeks by discrete prohibitions to prevent evils falling within a broad purpose, such as, for example, the protection of health. In the criminal law area, reference to such broad policy objectives is simply a means of ensuring that the prohibition is legitimately aimed at some public evil Parliament wishes to suppress and so is not a colourable attempt to deal with a matter falling exclusively within an area of provincial legislative jurisdiction.

129 The legitimate use of the criminal law I have just described in no way constitutes an encroachment on provincial legislative power, though it may affect matters falling within the latter's ambit. […]

130 I conclude that Parliament may validly enact prohibitions under its criminal law power against specific acts for the purpose of preventing pollution or, to put it in other terms, causing the entry into the environment of certain toxic substances. […]

131 Though I shall deal with this issue in more detail once I come to consider the legislation, it is well at this point to recall that the use of the federal criminal law power in no way precludes the provinces from exercising their extensive powers under s. 92 to regulate and control the pollution of the environment either independently or to supplement federal action. The situation is really no different from the situation regarding the protection of health where Parliament has for long exercised extensive control over such matters as food and drugs by prohibitions grounded in the criminal law power. This has not prevented the provinces from extensively regulating and prohibiting many activities relating to health. The two levels of government frequently work together to meet common concerns. […]

[…]

The Provisions Respecting Toxic Substances

133 The respondent, the *mis en cause* and their supporting interveners primarily attack ss. 34 and 35 of the Act as constituting an infringement on provincial regulatory powers conferred by the Constitution. This they do by submitting that the power to regulate a substance is so broad as to encroach upon provincial legislative jurisdiction. That is because of what they call the broad "definition" given to toxic substances under s. 11 […]

134 I cannot agree with this submission. As I see it, the argument focusses too narrowly on a specific provision of the Act and for that matter only on certain aspects of it, and then applies that provision in a manner that I do not think is warranted by a consideration of the provisions of the Act as a whole and in light of its background and purpose. I shall deal with the latter first. […]

135 I turn then to the background and purpose of the provisions under review. Part II does not deal with the protection of the environment generally. It deals simply with the control of toxic substances that may be released into the environment under certain restricted circumstances, and does so through a series of prohibitions to which penal sanctions are attached. […]

[…]

146 [A]s I see it, the broad purpose and effect of Part II is to provide a procedure for assessing whether out of the many substances that may conceivably fall within the ambit of s. 11, some should be added to the List of Toxic Substances in Schedule I and, when an order to this effect is made, whether to prohibit the use of the substance so added in the manner provided in the regulations made under s. 34(1) subject to a penalty. These listed substances, toxic in the ordinary sense, are those whose use in a manner contrary to the regulations the Act ultimately prohibits. This is a limited prohibition applicable to a restricted number of substances. The prohibition is enforced by a penal sanction and is undergirded by a valid criminal objective, and so is valid criminal legislation.

147 This, in my mind, is consistent with the terms of the statute, its purpose, and indeed common sense. It is precisely what one would expect of an environmental statute -- a procedure to weed out from the vast number of substances potentially harmful to the environment or human life those only that pose significant risks of that type of harm. Specific targeting of toxic substances based on individual assessment avoids resort to unnecessarily broad prohibitions and their impact on the exercise of provincial powers. Having regard to the particular nature and requirements of effective environmental protection legislation, I do not share my colleagues' concern that the prohibition originates in a regulation, the breach of which gives rise to criminal sanction. The careful targeting of toxic substances is borne out by practice.

[…]

149 I turn now to a more detailed examination of the provisions of the Act impugned in the present case, i.e. ss. 34 and 35. I mentioned earlier that the testing phase provided for under Part II ends with s. 32. Up to that point, Part II deals with the testing of substances that may be toxic when released into the environment as described in s. 11. The remainder of Part II, beginning with s. 33, however, is no longer addressed at substances that may be toxic in that broad sense. Rather it is more narrowly addressed at substances specifically listed in the List of Toxic Substances in Schedule I of the Act. In particular, s. 34 authorizes the Governor in Council to make regulations setting forth the restrictions imposed on those using or dealing with such substances. Failure to comply with any such restriction constitutes an offence and is punishable on summary conviction by a fine not exceeding three hundred thousand dollars or a term of imprisonment not exceeding six months, or both; or, on indictment, by a fine not exceeding one million dollars or a term of imprisonment not exceeding three years, or both (s. 113(f), (o) and (p)).

150 Without attempting to regurgitate the whole of s. 34, I shall simply give some flavour of the nature of the prohibitions created by the regulations made thereunder. Generally, s. 34 includes regulations providing for or imposing requirements respecting the quantity or concentration of a substance listed in Schedule I that may be released into the environment either alone or in combination with others from any

> source, the places where such substances may be released, the manufacturing or processing activities in the course of which the substance may be released, the manner and conditions of release, and so on. In short, s. 34 precisely defines situations where the use of a substance in the List of Toxic Substances in Schedule I is prohibited, and these prohibitions are made subject to penal consequences. This is similar to the techniques Parliament has employed in providing for and imposing highly detailed requirements and standards in relation to food and drugs, which control their import, sale, manufacturing, labelling, packaging, processing and storing .... These techniques have, in a number of cases including several in this Court, been upheld as valid criminal law […].
>
> 151 What Parliament is doing in s. 34 is making provision for carefully tailoring the prohibited action to specified substances used or dealt with in specific circumstances. This type of tailoring is obviously necessary in defining the scope of a criminal prohibition, and is, of course, within Parliament's power. As Laskin C.J. noted in *Morgentaler v. The Queen*, 1975 CanLII 8 (SCC), [1976] 1 SCR 616, at p. 627: "I need cite no authority for the proposition that Parliament may determine what is not criminal as well as what is". […].
>
> 152 As Stevenson J. notes [in *R. v. Furtney*, 1991 CanLII 30 (SCC), [1991] 3 SCR 89], this kind of legislation does not constitute an invasion of provincial regulatory power; […]. This is true as well in the case of detailed legislation such as that in question here […]. As noted earlier, we are dealing with prohibitions accompanied by penal sanctions, so that we are really not concerned with whether these may incidentally affect property and civil rights but whether the prohibitions are directed at a public evil. […]
>
> 153 In truth, there is a broad area of concurrency between federal and provincial powers in areas subjected to criminal prohibitions, and the courts have been alert to the need to permit adequate breathing room for the exercise of jurisdiction by both levels of government. […] This type of approach is essential in dealing with amorphous subjects like health and the environment. […]
>
> 154 In *Crown Zellerbach*, I expressed concern with the possibility of allocating legislative power respecting environmental pollution exclusively to Parliament. I would be equally concerned with an interpretation of the Constitution that effectively allocated to the provinces, under general powers such as property and civil rights, control over the environment in a manner that prevented Parliament from exercising the leadership role expected of it by the international community and its role in protecting the basic values of Canadians regarding the environment through the instrumentality of the criminal law power. Great sensitivity is required in this area since, as Professor Lederman has rightly observed, environmental pollution "is no limited subject or theme, [it] is a sweeping subject or theme virtually all-pervasive in its legislative implications" […].
>
> 155 Turning then to s. 35, I mentioned that it is ancillary to s. 34. It deals with emergency situations. The provision, it seems to me, indicates even more clearly a criminal purpose, and throws further light on the intention of s. 34 and of the Act generally. It can only be brought into play when the Ministers believe a substance is not specified in the List in Schedule I or is listed but is not subjected to control under s. 34. In such a case, they may make an interim order in respect of the substance if they believe "immediate action is required to deal with a significant danger to the environment or to human life or health".
>
> 156 In sum, then, I am of the view that Part II of the Act, properly construed, simply provides a means to assess substances with a view to determining whether the substances are sufficiently toxic to be added to Schedule I of the Act (which contains a list of dangerous substances carried over from pre-existing legislation), and provides by regulations under s. 34 the terms and conditions under which they can be used, with provisions under s. 35 for by-passing the ordinary provisions for testing and regulation under Part II in cases where immediate action is required.
>
> […]
>
> 160 I conclude, therefore, that the Interim Order is also valid under s. 91(27) of the Constitution Act, 1867.
>
> […]

Jean Leclair writes approvingly of the decision in *Hydro-Québec*, arguing that federal jurisdiction over the environment is important to the creation of Canadian national identity: see "The Supreme Court, the Environment, and the Construction of National Identity" 1998 4 Rev Const Stud 372. For a much more critical treatment of the decision, see David M Beatty, "Polluting the Law to Protect the Environment" (1998) 9:2 Const Forum Const 55. Note that, in the course of his majority reasons, Justice La Forest pauses to distinguish the justification of an exercise of federal legislative authority pursuant to the criminal law power from the invocation of the national concern doctrine, which is part of the federal power over peace, order, and good government (POGG). What is the difference in how these two bases for Parliament's authority operate?

The vast scope of the federal criminal law power is clear from the foregoing cases. This is not to say that the Court has invariably accepted federal assertions that legislation was properly enacted pursuant to this power. See, for example, *Labatt Breweries of Canada Ltd. v. Attorney General of Canada*, 1979 CanLII 190 (SCC), [1980] 1 SCR 914 (in which the Court found that federal regulations governing the marketing of "light beer" were not valid exercises of the criminal law power) and *R. v. Boggs*, 1981 CanLII 39 (SCC), [1981] 1 SCR 49 (invalidating federal prohibitions on driving with a suspended or cancelled licence, even when the suspension involves purely provincial issues like failure to pay insurance premiums or discharge civil judgments). However, the weight of the caselaw demonstrates the notable breadth of the criminal law power: the formal elements of the definition are approached liberally and the valid criminal law purposes are broad and permissively applied.

In more recent decisions of the Supreme Court of Canada, however, some debate has emerged within the Court as to whether a more circumscribed approach to the purpose element would be appropriate, given concerns about the power's capacity to intervene into important areas of provincial jurisdiction.

One can see this debate at work in the following case, the *Reference re Assisted Human Reproduction Act*, 2010 SCC 61, which dealt with the constitutionality of federal legislation governing assisted human reproductive technologies. The two principal sets of readings, each attracting the agreement of four members of the Court, take different views of how permissively or exactingly the exercise of s 91(27) should be reviewed. Chief Justice McLachlin adopted an expansive position to the purpose element that led to her upholding the legislation, while Justices LeBel and Deschamps assumed a stricter posture that would have had them invalidate significant parts of the scheme. Justice Cromwell's deciding vote endorsed neither approach entirely, upholding certain of the provisions, but striking down many.

As you read this decision pay particular attention to what each of the two principal judgments demands of Parliament by way of an evidentiary or reasoned foundation for the exercise of the criminal law power. Recall, also, Justice Rand's description, in the *Margarine Reference*, of a criminal law public purpose being directed at "some evil or injurious or undesirable effect upon the public." What weight does each opinion lay on this language?

2.4 *Reference re Assisted Human Reproduction Act*

The Act of Parliament at issue in this case involved the prohibition and regulation of various activities related to human reproduction. To gain a sense of the legislation, consider the principles set out in s 2 of the Act:

> **2.** [Declaration] The Parliament of Canada recognizes and declares that

(*a*) the health and well-being of children born through the application of assisted human reproductive technologies must be given priority in all decisions respecting their use;

(*b*) the benefits of assisted human reproductive technologies and related research for individuals, for families and for society in general can be most effectively secured by taking appropriate measures for the protection and promotion of human health, safety, dignity and rights in the use of these technologies and in related research;

(*c*) while all persons are affected by these technologies, women more than men are directly and significantly affected by their application and the health and well-being of women must be protected in the application of these technologies;

(*d*) the principle of free and informed consent must be promoted and applied as a fundamental condition of the use of human reproductive technologies;

(*e*) persons who seek to undergo assisted reproduction procedures must not be discriminated against, including on the basis of their sexual orientation or marital status;

(*f*) trade in the reproductive capabilities of women and men and the exploitation of children, women and men for commercial ends raise health and ethical concerns that justify their prohibition; and

(*g*) human individuality and diversity, and the integrity of the human genome, must be preserved and protected.

Important to the judgment below is that the legislation included both a set of "prohibited activities" and a range of "controlled activities." The scheme is summarized at paragraphs 11-13 of Chief Justice McLachlin's judgment, below. As you will read, the Court unanimously held that the *absolute* prohibitions were valid exercises of the federal criminal law power but differed on the rest.

***Reference re Assisted Human Reproduction Act*, 2010 SCC 61**

The reasons of McLachlin C.J. and Binnie, Fish and Charron JJ. were delivered by

THE CHIEF JUSTICE —

I. Introduction

[1] Every generation faces unique moral issues. And historically, every generation has turned to the criminal law to address them. Among the most important moral issues faced by this generation are questions arising from technologically assisted reproduction — the artificial creation of human life. Parliament has passed a law dealing with these issues under its criminal law power. The question on appeal is whether this law represents a proper exercise of Parliament's criminal law power. I conclude that it does.

[2] Since time immemorial, human beings have been conceived naturally. Human beings have sought to enhance this process, to be sure; fertility rites, prayers and various medical and quasi-medical prescriptives to enhance fertility are part of human history. Human beings have also sought to constrain the process, through rules governing sexual conduct and marriage. These rules are deeply embedded in morality, which speaks to our conception of how human beings should behave for their own good and the greater good of society. Through morality, often abetted by the criminal law, society has traditionally found collective answers to reproductive issues. Yet, until recently, the fundamental processes by which new human beings were conceived remained largely beyond technological manipulation.

[3] This changed in the latter part of the 20th century, with the development of technology that allowed ova and sperm to be captured and united to form a zygote outside the human body. Refining the process even further, scientists found ways to disassemble and recombine genetic material within the ovum. Implantation techniques allowed couples and surrogate mothers to carry pregnancies created in a petri dish to term. At the far end of the spectrum lay the possibility of combining animal and human forms or reproducing an individual through cloning.

[4] These new techniques raise important moral, religious and juridical questions. The new questions do not fit neatly within the traditional legal frameworks that have developed in a world of natural conception. These challenges have opened a dialogue between ethicists, religious leaders and the public. Different people have taken different moral views on the issues. Fears have been expressed as to the possibility that some may abuse the new techniques in ways that might damage individuals — both existing and yet to be conceived — and ultimately society. Traditional criminal law imposed no obvious restraints and offered no clear answers to these questions.

[5] It was against this background that Parliament decided to act. It did not act precipitously. Rather, it established the Royal Commission on New Reproductive Technologies (the "Baird Commission") to study the matter and make recommendations. […]

[6] Between 1993 and 1995, the federal government consulted with the provinces, the territories and independent groups, including researchers, men and women dealing with infertility problems, persons with disabilities, religious denominations and physicians. It also asked a group of experts in philosophy, sociology, anthropology, medicine and law for their advice on the issue of human embryo research. The result of these consultations was the ultimate passage of the Assisted Human Reproduction Act, S.C. 2004, c. 2 (also referred to as the "Act"), enacted in March 2004, as an exercise of the federal criminal law power under s. 91(27) of the Constitution Act, 1867.

[…]

[10] My colleagues LeBel and Deschamps JJ. conclude that the impugned sections of the Act, in pith and substance, constitute an attempt to regulate hospitals and medical research, and thus are *ultra vires* the federal Parliament. I respectfully disagree. The prohibitions in ss. 5 to 7 are conceded to be valid criminal legislation. In my view, the remaining prohibitions in ss. 8 to 13 are also valid criminal law. Although some of these prohibitions impact on the regulation of medical research and practice, all matters within provincial jurisdiction, the impact is incidental to the legislation's dominant criminal law purpose and limited to those ends. Finally, while not criminal law in pith and substance, the administrative, organizational, and enforcement provisions in ss. 14 to 68 are integrated into this prohibition regime, and hence they are valid under the ancillary powers doctrine. I would therefore allow the appeal.

II. The Legislation

[11] The prohibitions are of two types. Sections 5 to 9 are cast in absolute terms. In those sections, the Act prohibits:

(a) human cloning (s. 5(1)(*a*)) and the use, manipulation and transplantation of reproductive material of a non-human life form, chimera or hybrid, in order to create a human being (s. 5(1)(*g*) to (*j*));

(b) the creation of an *in vitro* embryo for any purpose other than creating a human being or improving or providing instruction in assisted reproduction procedures (s. 5(1)(*b*));

(c) the creation of an embryo from a cell taken from an embryo or foetus (s. 5(1)(*c*)) or the maintenance of such an embryo outside of the body after the fourteenth day of its development (s. 5(1)(*d*));

(d) the determination of an embryo's sex for non-medical reasons (s. 5(1)(*e*));

(e) the alteration of the genome of an *in vitro* embryo or cell of a human being such that the alteration is capable of being transmitted to descendants (s. 5(1)(*f*));

(f) the commercialization of the reproductive functions of women and men, particularly the payment of consideration to surrogate mothers (s. 6) and the purchase and sale of *in vitro* embryos or the purchase of human reproductive material (s. 7);

(g) any use of *in vitro* embryos unless the donor has given written consent, as well as the use and posthumous removal of human reproductive material unless the donor has given written consent, when the purpose of the use or removal is the creation of an embryo (s. 8); and

(h) the removal or use of sperm or ova from a donor under 18 years of age, except for the purpose of preserving the sperm or ova or for the purpose of creating a human being where it is reasonable to believe that the human being will be raised by the donor (s. 9).

[12] Other prohibitions, referred to in the Act as "controlled activities", are found in ss. 10 to 13. These sections prohibit various activities, unless they are carried out in accordance with regulations made under the Act, under licence, and in licensed premises. The activities in question involve:

(a) altering, manipulating, treating, obtaining, storing, transferring, destroying, importing and exporting human reproductive material or in vitro embryos for certain purposes (s. 10);

(b) combining any part of the human genome with any part of the genome of another species (s. 11);

(c) reimbursing a donor for an expenditure incurred in the course of donating sperm or ova and a surrogate mother for an expenditure incurred by her in relation to her surrogacy (s. 12);

(d) undertaking a controlled activity in an unlicensed facility (s. 13).

[13] The prohibition regime is followed by provisions that do not in themselves purport to create criminal offences, but are directed to administering and enforcing the primary criminal law prohibitions. These include a mechanism for gathering and storing information related to assisted reproduction procedures, the establishment of an administrative agency (the Assisted Human Reproduction Agency of Canada ("Agency")), the power of the Governor in Council to make regulations respecting the Act (s. 65), and the power of the Governor in Council to exempt the operation of certain provisions if there are equivalent provincial laws in force that cover the field (s. 68).

[…]

IV. Analysis

The Validity of the Legislative Scheme as a Whole

[16] Since the Attorney General of Quebec is challenging individual provisions of the federal scheme, this Court must examine the whole scheme and the impugned provisions separately (*General Motors of Canada Ltd. v. City National Leasing*, 1989 CanLII 133 (SCC), [1989] 1 SCR 641, at p. 666). Ordinarily, this Court would begin by examining the impugned provisions in order to determine if and to what extent they intrude on the provincial sphere of competence […]

[17] However, in the case at bar it is necessary to examine the whole scheme first before we can make sense of the challenged provisions. […] In this case, the Attorney General of Quebec is challenging the bulk of the *Assisted Human Reproduction Act*. While it concedes that ss. 5 to 7 of the Act are valid, it challenges almost all the remaining operative provisions. Under these circumstances, it is impossible to meaningfully consider the provisions at issue without first considering the nature of the whole scheme.

[18] Therefore, the first question is whether the matter of the statutory scheme, viewed as a whole, is a valid exercise of federal power. The second question is whether its individual provisions are also valid. If the scheme as a whole is valid, but some of its provisions invalid, the invalid provisions are severed, leaving the remaining provisions intact. […]

(1) Characterizing the Legislative Scheme

[…]

[21] The issue is as follows: Is the *Assisted Human Reproduction Act* properly characterized as legislation to curtail practices that may contravene morality, create public health evils or put the security of individuals at risk, as the Attorney General of Canada contends? Or should it be characterized as legislation to promote positive medical practices associated with assisted reproduction, as the Attorney General of Quebec contends? In pith and substance, what is this legislation about? Controlling and curtailing the negative impacts associated with artificial human reproduction? Or establishing salutary rules to govern the practice of medicine and research in this emerging field?

[22] To determine which characterization is correct, one must consider the purpose and effect of the legislative scheme. […]

[24] The text of the Act suggests that its dominant purpose is to prohibit inappropriate practices, rather than to promote beneficial ones. It is true that the Act establishes a scheme to control assisted reproduction on a national level, and this initiative necessarily touches on provincial jurisdiction over medical research and practice. However, the dominant thrust of the Act is prohibitory, and the aspects that concern the provision of health services do not rise to the level of pith and substance. As s. 2 of the Act explains, the purpose of the Act is to *safeguard against* practices that may offend fundamental values and rights and harm human health, safety and dignity. The emphasis is on *preventing* practices that offend these values and produce this harm.

[25] The Act accomplishes its purpose of prohibiting reprehensible conduct by imposing sanctions. The Act is essentially a series of prohibitions, followed by a set of subsidiary provisions for their administration.

[26] The Attorney General of Quebec concedes that the prohibitions in ss. 5 to 7 of the Act are valid criminal law. In my view, the prohibitions in ss. 8 to 13 advance the same criminal law purpose. Sections 8 to 13, viewed in context, are not aimed at promoting the beneficial aspects of assisted reproduction. While they distinguish the beneficial from the reprehensible, it is only for the purpose of carving out the latter. In this sense, the prohibitions in ss. 5 to 13 all advance a common purpose, but do so in a manner tailored to the conduct that they address. Conduct that is always reprehensible is prohibited absolutely (ss. 5 to 9). Conduct that is reprehensible in particular situations is prohibited selectively; thus, ss. 10 to 13 prohibit only the harmful aspects of the conduct at issue. In other words, they prohibit conduct, subject to exceptions for practices that Parliament does not consider to be harmful. These prohibitions do not prevent the provinces from enacting legislation promoting beneficial practices in the field of assisted reproduction. Subject to the Act's prohibitions, the provinces are free to regulate these practices. The scheme of the Act is to carve out from the broader field of assisted reproduction conduct that Parliament considers criminal. These prohibitions give the Act its content and define its purpose.

[27] In support of the Attorney General of Quebec's position that the Act should be characterized as health legislation, LeBel and Deschamps JJ. argue that the Act has a two-fold purpose: (1) the prohibition of reprehensible practices; and (2) the promotion of beneficial practices. Criminal law, they argue, is concerned with prohibiting undesirable conduct, and cannot extend to promoting the beneficial aspects

of assisted reproduction. In their view, Parliament's desire to promote beneficial practices proves that the Act is intended to create a national scheme for the regulation of assisted reproductive technologies.

[…]

[31] Turning to the effects of the Act, this legislation clearly has an impact on the regulation of medical research and practice, and hospital administration. Researchers, practitioners and hospitals will be subject to both the Act and the regulations it contemplates.

[32] However, the doctrine of pith and substance permits either level of government to enact laws that have "substantial impact on matters outside its jurisdiction": P. W. Hogg, *Constitutional Law of Canada* (5th ed. Supp.), at p. 15-9. The issue in such cases is to determine the *dominant* effect of the law. Viewed as a whole, the dominant effect of the Act is to prohibit a number of practices which Parliament considers immoral and/or which it considers a risk to health and security, not to promote the positive aspects of assisted reproduction. The dominant effect of the prohibitory and administrative provisions is to create a regime that will prevent or punish practices that may offend moral values, give rise to serious public health problems, and threaten the security of donors, donees, and persons not yet born.

[33] In sum, while the Act will have beneficial effects — one hopes all criminal laws will have beneficial effects — and while some of its effects may impact on provincial matters, neither its dominant purpose nor its dominant effect is to set up a regime to regulate and promote the benefits of artificial reproduction in hospitals and laboratories.

[34] I conclude that the pith and substance of the Act is properly characterized as the prohibition of negative practices associated with assisted reproduction.

(2) Does the Matter of the Act Come Within Section 91(27)?

[35] Having characterized the matter to which the Act relates, the next question is whether it comes within the scope of the federal criminal law power under s. 91(27) of the *Constitution Act, 1867*. In order to answer this question, we must consider whether the matter satisfies the three requirements of valid criminal law: (1) a prohibition; (2) backed by a penalty; (3) with a criminal law purpose: *Reference re Firearms Act (Can.)*, 2000 SCC 31, [2000] 1 SCR 783 ("*Firearms Reference*"), at para. 27.

[36] As already discussed, the Act, properly characterized, imposes prohibitions backed by penalties, thereby fulfilling the first two requirements of a valid criminal law. Admittedly, some of the provisions permit exceptions. However, the criminal law does not require absolute prohibitions […] To be sure, a large portion of the scheme is regulatory. However, it is open to Parliament to create regulatory schemes under the criminal law power, provided they further the law's criminal law purpose. The complexity of modern problems often requires a nuanced scheme consisting of a mixture of absolute prohibitions, selective prohibitions based on regulations, and supporting administrative provisions. Such schemes permit flexibility, vital in a field of evolving technologies, and they have repeatedly been upheld as valid criminal law […].

[37] My colleagues LeBel and Deschamps JJ. take issue with the provisions of the Act that prohibit activities unless conducted in accordance with federal regulations. As noted above, they argue that these provisions are designed to promote beneficial practices, while I view them as carve-outs from prohibition. They further argue that since the doctrine of paramountcy allows federal legislation to prevail over provincial legislation in the case of conflicts, finding the regulatory provisions *intra vires* would effectively oust provincial power over health.

[38] In my view, the requirement that a criminal law contain a prohibition prevents Parliament from undermining the provincial competence in health. The federal criminal law power may only be used to prohibit conduct, and may not be employed to promote beneficial medical practices. Federal laws (such as the one in this case) may involve large carve-outs for practices that Parliament does not wish to prohibit. However, the use of a carve-out only means that a particular practice is *not* prohibited, not that the practice is positively *allowed* by the federal law. This has important implications for the doctrine of federal paramountcy. If a province enacted stricter regulations than the federal government, there would be no conflict in operation between the two sets of provisions since it would be possible to comply with both. Further, there would be no frustrations of the federal legislative purpose since federal criminal laws are only intended to prohibit practices. A stricter provincial scheme would complement the federal criminal law. […] There may be a conflict between a criminal law and a *less* strict provincial scheme. However, in such a case, Parliament's stricter scheme would be acting as a prohibition. In this way, the prohibition requirement for criminal laws acts as a major limitation on the effect of s. 91(27).

(3) Does the Act Serve a Valid Criminal Law Purpose?

[39] Having determined that the Act imposes prohibitions backed by penalties, it remains to be determined whether it does so in the service of a criminal law objective. The Attorney General of Canada asserts that the Act serves broad criminal law purposes centred around morality, health, and security. The Attorney General of Quebec suggests that the real purpose of the law is not criminal, but regulatory — namely, to establish a system to regulate assisted reproduction. In turn, it contends that such a scheme is provincial turf.

[…]

[43] [O]n the one hand, the jurisprudence properly recognizes that confining the criminal law power to precise categories is impossible. The criminal law must be able to respond to new and emerging matters of public concern that go to the health and security of Canadians and the fundamental values that underpin Canadian society. A crabbed, categorical approach to valid criminal law purposes is thus inappropriate. On the other hand, a limitless definition, combined with the doctrine of paramountcy, has the potential to upset the constitutional balance of federal-provincial powers. Both extremes must be rejected. To constitute a valid criminal law purpose, a law's purpose must address a public concern relating to peace, order, security, morality, health, or some similar purpose. At the same time, extensions that have the potential to undermine the constitutional division of powers should be rejected.

[44] Whether a federal law falls within Parliament's criminal law power under s. 91(27) of the *Constitution Act, 1867*, is a question of *which level* of government has jurisdiction to enact this law. This question relates to the powers of one level of government *vis-à-vis* the other, and it is resolved by determining the law's pith and substance. The degree to which the Act may impact on individual liberties is not relevant to this inquiry. […]

[45] It follows that this case does not require us to balance the impact of the Act on liberty against the importance of Parliament's legislative objective. The only question is whether the Act comes within the scope of s. 91(27). In this respect, I differ from my colleagues LeBel and Deschamps JJ., who argue that there is insufficient societal consensus to justify the restrictions that the Act imposes on individual liberties. With respect, the language of justification has no place in the pith and substance analysis.

[46] Criminal law objectives, such as peace, order, security, morality, and health do not occupy separate watertight compartments. The question in each case is whether the matter of the legislation at issue relates to one or more of the recognized criminal law purposes, or a similar objective. Criminal laws will often engage more than one objective, and the objectives may overlap with each other.

[…]

[48] I turn now to consider the scope of the criminal law purposes that Parliament has identified. I conclude that upholding morality is the principal criminal law object of the Act. What is at stake is not merely two competing health schemes, but Parliament's power to enact general norms for the whole of Canada to meet the pressing moral concerns raised by the techniques of assisted reproduction. The objects of prohibiting public health evils and promoting security play supporting roles with respect to some provisions. Taken together, these objects confirm that the Act serves valid criminal law purposes. In reaching this conclusion, moreover, I do not intend to broaden the scope of the criminal law power, but rather apply this Court's jurisprudence.

(a) Morality

[…]

[50] Criminal law may target conduct that Parliament reasonably apprehends as a threat to our central moral precepts: *Malmo-Levine*, at para. 78. Moral disapprobation is itself sufficient to ground criminal law when it addresses issues that are integral to society. Different people hold different views about issues such as the artificial creation of human life. However, under federalism analysis, the focus is on the importance of the moral issue, not whether there is societal consensus on how it should be resolved. Parliament need only have a reasonable basis to expect that its legislation will address a moral concern of fundamental importance, even if hard evidence is unavailable on some points because "the jury is still out": *Malmo-Levine*, at para. 78. Whether the law violates the Canadian Charter of Rights and Freedoms guarantees of individual liberty is another issue.

[…]

(b) Health

[52] Health is a jurisdiction shared by both the provinces and the federal government. In order to preserve the balance of powers, Parliament's ability to pass criminal laws on the basis of health must be circumscribed. To this end, criminal laws for the protection of health must address a "legitimate public health evil": *RJR-MacDonald*, at para. 32; see also *Schneider v. The Queen*, 1982 CanLII 26 (SCC), [1982] 2 SCR 112, at p. 142.

[53] It has proven difficult to articulate a precise definition of a legitimate public health evil. It has been held that the federal criminal law power encompasses the regulation or prohibition of threats as diverse as tobacco (*RJR-MacDonald*); dangerous and adulterated food and drug products (*Wetmore*); illicit drugs (*Malmo-Levine*); gun control (*Firearms Reference*); and environmental degradation (*Hydro-Québec*).

[54] Behind the diversity in the cases that have upheld criminal laws on the basis of public health evils lie three constant features. In each of these cases, the criminal law was grounded in (1) human conduct (2) that has an injurious or undesirable effect (3) on the health of members of the public.

[55] Human conduct causing harm is the fundamental stuff of the criminal law. The element of harmful human conduct transforms a public health problem, like cancer, into a public health evil, like tobacco. […]

[56] No constitutional threshold level of harm, as such, constrains Parliament's ability to target conduct causing these evils. […] This said, the need to establish a reasonable apprehension of harm means that conduct with little or no threat of harm is unlikely to qualify as a "public health evil": *Malmo-Levine*, at para. 212, *per* Arbour J., dissenting, but not on this point.

[57] […] [P]rovided it is not a colourable intrusion upon provincial jurisdiction (i.e. one not supported by a valid criminal law purpose), Parliament is entitled to use the criminal law power to safeguard the public from conduct that may have an injurious or undesirable effect on the health of members of the public, notwithstanding the provinces' general right to regulate the medical profession. Health is subject to overlapping federal and provincial jurisdiction, and the provinces' power to legislate in this field does not exclude Parliament's authority to target conduct that constitutes a public health evil: *RJR-MacDonald*, at para. 32.

[…]

[64] I conclude that the legislative scheme is not directed toward the promotion of positive health measures, but rather addresses legitimate criminal law objects. As discussed above, the other two elements of criminal law, prohibition and penalty, are established on the face of the Act. I therefore conclude that the *Assisted Human Reproduction Act*, viewed as a whole, is valid criminal legislation.

[65] It may be appropriate at this point to address the arguments relied on by LeBel and Deschamps JJ. in support of their view that the criminal law must be circumscribed to prevent trenching on provincial powers to regulate health.

[Chief Justice McLachlin responds to various of LeBel and Deschamps JJ's arguments, including by making the following comments on the role of the courts in reviewing the use of the criminal law power:]

[76] As I explained earlier, I do not share the view that the Act can be characterized as legislation in relation to the positive aspects of assisted reproduction. However, my colleagues' argument on this point raises a more fundamental issue. Their reasoning, with respect, substitutes a judicial view of what is good and what is bad for the wisdom of Parliament. Similar arguments have been rejected in other contexts. In *Malmo-Levine*, for example, it was argued that use of marijuana benefits many Canadians and not just those in medical need. My colleagues break new ground in enlarging the judiciary's role in assessing valid criminal law objectives. It is ground on which I respectfully decline to tread.

[…]

Do the Prohibitions in Sections 8 to 13 of the Act Constitute Valid Criminal Law?

[78] The federalism analysis does not end merely because it has been determined that a law, viewed as a whole, is valid criminal legislation. Even if a law is in pith and substance criminal legislation, it may nevertheless contain provisions which are neither valid criminal prohibitions, nor ancillary to valid criminal prohibitions. An invalid legislative provision is not rendered valid merely because it is included in a legislative scheme that, viewed globally, is valid: General Motors. In each case, the question is whether the provision, considered in the context of the larger scheme of the Act, is valid criminal legislation, in terms of prohibition, penalty and criminal law purpose.

[Chief Justice McLachlin then analyzed each of these provisions, as well as the administrative provisions of the Act, concluding as follows:

[156] I conclude that the impugned sections of the Act are valid. The prohibitions in ss. 8 to 13 fall within the federal criminal law power under s. 91(27) of the *Constitution Act, 1867*. The remaining sections are ancillary to this criminal law scheme.

English version of the reasons of LeBel, Deschamps, Abella and Rothstein JJ. delivered by

[157] LEBEL AND DESCHAMPS JJ. — In 2001, Health Canada estimated that every 100th baby in the industrialized world was being conceived through the application of some kind of assisted human reproduction technology (*Proposals for Legislation Governing Assisted Human Reproduction: An Overview* (May 2001)). The popularity of assisted human reproduction was bound to increase, as it corresponded to a need. The same department reported in 2009 that one in eight Canadian couples experienced problems related to infertility.

This appeal does not concern the appropriateness or wisdom of the decision to regulate assisted human reproduction, or even the validity of the *Assisted Human Reproduction Act*, S.C. 2004, c. 2 ("*AHR Act*"), as a whole. Rather, the dispute relates to the connection between certain provisions of the *AHR Act* and the federal criminal law power. The Attorney General of Canada is appealing as of right from an opinion of the Quebec Court of Appeal on a reference under the *Court of Appeal Reference Act*, R.S.Q., c. R-23. The following constitutional question was stated:

> Do ss. 8 to 19, 40 to 53, 60, 61 and 68 of the *Assisted Human Reproduction Act*, S.C. 2004, c. 2, exceed, in whole or in part, the legislative authority of the Parliament of Canada under the *Constitution Act, 1867*?

[158] For the reasons that follow, we would answer this question in the affirmative, except to the extent that the offences provided for in ss. 60 and 61 relate to provisions that are not in dispute. The provisions of the *AHR Act* concerning controlled activities, namely those involving assistance for human reproduction and related research activities, do not fall under the criminal law power, but belong to the jurisdiction of the provinces over hospitals, civil rights and local matters. We would therefore dismiss the appeal.

VII. Analysis of the Impugned Provisions

[…]

A. *Pith and Substance of the Impugned Provisions*

[…]

Purpose of the Provisions

[202] The words of the statute itself can of course be of assistance in the identification of the purpose of impugned provisions. However, the context of the enactment of the statute often reveals as much as, if not more than, the words used. […] We must therefore go back to the Baird Commission's studies and the extensive work that followed, as well as to the bills that preceded the enactment of the *AHR Act*. […]

[206] It is clear that the Baird Commission wanted certain activities to be denounced and prohibited because, in its view, there was a consensus that they were reprehensible. But the Commission also wanted assisted human reproduction and related research activities to be regulated for the purpose of establishing uniform standards that would apply across Canada. Thus, it can be seen that the distinction drawn in the *AHR Act* between prohibited activities and controlled activities corresponds to the two distinct categories of activities for which the Baird Commission recommended two distinct approaches with different purposes.

[213] […] [W]hile it is true that certain groups in Canadian society are opposed to assisted human reproductive technologies and fundamentally challenge their legitimacy, the evidence shows that assisted human reproduction is usually regarded as a form of scientific progress that is of great value to individuals dealing with infertility problems. The same attitudes are adopted with respect to research into reproductive technologies. For the purposes of this appeal, there is no need to summarize the evidence on every field of research into new reproductive technologies. Suffice it to observe that no one has denounced research into assisted human reproduction on the basis that it is reprehensible. Despite the agreement that technologies related to assisted human reproduction need to be regulated, it is clear from the evidence that research into such technologies is considered to be not only desirable, but necessary. […]

[…]

[217] We therefore cannot agree with the Attorney General of Canada that the impugned provisions concerning the controlled activities have the same purpose as the unchallenged provisions concerning the prohibited activities. Parliament responded to what was presented to it as a consensus that some of the prohibited activities are reprehensible. […] It showed no such intention with respect to the activities that are not prohibited completely. As can be seen from the legislative history, the technologies and activities included among the controlled activities are very different in nature from the activities that are prohibited completely. These are technologies and activities to which professionals working in the field commonly have recourse. Parliament did not indicate that it intended to prohibit or even limit them. The purpose of the impugned provisions is instead to set up a national scheme to regulate the activities in question. […]

Effect of the Provisions

[…]

[226] We concluded […] that the purpose of the impugned provisions was to establish mandatory national standards for assisted human reproduction. A review of the practical consequences of these provisions shows that they have a significant impact on the practice of medicine. We therefore cannot agree with the Attorney General of Canada that the impugned provisions have nothing to do with the quality of services or the management of health-care institutions.

[227] Rather, the purpose and the effects of the provisions in question relate to the regulation of a specific type of health services provided in health-care institutions by health-care professionals to individuals who for pathological or physiological reasons need help to reproduce. Their pith and substance must be characterized as the regulation of assisted human reproduction as a health service. It would of course have been possible to say that the pith and substance of the impugned provisions relates to the regulation of research and practice associated with assisted human reproduction, but in our opinion, the effects of the provisions make a more precise characterization necessary. This approach is more consistent with the principles discussed above according to which the pith and substance should be identified as precisely as possible in light of the need to connect it with legislative powers (see para. 190). At the next step in the constitutional analysis, we must in fact establish that connection by identifying the head of power with which the impugned provisions — viewed from the perspective of their pith and substance — are connected.

B. *Connecting the Pith and Substance of the Provisions With Heads of Power*

[…]

[232] [In the *Margarine Reference*,] Rand J. stressed that a substantive component was needed to justify the exercise of the federal criminal law power. However, the most frequently quoted passage from his opinion does little to clarify the content of this substantive component:

> Is the prohibition . . . enacted with a view to a public purpose which can support it as being in relation to criminal law? Public peace, order, security, health, morality: these are the ordinary though not exclusive ends served by that law . . . . [p. 50]

Health, which Rand J. mentioned, cannot always justify action by Parliament in relation to the criminal law. This passage must therefore also be considered in the context of Rand J.'s definition of the criminal law. […]

> A crime is an act which the law, with appropriate penal sanctions, forbids; but as prohibitions are not enacted in a vacuum, we can properly look for some evil or injurious or undesirable effect upon the public against which the law is directed. That effect may be in relation to social, economic or political interests; and the legislature has had in mind to suppress the evil or to safeguard the interest threatened.

[Emphasis added; p. 49.]

In our view, therefore, it is not enough to identify a public purpose that would have justified Parliament's action. […] Where its action is grounded in the criminal law, the public purpose must involve suppressing an evil or safeguarding a threatened interest.

[233] This view of the constituent elements of the federal criminal law power, namely that it has two components, one substantive and the other formal, continues to be valid today and was applied in, *inter alia*, the *Reference re Firearms Act* (para. 27). Three criteria have to be met to connect a law or a provision with this federal head of power, namely that it

1 - suppress an evil,

2 - establish a prohibition, and

3 - accompany that prohibition with a penalty.

[234] The formal component — establishing a prohibition and accompanying it with a penalty — supports a finding that a regulatory scheme, even one that takes the form of exemptions from a prohibitory scheme, falls within the field of criminal law. However, the substantive component, the justifiable criminal law purpose — the prohibition of a real or apprehended evil, and the concomitant protection of legitimate societal interests — must also be present. The substantive criterion assumes particular importance because of the liberal interpretation given to the formal component.

[235] These components permit the federal government to deal with and make laws with regard to new realities, such as pollution, and genetic manipulations that are considered undesirable. Thus, Parliament retains flexibility in making decisions to prohibit conduct it considers reprehensible and to prevent the undesirable effects of such conduct.

[236] Rand J.'s reference to an evil to be suppressed or a threatened interest to be safeguarded necessarily implied that the evil or threat must be real. In the context of the *Charter*, the recognized threshold is that of the reasoned apprehension of harm. The reasoned apprehension of harm, which was accepted as a criterion in *R. v. Butler*, 1992 CanLII 124 (SCC), [1992] 1 SCR 452, and in *R. v. Malmo-Levine*, 2003 SCC 74, [2003] 3 SCR 571, at para. 78, must be real and must relate to conduct or facts that can be identified and established. Although the instant case does not involve the application of the *Charter*, referring to a threshold illustrates what form a substantive component might take and helps give concrete form to the substantive component of the criminal law. […]

[237] It must be possible to describe the risk of harm precisely enough that a connection can be established between the apprehended harm and the evil in question. […]

[238] The requirement of a concrete basis and a reasoned apprehension of harm applies with equal force where the legislative action is based on morality. In establishing the basis for Parliament's action, the Chief Justice relies heavily on the purpose of upholding public morality. In her view, to justify having recourse to the criminal law by relying on morality, Parliament need only have a reasonable basis to expect that its legislation will address a concern of fundamental importance (para. 50). If her interpretation were adopted, the decision to bring certain conduct within the criminal law sphere would never be open to effective review by the courts. The issue would simply be whether a moral concern is addressed and whether there is a consensus that the concern is of fundamental importance (para. 51). This approach in effect totally excludes the substantive component that serves to delimit the criminal law. Not only does it go far beyond morality, which as a result serves only as a formal component, but it inevitably encompasses innumerable aspects of very diverse matters or conduct, such as participation in a religious service, the cohabitation of unmarried persons or even international assistance, which, although they involve moral concerns in respect of which there is a consensus that they are important, cannot all be considered to fall within the criminal law sphere.

[239] In our opinion, this goes further than any previous judicial interpretation. A definition such as this amounts to what the Chief Justice herself describes as a "limitless definition" that must be rejected because it jeopardizes the constitutional balance of the federal-provincial division of powers (para. 43). It is true that the criminal law often expresses aspects of social morality or, in broader terms, the fundamental values of society. However, legislative action by Parliament on this basis presupposes the existence of a real and important moral problem. Yet care must be taken not to view every social, economic or scientific issue as a moral problem. In 1931, in *Proprietary Articles Trade Association*, the Privy Council rejected any conception of the criminal law that did not take into account the evolution of society. Thus, when Parliament criminalizes an act, its decision remains subject to review by the courts, which will take society's attitude into account. And it must be borne in mind in this area that a broad range of philosophical and religious ideas coexist in a society as diverse as contemporary Canadian society. Although the rules in the *Criminal Code* have long been understood in light of the principles of Judeo-Christian morality, societal changes have freed them from those fetters. The coming into force of the *Charter*, for example, resulted in fundamental changes that affected offences related to sex, pornography and prostitution and demonstrated the importance of the explosion of the former conceptual […] The judgments on the application of the *Charter* have not of course purported to define the limits of the federal criminal law power, but they do clearly illustrate what is considered to be an evil, which is a question the Chief Justice does not deal with in her analysis relating to morality. […]

[240] In this context, absent an intention to change the law and give the federal criminal law power an unlimited and uncontrollable scope, the requirement of a real evil and a reasonable apprehension of harm constitutes an essential element of the substantive component of the definition of criminal law. Without it, the federal criminal law power would in reality have no limits. The federal government would have the authority under the Constitution to make laws in respect of any matter, provided that it cited its criminal law power and that it gave part of its legislation the form of a prohibition with criminal sanctions. This is what Rand J. wanted to prevent in the *Margarine Reference*.

[…]

[243] Although a reasoned apprehension of harm necessarily constitutes a criminal law purpose, health, ethics and morality do not automatically arouse such an apprehension in every case. For an activity to fall under the criminal law, it must be found that there is an evil to be suppressed or prevented and that the pith and substance of the provisions in issue is the suppression of that evil or the elimination of that reasoned risk of harm.

[…]

(2) Lack of a Connection Between the Pith and Substance of the Impugned Provisions and the Federal Criminal Law Power

[…]

[250] To find that the pith and substance of the impugned provisions relates to the prohibition of reprehensible conduct is therefore problematic in two ways. First, from the standpoint of morality, no evil has been identified. Second, all activities related to assisted human reproduction are regulated, not just specific ones that Parliament could theoretically have considered — but in fact did not consider — reprehensible. […]

[254] […] Although assisted human reproduction raises moral and ethical questions, this does not necessarily mean that exercising the criminal law power is justified on the basis that there is an evil to be suppressed. Rather, both those who testified before the Baird Commission and those who participated in the parliamentary debates acknowledged that the development of assisted human reproduction amounts to a step forward for the constantly growing number of people dealing with infertility. Moreover, it represents the only option for homosexuals who wish to reproduce. The risks for the health and safety of people who resort to these technologies do not distinguish the field of assisted human reproduction from other fields of medical practice that have evolved after a period of experimentation, such as that of organ transplants or grafts.

[…]

[256] In the end, if we were to adopt the Attorney General of Canada's interpretation and accept that the fact that a technology is "novel" justifies, on its own, resorting to the criminal law power, nearly every new medical technology could be brought within federal jurisdiction. This view of the criminal law is incompatible with the federal nature of Canada; it not only upsets the constitutional balance of powers in the field of health, but also undermines the very definition of federalism.

[…]

Connection With Provincial Powers

[259] […] It is clear from the record that the impugned statutory provisions fall under various provincial heads of power.

[260] […] [I]n light of the pith and substance of the impugned provisions — the regulation of assisted human reproduction as a health service — those provisions are closely connected with the activities of hospitals and fall within the power of the provinces to make laws in relation to that matter.

[…]

[265] In reviewing the effects of the impugned provisions, we observed that the provisions affect essential aspects of the relationship between a physician and persons who require assistance for reproduction. The fact that several of the impugned provisions concern subjects that are already governed by the *Civil Code of Québec*, the *AHSSS*, the *Medical Act* and the rules of ethics applicable to the professionals in question is an important indication that, in pith and substance, the provisions lie at the very core of the provinces' jurisdiction over civil rights and local matters.

[…]

[267] In short, the fact that the impugned provisions have a significant effect on activities that generally fall within the exclusive jurisdiction of the provinces confirms that those provisions represent an overflow of the exercise of the federal criminal law power. At this point, it might be tempting to declare that the impugned provisions are unconstitutional on this basis alone, as the Quebec Court of Appeal did. But it is necessary to complete the analysis and consider whether the ancillary powers doctrine applies. […]

[…]

[273] In sum, the conclusion that the impugned provisions, far from falling under the federal criminal law power, relate instead to the provinces' jurisdiction over hospitals, property and civil rights and matters of a merely local or private nature is self-evident. If any doubt remained, this is where the principle of subsidiarity could apply, not as an independent basis for the distribution of legislative powers, but as an interpretive principle that derives, as this Court has held, from the structure of Canadian federalism and that serves as a basis for connecting provisions with an exclusive legislative power. If subsidiarity were to play a role in the case at bar, it would favour connecting the rules in question with the provinces' jurisdiction over local matters, not with the criminal law power […].

The following are the reasons delivered by

[282] CROMWELL J. — I respectfully disagree with the results proposed both by the Chief Justice and by Justices LeBel and Deschamps.

[…]

[285] In my view, the essence of the impugned provisions of the *Assisted Human Reproduction Act*, S.C. 2004, c. 2, is regulation of virtually every aspect of research and clinical practice in relation to assisted human reproduction. The sweep of the regulation authorized by the impugned provisions is most vividly illustrated by reading ss. 10, 11 and 13 along with the regulation-making power in s. 65 and the licensing authority set out in s. 40. […]

[…]

[287] […] Substantially for the reasons given by Justices LeBel and Deschamps at paras. 259-66, I conclude that the "matter" of the challenged provisions, viewed as a whole, is best classified as being in relation to three areas of exclusive provincial legislative competence: the establishment, maintenance and management of hospitals; property and civil rights in the province; and matters of a merely local or private nature in the province. In my respectful view, the "matter" of the challenged provisions cannot be characterized as serving any criminal law purpose recognized by the Court's jurisprudence. […]

[288] That does not conclude the analysis, however. It may be that not each of the impugned provisions shares the constitutional characterization which attaches to the "matter" of the impugned provisions viewed as a whole. In my view, this is the case here […] Sections 5 to 7 are validly enacted under Parliament's criminal law power as the Attorney General of Quebec concedes. The same is true, in my view, of ss. 8, 9 and 12. In this respect, I part company with Justices LeBel and Deschamps.

[…]

[291] I conclude that ss. 8, 9 and 12 in purpose and effect prohibit negative practices associated with assisted reproduction and that they fall within the traditional ambit of the federal criminal law power.

[292] As I would affirm the constitutionality of s. 12 of the Act, I would also uphold the constitutionality of provisions which set up the mechanisms to implement it. […]

[…]

For a case comment on this decision, see Graeme G Mitchell, "Not a General Regulatory Power: A Comment on Reference re Assisted Human Reproduction Act" (2011) 54 SCLR (2d) 633. The principle of subsidiarity, which makes an appearance in this and the next case, is explored in Eugénie Brouillet, "Canadian Federalism and the Principle of Subsidiarity: Should We Open Pandora's Box?" (2011) 54 SCLR (2d) 601 and Hoi L Kong, "Subsidiarity, Republicanism, and the Division of Powers in Canada" (2015) 45 RDUS 13.

This incipient debate on the posture toward the criminal law power continued in *Reference re Genetic Non-Discrimination Act*, 2020 SCC 1. Though a majority of the Court upheld the constitutionality of the Act as a valid exercise of the federal jurisdiction over criminal law, in this decision we see three different approaches to the public purpose element of the definition of the criminal law power, none of which enjoys a majority. At one end of the spectrum, Justice Karakatsanis (with Justices Abella and Martin concurring) appears to further expand the scope of the power by adding the promotion of various values to the permissible purposes of criminal legislation, while at the other, Justice Kassirer (with the support of Wagner CJ and Brown and Rowe JJ) wish to bring more strictness to the review of Parliament's purposes, much as LeBel and Deschamps JJ did in *AHRA*, above. Justices Moldaver and Côté issue a judgment upholding the legislation but without endorsing the approach of either of their colleagues. We appear to be in a period of some instability and uncertainty as to the direction in which the federal criminal law power will evolve. As you read this decision, consider which approach you think is most sound, given what you have learned about the history and nature of the federal power over criminal law. In particular, do you think that the promotion of fundamental values ought to be included among the valid criminal purposes?

2.5 *Reference re Genetic Non-Discrimination Act*

***Reference re Genetic Non-Discrimination Act*, 2020 SCC 1**

The reasons of Abella, Karakatsanis and Martin JJ. were delivered by

Karakatsanis J. —

[1] Parliament criminalized compulsory genetic testing and the non-voluntary use or disclosure of genetic test results in the context of a wide range of activities — activities that structure much of our participation in society. This Court must decide whether Parliament could validly use its broad criminal law power to do so.

[2] In particular, we must decide whether s. 91(27) of the Constitution Act, 1867 empowers Parliament to prohibit forcing an individual to take a genetic test or to disclose genetic test results, or to prohibit using an individual's genetic test results without consent, by way of ss. 1 to 7 of the Genetic Non-Discrimination Act, S.C. 2017, c. 3. Answering that question turns on whether Parliament enacted the challenged prohibitions for a valid criminal law purpose. I find that it did.

[3] The Government of Quebec referred the constitutionality of ss. 1 to 7 of the *Act* to the Quebec Court of Appeal, which concluded that those provisions fell outside Parliament's authority to make criminal law. The appellant, the Canadian Coalition for Genetic Fairness, appeals to this Court as of right.

[4] I would allow the appeal and conclude that Parliament had the power to enact ss. 1 to 7 of the Genetic Non-Discrimination Act under s. 91(27). As I explain below, the "matter" (or pith and substance) of the challenged provisions is to protect individuals' control over their detailed personal information disclosed by genetic tests, in the broad areas of contracting and the provision of goods and services, in order to address Canadians' fears that their genetic test results will be used against them and to prevent discrimination based on that information. This matter is properly classified within Parliament's s. 91(27) power over criminal law. The provisions are supported by a criminal law purpose because they respond to a threat of harm to several overlapping public interests traditionally protected by the criminal law. The prohibitions in the *Act* protect autonomy, privacy, equality and public health, and therefore represent a valid exercise of Parliament's criminal law power.

I. Genetic Non-Discrimination Act

[5] In December 2015, Senator James S. Cowan introduced Bill S-201, *An Act to prohibit and prevent genetic discrimination*, 1st Sess., 42nd Parl., 2017, which would eventually become the *Genetic Non-Discrimination Act*, in the Senate. The Senate passed the bill by unanimous vote. The House of Commons passed it with 222 members of Parliament voting in favour and 60 against. Although the government opposed the bill, it did not require its backbenchers to vote against it. The bill came into force on royal assent as the *Genetic Non-Discrimination Act*: see *Interpretation Act*, R.S.C. 1985, c. I-21, s. 5(2).

[6] Section 2 of the Act defines a genetic test as "a test that analyzes DNA, RNA or chromosomes for purposes such as the prediction of disease or vertical transmission risks, or monitoring, diagnosis or prognosis". Sections 3, 4 and 5 establish the following prohibitions relating to genetic tests:

> **3 (1)** It is prohibited for any person to require an individual to undergo a genetic test as a condition of
>
> (a) providing goods or services to that individual;
>
> (b) entering into or continuing a contract or agreement with that individual; or
>
> (c) offering or continuing specific terms or conditions in a contract or agreement with that individual.
>
> **(2)** It is prohibited for any person to refuse to engage in an activity described in any of paragraphs (1)(a) to (c) in respect of an individual on the grounds that the individual has refused to undergo a genetic test.
>
> **4 (1)** It is prohibited for any person to require an individual to disclose the results of a genetic test as a condition of engaging in an activity described in any of paragraphs 3(1)(a) to (c).
>
> **(2)** It is prohibited for any person to refuse to engage in an activity described in any of paragraphs 3(1)(a) to (c) in respect of an individual on the grounds that the individual has refused to disclose the results of a genetic test.
>
> **5** It is prohibited for any person who is engaged in an activity described in any of paragraphs 3(1)(a) to (c) in respect of an individual to collect, use or disclose the results of a genetic test of the individual without the individual's written consent.

[7] Thus, individuals and corporations cannot force individuals to take genetic tests or disclose genetic test results and cannot use individuals' genetic test results without their written consent in the areas of contracting and the provision of goods and services.

[8] Section 7 provides that doing anything prohibited by ss. 3, 4 or 5 is an offence punishable on summary conviction by a fine of up to $300,000 or imprisonment of up to 12 months, or both, and on indictment by a fine of up to $1 million or imprisonment of up to 5 years, or both.

[9] Section 6 provides that the prohibitions established by ss. 3 to 5 do not apply to a physician, pharmacist or other health care practitioner "in respect of an individual to whom they are providing health services" and also do not apply to "a person who is conducting medical, pharmaceutical or scientific research in respect of an individual who is participating in the research".

[…]

III. Issue

[15] The only issue before this Court is whether Parliament had the power under s. 91(27) to enact ss. 1 to 7 of the Genetic Non-Discrimination Act. The wisdom of Parliament's decision to criminalize the conduct the provisions prohibit is not in issue. Nor is it this Court's task to consider whether the policy objectives advanced by the provisions could be better achieved by other means, such as provincial legislation. My conclusion that ss. 1 to 7 of the *Act* are valid criminal law does not preclude the provincial legislatures from addressing similar matters within their spheres of jurisdiction, subject to the doctrine of paramountcy.

[…]

V. Analysis

[…]

A. *Characterization*

[…]

(1) Purpose

[30] Identifying a law's pith and substance requires considering both the law's purpose and its effects: *Firearms Reference*, at para. 16. Both Parliament's or the provincial legislature's purpose and the legal and practical effects of the law will assist the court in determining the law's essential character.

[…]

[34] To determine a law's purpose, a court looks to both intrinsic and extrinsic evidence. Intrinsic evidence includes the text of the law, and provisions that expressly set out the law's purpose, as well as the law's title and structure. Extrinsic evidence includes statements made during parliamentary proceedings and drawn from government publications: *Firearms Reference*, at para. 17.

[35] A law's title, especially its long title, is an important form of intrinsic evidence, as both titles are an integral part of the law: R. Sullivan, *Sullivan on the Construction of Statutes* (6th ed. 2014), at pp. 440-41. Here, both the short title — the *Genetic Non-Discrimination Act* — and the long title — *An Act to prohibit and prevent genetic discrimination* — suggest that the *Act*'s purpose is twofold. They suggest that the *Act* seeks to prohibit discrimination on genetic grounds and prevent such discrimination from occurring in the first place.

[36] Turning to the *Act*'s text and structure, the prohibitions created by ss. 3 to 5 apply to a wide range of circumstances (obtaining goods and services and entering into contracts) in which individuals might be treated adversely based on their decision whether to undergo genetic testing and based on test results. The prohibitions are of general application, as they do not target a particular activity or industry. Instead, they target specific behaviour related to genetic testing, namely forcing individuals to undergo testing and disclose test results, and using test results without consent. The prohibitions target conduct that enables genetic discrimination.

[37] The definition of "genetic test" in s. 2 of the *Act* is broad and captures analyses of DNA, RNA or chromosomes performed with a wide range of ends in mind. Section 2 defines a genetic test as "a test that analyzes DNA, RNA or chromosomes for purposes such as the prediction of disease or vertical transmission risks, or monitoring, diagnosis or prognosis."

[…]

[39] [T]he *Act* aims to combat discrimination based on genetic test results. Health-related genetic tests reveal highly personal information — details that individuals might not wish to know or share and that could be used against them. The prohibitions target a broad range of conduct that creates the opportunity for genetic discrimination based on intimate personal information revealed by health-related tests. Parliament saw genetic test results relating to health as particularly vulnerable to abuse and discrimination. The intrinsic evidence suggests that the purpose of the provisions is to combat discrimination based on information disclosed by genetic tests by criminalizing compulsory genetic testing, compulsory disclosure of test results, and non-consensual use of test results in a broadly-defined context (the areas of contracting and the provision of goods and services). The extrinsic evidence points largely in the same direction.

[40] The main source of extrinsic evidence of purpose is the parliamentary debates on the bill that became the *Genetic Non-Discrimination Act*. […]

[45] […] The mischief in parliamentarians' minds was the "gap" in the laws, which left individuals vulnerable to genetic discrimination and grounded the fear of genetic discrimination. Those concerns correspond to the title of the *Act* and the text of the prohibitions.

[46] In addition to enacting substantive provisions, the *Act* also amended the *Canada Labour Code* to protect employees from forced genetic testing or disclosure of test results, and from disciplinary action on the basis of genetic test results, and amended the *Canadian Human Rights Act* to add "genetic characteristics" as a prohibited ground of discrimination and to create a deeming provision relating to refusal to undergo genetic testing or disclose test results: see *Canada Labour Code*, ss. 247.98 and 247.99, as amended by s. 8 of the *Act*; *Canadian Human Rights Act*, s. 3(1) and (3), as amended by ss. 9 to 11 of the *Act*.

[47] Parliament's decision to make these amendments to the *Canada Labour Code* and the *Canadian Human Rights Act* in conjunction with its enactment of the *Act*'s substantive provisions suggests that Parliament was looking to take a coordinated approach to tackling genetic discrimination based on test results, using different tools. It was not only targeting genetic discrimination directly through human rights and labour legislation, but was also targeting precursors to such discrimination, namely forced genetic testing and disclosure of the results of such testing. The fact that Parliament did not criminalize genetic discrimination does not belie Parliament's purpose of combatting genetic discrimination in this context. The relative breadth, directness or efficacy of the means Parliament chooses to address a problem is not the court's concern in its pith and substance inquiry.

[…]

[49] The title of the *Act* and the text of the prohibitions provide strong evidence that the prohibitions have the purpose of combatting genetic discrimination based on test results, and that the more precise mischief they are intended to address is the lack of legal protection for the results of genetic testing. The *Act* does what its title says it does: it prevents genetic discrimination by directly targeting that mischief. The parliamentary debates also provide strong evidence to support this. I find that the purpose of the challenged provisions is to combat genetic discrimination and the fear of genetic discrimination based on the results of genetic tests by prohibiting conduct that makes individuals vulnerable to genetic discrimination in the areas of contracting and the provision of goods and services.

[50] As I will explain, the effects of ss. 1 to 7 of the *Act* are consistent with their purpose.

(2) Effects

[51] Both legal and practical effects are relevant to identifying a law's pith and substance. Legal effects "flo[w] directly from the provisions of the statute itself", whereas practical effects "flow from the application of the statute [but] are not direct effects of the provisions of the statute itself": *Kitkatla*, at para. 54, citing *Morgentaler* (1993), at pp. 482-83.

[52] Starting with legal effects, ss. 3 to 5 of the *Genetic Non-Discrimination Act* prohibit genetic testing requirements and non-consensual uses of genetic test results in a broad range of circumstances. Section 7 imposes significant penalties for contravening these prohibitions.

[…]

[54] The most significant practical effect of the *Act* is that it gives individuals control over the decision of whether to undergo genetic testing and over access to the results of any genetic testing they choose to undergo. […]

[55] Choices about genetic testing are deeply personal in nature and the reasons for making them vary widely from one individual to another. Just as one individual may wish to be aware of every possible predisposition or risk that a genetic test might reveal, another may prefer not to know. And the individual who wants to know may not want others to know. The *Act* protects those choices.

[56] By protecting choices about who has access to such information, the legislation reduces the risk of genetic discrimination. And by removing the fear of some of the negative consequences that could flow from genetic testing, the *Act* may encourage individuals to undergo genetic testing. Additional testing may in turn produce health benefits, including by enabling earlier detection of health problems or predispositions, providing for more accurate and sometimes life-saving diagnoses and improving the health care system's ability to provide maximally beneficial care.

[57] The legislation may also affect the insurance industry and, potentially, insurance premiums. By preventing insurers from using genetic test results without an individual's consent in making decisions about what policies to underwrite, the provisions at issue may result in increased insurance premiums. Since insurers will not be able to adjust individual premiums (or decline to insure an individual) based on genetic test results without written consent, they may be more likely to insure individuals who may be at risk of future health problems, or to insure those individuals at lower premiums than they would otherwise charge. Individuals who know they are at higher risk of future health problems may also be more likely to purchase insurance. This may in turn increase the amounts the insurer will be required to pay out. To make sure that they will be able to meet those potential increased future liabilities, insurers may need to raise premiums overall.

[…]

[63] In enacting the *Genetic Non-Discrimination Act*, Parliament acted to combat genetic discrimination and the fear of genetic discrimination based on genetic test results. It sought to do so by filling the gap in Canada's laws that made individuals vulnerable to genetic discrimination in the areas of contracting and the provision of goods and services. […]

[64] Crucially, Parliament's purpose in enacting the provisions in question is borne out in the provisions' effects. The most direct and significant practical effect of the prohibitions is to give individuals control over the decision of whether to undergo genetic testing and over access to the results of genetic testing. This practical effect is a direct result of the prohibitions' legal effects.

[65] I accordingly conclude that, in pith and substance, ss. 1 to 7 of the *Act* protect individuals' control over their detailed personal information disclosed by genetic tests in the areas of contracting and the provision of goods and services in order to address fears that individuals' genetic test results will be used against them and to prevent discrimination based on that information.

B. *Classification*

[66] […] [T]he only question the Court must answer in this part of the division of powers analysis is whether the provisions at issue come within Parliament's s. 91(27) criminal law power.

(1) The Criminal Law Power

[…]

[68] There is no dispute that the challenged provisions meet the first two requirements. They prohibit specific conduct and impose penalties for violating those prohibitions. The only issue is whether the matter of ss. 1 to 7 of the *Act* is supported by a criminal law purpose. […].

[…]

[74] […] A law will have a criminal law purpose if it addresses an evil, injurious or undesirable effect on a public interest traditionally protected by the criminal law, or another similar public interest.

[…]

[79] Taken together, the requirements established in the *Margarine Reference* and subsequently applied in this Court's jurisprudence mean that a law will have a criminal law purpose if its matter represents Parliament's response to a threat of harm to public order, safety, health or morality or fundamental social values, or to a similar public interest. As long as Parliament is addressing a reasoned apprehension of harm to one or more of these public interests, no degree of seriousness of harm need be proved before it can make criminal law. The court does not determine whether Parliament's criminal law response is appropriate or wise. The focus is solely on whether recourse to criminal law is *available* under the circumstances.

(2) Application

[80] As stated above, the only classification issue concerning ss. 1 to 7 of the *Act* is whether the provisions are supported by a criminal law purpose. In my view, the essential character of the prohibitions represents Parliament's response to the risk of harm that the prohibited conduct, genetic discrimination and the fear of genetic discrimination based on genetic test results pose to several public interests traditionally protected by the criminal law: autonomy, privacy and the fundamental social value of equality, as well as public health.

[…]

(a) Autonomy, Privacy and Equality

[82] This Court has consistently recognized that individuals have powerful interests in autonomy and privacy, and in dignity more generally, protected by various *Charter* guarantees: see, for example, *R. v. Morgentaler*, 1988 CanLII 90 (SCC), [1988] 1 SCR 30, at p. 166, per Wilson J. It has specifically recognized individuals' clear and pressing interest in safeguarding information about themselves — the ability to do so is "closely tied to the dignity and integrity of the individual, [and] is of paramount importance in modern society": *R. v. Jarvis*, 2019 SCC 10, [2019] 1 SCR 488, at para. 66; *R. v. Dyment*, 1988 CanLII 10 (SCC), [1988] 2 S.C.R 417, at p. 429.

[83] Parliament has often used its criminal law power to protect these vital interests, acting to protect human dignity by safeguarding autonomy and privacy. The prohibitions on voyeurism in s. 162(1) of the Criminal Code, R.S.C. 1985, c. C-46, and on wilfully intercepting private communications in s. 184, for example, both protect individuals' well-established interests in privacy and autonomy, while the prohibition on voyeurism also protects sexual integrity: *Jarvis*, at paras. 48 and 113. Safeguarding autonomy and privacy are established uses of the criminal law power.

[84] The conduct prohibited by ss. 1 to 7 of the *Act* poses a risk of harm to two facets of autonomy and personal privacy because individuals have an interest in deciding whether or not to access the detailed genetic information revealed by genetic testing and whether or not to share their test results with others.

[85] In particular, forced genetic testing (prohibited in s. 3 of the *Act*) poses a clear threat to autonomy and to an individual's privacy interest in not finding out what their genetic makeup reveals about them and their health prospects. People may not want to learn about their "genetic destiny", or risk the psychological harm that can result from obtaining unfavourable genetic test results: Office of the Privacy Commissioner of Canada, *The Potential Economic Impact of a Ban on the Use of Genetic Information for Life and Health Insurance*, by M. Hoy and M. Durnin (2012), at p. 11 (Hoy and Durnin). Forced disclosure of genetic test results (prohibited in s. 4) and the collection, use or disclosure of genetic test results without written consent (prohibited in s. 5) threaten autonomy and privacy by compromising an individual's control over access to their detailed genetic information. Such threats to autonomy and personal privacy are threats to human dignity.

[86] The prohibitions target this autonomy- and privacy-threatening conduct in the contexts of the provision of goods and services and the conclusion of contracts. The risk of harm to dignity-related interests in these contexts is neither narrow nor trivial: individuals meaningfully participate in society by way of goods, services and contracts. The prohibitions in the *Act* target a wide swath of conduct.

[…]

[90] Protecting fundamental moral precepts or social values is an established criminal law purpose […]. Parliamentarians considered discrimination on the basis of health-related genetic test results to be morally wrong. They viewed such genetic discrimination to be antithetical to the values of equality and human dignity. It is easy to see why. Such genetic discrimination threatens the fundamental social value of equality by stigmatizing and imposing adverse treatment on individuals because of their inherited, immutable genetic characteristics, and, in particular, the characteristics that may help to predict disease or disability. In acting to suppress a threat of that nature, Parliament acted with a criminal law purpose.

[…]

(b) Public Health

[…]

[96] Parliament is entitled to use its criminal law power to respond to a reasoned apprehension of harm, including a threat to public health.

[97] Genetic discrimination and the fear of genetic discrimination are not merely theoretical concerns. Testimony before Parliament demonstrated that fear of genetic discrimination leads patients to forego beneficial testing, results in wasted health care dollars and may deter patients from participating in research that could advance medical understanding of their conditions. Genetic discrimination is a barrier to accessing suitable, maximally effective health care, to preventing the onset of certain health conditions and to participating in research and other initiatives serving public health. Parliament accordingly apprehended individuals' vulnerability to and fear of genetic discrimination based on test results as a threat to public health.

[…]

[102] Here, in pith and substance, Parliament's action was a response to the harm that vulnerability to and fear of genetic discrimination posed to public health. Giving individuals control over access to their genetic test results by prohibiting forced genetic testing and disclosure of test results and the non-consensual collection, use or disclosure of genetic test results in the areas of contracting and the provision of goods and services targets the harmful fear of genetic discrimination that poses a threat to health. The Act was intended to target that fear.

(3) Conclusion

[103] Parliament took action in response to its concern that individuals' vulnerability to genetic discrimination posed a threat of harm to several public interests traditionally protected by the criminal law. Parliament enacted legislation that, in pith and substance, protects individuals' control over their detailed personal information disclosed by genetic tests in the areas of contracting and the provision of goods and services in order to address Canadian's fears that their genetic test results will be used against them and to prevent discrimination based on that information. It did so to safeguard autonomy, privacy and equality, along with public health. The challenged provisions fall within Parliament's criminal law power because they consist of prohibitions accompanied by penalties, backed by a criminal law purpose.

The reasons of Moldaver and Côté JJ. were delivered by

Moldaver J. —

[…]

[110] In the result, I agree with my colleague Justice Karakatsanis that ss. 1 to 7 of the *Act*represent a valid exercise of Parliament's power over criminal law set out at s. 91(27) of the *Constitution Act, 1867*. However, and with respect, I arrive at this result in a different manner because I see the pith and substance of the impugned provisions differently from her, as well as from my colleague Justice Kasirer.

[…]

II. Analysis

A. *Characterization*

[114] […] I take the view that the pith and substance of ss. 1 to 7 of the *Act* is to protect health by prohibiting conduct that undermines individuals' control over the intimate information revealed by genetic testing. This is borne out by the purpose and effects of these provisions.

[115] […] I do not agree with Justice Karakatsanis that preventing discrimination forms part of the pith and substance of the challenged provisions. While I accept that ss. 1 to 7 of the *Act* reduce the opportunities for discrimination based on one's genetic test results, thereby mitigating individuals' fear of genetic discrimination, they do so by giving people control over the information revealed by genetic tests in furtherance of the purpose of protecting health. With respect, preventing or combating genetic discrimination is not the "dominant purpose or true character" of these provisions […].

[116] Nor can I agree with Justice Kasirer that the pith and substance of the provisions is "to regulate contracts and the provision of goods and services, in particular contracts of insurance and employment, by prohibiting some perceived misuses of one category of genetic tests, the whole with a view to promoting the health of Canadians" (para. 154). As I see it, what is at stake here is not the *promotion* of beneficial health practices but the *protection* of individuals from a serious threat to health. Further, I have no doubt that the impugned provisions affect contracting and the provision of goods and services. However, with respect, I believe that the manner in which my colleague characterizes them "confuse[s] the law's purpose with 'the means chosen to achieve it'" (*Quebec v. Canada*, at para. 29, quoting *Ward v.*

Canada (Attorney General), 2002 SCC 17, [2002] 1 SCR 569, at para. 25). Although the means chosen by Parliament engage aspects of contracting and the provision of goods and services, as I see it, "the regulation of contracts and the provision of goods and services" is, at best, peripheral to the dominant purpose or true character of the legislation. Indeed, as Justice Kasirer himself recognizes, "health dominates the discussion" (para. 221).

[…]

[136] […] I conclude that the pith and substance of ss. 1 to 7 of the *Act* is to protect health by prohibiting conduct that undermines individuals' control over the intimate information revealed by genetic testing. These provisions prohibit compulsory genetic testing, compulsory disclosure of genetic test results, and the non-consensual collection, disclosure and use of those results in a wide array of contexts that govern how people interact with society. By giving people control over this information, ss. 1 to 7 of the *Act* mitigate their fears that it will be used against them. Such fears lead many to forego genetic testing, to the detriment of their own health, the health of their families, and the public healthcare system as a whole.

B. *Classification*

[137] As my colleagues have noted, the classification stage of this appeal turns on whether ss. 1 to 7 of the *Act* are backed by a criminal law purpose. […]

[139] Sections 1 to 7 of the *Act* are backed by a criminal law purpose because they are directed at suppressing a threat to health. People were choosing to put themselves at risk of preventable death and disease because they were concerned that they would not have control over the information revealed by genetic tests in a wide variety of contexts that govern how they interact with and in society. Parliament sought to mitigate these concerns by prohibiting conduct — namely, compulsory genetic testing, and compulsory disclosure and non-consensual collection, disclosure, and use of genetic test results — that undermined individuals' control over the information revealed by genetic testing. By giving people control over that information, Parliament sought to mitigate their fears that it would be used against them, thereby curbing the injurious effect on health.

[140] The threat to health that Parliament targeted by enacting ss. 1 to 7 of the *Act* was real — in every sense of the word. Parliament had ample evidence before it that people were refraining from undergoing genetic testing out of fear as to how their genetic test results could be used, thereby suffering significant harm or putting themselves at risk of significant and avoidable harm. The debates and committee testimony are saturated with examples of the life-saving, life-extending, and life-enhancing potential of genetic testing — all of which individuals felt they had to forego because they could not control the ways in which the results of such testing would be used in various contexts.

[…]

[143] In light of this evidence, I cannot agree with Justice Kasirer's conclusion that the impugned provisions do not target a "'public health evil' or threat", but rather seek "to foster or promote beneficial health practices" (para. 239). While my colleague agrees that the provisions in question relate to a public purpose that is properly the subject of criminal law — health — he contends that "there is no defined 'public health evil' or threat to be suppressed" (para. 239). As I see it, by contrast, ss. 1 to 7 are not directed at the mere "promotion of beneficial health services or practices" (Kasirer J.'s reasons, at para. 240), but rather at protecting people from severe harms to their health caused by foregoing genetic testing out of fear that their information will be used against them (e.g., by way of non-consensual collection, disclosure, or use of genetic test results). While it is no doubt true that not dying of a preventable disease is a "better health outcom[e]" than dying from that disease (Kasirer J.'s reasons, at para. 239), I believe it makes more sense to describe measures directed at preventing such outcomes as being protective of health.

[…]

[150] In sum, as I see it, by enacting ss. 1 to 7 of the *Act*, Parliament targeted conduct that was having an injurious effect on health. Canadians choosing to forego genetic testing and thereby dying preventable deaths and suffering other preventable health-related harms for no reason other than the fear that their genetic test results could be used against them is a threat to health that Parliament was constitutionally entitled to address, pursuant to s. 91(27) of the *Constitution Act, 1867*. Sections 1 to 7 of the *Act*, which prohibit conduct that undermines individuals' control over the information revealed by genetic testing in a wide variety of contexts that govern how people interact with and in society, accordingly represent a valid exercise of Parliament's power to enact laws in relation to the criminal law.

III. Conclusion

[151] For these reasons, I would dispose of the appeal in the manner proposed by Justice Karakatsanis (see para. 108).

The reasons of Wagner C.J. and Brown, Rowe and Kasirer JJ. were delivered by

Kasirer J. (dissenting) —

Introduction

[152] I begin these reasons by noting that I find the explanations of the method for determining the constitutionality of ss. 1 to 7 of the *Genetic Non-Discrimination Act*, S.C. 2017, c. 3 ("*Act*"), offered by my colleagues Justice Moldaver and Justice Karakatsanis most helpful. With great respect, however, I do not share their view that the impugned provisions were enacted within the constitutional authority of the Parliament of Canada over the criminal law pursuant to s. 91(27) of the *Constitution Act, 1867*.

[153] We disagree on the characterization — the pith and substance, in constitutional terms — of ss. 1 to 7 of the *Act* and, at the end of the day, how these provisions should be classified within the heads of power enumerated in ss. 91 and 92 of the *Constitution Act, 1867*.

[154] On my understanding, the pith and substance of ss. 1 to 7 is to regulate contracts and the provision of goods and services, in particular contracts of insurance and employment, by prohibiting some perceived misuses of one category of genetic tests, the whole with a view to promoting the health of Canadians. The *Act* has certain incidental purposes and effects, but when the dominant character of the impugned provisions is identified, they cannot be classified as a valid exercise of Parliament's constitutional power over criminal law. These provisions do not prohibit what is often styled, in language archaic but telling, an "evil" associated with the criminal law. Instead, ss. 1 to 7 fall within the provinces' constitutional authority over property and civil rights conferred by s. 92(13) of the *Constitution Act, 1867*. In the main, I find myself in broad agreement with the report of the Court of Appeal in the reference.

[155] Many of the spirited submissions made in support of the impugned legislation's constitutionality stressed what might be understood, in some circles, as noble public policy: to encourage government action that would combat genetic discrimination so that Canadians can, without fear, undergo genetic testing if they so desire. Whether or not this Court feels it is appropriate to recognize what the appellant referred to as the deeply personal character of the decision to undertake a genetic test is not the question before us. The task of the

courts — perforce in a constitutional reference such as this one — is not to measure the suitability of public policy but to determine the validity of legislation pursuant to the division of powers under the Constitution. The urgings in favour of what counsel supporting the law see as sound policy would be best done before the appropriate legislative powers that be, acting within their right spheres of constitutional jurisdiction.

[…]

II. Analysis

[…]

A. *Characterization: What Is the Pith and Substance of Sections 1 to 7 of the Act?*

[…]

[170] The wide range of characterization in this case suggests strongly to me that not all of the interpretative efforts at this stage have followed the cardinal rule that it is the *dominant* purpose and effect of ss. 1 to 7 that should concern us. In fairness, part of the mischief comes from Parliament's choice for the *Act*'s short title (*Genetic Non-Discrimination Act*). This title may have put some readers of the impugned provisions on the wrong path by stressing what may have been an aspiration of parliamentarians — legitimate or not, be that as it may — that does not find expression in the statute's leading purpose or effects. Moreover, another part of the mischief appears to come from the wide-ranging and disparate character of the legislative debates, which offer a number of often conflicting accounts of the purposes and effects of the *Act*. This makes the identification of pith and substance difficult, especially given the absence of a statutory preamble or clearly-stated objective in the contested portion of the *Act* itself.

[…]

[174] In my view, neither the long title of this statute — *An Act to prohibit and prevent genetic discrimination* — nor its short title — *Genetic Non-Discrimination Act* — can be said to reflect clearly the impugned provisions' true purpose. With respect, I disagree that these titles reveal that the provisions' purpose is to prohibit discrimination on genetic grounds and prevent such discrimination from occurring in the first place. To my mind, genetic non-discrimination cannot be said to be the primary objective of the impugned provisions.

[…]

[184] As the Court of Appeal explained in its reasons, taken together, ss. 1 to 7 aim to prohibit making the provision of goods and services or the making, continuing, or offering of specific terms or conditions of a contract conditional upon an individual undergoing or disclosing the results of genetic testing (paras. 8 and 10). The provisions do not prohibit the use of genetic information that may be disclosed voluntarily or that may be required or obtained through other means, such as family history or other medical tests, and they do not prohibit genetic discrimination. […]

[…]

[203] When considering the whole of the record, and giving appropriate weight to intrinsic and extrinsic evidence of purpose, it is plain that the main goal of ss. 1 to 7 is not to combat discrimination based on genetic characteristics. Genetic discrimination may have been on the mind of parliamentarians, but it is not prohibited in the impugned provisions. Nor is their objective to control the use of private information revealed by genetic testing, which is secondary to the true purpose of the provisions. Rather, the true aim of the provisions is to regulate contracts, particularly contracts of insurance and employment, in order to encourage Canadians to undergo genetic tests without fear that those tests will be misused so that their health can ultimately be improved.

[…]

B. *Classification: Does the Pith and Substance of the Impugned Provisions Fall Under the Section 91(27) Criminal Law Power?*

[…]

Scope of the Criminal Law Power

[…]

[230] As the parties all agree, the impugned provisions satisfy the formal requirements of a criminal law. The only issue concerns whether they are supported by the third requirement, a valid criminal law purpose. My colleague Justice Karakatsanis and I have different views of this requirement, and we accordingly reach different conclusions on whether it is satisfied. Our respective views of the matter — which find echo in the disagreement at the heart of the *AHRA Reference* — cannot be said to have no impact on the result of this case.

Criminal Law Purpose

[…]

[232] I disagree with the appellant that the word "evil" — the traditional measure of the criminal law in this context — is unhelpful in the classification analysis. Rather, the concept of "evil" is necessary to remind Parliament that mere undesirable effects are not sufficient for legislation to have a criminal purpose, contrary to my colleague's suggestion (see Karakatsanis J.'s reasons, at para. 76). In my view, discarding this concept from the core of the criminal law purpose inquiry would be a dramatic change of course from this Court's past jurisprudence. While the word "evil" may echo language drawn from another time, it has been used frequently in the modern law and it remains conceptually useful for courts to search for an evil before the criminal law purpose requirement is satisfied. Furthermore, to my ear, the French equivalent "*mal*" is perfectly current as a choice of word and I observe that other equivalent words such as "*fléau*" are also used for "evil" in the decided cases (see, e.g., *R. v. Malmo-Levine*, 2003 SCC 74, [2003] 3 SCR 571, at para. 33).

[233] The words "some evil or injurious or undesirable effect upon the public against which the law is directed" point to a more precise idea than the protection of central moral precepts, in a broad sense: Parliament cannot act unless it seeks to suppress some threat. This threat itself must be well-defined and have ascertainable contours to constitute the valid subject-matter of criminal law pursuant to s. 91(27) of the *Constitution Act, 1867*. It must also be real, in the sense that Parliament has a concrete basis and a reasoned apprehension of harm. To suggest otherwise would be to render the substantive requirement so vague as to be impractical as a measure of what amounts to criminal law for constitutional purposes.

[234] I draw from the *Margarine Reference* and LeBel and Deschamps JJ.'s reasons in the *AHRA Reference* that three questions must be confronted when determining whether a law rests upon a valid criminal law purpose. First, does the impugned legislation relate to a "public purpose", such as public peace, order, security, health, or morality? Second, did Parliament articulate a well-defined threat to be suppressed or prevented by the impugned legislation (i.e. the "evil or injurious or undesirable effect upon the public")? Third, is the threat "real", in the sense that Parliament had a concrete basis and a reasoned apprehension of harm when enacting the impugned legislation? I will discuss each question in turn.

Application

(a) *Do the Impugned Provisions Relate to a Public Purpose?*

[…]

[236] My colleagues and I agree that the contested provisions can be said to relate to a public purpose: health. As I have concluded, the pith and substance of ss. 1 to 7 of the *Act* is to regulate contracts and the provision of goods and services, in particular contracts of insurance and employment, by prohibiting some perceived misuses of one category of genetic tests, the whole with a view to promoting the health of Canadians. Thus, there is a clear dimension related to health in the dominant character of the legislation. I recognize that the impugned provisions have an impact on privacy and autonomy but, as I have said, the scope of the definition of "genetic test" means that health is the primary character of the law and that privacy and autonomy are only derivatives thereof.

(b) *Has Parliament Articulated a Well-Defined Threat to Be Suppressed or Prevented By the Impugned Legislation?*

[237] Parliament cannot use the criminal law power to address a vague threat. Rather, the legislation must be directed against "some evil or injurious or undesirable effect upon the public" and the legislature must have in mind "to suppress the evil or to safeguard the interest threatened". As a result, Parliament must clearly articulate and define the scope of the threat it seeks to suppress. That is, it must articulate a precise threat with ascertainable contours. This requirement ensures that the scope of Parliament's actions is limited to a specific problem, and it is particularly important in relation to matters that have provincial aspects, such as health, in order to preserve the balance of federal and provincial powers.

[…]

[254] In my view, Parliament did not target a threat within the purview of the criminal law through the impugned provisions. Quite simply, the prohibitions target certain practices related to contracts and the provision of goods and services, and more specifically, to insurance and employment. There is nothing on the record suggesting that the prohibited conduct is a threat to Canadians.

[…]

[257] Moreover, I respectfully disagree with the view that just because the impugned law "target[s] conduct that Parliament reasonably apprehends as a threat to our central moral precepts", this means that the impugned provisions are validly backed by a criminal law purpose (Karakatsanis J.'s reasons, at para. 73, citing with approval *AHRA Reference*, at para. 50, perMcLachlin C.J.). It bears emphasizing that McLachlin C.J. went on to state that "[t]he role of the courts is to ensure that such a criminal law in pith and substance relates to conduct that Parliament views as contrary to our central moral precepts" and upheld the legislation because "[i]t targets conduct that Parliament has found to be reprehensible" (para. 51; see also para. 30 (emphasis added)). Yet, as LeBel and Deschamps JJ. explained, while "the criminal law often expresses aspects of social morality or, in broader terms, the fundamental values of society . . . . Care must be taken not to view every social, economic or scientific issue as a moral problem" (*AHRA Reference*, at para. 239). In other words, "Parliament's wisdom" cannot trump the requirement to identify a real evil, even from the standpoint of morality (paras. 76 and 250). To do otherwise has the potential to amplify the scope of s. 91(27) beyond any constitutional precedent (paras. 43 and 239).

(c) *Is the Threat Real, in the Sense That Parliament Had a Concrete Basis and a Reasoned Apprehension of Harm When Enacting the Impugned Legislation?*

[…]

[259] The *amicus curiae* urges this Court to embrace McLachlin C.J.'s approach in the *AHRA Reference*. […] [W]hile McLachlin C.J. used the phrase "reasonable apprehension of harm", she also categorically rejected any constitutional threshold level of harm. She noted that LeBel and Deschamps JJ.'s view "substitutes a judicial view of what is good and what is bad for the wisdom of Parliament" (para. 76).

[260] I understand this to be an important point of disagreement between McLachlin C.J. and LeBel and Deschamps JJ.. […] Essentially, what is urged upon us is that where Parliament perceives a risk of harm, that is sufficient for the criminal law power to exist. According to this view, if this Court were to conclude that a certain threshold of harm must be met before Parliament could adopt criminal prohibitions, this would amount to courts second-guessing Parliament.

[261] I respectfully disagree with this point because the approach advocated for is overly deferential to Parliament on division of powers disputes and, if left unchecked, could undermine the federal-provincial balance of powers as set by the Constitution. Whether behaviour constitutes a risk of harm, such that it should be prohibited, is a question of public policy, rather than a basis for constitutional authority. In my respectful view, LeBel and Deschamps JJ.'s reasons in the *AHRA Reference* should guide this Court […] .

[262] In respect of the "harm" argument, LeBel and Deschamps JJ. would require Parliament to describe the apprehended harm "precisely enough that a connection can be established between the apprehended harm and the evil in question" (para. 237). Ensuring Parliament can clearly identify the harm it seeks to suppress and how the impugned legislation is rationally connected to that harm is not onerous, and it does not amount to courts "second-guessing" Parliament (see A.F., at para. 28; factum of the *amicus curiae*, at paras. 4 and 41). Rather, it merely prevents Parliament from invoking vague terms such as "morality", "safety", or even "evil" to justify laws that in reality have little connection to the criminal law.

[…]

[267] In my view, the threat Parliament seeks to suppress must be real, in the sense that Parliament has a concrete basis and a reasoned apprehension of harm.

[…]

[270] In this case, had I concluded there is a well-defined threat, I would also conclude that there is no evidentiary foundation of harm. Rather, Parliament seeks to improve the health of Canadians by making them aware of underlying conditions they may have and does so by attempting to encourage the use of genetic tests. Just as in the *AHRA Reference*, this advance in technology and health services is beneficial to Canadians, and has always been perceived as such.

(d) *Conclusion*

[271] From the foregoing, I conclude that the contested provisions do not satisfy the substantive component of criminal law. While they do relate to a public purpose, Parliament has neither articulated a well-defined threat that it intended to target, nor did it provide any evidentiary foundation of such a threat. It matters little to the present task whether the impugned provisions constitute good policy: they are *ultra vires* Parliament's criminal law power.

[272] In my view, ss. 1 to 7 of the *Act* rather fall within provincial jurisdiction over property and civil rights conferred by s. 92(13) of the *Constitution Act, 1867*. As explained above, the impugned provisions substantially affect the substantive law of insurance as well as human rights and labour legislation in all provinces. There is no question that the provinces could enact the impugned provisions in their own jurisdiction, if they so desired (see *Citizens Insurance Co. of Canada v. Parsons* (1881), 7 App. Cas. 96 (P.C.)).

[…]

IV. Disposition

[274] In my respectful view, the reference question should be answered affirmatively. The *Genetic Non-Discrimination Act* enacted by ss. 1 to 7 of the *Act to prohibit and prevent genetic discrimination*, is *ultra vires* to Parliament's jurisdiction over criminal law under s. 91(27) of the *Constitution Act, 1867*.

[275] For these reasons, I would dismiss the appeal without costs.

For scholarship discussing this decision, see eg, Hoi L Kong, "Reference Re Genetic Non-Discrimination Act: How to Make Space for Some Certainty" (2022) 104 SCLR (2d) 45; Eric M Adams, "Touch of Evil: Disagreements at the Heart of the Criminal Law Power" (2022) 104 SCLR (2d) 67. In his detailed analysis of the decision, Kong ultimately approves of Kasirer J's approach on the basis that it is most consistent with the broader federalism jurisprudence. Adams, in his article reviewing the requirement for the suppression of "some evil" over the history of the interpretation of s 91(27), favours a broader conception of the criminal law purpose element.

A central lesson of these cases is the enormous breadth of the federal criminal law power. The topics on which s 91(27) authorizes federal Parliament to legislate—topics like health, order, environment, morality, and even the protection of certain values—mean that the exercise of the power will frequently also engage central areas of provincial jurisdiction and concern. Moreover, the implementation and enforcement of the criminal law will often require the involvement of provincial authorities and institutions; recall that this interdependency is overtly imagined in the distribution of powers in the *Constitution Act, 1867*, with s 92(14) assigning responsibility for the administration of justice to the provinces. The extent and depth of this overlap and interaction is why the criminal law power has been such a crucible for federalism in Canada, surfacing and testing fundamental principles of the division of powers, including the nature and demands of co-operative federalism.

That is the frame for the following case. It is settled law that the authority to enact criminal law includes the authority to repeal it. However, Quebec (Attorney General) v. Canada (Attorney General), 2015 SCC 14 raised novel questions about how the repeal of a complex (and historically highly controversial) criminal law scheme might affect provincial jurisdiction and what the foundational principles of Canadian federalism therefore required.

2.6 *Quebec (Attorney General) v. Canada (Attorney General)*

***Quebec (Attorney General) v. Canada (Attorney General)*, 2015 SCC 14**

The judgment of McLachlin C.J. and Rothstein, Cromwell, Moldaver and Karakatsanis JJ. was delivered by

Cromwell and Karakatsanis JJ. —

I. Introduction

[1] Fifteen years ago, this Court determined that Parliament, acting under its power to legislate in relation to criminal law, had the constitutional authority to establish a nationwide gun control scheme. Parliament's decision to do so was a contentious policy choice that was contested on constitutional grounds. Three years ago, Parliament reversed in part that earlier policy choice: it repealed the legislation that had established the long-gun registry within the gun control scheme, and provided for the destruction of the data it contained. This too was a contentious policy choice which is now contested on constitutional grounds.

[2] When the government tabled the bill abolishing the long-gun registry and providing for the destruction of the data it contained, Quebec expressed its intention to create its own provincial gun control scheme and asked Canada to give it the data on long guns connected with the province. The federal government refused. As a result, Quebec challenged the constitutionality of the federal law providing for destruction of the data and sought an order requiring the federal government to turn it over. The Superior Court of Quebec declared that Parliament's legislative jurisdiction with respect to criminal law does not allow it to legislate for the destruction of the long-gun registration records without first making this data available to provinces seeking to establish their own registries, and ordered the federal government to transfer the relevant data to Quebec. A five-member panel of the Quebec Court of Appeal disagreed. Finding the law a valid exercise of the federal criminal law power, it set aside those declarations and orders. Quebec now appeals to this Court, raising three issues:

1. Does the principle of cooperative federalism prevent Parliament from legislating to dispose of the data?
2. Does Quebec have the right to obtain the data?
3. Is s. 29 of an Act to amend the Criminal Code and the Firearms Act, S.C. 2012, c. 6, *ultra vires* Parliament's criminal law power?

[3] We agree with the conclusions of the Quebec Court of Appeal and would dismiss the appeal. The principle of cooperative federalism does not constrain federal legislative competence in this case, Quebec has no legal right to the data, and s. 29 of the Act to amend the Criminal Code and the Firearms Act (short title *Ending the Long-gun Registry Act* ("*ELRA*")) is a lawful exercise of Parliament's criminal law legislative power under the Constitution. We add this; to some, Parliament's choice to destroy this data will undermine public safety and waste enormous amounts of public money. To others, it will seem to be the dismantling of an ill-advised regime and the overdue restoration of the privacy rights of law-abiding gun owners. But these competing views about the merits of Parliament's policy choice are not at issue here. As has been said many times, the courts are not to question the wisdom of legislation but only to rule on its legality. In our view, the decision to dismantle the long-gun registry and destroy the data that it contains is a policy choice that Parliament was constitutionally entitled to make.

[…]

III. Analysis

Does the Principle of Cooperative Federalism Prevent Parliament from Legislating to Dispose of the Data?

[15] Quebec invokes the principle of cooperative federalism in support of both its argument that s. 29 of the ELRA is ultra vires and its claim that Quebec has the right to receive the data contained in the CFR related to long guns connected to Quebec. In essence, Quebec is asking us to recognize that the principle of cooperative federalism prevents Canada and the provinces from acting or legislating in a way that would hinder cooperation between both orders of government, especially in spheres of concurrent jurisdiction.

[16] In our respectful view, Quebec's position has no foundation in our constitutional law and is contrary to the governing authorities from this Court.

[17] Cooperative federalism is a concept used to describe the "network of relationships between the executives of the central and regional governments [through which] mechanisms are developed, especially fiscal mechanisms, which allow a continuous redistribution of powers and resources without recourse to the courts or the amending process": P. W. Hogg, Constitutional Law of Canada (5th ed. Supp.), at p. 5-46; see also W. R. Lederman, "Some Forms and Limitations of Co-Operative Federalism", in Continuing Canadian Constitutional Dilemmas (1981), 314. From this descriptive concept of cooperative federalism, courts have developed a legal principle that has been invoked to provide flexibility in separation of powers doctrines, such as federal paramountcy and interjurisdictional immunity. It is used to facilitate

interlocking federal and provincial legislative schemes and to avoid unnecessary constraints on provincial legislative action […]. With respect to interjurisdictional immunity, for example, the principle of cooperative federalism has been relied on to explain and justify relaxing a rigid, watertight compartments approach to the division of legislative power that unnecessarily constrains legislative action by the other order of government: "In the absence of conflicting enactments of the other level of government, the Court should avoid blocking the application of measures which are taken to be enacted in furtherance of the public interest" (Canadian Western Bank, at para. 37).

[18] However, we must also recognize the limits of the principle of cooperative federalism. The primacy of our written Constitution remains one of the fundamental tenets of our constitutional framework: *Reference re Secession of Quebec*, 1998 CanLII 793 (SCC), [1998] 2 SCR 217, at para. 53. This is especially the case with regard to the division of powers:

> . . . the text of the federal constitution as authoritatively interpreted in the courts remains very important. It tells us who can act in any event. In other words, constitutionally it must always be possible in a federal country to ask and answer the question — What happens if the federal and provincial governments do not agree about a particular measure of co-operative action? Then which government and legislative body has power to do what? [Emphasis added; footnote omitted.]
>
> (Lederman, at p. 315)

[19] The principle of cooperative federalism, therefore, cannot be seen as imposing limits on the otherwise valid exercise of legislative competence […]. This was recently reiterated by this Court in its unanimous opinion in *Reference re Securities Act*, 2011 SCC 66, [2011] 3 SCR 837, at paras. 61-62:

> While flexibility and cooperation are important to federalism, they cannot override or modify the separation of powers. The *Secession Reference* affirmed federalism as an underlying constitutional principle that demands respect for the constitutional division of powers and the maintenance of a constitutional balance between federal and provincial powers.
>
> In summary, notwithstanding the Court's promotion of cooperative and flexible federalism, the constitutional boundaries that underlie the division of powers must be respected. The "dominant tide" of flexible federalism, however strong its pull may be, cannot sweep designated powers out to sea, nor erode the constitutional balance inherent in the Canadian federal state. [Emphasis added.]

[20] In our respectful view, the principle of cooperative federalism does not assist Quebec in this case. Neither this Court's jurisprudence nor the text of the Constitution Act, 1867 supports using that principle to limit the scope of legislative authority or to impose a positive obligation to facilitate cooperation where the constitutional division of powers authorizes unilateral action. To hold otherwise would undermine parliamentary sovereignty and create legal uncertainty whenever one order of government adopted legislation having some impact on the policy objectives of another. Paradoxically, such an approach could discourage the practice of cooperative federalism for fear that cooperative measures could risk diminishing a government's legislative authority to act alone.

[21] We conclude that the principle of cooperative federalism does not prevent Parliament from exercising legislative authority that it otherwise possesses to dispose of the data.

[Justices Cromwell and Karakatsanis then addressed the question of whether Quebec had a legal right to receive the registry data from the federal government, concluding that it did not.]

[…]

C. *Is Section 29 Ultra Vires Parliament's Criminal Law Power?*

(1) Applicable Legal Principles

[27] The Constitution confers on Parliament the exclusive authority to legislate with respect to, among others, "all [m]atters" coming within "[t]he Criminal Law, except the Constitution of Courts of Criminal Jurisdiction, but including the Procedure in Criminal Matters": Constitution Act, 1867, s. 91(27). In that regard, the Chief Justice stated the following constitutional question in this case:

> Is s. 29 of the *Ending the Long-gun Registry Act*, S.C. 2012, c. 6, *ultra vires* Parliament having regard to its criminal law power under s. 91(27) of the Constitution Act, 1867?

[28] To answer this question, we first characterize the law — that is, determine its subject matter or "pith and substance" — and then classify it as to whether it is in relation to the subject of criminal law and procedure.

[…]

The "Matter" of Section 29

[34] In essence, Quebec submits that the pith and substance of s. 29 of the *ELRA* is to prevent the long-gun registry from being continued through provincial legislation. Although Quebec does not suggest that this "matter" comes within any of the enumerated heads of provincial legislative power, it submits nonetheless that the federal legislation is not a valid exercise of the criminal law power because it [TRANSLATION] "encroaches massively on the ability of a provincial legislature to exercise as it sees fit its powers with respect to the administration of justice, public safety, the prevention of crime and the social costs associated with crime": A.F., at para. 122; see also para. 115. Quebec relies on several statements made by the Prime Minister and other federal cabinet ministers to the effect that Canada's objective is to put a definite end to the long-gun registry by destroying the data contained in the CFR connected to long guns, and that they will do nothing to support any province or territory who would like to create a local long-gun registry. Quebec also submits that the effect of the destruction of the data will be to make it prohibitively expensive and complicated for the province to create its own long-gun registry. Section 29 of the *ELRA* therefore constitutes an encroachment on the province's powers.

[35] Canada submits that the subject matter of s. 29 is the same as the rest of the *ELRA*: to abolish the long-gun registry and put an end to what it considers an unwarranted intrusion into the private lives of Canadian gun owners. Canada also asserts that the practical effects of the destruction of the data on provinces who want to create their own gun control scheme do not change the pith and substance of the impugned provision.

[36] In our respectful view, the proper characterization of the "matter" of s. 29 of the *ELRA* derives from that of the scheme that it is undoing. In the *Reference re Firearms Act*, this Court held that both the criminal prohibition on possessing an unregistered firearm and the registration scheme provided for in the Firearms Act were valid public safety measures. It determined that the purpose of the scheme was to address "the problem of the misuse of firearms and the threat it poses to public safety": para. 21. It also held that the effects of the scheme supported the conclusion that the Firearms Act is a public safety measure: para. 24. The Court rejected arguments from Ontario and Saskatchewan to the effect that the "matter" of the registration and data retention provisions, which s. 29 seeks to dismantle, was the regulation of property within the province. The Court concluded that the "matter" of these provisions was the same as the rest of the scheme — public safety — and that they should accordingly be classified as being in relation to the subject of criminal law […].

[37] Viewed in this light, the "matter" of s. 29 is simply to determine what will happen with the data collected under a now repealed legislative scheme. Given that the "matter" of the registration scheme, including data collection, was found to be public safety in the *Reference re Firearms Act*, dealing with the collected data following the repeal of the scheme must share that same characterization. It is logical that the *ELRA* provides for what is to happen with the remains of the scheme that it repeals, and destroying the data is the means Parliament adopted to accomplish that purpose. […]

[38] Quebec's submissions, in our respectful view, confuse the subject matter of s. 29 of the *ELRA* with Canada's motives and the means employed by Parliament. In determining the true character of s. 29, we are not concerned with whether destroying the data is good policy, whether Canada's motives were sound, or whether the destruction of that data conflicts with the policy objectives of Quebec. We recognize that the federal government's ultimate goal may well have been to prevent Quebec from creating its own long-gun registry. We also accept that the destruction of the data is the means chosen by Canada because of its irremediable nature. That being said, these considerations are not indicative of a "colourable" purpose from a division of powers' perspective. An intention on the part of one level of government to prevent another from realizing a policy objective it disagrees with does not, on its own, lead to the conclusion that there is an encroachment on the other level of government's sphere of exclusive jurisdiction. The fact that s. 29 of the *ELRA* has the practical effect of making it more difficult financially for Quebec to create its own gun control regime does not […] affect the pith and substance of the provision. […]

[…]

[41] In summary, this Court has already been called upon in the *Reference re Firearms Act* to determine the pith and substance of the scheme enacted by the Firearms Act. In our view, legislation repealing the part of that scheme relating to long guns, including a provision addressing what will happen to the data collected thereunder, must be characterized in the same way. We conclude that s. 29, in essence, relates to public safety — as did the long-gun registration scheme being repealed by the balance of the *ELRA*.

Classification: Does Section 29 Come Within the Criminal Law Power?

[42] Quebec submits that s. 29 cannot be a valid exercise of Parliament's criminal law power because it is not aimed at preventing crime or at decriminalizing any conduct. We disagree and would hold that s. 29 of the ELRA falls under the criminal law head of power.

[43] It is not contested that the repeal of criminal provisions constitutes a valid exercise of the criminal law power: Hogg, at p. 18-21. We accept that there is a factual difference between repealing a criminal provision and providing for what will happen to the data collected under that provision. That being said, we are of the view that there is no significant legal distinction between these two actions in the current case because the data at issue here was collected exclusively through the exercise of the criminal law power. The power to repeal a criminal law provision must logically be wide enough to give Parliament jurisdiction to destroy the data collected for the purpose of a criminal law provision. If a law establishing a scheme requiring collection of data is legislation "in relation to" criminal law, then legislation providing for the destruction of that data on the repeal of the scheme must also be legislation "in relation to" criminal law. This is the case here.

[44] In addition, the prospect that Parliament would not have the power to destroy records under its control and created under a scheme validly enacted by it is concerning. Since we do not see how provinces could have the power to destroy the data contained in the federally enacted long-gun registry, Quebec's position — if it were accepted — would suggest that neither Parliament nor provincial legislatures could legislate to destroy the data of the repealed scheme. We reject this proposition as it would run afoul of the principle that the Constitution Act, 1867 provides for a complete division of powers between both orders of governments […]. There is no topic that cannot be legislated upon […]. Quebec's proposition would also be inconsistent with the notion that Parliament possesses the residual power to legislate on subject matters that do not come within a provincial head of power […].

[45] Therefore, we agree with the Quebec Court of Appeal that s. 29 of the ELRA should be characterized as being in relation to criminal law. It therefore falls within the legislative competence of Parliament.

English version of the reasons of LeBel, Abella, Wagner and Gascon JJ. delivered by

LeBel, Wagner and Gascon JJ. (dissenting) —

I. Introduction

[…]

[50] We are of the opinion that the appeal should be allowed, but only in part. This conclusion is dictated by the exceptional circumstances in which long-gun regulation was implemented in Canada. In our opinion, and this is where we diverge from our colleagues' view, both the collection of the data with respect to long guns and the broader initiatives aimed at regulating the use of such guns were the result of a partnership with the provinces, including Quebec. Where an integrated scheme such as this requires the exercise of both federal and provincial legislative powers, the analytical framework for questions related to the division of powers must be adapted and applied accordingly. Whether the means the federal government adopted to terminate this partnership were constitutional can be measured, in particular, in terms of the effect they will have on its partners' powers.

[51] The *ELRA* is the measure chosen by Parliament to end its participation in long-gun regulation. But s. 29 goes beyond the scope of that purpose, as it requires that the data in question be destroyed without providing for a possibility of their first being transferred to the provincial partners, which prevents the latter from using them in the exercise of their powers. This section has significant effects on Quebec's legislative powers and is not necessary to the achievement of the *ELRA*'s purpose. Section 29 is therefore unconstitutional and should be declared to be invalid.

[52] Although we find that s. 29 is unconstitutional, the AGQ has nonetheless failed to establish a legal basis for his request for a compulsory transfer of the data. The conditions applicable to such a transfer are a matter for the governments concerned, not the courts.

[…]

V. Analysis

[…]

[151] In the novel circumstances of this case, our analysis must be guided by the Constitution's unwritten principles. In particular, we must be careful not to place the principle of federalism and its modern form — co-operative federalism — in jeopardy. As the Court has noted, "the very functioning of Canada's federal system must continually be reassessed in light of the fundamental values it was designed to serve": *Canadian Western Bank*, at para. 23.

[152] The dominant tide with respect to the division of powers admits of overlapping powers and favours co-operation between the different levels of governments. It also supports the validity of schemes established jointly through partnerships developed between members of our federation. In our opinion, our courts must protect such schemes both when they are implemented and when they are dismantled. It would hardly make sense to encourage co-operation and find that schemes established in the context of a partnership are valid while at the same time refusing to take this particular context into account when those schemes are terminated.

[153] In our opinion, the dismantling of a partnership like the one established with respect to gun control must be carried out in a manner that is compatible with the principle of federalism that underlies our Constitution. Thus, Parliament or a provincial legislature cannot adopt legislation to terminate such a partnership without taking into account the reasonably foreseeable consequences of the decision to do so for the other partner. The courts must, in considering whether legislation or a statutory provision having as its purpose to dismantle the partnership is constitutional, be aware of the impact of that legislation or provision on the other partner's exercise of its powers, especially when the partner that terminates the relationship is intentionally bringing about that impact.

[154] In other words, a co-operative scheme from which both the federal and provincial governments benefit cannot be dismantled unilaterally by one of the parties without taking the impact of such a decision on its partner's heads of power into account. To conclude otherwise would be to accept a one-way form of co-operative federalism. That would upset the balance between, on the one hand, the principle of co-operative federalism — which permits a government at one level to pass laws that have an impact on the powers of the other level — and, on the other hand, the doctrine of interjurisdictional immunity — which is inherent in the principle of federalism. The requirement that a government respect the other level's powers is all the more important when the parties have chosen to form a partnership. In a co-operative context, actions of a government at one level can have serious consequences for the other level. It is therefore necessary to show vigilance for the increased risk of disrupting the constitutional balance that is protected by the principle of federalism. The concern here is not to alter the separation of powers in our Constitution through the application of co-operative federalism, but to ensure that it is respected. […]

D. *Constitutionality of Section 29 of the ELRA*

[157] […] It is true that Parliament can repeal or amend legislation it has validly enacted under one of its heads of power: *Reference re Canada Assistance Plan (B.C.)*, 1991 CanLII 74 (SCC), [1991] 2 SCR 525, at pp. 548-49. Nevertheless, the courts must consider the impugned provision or legislation to determine whether, in pith and substance, all that it does in fact is repeal or amend legislation that was validly enacted.

[…]

(1) Analysis Regarding the Pith and Substance of Section 29

[176] In our opinion, in light of its purpose and its effect, s. 29 goes much farther than simply requiring that the data be destroyed. Given that they are to be destroyed with no possibility of their first being transferred to the partners, and therefore without the impact of this measure on the partners' exercise of their powers being taken into account, the section's true purpose is to ensure that the information on long guns can no longer be used for any provincial purposes. As we mentioned above, however, the regulation of long guns and the use of information about them fall primarily within the provinces' power to make laws in relation to property and civil rights. This is all the more true now that the failure to comply with the requirement to register has been decriminalized, because the use of the information has lost its federal aspect. As a result, the pith and substance of s. 29 relates to the provinces' power over property and civil rights.

[177] To be valid, therefore, s. 29 must be integrated into the *ELRA* as a whole. This conclusion makes sense to us, given that whether the CFR is constitutional in fact depends on its being ancillary to a criminal law purpose, as the Court found in the *FA Reference*.

(2) Ancillary Powers Analysis

[178] To determine whether s. 29 of the *ELRA* is constitutional on the basis of the ancillary powers doctrine, we must consider the seriousness, or extent, of its encroachment on provincial powers, bearing in mind that the provincial power to make laws in relation to property and civil rights is a head that should not be intruded upon lightly: *General Motors*, at pp. 672-73. We should mention that s. 29 may also encroach on the provinces' powers in relation to the administration of justice, as can be seen from our analysis below.

[179] The seriousness of the encroachment of s. 29 must be analyzed on the basis of the specific factual and legal context of the instant case, which includes the existence of the partnership between the federal government and Quebec.

[…]

[184] [I]n terms of both its nature and its effects, s. 29 causes a substantial encroachment on provincial jurisdiction. In such a case, the Court's past decisions tell us that for the encroachment of s. 29 to be found to be ancillary to the *ELRA*, the degree to which the section is integrated into the Act must be high, that is, it must satisfy the necessity or "integral part" criterion: *General Motors*, at p. 671; see also *Northern Telecom Ltd. v. Communications Workers of Canada*, 1979 CanLII 3 (SCC), [1980] 1 SCR 115; *Clark v. Canadian National Railway Co.*, 1988 CanLII 18 (SCC), [1988] 2 SCR 680; *R. v. Thomas Fuller Construction Co. (1958) Ltd.*, 1979 CanLII 187 (SCC), [1980] 1 SCR 695.

[…]

[186] In our opinion, the destruction of the data in question in s. 29 cannot be considered necessary to the abolition of the requirement to register long guns. These two purposes are distinct. Moreover, as we mentioned above, the earlier bills did not provide for the destruction of these data.

[187] We also doubt that s. 29 can be linked to the *ELRA* on the basis of a test of rationality. Although the destruction of data in which the federal government is no longer interested might seem rational at first glance, we find it hard to reconcile the manner in which their destruction was provided for with the desire certain provinces might show to maintain a registry within the limits of their powers. The AGC in fact acknowledged at the hearing that what was problematic was not really the fact of transferring the data to the government of Quebec, but that of transmitting personal information about long-gun owners: transcript, at p. 55. We have already rejected this argument as an explanation of the refusal to transfer the data.

[188] Finally, we agree with Blanchard J. that Parliament's declared intention to cause harm to the other level of government cannot be disregarded. This Court had written the following in the *FA Reference*:

> This law does not allow the federal government to significantly expand its jurisdictional powers to the detriment of the provinces. There is no colourable intrusion into provincial jurisdiction, either in the sense that Parliament has an improper motive or that it is taking over provincial powers under the guise of the criminal law. [para. 53]

In this appeal, we cannot say the same thing about the *ELRA*, as the exact opposite is true.

[189] Although it is not necessary to take this into account for the purposes of our analysis, the intention to cause harm is all the more relevant in that it arises in a context in which Quebec and the federal government had agreed to act jointly, in the spirit of co-operative federalism, a principle whose source lies in the growing need for intergovernmental co-operation in order to enable the Canadian federation to act to address questions of a polycentric nature. In this context, it is hard to imagine how a provision whose purpose is to put an end to this co-operation and that is enacted with an intention to cause harm to a partner can be rational.

[190] The foregoing analysis leads to an inescapable conclusion: because of its pith and substance, s. 29 of the *ELRA* does not fall within the federal criminal law power and is not ancillary to the *ELRA*, which is otherwise valid. The section has not therefore been shown to be constitutionally valid. In our opinion, a legislative measure cannot be found to be valid that (1) does not fall within the federal criminal law power and that (2) thwarts, by the substantial encroachment it causes, the corollary exercise of provincial powers that flowed from the partnership. To conclude otherwise would be inconsistent with the principles of federalism.

[191] Our conclusion does not necessarily mean that Parliament cannot enact legislation to destroy the data. What we are saying is merely that to destroy the data, as provided for in s. 29, without first offering to transfer them is unconstitutional. This conclusion is therefore not incompatible with the principle of parliamentary sovereignty as set out in s. 42 of the *Interpretation Act*, R.S.C. 1985, c. I-21, as parliamentary sovereignty is applicable only where Parliament has exercised one of its legislative powers validly, that is, in a manner consistent with the Constitution. That is not the case here.

[Justices LeBel, Wagner, and Gascon would have limited the resulting declaration of invalidity to data regarding long guns that have a connection with Quebec. They declined, however, to issue a declaration that Quebec is entitled to the data, leaving the precise form of the "termination of their joint venture" to the two governments to negotiate.]

For a discussion of the principle of cooperative federalism as it arises in this case, see Kate Glover, "Structural Cooperative Federalism" (2016) 76 SCLR (2d) 45 and Eric M Adams, Judging the Limits of Cooperative Federalism" (2016) 76 SCLR (2d) 27.

The next section of this chapter approaches the interaction of federal and provincial legislative authority in the context of the criminal power from the other direction—by examining provincial power over morality and public order.

3 The provincial power over morality and public order

Section 92(15) of the *Constitution Act, 1867* confers on provinces the power to impose punishment "by Fine, Penalty or Imprisonment". The section empowers provinces to impose these punishments for the purpose of enforcing laws made in relation to any powers within provincial jurisdiction. As you have seen, the provincial powers to legislate in respect of property and civil rights (section 92(13)) and matters of a merely local nature (section 92(16) are broad. Moreover, as you will see in the cases that follow, courts have found that provinces can validly legislate under those powers, when regulating matters relating to morality and public order. As a consequence, provinces have potentially broad powers to legislate over matters that seem to overlap with some of the criminal law purposes identified in the cases above. Provinces can, moreover, enforce such legislation with punishment. Where, then, do courts draw the dividing line between the federal criminal law power and the provincial powers to regulate over morality and public order? The debate between the majority and dissent in the following case illustrates the challenges involved in that line-drawing exercise.

3.1 *Nova Scotia Board of Censors v. McNeil*

3.1.1 Dissent

***Nova Scotia Board of Censors v. McNeil*,** 1978 CanLII 6 (SCC), **[1978] 2 SCR 662**

The judgment of Laskin C.J. and Judson, Spence and Dickson JJ. was delivered by

THE CHIEF JUSTICE *(dissenting)*—The Attorney General of Nova Scotia appeals, with leave of this Court, from a judgment of the Appeal Division of the Nova Scotia Supreme Court declaring, by unanimous decision of the four members of the Appeal Division, that (1) it was *ultra vires* the Legislature of Nova Scotia to enact, by use of the word "prohibiting", s. 2(1)(b)(g) and s. 3(2)(3) of the *Theatres and Amusements Act,* R.S.N.S. 1967, c. 304, as amended, and (2) Regulations 4, 5(1), 13, 18 and 32, made pursuant to the Act were also *ultra vires*.

The issue in this appeal which gave rise to the declaration of invalidity was precipitated by the banning by the Amusements Regulation Board (a tribunal established under the aforementioned Act and known prior to May 15, 1972, as the Nova Scotia Board of Censors) of the film "Last Tango in Paris" from public viewing in theatres or other places in the Province. The ban was announced on or about January 8, 1974. No reasons were given for the prohibition and, indeed, it was one of the submissions of the Attorney General of Nova Scotia that reasons were not obligatory because there was no requirement under the Act or Regulations that the Board give reasons. […]

In this Court, following the granting of leave to appeal, the constitutional question to be considered was formulated as follows by an order of June 4, 1976, amended by an order of July 5, 1976:

> Are Sections 2(1)(b), 2(1)(g), 3(2) and 3(3) of the Theatres and Amusements Act, R.S.N.S., 1967 c, 304 and Regulations 4, 5(1), 13, 18 and 32 made under the provisions of that Act, intra vires the Legislature of Nova Scotia?

[…]

The following are the provisions of the Act and Regulations which are relevant to the determination of the constitutional question that arises in this case:

> Provisions of the Act
>
> 1 In this Act,
>
> (g) "performance" means any theatrical, vaudeville, musical or moving picture performance or exhibition for public entertainment, or any other performance or exhibition for public entertainment, whether or not of the kind hereinbefore enumerated;
>
> 2 (1) The Governor in Council may from time to time make regulations for or in relation to or incidental to any one or more or to any part or parts of any one or more of the following matters:
>
> […]
>
> (b) regulating and licensing or prohibiting any performance or performances in a theatre or theatres, and any amusement or amusements or recreation or recreations in a place or places of amusement, and any amusement or amusements, recreation or recreations for participating or indulging in which by the public or some of them, fees are charged by any amusement owner;
>
> […]
>
> (g) prohibiting or regulating the exhibition, sale, lease, and exchange of films;
>
> …
>
> (3) The Board may in its absolute discretion revoke or suspend any license issued under the authority of this Act or of the regulations.
>
> 3(1) ...
>
> (2) The Board shall have power to permit or to prohibit

(a) the use or exhibition in Nova Scotia or in any part or parts thereof for public entertainment of any film;

(b) any performance in any theatre;

(c) any amusement in a place of amusement or any amusement or recreation for participating or indulging in which by the public or some of them fees are charged by any amusement owner.

(3) Any power mentioned in subsection (2) may be exercised by the Board, notwithstanding that the Board has previously permitted the use or exhibition of the film, or that a license respecting the theatre is in force.

(4) There shall be an appeal from the Board to the person, body or court designated, and subject to the conditions prescribed by regulation of the Governor in Council.

…

(8) Any person who violates this Act or who violates any of the regulations made under this Act, shall be liable to a penalty of not less than twenty dollars or more than two hundred dollars.

…

20 (1) Where the Board is satisfied after due inquiry that any film exchange or theatre owner has violated this Act or any regulations made hereunder the Board may:

(a) revoke or cancel any license of such film exchange; or

(b) revoke or cancel any license of such theatre owner; o

(c) attach to any of such licenses such terms, conditions or restrictions as it deems advisable.

…

Provisions of the Regulations

…

2. An appeal from a decision of the Board shall be to the Governor in Council.

3. (1) No theatre owner shall give any performance in his theatre unless he holds in respect of the theatre a license which is in force. […]

4. No theatre owner shall permit any performance to be given in his theatre unless the same is authorized under the Regulations.

5. (1) No theatre owner shall permit the use or exhibition in his theatre of any film which has not been authorized by the Board.

13. No person shall advertise any performance unless the permission of the Board has first been obtained.

16. (1) No 35 mm film exchange shall carry on business in the Province unless it holds a license which is in force...

18. (1) No film shall be used or exhibited in the Province unless the film has been submitted to the Board and the Board has authorized the use or exhibition thereof.

(2) The Board may authorize or prohibit the use or exhibition of any film may authorize the use of any film with such changes as it may direct. No film shall be so changed without the consent of the film exchange.

(3) The Board shall give a certificate in respect of every film which it has authorized for use or exhibition in the Province.

(4) The Board may at any time or from time to time re-examine any film and may prohibit the use or exhibition of any film which it has previously authorized for use or exhibition or may permit its use or exhibition with such further changes as the Board may direct.

(5) No film exchange shall use, exhibit, sell, lease or exchange any film unless a certificate of the Board has been issued in respect thereof and any film which is used, exhibited, sold, leased or exchanged in violation of this regulation may be confiscated by the Board.

32. (1) No theatre owner or amusement owner shall permit any indecent or improper performance in his theatre or place of amusement.

(2) No performer shall take part in any indecent or improper performance.

(3) The Board may from time to time define what constitutes an indecent or improper performance within the meaning of these Regulations.

[…]

The issues before this Court in the present case do not engage the licensing authority of the Amusements Regulation Board, they do not relate to any film classification system, they are in no way concerned with the safety or suitability of premises in which films are sought to be exhibited or presented. The only inference that can be, indeed must be, drawn from the bare facts on the record is that the Board presumes to protect the general public from exposure to certain kinds of films, to insulate members of the public from viewing those films because, in the Board's allegedly unchallengeable judgment, the general public should not see them. Put another way, the Board asserts an unlimited statutory authority to determine for the general public what films are fit for public viewing.

[…]

Nova Scotia is not the only Province where censorship of films is left at large to a tribunal upon whose judgment the public is required to rely as to what may or may not be seen. […]

In those Provinces where criteria were set out in film censorship legislation, general terms were used in giving direction to film censors to determine the fitness of films for public viewing. For example, they were to determine whether the films depicted "scenes of an immoral or obscene nature" or suggested "lewdness or indecency" or were "injurious to the morals of the city or any citizen thereof" or offered "evil suggestions to the minds of children" or were against the public welfare or likely to offend the public. […]

I have referred to provincial censorship legislation in the other Provinces not to pass any judgment on any of it but simply to show the various ways in which movie censorship is being handled in the various Provinces, the more recent legislation having moved to a classification scheme and to advertising control. The former is not involved in the present case and the latter in only a supplementary way.

What is involved, as I have already noted, is an unqualified power in the Nova Scotia Board to determine the fitness of films for public viewing on considerations that may extend beyond the moral and may include the political, the social and the religious. Giving its assertion of power the narrowest compass, related to the film in the present case, the Board is asserting authority to protect public morals, to safeguard the public from exposure to films, to ideas and images in films, that it regards as morally offensive, as indecent, probably as obscene.

The determination of what is decent or indecent or obscene in conduct or in a publication, what is morally fit for public viewing, whether in films, in art or in a live performance is, as such, within the exclusive power of the Parliament of Canada under its enumerated authority to legislate in relation to the criminal law. […]

It is beside the point to urge that morality is not co-extensive with the criminal law. Such a contention cannot of itself bring legislation respecting public morals within provincial competence. Moreover, the federal power in relation to the criminal law extends beyond control of morality, and is wide enough to embrace anti-social conduct or behaviour and has, indeed, been exercised in those respects. Films have been held to fall within s. 159 of the *Criminal Code,* dealing with obscene publications […]. I draw attention as well to s. 163 of the *Criminal Code* dealing with the presentation or giving of immoral, indecent or obscene performances, entertainments or representations, and it seems to me that if films are within s. 159 they are *a fortiori* within s. 163. […]

This is not a case where civil consequences are attached to conduct defined and punished as criminal under federal legislation […], but rather a case where a provincially authorized tribunal itself defines and determines legality, what is permissible and what is not. This, in my view, is a direct intrusion into the field of criminal law. At best, what the challenged Nova Scotia legislation is doing is seeking to supplement the criminal law enacted by Parliament, and this is forbidden […].

It does not follow from all of the foregoing that provincial legislative authority may not extend to objects where moral considerations are involved, but those objects must in themselves be anchored in the provincial catalogue of powers and must, moreover, not be in conflict with valid federal legislation. It is impossible in the present case to find any such anchorage in the provisions of the Nova Scotia Statute that are challenged, and this apart from the issue of conflict which, I think, arises in relation to ss. 159 and 163 of the Criminal Code. What is asserted, by way of tying the challenged provisions to valid provincial regulatory control, is that the Province is competent to licence the use of premises, and entry into occupations, and may in that connection determine what shall be exhibited in those premises. This hardly touches the important issue raised by the present case and would, if correct, equally justify control by the Province of any conduct and activity in licensed premises even if not related to the property aspect of licensing, and this is patently indefensible. Moreover, what is missing from this assertion by the appellant is a failure to recognize that the censorship of films takes place without relation to any premises and is a direct prior control of public taste.

[…]

For all the foregoing reasons, I would dismiss this appeal and answer the constitutional question in the negative. […]

3.1.2 Majority

The judgment of Martland, Ritchie, Pigeon, Beetz and de Grandpré JJ. was delivered by

RITCHIE J.— […]

I should say that I have had the benefit of reading the reasons for judgment prepared for delivery by the Chief Justice in which he has recited the relevant sections of the Act and of the Regulations made thereunder […].

In all such cases, the Court cannot ignore the rule implicit in the proposition stated as early as 1878 by Mr. Justice Strong in *Severn v. The Queen,* at p. 103, that any question as to the validity of provincial legislation is to be approached on the assumption that it was validly enacted. As was said by Fauteux J., as he then was, in the *Reference re The Farm Products Marketing Act,* at p. 255:

> There is *a presumptio juris* as to the existence of the *bona fide* intention of a legislative body to confine itself to its own sphere and a presumption of similar nature that general words in a statute are not intended to extend its operation beyond the territorial authority of the Legislature.

When the Act and the Regulations are read as a whole, I find them to be primarily directed to the regulation, supervision and control of the film business within the Province of Nova Scotia, including the use and exhibition of films in that Province. To this end the impugned provisions are in my view enacted for the purpose of reinforcing the authority vested in a provincially appointed Board to perform the task of regulation which includes the authority to prevent the exhibition of films which the Board, applying its own local standards, has rejected as unsuitable for viewing by provincial audiences. This legislation is concerned with dealings in and the use of property (i.e. films) which take place wholly within the Province […].

It will be seen that, in my opinion, the impugned legislation constitutes nothing more than the exercise of provincial authority over transactions taking place wholly within the province and it applies to the "regulating, exhibition, sale and exchange of films" whether those films have been imported from another country or not.

We are concerned however in this appeal with a decision of the Appeal Division of the Supreme Court of. Nova Scotia in which the majority quite clearly struck down the legislation as *ultra vires* on the sole ground that it was concerned with morality and as such constituted an invasion of the criminal law field reserved to the exclusive legislative authority of Parliament under s. 91(27) of the *B.N.A. Act.*

[…]

In the present context, the question of whether or not the impugned legislation encroaches on the criminal law authority is, in my opinion, best approached in light of the statement made by Kerwin, C.J., in the course of his reasons for judgment in the *Lord's Day Alliance*, at p. 503, where he said:

> In constitutional matters there is no general area of criminal law and in every case the pith and substance of the legislation in question must be looked at.

Under the authority assigned to it by s. 91(27), the Parliament of Canada has enacted the Criminal Code, a penal statute the end purpose of which is the definition and punishement of crime when it has been proved to have been committed.

On the other hand, the *Theatres and Amusements Act is* not concerned with creating a criminal offence or providing for its punishment, but rather in so regulating a business within the Province as to prevent the exhibition in its theatres of performances which do not comply with the standards of propriety established by the Board.

The areas of operation of the two statutes are therefore fundamentally different on dual grounds. In the first place, one is directed to regulating a trade or business where the other is concerned with the definition and punishment of crime; and in the second place, one is preventive while the other is penal.

As the decision of the Appellate Division depends upon equating morality with criminality, I think it desirable at this stage to refer to the definitive statement made by Lord Atkin in this regard in the course of his reasons for judgment in *Proprietary Articles Trade Association v. Attorney-General of Canda*, where he said, at p. 324:

> Morality and criminality are far from coextensive; nor is the sphere of criminality necessarily part of a more extensive field covered by morality—unless the moral code necessarily disapproves all acts prohibited by the State, in which case the argument moves in a circle. It appears to their Lordships to be of little value to seek to confine crimes to a category of acts which by their very nature belong to the domain of 'criminal jurisprudence';…

I share the opinion expressed in this passage that morality and criminality are far from coextensive and it follows in my view that legislation which authorizes the establishment and enforcement of a local standard of morality in the exhibition of films is not necessarily "an invasion of the federal criminal field" […].

As I have already said, however, I take the view that the impugned legislation is not concerned with criminality. The rejection of films by the Board is based on a failure to conform to the standards of propriety which it has itself adopted and this failure cannot be said to be "an act prohibited with penal consequences" by the Parliament of Canada either in enacting the *Criminal Code* or othewise [sic]. This is not to say that Parliament is in any way restricted in its authority to pass laws penalizing immoral acts or conduct, but simply that the provincial government in regulating a local trade may set its own standards which in no sense exclude the operation of the federal law.

There is, in my view, no constitutional barrier preventing the Board from rejecting a film for exhibition in Nova Scotia on the sole ground that it fails to conform to standards of morality which the Board itself has fixed notwithstanding the fact that the film is not offensive to any provision of the Criminal Code; and, equally, there is no constitutional reason why a prosecution cannot be brought under s. 163 of the *Criminal Code* in respect of the exhibition of a film which the Board of Censors has approved as conforming to its standards of propriety.

[…]

It will be seen that in my view the impugned legislation "has for its true object, purpose, nature and character" the regulation and control of a local trade and that it is therefore valid provincial legislation.

[…]

As I have said, I take the view that the legislation here in question is in pith and substance directed to property and civil rights and therefore valid under s. 92(13) of the British North America Act, but there is a further and different ground on which its validity might be sustained. In a country as vast and diverse as Canada, where tastes and standards may vary from one area to another, the determination of what is and what is not acceptable for public exhibition on moral grounds may be viewed as a matter of a "local and private nature in the Province" within the meaning of s. 92(16) of the B.N.A. Act, and as it is not a matter coming within any of the classes of subject enumerated in s. 91, this is a field in which the Legislature is free to act.

According to the majority in *McNeil*, provincial laws in relation to morality are valid if they can be classified as falling under provincial heads of powers. In the following judgment, the Court held that a municipal by-law could not be classified in this way.

3.2 *Westendorp v. the Queen*

Westendorp v. the Queen**,** 1983 CanLII 1 (SCC), **[1983] 1 SCR 43**

The judgment of the Court was delivered by

1. THE CHIEF JUSTICE--This appeal, which is here by leave of this Court, arises out of a charge against the appellant of being on a street for the purpose of prostitution in contravention of s. 6.1(2) of By-law 9022 of the City of Calgary, as enacted by amending By-law 25M81. The accused was acquitted at her trial on the ground, *inter alia*, that the impugned by-law was unconstitutional as invading federal authority in relation to the criminal law as well as federal legislation in that area. […]

The Facts

2. The facts are not in dispute. There is no question but that the accused and a female friend approached a plain clothes officer on a city street and solicited his interest to engage in intercourse or fellatio for stated payments. They moved with him to a car on a parking lot where another plain clothes officer was waiting and both women were then arrested. The charge followed, reading that the accused Westendorp was on the street for the purpose of prostitution.

[…]

4. […] The central question is, of course, that of constitutional validity, and I turn to […] a consideration of the terms of the challenged by-law.

The Issues

5. Three issues were raised in the appeal, of which only the constitutional issue need be addressed. Of the two which may be set aside, one was whether the power to enact this by-law was delegated to the municipality as allegedly conferred by the provincial legislature. I am prepared to proceed in this respect on the supposition that the challenged by-law was authorized under provincial legislation. […]

7. What, therefore, is left for determination by this Court is whether the challenged by-law s. 6.1(1) is outside the powers assigned to the Province, invading federal legislative authority. In my opinion, for the reasons expressed below, the by-law is *ultra vires* as invading exclusive federal power in relation to the criminal law.

The Calgary By-law and Section 6.1 thereof

8. By-law 9022, first enacted in 1974, and cited as The Street By-law, is an extensive regulatory and prohibitory enactment relating to the use of city streets. I shall come to some of its details shortly. As it first stood, it contained no provision respecting prostitution although it did embrace control of certain street activities such as soliciting or carrying on business, trades or occupations on any street. On June 25, 1981, city council amended By-law 9022 by enacting By-law 25M81, adding s. 6.1 to the master by-law. Clearly, it had to stand on its own terms because there was no suggestion that prior to its enactment what it encompassed could in any way be subsumed under any other terms of the master by-law.

[…]

11. Section 6.1, when separately enacted under By-law 25M81, was preceded by a heading and a lengthy recital which were as follows:

> Being a By-law of The City of Calgary to Amend By-law Number 9022 to Prohibit Use of City Streets by those Approaching or being Approached by Others for the Purpose of Prostitution
>
> > WHEREAS subsection (3) of section 169 of The Municipal Government Act provides that subject to every other act, a municipal council has control and management of, among other things, the public highways, roads, streets, lanes, alleys and bridges within the municipality including the air space above;

> AND WHEREAS subsection (1) of section 14 of The Highway Traffic Act 1975 provides, among other things, that a municipal council may make by-laws controlling and regulating the use of all highways, sidewalks and other public places and delegating to the chief constable or municipal commissioner any powers in connection therewith;
>
> AND WHEREAS there are persons who locate themselves upon, and hold themselves out on City streets for the purpose of prostitution;
>
> AND WHEREAS there are persons who approach or are approached by others on City streets for the purpose of prostitution;
>
> AND WHEREAS these above mentioned persons often collect in groups on City streets and attract crowds on City streets, vehicular and pedestrian;
>
> AND WHEREAS the above mentioned activities are a source of annoyance and embarrassment to members of the public and interfere with their right and ability to move freely and peacefully upon the City streets;
>
> AND WHEREAS it is expedient to provide by by-law that the highways, streets, sidewalks, alleys, lanes and public places of the City shall not be used for the purpose of holding out or offering to other persons lawfully using the streets services of a prostitute and to amend by-law number 9022, The Street By-law for this purpose;

This heading and recital do not appear in s. 6.1 as it was subsumed under By-law 9022 but it was relied on to support the challenged by-law.

12. Section 6.1 as found in by-law 9022 reads:

6.1 (1) In this section

(a) "offering" includes but is not limited to the holding out, proposing, making available or expressing willingness to participate in a sexual service with a person for payment;

(b) "prostitution" means the sale or offering for sale of sexual services and includes the purchase or offering to purchase sexual services;

(c) "sexual services" include but are not limited to activities of a sexual nature for amusement, gratification, pleasure, stimulation, titillation or otherwise of any person;

(2) No person shall be or remain on a street for the purpose of prostitution.

(3) No person shall approach another person on a street for the purpose of prostitution.

(4) Any person contravening the provisions of this section is guilty of an offence and is liable on summary conviction;

(a) for a first offence to a fine of not less than one hundred dollars ($100.00) and not more than five hundred dollars ($500.00) or in default of payment of the fine and costs, to imprisonment for not more than sixty (60) days; and

(b) for a second or subsequent offence to a fine of not less than three hundred dollars ($300.00) and not more than five hundred dollars ($500.00) or in default of payment of the fine and costs to imprisonment for not more than six (6) months unless in either case the fine and costs, including the cost of committal are sooner paid.

[…]

Terms of Section 6.1: Its Pith and Substance

16. It is patent, from a comparison of s. 6.1 with ss. 3, 4 and 5 of the by-law, that s. 6.1 is of a completely different order from its preceding sections and, certainly, from all those succeeding it. It is specious to regard s. 6.1 as relating to control of the streets. If that were its purpose, it would have dealt with congregation of persons on the streets or with obstruction, unrelated to what the congregating or obstructing persons say or otherwise do. As the by-law stands and reads, it is activated only by what is said by a person, referable to the offer of sexual services. For persons to converse together on a street, as did the two women and the police officer here, and to discuss a recent or upcoming sporting event or a concert or some similar event would not attract liability. It is triggered only by an offer of sexual services or a solicitation to that end. There is no violation of s. 6.1 by congregation or obstruction *per se*; the offence arises only by proposing or soliciting another for prostitution. To remain on a street for the purpose of prostitution or to approach another for that purpose is so patently an attempt to control or punish prostitution as to be beyond question. […] There is no property question here, no question even of interference with the enjoyment of public property let alone private property.

17. Nor can any comparison be made between this case and the judgment of this Court in *Attorney General for Canada and Dupond v. Montreal* […] which related to a municipal anti-demonstration by-law which was also emphasized as being of a temporary nature. That by-law related plainly to parades and assemblies on the streets, different from s. 6.1 of the present case.

18. The question remains, however, whether, recognizing the differences in principle between the present case and the three cases in this Court mentioned above, there is nonetheless constitutional scope for the valid enactment of the challenged by-law. This brings me to consider the reasons given by Kerans J.A. for upholding the by-law. He construed it as an attempt to deal with a public nuisance. This is not how the offence under the by-law is either defined or charged. The recitals in the by-law as enacted by By-law 25M81 cannot be used to justify substantive charging sections when those sections contain a different formulation and their own definition of an offence. It is these aspects that present the constitutional issue.

19. In examining the submission of counsel for the accused that the by-law was a colourable attempt to deal, not with a public nuisance but with the evil of prostitution, Kerans J.A. observed that the evil of prostitution is a matter of public morality and, if the pith and substance of this legislation were an attack on this evil, it might well be a matter beyond the competence of the Legislature of Alberta. He then went on to say that "the by-law does not strike at prostitution as such; it does not seek to suppress the market for sexual favours; it seeks only to protect the citizens who use the streets from the irritation and embarrassment of being unwilling participants in that market".

20. This assessment of "pith and substance" is to me baffling when regard is had to the terms of s. 6.1. It becomes doubly baffling when Kerans J.A. says this:

> I concede that the Calgary legislation makes it an offence for a prostitute simply to enter upon a street for the purpose of prostitution, i.e. without yet doing anything. But this is not an attack on prostitution as such. This is an attempt, by preventative measure, to regulate the activities of the prostitutes and their customers on the streets. It is, as it were, a pre-emptive strike. And as such is troubling. But it is insufficiently troubling to change the pith and substance of the legislation.

21. What appears to me to emerge from Kerans J.A.'s consideration of the by-law is to establish a concurrency of legislative power, going beyond any double aspect principle and leaving it open to a province or to a municipality authorized by a province to usurp exclusive federal legislative power. If a province or municipality may translate a direct attack on prostitution into street control through reliance on public nuisance, it may do the same with respect to trafficking in drugs. And, may it not, on the same view, seek to punish assaults that take place on city streets as an aspect of street control!

22. However desirable it may be for the municipality to control or prohibit prostitution, there has been an overreaching in the present case which offends the division of legislative powers. I would, accordingly, allow the appeal, set aside the judgment of the Alberta Court of Appeal and restore the acquittal directed by the Provincial Court Judge.

Appeal allowed.

The Court in *Westendorp* cited to the case of *Dupond*. The majority in *Dupond* emphasized the purely local nature of the activities that were prohibited by the municipal regulations in that case and upheld the regulations as falling within provincial jurisdiction. The Court in *Westendorp* distinguished the bylaw in *Dupond* from the one at issue in *Westendorp*, by stating that the former bylaw was "plainly related to parades and assemblies on the streets." Is that distinction convincing? Can you articulate a principled distinction between the outcome in *Westendorp* and the results in *Dupond* and *McNeil*? Do the cases primarily turn on how the different courts applied the pith and substance analysis or did the courts differ in how they understood the jurisdictional limits on the provincial powers to regulate public order and morality? For an analysis of these three cases, see Charles Bosecke, "*Westendorp*—The Demise of *McNeil* and *Dupond*" (1984) 22:3 Alb L Rev 525 .

The majority of the Supreme Court in *McNeil* and the Court of Appeal in *Westendorp* described the laws and regulations in the respective cases as having preventative and not punitive purposes. The Court in the case that follows also characterized the impugned provincial legislation as preventative. What role does that characterization play in the Court's coming to the conclusion that the legislation is *intra vires*?

3.3 *Chatterjee v Ontario (Attorney General)*

***Chatterjee v Ontario (Attorney General)*,** 2009 SCC 19 (CanLII), **[2009] 1 SCR 624**

The judgment of the Court was delivered by

[1] BINNIE J. — The question raised on this appeal is whether the […] Civil Remedies Act, 2001 or CRA […], which authorizes the forfeiture of proceeds of unlawful activity, is *ultra vires* Ontario because it encroaches on the federal criminal law power. In my view, the CRA is valid provincial legislation.

[2] The argument that the CRA is *ultra vires* is based in this case on an exaggerated view of the immunity of federal jurisdiction in relation to matters that may, in another aspect, be the subject of provincial legislation. Resort to a federalist concept of proliferating jurisdictional enclaves (or "interjurisdictional immunities") was discouraged by this Court's decisions […] and should not now be given a new lease on life. As stated in *Canadian Western Bank*, "a court should favour, where possible, the ordinary operation of statutes enacted by *both* levels of government" […].

[3] The present appeal provides an opportunity to apply the principles of federalism affirmed in those recent cases. The *CRA* was enacted to deter crime and to compensate its victims. The former purpose is broad enough that both the federal government (in relation to criminal law) and the provincial governments (in relation to property and civil rights) can validly pursue it. The latter purpose falls squarely within provincial competence. Crime imposes substantial costs on provincial treasuries. Those costs impact many provincial interests, including health, policing resources, community stability and family welfare. It would be out of step with modern realities to conclude that a province must shoulder the costs to the community of criminal behaviour but cannot use deterrence to suppress it.

[4] Moreover, the CRA method of attack on crime is to authorize *in rem* forfeiture of its proceeds and differs from both the traditional criminal law which ordinarily couples a prohibition with a penalty […]. The appellant's answer, however, is that the effect of the CRA *in rem* remedy just adds to the penalties available in the criminal process, and as such the CRA invalidly interferes with the sentencing regime established by Parliament. It is true that forfeiture may have *de facto* punitive effects in some cases, but its dominant purpose is to make crime in general unprofitable, to capture resources tainted by crime so as to make them unavailable to fund future crime and to help compensate private individuals and public institutions for the costs of past crime. These are valid provincial objects. […]

I. Facts

[5] The appellant was stopped by York Regional Police on March 27, 2003, because his car had no front licence plate. A computer search showed the police that he was in breach of his recognizance, which required him to reside in Ottawa, some 400 kilometres away. When the appellant acknowledged that he was then living in Thornhill, just north of Toronto, the officers arrested him and, incidental to the arrest, searched his car. They discovered $29,020 in cash, as well as an exhaust fan, a light ballast and a light socket. According to police, all of these items smelled of marijuana, although no marijuana was found.

[6] The appellant was never charged with any offence in relation to the money, items, or any drug related activity. However, on May 13, 2003, the Attorney General of Ontario brought an interlocutory motion under ss. 4 and 9 of the CRA to preserve the seized money and equipment. A preservation order was granted.

[7] On May 16, 2003, the Attorney General brought an application under ss. 3 and 8 of the CRA for forfeiture of the seized money as proceeds of unlawful activity and of the items as instruments of unlawful activity. In response, the appellant challenged the CRA's constitutionality: that challenge eventually led to this appeal.

[…]

V. Analysis

[15] Crime imposes significant costs at every level of government: federal, provincial and municipal. Impaired driving is a Criminal Code offence but carnage on the roads touches numerous matters within provincial jurisdiction including health, highways, automobile insurance and property damage. The cost associated with drug abuse is another example. Each level of government bears a portion of the costs of criminality and each level of government therefore has an interest in its suppression. The appellant's argument is, however, that the CRA adopts a method of fighting crime and compensating its victims that is not constitutionally permissible in relation to federal offences. The forfeiture of property tainted by crime in relation to *federal* offences, he says, "encroaches directly on the federal government's exclusive jurisdiction over criminal law and is *ultra vires*" […]. It is apparent that provincial objectives *can* become so entangled in the enforcement of criminal law as to be declared *ultra vires*. […] The appellant's contention that the CRA is an invalid attempt to increase the penalty for federal offences therefore requires careful scrutiny.

[…]

[After examining the title and several clauses in the CRA that spoke to its purposes, Binnie J. drew the following conclusion about the purpose of the Act.]

[18] The internal evidence of purpose thus suggests a credible intent to recover from the proceeds of crime found in Ontario the costs to victims and to the public of criminality that would otherwise fall on the provincial treasury. Forfeiture is the transfer of property from the owner to the Crown. Forfeiture does not result in the conviction of anybody for any offence. On its face, therefore, the CRA targets property rights.

[…]

[Justice Binnie then turned to assess the effects of the CRA and identified its pith and substance.]

[23] In essence, therefore, the CRA creates a property-based authority to seize money and other things shown on a balance of probabilities to be tainted by crime and thereafter to allocate the proceeds to compensating victims of and remedying the societal effects of criminality. The practical (and intended) effect is also to take the profit out of crime and to deter its present and would-be perpetrators.

[…]

[Justice Binnie held that the CRA was within provincial jurisdiction, on two grounds.]

[25] As stated, the CRA fits neatly into the provincial competence in relation to Property and Civil Rights in the Province (Constitution Act, 1867, s. 92(13)) or Matters of a merely local or private Nature in the Province (s. 92(16)). The Attorneys General rely on Martineau v. M.N.R., 2004 SCC 81, [2004] 3 SCR 737, for the proposition that "civil mechanisms include the seizure as forfeit of goods and conveyances" (para. 27).

[…]

[Justice Binnie further noted the Court's jurisprudence provides "many examples of the interplay between provincial legislative jurisdiction over property and civil rights and federal legislative jurisdiction over criminal law and procedure." (para 26). He framed the issue in the following way.]

[29] The question, however, is at what point does a provincial measure designed to "suppress" crime become itself "criminal law"? There will often be a degree of overlap between measures enacted pursuant to the provincial power (property and civil rights) and measures taken pursuant to the federal power (criminal law and procedure). In such cases it is necessary for the Court to identify the "dominant feature" of an impugned measure. If, as is argued by the Attorneys General here, the dominant feature of the CRA is property and civil rights, it will not be invalidated because of an "incidental" intrusion into the field of criminal law.

Justice Binnie concluded that although the CRA may have had incidental effects on criminal law and procedure, it was valid because it was, in pith and substance, enacted in relation to the provincial powers he identified above. For an assessment of *Chatterjee*, see Carissima R Mathen, "Developments in Constitutional Law: The 2008-2009 Term" (2009) 48 SCLR (2d) 71.

This chapter concludes with a case in which the Court again considered provisions of a provincial law that interacted with federal legislation. In the process, the Court traced the boundary between Parliament's jurisdiction over criminal law matters and the power of the provinces to legislate in respect of public order and morality. The Court also applied the paramountcy doctrine and concluded that there was no conflict between the federal and provincial laws at issue in the case.

3.4 *Murray-Hall v. Quebec (Attorney General)*

***Murray-Hall v. Quebec (Attorney General)*, 2023 SCC 10**

THE CHIEF JUSTICE –

[1] A few years ago, the federal Parliament passed legislation relating to cannabis. Under that legislation, it is prohibited for an individual to possess or cultivate more than four cannabis plants in the individual's home. The provinces and territories subsequently passed their own legislation to regulate such practical matters as the manner in which cannabis was to be sold and stored. Through a broad legislative initiative that included the creation of a monopoly on the sale of cannabis, the Quebec legislature, for its part, enacted provisions that completely prohibit the possession and cultivation of cannabis plants at home, regardless of the number of plants. What must be determined in this appeal is whether the Quebec provisions are constitutionally valid in light of the division of powers and, if so, whether they are operative under the doctrine of federal paramountcy. For the reasons that follow, I conclude that the impugned provisions are a valid exercise by the Quebec legislature of the powers conferred on it by s. 92(13) and (16) of the *Constitution Act, 1867*. I also conclude that the impugned provisions do not frustrate the purpose of the federal legislation and are therefore operative.

[2] In these reasons, I express no opinion on the appropriateness or merits of the approaches adopted by Parliament and the Quebec legislature, respectively. I focus on explaining why two approaches to the self-cultivation of cannabis — the more "permissive" federal approach and the more "restrictive" Quebec approach — can coexist from a legal standpoint within the Canadian federation.

Background

…

[4] On June 19, 2018, Parliament passed Bill C-45, *An Act respecting cannabis and to amend the Controlled Drugs and Substances Act*, *the Criminal Code and other Acts*, 1st Sess., 42nd Parl. On October 17, 2018, that statute came into force as the Cannabis Act, S.C. 2018, c. 16 ("federal Act"). Decriminalizing the recreational use of cannabis is the central feature of this legislation, which excludes this substance from the application of the criminal prohibitions set out in ss. 4 to 7.1 of the *CDSA*. The federal Act prohibits the possession of cannabis plants and the cultivation of such plants for personal purposes, but it exempts the possession and cultivation of no more than four plants from these prohibitions. The provisions creating the prohibitions read as follows:

Possession

8 (1) Unless authorized under this Act, it is prohibited

. . .

(e) for an individual to possess more than four cannabis plants that are not budding or flowering; . . .

. . .

Production

12 . . .

Cultivation, propagation and harvesting — 18 years of age or older

(4) Unless authorized under this Act, it is prohibited for an individual who is 18 years of age or older to cultivate, propagate or harvest, or to offer to cultivate, propagate or harvest,

. . .

(b) more than four cannabis plants at any one time in their dwelling-house.

[5] The enactment of the federal Act represents a paradigm shift in the Canadian legal landscape. Canada has moved from a suppression-based approach to a scheme that gives the provinces responsibility for determining the framework for the sale and distribution of cannabis within their borders. In other words, the provinces are being called upon to make laws, within their fields of jurisdiction, concerning a substance that was previously subject to criminal prohibitions for nearly a century. The statutes and regulations passed by the provinces in parallel with the federal Act primarily establish rules governing the sale of the substance, for example with regard to the location, operation and staff of the stores where the various cannabis products are sold. Much of the provincial legislation also sets out additional restrictions that supplement the federal legislative framework, including with respect to the minimum age required to purchase cannabis, the applicable limit on the possession of this substance and the places where it may be consumed in public.

[6] On June 12, 2018, the Quebec legislature introduced its own scheme to regulate cannabis when it passed Bill 157, *An Act to constitute the Société québécoise du cannabis, to enact the Cannabis Regulation Act and to amend various highway safety-related provisions*, 1st Sess., 41st Leg. The creation of the Société québécoise du cannabis ("SQDC"), a subsidiary of the Société des alcools du Québec with a monopoly on the sale of cannabis in Quebec, was one of the most important measures. The enactment of the *Cannabis Regulation Act*, CQLR, c. C-5.3 ("provincial Act"), was another. The provincial Act contains a broad range of provisions concerning the possession, cultivation, use, transportation, storage, sale and promotion of cannabis in Quebec. The specific provisions of the provincial Act being challenged in this case are ss. 5 and 10, which completely prohibit the possession of cannabis plants and the cultivation of such plants for personal purposes in a dwelling-house. These prohibitions are accompanied by fines of between $250 and $750, which are doubled for a subsequent offence. ...:

> 5. It is prohibited to possess a cannabis plant.
>
> Anyone who contravenes the first paragraph commits an offence and is liable to a fine of $250 to $750. Those amounts are doubled for a subsequent offence.
>
> 10. It is prohibited to cultivate cannabis for personal purposes.
>
> That prohibition against cultivating cannabis applies, in particular, to the planting of seeds and plants, the propagation of plants from cuttings, the cultivation of plants and the harvesting of their production.
>
> Anyone who contravenes the first paragraph by cultivating four cannabis plants or less in their dwelling-house commits an offence and is liable to a fine of $250 to $750. Those amounts are doubled for a subsequent offence.
>
> For the purposes of the third paragraph, "dwelling-house" has the meaning assigned by subsection 8 of section 12 of the Cannabis Act (S.C. 2018, c. 16).

[7] Therefore, under ss. 5 and 10 of the provincial Act, the possession and cultivation at home of cannabis plants are subject to penal sanctions in Quebec — just as in Manitoba, which has adopted an approach similar to Quebec's in *The Liquor, Gaming and Cannabis Control Act*, C.C.S.M., c. L153, ss. 101.13(1) and 101.15.

[8] On October 25, 2018, the appellant in this Court, Janick Murray-Hall, brought an action in the Quebec Superior Court on his own behalf and on behalf of all persons who, in Quebec, are liable to be prosecuted for possession of a cannabis plant in their dwelling-house and who may thus face the penal consequences arising from the provincial Act. He argued that ss. 5 and 10 of the provincial Act fall within the federal criminal law power under s. 91(27) of the *Constitution Act, 1867* and outside the heads of power assigned to the provinces. He sought a declaration from the Superior Court that these provisions are ultra vires or, in the alternative, that they are of no force or effect pursuant to the doctrine of federal paramountcy.

…

III. Issues

[18] This appeal raises the following two questions:

A. Did the Quebec Court of Appeal err in law in holding that ss. 5 and 10 of the provincial Act are constitutionally valid?

B. Did the Quebec Court of Appeal err in law in holding that ss. 5 and 10 of the provincial Act are constitutionally operative?

…

IV. Analysis

A. *Did the Quebec Court of Appeal Err in Law in Holding That Sections 5 and 10 of the Provincial Act are Constitutionally Valid?*

[20] As I will explain below, I am of the view that ss. 5 and 10 of the provincial Act are a valid exercise by the Quebec legislature of the powers conferred on it by s. 92(13) and (16) of the *Constitution Act, 1867* and that the Court of Appeal therefore made no error in its analysis of the validity of the impugned provisions.

[…]

(2) Characterization of the Impugned Provisions

[28] In my view, the pith and substance of the impugned provisions is to ensure the effectiveness of the state monopoly in order to protect the health and security of the public, and of young persons in particular, from cannabis harm. It follows that the prohibitions against the possession of cannabis plants and their cultivation at home set out in ss. 5 and 10 of the provincial Act are a *means* of serving the public health and security *objectives* pursued by that Act. With a few slight differences, my conclusion at the characterization stage is the same as that of the Court of Appeal.

[29] Before embarking on the analysis, I will provide a brief overview of the principles that apply in characterizing provisions that are alleged to be an integral part of a regulatory scheme. It is helpful to clarify the extent to which courts should analyze a law as a whole in order to characterize some of its provisions. The question is relevant in this case because the parties' disagreement at the characterization stage essentially stems from the emphasis they place, respectively, on the impugned provisions and on the provincial Act considered in its entirety. Mr. Murray-Hall focuses on the provisions themselves and criticizes the Court of Appeal for not truly considering the possibility that their purpose differs from that of the Act as a whole. The Attorney General of Quebec instead stresses the role played by the provisions in the scheme, endorsing the Court of Appeal's statement that [TRANSLATION] "their real purpose emerges only when they are analyzed in the overall context of the [provincial Act]" (para. 43).

[30] Where, as in this case, only very specific provisions are being challenged and not the entire law, certain principles apply. A court should begin by characterizing the provisions rather than considering the validity of the law as a whole, a principle articulated by Dickson J. (as he then was) in *Attorney General of Canada v. Canadian National Transportation*, Ltd., 1983 CanLII 36 (SCC), [1983] 2 SCR 206. However, Dickson J. added, this does not mean that the provisions must be read in isolation. A contextual analysis of the provisions is necessary when they are part of a regulatory scheme. […]

[33] I would also note that reading the impugned provisions in the context of the scheme into which they are integrated is crucial in distinguishing the purpose of the law from the means chosen to achieve it. Indeed, in *Ward*, McLachlin C.J. cautioned against "confus[ing] the purpose of the legislation with the means used to carry out that purpose" (para. 25).

[34] Bearing in mind the principles laid down in *National Transportation* and the note of caution sounded in *Ward*, I will now characterize ss. 5 and 10 of the provincial Act. I will consider the purpose of these provisions first and then their effects.

…

[For the pith and substance analysis in this case, please see Chapter 6, Part 2.1]

(c) *Conclusion on Pith and Substance*

[64] For the reasons given above, I conclude that the pith and substance of ss. 5 and 10 is to ensure the effectiveness of the state monopoly on the sale of cannabis in order to protect the health and security of the public, and of young persons in particular, from the harm caused by this substance. Prohibiting the possession and cultivation of cannabis plants is not in itself the purpose of the impugned provisions, but rather a means of steering consumers to the only source of supply considered to be reliable and safe.

(3) Classification of the Impugned Provisions

[65] In this case, the question before us at the classification stage is whether the impugned provisions fall within the federal criminal law power under s. 91(27) of the *Constitution Act, 1867* or within the powers conferred on the provinces over property and civil rights and matters of a merely local or private nature by s. 92(13) and (16), respectively. For the reasons that follow, I conclude that ss. 5 and 10 of the provincial Act are related to the provinces' powers and are therefore *intra vires* the Quebec legislature.

…

[67] In my view, even though ss. 5 and 10 seemingly have all the characteristics of criminal law, they should still not be classified under s. 91(27) of the *Constitution Act, 1867*. For the reasons that follow, I believe that the classification of the provisions challenged in this case cannot be determined simply on the basis of the correspondence between the three requirements set out in the *Margarine Reference* on the one hand and these provisions on the other.

[68] First, Parliament's decision to decriminalize conduct leaves the field clear for the provinces to enact their own prohibitions accompanied by penalties in relation to that conduct, as long as the prohibitions serve to enforce laws relating to matters within provincial jurisdiction (s. 92(15) of the Constitution Act, 1867). It follows that penal regulatory measures adopted by the provinces with regard to decriminalized activities are not necessarily attempts to legislate in criminal matters. This is why Major J. wrote in *Siemens v. Manitoba (Attorney General)*, 2003 SCC 3, [2003] 1 SCR 6, that "[t]he mere presence of a prohibition and a penalty does not invalidate an otherwise acceptable use of provincial legislative power" (para. 25).

[69] Second, it is recognized that the provinces have jurisdiction to make laws in relation to several matters that touch on purposes that otherwise constitute valid criminal law purposes. In the *Margarine Reference*, Rand J. referred to "[p]ublic peace, order, security, health, morality" as the ordinary though not exclusive "ends" served by criminal law (p. 50). Although public peace, order, security, health and morality are classic criminal law purposes, the provinces may consider such imperatives in designing their own regulatory schemes. As explained in *Siemens*, "[t]he fact that some of th[e] considerations [taken into account by the provincial legislature] have a moral aspect does not invalidate an otherwise legitimate provincial law" (para. 30). Here, the mere fact that the Quebec legislature considered the real risk that cannabis consumption poses for certain vulnerable populations when it enacted legislation is not in itself an indication of encroachment on the field of criminal law.

[70] Rather than taking the analytical framework developed in the *Margarine Reference* as a starting point, as the trial judge did, I will characterize the impugned provisions by considering the constitutional bases for provincial legislative action in the field of public health.

[71] In this case, the partial decriminalization by Parliament of the possession, sale and distribution of cannabis and the possession and cultivation of cannabis plants opened the door to provincial legislative action. In prohibiting the possession and cultivation at home of cannabis plants, the Quebec legislature exercised the power conferred on it by s. 92(15) to enact penal measures in order to enforce an otherwise valid law. I found above that ss. 5 and 10 of the provincial Act create a scheme that ensures the effectiveness of the state monopoly and that they in fact advance the objectives of public health and security. Characterized in this way, the impugned provisions are clearly related to the provincial heads of power in s. 92(13) and (16). This is because provincial legislative action in the field of public health is grounded primarily in broad and plenary jurisdiction over property and civil rights (s. 92(13)) and residual jurisdiction over matters of a merely local or private nature in the province (s. 92(16)) (*Chaoulli v. Quebec (Attorney General)*, 2005 SCC 35, [2005] 1 SCR 791, at para. 18).

…

[75] In light of the foregoing, ss. 5 and 10 therefore fall not within the sphere of the criminal law but rather within the provinces' general power to regulate health.

[76] While it is true that prohibitions similar to those set out in ss. 5 and 10 have been enacted by Parliament in the past under the federal criminal law power, this can be explained by the double aspect doctrine. This doctrine reflects the contemporary view of federalism and constitutional interpretation, which recognizes that overlapping powers are unavoidable (*Canadian Western Bank*, at para. 42). According to the double aspect doctrine, Parliament and the provincial legislatures may make laws in relation to matters that, by their very nature, have both a federal aspect and a provincial aspect (*Desgagnés Transport Inc. v. Wärtsilä Canada Inc.*, 2019 SCC 58, [2019] 4 SCR 228, at para. 84). It will therefore be possible to apply the double aspect doctrine where each level of government has a "compelling" interest in enacting legislation on different aspects of the same activity or matter (para. 85). In practice, without creating concurrent jurisdiction over a matter, the double aspect doctrine "allows for the concurrent application of both federal and provincial legislation" (*Reference re Securities Act*, at para. 66 (emphasis deleted)).

[77] This appeal is a textbook case for the application of the double aspect doctrine. The regulation of the use of drugs, including cannabis, has both federal and provincial aspects, which makes it conceivable that laws enacted by both levels of government will apply concurrently. This matter has a double aspect, since it may be addressed from two different perspectives: (1) that of the criminal law (under s. 91(27)), by suppressing some "evil" or injurious or undesirable effect upon the public; and (2) that of health or trade (under s. 92(13) and (16)), by regulating, among other things, the conditions of production, distribution and sale of the substance. Sections 5 and 10 of the provincial Act regulate cannabis use from this second, normative perspective and are therefore within provincial jurisdiction.

[78] I conclude this section by emphasizing that the impugned provisions do not encroach on the federal criminal law power merely because they create absoluteprohibitions. The trial judge expressed the contrary view, explaining that [TRANSLATION] "the province has lost its jurisdiction by deciding to completely prohibit the possession of cannabis plants and the cultivation of cannabis for personal purposes" (para.

> 86). That inference has no support in law and disregards the fact that many regulatory prohibitions are absolute in nature without being considered criminal law prohibitions. I need only refer, by way of example, to the prohibition against selling tobacco to minors set out, in Quebec law, in ss. 13 and 14.4 of the *Tobacco Control Act*, CQLR, c. L-6.2.
>
> (4) Conclusion on the Constitutional Validity of the Impugned Provisions
>
> [79] The presumption of constitutional validity of legislation remains a cardinal principle of our division of powers jurisprudence (*Reference re The Farm Products Marketing Act*, 1957 CanLII 1 (SCC), [1957] SCR 198, at p. 255; *Nova Scotia Board of Censors v. McNeil*, 1978 CanLII 6 (SCC), [1978] 2 SCR 662, at pp. 687-88; Husky Oil Operations Ltd. v. Minister of National Revenue, 1995 CanLII 69 (SCC), [1995] 3 SCR 453, at para. 162; *Reference re Firearms Act*, at para. 25). According to this presumption, every legislative provision is presumed to be *intra vires* the level of government that enacted it.
>
> [80] Here, the onus was on the appellant to show that, in pith and substance, ss. 5 and 10 are not related to one of the classes of subjects under provincial jurisdiction. He failed to do so. The matter of the impugned provisions is not the moral suppression of personal cannabis production. Rather, their pith and substance is to ensure the effectiveness of the state monopoly on the sale of cannabis in order to protect the health and security of the public from the harm caused by this substance.
>
> [81] For the reasons stated above, I am of the view that ss. 5 and 10 of the provincial Act are a valid exercise by the Quebec legislature of the powers conferred on it by s. 92(13) and (16) of the Constitution Act, 1867 and that the Court of Appeal therefore made no error in its review of the validity of the impugned provisions.
>
> …

Wagner CJ went on to conclude that the there was no operational conflict between the federal and provincial acts. He further drew an analogy to the *Rothmans* case [see Chapter 6, Part 7.4] and concluded that the provincial act did not frustrate the purpose of the federal act. The Chief Justice held, at para 97, that "the making of exceptions or exemptions under a criminal law scheme cannot serve to confer *positive rights* to engage in the activities covered by those exceptions or exemptions. That is an important point in case like the one before us. The provinces can legitimately undertake regulatory initiatives to provide a framework for decriminalized activities without thereby frustrating a purpose—the creation of positive rights—that by definition is outside the scope of the federal criminal law power."

For an argument that the *Murray-Hall* constrains the criminal law power in ways that are consistent with the demands of cooperative federalism, see Yashoda Ranganthan and Hera Evans, "*Murray-Hall v. Quebec (Attorney General)*-Reconciling the Criminal Law Power with Cooperative Federalism" (2025) 5 SCLR (3d) 289.

Chapter 9: S 91(2), The Federal Trade and Commerce Power

By Ian Lee

1 Introduction

Head 2 of Section 91 of the *Constitution Act 1867* authorizes the Parliament of Canada to make laws in relation to "the regulation of trade and commerce." Strikingly absent from s. 91(2) is limiting language such as that found in the analogous provision of the U.S. Constitution, which explicitly confines federal legislative jurisdiction to "Commerce with foreign Nations, and among the several States, and with the Indian Tribes" (U.S. Const., Art. I, Sec. 8, Cl. 3). One might have supposed that the framers of s. 91(2) intended to confer broader economic regulatory power on the federal Parliament than is conferred by the U.S. Constitution on the Congress. However, s. 91(2) has, in fact, received a more circumscribed interpretation than its wording would permit.

However in contrast to the most of the powers granted to the American Congress , under the U.S. Constitution, the powers granted to the Canadian Parliament under s. 91, like the powers granted to the provincial legislatures under s. 92, are "exclusive," according to the introductory language of the two provisions. The interpretation of themutually exclusive federal and provincial spheres of authority is a zero-sum game. Accordingly, the courts, have interpreted s. 91(2) cautiously, conscious that an unduly expansive interpretation of s. 91(2) would, to borrow a metaphor from the Supreme Court's 2011 *Securities Reference,* "sweep [provincial] powers out to sea," especially the crucially important power of the provinces to legislate in relation to "property and civil rights" (s. 92(13)).

This chapter begins with the interpretation of Parliament's legislative authority under s. 91(2) (Part 2). It then examines the constraints that s. 91(2), as an "exclusive" federal power, places on provincial legislative authority (Part 3). The final part of the chapter (Part 4) concerns s. 121 of the *Constitution Act 1867*. This provision is not part of the division of powers but is nevertheless relevant to the topic of trade and commerce because it provides that goods originating in one province "shall be admitted free" into each of the other provinces.

2 Federal legislative authority under s. 91(2) to make laws in relation to "the regulation of trade and commerce"

2.1 Overview

As discussed in a previous chapter, the Judicial Committee's principal contribution to the definition of the scope of s. 91(2) can be summarized in a negative proposition --- that laws regulating particular lines of business, or transactions taking place within a province, come within s. 92(13) rather than s. 91(2). Scarcely any federal laws were upheld by the JCPC under s. 91(2) during that body's tenure as the court of final appeal for Canada. At the end of the JCPC era, lawyers had a good idea of what Parliament could not do under s. 91(2) , but very little idea of what the provision enabled Parliament to do.

The Judicial Committee of the Privy Council, in *Citizens Insurance v. Parsons*, [1881] UKPC 49 at par. 25, 7 App Cas 96 suggested in an *obiter dicta* that:

> … The words "regulation of trade and commerce" … would include political arrangements in regard to trade requiring the sanction of parliament, regulation of trade in matters of interprovincial concern, and it may be that they would include general regulation of trade affecting the whole dominion. Their Lordships abstain on the present occasion from any attempt to define the limits of the authority of the dominion parliament in this direction. It is enough for the decision of the present case to say that, in their view, its authority to legislate for the regulation of trade and commerce does not comprehend the power to regulate by legislation the contracts of a particular business or trade….

Today, the categories of legislation suggested by the Judicial Committee are reflected in case law of the the Supreme Court of Canada establishing that Parliament's authority under s. 91(2) extends to the enactment of legislation of two types:

- Laws that, in pith and substance, regulate international or interprovincial trade
- Laws that, based on certain criteria, can be characterized as the "general regulation of trade."

The key cases on each of these two "branches" of authority under s. 91(2) are excerpted in Parts 2.2 and 2.3 below.

2.2 Key cases: International and interprovincial trade

2.2.1 Murphy v CPR

***Murphy v CPR*, [1958] SCR 626, 1958 CanLII 1**

[A BC farmer purchased grain in Manitoba and attempted to contract with the Canadian Pacific Railway to ship it to British Columbia. The railway refused to accept the shipment, on the ground that the shipment was prohibited by s. 32 of the *Canadian Wheat Board Act,* which gave to the Canadian Wheat Board (subject to exceptions) the exclusive power to export grain or to transport it or cause it to be transported interprovincially. The farmer argued that this legislation was *ultra vires* the federal government and so could not be enforced. His action against the railway was unsuccessful at trial and on appeal to the Manitoba Court of Appeal. He then appealed his case to the Supreme Court of Canada.]

LOCKE J: —

The constitutional issue was [whether] the Canadian Wheat Board Act was ultra vires the Parliament of Canada.… [The appellant] … asserted that the Act trenched upon the powers of the province as it interfered with property and civil rights in the Province. …

… It appears to me to be too clear for argument that the *Canadian Wheat Board Act* in so far as its provisions relate to the export of grain from the province for the purpose of sale is an Act in relation to the regulation of trade and commerce within the meaning of that expression in s. 91. As pointed out by the learned Chief Justice of Manitoba, it has been long since decided that the provinces cannot regulate or restrict the export of natural products such as grain beyond their borders

[T]he fact that of necessity [the Act] interferes with property and civil rights in the province of the nature referred to in head 13 of s. 92 is immaterial. For reasons which have been stated in a great number of cases decided in the Judicial Committee as well as in this Court, it has been decided that if a given subject-matter falls within any class of subjects enumerated in s. 91 it cannot be treated as covered by any of those in s. 92. ... It is, of course, obvious that it would be impossible for Parliament to fully exercise the exclusive jurisdiction assigned to it by head 2 and many others of the heads of s. 91 without interfering with property and civil rights in some or all of the provinces. ...

It is contended for the appellant that the power to regulate trade and commerce under head 2 does not enable Parliament to regulate a particular trade, but this is too broad a statement. The result of the cases in the Judicial Committee dealing with this question appear to me to be most clearly summarized in the judgment of Lord Atkin in *Shannon v. Lower Mainland Dairy Products Board* [1938 CanLII 250, [1938] AC 708 at 719], where it was said:

It is now well settled that [s 91(2)] does not give the powers to regulate for legitimate provincial purposes particular trades or businesses so far as the trade or business is confined to the province.

The *Canadian Wheat Board Act* controls and regulates not one trade or business but several, including the activities of the producer, the railroads, the elevators and flour and feed mills and, except to a very minor extent, these activities are directed to the export of grain or grain products from the province, activities which the province itself is powerless to control.

2.2.2 The Queen v Klassen

***The Queen v Klassen*, 1959 CanLII 438, 20 DLR (2d) 406 (Man CA) (excerpt by Jodi Lazare)**

Adamson C.J.M. :— […]

This is an appeal from that conviction by way of a stated case as follows:

1. The accused, Julius Klassen, is the manager and operator of a feed mill at the Village of Grunthal in Manitoba, known as the Grunthal Feed Mill and has operated the said mill for approximately 22 years at its present location. The said mill is the mill referred to as `Grunthal Feed Mill (J. Klasssen)' in the Schedule to the Canadian Wheat Board Act.

2. On or about the 12th of September, A.D. 1957, John P. Leppky, a producer within the meaning of the said Act and the holder of a Delivery Permit Book numbered 28011 issued by the Canadian Wheat Board […] delivered 296 bushels of wheat of the grade No. 5 into the feed mill operated by Julius Klassen under the firm name and style of Grunthal Feed Mill at Grunthal in Manitoba aforesaid.

3. At the time of the delivery of the said wheat into the said feed mill, the said delivery permit book was not produced by John P. Leppky to Julius Klassen, the operator of said feed mill, and at no time whether immediately upon the completion of the delivery of the said wheat or at any time did Julius Klassen, the operator of the said mill, record and enter the net weight in bushels after dockage of the grain so delivered in the permit book of the said John P. Leppky.

4. The said wheat was received into the said mill and purchased by the accused from the said John P. Leppky.

5. The said Julius Klassen, who at all material times was aware of the provisions of the said Section 16 of the *Canadian Wheat Board Act*, states that he received delivery of and purchased the said wheat and failed to record and enter the delivery of said wheat as aforesaid as he had been advised by legal counsel that any provisions of the *Canadian Wheat Board* Act or regulations made thereunder which had the effect of restricting carrying on of the trade of a feed mill for purely provincial purposes were without effect.

6. The said wheat was processed and sold as an ingredient in prepared feeds sold by the said Julius Klassen to farmers and feeders in the neighbourhood of Grunthal in the Province of Manitoba; the said wheat having been produced, purchased, sold and used only within the Province of Manitoba. At no time material to the said delivery was there any agreement between the said Julius Klassen and the Canadian Wheat Board. The said feed mill purchases, processes and sells grain to the approximate value of $60,000.00 annually and is located 10 miles from the nearest railway. The wheat hereinbefore referred to was brought to the said feed mill by the said producer in a truck; the said prepared feed manufactured from the said wheat was shipped to its ultimate purchaser by the accused by truck. *The accused has not at any time been engaged in interprovincial or export trade personally, nor so far as the accused is aware have the products of the said mill been used in interprovincial or export trade.*

[…]

The counsel for the said appellant desires to question the validity of the said conviction on the ground that it is erroneous in point of law and the question submitted for the judgment of this Honourable Court being:

> 1. Whether sections 16 and 45 of the *Canadian Wheat Board Act* being chapter 44, R.S.C. 1952 and amendments thereto and the Schedule thereto are intra vires of the Parliament of Canada.

[…]

TRITSCHLER J.A. :— […]

The facts are stated in the reasons of the Chief Justice.

I would first consider whether s. 16 of Part II of the Act is *intra vires*.

There is no doubt that Part II "affects" property and civil rights in the Province. It is a serious interference with the intraprovincial business of (among others) the owners of grain and the operators of flour, feed and seedcleaning mills. These operators of flour, feed and seedcleaning mills who are not engaged in inter-provincial or export trade will for brevity herein be sometimes referred to simply as "millers". True, as submitted by the Crown, the controls of Part II do not apply to the contracts made by the owners of grain and these operators nor affect the ownership of the grain and are directed only at the movement of grain into the mills and the recording of same. Yet it is a plain interference with the right of a person to deliver grain to a miller, and the right of a miller to obtain grain, to forbid this delivery and receipt (except with the permission of the Board) unless the person is the "actual producer of, or is entitled as a producer to the grain", to whom has been issued by the Board a permit book under which he is-entitled to deliver that particular grain at that particular time at that "delivery point". Contracts between millers and "non-producers" are not possible. "Producers" who have permit books, and millers, may contract within "quotas" fixed by the Board. It must be concluded that "matters of a merely local or private nature in the Province" between owners of grain and millers are forbidden or affected.

But this interference of Part II may be justified if it is necessarily incidental to the other provisions of the Act dealing with the interprovincial and export trade in grain.

"It is within the competence of the Dominion Parliament to provide for matters which, though otherwise within the legislative competence of the provincial legislature, are necessarily incidental to effective legislation by the Parliament of the Dominion upon a subject of legislation expressly enumerated in s..91 […].

[…]

I think that since [1958], it has been settled that the principal purposes of the Act, i.e., the interprovincial and export marketing of certain grains by the Board and the regulation of interprovincial and export trade in such grains is legislation in relation to the regulation of trade and commerce. In [1958] Locke J. said […] "It appears to me to be too clear for argument that the *Canadian Wheat Board Act* insofar as its provisions relate to the export of grain from the Province for the purpose of sale is an Act in relation to the regulation of trade and commerce within the meaning of that expression in s. 91." Our enquiry must, therefore, be whether the questioned interference of Part II is necessarily incidental or ancillary to (in aid of) effective legislation in respect of the general marketing scheme set up for certain grains by the Act.

Applying the principle referred to by Duff (then) J. in Re Reciprocal Insurance Legislation […] and scrutinizing the Act in its entirety to determine the true nature and character of the controls of Part II and what it is that the Legislature is really doing, I am. of the opinion that Part II is not an attempt by Parliament to interfere with or control the business of flour, feed and seed mills within the Province as an end in itself but that the interference with property and civil rights which results under Part II is incidental and ancillary to the achievement of the purpose of the Act, the pith and substance of which is the provision of an export market for surplus grains, a matter which has undoubtedly assumed a national importance.

The "quota" controls which are established by Part II, and which are the real subject-matter under appeal, have several objects. They regulate the intake of grain into all channels of the marketing system so that currently marketable grains can be received when needed and grain for which there is no present market kept out of the system. The saleable grain must be at the right place at the right time. If the channels become clogged with unmarketable grains the scheme set up by the Act would become unworkable. This necessary interference with the right of individuals to deliver and receive grain into the marketing system must be made to fall as evenly as possible on all and justice demands that delivery opportunity be rationed as equitably as is possible among producers. The scheme ensures this.

But the opponents of the scheme object that these considerations cease to be valid when applied to mills which are turning grains into flour, feed and seed in purely intraprovincial transactions and particularly so where the mill has little or even no storage space. How, it is argued, can such transactions clog the channels of the marketing system. This submission ignores the other but equally essential feature of the controls, the equitable rationing of delivery opportunity and the ensuring that as nearly as may be all producers whose freedom to trade is interfered with by the scheme will get the same price at the same time for the like kind and quantity of grain. If a producer might sell a portion of his crop to a mill for flour, feed or seed and not have it noted on his permit book he would be able to deliver to the other channels of the marketing system grain up to his quota, and thus achieve an advantage over less fortunate producers who were not able to get their grains into the local flour, feed and seed outlets. Equality of delivery opportunity is a basic feature of the scheme. As was said […] in the Murphy case, supra, "The Act operates on the individual by keeping him in effect in a queue" […]. If this be disturbed then, whether or not the channels of the system are clogged, injustice must result and the public acceptance of the scheme endangered. The quotas allowed are not, as was submitted by counsel for the appellant, "for interprovincial and export purposes" but they fix the quantity of grain a producer may deliver into the market system anywhere. […]

It is admitted that the appellant personally has not been engaged in interprovincial or export trade and that so far as he is aware the products of his mill have not been used in such trade. No one can say that the products of his mill will not be so used. If intra-provincial transactions are beyond the control of the Act so far as he is concerned so should they be in respect of every other miller, but there are obvious difficulties about letting into the marketing system even grains which can be proved to have an intraprovincial destination. This also would make the system unworkable. In short, it seems impractical if not impossible to draw distinctions between the appellant and all other handlers (or at least millers) of grain in respect of intraprovincial transactions.

Appellant's counsel has placed his greatest emphasis on the fact that appellant operates his feed mill in a purely local and provincial manner and does not engage in interprovincial or export trade. This is not relevant if it appears, as I think it does, that the Act is not legislation "in relation to" property and civil rights but is legislation which in pith and substance is in relation to trade and commerce and merely "affects" property and civil rights incidentally.

[…]

I would answer Q. 1 by saying that s. 16 is *intra vires* […].

Appeal dismissed.

2.2.3 Caloil Inc v Attorney General of Canada

***Caloil Inc v Attorney General of Canada*, [1971] SCR 543, 1970 CanLII 194**

PIGEON J (Fauteux CJ, Abbott, Martland, Judson, Ritchie, Hall, Spence, and Laskin JJ concurring): —

The appellant is an importer and distributor of petroleum products. In May 1970, it contracted for some 126,000,000 gallons of gasoline to be delivered in Canadian ports from Algesiras, Spain, by tankers. This gasoline was intended to be distributed in Quebec and in Ontario.

On May 7, 1970, [Regulations under the National Energy Board Act] were amended [to] … make all licences for the importation of "motor gasoline" subject to the condition that the importer shall not, without the consent of the National Energy Board, transport or caused to be transported, any "motor gasoline" [westward across a north-south line] running partly through Ontario and partly along the Ontario-Quebec border…, and shall not, without the Board's consent, sell or deliver to a third party any "motor gasoline" except on the condition that it is sold or delivered for consumption east of that line.

The appellant did not comply with the conditions of licences issued in accordance with the amended regulations and was refused a further licence. [The appellant sought and obtained a declaratory judgment in the Exchequer Court to the effect that the regulatory scheme was unconstitutional. Rather than appeal the judgment, the government amended the regulations. The amended regulations provide, in the relevant part:]

20. (2) Where the Board is of the opinion that importation of oil that is the subject of an application for a licence to import into Canada will be consistent with the development and utilization of Canadian indigenous oil resources, it may issue a licence to import oil for consumption in the area of Canada specified therein, in such quantities, at such times and at such points of entry into Canada as it may consider appropriate.

(3) Any licence issued by the Board pursuant to subsection (2) may be issued on the condition that the oil to be imported will be consumed in the area of Canada specified in the licence.

(4) Where the Board is not reasonably satisfied that the consumption of oil to be imported will be in the area of Canada specified in the application for a licence and that the terms of the licence to be issued will be complied with, it shall not issue a licence.

Under the amended regulations, the National Energy Board refused applications to import gasoline into some areas in Ontario and it also refused to issue licences for importation into other areas without a declaration specifying that the gasoline to be so imported would, in actual fact, be consumed in those areas. Thereupon, proceedings were again instituted in the Exchequer Court by way of a declaratory action against the Attorney General of Canada as defendant and the National Energy Board as mis-en-cause.

The appellant did not challenge federal authority over imports as such. The attack was exclusively directed against the regulation of trade in the imported commodity at the level of distribution for consumption….

In the present case, subs. 2 of s. 20(2) of the Regulations clearly shows that the policy intended to be implemented by the impugned enactment is a control of the imports of a given commodity to foster the development and utilization of Canadian oil resources. The restriction on the distribution of the imported product to a defined area is intended to reserve the market in other areas for the benefit of products from other Provinces of Canada. Therefore, the true character of the enactment appears to be an incident in the administration of an extra-provincial marketing scheme as in *Murphy v. C.P.R.* Under the circumstances, the interference with local trade restricted as it is to an imported commodity, is an integral part of the control of imports in the furtherance of an extraprovincial trade policy and cannot be termed "an unwarranted invasion of provincial jurisdiction." ...

Appeal dismissed.

2.2.4 Fédération des producteurs de volailles du Québec v Pelland, 2005 SCC 20 (CanLII), [2005] 1 SCR 292

The judgment of the Court was delivered by

1 ABELLA J. — Over 25 years ago, this Court decided that a federal-provincial scheme with respect to the production and marketing of eggs was constitutional. André Pelland, a Quebec chicken farmer whose production is subject to a similar scheme, seeks a review of the scheme's constitutionality.

Background

2 In a landmark 1978 case which has come to be known as the "*Egg Reference*" (*Reference re Agricultural Products Marketing Act*, 1978 CanLII 10 (SCC), [1978] 2 S.C.R. 1198), this Court unanimously affirmed the constitutional validity of a national agricultural marketing scheme collaboratively crafted by Parliament and the provinces in response to the Court's evolving jurisprudence. The *Egg Reference* has since become the blueprint for federal-provincial marketing schemes.

3 After the release of the Egg Reference, the federal and provincial governments entered into the 1978 *Federal-Provincial Agreement with respect to the establishment of a Comprehensive Chicken Marketing Program in Canada* ("Federal-Provincial Agreement").

4 To ensure effective marketing and a dependable supply of chicken to Canadian consumers, the Federal-Provincial Agreement was designed to weave together the legislative jurisdiction of both levels of government in order to ensure a seamless regulatory scheme. The integration of the federal and provincial components of the scheme is achieved through s. 22(3) of the *Farm Products Agencies Act*, R.S.C. 1985, c. F-4. (The relevant provisions are attached as appendices to these reasons.) Section 22(3) enables a federal marketing agency to authorize a provincial body to perform any function relating to interprovincial or export trade in the regulated product that the federal agency is authorized to perform. Pursuant to the *Canadian Chicken Marketing Agency Quota Grant of Administrative Authority* ("Grant of Authority"), P.C. 1991-1090, June 13, 1991, the federal marketing agency delegated its authority to Quebec's chicken marketing board, the Fédération des producteurs de volailles du Québec ("Fédération"). The Grant of Authority authorized the provincial body to allocate and administer federal quotas in accordance with both the federal *Canadian Chicken Marketing Quota Regulations, 1990*, SOR/90-556, and such relevant rules as were in force from time to time in the province.

5 Implementing its part of the terms of the Federal-Provincial Agreement, and pursuant to what is now s. 16(1) of the *Farm Products Agencies Act*, the federal government created a federal chicken marketing agency, then known as the Canadian Chicken Marketing Agency and now called the Chicken Farmers of Canada ("CFC"). It was expressly empowered by s. 22(1) of the *Farm Products Agencies Act* to implement a marketing plan and make such orders and regulations, subject to the approval of the Governor in Council, as were necessary for the execution of the plan.

6 The provincial component of the scheme in Quebec is the subject of the constitutional challenge before us and is embodied in *An Act respecting the marketing of agricultural, food and fish products*, R.S.Q., c. M-35.1, and the *Règlement sur la production et la mise en marché du poulet*, R.R.Q., c. M-35.1, r. 13.2. In 1971, the *Plan conjoint des producteurs de volailles du Québec*, R.R.Q., c. M-35, r. 126

("Plan"), was adopted pursuant to what is now s. 45 of the provincial legislation. The Plan is administered by the Fédération and governs all production and marketing of chicken within the province of Quebec.

7 The function of the federal body is to assess the national market and set a global production quota for each province. It assigns a marketing quota to each province representing that province's share of the national market.

8 Each provincial body then adopts as its intraprovincial production quota the exact share federally assigned to it. It agrees to authorize its local producers to globally produce and market no more chicken than the quantity fixed by the federal body as that province's share of the national marketing target. To produce and market chickens in Quebec, a farmer must receive a quota allocation from the Fédération and produce no more than his or her allocated quota for a given period. A producer in a province receives a single quota applicable to all of his or her production and marketing of chicken, regardless of intended destination.

9 In order to facilitate the integration of production and marketing quotas, the federal body delegates its authority to regulate the marketing of chickens in interprovincial and export trade to the provincial body, in this case the Fédération. Once producers obtain a production and marketing quota from the Fédération, they are free to decide where their product will be sold. Neither the federal nor the provincial body sets distinct intraprovincial or extraprovincial marketing quotas.

10 In this way, the federal-provincial scheme combines in one body, the Fédération, provincial jurisdiction over production and intraprovincial marketing, and federal jurisdiction over extraprovincial marketing. The federally and provincially assigned quotas dovetail so that the total quantity of chicken produced in Canada does not exceed the agreed-upon national marketing total.

11 Because Mr. Pelland produced 4,425,030 kg in excess of his allotted quota for the relevant periods, the Fédération, in accordance with the penalty provisions found in the provincial regulations, automatically reduced his quota to zero and imposed a monetary penalty in the amount of $2,433,766.50. In addition, it sought an interlocutory injunction.

12 Crôteau J. granted the injunction: [2001] Q.J. No. 5828 (QL). He found that Mr. Pelland produced and sold about 29 times his quota, representing almost 50 percent of the surplus produced in Quebec for the relevant periods.

13 In the Court of Appeal of Quebec, Rousseau-Houle J.A., writing for a unanimous court (Fish and Chamberland JJ.A.), dismissed Mr. Pelland's appeal on the grounds that this Court's decision in the Egg Reference was determinative of the constitutional issue raised by the appellant: [2003] Q.J. No. 3331 (QL).

14 After leave was granted in October 2003, McLachlin C.J. stated the following constitutional questions:

> 1. Can *An Act respecting the marketing of agricultural, food and fish products*, R.S.Q., c. M-35.1, and the *Règlement sur la production et la mise en marché du poulet*, R.R.Q., c. M-35.1, r. 13.2, constitutionally apply *ex proprio vigore* to limit the production of chickens destined exclusively to the interprovincial market?

[…]

15 In my view, the 1978 Federal-Provincial Agreement, like the scheme in the *Egg Reference*, both reflects and reifies Canadian federalism's constitutional creativity and cooperative flexibility. For the reasons that follow, and based largely on a generation of constitutional jurisprudence from this Court, I would dismiss the appeal.

Analysis

A. The Constitutional Validity of the Provincial Production and Marketing Legislation

16 Mr. Pelland does not dispute that he grossly exceeded his allocated quota. Rather, he challenges the interlocutory injunction obtained by the Fédération on the grounds that the entirety of his produce is exported to Ontario and not marketed in the province of Quebec. He argues that the provincial marketing Act and regulations can only apply to the production of chickens destined for Quebec markets, not those intended exclusively for interprovincial markets.

17 Mr. Pelland does not base his argument on the pith and substance of the provincial marketing Act and the provincial chicken regulation; instead, he urges the Court to conclude that placing quota restrictions on products destined for export is not a provincial matter. He does not challenge the validity of the provincial scheme, but argues that it cannot apply to the production of chicken destined solely for interprovincial markets. The scheme he proposes as an alternative would be bifurcated: a federal quota for export production and a provincial one for intraprovincial trade.

18 Mr. Pelland relies on Laskin C.J.'s statement in the *Egg Reference* that the provincial law and regulations at issue there would not be valid if they occurred "with a view to limiting interprovincial or export trade" (p. 1287). However, this comment was made in the context of considering whether the law and regulations were in pith and substance a provincial matter. Ultimately, as explained later in these reasons, Laskin C.J. found that they were. This comment, therefore, does not support the proposition that provincial laws found valid under a pith and substance analysis are inapplicable to export trade.

19 Contrary to Mr. Pelland's submissions, in my view the pith and substance of the provincial marketing Act and the provincial chicken regulations are at the heart of this appeal. In order to determine whether the provincial component of the scheme is unconstitutional because it intrudes into a federal head of power, it is necessary first to determine its core character.

20 The requisite approach was recently discussed by LeBel J. in *Kitkatla Band v. British Columbia (Minister of Small Business, Tourism and Culture)*, [2002] 2 S.C.R. 146, 2002 SCC 31, at paras. 53-54, a case involving provisions of the *Heritage Conservation Act*, R.S.B.C. 1996, c. 187:

> A pith and substance analysis looks at both (1) the purpose of the legislation as well as (2) its effect. First, to determine the purpose of the legislation, the Court may look at both intrinsic evidence, such as purpose clauses, or extrinsic evidence, such as Hansard or the minutes of parliamentary committees.
>
> Second, in looking at the effect of the legislation, the Court may consider both its legal effect and its practical effect. In other words, the Court looks to see, first, what effect flows directly from the provisions of the statute itself; then, second, what "side" effects flow from the application of the statute which are not direct effects of the provisions of the statute itself: see *R. v. Morgentaler*, 1993 CanLII 74 (SCC), [1993] 3 S.C.R. 463, at pp. 482-83. Iacobucci J. provided some examples of how this would work in *Global Securities Corp. v. British Columbia (Securities Commission)*, [2000] 1 S.C.R. 494, 2000 SCC 21, at para. 23:
>
> > The effects of the legislation may also be relevant to the validity of the legislation in so far as they reveal its pith and substance. For example, in *Saumur v. City of Quebec*, 1953 CanLII 3 (SCC), [1953] 2 S.C.R. 299, the Court struck down a municipal by-law that prohibited leafleting because it had been applied so as to suppress the religious views of Jehovah's Witnesses. Similarly, in *Attorney-General for Alberta v. Attorney-General for Canada*, 1938 CanLII 251 (UK JCPC), [1939]

> A.C. 117, the Privy Council struck down a law imposing a tax on banks because the effects of the tax were so severe that the true purpose of the law could only be in relation to banking, not taxation. However, merely incidental effects will not disturb the constitutionality of an otherwise *intra vires* law. [Emphasis added.]
>
> (See also P. W. Hogg, *Constitutional Law of Canada* (loose-leaf ed.), vol. 1, at § 15.5(d))

21 The essential character of an analogous scheme was scrutinized in the *Egg Reference*. Under the scheme at issue in that case, the Canadian Egg Marketing Agency set overall quotas for each province. It was created as a result of an agreement between the federal Minister of Agriculture, the federal marketing agency, and their counterparts in all provinces. The goal was to establish a comprehensive national egg marketing scheme. The federal Agency was given authority to set overall provincial quotas and to impose levies or charges on the marketing of eggs by egg producers, to be collected on its behalf by the provincial egg marketing boards. In Ontario, the Ontario Farm Products Marketing Board was the provincial board setting individual egg production quotas for its producers based on the province's assigned quota. The Ontario legislation also prohibited egg production by anyone who did not have a quota.

22 In the *Egg Reference*, this Court confirmed that the regulation of agricultural production is essentially a local matter within provincial jurisdiction pursuant to s. 92(10) of the *Constitution Act, 1867*. The Court reached the following relevant conclusions: although constitutional jurisdiction over marketing is divided, agricultural production is *prima facie* a local matter under provincial jurisdiction; the provincial scheme was not aimed at controlling extraprovincial trade, but was deemed to be coordinated and integrated with the regulations established under federal authority; and, most pertinently, producers could not claim exemption from provincial control over production by electing to devote their entire output to extraprovincial trade.

23 Any effect of the provincial egg marketing and production scheme on extraprovincial trade was found to be incidental to the constitutionally permissible purpose of controlling agricultural production within the context of a cooperative federal-provincial agreement.

24 While disagreeing about the exact scope of the relevant provincial head of power, Pigeon J., for the five-person majority, and Laskin C.J., in a minority concurring opinion, agreed that the provincial component of this marketing scheme was constitutional because its purpose did not extend beyond production and trade within the province. They also both accepted that if the true purpose of the provincial legislation had been to regulate interprovincial and export trade, it would have been *ultra vires*.

25 Pigeon J. held that because agricultural production is *prima facie* within provincial jurisdiction, production quotas could be imposed by a province on all its producers, regardless of the ultimate destination of the goods produced. A producer could not evade a province's jurisdictional authority over production by producing goods destined for an export or extraprovincial market:

> No operator can claim exemption from provincial control by electing to devote his entire output to extraprovincial trade. I can find no basis for the view that there must be a division of authority at the stage of production between what will be going into intraprovincial and what will be going into extraprovincial trade. [Emphasis added; p. 1295.]

26 This is the conclusion Mr. Pelland seeks to set aside, primarily on the basis of Laskin C.J.'s minority opinion expressing the concern that if the focus of the provincial legislation had been the regulation of extraprovincial interests, it would have been beyond the province's jurisdiction. The possibility that specifically caused Laskin C.J. to articulate a caveat to Pigeon J.'s opinion was that of a province using its regulatory jurisdiction over production to "choke off" interprovincial trade at its very source:

> It is true that a Province cannot limit the export of goods from the Province, and any provincial marketing legislation must yield to this. How then, it may be asked, can it be allowed to accomplish this forbidden end by choking off interprovincial trade at its very source, at the point of production? [p. 1286]

27 Based on this analysis, Mr. Pelland submits that this Court ought to reconsider the constitutionality of a marketing scheme like the one he is regulated by, find the provincial component of the scheme to be unconstitutional, and confine the jurisdiction of provincial marketing boards to production for provincial marketing only.

28 It seems to me that the impugned legislation is constitutionally valid whether the majority or minority opinion in the Egg Reference is applied. Pigeon J. did not dispute that provincial legislation which is aimed at regulating extraprovincial trade is ultra vires. He held only that agricultural production is prima facie a provincial matter:

> In my view, the control of production, whether agricultural or industrial, is *prima facie* a local matter, a matter of provincial jurisdiction. [p. 1293]

He qualified this position, however, by stating:

> This does not mean that such power is unlimited, a province cannot control extraprovincial trade, as was held in the *Manitoba Egg Reference* [1971 CanLII 135 (SCC), [1971] S.C.R. 689] and in the *Burns Foods* case [1973 CanLII 194 (SCC), [1975] 1 S.C.R. 494]. However, "Marketing" does not include production and, therefore, provincial control of production is *prima facie* valid. In the instant case, the provincial regulation is not aimed at controlling the extraprovincial trade. In so far as it affects this trade, it is only complementary to the regulations established under federal authority. In my view this is perfectly legitimate, otherwise it would mean that our Constitution makes it impossible by federal-provincial cooperative action to arrive at any practical scheme for the orderly and efficient production and marketing of a commodity which all governments concerned agree requires regulation in both intraprovincial and extraprovincial trade. [Emphasis added; p. 1296.]

Laskin C.J. was in substantial agreement with this analysis:

> The primary object is to regulate marketing in intraprovincial trade. Although it would not be a valid regulation of such marketing to impose quotas on production with a view to limiting interprovincial or export trade, I am not persuaded that I should give s. 21*a*, seen in the context of the *Ontario Farm Products Marketing Act* of which it is part, that construction. [Emphasis added; pp. 1286-87.]

29 With respect, I have difficulty seeing how Laskin C.J.'s reasons in the *Egg Reference* assist Mr. Pelland or yield a fertile basis for reconsidering the constitutionality of the provincial component of the scheme in this case. In a passage of equal applicability to the present case, Laskin C.J. wrote that:

> It is clear that the intention was to mesh federal and provincial regulatory control so as to embrace both the producers who market their production in a particular Province and those who seek to export their production to another Province or beyond Canada. It was certainly open to the federal authorities to fix the respective provincial shares of Canadian egg production for the purpose of regulating the movement of eggs in interprovincial or export trade. The share so fixed for a particular Province would establish a limitation for that Province in respect of its own marketing policies. Hence, the fact that a Province has adopted the same share percentage does not per se rule out its connection with intraprovincial trade. The adoption provides no more than a reference point by which to measure the provincial approach to marketing quotas for producers in the Province. I do not think that the use of this reference point

> amounts to an invasion of federal authority in relation to interprovincial trade. Rather, and the terms of the challenged Regulation so indicate, it is enacted under a recognition of that authority and an appreciation of the control of that trade under federal legislation. In short, it envisages that there will be interprovincial and export marketing by producers in Ontario. [Emphasis added; pp. 1282-83.]

30 As a substantive matter, neither judgment in the *Egg Reference* deviated from this Court's defining prior analysis in *Carnation Co. v. Quebec Agricultural Marketing Board*, 1968 CanLII 82 (SCC), [1968] S.C.R. 238. In *Carnation*, Martland J., writing for a unanimous Court, undertook a careful review of this Court's jurisprudence, including *Reference re The Farm Products Marketing Act*, 1957 CanLII 1 (SCC), [1957] S.C.R. 198, and concluded that:

> The view of the four judges in the *Ontario Reference* was that the fact that a transaction took place wholly within a province did not necessarily mean that it was thereby subject solely to provincial control. The regulation of some such transactions relating to products destined for interprovincial trade could constitute a regulation of interprovincial trade and be beyond provincial control.
>
> While I agree with the view of the four judges in the *Ontario Reference* that a trade transaction, completed in a province, is not necessarily, by that fact alone, subject only to provincial control, I also hold the view that the fact that such a transaction incidentally has some effect upon a company engaged in interprovincial trade does not necessarily prevent its being subject to such control.
>
> I agree with the view of Abbott J., in the *Ontario Reference*, that each transaction and each regulation must be examined in relation to its own facts…They did not purport directly to control or to restrict such trade. There was no evidence that, in fact, they did control or restrict it. The most that can be said of them is that they had some effect upon the cost of doing business in Quebec of a company engaged in interprovincial trade, and that, by itself, is not sufficient to make them invalid. [Emphasis added; pp. 253-54.]

31 This analysis underlies the concern expressed by Laskin C.J. in the *Egg Reference*, and it arises whenever there is overlapping jurisdiction. Laws enacted under the jurisdiction of one level of government often overflow into or have incidental impact on the jurisdiction of the other governmental level. That is why a reviewing court is required to focus on the core character of the impugned legislation, as this Court did in *Carnation*; *Attorney-General for Manitoba v. Manitoba Egg and Poultry Assn*., 1971 CanLII 135 (SCC), [1971] S.C.R. 689; the *Egg Reference*; *Canadian Industrial Gas & Oil Ltd. v. Government of Saskatchewan*, 1977 CanLII 210 (SCC), [1978] 2 S.C.R. 545; and *Central Canada Potash Co. v. Government of Saskatchewan*, 1978 CanLII 21 (SCC), [1979] 1 S.C.R. 42.

32 Turning to an examination of the essence of the provincial component of the 1978 federal-provincial chicken marketing scheme, one observes at the outset that the scheme is functionally identical to Ontario's egg marketing and production legislation considered in the *Egg Reference*. Like that case, the parties agree that the provisions of the *Constitution Act*, *1867* engaged by the federal-provincial chicken marketing scheme at issue here are s. 91(2), which confers jurisdiction over trade and commerce to the federal government, and s. 92(10), which gives provincial governments jurisdiction over local works and undertakings.

33 As previously indicated, once the national quota for chicken production is divided among the provinces, a producer must be allotted an individual production quota in order to produce chicken in the province. Chicken producers within each province receive only one individual marketing and production quota.

34 The provincial chicken regulation expresses quotas in square meters of barn space, clearly tying quotas to physical production within Quebec. The quota assigned to each producer in a province does not distinguish between what can be marketed within the province and what can be marketed extraprovincially; rather, the decision whether to market internally or externally is up to each producer once he or she obtains the proper licences (*Canadian Chicken Licensing Regulations*, SOR/81-517). Quebec's chicken producers are free to market their products intraprovincially, extraprovincially or in some combination of the two, so long as they do not exceed their individual quotas.

35 The only requirements imposed on provincial producers wishing to export their product are that they obtain a marketing and production quota from the Fédération and a licence from the federal body. A producer may not engage in the marketing of chicken in interprovincial or export trade without the appropriate licence. The licensing requirement, however, is not onerous. On receipt of a valid application, the federal body is required to issue a licence. For its part, the producer is required to abide by the applicable laws and to make regular reports detailing its extraprovincial sales. The amount of chicken that a producer may export is not specified on the licence and is, in theory, limited solely by the quota amount assigned by the Fédération.

36 It is important to stress that in examining the provincial laws at issue in the *Egg Reference*, both Laskin C.J. and Pigeon J. agreed that they were constitutional because they did not purport to, nor did they in fact, directly control or restrict export trade. The same is true of the provincial scheme in this case.

37 The core character of the provincial legislative component of the federal-provincial chicken marketing scheme is not to set quotas or fix prices for exported goods or to attempt to regulate interprovincial or export trade. As in the *Egg Reference*, its purpose is to establish rules that allow for the organization of the production and marketing of chicken within Quebec and to control chicken production to fulfill provincial commitments under a cooperative federal-provincial agreement. Any impact of this legislation on extraprovincial trade is incidental.

38 With respect, I see no principled basis for disentangling what has proven to be a successful federal-provincial merger. Because provincial governments lack jurisdiction over extraprovincial trade in agricultural products, Parliament authorized the creation of federal marketing boards and the delegation to provincial marketing boards of regulatory jurisdiction over interprovincial and export trade. Each level of government enacted laws and regulations, based on their respective legislative competencies, to create a unified and coherent regulatory scheme. The quota system is an attempt to maintain an equilibrium between supply and demand and attenuate the inherent instability of the markets. To achieve this balance, it cannot exempt producers who seek to avoid production control limits by devoting all or any of their production to extraprovincial trade.

39 Mr. Pelland also suggested that the Court consider the analysis in *Central Canada Potash* as offering analagous guidance. With respect, however, that case is not applicable. It turned on "the true nature and character" of the operative provincial scheme (p. 75). In *Central Canada Potash*, in fact, Laskin C.J. affirmed the decision of this Court in the *Egg Reference*. At issue was the constitutional validity of provincial regulations in Saskatchewan whereby each producer's share of potash production was allocated based solely on production capacity. It was common ground that at the time the regulations were made, almost all Saskatchewan-produced potash was sold in interprovincial and export trade. The case was decided before s. 92A was added to the *Constitution Act, 1867*, enlarging provincial powers over non-renewable natural resources.

40 Laskin C.J. found that the purpose of the regulations was to regulate the marketing of potash through the fixing of a minimum selling price applicable to the permitted production quota. The only market for which the scheme had any significance was the export market. Citing the *Egg Reference*, he held that while it is true that production controls and conservation measures with respect to natural resources in a province are ordinarily matters within provincial authority, the situation may be different where a province establishes a marketing scheme with price fixing as its central feature. He found Saskatchewan's legislation to be *ultra vires* because it took direct aim at the production of potash destined for export and had the intended effect of regulating the export price.

41 In Mr. Pelland's case, however, quotas are not being imposed on production with a view to limiting interprovincial trade, the hypothetical situation left open by Laskin C.J.'s minority judgment in the *Egg Reference*. Unlike *Central Canada Potash*, where the provincial scheme took direct aim at production destined for export, or the *Manitoba Egg and Poultry* case in which the provincial scheme was designed to restrict or limit the free flow of trade between provinces, the cooperative scheme at issue in this case is designed, like the scheme in the *Egg Reference*, to integrate federal and provincial marketing and production programmes.

42 At best, Mr. Pelland might argue that his production was effectively "choked off" by the reduction of his quota to zero through the penalty provisions of the provincial legislation. It is true that in his case the penalty provisions had this effect. But since the purpose of the provincial legislation is not to strangle export production, and since Mr. Pelland had been entitled, if he so chose, to export his entire quota of chickens, he cannot argue that the limits on his production and marketing contradict the purpose of the provincial legislation.

43 Mr. Pelland had his quota reduced not to control what he exported to extraprovincial markets, but in proportionate and formulaic response to his overproduction, regardless of the intended market. An individual producer like Mr. Pelland receives a single production quota, regardless of marketing destination. The fact that his quota was reduced to zero had nothing to do with a provincial attempt to regulate interprovincial or export trade, and everything to do with a flagrant disregard for his production quota.

44 Accordingly, the answer to the first constitutional question is affirmative, namely, the provincial legislation is constitutional and can operate to limit the production of chickens destined exclusively for the interprovincial market.

2.2.5 Questions

1. The validity of legislation is conventionally understood to depend on the legislation's "pith and substance," a summary of the law's "purpose" and "effects." To what extent is the purpose of the legislation relevant in *Murphy, Klassen* and Caloil?
2. Consider a federal law that imposes restrictions on the interprovincial movement of a commodity (its *legal effect*) for a *purpose* unrelated to crossborder trade. Does such a law come within s. 91(2)?

   For example, the Energy Efficiency Act, RSC 1985, c E-6.4, s 4(1), restricts crossborder transactions in specified products for a purpose related to environmental protection or energy conservation. S. 4(1) provides that:

   > "(1) No dealer shall, for the purpose of sale or lease, ship an energy-using product from one province to another province, or import an energy-using product into Canada, unless …
   >
   > (a) the product complies with the energy efficiency standard [prescribed by the regulations]; and
   >
   > (b) the product or its package is labelled in accordance with the regulations, if any."

   See also *Manganese-Based Fuel Additives Act*, RSC 1985, c M-0.5, s 4, and *Motor Vehicle Fuel Consumption Standards Act*, RSC 1985, c M-9, s 6(1).

2.3 Key cases: "General regulation of trade"

2.3.1 Macdonald v Vapor Canada

***Macdonald v Vapor Canada*, [1977] 2 SCR 134, 1976 CanLII 181**

LASKIN CJ: —

[The issue in the case is whether s. 7(e) of the federal *Trade Marks Act*, which provides that "no person shall … do any … act or adopt any … business practice contrary to honest industrial or commercial usage in Canada," is validly enacted under s. 91(2) of the *Constitution Act, 1867*.]

[…] I am quite prepared, in considering the scope of federal legislative power in relation to the regulation of trade and commerce, to look at the [*Citizens Insurance v. Parsons*] case in the widest aspects of its pronouncements on what that scope is. The attenuation of this broadly phrased power cannot be attributed to the *Parsons* case but to a sequential course of decision which, in my view, failed to redeem the promise of what the *Parsons* case said.

The Privy Council's assessment of the trade and commerce power in the *Parsons* case, … was expressed in the following words (at p. 113 of 7 App. Cas.):

> Construing therefore the words "regulation of trade and commerce" by the various aids to their interpretation above suggested, they would include political arrangements in regard to trade requiring the sanction of parliament, regulation of trade in matters of interprovincial concern, and it may be that they would include general regulations of trade affecting the whole dominion. Their Lordships abstain on the present occasion from any attempt to define the limits of the authority of the dominion parliament in this direction. It is enough for the decision of the present case to say that, in their view, its authority to legislate for the regulation of trade and commerce does not comprehend the power to regulate by legislation the contracts of a particular business or trade, such as the business of fire insurance in a single province, and therefore that its legislative authority does not in the present case conflict or compete with the power over property and civil rights assigned to the legislature of Ontario by No. 13 of sect. 92.

Lord Watson in the *Local Prohibition* case, *Attorney-General of Ontario v. Attorney-General of Canada* [[1896] A.C. 348.], at p. 363 was content to leave open the exact scope of the federal trade and commerce power, saying of the *Parsons* case that it was there decided "that in the absence of legislation upon the subject by the Canadian Parliament, the Legislature of Ontario had authority to impose conditions, as being matters of civil right, upon the business of fire insurance, which was admitted to be a trade, so long as those conditions only affected provincial trade". The truncation of the federal trade and commerce power appeared in the *Insurance Reference* case of 1916, *Attorney-General of Canada v. Attorney- General of Alberta* [1916 CanLII 424 (UK JCPC), [1916] 1 A.C. 588.], at p. 596, where Lord Haldane, making no specific reference to the *Parsons* case but to two other cases, *Hodge v. The Queen* [(1883),9 App. Cas. 117.], and to the unreported Privy Council decision in the *McCarthy Act* case (as to which see schedule to 1885 (Can.), c. 74), stated that "it must now be taken that the authority to legislate for the regulation of trade and commerce does not extend to the regulation by a licensing system of a particular trade in which Canadians would otherwise be free to engage in the provinces".

The *Parsons* case, as already noted from the quotation therefrom, spoke of the contracts of a particular business or trade, and excluded these from regulation by the federal Parliament under s. 91(2). The process of truncation was continued in the *Board of Commerce* [1921 CanLII 399 (UK JCPC), [1922] 1 A.C. 191.] case, but was arrested in *Proprietary Articles Trade Association v. Attorney-General of Canada* [1931 CanLII 385 (UK JCPC), [1931] A.C. 310.]

...

I do not find anything in the case law on s. 91(2) that prevents this Court, even if it would retain a cautious concern for stare decisis, from taking the words of the Privy Council in the *Parsons* case, previously quoted, as providing the guide or lead to the issue of validity that arises here. [However, these criteria cannot] sustain s. 7(e). I repeat the relevant sentence in the *Parsons* case:

> The words "regulation of trade and commerce" ... would include political arrangements in regard to trade requiring the sanction of Parliament, regulation of trade in matters of interprovincial concern, and it may be that they would include general regulations of trade affecting the whole dominion.

It is the last mentioned category that is to be considered here.

The plain fact is that s. 7(e) is not a regulation, nor is it concerned with trade as a whole nor with general trade and commerce. In a loose sense every legal prescription is regulatory, even the prescriptions of the Criminal Code, but I do not read s. 91(2) as in itself authorizing federal legislation that merely creates a statutory tort, enforceable by private action, and applicable, as here, to the entire range of business relationships in any activity, whether the activity be itself within or beyond federal legislative authority. If there have been cases which appeared to go too far in diminution of the federal trade and commerce power, an affirmative conclusion here would, in my opinion, go even farther in the opposite direction.

…

One looks in vain for any regulatory scheme in s. 7, let alone s. 7(e). Its enforcement is left to the chance of private redress without public monitoring by the continuing oversight of a regulatory agency which would at least lend some colour to the alleged national or Canada-wide sweep of s. 7(e). The provision is not directed to trade but to the ethical conduct of persons engaged in trade or in business, and, in my view, such a detached provision cannot survive alone unconnected to a general regulatory scheme to govern trading relations going beyond merely local concern. Even on the footing of being concerned with practices in the conduct of trade, its private enforcement by civil action gives it a local cast because it is as applicable in its terms to local or intraprovincial competitors as it is to competitors in interprovincial trade.

[Chief Justice Laskin further observed that s. 7 had nothing to do with trademarks, and therefore had no connection with the overall scheme of trademark regulation contained in the rest of the *Trade Marks Act*.]

2.3.2 *Labatt Breweries of Canada Ltd v Attorney General of Canada*

***Labatt Breweries of Canada Ltd v Attorney General of Canada*, [1980] 1 SCR 914, 1979 CanLII 190**

ESTEY J (Martland, Dickson, Beetz JJ concurring): —

… The relevant facts are few. The product in question is one of the malt liquors described in regulations promulgated under the Act and has an alcohol content of 4 per cent. [The product, marketed under the name "Labatt Special Lite," did not comply with the restrictions on the maximum alcohol content of products marketed as "light beer" under s. B.02.134 of the *Food and Drug Regulations*, C.R.C., c. 870.] Section 6 of the [Food and Drug Act] states as follows:

> Where a standard has been prescribed for a food, no person shall label, package, sell or advertise any article in such a manner that it is likely to be mistaken for such food, unless the article complies with the prescribed standard.

[The appellant takes the position that] s. 6 of the Act and regulation B.02.134 are *ultra vires* the Parliament of Canada….

[In] the *Parsons* case, ... the trade and commerce head was … described as consisting of two branches. The first in the words of the judgment includes "political arrangements in regard to trade requiring the sanction of Parliament, regulation of trade in matters of interprovincial concern…". The second branch is said to "…include general regulation of trade affecting the whole Dominion."

[Regarding the first branch, the] impugned regulations in and under the *Food and Drugs Act* are not concerned with the control and guidance of the flow of articles of commerce through the distribution channels, but rather with the production and local sale of the specified products of the brewing industry. There is no demonstration by the proponent of these isolated provisions in the *Food and Drugs Act* and its regulations of any interprovincial aspect of this industry. The labels in the record reveal that the appellant produces these beverages in all provinces but Quebec and Prince Edward Island. From the nature of the beverage, it is apparent, without demonstration, that transportation to distant markets would be expensive, and hence the local nature of the production operation.

[Regarding the second branch under Parsons,] what clearly is not of general national concern is the regulation of a single trade or industry. ... [I]t is clear that neither national ownership of a trade or undertaking or even national advertising of its products will alone suffice to authorize the imposition of federal trade and commerce legislation.

…. [T]he trade and commerce head cannot be applied to the regulation of a single trade, even though it be on a **[Page 942]** national basis, and in the *Board of Commerce* disposition, *supra*, the invocation of the trade and commerce head of federal jurisdiction is forbidden in the regulation of elements of commerce such as contracts, in an individual trade or concern even though the control was imposed in a series of separate regulatory codes each purporting to regulate a separate trade or industry….

Nowhere are the impugned statutory regulations or provisions concerned with the control or regulation of the extraprovincial distribution of these products or their movement through any channels of trade. On the contrary, their main purpose is the regulation of the brewing process itself by means of a "legal recipe", as counsel for the appellant put it. Indeed, if the industry is substantially local in character, as seems to be the case from the sparse record before the court (as noted above), the regulations are, in fact, confined to the regulation of a trade within a province.

In the end, the effort of the respondent here is simply to build into these regulations a validity essentially founded upon the embryonic definition of the application of the trade and commerce heading in the *Citizens Insurance* case, *supra*. That observation and the subsequent references thereto are all predicated upon the requirement that the purported trade and commerce legislation affected industry and commerce at large or in a sweeping, general sense. In the context of the *Food and Drugs Act*, it follows that even if this statute **[Page 944]** were to cover a substantial portion of Canadian economic activity, one industry or trade at a time, by a varying array of regulations or trade codes applicable to each individual sector, there would not, in the result, be at law a regulation of trade and commerce in the sweeping general sense contemplated in the *Citizens Insurance* case, *supra*. That, in my view, is the heart and core of the problem confronting the respondent in this appeal.

LASKIN CJ, dissenting:—

… [Parliament] should be able to fix standards that are common to all manufacturers of foods, including beer, drugs, cosmetics and therapeutic devices, at least to equalize competitive advantages in the carrying on of businesses concerned with such products. I find some reinforcement in this view of the scope of the federal trade and commerce power in s. 121 of the *British North America Act* which precludes interprovincial tariffs, marking Canada **[Page 922]** as a whole as an economic union.

The operations of Labatt Breweries and of other brewers of beer extend throughout Canada, and I would not attenuate the federal trade and commerce power any further than has already been manifested in judicial decisions by denying Parliament authority to address itself to uniform prescriptions for the manufacture of food, drugs, cosmetics, therapeutic devices in the way, in the case of beer, of standards for its production

and distribution according to various alcoholic strengths under labels appropriate to the governing regulations.

2.3.3 Attorney General of Canada v Canadian National Transportation Ltd

***Attorney General of Canada v Canadian National Transportation Ltd*, [1983] 2 SCR 206, 1983 CanLII 36**

DICKSON J., concurring: —

Is the Attorney General of Canada constitutionally competent to prefer indictments and conduct proceedings in respect of alleged violations of the *Combines Investigation Act,* R.S.C. 1970, c. C-23, as amended? …

[The respondent accused challenged the proceedings brought against it by the A.G. Canada, arguing that] s. 32(1)(c) of the Combines Investigation Act was criminal law and that pursuant to s. 92(14) of the British North America Act, 1867 (now the Constitution Act, 1867) only a provincial Attorney General could conduct prosecutions. …

The appellant [Attorney General of Canada] submits that s. 32(1)(c) of the Combines Investigation Act is not constitutionally [Page 250] dependent only on the s. 91(27) criminal law power, but is also supportable under head 91(2), trade and commerce ….

… In *Parsons* the Privy Council identified international and inter-provincial trade as coming within the ambit of s. 91(2) and much of the subsequent jurisprudence on the federal trade and commerce power has been devoted to a consideration of just how much or how little intraprovincial commerce could be validly swept into the flow of the interprovincial trade affected by a given enactment. In the present case, however, even on the most generous definition, s. 32(1)(c) of the Combines Investigation Act cannot be seen as a regulation of interprovincial trade and commerce. The appellant Attorney General of Canada concedes that if it is to be justified under s. 91(2), this enactment must fall within what has been called the "second branch" of the *Parsons* classification, namely the "general regulation of trade affecting the whole dominion".

[Attempts by the federal government to rely on this second branch have, over the years, met with a] conspicuous lack of success…. [One reason for this is that if] every economic issue that could be characterized as a "question of general interest throughout the Dominion" were to fall under federal competence by virtue of s. 91(2), then the extent of the power would hardly be narrower than it would on a literal reading of the words "regulation of trade and commerce" alone. There is hardly an economic issue which, if only by virtue of its recurrence in locations around the country, could not be characterized as a matter of general interest throughout the Dominion.

Although the Privy Council in *Parsons* was unwilling to consider in detail the boundary between ss. 91(2) and 92(13) it did go as far as holding that "regulation of trade and commerce" could not include "the power to regulate by legislation the contracts of a particular business or trade". … [More recently,] in the *Labatt* case, *supra,* after confirming that the proper test under the second branch of the trade and commerce power is still whether the legislation deals with a question of general interest throughout the Dominion, Estey J. went on at p. 940 to state, "What clearly is not [Page 266] of general national concern is the regulation of a single trade or industry", a proposition which he extended to hold true even if the regulation were on a national basis. I concurred in Estey J.'s judgment in *Labatt* and I agree with this statement of what is to be subtracted from the notion of "a question of general interest throughout the Dominion". … I do not, however, believe that any of this leads necessarily to the … conclusion propounded by the respondent and the intervenant Attorneys General that the relevant legislation in the present case cannot validly depend on the federal trade and commerce power….

Every general enactment will necessarily have some local impact and if it is true that an overly literal conception of "general interest" will endanger the very idea of the local, there are equal dangers of swinging the telescope the other way around. The forest is no less a forest for being made up of individual trees. Whatever the constitutional flaws in the *Board of Commerce Act* and *Combines and Fair Prices Act*, they cannot be attributed, as Duff J seems to contend, to the fact that any individual order made by the board would have its effect on a business or trade in the province. Were that the test then no economic legislation could ever qualify under the general trade and commerce power. Such a conception is merely the obverse of the equally unacceptable proposition that economic legislation qualifies under the general trade and commerce rubric merely because it applies equally and uniformly throughout the country.

The reason why the regulation of a single trade or business in the province cannot be a question of general interest throughout the Dominion, is that it lies at the very heart of the local autonomy envisaged in the *Constitution Act, 1867*. That a federal enactment purports to carry out such regulation in the same way in all the provinces or in association with other regulatory codes dealing with other trades or businesses does not change the fact that what is being created is an exact overlapping and hence a nullification of a jurisdiction conceded to the provinces by the Constitution. A different situation obtains, however, when what is at issue is general legislation aimed at the economy as a single integrated national unit rather than as a collection of separate local enterprises. Such legislation is qualitatively different from anything that could practically or constitutionally be enacted by the individual provinces either separately or in combination. The focus of such legislation is on the general, though its results will obviously be manifested in particular local effects any one of which may touch upon "Property and Civil Rights in the Province." Nevertheless, in pith and substance such legislation will be addressed to questions of general interest throughout the Dominion. The line of demarcation is clear between measures validly directed at a general regulation of the national economy and those merely aimed at centralized control over a large number of economic entities. The regulations in the Labatt case were probably close to the line. It may also well be that, given the state of the economy in 1920 and the actual mechanics of the legislation, the *Board of Commerce Act* and the *Combines and Fair Prices Act* amounted simply to an attempt to authorize the issuance of an uncoordinated series of local orders and prohibitions.

In approaching this difficult problem of characterization it is useful to note the remarks of the Chief Justice in *MacDonald v. Vapor Canada Ltd.*, … in which he cites as possible indicia for a valid exercise of the general trade and commerce power the presence of a national regulatory scheme, the oversight of a regulatory agency and a concern with trade in general rather the with an aspect of a particular business. To this list I would add what to my mind would be even stronger indications of valid general regulation trade and commerce, namely (i) that the provinces jointly or severally would be constitutionally incapable of passing such an enactment and (ii) that failure to include one or more provinces or local ties would jeopardize successful operation in other parts of the country.

The above does not purport to be an exhaustive list, nor is the presence of any or all of these indicia necessarily decisive. The proper approach to the characterization is still the one suggested in Parsons, a careful case by case assessment. Nevertheless, the presence of such factors does at least make it far more probable that what is being addressed in a federal enactment is genuinely national economic concern and not just a collection of local ones.

LASKIN CJ (Ritchie, Estey and McIntyre JJ): —

[Parliament has the authority to legislate with respect to the prosecution of all federal law offences, whether or not the offences are dependent on the criminal law power.]

2.3.4 General Motors of Canada Ltd v City National Leasing

***General Motors of Canada Ltd v City National Leasing*, [1989] 1 SCR 641, 1989 CanLII 133 (excerpt by Howard Kislowicz)**

THE CHIEF JUSTICE -- The principal issue in this appeal is the constitutional validity of s. 31.1 of the *Combines Investigation Act*, R.S.C. 1970, c. C-23. Section 31.1 creates a civil cause of action for certain infractions of the *Combines Investigation Act*. It is this fact which makes the section constitutionally suspect: a civil cause of action is within the domain of the provinces to create. The essential question raised by this appeal is whether s. 31.1 can, nevertheless, be upheld as constitutionally valid by virtue of its relationship with the *Combines Investigation Act*. Answering this question requires addressing two issues: first, is the Act valid under the federal trade and commerce power, expressed in s. 91(2) of the *Constitution Act, 1867*; and second, is s. 31.1 integrated with the Act in such a way that it too is *intra vires* under s. 91(2).

…

Facts

General Motors of Canada Ltd. ("GM") manufactures automobiles and trucks. City National Leasing ("CNL") leases across Canada fleets of automobiles and trucks in competition with other national fleet leasing companies. CNL purchases the majority of its vehicles from franchised GM dealers, but does not purchase from GM directly. To finance purchases of GM vehicles between 1970 and 1980, CNL received interest rate support through a program offered by General Motors Acceptance Corporation ("GMAC"). CNL alleges that during that time GM, directly or indirectly, had been paying "preferential" interest rate support to competitors of CNL in respect of competitors' purchases of GM manufactured automobiles and trucks, in addition to the interest rate support available to CNL. It is further alleged that the exclusion of CNL from the preferential interest rate support program from 1970 to 1980 was a practice of price discrimination contrary to s. 34(1)(*a*) of the Act, giving CNL an action under s. 31.1. CNL claims that it lost profits equivalent to monies saved by its competitors, and that it is entitled to recover from GM damages equivalent to the lost profits and compound interest thereon. CNL also sued GM for breach of contract for damages arising after March 1980.

…

The General Trade and Commerce Power

…

The leading case of *Citizens' Insurance Company of Canada v. Parsons* (1881), 1880 CanLII 6 (SCC), 7 App. Cas. 96, sets out the most frequently quoted statement of the scope of s. 91(2). Speaking for the Privy Council, Sir Montague Smith noted at p. 112 that if the words trade and commerce were given their ordinary meaning, s. 91(2) conceivably granted very wide-ranging powers to the federal government:

> The words "regulation of trade and commerce," in their unlimited sense are sufficiently wide, if uncontrolled by the context and other parts of the Act, to include every regulation of trade ranging from political arrangements in regard to trade with foreign governments, requiring the sanction of parliament, down to minute rules for regulating particular trades.

To limit the breadth of a literal interpretation of s. 91(2), Sir Montague Smith settled upon the following construction, at p. 113:

> Construing therefore the words "regulation of trade and commerce" by the various aids to their interpretation above suggested, they would include political arrangements in regard to trade requiring the sanction of parliament, regulation in matters of inter-provincial concern, and it may be that they would include general regulation of trade affecting the whole dominion.

Sir Montague Smith continued, on the same page:

> Having taken this view of the present case, it becomes unnecessary to consider the question how far the general power to make regulations of trade and commerce, when competently exercised by the dominion parliament, might legally modify or affect property and civil rights in the provinces, or the legislative power of the provincial legislatures in relation to those subjects . . . .

In *Canadian National Transportation*, *supra*, at p. 258, I suggested that *Parsons* had established three important propositions with regard to the federal trade and commerce power:

> . . . (i) it does not correspond to the literal meaning of the words "regulation of trade and commerce"; (ii) it includes not only arrangements with regard to international and interprovincial trade but "it may be that . . . (it) would include general regulation of trade affecting the whole dominion"; (iii) it does not extend to regulating the contracts of a particular business or trade.

Since *Parsons*, the jurisprudence on s. 91(2) has largely been an elaboration on the boundaries of the two aspects or "branches" of federal power: (1) the power over international and interprovincial trade and commerce; and (2) the power over general trade and commerce affecting Canada as a whole. The first branch has been the subject of considerable constitutional challenge and judicial scrutiny. The second branch, in contrast, has remained largely unexplored, *terra incognita*. In this appeal, however, it is under this second branch of s. 91(2) that CNL and the Attorney General of Canada seek to uphold s. 31.1.

…

Aside from… two cases, at least until of late, the general trade and commerce power met with consistent rejection by the courts. Professor Hogg in the second edition of his work *Constitutional Law of Canada*, at pp. 447-48, notes that the courts refused to accept it as the basis for regulation of the insurance industry in the *Attorney-General for Canada v. Attorney-General for Alberta (Insurance Reference)*, 1916 CanLII 424 (UK JCPC), [1916] 1 A.C. 588; prices and profits in *In re the Board of Commerce Act, 1919, and the Combines and Fair Prices Act, 1919* (the *Board of Commerce* case), 1921 CanLII 399 (UK JCPC), [1922] 1 A.C. 191; labour relations in *Toronto Electric Commissioners v. Snider*, 1925 CanLII 331 (UK JCPC), [1925] A.C. 396; marketing in *The King v. Eastern Terminal Elevator Co.*, 1925 CanLII 82 (SCC), [1925] S.C.R. 434, and *Attorney-General for British Columbia v. Attorney-General for Canada (Natural Products Marketing Reference)*, 1937 CanLII 364 (UK JCPC), [1937] A.C. 377; and the prohibition of margarine in *Canadian Federation of Agriculture v. Attorney-General for Quebec (The Margarine Reference)*, 1950 CanLII 342 (UK JCPC), [1951] A.C. 179.

The treatment of the general trade and commerce power in the cases just mentioned was no doubt strongly influenced by earlier Privy Council decisions on s. 91(2) and in particular what Anglin C.J. referred to in *The King v. Eastern Terminal Elevator Co.*, *supra*, at p. 441, as ". . . their Lordships' emphatic and reiterated allocation of `the regulation of trade and commerce' to . . . [a] subordinate and wholly auxiliary function . . . ."

…

Since 1949 and the abolition of appeals to the Privy Council, the trade and commerce power has, I think it fair to say, enjoyed an enhanced importance …

> In examining cases which have considered s. 91(2), it is evident that courts have been sensitive to the need to reconcile the general trade and commerce power of the federal government with the provincial power over property and civil rights. Balancing has not been easy.

…

This Court took the first step towards delineating more specific principles of validity for legislation enacted under the general trade and commerce power in *Vapor Canada*, *supra*. …

Chief Justice Laskin, speaking for five members of the Court, proposed three hallmarks of validity for legislation under the second branch of the trade and commerce power. First, the impugned legislation must be part of a general regulatory scheme. Second, the scheme must be monitored by the continuing oversight of a regulatory agency. Third, the legislation must be concerned with trade as a whole rather than with a particular industry. Each of these requirements is evidence of a concern that federal authority under the second branch of the trade and commerce power does not encroach on provincial jurisdiction. By limiting the means which federal legislators may employ to that of a regulatory scheme overseen by a regulatory agency, and by limiting the object of federal legislation to trade as a whole, these requirements attempt to maintain a delicate balance between federal and provincial power. On the basis of these criteria, Laskin C.J. then rejected the general trade and commerce power as the constitutional foundation for s. 7(*e*).

Three members of the Court affirmed the *Vapor Canada* criteria in *Canadian National Transportation*. At issue in *Canadian National Transportation* was the authority of the Attorney General of Canada to conduct prosecutions under the *Combines Investigation Act*. Four members of the Court held that provincial authority over the administration of justice in s. 92(14) of the *Constitution Act, 1867*, did not preclude the federal government from conducting prosecutions of criminal offences. I was of the view that s. 92(14) did preclude the federal government from prosecuting criminal offences -- unless the offences could be upheld under a head of power other than s. 91(27). I then took the further position, in which Beetz and Lamer JJ. agreed in substance, that the section could be sustained as legislation relating to the general trade and commerce power and thus the federal government was competent to prosecute a violation of s. 32(1) of the *Combines Investigation Act*.

In reaching the conclusion that s. 32(1)(*c*) of the *Combines Investigation Act* was within the scope of the general trade and commerce power, and writing for the minority of the Court, I adopted Laskin C.J.'s three criteria in *Vapor Canada*, *supra*, but added two factors that I considered *indicia* of the valid exercise of the general trade and commerce power: (i) the legislation should be of a nature that the provinces jointly or severally would be constitutionally incapable of enacting; and (ii) the failure to include one or more provinces or localities in a legislative scheme would jeopardize the successful operation of the scheme in other parts of the country. These two requirements, like Laskin C.J.'s three criteria, serve to ensure that federal legislation does not upset the balance of power between federal and provincial governments. In total, the five factors provide a preliminary check-list of characteristics, the presence of which in legislation is an indication of validity under the trade and commerce power. These *indicia* do not, however, represent an exhaustive list of traits that will tend to characterize general trade and commerce legislation. Nor is the presence or absence of any of these five criteria necessarily determinative. …

On any occasion where the general trade and commerce power is advanced as a ground of constitutional validity, a careful case by case analysis remains appropriate. The five factors articulated in *Canadian National Transportation* merely represent a principled way to begin the difficult task of distinguishing between matters relating to trade and commerce and those of a more local nature.

…

The Presence of a Regulatory Scheme in the *Combines Investigation Act*

The second step in determining the validity of s. 31.1 is to establish whether the Act contains a regulatory scheme. The presence of a well-orchestrated scheme of economic regulation is immediately apparent on examination of the *Combines Investigation Act*. The existence of a regulatory scheme is in evidence throughout the entire Act.

The *Combines Investigation Act* is divided into eight parts. Part I creates the Director of Investigation and Research, whose role is to investigate the possibility that companies are engaging in certain forms of anti-competitive conduct specifically proscribed by later parts of the Act. The Director has the power to require the Restrictive Trade Practices Commission, created by Part II of the Act, to conduct hearings into suspected violations of the Act. The Director is also in charge of enforcing the criminal provisions of the Act (Part V) by referring the matter to the Attorney General of Canada, and of enforcing the provisions relating to the civil violations of the Act by the exclusive right to apply to the Restrictive Trade Practices Commission for a remedial order (Part IV.1).

Part II establishes the Restrictive Trade Practices Commission. The role of the Commission is to conduct hearings into alleged violations of the criminal provisions of the Act, upon request of the Director. At the conclusion of the proceedings, the Commission is required to submit a written report to the Minister of Consumer and Corporate Affairs. The report must include an appraisal of the effect on the public interest of arrangements and practices disclosed in the evidence as well as recommendations on potential remedies. Part III contains general provisions regarding the conduct of inquiries and proceedings and the remuneration of staff.

Parts IV and IV.1 contain the remedial provisions of the *Combines Investigation Act*. Part IV, entitled *Special Remedies*, is, as its name implies, a list of remedies for anti-competitive conduct defined in the Act, including the reduction or removal of customs duties (s. 28), orders of the Federal Court to prevent the use of patents as a method of restraining trade (s. 29), interim injunctions against conduct proscribed under Part V of the Act (s. 29.1), prohibition orders on repetition of conduct where a person has been convicted of an offence under Part V (s. 30), and the civil damages action at issue in this appeal (s. 31.1). Part IV.1 of the Act is entitled *Matters Reviewable by the Commission*. It grants the Commission the authority to issue remedial orders against a number of trade practices including exclusive dealing, market restriction and tied selling.

The penal provisions of the Act are enumerated in Parts V and VI. Part V proscribes as criminal certain practices including conspiracies to lessen competition (s. 32), bid-rigging (s. 32.2), assisting in the formation of a merger or monopoly (s. 33), illegal trade practices (s. 34), misleading advertising (s. 36), false representations of product performance tests and testimonials (s. 36.1) double ticketing (s. 36.2), and pyramid selling (s. 36.3). Part VI of the Act creates a number of offences for obstructing or failing to comply with an inquiry and establishes the enforcement procedure for the criminal provisions of the Act. Finally, Part VII contains general provisions of the investigation of monopolistic situations.

From this overview of the *Combines Investigation Act* I have no difficulty in concluding that the Act as a whole embodies a complex scheme of economic regulation. The purpose of the Act is to eliminate activities that reduce competition in the market-place. The entire Act is geared to achieving this objective. The Act identifies and defines anti-competitive conduct. It establishes an investigatory mechanism for revealing prohibited activities and provides an extensive range of criminal and administrative redress against companies engaging in behaviour that tends to reduce competition. In my view, these three components, elucidation of prohibited conduct, creation of an investigatory procedure, and the establishment of a remedial mechanism, constitute a well-integrated scheme of regulation designed to discourage forms of commercial behaviour viewed as detrimental to Canada and the Canadian economy.

…

The Validity of the Regulatory Scheme

Having discerned the presence of a regulatory scheme in the *Combines Investigation Act*, it is necessary to consider the validity of the scheme under the general trade and commerce power in light of the criteria established in *Canadian National Transportation*, *supra*. Four criteria remain to be examined: (1) whether the regulatory scheme operates under the oversight of an agency, (2) whether the Act is concerned with trade in general, (3) whether the provinces would be constitutionally capable of enacting combines legislation, and finally, (4) whether the failure to include one or more provinces or localities would jeopardize the successful operation of the *Combines Investigation Act*.

The foregoing review of the *Combines Investigation Act* leaves no doubt that the scheme regulating anti-competitive activities operates under the watchful gaze of a regulatory agency. The regulatory mechanism is carefully controlled by the Director of Investigation and Research and to a lesser degree by the Restrictive Trade Practices Commission. The authority to launch an inquiry into suspected anti-competitive conduct lies with the Director. The Director is required to initiate an inquiry whenever there is reason to believe either that a person has failed to comply with an order of the Commission or where an offence proscribed by the Act has been or is about to be committed, whenever the Minister of Consumer and Corporate Affairs so directs, and on application of six residents of Canada over the age of eighteen. The inquiry is conducted by the Director and his or her staff. If the Director concludes that there has been a violation of Part V of the Act, the Director may refer the matter to the Commission whose role is to hold proceedings and to report the outcome, including any remedial recommendations, to the Minister. It is clear that the Director exercises a significant degree of control over the operation of the *Combines Investigation Act*. In my view, the control over the entire process exercised by the Director and the Commission satisfies the requirement that there be vigilant oversight of the administration of a regulatory scheme.

I am also of the view that the *Combines Investigation Act* meets the remaining three *indicia* of *Canadian National Transportation*. These criteria share a common theme: all three are indications that the scheme of regulation is national in scope and that local regulation would be inadequate. The Act is quite clearly concerned with the regulation of trade in general, rather than with the regulation of a particular industry or commodity…

This generality of application distinguishes the Act from the legislation which was found *ultra vires* in *Labatt Breweries of Canada Ltd. v. Attorney General of Canada*, 1979 CanLII 190 (SCC), [1980] 1 S.C.R. 914. In that case the legislation regulated a single trade or industry. As I noted earlier, the purpose of the Act is to ensure the existence of a healthy level of competition in the Canadian economy. The deleterious effects of anti-competitive practices transcend provincial boundaries. Competition is not an issue of purely local concern but one of crucial importance for the national economy.

Various factors underlie the need for national regulation of competition in the economy. Professors Hogg and Grover, in "The Constitutionality of the Competition Bill" (1976), 1 *Can. Bus. L.J.* 197, at pp. 199-200 (an abridged version of a paper written for the federal government's Department of Consumer and Corporate Affairs) provide a useful discussion of the diverse economic, geographical, and political factors which make it essential that competition be regulated on the federal level:

> It is surely obvious that major regulation of the Canadian economy has to be national. Goods and services, and the cash or credit which purchases them, flow freely from one part of the country to another without regard for provincial boundaries. Indeed, a basic concept of the federation is that it must be an economic union. An over-all national policy is the key to efficiency in the production of goods and services. Each province of the country is differently endowed with national resources, capital, labour and access to consumers. The result is that each province will be able to produce some products or services more efficiently than others. The introduction of an effective competition policy can be seen as one method to ensure that these differing regional advantages will accrue to the nation as a whole in terms of lower prices, better quality and variety and increased opportunities for Canadians. Any attempt to achieve an optimal distribution of economic activity must transcend provincial boundaries, for, in many respects, Canada is one huge marketplace . . . .
>
> The relative unimportance of provincial boundaries has become progressively more obvious as industry has tended to become more concentrated. Improved communications and transportation have increased the mobility of labour, capital and technology, as well as raw materials and the finished product . . . .
>
> With respect to businesses which are confined to Canada, with few exceptions, any individual or corporation, including a provincially incorporated corporation, has the capacity to "walk across" provincial boundaries in order to buy or sell, lend or borrow, hire or fire. In the absence of artificial impediments, therefore, the market for goods and services is competitive on a national basis, and provincial legislation cannot be an effective regulator.

…

It is evident from this discussion that competition cannot be effectively regulated unless it is regulated nationally. As I have said, in my view combines legislation fulfills the three *indicia* of national scope as described in *Canadian National Transportation*: it is legislation "aimed at the economy as a single integrated national unit rather than as a collection of separate local enterprises", it is legislation "that the provinces jointly or severally would be constitutionally incapable of passing" and "failure to include one or more provinces or localities would jeopardize successful operation" of the legislation "in other parts of the country".

The above arguments also answer the claim of the Attorney General of Quebec that the regulation of competition does not fall within federal jurisdiction in its intraprovincial dimension and thus the Act should be read down so that s. 31.1 only applies to interprovincial trade. Quebec relies on two points to support its position. First, in the *Interim Report on Competition Policy* of the Canadian Economic Council, the Report which the federal government relies on to show that competition is exclusively federal, there is a passage at p. 108 that recognizes that the provinces have an important role to play in local competition laws…

The second point is that provincial law, both *Civil Code* and common law, already provides some remedies for unfair competition, as in the *Quebec Ready Mix* case where the suit was brought under art. 1053 of the *Civil Code*, as well as s. 31.1 of the *Combines Investigation Act*. Quebec points out that in the United States, forty-three states have adopted competition acts to combat local restraints on trade, in co-ordination with the federal government.

The arguments made above offer a response to these points. They make it clear that not only is the Act meant to cover intraprovincial trade, but that it must do so if it is to be effective. Because regulation of competition is so clearly of national interest and because competition cannot be successfully regulated by federal legislation which is restricted to interprovincial trade, the Quebec argument must fail. I also note that, contrary to the view of Marceau J. in the Trial Division of the Federal Court in *Quebec Ready Mix*, *supra*, at p. 208, that the presence of an already existing action in Quebec law does not argue for invalidating federal legislation. I would repeat what I said at p. 175 of *Multiple Access*, *supra*, (which words were also quoted by MacGuigan J. in the Court of Appeal's judgment in *Attorney General of Canada v. Québec Ready Mix*, *supra*, at p. 78): "The validity of the federal legislation must be determined without heed to the . . . [provincial] legislation".

On the other hand, competition is not a single matter, any more than inflation or pollution. The provinces too, may deal with competition in the exercise of their legislative powers in such fields as consumer protection, labour relations, marketing and the like. The point is, however, that Parliament also has the constitutional power to regulate intraprovincial aspects of competition.

In sum, the *Combines Investigation Act* is a complex scheme of competition regulation aimed at improving the economic welfare of the nation as a whole. It operates under a regulatory agency. It is designed to control an aspect of the economy that must be regulated nationally if it is to be successfully regulated at all…

Appeal dismissed.

2.3.5 Kirkbi AG v Ritvik Holdings Inc

***Kirkbi AG v Ritvik Holdings Inc*, 2005 SCC 65**

LEBEL J: —

[Upon the expiry of LEGO patents in Canada, a Canadian toy manufacturer (Ritvik) began manufacturing similar construction toy sets using the same system of interlocking studs and tubes. Kirkbi, the manufacturer of LEGO construction sets, brought an action under s. 7(b) of the *Trademarks Act*, RSC 1985, c T-13. The action] seeks to prevent Ritvik from marketing its competing products without a proper disclaimer that its building blocks are not LEGO bricks and are not supplied by Kirkbi. Absent such a warning to consumers, the appellant argues, confusion arises and there are grounds for a passing-off action under s. 7(b). In this Court, for the first time in these proceedings, Ritvik challenged the constitutionality of s. 7(b) and argued that it is ultra vires the legislative competence of the Parliament of Canada.

…

The first stage of the analysis requires a characterization of the impugned provision in isolation from the rest of the statute. We look to its purpose and its effect to determine whether the provision encroaches on provincial powers, and if so, to what extent: *City National Leasing*, at p. 674; *Kitkatla*, at para. 59. Section 7(*b*) creates a civil cause of action that essentially codifies the common law tort of passing off: *Vapor Canada*, at p. 147; *Asbjorn Horgard* A/S (F.C.T.D.), at p. 241. Standing alone it appears to encroach on provincial power, namely property and civil rights in the province (s. 92(13)). …

In *City National Leasing*, this Court found that the intrusion of s. 31.1 of the *Combines Investigation Act*, R.S.C. 1970, c. C-23, into provincial jurisdiction was minimal. In coming to this conclusion Dickson C.J. highlighted the following three factors: (i) the provision was remedial and was not in itself a substantive part of the Act; the provision did not create a general cause of action; (ii) its application was limited by the provisions of the Act; and (iii) Parliament was not constitutionally precluded from creating rights of civil action where such measures are shown to be warranted (p. 673).

These factors apply equally to s. 7(*b*) of the *Trade-marks Act*. First, s. 7(*b*) is remedial; its purpose is to enforce the substantive aspects of the *Trade-marks Act* relating to unregistered trade-marks:

> The tort of passing off is in many respects the equivalent cause of action for unregistered trade-marks as infringement [s. 20 of the Act] is to registered trade-marks. The overall legislative scheme of the *Trade-marks Act* is the protection, identification, and registration of trade-marks, whether registered or unregistered.
> (Gill and Jolliffe, at p. 2-22)

Second, the passing-off action protects unregistered trade-marks and goodwill enjoyed by the trade-marks. Section 7(*b*) is therefore limited by the provisions of the *Trade-marks Act*: it does not expand the federal jurisdiction in relation to trade-marks and trade-names but merely rounds out an otherwise incomplete trade-mark scheme (*Asbjorn Horgard A/S* (F.C.T.D.), at p. 237). Unlike s. 7(*e*), which was found to be *ultra vires* Parliament because it did not have any connection with the enforcement of trademarks or trade-names (*Asbjorn Horgard A/S* (F.C.T.D.), at p. 242) and was significantly broader in application, the creation of a statutory action for passing off in s. 7(*b*) is limited in its application.

[Regarding the validity of the *Trademarks Act*, the Court's reasons (at para 28) were extremely brief.]

In the second stage of the analysis, the Court must determine whether the *Trade-marks Act* is a valid exercise of Parliament's general trade and commerce power. The analysis is guided by the five indicia of validity set out above. In [*Asbjorn Horgard A/S v Gibbs/Nortac Industries*, [1987] 3 FC 544, 1987 CanLII 5269], MacGuigan J.A. of the Federal Court of Appeal noted that:

> All of the criteria of Chief Justice Dickson are verified in the Act: a national regulatory scheme, the oversight of the Registrar of Trade Marks, a concern with trade in general rather than with an aspect of a particular business, the incapability of the provinces to establish such a scheme and the necessity for national coverage. [p. 559]

The parties do not dispute Parliament's constitutional power to regulate registered trade-marks. Rather, it is Parliament's right to create a civil remedy in relation to an unregistered trade-mark that is in issue. The respondent's position is that the only regulatory scheme in the Trade-marks Act is the scheme governing registered trade-marks. In my view this is an incorrect characterization of the Act. The Trade-marks Act establishes a regulatory scheme for both registered and unregistered trade-marks.

The protection of unregistered trade-marks is integral to the legitimacy, legal standards and efficacy of registered trade-marks. The Trade-marks Act is clearly concerned with trade as a whole, as opposed to within a particular industry. There is no question that trade-marks apply across and between industries in different provinces. Divided provincial and federal jurisdiction could mean that the provincial law could be changed by each provincial legislature. This could result in unregistered trade-marks that were more strongly protected than registered trade-marks, undermining the efficacy and integrity of the federal Parliament's Trade-marks Act. The lack of a civil remedy integrated into the scheme of the Act, applicable to all marks, registered or unregistered, might also lead to duplicative or conflicting and hence inefficient enforcement procedures

…

The final step in the analysis is to determine whether the provision is sufficiently integrated into the otherwise valid statute. [Section 7(b)] plays a clear role in the federal scheme [because without] this provision there would be a gap in the legislative protection of trade-marks. This would create inconsistencies in the protection of registered and unregistered trade-marks and lead to uncertainty. Section 7(b) is sufficiently integrated into the federal scheme and, in this respect, is significantly different from s. 7(e) [the provision that was held to be invalid in *Vapor Canada*]. I conclude that s. 7(b) lies within the federal government's legislative competence.

2.3.6 Reference re Securities Act

For an excerpt of *Reference re Securities Act*, 2011 SCC 66, see Part 1.3 of Chapter 10 on the Property and Civil Rights power.

2.3.7 Reference Re Pan-Canadian Securities Regulation

***Reference Re Pan-Canadian Securities Regulation*, 2018 SCC 48**

THE COURT:—

[1] A number of attempts to develop and implement a national system for the regulation of Canadian capital markets in a manner that is compatible with the country's federal structure have been made since the 1930s. At issue in these appeals is the constitutionality of a recent proposal by the federal government and the governments of Ontario, British Columbia, Saskatchewan, New Brunswick, Prince Edward Island and Yukon to implement a national cooperative capital markets regulatory system ("Cooperative System").

[2] The structure of the Cooperative System builds on the guidance provided by this Court in Reference re Securities Act, 2011 SCC 66, [2011] 3 SCR 837. Its main components include a model provincial and territorial statute known as the Capital Markets Act ("Model Provincial Act") that deals primarily with the day-to-day aspects of the securities trade, a federal statute known as the Capital Markets Stability Act

("Draft Federal Act") that is aimed at preventing and managing systemic risk and which establishes criminal offences relating to financial markets, and a national securities regulator that is to be overseen by the federal Minister of Finance and the ministers responsible for capital markets regulation in the participating provinces ("Authority").

…

[95] [U]nlike the proposed legislation that was at issue in Reference re Securities Act, the Draft Federal Act does not purport "to regulate, on an exclusive basis, all aspects of securities trading in Canada" (Reference re Securities Act, at para. 106). It does not contain provisions that go to the day-to-day regulation of all aspects of securities trading, like requirements for the registration of dealers, prospectus filing and disclosure obligations. The extent to which the statutory powers under the Draft Federal Act permit the regulation of these matters remains circumscribed by the requirement of systemic risk, which is a significant threshold that must be met before those powers can be exercised (A.F. (Canada), at para. 94). The management of risk which falls below this threshold — that is, risk that does not pose a threat to the Canadian economy as a whole — lies outside the scope of the Draft Federal Act.

[96] Properly understood, therefore, the intention is not that the Draft Federal Act will displace provincial and territorial securities legislation. It was instead designed to complement these statutes by addressing economic objectives that are considered to be national in character.

[97] When the Draft Federal Act is viewed as a whole, its pith and substance clearly does not relate, as Quebec suggests, to regulation of the trade in securities generally (R.F., paras. 111-16). Rather, its subject matter accords with its stated purposes: "to promote and protect the stability of Canada's financial system through the management of systemic risk related to capital markets" (s. 4(a)), and "to protect capital markets, investors and others from financial crimes" (s. 4(b)).

[The Court concluded that the legislation satisfied the *GM* indicia and, in particular, "with its carefully tailored scope" (par. 113), constituted a response to the provincial incapacity, identified in the *Securities Reference*, to effectively manage systemic risk.]

2.3.8 Questions

1. In *GM,* the Court analyzes the validity of the *Combines Investigation Act* without first determining what the "pith and substance" of the *Act* is. By contrast, in *Reference Re Securities Act*, the first step in the validity analysis is to characterize the "pith and substance" of the challenged legislation (par. 93-106); only afterwards does the Court ask whether the *GM* indicia are satisfied. What role does the analysis of pith and substance play in explaining the outcome of the *Securities Act?* Is the omission of this step in *GM* significant?
2. What should we make of the fact that, in *GM,* the fourth and fifth indicia are analyzed holistically rather than individually? Is there significance in the Court's choice in *Reference Re Securities Act* to analyze the indicia separately? Is it significant that they are called "indicia" rather than "criteria"?
3. Some commentators read the fourth and fifth indicia in *GM* as calling for an assessment of whether federal or provincial jurisdiction over a particular matter would be more "efficient," and criticized the decision as affording undue weight to this value at the expense of diversity. See, for example, N. Karazivan and J.F. Gaudreault-DesBiens, "On Polyphony and Paradoxes in the Regulation of Securities within the Canadian Federation" (2010), 49 C.B.L.J. 1; Jean Leclair, "The Supreme Court of Canada's Understanding of Federalism: Efficiency at the Expense of Diversity" (2003), 28 Queen's L.J. 411. What basis is there in the Court's reasons in *GM* for this interpretation? To what extent does the decision in *Reference Re Securities Act* lend itself to the same, or a different interpretation?

3 Constraints resulting from s. 91(2) on provincial authority to implement trade barriers

3.1 Overview

In a series of cases, the Supreme Court of Canada has dealt with challenges brought against provincial legislation regulating the marketing of products that, at some point, moved in international or interprovincial trade. In these cases, the issue is whether the provincial legislation is *ultra vires* because it impermissibly regulates international or interprovincial trade.

3.2 Key cases

3.2.1 Carnation Company Limited v Quebec Agricultural Marketing Board

***Carnation Company Limited v. Quebec Agricultural Marketing Board et al.*, 1968 CanLII 82 (SCC), [1968] SCR 238**

MARTLAND J.:— The question in issue before this Court is as to whether, in making [certain] orders, the [Quebec Agricultural] Marketing Board had infringed on the exclusive legislative powers of Parliament under s. 91(2) of the *British North America Act* to regulate trade and commerce. …

The Marketing Board was created as a corporation by the provisions of the *Quebec Agricultural Marketing Act,* 4-5 Eliz. II, 1955-56 (Que.), c. 37. It was empowered, inter alia, to approve joint marketing plans, and to arbitrate any dispute arising in the course of carrying out a joint marketing plan. The Act provided that ten or more producers of agricultural products in any territory in Quebec could apply to the Marketing Board for approval of a joint plan for the marketing of one or more classes of farm products in such territory, if such plan was supported by a vote of at least 75 per cent in number and value of all producers concerned.

On July 25, 1957, the Marketing Board approved The Quebec Carnation Company Milk Producers' Plan. The administration of the Plan was entrusted to The Quebec Carnation Company Milk Producers' Board. The Plan bound all bona fide milk producers shipping milk and dairy products to any of the plants of the appellant in Quebec. The Producers' Board had power to negotiate with the buyer (the appellant) for the marketing and sale to it of milk and dairy products from the farms of producers bound by the Plan. The Plan provided for a board of arbitration, which might be the Marketing Board, to decide conflicts in the event of a failure to agree with the appellant in the negotiation or execution of a convention.

Agreement was not reached as to the purchase price of milk to be purchased by the appellant from the producers, pursuant to the Plan. The matter was arbitrated by the Marketing Board which, after hearing evidence for both sides, wrote extensive reasons, and determined a price of $3.07 per hundred pounds, on December 18, 1958. Subsequently, on June 11, 1962, after a further arbitration, the Marketing Board decided on a price of $2.78 per hundred pounds.

It is these three orders of the Marketing Board, which approved the Plan, and which determined the price to be paid by the appellant for milk purchased from producers subject to the Plan, which are the subject of the appellant's attack.

The appellant was incorporated under the Canadian *Companies Act*, and has its head office in Toronto. It operates, in Quebec, an evaporated milk plant at Sherbrooke and a receiving station at Waterloo.

During the period concerned, it purchased raw milk from approximately 2,000 farmers, situated mostly in the Eastern Townships. At the Sherbrooke plant it processes raw milk into evaporated milk. The major part of such production is shipped and sold outside Quebec. Milk received at the Waterloo receiving station, during the relevant period, was either sent to the Sherbrooke plant, for processing, or else, skimmed, the butterfat being sold to other manufacturers, and the skim milk being sent to appellant's plant at Alexandria, Ontario, to be processed into skim milk powder.

The appellant, during the relevant period, was the only evaporated milk manufacturer in Quebec, with the exception of the Granby Co-operative, which, as a co-operative, was not subject to the provisions of the *Quebec Agricultural Marketing Act.*

The evidence showed that, since December 18, 1958, the date of the first arbitration award, prices paid by the appellant were about 10 to 25 cents per hundred pounds higher than those paid by other purchasers of raw milk in the same area.

…

The position taken by the appellant is that the three orders of the Marketing Board are invalid because they enable it to set a price to be paid by the appellant for a product the major portion of which, after processing, will be used by it for export out of Quebec. This, it is contended, constitutes the regulation of trade and commerce within the meaning of s. 91(2) of the *British North America Act,* a field reserved to the Parliament of Canada.

[Martland J. then discusses *Reference Respecting The Farm Products Marketing Act, R.S.O. 1950, Chapter 181, As Amended*[1957 CanLII 1 (SCC), [1957] S.C.R. 198, 7 D.L.R.(2d) 257.]

…

The validity of provincial legislation governing the marketing of agricultural products was before this Court in *Lawson v. Interior Tree Fruit and Vegetable Committee of Direction*[6] which concerned the *Produce Marketing Act of British Columbia,* 1926-27 (B.C.), c. 54. In holding that Act to be *ultra vires* of the Legislature of British Columbia, Duff J. (as he then was) said, at p. 364:

> Coming now to the first ground of attack, namely, that the statute constitutes an attempt to regulate trade within the meaning of head no. 2 of s. 91. To repeat the general language of s. 10(1), the functions of the Committee are for the purpose of controlling and regulating the marketing of any product within its authority, and for that purpose the Committee is empowered to determine whether or not and at what time, and in what quantity and from and to what places and at what price and on what terms the product may be marketed and delivered.

As I have said, the respondent Committee has attempted (in professed exercise of this authority) and in this litigation asserts its right to do so—to regulate the marketing of products into parts of Canada outside British Columbia. It claims the right under the statute to control (as in fact it does), the sale of such products for shipment into the prairie provinces as well as the shipment of them into those provinces for sale or storage. The moment his product reaches a state in which it becomes a possible article of commerce, the shipper is (under the Committee's interpretation of its powers), subject to the Committee's dictation as to the quantity of it which he may dispose of, as to the places from which, and the places to which he may ship, as to the route of transport, as to the price, as to all the terms of sale. I ought to refer also to the provision of the statute which prohibits anybody becoming a licensed shipper who has not, for six months immediately preceding his application for a licence, been a resident of the province, unless he is the registered owner of the land on which he carries on business as shipper. In a statute which deals with trade that is largely interprovincial, this is a significant feature. It is an attempt to control the manner in which traders in other provinces, who send their agents into British Columbia to make arrangements for the shipment of goods to their principals, shall carry out their interprovincial transactions. I am unable to convince myself that these matters are all, or chiefly, matters of merely British Columbia concern, in the sense that they are not also directly and substantially the concern of the other provinces,

[Martland J. then discussed *Reference as to the Validity of The Natural Products Marketing Act, 1934,* 1936 CanLII 21 (SCC), [1936] S.C.R. 398, 66 C.C.C. 180, 3 D.L.R. 622.]

…

In 1938, the Privy Council dealt with the validity of a British Columbia statute, The Natural Products Marketing

(British Columbia) Act, 1936, in Shannon v. Lower Mainland Dairy Products Board[9]. This Act enabled the Lieutenant-Governor in Council to set up a central British Columbia Marketing Board, to establish or approve schemes for the control and regulation within the Province of the transportation, packing, storage and marketing of any natural products, to constitute Marketing Boards to administer such schemes, and to vest in those Boards any powers considered necessary or advisable to exercise those functions.

It was held that this statute was, in pith and substance, an Act to regulate particular businesses, entirely within the Province, and was intra vires of the Provincial Legislature under s. 92(13) of the British North America Act. In dealing with the contention that this Act encroached upon s. 91(2) of the British North America Act, Lord Atkin said, at p. 718:

> It is sufficient to say upon the first ground that it is apparent that the legislation in question is confined to regulating transactions that take place wholly within the Province, and are therefore within the sovereign powers granted to the Legislature in that respect by s. 92 of the *British North America Act.* Their Lordships do not accept the view that natural products as defined in the Act are confined to natural products produced in British Columbia. There is no such restriction in the Act, and the limited construction would probably cause difficulty if it were sought at some future time to co-operate with a valid Dominion scheme. But the Act is clearly confined to dealings with such products as are situate within the Province. It was suggested that "transportation" would cover the carriage of goods in transit from one Province to another, or overseas. The answer is that on the construction of the Act as a whole it is plain that "transportation" is confined to the passage of goods whose transport begins within the Province to a destination also within the Province. It is now well settled that the enumeration in s. 91 of "the regulation of trade and commerce" as a class of subject over which the Dominion has exclusive legislative powers does not give the power to regulate for legitimate Provincial purposes particular trades or businesses so far as the trade or business is confined to the Province: *Citizens Insurance Co. of Canada v. Parsons,* 7 App. Cas. 96; *Reference re The Natural Products Marketing Act, 1934, and Its Amending Act, 1935,* (1936) Can. S.C.R. 398; (1937) 1937 CanLII 364 (UK JCPC), A.C. 377. And it follows that to the extent that the Dominion is forbidden to regulate within the Province, the Province itself has the right under its legislative powers over property and civil rights within the Province.

It is now necessary to consider, in the light of these decisions, the validity of the three orders which are under attack in the present case. The first order, which created

The Quebec Carnation Company Milk Producers' Board and empowered it to negotiate, on behalf of the milk producers, for the sale of their products to the appellant, is somewhat analogous to the creation of a collective bargaining agency in the field of labour relations. The purpose of the order was to regulate, on behalf of a particular group of Quebec producers, their trade with the appellant for the sale to it, in Quebec, of their milk. Its object was to improve their bargaining position.

The Producers' Board then undertook, with the appellant, negotiations for the sale to it of that milk. The order provided a machinery whereby the price of milk could be determined by arbitration if agreement could not be reached. In this respect it differs from most provincial legislation governing labour disputes, but there would seem to be no doubt that provincial labour legislation incorporating compulsory arbitration of disputes would be constitutional, unless objectionable on some other ground.

The two subsequent orders of the Marketing Board, under attack, contained the decisions which it reached in determining the proper price to be paid to the producers for milk purchased by the appellant.

Are these orders invalid because the milk purchased by the appellant was processed by it and, as to a major portion of its product, exported from the province? Because of that fact, do they constitute an attempt to regulate trade in matters of interprovincial concern?

That the price determined by the orders may have a bearing upon the appellant's export trade is unquestionable. It affects the cost of doing business. But so, also, do labour costs affect the cost of doing business of any company which may be engaged in export trade and yet there would seem to be little doubt as to the power of a province to regulate wage rates payable within a province, save as to an undertaking falling within the exceptions listed in s. 92(10) of the *British North America Act.* It is not the possibility that these orders might "affect" the appellants interprovincial trade which should determine their validity, but, rather, whether they were made "in relation to" the regulation of trade and commerce. This was a test applied, in another connection, by Duff J. (as he then was) in *Gold Seal Limited v. Attorney-General for Alberta*...

Thus, as Kerwin C.J. said in the *Ontario Reference,* in the passage previously quoted: "Once a statute *aims* at 'regulation of trade in matters of inter-provincial concern' it is beyond the competence of a Provincial Legislature."

I am not prepared to agree that, in determining that aim, the fact that these orders may have some impact upon the appellant's interprovincial trade necessarily means that they constitute a regulation of trade and commerce within s. 91(2) and thus renders them invalid. The fact of such impact is a matter which may be relevant in determining their true aim and purpose, but it is not conclusive.

In the *Lawson* case, where the provincial legislation was found to be unconstitutional, the Committee created by the statute was enabled and purported to exercise a large measure of direct and immediate control over the movement of trade in commodities between a province and other provinces. That is not this case.

On the other hand, in the *Shannon* case the regulatory statute was upheld, as it was confined to the regulation of transactions taking place wholly within the province. It was held that s. 91(2) was not applicable to the regulation for legitimate provincial purposes of particular trades or businesses confined to the province.

The view of the four judges in the *Ontario Reference* was that the fact that a transaction took place wholly within a province did not necessarily mean that it was thereby subject solely to provincial control. The regulation of some such transactions relating to products destined for interprovincial trade could constitute a regulation of interprovincial trade and be beyond provincial control.

While I agree with the view of the four judges in the *Ontario Reference* that a trade transaction, completed in a province, is not necessarily, by that fact alone, subject only to provincial control, I also hold the view that the fact that such a transaction incidentally has some effect upon a company engaged in interprovincial trade does not necessarily prevent its being subject to such control.

I agree with the view of Abbott J., in the *Ontario Reference,* that each transaction and each regulation must be examined in relation to its own facts. In the present case, the orders under question were not, in my opinion, directed at the regulation of interprovincial trade. They did not purport directly to control or to restrict such trade. There was no evidence that, in fact, they did control or restrict it. The most that can be said of them is that they had some effect upon the cost of doing business in Quebec of a company engaged in interprovincial trade, and that, by itself, is not sufficient to make them invalid.

For these reasons, I would dismiss this appeal with costs. There should be no costs payable by or to the intervenants.

Appeal dismissed with costs.

3.2.2 Attorney-General for Manitoba v Manitoba Egg and Poultry Association

***Attorney-General for Manitoba v Manitoba Egg and Poultry Association*, [1971] SCR 698, 1971 CanLII 135**

[The context of the litigation was an interprovincial trade conflict in which producers of chickens in Quebec and eggs in Ontario lobbied their respective provincial governments for the enactment of schemes providing for the controlled marketing, at fixed prices, of all chickens sold in Ontario and all eggs sold in Quebec. The aim of these schemes was to prevent the flooding of each provincial market by surplus products from the other province. A side-effect of the schemes was to harm producers from other provinces, as the schemes had the effect of limiting those producers' access to Ontario and Quebec markets. Manitoba devised a strategy for challenging the constitutionality of the schemes: in the words of Paul Weiler, Manitoba "manufactured a controversy by initiating a carbon copy of the Quebec scheme, a proposed Order-in-Council which provided for Manitoba control of the marketing of extraprovincial eggs in Manitoba. It then referred these regulations to the Manitoba Court of Appeal for a decision about their constitutionality. … When the Manitoba Court of Appeal decided against the constitutional validity of the scheme, the Manitoba government was entitled as of right to appeal this 'loss' to the Supreme Court of Canada. In this way, it could achieve a binding decision as to all such schemes which would be authoritative in all the provinces." See Paul C Weiler, In the Last Resort (Toronto: Carswell, 1974) at 156-57.]

MARTLAND J: (Fauteux CJ and Abbott, Judson, Ritchie and Spence JJ concurring) —

The Regulation referred to in the Order-in-Council is described as "a Regulation providing for A Plan to Control and Regulate the Marketing of eggs in the Province of Manitoba", such Plan to be known as "The Manitoba Egg Producers' Marketing Plan."

Section 3(*a*) and (*c*) provides that the purpose of the Plan is: "To obtain for producers the most advantageous marketing conditions for the regulated product" and also that its purpose is to regulate production to "avoid over-production thereof."

Section 4(1) [establishes] "a producer board to be known as The Manitoba Egg Producers' Marketing Board" [which, under s. 4(2),] "shall be made up of 6 members, all of whom shall be actively engaged in the production of the regulated product, to be elected by the producers as provided in a regulation to be enacted hereafter…".

The Plan contemplates that it shall be applicable to all eggs marketed in Manitoba, whether or not they are produced in that province. While the provincial Legislature could not control, or permit the Producer Board (hereinafter referred to as "the Board") to control the production of eggs in another province, the terms of the Plan are applicable to the produce of another province once it is within Manitoba and available for marketing.

…

The [Act's] provisions make it clear that the Plan is intended to apply, not only to eggs produced by Manitoba producers, but to any eggs in Manitoba, wherever they may have been produced. This intent is placed beyond doubt by the provisions of ss. 12, 14 and 15 of the Order,

which require the regulated product to be packed in containers, provided by the Board, which shall carry an inscription showing the place of origin of the regulated product and indicating whether such place of origin was in Manitoba, in another country, or in another province.

Complete control of the marketing of all eggs in Manitoba is vested in the Board. It is only through the Board, as selling agent, that any eggs may be sold or offered for sale. It has the authority, as already noted, to impose marketing quotas and to prohibit the offering for sale of a particular regulated product to ensure the orderly marketing of the regulated product. No eggs can be sold or offered for sale unless graded, packed and marked by a grading or packing station under contract with the Board. All eggs must be offered for sale to distributors, under contract with the Board, at prices set, from time to time, by the Board.

The Board, to which the Plan proposes to grant these broad powers, is not one which is to be appointed by the Manitoba Government, but is to be elected by the Manitoba producers. Its members must be actively engaged in the production of eggs. The main purpose of the Plan, to be achieved through the Board, is "to obtain for producers the most advantageous marketing conditions for the regulated product."

We have, therefore, a Plan which is intended to govern the sale in Manitoba of all eggs, wherever produced, which is to be operated by and for the benefit of the egg producers of Manitoba, to be carried out by a Board armed with the power to control the sale of eggs in Manitoba, brought in from outside Manitoba, by means of quotas, or even outright prohibition.

The issue which has to be considered in this appeal is as to whether the Plan is *ultra vires* of the Manitoba Legislature because it trespasses upon the exclusive legislative authority of the Parliament of Canada to legislate on the matter of the regulation of trade and commerce conferred by s. 91(2) of *The British North America Act*.

When the Privy Council first addressed itself to the meaning of that provision it was stated that it included "regulation of trade in matters of inter-provincial concern" (*Citizens Insurance Company of Canada v. Parsons* [(1881), 1880 CanLII 6 (SCC), 4 SCR 215, 7 App Cas 96 at 113 (UKJCPC)]. That proposition has not since been challenged. However, the case went on to hold that the provision did not include the regulation of the contracts of a particular business or trade in a single province.

This limitation on the federal power was reiterated in subsequent decisions of the Privy Council, the effect of which is summarized in *Shannon v. Lower Mainland Dairy Products Board:*

> It is now well settled that the enumeration in s. 91 of "the regulation of trade and commerce" as a class of subject over which the Dominion has exclusive legislative powers does not give the power to regulate for legitimate Provincial purposes particular trades or businesses so far as the trade or business is confined to the Province.

In that case the *Natural Products Marketing (British Columbia) Act, 1936,* was held to be *intra vires* of the Provincial Legislature because it was confined to dealings with such products as were situate within the province, even though not necessarily produced there. The basis of this decision was that "The pith and substance of this Act is that it is an Act to regulate particular businesses entirely within the Province…" (at p. 720).

Similarly, this Court upheld, in *Home Oil Distributors Limited v. Attorney-General of British Columbia,* provincial legislation authorizing the fixing of wholesale or retail prices for coal or petroleum products sold in British Columbia for use in that province. This judgment was based upon the decision in the *Shannon* case.

The power of a provincial legislature to forbid generally the possession and sale of intoxicating liquor within the province had been previously declared in the case of *R. v. Nat Bell Liquors, Limited.*

The earlier authorities on the matter of provincial marketing regulation were considered by various members of this Court in the *Reference Respecting The Farm Products Marketing Act,* which case, as well as some of those authorities, was reviewed in the judgment of this Court in *Carnation Company Limited v. The Quebec Agricultural Marketing Board.* It was said, in that case, at p. 253:

> While I agree with the view of the four judges in the *Ontario Reference* that a trade transaction, completed in a province, is not necessarily, by that fact alone, subject only to provincial control, I also hold the view that the fact that such a transaction incidentally has some effect upon a company engaged in interprovincial trade does not necessarily prevent its being subject to such control.

Our conclusion was that each transaction and regulation had to be examined in relation to its own facts, and that, in determining the validity of the regulatory legislation in issue in that appeal, the issue was not as to whether it might affect the inter-provincial trade of the appellant company, but whether it was made in relation to the regulation of inter-provincial trade and commerce. There was cited the following passage from the reasons of Kerwin C.J. in the *Ontario Reference* (at p. 204):

> Once a statute aims at "regulation of trade in matters of inter-provincial concern" it is beyond the competence of a Provincial Legislature.

It is my opinion that the Plan now in issue not only affects inter-provincial trade in eggs, but that it aims at the regulation of such trade. It is an essential part of this scheme, the purpose of which is to obtain for Manitoba producers the most advantageous marketing conditions for eggs, specifically to control and regulate the sale in Manitoba of imported eggs. It is designed to restrict or limit the free flow of trade between provinces as such. Because of that, it constitutes an invasion of the exclusive legislative authority of the Parliament of Canada over the matter of the regulation of trade and commerce.

That being so, I would hold that the Regulation and Order are not ones which are within the legislative competence of the Manitoba Legislature to authorize …

LASKIN J.—The utility of the Reference as a vehicle for determining whether actual or proposed legislation is competent under the allocations of power made by the *British North America Act* is seriously affected in the present case because there is no factual underpinning for the issues that are raised by the Order of Reference. …

As it is, I know nothing of the nature of the market for eggs in Manitoba or outside of it, nothing of the production of eggs in that province, nothing of the uses to which the production is put, nothing of the number of producers in Manitoba, nothing of any problems that may have been created in relation to quality, price or otherwise by the entry of out-of-province eggs. I know only, and then in the broad terms set out in the first two recitals in the Order of Reference (and of which matters I could, in any event, have taken judicial notice) that (to quote them) "many Provinces of Canada, including the Province of Manitoba, have enacted legislation pertaining to the regulation and control of marketing of agricultural products" and "certain of the marketing agencies established under the afore-mentioned legislation in some of the Provinces assert the right to prohibit, regulate and control the marketing within a Province of agricultural products produced outside that Province".

A knowledge of the market in Manitoba, the extent to which it is supplied by Manitoba producers, and of the competition among them as it is reflected in supply, quality and price, would be of assistance in determining the application of the proposed legislative scheme. Thus, if out-of-province eggs were, to put an example, insignificant in the Manitoba market, this would be a factor bearing on a construction of the scheme as operative only in respect of Manitoba producers, retailers and consumers in production, distribution and consumption in Manitoba. Conversely, if such eggs were significant in the Manitoba market, the legislative scheme, not being expressly confined to production distribution and

consumption in Manitoba, could properly be regarded as directed to the out-of-province eggs. In this respect, the issue would be one of its validity or invalidity, and not one of construing it to be applicable only to the distribution and consumption within the province of eggs produced in the province.

The absence of what I regard as relevant data leaves the position as one where, on the face of the legislative scheme and in the light of the arguments thereon addressed to the court, the contemplated regulations and order purport to embrace out-of-province eggs sent or brought into the province. Moreover, the embrace would extend to out-of-province eggs of whatever quantity, and to whatever extent they might engulf the Manitoba retailer and consumer market. On this view of the situation, there is the naked constitutional question to be faced, namely; there being no federal regulatory legislation in force with the same thrust, is the proposed scheme offensive to the legislative power of Parliament in relation to "the regulation of trade and commerce" under s. 91 (2) of the B.N.A. Act; and, if not or if so, is it, in any event offensive to the prescriptions of s. 121 of that Act?

…

The stage of dealing at which the regulation is imposed and its purpose, on which economic data would be relevant, are important considerations in assessing provincial competence. This emerges clearly from *Carnation Milk Company Ltd. v. Quebec Agricultural Marketing Board, supra,* where this court rejected a contention that the regulatory scheme, as reflected in three challenged orders, constituted an unlawful invasion of federal power in relation to export. What was there involved was the fixing of prices, by arbitration if agreement could not otherwise be reached, at which milk and dairy products produced in the province were to be sold by provincial producers, operating under a joint marketing plan, to a distributor and processor in the province. The fact that the processed products were largely distributed and sold outside the province did not react upon the validity of the scheme whose purpose was to improve the bargaining position in the province of provincial producers in their dealings with manufacturers or processors in the province. The regulatory scheme under attack did not involve a marketing control which extended through the various stages of production, distribution and consumption.

What was raised in the *Carnation Milk* case was the meaning, for constitutional purposes, of an intraprovincial transaction where the issue was seen in the context of goods leaving the province. The present Reference raises this question in the context of goods entering the province and their subjection, in consequence, to the same regulatory scheme that operates upon like goods produced in the province. …

…

[The scheme at issue in this case] … has the following elements:

(1) A Producer Board is established through which all eggs to be marketed in Manitoba must be sold.

(2) All such eggs must go to grading and packing stations which are to be operated by persons under contract with the Board.

(3) All such eggs must be graded, packed and marked in the grading and packing stations.

(4) They are to be packed in containers provided by the Board which are to bear inscriptions of the grade, station number, grading date, place of origin of the eggs and the Board trade mark.

(5) Only authorized collectors may take delivery of eggs from a producer.

(6) Production and marketing quotas may be allotted to producers by the Board.

(7) The Board may establish quotas for production and sale and also fix the time and place of marketing and, equally, may prohibit marketing otherwise or in violation of established quotas or standards.

(8) The Board may contract with distributors as its intermediaries in sales to retailers.

(9) Weekly prices for each grade of egg are to be set by the Board and distributors are entiltled to buy at those prices.

Although the emphasis is on control of the Manitoba producers and distributors in order (as stated in the proposed measures) "to obtain for producers the most advantageous marketing conditions" and "to avoid overproduction", the scheme brings into its grasp "persons" as well as producers, that is, those outside the province who are either producers or distributors seeking to enter the Manitoba market, or those inside the province who are not themselves producers but who bring in out-of-province eggs for disposition in Manitoba. This view is reinforced by the provision for indicating the origin of eggs, including eggs other than those produced in Manitoba.

There may be a variety of reasons which impel a province to enact regulatory legislation for the marketing of various products. For example, it may wish to secure the health of the inhabitants by establishing quality standards; it may wish to protect consumers against exorbitant prices; it may wish to equalize the bargaining or competitive position of producers or distributors or retailers, or all three classes; it may wish to ensure an adequate supply of certain products. These objects may not all nor always be realizable through legislation which fastens on the regulated product as being within the province. That is no longer, if it ever was, the test of validity. Just as the province may not, as a general rule, prohibit an owner of goods from sending them outside the province, so it may not be able to subject goods to a regulatory scheme upon their entry into the province. This is not to say that goods that have come into a province may not, thereafter, be subject to the same controls in, for example, retail distribution to consumers as apply to similar goods produced in the province.

Assuming such controls to be open to a province, the scheme before this court is not so limited. It embraces products which are in the current of interprovincial trade and, as noted at the beginning of these reasons, it embraces them in whatever degree they seek to enter the provincial market. It begs the question to say that out-of-province producers who come in voluntarily (certainly they cannot be compelled by Manitoba) must not expect to be treated differently from local producers. I do not reach the question of discriminatory standards applied to out-of-province producers or distributors (that is, the question of a possibly illegal administration of the scheme as bearing on its validity) because I am of opinion that the scheme is on its face an invasion of federal power in relation to s. 91 (2).

There are several grounds upon which I base this conclusion. The proposed scheme has as a direct object the regulation of the importation of eggs, and it is not saved by the fact that the local market is under the same regime. Anglin J. said in *Gold Seal Ltd. v. Dominion Express Co.* that "it is common ground that the prohibition of importation is beyond the legislative jurisdiction of the province". Conversely, the general limitation upon provincial authority to exercise of its powers within or in the province precludes it from intercepting either goods moving into the province or goods moving out, subject to possible exceptions, as in the case of danger to life or health. Again, the Manitoba scheme cannot be considered in isolation from similar schemes in other provinces; and to permit each province to seek its own advantage, so to speak, through a figurative sealing of its borders to entry of goods from others would be to deny one of the objects of Confederation, evidenced by the catalogue of federal powers and by s. 121, namely, to form an economic unit of the whole of Canada: see the *Lawson* case. The existence of egg marketing schemes in more than one province, with objectives similar to the proposed Manitoba scheme, makes it clear that interprovincial trade in eggs is being struck at by the provincial barriers to their movement into various provincial markets. If it be thought necessary or desirable to arrest such movement at any provincial border then the aid of the Parliament of Canada must be sought, as was done through Part V of the *Canada Temperance Act,* R.S.C. 1952, c. 30, in respect of provincial regulation of the sale of intoxicating liquor.

…

I would dismiss the appeal.

3.2.3 Reference Re Agricultural Products Marketing

***Reference Re Agricultural Products Marketing*, [1978] 2 SCR 1198, 1978 CanLII 10**

[As part of a scheme of interlocking federal and provincial legislation, interprovincial egg marketing quotas were allocated to each province by a federal agency; boards established by provincial legislation imposed corresponding quotas on the producers within their respective provinces.

The impugned Ontario rules were summarized by Chief Justice Laskin in his concurring judgment: "In short, the overall scheme was to assign to each Province a share of the national market and to relate the quotas of producers in each Province to the particular share. Ontario went further by placing all laying hens on a quota basis and prohibiting possession of laying hens by persons without a quota. This was done by Board Regulation 2-75 of June 5, 1975, which was authorized by Ontario Regulation 434/75 of May 8, 1975, which in turn rested on the authority of s. 21a of The Farm Products Marketing Act, enacted by 1975 (Ont.), c. 6. The appellants take an objection to the Regulation as embracing the possession of laying hens whose production is solely for the interprovincial or export trade and, beyond this, attack the validity of s. 21a. The attack on the section is the subject of question 9 herein."]

PIGEON J. (Martland, Ritchie, Beetz and de Grandpré JJ., concurring): ---

…

Questions 8 and 9 concern the validity of the egg producers quota regulations. In my view, the control of production, whether agricultural or industrial, is prima facie a local matter, a matter of provincial jurisdiction. Egg farms, if I may use this expression to designate the kind of factories in which feed is converted into eggs and fowl, are local undertakings subject to provincial jurisdiction under section 92(10) B.N.A. Act, unless they are considered as within the scope of "agriculture" in which case, by virtue of s. 95, the jurisdiction is provincial subject to the overriding authority of Parliament. In my view the Carnation case is conclusive in favour of provincial jurisdiction over undertakings where primary agricultural products are transformed into other food products. In that case, the major portion of the production was shipped outside the province (1968 CanLII 82 (SCC), [1968] SCR 238, at p. 242). In view of the reasons given, the conclusion could not be different even if the whole production had been going into extraprovincial trade.

No operator can claim exemption from provincial control by electing to devote his entire output to extraprovincial trade. I can find no basis for the view that there must be a division of authority at the stage of production between what will be going into intraprovincial and what will be going into extraprovincial trade. As I read it, the Eastern Terminal Elevator case stands squarely against such a contention. Eggs are a commodity like grain and they are treated in trade as fungible things. As a rule the person who is obliged to deliver grain of a given grade is not obliged to deliver any identified grain. (See Canada Grain Act, R.S.C. 1970, c. G-16, ss. 111, 115.) He satisfies his obligation by delivering the required quantity of proper grade. One of the purposes of the grading is precisely that goods of the same grade may be considered interchangeable. This holds true for eggs as for grain. The consequence is that any workable control scheme has to be effective with respect to all eggs irrespective of intended disposition….

This does not mean that such power is unlimited, a province cannot control extraprovincial trade, as was held in the Manitoba Egg Reference and in the Burns Foods case. However, "Marketing" does not include production and, therefore, provincial control of production is prima facie valid. In the instant case, the provincial regulation is not aimed at controlling the extraprovincial trade. In so far as it affects this trade, it is only complementary to the regulations established under federal authority. In my view this is perfectly legitimate, otherwise it would mean that our Constitution makes it impossible by federal-provincial cooperative action to arrive at any practical scheme for the orderly and efficient production and marketing of a commodity which all governments concerned agree requires regulation in both intraprovincial and extraprovincial trade. … While I adhere to the view that provinces may not make use of their control over local undertakings to affect extraprovincial marketing, this does not, in my view, prevent the use of provincial control to complement federal regulation of extraprovincial trade.

…

3.2.4 Question

Does "pith and substance" play the same role in these cases, where the impugned legislation is provincial, as it does in the cases in Part 2 of this chapter, where the impugned legislation is federal?

4 Section 121 and impediments to interprovincial trade

4.1 Overview

Section 121 of the *Constitution Act 1867* provides that "all articles of the growth, produce, or manufacture of any one of the Provinces shall … be admitted free into each of the other Provinces." What is the effect of this provision? Does it prevent governments from impeding the movement of goods from one province to another (require that they be "admitted"), or only prevent them from imposing charges akin to interprovincial customs duties (require that their admission be "free")?

In *Gold Seal v Alberta* (1921) 1921 CanLII 25 (SCC), 62 SCR 424, the Supreme Court of Canada took the latter view, in rejecting a challenge to provisions of the *Canada Temperance Act* that prohibited the importation of liquor into provinces in which local prohibition was in effect. *Gold Seal* remained the leading case on the interpretation of s. 121 until the Supreme Court's decision in *R v Comeau,* 2018 SCC 15, also a challenge to restrictions on the interprovincial transportation of liquor. Without overruling *Gold Seal,* the Court, in *obiter dicta*, offered a different interpretation of s. 121. In *Steam Whistle Brewing Inc v Alberta,* 2019 ABCA 468, the Alberta Court of Appeal applied *Comeau* to invalidate a differential provincial liquor pricing policy that, the Court's view, was "tariff-like" (par. 112) and had as its purpose the favouring of in-province producers over their extraprovincial competitors.

4.2 Key cases

4.2.1 Gold Seal v Alberta

***Gold Seal Ltd v Alberta (A.G.)*, 1921 CanLII 25 (SCC), 62 SCR 424**

[The proceedings arose as a result of the refusal by a transportation company to accept for carriage a consignment of liquor on the ground that the transportation of the goods, from British Columbia to Alberta, violated the *Canada Temperance Act.* That *Act,* as amended in 1919, prohibited the importation of liquor into any province in which provincial law prohibits its sale. The consignor, a federally incorporated company engaged in the business of buying and selling liquor, challenged the refusal on various grounds, including the ground that the *Act* was inconsistent with s. 121 of the *Constitution Act 1867.*]

IDINGTON J. (dissenting): ---

[Section 121] has not, so far as I know, received anything but a casual consideration by any of the courts having to deal with such questions as are involved herein. [The] question arises whether or not this section does not render ultra vires any effort by either local legislatures or parliament to override the said provision.

I incline to hold that it does unless in the possible case of an enactment by Parliament in the exercise of its exclusive jurisdiction over criminal law.

Certainly no single province, nor all combined, can override the plain meaning of the language used.

And when we turn to the "Regulation of Trade and Commerce," I think there are many decisions shewing that the powers to be exercised thereby are not applicable to anything that is likely to be involved in the meddling with this provision.

There may be, however, times when the products of a province may be infected with, for example, some contagious disease rendering it absolutely necessary, as matter of public safety, to forbid transportation across the lines bounding a province or a district therein.

It seems to me that the true and only remedy for such a condition of things would be the exercise by Parliament of its powers resting in its jurisdiction over criminal law and procedure in criminal matters.

The section, in my opinion, adds to the difficulties in the way of any provincial legislature seeking to bar the importation of liquor … from one province where manufactured into another….

DUFF J:--

… I am unable to accept the [argument for invalidity of the federal legislation] founded upon section 121 of the B.N.A. Act; the phraseology adopted, when the context is considered in which this section is found, shews, I think, that the real object of the clause is to prohibit the establishment of customs duties affecting inter-provincial trade in the products of any province of the Union….

ANGLIN J:--

…Neither is the legislation under consideration in my opinion obnoxious to s. 121 of the B.N.A. Act. The purpose of that section is to ensure that articles of the growth, produce or manufacture of any province shall not be subjected to any customs duty when carried into any other province. Prohibition of import in aid of temperance legislation is not within the purview of the section….

MIGNAULT:--

I take it that the validity of the "Canada Temperance Act" having been affirmed by the Judicial Committee in *Russell v. The Queen*, the amendment of 1919, 10 Geo. V., ch. 8, being legislation of the same character, cannot be assailed as transcending the powers of Parliament.

Nor do I think that any argument can be based on sec 121 of the British North America Act….

This section, which so far as I know has never been judicially construed, is in Part VIII of the Act, bearing the heading "Revenues, Debts, Assets, Taxation," and is followed by two sections which deal with customs and excise laws and custom duties[.]

In the United States constitution, to which reference may be made for purposes of comparison, there is a somewhat similar provision (art. 1, sec. 9 par. 5 and 6). the language of which, however, is much clearer than that of sec. 121. It says:—

> No tax or duty shall be laid on articles exported from any state.
>
> No preference shall be given, by any regulation of commerce or revenue, to the ports of one state over those of another; nor shall vessels bound to or from one state be obliged to enter, clear or pay duties to another.

I think that, like the enactment I have just quoted, the object of section 121 was not to decree that all articles of the growth, produce or manufacture of any of the provinces should be admitted into the others, but merely to secure that they should be admitted "free," that is to say without any tax or duty imposed as a condition of their admission. The essential word here is "free" and what is prohibited is the levying of custom duties or other charges of a like nature in matters of interprovincial trade….

4.2.2 R v Comeau

R v Comeau, 2018 SCC 15 (excerpt by Richard Moon)

The following is the judgment delivered by

The Court —

[2] The respondent, Mr. Gerard Comeau, contends that s. 121 is essentially a free trade provision — in his view, no barriers can be erected to impede the passage of goods across provincial boundaries. On the other side of the debate, the appellant, Her Majesty the Queen in Right of New Brunswick ("the Crown"), argues that s. 121 was only intended to dismantle the power to impose tariffs or tariff-like charges at provincial boundaries. The trial judge agreed with Mr. Comeau. The question before us is whether he erred in doing so. What does it mean for articles to be "admitted free" as stated in s. 121? How does that requirement constrain state action? Fundamentally, does s. 121 constitutionalize some particular form of economic union? These questions lie at the core of this appeal.

[3] The answers to these questions have broad implications. If to be "admitted free" is understood as a constitutional guarantee of free trade, the potential reach of s. 121 is vast. Agricultural supply management schemes, public health-driven prohibitions, environmental controls, and innumerable comparable regulatory measures that incidentally impede the passage of goods crossing provincial borders may be invalid.

…

II. Factual History

[9] The respondent Mr. Comeau is a resident of the Tracadie-Sheila region on the Acadian Peninsula in northeastern New Brunswick. On October 6, 2012, Mr. Comeau drove to Campbellton in the northwest of the province, crossed the Restigouche River, and entered Quebec. Mr. Comeau did what many Canadians who live tantalizingly close to cheaper alcohol prices across provincial boundaries probably do. He visited three different stores and stocked up.

[10] Mr. Comeau was being watched. The Campbellton RCMP had become concerned with the frequency by which enterprising New Brunswick residents were sourcing large quantities of alcohol in Quebec in contravention of the law. In response, the RCMP started monitoring New Brunswick visitors to commonly frequented liquor stores on the Quebec side. Officers in Quebec would record visitors' information and pass it on to their New Brunswick colleagues, who were waiting across the border. During his October 6, 2012 trip, Mr. Comeau was so tracked.

[11] Returning from Quebec to New Brunswick, Mr. Comeau was stopped by the RCMP. The police found a large quantity of beer and some bottles of spirits in his vehicle. It is not in dispute that Mr. Comeau purchased quantities of alcohol in excess of the applicable limit prescribed by s. 43(*c*) of the *Liquor Control Act*. Mr. Comeau was charged under s. 134(*b*) and consequently issued a fine in the amount of $240 plus administrative fees and the victim surcharge levy.

[12] Mr. Comeau challenged the charge on the basis that s. 121 of the *Constitution Act, 1867* renders s. 134(*b*) of the *Liquor Control Act* unconstitutional and therefore of no force and effect. It is not controversial that the beer and liquor at issue in this case are the "Articles of the Growth, Produce, or Manufacture" of a Canadian province — that is, they were produced in Quebec or elsewhere in Canada. The question of whether s. 121 concerns non-Canadian goods imported into one province and then shipped across the country either intact or as inputs in new manufactured goods is not before the Court and therefore we do not address it.

…

IV. Issues

[22] The main issue is whether s. 134(*b*) of the *Liquor Control Act* infringes s. 121 of the *Constitution Act, 1867*. This raises the following subsidiary issues:

…

V. Analysis

B. What Is the Proper Interpretation of Section 121?

…

(1) "Admitted Free": the Competing Interpretations

[46] Section 121 of the Constitution Act, 1867, provides:

All Articles of the Growth, Produce, or Manufacture of any one of the Provinces shall, from and after the Union, be admitted free into each of the other Provinces.

[47] Section 121 is found in Part VIII of the *Constitution Act, 1867*, which deals with how revenues, debts, property, and fiscal authority were to be transferred between existing legislatures and the new federal government upon Confederation. The scheme specifically provides for the power to levy border tariffs to be transferred from the former colonies to the new Dominion, as described in ss. 122 and 123.

[48] The appellant Crown submits that "admitted free" in s. 121 should be read as prohibiting laws that, like tariffs, place burdens *on the price of goods crossing interprovincial boundaries*. There are two versions of this position, one slightly broader than the other, which we will discuss in due course. At this point it suffices to note that on either version, Mr. Comeau would not succeed. Even on the second broader version of this position — that s. 121 prohibits laws that in essence and purpose impede the passage of goods across provincial borders (see *Murphy*, per Rand J.) — s. 134(*b*) would stand, because it is part of a comprehensive scheme to control liquor in the province of New Brunswick and is not directed to impeding interprovincial trade in both essence and purpose.

[49] Mr. Comeau does not quibble about the fine points of precisely what kind of charge or burden is caught by s. 121 on the basis of the jurisprudence. He advances a new and much more radical proposition — that "admitted free" in s. 121 means that provincial laws cannot do anything that impedes, or makes more difficult, the flow of goods across provincial borders, directly or indirectly. In his view, s. 134(*b*) of the *Liquor Control Act* impedes the flow of goods across the New Brunswick border by prohibiting New Brunswickers from stocking liquor from other provinces at home. Therefore, it violates s. 121 of the *Constitution Act, 1867*.

[50] Mr. Comeau essentially contends that s. 121 is a "free trade" provision that bars any impediment to interprovincial commerce. The purpose of s. 121, he says, was to foster the full unimpeded economic integration of the new federation.

[51] The implications of these competing interpretations of s. 121 of the *Constitution Act, 1867* are significant. If Mr. Comeau's broad interpretation of s. 121 is correct, federal and provincial legislative schemes of many types — environmental, health, commercial, social — may be invalid. If a narrower interpretation is correct, the legal force of s. 121 is circumscribed to tariffs, or their functional equivalents.

…

[53] … [W]e conclude — as detailed below — that the interpretation of "admitted free" proposed by Mr. Comeau should be rejected. Section 121 does not impose absolute free trade across Canada. We further conclude that s. 121 prohibits governments from levying tariffs or tariff-like measures (measures that in essence and purpose burden the passage of goods across a provincial border); but, s. 121 does not prohibit governments from adopting laws and regulatory schemes directed to other goals that have incidental effects on the passage of goods across provincial borders.

(2) Text

[54] The introductory words of s. 121 of the *Constitution Act, 1867* are broad; the phrase "All Articles of Growth, Produce, or Manufacture of any one of the Provinces" comprehensively covers all articles of trade of Canadian origin. (We need not decide in this case whether s. 121 applies to articles coming into Canada and then moved around the country.) This text on its own does not answer the question of how "admitted free" should be interpreted. That phrase remains ambiguous, and falls to be interpreted on the basis of the historical, legislative and constitutional contexts.

(3) Historical Context

[55] Historical circumstances surrounding the adoption of s. 121 form part of the contextual interpretation of the provision. …

…

[63] Excerpts from speeches given by political leaders at the time of Confederation provide a sense of their vision of economic union as the new nation was forged. In some passages, leaders refer to abolishing customs houses that existed on provincial boundaries pre-Confederation: trial reasons, at paras. 97-98. Other passages, however, indicate concern for impediments on interprovincial trade beyond formal tariffs: trial reasons, at para. 93. Still other passages refer more generally to unencumbered trade across boundaries: trial reasons, at paras. 92, 96 and 100.

[64] The framers of the Constitution were familiar with tariffs and charges on goods crossing borders. But, in drafting s. 121, they chose the broad phrase "admitted free" rather than a narrower phrase like "free from tariffs". We do not know why they chose this broader, and arguably ambiguous, phrase. We do know there were debates on the issue, and those that wanted a more expansive term than "tariffs" or "customs duties" won the day.

[65] What light does this history shed on the question that divides Mr. Comeau and the Crown? Was s. 121 conceived to eradicate *all* impediments on trade at provincial borders, direct and indirect, as Mr. Comeau contends? Or was it conceived as a provision to eradicate tariffs and charges at provincial borders, and to otherwise allow the adoption of valid laws that may have the incidental effect of impeding trade across interprovincial boundaries, as the Crown argues?

…

[67] We conclude that the historical context supports the view that, at a minimum, s. 121 prohibits the imposition of charges on goods crossing provincial boundaries — tariffs and tariff-like measures. At the same time, the historical evidence nowhere suggests that provinces, for example, would lose their power to legislate under s. 92 of the *Constitution Act, 1867* for the benefit of their constituents even if that might have impacts on interprovincial trade. The historical evidence, at best, provides only limited support for the view that "admitted free" in s. 121 was meant as an absolute guarantee of trade free of *all* barriers.

(4) Legislative Context

[In determining how s. 121 should be interpreted the Court considers other relevant or related provisions in the *Constitution Act, 1867*].

…

[73] We conclude that the legislative context of s. 121 indicates that it was part of a scheme that enabled the shifting of customs, excise, and similar levies from the former colonies to the Dominion; that it should be interpreted as applying to measures that increase the price of goods when they cross a provincial border; and that it should not be read so expansively that it would impinge on legislative powers under ss. 91 and 92 of the *Constitution Act, 1867*. …

…

(5) Foundational Principles

[77] In *Reference re Secession of Quebec*, at para. 32, this Court held that foundational principles underlying the Constitution may aid in its interpretation. Three of these — the federalism principle, the democratic principle and the protection of minorities principle — were raised in this case. The latter two do not shed much light on how s. 121 should be interpreted, in our view. However, the federalism principle is vital.

[78] Federalism refers to how states come together to achieve shared outcomes, while simultaneously pursuing their unique interests. The principle of federalism recognizes the "autonomy of provincial governments to develop their societies within their respective spheres of jurisdiction": *Reference re Secession of Quebec*, at para. 58; see also *Caron v. Alberta*, 2015 SCC 56, [2015] 3 S.C.R. 511, at para. 5. The tension between the centre and the regions is regulated by the concept of jurisdictional balance: *Reference re Secession of Quebec*, at paras. 56-59. The federalism principle requires a court interpreting constitutional texts to consider how different interpretations impact the balance between federal and provincial interests. The same concern has led to, for example, the development of doctrines like the necessarily incidental doctrine and the ancillary powers doctrine.

…

[82] For our purposes, it suffices to state that the federalism principle reminds us of the careful and complex balance of interests captured in constitutional texts. An interpretation that disregards regional autonomy is as problematic as an interpretation that underestimates the scope of the federal government's jurisdiction. We agree with Professor Scott that "[t]he Canadian constitution cannot be understood if it is approached with some preconceived theory of what federalism is or should be": F. R. Scott, "Centralization and Decentralization in Canadian Federalism" (1951), 29 *Can. Bar Rev.* 1095, at p. 1095; see also P. W. Hogg and W. K. Wright, "Canadian Federalism, the Privy Council and the Supreme Court: Reflections on the Debate about Canadian Federalism" (2005), 38 *U.B.C. L. Rev.* 329, at p. 350.

[83] Thus, the federalism principle does not impose a particular vision of the economy that courts must apply. It does not allow a court to say "This would be good for the country, therefore we should interpret the Constitution to support it." Instead, it posits a framework premised on jurisdictional balance that helps courts identify the range of economic mechanisms that are constitutionally acceptable. The question for a court is squarely constitutional compliance, not policy desirability: see, e.g., *Reference re Securities Act*, at para. 90; *Operation Dismantle Inc. v. The Queen*, 1985 CanLII 74 (SCC), [1985] 1 S.C.R. 441, at pp. 471-72, per Wilson J.; *Reference re Anti-Inflation Act*, 1976 CanLII 16 (SCC), [1976] 2 S.C.R. 373, at pp. 424-25, per Laskin C.J. Similarly, the living tree doctrine is not an open invitation for litigants to ask a court to constitutionalize a specific policy outcome. It simply asks that courts be alert to evolutions in, for example, how we understand jurisdictional balance and the considerations that animate it.

[84] With these cautions in mind, we turn to the parties' submissions on the principle of federalism. Both Mr. Comeau and the Crown refer to the federalism principle to support their own particular views of desirable policy outcomes — in Mr. Comeau's case, the policy of no impediments, direct or incidental, on trade across provincial borders; in the Crown's submission, a view of cooperative federalism that poses few, if any, limits on provinces' authority to impose such impediments. Asserting what they see as the contemporary goals of federalism by pointing to the living tree doctrine (*Edwards*, at pp. 106-7), the parties urge the Court to interpret s. 121 in accordance with their preferred visions of how federalism functions. We will consider each of these arguments in turn.

[85] We begin with Mr. Comeau's submission that the principle of federalism supports full economic integration. We cannot accept this submission. The federalism principle emphasizes balance and the ability of each level of government to achieve its goals in the exercise of its powers under ss. 91 and 92 of the *Constitution Act, 1867*. Full economic integration would "curtail the freedom of action — indeed, the sovereignty — of governments, especially at the provincial level": K. Swinton, "Courting Our Way to Economic Integration: Judicial Review and the Canadian Economic Union" (1995), 25 *Can. Bus. L.J.* 280, at p. 291; see also D. Schneiderman, "Economic Citizenship and Deliberative Democracy: An Inquiry into Constitutional Limitations on Economic Regulation" (1995), 21 *Queen's L.J.* 125, at p. 152. Reading s. 121 to require full economic integration would significantly undermine the shape of Canadian federalism, which is built upon regional diversity within a single nation: *Reference re Secession of Quebec*, at paras. 57-58; *Canadian Western Bank*, at para. 22. A key facet of this regional diversity is that the Canadian federation provides space to each province to regulate the economy in a manner that reflects local concerns...

[86] The federalism principle supports the view that provinces within a federal state should be allowed leeway to manage the passage of goods while legislating to address particular conditions and priorities within their borders. For example, the Northwest Territories and Nunavut have adopted laws governing the consumption of liquor, which include controls on liquor coming across the border into their territories. The primary objective of the laws is public health, but they have the incidental effect of curtailing cross-border trade in liquor. The Northwest Territories and Nunavut argue that these sorts of laws do not fall under the spectre of s. 121. We agree that to interpret s. 121 in a way that renders such laws invalid despite their non-trade-related objectives is to misunderstand the import of the federalism principle.

[87] The Crown and other intervening Attorneys General, for their part, advocate interpreting s. 121 narrowly to give governments expansive scope to impose barriers on goods crossing their borders. This interpretation, they argue, is a natural consequence of their position that "cooperative federalism" is a distinct foundational principle for constitutional interpretation, as such principles are understood in *Reference re Secession of Quebec*. … The foundational principle that forms part of the architecture of constitutional texts as we described in *Reference re Secession of Quebec* is *federalism* — and that principle does not mandate any specific prescription for how governments within a federation should exercise their constitutional authority.

[88] We cannot therefore accept either the arguments of Mr. Comeau or the Crown on the principle of federalism. This does not mean, however, that the principle is unhelpful to the interpretation of s. 121. The need to maintain balance embodied in the federalism principle supports an interpretation of s. 121 that prohibits laws directed at curtailing the passage of goods over interprovincial borders, but allows legislatures to pass laws to achieve other goals within their powers, even though the laws may have the incidental effect of impeding the passage of goods over interprovincial borders.

(6) Defining the Ambit of Section 121: The Jurisprudence

[89] We have established in the preceding sections that the text, historical context, legislative context, and underlying constitutional principles do not support Mr. Comeau's contention that s. 121 should be interpreted as prohibiting any and all burdens on the passage of goods over provincial boundaries, essentially imposing an absolute free trade regime within Canada. Rather, these considerations support a flexible, purposive view of s. 121 — one that respects an appropriate balance between federal and provincial powers and allows legislatures room to achieve policy objectives that may have the incidental effect of burdening the passage of goods across provincial boundaries.

[90] This established, the next question to be answered is: What does s. 121 of the *Constitution Act, 1867* actually prohibit? Before us, the debate was framed as a conflict between two lines of authority — the *Gold Seal* line of authority, which is said to confine s. 121 to the prohibition of tariffs, and the line of authority based on the judgment of Rand J. in *Murphy*, which sets out the view that s. 121 prohibits not only tariffs, but extends to laws that in essence and purpose are directed to impeding the passage of goods across provincial boundaries.

[91] For the reasons that follow, we do not see these lines of authority to be in conflict. Properly understood, they represent a single, progressive understanding of the purpose and function of s. 121 in the broader constitutional scheme. This understanding is entirely consistent with our earlier conclusion that s. 121 — understood through the lens of its text, its historical and legislative contexts and the principle of federalism — is best conceived as preventing provinces from passing laws aimed at impeding trade by setting up barriers at boundaries, while allowing them to legislate to achieve goals within their jurisdiction even where such laws may incidentally limit the passage of goods over provincial borders.

…

[106] We conclude that a purposive approach to s. 121 leads to the following conclusion: s. 121 prohibits laws that in essence and purpose restrict trade across provincial boundaries. Laws that only have the incidental effect of restricting trade across provincial boundaries because they are part of broader schemes not aimed at impeding trade do not offend s. 121 because the purpose of such laws is to support the relevant scheme, not to restrict interprovincial trade. While *Gold Seal* did not undertake a purposive analysis of s. 121 and hence did not describe the ambit of s. 121 precisely in these terms, it is entirely consistent with it. The earlier jurisprudence of this Court on s. 121 and the broader articulation adopted by Rand J. stand as different moments on a progressive jurisprudential continuum, all consistent with the text of s. 121, its historical and legislative contexts, and the principle of federalism.

[107] It follows that a party alleging that a law violates s. 121 must establish that the law in essence and purpose restricts trade across a provincial border. "[E]ssence" refers to the nature of the measure — "'what a thing is'; . . . [its] character": *The Oxford English Dictionary* (2nd ed. 1989), at p. 400. "Purpose" focuses on the object, or primary purpose, of the measure.

[108] The first question is whether the essence or character of the law is to restrict or prohibit trade across a provincial border, like a tariff. Tariffs, broadly defined, are "customs duties and charges of any kind imposed on or in connection with importation or exportation": *General Agreement on Tariffs and Trade* (World Trade Organization), Can. T.S. 1948 No. 31, Part I, Article I. The claimant must therefore establish that the law imposes an additional cost on goods by virtue of them coming in from outside the province. Put another way, a claimant must establish that the law distinguishes goods in a manner "related to a provincial boundary" that subjects goods from outside the province to additional costs: *Murphy*, at p. 642, per Rand J. A prohibition on goods crossing the border is an extreme example of such a distinction.

[109] The additional cost need not be a charge physically levied at the border, nor must it take the form of an actual surcharge; all that is required is that the law impose a cost burden on goods crossing a provincial border. A law that provides that "rum produced in the Maritime provinces will be subject to a 50% surcharge upon entering Newfoundland" has the same effect, in principle, as a law that states that "any person who brings rum produced in the Maritime provinces into Newfoundland is guilty of an offence and liable to a fine". Both laws impose a burden on the cost of goods that cross a provincial boundary.

…

[111] If the law does not in essence restrict the trade of goods across a provincial border, the inquiry is over and s. 121 is not engaged. If it does, the claimant must also establish that the primary purpose of the law is to restrict trade. A law may have more than one purpose. But impeding trade must be its primary purpose to engage s. 121. The inquiry is objective, based on the wording of the law, the legislative context in which it was enacted (i.e. if it is one element of a broader regulatory scheme), and all of the law's discernable effects (which can include much more than its trade-impeding effect). If the purpose of the law aligns with purposes traditionally served by tariffs, such as exploiting the passage of goods across a border solely as a way to collect funds, protecting local industry or punishing another province, this may, depending on other factors, support the contention that the primary purpose of the law is to restrict trade: see, e.g., *Murphy*, at pp. 638-39, per Rand J.; *Reference re Agricultural Products Marketing Act*, at p. 1268, per Laskin C.J.; D. Hill, ed., *National Trade and Tariff Service* (loose-leaf), at §1.3; *Black's Law Dictionary* (9th ed. 2009), at pp. 1593-94.

[112] Stand-alone laws that have the effect of restricting trade across provincial boundaries will not violate s. 121 if their primary purpose is not to impede trade, but some other purpose. Thus a law that prohibits liquor crossing a provincial boundary for the primary purpose of protecting the health and welfare of the people in the province would not violate s. 121. More commonly, however, the primary purpose requirement of s. 121 fails because the law's restriction on trade is merely an incidental effect of its role in a scheme with a different purpose. The primary purpose of such a law is not to restrict trade across a provincial boundary, but to achieve the goals of the regulatory scheme.

[113] However, a law that in essence and purpose impedes cross-border trade cannot be rendered constitutional under s. 121 solely by inserting it into a broader regulatory scheme. If the primary purpose of the broader scheme is to impede trade, or if the impugned law is not connected in a rational way to the scheme's objective, the law will violate s. 121. A rational connection between the impugned measure and the broader objective of the regulatory scheme exists where, as a matter of reason or logic, the former can be said to serve the latter: see, e.g., *RJR-*

MacDonald Inc. v. Canada (Attorney General), 1995 CanLII 64 (SCC), [1995] 3 S.C.R. 199, at para. 153, per McLachlin J. (as she then was), and at para. 184, per Iacobucci J. The scheme may be purely provincial, or a mixed federal-provincial scheme: *Gold Seal*; see also *Reference re Agricultural Products Marketing Act*.

[114] In summary, two things are required for s. 121 to be violated. The law must impact the interprovincial movement of goods like a tariff, which, in the extreme, could be an outright prohibition. And, restriction of cross-border trade must be the primary purpose of the law, thereby excluding laws enacted for other purposes, such as laws that form rational parts of broader legislative schemes with purposes unrelated to impeding interprovincial trade.

[115] The decided cases, while not numerous, illustrate how the essence and purpose test works. In *Gold Seal*, a federal law aimed at assisting dry provinces in keeping liquor out of their territories was held not to infringe s. 121. The law did not impede the flow of goods across provincial boundaries as its primary purpose; rather, it was part of a larger federal-provincial scheme to facilitate provinces' decisions, as informed by local referendums, to impose temperance to avoid harms associated with alcohol consumption. Therefore, it did not violate s. 121. Similarly, in *Murphy,* a federal law prohibiting farmers from shipping grain across provincial boundaries was held not to violate s. 121 because it was part of a larger marketing scheme to enable the distribution of grain. The impugned tax in *Atlantic Smoke Shops* failed because it did not distinguish between local and extra-provincial tobacco. In other words, it was not in essence tariff-like.

[116] There is debate about whether s. 121 applies equally to provincial and federal laws. While this Court has in previous decisions proceeded on the basis that federal laws may engage s. 121 (see, e.g., *Gold Seal* and *Murphy*), no federal law is properly at issue in the present appeal and so the question need not be resolved here. We agree with Laskin C.J.'s statement in *Reference re Agricultural Products Marketing Act*, at p. 1267, that "the application of s. 121 may be different according to whether it is provincial or federal legislation that is involved because what may amount to a tariff or customs duty under a provincial regulatory statute may not have that character at all under a federal regulatory statute".

VI. Application

[117] Does s. 134(*b*) of the *Liquor Control Act* contravene s. 121? We conclude that it does not. To reiterate, s. 134(*b*) provides:

> **134** Except as provided by this Act or the regulations, no person, within the Province, by himself, his clerk, employee, servant or agent shall
>
> . . .
>
> (*b*) have or keep liquor,
>
> not purchased from the Corporation.

[118] Our task is to determine if the essence and purpose of s. 134(*b*) is to restrict trade in liquor across New Brunswick's border.

[119] The first question is whether s. 134(*b*), in its essence or character, functions like a tariff by impeding cross-border trade. Section 134(*b*), in conjunction with other provisions, makes it an offence to stock excessive amounts of liquor obtained from anywhere other than the New Brunswick Liquor Corporation. Liquor from the Corporation can be stocked for free, while liquor from elsewhere cannot, without running the risk of incurring a fine and having the alcohol confiscated. These penalties act to burden the cost of such liquor both directly and indirectly. First, the penalties imposed for stocking liquor purchased from outside the Corporation function to directly increase the cost of acquiring such liquor. Second, the risk of fine and confiscation indirectly acts as a general disincentive for New Brunswickers who would otherwise seek lower-priced liquor than that available through the Corporation, where it exists.

[120] By making people who stock liquor acquired from outside the provincial Corporation pay fines and thus more generally depriving them of cheaper goods, the law burdens the cost of the targeted liquor. If the authorities seize any liquor identified when a charge is laid under s. 134(*b*) — as occurred in Mr. Comeau's case — the law, in practical terms, prohibits, and therefore completely bars access to, non-Corporation liquor. This prohibition functions like a tariff at the extreme end of the spectrum. With respect to out-of-province liquor, the liquor is not just prevented from being "admitted free"; it cannot be admitted at all.

[121] This restriction is related to a provincial boundary. Section 134(*b*) impedes liquor purchases originating outside of the provincial Corporation above a certain threshold. The law thus has two effects. The first effect is to restrict access to liquor from other provinces. The other effect is to restrict access to liquor within the province that is not controlled by the Corporation. But although the fine functions to restrict purchases of liquor from the black market within New Brunswick, this does not negate the fact that it also imposes a burden on bringing liquor across a provincial boundary. The presence of the first effect — restricting access to liquor from other provinces — is sufficient to establish that s. 134(*b*), in essence, functions like a tariff, even though it may have other purely internal effects.

[122] The next question is whether this restriction on trade is the *primary purpose* of s. 134(*b*). As discussed, the text, the effects and the legislative context assist in identifying the primary purpose of s. 134(*b*). Here, the text and effects are aligned and suggest the primary purpose of s. 134(*b*) is not to impede trade. Section 134(*b*) prohibits "hav[ing] or keep[ing]" liquor above a certain threshold "not purchased from the Corporation". In effect, it restricts holding liquor obtained from non-Corporation sources within New Brunswick *and* restricts holding liquor from non-Corporation sources coming into New Brunswick. The text and effects of s. 134(*b*) indicate that its primary purpose is to restrict access to *any* non-Corporation liquor, not just liquor brought in from another province like Quebec. This is reinforced when one reads s. 134(*b*) in conjunction with s. 43(*c*), the provision that sets the maximum amount of allowable non-Corporation liquor that can be kept by someone within New Brunswick. The existence of a statutory threshold, as opposed to an absolute prohibition, suggests that the purpose of s. 134(*b*) is not to specifically target out-of-province liquor, but to more generally prevent defined quantities of non-Corporation liquor from entering the liquor supply within New Brunswick's borders.

[123] This conclusion is confirmed when one considers the broader scheme of which s. 134(*b*) forms part — a scheme that governs New Brunswick's capacity to regulate how liquor is managed within the province. The *Liquor Control Act* sets out diverse and extensive rules and prohibitions aimed at controlling access to liquor in New Brunswick. A companion statute, the *New Brunswick Liquor Corporation Act*, S.N.B. 1974, c. N-6.1 (now R.S.N.B. 2016, c. 105), establishes the province's public liquor supply management monopoly. Together, these statutes set out a comprehensive and technical scheme to ensure that the liquor trade within the province is monitored. Section 3 of the federal *Importation of Intoxicating Liquors Act*, R.S.C. 1985, c. I-3, endorses provinces' capacity to enact such schemes.

[124] The objective of the New Brunswick scheme is not to restrict trade across a provincial boundary, but to enable public supervision of the production, movement, sale, and use of alcohol within New Brunswick. It is common ground that provinces are able to enact schemes to manage the supply of and demand for liquor within their borders: *Air Canada v. Ontario (Liquor Control Board)*, 1997 CanLII 361 (SCC), [1997] 2 S.C.R. 581, at para. 55, citing *R. v. Gautreau* (1978), 1978 CanLII 2114 (NB CA), 21 N.B.R. (2d) 701 (S.C. (App. Div.)). Governments manage liquor prices, storage and distribution with a view to diverse internal policy objectives. Although the Crown conceded that New Brunswick generates revenue from its legislative scheme, this is not the primary purpose of the scheme, but an offshoot of it. Finally, s. 134(*b*) is not divorced from the objective of the larger scheme. It plainly serves New Brunswick's choice to control the supply and use of liquor within the province.

[125] We conclude that the primary purpose of s. 134(*b*) is to prohibit holding excessive quantities of liquor from supplies not managed by the province. New Brunswick's ability to exercise oversight over liquor supplies in the province would be undermined if non-Corporation liquor could flow freely across borders and out of the garages of bootleggers and home brewers. The prohibition imposed in s. 134(*b*) addresses both. While one effect of s. 134(*b*) is to impede interprovincial trade, this effect is only incidental in light of the objective of the provincial scheme in general. Therefore, while s. 134(*b*) in essence impedes cross-border trade, this is not its primary purpose.

[126] Section 134(*b*) does not violate s. 121 of the *Constitution Act, 1867*.

VII. Conclusion

[127] For the foregoing reasons, the Crown's appeal is allowed. The Court answers the appellant's constitutional question as follows:

Does s. 121 of the *Constitution Act, 1867* (U.K.), 30 & 31 Vict., c. 3, render unconstitutional s. 134(*b*) of the *Liquor Control Act*, R.S.N.B. 1973, c. L-10, which along with s. 3 of the *Importation of Intoxicating Liquors Act*, R.S.C. 1985, c. I-3, establishes a federal-provincial regulatory scheme in respect of intoxicating liquor?

Answer: No.

4.2.3 *Steam Whistle Brewing Inc v Alberta Gaming and Liquor Commission*

***Steam Whistle Brewing Inc v Alberta Gaming and Liquor Commission*, 2019 ABCA 468**

GRECKOL JA (Martin JA and Strekaf JA concurring):--

I. Introduction

[1] In 1993, the province of Alberta privatized liquor stores throughout the province, ending its involvement in the retail market but becoming the wholesale hub for all sales of alcohol….

[4] The Alberta Gaming, Liquor and Cannabis Commission (the "Commission"), a Crown agent, controls the distribution and sale of liquor to private retailers in Alberta pursuant to the Gaming, Liquor and Cannabis Act, RSA 2000, c G-1 (the "GLCA"). The Commission applies Mark-ups to the price at which it sells liquor to retailers. In basic terms, subject to certain qualifications, the Mark-up is the difference between the price paid by the Commission to producers and the price it charges to retailers (the "Mark-up")….

[6] In 2015, the Commission implemented a new Mark-up regime (the "2015 Mark-up") which provided for favorable treatment to beer brewers from Alberta, British Columbia and Saskatchewan (the "New West Partnership"). Steam Whistle, an Ontario company, sued the Commission claiming the 2015 Mark-up was unconstitutional.

[7] In 2016, the Commission implemented a new Mark-up regime to charge all beer brewers the same rate (the "2016 Mark-up"). However, a complementary grant program was implemented at the same time, which gave certain Alberta craft beer brewers grants equivalent to the difference between the amounts payable by them under 2015 and 2016 Mark-ups. Great Western, a Saskatchewan company, sued the Commission claiming the 2016 Mark-up and grant program … violated s 121 as a barrier to interprovincial trade. Steam Whistle also challenged the 2016 Mark-up.

[8] The trial judge … found that the 2015 Mark-up scheme that privileged the three western provinces contravened s 121 of the Constitution Act, 1867 as did the 2016 Mark-up scheme when combined with the grant program. She declared the 2015 Mark-up and the 2016 Mark-up invalid….

[9] Alberta now appeals the declarations of unconstitutionality….

[11] For the reasons that follow, we confirm that the 2015 Mark-up and the 2016 Mark-up, together with the grant program, violate s 121 of the Constitution Act, 1867.

II. Background

…

A. 2015 Mark-up

[21] Prior to October 28, 2015, the Commission imposed a Mark-up rate on all craft beer produced anywhere in Canada, varying according to the production levels of the brewer.

[22] On October 28, 2015, [at the Minister's direction,] the Commission implemented [a new] Mark-up adjustment…. It applied the small brewer mark up (which varied between $0.10 per litre and $1.25 per litre depending on the producer's annual worldwide volume) on sales of beer manufactured within the New West Partnership region, while it applied a standard Mark-up of $1.25 per litre on sales of beer manufactured outside the region. The crucial point is that the Commission applied different Mark-ups on sales of beer to retailers depending on the provenance of the beer.

B. 2016 Mark-up and grant program

[26] On August 5, 2016, the Commission implemented the new 2016 Mark-up scheme charging the same rate on all beer sold to retailers, whether produced inside or outside the province. All beer with less than or equal to 11.9% alcohol by volume was subject to a Mark-up of $1.25 per litre.

[27] On the same date, the Alberta government implemented the "Alberta Small Brewers Development" program, a grant program administered by the Minister of Agriculture and Forestry for the benefit of Alberta small brewers.

[28] The Minister's briefing note of June 8, 2016 characterized the grant program as "an offsetting grant for Alberta's small brewers based on production and sales in Alberta." The trial judge found that the grant provided to Alberta craft brewers was an amount identical to the difference between the amounts payable under the 2015 and 2016 Mark-ups. The economic effect of the grant program was that Alberta small brewers were unaffected by the increased 2016 Mark-up.

VII. Do the Mark-ups contravene s 121 of the Constitution Act, 1867?

[54] This … appeal raises two issues: (1) whether the Mark-ups are subject to s 121 at all; and (2) if so, whether they contravene it.

A. Are the Mark-ups imposed by the Commission subject to s 121?

[55] The Commission is a corporate agent of the Crown: ss 2 and 4(1) of the GLCA. It imposed the 2015 Mark-up and the 2016 Mark-up as part of the price it charged retailers in contracts for the sale of beer. Alberta argues that s 121 of the Constitution Act, 1867 does not regulate the imposition of charges through the mechanism of contract of sale.

[56] It submits that the application of s 121 is restricted in two ways. First, it only applies to legislation which imposes a barrier to interprovincial trade, whether through imposing monetary charges on commodities or an outright prohibition. In this case, the putative barrier to trade is a price term in a contract, not a provision in legislation. Second, Alberta argues that the Constitution in general, and s 121 of the Constitution Act, 1867 in particular, do not bind governmental bodies' exercise of their "natural-person" powers. Like a natural person, the Commission has the power to enter into contracts. Alberta contends that when the Commission contracted to sell beer to retailers at a price which included the 2015 and 2016 Mark-ups, the Commission was exercising the power of a natural person to enter into contracts. Hence, it was not bound by s 121.

[57] Ultimately, we reject both submissions. We deal with each in turn.

1. Section 121 applies to governmental actions apart from laws

[58] The proposition that s 121 only applies to legislation that restricts interprovincial trade is unsupported by the text of s 121, the authorities or principle.

[59] The text of s 121 is silent about which mechanisms that restrict the entry of extra-provincial commodities into the province are caught by the section. It does not purport to single out statutes and exclude other governmental acts….

[60] It is true that in the leading case on s 121, Comeau, the Supreme Court frequently referred to "laws" as the object of scrutiny under s 121. That was to be expected given the issue in the case was whether a provision in the Liquor Control Act, RSNB 1973, c L-10, which created an offence of having more than a prescribed quantity of alcohol brought from private retailers, contravened s 121.

[63] Further, the broader textual context of s 121, which includes Part VIII of the Constitution Act, 1867 reinforces the point that its ambit is not limited to legislation. Part VIII, in which s 121 is located, is concerned with revenue-generating mechanisms such as taxes, duties, levies and tariffs. Each mechanism operates on commodities and increases the price of the commodity. Since Part VIII applies to a broad range of revenue raising mechanisms, s 121 should not be read restrictively as regulating only legislatively-created tariffs or tariff-like measures.

[64] Finally, if s 121 only applied to tariffs and tariff-like barriers to interprovincial trade imposed by legislation, it would be relatively simple for the provinces to avoid its application altogether. They could delegate the authority to impose the tariff, or tariff-like measure, to a Crown agent. Or, under a more complicated scheme similar to the one at issue in this appeal, provinces could create a Crown agent with the exclusive right to buy and sell a commodity at the wholesale level and confer on it the power and the duty to charge a greater "mark-up" on commodities produced by extra-provincial producers.

[65] The point is that if s 121 applies only to legislation that directly creates barriers to interprovincial trade, then provinces have ample opportunities to impose non-legislative barriers whose primary purpose is to restrict interprovincial trade. Neither the text, the context, nor the authorities interpreting s 121 compel that interpretation.

…

B. Do the 2015 and 2016 Mark-ups imposed by the Commission contravene s 121?

[79] Given that s 121 applies to the facts of this case, the next question is whether the trial judge made any reviewable errors in finding that the 2015 Mark-up and the 2016 Mark-up (together with the grant program) violate it. In its written materials, Alberta focused solely on whether the 2016 Mark-up and grant program violates s 121 but in oral argument, it clarified that it was also challenging the trial judge's conclusion about the 2015 Mark-up based on substantially the same arguments.

[81] Comeau has established a two-part test to determine whether a law or other government action violates s 121. First, the essence of the law (or other government action) must be to limit the free flow of goods across a provincial border. Second, the primary purpose of the law (or other government action) must be to restrict trade across a provincial border.

[82] At the first stage of the inquiry into the "essence" of the law (or other government action), the question is whether the challenged measure distinguishes between goods in a manner related to a provincial boundary. More specifically, the question is whether the measure imposes an additional cost or burden on goods because they come in from outside the province: Comeau at para 108.

[83] At the second stage of the inquiry, regarding whether the primary purpose is to restrict trade, the Supreme Court noted that if the purpose of the law (or other government action) is similar to the traditional purposes of tariffs – collecting funds from goods passing the border, protecting local industry or harming another province – that is a strong (though not necessarily conclusive) indicator that the primary purpose is to restrict trade. The inquiry into the primary purpose of the law (or other government action) is objective, based on the language of the law, the legislative context in which it was enacted and its discernable effects.

[84] Laws (or other governmental actions) that have only incidental effects on trade, as part of broader regulatory schemes not aimed at impeding trade, do not have the purpose of restricting interprovincial trade and hence do not violate s 121. Such laws (or government acts) must be rationally connected to the broader objective of the scheme. A law (or government act) whose effect and primary purpose is to restrict interprovincial trade cannot be saved by being part of a wider regulatory scheme. Nor can a law (or government act) whose effect is to restrict trade and which is part a broader scheme aimed at impeding interprovincial trade.

[85] The facts of Comeau provide a useful example. There a statutory provision prohibited anyone from possessing alcohol exceeding a certain quantity that had not been purchased from the New Brunswick Liquor Corporation. The Supreme Court held that the prohibition functioned like a tariff but found that its primary purpose was to restrict access to any non-Corporation alcohol, not just alcohol brought in from other provinces: Comeau at para 122. Put another way, the primary purpose of the provision was to "enable public supervision of the production, movement, sale and use of alcohol in New Brunswick" and, therefore, it did not violate s 121: Comeau at para 124.

1. Is the essence or character of the Mark-ups to restrict or prohibit trade across a provincial border?

[86] The trial judge found that both the 2015 Mark-up and the 2016 Mark-up create a trade barrier related to a provincial boundary by imposing additional costs on the sale of beer produced outside the province or, in the case of the 2015 Mark-up, outside the New West Partnership provinces.

[90] In economic terms, the 2015 Mark-up had the effect of increasing the retail prices of beer produced by small brewers outside the New Western Partnership compared with those of Alberta small brewers. This is what the trial judge meant when she said that the 2015 Mark-up "created a price wedge between imported and domestic products." The conclusion that the 2015 Mark-up created a "price wedge" and thus a form of trade barrier (additional cost) related to a provincial boundary is supported by the evidence and discloses no reviewable error.

[92] [Regarding the 2016 Mark-up, the question is more complex.] If one takes the 2016 Mark-up on its own, the apparent conclusion is that it does not restrict trade across a provincial border. This is because the 2016 Mark-up applies the same rate to all sales of craft beer, regardless of where the beer was produced, and its apparent effect is to raise revenue for the province, not to impose an economic barrier to extra-provincial goods. Similarly, if the grant program is viewed in isolation, it appears to be a policy of supporting small craft brewers by issuing monetary grants based on the volume of beer sold in Alberta. It is quite unlike a tariff on extra-provincial goods.

[93] However, the trial judge found that the 2016 Mark-up and the grant program were aspects of a single policy, and must therefore be considered together. …

[94] Having found that the 2016 Mark-up and grant program should be analyzed as a single policy, the trial judge had no difficulty in finding that they operated to create a trade barrier related to a provincial boundary. … The 2016 Mark-up and grant program together created a competitive advantage for Alberta small brewers; this manifested itself in non-local craft brewers like Great Western increasing their prices to cover the costs of the greater Mark-up whereas those Alberta small brewers who benefitted from the offsetting grant did not have to do so. Accordingly, the trial judge found that the "essence" of the 2016 Mark-up and grant program was to restrict trade.

[100] [There is no reviewable error in these findings of the trial judge.]

2. Is the primary purpose of the 2015 and 2016 Mark-ups to restrict trade?

[101] The trial judge found that (1) the primary purpose of the 2015 Mark-up was "to raise funds, but to do so in such a way as to not prejudice Alberta craft brewers" and (2) the primary purpose of the 2016 Mark-up and grant program was "to increase revenue while continuing to protect Alberta craft brewers": Decision at paras 87, 95. In other words, the primary purpose of both Mark-ups was to promote Alberta craft brewers by giving them a competitive advantage over extra-provincial brewers, while also raising funds for the province.

[103] The Ministerial briefing note, which recommended implementation of the 2015 Mark-up, explained the purpose of the Mark-up as being "to obtain an additional $85 million in revenue from liquor Mark-ups" and to support Alberta's craft brewers as part of an "overall plan to support economic diversification." When discussing the specific policy option later implemented by the 2015 Mark-up, the briefing note stated that the aim was to "provide additional support to Alberta small brewers through a lower Mark-up rate" and impose "higher Mark-ups on some of their out of province competition."

[104] One argument [advanced by Alberta] is that the primary purpose of the 2015 Mark-up was to generate revenue for the province and that burdening extra-provincial trade was merely incidental to that purpose. In our view, this argument must fail because it cannot explain the actual operation of the 2015 Mark-up, nor the evidence about its purpose. The 2015 Mark-up was not a flat-rate Mark-up imposed on all sales of beer from the Commission to retailers, which served to increase government revenue. It was a differential Mark-up imposing greater costs on sales of beer for producers outside the New West Partnership than inside the New West Partnership. The evidence demonstrates the purpose of the 2015 Mark-up was not just to raise revenue but primarily, or at least equally, to promote the competitive position of the New West Partnership craft brewers.

[105] Another argument is that even if the primary purpose of the 2015 Mark-up is to enhance the competitive position of Alberta craft brewers, that is a constitutionally legitimate purpose. [In our view, however,] the distinction between intending to benefit Alberta craft brewers and intending to impose a competitive disadvantage on craft brewers from other provinces is illusory when the mechanism for benefitting local producers is a Mark-up scheme imposing lower costs on sales of their product and higher costs on sales of non-local product. There is no real doubt that the primary purpose of the 2015 Mark-up is to protect local industry, and that it does so by imposing a tariff-like burden on extra-provincial producers.

[109] [Regarding the 2016 scheme, when] both elements of the scheme are kept in view, the submission that the primary purpose of the grant program was to provide a benefit to Alberta small brewers, but not to disadvantage extra-provincial brewers, is unsustainable. Promoting some of Alberta's craft brewers by issuing grants to offset part of the 2016 Mark-up necessarily detracts from the competitiveness of non-Alberta craft brewers whose beer must be sold at a price which includes the full 2016 Mark-up. An intention to promote some Alberta craft brewers by, in effect, imposing a lower Mark-up rate on sales of their beer than is imposed on sales of beer by non-Alberta brewers amounts to an intention to burden non-local-brewers. Under such a scheme, an intention to benefit local brewers necessarily involves the intention to disadvantage non-local ones.

[110] In short, the primary purpose of the 2016 Mark-up and grant program is to protect local industry, a purpose traditionally served by tariffs, and achieved this purpose by imposing a greater cost on the sale of craft beer produced extra-provincially than is imposed on the sale of craft beer produced in Alberta.

[112] This judgment should not be understood as holding that a grant program instituted for the primary purpose of promoting the local beer industry violates s 121. Promoting local industry may be a constitutionally permissible purpose in some circumstances but not when it is implemented by tariff-like measures on goods produced outside the province. Most grant programs designed to promote local industry are too unlike a tariff to run afoul of s 121. However, the Mark-up schemes in this case, which impose additional costs on beer produced outside the province for the primary purpose of promoting the local beer industry, do violate s 121.

[114] Accordingly, we dismiss this … appeal.

Chapter 10: S 92(13), Property and Civil Rights in the Province

By Eric M. Adams

Section 92(13) is the most important head of provincial authority in the division of powers, often joined with s. 92(16) – "Generally all Matters of a merely local or private Nature in the Province" – as a counterweight to the broad heads of federal authority over "The Regulation of Trade and Commerce" (s. 91(2)), "the Criminal Law" (s. 91(27)), and peace, order, and good government.

The phrase, "property and civil rights" is older than Canada. It first appeared in *The Quebec Act, 1774* guaranteeing that matters of "Property and Civil Rights" would be governed by local French law even as the British claimed sovereignty over the territory. In the debates leading to Confederation, the retention of local jurisdiction concerning matters of property and civil rights was uncontroversial, especially given the province of Quebec's needs to maintain its distinctive legal system in the new federation.

The division of powers set out in the *Constitution Act, 1867* reflected this consensus. Section 92(13) grants jurisdiction to provincial legislatures to "exclusively make Laws in relation to" "Property and Civil Rights in the Province". Modern readers may imagine the term "civil rights" in light of the twentieth-century American experience of the civil rights movement and the fight for racial equality. In s. 92(13), however,

the drafters of Canada's Constitution had in mind the older definition of civil rights as arising from the rights and obligations created by private law. In effect, the provincial jurisdiction over civil rights is the authority to regulate relations involving contract, tort (or in current Quebec civil law terminology, extra-contractual liability), and property.

The term "Property and Civil Rights" also appears in s. 94 of the *Constitution Act, 1867*. That section assists to underscore the meaning of s. 92(13). Section 94 enables Parliament to unify "the Laws relative to Property and Civil Rights in Ontario, Nova Scotia, and New Brunswick" – the three common law provinces at Confederation – with the consent of those provinces. Quebec's absence from s. 94 ensured its unique private law based on the civilian tradition would remain distinct and firmly under exclusive provincial jurisdiction. As it happened, no federal unification of the laws of property and civil rights ever occurred among the common law provinces despite the centralizing hopes of some of the framers.

The most important constitutional question following Confederation involved the boundaries between federal authority and s. 92(13), especially in relation to economic regulation. Most laws, federal and provincial alike, touch upon property and civil rights in one form or another. Just where did federal jurisdiction end and provincial authority begin and how to draw the line between them? Those questions were among Canada's most important early constitutional issues, and arguably remain so to this day.

1 Trade and Commerce v Property and Civil Rights in the Province

The greatest of constitutional cases often begins in the most everyday of circumstances. In 1876, Ontario enacted legislation regulating fire insurance policies. Was that a law in relation to "Trade and Commerce" or "Property and Civil Rights in the Province"? The judicial answer provided in *Parsons* established a lasting cornerstone of Canadian federalism and indelibly shaped the future of economic and professional regulation in Canada.

1.1 *Citizens' and The Queen Insurance Cos v Parsons* (1880), 1880 CanLII 6 (SCC), 4 SCR 215

The Supreme Court of Canada decision

Ritchie CJ:

…

I think the power of the Dominion parliament to regulate trade and commerce ought not to be held to be necessarily inconsistent with those of the local legislatures to regulate property and civil rights in respect to all matters of a merely local and private nature, such as matters connected with the enjoyment and preservation of property in the province, or matters of contract between parties in relation to their property or dealings, although the exercise by the local legislatures of such powers may be said remotely to affect matters connected with trade and commerce, unless, indeed, the laws of the provincial legislatures should conflict with those of the Dominion parliament passed for the general regulation of trade and commerce. I do not think the local legislatures are to be deprived of all power to deal with property and civil rights, because parliament, in the plenary exercise of its power to regulate trade and commerce, may possibly pass laws inconsistent with the exercise by the local legislatures of their powers—the exercise of the powers of the local legislatures being in such a case subject to such regulations as the Dominion may lawfully prescribe. …

GWYNNE, J.: (dissenting) —

…

The contention in support of the claim that the Act is within the jurisdiction of the local legislature, is that the subject matter of the Act comes within item 13 of sec. 92 of the *B.N.A. Act,* namely, "Property and Civil Rights in the province."

…[W]hat is vested in the local legislatures by item 13 of sec. 92, is only jurisdiction over so much of property and civil rights as may remain, after deducting so much of jurisdiction over those subjects as may be deemed necessary for securing to the parliament exclusive control over every one of the subjects enumerated in sec. 91…

The only question, therefore, before us substantially is: Are or are not joint stock companies, which are incorporated for the purpose of carrying on the business of Fire Insurance, Traders? And is the business which they carry on a trade?

If this question must be answered in the affirmative, the Act under consideration must be *ultra vires* of the provincial legislature…

There can, therefore, in my judgment, be no doubt that in the contemplation of the *B.N.A. Act,* all insurance, whether of lives, or of real or personal property, and whether against risk by fire on land or on sea, or by storm on land or sea, or by any other casualty, must be equally regarded as branches of trade and commerce, and must all alike be under the jurisdiction of the Dominion parliament. There can, I think, be no doubt that the object of the *B.N.A. Act,* in placing *"all matters coming within"* the term *"regulation of trade and commerce"* under the exclusive control of the Dominion parliament, Was to secure a perfect uniformity in all the provinces of the Dominion, as *to all matters whatsoever* affecting all trades, as an essential condition to the prosperous carrying on of trade, and to prevent all possible interference or intermeddling with any trade, which diverse local views entertained in the different provinces of the Dominion might be disposed to attempt, if the subject was placed under local jurisdiction, whether by prescribing a particular form of contract and prohibiting any other being used, or by prescribing a particular mode of execution of the contract, or by assuming to dictate in any other manner as to the manner in which, or the terms subject to which trading companies or other persons engaged in any particular trade, should be permitted to carry on such trade….

…Now the provinces of the Dominion of Canada, by the wise precaution of the founders of our constitution, are not invested with any attribute of National Sovereignty; The framers of our constitution, having before their eyes the experience of the United States of America, have taken care that the *B.N.A. Act* should leave no doubt upon the subject….The object of the *B.N.A. Act* was to lay in the Dominion Constitution the foundations of a nation, and not to give to provinces carved out of, and subordinated to, the Dominion, anything of the nature of a national or *quasi* national existence.

1.2 *Parsons v. Citizens' Insurance Co. of Canada*, (1881) L.R. 7 App. Cas. 96

The Judicial Committee of the Privy Council Decision

Sir Montague Smith:

The scheme of [the *Constitution Act, 1867*], as expressed in the first branch of s. 91 is to give to the dominion parliament authority to make laws for the good government of Canada in all matters not coming within the classes of subjects assigned exclusively to the provincial legislature….

Notwithstanding this endeavour to give pre-eminence to the dominion parliament in cases of a conflict of powers, it is obvious that in some cases where this apparent conflict exists, the legislature could not have intended that the powers exclusively assigned to the provincial legislature should be absorbed in those given to the dominion parliament. Take as one instance the subject "marriage and divorce," contained in the enumeration of subjects in section 91; it is evident that solemnization of marriage would come within this general description; yet "solemnization of marriage in the province" is enumerated among the classes of subjects in s. 92, and no one can doubt, notwithstanding the general language of s. 91, that this subject is still within the exclusive authority of the legislatures of the provinces." …. [I]t obviously could not have been intended that … the general power should override the particular one. With regard to certain classes of subjects, therefore, generally described in s. 91, legislative power may reside as to some matters failing within the general description of these subjects in the legislatures of the provinces. In these cases it is the duty of the Courts, however difficult it may be, to ascertain in what degree, and to what extent, authority to deal with matters falling within these classes of subjects exists in each legislature, and to define in the particular case before them the limits of their respective powers. It could not have been the intention that a conflict should exist; and, in order to prevent such a result, the two sections must be read together, and the language of one interpreted, and, where necessary, modified, by that of the other. In this way it may, in most cases, be found possible to arrive at a reasonable and practical construction of the language of the sections, so as to reconcile the respective powers they contain, and give effect to all of them. In performing this difficult duty, it will be a wise course for those on whom it is thrown, to decide each case which arises as best they can, without entering more largely upon an interpretation of the statute than is necessary for the decision of the particular question in hand.

…

The main contention on the part of the Respondent was that the Ontario Act in question had relation to matters coming within the class of subjects described in No. 13 of Section 92, viz., "Property and Civil Rights in the Province." The Act deals with policies of insurance entered into or in force in the Province of Ontario for insuring property situate therein against fire, and prescribes certain conditions which are to form part of such contracts. These contracts, and the rights arising from them, it was argued, came legitimately within the class of subject, "Property and Civil Rights."…. The words are sufficiently large to embrace, in their fair and ordinary meaning, rights arising from contract, and such rights are not included in any of the enumerated classes of subjects in Section 91.

In looking at Section 91, it will be found not only that there is no class including, generally, contracts and the rights arising from them, but that one class of contracts is mentioned and enumerated, viz., "18. bills of exchange and promissory notes," which it would have been unnecessary to specify if authority over all contracts and the rights arising from them had belonged to the Dominion Parliament.

By [section s. 94 of the *Constitution Act, 1867*] the parliament of Canada is empowered to make provision for the uniformity of any laws relative to "property and civil rights" in Ontario, Nova Scotia, and New Brunswick … if the provincial legislatures choose to adopt the provisions so made. The province of Quebec is omitted from this section for the obvious reason that the law which governs property and civil rights in Quebec is in the main the French law …. The words "property and civil rights" are obviously used in the same sense in this section as in No. 13 of Section 92, and there seems no reason for presuming that contracts and the rights arising from them were not intended to be included in this provision for uniformity. If, however, the narrow construction of the words "civil rights," contended for by the Appellants, were to prevail, the Dominion Parliament could, under its general power, legislate in regard to contracts in all and each of the provinces, and, as a consequence of this, the Province of Quebec, though now governed by its own Civil Code, founded on the French law, as regards contracts and their incidents, would be subject to have its law on that subject altered by the dominion legislature, and brought into uniformity with the English law prevailing in the other three provinces, notwithstanding that Quebec has been carefully left out of the uniformity section of the [*Constitution Act, 1867*].

...

The words "regulation of trade and commerce," in their unlimited sense, are sufficiently wide, if uncontrolled by the context and other parts of the [*Constitution Act, 1867*], to include every regulation of trade ranging from political arrangements in regard to trade with foreign Governments, requiring the sanction of Parliament, down to minute rules for regulating particular trades. But a consideration of the [*Constitution Act, 1867*] shows that the words were not used in this unlimited sense. In the first place, the collocation of No. 2 with classes of subjects of national and general concern affords an indication that regulations relating to general trade and commerce were in the mind of the Legislature, when conferring this power on the Dominion Parliament. If the words had been intended to have the full scope of which in their literal meaning they are susceptible, the specific mention of several of the other classes of subjects enumerated in Section 91 would have been unnecessary; as, 15, banking; 17, weights and measures; 18, bills of exchange and promissory notes; 19, interest; and even 21, bankruptcy and insolvency.

…Their Lordships abstain on the present occasion from any attempt to define the limits of the authority of the dominion parliament….It is enough for the decision of the present case to say that, in their view, its authority to legislate for the regulation of trade and commerce does not comprehend the power to regulate by legislation the contracts of a particular business or trade, such as the business of fire insurance, in a single province, and therefore that its legislative authority does not in the present case conflict or compete with the power over property and civil rights assigned to the Legislature of Ontario by No. 13 of Section 92.

1.3 *Reference re Securities Act*, 2011 SCC 66 (CanLII)

The Court —

[1] This reference under s. 53 of the *Supreme Court Act*, R.S.C. 1985, c. S-26, requires the Court to determine whether the proposed *Securities Act* set out in Order in Council P.C. 2010-667 falls within the legislative authority of the Parliament of Canada.

[2] The proposed *Securities Act* represents a comprehensive foray by Parliament into the realm of securities regulation. If validly adopted, it will create a single scheme governing the trade of securities throughout Canada subject to the oversight of a single national securities regulator.

[3] The government of Canada ("Canada"), supported by the Attorney General of Ontario ("Ontario") and other interveners, argues that the entirety of the Act can be sustained as a proper exercise of the general branch of Parliament's legislative power to regulate trade and commerce, grounded in s. 91(2) of the *Constitution Act, 1867*. The Attorney General of Alberta, the Attorney General of Quebec and other provincial attorneys general and interveners oppose the Act, arguing that securities regulation is a matter falling within s. 92(13) of the *Constitution Act,*

1867, which gives the provinces legislative jurisdiction over property and civil rights within their borders. Certain opponents of the Act also submit that securities regulation relates to provincial jurisdiction over matters of a merely local or private nature, under s. 92(16) of the *Constitution Act, 1867*.

[4] Canada does not challenge the proposition that certain aspects of securities regulation fall within provincial authority in relation to property and civil rights in the provinces. Nor does Canada argue that any provisions of the Act fall within federal legislative authority because they are necessarily incidental to the exercise of federal powers. Canada's contention is simply that the securities market has evolved from a provincial matter to a national matter affecting the country as a whole and that, as a consequence, the federal general trade and commerce power gives Parliament legislative authority over all aspects of securities regulation. This authority, Canada argues, is concurrent with that of the provincial legislatures over all aspects of securities presently regulated by the provinces.

…

[6] Canada has shown that aspects of the securities market are national in scope and affect the country as a whole. However, considered in its entirety, the proposed Act is chiefly directed at protecting investors and ensuring the fairness of capital markets through the day-to-day regulation of issuers and other participants in the securities market. These matters have long been considered local concerns subject to provincial legislative competence over property and civil rights within the province. Canada has not shown that the securities market has so changed that the regulation of all aspects of securities now falls within the general branch of Parliament's power over trade and commerce under s. 91(2). Applying the settled test, we conclude that the proposed Act does not fall within the general trade and commerce power.

[7] It is a fundamental principle of federalism that both federal and provincial powers must be respected, and one power may not be used in a manner that effectively eviscerates another. Rather, federalism demands that a balance be struck, a balance that allows both the federal Parliament and the provincial legislatures to act effectively in their respective spheres. Accepting Canada's interpretation of the general trade and commerce power would disrupt rather than maintain that balance. Parliament cannot regulate the whole of the securities system simply because aspects of it have a national dimension.

[8] We therefore answer the reference question in the negative.

[9] It is open to the federal government and the provinces to exercise their respective powers over securities harmoniously, in the spirit of cooperative federalism. The experience of other federations in the field of securities regulation, while a function of their own constitutional requirements, suggests that a cooperative approach might usefully be explored, should our legislators so choose, to ensure that each level of government properly discharges its responsibility to the public in a coordinated fashion.

[10] At this juncture, it is important to stress that this advisory opinion does not address the question of what constitutes the optimal model for regulating the securities market. While the parties presented evidence and arguments on the relative merits of federal and provincial regulation of securities, the policy question of whether a single national securities scheme is preferable to multiple provincial regimes is not one for the courts to decide. Accordingly, our answer to the reference question is dictated solely by the text of the Constitution, fundamental constitutional principles and the relevant case law.

…

[29] The preamble of the proposed Act states that its immediate purpose is to create a single Canadian securities regulator. More broadly, s. 9 states that the underlying purposes of the Act are to provide investor protection, to foster fair, efficient and competitive capital markets and to contribute to the integrity and stability of Canada's financial system.

[30] The Act includes registration requirements for securities dealers, prospectus filing requirements, disclosure requirements, specific duties for market participants, a framework for the regulation of derivatives, civil remedies and regulatory and criminal offences pertaining to securities. It provides for the comprehensive regulation of securities in Canada, under the oversight of a single national regulator. It also provides for a single set of laws and rules designed to permit uniform regulation and enforcement on a national basis, thus fostering the integrity and stability of Canada's capital markets at a national level. While various parties emphasize different facets of the scheme, advancing interesting arguments on the implication of words such as "national", "capital markets", "securities industry" and "securities trading", it seems uncontrovertible that what the Act seeks is comprehensive national securities regulation, with the aim of fostering fair and efficient capital markets and contributing to the stability of Canada's financial system.

[31] The Act, as proposed, does not seek to unilaterally impose a unified system of securities regulation for the whole of Canada. Rather, it permits provinces to opt in, if and when they choose to do so. The hope is that, eventually, all or most provinces will opt in, creating an effective unified national securities regulation system for Canada. If this were to occur, it would represent a dramatic realignment in the manner in which securities have been regulated in this country.

…

[41] Every province and territory has its own securities laws and regulatory agency. These agencies exercise a variety of responsibilities, including prospectus review and clearance; oversight of disclosure requirements; takeover bids and insider trading; registration and regulation of market intermediaries; enforcement of compliance with the regime; recognition and supervision of exchanges and other self-regulated organizations; and public education.

…

[43] Provinces have jurisdiction to regulate securities within their boundaries (intraprovincial jurisdiction) as a matter of property and civil rights, pursuant to s. 92(13) of the *Constitution Act, 1867*. As Lord Atkin stated in *Lymburn v. Mayland*, 1932 CanLII 311 (UK JCPC), [1932] A.C. 318 (P.C.), "If [a company] is formed to trade in securities there appears no reason why it should not be subject to the competent laws of the Province as to the business of all persons who trade in securities" (p. 324).

[44] More recently, this Court, in *Multiple Access Ltd. v. McCutcheon*, 1982 CanLII 55 (SCC), [1982] 2 SCR 161, *per* Dickson J. (as he then was), confirmed:

> It is well established that the provinces have the power, as a matter of property and civil rights, to regulate the trade in corporate securities in the province, provided the statute does not single out federal companies for special treatment or discriminate against them in any way. . . . Since the decision of the Privy Council in *Lymburn v. Mayland*, 1932 CanLII 311 (UK JCPC), [1932] A.C. 318 the provisions of provincial securities acts have been given a wide constitutional recognition. [p. 183]

(See also *Global Securities Corp. v. British Columbia (Securities Commission)*, 2000 SCC 21, [2000] 1 SCR 494, at para. 40.)

…

[46] The Constitution gives Parliament powers that enable it to pass laws that affect aspects of securities regulation and, more broadly, to promote the integrity and stability of the Canadian financial system. These include Parliament's power to enact laws relating to criminal law (s. 91(27)), banks (s. 91(15)), bankruptcy (s. 91(21)), telecommunications (ss. 91 and 92(10)(*a*)), and peace, order and good government (s. 91)

(*Multiple Access*; *Bell Canada v. Quebec (Commission de la santé et de la sécurité du travail)*, 1988 CanLII 81 (SCC), [1988] 1 SCR 749, at pp. 765-66; *Smith v. The Queen*, 1960 CanLII 12 (SCC), [1960] SCR 776, at p. 781)….

[54] Sections 91 and 92 of the *Constitution Act, 1867* divide legislative powers between Parliament and the provincial legislatures. This division remains the "primary textual expression of the principle of federalism in our Constitution, agreed upon at Confederation" (*Reference re Secession of Quebec*, 1998 CanLII 793 (SCC), [1998] 2 SCR 217 ("*Secession Reference*"), at para. 47).

[55] Inherent in a federal system is the need for an impartial arbiter of jurisdictional disputes over the boundaries of federal and provincial powers (*Reference re Remuneration of Judges of the Provincial Court of Prince Edward Island*, 1997 CanLII 317 (SCC), [1997] 3 SCR 3, at para. 124). That impartial arbiter is the judiciary, charged with "control[ling] the limits of the respective sovereignties" (*Northern Telecom Canada Ltd. v. Communication Workers of Canada*, 1983 CanLII 25 (SCC), [1983] 1 SCR 733, at p. 741). Courts are guided in this task by foundational constitutional principles, which assist in the delineation of spheres of jurisdiction. Among these, the principle of federalism "has exercised a role of considerable importance in the interpretation of the written provisions of our Constitution" (*Secession Reference*, at para. 57).

[56] The Judicial Committee of the Privy Council, which was the final arbiter of Canada's Constitution until 1949, tended to favour an exclusive powers approach. Thus, Lord Atkin in 1937 famously described the respective powers of Parliament and the provincial legislatures as "watertight compartments" (*Attorney-General for Canada v. Attorney-General for Ontario*, 1937 CanLII 362 (UK JCPC), [1937] A.C. 326, at p. 354). However, the Judicial Committee recognized that particular matters might have both federal and provincial aspects and overlap (*Hodge v. The Queen* (1883), 9 App. Cas. 117). Privy Council jurisprudence also recognized that the Constitution must be viewed as a "living tree capable of growth and expansion within its natural limits" (*Edwards v. Attorney-General for Canada*, 1929 CanLII 438 (UK JCPC), [1930] A.C. 124, at p. 136, *per* Lord Sankey). This metaphor has endured as the preferred approach in constitutional interpretation, ensuring "that Confederation can be adapted to new social realities" (*Reference re Employment Insurance Act (Can.), ss. 22 and 23*, 2005 SCC 56, [2005] 2 SCR 669, at para. 9, *per* Deschamps J.).

[57] The Supreme Court of Canada, as final arbiter of constitutional disputes since 1949, moved toward a more flexible view of federalism that accommodates overlapping jurisdiction and encourages intergovernmental cooperation — an approach that can be described as the "dominant tide" of modern federalism (*OPSEU v. Ontario (Attorney General)*, 1987 CanLII 71 (SCC), [1987] 2 SCR 2, at p. 18)….

[59] Dickson C.J., in concurring reasons in *OPSEU*, summarized the situation aptly:

> The history of Canadian constitutional law has been to allow for a fair amount of interplay and indeed overlap between federal and provincial powers. It is true that doctrines like interjurisdictional and Crown immunity and concepts like "watertight compartments" qualify the extent of that interplay. But it must be recognized that these doctrines and concepts have not been the dominant tide of constitutional doctrines; rather they have been an undertow against the strong pull of pith and substance, the aspect doctrine and, in recent years, a very restrained approach to concurrency and paramountcy issues. [p. 18]

[60] As Dickson C.J. pointed out, a restrained approach to doctrines like federal paramountcy is warranted. This point was reiterated by Binnie and LeBel JJ. in *Canadian Western Bank v. Alberta*, 2007 SCC 22, [2007] 2 SCR 3, where the Court said:

> The [constitutional] doctrines [developed by the courts] must also be designed to reconcile the legitimate diversity of regional experimentation with the need for national unity [and] they must include a recognition that the task of maintaining the balance of powers in practice falls primarily to governments, and constitutional doctrine must facilitate, not undermine what this Court has called "co-operative federalism" …

[61] While flexibility and cooperation are important to federalism, they cannot override or modify the separation of powers. The *Secession Reference* affirmed federalism as an underlying constitutional principle that demands respect for the constitutional division of powers and the maintenance of a constitutional balance between federal and provincial powers.

[62] In summary, notwithstanding the Court's promotion of cooperative and flexible federalism, the constitutional boundaries that underlie the division of powers must be respected. The "dominant tide" of flexible federalism, however strong its pull may be, cannot sweep designated powers out to sea, nor erode the constitutional balance inherent in the Canadian federal state.

…

[65] After analyzing the legislation's purpose and its effects to determine its main thrust, the inquiry turns to whether the legislation so characterized falls under the head of power said to support it — the classification stage (*Reference re Firearms Act (Can.)*, 2000 SCC 31, [2000] 1 SCR 783, at para. 15). This may require interpretation of the scope of the power. If the main thrust of the legislation is properly classified as falling under a head of power assigned to the adopting level of government, the legislation is *intra vires* and valid.

[66] Canadian constitutional law has long recognized that the same subject or "matter" may possess both federal and provincial aspects. This means that a federal law may govern a matter from one perspective and a provincial law from another. The federal law pursues an objective that in pith and substance falls within Parliament's jurisdiction, while the provincial law pursues a different objective that falls within provincial jurisdiction (*Canadian Western Bank*, at para. 30). This concept, known as the double aspect doctrine, allows for the *concurrent application* of both federal and provincial legislation, but it does not create *concurrent jurisdiction* over a matter (in the way, for example, s. 95 of the *Constitution Act, 1867* does for agriculture and immigration).

…

[93] The first step in the pith and substance analysis is to ascertain the purpose and effects of the Act, viewed as a single, comprehensive scheme.

[94] The task at this stage is not to determine conclusively whether the legislation is provincial or federal in nature — that is the ultimate question of the division of powers analysis — but only to ascertain its main thrust. …

[95] Turning first to purpose, the Act's preamble states that Canada intends to create a single Canadian securities regulator. This is consistent with previous proposals for such a body. As discussed earlier, the idea of a single Canadian securities regulator has been percolating for more than 50 years. The Act represents the culmination of sustained efforts towards unification of the provincial securities regulatory regimes. Section 9 of the proposed Act reveals the legislation's broader, underlying purposes: to provide investor protection, to foster fair, efficient and competitive capital markets and to contribute to the integrity and stability of Canada's financial system.

…

[98] This brings us to the effects of the proposed federal scheme. We must look not only at the direct effects of the legislation, but also at the follow-through effects the legislation may be expected to produce (*Kitkatla*).

[99] The direct effect of the proposed Act is to establish a federal securities regulation scheme. If implemented as contemplated, all provinces and territories will eventually join the scheme. This will produce follow-through effects. Once a sufficient number of jurisdictions opt in, the current provincial and territorial securities regulation schemes will be effectively displaced. Indeed, in order to be included in the

comprehensive regulatory scheme created by the Act, provinces and territories must suspend their own securities laws. The follow-through effects of the proposed Act will therefore be to subsume the existing provincial and territorial legislative schemes governing securities under the federal regulation scheme.

[100] A detailed look at the provisions of the Act confirms that once in place, it will regulate many matters which Canada concedes also fall within the provincial power over property and civil rights under s. 92(13).…

…

[106] Against this background, we return to the question at hand: What is the main thrust of the proposed *Securities Act*? The purpose of the proposed Act, we have seen, is to implement a comprehensive Canadian regime for the regulation of securities with a view to investor protection, the promotion of fair, efficient and competitive capital markets and ensuring the integrity and stability of the financial system. The effects of the proposed Act would be to duplicate and displace the existing provincial and territorial securities regimes, replacing them with a new federal regulatory scheme. Thus, the main thrust of the Act is to regulate, on an exclusive basis, all aspects of securities trading in Canada, including the trades and occupations related to securities in each of the provinces.

…

[126] The conclusion that the Act's attempt to take over regulation of the entirety of the securities trade in Canada exceeds the general branch of the trade and commerce power is also supported by the tenor of the case law. While the jurisprudence acknowledges that securities regulation may possess federal aspects, it has generally viewed basic securities regulation within the provinces as a local matter of property and civil rights…

[132] It is not for the Court to suggest to the governments of Canada and the provinces the way forward by, in effect, conferring in advance an opinion on the constitutionality on this or that alternative scheme. Yet we may appropriately note the growing practice of resolving the complex governance problems that arise in federations, not by the bare logic of either/or, but by seeking cooperative solutions that meet the needs of the country as a whole as well as its constituent parts.

[133] Such an approach is supported by the Canadian constitutional principles and by the practice adopted by the federal and provincial governments in other fields of activities. The backbone of these schemes is the respect that each level of government has for each other's own sphere of jurisdiction. Cooperation is the animating force. The federalism principle upon which Canada's constitutional framework rests demands nothing less.

[134] The *Securities Act* as presently drafted is not valid under the general branch of the federal power to regulate trade and commerce under s. 91(2) of the *Constitution Act, 1867*.

2 Property and Civil Rights in the Province and the Criminal Law

In addition to dealing with the interaction between federal and provincial jurisdiction in relation to the economy, Canadian courts frequently confronted the dividing lines between federal jurisdiction under the criminal law in s. 91(27) and provincial jurisdiction under s. 92(13).

From the outset, courts recognized that many valid federal laws, including criminal laws, would involve property in various incidental ways. The question to determine the validity of federal criminal laws was not whether such a law *involved* or touched upon property in some fashion, but whether the Act's true nature and character and form (determined by application of what became the 3p test) fell within the criminal law power.

Similarly, courts widely accept the validity of an array of provincial laws with prohibitions and penalties covering areas of shared criminal law concern so long as the Act's dominant purpose falls within the broad conception of provincial jurisdiction over property and civil rights or matters of a local and private nature. The resulting case law leans heavily on the double aspect doctrine and acceptance of overlapping applications of federal and provincial laws. There is no specific test courts apply to determine validity under s. 92(13), unlike some other broad heads of power in the division of powers. Instead, courts primarily rely on the pith and substance doctrine to assess whether the provincial legislation has a dominant purpose in relation to property and civil rights in the province.

2.1 *Chatterjee v Ontario (Attorney General)*, 2009 SCC 19 (CanLII)

The judgment of the Court was delivered by

[1] BINNIE J. — The question raised on this appeal is whether the Ontario *Remedies for Organized Crime and Other Unlawful Activities Act, 2001*, S.O. 2001, c. 28 (otherwise known as *Civil Remedies Act, 2001* or *CRA*), which authorizes the forfeiture of proceeds of unlawful activity, is *ultra vires* Ontario because it encroaches on the federal criminal law power. In my view, the *CRA* is valid provincial legislation.

[2] The argument that the *CRA* is *ultra vires* is based in this case on an exaggerated view of the immunity of federal jurisdiction in relation to matters that may, in another aspect, be the subject of provincial legislation. Resort to a federalist concept of proliferating jurisdictional enclaves (or "interjurisdictional immunities") was discouraged by this Court's decisions in *Canadian Western Bank v. Alberta*, 2007 SCC 22, [2007] 2 SCR 3, and *British Columbia (Attorney General) v. Lafarge Canada Inc.*, 2007 SCC 23, [2007] 2 SCR 86, and should not now be given a new lease on life. As stated in *Canadian Western Bank*, "a court should favour, where possible, the ordinary operation of statutes enacted by *both* levels of government" (para. 37 (emphasis in original)).

[3] The present appeal provides an opportunity to apply the principles of federalism affirmed in those recent cases. The *CRA* was enacted to deter crime and to compensate its victims. The former purpose is broad enough that both the federal government (in relation to criminal law) and the provincial governments (in relation to property and civil rights) can validly pursue it. The latter purpose falls squarely within provincial competence. Crime imposes substantial costs on provincial treasuries. Those costs impact many provincial interests, including health, policing resources, community stability and family welfare. It would be out of step with modern realities to conclude that a province must shoulder the costs to the community of criminal behaviour but cannot use deterrence to suppress it.

[4] Moreover, the *CRA* method of attack on crime is to authorize *in rem* forfeiture of its proceeds and differs from both the traditional criminal law which ordinarily couples a prohibition with a penalty (see *Reference re Firearms Act (Can.)*, 2000 SCC 31, [2000] 1 SCR 783) and criminal procedure which in general refers to the means by which an allegation of a particular criminal offence is proven against a particular offender…. It is true that forfeiture may have *de facto* punitive effects in some cases, but its dominant purpose is to make crime in general

unprofitable, to capture resources tainted by crime so as to make them unavailable to fund future crime and to help compensate private individuals and public institutions for the costs of past crime. These are valid provincial objects. There is no operational conflict between the forfeiture provisions of the *Criminal Code*, R.S.C. 1985, c. C-46, and the *CRA*. It cannot reasonably be said that the *CRA* amounts to colourable criminal legislation. Accordingly, I would dismiss the appeal.

[5] The appellant was stopped by York Regional Police on March 27, 2003, because his car had no front licence plate. A computer search showed the police that he was in breach of his recognizance, which required him to reside in Ottawa, some 400 kilometres away. When the appellant acknowledged that he was then living in Thornhill, just north of Toronto, the officers arrested him and, incidental to the arrest, searched his car. They discovered $29,020 in cash, as well as an exhaust fan, a light ballast and a light socket. According to police, all of these items smelled of marijuana, although no marijuana was found.

[6] The appellant was never charged with any offence in relation to the money, items, or any drug related activity. However, on May 13, 2003, the Attorney General of Ontario brought an interlocutory motion under ss. 4 and 9 of the *CRA* to preserve the seized money and equipment. A preservation order was granted.

[7] On May 16, 2003, the Attorney General brought an application under ss. 3 and 8 of the *CRA* for forfeiture of the seized money as proceeds of unlawful activity and of the items as instruments of unlawful activity. In response, the appellant challenged the *CRA*'s constitutionality: that challenge eventually led to this appeal.

…

[15] Crime imposes significant costs at every level of government: federal, provincial and municipal. Impaired driving is a *Criminal Code* offence but carnage on the roads touches numerous matters within provincial jurisdiction including health, highways, automobile insurance and property damage. The cost associated with drug abuse is another example. Each level of government bears a portion of the costs of criminality and each level of government therefore has an interest in its suppression. …

[16] The first step in a constitutional challenge is to determine "the matter" (to track the language of the *Constitution Act, 1867*) in relation to which the impugned law is enacted. What is the essence of what the law does and how does it do it? "[T]wo aspects of the law must be examined: the purpose of the enacting body, and the legal effect of the law" (*Reference re Firearms Act*, at para. 16). This exercise is traditionally known as determining the law's "pith and substance". It may include not only the impugned Act but also external material surrounding its passage, including Hansard. In principle this assessment should be made without regard to the head(s) of legislative competence, which are to be looked at only once the "pith and substance" of the impugned law is determined. Unless the two steps are kept distinct there is a danger that the whole exercise will become blurred and overly oriented towards results.

[17] As its name suggests, the *Civil Remedies Act, 2001*, enacts civil remedies in relation to property tainted by crime. Its purpose, as stated in s. 1:

> The purpose of this Act is to provide civil remedies that will assist in,
>
> (a) compensating persons who suffer pecuniary or non-pecuniary losses as a result of unlawful activities;
>
> (b) preventing persons who engage in unlawful activities and others from keeping property that was acquired as a result of unlawful activities;
>
> (c) preventing property, including vehicles as defined in Part III.1, from being used to engage in certain unlawful activities [added in 2007, c. 13, s. 26]; and
>
> (d) preventing injury to the public that may result from conspiracies to engage in unlawful activities.

While the Court is not bound by a purpose clause when considering the constitutional validity of an enactment, a statement of legislative intent is often a useful tool, particularly where it is apparent, as in this case, that the machinery created by the *CRA* corresponds to what is required to achieve the stated purposes. Purposes (a) and (b) contemplate the re-distribution of property tainted by crime. (Purpose (c) relates to the instruments of crime and is not before us.) Purpose (d) is directed to the prevention of crime-related injuries. It is suggested that the reference to "conspiracies" in (d) indicates a focus on combatting organized crime, and the appellant cites some extracts from Hansard to that effect. This, he says, entangles the *CRA* in criminal law. However, the province has good reason to deter organized crime, provided it stays within areas of provincial competence. There is nothing in the provisions of the *CRA* that are before us on this appeal that go beyond the redistribution of property tainted by crime, including federal crimes of all descriptions.

[18] The internal evidence of purpose thus suggests a credible intent to recover from the proceeds of crime found in Ontario the costs to victims and to the public of criminality that would otherwise fall on the provincial treasury. Forfeiture is the transfer of property from the owner to the Crown. Forfeiture does not result in the conviction of anybody for any offence. On its face, therefore, the *CRA* targets property rights.

[19] In terms of the *effects* of the *CRA*, the Court in determining its pith and substance will look at "how the legislation as a whole affects the rights and liabilities of those subject to its terms" (*R. v. Morgentaler*, 1993 CanLII 74 (SCC), [1993] 3 SCR 463, at p. 482). When appropriate, as well, a reviewing court will look beyond the legal effect — beyond the statute's "four corners" — to examine "the actual or predicted practical effect of the legislation in operation" (*Morgentaler*, at p. 483). The record shows that as of August 2007 approximately $3.6 million in property has been ordered forfeited under the *CRA* of which approximately $1 million had been paid out to direct victims, $900,000 had been paid in grants to various bodies on victims' issues, including the Peel Police Internet Child Exploitation Unit, leaving $1.7 million in special *CRA* accounts. Forfeited property included approximately $500,000 in property involved in marijuana grow operations, a Hamilton

crack house (the ownership of which was then transferred to the City), vehicles involved in street racing contrary to the *Highway Traffic Act*, R.S.O. 1990, c. H.8, and approximately $1 million in cash involved in fraud or money laundering: *Civil Forfeiture in Ontario 2007: An Update on the Civil Remedies Act, 2001* (2007).

[20] Criminal "taint" of property has many sources. Section 2 of the *CRA* defines "unlawful activity" as "an act or omission that . . . is an offence under an Act of Canada, Ontario or another province or territory". The definition also extends to offences in jurisdictions outside Canada provided the conduct there would be an offence if committed in Ontario. It is significant that the *CRA* throws its "crime" net so widely. There is no singling out of offences in any particular jurisdiction, including federal offences in Canada. This suggests the province was concerned with the deleterious *effects* of crime in general rather than attempting in a colourable way to tack a penalty onto the federal criminal sentencing process.

…

[23] In essence, therefore, the *CRA* creates a property-based authority to seize money and other things shown on a balance of probabilities to be tainted by crime and thereafter to allocate the proceeds to compensating victims of and remedying the societal effects of criminality. The practical (and intended) effect is also to take the profit out of crime and to deter its present and would-be perpetrators.

[24] Once the "pith and substance" is ascertained, it is necessary to classify that essential character of the law by reference to the provincial and federal "classes of subjects" listed in ss. 91 and 92 (or, in an appropriate case, ss. 93, 94A and 95) to determine if the law comes within the jurisdiction of the enacting legislature. Clearly, the *CRA* relates to property but, of course, much of the *Criminal Code* is dedicated to offences involving property. To characterize a provincial law as being in pith and substance related to property is therefore just a starting point. A good deal of overlap in measures taken to suppress crime is inevitable …

[25] As stated, the *CRA* fits neatly into the provincial competence in relation to Property and Civil Rights in the Province (*Constitution Act, 1867*, s. 92(13)) or Matters of a merely local or private Nature in the Province (s. 92(16))…

[26] Our jurisprudence offers many examples of the interplay between provincial legislative jurisdiction over property and civil rights and federal legislative jurisdiction over criminal law and procedure. In *Bédard v. Dawson*, 1923 CanLII 43 (SCC), [1923] SCR 681, for example, the Court upheld the validity of a provincial law that authorized a judge to close a "disorderly hous[e]" for up to one year. The Court held that the law was directed to the enjoyment of property rights not criminal law. Duff J. (later C.J.C.) held that "[t]he legislation impugned seems to be aimed at suppressing conditions calculated to favour the development of crime rather than at the punishment of crime" (p. 684). Idington J., in words relevant to the disposition of the present appeal, said that:

> As to the argument addressed to us that the local legislatures cannot legislate to prevent crime, I cannot assent thereto for in a very wide sense it is the duty of the legislature to do the utmost it can within its power to anticipate and remove, so far as practicable, whatever is likely to tend to produce crime; . . . [Emphasis added; p. 684.]

[27] In *Switzman v. Elbling*, 1957 CanLII 2 (SCC), [1957] SCR 285, this Court struck down a Quebec law providing for the closure of houses in which socialism or bolshevism were said to be propagated (known popularly as the "Padlock law"). Kerwin C.J. and Nolan and Cartwright JJ. distinguished *Bédard*. Unlike in *Bédard*, the impugned statute in *Switzman* was only superficially concerned with the control and enjoyment of property; in their view its dominant purpose was to criminalize and punish the propagation of communism. By contrast, the *CRA* does not define a new offence or clearly take aim at any particular category of criminal conduct. …

…

[29] The question, however, is at what point does a provincial measure designed to "suppress" crime become itself "criminal law"? There will often be a degree of overlap between measures enacted pursuant to the provincial power (property and civil rights) and measures taken pursuant to the federal power (criminal law and procedure). In such cases it is necessary for the Court to identify the "dominant feature" of an impugned measure. If, as is argued by the Attorneys General here, the dominant feature of the *CRA* is property and civil rights, it will not be invalidated because of an "incidental" intrusion into the field of criminal law.

[30] For the reasons that follow I agree that the *CRA* was enacted "in relation to" property and civil rights and may incidentally "affect" criminal law and procedure without doing violence to the division of powers. As noted by Dickson C.J. in *General Motors of Canada Ltd. v. City National Leasing*, 1989 CanLII 133 (SCC), [1989] 1 SCR 641, at p. 670, "[b]oth provincial and federal governments have equal ability to legislate in ways that may incidentally affect the other government's sphere of power."

[32] …Co-operative federalism recognizes that overlaps between provincial and federal laws are inevitable:

> Matters, however, which in one aspect and for one purpose fall within the jurisdiction of a province over the subjects designated by one or more of the heads of s. 92, may in another aspect and for another purpose, be proper subjects of legislation under s. 91, and in particular under head 27.
>
> (*Reference re Validity of the Combines Investigation Act and of s. 498 of the Criminal Code*, 1929 CanLII 90 (SCC), [1929] SCR 409, at p. 413)

The mere existence of a valid federal law bearing some similarities to the challenged provincial law does not, without more, demonstrate the invalidity of the latter.

…

[36] If the dominant purpose of the provincial enactment is in relation to provincial objects, the law will be valid, and if the enactments of both levels of government can generally function without operational conflict they will be permitted to do so. In factual situations where operational conflict does occur, the conflict will be resolved by the restrained view of federal paramountcy …

[40] The Constitution permits a province to enact measures to deter criminality and to deal with its financial consequences so long as those measures are taken in relation to a head of provincial competence and do not compromise the proper functioning of the *Criminal Code* including the sentencing provisions. In *Provincial Secretary of Prince Edward Island v. Egan*, 1941 CanLII 1 (SCC), [1941] SCR 396, it was held that a province could validly impose automatic suspension of a provincial driver's licence after conviction for impaired driving under the *Criminal Code*. In *Ross v. Registrar of Motor Vehicles*, 1973 CanLII 176 (SCC), [1975] 1 SCR 5, the Court upheld the automatic provincial licence suspension following a conviction for impaired driving even though the sentencing judge in the criminal case had purported to allow Ross to continue to drive on an intermittent basis.

There is no general bar to a province's enacting civil consequences to criminal acts provided the province does so for its own purposes in relation to provincial heads of legislative power.

[41] In *Egan* and *Ross*, the provincial laws were clearly aimed at deterring impaired driving, notwithstanding its status as a federal offence, and with good reason. Drunk drivers create public safety hazards on provincial highways and their accidents impose costs by way of examples on the provincial health system and provincial police and highway services. Similarly, the fact the *CRA* aims to deter *federal* offences as well as provincial offences and indeed offences committed outside Canada, is not fatal to its validity. On the contrary, its very generality shows that the province is concerned about the *effects* of crime as a generic source of social ill and provincial expense, and not with supplementing federal criminal law as part of the sentencing process.

…

[53] In summary, the *CRA* is valid provincial legislation.

2.2 *Murray-Hall v Quebec (Attorney General)*, 2023 SCC 10 (CanLII)

THE CHIEF JUSTICE –

[1] A few years ago, the federal Parliament passed legislation relating to cannabis. Under that legislation, it is prohibited for an individual to possess or cultivate more than four cannabis plants in the individual's home. The provinces and territories subsequently passed their own legislation to regulate such practical matters as the manner in which cannabis was to be sold and stored. Through a broad legislative initiative that included the creation of a monopoly on the sale of cannabis, the Quebec legislature, for its part, enacted provisions that completely prohibit the possession and cultivation of cannabis plants at home, regardless of the number of plants. What must be determined in this appeal is whether the Quebec provisions are constitutionally valid in light of the division of powers and, if so, whether they are operative under the doctrine of federal paramountcy. For the reasons that follow, I conclude that the impugned provisions are a valid exercise by the Quebec legislature of the powers conferred on it by s. 92(13) and (16) of the *Constitution Act, 1867*. I also conclude that the impugned provisions do not frustrate the purpose of the federal legislation and are therefore operative.

…

[5] The enactment of the federal Act represents a paradigm shift in the Canadian legal landscape. Canada has moved from a suppression-based approach to a scheme that gives the provinces responsibility for determining the framework for the sale and distribution of cannabis within their borders. In other words, the provinces are being called upon to make laws, within their fields of jurisdiction, concerning a substance that was previously subject to criminal prohibitions for nearly a century. The statutes and regulations passed by the provinces in parallel with the federal Act primarily establish rules governing the sale of the substance, for example with regard to the location, operation and staff of the stores where the various cannabis products are sold. Much of the provincial legislation also sets out additional restrictions that supplement the federal legislative framework, including with respect to the minimum age required to purchase cannabis, the applicable limit on the possession of this substance and the places where it may be consumed in public.

[6] On June 12, 2018, the Quebec legislature introduced its own scheme to regulate cannabis when it passed Bill 157, *An Act to constitute the Société québécoise du cannabis, to enact the Cannabis Regulation Act and to amend various highway safety-related provisions*, 1st Sess., 41st Leg. The creation of the Société québécoise du cannabis ("SQDC"), a subsidiary of the Société des alcools du Québec with a monopoly on the sale of cannabis in Quebec, was one of the most important measures. The enactment of the *Cannabis Regulation Act*, CQLR, c. C-5.3 ("provincial Act"), was another. The provincial Act contains a broad range of provisions concerning the possession, cultivation, use, transportation, storage, sale and promotion of cannabis in Quebec. The specific provisions of the provincial Act being challenged in this case are ss. 5 and 10, which completely prohibit the possession of cannabis plants and the cultivation of such plants for personal purposes in a dwelling-house. These prohibitions are accompanied by fines of between $250 and $750, which are doubled for a subsequent offence

[22] To decide whether a law or some of its provisions are constitutionally valid under the division of powers, courts must first characterize the law or provisions and then, on that basis, classify them by reference to the heads of power listed in ss. 91 and 92 of the *Constitution Act, 1867* …

[23] At the characterization stage, what must be determined is the pith and substance of the law …. In its jurisprudence, the Court has described the aim of this exercise as being to identify the "dominant purpose" of the law … its "dominant or most important characteristic" … or its "leading feature or true character" …. At the classification stage, in turn, what must be determined is whether the pith and substance thereby defined comes within one of the heads of power of the enacting legislature …

…

[28] In my view, the pith and substance of the impugned provisions is to ensure the effectiveness of the state monopoly in order to protect the health and security of the public, and of young persons in particular, from cannabis harm. It follows that the prohibitions against the possession of cannabis plants and their cultivation at home set out in ss. 5 and 10 of the provincial Act are a *means* of serving the public health and security *objectives* pursued by that Act. …

[29] Before embarking on the analysis, I will provide a brief overview of the principles that apply in characterizing provisions that are alleged to be an integral part of a regulatory scheme. It is helpful to clarify the extent to which courts should analyze a law as a whole in order to characterize some of its provisions. The question is relevant in this case because the parties' disagreement at the characterization stage essentially stems from the emphasis they place, respectively, on the impugned provisions and on the provincial Act considered in its entirety. Mr. Murray-Hall focuses on the provisions themselves and criticizes the Court of Appeal for not truly considering the possibility that their purpose differs from that of the Act as a whole. The Attorney General of Quebec instead stresses the role played by the provisions in the scheme, endorsing the Court of Appeal's statement that [TRANSLATION] "their real purpose emerges only when they are analyzed in the overall context of the [provincial Act]" (para. 43).

[30] Where, as in this case, only very specific provisions are being challenged and not the entire law, certain principles apply. A court should begin by characterizing the provisions rather than considering the validity of the law as a whole, a principle articulated by Dickson J. (as he then was) in *Attorney General of Canada v. Canadian National Transportation, Ltd.*, 1983 CanLII 36 (SCC), [1983] 2 SCR 206. However, Dickson J. added, this does not mean that the provisions must be read in isolation. A contextual analysis of the provisions is necessary when they are part of a regulatory scheme. Dickson J.'s remarks in this regard are as follows:

> It is obvious at the outset that a constitutionally invalid provision will not be saved by being put into an otherwise valid statute, even if the statute comprises a regulatory scheme under the general trade and commerce branch of s. 91(2). The correct approach, where there is some doubt that the impugned provision has the same constitutional characterization as the Act in which it is found, is to start with the challenged section rather than with a demonstration of the validity of the statute as a whole. I do not think, however, this means that the section in question must be read in isolation. If the claim to constitutional validity is based on the contention that the impugned provision is part of a regulatory scheme it would seem necessary to read it in its context. If it can in fact be seen as part of such a scheme, attention will then shift to the constitutionality of the scheme as a whole. [Emphasis added; p. 270.]

…

[33] I would also note that reading the impugned provisions in the context of the scheme into which they are integrated is crucial in distinguishing the *purpose* of the law from the *means* chosen to achieve it. Indeed, in *Ward*, McLachlin C.J. cautioned against "confus[ing] the purpose of the legislation with the means used to carry out that purpose" (para. 25).

…

[35] Sections 5 and 10 of the provincial Act set out absolute prohibitions against, respectively, the possession and the cultivation of cannabis plants in a dwelling-house, accompanied by fines of $250 to $750. If we simply focused on the wording of these provisions, as the appellant urges us to do, the concept of prohibition is what would stand out.

[36] However, it is essential to analyze ss. 5 and 10 in light of their context and not just their wording, because it is the Attorney General of Quebec's contention that they are an integral part of the regulatory scheme established by the provincial Act. To echo the words of McLachlin C.J. in *Ward*, it is not just a matter of finding that the prohibitions against possession and cultivation exist; it is important to look at *why* they are incorporated into the provincial Act's very specific regulatory scheme.

[37] It is also my view that the impugned provisions must not be read "separately" or "individually" on the pretext that they may relate to a very different matter than the rest of the provisions. As the Court of Appeal said, [TRANSLATION] "[t]he constitutionality of sections 5 and 10 of the [provincial Act] cannot properly be analyzed in isolation, separately from the [Act] as a whole" (para. 41). Of course, it is quite possible that some provisions of a law may be of "a completely different order" than its other provisions (*Westendorp v. The Queen*, 1983 CanLII 1 (SCC), [1983] 1 SCR 43, at p. 51). But such a conclusion cannot be reached without a contextual analysis of the impugned provisions.

…

[38] An overview of the provincial Act reveals the scope of the regulatory scheme introduced by the Quebec legislature. Like the Court of Appeal, I see this undertaking as involving the creation of a state monopoly that oversees each step leading up to the purchase of cannabis by citizens in order to protect the health and security of the public. The prohibitions set out in ss. 5 and 10, along with the other controls put in place by the Act, are the machinery of this undertaking. Specifically, prohibiting the possession and cultivation of cannabis plants contributes to the effectiveness of the state monopoly by steering consumers to the only legally authorized source of supply, that is, the state-owned enterprise.

…

[41] [Sections] 5 and 10 are part of the monopolistic logic intended by the Quebec legislature, and the prohibitions they impose are a means of achieving the objectives of public health and security.

[42] In reality, the impossibility of possessing and cultivating cannabis plants at home without risking penal sanctions has the effect of steering Quebec consumers to the safe source of supply that is the SQDC. As a result, they receive quality-controlled products and advice from sales employees who have been trained on the risks associated with cannabis consumption … The fact that consumers buy from the SQDC also means that they are subject to a series of requirements, the most important of which seems to me to be the one setting a minimum age of 21 years for purchasing cannabis from the SQDC.

…

[44] …Even if it is accepted that the objective of protecting the health and security of the public could have been achieved by regulating home cannabis cultivation less strictly *and not only* by completely prohibiting it, this argument is far from being determinative in identifying the pith and substance of the impugned provisions. When two approaches are considered to be potentially effective, it falls to legislative bodies to choose the one that is most likely to further the intended objectives. Indeed, this Court has pointed out on several occasions that considerations relating to the efficacy or wisdom of the means chosen are not helpful at the characterization stage …

[58] The effects of the impugned provisions are clear, and I agree with the manner in which the Superior Court described them in its reasons:

> [TRANSLATION] . . . the practical consequence of applying ss. 5 and 10 is one, to prevent citizens from possessing and cultivating cannabis plants for personal purposes and two, to force consumers to purchase cannabis from the SQDC.
>
> The legal consequences of the provincial provisions are one, to prohibit the possession of cannabis plants and the personal cultivation of cannabis and two, to impose penal sanctions for any violation. They also result in penal consequences for acts that were formerly criminal under federal legislation, the CDSA. [paras. 49-50]

[59] I would add, however, that while the impugned provisions do bring otherwise decriminalized conduct into the sphere of penal law, the consequences flowing from a contravention are very different from those arising under the provisions of the *CDSA*. Persons who contravene ss. 5 and 10 of the provincial Act are liable to fines that could be said to be relatively modest, since they range from $250 to $750.

[60] Together, the legal and practical effects described above confirm the conclusion I reached earlier after analyzing the intrinsic and extrinsic evidence. The purpose of ss. 5 and 10 of the provincial Act is not to suppress possession and cultivation at home as such, but rather to ensure the effectiveness of the state monopoly in order to protect the health and security of the public from cannabis harm.

[65] In this case, the question before us at the classification stage is whether the impugned provisions fall within the federal criminal law power under s. 91(27) of the *Constitution Act, 1867* or within the powers conferred on the provinces over property and civil rights and matters of a merely local or private nature by s. 92(13) and (16), respectively. For the reasons that follow, I conclude that ss. 5 and 10 of the provincial Act are related to the provinces' powers and are therefore *intra vires* the Quebec legislature.

…

[67] In my view, even though ss. 5 and 10 seemingly have all the characteristics of criminal law, they should still not be classified under s. 91(27) of the *Constitution Act, 1867*. For the reasons that follow, I believe that the classification of the provisions challenged in this case cannot be determined simply on the basis of the correspondence between the three requirements set out in the *Margarine Reference* on the one hand and these provisions on the other.

[68] First, Parliament's decision to decriminalize conduct leaves the field clear for the provinces to enact their own prohibitions accompanied by penalties in relation to that conduct, as long as the prohibitions serve to enforce laws relating to matters within provincial jurisdiction (s. 92(15) of the *Constitution Act, 1867*). It follows that penal regulatory measures adopted by the provinces with regard to decriminalized activities are not necessarily attempts to legislate in criminal matters. This is why Major J. wrote in *Siemens v. Manitoba (Attorney General)*, 2003 SCC 3, [2003] 1 SCR 6, that "[t]he mere presence of a prohibition and a penalty does not invalidate an otherwise acceptable use of provincial legislative power" (para. 25).

[69] Second, it is recognized that the provinces have jurisdiction to make laws in relation to several matters that touch on purposes that otherwise constitute valid criminal law purposes. In the *Margarine Reference*, Rand J. referred to "[p]ublic peace, order, security, health, morality" as the ordinary though not exclusive "ends" served by criminal law (p. 50). Although public peace, order, security, health and morality are classic criminal law purposes, the provinces may consider such imperatives in designing their own regulatory schemes. As explained in *Siemens*, "[t]he fact that some of th[e] considerations [taken into account by the provincial legislature] have a moral aspect does not invalidate an otherwise legitimate provincial law" (para. 30). Here, the mere fact that the Quebec legislature considered the real risk that cannabis consumption poses for certain vulnerable populations when it enacted legislation is not in itself an indication of encroachment on the field of criminal law.

…

[71] In this case, the partial decriminalization by Parliament of the possession, sale and distribution of cannabis and the possession and cultivation of cannabis plants opened the door to provincial legislative action. In prohibiting the possession and cultivation at home of cannabis plants, the Quebec legislature exercised the power conferred on it by s. 92(15) to enact penal measures in order to enforce an otherwise valid law. I found above that ss. 5 and 10 of the provincial Act create a scheme that ensures the effectiveness of the state monopoly and that they in fact advance the objectives of public health and security. Characterized in this way, the impugned provisions are clearly related to the provincial heads of power in s. 92(13) and (16). This is because provincial legislative action in the field of public health is grounded primarily in broad and plenary jurisdiction over property and civil rights (s. 92(13)) and residual jurisdiction over matters of a merely local or private nature in the province (s. 92 (16)) …

[72] … In this case … the impugned provisions derive constitutional validity not only from s. 92 (16) but also from s. 92(13). The power conferred by s. 92(13) relates to private law, that is, the law pertaining to interpersonal relationships (H. Brun, G. Tremblay and E. Brouillet, *Droit constitutionnel* (6th ed. 2014), at p. 495, para. VI-2.109).

[73] With this clarified, I must now explain how the intent behind the Quebec legislature's action in the field of health in this case was to regulate, not to suppress a threat or an evil. This is important because health, as a matter not assigned in the *Constitution Act, 1867*, is an area of overlapping jurisdiction …. It is also well established that both levels of government have authority to make laws in relation to the production, distribution and sale of products that present a danger to public health, including tobacco and alcohol …

[75] In light of the foregoing, ss. 5 and 10 therefore fall not within the sphere of the criminal law but rather within the provinces' general power to regulate health.

[76] While it is true that prohibitions similar to those set out in ss. 5 and 10 have been enacted by Parliament in the past under the federal criminal law power, this can be explained by the double aspect doctrine. This doctrine reflects the contemporary view of federalism and constitutional interpretation, which recognizes that overlapping powers are unavoidable …. According to the double aspect doctrine, Parliament and the provincial legislatures may make laws in relation to matters that, by their very nature, have both a federal aspect and a provincial aspect …

[77] This appeal is a textbook case for the application of the double aspect doctrine. The regulation of the use of drugs, including cannabis, has both federal and provincial aspects, which makes it conceivable that laws enacted by both levels of government will apply concurrently. This matter has a double aspect, since it may be addressed from two different perspectives: (1) that of the criminal law (under s. 91(27)), by suppressing some "evil" or injurious or undesirable effect upon the public; and (2) that of health or trade (under s. 92(13) and (16)), by regulating, among other things, the conditions of production, distribution and sale of the substance. Sections 5 and 10 of the provincial Act regulate cannabis use from this second, normative perspective and are therefore within provincial jurisdiction.

Chapter 11: S 91(24), The Federal Power of "Indians and Lands Reserved for Indians"

By Robert Hamilton and Joshua Nichols

1 Introduction

Section 91(24) of the *Constitution Act, 1867* grants Parliament legislative authority in relation to "Indians, and Lands reserved for the Indians." Governments and courts have historically treated this power broadly and as capable of supporting a wide range of federal legislation directed at Indigenous peoples and their lands. The "core" of 91(24) has been interpreted as including matters related to Indigenous identity, law, and governance, among other things, that provincial laws cannot impair. The boundaries of this core, however, have shifted over time.

This chapter traces the doctrinal development of section 91(24) from Confederation to the present. It does so in two ways. First, it maps how courts have interpreted the provision over time, from early readings that emphasized plenary federal control over Indigenous peoples and lands to later decisions that begin to treat Indigenous peoples as constitutional actors entitled to self-government and emphasize the federal Crown's protective role. Second, it examines the internal structure of the provision, with attention to its two heads of power: one over "Indians," the other over "lands reserved for the Indians." The cases that follow explore many interpretive issues, such as whether the first head includes Inuit and Métis peoples, whether the second extends to Aboriginal title lands, how federal authority under s. 91(24) interacts with provincial law, and how the provision has been reshaped by doctrines that increasingly permit provincial involvement in matters touching on Indigenous rights and governance, including the evolving relationship between section 91(24) and section 35 of the *Constitution Act, 1982*.

The meaning, scope, and purpose of section 91(24) have long been contested. In *Daniels v. Canada*, 2016 SCC 12, the Supreme Court recognized two distinct purposes. First, the provision was enacted to carry forward the treaty-making authority, fiduciary obligations, and protective role that the imperial Crown had prior to Confederation. The federal government, that is, took on the responsibilities and obligations of the imperial Crown and s.91(24) incorporated the political relationships between the Crown and the Indigenous nations with whom the Crown was "connected", to use the term from the *Royal Proclamation, 1763.* The provision also had a contrary purpose, which was to serve the expansionist aims of the Dominion, to secure control over Indigenous peoples and Indigenous lands, and to "to civilize and assimilate" Indigenous peoples (*Daniels,* para 5). Section 91(24) thus acquired a dual character: it became both a tool for asserting control over Indigenous peoples and lands and the constitutional basis for the Crown's ongoing obligations to them. This duality, obligation and control, shaped the provision's early application as a means of centralizing authority and facilitating territorial consolidation.

Although section 91(24) confers exclusive federal jurisdiction "in relation to" Indigenous peoples, how that exclusivity operates where federal and provincial laws intersect has not always been clear and has shifted over time. As a matter of constitutional doctrine, the "core" of federal authority under any head of power is protected from provincial impairment (see Chapter 6, Part 6 on interjurisdictional immunity). In the case of s. 91(24), courts have historically understood that core to include matters closely tied to Indigeneity (relating to "Indianness" or "Indians *qua* Indians" as courts have framed it) such as Indian status under the *Indian Act*, family relationships or property on reserve, social and cultural identity, and the exercise of Aboriginal and treaty rights. It has also included reserve lands and Aboriginal title lands. Provincial laws that impair this core risk trenching on exclusive federal jurisdiction. Courts, however, increasingly permitted provincial laws to affect matters within this core, provided they are framed as laws of general application and do not create operational conflicts with federal law or protected rights. The trend has been toward the accommodation of provincial legislative authority rather than its exclusion.

This trend was slow, yet consistent. In Cardinal v. Attorney General of Alberta, 1973 CanLII 980 (SCC), [1974] SCR 695, the Court confirmed that provincial laws could apply on Indian reserve lands if they did not affect matters at the heart of Indigeneity. In doing so, the majority rejected the "enclave" theory that would have limited the reach of provincial law. *Dick v. La Reine*, 1985 CanLII 80 (SCC), [1985] 2 SCR 309 clarified how provincial laws may apply to Indigenous peoples under this framework. Until that point, many courts had treated section 88 of the *Indian Act, which incorporates provincial laws and makes them applicable to Indigenous peoples,* as the exclusive means for provincial laws to operate in Indigenous contexts. *Dick* rejected that assumption. The Court held that most provincial laws of general application apply of their own force unless they impair the protected core of s. 91(24). The decision marked a doctrinal shift toward a more integrated model of federalism, one that expanded provincial reach while leaving core protections intact.

Subsequent cases extended this approach. In *Kitkatla Band v. British Columbia (Minister of Small Business, Tourism and Culture), 2002 SCC 31,* the Court narrowed the "singling out" test, holding that provincial laws may apply to Indigenous peoples and lands even when they regulate culturally significant Indigenous practices, so long as the law is general in form and pursues a legitimate or ameliorative purpose. In *NIL/TU,O Child and Family Services Society v. B.C. Government and Service Employees' Union*, 2010 SCC 45, the Court upheld the application of provincial labour law to an Indigenous child and family services agency, emphasizing the organization's function over its cultural mandate. These cases reflect the Court's increasing embrace of cooperative federalism, even in areas closely tied to Indigenous identity and governance; in this regard, the interpretation of s.91(24) has followed broader trends in constitutional interpretation. The protective force of s. 91(24), once enforced through interjurisdictional immunity, was progressively displaced. The court gradually articulated a model where section 35, rather than s. 91(24), became the main constraint on provincial authority.

This was made explicit in *Tsilhqot'in Nation v. British Columbia*, 2014 SCC 44, and *Grassy Narrows First Nation v. Ontario (Natural Resources)*, 2014 SCC 48. In *Tsilhqot'in*, the Court confirmed that provincial laws may apply to Aboriginal title lands and held that Aboriginal rights, including title, no longer fall within the constitutionally protected core of s. 91(24). In *Grassy Narrows*, the Court confirmed that provinces may "take up" land under treaty and affect treaty rights, provided they meet their obligations to consult and justify infringements. These decisions framed Aboriginal and treaty rights under s.35 as limits on government action but removed at least some of the protections afforded those rights through the division of powers: rights were protected through s.35, not s.91(24).

Yet, despite the gradual increase in provincial power, the Court has also begun to revive the protective function of s. 91(24) as a source of Crown obligations. Beginning with *R. v. Sparrow, 1990 CanLII 104 (SCC), [1990] 1 SCR 1075*, the Court emphasized that the honour of the Crown imposes constitutional duties favouring Indigenous peoples, particularly in relation to their rights and governance. In *Delgamuukw v. British Columbia, 1997 CanLII 302 (SCC), [1997] 3 SCR 1010*, the Court confirmed that Aboriginal title lands fall under the "lands reserved" head and described s. 91(24) as the basis of Parliament's "primary constitutional responsibility" for securing the welfare of Indigenous peoples. In *Daniels*, it extended federal jurisdiction to Métis and non-status Indians, affirming a broad scope of the "Indians" head and extending federal responsibility. These cases interpret s. 91(24) not as primarily supporting federal control, but as linking historical obligations to contemporary legislative authority. In *Toronto (City) v. Ontario (Attorney General)*, 2021 SCC 34 the Court characterized the honour of the Crown as a *sui generis* unwritten constitutional principle and noted that while they did not decide whether it was capable of invalidating inconsistent legislation they noted that "if it is, it is unique in this regard" (at para 62).

This interpretation was given further support in *Reference re An Act respecting First Nations, Inuit and Métis children, youth and families*, 2024 SCC 5, where the Court upheld federal legislation enacted under s. 91(24) to support Indigenous law-making in the field of child and family services. The decision frames the head of power as relational, grounding federal authority in constitutional obligations and the broader project of legislative reconciliation. It affirms that Indigenous legal orders can be recognized through federal legislation and operate alongside existing Canadian law. It can also be paramount over inconsistent provincial law. Rather than treating Indigenous governance as a delegation of power, the Court acknowledged its constitutional status and affirmed Parliament's ability to support Indigenous self-determination through legislative incorporation consistent with section 35 and Canada's commitments under UNDRIP.

This chapter proceeds in four parts, each reflecting a distinctive doctrinal era and shift in constitutional logic.

Part I surveys the early jurisprudence, including *St. Catherine's Milling* and the *Reference re Eskimos*, to explore how s. 91(24) was conceived as a mechanism for centralized federal control. These cases grounded the federal head of power in assumptions of racial classification and administrative necessity, setting the stage for a century of paternalistic governance.

Part II turns to the rejection of the enclave theory and the emergence of interjurisdictional immunity as a tool for protecting a constitutionally insulated "core of Indianness." Cases such as *Cardinal*, *Natural Parents*, and *Dick* introduced and refined this doctrine. *Delgamuukw* showed how interjurisdictional immunity could protect Indigenous interests in holding that provinces did not have the constitutional authority to extinguish aboriginal rights or title. Yet the Court's later decisions in *Kitkatla*, *Paul*, and *NIL/TU,O* reflect the limits of this framework, as provincial authority was increasingly allowed to operate, even in matters deeply connected to Indigenous lands and culture.

Part III traces the decline of interjurisdictional immunity, the rise of cooperative federalism, and how this impacted the interpretation of s.91(24). In *Tsilhqot'in* and *Grassy Narrows*, the Court definitively rejected the use of interjurisdictional immunity to protect section 35 rights emphasizing that such infringements must instead be dealt with under the section 35 framework.

Part IV concludes with *Reference re An Act respecting First Nations, Inuit and Métis children, youth and families*, 2024 SCC 5, in which the Supreme Court affirmed Parliament's authority to give effect to Indigenous rights of self-government by incorporating Indigenous laws as federal law. The decision frames s. 91(24) as a site of relational obligation, capable of supporting Indigenous jurisdiction and advancing the project of legislative reconciliation in line with both section 35 and Canada's commitments under the UN Declaration. In this, it reconnects s. 91(24) with the obligations that the federal Crown inherited from the imperial Crown, viewing Indigenous–Crown relations as continuous and constitutionally entrenched rather than discretionary.

These materials and commentary invite reflection on how section 91(24) has evolved, from an instrument of centralized control to a potential foundation for a constitutional order that incorporates Indigenous peoples as distinct political communities and constitutional partners. They also prompt broader questions about the structure of Canadian federalism and the possibilities of Indigenous jurisdictional regeneration in a renewed constitutional framework. There are, of course, other ways one might organize these materials. Our hope here is that this structure provides the reader a way to see the development of the doctrine in its broad sweep, such that better sense might be made of some of the many matters addressed in the case law.

2 Founding interpretations and the architecture of control

This Part traces the origins of section 91(24) within the broader constitutional design of 1867 and examines how early courts understood federal jurisdiction over "Indians, and Lands reserved for the Indians."

The initial jurisprudence treated Indigenous peoples as subjects of a centralized administrative regime, empowering Parliament to exercise plenary authority over Indigenous persons and lands in the interest of national development and legal uniformity. In *St. Catherine's Milling and Lumber Company v. The Queen, 1888 CanLII 209 (UK JCPC),* the Judicial Committee of the Privy Council embedded this view by characterizing Aboriginal land interests as non-proprietary, confirming that the Crown acquired radical or underlying title upon asserting sovereignty, and interpreting s. 91(24) as authorizing federal oversight of "Indian affairs generally." In *Reference as to whether "Indians" includes in s. 91 (24) of the B.N.A. Act includes Eskimo in habitants of the Province of Quebec, 1939 CanLII 22 (SCC), [1939] SCR 104* the Court extended the personal reach of the "Indians" head to include Inuit peoples, reinforcing the idea that s. 91(24) was a vehicle for federal control, not constitutional recognition.

The cases in this Part illustrate how early interpretations of s. 91(24) rested on racialized and assimilationist assumptions that justified federal intervention while denying the existence of Indigenous law, governance, and autonomy. At the same time, they reveal how doctrine was used to exclude provinces from this domain, consolidating federal power without acknowledging federal obligation. This foundational period helped entrench the logic of central control that would continue to structure later developments in both federalism and Aboriginal law.

2.1 *Reference as to whether "Indians" includes in s. 91(24) of the B.N.A. Act includes Eskimo in habitants of the Province of Quebec*

***Reference as to whether "Indians" includes in s. 91(24) of the B.N.A. Act includes Eskimo in habitants of the Province of Quebec*, 1939 CanLII 22 (SCC), [1939] SCR 104**

The judgment of the Chief Justice and Davis and Hudson JJ. (Crocket J. concurring) was delivered by

The Chief Justice—

The reference with which we are concerned arises out of a controversy between the Dominion and the province of Quebec touching the question whether the Eskimo inhabitants of that province are "Indians" within the contemplation of head no. 24 of section 91 of the *British North America Act* which is in these words, "Indians and Lands Reserved for Indians"; and under the reference we are to pronounce upon that question.

Among the inhabitants of the three provinces, Nova Scotia, New Brunswick and Canada that, by the immediate operation of the British North America Act, became subject to the constitutional enactments of that statute there were few, if any, Eskimo. But the British North America Act contemplated the eventual admission into the Union of other parts of British North America as is explicitly declared in the preamble and for which provision is made by section 146 thereof.

Evidence as to subsequent official usage is adduced in a letter of 1824 from the Advocate General of Canada to the Assistant Civil Secretary on some matter of a criminal prosecution in which "Esquimaux Indians" are concerned; and in a report of 1869 by Judge Pinsent of the Court of Labrador to the Governor of Newfoundland in which this sentence occurs:

> In this number about 300 Indians and half-breeds of the Esquimaux and Mountaineer races are included.

Reports from missionaries and clergymen are significant. I refer particularly to two. There is a communication in 1821 by the Unitas Fratrum sent to Admiral Hamilton, Governor and Commander-in-Chief of Newfoundland and Labrador, on a visit by H.M.S. *Clinker* to their settlements. In this the Eskimo are mentioned as "Esquimaux Indians" and "Esquimaux Tribes" and the report concludes with a table giving the numbers of "Esquimaux Indians who have embraced the Christian religion" at the various stations.

In 1849, a report from the Bishop of Newfoundland was printed and published in London for the Society for the Propagation of the Gospel by the Bishop of London with a prefatory letter and seems to have been put into circulation through Rivingtons and other booksellers. Extracts from this report, which describes a visit to Labrador, are produced in the Quebec case, and … these passages exemplify in a remarkable way the use of the term Indian, as designating the Eskimo inhabitants of Labrador as well as other classes of Indians there.

Having regard to the well established usage of designating the Esquimaux of Labrador as Indians or Esquimaux Indians, evidenced by the Proclamations of the Governors of Newfoundland, and other official and unofficial documents, one finds little difficulty in appreciating the significance of the phraseology of the correspondence, in 1879, between Sir John A. Macdonald and Sir Hector Langevin on the subject of the Eskimo on the north shore of the St. Lawrence. The phrase "Esquimaux Indians" is employed in this correspondence as it had been employed for a hundred years in official and other documents to designate the Labrador Esquimaux. In 1882, three years after the date of this correspondence, the sale of intoxicating liquors to "Esquimaux Indians" was prohibited by an Act of the Legislature of Newfoundland.

Newfoundland, including the territory inhabited by these Labrador Eskimo was, as already pointed out, one of the British North American colonies the union of which with Canada was contemplated by the *British North America Act.* Thus it appears that, through all the territories of British North America in which there were Eskimo, the term "Indian" was employed by well established usage as including these as well as the other aborigines;' and I repeat the *British North America Act,* in so far as it deals with the subject of Indians, must, in my opinion, be taken to contemplate the Indians of British North America as a whole.

As against this evidence, the Dominion appeals to the Royal Proclamation of 1763 as furnishing the clue to the true meaning and application of the term "Indians" in section 91. The Indians therein referred to are said to be

> the same type of aborigines as are described in that Proclamation as "the several nations or tribes of Indian with whom We are connected and who live under Our protection."

First, it is said that the terms "nation" and "tribe" are not employed in relation to the Eskimo. That is a proposition which finds no support in the documents produced dealing with the Labrador Eskimo; and, as regards the Eskimo inhabiting the Hudson's Bay Company's territories, they, as already pointed out, are (in the tables in the margin of the Hudson's Bay Company's aboriginal map) included in the statement of "Indian tribes" in those territories and they are in the list of "Indian nations" once dwelling east of the Mississippi.

Then it is said they were never "connected" with the British Crown or "under the protection" of the Crown. I find some difficulty in affirming that the Eskimo and other Indians ruled by the Hudson's Bay Company, under either charter or licence from the Crown, were never under the protection of the Crown, and in understanding how, especially in view of the Proclamations cited, that can be affirmed of the Esquimaux of northeastern Labrador. I cannot give my adherence to the principle of interpretation of the *British North America Act* which, in face of the ample evidence of the broad denotation of the term "Indian" as employed to designate the aborigines of Labrador and the Hudson's Bay territories as evidenced by the documents referred to, would impose upon that term in the *British North America Act* a narrower interpretation by reference to the recitals of and the events leading up to the Proclamation of 1763. For analogous reasons I am unable to accept the list of Indian tribes attached to the instructions to Sir Guy Carleton as controlling the scope of the term "Indians" in the *British North America Act.* Here it may be observed parenthetically that if this list of tribes does not include Eskimo, as apparently it does not, neither does it appear to include the Montagnais Indians inhabiting the north shore of the St. Lawrence east of the Saguenay or the Blackfeet or the Cree or the Indians of the Pacific Coast.

Another argument advanced by counsel for the Crown is based upon the supposed contrast between the language used in Articles 31 and 32 of the Instructions to Sir Guy Carleton and that used in relation to the Eskimo in Article 37. It has already been pointed out that, in the official documents relating to the Labrador Eskimo, the words "savages" and "Indians" are used convertibly; that in General Murray's Report in 1762 the Montagnais, the Hurons and the Eskimo are all spoken of as "savages"; and in Article 31 of Sir Guy Carleton's Instructions, the term "savages" is applied to the Indians of Illinois, the straits of Detroit, Michilimackinac and Gaspe; and, in Article 32, the term "savages" is applied to the Indians affected by the Royal Proclamation in 1763 and within the scope of the plan of 1764. I can find nothing in the language of these instructions which militates against the inference which, as already explained, seems to me to arise from the documents mentioned above having relation to the Labrador Eskimo.

Nor do I think that the fact that British policy in relation to the Indians, as evidenced in the Instructions to Sir Guy Carleton and the Royal Proclamation of 1763, did not contemplate the Eskimo (along with many other tribes and nations of British North American aborigines) as within the scope of that policy is either conclusive or very useful in determining the question before us. For that purpose, for construing the term "Indians" in the British North America Act in order to ascertain the scope of the provisions of that Act defining the powers of the Parliament of Canada, the Report of the Select Committee of the House of Commons in 1857 and the documents relating to the Labrador Eskimo are, in my opinion, far more trustworthy guides.

Nor can I agree that the context (in head no. 24) has the effect of restricting the term "Indians." If "Indians" standing alone in its application to British North America denotes the aborigines, then the fact that there were aborigines for whom lands had not been reserved seems to afford no good reason for limiting the scope of the term "Indians" itself.

For these reasons I think the question referred to us should be answered in the affirmative.

2.2 *St. Catherine's Milling and Lumber Co v The Queen*

***St. Catherine's Milling and Lumber Co v The Queen*, 1888 CanLII 209 (UK JCPC)**

Had its Indian inhabitants been the owners in fee simple of the territory which they surrendered by the treaty of 1873, *Attorney-General of Ontario v. Mercer*, 8 App. Cas. 767, might have been an authority for holding that the Province of Ontario could derive no benefit from the cession, in respect that the land was not vested in the Crown at the time of the union. But that was not the character of the Indian interest. The Crown has all along had a present proprietary estate in the land, upon which the Indian title was a mere burden. The ceded territory was at the time of the union, land vested in the Crown, subject to "an interest other than that of the Province in the same," within the meaning of sec. 109; and must now belong to Ontario in terms of that clause, unless its rights have been taken away by some provision of the Act of 1867 other than those already noticed.

In the course of the argument the claim of the Dominion to the ceded territory was rested upon the provisions of sec. 91(24), which in express terms confer upon the Parliament of Canada power to make laws for "Indians, and lands reserved for the Indians." It was urged that the exclusive power of legislation and administration carried with it, by necessary implication, any patrimonial interest which the Crown might have had in the reserved lands. In reply to that reasoning, counsel for Ontario referred us to a series of provincial statutes prior in date to the Act of 1867, for the purpose of showing that the expression "Indian reserves" was used in legislative language to designate certain lands in which the Indians had, after the royal proclamation of 1763, acquired a special interest, by treaty or otherwise, and did not apply to land occupied by them in virtue of the proclamation. The argument might have deserved consideration if the expression had been adopted by the British Parliament in 1867, but it does not occur in sec. 91(24), and the words actually used are, according to their natural meaning, sufficient to include all lands reserved, upon any terms or conditions, for Indian occupation. It appears to be the plain policy of the Act that, in order to ensure uniformity of administration, all such lands, and Indian affairs generally, shall be under the legislative control of one central authority.

Their Lordships are, however, unable to assent to the argument for the Dominion founded on sec. 91(24). There can be no a priori probability that the British Legislature, in a branch of the statute which professes to deal only with the distribution of legislative power, intended to deprive the Province of rights which are expressly given them in that branch of it which relates to the distribution of revenues and assets. The fact that the power of legislating for Indians, and for lands which are reserved to their use, has been entrusted to the Parliament of the Dominion is not in the least degree inconsistent with the right of the Provinces to them as a source of revenue whenever the estate of the Crown is disencumbered of the Indian title.

By the treaty of 1873 the Indian inhabitants ceded and released the territory in dispute, in order that it might be opened up for settlement, immigration, and such other purposes as to Her Majesty might seem fit, "to the Government of the Dominion of Canada," for the Queen and Her successors for ever. It was argued that a cession in these terms was in effect a conveyance to the Dominion Government of the whole rights

of the Indians, with the consent of the Crown. That is not the natural import of the language of the treaty, which purports to be from beginning to end a transaction between the Indians and the Crown. Even if its language had been more favourable to the argument of the Dominion upon this point, it is abundantly clear that the commissioners who represented Her Majesty, whilst they had full authority to accept a surrender to the Crown, had neither authority nor power to take away from Ontario the interest which had been assigned to the province by the Imperial Statute of 1867.

These considerations appear to their Lordships to be sufficient for the disposal of this appeal. The treaty leaves the Indians no right whatever to the timber growing upon the lands which they gave up, which is now fully vested in the Crown, all revenues derivable from the sale of such portions of it as are situate within the boundaries of Ontario being the property of that Province. The fact, that it still possesses exclusive power to regulate the Indian's privilege of hunting and fishing, cannot confer upon the Dominion power to dispose, by issuing permits or otherwise, of that beneficial interest in the timber which has now passed to Ontario. Seeing that the benefit of the surrender accrues to her, Ontario must, of course, relieve the Crown, and the Dominion, of all obligations involving the payment of money which were undertaken by Her Majesty, and which are said to have been in part fulfilled by the Dominion Government. There may be other questions behind, with respect to the right to determine to what extent, and at what periods, the disputed territory, over which the Indians still exercise their avocations of hunting and fishing, is to be taken up for settlement or other purposes, but none of these questions are raised for decision in the present suit.

Their Lordships will therefore humbly advise Her Majesty that the judgment of the Supreme Court of Canada ought to be affirmed, and the appeal dismissed. It appears to them that there ought to be no costs of the appeal.

3 The core of Indianness and the rejection of the enclave theory

This Part examines how Canadian courts, beginning in the 1970s, developed a more functional framework for determining when provincial laws apply to Indigenous peoples and lands. Rejecting the enclave model, the courts adopted a purpose-and-effect approach that allowed provincial laws of general application to operate, so long as they did not impair the protected "core" of federal jurisdiction under section 91(24).

In *Cardinal v. Attorney General of Alberta*, 1973 CanLII 980 (SCC), [1974] SCR 695, the Court confirmed that provincial laws could apply on reserve if they did not affect matters at the heart of Indigeneity. In *Natural Parents v. Superintendent of Child Welfare et al., 1975 CanLII 143 (SCC), [1976] 2 SCR 751*, the Court suggested that aspects of Indigenous life, such as family relationships and cultural continuity, might be constitutionally insulated. Though the "core" was not yet explicitly defined, the case suggested limits on how deeply provincial laws could reach into matters central to Indigenous identity. Yet, in *Four B Manufacturing v. United Garment Workers, 1979 CanLII 11 (SCC), [1980] 1 SCR 1031* a provincial labour law was found to apply to a business operated on reserve. Together, these decisions suggested that while federal jurisdiction remained primary, the "core" of s.91(24) would be limited to matters pertaining to "Indians *qua* Indians" and the section would not operate as a strong jurisdictional shield.

That framework was clarified in *Dick v. La Reine*, 1985 CanLII 80 (SCC), [1985] 2 SCR 309, where the Court set out a two path analysis: provincial laws of general application apply of their own force (*ex proprio vigore)* unless they impair the protected core. Section 88 of the *Indian Act* plays a secondary role, reviving provincial laws only where they touch the core but do not conflict with federal legislation or treaty rights.

Any promise of constitutional protection, however, proved narrow. In *Kitkatla Band v. British Columbia (Minister of Small Business, Tourism and Culture), 2002 SCC 31*, the Court upheld a provincial heritage statute that affected Indigenous burial and spiritual sites. It found that even provisions directly regulating Indigenous cultural materials did not impair the core of s. 91(24) so long as they were cast as laws of general application and aimed at broader public purposes. The Court narrowed the doctrine of "singling out," holding that a law does not single out Indigenous peoples merely because it addresses their interests explicitly. What mattered was whether the law balanced those interests in a way the Court deemed proportionate. In effect, the decision shrank the scope of exclusive federal jurisdiction and confirmed that most provincial regulation touching on Indigenous matters could fall under a double aspect.

That trajectory continued in *NIL/TU,O Child and Family Services Society v. B.C. Government and Service Employees' Union*, 2010 SCC 45, which involved two Indigenous child welfare agencies whose employees sought to unionize. One agency served on-reserve communities, the other worked with urban Indigenous families. The issue was whether provincial or federal labour law applied. The Court unanimously found that jurisdiction over labour relations presumptively lies with the provinces. The court did not consider whether Indigenous communities might exercise jurisdiction over child welfare or labour relations, or why such authority might matter. As Abella J. put it for the majority: "There is no reason why, as a matter of principle, the jurisdiction of an entity's labour relations should be approached differently when s. 91(24) is at issue. The fundamental nature of the inquiry is - and should be - the same as for any other head of power" (*NIL/TU,O*, at para 20). The decision confirmed the Court's willingness to normalize provincial involvement even in areas deeply tied to Indigenous culture and governance.

The cases in this Part illustrate the ambivalence of this transitional period. Courts attempted to recognize a constitutional space for Indigenous cultural distinctiveness but did so within a legal structure that treated section 91(24) as discretionary and permitted significant provincial involvement. The "core of Indianness" doctrine insulated narrow aspects of identity but left Indigenous self-government and jurisdictional authority conceptually undeveloped.

3.1 *Cardinal v Attorney General of Alberta*

3.1.1 Majority

***Cardinal v Attorney General of Alberta*, 1973 CanLII 980 (SCC), [1974] SCR 695**

The judgment of Fauteux C.J. and of Abbott, Martland, Judson, Ritchie and Pigeon JJ. was delivered by

MARTLAND J.—

On December 8, 1970, the appellant, a treaty Indian, at his home on an Indian Reserve, in the Province of Alberta, sold a piece of moose meat to a non-Indian. He was charged with a breach of s. 37 of the Wildlife Act, R.S.A. 1970, c. 391, which provides:

37. No person shall traffic in any big game or any game bird except as is expressly permitted by this Act or by the regulations.

The trial judge found that the appellant had trafficked in big game within the meaning of this section. The appellant was acquitted on the ground that the *Wildlife Act* is *ultra vires* of the Alberta Legislature in its application to the appellant as an Indian on an Indian Reserve. A case was stated on this legal issue, which was considered by a judge of the Supreme Court of Alberta, who held that the decision was correct. An appeal was taken to the Appellate Division of the Supreme Court of Alberta, which allowed the appeal and overruled the judgment of the Court below. The present appeal is brought, with leave, to this Court.

Section 91(24) of the *British North America Act, 1867,* gives to the Parliament of Canada exclusive authority to legislate in respect of:

24. Indians, and Lands reserved for the Indians.

An agreement was made between the Government of Canada and the Government of Alberta, dated December 14, 1929, hereinafter referred to as "the Agreement", for the transfer by the former to the latter of the interest of the Crown in all Crown lands, mines and minerals within the Province of Alberta, and the provisions of the Alberta Act were modified as in the Agreement set out.

…

The submission of the appellant is that the Parliament of Canada has exclusive legislative authority to legislate to control the administration of Indian Reserves and that Provincial laws cannot apply on such a Reserve unless referentially introduced through Federal legislation.

…

As indicated earlier, the appellant starts from the proposition that, prior to the making of the Agreement, Indian Reserves were enclaves which were withdrawn from the application of Provincial legislation, save by way of reference by virtue of Federal legislation. On this premise it is contended that s. 12 should not be construed so as to make Provincial game legislation applicable within Indian Reserves.

I am not prepared to accept this initial premise. Section 91(24) of the *British North America Act, 1867,* gave exclusive legislative authority to the Canadian Parliament in respect of Indians and over lands reserved for the Indians. Section 92 gave to each Province, in such Province, exclusive legislative power over the subjects therein defined. It is well established, as illustrated in *Union Colliery Company v. Bryden*, that a Province cannot legislate in relation to a subject matter exclusively assigned to the Federal Parliament by s. 91. But it is also well established that Provincial legislation enacted under a heading of s. 92 does not necessarily become invalid because it affects something which is subject to Federal legislation.

…

A Provincial Legislature could not enact legislation in relation to Indians, or in relation to Indian Reserves, but this is far from saying that the effect of s. 91(24) of the *British North America Act, 1867,* was to create enclaves within a Province within the boundaries of which Provincial legislation could have no application. In my opinion, the test as to the application of Provincial legislation within a Reserve is the same as with respect to its application within the Province and that is that it must be within the authority of s. 92 and must not be in relation to a subject-matter assigned exclusively to the Canadian Parliament under s. 91. Two of those subjects are Indians and Indian Reserves, but if Provincial legislation within the limits of s. 92 is not construed as being legislation in relation to those classes of subjects (or any other subject under s. 91) it is applicable anywhere in the Province, including Indian Reserves, even though Indians or Indian Reserves might be affected by it. My point is that s. 91(24) enumerates classes of subjects over which the Federal Parliament has the exclusive power to legislate, but it does not purport to define areas within a Province within which the power of a Province to enact legislation, otherwise within its powers, is to be excluded.

3.1.2 Dissent

***Cardinal v Attorney General of Alberta*, 1973 CanLII 980 (SCC), [1974] SCR 695**

LASKIN J. (dissenting)—This appeal raises, for the first time in this Court, the question whether provincial game laws apply to a Treaty Indian on an Indian Reserve so as to make him liable to their penalties for engaging on the Reserve in activities prohibited by the provincial legislation. Although the issue in this case involves Alberta legislation, and hence requires a consideration of the Natural Resources Agreement between Canada and Alberta, as approved respectively by 1930 (Can.), c. 3 and 1930 (Alta.), c. 21 and confirmed by the British North America Act, 1930 (U.K.), c. 26, it eddies out to sister western Provinces which have like agreements with Canada and, in my opinion, is of equal import to Treaty Indians living on Reserves in Provinces east of Manitoba.

The Alberta Natural Resources Agreement is part of the constitutional order under which Canada and its respective Provinces exist, and the question arises whether and to what extent it affects and is affected by the distribution of legislative power under ss. 91 and 92 of the *British North America Act.* The issue in the present case engages, therefore, not only the relevant terms of the Alberta Natural Resources Agreement but also the exclusive federal power under s. 91(24) in relation to "Indians, and lands reserved for the Indians". In my opinion, there are parallel questions here of the extent, if any, to which provincial game laws may apply to Indians on a Reserve either in the face of the Alberta Natural Resources Agreement (or the Manitoba Natural Resources Agreement or the Saskatchewan Natural Resources Agreement, which have like provisions on the matter in issue) or in the face of unexercised federal legislative power under s. 91(24). In this latter respect, I repeat time-tested words from *Union Colliery Co. v. Bryden*, which express what is now a constitutional axiom:

The abstinence of the Dominion Parliament from legislating to the full limit of its powers, could not have the effect of transferring to any provincial legislature the legislative power which had been assigned to the Dominion by s. 91 of the Act of 1867.

…

I propose to deal first with the effect of s. 91(24) upon the reach of provincial game laws. Apart entirely from the exclusive power vested in the Parliament of Canada to legislate in relation to Indians, its exclusive power in relation also to Indian Reserves puts such tracts of land, albeit they are physically in a Province, beyond provincial competence to regulate their use or to control resources thereon. This is not because of any title vested in the Parliament of Canada or in the Crown in right of Canada, but because regardless of ultimate title, it is only Parliament that may legislate in relation to Reserves once they have been recognized or set aside as such.

…

Where land in a Province is, as in the present case, an admitted Indian Reserve, its administration and the law applicable thereto, so far at least as Indians thereon are concerned, depend on federal legislation. Indian Reserves are enclaves which, so long as they exist as Reserves, are withdrawn from provincial regulatory power. If provincial legislation is applicable at all, it is only by referential incorporation through adoption by the Parliament of Canada. This is seen in the *Indian Act,* with which I will deal later in these reasons.

The significance of the allocation of exclusive legislative power to Parliament in relation to Indian Reserves merits emphasis in terms of the kind of enclave that a Reserve is. It is a social and economic community unit, with its own political structure as well according to the prescriptions of the *Indian Act.* The underlying title (that is, upon surrender) may well be in the Province, but during its existence as such a Reserve, in my opinion, is no more subject to provincial legislation than is federal Crown property; and it is no more subject to provincial regulatory authority than is any other enterprise falling within exclusive federal competence.

I do not wish to overdraw analogies. It would strike me as quite strange, however, that when provincial competence is denied in relation to land held by the Crown in right of Canada (see *Spooner Oils Ltd. v. Turner Valley Gas Conservation Board*), or in relation to land upon which a federal service is operated (see *Reference re Saskatchewan Minimum Wage Act*), or in relation to land integral to the operation of a private enterprise that is within exclusive federal competence (see *Campbell-Bennett Ltd. v. Comstock Midwestern Ltd.*), there should be any doubt about the want of provincial competence in relation to lands that are within s. 91(24). There is, in my opinion, nothing in such cases as *C.P.R. v. Notre Dame de Bonsecours* that shake this view since that case dealt with the application of provincial legislation to a railway within federal jurisdiction in a matter not integral to its operation.

> Nor need I in this case consider whether, in the absence of federal legislation, provincial legislation touching the personal status and relationships of persons on a Reserve, as for example, respecting marriage or custody or adoption of children, is validly applicable; or, similarly, whether provincial commercial law would apply, absent federal legislation. The present case concerns the regulation and administration of the resources of land comprised in a Reserve, and I can conceive of nothing more integral to that land as such. If the federal power given by s. 91(24) does not preclude the application of such provincial legislation to Indian Reserves, the power will have lost the exclusiveness which is ordained by the Constitution.
>
> I think it is important here, no less than in relation to other heads of federal power, to scotch any notion that s. 91(24) exists by subtraction from some larger head of provincial authority, e.g. property and civil rights in the Province, and hence is of limited scope, leaving an area of competence to the Province where there has been no federal legislation. My brother Judson dealt with this very point in another context in Nykorak v. Attorney-General of Canada.
>
> Since federal power in relation to "lands reserved for the Indians" is independent and exclusive, its content must embrace administrative control and regulatory authority over Indian Reserves. Hence, not only provincial game laws but other provincial regulatory legislation can have no application, of its own force, to such Reserves, at least where it is sought to subject Indians thereon to such legislation.
>
> …
>
> I would allow the appeal and restore the order of Sinclair J. who answered favourably to the accused the point of law which was the subject of a stated case.

3.2 *Natural Parents v Superintendent of Child Welfare et al.*

The rejection of the enclave theory in *Cardinal* marked a doctrinal turning point. Rather than treating reserves as constitutionally immune spaces, the Court accepted that provincial laws of general application could apply on reserve, provided they did not impair federal jurisdiction. This reoriented the analysis from geography to function and signaled a willingness to accommodate provincial authority.

Yet *Cardinal* left unresolved a deeper question: could provincial laws be barred not only because they applied to reserve lands, but because they touched the heart of Indigenous identity? That possibility was considered in *Natural Parents*. The Court turned to the cultural and familial dimensions of Indigeneity. Although the decision did not articulate a "core of Indianness" doctrine in express terms, it suggested that certain aspects of Indigenous life might attract constitutional protection from provincial interference.

3.2.1 Majority

***Natural Parents v Superintendent of Child Welfare et al.*, 1975 CanLII 143 (SCC), [1976] 2 SCR 751**

> The judgment of Laskin C.J. and Judson, Spence and Dickson JJ. was delivered by
>
> THE CHIEF JUSTICE—
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> The question in this appeal concerns the validity of an adoption order made in respect of a male Indian child in favour of a non-Indian couple who had provided a foster home for the child. The child's natural parents, who were registered members of a band under the *Indian Act,* R.S.C. 1970, c. I-6, he too being entitled to registration thereunder, objected to the adoption, but it was held at first instance that their consent should be dispensed with. No objection is taken to the regularity of the adoption proceedings, but a constitutional question was raised in respect of the *Adoption Act,* R.S.B.C. 1960, c. 4 and, more particularly, in respect of that Act as amended by the addition thereto of s. 10(4a) by 1973 (B.C.) (2nd sess.), c. 95, s. 1. Connected to this question is the effect of s. 88 of the *Indian Act.*
>
> …
>
> I do not, however, agree with the British Columbia Court of Appeal that there was no referential incorporation in this case. Whether there was or was not depends not only on the meaning and scope of the phrase "all laws of general application from time to time in force in any province" in s. 88 of the *Indian Act,* but, as well and preliminarily, on the relation between so-called provincial laws of general application and federal legislative powers in relation to matters that, absent federal legislation, are alleged to be governed by those provincial laws in some of their aspects. In this connection I draw attention to the judgment of this Court in *The Queen v. George,* in which Martland J. pointed out at pp. 280-281 that the now s. 88 (it was then s. 87) in speaking of "laws of general application from time to time in force in any province" referred to "those rules of law in a province which are provincial in scope", including laws of England adopted as part of provincial law.
>
> There was no challenge in this Court to the general and long-established proposition found in *Union Colliery Co. of British Columbia Ltd. v. Bryden,* at p. 588 that "the abstinence of the Dominion Parliament from legislating to the full limit of its powers could not have the effect of transferring to any provincial legislature the legislative power which had been assigned to the Dominion by s. 91 of the Act of 1867". It cannot be said therefore that because a provincial statute is general in its operation, in the sense that its terms are not expressly restricted to matters within provincial competence, it may embrace matters within exclusive federal competence.
>
> …
>
> *Ex facie,* and apart from the amendment of 1973 introducing s. 10(4a), the *Adoption Act* did not purport to extend to areas of exclusive federal competence, *e.g.* Indians. It could only embrace them if the operation of the Act did not deal with what was integral to that head of federal legislative power, there being no express federal legislation respecting adoption of Indians. It appears to me to be unquestionable that for the provincial *Adoption Act* to apply to the adoption of Indian children of registered Indians, who could be compelled thereunder to surrender them to adopting non-Indian parents, would be to touch "Indianness", to strike at a relationship integral to a matter outside of provincial competence. This is entirely apart from the question whether, if referentially incorporated, the *Adoption Act* could have any force in the face of various provisions of the *Indian Act,* securing certain benefits for Indians.
>
> Counsel for the respondents cited a number of cases holding Indians to be subject to provincial legislation. Among them was *Rex v. Hill* and *Rex v. Martin*. These, and other like cases, are simply illustrative of the amenability of Indians off their reservations to provincial regulatory legislation, legislation which, like traffic legislation, does not touch their "Indianness". Such provincial legislation is of a different class than adoption legislation which would, if applicable as provincial legislation *simpliciter*, constitute a serious intrusion into the Indian family relationship. It is difficult to conceive what would be left of exclusive federal power in relation to Indians if such provincial legislation was held to apply to Indians. Certainly, if it was applicable because of its so-called general application, it would be equally applicable by expressly embracing Indians. Exclusive federal authority would then be limited to a registration system and to regulation of life on a reserve.

3.2.2 Minority (concurring)

***Natural Parents v Superintendent of Child Welfare et al.*, 1975 CanLII 143 (SCC), [1976] 2 SCR 751**

> MARTLAND J.—
>
> …

It is contended, however, that, notwithstanding the absence of federal legislation on the subject, to the extent that the *Adoption Act* might purport to govern the adoption of Indian children it would constitute an encroachment upon the exclusive federal jurisdiction, under s. 91(24) of the *British North America Act,* to legislate on the subject of "Indians, and Lands reserved for the Indians."

Subsection (24) of s. 91 is unlike the other subsections of that section (other than subs. 25) in that it confers legislative jurisdiction on the Parliament of Canada in relation to a specified group of people. The ambit of that authority is uncertain, in that it has not been positively defined by the Courts. Within certain limits this includes the power to define Indian status, and this power has been exercised by Parliament by the enactment of the *Indian Act.* In my opinion it does not mean that Parliament alone can enact legislation which may affect Indians. It does not mean that Indians are totally exempted from the application of provincial laws. A number of cases dealing with the application of provincial laws to Indians were mentioned in the judgment of this Court in *Cardinal v. Attorney General of Alberta.* The extent to which provincial legislation could apply to Indians was stated to be that the legislation must be within the authority of s. 92 of the *British North America Act* and that the legislation must not be enacted in relation to Indians. Such legislation, generally applicable throughout the province, could affect Indians.

In the present case we have provincial social legislation, applicable throughout British Columbia, dealing with the subject of the adoption of children. Is the scope of s. 91(24) such that it makes it impossible for an Indian child to be adopted under the provisions of the *Adoption Act*? In support of the proposition that subs. (24) has that effect it is argued that the *Adoption Act* can compel Indian parents to surrender their child to non-Indian parents. But, under the provisions of the *Adoption Act,* no Indian child could be adopted by anyone without the parents' consent unless the child had been made a permanent ward of the Superintendent of Child Welfare, or of a children's aid society, or unless consent of the parents is dispensed with because the child has been abandoned or deserted, or because of failure to contribute to the child's support, or because the parent is a person whose consent, in the opinion of the Court, in all the circumstances of the case, ought to be dispensed with.

These exceptions to the general rule requiring the consent of a child's natural parents to an adoption are all cases in which the child is in need of protection.

The *Protection of Children Act,* R.S.B.C. 1960, c. 303, as amended, makes provision for the committal of children in need of protection to the custody of the Superintendent of Child Welfare or to a children's aid society, and for the placement of such children in a foster home. The Indian child in the present case was a ward of the Superintendent of Child Welfare and had been placed in the custody of the petitioners on an official foster home basis.

Both the *Protection of Children Act* and the *Adoption Act* are designed for the protection, custody and care of children in the Province of British Columbia. In my opinion the power given to Parliament, under s. 91(24), to legislate on the subject matter of "Indians, and Lands reserved for the Indians" does not make such legislation inapplicable to Indian children, in the absence of federal legislation dealing with the matter, merely because the designated authorities under those statutes might consider it appropriate, in certain circumstances, in the child's interest, to entrust custody of such child to a foster home, or to parents by adoption, who were not themselves Indians. I do not interpret s. 91(24) as manifesting an intention to maintain a segregation of Indians from the rest of the community in matters of this kind, and, accordingly, it is my view that the application of the *Adoption Act* to Indian children will only be prevented if Parliament, in the exercise of its powers under that subsection, has legislated in a manner which would preclude its application.

3.3 *Four B Manufacturing v United Garment Workers*

While *Natural Parents* suggested that section 91(24) might shield certain familial and cultural relationships from provincial intrusion, it left open how such protection would operate alongside broader provincial regulatory regimes. The Court offered no doctrinal test for identifying the limits of provincial authority, and the judgments made only passing reference to section 88 of the *Indian Act*, leaving its function largely unsettled. Nor did the Court address how its reasoning might apply beyond child welfare, to economic activity, governance, or other dimensions of Indigenous life.

Shortly afterward, in *Four B*, the Court signaled a flexible approach. The case involved union certification for a business operating on reserve. Rather than invoking interjurisdictional immunity or identity-based concerns, the Court applied the double aspect doctrine (see Chapter 6, Part 3) to uphold provincial labour law. It treated the enterprise as functionally indistinct from other provincially regulated employers and made no reference to the cultural or constitutional character of the nation.

The juxtaposition of these cases reveals a tension in the doctrine. *Natural Parents* gestured toward a protective reading of s. 91(24), grounded in Indigenous identity and cultural continuity. *Four B*, by contrast, reflected a federalism logic geared toward administrative coherence. This unresolved tension, between constitutional protection rooted in identity and a model of jurisdiction based on regulatory functionality, would continue to shape and constrain the doctrine in the decades that followed.

3.3.1 Majority

***Four B Manufacturing v United Garment Workers*, 1979 CanLII 11 (SCC), [1980] 1 SCR 1031**

The judgment of Martland, Pigeon, Dickson, Beetz, Estey, Pratte and McIntyre JJ. was delivered by

BEETZ J.—

This is an appeal from an order of the Ontario Court of Appeal dismissing an appeal by the Appellant, (*Four B*) from an order of the Divisional Court for the Province of Ontario dismissing an application for judicial review of two decisions of the Ontario Labour Relations Board, (the *Board*). The application for judicial review sought *inter alia* (1) an order quashing an order of the Board certifying the United Garment Workers of America as the bargaining agent for the employees of *Four B* at its plant on the Tyendinaga Indian Reserve No. 38; (2) an order quashing another decision of the *Board* directing *Four B* to reinstate four of its employees; and (3) a declaration that the *Board* was without jurisdiction to make the said decisions or to apply the provisions of *The Labour Relations Act,* R.S.O. 1970, c. 232, to the activities of *Four B* or its employees on the Reserve.

The facts do not appear to be in dispute.

Four B was incorporated pursuant to the laws of Ontario to carry on business as a manufacturer of shoes on the Tyendinaga Indian Reserve No. 38, a reserve set aside for the Band of Indians known as the Mohawks of the Bay of Quinte. All of the issued shares of *Four B* are held by four brothers named Brant, all of whom are members of the Band.

The business or operation of *Four B* consists entirely in the sewing of uppers on contract for the Bata North Star Jogger, a shoe manufactured by the Bata Shoe Company.

Four B is in no way owned or controlled by the Band Council which will have no share in its profits. It had first been contemplated that the plant be owned and operated by the Band, but the majority of the Band voted against this project, apparently for some fiscal reasons; it was at that point that the Brant brothers decided to own and operate the plant privately, originally under the corporate name of Tyendinaga Mohawk

Limited. However the Band Council took the view that the use of this name would not be in the best interest of the Reserve and it was changed for the present one.

Four B occupies premises upon the Reserve pursuant to a three year renewable permit issued by Her Majesty the Queen in right of Canada with the approval of the Band Council. The permit, which creates no tenancy and can be cancelled at the discretion of the Minister of Indian Affairs and Northern Development, provides in part as follows:

> That the Permittee will give preference in employment to local people for work in the permit area, however, if there are not sufficient applications from local area, the Permittee shall have the right to request assistance from Canada Manpower to fill the staff requirements from the surrounding districts.

Four B has received from the Government of Canada a total of $284,000 of which $51,000 represents a grant and the remainder borrowed funds. These monies were advanced pursuant to programs of the Department of Indian Affairs and Northern Development, designed to promote co-operation between Indian and non-Indian businessmen in order to assist Indians in developing and expanding viable businesses and to create jobs for Indians, on and off reserves.

At the relevant time, *Four B* employed 68 persons, of whom 48 were Band members, 10 were former Band members and 10 were non-Indians.

The issue is whether *The Labour Relations Act* applies to the activities of *Four B* and its employees and the *Board* had jurisdiction to make the two decisions under review.

In my view the established principles relevant to this issue can be summarized very briefly. With respect to labour relations, exclusive provincial legislative competence is the rule, exclusive federal competence is the exception. The exception comprises, in the main, labour relations in undertakings, services and businesses which, having regard to the functional test of the nature of their operations and their normal activities, can be characterized as federal undertakings, services or businesses:

…

There is nothing about the business or operation of *Four B* which might allow it to be considered as a federal business: the sewing of uppers on sport shoes is an ordinary industrial activity which clearly comes under provincial legislative authority for the purposes of labour relations. Neither the ownership of the business by Indian shareholders, nor the employment by that business of a majority of Indian employees, nor the carrying on of that business on an Indian reserve under a federal permit, nor the federal loan and subsidies, taken separately or together, can have any effect on the operational nature of that business. By the traditional and functional test, therefore, *The Labour Relations Act* applies to the facts of this case, and the *Board* has jurisdiction.

What is submitted on behalf of appellant is that the matter to be regulated in the case at bar is the civil rights of Indians on a reserve; that this matter falls under the exclusive legislative authority of Parliament to make laws relating to "Indians and Lands reserved for the Indians" pursuant to s. 91.24 of the *British North America Act, 1867;* that provincial law is inapplicable to this matter even in the absence of relevant federal law; and, alternatively, that the field is occupied by the paramount provisions of the *Canada Labour Code,* R.S.C. 1970, c. L-1. It is argued that the functional test is inappropriate and ought to be disregarded where legislative competence is conferred not in terms relating to physical objects, things or systems, but to persons or groups of persons such as Indians or aliens.

I cannot agree with these submissions.

The functional test is a particular method of applying a more general rule namely, that exclusive federal jurisdiction over labour relations arises only if it can be shown that such jurisdiction forms an integral part of primary federal jurisdiction over some other federal object: the *Stevedoring* case.

…

I think it is an oversimplification to say that the matter which falls to be regulated in the case at bar is the civil rights of Indians. The matter is broader and more complex: it involves the rights of Indians and non-Indians to associate with one another for labour relations purposes, purposes which are not related to "Indianness"; it involves their relationship with the United Garment Workers of America or some other trade union about which there is nothing inherently Indian; it finally involves their collective bargaining with an employer who happens to be an Ontario corporation, privately owned by Indians, but about which there is nothing specifically Indian either, the operation of which the Band has expressly refused to assume and from which it has elected to withdraw its name.

But even if the situation is considered from the sole point of view of Indian employees and as if the employer were an Indian, neither Indian status is at stake nor rights so closely connected with Indian status that they should be regarded as necessary incidents of status such for instance as registrability, membership in a band, the right to participate in the election of Chiefs and Band Councils, reserve privileges, etc. For this reason, I come to the conclusion that the power to regulate the labour relations in issue does not form an integral part of primary federal jurisdiction over Indians or Lands reserved for the Indians. Whether Parliament could regulate them in the exercise of its ancillary powers is a question we do not have to resolve any more than it is desirable to determine in the abstract the ultimate reach of potential federal paramountcy.

The conferring upon Parliament of exclusive legislative competence to make laws relating to certain classes of persons does not mean that the totality of these persons' rights and duties comes under primary federal competence to the exclusion of provincial laws of general application. In *Union Colliery Company of British Columbia v. Bryden,* the *British Columbia Coal Mines Regulations Act, 1890* provided that "no boy under the age of twelve years, and no woman and girl of any age shall be employed in or allowed to be for the purpose of employment in any mine to which the *Act* applies, below ground". The provision was amended by the insertion of the words "and no Chinaman" after the words "and no woman and girl of any age". The amendment was held to be *ultra vires* of the Province as relating to naturalization and aliens. But it was never suggested that the general prohibition to employ boys under the age of twelve years and women and girls of any age in any mine was not applicable to naturalized persons and aliens including persons of Chinese extraction.

A similar reasoning must prevail with respect to the application of provincial laws to Indians, as long as such laws do not single out Indians nor purport to regulate them *qua* Indians, and as long also as they are not superseded by valid federal law.

…

Counsel for appellant has also stressed that the civil rights in issue are not only the civil rights of Indians, but Indian civil rights exercised on a reserve. The import of this submission, as I understand it, is that the exclusive character of federal jurisdiction is somehow reinforced because it is derived from two related heads of federal authority instead of one, federal authority over Indians and over Lands reserved for the Indians.

In my view, this submission is an attempt to revive the enclave theory of the reserves in a modified version: provincial laws would not apply to Indians on reserves although they might apply to others. The enclave theory has been rejected by this Court in *Cardinal v. Attorney General for Alberta* and I see no reason to revive it even in a limited form. Section 91.24 of the *British North America Act, 1867* assigns jurisdiction to

Parliament over two distinct subject matters, Indians *and* Lands reserved for the Indians, not Indians *on* Lands reserved for the Indians. The power of Parliament to make laws in relation to Indians is the same whether Indians are on a reserve or off a reserve. It is not reinforced because it is exercised over Indians on a reserve any more than it is weakened because it is exercised over Indians off a reserve.

…

Under functional test *Four B* is not a federal work, undertaking or business, within the meaning of the *Canada Labour Code.* But should we have to solve the problem on the basis suggested by appellant, that is on the basis that Indians are "federal persons", I would adopt the following reason of Morden J. in the Divisional Court:

> Section 108 of the *Code,* by its language, is directed at federal activities, operations or functions and not at the position of individuals, or a class of individuals, who might be considered to be "federal" persons or at their relationships. The latter is not the subject matter of the section, (Contrast the method of defining the application of the *Public Service Staff Relations Act,* R.S.C. 1970, c. P-35, which is applicable to "all portions of the Public Service" (s. 3), and, also, the provisions of s. 109 of the *Code* applicable "in respect of any corporation established to perform any function or duty on behalf of the Government of Canada and in respect of employees of any such corporation").

The appeal should be dismissed with costs to the respondents, but there should be no order as to costs to or against the intervenors.

3.3.2 Dissent

***Four B Manufacturing v United Garment Workers*, 1979 CanLII 11 (SCC), [1980] 1 SCR 1031**

THE CHIEF JUSTICE (dissenting)—The appellant is an incorporated Ontario company which operates a factory on a designated portion of an Indian reserve, pursuant to a permit for use and occupation of the area given by the Minister of Indian Affairs and Northern Development under s. 28(2) of the Indian Act, R.S.C. 1970, c. I-6. The Reserve is one set apart for the use and benefit of the Mohawks of the Bay of Quinte Band of Indians.

…

In my opinion, if the Band Council or any Indians, members of the Band, were to carry on a business on the Reserve, which would have to be with the consent of the Minister and the Band Council, as provided by ss. 18 and 28 of the *Indian Act,* and were to employ only Indians on the Reserve as employees, it would be beyond question that provincial labour relations legislation could not constitutionally be applicable to the employees and their employer. It would not matter in such a case if there was no federal legislation which could be invoked by the employees to form a trade union to seek certification on their behalf. The reason for this conclusion is simply that the activity involves only Indians on a reserve, as employees and employer, and is conducted by them on the Reserve. Nothing either in *Cardinal v. Attorney General of Alberta* or in *Natural Parents et al. v. Superintendent of Child Welfare* militates against this conclusion.

…

This brings me to consider whether the incorporation of the appellant company under Ontario legislation changes the situation. In my opinion, the incorporation does no more than give the Brant brothers, who are the only shareholders of the appellant company, a convenient method of carrying on a business which is a business operated by Indians for the benefit of Indians: *cf. Re Kinookimaw Beach Association and Board of Revenue Commissioners.* Of course, the company, *qua* company in respect of its corporate structure, is governed by Ontario legislation, but that does not mean that its business is also subject to provincial legislation as, for example, in respect of labour relations.

…

The proper inquiry in this case is not whether the Ontario *Labour Relations Act* applies to the enterprise of the appellant company and to the employees thereof, but rather whether Part V of the *Canada Labour Code* applies to them. In my opinion, however general be the application of the Ontario *Labour Relations Act* to businesses in the Province and to the employees thereof, it must give way in respect of businesses which are within federal regulatory authority and to federal legislation such as Part V of the *Canada Labour Code* embracing such businesses.

…

The combination of circumstances which govern the operation of the factory in the present case bring it, in my opinion, squarely within ss. 2 and 108(1) of the *Canada Labour Code.* There is the fact that the factory is operated by Indians and for Indians; it is operated on a reserve in a building leased from the Band Council; it is operated under a revocable licence issued by the responsible federal Minister with the approval of the Band Council and under terms set out in the licence or permit; it is financed by federal funds provided under the special Indian Economic Development Fund pursuant to four agreements of September 9, 1974, October 11, 1974, and two on July 8, 1976 for the stated purpose "of employing members of the Band in all positions possible and...for the benefit of the Band as a whole to improve their economic position and provide continuing employment for Band members"; and it is operated under the detailed provisions in the *Indian Act* and under the approvals therein prescribed.

These circumstances bring the appellant enterprise squarely within the opening words of s. 2 aforesaid, as being "an undertaking or business that is within the legislative authority of the Parliament of Canada". Consequently, in the words of s. 2(*i*), it is an undertaking or business outside the exclusive legislative authority of provincial legislatures. Section 108 applies to the employees of the appellant company since they are employed in connection with the operation of the appellant company's factory on the Reserve. It follows, therefore, that certification to enable a trade union to represent the employees of the appellant company must be sought under the *Canada Labour Code.*

I would, accordingly, allow the appeal, set aside the judgments below and quash the certification order made by the Ontario Labour Relations Board. The appellant company has not asked for costs and there will, therefore, be no order as to costs as between the parties and there will be no costs to or against any of the interveners.

3.4 *Dick v La Reine*

The Court's reasoning *in Four B* left open how courts should address provincial laws that intersect more directly with Indigenous practices, governance, or cultural expression. The method for identifying constitutional limits on provincial authority in such cases remained unclear.

The tension between the reach of provincial regulation and the protection of Indigenous identity was at issue in *Dick*. Unlike *Four B*, which concerned labour law applied to a business on reserve, *Dick* involved a provincial hunting regulation that directly affected Indigenous cultural practices. The Court responded by refining the analytical structure. It articulated the idea of a constitutionally protected "core of Indianness" and introduced a two-step inquiry: first, whether the provincial law impairs the core of federal jurisdiction under section 91(24); and second whether it could nonetheless apply through section 88 of the *Indian Act*, so long as it did not conflict with federal statutes or treaty rights. This framework formalized a doctrinal space for provincial involvement while offering limited protection for aspects of Indigenous life most closely tied to identity and culture.

***Dick v La Reine*, 1985 CanLII 80 (SCC), [1985] 2 SCR 309**

The judgment of the Court was delivered by

1. BEETZ J. —

I The facts

2. The facts are not in dispute. They are summarized by Lambert J.A., dissenting in the British Columbia Court of Appeal whose reasons for judgment are reported: *R v. Dick* (1982), 1982 CanLII 496 (BC CA), 3 C.C.C. (3d) 481. At pages 484-85, Lambert J.A. related the facts:

> Arthur Dick is a member of the Alkali Lake Band of the Shuswap people. He lives on the Alkali Lake Reserve in the Chilcotin District of the County of Cariboo. He is a non-treaty Indian.
>
> The Alkali Lake Band is comprised of about 10 families, or approximately 350 people, all told. They subsist in large measure by foraging. They catch fish for food and they kill deer and moose for food and other uses.
>
> The Shuswap word for May is "Pellcwewlemten". It means "time to go fishing". In response to this imperative Arthur Dick and two other band members, with two members of the Canoe Creek Band, set off on May 4, 1980, for Gustafsen Creek, where they intended to catch fish. On the way they passed Holdon Lake. There Arthur Dick killed a deer with a rifle. His purpose was to provide food for the members of the foraging party and for other band members. The carcass, cut up in pieces, was taken on to Gustafsen Creek where a provincial conservation officer and four R.C.M.P. constables found the five Indians in possession of dip nets, a number of rainbow trout, and the deer meat.

…

6. Appellant and respondent appear to agree in substance as to the issues raised by this appeal, save one. But they express them differently and I find it preferable to rephrase them as follows:

> 1. Is the practice of year-round foraging for food so central to the Indian way of life of the Alkali Lake Shuswap that it cannot be restricted by ss. 3(1) and 8(1) of the *Wildlife Act*, R.S.B.C. 1979, c. 433, without impairment of their status and capacity as Indians, and invasion of the federal field under s. 91 (24) of the Constitution Act, 1867*?*
>
> 2. If the answer to the first question is in the affirmative and, consequently, the *Wildlife Act* cannot apply *ex proprio vigore* to the appellant, then is this Act a law of general application referentially incorporated into federal law by s. 88 of the *Indian Act*, R.S.C. 1970, c. I-6
>
> 3. Does this appeal raise a question of law alone for the purpose of s. 114 of the *Offence Act*, R.S.B.C. 1979, c. 305?

7. The third issue was raised only by respondent.

8. In addition, a constitutional question was stated by the Chief Justice:

> Are ss. 3(1)(*c*) and 8(1) of the *Wildlife Act*, R.S.B.C. 1979, c. 433, constitutionally inapplicable in the circumstances of this case on the ground that the restriction imposed by such sections affects the appellant *qua* Indian and therefore may only be enacted by the Parliament of Canada pursuant to s. 91(24) of the *Constitution Act, 1867?*

…

III The first issue

12. Appellant's main submission which was apparently presented in the Court of Appeal as an alternative argument, is that the *Wildlife Act* strikes at the core of Indianness, that the question stated in the first issue should accordingly be answered in the affirmative and that the *Wildlife Act*, while valid legislation, should be read down so as not to apply to appellant in the circumstances of the case at bar.

…

21. In *Cardinal v. Attorney General of Alberta*, 1973 CanLII 980 (SCC), [1974] SCR 695 at p. 706, it had already been held, apart from any evidence, that provincial game laws do not relate to Indians *qua* Indians. In the case at bar, there was considerable evidence capable of supporting the conclusions of Lambert J.A. to the effect that the *Wildlife Act* did impair the Indianness of the Alkali Lake Band, as well as the opposite conclusions of the courts below.

IV The second issue

25. In holding that the tests adopted by this Court in *Kruger* to determine whether a law is one of general application are the same tests which should be applied to determine whether the application of the *Wildlife Act* to appellant would regulate him in his Indianness, Lambert J.A. fell into error, in my respectful opinion. And this error resulted from a misapprehension of what was decided in Kruger as to the nature of a law of general application.

…

31. With all due deference, it seems to me that the correct view is the reverse one and that what Dickson J., as he then was, referred to in *Kruger* when he mentioned laws which had crossed the line of general application were laws which, either overtly or colourably, single out Indians for special treatment and impair their status as Indians. Effect and intent are both relevant. Effect can evidence intent. But in order to determine whether a law is not one of general application, the intent, purpose or policy of the legislation can certainly not be ignored: they form an essential ingredient of a law which discriminates between various classes of persons, as opposed to a law of general application.

…

35. It has already been held in *Kruger* that on its face, and in form, the *Wildlife Act* is a law of general application. In the previous chapter, I have assumed that its application to appellant would have the effect of regulating the latter *qua* Indian. However, it has not been demonstrated, in my view, that this particular impact has been intended by the provincial legislator. While it is assumed that the *Wildlife Act* impairs the status or capacity of appellant, it has not been established that the legislative policy of the *Wildlife Act* singles out Indians for special treatment or discriminates against them in any way.

36. I accordingly conclude that the *Wildlife Act* is a law of general application within the meaning of s. 88 of the *Indian Act*.

37. It remains to decide whether the Wildlife Act has been referentially incorporated to federal laws by s. 88 of the Indian Act.

…

45. I accordingly conclude that, in view of s. 88 of the *Indian Act*, the *Wildlife Act* applies to appellant even if, as I have assumed, it has the effect of regulating him *qua* Indian.

…

VI The constitutional question

54. I would answer the constitutional question as follows:

Sections 3(1) and 8(1) of the *Wildlife Act*, R.S.B.C. 1979, c. 433, being laws of general application in the Province of British Columbia, are applicable to the appellant either by referential incorporation under s. 88 of the *Indian Act*, R.S.C. 1970, c. I-6, or of their own force.

3.5 *Delgamuukw v British Columbia*

Dick brought clarity to the interaction between provincial laws and Indigenous peoples. It did not contemplate Indigenous law-making authority or a federal obligation to protect Indigenous governance or culture. A decade later, in *Delgamuukw v British Columbia, 1997 CanLII 302 (SCC), [1997] 3 SCR 1010*, the Court deepened and expanded the meaning of the "core." It held that Aboriginal rights, including those recognized and affirmed by s. 35(1), fall within the core of s. 91(24) and lie beyond the legislative competence of the provinces. That core, the Court explained, encompasses both land-based rights and practices not tied to territory, grounded respectively in the "lands reserved" and "Indians" heads of power. Aboriginal title fell squarely within federal jurisdiction and only the federal government could have extinguished it.

Crucially, the Court linked federal jurisdiction to the protection of Indigenous land and identity, not merely their regulation. It warned that separating federal authority over Indigenous peoples from authority over their lands would undermine the federal government's "primary constitutional responsibility for securing the welfare of Canada's aboriginal peoples" (para 176). This marked a subtle but important shift: s. 91(24) was no longer framed only as a basis for administrative authority, but as the constitutional mechanism through which the Crown was obliged to protect core Indigenous interests. Though the decision did not resolve the question of Indigenous self-government, it foreshadowed the re-emergence of the "obligation" conception of federal jurisdiction that would be considered more fully in later jurisprudence.

3.5.1 Majority

***Delgamuukw v British Columbia*, 1997 CanLII 302 (SCC), [1997] 3 SCR 1010**

The judgment of Lamer C.J. and Cory and Major JJ. was delivered by

THE CHIEF JUSTICE—

I. Introduction

1 This appeal is the latest in a series of cases in which it has fallen to this Court to interpret and apply the guarantee of existing aboriginal rights found in s. 35(1) of the *Constitution Act, 1982*. Although that line of decisions, commencing with *R. v. Sparrow*, 1990 CanLII 104 (SCC), [1990] 1 SCR 1075, proceeding through the *Van der Peet* trilogy (*R. v. Van der Peet*, 1996 CanLII 216 (SCC), [1996] 2 SCR 507, *R. v. N.T.C. Smokehouse Ltd.*, 1996 CanLII 159 (SCC), [1996] 2 SCR 672, and *R. v. Gladstone*, 1996 CanLII 160 (SCC), [1996] 2 SCR 723), and ending in *R. v. Pamajewon*, 1996 CanLII 161 (SCC), [1996] 2 SCR 821, *R. v. Adams*, 1996 CanLII 169 (SCC), [1996] 3 SCR 101, and *R. v. Côté*, 1996 CanLII 170 (SCC), [1996] 3 SCR 139, have laid down the jurisprudential framework for s. 35(1), this appeal raises a set of interrelated and novel questions which revolve around a single issue -- the nature and scope of the constitutional protection afforded by s. 35(1) to common law aboriginal title.

…

4 Finally, given the existence of aboriginal title in British Columbia, this Court must address, on cross-appeal, the question of whether the province of British Columbia, from the time it joined Confederation in 1871, until the entrenchment of s. 35(1) in 1982, had jurisdiction to extinguish the rights of aboriginal peoples, including aboriginal title, in that province. Moreover, if the province was without this jurisdiction, a further question arises – whether provincial laws of general application that would otherwise be inapplicable to Indians and Indian lands could nevertheless extinguish aboriginal rights through the operation of s. 88 of the *Indian Act*, R.S.C., 1985, c. I-5.

…

IV. Issues

72 The following are the principal issues which must be addressed in this appeal. As will become apparent in my analysis, some of these issues in turn raise a number of sub-issues which I will address as well:

A. Do the pleadings preclude the Court from entertaining claims for aboriginal title and self-government?

B. What is the ability of this Court to interfere with the factual findings made by the trial judge?

C. What is the content of aboriginal title, how is it protected by s. 35(1) of the *Constitution Act, 1982*, and what is required for its proof?

D. Has a claim to self-government been made out by the appellants?

E. Did the province have the power to extinguish aboriginal rights after 1871, either under its own jurisdiction or through the operation of s. 88 of the *Indian Act*?

…

E. *Did the province have the power to extinguish aboriginal rights after 1871, either under its own jurisdiction or through the operation of s. 88 of the Indian Act*?

(1) Introduction

172 For aboriginal rights to be recognized and affirmed by s. 35(1), they must have existed in 1982. Rights which were extinguished by the sovereign before that time are not revived by the provision. In a federal system such as Canada's, the need to determine whether aboriginal rights have been extinguished raises the question of which level of government has jurisdiction to do so. In the context of this appeal, that general question becomes three specific ones. First, there is the question whether the province of British Columbia, from the time it joined Confederation in 1871, until the entrenchment of s. 35(1) in 1982, had the jurisdiction to extinguish the rights of aboriginal peoples, including aboriginal title, in that province. Second, if the province was without such jurisdiction, another question arises -- whether provincial laws which were not in pith and substance aimed at the extinguishment of aboriginal rights could have done so nevertheless if they were laws of general application. The third and final question is whether a provincial law, which could otherwise not extinguish aboriginal rights, be given that effect through referential incorporation by s. 88 of the *Indian Act*.

(2) Primary Jurisdiction

173 Since 1871, the exclusive power to legislate in relation to "Indians, and Lands reserved for the Indians" has been vested with the federal government by virtue of s. 91(24) of the *Constitution Act, 1867*. That head of jurisdiction, in my opinion, encompasses within it the exclusive power to extinguish aboriginal rights, including aboriginal title.

"Lands reserved for the Indians"

174 I consider the second part of this provision first, which confers jurisdiction to the federal government over "Lands reserved for the Indians". The debate between the parties centred on whether that part of s. 91(24) confers jurisdiction to legislate with respect to aboriginal title. The province's principal submission is that "Lands reserved for the Indians" are lands which have been specifically set aside or designated for Indian occupation, such as reserves. However, I must reject that submission, because it flies in the face of the judgment of the Privy Council in St. Catherine's Milling. One of the issues in that appeal was the federal jurisdiction to accept the surrender of lands held pursuant to aboriginal title. It was argued that the federal government, at most, had jurisdiction over "Indian Reserves". Lord Watson, speaking for the Privy Council, rejected this argument, stating that had the intention been to restrict s. 91(24) in this way, specific language to this effect would have been used. He accordingly held that (at p. 59):

> . . . the words actually used are, according to their natural meaning, sufficient to include all lands reserved, upon any terms or conditions, for Indian occupation.

Lord Watson's reference to "all lands" encompasses not only reserve lands, but lands held pursuant to aboriginal title as well. Section 91(24), in other words, carries with it the jurisdiction to legislate in relation to aboriginal title. It follows, by implication, that it also confers the jurisdiction to extinguish that title.

175 The province responds by pointing to the fact that underlying title to lands held pursuant to aboriginal title vested with the provincial Crown pursuant to s. 109 of the *Constitution Act, 1867*. In its submission, this right of ownership carried with it the right to grant fee simples which, by implication, extinguish aboriginal title, and so by negative implication excludes aboriginal title from the scope of s. 91(24). The difficulty with the province's submission is that it fails to take account of the language of s. 109, which states in part that:

> 109. All Lands, Mines, Minerals, and Royalties belonging to the several Provinces of Canada . . . at the Union . . . shall belong to the several Provinces . . . subject to any Trusts existing in respect thereof, and to any Interest other than that of the Province in the same.

Although that provision vests underlying title in provincial Crowns, it qualifies provincial ownership by making it subject to the "any Interest other than that of the Province in the same". In *St. Catherine's Milling*, the Privy Council held that aboriginal title was such an interest, and rejected the argument that provincial ownership operated as a limit on federal jurisdiction. The net effect of that decision, therefore, was to separate the ownership of lands held pursuant to aboriginal title from jurisdiction over those lands. Thus, although on surrender of aboriginal title the province would take absolute title, jurisdiction to accept surrenders lies with the federal government. The same can be said of extinguishment – although on extinguishment of aboriginal title, the province would take complete title to the land, the jurisdiction to extinguish lies with the federal government.

176 I conclude with two remarks. First, even if the point were not settled, I would have come to the same conclusion. The judges in the court below noted that separating federal jurisdiction over Indians from jurisdiction over their lands would have a most unfortunate result -- the government vested with primary constitutional responsibility for securing the welfare of Canada's aboriginal peoples would find itself unable to safeguard one of the most central of native interests — their interest in their lands. Second, although the submissions of the parties and my analysis have focussed on the question of jurisdiction over aboriginal title, in my opinion, the same reasoning applies to jurisdiction over any aboriginal right which relates to land. As I explained earlier, *Adams* clearly establishes that aboriginal rights may be tied to land but nevertheless fall short of title. Those relationships with the land, however, may be equally fundamental to aboriginal peoples and, for the same reason that jurisdiction over aboriginal title must vest with the federal government, so too must the power to legislate in relation to other aboriginal rights in relation to land.

"Indians"

177 The extent of federal jurisdiction over Indians has not been definitively addressed by this Court. We have not needed to do so because the *vires* of federal legislation with respect to Indians, under the division of powers, has never been at issue. The cases which have come before the Court under s. 91(24) have implicated the question of jurisdiction over Indians from the other direction -- whether provincial laws which on their face apply to Indians intrude on federal jurisdiction and are inapplicable to Indians to the extent of that intrusion. As I explain below, the Court has held that s. 91(24) protects a "core" of Indianness from provincial intrusion, through the doctrine of interjurisdictional immunity.

178 It follows, at the very least, that this core falls within the scope of federal jurisdiction over Indians. That core, for reasons I will develop, encompasses aboriginal rights, including the rights that are recognized and affirmed by s. 35(1). Laws which purport to extinguish those rights therefore touch the core of Indianness which lies at the heart of s. 91(24), and are beyond the legislative competence of the provinces to enact. The core of Indianness encompasses the whole range of aboriginal rights that are protected by s. 35(1). Those rights include rights in relation to land; that part of the core derives from s. 91(24)'s reference to "Lands reserved for the Indians". But those rights also encompass practices, customs and traditions which are not tied to land as well; that part of the core can be traced to federal jurisdiction over "Indians". Provincial governments are prevented from legislating in relation to both types of aboriginal rights.

(3) Provincial Laws of General Application

179 The vesting of exclusive jurisdiction with the federal government over Indians and Indian lands under s. 91(24), operates to preclude provincial laws in relation to those matters. Thus, provincial laws which single out Indians for special treatment are *ultra vires*, because they are in relation to Indians and therefore invade federal jurisdiction: see *R. v. Sutherland*, 1980 CanLII 18 (SCC), [1980] 2 SCR 451. However, it is a well-established principle that (*Four B Manufacturing Ltd.*, *supra*, at p. 1048):

> The conferring upon Parliament of exclusive legislative competence to make laws relating to certain classes of persons does not mean that the totality of these persons' rights and duties comes under primary federal competence to the exclusion of provincial laws of general application.

In other words, notwithstanding s. 91(24), provincial laws of general application apply *proprio vigore* to Indians and Indian lands. Thus, this Court has held that provincial labour relations legislation (*Four B*) and motor vehicle laws (*R. v. Francis*, 1988 CanLII 31 (SCC), [1988] 1 SCR 1025), which purport to apply to all persons in the province, also apply to Indians living on reserves.

180 What must be answered, however, is whether the same principle allows provincial laws of general application to extinguish aboriginal rights. I have come to the conclusion that a provincial law of general application could not have this effect, for two reasons. First, a law of general application cannot, by definition, meet the standard which has been set by this Court for the extinguishment of aboriginal rights without being *ultra vires* the province. That standard was laid down in *Sparrow*, *supra*, at p. 1099, as one of "clear and plain" intent. In that decision, the Court drew a distinction between laws which extinguished aboriginal rights, and those which merely regulated them. Although the latter types of laws may have been "necessarily inconsistent" with the continued exercise of aboriginal rights, they could not extinguish those rights. While the requirement of clear and plain intent does not, perhaps, require that the Crown "use language which refers expressly to its extinguishment of aboriginal rights" (*Gladstone*, *supra*, at para. 34), the standard is still quite high. My concern is that the only laws with the sufficiently clear and plain intention to extinguish aboriginal rights would be laws in relation to Indians and Indian lands. As a result, a provincial law could never, *proprio vigore*, extinguish aboriginal rights, because the intention to do so would take the law outside provincial jurisdiction.

181 Second, as I mentioned earlier, s. 91(24) protects a core of federal jurisdiction even from provincial laws of general application, through the operation of the doctrine of interjurisdictional immunity. That core has been described as matters touching on "Indianness" or the "core of Indianness" (*Dick*, *supra*, at pp. 326 and 315; also see *Four B*, *supra*, at p. 1047 and *Francis*, *supra*, at pp. 1028-29). The core of Indianness at the heart of s. 91(24) has been defined in both negative and positive terms. Negatively, it has been held to not include labour relations (*Four B*) and the driving of motor vehicles (*Francis*). The only positive formulation of Indianness was offered in *Dick*. Speaking for the Court, Beetz J. assumed, but did not decide, that a provincial hunting law did not apply *proprio vigore* to the members of an Indian band to hunt and because those activities were "at the centre of what they do and what they are" (at p. 320). But in *Van der Peet*, I described and defined the aboriginal rights that are recognized and affirmed by s. 35(1) in a similar fashion, as protecting the occupation of land and the activities which are integral to the distinctive aboriginal culture of the group claiming the right. It follows that aboriginal rights are part of the core of Indianness at the heart of s. 91(24). Prior to 1982, as a result, they could not be extinguished by provincial laws of general application

(4) Section 88 of the *Indian Act*

182 Provincial laws which would otherwise not apply to Indians *proprio vigore*, however, are allowed to do so by s. 88 of the *Indian Act*, which incorporates by reference provincial laws of general application: *Dick*, *supra*, at pp. 326-27; *Derrickson v. Derrickson*, 1986 CanLII 56 (SCC), [1986] 1 SCR 285, at p. 297; *Francis*, *supra*, at pp. 1030-31. However, it is important to note, in Professor Hogg's words, that s. 88 does not "invigorate" provincial laws which are invalid because they are in relation to Indians and Indian lands (*Constitutional Law of Canada* (3rd ed. 1992), at p. 676; also see *Dick*, *supra*, at p. 322). What this means is that s. 88 extends the effect of provincial laws of general application which cannot apply to Indians and Indian lands because they touch on the Indianness at the core of s. 91(24). For example, a provincial law which regulated hunting may very well touch on this core. Although such a law would not apply to aboriginal people *proprio vigore*, it would still apply through s. 88 of the *Indian Act*, being a law of general application. Such laws are enacted to conserve game and for the safety of all.

183 The respondent B.C. Crown argues that since such laws are *intra vires* the province, and applicable to aboriginal persons, s. 88 could allow provincial laws to extinguish aboriginal rights. I reject this submission, for the simple reason that s. 88 does not evince the requisite clear and plain intent to extinguish aboriginal rights. The provision states in full:

> **88.** Subject to the terms of any treaty and any other Act of Parliament, all laws of general application from time to time in force in any province are applicable to and in respect of Indians in the province, except to the extent that those laws are inconsistent with this Act or any order, rule, regulation or by-law made thereunder, and except to the extent that those laws make provision for any matter for which provision is made by or under this Act.

I see nothing in the language of the provision which even suggests the intention to extinguish aboriginal rights. Indeed, the explicit reference to treaty rights in s. 88 suggests that the provision was clearly not intended to undermine aboriginal rights.

3.5.2 Minority (concurring in part)

***Delgamuukw v British Columbia*, 1997 CanLII 302 (SCC), [1997] 3 SCR 1010**

187 LA FOREST J.—

206 As for the issue raised on the cross-appeal, I agree with the Chief Justice's conclusion. The respondent province had no authority to extinguish aboriginal rights either under the *Constitution Act, 1867* or by virtue of s. 88 of the *Indian Act*.

3.6 *Kitkatla Band v British Columbia (Minister of Small Business, Tourism and Culture)*

If *Delgamuukw* opened the door to a broader reading of s. 91(24), one that grounded federal jurisdiction in the protection of Aboriginal title and the constitutional salience of Indigenous relationships to land, then *Kitkatla Band v. British Columbia (Minister of Small Business, Tourism and Culture)*, 2002 SCC 31, marked a reassertion of provincial authority. Rather than building on *Delgamuukw*'s recognition that federal jurisdiction involves the protection Indigenous land interests, the Court emphasized the constitutional applicability of provincial regulation, even where laws directly affect Indigenous cultural and spiritual values.

At issue was a provincial heritage conservation statute that authorized permits for activities that might damage sacred sites, including burial grounds. The Kitkatla Band argued that the law intruded on the protected core of s. 91(24), targeting matters of cultural significance and spiritual identity. The Court disagreed. It upheld the statute as a law of general application and found that its ameliorative purpose did not impair federal jurisdiction. Importantly, the decision narrowed the scope of the "singling out" doctrine: a law could now directly reference Indigenous matters without triggering constitutional concern, so long as it appeared to balance Indigenous and non-Indigenous interests in a proportionate way.

Kitkatla confirmed the Court's growing preference for cooperative federalism. It moved away from exclusivity toward a model that tolerates provincial-federal overlap, even in areas touching on Indigenous culture, law, and governance. The result was a doctrinal narrowing of federal jurisdiction and a shift away from the obligation-based reading of s. 91(24) that *Delgamuukw* had outlined.

***Kitkatla Band v British Columbia (Minister of Small Business, Tourism and Culture)*, 2002 SCC 31**

The judgment of the Court was delivered by

LEBEL J.—

I. Introduction

1 This case concerns a constitutional challenge to the application of provincial legislation on the protection of cultural heritage property. The dispute relates to culturally modified trees or CMTs. These trees have often been altered by aboriginal people as part of their traditional use and have cultural, historical and scientific importance for a number of First Nations in British Columbia. In the opinion of the appellants, legislation authorizing the removal or modification of these cultural objects would fall beyond the scope of provincial legislative powers. Hence, the *Heritage Conservation Act*, R.S.B.C. 1996, c. 187 ("the Act"), should be struck down in part to the extent that it allows for the alteration and destruction of native cultural objects. For the reasons which are set out below, I am of the view that this appeal should fail because the impugned legislation falls within the provincial jurisdiction on property and civil rights within the province, as the British Columbia Court of Appeal held.

…

VI. The Issues

A. *Position of the Parties*

31 All parties agree that legislation concerning the protection of heritage or cultural property falls under provincial legislative jurisdiction as being a law relating to property and civil rights within the province, under s. 92(13) of the *Constitution Act, 1867*. The intervener, the Attorney General of Canada, agrees, with one caveat. She points out that some cultural properties may fall under federal jurisdiction or that the

application of unspecified federal heads of power may affect them. In the present case, the Attorney General of Canada supports the validity of the legislation challenged by the appellants. The respondents and all the interveners take the same position.

32 The appellants concede that the province may legislate in respect of cultural properties, but challenge the validity and applicability of the Act to the CMTs found in the Kumealon region. In substance, the appellants submit that legislative provisions allowing for the alteration or destruction of native heritage property fall outside provincial legislative powers, even if provinces may validly legislate in respect of other cultural objects. They submit that ss. 12(2)(a) and 13(2)(c), which authorize the Minister to grant permits to alter, destroy or remove native heritage property impact on federal legislative powers in respect of Indian affairs. The impugned provisions affect objects and sites which stand at or near the core of aboriginal identity. For these reasons, the impugned provisions fall beyond the scope of provincial legislative authority. Moreover, even if the legislation is *intra vires* under a pure division of powers analysis, aboriginal objects would be immunized from its effects. The interjurisdictional immunity doctrine, which immunizes core federal competencies from the effect of otherwise valid provincial laws, would apply and render site alteration permits issued by the Minister ineffective.

33 At this point, the appellants acknowledge that, sometimes, s. 88 of the *Indian Act* tempers the application of the doctrine of interjurisdictional immunity in respect of provincial laws of general application. They argue, though, that s. 88 would not save the legislation in this case, because the Act is not a law of general application. It singles out Indian aboriginal objects and sites for special treatment. It amounts to discriminatory legislation. Section 88 should be read in such a way as to avoid incorporating discriminatory laws which have a differential impact on First Nations. Section 88 should be applied in a manner consistent with the *Canadian Charter of Rights and Freedoms* and the *Canadian Bill of Rights*, R.S.C. 1985, App. III. This approach would introduce a method analogous to a s. 15 *Charter* analysis in the interpretation of s. 88 of the *Indian Act*.

B. *Respondents' Position*

34 The main argument of the respondents is directed at the division of powers question. They submit that the impugned provisions form part of a comprehensive scheme which, in pith and substance, remains legislation in relation to property and civil rights in a province. The respondents point out that the site alteration permits do not apply to areas included within any Indian reserve and that no Indian title had been established in the Kumealon at the time of the litigation.

35 The primary legal effect of the impugned provisions is to regulate, through the s. 12 permit process, the actions of any person which may damage heritage property protected under s. 13(2). The heritage objects at issue are culturally modified trees.

36 The respondents argue that the impugned provisions of the Act are provincial laws of general application, which do not single out Indians for special treatment. There is no doubt that the Act applies uniformly to all persons throughout the province. The Act does not lose its status as a law of general application by the inclusion of heritage objects of importance to aboriginal people. Neither in purpose nor in effect do the impugned provisions of the Act single out Indians for unique treatment. The impugned provisions apply to all persons in the province whether aboriginal or non-aboriginal and to all heritage objects and heritage sites as enumerated in s. 13(2) of the Act. The respondents submit that the province has the legislative authority to regulate the protection of heritage sites and objects within the province, including heritage sites and objects of aboriginal origin. The right to regulate must include the right to impose limits on that protection. In the absence of any prohibited singling out of Indians, ss. 12(2)(a) and 13(2)(c) and (d) must fall within the same head of legislative authority as the rest of the *Heritage Conservation Act*, namely, "Property and Civil Rights in the Province".

37 In the respondents' view, any intrusion into federal jurisdiction is simply incidental and constitutionally permissible. Sections 12 and 13 remain an integral part of the legislative scheme of the Act. They permit the Minister to balance the heritage value of a particular site or object against other interests. They preserve a ministerial discretion which is essential for the practical operation of any statutory scheme for the protection and management of heritage property.

38 The respondents submit that the core federal jurisdiction does not extend to the regulation of heritage sites or objects in British Columbia. Provincial law which regulates all heritage objects cannot be said to be aimed at affecting an integral part of primary federal jurisdiction over Indians and lands reserved for the Indians. In this case, the impugned provisions do not, as a matter of application or legal effect, regulate the Band in the exercise of any aboriginal right or in respect of their Indianness. A determination by this Court that the impugned legislation is *intra vires* the province does not preclude the appellants from advancing a claim of aboriginal rights or title in respect of the trees or the lands where they are situated.

39 The respondents submit that, in the alternative, if this Court finds the impugned provisions affect the appellants in their Indianness, ss. 12(2)(a) and 13(2) of the Act would apply as federal law by operation of s. 88 of the *Indian Act*. Section 88 incorporates as federal law those provincial laws of general application which touch upon the essential core of federal jurisdiction under s. 91(24) of the *Constitution Act, 1867* and which would otherwise be inapplicable to Indians by virtue of the doctrine of the interjurisdictional immunity. Indeed, the appellants' test for discrimination would substantially restrict the operation of s. 88 and would shift the test for laws of general application from a division of powers analysis to a rights-based analysis. Such a test ought not to be adopted because it confuses the tests applicable to determining the scope of constitutionally protected rights with those which apply to a division of powers analysis.

40 The respondents then turn to a subsidiary argument on s. 88. They note that this provision serves a jurisdictional purpose in allowing those provincial laws which otherwise would not be applicable to Indians because they affect Indianness to apply to Indians. There is no evidence before the Court that the impugned provisions represent a colourable attempt by the province to single out heritage sites or objects of aboriginal origin for special treatment. The appellants' test contravenes the well established principle that the fact that a law may have different impacts on the persons to whom it applies does not, in itself, prevent it from operating as a law of general application. Even if it could be said that s. 12(2)(a) of the Act affects aboriginal rights, or aboriginal rights in cultural property, it still retains its character as a provincial law of general application applicable to Indians by virtue of s. 88 of the *Indian Act.*

41 Thus, the main issues have been clearly framed by the parties and in the constitutional questions. The Court must first consider the pith and substance of the legislation. Three sub-questions must be discussed in this respect. First, do ss. 12(2)(a) and 13(2)(c) and (d) intrude into a federal head of power, and to what extent? Then, if they do intrude, are they nevertheless part of a valid legislative scheme? At the next step of the analysis, it should be considered whether the impugned provisions are sufficiently integrated with the scheme. If the answer is yes, we may turn to consider the doctrine of interjurisdictional immunity and, if need be, s. 88 of the *Indian Act*. Before I move on to these, I will review the heritage conservation scheme adopted by the province of British Columbia and discuss some evidentiary issues relevant to the rights claimed by the appellants.

…

65 Given this analysis of the purpose and effect of the legislation in order to characterize the impugned provisions, the Court must then determine whether the pith and substance of ss. 12(2)(a) and 13(2)(c) and (d) fall within a provincial head of power or if, rather, they fall within a federal head of power. If the Court characterizes these provisions as a heritage conservation measure that is designed to strike a balance between the need to preserve the past while also allowing the exploitation of natural resources today, then they would fall squarely within the provincial head of power in s. 92(13) of the *Constitution Act, 1867* with respect to property and civil rights in the province.

66 On the other hand, one cannot escape the fact that the impugned provisions directly affect the existence of aboriginal heritage objects, raising the issue of whether the provisions are in fact with respect to Indians and lands reserved to Indians, a federal head of power under s. 91(24) of the *Constitution Act, 1867*. In considering this question, the Court must assess a number of factors. First, the Court must remember the basic assumption that provincial laws can apply to aboriginal peoples; First Nations are not enclaves of federal power in a sea of provincial jurisdiction: see *Cardinal v. Attorney General of Alberta*, 1973 CanLII 980 (SCC), [1974] SCR 695. The mere mention of the word "aboriginal" in a statutory provision does not render it *ultra vires* the province.

67 Second, it is clear that legislation which singles out aboriginal people for special treatment is *ultra vires* the province: see *Four B Manufacturing Ltd. v. United Garment Workers of America*, 1979 CanLII 11 (SCC), [1980] 1 SCR 1031. For example, a law which purported to affect the Indian status of adopted children was held to be *ultra vires* the province: see *Natural Parents v. Superintendent of Child Welfare*, 1975 CanLII 143 (SCC), [1976] 2 SCR 751. Similarly, laws which purported to define the extent of Indian access to land for the purpose of hunting were *ultra vires* the provinces because they singled out Indians: see *Sutherland*, *supra*; *Moosehunter v. The Queen*, 1981 CanLII 13 (SCC), [1981] 1 SCR 282. Further, provincial laws must not impair the status or capacity of Indians: see *Kruger v. The Queen*, 1977 CanLII 3 (SCC), [1978] 1 SCR 104, at p. 110; *Dick*, *supra*, at pp. 323-24.

68 Nevertheless, "singling out" should not be confused with disproportionate effect. Dickson J. said in *Kruger*, at p. 110, that "the fact that a law may have graver consequence to one person than to another does not, on that account alone, make the law other than one of general application".

69 In the present case, the impugned provisions cannot be said to single out aboriginal peoples, at least from one point of view. The provisions prohibit everyone, not just aboriginal peoples, from the named acts, and require everyone, not just aboriginal peoples, to seek permission of the Minister to commit the prohibited acts. In that respect, the impugned provisions treat everyone the same. The impugned provisions' disproportionate effects can be attributed to the fact that aboriginal peoples have produced by far the largest number of heritage objects in British Columbia. These peoples have been resident in British Columbia for thousands of years; other British Columbians arrived in the last two hundred years.

70 A more serious objection is raised with respect to the issue of whether permitting the destruction of aboriginal heritage objects impairs the status or capacity of Indians. The appellants' submission seeks to situate these cultural interests, along with aboriginal rights, at the "core of Indianness", *Delgamuukw*, *supra*, at para. 181. However, as pointed out above, little evidence has been offered by the appellants with respect to the relationship between the CMTs and Kitkatla culture in this area. The appellants argue that aboriginal heritage objects constitute a major portion of their identity and culture in a way that non-aboriginal heritage objects do not go to the centre of non-aboriginal identity. Consequently, they argue, aboriginal people are singled out for more severe treatment. I would reject this argument. Because British Columbia's history is dominated by aboriginal culture, fewer non-aboriginal objects and sites receive protection than aboriginal objects and sites. The Act provides a shield, in the guise of the permit process, against the destruction or alteration of heritage property. When one considers the relative protection afforded aboriginal and non-aboriginal heritage objects, the treatment received by both groups is the same, and indeed is more favourable, in one sense to aboriginal peoples.

71 In any case, it should be remembered that the Act cannot apply to any aboriginal heritage object or site which is the subject of an established aboriginal right or title, by operation of s. 35(1) of the *Constitution Act, 1982* and by operation of s. 8 of the *Heritage Conservation Act* (and, by implication, s. 12(7) of that Act which states that a permit does not grant a right to alter or remove an object without the consent of the party which has title to the object or site on which the object is situated). The Act is tailored, whether by design or by operation of constitutional law, to not affect the established rights of aboriginal peoples, a protection that is not extended to any other group. On the whole, then, I am of the opinion that ss. 12(2)(a) and 13(2)(c) and (d) of the Act are valid provincial law and that they do not single out aboriginal peoples or impair their status or condition as Indians.

…

J. *Paramountcy and Federal Powers*

74 The doctrine of paramountcy does not appear applicable in this case, as no valid federal legislation occupies the same field. There are provisions in the *Indian Act* with respect to aboriginal heritage conservation, but they are confined to objects on reserve lands. As I noted above, the *Heritage Conservation Act* does not apply to aboriginal heritage objects or sites which are the subject of an established aboriginal right or title by virtue both of s. 35(1) of the *Constitution Act, 1982* and s. 8 of the Act itself, which is declaratory of that fact. In any case, the CMTs in question in this case are not located on an Indian reserve but on Crown land.

75 I thus find that there is no intrusion on a federal head of power. It has not been established that these provisions affect the essential and distinctive core values of Indianness which would engage the federal power over native affairs and First Nations in Canada. They are part of a valid provincial legislative scheme. The legislature has made them a closely integrated part of this scheme. The provisions now protect native interests in situations where, before, land owners and business undertakings might have disregarded them, absent evidence of a constitutional right.

76 The Act purports to give the provincial government a means of protecting heritage objects while retaining the ability to make exceptions where economic development or other values outweigh the heritage value of the objects. In the British Columbia context, this generally means that the provincial government must balance the need to exploit the province's natural resources, particularly its rich abundance of lumber, in order to maintain a viable economy that can sustain the province's population, with the need to preserve all types of cultural and historical heritage objects and sites within the province. Given the overwhelming prevalence of aboriginal heritage objects in the province and, in this particular case, the ubiquitous nature of CMTs, legislation which sought to permit the striking of this balance but which did not attempt to extend this to aboriginal heritage objects and sites would inevitably fall very far short of its goal, if in fact it would not in most respects gut the purposes of the Act.

77 Given this conclusion, it will not be useful to discuss the doctrine of interjurisdictional immunity. It would apply only if the provincial legislation went to the core of the federal power. (See *Ordon Estate v. Grail*, 1998 CanLII 771 (SCC), [1998] 3 SCR 437, at para. 81; *Delgamuukw*, *supra*, at paras. 177-78, *per* Lamer C.J.) In these circumstances, no discussion of the principle governing the application of s. 88 of the *Indian Act* would be warranted.

VII. Conclusion and Disposition

78 Heritage properties and sites may certainly, in some cases, turn out to be a key part of the collective identity of people. In some future case, it might very well happen that some component of the cultural heritage of a First Nation would go to the core of its identity in such a way that it would affect the federal power over native affairs and the applicability of provincial legislation. This appeal does not raise such issues, based on the weak evidentiary record and the relevant principles governing the division of powers in Canada. In the circumstances of this case, the overall effect of the provision is to improve the protection of native cultural heritage and, indeed, to safeguard the presence and the memory of the cultural objects involved in this litigation, without jeopardizing the core values defining the identity of the appellants as Indians. For these reasons, I would dismiss the appeal, without costs.

3.7 *Paul v. British Columbia (Forest Appeals Commission)*

The Court's willingness in *Kitkatla* to uphold provincial legislation affecting sacred sites signaled a reluctance to treat s. 91(24) as a substantive constraint on provincial regulation. The decision left unanswered whether provincial administrative bodies could exercise adjudicative authority over matters involving Indigenous rights or reserve lands.

That question arose in *Paul v. British Columbia (Forest Appeals Commission)*, 2003 SCC 55, where an Indigenous logger challenged the jurisdiction of a provincial tribunal to adjudicate a dispute involving harvesting rights on reserve. He argued that such matters were constitutionally immune from provincial oversight. The Court rejected that claim. It held that neither the involvement of reserve lands nor the presence of an Indigenous claimant was sufficient to oust provincial jurisdiction. Interjurisdictional immunity would apply only where a law or tribunal impaired the protected core of federal authority, not merely because it touched it.

Paul reinforced the court's commitment to cooperative federalism. It confirmed that provincial adjudicative systems may operate in contexts involving Indigenous rights or reserve lands, so long as those systems do not impair the core of s. 91(24). In doing so, it further narrowed the scope of federal exclusivity and signaled the Court's continued shift toward a model of overlapping, rather than insulated, jurisdictions.

***Paul v. British Columbia (Forest Appeals Commission)*, 2003 SCC 55**

The judgment of the Court was delivered by

BASTARACHE J. —

I. Overview

1 These are the reasons following the decision of the Court on June 11, 2003 to allow the appeal. In August 1995, an official in the British Columbia Ministry of Forestry seized four logs in the possession of Thomas Paul, a registered Indian. Mr. Paul had cut three trees and found the fourth, and planned to use the wood to build a deck on his home. Mr. Paul asserted that he had an aboriginal right to cut timber for house modification, and accordingly that s. 96 of the *Forest Practices Code of British Columbia Act*, R.S.B.C. 1996, c. 159 ("Code"), a general prohibition against cutting Crown timber, did not apply to him. Both the District Manager and the Administrative Review Panel agreed that Mr. Paul had contravened s. 96. Mr. Paul then appealed to the Forest Appeals Commission ("Commission"). No one disputes these facts.

2 The issue in dispute is whether the Commission has jurisdiction to hear Mr. Paul's defence that he cut the trees and possessed the logs in the exercise of his aboriginal rights. To this point, Mr. Paul has asserted his right but never attempted to prove it. The issue is not whether provincial legislation can override an aboriginal right recognized and affirmed by s. 35 of the *Constitution Act, 1982*. As the submissions by the parties and the interveners show, the question is of great significance both to aboriginal persons and to provincial governments, which enable administrative tribunals to address a vast diversity of issues that may encompass s. 35 rights.

…

5 There are two prongs to the respondent's challenge to the jurisdiction of the Commission. The first is that the Legislature of British Columbia cannot give the Commission the power to adjudicate questions relating to aboriginal rights, on the basis that doing so would encroach on the federal power under s. 91(24). This is the constitutional argument. The majority of the Court of Appeal had also determined, as an alternative approach, that the Code ran afoul of the doctrine of interjurisdictional immunity. The Court of Appeal reasoned that, since the existence and extent of aboriginal title and aboriginal rights come within the essential core of "Indianness" (*Delgamuukw v. British Columbia*, 1997 CanLII 302 (SCC), [1997] 3 SCR 1010), a law granting quasi-judicial jurisdiction to determine matters of aboriginal title and aboriginal rights intrudes upon the core of Indianness and is therefore inapplicable to Indians. Furthermore, held the majority, s. 88 of the *Indian Act*, R.S.C. 1985, c. I-5, which makes provincial laws of general application apply to Indians, fails to invigorate the relevant portions of the Code, since s. 88 incorporates laws respecting Indians, not land.

6 With respect, I think that the majority of the Court of Appeal misunderstood the scope of the doctrine of interjurisdictional immunity. The doctrine relates to the exercise of legislative powers, that is, the power of a province to apply its valid legislation that affects matters under federal competence. As the parties conceded, the Code is constitutional. The majority of the Court of Appeal applied the doctrine in the context of an adjudicative, not legislative, function. The effect of the Code is not to alter the substance of any federal rule or aboriginal right, but rather to prescribe that Indians charged under the Code will first raise an aboriginal rights defence before the Commission, as opposed to before a superior court judge. This effect has not been shown to have a substantial impact upon Indians *qua* Indians. There is therefore no need to consider s. 88; the Code applies *ex proprio vigore*.

7 The second prong of Mr. Paul's challenge deals with the Commission's statutory jurisdiction. The respondent argued that the enabling provisions of the Code were insufficient to empower the Commission to decide the existence of aboriginal rights or title. Mr. Paul argues that the Legislature would need to confer the power to determine such questions, even ones arising incidentally to forestry matters, upon the Commission expressly. I note that the appellants agree with the respondent that the particular provisions of the Code fail to confer such power on the Commission. Only the Commission itself, intervening, believes it has been so empowered. Since the majority of the Court of Appeal believed that granting the Commission power to determine questions of aboriginal law would be unconstitutional, it did not examine the statutory interpretation question in detail. Nevertheless, the majority believed that practical considerations militated against a finding that the Code conferred jurisdiction on the Commission. In his brief concurring reasons, Donald J.A. referred to *Cooper v. Canada (Human Rights Commission)*, 1996 CanLII 152 (SCC), [1996] 3 SCR 854, as authority for the importance of practical considerations in seeking out implied jurisdiction (paras. 92-109). This prong of the challenge is the administrative law question of interpretation of a tribunal's enabling statute.

…

A. *Division of Powers: Can the Province Empower the Commission to Hear and Determine Section 35 Questions?*

(1) The Scope of the Constitutional Challenge

10 It is important to indicate precisely which provisions of the Code are under discussion at this point. The challenge is to the notion that ss. 130 to 141, which provide that a person may appeal the decision of the Administrative Review Panel to the Commission, permit the Commission to hear and rule upon a defence of aboriginal rights. In contrast, there is no challenge to the substantive prohibition, which appears in s. 96(1):

96 (1) A person must not cut, remove, damage or destroy Crown timber unless authorized to do so

…

Nor, I should note, do the appellants take the position that s. 96(1) would prevail in a conflict with a demonstrated aboriginal right affirmed by s. 35 of the *Constitution Act, 1982*. Once an aboriginal right is proven, s. 96(1) would be of no effect to the extent that it was inconsistent with that right, unless that inconsistency could be justified according to the test in *R. v. Sparrow*, 1990 CanLII 104 (SCC), [1990] 1 SCR 1075. On this, there is no dispute.

(2) The Validity and Application of the Code

11 As I noted above, at the hearing the parties conceded that the Code is in its entirety valid provincial legislation. In any case, it is clear to me that the Code is legislation in relation to development, conservation and management of forestry resources in the province, under s. 92A(1)(*b*) of the *Constitution Act, 1867*. There was no argument made that the entire Code, or that portion treating appeals before the Commission, has as its true meaning, essential character, or core matters relating to Indians and lands reserved for the Indians (s. 91(24)) or to any other federal head of power. More specifically, there was no suggestion that, in operation, the law's effects on Indians are so significant as to reveal a pith and substance that is a matter under exclusive federal competence: *Kitkatla Band v. British Columbia (Minister of Small Business, Tourism and Culture)*, [2002] 2 SCR 146, 2002 SCC 31, at para. 54; *Reference re Firearms Act (Can.)*, [2000] 1 SCR 783, 2000 SCC 31, at para. 18.

12 As a law of general application, the Code applies *ex proprio vigore* to Indians, to the extent that it does not touch on the "core of Indianness" and is not unjustifiably inconsistent with s. 35 of the *Constitution Act, 1982*. There is no need to consider whether s. 88 of the *Indian Act* would revive the statute and render it applicable.

13 In the classic federalism cases, the *vires* of legislation is challenged: *Reference re Firearms Act (Can.)*, *supra*; *Global Securities Corp. v. British Columbia (Securities Commission)*, [2000] 1 SCR 494, 2000 SCC 21. Here the question is the relationship between valid provincial legislation and matters under the federal competence to legislate under s. 91(24).

(3) Incidental Effects

14 The doctrine of incidental effects holds that where there is a valid provincial law of general application, the provincial law applies if its effects upon matters within federal legislative competence are "merely incidental, irrelevant for constitutional purposes": P. W. Hogg, *Constitutional Law of Canada* (loose-leaf ed.), vol. 1, at p. 15-8, quoted in *Global Securities*, *supra*, at para. 22. See also *General Motors of Canada Ltd. v. City National Leasing*, 1989 CanLII 133 (SCC), [1989] 1 SCR 641, at p. 670. In other words, as Iacobucci and Major JJ. put it in *Ordon Estate v. Grail*, 1998 CanLII 771 (SCC), [1998] 3 SCR 437, at para. 81, "it is constitutionally permissible for a validly enacted provincial statute of general application to affect matters coming within the exclusive jurisdiction of Parliament". Since all relevant provisions of the Code are valid provincial legislation, it follows that by virtue of the doctrine of incidental effects, any impact of the Code upon aboriginals is irrelevant for classification purposes. It remains to be seen, however, whether the law's application to specific factual contexts can be put in issue.

(4) Interjurisdictional Immunity

15 The doctrine of interjurisdictional immunity is engaged when a provincial statute trenches, either in its entirety or in its application to specific factual contexts, upon a head of exclusive federal power. The doctrine provides that, where the general language of a provincial statute can be read to trench upon exclusive federal power in its application to specific factual contexts, the statute must be read down so as not to apply to those situations: *Grail*, *supra*, at para. 81. The doctrine has limited the application of a provincial statute to a matter of exclusive federal power in numerous contexts…

16 The question, then, is whether, in a valid law of general application, provisions that empower a provincially constituted administrative tribunal to hear and rule upon arguments relating to aboriginal rights as they arise in execution of its provincial mandate trench upon the core of Indianness. If so, those provisions will be inapplicable to Indians.

(5) Application: Adjudication Versus Legislation

17 Lambert J.A., in the British Columbia Court of Appeal, concluded that such provisions would touch the core of Indianness. The doctrine of interjurisdictional immunity would, accordingly, render those enabling provisions inapplicable to questions of aboriginal law. It is helpful to review the heart of his reasoning on this point, at para. 72:

> The existence and extent of aboriginal title and aboriginal rights has been held in *Delgamuukw* to come within the essential core of Indianness. That being so, I cannot imagine that a law granting quasi-judicial jurisdiction to determine matters of aboriginal title and aboriginal rights could be anything other than equally and co-extensively within the core of Indianness. As such it fulfils the conditions for application of the principle of interjurisdictional immunity . . . .

18 This short passage reveals the fundamental error in the analysis of the majority of the Court of Appeal. It equates legislation respecting the "existence and extent of aboriginal title and aboriginal rights" (a legislative or regulatory function) with legislation enabling a board "to determine matters of aboriginal title and aboriginal rights" (an adjudicative function) (emphasis added). The respondent made the same error, stating in his factum that "the province's power to enact the jurisdiction-granting sections of the Code cannot extend to matters that are not within the province's legislative competence" (respondent's factum, at para. 105).

19 Legislation that triggers the doctrine of interjurisdictional immunity purports to regulate indirectly matters within exclusive federal competence, that is, to alter rights and obligations. Such inapplicable legislation may purport to "supplement" existing federal rules, as in *Grail*, *supra*. It may purport to "regulate" the essential parts of federal undertakings, as in *Bell*, *supra*. To my knowledge, none of the authorities applying the doctrine of interjurisdictional immunity has done so in respect of an adjudicative function. The function at issue in this appeal is one of identifying where existing aboriginal rights affirmed by s. 35 of the *Constitution Act, 1982* prevail over provisions in the Code. The Commission's enabling provisions do not attempt to supplement or amend the constitutional and federal rules respecting aboriginal rights. Indeed, the question is whether the legislature may empower the Commission to take cognizance of existing constitutional rights and rights under federal rules, not to alter or supplant them. In my view, as I shall explain, there is no reason under the Constitution that the legislature may not so empower the Commission.

20 The respondent cites Professor Hogg's discussion of the rationale for the conferral upon Parliament by the founders of Confederation of legislative power over Indians. Professor Hogg writes that the main reason "seems to have been a concern for the protection of the Indians against local settlers" (Hogg, *supra*, at p. 27-2). Once adjudicative and legislative functions are separated, however, it becomes clear that neither s. 91(24) itself nor Professor Hogg's discussion refers to adjudication. The passage is therefore unhelpful in this context.

21 The conclusion that a provincial board may adjudicate matters within federal legislative competence fits comfortably within the general constitutional and judicial architecture of Canada. In determining, incidentally, a question of aboriginal rights, a provincially constituted board would be applying constitutional or federal law in the same way as a provincial court, which of course is also a creature of provincial legislation. At the hearing all parties agreed that a provincial court may determine s. 35 issues.

…

24 Further reasons persuade me to reject the respondent's general position that questions relating to aboriginal rights are untouchable by a provincially created tribunal by virtue of their falling within federal legislative competence. It is necessary to examine side by side two provisions in the Constitution. The one on which the respondent relies heavily is s. 91(24), which empowers Parliament to legislate in relation to "Indians, and Land reserved for the Indians". The other is s. 35 of the *Constitution Act, 1982*. Unless otherwise specified, such as official

language rights in the *Charter* particular to New Brunswick, every right in the *Constitution Act, 1982* applies to every province as well as to the federal government. Section 35 therefore applies to both provinces and the federal government. It is also established that one part of the Constitution cannot abrogate another: *Adler v. Ontario*, 1996 CanLII 148 (SCC), [1996] 3 SCR 609. By virtue of s. 35, then, laws of the province of British Columbia that conflict with protected aboriginal rights do not apply so as to limit those rights, unless the limitation is justifiable according to the test in *Sparrow*, *supra*. I find it difficult to think that the Province cannot, when administering a provincial regulatory scheme, attempt to respect its constitutional obligation by empowering an administrative tribunal to hear a defence of aboriginal rights.

25 *Sparrow* stands for the proposition that government regulation, including provincial regulation, may, by legislation, infringe an aboriginal right if that infringement is justified. Though this is not the basis of the Commission's jurisdiction, where legislation justifiably infringing rights is possible, surely adjudication by the Commission, which simply takes existing rights into account, must be permissible. This conclusion follows from the distinction between legislation and adjudication and the nature of their impact upon rights.

26 I rely considerably on this distinction. I wish, therefore, to address an argument made by the respondent that, in practical terms in the aboriginal rights context, the two are insufficiently distinguishable.

27 The respondent submits that, in deciding a question arising from a defence of aboriginal right, the Commission will necessarily turn to matters at the core of s. 91(24). In his view, the Commission would determine not only the scope and content of the claimed right, but also perhaps the respondent's relationship to his First Nation, the times at which the claimed right can be practised, and the limits on the right, if any, and how the right can be exercised and by whom. He notes that the Commission might be required to determine whether the aboriginal right at issue had been extinguished. Then he argues that a determination by a provincial decision maker that a right has been extinguished is as much an extinguishment of an aboriginal right as provincial legislation attempting to extinguish that right directly. The respondent's argument, in essence, is that adjudication respecting aboriginal rights is tantamount to legislation respecting them.

28 I wish to reiterate a point acknowledged by the respondent himself, namely that a province lacks the constitutional capacity to extinguish aboriginal rights and aboriginal title. This is because the clear and plain intent necessary to extinguish an aboriginal right would make a law one in relation to Indians and Indian lands and thus *ultra vires* the province: *Delgamuukw*, *supra*, at para. 180. I will now explain why, in two important respects, a determination by an administrative tribunal, such as the Commission, is very different from both the extinguishment of a right and legislation in relation to Indians or aboriginal rights.

29 First, and most important, any adjudicator, whether a judge or a tribunal, does not create, amend or extinguish aboriginal rights. Rather, on the basis of the evidence, a judicial or administrative decision maker may recognize the continued existence of an aboriginal right, including its content and scope, or observe that the right has been properly extinguished by a competent legislative authority. Of course the decision maker may also conclude on the evidence that the aboriginal right simply has not been proven at all.

30 Admittedly, within the administrative state, the line between adjudication and legislation is sometimes blurred. Administrative tribunals that develop and implement policy while adjudicating disputes, such as the Competition Tribunal and a provincial Securities Commission, come to mind. Indeed, this Court's standard of review jurisprudence is sensitive to the deference that may be appropriate where an expert tribunal is simultaneously adjudicating and developing policy, which may sometimes be viewed as a legislative function: *Canada (Deputy Minister of National Revenue) v. Mattel Canada Inc*., [2001] 2 SCR 100, 2001 SCC 36, at para. 28; *Pushpanathan v. Canada (Minister of Citizenship and Immigration)*, 1998 CanLII 778 (SCC), [1998] 1 SCR 982, at para. 48. There is, however, a crucial distinction between a board that has been empowered by valid legislation to make policy within an area that is *intra vires* the enabling legislator, and a provincial board that is called upon, in executing its mandate, to answer incidentally a legal question relating to the Constitution or to federal law. No one has suggested that the Legislature has the constitutional power to enable a board to determine questions of aboriginal law on the basis of policy considerations favourable to the Province.

31 Second, while both provincially constituted courts and provincially constituted tribunals may consider the Constitution and federal laws, there is nevertheless one important distinction between them that the respondent overlooked. Unlike the judgments of a court, the Commission's decisions do not constitute legally binding precedents, nor will their collective weight over time amount to an authoritative body of common law. They could not be declaratory of the validity of any law. Moreover, as constitutional determinations respecting s. 91(24) or s. 35, the Commission's rulings would be reviewable, on a correctness basis, in a superior court on judicial review: *Westcoast Energy Inc. v. Canada (National Energy Board)*, 1998 CanLII 813 (SCC), [1998] 1 SCR 322, at para. 40; *Canadian Pacific Ltd. v. Matsqui Indian Band*, 1995 CanLII 145 (SCC), [1995] 1 SCR 3, at para. 23; *Douglas/Kwantlen Faculty Assn. v. Douglas College*, 1990 CanLII 63 (SCC), [1990] 3 SCR 570. To avoid judicial review, the Commission would have to identify, interpret, and apply correctly the relevant constitutional and federal rules and judicial precedents. As a result of the contrast between the general application of a provincial law by a court and the specific, non-binding effect of a board's particular decision, there is a substantial difference.

(6) The Present Role of the Commission and the Core of Indianness

32 The preceding point brings me to consider the role of the Commission in this case. Recall that the general prohibition against cutting Crown timber appears in s. 96(1) of the Code, and is not attacked in this appeal. The question, then, is not whether that prohibition unjustifiably infringes an aboriginal right. The question is whether provisions that would enable the Commission to hear a defence of aboriginal right are unconstitutional. I have already noted that the determinations of the Commission respecting aboriginal rights would be reviewable on a correctness standard. Provincial officials cannot initiate any inquiry into aboriginal rights before the Commission. Instead, a question of aboriginal law will arise only when a respondent raises an aboriginal right before the Commission in seeking relief from a general prohibition or other regulatory provision in the Code. I do not see how, by raising a defence of aboriginal right, a respondent should be able to alter the primary jurisdiction of the Commission or halt its proceedings. The nature of a particular defence should be seen as secondary to the Commission's primary jurisdiction. A person accused of violating the Code should not be able to oust the Commission's jurisdiction relating to forestry simply by raising a particular defence and thereby highlighting a constitutional dimension of the main issue. In any event, constitutional law doctrines aside, I think it would be most convenient for aboriginal persons to seek the relief afforded by their constitutionally protected rights as early as possible within the mechanisms of the administrative and judicial apparatus.

33 The respondent has failed to grasp the distinction between adjudication by a provincially created tribunal, on the one hand, and limits on regulation by a province of a matter under federal competence, on the other. Taking this distinction into account, I cannot see how the ability to hear a defence based on s. 35 would constitute an indirect intrusion on the defining elements of "Indianness". The "core" of Indianness has not been exhaustively defined. It encompasses the whole range of aboriginal rights that are protected by s. 35(1): *Delgamuukw*, *supra*, at para. 178. For present purposes, it is perhaps more easily defined negatively than positively. The core has been held not to include labour relations (*Four B Manufacturing Ltd. v. United Garment Workers of America*, 1979 CanLII 11 (SCC), [1980] 1 SCR 1031) and highway traffic regulation on reserves (*R. v. Francis*, 1988 CanLII 31 (SCC), [1988] 1 SCR 1025). On the evidence adduced in *Kitkatla Band*, *supra*, at para. 70, the status or capacity of Indians was found not to be impaired by the impugned *Heritage Conservation Act*, R.S.B.C. 1996, c. 187.

Given that these substantive matters were held not to go to the core of Indianness, I cannot see how the procedural question in this appeal can. The respondent has failed to demonstrate that the procedural right to raise at first instance a defence of aboriginal rights in a superior court, as opposed to before a provincially constituted tribunal, such as the Commission, goes to the core of Indianness.

34 I conclude, therefore, primarily on the basis that adjudication is distinct from legislation, that the Legislature of British Columbia has the constitutional power to enable the Commission to determine questions relative to aboriginal rights as they arise in the execution of its valid provincial mandate respecting forestry. I turn now to the question of whether the provisions of the Code in force at the time of this appeal's events actually gave such a power to the Commission.

…

III. Conclusion

46 For the reasons given above, I would allow the appeal. The province of British Columbia has legislative competence to endow an administrative tribunal with the capacity to consider a question of aboriginal rights in the course of carrying out its valid provincial mandate. More specifically, the Commission, by virtue of its power to determine legal questions, is competent to hear Mr. Paul's defence of his aboriginal right to harvest logs for renovation of his home.

47 My conclusions mean that the Commission has jurisdiction to continue hearing all aspects of the matter of Mr. Paul's four seized logs. Unless he moves in the Supreme Court of British Columbia for a declaration respecting his aboriginal rights, Mr. Paul must present the evidence of his ancestral right to the Commission. As yet he has merely asserted his defence. If he is unsatisfied with the Commission's determination of the relationship between his s. 35 rights and the prohibition against cutting trees in s. 96 of the Code, he can move for judicial review in the Supreme Court of British Columbia. The standard of review for the Commission's determinations concerning aboriginal law will be correctness.

3.8 *Canadian Western Bank v. Alberta*

The logic of *Paul*, that provincial institutions may adjudicate Indigenous rights claims so long as they do not impair the federal core, was reaffirmed four years later in *Canadian Western Bank v. Alberta*, 2007 SCC 22. Though the case did not concern s. 91(24) directly, the Court cited *Paul* and related jurisprudence to support its approach to interjurisdictional immunity. It emphasized that federal exclusivity under s. 91(24) protects only a "basic, minimum and unassailable content," and that valid provincial laws may apply to Indigenous peoples in their capacity as citizens, not just as "Indians" under federal law. Where provincial legislation affects general economic or regulatory matters, even on reserve lands, federal exclusivity will not apply unless a vital or indispensable federal interest is at stake. The effect was to reinforce a restrictive reading of s. 91(24)'s core and to affirm that most provincial laws may operate even in Indigenous contexts. The Court in *Western Bank* highlighted that the core of 91(24) protected matters that matters that "could be considered absolutely indispensable and essential to [Indigenous peoples'] cultural survival."

3.8.1 Majority

***Canadian Western Bank v. Alberta*, 2007 SCC 22**

(4) The Indian Cases

60 The appellants relied on certain observations about interjurisdictional immunity in *Paul v. British Columbia (Forest Appeals Commission)*, [2003] 2 SCR 585, 2003 SCC 55, but of course the actual holding in that case was that notwithstanding exclusive federal jurisdiction over "Indians, and Lands reserved for the Indians", a provincial Forest Appeals Commission could properly consider questions relating to aboriginal rights arising in the execution of its valid provincial mandate respecting forestry resources. In *Kitkatla Band*, our Court held that a provincial law relating to the preservation of heritage objects applied because its application did not affect aboriginal rights or title. These cases further demonstrate that the Court has taken a strict view of the "basic, minimum and unassailable content" of the federal power in relation to "Indians" who are, in limited respects, federal "persons", and to that extent these cases undermine rather than advance the banks' argument.

61 In some cases, it is true, the Court has found a vital or essential federal interest to justify federal exclusivity because of the special position of aboriginal peoples in Canadian society or, as Gonthier J. put it in the *National Battlefields Commission* case mentioned earlier, "the fundamental federal responsibility for a thing or person" (p. 853). Thus, in *Natural Parents*, Laskin C.J. held the provincial *Adoption Act* to be inapplicable to Indian children on a reserve because to compel the surrender of Indian children to non-Indian parents "would be to touch 'Indianness', to strike at a relationship integral to a matter outside of provincial competence" (pp. 760-61). Similarly, in *Derrickson*, the Court held that the provisions of the British Columbia *Family Relations Act* dealing with the division of family property were not applicable to lands reserved for Indians because "[t]he right to possession of lands on an Indian reserve is manifestly of the very essence of the federal exclusive legislative power under s. 91(24) of the *Constitution Act, 1867*" (p. 296). In *Paul v. Paul*, 1986 CanLII 57 (SCC), [1986] 1 SCR 306, our Court held that provincial family law could not govern disposition of the matrimonial home on a reserve. In these cases, what was at issue was relationships within Indian families and reserve communities, matters that could be considered absolutely indispensable and essential to their cultural survival. On the other hand, in *Four B Manufacturing Ltd. v. United Garment Workers of America*, 1979 CanLII 11 (SCC), [1980] 1 SCR 1031, this Court held that a non-Indian business on a reserve that was partly owned and operated by Indians (but not the band) was subject to provincial labour regulation. The Court could not discern a need for federal exclusivity in a matter so remote from its special responsibilities for aboriginal peoples. In other words, in their federal aspect ("Indianness"), Indian people are governed by federal law exclusively, but in their activities as citizens of a province, they remain subject to provincial laws of general application. As it is with Indians, so it must be with chartered banks.

3.9 *NIL/TU,O Child and Family Services Society v. B.C. Government and Service Employees' Union*

Following *Paul* and *Canadian Western Bank*, the Court continued to narrow the reach of federal exclusivity under s. 91(24). In *NIL/TU,O Child and Family Services Society v. B.C. Government and Service Employees' Union*, 2010 SCC 45, it applied that framing to Indigenous institutions themselves. The case involved two Indigenous child welfare agencies, one serving on-reserve and the other urban Indigenous communities. The question was whether provincial or federal labour law governed their employees. The Court held that provincial jurisdiction presumptively applied. Crucially, the Court made no reference to Indigenous perspectives or jurisdiction in child welfare or labour relations. The reasoning treated the agencies as functionally equivalent to other provincially regulated service providers. As Abella J. put it for the majority: "There is no reason why, as a matter of principle, the jurisdiction of an entity's labour relations should be approached differently when s. 91(24) is at issue. The fundamental nature of the inquiry is - and should be - the same as for any other head of power" (*NIL/TU,O*, at para 20). With that, the Court extended the logic of cooperative federalism into areas at the core of Indigenous cultural life.

3.9.1 Majority

***NIL/TU,O Child and Family Services Society v. B.C. Government and Service Employees' Union*, 2010 SCC 45**

The judgment of LeBel, Deschamps, Abella, Charron, Rothstein and Cromwell JJ. was delivered by

[1] ABELLA J. — NIL/TU,O Child and Family Services Society ("NIL/TU,O") provides child welfare services to certain First Nations children and families in British Columbia. It has a unique institutional structure, combining provincial accountability, federal funding, and a measure of operational independence.

[2] None of the parties dispute that child welfare is a matter within provincial legislative competence under the *Constitution Act, 1867*. NIL/TU,O does not challenge the constitutional validity of the *Child, Family and Community Service Act*, R.S.B.C. 1996, c. 46, as it applies to Aboriginal people. Nor is the issue whether the federal government can enact labour relations legislation dealing with "Indians". It clearly can. The issue in this appeal is whether NIL/TU,O's labour relations nonetheless fall within federal jurisdiction over Indians under s. 91(24) because its services are designed for First Nations children and families.

[3] For the last 85 years, this Court has consistently endorsed and applied a distinct legal test for determining the jurisdiction of labour relations on federalism grounds. This legal framework, set out most comprehensively in *Northern Telecom Ltd. v. Communications Workers of Canada*, 1979 CanLII 3 (SCC), [1980] 1 SCR 115 and *Four B Manufacturing Ltd. v. United Garment Workers of America*, 1979 CanLII 11 (SCC), [1980] 1 SCR 1031, and applied most recently in *Consolidated Fastfrate Inc. v. Western Canada Council of Teamsters*, 2009 SCC 53, [2009] 3 SCR 407, is used regardless of the specific head of federal power engaged in a particular case. It calls for an inquiry into the nature, habitual activities and daily operations of the entity in question to determine whether it constitutes a federal undertaking. This inquiry is known as the "functional test". Only if this test is inconclusive as to whether a particular undertaking is "federal", does the court go on to consider whether provincial regulation of that entity's labour relations would impair the "core" of the federal head of power.

[4] The "core" of whatever federal head of power happens to be at issue in a particular labour relations case has never been used by this Court to determine whether an entity is a "federal undertaking" for the purposes of triggering the jurisdiction of the *Canada Labour Code*, R.S.C. 1985, c. L-2. Since in my view the functional test conclusively establishes that NIL/TU,O is a provincial undertaking, I do not see this case as being the first to require an examination of the "core" of s. 91(24).

Background

[5] In 1997, seven First Nations collectively incorporated NIL/TU,O under British Columbia's *Society Act*, R.S.B.C. 1996, c. 433, to establish a child welfare agency that would provide "culturally appropriate" services to their children and families. NIL/TU,O operates out of offices on the Tsawout reserve and provides its services to the members of the "Collective First Nations", currently comprised of the Beecher Bay, Pacheedaht, Pauquachin, Songhees, T'Sou-ke, Tsartlip and Tsawout First Nations.

[6] In 2005, the British Columbia Government and Service Employees' Union applied to the British Columbia Labour Relations Board to be certified as the bargaining agent for all employees of NIL/TU,O, excluding the executive director. NIL/TU,O objected, arguing that its labour relations fell under federal jurisdiction.

[7] The Board dismissed NIL/TU,O's objection. NIL/TU,O was, in the Board's view, an "'Indian' organization" ((2006), 122 C.L.R.B.R. (2d) 174, at para. 47). However, without some connection to the exercise of federal legislative power, that "'Indian' content" did not attract federal jurisdiction over labour relations (para. 47). The Board accordingly certified the Union under the B.C. *Labour Relations Code*, R.S.B.C. 1996, c. 244. A three-member panel of the Board subsequently dismissed NIL/TU,O's request for reconsideration ((2006), 127 C.L.R.B.R. (2d) 137).

[8] On judicial review, Cullen J. of the Supreme Court of British Columbia granted the application on the grounds that NIL/TU,O's labour relations fell under federal jurisdiction and were therefore not within the Board's authority (2007 BCSC 1080, 76 B.C.L.R. (4th) 322). He found that NIL/TU,O's operations and activities had a federal dimension and, even though those operations served provincial ends, they did so by uniquely Aboriginal means. Cullen J. accordingly overturned the Board's certification order.

[9] The Union then sought and obtained certification from the Canada Industrial Relations Board under the *Canada Labour Code*. Despite its federal certification, the Union appealed Cullen J.'s decision to the British Columbia Court of Appeal where Groberman J.A., writing for a unanimous court, concluded that NIL/TU,O's operations — and therefore its labour relations — fell under provincial jurisdiction (2008 BCCA 333, 81 B.C.L.R. (4th) 318). In his view, nothing in the *Child, Family and Community Service Act*, the design of NIL/TU,O's operations or the nature of NIL/TU,O's services took NIL/TU,O outside provincial jurisdiction. Primary provincial jurisdiction over labour relations was not "ousted" simply because NIL/TU,O's operations "engage[d] the interests of [A]boriginal groups" or because NIL/TU,O provided services in a "culturally sensitive" manner (para. 62).

[10] For somewhat different reasons, I agree with the conclusion of the British Columbia Court of Appeal and the British Columbia Labour Relations Board that NIL/TU,O's labour relations fall under provincial jurisdiction and are therefore subject to the British Columbia *Labour Relations Code*. I would therefore dismiss the appeal.

Analysis

[11] Jurisdiction over labour relations is not delegated to either the provincial or federal governments under s. 91 or s. 92 of the *Constitution Act, 1867*. But since *Toronto Electric Commissioners v. Snider*, 1925 CanLII 331 (UK JCPC), [1925] A.C. 396 (P.C.), Canadian courts have recognized that labour relations are presumptively a provincial matter, and that the federal government has jurisdiction over labour relations only by way of exception. This exception has always been narrowly interpreted [citations removed].

[12] The approach to determining whether an entity's labour relations are federally or provincially regulated is a distinct one and, notably, entails a completely different analysis from that used to determine whether a particular statute is *intra* or *ultra vires* the constitutional authority of the enabling government. Because the regulation of labour relations falls presumptively within the jurisdiction of the provinces, the narrow question when dealing with cases raising the jurisdiction of labour relations is whether a particular entity is a "federal work, undertaking or business" for purposes of triggering the jurisdiction of the *Canada Labour Code*.

[13] The principles underpinning this Court's well-established approach to labour relations jurisdiction are set out by Dickson J., writing for a unanimous Court, in *Northern Telecom*.

…

[14] He then set out a "functional test" for determining whether an entity is "federal" for purposes of triggering federal labour relations jurisdiction.

…

[15] *Four B*, decided the same year as *Northern Telecom*, also adopted the principles from *Construction Montcalm*, and again found the functional test, which examined the "normal or habitual activities" of the entity, to be determinative. The issue in *Four B* was whether provincial labour legislation applied to a provincially incorporated manufacturing operation that was owned by four Aboriginal band members,

employed mostly band members, and operated on reserve land pursuant to a federal permit. Beetz J., for the majority, set out the governing principles and concluded that the "operational nature" of the business was provincial:

> In my view the established principles relevant to this issue can be summarized very briefly. With respect to labour relations, exclusive provincial legislative competence is the rule, exclusive federal competence is the exception. The exception comprises, in the main, labour relations in undertakings, services and businesses which, having regard to the functional test of the nature of their operations and their normal activities, can be characterized as federal undertakings, services or businesses . . . .
>
> There is nothing about the business or operation of *Four B* which might allow it to be considered as a federal business: the sewing of uppers on sport shoes is an ordinary industrial activity which clearly comes under provincial legislative authority for the purposes of labour relations. Neither the ownership of the business by Indian shareholders, nor the employment by that business of a majority of Indian employees, nor the carrying on of that business on an Indian reserve under a federal permit, nor the federal loan and subsidies, taken separately or together, can have any effect on the operational nature of that business. By the traditional and functional test, therefore, *The Labour Relations Act* applies to the facts of this case, and the *Board* has jurisdiction. [Emphasis added; pp. 1045-46.]

Beetz J. was satisfied that the functional test was conclusive and that Four B was a provincial undertaking.

[16] At no point, in discussing the functional test, does Beetz J. mention the "core" of s. 91(24) or its content. In fact, he makes it clear that only if the functional test is inconclusive as to whether a particular undertaking is "federal", should a court consider whether provincial regulation of labour relations would impair the "core" of whatever federal regulation governed the entity.

[17] He went on to discuss, in *obiter*, whether this conclusion would have been different if the functional test had been inconclusive:

> The functional test is a particular method of applying a more general rule namely, that exclusive federal jurisdiction over labour relations arises only if it can be shown that such jurisdiction forms an integral part of primary federal jurisdiction over some other federal object: the *Stevedoring* case.
>
> Given this general rule, and assuming for the sake of argument that the functional test is not conclusive for the purposes of this case, the first question which must be answered . . . is whether the power to regulate the labour relations in issue forms an integral part of primary federal jurisdiction over Indians and Lands reserved for the Indians. The second question is whether Parliament has occupied the field by the provisions of the *Canada Labour Code*. [Emphasis added; p. 1047.]

[18] In other words, in determining whether an entity's labour relations will be federally regulated, thereby displacing the operative presumption of provincial jurisdiction, *Four B* requires that a court first apply the functional test, that is, examine the nature, operations and habitual activities of the entity to see if it is a federal undertaking. If so, its labour relations will be federally regulated. Only if this inquiry is inconclusive should a court proceed to an examination of whether provincial regulation of the entity's *labour relations* would impair the core of the federal head of power at issue.

[19] Notwithstanding this Court's long-standing approach, a different line of authority has uniquely emerged when courts are dealing with s. 91(24) … This divergent analysis proceeds, contrary to *Four B*, directly to the question of whether the "core" of the head of power is impaired, without applying the functional test first. Moreover, rather than considering whether the regulation of the entity's *labour relations* would impair the "core" of a federal head of power, these decisions have examined instead whether the nature of the entity's *operations* lay at the "core" and therefore displaced the presumption that labour relations are provincially regulated.

[20] There is no reason why, as a matter of principle, the jurisdiction of an entity's labour relations should be approached differently when s. 91(24) is at issue. The fundamental nature of the inquiry is — and should be — the same as for any other head of power. It is an inquiry with two distinct steps, the first being the functional test. A court should proceed to the second step only when this first test is inconclusive. If it is, the question is not whether the entity's *operations* lie at the "core" of the federal head of power; it is whether the provincial regulation of that entity's *labour relations* would impair the "core" of that head of power. Collapsing the two steps into a single inquiry, as the trial judge and the Court of Appeal did, and as the Chief Justice and Fish J. do in their concurring reasons, transforms the traditional labour relations test into a different test: the one used for determining whether a statute is "inapplicable" under the traditional interjurisdictional immunity doctrine. The two-step inquiry preserves the integrity of the unique labour relations test; the single-step approach extinguishes it.

[21] With great respect, therefore, to the contrary views of the Chief Justice and Fish J., I do not agree that consideration of the "core" of a federal head of power is part of the functional test, the first step of the analysis. Whether an activity lies at the "core" of a federal undertaking or head of power is an analysis carried out in the narrow confines of interjurisdictional immunity: see *Canadian Western Bank v. Alberta*, 2007 SCC 22, [2007] 2 SCR 3. The functional test is not an alternate method of determining whether an activity lies at the "core"; rather, the functional test looks to whether the "undertaking, service or business is a federal one" (*Northern Telecom*, at p. 132).

[22] The difference between these two approaches is significant. The "core" of a federal head of power might not capture the scope or potential reach of federal legislative jurisdiction, as the Court held in *Canadian Western Bank*. Additionally, it is possible for an entity to be federally regulated in part and provincially regulated in part. To the extent that the functional test is inconclusive as to jurisdiction over the labour relations of an entity, the presumption of provincial jurisdiction will apply in such a case *unless* the core of the federal head of power would be impaired by provincial regulation of the entity's labour relations. It is only in this circumstance of an inconclusive finding about the application of the functional test that this narrow analysis of the "core" of the federal power will be engaged.

[23] This brings us to the application of the *Four B* test to the circumstances of this case. The delivery of child welfare services in British Columbia is governed by the *Child, Family and Community Service Act*. The Act sets out a detailed child protection regime for the province that is administered by "directors" appointed by the Minister for Child and Family Development (s. 91).

[24] The province of British Columbia (represented by a director appointed under the Act), the federal government (represented by the Minister of Indian Affairs) and NIL/TU,O (representing the Collective First Nations) are parties to a tripartite delegation agreement, first signed in 1999 and later confirmed in 2004 ("2004 Agreement"). Under this agreement, the provincial government, as the keeper of constitutional authority over child welfare, delegated some of its statutory powers and responsibilities over the delivery of child welfare services to the Collective First Nations to NIL/TU,O. This delegation is anticipated by s. 93(1)(g)(iii) of the Act, which permits a provincial director to make agreements for the delivery of statutory child welfare services with legal entities representing Aboriginal communities. The federal government's role in the arrangement is limited to financing NIL/TU,O's provision of certain services to certain children.

…

[36] What, then, does all this tell us about the nature of NIL/TU,O's operations? Clearly NIL/TU,O is regulated exclusively by the province, and its employees exercise exclusively provincial delegated authority. This complex operational scheme was undoubtedly created for the benefit of the Collective First Nations. The child welfare services that NIL/TU,O offers are provided primarily by Aboriginal employees to Aboriginal clients and are designed to protect, preserve and benefit the distinct cultural, physical and emotional needs of the children and families of the Collective First Nations. NIL/TU,O serves as the child welfare agency for this community.

[37] NIL/TU,O argues that this distinctively Aboriginal component of its service delivery methodology alters the nature of its operations and activities such that it is a federal undertaking, service or business for the purpose of allocating labour relations jurisdiction. In my view, it does not.

[38] Provincial competence over child welfare is exercised in British Columbia through the *Child, Family and Community Service Act*, and NIL/TU,O's operations are wholly regulated by it. NIL/TU,O is a fully integrated part of this provincial regulatory regime, pursuant to authority that is delegated, circumscribed and supervised by provincial officials. As an organization, it is directly subject to the province's oversight, and NIL/TU,O's employees are directly accountable to the provincial directors, who are empowered to intervene when necessary to ensure statutory compliance. Provincial child welfare workers are, in fact, required to step in when one of NIL/TU,O's cases involves child protection issues since NIL/TU,O's employees are not authorized to provide protection services. Moreover, NIL/TU,O's Constitution and the 2004 Agreement recognize the Act as the statutory authority governing the Society's primary task, namely providing statutory child welfare services. When fulfilling this task, NIL/TU,O must always operate with the Act's two paramount considerations in mind — the safety and well-being of children — and must always comply with the Act as a whole. The province, therefore, retains ultimate decision-making control over NIL/TU,O's operations.

[39] None of this detracts from NIL/TU,O's distinct character as a child welfare organization for Aboriginal communities. But the fact that it serves these communities cannot take away from its essential character as a child welfare agency that is in all respects regulated by the province. Neither the cultural identity of NIL/TU,O's clients and employees, nor its mandate to provide culturally-appropriate services to Aboriginal clients, displaces the operating presumption that labour relations are provincially regulated. As the Court of Appeal pointed out, social services must, in order to be effective, be geared to the target clientele. This attempt to provide meaningful services to a particular community, however, cannot oust primary provincial jurisdiction over the service providers' labour relations. NIL/TU,O's function is unquestionably a provincial one.

[40] And while it is true that NIL/TU,O receives federal funds pursuant to a federal funding directive, an intergovernmental memorandum of understanding and the 2004 Agreement, this does not rise to the level of federal operational involvement necessary to demonstrate that NIL/TU,O is a federal undertaking, service or business. As in *Four B*, where the Court found that federal loans and subsidies did not convert the shoe manufacturing business into a federal activity, federal funding in this case does not change the nature of NIL/TU,O's operations from provincial to federal hands.

[41] In my view, British Columbia's *Child, Family and Community Service Act*, by expressly recognizing, affirming and giving practical meaning to the unique rights and status of Aboriginal people in the child welfare context, and by expressly respecting Aboriginal culture and heritage, represents a commendable, constitutionally mandated exercise of legislative power. The very fact that the delivery of child welfare services is delegated to First Nations agencies marks, significantly and positively, public recognition of the particular needs of Aboriginal children and families. It seems to me that this is a development to be encouraged in the provincial sphere, not obstructed.

[42] Today's constitutional landscape is painted with the brush of co-operative federalism … A co-operative approach accepts the inevitability of overlap between the exercise of federal and provincial competencies.

[43] NIL/TU,O's operational features are painted with the same co-operative brush. The agency exists because of a sophisticated and collaborative effort by the Collective First Nations, the government of British Columbia and the federal government to respond to the particular needs of the Collective First Nations' children and families. This effort has resulted in a detailed and integrated operational matrix comprised of NIL/TU,O's Constitution and by-laws, a tripartite delegation agreement, an intergovernmental memorandum of understanding, a set of Aboriginal practice standards, a federal funding directive and provincial legislation, all of which govern the provision of child welfare services by NIL/TU,O in a manner that respects and protects the Collective First Nations' traditional values.

[44] By virtue of the memorandum of understanding and the tripartite agreement, the federal government actively endorsed the province's oversight of the delivery of child welfare services to Aboriginal children in the province, including those services provided by NIL/TU,O to the Collective First Nations. I see this neither as an abdication of regulatory responsibility by the federal government nor an inappropriate usurpation by the provincial one. It is, instead, an example of flexible and co-operative federalism at work and at its best.

[45] The essential nature of NIL/TU,O's operation is to provide child and family services, a matter within the provincial sphere. Neither the presence of federal funding, nor the fact that NIL/TU,O's services are provided in a culturally sensitive manner, in my respectful view, displaces the overridingly provincial nature of this entity. The community for whom NIL/TU,O operates as a child welfare agency does not change *what* it does, namely, deliver child welfare services. The designated beneficiaries may and undoubtedly should affect how those services are delivered, but they do not change the fact that the delivery of child welfare services, a provincial undertaking, is what it essentially does.

[46] And neither the nature of NIL/TU,O's operation nor the jurisprudence calls for an inquiry into the "core of Indianness" in this appeal. The *Northern Telecom/Four B* principles clearly and conclusively confirm that NIL/TU,O is a provincial undertaking. The past 85 years of labour jurisprudence confirms that no further or alternate analysis is required. The presumption in favour of provincial jurisdiction over labour relations, therefore, remains operative in this case.

[47] I would therefore dismiss the appeal with costs.

4 Cooperative federalism and the limits of exclusivity

This Part traces the further erosion of federal exclusivity in matters involving Indigenous peoples and the rise of cooperative federalism as the dominant constitutional framework. Over time, the Court has narrowed the scope of interjurisdictional immunity by removing Aboriginal and treaty rights from the protected core of section 91(24). These rights, previously shielded through federal jurisdiction, are now governed by the justificatory standards of section 35 of the *Constitution Act, 1982*. The result is a shift in where constitutional protection resides, moving the limits on provincial authority from the division of powers to s.35.

At the same time, interjurisdictional immunity has not been abandoned altogether. It continues to apply to other aspects of the federal core under s. 91(24), such as reserve lands, Indian status, and matters tied more directly to Indigenous legal identity. The jurisprudence now draws a distinction between these institutional or status-based elements and s. 35 rights.

In *Tsilhqot'in Nation v. British Columbia*, 2014 SCC 44, the Court held that interjurisdictional immunity could no longer be invoked to protect Aboriginal title. Under this model, provincial laws may apply to Aboriginal title lands if the Crown can meet its justificatory burden. The court explicitly held the interjurisdictional immunity has no role to play where s.35 rights are concerned, effectively removing those rights from the constitutional core of s. 91(24), despite the fact that those rights are, by definition, integral to the distinctive cultures of Indigenous peoples and, as such, cannot sensibly be distinguished from previous explanations of the subject matters at the core.

This doctrinal move created a structural inconsistency. In *Canadian Western Bank v. Alberta, 2007 SCC 22*, the Court had affirmed that the core of s. 91(24) protects "relationships within Indian families and reserve communities" and matters "absolutely indispensable and essential to [Indigenous] cultural survival." Yet many of the very practices now excluded from that core are the same ones that are protected under s. 35 precisely because they relate to Indigenous cultural integrity. The result is a doctrine that affirms the cultural centrality of constitutional rights, while simultaneously declining to treat them as constitutionally immune from provincial regulation. It is worth noting as well that s.35 rights are still clearly within the *scope* of s.91(24), meaning that the federal government can legislate about these rights and, in so doing, trigger paramountcy over inconsistent provincial laws. Thus, even where IJI cannot be relied on to protect s.35 rights, they can be given legislative protection through paramountcy. This is discussed in Part IV.

Daniels v. Canada (Indian Affairs and Northern Development), 2016 SCC 12, illustrated the shifting doctrinal terrain of s.91(24) following *Tsilhqot'in*. The Court confirmed that Métis and non-status Indians fall within the personal scope of s. 91(24), extending federal jurisdiction to previously excluded groups. Yet *Daniels* also reflects the dual character of s. 91(24) as incorporating both obligations and control. The re-introduction of the language of obligation suggests that s. 91(24) grounds a constitutional duty to recognize and respond to the needs of Indigenous peoples. That tension, between control and obligation, runs through this doctrinal moment.

What emerges in this Part is a subtle but consequential shift. As the Court dismantled barriers to provincial regulation, it cast s. 91(24) not as a zone of exclusive federal authority, but as part of a shared constitutional space, one where federal, provincial, and Indigenous jurisdictions increasingly interact. Yet this transformation raises a structural problem: with interjurisdictional immunity no longer available to protect s. 35 rights, what constitutional mechanism remains to affirm Indigenous jurisdiction? And what role, if any, can s. 91(24) still play in expressing the Crown's constitutional obligations?

The cases that follow suggest an interpretation of s. 91(24) not as a grant of plenary control, but as a platform for intergovernmental coordination, one shaped by evolving Indigenous rights jurisprudence and the imperatives of reconciliation. Yet in this period, those imperatives often appear to widen the reach of provincial law rather than constrain it.

4.1 *Tsilhqot'in Nation v British Columbia*

***Tsilhqot'in Nation v British Columbia*, 2014 SCC 44**

The judgment of the Court was delivered by

THE CHIEF JUSTICE —

I. Introduction

[1] What is the test for Aboriginal title to land? If title is established, what rights does it confer? Does the British Columbia Forest Act, R.S.B.C. 1996, c. 157, apply to land covered by Aboriginal title? What are the constitutional constraints on provincial regulation of land under Aboriginal title? Finally, how are broader public interests to be reconciled with the rights conferred by Aboriginal title? These are among the important questions raised by this appeal.

[2] These reasons conclude:

- Aboriginal title flows from occupation in the sense of regular and exclusive use of land.
- In this case, Aboriginal title is established over the area designated by the trial judge.
- Aboriginal title confers the right to use and control the land and to reap the benefits flowing from it.
- Where title is asserted, but has not yet been established, s. 35 of the *Constitution Act, 1982* requires the Crown to consult with the group asserting title and, if appropriate, accommodate its interests.
- Once Aboriginal title is established, s. 35 of the *Constitution Act, 1982* permits incursions on it only with the consent of the Aboriginal group or if they are justified by a compelling and substantial public purpose and are not inconsistent with the Crown's fiduciary duty to the Aboriginal group; for purposes of determining the validity of provincial legislative incursions on lands held under Aboriginal title, this framework displaces the doctrine of interjurisdictional immunity.
- In this case, the Province's land use planning and forestry authorizations were inconsistent with its duties owed to the Tsilhqot'in people.

…

VIII. Provincial Laws and Aboriginal Title

[98] As discussed, I have concluded that the Province breached its duty to consult and accommodate the Tsilhqot'in interest in the land. This is sufficient to dispose of the appeal.

[99] However, the parties made extensive submissions on the application of the *Forest Act* to Aboriginal title land. This issue was dealt with by the courts below and is of pressing importance to the Tsilhqot'in people and other Aboriginal groups in British Columbia and elsewhere. It is therefore appropriate that we deal with it.

[100] The following questions arise: (1) Do provincial laws of general application apply to land held under Aboriginal title and, if so, how? (2) Does the British Columbia *Forest Act* on its face apply to land held under Aboriginal title? and (3) If the *Forest Act* on its face applies, is its application ousted by the operation of the Constitution of Canada? I will discuss each of these questions in turn.

A. *Do Provincial Laws of General Application Apply to Land Held Under Aboriginal Title?*

[101] Broadly put, provincial laws of general application apply to lands held under Aboriginal title. However, as we shall see, there are important constitutional limits on this proposition.

[102] As a general proposition, provincial governments have the power to regulate land use within the province. This applies to all lands, whether held by the Crown, by private owners, or by the holders of Aboriginal title. The foundation for this power lies in s. 92(13) of the *Constitution Act, 1867*, which gives the provinces the power to legislate with respect to property and civil rights in the province.

[103] Provincial power to regulate land held under Aboriginal title is constitutionally limited in two ways. First, it is limited by s. 35 of the *Constitution Act, 1982*. Section 35 requires any abridgment of the rights flowing from Aboriginal title to be backed by a compelling and substantial governmental objective and to be consistent with the Crown's fiduciary relationship with title holders. Second, a province's power to regulate lands under Aboriginal title may in some situations also be limited by the federal power over "Indians, and Lands reserved for the Indians" under s. 91(24) of the *Constitution Act, 1867*.

[104] This Court suggested in *Sparrow* that the following factors will be relevant in determining whether a law of general application results in a meaningful diminution of an Aboriginal right, giving rise to breach: (1) whether the limitation imposed by the legislation is unreasonable; (2) whether the legislation imposes undue hardship; and (3) whether the legislation denies the holders of the right their preferred means of exercising the right (p. 1112). All three factors must be considered; for example, even if laws of general application are found to be reasonable or not to cause undue hardship, this does not mean that there can be no infringement of Aboriginal title. As stated in *Gladstone*:

> Simply because one of [the *Sparrow*] questions is answered in the negative will not prohibit a finding by a court that a *prima facie* infringement has taken place; it will just be one factor for a court to consider in its determination of whether there has been a *prima facie* infringement. [para. 43]

[105] It may be predicted that laws and regulations of general application aimed at protecting the environment or assuring the continued health of the forests of British Columbia will usually be reasonable, not impose an undue hardship either directly or indirectly, and not interfere with the Aboriginal group's preferred method of exercising their right. And it is to be hoped that Aboriginal groups and the provincial government will work cooperatively to sustain the natural environment so important to them both. This said, when conflicts arise, the foregoing template serves to resolve them.

[106] Subject to these constitutional constraints, provincial laws of general application apply to land held under Aboriginal title.

…

[117] The next question is whether the provincial legislature lacks the constitutional power to legislate with respect to forests on Aboriginal title land. Currently, the *Forest Act* applies to lands under claim, but not to lands over which Aboriginal title has been confirmed. However, the provincial legislature could amend the Act so as to explicitly apply to lands over which title has been confirmed. This raises the question of whether provincial forestry legislation that on its face purports to apply to Aboriginal title lands is ousted by the Constitution.

1. Section 35 of the *Constitution Act, 1982*

[see Chapter 12, Part 5.3 on s. 35]

2. The Division of Powers

[128] The starting point, as noted, is that, as a general matter, the regulation of forestry within the Province falls under its power over property and civil rights under s. 92(13) of the *Constitution Act, 1867*. To put it in constitutional terms, regulation of forestry is in "pith and substance" a provincial matter. Thus, the *Forest Act* is consistent with the division of powers unless it is ousted by a competing federal power, even though it may incidentally affect matters under federal jurisdiction.

[129] "Indians, and Lands reserved for the Indians" falls under federal jurisdiction pursuant to s. 91(24) of the *Constitution Act, 1867*. As such, forestry on Aboriginal title land falls under both the provincial power over forestry in the province and the federal power over "Indians". Thus, for constitutional purposes, forestry on Aboriginal title land possesses a double aspect, with both levels of government enjoying concurrent jurisdiction. Normally, such concurrent legislative power creates no conflicts — federal and provincial governments cooperate productively in many areas of double aspect such as, for example, insolvency and child custody. However, in cases where jurisdictional disputes arise, two doctrines exist to resolve them.

[130] First, the doctrine of paramountcy applies where there is conflict or inconsistency between provincial and federal law, in the sense of impossibility of dual compliance or frustration of federal purpose. In the case of such conflict or inconsistency, the federal law prevails. Therefore, if the application of valid provincial legislation, such as the *Forest Act*, conflicts with valid federal legislation enacted pursuant to Parliament's power over "Indians", the latter would trump the former. No such inconsistency is alleged in this case.

[131] Second, the doctrine of interjurisdictional immunity applies where laws enacted by one level of government impair the protected core of jurisdiction possessed by the other level of government. Interjurisdictional immunity is premised on the idea that since federal and provincial legislative powers under ss. 91 and 92 of the *Constitution Act, 1867* are exclusive, each level of government enjoys a basic unassailable core of power on which the other level may not intrude. In considering whether provincial legislation such as the *Forest Act* is ousted pursuant to interjurisdictional immunity, the court must ask two questions. First, does the provincial legislation touch on a protected core of federal power? And second, would application of the provincial law significantly trammel or impair the federal power? (*Quebec (Attorney General) v. Canadian Owners and Pilots Association*, 2010 SCC 39, [2010] 2 SCR 536).

[132] The trial judge held that interjurisdictional immunity rendered the provisions of the *Forest Act* inapplicable to land held under Aboriginal title because provisions authorizing management, acquisition, removal and sale of timber on such lands affect the core of the federal power over "Indians". He placed considerable reliance on *R. v. Morris*, 2006 SCC 59, [2006] 2 SCR 915, in which this Court held that only Parliament has the power to derogate from rights conferred by a treaty because treaty rights are within the core of the federal power over "Indians". It follows, the trial judge reasoned, that, since Aboriginal rights are akin to treaty rights, the Province has no power to legislate with respect to forests on Aboriginal title land.

[133] The reasoning accepted by the trial judge is essentially as follows. Aboriginal rights fall at the core of federal jurisdiction under s. 91(24) of the *Constitution Act, 1867*. Interjurisdictional immunity applies to matters at the core of s. 91(24). Therefore, provincial governments are constitutionally prohibited from legislating in a way that limits Aboriginal rights. This reasoning leads to a number of difficulties.

[134] The critical aspect of this reasoning is the proposition that Aboriginal rights fall at the core of federal regulatory jurisdiction under s. 91(24) of the *Constitution Act, 1867*.

[135] The jurisprudence on whether s. 35 rights fall at the core of the federal power to legislate with respect to "Indians" under s. 91(24) is somewhat mixed. While no case has held that Aboriginal rights, such as Aboriginal title to land, fall at the core of the federal power under s. 91(24), this has been stated in *obiter dicta.* However, this Court has also stated in *obiter dicta* that provincial governments are constitutionally permitted to infringe Aboriginal rights where such infringement is justified pursuant to s. 35 of the *Constitution Act, 1982* — this latter proposition being inconsistent with the reasoning accepted by the trial judge.

[136] In *R. v. Marshall*, 1999 CanLII 666 (SCC), [1999] 3 SCR 533, this Court suggested that interjurisdictional immunity did not apply where provincial legislation conflicted with treaty rights. Rather, the s. 35 *Sparrow* framework was the appropriate tool with which to resolve the conflict:

> …the federal and provincial governments [have the authority] within their respective legislative fields to regulate the exercise of the treaty right subject to the constitutional requirement that restraints on the exercise of the treaty right have to be justified on the basis of conservation or other compelling and substantial public objectives … . [para. 24]

[137] More recently however, in *Morris*, this Court distinguished *Marshall* on the basis that the treaty right at issue in *Marshall* was a commercial right. The Court in *Morris* went on to hold that interjurisdictional immunity prohibited any provincial infringement of the non-commercial treaty right in that case, whether or not such an infringement could be justified under s. 35 of the *Constitution Act, 1982*.

[138] Beyond this, the jurisprudence does not directly address the relationship between interjurisdictional immunity and s. 35 of the *Constitution Act, 1982*. The ambiguous state of the jurisprudence has created unpredictability. It is clear that where valid *federal* law interferes with an Aboriginal or treaty right, the s. 35 *Sparrow* framework governs the law's applicability. It is less clear, however, that it is so where valid *provincial* law interferes with an Aboriginal or treaty right. The jurisprudence leaves the following questions unanswered. Does interjurisdictional immunity prevent provincial governments from ever limiting Aboriginal rights even if a particular infringement would be justified under the *Sparrow* framework? Is provincial interference with Aboriginal rights treated differently than treaty rights? And, are commercial Aboriginal rights treated differently than non-commercial Aboriginal rights? No case has addressed these questions explicitly, as I propose to do now.

[139] As discussed, s. 35 of the *Constitution Act, 1982* imposes limits on how both the federal and provincial governments can deal with land under Aboriginal title. Neither level of government is permitted to legislate in a way that results in a meaningful diminution of an Aboriginal or treaty right, unless such an infringement is justified in the broader public interest and is consistent with the Crown's fiduciary duty owed to the Aboriginal group. The result is to protect Aboriginal and treaty rights while also allowing the reconciliation of Aboriginal interests with those of the broader society.

[140] What role then is left for the application of the doctrine of interjurisdictional immunity and the idea that Aboriginal rights are at the core of the federal power over "Indians" under s. 91(24) of the *Constitution Act, 1867*? The answer is none.

[141] The doctrine of interjurisdictional immunity is directed to ensuring that the two levels of government are able to operate without interference in their core areas of exclusive jurisdiction. This goal is not implicated in cases such as this. Aboriginal rights are a limit on both federal and provincial jurisdiction.

[142] The guarantee of Aboriginal rights in s. 35 of the *Constitution Act, 1982*, like the *Canadian Charter of Rights and Freedoms*, operates as a limit on federal and provincial legislative powers. The *Charter* forms Part I of the *Constitution Act, 1982*, and the guarantee of Aboriginal rights forms Part II. Parts I and II are sister provisions, both operating to limit governmental powers, whether federal or provincial. Part II Aboriginal rights, like Part I *Charter* rights, are held *against* government — they operate to *prohibit* certain types of regulation which governments could otherwise impose. These limits have nothing to do with whether something lies at the core of the federal government's powers.

…

[144] The doctrine of interjurisdictional immunity is designed to deal with conflicts between provincial powers and federal powers; it does so by carving out areas of exclusive jurisdiction for each level of government. But the problem in cases such as this is not competing provincial and federal powers, but rather tension between the right of the Aboriginal title holders to use their land as they choose and the province which seeks to regulate it, like all other land in the province.

[145] Moreover, application of interjurisdictional immunity in this area would create serious practical difficulties.

[146] First, application of interjurisdictional immunity would result in two different tests for assessing the constitutionality of provincial legislation affecting Aboriginal rights. Pursuant to *Sparrow*, provincial regulation is unconstitutional if it results in a meaningful diminution of an Aboriginal right that cannot be justified pursuant to s. 35 of the *Constitution Act, 1982*. Pursuant to interjurisdictional immunity, provincial regulation would be unconstitutional if it impaired an Aboriginal right, whether or not such limitation was reasonable or justifiable. The result would be dueling tests directed at answering the same question: How far can provincial governments go in regulating the exercise of s. 35 Aboriginal rights?

[147] Second, in this case, applying the doctrine of interjurisdictional immunity to exclude provincial regulation of forests on Aboriginal title lands would produce uneven, undesirable results and may lead to legislative vacuums. The result would be patchwork regulation of forests — some areas of the province regulated under provincial legislation, and other areas under federal legislation or no legislation at all. This might make it difficult, if not impossible, to deal effectively with problems such as pests and fires, a situation desired by neither level of government.

[148] Interjurisdictional immunity — premised on a notion that regulatory environments can be divided into watertight jurisdictional compartments — is often at odds with modern reality. Increasingly, as our society becomes more complex, effective regulation requires cooperation between interlocking federal and provincial schemes. The two levels of government possess differing tools, capacities, and expertise, and the more flexible double aspect and paramountcy doctrines are alive to this reality: under these doctrines, jurisdictional cooperation is encouraged up until the point when actual conflict arises and must be resolved. Interjurisdictional immunity, by contrast, may thwart such productive cooperation. In the case of forests on Aboriginal title land, courts would have to scrutinize provincial forestry legislation to ensure that it did not impair the core of federal jurisdiction over "Indians" and would also have to scrutinize any federal legislation to ensure that it did not impair the core of the province's power to manage the forests. It would be no answer that, as in this case, both levels of government agree that the laws at issue should remain in force.

[149] This Court has recently stressed the limits of interjurisdictional immunity. "[C]onstitutional doctrine must facilitate, not undermine what this Court has called 'co-operative federalism'" and as such "a court should favour, where possible, the ordinary operation of statutes enacted by both levels of government" (*Canadian Western Bank v. Alberta*, 2007 SCC 22, [2007] 2 SCR 3, at paras. 24 and 37 (emphasis deleted)). Because of this, interjurisdictional immunity is of "limited application" and should be applied "with restraint" (paras. 67 and 77). These propositions have been confirmed in more recent decisions: *Marine Services International Ltd. v. Ryan Estate*, 2013 SCC 44, [2013] 3 SCR 53; *Canada (Attorney General) v. PHS Community Services Society*, 2011 SCC 44, [2011] 3 SCR 134.

[150] *Morris*, on which the trial judge relied, was decided prior to this Court's articulation of the modern approach to interjurisdictional immunity in *Canadian Western Bank* and *Canadian Owners and Pilots Association*, and so is of limited precedential value on this subject as a result (see *Marine Services*, at para. 64). To the extent that *Morris* stands for the proposition that provincial governments are categorically barred from regulating the exercise of Aboriginal rights, it should no longer be followed. I find that, consistent with the statements in *Sparrow* and *Delgamuukw*, provincial regulation of general application will apply to exercises of Aboriginal rights, including Aboriginal title land, subject to the s. 35 infringement and justification framework. This carefully calibrated test attempts to reconcile general legislation with Aboriginal rights in a sensitive way as required by s. 35 of the *Constitution Act, 1982* and is fairer and more practical from a policy perspective than the blanket inapplicability imposed by the doctrine of interjurisdictional immunity.

[151] For these reasons, I conclude that the doctrine of interjurisdictional immunity should not be applied in cases where lands are held under Aboriginal title. Rather, the s. 35 *Sparrow* approach should govern. Provincial laws of general application, including the *Forest Act*, should apply unless they are unreasonable, impose a hardship or deny the title holders their preferred means of exercising their rights, and such restrictions cannot be justified pursuant to the justification framework outlined above. The result is a balance that preserves the Aboriginal right while permitting effective regulation of forests by the province, as required by s. 35 of the *Constitution Act, 1982*.

[152] The s. 35 framework applies to exercises of both provincial and federal power: *Sparrow*; *Delgamuukw*. As such, it provides a complete and rational way of confining provincial legislation affecting Aboriginal title land within appropriate constitutional bounds. The issue in cases such as this is not at base one of conflict between the federal and provincial levels of government — an issue appropriately dealt with by the doctrines of paramountcy and interjurisdictional immunity where precedent supports this — but rather how far the provincial government can go in regulating land that is subject to Aboriginal title or claims for Aboriginal title. The appropriate constitutional lens through which to view the matter is s. 35 of the *Constitution Act*, *1982*, which directly addresses the requirement that these interests must be respected by the government, unless the government can justify incursion on them for a compelling purpose and in conformity with its fiduciary duty to affected Aboriginal groups.

4.2 *Grassy Narrows First Nation v. Ontario (Natural Resources)*

The logic of *Tsilhqot'in*, that provincial laws may apply to Aboriginal title lands if justified under section 35, was extended just months later in *Grassy Narrows First Nation v. Ontario (Natural Resources)*, 2014 SCC 48. There, the Court applied the same framework to treaty rights. It held that Ontario, as the province with underlying title, could "take up" lands under Treaty 3 without federal approval, even where doing so would affect the treaty harvesting rights of First Nations. As in *Tsilhqot'in*, the Court rejected the relevance of the doctrine of interjurisdictional immunity and confirmed that provincial legislation affecting constitutionally protected Indigenous rights must be assessed through the lens of justification, not federal exclusivity.

At the same time, the Court affirmed that both federal and provincial levels of government bear constitutional obligations under treaties. Treaty rights are not simply federal matters; they bind the Crown in right of each jurisdiction.

***Grassy Narrows First Nation v. Ontario (Natural Resources)*, 2014 SCC 48**

The judgment of the Court was delivered by

The Chief Justice —

I. Overview

[1] In the early 1870s, Canada was a young country looking to promote Western expansion and Confederation. Settlers travelled west along an immigrant travel route called the Dawson Route, and British Columbia agreed to join Confederation on the condition that Canada build a transcontinental railway. But the immigrant travel route and the prospective railway to the west ran through traditional Ojibway land in what is now Northwestern Ontario and Eastern Manitoba. Canada was concerned about the security of immigrant travellers and surveyors preparing for the construction of the Canadian Pacific Railway ("CPR"), and feared that it may need to station troops in the area. Securing a safe route through the Ojibway lands was critical for the addition of British Columbia to Confederation and to the development of the West. It was against this historical backdrop that Treaty 3, which is at the heart of this case, was negotiated.

[2] In 1873, Treaty 3 was signed by treaty commissioners acting on behalf of the Dominion of Canada and Chiefs of the Ojibway. The Ojibway yielded ownership of their territory, except for certain lands reserved to them. In return, the Ojibway received annuity payments, goods, and the right to harvest the non-reserve lands surrendered by them until such time as they were "taken up" for settlement, mining, lumbering, or other purposes by the Government of the Dominion of Canada.

[3] The Treaty 3 lands include the Keewatin area. At the time Treaty 3 was concluded, the Keewatin area was under the exclusive control of Canada. In 1912, it was annexed to Ontario through *The Ontario Boundaries Extension Act*, S.C. 1912, c. 40 ("1912 Legislation"), and since that time, Ontario has issued licences for the development of lands in the Keewatin area. In 2005, the Grassy Narrows First Nation, descendents of the Ojibway signatories of Treaty 3, commenced an action challenging a forestry licence for lands that fell within the Keewatin area. The legal issue in this case is whether Ontario can "take up" lands in the Keewatin area under Treaty 3 so as to limit the harvesting rights under the treaty, or whether it needs federal authorization to do so.

[4] I conclude that Ontario has the authority to take up lands in the Keewatin area so as to limit the harvesting rights set out in Treaty 3. By virtue of ss. 109, 92A, and 92(5) of the *Constitution Act, 1867*, Ontario alone has the ability to take up Treaty 3 land and regulate it in accordance with the treaty and its obligations under s. 35 of the *Constitution Act, 1982*. A two-step process involving federal approval for provincial taking up was not contemplated by Treaty 3.

…

[35] The promises made in Treaty 3 were promises of the Crown, not those of Canada. Both levels of government are responsible for fulfilling these promises when acting within the division of powers under the *Constitution Act, 1867*. Thus, when the lands covered by the treaty were determined to belong to the Province of Ontario, the Province became responsible for their governance with respect to matters falling under its jurisdiction by virtue of ss. 109, 92(5) and 92A of the *Constitution Act, 1867*, subject to the terms of the treaty. It follows that the Province is entitled to take up lands under the treaty for forestry purposes.

[36] The appellants further argue that s. 91(24) of the *Constitution Act, 1867* grants Canada a residual and continuing role in respect of the taking up of Treaty 3 lands. Section 91(24) provides that Canada has jurisdiction over "Indians, and Lands reserved for the Indians". Thus, the appellants submit that the trial judge's two-step process is merely a restatement of the double aspect doctrine: to the extent that any taking up displaces or limits the federally promised treaty rights, both aspects of the land or resource must be addressed — the provincial aspect of the land *qua* proprietary rights and the federal aspect of the land as subject to a treaty right (Grassy Narrows' factum, at para. 66).

[37] Section 91(24) does not give Canada the authority to take up provincial land for exclusively provincial purposes, such as forestry, mining, or settlement. Thus, s. 91(24) does not require Ontario to obtain federal approval before it can take up land under Treaty 3. While s. 91(24) allows the federal government to enact legislation dealing with Indians and lands reserved for Indians that may have incidental effects on provincial land, the applicability of provincial legislation that affects treaty rights through the taking up of land is determined by *Mikisew Cree First Nation v. Canada (Minister of Canadian Heritage)*, 2005 SCC 69, [2005] 3 SCR 388, and by s. 35 of the *Constitution Act, 1982*.

…

B. *Does the Doctrine of Interjurisdictional Immunity Preclude Ontario From Justifying Infringement of Treaty 3 Rights?*

[53] I have concluded that Ontario has the power to take up lands in the Keewatin area under Treaty 3, without federal approval or supervision. Provided it does so in a manner that respects the requirements set out in *Mikisew*, doing this does not breach Treaty 3 harvesting rights. If Ontario's taking up of Keewatin lands amounts to an infringement of the treaty, the *Sparrow/Badger* analysis under s. 35 of the *Constitution Act, 1982* will determine whether the infringement is justified (*R. v. Sparrow*, 1990 CanLII 104 (SCC), [1990] 1 SCR 1075; *R. v. Badger*, 1996 CanLII 236 (SCC), [1996] 1 SCR 771). The doctrine of interjurisdictional immunity does not preclude the Province from justifiably infringing treaty rights (*Tsilhqot'in Nation v. British Columbia*, 2014 SCC 44, [2014] 2 SCR 256). While it is unnecessary to consider this issue, this Court's decision in *Tsilhqot'in Nation* is a full answer.

VII. Conclusion

[54] I would dismiss this appeal.

4.3 *Daniels v Canada (Indian Affairs and Northern Development)*

Together, *Tsilhqot'in* and *Grassy Narrows* confirmed a major doctrinal shift. With the retreat from interjurisdictional immunity, the Court held that both federal and provincial governments could justifiably infringe those rights, provided they met their constitutional obligations under the honour of the Crown.

In *Daniels*, the Court turned from land to people. It resolved a long-standing ambiguity by confirming that Métis and non-status Indians fall within the first head of power in section 91(24). While the decision did not confer specific rights or entitlements, it extended the personal scope of federal jurisdiction and reinforced the idea that section 91(24) carries constitutional responsibility, not merely legislative authority.

***Daniels v Canada (Indian Affairs and Northern Development)*, 2016 SCC 12**

The judgment of the Court was delivered by

[1] Abella J. — As the curtain opens wider and wider on the history of Canada's relationship with its Indigenous peoples, inequities are increasingly revealed and remedies urgently sought. Many revelations have resulted in good faith policy and legislative responses, but the list of disadvantages remains robust. This case represents another chapter in the pursuit of reconciliation and redress in that relationship.

…

[4] The trial judge, Phelan J., made a number of key factual findings in his thoughtful and thorough reasons. As early as 1818, the government used "Indian" as a general term to refer to communities of mixed Aboriginal and European background. The federal government considered Métis to be "Indians" in various treaties and pre-Confederation statutes, and considered Métis to be "Indians" under s. 91(24) in various statutes and policy initiatives spanning from Confederation to modern day. Moreover, the purpose of s. 91(24) was closely related to the expansionist goals of Confederation. The historical and legislative evidence shows that expanding the country across the West was one of the primary goals of Confederation. Building a national railway was a key component of this plan.

[5] Accordingly, the purposes of s. 91(24) were "to control Native people and communities where necessary to facilitate development of the Dominion; to honour the obligations to Natives that the Dominion inherited from Britain . . . [and] eventually to civilize and assimilate Native people": para. 353. Since much of the North-Western Territory was occupied by Métis, only a definition of "Indians" in s. 91(24) that included "a broad range of people sharing a Native hereditary base" (para. 566) would give Parliament the necessary authority to pursue its agenda.

[6] His conclusion was that in its historical, philosophical, and linguistic contexts, "Indians" under s. 91(24) is a broad term referring to all Indigenous peoples in Canada, including non-status Indians and Métis.

[7] He found that since neither the federal nor provincial governments acknowledged that they had jurisdiction over Métis and non-status Indians, the declaration would alleviate the constitutional uncertainty and the resulting denial of material benefits. There was therefore practical utility to the first declaration being granted, namely, that Métis and non-status Indians are included in what is meant by "Indians" in s. 91(24). He did not restrict the definition of either group.

…

[13] Both federal and provincial governments have, alternately, denied having legislative authority over non-status Indians and Métis. As the trial judge found, when Métis and non-status Indians have asked the federal government to assume legislative authority over them, it tended to respond that it was precluded from doing so by s. 91(24). And when Métis and non-status Indians turned to provincial governments, they were often refused on the basis that the issue was a federal one.

[14] This results in these Indigenous communities being in a jurisdictional wasteland with significant and obvious disadvantaging consequences, as was recognized by Phelan J.:

> One of the results of the positions taken by the federal and provincial governments and the "political football — buck passing" practices is that financially [Métis and non-status Indians] have been deprived of significant funding for their affairs… .
>
> …the political/policy wrangling between the federal and provincial governments has produced a large population of collaterally damaged [Métis and non-status Indians]. They are deprived of programs, services and intangible benefits recognized by all governments as needed. [paras. 107-8]

See also *Lovelace v. Ontario*, 2000 SCC 37 (CanLII), [2000] 1 SCR 950, at para. 70.

[15] With federal and provincial governments refusing to acknowledge jurisdiction over them, Métis and non-status Indians have no one to hold accountable for an inadequate status quo. The Crown's argument, however, was that since a finding of jurisdiction under s. 91(24) does not create a duty to legislate, it is inappropriate to answer a jurisdictional question in a legislative vacuum. It is true that finding Métis and non-status Indians to be "Indians" under s. 91(24) does not create a duty to legislate, but it has the undeniably salutary benefit of ending a jurisdictional tug-of-war in which these groups were left wondering about where to turn for policy redress. The existence of a legislative vacuum is self-evidently a reflection of the fact that neither level of government has acknowledged constitutional responsibility. A declaration would guarantee both certainty and accountability, thereby easily reaching the required jurisprudential threshold of offering the tangible practical utility of the resolution of a longstanding jurisdictional dispute.

[16] We are left then to determine whether Métis and non-status Indians are in fact included in the scope of s. 91(24).

[17] There is no consensus on who is considered Métis or a non-status Indian, nor need there be. Cultural and ethnic labels do not lend themselves to neat boundaries. 'Métis' can refer to the historic Métis community in Manitoba's Red River Settlement or it can be used as a general term for anyone with mixed European and Aboriginal heritage. Some mixed-ancestry communities identify as Métis, others as Indian:

> There is no one exclusive Metis People in Canada, anymore than there is no one exclusive Indian people in Canada. The Metis of eastern Canada and northern Canada are as distinct from Red River Metis as any two peoples can be. . . . As early as 1650, a distinct Metis community developed in LeHeve [*sic*], Nova Scotia, separate from Acadians and Micmac Indians. All Metis are aboriginal people. All have Indian ancestry.
>
> (R. E. Gaffney, G. P. Gould and A. J. Semple, *Broken Promises: The Aboriginal Constitutional Conferences* (1984), at p. 62, quoted in Catherine Bell, "Who Are The Metis People in Section 35(2)?" (1991), 29 *Alta. L. Rev.* 351, at p. 356.)

[18] The definitional contours of 'non-status Indian' are also imprecise. Status Indians are those who are recognized by the federal government as registered under the *Indian Act*, R.S.C. 1985, c. I-5. Non-status Indians, on the other hand, can refer to Indians who no longer have status under the *Indian Act*, or to members of mixed communities who have never been recognized as Indians by the federal government.

Some closely identify with their Indian heritage, while others feel that the term Métis is more reflective of their mixed origins.

[19] These definitional ambiguities do not preclude a determination into whether the two groups, however they are defined, are within the scope of s. 91(24). I agree with the trial judge and Federal Court of Appeal that the historical, philosophical, and linguistic contexts establish that "Indians" in s. 91(24) includes *all* Aboriginal peoples, including non-status Indians and Métis.

…

[23] In fact, "Indians" has long been used as a general term referring to all Indigenous peoples, including mixed-ancestry communities like the Métis. The term was created by European settlers and applied to Canada's Aboriginal peoples without making any distinction between them. As author Thomas King explains in *The Inconvenient Indian*:

> No one really believed that there was only one Indian. No one ever said there was only one Indian. But as North America began to experiment with its "Indian programs," it did so with a "one size fits all" mindset. Rather than see tribes as an arrangement of separate nation states in the style of the Old World, North America imagined that Indians were basically the same. [p. 83]

[24] Before and after Confederation, the government frequently classified Aboriginal peoples with mixed European and Aboriginal heritage as Indians. Métis were considered "Indians" for pre-Confederation treaties such as the Robinson Treaties of 1850. Many post-Confederation statutes considered Métis to be "Indians", including the 1868 statute entitled *An Act providing for the organisation of the Department of the Secretary of State of Canada, and for the management of Indian and Ordnance Lands*, S.C. 1868, c. 42.

[25] Historically, the purpose of s. 91(24) in relation to the broader goals of Confederation also indicates that since 1867, "Indians" meant all Aboriginal peoples, including Métis. The trial judge found that expanding British North America across Rupert's Land and the North-West Territories was a major goal of Confederation and that building a national railway was a key component of this plan. At the time, that land was occupied by a large and diverse Aboriginal population, including many Métis. A good relationship with all Aboriginal groups was required to realize the goal of building "the railway and other measures which the federal government would have to take." With jurisdiction over Aboriginal peoples, the new federal government could "protect the railway from attack" and ensure that they did not resist settlement or interfere with construction of the railway. Only by having authority over *all* Aboriginal peoples could the westward expansion of the Dominion be facilitated.

…

[34] Moreover, while it does not define the scope of s. 91(24), it is worth noting that s. 35 of the *Constitution Act, 1982* states that Indian, Inuit, *and* Métis peoples are Aboriginal peoples for the purposes of the Constitution. This Court recently explained that the "grand purpose" of s. 35 is "[t]he reconciliation of Aboriginal and non-Aboriginal Canadians in a mutually respectful long-term relationship": *Beckman v. Little Salmon/Carmacks First Nation*, 2010 SCC 53 (CanLII), [2010] 3 SCR 103, at para. 10. And in *R. v. Sparrow*, 1990 CanLII 104 (SCC), [1990] 1 SCR 1075, this Court noted that ss. 35 and 91(24) should be read together: p. 1109, cited in *Manitoba Metis Federation Inc. v. Canada (Attorney General)*, 2013 SCC 14 (CanLII), [2013] 1 SCR 623, at para. 69.

[35] The term "Indian" or "Indians" in the constitutional context, therefore, has two meanings: a broad meaning, as used in s. 91(24), that includes both Métis and Inuit and can be equated with the term "aboriginal peoples of Canada" used in s. 35, and a narrower meaning that distinguishes Indian bands from other Aboriginal peoples. As will be noted later in these reasons, this Court in *Reference as to whether "Indians" in s. 91(24) of the B.N.A. Act includes Eskimo inhabitants of the Province of Quebec*, 1939 CanLII 22 (SCC), [1939] SCR 104 ("*Re Eskimo*"), held that s. 91(24) includes the Inuit. Since the federal government concedes that s. 91(24) includes non-status Indians, it would be constitutionally anomalous, as the Crown also conceded, for the Métis to be the only Aboriginal people to be recognized and included in s. 35 yet excluded from the constitutional scope of s. 91(24).

[36] The *Report of the Royal Commission on Aboriginal Peoples*, released in 1996, stressed the importance of rebuilding the Crown's relationship with Aboriginal peoples in Canada, including the Métis: see vol. 3, *Gathering Strength*. The Report called on the federal government to "recognize that Métis people . . . are included in the federal responsibilities set out in section 91(24) of the *Constitution Act, 1867*": vol. 2, *Restructuring the Relationship*, at p. 66. The importance of this reconstruction was also recognized in the final report of the Truth and Reconciliation Commission of Canada: *Honouring the Truth, Reconciling for the Future: Summary of the Final Report of the Truth and Reconciliation Commission of Canada* (2015), at p. 183; see also *Mikisew Cree First Nation v. Canada (Minister of Canadian Heritage)*, 2005 SCC 69 (CanLII), [2005] 3 SCR 388, at para. 1, and *Lax Kw'alaams Indian Band v. Canada (Attorney General)*, 2011 SCC 56 (CanLII), [2011] 3 SCR 535, at para. 12.

[37] The constitutional changes, the apologies for historic wrongs, a growing appreciation that Aboriginal and non-Aboriginal people are partners in Confederation, the *Report of the Royal Commission on Aboriginal Peoples*, and the *Final Report of the Truth and Reconciliation Commission of Canada*, all indicate that reconciliation with *all* of Canada's Aboriginal peoples is Parliament's goal.

[38] The jurisprudence also supports the conclusion that Métis are "Indians" under s. 91(24). There is no case directly on point, but by identifying which groups have already been recognized as "Indians" under this head of power and by establishing principles governing who can be considered "Indians", the existing cases provide guidance.

[39] In *Re Eskimo*, this Court had to determine whether the Inuit were "Indians" under s. 91(24) of the *Constitution Act, 1867*. Relying on historical evidence to determine the meaning of "Indians" in 1867, the Court drew heavily from the 1858 *Report from the Select Committee on the Hudson's Bay Company*. Acting on behalf of the federal government, the Hudson's Bay Company had conducted a survey of Rupert's Land and the North-Western Territories in which the Inuit were classified as Indians. The Court found that while the Inuit had their own language, culture, and identities separate from that of the "Indian tribes" in other parts of the country, they were "Indians" under s. 91(24) on the basis of this survey. It follows from this case that a unique culture and history, and self-identification as a distinct group, are not bars to being included as "Indians" under s. 91(24).

…

[46] A broad understanding of "Indians" under s. 91(24) as meaning 'Aboriginal peoples', resolves the definitional concerns raised by the parties in this case. Since s. 91(24) includes all Aboriginal peoples, including Métis and non-status Indians, there is no need to delineate which mixed-ancestry communities are Métis and which are non-status Indians. They are all "Indians" under s. 91(24) by virtue of the fact that they are all Aboriginal peoples.

[47] Determining whether particular individuals or communities are non-status Indians or Métis and therefore "Indians" under s. 91(24), is a fact-driven question to be decided on a case-by-case basis in the future, but it brings us to whether, for purposes of s. 91(24), Métis should be restricted to the definitional criteria set out in *Powley* in accordance with the decision of the Federal Court of Appeal, or whether, as the appellants and some of the interveners urged, the membership base should be broader.

[48] The issue in *Powley* was who is Métis under s. 35 of the *Constitution Act, 1982*. The case involved two Métis hunters who were charged with violating the *Game and Fish Act*, R.S.O. 1990, c. G.1. They claimed that the Métis had an Aboriginal right to hunt for food under s. 35(1). The Court agreed and suggested three criteria for defining who qualifies as Métis for purposes of s. 35(1):

a. Self-identification as Métis;

b. An ancestral connection to an historic Métis community; and

c. Acceptance by the modern Métis community.

[49] The third criterion — community acceptance — raises particular concerns in the context of this case. The criteria in *Powley* were developed specifically for purposes of applying s. 35, which is about protecting historic community-held rights: para. 13. That is why acceptance by the community was found to be, for purposes of who is included as Métis under s. 35, a prerequisite to holding those rights. Section 91(24) serves a very different constitutional purpose. It is about the federal government's relationship with Canada's Aboriginal peoples. This includes people who may no longer be accepted by their communities because they were separated from them as a result, for example, of government policies such as Indian Residential Schools. There is no principled reason for presumptively and arbitrarily excluding them from Parliament's protective authority on the basis of a "community acceptance" test.

[50] The first declaration should, accordingly, be granted as requested. Non-status Indians and Métis are "Indians" under s. 91(24) and it is the federal government to whom they can turn.

[51] But federal jurisdiction over Métis and non-status Indians does not mean that all provincial legislation pertaining to Métis and non-status Indians is inherently *ultra vires*. This Court has recognized that courts "should favour, where possible, the ordinary operation of statutes enacted by *both* levels of government": *Canadian Western Bank v. Alberta*, 2007 SCC 22 (CanLII), [2007] 2 SCR 3, at para. 37 (emphasis in original). Moreover, this Court has been clear that federal authority under s. 91(24) does not bar valid provincial schemes that do not impair the core of the "Indian" power: *NIL/TU,O Child and Family Services Society v. B.C. Government and Service Employees' Union*, 2010 SCC 45 (CanLII), [2010] 2 SCR 696, at para. 3.

5 Indigenous peoples as peoples – toward legislative reconciliation

This final Part considers the most recent transformation in the interpretation of section 91(24). In *Reference re An Act respecting First Nations, Inuit and Métis children, youth and families*, 2024 SCC 5, the Supreme Court upheld the constitutionality of a federal statute that recognizes Indigenous jurisdiction over child and family services. The decision marks a doctrinal and conceptual shift in emphasis from treating s. 91(24) as a tool of federal control over "Indians" to understanding it as a basis for federal responsibility toward Indigenous peoples *as Indigenous peoples*: that is, as distinct legal and political communities.

The Court affirmed that Parliament may recognize the inherent right of self-government in specific domains and give legal effect to Indigenous laws through incorporation. Once incorporated, those laws have the force of federal law and prevail over inconsistent provincial statutes by operation of federal paramountcy. This restores a protective function to s. 91(24), not by excluding provincial jurisdiction, but by empowering Parliament to support Indigenous governance through valid federal legislation. Although the Court declined to declare that s.35 protects a right of self-government, it endorsed Parliament's authority to bind itself and the Crown to act *as if* the right exists.

This approach revives a thread from *Delgamuukw v British Columbia, 1997 CanLII 302 (SCC), [1997] 3 SCR 1010*, where the Court warned that separating federal jurisdiction over Indigenous peoples from jurisdiction over their lands would leave the Crown unable to safeguard their most vital interests. In both decisions, s. 91(24) supports not only the power to legislate, but also a constitutional obligation to protect Indigenous law and landholding. Section 91(24) begins to function not as a colonial power *over* Indigenous peoples and lands, but as an instrument of legislative support and an obligation *in relation to* those subjects.

The decision aligns with the theory of legislative reconciliation, which holds that Parliament plays an active role in implementing section 35. When legislation is co-developed with Indigenous governments and grounded in Indigenous law and the UN Declaration, it becomes a central means of advancing reconciliation. This Part invites reflection on how federal power under s. 91(24) might evolve if used consistently to support Indigenous jurisdiction across a broader range of fields, not only child welfare, but also health, education, land governance, and justice.

The case that follows points toward a new direction in Canadian federalism, one that supports legal pluralism, gives meaningful effect to Indigenous law, and reframes s. 91(24) as a source of constitutional renewal grounded in obligation, rather than an instrument of colonial control.

5.1 *Reference re An Act respecting First Nations, Inuit and Métis children, youth and families*

***Reference re An Act respecting First Nations, Inuit and Métis children, youth and families*, 2024 SCC 5**

English version of the judgment delivered by

THE COURT —

[1] In an order in council made on December 18, 2019, the Government of Quebec gave the province's Attorney General a mandate to challenge, through a reference to the Court of Appeal, the constitutionality of the *Act respecting First Nations, Inuit and Métis children, youth and families*, S.C. 2019, c. 24 ("Act"), on the ground that it exceeds the jurisdiction of the Parliament of Canada. Stating that the federal statute [TRANSLATION] "raises fundamental constitutional issues with regard particularly to the division of legislative powers and the constitutional architecture of Canada", the government referred the following constitutional question to the Quebec Court of Appeal:

> [TRANSLATION] Is the Act respecting First Nations, Inuit and Métis children, youth and families *ultra vires* the jurisdiction of the Parliament of Canada under the Constitution of Canada?
>
> (Order in council 1288-2019, (2020) 152 G.O. II, 154, at p. 155)

In answer to this question, the Court of Appeal held that the Act is constitutionally valid except for ss. 21 and 22(3), provisions that give the laws of Indigenous groups, communities or peoples priority over provincial laws and, as a result, exceed Parliament's jurisdiction.

[2] With the same question before it, this Court is of the opinion that the Act as a whole is constitutionally valid. It falls within Parliament's legislative jurisdiction over "Indians, and Lands reserved for the Indians" under s. 91(24) of the *Constitution Act, 1867*. Since it concerns relationships within Indigenous families and the control exercised by Indigenous communities over Indigenous children, the impugned Act relates first and foremost to what is called Indigeneity or "Indianness", that is, Indigenous peoples as Indigenous peoples, which requires its classification under s. 91(24) of the *Constitution Act, 1867*.

…

[5] The Act challenged in this reference is therefore directly in keeping with Canada's commitment to "implementing the United Nations Declaration on the Rights of Indigenous Peoples", as the first recital of its preamble confirms. The preamble to the Act also refers to the calls to action of the Truth and Reconciliation Commission of Canada asking governments to "implement the United Nations *Declaration on the Rights of Indigenous Peoples* as the framework for reconciliation" (*Honouring the Truth, Reconciling for the Future: Summary of the Final Report of the Truth and Reconciliation Commission of Canada* (2015), at p. 191, call to action No. 43). This echoes one of the calls for justice of the National Inquiry into Missing and Murdered Indigenous Women and Girls (see *Reclaiming Power and Place: The Final Report of the National Inquiry into Missing and Murdered Indigenous Women and Girls* (2019), vol. 1b, at pp. 167-218). At the centre of this process of reconciliation, the Act specifically addresses the harm caused to Indigenous children and their families. Its preamble states that "Parliament recognizes the legacy of residential schools and the harm, including intergenerational trauma, caused to Indigenous peoples by colonial policies and practices". In the preamble, Parliament also recognizes the "disruption" that Indigenous women and girls have experienced in their lives in relation to child services and "the importance of reuniting Indigenous children with their families and communities from whom they were separated in the context of the provision of child and family services". To achieve these aims, Parliament affirms the need "to respect the diversity of all Indigenous peoples, including the diversity of their laws", and "to eliminate the over-representation of Indigenous children in child and family services systems".

[6] Parliament embarked on this process of legislative reconciliation in favour of Indigenous children by taking an [TRANSLATION] "unusual" approach, as the Court of Appeal put it (2022 QCCA 185, at para. 515 (CanLII)). Section 8 sets out the three elements of the Act's purpose, which are all distinct legal avenues that are combined into an organic whole and have the same reconciliatory purpose: the affirmation for Canada, made by Parliament and binding on the Crown, of the vitality of Indigenous peoples' legislative authority in relation to child and family services, and the provision of such services on the basis of national standards. First, the Act's purpose is to "affirm the inherent right of self-government, which includes jurisdiction in relation to child and family services" (s. 8(a)). This affirmation relates to what the Act calls the "laws" of Indigenous groups, communities or peoples, and it expresses the idea that these would be the most appropriate laws to govern the situation of Indigenous children and families. Second — and somewhat in counterpoint to the first purpose mentioned — the Act sets out "principles applicable, on a national level, to the provision of child and family services in relation to Indigenous children" (s. 8(b)). The development by Parliament of national legislative standards to protect Indigenous children is a direct response to the fourth call to action made by the Truth and Reconciliation Commission. Third, the Act's purpose is also to "contribute to the implementation of the United Nations Declaration on the Rights of Indigenous Peoples" (s. 8(c)). Again, this purpose responds to the Truth and Reconciliation Commission's call for the Government of Canada to develop an action plan and other concrete measures to achieve the objectives of the Declaration.

[7] The three elements of the purpose set out in s. 8 reflect Parliament's openness to using three different types of legal norms that will be interwoven in this framework for reconciliation to ensure the well-being of Indigenous children: the legislative authority of Indigenous peoples in relation to child and family services, the legislative provisions enacted by Parliament to establish national standards, and the international standards referred to in the Declaration. The metaphor of "braiding" together these three types of norms has been helpfully proposed to explain how the Declaration should be implemented in Canada, so as to "work out how state law and Indigenous law could be interwoven, with guidance from international law, to form a single, strong rope" (G. Christie, "Indigenous Legal Orders, Canadian Law and UNDRIP", in *UNDRIP Implementation: Braiding International, Domestic and Indigenous Laws* (2017), 48, at p. 48; see also O. Fitzgerald and R. Schwartz, "Introduction", *ibid.*, 1, at p. 3).

[8] Announced in s. 8 and carried out by the Act as a whole, Parliament's effort to braid this "rope" with three strands constitutes the specific framework for reconciliation when it comes to Indigenous child and family services, in the spirit of the Declaration. Canada's commitment to implementing the Declaration and responding to the Truth and Reconciliation Commission's call to action is thus met immediately; this avoids the uncertainties of constitutional negotiations, the slowness of treaty settlements entered into on a piecemeal basis by the Crown and each of the various Indigenous communities concerned, and the inevitable conflicts associated with court settlements (on this point, see the explanations given by K. Wilkins, "Strategizing UNDRIP Implementation: Some Fundamentals", in J. Borrows et al., eds., *Braiding Legal Orders: Implementing the United Nations Declaration on the Rights of Indigenous Peoples* (2019), 177).

[9] Nothing prevents Parliament from affirming, as it does in s. 18(1) of the Act, that Indigenous peoples have jurisdiction to make laws in relation to child and family services. This "affirmation", through which Parliament declares that the inherent right of self-government recognized and affirmed by s. 35 of the *Constitution Act, 1982* includes "legislative authority" in relation to Indigenous child and family services, certainly represents a legislative commitment that Parliament must honour in its conduct toward Indigenous peoples. Furthermore, nothing prevents Parliament from declaring, as it does in s. 7, that this commitment, like the others made toward Indigenous peoples in the Act for the protection of children, "is binding" on His Majesty. This is of signal importance, because no enactment is binding on His Majesty or affects His Majesty or His Majesty's rights or prerogatives in any manner, except as mentioned or referred to in the enactment, as is the case with s. 7 (see *Interpretation Act*, R.S.C. 1985, c. I-21, s. 17; Wilkins, at p. 184, citing *Canada (Attorney General) v. Thouin*, 2017 SCC 46, [2017] 2 SCR 184, at paras. 1 and 19-21). It is equally open to Parliament to affirm that the laws of Indigenous groups, communities or peoples will prevail over other laws in the event of a conflict. Moreover, it is clear that issues relating to the scope of s. 35 of the *Constitution Act, 1982* and to the application of the doctrine of federal paramountcy are ultimately matters for the courts under Canadian law, not the legislative branch, since they raise questions of constitutional interpretation. Plainly, Parliament may not, by enacting an ordinary statute, amend the Constitution, including the rights protected by s. 35 of the *Constitution Act, 1982*, or alter the division of powers in the *Constitution Act, 1867*. That being said, Parliament's jurisdiction under s. 91(24) of the *Constitution Act, 1867* is a sound basis for enacting federal legislation that contains such affirmations and imposes such obligations on His Majesty, just as it is a sound basis for imposing national standards for child and family services for Indigenous children (s. 8b)). Contrary to what the Attorney General of Quebec argues, this in no way undermines the "constitutional architecture" of Canada.

…

[16] The call for lawmakers to pass legislation affirming self-government for Indigenous peoples and facilitating the exercise of these rights has been echoed in other contexts. Internationally, for example, the importance of such measures has been repeatedly pointed out (see, e.g., UNDRIP, art. 38; United Nations, General Assembly, *Report of the Special Rapporteur on the situation of human rights and fundamental freedoms of indigenous people, S. James Anaya*, U.N. Doc. A/HRC/9/9, August 11, 2008; United Nations, Office of the High Commissioner for Human Rights, *Statement upon conclusion of the visit to Canada by the United Nations Special Rapporteur on the rights of indigenous peoples, James Anaya*, October 15, 2013 (online)).

[17] Taking legislative measures of this kind has been described as being part of a process that some have termed "legislative reconciliation", that is, the enactment of legislation "to respect, promote, protect, and accommodate inherent rights through mechanisms or frameworks elaborated upon within the statute" (see N. S. W. Metallic, "Aboriginal Rights, Legislative Reconciliation, and Constitutionalism" (2023), 27:2 *Rev. Const. Stud.* 1, at p. 5). In other words, legislation of this kind does not purport to be the source of the rights in question, but rather proceeds on the premise that these rights exist. Similar initiatives have also been described as "recognition legislation", including in the *Report of the Royal Commission on Aboriginal Peoples*, vol. 2, *Restructuring the Relationship* (1996), at p. 314 (see also S. Grammond, "Recognizing Indigenous Law: A Conceptual Framework" (2022), 100 *Can. Bar Rev.* 1, at pp. 20-21).

…

VII. Analysis

[37] There are two stages in determining the constitutional validity of a law: identifying its pith and substance and then classifying it by reference to the heads of power listed in ss. 91 and 92 of the *Constitution Act, 1867* (*Murray-Hall v. Quebec (Attorney General)*, 2023 SCC 10, at para. 22, citing *Reference re Genetic Non-Discrimination Act*, 2020 SCC 17, [2020] 2 SCR 283, at para. 26).

[38] The following analysis concerns the Act *as a whole*. This means that, in determining the Act's constitutional validity, we are not distinguishing between what the attorneys general have called Part I (ss. 1 to 17, except s. 8(a)) and Part II (ss. 8(a) and 18 to 26). Given that the question referred to the Quebec Court of Appeal did not relate to any specific provision of the Act, it is therefore the Act in its entirety that must be first characterized and then classified.

A. *Characterization: What Is the Pith and Substance of the Act?*

[39] At the first stage of the analysis, which involves characterizing the law, a court identifies the purpose and effects of the law in order to determine its main thrust or dominant characteristic.

…

(2) Pith and Substance of the Act

[41] In our view, the Act protects the well-being of Indigenous children, youth and families by promoting the delivery of culturally appropriate child and family services and, in so doing, advances the process of reconciliation with Indigenous peoples. This is the Act's pith and substance, which flows from the purpose and effects of this legislation.

…

(a) *Purpose of the Act*

(i) Intrinsic Evidence

[47] Taken as a whole, the intrinsic evidence suggests that the purpose of the Act is to protect the well-being of Indigenous children, youth and families. This overarching purpose has three elements: affirming Indigenous communities' jurisdiction in relation to child and family services; establishing national standards applicable across Canada; and implementing aspects of the UNDRIP in Canadian law. As the extrinsic evidence of Parliament's intention makes plain, however, these three elements are interwoven.

…

(ii) Extrinsic Evidence

[48] The purpose identified from the intrinsic evidence is confirmed by the extrinsic evidence, including various excerpts from Hansard. These excerpts first point to the seriousness of the problem of overrepresentation of Indigenous children in child and family services systems, a problem that many described as a "humanitarian crisis" during the debates

[49] The debates also clarify how the fundamental purpose of the Act — promoting the well-being of Indigenous children, youth and families — is closely linked to the three aims identified from the intrinsic evidence.

…

[53] The extrinsic evidence thus reveals that the various elements of the Act's purpose were considered to be interwoven. Affirming the legislative authority of Indigenous groups, communities and peoples and adopting national standards were viewed as an integral part of implementing aspects of the UNDRIP. Similarly, the affirmation of Indigenous legislative authority was also seen to sit comfortably alongside the national standards articulated by Parliament, because Indigenous communities had been participants in formulating the standards and were expected to be participants in implementing them thereafter. Thus, each of the three elements of the Act's purpose set out in s. 8 is bound up in the other two. They are aims that are mutually reinforcing to protect the well-being of Indigenous children, youth and families. The section that follows examines the legal and practical effects of the Act in the pursuit of these interwoven aims.

…

(b) *Effects of the Act*

(i) Legal Effects

[54] A law's legal effects are discerned from its provisions by asking "how the legislation as a whole affects the rights and liabilities of those subject to its terms" (*Greenhouse Gas References*, at para. 70, quoting *Morgentaler*, at p. 482).

[55] In this case, the Act's provisions may be loosely grouped into three categories, which are necessarily interrelated: (1) provisions affirming the right of self-government; (2) provisions establishing national standards; and (3) provisions setting out concrete implementation measures. Taken together, the provisions in these three categories create a uniform national scheme for protecting the well-being of Indigenous children, youth and families.

…

(c) *Conclusion on the Pith and Substance of the Act*

[91] In sum, the purpose of the Act is to protect the well-being of Indigenous children, youth and families in three interwoven ways: affirming Indigenous communities' jurisdiction in relation to child and family services; establishing national standards applicable across Canada; and implementing aspects of the UNDRIP in Canadian law. The legal effect of the Act is to establish a uniform scheme for protecting the well-being of Indigenous children, youth and families through the affirmation of Indigenous legislative authority, through national standards and through concrete implementation measures. Practically speaking, the Act may reasonably be expected to protect the well-being of Indigenous children, youth and families and to advance reconciliation with Indigenous peoples. The pith and substance of the Act flows from the examination of these aims and effects.

[92] In our view, these factors imply that the essential matter addressed by the Act involves protecting the well-being of Indigenous children, youth and families by promoting the delivery of culturally appropriate child and family services and, in so doing, advancing the process of reconciliation with Indigenous peoples. The affirmation of Indigenous legislative authority, the national standards and the concrete measures to implement aspects of the UNDRIP are all integral parts of this unified whole.

…

B. *Classification Under Section 91(24) of the Constitution Act, 1867*

[93] The Act falls squarely within s. 91(24) of the *Constitution Act, 1867*. Binding the federal government to the affirmation set out in s. 18(1), establishing national standards and facilitating the implementation of the laws of Indigenous groups, communities or peoples are all measures that are within Parliament's powers under s. 91(24).

[94] The jurisdiction provided for in s. 91(24) is broad in scope and relates first and foremost to what is called "Indianness" or Indigeneity, that is, Indigenous peoples as Indigenous peoples.

[95] The foregoing is sufficient to conclude that the Act is *intra vires* Parliament under its jurisdiction over "Indians". However, the Attorney General of Quebec has raised other objections to the constitutional validity of the Act, which we reject for the reasons that follow.

…

(1) Sections 1 to 17 of the Act Need Not Be Classified Under Section 92 of the *Constitution Act, 1867*

[96] The Attorney General of Quebec argues that the pith and substance of ss. 1 to 17 of the Act is to determine, through the adoption of minimum national standards, how provincial jurisdiction over youth protection is to be exercised in relation to Indigenous children. He also contends that these standards interfere with the work of the provincial public service, whose independence is essential to the existence of two levels of government that are coordinate, with no subordination of one to the other. Essentially, he argues, the provinces are being told how they must provide child services to Indigenous peoples within their borders. For the reasons that follow, the Attorney General of Quebec's position cannot be accepted.

[97] It is trite law that Parliament can bind the Crown in right of the provinces (see, e.g., *Attorney-General for British Columbia v. Canadian Pacific Railway*, [1906] A.C. 204 (P.C.); see also Brun, Tremblay and Brouillet, at paras. IX.95-IX.96; Hogg and Wright, at § 10:21). However, Parliament can do so only within areas of federal jurisdiction.

[98] The minimum national standards are within federal jurisdiction and can accordingly be binding on the provincial governments. The double aspect doctrine allows for "the *concurrent application* of both federal and provincial legislation" in relation to the "same fact situation" (*Reference re Securities Act*, 2011 SCC 66, [2011] 3 SCR 837, at para. 66 (emphasis in original); *Greenhouse Gas References*, at para. 129). Youth protection in the Indigenous context has a double aspect, since it can be approached from two different perspectives: protection of the ties between Indigenous families and communities, in a spirit of cultural survival, under s. 91(24) (*Canadian Western Bank*, at para. 61; see also *Natural Parents v. Superintendent of Child Welfare*, 1975 CanLII 143 (SCC), [1976] 2 SCR 751, at p. 787, per Beetz J.); or child and family services and youth protection, under s. 92(13) and (16) (*NIL/TU,O Child and Family Services Society v. B.C. Government and Service Employees' Union*, 2010 SCC 45, [2010] 2 SCR 696, at paras. 36-40, per Abella J., and at paras. 74-78, per McLachlin C.J. and Fish J., concurring; see also J. Woodward, *Aboriginal Law in Canada* (loose-leaf), at § 4:16). While the provinces are generally "the keeper[s] of constitutional authority over child welfare" (*NIL/TU,O*, at para. 24), the federal government also has jurisdiction to legislate in relation to child and family services for Indigenous children. As Professors Hogg and Wright have noted, "[i]f s. 91(24) merely authorized Parliament to make laws for Indians which it could make for non-Indians, then the provision would be unnecessary" (§ 28:2).

[99] Child welfare in the Indigenous context is not only a field in which Parliament and the provinces can act, but also one in which concerted action by them is necessary. The importance of cooperation in this area between these two levels of government is illustrated, for example, by Jordan's Principle, according to which intergovernmental disputes may not interfere with the right of Indigenous children to access the same services as other children in Canada. With regard to such disputes, the Truth and Reconciliation Commission noted that the federal government and the provincial governments have historically tended to shift responsibility for Indigenous child welfare services to one another (*Honouring the Truth, Reconciling for the Future*, at pp. 142-43). However, today it is recognized that providing such services is the responsibility of both levels of government, which must act in a concerted fashion (*House of Commons Debates*, vol. 142, No. 31, 2nd Sess., 39th Parl., December 5, 2007, at p. 1780 (S. Blaney)). Since there is overlapping federal and provincial jurisdiction with respect to Indigenous children, it was entirely open to Parliament to legislate as it did (see, e.g., Grammond (2018), at pp. 137-38).

[100] We would add that while the provinces are validly bound by the national standards, these standards are not so precise and inflexible that they regulate all aspects of the provision of child and family services in the Indigenous context. Given the degree of generality with which these standards have been formulated, provincial public servants retain significant discretion in making decisions concerning Indigenous children. Moreover, the national standards apply to all service providers, whether they are provincial public servants or not. Finally, far from interfering with provincial initiatives, the national standards appear to be largely complementary to them. Indeed, the example of the *Youth Protection Act*, CQLR, c. P-34.1 ("*YPA*"), many of whose provisions bear a striking similarity to the national standards, is instructive in this regard.

…

[103] It follows from all of the foregoing that the national standards have only "incidental" effects on the provinces' exercise of their powers, including on the work of their public servants. As this Court has reiterated many times, effects of this kind have no impact on the constitutional validity of the legislation from which they arise (*Canadian Western Bank*, at para. 28, quoting *Global Securities Corp. v. British Columbia (Securities Commission)*, 2000 SCC 21, [2000] 1 SCR 494, at para. 23).

(2) Sections 8(a) and 18(1) and the Associated Provisions Do Not Purport to Amend the Constitution

[104] In this reference, the Attorney General of Quebec also submits that the Act is *ultra vires* because Parliament cannot itself, through legislation, establish the existence of an Indigenous right under s. 35, determine its scope or define its content. The Attorney General maintains that, to have full effect, the affirmations found in various places in the Act require either an amendment to the Constitution or prior judicial recognition. In this regard, the Quebec Court of Appeal was of the view that the Act is based expressly on the premise that Indigenous peoples' right of self-government is recognized and affirmed by s. 35(1), and that this right includes child and family services. According to the Court of Appeal, given that such a right does indeed exist, the Act is thus constitutionally valid, subject to the provisions on the incorporation of laws of Indigenous groups, communities or peoples into federal law and on federal paramountcy.

…

[106] It is, of course, true that Parliament does not have the power to amend s. 35 of the *Constitution Act, 1982* unilaterally. On this point, it should be noted that s. 35.1 commits the federal and provincial governments to the principle that any amendment to s. 35 (among other provisions) will be preceded by a first ministers' conference convened by the Prime Minister of Canada (s. 35.1(a)). Further, representatives of the Indigenous peoples of Canada will be invited to participate in the discussions on agenda items related to any proposed amendment (s. 35.1(b)). More generally, Part V of the *Constitution Act, 1982* sets out the amending formulas that apply in respect of different aspects of the Constitution. Only s. 44 provides for the possibility of unilateral amendments by Parliament, which must be "in relation to the executive government of Canada or the Senate and House of Commons". But even with regard to the bodies referred to in s. 44, Parliament's power to amend unilaterally is not without limits (*Reference re Senate Reform*, 2014 SCC 32, [2014] 1 SCR 704, at para. 48). Moreover, as in other

contexts, Parliament acting alone cannot shield a constitutional amendment from the requirements of the Constitution by asserting that the amending provision is declaratory (*Reference re Supreme Court Act, ss. 5 and 6*, 2014 SCC 21, [2014] 1 SCR 433, at paras. 105-6). Thus, it is evident that Parliament cannot amend s. 35 unilaterally.

[107] However, in this case, Parliament is not unilaterally amending s. 35 of the *Constitution Act, 1982*. Rather, it is stating in the Act, through affirmations that are binding on the Crown (s. 7), its position on the content of this constitutional provision. Section 8(a) provides that the purpose of the Act is to "affirm the inherent right of self-government, which includes jurisdiction in relation to child and family services". Likewise, under the heading "Affirmation", s. 18(1) states that the "inherent right of self-government recognized and affirmed by section 35 of the *Constitution Act, 1982* includes jurisdiction in relation to child and family services". The words "affirm" and "includes" in ss. 8(a) and 18(1) do not convey any intention to amend s. 35, nor could they have this effect. Instead, they "state as a fact" (*Canadian Oxford Dictionary* (2nd ed. 2004), *sub verbo* "affirm") Parliament's position on the scope of s. 35. The affirmations take this position [TRANSLATION] "as true" (*Le Grand Robert de la langue française* (electronic version), *sub verbo* "*affirmer*"), without any need for an amendment. Thus, the effect of these provisions is to affirm, not to amend.

…

[110] Here, Parliament has affirmed its position on the content of s. 35 of the *Constitution Act, 1982*. It is clear that, in this case, this affirmation is set out not in the Constitution but in an ordinary statute. The division of powers and the separation of powers provided for in the Constitution — between Parliament and the legislatures, in the former case, and between legislative bodies and the judiciary, in the latter — do not prevent Parliament from acting in this manner. Parliament, like the legislatures, can enact legislation that affirms its position on the meaning of the Constitution. As mentioned above, it is for the courts to interpret the Constitution where a case so requires

…

[112] It should be noted that the Attorney General of Canada, as well as a number of the interveners before this Court, argued that s. 35(1) protects Indigenous peoples' inherent right of self-government "in relation to child and family services", as the very wording of the Act affirms. This Court has not yet addressed the question, and it is unnecessary for it to do so in this case to provide the requested opinion on the constitutionality of the Act. The Court has noted that rights of self-government, insofar as they exist, "cannot be framed in excessively general terms" and cannot extend to a matter — for example, the regulation of gambling — that is not an integral part of the distinctive culture of the First Nations in question (see *Delgamuukw*, at para. 170; see also *R. v. Pamajewon*, 1996 CanLII 161 (SCC), [1996] 2 SCR 821, at paras. 27-28). But the Court has never had to consider a matter as fundamental to the culture and identity of Indigenous peoples as the field of child and family services. While it has not discussed the question from the standpoint of an Aboriginal right of self-government, the Court has nonetheless referred to the collective dimension of the exercise of certain rights held by Indigenous communities, including: their right to enter into treaties (*R. v. Sioui*, 1990 CanLII 103 (SCC), [1990] 1 SCR 1025, at p. 1056); their rights incidental to Aboriginal title (*Delgamuukw*, at paras. 115 and 166; *Tsilhqot'in Nation v. British Columbia*, 2014 SCC 44, [2014] 2 SCR 257, at para. 75); and their Aboriginal rights, such as the right to fish (*R. v. Marshall*, 1999 CanLII 666 (SCC), [1999] 3 SCR 533, at para. 17; *R. v. Nikal*, 1996 CanLII 245 (SCC), [1996] 1 SCR 1013, at para. 104) or the right to harvest wood (*R. v. Sappier*, 2006 SCC 54, [2006] 2 SCR 686, at para. 46). For its part, Parliament has declared — through a legislative affirmation — that it considers such a right to be recognized in relation to child and family services. This affirmation is part of the ongoing dialogue on the question among Parliament, the legislatures, Indigenous peoples and the courts (see P. W. Hogg and A. A. Bushell, "The *Charter* Dialogue Between Courts and Legislatures" (1997), 35 *Osgoode Hall L.J.* 75, at pp. 79-80).

[113] This Court's jurisprudence recognizes the close link that exists between "cultural continuity" for Indigenous peoples, a principle to which the Act expressly refers in s. 9(2), and keeping Indigenous children in their community. As the Court stated in *Canadian Western Bank* with respect to s. 91(24) of the *Constitution Act, 1867*, "relationships within Indian families and reserve communities [can] be considered absolutely indispensable and essential to their cultural survival" (para. 61). These relationships are "at the centre of what they do and what they are" (*Delgamuukw*, at para. 181, quoting *Dick v. The Queen*, 1985 CanLII 80 (SCC), [1985] 2 SCR 309, at p. 320). Indeed, the Crown has always clearly understood the role played by family in the survival of Indigenous culture. It is no coincidence that the Crown targeted Indigenous children when, at the height of its imperialism, it was seeking to destroy Indigenous cultures (see C.A. reasons, at para. 85).

…

(3) The Incorporation Provisions in Section 21 Do Not Alter the Architecture of the Constitution

[119] The Attorney General of Quebec argues that ss. 21 and 22(3) of the Act alter the architecture of the Constitution (R.F., at para. 26). The Court of Appeal reached the same conclusion, holding that these provisions purport to extend the application of the doctrine of federal paramountcy to the laws of Indigenous groups, communities or peoples in relation to child and family services and are therefore *ultra vires* s. 91(24) of the *Constitution Act, 1867* (paras. 537, 540-42 and 571). The Court of Appeal stated that the laws of Indigenous groups, communities or peoples are not federal laws enacted under s. 91(24) but rather Indigenous laws that serve Indigenous imperatives (para. 540).

[120] In our view, given that this Court has not yet addressed the question of whether the right described in s. 18(1) has been proved, neither s. 21 nor s. 22(3) of the Act alters the architecture of the Constitution; both of these provisions were validly enacted under s. 91(24) of the *Constitution Act, 1867*.

…

[122] Section 21 of the Act is simply an incorporation by reference provision. It incorporates by reference the laws adopted by an Indigenous group, community or people and gives them the force of law as federal law. Moreover, because such laws may be amended, s. 21 incorporates the amendments that may be made to them in the future, on an *anticipatory* basis. Such an anticipatory incorporation by reference provision is constitutional.

…

[124] Legislative bodies have broad power to referentially incorporate provisions adopted by other entities, including other legislative bodies or non-governmental bodies. For example, Parliament can incorporate by reference a law enacted by a province (*Coughlin v. Ontario Highway Transport Board*, 1968 CanLII 2 (SCC), [1968] SCR 569, at p. 575; *R. v. Smith*, 1971 CanLII 171 (SCC), [1972] SCR 359, at p. 366; *Dick*, at p. 328; *Wewaykum Indian Band v. Canada*, 2002 SCC 79, [2002] 4 SCR 245, at paras. 114 and 136; *Fédération des producteurs de volailles du Québec v. Pelland*, 2005 SCC 20, [2005] 1 SCR 292, at paras. 53 and 61). This Court has also upheld the validity of a provincial legislature's incorporation by reference of laws made by the Parliament of the United Kingdom (*Attorney General for Ontario v. Scott*, 1955 CanLII 16 (SCC), [1956] SCR 137, at p. 152). Parliament may also referentially incorporate standards set by a non-governmental body (*Reference re Manitoba Language Rights*, 1992 CanLII 115 (SCC), [1992] 1 SCR 212, at pp. 230 and 234). Once Parliament has incorporated by reference provisions adopted by another entity, the "relevant provisions apply as federal law" (*Wewaykum Indian Band*, at para. 114). There is no doubt about the constitutionality of the drafting technique of incorporation by reference.

…

[127] One commentator has expressed doubts about the possibility that the incorporation by reference of the laws of Indigenous groups, communities or peoples could be invalid, "since Parliament could easily adopt them piecemeal as they arise without violating subsection 91(24) of the *Constitution Act, 1867*" (Leclair, at p. 98 (footnote omitted)). We agree. Here, s. 21(1) of the Act validly incorporates by reference the laws in relation to child and family services, as amended from time to time, of an Indigenous group, community or people referred to in s. 20(3). As concluded above, Parliament has independent legislative authority to enact such laws pursuant to its jurisdiction over "Indians, and Lands reserved for the Indians" under s. 91(24) of the *Constitution Act, 1867*. To answer the reference question before the Court, it suffices to say that the laws of Indigenous groups, communities or peoples derive force of law from s. 91(24) of the *Constitution Act, 1867* and from compliance with the requirements set out in ss. 20 and 21 of the Act. That being said, the Court is taking care not to exclude the possibility that the right of self-government has a distinct constitutional source. In particular, our conclusion certainly does not negate the possibility that such a right of self-government may be recognized under s. 35 of the *Constitution Act, 1982*. This remains an open question.

[128] Parliament has also used appropriate language to incorporate by reference the laws of Indigenous groups, communities or peoples as they may be amended from time to time. Section 21(1) of the Act provides that such laws "ha[ve] . . . the force of law as federal law" once they have come into force. They apply as federal law from the time they are incorporated (*Wewaykum Indian Band*, at para. 114). Section 21(1) operates in tandem with s. 20(3), which conditions the application of s. 21 on the Indigenous governing body in question having entered into a coordination agreement or made reasonable efforts to do so. These mechanisms effect a valid anticipatory incorporation by reference.

…

(4) The Section 22(3) Paramountcy Provision Does Not Alter the Architecture of the Constitution

[131] The Attorney General of Quebec argues that s. 22(3) of the Act, the paramountcy provision, alters the architecture of the Constitution. In our view, this is not the case. Section 22(3) provides as follows: "For greater certainty, if there is a conflict or inconsistency between a provision respecting child and family services that is in a law of an Indigenous group, community or people and a provision respecting child and family services that is in a provincial Act or regulation, the provision that is in the law of the Indigenous group, community or people prevails to the extent of the conflict or inconsistency." The laws of Indigenous groups, communities or peoples that are incorporated by reference will have the force of law as federal law: laws incorporated into federal law apply as federal law (*Wewaykum Indian Band*, at para. 114). Section 22(3) is simply a legislative restatement of the doctrine of federal paramountcy.

…

VIII. Conclusion

[134] Developed in cooperation with Indigenous peoples, the Act represents a significant step forward on the path to reconciliation. It forms part of the implementation of the UNDRIP by Parliament. It also responds to call to action No. 4 made by the Truth and Reconciliation Commission, which calls upon the federal government to establish national standards and to affirm the role of Indigenous governments in the area of child and family services. The Act creates space for Indigenous groups, communities and peoples to exercise their jurisdiction to care for their children. The recognition of this jurisdiction invites Indigenous communities to work with the Crown to weave together Indigenous, national and international laws in order to protect the well-being of Indigenous children, youth and families.

[135] The pith and substance of the Act, taken in its entirety, is to protect the well-being of Indigenous children, youth and families by promoting the delivery of culturally appropriate child and family services and, in so doing, to advance the process of reconciliation with Indigenous peoples. This important legislative initiative falls squarely within Parliament's legislative jurisdiction under s. 91(24) of the *Constitution Act, 1867*.

[136] For these reasons, the following reference question:

> Is the Act respecting First Nations, Inuit and Métis children, youth and families *ultra vires* the jurisdiction of the Parliament of Canada under the Constitution of Canada?

is answered as follows:

> No.

[137] Accordingly, we dismiss the appeal of the Attorney General of Quebec and allow the appeal of the Attorney General of Canada.

Chapter 12: Section 35: Aboriginal Rights and Title

With contributions from Naiomi Metallic, Jodi Lazare and John Borrows

1 Introduction

When lawyers speak about "Indigenous law," they generally mean the law internal to a particular Indigenous nation: the rules according to which that group settles legal questions. "Aboriginal law," on the other hand, generally refers to the specialized body of Canadian state law that has come to apply to Indigenous populations in Canada. This set of materials deals with the latter body of law.

For discussions of Indigenous constitutionalism, see:

Anishinaabe Aadizookaanag:

> Aaron Mills, Karen Drake, Tanya Muthusamipillai, The Honourable Justice Patrick Smith, ed., *Reconciliation in Canadian Courts: A Guide for Judges to Aboriginal and Indigenous Law, Context and Practice* (Ottawa: National Judicial Institute, 2017) pp. 260.

Haudenosaunee, The Great Binding Law, Gayanashagowa:

> https://cscie12.dce.harvard.edu/ssi/iroquois/simple/1.shtml
>
> https://archive.org/details/cu31924101928012/page/n3/mode/2up?view=theater

Gitanyow Wilp, Adawaak, Simgigyet'm, Ayookxw (in addition to a written constitution):

> https://www.gitanyowchiefs.com/about/

2 Aboriginal Rights

The *Constitution Act, 1982* refers to Aboriginal rights three times. Most significantly, s 35 gives constitutional recognition and affirmation to the "existing aboriginal and treaty rights of the aboriginal peoples of Canada," which latter are defined as including "the Indian, Inuit and Métis peoples of Canada." This has had the effect of limiting legislation that interferes with those rights, and some of the foundational cases are excerpted below. The Act also provides that Aboriginal rights are not subject to limitation by *Charter* rights (s 25), and makes a commitment in principle to consultation with Indigenous representatives prior to any constitutional amendment (s 35.1).

In the sections that follow, consider how the SCC has interpreted the language of s 35, starting in 1990's case, *R v Sparrow*, in which the Court provided some general guidance and elaborated on the notions of extinguishment, and also developed a framework for justifying the infringement of Aboriginal rights. Notably, Section 35 is not part of the *Charter*, and so is not subject to the reasonable limits clause (s 1) or the override clause (s 33), but the SCC determined that no constitutional right is absolute. In *R v Van der Peet*, the Court added considerable detail to the test of proving the existence of an Aboriginal right. It adapted this test further in *Gladstone* to account for commercial Aboriginal rights.

2.1 *R. v. Sparrow*, 1990 CanLII 104 (SCC), [1990] 1 SCR 1075

The judgment of the Court was delivered by

The Chief Justice and La Forest J. -- This appeal requires this Court to explore for the first time the scope of s. 35(1) of the *Constitution Act, 1982*, and to indicate its strength as a promise to the aboriginal peoples of Canada. Section 35(1) is found in Part II of that Act, entitled "Rights of the Aboriginal Peoples of Canada", and provides as follows:

> **35**. (1) The existing aboriginal and treaty rights of the aboriginal peoples of Canada are hereby recognized and affirmed.

The context of this appeal is the alleged violation of the terms of the Musqueam food fishing licence which are dictated by the *Fisheries Act*, R.S.C. 1970, c. F-14, and the regulations under that Act. The issue is whether Parliament's power to regulate fishing is now limited by s. 35(1) of the *Constitution Act, 1982*, and, more specifically, whether the net length restriction in the licence is inconsistent with that provision.

Facts

The appellant, a member of the Musqueam Indian Band, was charged under s. 61(1) of the *Fisheries Act* of the offence of fishing with a drift net longer than that permitted by the terms of the Band's Indian food fishing licence. The fishing which gave rise to the charge took place on May 25, 1984 in Canoe Passage which is part of the area subject to the Band's licence. The licence, which had been issued for a one-year period beginning March 31, 1984, set out a number of restrictions including one that drift nets were to be limited to 25 fathoms in length. The appellant was caught with a net which was 45 fathoms in length. He has throughout admitted the facts alleged to constitute the offence, but has defended the charge on the basis that he was exercising an existing aboriginal right to fish and that the net length restriction contained in the Band's licence is inconsistent with s. 35(1) of the *Constitution Act, 1982* and therefore invalid.

…

Analysis

We will address first the meaning of "existing" aboriginal rights and the content and scope of the Musqueam right to fish. We will then turn to the meaning of "recognized and affirmed", and the impact of s. 35(1) on the regulatory power of Parliament.

"Existing"

The word "existing" makes it clear that the rights to which s. 35(1) applies are those that were in existence when the *Constitution Act, 1982* came into effect. This means that extinguished rights are not revived by the *Constitution Act, 1982*. …

Further, an existing aboriginal right cannot be read so as to incorporate the specific manner in which it was regulated before 1982. The notion of freezing existing rights would incorporate into the Constitution a crazy patchwork of regulations. …

Professor Slattery, "Understanding Aboriginal Rights" (1987), 66 *Can. Bar Rev.* 727, at pp. 781-82, has observed the following about reading regulations into the rights:

> This approach reads into the Constitution the myriad regulations affecting the exercise of aboriginal rights, regulations that differed considerably from place to place across the country. It does not permit differentiation between regulations of long-term significance and those enacted to deal with temporary conditions, or between reasonable and unreasonable restrictions. Moreover, it might require that a constitutional amendment be enacted to implement regulations more stringent than those in existence on 17 April 1982. This solution seems unsatisfactory.

…

The arbitrariness of such an approach can be seen if one considers the recent history of the federal regulation in the context of the present case and the fishing industry. If the *Constitution Act, 1982* had been enacted a few years earlier, any right held by the Musqueam Band, on this approach, would have been constitutionally subjected to the restrictive regime of personal licences that had existed since 1917. Under that regime, the Musqueam catch had by 1969 become minor or non-existent. In 1978 a system of band licences was introduced on an experimental basis which permitted the Musqueam to fish with a 75 fathom net for a greater number of days than other people. Under this regime, from 1977 to 1984, the number of Band members who fished for food increased from 19 persons using 15 boats, to 64 persons using 38 boats, while 10 other members of the Band fished under commercial licences. Before this regime, the Band's food fish requirement had basically been provided by Band members who were licensed for commercial fishing. Since the regime introduced in 1978 was in force in 1982, then, under this approach, the scope and content of an aboriginal right to fish would be determined by the details of the Band's 1978 licence.

The unsuitability of the approach can also be seen from another perspective. Ninety-one other tribes of Indians, comprising over 20,000 people (compared with 540 Musqueam on the reserve and 100 others off the reserve) obtain their food fish from the Fraser River. Some or all of these bands may have an aboriginal right to fish there. A constitutional patchwork quilt would be created if the constitutional right of these bands were to be determined by the specific regime available to each of those bands in 1982.

Far from being defined according to the regulatory scheme in place in 1982, the phrase "existing aboriginal rights" must be interpreted flexibly so as to permit their evolution over time. To use Professor Slattery's expression, in "Understanding Aboriginal Rights," *supra*, at p. 782, the word "existing" suggests that those rights are "affirmed in a contemporary form rather than in their primeval simplicity and vigour". Clearly, then, an approach to the constitutional guarantee embodied in s. 35(1) which would incorporate "frozen rights" must be rejected.

The Aboriginal Right

We turn now to the aboriginal right at stake in this appeal. The Musqueam Indian Reserve is located on the north shore of the Fraser River close to the mouth of that river and within the limits of the City of Vancouver. There has been a Musqueam village there for hundreds of years. This appeal does not directly concern the reserve or the adjacent waters, but arises out of the Band's right to fish in another area of the Fraser

River estuary known as Canoe Passage in the South Arm of the river, some 16 kilometres (about 10 miles) from the reserve. The reserve and those waters are separated by the Vancouver International Airport and the Municipality of Richmond.

The evidence reveals that the Musqueam have lived in the area as an organized society long before the coming of European settlers, and that the taking of salmon was an integral part of their lives and remains so to this day. Much of the evidence of an aboriginal right to fish was given by Dr. Suttles, an anthropologist, supported by that of Mr. Grant, the Band administrator. The Court of Appeal thus summarized Dr. Suttles' evidence, at pp. 307-308:

> Dr. Suttles was qualified as having particular qualifications in respect of the ethnography of the Coast Salish Indian people of which the Musqueams were one of several tribes. He thought that the Musqueam had lived in their historic territory, which includes the Fraser River estuary, for at least 1,500 years. That historic territory extended from the north shore of Burrard Inlet to the south shore of the main channel of the Fraser River, including the waters of the three channels by which that river reaches the ocean. As part of the Salish people, the Musqueam were part of a regional social network covering a much larger area but, as a tribe, were themselves an organized social group with their own name, territory and resources. Between the tribes there was a flow of people, wealth and food. No tribe was wholly self-sufficient or occupied its territory to the complete exclusion of others.
>
> Dr. Suttles described the special position occupied by the salmon fishery in that society. The salmon was not only an important source of food but played an important part in the system of beliefs of the Salish people, and in their ceremonies. The salmon were held to be a race of beings that had, in "myth times", established a bond with human beings requiring the salmon to come each year to give their bodies to the humans who, in turn, treated them with respect shown by performance of the proper ritual. Toward the salmon, as toward other creatures, there was an attitude of caution and respect which resulted in effective conservation of the various species.

While the trial for a violation of a penal prohibition may not be the most appropriate setting in which to determine the existence of an aboriginal right, and the evidence was not extensive, the correctness of the finding of fact of the trial judge "that Mr. Sparrow was fishing in ancient tribal territory where his ancestors had fished from time immemorial in that part of the mouth of the Fraser River for salmon" is supported by the evidence and was not contested. The existence of the right, the Court of Appeal tells us, was "not the subject of serious dispute". It is not surprising, then, that, taken with other circumstances, that court should find, at p. 320, that "the judgment appealed from was wrong in . . . failing to hold that Sparrow at the relevant time was exercising an existing aboriginal right".

In this Court, however, the respondent contested the Court of Appeal's finding, contending that the evidence was insufficient to discharge the appellant's burden of proof upon the issue. It is true that for the period from 1867 to 1961 the evidence is scanty. But the evidence was not disputed or contradicted in the courts below and there is evidence of sufficient continuity of the right to support the Court of Appeal's finding, and we would not disturb it.

What the Crown really insisted on, both in this Court and the courts below, was that the Musqueam Band's aboriginal right to fish had been extinguished by regulations under the Fisheries Act.

…

It is [the] progressive restriction and detailed regulation of the fisheries which, respondent's counsel maintained, have had the effect of extinguishing any aboriginal right to fish. The extinguishment need not be express, he argued, but may take place where the sovereign authority is exercised in a manner "necessarily inconsistent" with the continued enjoyment of aboriginal rights… The consent to its extinguishment before the *Constitution Act, 1982* was not required; the intent of the Sovereign could be effected not only by statute but by valid regulations. Here, in his view, the regulations had entirely displaced any aboriginal right. There is, he submitted, a fundamental inconsistency between the communal right to fish embodied in the aboriginal right, and fishing under a special licence or permit issued to individual Indians (as was the case until 1977) in the discretion of the Minister and subject to terms and conditions which, if breached, may result in cancellation of the licence. The *Fisheries Act* and its regulations were, he argued, intended to constitute a complete code inconsistent with the continued existence of an aboriginal right.

At bottom, the respondent's argument confuses regulation with extinguishment. That the right is controlled in great detail by the regulations does not mean that the right is thereby extinguished….

The test of extinguishment to be adopted, in our opinion, is that the Sovereign's intention must be clear and plain if it is to extinguish an aboriginal right.

There is nothing in the *Fisheries Act* or its detailed regulations that demonstrates a clear and plain intention to extinguish the Indian aboriginal right to fish. The fact that express provision permitting the Indians to fish for food may have applied to all Indians and that for an extended period permits were discretionary and issued on an individual rather than a communal basis in no way shows a clear intention to extinguish. These permits were simply a manner of controlling the fisheries, not defining underlying rights.

We would conclude then that the Crown has failed to discharge its burden of proving extinguishment…

The scope of the existing Musqueam right to fish must now be delineated. The anthropological evidence relied on to establish the existence of the right suggests that, for the Musqueam, the salmon fishery has always constituted an integral part of their distinctive culture. Its significant role involved not only consumption for subsistence purposes, but also consumption of salmon on ceremonial and social occasions. The Musqueam have always fished for reasons connected to their cultural and physical survival. As we stated earlier, the right to do so may be exercised in a contemporary manner.

The British Columbia Court of Appeal in this case held that the aboriginal right was to fish for food purposes, but that purpose was not to be confined to mere subsistence. Rather, the right was found to extend to fish consumed for social and ceremonial activities…

The Court of Appeal's position was attacked from both sides. The respondent for its part, argued that, if an aboriginal right to fish does exist, it does not include the right to take fish for the ceremonial and social activities of the Band. The appellant, on the other hand, attacked the Court of Appeal's restriction of the right to a right to fish for food. He argued that the principle that the holders of aboriginal rights may exercise those rights according to their own discretion has been recognized by this Court in the context of the protection of treaty hunting rights (*Simon v. The Queen*, 1985 CanLII 11 (SCC), [1985] 2 S.C.R. 387) and that it should be applied in this case such that the right is defined as a right to fish for any purpose and by any non-dangerous method.

In relation to this submission, it was contended before this Court that the aboriginal right extends to commercial fishing. While no commercial fishery existed prior to the arrival of European settlers, it is contended that the Musqueam practice of bartering in early society may be revived as a modern right to fish for commercial purposes. …

Government regulations governing the exercise of the Musqueam right to fish, as described above, have only recognized the right to fish <u>for food</u> for over a hundred years. This may have reflected the existing position. However, historical policy on the part of the Crown is not only incapable of extinguishing the existing aboriginal right without clear intention, but is also incapable of, in itself, delineating that right. The

nature of government regulations cannot be determinative of the content and scope of an existing aboriginal right. Government policy can however regulate the exercise of that right, but such regulation must be in keeping with s. 35(1).

In the courts below, the case at bar was not presented on the footing of an aboriginal right to fish for commercial or livelihood purposes. Rather, the focus was and continues to be on the validity of a net length restriction affecting the appellant's food fishing licence. We therefore adopt the Court of Appeal's characterization of the right for the purpose of this appeal, and confine our reasons to the meaning of the constitutional recognition and affirmation of the existing aboriginal right to fish for food and social and ceremonial purposes.

"Recognized and Affirmed"

We now turn to the impact of s. 35(1) of the *Constitution Act, 1982* on the regulatory power of Parliament and on the outcome of this appeal specifically.

Counsel for the appellant argued that the effect of s. 35(1) is to deny Parliament's power to restrictively regulate aboriginal fishing rights under s. 91(24) ("Indians and Lands Reserved for the Indians"), and s. 91(12) ("Sea Coast and Inland Fisheries"). The essence of this submission, supported by the intervener, the National Indian Brotherhood / Assembly of First Nations, is that the right to regulate is part of the right to use the resource in the Band's discretion. Section 35(1) is not subject to s. 1 of the *Canadian Charter of Rights and Freedoms* nor to legislative override under s. 33. The appellant submitted that, if the regulatory power continued, the limits on its extent are set by the word "inconsistent" in s. 52(1) of the *Constitution Act, 1982* and the protective and remedial purposes of s. 35(1). This means that aboriginal title entails a right to fish by any non-dangerous method chosen by the aboriginals engaged in fishing. Any continuing governmental power of regulation would have to be exceptional and strictly limited to regulation that is clearly not inconsistent with the protective and remedial purposes of s. 35(1). Thus, counsel for the appellant speculated, "in certain circumstances, necessary and reasonable conservation measures might qualify" (emphasis added) -- where for example such measures were necessary to prevent serious impairment of the aboriginal rights of present and future generations, where conservation could only be achieved by restricting the right and not by restricting fishing by other users, and where the aboriginal group concerned was unwilling to implement necessary conservation measures. The onus of proving a justification for restrictive regulations would lie with the government by analogy with s. 1 of the *Charter*.

In response to these submissions and in finding the appropriate interpretive framework for s. 35(1), we start by looking at the background of s. 35(1).

It is worth recalling that while British policy towards the native population was based on respect for their right to occupy their traditional lands, a proposition to which the Royal Proclamation of 1763 bears witness, there was from the outset never any doubt that sovereignty and legislative power, and indeed the underlying title, to such lands vested in the Crown… And there can be no doubt that over the years the rights of the Indians were often honoured in the breach…

For many years, the rights of the Indians to their aboriginal lands -- certainly as legal rights -- were virtually ignored. The leading cases defining Indian rights in the early part of the century were directed at claims supported by the Royal Proclamation or other legal instruments, and even these cases were essentially concerned with settling legislative jurisdiction or the rights of commercial enterprises. For fifty years after the publication of Clement's *The Law of the Canadian Constitution* (3rd ed. 1916), there was a virtual absence of discussion of any kind of Indian rights to land even in academic literature. By the late 1960s, aboriginal claims were not even recognized by the federal government as having any legal status. Thus the *Statement of the Government of Canada on Indian Policy* (1969), although well meaning, contained the assertion (at p. 11) that "aboriginal claims to land . . . are so general and undefined that it is not realistic to think of them as specific claims capable of remedy except through a policy and program that will end injustice to the Indians as members of the Canadian community". In the same general period, the James Bay development by Quebec Hydro was originally initiated without regard to the rights of the Indians who lived there, even though these were expressly protected by a constitutional instrument… It took a number of judicial decisions and notably the *Calder* case in this Court (1973) to prompt a reassessment of the position being taken by government.

In the light of its reassessment of Indian claims following *Calder*, the federal Government on August 8, 1973 issued "a statement of policy" regarding Indian lands. By it, it sought to "signify the Government's recognition and acceptance of its continuing responsibility under the British North America Act for Indians and lands reserved for Indians", which it regarded "as an historic evolution dating back to the Royal Proclamation of 1763, which, whatever differences there may be about its judicial interpretation, stands as a basic declaration of the Indian people's interests in land in this country". (Emphasis added.) See *Statement made by the Honourable Jean Chrétien, Minister of Indian Affairs and Northern Development on Claims of Indian and Inuit People*, August 8, 1973. The remarks about these lands were intended "as an expression of acknowledged responsibility". But the statement went on to express, for the first time, the government's willingness to negotiate regarding claims of aboriginal title, specifically in British Columbia, Northern Quebec, and the Territories, and this without regard to formal supporting documents. "The Government", it stated, "is now ready to negotiate with authorized representatives of these native peoples on the basis that where their traditional interest in the lands concerned can be established, an agreed form of compensation or benefit will be provided to native peoples in return for their interest."

It is obvious from its terms that the approach taken towards aboriginal claims in the 1973 statement constituted an expression of a policy, rather than a legal position… As recently as *Guerin v. The Queen*, 1984 CanLII 25 (SCC), [1984] 2 S.C.R. 335, the federal government argued in this Court that any federal obligation was of a political character.

It is clear, then, that s. 35(1) of the *Constitution Act, 1982*, represents the culmination of a long and difficult struggle in both the political forum and the courts for the constitutional recognition of aboriginal rights. The strong representations of native associations and other groups concerned with the welfare of Canada's aboriginal peoples made the adoption of s. 35(1) possible and it is important to note that the provision applies to the Indians, the Inuit and the Métis. Section 35(1), at the least, provides a solid constitutional base upon which subsequent negotiations can take place. It also affords aboriginal peoples constitutional protection against provincial legislative power. …

In our opinion, the significance of s. 35(1) extends beyond these fundamental effects. Professor Lyon in "An Essay on Constitutional Interpretation" (1988), 26 *Osgoode Hall L.J.* 95, says the following about s. 35(1), at p. 100:

> . . . the context of 1982 is surely enough to tell us that this is not just a codification of the case law on aboriginal rights that had accumulated by 1982. Section 35 calls for a just settlement for aboriginal peoples. It renounces the old rules of the game under which the Crown established courts of law and denied those courts the authority to question sovereign claims made by the Crown.

The approach to be taken with respect to interpreting the meaning of s. 35(1) is derived from general principles of constitutional interpretation, principles relating to aboriginal rights, and the purposes behind the constitutional provision itself. Here, we will sketch the framework for an interpretation of "recognized and affirmed" that, in our opinion, gives appropriate weight to the constitutional nature of these words.

…

The nature of s. 35(1) itself suggests that it be construed in a purposive way. When the purposes of the affirmation of aboriginal rights are considered, it is clear that a generous, liberal interpretation of the words in the constitutional provision is demanded…

In *Guerin*, *supra*, the Musqueam Band surrendered reserve lands to the Crown for lease to a golf club. The terms obtained by the Crown were much less favourable than those approved by the Band at the surrender meeting. This Court found that the Crown owed a fiduciary obligation to the Indians with respect to the lands. The *sui generis* nature of Indian title, and the historic powers and responsibility assumed by the Crown constituted the source of such a fiduciary obligation. In our opinion, *Guerin*, together with *R. v. Taylor and Williams* (1981), 1981 CanLII 1657 (ON CA), 34 O.R. (2d) 360, ground a general guiding principle for s. 35(1). That is, the Government has the responsibility to act in a fiduciary capacity with respect to aboriginal peoples. The relationship between the Government and aboriginals is trust-like, rather than adversarial, and contemporary recognition and affirmation of aboriginal rights must be defined in light of this historic relationship.

We agree with both the British Columbia Court of Appeal below and the Ontario Court of Appeal that the principles outlined above … As commentators have noted, s. 35(1) is a solemn commitment that must be given meaningful content …

In response to the appellant's submission that s. 35(1) rights are more securely protected than the rights guaranteed by the *Charter*, it is true that s. 35(1) is not subject to s. 1 of the *Charter*. In our opinion, this does not mean that any law or regulation affecting aboriginal rights will automatically be of no force or effect by the operation of s. 52 of the *Constitution Act, 1982*. Legislation that affects the exercise of aboriginal rights will nonetheless be valid, if it meets the test for justifying an interference with a right recognized and affirmed under s. 35(1).

There is no explicit language in the provision that authorizes this Court or any court to assess the legitimacy of any government legislation that restricts aboriginal rights. Yet, we find that the words "recognition and affirmation" incorporate the fiduciary relationship referred to earlier and so import some restraint on the exercise of sovereign power. Rights that are recognized and affirmed are not absolute. Federal legislative powers continue, including, of course, the right to legislate with respect to Indians pursuant to s. 91(24) of the *Constitution Act, 1867*. These powers must, however, now be read together with s. 35(1). In other words, federal power must be reconciled with federal duty and the best way to achieve that reconciliation is to demand the justification of any government regulation that infringes upon or denies aboriginal rights. Such scrutiny is in keeping with the liberal interpretive principle enunciated in *Nowegijick*, *supra*, and the concept of holding the Crown to a high standard of honourable dealing with respect to the aboriginal peoples of Canada as suggested by *Guerin v. The Queen*, *supra*.

We refer to Professor Slattery's "Understanding Aboriginal Rights", *supra*, with respect to the task of envisioning a s. 35(1) justificatory process. Professor Slattery, at p. 782, points out that a justificatory process is required as a compromise between a "patchwork" characterization of aboriginal rights whereby past regulations would be read into a definition of the rights, and a characterization that would guarantee aboriginal rights in their original form unrestricted by subsequent regulation. We agree with him that these two extreme positions must be rejected in favour of a justificatory scheme.

Section 35(1) suggests that while regulation affecting aboriginal rights is not precluded, such regulation must be enacted according to a valid objective. Our history has shown, unfortunately all too well, that Canada's aboriginal peoples are justified in worrying about government objectives that may be superficially neutral but which constitute *de facto* threats to the existence of aboriginal rights and interests. By giving aboriginal rights constitutional status and priority, Parliament and the provinces have sanctioned challenges to social and economic policy objectives embodied in legislation to the extent that aboriginal rights are affected. Implicit in this constitutional scheme is the obligation of the legislature to satisfy the test of justification. The way in which a legislative objective is to be attained must uphold the honour of the Crown and must be in keeping with the unique contemporary relationship, grounded in history and policy, between the Crown and Canada's aboriginal peoples. The extent of legislative or regulatory impact on an existing aboriginal right may be scrutinized so as to ensure recognition and affirmation.

The constitutional recognition afforded by the provision therefore gives a measure of control over government conduct and a strong check on legislative power. While it does not promise immunity from government regulation in a society that, in the twentieth century, is increasingly more complex, interdependent and sophisticated, and where exhaustible resources need protection and management, it does hold the Crown to a substantive promise. The government is required to bear the burden of justifying any legislation that has some negative effect on any aboriginal right protected under s. 35(1).

In these reasons, we will outline the appropriate analysis under s. 35(1) in the context of a regulation made pursuant to the *Fisheries Act*. We wish to emphasize the importance of context and a case-by-case approach to s. 35(1). Given the generality of the text of the constitutional provision, and especially in light of the complexities of aboriginal history, society and rights, the contours of a justificatory standard must be defined in the specific factual context of each case.

Section 35(1) and the Regulation of the Fisheries

Taking the above framework as guidance, we propose to set out the test for *prima facie* interference with an existing aboriginal right and for the justification of such an interference…

The first question to be asked is whether the legislation in question has the effect of interfering with an existing aboriginal right. If it does have such an effect, it represents a *prima facie* infringement of s. 35(1). Parliament is not expected to act in a manner contrary to the rights and interests of aboriginals, and, indeed, may be barred from doing so by the second stage of s. 35(1) analysis. The inquiry with respect to interference begins with a reference to the characteristics or incidents of the right at stake. Our earlier observations regarding the scope of the aboriginal right to fish are relevant here. Fishing rights are not traditional property rights. They are rights held by a collective and are in keeping with the culture and existence of that group. Courts must be careful, then, to avoid the application of traditional common law concepts of property as they develop their understanding of what the reasons for judgment in *Guerin*, *supra*, at p. 382, referred to as the "*sui generis*" nature of aboriginal rights. (See also Little Bear, "A Concept of Native Title," [1982] 5 *Can. Legal Aid Bul.* 99.)

While it is impossible to give an easy definition of fishing rights, it is possible, and, indeed, crucial, to be sensitive to the aboriginal perspective itself on the meaning of the rights at stake. For example, it would be artificial to try to create a hard distinction between the right to fish and the particular manner in which that right is exercised.

To determine whether the fishing rights have been interfered with such as to constitute a *prima facie* infringement of s. 35(1), certain questions must be asked. First, is the limitation unreasonable? Second, does the regulation impose undue hardship? Third, does the regulation deny to the holders of the right their preferred means of exercising that right? The onus of proving a *prima facie* infringement lies on the individual or group challenging the legislation. In relation to the facts of this appeal, the regulation would be found to be a *prima facie* interference if it were found to be an adverse restriction on the Musqueam exercise of their right to fish for food. We wish to note here that the issue does not merely require looking at whether the fish catch has been reduced below that needed for the reasonable food and ceremonial needs of the Musqueam Indians. Rather the test involves asking whether either the purpose or the effect of the restriction on net length unnecessarily infringes the interests protected by the fishing right. If, for example, the Musqueam were forced to spend undue time and money per fish caught or if the net length reduction resulted in a hardship to the Musqueam in catching fish, then the first branch of the s. 35(1) analysis would be met.

If a *prima facie* interference is found, the analysis moves to the issue of justification. This is the test that addresses the question of what constitutes legitimate regulation of a constitutional aboriginal right. The justification analysis would proceed as follows. First, is there a valid legislative objective? Here the court would inquire into whether the objective of Parliament in authorizing the department to enact regulations regarding fisheries is valid. The objective of the department in setting out the particular regulations would also be scrutinized. An objective

aimed at preserving s. 35(1) rights by conserving and managing a natural resource, for example, would be valid. Also valid would be objectives purporting to prevent the exercise of s. 35(1) rights that would cause harm to the general populace or to aboriginal peoples themselves, or other objectives found to be compelling and substantial.

The Court of Appeal below held, at p. 331, that regulations could be valid if reasonably justified as "necessary for the proper management and conservation of the resource or in the public interest". (Emphasis added.) We find the "public interest" justification to be so vague as to provide no meaningful guidance and so broad as to be unworkable as a test for the justification of a limitation on constitutional rights.

The justification of conservation and resource management, on the other hand, is surely uncontroversial…

…it is clear that the value of conservation purposes for government legislation and action has long been recognized. Further, the conservation and management of our resources is consistent with aboriginal beliefs and practices, and, indeed, with the enhancement of aboriginal rights.

If a valid legislative objective is found, the analysis proceeds to the second part of the justification issue. Here, we refer back to the guiding interpretive principle [that] the honour of the Crown is at stake in dealings with aboriginal peoples. The special trust relationship and the responsibility of the government vis-à-vis aboriginals must be the first consideration in determining whether the legislation or action in question can be justified.

The problem that arises in assessing the legislation in light of its objective and the responsibility of the Crown is that the pursuit of conservation in a heavily used modern fishery inevitably blurs with the efficient allocation and management of this scarce and valued resource. The nature of the constitutional protection afforded by s. 35(1) in this context demands that there be a link between the question of justification and the allocation of priorities in the fishery. The constitutional recognition and affirmation of aboriginal rights may give rise to conflict with the interests of others given the limited nature of the resource. There is a clear need for guidelines that will resolve the allocational problems that arise regarding the fisheries. We refer to the reasons of Dickson J., as he then was, in *Jack v. The Queen*, *supra*, for such guidelines.

In *Jack*, the appellants' defence to a charge of fishing for salmon in certain rivers during a prohibited period was based on the alleged constitutional incapacity of Parliament to legislate such as to deny the Indians their right to fish for food. They argued that art. 13 of the *British Columbia Terms of Union* imposed a constitutional limitation on the federal power to regulate. While we recognize that the finding that such a limitation had been imposed was not adopted by the majority of this Court, we point out that this case concerns a different constitutional promise that asks this Court to give a meaningful interpretation to recognition and affirmation. That task requires equally meaningful guidelines responsive to the constitutional priority accorded aboriginal rights. …

The constitutional nature of the Musqueam food fishing rights means that any allocation of priorities after valid conservation measures have been implemented must give top priority to Indian food fishing. If the objective pertained to conservation, the conservation plan would be scrutinized to assess priorities. While the detailed allocation of maritime resources is a task that must be left to those having expertise in the area, the Indians' food requirements must be met first when that allocation is established. The significance of giving the aboriginal right to fish for food top priority can be described as follows. If, in a given year, conservation needs required a reduction in the number of fish to be caught such that the number equalled the number required for food by the Indians, then all the fish available after conservation would go to the Indians according to the constitutional nature of their fishing right. If, more realistically, there were still fish after the Indian food requirements were met, then the brunt of conservation measures would be borne by the practices of sport fishing and commercial fishing.

…

We acknowledge the fact that the justificatory standard to be met may place a heavy burden on the Crown. However, government policy with respect to the British Columbia fishery, regardless of s. 35(1), already dictates that, in allocating the right to take fish, Indian food fishing is to be given priority over the interests of other user groups. The constitutional entitlement embodied in s. 35(1) requires the Crown to ensure that its regulations are in keeping with that allocation of priority. The objective of this requirement is not to undermine Parliament's ability and responsibility with respect to creating and administering overall conservation and management plans regarding the salmon fishery. The objective is rather to guarantee that those plans treat aboriginal peoples in a way ensuring that their rights are taken seriously.

Within the analysis of justification, there are further questions to be addressed, depending on the circumstances of the inquiry. These include the questions of whether there has been as little infringement as possible in order to effect the desired result; whether, in a situation of expropriation, fair compensation is available; and, whether the aboriginal group in question has been consulted with respect to the conservation measures being implemented. The aboriginal peoples, with their history of conservation-consciousness and interdependence with natural resources, would surely be expected, at the least, to be informed regarding the determination of an appropriate scheme for the regulation of the fisheries.

We would not wish to set out an exhaustive list of the factors to be considered in the assessment of justification. Suffice it to say that recognition and affirmation require sensitivity to and respect for the rights of aboriginal peoples on behalf of the government, courts and indeed all Canadians.

Application to this Case -- Is the Net Length Restriction Valid?

The Court of Appeal below found that there was not sufficient evidence in this case to proceed with an analysis of s. 35(1) with respect to the right to fish for food. In reviewing the competing expert evidence, and recognizing that fish stock management is an uncertain science, it decided that the issues at stake in this appeal were not well adapted to being resolved at the appellate court level.

…

According to the Court of Appeal, the findings of fact were insufficient to lead to an acquittal. There was no more evidence before this Court. We also would order a re-trial which would allow findings of fact according to the tests set out in these reasons.

The appellant would bear the burden of showing that the net length restriction constituted a *prima facie* infringement of the collective aboriginal right to fish for food. If an infringement were found, the onus would shift to the Crown which would have to demonstrate that the regulation is justifiable. To that end, the Crown would have to show that there is no underlying unconstitutional objective such as shifting more of the resource to a user group that ranks below the Musqueam. Further, it would have to show that the regulation sought to be imposed is required to accomplish the needed limitation. In trying to show that the restriction is necessary in the circumstances of the Fraser River fishery, the Crown could use facts pertaining to fishing by other Fraser River Indians.

In conclusion, we would dismiss the appeal and the cross-appeal and affirm the Court of Appeal's setting aside of the conviction. We would accordingly affirm the order for a new trial on the questions of infringement and whether any infringement is nonetheless consistent with s. 35(1), in accordance with the interpretation set out here.

What do you make of the Court's introduction of a limitations test for s 35 that resembles the *Oakes* test? Does this approach to justification provide sufficient protection to Aboriginal and treaty rights?

2.2 *R. v Van der Peet*, 1996 CanLII 216 (SCC); 2 SCR 507

2.2.1 Majority

THE CHIEF JUSTICE --

I. Introduction

[1] This appeal… raises the issue left unresolved by this Court in its judgment in *R. v. Sparrow*, 1990 CanLII 104 (SCC), [1990] 1 S.C.R. 1075: How are the aboriginal rights recognized and affirmed by s. 35(1) of the *Constitution Act, 1982* to be defined?

[2] In *Sparrow*, Dickson C.J. and La Forest J., writing for a unanimous Court, outlined the framework for analyzing s. 35(1) claims. First, a court must determine whether an applicant has demonstrated that he or she was acting pursuant to an aboriginal right. Second, a court must determine whether that right has been extinguished. Third, a court must determine whether that right has been infringed. Finally, a court must determine whether the infringement is justified. In *Sparrow*, however, it was not seriously disputed that the Musqueam had an aboriginal right to fish for food, with the result that it was unnecessary for the Court to answer the question of how the rights recognized and affirmed by s. 35(1) are to be defined. It is this question and, in particular, the question of whether s. 35(1) recognizes and affirms the right of the Sto:lo to sell fish, which must now be answered by this Court.

[3] In order to define the scope of aboriginal rights, it will be necessary first to articulate the purposes which underpin s. 35(1), specifically the reasons underlying its recognition and affirmation of the unique constitutional status of aboriginal peoples in Canada. Until it is understood why aboriginal rights exist, and are constitutionally protected, no definition of those rights is possible. As Dickson J. (as he then was) said in *R. v. Big M Drug Mart Ltd.*, 1985 CanLII 69 (SCC), [1985] 1 S.C.R. 295, at p. 344, a constitutional provision must be understood "in the light of the interests it was meant to protect". This principle, articulated in relation to the rights protected by the *Canadian Charter of Rights and Freedoms*, applies equally to the interpretation of s. 35(1).

…

II. Statement of Facts

[5] The appellant Dorothy Van der Peet was charged under s. 61(1) of the *Fisheries Act*, R.S.C. 1970, c. F-14, with the offence of selling fish caught under the authority of an Indian food fish licence, contrary to s. 27(5) of the *British Columbia Fishery (General) Regulations*, SOR/84-248. At the time at which the appellant was charged s. 27(5) read:

27 (5) No person shall sell, barter or offer to sell or barter any fish caught under the authority of an Indian food fish licence.

[6] The charges arose out of the sale by the appellant of 10 salmon on September 11, 1987. The salmon had been caught by Steven and Charles Jimmy under the authority of an Indian food fish licence. Charles Jimmy is the common law spouse of the appellant. The appellant, a member of the Sto:lo, has not contested these facts at any time, instead defending the charges against her on the basis that in selling the fish she was exercising an existing aboriginal right to sell fish. The appellant has based her defence on the position that the restrictions imposed by s. 27(5) of the Regulations infringe her existing aboriginal right to sell fish and are therefore invalid on the basis that they violate s. 35(1) of the *Constitution Act, 1982*.

…

V. Analysis

Introduction

[15] I now turn to the question which, as I have already suggested, lies at the heart of this appeal: How should the aboriginal rights recognized and affirmed by s. 35(1) of the *Constitution Act, 1982* be defined?

[16] In her factum the appellant argued that the majority of the Court of Appeal erred because it defined the rights in s. 35(1) in a fashion which "converted a Right into a Relic"; such an approach, the appellant argued, is inconsistent with the fact that the aboriginal rights recognized and affirmed by s. 35(1) are rights and not simply aboriginal practices. The appellant acknowledged that aboriginal rights are based in aboriginal societies and cultures, but argued that the majority of the Court of Appeal erred because it defined aboriginal rights through the identification of pre-contact activities instead of as pre-existing legal rights.

[17] While the appellant is correct to suggest that the mere existence of an activity in a particular aboriginal community prior to contact with Europeans is not, in itself, sufficient foundation for the definition of aboriginal rights, the position she would have this Court adopt takes s. 35(1) too far from that which the provision is intended to protect. Section 35(1), it is true, recognizes and affirms existing aboriginal rights, but it must not be forgotten that the rights it recognizes and affirms are aboriginal.

[18] In the liberal enlightenment view, reflected in the American Bill of Rights and, more indirectly, in the *Charter*, rights are held by all people in society because each person is entitled to dignity and respect. Rights are general and universal; they are the way in which the "inherent dignity" of each individual in society is respected: *R. v. Oakes*, 1986 CanLII 46 (SCC), [1986] 1 S.C.R. 103, at p. 136; *R. v. Big M Drug Mart Ltd.*, *supra*, at p. 336.

[19] Aboriginal rights cannot, however, be defined on the basis of the philosophical precepts of the liberal enlightenment. Although equal in importance and significance to the rights enshrined in the *Charter*, aboriginal rights must be viewed differently from *Charter* rights because they are rights held only by aboriginal members of Canadian society. They arise from the fact that aboriginal people are aboriginal…

[20] The task of this Court is to define aboriginal rights in a manner which recognizes that aboriginal rights are rights but which does so without losing sight of the fact that they are rights held by aboriginal people because they are aboriginal. The Court must neither lose sight of the generalized constitutional status of what s. 35(1) protects, nor can it ignore the necessary specificity which comes from granting special constitutional protection to one part of Canadian society. The Court must define the scope of s. 35(1) in a way which captures both the aboriginal and the rights in aboriginal rights.

[21] The way to accomplish this task is, as was noted at the outset, through a purposive approach to s. 35(1). It is through identifying the interests that s. 35(1) was intended to protect that the dual nature of aboriginal rights will be comprehended. In *Hunter v. Southam Inc.*, 1984 CanLII 33 (SCC), [1984] 2 S.C.R. 145, Dickson J. explained the rationale for a purposive approach to constitutional documents. Courts should take a purposive approach to the Constitution because constitutions are, by their very nature, documents aimed at a country's future as well as its present; the Constitution must be interpreted in a manner which renders it "capable of growth and development over time to meet new social, political and historical realities often unimagined by its framers": *Hunter*, *supra*, at p. 155. A purposive approach to s. 35(1), because ensuring that the provision is not viewed as static and only relevant to current circumstances, will ensure that the recognition and affirmation it offers are consistent with the fact that what it is recognizing and affirming are "rights". Further, because it requires the court to analyze a given constitutional provision "in the light of the interests it was meant to protect"(*Big M Drug Mart Ltd.*, *supra*, at p. 344), a purposive approach to s. 35(1) will ensure that that which is found to fall within the provision is related to the provision's intended focus: aboriginal people and their rights in relation to Canadian society as a whole.

…

General Principles Applicable to Legal Disputes Between Aboriginal Peoples and the Crown

[23] Before turning to a purposive analysis of s. 35(1), however, it should be noted that such analysis must take place in light of the general principles which apply to the legal relationship between the Crown and aboriginal peoples. In *Sparrow, supra*, this Court held at p. 1106 that s. 35(1) should be given a generous and liberal interpretation in favour of aboriginal peoples…

[24] This interpretive principle, articulated first in the context of treaty rights … arises from the nature of the relationship between the Crown and aboriginal peoples. The Crown has a fiduciary obligation to aboriginal peoples with the result that in dealings between the government and aboriginals the honour of the Crown is at stake. Because of this fiduciary relationship, and its implication of the honour of the Crown, treaties, s. 35(1), and other statutory and constitutional provisions protecting the interests of aboriginal peoples, must be given a generous and liberal interpretation: *R. v. George*, 1966 CanLII 2 (SCC), [1966] S.C.R. 267, at p. 279. This general principle must inform the Court's analysis of the purposes underlying s. 35(1), and of that provision's definition and scope.

[25] The fiduciary relationship of the Crown and aboriginal peoples also means that where there is any doubt or ambiguity with regards to what falls within the scope and definition of s. 35(1), such doubt or ambiguity must be resolved in favour of aboriginal peoples…

Purposive Analysis of Section 35(1)

[26] I now turn to a purposive analysis of s. 35(1).

…

[28] In identifying the basis for the recognition and affirmation of aboriginal rights it must be remembered that s. 35(1) did not create the legal doctrine of aboriginal rights; aboriginal rights existed and were recognized under the common law: *Calder v. Attorney-General of British Columbia*, 1973 CanLII 4 (SCC), [1973] S.C.R. 313. At common law aboriginal rights did not, of course, have constitutional status, with the result that Parliament could, at any time, extinguish or regulate those rights… Subsequent to s. 35(1) aboriginal rights cannot be extinguished and can only be regulated or infringed consistent with the justificatory test laid out by this Court in *Sparrow*, *supra*.

...

[30] In my view, the doctrine of aboriginal rights exists, and is recognized and affirmed by s. 35(1), because of one simple fact: when Europeans arrived in North America, aboriginal peoples were already here, living in communities on the land, and participating in distinctive cultures, as they had done for centuries. It is this fact, and this fact above all others, which separates aboriginal peoples from all other minority groups in Canadian society and which mandates their special legal, and now constitutional, status.

[31] More specifically, what s. 35(1) does is provide the constitutional framework through which the fact that aboriginals lived on the land in distinctive societies, with their own practices, traditions and cultures, is acknowledged and reconciled with the sovereignty of the Crown. The substantive rights which fall within the provision must be defined in light of this purpose; the aboriginal rights recognized and affirmed by s. 35(1) must be directed towards the reconciliation of the pre-existence of aboriginal societies with the sovereignty of the Crown.

[32] That the purpose of s. 35(1) lies in its recognition of the prior occupation of North America by aboriginal peoples is suggested by the French version of the text. For the English "existing aboriginal and treaty rights" the French text reads "[l]es droits existants -- ancestraux ou issus de traités". The term "ancestral", which Le Petit Robert 1 (1990) dictionary defines as "[q]ui a appartenu aux ancêtres, qu'on tient des ancêtres", suggests that the rights recognized and affirmed by s. 35(1) must be temporally rooted in the historical presence -- the ancestry -- of aboriginal peoples in North America.

[33] This approach to s. 35(1) is also supported by the prior jurisprudence of this Court. [A brief discussion of pre-1982 Aboriginal title cases follows, cited for the purpose of basing Aboriginal rights in Indigenous societies' prior occupation of the territory].

[35] The view of aboriginal rights as based in the prior occupation of North America by distinctive aboriginal societies, finds support in the early American decisions of Marshall C.J. …

[36] In *Johnson v. M'Intosh*, 21 U.S. (8 Wheat.) 543 (1823), the first of the Marshall decisions on aboriginal title, the Supreme Court held that Indian land could only be alienated by the U.S. government, not by the Indians themselves. In the course of his decision (written for the court), Marshall C.J. outlined the history of the exploration of North America by the countries of Europe and the relationship between this exploration and aboriginal title. In his view, aboriginal title is the right of aboriginal people to land arising from the intersection of their pre-existing occupation of the land with the assertion of sovereignty over that land by various European nations. The substance and nature of aboriginal rights to land are determined by this intersection…

It is, similarly, the reconciliation of pre-existing aboriginal claims to the territory that now constitutes Canada, with the assertion of British sovereignty over that territory, to which the recognition and affirmation of aboriginal rights in s. 35(1) is directed.

…

[38] The High Court of Australia has also considered the question of the basis and nature of aboriginal rights. Like that of the United States, Australia's aboriginal law differs in significant respects from that of Canada… Despite these relevant differences, the analysis of the basis of aboriginal title in the landmark decision of the High Court in *Mabo v. Queensland [No. 2]* (1992), 175 C.L.R. 1, is persuasive in the Canadian context.

[39] The *Mabo* judgment resolved the dispute between the Meriam people and the Crown regarding who had title to the Murray Islands. The islands had been annexed to Queensland in 1879 but were reserved for the native inhabitants (the Meriam) in 1882. The Crown argued that this annexation was sufficient to vest absolute ownership of the lands in the Crown. The High Court disagreed, holding that while the annexation did vest radical title in the Crown, it was insufficient to eliminate a claim for native title; the court held at pp. 50-51 that native title can exist as a burden on the radical title of the Crown: "there is no reason why land within the Crown's territory should not continue to be subject to native title. It is only the fallacy of equating sovereignty and beneficial ownership of land that gives rise to the notion that native title is extinguished by the acquisition of sovereignty".

[40] From this premise, Brennan J., writing for a majority of the Court, went on at p. 58 to consider the nature and basis of aboriginal title:

> Native title has its origin in and is given its content by the traditional laws acknowledged by and the traditional customs observed by the indigenous inhabitants of a territory. …

This position is the same as that being adopted here. "Traditional laws" and "traditional customs" are those things passed down, and arising, from the pre-existing culture and customs of aboriginal peoples. The very meaning of the word "tradition" -- that which is "handed down [from ancestors] to posterity", *The Concise Oxford Dictionary* (9th ed. 1995), -- implies these origins for the customs and laws that the Australian

High Court in *Mabo* is asserting to be relevant for the determination of the existence of aboriginal title. To base aboriginal title in traditional laws and customs, as was done in *Mabo*, is, therefore, to base that title in the pre-existing societies of aboriginal peoples. This is the same basis as that asserted here for aboriginal rights.

[41] Academic commentators have also been consistent in identifying the basis and foundation of the s. 35(1) claims of aboriginal peoples in aboriginal occupation of North America prior to the arrival of Europeans…

[42] I would note that the legal literature also supports the position that s. 35(1) provides the constitutional framework for reconciliation of the pre-existence of distinctive aboriginal societies occupying the land with Crown sovereignty…

[43] The Canadian, American and Australian jurisprudence thus supports the basic proposition put forward at the beginning of this section: the aboriginal rights recognized and affirmed by s. 35(1) are best understood as, first, the means by which the Constitution recognizes the fact that prior to the arrival of Europeans in North America the land was already occupied by distinctive aboriginal societies, and as, second, the means by which that prior occupation is reconciled with the assertion of Crown sovereignty over Canadian territory. The content of aboriginal rights must be directed at fulfilling both of these purposes; the next section of the judgment, as well as that which follows it, will attempt to accomplish this task.

The Test for Identifying Aboriginal Rights in Section 35(1)

[44] In order to fulfil the purpose underlying s. 35(1) -- i.e., the protection and reconciliation of the interests which arise from the fact that prior to the arrival of Europeans in North America aboriginal peoples lived on the land in distinctive societies, with their own practices, customs and traditions -- the test for identifying the aboriginal rights recognized and affirmed by s. 35(1) must be directed at identifying the crucial elements of those pre-existing distinctive societies. It must, in other words, aim at identifying the practices, traditions and customs central to the aboriginal societies that existed in North America prior to contact with the Europeans.

…

[46] In light of … the purposes underlying s. 35(1), the following test should be used to identify whether an applicant has established an aboriginal right protected by s. 35(1): in order to be an aboriginal right an activity must be an element of a practice, custom or tradition integral to the distinctive culture of the aboriginal group claiming the right.

…

Factors to be Considered in Application of the Integral to a Distinctive Culture Test

…

Courts must take into account the perspective of aboriginal peoples themselves

[49] In assessing a claim for the existence of an aboriginal right, a court must take into account the perspective of the aboriginal people claiming the right. In *Sparrow*, *supra*, Dickson C.J. and La Forest J. held, at p. 1112, that it is "crucial to be sensitive to the aboriginal perspective itself on the meaning of the rights at stake". It must also be recognized, however, that that perspective must be framed in terms cognizable to the Canadian legal and constitutional structure. As has already been noted, one of the fundamental purposes of s. 35(1) is the reconciliation of the pre-existence of distinctive aboriginal societies with the assertion of Crown sovereignty. Courts adjudicating aboriginal rights claims must, therefore, be sensitive to the aboriginal perspective, but they must also be aware that aboriginal rights exist within the general legal system of Canada. To quote again Walters, at p. 413: "a morally and politically defensible conception of aboriginal rights will incorporate both [aboriginal and non-aboriginal] legal perspectives". The definition of an aboriginal right must, if it is truly to reconcile the prior occupation of Canadian territory by aboriginal peoples with the assertion of Crown sovereignty over that territory, take into account the aboriginal perspective, yet do so in terms which are cognizable to the non-aboriginal legal system.

[50] It is possible, of course, that the Court could be said to be "reconciling" the prior occupation of Canada by aboriginal peoples with Crown sovereignty through either a narrow or broad conception of aboriginal rights; the notion of "reconciliation" does not, in the abstract, mandate a particular content for aboriginal rights. However, the only fair and just reconciliation is, as Walters suggests, one which takes into account the aboriginal perspective while at the same time taking into account the perspective of the common law. True reconciliation will, equally, place weight on each.

Courts must identify precisely the nature of the claim being made in determining whether an aboriginal claimant has demonstrated the existence of an aboriginal right

[51] Related to this is the fact that in assessing a claim to an aboriginal right a court must first identify the nature of the right being claimed; in order to determine whether a claim meets the test of being integral to the distinctive culture of the aboriginal group claiming the right, the court must first correctly determine what it is that is being claimed. The correct characterization of the appellant's claim is of importance because whether or not the evidence supports the appellant's claim will depend, in significant part, on what, exactly, that evidence is being called to support.

[52] I would note here by way of illustration that, in my view, both the majority and the dissenting judges in the Court of Appeal erred with respect to this aspect of the inquiry. The majority held that the appellant's claim was that the practice of selling fish "on a commercial basis" constituted an aboriginal right and, in part, rejected her claim on the basis that the evidence did not support the existence of such a right. With respect, this characterization of the appellant's claim is in error; the appellant's claim was that the practice of selling fish was an aboriginal right, not that selling fish "on a commercial basis" was. It was however, equally incorrect to adopt, as Lambert J.A. did, a "social" test for the identification of the practice, tradition or custom constituting the aboriginal right. The social test casts the aboriginal right in terms that are too broad and in a manner which distracts the court from what should be its main focus -- the nature of the aboriginal community's practices, customs or traditions themselves. The nature of an applicant's claim must be delineated in terms of the particular practice, custom or tradition under which it is claimed; the significance of the practice, custom or tradition to the aboriginal community is a factor to be considered in determining whether the practice, custom or tradition is integral to the distinctive culture, but the significance of a practice, custom or tradition cannot, itself, constitute an aboriginal right.

[53] To characterize an applicant's claim correctly, a court should consider such factors as the nature of the action which the applicant is claiming was done pursuant to an aboriginal right, the nature of the governmental regulation, statute or action being impugned, and the practice, custom or tradition being relied upon to establish the right. In this case, therefore, the Court will consider the actions which led to the appellant's being charged, the fishery regulation under which she was charged and the practices, customs and traditions she invokes in support of her claim.

[54] It should be acknowledged that a characterization of the nature of the appellant's claim from the actions which led to her being charged must be undertaken with some caution. In order to inform the court's analysis the activities must be considered at a general rather than at a specific level. Moreover, the court must bear in mind that the activities may be the exercise in a modern form of a practice, custom or tradition that existed prior to contact, and should vary its characterization of the claim accordingly.

In order to be integral a practice, custom or tradition must be of central significance to the aboriginal society in question

[55] To satisfy the integral to a distinctive culture test the aboriginal claimant must do more than demonstrate that a practice, custom or tradition was an aspect of, or took place in, the aboriginal society of which he or she is a part. The claimant must demonstrate that the practice, custom or tradition was a central and significant part of the society's distinctive culture. He or she must demonstrate, in other words, that the practice, custom or tradition was one of the things which made the culture of the society distinctive -- that it was one of the things that truly made the society what it was.

[56] This aspect of the integral to a distinctive culture test arises from fact that aboriginal rights have their basis in the prior occupation of Canada by distinctive aboriginal societies. To recognize and affirm the prior occupation of Canada by distinctive aboriginal societies it is to what makes those societies distinctive that the court must look in identifying aboriginal rights. The court cannot look at those aspects of the aboriginal society that are true of every human society (e.g., eating to survive), nor can it look at those aspects of the aboriginal society that are only incidental or occasional to that society; the court must look instead to the defining and central attributes of the aboriginal society in question. It is only by focusing on the aspects of the aboriginal society that make that society distinctive that the definition of aboriginal rights will accomplish the purpose underlying s. 35(1).

[57] Moreover, the aboriginal rights protected by s. 35(1) have been said to have the purpose of reconciling pre-existing aboriginal societies with the assertion of Crown sovereignty over Canada. To reconcile aboriginal societies with Crown sovereignty it is necessary to identify the distinctive features of those societies; it is precisely those distinctive features which need to be acknowledged and reconciled with the sovereignty of the Crown.

…

[59] A practical way of thinking about this problem is to ask whether, without this practice, custom or tradition, the culture in question would be fundamentally altered or other than what it is. One must ask, to put the question affirmatively, whether or not a practice, custom or tradition is a defining feature of the culture in question.

The practices, customs and traditions which constitute aboriginal rights are those which have continuity with the practices, customs and traditions that existed prior to contact

[60] The time period that a court should consider in identifying whether the right claimed meets the standard of being integral to the aboriginal community claiming the right is the period prior to contact between aboriginal and European societies. Because it is the fact that distinctive aboriginal societies lived on the land prior to the arrival of Europeans that underlies the aboriginal rights protected by s. 35(1), it is to that pre-contact period that the courts must look in identifying aboriginal rights.

[61] The fact that the doctrine of aboriginal rights functions to reconcile the existence of pre-existing aboriginal societies with the sovereignty of the Crown does not alter this position. Although it is the sovereignty of the Crown that the pre-existing aboriginal societies are being reconciled with, it is to those pre-existing societies that the court must look in defining aboriginal rights. It is not the fact that aboriginal societies existed prior to Crown sovereignty that is relevant; it is the fact that they existed prior to the arrival of Europeans in North America. As such, the relevant time period is the period prior to the arrival of Europeans, not the period prior to the assertion of sovereignty by the Crown.

[62] That this is the relevant time should not suggest, however, that the aboriginal group claiming the right must accomplish the next to impossible task of producing conclusive evidence from pre-contact times about the practices, customs and traditions of their community. It would be entirely contrary to the spirit and intent of s. 35(1) to define aboriginal rights in such a fashion so as to preclude in practice any successful claim for the existence of such a right. The evidence relied upon by the applicant and the courts may relate to aboriginal practices, customs and traditions post-contact; it simply needs to be directed at demonstrating which aspects of the aboriginal community and society have their origins pre-contact. It is those practices, customs and traditions that can be rooted in the pre-contact societies of the aboriginal community in question that will constitute aboriginal rights.

…

[64] The concept of continuity is also the primary means through which the definition and identification of aboriginal rights will be consistent with the admonition in *Sparrow*, *supra*, at p. 1093, that "the phrase ‘existing aboriginal rights’ must be interpreted flexibly so as to permit their evolution over time". The concept of continuity is, in other words, the means by which a "frozen rights" approach to s. 35(1) will be avoided. Because the practices, customs and traditions protected by s. 35(1) are ones that exist today, subject only to the requirement that they be demonstrated to have continuity with the practices, customs and traditions which existed pre-contact, the definition of aboriginal rights will be one that, on its own terms, prevents those rights from being frozen in pre-contact times. The evolution of practices, customs and traditions into modern forms will not, provided that continuity with pre-contact practices, customs and traditions is demonstrated, prevent their protection as aboriginal rights.

[65] I would note that the concept of continuity does not require aboriginal groups to provide evidence of an unbroken chain of continuity between their current practices, customs and traditions, and those which existed prior to contact. It may be that for a period of time an aboriginal group, for some reason, ceased to engage in a practice, custom or tradition which existed prior to contact, but then resumed the practice, custom or tradition at a later date. Such an interruption will not preclude the establishment of an aboriginal right. Trial judges should adopt the same flexibility regarding the establishment of continuity that, as is discussed, *infra*, they are to adopt with regards to the evidence presented to establish the prior-to-contact practices, customs and traditions of the aboriginal group making the claim to an aboriginal right.

[66] Further, I would note that basing the identification of aboriginal rights in the period prior to contact is not inconsistent with the fact that s. 35(2) of the *Constitution Act, 1982* includes within the definition of "aboriginal peoples of Canada" the Métis people of Canada.

[67] Although s. 35 includes the Métis within its definition of “aboriginal peoples of Canada”, and thus seems to link their claims to those of other aboriginal peoples under the general heading of “aboriginal rights”, the history of the Métis, and the reasons underlying their inclusion in the protection given by s. 35, are quite distinct from those of other aboriginal peoples in Canada. As such, the manner in which the aboriginal rights of other aboriginal peoples are defined is not necessarily determinative of the manner in which the aboriginal rights of the Métis are defined. At the time when this Court is presented with a Métis claim under s. 35 it will then, with the benefit of the arguments of counsel, a factual context and a specific Métis claim, be able to explore the question of the purposes underlying s. 35's protection of the aboriginal rights of Métis people, and answer the question of the kinds of claims which fall within s. 35(1)’s scope when the claimants are Métis. The fact that, for other aboriginal peoples, the protection granted by s. 35 goes to the practices, customs and traditions of aboriginal peoples prior to contact, is not necessarily relevant to the answer which will be given to that question. It may, or it may not, be the case that the claims of the Métis are determined on the basis of the pre-contact practices, customs and traditions of their aboriginal ancestors; whether that is so must await determination in a case in which the issue arises.

Courts must approach the rules of evidence in light of the evidentiary difficulties inherent in adjudicating aboriginal claims

[68] In determining whether an aboriginal claimant has produced evidence sufficient to demonstrate that her activity is an aspect of a practice, custom or tradition integral to a distinctive aboriginal culture, a court should approach the rules of evidence, and interpret the evidence that exists, with a consciousness of the special nature of aboriginal claims, and of the evidentiary difficulties in proving a right which originates in times where there were no written records of the practices, customs and traditions engaged in. The courts must not undervalue the evidence presented by aboriginal claimants simply because that evidence does not conform precisely with the evidentiary standards that would be applied in, for example, a private law torts case.

Claims to aboriginal rights must be adjudicated on a specific rather than general basis

[69] Courts considering a claim to the existence of an aboriginal right must focus specifically on the practices, customs and traditions of the particular aboriginal group claiming the right… the existence of an aboriginal right will depend entirely on the practices, customs and traditions of the particular aboriginal community claiming the right. As has already been suggested, aboriginal rights are constitutional rights, but that does not negate the central fact that the interests aboriginal rights are intended to protect relate to the specific history of the group claiming the right. Aboriginal rights are not general and universal; their scope and content must be determined on a case-by-case basis. The fact that one group of aboriginal people has an aboriginal right to do a particular thing will not be, without something more, sufficient to demonstrate that another aboriginal community has the same aboriginal right. The existence of the right will be specific to each aboriginal community.

For a practice, custom or tradition to constitute an aboriginal right it must be of independent significance to the aboriginal culture in which it exists

[70] In identifying those practices, customs and traditions that constitute the aboriginal rights recognized and affirmed by s. 35(1), a court must ensure that the practice, custom or tradition relied upon in a particular case is independently significant to the aboriginal community claiming the right. The practice, custom or tradition cannot exist simply as an incident to another practice, custom or tradition but must rather be itself of integral significance to the aboriginal society. Where two customs exist, but one is merely incidental to the other, the custom which is integral to the aboriginal community in question will qualify as an aboriginal right, but the custom that is merely incidental will not. Incidental practices, customs and traditions cannot qualify as aboriginal rights through a process of piggybacking on integral practices, customs and traditions.

The integral to a distinctive culture test requires that a practice, custom or tradition be distinctive; it does not require that that practice, custom or tradition be distinct

[71] The standard which a practice, custom or tradition must meet in order to be recognized as an aboriginal right is not that it be distinct to the aboriginal culture in question; the aboriginal claimants must simply demonstrate that the practice, custom or tradition is distinctive. A tradition or custom that is distinct is one that is unique -- "different in kind or quality; unlike" (*Concise Oxford Dictionary*, *supra*). A culture with a distinct tradition must claim that in having such a tradition it is different from other cultures; a claim of distinctness is, by its very nature, a claim relative to other cultures or traditions. By contrast, a culture that claims that a practice, custom or tradition is distinctive -- "distinguishing, characteristic" -- makes a claim that is not relative; the claim is rather one about the culture's own practices, customs or traditions considered apart from the practices, customs or traditions of any other culture. It is a claim that this tradition or custom makes the culture what it is, not that the practice, custom or tradition is different from the practices, customs or traditions of another culture. The person or community claiming the existence of an aboriginal right protected by s. 35(1) need only show that the particular practice, custom or tradition which it is claiming to be an aboriginal right is distinctive, not that it is distinct.

[72] That the standard an aboriginal community must meet is distinctiveness, not distinctness, arises from the recognition in *Sparrow*, *supra*, of an aboriginal right to fish for food. Certainly, no aboriginal group in Canada could claim that its culture is "distinct" or unique in fishing for food; fishing for food is something done by many different cultures and societies around the world. What the Musqueam claimed in *Sparrow*, *supra*, was rather that it was fishing for food which, in part, made Musqueam culture what it is; fishing for food was characteristic of Musqueam culture and, therefore, a distinctive part of that culture. Since it was so it constituted an aboriginal right under s. 35(1).

The influence of European culture will only be relevant to the inquiry if it is demonstrated that the practice, custom or tradition is only integral because of that influence.

[73] The fact that Europeans in North America engaged in the same practices, customs or traditions as those under which an aboriginal right is claimed will only be relevant to the aboriginal claim if the practice, custom or tradition in question can only be said to exist because of the influence of European culture. If the practice, custom or tradition was an integral part of the aboriginal community's culture prior to contact with Europeans, the fact that that practice, custom or tradition continued after the arrival of Europeans, and adapted in response to their arrival, is not relevant to determination of the claim; European arrival and influence cannot be used to deprive an aboriginal group of an otherwise valid claim to an aboriginal right. On the other hand, where the practice, custom or tradition arose solely as a response to European influences then that practice, custom or tradition will not meet the standard for recognition of an aboriginal right.

Courts must take into account both the relationship of aboriginal peoples to the land and the distinctive societies and cultures of aboriginal peoples

[74] As was noted in the discussion of the purposes of s. 35(1), aboriginal rights and aboriginal title are related concepts; aboriginal title is a sub-category of aboriginal rights which deals solely with claims of rights to land. The relationship between aboriginal title and aboriginal rights must not, however, confuse the analysis of what constitutes an aboriginal right. Aboriginal rights arise from the prior occupation of land, but they also arise from the prior social organization and distinctive cultures of aboriginal peoples on that land. In considering whether a claim to an aboriginal right has been made out, courts must look at both the relationship of an aboriginal claimant to the land and at the practices, customs and traditions arising from the claimant's distinctive culture and society. Courts must not focus so entirely on the relationship of aboriginal peoples with the land that they lose sight of the other factors relevant to the identification and definition of aboriginal rights.

…

Application of the Integral to a Distinctive Culture Test to the Appellant's Claim

[76] The first step in the application of the integral to a distinctive culture test requires the court to identify the precise nature of the appellant's claim to have been exercising an aboriginal right. In this case the most accurate characterization of the appellant's position is that she is claiming an aboriginal right to exchange fish for money or for other goods. She is claiming, in other words, that the practices, customs and traditions of the Sto:lo include as an integral part the exchange of fish for money or other goods.

[77] That this is the nature of the appellant's claim can be seen through both the specific acts which led to her being charged and through the regulation under which she was charged. Mrs. Van der Peet sold 10 salmon for $50. Such a sale, especially given the absence of evidence that the appellant had sold salmon on other occasions or on a regular basis, cannot be said to constitute a sale on a "commercial" or

market basis. These actions are instead best characterized in the simple terms of an exchange of fish for money. It follows from this that the aboriginal right pursuant to which the appellant is arguing that her actions were taken is, like the actions themselves, best characterized as an aboriginal right to exchange fish for money or other goods.

[78] Moreover, the regulations under which the appellant was charged prohibit all sale or trade of fish caught pursuant to an Indian food fish licence. As such, to argue that those regulations implicate the appellant's aboriginal right requires no more of her than that she demonstrate an aboriginal right to the exchange of fish for money (sale) or other goods (trade). She does not need to demonstrate an aboriginal right to sell fish commercially.

[79] The appellant herself characterizes her claim as based on a right "to sufficient fish to provide for a moderate livelihood". In so doing the appellant relies on the "social" test adopted by Lambert J.A. at the British Columbia Court of Appeal. As has already been noted, however, a claim to an aboriginal right cannot be based on the significance of an aboriginal practice, custom or tradition to the aboriginal community in question. The definition of aboriginal rights is determined through the process of determining whether a particular practice, custom or tradition is integral to the distinctive culture of the aboriginal group. The significance of the practice, custom or tradition is relevant to the determination of whether that practice, custom or tradition is integral, but cannot itself constitute the claim to an aboriginal right. As such, the appellant's claim cannot be characterized as based on an assertion that the Sto:lo's use of the fishery, and the practices, customs and traditions surrounding that use, had the significance of providing the Sto:lo with a moderate livelihood. It must instead be based on the actual practices, customs and traditions related to the fishery, here the custom of exchanging fish for money or other goods.

[80] Having thus identified the nature of the appellant's claim, I turn to the fundamental question of the integral to a distinctive culture test: Was the practice of exchanging fish for money or other goods an integral part of the specific distinctive culture of the Sto:lo prior to contact with Europeans? …

[81] It is a well-settled principle of law that when an appellate court reviews the decision of a trial judge that court must give considerable deference to the trial judge's findings of fact, particularly where those findings of fact are based on the trial judge's assessment of the testimony and credibility of witnesses. …

[82] In the case at bar, Scarlett Prov. Ct. J., the trial judge, made findings of fact based on the testimony and evidence before him, and then proceeded to make a determination as to whether those findings of fact supported the appellant's claim to the existence of an aboriginal right…

…

[84] Scarlett Prov. Ct. J. carefully considered all of the testimony presented by the various witnesses with regards to the nature of Sto:lo society and came to the following conclusions at p. 160:

> Clearly, the Sto:lo fish for food and ceremonial purposes. Evidence presented did not establish a regularized market system in the exchange of fish. Such fish as were exchanged through individual trade, gift, or barter were fish surplus from time to time. Natives did not fish to supply a market, there being no regularized trading system, nor were they able to preserve and store fish for extended periods of time. A market as such for salmon was not present but created by European traders, primarily the Hudson's Bay Company. At Fort Langley the Sto:lo were able to catch and deliver fresh salmon to the traders where it was salted and exported. This use was clearly different in nature and quantity from aboriginal activity. Trade in dried salmon with the fort was clearly dependent upon Sto:lo first satisfying their own requirements for food and ceremony.
>
> This court was not satisfied upon the evidence that aboriginal trade in salmon took place in any regularized or market sense. Oral evidence demonstrated that trade was incidental to fishing for food purposes. Anthropological and archaeological evidence was in conflict. This Court accepts the evidence of Dr. Stryd and John Dewhurst [sic] in preference to Dr. Daly and therefore, accepts that the Sto:lo were a band culture as opposed to tribal. While bands were guided by siem or prominent families, no regularized trade in salmon existed in aboriginal times. Such trade as took place was either for ceremonial purposes or opportunistic exchanges taking place on a casual basis. Such trade as did take place was incidental only. Evidence led by the Crown that the Sto:lo had no access to salt for food preservation is accepted.
>
> Exchange of fish was subject to local conditions of availability, transportation and preservation. It was the establishment by the Hudson's Bay Company at the fort at Langley that created the market and trade in fresh salmon. Trade in dried salmon in aboriginal times was, as stated, minimal and opportunistic.

I would add to Scarlett Prov. Ct. J.'s summation of his findings only the observation, which does not contradict any of his specific findings, that the testimony of the experts appearing before him indicated that such limited exchanges of salmon as took place in Sto:lo society were primarily linked to the kinship and family relationships on which Sto:lo society was based…

[85] The facts as found by Scarlett Prov. Ct. J. do not support the appellant's claim that the exchange of salmon for money or other goods was an integral part of the distinctive culture of the Sto:lo. As has already been noted, in order to be recognized as an aboriginal right, an activity must be of central significance to the culture in question -- it must be something which makes that culture what it is. The findings of fact made by Scarlett Prov. Ct. J. suggest that the exchange of salmon for money or other goods, while certainly taking place in Sto:lo society prior to contact, was not a significant, integral or defining feature of that society.

[86] First, Scarlett Prov. Ct. J. found that, prior to contact, exchanges of fish were only "incidental" to fishing for food purposes. As was noted above, to constitute an aboriginal right, a custom must itself be integral to the distinctive culture of the aboriginal community in question; it cannot be simply incidental to an integral custom. Thus, while the evidence clearly demonstrated that fishing for food and ceremonial purposes was a significant and defining feature of the Sto:lo culture, this is not sufficient, absent a demonstration that the exchange of salmon was <u>itself</u> a significant and defining feature of Sto:lo society, to demonstrate that the exchange of salmon is an integral part of Sto:lo culture.

[87] For similar reasons, the evidence linking the exchange of salmon to the maintenance of kinship and family relations does not support the appellant's claim to the existence of an aboriginal right. Exchange of salmon as part of the interaction of kin and family is not of an independent significance sufficient to ground a claim for an aboriginal right to the exchange of fish for money or other goods.

[88] Second, Scarlett Prov. Ct. J. found that there was no "regularized trading system" amongst the Sto:lo prior to contact. The inference drawn from this fact by Scarlett Prov. Ct. J., and by Macfarlane J.A. at the British Columbia Court of Appeal, was that the absence of a market means that the appellant could not be said to have been acting pursuant to an aboriginal right because it suggests that there is no aboriginal right to fish commercially. This inference is incorrect because, as has already been suggested, the appellant in this case has only claimed a right to exchange fish for money or other goods, not a right to sell fish in the commercial marketplace; the significance of the absence of regularized trading systems amongst the Sto:lo arises instead from the fact that it indicates that the exchange of salmon was not widespread in Sto:lo society. Given that the exchange of salmon was not widespread it cannot be said that, prior to contact, Sto:lo culture was defined by trade in salmon; trade or exchange of salmon took place, but the absence of a market demonstrates that this exchange did not take place on a basis widespread enough to suggest that the exchange was a defining feature of Sto:lo society.

[89] Third, the trade engaged in between the Sto:lo and the Hudson's Bay Company, while certainly of significance to the Sto:lo society of the time, was found by the trial judge to be qualitatively different from that which was typical of the Sto:lo culture prior to contact. As such, it does not provide an evidentiary basis for holding that the exchange of salmon was an integral part of Sto:lo culture. As was emphasized in listing the criteria to be considered in applying the "integral to" test, the time relevant for the identification of aboriginal rights is prior to contact with European societies. Unless a post-contact practice, custom or tradition can be shown to have continuity with pre-contact practices, customs or traditions, it will not be held to be an aboriginal right. The trade of salmon between the Sto:lo and the Hudson's Bay Company does not have the necessary continuity with Sto:lo culture pre-contact to support a claim to an aboriginal right to trade salmon. Further, the exchange of salmon between the Sto:lo and the Hudson's Bay Company can be seen as central or significant to the Sto:lo primarily as a result of European influences; activities which become central or significant because of the influence of European culture cannot be said to be aboriginal rights.

[90] Finally, Scarlett Prov. Ct. J. found that the Sto:lo were at a band level of social organization rather than at a tribal level. As noted by the various experts, one of the central distinctions between a band society and a tribal society relates to specialization and division of labour. In a tribal society there tends to be specialization of labour -- for example, specialization in the gathering and trade of fish -- whereas in a band society division of labour tends to occur only on the basis of gender or age. The absence of specialization in the exploitation of the fishery is suggestive, in the same way that the absence of regularized trade or a market is suggestive, that the exchange of fish was not a central part of Sto:lo culture. I would note here as well Scarlett Prov. Ct. J.'s finding that the Sto:lo did not have the means for preserving fish for extended periods of time, something which is also suggestive that the exchange or trade of fish was not central to the Sto:lo way of life.

[91] For these reasons, then, I would conclude that the appellant has failed to demonstrate that the exchange of fish for money or other goods was an integral part of the distinctive Sto:lo society which existed prior to contact. The exchange of fish took place, but was not a central, significant or defining feature of Sto:lo society. The appellant has thus failed to demonstrate that the exchange of salmon for money or other goods by the Sto:lo is an aboriginal right recognized and affirmed under s. 35(1) of the *Constitution Act, 1982*.

2.2.2 Dissent

Both Justices L'Heureux-Dubé and McLachlin (as she then was) dissented in *Van der Peet*. For L'Heureux-Dubé J, Aboriginal rights should be analyzed "from a certain level of abstraction and generality." Instead of yielding a "catalogue of individualized practices, traditions or customs," a result she attributed to the majority's approach, she held that s 35(1) should protect the "the 'distinctive culture' of which aboriginal activities are manifestations" (see paras 155-157).

For her part, Justice McLachlin would have preferred a more "pragmatic" or "empirical approach." She described both the majority and Justice L'Heureux-Dubé's approaches as "reasoning from first principles," defining in the abstract the kinds of things that could be Aboriginal rights (see paras. 261-262). In her view, the common law's general approach of "reasoning from the experience of decided cases and recognized rights" was more appropriate here. Applying that approach to this case, she held (at para 278):

> If the aboriginal people show that they traditionally sustained themselves from the river or sea, then they have a *prima facie* right to continue to do so, absent a treaty exchanging that right for other consideration. At its base, the right is not the right to trade, but the right to continue to use the resource in the traditional way to provide for the traditional needs, albeit in their modern form. However, if the people demonstrate that trade is the only way of using the resource to provide the modern equivalent of what they traditionally took, it follows that the people should be permitted to trade in the resource to the extent necessary to provide the replacement goods and amenities. In this context, trade is but the mode or practice by which the more fundamental right of drawing sustenance from the resource is exercised.

Which approach, in your view, best meets the purpose of s. 35(1) and the ongoing challenges of Canada's relationship with Indigenous groups? Why?

2.3 *R. v. Gladstone*, 1996 CanLII 160 (SCC), [1996] 2 SCR 723

THE CHIEF JUSTICE --

I. Facts

[1] Donald and William Gladstone, the appellants, are members of the Heiltsuk Band. The appellants were charged under s. 61(1) of the Fisheries Act, R.S.C. 1970, c. F-14, with the offences of offering to sell herring spawn on kelp caught under the authority of an Indian food fish licence, contrary to s. 27(5) of the British Columbia Fishery (General) Regulations, SOR/84-248 and of attempting to sell herring spawn on kelp not caught under the authority of a Category J herring spawn on kelp licence, contrary to s. 20(3) of the Pacific Herring Fishery Regulations, SOR/84-324. Only the charges arising under s. 20(3) of the Pacific Herring Fishery Regulations are still at issue in this appeal.

[2] The charges arose out of events taking place in April of 1988. On approximately April 27, 1988 the appellants shipped 4,200 pounds of herring spawn on kelp from Bella Bella to Richmond, a suburb of Vancouver. On April 28, 1988, the appellants took a pail containing approximately 35 pounds of herring spawn on kelp to Seaborn Enterprises Ltd., a fish store in Vancouver. At Seaborn Enterprises Ltd. the appellants had a conversation with Mr. Katsu Hirose, the owner of the store, in which they asked Mr. Hirose if he was "interested" in herring spawn on kelp. Mr. Hirose informed the appellants that he did not purchase herring spawn on kelp from Native Indians. Upon leaving Seaborn Enterprises Ltd. the appellants, who had been under surveillance by fisheries officers throughout these events, were arrested and the entire 4,200 pounds of herring spawn on kelp was seized. Upon arrest the appellant William Gladstone produced an Indian food fish licence permitting him to harvest 500 pounds of herring spawn on kelp.

[3] At the time at which the appellants were charged s. 20(3) of the Pacific Herring Fishery Regulations read:

> 20. . . .
>
> (3) No person shall buy, sell, barter or attempt to buy, sell, or barter herring spawn on kelp other than herring spawn on kelp taken or collected under the authority of a Category J licence.

[4] The appellants have not disputed the essential facts of the case. The essence of the appellants' defence is that, in these circumstances, the regulations violated the appellants' aboriginal rights as recognized and affirmed by s. 35(1) of the Constitution Act, 1982 with the result that, by operation of s. 52 of the Constitution Act, 1982, the regulations are of no force or effect with respect to the appellants. The appellants also take the position that the facts related to the shipment of the herring spawn on kelp, and the conversation with Mr. Hirose, are insufficient to constitute an "attempt to sell" in law.

…

IV. Analysis

…

[23] The first step in applying the *Van der Peet* test is the determination of the precise nature of the claim being made, taking into account such factors as the nature of the action said to have been taken pursuant to an aboriginal right, the government regulation argued to infringe the right, and the practice, custom or tradition relied upon to establish the right. At this stage of the analysis the Court is, in essence, determining what the appellants will have to demonstrate to be an aboriginal right in order for the activities they were engaged in to be encompassed by s. 35(1). There is no point in the appellants' being shown to have an aboriginal right unless that aboriginal right includes the actual activity they were engaged in; this stage of the Van der Peet analysis ensures that the Court's inquiry is tailored to the actual activity of the appellants.

[24] This case… potentially creates problems at the characterization stage. The actions of the appellants… appear to be best characterized as the commercial exploitation of herring spawn on kelp. By contrast, the regulations under which the appellants were charged… prohibit all sale or trade in herring spawn on kelp without a Category J licence, appear, therefore, to be best characterized as aimed at the exchange of herring spawn on kelp for money or other goods, regardless of whether the extent or scale of that sale or trade could reasonably be characterized as commercial in nature. The means to resolve this difficulty in characterization… is by addressing both possible characterizations of the appellants' claim. This judgment will thus consider first, whether the appellants can demonstrate that the Heiltsuk Band has an aboriginal right to exchange herring spawn on kelp for money or other goods and will then go on to consider, second, whether the appellants have demonstrated the further aboriginal right of the Heiltsuk Band to sell herring spawn on kelp to the commercial market.

[25] The second step in the *Van der Peet* test requires the Court to determine whether the practice, custom or tradition claimed to be an aboriginal right was, prior to contact with Europeans, an integral part of the distinctive aboriginal society of the particular aboriginal people in question. The Court must thus, as has just been noted, determine in this case whether the exchange of herring spawn on kelp for money or other goods, and/or the sale or trade of herring spawn on kelp in the commercial marketplace, were, prior to contact, defining features of the distinctive culture of the Heiltsuk.

[26] The facts as found by the trial judge, and the evidence on which he relied, support the appellants' claim that exchange of herring spawn on kelp for money or other goods was a central, significant and defining feature of the culture of the Heiltsuk prior to contact. Moreover, those facts support the appellants' further claim that the exchange of herring spawn on kelp on a scale best characterized as commercial was an integral part of the distinctive culture of the Heiltsuk. In his reasons Lemiski Prov. Ct. J. summarized his findings of fact as follows:

> It cannot be disputed that hundreds of years ago, the Heiltsuk Indians regularly harvested herring spawn on kelp as a food source. The historical/anthropological records readily bear this out.
>
> I am also satisfied that this Band engaged in inter-tribal trading and barter of herring spawn on kelp. The exhibited Journal of Alexander McKenzie [sic] dated 1793 refers to this trade and the defence lead [sic] evidence of several other references to such trade.
>
> The Crown conceded that there may have been some incidental local trade but questions its extent and importance. The very fact that early explorers and visitors to the Bella Bella region noted this trading has to enhance its significance. All the various descriptions of this trading activity are in accord with common sense expectations. Obviously, one would not expect to see balance sheets and statistics in so primitive a time and setting. [Emphasis added.]

…

[28] In *Van der Peet*, at para. 62, this Court held that a claimant to an aboriginal right need not provide direct evidence of pre-contact activities to support his or her claim, but need only provide evidence which is "directed at demonstrating which aspects of the aboriginal community and society have their origins pre-contact. It is those practices, customs and traditions that can be rooted in the pre-contact societies of the aboriginal community in question that will constitute aboriginal rights". In *Van der Peet* this was described as the requirement of "continuity" -- the requirement that a practice, custom or tradition which is integral to the aboriginal community now be shown to have continuity with the practices, customs or traditions which existed prior to contact. The evidence presented in this case, accepted by the trial judge and summarized above, is precisely the type of evidence which satisfies this requirement. The appellants have provided clear evidence from which it can be inferred that, prior to contact, Heiltsuk society was, in significant part, based on such trade. The Heiltsuk were, both before and after contact, traders of herring spawn on kelp. Moreover, while to describe this activity as "commercial" prior to contact would be inaccurate given the link between the notion of commerce and the introduction of European culture, the extent and scope of the trading activities of the Heiltsuk support the claim that, for the purposes of s. 35(1) analysis, the Heiltsuk have demonstrated an aboriginal right to sell herring spawn on kelp to an extent best described as commercial. The evidence of Dr. Lane, and the diary of Dr. Tolmie, point to trade of herring spawn on kelp in "tons". While this evidence relates to trade post-contact, the diary of Alexander Mackenzie provides the link with pre-contact times; in essence, the sum of the evidence supports the claim of the appellants that commercial trade in herring spawn on kelp was an integral part of the distinctive culture of the Heiltsuk prior to contact.

[29] I would note that the significant difference between the situation of the appellants in this case, and the appellants in *Van der Peet* … lies in the fact that for the Heiltsuk Band trading in herring spawn on kelp was not an activity taking place as an incident to the social and ceremonial activities of the community; rather, trading in herring spawn on kelp was, in itself, a central and significant feature of Heiltsuk society…

…

Infringement

…

[40] At the infringement stage, the primary distinction between the factual context of *Sparrow*, and the context of this appeal, is that the regulation impugned in *Sparrow* -- a net length restriction -- was challenged independently of the broader fisheries management scheme of which it was a part. In this case, while the appellants' constitutional challenge is focused on a single regulation -- s. 20(3) of the *Pacific Herring Fishery Regulations* -- the scope of the challenge is much broader than the terms of s. 20(3). The appellants' arguments on the points of infringement and justification effectively impugn the entire approach taken by the Crown to the management of the herring spawn on kelp fishery.

…

43 The *Sparrow* test for infringement might seem, at first glance, to be internally contradictory. On the one hand, the test states that the appellants need simply show that there has been a *prima facie* interference with their rights in order to demonstrate that those rights have been infringed, suggesting thereby that any meaningful diminution of the appellants' rights will constitute an infringement for the purpose of this analysis. On the other hand, the questions the test directs courts to answer in determining whether an infringement has taken place incorporate ideas such as unreasonableness and "undue" hardship, ideas which suggest that something more than meaningful diminution is required to demonstrate infringement. This internal contradiction is, however, more apparent than real. The questions asked by the Court in *Sparrow* do not define the concept of *prima facie* infringement; they only point to factors which will indicate that such an infringement has

taken place. Simply because one of those questions is answered in the negative will not prohibit a finding by a court that a *prima facie* infringement has taken place; it will just be one factor for a court to consider in its determination of whether there has been a prima facie infringement.

…

[46] From the time of the Department of Fisheries and Oceans' policy shift in the early 1970s, until 1982, the Department regulated the herring stock through the measurement of spawn escapement (the calculation of the number of eggs spawned in a given year). In 1982, this means for measuring and controlling the herring stock was modified; at that time the Department adopted a policy of estimating the size of the herring stock in each year and of setting the allowable catch at 20 per cent of that stock. The 1982 stock measurement and allotment policy has been subject to only one amendment since its adoption: in 1988 the Department of Fisheries and Oceans qualified the constant harvest rate of 20 per cent so as to allow for minimum spawn escapement.

…

[50] In 1988, the year relevant to this appeal, the herring stock was estimated at 350,000 tons, of which 160,000 tons were "fishable". The total allocation for the herring fishery was 40,000 tons, of which 2,275 tons was allotted to the herring spawn on kelp fishery. Of that 2,275 tons, 224 tons was allotted to Category J licence holders. There were 28 such licences issued in 1988, each with an 8-ton quota. Of those 28 licences 16 were held by Native Indian bands. One was held by the Heiltsuk Band.

[51] To summarize, the government's scheme for regulating the herring spawn on kelp fishery can be divided into four constituent parts: (1) the government determines the amount of the herring stock that will be harvested in a given year; (2) the government allots the herring stock to the different herring fisheries (herring roe, herring spawn on kelp and other herring fisheries); (3) the government allots the herring spawn on kelp fishery to various user groups (commercial users and the Indian food fishery); and, (4) the government allots the commercial herring spawn on kelp licences.

[52] Because each of these constituent parts has a different objective, and each involves a different pattern of government action, at the stage of justification it will be necessary to consider them separately; however, at the infringement stage the government scheme can be considered as a whole. The reason for this is that at the infringement stage it is the cumulative effect on the appellants' rights from the operation of the regulatory scheme that the court is concerned with…

[53] In light of the questions posed by this Court in *Sparrow*, it seems clear that the appellants have discharged their burden of demonstrating a *prima facie* interference with their aboriginal rights. Prior to the arrival of Europeans in North America, the Heiltsuk could harvest herring spawn on kelp to the extent they themselves desired, subject only to such limitations as were imposed by any difficulties in transportation, preservation and resource availability, as well as those limitations that they thought advisable to impose for the purposes of conservation; subsequent to the enactment of the regulatory scheme described above the Heiltsuk can harvest herring spawn on kelp for commercial purposes only to the limited extent allowed by the government. To use the language of Cory J. in R. v. Nikal, supra, at para. 104, the government's regulatory scheme "clearly impinge[s]" upon the rights of the appellant and, as such, must be held to constitute a prima facie infringement of those rights.

Justification

…

[57] Two points of variation [from *Sparrow*] are of particular significance. First, the right recognized and affirmed in this case -- to sell herring spawn on kelp commercially -- differs significantly from the right recognized and affirmed in *Sparrow* -- the right to fish for food, social and ceremonial purposes. That difference lies in the fact that the right at issue in *Sparrow* has an inherent limitation which the right recognized and affirmed in this appeal lacks. The food, social and ceremonial needs for fish of any given band of aboriginal people are internally limited -- at a certain point the band will have sufficient fish to meet these needs. The commercial sale of the herring spawn on kelp, on the other hand, has no such internal limitation; the only limits on the Heiltsuk's need for herring spawn on kelp for commercial sale are the external constraints of the demand of the market and the availability of the resource. This is particularly so in this case where the evidence supports a right to exchange fish on a genuinely commercial basis; the evidence in this case does not justify limiting the right to harvest herring spawn on kelp on a commercial basis to, for example, the sale of herring spawn on kelp for the purposes of obtaining a "moderate livelihood"…

[58] The significance of this difference for the *Sparrow* test relates to the position taken in that case that, subject to the limits of conservation, aboriginal rights holders must be given priority in the fishery. In a situation where the aboriginal right is internally limited, so that it is clear when that right has been satisfied and other users can be allowed to participate in the fishery, the notion of priority, as articulated in *Sparrow*, makes sense. In that situation it is understandable that in an exceptional year, when conservation concerns are severe, it will be possible for aboriginal rights holders to be alone allowed to participate in the fishery, while in more ordinary years other users will be allowed to participate in the fishery after the aboriginal rights to fish for food, social and ceremonial purposes have been met.

[59] Where the aboriginal right has no internal limitation, however, what is described in *Sparrow* as an exceptional situation becomes the ordinary: in the circumstance where the aboriginal right has no internal limitation, the notion of priority, as articulated in *Sparrow*, would mean that where an aboriginal right is recognized and affirmed that right would become an exclusive one. Because the right to sell herring spawn on kelp to the commercial market can never be said to be satisfied while the resource is still available and the market is not sated, to give priority to that right in the manner suggested in Sparrow would be to give the right-holder exclusivity over any person not having an aboriginal right to participate in the herring spawn on kelp fishery.

[60] In my view, such a result was not the intention of *Sparrow*. The only circumstance contemplated by *Sparrow* was where the aboriginal right was internally limited; the judgment simply does not consider how the priority standard should be applied in circumstances where the right has no such internal limitation…

[61] The basic insight of *Sparrow* -- that aboriginal rights holders have priority in the fishery -- is a valid and important one; however, the articulation in that case of what priority means, and its suggestion that it can mean exclusivity under certain limited circumstances, must be refined to take into account the varying circumstances which arise when the aboriginal right in question has no internal limitations.

[62] Where the aboriginal right is one that has no internal limitation then the doctrine of priority does not require that, after conservation goals have been met, the government allocate the fishery so that those holding an aboriginal right to exploit that fishery on a commercial basis are given an exclusive right to do so. Instead, the doctrine of priority requires that the government demonstrate that, in allocating the resource, it has taken account of the existence of aboriginal rights and allocated the resource in a manner respectful of the fact that those rights have priority over the exploitation of the fishery by other users. This right is at once both procedural and substantive; at the stage of justification the government must demonstrate both that the process by which it allocated the resource and the actual allocation of the resource which results from that process reflect the prior interest of aboriginal rights holders in the fishery.

[63] The content of this priority -- something less than exclusivity but which nonetheless gives priority to the aboriginal right -- must remain somewhat vague pending consideration of the government's actions in specific cases. …

[64] That no blanket requirement is imposed under the priority doctrine should not suggest, however, that no guidance is possible in this area, or that the government's actions will not be subject to scrutiny. Questions relevant to the determination of whether the government has granted priority to aboriginal rights holders are those enumerated in *Sparrow* relating to consultation and compensation, as well as questions such as whether the government has accommodated the exercise of the aboriginal right to participate in the fishery (through reduced licence fees, for example), whether the government's objectives in enacting a particular regulatory scheme reflect the need to take into account the priority of aboriginal rights holders, the extent of the participation in the fishery of aboriginal rights holders relative to their percentage of the population, how the government has accommodated different aboriginal rights in a particular fishery (food versus commercial rights, for example), how important the fishery is to the economic and material well-being of the band in question, and the criteria taken into account by the government in, for example, allocating commercial licences amongst different users. These questions, like those in *Sparrow*, do not represent an exhaustive list of the factors that may be taken into account in determining whether the government can be said to have given priority to aboriginal rights holders; they give some indication, however, of what such an inquiry should look like.

[65] Before turning to the second relevant difference between this case and *Sparrow*, I would note one or two points in favour of the interpretation of priority just adopted. As was emphasized in this Court's decision in *Van der Peet*, aboriginal rights are highly fact specific -- the existence of an aboriginal right is determined through consideration of the particular distinctive culture, and hence of the specific practices, customs and traditions, of the aboriginal group claiming the right. The rights recognized and affirmed by s. 35(1) are not rights held uniformly by all aboriginal peoples in Canada; the nature and existence of aboriginal rights vary in accordance with the variety of aboriginal cultures and traditions which exist in this country. As a result, governments must not only make decisions about how to allocate fish between aboriginal rights holders and those who do not enjoy such rights, but must also make decisions as to how to allocate fish both between different groups of aboriginal rights holders and between different aboriginal rights. The government must, for example, make decisions as to how to allocate fish between those aboriginal peoples with the aboriginal right to fish for food, social and ceremonial purposes, and those aboriginal peoples who have aboriginal rights to sell fish commercially; it must also decide, where more than one aboriginal group has a right to sell fish commercially, how much fish each group will have access to.

[66] The existence of such difficult questions of resource allocation supports the position that, where a right has no adequate internal limitations, the notion of exclusivity of priority must be rejected. Certainly, the holders of such aboriginal rights must be given priority, along with all others holding aboriginal rights to the use of a particular resource; however, the potential existence of other aboriginal rights holders with an equal claim to priority in the exploitation of the resource, suggests that there must be some external limitation placed on the exercise of those aboriginal rights which lack internal limitation. Unless the possibility of such a limitation is recognized, it is difficult to see how the government will be able to make decisions of resource allocation amongst the various parties holding prioritized rights to participate in the fishery. And while this does not lead automatically to the conclusion that, as between aboriginal rights holders and those who do not hold such rights, the notion of exclusivity must be rejected, it does point to some of the difficulties inherent in the recognition of such a concept in the context of this and similar cases.

…

[69] I now turn to the second significant difference between this case and *Sparrow*. In Sparrow, while the Court recognized at p. 1113 that, beyond conservation, there could be other "compelling and substantial" objectives pursuant to which the government could act in accordance with the first branch of the justification test, the Court was not required to delineate what those objectives might be. Further, in delineating the priority requirement, and the relationship between aboriginal rights-holders and other users of the fishery, the only objective considered by the Court was conservation. This limited focus made sense in Sparrow because the net-length restriction at issue in that case was argued by the Crown to have been necessary as a conservation measure (whether it was necessary as such was not actually decided in that case); in this case, however, while some aspects of the government's regulatory scheme arguably relate to conservation -- setting the total allowable catch at 20 per cent of the estimated herring stock, requiring the herring roe fishery to bear the brunt of variations in the herring stock because it is more environmentally destructive -- other aspects of the government's regulatory scheme bear little or no relation to issues of conservation. Once the overall level of the herring catch has been established, and allocated to the different herring fisheries, it makes no difference in terms of conservation who is allowed to catch the fish. Conservation of the fishery is simply not affected once, after the herring spawn on kelp fishery is set at 2,275 tons, 224 tons or 2,275 tons is allocated to the commercial fishery or to some other use. This is not to suggest that these decisions are unimportant or made pursuant to unimportant objectives, but simply that, whatever objectives the government is pursuing in making such decisions, conservation is not (or is only marginally) one of them. As such, it is necessary in this case to consider what, if any, objectives the government may pursue, other than conservation, which will be sufficient to satisfy the first branch of the *Sparrow* justification standard.

…

[71] …Although the aboriginal rights recognized by s. 35(1) are, as was noted in *Van der Peet*, fundamentally different from the rights in the *Charter*, the same basic principle -- that the purposes underlying the rights must inform not only the definition of the rights but also the identification of those limits on the rights which are justifiable -- applies equally to the justification analysis under s. 35(1).

…

[73] Aboriginal rights are recognized and affirmed by s. 35(1) in order to reconcile the existence of distinctive aboriginal societies prior to the arrival of Europeans in North America with the assertion of Crown sovereignty over that territory; they are the means by which the critical and integral aspects of those societies are maintained. Because, however, distinctive aboriginal societies exist within, and are a part of, a broader social, political and economic community, over which the Crown is sovereign, there are circumstances in which, in order to pursue objectives of compelling and substantial importance to that community as a whole (taking into account the fact that aboriginal societies are a part of that community), some limitation of those rights will be justifiable. Aboriginal rights are a necessary part of the reconciliation of aboriginal societies with the broader political community of which they are part; limits placed on those rights are, where the objectives furthered by those limits are of sufficient importance to the broader community as a whole, equally a necessary part of that reconciliation.

[74] The recognition of conservation as a compelling and substantial goal demonstrates this point. Given the integral role the fishery has played in the distinctive cultures of many aboriginal peoples, conservation can be said to be something the pursuit of which can be linked to the recognition of the existence of such distinctive cultures. Moreover, because conservation is of such overwhelming importance to Canadian society as a whole, including aboriginal members of that society, it is a goal the pursuit of which is consistent with the reconciliation of aboriginal societies with the larger Canadian society of which they are a part. In this way, conservation can be said to be a compelling and substantial objective which, provided the rest of the Sparrow justification standard is met, will justify governmental infringement of aboriginal rights.

[75] Although by no means making a definitive statement on this issue, I would suggest that with regards to the distribution of the fisheries resource after conservation goals have been met, objectives such as the pursuit of economic and regional fairness, and the recognition of the historical reliance upon, and participation in, the fishery by non-aboriginal groups, are the type of objectives which can (at least in the right circumstances) satisfy this standard. In the right circumstances, such objectives are in the interest of all Canadians and, more importantly, the reconciliation of aboriginal societies with the rest of Canadian society may well depend on their successful attainment.

> [76] I now turn to the application of the *Sparrow* justification test to the government regulatory scheme challenged in this case. As has already been noted, the government's regulatory scheme has four constituent parts, which, for ease of reference, I will reiterate here: (1) the government determines the amount of the herring stock that will be harvested in a given year; (2) the government allots the herring stock to the different herring fisheries (herring roe, herring spawn on kelp and other herring fisheries); (3) the government allots the herring spawn on kelp fishery to various user groups (commercial users and the Indian food fishery); and, (4) the government allots the commercial herring spawn on kelp licences.
>
> [77] Other than with regards to the first aspect of the government's regulatory scheme, the evidence and testimony presented in this case is insufficient for this Court to make a determination as to whether the government's regulatory scheme is justified. The trial in this case concluded on May 7, 1990, several weeks prior to the release of this Court's judgment in Sparrow. Perhaps as a result of this fact, the testimony, evidence and argument presented at the trial simply do not contain the information that is necessary for this Court to assess whether, in allocating the 40,000 tons of herring allotted to the herring fishery, the government has either acted pursuant to a compelling and substantial objective or has acted in a manner consistent with the fiduciary obligation it owes to aboriginal peoples. It is not that the Crown has failed to discharge its burden of demonstrating that the scheme for allocating the 20 per cent of the herring stock was justified; it is simply that the question of whether or not that scheme of allocation was justified was not addressed at trial, at least in the sense necessary for this Court to decide the question of whether, under the Sparrow test, it was justified.
>
> …
>
> [82] Obviously a new trial will not necessarily provide complete and definitive answers to all of these questions; however, given that the parties simply did not address the justifiability of the government scheme, other than the setting of the herring catch at 20 per cent of the total herring stock, a new trial will almost certainly provide the court with better information than currently exists. Prior to *Sparrow* it was not clear what the government, or parties challenging government action, had to demonstrate in order to succeed in s. 35(1) cases; this lack of clarity undoubtedly contributed to the deficiency of the evidentiary record in this case. A new trial on the question of justification will remedy this deficiency.
>
> [83] A new trial is not, however, necessary with regards to the first aspect of the government's scheme; the evidentiary record clearly demonstrates that this aspect of the government's scheme was justified. …
>
> [84] Although the evidence regarding consultation is somewhat scanty, and more will hopefully be presented at a new trial on the justification issue, there is some evidence to suggest that the government was cognizant of the views of aboriginal groups with regards to the herring fishery. The correspondence between the Native Brotherhood and the Department is indicative of the existence of such consultation. Finally, the setting of the herring catch at 20 per cent of the fishable herring stock, because aimed at conservation, and not affecting the priority of aboriginal versus non-aboriginal users of the fishery, is consistent with the priority scheme as laid out in *Sparrow* and as elaborated in this judgment.
>
> V. Disposition
>
> [85] In the result, the appeal is allowed and a new trial directed on the issue of guilt or innocence and, with regards to the constitutionality of s. 20(3), on the issue of the justifiability of the government's allocation of herring.

Since *Van der Peet*, the majority's test for an Aboriginal right has been criticized as narrowly restricting what can be found to be an Aboriginal right by focusing on 'integral' pre-contact practices. See for example, John Borrows, "Frozen Rights in Canada: Constitutional Interpretation and the Trickster," (1997), 22:1 Am Ind LR 37 and Bradford Morse, "Permafrost Rights: Aboriginal Self-Government and the Supreme Court in *R. v. Pamajewo*n" (1997), 42 McGill LJ 1011.

In its 2006 decision in *R v Sappier; R v Gray* the Court attempted to make the test more flexible by telling us what is meant by 'culture' "is really an inquiry into the pre-contact way of life of a particular aboriginal community, including their means of survival, their socialization methods, their legal systems, and, potentially, their trading habits" (para. 45). The Court also warned about treading unwittingly into "reducing an entire people's culture to specific anthropological curiosities and, potentially, racialized aboriginal stereotypes" (para. 46). This was about the harvesting of wood by members of the Mi'kmaq and Wolastoqey nations in New Brunswick to constructing dwellings and making furniture. The Court found they had an Aboriginal right to harvest wood for 'domestic use.'

However, the Court sent mixed messages on the extent to which *R v Sappier; R v Gray* changed anything in its 2011 decision *Lax Kw'alaams Indian Band v. Canada (Attorney General)*, stating:

> [54] The Lax Kw'alaams place reliance on references to "way of life" in *Sappier*, at paras. 24 and 40. However, the reference in Sappier to a pre-contact "way of life" should not be read as departing from the "distinctive culture" test set out in *Van der Peet*…

This case was initiated by the Lax Kw'alaams and other First Nations living along he northwest coast of British Columbia between the estuaries of the Nass and lower Skeena rivers. They sought a declaration of an Aboriginal right to commercially harvest and sell "all species of fish" within their traditional waters. However, the trial judge found that harvesting and consumption of salmon, halibut, herring spawn, seaweed, shellfish, and eulachon were integral to its distinctive culture, but trade in fish or fish products other than the grease derived from the smelt-like species called the eulachon or candle fish (because when dried it could be burned like a candle) was not integral to the distinctive culture of the pre-contact society. The Supreme Court agreed with the trial judge, noting that *Sappier* had not changed the test.

2.4 Métis Rights

Recall that in *Van der Peet* the Court acknowledge that the test it developed for proving Aboriginal rights would be ill-suited for Métis rights, but left addressing that issue to another day. In the next case, we see the Court modify the *Van der Peet* test to accommodate Métis Aboriginal rights claims, including altering the time period in which Métis Aboriginal rights have to be proven and adding on additional requirements to the *Van der Peet* test to permit Métis claimants to establish they are s. 35 rights-holders. Up to this point in the Supreme Court's Aboriginal rights case law, all the cases that made their way before the Court involved First Nations people with status under the *Indian Act*. In these situations, the Court took for granted that these claimants were section 35 rights-holders. The Métis context, the Court admitted, presented a new challenge: "determining membership in the Métis community might not be as simple as verifying membership in, for example, an Indian band". (However, even in the First Nations context, owing to ongoing control exercised by the federal government of 'Indian status' and exclusionary rules it continues to apply, such as the secondary cut-off rule, membership in a community may not be so easy to verify.) This case points to challenging issues of who are rights-holders and who determines who are s. 35 rights holders.

For discussion of these exclusionary rules, see: Sébastian Grammond, "Discrimination in the Rules of Indian Status and the McIvor Case" (2009) 35:1 Queen's LJ 421-432 .

2.4.1 R. v. Powley, 2003 SCC 43 (CanLII), [2003] 2 SCR 207

> THE COURT —

I. Introduction

[1] This case raises the issue of whether members of the Métis community in and around Sault Ste. Marie enjoy a constitutionally protected right to hunt for food under s. 35 of the *Constitution Act, 1982*. We conclude that they do.

[2] On the morning of October 22, 1993, Steve Powley and his son, Roddy, set out hunting. They headed north from their residence in Sault Ste. Marie, and at about 9 a.m., they shot and killed a bull moose near Old Goulais Bay Road.

…

[6] The facts are not in dispute. The Powleys freely admit that they shot, killed, and took possession of a bull moose without a hunting licence. However, they argue that, as Métis, they have an aboriginal right to hunt for food in the Sault Ste. Marie area that cannot be infringed by the Ontario government without proper justification. Because the Ontario government denies the existence of any special Métis right to hunt for food, the Powleys argue that subjecting them to the moose hunting provisions of the Game and Fish Act violates their rights under s. 35(1) of the Constitution Act, 1982, and cannot be justified.

…

II. Analysis

…

[10] The term "Métis" in s. 35 does not encompass all individuals with mixed Indian and European heritage; rather, it refers to distinctive peoples who, in addition to their mixed ancestry, developed their own customs, way of life, and recognizable group identity separate from their Indian or Inuit and European forebears. Métis communities evolved and flourished prior to the entrenchment of European control, when the influence of European settlers and political institutions became pre-eminent. The Royal Commission on Aboriginal Peoples describes this evolution as follows:

> Intermarriage between First Nations and Inuit women and European fur traders and fishermen produced children, but the birth of new Aboriginal cultures took longer. At first, the children of mixed unions were brought up in the traditions of their mothers or (less often) their fathers. Gradually, however, distinct Métis cultures emerged, combining European and First Nations or Inuit heritages in unique ways. Economics played a major role in this process. The special qualities and skills of the Métis population made them indispensable members of Aboriginal/non-Aboriginal economic partnerships, and that association contributed to the shaping of their cultures. . . . As interpreters, diplomats, guides, couriers, freighters, traders and suppliers, the early Métis people contributed massively to European penetration of North America.
>
> The French referred to the fur trade Métis as coureurs de bois (forest runners) and bois brulés (burnt-wood people) in recognition of their wilderness occupations and their dark complexions. The Labrador Métis (whose culture had early roots) were originally called "livyers" or "settlers", those who remained in the fishing settlements year-round rather than returning periodically to Europe or Newfoundland. The Cree people expressed the Métis character in the term Otepayemsuak, meaning the "independent ones". (Report of the Royal Commission on Aboriginal Peoples: Perspectives and Realities, vol. 4, at pp. 199-200 ("RCAP Report"))

The Métis developed separate and distinct identities, not reducible to the mere fact of their mixed ancestry: "What distinguishes Métis people from everyone else is that they associate themselves with a culture that is distinctly Métis" (RCAP Report, vol. 4, at p. 202).

[11] The Métis of Canada share the common experience of having forged a new culture and a distinctive group identity from their Indian or Inuit and European roots. This enables us to speak in general terms of "the Métis". However, particularly given the vast territory of what is now Canada, we should not be surprised to find that different groups of Métis exhibit their own distinctive traits and traditions. This diversity among groups of Métis may enable us to speak of Métis "peoples", a possibility left open by the language of s. 35(2), which speaks of the "Indian, Inuit and Métis peoples of Canada".

[12] We would not purport to enumerate the various Métis peoples that may exist. Because the Métis are explicitly included in s. 35, it is only necessary for our purposes to verify that the claimants belong to an identifiable Métis community with a sufficient degree of continuity and stability to support a site-specific aboriginal right. A Métis community can be defined as a group of Métis with a distinctive collective identity, living together in the same geographic area and sharing a common way of life. The respondents here claim membership in the Métis community centred in and around Sault Ste. Marie. It is not necessary for us to decide, and we did not receive submissions on, whether this community is also a Métis "people", or whether it forms part of a larger Métis people that extends over a wider area such as the Upper Great Lakes.

[13] Our evaluation of the respondents' claim takes place against this historical and cultural backdrop. The overarching interpretive principle for our legal analysis is a purposive reading of s. 35. The inclusion of the Métis in s. 35 is based on a commitment to recognizing the Métis and enhancing their survival as distinctive communities. The purpose and the promise of s. 35 is to protect practices that were historically important features of these distinctive communities and that persist in the present day as integral elements of their Métis culture.

[14] For the reasons elaborated below, we uphold the basic elements of the *Van der Peet* test … and apply these to the respondents' claim. However, we modify certain elements of the pre-contact test to reflect the distinctive history and post-contact ethnogenesis of the Métis, and the resulting differences between Indian claims and Métis claims.

A. The *Van der Peet* Test

…

[16] The emphasis on prior occupation as the primary justification for the special protection accorded aboriginal rights led the majority in *Van der Peet* to endorse a pre-contact test for identifying which customs, practices or traditions were integral to a particular aboriginal culture, and therefore entitled to constitutional protection. However, the majority recognized that the pre-contact test might prove inadequate to capture the range of Métis customs, practices or traditions that are entitled to protection, since Métis cultures by definition post-date European contact. For this reason, Lamer C.J. explicitly reserved the question of how to define Métis aboriginal rights for another day. …

[17] As indicated above, the inclusion of the Métis in s. 35 is not traceable to their pre-contact occupation of Canadian territory. The purpose of s. 35 as it relates to the Métis is therefore different from that which relates to the Indians or the Inuit. The constitutionally significant feature of the Métis is their special status as peoples that emerged between first contact and the effective imposition of European control. The inclusion of the Métis in s. 35 represents Canada's commitment to recognize and value the distinctive Métis cultures, which grew up in areas not yet open to colonization, and which the framers of the *Constitution Act, 1982* recognized can only survive if the Métis are protected along with other aboriginal communities.

[18] With this in mind, we proceed to the issue of the correct test to determine the entitlements of the Métis under s. 35 of the *Constitution Act, 1982*. The appropriate test must then be applied to the findings of fact of the trial judge. We accept *Van der Peet* as the template for this discussion. However, we modify the pre-contact focus of the Van der Peet test when the claimants are Métis to account for the

important differences between Indian and Métis claims. Section 35 requires that we recognize and protect those customs and traditions that were historically important features of Métis communities prior to the time of effective European control, and that persist in the present day. This modification is required to account for the unique post-contact emergence of Métis communities, and the post-contact foundation of their aboriginal rights.

(1) Characterization of the Right

[19] The first step is to characterize the right being claimed: *Van der Peet*, supra, at para. 76. Aboriginal hunting rights, including Métis rights, are contextual and site-specific. The respondents shot a bull moose near Old Goulais Bay Road, in the environs of Sault Ste. Marie, within the traditional hunting grounds of that Métis community. They made a point of documenting that the moose was intended to provide meat for the winter. The trial judge determined that they were hunting for food, and there is no reason to overturn this finding. The right being claimed can therefore be characterized as the right to hunt for food in the environs of Sault Ste. Marie.

[20] We agree with the trial judge that the periodic scarcity of moose does not in itself undermine the respondents' claim. The relevant right is not to hunt moose but to hunt for food in the designated territory.

(2) Identification of the Historic Rights-Bearing Community

[21] The trial judge found that a distinctive Métis community emerged in the Upper Great Lakes region in the mid-17th century, and peaked around 1850. We find no reviewable error in the trial judge's findings on this matter, which were confirmed by the Court of Appeal. The record indicates the following: In the mid-17th century, the Jesuits established a mission at Sainte-Marie-du-Sault, in an area characterized by heavy competition among fur traders. In 1750, the French established a fixed trading post on the south bank of the Saint Mary's River. The Sault Ste. Marie post attracted settlement by Métis — the children of unions between European traders and Indian women, and their descendants (A. J. Ray, "An Economic History of the Robinson Treaties Area Before 1860" (1998) ("Ray Report"), at p. 17). According to Dr. Ray, by the early 19th century, "[t]he settlement at Sault Ste. Marie was one of the oldest and most important [Métis settlements] in the upper lakes area" (Ray Report, at p. 47). The Hudson Bay Company operated the Sault Ste. Marie's post primarily as a depot from 1821 onwards (Ray Report, at p. 51). Although Dr. Ray characterized the Company's records for this post as "scanty" (Ray Report, at p. 51), he was able to piece together a portrait of the community from existing records, including the 1824-25 and 1827-28 post journals of HBC Chief Factor Bethune, and the 1846 report of a government surveyor, Alexander Vidal (Ray Report, at pp. 52-53).

[22] Dr. Ray's report indicates that the individuals named in the post journals "were overwhelmingly Métis", and that Vidal's report "provide[s] a crude indication of the rate of growth of the community and highlights the continuing dominance of Métis in it" (Ray Report, at p. 53). Dr. Victor P. Lytwyn characterized the Vidal report and accompanying map as "clear evidence of a distinct and cohesive Métis community at Sault Ste. Marie" (V. P. Lytwyn, "Historical Report on the Métis Community at Sault Ste. Marie" (1998) ("Lytwyn Report"), at p. 2) while Dr. Ray elaborated: "By the time of Vidal's visit to the Sault Ste. Marie area, the people of mixed ancestry living there had developed a distinctive sense of identity and Indians and Whites recognized them as being a separate people" (Ray Report, at p. 56).

[23] In addition to demographic evidence, proof of shared customs, traditions, and a collective identity is required to demonstrate the existence of a Métis community that can support a claim to site-specific aboriginal rights. We recognize that different groups of Métis have often lacked political structures and have experienced shifts in their members' self-identification. However, the existence of an identifiable Métis community must be demonstrated with some degree of continuity and stability in order to support a site-specific aboriginal rights claim. Here, we find no basis for overturning the trial judge's finding of a historic Métis community at Sault Ste. Marie. This finding is supported by the record and must be upheld.

(3) Identification of the Contemporary Rights-Bearing Community

[24] Aboriginal rights are communal rights: They must be grounded in the existence of a historic and present community, and they may only be exercised by virtue of an individual's ancestrally based membership in the present community. The trial judge found that a Métis community has persisted in and around Sault Ste. Marie despite its decrease in visibility after the signing of the Robinson-Huron Treaty in 1850…

[25] Dr. Lytwyn describes the continued existence of a Métis community in and around Sault Ste. Marie despite the displacement of many of the community's members in the aftermath of the 1850 treaties:

> [T]he Métis continued to live in the Sault Ste. Marie region. Some drifted into the Indian Reserves which had been set apart by the 1850 Treaty. Others lived in areas outside of the town, or in back concessions. The Métis continued to live in much the same manner as they had in the past — fishing, hunting, trapping and harvesting other resources for their livelihood. (Lytwyn Report, at p. 31 (emphasis added); see also J. Morrison, "The Robinson Treaties of 1850: A Case Study,"at p. 201.)

[26] The advent of European control over this area thus interfered with, but did not eliminate, the Sault Ste. Marie Métis community and its traditional practices, as evidenced by census data from the 1860s through the 1890s. Dr. Lytwyn concluded from this census data that "[a]lthough the Métis lost much of their traditional land base at Sault Ste. Marie, they continued to live in the region and gain their livelihood from the resources of the land and waters" (Lytwyn Report, at p. 32). He also noted a tendency for underreporting and lack of information about the Métis during this period because of their "removal to the peripheries of the town", and "their own disinclination to be identified as Métis" in the wake of the Riel rebellions and the turning of Ontario public opinion against Métis rights through government actions and the media (Lytwyn Report, at p. 33).

[27] We conclude that the evidence supports the trial judge's finding that the community's lack of visibility was explained and does not negate the existence of the contemporary community. There was never a lapse; the Métis community went underground, so to speak, but it continued. Moreover, as indicated below, the "continuity" requirement puts the focus on the continuing practices of members of the community, rather than more generally on the community itself, as indicated below.

[28] The trial judge's finding of a contemporary Métis community in and around Sault Ste. Marie is supported by the evidence and must be upheld.

(4) Verification of the Claimant's Membership in the Relevant Contemporary Community

[29] While determining membership in the Métis community might not be as simple as verifying membership in, for example, an Indian band, this does not detract from the status of Métis people as full-fledged rights-bearers. As Métis communities continue to organize themselves more formally and to assert their constitutional rights, it is imperative that membership requirements become more standardized so that legitimate rights-holders can be identified. In the meantime, courts faced with Métis claims will have to ascertain Métis identity on a case-by-case basis. The inquiry must take into account both the value of community self-definition, and the need for the process of identification to be objectively verifiable. In addition, the criteria for Métis identity under s. 35 must reflect the purpose of this constitutional guarantee: to recognize and affirm the rights of the Métis held by virtue of their direct relationship to this country's original inhabitants and by virtue of the continuity between their customs and traditions and those of their Métis predecessors. This is not an insurmountable task.

[30] We emphasize that we have not been asked, and we do not purport, to set down a comprehensive definition of who is Métis for the purpose of asserting a claim under s. 35. We therefore limit ourselves to indicating the important components of a future definition, while affirming that the creation of appropriate membership tests before disputes arise is an urgent priority… we would look to three broad factors as indicia of Métis identity for the purpose of claiming Métis rights under s. 35: self-identification, ancestral connection, and community acceptance.

[31] First, the claimant must self-identify as a member of a Métis community. This self-identification should not be of recent vintage: While an individual's self-identification need not be static or monolithic, claims that are made belatedly in order to benefit from a s. 35 right will not satisfy the self-identification requirement.

[32] Second, the claimant must present evidence of an ancestral connection to a historic Métis community. This objective requirement ensures that beneficiaries of s. 35 rights have a real link to the historic community whose practices ground the right being claimed. We would not require a minimum "blood quantum", but we would require some proof that the claimant's ancestors belonged to the historic Métis community by birth, adoption, or other means. Like the trial judge, we would abstain from further defining this requirement in the absence of more extensive argument by the parties in a case where this issue is determinative. In this case, the Powleys' Métis ancestry is not disputed.

[33] Third, the claimant must demonstrate that he or she is accepted by the modern community whose continuity with the historic community provides the legal foundation for the right being claimed. Membership in a Métis political organization may be relevant to the question of community acceptance, but it is not sufficient in the absence of a contextual understanding of the membership requirements of the organization and its role in the Métis community. The core of community acceptance is past and ongoing participation in a shared culture, in the customs and traditions that constitute a Métis community's identity and distinguish it from other groups. This is what the community membership criterion is all about. Other indicia of community acceptance might include evidence of participation in community activities and testimony from other members about the claimant's connection to the community and its culture. The range of acceptable forms of evidence does not attenuate the need for an objective demonstration of a solid bond of past and present mutual identification and recognition of common belonging between the claimant and other members of the rights-bearing community.

[34] It is important to remember that, no matter how a contemporary community defines membership, only those members with a demonstrable ancestral connection to the historic community can claim a s. 35 right. Verifying membership is crucial, since individuals are only entitled to exercise Métis aboriginal rights by virtue of their ancestral connection to and current membership in a Métis community.

[35] In this case, there is no reason to overturn the trial judge's finding that the Powleys are members of the Métis community that arose and still exists in and around Sault Ste. Marie. We agree with the Court of Appeal that, in the circumstances of this case, the fact that the Powleys' ancestors lived on an Indian reserve for a period of time does not negate the Powleys' Métis identity… We emphasize that the individual decision by a Métis person's ancestors to take treaty benefits does not necessarily extinguish that person's claim to Métis rights. It will depend, in part, on whether there was a collective adhesion by the Métis community to the treaty. Based on the record, it was open to the trial judge to conclude that the rights of the Powleys' ancestors did not merge into those of the Indian band.

(5) Identification of the Relevant Time Frame

[36] As indicated above, the pre-contact aspect of the *Van der Peet* test requires adjustment in order to take account of the post-contact ethnogenesis of the Métis and the purpose of s. 35 in protecting the historically important customs and traditions of these distinctive peoples. While the fact of prior occupation grounds aboriginal rights claims for the Inuit and the Indians, the recognition of Métis rights in s. 35 is not reducible to the Métis' Indian ancestry. The unique status of the Métis as an Aboriginal people with post-contact origins requires an adaptation of the pre-contact approach to meet the distinctive historical circumstances surrounding the evolution of Métis communities.

[37] The pre-contact test in *Van der Peet* is based on the constitutional affirmation that aboriginal communities are entitled to continue those practices, customs and traditions that are integral to their distinctive existence or relationship to the land. By analogy, the test for Métis practices should focus on identifying those practices, customs and traditions that are integral to the Métis community's distinctive existence and relationship to the land. This unique history can most appropriately be accommodated by a post-contact but pre-control test that identifies the time when Europeans effectively established political and legal control in a particular area. The focus should be on the period after a particular Métis community arose and before it came under the effective control of European laws and customs. This pre-control test enables us to identify those practices, customs and traditions that predate the imposition of European laws and customs on the Métis.

[38] We reject the appellant's argument that Métis rights must find their origin in the pre-contact practices of the Métis' aboriginal ancestors. This theory in effect would deny to Métis their full status as distinctive rights-bearing peoples whose own integral practices are entitled to constitutional protection under s. 35(1). The right claimed here was a practice of both the Ojibway and the Métis. However, as long as the practice grounding the right is distinctive and integral to the pre-control Métis community, it will satisfy this prong of the test. This result flows from the constitutional imperative that we recognize and affirm the aboriginal rights of the Métis, who appeared after the time of first contact.

…

[40] The historical record indicates that the Sault Ste. Marie Métis community thrived largely unaffected by European laws and customs until colonial policy shifted from one of discouraging settlement to one of negotiating treaties and encouraging settlement in the mid-19th century. The trial judge found, and the parties agreed in their pleadings before the lower courts, that "effective control [of the Upper Great Lakes area] passed from the Aboriginal peoples of the area (Ojibway and Metis) to European control" in the period between 1815 and 1850 (para. 90). The record fully supports the finding that the period just prior to 1850 is the appropriate date for finding effective control in this geographic area, which the Crown agreed was the critical date in its pleadings below.

(6) Determination of Whether the Practice is Integral to the Claimants' Distinctive Culture

[41] The practice of subsistence hunting and fishing was a constant in the Métis community, even though the availability of particular species might have waxed and waned. The evidence indicates that subsistence hunting was an important aspect of Métis life and a defining feature of their special relationship to the land (Peterson, supra, at p. 41; Lytwyn Report, supra, at p. 6). A major part of subsistence was the practice at issue here, hunting for food.

…

[44] [The] evidence supports the trial judge's finding that hunting for food was integral to the Métis way of life at Sault Ste. Marie in the period just prior to 1850.

(7) Establishment of Continuity Between the Historic Practice and the Contemporary Right Asserted

> [45] Although s. 35 protects "existing" rights, it is more than a mere codification of the common law. Section 35 reflects a new promise: a constitutional commitment to protecting practices that were historically important features of particular aboriginal communities. A certain margin of flexibility might be required to ensure that aboriginal practices can evolve and develop over time, but it is not necessary to define or to rely on that margin in this case. Hunting for food was an important feature of the Sault Ste. Marie Métis community, and the practice has been continuous to the present. Steve and Roddy Powley claim a Métis aboriginal right to hunt for food. The right claimed by the Powleys falls squarely within the bounds of the historical practice grounding the right.
>
> (8) Determination of Whether or Not the Right Was Extinguished
>
> [46] The doctrine of extinguishment applies equally to Métis and to First Nations claims. There is no evidence of extinguishment here, as determined by the trial judge. The Crown's argument for extinguishment is based largely on the Robinson-Huron Treaty of 1850, from which the Métis as a group were explicitly excluded.
>
> (9) If There Is a Right, Determination of Whether There Is an Infringement
>
> [47] Ontario currently does not recognize any Métis right to hunt for food, or any "special access rights to natural resources" for the Métis whatsoever (appellant's record, at p. 1029). This lack of recognition, and the consequent application of the challenged provisions to the Powleys, infringe their aboriginal right to hunt for food as a continuation of the protected historical practices of the Sault Ste. Marie Métis community.
>
> (10) Determination of Whether the Infringement Is Justified
>
> [48] The main justification advanced by the appellant is that of conservation. Although conservation is clearly a very important concern, we agree with the trial judge that the record here does not support this justification. If the moose population in this part of Ontario were under threat, and there was no evidence that it is, the Métis would still be entitled to a priority allocation to satisfy their subsistence needs … While preventative measures might be required for conservation purposes in the future, we have not been presented with evidence to support such measures here. The Ontario authorities can make out a case for regulation of the aboriginal right to hunt moose for food if and when the need arises. On the available evidence and given the current licensing system, Ontario's blanket denial of any Métis right to hunt for food cannot be justified.
>
> [49] The appellant advances a subsidiary argument for justification based on the alleged difficulty of identifying who is Métis. As discussed, the Métis identity of a particular claimant should be determined on proof of self-identification, ancestral connection, and community acceptance. The development of a more systematic method of identifying Métis rights-holders for the purpose of enforcing hunting regulations is an urgent priority. That said, the difficulty of identifying members of the Métis community must not be exaggerated as a basis for defeating their rights under the Constitution of Canada.
>
> …
>
> III. Conclusion
>
> [53] Members of the Métis community in and around Sault Ste. Marie have an aboriginal right to hunt for food under s. 35(1). This is determined by their fulfillment of the requirements set out in Van der Peet, modified to fit the distinctive purpose of s. 35 in protecting the Métis.

2.5 Aboriginal Title

Until the mid-1970s, the leading decision in Canada on Aboriginal title was *St. Catherine Milling & Lumber Co. v R.* (1888), 14 App. Cas. 46 (JCPC) which denied that Indigenous peoples had any inherent right to their lands.

This case involved a challenge by the province of Ontario to a license to cut timber issued to a lumber company by the federal government over lands 'surrendered' by certain Anishinaabe tribes in Treaty 3 in 1873. The JCPC concluded that Canada had no jurisdiction over surrendered lands and the license was invalid. In resolving this issue, the JCPC opined upon the larger question of the nature of the treaty signatories' interest in the lands surrendered. The JCPC held that any Aboriginal title held by the Anishinaabe derived from a grant by the Crown through the Royal Proclamation of 1763 and that such title was not full ownership but a much lesser right and the Crown held the paramount estate:

> The capture of Québec in 1759, and the capitulation of Montréal in 1760, were followed in 1763 by the session to Great Britain of Canada and all its dependencies, with the sovereignty, property, and possession, and all other rights which had at any previous time been held or required by the Crown of France. A Royal proclamation was issued on 7 October, 1763…
>
> The territory in dispute has been an Indian occupation from the date of the proclamation until 1873. During that interval of time Indian affairs have been administered successively by the Crown, by the Provincial Governments, and (since the passing of the *British North America Act, 1867*), by the government of the Dominion. The policy of these administrations has been all along the same in this respect, that the Indian inhabitants have been precluded from entering into any transaction with a subject for the sale or transfer of their interest in the land, and have only been permitted to surrender their rights to the Crown by a formal contract, duly ratified in a meeting of their Chiefs or headman convened for the purpose. Whilst there have been changes in the administrative authority, there has been no change since the year 1763 in the character of the interest which its Indian inhabitants had in the lands surrendered by the treaty. There possession, such as it was, can only be ascribed to the general provisions made by the Royal proclamation in favour of all Indian tribes then living under the sovereignty and protection of the British Crown. It was suggested in the course of the argument for the Dominion, that inasmuch as the proclamation recites that the territories thereby reserved for Indians had never "been ceded to or purchased by" the Crown, the entire property of the land remained with them. That inference is however, at variance with the terms of the instrument, which shew that the tenure of the Indians was a personal and usufructuary right, dependent upon the goodwill of the sovereign. The lands reserved are expressly stated to be "parts of our Dominions and territories;" and it is declared to be the will and pleasure of the sovereign that, "for the present," the land shall be reserved for the use of the Indians, as their hunting grounds, under his protection and dominion. There was a great deal of learned discussion at the Bar with respect to the precise quality of the Indian right, but their Lordships do not consider it necessary to express any opinion upon the point. It appears to them to be sufficient for the purposes of this case that there has been all along vested in the Crown a substantial and paramount estate, underlying the Indian title, which became a plenum dominium whenever that title was surrendered or otherwise extinguished.

2.5.1 Calder v. British Columbia (Attorney General), 1973 CanLII 4 (SCC), [1973] SCR 313

St. Catherine's was finally overturned in *Calder v. British Columbia (Attorney General).* The case involved Nisga'a elders suing the provincial government for a declaration of Nisga'a title to their lands. The case was a watershed decision because 6 of the 7 justices of the SCC held that Aboriginal title continued to exist at common law, thereby overruling *St. Catherine's* holding about the sole source of Aboriginal title being

the Royal Proclamation. Judson J., for himself and 2 other justices, identified the source of Nisga'a title in their occupation of the land prior to the arrival of Europeans:

> There can be no doubt that the Privy Council found that the Proclamation of 1763 was the origin of the Indian title…
>
> I do not take these reasons to mean that the Proclamation was the exclusive source of Indian title. …
>
> …
>
> Although I think that it is clear that Indian title in British Columbia cannot owe its origin to the Proclamation of 1763, the fact is that when the settlers came, the Indians were there, organized in societies and occupying the land as their forefathers had done for centuries. …

Hall J., for himself and 2 other justices, looked to American and Commonwealth cases on Aboriginal title, including *Johnson v. M'Intosh*:

> While the Nishga claim has not heretofore been litigated, there is a wealth of jurisprudence affirming common law recognition of aboriginal rights to possession and enjoyment of lands of aborigines precisely analogous to the Nishga situation here.
>
> …
>
> The case most frequently quoted with approval dealing with the nature of aboriginal rights is Johnson v. McIntosh. It is the locus classicus of the principles governing aboriginal title.
>
> …
>
> The dominant and recurring proposition stated by Chief Justice Marshall in Johnson v. McIntosh is that on discovery or on conquest the aborigines of newly-found lands were conceded to be the rightful occupants of the soil with a legal as well as a just claim to retain possession of it and to use it according to their own discretion, but their rights to complete sovereignty as independent nations were necessarily diminished and their power to dispose of the soil on their own will to whomsoever they pleased was denied by the original fundamental principle that discovery or conquest gave exclusive title to those who made it.
>
> …
>
> The aboriginal Indian title does not depend on treaty, executive order or legislative enactment.

Although both Judson and Hall JJ. acknowledged the source of Aboriginal title as owing to Indigenous peoples' prior occupation, the judges disagreed on the nature of Aboriginal title. Judson J., while disagreeing with the language used in *St. Catherine's,* appears to accept Aboriginal title as a lesser interest that burdens the Crown's title:

> When the Colony of British Columbia was established in 1858, the Nishga territory became part of it. The fee was in the Crown in right of the Colony until July 20, 1871, when the Colony entered Confederation, and thereafter in the Crown in right of the Province of British Columbia, except only in respect of those lands transferred to the Dominion under the Terms of Union.
>
> …
>
> … it does not help one in the solution of this problem [of Aboriginal title] to call it a "personal or usufructuary right". What they are asserting in this action is that they had a right to continue to live on their lands as their forefathers had lived and that this right has never been lawfully extinguished. There can be no question that this right was "dependent on the goodwill of the Sovereign".

Hall J., on the other hand, suggested that Aboriginal title was a right to ownership:

> Possession is of itself at common law proof of ownership…
>
> …
>
> … the trial judge overlooked that possession is of itself proof of ownership. Prima facie, therefore, the Nishgas are the owners of the lands that have been in their possession from time immemorial and, therefore, the burden of establishing that their right has been extinguished rests squarely on the respondent.

The judges also split on the question of whether the Nisga'a title had been extinguished. Judson J. found that the colony and then provincial acts of legislating over the land effectively extinguished the Nisga'a title:

> It was the opinion of the British Columbia Courts that this right, if it ever existed, had been lawfully extinguished, that with two societies in competition for land—the white settlers demanding orderly settlement and the Indians demanding to be let alone—the proper authorities deliberately chose to set apart reserves for Indians in various parts of the territory and open up the rest for settlements. They held that this had been done when British Columbia entered Confederation in 1871 and that the Terms of Union recognized this fact.
>
> …
>
> The reasons for judgment next deal with a series of proclamations by James Douglas as Governor of the Colony of British Columbia…. [These were proclamations and ordinances showing the province exercising legislative jurisdiction in a wide number of areas: land surveys; procedures for land sales; laws around mining; orders declaring that all lands in the province and all mines and minerals belong to the Crown fee; and laws affecting Crown lands.]
>
> …
>
> In my opinion, in the present case, the sovereign authority elected to exercise complete dominion over the lands in question, adverse to any right of occupancy which the Nishga Tribe might have had, when, by legislation, it opened up such lands for settlement, subject to the reserves of land set aside for Indian occupation.

Justice Hall, while not disagreeing that Aboriginal title could be extinguished (based on 19th century case law dealing with Aboriginal title from other commonwealth countries like the US and New Zealand), held that the threshold for what constitutes extinguishment was not proven by the Crown. What was required to prove this was specific legislation evidencing "a "clear and plain indication" in the public records that the sovereign "intended to extinguish all of the (claimants') rights."" Based on the facts, Hall J. did not find in the various proclamations and ordinances evidence of a clear and plain intent to extinguish:

> If the Colony had intended extinguishing the Indian title to public lands as referred to in the foregoing letter, it could easily have said, "Indian title to public lands in the Colony is hereby extinguished". No such enactment or one with language to like effect was ever passed.

The seventh judge in the case, Pigeon J., would have dismissed the case on the procedural ground that the Nisga'a had not followed the correct procedure to bring a challenge against the title of the Crown in right of the province. His decision brought the total judges voting to dismiss the case to 4 over 3. While the case was significant for recognizing the common law right to Aboriginal title, it left the status of the

continued existence of Aboriginal title in limbo given the split between the judges on whether provincial laws and ordinances over lands could serve to extinguish title.

2.5.2 Guerin v. The Queen, 1984 CanLII 25 (SCC), [1984] 2 SCR 335

A majority of the SCC would eventually return to *Calder* in *Guerin.* Dickson J. grounded the existence of the fiduciary duty in both the nature of Aboriginal title and the role of the Crown in the surrender of reserve lands. This case did not revisit the question of evidence required to prove extinguishment but did reaffirm Aboriginal title's existence at common law (implying that Judson J.'s conclusion that provincial regulation of land could extinguish Aboriginal title was not accepted by a majority of the Court). In developing a theory of Aboriginal title, like Hall J. in *Calder*, Dickson CJ, in particular, drew on Marshall J.'s decision in *Johnson v M'Intosh*:

> In *Calder*…, this Court recognized aboriginal title as a legal right derived from the Indians' historic occupation and possession of their tribal lands.
>
> …
>
> In recognizing that the Proclamation is not the sole source of Indian title the Calder decision went beyond the judgment of the Privy Council in *St. Catherine's Milling* … . In that case Lord Watson acknowledged the existence of aboriginal title but said it had its origin in the Royal Proclamation. In this respect Calder is consistent with the position of Chief Justice Marshall in the leading American cases of *Johnson v. M'Intosh*… (1823), and *Worcester v. State of Georgia*, … (1832), cited by Judson and Hall JJ. in their respective judgments.
>
> In *Johnson v. M'Intosh*, Marshall C.J., although he acknowledged the Proclamation of 1763 as one basis for recognition of Indian title, was nonetheless of opinion that the rights of Indians in the lands they traditionally occupied prior to European colonization both predated and survived the claims to sovereignty made by various European nations in the territories of the North American continent. The principle of discovery which justified these claims gave the ultimate title in the land in a particular area to the nation which had discovered and claimed it. In that respect at least the Indians' rights in the land were obviously diminished; but their rights of occupancy and possession remained unaffected.
>
> The principle that a change in sovereignty over a particular territory does not in general affect the presumptive title of the inhabitants was approved by the Privy Council in *Amodu Tijani v. Southern Nigeria (Secretary)*, [1921] 2 A.C. 399. That principle supports the assumption implicit in *Calder* that Indian title is an independent legal right which, although recognized by the Royal Proclamation of 1763, nonetheless predates it. … [The Indians] interest in their lands is a pre-existing legal right not created by Royal Proclamation, by s. 18(1) of the *Indian Act*, or by any other executive order or legislative provision.
>
> It does not matter, in my opinion, that the present case is concerned with the interest of an Indian Band in a reserve rather than with unrecognized aboriginal title in traditional tribal lands. The Indian interest in the land is the same in both cases: see *Attorney-General for Quebec v. Attorney-General for Canada*, 1920 CanLII 956 (UK JCPC), [1921] 1 A.C. 401, at pp. 410-11 (the *Star Chrome* case). …

Dickson J. also opined on the nature of Aboriginal title, indicating that it was a lesser interest than ownership; that it was *sui generis* in nature and common law concepts were not apt to describe it:

> In the *St. Catherine's Milling* case, *supra*, the Privy Council held that the Indians had a "personal and usufructuary right" in the lands which they had traditionally occupied. …
>
> …
>
> It is true that in contexts other than constitutional the characterization of Indian title as "a personal and usufructuary right" has sometimes been questioned. In *Calder*, *supra*, for example, Judson J. intimated at p. 328 that this characterization was not helpful in determining the nature of Indian title. …
>
> It appears to me that there is no real conflict between the cases which characterize Indian title as a beneficial interest of some sort, and those which characterize it a personal, usufructuary right. Any apparent inconsistency derives from the fact that in describing what constitutes a unique interest in land the courts have almost inevitably found themselves applying a somewhat inappropriate terminology drawn from general property law. There is a core of truth in the way that each of the two lines of authority has described native title, but an appearance of conflict has nonetheless arisen because in neither case is the categorization quite accurate.
>
> Indians have a legal right to occupy and possess certain lands, the ultimate title to which is in the Crown. While their interest does not, strictly speaking, amount to beneficial ownership, neither is its nature completely exhausted by the concept of a personal right. It is true that the *sui generis* interest which the Indians have in the land is personal in the sense that it cannot be transferred to a grantee, but it is also true, as will presently appear, that the interest gives rise upon surrender to a distinctive fiduciary obligation on the part of the Crown to deal with the land for the benefit of the surrendering Indians. These two aspects of Indian title go together, since the Crown's original purpose in declaring the Indians' interest to be inalienable otherwise than to the Crown was to facilitate the Crown's ability to represent the Indians in dealings with third parties. The nature of the Indians' interest is therefore best characterized by its general inalienability, coupled with the fact that the Crown is under an obligation to deal with the land on the Indians' behalf when the interest is surrendered. Any description of Indian title which goes beyond these two features is both unnecessary and potentially misleading.

2.5.3 Delgamuukw v. British Columbia, 1997 CanLII 302 (SCC), [1997] 3 SCR 1010

The next SCC decision to discuss Aboriginal title was *Delgamuukw v. British Columbia*, 1997 CanLII 302 (SCC), [1997] 3 SCR 1010. This arose from a lawsuit commenced by Gitksan and Wet'suwet'en hereditary chiefs in 1984, both individually and on behalf of their "Houses", claiming ownership and jurisdiction to over 58,000 km² of lands in British Columbia. The claimants presented significant evidence of their oral traditions, histories, territories and Indigenous laws in support of their claim. The trial judge did not accept the evidence of oral history of the claimant's attachment to the land. He rejected the plaintiffs' claims for ownership and jurisdiction and for Aboriginal rights in the territory, and instead granted a declaration that the plaintiffs were entitled to use unoccupied or vacant land subject to the general law of the province.

On appeal, the original claim was altered by replacing the claims for ownership and jurisdiction with claims for Aboriginal title and self-government, and amalgamating the individual claims into two collective claims, one for each nation. The SCC allowed the appeal, though did not rule on whether or not title had been established, but instead ordered a new trial. In its decisions, the SCC spoke at length about the nature of title and how it is to be proven, effectively **setting the framework for establishing Aboriginal title** under s. 35 of the *Constitution Act, 1982*.

First, Lamer CJ, for the majority, addresses the trial judge's dismissive treatment of the **oral history evidence** led by the claimants, finding that the trial judge had made a "palpable and overriding error" in his assessment of this evidence:

> 78 … As a general rule, this Court has been extremely reluctant to interfere with the findings of fact made at trial … [u]nless there is a "palpable and overriding error", appellate courts should not substitute their own findings of fact for those of the trial judge.
>
> …

> 80 … [A]ppellate intervention is … warranted by the failure of a trial court to appreciate the evidentiary difficulties inherent in adjudicating aboriginal claims when, first, applying the rules of evidence and, second, interpreting the evidence before it.
>
> 81 The justification for this special approach can be found in the nature of aboriginal rights themselves. I explained in *Van der Peet* that those rights are aimed at the reconciliation of the prior occupation of North America by distinctive aboriginal societies with the assertion of Crown sovereignty over Canadian territory. They attempt to achieve that reconciliation by "their bridging of aboriginal and non-aboriginal cultures" (at para. 42). Accordingly, "a court must take into account the perspective of the aboriginal people claiming the right. . . . while at the same time taking into account the perspective of the common law" such that "[t]rue reconciliation will, equally, place weight on each" (at paras. 49 and 50).
>
> 82 In other words, although the doctrine of aboriginal rights is a common law doctrine, aboriginal rights are truly *sui generis*, and demand a unique approach to the treatment of evidence which accords due weight to the perspective of aboriginal peoples. However, that accommodation must be done in a manner which does not strain "the Canadian legal and constitutional structure" (at para. 49). …
>
> …
>
> 84 … In practical terms, this requires the courts to come to terms with the oral histories of aboriginal societies, which, for many aboriginal nations, are the only record of their past. …
>
> 86 Many features of oral histories would count against both their admissibility and their weight as evidence of prior events in a court that took a traditional approach to the rules of evidence. The most fundamental of these is their broad social role not only "as a repository of historical knowledge for a culture" but also as an expression of "the values and mores of [that] culture" … . Dickson J. (as he then was) recognized as much when he stated in *Kruger v. The Queen*, 1977 … that "[c]laims to aboriginal title are woven with history, legend, politics and moral obligations." The difficulty with these features of oral histories is that they are tangential to the ultimate purpose of the fact-finding process at trial -- the determination of the historical truth. Another feature of oral histories which creates difficulty is that they largely consist of out-of-court statements, passed on through an unbroken chain across the generations of a particular aboriginal nation to the present-day. These out-of-court statements are admitted for their truth and therefore conflict with the general rule against the admissibility of hearsay.
>
> 87 Notwithstanding the challenges created by the use of oral histories as proof of historical facts, the laws of evidence must be adapted in order that this type of evidence can be accommodated and placed on an equal footing with the types of historical evidence that courts are familiar with…
>
> 107 The trial judge's treatment of the various kinds of oral histories did not satisfy the principles I laid down in *Van der Peet*. These errors are particularly worrisome because oral histories were of critical importance to the appellants' case. They used those histories in an attempt to establish their occupation and use of the disputed territory, an essential requirement for aboriginal title. The trial judge, after refusing to admit, or giving no independent weight to these oral histories, reached the conclusion that the appellants had not demonstrated the requisite degree of occupation for "ownership". Had the trial judge assessed the oral histories correctly, his conclusions on these issues of fact might have been very different.

Lamer CJ then proceeds to talk about the source, nature and content of Aboriginal title. Regarding its source, he affirms the finding of Dickson CJ in *Guerin*, that the historic occupation and possession of tribal lands by Aboriginal groups is what gives rise to Aboriginal title. He also suggests a second source for Aboriginal title, namely "the relationship between common law and the pre-existing systems of aboriginal law" (at para. 114).

On the nature of Aboriginal title, consistent with *St. Catherine's* and *Guerin*, Lamer CJ finds that Aboriginal title is different than *fee simple* ownership and takes the approach of characterizing it as "*sui generis*" as Dickson CJ had in *Guerin*. He explains the concept to mean the following:

> 112 … Aboriginal title has been described as *sui generis* in order to distinguish it from "normal" proprietary interests, such as fee simple. However, as I will now develop, it is also *sui generis* in the sense that its characteristics cannot be completely explained by reference either to the common law rules of real property or to the rules of property found in aboriginal legal systems. As with other aboriginal rights, it must be understood by reference to both common law and aboriginal perspectives.

On this Lamer CJ further notes that "[w]hat makes aboriginal title *sui generis* is that it arises from possession *before* the assertion of British sovereignty, whereas normal estates, like fee simple, arise afterwards" (at para. 114).

Another dimension, according to Lamer CJ, that makes Aboriginal title *sui generis* is its *inalienability*, which he explains as follows:

> 113 … Lands held pursuant to aboriginal title cannot be transferred, sold or surrendered to anyone other than the Crown and, as a result, is inalienable to third parties. This Court has taken pains to clarify that aboriginal title is only "personal" in this sense, and does not mean that aboriginal title is a non-proprietary interest which amounts to no more than a licence to use and occupy the land and cannot compete on an equal footing with other proprietary interests… .

The fact that aboriginal title is held *communally* is the final dimension Lamer CJ notes that makes it *sui generis*:

> 115 … Aboriginal title cannot be held by individual aboriginal persons; it is a collective right to land held by all members of an aboriginal nation. Decisions with respect to that land are also made by that community. This is another feature of aboriginal title which is *sui generis* and distinguishes it from normal property interests.

As for the content of Aboriginal title, Lamer CJ explains it as follows:

> 110 … The appellants argue that aboriginal title is tantamount to an inalienable fee simple, which confers on aboriginal peoples the rights to use those lands as they choose and which has been constitutionalized by s. 35(1). The respondents offer two alternative formulations: first, that aboriginal title is no more than a bundle of rights to engage in activities which are themselves aboriginal rights recognized and affirmed by s. 35(1), and that the *Constitution Act, 1982*, merely constitutionalizes those individual rights, not the bundle itself, because the latter has no independent content; and second, that aboriginal title, at most, encompasses the right to exclusive use and occupation of land in order to engage in those activities which are aboriginal rights themselves, and that s. 35(1) constitutionalizes this notion of exclusivity.
>
> 111 The content of aboriginal title, in fact, lies somewhere in between these positions. Aboriginal title is a right in land and, as such, is more than the right to engage in specific activities which may be themselves aboriginal rights. Rather, it confers the right to use land for a variety of activities, not all of which need be aspects of practices, customs and traditions which are integral to the distinctive cultures of aboriginal societies. Those activities do not constitute the right *per se*; rather, they are parasitic on the underlying title. However, that range of uses is subject to the limitation that they must not be irreconcilable with the nature of the attachment to the land which forms the basis of the particular group's aboriginal title. This inherent limit … flows from the definition of aboriginal title as a *sui generis* interest in land…

Lamer CJ comes to the conclusion that the Aboriginal title lands can be used for a variety of different purposes and not restricted to merely the exercise of Aboriginal rights on the lands by looking at the various ways reserve lands can be used (recall that in *Guerin*, the Court found that the interest in both was the same). He notes that the *Indian Act* does not restrict the use of reserve land to the exercise of customs and traditions but allows land to be used for a broad variety of purposes. Further, looking at the *Indian Oil and Gas Act*, bands have an interest in subsurface resources under their reserve land. Thus, Lamer CJ concludes that Aboriginal title also encompasses mineral rights and lands held pursuant to Aboriginal title should be capable of exploitation in the same way (see paras. 116-124).

On the inherent limitation that Aboriginal title lands cannot be used in ways that are irreconcilable with the nature of the groups' attachment to the land, Lamer CJ explains his basis for this finding as follows:

> 126 … As I discussed earlier, aboriginal title arises from the prior occupation of Canada by aboriginal peoples. That prior occupation is relevant in two different ways: first, because of the physical fact of occupation, and second, because aboriginal title originates in part from pre-existing systems of aboriginal law. However, the law of aboriginal title does not only seek to determine the historic rights of aboriginal peoples to land; it also seeks to afford legal protection to prior occupation in the present-day. Implicit in the protection of historic patterns of occupation is a recognition of the importance of the continuity of the relationship of an aboriginal community to its land over time.
>
> 127 I develop this point below with respect to the test for aboriginal title. The relevance of the continuity of the relationship of an aboriginal community with its land here is that it applies not only to the past, but to the future as well. That relationship should not be prevented from continuing into the future. As a result, uses of the lands that would threaten that future relationship are, by their very nature, excluded from the content of aboriginal title.
>
> 128 Accordingly, in my view, lands subject to aboriginal title cannot be put to such uses as may be irreconcilable with the nature of the occupation of that land and the relationship that the particular group has had with the land which together have given rise to aboriginal title in the first place. As discussed below, one of the critical elements in the determination of whether a particular aboriginal group has aboriginal title to certain lands is the matter of the occupancy of those lands. Occupancy is determined by reference to the activities that have taken place on the land and the uses to which the land has been put by the particular group. If lands are so occupied, there will exist a special bond between the group and the land in question such that the land will be part of the definition of the group's distinctive culture. It seems to me that these elements of aboriginal title create an inherent limitation on the uses to which the land, over which such title exists, may be put.

Lamer CJ goes on to explain that should a community wish to use its land in a way that is inconsistent with the inherent limit, the solution would be to surrender those lands to the Crown and convert them into nontitle lands to do so (see para. 131).

Finally, Lamer CJ lays out the test for proving Aboriginal title, noting that this requires a different test than proving Aboriginal rights under the *Van der Peet* test. On the relationship between Aboriginal title and Aboriginal rights, he indicates that Aboriginal rights fall along a spectrum and Aboriginal title is a special subset of Aboriginal rights:

> 138 … [T]he aboriginal rights which are recognized and affirmed by s. 35(1) fall along a spectrum with respect to their degree of connection with the land. At the one end, there are those aboriginal rights which are practices, customs and traditions that are integral to the distinctive aboriginal culture of the group claiming the right. However, the "occupation and use of the land" where the activity is taking place is not "sufficient to support a claim of title to the land" (at para. 26 (emphasis in original)). Nevertheless, those activities receive constitutional protection. In the middle, there are activities which, out of necessity, take place on land and indeed, might be intimately related to a particular piece of land. Although an aboriginal group may not be able to demonstrate title to the land, it may nevertheless have a site-specific right to engage in a particular activity. … At the other end of the spectrum, there is aboriginal title itself.

He identifies the Aboriginal title test and its elements as follows:

> 143 In order to make out a claim for aboriginal title, the aboriginal group asserting title must satisfy the following criteria: (i) the land must have been occupied prior to sovereignty, (ii) if present occupation is relied on as proof of occupation pre-sovereignty, there must be a continuity between present and pre-sovereignty occupation, and (iii) at sovereignty, that occupation must have been exclusive.
>
> *The land must have been occupied prior to sovereignty*
>
> 144 In order to establish a claim to aboriginal title, the aboriginal group asserting the claim must establish that it occupied the lands in question *at the time at which the Crown asserted sovereignty over the land subject to the title.* …
>
> 145 [I]n the context of aboriginal title, sovereignty is the appropriate time period to consider for several reasons. First, from a theoretical standpoint, aboriginal title arises out of prior occupation of the land by aboriginal peoples and out of the relationship between the common law and pre-existing systems of aboriginal law. Aboriginal title is a burden on the Crown's underlying title. However, the Crown did not gain this title until it asserted sovereignty over the land in question. Because it does not make sense to speak of a burden on the underlying title before that title existed, aboriginal title crystallized at the time sovereignty was asserted. Second, aboriginal title does not raise the problem of distinguishing between distinctive, integral aboriginal practices, customs and traditions and those influenced or introduced by European contact. Under common law, the act of occupation or possession is sufficient to ground aboriginal title and it is not necessary to prove that the land was a distinctive or integral part of the aboriginal society before the arrival of Europeans. Finally, from a practical standpoint, it appears that the date of sovereignty is more certain than the date of first contact. It is often very difficult to determine the precise moment that each aboriginal group had first contact with European culture. … For these reasons, I conclude that aboriginals must establish occupation of the land from the date of the assertion of sovereignty in order to sustain a claim for aboriginal title. …
>
> 146 There was a consensus among the parties on appeal that proof of historic occupation was required to make out a claim to aboriginal title. However, the parties disagreed on how that occupancy could be proved. …
>
> 147 This debate over the proof of occupancy reflects two divergent views of the source of aboriginal title. The respondents argue, in essence, that aboriginal title arises from the physical reality at the time of sovereignty, whereas the Gitksan effectively take the position that aboriginal title arises from and should reflect the pattern of land holdings under aboriginal law. However, as I have explained above, the source of aboriginal title appears to be grounded both in the common law and in the aboriginal perspective on land; the latter includes, but is not limited to, their systems of law. It follows that both should be taken into account in establishing the proof of occupancy. …
>
> 148 … As a result, if, at the time of sovereignty, an aboriginal society had laws in relation to land, those laws would be relevant to establishing the occupation of lands which are the subject of a claim for aboriginal title. Relevant laws might include, but are not limited to, a land tenure system or laws governing land use.
>
> 149 However, the aboriginal perspective must be taken into account alongside the perspective of the common law. Professor McNeil has convincingly argued that at common law, the fact of physical occupation is proof of possession at law, which in turn will ground title to the land... Physical occupation may be established in a variety of ways, ranging from the construction of dwellings through cultivation and enclosure of fields to regular use of definite tracts of land for hunting, fishing or otherwise exploiting its resources... In considering whether occupation sufficient to ground title is established, "one must take into account the group's size, manner of life, material resources, and technological abilities, and the character of the lands claimed"…

…

If present occupation is relied on as proof of occupation pre-sovereignty, there must be a continuity between present and pre-sovereignty occupation

152 … Conclusive evidence of pre-sovereignty occupation may be difficult to come by. Instead, an aboriginal community may provide evidence of present occupation as proof of pre-sovereignty occupation in support of a claim to aboriginal title. What is required, in addition, is a *continuity* between present and pre-sovereignty occupation, because the relevant time for the determination of aboriginal title is at the time before sovereignty.

153 Needless to say, there is no need to establish "an unbroken chain of continuity" (*Van der Peet*, at para. 65) between present and prior occupation. The occupation and use of lands may have been disrupted for a time, perhaps as a result of the unwillingness of European colonizers to recognize aboriginal title. To impose the requirement of continuity too strictly would risk "undermining the very purpose of s. 35(1) by perpetuating the historical injustice suffered by aboriginal peoples at the hands of colonizers who failed to respect" aboriginal rights to land...

154 I should also note that there is a strong possibility that the precise nature of occupation will have changed between the time of sovereignty and the present. I would like to make it clear that the fact that the nature of occupation has changed would not ordinarily preclude a claim for aboriginal title, as long as a substantial connection between the people and the land is maintained…

At sovereignty, occupation must have been exclusive

155 Finally, at sovereignty, occupation must have been exclusive. The requirement for exclusivity flows from the definition of aboriginal title itself, because I have defined aboriginal title in terms of the right to exclusive use and occupation of land. Exclusivity, as an aspect of aboriginal title, vests in the aboriginal community which holds the ability to exclude others from the lands held pursuant to that title. The proof of title must, in this respect, mirror the content of the right. Were it possible to prove title without demonstrating exclusive occupation, the result would be absurd, because it would be possible for more than one aboriginal nation to have aboriginal title over the same piece of land, and then for all of them to attempt to assert the right to exclusive use and occupation over it.

156 … [T]he test required to establish exclusive occupation must take into account the context of the aboriginal society at the time of sovereignty. For example, it is important to note that exclusive occupation can be demonstrated even if other aboriginal groups were present, or frequented the claimed lands. Under those circumstances, exclusivity would be demonstrated by "the intention and capacity to retain exclusive control" ... Thus, an act of trespass, if isolated, would not undermine a general finding of exclusivity, if aboriginal groups intended to and attempted to enforce their exclusive occupation. Moreover, … the presence of other aboriginal groups might actually reinforce a finding of exclusivity. For example, "[w]here others were allowed access upon request, the very fact that permission was asked for and given would be further evidence of the group's exclusive control" (at p. 204).

157 A consideration of the aboriginal perspective may also lead to the conclusion that trespass by other aboriginal groups does not undermine, and that presence of those groups by permission may reinforce, the exclusive occupation of the aboriginal group asserting title. For example, the aboriginal group asserting the claim to aboriginal title may have trespass laws which are proof of exclusive occupation, such that the presence of trespassers does not count as evidence against exclusivity. As well, aboriginal laws under which permission may be granted to other aboriginal groups to use or reside even temporarily on land would reinforce the finding of exclusive occupation.

158 In their submissions, the appellants pressed the point that requiring proof of exclusive occupation might preclude a finding of joint title, which is shared between two or more aboriginal nations. … I would suggest that the requirement of exclusive occupancy and the possibility of joint title could be reconciled by recognizing that joint title could arise from shared exclusivity. …

Lamer CJ indicates that the *Sparrow* and *Gladstone* justification framework apply to infringement of Aboriginal title, although with some adaptation given the unique nature of Aboriginal title. It is worth noting, however, that Lamer CJ expanded broadly on the types of government activities that could potentially constitute a justified infringement:

165 The general principles governing justification laid down in *Sparrow*, and embellished by Gladstone, operate with respect to infringements of aboriginal title. In the wake of *Gladstone*, the range of legislative objectives that can justify the infringement of aboriginal title is fairly broad. Most of these objectives can be traced to the reconciliation of the prior occupation of North America by aboriginal peoples with the assertion of Crown sovereignty, which entails the recognition that "distinctive aboriginal societies exist within, and are a part of, a broader social, political and economic community" (at para. 73). In my opinion, the development of agriculture, forestry, mining, and hydroelectric power, the general economic development of the interior of British Columbia, protection of the environment or endangered species, the building of infrastructure and the settlement of foreign populations to support those aims, are the kinds of objectives that are consistent with this purpose and, in principle, can justify the infringement of aboriginal title. Whether a particular measure or government act can be explained by reference to one of those objectives, however, is ultimately a question of fact that will have to be examined on a case-by-case basis. [Emphasis in original]

2.5.4 R. v. Marshall; R. v. Bernard, 2005 SCC 43 (CanLII), [2005] 2 SCR 220

The next case to consider Aboriginal title was the SCC's decision in *R v Marshall; R v Bernard*. The case consolidated two regulatory offence prosecutions involving Mi'kmaq people engaging in commercial logging. *Marshall* involved 35 Mi'kmaq men charged for logging without authorization at various places in the province of Nova Scotia. *Bernard* involved a Mi'kmaq man charged with unlawful possession of spruce logs he was hauling from a cutting site to a local sawmill around the Miramichi watershed in New Brunswick. In both cases, the cutting took place on Crown lands and the defendants put forward s. 35 defences based on Aboriginal title as well as treaty rights

In both cases, the trial courts entered convictions but these were reversed by both the Nova Scotia and New Brunswick courts of appeal. Both courts of appeal found that the trial judges took an inflexible approach to the test for Aboriginal title. The Court, however, sided with the trial judges and appeared to backtrack significantly from the directive of Lamer CJ in *Delgamuukw* that the Aboriginal perspective ought to be "accommodated and placed on an equal footing with the types of historical evidence that courts are familiar with." In particular, in applying the test for exclusive occupation, it appeared the Court expected the Mi'kmaq to show occupation approximating adverse possession, not accounting for Indigenous land-use patterns or laws:

48 The Court's task in evaluating a claim for an aboriginal right is to examine the pre-sovereignty aboriginal practice and translate that practice, as faithfully and objectively as it can, into a modern legal right. … The Court must consider the pre-sovereignty practice from the perspective of the aboriginal people. But in translating it to a common law right, the Court must also consider the European perspective; the nature of the right at common law must be examined to determine whether a particular aboriginal practice fits it. …

…

> 56 "Occupation" means "physical occupation". This "may be established in a variety of ways, ranging from the construction of dwellings through cultivation and enclosure of fields to regular use of definite tracts of land for hunting, fishing or otherwise exploiting its resources"…
>
> …
>
> 58 It follows from the requirement of exclusive occupation that exploiting the land, rivers or seaside for hunting, fishing or other resources may translate into aboriginal title to the land if the activity was sufficiently regular and exclusive to comport with title at common law. …
>
> …
>
> 72 The trial judge in each case applied the correct test to determine whether the respondents' claim to aboriginal title was established. In each case they required proof of sufficiently regular and exclusive use of the cutting sites by Mi'kmaq people at the time of assertion of sovereignty.
>
> 73 In *Marshall*, Curran Prov. Ct. J. reviewed the authorities and concluded that the line separating sufficient and insufficient occupancy for title is between irregular use of undefined lands on the one hand and regular use of defined lands on the other. "Settlements constitute regular use of defined lands, but they are only one instance of it" (para. 141).
>
> 74 In *Bernard*, Lordon Prov. Ct. J. likewise found that occasional visits to an area did not establish title; there must be "evidence of capacity to retain exclusive control" (para. 110) over the land claimed.
>
> 75 These tests correctly reflect the jurisprudence as discussed above.
>
> 76 Holding otherwise, Cromwell J.A. in *Marshall* held that this test was too strict and that it was sufficient to prove occasional entry and acts from which an intention to occupy the land could be inferred. Similarly, in *Bernard*, Daigle J.A. held that the trial judge erred in requiring proof of specific acts of occupation and regular use in order to ground aboriginal title. It was not in error to state, as Cromwell J.A. did, that acts from which intention to occupy the land could be inferred may ground a claim to common law title. However, as discussed above, this must be coupled with sufficiently regular and exclusive use in order to establish title in the common law sense.
>
> 77 Cromwell J.A. found that this additional requirement is not consistent with the semi-nomadic culture or lifestyle of the Mi'kmaq. With respect, this argument is circular. It starts with the premise that it would be unfair to deny the Mi'kmaq title. In order to avoid this result, it posits that the usual indicia of title at common law — possession of the land in the sense of exclusive right to control — should be diminished because the pre-sovereignty practices proved do not establish title on that test. As discussed, the task of the court is to sensitively assess the evidence and then find the equivalent modern common law right. The common law right to title is commensurate with exclusionary rights of control. That is what it means and has always meant. If the ancient aboriginal practices do not indicate that type of control, then title is not the appropriate right. To confer title in the absence of evidence of sufficiently regular and exclusive pre-sovereignty occupation, would transform the ancient right into a new and different right. It would also obliterate the distinction that this Court has consistently made between lesser aboriginal rights like the right to fish and the highest aboriginal right, the right to title to the land…

In concurring reasons, Lebel J., on behalf of himself and Fish J., was critical of the majority's decision for focusing too narrowly on property rights and for taking an approach to title that was fundamentally incompatible with the land use patterns of Indigenous peoples who were 'semi-nomadic'. Nonetheless, Lebel J. would have overturned the appeal, but only on the basis that the record in the courts below lacked the evidentiary foundation to make the necessary legal findings. He stressed that such a ruling should not represent a final determination on the issue of Aboriginal title in Nova Scotia or New Brunswick. Lebel J. stressed that, although many Aboriginal rights cases came before the courts in this way, it was an inappropriate forum to litigate important Aboriginal and treaty rights cases as summary conviction offences in provincial courts. These forums do not provide the process and procedures like civil trials to ensure the appropriate evidentiary record gets before the trier of fact.

2.5.5 Tsilhqot'in Nation v. British Columbia, 2014 SCC 44

The next major decision on Aboriginal title is *Tsilhqot'in*. The Tsilhqot'in are a First Nation located in the interior of British Columbia. Following disputes with the province relating to it unilaterally issuing logging permits to Tsilhqot'in territory without the Nation's permission, the Tsilhqot'in brought civil proceedings in the 1990s. Unlike the summary proceedings in *R v Marshall; R v Bernard,* the trial spanned 339 days over a period of 5 years, with the trial judge issuing findings of title to significant parts of the claim area. The Tsilhqot'in presented significant evidence of their oral histories, laws, custom and traditions in support of their claim.

This decision was overturned on appeal in 2012 with the BCCA applying the decision in *R v Marshall; R v Bernard* to the required proof of site-specific occupation. The BCCA held that the trial judge's acceptance of regular and exclusive use of the wider territory based on Tsilhqot'in land use practices was in error. The case reached the SCC in 2014 and in a unanimous decision authored by McLachlin CJ, without explicitly overruling *R v Marshall; R v Bernard*, the Court agreed with the trial judge and affirmed Aboriginal title to 2,000 km² of Tsilhqot'in territory:

> [24] How should the courts determine whether a semi-nomadic indigenous group has title to lands? This Court has never directly answered this question. The courts below disagreed on the correct approach. We must now clarify the test.
>
> [25] As we have seen, the *Delgamuukw* test for Aboriginal title to land is based on "occupation" prior to assertion of European sovereignty. To ground Aboriginal title this occupation must possess three characteristics. It must be sufficient; it must be continuous (where present occupation is relied on); and it must be exclusive.
>
> …
>
> [27] The trial judge in this case held that "occupation" was established for the purpose of proving title by showing regular and exclusive use of sites or territory. On this basis, he concluded that the Tsilhqot'in had established title not only to village sites and areas maintained for the harvesting of roots and berries, but to larger territories which their ancestors used regularly and exclusively for hunting, fishing and other activities.
>
> [28] The Court of Appeal disagreed and applied a narrower test for Aboriginal title — site-specific occupation. It held that to prove sufficient occupation for title to land, an Aboriginal group must prove that its ancestors intensively used a definite tract of land with reasonably defined boundaries at the time of European sovereignty.
>
> [29] For semi-nomadic Aboriginal groups like the Tsilhqot'in, the Court of Appeal's approach results in small islands of title surrounded by larger territories where the group possesses only Aboriginal rights to engage in activities like hunting and trapping. By contrast, on the trial judge's approach, the group would enjoy title to all the territory that their ancestors regularly and exclusively used at the time of assertion of European sovereignty.
>
> …

> [32] …[T]he court must be careful not to lose or distort the Aboriginal perspective by forcing ancestral practices into the square boxes of common law concepts, thus frustrating the goal of faithfully translating pre-sovereignty Aboriginal interests into equivalent modern legal rights. Sufficiency, continuity and exclusivity are not ends in themselves, but inquiries that shed light on whether Aboriginal title is established.
>
> …
>
> [35] The Aboriginal perspective focuses on laws, practices, customs and traditions of the group (*Delgamuukw*, at para. 148). In considering this perspective for the purpose of Aboriginal title, "one must take into account the group's size, manner of life, material resources, and technological abilities, and the character of the lands claimed"…
>
> …
>
> [37] Sufficiency of occupation is a context-specific inquiry. … The intensity and frequency of the use may vary with the characteristics of the Aboriginal group asserting title and the character of the land over which title is asserted. …
>
> [38] To sufficiently occupy the land for purposes of title, the Aboriginal group in question must show that it has historically acted in a way that would communicate to third parties that it held the land for its own purposes. This standard does not demand notorious or visible use akin to proving a claim for adverse possession, but neither can the occupation be purely subjective or internal. There must be evidence of a strong presence on or over the land claimed, manifesting itself in acts of occupation that could reasonably be interpreted as demonstrating that the land in question belonged to, was controlled by, or was under the exclusive stewardship of the claimant group. As just discussed, the kinds of acts necessary to indicate a permanent presence and intention to hold and use the land for the group's purposes are dependent on the manner of life of the people and the nature of the land. Cultivated fields, constructed dwelling houses, invested labour, and a consistent presence on parts of the land may be sufficient, but are not essential to establish occupation. The notion of occupation must also reflect the way of life of the Aboriginal people, including those who were nomadic or semi-nomadic.
>
> …
>
> [42] There is no suggestion in the jurisprudence or scholarship that Aboriginal title is confined to specific village sites or farms, as the Court of Appeal held. Rather, a culturally sensitive approach suggests that regular use of territories for hunting, fishing, trapping and foraging is "sufficient" use to ground Aboriginal title, provided that such use, on the facts of a particular case, evinces an intention on the part of the Aboriginal group to hold or possess the land in a manner comparable to what would be required to establish title at common law.
>
> [43] The Province argues that this Court in *R. v. Marshall; R. v. Bernard*, 2005 SCC 43, [2005] 2 S.C.R. 220, rejected a territorial approach to title... In fact, this Court in *Marshall; Bernard* did not reject a territorial approach, but held only (at para. 72) that there must be "proof of sufficiently regular and exclusive use" of the land in question, a requirement established in Delgamuukw.
>
> [44] The Court in *Marshall; Bernard* confirmed that nomadic and semi-nomadic groups could establish title to land, provided they establish sufficient physical possession, which is a question of fact. … While the issue was framed in terms of whether the common law test for possession was met, the Court did not resile from the need to consider the perspective of the Aboriginal group in question…

Beyond this important 'clarification' of *Marshall; Bernard*, the decision in *Tsilhqot'in* also clarified a couple of lingering issues from *Delgamuukw.* First, McLachlin CJ revisited the nature of Aboriginal title, providing additional clarity on the Crown's rights and obligations in relation to title lands:

> [69] The starting point in characterizing the legal nature of Aboriginal title is Dickson J.'s concurring judgment in *Guerin*, discussed earlier. At the time of assertion of European sovereignty, the Crown acquired radical or underlying title to all the land in the province. This Crown title, however, was burdened by the pre-existing legal rights of Aboriginal people who occupied and used the land prior to European arrival. The doctrine of *terra nullius* (that no one owned the land prior to European assertion of sovereignty) never applied in Canada, as confirmed by the Royal Proclamation of 1763. The Aboriginal interest in land that burdens the Crown's underlying title is an independent legal interest, which gives rise to a fiduciary duty on the part of the Crown.
>
> [70] The content of the Crown's underlying title is what is left when Aboriginal title is subtracted from it: ... As we have seen, *Delgamuukw* establishes that Aboriginal title gives "the right to exclusive use and occupation of the land . . . for a variety of purposes", not confined to traditional or "distinctive" uses (para. 117). In other words, Aboriginal title is a beneficial interest in the land: *Guerin*, at p. 382. In simple terms, the title holders have the right to the benefits associated with the land — to use it, enjoy it and profit from its economic development. As such, the Crown does not retain a beneficial interest in Aboriginal title land.
>
> [71] What remains, then, of the Crown's radical or underlying title to lands held under Aboriginal title? The authorities suggest two related elements — a fiduciary duty owed by the Crown to Aboriginal people when dealing with Aboriginal lands, and the right to encroach on Aboriginal title if the government can justify this in the broader public interest under s. 35 of the *Constitution Act, 1982*. The Court in *Delgamuukw* referred to this as a process of reconciling Aboriginal interests with the broader public interests under s. 35 of the *Constitution Act, 1982*.

Recall that the Crown here includes both the federal and provincial governments. This is because the Court decided in this case that s. 35 rights are not the exclusive jurisdiction of the federal government (e.g., they no longer go to the 'core of Indianness') and confirmed that both governments may justifiably infringe s. 35 rights.

Next, McLachlin CJ took the opportunity to address the uses and limitations on Aboriginal title, suggesting that the uses to which it can be put are similar to those associated with fee simple ownership, and suggesting that what is an 'irreconcilable use' would be highly fact-dependent:

> [73] Aboriginal title confers ownership rights similar to those associated with fee simple, including: the right to decide how the land will be used; the right of enjoyment and occupancy of the land; the right to possess the land; the right to the economic benefits of the land; and the right to pro-actively use and manage the land.
>
> [74] Aboriginal title, however, comes with an important restriction — it is collective title held not only for the present generation but for all succeeding generations. This means it cannot be alienated except to the Crown or encumbered in ways that would prevent future generations of the group from using and enjoying it. Nor can the land be developed or misused in a way that would substantially deprive future generations of the benefit of the land. Some changes — even permanent changes — to the land may be possible. Whether a particular use is irreconcilable with the ability of succeeding generations to benefit from the land will be a matter to be determined when the issue arises.

2.6 Treaty Rights

Treaties are foundational documents in the history—and future—of Indigenous-Crown relations in Canada. On this, the Truth and Reconciliation Commission ("TRC") wrote in its final report, "It is important for all Canadians to understand that without Treaties, Canada would no legitimacy as a nation. Treaties between Indigenous nations and the Crown established the legal and constitutional foundation of this country" (*Honouring the Truth, Reconciling for the Future: Summary of the Final Report of Truth and Reconciliation Commission of Canada* (Winnipeg: The Commission, 2015) at 249). In this regard, the TRC's report noted that while most Canadians now

disavow assimilation of Indigenous peoples as an acceptable policy goal, remnants of such beliefs continue to influence laws and institutions in this country. The TRC linked these beliefs to the doctrines of discovery and terra nullius which continues to underlie Canadian state's claim to sovereignty. It is sometimes argued that it would be impossible for Canada to repudiate these doctrines as this would result in there being no legal basis for Canada's sovereignty, resulting in legal chaos. To the contrary, the TRC suggests that treaties are the optional means to allow for formal repudiation of the doctrines of discovery and terra nullius without leading to legal chaos, and this would further place Canadian sovereignty on a more legitimate and just footing.

2.6.1 *Shot Both Sides v Canada*, 2024 SCC 12

O'BONSAWIN J (Wagner CJ and Côté, Rowe, Martin, Kasirer, and Jamal JJ concurring):

I. Overview

[1] Treaties between the Crown and Indigenous peoples are fundamental to Canada's history and constitutional landscape. The promises and obligations enshrined in these fundamental agreements reflect a lasting commitment to maintaining a just relationship between the Crown and Indigenous peoples and were intended to be honoured by the Crown "so long as the sun rises and the river flows" (Royal Commission on Aboriginal Peoples, *Report of the Royal Commission on Aboriginal Peoples*, vol. 2, *Restructuring the Relationship* (1996), at pp. 18-19, citing *R. v. Secretary of State for Foreign and Commonwealth Affairs*, [1982] 2 All E.R. 118 (C.A.), at p. 124, per Lord Denning).

[2] In this matter, Treaty No. 7 enshrines solemn promises and obligations exchanged between the Crown and the Kainai, also known as the "Aakainawa, the Tribe of Many Leaders" ("Blood Tribe"). Of particular importance to this appeal, Treaty No. 7 established Blood Tribe Reserve No. 148 ("Reserve"), which is the largest reserve in Canada and the home of the Blood Tribe. The Reserve's size was to be set in accordance with the treaty land entitlement ("TLE") provisions, based on a formula promising "one square mile for each family of five persons, or in that proportion for larger and smaller families" (Treaty No. 7 (1877), at p. 4; 2019 FC 789, [2020] 1 F.C.R. 22, at Appendix D).

[3] The Blood Tribe has long claimed that the Reserve did not accord with the promises enshrined in Treaty No. 7. After a lengthy procedural history, the Blood Tribe sought declarations to that effect, an order directing Canada to procure lands for addition to the Reserve, and monetary compensation for lost use, mineral royalties, and rents. The Federal Court found that Canada was in breach of the TLE formula in Treaty No. 7 and the size of the Reserve it had provided was 162.5 square miles too small. Before this Court, Canada concedes its breach of Treaty No. 7 with respect to the TLE but argues that the Blood Tribe's claim is statute-barred under Alberta's *Limitation of Actions Act*, R.S.A. 1970, c. 209, and the *Federal Courts Act*, R.S.C. 1985, c. F-7. Section 5(1)(g) of Alberta's *Limitation of Actions Act* sets out a six-year limitation period for "any other action not in [the] Act or any other Act specifically provided for"; pursuant to s. 39(1) of the *Federal Courts Act*, Alberta's limitations statute applies to Federal Court proceedings "in respect of any cause of action arising in that province".

[4] This appeal concerns whether the Blood Tribe's TLE claim is barred by the six-year limitation period in Alberta's *Limitation of Actions Act*. This inquiry turns on a narrow question: whether the breach of the TLE was actionable in Canadian courts prior to the coming into force of s. 35(1) of the *Constitution Act, 1982*. The Blood Tribe argues that their claim cannot be statute-barred under Alberta's *Limitation of Actions Act* and the *Federal Courts Act* prior to there being a recognized action in law, which they allege was not the case for breach of treaty claims until the coming into force of s. 35(1). …

IV. Issues

[29] This Court must decide whether the Blood Tribe's TLE Claim is barred by Alberta's *Limitation of Actions Act* and s. 39(1) of the *Federal Courts Act*. This inquiry turns on two narrow issues raised by the Blood Tribe:

(1) Was a breach of the TLE actionable in Canadian courts prior to the coming into force of s. 35(1) of the *Constitution Act, 1982*?

(2) Were the limitation periods in Alberta's *Limitation of Actions Act* effective to bar the Blood Tribe's TLE Claim prior to the coming into force of s. 35(1) of the *Constitution Act, 1982*?

V. Analysis

[32] As explained below, s. 35(1) of the *Constitution Act, 1982* did not create a cause of action for breach of treaty rights. The Federal Court of Appeal appropriately recognized that "[t]reaty rights flow from the treaty, not the Constitution" (para. 205). Treaty rights were enforceable prior to 1982 and relief was available to the parties. The coming into force of s. 35(1) did not alter the commencement of the limitation period applicable to the Blood Tribe's TLE Claim. As concluded by the Federal Court of Appeal, the Blood Tribe's claim is thus statute-barred pursuant to s. 5(1)(g) of Alberta's *Limitation of Actions Act* and s. 39(1) of the *Federal Courts Act*. However, I find that declaratory relief is warranted given the Crown's dishonourable conduct towards the Blood Tribe.

B. *Was a Breach of the TLE Actionable in Canadian Courts Prior to the Coming Into Force of Section 35(1) of the Constitution Act, 1982?*

[36] Assessing whether a breach of Treaty No. 7 was actionable prior to 1982 requires an analysis of two issues: (i) the enforceability of Treaty No. 7 at common law, and (ii) the impact, if any, of the coming into force of s. 35(1) of the *Constitution Act, 1982*. If treaty rights were enforceable and actionable prior to 1982, then the limitation period applicable to the Blood Tribe's claim began to run when the claim was discoverable, more than 10 years before the coming into force of s. 35(1).

(1) The Enforceability of Treaty No. 7 at Common Law

[37] Treaties are enforceable from the date of execution. While the terminology surrounding the enforceability of treaties may have changed over time, claims seeking to give legal effect to treaty terms were brought before the coming into force of the *Constitution Act, 1982*. Long before 1982, courts recognized that treaties were not merely political promises and created enforceable obligations, including "contractual rights" (see, e.g., *R. v. White* (1964), 1964 CanLII 1270 (BC CA), 50 D.L.R. (2d) 613 (B.C.C.A.), at p. 618, aff'd (1965), 1965 CanLII 643 (SCC), 52 D.L.R. (2d) 481 (S.C.C.); J. Promislow, "Treaties in History and Law" (2014), 47 *U.B.C. L. Rev.* 1085, at pp. 1147-48). The Blood Tribe's approach to this litigation reflects the enforceability of treaties prior to 1982 since their claim was framed as a breach of contract and was brought in 1980.

[38] The enforceability of treaties from the date of execution is well established in this Court's caselaw without reference to s. 35(1). For example, this Court in *R. v. Badger*, 1996 CanLII 236 (SCC), [1996] 1 S.C.R. 771, stated at para. 76: "Treaties are analogous to contracts, albeit of a very solemn and special, public nature. They create enforceable obligations based on the mutual consent of the parties" (emphasis added). Similarly, this Court identified in *Sioui*, at p. 1044, that "what characterizes a treaty is the intention to create obligations, the presence of mutually binding obligations and a certain measure of solemnity" (emphasis added). *Sioui* built on *Simon*, where this Court emphasized that the agreement at issue was a treaty because it was "an enforceable obligation between the Indians and the white man" (p. 410).

[39] The enforceability of treaties from the date of execution is supported by the fundamental nature of the promises they enshrine. Courts, legislatures, and academic commentators have consistently acknowledged this significance: "treaties represent an Indian Magna Carta" (H. Cardinal, *The Unjust Society: The Tragedy of Canada's Indians* (1969), at p. 28); "treaties are vital, living instruments of relationship" (Royal Commission on Aboriginal Peoples, *Report of the Royal Commission on Aboriginal Peoples*, vol. 1, *Looking Forward, Looking Back* (1996), at

p. 128); and "a treaty represents an exchange of solemn promises between the Crown and the various Indian nations. It is an agreement whose nature is sacred" (*Badger*, at para. 41). In addition, the Crown is assumed to intend to fulfill these integral promises (para. 41; *Manitoba Metis Federation Inc. v. Canada (Attorney General)*, 2013 SCC 14, [2013] 1 S.C.R.623, at para. 79; *Haida Nation v. British Columbia (Minister of Forests)*, 2004 SCC 73, [2004] 3 S.C.R. 511, at paras. 19-20).

[40] The Federal Court of Appeal reached the correct conclusion regarding the enforceability of treaties prior to 1982. As noted at para. 100 of its reasons, "[t]reaties were entered into with the intention to create legal obligations and how that obligation is characterized is of no consequence to the question [of] whether their terms are enforceable." Courts prior to 1982 clearly recognized the legal character of treaties: they create and embody enforceable obligations based on the mutual consent of the parties.

(2) The Impact of Section 35(1) of the *Constitution Act, 1982*

[52] The enforceability of Treaty No. 7 at common law is the heart of this appeal. Having established the Treaty's enforceability at common law above, it is necessary to consider whether the coming into force of s. 35(1) of the *Constitution Act, 1982* impacted this enforceability. …

[53] Section 35(1) of the *Constitution Act, 1982* accords constitutional status to existing Aboriginal and treaty rights and prevents them from abrogation by federal, provincial, or territorial law (*Desautel*, at para. 34; J. Woodward, *Aboriginal Law in Canada* (loose-leaf), at § 5:2). The coming into force of s. 35(1) constitutionally "entrenched" the Crown's obligation to respect existing treaty rights (*Mikisew Cree First Nation v. Canada (Minister of Canadian Heritage)*, 2005 SCC 69, [2005] 3 S.C.R. 388, at para. 4; *R. v. Marshall*, 1999 CanLII 666 (SCC), [1999] 3 S.C.R. 533 ("*Marshall (No. 2)*"), at para. 6). As a result, s. 35(1) constitutionalizes existing rights so that they can no longer be abrogated by legislation. …

[54] Section 35(1) did not create treaty rights. Although treaty rights are protected by the *Constitution Act, 1982*, their existence and scope are determined by the terms of the treaty interpreted with the principles set out in *R. v. Marshall*, 1999 CanLII 665 (SCC), [1999] 3 S.C.R. 456 ("*Marshall (No. 1)*"). The terms and limits of treaty rights do not stem from the language or purpose of s. 35(1), which recognizes and affirms existing rights (*Badger*, at para. 76; P. W. Hogg, "The Constitutional Basis of Aboriginal Rights", in P. Noreau and L. Rolland, eds., *Mélanges Andrée Lajoie: Le droit, une variable dépendante* (2008), 177, at p. 182; J. T. S. McCabe, *The Honour of the Crown and its Fiduciary Duties to Aboriginal Peoples* (2008), at p. 39).

[55] This Court has recognized that s. 35(1) was intended to "provide constitutional protection" to pre-existing Aboriginal and treaty rights (*Badger*, at para. 12; *Delgamuukw v. British Columbia*, 1997 CanLII 302 (SCC), [1997] 3 S.C.R. 1010, at para. 84). Furthermore, as stated clearly in *Marshall (No. 1)*, at para. 48, the core impact of s. 35(1) was to prevent abrogation by legislation:

> Until enactment of the *Constitution Act, 1982*, the treaty rights of aboriginal peoples could be overridden by competent legislation as easily as could the rights and liberties of other inhabitants. The hedge offered no special protection, as the aboriginal people learned in earlier hunting cases such as *Sikyea v. The Queen*, 1964 CanLII 62 (SCC), [1964] S.C.R. 642, and *R. v. George*, 1966 CanLII 2 (SCC), [1966] S.C.R. 267. On April 17, 1982, however, this particular type of "hedge" was converted by s. 35(1) into sterner stuff that could only be broken down when justified according to the test laid down in *R. v. Sparrow*, 1990 CanLII 104 (SCC), [1990] 1 S.C.R. 1075, at pp. 1112 *et seq.*, as adapted to apply to treaties in *Badger*, *supra*, *per* Cory J., at paras. 75 *et seq.*

[56] … Remedies were available to the Blood Tribe prior to the coming into force of the *Constitution Act, 1982* and were sought through its 1980 breach of contract action.

…

C. *Were the Limitation Periods in Alberta's Limitation of Actions Act Effective to Bar the Blood Tribe's TLE Claim Prior to the Coming Into Force of Section 35(1) of the Constitution Act, 1982?*

[58] For the reasons above, the Blood Tribe's claim was actionable prior to the coming into force of s. 35(1) and thus the limitation period set out in Alberta's *Limitation of Actions Act* was effective to bar the claim prior to 1982. …

Appeal allowed in part.

O'Bonsawin J. went onto to hold in *Shot Both Sides*, that despite the application of the limitation period, the Blood Tribe would still be entitled to a remedy in the form of a declaration identifying the Crown's dishonourable conduct. The judge stressed that, as a non-coercive remedy, a declaration has a unique role to play in the Indigenous context because it can be "a means by which a court can promote reconciliation to restore the nation-to-nation relationship" (para 70). This is because declarations can provide "a clear statement on the legal rights of Indigenous parties, the duties placed on the Crown, and the Crown's conduct in relation to those sacred promises" (para 73).

In *R v Sparrow*, 1990 CanLII 104 (SCC), [1990] 1 SCR 1075, the Court itself acknowledged that treaty and other Aboriginal rights "were often honoured in the breach" prior to the entrenchment of s. 35. Does an admitted history of denial of Indigenous treaty and other rights for most of Confederation, as well as the *Indian Act* ban on First Nations hiring lawyers (discussed earlier in Section V), suggest that a different set of considerations should apply in cases of the application of limitations statutes to Indigenous claims? Is declaratory relief an adequate substitute? For further discussion on this issue, see K. McNeil and E. Thomas, "Procedural Injustice: Indigenous Claims, Limitation Periods, and Laches" (2022) Osgoode Digital Commons 336.

2.7 Treaty Interpretation Principles

In her dissenting reasons in *R. v. Marshall,* 1999 CanLII 665 (SCC), [1999] 3 SCR 456 *("Marshall 1")*, McLachlin CJC set out a list of the treaty interpretation principles that had found by the Court to that point (at para. 78). This codification, while not a part of the majority's judgment in *Marshall 1* has been cited in many subsequent treaty cases:

> 1. Aboriginal treaties constitute a unique type of agreement and attract special principles of interpretation: *R. v. Sundown*, 1999 CanLII 673 (SCC), [1999] 1 S.C.R 393, at para. 24; *R. v. Badger*, 1996 CanLII 236 (SCC), [1996] 1 S.C.R. 771, at para. 78; *R. v. Sioui*, 1990 CanLII 103 (SCC), [1990] 1 S.C.R. 1025, at p. 1043; *Simon v. The Queen*, at p. 404. …
>
> 2. Treaties should be liberally construed, and ambiguities or doubtful expressions should be resolved in favour of the aboriginal signatories: *Simon*, *supra*, at p. 402; *Sioui*, *supra*, at p. 1035; *Badger*, *supra,* at para. 52.
>
> 3. The goal of treaty interpretation is to choose from among the various possible interpretations of common intention the one which best reconciles the interests of both parties at the time the treaty was signed: *Sioui, supra*, at pp. 1068-69.
>
> 4. In searching for the common intention of the parties, the integrity and honour of the Crown is presumed: *Badger, supra*, at para. 41.
>
> 5. In determining the signatories' respective understanding and intentions, the court must be sensitive to the unique cultural and linguistic differences between the parties: *Badger*, supra, at paras. 52-54; *R. v. Horseman*, 1990 CanLII 96 (SCC), [1990] 1 S.C.R. 901, at p. 907.
>
> 6. The words of the treaty must be given the sense which they would naturally have held for the parties at the time: *Badger*, *supra*, at paras. 53 et seq.; *Nowegijick v. The Queen,* 1983 CanLII 18 (SCC), [1983] 1 S.C.R. 29, at p. 36.

> 7. A technical or contractual interpretation of treaty wording should be avoided: *Badger, supra*; *Horseman, supra*; *Nowegijick, supra*.
>
> 8. While construing the language generously, courts cannot alter the terms of the treaty by exceeding what "is possible on the language" or realistic: *Badger, supra*, at para. 76; *Sioui, supra*, at p. 1069; *Horseman, supra*, at p. 908.
>
> 9. Treaty rights of aboriginal peoples must not be interpreted in a static or rigid way. They are not frozen at the date of signature. The interpreting court must update treaty rights to provide for their modern exercise. This involves determining what modern practices are reasonably incidental to the core treaty right in its modern context: *Sundown, supra*, at para. 32; *Simon, supra*, at p. 402.

On #9 in McLachlin CJC's list, there is, in fact, two principles there to unpack. The first is the principle that treaty rights (like other Aboriginal rights) can evolve. In *Simon*, the Mi'kmaq right to hunt with bows and arrows was found to evolve into a right to hunt using a gun. In *R. v. Morris,* 2006 SCC 59, hunting at night with torches became a right to hunt using guns, spotlights and motor vehicles. However, in *R. v. Marshall,* 1999 CanLII 666 (SCC), [1999] 3 SCR 533 ("*Marshall 2*"), the Court cautioned that there be limits on what could be an evolution of the treaty right found in *Marshall 1*:

> 20 The September 17, 1999 majority judgment did not rule that the appellant had established a treaty right "to gather" anything and everything physically capable of being gathered. The issues were much narrower and the ruling was much narrower. No evidence was drawn to our attention, nor was any argument made in the course of this appeal, that trade in logging or minerals, or the exploitation of off-shore natural gas deposits, was in the contemplation of either or both parties to the 1760 treaty; nor was the argument made that exploitation of such resources could be considered a logical evolution of treaty rights to fish and wildlife or to the type of things traditionally "gathered" by the Mi'kmaq in a 1760 aboriginal lifestyle. …

Subsequent to this, in *R v Marshall; R v Bernard* (2006), the Court rejected the claim that commercial logging was a logical evolution of the right found in *Marshall 1*:

> [25] Of course, treaty rights are not frozen in time. Modern peoples do traditional things in modern ways. The question is whether the modern trading activity in question represents a logical evolution from the traditional trading activity at the time the treaty was made: *Marshall 2*, at para. 20. Logical evolution means the same sort of activity, carried on in the modern economy by modern means. This prevents aboriginal rights from being unfairly confined simply by changes in the economy and technology. But the activity must be essentially the same. "While treaty rights are capable of evolution within limits, . . . their subject matter . . . cannot be wholly transformed" (*Marshall 2*, at para. 19).
>
> …
>
> [34] … As Curran Prov. Ct. J. observed, "[the Mi'kmaq] had no need to cut stands of trees for themselves. . . . Trees were readily available and Europeans could cut their own" (para. 92). The experts agreed that it was probably in the 1780s before the Mi'kmaq became involved in logging and then only in a limited fashion as part of British operations. Logging was not a traditional Mi'kmaq activity. Rather, it was a European activity, in which the Mi'kmaq began to participate only decades after the treaties of 1760-61. If anything, the evidence suggests that logging was inimical to the Mi'kmaq's traditional way of life, interfering with fishing which, as found in *Marshall 1*, was a traditional activity.

The second principle arising from point #9 above is that there can be included or 'incidental' rights to a treaty right. In *Simon*, the right to hunt was found to include the right to carry a gun). In a hunting case called *R v Sundown*, 1999 CanLII 673 (SCC), [1999] 1 SCR 393, the right to hunt was found to include the right to cut down trees and construct a log cabin to enable exercise of the hunting right. The test for this is to ask, "Would a reasonable person, fully apprised of the relevant manner of hunting or fishing, consider the activity in question reasonably related to the act of hunting or fishing?" (para 28). In *Marshall 1*, the right to trade was found to include the right to hunt and fish to acquire goods to trade.

We must add to McLachlin J.'s list the further principles that come from the majority decision in *R. v. Marshall,* 1999 CanLII 665 (SCC), [1999] 3 SCR 456. At issue was the interpretation of a clause in the 1760-61 Treaty, signed between representatives of Mi'kmaq and Wolastoqey and the British Crown, regarding truckhouses (essentially shops where the First Nations could bring items to sell). An earlier 1752 Treaty promised to establish truckhouses and further recognized the Mi'kmaq having "free liberty to bring for Sale to Halifax or any other Settlement … Skins, feathers, fowl, fish or any other thing they shall have to sell…"). In the negotiations leading up to the 1760-61 Treaty, there was a specific request by the First Nations leaders for truckhouses "for the furnishing them with necessaries, in Exchange for their Peltry". However, the written document contained only the promise by the Mi'kmaq not to "Traffick, Barter or Exchange any Commodities in any manner but with such persons, or the Manager of such Truckhouses as shall be appointed or established by His majesty's Governor". In other words, it was framed in negative terms as a restraint on the ability of the Mi'kmaq to trade with non-government individuals. The lower courts did not find this wording gave rise to a positive right of the Mi'kmaq to bring the products of their hunting, fishing and gathering to a truckhouse to trade. The majority of the Supreme Court found that it was a positive right and, on this, Binnie J. said:

> 9 The Court of Appeal took a strict approach to the use of extrinsic evidence when interpreting the Treaties of 1760-61. … I think this approach should be rejected for at least three reasons.
>
> 10 Firstly, even in a modern commercial context, extrinsic evidence is available to show that a written document does not include all of the terms of an agreement. …
>
> 11 Secondly, even in the context of a treaty document that purports to contain all of the terms, this Court has made clear in recent cases that extrinsic evidence of the historical and cultural context of a treaty may be received even absent any ambiguity on the face of the treaty. MacKinnon A.C.J.O. laid down the principle in *Taylor and Williams, supra*, at p. 236:
>
> . . . if there is evidence by conduct or otherwise as to how the parties understood the terms of the treaty, then such understanding and practice is of assistance in giving content to the term or terms.
>
> 12 Thirdly, where a treaty was concluded verbally and afterwards written up by representatives of the Crown, it would be unconscionable for the Crown to ignore the oral terms while relying on the written terms…
>
> [Binnie J. then discusses how past cases have taken a flexible approach in proving treaty rights and distanced themselves from a 'strict' rule of treaty interpretation.]
>
> 14 "Generous" rules of interpretation should not be confused with a vague sense of after-the-fact largesse. The special rules are dictated by the special difficulties of ascertaining what in fact was agreed to. The Indian parties did not, for all practical purposes, have the opportunity to create their own written record of the negotiations. Certain assumptions are therefore made about the Crown's approach to treaty making (honourable) which the Court acts upon in its approach to treaty interpretation (flexible) as to the existence of a treaty (*Sioui, supra*, at p. 1049), the completeness of any written record (the use, e.g., of context and implied terms to make honourable sense of the treaty arrangement: *Simon*

> *v. The Queen*, … and *R. v. Sundown*…), and the interpretation of treaty terms once found to exist (*Badger*). The bottom line is the Court's obligation is to "choose from among the various possible interpretations of the common intention [at the time the treaty was made] the one which best reconciles" the Mi'kmaq interests and those of the British Crown…

Considering all the evidence and context, Binnie J. found the written provision in the treaty to be incomplete and found a Mi'kmaq right to fish and hunt for a moderate livelihood:

> 35 In my view, all of this evidence, reflected in the trial judgment, demonstrates the inadequacy and incompleteness of the written memorial of the treaty terms by selectively isolating the restrictive trade covenant. Indeed, the truckhouse system offered such advantageous terms that it hardly seems likely that Mi'kmaq traders had to be compelled to buy at lower prices and sell at higher prices. At a later date, they objected when truckhouses were abandoned. The trade clause would not have advanced British objectives (peaceful relations with a self-sufficient Mi'kmaq people) or Mi'kmaq objectives (access to the European "necessaries" on which they had come to rely) unless the Mi'kmaq were assured at the same time of continuing access, implicitly or explicitly, to wildlife to trade. This was confirmed by the expert historian called by the Crown, as set out below.
>
> …
>
> 52 I do not think an interpretation of events that turns a positive Mi'kmaq trade demand into a negative Mi'kmaq covenant is consistent with the honour and integrity of the Crown. Nor is it consistent to conclude that the Lieutenant Governor, seeking in good faith to address the trade demands of the Mi'kmaq, accepted the Mi'kmaq suggestion of a trading facility while denying any treaty protection to Mi'kmaq access to the things that were to be traded, even though these things were identified and priced in the treaty negotiations. This was not a commercial contract. The trade arrangement must be interpreted in a manner which gives meaning and substance to the promises made by the Crown. In my view, with respect, the interpretation adopted by the courts below left the Mi'kmaq with an empty shell of a treaty promise.

He did find, however, there to be some internal limits on the treaty right:

> 58 The recorded note of February 11, 1760 was that "there might be a Truckhouse established, for the furnishing them with necessaries" (emphasis added). What is contemplated therefore is not a right to trade generally for economic gain, but rather a right to trade for necessaries. The treaty right is a regulated right and can be contained by regulation within its proper limits.
>
> 59 The concept of "necessaries" is today equivalent to the concept of what Lambert J.A., in *R. v. Van der Peet* (1993), 1993 CanLII 4519 (BC CA), 80 B.C.L.R. (2d) 75, at p. 126, described as a "moderate livelihood". Bare subsistence has thankfully receded over the last couple of centuries as an appropriate standard of life for aboriginals and non-aboriginals alike. A moderate livelihood includes such basics as "food, clothing and housing, supplemented by a few amenities", but not the accumulation of wealth (Gladstone, supra, at para. 165). It addresses day-to-day needs. This was the common intention in 1760. It is fair that it be given this interpretation today.
>
> …
>
> 61 Catch limits that could reasonably be expected to produce a moderate livelihood for individual Mi'kmaq families at present-day standards can be established by regulation and enforced without violating the treaty right. In that case, the regulations would accommodate the treaty right. Such regulations would not constitute an infringement that would have to be justified under the Badger standard.

Given these findings, Donald Marshall Jr.'s charges for fishing eels without a licence out of season were found to be an infringement of his treaty right. The Crown had not tried to justify the infringement and so the majority acquitted Marshall of the charges. The Court did note that the Crown could regulate aspects of the treaty right, subject to justification. In a decision rejecting the request for a rehearing by the West Nova Fishermen's Coalition (*R. v. Marshall*, 1999 CanLII 666 (SCC), [1999] 3 SCR 533 or "*Marshall 2*"), the Court emphasized the case law on the Crown powers to justify infringement of treaty rights, as well as gave additional guidance on the analysis to taken in future cases involving the right to fish and hunt for a moderate livelihood (discuss further below).

Treaties between Indigenous peoples and the Crown raise issues of how Indigenous peoples legal perspectives should inform the court's interpretation. The following case consider Anishinaabe legal perspectives in an 1850 treaty promising annuities to communities on the north shores of Lake Huron and Lake Superior in return for their engagement with the Crown.

2.7.1 Ontario (Attorney General) v. Restoule, 2024 SCC 27

> The judgment of the Court was delivered by Jamal J. —
>
> I. Introduction
>
> [1] These appeals test the Crown's commitment to reconciliation with the Anishinaabe of the upper Great Lakes after the Crown has dishonourably breached its sacred promises to them under the Robinson Treaties for almost 150 years.
>
> [2] The Robinson Treaties of 1850 comprise the Robinson-Huron Treaty and the Robinson-Superior Treaty. Under these treaties, the Anishinaabe of the northern shores of Lake Huron and Lake Superior ceded their vast territories in exchange for, among other things, an annual payment in perpetuity. The annuities were to be increased over time under certain circumstances. However, for almost 150 years, the annuities have been frozen at a shocking $4 per person, after the first and only increase was made in 1875. Today, in what can only be described as a mockery of the Crown's treaty promise to the Anishinaabe of the upper Great Lakes, the annuities are distributed to individual treaty beneficiaries by giving them $4 each.
>
> [3] This is the second time that issues relating to the annuity payments under the pre-Confederation Robinson Treaties have come before this Court. The last time, shortly after Confederation, involved an exercise of finger-pointing by Canada and the provinces as to who had to pay the annuities (*Province of Ontario v. Dominion of Canada* (1895), 1895 CanLII 112 (SCC), 25 S.C.R. 434, aff'd *Attorney-General for the Dominion of Canada v. Attorney-General for Ontario*, 1896 CanLII 225 (UK JCPC), [1897] A.C. 199 (J.C.P.C.) ("In re Indian Claims")). In the more than 125 years since then, Canada and Ontario have shown a persistent pattern of indifference to the Crown's treaty obligations. Belatedly, before this Court, neither Canada nor Ontario disputes that they are in longstanding breach of the annuity promises under the Robinson Treaties. Although the Anishinaabe have upheld their end of the treaty bargain, the Crown has failed to do the same. Remedying this failure and restoring the honour of the Crown requires returning to the foundations of the treaty relationship between the Anishinaabe and the Crown.
>
> [4] The Robinson Treaties built on a close relationship between the British and the Anishinaabe of the upper Great Lakes that existed long before 1850. That relationship was guided by the Covenant Chain alliance, dating back to the 17th century, which symbolized the close connection between the British Crown and Indigenous peoples, including the Anishinaabe. The British and the Anishinaabe maintained this connection in part through annual gift-giving around sacred "council fires" as expressions of mutual generosity and goodwill (see H. Bohaker, Doodem and Council Fire: Anishinaabe Governance through Alliance (2020), at pp. xxvi and 17-18). As European settlement increased, the Crown assured the Anishinaabe that their autonomy and title to land would be protected.

[5] By the mid-1800s, however, that assurance was jeopardized as the Crown began unilaterally granting mining licences to settlers along the northern shores of Lake Huron and Lake Superior. The Anishinaabe demanded a treaty to provide them with compensation for the use of their traditional unceded territories. In September 1850, after significant negotiations between the Anishinaabe and the Crown's representative, William Benjamin Robinson, the Huron and Superior Anishinaabe entered into land cession treaties with the Crown around a council fire at Bawaating or Sault Ste. Marie.

[6] The two treaties are substantially the same, each promising a lump-sum payment of £2,000 in addition to an annual payment of £500 under the Robinson-Superior Treaty and £600 under the Robinson-Huron Treaty. These promises are accompanied by a clause in each treaty that provides for the augmentation of the annuities under certain circumstances ("Augmentation Clause"). The interpretation of that clause and the remedies for its breach are at the heart of these appeals…

[9] Ontario's appeals before this Court raise questions about the standard of review for historic treaty interpretation, the proper interpretation of the Augmentation Clause, the nature and content of the Crown's obligation to give effect to that clause and the appropriate remedy for a breach of that obligation, as well as limitations issues. The cross-appeals by the Huron and Superior plaintiffs ask this Court to reconsider whether the Crown has fiduciary duties under the Robinson Treaties.

[10] In what follows, I conclude that although a trial judge's findings of historical fact attract deference, the interpretation of historic Crown-Indigenous treaties is reviewable for correctness. Correctness review is mandated for treaty interpretation because of the precedential and constitutionally protected nature of treaty rights and because treaties engage the honour of the Crown. Applying this standard of review, along with the treaty interpretation principles articulated by this Court, the Crown has a duty to consider, from time to time, whether it can increase the annuities without incurring loss. If the Crown can increase the annuities without incurring loss, it must exercise its discretion and decide whether to increase the annuities and, if so, by how much. This discretion is not unfettered; it is to be exercised liberally, justly, and in accordance with the honour of the Crown. The frequency with which the Crown must consider whether it can increase the annuities must also be consistent with the honour of the Crown. Although the Augmentation Clause is not in itself a promise to pay the Anishinaabe a certain sum of money, no party doubts that the Crown was able to increase the annuities beyond $4 per person without incurring loss, and that it should have exercised its discretion to do so. Thus, in my view, the Crown must increase the annuity under the Robinson Treaties beyond $4 per person retrospectively, from 1875 to the present. It would be patently dishonourable not to do so. I further conclude, as both courts below did, that the plaintiffs' breach of treaty claims are not statute-barred by Ontario's limitations legislation. Finally, although no specific fiduciary duties apply in respect of the Augmentation Clause, the honour of the Crown requires the Crown to diligently fulfill this promise. The Crown's ongoing breach of its augmentation promise, in the circumstances, is also a breach of the treaties themselves.

[11] For almost a century and a half, the Anishinaabe have been left with an empty shell of a treaty promise. In this context, a declaration setting out the rights and obligations of the treaty parties, including the Crown's obligations under the Augmentation Clause, is undoubtedly a helpful remedy. But given the longstanding and egregious nature of the Crown's breach, a declaration alone will not help repair the treaty relationship or restore the Crown's honour. As I have indicated, the Crown must exercise its discretion and increase the annuities with respect to the past. The Crown has reached a negotiated settlement concerning past breaches with the Huron plaintiffs, but not with the Superior plaintiffs. With a view to respecting the nature of the treaty promise, repairing the treaty relationship, restoring the honour of the Crown, and advancing reconciliation, I would also direct the Crown to engage in time-bound and honourable negotiation with the Superior plaintiffs about compensation for past breaches of the Augmentation Clause. If the Crown and the Superior plaintiffs cannot arrive at a negotiated settlement, the Crown will be required, within six months of the release of these reasons, to exercise its discretion and determine an amount to compensate the Superior plaintiffs for past breaches.

[12] Given this direction, Stage Three, if required, must be modified in accordance with these reasons and would function as a review by the courts of the Crown's process in determining the amount of compensation, and of the amount determined, both of which must be just and honourable. If the court finds that the amount determined by the Crown is not honourable, it may require the Crown to redetermine the amount or set the amount to be paid by the Crown, lest the Crown continue to undermine the very object and purpose of the treaty promise.

[13] At the end of the oral submissions before this Court, Ontario's counsel stated: ". . . I accept I am facing [a] 150 year history where the Crown in the broad sense has failed to engage on this, but we are here and we are listening and you are going to tell us how to approach this" (transcript, day 2, at p. 109). In the reasons that follow, it should be clear that Ontario and Canada must act now to respect their treaty promises to the Anishinaabe, and to help restore the honour of the Crown and the nation-to-nation alliance that the treaties represent. Doing so will require each party, but especially the Crown, to recall the purposes behind the treaty promises. The Robinson Treaties are not merely transactional instruments about the exchange of money for a tract of land. They are living agreements embodying a relationship nurtured over many years before 1850 and requiring ongoing renewal into the future. It is time for the parties to return to the council fire and rekindle the perpetual relationship that the Robinson Treaties envision. Nothing less will demonstrate the Crown's commitment to reconciliation.

II. Facts

[14] The essential historical facts are not materially in dispute before this Court. They were helpfully summarized in the reasons of the Court of Appeal, from which the following summary is drawn. Understanding almost 300 years of evolution in the relevant Crown-Indigenous relationship is a daunting task, but a necessary one. The historical setting provides valuable context for understanding the Robinson Treaties and what the honour of the Crown requires in their implementation.

A. The Anishinaabe of the Upper Great Lakes

[15] The Anishinaabe of the upper Great Lakes are members of several First Nations who historically inhabited and continue to inhabit the northern shores of Lake Huron and Lake Superior. The Anishinaabe were organized in bands, each occupying and harvesting discrete territories considered as communal property, and each speaking dialects of their Indigenous language, Anishinaabemowin.

[16] The lands subject to the Robinson Treaties exceed 100,000 square kilometres, including the current communities of Thunder Bay, North Bay, Sault Ste. Marie, and Sudbury. At the time the treaties were signed in 1850, there were 1,422 individual beneficiaries of the Robinson-Huron Treaty and 1,240 beneficiaries of the Robinson-Superior Treaty. Although the number of current beneficiaries has yet to be determined definitively, evidence at trial suggested that in September 2017 there were 29,926 beneficiaries of the Robinson-Huron Treaty and 13,546 beneficiaries of the Robinson-Superior Treaty, living both on- and off-reserve.

B. The Anishinaabe's System of Law and Governance

[17] The Anishinaabe of the upper Great Lakes have a longstanding system of law and governance that informed, and continues to inform, their perspectives on the Robinson Treaties. Two key organizing principles of Anishinaabe law and governance are pimaatiziwin, the principle that everything is alive and sacred, and gizhewaadiziwin, the way of the Creator, which encompasses sacred laws of creation. When the treaties were signed, decision making in Anishinaabe society was deliberative and consensus-based. Anishinaabe Ogimaa (Chiefs or leaders) worked to achieve agreement among their people and were expected to provide generously for their communities. Ogimaa would host "council fires" where community decisions and agreements were made.

[18] The Anishinaabe's system of governance and their relationship with the Crown have always been based on the values

of respect, responsibility, reciprocity, and renewal. The Anishinaabe sought respect for their jurisdiction and their authority to conclude agreements to share their territory. They acted with a sense of responsibility to ensure their people could continue to depend on the land for sustenance, shelter, medicines, and spiritual well-being. Reciprocity, essential to the formation of alliances, meant that a gift would attract a reciprocal gift of commensurate value, based on the idea of mutual interdependence. This value reflects the notion that people must rely on one another to survive, not simply as an economic necessity, but also as a moral imperative. Renewal invoked the idea that relationships, such as the treaty relationship with the Crown, are ongoing and must be renewed continually.

C. The Historical Context of Anishinaabe-Crown Relations

(1) The Covenant Chain Alliance

[19] At the end of the Seven Years' War (1756-1763) between the British and the French, the British sought to secure the neutrality of various Indigenous nations, including the Anishinaabe of the upper Great Lakes, who had fought alongside the French. They did so by extending to them an alliance, known as the Covenant Chain, which dated back to the early 17th century and was a symbol of the close connection between British settlers and Indigenous peoples. The alliance was originally between the British and the Haudenosaunee Confederacy, and was later extended to others, including the Anishinaabe of the upper Great Lakes.

[20] The Covenant Chain alliance was symbolized by a ship tied to a tree with an iron chain to signal the interdependence of the British settlers and Indigenous nations. As the trial judge noted, "[t]he metaphor associated with the chain was that if one party was in need, they only had to 'tug on the rope' to give the signal that something was amiss, and 'all would be restored'" (2018 ONSC 7701, 431 D.L.R. (4th) 32 ("Stage One reasons"), at para. 65 (footnote omitted)). The trial judge described the Covenant Chain alliance as exemplifying the kind of "cross-cultural merging of diplomatic protocols and legal orders" that was common in the decades leading up to the signing of the Robinson Treaties (para. 89).

(2) The Royal Proclamation, 1763

[21] In response to an uprising against the British by various Indigenous nations, including Anishinaabe warriors, the British Crown issued the Royal Proclamation, 1763 (G.B.), 3 Geo. 3 (reproduced in R.S.C. 1985, App. II, No. 1). This became a defining moment in Canadian history and provided the impetus for the Robinson Treaties. In the Proclamation, the Crown unilaterally asserted sovereignty over what is now Canada, but also affirmed pre-existing Aboriginal title and ownership of unpurchased lands. The Proclamation created special rules for the purchase and sale of "Lands of the Indians" to prevent fraud and abuse, prohibited private parties from purchasing such lands, and stipulated that they could only be surrendered to the Crown.

(3) The Council at Niagara (1764)

[22] The year after the Proclamation, at a Council at Niagara attended by over 1,700 Indigenous people, including Anishinaabe leaders, the Crown again assured the Indigenous attendees of their autonomy and stated that the Crown would maintain and protect their title to their lands. Gifts and wampum belts were exchanged, including the Great Covenant Chain Wampum and the 24 Nation Wampum. The trial judge described the Great Covenant Chain Wampum as an embodiment of the "merged symbols of diplomacy" between the two groups, visually represented on the belt by two figures holding hands as part of two links in a chain (Stage One reasons, at paras. 90 and 412).

(4) The War of 1812

[23] As part of the Covenant Chain alliance, Anishinaabe warriors fought alongside the British against the Americans and their Indigenous allies in the War of 1812 (1812-1815). One such warrior was Chief Shingwaukonse, who would play a key role at the Robinson Treaty Council. The military alliance between the Crown and the Anishinaabe was an important part of their ongoing relationship.

…

V. Analysis

A. The Interpretation of Historic Aboriginal Treaties

[67] I begin by reviewing the principles for interpreting historic Aboriginal treaties, which were correctly identified by the trial judge and the Court of Appeal. I will focus on four relevant features figuring prominently in the discussion of the standard of review that follows in the next section: the nature of treaties as sui generis agreements intended to promote reconciliation; the importance of interpreting treaty rights in accordance with the honour of the Crown; the differences between historic and modern treaties; and finally, the particular principles governing the interpretation of historic treaties and the two-step approach to interpretation set out in this Court's decision in *R. v. Marshall*, 1999 CanLII 665 (SCC), [1999] 3 S.C.R. 456.

(1) Treaties Are Sui Generis Agreements Intended To Advance Reconciliation

[68] Treaties have long been an important means of reconciling the interests of Aboriginal and non-Aboriginal peoples in Canada. Reconciliation is aimed at building a "mutually respectful long-term relationship" (*Beckman v. Little Salmon/Carmacks First Nation*, 2010 SCC 53, [2010] 3 S.C.R. 103, at para. 10; *R. v. Desautel*, 2021 SCC 17, [2021] 1 S.C.R. 533, at para. 30). It has been described as both "a first principle of Aboriginal law" (*Mikisew Cree First Nation v. Canada (Governor General in Council)*, 2018 SCC 40, [2018] 2 S.C.R. 765 ("*Mikisew Cree 2018*"), at para. 22) and "the grand purpose of s. 35 of the *Constitution Act, 1982*" (*Little Salmon*, at para. 10).

[69] As this Court explained in *Little Salmon*, at para. 8, per Binnie J.

> Historically, treaties were the means by which the Crown sought to reconcile the Aboriginal inhabitants of what is now Canada to the assertion of European sovereignty over the territories traditionally occupied by First Nations. The objective was not only to build alliances with First Nations but to keep the peace and to open up the major part of those territories to colonization and settlement.

[70] The Crown's assertion of sovereignty over Aboriginal societies gave rise to a distinctive or sui generis legal relationship between the Crown and Aboriginal peoples (*Desautel*, at para. 25, citing R. v. Badger, 1996 CanLII 236 (SCC), [1996] 1 S.C.R. 771, at para. 78). That distinctive legal relationship is reflected in treaties, which represent an exchange of "solemn promises" and are unique or sui generis agreements governed by special rules of interpretation (*Simon v. The Queen*, 1985 CanLII 11 (SCC), [1985] 2 S.C.R. 387, at pp. 404 and 410; *R. v. Sioui*, 1990 CanLII 103 (SCC), [1990] 1 S.C.R. 1025, at pp. 1038 and 1043; *Badger*, at para. 41). Treaties are sui generis because "they are the product of the special relationship between the Crown and Aboriginal peoples that is aimed at achieving reconciliation" (P. W. Hogg and L. Dougan, "The Honour of the Crown: Reshaping Canada's Constitutional Law" (2016), 72 S.C.L.R. (2d) 291, at p. 311).

(2) Treaty Rights Must Be Interpreted in Accordance With the Honour of the Crown

[71] This Court has also affirmed that in order to promote reconciliation, treaty rights must be interpreted in accordance with the honour of the Crown, "the principle that servants of the Crown must conduct themselves with honour when acting on behalf of the sovereign" (*Manitoba Metis Federation Inc. v. Canada (Attorney General)*, 2013 SCC 14, [2013] 1 S.C.R. 623, at para. 65). The honour of the Crown imposes an "obligation of honourable dealing" with Aboriginal peoples (*Little Salmon*, at para. 42).

[72] The honour of the Crown is an ancient principle of common law dating back to pre-Norman England (Hogg and Dougan, at pp. 293-94, citing D. M. Arnot, "The Honour of the Crown" (1996), 60 Sask. L. Rev. 339). It was reflected in the Crown's promise in the Royal Proclamation, 1763 that it would protect the Aboriginal peoples inhabiting the British territories of North America from exploitation by non-Aboriginal peoples (*Little Salmon*, at para. 42). Because of its connection with s. 35(1) of the *Constitution Act, 1982*, the honour of the Crown has been called "a constitutional principle" and is now "an important anchor in this area of the law" (Little Salmon, at para. 42; see also *Manitoba Metis*, at para. 69; *Mikisew Cree 2018*, at para. 24).

[73] The honour of the Crown is "always at stake" in the Crown's dealings with Aboriginal peoples (*Badger*, at para. 41; *Haida Nation v. British Columbia (Minister of Forests)*, 2004 SCC 73, [2004] 3 S.C.R. 511, at para. 16; *Mikisew Cree 2018*, at para. 23). The making, interpretation, and implementation of treaties must be approached in a way that maintains the honour and integrity of the Crown (*Badger*, at para. 41; *Haida Nation*, at paras. 17 and 19; *Manitoba Metis*, at para. 73).

[74] I will return to the honour of the Crown later when discussing the Crown's obligation to implement the Augmentation Clause of the Robinson Treaties.

(3) Differences Between Historic and Modern Treaties

[75] Although all treaty rights must be interpreted in accordance with the honour of the Crown (*Little Salmon*, at para. 71; Hogg and Dougan, at pp. 314-16), there are important differences between historic and modern treaties. Historic treaties were negotiated between the Crown and Aboriginal peoples before 1921, while modern treaties were negotiated after 1973, in the wake of this Court's decision in *Calder v. Attorney-General of British Columbia*, 1973 CanLII 4 (SCC), [1973] S.C.R. 313. *Calder* recognized Aboriginal rights with respect to land and led the Government of Canada to negotiate modern treaties in those parts of Canada where there were no treaties (see P. W. Hogg and W. K. Wright, Constitutional Law of Canada (5th ed. Supp.), at § 28:18; J. Jai, "Bargains Made in Bad Times: How Principles from Modern Treaties Can Reinvigorate Historic Treaties", in J. Borrows and M. Coyle, eds., The Right Relationship: Reimagining the Implementation of Historical Treaties (2017), 105, at p. 105; J. Jai, "The Interpretation of Modern Treaties and the Honour of the Crown: Why Modern Treaties Deserve Judicial Deference" (2010), 26 N.J.C.L. 25, at pp. 27-28; D. Newman, "Contractual and Covenantal Conceptions of Modern Treaty Interpretation" (2011), 54 S.C.L.R. (2d) 475, at pp. 475-77).

[76] The difference between historic and modern treaties is not primarily about the age of the document. As Binnie J. remarked in Little Salmon, at para. 54, "[t]oday's modern treaty will become tomorrow's historic treaty. The distinction lies in the relative precision and sophistication of the modern document." Historic and modern treaties were each negotiated under markedly different circumstances and often resulted in very different treaty texts. Historic treaties were often relatively brief, negotiated quickly, and intended to record oral promises made by the Crown to Indigenous signatories, who usually required translation and did not have the benefit of legal advice (*Badger*, at paras. 52-53; *Quebec (Attorney General) v. Moses*, 2010 SCC 17, [2010] 1 S.C.R. 557, at para. 7; Jai (2010), at p. 27). Such treaties were "typically expressed in lofty terms of high generality and were often ambiguous" (*Little Salmon*, at para. 12). As a result, "courts were obliged to resort to general principles (such as the honour of the Crown) to fill the gaps and achieve a fair outcome" (para. 12).

[77] Modern treaties, by contrast, are usually the "product of lengthy negotiations between well-resourced and sophisticated parties" (*Little Salmon*, at para. 9; *First Nation of Nacho Nyak Dun v. Yukon*, 2017 SCC 58, [2017] 2 S.C.R. 576, at para. 36). They often consist of minutely detailed instruments, negotiated over the course of years, with the Indigenous signatories represented by lawyers and other experts (*First Nation of Nacho Nyak Dun*, at para. 36; Moses, at para. 7; Hogg and Wright, at § 28:38). As a result, because "[c]ompared to their historic counterparts, modern treaties are detailed documents[,] deference to their text is warranted" (*First Nation of Nacho Nyak Dun*, at para. 36).

(4) Principles Governing the Interpretation of Historic Treaties

[78] The legal principles governing the interpretation of historic treaties, such as the Robinson Treaties of 1850, are well established. The words in a treaty "must not be interpreted in their strict technical sense nor subjected to rigid modern rules of [interpretation]" (*Badger*, at para. 52, cited in *Marshall*, at para. 14). At the same time, as Binnie J. cautioned in Marshall, "'[g]enerous' rules of interpretation should not be confused with a vague sense of after-the-fact largesse" (para. 14):

> The special rules are dictated by the special difficulties of ascertaining what in fact was agreed to. The Indian parties did not, for all practical purposes, have the opportunity to create their own written record of the negotiations. Certain assumptions are therefore made about the Crown's approach to treaty making (honourable) which the Court acts upon in its approach to treaty interpretation (flexible) . . . . The bottom line is the Court's obligation is to "choose from among the various possible interpretations of the common intention [at the time the treaty was made] the one which best reconciles" the [Aboriginal] interests and those of the British Crown (*Sioui*, per Lamer J., at p. 1069 (emphasis added)). [para. 14]

[79] In *Marshall*, McLachlin J., as she then was, dissenting on other grounds, summarized the principles for interpreting treaties as including the following (at para. 78):

> 1. Aboriginal treaties constitute a unique type of agreement and attract special principles of interpretation: *R. v. Sundown*, 1999 CanLII 673 (SCC), [1999] 1 S.C.R. 393, at para. 24; *R. v. Badger*, 1996 CanLII 236 (SCC), [1996] 1 S.C.R. 771, at para. 78; *R. v. Sioui*, 1990 CanLII 103 (SCC), [1990] 1 S.C.R. 1025, at p. 1043; *Simon v. The Queen*, 1985 CanLII 11 (SCC), [1985] 2 S.C.R. 387, at p. 404. See also: J. [Sákéj] Youngblood Henderson, "Interpreting Sui Generis Treaties" (1997), 36 Alta. L. Rev. 46; L. I. Rotman, "Defining Parameters: Aboriginal Rights, Treaty Rights, and the Sparrow Justificatory Test" (1997), 36 Alta. L. Rev. 149.
>
> 2. Treaties should be liberally construed and ambiguities or doubtful expressions should be resolved in favour of the [A]boriginal signatories: *Simon*, *supra*, at p. 402; *Sioui*, supra, at p. 1035; *Badger*, *supra*, at para. 52.
>
> 3. The goal of treaty interpretation is to choose from among the various possible interpretations of common intention the one which best reconciles the interests of both parties at the time the treaty was signed: *Sioui*, supra, at pp. 1068-69.
>
> 4. In searching for the common intention of the parties, the integrity and honour of the Crown is presumed: *Badger*, supra, at para. 41.
>
> 5. In determining the signatories' respective understanding and intentions, the court must be sensitive to the unique cultural and linguistic differences between the parties: *Badger*, supra, at paras. 52-54; *R. v. Horseman*, 1990 CanLII 96 (SCC), [1990] 1 S.C.R. 901, at p. 907.
>
> 6. The words of the treaty must be given the sense which they would naturally have held for the parties at the time: *Badger*, *supra*, at paras. 53 et seq.; *Nowegijick v. The Queen*, 1983 CanLII 18 (SCC), [1983] 1 S.C.R. 29, at p. 36.
>
> 7. A technical or contractual interpretation of treaty wording should be avoided: *Badger*, *supra*; *Horseman*, *supra*; *Nowegijick*, *supra*.
>
> 8. While construing the language generously, courts cannot alter the terms of the treaty by exceeding what "is possible on the language" or realistic: *Badger*, *supra*, at para. 76; *Sioui*, *supra*, at p. 1069; *Horseman*, *supra*, at p. 908.

> 9. Treaty rights of [A]boriginal peoples must not be interpreted in a static or rigid way. They are not frozen at the date of signature. The interpreting court must update treaty rights to provide for their modern exercise. This involves determining what modern practices are reasonably incidental to the core treaty right in its modern context: *Sundown*, *supra*, at para. 32; *Simon*, *supra*, at p. 402.

[80] Justice McLachlin noted that because a court must consider both the words of a treaty and the historical and cultural context, it is useful to approach treaty interpretation in two steps. At the first step, the court focuses on the words of the treaty clause at issue and identifies the range of possible interpretations. At the second step, the court considers those interpretations against the treaty's historical and cultural backdrop. As McLachlin J. explained (at paras. 82-83):

> First, the words of the treaty clause at issue should be examined to determine their facial meaning, in so far as this can be ascertained, noting any patent ambiguities and misunderstandings that may have arisen from linguistic and cultural differences. This exercise will lead to one or more possible interpretations of the clause. As noted in Badger, supra, at para. 76, "the scope of treaty rights will be determined by their wording". The objective at this stage is to develop a preliminary, but not necessarily determinative, framework for the historical context inquiry, taking into account the need to avoid an unduly restrictive interpretation and the need to give effect to the principles of interpretation.
>
> At the second step, the meaning or different meanings which have arisen from the wording of the treaty right must be considered against the treaty's historical and cultural backdrop. A consideration of the historical background may suggest latent ambiguities or alternative interpretations not detected at first reading. Faced with a possible range of interpretations, courts must rely on the historical context to determine which comes closest to reflecting the parties' common intention. This determination requires choosing "from among the various possible interpretations of the common intention the one which best reconciles" the parties' interests: Sioui, supra, at p. 1069. Finally, if the court identifies a particular right which was intended to pass from generation to generation, the historical context may assist the court in determining the modern counterpart of that right: Simon, supra, at pp. 402-3; Sundown, supra, at paras. 30 and 33.

[81] Justice McLachlin's legal framework in *Marshall* reflects the current state of the law. It has been cited approvingly by this Court (*R. v. Morris*, 2006 SCC 59, [2006] 2 S.C.R. 915, at para. 18; *Little Salmon*, at para. 105, per Deschamps J., concurring) and by appeal courts across Canada (*Beattie v. Canada*, 2002 FCA 105, 288 N.R. 254, at para. 9; *Horseman v. Canada*, 2016 FCA 238, at para. 8 (CanLII); *Canada v. Jim Shot Both Sides*, 2022 FCA 20, 468 D.L.R. (4th) 98, at para. 170, rev'd in part 2024 SCC 12; *West Moberly First Nations v. British Columbia*, 2020 BCCA 138, [2021] 3 W.W.R. 561, at paras. 105-6, 149 and 277; *Chingee v. British Columbia* (Attorney General), 2005 BCCA 446, 261 D.L.R. (4th) 54, at para. 15; *R. v. Morris*, 2004 BCCA 121, 237 D.L.R. (4th) 693, at para. 39, rev'd 2006 SCC 59, [2006] 2 S.C.R. 915; *Goodswimmer v. Canada (Attorney General)*, 2017 ABCA 365, 418 D.L.R. (4th) 157, at para. 50; *Lac La Ronge Indian Band v. Canada*, 2001 SKCA 109, 206 D.L.R. (4th) 638, at paras. 39 and 53; *Newfoundland and Labrador v. Nunatsiavut Government*, 2022 NLCA 19, at para. 20 (CanLII)). It was also cited and applied in the case under appeal by the trial judge (Stage One reasons, at paras. 324, 327-29 and 398-475) and the Court of Appeal for Ontario (para. 109, per Lauwers and Pardu JJ.A., and paras. 388 and 421, per Strathy C.J.O. and Brown J.A.).

[82] With these principles in mind, I now turn to the standard of appellate review for the interpretation of historic treaties. …

[104] As already noted, historic Crown-Indigenous treaties are sui generis agreements protected under s. 35(1) of the *Constitution Act, 1982*. The constitutional nature of treaty rights demands that appellate courts be given wide latitude to correct errors in their interpretation. Historic treaties "establish or reaffirm a fundamental and enduring relationship between the Crown and an [A]boriginal people" (B. Slattery, "Making Sense of Aboriginal and Treaty Rights" (2000), 79:2 Can. Bar Rev. 196, at p. 209). They are "an exchange of solemn promises between the Crown and the various Indian nations" (*Badger*, at para. 41). Since 1982, s. 35(1) of the Constitution Act, 1982 has recognized and affirmed that existing treaty rights have constitutional status and attract related constitutional protections. …

[106] All the courts below recognized the constitutional character of treaty interpretation. The trial judge stated that s. 35(1) of the *Constitution Act, 1982* "informs the exercise of treaty interpretation", and noted that "[b]ecause treaty promises are analogous to constitutional provisions, they must be interpreted in a generous and liberal manner" (Stage One reasons, at para. 336). She acknowledged that the Robinson Treaties enumerate rights "protected by s. 35 of the Constitution Act, 1982" (para. 463). She also recognized that "[t]reaties are part of the constitutional fabric of this country" (Stage Two reasons, at para. 151), a description later echoed by Hourigan J.A. in the Court of Appeal (C.A. reasons, at para. 634). Likewise, Strathy C.J.O. and Brown J.A. highlighted that, unlike ordinary contracts, treaties have a "broader public, political role as foundational documents that establish the bases of relations between Aboriginal peoples and the larger Canadian community" (para. 407, citing Newman, at p. 486).

[107] Relatedly, as noted above, treaties are nation-to-nation agreements that must be interpreted in accordance with the constitutional principle of the honour of the Crown. This transforms the interpretive exercise from a simple determination of the rights and obligations between private parties into an exercise of constitutional interpretation. The goal of this exercise of constitutional interpretation is ultimately to advance a matter of utmost public interest and concern — the process of reconciliation itself.

[108] In this case, for example, this Court has to interpret the scope and content of constitutionally protected rights and obligations that embody the very conditions on which pre-existing Indigenous peoples agreed to share their most precious gift — the land itself — with newcomers. An appellate court must be able to correct errors in the interpretation of those rights when necessary, for Indigenous and non-Indigenous Canadians alike.

[Applying these principles the Court found that Crown "has a duty to consider, from time to time, whether it can increase the annuities without incurring loss. If the Crown can increase the annuities beyond $4 to each individual, it must exercise its discretion and decide whether to do so and, if so, by how much. This discretion is not unfettered; it must be exercised liberally, justly, and in accordance with the honour of the Crown. The frequency with which the Crown must consider whether it can increase the annuities must also be consistent with the honour of the Crown. …[G]iven the longstanding and egregious nature of the Crown's breach of the Augmentation Clause, the Crown must exercise its discretion and increase the annuities with respect to the past. Having already reached a negotiated settlement concerning past breaches with the Huron plaintiffs, the Crown is directed to engage in time-bound and honourable negotiation with the Superior plaintiffs about compensation for past breaches. Finally, although no specific fiduciary duties apply in respect of the augmentation promise, the honour of the Crown requires the Crown to diligently fulfill this promise." Case in *Brief Restoule v. Canada*: https://www.scc-csc.ca/judgments-jugements/cb/2024/40024/

In coming to this conclusion the Court wrote:]

[262] I cannot accept Ontario's submission that a purely procedural duty — by which the Crown is simply required to "consider" or "turn its mind" to discretionary increases to the annuities from time to time — would maintain the honour of the Crown or effect reconciliation between the parties. Since 1875, when the first and only increase to the annuities was made, the Crown has failed to consider whether it can increase the annuities without incurring loss and, if so, to exercise its discretion to determine whether and by how much to increase them. For well over a century, the Crown has shown itself to be a patently unreliable and untrustworthy treaty partner in relation to the augmentation promise. It has lost the moral authority to simply say "trust us". …

[278] In my view, a declaration is an appropriate remedy in that it will offer a definitive statement of the rights and obligations under the Augmentation Clause to guide the parties in negotiating compensation for past breaches and to encourage the renewal of the treaty relationship moving forward …

(4) A Declaration Is Appropriate, but Insufficient

[283] While a declaration is appropriate, I am of the view that a bare declaration, without more, is insufficient given the egregious and longstanding nature of the breaches at issue in these appeals. In these circumstances, a simple declaration would not adequately repair the treaty relationship or restore the honour of the Crown. It would not sufficiently vindicate the treaty rights or meaningfully advance reconciliation.

(5) Further Direction Is Needed

…

[301] …At this stage, a judicially calculated damages award would remove from the treaty implementation any exercise of Crown discretion and engagement between treaty partners — the very essence of the treaty promise respecting increases beyond $4. It would also fail to effectively renew the treaty relationship and restore the honour of the Crown.

[302] In my view, then, a court-calculated compensation award for past breaches in relation to the Superior plaintiffs is not yet an appropriate recourse. Instead, I would direct a narrow, time-bound window for negotiation, after which the Crown is (failing a settlement) required to exercise its discretion honourably in a manner consistent with these reasons and determine an amount of compensation. Such a remedy has greater potential to fulfill the purposes of the Augmentation Clause and hold the Crown to account for its breach of the treaty to date. This limited timeline for negotiation strikes a delicate balance between ensuring the Superior plaintiffs receive compensation without extensive delay and encouraging real restoration of the treaty relationship.

[303] Although I recognize that the augmentation promise does not expressly require the parties to negotiate and agree on an annuity increase, it is undeniable that negotiation and agreement outside the courts have better potential to renew the treaty relationship, advance reconciliation, and restore the honour of the Crown. After all, historic treaties represent the "establishment of a relationship of trust and mutual assistance" between Indigenous peoples and the Crown, but the details of that relationship "must be the object of permanent negotiations, in view of fleshing out the general principles governing the relations between the two peoples" (S. Grammond, Terms of Coexistence: Indigenous Peoples and Canadian Law (2013), at p. 286).

[304] Because of the considerations discussed above, I would declare the following:

1. Under the Augmentation Clause of the Robinson Treaties, the Crown has a duty to consider, from time to time, whether it can increase the annuities without incurring loss.

2. If the Crown can increase the annuities without incurring loss, it must exercise its discretion as to whether to increase the annuities and, if so, by how much.

3. In carrying out these duties and in exercising its discretion, the Crown must act in a manner consistent with the honour of the Crown, including the duty of diligent implementation.

4. The Crown's discretion must be exercised diligently, honourably, liberally, and justly. Its discretion is not unfettered and is subject to review by the courts.

5. The Crown dishonourably breached the Robinson Treaties by failing to diligently fulfill the Augmentation Clause.

6. The Crown is obliged to determine an amount of honourable compensation to the Superior plaintiffs for amounts owed under the annuities for the period between 1875 and the present.

…

VI. Disposition

…

[311] I would allow Ontario's appeals in part, dismiss the Huron and Superior plaintiffs' cross-appeals, grant a declaration as set out in para. 304 of these reasons, and provide the directions set out in paras. 305-10. I would grant the Huron and Superior plaintiffs their costs of the appeals and cross-appeals on a solicitor-client basis.

2.8 Notes

1. While the Court has said on several occasions that the 'Aboriginal perspective', including Indigenous peoples' legal traditions, ought to inform the proof of Aboriginal rights and title, as well as the common intention of the parties to a treaty, engagement with this guidance by the Court had been pretty limited (see for example, *R. v. Marshall; R. v. Bernard,* 2005 SCC 43 at paras 161-141, where Lebel and Fish JJ critique the majority's failure to consider the Aboriginal perspective in applying the test for Aboriginal title). However, the Court's decision in *Restoule* likely represents the most serious effort by the Court todate to incorporate Indigenous law into its decision. Nigel Bankes has lauded the decision as one of the Court's "most significant treaty cases" because of its robust engagement with Anishnaabe law:

   > … the decision is based on a deeply contextual reading of the 1850 treaties, which begins pre-contact with a consideration of the Anishinaabe's system of law and governance based on the values of respect, responsibility, reciprocity, and renewal (at paras 17-18) and continues with a discussion of the Covenant Chain (at paras 19-20). These are not mere recitations. Justice Jamal uses these references throughout his judgment [in Restoule] to justify his preferred interpretation of the augmentation promise, to inform the meaning of the honour of the Crown in this particular context, to emphasize the relational rather than transactional nature of historic treaties, and, perhaps most significantly, to inform his discussion of remedies. (See N. Bankes, "Restoule: Tugging on the Rope and the Duty of Diligent Implementation of Treaty Promises" (ABlawg, August 8, 2024).)

2. In *Restoule*, while Ontario had tried to argue that the claims for breach of the annuities clause was time-barred under limitation laws, the Court found these did not apply, seeming to adopt an interpretative approach requiring clear language evidencing an intention to apply a limitation period to s. 35 rights, which it found had not to be met. In part, this may serve to mitigate the effect of strict application of limitation statutes to Indigenous claims, as discussed earlier in a note after *Shot Both Sides*.

3. *Restoule* may also address a lingering concern from *Shot Both Sides* that bare declarations may be insufficient remedy for some breaches of treaty and other constitutional rights in cases of prolonged and serious Crown misconduct. We see this in Jamal J's emphasis that that not only declarations, but "the full range of remedies", can be available to address a breach of the honour of the Crown in *Restoule*. One uncertainty remains, however, about whether this statement extends to cases where limitations period have been found to apply, such as in *Shot Both Sides*. Should it or should the available remedies to First Nations in such situations be limited to bare declarations?

3 Duty to Consult

Consultation with Indigenous peoples about the impact of government activities on their s. 35 rights was first raised in *Sparrow* as part of the justification test. Dickson C.J. and La Forest J wrote that one of the factors in determining whether limits on the right were justified is "whether the aboriginal group in question has been consulted with respect to the conservation measures being implemented."

Before *Haida* (below), if an Indigenous group sought protection for an unproven Aboriginal right or title, the group would bring an action for declaration of the right paired with a request for an interlocutory injunction. In *Haida*, the Court offered a new administrative law remedy that provided some protection for unproven rights without requiring the Indigenous group to start an action for a declaration of rights (and having to lead all the evidence that such a claim would entail). The *Haida* test provides a way for the courts to review a government decision to ensure the decision-making processes took into account the impact on potential Aboriginal right(s) without having to go through a full process to establish the right.

As you read through *Haida,* consider whether the approach offered provides an effective alternative mechanism for achieving reconciliation in cases of alleged breach of s. 35 rights.

3.1 *Haida Nation v. British Columbia (Minister of Forests)*, 2004 SCC 73 (CanLII), [2004] 3 SCR 511

I. Introduction

[1] To the west of the mainland of British Columbia lie the Queen Charlotte Islands, the traditional homeland of the Haida people. Haida Gwaii, as the inhabitants call it, consists of two large islands and a number of smaller islands. For more than 100 years, the Haida people have claimed title to all the lands of the Haida Gwaii and the waters surrounding it. That title is still in the claims process and has not yet been legally recognized.

[2] The islands of Haida Gwaii are heavily forested. Spruce, hemlock and cedar abound. The most important of these is the cedar which, since time immemorial, has played a central role in the economy and culture of the Haida people. It is from cedar that they made their ocean-going canoes, their clothing, their utensils and the totem poles that guarded their lodges. The cedar forest remains central to their life and their conception of themselves.

[3] The forests of Haida Gwaii have been logged since before the First World War. Portions of the island have been logged off. Other portions bear second-growth forest. In some areas, old-growth forests can still be found.

[4] The Province of British Columbia continues to issue licences to cut trees on Haida Gwaii to forestry companies. The modern name for these licenses are Tree Farm Licences, or T.F.L.'s. Such a licence is at the heart of this litigation. A large forestry firm, MacMillan Bloedel Limited acquired T.F.L. 39 in 1961, permitting it to harvest trees in an area designated as Block 6. In 1981, 1995 and 2000, the Minister replaced T.F.L. 39 pursuant to procedures set out in the Forest Act, R.S.B.C. 1996, c. 157. In 1999, the Minister approved a transfer of T.F.L. 39 to Weyerhaeuser Company Limited ("Weyerhaeuser"). The Haida people challenged these replacements and the transfer, which were made without their consent and, since at least 1994, over their objections. Nevertheless, T.F.L. 39 continued.

[5] In January of 2000, the Haida people launched a lawsuit objecting to the three replacement decisions and the transfer of T.F.L. 39 to Weyerhaeuser and asking that they be set aside. They argued legal encumbrance, equitable encumbrance and breach of fiduciary duty, all grounded in their assertion of Aboriginal title.

[6] This brings us to the issue before this Court. The government holds legal title to the land. Exercising that legal title, it has granted Weyerhaeuser the right to harvest the forests in Block 6 of the land. But the Haida people also claim title to the land — title which they are in the process of trying to prove — and object to the harvesting of the forests on Block 6 as proposed in T.F.L. 39. In this situation, what duty if any does the government owe the Haida people? More concretely, is the government required to consult with them about decisions to harvest the forests and to accommodate their concerns about what if any forest in Block 6 should be harvested before they have proven their title to land and their Aboriginal rights?

[7] The stakes are huge. The Haida argue that absent consultation and accommodation, they will win their title but find themselves deprived of forests that are vital to their economy and their culture. Forests take generations to mature, they point out, and old-growth forests can never be replaced. The Haida's claim to title to Haida Gwaii is strong, as found by the chambers judge. But it is also complex and will take many years to prove. In the meantime, the Haida argue, their heritage will be irretrievably despoiled.

[8] The government, in turn, argues that it has the right and responsibility to manage the forest resource for the good of all British Columbians, and that until the Haida people formally prove their claim, they have no legal right to be consulted or have their needs and interests accommodated.

…

[10] I conclude that the government has a legal duty to consult with the Haida people about the harvest of timber from Block 6, including decisions to transfer or replace Tree Farm Licences. Good faith consultation may in turn lead to an obligation to accommodate Haida concerns in the harvesting of timber, although what accommodation if any may be required cannot at this time be ascertained. Consultation must be meaningful. There is no duty to reach agreement. The duty to consult and, if appropriate, accommodate cannot be discharged by delegation to Weyerhaeuser. Nor does Weyerhaeuser owe any independent duty to consult with or accommodate the Haida people's concerns, although the possibility remains that it could become liable for assumed obligations. It follows that I would dismiss the Crown's appeal and allow the appeal of Weyerhaeuser.

…

II. Analysis

…

B. *The Source of a Duty to Consult and Accommodate*

[16] The government's duty to consult with Aboriginal peoples and accommodate their interests is grounded in the honour of the Crown. The honour of the Crown is always at stake in its dealings with Aboriginal peoples… It is not a mere incantation, but rather a core precept that finds its application in concrete practices.

[17] The historical roots of the principle of the honour of the Crown suggest that it must be understood generously in order to reflect the underlying realities from which it stems. In all its dealings with Aboriginal peoples, from the assertion of sovereignty to the resolution of claims and the implementation of treaties, the Crown must act honourably. Nothing less is required if we are to achieve "the reconciliation of the pre-existence of aboriginal societies with the sovereignty of the Crown…"

[18] The honour of the Crown gives rise to different duties in different circumstances. Where the Crown has assumed discretionary control over specific Aboriginal interests, the honour of the Crown gives rise to a fiduciary duty… The content of the fiduciary duty may vary to take into account the Crown's other, broader obligations. However, the duty's fulfilment requires that the Crown act with reference to the

Aboriginal group's best interest in exercising discretionary control over the specific Aboriginal interest at stake. As explained in *Wewaykum*, at para. 81, the term "fiduciary duty" does not connote a universal trust relationship encompassing all aspects of the relationship between the Crown and Aboriginal peoples:

> . . . "fiduciary duty" as a source of plenary Crown liability covering all aspects of the Crown-Indian band relationship . . . overshoots the mark. The fiduciary duty imposed on the Crown does not exist at large but in relation to specific Indian interests.

Here, Aboriginal rights and title have been asserted but have not been defined or proven. The Aboriginal interest in question is insufficiently specific for the honour of the Crown to mandate that the Crown act in the Aboriginal group's best interest, as a fiduciary, in exercising discretionary control over the subject of the right or title.

[19] The honour of the Crown also infuses the processes of treaty making and treaty interpretation. In making and applying treaties, the Crown must act with honour and integrity, avoiding even the appearance of "sharp dealing"…

[20] Where treaties remain to be concluded, the honour of the Crown requires negotiations leading to a just settlement of Aboriginal claims… Treaties serve to reconcile pre-existing Aboriginal sovereignty with assumed Crown sovereignty, and to define Aboriginal rights guaranteed by s. 35 of the *Constitution Act, 1982*. Section 35 represents a promise of rights recognition, and "[i]t is always assumed that the Crown intends to fulfil its promises" (*Badger*, *supra*, at para. 41). This promise is realized and sovereignty claims reconciled through the process of honourable negotiation. It is a corollary of s. 35 that the Crown act honourably in defining the rights it guarantees and in reconciling them with other rights and interests. This, in turn, implies a duty to consult and, if appropriate, accommodate.

[21] This duty to consult is recognized and discussed in the jurisprudence. In *Sparrow*, *supra*, at p. 1119, this Court affirmed a duty to consult with west-coast Salish asserting an unresolved right to fish. Dickson C.J. and La Forest J. wrote that one of the factors in determining whether limits on the right were justified is "whether the aboriginal group in question has been consulted with respect to the conservation measures being implemented".

…

[24] The Court's seminal decision in *Delgamuukw*, *supra*, at para. 168, in the context of a claim for title to land and resources, confirmed and expanded on the duty to consult, suggesting the content of the duty varied with the circumstances: from a minimum "duty to discuss important decisions" where the "breach is less serious or relatively minor"; through the "significantly deeper than mere consultation" that is required in "most cases"; to "full consent of [the] aboriginal nation" on very serious issues. These words apply as much to unresolved claims as to intrusions on settled claims.

[25] Put simply, Canada's Aboriginal peoples were here when Europeans came, and were never conquered. Many bands reconciled their claims with the sovereignty of the Crown through negotiated treaties. Others, notably in British Columbia, have yet to do so. The potential rights embedded in these claims are protected by s. 35 of the *Constitution Act, 1982*. The honour of the Crown requires that these rights be determined, recognized and respected. This, in turn, requires the Crown, acting honourably, to participate in processes of negotiation. While this process continues, the honour of the Crown may require it to consult and, where indicated, accommodate Aboriginal interests.

C. *When the Duty to Consult and Accommodate Arises*

[26] Honourable negotiation implies a duty to consult with Aboriginal claimants and conclude an honourable agreement reflecting the claimants' inherent rights. But proving rights may take time, sometimes a very long time. In the meantime, how are the interests under discussion to be treated? Underlying this question is the need to reconcile prior Aboriginal occupation of the land with the reality of Crown sovereignty. Is the Crown, under the aegis of its asserted sovereignty, entitled to use the resources at issue as it chooses, pending proof and resolution of the Aboriginal claim? Or must it adjust its conduct to reflect the as yet unresolved rights claimed by the Aboriginal claimants?

[27] The answer, once again, lies in the honour of the Crown. The Crown, acting honourably, cannot cavalierly run roughshod over Aboriginal interests where claims affecting these interests are being seriously pursued in the process of treaty negotiation and proof. It must respect these potential, but yet unproven, interests. The Crown is not rendered impotent. It may continue to manage the resource in question pending claims resolution. But, depending on the circumstances, discussed more fully below, the honour of the Crown may require it to consult with and reasonably accommodate Aboriginal interests pending resolution of the claim. To unilaterally exploit a claimed resource during the process of proving and resolving the Aboriginal claim to that resource, may be to deprive the Aboriginal claimants of some or all of the benefit of the resource. That is not honourable.

[28] The government argues that it is under no duty to consult and accommodate prior to final determination of the scope and content of the right. Prior to proof of the right, it is argued, there exists only a broad, common law "duty of fairness", based on the general rule that an administrative decision that affects the "rights, privileges or interests of an individual" triggers application of the duty of fairness… The government asserts that, beyond general administrative law obligations, a duty to consult and accommodate arises only where the government has taken on the obligation of protecting a specific Aboriginal interest or is seeking to limit an established Aboriginal interest. In the result, the government submits that there is no legal duty to consult and accommodate Haida interests at this stage, although it concedes there may be "sound practical and policy reasons" to do so.

[29] The government cites both authority and policy in support of its position. It relies on *Sparrow*, *supra*, at pp. 1110-13 and 1119, where the scope and content of the right were determined and infringement established, prior to consideration of whether infringement was justified…

[30] As for policy, the government points to practical difficulties in the enforcement of a duty to consult or accommodate unproven claims. If the duty to consult varies with the circumstances from a "mere" duty to notify and listen at one end of the spectrum to a requirement of Aboriginal consent at the other end, how, the government asks, are the parties to agree which level is appropriate in the face of contested claims and rights? And if they cannot agree, how are courts or tribunals to determine this? The government also suggests that it is impractical and unfair to require consultation before final claims determination because this amounts to giving a remedy before issues of infringement and justification are decided.

[31] The government's arguments do not withstand scrutiny. Neither the authorities nor practical considerations support the view that a duty to consult and, if appropriate, accommodate arises only upon final determination of the scope and content of the right.

[32] The jurisprudence of this Court supports the view that the duty to consult and accommodate is part of a process of fair dealing and reconciliation that begins with the assertion of sovereignty and continues beyond formal claims resolution. Reconciliation is not a final legal remedy in the usual sense. Rather, it is a process flowing from rights guaranteed by s. 35(1) of the *Constitution Act, 1982*. This process of reconciliation flows from the Crown's duty of honourable dealing toward Aboriginal peoples, which arises in turn from the Crown's assertion of sovereignty over an Aboriginal people and de facto control of land and resources that were formerly in the control of that people…

[33] To limit reconciliation to the post-proof sphere risks treating reconciliation as a distant legalistic goal, devoid of the "meaningful content" mandated by the "solemn commitment" made by the Crown in recognizing and affirming Aboriginal rights and title… It also risks unfortunate consequences. When the distant goal of proof is finally reached, the Aboriginal peoples may find their land and resources changed and denuded. This is not reconciliation. Nor is it honourable.

[34] The existence of a legal duty to consult prior to proof of claims is necessary to understand the language of cases like *Sparrow*, *Nikal*, and *Gladstone*, *supra*, where confirmation of the right and justification of an alleged infringement were litigated at the same time. For example, the reference in Sparrow to Crown behaviour in determining if any infringements were justified, is to behaviour before determination of the right. This negates the contention that a proven right is the trigger for a legal duty to consult and if appropriate accommodate even in the context of justification.

[35] But, when precisely does a duty to consult arise? The foundation of the duty in the Crown's honour and the goal of reconciliation suggest that the duty arises when the Crown has knowledge, real or constructive, of the potential existence of the Aboriginal right or title and contemplates conduct that might adversely affect it…

[36] This leaves the practical argument. It is said that before claims are resolved, the Crown cannot know that the rights exist, and hence can have no duty to consult or accommodate. This difficulty should not be denied or minimized… However, it will frequently be possible to reach an idea of the asserted rights and of their strength sufficient to trigger an obligation to consult and accommodate, short of final judicial determination or settlement. To facilitate this determination, claimants should outline their claims with clarity, focussing on the scope and nature of the Aboriginal rights they assert and on the alleged infringements. This is what happened here, where the chambers judge made a preliminary evidence-based assessment of the strength of the Haida claims to the lands and resources of Haida Gwaii, particularly Block 6.

[37] There is a distinction between knowledge sufficient to trigger a duty to consult and, if appropriate, accommodate, and the content or scope of the duty in a particular case. Knowledge of a credible but unproven claim suffices to trigger a duty to consult and accommodate. The content of the duty, however, varies with the circumstances, as discussed more fully below. A dubious or peripheral claim may attract a mere duty of notice, while a stronger claim may attract more stringent duties. The law is capable of differentiating between tenuous claims, claims possessing a strong *prima facie* case, and established claims. Parties can assess these matters, and if they cannot agree, tribunals and courts can assist. Difficulties associated with the absence of proof and definition of claims are addressed by assigning appropriate content to the duty, not by denying the existence of a duty.

[38] I conclude that consultation and accommodation before final claims resolution, while challenging, is not impossible, and indeed is an essential corollary to the honourable process of reconciliation that s. 35 demands. It preserves the Aboriginal interest pending claims resolution and fosters a relationship between the parties that makes possible negotiations, the preferred process for achieving ultimate reconciliation… Precisely what is required of the government may vary with the strength of the claim and the circumstances. But at a minimum, it must be consistent with the honour of the Crown.

D. *The Scope and Content of the Duty to Consult and Accommodate*

[39] The content of the duty to consult and accommodate varies with the circumstances. Precisely what duties arise in different situations will be defined as the case law in this emerging area develops. In general terms, however, it may be asserted that the scope of the duty is proportionate to a preliminary assessment of the strength of the case supporting the existence of the right or title, and to the seriousness of the potentially adverse effect upon the right or title claimed.

…

[41] … While it is not useful to classify situations into watertight compartments, different situations requiring different responses can be identified. In all cases, the honour of the Crown requires that the Crown act with good faith to provide meaningful consultation appropriate to the circumstances. In discharging this duty, regard may be had to the procedural safeguards of natural justice mandated by administrative law.

[42] At all stages, good faith on both sides is required. The common thread on the Crown's part must be "the intention of substantially addressing [Aboriginal] concerns" as they are raised… through a meaningful process of consultation. Sharp dealing is not permitted. However, there is no duty to agree; rather, the commitment is to a meaningful process of consultation. As for Aboriginal claimants, they must not frustrate the Crown's reasonable good faith attempts, nor should they take unreasonable positions to thwart government from making decisions or acting in cases where, despite meaningful consultation, agreement is not reached… Mere hard bargaining, however, will not offend an Aboriginal people's right to be consulted.

[43] Against this background, I turn to the kind of duties that may arise in different situations. In this respect, the concept of a spectrum may be helpful, not to suggest watertight legal compartments but rather to indicate what the honour of the Crown may require in particular circumstances. At one end of the spectrum lie cases where the claim to title is weak, the Aboriginal right limited, or the potential for infringement minor. In such cases, the only duty on the Crown may be to give notice, disclose information, and discuss any issues raised in response to the notice…

[44] At the other end of the spectrum lie cases where a strong *prima facie* case for the claim is established, the right and potential infringement is of high significance to the Aboriginal peoples, and the risk of non-compensable damage is high. In such cases deep consultation, aimed at finding a satisfactory interim solution, may be required. While precise requirements will vary with the circumstances, the consultation required at this stage may entail the opportunity to make submissions for consideration, formal participation in the decision-making process, and provision of written reasons to show that Aboriginal concerns were considered and to reveal the impact they had on the decision. This list is neither exhaustive, nor mandatory for every case. The government may wish to adopt dispute resolution procedures like mediation or administrative regimes with impartial decision-makers in complex or difficult cases.

[45] Between these two extremes of the spectrum just described, will lie other situations. Every case must be approached individually. Each must also be approached flexibly, since the level of consultation required may change as the process goes on and new information comes to light. The controlling question in all situations is what is required to maintain the honour of the Crown and to effect reconciliation between the Crown and the Aboriginal peoples with respect to the interests at stake. Pending settlement, the Crown is bound by its honour to balance societal and Aboriginal interests in making decisions that may affect Aboriginal claims. The Crown may be required to make decisions in the face of disagreement as to the adequacy of its response to Aboriginal concerns. Balance and compromise will then be necessary.

[46] Meaningful consultation may oblige the Crown to make changes to its proposed action based on information obtained through consultations. The New Zealand Ministry of Justice's Guide for Consultation with Māori (1997) provides insight (at pp. 21 and 31):

> Consultation is not just a process of exchanging information. It also entails testing and being prepared to amend policy proposals in the light of information received, and providing feedback. Consultation therefore becomes a process which should ensure both parties are better informed . . .
>
> . . .
>
> . . . genuine consultation means a process that involves . . .:
>
> - gathering information to test policy proposals
> - putting forward proposals that are not yet finalised
> - seeking Mäori opinion on those proposals
> - informing Mäori of all relevant information upon which those proposals are based
> - not promoting but listening with an open mind to what Mäori have to say
> - being prepared to alter the original proposal
> - providing feedback both during the consultation process and after the decision-process.

[47] When the consultation process suggests amendment of Crown policy, we arrive at the stage of accommodation. Thus, the effect of good faith consultation may be to reveal a duty to accommodate. Where a strong *prima facie* case exists for the claim, and the consequences of the government's proposed decision may adversely affect it in a significant way, addressing the Aboriginal concerns may require taking steps to avoid irreparable harm or to minimize the effects of infringement, pending final resolution of the underlying claim. Accommodation is achieved through consultation, as this Court recognized in *R. v. Marshall* … : ". . . the process of accommodation of the treaty right may best be resolved by consultation and negotiation".

[48] This process does not give Aboriginal groups a veto over what can be done with land pending final proof of the claim. The Aboriginal "consent" spoken of in *Delgamuukw* is appropriate only in cases of established rights, and then by no means in every case. Rather, what is required is a process of balancing interests, of give and take.

[49] This flows from the meaning of "accommodate". The terms "accommodate" and "accommodation" have been defined as to "adapt, harmonize, reconcile" . . . "an adjustment or adaptation to suit a special or different purpose . . . a convenient arrangement; a settlement or compromise": *Concise Oxford Dictionary of Current English* (9th ed. 1995), at p. 9. The accommodation that may result from pre-proof consultation is just this — seeking compromise in an attempt to harmonize conflicting interests and move further down the path of reconciliation. A commitment to the process does not require a duty to agree. But it does require good faith efforts to understand each other's concerns and move to address them.

…

[51] It is open to governments to set up regulatory schemes to address the procedural requirements appropriate to different problems at different stages, thereby strengthening the reconciliation process and reducing recourse to the courts. As noted in *R. v. Adams*, 1996 CanLII 169 (SCC), [1996] 3 S.C.R. 101, at para. 54, the government "may not simply adopt an unstructured discretionary administrative regime which risks infringing aboriginal rights in a substantial number of applications in the absence of some explicit guidance". It should be observed that, since October 2002, British Columbia has had a Provincial Policy for Consultation with First Nations to direct the terms of provincial ministries' and agencies' operational guidelines. Such a policy, while falling short of a regulatory scheme, may guard against unstructured discretion and provide a guide for decision-makers.

E. *Do Third Parties Owe a Duty to Consult and Accommodate?*

[52] The Court of Appeal found that Weyerhaeuser, the forestry contractor holding T.F.L. 39, owed the Haida people a duty to consult and accommodate. With respect, I cannot agree.

[53] It is suggested (per Lambert J.A.) that a third party's obligation to consult Aboriginal peoples may arise from the ability of the third party to rely on justification as a defence against infringement. However, the duty to consult and accommodate, as discussed above, flows from the Crown's assumption of sovereignty over lands and resources formerly held by the Aboriginal group. This theory provides no support for an obligation on third parties to consult or accommodate. The Crown alone remains legally responsible for the consequences of its actions and interactions with third parties, that affect Aboriginal interests. The Crown may delegate procedural aspects of consultation to industry proponents seeking a particular development; this is not infrequently done in environmental assessments. Similarly, the terms of T.F.L. 39 mandated Weyerhaeuser to specify measures that it would take to identify and consult with "aboriginal people claiming an aboriginal interest in or to the area" (Tree Farm Licence No. 39, Haida Tree Farm Licence, para. 2.09(g)(ii)). However, the ultimate legal responsibility for consultation and accommodation rests with the Crown. The honour of the Crown cannot be delegated.

…

[56] The fact that third parties are under no duty to consult or accommodate Aboriginal concerns does not mean that they can never be liable to Aboriginal peoples. If they act negligently in circumstances where they owe Aboriginal peoples a duty of care, or if they breach contracts with Aboriginal peoples or deal with them dishonestly, they may be held legally liable. But they cannot be held liable for failing to discharge the Crown's duty to consult and accommodate.

F. *The Province's Duty*

[57] The Province of British Columbia argues that any duty to consult or accommodate rests solely with the federal government. I cannot accept this argument.

[58] The Province's argument rests on s. 109 of the Constitution Act, 1867, which provides that "[a]ll Lands, Mines, Minerals, and Royalties belonging to the several Provinces of Canada . . . at the Union . . . shall belong to the several Provinces." The Province argues that this gives it exclusive right to the land at issue. This right, it argues, cannot be limited by the protection for Aboriginal rights found in s. 35 of the Constitution Act, 1982. To do so, it argues, would "undermine the balance of federalism" (Crown's factum, at para. 96).

[59] The answer to this argument is that the Provinces took their interest in land subject to "any Interest other than that of the Province in the same" (s. 109). The duty to consult and accommodate here at issue is grounded in the assertion of Crown sovereignty which pre-dated the Union. It follows that the Province took the lands subject to this duty. It cannot therefore claim that s. 35 deprives it of powers it would otherwise have enjoyed. As stated in St. Catherine's Milling and Lumber Co. v. The Queen (1888), 14 App. Cas. 46 (P.C.), lands in the

Province are "available to [the Province] as a source of revenue whenever the estate of the Crown is disencumbered of the Indian title" (p. 59). The Crown's argument on this point has been canvassed by this Court in Delgamuukw, supra, at para. 175, where Lamer C.J. reiterated the conclusions in St. Catherine's Milling, supra. There is therefore no foundation to the Province's argument on this point.

…

H. *Application to the Facts*

(1) Existence of the Duty

[64] The question is whether the Province had knowledge, real or constructive, of the potential existence of Aboriginal right or title and contemplated conduct that might adversely affect them. On the evidence before the Court in this matter, the answer must unequivocally be "yes".

…

(2) Scope of the Duty

[68] As discussed above, the scope of the consultation required will be proportionate to a preliminary assessment of the strength of the case supporting the existence of the right or title, and to the seriousness of the potentially adverse effect upon the right or title claimed.

(i) *Strength of the Case*

[69] On the basis of evidence described as "voluminous", the chambers judge found, at para. 25, a number of conclusions to be "inescapable" regarding the Haida's claims. He found that the Haida had inhabited Haida Gwaii continuously since at least 1774, that they had never been conquered, never surrendered their rights by treaty, and that their rights had not been extinguished by federal legislation. Their culture has utilized red cedar from old-growth forests on both coastal and inland areas of what is now Block 6 of T.F.L. 39 since at least 1846.

[70] The chambers judge's thorough assessment of the evidence distinguishes between the various Haida claims relevant to Block 6. On the basis of a thorough survey of the evidence, he found, at para. 47:

> (1) a "reasonable probability" that the Haida may establish title to "at least some parts" of the coastal and inland areas of Haida Gwaii, including coastal areas of Block 6. There appears to be a "reasonable possibility" that these areas will include inland areas of Block 6;
>
> (2) a "substantial probability" that the Haida will be able to establish an aboriginal right to harvest old-growth red cedar trees from both coastal and inland areas of Block 6.

The chambers judge acknowledged that a final resolution would require a great deal of further evidence, but said he thought it "fair to say that the Haida claim goes far beyond the mere 'assertion' of Aboriginal title" (para. 50).

[71] The chambers judge's findings grounded the Court of Appeal's conclusion that the Haida claims to title and Aboriginal rights were "supported by a good *prima facie* case" (para. 49). The strength of the case goes to the extent of the duty that the Province was required to fulfill. In this case the evidence clearly supports a conclusion that, pending a final resolution, there was a *prima facie* case in support of Aboriginal title, and a strong *prima facie* case for the Aboriginal right to harvest red cedar.

(ii) *Seriousness of the Potential Impact*

[72] The evidence before the chambers judge indicated that red cedar has long been integral to Haida culture. The chambers judge considered that there was a "reasonable probability" that the Haida would be able to establish infringement of an Aboriginal right to harvest red cedar "by proof that old-growth cedar has been and will continue to be logged on Block 6, and that it is of limited supply" (para. 48). The prospect of continued logging of a resource in limited supply points to the potential impact on an Aboriginal right of the decision to replace T.F.L. 39.

[73] Tree Farm Licences are exclusive, long-term licences. T.F.L. 39 grants exclusive rights to Weyerhaeuser to harvest timber within an area constituting almost one quarter of the total land of Haida Gwaii. The chambers judge observed that "it [is] apparent that large areas of Block 6 have been logged off" (para. 59). This points to the potential impact on Aboriginal rights of the decision to replace T.F.L. 39.

[74] To the Province's credit, the terms of T.F.L. 39 impose requirements on Weyerhaeuser with respect to Aboriginal peoples. However, more was required. Where the government has knowledge of an asserted Aboriginal right or title, it must consult the Aboriginal peoples on how exploitation of the land should proceed.

[75] The next question is when does the duty to consult arise? Does it arise at the stage of granting a Tree Farm Licence, or only at the stage of granting cutting permits? The T.F.L. replacement does not itself authorize timber harvesting, which occurs only pursuant to cutting permits. T.F.L. replacements occur periodically, and a particular T.F.L. replacement decision may not result in the substance of the asserted right being destroyed. The Province argues that, although it did not consult the Haida prior to replacing the T.F.L., it "has consulted, and continues to consult with the Haida prior to authorizing any cutting permits or other operational plans" (Crown's factum, at para. 64).

[76] I conclude that the Province has a duty to consult and perhaps accommodate on T.F.L. decisions. The T.F.L. decision reflects the strategic planning for utilization of the resource. Decisions made during strategic planning may have potentially serious impacts on Aboriginal right and title. The holder of T.F.L. 39 must submit a management plan to the Chief Forester every five years, to include inventories of the licence area's resources, a timber supply analysis, and a "20-Year Plan" setting out a hypothetical sequence of cutblocks. The inventories and the timber supply analysis form the basis of the determination of the allowable annual cut ("A.A.C.") for the licence. The licensee thus develops the technical information based upon which the A.A.C. is calculated. Consultation at the operational level thus has little effect on the quantity of the annual allowable cut, which in turn determines cutting permit terms. If consultation is to be meaningful, it must take place at the stage of granting or renewing Tree Farm Licences.

[77] The last issue is whether the Crown's duty went beyond consultation on T.F.L. decisions, to accommodation. We cannot know, on the facts here, whether consultation would have led to a need for accommodation. However, the strength of the case for both the Haida title and the Haida right to harvest red cedar, coupled with the serious impact of incremental strategic decisions on those interests, suggest that the honour of the Crown may well require significant accommodation to preserve the Haida interest pending resolution of their claims.

(3) Did the Crown Fulfill its Duty?

[78] The Province did not consult with the Haida on the replacement of T.F.L. 39. … In both this Court and the courts below, the Province points to various measures and policies taken to address Aboriginal interests. At this Court, the Province argued that "[t]he Haida were and are consulted with respect to forest development plans and cutting permits. . . Through past consultations with the Haida, the Province has taken various steps to mitigate the effects of harvesting . . ." (Crown's factum, at para. 75). However, these measures and policies do not amount to and cannot substitute for consultation with respect to the decision to replace T.F.L. 39 and the setting of the licence's terms and conditions.

[79] It follows, therefore, that the Province failed to meet its duty to engage in something significantly deeper than mere consultation. It failed to engage in any meaningful consultation at all.

III. Conclusion

[80] The Crown's appeal is dismissed and Weyerhaeuser's appeal is allowed. The British Columbia Court of Appeal's order is varied so that the Crown's obligation to consult does not extend to Weyerhaeuser. The Crown has agreed to pay the costs of the respondents regarding the application for leave to appeal and the appeal. Weyerhaeuser shall be relieved of any obligation to pay the costs of the Haida in the courts below. It is not necessary to answer the constitutional question stated in this appeal.

3.2 *Tsilhqot'in Nation v. British Columbia*, 2014 SCC 44 (CanLII), [2014] 2 SCR 257

In *Tsilhqot'in Nation*, in the context of a claim for Aboriginal title, the SCC restated the test for justifying infringements of Aboriginal rights, integrating it with the duty to consult and accommodate. Do you think it modifies the *Sparrow* test?

[77] To justify overriding the Aboriginal title-holding group's wishes on the basis of the broader public good, the government must show: (1) that it discharged its procedural duty to consult and accommodate; (2) that its actions were backed by a compelling and substantial objective; and (3) that the governmental action is consistent with the Crown's fiduciary obligation to the group: *Sparrow*.

[78] The duty to consult is a procedural duty that arises from the honour of the Crown prior to confirmation of title. Where the Crown has real or constructive knowledge of the potential or actual existence of Aboriginal title, and contemplates conduct that might adversely affect it, the Crown is obliged to consult with the group asserting Aboriginal title and, if appropriate, accommodate the Aboriginal right. The duty to consult must be discharged prior to carrying out the action that could adversely affect the right.

[79] The degree of consultation and accommodation required lies on a spectrum as discussed in *Haida*. In general, the level of consultation and accommodation required is proportionate to the strength of the claim and to the seriousness of the adverse impact the contemplated governmental action would have on the claimed right. "A dubious or peripheral claim may attract a mere duty of notice, while a stronger claim may attract more stringent duties" (para. 37). The required level of consultation and accommodation is greatest where title has been established. Where consultation or accommodation is found to be inadequate, the government decision can be suspended or quashed.

[80] Where Aboriginal title is unproven, the Crown owes a procedural duty imposed by the honour of the Crown to consult and, if appropriate, accommodate the unproven Aboriginal interest. By contrast, where title has been established, the Crown must not only comply with its procedural duties, but must also ensure that the proposed government action is substantively consistent with the requirements of s. 35 of the *Constitution Act, 1982*. This requires both a compelling and substantial governmental objective and that the government action is consistent with the fiduciary duty owed by the Crown to the Aboriginal group.

[81] I agree with the Court of Appeal that the compelling and substantial objective of the government must be considered from the Aboriginal perspective as well as from the perspective of the broader public. As stated in *Gladstone*, at para. 72:

> . . . the objectives which can be said to be compelling and substantial will be those directed at either the recognition of the prior occupation of North America by [A]boriginal peoples or — and at the level of justification it is this purpose which may well be most relevant — at the reconciliation of [A]boriginal prior occupation with the assertion of the sovereignty of the Crown. [Emphasis added.]

[82] As *Delgamuukw* explains, the process of reconciling Aboriginal interests with the broader interests of society as a whole is the *raison d'être* of the principle of justification. Aboriginals and non-Aboriginals are "all here to stay" and must of necessity move forward in a process of reconciliation (para. 186). To constitute a compelling and substantial objective, the broader public goal asserted by the government must further the goal of reconciliation, having regard to both the Aboriginal interest and the broader public objective.

[83] What interests are potentially capable of justifying an incursion on Aboriginal title? In *Delgamuukw*, this Court, *per* Lamer C.J., offered this:

> In the wake of *Gladstone*, the range of legislative objectives that can justify the infringement of [A]boriginal title is fairly broad. Most of these objectives can be traced to the reconciliation of the prior occupation of North America by [A]boriginal peoples with the assertion of Crown sovereignty, which entails the recognition that "distinctive [A]boriginal societies exist within, and are a part of, a broader social, political and economic community" (at para. 73). In my opinion, the development of agriculture, forestry, mining, and hydroelectric power, the general economic development of the interior of British Columbia, protection of the environment or endangered species, the building of infrastructure and the settlement of foreign populations to support those aims, are the kinds of objectives that are consistent with this purpose and, in principle, can justify the infringement of [A]boriginal title. Whether a particular measure or government act can be explained by reference to one of those objectives, however, is ultimately a question of fact that will have to be examined on a case-by-case basis. [Emphasis added; emphasis in original deleted; para. 165.]

[84] If a compelling and substantial public purpose is established, the government must go on to show that the proposed incursion on the Aboriginal right is consistent with the Crown's fiduciary duty towards Aboriginal people.

[85] The Crown's fiduciary duty in the context of justification merits further discussion. The Crown's underlying title in the land is held for the benefit of the Aboriginal group and constrained by the Crown's fiduciary or trust obligation to the group. This impacts the justification process in two ways.

[86] First, the Crown's fiduciary duty means that the government must act in a way that respects the fact that Aboriginal title is a group interest that inheres in present and future generations. The beneficial interest in the land held by the Aboriginal group vests communally in the title-holding group. This means that incursions on Aboriginal title cannot be justified if they would substantially deprive future generations of the benefit of the land.

[87] Second, the Crown's fiduciary duty infuses an obligation of proportionality into the justification process. Implicit in the Crown's fiduciary duty to the Aboriginal group is the requirement that the incursion is necessary to achieve the government's goal (rational connection); that the government go no further than necessary to achieve it (minimal impairment); and that the benefits that may be expected to flow from that goal are not outweighed by adverse effects on the Aboriginal interest (proportionality of impact). The requirement of proportionality is inherent in the *Delgamuukw* process of reconciliation and was echoed in *Haida*'s insistence that the Crown's duty to consult and accommodate at the claims stage "is proportionate to a preliminary assessment of the strength of the case supporting the existence of the right or title, and to the seriousness of the potentially adverse effect upon the right or title claimed" (para. 39).

[88] In summary, Aboriginal title confers on the group that holds it the exclusive right to decide how the land is used and the right to benefit from those uses, subject to one carve-out — that the uses must be consistent with the group nature of the interest and the enjoyment of the land by future generations. Government incursions not consented to by the title-holding group must be undertaken in accordance with the Crown's procedural duty to consult and must also be justified on the basis of a compelling and substantial public interest, and must be consistent with the Crown's fiduciary duty to the Aboriginal group.

4 Indigenous Self-Government

For most Indigenous peoples, the right to self-government (the right to enforce their own rules, resolve disputes, problem-solve, and establish their own governing institutions to carry out these tasks right, according to their own laws, is a fundamentally important right, and one for which they have long sought recognition within Canada. Article 3 of the *United Nations Declaration on the Rights of Indigenous Peoples* ("UNDRIP") recognizes the right to self-determination and states that "[b]y virtue of that right [Indigenous peoples may] freely determine their political status and freely pursue their economic, social and cultural development." Article 4 of UN Declaration states "in exercising their right to self-determination, [Indigenous peoples] have the right to autonomy or self-government in matters relating to their internal and local affairs, as well as ways and means for financing their autonomous functions." Article 34 further states Indigenous peoples' rights to "promote, develop and maintain their institutional structures and their distinctive customs, spirituality, traditions, procedures, practices and … juridical systems or customs… ."

Canadian law's recognition of Indigenous peoples' right self-government to date, however, could be described as "tepid" at best. The primary vehicle for obtaining self-government in Canada is through negotiations under what is known as Canada's Inherent Rights Policy passed in 1995 after the failure of the Charlottetown Accord to amend the Constitution to explicitly recognize a right to self-government unilaterally exercisable by Indigenous peoples (after an initial five year waiting period). The Inherent Rights Policy authorizes negotiations between Canada, Indigenous groups and the provinces (on an Indigenous group's request) over the exercise of self-government over "matters that are internal to their communities, integral to their unique cultures, identities, traditions, languages and institutions, and with respect to their special relationship to their land and their resources." No unilateral exercise of jurisdiction is permitted under the Policy; all must be negotiated. Critics have pointed out that the requirement to negotiate appears inconsistent with calling these "inherent" rights.

Turning to the courts, whether section 35 of the *Constitution Act, 1982* protects Aboriginal people's right to Indigenous self-government still remains an open question. In *R. v. Pamajewon*, 1996 CanLII 161 (SCC), [1996] 2 SCR 821, the Supreme Court suggested that if the right to self-government does exist pursuant to section 35, it would have to be proven in the same was as any other Aboriginal right, pursuant to the framework set out in *R v. Van der Peet*.

4.1 *R. v. Pamajewon*, 1996 CanLII 161 (SCC), [1996] 2 SCR 821

The judgment of Lamer C.J. and La Forest, Sopinka, Gonthier, Cory, McLachlin, Iacobucci and Major JJ. was delivered by

THE CHIEF JUSTICE --

Introduction

[1] This appeal raises the question of whether the conduct of high stakes gambling by the Shawanaga and Eagle Lake First Nations falls within the scope of the aboriginal rights recognized and affirmed by s. 35(1) of the *Constitution Act, 1982*.

[2] The appeal was heard on February 26, 1996 and judgment was given dismissing the appeal. The following brief reasons will explain the basis for this decision.

II. Statement of Facts

Pamajewon and Jones

[3] The appellants Pamajewon and Jones are members of the Shawanaga First Nation. On March 29, 1993, both were found guilty of the offence of keeping a common gaming house contrary to s. 201(1) of the *Criminal Code*, R.S.C., 1985, c. C-46. Section 201(1) of the *Criminal Code* reads:

> **201.** (1) Every one who keeps a common gaming house or common betting house is guilty of an indictable offence and liable to imprisonment for a term not exceeding two years.

[4] The charges arose out of the high stakes bingo and other gambling activities which took place on the Shawanaga First Nation Reservation between September 11, 1987 and October 6, 1990. Throughout this period Jones was Chief of the Shawanaga First Nation and Pamajewon was a member of the Shawanaga Band Council

[…]

[6] The Shawanaga First Nation did not have a provincial licence authorizing its gambling activities. The band had met with the Ontario Lottery Corporation but had refused the Corporation's offer of a gambling licence on the basis that such a licence was unnecessary because the band had an inherent right of self-government.

[7] At trial the appellants Pamajewon and Jones were convicted. Their convictions were upheld by the Ontario Court of Appeal.

Gardner, Pitchenese and Gardner

[8] The appellants Arnold Gardner, Jack Pitchenese and Allan Gardner are all members of the Eagle Lake First Nation. On November 19, 1993 they were found guilty of conducting a scheme for the purpose of determining the winners of property, contrary to s. 206(1)(*d*) of the *Code*. Section 206(1)(*d*) of the *Code* reads:

> **206.** (1) Every one is guilty of an indictable offence and liable to imprisonment for a term not exceeding two years who
>
> . . .
>
> (*d*) conducts or manages any scheme, contrivance or operation of any kind for the purpose of determining who, or the holders of what lots, tickets, numbers or chances, are the winners of any property so proposed to be advanced, lent, given, sold or disposed of....

[9] At the time they were charged Arnold Gardner was Chief of the Eagle Lake Band and chairman of the bingo committee. Jack Pitchenese managed the bingo operations. Allan Gardner was the chief bingo caller.

…

[11] The Eagle Lake First Nation did not have a provincial licence authorizing its gambling operations; the band had refused to negotiate with the Ontario Lottery Commission, even though it was approached for this purpose by the Ministry of Consumer and Commercial Relations. The band would not negotiate because it asserted the right to be self-regulating in its economic activities.

[12] The appellants Gardner, Pitchenese and Gardner were convicted at trial. Their convictions were upheld by the Ontario Court of Appeal.

…

IV. Grounds of Appeal

[20] Leave to appeal to this Court was granted on June 1, 1995… On July 6, 1995, the following constitutional question was stated:

> Are s. 201, s. 206 or s. 207 of the *Criminal Code*, separately or in combination, of no force or effect with respect to the appellants, by virtue of s. 52 of the *Constitution Act, 1982* in the circumstances of these proceedings, by reason of the aboriginal or treaty rights within the meaning of s. 35 of the *Constitution Act, 1982* invoked by the appellants?

[21] The appellants appealed on the basis that the Court of Appeal erred in restricting aboriginal title to rights that are activity and site specific and in concluding that self-government only extends to those matters which were governed by ancient laws or customs. The appellant argued further that the Court of Appeal erred in concluding that the *Code* extinguished self-government regarding gaming and in not addressing whether the *Code*'s gaming provisions unjustifiably interfered with the rights recognized and affirmed by s. 35(1) of the *Constitution Act, 1982*.

…

V. Analysis

[23] The resolution of the appellants' claim in this case rests on the application of the test, laid out by this Court in *R. v. Van der Peet*, 1996 CanLII 216 (SCC), [1996] 2 S.C.R. 507, for determining the aboriginal rights recognized and affirmed by s. 35(1) of the *Constitution Act, 1982*. The appellants in this case are claiming that the gambling activities in which they took part, and their respective bands' regulation of those gambling activities, fell within the scope of the aboriginal rights recognized and affirmed by s. 35(1). *Van der Peet*, *supra*, lays out the test for determining the practices, customs and traditions which fall within s. 35(1) and, as such, provides the legal standard against which the appellants' claim must be measured.

[24] The appellants' claim involves the assertion that s. 35(1) encompasses the right of self-government, and that this right includes the right to regulate gambling activities on the reservation. Assuming without deciding that s. 35(1) includes self-government claims, the applicable legal standard is nonetheless that laid out in *Van der Peet*, *supra*. Assuming s. 35(1) encompasses claims to aboriginal self-government, such claims must be considered in light of the purposes underlying that provision and must, therefore, be considered against the test derived from consideration of those purposes. This is the test laid out in *Van der Peet*, *supra*. In so far as they can be made under s. 35(1), claims to self-government are no different from other claims to the enjoyment of aboriginal rights and must, as such, be measured against the same standard.

[25] In *Van der Peet*, *supra*, the test for identifying aboriginal rights was said to be as follows, at para. 46:

> . . . in order to be an aboriginal right an activity must be an element of a practice, custom or tradition integral to the distinctive culture of the aboriginal group claiming the right.

In applying this test, the Court must first identify the exact nature of the activity claimed to be a right and must then go on to determine whether, on the evidence presented to the trial judge, and on the facts as found by the trial judge, that activity could be said to be (*Van der Peet*, at para. 59) "a defining feature of the culture in question" prior to contact with Europeans.

[26] I now turn to the first part of the *Van der Peet* test, the characterization of the appellants' claim. In *Van der Peet*, *supra*, the Court held at para. 53 that:

> To characterize an applicant's claim correctly, a court should consider such factors as the nature of the action which the applicant is claiming was done pursuant to an aboriginal right, the nature of the governmental regulation, statute or action being impugned, and the practice, custom or tradition being relied upon to establish the right.

When these factors are considered in this case it can be seen that the correct characterization of the appellants' claim is that they are claiming the right to participate in, and to regulate, high stakes gambling activities on the reservation. The activity which the appellants organized, and which their bands regulated, was high stakes gambling. The statute which they argue violates those rights prohibits gambling subject only to a few very limited exceptions […]. Finally, the applicants rely in support of their claim on the fact that the "Ojibwa people ... had a long tradition of public games and sporting events, which pre-dated the arrival of Europeans". Thus, the activity in which the appellants were engaged and which their bands regulated, the statute they are impugning, and the historical evidence on which they rely, all relate to the conduct and regulation of gambling. As such, the most accurate characterization of the appellants' claim is that they are asserting that s. 35(1) recognizes and affirms the rights of the Shawanaga and Eagle Lake First Nations to participate in, and to regulate, gambling activities on their respective reserve lands.

[27] The appellants themselves would have this Court characterize their claim as to "a broad right to manage the use of their reserve lands". To so characterize the appellants' claim would be to cast the Court's inquiry at a level of excessive generality. Aboriginal rights, including any asserted right to self-government, must be looked at in light of the specific circumstances of each case and, in particular, in light of the specific history and culture of the aboriginal group claiming the right. The factors laid out in *Van der Peet*, and applied, *supra*, allow the Court to consider the appellants' claim at the appropriate level of specificity; the characterization put forward by the appellants would not allow the Court to do so.

[28] I now turn to the second branch of the *Van der Peet* test, the consideration of whether the participation in, and regulation of, gambling on the reserve lands was an integral part of the distinctive cultures of the Shawanaga or Eagle Lake First Nations. The evidence presented at both the Pamajewon and Gardner trials does not demonstrate that gambling, or that the regulation of gambling, was an integral part of the distinctive cultures of the Shawanaga or Eagle Lake First Nations. In fact, the only evidence presented at either trial dealing with the question of the importance of gambling was that of James Morrison, who testified at the Pamajewon trial with regards to the importance and prevalence of gaming in Ojibwa culture. While Mr. Morrison's evidence does demonstrate that the Ojibwa gambled, it does not demonstrate that gambling was of central significance to the Ojibwa people. Moreover, his evidence in no way addresses the extent to which this gambling was the subject of regulation by the Ojibwa community. His account is of informal gambling activities taking place on a small-scale; he does not describe large-scale activities, subject to community regulation, of the sort at issue in this appeal.

[29] I would note that neither of the trial judges in these cases relied upon findings of fact regarding the importance of gambling to the Ojibwa; however, upon review of the evidence I find myself in agreement with the conclusion arrived at by Osborne J.A. when he said first, at p. 400, that there "is no evidence to support a conclusion that gambling generally or high stakes gambling of the sort in issue here, were part of the First Nations' historic cultures and traditions, or an aspect of their use of their land" and, second, at p. 400, that "there is no evidence that gambling on the reserve lands generally was ever the subject matter of aboriginal regulation". I also agree with the observation made by Flaherty Prov. Ct. J. in the Gardner trial when he said that

> commercial lotteries such as bingo are a twentieth century phenomena and nothing of the kind existed amongst aboriginal peoples and was never part of the means by which those societies were traditionally sustained or socialized.

> [30] Given this evidentiary record, it is clear that the appellants have failed to demonstrate that the gambling activities in which they were engaged, and their respective bands' regulation of those activities, took place pursuant to an aboriginal right recognized and affirmed by s. 35(1) of the *Constitution Act, 1982*.
>
> …

Pamajewon still remains the leading Supreme Court of Canada case on the right to self-government under s 35(1). In fact, in *Delgamuukw v. British Columbia,* 1997 CanLII 302 (SCC), [1997] 3 SCR 1010, decided the following year, the Supreme Court reaffirmed the approach in *Pamajewon*:

> 170 In the courts below, considerable attention was given to the question of whether s. 35(1) can protect a right to self-government, and if so, what the contours of that right are. The errors of fact made by the trial judge, and the resultant need for a new trial, make it impossible for this Court to determine whether the claim to self-government has been made out. Moreover, this is not the right case for the Court to lay down the legal principles to guide future litigation. The parties seem to have acknowledged this point, perhaps implicitly, by giving the arguments on self-government much less weight on appeal. One source of the decreased emphasis on the right to self-government on appeal is this Court's judgment *Pamajewon*. There, I held that rights to self-government, if they existed, cannot be framed in excessively general terms. The appellants did not have the benefit of my judgment at trial. Unsurprisingly, as counsel for the Wet'suwet'en specifically concedes, the appellants advanced the right to self-government in very broad terms, and therefore in a manner not cognizable under s. 35(1).
>
> 171 The broad nature of the claim at trial also led to a failure by the parties to address many of the difficult conceptual issues which surround the recognition of aboriginal self-government. The degree of complexity involved can be gleaned from the *Report of the Royal Commission on Aboriginal Peoples*, which devotes 277 pages to the issue. That report describes different models of self-government, each differing with respect to their conception of territory, citizenship, jurisdiction, internal government organization, etc. We received little in the way of submissions that would help us to grapple with these difficult and central issues. Without assistance from the parties, it would be imprudent for the Court to step into the breach. In these circumstances, the issue of self-government will fall to be determined at trial.

The restrictions placed on the right of Aboriginal self-government in *Pamajewon* have been roundly criticized as unduly limiting First Nations' ability to self-govern by numerous scholars. For example, Peter Hogg and Wade Wright state in Constitutional Law of Canada, 5th ed (Toronto: Thomson Reuters Canada, 2020), "[t]hese [Van der Peet] restrictions are very severe even for rights to hunt and fish, but they are singularly inappropriate for the right of self-government" (ch 28 at ss 28:20). Kent McNeil has argued that Pamajewon fails to "permit Aboriginal nations to govern themselves in the modern world in accordance with their current needs and priorities" and its requirement to prove every aspect of jurisdiction separately "places an impractical burden of proof and unreasonable costs upon them" ("The Jurisdiction of Inherent Right Aboriginal Governments" (Research Paper for the National Center for First Nations Governance, 11 October 2007) at 13-14. John Borrows puts in stark terms what can be at stake for an Indigenous group in self-government litigation. Using the example of a First Nation seeking to address domestic violence in its community, he emphasizes that Van der Peet requires a First Nation to provide "evidence that violence against women, its prevention, and the punishment of people who engage in it" was integral to its distinctive pre-contact culture of the group, such that the First Nation "would thus find itself spending millions of dollars on experts and legal fees to shame themselves before the courts with such evidence" ("Aboriginal and Treaty Rights and Violence Against Women" (2013) 50 Osgoode Hall Law Journal 699 at 723-725).

No Indigenous group has been able to successfully prove a right to self-government in the quarter-century since *Pamajewon*, though only a handful have dared to try: see *Mississaugas of Scugog Island First Nation v National Automobile, Aerospace, Transportation and General Workers Union of Canada*, 2007 ONCA 814; *Acadia First Nation v Canada (National Revenue)*, 2007 FC 259, aff'd 2008 FCA 119; *Conseil des Innus de Pessamit v Association des policiers et policières de Pessamit*, 2010 FCA 306.

Developments since *Pamajewon* suggests that the Supreme Court of Canada's view on this topic could soon change.

In *Reference re An Act respecting First Nations, Inuit and Métis children, youth and families,* 2024 SCC 5, the Supreme Court of Canada referenced the fact that many of the interveners before the court were arguing that sections 35 includes an inherent right to self-government but that it was not necessarily to rule on that issue:

> It should be noted that the Attorney General of Canada, as well as a number of the interveners before this Court, argued that s. 35(1) protects Indigenous peoples' inherent right of self-government "in relation to child and family services", as the very wording of the Act affirms. This Court has not yet addressed the question, and it is unnecessary for it to do so in this case".

The Court went on to re-iterate the finding in *Pamajewon* but left the door open for the possibility that the court might re-examine the holding in this case in the future:

> …the fact that this Court has *not yet recognized* the existence under s. 35(1) of a right of self-government does not mean that Parliament lacks the means to deal with the question of Indigenous child and family services.
>
> …
>
> … the Court is taking care not to exclude the possibility that the right of self-government has a distinct constitutional source. In particular, our conclusion certainly does not negate the possibility that such a right of self-government may be recognized under s. 35 of the *Constitution Act, 1982*. This remains an open question.[103]

In *Dickson v Vuntun Gwitchin First Nation,* 2024 SCC 10, the Supreme Court of Canada confirmed that although the Court had yet to recognize an inherent right to self-government, this might need to be re-considered in light of Canada's commitments to UNDRIP:

> As a preliminary matter, we note that although this Court has yet to recognize an inherent right to Indigenous self-government as an Aboriginal right protected under s. 35 of the *Constitution Act, 1982* (see *R. v. Pamajewon*, 1996 CanLII 161 (SCC), [1996] 2 S.C.R. 821, at para. 24; *Delgamuukw v. British Columbia*, 1997 CanLII 302 (SCC), [1997] 3 S.C.R. 1010, at para. 171), an inherent right to Indigenous self-government has now been affirmed on the international plane by Article 4 of the *United Nations Declaration on the Rights of Indigenous Peoples*, U.N. Doc. A/RES/61/295, October 2, 2007. In 2016, the Canadian government supported the Declaration and committed to adopt and implement it in accordance with the Canadian Constitution. Recent federal legislation has affirmed the Declaration as "a universal international human rights instrument with application in Canadian law" and provides "a framework for the Government of Canada's implementation of the Declaration" (*United Nations Declaration on the Rights of Indigenous Peoples Act*, S.C. 2021, c. 14 ("*UNDRIP Act*"), s. 4).[104]

5 Section 25

Section 25 of the *Constitution Act, 1982* is part of the *Charter of Rights and Freedoms*. It provides:

> 25. The guarantee in this Charter of certain rights and freedoms shall not be construed so as to abrogate or derogate from any aboriginal, treaty or other rights or freedoms that pertain to the aboriginal peoples of Canada including
>
> (a) any rights or freedoms that have been recognized by the Royal Proclamation of October 7, 1763; and

(b) any rights or freedoms that now exist by way of land claims agreements or may be so acquired.

In *Dickson*, a majority of the Court confirmed that s. 25 has a protective purpose, ensuring that the rights identified in s. 25 are protected where application of individual *Charter* rights would otherwise unduly impact them.

5.1 *Dickson v. Vuntut Gwitchin First Nation*, 2024 SCC 10

Indigenous Self-Government and the *Charter*

[47] As a preliminary matter, we note that although this Court has yet to recognize an inherent right to Indigenous self-government as an Aboriginal right protected under s. 35 of the *Constitution Act, 1982* (see *R. v. Pamajewon*, 1996 CanLII 161 (SCC), [1996] 2 S.C.R. 821, at para. 24; *Delgamuukw v. British Columbia*, 1997 CanLII 302 (SCC), [1997] 3 S.C.R. 1010, at para. 171), an inherent right to Indigenous self-government has now been affirmed on the international plane by Article 4 of the *United Nations Declaration on the Rights of Indigenous Peoples*, U.N. Doc. A/RES/61/295, October 2, 2007. In 2016, the Canadian government supported the Declaration and committed to adopt and implement it in accordance with the Canadian Constitution. Recent federal legislation has affirmed the Declaration as "a universal international human rights instrument with application in Canadian law" and provides "a framework for the Government of Canada's implementation of the Declaration" (*United Nations Declaration on the Rights of Indigenous Peoples Act*, S.C. 2021, c. 14 ("*UNDRIP Act*"), s. 4). For example, the Declaration has been implemented specifically in respect of the provision of Indigenous child and family services under the *Act respecting First Nations, Inuit and Métis children, youth and families*, S.C. 2019, c. 24 (see *Reference re An Act respecting First Nations, Inuit and Métis children, youth and families*, 2024 SCC 5).

…

[82] … [A]lthough (as the trial judge found) the Vuntut Gwitchin have been self-governing since time immemorial, and even if the VGFN has lawmaking authority under an inherent right to self-government, the VGFN is also recognized as a legal entity under the federal implementing legislation. To that extent, it derives *at least some* of its lawmaking authority under federal law. In other words, at least one source of the VGFN's lawmaking authority flows from Parliament, in that the VGFN exercises powers that Parliament otherwise would have exercised through its legislative jurisdiction under s. 91(24) of the *Constitution Act, 1867*. This of course is not to suggest that Indigenous self-government is necessarily an emanation of federal authority. Parliament can, as here, be a source of the self-government authority, and it is this fact that triggers the application of the *Charter* in this case. …

[91] We would also add that our conclusion that the *Charter* applies to the VGFN's residency requirement adopted under the framework of the federal self-government legislation differs from — and is narrower than — the conclusions apparently reached by the trial judge and Court of Appeal. The trial judge (at para. 130) and the Court of Appeal (at para. 98) both appeared to decide that the *Charter* applies to the exercise of the VGFN's self-government powers, whether viewed as an exercise of the VGFN's inherent right of self-government or under the self-government agreements with the federal and Yukon governments, as implemented by federal and territorial legislation. We conclude that the *Charter* applies to the VGFN's residency requirement only insofar as that requirement flows from an exercise of statutory power under s. 91(24) of the *Constitution Act, 1867*. We make no comment on whether an exercise of an inherent right of self-government untethered from federal legislation would be subject to the *Charter*, which in our view need not be decided in this case in view of the self-government arrangements in issue. …

Application of the *Charter* in the circumstances

[51] Shortly after the failure to ratify the 1992 Charlottetown Accord, the Royal Commission on Aboriginal Peoples extensively studied whether the *Charter* should apply to Indigenous governments exercising inherent self-government powers. The Royal Commission concluded that the *Charter* applies, but in accordance with s. 25, it should be "given a flexible interpretation that takes account of the distinctive philosophies, traditions and cultural practices of Aboriginal peoples" [reference omitted]. … That perspective takes a broad view of the application of the *Charter* to Indigenous governments under s. 32(1), but also interprets the *Charter* under s. 25 with sensitivity to the collective rights of Indigenous peoples, to protect what the Royal Commission referred to as their "distinctive philosophies, traditions and cultural practices" — or what Professor Patrick Macklem has encapsulated in the term "[I]ndigenous difference" (*Indigenous Difference and the Constitution of Canada* (2001)). As we explain below, s. 25 was included in the *Charter* as a protection for the distinctive minority rights of Indigenous peoples that might be abrogated or derogated from by the application of individual *Charter* rights. …

[109] Consonant with the principle of the protection of Indigenous peoples as a distinct minority, the "other rights or freedoms" in s. 25 are limited to those that protect Indigenous difference. All the collective Indigenous rights and freedoms referred to in s. 25 must be upheld, even when they conflict with individual Charter rights, in order to ensure respect for minority rights as a constitutional value.

[110] The protection of Aboriginal, treaty, and other rights in s. 25 is not, however, absolute. Priority is given to collective Indigenous rights only when they conflict with an individual's *Charter* right. In any given case, the individual and collective rights referred to in s. 25 may not actually be in conflict. Some individual rights are part of Indigenous law and coexist with collective interests, as both the UNDRIP Act and the VGFN Constitution itself make plain … . In addition, s. 25 would not apply if the individual Charter right invoked conflicted with an Indigenous right that does not rest on Indigenous difference. In such circumstances, any limit on the individual right must be justified under s. 1 of the Charter. And like s. 35 rights, the primacy afforded to the collective rights under s. 25 is subject to the equality guarantee for "male and female persons" under s. 28 of the *Charter* and s. 35(4) of the *Constitution Act, 1982*.

Proceeding to apply the *Charter*, Justice Kasirer and Justice Jamal determined that Ms. Dickson had succeeded in showing that the residency requirement constituted a *prima facie* (or, on its face) infringement of her right to equality under Section 15(1) of the *Charter*.

However, Justice Kasirer and Justice Jamal said that the residency requirement was an exercise of an "other" right or freedom that pertains to the Aboriginal peoples of Canada under Section 25 of the *Charter*. As they explained, the purpose of Section 25 is to uphold certain collective rights and freedoms of Indigenous peoples when those collective rights conflict with an individual's *Charter* rights. They declared that the residency requirement protects "Indigenous difference", understood as interests connected to Aboriginal cultural difference, Aboriginal prior occupancy, Aboriginal prior sovereignty, or Aboriginal participation in the treaty process. On this concept, the Court wrote:

> In the circumstances, the majority found VGFN's interests engaged Indigenous difference: "Requiring VGFN leaders to reside on settlement land helps preserve the leaders' connection to the land, which is deeply rooted in the VGFN's distinctive culture and governance practices. It also bolsters the VGFN's ability to resist the outside forces that pull citizens away from its settlement land […]. Such interests are associated with various aspects of Indigenous difference …" (para 217).

Justice Kasirer and Justice Jamal concluded that Ms. Dickson's claim based on her Section 15 right to equality abrogated or derogated from this "other" right under Section 25, which created an irreconcilable conflict between the two. As such, pursuant to Section 25 of the *Charter*, her claim could not be given effect. Neither ss. 28 or 35(4) were found to be engaged.

Justices Martin and O'Bonsawin, in dissent, gave a narrow purview to s. 25, based on their purposive approach of giving the *Charter* broad application and avoiding what they called "Charter-free zones." They would not extend s. 25 protection to the exercise of Indigenous self-government but limits its application "against non-Indigenous people making claims that would have the effect of taking away from Indigenous peoples what is rightly theirs precisely because they are Indigenous peoples" (para 235).

Justice Rowe did not apply s. 25 as he found that the Charter did not apply in the circumstances. He held that both the history and text of s. 32 prevent its application to the exercise of inherent self-government. Section 32 is about Canadian governments and their delegates, and it is s. 35 that addresses the place for Indigenous governance within contemporary Canada. Consequently, the VGFN's governance structures and internal decisions are rooted in their legal traditions and choices and do not attract Charter scrutiny under s. 32. Rowe J. also emphasized that imposing the Charter to Indigenous governments would be contrary to the objective reconciliation since the "philosophical underpinnings of the Charter may not necessarily be commensurate with some Indigenous worldviews…" (para 499).]

***

Note that it took a majority of the Court over 40 years to given substantive content to s. 25, and some scholars had pointed out its conspicuous absence from consideration in earlier cases involving s. 15 claims and Indigenous peoples: see Jennifer Koshan and Jonnette Watson Hamilton, "Kahkewistahaw First Nation v Taypotat – Whither Section 25 of the Charter?" (2016) 25:2 Constitutional Forum- Special Issue 39-44 . Why do you think that is? A majority of the Court had the opportunity to resolve the dispute in *R v Kapp*, 2008 SCC 41 on the basis of s. 25 (as opposed to s. 15(2)), but declined to do so. In lone reasons in that case, Bastarache J questioned this apparent reluctance to engage with s. 25, linking it to the complex interplay between the Charter and Indigenous jurisdiction, and criticizing the lack of engagement with s. 25: "I think it is unreasonable to suggest that a law should not be applied by this Court because it is too difficult. After all, s. 25 is the only provision in the Charter which makes express reference to aboriginal people, and the Charter is now 25 years old" (at para 100).

What do you make of the Court's effort to give space to s. 35 rights and Indigenous difference from *Charter* scrutiny in certain case? What types of values should be brought to bear in making such an assessment: reconciliation, self-determination, protection of individual rights, equality?

Both the majority and the dissenting reasons for Martin and O'Bonsawin relied on the *United Nations Delcaration on the Rights of Indigenous Peoples* ("UNDRIP") in the interpretation of s. 25. Here, the judges were building on the recognition of the Court in *Reference re An Act respecting First Nations, Inuit and Métis children, youth and families*, 2024 SCC 5, that one of the effects of the federal law implementing UNDRIP had been to "incorporated [UNDRIP] into the country's domestic positive law" (at paras 4 and 15). In the *Reference*, the Court cited several UNDRIP articles in support of the pith and substance of the legislation and finding the *Act* to be within Parliament's jurisdiction under s. 91(24) of the *Constitution Act, 1982*. Beyond this, however, the Court did not provide clear guidance on what "incorporated into the country's domestic positive law" means. But in *Dickson*, the Court clearly used UNDRIP to interpret Canadian law. To that point, the Court had not used UNDRIP to interpret domestic law, including the Constitution, although some lower courts had. There was different views in the lower courts, however, about whether UNDRIP, as an international instrument, benefitted from the presumption of conformity with international law. (This is a judicial rule of interpretation providing that requires domestic law to be interpreted in conformity with Canada's obligations under international law, in the absence of statutory language to the contrary: see *R. v. Hape*, 2007 SCC 26 at paras 53-56.) Some had speculated that in light of guidelines set out by the Court in *Quebec (Attorney General) v. 9147-0732 Québec inc.*, 2020 SCC 32, on when international law can be used to interpret *Charter* rights, it was questionable whether UNDRIP could benefit from the presumption of conformity. The majority applied UNDRIP to its interpretation of s. 25 of the *Charter* without weighing in on this issue, while Justices Martin and O'Bonsawin affirmed their view that the presumption of conformity applies to UNDRIP:

> [317] International human rights law can be a helpful source of information and direction when interpreting *Charter* provisions. The presumption of conformity directs that the *Charter* should be presumed to provide at least as great a protection as that which is afforded by similar provisions in international documents that Canada has ratified (*Reference re Public Service Employee Relations Act*, at p. 349, per Dickson C.J. and Wilson J., dissenting). Binding international instruments carry weight in the *Charter* interpretation exercise (*Quebec (Attorney General) v. 9147-0732 Québec inc.*, 2020 SCC 32, [2020] 3 S.C.R. 426, at para. 38). In this case, *UNDRIP* is binding on Canada and therefore triggers the presumption of conformity.

Chapter 13: *Charter* Antecedents

By Adam Dodek

1 Introduction

When the *British North America Act* was enacted in 1867 (renamed the *Constitution Act, 1867*) there was no consideration given to including a written bill of rights. The preamble to the *British North America Act* stated that Canada was to have "a Constitution similar in principle to that of the United Kingdom". This meant a largely unwritten constitution in which individual rights and freedoms were protected by Parliament and by the courts.

Between 1867 when the Dominion of Canada came into existence and 1982 when the *Charter* came into force, Canadian legislatures enacted many pieces of discriminatory legislation and other laws which restricted rights and freedoms. Few of these laws were ever challenged in court. When they were, Canadian courts and the Judicial Committee of the Privy Council decided these cases based on the division of powers. For example, in 1899 the Privy Council struck down a British Columbia law that prohibited the hiring of "Chinamen" to work in coal mines on the basis the law was *ultra vires* (beyond the power) of the provincial legislature to enact such a law because the subject matter of "aliens and citizenship" lies with the federal Parliament: see *Union Colliery Ltd. v. Bryden*, [1899] AC 580, [1899] UKPC 58 (28 July 1899).

Laws like those in *Union Colliery* were common in western Canada in the late 19th and early 20th centuries. Canadian courts generally found that accepted such discriminatory legislation fell within provincial powers, as seen in *Quong Wing* (1914) below or discriminatory action as in *Christie v. York* below.

A Note on Language: Some of the language used by the Supreme Court of Canada in the cases in this chapter (and elsewhere) is archaic or offensive. Such language is part of the legal history of this country and should not be erased or edited but rather considered, confronted and critiqued.

1.1 *Quong Wing v. The King*, 1914 CanLII 608 (SCC), 49 SCR 440.

Supreme Court of Canada, Sir Charles Fitzpatrick, C.J., Davies, ldington, Duff, and Anglin, JJ.

February 23, 1914.

FITZPATRICK, C.J. :-The appellant, a Chinaman and a naturalized Canadian citizen, was convicted of employing white female servants contrary to the provisions of chapter 17 of the statutes of Saskatchewan, 1912, and, for his defence, he contends that the Act in question is ultra vires of the provincial legislature.

It is urged that the aim of the Act is to deprive the defendant and the Chinese generally, whether naturalized or not, of the rights ordinarily enjoyed by the other inhabitants of the Province of Saskatchewan and that the subject-matter of the Act is within the exclusive legislative authority of the Parliament of Canada.

The Act in question reads as follows:-

1. No person shall employ in any capacity any white woman or girl or permit any white woman or girl to reside or lodge in or to work in or, save as a *bona fide* customer in a public apartment thereof only, to frequent any restaurant, laundry or other place of business or amusement owned, kept or managed by any Chinaman.
2. Any employer guilty of any contravention or violation of this Act, shall, upon summary conviction be liable to a penalty not exceed ing $100 and, in default of payment, to imprisonment for a term not exceeding two months.

In terms the section purports merely to regulate places of business and resorts owned and managed by Chinese, independent of nationality, in the interest of the morals of women and girls in Saskatchewan. There are many factory Acts passed by provincial legislatures to fix the age of employment and to pro vide for proper accommodation for workmen and the convenience of the sexes which are intended not only to safeguard the bodily health, but also the morals od: Canadian workers, and I fail to understand the difference in principle between that legislation and this.

It is also undoubted that the legislatures authorize the making by municipalities of disciplinary and police regulations to prevent disorders on Sundays and at night, and in that connection to compel tavern and saloon keepers to close their drinking places at certain hours. Why should those legislatures not have power to enact that women and girls should not be employed in certain industries or in certain places or by a certain class of people? This legislation may affect the civil rights of Chinamen, but it is primarily directed to the protection of children and girls.

The Chinaman is not deprived of the right to employ others, but the classes from which he may select his employees are limited. In certain factories women or children under a certain age are not ·permitted to work at all, and, in others, they may not be employed except subject to certain restrictions in the interest of the employee's bodily and moral welfare. The difference between the restrictions imposed on all Canadians by such legislation and those resulting from the Act in question is one of degree, not of kind.

I would dismiss the appeal with costs.

DAVIES, J. :

. . .

I think the pith and substance of the legislation now before us is entirely different: Its object and purpose is the protection of white women and girls; and the prohibition of their employment or residence, or lodging, or working, etc., in any place of business or amusement owned, kept or managed by any Chinaman is for the purpose o:f ensuring that protection. Such legislation does not, in my judgment, come within the class of legislation or regulation which the Judicial Committee held ultra vires of the provincial legislatures in the case of *The Union Collieries* v. *Bryden,* [1899] A.C. 580.

The right to employ white women in any capacity or in any class of business is a civil right, and legislation upon that subject is clearly within the powers of the provincial legislatures. 'l'he right to guarantee and ensure their protection from a moral standpoint is, in my opinion, within such provincial powers and, if the legislation is *bona fide* for that purpose, it will be upheld even though it may operate prejudicially to one class or race of people.

There is no doubt in my mind that the prohibition is a racial one and that it does not cease to operate because a Chinaman becomes naturalized. It extends and was intended to extend to all Chinamen as such, naturalized or aliens. Questions which might arise in cases of mixed blood do not arise here.

The Chinaman prosecuted in this case was found to have been born in China and of Chinese parents and, although, at the date of the offence ·charged, he had become a naturalized British subject, and had changed his political allegiance, he had not ceased to be a ''Chinaman'' within the meaning of that word as used in the statute. This would accord with the interpretation of the word "Chinaman" adopted by the judicial committee in the case of *The Union Colliery Company* v. *Bryden,* [1899] A.C. 580.

The prohibition against the employment of white women was not aimed at alien Chinamen simply or at Chinamen having any political affiliation. It was against "any Chinaman" whether owing allegiance to the rulers of the Chinese Empire, or the United States Republic, or the British Crown. In other words, it was not aimed at any class of Chinamen, or at the political status of Chinamen, but at Chinamen as men of a particular race or blood, and whether aliens or naturalized.

For these reasons, I would dismiss the appeal with costs.

lDINGTON, J. (dissenting) :-

. . .

The first question raised is whether or not the appellant, who is admitted to have been born in China, of Chinese parents but was at the time of the alleged offence a naturalized British subject, falls within the Act. It is quite clear that the term "any Chinaman'' may, in the plain, ordinary sense of the words, be so construed as to include naturalized British subjects. It is, to my mind, equally clear that, having regard to many considerations, to some of which I am about to advert, a proper and effective meaning may be given to this term without extending it to cover the naturalized British subject.

The Act, by its title, refers to female labour and then proceeds to deal with only the case of white women. In truth, its evident purpose is to curtail or restrict the rights of Chinamen. In view of the provisions of the Naturalization Act, under and pursuant to which the appellant, presumably, has become a naturalized British subject, one must have the gravest doubt if it ever was intended to apply such legislation to one so naturalized.

. . .

The political rights given any one, whether naturalized or natural-born British subjects, may in many respects be, limited and varied by the legislation of a province, even if discriminating in favour of one section or class as against another. Some political rights or limitations thereof may be obviously beyond the 'power of such legislature. But the '' other rights, powers and privileges" (if meaning anything) of natural-born British subjects to be shared by naturalized British subjects, do not so dearly fall within the powers of the legislatures to dis criminate with regard to as between classes or sections of the community.

It may well be argued that the highly prized gifts of equal freedom and equal opportunity before the law, are so characteristic of the tendency of all British modes of thinking and acting in relation thereto, that they are not to be impaired by the whims of a legislature; and that equality taken away unless and until forfeited for causes which civilized men recognize as valid. For example, is it competent for a legislature to create a system of slavery and, above all, such a system as applied to naturalized British subjects? This legislation is but a piece of the product of the mode of thought that begot and maintained slavery; not so long ago fiercely claimed to be a laudable system of governing those incapable of governing themselves.

. . .

The appellant having, under the Naturalization Act (as I think fair to infer) become a British subject, he has presumably been certified to as a man of good character and enjoying the assurance, conveyed in section thereof which I have quoted, of equal treatment with other British subjects, I shall not willingly impute an intention to the legislature to violate that assurance by this legislation specially aimed at his fellow-countrymen in origin. Indeed, in a piece of legislation alleged to have been promoted in the interests of morality, it would seem a strange thing to find it founded upon a breach of good faith which lies at the root of nearly all morality worth bothering one's head about.

. . .

Looked at from this point of view I am constrained to think that this Act must be construed as applicable only to those Chinamen who have not become naturalized British subjects, and ·is not applicable to the appellant who has become such.

Whether it is *ultra vires* or *intra vires* the alien Chinamen is a question with which, in this view, I have nothing to do.

. . .

I think, therefore, that this appeal should be allowed with costs.

Appeal dismissed with costs.

N.B. Leave to appeal was refused by the Judicial Committee of the Privy Council, May 19, 1914.

1.2 *Christie v. The York Corporation*, 1939 CanLII 39 (SCC), [1940] SCR 139.

Present: Duff C.J. and Rinfret, Crocket, Davis and Kerwin JJ.

ON APPEAL FROM THE COURT OF KING'S BENCH, APPEAL SIDE, PROVINCE OF QUEBEC

The judgment of the Chief Justice and of Rinfret, Crocket and Kerwin JJ. was delivered by

Rinfret J.—The appellant, who is a negro, entered a tavern owned and operated by the respondent, in the city of Montreal, and asked to be served a glass of beer; but the waiters refused him for the sole reason that they had been instructed not to serve coloured persons. He claimed the sum of $200 for the humiliation he suffered.

The respondent alleged that in giving such instructions to its employees and in so refusing to serve the appellant it was well within its rights; that its business is a private enterprise for gain; and that, in acting as it did, the respondent was merely protecting its business interests.

It appears from the evidence that, in refusing to sell beer to the appellant, the respondent's employees did so quietly, politely and without causing any scene or commotion whatever. If any notice was attracted to the appellant on the occasion in question, it arose out of the fact that the appellant persisted in demanding beer after he had been so refused and went to the length of calling the police, which was entirely unwarranted by the circumstances.

The learned trial judge awarded the appellant the sum of $25 and costs of the action as brought. The only ground of the judgment was that the rule whereby the respondent refused to serve negroes in its tavern was "illegal," according to sections 19 and 33 of the Quebec *Licence Act* (Ch. 25 of R.S.P.Q., 1925).

. . .

In considering this case, we ought to start from the proposition that the general principle of the law of Quebec is that of complete freedom of commerce. Any merchant is free to deal as he may choose with any individual member of the public. It is not a question of motives or reasons for deciding to deal or not to deal; he is free to do either. The only restriction to this general principle would be the existence of a specific law, or, in the carrying out of the principle, the adoption of a rule contrary to good morals or public order. . . .

. . .

This principle was followed by the Court of King's Bench in the case of *Loew's Montreal Theatres* v. *Reynolds* (1919) Q.R. 30 K.B. 459, where the facts presented a great deal of similarity with those of the present case. The plaintiff, a coloured man, sued Loew's Theatres Ltd. in damages because he had been denied a seat in the orchestra at its theatre, on account of his colour, for the reason that the management had decided that no person belonging to that race would be admitted to the orchestra seats. The Court decided that the management of a theatre may impose restrictions and make rules of that character.

. . .

The only point to be examined therefore is whether sec. 33 of the Quebec *Licence Act,* upon which the learned trial judge relied in maintaining the appellant's action, applies to the present case.

The view of the majority of the Court of King's Bench was that it did not; and we agree with that interpretation.

Section 33 reads:

> No licensee for a restaurant may refuse, without reasonable cause, to give food to travellers.
>
> For the purpose of our decision, there are three words to be considered in that section: "restaurant," "food," and "travellers."
>
> The word "restaurant" is defined in the Act (sec. 19-2):
>
> > A "restaurant" is an establishment, provided with special space and accommodation, where, in consideration of payment, food (without lodging) is habitually furnished to travellers.
>
> The word "traveller" is also defined in the same section as follows:
>
> > A "traveller" is a person who, in consideration of a given price per day, or fraction of a day, on the American or European plan, or per meal, *à table d'hôte* or *à la carte,* is furnished by another person with food or lodging, or both.
>
> With the aid of those two definitions in the Act, we think it must be decided that, in this case, the appellant was not a traveller who was asking to be furnished with food in a restaurant.
>
> Perhaps, as stated by the learned trial judge, a glass of beer may, in certain cases, be considered as food. But we have no doubt that, in view of the definitions contained in the Act, the appellant was not a traveller asking for food in a restaurant within the meaning of the statute. . . .
>
> . . .
>
> It will be seen therefore that the appellant cannot be brought within the terms of sec. 33 of the Quebec *Licence Act.* He was not a traveller asking for a meal in a restaurant. According to the definitions, he was only a person asking for a glass of beer in a tavern.
>
> As the case is not governed by any specific law or more particularly by sec. 33 of the Quebec *Licence Act,* it falls under the general principle of the freedom of commerce; and it must follow that, when refusing to serve the appellant, the respondent was strictly within its rights.
>
> . . .
>
> For these reasons, the appeal ought to be dismissed with costs.

[Justice Henry Hague Davis wrote a strong dissent which is worth reading. He took a similar approach to the majority, engaging in statutory construction but reached the opposite result].

2 The Implied Bill of Rights

Despite the absence of a bill of rights, the Supreme Court of Canada found ways to protect rights and freedoms in certain circumstances. Building on the Privy Council's decision in *Union Colliery,* the Supreme Court of Canada used the division of powers to strike down provincial laws that restricted rights and freedoms. In a series of cases – many of them dealing with the repression of Jehovah's Witnesses in Quebec – the Supreme Court "implied" the existence of certain rights and freedoms from other parts of the Canadian Constitution. These cases have become known as "the implied bill of rights" cases.

The first case - the *Alberta Press Case* (also known as the *Alberta Press Act Reference* or the *Reference re Alberta Statutes*) -- involved a challenge to several statutes enacted by Alberta's Social Credit government in 1937 including the "Accurate News and Information Act" which imposed severe restrictions on freedom of the press, including requiring newspapers to print "clarifications" of stories that a government-appointed Board considered inaccurate and to reveal sources when demanded. The law also empowered the provincial government to prohibit the publication of any article or any newspaper.

2.1 *Reference Re Alberta Statutes - The Bank Taxation Act; The Credit of Alberta Regulation Act; and the Accurate News and Information Act*, 1938 CanLII 1 (SCC), [1938] SCR 100

> The judgment of Duff C.J. and Davis J. was delivered by
>
> THE CHIEF JUSTICE.
>
> . . .
>
> We now turn to Bill No. 9.
>
> This Bill contains two substantive provisions. Both of them impose duties upon newspapers published in Alberta which they are required to perform on the demand of " the Chairman," who is, by the interpretation clause, the Chairman of " the Board constituted by section 3 of *The Alberta Social Credit Act."*
>
> . . .
>
> Under the constitution established by *The British North America Act,* legislative power for Canada is .vested in one Parliament consisting of the Sovereign, an upper house styled the Senate, and the House of Commons. Without entering in detail upon an. examination of the enactments of the Act relating to the House of Commons, it can be said that these provisions manifestly contemplate a House of Commons which is to be, as the name itself implies, a representative body; constituted, that is to say, by members elected by such of the population of the united provinces as may be qualified to vote. The preamble of the statute, moreover, shows plainly enough that the constitution of the Dominion is to be similar in principle to that of the United Kingdom. The statute contemplates a parliament working under the influence of public opinion and public discussion. There can be no controversy that such institutions derive their efficacy from the free public discussion of affairs, from criticism and answer and counter-criticism, from attack upon policy and administration and defence and counter-attack; from the freest and fullest analysis and examination from every point of view of political proposals. This is signally true in respect of the discharge by Ministers of the Crown of their responsibility to Parliament, by members of Parliament of their duty to the electors, and by the electors themselves of their responsibilities in the election of their representatives.
>
> The right of public discussion is, of course, subject to legal restrictions; those based upon considerations of decency and public order, and others conceived for the protection of various private and public interests with which, for example, the laws of defamation and sedition are concerned.
>
> . . .
>
> But this by no means exhausts the matter. Any attempt to abrogate this right of public debate or to suppress the traditional forms of the exercise of the right (in public meeting and through the press) would, in our opinion, be incompetent to the legislatures of the provinces, or to the legislature of any one of the provinces, as repugnant to the provisions of *The British North America Act,* by which the Parliament of Canada is established as the legislative organ of the people of Canada under the Crown, and Dominion legislation enacted pursuant to the legislative authority given by those provisions. The subject matter of such legislation could not be described as a provincial matter purely; as in substance exclusively a matter of property and civil rights within the province, or a matter private or local within the province.

…

The question, discussed in argument, of the validity of the legislation before us, considered as a wholly independent enactment having no relation to the *Alberta Social Credit Act,* presents no little difficulty. Some degree of regulation of newspapers everybody would concede to the provinces. Indeed, there is a very wide field in which the provinces undoubtedly are invested with legislative authority over newspapers; but the limit, in our opinion, is reached when the legislation effects such a curtailment of the exercise of the right of public discussion as substantially to interfere with the working of the parliamentary institutions of Canada as contemplated by the provisions of *The British North America Act* and the statutes of the Dominion of Canada. Such a limitation is necessary, in our opinion, "in order," to adapt the words quoted above from the judgment in *Bank of Toronto v. Lambe* (1887) 12 AC 575, "to afford scope " for the working of such parliamentary institutions. In this region of constitutional practice, it is not permitted to a provincial legislature to do indirectly what cannot be done directly *(Great West Saddlery Co. v. The King*, 1921 CanLII 408 (UK JCPC), [1921] 2 A.C. 91, at 100*).*

. . .

The legislation now under consideration manifestly places in the hands of the Chairman of the Social Credit Commission autocratic powers which, it may well be thought, could, if arbitrarily wielded, be employed to frustrate in Alberta these rights of the Crown and the people of Canada as a whole. We do not, however, find it necessary to express an opinion upon the concrete question whether or not this particular measure is invalid as exceeding the limits indicated above.

The answer to the question concerning this Bill is that it is *ultra vires.*

. . .

Justice Lawrence Cannon wrote a separate opinion in which he held that the Alberta press bill contravened the federal criminal law power (s 91(27) of the *Constitution Act, 1867*). The strategy of employing the federal criminal law power to strike down provincial legislation that infringed certain rights and freedoms continued to be used by the Supreme Court of Canada from time to time: see e.g. *Nova Scotia Board of Censors v. McNeil*, 1978 CanLII 6 (SCC), [1978[2 SCR 662 (per Laskin CJ, dissenting); and *R. v. Morgentaler*, 1993 CanLII 74 (SCC), [1993] 3 SCR 46.

Sometimes the implied bill of rights is more narrowly understood to mean what Justice Abbott suggested in the *Alberta Press* case – that no government, federal or provincial, could restrict free speech.

It was common for the Supreme Court well into the 1960s for each judge to write their own opinion. This practice was known as "*seriatim*" opinion writing and could often be quite confusing. In *Roncarelli v. Duplessis* (1959), there were seven separate opinions. The opinion of Justice Ivan Rand has had the most enduring impact, and it is excerpted below.

2.2 *Roncarelli v. Duplessis*, 1959 CanLII 50 (SCC), [1959] SCR 121

ON APPEAL FROM THE COURT OF QUEEN'S BENCH, APPEAL SIDE, PROVINCE OF QUEBEC

PRESENT: Kerwin C.J. and Taschereau, Rand, Locke, Cartwright, Fauteux, Abbott, Martland and Judson JJ.

The judgment of Rand and Judson JJ. was delivered by

RAND J. :-The material facts from which my conclusion is drawn are these. The appellant was the proprietor of a restaurant in a busy section of Montreal which in 1946 through its transmission to him from his father had been continuously licensed for the sale of liquor for approximately 34 years; he is of good education and repute and the restaurant was of a superior class. On December 4 of that year, while his application for annual renewal was before the Liquor Commission, the existing license was cancelled and his application for renewal rejected, to which was added a declaration by the respondent that no future license would ever issue to him. These primary facts took place in the following circumstances.

For some years the appellant had been an adherent of a rather militant 'Christian religious sect known as the Witnesses of Jehovah. Their ideology condemns the established church institutions and stresses the absolute and exclusive personal relation of the individual to the Deity without human intermediation or intervention.

The first impact of their proselytizing zeal upon the Roman Catholic church and community in Quebec, as might be expected, produced a violent reaction. Meetings were forcibly broken up, property damaged, individuals ordered out of communities, in one case out of the province, and generally, within the cities and towns, bitter controversy aroused. The work of the Witnesses was carried on both by word of mouth and by the distribution of printed matter, the latter including two periodicals known as "The Watch Tower" and "Awake", sold at a small price.

In 1945 the provincial authorities began to take steps to bring an end to what was considered insulting and offensive to the religious beliefs and feelings of the Roman Catholic population. Large scale arrests were made of young men and women, by whom the publications mentioned were being held out for sale, under local by-laws requiring a licence for peddling any kind of wares. Altogether almost one thousand of such charges were laid. The penalty involved in Montreal, where most of the arrests took place, was a fine of $40, and as the Witnesses disputed liability, bail was in all cases resorted to.

The appellant, being a person of some means, was accepted by the Recorder's 'Court as bail without question, and up to November 12, 1946, he had gone security in about 380 cases, some of the accused being involved in repeated offences. Up to this time there had been no suggestion of impropriety; the security of the appellant was taken as so satisfactory that at times, to avoid delay when he was absent from the city, recognizances were signed by him in blank and kept ready for completion by the Court officials. The reason for the accumulation of charges was the doubt that they could be sustained in law. Apparently the legal officers of Montreal, acting in concert with those of the Province, had come to an agreement with the attorney for the Witnesses to have a test case proceeded with. Pending that, however, there was no stoppage of the sale of the tracts and this became the annoying circumstance that produced the volume of proceedings.

On or about November 12 it was decided to require bail in cash for Witnesses so arrested and the sum set ranged from $100 to $300. No such bail was furnished by the appellant; his connection with giving security ended with this change of practice; and in the result, all of the charges in relation to which he had become surety were dismissed.

At no time did he take any part in the distribution of the tracts: he was an adherent of the group but nothing more. It was shown that he had leased to another member premises in Sherbrooke which were used as a hall for carrying on religious meetings: but it is unnecessary to do more than mention that fact to reject it as having no bearing on the issues raised. Beyond the giving of bail and being an adherent, the appellant is free from any relation that could be tortured into a badge of character pertinent to his fitness or unfitness to hold a liquor licence.

The mounting resistance that stopped the surety bail sought other means of crushing the propagandist invasion and among the circumstances looked into was the situation of the appellant. Admittedly an adherent, he was enabling these protagonists to be at large to carry on their campaign of publishing what they believed to be the Christian truth as revealed by the Bible; he was also the holder of a liquor licence, a "privilege" granted by the Province, the profits from which, as it was seen by the authorities, he was using to promote the disturbance of settled beliefs and arouse community disaffection generally. Following discussions between the then Mr. Archambault, as the personality of the Liquor Commission, and the chief prosecuting officer in Montreal, the former, on or about November 21, telephoned to the respondent, advised him of those facts, and queried what should be done. Mr. Duplessis answered that the matter was serious and that the identity of the person furnishing bail and the liquor licensee should be put beyond doubt. A few days later, that identity being established through a private investigator, Mr. Archambault again communicated with the respondent and, as a result of what passed between them, the licence, as of December 4, 1946, was revoked.

In the meantime, about November 25, 1946, a blasting answer had come from the Witnesses. In an issue of one of the periodicals, under the heading "Quebec's Burning Hate", was a searing denunciation of what was alleged to be the savage persecution of Christian believers. Immediately instructions were sent out from the department of the Attorney-General ordering the confiscation of the issue and proceedings were taken against one Boucher charging him with publication of a seditious libel.

It is then wholly as a private citizen, an adherent of a religious group, holding a liquor licence and furnishing bail to arrested persons for no other purpose than to enable them to be released from detention pending the determination of the charges against them, and with no other relevant considerations to be taken into account, that he is involved in the issues of this controversy.

The complementary state of things is equally free from doubt. From the evidence of Mr. Duplessis and Mr. Archambault alone, it appears that the action taken by the latter as the general manager and sole member of the Commission was dictated by Mr. Duplessis as Attorney-General and Prime Minister of the province; that that step was taken as a means of bringing to a halt the activities of the Witnesses, to punish the appellant for the part he had played not only by revoking the existing licence but in declaring him barred from one "forever", and to warn others that they similarly would be stripped of provincial "privileges" if they persisted in any activity directly or indirectly related to the Witnesses and to the objectionable campaign. The respondent felt that action to be his duty, something which his conscience demanded of him; and as representing the provincial government his decision became automatically that of Mr. Archambault and the Commission.

. . .

In these circumstances, when the *de facto* power of the Executive over its appointees at will to such a statutory public function is exercised deliberately and intentionally to destroy the vital business interests of a citizen, is there legal redress by him against the person so acting? This calls for an examination of the statutory provisions governing the issue, renewal and revocation of liquor licences and the scope of authority entrusted by law to the Attorney-General and the government in relation to the administration of the Act.

. . .

The provisions of the statute, which may be supplemented by detailed regulations, furnish a code for the complete administration of the sale and distribution of alcoholic liquors directed by the Commission as a public service, for all legitimate purposes of the populace. It recognizes the association of wines and liquors as embellishments of food and its ritual and as an interest of the public. As put in Macbeth, the "sauce to meat is ceremony", and so we have restaurants, cafés, hotels and other places of serving food, specifically provided for in that association.

At the same time the issue of permits has a complementary interest in those so catering to the public. The continuance of the permit over the years, as in this case, not only recognizes its virtual ncessity [sic] to a superior class restaurant but also its identification with the business carried on. The provisions for assignment of the permit are to this most pertinent and they were exemplified in the continuity of the business here. As its exercise continues, the economic life of the holder becomes progressively more deeply implicated with the privilege while at the same time his vocation becomes correspondingly dependent on it.

The field of licensed occupations and businesses of this nature is steadily becoming of greater concern to citizens generally. It is a matter of vital importance that a public administration that can refuse to allow a person to enter or continue a calling which, in the absence of regulation, would be free and legitimate, should be conducted with complete impartiality and integrity; and that the grounds for refusing or cancelling a permit should unquestionably be such and such only as are incompatible with the purposes envisaged by the statute: the duty of a Commission is to serve those purposes and those only. A decision to deny or cancel such a privilege lies within the "discretion" of the Commission; but that means that decision is to be based upon a weighing of considerations pertinent to the object of the administration.

In public regulation of this sort there is no such thing as absolute and untrammelled "discretion", that is that action can be taken on any ground or for any reason that can be suggested to the mind of the administrator; no legislative Act can, without express language, be taken to contemplate an unlimited arbitrary power exercisable for any purpose, however capricious or irrelevant, regardless of the nature or purpose of the statute. Fraud and corruption in the 'Commission may not be mentioned in such statutes but they are always implied as exceptions. "Discretion" necessarily implies good faith in discharging public duty; there is always a perspective within which a statute is intended to operate; and any clear departure from its lines or objects is just as objectionable as fraud or corruption. Could an applicant be refused a permit because he had been born in another province, or because of the colour of his hair? The ordinary language of the legislature cannot be so distorted.

To deny or revoke a permit because a citizen exercises an unchallengeable right totally irrelevant to the sale of liquor in a restaurant is equally beyond the scope of the discretion conferred. There was here not only revocation of the existing permit but a declaration of a future, definitive disqualification of the appellant to obtain one: it was to be "forever". This purports to divest his citizenship status of its incident of membership in the class of those of the public to whom such a privilege could be extended. Under the statutory language here, that is not competent to the Commission and *a fortiori* to the government or the respondent: *McGillivray v. Kimber* (1915), 1915 CanLII 608 (SCC), 52 SCR 146. There is here an administrative tribunal which, in certain respects, is to act in a judicial manner; and even on the view of the dissenting justices in *McGillivray,* there is liability: what could be more malicious than to punish this licensee for having done what he had an absolute right to do in a matter utterly irrelevant to the *Liquor Act?* Malice in the proper sense is simply acting for a reason and purpose knowingly foreign to the administration, to which was added here the element of intentional punishment by what was virtually vocation outlawry.

. . .

The act of the respondent through the instrumentality of the Commission brought about a breach of an implied public statutory duty toward the appellant; it was a gross abuse of legal power expressly intended to punish him for an act wholly irrelevant to the statute, a punishment which inflicted on him, as it was intended to do, the destruction of his economic life as a restaurant keeper within the province. Whatever may be the immunity of the Commission or its member from an action for damages, there is none in the respondent. He was under no duty in relation to the appellant and his act was an instrusion [sic!] upon the functions of a statutory body. The injury done by him was a, fault engaging liability within the principles of the underlying public law of Quebec: *Mostyn v. Fabrigas,* 98 E.R. 1021, and under art. 1053 of the *Civil Code.* That, in the presence of expanding administrative regulation of economic activities, such ,a step and its consequences are to be suffered by the victim without recourse or remedy, that an administration according to law is to be superseded by action dictated by and according to the arbitrary

> likes, dislikes and irrelevant purposes of public officers acting beyond their duty, would signalize the beginning of disintegration of the rule of law as a fundamental postulate of our constitutional structure. An administration of licences on the highest level of fair and impartial treatment to all may be forced to follow the practice of "first come, first served", which makes the strictest observance of equal responsibility to all of even greater importance; at this stage of developing government it would be a danger of high con-sequence to tolerate such a departure from good faith in executing the legislative purpose.
>
> . . .
>
> I would therefore allow the appeals, set aside the judgment of the Court of Queen's Bench and restore the judgment at trial modified by increasing the damages to the sum of $33,123.53. The appellant should have his costs in the Court of Queen's Bench and in this Court.
>
> . . .

Roncarelli v. Duplessis was part of a quartet of cases involving Jehovah's Witnesses in Quebec decided by the Supreme Court in the 1950s that formed part of the implied bill of rights. In 1951, the Supreme Court had overturned a conviction for seditious libel against a Jehovah's Witness who had distributed pamphlets entitled "Quebec's Burning Hate for God and Christ and Freedom is the Shame of All Canada" which criticized the government of Quebec's suppression and persecution of Jehovah's Witnesses in the province: *Boucher v. The King*, 1950 CanLII 2 (SCC), [1951] SCR 265. A year later, the Supreme Court struck down a Quebec City by-law which prohibited the distribution of pamphlets in the streets without permission from the chief of police: *Saumur v. The City of Quebec,* 1953 CanLII 3 (SCC), [1953] 2 SCR 299. And in 1955, the high court allowed a homeowner who had hosted a Jehovah's Witnesses meeting that was broken up by police to sue the police for damages caused by them to his property in the raid: *Chaput v. Romain*, 1955 CanLII 74 (SCC), [1955] SCR 834. See also *Switzman v. Elbling,* 1957 CanLII 2 (SCC), [1957] SCR 285 (the Padlock Law case).

For a profile of Frank Roncarelli see the chapter in Adam Dodek et al., *Constitutional Challengers: The Heroes, Villains, and Crusaders Behind Canada's Biggest Cases* (Toronto: Dundurn, 2026).

There are many articles that have been written about *Roncarelli v. Duplessis*. See for example Eric M. Adams, "Building a Law of Human Rights: Roncarelli v. Duplessis in Canadian Constitutional Culture" (2010) 55:3 McGill Law Journal 437 and David Mullan, "*Roncarelli v. Duplessis* and Damages for Abuse of Power: For What Did it Stand in 1959 and For What Does it Stand in 2009?" (2010) 55:3 McGill Law Journal 587.

We should not exaggerate the impact of the "implied bill of rights" cases on the lives of Canadians before 1982. The implied bill of rights had next to no impact on some of the worst instances of deprivation of rights in Canadian history: the internment of Japanese-Canadians during World War II, their subsequent deportation to Japan after the war and discrimination against Indigenous Peoples in Canada, most notably Indian Residential Schools. See Eric M. Adams & Jordan Stanger-Ross, *Challenging Exile: Japanese Canadians and the Wartime Constitution* (Vancouver: UBC Press, 2025).

Moreover, despite the victory in the *Persons Case*, women achieved few victories for women's rights in the courts during these years. The recognition and advancement of women's rights in the first six decades of the 20th century was largely achieved in the political realm – through law reform – not through the courts.

Consider the circumstances where legislatures may be better suited than the courts to protect and advance rights and vice versa.

3 The Canadian Bill of Rights

3.1 Introduction

After World War II, revelations of the horrors of the Holocaust helped spur the development of an international human rights culture. In 1948, the United Nations General Assembly adopted the *Universal Declaration of Human Rights*. At its core, the Universal Declaration recognized the inherent dignity and the equal and inalienable rights of all members of the human family. This idea that individuals had certain rights and were entitled to protection simply by virtue of being human and not because they were granted rights or protection by governments, leaders or states was a radical departure from past practice. Canadian leadership played an important role in the drafting and the adoption of the Universal Declaration.

In Canada, there was growing recognition of rights abuses that had taken place in our country; most notably the internment of Japanese-Canadians during World War II, discrimination against Chinese Canadians, repression against certain religious minorities, etc.

In 1960, the government of Progressive Conservative Prime Minister John Diefenbaker enacted the *Canadian Bill of Rights*. Diefenbaker hailed from Saskatchewan and he had experienced discrimination because of his German last name and in his criminal defence practice he defended many marginalized individuals who had been discriminated against.

The *Canadian Bill of Rights* was an important milestone in the history of rights-protection in Canada. However, its reach was limited. First, it was not part of the Constitution; it was a statutory bill of rights. One of the key issues that would arise was the extent to which "the Bill" (as it came to be called) prevailed over other statutes. Second, it only applied to federal laws and actions of the federal executive or federal bodies. It had no application to provincial laws or actions. Thus, the Bill would not have had any relevance to the "implied bill of rights" cases discussed above which all involved provincial statutes or provincial action. Finally, the Bill only protected a limited number of rights. The text of the Bill is short and it is reproduced in its entirety below.

3.2 *Canadian Bill of Rights*, S.C. 1960, c. 44

> An Act for the Recognition and Protection of Human Rights and Fundamental Freedoms
>
> **Preamble**
>
> The Parliament of Canada, affirming that the Canadian Nation is founded upon principles that acknowledge the supremacy of God, the dignity and worth of the human person and the position of the family in a society of free men and free institutions;
>
> Affirming also that men and institutions remain free only when freedom is founded upon respect for moral and spiritual values and the rule of law;
>
> And being desirous of enshrining these principles and the human rights and fundamental freedoms derived from them, in a Bill of Rights which shall reflect the respect of Parliament for its constitutional authority and which shall ensure the protection of these rights and freedoms in Canada:
>
> Therefore Her Majesty, by and with the advice and consent of the Senate and House of Commons of Canada, enacts as follows:
>
> **PART I Bill of Rights**

Recognition and declaration of rights and freedoms

1 It is hereby recognized and declared that in Canada there have existed and shall continue to exist without discrimination by reason of race, national origin, colour, religion or sex, the following human rights and fundamental freedoms, namely,

(a) the right of the individual to life, liberty, security of the person and enjoyment of property, and the right not to be deprived thereof except by due process of law;

(b) the right of the individual to equality before the law and the protection of the law;

(c) freedom of religion;

(d) freedom of speech;

(e) freedom of assembly and association; and

(f) freedom of the press.

Construction of law

2 Every law of Canada shall, unless it is expressly declared by an Act of the Parliament of Canada that it shall operate notwithstanding the *Canadian Bill of Rights*, be so construed and applied as not to abrogate, abridge or infringe or to authorize the abrogation, abridgment or infringement of any of the rights or freedoms herein recognized and declared, and in particular, no law of Canada shall be construed or applied so as to

(a) authorize or effect the arbitrary detention, imprisonment or exile of any person;

(b) impose or authorize the imposition of cruel and unusual treatment or punishment;

(c) deprive a person who has been arrested or detained

(i) of the right to be informed promptly of the reason for his arrest or detention,

(ii) of the right to retain and instruct counsel without delay, or

(iii) of the remedy by way of habeas corpus for the determination of the validity of his detention and for his release if the detention is not lawful;

(d) authorize a court, tribunal, commission, board or other authority to compel a person to give evidence if he is denied counsel, protection against self crimination or other constitutional safeguards;

(e) deprive a person of the right to a fair hearing in accordance with the principles of fundamental justice for the determination of his rights and obligations;

(f) deprive a person charged with a criminal offence of the right to be presumed innocent until proved guilty according to law in a fair and public hearing by an independent and impartial tribunal, or of the right to reasonable bail without just cause; or

(g) deprive a person of the right to the assistance of an interpreter in any proceedings in which he is involved or in which he is a party or a witness, before a court, commission, board or other tribunal, if he does not understand or speak the language in which such proceedings are conducted.

Duties of Minister of Justice

3 (1) Subject to subsection (2), the Minister of Justice shall, in accordance with such regulations as may be prescribed by the Governor in Council, examine every regulation transmitted to the Clerk of the Privy Council for registration pursuant to the *Statutory Instruments Act* and every Bill introduced in or presented to the House of Commons by a Minister of the Crown, in order to ascertain whether any of the provisions thereof are inconsistent with the purposes and provisions of this Part and he shall report any such inconsistency to the House of Commons at the first convenient opportunity.

Exception

(2) A regulation need not be examined in accordance with subsection (1) if prior to being made it was examined as a proposed regulation in accordance with section 3 of the *Statutory Instruments Act* to ensure that it was not inconsistent with the purposes and provisions of this Part.

Short title

4 The provisions of this Part shall be known as the *Canadian Bill of Rights*.

Part II

Savings

5 (1) Nothing in Part I shall be construed to abrogate or abridge any human right or fundamental freedom not enumerated therein that may have existed in Canada at the commencement of this Act.

"Law of Canada" defined

(2) The expression "law of Canada" in Part I means an Act of the Parliament of Canada enacted before or after the coming into force of this Act, any order, rule or regulation thereunder, and any law in force in Canada or in any part of Canada at the commencement of this Act that is subject to be repealed, abolished or altered by the Parliament of Canada.

Jurisdiction of Parliament

(3) The provisions of Part I shall be construed as extending only to matters coming within the legislative authority of the Parliament of Canada.

3.3 Interpretation of the *Bill of Rights*

There was only one occasion where the Supreme Court declared a law inoperative because of its conflict with the *Bill of Rights*. This occurred in 1969 in *R. v. Drybones*, 1969 CanLII 1 (SCC), [1970] SCR 282. The impact of *Drybones* was seriously limited in ***Attorney General of Canada v. Lavell***, 1973 CanLII 175 (SCC), [1974] SCR 1349.

3.3.1 *The Queen v. Drybones*, 1969 CanLII 1 (SCC), [1970] SCR 282

Present: Cartwright C.J. and Fauteux, Abbott, Mart-land, Judson, Ritchie, Hall, Spence and Pigeon JJ.

ON APPEAL FROM THE COURT OF APPEAL FOR THE NORTHWEST TERRITORIES

The judgment of Fauteux, Martland, Judson, Ritchie and Spence JJ. was delivered by

RITCHIE J.-This is an appeal brought with leave of this Court from a judgment of the Court of Appeal for the Northwest Territories dismissing an appeal by the Crown from a judgment of Mr. Justice W. G. Morrow of the Territorial Court of the Northwest Territories[1] by which he had acquitted Joseph Drybones of being "unlawfully intoxicated off a reserve" contrary to s. 94(b) of the *Indian Act,* R.S.C.1952, c. 149, after having heard an appeal by way of trial *de novo* from a judgment of Magistrate Anderson-Thompson who had convicted the respondent of this offence and sentenced him to be fined $10 and costs and in default to spend three days in custody. The full charge against Drybones was that he,

> On or about the 8th of April, 1967 at Yellowknife in the Northwest Territories, being an Indian, was unlawfully intoxicated off a reserve, contrary to s. 94(0 of the Indian Act.

The respondent is an Indian and he was indeed intoxicated on the evening of April 8, 1967, on the premises of the Old Stope Hotel in Yellowknife in the Northwest Territories where there is no "reserve" within the meaning of the *Indian Act.*

When he was first arraigned before Magistrate Anderson-Thompson, Drybones, who spoke no English, pleased guilty to this offence, but on appeal to the Territorial Court, Mr. Justice Morrow found that there was some serious doubt as to whether he fully appreciated his plea in the lower court and he was allowed to withdraw that plea whereafter the appeal proceeded as a trial *de novo* with a plea of not guilty. Section 94 of the *Indian Act* reads as follows:

> 94. An Indian who
>
> (a) has intoxicants in his possession,
>
> (b) is intoxicated, or
>
> (c) makes or manufactures intoxicants off a re-serve, is guilty of an offence and is liable on summary conviction to a fine of not less than ten dollars and not more than fifty dollars or to imprisonment for a term not exceeding three months or to both fine and imprisonment.

. . .

The important question raised by this appeal has its origin in the fact that in the Northwest Territories it is not an offence for anyone except an Indian to be intoxicated otherwise than in a public place. The Liquor Ordinance which is of general application in the Territories, (R.O.N. W.T. 1957, c. 60, s. 19(1)) provides that:

> No person shall be in an intoxicated condition in a public place....

but unlike s. 94 of the *Indian Act,* there is no provision for a minimum fine and the maximum term of imprisonment is only 30 days as opposed to 3 months under the *Indian Act.*

The result is that an Indian who is intoxicated in his own home "off a reserve" is guilty of an offence and subject to a minimum fine of not less than $10 or a term of imprisonment not exceeding 3 months or both, whereas all other citizens in the Territories may, if they see fit, become intoxicated otherwise than in a public place without committing any offence at all….

The argument which was successfully advanced by the respondent before Mr. Justice Morrow and before the Court of Appeal was that because of this legislation, Indians in the Northwest Territories, by reason of their race, are denied "equality before the law" with their fellow Canadians, and that s. 94(b) of the *Indian Act* therefore authorizes the abrogation, abridgement or infringement of one of the human rights and fundamental freedoms recognized and declared as existing in Canada without discrimination by reason of race, pursuant to the provisions of the *Canadian Bill of Rights,* Statutes of Canada 8-9 Eliz. II, c. 44 (hereinafter sometimes referred to as "The Bill of Rights" or "The Bill") . . .

. . .

It seems to me that a more realistic meaning must be given to the words in question and they afford, in my view, the clearest indication that s. 2 [of the Bill] is intended to mean and does mean that if a law of Canada cannot be "sensibly construed and applied" so that it does not abrogate, abridge or infringe one of the rights and freedoms recognized and declared by the Bill, then such law is in-operative "unless it is expressly declared by an Act of the Parliament of Canada that it shall operate notwithstanding the *Canadian Bill of Rights".*

. . .

The right which is here at issue is "the right of the individual to equality before the law and the protection of the law". Mr. Justice Tysoe, who wrote the reasons for judgment on behalf of the majority of the Court of Appeal of British Columbia [in] the *Gonzales* case, *supra*, [*Regina v. Gonzales* (1962) 1962 CanLII 348 (BC CA)], expressed the opinion that as these words occur in the *Bill of Rights* they mean

> A right of every person to *whom a particular law relates or extends, no* matter what may be a person's race, national origin, colour, religion or sex, to stand on an equal footing with every other person to whom a particular law relates or extends and a right to the protection of the law.
>
> (The italics are Mr. Justice Tysoe's)

Like the members of the courts below, I cannot agree with this interpretation pursuant to which it seems to me that the most glaring discriminatory legislation against a racial group would have to be construed as recognizing the right of each of its individual members "to equality before the law", so long as all the other members are being discriminated against in the same way.

I think that the word "law" as used in s. 1(b) of *the Bill of Rights is* to be construed as meaning "the law of Canada" as defined in s. 5(2) (i.e. Acts of the Parliament of Canada and any orders, rules or regulations thereunder) and without attempting any exhaustive definition of "equality before the law" I think that s. 1(b) means at least that no individual or group of individuals is to be treated more harshly than another under that law, and I am therefore of opinion that an individual is denied equality be-fore the law if it is made an offence punishable at law, on account of his race, for him to do something which his fellow Canadians are free to do without having committed any offence or having been made subject to any penalty.

. . .

For all the above reasons I would dismiss this appeal.

THE CHIEF JUSTICE *(dissenting)*-

. . .

There is no doubt that on the facts, the respondent was guilty of a breach of s. *94(b)* of the *Indian Act* and the question to be decided is whether that provision is rendered inoperative by the terms of the *Canadian Bill of Rights. . .*

In approaching this question I will assume the correctness of the view that s. *94(b)* infringes the right of the respondent to equality before the law declared by clause (b) of s. 1 of the *Bill,* in that because he is an Indian it renders him guilty of a punishable offence by reason of conduct which would not have been punishable if indulged in by any person who was not an Indian.

. . .

In the case at bar s. 94(b) of *the Indian Act* is expressed in plain and unequivocal words. It is not possible by the application of any rule of construction to give it a meaning other than that an Indian who is intoxicated off a reserve is guilty of an offence.

In these circumstances the choice open to us is to give effect to the section according to its plain meaning or to declare it inoperative, that is to say, to declare that the *Indian Act is pro tanto* repealed by the *Bill.*

. . .

The question is whether or not it is the intension of Parliament to confer the power and impose the responsibility upon the courts of declaring inoperative any provision in a Statute of Canada although expressed in clear and unequivocal terms, the meaning of which after calling in aid every rule of construction including that prescribed by s. 2 of the Bill is perfectly plain, if in the view of the court it infringes any of the rights or freedoms declared by s. 1 of the Bill.

In approaching this question it must not be forgotten that the responsibility mentioned above, if imposed at all, is imposed upon every justice of the peace, magistrate and judge of any court in the country who is called upon to apply a Statute of Canada or any order, rule or regulation made thereunder.

If it were intended that the question should be answered in the affirmative there would, in my opinion, have been added after the word "declared" in the seventh line of the opening paragraph of s. 2 of the Bill some such words as the following "and if any law of Canada cannot be so construed and applied it shall be regarded as inoperative or pro tanto repealed".

. . .

For these reasons I would dispose of the appeal as proposed by my brother Pigeon.

PIGEON J. (dissenting)-

. . .

There can be no doubt that in enacting legislation Parliament is presumed to be aware of the state of the law *(Walker v. The King,* 1939 CanLII 2 (SCC), [1939] SCR 214). *A fortiori* must it be so when the enactment itself has reference thereto. Where is the extent of existing human rights and fundamental freedoms to be ascertained if not by reference to the statute books and other legislative instruments as well as to the decisions of the courts?

It must also be considered that the rights and freedoms enumerated in s. 1 are not legal concepts of precise and invariable content. If those words were to be taken by themselves, a great deal would be left undefined. However, by declaring those rights and freedoms as they existed a large measure of precision was supplied. Is this not an important purpose of s. 1 and a very effective way of defining some key words of the enactment?

In the instant case, the question whether all existing legislation should be considered as in accordance with the non-discrimination principle cannot fail to come immediately to mind seeing that it arises directly out of head 24 of s. 91 of the *B.N.A. Act* whereby Parliament has exclusive legislative authority over "Indians, and Lands reserved for the Indians". . . . this provision confers legislative authority over the Indians *qua* Indians and not otherwise. Its very object in so far as it relates to Indians, as opposed to Lands reserved for the Indians, is to enable the Parliament of Canada to make legislation applicable only to Indians as such and therefore not applicable to Canadian citizens generally. This legislative authority is obviously intended to be exercised over matters that are, as regards persons other than Indians, within the exclusive legislative authority of the Provinces. Complete uniformity in provincial legislation is clearly not to be expected, not to mention the fact that further diversity must also result from special legislation for the territories. Equality before the law in the sense in which it was understood in the Courts below would require the Indians to be subject in every province to the same rules of law as all others in every particular not merely on the question of drunkenness. Outside the territories, provincial jurisdiction over education and health facilities would make it very difficult for federal authorities to provide such facilities to Indians without "discrimination" as understood in the Courts below.

If one of the effects of the *Canadian Bill of Rights is* to render inoperative all legal pro-visions whereby Indians as such are not dealt with in the same way as the general public, the conclusion is inescapable that Parliament, by the enactment of the *Bill,* has not only fundamentally altered the status of the Indians in that indirect fashion but has also made any future use of federal legislative authority over them subject to the requirement of expressly declaring every time "that the law shall operate notwithstanding the *Canadian Bill of Rights".* I find it very difficult to believe that Parliament so intended when enacting the *Bill.* If a virtual suppression of federal legislation over Indians as such was meant, one would have expected this important change to be made explicitly not surreptitiously so to speak.

. . .

I fail to see how it can be considered that by taking this to be the fundamental intention, the apparent character of the *Bill* is not fully recognized. I also fail to see how it can be said that to read s. 2 as little more than a rule of construction is to fail to give effect to the *Bill.* On what basis is it assumed that anything else was intended in an act that is not of a constitutional character?

That canons of construction are of less importance than constitutional rules does not mean that they are of minimal importance. For instance, in our legal system, the rule against retrospective operation of enactments as well as the principle that a criminal offence requires *means rea* are nothing more than canons of construction. It certainly does not mean that they are of secondary importance.

. . .

On the whole, I cannot find in the *Canadian Bill of Rights* anything clearly showing that Parliament intended to establish concerning human rights and fundamental freedoms some overriding general principles to be enforced by the courts against the clearly expressed will of Parliament in statutes existing at the time. In my opinion, Parliament did nothing more than instruct the courts to construe and apply those laws in accordance with the principles enunciated in the *Bill* on the basis that the recognized rights and freedoms did exist, not that they were to be brought into existence by the courts.

For those reasons I would allow the appeal, reverse the judgments of the Court of Appeal and of the Territorial Court of the Northwest Territories, and re-establish the conviction and sentence. In view of the terms of the order granting leave to appeal, it is presumed that suitable arrangements have been made for the costs of re-presentation of the respondent and therefore, no order requires to be made in that regard.

. . .

Appeal dismissed, Cartwright C.J. and Abbott and Pigeon JJ. dissenting.

3.3.2 *Attorney General of Canada v. Lavell*, 1973 CanLII 175 (SCC), [1974] SCR 1349

Present: Fauteux C.J. and Abbott, Martland, Judson, Ritchie, Hall, Spence, Pigeon and Laskin JJ.

. . .

The judgment of Fauteux C.J., and Martland, Judson and Ritchie was delivered by

RITCHIE J.— . . .

These appeals, which were heard together, are from two judgments holding that the provisions of s. 12(1)(*b*) of the *Indian Act*, R.S.C. 1970, c. I-6, are rendered inoperative by s. 1(*b*) of the *Canadian Bill of Rights,* 1960 (Can.), c. 44, as denying equality before the law to the two respondents.

Both respondents were registered Indians and "Band" members within the meaning of s. 11(*b*) of the *Indian Act* when they elected to marry non-Indians and thereby relinquished their status as Indians in conformity with the said s. 12(1)(*b*) which reads as follows:

> **12.** (1) The following persons are not entitled to be registered, namely,
>
> (*b*) a woman who married a person who is not an Indian, unless that woman is subsequently the wife or widow of a person described in section 11.

It is contended on behalf of both respondents that s. 12(1)(*b*) of the Act should be held to be inoperative as discriminating between Indian men and women and as being in conflict with the provisions of the *Canadian Bill of Rights* and particularly s. 1 thereof which provides:

> **1.** It is hereby recognized and declared that in Canada there have existed and shall continue to exist without discrimination by reason of race, national origin, colour, religion or sex, the following human rights and fundamental freedoms, namely,…
>
> (*b*) the right of the individual to equality before the law and the protection of the law;…

I think it desirable at the outset to outline the facts concerning the two respondents separately.

1. *Mrs. Lavell*—This woman was a member of the Wikwemikong Band of Indians who married a non-Indian and whose name was deleted from the Indian Register by the Registrar in charge thereof pursuant to the provisions of section 12(1)(*b*) of the Act. An appeal was taken from the Registrar's decision and was heard before His Honour Judge Grossberg . . . before whom evidence was taken which disclosed that at the time of the hearing and for some nine years before her marriage Mrs. Lavell had not lived on any Reserve except for sporadic visits to her family, and the learned judge declined to accept the suggestion that she could not visit her family on the Reserve whenever she wished. Mrs. Lavell did not claim to have been deprived of any property rights on the Reserve except those incidental to the right as a Band member.

Judge Grossberg having found that in his opinion section 12(1)(*b*) of the *Indian Act* was not rendered inoperative by the *Bill of Rights* an appeal was taken from his judgment to the Federal Court of Appeal where a judgment was rendered by Mr. Justice Thurlow who concluded his opinion by saying of section 12(1)(*b*) of the *Indian Act*:

> These provisions are thus laws which abrogate, abridge and infringe the right of an individual Indian woman to equality with other Indians before the law. Though this is not a situation in which an act is made punishable at law on account of race or sex, it is one in which under the provisions here in question the consequences of the marriage of an Indian woman to a person who is not an Indian are worse for her than for other Indians who marry non-Indians and than for other Indians of her band who marry persons who are not Indians. In *my opinion this offends the right of such an Indian woman as an individual to equality before the law* and the *Canadian Bill of Rights* therefore applied to render the provisions in question inoperative.
>
> (The italics are my own.)

It is from this judgment that the Crown now appeals.

2. *Mrs. Bédard*—In this case the respondent sought an injunction restraining the members of the Six Nations Council from expelling her and her two infant children from the home she occupied on the Six Nations Indian Reserve in the County of Brant, and an order setting aside a resolution passed by the Council ordering her to dispose of such property. By agreement an additional claim was added for a declaratory judgment concerning the respective rights of the parties.

Mrs. Bédard was born on the Six Nations Indian Reserve of Indian parents and she married a non-Indian in May, 1964, by whom she had two children and with whom she resided off the Reserve until June 23, 1970 when, having separated from her husband, she returned to the Reserve to live in a house on a property to which her mother had held a Certificate of Possession under s. 20 of the *Indian Act* and which had been bequeathed to her under her mother's will which had been approved by the Council of the Six Nations and on behalf of the Minister of Indian Affairs as required by the *Indian Act,* (section 45(3)) on August 7, 1969.

When Mrs. Bédard returned to the Reserve with her children in 1970 to occupy her mother's house, the Council passed a series of resolutions giving her permission to reside on the Reserve for a period of six months during which she was to dispose of the property, and extending this permission for a further eight months, after which any further requests for her continued residence would be denied. In accordance with these resolutions this respondent conveyed her interest in the property in question to her brother who was a registered member of the Six Nations Band, and to whom a Certificate of Possession of the property was granted on March 15, 1971 by the Minister. Her brother, however, permitted Mrs. Bédard and her infant children to continue occupying the premises without rent, but the Band Council passed a further resolution on September 15, 1971 by which it was resolved that the Brant District Supervisor should be requested to serve a notice to quit the Reserve upon this respondent. It should be noted that the writ instituting this action was issued on September 14, 1971, more than a year after the brother had obtained his Certificate of Possession and that no notice to quit has been served on Mrs. Bédard pursuant to the resolution which was passed after the writ was issued.

Mrs. Bédard's case was heard by Mr. Justice Osler in the Supreme Court of Ontario where it was contended that the Council's request to the District Supervisor and any action taken by the Supervisor pursuant to such request, and the removal of her name from the Band list simply because of her marriage to a non-Indian, are actions that discriminate against her by reason of her race and sex and deny her "equality before the law". Mr. Justice Osler, basing his decision on the judgment of the Federal Court of Appeal in the *Lavell* case, concluded that:

> Section 12(1)(*b*) of the Act is… inoperative and all acts of the Council Band and of the District Supervisor purporting to be based on the provisions of that section can be of no effect.

Leave to appeal from this judgment was granted by order of this Court on January 25, 1972.

The contention which formed the basis of the argument submitted by both respondents was that they had been denied equality before the law *by reason of sex,* and I propose to deal with the matter on this basis.

. . .

There cannot, in my view, be any doubt that whatever may have been achieved by the *Bill of Rights,* it is not effective to amend or in any way alter the terms of the *British North America Act* and it is clear from the third recital in the preamble that the Bill was intended to "reflect the respect of Parliament for its constitutional authority…" so that wherever any question arises as to the effect of any of the provisions of the Bill,

it is to be resolved within the framework of the *B.N.A. Act.*

It follows, in my view, that the effect of the *Bill of Rights* on the *Indian Act* can only be considered in light of the provisions of s. 91(24) of the *B.N.A. Act* whereby the subject of "Indians and lands reserved for Indians" is assigned exclusively to the legislative authority of the Parliament of Canada.

. . .

In my opinion the exclusive legislative authority vested in Parliament under s. 91(24) could not have been effectively exercised without enacting laws establishing the qualifications required to entitle persons to status as Indians and to the use and benefit of Crown "lands reserved for Indians". The legislation enacted to this end was, in my view, necessary for the implementation of the authority so vested in Parliament under the constitution.

To suggest that the provisions of the *Bill of Rights* have the effect of making the whole *Indian Act* inoperative as discriminatory is to assert that the Bill has rendered Parliament powerless to exercise the authority entrusted to it under the constitution of enacting legislation which treats Indians living on Reserves differently from other Canadians in relation to their property and civil rights. The proposition that such a wide effect is to be given to the *Bill of Rights* was expressly reserved by the majority of this Court in the case of *The Queen v. Drybones*, at 298, to which reference will hereafter be made, and I do not think that it can be sustained.

What is at issue here is whether the *Bill of Rights* is to be construed as rendering inoperative one of the conditions imposed by Parliament for the use and occupation of Crown lands reserved for Indians. These conditions were imposed as a necessary part of the structure created by Parliament for the internal administration of the life of Indians on Reserves and their entitlement to the use and benefit of Crown lands situate thereon, they were thus imposed in discharge of Parliament's constitutional function under s. 91(24) and in my view can only be changed by plain statutory language expressly enacted for the purpose. It does not appear to me that Parliament can be taken to have made or intended to make such a change by the use of broad general language directed at the statutory proclamation of the fundamental rights and freedoms enjoyed by all Canadians, and I am therefore of opinion that the *Bill of Rights* had no such effect.

. . .

It was stressed on behalf of the respondents that the provisions of s. 12(1)(*b*) of the *Indian Act* constituted "discrimination by reason of sex" and that the section could be declared inoperative on this ground alone even if such discrimination did not result in the infringement of any of the rights and freedoms specifically guaranteed by s. 1 of the Bill.

. . . in my view, [sections 1 and 2 of the Bill] cannot be invoked unless one of the enumerated rights and freedoms has been denied to an individual Canadian or group of Canadians. Section 2 of the *Bill or Rights* provides for the manner in which the rights and freedoms which are recognized and declared by s. 1 are to be enforced and the effect of this section is that every law of Canada shall "be so construed and applied as not to abrogate, abridge or infringe or authorize the abrogation, abridgment or infringement of any of the rights and freedoms herein recognized and declared…" (i.e. by s. 1). There is no language anywhere in the *Bill of Rights* stipulating that the laws of Canada are to be construed without discrimination unless that discrimination involves the denial of one of the guaranteed rights and freedoms, but when, as in the case of *The Queen v. Drybones, supra,* denial of one of the enumerated rights is occasioned by reason of discrimination, then, as Mr. Justice Laskin has said, the discrimination affords an "additional lever to which federal legislation must respond."

The opening words of s. 2 of the *Bill of Rights* are, in my view, determinative of the test to be applied in deciding whether the section here impugned is to be declared inoperative. The words to which I refer are:

> **2.** Every law of Canada shall, unless it is expressly declared by an act of the Parliament of Canada that it shall operate notwithstanding the *Canadian Bill of Rights,* be so construed and applied as not to abrogate, abridge or infringe or authorize the abrogation, abridgement of infringement of the freedoms herein recognized and declared…

In the course of the reasons for judgment rendered on behalf of the majority of this Court in *The Queen v. Drybones, supra,* this language was interpreted in the following passage at p. 294:

> It seems to me that a more realistic meaning must be given to the words in question and they afford, in my view, the clearest indication that s. 2 is intended to mean and does mean that if a law of Canada cannot be 'sensibly construed and applied' so that it does not abrogate, abridge or infringe one of the rights and freedoms, recognized and declared by the Bill, then such law is inoperative 'unless it is expressly declared by an Act of the Parliament of Canada that it shall operate notwithstanding the *Canadian Bill of Rights*'.

Accordingly, in my opinion, the question to be determined in these appeals is confined to deciding whether the Parliament of Canada in defining the prerequisites of Indian status so as not to include women of Indian birth who have chosen to marry non-Indians, enacted a law which cannot be sensibly construed and applied without abrogating, abridging or infringing the rights of such women to equality before the law.

In my view the meaning to be given to the language employed in the *Bill of Rights* is the meaning which it bore in Canada at the time when the Bill was enacted, and it follows that the phrase "equality before the law" is to be construed in light of the law existing in Canada at that time.

In considering the meaning to be attached to "equality before the law" as those words occur in section 1(*b*) of the Bill, I think it important to point out that in my opinion this phrase is not effective to invoke the egalitarian concept exemplified by the 14th Amendment of the U.S. Constitution as interpreted by the courts of that country. (See *Smythe v. The Queen* per Fauteux C.J. at pp. 683 and 686). I think rather that, having regard to the language employed in the second paragraph of the preamble to the *Bill of Rights,* the phrase "equality before the law" as used in s. 1 is to be read in its context as a part of "the rule of law" to which overriding authority is accorded by the terms of that paragraph.

. . .

[Justice Ritchie referred to the classic understanding of the 'rule of law" in England, including "equality before the law or the equal subjection of all classes to the ordinary law of the land administered by the ordinary courts; the 'rule of law' in this sense excludes the idea of any exemption of officials or others from the duty of obedience to the law which governs other citizens or from the jurisdiction of the ordinary courts." He cited discussion of *Roncarelli v. Duplessis* (1959) in support of this proposition].

. . .

The relevance of these quotations to the present circumstances is that "equality before the law" as recognized by Dicey as a segment of the rule of law, carries the meaning of equal subjection of all classes to the ordinary law of the land *as administered by the ordinary courts,* and in my opinion the phrase "equally before the law" as employed in section 1(*b*) of the *Bill of Rights* is to be treated as meaning equality in the administration or application of the law by the law enforcement authorities and the ordinary courts of the land. This construction is, in my view, supported by the provisions of subsections (*a*) to (*g*) of s. 2 of the Bill which clearly indicate to me that it was equality in the administration and enforcement of the law with which Parliament was concerned when it guaranteed the continued existence of "equality before the law".

. . .

It is thus apparent that the marital status of Indian women who marry non-Indians has been the same for at least one hundred years and that their loss of Band status on marriage to a member of another Band and acquisition of status in that Band, for which provision is made under s. 14 of the *Indian Act,* has been in effect for the same period.

. . .

The *Drybones* case can, in my opinion, have no application to the present appeals as it was in no way concerned with the internal regulation of the lives of Indians *on* Reserves or their right to the use and benefit of Crown lands thereon, but rather deals exclusively with the effect of the *Bill of Rights* on a section of the *Indian Act* creating a crime with attendant penalties for the conduct by Indians *off* a Reserve in an area where non-Indians, who were also governed by federal law, were not subject to any such restriction.

The fundamental distinction between the present case and that of *Drybones,* however, appears to me to be that the impugned section in the latter case could not be enforced without denying equality of treatment in the administration and enforcement of the law before the ordinary courts of the land to a racial group, whereas no such inequality of treatment between Indian men and women flows as a necessary result of the application of s. 12(1)(*b*) of the *Indian Act.*

. . .

I would allow the appeal of the *Attorney General of Canada against J.V. Corbiere Lavell,* reverse the judgment of the Federal Court of Appeal and restore the decision of Judge B.W. Grossberg. . . .

On the appeal of *Richard Isaac and others v. Yvonne Bédard, . . .* The appeal to this Court should be allowed, the judgment at trial should be reversed and the action dismissed.

. . .

ABBOTT J. (*dissenting*)—

. . .

Unless the words "without discrimination by reason of race, national origin, colour, religion or sex" used in s. 1 are to be treated as mere rhetorical window dressing, effect must be given to them in interpreting the section. I agree with Laskin J. that s. 1(*b*) must be read as if those words were recited therein.

In my view the *Canadian Bill of Rights* has substantially affected the doctrine of the supremacy of Parliament. Like any other statute it can of course be repealed or amended, or a particular law declared to be applicable notwithstanding the provisions of the Bill. In form the supremacy of Parliament is maintained but in practice I think that it has been substantially curtailed. In my opinion that result is undesirable, but that is a matter for consideration by Parliament not the courts.

Ritchie J. said in his reasons for judgment in *Drybones* that the implementation of the *Bill of Rights* by the courts can give rise to great difficulties and that statement has been borne out in subsequent litigation. Of one thing I am certain the Bill will continue to supply ample grist to the judicial mills for some time to come.

I would dismiss both appeals with costs.

The Judgment of Hall, Spence and Laskin JJ. was delivered by

LASKIN J. (*dissenting*)— . . . In my opinion, unless we are to depart from what was said in *Drybones,* both appeals now before us must be dismissed. I have no disposition to reject what was decided in *Drybones;* and on the central issue of prohibited discrimination as catalogued in s. 1 of the *Canadian Bill of Rights,* it is, in my opinion, impossible to distinguish *Drybones* from the two cases in appeal. If, as in *Drybones,* discrimination by reason of race makes certain statutory provisions inoperative, the same result must follow as to statutory provisions which exhibit discrimination by reason of sex.

. . .

The contentions of the appellants in both cases in appeal, stripped of their detail, amount to a submission that the *Canadian Bill of Rights* does not apply to Indians on a Reserve, nor to Indians in their relations to one another whether or not on a Reserve. This submission does not deny that the effect of s. 12(1)(*b*) of the *Indian Act* is to prescribe substantive discrimination by reason of sex, a differentiation in the treatment of Indian men and Indian women when they marry non-Indians, this differentiation being exhibited in the loss by the women of their status as Indians under the Act. It does, however, involve the assertion that the particular discrimination upon which the two appeals are focussed is not offensive to the relevant provisions of the *Canadian Bill of Rights;* and it also involves the assertion that the *Drybones* case is distinguishable or, if not, that it has been overcome by the re-enactment of the *Indian Act* in the Revised Statutes of Canada, 1970, including the then s. 94 (now s. 95) which was in issue in that case. I regard this last-mentioned assertion, which is posited on the fact that the *Canadian Bill of Rights* was not so re-enacted, as simply an oblique appeal for the overruling of the *Drybones* case.

The *Drybones* case decided two things. It decided first—and this decision was a necessary basis for the second point in it—that the *Canadian Bill of Rights* was more than a mere interpretation statute whose terms would yield to a contrary intention; it had paramount force when a federal enactment conflicted with its terms, and it was the incompatible federal enactment which had to give way. This was the issue upon which the then Chief Justice of this Court, Chief Justice Cartwright, and Justices Abbott and Pigeon, dissented. . . . The second thing decided by *Drybones* was that the accused in that case, an Indian under the *Indian Act,* was denied equality before the law, under s. 1(*b*) of the *Canadian Bill of Rights,* when it was made a punishable offence for him, on account of his race, to do something which his fellow Canadians were free to do without being liable to punishment for an offence. . . .

. . .

It would be unsupportable in principle to view the *Drybones* case as turning on the fact that the challenged s. 94 of the *Indian Act* created an offence visited by punishment. The gist of the judgment lay in the legal disability imposed upon a person by reason of his race when other persons were under no similar restraint. If for the words "on account of race" there are substituted the words "on account of sex" the result must surely be the same where a federal enactment imposes disabilities or prescribes disqualifications for members of the female sex which are not imposed upon members of the male sex in the same circumstances.

It is said, however, that although this may be so as between males and females in general, it does not follow where the distinction on the basis of sex is limited as here to members of the Indian race. This, it is said further, does not offend the guarantee of "equality before the law" upon which the *Drybones* case proceeded. . . .

It appears to me that the contention that a differentiation on the basis of sex is not offensive to the *Canadian Bill of Rights* where that differentiation operates only among Indians under the *Indian Act* is one that compounds racial inequality even beyond the point that the *Drybones* case found unacceptable. In any event, taking the *Indian Act* as it stands, as a law of Canada whose various provisions fall to be

> assessed under the *Canadian Bill of Rights,* I am unable to appreciate upon what basis the command of the *Canadian Bill of Rights,* that laws of Canada shall operate without discrimination by reason of sex, can be ignored in the operation of the *Indian Act.*
>
> . . .
>
> I do not think it is possible to leap over the telling words of s. 1, "without discrimination by reason of race, national origin, colour, religion or sex", in order to explain away any such discrimination by invoking the words "equality before the law" in clause (*b*) and attempting to make them alone the touchstone of reasonable classification. That was not done in the *Drybones* case; and this Court made it clear in *Curr v. The Queen* , that federal legislation, which might be compatible with the command of "equality before the law" taken alone, may nonetheless be inoperative if it manifests any of the prohibited forms of discrimination. In short, the proscribed discriminations in s. 1 have a force either independent of the subsequently enumerated clauses (*a*) to (*f*) or, if they are found in any federal legislation, they offend those clauses because each must be read as if the prohibited forms of discrimination were recited therein as a part thereof.
>
> . . .
>
> I would dismiss both appeals with costs.
>
> *Appeals allowed, ABBOTT, HALL, SPENCE and LASKIN JJ. dissenting.*

The statement by Justice Ritchie that the rights in the Bill were to be "construed in light of the law existing in Canada at [the] time" the Bill was enacted came to be known as the "frozen rights theory", meaning that the Canadian Bill of Rights only protected rights that were in existence when the Bill came into effect in 1960. That approach became the governing framework for courts' approach to the Bill. The "frozen rights theory" is directly contrary to the "living tree doctrine" from the *Persons Case* (1929). Many academics and rights advocates were highly critical of the frozen rights theory. Why do you think judges of the Supreme Court adopted the frozen rights theory? Why did they not embrace the "living tree doctrine" from the *Persons Case*? Can you identify the strengths and weaknesses of each approach?

Lavell, along with *Bliss v. Attorney General of Canada,* 1978 CanLII 25 (SCC), [1979] 1 SCR 183, galvanized the women's movement to seek stronger legal protections for discrimination, especially for discrimination based on sex. In *Bliss,* a unanimous Supreme Court rejected a challenge brought Ms. Stella Bliss to the federal unemployment benefits law which imposed stricter requirements for maternity benefits than for ordinary unemployment benefits. The Court held that this did not infringe equality before the law under the Bill of Rights and concluded that "Any inequality between the sexes in this area is not created by legislation but by nature."

For the definitive reference on the Bill see Walter S. Tarnopolsky, *The Canadian Bill of Rights* (Toronto: McClelland & Stewart, 1975). For an excellent article on the *Bliss* case and its impact see Leslie A. Pal & F.L. Morton, " *Bliss v. Attorney General of Canada* : From Legal Defeat to Political Victory " (1986) 24 Osgoode Hall Law Journal 141.

4 Towards the *Charter*

The *Canadian Bill of Rights* was a stepping stone to the entrenchment of a constitutional bill of rights. When Pierre Trudeau became Minister of Justice and Attorney General of Canada in 1967, he announced his intention to enact a constitutional bill of rights for Canada. Trudeau became Prime Minister in 1968 and made the patriation of the Canadian Constitution with a domestic amending formula and a charter of rights a political priority. At that time, any amendments to the Canadian Constitution had to be made by the British Parliament and there was no set formula for amending the Canadian Constitution. Trudeau's quest became known as his "Magnificent Obsession".

The period between 1968 and 1982 when the *Charter* was enacted as part of Trudeau's package of constitutional reforms was a period of almost continuous constitutional discussions. Many of these took place at federal-provincial conferences of senior government officials and sometimes of Ministers of Justice or "first ministers" (the prime minister and provincial premiers). This process was known as "executive federalism".

Parliament was also involved in this process. In January 1970, a Special Joint Committee of the Senate and the House of Commons on the Constitution of Canada was established, It held public hearings and meetings in 47 cities and towns across the country, hearing from 1486 witnesses at meetings attended by 13,000 Canadians. The evidence totalled 8000 pages. While the Molgat-MacGuigan committee was touring the country hearing from Canadians, Trudeau, the premiers and their officials continued to try to hammer out a deal. In June 1971, they seemingly reached an agreement at Victoria. The "Victoria Charter" would have included a scaled-down version of a charter of rights. However, the agreement collapsed within a week as Quebec Premier Robert Bourassa returned to Quebec and withdrew his support in the face of internal opposition.

For the next several years, constitutional negotiations took a back burner to economic considerations as Canada was mired in a recession. However, things heated up again after the election of the Parti Québecois in November 1976. The election of the Parti Québecois led to much more popular interest in constitution making through conferences, meetings, etc.

Just after Canada Day in 1977, the federal government appointed the Task Force on Canadian Unity, known as "Pepin-Robarts" after its co-chairs former Quebec Liberal MP Jean-Luc Pepin and former Conservative Ontario Premier John Robarts. In June 1978, Prime Minister Trudeau released of a white paper on constitutional reform which was converted into Bill C-60, *The Constitutional Amendment Bill*. After Bill C-60 was introduced, Parliament created another Special Joint Committee of the Senate and the House of Commons on the Constitution which reported back to Parliament at the end of October 1978.

The May 1979 federal election ousted Trudeau from power and Progressive Conservative Joe Clark headed a minority government. Clark had no interest in pursuing constitutional reform, but Pierre Trudeau returned to power after another federal election in February 1980.

Pierre Trudeau returned to 24 Sussex Drive in time to battle Parti Québécois Premier René Lévesque in the first Quebec Referendum in May 1980. Prior to the referendum, Trudeau had pledged a "renewed federalism" if the "NO" side won. After the defeat of the proposal for sovereignty-association on May 20, 1980, Trudeau launched back into a constitutional battle, leaving reform of the Senate aside. The proposed Charter of Rights and Freedoms quickly became the centrepiece of the federal government's plan for constitutional renewal during 1980 (see Roy J Romanow, John D Whyte & Howard A Leeson, *Canada ... Notwithstanding : The Making of the Constitution 1976-1982* (Toronto: Carswell, 1984 at 43)).

The federal government's constitutional proposal was dubbed the "people's package". It included patriation, a charter of rights and freedoms, and an amending formula. It was meant to contrast with the "governments' package", indicative of the provinces' desire for greater legislative powers.

Parliament created another Special Joint Committee of the Senate and the House of Commons on the Constitution which sat from November 1980 to February 1981. It held 106 meetings over 56 sitting days (including evenings and Saturdays) for a total of 267 sitting hours It spent more than 275 hours hearing over 100 witnesses and 90 hours debating amendments clause-by-clause. The Joint Committee was the first parliamentary committee ever to have its proceedings televised; Canadians watched them and the media followed progress closely.

The Joint Committee process served in large part as the forge which produced the *Charter* that Canadians cherish today. The Joint

Committee marked the first time that ordinary Canadians became participants in constitutional change rather than mere observers or silent subjects of it. Civil liberties groups, legal organizations, religious groups, representatives of Indigenous peoples and women's groups were key participants in the process. They advocated for stronger protections in the Charter. The *Lavell* and *Bliss* cases were frequently invoked by witnesses as justifications for the need to entrench stronger equality protections in the Charter. These groups succeeded in getting the Joint Committee to accept significant changes to the proposed Charter.

Meanwhile, the provinces challenged Pierre Trudeau's attempt to unliterally patriate and amend the Constitution without their consent. Three challenges made their way to the Supreme Court in the spring of 1981 and in the fall of that year the Supreme Court decided the *Patriation Reference*, holding that while as a matter of law the federal government did have the power to proceed unilaterally, as a matter of constitutional convention, "substantial consent" from the provinces was required. This led to a last round of federal-provincial negotiations in November 1981 which produced an agreement between the federal government and nine of the ten provinces (Quebec did not join). Parliament enacted what became the constitutional changes and sent them to London for the final approval by the U.K. Parliament. On a rainy April 17, 1982, in Ottawa, Queen Elizabeth II signed the proclamation enacting the *Constitution Act, 1982* with its *Charter of Rights and Freedoms*.

This section is based on chapter 1 and 4 of Adam M. Dodek, *The Charter Debates: The Special Joint Committee on the Constitution, 1980-81 and the Making of the Canadian Charter of Rights and Freedoms* (Toronto: University of Toronto Press, 2018).

See also Stephen Clarkson and Christina McCall, *Trudeau and Our Times, Volume I: The Magnificent Obsession* (Toronto: McClelland & Stewart, 1991); Roy Romanow, John Whyte and Howard Leeson, *Canada . . . Notwithstanding: The Making of the Constitution, 1976-1982* (Toronto: Methuen, 1984); and Peter H. Russell, *Constitutional Odyssey*: *Can Canadians Become a Sovereign People?* 3rd ed. (Toronto: University of Toronto Press, 2004).

5 Conclusion

While the *Charter* has dominated Canadian discourse and jurisprudence on rights protection since its enactment in 1982, it is important to remember that the *Canadian Bill of Rights* still remains in force. There are several instances where the Bill may provide protections that are not contained in the *Charter.* First, the Bill protects "the enjoyment of property" and the right not to be deprived thereof except by due process of law (s 1(a)). Section 7 of the *Charter* was modelled on this provision of the Bill but "the enjoyment of property" was expressly excluded from the *Charter*. Second, section 2(e) provides that "no law of Canada shall be construed or applied so as to . . . deprive a person of the right to a fair hearing in accordance with the principles of fundamental justice for the determination of his rights and obligations". There is no provision of the *Charter* that is directly analogous to section 2(e).

The *Canadian Bill of Rights* played an important role in the early *Charter* decision *Singh v. Minister of Employment and Immigration*, 1985 CanLII 65 (SCC), [1985] 1 SCR 177. The Bill was also at issue in *Authorson v. Canada (Attorney General)*, 2003 SCC 39 (CanLII), [2003] 2 SCR 40.

Chapter 14: *Charter* Interpretation

By Megan Pfiffer and Jacob Weinrib

1 Introduction

Constitutional rights have two basic features: scope and strength.

Scope consists in the protections that the right or freedom affords its bearers. What falls inside the scope of a right or freedom is constitutionally protected, while what falls outside remains subject to the exercise of legislative power. When we ask whether the expressive freedom guaranteed by s. 2(b) of the *Charter* protects artistic expression, commercial expression, scientific expression, obscene expression, or violent forms of expression, our questions engage the scope of expressive freedom.

In contrast, *strength* concerns the power of a right or freedom to withstand some opposing legal norm. Accordingly, when we ask whether expressive freedom may be restricted to protect the privacy of others, the safety of consumers, national security, or the integrity of free and fair elections, our questions engage the strength of expressive freedom.

The present chapter introduces *purposive interpretation*, the method that Canadian courts employ to determine the scope of *Charter* rights and freedoms. In turn, Chapters 16 and 17 explore the method that courts employ to determine the *strength* that *Charter* rights and freedoms possess.

Purposive interpretation responds to a challenge posed by constitutional rights. Constitutional rights are necessarily stated in broad and abstract terms. Yet the cases in which litigants challenge government action on the basis of constitutional rights are particular and concrete. Purposive interpretation seeks to bridge this gap, determining whether the relevant facts of concrete cases fall within the scope of abstractly stated rights.

As you explore the materials that follow, ask yourself the following questions: What is purposive interpretation? How does purposive interpretation differ from other approaches to constitutional interpretation? How does the purposive interpretation of a constitution differ from statutory interpretation? What resources does purposive interpretation offer for distilling broadly formulated constitutional guarantees into concrete protections? How does one identify the purpose of a *Charter* right or freedom? How does one determine what that purpose of a right or freedom requires in the concrete setting of a constitutional dispute?

2 *Hunter et al. v. Southam Inc.*

***Hunter et al. v. Southam Inc.*, 1984 CanLII 33 (SCC), [1984] 2 SCR 145**

The judgment of the Court was delivered by

DICKSON J.--The Constitution of Canada, which includes the *Canadian Charter of Rights and Freedoms*, is the supreme law of Canada. Any law inconsistent with the provisions of the Constitution is, to the extent of the inconsistency, of no force or effect. Section 52(1) of the *Constitution Act, 1982* so mandates. The constitutional question posed in this appeal is whether s. 10(3), and by implication s. 10(1), of the *Combines Investigation Act*, R.S.C. 1970, c. C- 23, (the "Act") are inconsistent with s. 8 of the *Charter* by reason of authorizing unreasonable searches and seizures and are therefore of no force and effect.

> …[*T*]he crux of this case is the meaning to be given to the term "unreasonable" in the s. 8 guarantee of freedom from unreasonable search or seizure. The guarantee is vague and open. The American courts have had the advantage of a number of specific prerequisites articulated in the Fourth Amendment to the United States Constitution, as well as a history of colonial opposition to certain Crown investigatory practices from which to draw out the nature of the interests protected by that Amendment and the kinds of conduct it proscribes.
>
> [The Fourth Amendment of the United States Constitution provides:
>
> > "The right of the people to be secure in their persons, houses, papers, and effects, against unreasonable searches and seizures, shall not be violated, and no Warrants shall issue, but upon probable cause, supported by Oath or affirmation, and particularly describing the place to be searched, and the persons or things to be seized."]
>
> There is none of this in s. 8. There is no specificity in the section beyond the bare guarantee of freedom from "unreasonable" search and seizure; nor is there any particular historical, political or philosophic context capable of providing an obvious gloss on the meaning of the guarantee.
>
> It is clear that the meaning of "unreasonable" cannot be determined by recourse to a dictionary, nor for that matter, by reference to the rules of statutory construction. The task of expounding a constitution is crucially different from that of construing a statute. A statute defines present rights and obligations. It is easily enacted and as easily repealed. A constitution, by contrast, is drafted with an eye to the future. Its function is to provide a continuing framework for the legitimate exercise of governmental power and, when joined by a Bill or a Charter of Rights, for the unremitting protection of individual rights and liberties. Once enacted, its provisions cannot easily be repealed or amended. It must, therefore, be capable of growth and development over time to meet new social, political and historical realities often unimagined by its framers. The judiciary is the guardian of the constitution and must, in interpreting its provisions, bear these considerations in mind. Professor Paul Freund expressed this idea aptly when he admonished the American courts "not to read the provisions of the Constitution like a last will and testament lest it become one".
>
> The need for a broad perspective in approaching constitutional documents is…contained in Viscount Sankey's classic formulation in *Edwards v. Attorney-General for Canada*, 1929 CanLII 438 (UK JCPC), [1930] A.C. 124, at p. 136, cited and applied in countless Canadian cases:
>
> > "The British North America Act planted in Canada a living tree capable of growth and expansion within its natural limits. The object of the Act was to grant a Constitution to Canada .... Their Lordships do not conceive it to be the duty of this Board--it is certainly not their desire--to cut down the provisions of the Act by a narrow and technical construction, but rather to give it a large and liberal interpretation."
>
> More recently, in *Minister of Home Affairs v. Fisher*, [1980] A.C. 319, dealing with the Bermudian Constitution, Lord Wilberforce reiterated at p. 328 that a constitution is a document "*sui generis*, calling for principles of interpretation of its own, suitable to its character", and that as such, a constitution incorporating a Bill of Rights calls for:
>
> > "... a generous interpretation avoiding what has been called "the austerity of tabulated legalism," suitable to give individuals the full measure of the fundamental rights and freedoms referred to."
>
> Such a broad, purposive analysis, which interprets specific provisions of a constitutional document in the light of its larger objects is also consonant with the classical principles of American constitutional construction enunciated by Chief Justice Marshall in *M'Culloch v. Maryland*, 17 U.S. (4 Wheat.) 316 (1819). It is, as well, the approach I intend to take in the present case.
>
> I begin with the obvious. The *Canadian Charter of Rights and Freedoms* is a purposive document. Its purpose is to guarantee and to protect, within the limits of reason, the enjoyment of the rights and freedoms it enshrines. It is intended to constrain governmental action inconsistent with those rights and freedoms; it is not in itself an authorization for governmental action. In the present case this means… that in guaranteeing the right to be secure from unreasonable searches and seizures, s. 8 acts as a limitation on whatever powers of search and seizure the federal or provincial governments already and otherwise possess. It does not in itself confer any powers, even of "reasonable" search and seizure, on these governments. This leads, in my view, to the further conclusion that an assessment of the constitutionality of a search and seizure, or of a statute authorizing a search or seizure, must focus on its "reasonable" or "unreasonable" impact on the subject of the search or the seizure, and not simply on its rationality in furthering some valid government objective.
>
> Since the proper approach to the interpretation of the *Charter of Rights and Freedoms* is a purposive one, before it is possible to assess the reasonableness or unreasonableness of the impact of a search or of a statute authorizing a search, it is first necessary to specify the purpose underlying s. 8: in other words, to delineate the nature of the interests it is meant to protect.

Dickson J. (as he then was) went on to conclude, based on his analysis of the purpose for which security against unreasonable search and seizure is protected, that s. 8 protects an individual's reasonable expectation of privacy. Accordingly, he found invalid those provisions of the *Combines Investigation Act*, RSC 1970, c. C-23, s. 10(1), (3) that authorized the issuance of search warrants by officials whose functions were investigative, without any requirement for reasonable and probable grounds to believe that an offence had been committed and that the place of search would afford evidence of the commission of the offence.

3 Notes and questions

1. In *Hunter,* Dickson J. refers approvingly to "classical principles of American constitutional construction" articulated by Chief Justice Marshall in *McCulloch v. Maryland, 17 U.S. (4 Wheat.) 316*, 406-7 *(1819)*:

   > Among the enumerated powers [allotted to Federal Congress], we do not find that of establishing a bank or creating a corporation. But there is no phrase in [the Constitution] which, like the articles of confederation, excludes incidental or implied powers; and which requires that everything granted shall be expressly and minutely described. Even the 10th Amendment, which was framed for the purpose of quieting the excessive jealousies which had been excited, omits the word "expressly," and declares only that the powers "not delegated to the United States, nor prohibited to the States, are reserved to the States or to the people," thus leaving the question whether the particular power which may become the subject of contest has been delegated to the one Government, or prohibited to the other, to depend on a fair construction of the whole instrument. The men who drew and adopted this amendment had experienced the embarrassments resulting from the insertion of this word in the articles of confederation, and probably omitted it to avoid those embarrassments. A constitution, to contain an accurate detail of all the subdivisions of which its great powers will admit, and of all the means by which they may be carried into execution, would partake of the prolixity of a legal code, and could scarcely be embraced by the human mind. It would probably never be understood by the public. Its nature, therefore, requires, that only its great outlines should be marked, its important objects designated, and the minor ingredients which compose those objects be deduced from the nature of the objects themselves. [W]e must never forget, that it is a *constitution* we are expounding.

2. In *Hunter*, Dickson J. also referred to *Minister of Home Affairs v. Fisher,* [1980] A.C. 319, an opinion of the Privy Council that set out the purposive approach for interpreting a bill of rights. The case came to the Privy Council on appeal from Bermuda:

   > …The judgment of their Lordships was delivered by LORD WILBERFORCE.
   >
   > [Section 11 of the Constitution of Bermuda provided:

> "(5) For the purposes of this section, a person shall be deemed to belong to Bermuda if that person - (*a*) possesses Bermudian status;... (*c*) is the wife of a person to whom either of the foregoing paragraphs of this subsection applies not living apart from such person...; or (*d*) is under the age of 18 years and is the child, stepchild or child adopted in a manner recognized by law of a person to whom any of the foregoing paragraphs of this subsection applies."
>
> The Jamaican mother of four illegitimate children all born in Jamaica married a Bermudian in 1972. The mother and the children took up residence with the husband in Bermuda in 1975. At all material times the children were under 18. In 1976 the Minister of Labour and Immigration ordered the children to leave Bermuda. The mother and her husband applied to the Supreme Court to quash the order and for a declaration that the children were to be deemed to belong to Bermuda. The Supreme Court refused a declaration on the ground that the children were illegitimate. On appeal, it was held by a majority that the children belonged to Bermuda by reason of s. 11(5)*(d)* of the Bermudian Constitution. On appeal to the Privy Council, the Minister of Home Affairs argued that rules of statutory interpretation required that "child" be interpreted as denoting only legitimate children. After surveying the common law and statutory bases for this proposition, their Lordships turned to the proper methodology for interpreting a constitutional text:]
>
> So far the discussion has been related to Acts of Parliament concerned with specific subjects. Here…we are concerned with a Constitution, brought into force certainly by Act of Parliament, the *Bermuda Constitution Act* 1967 United Kingdom, but established by a self- contained document set out in Schedule 2 to the *Bermuda Constitution Order* 1968 (United Kingdom S.I. 1968 No. 182). It can be seen that this instrument has certain special characteristics. 1. It is, particularly in Chapter I, drafted in a broad and ample style which lays down principles of width and generality. 2. Chapter I is headed "Protection of Fundamental Rights and Freedoms of the Individual." It is known that this chapter. as similar portions of other constitutional instruments drafted in the post-colonial period, starting with the Constitution of Nigeria, and including the Constitutions of most Caribbean territories, was greatly influenced by the *European Convention for the Protection of Human Rights and Fundamental Freedoms* (1953) (Cmd. 8969). That Convention was signed and ratified by the United Kingdom and applied to dependent territories including Bermuda. It was in turn influenced by the United Nations' *Universal Declaration of Human Rights* of 1948. These antecedents, and the form of Chapter I itself, call for a generous interpretation avoiding what has been called "the austerity of tabulated legalism," suitable to give to individuals the full measure of the fundamental rights and freedoms referred to. 3. …It is thus to "have effect for the purpose of affording protection to the aforesaid rights and freedoms" subject only to such limitations contained in it "being limitations designed to ensure that the enjoyment of the said rights and freedoms by any individual does not prejudice... the public interest."
>
> When therefore it becomes necessary to interpret…Chapter I…the question must inevitably be asked whether the … premise…that these provisions are to be construed in the manner and according to the rules which apply to Acts of Parliament, is sound. In their Lordships' view there are two possible answers to this. The first would be to say that, recognizing the status of the Constitution as, in effect, an Act of Parliament, there is room for interpreting it with less rigidity, and greater generosity, than other Acts, such as those which are concerned with property, or succession, or citizenship. On the particular question this would require the court to accept as a starting point the general presumption that "child" means "legitimate child" but to recognize that this presumption may be more easily displaced. The second would be more radical: it would be to treat a constitutional instrument such as this as *sui generis*, calling for principles of interpretation of its own, suitable to its character as already described, without necessary acceptance of all the presumptions that are relevant to legislation of private law.
>
> …[*T*]heir Lordships prefer the second. This is in no way to say that there are no rules of law which should apply to the interpretation of a Constitution. A Constitution is a legal instrument giving rise, amongst other things, to individual rights capable of enforcement in a court of law. Respect must be paid to the language which has been used and to the traditions and usages which have given meaning to that language. It is quite consistent with this…to take as a point of departure for the process of interpretation a recognition of the character and origin of the instrument, and to be guided by the principle of giving full recognition and effect to those fundamental rights and freedoms with a statement of which the Constitution commences. …
>
> In their Lordships' opinion, paragraph **[11(5)]**(*d*) in its context amounts to a clear recognition of the unity of the family as a group and acceptance of the principle that young children should not be separated from a group which as a whole belongs to Bermuda. This would be fully in line with article 8 of the *European Convention on Human Rights and Fundamental Freedoms* (respect for family life), decisions on which have recognised the family unit and the right to protection of illegitimate children. Moreover the draftsman of the Constitution must have had in mind (a) the United Nations' *Declaration of the Rights of the Child* adopted by resolution (1386 (xiv)) on November 29, 1959, which contains the words in principle
>
> > "[the child] shall, wherever possible, grow up in the care and under the responsibility of his parents... a child of tender years shall not, save in exceptional circumstances, be separated from his mother."
>
> and (b) article 24 of the *International Covenant on Civil and Political Rights* 1966 which guarantees protection to every child without any discrimination as to birth. Though these instruments at the date of the Constitution had no legal force, they can certainly not be disregarded as influences upon legislative policy.
>
> Their Lordships consider that the force of these arguments, based purely upon the Constitution itself, is such as to compel the conclusion that "child" bears an unrestricted meaning [that includes children born outside marriage]. …

3. Following *Hunter*, in *R. v. Big M Drug Mart Ltd.,* 1985 CanLII 69 (SCC), [1985] 1 SCR 295, Justice Dickson characterized purposive interpretation in these terms:

> …In *Hunter v. Southam Inc.,* 1984 CanLII 33 (SCC), *[1984] 2 SCR 145,* this Court expressed the view that the proper approach to the definition of the rights and freedoms guaranteed by the Charter was a purposive one. The meaning of a right or freedom guaranteed by the Charter was to be ascertained by an analysis of the purpose of such a guarantee; it was to be understood, in other words, in the light of the interests it was meant to protect.
>
> In my view this analysis is to be undertaken, and the purpose of the right or freedom in question is to be sought by reference to the character and the larger objects of the Charter itself, to the language chosen to articulate the specific right or freedom, to the historical origins of the concepts enshrined, and where applicable, to the meaning and purpose of the other specific rights and freedoms with which it is associated within the text of the Charter. The interpretation should be, as the judgment in Southam emphasizes, a generous rather than a legalistic one, aimed at fulfilling the purpose of the guarantee and securing for individuals the full benefit of the Charter's protection. At the same time it is important not to overshoot the actual purpose of the right or freedom in question, but to recall that the Charter was not enacted in a vacuum, and must therefore…be placed in its proper linguistic, philosophic and historical contexts.

4. *Purposive interpretation* conceives of the *Charter* as a set of abstract standards that—by virtue of their status as supreme law—must be given effect, absent some constitutional basis for their restriction. The purposive interpretive method is often contrasted with originalism. Originalism maintains that the meaning of a constitutional text is determined at the historical moment of its enactment, according to the framer's intentions, their expected applications, or the public meaning of the text. Proponents of originalism suggest that judges and other

interpreters are constrained by this fixed meaning. While the Supreme Court endorsed originalism in its interpretation of the *Charter*'s statutory predecessor, the *Canadian Bill of Rights*, it emphatically rejected originalism in the early days of the *Charter*. The Court has remained consistent in its embrace of purposive interpretation despite a recent revival in interest in originalist methods amongst some Canadian scholars. As you read the following passages, ask yourself: What accounts for the rejection of originalism as a method for interpreting the *Charter*?

a. Article 1 of the *Canadian Bill of Rights* stated:

1. It is hereby recognized and declared that in Canada there have existed and shall continue to exist without discrimination by reason of race, national origin, colour, religion or sex, the following human rights and fundamental freedoms, namely,

(a) the right of the individual to life, liberty, security of the person and enjoyment of property, and the right not to be deprived thereof except by due process of law;

(b) the right of the individual to equality before the law and the protection of the law;

(c) freedom of religion;

(d) freedom of speech;

(e) freedom of assembly and association; and

(f) freedom of the press.

b. In *Robertson and Rosetanni v. The Queen*, 1963 CanLII 17 (SCC), [1963] SCR 651, Justice Ritchie, writing for the majority, claimed that the text of the *Canadian Bill of Rights* demanded an originalist approach to its interpretation:

It is to be noted at the outset that the Canadian Bill of Rights is not concerned with "human rights and fundamental freedoms" in any abstract sense, but rather with such "rights and freedoms" as they existed in Canada immediately before the statute was enacted. (See also s. 5(1)). It is therefore the "religious freedom" then existing in this country that is safe-guarded by the provisions of s. 2 which read, in part, as follows:

> Every law of Canada shall, unless it is expressly declared by an Act of the Parliament of Canada that it shall operate notwithstanding the Canadian Bill of Rights, be so construed and applied as not to abrogate, abridge or infringe or to authorize the abrogation, abridgment or infringement of any of the rights or freedoms herein recognized and declared...

It is accordingly of first importance to understand the concept of religious freedom which was recognized in this country before the enactment of the Canadian Bill of Rights and after the enactment of the Lord's Day Act in its present form…

It is against this background that the effect of the provisions of the *Lord's Day Act* on "religious freedom" as guaranteed by the *Canadian Bill of Rights* is to be considered. Section 4 of the *Lord's Day Act* reads as follows:

> It shall not be lawful for any person on the Lord's Day, except as provided herein, or in any provincial Act or law now or hereafter in force, to sell or offer for sale or purchase any goods, chattels, or other personal property, or any real estate, or *to carry on or transact any business of his ordinary calling,* or in connection with such calling, or for gain to do, or employ any other person to do, on that day, any work, business, or labour.

The italics are my own and indicate the offence with which the appellants were charged.

As has been indicated, legislation for the preservation of the sanctity of Sunday has existed in this country from the earliest times and has at least since 1903 been regarded as a part of the criminal law in its widest sense. Historically, such legislation has never been considered as an interference with the kind of "freedom of religion" guaranteed by the *Canadian Bill of Rights.*

c. In *R. v. Big M Drug Mart Ltd.,* 1985 CanLII 69 (SCC), [1985] 1 SCR 295, Dickson C.J. emphasized that originalism is inapplicable to the *Charter*:

It is not necessary to reopen the issue of the meaning of freedom of religion under the *Canadian Bill of Rights*, because whatever the situation under that document, it is certain that the *Canadian Charter of Rights and Freedoms* does not simply "recognize and declare" existing rights as they were circumscribed by legislation current at the time of the *Charter*'s entrenchment. The language of the *Charter* is imperative. It avoids any reference to existing or continuing rights but rather proclaims in the ringing terms of s. 2 that:

> 2. Everyone has the following fundamental freedoms:
>
> (a) Freedom of conscience and religion;

…[T]he *Charter* is intended to set a standard upon which present as well as future legislation is to be tested. Therefore the meaning of the concept of freedom of conscience and religion is not to be determined solely by the degree to which that right was enjoyed by Canadians prior to the proclamation of the *Charter*. For this reason, *Robertson and Rosetanni*, *supra*, cannot be determinative of the meaning of "freedom of conscience and religion" under the *Charter*. We must look, rather, to the distinctive principles of constitutional interpretation appropriate to expounding the supreme law of Canada.

d. For attempts to bring originalism into contact with the Charter, see Kerri Froc, "A Prayer for Original Meaning: A History of Section 15 and What It Should Mean for Equality" (2018) 38:1 National Journal of Constitutional Law 35; Leonid Sirota and Benjamin Oliphant, "Originalist Reasoning in Canadian Constitutional Jurisprudence" (2017) 50:2 UBC Law Review 505.

5. Purposive interpretation requires interpreters to approach the *Charter* systematically, assessing how the purpose of each provision relates to every other. Consider the following excerpts:

a. *Dubois v. The Queen*, 1985 CanLII 10 (SCC), [1985] 2 SCR 350:

"Our constitutional Charter must be construed as a system where "Every component contributes to the meaning as a whole, and the whole gives meaning to its parts" (P. A. Côté writing about statutory interpretation in The Interpretation of Legislation in Canada (1984), at p. 236). The courts must interpret each section of the Charter in relation to the others."

b. *R. v. Lyons*, 1987 CanLII 25 (SCC), [1987] 2 SCR 309:

"[T]he rights and freedoms protected by the *Charter* are not insular and discrete…Rather, the *Charter* protects a complex of interacting values, each more or less fundamental to the free and democratic society that is Canada…and the particularization of rights and freedoms contained in the *Charter* thus represents a somewhat artificial, if necessary and intrinsically worthwhile attempt to structure and focus the judicial exposition of such rights and freedoms. The necessity of structuring the discussion should not, however, lead us to overlook the

importance of appreciating the manner in which the amplification of the content of each enunciated right and freedom imbues and informs our understanding of the value structure sought to be protected by the *Charter* as a whole and, in particular, of the content of the other specific rights and freedoms it embodies."

c. *R. v. Morgentaler*, 1988 CanLII 90 (SCC), [1988] 1 SCR 30:

"We are invited…to consider the purpose of the *Charter* in general and of the right to liberty in particular. The Charter is predicated on a particular conception of the place of the individual in society. An individual is not a totally independent entity disconnected from the society in which he or she lives. Neither, however, is the individual a mere cog in an impersonal machine in which his or her values, goals and aspirations are subordinated to those of the collectivity. The individual is a bit of both. The Charter reflects this reality by leaving a wide range of activities and decisions open to legitimate government control while at the same time placing limits on the proper scope of that control. Thus, the rights guaranteed in the Charter erect around each individual, metaphorically speaking, an invisible fence over which the state will not be allowed to trespass. The role of the courts is to map out, piece by piece, the parameters of the fence…

The idea of human dignity finds expression in almost every right and freedom guaranteed in the Charter. Individuals are afforded the right to choose their own religion and their own philosophy of life, the right to choose with whom they will associate and how they will express themselves, the right to choose where they will live and what occupation they will pursue. These are all examples of the basic theory underlying the Charter, namely that the state will respect choices made by individuals and, to the greatest extent possible, will avoid subordinating these choices to any one conception of the good life.

Thus, an aspect of the respect for human dignity on which the Charter is founded is the right to make fundamental personal decisions without interference from the state. This right is a critical component of the right to liberty…[T]his right, properly construed, grants the individual a degree of autonomy in making decisions of fundamental personal importance."

6. In *R. v. Hebert*, 1990 CanLII 118 (SCC), [1990] 2 SCR 151, Wilson J. mapped the relationship between the idea of purposive interpretation and the two-stage model of constitutional adjudication under the Charter. As Wilson explains, the purpose of a right informs its scope, whereas the purposes that government may rely on to restrict a right inform its strength, as determined by the limitation analysis in s. 1:

I agree with my colleagues that the right to silence is a principle of fundamental justice within the meaning of s. 7 of the *Canadian Charter of Rights and Freedoms* and that a person cannot therefore be deprived of his or her right to life, liberty or security of the person by violating that right.

I believe that the right must be given "a generous rather than a legalistic [interpretation] aimed at fulfilling the purpose of the guarantee and securing for individuals the full benefit of the *Charter*'s protection": see *R. v. Big M Drug Mart Ltd.*, 1985 CanLII 69 (SCC), [1985] 1 SCR 295, *per* Dickson J. (as he then was), at p. 344. It is accordingly inappropriate to qualify it by balancing the interests of the state against it…

Section 7 confers on an accused the right to life, liberty and security of the person. It then provides that the accused may not be deprived of that right except in accordance with the principles of fundamental justice. In other words, he or she may be deprived of the s. 7 right provided the deprivation is effected without offending fundamental justice. In deciding whether or not the authorities have offended fundamental justice or not it is, in my view, essential to focus on the treatment of the accused and not on the objective of the state. It would, in my view, be quite contrary to a purposive approach to the s. 7 right to inject justificatory considerations for putting limits upon it into the ascertainment of its scope or content.

Under purposive interpretation, the scope of a constitutional right is determined in reference to its purpose rather than the reasons that support its restriction. Why does Justice Wilson insist that the reasons for restricting the right play no role in determining its scope?

7. The Court has held that this approach applies even when the reasons that support a right's restriction make reference to another right. Thus, conflicts between rights must be resolved under the analysis required by section 1 of the *Charter*, as a matter of strength rather than scope.

a. Consider Wilson J.'s analysis in *Edmonton Journal v. Alberta (Attorney General)*, 1989 CanLII 20 (SCC), [1989] 2 SCR 1326:

In my view, this case raises an important issue regarding the proper method of application of the *Canadian Charter of Rights and Freedoms* to individual cases and, because my reasons for finding s. 30(1) of the Alberta *Judicature Act* unconstitutional reflect one of two possible approaches to the *Charter*'s application, I thought it might be appropriate at the outset to say a word or two about the different approaches.

Of the two possible approaches to the *Charter*'s application one might be described as the abstract approach and the other the contextual approach. While the mechanics of application, i.e. the proper analytical steps to be taken are the same under each, which one is adopted may tend to affect the result of the balancing process called for under s. 1.

Under each approach it is necessary to ascertain the underlying value which the right alleged to be violated was designed to protect. This is achieved through a purposive interpretation of *Charter* rights. It is also necessary under each approach to ascertain the legislative objective sought to be advanced by the impugned legislation. This is done by ascertaining the intention of the legislator in enacting the particular piece of legislation. When both the underlying value and the legislative objective have been identified, and it becomes clear that the legislative objective cannot be achieved without some infringement of the right, it must then be determined whether the impugned legislation constitutes a reasonable limit on the right which can be demonstrably justified in a free and democratic society.

It seems to me that under the abstract approach the underlying value sought to be protected by s. 2(*b*) of the *Charter* is determined at large as my colleague Cory J. has done. He finds freedom of expression to have been fundamental to the historical development of our political, social and educational institutions in Canada. He emphasizes the seriousness of restricting the free exchange of ideas and opinions in a democratic form of society and concludes that it is difficult to imagine a more important right in a democracy than freedom of expression.

I do not disagree with my colleague that freedom of expression plays that vital role in a political democracy. The problem is that the values in conflict in the context of this particular case are the right of litigants to the protection of their privacy in matrimonial disputes and the right of the public to an open court process. Both cannot be fully respected. One must yield to the exigencies of the other. I ask myself therefore whether a contextual approach in balancing the right to privacy against freedom of the press under s. 1 is not more appropriate than an approach which assesses the relative importance of the competing values in the abstract or at large.

It is of interest to note in this connection that La Forest J. completely agrees with Cory J. about the importance of freedom of expression in the abstract. He acknowledges that it is fundamental in a democratic society. He sees the issue in the case, however, as being whether an open court process should prevail over the litigant's right to privacy. In other words, while not disputing the values which are protected by s. 2(*b*) as identified by Cory J., he takes a contextual approach to the definition of the conflict in this particular case. Notwithstanding the enormous importance of freedom of expression in a political context, he finds that it must yield in the context of this case to the litigant's

right to privacy. The impugned legislation is accordingly, in his view, a reasonable limit on freedom of the press. Cory J. reaches the converse conclusion and the concern raised is whether the difference in result may be conditioned by the methodology adopted in assessing the importance of the values in conflict.

One thing seems clear and that is that one should not balance one value at large and the conflicting value in its context. To do so could well be to pre-judge the issue by placing more weight on the value developed at large than is appropriate in the context of the case. Nor should one, it seems to me, balance a private interest, i.e. litigant x's interest in his privacy against a public one, the public's interest in an open court process. Both interests must be seen as public interests, in this case the public interest in protecting the privacy of litigants generally in matrimonial cases against the public interest in an open court process…

One virtue of the contextual approach, it seems to me, is that it recognizes that a particular right or freedom may have a different value depending on the context. It may be, for example, that freedom of expression has greater value in a political context than it does in the context of disclosure of the details of a matrimonial dispute. The contextual approach attempts to bring into sharp relief the aspect of the right or freedom which is truly at stake in the case as well as the relevant aspects of any values in competition with it. It seems to be more sensitive to the reality of the dilemma posed by the particular facts and therefore more conducive to finding a fair and just compromise between the two competing values under s. 1.

It is my view that a right or freedom may have different meanings in different contexts. Security of the person, for example, might mean one thing when addressed to the issue of over-crowding in prisons and something quite different when addressed to the issue of noxious fumes from industrial smoke-stacks. It seems entirely probable that the value to be attached to it in different contexts for the purpose of the balancing under s. 1 might also be different. It is for this reason that I believe that the importance of the right or freedom must be assessed in context rather than in the abstract and that its purpose must be ascertained in context. This having been done, the right or freedom must then, in accordance with the dictates of this Court, be given a generous interpretation aimed at fulfilling that purpose and securing for the individual the full benefit of the guarantee.

b. In *R. v. Keegstra*, 1990 CanLII 24 (SCC), [1990] 3 SCR 697, Dickson C.J. endorsed Wilson J.'s approach to dealing with conflicts of rights:

The second matter which I wish to address before leaving the s. 2(*b*) inquiry concerns the relevance of other *Charter* provisions and international agreements to which Canada is a party in interpreting the coverage of the freedom of expression guarantee. It has been argued in support of excluding hate propaganda from the coverage of s. 2(*b*) that the use of ss. 15 and 27 of the *Charter* -- dealing respectively with equality and multiculturalism -- and Canada's acceptance of international agreements requiring the prohibition of racist statements make s. 319(2) incompatible with even a large and liberal definition of the freedom (see, e.g., I. Cotler, "Hate Literature", in R. S. Abella and M. L. Rothman, eds., *Justice Beyond Orwell* (1985), 117, at pp. 121-22). The general tenor of this argument is that these interpretative aids inextricably infuse each constitutional guarantee with values supporting equal societal participation and the security and dignity of all persons. Consequently, it is said that s. 2(*b*) must be curtailed so as not to extend to communications which seriously undermine the equality, security and dignity of others.

Because I will deal extensively with the impact of various *Charter* provisions and international agreements when considering whether s. 319(2) is a justifiable limit under s. 1, I will keep my comments here to a minimum. Suffice it to say that I agree with the general approach of Wilson J. in *Edmonton Journal*, *supra*, where she speaks of the danger of balancing competing values without the benefit of a context. This approach does not logically preclude the presence of balancing within s. 2(*b*) -- one could avoid the dangers of an overly abstract analysis simply by making sure that the circumstances surrounding both the use of the freedom and the legislative limit were carefully considered. I believe, however, that s. 1 of the *Charter* is especially well suited to the task of balancing, and consider this Court's previous freedom of expression decisions to support this belief. It is, in my opinion, inappropriate to attenuate the s. 2(*b*) freedom on the grounds that a particular context requires such; the large and liberal interpretation given the freedom of expression in *Irwin Toy* indicates that the preferable course is to weigh the various contextual values and factors in s. 1.

Wilson J. and Dickson C.J. both refer to the dangers of balancing competing rights at the stage in which interpreters determine a right's scope. What are these dangers? As you approach the section 1 analysis in Chapter 16, ask yourself: why is it that courts have preferred this method for resolving conflicts?

8. In *Toronto (City) v. Ontario (Attorney General)*, 2021 SCC 34, the Court was tasked with determining the precise force of unwritten constitutional principles. The majority of the Court held that they could be used to assist in the interpretation of the Constitution's written provisions, including the rights articulated in the *Charter*. They could also be used to develop structural constitutional doctrines. However, they could not be relied upon to invalidate legislation:

The Constitution of Canada embodies written and unwritten norms. This Court has recognized that our Constitution describes an architecture of the institutions of state and of their relationship to citizens that connotes certain underlying principles... These principles, such as democracy and the rule of law, "infuse our Constitution" (*Secession Reference*, at para. 50). Although not recorded outside of "oblique reference[s]" in the preamble to the *Constitution Act, 1867* and to the *Constitution Act, 1982* (para. 51), these principles are "foundational" (para. 49), without which "it would be impossible to conceive of our constitutional structure" (para. 51). These principles have "full legal force" and may give rise to substantive legal obligations (para. 54, quoting *Reference re Resolution to Amend the Constitution*, 1981 CanLII 25 (SCC), [1981] 1 SCR 753, at p. 845). "[L]ike all principles of political morality, [they] can guide and constrain the decision-making of the executive and legislative branches" (C.A. reasons, at para. 84, citing *British Columbia v. Imperial Tobacco Canada Ltd.*, 2005 SCC 49, [2005] 2 SCR 473, at para. 52)…

Ultimately, what "full legal force" means is dependent on the particular context. Any legal instrument or device, such as a contract or a will or a rule, has "full legal force" within its proper ambit… [I]n our view, *because* they are unwritten, their "full legal force" is realized *not* in *supplementing* the written text of our Constitution as "provisions of the Constitution" with which no law may be inconsistent and remain of "force or effect" under s. 52(1) of the *Constitution Act, 1982*. Unwritten constitutional principles are not "provisions of the Constitution". Their legal force lies in their representation of general principles within which our constitutional order operates and, therefore, by which the Constitution's written terms — its *provisions* — are to be given effect. In practical terms, this means that unwritten constitutional principles may assist courts in only two distinct but related ways.

First, they may be used in the interpretation of constitutional provisions... When applied to *Charter* rights, unwritten principles assist with purposive interpretation, informing "the character and the larger objects of the *Charter* itself, . . . the language chosen to articulate the specific right or freedom, [and] the historical origins of the concepts enshrined" (*Quebec (Attorney General)*, at para. 7, quoting *Big M Drug Mart Ltd.*, at p. 344; see also *R. v. Poulin*, 2019 SCC 47, at para. 32).

Secondly, and relatedly, unwritten principles can be used to develop structural doctrines unstated in the written Constitution *per se*, but necessary to the coherence of, and flowing by implication from, its architecture. In this way, structural doctrines can fill gaps and address important questions on which the text of the Constitution is silent, such as the doctrine of full faith and credit (*Morguard Investments Ltd. v.*

> *De Savoye*, 1990 CanLII 29 (SCC), [1990] 3 SCR 1077; *Hunt v. T&N plc*, 1993 CanLII 43 (SCC), [1993] 4 SCR 289); the doctrine of paramountcy (*Huson v. The Township of South Norwich* (1895), 1895 CanLII 1 (SCC), 24 SCR 145); the remedy of suspended declarations of invalidity (*Reference re Manitoba Language Rights*, 1985 CanLII 33 (SCC), [1985] 1 SCR 721); and the obligations to negotiate that would follow a declaration of secession by a province (*Secession Reference*).
>
> … Attempts to apply unwritten constitutional principles in such a manner as an independent basis to invalidate legislation, whether alone or in combination, suffer from a normative and a practical deficiency, each related to the other, and each fatal on its own.
>
> First, such attempts trespass into legislative authority to amend the Constitution, thereby raising fundamental concerns about the legitimacy of judicial review and distorting the separation of powers (*Imperial Tobacco*, at paras. 53-54, 60 and 64-67; J. Leclair, "Canada's Unfathomable Unwritten Constitutional Principles" (2002), 27 *Queen's L.J.* 389, at pp. 427-32)…
>
> Secondly, unwritten constitutional principles are "highly abstract" and "[u]nlike the rights enumerated in the *Charter* — rights whose textual formulations were debated, refined and ultimately resolved by the committees and legislative assemblies entrusted with constitution-making authority — the concep[t] of democracy . . . ha[s] no canonical formulatio[n]" (C.A. reasons, at para. 85). Unlike the written text of the Constitution, then, which "promotes legal certainty and predictability" in the exercise of judicial review (*Secession Reference*, at para. 53), the nebulous nature of the unwritten principles makes them susceptible to be interpreted so as to "render many of our written constitutional rights redundant and, in doing so, undermine the delimitation of those rights chosen by our constitutional framers" (*Imperial Tobacco*, at para. 65). Accordingly, there is good reason to insist that "protection from legislation that some might view as unjust or unfair properly lies not in the amorphous underlying principles of our Constitution, but in its text and the ballot box" (para. 66). In our view, this statement should be understood as covering all possible bases for claims of right (i.e., "unjust or unfair" *or otherwise normatively deficient*).

The majority's conclusion that unwritten constitutional principles could not invalidate legislation was motivated, at least in large part, by a concern that to hold otherwise would render many of the *Charter*'s written provisions redundant. Is this concern persuasive? Does the purposive method outlined in this chapter provide any resources to respond to it?

9. Under the heading "General", sections 25-31 of the *Charter* articulate norms that are relevant to its interpretation. For example, sections 27 and 28 state:

> **Multicultural heritage**
>
> 27 This Charter shall be interpreted in a manner consistent with the preservation and enhancement of the multicultural heritage of Canadians.
>
> **Rights guaranteed equally to both sexes**
>
> 28 Notwithstanding anything in this Charter, the rights and freedoms referred to in it are guaranteed equally to male and female persons.

Consistent both with their text and with the requirement that the *Charter* be interpreted systematically, these provisions provide lenses through which courts must view and assess their interpretations of all the other provisions in the *Charter*. For a discussion of whether these provisions merely assist in the interpretation of other provisions, or whether they are independently enforceable, see Chapter 15.

10. A long-standing principle of interpretation holds that Canadian statutes and the constitution should be interpreted presumptively in accordance with international law. This principle is thought to be particularly relevant to *Charter* interpretation because the *Charter* reflects a set of commitments about human rights that emerged as an international consensus following the atrocities of the Second World War. Yet there are several well-known objections to this practice. One worry is that it may distort a proper purposive interpretation of the *Charter*. On this view, the interpretative process should be focussed on the provisions contained in the *Charter*, rather than on sources of law outside of it. Another cluster of objections concern the authority of international law norms. Canada is a dualist system, and so international law is not enforceable in Canadian courts unless it is formally integrated into Canadian law. Some worry that by interpreting the *Charter* in accordance with international law, courts efface this important feature of our legal system. Canadian courts have also at times relied on international law sources that Canada is not a party to. Critics suggest that it is unjustified to treat these sources as authoritative given that Canada has not committed itself to them.

The precise role that international law should play in the process of *Charter* interpretation was the subject of debate in *Quebec (Attorney General) v. 9147-0732 Quebec inc.*, 2020 SCC 32. The central issue in that case was whether corporations were protected by section 12 of the *Charter*, which states that "[e]veryone has the right not to be subjected to any cruel and unusual treatment or punishment".

a. Writing for the majority, Brown and Rowe JJ. (Wagner C.J. and Moldaver and Côté JJ. concurring) aimed to articulate clear limits on the use courts can make of international law in *Charter* interpretation:

> As a constitutional document that was "made in Canada"… the *Charter* and its provisions are primarily interpreted with regards to Canadian law and history…
>
> While this Court has generally accepted that international norms *can* be considered when interpreting domestic norms, they have typically played a limited role of providing *support* or *confirmation* for the result reached by way of purposive interpretation. This makes sense, as Canadian courts interpreting the *Charter* are not bound by the content of international norms…
>
> Furthermore, even within that limited supporting or confirming role, the weight and persuasiveness of each of these international norms in the analysis depends on the nature of the source and its relationship to our Constitution. The reason for this is the necessity of preserving the integrity of the Canadian constitutional structure, and Canadian sovereignty. As this Court cautioned in *Kazemi Estate v. Islamic Republic of Iran*, 2014 SCC 62, [2014] 3 SCR 176, "[t]he interaction between domestic and international law must be managed carefully in light of the principles governing what remains a dualist system of application of international law and a constitutional and parliamentary democracy": para. 150…
>
> In all, courts must be careful not to indiscriminately agglomerate the traditional *Big M Drug Mart* factors with international and comparative law. The analysis must be dominated by the former and draw on the latter only as appropriate, accompanied by an explanation of why a non-binding source is being considered and how it is being used, including the persuasive weight being assigned to it.

b. Justice Abella (Karakatsanis and Martin JJ. concurring) defended a much more liberal approach to reliance on international law in *Charter* interpretation, fueled by a commitment to the Post World War II consensus, and a view of modern constitutional rights adjudication as part of an international dialogue. She wrote:

> World War II's shocking indifference to human dignity and the devastating human rights abuses it tolerated, resulted not only in responsive protections in international human rights instruments, but also in domestic rights guarantees such as the *Canadian Bill of Rights* and, ultimately, the constitutional protection of rights and freedoms in the *Charter*.

> Since Canada's rights protections emerged from the same chrysalis of outrage as other countries around the world, it is helpful to compare Canada's prohibition against cruel and unusual treatment or punishment with how courts around the world have interpreted the numerous international human rights instruments containing provisions that closely mirror the language of s. 12. As Professor Dodek points out, since courts face common problems, considering how other courts have addressed them can assist in determining how to exercise judicial discretion ("Comparative Law at the Supreme Court of Canada in 2008: Limited Engagement and Missed Opportunities" (2009), 47 S.C.L.R. (2d) 445, at p. 454). In other words, "the search for wisdom is not to be circumscribed by national boundaries" (Hogg, at s. 36.9(c))…
>
> Narrowing our approach by putting unnecessary barriers in the way of access to international and comparative sources gratuitously threatens to undermine Canada's leading voice internationally in constitutional adjudication, a role based on its willingness to go wide and deep in the global search for the best intellectual resources it can find…
>
> All of the relevant international sources in this case lead to the irrefutable inference that the prohibition against cruel and unusual punishment is about protecting human beings from the infliction of inhuman and degrading punishment. None of them include, or have been held to include, protection for corporations. While this international consensus does not dictate the outcome, it provides compelling and relevant interpretive support. It is part of the development of an international perspective on how rights should be protected, a perspective developed pursuant to the global commitment made in 1945 to internationalize those protections, and a perspective in whose promotion Canada's jurisprudence has played a leading role. Considering what and how laws and decisions have been applied on related questions by other countries and institutions, is part not only of an ongoing global judicial conversation, but of the epistemological package constitutional courts routinely rely on.

What divides Brown and Rowe JJ., and Abella J.? Who gets the better of the exchange? Does being faithful to the *Charter* require us to remain within its bounds when interpreting it? Are the worries about relying on international law attenuated by the claim that its authority is merely persuasive?

11. In the chapters that follow, you will encounter tests that the Supreme Court of Canada has formulated to determine whether the purpose of a particular right or freedom has been breached. With respect to each of these tests, ask yourself whether the test and its application respects or effaces the principles of purposive interpretation formulated in this chapter.

4 Further reading

1. Eric M. Adams (2018), "Canadian Constitutional Interpretation" in, Cameron Hutchinson, ed., *The Fundamentals of Statutory Interpretation* (Toronto: LexisNexis) at 129.
2. Aharon Barak, *Purposive Interpretation in Law* (Princeton: Princeton University Press, 2005)
3. Dieter Grimm, *Constitutionalism: Past, Present, Future* (Oxford: Oxford University Press, 2016)
4. Mark Walters, "Written Constitutions and Unwritten Constitutionalism" in Grant Huscroft (ed.), *Expounding the Constitution: Essays in Constitutional Theory* (Cambridge: Cambridge University Press, 2008), chapter 10, pp. 245-276
5. Jacob Weinrib, "What is Purposive Interpretation?" (2024) 74:1 UTLJ 74.
6. Jacob Weinrib, *The Impasse of Constitutional Rights* (Cambridge: Cambridge University Press, 2025), ch. 3.

Chapter 15: The *Charter*'s General Provisions

1 Section 27 of the *Charter*: Multicultural Heritage

By Natasha Bakht

1.1 The Text

Section 27 of the *Canadian Charter of Rights and Freedoms* states:

> This Charter shall be interpreted in a manner consistent with the preservation and enhancement of the multicultural heritage of Canadians.

Section 27 of the *Charter* is an interpretive tool, rather than an independent right, that assists in interpreting the Charter's substantive rights and freedoms (*Church of Atheism of Central Canada v Canada (National Revenue*), 2019 FCA 296 para 15; *Hak c Procureur général du Québec*, 2021 QCCS 1466 at para 638). The provision uses the mandatory language of "shall", meaning that Canada's multicultural heritage must be considered in the interpretation of the other provisions in the *Charter.*

1.2 History and Purpose

Historically, section 27 was advocated for by European ethnic organizations seeking to express recognition of multiculturalism to counteract the dominance of English and French culture and language in the draft *Charter* (Matt James, *Misrecognized Materialists: Social Movements in Canadian Constitutional Politics* (Vancouver: UBC Press, 2006) at 78-80).

Section 27 has been used in combination with other *Charter* rights to protect the rights and interests of minority communities.

1.3 Scholarly interpretation of section 27's purpose

Several scholars have argued for a broad and liberal interpretation of the words "preservation and enhancement of the multicultural heritage of Canadians" in section 27. Ayelet Shachar has argued that "multi" in multicultural means that the interpretation of the Charter must prioritize not the majority community, but the interests of nondominant minority communities and their members. Evelyn Kallen has argued that the cultural heritage and distinctiveness of minority communities invariably involves a history of human rights violations including collective experiences of defamation, racial and cultural persecution and incarceration (Evelyn Kallen, "Multiculturalism, Minorities, and Motherhood: A Social Scientific Critique of Section 27" in Canadian Human Rights Foundation, ed, *Multiculturalism and the Charter: A Legal Perspective* (Toronto: Carswell, 1987) 123). Faisal Bhabha contends that the section promotes the idea that diversity is itself a good, and part of a common heritage shared by all Canadians. Natasha Bakht has argued that because s 27 serves to add meaning to the various rights in the *Charter*, it can amplify the multiple dimensions of these rights through an intersectional approach.

1.4 Uses of Section 27

1.4.1 Uses of Section 27 – Religious Freedom

In *R v Big M Drug Mart Ltd*, one of the first cases in which section 27 was invoked, the Supreme Court of Canada struck down the federal *Lord's Day Act,* which prohibited commercial business's from operating on Sundays. In the Court's view:

> [T]o accept that Parliament retains the right to compel universal observance of the day of rest preferred by one religion is not consistent with the preservation and enhancement of the multicultural heritage of Canadians. To do so is contrary to the expressed provisions of s. 27… *R v Big M Drug Mart Ltd,* 1985 CanLII 69 (SCC), [1985] 1 S.C.R 295 at para 99:

In *R v Edwards Books and Art Ltd et al,* 1986 CanLII 12 (SCC), [1986] 2 SCR 713, the Supreme Court of Canada drew on section 27 when determining that freedom of conscience and religion under section 2(a) prohibited indirect restrictions on religious practice. In her partly dissenting judgment in that case, Justice Wilson agreed with the majority that an Ontario law that prohibited retail operations on Sundays (in order to ensure a common pause day for workers in the province) breached s. 2(a) because it indirectly imposed an economic penalty on the religious observance of Jewish and other retailers who regarded Saturday as the Sabbath, and would either have to close their stores on both days of the weekend (which was commercially unviable) or open on Saturdays contrary to their religious beliefs. She found, with the assistance of section 27, that such a violation could not be saved by section 1 (at para 207):

> It seems to me that s. 3(4) of the *Retail Business Holidays Act* purports to recognize a group right, namely the right of those who close on Saturdays on religious grounds to stay open on Sundays because otherwise their s. 2(*a*) right would be violated. But it does not recognize the group right of all members of the group, only of some. Accordingly, the violation of the s. 2(*a*) right of the others has legislative sanction. Yet it seems to me that when the *Charter* protects group rights such as freedom of religion, it protects the rights of all members of the group. It does not make fish of some and fowl of the others. For, quite apart from considerations of equality, to do so is to introduce an invidious distinction into the group and sever the religious and cultural tie that binds them together. It is, in my opinion, an interpretation of the *Charter* expressly precluded by s. 27 which requires the *Charter* to be interpreted "in a manner consistent with the preservation and enhancement of the multicultural heritage of Canadians". Can it then be a reasonable limit under s. 1? In my opinion, it can not.

In *Mouvement laïque québécois v Saguenay (City),* 2015 SCC 16 (CanLII), [2015] 2 SCR 3 at para 74, the Supreme Court of Canada decided that s. 27 supported the recognition of a duty on the state to remain neutral in matters of religion:

> …[A] neutral public space free from coercion, pressure and judgment on the part of public authorities in matters of spirituality is intended to protect every person's freedom and dignity. The neutrality of the public space therefore helps preserve and promote the multicultural nature of Canadian society enshrined in s. 27 of the *Canadian Charter*. Section 27 requires that the state's duty of neutrality be interpreted not only in a manner consistent with the protective objectives of the *Canadian Charter*, but also with a view to promoting and enhancing diversity

Section 27 was also taken in to account by the Ontario Court of Appeal in a judgment about whether a sexual assault complainant could be permitted to wear a niqab while testifying at a criminal trial (*R v NS*, 2010 ONCA 670, aff'd, 2012 SCC 72 (CanLII), [2012] 3 SCR 726).

The Court of Appeal for Ontario noted in *R v NS*, 2010 ONCA 670 at para 79:

> Perhaps the most difficult aspect of the contextual analysis is that which requires the court to take into account other constitutional values and societal interests that may be affected by the judge's decision whether a witness should be required to remove her niqab. N.S. is a Muslim, a minority that many believe is unfairly maligned and stereotyped in contemporary Canada. A failure to give adequate consideration to N.S.'s religious beliefs would reflect and, to some extent, legitimize that negative stereotyping. Allowing her to wear a niqab could be seen as a recognition and acceptance of those minority beliefs and practices and, therefore, a reflection of the multicultural heritage of Canada recognized in s. 27 of the Charter. Permitting N.S. to wear her niqab would also broaden access to the justice system for those in the position of N.S., by indicating that participation in the justice system would not come at the cost of compromising one's religious beliefs.

The case was appealed to the Supreme Court of Canada. While the majority judgment made no mention of section 27, Justice Lebel in a concurring opinion referred to section 27. However, he concluded that the right to a fair trial requires that the witness' face in a criminal case must be visible, with the consequence that the wearing of a niqab by a witness was prohibited (*R v NS,* 2012 SCC 72 at para 72):

> Dickson C.J. recognized in *Oakes* that the *Charter* is grounded in a long history and tradition. The "living tree" keeps growing, but always from its roots. Today, we may rightly say that, in s. 27 of the *Charter*, Canada accepts the importance of multiculturalism in its social life. In s. 27, Canada signals its acceptance that it's changing through every day of its history. At the same time, however, the recognition of multiculturalism takes place in the environment of the Constitution itself, and is rooted in its political and legal traditions. The Constitution requires an openness to new differences that appear within Canada, but also an acceptance of the principle that it remains connected with the roots of our contemporary democratic society.

1.4.2 Uses of section 27 – Equality

In *Andrews v Law Society of British Columbia,* 1989 CanLII 2 (SCC), [1989] 1 SCR 143 at para 34, the Supreme Court used s. 27 to support the view that the equality guarantee does not mandate identical treatment (that everyone be treated the same): "If the *Charter* was intended to eliminate all distinctions, then there would be no place for sections such as 27 (multicultural heritage) ... and other such provisions designed to safeguard certain distinctions."

1.4.3 Uses of section 27 – Due Process

Section 27 has supported substantive rights in due process cases.

The Supreme Court of Canada declined to create a general or *prima facie* privilege for a self-incriminating confession made by an accused to a minister or other religious advisor but said that the question of whether a religious communication should be treated as privileged should be decided on a case-by-case basis. Relying on section 27, the Court held that "the case-by-case analysis must begin with a 'non-denominational' approach" that is sensitive to the fact of Canada's multicultural heritage and that accordingly does not advantage "'confessional' communications." *R v Gruenke,* 1991 CanLII 40 (SCC), [1991] 3 SCR 263 at 291, 314.

The Supreme Court of Canada relied on s. 27 in extending the right (under s. 14) of a party or witness in a court proceeding to the assistance of an interpreter to languages other than just English and French:

> In so far as a multicultural heritage is necessarily a multilingual one, it follows that a multicultural society can only be preserved and fostered if those who speak languages other than English and French are given real and substantive access to the criminal justice system. *R v Tran*, 1994 CanLII 56 (SCC), [1994] 2 SCR 951 at para 37.

In *R v Fiddler* (1994), 1994 CanLII 7396 (ON SC), 22 CRR (2d) 82 at paras 111-112, the Ontario Court (Gen Div) held that section 27 did not assist the accused in his claim that the right to a fair trial requires that a jury be composed of individuals of his own race.

> [S]ection 27 of the Charter does not assist the applicant either. Quite simply, I do not accept the proposition urged by the applicant that his inability to have a jury of his cultural peers impairs his right to live on the Sandy Lake reserve; nor does it impair his right to preserve his native heritage.
>
> > The right of Indians to serve on a jury in a particular proportion is not a right encompassed under Section 25. Nor does Section 27, providing for interpretation of the Charter in a manner consistent with the preservation and enhancement of the multicultural heritage of Canadians, assist the appellant. On the contrary, it supports the position of the Crown that every qualified citizen is entitled to be called for jury duty [*R v Kent*, (1986) 1986 CanLII 4745 (MB CA), 27 C.C.C. (3d) 405 at 422 (Man CA)].
>
> In my respectful view, any significant shift in the law which holds out the deliberate prospect of uni-racial or uni-cultural juries has great potential to damage the administration of justice in the eyes of the public and is likely to harm, rather than preserve or enhance the diverse heritage of Canada. Courts should pause before they decide to act as instruments of change with respect to cultural rights [*Societe des Acadiens du Nouveau-Brunswick Inc v Association of Parents for Fairness in Education*, 1986 CanLII 66 (SCC), [1986] 1 SCR 549 at 578.]

However, section 27 did support the claim that a jury should be representative of the diversity in Canadian society (*R v Brown (Application to prohibit Crown discrimination in peremptory challenges)* [1999] OJ No 4867 (Ont Ct (Gen Div)):

> Section 27, provides that "(the) Charter shall be interpreted in a manner consistent with the preservation and enhancement of the multicultural heritage of Canadians". So, for example, if a jury already includes a number of black people, the **challenging** of another black person by the **Crown** Attorney on the basis of race for the purpose and with the effect of fostering the representativeness of the jury itself through the selection of other races may withstand judicial scrutiny under the Charter. It is the discriminatory use of the discretion that is not compatible with the Charter and is outside the ambit of the power given by s. 634 of the Code.

1.4.4 Uses of section 27 – Freedom of Expression

Section 27 has been used multiple times by the courts when considering the justification of limits on freedom of expression under section 1 of the *Charter*.

In *R v Keegstra,* 1990 CanLII 24 (SCC), [1990] 3 SCR 697 at para 77, section 27 was used by the Supreme Court of Canada to support the limitation of freedom of expression to protect vulnerable groups from the harmful effects of hate speech:

> This Court has where possible taken account of s. 27 and its recognition that Canada possesses a multicultural society in which the diversity and richness of various cultural groups is a value to be protected and enhanced. Section 27 has therefore been used in a number of judgments of this Court, both as an aid in interpreting the definition of *Charter* rights and freedoms (see, e.g., *Big M Drug Mart*, *supra*, *per* Dickson J., at pp. 337-38, *Edwards Books*, *supra*, *per* Dickson C.J., at p. 758; and *Andrews v. Law Society of British Columbia*, *supra*, *per* McIntyre J., at p. 171) and as an element in the s. 1 analysis (see, e.g., *Edwards Books*, *per* La Forest J., at p. 804, and Wilson J., at p. 809).
>
> The value expressed in s. 27 cannot be casually dismissed in assessing the validity of s. 319(2) under s. 1, and I am of the belief that s. 27 and the commitment to a multicultural vision of our nation bear notice in emphasizing the acute importance of the objective of eradicating hate propaganda from society.

Similarly, the majority of the Supreme Court of Canada in *R v Andrews* 1990 CanLII 25 (SCC), [1990] 3 SCR 870 at 880 held that section 27 supported the justification under section 1 of the criminal law ban on hate propaganda:

> It is our multicultural background that gives richness, depth and vibrance to Canadian society. The Charter has recognized and emphasized the importance of our background by providing that the Charter itself is to be interpreted so as to preserve and enhance our multicultural heritage. That clause in itself gives a very clear indication that s. 1 of the Charter should be applied in this case. The clause coupled with the Canadian multicultural heritage gives the strongest possible direction to apply s. 1.

In *Canada (Human Rights Commission) v Taylor,* 1990 CanLII 26 (SCC), [1990] 3 SCR 892 at para 45 the majority of the Supreme Court in applying the section 1 *Oakes* test to a human rights code restriction on hate speech, again found that the protection of minority groups from such speech was supported by both ss 15 and 27 and was sufficient to justify the limitation of freedom expression under section 2(b).

> That the values of equality and multiculturalism are enshrined in ss. 15 and 27 of the *Charter* further magnify the weightiness of Parliament's objective in enacting s. 13(1). These *Charter* provisions indicate that the guiding principles in undertaking the s. 1 inquiry include respect and concern for the dignity and equality of the individual and a recognition that one's concept of self may in large part be a function of membership in a particular cultural group. As the harm flowing from hate propaganda works in opposition to these linchpin *Charter* principles, the importance of taking steps to limit its pernicious effects becomes manifest.

In *R v Zundel*, 1992 CanLII 75 (SCC), [1992] 2 SCR 731, the Supreme Court of Canada considered the constitutionality of section 181 of the *Criminal Code*, which prohibited anyone from publishing a statement that they knew was false and that was likely to cause injury to the public interest. The majority of the Court decided that the law breached section 2(b) of the *Charter* and that this infringement was not justified under section 1. In a dissenting opinion, Justices Iacobucci, Cory and Gonthier held that a court should consider ss. 7, 15 and 27 of the *Charter* when determining the scope of the term public interest. Their judgment at para 182 offered an extended analysis of constitutional multiculturalism:

> It is perhaps an indication of the genius of Canada and Canadians that the supreme law of the land would recognize the existence of multiculturalism in our country and encourage its enhancement. Our country has benefited from and has been enriched by the efforts and accomplishments of Canadians of many different races, religions and nationalities. The recognition of multiculturalism in the *Charter* is an attempt to achieve the epitome of democratic societies.

They continued at para 188,

> Section 27 of the *Charter* is not merely the reflection of a fleetingly popular concept. Rather it is a magnificent recognition of the history of Canada and of an essential precept for the achievement of those elusive goals of justice and true equality. People must be able to take pride in their roots, their religion and their culture. It is only then that people of every race, colour, religion and nationality can feel secure in the knowledge that they are truly equal to all other Canadians.

1.5 Limits of Section 27

Section 27 may be used to enhance and reinforce the special rights of constitutionally protected communities in Canada but not to extend these rights across multiple communities.

1.5.1 Limits of Section 27 - Language Rights

In *Mahe v Alberta,* [1990] 1 SCR 432, Chief Justice Brian Dickson when considering language rights under s. 23 of the *Charter* said the following:

> While I agree that it is often useful to consider the relationship between different sections of the *Charter*, in the interpretation of s. 23 I do not think it helpful in the present context to refer to either s. 15 or s. 27. Section 23 provides a comprehensive code for minority language educational rights; it has its own internal qualifications and its own method of internal balancing. A notion of equality between Canada's official language groups is obviously present in s. 23. Beyond this, however, the section is, if anything, an exception to the provisions of ss. 15 and 27 in that it accords these groups, the English and the French, special status in comparison to all other linguistic groups in Canada. As the Attorney General for Ontario observes, it would be totally incongruous to invoke in aid of the interpretation of a provision which grants special rights to a select group of individuals, the principle of equality intended to be universally applicable to "every individual".

1.5.2 Limits of Section 27 - Denominational Schools

In *Adler v Ontario*, 1996 CanLII 148 (SCC), [1996] 3 SCR 609 the Supreme Court of Canada held that because the 1867 constitution guaranteed public funding to separate (Roman Catholic) schools in Ontario, the province's exclusive funding of separate and public schools and its refusal to fund other religious schools did not breach s. 15 or s. 2(a) of the *Charter*. In reaching this conclusion the Court took account of s. 27:

> In applying s. 15 in the context of the denial of funding for education to those who cannot access it for religious reasons, s. 27 supports a finding that the interests at stake, the preservation and continuation of the communities in question, do form interests fundamental to the purposes of the Charter.

However, the infringement of section 2 (a) was justified under section 1 given the privileged place that Roman Catholic separate schools are given under s. 93 of the Constitution Act, 1867.

1.5.3 Section 27 can enhance rights of constitutionally protected communities

In *Reference re Education Act of Ontario and Minority Language Rights* (1984), 1984 CanLII 1832 (ON CA), 47 OR (2d) 1 (CA) at para 96, section 27 was used to enhance the language-education rights of the French -speaking community in Ontario:

> Section 27 is particularly pertinent to a provision such as s. 23 because, as the Symons Report expressed it at pp. 13-5 (app. "C", A.C.F.O., No. 5):
>
> > The French language school provides a setting within which the Francophone student will have a better opportunity to come to know and to understand and to strengthen and develop their own culture and heritage ... [t]he school occupies a central role in the cultural life of the linguistic community ... [t]he French language schools must truly be community schools and easily accessible to the general population of the linguistic group they exist to serve ... [t]his Commission shares the belief, which is widely held by Franco-Ontarians, that the establishment of French language schools in which the language of both communication and administration is French best meets this ... need to preserve the language, customs and culture of the Francophone student.
>
> In the light of s. 27, s. 23(3)(b) should be interpreted to mean that minority language children must receive their instruction in facilities in which the educational environment will be that of the linguistic minority. Only then can the facilities reasonably be said to reflect the minority culture and appertain to the minority.

Section 27 was also used in *Lalonde v Ontario (Commission de restructuration des services de santé),* (1999), 1999 CanLII 19910 (ON SCDC), 48 OR (3d) 50 (Div Ct) at paras 44-46 to reinforce the entitlements of the francophone community:

> First, the "minority protection" argument in this case is strengthened and fed by the reality that the minority in question is a francophone minority, whose culture and language hold a special place in the Canadian fabric as one of the founding cultural communities of Canada and as one of the two official language groups whose rights are entrenched in the Constitution.
>
> Section 27 of the Constitution Act, 1982 states:
>
> 27. This Charter shall be interpreted in a manner consistent with the preservation and enhancement of the multicultural heritage of Canadians.
>
> Thus, multiculturalism is in itself a value recognized and nurtured in the Constitution generally, as well as in the Charter which forms part of that Constitution. With its official language and founding culture status, the minority francophone culture occupies an enhanced multicultural status. English and French are accorded special status in comparison to other linguistic groups in Canada: see *Mahe v. Alberta*, 1990 CanLII 133 (SCC), [1990] 1 SCR 342 at p. 369, 68 D.L.R. (4th) 69.

1.6 Questions

1. Has section 27 proven to be a mere "rhetorical flourish" as constitutional scholar Peter Hogg noted in 1981? (Peter Hogg, *Constitutional Law of Canada and Canada Act Annotated*, 2nd ed (Toronto: Carswell, 1981) at 72)
2. Would you describe the impact of section 27 on constitutional jurisprudence as positive? Why or why not?
3. Why has section 27 not produced a larger body of case law given the mandatory language of the provision?
4. Sometimes courts refer to multiculturalism without referencing section 27 (see for example, *Syndicat Northcrest v Amselem,* 2004 SCC 47 at para 87, *Multani v Commission scolaire Marguerite-Bourgeoys* 2006 SCC 6 at para 71, and *Bruker v Marcovitz,* 2007 SCC 54 at para 14). Why might this occur?

2 Section 28 of the *Charter*: Equal Rights for Male and Female Persons

By Kerri Froc

2.1 The Text

Section 28 of the *Canadian Charter of Rights and Freedoms* states:

> Notwithstanding anything in this Charter, the rights and freedoms referred to in it are guaranteed equally to male and female persons.

Section 28 is a guarantee of equal rights to "male and female persons," rather than an equality guarantee based on grounds (*i.e.*, sex and/or gender). Given the history in which women's rights were not given full recognition under the *Canadian Bill of Rights* and the American *Bill of Rights,* it was meant to ensure that women were able to equally enjoy and exercise all *Charter* rights and freedoms. Section 28 requires courts to employ a "gender lens" so that their interpretations further this purpose (*G.(J)., Osolin*). However, unlike section 27, section 28 does not contain words that suggest it is *only* an interpretive provision.

Section 28 depends on other rights and freedoms "referred to" in the *Charter* for its scope. However, the Supreme Court of Canada has yet to rule on whether the word "guaranteed" means that it contains a substantive right, particularly one that is different from the sex equality guarantee in section 15. If given such an interpretation, section 28 could become increasingly important given the doctrinal complexities in section 15 that continue to bedevil its application, with women winning their first sex discrimination case at the Supreme Court of Canada, *Alliance,* only in 2018.

The phrase, "Notwithstanding anything in this Charter" signals its primacy over other *Charter* provisions. However, there has been little jurisprudence interpreting section 28 and courts have not been consistent in deciding whether it has the power to limit the effect of all other *Charter* provisions (such as sections 1 and 33 – the "notwithstanding clause") to the extent that they would otherwise result in unequal rights. The British Columbia Court of Appeal has stated that "section 28 is a provision dealing with the interpretation of the Charter. It does not, by itself, purport to confer any rights, and therefore cannot be 'contravened'" **(***McIvor v Canada (Registrar, Indian and Northern Affairs)*, 2009 BCCA 153 para. 64). On the other hand, Justice Barry Strayer from the Federal Court earlier pronounced that section 28 "would preclude a section 1 limitation imposed on the… section 15 rights of men alone" (1987 CanLII 8948 (FC), [1988] 1 FC 369), a finding not addressed by the Federal Court of Appeal, nor by the Supreme Court of Canada when it reversed the decision on other grounds (1993 CanLII 112 (SCC), [1993] 2 SCR 872).

2.2 Purpose and History

This section was drafted by and added to the *Charter* because of feminist advocacy during the constitutional negotiations. These advocates were part of a group called "Ad Hockers," and were named after a February 1981 "ad hoc" conference attended by approximately 1300 women across Canada to debate the changes that needed to be made to the draft *Charter* and to give instructions to a small group of women that would lobby for changes. Most notable was the need to include a sex equality "purpose clause," which ultimately became section 28. Ad Hockers were skeptical about the ability of section 15 alone to secure women's equality, particularly given the ability of governments to justify sex discrimination using section 1 (which advocates called "the Mack truck clause"). It was to reinforce gender equality as a pre-eminent *Charter* value, to preclude women's rights from being devalued in favour of supposed "collective" interests, and to ensure that other *Charter* provisions did not become new sources of inequality for women.

2.3 Scholarly interpretation of section 28

There is a dramatic divergence between how feminist scholars and others have interpreted section 28. Feminist scholars have argued for an interpretation of section 28 that not only provides an umbrella of gender equality over the entire *Charter* but functions as a substantive guarantee of equal rights that cannot be subjugated by other provisions. In this way, section 28 has distinct functions that do not replicate those of the sex equality guarantee in section 15(1).

Relying on the earlier work of Katherine de Jong, constitutional law professor Kerri A. Froc has argued that section 28 has three functions. First, it mandates a "gender lens" be employed over the entire *Charter*'s interpretation; this includes requiring that sections 25 and 27 be read "through" section 28 so that they cannot be used to derogate from the equal rights guarantee. Second, it contains a substantive equal rights guarantee that is violated when governments unequally restrict or facilitate the exercise of a right as between "male and female persons." Third, it prohibits other *Charter* provisions becoming a new source of inequality for women (and thus acting as a "shield" against sections 1 and 33 to the extent that their application would result in unequal rights). Emmett Macfarlane has expressed agreement with section 28 having the latter function.

Professor Beverley Baines has described section 28 as rights bearing, or at the very least, "rights enhancing," in that it either preserves a *Charter* right or "alters the scope of a limit." Within that scope, section 28 performs a number of functions: it can provide justification for provisions that infringe men's formal equality rights but enhance women's substantive equality, limit governmental recourse to section 1 where women's equality would be violated, preclude resort to the section 33 "notwithstanding clause" to override women's rights, and ensure that section 27 does not derogate from the equality guarantee. Of course, the Supreme Court of Canada has already recognized that section 15's sex equality guarantee influences the interpretation of other rights (*Andrews v. Law Society of British Columbia*, 1989 CanLII 2 (SCC), [1989] 1 SCR 143 at 185; *New Brunswick (Minister of Health and Community Services) v. G. (J.)*, 1999 CanLII 653 (SCC), [1999] 3 SCR 46 at para 112). However, Baines states that section 28 might perform a helpful, additional function in encouraging courts to adopt an intersectional analysis, by integrating an analysis of sex by virtue of section 28 with other ground(s) of discrimination claimed under section 15.

Scholar of statutory interpretation, Elmer Driedger famously wrote that section 28 was a "queer provision" that "means and accomplishes nothing." Peter Hogg's textbook, *Constitutional Law of Canada,* stated that section 28 had "very little work to do" as the other provisions would apply equally to male and female persons anyway. Quebec scholars Henri Brun and Guy Tremblay, in their text, state that section 28 means that "discrimination on grounds of sex would be prohibited absolutely," and that section 33 cannot apply to discrimination based on sex under s.15(1) *Droit constitutionnel*, 4th ed, (Cowansville, Éditions Yvon Blais, 2002) at 1079, as cited in *Syndicat, below*). This was a view shared by Dale Gibson (*The Law of the Charter: Equality Rights* (Agincourt, ON: Carswell, 1990) at 209) and Walter Tarnopolsky (W.S . Tarnopolsky, "The Equality Rights In The Canadian Charter Of Rights and Freedoms" (1983) 61 Can Bar Rev 242 at 259).

More recent commentators arguing against section 28 being a substantive provision, point to its dependence on other rights for its content and its inclusion under the "General" heading in the Charter, along with sections 25 (concerning Indigenous collective rights and thought until *Dickson v Vuntut Gwitchin First Nation* 2024 SCC 10 to be merely interpretive), and section 27 (explicitly interpretive). Guillaume Rousseau, in fact, argues that section 28's "notwithstanding anything" relates only to section 27. As well, commentators like Maxime St-Hilaire and Gerard Kennedy, cite former Assistant Deputy Minister of Justice Barry Strayer's recollection in support of section 28's exclusively interpretive function – that its purpose was mainly to curtail the use of sections 25 and 27 in interpretation. Asher Honickman relies on a textualist analysis, arguing that "guaranteed" used elsewhere in the *Charter* refers only to an "assurance of possession" and not signaling a substantive right. Others, such as Geoffrey Sigalet, argue that once section 33 is invoked, it is as if ss.2 and 7-15 cease to exist for the purposes of the impugned law and therefore nothing is left to "equalize" under section 28's mandate. Many also point to the paucity of jurisprudence on section 28 as showing that it could not possibly be one of the most powerful sections in the *Charter* (if not subject to ss.1 or 33). As we will see below, the Quebec Court of Appeal's reasons in the *Hak v Quebec* are similar.

2.4 Section 28's Application in Case Law

Section 28 has not been central to any cases in the past forty years, beyond some very early cases that suggested section 28 precluded governments from being able to justify sex discrimination against men under under section 1 (*Weatherall v Canada (Attorney General)*, 1987 CanLII 8948 (FC), [1988] 1 FC 369, 11 FTR 279, (TD), varied, [1988] FCJ No. 593 (CA), aff'd 1993 CanLII 112 (SCC), [1993] 2 SCR 872; *R v Howell* (1986), 1986 CanLII 4769 (NL SC), 57 Nfld & PEIR 198, 26 CCC (3d) 104 at 109 (Nfld Dist Ct); *R v Paquette* (1988), 1988 CanLII 3345 (BC SC), 40 CRR 137, 1988 CarswellBC 1330 at para 8 (BCSC))**.**) Many of the judges in these early cases conceived section 28 as containing a formalist version of equality that did not permit any sex-based distinctions under law, even those that might have ameliorated women's inequality.

Nevertheless, it has played a supporting role in shaping the outcome of key constitutional decisions:

- Sexual violence and Gender Equality: In *R v Osolin,* 1993 CanLII 54 (SCC), [1993] 4 SCR 595, Justice Cory for the majority stated both sections 15 and 28 should be taken into account in determining the reasonable limitations placed on cross-examination of a sexual assault complainant. In *R v Hess and R v Nguyen, R v Nguyen,* 1990 CanLII 89 (SCC), [1990] 2 S.C.R 906, Justice Wilson in her majority reasons indicated that section 28 meant that a government could not argue that either sex was undeserving of the full protection of section 7 rights (there, including the right not to be convicted if one is "morally innocent"). In *R v Butler* 1992 CanLII 124 (SCC), [1992] 1 SCR 452, the Court found that the violation of free expression in the *Criminal Code* obscenity provision was justified under section 1. It accepted the reasons of the lower court that section 28 and sexual equality were of sufficient importance to support the restriction of violent pornography.
- Access to Justice: *New Brunswick (Minister of Health and Community Services) v G (J)*, 1999 CanLII 653 (SCC), [1999] 3 SCR 46 imposed a positive duty of government under *Charter* section 7 to provide legal aid counsel in child apprehension proceedings where a parent cannot adequately represent herself. Justice L'Heureux-Dubé pairs section 28 with section 15 in deeming "principles of equality…a significant influence on interpreting the scope of protection offered by s.7."

- Reproductive Rights: While not explicitly invoked by Justice Wilson in *R v Morgentaler,* 1988 CanLII 90 (SCC), [1988] 1 SCR 30, her influential concurring decision resonates with section 28's equal rights norm. Differing from the male judges finding of a violation of s.7 security of the person, she found that the s.252 *Criminal Code* abortion prohibition violates women's right to liberty in a fundamentally unjust way. She advocated for the expansion of the traditional conception of rights to include women's interests and concerns (including their fundamental personal decisions regarding abortion). She reflected on the unique circumstances of unwanted pregnancy for women, remarking that it was "probably impossible for a man to respond, even imaginatively" to the dilemma of whether to carry them to term.
- Indigenous Rights: For the first time, the Supreme Court in *Dickson v Vuntut Gwitchin First Nation,* 2024 SCC 10 recognized *Charter* section 25 as more than merely interpretive. It indicated that in the case of an irreconcilable conflict between *Charter* rights and Indigenous collective rights under s. 35, section 25 acted as a "pop up shield" to limit *Charter* rights to the extent of the conflict. Echoing an earlier concurring decision by Justice Bastarache in *R v Kapp,* 2008 SCC 41 (CanLII), [2008] 2 SCR 483, the Court recognized section 28's function as a shield to the shield. Justice Jamal for the majority stated that the primacy of section 35 was subject to section 28, which thereby "ensure[s] that a right protected under s. 25 does not shelter gender-based discrimination."

Compare the following excerpt from *Syndicat de la fonction publique c. Procureur général du Québec*, [2004] J.Q. No. 21, [2004] R.J.Q. 524, in which Justice Carole Julien, discussed in *obiter* the interaction of sections 28 and 33, with that of Justice Blanchard in *Organisation mondiale sikhe du Canada v Procureur général du Québec*, 2024 QCCA 254 [the appeal of the above-mentioned *Hak* decision], deciding that section 28 did not have the power to shield women's equal right to freedom of expression from the "notwithstanding clause". Which do you find more persuasive?

2.4.1 *Syndicat de la fonction publique du Québec inc. v. Quebec (Attorney General)*, **[2004] R.J.Q. 524**

[The case involved a section 15 challenge brought by numerous employee associations and unions, including those representing workers in Quebec's public service, health, education, and social services sectors. The challenge was directed at Chapter IX of Quebec's *Pay Equity Act*, which deemed employers who had begun or completed pay equity before the coming into force of the new Act, to have complied with the Act if their plans met a number of basic requirements rather than all of the requirements under the new Act. The overseeing body for pay equity, the Commission de l'équité salariale (CES) had no ability to assess whether, in fact, these pay equity plans were achieving the results of increased pay equity (unlike the companies under the regular requirements).

Chapter IX affected approximately 120 companies, including large employers such as Concordia University, Desjardins Group, and several insurance entities, as well as the Government of Quebec itself, which employed over 500,000 people. Most of these employers had more than 100 employees, which would otherwise place them in the group subject to the Act's most rigorous requirements.

The plaintiffs alleged that Chapter IX discriminated on the basis of sex contrary to section 15, creating a class of employees whose rights were diminished compared to those under the general regime. These employees had no guaranteed participation in the pay equity process, limited access to recourse or appeals, and were often locked into employer-dominated plans that lacked transparency and adequate mechanisms to address systemic gender discrimination. Expert evidence filed in the case highlighted persistent patterns of occupational segregation and wage disparities for women, as well as the failure of prior mechanisms—such as complaint-based remedies under the Quebec *Charter*—to effectively address wage discrimination.

The excerpt provided is an unofficial translation of the case assisted by a computer translation program. It concerns only her comments on section 28.]

Julien S.C.J.:

1397 The plaintiffs have the burden of proving infringement of the rights protected by the *Canadian Charter* by making a *prima facie* case. Such a demonstration affects the presumption of validity of the law and reverses the burden of proof. It is then up to the state wishing to avail itself of it to prove that the law meets the criteria of section 1 as discussed in the judgment *Oakes*. In the present case, as we know, the AG does not rely on section 1 of the *Canadian Charter*.

…

Gender equality

1406 We know that section 15 of the *Canadian Charter* enshrines the right to equality between the sexes. If so, why was section 28 introduced into the *Canadian Charter* ? What is its meaning? What is its scope?

1407 Recall the wording of sections 15(*1*) and 28:

> s. 15 (1) Every individual is equal before and under the law and has the right to the equal protection and equal benefit of the law without discrimination or discrimination based on race, national or ethnic origin, colour, religion, sex, age or mental or physical disability.
>
> s. 28 Notwithstanding any other provision of this Charter, the rights and freedoms referred to therein are guaranteed equally to persons of both sexes.

2.3.1 The Historical Context of Section 28 of the Canadian Charter

1408 According to the Canadian Advisory Council on the Status of Women, women have been pushing for the right to gender equality in the context of the advent of the Canadian Charter.

1409 They obtained the protection afforded by section 15. However, they were concerned about the scope of section 1 interpreted as restricting the rights protected by the Canadian Charter :

> s. 1 The Canadian Charter of Rights and Freedoms guarantees the rights and freedoms set out in the Charter. They can only be limited by law, within such reasonable limits as can be demonstrably justified in a free and democratic society.

…

1411 The women wanted a declaration of intent guaranteeing men and women equally the rights and freedoms set out in the *Canadian Charter*.

1412 This guarantee was not incorporated into section 1. It appeared in the form of section 28 on 21 April 1981. It aims to ensure the equality of persons of both sexes *independently* of the other provisions of the *Canadian Charter*.

1413 Later, in November 1981, following a federal-provincial conference, section 33 was introduced in the *Canadian Charter*. This section allows provincial governments to override the obligations set out in the *Canadian Charter*, including the right to gender equality protected by sections 15 and 28.

1414 Women's groups mobilized again. On November 24, 1981, the federal and provincial governments agreed to remove the express reference to section 28 from the wording of section 33, which now reads as follows:

> s. 33 Parliament or the legislature of a province may enact any law expressly declaring that the Act or any provision of the Act has effect notwithstanding any provision of section 2 or sections 7 to 15 of this Charter.

1415 Thus, the Quebec legislature could, by section 33, expressly derogate from section 15. However, would the right to gender equality be an exception because of Article 28?

2.3.2 The Doctrinal and Jurisprudential Interpretation of Article 28 in Relation to Article 33

1416 In general, the authors agree that the protection of gender equality should be given primacy by section 28. Thus, although the principle of equality provided for in section 15 may be set aside by the legislator under Article 33, no law could even expressly make a distinction based on sex on pain of invalidity.

1417 The author, André Tremblay, expresses himself as follows:

> Section 15 sets out a four-part principle of equality…The preferred ground of discrimination is sex, since section 28 ensures the absolute equality of both sexes with respect to the rights and freedoms mentioned in the Charter. In other words, section 28 creates an irrebuttable presumption of invalidity for violations of gender equality, and this cannot be changed or diminished by neither section 1 nor by section 33 of the Charter. [Emphasis added]

1418 The education provided to lawyers in 1982 by the Continuing Education Department of the Barreau du Québec was along these lines:

> Section 15 must be read in conjunction with section 28 .... Let us say right away that equality rights are subject to the possible application of the notwithstanding clause in section 33. However, the equality of the two sexes is not covered by the notwithstanding clause. whereas section 28 begins with the words: "Notwithstanding anything in this Charter...". [Emphasis added]

…

1420 This position is followed by Gérald A. Beaudoin:

> This section 28 ensures that section 33, which applies to section 15, cannot, in our view, apply to the principle of equality of the two sexes; No legislator may, by using the "notwithstanding" clause, enact a measure violating equality between men and women. [Emphasis added]

1421 Author William F. Pentney is particularly eloquent:

> This would result in a higher status for gender equality under section 15 than other grounds of discrimination, and this would undoubtedly allow section 28 to achieve its purpose by making the equality guaranteed by section 15 more meaningful and effective. In my opinion, this is the minimum role that can be attributed to section 28. If it does not at least provide the strongest possible protection for gender equality under section 15, it will be a superfluous provision and its inclusion in the Charter will have been a cruel sham. [Emphasis added]

1422 Thus, according to the authors, because of the historical context of its enactment and the objectives pursued, section 28 would specifically protect the right to equality of the sexes. The legislator cannot not derogate from it by application of section 33.

1423 In 1984, the Nova Scotia Court of Appeal upheld this interpretation in *Boudreau v. Lynch*….:

> By doing so [article 28], the legislators have treated sexual discrimination as the most odious form of discrimination and taken away from legislative bodies the right to perpetrate it in the future. Other types of discrimination may, without reasons being given, be carried on under the legislative override provisions of s. 33.

2.3.3 The Doctrinal and Jurisprudential Interpretation of Article 28 in Relation to Articles 1 and 32

1424 The doctrine of the primacy of the right to equality between the sexes is controversial with regard to Articles 1 and 32. It should be noted that section 32 delayed the effect of section 15 for a period of three years…

1425 According to some, section 28 does not have a stand-alone existence of section 15 for the purposes of section 32. A different opinion was expressed in 1985. Some commentators believed that section 28 allowed section 32 to be circumvented. With respect to section 1, some decisions are of the view that section 28 takes precedence and others not. The authors disagree on this issue.

1426 The authors Brun and Tremblay propose the following solution:

> Section 28 provides that Charter rights are guaranteed equally to both sexes, independently of the other provisions of the Charter. In relation to Charter rights, discrimination on the basis of sex would therefore be absolutely prohibited. Thus, section 33, which provides for the possibility of express derogation from rights, could not apply to discrimination on the basis of sex prohibited by subsection 15(1): Boudreau v. Lynch (1985) 1984 CanLII 3055 (NS SC), 16 D.L.R. (4th) 610 (N.S.C.A.). It is difficult, however, to draw the conclusion that section 28 precludes the application of sections 1 and 15(2) of the Charter in the case of sex discrimination: this would mean that any positive intervention in favour of women, or possibly men, would be impossible. In our view, sections 1 and 15(2) apply to sex discrimination in the same way as to other kinds of discrimination prohibited by subsection 15(1), despite the wording of section 28, because they are essentially clauses designed to ensure a proper understanding of what the equality rights in subsection 15(1) mean. and not clauses intended to allow Article 15 to be set aside or circumvented. Section 28 gives gender equality primacy over other Charter rights, as they result from the set of provisions that contribute to their enunciation. Section 28 has also assisted the courts in concluding that some repression of pornographic expression may restrict 2(b) freedom of expression under section 1. See in this sense R. v. Red Hot Video, (1985) 1985 CanLII 633 (BC

SC), 18 C.C.C. (3d) 1 (B.C.C.A.). See also R. v. Butler, 1992 CanLII 124 (SCC), [1992] 1 SCR 452. On the other hand, section 28 cannot compel the government to fund or consult with a women's group: Native Women's Association of Canada v. Canada, [1994] 3 SCR 627.[326] (Our Highlights)

2.3.4 Conclusions on the Scope of Section 28

1427 The scope of section 28 is a controversial issue, particularly with regard to the provisions of the *Canadian Charter* that would limit the right to equality between the sexes.

1428 This controversy concerns Articles 1 and 32 in particular. It is not for the Tribunal to resolve it in this judgment. Articles 1 and 32 have an objective of their own which is not at issue in the context of this judgment.

1429 That said, the prevailing view is in favour of the primacy of section 28 over section 33.

1430 This aspect is interesting. If the legislature cannot, even expressly by recourse to section 33, override the principle of the right to equality between the sexes by statute, much less can it do so indirectly and implicitly by the operation of a statute. This will be particularly the case when the Act expressly aims at the opposite, i.e. the implementation of the right to equality between the sexes.

1431 Thus, faced with the need to interpret the scope of the right to equality between the sexes provided for in section 15, the Tribunal will be particularly cautious in resolving any doubt raised by the facts or the *Act* in favour of the protection of that right. Section 28, if necessary, offers no alternative unless an attempt is made to justify it under section 1. Such a justification would be controversial because of section 28, but in any event none of the respondents or third parties attempt to do so.

1432 Section 28 strengthens the guarantee of equality between the sexes and affects the interpretation of section 15.

1433 In considering an allegation of discrimination on the basis of sex, the court must give greater weight to the right to gender equality than to the economic costs associated with achieving pay equity for employers who made efforts to achieve pay equity prior to the enactment of the Act.

…

[Justice Carole Julien agreed with the plaintiffs and found that Chapter IX violated section 15(1) by discriminating against employed women, who were the ones who needed pay equity. She emphasized that the decision-making framework in Chapter IX undermined the fundamental objectives of the Pay Equity Act and perpetuated systemic discrimination by allowing inadequate scrutiny of pre-existing employer-led pay equity plans.]

1532 The *Canadian Charter* protects the right to equality between the sexes in a specific way through section 28. The court must be particularly demanding when assessing the validity of a law which, by its effects, infringes on gender equality. Chapter IX does not constitute a distinction that respects the values of the *Canadian Charter*, such as affirmative action against a target group. Quite the contrary.

…

1546 The issue to be decided is the exercise of a fundamental right related to the right to equality. The legislature itself recognizes that this right is systematically and generally violated, since it imposes, in order to remedy it, a law of general application with a great deal of appeal to the dignity of women and to human rights.

1547 This case is important because it deals with an aspect of this fundamental right protected by the Canadian Constitution. It determines the economic life of these women, their ability to assume their financial responsibilities towards themselves and their loved ones.

[Footnotes omitted]

2.4.2 *World Sikh Organization of Canada, Amrit Kaur (Appellants - Intervenors) v. Attorney General of Quebec*, 2024 QCCA 254

Per curiam:

[The Quebec Court of Appeal reviewed a Superior Court decision that had partially invalidated provisions of Quebec's *Act respecting the laicity of the State,* known as Bill 21. Bill 21 precludes certain government officials or employees, from daycare workers to members of the National Assembly, from wearing religious symbols while performing their duties (s.6) and bans religious face coverings while giving or receiving government services (s.8). Bill 21 invoked the "notwithstanding clause" so that it operated notwithstanding ss.2 and 7-15 of the *Canadian Charter of Rights and Freedoms*. Unlike previous Quebec laws, Bill 21 does not allow for affected individuals to request religious accommodation so that they may exempted from its application. The Superior Court had ruled that certain parts of the Act violated sections 3 (democratic rights) and 23 (minority language educational rights)—rendering them of no force or effect. Multiple parties appealed these findings, including the Attorney General of Quebec and various advocacy groups, both in support of and against the law. The Court of Appeal upheld much of the trial judge's reasoning but overturned the lower court's finding that the Act infringed section 23, concluding that the legislation does not violate minority language education rights. The following excerpt concerns the reasons of the Court of Appeal, upholding the trial judge's finding that Bill 21 did not violate section 28.]

I. PRELIMINARY OBSERVATIONS

11 That the *Act* is controversial obviously comes as no surprise. Indeed, it gives rise to a genuine and legitimate debate…

12 While there is heated public debate about the *Act*'s impact on the freedoms of religion and expression, and about the very scope of these freedoms, the debate is just as heated regarding the right to equality, particularly sexual equality.

13 One can certainly have many different views on the *Act* and its appropriateness, whether from a political, sociological or moral perspective. This judgment, however, will evidently consider only the legal aspect of the debate. Like the Superior Court before it, the Court here is acting as part of a process — one initiated by various groups of litigants — to examine the *legality* of the *Act*, and it is not ruling on the wisdom of enacting it. The Court's scope of intervention is therefore limited.

…

51 To conclude this introduction to the *Act*, it is perhaps not inappropriate to note that the issue of state laicity has been the subject of a lengthy social and political conversation in Quebec. That conversation pre-dates the Quiet Revolution (although it effectively gained momentum in the 1960s) and led to the gradual laicization of a Quebec State that had long maintained a close, more or less formal, relationship with the Catholic Church (primarily), particularly in matters of education, where s. 93 of the *CA 1867* offered a guarantee based on a religious division between Catholicism and Protestantism (a division that disappeared in 1997). This transformation of the relationship between the Quebec State and religions is well summarized in the report of the Consultation Commission on Accommodation Practices Related to Cultural Differences, which was co-chaired by Professors Gérard Bouchard and Charles Taylor.[59]

52 Indeed, it is relevant to mention this report, which was published in 2008, since the *Act* — or at least its broad strokes and terminology — was informed by it: the report uses the concept of "*laïcité*" (the terminology adopted in the *Act*), "understood in the context of the broader ideal of neutrality to which the State must aspire if it wishes to treat citizens fairly". The Bouchard-Taylor Commission, as it came to be known, was established in 2007 in the wake of a series of highly publicized events concerning religious accommodation practices, and it carried out a lengthy investigation at the end of which it proposed, among other things, an "open" state secularism,[62] based on four key principles: the moral equality of persons, freedom of conscience and religion, state neutrality towards religions, and the separation of church and state.[63] These are the four pillars of laicity as it is defined in s. 2 of the *Act*.

53 The Bouchard-Taylor Report also suggested that certain agents of the state who occupy "positions that strikingly exemplify State neutrality and whose incumbents exercise a power of coercion",[64] namely the "president and vice-president of the National Assembly, judges and Crown prosecutors, police officers and prison guards", abide by a "form of circumspection concerning the expression of their religious convictions" and refrain (or more precisely, be required to refrain) from wearing religious symbols. As we know, s. 6 of the *Act* takes up this recommendation, although it has expanded the list of those who must refrain from such religious display by adding a number of persons whom the legislature apparently views as embodying the state, exercising a state power, fulfilling an essentially state mission or being required to display exemplary neutrality in the exercise of their functions. These additions include public elementary and secondary school teachers, who, it would seem, are considered to embody one of the primary functions of the Quebec State. This inclusion was strongly criticized and was often at the heart of the debate (including in the case at bar, where the question of teaching staff has figured prominently, particularly in the evidence that was presented). In this respect, it should be noted that the *Act* departed from the Bouchard-Taylor Report, which did not recommend such a measure and even explicitly suggested the very opposite.

54 We know that after the Bouchard-Taylor Report, the socio-political discussion on state neutrality and laicity continued, at varying degrees of intensity depending on the era and the government, culminating in the adoption of the *Act* in June 2019.

…

III. ANALYSIS

…

Sexual equality

416 Section 28 of the *Canadian Charter* states:

> **28.** Notwithstanding anything in this Charter, the rights and freedoms referred to in it are guaranteed equally to male and female persons.
>
> **28.** Indépendamment des autres dispositions de la présente charte, les droits et libertés qui y sont mentionnés sont garantis également aux personnes des deux sexes.

…

427 The trial judge agreed with the view of the parties opposed to the *Act* regarding its prejudicial effect on women, primarily Muslim women, as compared with men, finding that it has that effect [TRANSLATION] "in the field of education only", as he stated in paragraph 876 of his judgment.

…

429 For the reasons set out in the following pages, the Court comes to the…conclusion [that] s. 28 of the *Canadian Charter* is an interpretative provision, one that cannot defeat s. 33, whether by conditioning its use, neutralizing its effect or excluding s. 15(1) from its scope in the case of discrimination between men and women.

b. Applicable interpretation principles

i. General comments on s. 28 of the Canadian Charter

430 Nearly 42 years after it came into force, s. 28 of the *Canadian Charter* — which was intended to remedy the "dismal ... record" of pre-1982 jurisprudence on the protection of women's rights, including under the *Canadian Bill of Rights* — remains a provision that is seldom used (if one relies on jurisprudence that, itself, barely deals with it, other than as a side issue) and is largely under-theorized, as noted in certain texts, even having been described as "astonishingly underdeveloped". Scholarly commentators have taken an interest in s. 28, hesitating or being divided on its nature, meaning, scope and usefulness: does it lay down an overriding principle or a rule of interpretation? Does it establish a standalone substantive right, or does it bind itself to the other rights and freedoms recognized by the *Canadian Charter*? Is it or is it not subject to s. 1 of that *Charter*, or can it influence its interpretation and application? How can it be reconciled with s. 33?

431 The context in which it was enacted does not allow one to answer these questions with confidence. Section 28 was included in the *Canadian Charter* as a result of repeated requests and proposals from women's groups, but it is uncertain whether their objectives coincided perfectly with the ultimate will of the framers (federal-provincial framers), whose preparatory work and debates are not necessarily very convincing. Certainly, one general impression can be drawn: parliamentarians wanted to ensure sexual equality and remedy the weaknesses of prior law in this respect. It is unlikely, however, that they envisaged all the potential legal effects of the text as finally enacted, much less the interpretative problems liable to arise.

432 The drafting history of s. 28 is perhaps more revealing, and we will return to this later. We will say, from the outset, however, that it does not provide an answer to all the questions raised here by the parties' respective claims concerning this provision.

…

Meaning and scope of s. 28 of the Canadian Charter

…

438 As one can see, the provision is divided into two segments: a main proposition, syntactically speaking, and an introductory statement that refines it. The following is the main proposition: "the rights and freedoms referred to in [the *Canadian Charter*] are guaranteed equally to male and female persons / *les droits et libertés [mentionnés dans la* Charte canadienne*] sont garantis également aux personnes des deux sexes*". The meaning of this proposition seems clear, at least at first glance: the framers wanted to ensure (and ensure for the benefit of every individual) that the rights and freedoms enumerated in the *Canadian Charter* are granted to and recognized in the same way for women and men, providing them both with equal protection. This means that, in accordance with this rule, the provisions of the *Charter* that recognize a right or freedom must be interpreted and applied *without* distinction between women and men. Of course, the existence of such a distinction must be gauged in light of the principle of substantive — rather than formal — equality. There may also be distinctions that help re-establish sexual equality. For its part, the introductory statement "[n]otwithstanding anything in this Charter / *[i]ndépendamment des autres dispositions de la présente charte*" establishes the supremacy of the structuring rule of interpretation laid down by the main proposition.

439 We will now take a closer look at the various elements having led to this conclusion.

2. Section 28: text, context and jurisprudence

440 Firstly, it should be noted that s. 28 does not set out, as such, the principle of equality of women and men, which is established in s. 15 under the aspects of equality before and under the law, equal protection of the law and equal benefit of the law, all without discrimination based on a list of prohibited (or analogous) grounds, including sex. Rather, s. 28 affirms that the rights and freedoms referred to in the *Canadian Charter* (“*qui y sont mentionnés*”) are “guaranteed equally / *garantis également*” to male and female persons (“*personnes des deux sexes*”), that is, without distinction between women and men. Section 28 is thus grafted onto the *other* provisions of the *Charter* that recognize rights and freedoms. As de Jong writes, s. 28 “is not a general anti-discrimination provision” and its effect is limited “to the rights and freedoms set out in the document in which the provisions are contained”, adding that “section 28 is limited to the rights referred to in the *Charter*“.

…

442 That said, what exactly does the main proposition of s. 28 contemplate when it mentions the *rights and freedoms referred to (“droits et libertés ... mentionnés*”) in the *Canadian Charter*?

443 At first glance, the text seems to clearly point to the rights and freedoms enumerated in ss. 2 to 23 of the *Charter*. This seems evident. Indeed, with the exception of ss. 4, 5 and 18, these provisions all use either the term “freedom / *liberté*” or the term “right / *droit*”, under the headings “FUNDAMENTAL FREEDOMS / *LIBERTÉS FONDAMENTALES*” (s. 2), “DEMOCRATIC RIGHTS / *DROITS DÉMOCRATIQUES*” (s. 3), “MOBILITY RIGHTS / *LIBERTÉ DE CIRCULATION ET D'ÉTABLISSEMENT*” (s. 6), “LEGAL RIGHTS / *GARANTIES JURIDIQUES*” (ss. 7 to 14), “EQUALITY RIGHTS / *DROITS À L'ÉGALITÉ*” (s. 15), “OFFICIAL LANGUAGES OF CANADA / *LANGUES OFFICIELLES DU CANADA*” (ss. 16 to 22[461]) and “MINORITY LANGUAGE EDUCATIONAL RIGHTS / *DROITS À L'INSTRUCTION DANS LA LANGUE DE LA MINORITÉ*” (s. 23). Their text, which it is not useful to reproduce here, expressly recognizes and affirms each of these rights and freedoms and, where necessary, defines their nature and conditions.

444 As for ss. 4 and 5, these provisions do not, strictly speaking, confer an individual right; rather, they protect a right that is essentially collective and is linked to the very organization of the state, a right that anyone may assert in the event of an alleged violation. They preserve Canada’s democratic system by limiting the maximum duration of the House of Commons and of the legislative assemblies, and by requiring the latter, like Parliament, to hold at least one sitting a year. Section 18 adds to the official languages provisions by providing that the statutes and records of Parliament and of the legislature of New Brunswick must be printed and published in English and French. It is difficult to see, *a priori*, how these three provisions could be interpreted or applied in such a way as to distinguish between women and men, but, in any event, since these are obligations owed by the state to the electorate in the case of ss. 4 and 5, and to everyone in the case of s. 18, the rule set out in s. 28 must apply to those provisions.

445 Logically, then, the “rights and freedoms / *droits et libertés*” mentioned in s. 28 are those of ss. 2 to 23. Moreover, this is consistent with the meaning of other provisions in which the framers have used similar expressions referring to the rights and freedoms guaranteed by the *Canadian Charter*.

446 In this regard, s. 1 states that “[t]he *Canadian Charter of Rights and Freedoms* guarantees the rights and freedoms set out in it / *[l]a* Charte canadienne des droits et libertés *garantit les droits et libertés qui y sont énoncés*”, which certainly refers to the rights and freedoms in ss. 2 to 23 — and, indeed, it is to these rights and freedoms that s. 1 has been applied since the *Charter* came into force, such that, unless overridden in accordance with s. 33, each of these rights and freedoms is subject only to such reasonable limits prescribed by law as can be demonstrably justified in a free and democratic society.

447 Similarly, s. 24 speaks of the remedy available to any person “whose rights or freedoms, as guaranteed by this Charter, have been infringed or denied / *victime de violation ou de négation des droits et libertés qui lui sont garantis par la présente charte*”, which, again, refers to the protections offered by ss. 2 to 23.

448 Sections 25 and 26 use the expression “certain rights and freedoms / *certains droits et libertés*”, which, in context, again clearly refers to one or the other of the rights and freedoms guaranteed by ss. 2 to 23. Thus, as s. 25 states, the fact that “certain rights and freedoms” — i.e., those in ss. 2 to 23 — are protected by the *Charter* must not be construed so as to abrogate or derogate from “any aboriginal, treaty or other rights or freedoms that pertain to the aboriginal peoples of Canada” (“*aux droits ou libertés — ancestraux, issus de traités ou autres — des peuples autochtones du Canada*”). Similarly, according to s. 26, the fact that “certain rights and freedoms” — necessarily those of ss. 2 to 23 — are protected does not wipe out any *other* rights and freedoms (“*les* autres *droits et libertés*”) that exist in Canada: these other rights and freedoms survive, whether they emanate from the common law, the civil law or a statute (for example, the *Quebec Charter*, which guarantees several rights not included in the *Canadian Charter*).

449 In short, given this context, and considering the other provisions of the *Canadian Charter* that use similar language, one must conclude that when s. 28 mentions the “rights and freedoms referred to in it”, the provision is clearly referring to the rights and freedoms protected by ss. 2 to 23. It is these rights and freedoms that are “guaranteed equally to male and female persons / *garantis également aux personnes des deux sexes*” and the provisions that recognize and protect them must be read and applied in light of the rule set out in the main proposition of s. 28.

450 To put it briefly, the main proposition of s. 28 is intended to ensure the equality of women and men in the interpretation and application of the rights and freedoms protected by ss. 2 to 23 of the *Canadian Charter*, as if a reference to this guarantee of equality were appended to each of these provisions. Rather than using such a drafting technique, however, the framers opted for a general provision — s. 28 — which has the same effect as if it had been incorporated into each of ss. 2 to 23. It follows that these provisions must, in principle, be interpreted without distinction between women and men, since the rights and freedoms they guarantee must be qualitatively the same and have the same content and scope, regardless of the person’s sex, in a constant effort to achieve substantive equality.

451 In this sense, therefore, s. 28 has no standalone normative value and does not add a right distinct from those recognized by ss. 2 to 23 of the *Charter*. Instead, it conditions the interpretation — and hence the application — of these provisions. Moreover, to conclude otherwise would be to duplicate s. 15 of the *Charter*, which already enshrines, in various respects, the equality of individuals without distinction based on various grounds, including sex.

452 The interpretative purpose of s. 28 is confirmed by its placement within the *Canadian Charter*, under the heading “GENERAL / *DISPOSITIONS GÉNÉRALES*”, which includes ss. 25 to 31. All of these provisions prescribe rules that serve to elucidate — or sometimes limit — the meaning and scope of ss. 2 to 23, as if the former provisions had been incorporated into the latter, and they act as interpretation guidelines. The same is true of ss. 25, 26, 27 and 29:

- **Sections 25 and 29.** Sections 25 and 29 reconcile the protection afforded to rights and freedoms under the *Canadian Charter* with that afforded to rights and freedoms under other constitutional provisions, which are themselves designed to safeguard the interests of certain groups. Section 25 affirms that the guarantees offered by the *Charter* “shall not be construed so as to abrogate or derogate from any aboriginal, treaty or other rights or freedoms that pertain to the aboriginal peoples / *ne porte[nt] pas atteinte aux droits ou libertés —*

ancestraux, issus de traités ou autres — des peuples autochtones". It is an "interpretative [provision], and is aimed at preventing contestation of Aboriginal rights based on other provisions of the *Canadian Charter*". For its part, s. 29 states that the provisions of the *Charter* do not abrogate or derogate from any rights or privileges in respect of denominational, separate or dissentient schools, thereby referring to s. 93 of the *CA 1867*.

• **Section 26.** This provision ensures that the *Charter*, through the protection it affords to certain rights and freedoms (those in ss. 2 to 23), is not interpreted as denying or excluding the *other* rights and freedoms that individuals may enjoy under the law. These *other* rights and freedoms therefore survive.

• **Section 27.** According to the express wording of this provision, the interpretation of the *Charter*, and thus of the rights and freedoms enshrined therein, must take into account the "multicultural heritage of Canadians / *patrimoine multiculturel des Canadiens*".

…

455 In short, all the provisions immediately surrounding s. 28 and grouped under the same heading set out, in one way or another, interpretative instructions. It is logical to conclude that this is also the case for s. 28, which confirms the meaning already conveyed by the wording of its main proposition.

456 This does not mean, however, that s. 28 is a minor provision or one devoid of substance: indeed, it requires those interpreting the *Canadian Charter* to take (substantive) sexual equality into account when determining the meaning and scope of ss. 2 to 23 and applying them to a given situation. Its introductory statement ("Notwithstanding anything in this Charter / *Indépendamment des autres dispositions de la présente charte*"), which is just as important, even gives this rule of interpretation an imperative character and ensures its primacy over the other interpretative rules that are set out in the *Charter* and that cannot, themselves, legitimize the introduction in the rights and freedoms guaranteed by ss. 2 to 23 of distinctions between women and men. Thus, ss. 25, 27 and 29, to name but these, cannot be used to interpret the rights and freedoms guaranteed by the *Canadian Charter* in a manner contrary to the principle of sexual equality. This means that recourse to these other rules, be it the protection of the rights of Aboriginal peoples (s. 25) or respect for multiculturalism (s. 27), for example, cannot justify a departure from the principle of sexual equality. Section 28 thus enshrines a fundamental value of Canadian society in ss. 2 to 23 and reinforces the guarantee of the rights and freedoms set out in the *Canadian Charter*. In other words, by virtue of s. 28, those interpreting ss. 2 to 23 must generally give these provisions a meaning and scope in keeping with the principle of substantive equality between women and men and cannot justify departing therefrom by invoking the other rules contained under the *Charter*'s "GENERAL / *DISPOSITIONS GÉNÉRALES*" heading.

457 While we can draw these various conclusions from the text and context of s. 28, what does the case law relating to this provision have to say?

* * * * * *

458 As mentioned above there is very little case law on the subject. The Supreme Court has rarely had occasion to consider s. 28, although it does seem to have given it an interpretative function (a function the British Columbia Court of Appeal also recognized in *McIvor v. Canada (Registrar of Indian and Northern Affairs*)).

459 It was in *Hess; Nguyen* (a case dealing with the interpretation of s. 7 of the *Canadian Charter*) that the Supreme Court expounded most on the matter, as evidenced by the following excerpt from the reasons of Wilson J., writing for the majority:

> The appellants suggest that s. 28 of the *Charter* is relevant to these appeals. The section states that the rights and freedoms referred to in the *Charter* "are guaranteed equally to male and female persons". In my view, this provision does not prevent the legislature from creating an offence that as a matter of biological fact can only be committed by one sex. But it does mean that it is not open to the legislature to deny an accused who is charged with such an offence rights and freedoms guaranteed to <u>all</u> persons under the *Charter*.
>
> In the context of these appeals I think it clear that a male is as entitled to the protection of s. 7 as a female. It is not open to the government to suggest that a person should receive less than full *Charter* protection on account of his or her sex. Moreover, the government will not be able to justify an infringement of s. 7 under s. 1 of the *Charter* on the basis that because of an individual's sex he or she is not entitled to the same degree of *Charter* protection as persons of the other sex or that because of his or her sex the *Charter* violation is less serious. The justification for the infringement of a *Charter* right will have to be linked to considerations other than the sex of the party that has established an infringement of his or her *Charter* right. In these appeals, for example, one could not seek to justify the infringement of s. 7 by pointing to the accused's sex and by saying that because he is a man he is not entitled to the full protection of s. 7. It is no more open to the government to make this argument than it would be open to it to suggest that a woman procuring an abortion was not entitled to the full protection of s. 7 because she was a woman.
>
> There will, of course, be sex-related factors that may legitimately enter into a proportionality analysis conducted under s. 1 of the *Charter*. But such factors will have to be linked to the sex of persons other than the accused, e.g. the fact that the victim can become pregnant. Such an analysis would not seek to justify the infringement of a *Charter* right on the simple basis that the accused was of a given sex. Rather, it would point to considerations independent of the accused's sex that might be relevant to an assessment of the justification for restricting the accused's rights.
>
> [Underlining in the original]

460 In her dissent, McLachlin J. (as she then was), in discussing the discriminatory nature of the legislative provision at issue, emphasized that men are no less entitled than women to the protection provided by s. 15 of the *Canadian Charter*, adding that "[t]he Court [in the ruling in *Turpin*[473]] must be taken to have had in mind s. 28 of the *Charter*, which provides that notwithstanding any other provisions, the rights and freedoms referred to in the *Charter* are guaranteed equally to male and female persons".

461 In *Seaboyer*, both McLachlin, J. (as she then was) and L'Heureux-Dubé, J. noted the contribution of s. 28 to the interpretation of the right to a fair and full answer and defence within the meaning of ss. 7 or 11(*d*) of the *Canadian Charter*. In *R. v. Osolin*, which dealt with the right to a fair trial, including the right to cross-examine, Cory, J. pointed out that ss. 15 and 28 "should be taken into account in determining the reasonable limitations that should be placed upon the cross-examination of a complainant" (and therefore on the rights guaranteed by ss. 7 and 11(*d*)). In *Native Women's Assn. of Canada v. Canada*, a case that considered the scope of s. 2(*b*) of the *Charter*, Sopinka, J., writing for the majority, did not accept the argument based on s. 28, although he did not rule out the idea that this provision could be used to assist in the interpretation of freedom of expression. He was of the view, however, that the issue (which focused on whether the federal government had acted in accordance with the *Canadian Charter* by directly funding certain predominantly male Aboriginal organizations, but not the appellant association, for the purposes of a constitutional consultation[478]) "relate[d] more closely to an equality argument under s. 15 of the *Charter*".

462 In 1999, in *New Brunswick (Minister of Health and Community Services) v. G. (J.)*, L'Heureux-Dubé, J. (with the endorsement of her colleagues Gonthier, J. and McLachlin, J. (as she then was)), commenting once again on s. 7 of the *Charter*, wrote that:

> 112 ... All *Charter* rights strengthen and support each other (see, for example, *R. v. Lyons*, 1987 CanLII 25 (SCC), [1987] 2 SCR 309, at p. 326; *R. v. Tran*, 1994 CanLII 56 (SCC), [1994] 2 SCR 951, at p. 976) and s. 15 plays a particularly important role in that process. The interpretive lens of the equality guarantee should therefore influence the interpretation of other constitutional rights where applicable, and in my opinion, principles of equality, guaranteed by both s. 15 and s. 28, are a significant influence on interpreting the scope of protection offered by s. 7.
>
> ...
>
> 115 ... The rights in s. 7 must be interpreted through the lens of ss. 15 and 28, to recognize the importance of ensuring that our interpretation of the Constitution responds to the realities and needs of all members of society.

463 Lastly, in *R. v. Kapp*, Bastarache, J., in concurring reasons, mentioned s. 28, but in a way that added nothing to the debate before this Court.

464 It should be noted that in none of these judgments was s. 28 presented as spearheading the argument, nor was it examined in-depth, even in *Hess; Nguyen*, where Wilson, J. discussed it in greater detail. Nevertheless, it is apparent from the foregoing cases that the role of the provision is that of an interpretative guideline.

* * * * * *

465 At the end of this textual, contextual and jurisprudential examination of s. 28, we must agree that this provision [TRANSLATION] "makes sexual equality sort of ubiquitous, in the sense that it must be considered when interpreting the other rights enshrined in the Charter". Section 28, therefore, does not appear to be a provision guaranteeing a standalone right in *addition to* the other rights enshrined in the *Charter*: rather, it is a complementary provision that binds itself to ss. 2 to 23 of the *Canadian Charter*.

466 To speak of s. 28 as a complementary provision is not to deny or minimize its importance. The *Oxford English Dictionary* defines "complement" as "[s]omething which, when added, completes or makes up a whole; each of two parts which mutually complete each other, or supply each other's deficiencies". Recognizing that the principle of equality between women and men frames the interpretation of ss. 2 to 23 of the *Canadian Charter*, thereby giving s. 28 the force of an "interpretative injunction", is an affirmation that ensures that nothing essential is missing from the rights and freedoms enshrined therein.

467 That being so, if s. 28 can be used as an interpretative tool for purposes of ss. 2 to 23 of the *Canadian Charter*, is it liable to have a similar impact on s. 1 of the *Charter* and on the way in which this provision is to be understood and applied? The answer to this question is yes — but a qualified yes, as we will now see.

i. Sections 28 and 1 of the Canadian Charter

468 Although the Court need not rule on the application of s. 28 to s. 1 of the *Canadian Charter*, as the issue is not in dispute in the case at bar, a few observations on the matter are not superfluous insofar as they confirm the interpretative purpose of s. 28 and are useful in determining how to reconcile this provision with s. 33 of the *Charter*.

469 As we know, under certain conditions, s. 1 can justify a limit on any of the rights and freedoms enshrined in the *Canadian Charter*, including in matters of equality (i.e., when the rights protected by s. 15 are at stake). This general statement is no less true in matters of equality of women and men, as the rulings in *Centrale des syndicats du Québec v. Quebec (Attorney General)*, *Quebec (Attorney General) v. A* and *Newfoundland (Treasury Board) v. N.A.P.E.* show.

470 In these three cases, which did not mention s. 28 (a fact that is not insignificant), the Supreme Court concluded that legislative provisions that *prima facie* contravened s. 15(1) of the *Canadian Charter*, by making a distinction that was based on sex and was prejudicial to women, were nonetheless reasonable and justified in a free and democratic society within the meaning of s. 1. It can be inferred from these decisions that s. 28 alone cannot prevent a court applying the *Oakes* test from ruling that such a limit is reasonable in a free and democratic society. Thus, when a legislative provision that *a priori* violates s. 15(1) of the *Canadian Charter* is saved by the effect of s. 1, it is difficult to see how it could nonetheless be contrary to s. 28.

471 This is not to say that s. 28 has nothing to do with s. 1 of the *Charter*. In this respect, it could be treated in the same way as *R. v. Keegstra* treated s. 27 of the *Charter*, as an element that must, "where possible", be part of the analysis carried out by the courts under s. 1…

472 We can conceivably transpose these remarks to s. 28 and say that it can be used "as an aid in interpreting the definition of *Charter* rights and freedoms ... and as an element in the s. 1 analysis" and that, in the latter case as in the former, it serves as an interpretative tool.

473 In short, s. 28 is an interpretative guideline that should, "where possible", permeate the way courts apply s. 1.

474 Moreover, given the wording of s. 28 (particularly its introductory statement), one might have thought that the level of justification required under s. 1, when dealing with a restriction on substantive equality between women and men, must be high, as it is, for example, in the case of an infringement of s. 7 of the *Canadian Charter*. Yet, this is not what emerges from the few rulings mentioned above, which, in applying s. 1, validated legislative rules limiting the sexual equality of women and men, without apparently raising the standard above the usual level.

ii. Sections 28 and 33 of the Canadian Charter

475 We turn now to the effects, if any, of s. 28 on s. 33 of the *Canadian Charter*, and vice versa…

…

477 The Court shares this point of view [of the trial judge]: s. 28 does not restrict s. 33, which can be used to exempt legislation from the application of s. 15 of the *Canadian Charter*, including in matters of sexual equality.

478 The text of s. 28 hardly lends itself to any other interpretation. Can s. 33 be included in the list of rights and freedoms contemplated by s. 28 of the *Charter* — i.e., "the rights and freedoms referred to in it / *les droits et libertés qui y sont mentionnés*"? Unless words not found in s. 28 are read into it, it is not possible to extend the scope of its terms to s. 33, a provision which neither confers nor enshrines any right or freedom. On the contrary, it allows the legislature to derogate (albeit temporarily) from some of the rights and freedoms otherwise recognized by the *Charter*, with the effects we examined earlier. It is therefore not possible to find that the text of s. 33 contains a guarantee of a right or freedom (other than the guarantee that the conditions for use of this provision will be respected, a condition litigants can insist on). The purpose of s. 33 is to allow an override of certain rights and freedoms — i.e., those set out in s. 2 and 7 to 15 — rights and freedoms that can no longer be invoked by the persons targeted or affected by the override.

479 The introductory statement of s. 28 does nothing to change this, since it cannot guarantee primacy to a guarantee — the equality of women and men — that is intimately tied to *Charter* provisions — ss. 2 or 7 to 15 — which, due to the use of s. 33, have been deprived of their effect.

480 No doubt, the circumstances surrounding the introduction of ss. 28 and 33 into the *Canadian Charter* and their drafting history may give a certain air of plausibility to the hypothesis that s. 28 has supremacy over s. 33, as the trial judge noted and as the parties opposed to the *Act* still argue. For the reasons that follow, however, that impression dissipates upon analysis, and the argument is ultimately unconvincing.

481 We know that s. 28, which was not part of the initial draft of the *Charter*, was added in April 1981, following a proposed amendment by the New Democratic Party, which was relaying the request of several women's groups. The text of the proposed amendment was identical to that of the current s. 28. At the same time, we also know that, in the fall of 1981, the constitutional reform project was in jeopardy, or at least fragile: on September 28, 1981, the Supreme Court of Canada had rendered its decision in the *Reference re Resolution to Amend the Constitution*, after which the federal government convened a federal-provincial constitutional conference to promote the reform, including the *Canadian Charter*. These discussions bore fruit, leading to an important and decisive political compromise — the introduction of s. 33 in the *Canadian Charter*.

482 We find an initial answer to the question of how to combine s. 28 (which establishes the principle of equality between women and men) with s. 33 (which allows an override of certain provisions, including s. 15, a provision that prohibits sex-based discrimination) in the resolution presented to the House of Commons on November 30, 1981 ("*Resolution Respecting Constitution Act, 1981*"), which proposed the following texts:

> **28.** Notwithstanding anything in this Charter except section 33, the rights and freedoms referred to in it are guaranteed equally to male and female persons.
>
> **33. (1)** Parliament or the legislature of a province may expressly declare in an Act of Parliament or of the legislature, as the case may be, that the Act or a provision thereof shall operate notwithstanding a provision included in section 2 or sections 7 to 15 of this Charter, or section 28 of this Charter in its application to discrimination based on sex referred to in section 15.
>
> ...
>
> **28.** Indépendamment des autres dispositions de la présente charte, exception faite de l'article 33, les droits et libertés qui y sont mentionnés sont garantis également aux personnes des deux sexes.
>
> **33. (1)** Le Parlement ou la législature d'une province peut adopter une loi où il est expressément déclaré que celle-ci ou une de ses dispositions a effet indépendamment d'une disposition donnée de l'article 2 ou des articles 7 à 15 de la présente charte, ou de l'article 28 de cette charte dans son application à la discrimination fondée sur le sexe et mentionnée à l'article 15.
>
> ...
>
> [Underlining added]

483 That same day, Progressive Conservative Party leader Joe Clark proposed an amendment to these provisions so they would read as follows (which corresponds to their current text) …

...

484 He explained his reasons for this motion:

> …The substance of our amendment guarantees that men and women will have equal access to the rights and freedoms set out in the Charter of Rights and Freedoms proposed in this resolution. Some of those rights and freedoms will already be limited by the application of Section 33. However, where they exist they will exist absolutely equally for women and for men…
>
> ...
>
> What that does is remove the *non obstante* clause from Section 28. It restores the guarantee of equality of male and female persons to the position enjoyed when the accord was tabled in this House of Commons by the Prime Minister of Canada after his meeting with the first ministers.
>
> [Underlining added]

485 This was a vigorous plea for equality between women and men, but one that nevertheless seemed to recognize that s. 28 will only apply where the legislature has not limited certain rights and freedoms — i.e., has not overridden them. At the very least, an ambiguity not dispelled by subsequent debates hangs over the statement, as everyone seems to have understood the proposed amendment in their own way. While no one questioned the importance of the principle of equality between women and men, it does not appear that there was any awareness of the interpretative difficulty arising from the coexistence and necessary combination of ss. 15 and 28 (as regards sex-based discrimination) and s. 33 of the *Charter*.

486 Whatever the perceptions and opinions of parliamentarians (or of the provincial premiers who participated in the November 1981 agreement, or of the members of their respective legislatures), it appears that some authors, apparently on the basis of this drafting history, have rallied around the view that s. 33 does not permit a derogation from the principle of sexual equality, and consequently, does not permit an override of s. 15(1) of the *Canadian Charter* in that regard.

487 For instance, Brun, Tremblay and Brouillet write that, because of s. 28, [TRANSLATION] "s. 33, which provides for the possibility of expressly overriding rights, cannot apply to the sex-based discrimination prohibited by s. 15(1) ...".Does this mean that although s. 33 generally allows an override of s. 15, it cannot validly be used in the case of legislation imposing discriminatory treatment on women? This does indeed seem to be their view.

488 Hogg and Wright maintain, rather laconically, that "the power of legislative override (under s. 33) applies to s. 15, but not to s. 28". They expressly base this assertion on the drafting history of s. 28.

489 In a particularly detailed text, Froc also concludes that s. 28 is shielded from s. 33, notably by the effect of its introductory statement: when s. 28 states that it applies "[n]otwithstanding anything in this Charter", the word "anything" necessarily includes s. 33.

490 De Jong is of the opinion that a legislature can override any of the provisions mentioned in s. 33 and "deny their benefit to specified classes of people, but those classes cannot be gender-based. Whatever rights exist under the override must be guaranteed equally to men and women, because section 28 is not subject to the override power". She adds that:

> The interaction between section 28 and section 33 is most confusing when the only right overridden is the right under section 15(1) to equality without discrimination on the basis of sex. The right to equality without discrimination based on sex must be guaranteed equally to both male and female persons. What does this mean? It may mean that the section 15(1) guarantees cannot be overridden insofar as they relate to discrimination based on sex.
>
> [Underlining added]

493 … All the rights and freedoms referred to in ss. 2 to 23 of the *Canadian Charter* are subject to the guarantee of equality prescribed by s. 28, which attaches to and forms an integral part of each of them. When, however, through the use of s. 33, some of these provisions…are neutralized, the rights and freedoms in question are also neutralized, including the guarantee of equality inherent therein.

494 The jurisprudence on the issue of whether s. 33 allows legislatures to override s. 28 (or s. 15(1), in the case of sex-based inequality) is meagre and consists mainly of two judgments: the 1984 ruling of the Nova Scotia Supreme Court, Appeal Division, in *Re Boudreau and Lynch* , and the 2004 decision of the Quebec Superior Court in *Syndicat de la fonction publique du Québec inc. c. Procureur général du Québec* .

495 *Boudreau* concerned a legislative provision that made a distinction between men and women and limited the right to government financial assistance solely to fathers with disabilities, whereas all mothers, with or without a disability, were entitled to such assistance. As s. 15 of the *Canadian Charter* had not yet come into force, the appellant had relied on s. 28 to allege the discriminatory nature of the impugned provision. In rejecting the appellant's argument, Hart J., writing for the Court, stated the following incidentally:

> …Section 28 of the Charter …was simply intended to prevent any continuation of sexual discrimination by affirmative legislative action once the full Charter had come into force. By doing so the legislators have treated sexual discrimination as the most odious form of discrimination and taken away from legislative bodies the right to perpetrate it in the future. Other types of discrimination may without reasons being given be carried on under the legislative override provisions of s. 33.
>
> …
>
> [Underlining added]

496 With all due respect, the underlined portion above, which is more of an assertion than a demonstration, is very brief and is *obiter*, since the legislature had not had recourse to s. 33 of the *Canadian Charter* in that case. It would appear that this *obiter* should be understood to mean that, because of s. 28, s. 33 could not be used to override s. 15(1) of the *Charter* and thereby save a legislative provision that discriminates on the basis of sex. Consequently, a legislature could override the right to equality in the case of a distinction based on ethnic origin, colour or disability, to mention but these, but not in the case of a sex-based distinction. This statement — to which we will return later — may be surprising to some (all the more so given that, in the same breath, Hart, J.A. recognized that s. 28 could not be invoked or have effect before s. 15 came into force, which clearly shows that s. 28 has no standalone effect and does not guarantee a right to equality as such).

497 In *Syndicat de la fonction publique du Québec inc.*, the Superior Court, in a judgment rendered by Justice Carole Julien, also examined s. 28…

498 Here, too, however, this conclusion is *obiter*, as the legislature had not invoked s. 33 (nor had it invoked s. 1). The rest of the analysis examining the impugned legislative provisions' validity is essentially based on s. 15 , although the judge pointed out that, in light of s. 28 , [TRANSLATION] "[t]he Court must be particularly strict when assessing the validity of a statute which, by its effects, impairs sexual equality" (a statement which, it should be pointed out, is entirely consistent with the notion that s. 28 sets out a rule of interpretation).

499 Not everyone, however, agrees that s. 28 takes precedence over s. 33, or that a legislature cannot use the latter to shield legislation that discriminates on the basis of sex from ss. 2 and 7 to 15 of the *Canadian Charter* (in particular s. 15(1)) and from the judicial review that would otherwise ensue. Such primacy, in fact, raises a major logical difficulty, which we have already alluded to, and which the AGQ is invoking in this case. If a legislature, relying on s. 33(1) of the *Charter* , exempts a statute from ss. 2 or 7 to 15, such that the statute applies "but for / *sauf*" these provisions — that is, without them, as if they did not exist, in accordance with s. 33(2) — then to what does s. 28 , which would otherwise govern the application of these provisions, attach?...

…

502 In the Court's view, the logical argument must prevail and cannot lead to the conclusion that s. 28 limits s. 33 and prevents its use to override the "sexual equality" component of ss. 2 or 7 to 15. Indeed, one cannot acknowledge that s. 33 allows an override of ss. 2 and 7 to 15 and, at the same time, assert that s. 28 neutralizes such override when it has the effect of establishing a distinction between women and men, or when it has a disproportionately prejudicial effect on women (in relation to men) or on men (in relation to women)…

503 Moreover, such a conclusion would create inconsistency between the effect to be given to s. 28 when s. 33 is at issue, and the effect to be given to it when applying s. 1 . As we saw earlier, even when an apparent violation of the principle of equality enshrined in s. 15(1) of the *Charter* is based on sex, it can be validated by a demonstration under s. 1 . Section 28 must undoubtedly be considered in the course of this demonstration, as it is a general principle of interpretation, but it cannot constitute an obstacle to recognizing the validity of a limit to equality between women and men when such limit satisfies the conditions of s. 1 of the *Charter* , as developed in the case law. Section 33 allows for an even more drastic measure than s. 1 — that is, an override that can be declared and implemented without any particular justification and subject only to fairly light formal requirements. Accepting that s. 28 can, in the case of equality between women and men, supersede an override made under s. 33, whereas it cannot prevent the justification of a limit under s. 1 , creates an insoluble contradiction. Moreover, it is not in keeping with the letter or spirit of ss. 28 and 33, nor, generally, with the architecture of the *Charter* to assert that s. 28 takes precedence over s. 33, whether by depriving the legislature of the possibility of overriding the principle of sexual equality, or by neutralizing any such override.

504 Lastly, the manner in which the parties opposed to the *Act* propose reading s. 28 has the effect of granting primacy and superior value to the principle of equality between women and men — thus, s. 33 would in no way allow a discriminatory override of ss. 2 and 7 to 15, or allow a statute that treats women and men differently to be excluded from the application of these provisions, but would not prevent s. 33 from having such an effect where other prohibited grounds of discrimination are involved, namely, race, ethnic or national origin, colour, or physical or mental disability (or other similar grounds). Yet there is nothing in the *Canadian Charter* itself nor in its text, context or history to justify such a reading, not even s. 28 .

[Footnotes omitted]

2.5 Limits of Section 28

Section 28's impact is constrained by several institutional, textual, and doctrinal limitations:

- Judicial Reluctance: Courts have shown reluctance to give Section 28 legal force, often pairing it with section 15. This has resulted in an iterative cycle of judges refusing to employ section 28 more robustly because previous judges have not done so. For instance, the Supreme Court in *Newfoundland (Treasury Board) v. N.A.P.E.,* 2004 SCC 66 and *Centrale des syndicats du Québec v. Quebec (Attorney General)*, 2018 SCC 18 did not cite section 28 to preclude governmental justification of sex discrimination under section 1. Justice Blanchard in *Hak* cited N.A.P.E. to support his finding that section 28 could not act as a "shield" to protect women's rights from other sections of the *Charter*. However, none of the parties nor interveners advanced section 28 arguments in those cases.

- Un(der)developed case law: In the over forty years since section 28 has been in force, the Supreme Court of Canada has yet to pronounce definitively as to whether section 28 shields equal rights from reasonable limits under section 1. This is despite the Court deciding two cases in which a violation of women's equality rights was justified under section 1 (*i.e. N.A.P.E., Centrale des Syndicats*). It also rejected a claimant's attempt to use section 28 and section 2(b) together to advance a claim involving Indigenous women's equal right to funding to attend a constitutional consultation with the federal government in *Native Women's Assn. of Canada v. Canada* 1994 CanLII 27 (SCC), [1994] 3 SCR 627, saying the claim was "better characterized" as a section 15(1) argument. At the time this is written, the *Hak* case has not been heard at the Supreme Court and there is still no definitive statement from the Court about whether section 28 can operate to shield women's rights from the "notwithstanding clause."
- Interdependence on other rights: As noted, section 28 is not a "stand alone" provision, and depends on the rights and freedoms "referred to" in the *Charter* for content. This means that it cannot function completely independently from other provisions and as such, its scope is limited by them.
- Interaction with other rights: Courts have struggled with how to consider women's equality rights in cases involving constitutional challenges by others. For instance, in *R v Seaboyer, R v Gayme*, 1991 CanLII 76 (SCC), [1991] 2 SCR 577, the Supreme Court struck down the "rape shield" law restricting the defence in cross examining sexual assault complainants about past sexual conduct. Justice McLachlin stated that while the recognition of a complainant's rights under sections 15 and 28 "is consistent with the view that s. 7 reflects a variety of societal and individual interests," it could not influence the decision that the accused's rights to full answer and defence was violated by the law.
- Further, in women's *Charter* claims, courts sometimes fail to consider the equality dimension. Notably, section 28 was not mentioned in *R v NS*, to influence the interpretation of a sexual assault complainant's freedom of religion.
- Explicit textual reference to the sexual binary: Given the explicit reference to "male and female persons" in section 28, whether section 28 can be interpreted to encompass the equal rights of trans and non-binary individuals remains an area of jurisprudential uncertainty.

2.6 Questions

1. To what extent should section 28 be understood as an enforceable right versus an interpretive principle?
2. Can section 28 provide a basis for constitutional challenges independently of section 15? What are the differences between the protection for sex equality in section 15(1) and equal rights in section 28?
3. How should courts balance potential conflicts between section 28 and other *Charter* rights, such as an accused's right to a fair trial in sexual assault cases under section 7? Some in Quebec feel that Bill 21 promotes religious neutrality and therefore protects their society's collective rights to a secular state. Should those interests be taken into consideration in deciding whether section 28 shields Muslim women's equal rights to freedom of religion "notwithstanding" the notwithstanding clause?
4. What are the risks of under-enforcing section 28? What about the risks of giving section 28's guarantee of equal rights primacy in the *Charter*? Does this conflict with previous statements from the Court that there should be no "hierarchical approach to rights"?
5. Does the binary language of "male and female persons" in section 28 limit its applicability to gender-diverse individuals, including trans and non-binary people? Should this be addressed through judicial interpretation or constitutional amendment?
6. Should legislatures be constitutionally barred from overriding gender equality using the notwithstanding clause? What about the state justifying sex discrimination using section 1? What role should normative evaluations of section 28's potential power play in constitutional interpretation.
7. What role can Section 28 play in shaping the interpretation of *Charter* rights in areas not traditionally framed as gendered, such as freedom of expression, mobility rights, or criminal procedure?
8. How should section 28's history inform the development of its interpretation moving forward? Does it offer a model for integrating intersectional analysis into *Charter* interpretation?

Chapter 16: S. 1: Reasonable Limits

By Emily Kidd White and Grégoire Webber

1 Introduction

The *Canadian Charter*'s first section communicates two important constitutional commitments:

The *Canadian Charter of Rights and Freedoms* guarantees the rights and freedoms set out in it subject only to such reasonable limits prescribed by law as can be demonstrably justified in a free and democratic society.	La *Charte canadienne des droits et libertés* garantit les droits et libertés qui y sont énoncés. Ils ne peuvent être restreints que par une règle de droit, dans des limites qui soient raisonnables et dont la justification puisse se démontrer dans le cadre d'une société libre et démocratique.

A first commitment is affirmed in the opening words of section 1: the rights and freedoms outlined in the Charter are constitutionally guaranteed. As explained by Justice Dickson in *Hunter v Southam*, 1984 CanLII 33 (SCC), [1984] 2 SCR 145, at p. 148:

> The Constitution of Canada, which includes the *Canadian Charter of Rights and Freedoms*, is the supreme law of Canada. Any law inconsistent with the provisions of the Constitution is, to the extent of the inconsistency, of no force or effect. Section 52(1) of the *Constitution Act, 1982* so mandates.

The constitutional guarantee of the Charter's rights and freedoms awards to those rights and freedoms legal status as part of the supreme law of Canada. Any law inconsistent with those rights is unconstitutional and without legal force. (But see Chapter 17: The Notwithstanding Clause.)

The second commitment is that the guarantee of the Charter's rights and freedoms is subject to reasonable limits. The second half of section 1 outlines the standard against which such legally prescribed limits are evaluated.

This second half of section 1 is commonly referred to as a limitation clause. Similar clauses predated the Canadian Charter: see, for example, Article 29(2) of the Universal Declaration of Human Rights, which provides for a general limitation clause applicable to all rights and freedoms, and Articles 8(2), 9(2), 10(2), and 11(2) of the European Convention on Human Rights, which pair limitation clauses with specific rights and freedoms. In turn, some limitation clauses that post-date the Charter closely track the wording of section 1: see s. 5 of the New Zealand Bill of Rights Act 1990 and s. 36(1) of the Bill of Rights of the South African Constitution.

This chapter begins by reviewing the relationship between rights and their limitations before then reviewing how the Supreme Court of Canada introduced a proportionality evaluation to determine whether a limitation is reasonable. We then survey the famous case of *R v Oakes*, 1986 CanLII 46 (SCC), [1986] 1 SCR 103, in which the Supreme Court articulated what has come to be known as the *Oakes* test. We close this chapter by reviewing some of the contextual factors that animate the Supreme Court's application of section 1 of the Charter and that counsel more or less deference to the choices of a legislature in limiting rights.

2 The interpretation of rights and the purpose of section 1

With some exceptions, the rights and freedoms guaranteed in the Charter do not resolve contested claims of rights. For example, the guarantee of freedom of expression at s. 2(b) of the Charter does not address the questions of libel, pornography, or hate speech. The guarantee of freedom of religion and of conscience at s. 2(a) of the Charter does not address the questions of religious accommodations or conscientious objections to military service. The same is true of a great many contested claims of rights and their relationship to the wording of other rights and freedoms in the Charter.

An early question for the Supreme Court was whether the rights and freedoms of the Charter should be defined so as to resolve these contested claims. For example, freedom of expression could be defined so as to exclude libel and hate speech, but to include pornography and other expression-related claims of right. To do so would make reasonable limits internal to the definition of freedom of expression.

Instead, the general approach of the Supreme Court to the interpretation of Charter rights and freedoms has been to favour a broad and liberal interpretation of rights and to reserve to section 1 of the Charter the resolution of contested claims of rights. In this way, reasonable limits are conceived as being external to rights and freedoms defined independently of such limits.

In adopting this approach, the Supreme Court favoured a two-stage analysis of many Charter claims. At the first stage, a purposive interpretation of rights and freedoms is undertaken and it is determined whether any law infringes the scope of the rights and freedoms so defined. The claimant seeking to demonstrate a violation of rights bears the onus of proof at this stage. At the second stage, the justification of any such infringements is evaluated under section 1 of the Charter. The onus of proof here is on the party seeking to justify the limit, which is almost invariably the government. In *Oakes*, the Supreme Court articulated the standard of proof as follows:

> 67. The standard of proof under s. 1 is the civil standard, namely, proof by a preponderance of probability. The alternative criminal standard, proof beyond a reasonable doubt, would, in my view, be unduly onerous on the party seeking to limit. Concepts such as "reasonableness", "justifiability" and "free and democratic society" are simply not amenable to such a standard. Nevertheless, the preponderance of probability test must be applied rigorously. Indeed, the phrase "demonstrably justified" in s. 1 of the *Charter* supports this conclusion.
>
> 68. Having regard to the fact that s. 1 is being invoked for the purpose of justifying a violation of the constitutional rights and freedoms the *Charter* was designed to protect, a very high degree of probability will be, in the words of Lord Denning, "commensurate with the occasion". Where evidence is required in order to prove the constituent elements of a s. 1 inquiry, and this will generally be the case, it should be cogent and persuasive and make clear to the Court the consequences of imposing or not imposing the limit. See: *Law Society of Upper Canada v. Skapinker*, *supra*, at p. 384; *Singh v. Minister of Employment and Immigration*, *supra*, at p. 217. A court will also need to know what alternative measures for implementing the objective were available to the legislators when they made their decisions. I should add, however, that there may be cases where certain elements of the s. 1 analysis are obvious or self-evident.

2.1 The first stage of Charter analysis: purposive interpretation of rights and freedoms

The purposive interpretation of Charter rights and freedoms was articulated in *Hunter v Southam*, 1984 CanLII 33 (SCC), [1984] 2 SCR 145, in which the Court confronted the s. 8 guarantee: "Everyone has the right to be secure against unreasonable search or seizure."

For the Court, the wording of the right was "vague and open" (pp. 154-156):

> There is no specificity in the section beyond the bare guarantee of freedom from "unreasonable" search and seizure; nor is there any particular historical, political or philosophic context capable of providing an obvious gloss on the meaning of the guarantee.
>
> It is clear that the meaning of "unreasonable" cannot be determined by recourse to a dictionary, nor for that matter, by reference to the rules of statutory construction. The task of expounding a constitution is crucially different from that of construing a statute. A statute defines present rights and obligations. It is easily enacted and as easily repealed. A constitution, by contrast, is drafted with an eye to the future. Its function is to provide a continuing framework for the legitimate exercise of governmental power and, when joined by a Bill or a *Charter of Rights*, for the unremitting protection of individual rights and liberties. Once enacted, its provisions cannot easily be repealed or amended. It must, therefore, be capable of growth and development over time to meet new social, political and historical realities often unimagined by its framers. The judiciary is the guardian of the constitution and must, in interpreting its provisions, bear these considerations in mind. […]
>
> The need for a broad perspective in approaching constitutional documents is a familiar theme in Canadian constitutional jurisprudence. It is contained in Viscount Sankey's classic formulation in *Edwards v. Attorney-General for Canada,* 1929 CanLII 438 (UK JCPC), [1930] A.C. 124, at p. 136, cited and applied in countless Canadian cases:
>
> > The British North America Act planted in Canada a living tree capable of growth and expansion within its natural limits. The object of the Act was to grant a Constitution to Canada… Their Lordships do not conceive it to be the duty of this Board—it is certainly not their desire—to cut down the provisions of the Act by a narrow and technical construction, but rather to give it a large and liberal interpretation.

For the Supreme Court, this recommended adopting a purposive interpretation of the Charter's rights and freedoms (p. 156):

> The *Canadian Charter of Rights and Freedoms* is a purposive document. Its purpose is to guarantee and to protect, within the limits of reason, the enjoyment of the rights and freedoms it enshrines.

This purposive approach could then inform the interpretation of each one of the rights and freedoms guaranteed by the *Canadian Charter* (p. 157):

> Since the proper approach to the interpretation of the *Charter of Rights and Freedoms* is a purposive one, before it is possible to assess the reasonableness or unreasonableness of the impact of a search or of a statute authorizing a search, it is first necessary to specify the purpose underlying s. 8: in other words, to delineate the nature of the interests it is meant to protect.

The specific interest protected by s. 8 was held in *Hunter v Southam* to be privacy, such that the purposive interpretation of the right against unreasonable search and seizure extended to all over which an individual has a reasonable expectation of privacy.

What is significant for understanding section 1 of the Charter is that the purposive interpretation of rights and freedoms defines the scope of those constitutional guarantees by reference to the interests that each of the rights and freedoms is understood to protect. The result is that, on the whole, rights and freedoms receive a generous interpretation. Any interests of others that may be inconsistent with generously defined rights are to be evaluated under the second stage of Charter analysis.

For more on purposive interpretation, see Chapter 14: *Charter* Interpretation.

2.2 The second stage of *Charter* analysis: justifying infringements

According to the two stages of Charter analysis, interests that may inform contested claims of rights fall outside of the scope the rights and freedoms. For example, a person's interest in protecting their reputation from libel will not inform the scope of freedom of expression. Instead, it will inform an evaluation at the second stage of analysis whether any law infringing the scope of freedom of expression is a reasonable limit.

As explained by the Supreme Court in the *R v Oakes*:

> 65. The rights and freedoms guaranteed by the Charter are not, however, absolute. It may become necessary to limit rights and freedoms in circumstances where their exercise would be inimical to the realization of collective goals of fundamental importance. For this reason, s. 1 provides criteria of justification for limits on the rights and freedoms guaranteed by the Charter. These criteria impose a stringent standard of justification, especially when understood in terms of the two contextual considerations discussed above, namely, the violation of a constitutionally guaranteed right or freedom and the fundamental principles of a free and democratic society.

The result is that the two constitutional commitments in section 1 of the Canadian Charter recommend two stages of Charter analysis. A first stage inquires into the definition of rights and freedoms according to a purposive interpretation: that gives expression to the constitutional guarantee of rights and freedoms. A second stage inquires into the reasonableness of any limits on rights and freedoms: that gives expression to the possibility of justifying reasonable limits in a free and democratic society.

3 Proportionality and the limitation of rights

The doctrine of proportionality in constitutional law establishes criteria for the valid exercise of governmental authority that limits a constitutionally guaranteed freedom or right. Rights are not absolute under the *Canadian Charter of Rights and Freedoms*. As the Supreme Court of Canada has articulated, there are instances where "[i]t may become necessary to limit rights and freedoms in circumstances where their exercise would be inimical to the realization of collective goals of fundamental importance." *Oakes* at para. 65. The text of s. 1 requires an analysis into the 'reasonable limits' of *Charter* guaranteed rights and freedoms that 'can be demonstrably justified in a free and democratic society'. Under a s. 1 analysis, the onus is on the government to defend the limit on the Charter right or freedom in question. The standard of proof in a section 1 analysis is the civil standard, that is, a 'rigorously' applied' preponderance of probabilities test: *Oakes* at para 67.

Comparative constitutional law scholars work to detail and analyze the wide variety of constitutional arrangements around the world. Many modern constitutions contain rights guarantees that require a proportionality analysis that places a burden of justification on the party seeking to limit a constitutionally protected right or freedom. Constitutional systems that require a proportionality analysis ensure that limits on rights are justified by public-facing reasons that can be scrutinized by an independent judiciary. See, Wojciech Sadurski, *Constitutional Public Reason*, Oxford Scholarship Online (Oxford: Oxford University Press, 2023). In *Canada (Attorney General) v. JTI-Macdonald Corp.,* [2007] 2 SCR 610 , 2007 SCC 30, the Supreme Court stated:

> [36] Most modern constitutions recognize that rights are not absolute and can be limited if this is necessary to achieve an important objective and if the limit is appropriately tailored, or proportionate. The concept of proportionality finds its roots in ancient and scholastic scholarship on the legitimate exercise of government power. Its modern articulations may be traced to the Supreme Court of Germany and the European Court of Human Rights, which were influenced by earlier German law… This Court in *Oakes* set out a test of proportionality that mirrors the elements of this idea of proportionality — first, the law must serve an important purpose, and second, the means it uses to attain this purpose must be proportionate. Proportionality in turn involves rational connection between the means and the objective, minimal impairment and proportionality of effects. As Dickson C.J. stated in *Oakes*, at p. 139:
>
> There are, in my view, three important components of a proportionality test. First, the measures adopted must be carefully designed to achieve the objective in question. They must not be arbitrary, unfair or based on irrational considerations. In short, they must be rationally connected to the objective. Second, the means, even if rationally connected to the objective in this first sense, should impair "as little as possible" the right or freedom in question: *R. v. Big M Drug Mart Ltd.*, *supra*, at p. 352. Third, there must be a proportionality between the effects of the measures which are responsible for limiting the *Charter* right or freedom, and the objective which has been identified as of "sufficient importance". [Emphasis deleted.]

The proportionality analysis under the *Charter* is guided by a series of constitutional values including respect for the inherent dignity of the human person, and a commitment to social justice and equality. In *R. v. Oakes* at paras 63-64, the Supreme Court extrapolates on some of the values and principles guiding the s.1 proportionality analysis:

> [63] It is important to observe at the outset that s. 1 has two functions: first, it constitutionally guarantees the rights and freedoms set out in the provisions which follow; and, second, it states explicitly the exclusive justificatory criteria (outside of s. 33 of the *Constitution Act, 1982*) against which limitations on those rights and freedoms must be measured. Accordingly, any s. 1 inquiry must be premised on an understanding that the impugned limit violates constitutional rights and freedoms--rights and freedoms which are part of the supreme law of Canada. As Wilson J. stated in *Singh v. Minister of Employment and Immigration*, *supra*, at p. 218: "... it is important to remember that the courts are conducting this inquiry in light of a commitment to uphold the rights and freedoms set out in the other sections of the *Charter*."
>
> [64] A second contextual element of interpretation of s. 1 is provided by the words "free and democratic society". Inclusion of these words as the final standard of justification for limits on rights and freedoms refers the Court to the very purpose for which the *Charter* was originally entrenched in the Constitution: Canadian society is to be free and democratic. The Court must be guided by the values and principles essential to a free and democratic society which I believe embody, to name but a few, respect for the inherent dignity of the human person, commitment to social justice and equality, accommodation of a wide variety of beliefs, respect for cultural and group identity, and faith in social and political

> institutions which enhance the participation of individuals and groups in society. The underlying values and principles of a free and democratic society are the genesis of the rights and freedoms guaranteed by the *Charter* and the ultimate standard against which a limit on a right or freedom must be shown, despite its effect, to be reasonable and demonstrably justified.

For further reading, see Grégoire Webber, "Proportionality and Limitations on Freedom of Speech" (see here and here).

4 Justifying reasonable limits

The *Oakes* test consists of two evaluations, both of which must be satisfied in order for a limit to be reasonable under section 1 of the Canadian Charter. First, there is an evaluation of the objective of the infringing measure. Second, there is an evaluation of the proportionality of the infringing measure. These evaluations apply if a limit is prescribed by law, a threshold requirement we address below.

Here is the canonical statement of the test by the Supreme Court of Canada in *R v Oakes*:

> 69. To establish that a limit is reasonable and demonstrably justified in a free and democratic society, two central criteria must be satisfied. First, the objective, which the measures responsible for a limit on a *Charter* right or freedom are designed to serve, must be "of sufficient importance to warrant overriding a constitutionally protected right or freedom": *R. v. Big M Drug Mart Ltd.*, *supra*, at p. 352. The standard must be high in order to ensure that objectives which are trivial or discordant with the principles integral to a free and democratic society do not gain s. 1 protection. It is necessary, at a minimum, that an objective relate to concerns which are pressing and substantial in a free and democratic society before it can be characterized as sufficiently important.
>
> 70. Second, once a sufficiently significant objective is recognized, then the party invoking s. 1 must show that the means chosen are reasonable and demonstrably justified. This involves "a form of proportionality test": *R. v. Big M Drug Mart Ltd.*, *supra*, at p. 352. Although the nature of the proportionality test will vary depending on the circumstances, in each case courts will be required to balance the interests of society with those of individuals and groups. There are, in my view, three important components of a proportionality test. First, the measures adopted must be carefully designed to achieve the objective in question. They must not be arbitrary, unfair or based on irrational considerations. In short, they must be rationally connected to the objective. Second, the means, even if rationally connected to the objective in this first sense, should impair "as little as possible" the right or freedom in question: *R. v. Big M Drug Mart Ltd.*, *supra*, at p. 352. Third, there must be a proportionality between the effects of the measures which are responsible for limiting the *Charter* right or freedom, and the objective which has been identified as of "sufficient importance".
>
> 71. With respect to the third component, it is clear that the general effect of any measure impugned under s. 1 will be the infringement of a right or freedom guaranteed by the *Charter*; this is the reason why resort to s. 1 is necessary. The inquiry into effects must, however, go further. A wide range of rights and freedoms are guaranteed by the *Charter*, and an almost infinite number of factual situations may arise in respect of these. Some limits on rights and freedoms protected by the *Charter* will be more serious than others in terms of the nature of the right or freedom violated, the extent of the violation, and the degree to which the measures which impose the limit trench upon the integral principles of a free and democratic society. Even if an objective is of sufficient importance, and the first two elements of the proportionality test are satisfied, it is still possible that, because of the severity of the deleterious effects of a measure on individuals or groups, the measure will not be justified by the purposes it is intended to serve. The more severe the deleterious effects of a measure, the more important the objective must be if the measure is to be reasonable and demonstrably justified in a free and democratic society.

In order to meet the requirements of the *Oakes* test, each one of the four inquiries—pressing and substantial objective; rational connection; minimal impairment; and overall balance—must be satisfied. A failure to satisfy any one inquiry results in an unjustified infringement of a Charter right or freedom.

The *Oakes* test has remained more or less stable since it was first articulated in 1986. We here highlight some developments that inform the application of each of the four branches of the test.

4.1 Pressing and substantial objective

Although this first inquiry is regularly satisfied, the Supreme Court in *R v Big M Drug Mart*, 1985 CanLII 69 (SCC), [1985] 1 SCR 295, para. 139 recalled that "not every government interest or policy objective is entitled to s. 1 consideration." In that case, it was held that the objective of the *Lord's Day Act* to compel religious observance was not one that could be accepted under section 1 of the Charter.

Similarly, the objectives of saving costs and achieving administrative convenience have not generally been accepted as pressing and substantial for the purposes of the *Oakes* test. In *Conseil scolaire francophone de la Colombie-Britannique v. British Columbia*, 2020 SCC 13 (CanLII), [2020] 1 SCR 678, the Supreme Court outlined the following rationale for rejecting cost savings as a valid objective under section 1 of the *Charter*:

> [153] In my view, the courts below erred in ruling that "the fair and rational allocation of limited public funds" is a pressing and substantial objective in the case at bar. Public funds are limited by definition. Every government allocates its funds among its various programs on the basis of certain scales, and as fairly as possible. If merely adding the words "fair and rational" to the word "allocation" sufficed to transform the allocation of public funds into a pressing and substantial objective, it would be disconcertingly easy for any government to intrude on fundamental rights. I cannot accept such a result. The fair and rational allocation of limited public funds represents the daily business of government. The mission of a government is to manage a limited budget in order to address needs that are, for their part, unlimited. This is not a pressing and substantial objective that can justify an infringement of rights and freedoms. Treating this role as such an objective would lead society down a slippery slope and would risk watering down the scope of the Charter. I would add that, from a practical standpoint, the appropriateness of such an objective would be nearly impossible to verify.

However, in *Newfoundland (Treasury Board) v. Newfoundland and Labrador Assn. of Public and Private Employees (N.A.P.E.)*, 2004 SCC 66 (CanLII), [2004] 3 SCR 381, the Court accepted that cost savings could, in exceptional circumstances, count as a pressing and substantive objective:

> 72 The result of all this, it seems to me, is that courts will continue to look with strong scepticism at attempts to justify infringements of *Charter* rights on the basis of budgetary constraints. To do otherwise would devalue the *Charter* because there are always budgetary constraints and there are always other pressing government priorities. Nevertheless, the courts cannot close their eyes to the periodic occurrence of financial emergencies when measures must be taken to juggle priorities to see a government through the crisis. It cannot be said that in weighing a delay in the timetable for implementing pay equity against the closing of hundreds of hospital beds, as here, a government is engaged in an exercise "whose sole purpose is financial". The weighing exercise has as much to do with social values as it has to do with dollars. In the present case, the "potential impact" is $24 million, amounting to more than 10 percent of the projected budgetary deficit for 1991-92. The delayed implementation of pay equity is an extremely serious matter, but so too (for example) is the layoff of 1,300 permanent, 350 part-time and 350 seasonal employees, and the deprivation to the public of the services they provided.

What is more, the objective of the measure must be the objective that animating the measure at the time it was adopted. However, this temporal restriction does not also imply that the evidence in support of the objective's pressing and substantial importance is restricted to the evidence available at the time the measure was enacted. Here is how the Supreme Court explains this difference in *Irwin Toy v Quebec*, 1989 CanLII 87 (SCC), [1989] 1 SCR 927:

> The respondent contended that only evidence of legislative objective contemporary with the adoption of ss. 248 and 249 was relevant to deciding whether these sections constitute a reasonable limit to freedom of expression. It therefore attacked the relevance of studies post-dating the enactment of the *Consumer Protection Act* and upon which the government did not rely in adopting the legislation.
>
> Where the basis for its legislation is not obvious, the government must bring forward cogent and persuasive evidence demonstrating that the provisions in issue are justified having regard to the constituent elements of the s. 1 or 9.1 inquiry (see *R. v. Oakes*, *supra*, at p. 138). In showing that the legislation pursues a pressing and substantial objective, it is not open to the government to assert *post facto* a purpose which did not animate the legislation in the first place (see *R. v. Big M Drug Mart Ltd.*, *supra*, at p. 335). However, in proving that the original objective remains pressing and substantial, the government surely can and should draw upon the best evidence currently available. The same is true as regards proof that the measure is proportional to its objective (see *R. v. Edwards Books and Art Ltd.*, 1986 CanLII 12 (SCC), [1986] 2 SCR 713, at p. 769). It is equally possible that a purpose which was not demonstrably pressing and substantial at the time of the legislative enactment becomes demonstrably pressing and substantial with the passing of time and the changing of circumstances.

More often, the question under the first branch of the *Oakes* test relates to how to formulate the objective pursued by the infringing measure. Some objectives may be too abstract for the purposes of the *Oakes* test.

In *Sauvé v. Canada (Chief Electoral Officer)*, [2002] 3 SCR 519, 2002 SCC 68, a majority of the Supreme Court rejected as too abstract the stated objective of enhancing civic responsibility and respect for the rule of law to justify denying penitentiary inmates the right to vote:

> 23 At the end of the day, people should not be left guessing about why their *Charter* rights have been infringed. Demonstrable justification requires that the objective clearly reveal the harm that the government hopes to remedy, and that this objective remain constant throughout the justification process. As this Court has stated, the objective "must be accurately and precisely defined so as to provide a clear framework for evaluating its importance, and to assess the precision with which the means have been crafted to fulfil that objective": *per* Cory J. in *U.F.C.W.*, *Local 1518*, *supra*, at para. 59; see also *Thomson Newspapers*, *supra*, at para. 96; *RJR-MacDonald*, *supra*, at para. 144. A court faced with vague objectives may well conclude, as did Arbour J.A. (as she then was) in *Sauvé No. 1*, *supra*, at p. 487, that "the highly symbolic and abstract nature of th[e] objective . . . detracts from its importance as a justification for the violation of a constitutionally protected right". If Parliament can infringe a crucial right such as the right to vote simply by offering symbolic and abstract reasons, judicial review either becomes vacuously constrained or reduces to a contest of "our symbols are better than your symbols". Neither outcome is compatible with the vigorous justification analysis required by the *Charter*.
>
> 24 The rhetorical nature of the government objectives advanced in this case renders them suspect. The first objective, enhancing civic responsibility and respect for the law, could be asserted of virtually every criminal law and many non-criminal measures. Respect for law is undeniably important. But the simple statement of this value lacks the context necessary to assist us in determining whether the infringement at issue is demonstrably justifiable in a free and democratic society. To establish justification, one needs to know what problem the government is targeting, and why it is so pressing and important that it warrants limiting a *Charter* right. Without this, it is difficult if not impossible to weigh whether the infringement of the right is justifiable or proportionate.

Excepting objectives too abstract to inform the section 1 analysis, there remain live questions over how concretely or generally to formulate the objective of an infringing measure. For example, in *RJR-MacDonald v. Canada (Attorney General)*, 1995 CanLII 64 (SCC), [1995] 3 SCR 199, the majority and dissent disagreed over how to formulate the legislative objective animating the *Tobacco Products Control Act* prohibitions against advertising and promotion of tobacco products. Whereas the dissent favoured an objective centred on protecting Canadians from the health risks of tobacco use, the majority favoured a more specific objective:

> 144 Care must be taken not to overstate the objective. The objective relevant to the s. 1 analysis is the objective of the infringing measure, since it is the infringing measure and nothing else which is sought to be justified. If the objective is stated too broadly, its importance may be exaggerated and the analysis compromised. As my colleague has noted, the *Tobacco Products Control Act* is but one facet of a complex legislative and policy scheme to protect Canadians from the health risks of tobacco use. However, the objective of the impugned measures themselves is somewhat narrower than this. The objective of the advertising ban and trademark usage restrictions must be to prevent people in Canada from being persuaded by advertising and promotion to use tobacco products. The objective of the mandatory package warning must be to discourage people who see the package from tobacco use. Both constitute important objectives, although the significance of the targeted decrease in consumption is reduced by the government's estimate that despite the ban, 65 percent of the Canadian magazine market will contain tobacco advertisements, given that the ban applies only to Canadian media and not to imported publications.
>
> …
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> 146 While the limited objective of reducing tobacco-associated health risks by reducing advertising-related consumption and providing warnings of dangers is less significant than the broad objective of protecting Canadians generally from the risks associated with tobacco use, it nevertheless constitutes an objective of sufficient importance to justify overriding the right of free expression guaranteed by the *Charter*. Even a small reduction in tobacco use may work a significant benefit to the health of Canadians and justify a properly proportioned limitation of right of free expression.

Given that the proportionality evaluations of the *Oakes* test all relate to the objective—whether the measures are rationally connected to the objective, whether there are less impairing alternatives to pursue the objective, whether the salutatory benefits in pursuing the objective outweigh the deleterious effects on the infringed right or freedom—the formulation of the objective at the first stage of the *Oakes* test is all-important.

4.2 Rational connection

The second branch of the *Oakes* test asks whether there is a rational connection between the pressing and substantial objective and the infringing measures. Is such a connection to be demonstrated by scientific evidence or by appeal to reason? Here is how the Court answered this question in *RJR-Macdonald, supra*:

> 153 As a first step in the proportionality analysis, the government must demonstrate that the infringements of the right of free expression worked by the law are rationally connected to the legislative goal of reducing tobacco consumption. It must show a causal connection between the infringement and the benefit sought on the basis of reason or logic. To put it another way, the government must show that the restriction on

> rights serves the intended purpose. This must be demonstrated on a balance of probabilities.
>
> 154 The causal relationship between the infringement of rights and the benefit sought may sometimes be proved by scientific evidence showing that as a matter of repeated observation, one affects the other. Where, however, legislation is directed at changing human behaviour, as in the case of the *Tobacco Products Control Act*, the causal relationship may not be scientifically measurable. In such cases, this Court has been prepared to find a causal connection between the infringement and benefit sought on the basis of reason or logic, without insisting on direct proof of a relationship between the infringing measure and the legislative objective: *R. v. Keegstra*, 1990 CanLII 24 (SCC), [1990] 3 SCR 697, at pp. 768 and 777; *R. v. Butler*, 1992 CanLII 124 (SCC), [1992] 1 SCR 452, at p. 503. As Sopinka J. wrote of the causal link between obscenity and harm to society in *Butler,* at p. 502:
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> > While a direct link between obscenity and harm to society may be difficult, if not impossible, to establish, it is reasonable to presume that exposure to images bears a causal relationship to changes in attitudes and beliefs.
>
> …
>
> 184 Rational connection is to be established, upon a civil standard, through reason, logic or simply common sense. The existence of scientific proof is simply of probative value in demonstrating this reason, logic or common sense. It is by no means dispositive or determinative.

In *R v Sharpe*, 2001 SCC 2 (CanLII), [2001] 1 SCR 45, the Supreme Court clarified the standard of proof for establishing the link between the impugned measure and the objective:

> 85. This raises a question pivotal to this appeal: what standard of proof must the Crown achieve in demonstrating harm – scientific proof based on concrete evidence or a reasoned apprehension of harm? The trial judge insisted on scientific proof based on concrete evidence. With respect, this sets the bar too high. In *Butler*, *supra*, considering the obscenity prohibition of the *Criminal Code*, this Court rejected the need for concrete evidence and held that a "reasoned apprehension of harm" sufficed (p. 504).
>
> …
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> 94. I conclude that the social science evidence adduced in this case, buttressed by experience and common sense, amply meets the *Oakes* requirement of a rational connection between the purpose of the law and the means adopted to effect this purpose.

The rational connection branch of the *Oakes* test is usually satisfied. It was held to be "not particularly onerous" in *Little Sisters Book and Art Emporium v Canada*, 2000 SCC 69 (CanLII), [2000] 2 SCR 1120, para. 228 and, in *Alberta v. Hutterian Brethren of Wilson Colony*, 2009 SCC 37, [2009] 2 SCR 567, para. 48, the Court reasoned that the "government must show that it is reasonable to suppose that the limit may further the goal, not that it will do so."

For an example when the rational connection test was not satisfied, see *M. v. H.,* 1999 CanLII 686 (SCC), [1999] 2 SCR 3, where the Court found there to be no rational connection between the exclusion of same-sex couples from a scheme the objective of which was to provide for spousal support:

> 4 This infringement is not justified under s.1 of the *Charter* because there is no rational connection between the objectives of the spousal support provisions and the means chosen to further this objective. The objectives were accurately identified … as providing for the equitable resolution of economic disputes when intimate relationships between financially interdependent individuals break down, and alleviating the burden on the public purse to provide for dependent spouses. Neither of these objectives is furthered by the exclusion of individuals in same-sex couples from the spousal support regime. If anything, these goals are undermined by this exclusion.

4.3 Minimal impairment

The most consequential branch of the *Oakes* test is the third: the minimal impairment requirement. As formulated in *R v Oakes*, para. 70, the requirement is that the impugned measure should impair the right or freedom "as little as possible".

However, that requirement was interpreted in *R. v. Edwards Books and Art Ltd.*, 1986 CanLII 12 (SCC), [1986] 2 SCR 713 to allow some leeway to the legislature. In evaluating an exemption from the general obligation to close retail businesses on Sunday for businesses with seven or fewer employees, the Court reasoned as follows in applying the minimal impairment branch of the *Oakes* test:

> 147. I might add that I do not believe there is any magic in the number seven as distinct from, say, five, ten, or fifteen employees as the cut-off point for eligibility for the exemption. In balancing the interests of retail employees to a holiday in common with their family and friends against the s. 2(*a*) interests of those affected the Legislature engaged in the process envisaged by s. 1 of the *Charter*. A "reasonable limit" is one which, having regard to the principles enunciated in *Oakes*, it was reasonable for the legislature to impose. The courts are not called upon to substitute judicial opinions for legislative ones as to the place at which to draw a precise line.

The recognition that it is not for the courts to determine precisely where to draw the legislative line in evaluating minimal impairment has led the Court to understand the requirement here as one of evaluating whether the impugned measure falls within a range of reasonable alternatives. In *RJR-Macdonald, supra*, the Court explained as follows:

> 60. As the second step in the proportionality analysis, the government must show that the measures at issue impair the right of free expression as little as reasonably possible in order to achieve the legislative objective. The impairment must be "minimal", that is, the law must be carefully tailored so that rights are impaired no more than necessary. The tailoring process seldom admits of perfection and the courts must accord some leeway to the legislator. If the law falls within a range of reasonable alternatives, the courts will not find it overbroad merely because they can conceive of an alternative which might better tailor objective to infringement: see *Reference re ss. 193 and 195.1(1)(c) of the Criminal Code (Man.)*, 1990 CanLII 105 (SCC), [1990] 1 SCR 1123, at pp. 1196-97; *R. v. Chaulk*, 1990 CanLII 34 (SCC), [1990] 3 SCR 1303, at pp. 1340-41; *Ramsden v. Peterborough (City)*, 1993 CanLII 60 (SCC), [1993] 2 SCR 1084, at pp. 1105-06. On the other hand, if the government fails to explain why a significantly less intrusive and equally effective measure was not chosen, the law may fail.

These same themes were again emphasized in *Sharpe, supra*:

> 96. This Court has held that to establish justification it is not necessary to show that Parliament has adopted the least restrictive means of achieving its end. It suffices if the means adopted fall within a range of reasonable solutions to the problem confronted. The law must be reasonably tailored to its objectives; it must impair the right no more than reasonably necessary, having regard to the practical difficulties and conflicting tensions that must be taken into account: see *Edwards Books and Art Ltd.*, *supra*; *Chaulk*, *supra*; *Committee for the Commonwealth of Canada v. Canada*, 1991 CanLII 119 (SCC), [1991] 1 SCR 139; *Butler*, *supra*; *RJR-MacDonald Inc. v. Canada (Attorney General)*, 1995 CanLII 64 (SCC), [1995] 3 SCR 199; *M. v. H.*, 1999 CanLII 686 (SCC), [1999] 2 SCR 3.
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> 97. This approach to minimal impairment is confirmed by the existence of the third branch of the proportionality test, requiring that the impairment of the right be proportionate to the benefit in terms of achieving Parliament's goal. If the only question were whether the impugned

> law limits the right as little as possible, there would be little need for the third stage of weighing the costs resulting from the infringement of the right against the benefits gained in terms of achieving Parliament's goal. It was argued after *Oakes*, *supra*, that anything short of absolutely minimal impairment was fatal. This Court has rejected that notion. The language of the third branch of the *Oakes* test is consistent with a more nuanced approach to the minimal impairment inquiry -- one that takes into account the difficulty of drafting laws that accomplish Parliament's goals, achieve certainty and only minimally intrude on rights. At its heart, s. 1 is a matter of balancing: see *Dagenais*, *supra*; *RJR-MacDonald*, *supra*; *Ross v. New Brunswick School District No. 15*, 1996 CanLII 237 (SCC), [1996] 1 SCR 825; *Thomson Newspapers*, *supra*.

In determining which measures fall within a range of reasonable alternatives, only those measures which are as effective at achieving the objective as the selected measure are to be considered. As explained by the Court in *Hutterian Brethren, supra*:

> 53. The question at this stage of the s. 1 proportionality analysis is whether the limit on the right is reasonably tailored to the pressing and substantial goal put forward to justify the limit. Another way of putting this question is to ask whether there are less harmful means of achieving the legislative goal. In making this assessment, the courts accord the legislature a measure of deference, particularly on complex social issues where the legislature may be better positioned than the courts to choose among a range of alternatives.
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> …
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> 55. I hasten to add that in considering whether the government's objective could be achieved by other less drastic means, the court need not be satisfied that the alternative would satisfy the objective to *exactly* the same extent or degree as the impugned measure. In other words, the court should not accept an unrealistically exacting or precise formulation of the government's objective which would effectively immunize the law from scrutiny at the minimal impairment stage. The requirement for an "equally effective" alternative measure in the passage from *RJR-MacDonald*, quoted above, should not be taken to an impractical extreme. It includes alternative measures that give sufficient protection, in all the circumstances, to the government's goal: *Charkaoui v. Canada (Citizenship and Immigration)*, 2007 SCC 9, [2007] 1 SCR 350. While the government is entitled to deference in formulating its objective, that deference is not blind or absolute. The test at the minimum impairment stage is whether there is an alternative, less drastic means of achieving the objective in a real and substantial manner. As I will explain, in my view the record in this case discloses no such alternative.

This "effectiveness" requirement for alternative measures that could show the selected measure not to be minimally impairing recalls the rational connection test at the second branch of the *Oakes* test. It remains a somewhat open question whether, at the minimal impairment branch, some trade-off of effectiveness of an alternative measure could be compensated by a lesser degree of impairment of the affected right. If so, then that may help to explain why the overall balance branch of the *Oakes* test, reviewed next, does not play a signature role in Canadian jurisprudence.

4.4 Overall balancing

The final branch of the *Oakes* test serves an important function, even if it is rarely determinative in the justification analysis. Here is how the Court in *Thomson Newspapers Co. v. Canada (Attorney General)*, 1998 CanLII 829 (SCC), [1998] 1 SCR 877, described the specific contribution of the overall balance assessment:

> 125. The third stage of the proportionality analysis performs a fundamentally distinct role. . .. The focus of the first [rational connection] and second [minimal impairment] steps of the proportionality analysis is not the relationship between the measures and the *Charter* right in question, but rather the relationship between the ends of the legislation and the means employed. Although the minimal impairment stage of the proportionality test necessarily takes into account the extent to which a *Charter* value is infringed, the ultimate standard is whether the *Charter* right is impaired as little as possible given the validity of the legislative purpose. The third stage of the proportionality analysis provides an opportunity to assess, in light of the practical and contextual details which are elucidated in the first and second stages, whether the benefits which accrue from the limitation are proportional to its deleterious effects as measured by the values underlying the *Charter*.

This final assessment was initial formulated as inviting a comparison between "the effects of the measures which are responsible for limiting the Charter right or freedom, and the objective which has been identified as of 'sufficient importance'" (*Oakes, supra*, para. 70).

In *Dagenais v. Canadian Broadcasting Corp.*, 1994 CanLII 39 (SCC), [1994] 3 SCR 835, pp. 888-889, the Supreme Court reformulated the final branch of the *Oakes* test so as to add another proportionality evaluation:

> While the third step of the *Oakes* proportionality test has often been expressed in terms of the proportionality of the objective to the deleterious effects, this Court has recognized that in appropriate cases it is necessary to measure the actual salutary effects of impugned legislation against its deleterious effects, rather than merely considering the proportionality of the objective itself.
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> …
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> In my view, characterizing the third part of the second branch of the *Oakes* test as being concerned solely with the balance between the objective and the deleterious effects of a measure rests on too narrow a conception of proportionality. I believe that even if an objective is of sufficient importance, the first two elements of the proportionality test are satisfied, and the deleterious effects are proportional to the objectives, it is still possible that, because of a lack of proportionality between the deleterious effects and the salutary effects, a measure will not be reasonable and demonstrably justified in a free and democratic society. I would, therefore, rephrase the third part of the *Oakes* test as follows: there must be a proportionality between the deleterious effects of the measures which are responsible for limiting the rights or freedoms in question and the objective, and there must be a proportionality between the deleterious and the salutary effects of the measures.

In subsequent cases, however, the focus of the final branch of the *Oakes* test has been only on a proportionality between the deleterious and the salutary effects of the measures, without reference to a proportionality between the deleterious and the objective of the measures.

In *R. v. K.R.J.*, 2016 SCC 31, [2016] 1 SCR 906, one of rare cases in which only the final branch of the *Oakes* test was held not to be satisfied, the Court described proportionality assessment in these words:

> [77] At this final stage of the proportionality analysis, the Court must "weig[h] the impact of the law on protected rights against the beneficial effect of the law in terms of the greater public good" (*Carter*, at para. 122).[6] This final stage is an important one because it performs a fundamentally distinct role. As a majority of this Court observed in *Thomson Newspapers Co. v. Canada (Attorney General)*, 1998 CanLII 829 (SCC), [1998] 1 SCR 877:
>
> > The focus of the first and second steps of the proportionality analysis is not the relationship between the measures and the *Charter* right in question, but rather the relationship between the ends of the legislation and the means employed. . . . The third stage of the proportionality analysis provides an opportunity to assess, in light of the practical and contextual details which are elucidated in the first and second stages, whether the benefits which accrue from the limitation are proportional to its deleterious effects as measured by the values underlying the *Charter*. [para. 125]

[78] It is for this reason that Aharon Barak, former President of the Supreme Court of Israel, has described this final step as "the very heart of proportionality" ("Proportional Effect: The Israeli Experience" (2007), 57 *U.T.L.J.* 369, at p. 380). And in *Hutterian Brethren*, Abella J. wrote: ". . . most of the heavy conceptual lifting and balancing ought to be done at the final step —proportionality. Proportionality is, after all, what s. 1 is about" (para. 149).

[79] I agree. While the minimal impairment test has come to dominate much of the s. 1 discourse in Canada, this final step permits courts to address the essence of the proportionality enquiry at the heart of s. 1. It is only at this final stage that courts can transcend the law's purpose and engage in a robust examination of the law's impact on Canada's free and democratic society "in direct and explicit terms" (J. Cameron, "The Past, Present, and Future of Expressive Freedom Under the *Charter*" (1997), 35 *Osgoode Hall L.J.* 1, at p. 66). In other words, this final step allows courts to stand back to determine on a normative basis whether a rights infringement is justified in a free and democratic society. Although this examination entails difficult value judgments, it is preferable to make these judgments explicit, as doing so enhances the transparency and intelligibility of the ultimate decision. Further, as mentioned, proceeding to this final stage permits appropriate deference to Parliament's choice of means, as well as its full legislative objective.

4.5 Prescribed by law

The *Oakes* test only applies to those limits that are "prescribed by law", as outlined in section 1 of the Canadian Charter. In a series of cases, the Supreme Court has clarified the scope of this requirement.

A limit will be prescribed by law if it is "expressly provided for by statute or regulation, or results by necessary implication from the terms of a statute or regulation or from its operating requirements": *R. v. Therens*, 1985 CanLII 29 (SCC), [1985] 1 SCR 613, p. 645.

However, a limit may also be prescribed by law in other ways, as explained by the Supreme Court of Canada in *Greater Vancouver Transportation Authority v. Canadian Federation of Students - British Columbia Component*, 2009 SCC 31 (CanLII), [2009] 2 SCR 295 :

[50] In its decisions on the "prescribed by law" requirement in s. 1, the Court has distinguished between challenges to government acts and challenges to "laws" (*Slaight Communications Inc. v. Davidson*, 1989 CanLII 92 (SCC), [1989] 1 SCR 1038; *Eldridge*, at para. 20). This case raises the latter type of claim: the policies are being challenged, not the decision made by the transit authorities pursuant to the policies. In assessing whether the impugned policies satisfy the "prescribed by law" requirement, it must first be determined whether the policies come within the meaning of the word "law" in s. 1 of the *Charter*. To do this, it must be asked whether the government entity was authorized to enact the impugned policies and whether the policies are binding rules of general application. If so, the policies can be "law" for the purposes of s. 1. At the second stage of the enquiry, to find that the limit is "prescribed" by law, it must be determined whether the policies are sufficiently precise and accessible. Professor Peter W. Hogg describes the rationale behind the "prescribed by law" requirement in *Constitutional Law of Canada* (5th ed. 2007), vol. 2, at p. 122:

> The requirement that any limit on rights be prescribed by law reflects two values that are basic to constitutionalism or the rule of law. First, in order to preclude arbitrary and discriminatory action by government officials, all official action in derogation of rights must be authorized by law. Secondly, citizens must have a reasonable opportunity to know what is prohibited so that they can act accordingly. Both these values are satisfied by a law that fulfils two requirements: (1) the law must be adequately accessible to the public, and (2) the law must be formulated with sufficient precision to enable people to regulate their conduct by it, and to provide guidance to those who apply the law.

[51] In *R. v. Therens*, 1985 CanLII 29 (SCC), [1985] 1 SCR 613, the Court emphasized that the "prescribed by law" requirement safeguards the public against arbitrary state limits on *Charter* rights. Le Dain J. set out the Court's initial interpretation of the expression "prescribed by law" in s. 1 of the *Charter* (at p. 645):

> The requirement that the limit be prescribed by law is chiefly concerned with the distinction between a limit imposed by law and one that is arbitrary. The limit will be prescribed by law within the meaning of s. 1 if it is expressly provided for by statute or regulation, or results by necessary implication from the terms of a statute or regulation or from its operating requirements.

[52] Thus, the Court does not require that the limit be prescribed by a "law" in the narrow sense of the term; it may be prescribed by a regulation or by the common law. Moreover, it is sufficient that the limit simply result by necessary implication from either the terms or the operating requirements of the "law". (See also *Irwin Toy*; *B.C.G.E.U. v. British Columbia (Attorney General)*, 1988 CanLII 3 (SCC), [1988] 2 SCR 214; *R. v. Swain*, 1991 CanLII 104 (SCC), [1991] 1 SCR 933; and *R. v. Orbanski*, 2005 SCC 37, [2005] 2 SCR 3.)

[53] The Court has also implicitly recognized other forms of limits that were not originally identified in *Therens* as being prescribed by law, including limits contained in municipal by-laws (*Ramsden* and *City of Montréal*), provisions of a collective agreement involving a government entity (*Lavigne*) and rules of a regulatory body (*Black v. Law Society of Alberta*, 1989 CanLII 132 (SCC), [1989] 1 SCR 591). Such limits satisfy the "prescribed by law" requirement because, much like those resulting from regulations and other delegated legislation, their adoption is authorized by statute, they are binding rules of general application, and they are sufficiently accessible and precise to those to whom they apply. In these regards, they satisfy the concerns that underlie the "prescribed by law" requirement insofar as they preclude arbitrary state action and provide individuals and government entities with sufficient information on how they should conduct themselves.

[54] The Court has likewise taken a liberal approach to the precision requirement. The majority in *Irwin Toy* explained this as follows (at p. 983):

> Absolute precision in the law exists rarely, if at all. The question is whether the legislature has provided an intelligible standard according to which the judiciary must do its work. The task of interpreting how that standard applies in particular instances might always be characterized as having a discretionary element, because the standard can never specify all the instances in which it applies. On the other hand, where there is no intelligible standard and where the legislature has given a plenary discretion to do whatever seems best in a wide set of circumstances, there is no "limit prescribed by law".

The Court emphasized in *Osborne v. Canada (Treasury Board)*, 1991 CanLII 60 (SCC), [1991] 2 SCR 69, at pp. 94-97, that the standard is not an onerous one. Unless the impugned law "is so obscure as to be incapable of interpretation with any degree of precision using the ordinary tools", it will be deemed to have met the "prescribed by law" requirement (p. 94).

[55] These cases show that the Court has chosen to take a flexible approach to the "prescribed by law" requirement as regards both the form (e.g., statute, regulation, municipal by-law, rule of a regulatory body or collective agreement provision) and articulation of a limit on a *Charter* right (i.e., a standard intelligible to the public and to those who apply the law). In the end, the Court has emphasized, as in *Therens*, the need to distinguish between limits which arise by law and limits which result from arbitrary state action; those resulting from arbitrary state action continue to fail the "prescribed by law" requirement.

[56] This inclusive approach is based on a recognition that a narrow interpretation would lead to excessive rigidity in a parliamentary and legislative system that relies heavily on framework legislation and delegations of broad discretionary powers. McLachlin J. (as she then was) commented on this as follows in *Committee for the Commonwealth of Canada* (at p. 245):

> From a practical point of view, it would be wrong to limit the application of s. 1 to enacted laws or regulations. That would require the Crown to pass detailed regulations to deal with every contingency as a pre-condition of justifying its conduct under s. 1. In my view, such a technical approach does not accord with the spirit of the *Charter* and would make it unduly difficult to justify limits on rights and freedoms which may be reasonable and, indeed, necessary.
>
> See also *Little Sisters Book and Art Emporium v. Canada (Minister of Justice)*, 2000 SCC 69, [2000] 2 SCR 1120, at para. 137.

Where the rights and freedoms of the *Charter* are limited by the exercise of discretionary authority, the *Oakes* test is not applied. As explained in *Doré v. Barreau du Québec*, 2012 SCC 12 (CanLII), [2012] 1 SCR 395:

> [57] On judicial review, the question becomes whether, in assessing the impact of the relevant *Charter* protection and given the nature of the decision and the statutory and factual contexts, the decision reflects a proportionate balancing of the *Charter* protections at play. As LeBel J. noted in *Multani*, when a court is faced with reviewing an administrative decision that implicates *Charter* rights, "[t]he issue becomes one of proportionality" (para. 155), and calls for integrating the spirit of s. 1 into judicial review. Though this judicial review is conducted within the administrative framework, there is nonetheless conceptual harmony between a reasonableness review and the *Oakes* framework, since both contemplate giving a "margin of appreciation", or deference, to administrative and legislative bodies in balancing *Charter* values against broader objectives.
>
> [58] If, in exercising its statutory discretion, the decision-maker has properly balanced the relevant *Charter* value with the statutory objectives, the decision will be found to be reasonable.

5 Context and Deference

The Supreme Court takes a contextual approach to the s. 1 analysis. The test is a flexible one that considers the factual and social context of each case. In *RJR-MacDonald Inc. v. Canada (Attorney General)*, 1995 CanLII 64 (SCC), [1995] 3 SCR 199 at para. 63, the Supreme Court stated:

> 63 This Court has on many occasions affirmed that the *Oakes* requirements must be applied flexibly, having regard to the specific factual and social context of each case. The word "reasonable" in s. 1 necessarily imports flexibility. In a significant, but often neglected, passage from *Oakes* itself, Dickson C.J. warned against an overly formalistic approach to s. 1 justification, stating, at p. 139, that "[a]lthough the nature of the proportionality test will vary depending on the circumstances, in each case the courts will be required to balance the interests of society with those of individuals and groups". Shortly thereafter, he reaffirmed this warning in *R. v. Edwards Books and Art Ltd.*, 1986 CanLII 12 (SCC), [1986] 2 SCR 713, at pp. 768-69, where, referring to the Court's decision in *Oakes*, he stated:
>
> > The Court stated that the nature of the proportionality test would vary depending on the circumstances. Both in articulating the standard of proof and in describing the criteria comprising the proportionality requirement the Court has been careful to avoid rigid and inflexible standards.
>
> Later, in *R. v. Keegstra*, 1990 CanLII 24 (SCC), [1990] 3 SCR 697, at p. 735, Dickson C.J. had occasion to elaborate more fully upon the nature of the *Oakes* inquiry, stating that it was "dangerously misleading to conceive of s. 1 as a rigid and technical provision". He noted at p. 735 that,
>
> > [f]rom a crudely practical standpoint, *Charter* litigants sometimes may perceive s. 1 in this manner, but in the body of our nation's constitutional law it plays an immeasurably richer role, one of great magnitude and sophistication.
>
> The role played by s. 1, he observed, at pp. 735-36, is to bring "together the fundamental values and aspirations of Canadian society" through the "dual function" of activating *Charter* rights and permitting such reasonable limits as a free and democratic society may have occasion to place upon them…In *United States of America v. Cotroni*, 1989 CanLII 106 (SCC), [1989] 1 SCR 1469, at pp. 1489-90, I also stressed the…need to avoid what I called a "mechanistic approach" in the application of the s. 1 analysis:
>
> > In the performance of the balancing task under s. 1, it seems to me, a mechanistic approach must be avoided. While the rights guaranteed by the *Charter* must be given priority in the equation, the underlying values must be sensitively weighed in a particular context against other values of a free and democratic society sought to be promoted by the legislature.

5.1 Deference to Legislative Authority: Some Considerations

In *Irwin Toy Ltd. v. Quebec (Attorney General)*, 1989 CanLII 87 (SCC), [1989] 1 SCR 927, a case concerning the constitutionality of ss. 248 and 249 of the *Consumer Protection Act*, R.S.Q., c. P-40.1, which prohibited commercial advertising directed at children under 13 years of age, the Supreme Court addressed the issue of when it is appropriate to defer to the judgement of the legislature. Citing the earlier case of *R. v. Edwards Books and Art Ltd.*, 1986 CanLII 12 (SCC), [1986] 2 SCR 713, the Supreme Court found that:

> A "reasonable limit" is one which, having regard to the principles enunciated in *Oakes*, it was reasonable for the legislature to impose. The courts are not called upon to substitute judicial opinions for legislative ones as to the place at which to draw a precise line.

Over a range of cases, including *Irwin Toy, RJR-MacDonald,* and *Saskatchewan (Human Rights Commission) v. Whatcott,* 2013 SCC 11, [2013] 1 SCR 467, the Supreme Court has considered several factors that are relevant in determining the level of deference owed to legislative judgement in the section 1 analysis in a particular case. Deference in the section 1 analysis is less appropriate in the criminal law context or when the "core democratic rights" under s.3 of the Charter have been infringed. *Frank v. Canada (Attorney General),* 2019 SCC 1, [2019] 1 SCR 3

> [43] The jurisprudence also requires that a stringent standard of justification be applied when the government seeks to justify a limit on the s. 3 right to vote…This does not necessarily mean that the government bears a heavier burden in the context of this right than in the context of other *Charter* rights; as I mentioned above, the standard is always proof on a balance of probabilities. What it does mean is that reviewing courts must examine the government's proffered justification carefully and rigorously in this context rather than adopting a deferential attitude. Deference may be appropriate in the case of a complex regulatory response or a decision involving competing social and political policies, but it is not the appropriate posture for a court reviewing an absolute prohibition of a core democratic right (*Sauvé #2*, at para. 13; *Alberta v. Hutterian Brethren of Wilson Colony*, 2009 SCC 37, [2009] 2 SCR 567, at para. 37).

The Supreme Court has distinguished between two types of deference owed to legislative judgement. While the distinction between the two types can be difficult to maintain, the first type concerns judicial deference owing to legislative determinations of fact, and the second concerns judicial deference to legislative decisions which aim to balance competing values and interests. The Supreme Court has held that judicial deference might be especially apt with respect to legislative understanding of the relevant social science evidence. In such cases, a lower standard of justification for legislative understandings of the factual matters pertinent to the s.1 analysis is defensible given the legislature's institutional competence at policy making, and access to resources. This reasoning holds, finds the Court, even in cases where it appears that the social science evidence is not especially determinative of the matter at hand. The Supreme Court has also found that

deference is appropriate where the legislature is balancing competing values. This type of deference relies on arguments pertaining to democratic legitimacy. Where the factors tend towards deference, a lower standard of justification under the *Oakes* test would be appropriate. *RJR-MacDonald* at para. 68.

5.2 Deference when government acts as a singular-antagonist vis-à-vis a policy mediator between competing individuals and groups

In *Irwin Toy,* the Supreme Court found that legislative deference is appropriate where the government has sought to play a mediator role by crafting legislation that balances policy interests between competing individuals and groups. The degree of deference shown to the government turns on whether the Supreme Court ascertains the matter at hand to be one where the government would have the relevant expertise, and/or the democratic mandate to legislate on the complex and sometimes contentious policy matters that are the subject of the legislation. Deference is especially appropriate in cases where the legislation at issue is aimed at the protection of vulnerable groups. In such cases, the Supreme Court should not insist on the "least drastic means" test at the minimal impairment stage of their s.1 evaluation. Where, however, the government is "best characterized as the singular antagonist of the individual whose right has been infringed" the Supreme Court should insist on a higher standard of justification.

The Supreme Court further considers the question of when judicial deference is appropriate in the following excerpt from *Irwin Toy*:

> Where the legislature mediates between the competing claims of different groups in the community, it will inevitably be called upon to draw a line marking where one set of claims legitimately begins and the other fades away without access to complete knowledge as to its precise location. If the legislature has made a reasonable assessment as to where the line is most properly drawn, especially if that assessment involves weighing conflicting scientific evidence and allocating scarce resources on this basis, it is not for the court to second guess. That would only be to substitute one estimate for another. In dealing with inherently heterogeneous groups defined in terms of age or a characteristic analogous to age, evidence showing that a clear majority of the group requires the protection which the government has identified can help to establish that the group was defined reasonably.
>
> Thus, in matching means to ends and asking whether rights or freedoms are impaired as little as possible, a legislature mediating between the claims of competing groups will be forced to strike a balance without the benefit of absolute certainty concerning how that balance is best struck. Vulnerable groups will claim the need for protection by the government whereas other groups and individuals will assert that the government should not intrude. In *Edwards Books and Art Ltd.*, *supra*, Dickson C.J. expressed an important concern about the situation of vulnerable groups (at p. 779):
>
> > In interpreting and applying the *Charter* I believe that the courts must be cautious to ensure that it does not simply become an instrument of better situated individuals to roll back legislation which has as its object the improvement of the condition of less advantaged persons.
> >
> > When striking a balance between the claims of competing groups, the choice of means, like the choice of ends, frequently will require an assessment of conflicting scientific evidence and differing justified demands on scarce resources. Democratic institutions are meant to let us all share in the responsibility for these difficult choices. Thus, as courts review the results of the legislature's deliberations, particularly with respect to the protection of vulnerable groups, they must be mindful of the legislature's representative function. For example, when "regulating industry or business it is open to the legislature to restrict its legislative reforms to sectors in which there appear to be particularly urgent concerns or to constituencies that seem especially needy" (*Edwards Books and Art Ltd.*, *supra*, at p. 772).
> >
> > In other cases, however, rather than mediating between different groups, the government is best characterized as the singular antagonist of the individual whose right has been infringed. For example, in justifying an infringement of legal rights enshrined in ss. 7 to 14 of the *Charter*, the state, on behalf of the whole community, typically will assert its responsibility for prosecuting crime whereas the individual will assert the paramountcy of principles of fundamental justice. There might not be any further competing claims among different groups. In such circumstances, and indeed whenever the government's purpose relates to maintaining the authority and impartiality of the judicial system, the courts can assess with some certainty whether the "least drastic means" for achieving the purpose have been chosen, especially given their accumulated experience in dealing with such questions: see *Sunday Times v. United Kingdom* (1979), 2 E.H.R.R. 245, at p. 276. The same degree of certainty may not be achievable in cases involving the reconciliation of claims of competing individuals or groups or the distribution of scarce government resources.
> >
> > In the instant case, the Court is called upon to assess competing social science evidence respecting the appropriate means for addressing the problem of children's advertising. The question is whether the government had a reasonable basis, on the evidence tendered, for concluding that the ban on all advertising directed at children impaired freedom of expression as little as possible given the government's pressing and substantial objective.

As outlined in *Irwin Toy*, deference shifts in accordance with whether the law under constitutional scrutiny is best viewed through a 'singular antagonist' or a public policy lens. A higher level of scrutiny will be required where the matter fits the singular antagonist frame, for as stated in *RJR MacDonald* at 68, "[c]ourts are specialists in the protection of liberty and the interpretation of legislation and are, accordingly, well placed to subject criminal justice legislation to careful scrutiny."

In *RJR MacDonald*, the Supreme Court again considered the question of judicial deference in a section 1 analysis after finding that certain provisions of the *Tobacco Products Control Act,* S.C. 1988, which prohibited (with exception) the advertising and promotion of tobacco products and the sale of tobacco products without unattributed health warnings and a list of toxic constituents, had violated s. 2(b) of the Charter. The Supreme Court here reiterates the importance of deferring to legislative judgement when the legislation at issue is aiming to address complex public policy issues. The aims of the legislation under review are relevant to the section 1 analysis both in 'in determining the appropriate standard of justification and in weighing the relevant evidence' (para 66). When aim of the legislation is to address a complex and multifaceted social issue, such as tobacco addition, it would not be appropriate under the s.1 analysis to demand definitive scientific evidence. The Court expands on this link between evidentiary standards and appropriate deference to legislative judgement in the following passages from *RJR MacDonald*:

> 64 … This Court has on many occasions stated that the evidentiary requirements under s. 1 will vary substantially depending upon both the nature of the legislation and the nature of the right infringed. In the present cases, both these contextual elements are highly relevant to a proper application of the s. 1 analysis. Accordingly, before proceeding to an analysis of the evidence submitted at trial, I find it necessary to explore in more detail both the nature of the legislation and the nature of the right it infringes.
>
> 65 I turn first to the nature of the legislation. In my discussion of the criminal law power, I concluded that the Act is, in pith and substance, criminal law aimed at the protection of public health. In enacting this legislation, Parliament clearly intended to protect public health by reducing the number of inducements for Canadians to consume tobacco, and by educating Canadians about the health risks entailed in its consumption. The appellants concede, and in my view, there is no doubt, that this goal is pressing and substantial. At trial and before this Court the Attorney General adduced copious evidence, some of which is set forth in the criminal law power discussion, demonstrating that tobacco consumption is one of the leading causes of illness and death in our society. It is noteworthy that the detrimental effects of tobacco consumption

impact not only upon the estimated 30,000 Canadians who die from related diseases each year, but also upon every member of our community. Apart from the apparent danger posed to nonsmoking members of the community by secondary smoke, all Canadians, and not merely tobacco consumers, must shoulder the heightened tax burden arising from the high cost of medical care for tobacco users who become ill.

66 Having conceded that the objective of protecting public health from the detrimental effects of tobacco consumption is pressing and substantial, the appellants submit, and Chabot J. agreed, that the facts respecting the harmful effect of tobacco are irrelevant to the application of the proportionality analysis. Chabot J. stated, at p. 491:

> . . . much of the expert scientific evidence relating to the effects of tobacco on health, however voluminous and instructive, was nevertheless, with respect, irrelevant to the case and, in the humble view of the court, served merely to colour the debate unnecessarily.

With respect, I disagree. In my view, the nature and scope of the health problems raised by tobacco consumption are highly relevant to the s. 1 analysis, both in determining the appropriate standard of justification and in weighing the relevant evidence. In this respect, it is essential to keep in mind that tobacco addiction is a unique, and somewhat perplexing, phenomenon. Despite the growing recognition of the detrimental health effects of tobacco use, close to a third of the population continues to use tobacco products on a regular basis. At this point, there is no definitive scientific explanation for tobacco addiction, nor is there a clearly understood causal connection between advertising, or any other environmental factor, and tobacco consumption. This is not surprising. One cannot understand the causal connection between advertising and consumption, or between tobacco and addiction, without probing deeply into the mysteries of human psychology. Many of the workings of the human mind, and the causes of human behaviour, remain hidden to our understanding and will no doubt remain so for quite some time. In this respect, it is instructive to consider the view of the Surgeon General of the United States, who observed in his 1989 report entitled *Reducing the Health Consequences of Smoking -- 25 Years of Progress -- A report of the Surgeon General*, at pp. 512-13:

> There is no scientifically rigorous study available to the public that provides a definitive answer to the basic question of whether advertising and promotion increase the level of tobacco consumption. Given the complexity of the issue, none is likely to be forthcoming in the foreseeable future.

However, despite the lack of definitive scientific explanations of the causes of tobacco addiction, clear evidence does exist of the detrimental social effects of tobacco consumption. As I discussed earlier, overwhelming evidence was introduced at trial that tobacco use is a principal cause of deadly cancers, heart disease and lung disease, and that tobacco is highly addictive. Perhaps the most distressing aspect of the evidence introduced at trial is that tobacco consumption is most widespread among the young and the less educated -- those segments of the population who are least able to inform themselves about, and to protect themselves against, its hazards. The majority of Canadian tobacco smokers start smoking regularly in their teens, and approximately one in five begin smoking regularly as early as 13; see expert report of Dr. Roberta G. Ferrence, *supra*; "Project Plus/Minus", prepared for Imperial Tobacco Ltd. (1982). Indeed, it has been estimated that, among young Canadians who continue to use tobacco, six times more will die prematurely of disease caused by smoking than from car accidents, suicide, murder and AIDS combined; see expert report of Dr. Donald T. Wigle, *supra*. Moreover there are more smokers among people with less formal education. While, in 1986, 60 percent of those with no high school education smoked on a daily basis, only 8 percent of those with a university degree did so; see expert report of Dr. Roberta G. Ferrence, *supra*, at p. 32.

67 It appears, then, that there is a significant gap between our understanding of the health effects of tobacco consumption and of the root causes of tobacco consumption. In my view, this gap raises a fundamental institutional problem that must be taken into account in undertaking the s. 1 balancing. Simply put, a strict application of the proportionality analysis in cases of this nature would place an impossible onus on Parliament by requiring it to produce definitive social scientific evidence respecting the root causes of a pressing area of social concern every time it wishes to address its effects. This could have the effect of virtually paralyzing the operation of government in the socio-economic sphere. As I noted in *McKinney*, *supra*, at pp. 304-5, predictions respecting the ramifications of legal rules upon the social and economic order are not matters capable of precise measurement, and are often "the product of a mix of conjecture, fragmentary knowledge, general experience and knowledge of the needs, aspirations and resources of society, and other components". To require Parliament to wait for definitive social science conclusions every time it wishes to make social policy would impose an unjustifiable limit on legislative power by attributing a degree of scientific accuracy to the art of government which, in my view, is simply not consonant with reality. As LeBel J.A. observed in the Court of Appeal (at pp. 311-12):

> Interpreted literally, mechanically, without nuance, the *Oakes* test and the burden of proof which it imposes on the state would most often negate its ability to legislate.
>
> Moreover, such an approach misconceives the nature of a constitutional case such as this. It cannot be dealt with as if it were an ordinary civil trial. We are not dealing with a matter in which, for example, a particular litigant seeks to demonstrate that his tobacco consumption and the advertising of a manufacturer whose cigarettes he consumed caused his lung cancer or his emphysema. It is rather a question of determining the basis on which a legislator may choose to act, where the outcome is uncertain.
>
> It is necessary to understand the limits and the nature of policy choices. It is often difficult to forecast the future and to anticipate the beneficial or negative consequences of government policy. A well-conceived policy may be poorly applied. The necessary institutional resources may fail; unforeseen obstacles may intervene. If one is to apply rigorously the criterion of civil proof on the balance of probabilities it will be impossible to govern. On this basis, it would not be possible to make difficult but sometimes necessary legislative choices. There would be conferred on the courts a supervisory role over a state itself essentially inactive.

68 In several recent cases, this Court has recognized the need to attenuate the *Oakes* standard of justification when institutional constraints analogous to those in the present cases arise. In *Irwin Toy*, *supra*, at pp. 993-94, this Court stated:

> . . . in matching means to ends and asking whether rights or freedoms are impaired as little as possible, a legislature mediating between the claims of competing groups will be forced to strike a balance without the benefit of absolute certainty concerning how that balance is best struck. Vulnerable groups will claim the need for protection by the government whereas other groups and individuals will assert that the government should not intrude.
>
> . . .
>
> When striking a balance between the claims of competing groups, the choice of means, like the choice of ends, frequently will require an assessment of conflicting scientific evidence and differing justified demands on scarce resources. Democratic institutions are meant to let us all share in the responsibility for these difficult choices. Thus, as courts review the results of the legislature's deliberations, particularly with respect to the protection of vulnerable groups, they must be mindful of the legislature's representative function. . ..
>
> In other cases, however, rather than mediating between different groups, the government is best characterized as the singular antagonist of the individual whose right has been infringed. For example, in justifying an infringement of legal rights enshrined in ss. 7 to 14 of the *Charter*, the state, on behalf of the whole community, typically will assert its responsibility for prosecuting crime whereas the individual will assert the paramountcy of principles of fundamental justice. There might not be any further competing claims among different

> groups. In such circumstances, and indeed whenever the government's purpose relates to maintaining the authority and impartiality of the judicial system, the courts can assess with some certainty whether the "least drastic means" for achieving the purpose have been chosen, especially given their accumulated experience in dealing with such questions. . ..

In drawing a distinction between legislation aimed at "mediating between different groups", where a lower standard of s. 1 justification may be appropriate, and legislation where the state acts as the "singular antagonist of the individual", where a higher standard of justification is necessary, the Court in *Irwin Toy* was drawing upon the more fundamental institutional distinction between the legislative and judicial functions that lies at the very heart of our political and constitutional system. Courts are specialists in the protection of liberty and the interpretation of legislation and are, accordingly, well placed to subject criminal justice legislation to careful scrutiny. However, courts are not specialists in the realm of policy-making, nor should they be. This is a role properly assigned to the elected representatives of the people, who have at their disposal the necessary institutional resources to enable them to compile and assess social science evidence, to mediate between competing social interests and to reach out and protect vulnerable groups. In according a greater degree of deference to social legislation than to legislation in the criminal justice context, this Court has recognized these important institutional differences between legislatures and the judiciary.

69 In my view, the considerations addressed by this Court in *Irwin Toy* and *McKinney*, *supra*, are applicable to the present cases. In enacting this legislation, Parliament was facing a difficult policy dilemma. On the one hand, Parliament is aware of the detrimental health effects of tobacco use, and has a legitimate interest in protecting Canadians from, and in informing them about, the dangers of tobacco use. Health underlies many of our most cherished rights and values, and the protection of public health is one of the fundamental responsibilities of Parliament. On the other hand, however, it is clear that a prohibition on the manufacture, sale or use of tobacco products is unrealistic. Nearly seven million Canadians use tobacco products, which are highly addictive. Undoubtedly, a prohibition of this nature would lead to an increase in illegal activity, smuggling and, quite possibly, civil disobedience. Well aware of these difficulties, Parliament chose a less drastic, and more incremental, response to the tobacco health problem. In prohibiting the advertising and promotion of tobacco products, as opposed to their manufacture or sale, Parliament has sought to achieve a compromise among the competing interests of smokers, non-smokers and manufacturers, with an eye to protecting vulnerable groups in society. Given the fact that advertising, by its very nature, is intended to influence consumers and create demand, this was a reasonable policy decision. Moreover, as I discussed above, the Act is the product of a legislative process dating back to 1969, when the first report recommending a full prohibition on tobacco advertising was published; see *Report of the Standing Committee on Health, Welfare and Social Affairs on Tobacco and Cigarette Smoking*, *supra*. In drafting this legislation, Parliament took into account the views of Canadians from many different sectors of society, representing many different interests. Indeed, the legislative committee responsible for drafting Bill C-51, which was subsequently adopted by Parliament as the Act, heard from 104 organizations during hearings in 1988 representing a variety of interests, including medicine, transport, advertising, smokers' rights, non-smokers' rights, and tobacco production.

70 Seen in this way, it is clear that the Act is the very type of legislation to which this Court has generally accorded a high degree of deference. In drafting this legislation, which is directed toward a laudable social goal and is designed to protect vulnerable groups, Parliament was required to compile and assess complex social science evidence and to mediate between competing social interests. Decisions such as these are properly assigned to our elected representatives, who have at their disposal the necessary resources to undertake them, and who are ultimately accountable to the electorate…

71 Turning now to the nature of the right infringed under the Act, it is once again necessary to place the appellants' claim in context. This Court has recognized, in a line of freedom of expression cases dating back to *Edmonton Journal*, *supra*, that, depending on its nature, expression will be entitled to varying levels of constitutional protection…

In *Rocket*, *supra*, at pp. 246-47, McLachlin J. affirmed Wilson J.'s contextual approach:

> While the Canadian approach does not apply special tests to restrictions on commercial expression, our method of analysis does permit a sensitive, case-oriented approach to the determination of their constitutionality. Placing the conflicting values in their factual and social context when performing the s. 1 analysis permits the courts to have regard to special features of the expression in question. As Wilson J. notes in *Edmonton Journal v. Alberta (Attorney General)*, 1989 CanLII 20 (SCC), [1989] 2 SCR 1326, not all expression is equally worthy of protection. Nor are all infringements of free expression equally serious.

72 The source of the "sensitive, case-oriented approach" referred to by McLachlin J. in *Rocket* is this Court's more fundamental recognition that the right to freedom of expression is not absolute and cannot, in all cases, override other rights and values. Although freedom of expression is undoubtedly a fundamental value, there are other fundamental values that are also deserving of protection and consideration by the courts. When these values come into conflict, as they often do, it is necessary for the courts to make choices based not upon an abstract, platonic analysis, but upon a concrete weighing of the relative significance of each of the relevant values in our community in the specific context. This the Court has done by weighing freedom of expression claims in light of their relative connection to a set of even more fundamental values. In *Keegstra*, *supra*, at pp. 762-63, Dickson C.J. identified these fundamental or "core" values as including the search for political, artistic and scientific truth, the protection of individual autonomy and self-development, and the promotion of public participation in the democratic process. When state action places such values in jeopardy, this Court has been careful to subject it to a searching degree of scrutiny. However, when the form of expression placed in jeopardy falls farther from the "centre core of the spirit", this Court has ruled restrictions on such expression less difficult to justify. As Dickson C.J. observed in *Keegstra*, *supra*, at p. 760:

> In my opinion, however, the s. 1 analysis of a limit upon s. 2(*b*) cannot ignore the nature of the expressive activity which the state seeks to restrict. While we must guard carefully against judging expression according to its popularity, it is equally destructive of free expression values, as well as the other values which underlie a free and democratic society, to treat all expression as equally crucial to those principles at the core of s. 2(*b*).

73 In cases where the expression in question is farther from the "core" of freedom of expression values, this Court has applied a lower standard of justification. For example, in *Keegstra*, where a majority of this Court ruled that a prohibition on hate speech under s. 319(2) of the *Criminal Code*, R.S.C., 1985, c. C-46, was a justifiable limitation on freedom of expression, Dickson C.J. found that this limited infringement was justified because hate propaganda was a form of expression that was only remotely related to "core" free expression values. He noted, at p. 766:

> . . . I am of the opinion that hate propaganda contributes little to the aspirations of Canadians or Canada in either the quest for truth, the promotion of individual self-development or the protection and fostering of a vibrant democracy where the participation of all individuals is accepted and encouraged. While I cannot conclude that hate propaganda deserves only marginal protection under the s. 1 analysis, I can take cognizance of the fact that limitations upon hate propaganda are directed at a special category of expression which strays some distance from the spirit of s. 2(*b*), and hence conclude that "restrictions on expression of this kind might be easier to justify than other infringements of s. 2(*b*)". . ..

75 In my view, the harm engendered by tobacco, and the profit motive underlying its promotion, place this form of expression as far from the "core" of freedom of expression values as prostitution, hate mongering, or pornography, and thus entitle it to a very low degree of protection under s. 1. It must be kept in mind that tobacco advertising serves no political, scientific or artistic ends; nor does it promote participation in the

political process. Rather, its sole purpose is to inform consumers about, and promote the use of, a product that is harmful, and often fatal, to the consumers who use it. The main, if not sole, motivation for this advertising is, of course, profit. The sale of tobacco products in Canada generates enormous profits for the three companies who dominate the market (RJR, Imperial and Rothmans, Benson & Hedges Inc.). In 1992, for example, earnings from Imperial's operations alone reached $432,000,000 (Earnings from operations (Tobacco) in Note 31 (Segmented financial information) in "Notes to the Consolidated Financial Statements", at p. 48 of Imasco *Annual Report 1992* and "Six Year Review" in Imasco *Annual Report 1992*, at pp. 52-53).

76 The appellants, both of whom are large multinational corporations, spend millions of dollars every year to promote their products (in 1987 alone, RJR and Imperial spent over $75 million dollars on advertising and promotion); see RJR-MacDonald Inc., "Advertising and Promotion Spending (CND$)" (1976-1987); Imperial Tobacco Ltd., "Domestic Advertising Expense Summary" (1982-1987). The large sums these companies spend on advertising allow them to employ the most advanced advertising and social psychology techniques to convince potential buyers to buy their products. The sophistication of the advertising campaigns employed by these corporations, in my view, undermines their claim to freedom of expression protection because it creates an enormous power differential between these companies and tobacco consumers in the "marketplace of ideas". As noted by M. L. Rothschild in *Advertising: From Fundamentals to Strategies* (1987), at p. 8, and cited in Dr. Richard W. Pollay, "The Functions and Management of Cigarette Advertising", Report, prepared July 27, 1989, at p. 2:

> Advertising is salesmanship, and is paid for by a firm, a person or a group with a particular point of view. The message advocates that point of view, and its goal is to create awareness, attitude, or behaviour that is favorable to that advocacy position. The message attempts to inform and to persuade; it is intentionally biased, and there is no intent to present a balanced point of view.

The power differential between advertiser and consumer is even more pronounced with respect to children who, as this Court observed in *Irwin Toy*, at p. 987, are "particularly vulnerable to the techniques of seduction and manipulation abundant in advertising"; see, e.g., expert report of Dr. Michael J. Chandler, "A Report on the Special Vulnerabilities of Children and Adolescents" (1989), at p. 19; expert report of Simon Chapman and Bill Fitzgerald, "Brand Preference and Advertising Recall in Adolescent Smokers: Some Implications for Health Promotion" (1982), 72 *Am. J. Pub. Health* 491; Gerald J. Gorn and Renée Florsheim, "The Effects of Commercials for Adult Products on Children" (1985), 11 *J. Consumer Res.* 962. In this respect, it is critical to keep in mind Dickson C.J.'s reminder in *Edwards Books*, *supra*, at p. 779:

> In interpreting and applying the *Charter* I believe that the courts must be cautious to ensure that it does not simply become an instrument of better situated individuals to roll back legislation which has as its object the improvement of the condition of less advantaged persons.

77 I conclude, therefore, that an attenuated level of s. 1 justification is appropriate in these cases. Taking into account both the nature of the right and the nature of the legislation in issue, I am satisfied that LeBel J.A. was correct in deciding that the Attorney General need only demonstrate that Parliament had a rational basis for introducing the measures contained in this Act. With these observations firmly in mind, I now proceed to an application of the proportionality test.

5.3 Legislative Interference with High or Low Value Expression; Legislative Interference with the Core or Penumbra of a Rights or Freedom Charter Guarantee.

In *Saskatchewan (Human Rights Commission) v. Whatcott*, 2013 SCC 11, [2013] 1 SCR 467, the Supreme Court reaffirmed the importance of distinguishing between core and periphery practices that engage with the guarantee of freedom of expression at s. 2(b) in the section 1 analysis. Practices that engage with the core of a *Charter* right are those that reflect closely the purposes underlying the right. The Supreme Court stated in *Whatcott* that the section 1 analysis would be more strictly applied when the expression at issue was high-value expression, that is, where the expression that had been interfered with was close to the "core" values underlying the right, which in the case of s, 2(b) are, as Dickson C.J. wrote in *Keegstra* at 762-63, "political, artistic and scientific truth, the protection of individual autonomy and self-development, and the promotion of public participation in the democratic process."

> [65] The justification of a limit on freedom of expression under s. 1 requires a contextual and purposive approach. The values underlying freedom of expression will inform the context of the violation: see *Taylor*, *Keegstra* and *Sharpe*. McLachlin C.J., writing for the majority in *Sharpe*, explained succinctly the values underlying freedom of expression first recognized in *Irwin Toy*, being "individual self-fulfilment, finding the truth through the open exchange of ideas, and the political discourse fundamental to democracy" (para. 23).
>
> [66] We are therefore required to balance the fundamental values underlying freedom of expression (and, later, freedom of religion) in the context in which they are invoked, with competing *Charter* rights and other values essential to a free and democratic society, in this case, a commitment to equality and respect for group identity and the inherent dignity owed to all human beings: s. 15 of the *Charter* and *R. v. Oakes*, 1986 CanLII 46 (SCC), [1986] 1 SCR 103, at p. 136; *Ross v. New Brunswick School District No. 15*, 1996 CanLII 237 (SCC), [1996] 1 SCR 825, at para. 78; and *Taylor*, at pp. 916 and 920.
>
> [67] The balancing of competing *Charter* rights should also take into account Canada's international obligations with respect to international law treaty commitments: *Taylor*, at p. 916, *per* Dickson C.J. Those commitments reflect an international recognition that certain types of expression may be limited in furtherance of other fundamental values: *Taylor*, at pp. 919-20, *per* Dickson C.J.

In *Whatcott,* the Supreme Court found that hate speech was low value expression, and far from the core of each of the three values underlying the guarantee of freedom of expression at s. 2(b). Deference will be afforded to the legislature where the expression in question is considered far from the core of the right. The Supreme Court explicates the importance of the high/low value expression distinction and the core/penumbra distinction in a section 1 analysis:

> (ii) Overbreadth
>
> [107] Section 14(1)(b) is alleged to be overreaching, so that it captures more expression than is necessary to satisfy the legislative objectives, and thereby fails to minimally impair the right to freedom of expression. It is also criticized for having a chilling effect on expression (including religious expression), public debate and media coverage on issues about moral conduct and social policy.
>
> 1. *Wording of Section 14 of the Code*
>
> [108] Having concluded that the words "ridicules, belittles or otherwise affronts the dignity of" in s. 14(1)(b) are not rationally connected to the objective of prohibiting speech which can lead to discrimination, I also find them constitutionally invalid because they do not minimally impair freedom of expression.
>
> [109] Restricting expression because it may offend or hurt feelings does not give sufficient weight to the role expression plays in individual self-fulfillment, the search for truth, and unfettered political discourse. Prohibiting any representation which "ridicules, belittles or otherwise affronts the dignity of" protected groups could capture a great deal of expression which, while offensive to most people, falls short of

exposing its target group to the extreme detestation and vilification which risks provoking discriminatory activities against that group. Rather than being tailored to meet the particular requirements, such a broad prohibition would impair freedom of expression in a significant way.

[110] The Saskatchewan legislature recognized the importance of freedom of expression through its enactment of s. 14(2) of the *Code*. To repeat, that provision confirms that "[n]othing in subsection (1) restricts the right to freedom of expression under the law upon any subject." The objective behind s. 14(1)(b) is not to censor ideas or to legislate morality. The legislative objective of the entire provision is to address harm from hate speech while limiting freedom of expression as little as possible.

[111] In my view, once the additional words are severed from s. 14(1)(b), the remaining prohibition is not overbroad. A limitation predicated on expression which exposes groups to hatred tries to distinguish between healthy and heated debate on controversial topics of political and social reform, and impassioned rhetoric which seeks to incite hatred as a means to effect reform. The boundary will not capture all harmful expression, but it is intended to capture expression which, by inspiring hatred, has the potential to cause the type of harm that the legislation is trying to prevent. In that way, the limitation is not overbroad, but rather tailored to impair freedom of expression as little as possible.

2. *Nature of the Expression*

[112] Violent expression and expression that threatens violence does not fall within the protected sphere of s. 2(*b*) of the *Charter*: *R. v. Khawaja*, 2012 SCC 69, [2012] 3 SCR 555, at para. 70. However, apart from that, not all expression will be treated equally in determining an appropriate balancing of competing values under a s. 1 analysis. That is because different types of expression will be relatively closer to or further from the core values behind the freedom, depending on the nature of the expression. This will, in turn, affect its value relative to other *Charter* rights, the exercise or protection of which may infringe freedom of expression.

[113] Dickson C.J. emphasized the special nature of hate propaganda at p. 766 of *Keegstra*, and again in *Taylor*, at p. 922:

> . . . I am of the opinion that hate propaganda contributes little to the aspirations of Canadians or Canada in either the quest for truth, the promotion of individual self-development or the protection and fostering of a vibrant democracy where the participation of all individuals is accepted and encouraged. While I cannot conclude that hate propaganda deserves only marginal protection under the s. 1 analysis, I can take cognizance of the fact that limitations upon hate propaganda are directed at a special category of expression which strays some distance from the spirit of s. 2(*b*), and hence conclude that "restrictions on expression of this kind might be easier to justify than other infringements of s. 2(*b*)" ([*Rocket v. Royal College of Dental Surgeons of Ontario*, 1990 CanLII 121 (SCC), [1990] 2 SCR 232], at p. 247).

[114] Hate speech is at some distance from the spirit of s. 2(*b*) because it does little to promote, and can in fact impede, the values underlying freedom of expression. As noted by Dickson C.J. in *Keegstra*, expression can be used to the detriment of the search for truth (p. 763). As earlier discussed, hate speech can also distort or limit the robust and free exchange of ideas by its tendency to silence the voice of its target group. It can achieve the self-fulfillment of the publisher, but often at the expense of that of the victim. These are important considerations in balancing hate speech with competing *Charter* rights and in assessing the constitutionality of the prohibition in s. 14(1)(b) of the *Code*.

3. *Political Discourse*

[115] While hate speech constitutes a type of expression that lies at the periphery of the values underlying freedom of expression, political expression lies close to the core of the guarantee: see *Sharpe*, at para. 23, *per* McLachlin C.J. Mr. Whatcott submits that the expression in his flyers relates to the discovery of truth and sexual politics, and is therefore at the core of protected expression. He submits that Flyers D and E are his commentary on a social policy debate about whether homosexuality should be discussed as part of the public school curriculum or at university conferences. The question here is how the prohibition in s. 14(1)(b) of the *Code* interplays with legitimate expression on matters of public policy or morality. If the restriction is overbroad, it will not minimally impair expression.

[116] The purpose of hate speech legislation is to restrict the use of representations likely to expose protected groups to hatred and its harmful effects. The expression captured under hate speech laws is of an extreme nature. Framing that speech as arising in a "moral" context or "within a public policy debate" does not cleanse it of its harmful effect. Indeed, if one understands an effect of hate speech as curtailing the ability of the affected group to participate in the debate, relaxing the standard in the context of political debate is arguably more rather than less damaging to freedom of expression. As argued by some interveners, history demonstrates that some of the most damaging hate rhetoric can be characterized as "moral", "political" or "public policy" discourse.

[117] Finding that certain expression falls within political speech does not close off an enquiry into whether the expression constitutes hate speech. Hate speech may often arise as a part of a larger public discourse but, as discussed in *Keegstra* and *Taylor*, it is speech of a restrictive and exclusionary kind. Political expression contributes to our democracy by encouraging the exchange of opposing views. Hate speech is antithetical to this objective in that it shuts down dialogue by making it difficult or impossible for members of the vulnerable group to respond, thereby stifling discourse. Speech that has the effect of shutting down public debate cannot dodge prohibition on the basis that it promotes debate.

…

[120] In my view, s. 14 of the *Code* provides an appropriate means by which to protect almost the entirety of political discourse as a vital part of freedom of expression. It extricates only an extreme and marginal type of expression which contributes little to the values underlying freedom of expression and whose restriction is therefore easier to justify: see *Keegstra*, at p. 761; *Rocket v. Royal College of Dental Surgeons of Ontario*, 1990 CanLII 121 (SCC), [1990] 2 SCR 232, at p. 247. This suggests that, at least in this respect, the provision is not overbroad in its application.

(iii) Intent, Proof, and Defences

[125] Critics of s. 14(1)(b) of the *Code* claim that it is also overbroad because (i) it does not require intent by the publisher; (ii) it does not require proof of harm; and (iii) it does not provide for any defences.

1. *Intent*

[126] In *Taylor*, Dickson C.J. justified the lack of a legislative requirement to prove intent by emphasizing that systemic discrimination is more widespread than intentional discrimination and that the focus of the legislation should be on effects and not intent (pp. 931-32):

> The preoccupation with effects, and not with intent, is readily explicable when one considers that systemic discrimination is much more widespread in our society than is intentional discrimination. To import a subjective intent requirement into human rights provisions, rather than allowing tribunals to focus solely upon effects, would thus defeat one of the primary goals of anti-discrimination statutes. At the same time, however, it cannot be denied that to ignore intent in determining whether a discriminatory practice has taken place according to s. 13(1)

> increases the degree of restriction upon the constitutionally protected freedom of expression. This result flows from the realization that an individual open to condemnation and censure because his or her words may have an unintended effect will be more likely to exercise caution via self-censorship. [Emphasis in original.]

[127] The preventive measures found in human rights legislation reasonably centre on effects, rather than intent. I see no reason to depart from this approach.

2. *Proof of Harm*

[128] I have already addressed the notion of harm in the context of whether the objective of s. 14(1)(b) is pressing and substantial.

[129] In answer to the specific criticism that a prohibition against hate speech lacked a requirement to prove actual harm, Dickson C.J. argued in *Keegstra* (at p. 776) that both the difficulty of establishing a causal link between an expressive statement and the resulting hatred, and the seriousness of the harm to which vulnerable groups are exposed by hate speech, justifies the imposition of preventive measures that do not require proof of actual harm.

[130] Critics argue that the deference to the legislature shown by this Court in *Keegstra*, *Taylor*, *Butler* and *Sharpe* is an abdication of its duty to require that limitations on *Charter* rights be "demonstrably justified" under the s. 1 analysis: Sumner, at pp. 83 and 202-3. The Court's "deferential approach under section 1 to state restrictions on expression", has been said to erode the constitutional protection for freedom of expression: Moon (2000), at p. 37. The basic nature of the criticism is that it is an unacceptable impairment of freedom of expression to allow its restriction to be justified by the mere likelihood or risk of harm, rather than a clear causal link between hate speech and harmful or discriminatory acts against the vulnerable group.

[131] Such an approach, however, ignores the particularly insidious nature of hate speech. The end goal of hate speech is to shift the environment from one where harm against vulnerable groups is not tolerated to one where hate speech has created a place where this is either accepted or a blind eye is turned.

[132] This Court has addressed such criticism in a number of situations involving the applicability of s. 1 and has adopted a "reasonable apprehension of harm" approach. This approach recognizes that a precise causal link for certain societal harms ought not to be required. A court is entitled to use common sense and experience in recognizing that certain activities, hate speech among them, inflict societal harms.

[133] In *Thomson Newspapers Co.*, this Court recognized that a reasonable apprehension of harm test should be applied in cases where "it has been suggested, though not proven, that the very nature of the expression in question undermines the position of groups or individuals as equal participants in society" (para. 115). Such an approach is warranted "when it is difficult or impossible to establish scientifically the type of harm in question" (para. 115). As the Court reasoned, at para. 116:

> While courts should not use common sense as a cover for unfounded or controversial assumptions, it may be appropriately employed in judicial reasoning where the possibility of harm is within the everyday knowledge and experience of Canadians, or where factual determination and value judgments overlap. Canadians presume that expressions which degrade individuals based on their gender, ethnicity, or other personal factors may lead to harm being visited upon them because this is within most people's everyday experience. . .. Common sense reflects common understandings. In these cases dealing with pornography and hate speech, common understandings were accepted by the Court because they are widely accepted by Canadians as facts, and because they are integrally related to our values, which are the bedrock of any s. 1 justification. As a result, the Court did not demand a scientific demonstration or the submission of definitive social science evidence to establish that the line drawn by Parliament was perfectly drawn.

[134] In *Irwin Toy*, this Court noted that the government was "afforded a margin of appreciation to form legitimate objectives based on somewhat inconclusive social science evidence" (p. 990) …Again in *Sharpe*, McLachlin C.J., writing for the majority, applied the reasonable apprehension of harm test and stated, at para. 89:

> The lack of unanimity in scientific opinion is not fatal. Complex human behaviour may not lend itself to precise scientific demonstration, and the courts cannot hold Parliament to a higher standard of proof than the subject matter admits of.

[135] As was clear from *Taylor*, and reaffirmed through the evidence submitted by interveners in this appeal, the discriminatory effects of hate speech are part of the everyday knowledge and experience of Canadians. I am of the opinion that the Saskatchewan legislature is entitled to a reasonable apprehension of societal harm as a result of hate speech.

3. *Lack of Defences*

[136] In the context of civil liability for contravening a limitation on a certain type of expression such as defamation, the types of defences that are generally raised relate to the truth of the factual statements made. The legislature of Saskatchewan has not provided a defence of truth or any other defence as a basis upon which to avoid being found in contravention of s. 14(1)(b) of the *Code* (other than that private communications are not included in the prohibition).

[137] The majority in *Taylor* held that the lack of defences was not fatal to finding s. 13(1) of the *CHRA* constitutional. Dickson C.J. was of the view that the *Charter* did not mandate an exception for truthful statements in the context of human rights legislation (p. 935).
…

[139] Critics find the absence of a defence of truth of particular concern, given that seeking truth is one of the strongest justifications for freedom of expression. They argue that the right to speak the truth should not be lightly restricted, and that any restriction should be seen as a serious infringement.

[140] I agree with the argument that the quest for truth is an essential component of the "marketplace of ideas" which is, itself, central to a strong democracy. The search for truth is also an important part of self-fulfillment. However, I do not think it is inconsistent with these views to find that not all truthful statements must be free from restriction. Truthful statements can be interlaced with harmful ones or otherwise presented in a manner that would meet the definition of hate speech.

[141] As Dickson C.J. stated in *Keegstra*, at p. 763, there is "very little chance that statements intended to promote hatred against an identifiable group are true, or that their vision of society will lead to a better world". To the extent that truthful statements are used in a manner or context that exposes a vulnerable group to hatred, their use risks the same potential harmful effects on the vulnerable groups that false statements can provoke. The vulnerable group is no less worthy of protection because the publisher has succeeded in turning true statements into a hateful message. In not providing for a defence of truth, the legislature has said that even truthful statements may be expressed in language or context that exposes a vulnerable group to hatred.

…

(iv) Conclusion on Minimal Impairment

[145] The prohibition against hate speech involves balancing between freedom of expression and equality rights. People are free to debate or speak out against the rights or characteristics of vulnerable groups, but not in a manner which is objectively seen to expose them to hatred and its harmful effects. The only expression that should be suppressed by the prohibition is that which Dickson C.J. recognized in *Keegstra* as straying "some distance from the spirit of s. 2(*b*) [of the *Charter*]" (p. 766).

[146] In my view, s. 14(1)(b) of the *Code* meets the minimal impairment requirement. The prohibition, interpreted and applied in the manner set out in these reasons, is one of the reasonable alternatives that could have been selected by the legislature. It impairs freedom of expression "no more than reasonably necessary, having regard to the practical difficulties and conflicting tensions that must be taken into account": *Sharpe*, at para. 96, *per* McLachlin C.J. (emphasis in original).

5.4 Safety Valves

Blanket prohibitions have difficulty meeting the minimal impairment stage of the s. 1 analysis. On the question of deference to the judgment of the legislature, the Supreme Court has suggested that where the legislation provides "safety valves", that is legislative provisions that provide exceptions from blanket prohibitions, then more deference is warranted, and specifically with respect to the s. 1 analysis on minimal impairment.

See *Canadian Council for Refugees v. Canada (Citizenship and Immigration),* 2023 SCC 17, a case that considered the constitutionality of the *Immigration and Refugee Protection Act* (IRPA) and its regulations, which give effect to the *Safe Third Country Agreement*, a bilateral treaty signed by Canada and the United States that pursues shared responsibility of refugee status claims. In the case, the Supreme Court considered the relevance of 'safety valves' drafted into legislation on a section 1 analysis.

D. *Section 1*

[165] Given that the legislative scheme does not violate s. 7, it is not necessary to undertake a s. 1 analysis. However, for the sake of completeness, I provide some brief comments on s. 1 justification for circumstances in which it would be required. In doing so, I highlight the distinct relevance of safety valves in a s. 1 analysis where the burden of justification is on the state.

[166] The appellants argue that while legislative safety valves did not ensure that the legislation accords with the principles of fundamental justice under s. 7, such avenues for discretionary relief may remain relevant in addressing s. 1. However, they submit that the respondents did not file any evidence in support of a s. 1 justification, and they rely on the Federal Court judge's statement that safeguards are "illusory".

[167] The respondents argue that had a s. 7 breach been made out, it would be justified under s. 1, in part because of related provisions in the legislative scheme. They say that the whole of the law serves to advance the pressing and substantial objective of sharing responsibility for refugee status determinations with the United States. Further, they submit that the scheme is minimally impairing of claimants' s. 7 rights and point to the continuous monitoring of the regime under s. 102(3) of the *IRPA* and to the *IRPA*'s safety valves.

[168] Both parties rightly acknowledge that safety valves are relevant at the s. 1 stage, as this Court accepted in *Carter* (paras. 114-21). However, the role these mechanisms play at the s. 1 stage differs from their role at the s. 7 stage as does, of course, the burden that the state bears. This is because s. 7 and s. 1 "ask different questions" insofar as "justification on the basis of an overarching public goal is at the heart of s. 1, but it plays no part in the s. 7 analysis, which is concerned with the narrower question of whether the impugned law infringes individual rights" (*Bedford*, at para. 125). Given this distinction, "a different set of considerations comes into play under section 1: not just the effect of the law on (at least) one person's section 7 interests, but the effect of the section 7 violation in achieving the law's policy objectives" (H. Stewart, "*Bedford* and the Structure of Section 7" (2015), 60 *McGill L.J.*575, at p. 589). When safety valves are at issue, the considerations in play under s. 7 and s. 1 remain distinct.

[169] While discretionary exemption mechanisms are relevant to determining whether impugned legislation breaches individual rights protected by s. 7, they may not be adequate to ensure that no deprivations contrary to the principles of fundamental justice occur. In other words, they may not succeed in curing all deprivations of individuals' s. 7 interests. For instance, the scope of a safety valve may simply not be wide enough to exempt all individuals inappropriately caught by the general rule.

[170] As is the case throughout the s. 7 analysis, claimants bear the burden to show that legislative safety valves do not remedy individual deprivations. To do so, they may, for example, advance arguments and lead evidence demonstrating that a legislative regime itself causes a statute's curative mechanisms to be practically unavailable. However, at the s. 1 stage, the government bears the burden to show that the safety valves — as a whole — are sufficient to justify any established s. 7 breaches under the test from *R. v. Oakes*, 1986 CanLII 46 (SCC), [1986] 1 SCR 103. This Court has left open the "possibility that the government could establish that a s. 7 violation is justified" (*Bedford*, at para. 129).

[171] At the s. 1 stage, the government may argue — as Canada did here — that a scheme's safety valves, if they proved to be imperfect under s. 7, nonetheless render the legislation minimally impairing. Further, the government might seek to rely on safety valves in the final balancing stage of *Oakes*. Nonetheless, given that a s. 7 violation was not established in this case, it is unnecessary to comment on what the outcome of any part of the s. 1 analysis might have been here.

6 Discussion questions

1. One consequence of the two stages of Charter analysis is that rights and freedoms are generally opposed to each other and to other interests. This opposition is sometimes framed as one between the individual and a free and democratic society. Can you imagine a different way of conceiving of rights and their limits?

   See Grégoire Webber, "What *Oakes* could have said (or how else to read a limitations clause" (2023) 112 Supreme Court Law Review (2d) 61 and, more generally, Grégoire Webber, *The Negotiable Constitution: On the Limitation of Rights* (Cambridge: Cambridge University Press, 2009), ch. 4.

2. Although the wording of the limitation clause in section 1 of the Charter extends to all rights and freedoms, it plays a greater role in relation to some rights (e.g. s. 2(b)) and a lesser role in relation to some other rights (e.g. s. 8).

Could this suggest that, contrary to the assumption in *R v Oakes* and since that there should be but one test for all limitations, there should be different tests for different rights? See Richard Moon, "Justified Limits on Free Expression: The Collapse of the General Approach to Limits on Charter Rights" (2002) 30 *Osgoode Hall Law Journal* 337.

3. On this same theme, consider the relationship between the section 1 analysis and the section 7 analysis. Do some of the principles of fundamental justice resemble the stages under the *Oakes* test? Which principle of fundamental justice does not align with a branch of the *Oakes* test?
4. How might legislation be drafted to better succeed under the minimal impairment stage of the *Oakes* analysis. Relatedly, why might the overall balancing stage of the *Oakes* analysis take on greater significance over time?
5. What considerations have the Supreme Court found to be relevant to questions of judicial deference to legislative judgement under the *Oakes* analysis?

7 Further Readings

- Webber, Grégoire. "What *Oakes* could have said (or how else to read a limitations clause" (2023) 112 Supreme Court Law Review (2d) 61.
- Webber, Grégoire. *The Negotiable Constitution: On the Limitation of Rights* (Cambridge: Cambridge University Press, 2009), ch. 4.
- Moon, Richard. "Justified Limits on Free Expression: The Collapse of the General Approach to Limits on Charter Rights" (2002) 30 *Osgoode Hall Law Journal* 337.
- Atrey, Shreya. "Feminist Constitutionalism: Mapping a Discourse in Contestation." International Journal of Constitutional Law 20, no. 2 (November 2022): 611–641. https://doi.org/10.1093/icon/moac029.
- Barak, Aharon. Proportionality: Constitutional Rights and Their Limitations. 1st ed. (Cambridge University Press, 2012). https://doi.org/10.1017/CBO9781139035293.
- Dixon, Rosalind. "Proportionality & Comparative Constitutional Law versus Studies." The Law & Ethics of Human Rights 12, no. 2 (November 2018): 203–224. https://doi.org/10.1515/lehr-2018-0012.
- Grimm, Dieter. "Proportionality in Canadian and German Constitutional Jurisprudence." University of Toronto Law Journal 57, no. 2 (March 2007): 383–397. https://doi.org/10.1353/tlj.2007.0014.
- Jackson, Vicki C. "Constitutional Law in an Age of Proportionality." The Yale Law Journal 124, no. 8 (2015): 3094–3196.
- Mathen, Carissima. "Rational Connections: 'Oakes', Section 1 and the Charter's Legal Rights." Ottawa Law Review 43, no. 3 (2012): 491–509.
- Tsakyrakis, Stavros "Proportionality: An Assault on Human Rights?" International Journal of Constitutional Law 7, no. 3 (July 2009): 468–493. https://doi.org/10.1093/icon/mop011.
- Urbina, Francisco. A Critique of Proportionality and Balancing. 1st ed. (Cambridge University Press, 2017). https://doi.org/10.1017/9781316796276.
- Waldron, Jeremy. "The Core of the Case against Judicial Review." The Yale Law Journal 115, no. 6 (April 2006): 1346. https://doi.org/10.2307/20455656.

Chapter 17: Section 33: The Notwithstanding Clause

By Dwight Newman and Geoffrey Sigalet

1 Introduction

The "notwithstanding clause", or section 33 of the *Charter of Rights and Freedoms*, is one of the more interesting and controversial parts of the *Charter*. It has drawn intense political and scholarly debate, and the attention of many comparative constitutionalists and political scientists, and this attention has increased in recent years.

Although the 1982 patriation of the Constitution entrenched the *Charter* as part of Canada's supreme law, section 33 of the *Charter* was meant to ensure that legislatures could contest judicial interpretations of the newly entrenched rights. The full text of section 33 reads as follows:

(1) Parliament or the legislature of a province may expressly declare in an Act of Parliament or of the legislature, as the case may be, that the Act or a provision thereof shall operate notwithstanding a provision included in section 2 or sections 7 to 15 of this Charter.	(1) Le Parlement ou la législature d'une province peut adopter une loi où il est expressément déclaré que celle-ci ou une de ses dispositions a effet indépendamment d'une disposition donnée de l'article 2 ou des articles 7 à 15 de la présente charte.
(2) An Act or a provision of an Act in respect of which a declaration made under this section is in effect shall have such operation as it would have but for the provision of this Charter referred to in the declaration.	(2) La loi ou la disposition qui fait l'objet d'une déclaration conforme au présent article et en vigueur a l'effet qu'elle aurait sauf la disposition en cause de la charte.
(3) A declaration made under subsection (1) shall cease to have effect five years after it comes into	(3) La déclaration visée au paragraphe (1) cesse d'avoir effet à la date qui y est précisée ou, au plus

force or on such earlier date as may be specified in the declaration.	tard, cinq ans après son entrée en vigueur.
(4) Parliament or the legislature of a province may re-enact a declaration made under subsection (1).	(4) Le Parlement ou une législature peut adopter de nouveau une déclaration visée au paragraphe (1).
(5) Subsection (3) applies in respect of a re-enactment made under subsection (4).	(5) Le paragraphe (3) s'applique à toute déclaration adoptée sous le régime du paragraphe (4).

The notwithstanding clause allows the provincial or federal legislatures to enact laws "notwithstanding" certain provisions of the *Charter* for up to 5 years (probably not coincidentally, the maximum period of an elected parliament or legislature), with unlimited renewals. The clause has sometimes been called an "override" clause, and some have more recently taken to calling it "the parliamentary sovereignty clause". To avoid the connotations of either, we are calling it simply the notwithstanding clause or section 33.

Section 33 does not apply to democratic rights (sections 3 through 5, which are the main check on it), or mobility rights (section 6, which are the means by which an individual could choose to become part of a different political community). They also do not apply to minority language rights (sections 16 through 23), which were considered a non-negotiable part of the nation-building project embedded in the *Constitution Act, 1982*.

Perhaps the most striking, and telling, fact about the notwithstanding clause is that it has never been used by the federal (central) Parliament, but it has been used by provincial legislatures (of different partisan stripes) at least 23 times (with 49 renewals).

There have been different periods when the provinces have used the notwithstanding clause. The initial period began immediately after the *Charter*'s enactment in 1982: Quebec's separatist *Parti Quebecois* government did not consent to (and continued to litigate the validity of) the newly patriated constitution, including the *Charter*, and so to protest and protect against the ability of federal judges to strike down Quebec laws using the *Charter* the National Assembly re-enacted all of Quebec's laws to include invocations of section 33 (invoking the clause in relation to all the sections of the *Charter* it can apply to). This first "omnibus" use of the *Charter* later became the subject of the key case for interpreting the notwithstanding clause, *Ford v Quebec*, which we will discuss in Part 3 below. Between 1982 and 1988, Quebec used the clause a number of times after its omnibus invocation, including the Liberal government of Premier Robert Bourassa's invocation of section 33 in response to *Ford*. Uses of the clause outside of Quebec were rarer during this time, with one invocation by the Yukon and one by Saskatchewan.

Between 1988 and 2017 the notwithstanding clause was included in four new statutes in Quebec (alongside renewals) and only once by Alberta in the 2000 *Marriage Amendment Law*. Although the clause was not actively used much outside of Quebec during this period, it continued to be discussed in *Charter* jurisprudence.

In 2018 Saskatchewan invoked the clause in response to a trial court decision *Good Spirit School Division No.204 v. Christ the Teacher Roman Catholic Separate School Division* and inaugurated a new phase where provinces, including Quebec and Ontario, appear more willing to use the clause to curtail perceived judicial activism. The clause has been enacted in six new laws since 2018, and we discuss the jurisprudence of this new phase of invocations in Part 4 below.

This chapter concludes in Part 5 with a discussion of Quebec's Bill 21 secularism law, which invoked the notwithstanding clause and has been challenged in the case of *English Montreal School Board et al. v Attorney General of Quebec* [previously *Hak et al. v Attorney General of Quebec*]. We use this case to discuss the future of the notwithstanding clause and some of the novel theories that have been developed by those resistant to the ability it gives provinces to resist judicial power.

1.1 Notes and Questions

1. In this chapter, you will read more about some of the specific provincial uses. At a general level, why do you think that provinces have used the notwithstanding clause more than the federal government has? (For further reading on this question, see Geoffrey Sigalet & Dave Snow, "Notwithstanding Centralism: The Resurgence of the Notwithstanding Clause and the Conservative Provincial Rights Movement" (2025) Canadian Journal of Political Science (forthcoming).)
2. Comparative constitutionalists have been interested in, and relatively favourable toward, Canada's notwithstanding clause as a distinctive way of striking a balance between American-style judicial rights review and parliamentary traditions seeing legislative specification of rights. As you read the chapter, consider what you think other countries can learn from Canada.
3. The notwithstanding clause has drawn enormous attention in recent years. For an important recent collection surveying a variety of dimensions and perspectives, see Peter L Biro, ed, *The Notwithstanding Clause and the Canadian Charter: Rights, Reforms, and Controversies* (Montreal: McGill-Queen's University Press, 2024).

2 The Historical Purpose of Section 33

The basic purpose of the notwithstanding clause was to allow legislatures to contest judicial interpretations of the rights entrenched in the *Charter*, and to legislatively protect rights not entrenched in the constitution. As the section's drafting history reveals, this purpose was also supported by the principle of federalism. Alberta's Premier Peter Lougheed and Saskatchewan's Alan Blakeney, who had insisted on the notwithstanding clause as a condition of agreeing to the *Charter,* were concerned that federal control over appellate judicial appointments would turn the *Charter* into a centralizing threat to provincial jurisdiction.

Section 33 of the *Charter* did not appear out of thin air. It had antecedents in section 2 of the 1960 Canadian Bill of Rights and in similar provisions in several provincial bills of rights, with Alberta's being one example:

> ***Canadian Bill of Rights*** **(S.C. 1960, c. 44)**
>
> 2 Every law of Canada shall, unless it is expressly declared by an Act of the Parliament of Canada that it shall operate notwithstanding the *Canadian Bill of Rights*, be so construed and applied as not to abrogate, abridge or infringe or to authorize the abrogation, abridgment or infringement of any of the rights or freedoms herein recognized and declared, and in particular, no law of Canada shall be construed or applied so as to […]
>
> ***Alberta Bill of Rights*****, SA 1972, c 1**

> 2. Every law of Alberta shall, unless it is expressly declared by an Act of the Legislature that it operates notwithstanding The Alberta Bill of Rights, be so construed and applied as not to abrogate, abridge or infringe or to authorize the abrogation, abridgment or infringement of any of the rights or freedoms herein recognized and declared.

During the negotiations that led to the patriation of the Canadian Constitution in 1982, the majority of the provinces opposed the *Charter* and would have preferred to patriate a constitution with an amendment formula but no constitutional bill of rights (Ontario and New Brunswick did not object to Trudeau's proposed *Charter*). The entrenchment of a *Charter* was a key priority for then Liberal Prime Minister Pierre Trudeau, and his strong preference was for a *Charter* without a limitations clause (what would become section 1) or a notwithstanding clause. The version of the *Charter* that was initially sent to the Joint Committee of the House of Commons and Senate included a limitations clause that provided for reasonable limits on rights in a "society with a parliamentary system of government." The words "parliamentary system of government" were meant to reassure the provinces that their legislatures would be able to set limits on entrenched rights. Pressure from different interest groups resulted in then Minister of Justice Jean Chretien removing the phrase "parliamentary systems of government" from what would become section 1.

Following this change in the language of section 1, several provinces were concerned that the limitations provision would not adequately recognize the role of provincial government in determining the reasonable balance between competing rights or interests. As a consequence, provincial resistance to the *Charter* grew. In April 1981 some provinces proposed a patriation plan with an amending formula but no *Charter.*

The idea of a notwithstanding clause had been discussed in the earlier 1979 round of constitutional negotiations. However, after the *Patriation Reference*, several provinces conditioned their agreement to the entrenchment of a Charter on the inclusion of such a clause. Amongst the provinces taking that view, Alberta's Premier Peter Lougheed and Saskatchewan's Alan Blakeney were key figures in advancing this approach; pushing for the notwithstanding clause but also convincing other *Charter* skeptical premiers, such as Manitoba's Sterling Lyon, to agree to a *Charter* with such a clause. In the final negotiations Trudeau insisted on the five-year expiration that became section 33(3).

2.1 Note

Lougheed and Blakeney would both later elaborate on their philosophical and practical reasons for insisting on a notwithstanding clause. Their reasons overlap but differ in emphasis. Lougheed focused more on the possibility of courts misinterpreting rights and engaging in judicial activism. He understood the notwithstanding clause as a tool for overriding such activist decisions and curbing courts in a more constitutionally democratic fashion than by threatening "court packing" or other direct institutional threats to judicial independence. Blakeney agreed with Lougheed on that purpose but also added a social democratic concern with the likelihood that courts would ignore non-entrenched positive rights, such as the right to housing, in favour of entrenched negative rights in ways that may need to be democratically contested by legislatures. See: Hon. Peter Lougheed, "Why a Notwithstanding Clause?", Centre for Constitutional Studies Points of View, No. 6 (Edmonton: Centre for Constitutional Studies, 1998), publishing the Marv Leitch Q.C. Lecture, delivered at the University of Calgary, 20 November 1991; Hon. Allan E. Blakeney, "The Notwithstanding Clause, the Charter, and Canada's Patriated Constitution: What I Thought We Were Doing" (2010) 19 Const. Forum 1.

Blakeney and Lougheed's support for the notwithstanding clause also rested on a concern about the federal power to appoint superior court judges and the possibility that the *Charter* would become an instrument of centralization. By contrast, Jean Chretien, who was federal Minister of Justice during the negotiations repeatedly emphasized that he saw the purpose of the clause as a "safety valve" for dealing with emergency situations that call for exceptional uses of legislative power. The precise expectations around the use of the clause may have differed between its proponents and those who more grudgingly agreed to its inclusion, setting the stage for some of the later controversies.

3 Early Uses of the Notwithstanding Clause and the *Ford* case

Saskatchewan and Yukon both made use of section 33 in the early days of the *Charter.* In both cases the section was used prior to any judicial review of the law, shielding the law from court decisions that were potentially quite unpredictable in those early days of the *Charter*. However, it was Quebec's omnibus use of the notwithstanding clause that led to a major Supreme Court of Canada decision on section 33, *Ford v Quebec (Attorney General)*, 1988 CanLII 19 (SCC), [1988] 2 SCR 712, 54 DLR (4th) 577.

The province's blanket use of s. 33 was a response to the November 1981 exclusion of Quebec's premier from the final agreement that led to the patriation of the Constitution and the adoption of the *Constitution Act, 1982,* including the *Charter of Rights*. That event, which is referred to by some in Quebec as 'the Night of the Long Knives', has cast a long shadow over Canadian constitutionalism, and, as discussed elsewhere in these materials, has played a significant role in subsequent attempts to amend the constitution.

While Quebec sought to use section 33 to shield all of its legislation from review under the Canadian *Charter,* it insisted that the affected rights would instead be protected under the province's *Quebec Charter of Rights and Freedoms*, which, although different from the Canadian Charter, gave protection to the rights covered by s.33.

In late June, 1982, the province repealed and re-enacted all of its pre-*Charter* laws, inserting into each a standard clause that declared that the law would apply notwithstanding sections 2 and 7-15 of the Charter. The province also included this clause in all new legislation. This practice continued until a change of government in 1985. The clause purported to apply not just prospectively, from the time of its inclusion in the various provincial laws, but also retrospectively, so that it would insulate from judicial review any breaches of the Charter that occurred after the introduction of the Charter in April 1982.

3.1 *Ford v Quebec (Attorney General)*, 1988 CanLII 19 (SCC), [1988] 2 SCR 712, 54 DLR (4th) 577

> [This case arose in the context of a challenge to sections of the *Quebec Charter of the French Language*, RSQ, c C-11 that mandated the use of only French signage on commercial establishments and prohibited the use of other languages. Many issues were discussed in the case, but the extract here focuses on the issue of whether Quebec's blanket use of section 33 was legal.]
>
> THE COURT (Dickson C.J. and Beetz, Estey, McIntyre, Lamer, Wilson and Le Dain JJ., but with Estey and Le Dain JJ. taking no part in the judgment)
>
> It was contended that the words "a provision included in section 2 or sections 7 to 15 of this Charter" in s. 33(1) and the words "but for the provision of this Charter referred to in the declaration" in s. 33(2) indicate that in order to be valid, a declaration pursuant to s. 33 must specify the particular provision within a section of the *Charter* which Parliament or the legislature of a province intends to override. That is, the specific guaranteed right or freedom to be overridden must be referred to in the words of the *Charter* and not merely by the number of the section or paragraph in which it appears. The rationale underlying this contention is that the nature of the guaranteed right or freedom must be sufficiently drawn to the attention of the members of the legislature and of the public so that the relative seriousness of what is proposed may be perceived and reacted to through the democratic process. As the Attorney General for Ontario, who argued against the constitutionality of the standard override provision, put it, there must be a "political cost" for overriding a guaranteed right or freedom. […]

> In the course of argument different views were expressed as to the constitutional perspective from which the meaning and application of s. 33 of the *Canadian Charter of Rights and Freedoms* should be approached: the one suggesting that it reflects the continuing importance of legislative supremacy, the other suggesting the seriousness of a legislative decision to override guaranteed rights and freedoms and the importance that such a decision be taken only as a result of a fully informed democratic process. These two perspectives are not, however, particularly relevant or helpful in construing the requirements of s. 33. Section 33 lays down requirements of form only, and there is no warrant for importing into it grounds for substantive review of the legislative policy in exercising the override authority in a particular case. The requirement of an apparent link or relationship between the overriding Act and the guaranteed rights or freedoms to be overridden seems to be a substantive ground of review. It appears to require that the legislature identify the provisions of the Act in question which might otherwise infringe specified guaranteed rights or freedoms. That would seem to require a *prima facie* justification of the decision to exercise the override authority rather than merely a certain formal expression of it. There is, however, no warrant in the terms of s. 33 for such a requirement. A legislature may not be in a position to judge with any degree of certainty what provisions of the *Canadian Charter of Rights and Freedoms* might be successfully invoked against various aspects of the Act in question. For this reason it must be permitted in a particular case to override more than one provision of the *Charter* and indeed all of the provisions which it is permitted to override by the terms of s. 33. The standard override provision in issue in this appeal is, therefore, a valid exercise of the authority conferred by s. 33 in so far as it purports to override all of the provisions in s. 2 and ss. 7 to 15 of the *Charter*. The essential requirement of form laid down by s. 33 is that the override declaration must be an express declaration that an Act or a provision of an Act shall operate notwithstanding a provision included in s. 2 or ss. 7 to 15 of the *Charter*. With great respect for the contrary view, this Court is of the opinion that a s. 33 declaration is sufficiently express if it refers to the number of the section, subsection or paragraph of the *Charter* which contains the provision or provisions to be overridden. Of course, if it is intended to override only a part of the provision or provisions contained in a section, subsection or paragraph then there would have to be a sufficient reference in words to the part to be overridden. In so far as requirements of the democratic process are relevant, this is the form of reference used in legislative drafting with respect to legislative provisions to be amended or repealed. There is no reason why more should be required under s. 33. A reference to the number of the section, subsection or paragraph containing the provisions or provisions to be overridden is a sufficient indication to those concerned of the relative seriousness of what is proposed. It cannot have been intended by the word "expressly" that a legislature should be required to encumber a s. 33 declaration by stating the provision or provisions to be overridden in the words of the *Charter*, which, in the case of the standard override provision in issue in the appeal, would be a very long recital indeed. […]
>
> Given the conclusion that the enactment of the standard override provision in the form indicated above is a valid exercise of the authority conferred by s. 33 of the *Canadian Charter of Rights and Freedoms*, this Court is of the opinion that the validity of its enactment is not affected by the fact that it was introduced into all Quebec statutes enacted prior to a certain date by a single enactment. That was an effective exercise of legislative authority that did not prevent the override declaration so enacted in each statute from being an express declaration within the meaning of s. 33 of the Canadian *Charter*. Counsel referred to this form of enactment as reflecting an impermissibly "routine" exercise of the override authority or even a "perversion" of it. It was even suggested that it amounted to an attempted amendment of the *Charter*. These are once again essentially submissions concerning permissible legislative policy in the exercise of the override authority rather than what constitutes a sufficiently express declaration of override. As has been stated, there is no warrant in s. 33 for such considerations as a basis of judicial review of a particular exercise of the authority conferred by s. 33. The Court is of a different view, however, concerning the retrospective effect given to the standard override provision […]
>
> In this case, s. 33(1) admits of two interpretations; one that allows Parliament or a legislature to enact retroactive override provisions, the other that permits prospective derogation only. We conclude that the latter and narrower interpretation is the proper one, and that s. 7 cannot give retrospective effect to the override provision. […]
>
> *Appeal dismissed*

3.2 Notes and Questions

1. The Court in *Ford* assumed that a government could invoke the notwithstanding clause in advance of a judicial decision about the constitutionality of a law. This was implicit in the Court's decision to uphold the omnibus use of s. 33 and its observation that "[a] legislature may not be in a position to judge with any degree of certainty what provisions of the *Canadian Charter of Rights and Freedoms* might be successfully invoked against various aspects of the Act in question." Some commentators have recently argued against "preemptive use" of the clause. What do you think lies behind these arguments? (We will return to this topic later in the chapter.)
2. Debate over Quebec's sign law continued for several years after the *Ford* decision. In December 1988, the Liberal government of Robert Bourassa (which had been elected in 1985 just before the *Ford* case) enacted a law that reinforced the requirement of French on commercial signage, and included in the law an invocation of s. 33. The law was opposed by many Quebec anglophones and "allophones", and in May 1993 there was a decision from the United Nations Human Rights Committee that the sign law was inconsistent with the International Covenant on Civil and Political Rights. The Bourrassa government decided not to renew its use of section 33 and instead amended the sign law so that it required only French-language predominance but did not preclude the use of other languages.
3. When s. 33 was added to the Charter it was assumed by some political actors and scholars that it would rarely be invoked and that any use of the section would be carefully scrutinized by voters and might carry a significant political cost. Until recently that was generally true. Some scholars from outside Canada saw the value of s.33 and wondered about its limited use by governments. (see for example Stephen Gardbaum, *The New Commonwealth Model of Constitutionalism: Theory and Practice* (Cambridge: Cambridge University Press, 2013, and Aileen Kavanagh, *The Collaborative Constitution* (Cambridge: Cambridge University Press, 2024 (which includes a chapter entitled the "Underuse of the Override"). Some scholars in the mid-2010s even began writing of the potential "desuetude" of the notwithstanding clause. But that was soon to change.

4 Emerging Uses of The Notwithstanding Clause: From *Good Spirit Lake* (2017) To *City of Toronto* (2021)

On April 20, 2017, a Saskatchewan Court of Queen's Bench trial judge rendered a decision on religious freedom and school funding, ruling that it was illegal for the province to provide funding in support of non-Catholics attending Catholic denominational schools. Government lawyers also worried that the decision had implications for the partial government funding for students attending other faith-based schools. On May 1, 2017, Saskatchewan Premier Brad Wall announced that the government would use the notwithstanding clause to ensure the stability of the system, even though the judgment could be and was appealed to the Court of Appeal: "[w]e wanted to announce this now to provide clarity and provide parents with the assurance that they will be able to continue to choose the kind of school they want their children to attend."

Introducing the bill that would ultimately become the *School Choice Protection Act*, SS 2018, c 39, Saskatchewan's Minister of Education explained the use of section 33 as follows:

> Invoking the notwithstanding clause will ensure the government can continue to fund public and separate school divisions based on the current funding model which takes into account how many students are in the division but does not discriminate based on religious affiliation. School divisions will continue to be responsible for determining their own attendance and admittance policies.
>
> Both the Government of Saskatchewan and Christ the Teacher Roman Catholic Separate School Division have filed appeals on this ruling. It is anticipated the appeal could take between 6 to 18 months. Any decision would likely be delivered well after the June 30, 2018 date that the court decision is set to come into force. Having to wait for a decision on the appeal could leave parents and students with a great deal of uncertainty about the future, not knowing if they would continue to be funded to attend a separate school.
>
> It is important to invoke the notwithstanding clause now in order to provide certainty to parents and to students so that they can be assured that they will continue to be funded to attend their school without having to wait for the outcome of an appeal. Introducing the bill now will allow for Royal Assent in the spring, prior to the June 30, 2018 coming into force date of the court decision. […] (Saskatchewan *Hansard*, November 15, 2017, 2927-2928).

The legislation was passed unanimously. But the *Act* was never proclaimed, because the trial decision was overturned on appeal by the Saskatchewan Court of Appeal, with leave to appeal denied by the Supreme Court of Canada.

After 2018, several Canadian provinces made use of the notwithstanding clause: New Brunswick considered invoking s.33 but in the end did not: Quebec invoked the provision on several occasions, including to insulate from challenge its ban on civil servants wearing religious symbols; and Ontario invoked the provision for the first time in its history, and then on two other occasions.

In 2018, Ontario used the clause after a trial decision that would have prevented the province from redefining the size and shape of municipal constituencies in the City of Toronto during the municipal election campaign. The trial decision was ultimately overturned by the Ontario Court of Appeal, and the Supreme Court of Canada agreed with Ontario in 2021. The Supreme Court of Canada, in the course of its discussion of unwritten constitutional principles, commented on the notwithstanding clause, highlighting its role in enabling parliaments and legislatures to engage in the interpretation of rights. Two paragraphs from that majority decision are, for now, the Supreme Court of Canada's most recent comment on section 33.

4.1 *Toronto (City) v. Ontario (Attorney General)*, 2021 SCC 34, [2021] 2 SCR 845

Joint Reasons for Judgment of Wagner CJ and Brown J (Moldaver, Côté and Rowe JJ concurring)

> [60] We add this. Were a court to rely on unwritten constitutional principles, in whole or in part, to invalidate legislation, the consequences of this judicial error would be of particular significance given two provisions of our *Charter*. First, s. 33 preserves a limited right of legislative override. Where, therefore, a court invalidates legislation using s. 2(b) of the *Charter*, the legislature may give continued effect to *its* understanding of what the Constitution requires by invoking s. 33 and by meeting its stated conditions (D. Newman, "Canada's Notwithstanding Clause, Dialogue, and Constitutional Identities", in G. Sigalet, G. Webber and R. Dixon, eds., *Constitutional Dialogue: Rights, Democracy, Institutions* (2019), 209, at p. 232). Were, however, a court to rely *not* on s. 2(b) but *instead* upon an unwritten constitutional principle to invalidate legislation, this undeniable aspect of the constitutional bargain would effectively be undone, since s. 33 applies to permit legislation to operate "notwithstanding a provision included in section 2 or sections 7 to 15" *only*. Secondly, s. 1 provides a basis for the state to justify limits on "the rights and freedoms set out" in the *Charter*. Unwritten constitutional principles, being *unwritten*, are not "set out" in the *Charter*. To find, therefore, that they can ground a constitutional violation would afford the state no corresponding justificatory mechanism.
>
> [61] Our colleague says that the application of s. 33 "is not directly before us" (para. 182). As the City has advanced its claim on the basis of s. 2(b), coupled with the unwritten principle of democracy, the prospect of circumventing s. 33's application to the invalidation of legislation under s. 2(b) by recourse to unwritten constitutional principles is indeed squarely before us.

4.2 Notes and Questions

1. What do the Saskatchewan 2018 use and Ontario 2018 use illustrate about the idea of waiting for a final judicial decision ahead of using section 33?
2. The Saskatchewan government's use in 2018 was a significant turning point, highlighting a number of factors in the evolving use of section 33 noted in Geoffrey Sigalet & Dave Snow, "Notwithstanding Centralism: The Resurgence of the Notwithstanding Clause and the Conservative Provincial Rights Movement" (2025) Canadian Journal of Political Science (forthcoming).While some legal academics criticized Saskatchewan's 2018 use of section 33, the use also drew support on its specific facts and coincided with developing constitutional theory in support of greater use of section 33. See e.g. Joanna Baron & Geoffrey Sigalet, "Saskatchewan's Brad Wall and the Rehabilitation of the Charter." *Policy Options* (May 19, 2017).; and the chapter by Dwight Newman cited in the *City of Toronto* excerpt above, which came originally from a 2016 conference presentation.
3. In 2022, Ontario passed the *Keeping Students in Class Act, 2022*, SO 2022, c 19, which used the notwithstanding clause to support legislation that terminated a strike. Massive protests led to a reversal of this decision and almost immediate repeal of the legislation. Does this case confirm the claim made at the time s. 33 was introduced that use of the section would be carefully scrutinized by voters?

5 Quebec's Bill 21 and the Future of the Notwithstanding Clause

In 2019 Quebec's National Assembly enacted *An Act respecting the Laicity of the State* (*Loi sur la laïcité de l'État* CQLR c L-0.3) often referred to as Bill 21. This law prohibited certain classes of Quebec's public servants, including members of the National Assembly itself, from wearing religious symbols or covering their faces while performing their public duties (the face covering provisions made exceptions for health, disabilities, or role-specific requirements). The law included a s. 33 declaration that its provisions would apply notwithstanding sections 2 and sections 7-15 of the *Charter*.

There was a likelihood, given the courts' previous religious freedom decisions, that this law would be found to breach the *Charter* in the absence of the s. 33 declaration. In response to this case, and the increased use of s.33, a number of legal academics have proposed different ways in which the scope or effect of s. 33 might be constrained. Many of those arguments depend on reading the *Ford* decision narrowly — see, for example, Grégoire Webber, "The Notwithstanding Clause and the Precedent in *Ford*: le dit et le non-dit" (2024) 32:3 Constitutional Forum 13.

In *Hak et al. v Attorney General of Quebec,* the plaintiffs challenged the constitutionality of Bill 21, on several grounds including the following:

1. The law violates pre-Confederation statutes and unwritten constitutional principles, which include respect for minority rights and democratic governance.
2. The law violates the official language rights of English school boards in Quebec under section 23 of the Charter, which is not subject to section 33.
3. The law discriminates against women because it has the effect of excluding women who wear the hijab from many civil service jobs. While a declaration made under s. 33 can insulate a law from a challenge under s. 15 (the Charter's equality rights provision), s. 28 of the Charter (which is discussed in chapter 15) says that "Notwithstanding anything in this Charter, the rights and freedoms referred to in it are guaranteed equally to male and female persons". The argument then is that s. 28 prohibits sex discrimination "notwithstanding" a s. 33 declaration. In various publications, Kerri Froc has argued that the history of its negotiation shows that s. 28 takes priority over everything in the *Charter*, including s. 1, and her writing is being invoked in support of this argument. For a different view, see e.g. Jesse Hartery, "Equality and the Notwithstanding Clause: Considering the Nature and Application of Section 28 of the Canadian Charter" (2023) 64 *Les cahiers de droit* 683.
4. The law violates the right of citizens under s. 3 of the Charter to seek election in either the federal parliament or the provincial legislature because it prohibits members of the Quebec legislature from wearing religious dress. Section 3 is not covered by s. 33.

The plaintiffs also argued that even if the s. 33 declaration was effective and precluded the courts from striking down Bill 21, the courts nevertheless retained the jurisdiction to consider whether the law breached the Charter (but for s.33), even though it could not provide any remedy if it determined that a breach had occurred. This argument is developed in a variety of articles, having first been put in a joint piece by Grégoire Webber, Eric Mendelsohn, and Robert Leckey: https://policyoptions.irpp.org/magazines/may-2019/faulty-wisdom-notwithstanding-clause/

But, for a contrary view, see also Geoffrey Sigalet "Legislated Rights as Trumps" *Osgoode Hall Law Journal* (2023) 61:1. Sigalet argues that section 33.2 ensures that laws properly invoking section 33 cannot be reviewed for compliance with the sections of the *Charter* because they "shall have such operation as [they] would but for the provision of this *Charter* referred to in the declaration." Sigalet interprets this subjunctive clause to mean the laws operate *as though* the *Charter* provisions they select do not exist to be applied to the law by the courts. This legally allows the *political process* to make judgements about the consistency of laws invoking section 33 with enumerated rights.

In the *Hak* case (as it continues to be popularly referred to - after the name of an original plaintiff at trial), the Quebec Court of Appeal accepted the argument that Bill 21 violated the section 3 democratic right to qualify for membership in the legislature by constraining the religious expression of candidates who could compete for office (para 685). But the Court of Appeal rejected the other arguments and emphasized the importance of the notwithstanding clause.

5.1 Organisation mondiale sikhe du Canada c. Procureur général du Québec, 2024 QCCA 254 (English Translation of the Judgment of the Court)

[The Court followed the Supreme Court of Canada's precedent in *Toronto (City) v Ontario* in rejecting the idea (in response to the litigants' arguments of this type) that unwritten principles could be used to limit section 33:]

> (Joint reasons of Manon Savard C.J.Q, Yves-Marie Morissette J.A., and Marie-France Bich, J.A.)
>
> …
>
> [210] In the present case, the written text of the Constitution (the *Canadian Charter*) guarantees freedom of religion (s. 2(a)) and expressly authorizes Parliament or a legislature to set justifiable limits to that freedom (s. 1) or to derogate therefrom (s. 33). Accepting the Fellowship's submissions would be tantamount to disregarding this text, however clear it may be, and recognizing two separate freedoms of religion within our constitutional order: an unwritten one — which would be guaranteed implicitly by the Constitution, and with respect to which no limitations or exceptions would be permitted —and another — guaranteed expressly by the same Constitution, and which could be subject to certain restrictions or exceptions. In practice, this would mean that the freedom of religion guaranteed explicitly by a written provision of the Constitution would be less extensive or less "protected" than the freedom of religion guaranteed implicitly by the same Constitution. In a sense, the freedom of religion guaranteed implicitly by the Constitution would render the freedom of religion enshrined in the Canadian Charter redundant. This approach would therefore undermine the delimitation of that freedom "chosen by our constitutional framers". This evidently makes no sense. The recognition of unwritten constitutional principles (such as the protection of minorities) cannot be used to "dispense with the written text of the Constitution".

The Court also noted the important historic purpose of section 33 as a federal-provincial compromise.

> [228] A final word on s. 33 of the *Canadian Charter*. It bears reminding that this section is the fruit of a federal-provincial compromise (with the exception of Quebec) in the context of the process that led to the patriation of the Constitution in 1982. As everyone knows, the decision to enshrine a charter of rights and freedoms was the subject of much discussion — and dissent — during the 1980-1981 Conference of First Ministers. For some, the idea that courts could set aside statutes enacted by Parliament or provincial legislatures, insofar as these statutes violated rights and freedoms guaranteed by such a charter, was a source of concern and reluctance. There was a fear that the judiciary would usurp or neutralize the legislative power exercised by an elected assembly, thereby running counter to the principle of parliamentary sovereignty. The proposal to introduce an override power reserved for Parliament and the provincial legislatures was intended as a [translation] "counterweight" […] to the broadened scope of judicial review resulting from the constitutionalization of rights and freedoms.

The Court rejected the idea that the notwithstanding clause was somehow a less legitimate part of Constitutional order than other parts of the *Charter*:

> [364] But while it is true that "all government power must be exercised in accordance with the Constitution", as enshrined in s. 32(1) of the *Canadian Charter* and s. 52(1) of the [*Constitution Act 1982*], and that courts "have the duty" to ensure that this power is exercised "in accordance with the Constitution", this does not entitle courts to ignore the effects of s. 33 of the *Canadian Charter* and carry out a judicial review that this provision does not allow. Indeed, s. 33 *is* a provision of the Constitution, and its use, when made in accordance with the requirements set out in *Ford*, is itself in accordance with the Constitution.

The Court also reaffirmed the pre-emptive use of section 33:

> [356] Of course, s. 33 can be used by the legislature after a court has ruled and pointed out a statute's constitutional flaws, but it can also be used preventively, in which case it cuts short the discussion: the legislature has the last word from the outset.

The Court rejected any attempt to use s. 28 to strike down laws invoking s. 33:

> [451] […] s. 28 has no standalone normative value and does not add a right distinct from those recognized by ss. 2 to 23 of the *Charter*. Instead, it conditions the interpretation — and hence the application — of these provisions. Moreover, to conclude otherwise would be to duplicate s. 15 of the *Charter*, which already enshrines, in various respects, the equality of individuals without distinction based on various grounds, including sex.

The Supreme Court of Canada has granted leave to hear an appeal from the judgment of the Quebec Court of Appeal. The case will be heard under the name of *English Montreal School Board et al. v Attorney General of Quebec*.

5.2 Notes and Questions

1. In *Ontario (Attorney General) v. Working Families Coalition (Canada) Inc.*, 2025 SCC 5, the Court found that even though a provincial law (that restricted third party 'election' spending that occurred prior to the official start of an election campaign) could not be challenged under s.2 (b) of the Charter because the province had successfully invoked s.33, the law was nevertheless unconstitutional because it breached s. 3 of the Charter, which is not covered by s. 33. In the Court's view, s. 3 protected the right to citizens to be informed about political issues. Given the increasing use of s. 33, is it likely that litigants will begin to rely on other rights (that are not covered by s.33) to make their case? Will the courts be willing to adopt a broad reading of some of these other rights in order to avoid the effect of s. 33? If so, is that appropriate?
2. Why do you think that governments have become more willing to invoke s. 33?
3. What can comparative constitutional law scholars learn from Canada's experience with s. 33?

Chapter 18: Section 32: *Charter* Application

By Kyle Kirkup and Jena McGill

1 Introduction

1.1 The Text of Section 32

A threshold question in every *Charter* case is whether the *Charter* applies to the dispute at hand. Answering this question requires understanding who is bound by the *Charter* or who is "subject to the burden of *Charter* rights" (Peter W. Hogg & Wade Wright, *Constitutional Law of Canada,* 5th Ed. (loose-leaf) (Carswell, 2019) at §37:6). The starting point for this determination is the text of s.32, which provides:

> 32.(1) This *Charter* applies:
>
> to the Parliament and government of Canada in respect of all matters within the authority of Parliament including all matters relating to the Yukon Territory and Northwest Territories; and
>
> to the legislature and government of each province in respect of all matters within the authority of the legislature of each province.

1.2 The *Charter* Applies to Parliament and Legislatures

The language of s.32 makes clear that the *Charter* applies to limit the powers of federal, provincial, and territorial legislatures. These bodies must comply with the *Charter* and any action by Parliament or a legislature that is inconsistent with the *Charter* will be invalid. Federal, provincial, and territorial legislation and subordinate legislation like bylaws and regulations are thus subject to the *Charter* by virtue of the language of s.32.

1.3 The *Charter* Applies to Governments

In addition to Parliament and legislatures, the text of s.32 specifies that the *Charter* applies to the "government of Canada" and the "government of each province." These references to government have been found to encompass the executive branch of government including the federal cabinet (*Operation Dismantle v The Queen*, 1985 CanLII 74 (SCC)) as well as the "ministers, officials employed in government departments, police officers, and other public agencies or agents that are subject to ministerial control or charged with the performance of government responsibilities" (The Constitutional Law Group, *Canadian Constitutional Law*, 4th Ed. (Toronto: Emond Montgomery Ltd, 2010 at 802).

1.4 The *Charter* Does Not Apply to Private Action

Section 32 is silent on whether the *Charter* applies to private – that is, non-government – action. Early in the life of the *Charter*, there was debate about whether this silence meant that the *Charter* applied *only* to Parliament, legislatures and governments and *not* to private individuals, or whether s.32 was intended to confirm that the named entities were subject to the *Charter* without limiting the *Charter*'s application to those bodies alone.

Any uncertainty about the application of the *Charter* to private action was resolved in the first s.32 case heard by the Supreme Court of Canada, *RWDSU v Dolphin Delivery Ltd.,* 1986 CanLII 5 (SCC). There, McIntyre J. (Dickson C.J. and Estey, McIntyre, Chouinard and Le Dain JJ., concurring), reviewed the text of s.32 and the views of several commentators on the question of whether the *Charter* applied to private action and concluded:

> [33] I am in agreement with the view that the *Charter* does not apply to private [action]. It is evident from the authorities and articles cited above that that approach has been adopted by most judges and commentators who have dealt with this question. In my view, s. 32 of the *Charter*, specifically dealing with the question of *Charter* application, is conclusive on this issue...
>
> [34] It is my view that s.32 of the *Charter* specifies the actors to whom the *Charter* will apply. They are the legislative, executive and administrative branches of government. It will apply to those branches of government whether or not their action is invoked in public or private litigation…

The decision to limit the application of the *Charter* to government action is consistent with the overarching role of a constitution, which "establishes and regulates the institutions of government, and…leaves to those institutions the task of ordering the private affairs of the people" (Peter W. Hogg & Wade Wright, *Constitutional Law of Canada,* 5th Ed. (loose-leaf) (Carswell, 2019) at §37:13). In *McKinney v University of Guelph*, 1990 CanLII 60 (SCC), La Forest J. (Dickson C.J. and Gonthier and Sopinka JJ, concurring), expanded upon the rationale for the decision in *Dolphin Delivery* to limit the application of the *Charter* to government action, stating (at 262):

> The exclusion of private activity from the *Charter* was not a result of happenstance. It was a deliberate choice which must be respected. We do not really know why this approach was taken, but several reasons suggest themselves. Historically, bills of rights, of which that of the Unites States is the great constitutional exemplar, have been directed at government. Government is the body that can enact and enforce rules and authoritatively impinge on individual freedom. Only government requires to be constitutionally shackled to preserve the rights of the individual. Others, it is true, may offend against the rights of individuals. This is especially true in a world in which economic life is largely left to the private sector where powerful private institutions are not directly affected by democratic forces. But government can either regulate these or create distinct bodies for the protection of human rights and the advancement of human dignity.
>
> To open up all private and public action to judicial review could strangle the operation of society and… "diminish the area of freedom within which individuals can act"…It would mean reopening whole areas of settled law in several domains. For example, as has been stated: "In cases involving arrests, detentions, searches and the like, to apply the *Charter* to purely private action would be tantamount to setting up an alternative tort system" (see McLellan and Elman, "To Whom Does the Charter Apply? Some Recent Cases on Section 32" (1986), 24 *Alta. L. Rev.* 361, at p. 367, cited in *RWDSU v. Dolphin Delivery Ltd.*, *supra*, at p. 597). And that is by no means all.
>
> Opening up private activities to judicial review could impose an impossible burden on the courts. Both government and the courts have recognized the need to limit judicial review by means, for example, of privative clauses and deference to specialized tribunals, techniques that would be unavailable in a *Charter* context. As well…government may, in many cases, establish more flexible means to deal with individual rights. Thus Human Rights Commissions have more flexible techniques for dealing with discriminatory practices without unduly constraining the exercise of other democratic rights that are extremely hard to balance…

We return to the specifics of *Dolphin Delivery* and *McKinney*, below.

1.5 Further Commentary and Questions

1. The decision in *Dolphin Delivery* to limit the *Charter* to government action sparked significant commentary at the time. See, for example, A. Anne McLellan & Bruce P. Elman, "To Whom does the *Charter* Apply? Some Recent Cases on Section 32" (1986) 14:2 Alberta LR 361 (suggesting at 375 that "the *Charter* will have its greatest impact on private activity through moral suasion") and Brian Slattery, "The *Charter*'s Relevance to Private Litigation: Does *Dolphin* Deliver?" (1987) 32 McGill LJ 905 (calling for a more nuanced, contextual approach to s.32).
2. For more recent commentary on the *Dolphin Delivery* decision and its legacy, see Margot Young, Richard Mailey and Anthony Sangiuliano, "*Editors' Introduction: Beyond Dolphin Delivery"* (2025) 33:4 Constitutional Forum constitutionnel i.
3. In *New Brunswick Broadcasting Co. v Nova Scotia*, 1993 CanLII 153 (SCC), a majority of the Supreme Court determined that the *Charter* applied only to the actions of the New Brunswick provincial legislative assembly that are not shielded by parliamentary privilege, since the privileges necessary for the proper functioning of legislative assemblies are constitutionally entrenched. Justice McLachlin J (as she then was) explained: "It is a basic rule…that one part of the Constitution cannot be abrogated or diminished by another park of the Constitution...So if the privilege to expel strangers from the legislative assembly is constitutional, it cannot be abrogated by the *Charter*, even if the *Charter* otherwise applies to the body making the ruling" (373).

2 Government Action

The principle that the *Charter* applies only to government action sounds simple enough; however, the history of s.32 tells a different story. The distinction between government and private action has proved difficult to apply in practice, giving rise to a significant body of case law revolving around the "very vexed question" of when an entity qualifies as government under s.32 (Gerard J. Kennedy, *The* Charter of Rights *in Litigation: Direction from the Supreme Court of Canada* (loose-leaf), at § 2:2).

In *Eldridge v British Columbia (Attorney General)*, 1997 CanLII 327 (SCC), the Supreme Court identified two bases upon which an act may be found to be governmental for the purposes of *Charter* application: 1) where the act is performed by a government entity; and, 2) where a non-government entity performs a government activity. Justice La Forest, for a unanimous Court, summarized the government action framework in the following terms:

> [44] As the case law…makes clear, the *Charter* may be found to apply to an entity on one of two bases. **First**, it may be determined that the entity is itself "government" for the purposes of s. 32. This involves an inquiry into whether the entity whose actions have given rise to the alleged *Charter* breach can, either by its very nature or in virtue of the degree of governmental control exercised over it, properly be characterized as "government" within the meaning of s. 32(1). In such cases, all of the activities of the entity will be subject to the *Charter*, regardless of whether the activity in which it is engaged could, if performed by a non-governmental actor, correctly be described as "private". **Second,** an entity may be found to attract *Charter* scrutiny with respect to a particular activity that can be ascribed to government. This demands an investigation not into the nature of the entity whose activity is impugned but rather into the nature of the activity itself. In such cases, in other words, one must scrutinize the quality of the act at issue, rather than the quality of the actor. If the act is truly "governmental" in nature -- for example, the implementation of a specific statutory scheme or a government program -- the entity performing it will be subject to review under the *Charter* only in respect of that act, and not its other, private activities (emphasis added).

2.1 *Eldridge* Branch 1: Government Entities

Under the first branch of the *Eldridge* framework, the *Charter* will apply to all the activities of an entity that is itself government. There are two ways that an entity may be found to be government for the purposes of the *Charter:* 1) if the entity is "by its very nature" government; and, 2) if the entity is controlled by government to some significant degree (often described as "routine" or "regular" or "substantial" governmental control). The cases below illustrate the considerations courts look to in making these determinations.

2.1.1 Entities that are Government by Nature

2.1.1.1 *Godbout v Longueuil (City)*, 1997 CanLII 335 (SCC)

As a condition of her employment with the city of Longueuil's police force, Michele Godbout was required to sign a declaration that her principal residence would remain in the city of Longueuil and that if she moved outside the city, her employment would be terminated without notice. When Godbout moved to the nearby town of Chably, her job was terminated in accordance with the declaration. The Supreme Court was unanimous in finding that Longueuil's residence requirement infringed the right to respect for private life guaranteed by the Quebec *Charter of Human Rights and Freedoms*, CQLR c C-12. Justice La Forest also found that the requirement infringed the right to life, liberty, and security of the person in section 7 of the Canadian *Charter*. As part of his analysis, he determined that the *Charter* applies to municipalities like Longueuil.

> **La Forest J.** (McLachlin and L'Heureux-Dube JJ concurring):

…

[47] [W]here...entities are, in reality, "governmental" in nature -- as evidenced by such things as the degree of government control exercised over them, or by the governmental quality of the functions they perform -- they cannot escape *Charter* scrutiny. In other words, the ambit of s.32 is wide enough to include all entities that are essentially governmental in nature and is not restricted merely to those that are formally part of the structure of the federal or provincial governments. This is not to say, of course, that the *Charter* applies only to those entities (other than Parliament, the provincial legislatures and the federal and provincial governments) that are, by their nature, governmental. Indeed, it may be that particular entities will be subject to *Charter* scrutiny in respect of certain governmental activities they perform, even if the entities themselves cannot accurately be described as "governmental"...Rather, it is simply to say that where an entity can accurately be described as "governmental in nature", it will be subject in its activities to *Charter* review. Thus, the *Charter* applied to Douglas College (in *Douglas/kwantlen Faculty Assn. v Douglas College,* 1990 CanLII 63 (SCC), [1990] 3 SCR 570] and to the Council of Regents [in *Lavigne v Ontario Public Service Employees Union,* 1991 CanLII 68 (SCC), [1991] 2 SCR 211] because those bodies were wholly controlled by government and were, in essence, emanations of the provincial legislatures that created them...

[48] The possibility that the Canadian Charter might apply to entities other than Parliament, the provincial legislatures and the federal or provincial governments is, of course, explicitly contemplated by the language of s. 32(1) inasmuch as entities that are controlled by government or that perform truly governmental functions are themselves "matters within the authority" of the particular legislative body that created them. Moreover, interpreting s. 32 as including governmental entities other than those explicitly listed therein is entirely sensible from a practical perspective. Were the Charter to apply only to those bodies that are institutionally part of government but not to those that are -- as a simple matter of fact -- governmental in nature (or performing a governmental act), the federal government and the provinces could easily shirk their Charter obligations by conferring certain of their powers on other entities and having those entities carry out what are, in reality, governmental activities or policies. In other words, Parliament, the provincial legislatures and the federal and provincial executives could simply create bodies distinct from themselves, vest those bodies with the power to perform governmental functions and, thereby, avoid the constraints imposed upon their activities through the operation of the Charter. Clearly, this course of action would indirectly narrow the ambit of protection afforded by the Charter in a manner that could hardly have been intended and with consequences that are, to say the least, undesirable. Indeed, in view of their fundamental importance, Charter rights must be safeguarded from possible attempts to narrow their scope unduly or to circumvent altogether the obligations they engender.

[49] I pause here to reiterate an important observation...concerning how the notion of "government" is to be understood. The mere fact that an entity performs what may loosely be termed a "public function" will not by itself mean that the body under examination is "governmental" in nature... In order for the Canadian *Charter* to apply to institutions other than Parliament, the provincial legislatures and the federal and provincial governments, then, an entity must truly be acting in what can accurately be described as a "governmental" -- as opposed to a merely "public" -- capacity. The factors that might serve to ground a finding that an institution is performing "governmental functions" do not readily admit of any *a priori* elucidation. Nevertheless... "[a] public purpose test is simply inadequate" and "is simply not the test mandated by s. 32".

[50]…I turn now to examine directly...[t]he main issue...[of]...whether the Canadian *Charter* applies to municipalities...at all... [T]he analysis I have undertaken thus far leads inexorably to the conclusion that it does. While this Court has never before expressly endorsed that proposition, we have done so inferentially, inasmuch as we have already applied the *Charter* to municipal by-laws without specifically engaging in an analysis of the application issue... Moreover, the view that municipalities are subject to the *Charter* is not only sound, but also wholly consistent with the case law I have been discussing. Indeed, municipalities -- though institutionally distinct from the provincial governments that create them -- cannot but be described as "governmental entities". I base this finding on a number of considerations.

[51] First, municipal councils are democratically elected by members of the general public and are accountable to their constituents in a manner analogous to that in which Parliament and the provincial legislatures are accountable to the electorates they represent. To my mind, this itself is a highly significant (although perhaps not a decisive) indicium of "government" in the requisite sense. Secondly, municipalities possess a general taxing power that, for the purposes of determining whether they can rightfully be described as "government", is indistinguishable from the taxing powers of Parliament or the provinces. Thirdly, and importantly, municipalities are empowered to make laws, to administer them and to enforce them within a defined territorial jurisdiction....Finally, and most significantly, municipalities derive their existence and law-making authority from the provinces; that is, they exercise powers conferred on them by provincial legislatures, powers and functions which they would otherwise have to perform themselves. Since the Canadian *Charter* clearly applies to the provincial legislatures and governments, it must, in my view, also apply to entities upon which they confer governmental powers within their authority. Otherwise, provinces could (in the manner outlined earlier) simply avoid the application of the *Charter* by devolving powers on municipal bodies.…

2.1.1.2 *Dickson v Vuntut Gwitchin First Nation,* 2024 SCC 10 (CanLII)

Cindy Dickson is a citizen of the Vuntut Gwitchin First Nation (VGFN), a self-governing Indigenous community whose territory includes part of northern Yukon. Dickson hoped to stand for election as a Councillor in the First Nation. However, the VGFN Constitution, enacted pursuant to the 1993 *Vuntut Gwitchin Self-Government Agreement* between VGFN and the Yukon and federal governments, requires that all Chiefs and Councillors reside in the Old Crow settlement on the traditional territory of the Vuntut Gwitchin or relocate there within 14 days of their election ("the residency requirement"). Dickson lived in Whitehorse, about 800 kilometers from Old Crow. Due to her family and employment commitments, she could not relocate if elected. Dickson challenged the residency requirement, alleging it infringed her right to equality under s.15 of the *Charter*. The VGFN made several arguments in response, including that the *Charter* does not apply to it as a self-governing First Nation. In two sets of reasons, six of the seven Supreme Court of Canada judges who heard the case determined that the *Charter* applied to the self-governing Indigenous nation of VGFN; Justice Rowe, in dissent, determined that it did not.

Kasirer and Jamal JJ. (Wagner C.J. and Côté J. concurring)

...

A. *Does the Charter Apply to the VGFN's Residency Requirement?*

...

(2) Indigenous Self-Government and the *Charter*

[46] Before considering whether the *Charter* applies to the VGFN's residency requirement, it is useful to review the historical and policy context for Indigenous self-government in Canada, including under the Charlottetown Accord of 1992, the federal government's "Inherent Right Policy" since 1995, and the final Report of the Royal Commission on Aboriginal Peoples published in 1996. It is also useful to review how courts have consistently applied the *Charter* to Indigenous governments.

[47] As a preliminary matter, we note that although this Court has yet to recognize an inherent right to Indigenous self-government as an Aboriginal right protected under s. 35 of the *Constitution Act*, *1982*...an inherent right to Indigenous self-government has now been affirmed on the international plane by Article 4 of the *United Nations Declaration on the Rights of Indigenous Peoples*, U.N. Doc. A/RES/61/295, October

2, 2007. In 2016, the Canadian government supported the *Declaration* and committed to adopt and implement it in accordance with the Canadian Constitution. Recent federal legislation has affirmed the *Declaration* as "a universal international human rights instrument with application in Canadian law" and provides "a framework for the Government of Canada's implementation of the Declaration"...

(a) *The Charlottetown Accord of 1992*

[48] Section 32(1) of the *Charter* does not expressly provide that the *Charter* applies to Indigenous governments. However, the Draft Legal Text of the Charlottetown Accord of 1992 had proposed to amend s. 32 of the *Charter* to recognize, in s. 32(1)(c), that the *Charter* applies "to all legislative bodies and governments of the Aboriginal peoples of Canada in respect of all matters within the authority of their respective legislative bodies" (p. 36). It had also proposed to add a new s. 35.1 of the *Constitution Act, 1982* to provide in part that "[t]he Aboriginal peoples of Canada have the inherent right of self-government within Canada" (p. 37). The Accord was approved by the federal, provincial, and territorial governments and by the Assembly of First Nations, Inuit Tapirisat of Canada, Native Council of Canada, and Métis National Council, but was not ratified because it did not receive the support of a majority of Canadians in a national referendum...Even so, it is noteworthy that these proposed constitutional amendments saw the inherent right to self-government as compatible with the obligation of Indigenous governments to comply with the *Charter*.

(b) *Federal Government Policy Since 1995*

[49] Despite the failure of the Charlottetown Accord, since 1995 the federal government's policy, first articulated under its "Inherent Right Policy", has been that Indigenous peoples in Canada have an inherent right to self-government guaranteed under s. 35 of the *Constitution Act, 1982*, but also that the *Charter* applies to Indigenous governments. The policy recognizes the historical fact that Indigenous peoples were living in self-governing communities before Europeans arrived, and seeks to ensure that Indigenous governments, like other governments in Canada, comply with the *Charter*...

[50] Since 1995, the federal government has negotiated many self-government agreements with Indigenous communities across Canada, which have recognized that the *Charter*, the *Canadian Human Rights Act*...and the *Criminal Code*...continue to apply to Indigenous peoples...The federal government has also affirmed that self-government agreements negotiated before 1995 will, as a general principle, "continue to operate according to their existing terms"...This includes the *Self-Government Agreement* with the VGFN.

(c) *The Legal Policy Debate About Applying the Charter to Indigenous Governments*

[51] Shortly after the failure to ratify the 1992 Charlottetown Accord, the Royal Commission on Aboriginal Peoples extensively studied whether the *Charter* should apply to Indigenous governments exercising inherent self-government powers. The Royal Commission concluded that the *Charter* applies, but in accordance with s. 25, it should be "given a flexible interpretation that takes account of the distinctive philosophies, traditions and cultural practices of Aboriginal peoples"...(RCAP Final Report). We will return later to the Royal Commission's perspective on the intimate connection between ss. 32 and 25 of the *Charter*. That perspective takes a broad view of the application of the *Charter* to Indigenous governments under s. 32(1), but also interprets the *Charter* under s. 25 with sensitivity to the collective rights of Indigenous peoples, to protect what the Royal Commission referred to as their "distinctive philosophies, traditions and cultural practices" — or what Professor Patrick Macklem has encapsulated in the term "[I]ndigenous difference"...As we explain below, s. 25 was included in the *Charter* as a protection for the distinctive minority rights of Indigenous peoples that might be abrogated or derogated from by the application of individual *Charter* rights.

[52] The RCAP Final Report, published in 1996, described two approaches to addressing whether the *Charter* applies to Indigenous governments exercising inherent self-government powers. The first approach claims that Indigenous governments should be bound by the *Charter* as a matter of basic constitutional principle, because "it would be highly anomalous if Canadian citizens enjoyed the protection of the *Charter* in their relations with every government in Canada except for Aboriginal governments" (vol. 2, at p. 227). This approach does not see the *Charter* as necessarily inconsistent with Indigenous values, because the *Charter* itself is "modelled on international standards with universal application" (p. 228).

[53] The second approach described by the RCAP Final Report asserts that Indigenous governments should not be bound by the *Charter*, because Indigenous peoples did not "consen[t] to the application of the *Charter* in a binding constitutional instrument, such as a self-government treaty with the Crown" (vol. 2, at p. 228). It also claims that "some *Charter* provisions reflect individualistic values that are antithetical to many Aboriginal cultures, which place greater emphasis on the responsibilities of individuals to their communities" (p. 230). This approach claims that applying the *Charter* to Indigenous governments "could hamper and even stifle the efforts of Aboriginal nations to revive and strengthen their cultures and traditions" and "might operate as the unwitting servant of the forces of assimilation and domination" (p. 230).

[54] After studying these issues extensively, the Royal Commission settled on an intermediate approach embodying three basic principles. First, all Canadians — Indigenous and non-Indigenous alike — are "entitled to enjoy the protection of the *Charter*'s general provisions in their relations with governments in Canada, no matter where in Canada the people are located or which governments are involved" (p. 230). Second, Indigenous governments "occupy the same basic position relative to the *Charter* as the federal and provincial governments" (p. 230). And third, the *Charter* should apply to Indigenous governments and be "interpreted in a manner that allows considerable scope for distinctive Aboriginal philosophical outlooks, cultures and traditions", based on the "interpretive rule . . . found in section 25 of the *Charter*" (p. 230).

[55] The Royal Commission's final recommendation was thus that the *Charter* applies to Indigenous governments, but under s. 25, the *Charter* must be interpreted flexibly to account for the distinctive philosophies, traditions, and cultural practices of Indigenous peoples (RCAP Final Report, vol. 2, at p. 234; see also Royal Commission on Aboriginal Peoples, Partners in Confederation: Aboriginal Peoples, Self-Government, and the Constitution (1993), at pp. 39-41; Royal Commission on Aboriginal Peoples, Bridging the Cultural Divide: A Report on Aboriginal People and Criminal Justice in Canada (1996), at pp. 262-64).

...

(3) *The Eldridge Framework for Applying Section 32(1) of the Charter*

[The Court reviewed the two branches of the *Eldridge* framework with reference to key cases including: *Godbout, Greater Vancouver Transportation Authority* and *Eldridge*].

...

[70] An entity may be subject to the *Charter* in one of two ways. An entity may be government by its very nature or because the federal or a provincial government exercises substantial control over it, in which case all the entity's activities are subject to the *Charter*. Alternatively, even if an entity is not part of government, it will be subject to the *Charter* in respect of governmental activities it performs.

(4) *Application of Section 32(1) to This Case*

...

(a) *The Charter Applies to the Residency Requirement Because the VGFN is "Government" by Nature"*

...

[77] ...[I]n our view the *Charter* applies to the VGFN's residency requirement under its Constitution because the VGFN is "government" by nature. Recall that in *Godbout*, La Forest J. stated that although there can be no a priori list of factors that determines whether an entity performs "governmental" functions, an entity may be considered to be government by nature when it has four features (para. 51). The four features are neither necessary nor determinative for an entity to be found to be government by nature but serve as useful indicia of government (para. 51):

1. The entity has a council that is "democratically elected by members of the general public and [is] accountable to [its] constituents in a manner analogous to that in which Parliament and the provincial legislatures are accountable to the electorates they represent".
2. It has "a general taxing power that, for the purposes of determining whether [it] can rightfully be described as 'government', is indistinguishable from the taxing powers of Parliament or the provinces".
3. Importantly, it is empowered to make, administer, and enforce coercive laws binding on the public within a defined territorial jurisdiction, which is a quintessentially governmental function.
4. Most significantly, it derives its existence and lawmaking authority from the federal or provincial government; that is, it exercises powers conferred by Parliament or by a provincial legislature, powers and functions that the federal or provincial government would otherwise have to perform itself.

[78]...[T]he VGFN as an Indigenous government illustrates indicia for "government by nature" identified by this Court in *Godbout*, and thus the *Charter* applies to the VGFN's residency requirement...

[79] First, the VGFN Council consists of members who are elected by eligible voters of the VGFN and are democratically accountable to their constituents, much like members of Parliament or a provincial legislature...If elected, members swear or affirm loyalty to the VGFN and obedience to the VGFN Constitution as a "sacred responsibility of government"...

[80] Second, the VGFN has general taxing powers that are materially indistinguishable from those of Parliament or the provinces. The VGFN has status as "a municipality or public body performing the functions of government or a municipal corporation" under the *Income Tax Act*... This status is contingent on the VGFN restricting its activities "to the provision of government or other public services"...

[81] Third, like Parliament and provincial legislatures, the VGFN is empowered to make, administer, and enforce coercive laws that are binding on VGFN citizens and on the public generally within its settlement land...To quote La Forest J. in *Godbout*, this is a "quintessentially governmental function" (para. 51 (emphasis deleted), citing *McKinney*, at p. 270).

[82] Fourth, although (as the trial judge found) the Vuntut Gwitchin have been self-governing since time immemorial, and even if the VGFN has lawmaking authority under an inherent right to self-government, the VGFN is also recognized as a legal entity under the federal implementing legislation. To that extent, it derives at least some of its lawmaking authority under federal law. In other words, at least one source of the VGFN's lawmaking authority flows from Parliament, in that the VGFN exercises powers that Parliament otherwise would have exercised through its legislative jurisdiction under s. 91(24) of the *Constitution Act*, 1867. This of course is not to suggest that Indigenous self-government is necessarily an emanation of federal authority. Parliament can, as here, be a source of the self-government authority, and it is this fact that triggers the application of the *Charter* in this case.

[83]...In our view, in the present context it is sufficient for the VGFN to be recognized as a legal entity and to derive a source of its lawmaking authority from federal legislation, without necessarily deriving all of its lawmaking authority, or its existence, from federal legislation. In Godbout, La Forest J. spoke of municipalities deriving their "existence" from federal or provincial legislation, but this was because municipalities are entirely creatures of statute, whereas self-governing Indigenous governments manifestly are not. In short, Parliament can recognize the existence of an Indigenous government to which it confers some part of its lawmaking authority under s. 91(24) of the *Constitution Act*, 1867, without creating that Indigenous government and without necessarily being the only source of its lawmaking authority.

[84]...[E]ven if the VGFN has an inherent power of self-government that is not derived from federal legislation, it is undeniable that the VGFN also exercises powers conferred by Parliament under s. 91(24) of the *Constitution Act*, 1867 that would otherwise be performed by the federal or territorial government, as indeed they were before the Self-Government Agreement was implemented by federal legislation...

...

[86] In addition, whatever the source of the VGFN's self-government powers — whether it is an inherent right, federal legislation, or both — it is undeniable that the federal Yukon First Nations *Self-Government Act* also regulates the exercise of the VGFN's self-government powers and makes them binding against third parties. In short, all the VGFN's self-government powers under the *Self-Government Agreement* and implemented by the federal and territorial self-government legislation must be exercised in accordance with that legislation. In our view, this constitutes sufficient involvement by Parliament to trigger the application of the *Charter.*

[87] Although not determinative, it bears noting that the view that the *Charter* applies to the VGFN's exercise of self-government powers was also expressed by the Minister of Indian Affairs and Northern Development, the Hon. Ron Irwin, at the second reading of the federal self-government legislation before the House of Commons. He stated that "[t]he principles embodied in the *Charter of Rights and Freedoms* and the Constitution of Canada as a whole will continue to apply"...He added that "First Nation constitutions will also provide protections for the rights and freedoms of First Nation citizens" (p. 4716). Thus, in the Minister's view, the citizens of self-governing First Nations would be entitled to invoke *Charter* rights alongside their rights under First Nations constitutions, just as Ms. Dickson did in this case...In our view, the Minister's statement before the House of Commons lends some support to the view that Parliament intended the exercise of self-government powers under the federal Yukon First Nations Self-Government Act to be subject to the *Charter*.

[88] We hasten to say that in concluding that the VGFN engages each of the four illustrative indicia identified by this Court in *Godbout* for an entity that is government by nature, we do not of course suggest that an Indigenous government such as the VGFN exercising self-government powers is similar to a municipality. Unlike municipalities, which have no independent constitutional status, are entirely creatures of statute, and exercise only those powers conferred by legislation, Indigenous peoples are expressly recognized under the *Constitution Act, 1867* (s. 91(24)), the *Charter* (s. 25), and the *Constitution Act, 1982* (ss. 35 and 35.1). Indigenous peoples pre-existed the arrival of European settlers and the founding of Canada as a country; they do not depend on federal, provincial, or territorial legislation to exist as autonomous self-governing peoples.

...

[92] In our view, therefore, the *Charter* applies to the VGFN's residency requirement because the VGFN is government by nature.

…

Martin and O'Bonsawin JJ. (dissenting in part)

...

[234] This claim raises numerous issues of fundamental importance concerning the extent to which the *Charter* protects the rights and freedoms of Indigenous people in respect of actions taken by Indigenous governments. In our view, the *Charter* applies to governmental action taken by self-governing Indigenous nations because they are both governmental in nature and because the purpose of s. 32(1) was to extend the *Charter*'s protections to address the power imbalance between the governed and those who govern in Canada. As the contours of Indigenous self-government evolve, it is essential that no *Charter*-free zones in Canada be created, that everyone be equally protected by its constitutionally entrenched guarantees, and that all forms of government be constrained by its limits.

…

II. Section 32(1) of the *Charter*

...

[241] In our view, a purposive reading of s. 32(1) of the *Charter* ensures that the VGFN, as a self-governing Indigenous community, is obliged to respect the *Charter* rights of its citizens. We agree with Kasirer and Jamal JJ. that the VGFN's enactment of the residency requirement is subject to the *Charter* and that the VGFN is "'government' by nature". However, we reach this conclusion through a different set of considerations.

...

A. *The Charter Is Directed at the Relationship Between the Governed and Those Who Govern*

[249] The purpose underlying the scope of the *Charter*'s applicability is...to address the power imbalance between the governed and those who govern…

[251] This purpose must underlie any understanding and interpretation of s. 32(1). In assessing to whom the *Charter* applies, there must be a focus on entities that are entitled to exercise governmental power over individuals in a manner that potentially limits their rights and freedoms. Any interpretation of *Charter* applicability that has the effect of creating a *Charter*-free zone in the face of this form of power imbalance would undermine the *Charter*'s objectives and importance.

...

(3) The *Eldridge* Framework and Indigenous Governments

[260] Like Kasirer and Jamal JJ., we acknowledge that the VGFN falls within the first branch of the *Eldridge* framework as it is a government by nature. However, we question whether existing categories are adequate to deal with self-governing Indigenous nations and reject the idea that VGFN's governmental status is based on the delegation of authority from another level of government.

[261]...[E]xisting jurisprudence provides general and instructive statements about the purpose of s. 32(1). However, these cases did not involve the distinct context of Indigenous governments and instead addressed other unrelated circumstances. Legal tests devised to assess whether municipalities, universities, or hospitals must respect the *Charter* arise from, and necessarily respond to, their particular factual contexts. They should not be read as a complete answer on the scope of the *Charter*'s applicability to self-governing Indigenous nations. Principles articulated for entities wholly created by the federal or provincial governments will be incomplete and ill-suited when assessing the lawmaking authority of the first inhabitants of Canada.

[262] Different considerations arise with respect to Indigenous governments as they are a foundational piece of Canada's constitutional fabric. Over time, governments and courts have learned that legal questions involving Indigenous peoples frequently require different considerations, legal concepts, and perspectives, grounded in the reality that they are the first inhabitants of Canada. Analogies to existing case law that identify governmental entities will be partial and imperfect when applied to self-governing Indigenous nations. Limiting conditions should not be grafted onto s. 32(1) when to do so would stunt the growth of what was intended to be a living, remedial, and responsive constitution. Although this Court has yet to fully recognize an inherent Aboriginal right to self-government, s. 32(1) should not be interpreted in a manner that would impair the recognition of such a right prior to the issue being adjudicated.

[263] The delegated authority or substantial control approaches used in *Eldridge* and *McKinney* are therefore not particularly helpful for assessing the applicability of the *Charter t*o the VGFN. Looking for a form of delegated authority by the federal or a provincial government does not respect the historic and integral role of Indigenous societies in Canada and fails to account for the modern context of self-governing Indigenous nations.

[264] Indigenous peoples were self-governing entities before the arrival of European settlers and continue to govern themselves to this day...The long-standing self-governance practices of Indigenous societies are well established in this Court's jurisprudence: "Long before Europeans explored and settled North America, aboriginal peoples were occupying and using most of this vast expanse of land in organized, distinctive societies with their own social and political structures" (*Mitchell v M.N.R.*, 2001 SCC 33...at para. 9...)...

[265] Recognition of self-governing Indigenous nations as governments in their own right, and not by virtue of delegated power, falls clearly within the ambit of s. 32(1) and the purpose of the *Charter.* Importantly, it upholds long-standing Indigenous practices of self-governance and advances reconciliation in Canada. It is not necessary for the impugned action to stem from authority granted by federal, provincial, or territorial legislation for it to be subject to *Charter* scrutiny. The emphasis the majority places on the VGFN deriving at least some of its lawmaking authority from federal law gives insufficient weight to the VGFN's independent governmental nature.

[266] We thus reject the notion that an essential factor for the *Charter*'s applicability under s. 32(1) is that the source of the VGFN's lawmaking authority flows from Parliament. We acknowledge that Kasirer and Jamal JJ. take great care to respect the position of self-governing Indigenous nations like the VGFN: noting that the VGFN is not controlled by the federal or Yukon government under the control prong (para. 76), that the Vuntut Gwitchin have been self-governing since time immemorial (para. 82), that Parliament can recognize an Indigenous government to which it confers lawmaking authority under s. 91(24) of the *Constitution Act,* 1867 without creating that Indigenous government (para. 83), and that the reasons should not be taken to suggest that the VGFN is similar to a municipality (para. 88). Nevertheless, they find that "the VGFN exercises powers that Parliament otherwise would have exercised through its legislative jurisdiction under s. 91(24)" (para. 82) and place substantial weight on the *Constitution Act,* 1867 and federal legislation as the source of the VGFN's authority to enact the residency requirement...

[267] The weight placed on delegation under s. 91(24) does not reflect the unique situation of self-governing Indigenous nations and is not required under the first branch of *Eldridge* for an entity like the VGFN to attract *Charter* scrutiny. Self-governing Indigenous nations may not be expressly mentioned in s. 32(1) but they deal with "matters" which are, and this section must receive a purposive, expansive application so

that the *Charter* applies to protect all.

...

B. *Application of Section 32(1) to the VGFN*

...

(2) The VGFN Is a Government by Its Very Nature

[277] We have no hesitation concluding that the VGFN is subject to the *Charter*. It is inherently governmental. The VGFN's long-standing history reinforces its governmental nature; as the trial judge noted, "[t]he Vuntut Gwitchin were constituted as a political entity prior to the assertion of British sovereignty and have governed themselves in accordance with their own laws since time immemorial"...

[278] An array of relevant factors demonstrate that the VGFN is governmental in nature. For example, the VGFN council is democratically elected, it has the authority to levy taxes, and it possesses extensive lawmaking powers — all of which were described by La Forest J. in Godbout as non-exhaustive indicia of government (para. 51; see also VGFN Final Agreement (1993), ch. 24; VGFN *Self-Government Agreement*, s. 13.0; Yukon First Nations Self-Government Act, s. 11 and Sch. III). The VGFN also has the exclusive authority to govern its internal affairs (VGFN Self-Government Agreement, s. 13.1). This includes the enactment of the residency requirement itself — a legislative action that impacts individual members' rights by restricting democratic participation. Further, the VGFN can enact laws applicable in the Yukon in relation to a wide array of matters touching the everyday lives of its citizens, such as health care, education, adoption and child welfare, solemnization of marriage, and estate administration (s. 13.2). It is empowered to legislate on matters of a local or private nature on the settlement land, which the VGFN Self-Government Agreement defines as including the administration of justice, land use, expropriation of land, protection of fish, wildlife, and habitat, environmental protection, vehicles, curfews and the prevention of disorderly conduct, public health, public order, and other "matters coming within the good government of Citizens on Settlement Land" (s. 13.3).

[279] The VGFN's extensive catalogue of lawmaking powers touches on "matters within the authority" of Parliament and the provincial legislatures, as provided by s. 32(1). As the Congress of Aboriginal Peoples points out, many of the services provided by the VGFN as a self-governing Indigenous nation would otherwise be within the purview of other levels of government...While a different modality for the exercise of legislative power, the VGFN's authority as a self-governing Indigenous nation is no less impactful or binding on its citizens and no less capable of limiting their *Charter* rights.

[280] The VGFN's structure and functions reflect its inherently governmental nature: it creates laws and makes decisions that benefit, order, and restrict the lives of its citizens. We accordingly conclude that the VGFN is a government by its very nature. Its enactment of the residency requirement must attract Charter scrutiny.

C. *Conclusion on Section 32(1)*

[281]…"The *Charter* is a nation-building instrument" (J. Harrington, "Interpreting the Charter", in Oliver, Macklem and Des Rosiers, *The Oxford Handbook of the Canadian Constitution,* 621, at p. 622). It was intended to solidify a national identity and preserve individual rights and freedoms in the face of governmental action. This purpose aligns with its application to self-governing Indigenous nations, including the VGFN. All orders of government in Canada are bound to uphold the *Charter*'s protections as these protections represent an integral feature of the relationship between the governed and those who govern. Any narrower approach to s. 32(1) risks the creation of *Charter*-free zones and would undermine the balance intended to be struck by the introduction of constitutionally entrenched rights in Canada.

[282] Section 32(1) can be read to recognize the political and constitutional evolution that has occurred in respect of Indigenous self-government. Indigenous nations like the VGFN have been self-governing since time immemorial and our reasons affirm that, whatever the source of their self-government authority, self-governing Indigenous nations are subject to the *Charter* pursuant to s. 32(1) and in accordance with a modified *Eldridge* framework when they engage in governmental action.

…

Rowe J. (dissenting in part)

…

[425] Ultimately, this case is about whether, in crafting their own Constitution, the Vuntut Gwitchin can make their own choices about their affairs — including as to how they wish to protect fundamental rights and freedoms — or whether their choices are subject to judicial scrutiny under the *Charter*. I conclude that the choice is theirs. I would therefore dismiss Ms. Dickson's appeal and allow the VGFN's cross-appeal, on the basis that the *Charter* does not apply to the VGFN's enactment of the residency requirement.

...

III. The *Charter* Applies to the Federal and Provincial Governments and Entities or Activities With a Significant Connection to Those Governments

...

[435] The text of s. 32(1) does not refer to the concept of "government" generally. Rather, the text enumerates distinct institutions under two paragraphs: the "Parliament and government of Canada" (s. 32(1)(a)) and the "legislature and government of each province" (s. 32(1)(b)). In *Dolphin Delivery*, McIntyre J. made clear that "s. 32 of the *Charter* specifies the actors to whom the Charter will apply" (p. 598...). Section 32(1) also makes clear that the *Charter* applies to the federal and provincial governments "in respect of all matters within their respective authorities" (*Dolphin Delivery*, at p. 598).

[436] The clear language used to address to whom and to what the *Charter* applies reflects s. 32(1)'s purpose. No interpretation can be adopted that effectively rewrites s. 32(1) of the *Charter*... Accordingly, any approach to *Charter* applicability under s. 32(1) cannot ignore the clear boundaries set out within the provision itself.

...

[461] First, some entities — such as a labour arbitrator...a human rights commission...and municipalities... — have been held to be government "by their very nature" (see *Eldridge,* at para. 44) despite operating independently from the federal and provincial governments. This language appears to be the foundation for the arguments resting on the fact that the VGFN is a government. However, an assessment of the nature of the entity under *Eldridge* does not occur by reference to an abstract conception of "government". Rather, it is an inquiry into the entity's connection to the particular governments enumerated in s. 32(1), as demonstrated by the entity's creation, structure, and powers....

[462] My colleagues Justices Kasirer and Jamal state that the VGFN engages the illustrative indicia for "government by nature" (para. 78) because,

> although (as the trial judge found) the Vuntut Gwitchin have been self-governing since time immemorial, and even if the VGFN has lawmaking authority under an inherent right to self-government, the VGFN is also recognized as a legal entity under the federal implementing legislation. To that extent, it derives at least some of its lawmaking authority under federal law. In other words, at least one source of the VGFN's lawmaking authority flows from Parliament, in that the VGFN exercises powers that Parliament otherwise would have exercised through its legislative jurisdiction under s. 91(24) of the Constitution Act, 1867 [para. 82.]

This implies that, as the self-government agreement in this case was authorized by federal legislation, Indigenous self-government for the VGFN is somehow an emanation of federal authority. This is fundamentally inconsistent with the nature, status and purpose of Indigenous self-government. Its purpose is to recognize and give practical effect to an autonomy that is different in status and nature from that exercised by band councils under the *Indian Act*. The idea of self-government is not that it is an "authority [that] flows from Parliament", but rather Indigenous peoples exercising authority that is rightfully theirs.

[463] Thus, the fact that an entity is a government does not automatically lead to the conclusion that the *Charter* applies to its activities. Nor does the conclusion that an entity is not subject to the *Charter* mean that it cannot be a government. For example, the government of the United Kingdom is no less a government because it is not subject to the *Charter*. The jurisprudence simply recognizes that the scope of s. 32(1), while capable of embracing extensions of the federal and provincial governments in the modern administrative state, is not so broad as to encompass entities that bear no significant connection to the particular governments enumerated in s. 32(1) itself.

...

[469] It is clear that the *Charter* applies under s. 32(1) to the federal and provincial governments. While the jurisprudence recognizes that "government" takes on various forms in the modern administrative state, an entity or activity must bear a significant connection to the federal or a provincial government in order to fall within the scope of s. 32(1) of the *Charter*. Consequently, to determine whether the *Charter* applies to an entity such as the VGFN or to its activities, the focus must be on a connection to the federal or provincial government.

IV. The VGFN Arrangements Do Not Establish a Significant Connection to Either the Federal or the Yukon Government

...

[496] [N]one of the aspects of the VGFN Arrangements show that either branch of the *Eldridge* framework applies. To the contrary, they reinforce that the VGFN is distinct from the Crown, including in enacting the residency requirement pursuant to its own laws, customs, and practices. To apply the *Charter* in this case would amount to viewing the VGFN as an extension of the federal or the Yukon government, or its enactment of the residency requirement as ascribable to one of them. Such an understanding is not only inconsistent with the VGFN Arrangements, but is also inconsistent with the special relationship between the federal and territorial governments and the Vuntut Gwitchin.

...

V. A Proper Application of Section 32(1) Promotes the Objective of Reconciliation

[497] A faithful application of this Court's jurisprudence leads inexorably to the conclusion that the VGFN and its enactment of the residency requirement do not fall within the scope of s. 32(1) of the *Charter*. Underlying Ms. Dickson and the interveners' arguments on the *Charter*'s applicability are, in reality, policy arguments: that the *Charter*'s protections should apply, because the VGFN is a government with significant authority over its citizens, and the inapplicability of the *Charter* under s. 32(1) would amount to creating a "'*Charter*-free' zon[e]"... Such policy arguments are not a sound basis in law to impose the *Charter* on the VGFN in a manner that effectively amends s. 32(1). Moreover, for the courts to impose the *Charter* on the VGFN would be contrary to the objective of reconciliation.

[498] Both the *Charter* and the diversity of Indigenous legal traditions are concerned with the protection of human dignity, but the *Charter* represents only one way to achieve this...The *Charter* exhibits one conception of how the individual interacts with the state, inspired by liberal enlightenment philosophy...

[499] These philosophical underpinnings of the *Charter* may not necessarily be commensurate with some Indigenous worldviews...and with the structure of Indigenous governing bodies which seek to "maintain . . . traditional structures integrated with contemporary forms of government" (Self-Government Agreement, s. 2.1). For example, there may be tensions between the *Charter*'s general focus on negative rights and certain communities' preference for a more relational, reciprocal understanding of "relationships, duties, and responsibilities"...Some scholars have noted the potential for cultural disconnect between the Charter's anthropocentric focus on human rights-holders, and a more ecocentric or cosmocentric understanding of rights and responsibilities...Finally, depending on the systems upon which Indigenous governance structures are created, Indigenous communities may see the balance between individual and collective rights, and between individuals and the state, differently...

[500] Even where the value systems and legal traditions of specific Indigenous communities point to the same result as the *Charter*, their mode of reasoning may differ. For example, Indigenous stories, customs, covenants, ceremonies and deliberative circles can be powerful sources of Indigenous law, including on the limits of government power...These can form the basis for Indigenous communities to codify a charter of rights that is adapted to their culture, traditions, and outlook. Rather than a "monolithic form of rights analysis", Indigenous communities can craft protections for human rights which integrate their particular and distinct forms of Indigenous law...These alternative sources of rights and responsibilities can "serve the goal of human dignity as effectively as a western code of human rights" (p. 93). By contrast, the imposition of the *Charter* by the courts risks enabling litigants to "constitutionally interrogate the rich complexity of Aboriginal societies according to a rigid analytic grid of individual right and state obligation" (P. Macklem, *Indigenous Difference and the Constitution of Canada* (2001), at p. 195).

[501] Of course, the foregoing analysis is not to say that *Charter* protections are inherently in tension with the desires of Indigenous communities, including the VGFN. Indigenous value systems and legal traditions should not be treated as monolithic, and it should not be assumed that individual rights are necessarily in conflict with collective Indigenous governance (Metallic, at p. 15). Moreover, Indigenous communities are not static: interaction with other societies over centuries, and the adoption of different systems of governance via treaty, may increase the commensurability of *Charter* protections...The *Charter* remains an exceptional achievement, which explains why a variety of Indigenous groups, especially women's groups, have supported its content...

[502] What is clear, however, is that the *Charter* should not be imposed on Indigenous communities. As noted by Professor McNeil, "[f]or the *Charter* to be unilaterally imposed on their governments today through a questionable interpretation of section 32(1) would turn the clock back to a time when the Aboriginal peoples were often not given the opportunity to participate when important decisions affecting their constitutional rights were made" (pp. 70-71). It is not for this Court to scrutinize the wisdom or fairness of the VGFN's choices by transposing an instrument designed by and for the federal and provincial governments onto the Vuntut Gwitchin, who did not participate in its creation or agree to its terms. To do so would be to subject the Vuntut Gwitchin to the sort of federal oversight from which it sought to remove itself through the VGFN Arrangements.

...

[505] As for policy arguments suggesting that the inapplicability of the *Charter* under s. 32(1) would create a "*Charter*-free zone", such arguments are dismissive of Indigenous approaches to protecting their members. Indeed, they rest on the erroneous assumption that if the *Charter* is not imposed, Indigenous community members will have no protections.

[506] Indigenous communities can and have enacted protections to regulate the interaction between members and their governments. A number of related approaches have been given effect across Canada. An Indigenous community can choose, on its own initiative, to implement an instrument that incorporates protections for members (as the federal and provincial governments did in enacting the *Charter*). Alternatively, it can commit via agreement or treaty — including through self-government agreements — to enact such an instrument. In either case, however, the Indigenous community plays an active role in deciding how it wants to craft such an instrument. Thus, it may enact — or agree to enact — its own protections rooted in its legal traditions; it may adopt an instrument that is inspired by the *Charter*; or it may even agree to the application of *Charter* protections. This may also be a subject of discussion among parties during the negotiation of self-government agreements. I note in passing that since 1995, Canada's negotiation policy has been to seek the insertion of a provision accepting the application of the *Charter* within self-government agreements (see, e.g., the Nisga'a Final Agreement (1999) and the Tla'amin Final Agreement (2014)). Numerous questions arise concerning the effect of such an agreement (e.g., is the actual *Charter* being applied, or are its protections being incorporated? How are such rights enforced, and by which adjudicative bodies? What happens if the *Charter* is amended pursuant to the amending formula between the federal and provincial governments?), but it is not possible to answer these questions in the present case.

[507] What is crucial...is that the foregoing avenues are a product of Indigenous choice. Indigenous communities can choose how to implement effective protections — whether on their own initiative or by mutual agreement with federal, provincial, and territorial authorities — rather than being subjected to the *Charter* via a distorted interpretation of s. 32(1). As I explained, taking reconciliation seriously means respecting Indigenous peoples' ability to "define themselves and to choose by what means to make their decisions, according to their own laws, customs and practices" (*Desautel*, at para. 86).

VI. The VGFN Agreed to the Enactment of Its Own Rights Protections, Rather Than the Application of *Charter* Protections

...

[517] The signatories to the *Self-Government Agreement* agreed to the following provision concerning the VGFN Constitution:

> 10.1 The Vuntut Gwitchin First Nation Constitution shall:
>
> . . .
>
> 10.1.4 recognize and protect the rights and freedoms of Citizens;

Furthermore, s. 10.1.6 stipulates that the VGFN Constitution shall "provide for amending the Constitution by the Citizens" — that is, the citizens of the VGFN. Just as the federal and provincial governments have had the authority to amend the Constitution of Canada since patriation in 1982, s. 10.1.6 provides that the VGFN is able to amend its own Constitution, including the instrument stipulated in s. 10.1.4 recognizing and protecting the rights and freedoms of citizens.

[518] Section 10.1.4's inclusion in the *Self-Government Agreement* confirms the signatories' agreed-upon method for protecting the rights and freedoms of VGFN citizens in a manner that is reconcilable with Vuntut Gwitchin laws, customs, and practices. The provision makes no reference to the *Charter*. Instead, the signatories provided more generally for the recognition and protection of the rights and freedoms of citizens, without requiring the adoption of the exact rights and freedoms set out in the *Charter*, and while providing for the VGFN to amend those protections through its own governance structures.

[519]...Much of Article IV is clearly inspired by the *Charter*, and many of the enumerated rights are nearly identical in wording to *Charter* rights. Despite these similarities, Article IV of the VGFN Constitution is uniquely tailored to the VGFN's own traditions, values, or priorities. For example, the VGFN has chosen to recognize Gwich'in as its official language and to protect its use (Articles IV(15) to (18)). And the VGFN has enshrined a right to access personal information possessed or controlled by the VGFN government (Article IV(20)(a)) — a right with no analogue in the *Charter*. Crucially, for the purposes of the present case, the right to hold office in Vuntut Gwitchin Government is expressly "[s]ubject to residency and other requirements set out in Vuntut Gwitchin Law" (Article IV(4)). The residency requirement itself is part of the VGFN Constitution under Article XI(2) and was added pursuant to constitutional amendments in 2006. The VGFN has thus elevated its view of the importance of its leaders residing on Settlement Land to constitutional status, pursuant to its own priorities and its own values for community leadership.

[520] Article IV of the VGFN Constitution exemplifies how an Indigenous community can enact protections for fundamental rights and freedoms that are commensurate with its own laws, customs, and practices...[I]t is not the case that individual rights are not respected by the VGFN or that VGFN citizens are deprived of fundamental rights and exist in a rights-free zone. The VGFN has constitutionally entrenched rights and freedoms — many of which mirror those in the *Charter* — alongside procedures for VGFN citizens to challenge VGFN laws.

[521] Indeed, Ms. Dickson's own petition pursued an alternative claim that the residency requirement was invalid under the VGFN Constitution. This claim under the VGFN Constitution was mentioned briefly by the trial judge, but the courts below did not decide the claim on the merits, preferring to resolve the case under the *Charter*. The VGFN argues that Ms. Dickson's claim is properly addressed under the VGFN Constitution, rather than under the *Charter*. I agree. Ms. Dickson seeks to challenge an internal rule of the VGFN in order to participate in its governance; her claim must be addressed based on the rights enshrined within the VGFN Constitution, pursuant to the VGFN's own governance structures and processes.

VII. Conclusion

[522]...Having regard to the architecture of the *Constitution Act, 1982*, the relationship between Indigenous peoples and the federal and provincial governments, and the jurisprudence of this Court, it is my view that decisions about how to implement protections for the fundamental rights and freedoms of its citizens also rest with the VGFN. This in no way lessens the rights and freedoms that they enjoy vis-à-vis the federal and provincial governments under the *Charter* as citizens of Canada. Giving effect to Vuntut Gwitchin self-government is a critical part of the promise of reconciliation. This necessarily entails the right for the Vuntut Gwitchin themselves to decide what is fair and just in accordance with those rights and freedoms that they choose to enshrine in their own Constitution.

2.1.1.3 Further Commentary and Questions

1. In *York Region District School Board v Elementary Teachers' Federation of Ontario*, 2024 SCC 22 (CanLII), the Supreme Court determined for the first time that the *Charter* applies to Ontario Public School Boards under the first branch of *Eldridge*. Justice Rowe (Wagner C.J. and Côté, Kasirer and Jamal JJ. concurring) reviewed the *Education Act,* RSO 1990, c. E.2 and determined that "Ontario public school boards are, in effect, an arm of government in that they 'exercise powers conferred on them by provincial legislatures,

powers and functions which they would otherwise have to perform themselves" (...*Godbout*, at para. 51)." Noting that public education is "inherently a governmental function", Justice Rowe concluded that all the actions of Ontario public school boards are subject to *Charter* scrutiny because school boards are government by nature.

2. For commentary on the likely impacts of the decisions in *Dickson* and *York School Board* on the future trajectory of s.32, see e.g. Paul Daly, "Unchartered Territory: *York Region District School Board v Elementary Teachers' Federation of Ontario*, 2024 SCC 22 and *Dickson v Vuntut Gwitchin First Nation*, 2024 SCC 10" (30 September 2024), online (blog) (suggesting that the decisions' focus "…on delegated authority and public functions...is likely to animate arguments for *Charter* application in university settings.For the most part, Canadian universities exercise delegated authority under statute, make binding rules, take highly consequential decisions and perform public functions in educating students and distributing government money. These considerations chime with those relied upon in *York Teachers* and *Dickson*.")

3. In *Dickson,* above, Justice Rowe criticizes the majority's approach to the question of *Charter* application for failing to respect the choices of the VGFN. Justice Rowe explains: "It is not for this Court to scrutinize the wisdom or fairness of the VGFN's choices by transposing an instrument designed by and for the federal and provincial governments onto the Vuntut Gwitchin, who did not participate in its creation or agree to its terms. To do so would be to subject the Vuntut Gwitchin to the sort of federal oversight from which it sought to remove itself through the VGFN Arrangements" (para 502). Is it possible to reconcile Indigenous self-determination and self-governance with the application of the *Charter,* an inherently colonial instrument? For commentary on the relationship between the *Charter* and Indigenous nations and legal orders, see e.g. Naomi Metallic, "Checking our Attachment to the *Charter* and Respecting Indigenous Legal Orders: A Framework for *Charter* Application to Indigenous Governments" (2022) 31:2 Const F: Special Issue on *Dickson v Vuntut Gwitchin First Nation*, 2021 YKCA 5 3; Amy Swiffen, "Constitutional Reconciliation and the *Canadian Charter of Rights and Freedoms*" (2019) 24 Rev Const Stud 85; and John Borrows, "Contemporary Traditional Equality: The Effect of the *Charter* on First Nation Politics" (1994) 43 UNBLJ 19.

2.1.2 Entities that are Controlled by Government

2.1.2.1 *McKinney v University of Guelph*, 1990 CanLII 60 (SCC)

In *McKinney v University of Guelph,* eight university professors and one university librarian alleged that the mandatory retirement policies at four Ontario universities, all of which required retirement at the age of 65, violated their equality rights guaranteed by s.15 of the *Charter.* A threshold question was whether the *Charter* applied to the impugned university policies. A majority of the seven Supreme Court justices who heard the case concluded that the *Charter* did not apply to the mandatory retirement policies at issue. Justice Wilson, in dissent, preferred a different approach to the question of *Charter* application under s.32. Based on her approach, Wilson J. found the retirement policies were properly subject to the *Charter*.

> **La Forest J.** (Dickson C.J. and Gonthier J., concurring)
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> ...
>
> The Application of the *Charter*
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> ...
>
> ...[T]he mere fact that an entity is a creature of statute and has been given the legal attributes of a natural person is in no way sufficient to make its actions subject to the *Charter*. Such an entity may be established to facilitate the performance of tasks that those seeking incorporation wish to undertake and to control, not to facilitate the performance of tasks assigned to government…
>
> ...
>
> It was not disputed that the universities are statutory bodies performing a public service. As such, they may be subjected to the judicial review of certain decisions, but this does not in itself make them part of government within the meaning of s. 32 of the *Charter*…
>
> The *Charter* apart, there is no question of the power of the universities to negotiate contracts and collective agreements with their employees and to include within them provisions for mandatory retirement. These actions are not taken under statutory compulsion, so a *Charter* attack cannot be sustained on that ground. There is nothing to indicate that in entering into these arrangements, the universities were in any way following the dictates of the government. They were acting purely on their own initiative. Unless, then, it can be established that they form part of government, the universities' action here cannot fall within the ambit of the *Charter*. That cannot be answered by the mere fact that they are incorporated and perform an important public service. Many institutions in our society perform functions that are undeniably of an important public nature, but are undoubtedly not part of the government. These can include railroads and airlines, as well as symphonies and institutions of learning. And this may be so even though they are subjected to extensive governmental regulations and even assistance from the public purse … A public purpose test is simply inadequate. It is fraught with difficulty and uncertainty. It is simply not the test mandated by s. 32…
>
> ...[I]f the *Charter* covers municipalities, it is because "municipalities perform a quintessentially governmental function." They enact coercive laws binding on the public generally, for which offenders may be punished… The same can obviously not be said of universities. I hasten to add that I agree with my colleague Wilson J. that the *Charter* is not limited to entities which discharge functions that are inherently governmental in nature. As to what other entities may be subject to the *Charter* by virtue of the functions they perform, I would think that more would have to be shown than that they engaged in activities or the provision of services that are subject to the legislative jurisdiction of either the federal or provincial governments...
>
> The appellants also submit that the universities constitute part of the government under s. 32 of the *Charter* having regard to the nature of their relationship to the provincial government. The entire context must, they say, be looked at including the facts that they are established by statute which determines their powers, objects and governmental structures, that their historical development was as part of a public system of post-secondary education, that their survival depends on public funding, and that government structures largely coordinate and regulate their activities, through operating and capital grants, special funds, control over tuition fees and approval of new programs.
>
> There is no question that the relationship of government to Canadian universities has always been significantly different from that existing in Europe when communities of scholars first banded together to pursue learning. From the early days of this country, several of the provinces acted to establish provincial universities…These statutes set out the universities' powers, functions, privileges and governing structure. While these vary from university to university, they are in general much the same... [The Court briefly reviewed the statutes establishing Ontario universities].
>
> … [The government of Ontario] heavily funds universities on an ongoing basis. The operating grants alone range, according to the evidence, between a low for York of 68.8% of its operating funds to a high for Guelph of 78.9%… The province also provides most of the funds for capital expenditures, and provides special funds earmarked to meet specific policies. It exercises considerable control over new programs by requiring that they be specifically approved to be eligible for public funds.

It is evident from what has been recounted that the universities' fate is largely in the hands of government and that the universities are subjected to important limitations on what they can do, either by regulation or because of their dependence on government funds. It by no means follows, however, that the universities are organs of government. There are many other entities that receive government funding to accomplish policy objectives governments seek to promote. The fact is that each of the universities has its own governing body. Only a minority of its members (or in the case of York, none) are appointed by the Lieutenant-Governor in Council, and their duty is not to act at the direction of the government but in the interests of the university … The remaining members are officers of the Faculty, the students, the administrative staff and the alumni.

The government thus has no legal power to control the universities even if it wished to do so. Though the universities, like other private organizations, are subject to government regulations and in large measure depend on government funds, they manage their own affairs and allocate these funds, as well as those from tuition, endowment funds and other sources...

The legal autonomy of the universities is fully buttressed by their traditional position in society. Any attempt by government to influence university decisions, especially decisions regarding appointment, tenure and dismissal of academic staff, would be strenuously resisted by the universities on the basis that this could lead to breaches of academic freedom. In a word, these are not government decisions. Though the legislature may determine much of the environment in which universities operate, the reality is that they function as autonomous bodies within that environment. There may be situations in respect of specific activities where it can fairly be said that the decision is that of the government, or that the government sufficiently partakes in the decision as to make it an act of government, but there is nothing here to indicate any participation in the decision by the government and, as noted, there is no statutory requirement imposing mandatory retirement on the universities.

…

I, therefore, conclude that the respondent universities do not form part of the government apparatus, so their actions, as such, do not fall within the ambit of the *Charter*. Nor in establishing mandatory retirement for faculty and staff were they implementing a governmental policy.…

[Justices Sopinka and L'Heureux-Dube wrote separate reasons concurring with the conclusion of La Forest J. that the *Charter* did not apply.]

Wilson J. (dissenting)

...

...I do not think that any one test or approach is a panacea. All have something of value to offer since each provides a somewhat different perspective from which to deal with the question what is government. But each alone risks missing a range of bodies that it seems to me must be viewed as part of government, particularly if one is to ensure that the *Charter* does in fact provide unremitting protection for individual rights and liberties. It would seem therefore that the only satisfactory approach under s. 32(1) of the *Charter* is one that is sensitive to the strong points of each of the approaches outlined above.

As a result, I would favour an approach that asks the following questions about entities that are not self-evidently part of the legislative, executive or administrative branches of government:

1. Does the legislative, executive or administrative branch of government exercise general control over the entity in question?

2. Does the entity perform a traditional government function or a function which in more modern times is recognized as a responsibility of the state?

3. Is the entity one that acts pursuant to statutory authority specifically granted to it to enable it to further an objective that government seeks to promote in the broader public interest?

Each of these questions is meant to identify aspects of government in its contemporary context. An affirmative answer to one or more of these questions would, to my mind, be a strong indicator that one is dealing with an entity that forms part of government. I hasten to add, however, that an affirmative answer can never be more than an indicator. It will always be open to the parties to explain why the body in question is not part of government. Likewise a negative answer is not conclusive that the entity is not part of government. It will always be open to the parties to explain that there is some other feature of the entity that the questions listed above do not touch upon but which makes it part of government.

We must at all costs be sensitive to the fact that government is a constantly evolving organism. It follows that the kinds of questions we must ask when trying to identify government must also be capable of evolving. It seems to me that the reason why fixed tests designed to identify government inevitably fail is that they assume that government is static, an assumption that is not borne out by an historical and comparative review of governments in this and other countries. As a result, the questions that I have listed above are not carved in stone. Other questions may have to be added to the list as governments enter or withdraw from different fields. The questions I have listed are intended only as practical guidelines to those trying to decide whether a body that is not self-evidently part of the legislative, executive or administrative branches of government may nonetheless be part of government for purposes of s. 32(1) of the *Charter*.

[On the facts and evidence of *McKinney*, Justice Wilson answered the three questions above as follows: 1) "…the province exercises quite substantial, although in some areas indirect, control over [universities]"; 2) "…education at every level has been a traditional function of governments in Canada"; and 3) "…the fact that the universities are so heavily funded, the fact that government regulation seems to have gone hand in hand with funding, together with the fact that the governments are discharging through the universities a traditional government function pursuant to statutory authority leads me to conclude that the universities form part of 'government' for purposes of s.32."]

2.1.2.2 *Greater Vancouver Transportation Authority v Canadian Federation of Students — British Columbia Component*, 2009 SCC 31 (CanLII)

The Canadian Federation of Students (CFS), representing college and university students in British Columbia, and the British Columbia Teachers' Federation (BCTF), representing public school teachers, wanted to purchase advertising space on the sides of buses operated by TransLink and BC Transit, the corporations that operate public transportation systems in the province of British Columbia. The intended advertisements encouraged young people to vote in an upcoming provincial election. For example, one of the proposed ads stated: "Tuition fees ROCKTHEVOTEBC.com - Minimum wage ROCKTHEVOTEBC.com - Environment ROCKTHEVOTEBC.com." Another ad from the BCTF stated: "2,500 fewer teachers, 114 schools closed. Your kids. Our students. Worth speaking out for." The transit authorities rejected the proposed advertisements because they violated their policies that banned political advertisements on public buses. CFS and BCTF alleged that these policies violated their freedom of expression guaranteed by s.2(b) of the *Charter*. As a threshold matter, the Supreme Court had to determine whether the *Charter* applied to the policies of the two transit authorities.

Deschamps J. (McLachlin C.J. and Binnie, LeBel, Abella, Charron and Rothstein JJ., concurring)

...

3. Analysis

[The Court reviewed s.32 and the *Eldridge* framework].

…

[16] Thus [according to *Eldridge*] there are two ways to determine whether the *Charter* applies to an entity's activities: by enquiring into the nature of the entity or by enquiring into the nature of its activities. If the entity is found to be "government", either because of its very nature or because the government exercises substantial control over it, all its activities will be subject to the *Charter*. If an entity is not itself a government entity but nevertheless performs governmental activities, only those activities which can be said to be governmental in nature will be subject to the *Charter.*

…

3.1.1. Application of the Principles to the Transit Authorities

[17]…BC Transit does not address the trial judge's conclusion that it is itself "government" within the meaning of s. 32 of the *Charter*. It is clearly a government entity. It is a statutory body designated by legislation as an "agent of the government", with a board of directors whose members are all appointed by the Lieutenant Governor in Council (*British Columbia Transit Act*, RSBC 1996, c. 38...). Moreover, the Lieutenant Governor in Council has the power to manage BC Transit's affairs and operations by means of regulations (s. 32(2)). Thus, BC Transit cannot be said to be operating autonomously from the provincial government, since the latter has the power to exercise substantial control over its day-to-day activities.

[18] As for TransLink, it argues that the trial judge and the majority of the Court of Appeal erred in finding that it is "government" within the meaning of s. 32 of the *Charter*. Prowse J.A. found that because TransLink is controlled by the G[reater] V[ancouver] R[egional] D[istrict], which itself is "government" within the meaning of s. 32, it is an apparatus of government. She based her finding that the GVRD was governmental in nature on s. 5 of the *Local Government Act*, RSBC 1996, c. 323 ("LGA"), which defines "local government" as "the council of a municipality" and "the board of a regional district". She added that regional districts are corporations (s. 173), that they are governed by boards (s. 174) and that the boards consist of municipal directors and electoral area directors (s. 783(1)). Furthermore, the LGA describes regional districts as "independent, responsible and accountable order[s] of government within their jurisdiction" and states that a regional district is intended to provide "good government for its community" (s. 2(a)). The GVRD therefore clearly falls within the definition of "local government".

[19] One might add to the criteria upon which Prowse J.A. based her conclusion the facts that, subject to specific limitations established in the LGA, a regional district may operate any service that the board considers necessary or desirable for its geographic area... and that it may recover the costs of its services... Moreover, the board of a regional district has the power to make bylaws which are enforceable by fine or by imprisonment... Consequently, not only is the GVRD designated as "government" in the *LGA*, but the legislature has granted it powers consistent with that status.

[20] Having established that the GVRD is "government", Prowse J.A. went on to conclude that the GVRD exercises substantial control over TransLink:

> . . . the GVRD has substantial control over the day-to-day operations of TransLink which, when combined with the GVRD's powers to appoint the vast majority of the members of TransLink's board of directors, satisfies the control test posited by the authorities. To the extent that the GVRD does not have complete control over TransLink, control is shared by the provincial government. In either case, I conclude that TransLink cannot be viewed to be operating independently or autonomously in a manner similar to either universities or hospitals. It has no independent agenda other than that provided in its constituent *Act* and no history of being an entity independent of government. [para. 93]

[21] Prowse J.A. came to this conclusion after reviewing the *Greater Vancouver Transportation Authority Act*, S.B.C. 1998, c. 30, and remarking that the GVRD must appoint 12 of the 15 directors on TransLink's board...and must ratify TransLink's strategic transportation plan...that TransLink must "prepare all its capital and service plans and policies and carry out all its activities and services in a manner that is consistent with its strategic transportation plan"...and that the GVRD must ratify bylaws relating to a variety of taxes and levies...Although TransLink is not an agent of the government, Prowse J.A. concluded that it is substantially controlled by a local government entity — the GVRD — and is therefore itself a government entity. The control mechanisms are substantial, and I agree with Prowse J.A.'s analysis and conclusion on this issue.

[22] The conclusion that TransLink is a government entity is also supported by the principle enunciated by La Forest J. in *Eldridge* (at para. 42) and *Godbout* (at para. 48) that a government should not be able to shirk its *Charter* obligations by simply conferring its powers on another entity. The creation of TransLink by statute in 1998 and the partial vesting by the province of control over the region's public transit system in the GVRD was not a move towards the privatization of transit services, but an administrative restructuring designed to place more power in the hands of local governments...The devolution of provincial responsibilities for public transit to the GVRD cannot therefore be viewed as having created a "*Charter*-free" zone for the public transit system in Greater Vancouver.

...

[24] In summary, both BC Transit and TransLink are "government" within the meaning of s. 32 of the *Charter*. Consequently, it is not necessary to enquire into the nature of individual activities, because all their activities are subject to the *Charter*...

…

2.1.2.3 Further Commentary and Questions

1. The Supreme Court decided three other cases involving mandatory retirement policies at the same time as *McKinney*. *Harrison v University of British Columbia,* 1990 CanLII 61 (SCC), followed *McKinney* in finding that the *Charter* did not apply to the University of British Columbia's mandatory retirement policy. In *Stoffman v Vancouver General Hospital*, 1990 CanLII 62 (SCC), the Court considered a similar policy at a Vancouver hospital. The hospital had a different governance structure than the universities in *McKinney* and *Harrison*. A majority of the Court concluded that the *Charter* did not apply to the retirement policy because hospital policies were controlled by the board of trustees, not the provincial government. Justices Wilson, Cory and L'Heureux-Dube, the dissenting justices in *McKinney,* concluded in dissent that the government exercised a "substantial amount of control" over the hospital in three key areas: governing structure, policy, and funding (534). Finally, in *Douglas/Kwantlen Faculty Association v Douglas College*, 1990 CanLII 63 (SCC), which involved a challenge to a mandatory retirement policy that was part of a collective agreement, the Court unanimously concluded that the *Charter* applied to the negotiation and administration of the collective agreement between the community college and the union representing its faculty members and librarians. Key to this conclusion was the Court's determination that the government was directing the operation of Douglas College to such a degree that in carrying out its functions, "the college is performing acts of government." The

Court distinguished this structure from the universities in *McKinney* and *Harrison*, which, "though extensively regulated and funded by government, are essentially autonomous bodies…" Is the Court's distinction between universities and colleges tenable? ? Are there any consequences that might flow from an approach to *Charter* application that differentiates between colleges and universities?

2. As the cases above reveal, the question of whether a government exercises sufficient control over an entity to make the *Charter* applicable is a highly context-specific inquiry. Considering the decisions in *McKinney, Stoffman, Douglas College,* and *City of Vancouver*, is it possible to identify which factors tend to support the conclusion that the government exercises sufficient control over the entity to make the *Charter* applicable, and which factors tend to support the opposite conclusion? Does this approach provide sufficient predictability in determining whether the *Charter* applies to a given entity?

2.2 Branch 2: Government Activities

Governments cannot escape their *Charter* obligations by delegating government activities to non-governmental entities. In *Eldridge,* La Forest J. explained, "it is a basic principle of constitutional theory that since legislatures may not enact laws that infringe the *Charter*, they cannot authorize or empower another person or entity to do so" (para 35). This principle is captured in the second branch of the *Eldridge* government action framework, which provides that even where an entity itself is not government, where it is carrying out an activity that can be "ascribed to government – like implementing a government program or exercising statutory powers" – the entity will be subject to *Charter* scrutiny only in respect of that activity *(Eldridge* at para 44).

2.2.1 Entities Implementing Government Programs

2.2.1.1 *Eldridge v British Columbia (Attorney General)*, 1997 CanLII 327 (SCC)

Robin Eldridge, John Warren and Linda Warren were deaf and used sign language to communicate. They argued that the lack of sign language interpreters in the British Columbia healthcare system impeded their ability to communicate with doctors and other healthcare providers and violated their equality rights under s.15 of the *Charter.* In British Columbia, hospitals are funded under the *Hospital Insurance Act*, RSBC, 1996, c.204, pursuant to which hospitals have discretion to determine the services they provide for free. Healthcare services delivered outside of hospitals are funded by the *Medical and Health Care Services Act*, SBC, 1992, c.-76, which delegates decisions about which services will be designated as "benefits" under the *Act* to a Medical Services Commission. Neither scheme provided for sign language interpreters. Before the Court could consider the equality claim, it had to determine whether the *Charter* applied to hospitals and outside healthcare delivery service providers in respect of the decisions not to fund sign language interpretation. Seven years earlier, the Supreme Court determined in *Stoffman v Vancouver General Hospital*, 1990 CanLII 62 (SCC), that the *Charter* did not apply to Vancouver General Hospital's internal mandatory retirement policy. The *Stoffman* ruling was distinguished in *Eldridge*, below.

> **La Forest J.** [for a unanimous Court]
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> ...
>
> *The Application of the Charter to the Medical Services Commission and Hospitals*
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> [35] Having identified the sources of the alleged s.15(1) violations, it remains to be considered whether the *Charter* actually applies to them. At first blush, this may seem to be a curious question. As I have discussed, it is a basic principle of constitutional theory that since legislatures may not enact laws that infringe the *Charter*, they cannot authorize or empower another person or entity to do so; *Slaight [Communications Inc. v Davidson,* 1989 CanLII 92 (SCC), [1989] 1 SCR 1038]. It is possible, however, for a legislature to give authority to a body that is not subject to the *Charter*. Perhaps the clearest example of this is the power of incorporation. Private corporations are entirely creatures of statute; they have no power or authority that does not derive from the legislation that created them. The *Charter* does not apply to them, however, because legislatures have not entrusted them to implement specific governmental policies. Of course, governments may desire corporations to serve certain social and economic purposes, and may adjust the terms of their existence to accord with those goals. Once brought into being, however, they are completely autonomous from government; they are empowered to exercise only the same contractual and proprietary powers as are possessed by natural persons. As a result, while the legislation creating corporations is subject to the *Charter*, corporations themselves are not part of "government" for the purposes of s. 32 of the *Charter*.
>
> [36] Legislatures have created many other statutory entities, however, that are not as clearly autonomous from government. There are myriad public or quasi-public institutions that may be independent from government in some respects, but in other respects may exercise delegated governmental powers or be otherwise responsible for the implementation of government policy. When it is alleged that an action of one of these bodies, and not the legislation that regulates them, violates the *Charter*, it must be established that the entity, in performing that particular action, is part of "government" within the meaning of s. 32 of the *Charter*.
>
> …
>
> [41] While it is well established that the *Charter* applies to all the activities of government, whether or not those activities may be otherwise characterized as "private", this Court has also recognized that the *Charter* may apply to non-governmental entities in certain circumstances...It has been suggested, for example, that the *Charter* will apply to a private entity when engaged in activities that can in some way be attributed to government. …
>
> [42] It seems clear, then, that a private entity may be subject to the *Charter* in respect of certain inherently governmental actions. The factors that might serve to ground a finding that an activity engaged in by a private entity is "governmental" in nature do not readily admit of any *a priori* elucidation. *McKinney [v University of Guelph*, 1990 CanLII 60 (SCC), [1990] 3 SCR 229] makes it clear, however, that the *Charter* applies to private entities in so far as they act in furtherance of a specific governmental program or policy. In these circumstances, while it is a private actor that actually implements the program, it is government that retains responsibility for it. The rationale for this principle is readily apparent. Just as governments are not permitted to escape *Charter* scrutiny by entering into commercial contracts or other "private" arrangements, they should not be allowed to evade their constitutional responsibilities by delegating the implementation of their policies and programs to private entities…
>
> [43] Two important points must be made with respect to this principle. First, the mere fact that an entity performs what may loosely be termed a "public function", or the fact that a particular activity may be described as "public" in nature, will not be sufficient to bring it within the purview of "government" for the purposes of s. 32 of the *Charter*…
>
> In order for the *Charter* to apply to a private entity, it must be found to be implementing a specific governmental policy or program. As I stated further on in *McKinney*, at p. 269, "[a] public purpose test is simply inadequate" and "is simply not the test mandated by s. 32".
>
> [44] The second important point concerns the precise manner in which the *Charter* may be held to apply to a private entity. As the case law discussed above makes clear, the *Charter* may be found to apply to an entity on one of two bases. First, it may be determined that the entity is itself "government" for the purposes of s. 32. This involves an inquiry into whether the entity whose actions have given rise to the alleged *Charter* breach can, either by its very nature or in virtue of the degree of governmental control exercised over it, properly be characterized as "government" within the meaning of s. 32(1). In such cases, all of the activities of the entity will be subject to the *Charter*,

regardless of whether the activity in which it is engaged could, if performed by a non-governmental actor, correctly be described as "private". Second, an entity may be found to attract *Charter* scrutiny with respect to a particular activity that can be ascribed to government. This demands an investigation not into the nature of the entity whose activity is impugned but rather into the nature of the activity itself. In such cases, in other words, one must scrutinize the quality of the act at issue, rather than the quality of the actor. If the act is truly "governmental" in nature -- for example, the implementation of a specific statutory scheme or a government program -- the entity performing it will be subject to review under the *Charter* only in respect of that act, and not its other, private activities.

[45] In the present case, the controversy over the *Charter*'s application centres on the question of hospitals. The respondents argue that if the failure to provide sign language interpreters does not flow from the *Act* but rather from the discretion of individual hospitals, then s. 15(1) is not engaged because the *Charter* does not apply to hospitals. Hospitals, they say, are not "government" for the purposes of s. 32 of the *Charter*. In their view, this result flows from a straightforward application of this Court's decision in *Stoffman*...

[46] The foregoing analysis, however, establishes that it is not enough for the respondents to say that hospitals are not "government" for the purposes of s. 32 of the *Charter*. In *Stoffman*, the Court found that the Vancouver General Hospital was not part of the apparatus of government and that its adoption of a mandatory retirement policy did not implement a government policy. *Stoffman* made it clear that, as presently constituted, hospitals in British Columbia are non-governmental entities whose private activities are not subject to the *Charter*. It remains to be seen, however, whether hospitals effectively implement governmental policy in providing medical services under the *Hospital Insurance Act*.

[47] [I]n *Stoffman*...I determined only that the fact that an entity performs a "public function" in the broad sense does not render it "government" for the purposes of s. 32 and specifically left open the possibility that the *Charter* could be applied to hospitals in different circumstances. …

[48] …[T]he hospital's mandatory retirement policy [in *Stoffman*]… was a matter of internal hospital management...It was not instigated by the government and did not reflect its mandatory retirement policy. Hospitals in British Columbia, moreover, exhibited great variety in their approaches to retirement. That each of these policies obtained ministerial approval reflected the large measure of managerial autonomy accorded to hospitals in this area.

[49] The situation in the present appeal is very different. The purpose of the *Hospital Insurance Act* is to provide particular services to the public. Although the benefits of that service are delivered and administered through private institutions -- hospitals -- it is the government, and not hospitals, that is responsible for defining both the content of the service to be delivered and the persons entitled to receive it. As previously noted, s. 3(1) states that every person eligible to receive benefits is "entitled to receive the general hospital services provided under this *Act*". Section 5(1) defines "general hospital services" to include various services normally available in hospitals. As the definition of "hospital" in s. 1 makes clear, moreover, hospitals are required to furnish the general hospital services specified in the *Act.* While no single hospital makes all of these services available, the net effect of the *Act* is to entitle every qualified person to receive, and to require hospitals to supply, a complete range of medically required hospital services. Indeed, if the legislation did not assure this, it would run afoul of the *Canada Health Act*. It is also apparent that while hospitals are funded on a "lump sum" and not a "fee-for-service" basis, they are not entirely free to spend this money as they choose. This is apparent from s. 10(1) of the Act, which mandates the annual payment of a sum "determined by the minister to reimburse the hospital . . . for the cost of rendering to beneficiaries those general hospital services authorized by this Act the hospital is required by the minister to provide for beneficiaries", as well as from s. 15(3)(c), which authorizes the minister to make "payments to hospitals for the service provided for under this Act" and s. 13(1), which provides that payments to a hospital "for services rendered by it . . . shall be deemed to be payment in full for the services. . . ."

[50] The structure of the *Hospital Insurance Act* reveals, therefore, that in providing medically necessary services, hospitals carry out a specific governmental objective. The *Act* is not, as the respondents contend, simply a mechanism to prevent hospitals from charging for their services. Rather, it provides for the delivery of a comprehensive social program. Hospitals are merely the vehicles the legislature has chosen to deliver this program. It is true that hospitals existed long before the statute, and have historically provided a full range of medical services. In recent decades, however, health care, including that generally provided by hospitals, has become a keystone tenet of governmental policy. he interlocking federal-provincial medicare system I have described entitles all Canadians to essential medical services without charge. Although this system has retained some of the trappings of the private insurance model from which it derived, it has come to resemble more closely a government service than an insurance scheme...

[51] Unlike *Stoffman*, then, in the present case there is a "direct and . . . precisely-defined connection" between a specific government policy and the hospital's impugned conduct. The alleged discrimination -- the failure to provide sign language interpretation -- is intimately connected to the medical service delivery system instituted by the legislation. The provision of these services is not simply a matter of internal hospital management; it is an expression of government policy. Thus, while hospitals may be autonomous in their day-to-day operations, they act as agents for the government in providing the specific medical services set out in the *Act.* The Legislature, upon defining its objective as guaranteeing access to a range of medical services, cannot evade its obligations under s. 15(1) of the *Charter* to provide those services without discrimination by appointing hospitals to carry out that objective. In so far as they do so, hospitals must conform with the *Charter*.

[52] The case of the Medical Services Commission is more straightforward. It was not contested that the *Charter* applies to the Commission in exercising its power to determine whether a service is a benefit pursuant to s. 4(1) of the *Medical and Health Care Services Act*. It is plain that in so doing, the Commission implements a government policy, namely, to ensure that all residents receive medically required services without charge. In lieu of setting out a comprehensive list of insured services in legislation, the government has delegated to the Commission the power to determine what constitutes a "medically required" service. There is no doubt, therefore, that in exercising this discretion the Commission acts in governmental capacity and is thus subject to the *Charter*...

…

2.2.1.2 Further Commentary and Questions

1. In Martha Jackman, "The Application of the Canadian *Charter* in the Health Care Context" (2000-2001) 9 Health L Rev 22, Jackman describes the significant implications of *Eldridge* for the delivery of healthcare in Canada. She writes: "With the Supreme Court's decision in *Eldridge*, the potential for invoking the *Charter* in the health care context has expanded significantly. In its earlier decisions in *Dolphin Delivery* and in *Stoffman*, the Court appeared to limit the application of the *Charter* to entities which were subject to a degree of governmental control such that they could be characterized as being 'part of government' for the purposes of section 32(1). In the heath care context...such a sharp distinction between 'public' and 'private' does not exist" (25). Why might the provision of healthcare in Canada be at odds with a "sharp distinction between 'public' and 'private'", and what are the implications of this characterization for s.32 of the *Charter*?

2.2.2 Entities Exercising Statutory Powers

2.2.2.1 *Blencoe v British Columbia (Human Rights Commission)*, 2000 SCC 44 (CanLII)

Robin Blencoe was accused of sexual harassment in two complaints filed with the British Columbia Human Rights Commission pursuant to the *Human Rights Code*, RSBC 1996, c. 210. Following the Commission's investigation, hearings before the British Columbia Human

Rights Tribunal were scheduled to commence more than 30 months after the initial complaints were filed. Blencoe argued that the delay in processing the complaints against him resulted in negative consequences for himself and his family, violating his rights to liberty and security of the person under s.7 of the *Charter*. Assessing this argument required a determination of whether the *Charter* applied to the actions of the British Columbia Human Rights Commission, a statutory body established under, and acting pursuant to, the *Human Rights Code.*

Bastarache J. (McLachlin C.J. and L'Heureux-Dubé, Gonthier, Major JJ, concurring)

…

VI. Analysis

A. Does the Charter Apply to the Actions of the British Columbia Human Rights Commission?

…

[32] It is clear that both the federal Parliament and provincial legislatures are bound by the *Charter*. However, one threshold issue which has been raised in this case is whether the Commission and the Tribunal are agents of government pursuant to s.32 of the *Charter*…

[33] For…the purposes of this appeal, it is only necessary to address the *Charter* 's applicability to the actions of the Commission since the prejudice suffered by the respondent is alleged to have resulted from unreasonable delay in the actions of the Commission.

[34] The mere fact that a body is independent of government is not determinative of the *Charter*'s application, nor is the fact that a statutory provision is not impugned. Being autonomous or independent from government is not a conclusive basis upon which to hold that the *Charter* does not apply.

[35] Bodies exercising statutory authority are bound by the *Charter* even though they may be independent of government. This was confirmed by La Forest J., speaking for a unanimous Court in *Eldridge v. British Columbia (Attorney General)*…at para. 21:

> There is no doubt, however, that the *Charter* also applies to action taken under statutory authority. The rationale for this rule flows inexorably from the logical structure of s. 32. As Professor Hogg explains in his *Constitutional Law of Canada* (3rd ed. 1992 (loose-leaf)), vol. 1, at pp. 34-8.3 and 34-9:
>
> > Action taken under statutory authority is valid only if it is within the scope of that authority. Since neither Parliament nor a Legislature can itself pass a law in breach of the *Charter*, neither body can authorize action which would be in breach of the *Charter*. Thus, the limitations on statutory authority which are imposed by the *Charter* will flow down the chain of statutory authority and apply to regulations, by-laws, orders, decisions and all other action (whether legislative, administrative or judicial) which depends for its validity on statutory authority.
>
> There is no doubt that the Commission is created by statute and that all of its actions are taken pursuant to statutory authority.

[36] One distinctive feature of actions taken under statutory authority is that they involve a power of compulsion not possessed by private individuals (P. W. Hogg, *Constitutional Law of Canada* (loose-leaf ed.), vol. 2, at p. 34-12). Clearly the Commission possesses more extensive powers than a natural person. The Commission's authority is not derived from the consent of the parties. The *Human Rights Code* grants various powers to the Commission to both investigate complaints and decide how to deal with such complaints…

[37] The Commission in this case cannot therefore escape *Charter* scrutiny merely because it is not part of government or controlled by government. In *Eldridge*, a unanimous Court concluded that a hospital was bound by the *Charter* since it was implementing a specific government policy or program. The Commission in this case is both implementing a specific government program and exercising powers of statutory compulsion.

[38] With respect to the claim that the Commission exercises judicial functions and is thereby not subject to the *Charter*, the decision of this Court in *Slaight Communications Inc. v. Davidson*, 1989 CanLII 92 (SCC), [1989] 1 SCR 1038, is conclusive. Lamer J. (as he then was), in partial dissent but speaking for a unanimous Court on this point, held that the *Charter* applies to the orders of a statutorily appointed labour arbitrator. This determination was not open to challenge, as expressed by Lamer J., at pp. 1077-78:

> The fact that the *Charter* applies to the order made by the adjudicator in the case at bar is not, in my opinion, open to question. The adjudicator is a statutory creature: he is appointed pursuant to a legislative provision and derives all his powers from the statute. [Emphasis added.]

[39] The facts in *Slaight* and the case at bar share at least one salient feature: the labour arbitrator (in *Slaight*) and the Commission (in the case at bar) each exercise governmental powers conferred upon them by a legislative body. The ultimate source of authority in each of these cases is government. All of the Commission's powers are derived from the statute. The Commission is carrying out the legislative scheme of the *Human Rights Code*. It is putting into place a government program or a specific statutory scheme established by government to implement government policy…The Commission must act within the limits of its enabling statute. There is clearly a "governmental quality" to the functions of a human rights commission which is created by government to promote equality in society generally.

[40] Thus, notwithstanding that the Commission may have adjudicatory characteristics, it is a statutory creature and its actions fall under the authority of the *Human Rights Code*. The state has instituted an administrative structure, through a legislative scheme, to effectuate a governmental program to provide redress against discrimination. It is the administration of a governmental program that calls for *Charter* scrutiny. Once a complaint is brought before the Commission, the subsequent administrative proceedings must comply with the *Charter*. These entities are subject to *Charer* scrutiny in the performance of their functions just as government would be in like circumstances. To hold otherwise would allow the legislative branch to circumvent the *Charter* by establishing statutory bodies that are immune to *Charter* scrutiny. The above analysis leads inexorably to the conclusion that the *Charter* applies to the actions of the Commission.

…

2.2.2.2 Further Commentary and Questions

1. In *Slaight Communications Inc. v Davidson,* 1989 CanLII 92 (SCC), cited in *Blencoe,* a majority of the Supreme Court determined that the *Charter* applied to an order made by a labour adjudicator acting pursuant to the *Canada Labour Code*, RSC 1970, c. L-1, because:

> [t]he adjudicator is a statutory creature: he is appointed pursuant to a legislative provision and derives all his powers from the statute. As the Constitution is the supreme law of Canada and any law that is inconsistent with its provisions is, to the extent of the inconsistency, of no force or effect, it is impossible to interpret legislation conferring discretion as conferring a power to infringe the *Charter*, unless, of course, that power is expressly conferred or necessarily implied. Such an interpretation would require us to declare the legislation to be of no force or effect, unless it could be justified under s. 1. Although this Court must not add anything to legislation or delete anything from it in order to make it consistent with the *Charter*, there is no doubt in my mind that it should also not interpret legislation that is open to more than one interpretation

so as to make it inconsistent with the *Charter* and hence of no force or effect. Legislation conferring an imprecise discretion must therefore be interpreted as not allowing the *Charter* rights to be infringed. Accordingly, an adjudicator exercising delegated powers does not have the power to make an order that would result in an infringement of the *Charter*, and he exceeds his jurisdiction if he does so.

2. The *Charter* has been found to apply to the actions of professional regulatory bodies acting pursuant to statutory schemes established by provincial legislatures, including law societies. See eg: *Re Klein and Law Society of Upper Canada*, 1985 CanLII 3086 (ON SCDC) (Law Society rules governing lawyer advertising subject to the *Charter*); *Black v Law Society of Alberta*, 1989 CanLII 132 (SCC) (*Charter* applied to Law Society rules prohibiting lawyer partnerships with lawyers outside of Alberta); and *Histed v Law Society of Manitoba*, 2007 MBCA 150 (CanLII) (*Charter* applied to a decision of Law Society's disciplinary body).

3 Government Inaction

The application of the *Charter* to "all matters within the authority" of Parliament and the provincial and territorial governments means that the *Charter* is "not restricted to situations where the government actively encroaches on rights" (*Vriend v Alberta*, 1998 CanLII 816 (SCC) at para 60). The *Charter* can apply equally to government omissions.

3.1 *Vriend v Alberta*, 1998 CanLII 816 (SCC), [1998] 1 SCR 493

Delwin Vriend was fired from his job at a Christian college after his employers learned that he was gay. Vriend wanted to file a human rights complaint under Alberta's *Individual's Rights Protection Act*, SA 1972, c 2 (*IRPA*) alleging employment discrimination on the basis of sexual orientation. The *IRPA* prohibited discrimination in employment on the basis of several prohibited grounds including race, marital status and religious beliefs, but not sexual orientation. The legislative history demonstrated that sexual orientation had been deliberately omitted from the *IRPA.* As a result, Vriend's complaint was rejected. Vriend sought a declaration that the omission of sexual orientation from Alberta's *IRPA* violated his equality rights under s.15 of the *Charter*. This required the Court to consider whether the *Charter* applied to the legislative omission at issue.

Cory J. (Lamer CJ and Gonthier, McLachlin, Iacobucci and Bastarache JJ concurring)…

…

1. Application of the *Charter* to a Legislative Omission

[50] Does s.32 of the *Charter* prohibit consideration of a s. 15 violation when that issue arises from a legislative omission?

…

[52] This issue is resolved simply by determining whether the subject of the challenge in this case is one to which the *Charter* applies pursuant to s. 32. Questions relating to the nature of the legislature's decision, its effect, and whether it is neutral, are relevant instead to the s. 15 analysis. The threshold test demands only that there is some "matter within the authority of the legislature" which is the proper subject of a *Charter* analysis. At this preliminary stage no judgment should be made as to the nature or validity of this "matter" or subject. Undue emphasis should not be placed on the threshold test since this could result in effectively and unnecessarily removing significant matters from a full *Charter* analysis.

[53] Further confusion results when arguments concerning the respective roles of the legislature and the judiciary are introduced into the s. 32 analysis. These arguments put forward the position that courts must defer to a decision of the legislature not to enact a particular provision, and that the scope of *Charter* review should be restricted so that such decisions will be unchallenged. I cannot accept this position. Apart from the very problematic distinction it draws between legislative action and inaction, this argument seeks to substantially alter the nature of considerations of legislative deference in *Charter* analysis. The deference very properly due to the choices made by the legislature will be taken into account in deciding whether a limit is justified under s. 1 and again in determining the appropriate remedy for a *Charter* breach…

…

[56] It is suggested that this appeal represents a contest between the power of the democratically elected legislatures to pass the laws they see fit, and the power of the courts to disallow those laws, or to dictate that certain matters be included in those laws. To put the issue in this way is misleading and erroneous. Quite simply, it is not the courts which limit the legislatures. Rather, it is the Constitution, which must be interpreted by the courts, that limits the legislatures. This is necessarily true of all constitutional democracies. Citizens must have the right to challenge laws which they consider to be beyond the powers of the legislatures. When such a challenge is properly made, the courts must, pursuant to their constitutional duty, rule on the challenge. It is said, however, that this case is different because the challenge centres on the legislature's failure to extend the protection of a law to a particular group of people. This position assumes that it is only a positive act rather than an omission which may be scrutinized under the *Charter*. In my view, for the reasons that will follow, there is no legal basis for drawing such a distinction. In this as in other cases, the courts have a duty to determine whether the challenge is justified. It is not a question…of the courts imposing their view of "ideal" legislation, but rather of determining whether the challenged legislative act or omission is constitutional or not.

…

[59] The respondents contend that a deliberate choice not to legislate should not be considered government action and thus does not attract *Charter* scrutiny. This submission should not be accepted. They assert that there must be some "exercise" of "s.32 authority" to bring the decision of the legislature within the purview of the *Charter*. Yet there is nothing either in the text of s.32 or in the jurisprudence concerned with the application of the *Charter* which requires such a narrow view of the *Charter*'s application.

[60] The relevant subsection, s. 32(1)(*b*), states that the *Charter* applies to "the legislature and government of each province in respect of all matters within the authority of the legislature of each province". There is nothing in that wording to suggest that a positive act encroaching on rights is required; rather the subsection speaks only of matters within the authority of the legislature. Dianne Pothier has correctly observed that s.32 is "worded broadly enough to cover positive obligations on a legislature such that the *Charter* will be engaged even if the legislature refuses to exercise its authority" ("The Sounds of Silence: *Charter* Application when the Legislature Declines to Speak" (1996), 7 *Constitutional Forum* 113, at p. 115). The application of the *Charter* is not restricted to situations where the government actively encroaches on rights.

[61] The *IRPA* is being challenged as unconstitutional because of its failure to protect *Charter* rights, that is to say its underinclusiveness. The mere fact that the challenged aspect of the Act is its underinclusiveness should not necessarily render the *Charter* inapplicable. If an omission were not subject to the *Charter*, underinclusive legislation which was worded in such a way as to simply omit one class rather than to explicitly exclude it would be immune from *Charter* challenge. If this position was accepted, the form, rather than the substance, of the legislation would determine whether it was open to challenge. This result would be illogical and more importantly unfair. Therefore, where, as here, the challenge concerns an Act of the legislature that is underinclusive as a result of an omission, s. 32 should not be interpreted as precluding the application of the *Charter*.

> [62] It might also be possible to say in this case that the deliberate decision to omit sexual orientation from the provisions of the *IRPA* is an "act" of the Legislature to which the *Charter* should apply. This argument is strengthened and given a sense of urgency by the considered and specific positive actions taken by the government to ensure that those discriminated against on the grounds of sexual orientation were excluded from the protective procedures of the Human Rights Commission. However, it is not necessary to rely on this position in order to find that the *Charter* is applicable.
>
> [63] It is also unnecessary to consider whether a government could properly be subjected to a challenge under s.15 of the *Charter* for failing to act at all, in contrast to a case such as this where it acted in an underinclusive manner. It has been held that certain provisions of the *Charter*, for example those dealing with minority language rights (s.23), do indeed require a government to take positive actions to ensure that those rights are respected (see *Mahe v. Alberta*, 1990 CanLII 133 (SCC), [1990] 1 SCR 342, at p. 393; *Reference re Public Schools Act (Man.), s. 79(3), (4) and (7)*, 1993 CanLII 119 (SCC), [1993] 1 SCR 839, at pp. 862-63 and 866).
>
> …

3.2 Further Commentary and Questions

1. The *Charter* will apply where a government fails to take steps to fulfill positive obligations imposed by a *Charter* right. See, for example, *Arsenault-Cameron v Prince Edward Island*, 2000 SCC 1 (CanLII), where a decision by Prince Edward Island not to provide adequate funding to local minority language schools pursuant to its obligations under s.23 of the *Charter*, which "mandates that provincial governments do whatever is practically possible to preserve and promote minority language education" (at para 26) was subject to *Charter* scrutiny.
2. Courts have drawn a distinction between situations where a government fails to act at all and where a government acts in an underinclusive manner (see *Vriend* at para 63, above). Generally, the *Charter* only applies to the latter context; where a government decides to act, by creating a law, policy or program, it must do so in a non-discriminatory way: see e.g. *Schacter v Canada*, 1992 CanLII 74 (SCC), (*Charter* applied to a challenge to the parental leave provisions of the *Unemployment Insurance Act,* 1971, S.C. 1970-71-72, c. 48, ss. 30); *Eldridge v British Columbia (Attorney General),* 1997 CanLII 327 (SCC), (*Charter* applied to the legislative schemes governing the delivery of health care services in the province); and *Chaoulli v Quebec (Attorney General)*, 2005 SCC 35 (CanLII) (Chief Justice McLachlin and Major J., concurring, observing, "The *Charter* does not confer a freestanding constitutional right to health care. However, where the government puts in place a scheme to provide health care, that scheme must comply with the *Charter*" (para 104)). This principle is consistent with the overarching approach to several *Charter* rights, including sections 15 (equality), 7 (life, liberty, and security of the person) and 2 (fundamental freedoms) of the *Charte*r which are primarily understood as preventing governments from acting in *Charter*-infringing ways but not imposing positive obligations on governments to take steps to promote or ensure the realization of these rights.
3. The state action/inaction framework has been subject to significant commentary and critique in the context of equality rights. See, for example, Richard Moon, "A Discrete and Insular Right to Equality: Comment on *Andrews v Law Society of British Columbia*" (1989) 21 Ottawa LR 563, observing at 572:

   > The distinction between state action and state inaction (or the distinction between on the one hand, the obligation of the state not to act in a way that contributes to socio-economic inequality and, on the other hand, a positive obligation on the state to correct inequality) loses significance once it is recognized that all inequality in the community can be traced to state action. As well, once the focus of review is on the systemic effects rather than on the purpose of a particular law, the distinction between private and public spheres of action underlying the state-action doctrine begins to dissolve. Although the action of the private property owner may not be subject to judicial review, the state act which gives that owner power may come under review since it can be seen as contributing to inequality in the community. Social and economic inequality which is manifested in private power and re-created by private power ultimately derives from state action.

   See also Dianne Pothier, "The Sounds of Silence: *Charter* Application when the Legislature Declines to Speak" (1996), 7 Constitutional Forum constitutionel 113; Jamie Cameron, "Positive Obligations under Section 15 and 7 of the Charter: A Comment on *Gosselin v Quebec*" (2003) 20 SCLR (2d) 65; Jennifer Koshan, "Redressing the Harms of Government (In)Action: A Section 7 Versus Section 15 *Charter* Showdown" (2013) 22:1 Constitutional Forum 31; and Emmett Macfarlane, "Positive Rights and Section 15 of the *Charter*: Addressing a Dilemma" (2018) 38 NJCL 147.
4. Imagine a scenario where a governmental decision *not* to create a law, policy or program infringes *Charter* rights. What factors do you think inform the reluctance of Canadian courts to apply the *Charter* to government decisions not to act?

4 The Courts and the Common Law

In the first s.32 case heard by the Supreme Court of Canada, *RWDSU v Dolphin Delivery Ltd*., 1986 CanLII 5 (SCC), [1986] 2 SCR 573, the Supreme Court found that the term "government" in s.32 did not include the judiciary. However, in the decades since *Dolphin Delivery*, that aspect of the ruling has been repudiated. Accordingly, the *Charter* will apply to court orders "where the court acts of its own motion in some matter, thus acting as part of government, or where the court is subject to the natural application of particular *Charter* provisions" (Halsbury's Laws of Canada, *Constitutional Law (Charter of Rights)*, "Charter Application to Governmental Actors" II.3.(2) at HCHR-12 (2023 re-issue). That the *Charter* applies to courts makes good sense; otherwise it would be impossible to enforce the *Charter* guarantees that specifically implicate court decisions, like the rights of any person charged with an offence to "be tried within a reasonable time" and "not to be denied reasonable bail without just cause" in s.11(b) and (e) of the *Charter*.

Whether and how the *Charter* applies directly to the common law, which is fashioned by judges and not legislatures, depends on how and by who the common law is relied upon in a given case. Generally, the *Charter* is applicable in cases where the government relies on the common law and is not directly applicable in cases where private parties rely on the common law. This is consistent with the core animating principle of s.32 that the *Charter* applies only to government action. However, even where the *Charter* does not apply directly to an impugned act, it is still relevant because of the overarching principle that judges should "apply and develop the principles of the common law in a manner consistent with the fundamental values enshrined in the *Constitution*" (*Dolphin Delivery* at para 39).

4.1 *RWDSU v. Dolphin Delivery Ltd.*, 1986 CanLII 5 (SCC)

RWDSU, Local 580, was the certified bargaining agent for employees of Purolator — an Ontario shipping company. After Purolator locked out its employees over a labour dispute, RWDSU proposed to picket a different company, Dolphin Delivery, a practice known as "secondary picketing". Dolphin Delivery argued that the secondary picketing amounted to the tort of inducing breach of contract, and on that basis secured an injunction. The core issue at the Supreme Court was "whether secondary picketing by members of a trade union in a labour dispute is a protected activity under s. 2(b) of the...*Charter...*" which protects freedom of expression (at para 1). The *Canada Labour Code,* RSC, 1985, c. L-2 was silent on the permissibility of secondary picketing, leaving the matter to be resolved by the common law. The Supreme Court therefore needed to determine whether the *Charter* applied to the common law in a dispute between private parties.

McIntyre J. (Dickson C.J. and Estey, McIntyre, Chouinard and Le Dain JJ, concurring)

...

Does the *Charter* apply to the Common Law?

[25] In my view, there can be no doubt that it does apply. Section 52(1) of the C*onstitution Act, 1982* provides:

> **52.** (1) The Constitution of Canada is the supreme law of Canada, and any law that is inconsistent with the provisions of the Constitution is, to the extent of the inconsistency, of no force or effect.
>
> **52.** (1) La Constitution du Canada est la loi suprême du Canada; elle rend inopérantes les dispositions incompatibles de toute autre règle de droit.

The English text provides that "any law that is inconsistent with the provisions of the Constitution is, to the extent of the inconsistency, of no force or effect". If this language is not broad enough to include the common law, it should be observed as well that the French text adds strong support to this conclusion in its employment of the words "*elle rend inopérantes les dispositions incompatibles de tout autre règle de droit*". (Emphasis added.) To adopt a construction of s. 52(1) which would exclude from *Charter* application the whole body of the common law which in great part governs the rights and obligations of the individuals in society, would be wholly unrealistic and contrary to the clear language employed in s. 52(1) of the *Act.*

Does the *Charter* apply to private [action]?

[McIntyre J. reviewed the text of s.32 and the views of several commentators on the question of whether the *Charter* applied to private action, and agreed that it does not].

...

[34] It is my view that s. 32 of the *Charter* specifies the actors to whom the *Charter* will apply. They are the legislative, executive and administrative branches of government. It will apply to those branches of government whether or not their action is invoked in public or private litigation. It would seem that legislation is the only way in which a legislature may infringe a guaranteed right or freedom. Action by the executive or administrative branches of government will generally depend upon legislation, that is, statutory authority. Such action may also depend, however, on the common law, as in the case of the prerogative. To the extent that it relies on statutory authority which constitutes or results in an infringement of a guaranteed right or freedom, the *Charter* will apply and it will be unconstitutional. The action will also be unconstitutional to the extent that it relies for authority or justification on a rule of the common law which constitutes or creates an infringement of a *Charter* right or freedom. In this way the *Charter* will apply to the common law, whether in public or private litigation. It will apply to the common law, however, only in so far as the common law is the basis of some governmental action which, it is alleged, infringes a guaranteed right or freedom.

[35] The element of governmental intervention necessary to make the *Charter* applicable in an otherwise private action is difficult to define. We have concluded that the *Charter* applies to the common law but not between private parties. The problem here is that this is an action between private parties in which the appellant resists the common law claim of the respondent on the basis of a *Charter* infringement. The argument is made that the common law, which is itself subject to the *Charter*, creates the tort of civil conspiracy and that of inducing a breach of contract. The respondent has sued and has procured the injunction which has enjoined the picketing on the basis of the commission of these torts. The appellants say the injunction infringes their *Charter* right of freedom of expression under s. 2(b)...

...

[38]...[I]t is difficult and probably dangerous to attempt to define with narrow precision that element of governmental intervention which will suffice to permit reliance on the *Charter* by private litigants in private litigation...

[39] It would also seem that the *Charter* would apply to many forms of delegated legislation, regulations, orders in council, possibly municipal by-laws, and by-laws and regulations of other creatures of Parliament and the Legislatures. It is not suggested that this list is exhaustive. Where such exercise of, or reliance upon, governmental action is present and where one private party invokes or relies upon it to produce an infringement of the *Charter* rights of another, the *Charter* will be applicable. Where, however, private party "A" sues private party "B" relying on the common law and where no act of government is relied upon to support the action, the *Charter* will not apply. I should make it clear, however, that this is a distinct issue from the question whether the judiciary ought to apply and develop the principles of the common law in a manner consistent with the fundamental values enshrined in the Constitution. The answer to this question must be in the affirmative. In this sense, then, the *Charter* is far from irrelevant to private litigants whose disputes fall to be decided at common law. But this is different from the proposition that one private party owes a constitutional duty to another, which proposition underlies the purported assertion of *Charter* causes of action or *Charter* defences between individuals.

[40] Can it be said in the case at bar that the required element of government intervention or intrusion may be found?...If in our case one could point to a statutory provision specifically outlawing secondary picketing of the nature contemplated by the appellants, the case--assuming for the moment an infringement of the *Charter* [and subject to s.1] -- ...the statutory provision could be struck down....

[41] In the case at bar… we have no offending statute. We have a rule of the common law which renders secondary picketing tortious and subject to injunctive restraint, on the basis that it induces a breach of contract. While, as we have found, the *Charter* applies to the common law, we do not have in this litigation between purely private parties any exercise of or reliance upon governmental action which would invoke the *Charter*. It follows then that the appeal must fail...

…

4.2 Further Commentary and Questions

1. The portion of *Dolphin Delivery* on the relevance of the *Charter* to the common law sparked much commentary and at least some uncertainty. See eg Peter Hogg, "The *Dolphin Delivery* Case: The Application of the *Charter* to Private Action" (1987) 51 Sask LR 273 (characterizing the Court's treatment of the question of how the *Charter* applies to the common law as "confusing" (279)). More recent scholarship has continued to attend to the complex legacy of *Dolphin Delivery* for the application of the *Charter* to the common law. See e.g. Joel Bakan of & Sujit Choudhry, "The Hidden Promise of *Dolphin Delivery:* Shields, Swords and Horizontal Application of the Canadian *Charter* of Rights and Freedoms" (2025) 33:4 Constitutional Forum constitutionnel 1 at 2 (concluding, "*Dolphin Delivery* is...notable for providing a powerful avenue — albeit indirect, and so-far unpursued — for the *Charter* to have significant impact in private domains. Though the Court insisted the *Charter* does not apply to private actors, and nor to courts deciding private disputes, it held as well that the *Charter does* apply to private *law*....[A]s Peter Hogg observed at the time... 'Horizontality — a concept used by jurists to describe application of constitutional rights and values to private law and relations — thereby exists, at least in some form, in Canada'" (emphasis theirs, citations omitted).

2. The recent decision of *Cool World Technologies Inc v Twitter Inc*, 2022 ONSC 7156 (CanLII) underscores the ongoing uncertainly flowing from *Dolphin Delivery* and tensions about the potential implications of applying the *Charter* to private law. Cool World was hired to advertise a documentary film called *The New Corporation: The Unfortunately Necessary Sequel*, and attempted to purchase a promoted post to advertise the film on Twitter (the platform now known as "X"). Twitter rejected the request six times, citing its policies on political content, among others. Cool World argued that *Charter* values must inform the common law of contracts and that discriminatory trusts have been found void for public policy reasons. Using these two lines of argument, Cool World claimed that Twitter's User Agreement is governed by the common law, that it violated the *Charter* value of free expression, and that it was therefore void for public policy reasons. Assuming Cool World is ultimately successful in its claim, what are the potential implications for the application of the *Charter*?

4.3 The *Charter* Applies to the Common Law in Litigation involving Government Action

4.3.1 *R v Swain*, 1991 CanLII 104 (SCC)

Following an attack on his wife and children, Owen Swain was arrested and charged with assault and aggravated assault contrary to the relevant provisions of the *Criminal Code,* RSC, 1985, c. C-46. He was transferred to a mental health facility where he received psychiatric treatment and his condition improved. At trial, the Crown relied on a common law rule to raise evidence relevant to the defence of insanity at the time of the offence, despite objections by the accused. Chief Justice Lamer concluded that the impugned common law rule was a violation of the accused's right to liberty under s.7 of the *Charter*. He then provided the following commentary on the application of the *Charter* to the common law in the circumstances of the case:

> **Lamer C.J.** (Sopinka and Cory JJ., concurring)
>
> …
>
> Before turning to s. 1, however, I wish to point out that because this appeal involves a *Charter* challenge to a common law, judge-made rule, the *Charter* analysis involves somewhat different considerations than would apply to a challenge to a legislative provision. For example, having found that the existing common law rule limits an accused's rights under s.7 of the *Charter*, it may not be strictly necessary to go on to consider the application of s. 1. Having come to the conclusion that the common law rule…limits an accused's right to liberty in a manner which does not accord with the principles of fundamental justice, it could, in my view, be appropriate to consider at this stage whether an alternative common law rule could be fashioned which would not be contrary to the principles of fundamental justice.
>
> If a new common law rule could be enunciated which would not interfere with an accused person's right to have control over the conduct of his or her defence, I can see no conceptual problem with the Court's simply enunciating such a rule to take the place of the old rule, without considering whether the old rule could nonetheless be upheld under s.1 of the *Charter*. Given that the common law rule was fashioned by judges and not by Parliament or a legislature, judicial deference to elected bodies is not an issue. If it is possible to reformulate a common law rule so that it will not conflict with the principles of fundamental justice, such a reformulation should be undertaken. Of course, if it were not possible to reformulate the common law rule so as to avoid an infringement of a constitutionally protected right or freedom, it would be necessary for the Court to consider whether the common law rule could be upheld as a reasonable limit under s. 1 of the *Charter*. As was noted at the outset of this analysis, this Court has stated that a limit "prescribed by law" within the meaning of s. 1 may arise from the application of a common law rule as well as from a statute or regulation. Thus, I do not wish to be taken as having held that s. 1 can never have application when a common law rule is challenged under the *Charter*.
>
> In a sense, this stage of the analysis is similar to that which would arise if the challenge to the common law rule had not been brought under the *Charter*. Had the parties chosen to approach this issue from the standpoint that the common law rule was simply contrary to basic principles of criminal law, the Court would have been in the position of considering whether the rule could be reformulated so as to remove any inconsistency with basic criminal law principles (principles of fundamental justice), while still obtaining the original objectives. In other words, it is not strictly necessary to invoke s. 52(1) of the *Constitution Act, 1982* in order to challenge a common law, judge-made rule on the basis of the rights and values guaranteed by the *Charter* -- if a common law rule can be reformulated so as to attain its objectives while removing any inconsistency with basic principles, a judge is entitled to undertake such a reformulation and is not obliged to seek jurisdiction for this action under s. 52(1).

4.3.1.1 Further Commentary and Questions

1. Other cases where the *Charter* has applied to government reliance on the common law include *B.C.G.E.U. v British Columbia (Attorney General)*, 1988 CanLII 3 (SCC), (*Charter* applied to a temporary injunction restraining picketing a courthouse issued by the Chief Justice of the Supreme Court of British Columbia on his own motion); and *Dagenais v Canadian Broadcasting Corp.*, 1994 CanLII 39 (SCC), (*Charter* applied to common law rules on publication bans).

4.4 Relevance of the *Charter* to the Common Law in Purely Private Litigation

4.4.1 *Hill v Church of Scientology of Toronto*, *1995 CanLII 59 (SCC),* [1995] 2 SCR 1130

Crown attorney Casey Hill commenced an action in defamation against Morris Manning, a lawyer representing the Church of Scientology, in relation to public comments made by Manning that alleged several professional wrongs by Hill, including that he had misled a judge and breached orders sealing certain documents. A jury awarded Hill damages. A key issue at the Supreme Court was the relevance of the *Charter* to the common law of defamation in a case involving purely private action.

> **Cory J.** (La Forest, Gonthier, McLachlin, Iacobucci and Major JJ., concurring)
>
> (A) *Application of the Charter*
>
> [65]…The question…is whether the common law of defamation can be subject to *Charter* scrutiny. The appellants submit that by reason of his position as a government employee, Casey Hill's action for damages constitutes "government action" within the meaning of s.32 of the *Charter*. In the alternative, the appellants submit that, pursuant to s.52 of the *Constitution Act, 1982*, the common law must be interpreted in light of *Charter* values. I will address the s. 32 argument first.
>
> (1) Section 32: Government Action
>
> [The Court reviewed the text of s.32 and the conclusion in *Dolphin Delivery* that the *Charter* is applicable to the common law "only in so far as the common law is the basis of some governmental action which, it is alleged, infringes a guaranteed right or freedom."]
>
> …
>
> [70] The appellants argue that at all material times Casey Hill was an agent of the Crown, acting on behalf of the Attorney General of Ontario, and that the defamatory statements which are the subject of the present action were made in relation to acts undertaken by him in that capacity. They further submit that Casey Hill commenced these legal proceedings at the direction and with the financial support of the Attorney

General in order to vindicate the damage to the reputation of the Ministry resulting from criticism levelled at the conduct of one of its officials. It is, therefore, contended that this action represents an effort by a government department to use the action of defamation to restrict and infringe the freedom of expression of the appellants in a manner that is contrary to the *Charter*.

[71] These submissions cannot be accepted…Casey Hill's constitutional status for the purpose of the application of the *Charter* should not be determined by the nature of the allegations made against him. Rather, the determination of whether state involvement existed is dependent upon the circumstances surrounding the institution of the libel proceedings.

[72] The fact that persons are employed by the government does not mean that their reputation is automatically divided into two parts, one related to their personal life and the other to their employment status. To accept the appellants' position would mean that identical defamatory comments would be subject to two different laws, one applicable to government employees, the other to the rest of society. Government employment cannot be a basis for such a distinction. Reputation is an integral and fundamentally important aspect of every individual. It exists for everyone quite apart from employment.

[73] In order to establish the requisite government action for *Charter* scrutiny, the appellants argue that it is easy to distinguish between a janitor working in a government building who is simply an employee and a Crown Attorney who is an agent of the state. It is said that when a person who is clearly an agent of the state acts, he or she is acting for or on behalf of the state. I cannot accept this proposition. There are a significant number of public servants who represent the Crown in any number of ways. While it might be easy to differentiate between the extreme examples set forth by the appellants, the grey area between those extremes is too extensive and the functions of the officials too varied to draw any effective line of distinction…

[74] There is no doubt that Crown Attorneys exercise statutory powers as agents of the government…Therefore, as McIntyre J. pointed out in *Nelles v. Ontario*, 1989 CanLII 77 (SCC), [1989] 2 SCR 170, at p. 209, they benefit from the protection of any immunity which attaches to their office. However, they may become personally liable when they exceed their statutory powers. By extension, actions taken by Crown Attorneys which are outside the scope of their statutory duties are independent of and distinct from their status as agents for the government. Such was the case here.

[75] The appellants impugned the character, competence and integrity of Casey Hill, himself, and not that of the government. He, in turn, responded by instituting legal proceedings in his own capacity. There was no evidence that the Ministry of the Attorney General or the Government of Ontario required or even requested him to do so. Neither is there any indication that the Ministry controlled the conduct of the litigation in any way…Further, the fact that Casey Hill's suit may have been funded by the Ministry of the Attorney General does not alter his constitutional status or cloak his personal action in the mantle of government action. See *McKinney*, *supra*, at p. 269.

[76] The private nature of these proceedings is apparent, as well, from the respondent's statement of claim, and particularly from the allegation contained in para. 19 that the defamatory statements:

> . . . constituting as they do statements of the most serious professional misconduct by the Plaintiff, have damaged his professional reputation and brought him into public scandal, odium and contempt, by reason of which the Plaintiff has suffered damage.

…

[79] In my opinion, the appellants have not satisfied the government action requirement described in s. 32. Therefore, the *Charter* cannot be applied directly to scrutinize the common law of defamation in the circumstances of this case.

(2) Section 52: *Charter* Values and the Common Law

(a) *Interpreting the Common Law in Light of the Values Underlying the Charter*

(i) Review of the Decisions Dealing With the Issue

[83] This Court first considered the application of the *Charter* to the common law in *Dolphin Delivery*, *supra*. In that case, the issue was whether an injunction to restrain secondary picketing violated the *Charter* freedom of expression. It was held that, pursuant to s. 32(1) of the *Charter*, a cause of action could only be based upon the *Charter* when particular government action was impugned. Therefore, the constitutionality of the common law could be scrutinized in those situations where a case involved government action which was authorized or justified on the basis of a common law rule which allegedly infringed a *Charter* right. However, *Dolphin Delivery*, *supra*, also held that the common law could be subjected to *Charter* scrutiny in the absence of government action. McIntyre J. wrote, at pp. 592-93, that, in light of s.52(1) of the *Constitution Act, 1982* , "there can be no doubt" that the *Charter* applies to the common law…

…

In emphasizing that the common law should develop in a manner consistent with *Charter* principles, a distinction was drawn between private litigants founding a cause of action on the *Charter* and judges exercising their inherent jurisdiction to develop the common law…

[84] Since 1986…*Dolphin Delivery*, *supra*, remains the only case which has closely examined the application of the *Charter* in the context of purely private litigation…

…

[90] [I]t remains to be determined what approach should be followed when, in the context of private litigation with no government action involved, a common law rule is alleged to be inconsistent with the *Charter*.

(ii) Approach That Should Be Followed

[91] It is clear from *Dolphin Delivery*, *supra*, that the common law must be interpreted in a manner which is consistent with *Charter* principles. This obligation is simply a manifestation of the inherent jurisdiction of the courts to modify or extend the common law in order to comply with prevailing social conditions and values…

[92] Historically, the common law evolved as a result of the courts making those incremental changes which were necessary in order to make the law comply with current societal values. The *Charter* represents a restatement of the fundamental values which guide and shape our democratic society and our legal system. It follows that it is appropriate for the courts to make such incremental revisions to the common law as may be necessary to have it comply with the values enunciated in the *Charter*.

[93] When determining how the *Charter* applies to the common law, it is important to distinguish between those cases in which the constitutionality of government action is challenged, and those in which there is no government action involved. It is important not to import into private litigation the analysis which applies in cases involving government action.

[94] In *Dolphin Delivery*, *supra*, it was noted that the *Charter* sets out those specific constitutional duties which the state owes to its citizens. When government action is challenged, whether it is based on legislation or the common law, the cause of action is founded upon a *Charter* right. The claimant alleges that the state has breached its constitutional duty. The state, in turn, must justify that breach. While

> criminal cases present the prime example of government action, challenges to government action can also arise in civil cases. The state's obligation to uphold its constitutional duties is no less pressing in the civil sphere than in the criminal…
>
> [95] Private parties owe each other no constitutional duties and cannot found their cause of action upon a *Charter* right. The party challenging the common law cannot allege that the common law violates a *Charter* right because, quite simply, *Charter* rights do not exist in the absence of state action. The most that the private litigant can do is argue that the common law is inconsistent with *Charter* values. It is very important to draw this distinction between *Charter* rights and *Charter* values. Care must be taken not to expand the application of the *Charter* beyond that established by s. 32(1), either by creating new causes of action, or by subjecting all court orders to *Charter* scrutiny. Therefore, in the context of civil litigation involving only private parties, the *Charter* will "apply" to the common law only to the extent that the common law is found to be inconsistent with *Charter* values.
>
> [96] Courts have traditionally been cautious regarding the extent to which they will amend the common law. Similarly, they must not go further than is necessary when taking *Charter* values into account. Far-reaching changes to the common law must be left to the legislature.
>
> [97] When the common law is in conflict with *Charter* values, how should the competing principles be balanced?...[T]he balancing must be more flexible than the traditional s. 1 analysis undertaken in cases involving governmental action cases. *Charter* values, framed in general terms, should be weighed against the principles which underlie the common law. The *Charter* values will then provide the guidelines for any modification to the common law which the court feels is necessary.
>
> [98] Finally, the division of onus which normally operates in a *Charter* challenge to government action should not be applicable in a private litigation *Charter* "challenge" to the common law. This is not a situation in which one party must prove a *prima facie* violation of a right while the other bears the onus of defending it. Rather, the party who is alleging that the common law is inconsistent with the *Charter* should bear the onus of proving both that the common law fails to comply with *Charter* values and that, when these values are balanced, the common law should be modified. In the ordinary situation, where government action is said to violate a *Charter* right, it is appropriate that the government undertake the justification for the impugned statute or common law rule. However, the situation is very different where two private parties are involved in a civil suit. One party will have brought the action on the basis of the prevailing common law which may have a long history of acceptance in the community. That party should be able to rely upon that law and should not be placed in the position of having to defend it. It is up to the party challenging the common law to bear the burden of proving not only that the common law is inconsistent with *Charter* values but also that its provisions cannot be justified.
>
> …

4.4.2 Further Commentary and Questions

1. The Supreme Court has repeatedly underscored the importance of "*Charter* values" in the context of administrative decision-making. See eg *Doré v Barreau du Québec*, 2012 SCC 12 (CanLII) (Justice Abella explaining that in order to comply with their obligation to act consistently with *Charter* values, "administrative decision-makers exercising statutory discretion must balance "the *Charter* values with the statutory objectives" in a given case (at para 55)).
2. The distinction between *Charter rights* and *Charter values* can be difficult to capture with precision. In *Loyola High School v Quebec (Attorney General)*, 2015 SCC 12 (CanLII), Abella J (at para 36) explained "...*Charter* values — those values that underpin each right and give it meaning — help determine the extent of any given infringement in the particular administrative context and, correlatively, when limitations on that right are proportionate in light of the applicable statutory objectives". See also *Commission scolaire francophone des Territoires du Nord-Ouest v Northwest Territories (Education, Culture and Employment)*, 2023 SCC 31 (CanLII). For commentary and critique on the judicial approach to *Charter* values in the administrative law context see e.g. Lorne Sossin & Mark Friedman, "*Charter* Values and Administrative Justice" (2014) 67 SCLR (2d) 391 (concluding at 408, "where *Charter* values come from and how they are related to, but distinct from, *Charter* rights remains at an embryonic stage"); Paul Daly, "The *Doré* Duty: Fundamental Rights in Public Administration" (2023) 101 Canadian Bar Review 297; and Matthew Horner, "*Charter* Values: The Uncanny Valley of Canadian Constitutionalism" (2014) 67 SCLR (2d) 361.
3. What does it mean for administrative decision-makers to render decisions "in accordance with *Charter* values?" What sources should decision-makers draw on when determining which *Charter* values apply in a particular case?

Chapter 19: S. 2(a): Freedom of Conscience and Religion

By Howard Kislowicz

1 Introduction

Freedom of conscience and religion is the first "fundamental freedom" protected by the *Canadian Charter*. Other constitutions and international human rights documents give similar pride of place to the protection of religious and conscientiously held beliefs and practices. Canada's history of protecting some form of religious freedom can be traced back to the 18th Century, when the *Quebec Act of 1774* gave protections for Catholics in Lower Canada as citizens of the former French colony became incorporated into the British colony. In the 1950s, Supreme Court of Canada (SCC) justices used constitutional protections of federalism and the theory of the "implied bill of rights" to protect religious freedom, and the 1960 *Canadian Bill of Rights* also protected freedom of conscience and religion in the federal sphere (see Chapter 13: *Charter* Antecedents). With the entrenchment of s 2(a) of the *Charter*, however, courts became more assured in their invalidation of legislation and government action that interfered unjustifiably with religious freedom.

All this said, the relationship between religion and state in Canada is complicated. For many years, Indigenous spirituality was prohibited by legislation. Many religious minorities have, over the years, experienced discrimination at the hands of the state. And the Canadian state has never been fully separated from religious interests. Early colonization by both the British and the French was marked by close relationships between the church and the monarchy (Protestant for the British, Catholic for the French). This led to land grants to the respective churches in what was then Upper and Lower Canada, some of which endure. Another part of this legacy is s. 93 of the *Constitution Act, 1867*, which constitutionally mandates certain funding for Protestant and Catholic schools (though the picture is different across the provinces, depending on what funding existed at the time each province joined the federation, and the obligation has been amended away with respect to Quebec and Newfoundland).

The SCC has generally thought of s 2(a) as having two broad purposes. The first is ensuring that individuals and communities are free to hold diverse religious and conscientious beliefs and engage in diverse religious practices without penalty from the state. This is what Americans call the "free exercise" of religion. There are some potentially challenging questions related to whether something counts as an "exercise" of religion. For example: does all religiously-inspired behaviour count? What do we mean by "conscientious" beliefs and practices?

Can corporations, religious or otherwise, make claims under s 2(a) of the *Charter*? This said, most of the cases in this area tend to be resolved under s 1 of the *Charter* or under the associated rubric of proportionality in the administrative law context. Examples of this kind of case are in Part 2 of this chapter.

The second main purpose of s 2(a) is what is referred to in the case law as the state's duty of religious neutrality. Examples of this kind of case are found in Part 3 of this chapter. This aspect of the case law says that s 2(a) prohibits the state from adopting the perspective of a particular faith. Prof. Richard Moon has argued that the reasoning in these cases reflects a concern about inclusion of religious minorities in the civic community, the idea that no one should be excluded from participation in democratic society based on their religion. In his view, this imports an equality-based rationale into the interpretation of s 2(a), that sits alongside the liberty-based rationale that underlies the response to cases about interference with religious practice (though Moon has also argued that the Courts have not been demanding under s 1 when the state has a valid reason for restricting religious practice). One might also say that these two ways of thinking about the purposes of s 2(a) reflect different ways of thinking about how and why religion matters to individuals and communities. The liberty-based approach might be said to treat religion as important because it's a special kind of choice that individuals make; the equality-based approach treats religion as important because of its connection to individual and communal identity. In other words, these approaches see religious alternatively as something people choose or as something people are. The distinction between the approaches, however, is not always easy to draw in in the case law.

1.1 Guiding questions

As you read the excerpts in this section, consider the following questions:

1. Most (if not all) human rights protecting constitutions and documents protect some form of religious freedom. Why is this so? Should it be so?
2. How does the protection of religious and conscientious freedom fit into the scheme of the *Charter*'s protections? How is it relevant in contemporary Canada? How might it be relevant in the next 20 years? How has the guarantee drawn the SCC into political and cultural debates, and is it maintaining an appropriate role in this regard?
3. Does protecting religious freedom require exemptions from generally applicable laws?
4. Most of the focus of the 2(a) case-law has been on religious freedom rather than conscientious freedom. How are these concepts similar? How are they different? Why is there so much more attention to religion than conscience in Canadian law?
5. What are the implications of the Court's approach to the "shifting purpose" argument offered in respect of the *Lord's Day Act* in *Big M*?
6. Justice Dickson writes that there is a kind of equality inherent in s. 2(a) (at para 94). What do you make of this? Is he conflating two distinct concepts?
7. The *Charter*'s preamble provides that "Canada is founded upon principles that recognize the supremacy of God and the rule of law." How does this square with principles of state religious neutrality?

1.2 *R. v. Big M Drug Mart Ltd.*, 1985 CanLII 69 (SCC), [1985] 1 SCR 295

The judgment of Dickson, Beetz, McIntyre, Chouinard and Lamer JJ. was delivered by

1. DICKSON J.--Big M Drug Mart Ltd. was charged with unlawfully carrying on the sale of goods, on Sunday, May 30, 1982 in the City of Calgary, Alberta, contrary to the *Lord's Day Act*, R.S.C. 1970, c. L-13.

2. Big M has challenged the constitutionality of the *Lord's Day Act*, both in terms of the division of powers and the *Canadian Charter of Rights and Freedoms*. Such challenge places in issue before this Court, for the first time, one of the fundamental freedoms protected by the *Charter*, the guarantee of "freedom of conscience and religion" entrenched in s. 2.

…

A. The Lord's Day Act

5. An understanding of the scheme of that Act and its basic purpose and effect is integral to any analysis of its constitutional validity. Section 2 defines, *inter alia*, the Lord's Day:

2. ...

"Lord's Day" means the period of time that begins at midnight on Saturday night and ends at midnight on the following night;

...

Section 4 contains the basic prohibition against any work or commercial activity upon the Lord's Day:

4. It is not lawful for any person on the Lord's Day, except as provided herein, or in any provincial Act or law in force on or after the 1st day of March 1907, to sell or offer for sale or purchase any goods, chattels, or other personal property, or any real estate, or to carry on or transact any business of his ordinary calling, or in connection with such calling, or for gain to do, or employ any other person to do, on that day, any work, business, or labour.

…

6. It is important to note that any person may be exempted from the operation of ss. 4, 6, and 7 by provincial legislation or municipal *Charter*. The following exemptions are also contained in the legislation: s. 3--the railways may be operated for passenger traffic; s. 11 --any person may do any work of necessity or mercy which covers a broad range of activities listed in subss. (*a*) to (*x*).

7. The Act makes it an offence punishable on summary conviction for: any person to violate the Act (s. 12); any employer to direct any violation of the Act (s. 13); any corporation to authorize, direct or permit any violation of the Act (s. 14).

8. Section 16 requires the Attorney General's fiat before any prosecution may be commenced for a violation of the Act. The Attorney General of Alberta granted his fiat before commencement of proceedings against Big M.

B. The *Charter*

9. Section 2 of the *Charter* contains the basic guarantee of religious freedom:

> **2.** Everyone has the following fundamental freedoms:
>
> (*a*) freedom of conscience and religion ... .

10. Various provisions of the *Charter* must also be considered when analyzing the nature of the guarantee contained in s. 2. The preamble states:

> Whereas Canada is founded upon principles that recognize the supremacy of God and the rule of law....

11. Section 27 makes the multicultural heritage of Canada an interpretive guideline for the *Charter*:

27. This Charter shall be interpreted in a manner consistent with the preservation and enhancement of the multicultural heritage of Canadians.

…

Standing and Jurisdiction

33. As a preliminary issue the Attorney General for Alberta challenges the standing of Big M to raise the question of a possible infringement of the guarantee of freedom of conscience and religion and the jurisdiction of the Provincial Court to declare the *Lord's Day Act* inoperative.

34. As best I understand the first submission, the assertion is that Big M is not entitled to any relief pursuant to s. 24(1) of the *Charter*. It is urged that freedom of religion is a personal freedom and that a corporation, being a statutory creation, cannot be said to have a conscience or hold a religious belief. It cannot, therefore, be protected by s. 2(*a*) of the *Charter*, nor can its rights and freedoms have been infringed or denied under s. 24(1); Big M's application under that section must consequently fail.

…

37. Section 24(1) sets out a remedy for individuals (whether real persons or artificial ones such as corporations) whose rights under the *Charter* have been infringed. It is not, however, the only recourse in the face of unconstitutional legislation. Where, as here, the challenge is based on the unconstitutionality of the legislation, recourse to s. 24 is unnecessary and the particular effect on the challenging party is irrelevant.

38. Section 52 sets out the fundamental principle of constitutional law that the Constitution is supreme. The undoubted corollary to be drawn from this principle is that no one can be convicted of an offence under an unconstitutional law. The respondent did not come to court voluntarily as an interested citizen asking for a prerogative declaration that a statute is unconstitutional. If it had been engaged in such "public interest litigation" it would have had to fulfill the status requirements laid down by this Court in the trilogy of "standing" cases … but that was not the reason for its appearance in Court.

39. Any accused, whether corporate or individual, may defend a criminal charge by arguing that the law under which the charge is brought is constitutionally invalid. Big M is urging that the law under which it has been charged is inconsistent with s. 2(*a*) of the *Charter* and by reason of s. 52 of the *Constitution Act, 1982*, it is of no force or effect.

…

41. The argument that the respondent, by reason of being a corporation, is incapable of holding religious belief and therefore incapable of claiming rights under s. 2(*a*) of the *Charter*, confuses the nature of this appeal. A law which itself infringes religious freedom is, by that reason alone, inconsistent with s. 2(*a*) of the *Charter* and it matters not whether the accused is a Christian, Jew, Muslim, Hindu, Buddhist, atheist, agnostic or whether an individual or a corporation. It is the nature of the law, not the status of the accused, that is in issue.

…

The Characterization of the *Lord's Day Act*

(A) The Problem

48. There are obviously two possible ways to characterize the purpose of Lord's Day legislation, the one religious, namely securing public observance of the Christian institution of the Sabbath and the other secular, namely providing a uniform day of rest from labour. It is undoubtedly true that both elements may be present in any given enactment, indeed it is almost inevitable that they will be, considering that such laws combine a prohibition of ordinary employment for one day out of seven with a specification that this day of rest shall be the Christian Sabbath--Sunday. In the Anglo-Canadian tradition this intertwining is to be seen as far back as early Saxon times in such laws as that promulgated by Ine, King of Wessex from 688-725…

50. Despite this inevitable intertwining, it is necessary to identify the "matter" in relation to which such legislation is enacted and thereby to decide within which of the heads of s. 91 or s. 92 of the Constitution Act, 1867 such legislation falls.

(B) The Historic Underpinnings

51. Historically, there seems little doubt that it was religious purpose which underlay the enactment of English Lord's Day legislation. From early times the moral exhortation found in the Fourth Commandment (Exodus 20: 8-11) "Remember the Sabbath day, to keep it holy" increasingly became a legislative imperative. The first major piece of legislation, *The Sunday Fairs Act*, 27 Hen. 6, c. 5, prefaced its prohibition of fairs and markets on Sunday with a recital of "abomenable injuries and offences done to Almighty God and to his Saints" because of bodily labour, deceitful bargaining, drunkenness and religious non-observance associated with fairs. Following the Reformation under Henry VIII, religious observance acquired an added political significance and a number of statutes aimed at securing religious conformity were promulgated, including the *Act of Uniformity*, 5 & 6 Edw. 6, c. 1, the *Act for the Keeping of Holy Days and Fasting-Days*, 5 & 6 Edw. 6, c. 3, and the *Act of Uniformity*, 1 Eliz. 1, c. 2. All these Acts contained provisions making Sunday worship and observance compulsory obligations, as did the later *Act Against Sectaries*, 35 Eliz. 1, c. 1 and *Act Against Papists*, 35 Eliz. 1, c. 2, which, as their names suggest, were designed not only to enforce mandatory religious observance as provided for by the Church of England, but also to prohibit religious observance as practised by other Christian denominations.

…

53. The *Sunday Observance Act* of 1677 served as a model for Canadian pre-Confederation legislation, especially *An Act to prevent the Profanation of the Lord's Day, commonly called Sunday, in Upper Canada*, 1845 (Can.), c. 45, which substantially re-enacted the English law with only minor alterations designed to suit it to the specific conditions and activities of Upper Canada. It was this statute, as re-enacted by the post-Confederation legislature of Ontario (R.S.O. 1897, c. 246), that the Privy Council found to be beyond the competence of the province to enact in *Attorney-General for Ontario v. Hamilton Street Railway Co.*, 1903 CanLII 121 (UK JCPC), [1903] A.C. 524, a decision which lay behind the passage in 1906 of the federal *Lord's Day Act*. Like the Ontario Act, the federal Act embodied the basic framework and much of the language of the English *Sunday Observance Act* of 1677. After four consolidations, it still exhibits these same essential characteristics in its present form.

…

VI

Purpose and Effect of Legislation

78. A finding that the *Lord's Day Act* has a secular purpose is, on the authorities, simply not possible. Its religious purpose, in compelling sabbatical observance, has been long-established and consistently maintained by the courts of this country.

79. The Attorney General for Alberta concedes that the Act is characterized by this religious purpose. He contends, however, that it is not the purpose but the effects of the Act which are relevant…

80. I cannot agree. In my view, both purpose and effect are relevant in determining constitutionality; either an unconstitutional purpose or an unconstitutional effect can invalidate legislation. All legislation is animated by an object the legislature intends to achieve. This object is realized through the impact produced by the operation and application of the legislation. Purpose and effect respectively, in the sense of the legislation's object and its ultimate impact, are clearly linked, if not indivisible. Intended and actual effects have often been looked to for guidance in assessing the legislation's object and thus, its validity.

81. Moreover, consideration of the object of legislation is vital if rights are to be fully protected. The assessment by the courts of legislative purpose focuses scrutiny upon the aims and objectives of the legislature and ensures they are consonant with the guarantees enshrined in the *Charter*. The declaration that certain objects lie outside the legislature's power checks governmental action at the first stage of unconstitutional conduct. Further, it will provide more ready and more vigorous protection of constitutional rights by obviating the individual litigant's need to prove effects violative of *Charter* rights. It will also allow courts to dispose of cases where the object is clearly improper, without inquiring into the legislation's actual impact.

…

85. If the acknowledged purpose of the *Lord's Day Act*, namely, the compulsion of sabbatical observance, offends freedom of religion, it is then unnecessary to consider the actual impact of Sunday closing upon religious freedom. Even if such effects were found inoffensive, as the Attorney General of Alberta urges, this could not save legislation whose purpose has been found to violate the *Charter*'s guarantees. In any event, I would find it difficult to conceive of legislation with an unconstitutional purpose, where the effects would not also be unconstitutional.

…

88. In short, I agree with the respondent that the legislation's purpose is the initial test of constitutional validity and its effects are to be considered when the law under review has passed or, at least, has purportedly passed the purpose test. If the legislation fails the purpose test, there is no need to consider further its effects, since it has already been demonstrated to be invalid. Thus, if a law with a valid purpose interferes by its impact, with rights or freedoms, a litigant could still argue the effects of the legislation as a means to defeat its applicability and possibly its validity. In short, the effects test will only be necessary to defeat legislation with a valid purpose; effects can never be relied upon to save legislation with an invalid purpose.

89. A second related submission is made by the Attorney General of Saskatchewan with respect to the characterization of the *Lord's Day Act*. Both Stevenson, Prov. Ct. J., at trial, and the American Supreme Court, in its quartet on Sunday observance legislation, suggest that the purpose of legislation may shift, or be transformed over time by changing social conditions… A number of objections can be advanced to this "shifting purpose" argument.

90. First, there are the practical difficulties. No legislation would be safe from a revised judicial assessment of purpose. Laws assumed valid on the basis of persuasive and powerful authority could, at any time, be struck down as invalid. Not only would this create uncertainty in the law, but it would encourage re-litigation of the same issues and, it could be argued, provide the courts with a means by which to arrive at a result dictated by other than legal considerations. It could effectively end the doctrine of *stare decisis* in division of power cases.

…

91. Furthermore, the theory of a shifting purpose stands in stark contrast to fundamental notions developed in our law concerning the nature of "Parliamentary intention". Purpose is a function of the intent of those who drafted and enacted the legislation at the time, and not of any shifting variable.

…

93. While the effect of such legislation as the *Lord's Day Act* may be more secular today than it was in 1677 or in 1906, such a finding cannot justify a conclusion that its purpose has similarly changed. In result, therefore, the *Lord's Day Act* must be characterized as it has always been, a law the primary purpose of which is the compulsion of sabbatical observance.

VII

Freedom of Religion

94. A truly free society is one which can accommodate a wide variety of beliefs, diversity of tastes and pursuits, customs and codes of conduct. A free society is one which aims at equality with respect to the enjoyment of fundamental freedoms and I say this without any reliance upon s. 15 of the *Charter*. Freedom must surely be founded in respect for the inherent dignity and the inviolable rights of the human person. The essence of the concept of freedom of religion is the right to entertain such religious beliefs as a person chooses, the right to declare religious beliefs openly and without fear of hindrance or reprisal, and the right to manifest religious belief by worship and practice or by teaching and dissemination. But the concept means more than that.

95. Freedom can primarily be characterized by the absence of coercion or constraint. If a person is compelled by the state or the will of another to a course of action or inaction which he would not otherwise have chosen, he is not acting of his own volition and he cannot be said to be truly free. One of the major purposes of the *Charter* is to protect, within reason, from compulsion or restraint. Coercion includes not only such blatant forms of compulsion as direct commands to act or refrain from acting on pain of sanction, coercion includes indirect forms of control which determine or limit alternative courses of conduct available to others. Freedom in a broad sense embraces both the absence of coercion and constraint, and the right to manifest beliefs and practices. Freedom means that, subject to such limitations as are necessary to protect public safety, order, health, or morals or the fundamental rights and freedoms of others, no one is to be forced to act in a way contrary to his beliefs or his conscience.

96. What may appear good and true to a majoritarian religious group, or to the state acting at their behest, may not, for religious reasons, be imposed upon citizens who take a contrary view. The *Charter* safeguards religious minorities from the threat of "the tyranny of the majority".

97. To the extent that it binds all to a sectarian Christian ideal, the *Lord's Day Act* works a form of coercion inimical to the spirit of the *Charter* and the dignity of all non-Christians. In proclaiming the standards of the Christian faith, the Act creates a climate hostile to, and gives the appearance of discrimination against, non-Christian Canadians. It takes religious values rooted in Christian morality and, using the force of the state, translates them into a positive law binding on believers and non-believers alike. The theological content of the legislation remains as a subtle and constant reminder to religious minorities within the country of their differences with, and alienation from, the dominant religious culture.

98. Non-Christians are prohibited for religious reasons from carrying out activities which are otherwise lawful, moral and normal. The arm of the state requires all to remember the Lord's day of the Christians and to keep it holy. The protection of one religion and the concomitant non-protection of others imports disparate impact destructive of the religious freedom of the collectivity.

99. I agree with the submission of the respondent that to accept that Parliament retains the right to compel universal observance of the day of rest preferred by one religion is not consistent with the preservation and enhancement of the multicultural heritage of Canadians. To do so is contrary to the expressed provisions of s. 27, which as earlier noted reads:

> 27. This Charter shall be interpreted in a manner consistent with the preservation and enhancement of the multicultural heritage of Canadians.

…

100. If I am a Jew or a Sabbatarian or a Muslim, the practice of my religion at least implies my right to work on a Sunday if I wish. It seems to me that any law purely religious in purpose, which denies me that right, must surely infringe my religious freedom.

…

(iii) The Purpose of Protecting Freedom of Conscience and Religion

…

118. With regard to freedom of conscience and religion, the historical context is clear. As they are relevant to the *Charter*, the origins of the demand for such freedom are to be found in the religious struggles in post-Reformation Europe. The spread of new beliefs, the changing religious allegiance of kings and princes, the shifting military fortunes of their armies and the consequent repeated redrawing of national and imperial frontiers led to situations in which large numbers of people--sometimes even the majority in a given territory--found themselves living under rulers who professed faiths different from, and often hostile to, their own and subject to laws aimed at enforcing conformity to religious beliefs and practices they did not share.

…

120. Beginning, however, with the Independent faction within the Parliamentary party during the Commonwealth or Interregnum, many, even among those who shared the basic beliefs of the ascendent religion, came to voice opposition to the use of the State's coercive power to secure obedience to religious precepts and to extirpate non-conforming beliefs. The basis of this opposition was no longer simply a conviction that the State was enforcing the wrong set of beliefs and practices but rather the perception that belief itself was not amenable to compulsion. Attempts to compel belief or practice denied the reality of individual conscience and dishonoured the God that had planted it in His creatures. It is from these antecedents that the concepts of freedom of religion and freedom of conscience became associated, to form, as they do in s. 2(*a*) of our *Charter*, the single integrated concept of "freedom of conscience and religion".

121. What unites enunciated freedoms in the American First Amendment, s. 2(*a*) of the *Charter* and in the provisions of other human rights documents in which they are associated is the notion of the centrality of individual conscience and the inappropriateness of governmental intervention to compel or to constrain its manifestation. In *Hunter v. Southam Inc.*, *supra*, the purpose of the *Charter* was identified, at p. 155, as "the unremitting protection of individual rights and liberties". It is easy to see the relationship between respect for individual conscience and the valuation of human dignity that motivates such unremitting protection.

122. It should also be noted, however, that an emphasis on individual conscience and individual judgment also lies at the heart of our democratic political tradition. The ability of each citizen to make free and informed decisions is the absolute prerequisite for the legitimacy, acceptability, and efficacy of our system of self-government. It is because of the centrality of the rights associated with freedom of individual

conscience both to basic beliefs about human worth and dignity and to a free and democractic political system that American jurisprudence has emphasized the primacy or "firstness" of the First Amendment. It is this same centrality that in my view underlies their designation in the *Canadian Charter of Rights and Freedoms* as "fundamental". They are the *sine qua non* of the political tradition underlying the *Charter*.

123. Viewed in this context, the purpose of freedom of conscience and religion becomes clear. The values that underlie our political and philosophic traditions demand that every individual be free to hold and to manifest whatever beliefs and opinions his or her conscience dictates, provided *inter alia* only that such manifestations do not injure his or her neighbours or their parallel rights to hold and manifest beliefs and opinions of their own. Religious belief and practice are historically prototypical and, in many ways, paradigmatic of conscientiously-held beliefs and manifestations and are therefore protected by the *Charter*. Equally protected, and for the same reasons, are expressions and manifestations of religious non-belief and refusals to participate in religious practice. It may perhaps be that freedom of conscience and religion extends beyond these principles to prohibit other sorts of governmental involvement in matters having to do with religion. For the present case, it is sufficient in my opinion to say that whatever else freedom of conscience and religion may mean, it must at the very least mean this: government may not coerce individuals to affirm a specific religious belief or to manifest a specific religious practice for a sectarian purpose. I leave to another case the degree, if any, to which the government may, to achieve a vital interest or objective, engage in coercive action which s. 2(*a*) might otherwise prohibit.

…

128. With the entrenchment of the *Charter* the definition of freedom of conscience and religion is no longer vulnerable to legislative incursion. I conclude therefore that a definition of freedom of conscience and religion incorporating freedom from compulsory religious observance is not only in accord with the purposes and traditions underlying the *Charter*; it is also in line with the definition of that concept as found in the Canadian jurisprudence.

…

133. In my view, the guarantee of freedom of conscience and religion prevents the government from compelling individuals to perform or abstain from performing otherwise harmless acts because of the religious significance of those acts to others. The element of religious compulsion is perhaps somewhat more difficult to perceive (especially for those whose beliefs are being enforced) when, as here, it is non-action rather than action that is being decreed, but in my view compulsion is nevertheless what it amounts to.

…

135. In an earlier time, when people believed in the collective responsibility of the community toward some deity, the enforcement of religious conformity may have been a legitimate object of government, but since the *Charter*, it is no longer legitimate. With the *Charter*, it has become the right of every Canadian to work out for himself or herself what his or her religious obligations, if any, should be and it is not for the state to dictate otherwise. The state shall not use the criminal sanctions at its disposal to achieve a religious purpose, namely, the uniform observance of the day chosen by the Christian religion as its day of rest.

136. On the authorities and for the reasons outlined, the true purpose of the *Lord's Day Act* is to compel the observance of the Christian Sabbath and I find the Act, and especially s. 4 thereof, infringes upon the freedom conscience and religion guaranteed in s. 2(*a*) of the *Charter*...

VIII

Section 1 of the *Charter*

137. Is the *Lord's Day Act*, and especially s. 4 thereof, justified on the basis of s. 1 of the *Canadian Charter of Rights and Freedoms*? That is the second question posed.

…

140. Two reasons have been advanced to justify the legislation here in issue as a reasonable limit. It can be urged that the choice of the day of rest adhered to by the Christian majority is the most practical. This submission is really no more than an argument of convenience and expediency and is fundamentally repugnant because it would justify the law upon the very basis upon which it is attacked for violating s. 2(*a*).

141. The other more plausible argument is that everyone accepts the need and value of a universal day of rest from all work, business and labour and it may as well be the day traditionally observed in our society. I accept the secular justification for a day of rest in a Canadian context and the reasonableness of a day of rest has been clearly enunciated by the courts in the United States of America. The first and fatal difficulty with this argument is, as I have said, that it asserts an objective which has never been found by this Court to be the motivation for the legislation. It seems disingenuous to say that the legislation is valid criminal law and offends s. 2(*a*) because it compels the observance of a Christian religious duty, yet is still a reasonable limit demonstrably justifiable because it achieves the secular objective the legislators did not primarily intend. The appellant can no more assert under s. 1 a secular objective to validate legislation which in pith and substance involves a religious matter than it could assert a secular objective as the basis for the argument that the legislation does not offend s. 2(*a*). While there is no authority on this point, it seems clear that Parliament cannot rely upon an *ultra vires* purpose under s. 1 of the *Charter*. This use of s. 1 would invite colourability, allowing Parliament to do indirectly what it could not do directly.

142. The characterization of the purpose of the Act as one which compels religious observance renders it unnecessary to decide the question of whether s. 1 could validate such legislation whose purpose was otherwise or whether the evidence would be sufficient to discharge the onus upon the appellant to demonstrate the justification advanced.

…

X

Conclusion

150. In my view the majority in the Alberta Court of Appeal was correct in its disposition of the issues in this appeal. The *Lord's Day Act* is enacted pursuant to the criminal law power under s. 91(27) of the *Constitution Act, 1867*. In providing for the compulsory observance of the religious institution of the Sabbath (Sunday), the Act and especially s. 4 thereof does infringe on the guarantee of freedom of conscience and religion in s. 2(*a*) of the *Canadian Charter of Rights and Freedoms* and this infringement cannot be justified on the basis of s. 1 of the *Charter*. I would declare the *Lord's Day Act* to be of no force or effect, by reason of s. 52(1) of the *Constitution Act, 1982*.

1.3 *R. v. Edwards Books and Art Ltd.*, 1986 CanLII 12 (SCC), [1986] 2 SCR 713

A different Sunday closing law was upheld in *R. v. Edwards Books and Art Ltd.*, 1986 CanLII 12 (SCC), [1986] 2 SCR 713. The province of Ontario required most retailers to close on Sundays, but there were significant differences that grounded this result: the scope of the exemptions to the law was wider, and the evidence was that the law had a secular purpose. This purpose was to create a "common pause day" or "uniform holiday" for employees, whose schedule is generally set by their employers. Here are some key passages from that decision:

> 58. It is beyond doubt that days such as Sundays, Christmas and Easter were celebrated as holidays in Canada historically for religious reasons. The celebration of these holidays has continued to the present partly because of continuing, though diminished, religious observances of the largest denominations of the Christian faith, partly because of statutory enforcement under, *inter alia*, the now unconstitutional *Lord's Day Act*, and partly because of the combined effect of social inertia and the perceived need for people to have days away from work or school in common with family, friends and other members of the community. These, in my view, are the social facts which explain the selection by individuals, businesses, school boards, and others of particular days as holidays.
>
> 59. It is important to keep in mind, however, that the Court is not called upon to characterize the historical origins, or even the continuing cause for the selection by individual members of the community of particular holidays. To do so would be to characterize social facts rather than characterizing the impugned law. The question in the present cases therefore cannot be reduced to a mathematical exercise of computing the number of holidays prescribed by the Act which have a religious origin. Our society is collectively powerless to repudiate its history, including the Christian heritage of the majority…
>
> 62. I agree with Tarnopolsky J.A. that the *Retail Business Holidays Act* was enacted with the intent of providing uniform holidays to retail workers. I am unable to conclude that the Act was a surreptitious attempt to encourage religious worship. The title and text of the Act, the legislative debates and the Ontario Law Reform Commission's *Report on Sunday Observance Legislation* (1970), all point to the secular purposes underlying the Act.
>
> …
>
> 95. The Court was concerned in [*Big M*] with a direct command, on pain of sanction, to conform to a particular religious precept. The appeals with which we are now concerned are alleged to involve two forms of coercion. First, it is argued that the Retail Business Holidays Act makes it more expensive for retailers and consumers who observe a weekly day of rest other than Sunday to practise their religious tenets. In this manner, it is said, the Act indirectly coerces these persons to forego the practice of a religious belief. Second, it is submitted that the Act has the direct effect of compelling non-believers to conform to majoritarian religious dogma, by requiring retailers to close their stores on Sunday.
>
> 96. The first question is whether indirect burdens on religious practice are prohibited by the constitutional guarantee of freedom of religion. In my opinion indirect coercion by the state is comprehended within the evils from which s. 2(*a*) may afford protection. The Court said as much in the *Big M Drug Mart Ltd.* case and any more restrictive interpretation would, in my opinion, be inconsistent with the Court's obligation under s. 27 to preserve and enhance the multicultural heritage of Canadians. … It matters not, I believe, whether a coercive burden is direct or indirect, intentional or unintentional, foreseeable or unforeseeable. All coercive burdens on the exercise of religious beliefs are potentially within the ambit of s. 2(*a*).
>
> 97. This does not mean, however, that every burden on religious practices is offensive to the constitutional guarantee of freedom of religion. It means only that indirect or unintentional burdens will not be held to be outside the scope of *Charter* protection on that account alone. Section 2(*a*) does not require the legislatures to eliminate every miniscule state-imposed cost associated with the practice of religion. Otherwise the *Charter* would offer protection from innocuous secular legislation such as a taxation act that imposed a modest sales tax extending to all products, including those used in the course of religious worship. In my opinion, it is unnecessary to turn to s. 1 in order to justify legislation of that sort. The purpose of s. 2(*a*) is to ensure that society does not interfere with profoundly personal beliefs that govern one's perception of oneself, humankind, nature, and, in some cases, a higher or different order of being. These beliefs, in turn, govern one's conduct and practices. The Constitution shelters individuals and groups only to the extent that religious beliefs or conduct might reasonably or actually be threatened. For a state-imposed cost or burden to be proscribed by s. 2(*a*) it must be capable of interfering with religious belief or practice. In short, legislative or administrative action which increases the cost of practising or otherwise manifesting religious beliefs is not prohibited if the burden is trivial or insubstantial: see, on this point, *R. v. Jones*, 1986 CanLII 32 (SCC), [1986] 2 SCR 284, *per* Wilson J. at p. 314.
>
> …
>
> 103. The Act has a different impact on persons with different religious beliefs. Four classes of persons might be differently affected: those not observing any religious day of rest, those observing Sundays, those observing Saturdays, and those observing some other day of the week.
>
> 104. (i) *Non-Observers*
>
> …
>
> 106. The Act prevents non-observing retailers who cannot fit themselves within one of the statutory exemptions from doing business on Sundays. In the absence of the Act, these retailers would be able to transact business on seven days of the week, and they would have a competitive advantage in this respect relative to retailers whose religious beliefs required closing on Saturdays, Sundays, or any other day of the week….
>
> 107. … the effects of the Act on non-observing retailers are generally secular in nature and do not impair or abridge their freedom of conscience or religion, at least in the absence of convincing evidence that the desire to remain open is motivated by dissentient religious purposes rather than purely business considerations.
>
> 108. (ii) *Sunday Observers*
>
> 109. The Act has a favourable impact on Sunday observers. By requiring some other retailers to refrain from trade on a day of special religious significance to Sunday observers, the latter are relieved of a loss of market share to retailers who would have been open for business on Sunday in the absence of the Act. The cost of religious observance has been decreased for Sunday observers by the enactment of the legislation.
>
> 110. (iii) *Saturday Observers*
>
> 111. There is evidence in the record that it is a religious tenet of the Jewish and Seventh-day Adventist faiths not to work or transact business on Saturdays. Other faiths may also observe Saturday as a religious day of rest, but for the purposes of the present appeals it is the effects on Jews and Seventh-day Adventists that will be considered.

112. The Attorney General of Ontario submits that any disability suffered by Saturday-observing retailers is a consequence of their religious beliefs, and not of the Act. Even in the absence of the Act, devout Jews and Seventh-day Adventists would close on Saturdays. The effect of the Act is to require them and all other persons, subject to the exemptions but irrespective of religious persuasion, to close on Sundays. Consequently, it is argued, there is no nexus between the impugned law and the freedom of Saturday observers to exercise their religious beliefs…

113. In view of the characteristics of the retail industry described in the *Report on Sunday Observance Legislation*, I find myself unable to draw such a neat distinction between benefits accruing to Sunday-observing retailers and burdens imposed on Saturday observers. The Report refers on numerous occasions to the highly competitive nature of the retail industry, such that an increase in sales by one individual retailer occasioned by that retailer's marketing practices tends to result in significant decreases in the sales of other retailers. It follows that if the Act confers an advantage on Sunday-observing retailers relative to Saturday-observing retailers, the latter are burdened by the legislation.

114. A careful comparison of the effects of Sunday closing legislation on different religious groups clearly demonstrates the manner in which the burden flows from the legislation. In the absence of legislative intervention, the Saturday observer and the Sunday observer would be on a roughly equal footing in competing for shares of the available consumer buying power. Both might operate for a maximum of six days each week. Both would be disadvantaged relative to non-observing retailers who would have the option of a seven day week. On this account, however, they would have no complaint cognizable in law since the disability would be one flowing exclusively from their religious tenets… exemptions aside, the *Retail Business Holidays Act* has the effect of leaving the Saturday observer at the same natural disadvantage relative to the non-observer and adding the new, purely statutory disadvantage of being closed an extra day relative to the Sunday observer. Just as the Act makes it less costly for Sunday observers to practise their religious beliefs, it thereby makes it more expensive for some Jewish and Seventh-day Adventist retailers to practise theirs.

…

131. A more difficult question--and one which goes to the heart of this litigation--is whether the *Retail Business Holidays Act* abridges the freedom of religion of Saturday observers as little as is reasonably possible. Section 3(4) [the exemption provision, which allowed stores to open on Sundays if (a) they had been closed on Saturday, (b) they had no more than seven employees, and (c) had less than 5000 square feet of retail space,] has the effect, and was intended to have the effect, of very substantially reducing the impact of the Act on those religious groups for whom Saturday is a Sabbath. What must be decided, however, is whether there is some reasonable alternative scheme which would allow the province to achieve its objective with fewer detrimental effects on religious freedom…

138. I am impressed… with the concerns of the majority of the United States Supreme Court [in *Braunfeld v. Brown*] in two respects. The first relates to the balancing of an indirect burden on the religious freedom of a retail store owner against the interests of his or her perhaps sometimes numerous employees. The second relates to the undesirability of state-sponsored inquiries into religious beliefs.

139. With respect to the first concern, I agree with the majority of the United States Supreme Court that it is legitimate for legislatures to be concerned with minimizing the disruptive effect of any exemption on the scope and quality of the pause day, and that it would be highly undesirable for such concern to find expression in a rule conditioning the availability of an exemption on the hiring by retailers of co-religionists. Because of their substantial share of total sales volume … and their numerous employees, the operation of large retail outlets on Sundays would entail a substantial disruption of the quality of the pause day. It is, however, not so much the disruption of the quality of the pause day in terms of commercial activity that concerns me. What concerns me, rather, is the limitation of its scope in terms of the employees who would be denied the benefits which the Act was designed to provide them.

140. What cannot be forgotten is that the object of the legislation is to benefit retail employees by making available to them a weekly holiday which coincides with that enjoyed by most of the community. These employees do not constitute a powerful group in society….

142. I turn now to the second factor which, in my opinion, contributes to the justification of the legislation under review. In discussing the possibility of a Sabbatarian exemption as a means of reducing the burdens of Sunday closing laws on religious freedom, the majority of the United States Supreme Court had occasion to express concern about state-conducted inquiries into religious beliefs. The striking advantage of the Ontario Act is that it makes available an exemption to the small and mid-size retailer without the indignity of having to submit to such an inquiry. In my view, state-sponsored inquiries into any person's religion should be avoided wherever reasonably possible, since they expose an individual's most personal and private beliefs to public airing and testing in a judicial or quasi-judicial setting. The inquiry is all the worse when it is demanded only of members of a non-majoritarian faith, who may have good reason for reluctance about so exposing and articulating their non-conformity.

143. I do not mean to suggest that a judicial inquiry into the sincerity of religious beliefs is unconstitutional. To so hold would mean that the courts could never grant constitutional exemptions from legislation which impinged on the free exercise of religious beliefs. Judicial inquiries into religious beliefs are largely unavoidable if the constitutional freedoms guaranteed by s. 2(*a*) are to be asserted before the courts… There will, however, be occasions when a substantial measure of religious freedom can be achieved without mandating a state-conducted inquiry into personal religious convictions and the legislatures ought to be encouraged to do so, if a fair balance is struck.

…

145. In this context, I note that freedom of religion, perhaps unlike freedom of conscience, has both individual and collective aspects. Legislatures are justified in being conscious of the effects of legislation on religious groups as a whole, as well as on individuals. In some circumstances, it is open to balance the religious freedoms of the many members of any particular religious group against those of the few when differential treatment is based on a criterion, such as the size of one's retail business, which is not in itself offensive to constitutional provisions, principles, and purposes.

146. Nevertheless, while the number of detrimentally affected retailers may be small, no legislature in Canada is entitled to do away with any of the religious freedoms to which these or any other individuals are entitled without strong reason. In my view, the balancing of the interests of more than seven employees to a common pause day against the freedom of religion of those affected constitutes justification for the exemption scheme selected by the Province of Ontario, at least in a context wherein any satisfactory alternative scheme involves an inquiry into religious beliefs.

147. I might add that I do not believe there is any magic in the number seven as distinct from, say, five, ten, or fifteen employees as the cut-off point for eligibility for the exemption. In balancing the interests of retail employees to a holiday in common with their family and friends against the s. 2(*a*) interests of those affected the Legislature engaged in the process envisaged by s. 1 of the *Charter*. A "reasonable limit" is one which, having regard to the principles enunciated in *Oakes*, it was reasonable for the legislature to impose. The courts are not called upon to substitute judicial opinions for legislative ones as to the place at which to draw a precise line.

2 Restriction and Accommodation of Religious Practice

Often, litigation of s 2(a) takes the form of an individual seeking an exception from a generally applicable rule. The *Amselem* case, excerpted below, is an example of this kind of case. It was in this case that the SCC articulated the current test for the infringement of s 2(a), which has been mostly stable since then. While the case involved a claim made under Québec's *Charter of Human Rights and Freedoms* rather than the *Canadian Charter of Rights and Freedoms*, the SCC explained that the test would apply in both contexts. As you will see below, the test requires a claimant to prove (a) that they have a sincere belief that a belief or practice has nexus with religion, and (b) that some state conduct has interfered with that practice in a manner that is more than trivial. The first component of this analysis is subjective (based on the claimant's viewpoint), while the second is objective.

The other cases in this section provide further examples of claims to avoid the application of a general rule. Despite being framed in the rhetoric of freedom or liberty, they also may have implications for inclusion in public institutions, as the *Multani* case below arguably does with respect to public schools. Perhaps because of this, the majority in *Multani* borrows the concept of "reasonable accommodation" from the case law applying human rights codes, and finds that a school had an obligation to accommodate a Sikh student who believed he must wear kirpan. In addition, because so much comes down to section 1 of the *Charter* or its administrative law analog, we may start to see some pressure to allow more leeway to governments. In the *Hutterian Brethren* case that follows, we see the court determining that the "reasonable accommodation" analysis, while appropriate to individualized decisions of administrative decision-makers, is not appropriate for the constitutional analysis of generally applicable laws and regulations. Further, the case arguably makes it easier for governments to justify *Charter* infringements at the minimal impairment stage of the *Oakes* analysis.

2.1 Guiding questions

1. The test for religious freedom is highly subjective. What are the costs and benefits of such an approach? What might the alternatives be?
2. The test for a religious freedom infringement is relatively easy for a claimant to satisfy – what impact might this have on this kind of litigation?

2.2 *Syndicat Northcrest v. Amselem*, 2004 SCC 47 (CanLII), [2004] 2 SCR 551

2.2.1 Majority

The judgment of McLachlin C.J. and Iacobucci, Major, Arbour and Fish JJ. was delivered by

IACOBUCCI J. —

I. Introduction

1 An important feature of our constitutional democracy is respect for minorities, which includes, of course, religious minorities: see *Reference re Secession of Quebec*, 1998 CanLII 793 (SCC), [1998] 2 SCR 217, at paras. 79-81. Indeed, respect for and tolerance of the rights and practices of religious minorities is one of the hallmarks of an enlightened democracy. But respect for religious minorities is not a stand-alone absolute right; like other rights, freedom of religion exists in a matrix of other correspondingly important rights that attach to individuals. Respect for minority rights must also coexist alongside societal values that are central to the make-up and functioning of a free and democratic society. This appeal requires the Court to deal with the interrelationship between fundamental rights both at a conceptual level and for a practical outcome.

2 More specifically, the cases which are the subject of this appeal involve a religious claim by the appellants for the setting up of a "succah" for nine days a year in the pursuit of their religious beliefs on their co-owned property under the Quebec *Charter of Human Rights and Freedoms*, R.S.Q., c. C-12 (the "Quebec *Charter*"). The Quebec courts denied the claim. With respect, I disagree and would allow the appeal.

3 In particular, after defining the scope of freedom of religion and its infringement, I find that the appellants' religious freedom under the Quebec *Charter* has been infringed by the declaration of co-ownership. While the respondent has raised rights to enjoy property and personal security as justification for its refusal to allow a succah to be set up, I find that the impairment of the appellants' religious freedom is serious whereas I conclude that the intrusion on the respondent's rights is minimal. As such, I hold that the appellants must be permitted to set up succahs on their balconies, provided that the succahs remain only for the limited time necessary — in this case nine days —, allow for an emergency access route, and conform, as much as possible, with the general aesthetics of the property. I also find the argument that the appellants waived their religious rights cannot be maintained under the circumstances, nor did they implicitly agree not to set up succahs on their balconies by signing the declaration of co-ownership.

II. Background

4 The appellants, all Orthodox Jews, are divided co-owners of residential units in "Place Northcrest", two luxury buildings forming part of "Le Sanctuaire du Mont-Royal" (the "Sanctuaire"), a larger complex in Montréal…

5 In late September 1996, Mr. Amselem, at the time a new resident of the Sanctuaire, set up a "succah" on his balcony for the purposes of fulfilling a biblically mandated obligation during the Jewish religious festival of Succot. A succah is a small enclosed temporary hut or booth, traditionally made of wood or other materials such as fastened canvas, and open to the heavens, in which, it has been acknowledged, Jews are commanded to "dwell" temporarily during the festival of Succot, which commences annually with nightfall on the fifteenth day of the Jewish month of Tishrei. This nine-day festival, which begins in late September or early- to mid-October, commemorates the 40-year period during which, according to Jewish tradition, the Children of Israel wandered in the desert, living in temporary shelters.

6 Under the Jewish faith, in commemoration of the festival's historical connection and as a symbolic demonstration of their faith in the divine, Jews are obligated to dwell in these succahs, as their ancestors did in the desert. Orthodox Jews observe this biblically mandated commandment of "dwelling" in a succah by transforming the succah into the practitioner's primary residence for the entire holiday period. They are required to take all their meals in the succah; they customarily conduct certain religious ceremonies in the succah; they are required, weather permitting, to sleep in the succah; and they are otherwise required to generally make the succah their primary abode for the entirety of the festival period, health and weather permitting.

7 Technically, a succah must minimally consist of a three-walled, open-roofed structure which must meet certain size specifications in order to fulfill the biblical commandment of dwelling in it properly according to the requirements of the Jewish faith. While a succah is usually festively decorated interiorly, there are no aesthetic requirements as to its exterior appearance.

8 During the first two and last two days of the Succot holiday, as well as during any intermittent Saturday, Orthodox Jews are normally forbidden from *inter alia* turning electricity on or off and riding in cars or elevators. Similarly, during the Saturday(s) falling within the nine-day festival, Orthodox Jews are forbidden from carrying objects outside of their private domiciles in the absence of a symbolic enclosure, or *eruv*.

9 After Mr. Amselem put up his succah in September 1996, the syndicate of co-ownership, Syndicat Northcrest (the "respondent" or "Syndicat"), requested its removal, claiming the succah was in violation of the Sanctuaire's by-laws as stated in the declaration of co-ownership, which *inter alia* prohibited decorations, alterations and constructions on the Sanctuaire's balconies…

None of the appellants had read the declaration of co-ownership prior to purchasing or occupying their individual units.

…

11 A year later, on October 6, 1997, and pursuant to the regulations in the declaration of co-ownership, Mr. Amselem requested permission from the Syndicat to set up a succah on, and thus enclose part of, his balcony to celebrate the same holiday of Succot. The Syndicat refused, invoking the restrictions in the declaration of co-ownership.

…

13 In a letter dated October 10, 1997, the Syndicat proposed to allow Mr. Amselem, in conjunction with the other Orthodox Jewish residents of the building, including the appellants Mr. Fonfeder and Mr. Klein, to set up a communal succah in the Sanctuaire's gardens.

14 In their October 14, 1997 letter to the Syndicat, the appellants expressed their dissatisfaction with the respondent's proposed accommodation. They explained why a communal succah would not only cause extreme hardship with their religious observance, but would also be contrary to their personal religious beliefs which, they claimed, called for "their own succah, each on his own balcony".

15 In their letter, the appellants implored the Syndicat to accede to their request and permit their own individual succahs, which they undertook to set up "in such a way that they would not block any doors, would not obstruct fire lanes, [and] would pose no threat to safety or security in any way". The Syndicat refused their request.

16 Each of the appellants nonetheless proceeded to set up a succah on his or her balcony. Apart from Mr. Amselem and Mr. Fonfeder in September 1996, the appellants in this appeal had not set up succahs on their balconies at the Sanctuaire in prior years; in those years they had celebrated the holiday as guests with family and friends, using their hosts' succahs.

17 In response, the respondent Syndicat filed an application for permanent injunction prohibiting the appellants from setting up succahs and, if necessary, permitting their demolition. The application was granted by the Superior Court on June 5, 1998.

III. Relevant Legislative Provisions

18 *Charter of Human Rights and Freedoms*, R.S.Q., c. C-12

1. Every human being has a right to life, and to personal security, inviolability and freedom.

He also possesses juridical personality.

3. Every person is the possessor of the fundamental freedoms, including freedom of conscience, freedom of religion, freedom of opinion, freedom of expression, freedom of peaceful assembly and freedom of association.

6. Every person has a right to the peaceful enjoyment and free disposition of his property, except to the extent provided by law.

9.1. In exercising his fundamental freedoms and rights, a person shall maintain a proper regard for democratic values, public order and the general well-being of the citizens of Québec.

In this respect, the scope of the freedoms and rights, and limits to their exercise, may be fixed by law.

…

V. Issues

35 In my view, the key issues before us are: (1) whether the clauses in the by-laws of the declaration of co-ownership, which contained a general prohibition against decorations or constructions on one's balcony, infringe the appellants' freedom of religion protected under the Quebec *Charter*; (2) if so, whether the refusal by the respondent to permit the setting up of a succah is justified by its reliance on the co-owners' rights to enjoy property under s. 6 of the Quebec *Charter* and their rights to personal security under s. 1 thereof; and (3) whether the appellants waived their rights to freedom of religion by signing the declaration of co-ownership.

VI. Analysis

…

A. Freedom of Religion

37 The analysis that follows sets out the principles that are applicable in cases where an individual alleges that his or her freedom of religion is infringed under the Quebec *Charter* or under the *Canadian Charter of Rights and Freedoms*. …

(1) Definition of Religious Freedom

…

39 In order to define religious freedom, we must first ask ourselves what we mean by "religion". While it is perhaps not possible to define religion precisely, some outer definition is useful since only beliefs, convictions and practices rooted in religion, as opposed to those that are secular, socially based or conscientiously held, are protected by the guarantee of freedom of religion. Defined broadly, religion typically involves a particular and comprehensive system of faith and worship. Religion also tends to involve the belief in a divine, superhuman or controlling power. In essence, religion is about freely and deeply held personal convictions or beliefs connected to an individual's spiritual faith and integrally linked to one's self-definition and spiritual fulfilment, the practices of which allow individuals to foster a connection with the divine or with the subject or object of that spiritual faith.

40 What then is the definition and content of an individual's protected right to religious freedom under the Quebec (or the Canadian) *Charter*? This Court has long articulated an expansive definition of freedom of religion, which revolves around the notion of personal choice and individual autonomy and freedom.

…

42 This understanding is consistent with a personal or subjective conception of freedom of religion, one that is integrally linked with an individual's self-definition and fulfilment and is a function of personal autonomy and choice, elements which undergird the right…

43 The emphasis then is on personal choice of religious beliefs. In my opinion, these decisions and commentary should not be construed to imply that freedom of religion protects only those aspects of religious belief or conduct that are objectively recognized by religious experts as being obligatory tenets or precepts of a particular religion. Consequently, claimants seeking to invoke freedom of religion should not need to prove the objective validity of their beliefs in that their beliefs are objectively recognized as valid by other members of the same religion, nor is such an inquiry appropriate for courts to make; see, e.g., *Re Funk and Manitoba Labour Board* (1976), 1976 CanLII 1098 (MB CA), 66 D.L.R. (3d) 35 (Man. C.A.), at pp. 37-38. In fact, this Court has indicated on several occasions that, if anything, a person must show "[s]incerity of belief" (*Edwards Books*, *supra*, at p. 735) and not that a particular belief is "valid".

…

45 In the United States, where there is a richness of jurisprudence on this matter, the United States Supreme Court has similarly adopted a subjective, personal and deferential definition of freedom of religion, centred upon sincerity of belief. For example, in *Thomas v. Review Board of the Indiana Employment Security Division*, 450 U.S. 707 (1981), the court held that it was the plaintiff's subjective beliefs, and not the official position of the particular religion, which must be considered in evaluating the free exercise guarantees under the First Amendment of the U.S. Constitution…

46 To summarize up to this point, our Court's past decisions and the basic principles underlying freedom of religion support the view that freedom of religion consists of the freedom to undertake practices and harbour beliefs, having a nexus with religion, in which an individual demonstrates he or she sincerely believes or is sincerely undertaking in order to connect with the divine or as a function of his or her spiritual faith, irrespective of whether a particular practice or belief is required by official religious dogma or is in conformity with the position of religious officials.

47 But, at the same time, this freedom encompasses objective as well as personal notions of religious belief, "obligation", precept, "commandment", custom or ritual. Consequently, both obligatory as well as voluntary expressions of faith should be protected under the Quebec (and the Canadian) *Charter*. It is the religious or spiritual essence of an action, not any mandatory or perceived-as-mandatory nature of its observance, that attracts protection. An inquiry into the mandatory nature of an alleged religious practice is not only inappropriate, it is plagued with difficulties. …

…

49 To require a person to prove that his or her religious practices are supported by a mandatory doctrine of faith, leaving it for judges to determine what those mandatory doctrines of faith are, would require courts to interfere with profoundly personal beliefs in a manner inconsistent with the principles set out by Dickson C.J. in *Edwards Books*…

50 In my view, the State is in no position to be, nor should it become, the arbiter of religious dogma. Accordingly, courts should avoid judicially interpreting and thus determining, either explicitly or implicitly, the content of a subjective understanding of religious requirement, "obligation", precept, "commandment", custom or ritual. Secular judicial determinations of theological or religious disputes, or of contentious matters of religious doctrine, unjustifiably entangle the court in the affairs of religion.

51 That said, while a court is not qualified to rule on the validity or veracity of any given religious practice or belief, or to choose among various interpretations of belief, it is qualified to inquire into the sincerity of a claimant's belief, where sincerity is in fact at issue: see *Jones*, *supra*; *Ross*, *supra*. It is important to emphasize, however, that sincerity of belief simply implies an honesty of belief: see *Thomas v. Review Board of the Indiana Employment Security Division*, *supra*.

52 According to American constitutional law scholar Professor Laurence Tribe, the jurisprudence in this area evinces that inquiries into a claimant's sincerity must be as limited as possible. He argues that "given the widening understanding of what constitutes religion in our society, the very rights ostensibly protected by the free exercise clause might well be jeopardized by any but the most minimal inquiry into sincerity": L. H. Tribe, *American Constitutional Law* (2nd ed. 1988), at pp. 1245-46. While this was written in the context of the First Amendment to the U.S. Constitution, I believe that it is equally applicable to delimiting the court's role in interpreting religious freedom under the Quebec (or the Canadian) *Charter*. Indeed, the court's role in assessing sincerity is intended only to ensure that a presently asserted religious belief is in good faith, neither fictitious nor capricious, and that it is not an artifice. Otherwise, nothing short of a religious inquisition would be required to decipher the innermost beliefs of human beings.

53 Assessment of sincerity is a question of fact that can be based on several non-exhaustive criteria, including the credibility of a claimant's testimony (see Woehrling, *supra*, at p. 394), as well as an analysis of whether the alleged belief is consistent with his or her other current religious practices. It is important to underscore, however, that it is inappropriate for courts rigorously to study and focus on the past practices of claimants in order to determine whether their current beliefs are sincerely held. Over the course of a lifetime, individuals change and so can their beliefs. Religious beliefs, by their very nature, are fluid and rarely static. A person's connection to or relationship with the divine or with the subject or object of his or her spiritual faith, or his or her perceptions of religious obligation emanating from such a relationship, may well change and evolve over time. Because of the vacillating nature of religious belief, a court's inquiry into sincerity, if anything, should focus not on past practice or past belief but on a person's belief at the time of the alleged interference with his or her religious freedom.

54 A claimant may choose to adduce expert evidence to demonstrate that his or her belief is consistent with the practices and beliefs of other adherents of the faith. While such evidence may be relevant to a demonstration of sincerity, it is not necessary. Since the focus of the inquiry is not on what others view the claimant's religious obligations as being, but rather what the claimant views these personal religious "obligations" to be, it is inappropriate to require expert opinions to show sincerity of belief. An "expert" or an authority on religious law is not the surrogate for an individual's affirmation of what his or her religious beliefs are. Religious belief is intensely personal and can easily vary from one individual to another. Requiring proof of the established practices of a religion to gauge the sincerity of belief diminishes the very freedom we seek to protect.

55 This approach to freedom of religion effectively avoids the invidious interference of the State and its courts with religious belief. The alternative would undoubtedly result in unwarranted intrusions into the religious affairs of the synagogues, churches, mosques, temples and religious facilities of the nation with value-judgment indictments of those beliefs that may be unconventional or not mainstream. As articulated by Professor Tribe, *supra*, at p. 1244, "an intrusive government inquiry into the nature of a claimant's beliefs would in itself threaten the values of religious liberty".

56 Thus, at the first stage of a religious freedom analysis, an individual advancing an issue premised upon a freedom of religion claim must show the court that (1) he or she has a practice or belief, having a nexus with religion, which calls for a particular line of conduct, either by being objectively or subjectively obligatory or customary, or by, in general, subjectively engendering a personal connection with the

divine or with the subject or object of an individual's spiritual faith, irrespective of whether a particular practice or belief is required by official religious dogma or is in conformity with the position of religious officials; and (2) he or she is sincere in his or her belief. Only then will freedom of religion be triggered.

(2) Infringement of Religious Freedom

57 Once an individual has shown that his or her religious freedom is triggered, as outlined above, a court must then ascertain whether there has been enough of an interference with the exercise of the implicated right so as to constitute an infringement of freedom of religion under the Quebec (or the Canadian) *Charter*.

58 … Section 2(*a*) of the Canadian *Charter* prohibits only burdens or impositions on religious practice that are non-trivial…

59 It consequently suffices that a claimant show that the impugned contractual or legislative provision (or conduct) interferes with his or her ability to act in accordance with his or her religious beliefs in a manner that is more than trivial or insubstantial. The question then becomes: what does this mean?

…

61 … it should be emphasized that not every action will become summarily unassailable and receive automatic protection under the banner of freedom of religion. No right, including freedom of religion, is absolute: … This is so because we live in a society of individuals in which we must always take the rights of others into account. In the words of John Stuart Mill: "The only freedom which deserves the name, is that of pursuing our own good in our own way, so long as we do not attempt to deprive others of theirs, or impede their efforts to obtain it": *On Liberty and Considerations on Representative Government* (1946), at p. 11. In the real world, oftentimes the fundamental rights of individuals will conflict or compete with one another.

62 Freedom of religion, as outlined above, quite appropriately reflects a broad and expansive approach to religious freedom under both the Quebec *Charter* and the Canadian *Charter* and should not be prematurely narrowly construed. However, our jurisprudence does not allow individuals to do absolutely anything in the name of that freedom. Even if individuals demonstrate that they sincerely believe in the religious essence of an action, for example, that a particular practice will subjectively engender a genuine connection with the divine or with the subject or object of their faith, and even if they successfully demonstrate non-trivial or non-insubstantial interference with that practice, they will still have to consider how the exercise of their right impacts upon the rights of others in the context of the competing rights of private individuals. Conduct which would potentially cause harm to or interference with the rights of others would not automatically be protected. The ultimate protection of any particular *Charter* right must be measured in relation to other rights and with a view to the underlying context in which the apparent conflict arises.

63 Indeed, freedom of religion, like all other rights, applicable either as against the State or, under the Quebec *Charter*, in its private dimension as against another individual, may be made subject to overriding societal concerns. As with other rights, not every interference with religious freedom would be actionable, in accordance with the limitations on the exercise of fundamental rights recognized by the Quebec *Charter*.

(3) Alleged Justification for the Limit on the Exercise of Freedom of Religion

64 The respondent in the instant appeal has argued that the rights of the co-owners to peacefully enjoy property and to personal security limit the exercise of the appellants' religious freedom under the circumstances. I acknowledge that much can be said about the nature of and interrelationship among the various rights found in the Quebec Charter as raised in this appeal. But such an analysis is not necessary to dispose of the issues in this case. This is because at bottom, and as discussed below, whereas I find the appellants' rights to freedom of religion significantly impaired, on the facts of this case the impact on the respondent's rights at issue is, at best, minimal and thus cannot be construed as validly limiting the exercise of the appellants' religious freedom.

B. Application to the Facts

(1) Freedom of Religion and Infringement

(a) As Pertaining to Setting Up One's Own Succah

65 As outlined above, the first step in successfully advancing a claim that an individual's freedom of religion has been infringed is for a claimant to demonstrate that he or she sincerely believes in a practice or belief that has a nexus with religion. The second step is to then demonstrate that the impugned conduct of a third party interferes with the individual's ability to act in accordance with that practice or belief in a manner that is non-trivial. …

66 … the approach adopted by Rochon J. at trial and Dalphond J. for the majority of the Court of Appeal is inconsistent with the proper approach to freedom of religion. First, the trial judge's methodology was faulty in that he chose between two competing rabbinical authorities on a question of Jewish law. Second, he seems to have based his findings with respect to freedom of religion solely on what he perceived to be the objective obligatory requirements of Judaism. He thus failed to recognize that freedom of religion under the Quebec (and the Canadian) *Charter* does not require a person to prove that his or her religious practices are supported by any mandatory doctrine of faith.

67 Furthermore, in my opinion, any incorporation of distinctions between "obligation" and "custom" or, as made by the respondent and the courts below, between "objective obligation" and "subjective obligation or belief" within the framework of a religious freedom analysis is dubious, unwarranted and unduly restrictive. In my view, when courts undertake the task of analysing religious doctrine in order to determine the truth or falsity of a contentious matter of religious law, or when courts attempt to define the very concept of religious "obligation", as has been suggested in the courts below, they enter forbidden domain. It is not within the expertise and purview of secular courts to adjudicate questions of religious doctrine.

68 Similarly, to frame the right either in terms of objective religious "obligation" or even as the sincere subjective belief that an obligation exists and that the practice is required would lead to arbitrary and hierarchical determinations of religious "obligation", would exclude religious custom from protection, and would disregard the value of non-obligatory religious experiences by excluding those experiences from protection. Jewish women, for example, strictly speaking, do not have a biblically mandated "obligation" to dwell in a succah during the Succot holiday. If a woman, however, nonetheless sincerely believes that sitting and eating in a succah brings her closer to her Maker, is that somehow less deserving of recognition simply because she has no strict "obligation" to do so? Is the Jewish yarmulke or Sikh turban worthy of less recognition simply because it may be borne out of religious custom, not obligation? Should an individual Jew, who may personally deny the modern relevance of literal biblical "obligation" or "commandment", be precluded from making a freedom of religion argument despite the fact that for some reason he or she sincerely derives a closeness to his or her God by sitting in a succah? Surely not.

69 Rather, as I have stated above, regardless of the position taken by religious officials and in religious texts, provided that an individual demonstrates that he or she sincerely believes that a certain practice or belief is experientially religious in nature in that it is either objectively required by the religion, or that he or she subjectively believes that it is required by the religion, or that he or she sincerely believes

that the practice engenders a personal, subjective connection to the divine or to the subject or object of his or her spiritual faith, and as long as that practice has a nexus with religion, it should trigger the protection of s. 3 of the Quebec *Charter* or that of s. 2(*a*) of the Canadian *Charter*, or both, depending on the context.

70 On the question of sincerity, the respondent argues that the appellants do not sincerely believe that their religion requires them to build their own individual succahs on their balconies. That said, the trial judge did find that Mr. Amselem, at least, sincerely believed that he was obliged to set up a succah on his own property, thus triggering his freedom of religion protection according to the first step in our analysis.

…

73 When the appellants adduced Rabbi Ohana's expert testimony, they were submitting evidence of their sincere individual belief as to the inherently personal nature of fulfilling the commandment of dwelling in a succah. As expounded upon by Rabbi Ohana, according to Jewish law the obligation of "dwelling" must be complied with festively and joyously, without causing distress to the individual. Great distress, such as that caused by inclement weather, extreme cold or, in this case, the extreme unpleasantness rendered by forced relocation to a communal succah, with all attendant ramifications, for the entire nine-day period would not only preclude the acknowledged obligation of dwelling in a succah but would also render voluntary compliance wrongful and inappropriate, thus necessitating the setting up of a private succah. In light of our test for freedom of religion, such expert testimony, although not required, would in my view certainly support a positive finding of sincerity and honesty of the appellants' belief. As a result, all of the appellants have, in my opinion, successfully implicated freedom of religion.

74 According to the governing principles, however, in order for a triggered right of religious freedom to have been infringed, the interference with the right needs to be more than trivial or insubstantial: see *Jones*, *supra*. It is evident that in respect of Mr. Amselem the impugned clauses of the declaration of co-ownership interfere with his right in a substantial way. For if, as Rochon J. himself found, Mr. Amselem sincerely believes that he is obligated by the Jewish religion to set up and dwell in his own succah, then a prohibition against setting up his own succah obliterates the substance of his right, let alone interferes with it in a non-trivial fashion. A communal succah is simply not an option. Thus, his right is definitely infringed.

…

77 … a communal succah, as the respondent proposes, would force the appellants to carry food and utensils from their units on elevated floors to the succah, and traverse the expanse of the property to the Sanctuaire's gardens for every course at every meal throughout the holiday. Since Orthodox Jews are precluded from using elevators on the Sabbath and on the first two and last two days of the Succot holiday, this would amount to forcing Orthodox Jewish residents, including the elderly among them, to climb up and down numerous flights of stairs throughout each meal for much of the nine-day holiday period. Furthermore, by being forced to share all meals with the other Jewish residents of the complex, a communal succah would also preclude the intimate celebration of the holiday with immediate family. Those who choose to sleep in the succah, weather permitting, would have to do so communally and in the open, far from the proximity and safety of their individual units. Such distress is even objectively substantial and would undoubtedly, as the appellants assert, detract from the joyous celebration of the holiday and thus constitute a non-trivial interference with and an infringement of their rights to religious freedom.

(b) As Pertaining to "Dwelling" in a Succah

78 In the alternative, there is no doubt whatsoever from the record that all of the appellants sincerely believe that they must fulfill the biblically mandated obligation, perhaps not necessarily of having one's own succah, but of "dwelling" in a succah for the entire nine-day festival of Succot. This thus triggers freedom of religion. The question then becomes, once again, whether the appellants' rights have been infringed. Even though the Sanctuaire's by-laws do not overtly forbid them to dwell in a succah — in that the appellants are free to celebrate the holiday with relatives or in a proposed communal succah —, the appellants' protected rights will nonetheless be infringed, according to this Court's jurisprudence, if the impugned clauses constrain their rights to dwell in a succah in a manner that is non-trivial or not insubstantial. In my view, they do.

79 The burdens placed upon the appellants as a result of the operation of the impugned clauses, either by requiring them to celebrate the holiday by imposing on others or by forcing them, as suggested by the respondent, to celebrate in a communal succah, are evidently substantial. Preventing the appellants from building their own succah therefore constitutes a non-trivial interference with their protected rights to dwell in a succah during the festival of Succot, which all acknowledge they sincerely regard as a religious requirement. The result is that the impugned stipulations in the declaration of co-ownership infringe upon the appellants' freedom of religion under s. 3 of the Quebec *Charter*.

80 Consequently, I believe that all of the appellants have successfully made out an infringement of their freedom of religion.

81 As discussed above, to my mind, the impairment of the appellants' religious freedom resulting from the refusal of the respondent to allow the setting up of succahs on balconies is serious. As a result, the enjoyment of their rights to religious freedom has been significantly impaired. The Syndicat's offer of allowing the appellants to set up a communal succah in the Sanctuaire's gardens does not remedy nor does it even address that impairment.

(2) The Alleged Justification for the Limit on the Exercise of Freedom of Religion in this Case

82 Against the appellants' rights, the respondent Syndicat claims that the potential setting up of succahs on the appellants' balconies for the nine-day holiday of Succot would interfere with the co-owners' rights to the peaceful enjoyment of their property and to personal security, protected under ss. 6 and 1 of the Quebec Charter, respectively, thus justifying the total blanket prohibition against setting up succahs.

83 More specifically, in this case the co-owners' rights to peaceful enjoyment of their co-owned property in general, and of the balconies as "common portions" thereof in particular, has been articulated as a function of preserving the economic and aesthetic value of their property, which, they assert, is a component of an individual's right to enjoy his or her property under the Quebec Charter. Similarly, the respondent claims that the co-owners' rights to personal security under the Charter have been implicated; because the balconies of the Sanctuaire are fire-escape routes, cordoning off of the balcony would jeopardize the co-owners' safety in an emergency situation. In essence, the Syndicat is requesting in the name of the co-ownership that the appellants cease and desist from setting up these succahs, claiming that their presence negatively affects the co-owners' aesthetic, economic, and security interests in the property.

84 In the final analysis, however, I am of the view that the alleged intrusions or deleterious effects on the respondent's rights or interests under the circumstances are, at best, minimal and thus cannot be reasonably considered as imposing valid limits on the exercise of the appellants' religious freedom.

85 In practice, to what degree would the respondent be harmed were the appellants allowed to set up a succah for a period of 9 out of 365 days a year? The evidence before us does not provide a satisfactory answer. The respondent has simply not adduced enough evidence for us to conclude that allowing the appellants to set up such temporary succahs would cause the value of the units, or of the property, to decrease. Even if I were to consider the possibility that the economic value of the property might decrease if a substantial number of co-owners

were allowed to set up succahs on their balconies for a lengthy time period throughout the year, any drop in value caused by the presence of a small number of succahs for a period of nine days each year would undoubtedly be minimal. Consequently, in this case, the exercise of the appellants' freedom of religion, which I have concluded would be significantly impaired, would clearly outweigh the unsubstantiated concerns of the co-owners about the decrease in property value.

86 Similarly, protecting the co-owners' enjoyment of the property by preserving the aesthetic appearance of the balconies and thus enhancing the harmonious external appearance of the building cannot be reconciled with a total ban imposed on the appellants' exercise of their religious freedom. Although residing in a building with a year-long uniform and harmonious external appearance might be the co-owners' preference, the potential annoyance caused by a few succahs being set up for a period of nine days each year would undoubtedly be quite trivial.

87 In a multiethnic and multicultural country such as ours, which accentuates and advertises its modern record of respecting cultural diversity and human rights and of promoting tolerance of religious and ethnic minorities — and is in many ways an example thereof for other societies —, the argument of the respondent that nominal, minimally intruded-upon aesthetic interests should outweigh the exercise of the appellants' religious freedom is unacceptable. Indeed, mutual tolerance is one of the cornerstones of all democratic societies. Living in a community that attempts to maximize human rights invariably requires openness to and recognition of the rights of others. In this regard, I must point out, with respect, that labelling an individual's steadfast adherence to his or her religious beliefs "intransigence", as Morin J.A. asserted at para. 64, does not further an enlightened resolution of the dispute before us.

88 Finally, the respondent alleges that banning succahs on the appellants' balconies, portions of which are subject under the by-laws to a right of servitude in cases of emergency, ensures that the balconies, as fire escape routes, would remain unobstructed in the case of emergency and, as such, the ban seeks to protect the co-owners' rights to personal security under s. 1 of the Quebec Charter. I agree that security concerns, if soundly established, would require appropriate recognition in ascertaining any limit on the exercise of the appellants' religious freedom.

89 However, in their October 14, 1997 letter to the respondent, the appellants obviated any such concerns by all offering to set up their succahs "in such a way that they would not block any doors, would not obstruct fire lanes, [and] would pose no threat to safety or security in any way".

…

91 Dalphond J. held, and the respondent contends, that the appellants had waived their rights to freedom of religion — or had implicitly agreed with the terms of the by-laws — when they signed the declaration of co-ownership, and that the appellants must comply with the impugned provisions of the Sanctuaire's by-laws, including the general prohibition against decorations or constructions on balconies. I confess to some difficulty in understanding the legal basis for this proposition. Whether it amounts to "waiver" — or to waiver by another name —, the argument does not withstand scrutiny.

92 Whether one can waive a constitutional right like freedom of religion is a question that is not free from doubt: …

…

96 … by its very nature, waiver of any right must be voluntary, freely expressed and with a clear understanding of the true consequences and effects of so doing if it is to be effective: see Richard, supra, at para. 22.

…

98 Under the circumstances of the instant case, the appellants had no choice but to sign the declaration of co-ownership in order to live at the Sanctuaire… It would be both insensitive and morally repugnant to intimate that the appellants simply move elsewhere if they took issue with a clause restricting their rights to freedom of religion.

…

99 Further, in this case, there is no evidence whatsoever that the appellants were aware that signing the declaration of co-ownership amounted to a waiver of their rights to freedom of religion. In fact, the respondent admits that the appellants [TRANSLATION] "did not read these provisions on purchasing their co-owned property, although they were duly given a copy of the declaration of co-ownership". …

100 Third, at a minimum, waiver of a fundamental right such as freedom of religion, if possible at all, presumably need not only be voluntary; it must also be explicit, stated in express, specific and clear terms. Not only would a general prohibition on constructions, such as the one in the declaration of co-ownership, be insufficient to ground a finding of waiver, but arguably so would any document lacking an explicit reference to the affected Charter right.

…

VII. Conclusions and Disposition

103 Based on the foregoing analysis, I find that the impugned provisions in the declaration of co-ownership prohibiting constructions on the appellants' balconies infringe the appellants' freedom of religion under the Quebec *Charter.* I also do not believe it can be maintained that the appellants waived their rights to freedom of religion or implicitly agreed not to set up succahs on their balconies for the religiously mandated period by signing the declaration of co-ownership. Under the circumstances, I find that the respondent's justificatory claims for this infringement are unfounded; the co-owners' personal security concerns are largely obviated and their property interests are, at most, minimally intruded upon. The appellants are thus legally entitled to set up succahs on their balconies for a period lasting no longer than the holiday of Succot, so long as the succahs allow room for a passageway in case of emergency as well as conform, as much as possible, with the general aesthetics of the property.

104 For the foregoing reasons, I would allow the appeal with costs throughout, set aside the decision of the Court of Appeal, and, in lieu thereof, declare that the appellants have a right to set up succahs on their balconies for the annual festival of Succot, subject to the undertakings they have given with regard to the size, placement, and general aesthetics of said succahs.

2.2.2 Dissents

English version of the reasons of Bastarache, LeBel and Deschamps JJ. delivered by

105 BASTARACHE J. (dissenting) —

…

IV. Analysis

A. The Scope of Freedom of Conscience and Religion

…

135 These passages seem to show that this Court has interpreted freedom of religion as protecting both religious beliefs, which are considered to be highly personal and private in nature, and consequent religious practices. However, a religion is a system of beliefs and practices based on certain religious precepts. A nexus between personal beliefs and the religion's precepts must therefore be established. This point of view is consistent with those encountered in other common law jurisdictions: ...Religious precepts constitute a body of objectively identifiable data that permit a distinction to be made between genuine religious beliefs and personal choices or practices that are unrelated to freedom of conscience. Connecting freedom of religion to precepts provides a basis for establishing objectively whether the fundamental right in issue has been violated. By identifying with a religion, an individual makes it known that he or she shares a number of precepts with other followers of the religion. The approach I have adopted here requires not only a personal belief or the adoption of a religious practice that is supported by a personal belief, but also a genuine connection between the belief and the person's religion. In my view, the only way the trial judge can establish that a person has a sincere belief, or has sincerely adopted a religious practice that is genuinely connected with the religion he or she claims to follow, is by applying an objective test. It is one thing to assert that a practice is protected even though certain followers of the religion do not think that the practice is included among the religion's precepts and quite another to assert that a practice must be protected when none of the followers think it is included among those precepts. If, pursuant to s. 3, a practice must be connected with the religion, the connection must be objectively identifiable.

…

137 … a method must be established for determining the scope of the protection that freedom of religion affords a claimant … there are in fact two elements to consider in analysing freedom of religion. First, there is the freedom to believe and to profess one's beliefs; second, there is the right to manifest one's beliefs, primarily by observing rites, and by sharing one's faith by establishing places of worship and frequenting them. Thus, although private beliefs have a purely personal aspect, the other dimension of the right has genuine social significance and involves a relationship with others. It would be an error to reduce freedom of religion to a single dimension, especially in conducting a contextual analysis like the one that must be conducted under s. 9.1 of the Quebec *Charter*.

…

140 …a claimant must prove that the conduct or practice to which he or she seeks to have freedom of religion apply is in fact based on a precept of his or her religion. The test is reasonable belief in the existence of a religious precept. In the absence of such proof, the court cannot assess the effects of the provisions or standards that, according to the claimant, infringe the rights of one or more members of a religious group: *Edwards Books*, *supra*, at p. 767. Even though religion is, first and foremost, a question of conscience, when an individual feels that a right as fundamental as the right to practise his or her religion has been infringed, a connection must be established between the religious precept and the individual asserting the right. To this end, expert testimony will be useful, as it can serve to establish the fundamental practices and precepts of a religion the individual claims to practise.

141 In the second step, the judge considers the sincerity of the claimant's religious beliefs.

…

C. Application to the Facts

…

162 The evidence shows that the appellants sincerely believed they were under an obligation to eat their meals and celebrate Succot in a succah. Although it would be preferable to do so in their own succahs whenever possible, there are numerous circumstances, such as the ones noted by the trial judge, in which using another person's succah would appear to be justified. Based on the evidence that was adduced and accepted by the trial judge, I accept that the appellants sincerely believe that, whenever possible, it would be preferable for them to erect their own succahs; however, it would not be a divergence from their religious precept to accept another solution, so long as the fundamental obligation of eating their meals in a succah was discharged. I therefore cannot accept that the appellants sincerely believe, based on the precepts of their religion that they are relying on, that they are under an obligation to erect their own succahs on their balconies, patios or porches. Rather, it is their practice of eating or celebrating Succot in a succah that is protected by the guarantee of freedom of religion set out in s. 3 of the Quebec *Charter*. The declaration of co-ownership does not hinder this practice, as it does not bar the appellants from celebrating Succot in a succah, whether at the homes of friends or family or even in a communal succah, as proposed by the respondent. Consequently, the prohibition against erecting their own succahs does not infringe the purpose of the appellants' right to freedom of religion. Any inconvenience resulting from the prohibition against erecting individual succahs is not sufficient to elevate the preference to the status of a mandatory religious practice.

163 In the case of the appellant Amselem, however, the trial judge concluded that he was [TRANSLATION] "the only one who saw the obligation to erect a succah on his own property in terms of a divine command" (p. 1909). Assuming that his belief is sincere, which the trial judge accepted, and that it is based on a precept of his religion, in accordance with the interpretation of the Book of Nechemiah, Chapter 8, verses 13 to 18, accepted by Morin J.A. on appeal, it is necessary to turn to the second step and to interpret the prohibitions imposed by the declaration of co-ownership in light of s. 9.1 of the Quebec *Charter* to determine whether they violate Mr. Amselem's right to freedom of religion.

2. Reconciling Rights Under Section 9.1 of the Quebec *Charter*

…

166 In the case at bar, the right to the peaceful enjoyment and free disposition of one's property is included in the purpose of the restrictions provided for in the declaration of co-ownership. The restrictions are aimed first and foremost at preserving the market value of the dwelling units held in co-ownership. They also protect the co-owners' right to enjoy the common portions reserved for exclusive use while preserving the building's style and its aesthetic appearance of a luxury building, not to mention the use of the balconies to evacuate the building in a dangerous situation. The total ban on erecting anything whatsoever, including succahs, on the balconies is necessary to attain this goal, since without it, harmony cannot be maintained and emergency routes will be compromised. In this situation, freedom of religion imposes limits on the exercise of the rights of all the co-owners.

…

176 In the case at bar, not only is there a conflict between the right to freedom of religion and property rights, but the right to freedom of religion is also in conflict with the right to life and personal security, and with contractual rights. It should also be borne in mind that the Syndicat, in an attempt to reconcile the co-owners' competing interests, proposed the construction of a communal succah near one of the towers. This offer, which, it should be noted, Mr. Amselem had accepted, was the result of a negotiation process involving a number of parties. What is more, the Canadian Jewish Congress considered the proposed compromise to be reasonable and, in a letter dated October 10, 1997, thanked the Syndicat for its efforts to accommodate its Jewish residents. All this is important to the assessment of what is consistent with the general well-being of citizens.

177 In the end, the appellants rejected the Syndicat's offer, citing a multitude of problems and details, but they never proposed anything other than the erection of succahs on their balconies. It is clear that the communal succah would be a source of inconvenience for Mr. Amselem, but the individual succah, too, was a source of genuine inconvenience for the other co-owners: in particular, it obstructed an emergency route, and the elevators were blocked during the construction while being used to transport the materials. On this issue, the trial judge criticized the appellants for being inflexible in rejecting the compromise. In his view, their attitude showed that they were not willing to contribute to a solution that would be acceptable to all. It is especially important to note in this respect that such a contribution is required of all rights holders by s. 9.1 of the Quebec *Charter*, by the *Charter*'s preamble, which recognizes that "the rights and freedoms of the human person are inseparable from the rights and freedoms of others and from the common well-being", and by the preliminary provision of the *Civil Code of Québec*, which states that the Code, "in harmony with the *Charter* of human rights and freedoms and the general principles of law, governs persons, relations between persons, and property". As I noted above, the application of s. 9.1 does not simply presuppose an accommodation approaching extreme tolerance by all rights holders other than Mr. Amselem. He, too, is part of the multicultural society that demands reconciliation of the rights of all. It is not irrelevant that the trial judge, following a thorough analysis, concluded that there was a reasonable accommodation in the case at bar and that in the Court of Appeal, Morin J.A. relied on this Court's decision in *British Columbia (Public Service Employee Relations Commission) v. BCGSEU*, *supra*, to hold that there was no reason to interfere with this assessment of the evidence. In other words, the trier of fact was satisfied that even the most demanding test did not support the appellants' case.

…

180 This leads me to conclude that, since Mr. Amselem's right to freedom of religion cannot be exercised in harmony with the rights and freedoms of others or with the general well-being, the infringement of Mr. Amselem's right is legitimate. Even though the declaration of co-ownership's prohibition against building prevents the appellants from erecting succahs on their balconies, porches or patios, it does not violate their freedom of religion.

…

BINNIE J. (dissenting) —

I. Introduction

183 The unusual aspect of the claim to freedom of religion in this case is that the claim is asserted by the appellants, not against the State but against fellow co-owners of a Montréal luxury building (or "immovable"), all of whom (including the appellants) entered into contractual rules governing the use of commonly owned facilities. The agreed rules, as found by all of the judges in the courts below, plainly prohibit the erection on the communally owned balconies of a succah, which is a makeshift temporary dwelling, open to the sky, that is used in connection with the appellants' religious observance in the Jewish tradition for nine days in each year. The appellants rely on a right to freedom of religion under the Quebec *Charter of Human Rights and Freedoms*, R.S.Q., c. C-12, to insist on building a succah on each of their balconies despite the contract they made with their co-owners and despite their co-owners' offer of a communal succah in the garden of the building. There is much to be said on both sides of this issue but in the end, I agree with the Quebec Court of Appeal that in all the circumstances the appellants cannot reasonably insist on a personal succah. I would therefore dismiss the appeal.

184 My reasons differ from those of my colleague Bastarache J. because of the weight I place on the private contract voluntarily made among the parties to govern their mutual rights and obligations, including the contractual rules contained in the declaration of co-ownership, as well as on the co-owners' offer of accommodation. Buried at the heart of this fact-specific case is the issue of the appellants' acceptance, embodied in the contract with their co-owners, that they would not insist on construction of a personal succah on the communally owned balconies of the building.

185 There is a vast difference, it seems to me, between using freedom of religion as a shield against interference with religious freedoms by the State and as a sword against co-contractors in a private building. It was for the appellants, not the other co-owners, to determine in advance of their unit purchase what the appellants' particular religious beliefs required. They had a choice of buildings in which to invest. They undertook by contract to the owners of *this* building to abide by the rules of *this* building even if (as is apparently the case) they accepted the rules without reading them. They thereafter rejected the accommodation offered by their co-owners of a communal succah in the garden because it did not fully satisfy their religious views although the accommodation was not, as will be seen, inconsistent even with Mr. Moïse Amselem's sense of religious obligation in circumstances where a personal succah is simply not available.

2.3 *Multani v. Commission scolaire Marguerite-Bourgeoys*, 2006 SCC 6 (CanLII), [2006] 1 SCR 256

Charron J. —

1. Introduction

1 This appeal requires us to determine whether the decision of a school board's council of commissioners prohibiting one of the students under its jurisdiction from wearing a kirpan to school as required by his religion infringes the student's freedom of religion. If we find that it does, we must determine whether that infringement is a reasonable limit that can be justified by the need to maintain a safe environment at the school.

2 As I will explain below, I am of the view that an absolute prohibition against wearing a kirpan infringes the freedom of religion of the student in question under s. 2(*a*) of the *Canadian Charter of Rights and Freedoms* ("*Canadian Charter*"). The infringement cannot be justified under s. 1 of the *Canadian Charter*, since it has not been shown that such a prohibition minimally impairs the student's rights. The decision of the council of commissioners must therefore be declared a nullity.

2. Facts

3 The appellant Balvir Singh Multani and his son Gurbaj Singh Multani are orthodox Sikhs. Gurbaj Singh, born in 1989, has been baptized and believes that his religion requires him to wear a kirpan at all times; a kirpan is a religious object that resembles a dagger and must be made of metal. On November 19, 2001, Gurbaj Singh accidentally dropped the kirpan he was wearing under his clothes in the yard of the school he was attending, École Sainte-Catherine-Labouré. On December 21, 2001, the school board, the Commission scolaire

Marguerite-Bourgeoys ("CSMB"), through its legal counsel, sent Gurbaj Singh's parents a letter in which, as a [translation] "reasonable accommodation", it authorized their son to wear his kirpan to school provided that he complied with certain conditions to ensure that it was sealed inside his clothing. Gurbaj Singh and his parents agreed to this arrangement.

4 In a resolution passed on February 12, 2002, the school's governing board refused to ratify the agreement on the basis that wearing a kirpan at the school violated art. 5 of the school's *Code de vie* (code of conduct), which prohibited the carrying of weapons and dangerous objects. For the purposes of this case, it is not in dispute that the governing board had, pursuant to the authority granted to it under s. 76 of the *Education Act*, R.S.Q., c. I-13.3, approved the *Code de vie*, which imposed certain rules of conduct.

5 On March 19, 2002, based on a unanimous recommendation by a review committee to which a request by the Multanis to reconsider the governing board's decision had been referred, the CSMB's council of commissioners upheld that decision. The council of commissioners also notified the Multanis that a symbolic kirpan in the form of a pendant or one in another form made of a material rendering it harmless would be acceptable in the place of a real kirpan.

6 On March 25, 2002, Balvir Singh Multani, personally and in his capacity as tutor to his son Gurbaj Singh, filed in the Superior Court… a motion for a declaratory judgment together with an application for an interlocutory injunction. In his motion, Mr. Multani asked the court to declare that the council of commissioners' decision was of no force or effect and that Gurbaj Singh had a right to wear his kirpan to school if it was sealed and sewn up inside his clothing. He submitted that this would represent a reasonable accommodation to the freedom of religion and right to equality guaranteed in ss. 3 and 10 of the *Charter of human rights and freedoms*, R.S.Q., c. C-12 ("*Quebec Charter*"), and ss. 2 and 15 of the *Canadian Charter*.

…

4. Issues

13 Does the decision of the council of commissioners prohibiting Gurbaj Singh Multani from wearing his kirpan at Sainte-Catherine-Labouré school infringe his freedom of religion under s. 2(*a*) of the *Canadian Charter* or s. 3 of the *Quebec Charter*? Does the decision infringe his right to equality under s. 15 of the *Canadian Charter* or s. 10 of the *Quebec Charter*? If so, can the infringement be justified pursuant to s. 1 of the *Canadian Charter* or s. 9.1 of the *Quebec Charter*?

…

[On the preliminary issue of the standard of review, Justice Charron concluded that a typical constitutional law analysis should be preferred over an administrative law-based analysis. This position has since been overtaken by the approach outlined in *Doré v. Barreau du Québec*, 2012 SCC 12 (CanLII), [2012] 1 SCR 395. What follows remains a useful example of how s 1 can be applied and analyzed, but if the case were argued today the analytical framework would likely follow *Doré*.]

5.2 Internal Limits of Freedom of Religion, or Justification Within the Meaning of Section 1?

…

26 This Court has clearly recognized that freedom of religion can be limited when a person's freedom to act in accordance with his or her beliefs may cause harm to or interfere with the rights of others (see *R. v. Big M Drug Mart Ltd.*, 1985 CanLII 69 (SCC), [1985] 1 SCR 295, at p. 337, and *Syndicat Northcrest v. Amselem*, [2004] 2 SCR 551, 2004 SCC 47, at para. 62). However, the Court has on numerous occasions stressed the advantages of reconciling competing rights by means of a s. 1 analysis… In my view, it appears sounder to leave to the state the burden of justifying the restrictions it has chosen. Any ambiguity or hesitation should be resolved in favour of individual rights. Not only is this consistent with the broad and liberal interpretation of rights favoured by this Court, but s. 1 is a much more flexible tool with which to balance competing rights than s. 2(*a*).

27 *Ross* provides another example of this. In that case, the Court recognized a teacher's right to act on the basis of antisemitic views that compromised the right of students to a school environment free of discrimination, but opted to limit the teacher's freedom of religion pursuant to s. 1 of the *Canadian Charter* (at paras. 74-75):

This mode of approach is analytically preferable because it gives the broadest possible scope to judicial review under the *Charter* . . ., and provides a more comprehensive method of assessing the relevant conflicting values. . . .

That approach seems to me compelling in the present case where the respondent's claim is to a serious infringement of his rights of expression and of religion in a context requiring a detailed contextual analysis. In these circumstances, there can be no doubt that the detailed s. 1 analytical approach developed by this Court provides a more practical and comprehensive mechanism, involving review of a whole range of factors for the assessment of competing interests and the imposition of restrictions upon individual rights and freedoms.

…

31 Thus, the central issue in the instant case is best suited to a s. 1 analysis. But before proceeding with this analysis, I will explain why the contested decision clearly infringes freedom of religion.

6. Infringement of Freedom of Religion

[After summarizing key aspects of *Big M Drug Mart* and *Amselem*, Justice Charron continued:]

35 The fact that different people practise the same religion in different ways does not affect the validity of the case of a person alleging that his or her freedom of religion has been infringed. What an individual must do is show that he or she sincerely believes that a certain belief or practice is required by his or her religion. The religious belief must be asserted in good faith and must not be fictitious, capricious or an artifice (*Amselem*, at para. 52). In assessing the sincerity of the belief, a court must take into account, *inter alia*, the credibility of the testimony of the person asserting the particular belief and the consistency of the belief with his or her other current religious practices (*Amselem*, at para. 53).

36 In the case at bar, Gurbaj Singh must therefore show that he sincerely believes that his faith requires him at all times to wear a kirpan made of metal. Evidence to this effect was introduced and was not contradicted. No one contests the fact that the orthodox Sikh religion requires its adherents to wear a kirpan at all times. The affidavits of chaplain Manjit Singh and of Gurbaj Singh explain that orthodox Sikhs must comply with a strict dress code requiring them to wear religious symbols commonly known as the Five Ks: (1) the kesh (uncut hair); (2) the kangha (a wooden comb); (3) the kara (a steel bracelet worn on the wrist); (4) the kaccha (a special undergarment); and (5) the kirpan (a metal dagger or sword). Furthermore, Manjit Singh explains in his affidavit that the Sikh religion teaches pacifism and encourages respect for other religions, that the kirpan must be worn at all times, even in bed, that it must not be used as a weapon to hurt anyone, and that Gurbaj Singh's refusal to wear a symbolic kirpan made of a material other than metal is based on a reasonable religiously motivated interpretation.

37 Much of the CSMB's argument is based on its submission that [translation] "the kirpan is essentially a dagger, a weapon designed to kill, intimidate or threaten others". With respect, while the kirpan undeniably has characteristics of a bladed weapon capable of wounding or killing a person, this submission disregards the fact that, for orthodox Sikhs, the kirpan is above all a religious symbol. Chaplain Manjit Singh mentions in his affidavit that the word "kirpan" comes from "kirpa", meaning "mercy" and "kindness", and "aan", meaning "honour". There is no denying that this religious object could be used wrongly to wound or even kill someone, but the question at this stage of the analysis cannot be answered definitively by considering only the physical characteristics of the kirpan. Since the question of the physical makeup of the kirpan and the risks the kirpan could pose to the school board's students involves the reconciliation of conflicting values, I will return to it when I address justification under s. 1 of the *Canadian Charter*. In order to demonstrate an infringement of his freedom of religion, Gurbaj Singh does not have to establish that the kirpan is not a weapon. He need only show that his personal and subjective belief in the religious significance of the kirpan is sincere.

38 Gurbaj Singh says that he sincerely believes he must adhere to this practice in order to comply with the requirements of his religion. Grenier J. of the Superior Court declared (at para. 6) — and the Court of Appeal reached the same conclusion (at para. 70) — that Gurbaj Singh's belief was sincere. Gurbaj Singh's affidavit supports this conclusion, and none of the parties have contested the sincerity of his belief.

39 Furthermore, Gurbaj Singh's refusal to wear a replica made of a material other than metal is not capricious. He genuinely believes that he would not be complying with the requirements of his religion were he to wear a plastic or wooden kirpan. The fact that other Sikhs accept such a compromise is not relevant, since as Lemelin J. mentioned at para. 68 of her decision, [translation] "[w]e must recognize that people who profess the same religion may adhere to the dogma and practices of that religion to varying degrees of rigour."

40 Finally, the interference with Gurbaj Singh's freedom of religion is neither trivial nor insignificant. Forced to choose between leaving his kirpan at home and leaving the public school system, Gurbaj Singh decided to follow his religious convictions and is now attending a private school. The prohibition against wearing his kirpan to school has therefore deprived him of his right to attend a public school.

41 Thus, there can be no doubt that the council of commissioners' decision prohibiting Gurbaj Singh from wearing his kirpan to Sainte-Catherine-Labouré school infringes his freedom of religion. This limit must therefore be justified under s. 1 of the *Canadian Charter*.

7. Section 1 of the *Canadian Charter*

…

43 The onus is on the respondents to prove that, on a balance of probabilities, the infringement is reasonable and can be demonstrably justified in a free and democratic society. To this end, two requirements must be met. First, the legislative objective being pursued must be sufficiently important to warrant limiting a constitutional right. Next, the means chosen by the state authority must be proportional to the objective in question: *Oakes*; *R. v. Edwards Books and Art Ltd.*, 1986 CanLII 12 (SCC), [1986] 2 SCR 713.

7.1 Importance of the Objective

44 As stated by the Court of Appeal, the council of commissioners' decision [translation] "was motivated by [a pressing and substantial] objective, namely, to ensure an environment conducive to the development and learning of the students. This requires [the CSMB] to ensure the safety of the students and the staff. This duty is at the core of the mandate entrusted to educational institutions" (para. 77). The appellant concedes that this objective is laudable and that it passes the first stage of the test. The respondents also submitted fairly detailed evidence consisting of affidavits from various stakeholders in the educational community explaining the importance of safety in schools and the upsurge in problems relating to weapons and violence in schools.

45 Clearly, the objective of ensuring safety in schools is sufficiently important to warrant overriding a constitutionally protected right or freedom. It remains to be determined what level of safety the governing board was seeking to achieve by prohibiting the carrying of weapons and dangerous objects, and what degree of risk would accordingly be tolerated. As in *British Columbia (Superintendent of Motor Vehicles) v. British Columbia (Council of Human Rights)*, 1999 CanLII 646 (SCC), [1999] 3 SCR 868, at para. 25, the possibilities range from a desire to ensure absolute safety to a total lack of concern for safety. Between these two extremes lies a concern to ensure a reasonable level of safety.

46 Although the parties did not present argument on the level of safety sought by the governing board, the issue was addressed by the intervener Canadian Human Rights Commission, which correctly stated that the standard that seems to be applied in schools is reasonable safety, not absolute safety. The application of a standard of absolute safety could result in the installation of metal detectors in schools, the prohibition of all potentially dangerous objects (such as scissors, compasses, baseball bats and table knives in the cafeteria) and permanent expulsion from the public school system of any student exhibiting violent behaviour. Apart from the fact that such a standard would be impossible to attain, it would compromise the objective of providing universal access to the public school system.

47 On the other hand, when the governing board approved the article in question of the *Code de vie*, it was not seeking to establish a minimum standard of safety. As can be seen from the affidavits of certain stakeholders from the educational community, violence and weapons are not tolerated in schools, and students exhibiting violent or dangerous behaviour are punished. Such measures show that the objective is to attain a certain level of safety beyond a minimum threshold.

48 I therefore conclude that the level of safety chosen by the governing council and confirmed by the council of commissioners was reasonable safety. The objective of ensuring a reasonable level of safety in schools is without question a pressing and substantial one.

7.2 Proportionality

7.2.1 Rational Connection

49 The first stage of the proportionality analysis consists in determining whether the council of commissioners' decision was rendered in furtherance of the objective. The decision must have a rational connection with the objective. In the instant case, prohibiting Gurbaj Singh from wearing his kirpan to school was intended to further this objective. Despite the profound religious significance of the kirpan for Gurbaj Singh, it also has the characteristics of a bladed weapon and could therefore cause injury. The council of commissioners' decision therefore has a rational connection with the objective of ensuring a reasonable level of safety in schools. Moreover, it is relevant that the appellant has never contested the rationality of the *Code de vie*'s rule prohibiting weapons in school.

7.2.2 Minimal Impairment

50 The second stage of the proportionality analysis is often central to the debate as to whether the infringement of a right protected by the *Canadian Charter* can be justified. The limit, which must minimally impair the right or freedom that has been infringed, need not necessarily be the least intrusive solution…

52 In considering this aspect of the proportionality analysis, Lemelin J. expressed the view that [translation] "[t]he duty to accommodate this student is a corollary of the minimal impairment [test]" (para. 92). In other words, she could not conceive of the possibility of a justification being sufficient for the purposes of s. 1 if reasonable accommodation is possible (para. 75). This correspondence of the concept of reasonable accommodation with the proportionality analysis is not without precedent. In *Eldridge*, at para. 79, this Court stated that, in cases concerning s. 15(1) of the *Canadian Charter*, "reasonable accommodation" was equivalent to the concept of "reasonable limits" provided for in s. 1 of the *Canadian Charter*.

53 In my view, this correspondence between the legal principles is logical. In relation to discrimination, the courts have held that there is a duty to make reasonable accommodation for individuals who are adversely affected by a policy or rule that is neutral on its face, and that this duty extends only to the point at which it causes undue hardship to the party who must perform it. Although it is not necessary to review all the cases on the subject, the analogy with the duty of reasonable accommodation seems to me to be helpful to explain the burden resulting from the minimal impairment test with respect to a particular individual, as in the case at bar…

54 The council of commissioners' decision establishes an absolute prohibition against Gurbaj Singh wearing his kirpan to school. The respondents contend that this prohibition is necessary, because the presence of the kirpan at the school poses numerous risks for the school's pupils and staff. It is important to note that Gurbaj Singh has never claimed a right to wear his kirpan to school without restrictions. Rather, he says that he is prepared to wear his kirpan under the above-mentioned conditions imposed by Grenier J. of the Superior Court. Thus, the issue is whether the respondents have succeeded in demonstrating that an absolute prohibition is justified.

55 According to the CSMB, to allow the kirpan to be worn to school entails the risks that it could be used for violent purposes by the person wearing it or by another student who takes it away from him, that it could lead to a proliferation of weapons at the school, and that its presence could have a negative impact on the school environment. In support of this last point, the CSMB submits that the kirpan is a symbol of violence and that it sends the message that the use of force is the way to assert rights and resolve conflicts, in addition to undermining the perception of safety and compromising the spirit of fairness that should prevail in schools, in that its presence suggests the existence of a double standard. Let us look at those arguments.

7.2.2.1 Safety in Schools

56 According to the respondents, the presence of kirpans in schools, even under certain conditions, creates a risk that they will be used for violent purposes, either by those who wear them or by other students who might take hold of them by force.

57 The evidence shows that Gurbaj Singh does not have behavioural problems and has never resorted to violence at school. The risk that this particular student would use his kirpan for violent purposes seems highly unlikely to me. In fact, the CSMB has never argued that there was a risk of his doing so.

58 As for the risk of another student taking his kirpan away from him, it also seems to me to be quite low, especially if the kirpan is worn under conditions such as were imposed by Grenier J. of the Superior Court. In the instant case, if the kirpan were worn in accordance with those conditions, any student wanting to take it away from Gurbaj Singh would first have to physically restrain him, then search through his clothes, remove the sheath from his guthra, and try to unstitch or tear open the cloth enclosing the sheath in order to get to the kirpan. There is no question that a student who wanted to commit an act of violence could find another way to obtain a weapon, such as bringing one in from outside the school. Furthermore, there are many objects in schools that could be used to commit violent acts and that are much more easily obtained by students, such as scissors, pencils and baseball bats.

59 In her brief reasons, Grenier J. explained that her decision was based in part on the fact that [translation] "the evidence revealed no instances of violent incidents involving kirpans in schools in Quebec" and on "the state of Canadian and American law on this matter" (para. 6). In fact, the evidence in the record suggests that, over the 100 years since Sikhs have been attending schools in Canada, not a single violent incident related to the presence of kirpans in schools has been reported…

62 The respondents maintain that freedom of religion can be limited even in the absence of evidence of a real risk of significant harm, since it is not necessary to wait for the harm to occur before correcting the situation. They submit that the same line of reasoning that was followed in *Hothi v. R.*, 1985 CanLII 3672 (MB KB), [1985] 3 W.W.R. 256 (Man. Q.B.) (aff'd 1985 CanLII 3682 (MB CA), [1986] 3 W.W.R. 671 (Man. C.A.)), and *Nijjar v. Canada 3000 Airlines Ltd.* (1999), 1999 CanLII 19861 (CHRT), 36 C.H.R.R. D/76 (Can. Trib.), in which the wearing of kirpans was prohibited in courts and on airplanes, should apply in this case. As was mentioned above, Lemelin J. of the Court of Appeal pointed out that safety concerns are no less serious in schools.

63 There can be no doubt that safety is just as important in schools as it is on airplanes and in courts. However, it is important to remember that the specific context must always be borne in mind in resolving the issue. In *Nijjar*, Mr. Nijjar's complaint that he had been denied the right to wear his kirpan aboard a Canada 3000 Airlines aircraft was dismissed because, *inter alia*, he had failed to demonstrate that wearing a kirpan in a manner consistent with Canada 3000's policies would be contrary to his religious beliefs. It was apparent from Mr. Nijjar's testimony that wearing one particular type of kirpan rather than another was a matter of personal preference, not of religious belief…

64 *Hothi* also involved special circumstances. The judge who prohibited the wearing of a kirpan in the courtroom was hearing the case of an accused charged with assault under s. 245 of the *Criminal Code*, R.S.C. 1970, c. C-34…

65 The facts in the case at bar are more similar to the facts in *Pandori* than to those in *Nijjar* and *Hothi*. The school environment is a unique one that permits relationships to develop among students and staff. These relationships make it possible to better control the different types of situations that arise in schools…

67 Returning to the respondents' argument, I agree that it is not necessary to wait for harm to be done before acting, but the existence of concerns relating to safety must be unequivocally established for the infringement of a constitutional right to be justified. Given the evidence in the record, it is my opinion that the respondents' argument in support of an absolute prohibition — namely that kirpans are inherently dangerous — must fail.

7.2.2.2 Proliferation of Weapons in Schools

68 The respondents also contend that allowing Gurbaj Singh to wear his kirpan to school could have a ripple effect. They submit that other students who learn that orthodox Sikhs may wear their kirpans will feel the need to arm themselves so that they can defend themselves if attacked by a student wearing a kirpan.

69 This argument is essentially based on the one discussed above, namely that kirpans in school pose a safety risk to other students, forcing them to arm themselves in turn in order to defend themselves. For the reasons given above, I am of the view that the evidence does not support this argument. It is purely speculative and cannot be accepted in the instant case: see *Eldridge*, at para. 89. Moreover, this

argument merges with the next one, which relates more specifically to the risk of poisoning the school environment. I will therefore continue with the analysis.

7.2.2.3 Negative Impact on the School Environment

70 The respondents submit that the presence of kirpans in schools will contribute to a poisoning of the school environment. They maintain that the kirpan is a symbol of violence and that it sends the message that using force is the way to assert rights and resolve conflict, compromises the perception of safety in schools and establishes a double standard.

71 The argument that the wearing of kirpans should be prohibited because the kirpan is a symbol of violence and because it sends the message that using force is necessary to assert rights and resolve conflict must fail. Not only is this assertion contradicted by the evidence regarding the symbolic nature of the kirpan, it is also disrespectful to believers in the Sikh religion and does not take into account Canadian values based on multiculturalism.

72 As for the submissions based on the other students' perception regarding safety and on feelings of unfairness that they might experience, these appear to stem from the affidavit of psychoeducator Denis Leclerc, who gave his opinion concerning a study in which he took part that involved, *inter alia*, questioning students and staff from 14 high schools belonging to the CSMB about the socio-educational environment in schools. The results of the study seem to show that there is a mixed or negative perception regarding safety in schools. It should be noted that this study did not directly address kirpans, but was instead a general examination of the situation in schools in terms of safety. Mr. Leclerc is of the opinion that the presence of kirpans in schools would heighten this impression that the schools are unsafe. He also believes that allowing Gurbaj Singh to wear a kirpan would engender a feeling of unfairness among the students, who would perceive this permission as special treatment. He mentions, for example, that some students still consider the right of Muslim women to wear the chador to be unfair, because they themselves are not allowed to wear caps or scarves.

…

74 With respect for the view of the Court of Appeal, I cannot accept Denis Leclerc's position. Among other concerns, the example he presents concerning the chador is particularly revealing. To equate a religious obligation such as wearing the chador with the desire of certain students to wear caps is indicative of a simplistic view of freedom of religion that is incompatible with the *Canadian Charter*. Moreover, his opinion seems to be based on the firm belief that the kirpan is, by its true nature, a weapon…

75 The appellants are perhaps right to state that the only possible explanation for the acceptance of … other potentially dangerous objects [such as compasses, paper cutters, baseball bats, sporting equipment, or cars] in schools is that the respondents consider the activities in which those objects are used to be important, while accommodating the religious beliefs of the appellant's son is not.

76 Religious tolerance is a very important value of Canadian society. If some students consider it unfair that Gurbaj Singh may wear his kirpan to school while they are not allowed to have knives in their possession, it is incumbent on the schools to discharge their obligation to instil in their students this value that is, as I will explain in the next section, at the very foundation of our democracy.

77 In my opinion, the respondents have failed to demonstrate that it would be reasonable to conclude that an absolute prohibition against wearing a kirpan minimally impairs Gurbaj Singh's rights.

7.2.3 Effects of the Measure

78 Since we have found that the council of commissioners' decision is not a reasonable limit on religious freedom, it is not strictly necessary to weigh the deleterious effects of this measure against its salutary effects. I do believe, however, like the intervener Canadian Civil Liberties Association, that it is important to consider some effects that could result from an absolute prohibition. An absolute prohibition would stifle the promotion of values such as multiculturalism, diversity, and the development of an educational culture respectful of the rights of others…

79 A total prohibition against wearing a kirpan to school undermines the value of this religious symbol and sends students the message that some religious practices do not merit the same protection as others. On the other hand, accommodating Gurbaj Singh and allowing him to wear his kirpan under certain conditions demonstrates the importance that our society attaches to protecting freedom of religion and to showing respect for its minorities. The deleterious effects of a total prohibition thus outweigh its salutary effects.

…

9. Remedy

…

82 Given that Gurbaj Singh no longer attends Sainte-Catherine-Labouré school, it would not be appropriate to restore the judgment of the Superior Court, as requested by the appellants. The Court accordingly considers that the appropriate and just remedy is to declare the decision prohibiting Gurbaj Singh from wearing his kirpan to be null.

[Justice Abella (Deschamps J concurring) and Justice LeBel wrote separate opinions concurring in the result but disagreeing on the methodology of resolving *Charter* disputes in the administrative context.]

2.4 *Alberta v. Hutterian Brethren of Wilson Colony*, 2009 SCC 37 (CanLII), [2009] 2 SCR 567

2.4.1 Majority

The judgment of McLachlin C.J. and Binnie, Deschamps and Rothstein JJ. was delivered by

The Chief Justice —

I. Introduction

[1] The Province of Alberta requires all persons who drive motor vehicles on highways to hold a driver's licence. Since 1974 each licence has borne a photograph of the licence holder, subject to exemptions for people who objected to having their photos taken on religious grounds. In 2003 the Province made the photo requirement universal in order to reduce the risk of driver's licences being used for identity theft, a growing problem in Alberta and the country. All licence holders are now required to have their photos taken for purposes of placement in the Province's facial recognition data bank.

[2] The Wilson Colony of Hutterian Brethren maintains a rural, communal lifestyle, carrying on a variety of commercial activities. They object on religious grounds to having their photographs taken. After the religious exemption to the photo requirement was revoked in 2003, Colony members began these proceedings against the Alberta government, alleging a breach of their religious freedom. The Province has

offered to lessen the impact of the universal photo requirement by issuing special licences without photos, relieving Colony members of the need to carry their photos. However, it insists that their photos be taken for purposes of placement in the central data bank. The members of the Wilson Colony have rejected this proposal.

[3] The case has proceeded on the basis that the universal photo requirement constitutes a limit on the freedom of religion of Colony members who wish to obtain a driver's licence and thus infringes s. 2(*a*) of the *Canadian Charter of Rights and Freedoms*. The issue on this appeal is whether this limit is a reasonable limit demonstrably justified in a free and democratic society under s. 1 of the *Charter*. If not, the regulation is inconsistent with the *Charter* and is null and void pursuant to s. 52 of the *Constitution Act, 1982*.

[4] I conclude that the evidence led by the Province establishes that the universal photo requirement is justified under s. 1 of the *Charter* on the test set out in *R. v. Oakes*, 1986 CanLII 46 (SCC), [1986] 1 SCR 103. The goal of setting up a system that minimizes the risk of identity theft associated with driver's licences is a pressing and important public goal. The universal photo requirement is connected to this goal and does not limit freedom of religion more than required to achieve it. Finally, the negative impact on the freedom of religion of Colony members who wish to obtain licences does not outweigh the benefits associated with the universal photo requirement. Accordingly, I would allow the appeal and uphold the regulation as constitutional.

II. Facts

…

[7] Members of the Wilson Colony, like many other Hutterites, believe that the Second Commandment prohibits them from having their photograph willingly taken. This belief is sincerely held.

[8] Although the Colony attempts to be self-sufficient, some members need driver's licences so that they can travel outside the Colony to do business and attend to the needs of members. Under the 2003 regulation, members currently holding Condition Code G licences are required to have their photograph taken upon renewal of their licences, resulting in a violation of their religious beliefs. The Colony claimants led evidence asserting that if members could not obtain driver's licences, the viability of their communal lifestyle would be threatened. Mr. Samuel Wurz, the Colony's Secretary-Treasurer, deposed that each Colony member has a specific set of responsibilities assigned to him or her, some of which require the member to drive. If a Colony member cannot carry out these responsibilities, it "causes our religious commune to function improperly, thereby eroding the fabric of our social, cultural and religious way of life". In his view, the Province is effectively "attempting to force the Hutterian Brethren to make a choice between two of our religious beliefs", a choice they feel they should not have to make.

[9] The Province, for its part, led evidence that the adoption of the universal photo requirement in 2003 was connected to a new system aimed at minimizing identity theft associated with driver's licences. The evidence showed that identity theft is a serious and growing problem in Alberta and elsewhere, and that drivers' licences, the most commonly used and accepted form of identification, could be and were being used for identity theft. The new facial recognition data bank was aimed at reducing the risk of this type of fraud.

[10] Under the new system a digital photograph of every licensed driver is placed in a facial recognition data bank. This data bank is connected to facial recognition software which analyses the digital photographs of people who apply for licences. The software performs two kinds of comparison: one-to-one and one-to-many. The one-to-one comparison allows the government to be sure that the person trying to renew or replace a licence is the same person represented by the existing photo in the data bank. The one-to-many comparison allows it to be satisfied that a person applying for a new licence does not already hold another licence in another person's name.

[11] A comprehensive photo requirement, whereby all valid licences are associated with a photo in the data bank, is essential to ensuring the efficacy of these mechanisms. To the extent that licences exist without holder photos in the central photo bank, others can appropriate the identity of the licence holder without detection by the facial recognition software. The Province also led evidence that this system was adopted with a view to harmonization with international and interprovincial standards for photo identification.

[12] The Province has proposed measures to accommodate the Hutterian claimants' objection to the universal driver's licence photo requirement. The first is that the licence display a photo, but that the licence be carried in a sealed envelope or folder marked with the indication that it is the property of the Province, and that a digital photo be placed in the Province's facial recognition bank. The second is simply that a digital photo be placed in the bank, with no photo accompanying the driver's licence. The aim of these proposals is to minimize the impact of the universal photo requirement on religious beliefs by removing the need for Colony members to have any direct contact with the photos.

[13] The Colony claimants reject both alternatives on the ground that they require a member to have a photo taken. It proposes that no photo be taken, and that non-photo driver's licences be issued to them, marked "Not to be used for identification purposes".

…

V. Analysis

A. Freedom of Religion

(1) The Nature of the Limit on the Section 2(*a*) Right

[28] Section 2(*a*) of the *Charter* states that "[e]veryone has . . . freedom of conscience and religion".

[29] The members of the Colony believe that permitting their photo to be taken violates the Second Commandment: "You shall not make for yourself an idol, or any likeness of what is in heaven above or on the earth beneath or in the water under the earth" (Exodus 20:4). They believe that photographs are "likenesses" within the meaning of the Second Commandment, and want nothing to do with their creation or use. The impact of having a photo taken might involve censure, such as being required to stand during religious services.

[30] Given these beliefs, the effect of the universal photo requirement is to place Colony members who wish to obtain driver's licences either in the position of violating their religious commitments, or of foregoing driver's licences. Without the ability of some members of the Colony to obtain driver's licences, Colony members argue that they will not be able to drive to local centres to do business and obtain the goods and services necessary to the Colony. The regulation, they argue, forces members to choose between obeying the Second Commandment and adhering to their rural communal lifestyle, thereby limiting their religious freedom and violating s. 2(*a*) of the *Charter*.

[31] My colleague Abella J. notes at para. 130 that "freedom of religion has 'both individual and collective aspects'". She asserts that "[b]oth . . . are engaged in this case." While I agree that religious freedom has both individual and collective aspects, I think it is important to be clear about the relevance of those aspects at different stages of the analysis in this case. The broader impact of the photo requirement on the Wilson Colony community is relevant at the proportionality stage of the s. 1 analysis, specifically in weighing the deleterious and salutary effects of the impugned regulation. The extent to which the impugned law undermines the proper functioning of the community properly informs that comparison. Community impact does not, however, transform the essential claim — that of the individual claimants for photo-free licences — into an assertion of a group right.

…

[33] The Province concedes the first element of this s. 2(*a*) test, sincere belief in a belief or practice that has a nexus with religion. The chambers judge described the concession in the following terms:

…

[34] The record does not disclose a concession on the second element of the test — whether the universal photo requirement interferes with Colony members' religious freedom in a manner that is more than trivial or insubstantial. In order for such a determination to be made, it would need to be shown that the claimants' "religious beliefs or conduct might reasonably or actually be threatened" by the universal photo requirement: see *Edwards Books*, at p. 759. Evidence of a state-imposed cost or burden would not suffice; there would need to be evidence that such a burden was "capable of interfering with religious belief or practice": *Edwards Books*, at p. 759. In the present case, however, the courts below seem to have proceeded on the assumption that this requirement was met. Given this assumption, I will proceed to consider whether the limit is a reasonable one, demonstrably justified in a free and democratic society.

(2) Is the Limit on the Section 2(*a*) Right Justified Under Section 1 of the *Charter*?

[35] This Court has recognized that a measure of leeway must be accorded to governments in determining whether limits on rights in public programs that regulate social and commercial interactions are justified under s. 1 of the *Charter*. Often, a particular problem or area of activity can reasonably be remedied or regulated in a variety of ways. The schemes are typically complex, and reflect a multitude of overlapping and conflicting interests and legislative concerns. They may involve the expenditure of government funds, or complex goals like reducing antisocial behaviour. The primary responsibility for making the difficult choices involved in public governance falls on the elected legislature and those it appoints to carry out its policies. Some of these choices may trench on constitutional rights.

[36] Freedom of religion presents a particular challenge in this respect because of the broad scope of the *Charter* guarantee. Much of the regulation of a modern state could be claimed by various individuals to have a more than trivial impact on a sincerely held religious belief. Giving effect to each of their religious claims could seriously undermine the universality of many regulatory programs, including the attempt to reduce abuse of driver's licences at issue here, to the overall detriment of the community.

…

(a) Is the Limit Prescribed by Law?

…

[40] The majority of the Court of Appeal expressed concern that the challenged measure was adopted by regulation and therefore without any legislative debate, pursuant to an Act with very different objectives. The respondents take this position much further and advance a general proposition that *Charter*-infringing measures may only be adopted by primary legislation. Concern about overextension of regulatory authority is understandable. Governments should not be free to use a broad delegated authority to transform a limited-purpose licensing scheme into a *de facto* universal identification system beyond the reach of legislative oversight. However, that is not what has happened here. A photo requirement has been an accepted part of the motor vehicle licensing scheme for decades. It is not a stand-alone identification divorced from the public-safety purpose of the authorizing legislation. Moreover, hostility to the regulation-making process is out of step with this Court's jurisprudence and with the realities of the modern regulatory state: see *Little Sisters Book and Art Emporium v. Canada (Minister of Justice)*, 2000 SCC 69, [2000] 2 SCR 1120, at para. 71; D.J. Mullan, *Administrative Law: Cases, Text and Materials* (5th ed. 2003), at p. 948. Regulations, passed by Order in Council and applied in accordance with the principles of administrative law and subject to challenge for constitutionality, are the life blood of the administrative state and do not imperil the rule of law. Whether the impugned measure was passed into law by statute or regulation is usually of no consequence for the s. 1 analysis.

(b) Is the Purpose for Which the Limit Is Imposed Pressing and Substantial?

[41] The chambers judge defined the government's objective in imposing a universal photo requirement as being "to prevent identity theft or fraud and the various forms of mischief which identity theft may facilitate, and . . . the harmonization of international and interprovincial standards for photo identification" (para. 10). This objective is part of the larger goal of ensuring the integrity of the system for licensing drivers…

[42] Maintaining the integrity of the driver's licensing system in a way that minimizes the risk of identity theft is clearly a goal of pressing and substantial importance, capable of justifying limits on rights. The purpose of a universal photo requirement is to have a complete digital data bank of facial photos to prevent wrongdoers from using driver's licences as breeder documents for purposes of identity theft. As discussed above (para. 10), the requirement permits the system to ensure that each licence in the system is connected to a single individual, and that no individual has more than one licence.

[43] The chambers judge found that the universal photo requirement was also aimed at harmonization of international and interprovincial standards for photo identification. The evidence supports the Province's contention that other provinces and nations are moving toward harmonization, and that a feature of this harmonization is likely to be a universal photo requirement for all licence holders. While the fact that other provinces have not yet moved to this requirement arguably undercuts the position that a universal photo requirement is necessary in Alberta now, governments are entitled to act in the present with a view to future developments. Accordingly, harmonization may be considered as a factor relevant to the Province's goal of ensuring the integrity of the licensing system by reducing identity theft associated with the system.

[44] The majority of the Court of Appeal suggested that the goal of the universal photo requirement should be confined to purposes related to traffic safety, since that was the subject of the authorizing Act. However, government regulations may deal both with the primary goal of an enabling law and with collateral concerns resulting from measures adopted to achieve this goal…

[45] In this case, the government's primary goal is traffic safety, as denoted by the title of the Act. To further this goal, the Act puts in place a system of licensing drivers. A collateral effect of the licensing system is that the driver's licences issued under this system have become generalized identification documents, with the attendant risk that they might be misused for identity theft and the various mischiefs that flow from identity theft. The Province was entitled to pass regulations dealing not only with the primary matter of highway safety, but with collateral problems associated with the licensing system. It was therefore entitled to adopt a regulation requiring photos of all drivers to be held in a digital photo bank, thereby minimizing the risk of identity theft to the extent possible.

[46] Finally, as explained above, the fact that the specific objectives of the impugned regulation were not debated or ratified by the legislature does not render them invalid for the purposes of s. 1. If a regulation is validly enacted pursuant to delegated legislative authority, its objective can properly be evaluated under the test established in *Oakes*.

…

(c) Is the Means by Which the Goal Is Furthered Proportionate?

(i) Is the Limit Rationally Connected to the Purpose?

…

[50] Alberta's evidence demonstrates the ways in which the existence of an exemption from the photo requirement would increase the vulnerability of the licensing system and the risk of identity-related fraud. As Mr. Joseph Mark Pendleton, Director of the Special Investigations Unit of the Alberta Ministry of Government Services, put it in his affidavit supporting Alberta's position, "[o]pportunities for fraud are as numerous as criminals are clever and resourceful". The existence of non-photo licences in the system raises the possibility that a person could hold multiple licences in different names, as long as no more than one of them was a regular photographic licence. As stated by Alberta, "each licensee whose photo is not entered in our database creates an opportunity for impersonation by wrongdoers, because that person's licence can be renewed or replaced by a wrongdoer without being detected by [facial recognition]". A non-photo licence can be obtained and used to obtain credit or enter into other commercial relationships to the detriment of the other parties to the transactions. Without the photographs of all licence holders in the photo identification bank, the assurance of a one-to-one correspondence between individuals and issued licences is lost, and the possibility of driver's licence-based fraud would be increased.

[51] The majority of the Alberta Court of Appeal, while deciding the case on the basis of minimum impairment, expressed doubt on whether the universal photo requirement for all holders of driver's licences is rationally connected to the goal of preserving the integrity and security of the driver's licensing system. Conrad J.A. pointed out that many Albertans do not hold driver's licences and concluded that the risk flowing from exempting a few hundred Hutterites from the requirement was "minimal". These concerns confuse rational connection with proportionality of negative and positive effects of the measure. The issue at the stage of rational connection is simply whether there is a rational link between the infringing measure and the government goal. The balance between positive and negative effects of the measure falls to be considered at the final stage of the s. 1 analysis.

[52] I conclude that the Province has established that the universal photo requirement is rationally related to its goal of protecting the integrity of the driver's licensing system and preventing it from being used for purposes of identity theft.

(ii) Does the Limit Minimally Impair the Right?

[53] The question at this stage of the s. 1 proportionality analysis is whether the limit on the right is reasonably tailored to the pressing and substantial goal put forward to justify the limit. Another way of putting this question is to ask whether there are less harmful means of achieving the legislative goal. In making this assessment, the courts accord the legislature a measure of deference, particularly on complex social issues where the legislature may be better positioned than the courts to choose among a range of alternatives.

…

[55] I hasten to add that in considering whether the government's objective could be achieved by other less drastic means, the court need not be satisfied that the alternative would satisfy the objective to *exactly* the same extent or degree as the impugned measure. In other words, the court should not accept an unrealistically exacting or precise formulation of the government's objective which would effectively immunize the law from scrutiny at the minimal impairment stage…The test at the minimum impairment stage is whether there is an alternative, less drastic means of achieving the objective in a real and substantial manner. As I will explain, in my view the record in this case discloses no such alternative.

[56] The purpose of the limit in this case, I earlier concluded, is to maintain the integrity of the driver's licensing system by minimizing the risk of driver's licences being used for purposes of identity theft, so as to prevent fraud and various other misuses of the system. The regulation is part of a complex regulatory scheme and is aimed at an emerging and challenging problem. The question, therefore, is whether the means chosen to further its purpose — the universal photo requirement for all licensed drivers — is reasonably tailored to address the problem of identity theft associated with driver's licences.

[57] The Province proposes alternatives which maintain the universal photo requirement, but minimize its impact on Colony members by eliminating or alleviating the need for them to carry photos. This would permit the Province to achieve its goal of a maximally efficient photo recognition system to combat fraud associated with driver's licences, while reducing the impact on the members' s. 2(*a*) rights.

[58] However, the Hutterian claimants reject these proposals. For them, the only acceptable measure is one that entirely removes the limit on their s. 2(*a*) rights. They object to any photo being taken and held in a photo data bank. For them, the only alternative is a driver's licence issued without a photo, stamped with the words, "Not to be used for identification purposes".

[59] The problem with the claimants' proposal in the context of the minimum impairment inquiry is that it compromises the Province's goal of minimizing the risk of misuse of driver's licences for identity theft. The stamp "Not to be used for identification purposes" might prevent a person who comes into physical possession of such a licence from using it as a breeder document, but it would not prevent a person from assuming the identity of the licence holder and producing a fake document, which could not be checked in the absence of a photo in the data bank. As Slatter J.A. pointed out, without the photo in the bank, the bank is neutralized and the risk that the identity of the holder can be stolen and used for fraudulent purposes is increased. The only way to reduce that risk as much as possible is through a universal photo requirement. The claimants' argument that the reduction in risk would be low, since few people are likely to request exemption from the photo requirement, assumes that some increase in risk and impairment of the government goal may occur, and hence does not assist at the stage of minimal impairment.

[60] The claimants' proposal, instead of asking what is minimally required to realize the legislative goal, asks the government to significantly compromise it. An exemption for an unspecified number of religious objectors would mean that the one-to-one correspondence between issued licences and photos in the data bank would be lost. As shown by the Province, this disparity could well be exploited by wrongdoers… In short, the alternative proposed by the claimants would *significantly* compromise the government's objective and is therefore not appropriate for consideration at the minimal impairment stage.

[61] This is not to suggest the Colony members are acting improperly. Freedom of religion cases may often present this "all or nothing" dilemma. Compromising religious beliefs is something adherents may understandably be unwilling to do. And governments may find it difficult to tailor laws to the myriad ways in which they may trench on different people's religious beliefs and practices. The result may be that the justification of a limit on the right falls to be decided not at the point of minimal impairment, which proceeds on the assumption the state goal is valid, but at the stage of proportionality of effects, which is concerned about balancing the benefits of the measure against its negative effects.

[62] I conclude that the universal photo requirement minimally impairs the s. 2(*a*) right. It falls within a range of reasonable options available to address the goal of preserving the integrity of the driver's licensing system. All other options would significantly increase the risk of identity theft using driver's licences. The measure seeks to realize the legislative goal in a minimally intrusive way.

[63] Much has been made of the fact that over 700,000 Albertans do not hold driver's licences. The argument is that the risk posed by a few hundred potential religious objectors is minuscule as compared to the much larger group of unlicensed persons. This argument is accepted by the dissent. In my view, it rests on an overly broad view of the objective of the driver's licence photo requirement as being to eliminate all identity theft in the province. Casting the government objective in these broad terms, my colleague Abella J. argues that the risk posed by a few religious dissenters is minimal, when compared to the general risk posed by unlicensed persons. But with respect, that is the wrong comparison.

We must take the government's goal as it is. It is not the broad goal of eliminating all identity theft, but the more modest goal of maintaining the integrity of the driver's licensing system so as to minimize identity theft *associated with that system*. The question is whether, within that system, any exemptions, including for religious reasons, pose real risk to the integrity of the licensing system.

[64] The implication of Justice Abella's reasoning is that because the province tolerates the identity theft risk posed by unlicensed Albertans, it must therefore tolerate the risk associated with non-photographed licensees. On this logic, the province would be required to take the more radical approach of requiring photographic identification for every Albertan, which would directly contravene the respondents' religious beliefs, before it could rely upon a security risk argument in the context of the narrower driver's licensing program. In my opinion, the province has a legitimate interest in ensuring the integrity of its driver's licensing system and guarding against the risk that it will be used to perpetrate fraud. In order to accomplish this goal, it should not be forced to undertake broader measures that it might have resisted for other policy reasons.

[65] The courts below approached minimum impairment in a different fashion. First, they conducted the balancing inquiry at the stage of minimal impairment. Second, drawing on this Court's decision in *Multani*, the courts below applied a reasonable accommodation analysis instead of the *Oakes* test.

[66] In my view, a distinction must be maintained between the reasonable accommodation analysis undertaken when applying human rights laws, and the s. 1 justification analysis that applies to a claim that a law infringes the *Charter*. Where the validity of a law is at stake, the appropriate approach is a s. 1 *Oakes* analysis. Under this analysis, the issue at the stage of minimum impairment is whether the goal of the measure could be accomplished in a less infringing manner. The balancing of effects takes place at the third and final stage of the proportionality test. If the government establishes justification under the *Oakes* test, the law is constitutional. If not, the law is null and void under s. 52 insofar as it is inconsistent with the *Charter*.

[67] A different analysis applies where a government *action* or administrative *practice* is alleged to violate the claimant's *Charter* rights. If a *Charter* violation is found, the court's remedial jurisdiction lies not under s. 52 of the *Constitution Act, 1982* but under s. 24(1) of the *Charter*: *R. v. Ferguson*, 2008 SCC 6, [2008] 1 SCR 96, at para. 61. In such cases, the jurisprudence on the duty to accommodate, which applies to governments and private parties alike, may be helpful "to explain the burden resulting from the minimal impairment test with respect to a particular individual" (emphasis added): *Multani*, at para. 53, *per* Charron J.

[68] Minimal impairment and reasonable accommodation are conceptually distinct. Reasonable accommodation is a concept drawn from human rights statutes and jurisprudence. It envisions a dynamic process whereby the parties — most commonly an employer and employee — adjust the terms of their relationship in conformity with the requirements of human rights legislation, up to the point at which accommodation would mean undue hardship for the accommodating party…

[69] A very different kind of relationship exists between a legislature and the people subject to its laws. By their very nature, laws of general application are not tailored to the unique needs of individual claimants. The legislature has no capacity or legal obligation to engage in such an individualized determination, and in many cases would have no advance notice of a law's potential to infringe *Charter* rights. It cannot be expected to tailor a law to every possible future contingency, or every sincerely held religious belief. Laws of general application affect the general public, not just the claimants before the court. The broader societal context in which the law operates must inform the s. 1 justification analysis. A law's constitutionality under s. 1 of the *Charter* is determined, not by whether it is responsive to the unique needs of every individual claimant, but rather by whether its infringement of *Charter* rights is directed at an important objective and is proportionate in its overall impact. While the law's impact on the individual claimants is undoubtedly a significant factor for the court to consider in determining whether the infringement is justified, the court's ultimate perspective is societal. The question the court must answer is whether the *Charter* infringement is justifiable in a free and democratic society, not whether a more advantageous arrangement for a particular claimant could be envisioned.

[70] Similarly, "undue hardship", a pivotal concept in reasonable accommodation, is not easily applicable to a legislature enacting laws. In the human rights context, hardship is seen as undue if it would threaten the viability of the enterprise which is being asked to accommodate the right. The degree of hardship is often capable of expression in monetary terms. By contrast, it is difficult to apply the concept of undue hardship to the cost of achieving or not achieving a legislative objective, especially when the objective is (as here) preventative or precautionary. Though it is possible to interpret "undue hardship" broadly as encompassing the hardship that comes with failing to achieve a pressing government objective, this attenuates the concept. Rather than strain to adapt "undue hardship" to the context of s. 1 of the *Charter*, it is better to speak in terms of minimal impairment and proportionality of effects.

[71] In summary, where the validity of a law of general application is at stake, reasonable accommodation is not an appropriate substitute for a proper s. 1 analysis based on the methodology of *Oakes*. Where the government has passed a measure into law, the provisions of s. 1 apply. The government is entitled to justify the law, not by showing that it has accommodated the claimant, but by establishing that the measure is rationally connected to a pressing and substantial goal, minimally impairing of the right and proportionate in its effects.

(iii) Is the Law Proportionate in Its Effect?

2] The third and final step of the proportionality analysis is to determine proportionality of effects. We have seen that the regulation advances an important objective; that its limitation on the Colony members' religious freedom is rationally connected to that goal; and that the means chosen to achieve the government objective — the universal photo requirement — meet the requirement of minimal impairment.

[73] This leaves a final question: are the overall effects of the law on the claimants disproportionate to the government's objective? When one balances the harm done to the claimants' religious freedom against the benefits associated with the universal photo requirement for driver's licences, is the limit on the right proportionate in effect to the public benefit conferred by the limit?

…

[75] Despite the importance Dickson C.J. accorded to this stage of the justification analysis, it has not often been used. Indeed, Peter W. Hogg argues that the fourth branch of *Oakes* is actually redundant: *Constitutional Law of Canada* (5th ed. Supp.), vol. 2, at section 38.12. He finds confirmation of this view in the fact that he is unable to locate any case in which this stage of the analysis has been decisive to the outcome. In his opinion, this is because it essentially duplicates the analysis undertaken at the first stage, pressing and substantial objective. If a law has an objective deemed sufficiently important to override a *Charter* right and has been found to do so in a way which is rationally connected to the objective and minimally impairing of the right, Hogg asks rhetorically, how can the law's effects nonetheless be disproportionate to its objective? In his view, a finding that a law's objective is "pressing and substantial" at the first stage of *Oakes* will *always* produce a conclusion that its effects are proportionate. The real balancing must be done under the heading of minimal impairment and, to a much more limited extent, rational connection.

[76] It may be questioned how a law which has passed the rigours of the first three stages of the proportionality analysis — pressing goal, rational connection, and minimum impairment — could fail at the final inquiry of proportionality of effects. The answer lies in the fact that the first three stages of *Oakes* are anchored in an assessment of the law's purpose. Only the fourth branch takes full account of the "severity of the deleterious effects of a measure on individuals or groups"…Because the minimal impairment and proportionality of effects analyses involve different kinds of balancing, analytical clarity and transparency are well served by distinguishing between them. Where no alternative means

are reasonably capable of satisfying the government's objective, the real issue is whether the impact of the rights infringement is disproportionate to the likely benefits of the impugned law. Rather than reading down the government's objective within the minimal impairment analysis, the court should acknowledge that no less drastic means are available and proceed to the final stage of *Oakes*.

…

[78] In my view, this is a case where the decisive analysis falls to be done at the final stage of *Oakes*. The first two elements of the proportionality test — rational connection and minimum impairment — are satisfied, and the matter stands to be resolved on whether the "deleterious effects of a measure on individuals or groups" outweigh the public benefit that may be gained from the measure. In cases such as this, where the demand is that the right be fully respected without compromise, the justification of the law imposing the limit will often turn on whether the deleterious effects are out of proportion to the public good achieved by the infringing measure.

1. Salutary Effects

[79] The first inquiry is into the benefits, or "salutary effects" associated with the legislative goal. Three salutary effects of the universal photo requirement were raised on the evidence: (1) enhancing the security of the driver's licensing scheme; (2) assisting in roadside safety and identification; and (3) eventually harmonizing Alberta's licensing scheme with those in other jurisdictions.

[80] The most important of these benefits and the one upon which Alberta principally relies is the enhancement of the security or integrity of the driver's licensing scheme…

[81] Though it is difficult to quantify in exact terms how much risk of fraud would result from permitted exemptions, it is clear that the internal integrity of the system would be compromised. In this respect, the present case may be contrasted with previous religious freedom cases where this Court has found that the potential risk was too speculative.

…

[84] The requirement of a photo on a driver's licence serves the additional purpose of assisting police officers in reliably identifying drivers at the roadside. Alberta concedes that this benefit, given the relatively small number of persons who would seek religious exemptions, would not in itself justify limiting freedom of religion. Yet another salutary benefit may flow from eventual harmonization with other licensing systems. This benefit, however, remains to be realized. While these effects may not be determinative, they support the overall salutary effect of the universal photo requirement.

[85] In summary, the salutary effects of the universal photo requirement for driver's licences are sufficient, subject to final weighing against the negative impact on the right, to support some restriction of the right. As discussed earlier, a government enacting social legislation is not required to show that the law will in fact produce the forecast benefits. Legislatures can only be asked to impose measures that reason and the evidence suggest will be beneficial. If legislation designed to further the public good were required to await proof positive that the benefits would in fact be realized, few laws would be passed and the public interest would suffer.

2. Deleterious Effects

…

[88] The deleterious effects of a limit on freedom of religion requires us to consider the impact in terms of *Charter* values, such as liberty, human dignity, equality, autonomy, and the enhancement of democracy: *Thomson Newspapers*, at para. 125; see also *Health Services and Support — Facilities Subsector Bargaining Assn. v. British Columbia*, 2007 SCC 27, [2007] 2 SCR 391. The most fundamental of these values, and the one relied on in this case, is liberty — the right of choice on matters of religion. As stated in *Amselem*, *per* Iacobucci J., religious freedom "revolves around the notion of personal choice and individual autonomy and freedom" (para. 40). The question is whether the limit leaves the adherent with a meaningful choice to follow his or her religious beliefs and practices.

[89] There is no magic barometer to measure the seriousness of a particular limit on a religious practice. Religion is a matter of faith, intermingled with culture. It is individual, yet profoundly communitarian. Some aspects of a religion, like prayers and the basic sacraments, may be so sacred that any significant limit verges on forced apostasy. Other practices may be optional or a matter of personal choice. Between these two extremes lies a vast array of beliefs and practices, more important to some adherents than to others.

[90] Because religion touches so many facets of daily life, and because a host of different religions with different rites and practices co-exist in our society, it is inevitable that some religious practices will come into conflict with laws and regulatory systems of general application. As recognized by the European Court of Human Rights in *Kokkinakis v. Greece*, judgment of 25 May 1993, Series A No. 260-A, cited by my colleague Abella J., this pluralistic context also includes "atheists, agnostics, sceptics and the unconcerned" (para. 31). Their interests are equally protected by s. 2(*a*): *R. v. Big M Drug Mart Ltd.*, 1985 CanLII 69 (SCC), [1985] 1 SCR 295, at p. 347. In judging the seriousness of the limit in a particular case, the perspective of the religious or conscientious claimant is important. However, this perspective must be considered in the context of a multicultural, multi-religious society where the duty of state authorities to legislate for the general good inevitably produces conflicts with individual beliefs. The bare assertion by a claimant that a particular limit curtails his or her religious practice does not, without more, establish the seriousness of the limit for purposes of the proportionality analysis. Indeed to end the inquiry with such an assertion would cast an impossibly high burden of justification on the state. We must go further and evaluate the degree to which the limit actually impacts on the adherent.

…

[93] Cases of direct compulsion are straightforward. However, it may be more difficult to measure the seriousness of a limit on freedom of religion where the limit arises not from a direct assault on the right to choose, but as the result of incidental and unintended effects of the law. In many such cases, the limit does not preclude choice as to religious belief or practice, but it does make it more costly.

[94] The incidental effects of a law passed for the general good on a particular religious practice may be so great that they effectively deprive the adherent of a meaningful choice: see *Edwards Books*. Or the government program to which the limit is attached may be compulsory, with the result that the adherent is left with a stark choice between violating his or her religious belief and disobeying the law: *Multani*. The absence of a meaningful choice in such cases renders the impact of the limit very serious.

[95] However, in many cases, the incidental effects of a law passed for the general good on a particular religious practice may be less serious. The limit may impose costs on the religious practitioner in terms of money, tradition or inconvenience. However, these costs may still leave the adherent with a meaningful choice concerning the religious practice at issue. The *Charter* guarantees freedom of religion, but does not indemnify practitioners against all costs incident to the practice of religion. Many religious practices entail costs which society reasonably expects the adherents to bear. The inability to access conditional benefits or privileges conferred by law may be among such costs. A limit on the right that exacts a cost but nevertheless leaves the adherent with a meaningful choice about the religious practice at issue will be less serious than a limit that effectively deprives the adherent of such choice.

[96] This returns us to the task at hand — assessing the seriousness of the limit on religious practice imposed in this case by the regulation's universal photo requirement for driver's licences. This is not a case like *Edwards Books* or *Multani* where the incidental and unintended effect of the law is to deprive the adherent of a meaningful choice as to the religious practice. The impugned regulation, in attempting to secure a social good for the whole of society — the regulation of driver's licences in a way that minimizes fraud — imposes a cost on those who choose not to have their photos taken: the cost of not being able to drive on the highway. But on the evidence before us, that cost does not rise to the level of depriving the Hutterian claimants of a meaningful choice as to their religious practice, or adversely impacting on other *Charter* values.

[97] The Hutterian claimants argue that the limit presents them with an invidious choice: the choice between some of its members violating the Second Commandment on the one hand, or accepting the end of their rural communal life on the other hand. However, the evidence does not support the conclusion that arranging alternative means of highway transport would end the Colony's rural way of life. The claimants' affidavit says that it is necessary for at least some members to be able to drive from the Colony to nearby towns and back. It does not explain, however, why it would not be possible to hire people with driver's licences for this purpose, or to arrange third party transport to town for necessary services, like visits to the doctor. Many businesses and individuals rely on hired persons and commercial transport for their needs, either because they cannot drive or choose not to drive. Obtaining alternative transport would impose an additional economic cost on the Colony, and would go against their traditional self-sufficiency. But there is no evidence that this would be prohibitive.

[98] On the record before us, it is impossible to conclude that Colony members have been deprived of a meaningful choice to follow or not to follow the edicts of their religion. The law does not compel the taking of a photo. It merely provides that a person who wishes to obtain a driver's licence must permit a photo to be taken for the photo identification data bank. Driving automobiles on highways is not a right, but a privilege. While most adult citizens hold driver's licences, many do not, for a variety of reasons.

[99] I conclude that the impact of the limit on religious practice imposed by the universal photo requirement for obtaining a driver's licence is that Colony members will be obliged to make alternative arrangements for highway transport. This will impose some financial cost on the community and depart from their tradition of being self-sufficient in terms of transport. These costs are not trivial. But on the record, they do not rise to the level of seriously affecting the claimants' right to pursue their religion. They do not negate the choice that lies at the heart of freedom of religion.

3. Weighing the Salutary and Deleterious Effects

[100] Having considered the seriousness of the limit in terms of its impact on the claimants' freedom of religion, we must balance these deleterious effects against the salutary effects of the law, in order to determine whether the overall impact of the law is proportionate.

[101] The law has an important social goal — to maintain an effective driver's licence scheme that minimizes the risk of fraud to citizens as a whole. This is not a goal that should lightly be sacrificed. The evidence supports the conclusion that the universal photo requirement addresses a pressing problem and will reduce the risk of identity-related fraud, when compared to a photo requirement that permits exceptions.

[102] Against this important public benefit must be weighed the impact of the limit on the claimants' religious rights. While the limit imposes costs in terms of money and inconvenience as the price of maintaining the religious practice of not submitting to photos, it does not deprive members of their ability to live in accordance with their beliefs. Its deleterious effects, while not trivial, fall at the less serious end of the scale.

[103] Balancing the salutary and deleterious effects of the law, I conclude that the impact of the limit on religious practice associated with the universal photo requirement for obtaining a driver's licence, is proportionate.

…

2.4.2 Dissents

[110] ABELLA J. (dissenting) — Freedom of religion is a core, constitutionally protected democratic value. To justify its impairment, therefore, the government must demonstrate that the benefits of the infringement outweigh the harm it imposes…

[112] The issue in this case, therefore, is whether in balancing the benefits of the infringing measure against the harm to the right, the infringement is justified. With respect, unlike the Chief Justice, in my view it is not.

…

[114] The harm to the constitutional rights of the Hutterites, in the absence of an exemption, is dramatic. Their inability to drive affects them not only individually, but also severely compromises the autonomous character of their religious community.

[115] Unlike the severity of its impact on the Hutterites, the benefits to the province of requiring them to be photographed are, at best, marginal. Over 700,000 Albertans do not have a driver's license and are therefore not in the province's facial recognition database. There is no evidence that in the context of several hundred thousand unphotographed Albertans, the photos of approximately 250 Hutterites will have any discernable impact on the province's ability to reduce identity theft.

[116] This means that the serious harm caused by the infringing measure weighs far more heavily on the s. 1 scales than the benefits the province gains from its imposition on the Hutterites. The province has therefore not discharged its onus of justifying the imposition of a mandatory photo requirement on the members of the Wilson Colony.

…

Analysis

[Justice Abella engaged with domestic and comparative sources emphasizing the importance of religious freedom, and continued]:

[130] Moreover, it is important to recognize that freedom of religion has "both individual and collective aspects" (*Edwards Books*, at p. 781, *per* Dickson C.J.)…

Both the individual and group aspects are engaged in this case.

…

[132] This does not mean that the right to freedom of religion cannot yield to a state objective whose benefits outweigh the harm to the right…

benefits and harms.

Section 1

…

[134] It is against the scope of the particular constitutional right that the government has the onus of demonstrating that a limit is justified under s. 1 in accordance with the *Oakes* test. The purpose of the *Oakes* analysis is to balance the benefits of the objective with the harmful effects of the infringement. The stages of the *Oakes* test are not watertight compartments: the principle of proportionality guides the analysis at each step. This ensures that at every stage, the importance of the objective and the harm to the right are weighed.

…

[136] Where, as here, the benefit to the state of the infringing measure is of limited value and the infringement is a deeply harmful one, the overall requirement of proportionality is not met.

Pressing and Substantial Objective

…

[138] Alberta acknowledged that it is not attempting to justify the photo requirement on the basis that it allows for quick and efficient driver identification at the side of the road. The exemption to the photograph requirement was in place for 29 years without any demonstrably negative effects on roadside enforcement.

[139] Instead, Alberta stated that the purpose of the mandatory photo requirement was to ensure that every individual who has applied for a licence is represented in the Province's facial recognition database…

[140] I agree with the majority that this objective is an important one.

Rational Connection

…

[142] I agree with the majority that the Government has satisfied the rational connection aspect of the s. 1 analysis…

Minimal Impairment

[143] Where I start to part company with the majority, with respect, is at the minimal impairment stage of the analysis. This aspect of the s. 1 analysis has attracted judicial approaches of some elasticity, reflecting an understandable desire both to be respectful of the complexity of developing public policy, while at the same time ensuring that the infringing measure meets its policy objectives no more intrusively than necessary.

…

[145] The government must therefore show that the measure impairs the right as little as reasonably possible in order to achieve the legislative objective. To be characterized as minimal, the impairment must be "carefully tailored so that rights are impaired no more than necessary" (*RJR-MacDonald*, at para. 160).

[146] In assessing whether Alberta's regulation satisfies the minimal impairment stage, the majority rejects the Colony's alternative proposal of a photoless licence stamped with an indication that it not be used for identification purposes, on the grounds that "[t]he only way to reduce that risk [of misusing driver's licences for identity theft] as much as possible is through a universal photo requirement" and "the alternative proposed by the claimants would *significantly* compromise the government's objective" (paras. 59-60 (emphasis in original)). But as discussed later in these reasons, there is no cogent or persuasive evidence of any such dramatic interference with the government's objective.

[147] It is not difficult for the state to argue that only the measure it has chosen will *maximize* the attainment of the objective and that all other alternatives are substandard or less effective. And there is no doubt that the wider the use of the photographs, the greater the minimization of the risk. But at the minimal impairment stage, we do not assess whether the infringing measure fulfills the government's objective more perfectly than any other, but whether the means chosen impair the right no more than necessary to achieve the objective.

[148] In *RJR-MacDonald*, McLachlin J. rejected a complete ban on advertising on the grounds that a full prohibition will only be constitutionally acceptable at the minimal impairment stage of the analysis if the government can show that only a full prohibition will enable it to achieve its goal. In this case, all of the alternatives presented by the government involve the taking of a photograph. This is the very act that offends the religious beliefs of the Wilson Colony members. The requirement therefore completely extinguishes the right, and is, accordingly, analogous to the complete ban in *RJR-MacDonald*. It is therefore difficult to conclude that it minimally impairs the Hutterites' religious rights.

…

Proportionality

[150] It seems to me, with respect, that where the majority's s. 1 analysis fully flounders is in the final stage, where the negative effects of the infringement are balanced against the actual benefits derived from the legislative measure…

…

[154] Turning to the salutary effects in this case, in my view, the government has not discharged its evidentiary burden or demonstrated that the salutary effects in these circumstances are anything more than a web of speculation (Sujit Choudhry, "So What Is the Real Legacy of *Oakes*? Two Decades of Proportionality Analysis under the Canadian *Charter*'s Section 1" (2006), 34 *S.C.L.R.* (2d) 501, at pp. 503-4).

[155] The positive impact of the mandatory photo requirement and the use of facial recognition technology is that it is a way to help ensure that individuals will not be able to commit identity theft. But the facial recognition technology is hardly fool-proof. Joseph Mark Pendleton, Director of the Special Investigations Unit of the Alberta Ministry of Government Services, acknowledged in his affidavit on behalf of the Government of Alberta, that "facial recognition software is not so advanced that it can make a definitive determination of whether two photographs are of the same person". The software merely narrows down potentially similar faces to a manageable number. A human investigator must still "eyeball" the pictures to determine if they are the same person.

[156] There is, in fact, no evidence from the government to suggest that the Condition Code G licences in place for 29 years as an exemption to the photo requirement, caused any harm at all to the integrity of the licensing system. As a result, there is no basis for determining why the exemption is no longer feasible, or so dramatically obstructs the government's objective that it cannot be re-instated.

…

[158] Seven hundred thousand Albertans are without a driver's licence. That means that 700,000 Albertans have no photograph in the system that can be checked by facial recognition technology. While adding approximately 250 licence holders to the database will reduce some opportunity for identity theft, it is hard to see how it will make a significant impact on preventing it when there are already several hundred thousand unlicenced and therefore unphotographed Albertans. Since there are so many others who are not in the database, the benefit of adding the photographs of the few Hutterites who wish to drive, would be marginal.

[159] It is worth noting too that in Alberta, numerous documents are used for identity purposes, including birth certificates, social insurance cards and health cards — not all of which include a photograph. Nor has Alberta thought it necessary to introduce, for example, a universal identity card to prevent identity theft. This suggests that the risk is not sufficiently compelling to justify universality.

[160] The fact that Alberta is seemingly unengaged by the impact on identity theft of over 700,000 Albertans being without a driver's licence, makes it difficult to understand why it feels that the system cannot tolerate 250 or so more exemptions.

[161] The majority mentions two ancillary benefits of the mandatory photo requirement: the eventual harmonization of Alberta's licensing scheme with those of other jurisdictions, and assistance in roadside safety and identification. There is no reason to anticipate that any such harmonized scheme would eliminate, rather than protect, religious exemptions. And as for the benefits to roadside identification and safety, Alberta conceded that this was not the purpose of the photo requirement and that any such benefits were minimal, as evidenced by the fact that this exemption has existed for the last 29 years without incident.

[162] The salutary effects of the infringing measure are, therefore, slight and largely hypothetical. The addition of the unphotographed Hutterite licence holders to the system seems only marginally useful to the prevention of identity theft.

[163] On the other hand, the harm to the religious rights of the Hutterites weighs more heavily. The majority assesses the Wilson Colony members' freedom of religion as being a choice between having their picture taken or not having a driver's licence which may have collateral effects on their way of life. This, with respect, is not a meaningful choice for the Hutterites.

[164] The chambers judge found that the mandatory photo requirement threatened the autonomous ability of the respondents to maintain their communal way of life, concluding that "it is essential to [the respondents'] continued existence as a community that some members operate motor vehicles" (para. 2). Conrad J.A. of the Alberta Court of Appeal similarly wrote that the "evidence shows that although the colonies attempt to be self-sufficient, certain members must drive regularly on Alberta highways in order to . . . facilitate the sale of agricultural products, purchase raw materials from suppliers, transport colony members (including children) to medical appointments, and conduct the community's financial affairs" (para. 6).

…

[167] To suggest, as the majority does, that the deleterious effects are minor because the Colony members could simply arrange for third party transportation, fails to appreciate the significance of their self-sufficiency to the autonomous integrity of their religious community. When significant sacrifices have to be made to practise one's religion in the face of a state imposed burden, the choice to practise one's religion is no longer uncoerced.

…

[170] The mandatory photo requirement is a form of indirect coercion that places the Wilson Colony members in the untenable position of having to choose between compliance with their religious beliefs or giving up the self-sufficiency of their community, a community that has historically preserved its religious autonomy through its communal independence.

[171] I also have some discomfort with the majority's approach to assessing the seriousness of a religious infringement. It appears to suggest that there is a difference between the constitutional scrutiny of a government program that is "compulsory", and one that is "conditional" or a "privilege". This approach, with great respect, is troubling. It is both novel and inconsistent with the principle enunciated in *Eldridge v. British Columbia (Attorney General)*, 1997 CanLII 327 (SCC), [1997] 3 SCR 624, that "once the state does provide a benefit, it is obliged to do so in a non-discriminatory manner" (para. 73).

…

[174] The harm to the Hutterites' *Charter* right is substantial and easily ascertainable, but, as previously noted, the benefit of requiring the Hutterites to be photographed for the purposes of reducing identity theft, is not…

[176] Given the disproportion in this case between the harmful effects of the mandatory photo requirement on religious freedom, compared to the minimal salutary effects of requiring photographs from the Hutterites, the government has not discharged its burden of demonstrating that the infringement is justified under s. 1. This makes the mandatory photograph requirement for driver's licences, in the absence of the availability of an exemption on religious grounds, inconsistent with s. 2(*a*) of the *Charter*.

[177] I would therefore dismiss the appeal, but would suspend a declaration of invalidity for one year to give Alberta an opportunity to fashion a responsive amendment.

LEBEL J. (dissenting) —

I. Introduction

[178] I have read the reasons of the Chief Justice and of my colleague Justice Abella. With respect for the other view, I agree with the comments of Justice Abella on the nature of the guarantee of freedom of religion under s. 2(*a*) of the *Canadian Charter of Rights and Freedoms*. I share her opinion that the impugned regulation that limits freedom of religion has not been properly justified by the appellant under s. 1 of the *Charter*. As a result, as she proposes, I would dismiss the appeal and uphold the declaration of invalidity of the regulation that requires the members of the Hutterite Colony to have their photos taken as a condition for the renewal or issuance of a driver's licence.

…

[192] It may be tempting to draw sharp analytical distinctions between the minimal impairment and balancing of effects parts of the *Oakes* test. But determining whether a measure limiting a right successfully meets the justification test should lead to some questioning of the purpose in the course of the proportionality analysis, to determine not only whether an alternative solution could reach the goal, but also to what extent the goal itself ought to be realized. This part of the analysis may confirm the validity of alternative, less intrusive measures.

…

[196] The proportionality analysis reflects the need to leave some flexibility to government in respect of the choice of means. But the review of those means must also leave the courts with a degree of flexibility in the assessment of the range of alternatives that could realize the goal, and also in determining how far the goal ought to be attained in order to achieve the proper balance between the objective of the state and the rights at stake.

[197] For all practical purposes, the reasons of the Chief Justice treat the law's objective as if it were unassailable once the courts engage in the proportionality analysis. No means that would not allow the objective to be realized to its fullest extent could be considered as a reasonable alternative. In this respect, the reasons appear inconsistent. First, para. 54 states: "*Less drastic means which do not actually achieve the*

government's objective are not considered at this stage", i.e. the minimal impairment stage. Such an approach would severely restrict the ambit of court review of government action and would reduce it to an analysis of the alignment of means with purposes. At other times, however, I note that the reasons seem more alive to this problem. Thus, one may find in the reasons suggestions that "*achieving the objective*" might actually mean looking into whether there exists an alternative means of reaching the objective "*in a real and substantial manner*" (para. 55). What that would actually mean in practical terms may not be as clear as one could wish. Nevertheless, these words appear to signal that, even at the minimal impairment stage, the objective might have to be redefined and circumscribed.

…

II. Conclusion

[200] As to the outcome of this case, I agree with the reasons of Justice Abella and with the substance of her views on the lack of justification for the regulation under s. 1. Religious rights are certainly not unlimited. They may have to be restricted in the context of broader social values. But they are fundamental rights protected by the Constitution. The Government of Alberta had to prove that the limitations on the religious right were justified. Like Justice Abella, I believe that the Government of Alberta has failed to demonstrate that the regulation is a proportionate response to the identified societal problem of identity theft.

[201] Moreover, the driver's licence that it denies is not a privilege. It is not granted at the discretion of governments. Every would-be driver is entitled to a licence provided that he or she meets the required conditions and qualifications. Such a licence, as we know, is often of critical importance in daily life and is certainly so in rural Alberta. Other approaches to identity fraud might be devised that would fall within a reasonable range of options and that could establish a proper balance between the social and constitutional interests at stake. This balance cannot be obtained by belittling the impact of the measures on the beliefs and religious practices of the Hutterites and by asking them to rely on taxi drivers and truck rental services to operate their farms and to preserve their way of life. Absolute safety is probably impossible in a democratic society. A limited restriction on the Province's objective of minimizing identity theft would not unduly compromise this aspect of the security of Alberta residents and might lie within the range of reasonable and constitutional alternatives. Indeed, the Province's stated purpose is not set in stone and does not need to be achieved at all costs. The infringing measure was implemented in order to reach a hypothetical objective of minimizing identity theft, by requiring driver's licences with photos. But a small number of people carrying a driver's licence without a photo will not significantly compromise the safety of the residents of Alberta. On the other hand, under the impugned regulation, a small group of people is being made to carry a heavy burden. The photo requirement was not a proportionate limitation of the religious rights at stake.

2.5 *Ktunaxa Nation v. British Columbia (Forests, Lands and Natural Resource Operations)*, 2017 SCC 54 (CanLII), [2017] 2 SCR 386

2.5.1 Majority

[3] This case concerns a proposed development in an area the Ktunaxa call Qat'muk. This area is located in a Canadian valley in the northwestern part of the larger Ktunaxa territory, the Jumbo Valley, about 55 kilometres west of the town of Invermere, B.C.

[4] The respondent Glacier Resorts Ltd. ("Glacier Resorts") wishes to build a year-round ski resort in Qat'muk with lifts to glacier runs and overnight accommodation for guests and staff. For more than two decades, Glacier Resorts has been negotiating with the B.C. government and stakeholders, including the Aboriginal peoples who inhabit the valley, the Ktunaxa and the Shuswap, on the terms and conditions of the development.

[5] Early on in the process, the Ktunaxa and Shuswap peoples raised concerns about the impact of the resort project. The Ktunaxa asserted that Qat'muk was a place of spiritual significance for them. Notably, it is home to an important population of grizzly bears and to Grizzly Bear Spirit, or Kławła Tukłułak?is, "a principal spirit within Ktunaxa religious beliefs and cosmology": A.F., at para. 18.

[6] Consultation ensued, leading to significant changes to the original proposal. The Shuswap declared themselves satisfied with the changes and indicated their support for the proposal given the benefits it would bring to their people and the region. The Ktunaxa were not satisfied, but committed themselves to further consultation to remove the remaining obstacles and find mutually satisfactory accommodation. Lengthy discussions ensued, and it seemed agreement would be achieved. Then, late in the process, the Ktunaxa adopted an uncompromising position — that accommodation was impossible because a ski resort with lifts to glacier runs and permanent structures would drive Grizzly Bear Spirit from Qat'muk and irrevocably impair their religious beliefs and practices. After fruitless efforts to revive the consultation process and reach agreement, the government declared that reasonable consultation had occurred and approved the project.

[7] The appellants, the Ktunaxa Nation Council and the Chair of the Council, Kathryn Teneese, brought proceedings in judicial review before the British Columbia Supreme Court to overturn the approval by the Minister of the ski resort on two independent grounds: first, that the project would violate the Ktunaxa's freedom of religion under s. 2(*a*) of the *Canadian Charter of Rights and Freedoms*; and second, that the government breached the duty of consultation and accommodation imposed on the Crown by s. 35 of the *Constitution Act, 1982*. The chambers judge dismissed the petition for judicial review, and the Court of Appeal affirmed his decision. The Ktunaxa now appeal to this Court.

[8] We would dismiss the appeal. We conclude that the claim does not engage the right to freedom of conscience and religion under s. 2(*a*) of the *Charter*. Section 2(*a*) protects the freedom of individuals and groups to hold and manifest religious beliefs: *R. v. Big M Drug Mart Ltd.*, 1985 CanLII 69 (SCC), [1985] 1 SCR 295, at p. 336. The Ktunaxa's claim does not fall within the scope of s. 2(*a*) because neither the Ktunaxa's freedom to hold their beliefs nor their freedom to manifest those beliefs is infringed by the Minister's decision to approve the project.

…

(2) The Scope of Freedom of Religion

…

[69] In this case, it is undisputed that the Ktunaxa sincerely believe in the existence and importance of Grizzly Bear Spirit. They also believe that permanent development in Qat'muk will drive this spirit from that place. The chambers judge indicated that Mr. Luke came to this belief in 2004 but whether this belief is ancient or recent plays no part in our s. 2(*a*) analysis. The *Charter* protects all sincere religious beliefs and practices, old or new.

[70] The second part of the test, however, is not met in this case. This stage of the analysis requires an objective analysis of the interference caused by the impugned state action… The Ktunaxa must show that the Minister's decision to approve the development interferes either with their freedom to believe in Grizzly Bear Spirit or their freedom to manifest that belief. But the Minister's decision does neither of those things. This case is not concerned with either the freedom to hold a religious belief or to manifest that belief. The claim is rather that s. 2(*a*) of the *Charter* protects the presence of Grizzly Bear Spirit in Qat'muk. This is a novel claim and invites this Court to extend s. 2(*a*) beyond the scope recognized in our law.

[71] We would decline this invitation. The state's duty under s. 2(*a*) is not to protect the object of beliefs, such as Grizzly Bear Spirit. Rather, the state's duty is to protect everyone's freedom to hold such beliefs and to manifest them in worship and practice or by teaching and dissemination. In short, the *Charter* protects the freedom to worship, but does not protect the spiritual focal point of worship. We have been directed to no authority that supports the proposition that s. 2(*a*) protects the latter, rather than individuals' liberty to hold a belief and to manifest that belief. Section 2(*a*) protects the freedom to pursue practices, like the wearing of a kirpan in *Multani* or refusing to be photographed in *Alberta v. Hutterian Brethren of Wilson Colony*, 2009 SCC 37, [2009] 2 SCR 567. And s. 2(*a*) protects the right to freely hold the religious beliefs that motivate such practices. In this case, however, the appellants are not seeking protection for the freedom to believe in Grizzly Bear Spirit or to pursue practices related to it. Rather, they seek to protect Grizzly Bear Spirit itself and the subjective spiritual meaning they derive from it. That claim is beyond the scope of s. 2(*a*).

[72] The extension of s. 2(*a*) proposed by the Ktunaxa would put deeply held personal beliefs under judicial scrutiny. Adjudicating how exactly a spirit is to be protected would require the state and its courts to assess the content and merits of religious beliefs. …

[73] The Ktunaxa argue that the *Big M Drug Mart* definition of the s. 2(*a*) guarantee has been subsequently enriched by an understanding that freedom of religion has a communal aspect, and that the state cannot act in a way that constrains or destroys the communal dimension of a religion. Grizzly Bear Spirit's continued occupation of Qat'muk is essential to the communal aspect of Ktunaxa religious beliefs and practices, they assert. State action that drives Grizzly Bear Spirit from Qat'muk will, the Ktunaxa say, "constrain" or "interfere" with — indeed destroy — the communal aspect of s. 2(*a*) protection.

[74] The difficulty with this argument is that the communal aspect of the claim is also confined to the scope of freedom of religion under s. 2(*a*). It is true that freedom of religion under s. 2(*a*) has a communal aspect: *Loyola*; *Hutterian Brethren*, at para. 89; *Congrégation des témoins de Jéhovah de St-Jérôme-Lafontaine v. Lafontaine (Village)*, 2004 SCC 48, [2004] 2 SCR 650. But the communal aspects of freedom of religion do not, and should not, extend s. 2(*a*)'s protection beyond the freedom to have beliefs and the freedom to manifest them.

[75] We conclude that s. 2(*a*) protects the freedom to have and manifest religious beliefs, and that the Ktunaxa's claim does not fall within these parameters. It is therefore unnecessary to consider whether the Minister's decision represents a reasonable balance between freedom of religion and other considerations.

2.5.2 Minority

The reasons of Moldaver and Côté JJ. were delivered by

Moldaver J. —

…

[118] In my respectful view, where state conduct renders a person's sincerely held religious beliefs devoid of all religious significance, this infringes a person's right to religious freedom. Religious beliefs have spiritual significance for the believer. When this significance is taken away by state action, the person can no longer act in accordance with his or her *religious* beliefs, constituting an infringement of s. 2(*a*). That is exactly what happened in this case. The Minister's decision to approve the ski resort will render all of the Ktunaxa's religious beliefs related to Grizzly Bear Spirit devoid of any spiritual significance. Accordingly, the Ktunaxa will be unable to perform songs, rituals or ceremonies in recognition of Grizzly Bear Spirit in a manner that has any religious significance for them. In my view, this amounts to a s. 2(*a*) breach.

[119] That being said, I am of the view that the Minister proportionately balanced the Ktunaxa's s. 2(*a*) right with the relevant statutory objectives: to administer Crown land and dispose of it in the public interest. The Minister was faced with two options: approve the development of the ski resort or grant the Ktunaxa a right to exclude others from constructing permanent structures on over 50 square kilometres of Crown land. This placed the Minister in a difficult, if not impossible, position. If he granted this right of exclusion to the Ktunaxa, this would significantly hamper, if not prevent, him from fulfilling his statutory objectives. In the end, it is apparent that he determined that the fulfillment of his statutory mandate prevented him from giving the Ktunaxa the veto right that they were seeking.

2.6 Notes

1. Indigenous spirituality and state religious neutrality were at issue in *Servatius v Alberni School District No 70*, 2022 BCCA 421, when students observed the Indigenous practice of smudging, and a hoop dance during which the dancer said a prayer. A parent objected, but the British Columbia Court of Appeal held that the students were being educated about Indigenous practices rather than indoctrinated into them, meaning there was no violation of the duty of religious neutrality.

3 State Religious Neutrality

3.1 *Mouvement laïque québécois v. Saguenay (City)*, 2015 SCC 16 (CanLII), [2015] 2 SCR 3

Gascon J. —

Introduction

[1] The state is required to act in a manner that is respectful of every person's freedom of conscience and religion. This is a fundamental right that is protected by the Quebec *Charter of human rights and freedoms*, CQLR, c. C-12 ("*Quebec Charter*"), and the *Canadian Charter of Rights and Freedoms* ("*Canadian Charter*"). Its corollary is that the state must remain neutral in matters involving this freedom. The interplay between freedom of conscience and religion, on the one hand, and this duty of neutrality, on the other, is sometimes a delicate one.

[2] The respondents, the City of Saguenay and its mayor, would like to continue the recitation of a prayer at the start of the municipal council's public meetings. In their view, the issue is one of respect for their freedom of conscience and religion. The appellants, the Mouvement laïque québécois ("MLQ") and Alain Simoneau, are asking that the respondents cease this practice, which, they submit, interferes in a discriminatory manner with Mr. Simoneau's freedom of conscience and religion. They demand that the City and its official comply with the state's duty of neutrality.

[3] The Quebec Human Rights Tribunal ("Tribunal") concluded that the recitation of the prayer was in breach of the state's duty of neutrality and that it interfered in a discriminatory manner with Mr. Simoneau's freedom of conscience and religion. The Court of Appeal reversed that decision on the basis that the prayer was non-denominational and fundamentally inclusive. According to the Court of Appeal, such a prayer could not interfere with Mr. Simoneau's rights.

[4] I would allow the appeal. Through the recitation of the prayer at issue during the municipal council's public meetings, the respondents are consciously adhering to certain religious beliefs to the exclusion of all others. In so doing, they are breaching the state's duty of neutrality. The resulting discriminatory interference with Mr. Simoneau's freedom is supported by the evidence the Tribunal accepted.

…

[71] Neither the *Quebec Charter* nor the *Canadian Charter* expressly imposes a duty of religious neutrality on the state. This duty results from an evolving interpretation of freedom of conscience and religion. I will reproduce the following comments made by LeBel J. in *Lafontaine* in which he described the evolution of the concept of religious neutrality (although he was dissenting, the majority did not contradict him on this point either):

> The duty of neutrality appeared at the end of a long evolutionary process that is part of the history of many countries that now share Western democratic traditions. Canada's history provides one example of this experience, which made it possible for the ties between church and state to be loosened, if not dissolved. There were, of course, periods when there was a close union of ecclesiastical and secular authorities in Canada. European settlers introduced to Canada a political theory according to which the social order was based on an intimate alliance of the state and a single church, which the state was expected to promote within its borders. Throughout the history of New France, the Catholic church enjoyed the status of sole state religion. After the Conquest and the Treaty of Paris, the Anglican church became the official state religion, although social realities prompted governments to give official recognition to the status and role of the Catholic church and various Protestant denominations. This sometimes official, sometimes tacit recognition, which reflected the make-up of and trends in the society of the period, often inspired legislative solutions and certain policy choices. Thus, at the time of Confederation in 1867, the concept of religious neutrality implied primarily respect for Christian denominations. One illustration of this can be seen in the constitutional rules relating to educational rights originally found, *inter alia*, in s. 93 of the *Constitution Act, 1867*.
>
> Since then, the appearance and growing influence of new philosophical, political and legal theories on the organization and bases of civil society have gradually led to a dissociation of the functions of church and state; Canada's demographic evolution has also had an impact on this process, as have the urbanization and industrialization of the country. Although it has not excluded religions and churches from the realm of public debate, this evolution has led us to consider the practice of religion and the choices it implies to relate more to individuals' private lives or to voluntary associations (M. H. Ogilvie, *Religious Institutions and the Law in Canada* (2nd ed. 2003), at pp. 27 and 56). These societal changes have tended to create a clear distinction between churches and public authorities, placing the state under a duty of neutrality. Our Court has recognized this aspect of freedom of religion in its decisions, although it has in so doing not disregarded the various sources of our country's historical heritage. The concept of neutrality allows churches and their members to play an important role in the public space where societal debates take place, while the state acts as an essentially neutral intermediary in relations between the various denominations and between those denominations and civil society. [Emphasis added; paras. 66-67.]

[72] As LeBel J. noted, the evolution of Canadian society has given rise to a concept of neutrality according to which the state must not interfere in religion and beliefs. The state must instead remain neutral in this regard. This neutrality requires that the state neither favour nor hinder any particular belief, and the same holds true for non-belief (S.L., at para. 32). It requires that the state abstain from taking any position and thus avoid adhering to a particular belief.

…

[74] By expressing no preference, the state ensures that it preserves a neutral public space that is free of discrimination and in which true freedom to believe or not to believe is enjoyed by everyone equally, given that everyone is valued equally. I note that a neutral public space does not mean the homogenization of private players in that space. Neutrality is required of institutions and the state, not individuals (see R. v. N.S., 2012 SCC 72, [2012] 3 SCR 726, at paras. 31 and 50-51). On the contrary, a neutral public space free from coercion, pressure and judgment on the part of public authorities in matters of spirituality is intended to protect every person's freedom and dignity. The neutrality of the public space therefore helps preserve and promote the multicultural nature of Canadian society enshrined in s. 27 of the Canadian Charter. Section 27 requires that the state's duty of neutrality be interpreted not only in a manner consistent with the protective objectives of the Canadian Charter, but also with a view to promoting and enhancing diversity...

…

[76] When all is said and done, the state's duty to protect every person's freedom of conscience and religion means that it may not use its powers in such a way as to promote the participation of certain believers or non-believers in public life to the detriment of others. It is prohibited from adhering to one religion to the exclusion of all others. Section 3 of the Quebec Charter imposes a duty on the state to remain neutral in this regard. Today, the state's duty of neutrality has become a necessary consequence of enshrining the freedom of conscience and religion in the Canadian Charter and the Quebec Charter.

…

[144] Finally, the respondents argue that the reference to the supremacy of God in the preamble to the Canadian Charter establishes the moral source of the values that Charter protects. In their view, a prayer that refers to that same source cannot, in itself, interfere with anyone's freedom of conscience and religion. The Court of Appeal also mentioned this reference (at para. 100), although it did not discuss it in detail.

[145] The preamble to the Canadian Charter reads as follows:

> Whereas Canada is founded upon principles that recognize the supremacy of God and the rule of law:

[146] In my opinion, the respondents' argument in this regard truncates the analysis on the issue of freedom of conscience and religion. Contrary to what their argument suggests, that analysis is not limited to a single reference to God in the prayer. On its own, that reference is not determinative. Rather, the analysis concerns the state's observance of a religious practice. …

[147] The reference to the supremacy of God in the preamble to the Canadian Charter cannot lead to an interpretation of freedom of conscience and religion that authorizes the state to consciously profess a theistic faith. The preamble, including its reference to God, articulates the "political theory" on which the Charter's protections are based… It must nevertheless be borne in mind that the express provisions of the Canadian Charter, such as those regarding freedom of conscience and religion, must be given a generous and expansive interpretation…

…

[149] This leads me to conclude that the reference to the supremacy of God does not limit the scope of freedom of conscience and religion and does not have the effect of granting a privileged status to theistic religious practices. Contrary to what the respondents suggest, I do not believe that the preamble can be used to interpret this freedom in this way.

3.1.1 Further Reading

1. Richard Moon, "Neutrality and Prayers: *Mouvement laique v Saguenay*" (2015) 4 Oxford Journal of Law and Religion 512, https://academic.oup.com/ojlr/article-abstract/4/3/512/1557504

3.2 *Zylberberg v. Sudbury Board of Education*, 1988 CanLII 189 (ON CA)

BROOKE BLAIR, GOODMAN AND ROBINS JJ.A:-- The issue in this appeal is whether religious exercises, prescribed for the opening or closing of each school day in the public schools of this province, infringe the freedom of religion and conscience guaranteed by s. 2(a) of the Canadian Charter of Rights and Freedoms…

…

2. The factual background

This application was originally made by five parents of children attending elementary public schools within the jurisdiction of the respondent school board in Sudbury (the Board). Two of the applicants have since moved out of the Board's district and seek to discontinue their appeal. The three remaining appellants were supported in argument by the three intervenors.

The Board's evidence was that the daily opening exercises in all its schools are brief and include the singing of O Canada and the saying of the Lord's Prayer. The prayer is either led by the class-room teacher or recited over the school's public address system. In some schools, Scripture passages are also read.

At the request of a parent, a child is excused from the class-room during the exercises or, if he or she remains in the room, is not required to participate. Arrangements are made in every school for the care of children while they are excused from the class-room…

Of the three remaining appellants one is of the Jewish religion and another is a Moslem [*sic*]. The third practises no religion but his wife is Roman Catholic and their children attend that church a few times a year. They decided to send their children to a public rather than a separate school in order to give them a secular education. One appellant made his objections to compulsory religious exercises known by letter to the Board but did not request an exemption from the exercises for his children although invited to do so. The other two appellants did not object before commencing these proceedings and did not request an exemption. The three appellants stated that they had not requested an exemption for their children because they did not want them singled out from their peers because of their religious beliefs.

There was a difference of expert opinion about the effect of religious exercises on non-Christian or non-participating children. An affidavit of a psychologist, filed by the appellants, expressed the view that such children would be placed under pressure to conform which, if resisted, would result in their being alienated from their peers. The affidavits of two psychologists, filed by the Board, asserted that children from minority religions were not harmed by the policy. They stated that pupils were routinely excused from other subjects and activities. They also claimed that religious exercises resulted in minority children "confronting the fact of their difference from the majority". This was said to be a normal and healthy part of growing up which would contribute to the development of religious tolerance and understanding which is important in view of the multicultural heritage of Canadians.

…

3. Historical background

The place of religion in the public schools of Ontario has been a matter of concern and, sometimes, dispute throughout their history. It has two aspects: religious education and opening or closing religious exercises. Although almost all supporters of the public school system were Christian during the 19th century and most of this century, sectarian differences between Protestant denominations made it impossible to provide for religious instruction until 1944 when the present system was adopted…

This case is concerned with the other aspect of religion in public schools: opening or closing religious exercises. Such exercises were suggested as early as 1816 when it was recommended that "the labours of the day commence with prayer" and that "they conclude with reading publicly and solemnly a few verses of the New Testament". It appears that the recommendation was not universally followed. In 1855, a minute of the Council of Public Instruction recommended such opening and closing exercises with the significant addition that "no pupil should be compelled to be present at these exercises against the wish of his parents or guardian, expressed in writing to the Master of the School". In 1884, the opening of the school day with prayer and authorized scripture selections, read without comment or explanation, was made mandatory but children could be exempted if their parents wished. The regulations of 1944 provided that the singing of God Save the King or O Canada, or both, should be part of the daily opening or closing exercises.

The continuance of such exercises was recommended both by the Hope Commission and the Mackay Committee. The latter Committee found that the opening exercises were more widely acceptable and less controversial than religious education. The Mackay Committee's Report states that it "sought to evaluate 'opening exercises'... particularly in relation to our conclusion that there should be no religious indoctrination in the public school system" (p. 35). The Report then states:

We were impressed by the fact, which we have noted was mentioned in several briefs, that many public functions in the province of Ontario, such as convocations, opening of the Legislature, and public meetings, are begun with the singing of the National Anthem and the reciting of a prayer. At gatherings such as these, people who object to the prayer usually stand in respectful silence without taking part. In the Committee's opinion, such opening ceremonies are indeed intrinsic in the culture of the province of Ontario. At school the child is being prepared for life in this society and accordingly participation in opening exercises at the beginning of each school day in the elementary grades is helpful in rounding out his education.

It was also brought forcibly to the Committee's attention, as previously noted, that to eliminate opening exercises would suggest that religion is not an integral part of the life of the people of this province. It is the Committee's view that religion does indeed play a vital part in our life and that the holding of opening exercises therefore exposes the child to a valuable learning experience in relation to the whole community in which he lives.

…

Throughout its Report, the Mackay Committee demonstrated sensitivity to the change in the composition of the population of the province in post-war years and the present pluralistic nature of Ontario's society. It commented at pp. 36-7:

The pluralistic nature of Ontario's society has been recognized by the Committee. The recommended opening exercises have religious significance for many and cultural significance for all. We are aware of the rights of minorities as well as the rights of the majority, and we have attempted to recognize the rights of both. What we have recommended is intended to fulfil a useful learning purpose, and should not be objectionable to most reasonable persons. Certainly, the opening exercises need provide no opportunity for indoctrination on the one hand or for watering down of individual belief on the other. We hope that all students will feel free to attend them in good heart.

Recognizing that the recommendation might not be universally approved, the Committee concluded:

[T]he Committee is of the opinion that the opening exercises which we now recommend should be found acceptable to almost all reasonable persons. Isolated requests for exemption, on the basis of individual religious implications, may have to be dealt with on their merits as they arise. We would regret such necessity, but for democratic reasons must admit the possibility.

It was not until 1978, nine years after the Mackay Committee Report, that the regulations governing opening religious exercises were changed by O.Reg. 704/78. …

The revised regulation, which is now s. 28(1) of Reg. 262, is repeated for convenience:

> 28(1) A public school shall be opened or closed each school day with religious exercises consisting of the reading of the Scriptures or other suitable readings and the repeating of the Lord's Prayer or other suitable prayers.

…

Since World War II, Ontario has changed from a population composed almost entirely of Christians to an ethnically diverse, multireligious and multicultural society. The Attorney-General submitted that, whereas 19th century requirements for religious exercises recognized differences among Christian denominations, today's requirements must recognize both interdenominational differences and those between Christians and non-Christians.

This, it was said, was exemplified by the experience of the City of Toronto public schools. As early as 1975, before the new regulations took effect in 1978, the Toronto Board of Education undertook a re-examination of religious exercises. This led, in 1979, to the formation of an interdenominational committee to recommend suitable prayers and religious readings. In 1980, the committee published a book of prayers and readings which was revised in 1981 and again in 1984. The readings and prayers in the book are drawn from a number of sources including Bahaism, Buddhism, Christianity, Confucianism, Hinduism, Islam, Jainism, Judaism, People of Native Ancestry, Secular Humanism, Sikhism, and Zoroastrianism. The book has been used in Toronto public schools for opening exercises since 1980.

The exercises now consist of the singing of O Canada, the reading of one or more selections from the book, followed by a moment of silent meditation and sometimes by comments by the teacher or principal, on the origins of the selections used. The Toronto programme appears to have met with general acceptance but we share the doubt, expressed by Reid J. at p. 773 O.R., pp. 733-4 D.L.R., whether it complies with s. 28(1) which requires both prayers and readings.

…

4. Does s. 28(1) of the regulations infringe Charter freedoms under s. 2(a)?

(a) The nature of freedom of conscience and religion

[The majority cited several passages from *Big M*, excerpted above]

(b) Does s. 28(1) infringe the Charter freedom of conscience and religion?

In Sudbury, the Board's application of s. 28(1) of the Regulations imposes Christian religious exercises in the schools. The Board has not exercised the option open to it under s. 28(1) of providing non-Christian prayers and non- Biblical readings. The possibility that the Board might exercise this option does not, however, affect the outcome in this case. The substantive issue here is whether s. 28(1), which makes it possible for the Board to prescribe Christian religious exercises, violates s. 2(a) of the Charter.

On its face, s. 28(1) infringes the freedom of conscience and religion guaranteed by s. 2(a) of the Charter. This was conceded by the respondents. Section 28(1) is antithetical to the Charter objective of promoting freedom of conscience and religion. The recitation of the Lord's Prayer, which is a Christian prayer, and the reading of Scriptures from the Christian Bible impose Christian observances upon non-Christian pupils and religious observances on non-believers.

The respondents, however, take the position that s. 28 viewed as a whole did not violate the freedoms of conscience and religion guaranteed by s. 2(a) of the Charter. They contend that the right to claim exemption from Christian religious exercises, conferred by s. 28(10), (11) and (12), eliminates any suggestion of pressure or compulsion on non-Christian pupils to participate in those exercises…

From the majoritarian standpoint, the respondent's argument is understandable but, in our opinion, it does not reflect the reality of the situation faced by members of religious minorities. Whether or not there is pressure or compulsion must be assessed from their standpoint and, in particular, from the standpoint of pupils in the sensitive setting of a public school. In saying this, we approve the analysis of Reid J. in the Divisional Court at p. 769 O.R., p. 729 D.L.R. where he said:

It may be that a control or limitation indirectly imposed is not readily appreciable to those who are not affected by it. It may be difficult for members of a majoritarian religious group, as I am, to appreciate the feelings of members of what, in our society, are minority religions. It may be difficult for religious people to appreciate the feelings of agnostics and atheists. Yet nevertheless those feelings exist. No one has suggested that the feelings expressed by applicants are not real, or that they do not run deep.

…

While the majoritarian view may be that s. 28 confers freedom of choice on the minority, the reality is that it imposes on religious minorities a compulsion to conform to the religious practices of the majority. The evidence in this case supports this view. The three appellants chose not to seek an exemption from religious exercises because of their concern about differentiating their children from other pupils. The peer pressure and the class-room norms to which children are acutely sensitive, in our opinion, are real and pervasive and operate to compel members of religious minorities to conform with majority religious practices…

Such reluctance to seek exemption seems all the more likely in view of the fact that children are disinclined at this age to step out of line or to flout "peer-group norms".

We consider that s. 28(1) also infringes freedom of conscience and religion in a broader sense. The requirement that pupils attend religious exercises, unless exempt,

… the right to be excused from class, or to be exempted from participating, does not overcome the infringement of the Charter freedom of conscience and religion by the mandated religious exercises. On the contrary, the exemption provision imposes a penalty on pupils from religious minorities who utilize it by stigmatizing them as non-conformists and setting them apart from their fellow students who are members of the dominant religion. In our opinion, the conclusion is inescapable that the exemption provision fails to mitigate the infringement of freedom of conscience and religion by s. 28(1).

Other arguments were made for denying the applicability of s. 2(a) of the Charter to religious exercises. It was contended that they did no harm to pupils of minority religions. This assertion is not proven because, as earlier indicated, there was a difference of expert opinion on whether or not minority pupils were harmed. In any event, in our opinion, harm to individual pupils need not be proved by those who object to s. 28(1). It is irrelevant to the real issue which is whether the Charter freedom of conscience and religion is infringed. There is no burden on those objecting to s. 28(1) on this ground to prove, in addition, that it causes actual harm to individual pupils.

> The effect of religious exercises cannot be glossed over with the comment that the exercises may be ‘‘good” for minority pupils. This view was expressed, as we indicated above, by a psychologist in supporting the Board’s case who said that it was salutary for minority pupils to confront “the fact of their difference from the majority”. This insensitive approach, in our opinion, not only depreciates the position of religious minorities but also fails to take into account the feelings of young children. It is also inconsistent with the multicultural nature of our society as recognized by s. 27 of the Charter which declares:
>
> 27. This Charter shall be interpreted in a manner consistent with the preservation and enhancement of the multicultural heritage of Canadians.
>
> It was also argued that any infringement by s. 28(1) of the Charter freedom of conscience and religion was so trivial and insubstantial that it was not worthy of Charter protection. We reject this argument and, with respect, cannot agree with O’Leary J. that it applies in this case. In our opinion, judged on a purely factual basis, the denigration of the minorities’ freedom of conscience and religion by the operation of s. 28(1) constitutes an infringement of s. 2(a) of the Charter which is not “insubstantial or trivial”: …
>
> Counsel for the board submitted that s. 28(1) of the Regulations was consistent with the preamble of the Charter which declares:
>
> ... Canada is founded upon principles that recognize the supremacy of God and the rule of law.
>
> It is a basic principle in the construction of statutes that a preamble is rarely referred to and, even then, is usually employed only to clarify operative provisions which are ambiguous. The same rule, in our view, extends to constitutional instruments. There is no ambiguity in the meaning of s. 2(a) of the Charter or doubt about its application in this case. Whatever meaning may be ascribed to the reference in the preamble to the “supremacy of God”, it cannot detract from the freedom of conscience and religion guaranteed by s. 2(a) which is, it should be noted, a “rule of law” also recognized by the preamble.
>
> …
>
> The respondents [also] argued that, because the Charter contained no establishment clause [as does the US Constitution], s. 28(1) could not be invalidated…
>
> Two conclusions can be drawn from the American [Supreme Court] decisions [on school prayer]. The first is that the absence of an establishment clause in s. 2(a) does not limit the protection it gives to freedom of conscience and religion [because school prayer was also held to violate the “free exercise clause”]. The second is that support can be found in *Abington*, the most recent major decision on school prayer, for our conclusion that the compulsion on students to conform and not exercise the right of exemption is a real restraint on the freedom of conscience and religion guaranteed by the Charter.
>
> (c) Can s. 1 be invoked to justify the Charter infringement?
>
> It follows from our analysis that s. 28(1) of the Regulations constitutes a *prima facie* infringement of the appellants’ rights under s. 2(a) of the Charter. In a usual Charter case, the burden passes at this stage to the parties upholding the Charter infringement to show on a balance of probabilities that it is justifiable under s. 1 of the Charter: R. v. Oakes, supra. In this case, however, the appellants contended that, since the very purpose of s. 28 of the Regulations violated s. 2(a) of the Charter, it was incapable of justification under s. 1.
>
> …
>
> After a careful consideration of the Act, the Regulations, and other materials placed before us, we have concluded that the purpose of s. 28(1) is religious and that the exercises mandated by the Regulation were intended to be religious exercises. This is the only conclusion which can be drawn from the wording of the Act and the Regulations. This view is confirmed by the specific provision for exemption contained in s. 50(2)…
>
> It is clear that the exemption provision is included in the Act because the exercises were intended to serve religious and not secular purposes.
>
> At their inception in 1816, there is no doubt that the opening and closing religious exercises were intended to serve the purpose of imbuing education with Christian principles. Later in the nineteenth century, when the exercises were made mandatory, there was again no doubt as to their religious purpose. Dr. Egerton Ryerson, the founder of Ontario’s public school system, stated in his “Report on a System of Public Elementary Education of Upper Canada” that “as Christianity is the basis of our whole system of elementary education, that principle should pervade throughout”. The objective of the religious exercises mandated in the 19th century was not changed in this century…
>
> In this case it cannot be argued, as it was in *Big M*, *supra*, that over time the purpose of the impugned regulation had shifted from religious to secular objectives. Its religious character was reinforced by the Mackay Report. The opening exercises may have secular moral and educational effects but these are, in our opinion, merely derivative from their religious objective. It is the purpose and not the impact of legislation which is determinative for constitutional purposes…
>
> 5. Could s. 28(1) have been justified under s. 1 of the Charter?
>
> Although we have concluded that this Charter infringement is incapable of justification under s. 1, we think it proper to state that the result would be the same if s. 1 applied…
>
> It is not necessary, in this case, to conduct a ritualistic step-by-step inquiry under each of the four elements of the *Oakes* test. If the respondent fails under one element of the test, the Charter infringement cannot be justified. We propose, therefore, to consider the most vulnerable element of the test from the respondent’s standpoint which is whether s. 28(1) impairs the appellants’ freedoms under s. 2(a) “as little as possible”. …
>
> The experience of the Toronto Board of Education convincingly demonstrates that there are less intrusive ways of imparting educational and moral values than those provided in s. 28... In saying this we are not to be taken as passing a constitutional judgment on the opening exercises used in Toronto public schools. They were not in issue before us and we express no opinion as to whether they might give rise to Charter scrutiny.
>
> 6. Conclusion
>
> Since s. 28(1) infringes the appellants’ Charter freedoms and could not, in any event, have been justified under s. 1, the appellants are entitled to the declaration they seek under s. 52 of the Constitution Act, 1982 that s. 28(1) of the Regulations is of no force and effect.

3.3 Notes: *CCLA v Ontario*, *Chamberlain*, *SL*

1. As in *Zylberberg*, the line between education and indoctrination was also the key to the reasoning in a case about religious curricula in public schools. In *Canadian Civil Liberties Assn v Ontario (Minister of Education)*, 1990 CanLII 6881 (ON CA), [1990] 71 OR (2d) 341, the Ontario Court of Appeal also invalidated moral education curricula that, in its view, crossed the line into indoctrination.
2. In *Chamberlain v. Surrey School District No. 36*, 2002 SCC 86, the SCC engaged with the question whether a school board could rely on the religious views of parents in making a decision about whether to exclude educational materials depicting same-sex parents from a curriculum. The British Columbia *School Act* required that public schools “must be conducted on strictly secular and non-sectarian

principles." The majority of the court held that this did not necessarily preclude reliance on religious views, but these views could not be relied upon to exclude other members of the community:

> 19 The Act's insistence on strict secularism does not mean that religious concerns have no place in the deliberations and decisions of the Board. Board members are entitled, and indeed required, to bring the views of the parents and communities they represent to the deliberation process. Because religion plays an important role in the life of many communities, these views will often be motivated by religious concerns. Religion is an integral aspect of people's lives, and cannot be left at the boardroom door. What secularism does rule out, however, is any attempt to use the religious views of one part of the community to exclude from consideration the values of other members of the community. A requirement of secularism implies that, although the Board is indeed free to address the religious concerns of parents, it must be sure to do so in a manner that gives equal recognition and respect to other members of the community. Religious views that deny equal recognition and respect to the members of a minority group cannot be used to exclude the concerns of the minority group. This is fair to both groups, as it ensures that each group is given as much recognition as it can consistently demand while giving the same recognition to others.

3. More recently, in *SL v Commission scolaire des Chênes*, 2012 SCC 7 (CanLII), [2012] 1 SCR 235, the SCC held that a public school curriculum that taught about religious and philosophical traditions from an academic perspective did not infringe the religious freedom of a Catholic student, whose parents objected to program. The same curriculum, however, was held to interfere with the religious freedom of a Catholic school, to the extent that it required the private Catholic school to teach about Catholicism from a "neutral" perspective: *Loyola High School v Quebec (Attorney General)*, 2015 SCC 12 (CanLII), [2015] 1 SCR 613.

4 Freedom of Religion in Tension with Other Constitutional Rights and Values

One dominant framing contemporary disputes about religious practice is to view religious freedom as being in conflict with other constitutional rights or values, especially (but not only) the right to equality. Though claims of religious freedom often come down to a proportionality analysis under s 1 of the *Charter*, this section highlights cases where the discourse around them focuses on the clash between fundamental rights or values.

4.1 Guiding questions

1. When religious freedom conflicts with other values, how should courts approach such cases?
2. How do the ideas of the public and private spheres impact these kinds of decisions?

4.2 *Law Society of British Columbia v. Trinity Western University*, 2018 SCC 32 (CanLII), [2018] 2 SCR 293

4.2.1 Majority

The following is the judgment delivered by

Abella, Moldaver, Karakatsanis, Wagner and Gascon JJ. —

I. Overview

[1] Trinity Western University (TWU), an evangelical Christian postsecondary institution, seeks to open a law school that requires its students and faculty to adhere to a religiously based code of conduct prohibiting "sexual intimacy that violates the sacredness of marriage between a man and a woman".

[2] At issue in this appeal is a decision of the Law Society of British Columbia (LSBC) not to recognize TWU's proposed law school. TWU and Brayden Volkenant, a graduate of TWU's undergraduate program who would have chosen to attend TWU's proposed law school, successfully brought judicial review proceedings to the Supreme Court of British Columbia, arguing that the LSBC's decision violated religious rights protected by s. 2(a) of the Canadian Charter of Rights and Freedoms. The Court of Appeal for British Columbia found that the LSBC should have approved the law school.

[3] In our respectful view, the LSBC's decision not to recognize TWU's proposed law school represents a proportionate balance between the limitation on the Charter right at issue and the statutory objectives governing the LSBC. The LSBC's decision was therefore reasonable.

II. Background

A. *The Parties*

[4] TWU is a privately funded evangelical Christian university located in Langley, British Columbia. It offers around 40 undergraduate majors and 17 graduate programs spanning an array of academic disciplines and subjects, all taught from a Christian perspective. Its object is "to provide for young people of any race, colour, or creed university education in the arts and sciences with an underlying philosophy and viewpoint that is Christian" (*Trinity Western University Act*, S.B.C. 1969, c. 44, s. 3(2)).

…

[6] Evangelical Christians believe in the authority of the Bible, the commitment to sharing the Christian message through evangelism, and sexual moral purity which requires sexual abstention outside marriage between a man and a woman. TWU's curriculum is developed and taught in a manner consistent with its religious worldview. The foundational beliefs of evangelical Christianity are also reflected in TWU's Community Covenant Agreement (Covenant). The Covenant requires TWU community members to "voluntarily abstain" from a number of actions, including harassment, lying, cheating, plagiarism, and the use or possession of alcohol on campus. At the heart of this appeal, however, is the Covenant's prohibition on "sexual intimacy that violates the sacredness of marriage between a man and a woman" (A.R., vol. III, at p. 403).

…

B. TWU's Proposed Law School

[11] Over two decades ago, TWU decided that it wished to establish a faculty of law and to add a three-year juris doctor (J.D.) common law degree program to its degree offerings. In June 2012, TWU submitted its proposal to British Columbia's Minister of Advanced Education for the approval required to be able to grant law degrees, pursuant to the Minister's authority under the Degree Authorization Act, S.B.C. 2002, c. 24, s. 4(1).

[12] TWU also submitted its proposal to the Federation of Law Societies of Canada, which received delegated authority from each of the provincial law societies in 2010 to ensure that new Canadian common law degree programs meet established national requirements. In December 2013, the Federation granted preliminary approval to TWU's proposed law school program. The following day, the Minister granted approval to TWU's proposed law school, authorizing TWU to grant law degrees to its graduates.

C. The LSBC's Decision Not to Approve TWU's Proposed Law School

[13] Under the LSBC's Rules, adopted pursuant to the *LPA*, enrollment in the LSBC's bar admission program requires proof of "academic qualification". Under Rule 2-27 (now Rule 2-54 of the *Law Society Rules 2015*), this requirement is met with a bachelor of laws or equivalent degree issued by an "approved" common law faculty of law in a Canadian university.

[14] A common law faculty of law is "approved" for the purposes of Rule 2-27 if it has been approved by the Federation "unless the Benchers adopt a resolution declaring that it is not or has ceased to be an approved faculty of law".

[15] Therefore, when the Federation granted its preliminary approval to TWU's law school on December 16, 2013, the law school became an "approved" faculty of law under the LSBC's Rule 2-27, unless the Benchers declared that it was not.

…

[20] The Benchers chose … to hold a referendum on the issue of TWU's law school approval. The Benchers agreed to be bound by the results only if one-third of members voted in the referendum and two-thirds of the votes were in favour of implementing the June 10, 2014 resolution.

[21] The referendum of all members was conducted by mail-in ballot in October 2014: 5951 members voted to implement the resolution through a declaration that TWU's proposed law school was not an approved faculty of law, while 2088 members voted against the resolution.

[22] On October 31, 2014, the Benchers passed a resolution declaring that TWU's law school was not an approved faculty of law. The resolution was passed with 25 votes in favour, one against, and four abstentions. On December 11, 2014, the Minister withdrew his approval of TWU's proposed law school under the *Degree Authorization Act*.

…

IV. Analysis

A. Questions on Appeal

[27] At the outset, it is important to identify what the LSBC actually decided when denying approval to TWU's proposed law school. The LSBC did not deny graduates from TWU's proposed law school admission to the LSBC; rather, the LSBC denied TWU's proposed law school with a mandatory covenant.

[28] In reviewing this decision, we must consider the following issues: whether the LSBC was entitled under its enabling statute to consider TWU's admissions policies and to hold a referendum of its members in deciding whether to approve its proposed law school; whether the LSBC's decision limited a Charter protection; and if so, whether that decision reflected a proportionate balance of the Charter protection and the statutory objectives.

B. The Scope of the LSBC's Statutory Mandate

[29] This appeal requires us to address the scope of the LSBC's statutory mandate. At issue in this case is the LSBC's decision not to approve TWU's proposed law school as a route of entry to the legal profession in British Columbia — a decision that falls within the core of the LSBC's role as the gatekeeper to the profession. A question that arises is whether the LSBC was entitled to consider factors apart from the academic qualifications and competence of individual graduates in making this decision to deny approval to TWU's proposed law school.

[30] TWU argues that the LSBC is only entitled to consider a law school's academic program, rather than its admissions policies, in deciding whether to approve it. It submits that Rule 2-27, the LSBC Rule under which the decision not to approve TWU's law school was made, was passed pursuant to the Benchers' statutory authority to make rules to "establish requirements, including academic requirements, and procedures" for enrolment of articled students and for admission to the bar, set out in ss. 20(1)(a) and 21(1)(b) of the *LPA*. However, ss. 20(1)(a) and 21(1)(b) of the *LPA* both explicitly allow the Benchers to "establish requirements, including academic requirements". TWU's argument also ignores the Benchers' authority, under s. 11(1) of the *LPA*, to "make rules for the governing of the society, lawyers, law firms, articled students and applicants, and for the carrying out of [the *LPA*]". This authority is explicitly "not limited by any specific power or requirement to make rules given to the benchers" elsewhere in the *LPA* (see *LPA*, s. 11(2)).

[31] In our view, the *LPA* requires the Benchers to consider the overarching objective of protecting the public interest in determining the requirements for admission to the profession, including whether to approve a particular law school.

…

[33] The LSBC's overarching statutory object in s. 3 of the *LPA* — to uphold and protect the public interest in the administration of justice — is stated in the broadest possible terms. While the provisions of s. 3 set out means by which this overarching objective is to be achieved, those means are framed expansively and include "regulating the practice of law" and "preserving and protecting the rights and freedoms of all persons". Section 3 of the *LPA*, read as a whole, manifests the legislature's intention to "leave the governance of the legal profession to lawyers"…

…

[39] The LSBC in this case interpreted its duty to uphold and protect the public interest in the administration of justice as precluding the approval of TWU's proposed law school because the requirement that students sign the Covenant as a condition of admission effectively imposes inequitable barriers on entry to the school. The LSBC was entitled to be concerned that inequitable barriers on entry to law schools would effectively impose inequitable barriers on entry to the profession and risk decreasing diversity within the bar. Ultimately, the LSBC determined that the approval of TWU's proposed law school with a mandatory covenant would negatively impact equitable access to and diversity within the legal profession and would harm LGBTQ individuals, and would therefore undermine the public interest in the administration of justice.

…

[41] Limiting access to membership in the legal profession on the basis of personal characteristics, unrelated to merit, is inherently inimical to the integrity of the legal profession. This is especially so in light of the societal trust placed in the legal profession and the explicit statutory direction that the LSBC should be concerned with "preserving and protecting the rights and freedoms of all persons" as a means to upholding the public interest in the administration of justice (*LPA*, s. 3(a)). Indeed, the LSBC, as a public actor, has an overarching interest in protecting the values of equality and human rights in carrying out its functions. As Abella J. wrote in *Loyola*, at para. 47, "shared values — equality, human rights and democracy — are values the state always has a legitimate interest in promoting and protecting". Constitutional and *Charter* values have been recognized as an important tool in judicial decision making since *R. v. Oakes*, 1986 CanLII 46 (SCC), [1986] 1 SCR 103 (p. 136), affirmed in subsequent jurisprudence (see e.g. *Reference re Secession of Quebec*, 1998 CanLII 793 (SCC), [1998] 2 SCR 217, at paras. 64-66; *Reference re Senate Reform*, 2014 SCC 32, [2014] 1 SCR 704, at para. 25; *R. v. National Post*, 2010 SCC 16, [2010] 1

SCR 477). Far from controversial, these values are accepted principles of constitutional interpretation. In the administrative context, this Court has recognized that "any exercise of statutory discretion must comply with the *Charter* and its values" (*R. v. Conway*, 2010 SCC 22, [2010] 1 SCR 765, at para. 41. See also G. Régimbald, *Canadian Administrative Law* (2nd ed. 2015), at pp. 94-100). There is no reason why *Charter* values should be seen as less significant in the context of administrative decision-making.

[42] Eliminating inequitable barriers to legal education, and thereby, to membership in the legal profession, also promotes the competence of the bar and improves the quality of legal services available to the public. The LSBC is statutorily mandated to ensure the competence of lawyers as a means of upholding and protecting the public interest in the administration of justice (*LPA*, s. 3(b)). The LSBC is not limited to enforcing minimum standards of competence for the individual lawyers it licenses; it is also entitled to consider how to promote the competence of the bar as a whole.

…

(1) Whether Freedom of Religion Is Engaged

[60] In this case, the first issue is whether, in applying its statutory public interest mandate — including the goals of equal access to and diversity within the legal profession — to the approval of TWU's proposed law school, the LSBC engaged the religious freedom of the TWU community.

[61] TWU is a private religious institution created to support the collective religious practices of its members. For the reasons set out below, we find that the religious freedom of members of the TWU community is limited by the LSBC's decision. It is unnecessary to determine whether TWU, as an institution, possesses rights under s. 2(a) of the Charter.

…

[64] Although this Court's interpretation of freedom of religion reflects the notion of personal choice and individual autonomy and freedom, religion is about both religious beliefs and religious relationships (Amselem, at para. 40; Loyola, at para. 59, quoting Justice LeBel in Hutterian Brethren, at para. 182). The protection of individual religious rights under s. 2(a) must therefore account for the socially embedded nature of religious belief, as well as the "deep linkages between this belief and its manifestation through communal institutions and traditions" (Loyola, at para. 60). In other words, religious freedom is individual, but also "profoundly communitarian" (Hutterian Brethren, at para. 89). The ability of religious adherents to come together and create cohesive communities of belief and practice is an important aspect of religious freedom under s. 2(a).

…

[70] Because s. 2(a) protects beliefs which are sincerely held by the claimant, the court must "ensure that a presently asserted religious belief is in good faith, neither fictitious nor capricious, and that it is not an artifice" (Amselem, at para. 52; see also Multani v. Commission scolaire Marguerite-Bourgeoys, 2006 SCC 6, [2006] 1 SCR 256, at para. 35). It is clear from the record that evangelical members of TWU's community sincerely believe that studying in a community defined by religious beliefs in which members follow particular religious rules of conduct contributes to their spiritual development. In our view, this is the religious belief or practice implicated by the LSBC's decision.

[71] This belief is, in turn, supported through the universal adoption of the Covenant. The Covenant "reflects both historic patterns of evangelical practice and widely accepted contemporary evangelical theological convictions" (R.R., vol. IV, at p. 89). A core value at TWU is "obeying the Authority of Scripture" (R.R., vol. I, at p. 121), and the Covenant promotes this compliance. Specifically, it requires TWU community members to "encourage and support other members of the community in their pursuit of these values and ideals" (A.R., vol. III, at p. 402). Thus, the mandatory Covenant helps create an environment in which TWU students can grow spiritually.

…

[75] By interpreting the public interest in a way that precludes the approval of TWU's law school governed by the mandatory Covenant, the LSBC has interfered with TWU's ability to maintain an approved law school as a religious community defined by its own religious practices. The effect is a limitation on the right of TWU's community members to enhance their spiritual development through studying law in an environment defined by their religious beliefs in which members follow certain religious rules of conduct. Accordingly, their religious rights were engaged by the decision.

(2) Overlapping *Charter* Protections

[76] Three other *Charter* protections are potentially implicated in this case, namely free expression (s. 2(*b*)); free association (s. 2(*d*)); and equality (s. 15).

[77] The factual matrix underpinning a *Charter* claim in respect of any of these protections is largely indistinguishable. Further, the parties themselves have almost exclusively framed the dispute as centring on religious freedom. In our view, the religious freedom claim is sufficient to account for the expressive, associational, and equality rights of TWU's community members in the analysis.

…

(3) Proportionate Balancing

…

[84] The LSBC was faced with only two options — to approve or reject TWU's proposed law school. Given the LSBC's interpretation of its statutory mandate, approving TWU's proposed law school would not have advanced the relevant statutory objectives, and therefore was not a reasonable possibility that would give effect to *Charter* protections more fully in light of the statutory objectives.

[85] The LSBC's decision also reasonably balanced the severity of the interference with the *Charter* protection against the benefits to its statutory objectives. To begin, the LSBC's decision did not limit religious freedom to a significant extent. The LSBC did not deny approval to TWU's proposed law school in the abstract; rather, it denied a specific proposal that included the mandatory Covenant. Indeed, when the LSBC asked TWU whether it would "consider" amendments to its Covenant, TWU expressed no willingness to compromise on the mandatory nature of the Covenant. The decision therefore only prevents TWU's community members from attending an approved law school at TWU that is governed by a *mandatory* covenant.

[86] The Court of Appeal described the limitation in this case as "severe" because it precludes graduates of TWU's proposed law school from practising law in British Columbia (para. 168). However, the LSBC's decision does not prevent any graduates from being able to practise law in British Columbia. Furthermore, it does not prohibit any evangelical Christians from adhering to the Covenant or associating with those who do. The interference is limited to preventing prospective students from studying law at TWU with a mandatory covenant.

[87] First, the limitation in this case is of minor significance because a mandatory covenant is, on the record before us, not

absolutely required for the religious practice at issue: namely, to study law in a Christian learning environment in which people follow certain religious rules of conduct. The decision to refuse to approve TWU's proposed law school with a mandatory covenant only prevents prospective students from studying law in their *optimal* religious learning environment where everyone has to abide by the Covenant.

[88] Second, the interference in this case is limited because the record makes clear that prospective TWU law students view studying law in a learning environment infused with the community's religious beliefs as preferred (rather than necessary) for their spiritual growth. …

…

[90] Our point is that, on the record before us, prospective TWU law students effectively admit that they have much less at stake than claimants in many other cases that have come before this Court (see e.g. *Multani*, at para. 3; *Amselem*, at para. 6; and *Hutterian Brethren*, at para. 7; and *Reference re Same-Sex Marriage*, 2004 SCC 79, [2004] 3 SCR 698, at para. 58). Put otherwise, denying someone an option they would merely appreciate certainly falls short of "forced apostasy" (*Hutterian Brethren*, at para. 89).

[91] On the other side of the scale is the extent to which the LSBC's decision furthered its statutory objectives. As the regulator of the legal profession in British Columbia, its decision must represent a reasonable balance between the benefits to its statutory objectives and the severity of the limitation on *Charter* rights at stake.

[92] It is clear that the decision not to approve TWU's proposed law school significantly advanced the LSBC's statutory objectives — to promote and protect the public interest in the administration of justice by preserving and protecting the rights and freedoms of all persons and ensuring the competence of the legal profession (see *LPA*, ss. 3(a) and 3(b)).

[93] First, the decision advances the LSBC's relevant statutory objectives by maintaining equal access to and diversity in the legal profession. While TWU submits that it "is open to all academically qualified people wishing to live and learn in its religious community" (R.F., at para. 10), the reality is that most LGBTQ people will be deterred from applying to its proposed law school because of the Covenant's prohibition on sexual activity outside marriage between a man and a woman. …

[94] TWU submits that even if LGBTQ people are deterred from attending TWU's law school, there are many other options open to LGBTQ people who wish to attend law school (R.F., at para. 175). Even further, TWU asserts that its law school will result in an overall increase in law school seats, which expands choices for all students (para. 138). The British Columbia Court of Appeal accepted this argument, finding that the negative impact on access to law school by LGBTQ students would be "insignificant in real terms" (para. 179).

[95] Such arguments fail to recognize that even if the net result of TWU's proposed law school is that more options and opportunities are available to LGBTQ people applying to law school in Canada — which is certainly not a guarantee — this does not change the fact that an entire law school would be closed off to the vast majority of LGBTQ individuals on the basis of their sexual identity. Those who are able to sign the Covenant will be able to apply to 60 *more* law school seats per year, whereas those 60 seats remain effectively *closed* to most LGBTQ people. In short, LGBTQ individuals would have fewer opportunities relative to others. This undermines true equality of access to legal education, and by extension, the legal profession. Substantive equality demands more than just the availability of options and opportunities — it prevents "the violation of essential human dignity and freedom" and "eliminate[s] any possibility of a person being treated in substance as 'less worthy' than others" (*Quebec (Attorney General) v. A*, 2013 SCC 5, [2013] 1 SCR 61, at para. 138). The public confidence in the administration of justice may be undermined if the LSBC is seen to approve a law school that effectively bars many LGBTQ people from attending.

[96] Second, the decision furthers the statutory objective — protecting the public interest in the administration of justice by preserving rights and freedoms — by preventing the risk of significant harm to LGBTQ people who attend TWU's proposed law school. … TWU's Covenant prevents students who are not married to members of the opposite sex from engaging in sexual activity in the privacy of their own bedrooms. It requires non-evangelical LGBTQ students, whom TWU welcomes to its school, to comply with conduct requirements even when they are off-campus, in the privacy of their own homes. Attending TWU's law school would mean that LGBTQ students would have to deny a crucial component of their identity in the most private and personal of spaces for three years in order to receive a legal education...

[97] Despite this, TWU asserts that LGBTQ students will suffer no harm to their dignity or personal identity while enrolled at TWU because the Covenant requires all members of TWU's community to "treat all persons with dignity, respect and equality, regardless of personal differences" (R.F., at para. 92). However, as this Court recognized in *Saskatchewan (Human Rights Commission) v. Whatcott*, 2013 SCC 11, [2013] 1 SCR 467, it is not possible "to condemn a practice so central to the identity of a protected and vulnerable minority without thereby discriminating against its members and affronting their human dignity and personhood" (para. 123, quoting L'Heureux-Dubé J. in *TWU 2001* in dissent (though not on this point), at para. 69).

…

[99] The TWU community has the right to determine the rules of conduct which govern its members. Freedom of religion protects the rights of religious adherents to hold and express beliefs through both individual and communal practices. Where a religious practice impacts others, however, this can be taken into account at the balancing stage. The Covenant is a commitment to *enforcing* a religiously based code of conduct, not just in respect of one's own behaviour, but also in respect of other members of the TWU community (D. Pothier, "An Argument Against Accreditation of Trinity Western University's Proposed Law School" (2014), 23:1 *Const. Forum Const.* 1, at p. 2). The effect of the mandatory Covenant is to restrict the conduct of others.

…

[103] The refusal to approve the proposed law school means that members of the TWU religious community are not free to impose those religious beliefs on fellow law students, since they have an inequitable impact and can cause significant harm. The LSBC chose an interpretation of the public interest in the administration of justice which mandates access to law schools based on merit and diversity, not exclusionary religious practices. The refusal to approve TWU's proposed law school prevents *concrete*, not abstract, harms to LGBTQ people and to the public in general. The LSBC's decision ensures that equal access to the legal profession is not undermined and prevents the risk of significant harm to LGBTQ people who feel they have no choice but to attend TWU's proposed law school. It also maintains public confidence in the legal profession, which could be undermined by the LSBC's decision to approve a law school that forces LGBTQ people to deny who they are for three years to receive a legal education.

[104] Given the significant benefits to the relevant statutory objectives and the minor significance of the limitation on the *Charter* rights at issue on the facts of this case, and given the absence of any reasonable alternative that would reduce the impact on *Charter* protections while sufficiently furthering those same objectives, the decision to refuse to approve TWU's proposed law school represents a proportionate balance. In other circumstances, a more serious limitation may be entitled to greater weight in the balance and change the outcome. But that is not this case.

[105] In our view, the decision made by the LSBC "gives effect, as fully as possible to the *Charter* protections at stake given the particular statutory mandate" (*Loyola*, at para. 39). Therefore, the decision amounted to a proportionate balancing and was reasonable.

V. Disposition

[106] The resolution of the LSBC to declare that TWU's proposed law school not be approved is restored. As a result, the appeal from the Court of Appeal for British Columbia is allowed, with costs.

4.2.2 Dissent

Côté and Brown JJ. (dissenting) —

I. Introduction

[260] One way of understanding this appeal and the appeal in Trinity Western University v. Law Society of Upper Canada, 2018 SCC 33, [2018] 2 SCR 453 — and reliance was frequently placed upon this metaphor during submissions from both sides at the hearing — is that they call upon this Court to decide who controls the door to "the public square". In other words, accepting that the liberal state must foster pluralism by striving to accommodate difference in the public life of civil society, where does that state obligation — that is, where does that public life — begin? With a private denominational university? Or with a judicially reviewable statutory delegate charged by the provincial legislature to regulate the profession and entry thereto in the public interest?

[261] In our view, fundamental constitutional principles and the statutory jurisdiction of the Law Society of British Columbia ("LSBC"), properly interpreted, lead unavoidably to the legal conclusion that the public regulator controls the door to the public square and owes that obligation. The private denominational university, which is not subject to the Canadian Charter of Rights and Freedoms and is exempt from provincial human rights legislation, does not. And, in conditioning access to the public square as it has, the regulator has — on this Court's own jurisprudence — profoundly interfered with the constitutionally guaranteed freedom of a community of co-religionists to insist upon certain moral commitments from those who wish to join the private space within which it pursues its religiously based practices. While, therefore, the LSBC has purported to act in the cause of ensuring equal access to the profession, it has effectively denied that access to a segment of Canadian society, solely on religious grounds. In our respectful view, this unfortunate state of affairs merits judicial intervention, not affirmation.

…

[265] At the end of the day, however, a court of law, particularly when dealing with claims of constitutionally guaranteed rights including freedom of religion, must have regard to the legal principles that guide the relationship between citizen and state, between private and public. And those principles exist to protect rights-holders from values which a state actor deems to be "shared", not to give licence to courts to defer to or impose those values. For the same reason, a court of law ought not in our respectful view to be concerned, as the majority (Abella, Moldaver, Karakatsanis, Wagner and Gascon JJ.) is explicitly concerned, with the "public perception" of what freedom of religion entails (Majority Reasons, at para. 101). The role of courts in these cases is "not to produce social consensus, but to protect the democratic commitment to live together in peace"…

…

[268] Even if the LSBC's statutory "public interest" mandate were to be interpreted such that it had the authority to take considerations other than fitness into account, the decision not to approve TWU's proposed law faculty unjustifiably limited the TWU community's freedom of religion. The decision not to approve TWU's proposed law faculty because of the restrictions contained in the Covenant — a code of conduct protected by provincial human rights legislation — is a profound interference with religious freedom, and is contrary to the state's duty of religious neutrality.

[269] Further, even were the "public interest" to be understood broadly, as the LSBC contends, accreditation of TWU's proposed law school would not be inconsistent with the public interest, so understood. Tolerance and accommodation of difference serve the public interest and foster pluralism. Acceptance by the LSBC of the unequal access effected by the Covenant would signify the accommodation of difference and of the TWU community's right to religious freedom, and not condonation of discrimination against LGBTQ persons. Approval of the proposed law school is, therefore, not inconsistent with "public interest" objectives of maintaining equal access and diversity in the legal profession, and indeed, it promotes those objectives. It follows that, in our view, approving TWU's proposed law school was the only decision reflecting a proportionate balancing between Charter rights and the LSBC's statutory objectives.

…

J. Proportionality: The Infringement Was Not Proportionate

(1) The LSBC Approval Decision Does Not Balance the TWU Community's Section 2(a) Rights With a Relevant Statutory Objective

…

[323] As we have already recounted, the LSBC's statutory objective in rendering an approval decision is to ensure that individual applicants are fit for licensing. And, as the fitness of future graduates of TWU's proposed law school was not in dispute, this statutory objective cannot justify any limitations on the TWU community's s. 2(a) rights. But as we will explain… even if the LSBC's statutory mandate had permitted the consideration of broader "public interest" concerns invoked by the LSBC and the majority, the LSBC's decision would not be justified, since withholding approval substantially interferes with the TWU community's freedom of religion and approving TWU's proposed law school was not against the public interest, so understood.

(2) The LSBC Approval Decision Substantially Interferes With Freedom of Religion

[324] In our view, the LSBC approval decision represents a profound interference with religious freedom: it is a measure that undermines the core character of a lawful religious institution and disrupts the vitality of the TWU community (*Loyola*, at para. 67). While the approval decision under review may appear to be facially neutral (as it denies a benefit and does not purport to directly compel or prohibit a religious practice), it is substantively coercive in nature. As the majority recognizes, at para. 99 of its reasons, "[t]he TWU community has the right to determine the rules of conduct which govern its members" through its Covenant. Indeed, the TWU Covenant is protected by British Columbia's *Human Rights Code*, R.S.B.C. 1996, c. 210, s. 41(1). Yet, notwithstanding that right and that statutory protection, the LSBC approval decision makes state acceptance contingent upon the TWU community manifesting its beliefs *in a particular way*. That this is so is, on this record, beyond dispute. As noted by the British Columbia Court of Appeal, "[t]he Law Society was prepared to approve the law school if TWU agreed to remove the offending portions of the Covenant requiring students to abstain from 'sexual intimacy that violates the sacredness of marriage between a man and a woman"... This is highly intrusive conduct by a state actor into the religious practices of the TWU community. That conduct, like the ensuing LSBC decision to deny accreditation, contravened the state's duty of religious neutrality: each represented an expression by the state of religious preference which promotes the participation of non-believers, or believers of a certain kind, to the exclusion of the community of believers found at TWU (*Mouvement laïque*, at paras. 74-78).

[325] The majority concludes that the infringement in this case was "limited" and "of minor significance" (paras. 86-90). We agree with the Chief Justice (at paras. 128-32) that the fact the Covenant is not "absolutely required" and "preferred (rather than necessary)" does not diminish the severity of the infringement in this case.

(3) Approving TWU's Proposed Law School Is Not Against the LSBC's Public Interest Mandate

…

[327] The majority states that the decision not to approve TWU's proposed law school furthers its public interest objective by "maintaining equal access to and diversity in the legal profession" (Majority Reasons, at paras. 93-95). We recognize, as this Court has previously recognized, that while there is evidence before us that some LGBTQ persons do attend TWU, the vast majority of LGBTQ students "would not be tempted to apply for admission, and could only sign the so-called student contract at a considerable personal cost. TWU is not for everybody; it is designed to address the needs of people who share a number of religious convictions" (*TWU 2001*, at para. 25). In our view, however, the majority fails to appreciate that the unequal access resulting from the Covenant is a function of accommodating religious freedom, which itself advances the public interest by promoting diversity in a liberal, pluralist society.

[328] The rights recognized in the *Charter* and the enshrinement of multiculturalism therein reflect the premise of our constitutional law and history that pluralism is intrinsically valuable. Our colleague McLachlin C.J. notes Canada's long history of religious schools (para. 130). Similarly, and writing extra-judicially, our colleague Karakatsanis J. has observed that, "[i]n a global environment where religious accommodation is sometimes seen as a detriment, Canada has found a way to welcome difference" (quoted in H. MacIvor and A. H. Milnes, eds., *Canada at 150: Building a Free and Democratic Society* (2017), at p. 9; see also M. A. Yahya, "Traditions of Religious Liberty in Early Canadian History", in D. Newman, ed., *Religious Freedom and Communities* (2016), 49, at p. 49).

[329] But this generous and historically Canadian posture towards religious accommodation stands in stark contrast to the majority's view of the pursuit of statutory objectives as "unavoidabl[y]" limiting the individual freedoms protected by the *Charter* (Majority Reasons, at para. 100). This view fundamentally misconceives the role of the state in a multicultural and democratic society. As described by W. A. Galston, "[i]n a liberal pluralist regime, a key end is the creation of social space within which individuals and groups can freely pursue their distinctive visions of what gives meaning and worth to human existence" (*The Practice of Liberal Pluralism* (2005), at p. 3). Or as Sachs J. said in *Christian Education South Africa* (at paras. 23-24), "if society is to be open and democratic in the fullest sense it needs to be tolerant and accepting of cultural pluralism" and allow "individuals and communities . . . to enjoy what has been called the 'right to be different'".

[330] We emphasize that it is the state and state actors — not private institutions like TWU — which are constitutionally bound to accommodate difference in order to foster pluralism in public life.

…

[333] Simply put, the secular state is a neutral state, which refrains from espousing "values" that undermine or go beyond what is necessary for the civic participation of all. As Iacobucci J. recognized in *Amselem*, at para. 50, "the State is in no position to be, nor should it become, the arbiter of religious dogma". We agree, and would add that the state is equally unfit to be the arbiter of *ir*religious dogma (see *Mouvement laïque*, at para. 70). As this Court said in *Mouvement laïque*, "[state] neutrality requires that the state neither favour nor hinder any particular belief, and the same holds true for non-belief" (para. 72 (emphasis added)). Either way, state neutrality must prevail.

[334] It follows from the foregoing that accommodating diverse beliefs and values is a precondition to secularism and pluralism. Further, it is necessary to ensure that the dignity of all members of society is protected. "Tolerance", then, means forbearing, and allowing for difference. "[I]t is a feeble notion of pluralism that transforms 'tolerance' into 'mandated approval or acceptance'" (*Chamberlain v. Surrey School District No. 36*, 2002 SCC 86, [2002] 4 SCR 710, at para. 132, per Gonthier J., dissenting in the result but agreeing with the majority on this point).

[335] The "public interest", broadly understood, is therefore served by accommodating TWU's religious practices, including the Covenant. That this is so is confirmed by provincial and federal legislation. Contrary to the LSBC decision under review, the Legislative Assembly of British Columbia has already determined that the public interest is served by accommodating religious communities by providing that they do not contravene provincial human rights law when they grant a preference to members of their own group (*Human Rights Code*, s. 41). This provision was described by this Court in *TWU 2001*, at para. 28, as "accommodat[ing] religious freedoms by allowing religious institutions to discriminate in their admissions policies on the basis of religion". The practical exclusion of LGBTQ individuals from attending TWU's proposed law school is therefore a direct result of *the Legislature's accommodation of the TWU community*. Further, that exclusion — which expresses a community code of conduct in conformity with orthodox evangelical beliefs — is not directed to LGBTQ persons; no one group is singled out, and many others (notably unmarried heterosexual persons) would be bound by it. The purpose of TWU's admissions policy is not to exclude LGBTQ persons, or anybody else, but to establish a code of conduct which ensures the vitality of its religious community.

…

[338] Finally, and contrary to our colleague McLachlin C.J.'s view (at paras. 137, 145-46 and 149-50), we see no basis for concern that approval by the LSBC would amount to "condoning" the content of the Covenant or discrimination against LGBTQ persons. As previously explained, the LSBC does not govern law schools. There is no basis upon which to conclude that law schools exercise a public function on behalf of the LSBC. It therefore cannot be said that the LSBC would, by accrediting TWU, condone discrimination indirectly. Nor, for that matter, can it be said that other provincial law societies (which decided to accredit TWU's law school on the recommendation of the Federation of Law Societies of Canada), or the Federation itself, condoned discrimination indirectly. State recognition of the rights of a private actor does not amount to an endorsement of that actor's beliefs, whether that recognition takes the form of an approval decision of the LSBC, or the Legislature's enactment of s. 41 of the *Human Rights Code*, or Parliament's inclusion of the preamble and s. 3.1 of the *Civil Marriage Act*. Equating approval to condonation turns the protective shield of the *Charter* into a sword by effectively imposing *Charter* obligations on private actors. And, it operates to exclude religious institutions, and therefore, religious communities, from the public sphere solely because they choose to exercise their *Charter*-protected religious beliefs. As noted by V. M. Muñiz-Fraticelli, "if every accrediting decision implies complicity with the values of the program that is licensed, then there is no possibility for diversity of values in any field that requires state approval. Religious education, for instance, would be permitted only when religious doctrine is perfectly congruent with the ethos of the state" ("The (Im)possibility of Christian Education" (2016), 75 *S.C.L.R.* (2d) 209, at p. 220).

…

4.2.3 Further Reading

1. Elaine Craig, "The Case for the Federation of Law Societies Rejecting Trinity Western University's Proposed Law Degree Program" (2013) 25 CJWL 148, https://papers.ssrn.com/sol3/papers.cfm?abstract_id=2202408
2. Dwight G. Newman, "On the Trinity Western University Controversy: An Argument for a Christian Law School in Canada" (2013) 22:3 Const. Forum 1, https://papers.ssrn.com/sol3/papers.cfm?abstract_id=2283782

3. Victor M. Muniz-Fraticelli, "The (Im)Possibility of Christian Education", https://papers.ssrn.com/sol3/papers.cfm?abstract_id=2798817
4. Richard Moon, "*LSBC v. TWU*: Complicated Answers to a Simple Question" (2019), 94 Supreme Court Law Review 335: https://digitalcommons.osgoode.yorku.ca/sclr/vol94/iss1/13/

4.3 *R. v. N.S.,* 2012 SCC 72

4.3.1 Majority

The judgment of McLachlin C.J. and Deschamps, Fish and Cromwell JJ. was delivered by

The Chief Justice —

I. Introduction

[1] How should the state respond to a witness whose sincerely held religious belief requires her to wear a niqab that covers her face, except for her eyes, while testifying in a criminal proceeding? One response is to say she must always remove her niqab on the ground that the courtroom is a neutral space where religion has no place. Another response is to say the justice system should respect the witness's freedom of religion and always permit her to testify with the niqab on. In my view, both of these extremes must be rejected in favour of a third option: allowing the witness to testify with her face covered unless this unjustifiably impinges on the accused's fair trial rights.

[2] A secular response that requires witnesses to park their religion at the courtroom door is inconsistent with the jurisprudence and Canadian tradition, and limits freedom of religion where no limit can be justified. On the other hand, a response that says a witness can always testify with her face covered may render a trial unfair and lead to wrongful conviction. What is required is an approach that balances the vital rights protecting freedom of religion and trial fairness when they conflict. The long-standing practice in Canadian courts is to respect and accommodate the religious convictions of witnesses, unless they pose a significant or serious risk to a fair trial. The *Canadian Charter of Rights and Freedoms*, which protects both freedom of religion and trial fairness, demands no less.

[3] For the reasons that follow, I conclude that a witness who for sincere religious reasons wishes to wear the niqab while testifying in a criminal proceeding will be required to remove it if:

(a) requiring the witness to remove the niqab is necessary to prevent a serious risk to the fairness of the trial, because reasonably available alternative measures will not prevent the risk; *and*

(b) the salutary effects of requiring her to remove the niqab, including the effects on trial fairness, outweigh the deleterious effects of doing so, including the effects on freedom of religion.

II. The Background

[4] The facts may be briefly stated. M---d S. and M---l S. stand charged with having sexually assaulted N.S. The accused are N.S.'s cousin and uncle, respectively. The prosecution called N.S. as a witness at the preliminary inquiry. N.S., who is a Muslim, wished to testify wearing her niqab. M---d S. and his co-accused, M---l S., sought an order requiring N.S. to remove her niqab when testifying. The preliminary inquiry judge held a *voir dire*, during which N.S. wore her niqab. N.S. testified that her religious belief required her to wear a niqab in public where men (other than certain close family members) might see her. She admitted that she had removed her niqab for the photo on her driver's licence, which was taken by a female photographer, and that, if required, she would remove it for a security check at a border crossing. The judge concluded that N.S.'s religious belief was "not that strong" and ordered her to remove her niqab. N.S. objected. The preliminary inquiry was adjourned. N.S. applied to the Superior Court of Justice to quash the order of the preliminary inquiry judge and to permit her to testify wearing the niqab.

…

III. The Issues

[7] The issue is when, if ever, a witness who wears a niqab for religious reasons can be required to remove it while testifying. Two sets of *Charter* rights are potentially engaged — the witness's freedom of religion (protected under s. 2(*a*)) and the accused's fair trial rights, including the right to make full answer and defence (protected under ss. 7 and 11(*d*)). This Court set out the framework for identifying and resolving rights conflicts that arise at common law in *Dagenais v. Canadian Broadcasting Corp.*, 1994 CanLII 39 (SCC), [1994] 3 SCR 835. This approach was further refined in *R. v. Mentuck*, 2001 SCC 76, [2001] 3 SCR 442. The framework was developed in the context of publication bans, but its principles have broader application.

[8] The first task under a *Dagenais*/*Mentuck*-type inquiry is to determine whether, in the case at hand, allowing the witness to testify in a niqab is necessary to protect her freedom of religion. The second task is to determine whether requiring the witness to testify without the niqab is necessary in order to protect the fairness of the trial. This involves considering whether there are alternative measures for protecting trial fairness that would also allow the witness to exercise her religious practice. Finally, if there is a true conflict that cannot be avoided, it is necessary to assess the competing harms and determine whether the salutary effects of requiring the witness to remove the niqab (for example, reducing the risk of a wrongful conviction) outweigh the deleterious effects of doing so (for example, the harm from interfering with the witness's sincerely held religious belief)…

[9] Applying this framework involves answering four questions:

1. Would requiring the witness to remove the niqab while testifying interfere with her religious freedom?

2. Would permitting the witness to wear the niqab while testifying create a serious risk to trial fairness?

3. Is there a way to accommodate both rights and avoid the conflict between them?

4. If no accommodation is possible, do the salutary effects of requiring the witness to remove the niqab outweigh the deleterious effects of doing so?

IV. Would Requiring the Witness to Remove the Niqab While Testifying Interfere With Her Religious Freedom?

…

[12] The preliminary inquiry judge failed to conduct an adequate inquiry into whether N.S.'s refusal to remove her niqab was based on a sincere religious belief. Based on the fact that N.S. removed the niqab for her driver's licence photo and said she would do so for a security check, the preliminary inquiry judge seems to have concluded that her beliefs were not sufficiently "strong".

[13] This was not an appropriate determination of whether N.S. has a *prima facie* religious claim. First, the question of whether she has a claim focuses on sincerity of belief rather than its strength. While, as I will discuss, the strength of a claimant's religious belief may be relevant in balancing it against the accused's fair trial rights, the belief need only be sincere in order for it to receive protection. Second, inconsistent adherence to a religious practice may suggest lack of sincere belief, but it does not necessarily do so. A sincere believer may

occasionally lapse, her beliefs may change over time or her belief may permit exceptions to the practice in particular situations. Departures from the practice in the past should also be viewed in context; a witness should not be denied the right to raise s. 2(*a*) merely because she has made what seemed to be a compromise in the past in order to participate in some facet of society. The preliminary inquiry judge did not explore these possibilities. I therefore agree with the Court of Appeal that the matter must be returned to the preliminary inquiry judge for full consideration of whether N.S.'s desire to wear a niqab is based on sincere religious belief.

[14] The balance of my reasons proceeds on the assumption that N.S. has established a sincere religious belief that she must wear a niqab while testifying in a public criminal proceeding. In such circumstances, can the judge order that the niqab be removed on the basis that it will adversely affect the accused's fair trial interests?

V. Would Permitting the Witness to Wear the Niqab While Testifying Create a Serious Risk to Trial Fairness?

…

[16] M---d S. argues that allowing N.S. to testify with her face covered by a niqab denies his fair trial rights in two ways: first, by preventing effective cross-examination; and second, by interfering with the ability of the trier of fact (judge or jury) to assess N.S.'s credibility.

[17] We have no expert evidence in this case on the importance of seeing a witness's face to effective cross-examination and accurate assessment of a witness's credibility. All we have are arguments and several legal and social science articles submitted by the parties as authorities.

[18] M---d S. and the Crown argue that the link is clear. Communication involves not only words, but facial cues. A facial gesture may reveal uncertainty or deception. The cross-examiner may pick up on non-verbal cues and use them to uncover the truth. Credibility assessment is equally dependent not only on what a witness says, but on how she says it. Effective cross-examination and accurate credibility assessment are central to a fair trial. It follows, they argue, that permitting a witness to wear a niqab while testifying may deny an accused's fair trial rights.

[19] N.S. and supporting interveners, on the other hand, argue that the importance of seeing a witness's face has been greatly exaggerated. They submit that untrained individuals cannot use facial expressions to detect deception. Moreover, to the extent that non-verbal cues are useful at all, a niqab-wearing witness's eyes, tone of voice and cadence of speech remain available to the cross-examiner and trier of fact.

[20] The record sheds little light on the question of whether seeing a witness's face is important to effective cross-examination and credibility assessment and hence to trial fairness. The only evidence in the record is a four-page unpublished review article suggesting that untrained individuals cannot accurately detect lies based on the speaker's facial cues. This material was not tendered through an expert available for cross-examination. Interveners have submitted articles arguing for and against a connection, but they are not part of the record and not supported by expert witnesses, and so are more rhetorical than factual.

[21] This much, however, can be said. The common law, supported by provisions of the *Criminal Code*, R.S.C. 1985, c. C-46, and judicial pronouncements, proceeds on the basis that the ability to see a witness's face is an important feature of a fair trial. While not conclusive, in the absence of negating evidence this common law assumption cannot be disregarded lightly.

[22] As a general rule, witnesses in common law criminal courts are required to testify in open court, with their faces visible to counsel, the judge and the jury. Face-to-face confrontation is the norm, although not an independent constitutional right: *R. v. Levogiannis* (1990), 1990 CanLII 6873 (ON CA), 1 O.R. (3d) 351 (C.A.), at pp. 366-67, aff'd 1993 CanLII 47 (SCC), [1993] 4 SCR 475. To be sure, long-standing assumptions of the common law can be displaced, if shown to be erroneous or based on groundless prejudice — thus the reforms to eliminate the many myths that once skewed the law of sexual assault. But the record before us has not shown the long-standing assumptions of the common law regarding the importance of a witness's facial expressions to cross-examination and credibility assessment to be unfounded or erroneous.

…

[24] Covering the face of a witness may impede cross-examination: see C.A. reasons, at para. 54. Effective cross-examination is integral to the conduct of a fair trial and a meaningful application of the presumption of innocence…

Non-verbal communication can provide the cross-examiner with valuable insights that may uncover uncertainty or deception, and assist in getting at the truth.

[25] Covering a witness's face may also impede credibility assessment by the trier of fact, be it judge or jury. It is a settled axiom of appellate review that deference should be shown to the trier of fact on issues of credibility because trial judges (and juries) have the "overwhelming advantage" of seeing and hearing the witness — an advantage that a written transcript cannot replicate… This advantage is described as stemming from the ability to assess the demeanour of the witness, that is, to *see* how the witness gives her evidence and responds to cross-examination.

…

[27] On the record before us, I conclude that there is a strong connection between the ability to see the face of a witness and a fair trial. Being able to see the face of a witness is not the only — or indeed perhaps the most important — factor in cross-examination or accurate credibility assessment. But its importance is too deeply rooted in our criminal justice system to be set aside absent compelling evidence.

[28] However, whether the ability to observe a witness's face impacts trial fairness in any particular case will depend on the evidence that the witness is to provide. Where evidence is uncontested, credibility assessment and cross-examination are not in issue; therefore, being unable to see the witness's face will not impinge on the accused's fair trial rights; as *Dagenais* notes, the risk to trial fairness must be "real and substantial" (p. 878), or in other words, the risk must be a serious one (*Mentuck*, at para. 34).

[29] If wearing the niqab poses no serious risk to trial fairness, a witness who wishes to wear it for sincere religious reasons may do so.

VI. Is There a Way to Accommodate Both Rights and Avoid the Conflict Between Them?

[30] If both freedom of religion and trial fairness are engaged on the facts, the question is how a judge should reconcile these rights.

[31] The answer to this question lies in the *Dagenais*/*Mentuck* approach and the jurisprudence of this Court. The answer is not to ban religion from the courtroom, transforming the courtroom into a "neutral" space where witnesses must park their religious convictions at the door. Nor does it lie in ignoring the ancient and persistent connection the law has postulated between seeing a witness's face and trial

fairness, and holding that a witness may always wear her niqab while testifying. Rather, the answer lies in a just and proportionate balance between freedom of religion on the one hand, and trial fairness on the other, based on the particular case before the Court.

[32] Under the *Dagenais*/*Mentuck* framework, once a judge is satisfied that both sets of competing interests are actually engaged on the facts, he or she must try to resolve the claims in a way that will preserve both rights...

[33] When the matter returns to the preliminary inquiry judge, the parties should be able to place before the court evidence relating to possible options for accommodation of the potentially conflicting claims. This is the first step in the reconciliation process. The question is whether there is a reasonably available alternative that would conform to the witness's religious convictions while still preventing a serious risk to trial fairness. On the facts of this case, it may be that no accommodation is possible; excluding men from the courtroom would have implications for the open court principle, the right of the accused to be present at his trial, and potentially his right to counsel of his choice. Testifying without the niqab via closed-circuit television or behind a one-way screen may not satisfy N.S.'s religious obligations. However, when this case is reheard, the preliminary inquiry judge must consider the possibility of accommodation based on the evidence presented by the parties.

VII. Do the Salutary Effects of Requiring the Witness to Remove the Niqab Outweigh the Deleterious Effects of Doing So?

[34] If there is no reasonably available alternative that would avoid a serious risk to trial fairness while conforming to the witness's religious belief, the analysis moves to the next step in the *Dagenais/Mentuck* framework. The question is whether the salutary effects of requiring the witness to remove the niqab, including the effects on trial fairness, outweigh the deleterious effects of doing so, including the effects on freedom of religion (*Dagenais*, at p. 878; *Mentuck*, at para. 32).

[35] As *Dagenais* makes clear, this is a proportionality inquiry, akin to the final part of the test in *R. v. Oakes*, 1986 CanLII 46 (SCC), [1986] 1 SCR 103. The effect of insisting that the witness remove the niqab if she is to testify must be weighed against the effect of permitting her to wear the niqab on the stand.

[36] In terms of the deleterious effects of requiring the witness to remove her niqab while testifying, the judge must look at the harm that would be done by limiting the sincerely held religious practice. Sincerity of belief is already established at the first step of determining whether the s. 2(*a*) right is engaged; at this stage the task is to evaluate the impact of failing to protect that sincere belief in the particular context. It is difficult to measure the value of adherence to religious conviction, or the injury caused by being required to depart from it. The value of adherence does not depend on whether a religious practice is a voluntary expression of faith or a mandatory obligation under religious doctrine: *Amselem*, at para. 47. However, certain considerations may be helpful. How important is the practice to the claimant? What is the degree of state interference with the religious practice? (See *Alberta v. Hutterian Brethren of Wilson Colony*, 2009 SCC 37, [2009] 2 SCR 567, at paras. 89-95.) How does the actual situation in the courtroom — the people present and any measures that can be put in place to limit facial exposure — affect the harm to the claimant of limiting her religious practice? These are but some considerations that may be relevant to determining the impact of an order to remove the niqab on the witness's right to freedom of religion.

[37] The judge should also consider the broader societal harms of requiring a witness to remove the niqab in order to testify. N.S. and supporting interveners argue that if niqab-wearing women are required to remove the niqab while testifying against their sincere religious belief they will be reluctant to report offences and pursue their prosecution, or to otherwise participate in the justice system. The wrongs done to them will remain unredressed. They will effectively be denied justice. The perpetrators of crimes against them will go unpunished, immune from legal consequences. These considerations may be especially weighty in a sexual assault case such as this one. In recent decades the justice system, recognizing the seriousness of sexual assault and the extent to which it is under-reported, has vigorously pursued those who commit this crime. Laws have been changed to encourage women and children to come forward to testify. Myths that once stood in the way of conviction have been set aside.

[38] Having considered the deleterious effects of requiring the witness to remove the niqab, the judge must also consider the salutary effects of doing so. These include preventing harm to the fair trial interest of the accused and safeguarding the repute of the administration of justice. An important consideration will be the extent to which effective cross-examination and credibility assessment on this witness's testimony is central to the case. On an individual level, the cost of an unfair trial is severe. The right to a fair trial is a fundamental pillar without which the edifice of the rule of law would crumble. No less is at stake than an individual's liberty — his right to live in freedom unless the state proves beyond a reasonable doubt that he committed a crime meriting imprisonment. This is of critical importance not only to the individual on trial, but to public confidence in the justice system.

[The majority then explained that the nature of the proceeding, whether the trial was by judge alone or judge and jury, and the nature of the evidence were examples of factors to be taken into account in this analysis.]

…

[45] The judge must assess all these factors and determine whether, in the case at hand, the salutary effects of requiring the witness to remove the niqab outweigh the deleterious effects of doing so.

VIII. The Alternatives

[46] I have proposed that courts should deal with the conflict between rights in cases such as this by finding a just and appropriate balance between freedom of religion on the one hand and fair trial rights on the other. The result is that where a niqab is worn because of a sincerely held religious belief, a judge should order it removed if the witness wearing the niqab poses a serious risk to trial fairness, there is no way to accommodate both rights, and the salutary effects of requiring the witness to remove the niqab outweigh the deleterious effects of doing so…

[47] Some of the submissions before us, however, argue against a contextual balancing and in favour of a clear rule…

[48] I turn first to the position that a witness should always be permitted to wear a niqab in court. The basic problem with this solution is that it offers no protection for the accused's fair trial interest and the state's correlative interest in avoiding wrongful convictions and maintaining public confidence in the administration of justice…

[49] In the absence of evidence showing that these beliefs [in the importance of seeing a witness's face], backed by centuries of practice, are unsubstantiated "myths" that should be excised from the law, we should not take such a radical step. It follows that the view that witnesses can never be ordered to remove the niqab cannot be accepted. The *Dagenais*/*Mentuck* approach of finding a just balance between the conflicting rights is not displaced.

[50] At the other end of the spectrum lies the approach that says the courtroom must be a space in which individuals' particular religious convictions have no place…

[51] In my view, this option must also be rejected. It is inconsistent with Canadian jurisprudence, courtroom practice, and our tradition of requiring state institutions and actors to accommodate sincerely held religious beliefs insofar as possible. Importantly, it limits religious rights where there is no countervailing right and hence no reason to limit them. As such, it fails the proportionality test which has

guided *Charter* jurisprudence since *Oakes* in 1986.

[52] First, as already discussed, our jurisprudence teaches that clashes between rights should be approached by reconciling the rights through accommodation if possible, and in the end, if a conflict cannot be avoided, by case-by-case balancing: *Dagenais*…

[53] Second, to remove religion from the courtroom is not in the Canadian tradition. Canadians have since the country's inception taken oaths based on holy books — be they the Bible, the Koran or some other sacred text. The practice has been to respect religious traditions insofar as this is possible without risking trial fairness or causing undue disruption in the proceedings. The *Canada Evidence Act*, R.S.C. 1985, c. C-5, now permits a witness to affirm instead of taking a religious oath, but it does not remove the option of the oath from the courtroom.

[54] Third, the Canadian approach in the last 60 years to potential conflicts between freedom of religion and other values has been to respect the individual's religious belief and accommodate it if at all possible …

[56] This brings me to the final reason for rejecting an approach that would never allow a witness to testify while wearing a religious facial covering. It does not comport with the fundamental premise underlying the *Charter* that rights should be limited only to the extent that the limits are shown to be justifiable. This principle is set out in s. 1 of the *Charter*, in relation to laws — laws that limit the rights guaranteed by the *Charter* are invalid to the extent that the limit is not reasonably justified in a free and democratic society. A total ban on religious face coverings for all evidence given by all witnesses in the courtroom would mean that freedom of religion is being limited in situations where there is no good reason for the limit. As discussed above, uncontested and uncontroversial evidence does not engage the fair trial interest. A total ban that would permit the state to intrude on freedom of religion where it cannot be justified is not consistent with the premise on which the *Charter* is based — a generous approach to defining the scope of the rights it confers, coupled with the need to justify intrusions on those rights because of conflicting interests or the public good.

IX. Conclusion

[57] I would dismiss the appeal. The matter should be remitted to the preliminary inquiry judge to be decided in accordance with these reasons.

4.3.2 Minority

The reasons of LeBel and Rothstein JJ. were delivered by

LeBel J. —

I. Introduction

…

[59] Once again, this appeal signals the difficulties attendant on the trial of charges of sexual assault and related offences, particularly in the context of the life of a family. As we will see, however, there is more to this case. This appeal also illustrates the tension and changes caused by the rapid evolution of contemporary Canadian society and by the growing presence in Canada of new cultures, religions, traditions and social practices. Now, this Court must decide how to frame the relationship — or clash — between the affirmation of a religious right by a victim of sexual assault and the right of the accused to conduct his defence or, rather, to make full answer and defence to the charges against him. The complainant says that her Islamic faith requires her to wear a full-face veil, the niqab, in public, in court. The accused responds that the complainant must remove her veil, particularly when she gives evidence or is cross-examined, in order to protect his right to a fair trial and to make full answer and defence…

[60] The Court of Appeal and the complainant treated the issue in this case as purely one of conflict and reconciliation between a religious right and the protection of the right of the accused to make full answer and defence. This clash arises, but the equation involves other factors. The case engages basic values of the Canadian criminal justice system. Is the wearing of the niqab compatible not only with the rights of the accused, but also with the constitutional values of openness and religious neutrality in contemporary democratic, but diverse, Canada?

[61] Exploring this aspect of the case may lead to further questions about the meaning of multiculturalism in our democratic environment…

II. Conflict Between Religious Rights and the Criminal Justice Process

…

[63] In the instant case, this Court must resolve a conflict between two protected constitutional rights within the framework established by the constitutional system…

[64] Indeed, the reasons of the Chief Justice recognize the importance of the right of cross-examination as a tool to ensure the effectiveness of the right of the accused to make full answer and defence. It tests the witness. Many cross-examinations fail or, in the end, actually assist the prosecution. Some succeed, on occasion brilliantly. Like the Chief Justice, I think that allowing participants to observe the face of a witness during cross-examination is an important part in the exercise of the right of the accused to defend himself against criminal charges, and that the appellant has failed to show that this view is wrong.

[65] I do not cast doubt on the sincerity of the appellant's religious beliefs. I do not doubt that the environment of a criminal trial is hardly congenial or comfortable for the witnesses or the parties, particularly in cases involving matters such as sexual assaults, even sexual assaults within the family circle, as in this case. Lawyers and judges get used in their lives to the courtroom environment. As judges, we may forget how new, strange or intimidating it may prove to be for those who do not live their lives in the law.

…

[67] But the Canadian criminal trial process remains faithful in its core aspects to an adversarial model. This process developed in the common law. Some of its features are now part of the constitutional order. The accused, who is the target of the process, may himself be going through a painful and traumatic experience from the time of the criminal investigation to the arrest, the laying of charges and the wait for a trial date in open court. Indeed, he is the target of a process established to satisfy the public interest in the pursuit and punishment of crime. Nevertheless the criminal process itself is also designed to ensure that the accused is given a fair trial, to safeguard the constitutional presumption of innocence and, hopefully, to avert wrongful convictions. The adversarial model is based on interaction between the prosecution, the plaintiff, counsel for the parties, witnesses and, finally, the judge and, where applicable, the jurors. This model of justice imposes a significant personal burden on witnesses and parties. This burden cannot be lifted entirely. The price might very well be reading the most basic rights of the accused out of the criminal law and of the *Charter*.

[68] In this context, it would be possible to expound at length on the theme of the reconciliation of rights. But the Court is, first of all, tasked with resolving a problem of balancing of rights, which both enjoy constitutional protection. I agree, in this respect, with the reasons of the Chief Justice that, when the issue involves the credibility of a key witness in respect of the core questions raised by a charge, the

rights of the accused must be protected. Since cross-examination is a necessary tool for the exercise of the right to make full answer and defence, the consequences of restrictions on the rights in question weigh more heavily on the accused, and the balancing process works in his favour. A defence that is unduly and improperly constrained might impact on the determination of his guilt or innocence. As a result, the witness, the complainant in this case, must be asked to remove her veil while giving evidence at the preliminary inquiry and at trial.

III. The Niqab — Some Practical Aspects of the Conduct of the Trial

[69] But this does not mean that I agree with the solution the Chief Justice proposes to the problem of a witness wearing a niqab while testifying. In her view, whether a witness will be allowed to wear a niqab would depend on the nature or the importance of the evidence. The application of these criteria looks highly problematic. First, their application could trigger new motions, and possibly another type of "*voir dire*" that would add a new layer of complexity to a trial process that is not always a model of simplicity. We should not forget that a trial is itself a dynamic chain of events. It can often be difficult to foresee which evidence might be considered non-contentious or important at a specific point in a trial. The solution may vary at different stages of a trial, and also with what is known about the evidence. What looked unchallengeable one day might appear slightly dicey a week later. Given the nature of the trial process itself, the niqab should be allowed either in all cases or not at all when a witness testifies. In my opinion, a clear rule should be chosen. Because of its impact on the rights of the defence, in the context of the underlying values of the Canadian justice system, the wearing of a niqab should not be allowed.

IV. Values of the Canadian Criminal Justice System

[70] A few years ago, Abella J. wrote some words of caution about the need to respect differences, but at the same time to preserve common values of Canadian society:

> Endorsed in legal instruments ranging from the statutory protections found in human rights codes to their constitutional enshrinement in the *Canadian Charter of Rights and Freedoms*, the right to integrate into Canada's mainstream based on and notwithstanding these differences has become a defining part of our national character.
>
> The right to have differences protected, however, does not mean that those differences are always hegemonic. Not all differences are compatible with Canada's fundamental values and, accordingly, not all barriers to their expression are arbitrary.

(*Bruker v. Marcovitz*, 2007 SCC 54, [2007] 3 SCR 607, at paras. 1-2)

[71] Those common values are the ones that allowed Canada to develop and live as a diverse society. They preserve a public space where all will be welcome as they are, but where some core common values will facilitate the interaction between all members of society…

[72] Dickson C.J. recognized in *Oakes* that the *Charter* is grounded in a long history and tradition. The "living tree" keeps growing, but always from its roots. Today, we may rightly say that, in s. 27 of the *Charter*, Canada accepts the importance of multiculturalism in its social life. In s. 27, Canada signals its acceptance that it's changing through every day of its history. At the same time, however, the recognition of multiculturalism takes place in the environment of the Constitution itself, and is rooted in its political and legal traditions. The Constitution requires an openness to new differences that appear within Canada, but also an acceptance of the principle that it remains connected with the roots of our contemporary democratic society.

[73] The will to maintain an independent and open justice system in which the interests and the dignity of all are taken into consideration remains a key aspect of the traditions grounding this democratic society. The religious neutrality of the state and of its institutions, including the courts and the justice system, protects the life and the growth of a public space open to all regardless of their beliefs, disbeliefs and unbeliefs. Religions are voices among others in the public space, which includes the courts.

[74] A system of open and independent courts has become a core component of a democratic state, ruled by law (T. Bingham, *The Rule of Law* (2010), at p. 8). This system is part of the complex web of institutions, rules and values embraced by the notion of the rule of law, of a state and a society living under and within the law. Such a system is critical to the maintenance of the rule of law, a fundamental Canadian value, as this Court held, for example, in the *Quebec Secession Reference*…

[75] There are all sorts of exceptions to the openness of the courts and to the publicity of trials. But they remain exceptions. Courts work under a general principle that they are open to the public and that the public is entitled to know or learn about what goes on before them…

[76] From this broader constitutional perspective, the trial becomes an act of communication with the public at large. The public must be able to see how the justice system works. The principle of openness ensures that the courts and the trial process belong to all regardless of religion, gender or origin.

[77] In the courts themselves, as I mentioned above, the trial is a process of communication. To facilitate this process, the justice system uses rules and methods that try to assist parties that struggle with handicaps to overcome them in order to gain access to justice and take part effectively in a trial. Blind or deaf litigants, and parties with limited mobility, take part in judicial proceedings. Communication may sometimes be more difficult. But the efforts to overcome these obstacles and the rules crafted to address them tend to improve the quality of the communication process. Wearing a niqab, on the other hand, does not facilitate acts of communication. Rather, it restricts them. It removes the witness from the scope of certain elements of those acts on the basis of the assertion of a religious belief in circumstances in which the sincerity and strength of the belief are difficult to assess or even to question. The niqab shields the witness from interacting fully with the parties, their counsel, the judge and, where applicable, the jurors.

[78] A clear rule that niqabs may not be worn would be consistent with the principle of openness of the trial process and would safeguard the integrity of that process as one of communication. It would also be consistent with the tradition that justice is public and open to all in our democratic society. This rule should apply at all stages of the criminal trial, at the preliminary inquiry as well as at the trial itself. Indeed, evidentiary issues arise and evolve at the different stages of the criminal process, and they affect the conduct of the communication process taking place during the trial.

4.3.3 Dissent

Abella J. (dissenting) —

Introduction

[80] Controversy hovers over the context of this case: whether the niqab is mandatory for Muslim women or whether it marginalizes the women who wear it; whether it enhances multiculturalism or whether it demeans it. These are complex issues about which reasonable people can and do strenuously disagree. But we are not required to try to resolve any of these or related conceptual issues in this case, we are required to try to transcend them in order to answer only one question: Where identity is not an issue, should a witness' sincerely held religious belief that a niqab must be worn in a courtroom, yield to an accused's ability to see her face. In other words, is the harm to the accused's fair trial rights in not being able to see a witness' entire face, greater than the harm to that witness' religious rights.

[81] N.S., the complainant, is alleging that she was repeatedly sexually assaulted by the accused while she was a child. She asserts that her religious beliefs require her to wear a niqab — a veil which covers her face but not her eyes — while testifying in front of any man who is not a direct family member. The accused argues that his right to a fair trial requires that he, his counsel, and the judge be able to see N.S.'s face during her testimony and cross-examination. The issue, therefore, is weighing the competing harms.

[82] I concede without reservation that seeing more of a witness' facial expressions is better than seeing less. What I am not willing to concede, however, is that seeing less is so impairing of a judge's or an accused's ability to assess the credibility of a witness, that the complainant will have to choose between her religious rights and her ability to bear witness against an alleged aggressor. This also has the potential to impair the rights of an accused, who may find herself having to choose between her religious rights and giving evidence in her own defence. The court system has many examples of accepting evidence from witnesses who are unable to testify under ideal circumstances because of visual, oral, or aural impediments. I am unable to see why witnesses who wear niqabs should be treated any differently.

[83] I would, however, make an exception in cases where the accused can demonstrate that the witness' face is directly relevant to the case, such as where the witness' identity is in issue. In such cases, seeing the witness' face is central to the issues at trial, rather than merely being a part of the assessment of demeanour.

Analysis

…

[86] The crux of this case… is whether the impact of not having full access to the usual "demeanour assessment package" can be said to so materially harm trial fairness that the religious right must yield. In my view, with very limited exceptions, the harm to a complainant of requiring her to remove her niqab while testifying will generally outweigh any harm to trial fairness.

[87] This Court has adopted a low threshold when it comes to establishing sincerity of belief. Inquiries into sincerity are to be "as limited as possible", intended "only to ensure that a presently asserted religious belief is in good faith, neither fictitious nor capricious, and that it is not an artifice…

[88] In my view, particularly in the context of this case, a probing inquiry into the claimant's sincerity of belief is unwarranted. For a start, it is unclear what sort of evidence a court would actually require in order for the claimant to establish a sincerity of religious practice: Sara Weinrib, "An Exemption for Sincere Believers: The Challenge of *Alberta v. Hutterian Brethren of Wilson Colony*" (2011), 56 *McGill L.J.* 719, at p. 728. Rigorous focus on a claimant's past religious practice to determine whether his or her current beliefs are sincerely held is largely inconclusive, as are the beliefs of co-religionists given the spectrum of beliefs and practices even within the same religion: *Amselem*, at para. 53. Moreover, it strikes me as manifestly unrealistic to assume that a witness would insincerely wear the niqab in an effort to gain some sort of testimonial advantage. As a result, I agree that the preliminary inquiry judge improperly focussed on N.S.'s decision to remove her niqab when having her driver's licence photo taken and at potential security checks. The record shows that N.S. has worn her niqab for five years in sincere religious observance. In my view, she met the sincerity threshold.

[89] With great respect, however, I disagree with the majority that the "strength" of a witness' belief, while not relevant in assessing the witness' *prima facie* religious claim, *is* nonetheless somehow relevant when balancing that claim against trial fairness. It is unclear to me how a claimant's "strength" of belief — particularly given the highly subjective and imprecise nature of the freedom of religion analysis — affects the protection a claimant should be afforded under the *Charter*. Such an approach, in my respectful view, risks re-entering into inappropriate inquiries into a claimant's past practices, or into the extent to which a claimant's practices follow a religion's orthodox traditions.

[90] The next stage of the analysis is to ask whether permitting the witness to wear the niqab while testifying creates a serious risk to trial fairness. The accused argues that allowing N.S. to testify with her face covered by a niqab violates his right to a fair trial both by preventing effective cross-examination and by presenting an obstacle to the trier of fact's ability to assess her credibility. This brings us to the heart of the issue.

[91] There can be no doubt that the assessment of a witness' demeanour is easier if it is based on being able to scrutinize the whole demeanour package — face, body language, voice, etc. Nor is there any doubt that historically and ideally, we *expect* to see a witness' face when he or she is testifying. That, however, is different from concluding that unless the entire package is available for scrutiny, a witness'credibility cannot adequately be weighed.

[92] To start, while I think it is clear that witnesses in common law criminal courts are expected to testify with their faces visible to counsel and the trier of fact, it does not follow that if they are unable to do so, they cannot testify. A general expectation is not the same as a general rule, and there is no need to enshrine an historic practice into a "common law" requirement. Canada's justice journey has absorbed and accommodated an evolutionary recognition that while history assists in understanding the past, it need not necessarily command the future. That is why we have come to use screens for children, interpreters for those without facility in our official languages, and a myriad of other means to facilitate a witness' ability to give evidence in the courtroom. As this case demonstrates, courts are engaged in a constant process of reconciling historic expectations and practices with the *Charter*'s vision.

[93] A number of interests are engaged when a witness is not permitted to wear her niqab while testifying. First, she is prevented from being able to act in accordance with her religious beliefs. As noted by Martha C. Nussbaum, religious requirements are experienced as "obligatory and nonoptional", that is, as not providing a genuine choice to the religious believer…

[94] This has the effect of forcing a witness to choose between her religious beliefs and her ability to participate in the justice system: Natasha Bakht, "Objection, Your Honour! Accommodating *Niqab*-Wearing Women in Courtrooms", in Ralph Grillo et al., eds., *Legal Practice and Cultural Diversity* (2009), 115, at p. 128. As a result, as the majority notes, complainants who sincerely believe that their religion requires them to wear the niqab in public, may choose not to bring charges for crimes they allege have been committed against them, or, more generally, may resist being a witness in someone else's trial. It is worth pointing out as well that where the witness is the accused, she will be unable to give evidence in her own defence. To those affected, this is like hanging a sign over the courtroom door saying "Religious minorities not welcome".

[95] The order requiring a witness to remove her niqab must also be understood in the context of a complainant alleging sexual assault. As this Court stated in *R. v. Mills*, 1999 CanLII 637 (SCC), [1999] 3 SCR 668, "an assessment of the fairness of the trial process must be made 'from the point of view of fairness in the eyes of the community and the complainant' and not just the accused" (para. 72): see also *R. v. O'Connor*, 1995 CanLII 51 (SCC), [1995] 4 SCR 411, *per* McLachlin J., at para. 193. Creating a judicial environment where victims are further inhibited by being asked to choose between their religious rights and their right to seek justice, undermines the public perception of fairness not only of the trial, but of the justice system itself.

[96] The majority's conclusion that being unable to see the witness' face is acceptable from a fair trial perspective if the evidence is "uncontested", essentially means that sexual assault complainants, whose evidence will inevitably be contested, will be forced to choose between laying a complaint and wearing a niqab, which, as previously noted, may be no meaningful choice at all.

[97] This brings us to the extent to which N.S., by exercising her freedom of religion in wearing a niqab, harms the accused's fair trial rights. The right to a fair trial is crucial to the presumption of innocence and maintaining confidence in the criminal justice system. While I agree that witnesses generally and ideally testify with their faces uncovered in open court, abridgements of this "ideal" often occur in practice yet are almost always tolerated.

[98] "Demeanour" has been broadly described as "every visible or audible form of self-expression manifested by a witness whether fixed or variable, voluntary or involuntary, simple or complex": Barry R. Morrison, Laura L. Porter and Ian H. Fraser, "The Role of Demeanour in Assessing the Credibility of Witnesses" (2007), 33 *Advocates' Q.* 170, at p. 179. Trial judges often rely on many indicators *other than* facial cues in finding a witness credible, including

> certitude in speaking, dignity while on the stand, exhibition of disability, exhibition of anger, exhibition of frustration, articulate speaking, thoughtful presentation, enthusiastic language, direct non-evasive answering, non-glib answering, exhibition of modesty, exhibition of flexibility, normal (as in as expected) body movement, cheerful attitude, kind manner, normal exhalation, normal inhalation. . . .
>
> (Morrison, at p. 189)

[99] Moreover, while the ability to assess a witness' demeanour is an important component of trial fairness, many courts have noted its limitations for drawing accurate inferences about credibility…

[101] The Canadian Judicial Council's model jury instructions also acknowledge the inherent limitations in relying on demeanour:

> What was the witness's manner when he or she testified? Do not jump to conclusions, however, based entirely on the witness's manner. Looks can be deceiving. Giving evidence in a trial is not a common experience for many witnesses. People react and appear differently. Witnesses come from different backgrounds. They have different intellects, abilities, values, and life experiences. There are simply too many variables to make the manner in which a witness testifies the only or the most important factor in your decision.
>
> (Model Jury Instructions, Part I, Preliminary Instructions, 4.11 Assessing Testimony (online))

[102] And courts regularly accept the testimony of witnesses whose demeanour can only be partially observed. Section 14 of the *Charter*, for example, states that a witness who cannot hear, or who does not understand or speak the language used in the proceedings, has the right to the assistance of an interpreter. In such cases, "the trial judge ha[s] to make credibility findings through the filters of the interpreters": *R. v. A.F.* (2005), 2005 ABCA 447 (CanLII), 376 A.R. 124 (C.A.), at para. 3; see also *R. v. R.S.M.*, 1999 BCCA 218 (CanLII), at paras. 12-14. The use of an interpreter may well have an impact on how the witness' demeanour is understood, but it is beyond dispute that interpreters render the assessment of demeanour neither impossible nor impracticable…

[103] A witness may also have physical or medical limitations that affect a judge's or lawyer's ability to assess demeanour. A stroke may interfere with facial expressions; an illness may affect body movements; and a speech impairment may affect the manner of speaking. All of these are departures from the demeanour ideal, yet none has ever been held to disqualify the witness from giving his or her evidence on the grounds that the accused's fair trial rights are thereby impaired.

[104] There are other situations where we accept a witness' evidence without being able to assess demeanour at all. The *Criminal Code*, R.S.C. 1985, c. C-46, permits a judge to order and admit a transcript of evidence by a witness who is unable to attend the trial because of a disability, even when the accused's counsel is not present for the taking of the evidence: ss. 709 and 713. Courts also allow witnesses, including material witnesses, to give evidence and be cross-examined by telephone…

[105] Exceptions to hearsay evidence are another example where the trier of fact is completely unable to assess the demeanour of the person whose statement is being admitted as evidence…

[106] Wearing a niqab presents only a partial obstacle to the assessment of demeanour. A witness wearing a niqab may still express herself through her eyes, body language, and gestures. Moreover, the niqab has no effect on the witness'verbal testimony, including the tone and inflection of her voice, the cadence of her speech, or, most significantly, the substance of the answers she gives. Unlike out-of-court statements, defence counsel still has the opportunity to rigorously cross-examine N.S. on the witness stand.

[107] It is clear from all of this that trial fairness cannot reasonably expect ideal testimony from an ideal witness in every case, and that demeanour itself represents only one factor in the assessment of a witness' credibility…

[108] And since, realistically, not being able to see a witness' whole face is only a partial interference with what is, in any event, only one part of an imprecise measuring tool of credibility, we are left to wonder why we demand full "demeanour access" where religious belief prevents it.

[109] In my view, therefore, the harmful effects of requiring a witness to remove her niqab, with the result that she will likely not testify, bring charges in the first place, or, if she is the accused, be unable to testify in her own defence, is a significantly more harmful consequence than not being able to see a witness' whole face.

[110] Since, in my view, N.S.'s sincerity has been established, I see no reason to require her to remove her niqab. I would therefore allow the appeal and remit the matter to the preliminary inquiry for continuation, directing that N.S. be permitted to wear her niqab throughout both the preliminary inquiry and any trial that may follow.

4.4 Notes

1. Notably, in the earlier decision of *Trinity Western University v British Columbia College of Teachers*, 2001 SCC 31 (CanLII), [2001] 1 SCR 772, the SCC reached the opposite result as in the law society cases. There, too, Trinity Western University was denied accreditation for a proposed educational program, on the basis of an earlier version of its community covenant. The argument of the College of Teachers, however, focused on the risk that graduates of the program would discriminate against LGBTQ2IA+ students in their future classrooms. The majority of the SCC held that, in the absence of evidence that such discrimination had or would occur, the accreditation should have been granted.
2. For other cases in which religious freedom is in tension with equality and other *Charter* rights, see:
    a. *Christian Medical and Dental Society of Canada v. College of Physicians and Surgeons of Ontario*, 2019 ONCA 393, in which the Ontario Court of Appeal upheld a policy requiring doctors to provide "effective referrals" for medical services such as abortion and medical assistance in dying despite doctors' religious objections;
    b. In both *Marriage Commissioners Appointed Under The Marriage Act (Re)*, 2011 SKCA 3 and *Kisilowsky v Manitoba*, 2018 MBCA 10, courts of appeal held that provinces were justified in requiring provincial marriage commissioners to officiate same-sex marriages;
3. A different kind of constitutional tension relates to the constitutionally required public funding of "dissentient schools" protected under s 93 of the *Constitution Act, 1867*, and its analogs in some of the acts by which new provinces joined confederation. This was part of the fundamental compromise undergirding confederation, and provided protection principally for Catholic schools outside Quebec and

Protestant schools inside Quebec. Effectively, the provision constitutionalized whatever publicly funded schools existed at the moment the province joined confederation. Because not all provinces provided such funding, and because both Quebec and Newfoundland and Labrador have repealed the requirement by way of constitutional amendment, only Alberta, Saskatchewan, and Ontario continue to fully fund Catholic schools. Ontario is unique in that it does not provide any public funding to other religious schools. A group of parents challenged this practice in *Adler v. Ontario*, 1996 CanLII 148 (SCC), [1996] 3 SCR 609, arguing that funding Catholic schools but no other religious schools violated ss 2(a) and 15(1) of the *Charter*. The majority rejected the argument, reasoning that one part of the Constitution (the *Charter*) cannot be relied upon to invalidate another (s 93 of the *Constitution Act, 1867*).

5 Institutional Religious Freedom

Religious communities often function as collectives, organizing themselves in ways that suit their particular traditions. They also make choices about the legal form that their organization will take for the purposes of federal and provincial laws. One question that arises in this context is whether and to what extent a court has jurisdiction to make orders with respect to decisions of a community. The basic position of the SCC is that the religious decisions of communities are not justiciable – that is, not subject to judicial review– unless there is a separate legal right at play. Part of this logic applies to all voluntary associations – courts can only review decisions where there is a legal right at stake – but matters of theology are singled out specifically as non-justiciable. This position was laid out in *Wall*, excerpted below.

5.1 *Highwood Congregation of Jehovah's Witnesses (Judicial Committee) v. Wall*, 2018 SCC 26

Rowe J. —

I. Overview

[1] The central question in this appeal is when, if ever, courts have jurisdiction to review the decisions of religious organizations where there are concerns about procedural fairness. In 2014, the appellant, the Judicial Committee of the Highwood Congregation of Jehovah's Witnesses, disfellowshipped the respondent, Randy Wall, after he admitted that he had engaged in sinful behaviour and was considered to be insufficiently repentant. The Judicial Committee's decision was confirmed by an Appeal Committee. Mr. Wall brought an originating application for judicial review of the decision to disfellowship him before the Alberta Court of Queen's Bench. The court first dealt with the issue of whether it had jurisdiction to decide the matter. Both the chambers judge and a majority of the Court of Appeal concluded that the courts had jurisdiction and could proceed to consider the merits of Mr. Wall's application.

[2] For the reasons that follow, I would allow the appeal. Mr. Wall sought to have the Judicial Committee's decision reviewed on the basis that the decision was procedurally unfair. There are several reasons why this argument must fail. First, judicial review is limited to public decision makers, which the Judicial Committee is not. Second, there is no free-standing right to have such decisions reviewed on the basis of procedural fairness. In light of the foregoing, Mr. Wall has no cause of action, and, accordingly, the Court of Queen's Bench has no jurisdiction to set aside the Judicial Committee's membership decision. Finally, the ecclesiastical issues raised by Mr. Wall are not justiciable.

…

IV. Analysis

[12] Courts are not strangers to the review of decision making on the basis of procedural fairness. However, the ability of courts to conduct such a review is subject to certain limits. These reasons address three ways in which the review on the basis of procedural fairness is limited. First, judicial review is reserved for state action. In this case, the Congregation's Judicial Committee was not exercising statutory authority. Second, there is no free-standing right to procedural fairness. Courts may only interfere to address the procedural fairness concerns related to the decisions of religious groups or other voluntary associations if legal rights are at stake. Third, even where review is available, the courts will consider only those issues that are justiciable. Issues of theology are not justiciable.

A. The Availability of Judicial Review

[13] The purpose of judicial review is to ensure the legality of state decision making… Judicial review is a public law concept that allows s. 96 courts to "engage in surveillance of lower tribunals" in order to ensure that these tribunals respect the rule of law… Private parties cannot seek judicial review to solve disputes that may arise between them; rather, their claims must be founded on a valid cause of action, for example, contract, tort or restitution.

[14] Not all decisions are amenable to judicial review under a superior court's supervisory jurisdiction. Judicial review is only available where there is an exercise of state authority and where that exercise is of a sufficiently public character. Even public bodies make some decisions that are private in nature — such as renting premises and hiring staff — and such decisions are not subject to judicial review…

…

[17] Although the public law remedy of judicial review is aimed at government decision makers, some Canadian courts, including the courts below, have continued to find that judicial review is available with respect to decisions by churches and other voluntary associations. These decisions can be grouped in two categories according to the arguments relied on in support of the availability of judicial review. Neither line of argument should be taken as authority for the broad proposition that private bodies are subject to judicial review. Both lines of cases fail to recognize that judicial review is about the legality of state decision making.

[18] The first line of cases relies on the misconception that incorporation by a private Act operates as a statutory grant of authority to churches so constituted… The purpose of a private Act is to "confer special powers or benefits upon one or more persons or body of persons, or to exclude one or more persons or body of persons from the general application of the law… Thus, by its nature, a private Act is not a law of general application and its effect can be quite limited… For instance, The United Church of Canada Act (1924), 14 & 15 Geo. 5, c. 100, gives effect to an agreement regarding the transfer of property rights (from the Methodist, Congregationalist and certain Presbyterian churches) upon the creation of the United Church of Canada; it is not a grant of statutory authority.

[19] A second line of cases that allows for judicial review of the decisions of voluntary associations that are not incorporated by any Act (public or private) looks only at whether the association or the decision in question is sufficiently public in nature…

[20] In my view, these cases do not make judicial review available for private bodies… In my view, a decision will be considered to be public where it involves questions about the rule of law and the limits of an administrative decision maker's exercise of power. Simply because a decision impacts a broad segment of the public does not mean that it is public in the administrative law sense of the term. Again, judicial review is about the legality of state decision making.

…

[22] The present case raises no issues about the rule of law. The Congregation has no constating private Act and the Congregation in no way is exercising state authority.

…

B. The Ability of Courts to Review Decisions of Voluntary Associations for Procedural Fairness

[24] Even if Mr. Wall had filed a standard action by way of statement of claim, his mere membership in a religious organization — where no civil or property right is granted by virtue of such membership — should remain free from court intervention. Indeed, there is no free-standing right to procedural fairness with respect to decisions taken by voluntary associations. Jurisdiction cannot be established on the sole basis that there is an alleged breach of natural justice or that the complainant has exhausted the organization's internal processes. Jurisdiction depends on the presence of a legal right which a party seeks to have vindicated. Only where this is so can the courts consider an association's adherence to its own procedures and (in certain circumstances) the fairness of those procedures.

…

[28] Mr. Wall argues that a contractual right (or something resembling a contractual right) exists between himself and the Congregation. There was no such finding by the chambers judge. No basis has been shown that Mr. Wall and the Congregation intended to create legal relations. Unlike many other organizations, such as professional associations, the Congregation does not have a written constitution, by-laws or rules that would entitle members to have those agreements enforced in accordance with their terms…

[29]… members of a congregation may not think of themselves as entering into a legally enforceable contract by merely adhering to a religious organization, since "[a] religious contract is based on norms that are often faith-based and deeply held": R. Moon, "*Bruker v. Marcovitz*: Divorce and the Marriage of Law and Religion" (2008), 42 S.C.L.R. (2d) 37, at p. 45. Where one party alleges that a contract exists, they would have to show that there was an intention to form contractual relations. While this may be more difficult to show in the religious context, the general principles of contract law would apply.

[30] Before the chambers judge, Mr. Wall also argued his rights are at stake because the Judicial Committee's decision damaged his economic interests in interfering with his client base. On this point, I would again part ways with the courts below. Mr. Wall had no property right in maintaining his client base…

[31] Had Mr. Wall been able to show that he suffered some detriment or prejudice to his legal rights arising from the Congregation's membership decision, he could have sought redress under appropriate private law remedies. This is not to say that the Congregation's actions had no impact on Mr. Wall; I accept his testimony that it did. Rather, the point is that in the circumstances of this case, the negative impact does not give rise to an actionable claim. As such there is no basis for the courts to intervene in the Congregation's decision-making process; in other words, the matters in issue fall outside the courts' jurisdiction.

C. Justiciability

[32] This appeal may be allowed for the reasons given above. However, I also offer some supplementary comments on justiciability, given that it was an issue raised by the parties and dealt with at the Court of Appeal. In addition to questions of jurisdiction, justiciability limits the extent to which courts may engage with decisions by voluntary associations even when the intervention is sought only on the basis of procedural fairness. Justiciability relates to the subject matter of a dispute. The general question is this: Is the issue one that is appropriate for a court to decide?

[33] Lorne M. Sossin defines justiciability as

> a set of judge-made rules, norms and principles delineating the scope of judicial intervention in social, political and economic life. In short, if a subject-matter is held to be suitable for judicial determination, it is said to be justiciable; if a subject-matter is held not to be suitable for judicial determination, it is said to be non-justiciable.
>
> (Boundaries of Judicial Review: The Law of Justiciability in Canada (2nd ed. 2012), at p. 7)

Put more simply, "[j]usticiability is about deciding whether to decide a matter in the courts": ibid., at p. 1.

[34] There is no single set of rules delineating the scope of justiciability. Indeed, justiciability depends to some degree on context, and the proper approach to determining justiciability must be flexible. The court should ask whether it has the institutional capacity and legitimacy to adjudicate the matter: see Sossin, at p. 294…

[35] By way of example, the courts may not have the legitimacy to assist in resolving a dispute about the greatest hockey player of all time, about a bridge player who is left out of his regular weekly game night, or about a cousin who thinks she should have been invited to a wedding: Court of Appeal reasons, at paras. 82-84, per Wakeling J.A.

[36] This Court has considered the relevance of religion to the question of justiciability. In *Bruker v. Marcovitz*, 2007 SCC 54, [2007] 3 SCR 607, at para. 41, Justice Abella stated: "The fact that a dispute has a religious aspect does not by itself make it non-justiciable." That being said, courts should not decide matters of religious dogma… The courts have neither legitimacy nor institutional capacity to deal with such issues, and have repeatedly declined to consider them…

…

[38] In addition, sometimes even the procedural rules of a particular religious group may involve the interpretation of religious doctrine. For instance, the Organized to Do Jehovah's Will handbook (2005) outlines the procedure to be followed in cases of serious wrongdoing: "After taking the steps outlined at Matthew 18:15, 16, some individual brothers or sisters may report to the elders cases of unresolved serious wrongdoing" (p. 151). The courts lack the legitimacy and institutional capacity to determine whether the steps outlined in Matthew have been followed. These types of procedural issues are also not justiciable. That being said, courts may still review procedural rules where they are based on a contract between two parties, even where the contract is meant to give effect to doctrinal religious principles… But here, Mr. Wall has not shown that his legal rights were at stake.

[39] Justiciability was raised in another way. Both the Congregation and Mr. Wall argued that their freedom of religion and freedom of association should inform this Court's decision. The dissenting justice in the Court of Appeal made comments on this basis and suggested that religious matters were not justiciable due in part to the protection of freedom of religion in s. 2(a) of the Canadian Charter of Rights and Freedoms. As this Court held in *RWDSU v. Dolphin Delivery Ltd.*, 1986 CanLII 5 (SCC), [1986] 2 SCR 573, at p. 603, the Charter does not apply to private litigation. Section 32 specifies that the *Charter* applies to the legislative, executive and administrative branches of government: ibid., at pp. 603-4. The *Charter* does not directly apply to this dispute as no state action is being challenged, although the *Charter* may inform the development of the common law: *ibid*., at p. 603. In the end, religious groups are free to determine their own membership and rules; courts will not intervene in such matters save where it is necessary to resolve an underlying legal dispute.

V. Disposition

[40] I would allow the appeal and quash the originating application for judicial review filed by Mr. Wall. As the appellants requested that no costs be awarded, I award none.

5.2 Notes: *Aga*, *Loyola*

1. Shortly after *Wall*, the SCC confirmed its approach in *Ethiopian Orthodox Tewahedo Church of Canada St. Mary Cathedral v. Aga*, 2021 SCC 22. In that case, even though the community incorporated under Ontario's *Corporations Act* and had a written constitution and bylaws, the SCC held that it had no jurisdiction to decide a dispute about members' expulsion because the claimants had not proven that there existed an intention to create a legal relationship between the parties.
2. The question of corporate religious freedom goes all the way back to *Big M Drug Mart*, in which the claimant was a business corporation. There was argument that it should not have been able to make a religious freedom claim because corporations cannot have religious beliefs. The SCC rejected the argument, on the logic that anyone charged with an offence can argue that the offence is unconstitutional and is therefore invalid. The question of non-human entities making religious freedom arguments arose again in *Loyola High School v Quebec (Attorney General)*, 2015 SCC 12 (CanLII), [2015] 1 SCR 613. The majority of the Court deliberately avoided answering the question definitively, but the minority held that corporations established for religious purposes should be entitled to make religious freedom claims in some circumstances. For an argument that business corporations should also be able to make such claims in some circumstances, see Howard Kislowicz, "Business Corporations as Religious Freedom Claimants in Canada" (2017) 51 Revue juridique Thémis de l'Université de Montréal 337.

6 Further Reading

1. Kathryn Chan, "Identifying the Institutional Religious Freedom Claimant" (2017) (2017) 95 Cdn Bar Review 707, https://cbr.cba.org/index.php/cbr/article/view/4435
2. Howard Kislowicz and Benjamin L Berger, "Religion, Public Law, and the Refuge of Formalism" (2022) 73 UNBLJ 67, https://journals.lib.unb.ca/index.php/unblj/article/view/34253

7 Freedom of Conscience

Although s 2(*a*) of the *Charter* protects freedom of conscience as well as freedom of religion, the large majority of the case law focuses on questions of religion. What's more, there is potential confusion between the terms "freedom of conscience" and "conscientious objection." While both rely on the idea of someone being free to act on their principles, in practice conscientious objections are often based in religious principles. For example, as noted above in Part 5.4, in *Christian Medical and Dental Society of Canada v. College of Physicians and Surgeons of Ontario*, 2019 ONCA 393, a group of physicians objected to making "effective referrals" to other physicians for patients seeking access to services including abortion and medical assistance in dying. The objectors in that case rooted their claims in their religious beliefs. There are few judicial treatments of the idea of freedom of conscience disconnected from freedom of religion. At the SCC, Wilson J developed the idea in *R. v. Morgentaler*, 1988 CanLII 90 (SCC), [1988] 1 SCR 30 at 179 as follows:

> It seems to me, therefore, that in a free and democratic society "freedom of conscience and religion" should be broadly construed to extend to conscientiously-held beliefs, whether grounded in religion or in a secular morality. Indeed, as a matter of statutory interpretation, "conscience" and "religion" should not be treated as tautologous if capable of independent, although related, meaning. Accordingly, for the state to take sides on the issue of abortion, as it does in the impugned legislation by making it a criminal offence for the pregnant woman to exercise one of her options, is not only to endorse but also to enforce, on pain of a further loss of liberty through actual imprisonment, one conscientiously-held view at the expense of another. It is to deny freedom of conscience to some, to treat them as means to an end, to deprive them, as Professor MacCormick puts it, of their "essential humanity".

Justice Wilson's opinion, while concurring in the result reached by the majority, was not joined by any other justices. Aside from this, the SCC has very little to say about conscience. One case which takes up a non-religious, conscientiously held belief is *Maurice v. Canada (Attorney General)*, 2002 FCT 69, excerpted below.

7.1 *Maurice v. Canada (Attorney General)*, 2002 FCT 69

> [1] While in the custody of the Correctional Service of Canada ("CSC") since 1998, the Applicant has repeatedly requested to be served a vegetarian diet. These requests have been denied on the basis that special diets are only authorized for religious beliefs or medical grounds. By this application, the Applicant challenges this denial.
>
> …
>
> [1] The Applicant had previously been provided a vegetarian diet because of his membership in the Hare Krishna faith. However, in August 1998, the Applicant renounced his religious faith and continued to demand a special vegetarian diet based on his "freedom of conscience". The Applicant does not eat meat, fish, eggs, poultry, onions, mushrooms and garlic because of his conscientiously held belief that eating those food items is "morally reprehensible and poisonous to society as a whole".
>
> …
>
> [5] Religious diets are provided to inmates as mandated by the Corrections and Conditional Release legislative scheme. Section 75 of the *Corrections and Conditional Release Act*, S.C. 1992, c.20 (the "*Act*") states that inmates are entitled to reasonable opportunities to freely and openly participate in and express religion or spirituality, subject to security and safety limits. Section 101 of the *Corrections and Conditional Release Regulations*, SOR/92-620 (the "*Regulations*") further provides that the necessities required for an inmate's religion or spirituality should be made available to the inmate, including a special diet. Section 8 of CD880 also specifically stipulates that religious diets are to be provided subject only to safety and security concerns.
>
> …
>
> [8] Thus, while the CSC has recognized its legal duty to facilitate the religious freedoms outlined in the *Charter*, freedom of conscience has effectively been ignored. Section 2(a) of the Charter affords the fundamental freedom of both religion and conscience, yet by the CSC's policy, inmates with conscientiously held beliefs may be denied expression of their "conscience". In my opinion the CSC's approach is inconsistent. The CSC cannot incorporate s.2(a) of the Charter in a piecemeal manner; both freedoms are to be recognized.
>
> [9] Vegetarianism is a dietary choice, which is founded in a belief that consumption of animal products is morally wrong. Motivation for practising vegetarianism may vary, but, in my opinion, its underlying belief system may fall under an expression of "conscience".

> [10] In *R. v. Big M Drug Mart Ltd.*, 1985 CanLII 69 (SCC), [1985] 1 SCR 295, at 346, Dickson J. stated that the rights associated with freedom of individual conscience are central to basic beliefs about human worth and dignity, and that every individual should be free to hold and manifest whatever beliefs and opinions his or her conscience dictates. Justice Dickson further articulated the broad scope of s.2(a) as follows:
>
> Freedom means that, subject to such limitations as are necessary to protect public safety, order, health, or morals or the fundamental rights and freedoms of others, no one is to be forced to act in a way contrary to his beliefs or his conscience.
>
> [11] Therefore, in my opinion, just as the entitlement for a religious diet may be found in s. 2(a) of the *Charter*, a similar entitlement for a vegetarian diet exists based on the right to freedom of conscience.
>
> …
>
> [13] It is important to note that, in the context of special diets available to inmates, religious diets and vegetarian diets are closely related. The CSC Religious Diets General Guidelines indicate that, in practice, many religious diets include some form of a vegetarian menu. As a result, accommodating a vegetarian's conscientiously held beliefs imposes no greater burden on an institution than that already in place for the provision of religious diets. In fact, the guidelines reveal that the CSC has conducted the necessary research to enable it to provide properly planned and nutritious vegetarian menus. The CSC has taken positive measures to ensure that religious freedoms are protected. In my opinion, positive measures also must be taken to facilitate freedom of conscience, subject only to the same safety and security limitations that exist for accommodation of religious beliefs.

7.2 Questions

1. What does "freedom of conscience" add to s 2(a) that is not already covered by freedom of religion? What kinds of cases may be analyzed under "freedom of conscience"?
2. Does "freedom of conscience" require a different test that "freedom of religion"?

7.3 Further Reading

1. Brian Bird, "The Call in *Carter* to Interpret Freedom of Conscience" (2018) 85:2 Supreme Court Law Review 107-141, https://papers.ssrn.com/sol3/papers.cfm?abstract_id=3340098
2. Howard Kislowicz, Richard Haigh & Adrienne Ng, "Calculations of Conscience: The Costs and Benefits of Religious and Conscientious Freedom" (2011) 48 Alta L Rev 679: https://albertalawreview.com/index.php/ALR/article/view/147

8 Further Reading: General

1. Richard Moon, *Freedom of Conscience and Religion*, 2nd edition (Irwin/UTP, 2024).
2. Richard Moon, "Freedom of Religion Under the *Canadian Charter of Rights*: The Limits of State Neutrality" (2012) 45 (2) University of British Columbia Law Review 49, https://papers.ssrn.com/sol3/papers.cfm?abstract_id=2029674
3. Richard Moon, ed, *Law and Religious Pluralism in Canada* (UBC Press, 2008)
4. Benjamin Berger, *Law's Religion: Religious Difference and the Claims of Constitutionalism* (University of Toronto Press, 2015)
5. Benjamin Berger, "Freedom of Religion" in Nathalie Des Rosiers, Patrick Macklem and Peter Oliver, eds., *Oxford Handbook of the Canadian Constitution* (Oxford: Oxford University Press, 2017) 755-776, https://papers.ssrn.com/sol3/papers.cfm?abstract_id=3027752
6. Lori Beaman, "Is Religious Freedom Impossible in Canada?" (2012) 8 Law, Culture and the Humanities 266, https://journals.sagepub.com/doi/abs/10.1177/1743872110366653
7. Mary Anne Waldron, *Free to Believe: Rethinking Freedom of Conscience and Religion in Canada* (University of Toronto Press, 2013)
8. Dia Dabby, *Religious Diversity in Canadian Public Schools: Rethinking the Role of Law* (Vancouver: UBC Press, 2022)
9. Bruce Ryder, "State Neutrality and Freedom of Conscience and Religion" (2005) The Supreme Court Law Review: Osgoode's Annual Constitutional Cases Conference 29: https://digitalcommons.osgoode.yorku.ca/sclr/vol29/iss1/10/
10. M.H. Ogilvie, *Religious Institutions and the Law in Canada*, 4th ed (Irwin UTP, 2017)

Chapter 20: S 2(b) Freedom of Expression

By Richard Moon and Margot Young

1 Foundations

Former Chief Justice Beverley McLachlin has written that free expression is "the indispensable condition for nearly every other freedom." (*R.v Sharpe* 2001 SCC 2 at para 23), quoting the US Supreme Court in *Palko v. Connecticut,* (302 US 319, 1937). The standard arguments for protecting freedom of expression focus on one or a combination of three values: truth, democracy, and individual autonomy. It is said that freedom of expression must be protected because it contributes to the public's recognition of truth, or to the growth of public knowledge: it is an important way of "seeking and attaining truth" (*Irwin Toy v. Quebec,* 1989 CanLII 87 (SCC), [1989] 1SCR 927, 976). It is also argued that free expression is "an essential feature of Canadian parliamentary democracy" (*RWDSU v. Dolphin Delivery,* 1986 CanLII 5 (SCC), [1986] 2 SCR 573 at 584). It is "one of the fundamental concepts that has formed the basis for the historical development of the political, social and educational institutions of western society" (*Dolphin Delivery* 1986, 583). And, finally, freedom of expression is said to be important to individual self-realization or personal autonomy, as "the means by which the individual expresses his or her personal identity and sense of individuality" (*Ford v. Quebec*, 1988 CanLII 19 (SCC), [1988] 2 SCR 712 at 749). Indeed, most accounts assume that a commitment to freedom of expression rests on all three of these values. This was the view of McLachlin J. in *R. v. Keegstra* (1990 CanLII 24 (SCC), [1990] 3 SCR 697 at 806):

> The broad wording of s.2(b) of the Charter is arguably inconsistent with a justification based on a single facet of expression. This suggests that there is no need to adopt any one definitive justification for freedom of expression. Different justifications for freedom of expression may assume varying degrees of importance in different fact situations".

Section 2(b) of the Charter guarantees to "everyone" "freedom of thought, belief, opinion and expression, including freedom of the press and other media of communication". The right to free expression is protected by various international human rights conventions to which Canada is a signatory, such as the International Covenant on Civil and Political Rights (ICCPR). Article 19(2) of the ICCPR provides that: "Everyone shall have the right to freedom of expression; this right shall include freedom to seek, receive and impart information and ideas of all

kinds, regardless of frontiers, either orally, in writing or in print, in the form of art, or through any other media of his choice". Article 10 of the European Convention on Human Rights (ECHR) also guarantees "freedom of expression" and provides that this right "shall include the freedom to hold opinions and to receive and impart information and ideas without interference by public authority and regardless of frontiers."

When thinking about the value of free expression it is worth remembering that the freedom does not simply protect individual liberty from state interference. Rather, it protects the individual's freedom to communicate with others – to speak to others, and to hear what others have to say. The right of the individual is to participate in an activity that is deeply social in character, that involves socially created languages and the use of collective resources such as the streets and the internet.

1.1 Further reading

- John Stuart Mill, *On Liberty* (1859) 18-52: https://socialsciences.mcmaster.ca/econ/ugcm/3ll3/mill/liberty.pdf
- R. Moon, "The Social Charter of Freedom of Expression", 2 Amsterdam Law Forum (2009): https://amsterdamlawforum.org/articles/10.37974/ALF.97

1.2 Questions

1. What is the link between free expression and a healthy democracy? Is free expression always a positive factor in democracy?
2. Why might it be wrong (a breach of their autonomy) to silence a speaker, when we think their views are wrong, but not wrong to criticize those views? Why might it violate the autonomy of an individual to prevent them from hearing inaccurate or hurtful views, even when we are afraid they might judge unwisely and adopt these views? If it is not wrong to prevent someone from engaging in harmful actions, why is it not wrong to prevent them from hearing views that might encourage them to engage in such action?
3. John Stuart Mill in his famous text, *On Liberty*, said that:

> [T]he peculiar evil of silencing the expression of an opinion is, that it is robbing the human race; posterity as well as the existing generation; those who dissent from the opinion, still more than those who hold it. If the opinion is right, they are deprived of the opportunity of exchanging error for truth: if wrong, they lose, what is almost as great a benefit, the clearer perception and livelier impression of truth, produced by its collision with error. (32)

Compare Mill's quotation to the following one from Chief Justice Dickson in Keegstra (1990 at 762):

> Taken to its extreme, [the truth-based] argument would require us to permit the communication of all expression, it being impossible to know with absolute certainty which factual statements are true, or which ideas obtain the greatest good. [But] expression can be used to the detriment of our search for truth; the state should not be the sole arbiter of truth, but neither should we overplay the view that rationality will overcome all falsehoods in the unregulated marketplace of ideas.

Dickson CJ, wrote this long before the rise of social media and the spread of misinformation and disinformation online. Does this change in the form and character of public discourse undermine or complicate Mill's defence of free expression?

2 The scope and limits of the freedom

Canadian courts take a two-step approach to the adjudication of freedom of expression claims under the *Charter of Rights and Freedoms*. At the first step, the court must decide whether the state has restricted an activity that falls within the scope of the freedom's protection. At the second step, the court must determine whether the restriction is justified under the terms of section 1 of the Charter.

In *Irwin Toy* (1989) the Supreme Court of Canada held that if "[a]n activity conveys or attempts to convey a meaning, it has expressive content and *prima facie* falls within the scope of the [s. 2(b)] guarantee" (*Irwin Toy* 1989 at 968). The Court also said that expression can take "an infinite variety of forms," including "the written and spoken word, the arts, and physical gestures" (*Irwin Toy* 1989 at 607). The court used the example of parking a car to illustrate the potential breadth of the category of expression. While parking a car is not ordinarily viewed as expression, if it is done to convey a message to others, it will fall within the scope of the freedom:

> It might be difficult to characterize certain day-to-day tasks, like parking a car, as having expressive content. To bring such activity within the protected sphere, the plaintiff would have to show that it was performed to convey a meaning. For example, an unmarried person might, as part of a public protest, park in a zone reserved for spouses of government employees in order to express dissatisfaction or outrage at the chosen method of allocating a limited resource. If that person could demonstrate that his activity did in fact have expressive content, he would, at this stage, be within the protected sphere and the s. 2(*b*) challenge would proceed.

The European Court of Human Rights (ECtHR) has said that the term "expression" encompasses "expression in words, in pictures, by video, and through conduct intended to convey an idea or information" (*Gough v. UK*, [2014] ECHR, 147). The First Amendment of the US Constitution protects freedom of "speech"; however, the US courts have defined speech broadly. The US Supreme Court in *Texas v. Johnson* (491 US 397, 1989) said that while "[t]he First Amendment literally forbids the abridgement only of 'speech' … its protection does not end at the spoken or written word" and extends to acts such as flag burning (*Texas v. Johnson* 1989 at 404). According to the court, when an individual intends through their conduct "to express an idea … that conduct may be 'sufficiently imbued with elements of communication to fall within the scope of the First and Fourteenth Amendments'" (*Texas v. Johnson* 1989, 404). In deciding whether conduct "possesses sufficient communicative elements" to fall with the general protection of the First Amendment, the court asks whether "[a]n intent to convey a particularized message was present, and [whether] the likelihood was great that the message would be understood by those who viewed it" (*Texas v. Johnson* 1989, 404). The First Amendment does not provide for limits on the right to free speech, and so instead of determining whether a limit on 'speech' is justified, the US courts have denied protection (from "content-based" state restrictions) to certain categories of harmful expression, such as "advocacy intended, and likely to, incite imminent lawless action, obscenity, defamation, speech integral to criminal conduct, so-called 'fighting words,' child pornography, fraud, true threats, and speech presenting some grave and imminent threat the government has the power to prevent" (*US v. Alvarez,* 567 US 709, 2012, 2544). Further, the US courts have also given weaker protection to other categories of speech, such as commercial advertising, engaging in a form of balancing when determining whether a particular state limit breaches the First Amendment.

Because communication engages or affects its audience at many levels, it is not always easy to draw the line between expression that is protected under s. 2(b) and other human acts that are not. As a consequence, the courts have adopted a broad reading of the freedom's scope and relied on section 1, the *Charter*'s limitations provision, to address concerns about the nature of the speaker's appeal to their audience – about whether a particular form or instance of expression engages the audience and encourages independent judgment or whether instead it intimidates, harasses, or manipulates the audience. In its freedom of expression cases, the Supreme Court of Canada is quick to find a breach of the right, leaving its significant analysis to the s. 1 stage, the justification of the limit on the right.

There are two exceptions to the Supreme Court of Canada's broad definition of the scope of freedom of expression under s. 2(b). First, the court has said that an act of expression will be denied s. 2(b) protection if its method or location is incompatible with the values underlying the

freedom – truth, democracy, and self-realization (*Montréal v. 2952-1366 Quebec Inc,* 2005 SCC 62). According to the court, a violent act, even if intended to carry a message, does not fall within the scope of the section because it does not advance these values (*Irwin Toy,* 1989 at 970). Expression that *advocates* violence is protected under s. 2(b), although it is subject to limits under s. 1. However, if the expressive act has a violent *form* – is itself violent – it will be denied protection under s. 2(b), and the state will not be required to justify its restriction under s. 1. Initially the court held that threats of violence do not fall within this exception and are protected under s. 2(b). However, later in *R. v. Khawaja* (2012 SCC 69), the court revised its position and held that threats of violence undermine "the very values and social conditions that are necessary for the continued existence of freedom of expression," ad so also fall outside the scope of s. 2(b) protection (*Khawaja* at para 70). In that case, the court held that that the *Criminal Code* ban on "terrorist activity" did not breach s. 2(b) of the Charter because this activity involved "acts of violence or threats of violence" (*Khawaja* at para 71).The court has also said that s. 2(b) protection does not extend to expression that takes place on a state-owned property that is not ordinarily open to the public for expression (is not a public arena/forum). This issue is discussed later in the chapter in section 5.1.

The court has also narrowed the scope of s. 2(b) protection by drawing a distinction between two types of state restriction on expressive activity: state acts that have as their purpose the restriction of expression and those that, although not designed to restrict expression, nevertheless have this effect. In *Irwin Toy* (at 974), Dickson CJ drew the distinction in this way: between, on the one hand, government action that is intended to restrict "the content of expression" either "by singling out particular meanings that are not to be conveyed" or restricting particular forms or means of expression that are "tied to content," and, on the other hand, government action that is intended "to control only the physical consequences of certain human activity, regardless of the meaning being conveyed." The significance of the purpose/effect distinction, which roughly parallels the distinction in American jurisprudence between content restrictions and time, place, and manner restrictions, is that a government act that is intended to limit expression, and in particular the expression of certain messages, will be found to violate s. 2(b) automatically, while a government act that simply has the effect of limiting expression will be found to violate s. 2(b) only if the person challenging the state act can show that the restricted expression advances one or more of the values that underlie the commitment to freedom of expression. Specifically, the claimant must show that the restricted expression contributes to the realization of truth, participation in social and political decision-making, and diversity in the forms of individual self-fulfilment and human flourishing (*Irwin Toy* 1989, 976). Yet it is unclear why an act that the court has already decided is expressive – conveys meaning – would not, at least in some minimal way, advance individual self-realization.

Because the court has defined expression broadly to include all acts intended to convey a message, any act is potentially an act of expression. This also means that any law is potentially a restriction on expression – on how a particular individual has chosen to express her/himself. Understandably, the courts are reluctant to require substantial justification for a law, such as a parking restriction, that would not ordinarily be seen as impeding expressive freedom. In these cases, the individual speaker will often have other ways to communicate her/his message that are no less effective.

Perhaps the best way to make sense of the *effect* rule is to see it as establishing (albeit indirectly) a lower or variable standard of justification for time, place, and manner restrictions than the ordinary s. 1 standard. These restrictions are treated differently, not because the restricted expression is, or might be, less valuable (less directly connected to the values underlying the freedom) but because the impact of such a restriction on freedom of expression interests will depend on whether a speaker can communicate her/his message as, or almost as, effectively in another way or another place

The Supreme Court of Canada has held that the category of expressive acts (acts intended to carry a message) protected under s. 2(b) includes advertising, picketing, hate promotion, soliciting for the purposes of prostitution, and pornography. The court has said that protection is given to expression "irrespective of the particular meaning or message sought to be conveyed" (*Keegstra* 1990, 729) because "in a free, pluralistic and democratic society we prize a diversity of ideas and opinions for their inherent value both to the community and to the individual" (*Irwin Toy* 1989, 968).

When determining whether a limit on expression under s.2(b) is justified under s. 1, the courts apply the multi-part *Oakes* test.

While the court has defined the scope of s. 2(b) broadly so that it protects all non-violent forms of expression, when it assesses limits on the freedom under s. 1, it distinguishes between core and marginal forms of expression. The court recognizes that a broad and inclusive definition of the scope of the right means that there may be a significant variation in the *value* of different instances of protected expression. Political expression, for example, is considered by the court to be core expression that can be restricted only for the most substantial and compelling reasons. In contrast, obscenity, commercial advertising, and hate speech are regarded as marginal forms of expression because they are less directly connected to the values underlying the freedom. As a consequence, they may be restricted for less substantial reasons.

The courts have been willing, in certain circumstances, to defer to legislature's judgment about the need for a restriction on expression. There are two different ways in which a court may defer to the legislature's judgment. The first involves deference to findings of fact by the legislature. The court may decide to lower the standard of proof that the legislature must meet when establishing the factual basis for the justification of a restriction. The second form of judicial deference relates to the legislature's accommodation of competing values or interests. If the legislature has made an apparently reasonable judgment that concerns about the manipulation of children (or some other interest) justify the restriction of certain forms of expression, the court should not simply substitute its own judgment for that of the legislature.

In *Irwin Toy,*1989, the majority said that the court should show deference to the legislature's judgment about the need for a particular restriction on a right such as freedom of expression, "[w]here the legislature mediates between the competing claims of different groups in the community" (*Irwin Toy* 1989, 990). The court should not simply "second-guess" the legislature's judgment about where to draw the line between competing claims. The majority also thought that when determining whether the restriction satisfied the minimal impairment requirement, the court should not "take a restrictive approach to social science evidence and require legislatures to choose the least ambitious means to protect vulnerable groups" (*Irwin Toy* at 993). Underlying the court's call for deference is, first, a concern that the *Charter* "not simply become an instrument of better situated individuals to roll back legislation which has as its object the improvement of the condition of less advantaged persons" and second a belief that the court should be slow to displace the compromises struck by democratic institutions (*Irwin Toy* at 993).

2.1 RWDSU v. Dolphin Delivery Ltd., 1986 CanLII 5 (SCC), [1986] 2 SCR 573

RWDSU v. Dolphin Delivery Ltd., 1986 CanLII 5 (SCC), **[1986] 2 SCR 573**

The judgment of Dickson C.J. and Estey, McIntyre, Chouinard and Le Dain JJ. was delivered by

MCINTYRE J.

1. This appeal raises the question of whether secondary picketing by members of a trade union in a labour dispute is a protected activity under s. 2(b) of the

Canadian Charter of Rights and Freedoms and, accordingly, not the proper subject of an injunction to restrain it. In reaching the answer, consideration must be given to the

application of the Charter to the common law and as well to its application in private litigation.

…

Freedom of Expression

…

20. On the basis of the findings of fact that I have referred to above, it is evident that the purpose of the picketing in this case was to induce a breach of contract between the respondent and Supercourier and thus to exert economic pressure to force it to cease doing business with Supercourier. It is equally evident that, if successful, the picketing would have done serious injury to the respondent. There is nothing remarkable about this, however, because all picketing is designed to bring economic pressure on the person picketed and to cause economic loss for so long as the object of the picketing remains unfulfilled. There is, as I have earlier said, always some element of expression in picketing. The union is making a statement to the general public that it is involved in a dispute, that it is seeking to impose its will on the object of the picketing, and that it solicits the assistance of the public in honouring the picket line. Action on the part of the picketers will, of course, always accompany the expression, but not every action on the part of the picketers will be such as to alter the nature of the whole transaction and remove it from *Charter* protection for freedom of expression. That freedom, of course, would not extend to protect threats of violence or acts of violence. It would not protect the destruction of property, or assaults, or other clearly unlawful conduct. We need not, however, be concerned with such matters here because the picketing would have been peaceful. I am therefore of the view that the picketing sought to be restrained would have involved the exercise of the right of freedom of expression.

Section 1 of the *Charter*

…

22. The question then is: Can an injunction based on the common law tort of inducing a breach of contract, which has the effect of limiting the *Charter* right to freedom of expression, be sustained as a reasonable limit imposed by law in the peculiar facts of this case. …

…

23. From the evidence, it may well be said that the concern of the respondent is pressing and substantial. It will suffer economically in the absence of an injunction to restrain picketing. On the other hand, the injunction has imposed a limitation upon a *Charter* freedom. A balance between the two competing concerns must be found. It may be argued that the concern of the respondent regarding economic loss would not be sufficient to constitute a reasonable limitation on the right of freedom of expression, but there is another basis upon which the respondent's position may be supported. This case involves secondary picketing--picketing of a third party not concerned in the dispute which underlies the picketing. The basis of our system of collective bargaining is the proposition that the parties themselves should, wherever possible, work out their own agreement.

...

The freedom to agree logically entails the right to disagree, to fail to reach an acceptable compromise. Most of the time good faith negotiation does produce a settlement at the bargaining table, often without a great deal of trouble. But often enough it does not; and of course it is the failures which generate the visible tumult and shouting. And at that point the collective bargaining system diverges sharply from other components in the market economy.

When the parties do exercise the right to disagree, picketing and other forms of industrial conflict are likely to follow. The social cost is great, man-hours and wages are lost, production and services will be disrupted, and general tensions within the community may be heightened. Such industrial conflict may be tolerated by society but only as an inevitable corollary to the collective bargaining process. It is therefore necessary in the general social interest that picketing be regulated and sometimes limited. It is reasonable to restrain picketing so that the conflict will not escalate beyond the actual parties. While picketing is, no doubt, a legislative weapon to be employed in a labour dispute by the employees against their employer, it should not be permitted to harm others. …

…

24. [T]he requirement of proportionality is also met, particularly when it is recalled that this is an interim injunction effective only until trial when the issues may be more fully canvassed on fuller evidence. It is my opinion then that a limitation on secondary picketing against a third party, that is, a non-ally, would be a reasonable limit in the facts of this case. I would therefore conclude that the injunction is "a reasonable limit prescribed by law which can be demonstrably justified in a free and democratic society".

[McIntyre J. also held that the Charter did not apply (at least directly) in a case such as this which involves the enforcement of a common law rule in a dispute between private parties].

2.2 *R.W.D.S.U., Local 558 v. Pepsi-Cola Canada Beverages (West) Ltd.*

***R.W.D.S.U., Local 558 v. Pepsi-Cola Canada Beverages (West) Ltd.*, [2002] 1 SCR 156, 2002 SCC 8**

The judgment of the Court was delivered by

1 THE CHIEF JUSTICE AND LEBEL J. – This case raises the issue of when if ever secondary picketing – typically defined as picketing in support of a union which occurs at a location other than the premises of that union's employer – may be legally conducted. The respondents (the "Union") were on strike against Pepsi-Cola Canada Beverages (West) Ltd. ("Pepsi-Cola") in Saskatchewan. The strike escalated and the Union picketed some of Pepsi-Cola's retail outlets, placed placards outside a hotel where substitute workers were staying, and demonstrated outside the homes of Pepsi-Cola's management personnel. The issue is whether such conduct is unlawful and can be enjoined.

…

3 For the reasons that follow, we conclude that secondary picketing is generally lawful unless it involves tortious or criminal conduct …

…

30 The above discussion illustrates the difficulty in defining picketing in a detailed manner. Picketing represents a continuum of expressive activity. In the labour context it runs the gamut from workers walking peacefully back and forth on a sidewalk carrying placards and handing out leaflets to passers-by, to rowdy crowds shaking fists, shouting slogans, and blocking the entrances of buildings. Beyond the traditional labour context, picketing extends to consumer boycotts and political demonstrations (see *Daishowa Inc. v. Friends of the Lubicon* (1998), 1998 CanLII 14828 (ON SC), 39 O.R. (3d) 620 (Ont. Ct. (Gen. Div.)). A picket line may signal labour strife. But it may equally serve as a physical demonstration of individual or group dissatisfaction on an issue.

31 For the purposes of this appeal, we find it unnecessary to define picketing in a detailed and exhaustive manner. We proceed rather on the basis that picketing may involve a broad range of activities, from the "traditional" picket line where people walk back and forth carrying placards, to the dissemination of information through other means.

32 Picketing, however defined, always involves expressive action. As such, it engages one of the highest constitutional values: freedom of expression, enshrined in s. 2(b) of the *Charter*. This Court's jurisprudence establishes that both primary and secondary picketing are forms of expression, even when associated with tortious acts: *Dolphin Delivery*, *supra*. … Free speech protects human dignity and the right to think and reflect freely on one's circumstances and condition. It allows a person to speak not only for the sake of expression itself, but also to advocate change, attempting to persuade others in the hope of improving one's life and perhaps the wider social, political, and economic environment.

33 Free expression is particularly critical in the labour context. As Cory J. observed for the Court in *U.F.C.W., Local 1518 v. KMart Canada Ltd.*, 1999 CanLII 650 (SCC), [1999] 2 SCR 1083, "[f]or employees, freedom of expression becomes not only an important but an essential component of labour relations" (para. 25). The values associated with free expression relate directly to one's work. A person's employment, and the conditions of their workplace, inform one's identity, emotional health, and sense of self-worth: *Reference Re Public Service Employee Relations Act (Alta.)*, 1987 CanLII 88 (SCC), [1987] 1 SCR 313; *KMart*, *supra*.

…

67 While freedom of expression is not absolute, and while care must be taken in the labour context to guard against extending the more severe effects of picket lines beyond the employer, if we are to be true to the values expressed in the *Charter* our statement of the common law must start with the proposition that free expression is protected unless its curtailment is justified. This militates against a rule that absolutely precludes secondary picketing, whether harmful or benign, disruptive or peaceful. The preferred methodology is to begin with the proposition that secondary picketing is *prima facie* legal, and then impose such limitations as may be justified in the interests of protecting third parties.

…

72 Protection from economic harm is an important value capable of justifying limitations on freedom of expression. Yet to accord this value absolute or pre-eminent importance over all other values, including free expression, is to err. The law has never recognized a sweeping right to protection from economic harm. …

(d) Adequate Flexibility

73 … Courts may intervene and preserve the interests of third parties or the struck employer where picketing activity crosses the line and becomes tortious or criminal in nature. It is in this sense that third parties will be protected from "undue" harm in a labour dispute. Torts such as trespass, intimidation, nuisance and inducing breach of contract will protect property interests and ensure free access to private premises. Rights arising out of contracts or business relationships will also receive basic protection. Torts, themselves the creatures of common law, may grow and be adapted to current needs.

74 In summary, a wrongful action approach to picketing allows for a proper balance between traditional common law rights and *Charter* values, and falls in line with the core principles of the collective bargaining system put in place in this country in the years following the Second World War.

…

76 The wrongful action approach … focuses on the character and effects of the activity, as opposed to its location. … By focussing on the character and effect of expression rather than its location, the wrongful action approach offers a rational test for limiting picketing, not an arbitrary one.

77 Picketing which breaches the criminal law or one of the specific torts like trespass, nuisance, intimidation, defamation or misrepresentation, will be impermissible, regardless of where it occurs.

(f) Avoidance of the Primary-Secondary Picketing Distinction

78 It follows from this analysis that the difficult and potentially arbitrary distinction between primary and secondary picketing is effectively abandoned on a wrongful action approach to picketing. Secondary picketing has been, as we have seen, location defined. Indeed, many of the difficulties the courts have encountered over the years in defining secondary picketing flow from how to determine the relevant location. A conduct approach based on tortious and criminal acts does not depend on location. All picketing is allowed, whether "primary" or "secondary", unless it involves tortious or criminal conduct.

…

(g) Avoidance of Labour/Non-labour Distinctions

80 The wrongful action approach treats labour and non-labour expression in a consistent manner. … Along with the diverse range of activities and objectives that may attach to the act of picketing, there is also a wide array of groups and organizations that rely on placards and pamphlets to inform and persuade the public on various issues. It is thus clear that activities common to picketing do not lie within the exclusive domain of the striking worker. … We can find no persuasive reason to deprive union members of an expressive right at common law that is available to all members of the public.

…

(h) Balance of Power

…

85 Judging the appropriate balance between employers and unions is a delicate and essentially political matter. Where the balance is struck may vary with the labour climates from region to region. This is the sort of question better dealt with by legislatures than courts. Labour relations is a complex and changing field, and courts should be reluctant to put forward simplistic dictums. Where specialized bodies have been created by legislation, be it labour boards or arbitrators, they are generally entrusted to reach appropriate decisions based on the relevant statute and the specific facts of a given situation. … If the Saskatchewan Legislature had enacted a comprehensive scheme to govern labour disputes, then it might be argued that allowing secondary picketing would disturb a carefully crafted balance of power. In the absence of a legislative scheme, however, we find it difficult to say that determining illegal picketing on the basis of tortious or criminal conduct … will unduly undermine the power of employers *vis-à-vis* employees.

86 We emphasize that the validity of legislation is not at stake in this appeal. It is the absence of such legislation that requires us to look to the common law to resolve the issue of the legality of secondary picketing. Nothing in these reasons forestalls legislative action in this area of the law. Within the broad parameters of the *Charter*, legislatures remain free to craft their own statutory provisions for the governance of labour disputes, and the appropriate limits of secondary picketing.

…

(j) The "Signalling" Effect

93 A [related] argument is that secondary picketing is *per se* unjustified because it has the effect of "signalling" that people must not do business with neutral third parties. Expression through a picket line may "signal" that the line is a barrier and hence acquire coercive impact. …

94 This signalling effect, it is argued, goes beyond expression and becomes coercion. Many people, as a matter of principle or habit, will not cross a picket line. …. It is argued that while we are willing to allow that kind of pressure to be applied against the primary employer, we are not willing to allow it to be applied against a neutral third party.

95 The first point to note is that the signalling effect should be carefully assessed. A number of judgments have taken the signalling effect for granted. Doubtless there is a kernel of truth in this concept. Some people will see a picket line and automatically refuse to cross it, out of respect, sympathy, or the fear of an implied confrontation. It should be remembered, however, that this concept arose originally to describe the response to picketing among other unionized employees … Moreover, the so-called signalling effect is probably more likely to operate in specific contexts. It may vary sharply, depending on whether the dispute happens in a small tightly knit, and highly unionized community, or at a strongly organized construction site used by several employers (see *Domtar Inc.*, [2000] O.L.R.D. No. 3761 (QL), at para. 7). In a large urban centre, where the population is diverse, and where the per capita unionization rate is low, the signalling effect may be exaggerated….

96 A second observation is that the signalling argument implicitly suggests that to the extent that picketing has a coercive signal effect, it is not expressive and hence not worthy of protection. We find such a suggestion problematic. It is difficult to see how a signal can be other than expressive; by definition, a signal is meant to convey information to others. Indeed, the underlying concern of *KMart* is that the signal will express too much, that it will be too effective. It seems better to us to admit that signalling is expression, the limitations of which must be justified. At this point, however, signalling ceases to suggest a special rule; rather, the question is when expressive signalling can be justifiably limited.

97 … [I] is difficult to explain why expression in the labour context should be treated as fundamentally less important than expression in other contexts. It is far from clear that union speech is more likely to elicit an irrational or reflexive response than, for example, speech by a political organization. If we say that the signalling effect justifies a special prohibition in the labour context, does it not follow that signalling in other contexts may also justify blanket prohibitions? Moreover, it seems clear that freedom of expression is not confined to "rational" speech. Irrationality may support according less protection to particular kinds of speech. But it does not justify denying all protection as a matter of principle.

98 … A distinction is sometimes drawn between secondary picketing whose aim is to disrupt the production of the secondary employer (either by dissuading the secondary employer's employees from working or by persuading consumers not to deal at all with the secondary employer until it discontinues its commercial relationship with the primary employer) and secondary picketing whose aim is merely to persuade consumers not to purchase from the secondary employer the products of the primary employer. (As an example of the latter form of labour activity, workers striking against a tobacco manufacturer might picket convenience stores in an effort to persuade customers to substitute another manufacturer's brand of cigarettes for the brand manufactured by the primary employer.) The danger of a coercive picket line that depends on a signalling effect is clearly much greater in the case of union activity whose aim is to harm the secondary employer. The danger of coercion and signalling is much less in the case of secondary picketing aimed merely at persuading consumers not to purchase the product of the primary employer.

…

103 At this point we may usefully review what is caught by the rule that all picketing is legal absent tortious or criminal conduct. The answer is, a great deal. Picketing which breaches the criminal law or one of the specific torts like trespass, nuisance, intimidation, defamation or misrepresentation will be impermissible, regardless of where it occurs. Specific torts known to the law will catch most of the situations which are liable to take place in a labour dispute. In particular, the breadth of the torts of nuisance and defamation should permit control of most coercive picketing. Known torts will also protect property interests. They will not allow for intimidation, they will protect free access to private premises and thereby protect the right to use one's property. Finally, rights arising out of contracts or business relationships also receive basic protection through the tort of inducing breach of contract.

…

107 … [T]o the extent that it may prove necessary to supplement the wrongful action approach, the courts and legislatures may do so. Doubtless issues will arise around the elaboration of the relevant torts and the tailoring of remedies to focus narrowly on the illegal activity at issue. Doubtless too, circumstances will present themselves where it will become difficult to separate the expressive from the tortious activity. In dealing with these issues, the courts may be expected to develop the common law sensitively, with a view to maintaining an appropriate balance between the need to preserve third-party interests and prevent labour strife from spreading unduly, and the need to respect the *Charter* rights of picketers. The legislatures too may play a role. Clarification of the status of picketing at common law should not be viewed as a restriction on legislative intervention. Rather it should be seen merely as a tool to assist the courts where federal and provincial laws remain silent. … Legislatures must respect the *Charter* value of free expression and be prepared to justify limiting it. But subject to this broad constraint, they remain free to develop their own policies governing secondary picketing and to substitute a different balance than the one struck in this case.

116 [T]he conduct of the Union [in this case] provided no basis for inferring any other tort, much less crime. It was peaceful informational picketing. It was aimed at supporting the strike and harming the business of Pepsi-Cola by discouraging people from trading or buying Pepsi-Cola's products. It did not amount to the tort of intimidation, which has to do with the intentional infliction of loss by unlawful means. Nor did the pickets support the tort of interference with contractual relations. First, Pepsi-Cola did not establish the required contractual basis under which the outlets allegedly acquired its product for resale. Second, the evidence as to picketing was, in the view of the Court of Appeal, "so ambiguous as to have made it impossible to conclude that the picketers . . . induced the breach of any contract or hindered its performance" (p. 242).

117 With regard to the demonstration outside the homes of Pepsi-Cola's management personnel, we agree with the Court of Appeal that the injunction was well-founded, since the conduct was tortious. …

2.3 *Irwin Toy Ltd. v. Quebec (Attorney General)*

***Irwin Toy Ltd. v. Quebec (Attorney General)*,** 1989 CanLII 87 (SCC), **[1989] 1 SCR 927**

THE CHIEF JUSTICE AND LAMER AND WILSON JJ. -- This appeal raises questions concerning the constitutionality, under ss. 91 and 92 of the *Constitution Act, 1867*, and ss. 2(*b*) and 7 of the *Canadian Charter of Rights and Freedoms*, of ss. 248 and 249 of the Quebec *Consumer Protection Act*, R.S.Q., c. P-40.1, respecting the prohibition of television advertising directed at persons under thirteen years of age.

…

I - The Relevant Legislative and Constitutional Provisions

The relevant provisions of the Consumer Protection Act are ss. 248, 249 and 252, which provide:

> **248.** Subject to what is provided in the regulations, no person may make use of commercial advertising directed at persons under thirteen years of age.
>
> **249.** To determine whether or not an advertisement is directed at persons under thirteen years of age, account must be taken of the context of its presentation, and in particular of
>
> (a)the nature and intended purpose of the goods advertised;
>
> (b)the manner of presenting such advertisement;
>
> (c)the time and place it is shown.

…

[The regulations establish a number of limited exemptions from the ban, extending to an ad in a children's magazine, provided the ad, among other things does not exaggerate the quality and character of the product and does not directly "incite the child to purchase the product or urge another to do so].

Sections 3 and 9.1 of the Quebec Charter of Human Rights and Freedoms provide:

> **3.** Every person is the possessor of the fundamental freedoms, including freedom of conscience, freedom of religion, freedom of opinion, freedom of expression, freedom of peaceful assembly and freedom of association.
>
> **9.1.** In exercising his fundamental freedoms and rights, a person shall maintain a proper regard for democratic values, public order and the general well-being of the citizens of Québec.
>
> In this respect, the scope of the freedoms and rights, and limits to their exercise, may be fixed by law.

…

VI -Whether ss. 248 and 249 Limits Freedom of Expression as Guaranteed by the Canadian and Quebec Charters

B. *The First Step: Was the Plaintiff's Activity Within the Sphere of Conduct Protected by Freedom of Expression?*

Does advertising aimed at children fall within the scope of freedom of expression? … Clearly, not all activity is protected by freedom of expression, and governmental action restricting this form of advertising only limits the guarantee if the activity in issue was protected in the first place.

…

"Expression" has both a content and a form, and the two can be inextricably connected. Activity is expressive if it attempts to convey meaning. That meaning is its content. Freedom of expression was entrenched in our Constitution and is guaranteed in the Quebec *Charter* so as to ensure that everyone can manifest their thoughts, opinions, beliefs, indeed all expressions of the heart and mind, however unpopular, distasteful or contrary to the mainstream. Such protection is, in the words of both the Canadian and Quebec Charters, "fundamental" because in a free, pluralistic and democratic society we prize a diversity of ideas and opinions for their inherent value both to the community and to the individual. …

We cannot, then, exclude human activity from the scope of guaranteed free expression on the basis of the content or meaning being conveyed. Indeed, if the activity conveys or attempts to convey a meaning, it has expressive content and *prima facie* falls within the scope of the guarantee. Of course, while most human activity combines expressive and physical elements, some human activity is purely physical and does not convey or attempt to convey meaning. It might be difficult to characterize certain day-to-day tasks, like parking a car, as having expressive content. To bring such activity within the protected sphere, the plaintiff would have to show that it was performed to convey a meaning. For example, an unmarried person might, as part of a public protest, park in a zone reserved for spouses of government employees in order to express dissatisfaction or outrage at the chosen method of allocating a limited resource. If that person could demonstrate that his activity did in fact have expressive content, he would, at this stage, be within the protected sphere and the s. 2(*b*) challenge would proceed.

The content of expression can be conveyed through an infinite variety of forms of expression: for example, the written or spoken word, the arts, and even physical gestures or acts. While the guarantee of free expression protects all content of expression, certainly violence as a form of expression receives no such protection. It is not necessary here to delineate precisely when and on what basis a form of expression chosen to convey a meaning falls outside the sphere of the guarantee. But it is clear, for example, that a murderer or rapist cannot invoke freedom of expression in justification of the form of expression he has chosen.

…

Thus, the first question remains: Does the advertising aimed at children fall within the scope of freedom of expression? Surely it aims to convey a meaning, and cannot be excluded as having no expressive content. Nor is there any basis for excluding the form of expression chosen from the sphere of protected activity. As we stated in *Ford* [*v. Quebec*, 1988 CanLII 19 (SCC), [1988] 2 SCR 712] at pp. 766-67:

> Given the earlier pronouncements of this Court to the effect that the rights and freedoms guaranteed in the Canadian Charter should be given a large and liberal interpretation, there is no sound basis on which commercial expression can be excluded from the protection of s. 2(b) of the Charter.

Consequently, we must proceed to the second step of the inquiry and ask whether the purpose or effect of the government action in question was to restrict freedom of expression.

C. *The Second Step: Was the Purpose or Effect of the Government Action to Restrict Freedom of Expression?*

Having found that the plaintiff's activity does fall within the scope of guaranteed free expression, it must next be determined whether the purpose or effect of the impugned governmental action was to control attempts to convey meaning through that activity.

…

Purpose

…

If the government's purpose is to restrict the content of expression by singling out particular meanings that are not to be conveyed, it necessarily limits the guarantee of free expression. If the government's purpose is to restrict a form of expression in order to control access by others to the meaning being conveyed or to control the ability of the one conveying the meaning to do so, it also limits the guarantee. On the other hand, where the government aims to control only the physical consequences of certain human activity, regardless of the meaning being conveyed, its purpose is not to control expression. Archibald Cox has described the distinction as follows (*Freedom of Expression* (1981), at pp. 59-60):

> The bold line ... between restrictions upon publication and regulation of the time, place or manner of expression tied to content, on the one hand, and regulation of time, place, or manner of expression regardless of content, on the other hand, reflects the difference between the state's usually impermissible effort to suppress "harmful" information, ideas, or emotions and the state's often justifiable desire to secure other interests against interference from the noise and the physical intrusions that accompany speech, regardless of the information, ideas, or emotions expressed.

Thus, for example, a rule against handing out pamphlets is a restriction on a manner of expression and is "tied to content", even if that restriction purports to control litter. The rule aims to control access by others to a meaning being conveyed as well as to control the ability of the pamphleteer to convey a meaning. To restrict this form of expression, handing out pamphlets, entails restricting its content. By contrast, a rule against littering is not a restriction "tied to content". It aims to control the physical consequences of certain conduct regardless of whether that conduct attempts to convey meaning. To restrict littering as a "manner of expression" need not lead inexorably to restricting a content. Of course, rules can be framed to appear neutral as to content even if their true purpose is to control attempts to convey a meaning. For example, in *Saumur v. City of Quebec*, 1953 CanLII 3 (SCC), [1953] 2 SCR 299, a municipal by-law forbidding distribution of pamphlets without prior authorization from the Chief of Police was a colourable attempt to restrict expression.

…

[I]f the government has aimed to control attempts to convey a meaning either by directly restricting the content of expression or by restricting a form of expression tied to content, its purpose trenches upon the guarantee. Where, on the other hand, it aims only to control the physical consequences of particular conduct, its purpose does not trench upon the guarantee. In determining whether the government's purpose aims simply at harmful physical consequences, the question becomes: does the mischief consist in the meaning of the activity or the purported influence that meaning has on the behaviour of others, or does it consist, rather, only in the direct physical result of the activity.

b. Effects

Even if the government's purpose was not to control or restrict attempts to convey a meaning, the Court must still decide whether the effect of the government action was to restrict the plaintiff's free expression. Here, the burden is on the plaintiff to demonstrate that such an effect occurred. In order so to demonstrate, a plaintiff must state her claim with reference to the principles and values underlying the freedom … [which] … can be summarized as follows: (1) seeking and attaining the truth is an inherently good activity; (2) participation in social and political decision-making is to be fostered and encouraged; and (3) the diversity in forms of individual self-fulfillment and human flourishing ought to be cultivated in an essentially tolerant, indeed welcoming, environment not only for the sake of those who convey a meaning, but also for the sake of those to whom it is conveyed. In showing that the effect of the government's action was to restrict her free expression, a plaintiff must demonstrate that her activity promotes at least one of these principles. It is not enough that shouting, for example, has an expressive element. If the plaintiff challenges the effect of government action to control noise, presuming that action to have a purpose neutral as to expression, she must show that her aim was to convey a meaning reflective of the principles underlying freedom of expression. The precise and complete articulation of what kinds of activity promote these principles is, of course, a matter for judicial appreciation to be developed on a case by case basis. But the plaintiff must at least identify the meaning being conveyed and how it relates to the pursuit of truth, participation in the community, or individual self-fulfillment and human flourishing.

c. Sections 248 and 249

There is no question but that the purpose of ss. 248 and 249 of the *Consumer Protection Act* was to restrict both a particular range of content and certain forms of expression in the name of protecting children. Section 248 prohibits, subject to regulation, attempts to communicate a commercial message to persons under thirteen years of age. Section 249 identifies factors to be considered in deciding whether the commercial message in fact has that prohibited content. …

[T]he regulations in question do more than just restrict the manner in which a particular contentmust be expressed. They also restrict content directly. …

Furthermore, it is clear from the substantial body of material submitted by the Attorney General of Quebec … that the purported mischief at which the Act and regulations were directed was the harm caused by the message itself. In combination, therefore, the Act and the regulations prohibit particular content of expression. Such a prohibition can only be justified if it meets the test under s. 1 of the Canadian *Charter* and s. 9.1 of the Quebec *Charter*.

D. *Summary and Conclusion*

When faced with an alleged violation of the guarantee of freedom of expression, the first step in the analysis is to determine whether the plaintiff's activity falls within the sphere of conduct protected by the guarantee. Activity which (1) does not convey or attempt to convey a meaning, and thus has no content of expression or (2) which conveys a meaning but through a violent form of expression, is not within the protected sphere of conduct. If the activity falls within the protected sphere of conduct, the second step in the analysis is to determine whether the purpose or effect of the government action in issue was to restrict freedom of expression. If the government has aimed to control attempts to convey a meaning either by directly restricting the content of expression or by restricting a form of expression tied to content, its purpose trenches upon the guarantee. Where, on the other hand, it aims only to control the physical consequences of particular conduct, its purpose does not trench upon the guarantee. In determining whether the government's purpose aims simply at harmful physical consequences, the question becomes: does the mischief consist in the meaning of the activity or the purported influence that meaning has on the behaviour of others, or does it consist, rather, only in the direct physical result of the activity. If the government's purpose was not to restrict free expression, the plaintiff can still claim that the effect of the government's action was to restrict her expression. To make this claim, the plaintiff must at least identify the meaning being conveyed and how it relates to the pursuit of truth, participation in the community, or individual self-fulfillment and human flourishing.

In the instant case, the plaintiff's activity is not excluded from the sphere of conduct protected by freedom of expression. The government's purpose in enacting ss. 248 and 249 of the *Consumer Protection Act* and in promulgating ss. 87 to 91 of the *Regulation respecting the application of the Consumer Protection Act* was to prohibit particular content of expression in the name of protecting children. These provisions therefore constitute limitations to s. 2(*b*) of the Canadian *Charter* and s. 3 of the Quebec *Charter*. …

VII - Whether the Limit on Freedom of Expression Imposed by ss. 248 and 249 Is Justified Under s. 9.1 of the Quebec *Charter* or s. 1 of the Canadian *Charter*

[The 3 judges found that the law was sufficiently clear to meet the prescribed by law requirement: "Absolute precision in the law exists rarely, if at all. The question is whether the legislature has provided an intelligible standard according to which the judiciary must do its work. The task of interpreting how that standard applies in particular instances might always be characterized as having a discretionary element, because the standard can never specify all the instances in which it applies. On the other hand, where there is no intelligible standard and where the legislature has given a plenary discretion to do whatever seems best in a wide set of circumstances, there is no 'limit prescribed by law'"].

…

D. *Whether the s. 1 and s. 9.1 Materials Justify Banning Commercial Advertising Directed at Persons Under Thirteen Years of Age*

…

Pressing and Substantial Objective

…

In our view, the Attorney General of Quebec has demonstrated that the concern which prompted the enactment of the impugned legislation is pressing and substantial and that the purpose of the legislation is one of great importance. The concern is for the protection of a group which is particularly vulnerable to the techniques of seduction and manipulation abundant in advertising. In the words of the Attorney General of Quebec, [TRANSLATION] "Children experience most manifestly the kind of inequality and imbalance between producers and consumers which the legislature wanted to correct." The material given in evidence before this Court is indicative of a generalized concern in Western societies with the impact of media, and particularly but not solely televised advertising, on the development and perceptions of young children.

…

Broadly speaking, the concerns which have motivated both legislative and voluntary regulation in this area are the particular susceptibility of young children to media manipulation, their inability to differentiate between reality and fiction and to grasp the persuasive intention behind the message, and the secondary effects of exterior influences on the family and parental authority. Responses to the perceived problems are as varied as the agencies and governments which have promulgated them. However the consensus of concern is high.

In establishing the factual basis for this generally identified concern, the Attorney General relied heavily upon the U.S. Federal Trade Commission (FTC) Final Staff Report and Recommendation, *In the Matter of Children's Advertising*, which contains a thorough review of the scientific evidence on the subject as at 1981. … One of its principal conclusions is that young children (2-6) cannot distinguish fact from fiction or programming from advertising and are completely credulous when presented with advertising messages … The Report thus provides a sound basis on which to conclude that television advertising directed at young children is *per se* manipulative. Such advertising aims to promote products by convincing those who will always believe.

It is reasonable to extend this conclusion in two ways. First, it can be extended to advertising in other media. For example, the OECD Report, op. cit., discusses children's advertising in all media including television, although the greatest body of evidence focusses on the persuasive force of television advertising. Second, it can be extended to advertising aimed at older children (7-13). The Attorney General filed a number of studies reaching somewhat different conclusions about the age at which children generally develop the cognitive ability to recognize the persuasive nature of advertising and to evaluate its comparative worth. The studies suggest that at some point between age seven and adolescence, children become as capable as adults of understanding and responding to advertisements. The majority in the Court of Appeal interpreted this evidence narrowly and found that it only justified the objective of regulating advertising aimed at children six or younger, not the regulation of advertising aimed at children between the ages of seven and thirteen. They concluded, and we agree, that the evidence was strongest with respect to the younger age category. Opinion is more divided when children in the older age category are involved. But the legislature was not obliged to confine itself solely to protecting the most clearly vulnerable group. It was only required to exercise a reasonable judgment in specifying the vulnerable group.

…

Where the legislature mediates between the competing claims of different groups in the community, it will inevitably be called upon to draw a line marking where one set of claims legitimately begins and the other fades away without access to complete knowledge as to its precise location. If the legislature has made a reasonable assessment as to where the line is most properly drawn, especially if that assessment involves weighing conflicting scientific evidence and allocating scarce resources on this basis, it is not for the court to second guess. That would only be to substitute one estimate for another. In dealing with inherently heterogeneous groups defined in terms of age or a characteristic analogous to age, evidence showing that a clear majority of the group requires the protection which the government has identified can help to establish that the group was defined reasonably. Here, the legislature has mediated between the claims of advertisers and those seeking commercial information on the one hand, and the claims of children and parents on the other. There is sufficient evidence to warrant drawing a line at age thirteen, and we would not presume to re-draw the line.

…

The legislature reasonably concluded that advertisers should be precluded from taking advantage of children both by inciting them to make purchases and by inciting them to have their parents make purchases. Either way, the advertiser would not be able to capitalize upon children's credulity. The s. 1 and s. 9.1 materials demonstrate, on the balance of probabilities, that children up to the age of thirteen are manipulated by commercial advertising and that the objective of protecting all children in this age group is predicated on a pressing and substantial concern. We thus conclude that the Attorney General has discharged the onus under the first part of the *Oakes* test.

Means Proportional to the Ends

The second part of the s. 1 and s. 9.1 test involves balancing a number of factors to determine whether the means chosen by the government are proportional to its objective.

…

Rational Connection

There can be no doubt that a ban on advertising directed to children is rationally connected to the objective of protecting children from advertising. The government measure aims precisely at the problem identified in the s. 1 and s. 9.1 materials. It is important to note that there is no general ban on the advertising of children's products, but simply a prohibition against directing advertisements to those unaware of their persuasive intent. Commercial advertisements may clearly be directed at the true purchasers -- parents or other adults. Indeed, non-commercial educational advertising aimed at children is permitted. Simply put, advertisers are prevented from capitalizing on the inability of children either to differentiate between fact and fiction or to acknowledge and thereby resist or treat with some skepticism the persuasive intent behind the advertisement. In the present case, we are of the opinion that the evidence does establish the necessary rational connection between means and objective.

…

Minimal Impairment

…

The party seeking to uphold the limit must demonstrate on a balance of probabilities that the means chosen impair the freedom or right in question as little as possible. What will be "as little as possible" will of course vary depending on the government objective and on the means available to achieve it.

…

[In] matching means to ends and asking whether rights or freedoms are impaired as little as possible, a legislature mediating between the claims of competing groups will be forced to strike a balance without the benefit of absolute certainty concerning how that balance is best struck. Vulnerable groups will claim the need for protection by the government whereas other groups and individuals will assert that the government should not intrude. In *Edwards Books and Art Ltd.*, *supra*, Dickson C.J. expressed an important concern about the situation of vulnerable groups (at p. 779):

> In interpreting and applying the *Charter* I believe that the courts must be cautious to ensure that it does not simply become an instrument of better situated individuals to roll back legislation which has as its object the improvement of the condition of less advantaged persons.

When striking a balance between the claims of competing groups, the choice of means, like the choice of ends, frequently will require an assessment of conflicting scientific evidence and differing justified demands on scarce resources. Democratic institutions are meant to let us all share in the responsibility for these difficult choices. Thus, as courts review the results of the legislature's deliberations, particularly with respect to the protection of vulnerable groups, they must be mindful of the legislature's representative function. … (*Edwards Books and Art Ltd.* at p. 772).

In other cases, however, rather than mediating between different groups, the government is best characterized as the singular antagonist of the individual whose right has been infringed. For example, in justifying an infringement of legal rights enshrined in ss. 7 to 14 of the *Charter*, the state, on behalf of the whole community, typically will assert its responsibility for prosecuting crime whereas the individual will assert the paramountcy of principles of fundamental justice. There might not be any further competing claims among different groups. In such circumstances, and indeed whenever the government's purpose relates to maintaining the authority and impartiality of the judicial system, the courts can assess with some certainty whether the "least drastic means" for achieving the purpose have been chosen, especially given their accumulated experience in dealing with such questions … The same degree of certainty may not be achievable in cases involving the reconciliation of claims of competing individuals or groups or the distribution of scarce government resources.

…

The strongest evidence for the proposition that this ban impairs freedom of expression as little as possible comes from the FTC Report. Because the Report found that children are not equipped to identify the persuasive intent of advertising, content regulation could not address the problem. The Report concluded that the only effective means for dealing with advertising directed at children would be a ban on all such advertising because "[a]n informational remedy would not eliminate nor overcome the cognitive limitations that prevent young children from understanding advertising" (p. 36). [However, the FTC opposed the implementation of such a ban because "viewing audiences were not so sufficiently segmented". A broad ban based on either time period or audience composition would catch many audience members who were not young children and a narrower ban would still catch many non-children while also failing to catch programs frequently watched by young children.]

…

Sections 248 and 249 preserve the rationale for a ban contained in the FTC Report at the same time as overcoming the practical limitations suggested therein. The sections contemplate a larger age group than that envisaged by the FTC Report, and always allow advertising aimed at adults, thereby avoiding the difficulties identified in the Report both with a ban based on audience composition and with a ban based on the definition of "advertising directed to children". …

[The majority note that the government's application guidelines identify specific time periods when the audience of children, 2-11, is significant and specifies particular "categories of (1) products, (2) advertisements and (3) audience", which "allows for a sophisticated appraisal of when an advertisement is aimed at children."] … [T]he evidence sustains the reasonableness of the legislature's conclusion that a ban on commercial advertising directed to children was the minimal impairment of free expression consistent with the pressing and substantial goal of protecting children against manipulation through such advertising. While evidence exists that other less intrusive options reflecting more modest objectives were available to the government [such as relying on corporate self-regulation], there is evidence establishing the necessity of a ban to meet the objectives the government had reasonably set. This Court will not, in the name of minimal impairment, take a restrictive approach to social science evidence and require legislatures to choose the least ambitious means to protect vulnerable groups. …

Deleterious Effects

There is no suggestion here that the effects of the ban are so severe as to outweigh the government's pressing and substantial objective. Advertisers are always free to direct their message at parents and other adults. They are also free to participate in educational advertising. …

The final component of the proportionality test is easily satisfied. …

Conclusion

Based on the s. 1 and s. 9.1 materials, we conclude that ss. 248 and 249 constitute a reasonable limit upon freedom of expression and would accordingly uphold the legislation under s. 1 of the Canadian *Charter* and s. 9.1 of the Quebec *Charter*.

[The majority then considered and rejected the respondent's s. 7 claim].

McIntyre J (dissenting) (Beetz J. concurring):

…

Can it be said that the welfare of children is at risk because of advertising directed at them? I am not satisfied that any case has been shown that it is. There was evidence that small

children are incapable of distinguishing fact from fiction in advertising. This is hardly surprising: many adults have the same problem. Children, however, do not remain children. They grow up and, while advertising directed at children may well be a source of irritation to parents, no case has been shown here that children suffer harm. Children live in a world of fiction, imagination and make believe. Children's literature is based upon these concepts. As they mature, they make adjustments and can be expected to pass beyond the range of any ill which might be caused by advertising. In my view, no case has been made that children are at risk. Furthermore, even if I could reach another conclusion, I would be of the view that the restriction fails on the issue of proportionality. A total prohibition of advertising aimed at children below an arbitrarily fixed age makes no attempt at the achievement of proportionality.

…

2.4 Further reading

- UL Canada inc. c. Québec (Procureur général) (Quebec CA) 2003. (Upheld by SCC, 2004 SCC 82 (CanLII), [2004] 3 SCR 760): https://www.canlii.org/en/qc/qcca/doc/2003/2003canlii74827/2003canlii74827.html

- Jamie Cameron, “Resetting the Foundations: Renewing Freedom of Expression Under Section 2(b) of the Charter” 105 S.C.L.R.(2d) (2022), 120-151: https://digitalcommons.osgoode.yorku.ca/cgi/viewcontent.cgi?article=3875&context=scholarly_works
- Richard Moon, Freedom of Expression, Background Paper for the Public Order Emergency Commission, 2022 pp 4-11: https://publicorderemergencycommission.ca/files/documents/Policy-Papers/Freedom-of-Expression-Moon.pdf

2.5 Questions

1. Have the courts defined the scope of s. 2(b) too broadly? Why? Why not?
2. Is the colouring of margarine so that it resembles butter an act of expression?
3. Why does the court distinguish, in its s. 2(b) analysis, between laws that are intended to restrict expression and laws that, while not intended to restrict expression, may (at least in some cases) have the effect of doing so?
4. Does it make sense to adopt a content-neutral approach when defining the scope of s.2(b) but under s.1 to follow a “contextual” approach (determining that some forms of expression of more valuable than others) when assessing limits under s.1? Why do you think the courts have taken such an approach?
5. In *Irwin Toy* the court says it is balancing the speech rights of the company against the interests of children in not being manipulated. Is that what it does?
6. To what extent should a court take into account harm to business interests when deciding whether a limit on expression is justified? Should the court have done so in *Dolphin Delivery*?

3 Forms of expression

3.1 Commercial expression

Several arguments have been made for excluding commercial advertising from the scope of freedom of expression. The one most frequently made is that freedom of expression is valued because of its contribution to democratic government, and so its protection does not extend to commercial speech/advertising and other forms of speech that do not address political concerns. However, the Canadian courts have held that the value of the freedom also rests on its contribution to individual self-realization and the advancement of truth or knowledge and so the freedom’s protection is not confined to political speech.

The other argument against the protection of commercial speech/advertising is that freedom of expression is valued for its contribution to individual self-expression or self-realization and so does not protect advertising and other forms of corporate promotion. Because a commercial speaker will say whatever they think will most effectively sell their product, they are not engaged in self-expression. The Supreme Court of Canada, however, rejected this argument for the exclusion of commercial advertising from the scope of freedom of expression, because, in the court’s view, advertising may sometimes provide information that enables audience members “to make informed economic choices, an important aspect of individual self-fulfillment and personal autonomy” (*Ford v. Quebec,* 1988 CanLII 19 (SCC), [1988] 2 SCR 712, 767).

While the Supreme Court of Canada has said that advertising falls within the scope of s. 2(b) of the Charter, it has also said that it does not lie at the core of the freedom and that, in comparison to other forms of expression, its restriction may be easier to justify under s. 1. In *Rocket v. RCDS* (1990), for example, McLachlin J observed that the motivation behind commercial expression is “primarily economic” and that “the loss” that censorship might cause “is merely loss of profit, and not loss of opportunity to participate in the political process or the ‘marketplace of ideas,’ or to realize one’s spiritual or artistic self-fulfillment” (*Rocket v. RCDS* 1990, 247). It followed then that “restrictions on expression of this kind might be easier to justify than other infringements of s. 2(b)” (*Rocket v. RCDS,* 1990 CanLII 121 (SCC), [1990] 2 SCR 232, 247). However, McLachlin J recognized that while commercial expression may be “designed only to increase profits,” it may also play “an important role in consumer choice” (*Rocket v. RCDS* 1990, 247). The value of commercial (profit-motivated) expression then will depend on its contribution to the listener’s interests.

3.1.1 Case notes: Ford, Devine, and the “Prostitution Reference”

In *Ford v. Quebec,* 1988 CanLII 19 (SCC), [1988] 2 SCR 712, and its companion case, *Devine v. Quebec,* 1988 CanLII 20 (SCC), [1988] 2 SCR 790, the Supreme Court considered the constitutionality of a Quebec law that required the use of French on commercial signs and prohibited the use of other languages. The court found that both the requirement of French and the prohibition of other languages violated s. 2(b). However, the court went on to decide that the requirement of French was justified under s. 1, while the prohibition of other languages was not. The court defined the scope of the freedom broadly so that it includes commercial expression, because “[o]ver and above its intrinsic value as expression, commercial expression … plays a significant role in enabling individuals to make informed economic choices” (*Ford* at 767). The court also held that s. 2(b) protects both the content (the message) and the form (the medium) of expression, including the speaker’s choice of language. The court recognized “that language is not merely a means or a medium of expression; it colours the content and meaning of expression” (*Ford* at 748). Finally, the court held that the freedom is violated when an individual is prevented from communicating in the language of her/his choice, but also when she/he is compelled to communicate in another language.

At the s. 1 stage of its analysis, the court in *Ford* found that the protection and preservation of the French language in Quebec was “a serious and legitimate” policy, of sufficient importance to support a restriction on freedom of expression. The court thought that maintaining a French *visage linguistique* in Quebec was sufficiently important to justify a restriction on the individual’s freedom of expression. A *visage linguistique* that is predominantly French encourages anglophone Quebeckers and nonfrancophone immigrants to learn the majority language, and it confirms to “young and ambitious Francophones” that success can be achieved in the French language and that it is not necessary to put aside their language in order to advance in business (*Ford* at 778). While the court accepted that the requirement of French on commercial signs was rationally connected to the goal of preserving the French language, it doubted that the prohibition of other languages was rationally connected to this goal. The court had before it a wide range of studies and statistics that showed the precarious position of the French language in Canada, the result of a declining birth rate and growing non-francophone immigration. The court, however, thought that these materials did not demonstrate that the prohibition of other languages was necessary: “That specific question is simply not addressed by the materials” (*Ford* at 779). According to the court, even if the prohibition did have some impact, there were other, more effective ways to achieve this goal that were less restrictive of freedom of expression. The court concluded that compelling French on signs is justified, but that prohibiting other languages is not.

In *Reference re ss. 193 and 195.1(1)(c) of the Criminal Code (Man.)*, 1990 CanLII 105 (SCC), [1990] 1 SCR 1123 the Supreme Court of Canada held that the criminal prohibition on “communicating or attempting to communicate with any person in a public place for the purpose of engaging in prostitution or of obtaining the sexual services of a prostitute” breached s. 2(b) of the Charter but was a justified restriction under s.1. A plurality of the court in a judgment written by Dickson CJ thought that the purpose of the law was to remove solicitation from the streets “and out of public view”. In his s.1 analysis Dickson CJ found that “[p]ublic solicitation for the purposes of prostitution is closely associated with

street congestion and noise, oral harassment of non-participants and general detrimental effects on passers-by or bystanders, especially children [and that] … the eradication of the nuisance-related problems caused by street solicitation is a pressing and substantial concern." In deciding that the ban satisfied the other elements of *the Oakes* test, Dickson CJ considered "the nature of the expression". He found that "communications regarding an economic transaction of sex for money lie at, or even near, the core of the guarantee of freedom of expression."

3.1.2 Rocket v. Royal College of Dental Surgeons of Ontario

***Rocket v. Royal College of Dental Surgeons of Ontario*,** 1990 CanLII 121 (SCC), **[1990] 2 SCR 232**

The judgment of the Court was delivered by:

MCLACHLIN J. -- The issue in this case is whether restrictions on advertising imposed by the College of Dental Surgeons on its members infringe the guarantee of freedom of expression

The Background

Dr. Howard Rocket and Dr. Brian Price are dentists practising their profession in Ontario. They were prominently featured in an advertisement [for Holiday Inn] published in a number of Canadian magazines and newspapers … As a result of their participation in this advertising campaign, Dr. Rocket and Dr. Price were charged with violating ss. 37(39) and (40) of Regulation 447, R.R.O. 1980, made pursuant to the Health Disciplines Act. …

…

Section 37(39) classifies as professional misconduct all advertising not expressly permitted by the subsection. It restricts not only the means and manner of advertising, but the content, which is limited to the name, address and telephone number (and on business cards, the office hours) of the dentist. Section 37(40) is general, prohibiting any conduct which would reasonably be regarded as "disgraceful, dishonourable or unprofessional".

…

Analysis

I. *The Regulation of Professional Advertising and Freedom of Expression -- General Considerations*

The first question is whether the protection conferred by s. 2(*b*) applies to commercial speech, such as advertising. The argument against applying s. 2(*b*) to commercial speech rests on the proposition that the *Charter* was not intended to protect economic interests. This argument has been rejected by this Court on the ground that advertising involves more than economics. In *Ford v. Quebec (Attorney General)*, 1988 CanLII 19 (SCC), [1988] 2 SCR 712, where the issue was the constitutionality of a provincial law restricting the language of advertising, the Court noted advertising's intrinsic value as expression, the protection afforded to the recipients of advertising as well as the advertisers, and the importance of fostering informed economic choices to individual fulfillment and autonomy. Hence in *Ford* and subsequently in *Irwin Toy Ltd. v. Quebec (Attorney General)*, 1989 CanLII 87 (SCC), [1989] 1 SCR 927, commercial advertising was held to be protected by s. 2(*b*) of the *Charter*.

Although it has been clearly held that commercial expression does not fall outside of the ambit of s. 2(*b*), the fact that expression is commercial is not necessarily without constitutional significance. Regulation of advertising may offend the guarantee of free expression in s. 2(*b*) of the *Charter*, but this does not end the inquiry. The further question of whether the infringement can be justified under s. 1 of the *Charter* must be considered. It is at this stage that the competing values -- the value of the limitation and the value of free expression – are weighed in the context of the case. Part of the context, in the case of regulation of advertising, is the fact that the expression at issue is wholly within the commercial sphere.

…

II. *Does the Regulation Offend the Guarantee of Freedom of Expression under s. 2(b) of the Charter?*

The decisions of this Court in *Ford* and *Irwin Toy* suggest the following considerations in determining if s. 2(b) has been infringed.

The first question is whether professional advertising constitutes expressive activity under s. 2(b) of the *Charter*. The test is whether it aims to convey a meaning: *Irwin Toy*. Clearly professional advertising meets this test.

The second question is whether the expressive activity limited by the Regulation is excluded from s. 2(b) because it takes a prohibited form. … Section 37(39) of the Regulation prohibits advertising which takes perfectly usual and acceptable forms. …

The third question is whether s. 37(39) of the Regulation has as its purpose the restriction of expression by singling out meanings which are not to be conveyed: *Irwin Toy*. In other words, is the purpose of the section to restrict the content of expression? The answer to this question must be affirmative. Section 37(39) prohibits not only the manner in which dentists advertise, but what information they may convey to the public by advertising. I conclude that s. 37(39) of the Regulation infringes s. 2(b) of the *Charter* by prohibiting legitimate forms of expression and by purposefully limiting the content of that

expression.

III. *Is the Regulation Justified under s. 1 of the Charter?*

…

While the Canadian approach does not apply special tests to restrictions on commercial expression, our method of analysis does permit a sensitive, case-oriented approach to the determination of their constitutionality. Placing the conflicting values in their factual and social context when performing the s. 1 analysis permits the courts to have regard to special features of the expression in question. As Wilson J. notes in *Edmonton Journal v. Alberta (Attorney General)*, 1989 CanLII 20 (SCC), [1989] 2 SCR 1326, not all expression is equally worthy of protection. Nor are all infringements of free expression equally serious.

The expression limited by this regulation is that of dentists who wish to impart information to patients or potential patients. Their motive for doing so is, in most cases, primarily economic. Conversely, their loss, if prevented from doing so, is merely loss of profit, and not loss of opportunity to participate in the political process or the "marketplace of ideas", or to realize one's spiritual or artistic self-fulfillment: see *Irwin Toy*, *supra*, at p. 976. This suggests that restrictions on expression of this kind might be easier to justify than other infringements of s. 2(*b*).

On the other hand, it cannot be denied that expression of this kind does serve an important public interest by enhancing the ability of patients to make informed choices. Furthermore, the choice of a dentist must be counted as a relatively important consumer decision. To the extent, then, that this regulation denies or restricts access of consumers to information that is necessary or relevant to their choice of dentist, the infringement of s. 2(*b*) cannot be lightly dismissed.

These two opposing factors -- that the expression is designed only to increase profit, and that the expression plays an important role in consumer choice -- will be present in most if not all cases of commercial expression. Their precise mix, however, will vary greatly, which is why I believe it is inadvisable to create a special and standardized test for restrictions on commercial expression, as has been done in the United States. In *Irwin Toy*, for example, the majority did not emphasize the consumer choice aspect, because the expression in question was advertising aimed at children, and the majority clearly felt that protection of consumer choice in children was much less important than it would be in adults. That left the relatively weak value of protecting the appellant's interest in advertising to increase profits to be pitted against the strong countervailing value of protecting children from economic exploitation.

The majority in *Irwin Toy* also identified another factor that will be present in many cases of regulation of commercial expression. They suggested that substantial latitude should be given to legislatures that act to protect a vulnerable group, or to mediate between competing groups, distinguishing this type of legislation from that in which the state appears as antagonist to the individual (such as traditional criminal law). In the case at bar, it must be recognized that the element of consumer choice is more significant than it was in *Irwin Toy*. But in another sense, there are parallels. Consumers of dental services would be highly vulnerable to unregulated advertising. As non-specialists, they would lack the ability to evaluate competing claims as to the quality of different dentists. Indeed, the practice of dentistry, like other professions, calls for so much exercise of subjective personal judgment that claims about the quality of different dentists may be inherently incapable of verification. Furthermore, the choice of a dentist is, as noted above, a relatively important one. The consuming public would thus be far more vulnerable to unregulated advertising from dental professionals than it would be to unregulated advertising from manufacturers or suppliers of many other, more standardized, goods or services. The fact that the provincial legislature here acted to protect a vulnerable group argues in favour of viewing its attempted compromise with some deference. With these considerations in mind, I now turn to the application of the s. 1 test.

B. Application of the Test

The Objective of the Regulation

…

It is difficult to overstate the importance in our society of the proper regulation of our learned professions. Indeed, it is not disputed that the provinces have a legitimate interest in regulating professional advertising. The maintenance of professionalism and the protection of the public are at the heart of such regulations.

…

I have no difficulty in concluding that it is essential to accord to professional societies the power to regulate the methods by which their members advertise, even though this may infringe the freedom of expression guaranteed to their members by s. 2(*b*) of the *Charter*. The only question is whether the regulation here in question meets the second branch of the test under s. 1 -- whether the particular limit in question is reasonable and demonstrably justified in a free and democratic society.

Whether the Particular Limit is Reasonable and Demonstrably Justified

The first question is whether s. 37(39) is rationally connected to its objective. For the reasons I have given, I think it is. The objectives of promoting professionalism and avoiding irresponsible and misleading advertising will clearly be furthered by s. 37(39).

The second question is whether the means used impair the freedom as little as possible. It is here that difficulties arise. Section 37(39) is very broadly drafted. It starts with an absolute prohibition on all advertising, going on to set out exceptions. It is easy to think of examples of expression not falling within the exceptions which should clearly be permitted. For example, it is conceded that dentists should be able to advertise their hours of operation and the languages they speak, information which would be useful to the public and present no serious danger of misleading the public or undercutting professionalism.

Such examples equally suggest that the third requirement -- that there be proportionality between the effect of the legislative measure and the objective -- is not met. The effect of s. 37(39) is clearly to prohibit expression which in no way furthers its objectives. The aims of promoting professionalism and preventing irresponsible and misleading advertising on matters not susceptible of verification do not require the exclusion of much of the speech which is prohibited by s. 37(39). In the result, the effect of the impugned provision is disproportionate to its objectives. Moreover, the value served by free expression in the case of professional advertising is not purely the enhancement of the advertiser's opportunity to profit, as was the case in *Irwin Toy*. The public has an interest in obtaining information as to dentists' office hours, the languages they speak, and other objective facts relevant to their practice -- information which s. 37(39) prohibits dentists from conveying by advertising. Useful information is restricted without justification. These considerations satisfy me that the adverse effect of infringement of s. 2(*b*) in this case outweighs the benefits conferred by the legislation.

I conclude that s. 37(39) of the Regulations cannot be justified under s. 1 of the *Charter*.

…

3.1.3 RJR-MacDonald Inc. v. Canada (Attorney General)

RJR-MacDonald Inc. v. Canada (Attorney General), 1995 CanLII 64 (SCC), **[1995] 3 SCR 199**

MCLACHLIN J. (Sopinka and Major JJ.) -- At issue in these cases is the validity of the *Tobacco Products Control Act*, S.C. 1988, c. 20 (the "Act"), a law which imposes a ban on all advertising of tobacco products in the Canadian media and requires tobacco manufacturers to print unattributed health warnings on the packages of all tobacco products.

[The requirement that tobacco manufactures include health warnings on product packaging is considered in Section 4 of this chapter, Compelled Expression.]

…

123 … I agree with my colleague, Justice La Forest, that Parliament may impose advertising bans … on tobacco products under its criminal law power.

124 The *Charter* guarantees free expression, a guarantee which has been held to extend to commercial speech such as advertising… I agree with La Forest J. that the prohibition on advertising and promotion of tobacco products constitutes a violation of the right to free expression as the Attorney General conceded. …

125 The only remaining question is whether these infringements of the right of free expression are saved under s. 1 of the *Charter*, as being reasonable and "demonstrably justified in a free and democratic society". …

1 The Test for Justification under Section 1 of the *Charter*

…

(c)*Applying the Oakes Factors -- Context, Deference to Parliament, Standard of Proof and the Trial Judge's Findings*

...

138 [W]hile I agree with La Forest J. that context, deference and a flexible and realistic standard of proof are essential aspects of the s. 1 analysis, these concepts should be used as they have been used by this Court in previous cases. They must not be attenuated to the point that they relieve the state of the burden the *Charter* imposes of demonstrating that the limits imposed on our constitutional rights and freedoms are reasonable and justifiable in a free and democratic society.

…

(d) *The Objective of the Limit on Free Expression*

...

144 … The objective of the advertising ban and trade mark usage restrictions must be to prevent people in Canada from being persuaded by advertising and promotion to use tobacco products. … [This] constitute[s an] important objective[], although the significance of the targeted decrease in consumption is reduced by the government's estimate that despite the ban, 65 percent of the Canadian magazine market will contain tobacco advertisements, given that the ban applies only to Canadian media and not to imported publications.

…

146 While the limited objective of reducing tobacco-associated health risks by reducing advertising-related consumption … is less significant than the broad objective of protecting Canadians generally from the risks associated with tobacco use, it nevertheless constitutes an objective of sufficient importance to justify overriding the right of free expression guaranteed by the *Charter*. Even a small reduction in tobacco use may work a significant benefit to the health of Canadians and justify a properly proportioned limitation of right of free expression.

(e) *Proportionality*

…

(ii) Rational Connection

153 As a first step in the proportionality analysis, the government must demonstrate that the infringements of the right of free expression worked by the law are rationally connected to the legislative goal of reducing tobacco consumption. It must show a causal connection between the infringement and the benefit sought on the basis of reason or logic. To put it another way, the government must show that the restriction on rights serves the intended purpose. …

154 The causal relationship between the infringement of rights and the benefit sought may sometimes be proved by scientific evidence showing that as a matter of repeated observation, one affects the other. Where, however, legislation is directed at changing human behaviour, as in the case of the *Tobacco Products Control Act*, the causal relationship may not be scientifically measurable. In such cases, this Court has been prepared to find a causal connection between the infringement and benefit sought on the basis of reason or logic, without insisting on direct proof of a relationship between the infringing measure and the legislative objective: *R. v. Keegstra*, 1990 CanLII 24 (SCC), [1990] 3 SCR 697, at pp. 768 and 777; *R. v. Butler*, 1992 CanLII 124 (SCC), [1992] 1 SCR 452, at p. 503. …

155 The trial judge in the cases at bar found that the government had not established a rational connection between the advertising ban and unattributed warnings and a reduction in tobacco use in the first, scientific sense. [The trial judge found] … no direct evidence of a scientific nature showing a causal link between advertising bans and decrease in tobacco consumption.

156 This leaves the question of whether there is less direct evidence that suggests as a matter of "reason" or "logic" that advertising bans and package warnings lead to a reduction in tobacco use. The evidence relied upon by La Forest J. in support of rational connection falls into this category. Without duplicating his thorough review, it may be seen as consisting largely of evidence of advertising practices as well as the assumptions and conclusions of bodies concerned with reducing the health risk associated with tobacco use.

157 The question is whether this evidence establishes that it is reasonable or logical to conclude that there is a causal link between tobacco advertising and unattributed health warnings and tobacco use. … The government argues that it would be "surprising . . . to find otherwise". Why would tobacco companies spend great sums on advertising if not to increase the consumption of tobacco, it asks?

158 To this the tobacco companies reply that their advertising is directed not at increasing the size of the total market but at obtaining a larger share of the existing market. The evidence indicates that one of the thrusts of the advertising programs of tobacco companies is securing a larger market share, but there is also evidence suggesting that advertising is used to increase the total market. … [W]hile purely informational advertising may not increase the total market, lifestyle advertising may, as a matter of common sense, be seen as having a tendency to discourage those who might otherwise cease tobacco use from doing so. … All this taken together with the admittedly inconclusive scientific evidence is sufficient to establish on a balance of probabilities a link based on reason between certain forms of advertising, warnings and tobacco consumption.

159 On the other hand, there does not appear to be any causal connection between the objective of decreasing tobacco consumption and the absolute prohibition on the use of a tobacco trade mark on articles other than tobacco products which is mandated by s. 8 of the Act. There is no causal connection based on direct evidence, nor is there, in my view, a causal connection based in logic or reason. It is hard to imagine how the presence of a tobacco logo on a cigarette lighter, for example, would increase consumption; yet, such use is banned. I find that s. 8 of the Act fails the rational connection test.

(iii) Minimal Impairment

160 As the second step in the proportionality analysis, the government must show that the measures at issue impair the right of free expression as little as reasonably possible in order to achieve the legislative objective. The impairment must be "minimal", that is, the law must be carefully tailored so that rights are impaired no more than necessary. The tailoring process seldom admits of perfection and the courts must accord some leeway to the legislator. If the law falls within a range of reasonable alternatives, the courts will not find it overbroad merely because they can conceive of an alternative which might better tailor objective to infringement…

On the other hand, if the government fails to explain why a significantly less intrusive and equally effective measure was not chosen, the law may fail.

162 … [T]he prohibition on advertising contained in s. 4 of the Act … bans all forms of advertising of Canadian tobacco products while explicitly exempting all foreign advertising of non-Canadian products which are sold in Canada. It extends to advertising which arguably produces benefits to the consumer while having little or no conceivable impact on consumption. Purely informational advertising, simple reminders of package appearance, advertising for new brands and advertising showing relative tar content of different brands -- all these are included in the ban. Smoking is a legal activity yet consumers are deprived of an important means of learning about product availability to suit their preferences and to compare brand content with an aim to reducing the risk to their health.

163 As this Court has observed before, it will be more difficult to justify a complete ban on a form of expression than a partial ban … Where, as here, no evidence is adduced to show that a partial ban would be less effective than a total ban, the justification required by s. 1 to save the violation of free speech is not established.

164 As noted in my analysis of rational connection, while one may conclude as a matter of reason and logic that lifestyle advertising is designed to increase consumption, there is no indication that purely informational or brand preference advertising would have this effect. The government had before it a variety of less intrusive measures when it enacted the total ban on advertising, including: a partial ban which would allow information and brand preference advertising; a ban on lifestyle advertising only; measures such as those in Quebec's Consumer Protection Act, R.S.Q., c. P-40.1, to prohibit advertising aimed at children and adolescents; and labelling requirements only (which Health and Welfare believed would be preferable to an advertising ban … In my view, any of these alternatives would be a reasonable impairment of the right to free expression, given the important objective and the legislative context.

165 These considerations suggest that the advertising ban imposed by s. 4 of the Act may be more intrusive of freedom of expression than is necessary to accomplish its goals. Indeed, Health and Welfare proposed less-intrusive regulation instead of a complete prohibition on advertising. Why then, did the government adopt such a broad ban? The record provides no answer to this question. The government presented no evidence in defence of the total ban, no evidence comparing its effects to less invasive bans.

166 This omission is all the more glaring in view of the fact that the government carried out at least one study of alternatives to a total ban on advertising before enacting the total ban. The government has deprived the courts of the results of that study. The Attorney General of Canada refused to disclose this document and approximately 500 others demanded at the trial by invoking s. 39 of the Canada Evidence Act, R.S.C., 1985, c. C-5, thereby circumventing an application by the tobacco companies for disclosure since the courts lack authority to review the documents for which privilege is claimed under s. 39. References to the study were blanked out of such documents as were produced: Reasons at Trial, at p. 516. In the face of this behaviour, one is hard-pressed not to infer that the results of the studies must undercut the government's claim that a less invasive ban would not have produced an equally salutary result.

167 Not only did the government present no evidence justifying its choice of a total ban, it also presented no argument before us on the point. The appellants argued that there were undisclosed alternatives to a complete ban. The Attorney General's factum offered no response. Instead, the Attorney General contented himself with the bland statement that a complete ban is justified because Parliament "had to balance competing interests" somehow. Its response to the minimal impairment argument is not evidence, but a simple assertion that Parliament has the right to set such limits as it chooses ...

…

170 … [J]ust as care must be taken not to overvalue the legislative objective beyond its actual parameters, so care must be taken not to undervalue the expression at issue. Commercial speech, while arguably less important than some forms of speech, nevertheless should not be lightly dismissed. … Tobacco consumption has not been banned in Canada. Yet the advertising ban deprives those who lawfully choose to smoke of information relating to price, quality and even health risks associated with different brands….

171 … While this Court has stated that restrictions on commercial speech may be easier to justify than other infringements, no link between the claimant's motivation and the degree of protection has been recognized. Book sellers, newspaper owners, toy sellers -- all are linked by their shareholders' desire to profit from the corporation's business activity, whether the expression sought to be protected is closely linked to the core values of freedom of expression or not. In my view, motivation to profit is irrelevant to the determination of whether the government has established that the law is reasonable or justified as an infringement of freedom of expression.

…

(iv) Proportionality Between the Effects of the Legislation and the Objective

175 Having found the requirement of minimum impairment is not satisfied for ss. 4 and 9 of the Act, it is unnecessary to proceed to the final stage of the proportionality analysis under s. 1 -- balancing the negative effects of the infringement of rights against the positive benefits associated with the legislative goal. …

2 Remedy

176 I have found ss. 4, 8 and 9 of the *Tobacco Products Control Act* constitute unjustified infringements on free expression. These provisions spearhead the scheme under the Act and cannot be severed cleanly from other provisions dealing with promotion and trade mark usage, ss. 5 and 6. I would consequently hold that ss. 4, 5, 6, 8, and 9 are inconsistent with the *Charter* and hence are of no force or effect by reason of s. 52 of the *Constitution Act, 1982*.

...

The following are the reasons delivered by

179 IACOBUCCI J. --

182 … I do not believe that the Act minimally impairs the appellants' s. 2(*b*) *Charter* rights. …

[A]lthough I concur with many of Justice McLachlin's general conclusions, I differ somewhat with her s. 1 analysis and proposed remedy and therefore prefer to express my own reasons.

…

186 Minimal impairment analysis requires this Court to consider whether the legislature turned its mind to alternative and less rights-impairing means to promote the legislative goal in question. In these appeals, I am concerned by the fact that the Attorney General of Canada chose to withhold from the factual record evidence related to the options it had considered as alternatives to the total ban it chose to put in place. … I am reluctant to permit the justification of a conceded constitutional violation because of the inability of a party to the litigation to have pursued all possible avenues to obtain the non-disclosed information. These cases are of wide public interest constitutional litigation in which the government should remain non-adversarial and make full disclosure. Without this requirement, courts will be constrained to decide the constitutionality of legislation without full information. In any event, the burden of proof at the s. 1 stage lies solely with the government.

…

188 In my opinion, the question in these appeals is not whether a partial prohibition (the lesser rights-impairing approach) would be acceptable only if there were information establishing that some forms of advertising do not stimulate consumption. On the contrary, it is the total prohibition (the full rights-impairing option) that is only constitutionally acceptable if information is provided that such a total prohibition is necessary in order for the legislation to achieve a pressing and substantial goal. When, as in the case at bar, the evidence is unclear whether a partial prohibition is as effective as a full prohibition, the *Charter* requires that the legislature enact the partial denial of the implicated *Charter* right. In the absence of the discharge of this evidentiary burden (which is to be wholly borne by the government), the least rights-impairing

option is to be preferred. Although tobacco advertising as a whole certainly affects consumption, the evidence is unclear whether all types of tobacco ads affect consumption. I believe that some attention must be paid to whether the legislature endeavoured to differentiate the harmful advertising from the benign advertising before it decided to ban all advertising or sought to identify whether, as claimed by the appellants, informational and brand-name advertising do not have the effects that the Act seeks to curb.

189 I agree with La Forest J. that a contextual approach must be taken to s. 1 analysis, and, when reduced to its essence, the impugned right in this case amounts to the ability of tobacco companies to advertise -- solely for the purposes of financial profit -- a product with known deleterious effects to public health. To this end, the amount of legislative tailoring required to sustain minimal impairment analysis would not be very significant. However, context does not eliminate the need for any tailoring at all. In this appeal, the government chose not to do any tailoring and, ultimately, this constitutes the lynch-pin of the Act's unconstitutionality. …

…

191 At this juncture, I should like to offer some indication of what sorts of measures would, in my mind, have survived *Charter* scrutiny. As I have already mentioned, it is clear that health warnings can and should be placed on the packages, but the strictures of the *Charter* necessitate that they be attributed to their author, in all likelihood Health and Welfare Canada. Regarding the advertising ban, it is clear to me that an effort could have been made to regulate tobacco advertising along the lines of alcohol advertising. Given that the tobacco companies had agreed as early as 1972 (through the *Voluntary Code*) to refrain from advertising on television and radio, these regulations would only involve advertising in the print media anyway. Alternatively, as evidenced in some of the testimony at trial, partial bans in the order of prohibitions on lifestyle advertising only and limitations on advertising aimed at adolescents could have been given more constructive attention. The main point I wish to make is that in this case we are faced with a total and absolute ban on advertising without a justifiable basis for it. Perhaps proof exists for such a ban, but in my view the record does not establish it.

192 In the end, I would allow these appeals, with costs throughout to the appellants. For the reasons set out above, ss. 4, 5, 6, 8, and 9 of the Act should be struck. However, I am of the mind, for the reasons I advanced in *Egan*, *supra*, that this, too, is the appropriate case for a suspensive declaration of invalidity of one year. I thus disagree with McLachlin J. in terms of the remedy. Immediately striking down the legislation would permit the tobacco companies the untrammelled ability to advertise until minimally impairing legislation is drafted; the suspensive veto would permit the government to design such legislation while the *status quo* remains in force. In my view, that is warranted in light of the deleterious effects of tobacco products on those who use them and on society generally.

[La Forest, L'Heureux-Dubé, Gonthier and Cory JJ. dissenting found that the infringement was justifiable under s. 1 – that protecting Canadians from the health risks associated with tobacco use, and informing them about these risks, is a pressing and substantial objective.]

[Lamer C.J. and La Forest, L'Heureux-Dubé, Gonthier, Cory and Iacobucci JJ.: held that the law was validly enacted under the criminal law power. (Sopinka and Major JJ. dissenting*).*]

3.1.4 Canada (Attorney General) v. JTI-Macdonald Corp.

***Canada (Attorney General) v. JTI-Macdonald Corp*., [2007] 2 SCR 610, 2007 SCC 30**

The judgment of the Court was delivered by

THE CHIEF JUSTICE —

I. Overview

1 These appeals concern the constitutionality of Canada's laws on tobacco advertising and promotion, under the *Tobacco Act*, S.C. 1997, c. 13, and the *Tobacco Products*

Information Regulations, SOR/2000-272 ("*TPIR*"). …

2 The case pits tobacco manufacturers against the Attorney General of Canada, who is supported by a number of provincial Attorneys General and the Canadian Cancer Society. The tobacco manufacturers, at this stage of the litigation, challenge six aspects of the legislative and regulatory scheme: (1) its effect on funded scientific publications; (2) its provisions dealing with false and erroneous promotion; (3) its provisions relating to advertising appealing to young persons; (4) its ban on lifestyle advertising; (5) its ban on sponsorship promotion; and (6) its regulatory requirement that health warning labels occupy 50 percent of tobacco packaging. [This last issue is addressed in Section E, Compelled Speech].

…

4 I conclude that properly interpreted, the legislative and regulatory provisions at issue do not unjustifiably infringe s. 2(*b*) of the *Charter* and should be upheld, for the reasons that follow.

II. Background

…

6 In 1995, this Court struck down the advertising provisions of the *Tobacco Products Control Act* (S.C. 1988, c. 20): *RJR-MacDonald Inc. v. Canada (Attorney General)*, 1995 CanLII 64 (SCC), [1995] 3 SCR 199. This Act broadly prohibited all advertising and promotion of tobacco products, subject to specific exceptions, and required affixing unattributed warning labels on tobacco product packaging. The majority of the Court in that case held that the provisions limited free expression and that the government had failed to justify the limitations under s. 1 of the *Charter*. In particular, the government, by failing to show that less intrusive measures were not available, had failed to establish that the limits met the requirement of minimal impairment developed in *R. v. Oakes*, 1986 CanLII 46 (SCC), [1986] 1 SCR 103 (McLachlin J., at paras. 163 and 165, and Iacobucci J., at para. 191). While the majority agreed that s. 1 justification on issues such as this does not require scientifically precise proof, it found that the absence of virtually any proof was fatal to the government's case. …

7 In response to the Court's decision in *RJR*, Parliament enacted the *Tobacco Act* and *Regulations* at issue on these appeals. The scheme of the new legislation, in broad terms, involved permitting information and brand-preference advertising, while forbidding lifestyle advertising and promotion, advertising appealing to young persons, and false or misleading advertising or promotion. … It represented a genuine attempt by Parliament to craft controls on advertising and promotion that would meet its objectives as well as the concerns expressed by the majority of this Court in *RJR*.

8 The government's response to the inevitable challenge to the new scheme, when it came, also reflected the Court's decision in *RJR*. The government presented detailed and copious evidence in support of its contention that where the new legislation posed limits on free expression, those limits were demonstrably justified under s. 1 of the *Charter*.

9 Parliament was assisted in its efforts to craft and justify appropriately tailored controls on tobacco advertising and promotion by increased understanding of the means by which tobacco manufacturers seek to advertise and promote their products and by new scientific insights into the nature of tobacco addiction and its consequences. … We now know that half of smokers will die of tobacco-related diseases and that the costs to

the public health system are enormous. We also know that tobacco addiction is one of the hardest addictions to conquer and that many addicts try to quit time and time again, only to relapse.

10 Moreover, the international context has changed since 1995. Governments around the world are implementing anti-tobacco measures similar to and, in some cases, more restrictive than Canada's. The *WHO Framework Convention on Tobacco Control* (2003), 2302 U.N.T.S. 229, which Canada ratified in 2004, mandates a comprehensive ban on tobacco promotion, subject to state constitutional requirements. … Domestically, governments now widely accept that protecting the public from second-hand smoke is a legitimate policy objective. …

…

IV. The Legislative and Regulatory Scheme

18 The purposes of the *Tobacco Act* are "to provide a legislative response to a national public health problem of substantial and pressing concern ..." and, more particularly, "to protect the health of Canadians in light of conclusive evidence implicating tobacco use in the incidence of numerous debilitating and fatal diseases"; "to protect young persons and others from inducements to use tobacco products and the consequent dependence on them"; " to protect the health of young persons by restricting access to tobacco products"; and "to enhance public awareness of the health hazards of using tobacco products"…

19 The *Tobacco Act* seeks to accomplish these purposes by targeting "the four Ps" of tobacco marketing: product, price, point of sale and promotion. These appeals deal only with the fourth "P" — promotion — which is regulated under Part IV of the Act. In addition to the provisions impugned in these appeals, Part IV prohibits celebrity endorsements, regulates the distribution of branded accessories and non-tobacco products, prohibits sales promotions such as rebates, prizes and free samples, and regulates the retail display of tobacco products. The government chose the current structure of the legislation after extensive public consultation and after considering a number of alternatives.

….

V. Analysis

…

37 The broad objective of the limitations on freedom of expression at issue in this case is to deal with the public health problem posed by tobacco consumption by protecting Canadians against debilitating and fatal diseases associated with tobacco consumption. More particularly, the Act seeks to enhance public awareness of the health hazards of using tobacco products and to protect the health of young people by restricting access to tobacco products: s. 4. …

…

40 Few cases have foundered on the requirement of rational connection. That, however, does not mean that this step is unimportant. The government must establish that the means it has chosen are linked to the objective. At the very least, it must be possible to argue that the means may help to bring about the objective. This was a problem in *RJR*, where the trial judge found that while the government had completely banned commercial advertising, it had not established that pure information or brand-preference advertising was connected to an increase in consumption. In the current Act, Parliament sought to avoid this difficulty by permitting information and brand-preference advertising, subject to exceptions.

…

46 Although cases are most often resolved on the issue of minimal impairment, the final inquiry into proportionality of effects is essential. It is the only place where the attainment of the objective may be weighed against the impact on the right. If rational connection and minimal impairment were to be met, and the analysis were to end there, the result might be to uphold a severe impairment on a right in the face of a less important objective.

47 As will be seen, this case, while argued mainly on the basis of minimal impairment, engages concerns relating to proportionality of effects. The potential benefits of decreasing tobacco use and discouraging young people from becoming addicted to it are high. On the other hand, a number of the deleterious effects on the right arguably fall at the low end of the spectrum of free expression. (The alleged ban on publication of scientific research is an exception.) When commercial expression is used, as alleged here, for the purposes of inducing people to engage in harmful and addictive behaviour, its value becomes tenuous.

48 Against this background, I turn more specifically to the challenged provisions of the legislative and regulatory scheme.

…

2. *False Promotion*

58 Section 20 bans "false, misleading or deceptive" promotion, as well as promotion "likely to create an erroneous impression about the characteristics, health effects or health hazards of the tobacco product or its emissions".

….

61 The s. 1 inquiry into the justification of the ban imposed by s. 20 of the Act must be set in the factual context of a long history of misleading and deceptive advertising by the tobacco industry. The creative ability of the manufacturers to send positive messages about a product widely known to be noxious is impressive. In recent years, for example, manufacturers have used labels such as "additive free" and "100% Canadian tobacco" to convey the impression that their product is wholesome and healthful. Technically, the labels may be true. But their intent and effect is to falsely lull consumers into believing, as they ask for the package behind the counter, that the product they will consume will not harm them, or at any rate will harm them less than would other tobacco products, despite evidence demonstrating that products bearing these labels are in fact no safer than other tobacco products. The wording chosen by Parliament in s. 20 and its justification must be evaluated with this context in mind. Parliament's concern was to combat misleading false inferences about product safety and to promote informed, enlightened consumer choice.

…

63 … [T]he phrase "likely to create an erroneous impression" is directed at promotion that, while not literally false, misleading or deceptive in the traditional legal sense, conveys an erroneous impression about the effects of the tobacco product, in the sense of leading consumers to infer things that are not true. It represents an attempt to cover the grey area between demonstrable falsity and invitation to false inference that tobacco manufacturers have successfully exploited in the past.

64 The industry practice of promoting tobacco consumption by inducing consumers to draw false inferences about the safety of the products is widespread. This suggests that it is viewed by the industry as effective. Parliament has responded by banning promotion that is "likely to create an erroneous impression". This constitutes a limit on free expression. The only question is whether the limit is justified under s. 1 of the Charter.

65 Parliament's objective of combating the promotion of tobacco products by half-truths and by invitation to false inference constitutes a pressing and substantial objective, capable of justifying limits on the right of free expression. Prohibiting such forms of promotion is rationally connected to Parliament's public health and consumer protection purposes.

66 The impugned phrase does not impair the right of free expression more than is necessary to achieve the objective. The words false, misleading or deceptive do not do the work assigned to the additional phrase, "likely to create an erroneous impression". Nor is it easy to find narrower words that would accomplish that task.

…

68 Finally, the impugned phrase meets the requirement of proportionality of effects. On the one hand, the objective is of great importance, nothing less than a matter of life or death for millions of people who could be affected, and the evidence shows that banning advertising by half-truths and by invitation to false inference may help reduce smoking. The reliance of tobacco manufacturers on this type of advertising attests to this. On the other hand, the expression at stake is of low value — the right to invite consumers to draw an erroneous inference as to the healthfulness of a product that, on the evidence, will almost certainly harm them. On balance, the effect of the ban is proportional.

69 I conclude that the ban on false promotion, and particularly on promotion "likely to create an erroneous impression", is justified under s. 1 of the *Charter* as a reasonable limit on free expression and that s. 20 of the *Tobacco Act* is constitutional.

3. *Advertising and Promotion Appealing to Young Persons*

70 The *Tobacco Act* uses three particular means of protecting young persons from tobacco advertising and promotion. The first consists of the placement restrictions, found in s. 22(2). The second is a ban on advertising that "could be construed on reasonable grounds to be appealing to young persons", found in s. 22(3). The third is a ban on the use of tobacco brand elements on non-tobacco products that are "associated with young persons or could be construed on reasonable grounds to be appealing to young persons": s. 27(*a*). The manufacturers challenge the second of these measures, the ban on advertising that "could be construed on reasonable grounds to be appealing to young persons": s. 22(3).

…

91 It is not disputed that Parliament's objective of preventing young people from being tempted to take up tobacco use and consequently becoming addicted is pressing and substantial. Nor is there doubt that a ban on advertising appealing to young persons is rationally connected to this goal.

…

94 … The prohibited speech is of low value. Information about tobacco products and the characteristics of brands may have some value to the consumer who is already addicted to tobacco. But it is not great. On the other hand, the beneficial effects of the ban for young persons and for society at large may be significant. … [W]that is prohibited is advertising that could be specifically appealing to young people. Moreover, the vulnerability of the young may justify measures that privilege them over adults in matters of free expression…

…

4. *Lifestyle Advertising*

96 Section 22(3) carves out from permitted information and brand-preference advertising under s. 22(2) two types of advertising: advertising that could appeal to young persons, just considered, and lifestyle advertising.

97 Section 22(4) defines lifestyle advertising as follows: "lifestyle advertising" means advertising that associates a product with, or evokes a positive or negative emotion about or image of, a way of life such as one that includes glamour, recreation, excitement, vitality, risk or daring.

…

107 How, then, is lifestyle advertising in s. 22(3) to be construed? First, the scheme of s. 22 as a whole must be considered. We start with the fact that s. 22(2) permits information and brand-preference advertising. Information advertising is relatively clear: it consists of factual information about the product. This does not exclude, however, the possibility that information may be so presented that it evokes a lifestyle. Brand-preference advertising under the Act is even broader. As noted above, the Act did not adopt the narrow concept of brand-preference advertising set forth in *RJR*. Rather, it adopted a definition of "advertising that promotes a tobacco product by means of its brand characteristics". As the Canadian Cancer Society argues, the concept of a "brand" is associated with a lifestyle; in marketing, brands are intangible images, usually associated with particular lifestyles.

…

114 … [T]he prohibition on lifestyle advertising is reasonable and demonstrably justified under s. 1 of the *Charter*. As with the other challenged provisions, the pressing and substantial nature of Parliament's objective is beyond challenge. The record is replete with examples of lifestyle advertisements promoting tobacco products. It amply establishes the power of such advertisements to induce non-smokers to begin to smoke and to increase tobacco consumption among addicted smokers. It also establishes the sophistication and subtlety of such advertising. Lifestyle advertising spans the spectrum from the bold association of the Marlboro man with cowboy culture to the subtle suggestion emerging from a cup of coffee or a bath scene that evokes tobacco use through learned prior imagery.

115 The sophistication and subtlety of lifestyle advertising are reflected in the means Parliament has chosen to deal with it. A ban on lifestyle advertising must catch not only clear associations, but subtle subliminal evocations. Hence the inclusion of advertising that "evokes a positive or negative emotion or image." There is a rational connection between this provision and Parliament's objective. Minimal impairment is also established. True information and brand-preference advertising continues to be permitted under s. 22(2). Such advertising crosses the line when it associates a product with a way of life or uses a lifestyle to evoke an emotion or image that may, by design or effect, lead more people to become addicted or lead people who are already addicted to increase their tobacco use. Finally, the proportionality of the effects is clear. The suppressed expression — the inducement of increased tobacco consumption — is of low value, compared with the significant benefits in lower rates of consumption and addiction that the ban may yield.

116 The challenge of dealing with today's sophisticated advertising of tobacco products is not insignificant. The distinction between information and brand-preference advertising directed to market share, on the one hand, and advertising directed to increased consumption and new smokers, on the other, is difficult to capture in legal terms. Parliament in its wisdom has chosen to take the task on. Properly interpreted, the law it has adopted meets the requirements of justification under s. 1 of the *Charter*.

3.1.5 R. v. Guignard

***R. v. Guignard*, 2002 SCC 14**

English version of the judgment of the Court delivered by

LEBEL J. –

I. Introduction

1 The issue in this appeal is whether the provisions of the by-laws of the City of Saint-Hyacinthe governing the posting of signs violate s. 2(b) of the *Canadian Charter of Rights and Freedoms*. The appellant, Roger Guignard, was convicted in the Municipal Court of erecting a sign on one of his buildings expressing his dissatisfaction with the services of an insurance company.

2 The courts below found that the municipal by-laws prohibited the type of sign erected by Mr. Guignard and that, although this prohibition infringed freedom of expression, it was justified by *s. 1* of the *Charter*. For the following reasons, I would allow the appeal, quash Mr. Guignard's conviction and enter an acquittal with respect to the offences with which he was charged.

II. Origin of the Case

3 In 1996, Guignard owned a property within the City of Saint-Hyacinthe. An insurance policy issued by a major company, the Commerce Group, covered the risks relating to this property. A loss occurred in May 1996 and the appellant claimed an indemnity from his insurer. Payment was delayed and Mr. Guignard eventually became impatient. He placed a sign on another of his buildings that eloquently expressed his dissatisfaction. On August 8, 1996, in response to a complaint, a municipal inspector ordered the appellant to remove the sign within 24 hours. According to the inspector, the sign contravened the zoning by-law of the City, which prohibited the erection of advertising signs outside an industrial area (*Règlement d'urbanisme no 1200 de la Ville de Saint-Hyacinthe*, s. 14.1.5(p)). The sign read as follows:

[TRANSLATION]

DATE OF INCIDENT 10-05-96

DATE OF REPAIRS 10-13

DATE OF CLAIM 10-05-96

WHEN A CLAIM IS MADE,

ONE FINDS OUT ABOUT

POOR QUALITY INSURANCE

COMMERCE GROUP

THE INCOMPETENT

INSURANCE COMPANY

HAS STILL NOT INDEMNIFIED ME

4 When he refused to comply, the municipality charged Guignard with contravening the by-law. …

5 At the same time, Mr. Guignard's insurer applied to the civil courts for an interlocutory injunction order requiring the appellant to remove his sign. The Superior Court granted the application and ordered the sign removed. That judgment was set aside on March 10, 1998, by the Quebec Court of Appeal, which found that the sign was not defamatory in nature and that Mr. Guignard's freedom of expression must take precedence.

…

…

Règlement d'urbanisme no 1200 de la Ville de Saint-Hyacinthe

[TRANSLATION]

2.2.4 Definitions

...

Sign:

Any writing (letters, words, numbers), any pictorial representation (drawing, engraving, photograph, illustration, image), any emblem (slogan, symbol, trade mark), any flag (banner, pennant, standard, streamer), any advertising billboard or any other similar object or similar means that:

is attached to, is part of or is placed on or outside a building or on land;

is used to notify, inform, announce, advertise or for other similar purposes.

...

Advertising sign:

Sign indicating at least the name of a company and drawing attention to a business, a product, a service or an entertainment carried on, sold or offered other than the

property on which it is placed.

14.1.5 Prohibited Signs

...

The following signs are prohibited:

(p) advertising signs and advertising billboards, except those located in industrial zones.

…

21 In applying s. 2(b) of the Charter, this Court has recognized the substantial value of freedom of commercial expression. The need for such expression derives from the very nature of our economic system, which is based on the existence of a free market. The orderly operation of that market depends on businesses and consumers having access to abundant and diverse information. …

…

23 The decisions of this Court accordingly recognize that commercial enterprises have a constitutional right to engage in activities to inform and promote, by advertising. As we know and can attest, sometimes with mixed feelings, the ubiquitous presence of advertising is a defining characteristic of western societies. Usually, it attempts to convey a positive message to potential consumers. However, it sometimes involves comparisons and may even be negative. On the other hand, consumers also have freedom of expression. This sometimes takes the form of

> "counter-advertising" to criticize a product or make negative comments about the services supplied. Within limits prescribed by the legal principles relating to defamation, every consumer enjoys this right. Consumers may express their frustration or disappointment with a product or service. Their freedom of expression in this respect is not limited to private communications intended solely for the vendor or supplier of the service. Consumers may share their concerns, worries or even anger with other consumers and try to warn them against the practices of a business. Given the tremendous importance of economic activity in our society, a consumer's "counter-advertising" assists in circulating information and protecting the interests of society just as much as does advertising or certain forms of political expression. This type of communication may be of considerable social importance, even beyond the merely commercial sphere.
>
> 24 "Counter-advertising" is not merely a reaction to commercial speech, and is not a form of expression derived from commercial speech. Rather, it is a form of the expression of opinion that has an important effect on the social and economic life of a society. It is a right not only of consumers, but of citizens.
>
> 25 In this respect, simple means of expression such as posting signs or distributing pamphlets or leaflets or, these days, posting messages on the Internet are the optimum means of communication for discontented consumers. The media are still often beyond their reach because of the cost. In *Ramsden v. Peterborough (City)*, 1993 CanLII 60 (SCC), [1993] 2 SCR 1084, this Court stressed the importance of signs as an effective and inexpensive means of communication for individuals and groups that do not have sufficient economic resources. Signs, which have been used for centuries to communicate political, artistic or economic information, sometimes convey forceful messages. Signs, in various forms, are thus a public, accessible and effective form of expressive activity for anyone who cannot undertake media campaigns. …
>
> 26 By restricting the right to use this optimum means of expression to certain designated places, the impugned by-law directly infringes freedom of expression. This infringement impacts especially on the freedom of expression of a person who does not have access to substantial financial resources. A limitation of this nature can in fact deprive that person of the only means of expression that are truly accessible to him or her. Even when a legislative or regulatory provision is neutral in appearance, it can have a major impact on the ability of a person or group to engage in expressive activity (see *Irwin Toy*, at pp. 974-75).
>
> E. *Impact of the By-law*
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> 27 I readily concede that the impugned provisions of the zoning by-law were certainly not designed with a view to preventing a consumer or member of the public from engaging in "counter-advertising". However, the by-law prohibits the posting of advertising except in industrial zones or on the site where the commercial activity is carried on (*Règlement d'urbanisme no 1200 de la Ville de Saint-Hyacinthe*, s. 14.1.5(p)). The definition of "advertising sign" includes any kind of sign that refers to a particular business by name. The definition is clear in this regard. Section 2.2.4 defines an advertising sign as a [TRANSLATION] "sign showing at least a trade name and drawing attention to a business, a product, a service or an entertainment carried on, sold or offered on a property other than the property on which it is placed". If a sign includes a trade name, the by-law prohibits placing it elsewhere than in the location where the commercial activity takes place or in an industrial zone. No distinction is made in this regard between favourable advertising and negative advertising. If the by-law is applied literally, its effect is to make it impossible for any individual to post signs criticising the practices, products or services of a business. … Guignard has therefore established an infringement of his freedom of expression. It is now up to the municipality to establish that the by-law is reasonable and to show that it is consistent with the values of a free and democratic society, under s. 1 of the *Charter*.
>
> F. *Justification*
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> …
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> 29 In this case, in addition to denying that the constitutional guarantee had in any way been violated, the respondent argued, in the alternative, that its by-law was justified under s. 1 of the *Charter* on the ground that it was designed to prevent visual pollution and driver distraction. The justification process is not limited to the objective defined. The other tests must also be met, including demonstration of a rational connection, minimal impairment and proportionality. An examination of the practical effects of the by-law shows that the respondent did not meet any of the tests involved in the justification process. To be sure, the prevention of visual pollution is a reasonable objective. The creation of zones is an appropriate urban planning exercise that is authorized by the Act and is very common in most municipalities. It is easy to understand the reasons that prompt municipalities not to allow any kind of sign, in any place and at any time. It is a matter of maintaining a pleasant environment for the residents. However, as it stands, the respondent's by-law prohibits only those signs that expressly indicate the trade name of a commercial enterprise in residential areas. All other types of signs of a more generic nature are exempt from the by-law. Thus, if Guignard had merely stated on his sign "Don't trust insurance companies" without anything further, or "Don't trust the insurance company located at this address", or "Purchase your insurance elsewhere than in Saint-Hyacinthe", his sign would have complied with the by-law, even though it was just as polluting from a visual point of view as a billboard bearing the trade name "Commerce Group". These difficulties illustrate the arbitrary nature of the ban and of the distinctions that underlie it.
>
> 30 On the question of minimal impairment, the by-law in question is not a reasonable solution … The by-law severely curtails Guignard's freedom to express his dissatisfaction with the practices of his insurance company publicly. It forces him to use advertising methods that presuppose the availability of adequate financial resources. Alternatively, it restricts him to private or virtually private communications such as distributing leaflets in the neighbourhood around his property, which is undoubtedly less effective, to convey to the public his opinion about the quality of his insurer's services.
>
> 31 Finally, the impact of the by-law on Guignard's freedom of expression is disproportionate to any benefit that it secures for the municipality. In this respect, we have seen that posting signs is an optimum means of expression for individuals (see *Ramsden*, at p. 1102). By limiting that means of expression, the by-law amounts to a serious and unjustified infringement of a form of expression that has been commonly used for a long time and is closely connected to the values underlying the protection of freedom of expression.
>
> 32 The only appropriate remedy in this case is a declaration that the provisions of the municipal by-law the appellant has challenged are invalid.
> …

3.1.6 Further reading

1. Amnesty International, *Surveillance Giants: How the Business Model of Google and Facebook Threatens Human Rights* (2019) pp. 29-33: https://www.amnesty.org/en/documents/pol30/1404/2019/en/
2. Richard Moon, "Lifestyle Advertising and Classical Freedom of Expression Doctrine" (1991), 36 McGill LJ 76: https://lawjournal.mcgill.ca/wp-content/uploads/pdf/2614079-Moon.pdf
3. Richard Moon, "Begging and Freedom of Expression" 11 Constitutional Forum 41: https://journals.library.ualberta.ca/constitutional_forum/index.php/constitutional_forum/article/view/11133

3.1.7 Questions

1. Should advertisements receive less protection because they are motivated by profit? Or, is profit motivation a proxy for other factors?
2. How does the court distinguish the result in *JTI-Macdonald* from that in *RJR-Macdonald*?

3. Does Justice LeBel in *Guignard* (para. 23) extend the protection of commercial speech beyond expression that benefits consumers to expression that benefits the interests of commercial enterprises? If so, is this justified, given the courts earlier decisions?
4. Is there an even stronger case for supporting the regulation of micro-targeted advertising online?

3.2 Election / political speech

3.2.1 Introduction

Political speech, because of its importance to democratic governance, is treated by the courts as "core" value expression, the restriction of which will be difficult to justify under s.1. It's restriction can still be justified, but the courts will apply the limitations test strictly, applying a less deferential standard under s. 1 than they do in the case of advertising and hate speech.

Nevertheless, in contrast to the US courts, Canadian courts have been willing to uphold limits on campaign spending, including spending by "third parties" – a person or entity that is not a candidate, a political party, or local riding association, such as a labour union, business association or civil society group. In *Libman v. Quebec,* 1997 CanLII 326 (SCC), [1997] 3 SCR 569, the Supreme Court of Canada considered a challenge to a Quebec law that set spending ceilings in provincial referendum campaigns. Quebec's *Referendum Act* established and funded two official referendum committees (a "yes" and a "no" committee) and imposed limits on the amount each committee could spend. During the referendum period, only the authorized agent of an official committee, or their delegate, could incur or authorize expenses. An official committee could authorize an affiliated group to spend a portion of the committee's spending allocation. However, unaffiliated individuals/groups were prohibited from spending in support of either side during the referendum campaign.

The Supreme Court accepted that the third-party spending ceilings breached s. 2(b). In the court's view "freedom of expression includes the right to employ any methods, other than violence, necessary for communication" *(Libman* at 594). While the court thought that spending limits could be justified, in this case the spending limits were overly restrictive. The *total* ban on third-party spending during a referendum campaign did not impair freedom of expression as little as was necessary to protect the integrity of the election process and so could not be justified under s.1. However, the court was clear that spending limits (that were less restrictive) are necessary to ensure "the democratic nature of referendums by promoting equality between the options" and promote "free and informed voting" (*Libman* 1997, 596). Ceilings are needed, said the court, to "prevent the most affluent from monopolizing election discourse and consequently depriving their opponents of a reasonable opportunity to speak and be heard" (*Libman* 1997, 599). In the court's view, unlimited spending would work against informed choice, allowing some positions to "bury" others (*Libman* 1997, 596).

A few years later, in *Harper v Canada (AG)*, 2004 SCC 33, the Supreme Court of Canada upheld restrictions in the *Canada Elections Act* on spending by third parties during federal election campaigns. The act limited third-party spending on election advertising to $3,000 in a single riding and $150,000 nationally. The limits applied to advertising "that promotes or opposes a registered party or the election of a candidate" or that "takes a position on an issue with which a registered party or candidate is associated" (*Canada Elections Act*, s. 319). The court also upheld restrictions on any advertising by a third party on election day.

3.2.2 Harper v. Canada (Attorney General), [2004] 1 SCR 827, 2004 SCC 33

***Harper v. Canada (Attorney General)*, [2004] 1 SCR 827, 2004 SCC 33**

The judgment of Iacobucci, Bastarache, Arbour, LeBel, Deschamps and Fish JJ. was delivered by

BASTARACHE J. —

Introduction

…

50 At issue in this appeal is whether the third party spending provisions of the *Canada Elections Act, S.C. 2000, c. 9*, violate *ss. 2(b)*, *2(d)* and *3* of the *Canadian Charter of Rights and Freedoms*. To resolve this issue, the Court must reconcile the right to meaningfully participate in elections under s. 3 with the right to freedom of expression under s. 2(*b*)….

…

III. Relevant Statutory Provisions

…

57 … Part 17 of the [Canada Elections] Act, ss. 349 to 362, creates a scheme that limits the advertising expenses of individuals and groups who are not candidates or political parties. … The regime can be broadly divided into four parts. First, s. 350 limits election advertising expenses to $3,000 in a given electoral district and $150,000 nationally. "[E]lection advertising" is defined in s. 319 of the Act as follows:

> "election advertising" means the transmission to the public by any means during an election period of an advertising message that promotes or opposes a registered party or the election of a candidate, including one that takes a position on an issue with which a registered party or candidate is associated. For greater certainty, it does not include
>
> (a) the transmission to the public of an editorial, a debate, a speech, an interview, a column, a letter, a commentary or news;
>
> (b) the distribution of a book, or the promotion of the sale of a book, for no less than its commercial value, if the book was planned to be made available to the public
>
> regardless of whether there was to be an election;
>
> (c) the transmission of a document directly by a person or a group to their members, employees or shareholders, as the case may be; or
>
> (d) the transmission by an individual, on a non-commercial basis on what is commonly known as the Internet, of his or her personal political views.

Thus, the limits do not apply to third party advertising prior to the election period or to advertising which promotes an issue that is not associated with a candidate or political party.

The second part of the regime is closely related to s. 350 as it prohibits individuals or groups from splitting or colluding for the purposes of circumventing the election advertising limits. Third, the attribution, registration and disclosure provisions (ss. 352 to 357, 359, 360 and 362) require a third party to identify itself in all of its election advertising and, under certain circumstances, to appoint financial agents and auditors who are required to record expenses, to register with, and to report to the Chief Electoral Officer who, in turn, makes this information available to the public. Finally, although s. 323 is not strictly part of the third party electoral advertising regime, third parties are also subject to the advertising blackout on polling day.

…

66 The appellant rightly concedes that the limits on election advertising expenses infringe s. 2(*b*) of the *Charter*. Most third party election advertising constitutes political expression and therefore lies at the core of the guarantee of free expression. As discussed below, in some circumstances, third party election advertising may be less deserving of constitutional protection where it seeks to manipulate voters.

…

75 The central issue at this stage of the analysis is the nature and sufficiency of the evidence required for the Attorney General to demonstrate that the limits imposed on freedom of expression are reasonable and justifiable in a free and democratic society. …

(a) *Contextual Factors*

(i) The Nature of the Harm and the Inability to Measure It

77 The legislature is not required to provide scientific proof based on concrete evidence of the problem it seeks to address in every case. Where the court is faced with inconclusive or competing social science evidence relating the harm to the legislature's measures, the court may rely on a reasoned apprehension of that harm.

78 This Court has, in the absence of determinative scientific evidence, relied on logic, reason and some social science evidence in the course of the justification analysis in several cases …

…

79 Similarly, the nature of the harm and the efficaciousness of Parliament's remedy in this case is difficult, if not impossible, to measure scientifically. The harm which Parliament seeks to address can be broadly articulated as electoral unfairness. Several experts, as well as the Lortie Commission, concluded that unlimited third party advertising can undermine election fairness in several ways. First, it can lead to the dominance of the political discourse by the wealthy (Lortie Report, *supra*, at p. 326) … Second, it may allow candidates and political parties to circumvent their own spending limits through the creation of third parties (Lortie Report, at p. 15)…. Third, unlimited third party spending can have an unfair effect on the outcome of an election (Lortie Report, at pp. 15-16). Fourth, the absence of limits on third party advertising expenses can erode the confidence of the Canadian electorate who perceive the electoral process as being dominated by the wealthy. This harm is difficult, if not impossible, to measure because of the subtle ways in which advertising influences human behaviour; the influence of other factors such as the media and polls; and the multitude of issues, candidates and independent parties involved in the electoral process. In light of these difficulties, logic and reason assisted by some social science evidence is sufficient proof of the harm that Parliament seeks to remedy.

(ii) Vulnerability of the Group

80 Third party spending limits seek to protect two groups. First, the limits seek to protect the Canadian electorate by ensuring that it is possible to hear from all groups and thus promote a more informed vote. Generally, the Canadian electorate "must be presumed to have a certain degree of maturity and intelligence"; see *Thomson Newspapers*, *supra*, at para. 101. Where, however, third party advertising seeks to systematically manipulate the voter, the Canadian electorate may be seen as more vulnerable; see *Thomson Newspapers*, at para. 114.

81 The members of the second group protected by the legislation are candidates and political parties. The appellant argues that the provisions seek to ensure that candidates and political parties have an equal opportunity to present their positions to the electorate. As discussed in *Figueroa*, *supra*, at para. 41, all political parties, whether large or small, are "capable of acting as a vehicle for the participation of individual citizens in the public discourse that animates the determination of social policy". Thus, regardless of their size, political parties are important to the democratic process. Nevertheless, neither candidates nor political parties can be said to be vulnerable.

(iii) Subjective Fears and Apprehension of Harm

82 Perception is of utmost importance in preserving and promoting the electoral regime in Canada. Professor Aucoin emphasized that "[p]ublic *perceptions* are critical precisely because the legitimacy of the election regime depends upon how citizens assess the extent to which the regime advances the values of their electoral democracy" (emphasis in original). Electoral fairness is key. Where Canadians perceive elections to be unfair, voter apathy follows shortly thereafter.

…

(iv) The Nature of the Infringed Activity: Political Expression

84 Third party advertising is political expression. Whether it is partisan or issue-based, third party advertising enriches the political discourse (Lortie Report, *supra*, at p. 340). As such, the election advertising of third parties lies at the core of the expression guaranteed by the *Charter* and warrants a high degree of constitutional protection. …

85 In some circumstances, however, third party advertising will be less deserving of constitutional protection. Indeed, it is possible that third parties having access to significant financial resources can manipulate political discourse to their advantage through political advertising. … There is no evidence before the Court that indicates that third party advertising seeks to be manipulative. Nor is there any evidence that third parties wish to use their advertising dollars to smear candidates or engage in other forms of non-political discourse. Nevertheless, the danger that political advertising may manipulate or oppress the voter means that some deference to the means chosen by Parliament is warranted.

…

87 Under the egalitarian model of elections, Parliament must balance the rights and privileges of the participants in the electoral process: candidates, political parties, third parties and voters. Advertising expense limits may restrict free expression to ensure that participants are able to meaningfully participate in the electoral process. For candidates, political parties and third parties, meaningful participation means the ability to inform voters of their position. For voters, meaningful participation means the ability to hear and weigh many points of view. The difficulties of striking this balance are evident. Given the right of Parliament to choose Canada's electoral model and the nuances inherent in implementing this model, the Court must approach the justification analysis with deference. … In the end, the electoral system, which regulates many aspects of an election, including its duration and the control and reimbursement of expenses, reflects a political choice, the details of which are better left to Parliament.

88 On balance, the contextual factors favour a deferential approach to Parliament in determining whether the third party advertising expense limits are demonstrably justified in a free and democratic society. Given the difficulties in measuring this harm, a reasoned apprehension that the absence of third party election advertising limits will lead to electoral unfairness is sufficient.

(c) *Is the Objective Pressing and Substantial?*

91 The overarching objective of the third party election advertising limits is electoral fairness. Equality in the political discourse promotes electoral fairness and is achieved, in part, by restricting the participation of those who have access to significant financial resources. The more voices that have access to the political discourse, the more voters will be empowered to exercise their right in a meaningful and informed manner. Canadians understandably have greater confidence in an electoral system which ultimately encourages increased participation.

…

> 92 … More narrowly characterized, the objectives of the third party election advertising scheme are threefold: first, to promote equality in the political discourse; second, to protect the integrity of the financing regime applicable to candidates and parties; and third, to ensure that voters have confidence in the electoral process.
>
> 93 As discussed, the Attorney General of Canada does not need to provide evidence of actual harm to demonstrate that each objective is pressing and substantial … To require the Attorney General to produce definitive social science evidence establishing the causes of every area of social concern would be to place an unreasonably high onus on the Attorney General. In this case, the Attorney General adduced sufficient informed evidence of the importance of electoral regulation in our free and democratic society.
>
> …
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> (d) *Rational Connection*
>
> 104 At this stage of the analysis, the Attorney General "must show a causal connection between the infringement and the benefit sought on the basis of reason or logic" … There is sufficient evidence establishing a rational connection between third party advertising expense limits and promoting equality in the political discourse, protecting the integrity of the financing regime applicable to candidates and parties, and maintaining confidence in the electoral process.
>
> …
>
> 107 Where advertising influences the electorate, and those who have access to significant financial resources are able to purchase an unlimited amount of advertising, it follows that they will be able to dominate the electoral discourse to the detriment of others, both speakers and listeners. An upper limit on the amount that third parties can dedicate to political advertising curtails their ability to dominate the electoral debate. Thus, third party advertising expense limits are rationally connected to promoting equality in the political discourse.
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> …
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> (e) *Minimal Impairment*
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> …
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> 111 … In this case, the contextual factors indicate that the Court should afford deference to the balance Parliament has struck between political expression and meaningful participation in the electoral process.
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> …
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> 118 Certainly, one can conceive of less impairing limits. Indeed, any limit greater than $150,000 would be less impairing. Nevertheless, s. 350 satisfies this stage of the *Oakes* analysis. The limits allow third parties to inform the electorate of their message in a manner that will not overwhelm candidates, political parties or other third parties. The limits preclude the voices of the wealthy from dominating the political discourse, thereby allowing more voices to be heard. The limits allow for meaningful participation in the electoral process and encourage informed voting. The limits promote a free and democratic society.
>
> (f) *Proportionality*
>
> 119 The final stage of the Oakes analysis requires the Court to weigh the deleterious effects against the salutary effects.
>
> 120 Section 350 has several salutary effects. It enhances equality in the political discourse. By ensuring that affluent groups or individuals do not dominate the political discourse, s. 350 promotes the political expression of those who are less affluent or less capable of obtaining access to significant financial resources and ensures that candidates and political parties who are subject to spending limits are not overwhelmed by third party advertising. Section 350 also protects the integrity of the candidate and political party spending limits by ensuring that these limits are not circumvented through the creation of phony third parties. Finally, s. 350 promotes fairness and accessibility in the electoral system and consequently increases Canadians' confidence in it.
>
> 121 The deleterious effect of s. 350 is that the spending limits do not allow third parties to engage in unlimited political expression. That is, third parties are permitted to engage in informational but not necessarily persuasive campaigns, especially when acting alone. When weighed against the salutary effects of the legislation, the limits must be upheld. … Accordingly, s. 350 should be upheld as a demonstrably justified limit in a free and democratic society.
>
> [McLachlin C.J. (Major and Binnie JJ) dissenting in part found that the infringement on the s.2(b) right was not proportionate the law's objectives. The spending limit, in their view, was so low that it amounted to a virtual ban on citizen participation in election debate.]

3.2.3 Case notes: Thomson Newspapers, Working Families

1. In *Thomson Newspapers v Canada (Attorney General)*, 1998 CanLII 829 (SCC), [1998] 1 SCR 877, the Supreme Court of Canada struck down a federal ban on the publication of election campaign polls during the final days of the campaign. According to the federal government, the ban was necessary "to prevent the potentially distorting effect of public opinion survey results that are released late in the election campaign leaving insufficient time to assess their validity" (*Thomson* at 902). Bastarache J, for the majority, dismissed this argument. He wrote that polls might contain information useful to voters and that late poll results, in particular, might be useful to those who want to vote strategically (to vote for their second choice, if their first choice seems to have no chance of winning). In any event, argued Bastarache J, it is up to voters to decide what information they want to take into account when deciding how to vote: "If they feel that their votes are better informed as a result of having this information, then the ban not only interferes with their freedom of expression, but with their perception of the freeness and validity of their vote" (*Thomson* at 972).
2. Previously under federal election law it was an offence for a person to "knowingly make or publish a false statement of fact before or during an election about the personal character or conduct of candidate for the purpose of affecting the return of a candidate" (*Canadian Constitution Foundation v. Canada (AG)*, 2021 ONSC 1224 at para 12). However, in 2018 the law was amended, so that the word "knowingly" was dropped from the provision. The amended law also included a list of false statements that were prohibited, extended protection from false statements to "a broader category of people, including the leader of a political party or a public figure associated with a political party," and limited the application of the prohibition to the election period (*Canadian Constitution Foundation,* at para 17). A judge of the Ontario Superior Court found that because the word "knowingly" had been removed, the law no longer required proof that the person making the statement knew that it was false. In the judge's view, the absence of a knowledge requirement meant that the law could no longer be seen as a justified limit on the s. 2(b) right to freedom of expression.
3. In *Ontario (Attorney General) v. Working Families Coalition (Canada) Inc.,* 2025 SCC 5, the Supreme Court of Canada upheld an Ontario Court of Appeal decision striking down a limit on third party spending during the six-month period before the provincial election date. A superior court judge had previously struck down the law under s. 2(b) because the Ontario government had not provided any reasons for amending the existing law to extend the limitation period from three months to six months. The government then re-enacted the law, invoking s. 33 of the Charter and declaring that the spending limit was applicable notwithstanding s. 2(b) of the Charter. The law was then

challenged under s. 3 of the Charter, the right to vote, which is not subject to s. 33, the notwithstanding clause. A majority of the Supreme Court of Canada held that the restriction breached s. 3 and could not be justified under s.1. The judgment is discussed in the Chapter dealing with s. 3 of the Charter, Democratic Rights. The following are excerpts from the majority decision:

[32] Section 3 protects the right of a citizen to vote "in a manner that accurately reflects his or her preferences" (*Figueroa*, at para. 54). To vote in this way, citizens must have access to information to "be able to assess the relative strengths and weaknesses of each party's platform" (*Figueroa*, at para. 54; see also *Harper*, at para. 71). For citizens to have a meaningful opportunity to participate in their governance through voting, there must be equilibrium in the political discourse to allow voters to develop an informed view (*Harper*, at paras. 72-73; *Libman*, at paras. 49-50). In *Libman* and *Harper*, the Court considered spending limits on political advertising and endorsed the goal of electoral fairness reflected in the egalitarian model of elections, noting the threat of affluent individuals and groups using wealth to monopolize or dominate the electoral discourse (*Libman*, at para. 47; *Harper*, at paras. 62-63). Equality and fairness in elections are essential to the meaningful exercise of the vote and encourage public confidence in the electoral system (*Figueroa*, at para. 51; *Harper*, at para. 63; *Libman*, at para. 47). The egalitarian model of elections thus aims to "balance the rights and privileges of the participants in the electoral process: candidates, political parties, third parties and voters", so that voters may be better informed (*Harper*, at para. 87; see also paras. 62 and 72).

…

[35] Public debate dominated by any one actor, including political parties, threatens balance in the political discourse (*Libman*, at paras. 47-52; *Harper*, at para. 72). *Harper* held that overly severe spending limits may interfere with the ability of voters to hear a diversity of views and undermine the ability of citizens to vote in an informed way (para. 73). To meaningfully participate, voters should be able "to hear and weigh many points of view" (para. 87). If the differential treatment of participants has an adverse impact on citizens' right to meaningfully participate in the electoral process, it will offend s. 3 (*Figueroa*, at para. 51).

[36] I conclude from this review of our jurisprudence that a spending limit will infringe s. 3 of the *Charter* if it allows political actors or third parties a disproportionate voice in the political discourse given their roles in the electoral process, thus depriving voters of a broad range of views and perspectives on social and political issues. Such disproportionality in the political discourse would violate voters' right to be "reasonably informed of all the possible choices" (*Harper*, at para. 71, quoting *Libman*, at para. 47). This analysis is necessarily comparative, considering *all* actors. No one actor should be able to exert undue influence on the political discourse, drowning out other voices.

…

[39] [W]hatever the content or perspective of the political advertising, our jurisprudence has stressed that voters must be able to "hear and weigh many points of view" and to consider the relative strengths and weaknesses of each candidate, political party, and the issues associated with them, to make an informed choice (*Harper*, at para. 87; see also para. 71; *Figueroa*, at para. 63).

…

[45] The challenged law in this case caps third party political spending at $600,000 during the pre-writ year (s. 37.10.1(2)(b) of the *EFA*). Political parties have no limit on spending during the first six months of this period, and can spend substantially more (up to $1,000,000) during the second six (s. 38.1).

[46] By design, the *EFA* creates a significant, qualitative disparity between what political parties and third parties may do, leading to disproportionality in the political discourse. Third parties are strictly limited in their ability to inform citizens while political parties face *no* restrictions in the first six months of the pre-writ year, and may spend a substantially higher amount in the six months before the writ period. On its face, the provision permits political parties to overwhelm or drown out the voices of third parties during the first six months of the pre-election year.

…

[48] The *EFA*'s definition of "political advertising" casts a wide net. The AGO and the intervener the Chief Electoral Officer of Ontario share the view that the definition in the *EFA* only captures "election-oriented" advertising (A.F., at para. 102; I.F., at paras. 19-20). However, the scope of regulated political advertising under the *EFA* captures significant issue-based advertising. If the advertisement "can reasonably be regarded as closely associated with a registered party or its leader or a registered candidate", it is caught by the definition (s. 1(1)). Given the broad range of issues on which parties can and do campaign, this could include any advertising on education, justice, Indigenous, health, environmental, or economic issues. There is no requirement that the advertising include an explicit reference to the election, though that is a factor that the Chief Electoral Officer may consider (s. 37.0.1(c)). As the Chief Electoral Officer candidly explains, the definition captures indirect advertising or advertising that is impliedly related to an election (I.F., at paras. 18-19 and 22).

…

[50] This restriction on issues-based advertising on third parties in the first half of the pre-writ year, while political parties face no limits, also has potential effects closer to an election. If an issue of public significance arises a year or many months away from an election, and which is (or may become) closely associated with a political party, third parties are required to decide whether to use part of their spending limit to convey their views to citizens, or refrain from advertising. They may choose to save it, in case other important issues arise during the year, or to ensure they are able to advertise in the period right before an election. Citizens are potentially deprived of information regarding matters of public concern, both when the legislature is sitting and in the period before an election. The legislation thus forces third parties into a Hobson's choice, while simultaneously allowing political parties to spend unlimited amounts in the first six months of the pre-writ year to advertise using whichever form of media they wish on a wide range of issues.

…

[55] To summarize, the information available to voters in Ontario in the year before an election must include the interests, voices, and views of different citizens and parties. Meaningful participation in the electoral process includes an informed vote, as it is only with access to information that citizens can vote in a way that accurately reflects their preferences (*Figueroa*, at para. 54). To assess the relative merits of each party and candidate and their positions on the issues of the day, there must be equilibrium or proportionality in the political discourse so citizens have information on diverse points of view (*Harper*, at paras. 71-72). Political advertising is an important part of the electoral process. When political parties face no limitations, curtailing the ability of third parties to use platforms that may be effective in reaching certain voters has the potential to overwhelm the political discourse and drown out third parties, interfering with citizens' access to information letting them weigh and establish their views during an important time in the democratic cycle. The preferences of citizens casting votes is the basis of responsive government policy, and the legitimacy of laws made by the elected government. On its face, the *EFA* creates an absolute disproportionality in the availability of information to citizens over a key period, thus impeding their ability to form meaningful preferences, violating s. 3 of the *Charter*.

3.2.4 Further reading

1. Michael Pal, “Is the Permanent Campaign the End of the Egalitarian Model for Elections?” in Richard Albert, Paul Daly, and Vanessa MacDonnell, eds, *The Canadian Constitution in Transition* (UTP, 2019): https://papers.ssrn.com/sol3/papers.cfm?abstract_id=3090399
2. Yasmin Dawood, “Equal Participation and Campaign Finance: Comparative Perspectives”, in Eugene Mazo and Timothy Kuhner, eds., *Democracy by the People: Reforming Campaign Finance in America,* (CUP, 2018): https://papers.ssrn.com/sol3/papers.cfm?abstract_id=3104852

3.2.5 Questions

1. How do the ads of the better funded candidate/party drown out the ads of the other candidates/parties – if the latter are still heard, albeit less often?
2. Do the egalitarian concerns that are emphasised in *Harper* 2004 arise in other s. 2(b) decisions?
3. What is the difference between the regulation of campaign speech in *Libman* and *Harper* that led the court to strike down one regulation but not the other?
4. If it is acceptable to limit party and candidate spending during an election campaign, should it also be acceptable to limit it outside the campaign period?
5. Should the law regulate misleading or false claims in election ads?

3.3 Hate speech

There are two general kinds of harm that hate speech can cause. The first is that suffered *directly* by the members of a racial or other target group. This form of harm may include fear, humiliation, and emotional trauma resulting from speech that is threating or harassing. The second kind of harm is the spread of hateful views in the larger community that may lead others to engage in acts of discrimination and violence against members of the targeted group. The type of harm caused (or contributed to) by a particular instance of hate speech will depend on its content and its audience – on what is said and to whom it is said. The leading hate speech cases in Canada involve the second kind of harm, the restriction of racist and other bigoted claims that are meant to persuade members of the general community about the dangerous or undesirable traits of the members of a particular group.

In 1970 the Canadian government amended the *Criminal Code*, adding prohibitions on the advocacy of genocide (s. 318), “incitement to hatred likely to lead to a breach of the peace” against a group identified on the basis of race, religion, and ethnicity (s. 319(1)), and the “wilful promotion of hatred” against such a group (s. 319(2)). The list of groups has since been expanded to include groups identified on the basis of age, sex, sexual orientation, gender identity or expression, and mental or physical disability.

In 2022, the federal government added to the *Criminal Code* a prohibition on Holocaust denial. Section 319(2.1) prohibits the communication of any statement made “other than in private conversation [that] wilfully promotes antisemitism by condoning, denying or downplaying the Holocaust”. This provision may not expand the scope of the s. 319(2) prohibition since it also requires that the communication “wilfully” promote a particular form of hatred.

For all of these offences, charges cannot be laid without the consent of the provincial Attorney General.

The federal government amended the *Canada Human Rights Act* (CHRA) in 1977 to include a ban on “telephonic” communication that is likely to expose the members of an identifiable group to hatred or contempt. The scope of the s. 13 ban was later extended to include hate speech on the internet. Section 13 of the CHRA was repealed by the federal government in 2013. The human rights codes of British Columbia, Alberta, Saskatchewan, and the Northwest Territories include a provision similar to s. 13 that is applicable to signs and publications. Enforcement of these human rights provisions is “complaint driven.” An individual or organization may make a complaint, which (under most of the codes) is investigated by a human rights commission. The commission must decide whether the complaint has substance and should be referred to a tribunal for adjudication.

3.3.1 R. v. Keegstra

R. v. Keegstra**,** 1990 CanLII 24 (SCC), **[1990] 3 SCR 697**

The judgment of Dickson C.J. and Wilson, L’Heureux-Dubé and Gonthier JJ. was delivered

by Dickson CJ.

DICKSON C.J. –

Mr. James Keegstra was a high school teacher in Eckville, Alberta from the early 1970s until his dismissal in 1982. In 1984 Mr. Keegstra was charged under s. 319(2) (then s. 281.2(2)) of the Criminal Code with unlawfully promoting hatred against an identifiable group by communicating anti-semitic statements to his students. He was convicted by a jury in a trial before McKenzie J. of the Alberta Court of Queen’s Bench.

Mr. Keegstra’s teachings attributed various evil qualities to Jews. He thus described Jews to his pupils as “treacherous”, “subversive”, “sadistic”, “money-loving”, “power hungry” and “child killers”. He taught his classes that Jewish people seek to destroy Christianity and are responsible for depressions, anarchy, chaos, wars and revolution. According to Mr. Keegstra, Jews “created the Holocaust to gain sympathy” and, in contrast to the open and honest Christians, were said to be deceptive, secretive and inherently evil. Mr. Keegstra expected his students to reproduce his teachings in class and on exams. If they failed to do so, their marks suffered.

III. Relevant Statutory and Constitutional Provisions

The relevant legislative and Charter provisions are set out below:

Criminal Code

319 (2) Every one who, by communicating statements, other than in private conversation, wilfully promotes hatred against any identifiable group is guilty of (a) an indictable offence and is liable to imprisonment for a term not exceeding two years; or (b) an offence punishable on summary conviction.

(3) No person shall be convicted of an offence under subsection (2)

(a) if he establishes that the statements communicated were true;

(b) if, in good faith, he expressed or attempted to establish by argument an opinion on a religious subject;

(c) if the statements were relevant to any subject of public interest, the discussion of which was for the public benefit, and if on reasonable grounds he believed them to be true; or

(d) if, in good faith, he intended to point out, for the purpose of removal, matters producing or tending to produce feelings of hatred toward an identifiable group in Canada.

(6) No proceeding for an offence under subsection (2) shall be instituted without the consent of the Attorney General.

… 318

(4) In this section [and s. 319], "identifiable group" means any section of the public distinguished by colour, race, religion or ethnic origin.

…

VI. Section 2(b) of the *Charter* - Freedom of Expression

…

The first [constitutional question] concerns whether the *Charter* guarantee of freedom of expression is infringed by s. 319(2) of the *Criminal Code*.

…

Communications which wilfully promote hatred against an identifiable group without doubt convey a meaning, and are intended to do so by those who make them. Because *Irwin Toy* stresses that the type of meaning conveyed is irrelevant to the question of whether s. 2(b) is infringed, that the expression covered by s. 319(2) is invidious and obnoxious is beside the point. It is enough that those who publicly and wilfully promote hatred convey or attempt to convey a meaning, and it must therefore be concluded that the first step of the *Irwin Toy* test is satisfied.

… The purpose of s. 319(2) [is] to restrict the content of expression by singling out particular meanings that are not to be conveyed. Section 319(2) therefore overtly seeks to prevent the communication of 319(2) expression, and hence meets the second requirement of the Irwin Toy test. … I thus find s. 319(2) to constitute an infringement of the freedom of expression guaranteed by s. 2(b) of the *Charter*. …

… [I]t was argued before this Court that the wilful promotion of hatred is an activity the form and consequences of which are analogous to those associated with violence or threats of violence. This argument contends that Supreme Court of Canada precedent excludes violence and threats of violence from the ambit of s.2(b), and that the reason for such exclusion must lie in the fact that these forms of expression are inimical to the values supporting freedom of speech. … Accordingly, we were urged to find that hate propaganda of the type caught by s. 319(2), insofar as it imperils the ability of target group members themselves to convey thoughts and feelings in non-violent ways without fear of censure, is analogous to violence and threats of violence and hence does not fall within s. 2(b).

…

Stated at its highest, an exception has been suggested where meaning is communicated directly via physical violence, the extreme repugnance of this form to free expression values justifying such an extraordinary step. Section 319(2) of the *Criminal Code* prohibits the communication of meaning that is repugnant, but the repugnance stems from the content of the message as opposed to its form. For this reason, I am of the view that hate propaganda is to be categorized as expression so as to bring it within the coverage of s. 2(b).

…

VII. Section 1 Analysis of Section 319(2)

…

C. Objective of Section 319(2)

….

Essentially, there are two sorts of injury caused by hate propaganda. First, there is harm done to members of the target group. It is indisputable that the emotional damage caused by words may be of grave psychological and social consequence.

…

A person's sense of human dignity and belonging to the community at large is closely linked to the concern and respect accorded the groups to which he or she belongs … The derision, hostility and abuse encouraged by hate propaganda therefore have a severely negative impact on the individual's sense of self-worth and acceptance.

…

A second harmful effect of hate propaganda which is of pressing and substantial concern is its influence upon society at large.

…

It is… not inconceivable that the active dissemination of hate propaganda can attract individuals to its cause, and in the process create serious discord between various cultural groups in society.

…

The threat to the self-dignity of target group is thus matched by the possibility that prejudiced messages will gain some credence, with the attendant result of discrimination, and perhaps even violence, against minority groups in Canadian society.

…

[In support of his determination that the objective of s. 319(2) is pressing and substantial Dickson CJ refers to the various human rights treaties that support the prohibition of discrimination and hate speech, and to other provisions in Charter such as s. 15 and s.27.]

…

D. Proportionality

…

(i) Relation of the Expression at Stake to Free Expression Values

…

[T]he interpretation of s. 2(b) under Irwin Toy, gives protection to a very wide range of expression. Content is irrelevant to this interpretation, the result of a high value being placed upon freedom of expression in the abstract. This approach to s. 2(b) often operates to leave unexamined the extent to which the expression at stake in a particular case promotes freedom of expression principles. In my opinion, however, the s. 1

analysis of a limit upon s. 2(b) cannot ignore the nature of the expressive activity which the state seeks to restrict. While we must guard carefully against judging expression according to its popularity, it is equally destructive of free expression values, as well as the other values which underlie a free and democratic society, to treat all expression as equally crucial to those principles at the core of s. 2(b).

…

One must ask whether the expression prohibited by s. 319(2) is tenuously connected to the values underlying s. 2(b) so as to make the restriction "easier to justify than other infringements." …

…

From the outset, I wish to make clear that in my opinion the expression prohibited by s. 319(2) is pression not closely linked to the rationale underlying s. 2(b).

…

At the core of freedom of expression lies the need to ensure that truth and the common good are attained, whether in scientific and artistic endeavors or in the process of determining the best course to take in our political affairs. Since truth and the ideal form of political and social organization can rarely, if at all, be identified with absolute certainty, it is difficult to prohibit expression without impeding the free exchange of potentially valuable information. Nevertheless, the argument from truth does not provide convincing support for the protection of hate propaganda. Taken to its extreme, this argument would require us to permit the communication of all expression, it being impossible to know with absolute certainty which factual statements are true, or which ideas obtain the greatest good. The problem with this extreme position, however, is that the greater the degree of certainty that a statement is erroneous or mendacious, the less its value in the quest for truth. Indeed, expression can be used to the detriment of our search for truth; the state should not be the sole arbiter of truth, but neither should we overplay the view that rationality will overcome all falsehoods in the unregulated marketplace of ideas. There is very little chance that statements intended to promote hatred against an identifiable group are true, or that their vision of society will lead to a better world. To portray such statements as crucial to truth and the betterment of the political and social milieu is therefore misguided.

Another component central to the rationale underlying s. 2(b) concerns the vital role of free expression as a means of ensuring individuals the ability to gain self-fulfillment by developing and articulating thoughts and ideas as they see fit. It is true that s. 319(2) inhibits this process among those individuals whose expression it limits, and hence arguably works against freedom of expression values. On the other hand, such self-autonomy stems in large part from one's ability to articulate and nurture an identity derived from membership in a cultural or religious group. The message put forth by individuals who fall within the ambit of s. 319(2) represents a most extreme opposition to the idea that members of identifiable groups should enjoy this aspect of the s. 2(b) benefit. The extent to which the unhindered promotion of this message furthers free expression values must therefore be tempered in so far as it advocates with inordinate vitriol an intolerance and prejudice which view as execrable the process of individual self-development and human flourishing among all members of society.

… Freedom of expression is a crucial aspect of the democratic commitment, not merely because it permits the best policies to be chosen from among a wide array of proffered options, but additionally because it helps to ensure that participation in the political process is open to all persons. …

The suppression of hate propaganda undeniably muzzles the participation of a few individuals in the democratic process, and hence detracts somewhat from free expression values, but the degree of this limitation is not substantial. …

…

I am very reluctant to attach anything but the highest importance to expression relevant to political matters. But given the unparalleled vigour with which hate propaganda repudiates and undermines democratic values, and in particular its condemnation of the view that all citizens need be treated with equal respect and dignity so as to make participation in the political process meaningful, I am unable to see the protection of such expression as integral to the democratic ideal so central to the s. 2(b) rationale. … In my view, hate propaganda should not be accorded the greatest of weight in the s. 1 analysis.

(ii) Rational Connection

…

[I]t is [sometimes]argued that the provision may actually promote the cause of hate-mongers by earning them extensive media attention. In this vein, it is also suggested that persons accused of intentionally promoting hatred often see themselves as martyrs, and may actually generate sympathy from the community in the role of underdogs engaged in battle against the immense powers of the state. Second, the public may view the suppression of expression by the government with suspicion, making it possible that such expression - even if it be hate propaganda - is perceived as containing an element of truth.

…

[F]rom my perspective, s. 319(2) serves to illustrate to the public the severe reprobation with which society holds messages of hate directed towards racial and religious groups.

…

The many, many Canadians who belong to identifiable groups surely gain a great deal of comfort from the knowledge that the hate-monger is criminally prosecuted and his or her ideas rejected.

…

[I]t can also be said that government suppression of hate propaganda will not make the expression attractive and hence increase acceptance of its content.

…

In sum, having found that the purpose of the challenged legislation is valid, I also find that the means chosen to further this purpose are rational in both theory and operation, and therefore conclude that the first branch of the proportionality test has been met.

…

(iii) Minimal Impairment of the Section 2(b)

…

Terms of Section 319(2)

… [S]tatements made "in private conversation" are not included in the criminalized expression. The provision thus does not prohibit views expressed with an intention to promote hatred if made privately, indicating Parliament's concern not to intrude upon the privacy of the individual.

…

A second important element of s. 319(2) is its requirement that the promotion of hatred be "wilful".

…

… Martin J.A. [in the earlier ONCA decision of *R. v. Buzzanga* held that] this mental element is satisfied only where an accused subjectively desires the promotion of hatred or foresees such a consequence as certain or substantially certain to result from an act done in order to achieve some other purpose.

…

This mental element, requiring more than merely negligence or recklessness as to result, significantly restricts the reach of the provision, and thereby reduces the scope of the targeted expression.

…

It is clear that the word "wilfully" imports a difficult burden for the Crown to meet and, in so doing, serves to minimize the impairment of freedom of expression.

…

It has been argued, however, that even a demanding *mens rea* component fails to give 319(2) a constitutionally acceptable breadth. The problem is said to lie in the failure of the offence to require proof of actual hatred resulting from a communication …

…

[However,] to predicate the limitation of free expression upon proof of actual hatred gives insufficient attention to the severe psychological trauma suffered by members of those identifiable groups targeted by hate propaganda. Second, it is clearly difficult to prove a causative link between a specific statement and hatred of an identifiable group. In fact, to require direct proof of hatred in listeners would severely debilitate the effectiveness of s. 319(2) in achieving Parliament's aim. … [P]roof of actual hatred is not required in order to justify a limit under s. 1.

The next feature of the provision that must be explored is the phrase "promotes hatred against any identifiable group". Given the purpose of the provision to criminalize the spreading of hatred in society, I find that the word "promotes" indicates active support or instigation.

…

The hate-monger must intend or foresee as substantially certain a direct and active stimulation of hatred against an identifiable group. As for the term "identifiable group"', s. 318(4) states that identifiable group" means any section of the public distinguished by colour, race, religion or ethnic origin" The act to be targeted is therefore the intentional fostering of hatred against particular members of our society, as opposed to any individual.

The meaning of "hatred" remains to be elucidated.

…

Noting the purpose of s. 319(2), in my opinion the term "hatred" connotes emotion of an intense and extreme nature that is clearly associated with vilification and intense detestation.

…

Hatred is predicated on destruction, and hatred against identifiable groups therefore thrives on insensitivity, bigotry and destruction of both the target group and of the values of our society. Hatred in this sense is a most extreme emotion that belies reason; an emotion that, if exercised against members of an identifiable group, implies that those individuals are to be despised, scorned, denied respect and made subject to ill-treatment on the basis of group affiliation.

…

The Defences to Section 319(2)

…

A careful reading of the s. 319(3) defences shows them to take in examples of expressive activity that generally would not fall within the "wilful promotion of hatred" as I have defined phrase. … These defences are hence intended to aid in making the scope of the wilful promotion of hatred more explicit …

…

The overlap between s. 319(2) and the defences is less pronounced in the case of the defence of truth, s. 319(3)(a) being more likely than the other defences to excuse the wilful promotion of hatred. This increased likelihood reveals the defence in para. (a) to be an especially poignant indicator of Parliament's cautionary approach and care in protecting freedom of expression. … [I]f a situation arises where an individual uses statements of truth in order to promote hatred against identifiable groups, the accused is acquitted despite the existence of the harm which Parliament seeks to prevent.

…

Alternative Modes of Furthering Parliament's Objective

…

[E]ven though the terms of s. 319(2) and the nature of the available defences expose an individual to conviction only in narrow and clearly defined circumstances, it is said that non-criminal responses can more effectively combat the harm caused by hate propaganda. Most generally, it is said that discriminatory ideas can best be met with information and education programmes extolling the merits of tolerance and cooperation between racial and religious groups. As for the prohibition of hate propaganda, human rights statutes are pointed to as being a less severe and more effective response than the criminal law.

…

In assessing the proportionality of a legislative enactment to a valid governmental objective, however, s. 1 should not operate in every instance so as to force the government to rely upon only the, mode of intervention least intrusive of a *Charter* right or freedom. It may be that a number courses of action are available in the furtherance of a pressing and substantial objective, each imposing a varying degree of restriction upon

aright or freedom.

…

(d) Conclusion as to Minimal Impairment

[T]he terms of s. 319(2) create a narrowly confined offence which suffers from neither overbreadth nor vagueness. This interpretation stems largely from my view that the provision possesses a stringent *mens rea* requirement, necessitating either an intent to promote hatred or knowledge of the substantial certainty of such, and is also strongly supported by the conclusion that the meaning of the word "hatred" is restricted to the most severe and deeply-felt form of opprobrium. …

(iv) Effects of the Limitation

The third branch of the proportionality test entails a weighing of the importance of the state objective against the effect of limits imposed upon a *Charter* right or guarantee.

…

The expressive activity at which this provision aims is of a special category, a category only tenuously connected with the values underlying the guarantee of freedom of speech. Moreover, the narrowly drawn terms of s. 319(2) and its defences prevent the prohibition of expression lying outside of this narrow category. Consequently, the suppression of hate propaganda affected by s. 319(2) represents an impairment of the individual's freedom of expression which is not of a most serious nature.

[The majority concluded that s. 319(2) was a justified limit on the *Charter*'s freedom of expression right].

[McLachlin J dissenting (Sopinka J. and LaForest J concurring) argued that the restriction could not be justified under s.1. Notably she argued that the line separating hate speech from valuable forms of expression might be drawn in the wrong place so that expression that ought to be protected is not. She further argued that even if the court managed to draw the line in the right place, the hate speech ban might have a "chilling effect" on legitimate expression: some community members might be reluctant to publish material, even valuable material that should not, and probably would not, be caught by the restriction, because they would be unwilling to take the risk that it might fall afoul of a criminal prohibition that did not have a clearly defined scope.]

3.3.2 Canada (Human Rights Commission) v. Taylor

Canada (Human Rights Commission) v. Taylor**,** 1990 CanLII 26 (SCC), **[1990] 3 SCR 892**

The judgment of Dickson C.J. and Wilson, L'Heureux-Dubé and Gonthier JJ. was delivered by

DICKSON C.J. -- Section 13(1) of the *Canadian Human Rights Act*, S.C. 1976-1977, c. 33, provides that:

13. (1) It is a discriminatory practice for a person or a group of persons acting in concert to communicate telephonically or to cause to be so communicated, repeatedly, in whole or in part by means of the facilities of a telecommunication undertaking within the legislative authority of Parliament, any matter that is likely to expose a person or persons to hatred or contempt by reason of the fact that that person or those persons are identifiable on the basis of a prohibited ground of discrimination.

Prohibited grounds of discrimination are set out in s. 2 of the Act, and include (though are not restricted to) race, national or ethnic origin, colour and religion.

The primary issue in this appeal is whether s. 13(1), in so far as it restricts the communication of certain telephone messages, violates the "freedom of expression" as guaranteed by s. 2(b) of the *Canadian Charter of Rights and Freedoms.*

…

A. *Section 13(1): Infringement of Section 2(b)*

…

The initial step in determining whether s. 13(1) violates the *Charter* is to decide whether the sphere of the freedom entrenched in s. 2(*b*) extends to telephone communications likely to expose persons to hatred or contempt by reason of identification on the basis of race or religion.

…

Applying the *Irwin Toy* approach to the facts of this appeal, I have no doubt that the activity described by s. 13(1) is protected by s. 2(*b*) of the *Charter*. Indeed, the point is conceded by the respondent Commission. To begin with, it is self-evident that this activity conveys or attempts to convey a meaning, the medium in issue to my mind being susceptible to no other use. Indeed, I find it impossible to conceive of an instance where the "telephonic communication of matter" (to paraphrase the language of s. 13(1)) could not be said to involve a conveyance of meaning. The inescapable conclusion is that the activity affected by s. 13(1) constitutes "expression" as the term is envisioned by s. 2(*b*).

As for the *Irwin Toy* requirement that the purpose or effect of the impugned regulatory measure be to restrict expressive activity, it is clear that Parliament s aim in passing s. 13(1) is to constrain expression communicated by telephone, for the section operates to prohibit directly messages likely to expose certain persons or groups of persons to hatred or contempt. The desire of the government in enacting s. 13(1) being to restrict expression by singling out for censure particular conveyances of meaning, the second requirement of *Irwin Toy* is met, necessarily leading to the conclusion that s. 2(*b*) is infringed.

…

B. *Section 13(1): Analysis Under Section 1 of the Charter*

…

Objective

I believe that the broad legislative intent in implementing s. 13(1) can be gleaned directly from the statute in which it is found. The purpose of the *Canadian Human Rights Act* is stated as follows in s. 2:

> 2. The purpose of this Act is to extend the present laws in Canada to give effect, within the purview of matters coming within the legislative authority of the Parliament of Canada, to the principle that every individual should have an equal opportunity with other individuals to make for himself or herself the life that he or she is able and wishes to have, consistent with his or her duties and obligations as a member of society, without being hindered in or prevented from doing so by discriminatory practices based on race, national or ethnic origin, colour, religion, age, sex, marital status, family status, disability or conviction for an offence for which a pardon has been granted.

It is this purpose -- the promotion of equal opportunity unhindered by discriminatory practices based on, inter alia, race or religion -- which informs the objective of s. 13(1). In denoting the activity described in s. 13(1) as a discriminatory practice, Parliament has indicated that it views repeated telephonic communications likely to expose individuals or groups to hatred or contempt by reason of their being identifiable on the basis of certain characteristics as contrary to the furtherance of equality.

… The serious harm caused by messages of hatred was identified by the Special Committee on Hate Propaganda in Canada, commonly known as the Cohen Committee, in 1966. The Cohen Committee noted that individuals subjected to racial or religious hatred may suffer substantial psychological distress, the damaging consequences including a loss of self-esteem, feelings of anger and outrage and strong pressure to renounce cultural differences that mark them as distinct. … As well, the Committee observed that hate propaganda can operate to convince listeners, even if subtlely, that members of certain racial or religious groups are inferior. The result may be an increase in acts of discrimination, including the denial of equal opportunity in the provision of goods, services and facilities, and even incidents of violence.

…

In seeking to prevent the harms caused by hate propaganda, the objective behind s. 13(1) is obviously one of pressing and substantial importance sufficient to warrant some limitation upon the freedom of expression. It is worth stressing, however, the heightened importance attached to this objective by reason of international human rights instruments to which Canada is a party and ss. 15 and 27 of the Charter.

…

Proportionality

… [I]n balancing interests within s. 1, one cannot ignore the setting in which the s. 2(b) freedom is raised. … [A] contextual approach to s. 1 demands an appreciation of the extent to which a restriction of the activity at issue on the facts of the particular case debilitates or compromises the principles underlying the broad guarantee of freedom of expression.

…

… I am of the opinion that hate propaganda contributes little to the aspirations of Canadians or Canada in either the quest for truth, the promotion of individual self-development or the protection and fostering of a vibrant democracy where the participation of all individuals is accepted and encouraged. While I cannot conclude that hate propaganda deserves only marginal protection under the s. 1 analysis, I can take cognizance of the fact that limitations upon hate propaganda are directed at a special category of expression which strays some distance from the spirit of s. 2(b), and hence conclude that "restrictions on expression of this kind might be easier to justify than other infringements of s. 2(b)" (Royal College, supra, at p. 247).

… The unusually extreme extent to which the expression at stake in this appeal attacks the s. 2(b) rationale … requires that the proportionality analysis be carried out with the recognition that the suppression of hate propaganda does not severely abridge free expression values. …

(i) *Rational Connection*

In my view, once it is accepted that hate propaganda produces effects deleterious to the guiding principles of s. 2 of the *Canadian Human Rights Act*, there remains no question that s. 13(1) is rationally connected to the aim of restricting activities antithetical to the promotion of equality and tolerance in society. The section labels as discriminatory the transmission of messages likely to expose individuals to hatred or contempt by reason of their being identifiable on the basis of certain characteristics, including race and religion. Sections 41 and 42 of the Act allow the Human Rights Tribunal to issue a cease and desist order against an individual found to be engaging in this discriminatory practice, and this order can be enforced upon application to the Federal Court of Canada by the Commission (s. 43). In sum, when conjoined with the remedial provisions of the *Canadian Human Rights Act*, s. 13(1) operates to suppress hate propaganda and its harmful consequences, and hence is rationally connected to furthering the object sought by Parliament.

… The process of hearing a complaint made under s. 13(1) and, if the complaint is substantiated, issuing a cease and desist order reminds Canadians of our fundamental commitment to equality of opportunity and the eradication of racial and religious intolerance. In addition, although criminal law is not devoid of impact upon the rehabilitation of offenders, the conciliatory nature of the human rights procedure and the absence of criminal sanctions make s. 13(1) especially well suited to encourage reform of the communicator of hate propaganda.

…

(ii) *Minimal Impairment*

…

When considering the scope of the phrase "hatred or contempt", it is worthwhile mentioning that the nature of human rights legislation militates against an unduly narrow reading of s. 13(1). … I therefore do not wish to transgress the well-established principle that the rights enumerated in such a code should be given their full recognition and effect through a fair, large and liberal interpretation. At the same time, however, the purposive definition to be given a human rights code cannot extend so far as to permit the limitation of a *Charter* right or freedom not otherwise justified under s. 1.

In my view, there is no conflict between providing a meaningful interpretation of s. 13(1) and protecting the s. 2(*b*) freedom of expression so long as the interpretation of the words "hatred" and "contempt" is fully informed by an awareness that Parliament's objective is to protect the equality and dignity of all individuals by reducing the incidence of harm-causing expression. Such a perspective was employed by the Human Rights Tribunal in *Nealy v. Johnston* (1989), 1989 CanLII 151 (CHRT), 10 C.H.R.R. D/6450, the most recent decision regarding s. 13(1), where it was noted, at p. D/6469, that:

> In defining "hatred" the Tribunal [in *Taylor*] applied the definition in the *Oxford English Dictionary* (1971 ed.) which reads (at p. 28): "active dislike, detestation, enmity, ill-will, malevolence".

The Tribunal drew on the same source for their definition of "contempt". It was characterized as the condition of being condemned or despised; dishonour or disgrace.

> As there is no definition of "hatred" or "contempt" within the [*Canadian Human Rights Act*] it is necessary to rely on what might be described as common understandings of the meaning of these terms. Clearly these are terms which have a potentially emotive content and how they are related to particular factual contexts by different individuals will vary. There is nevertheless an important core of meaning in both, which the dictionary definitions capture. *With "hatred" the focus is a set of emotions and feelings which involve extreme ill will towards another person or group of persons. To say that one "hates" another means in effect that one finds no redeeming qualities in the latter.* It is a term, however, which does not necessarily involve the mental process of "looking down" on another or others. It is quite possible to "hate" someone who one feels is superior to one in intelligence, wealth or power. None of the synonyms used in the dictionary definition for "hatred" give any clues to the motivation for the ill will. "Contempt" is by contrast a term which suggests a mental process of "looking down" upon or treating as inferior the object of one's feelings. This is captured by the dictionary definition relied on in *Taylor* . . . in the use of the terms "despised",

> "dishonour" or "disgrace". Although the person can be "hated" (i.e. actively disliked) and treated with "contempt" (i.e. looked down upon), the terms are not fully coextensive, because "hatred" is in some instances the product of envy of superior qualities, which "contempt" by definition cannot be. [Emphasis added.]

The approach taken in *Nealy* gives full force and recognition to the purpose of the *Canadian Human Rights Act* while remaining consistent with the *Charter*. The reference to "hatred" in the above quotation speaks of "extreme" ill-will and an emotion which allows for "no redeeming qualities" in the person at whom it is directed. "Contempt" appears to be viewed as similarly extreme, though is felt by the Tribunal to describe more appropriately circumstances where the object of one's feelings is looked down upon. According to the reading of the Tribunal, s. 13(1) thus refers to unusually strong and deep-felt emotions of detestation, calumny and vilification, and I do not find this interpretation to be particularly expansive. To the extent that the section may impose a slightly broader limit upon freedom of expression than does s. 319(2) of the *Criminal Code*, however, I am of the view that the conciliatory bent of a human rights statute renders such a limit more acceptable than would be the case with a criminal provision.

In sum, the language employed in s. 13(1) of the *Canadian Human Rights Act* extends only to that expression giving rise to the evil sought to be eradicated and provides a standard of conduct sufficiently precise to prevent the unacceptable chilling of expressive activity. Moreover, as long as the Human Rights Tribunal continues to be well aware of the purpose of s. 13(1) and pays heed to the ardent and extreme nature of feeling described in the phrase "hatred or contempt", there is little danger that subjective opinion as to offensiveness will supplant the proper meaning of the section.

…

While words in s. 13(1) such as "hatred" and "contempt" can be read consistently with both the intent of Parliament to eradicate hate propaganda and a minimal impairment of s. 2(*b*) of the *Charter*, the appellants argue that no sympathetic interpretation can remedy the overbreadth created by reason of the section's lack of an intent requirement. The focus of s. 13(1) is solely upon likely effects, it being irrelevant whether an individual wishes to expose persons to hatred or contempt on the basis of their race or religion. This inconsequentiality of intent is said to impinge seriously and unnecessarily upon the freedom of expression, and indeed in my reasons in *Keegstra* particular emphasis is placed upon the stringent intent requirement in saving s. 319(2) of the *Criminal Code* under s. 1 of the *Charter*. …

An intent to discriminate is not a precondition of a finding of discrimination under human rights codes … The preoccupation with effects, and not with intent, is readily explicable when one considers that systemic discrimination is much more widespread in our society than is intentional discrimination. To import a subjective intent requirement into human rights provisions, rather than allowing tribunals to focus solely upon effects, would thus defeat one of the primary goals of anti-discrimination statutes. At the same time, however, it cannot be denied that to ignore intent in determining whether a discriminatory practice has taken place according to s. 13(1) increases the degree of restriction upon the constitutionally protected freedom of expression. This result flows from the realization that an individual open to condemnation and censure because his or her words may have an unintended effect will be more likely to exercise caution via self-censorship.

… [I]t seems to me that the important Parliamentary objective behind s. 13(1) can only be achieved by ignoring intent, and therefore the minimal impairment requirement of the *Oakes* proportionality test is not transgressed.

In coming to this conclusion, I do not mean to say that the purpose of eradicating discrimination in all its forms can justify any degree of impairment upon the freedom of expression, but it is well to remember that the present appeal concerns an infringement of s. 2(*b*) in the context of a human rights statute. The chill placed upon open expression in such a context will ordinarily be less severe than that occasioned where criminal legislation is involved, for attached to a criminal conviction is a significant degree of stigma and punishment, whereas the extent of opprobrium connected with the finding of discrimination is much diminished and the aim of remedial measures is more upon compensation and protection of the victim. …

…[I]t is my opinion that the absence of an intent component in s. 13(1) raises no problem of minimal impairment when one considers that the objective of the section requires an emphasis upon discriminatory effects. Moreover, and this is where I am perhaps jumping ahead to the "effects" component of the proportionality test, the purpose and impact of human rights codes is to prevent discriminatory effects rather than to stigmatize and punish those who discriminate. Consequently, in this context the absence of intent in s. 13(1) does not impinge so deleteriously upon the s. 2(*b*) freedom of expression so as to make intolerable the challenged provision's existence in a free and democratic society.

…

Although I have found the absence of an intent requirement in s. 13(1) to be constitutionally acceptable, the section evinces yet another feature which is said to give it a fatally broad scope. In contrast to s. 319(2) of the *Criminal Code*, s. 13(1) provides no defences to the discriminatory practice it describes, and most especially does not contain an exemption for truthful statements. Accepting that the value of truth in all facets of life, including the political, is central to the s. 2(*b*) guarantee, the question becomes whether a restriction upon freedom of expression is excessive where it operates to suppress statements which are either truthful or perceived to be truthful.

In *Keegstra*, I dealt in considerable detail with hate propaganda and the defence of truth, though in relation to the criminal offence of wilfully promoting hatred against an identifiable group. … :

> … Truth may be used for widely disparate ends, and I find it difficult to accept that circumstances exist where factually accurate statements can be used for no other purpose than to stir up hatred against a racial or religious group. It would seem to follow that there is no reason why the individual who intentionally employs such statements to achieve harmful ends must under the Charter be protected from criminal censure.

For the reasons given in the above quotation, I am of the view that the *Charter* does not mandate an exception for truthful statements in the context of s. 13(1) of the *Canadian Human Rights Act*.

I am of course aware that my comments in *Keegstra* related to a provision where an individual could only be convicted upon proof that he or she intended to promote hatred, and that in *Keegstra* the presence of such an intention was specifically emphasized. Clearly, an intention to expose others to hatred or contempt on the basis of race or religion is not required in s. 13(1). As I have just explained, however, s. 13(1) operates within the context of a human rights statute. Accordingly, the importance of isolating effects (and hence ignoring intent) justifies this absence of a *mens rea* requirement. I also reiterate the point that the impact of the impugned section is less confrontational than would be the case with a criminal prohibition, the legislative framework encouraging a conciliatory settlement and forbidding the imposition of imprisonment unless an individual intentionally acts in a manner prohibited by an order registered with the Federal Court. …

…

As the preceding discussion shows, the freedom of expression is not unnecessarily impaired by s. 13(1) of the *Canadian Human Rights Act*. The terms of the section, in particular the phrase "hatred or contempt", are sufficiently precise and narrow to limit its impact to those expressive activities which are repugnant to Parliament's objective of promoting equality and tolerance in society. …

Though it is true that the absence of an intent requirement under s. 13(1) may make the section wider in scope than the criminal provision upheld in *Keegstra*, this particular distinction is made necessary by the important objective of the *Canadian Human Rights Act* of eradicating systemic discrimination. Moreover, intent is far from irrelevant when imposing incarcerating sanctions upon an individual by way of a contempt order, subjective awareness of the likely effect of one's messages being a necessary precondition for the issuance of such an order by the Federal Court. A similar point can be made regarding the lack of defences offered under the Act, though as I have noted it is quite conceivable that the full panoply of defences is not constitutionally required in even a criminal provision. Finally, by focusing upon "repeated" telephonic messages, s. 13(1) directs its attention to public, larger-scale schemes for the dissemination of hate propaganda, the very type of phone use which most threatens the admirable aim underlying the *Canadian Human Rights Act*.

(iii) *Effects*

It will be apparent from the preceding discussion that I do not view the effects of s. 13(1) upon the freedom of expression to be so deleterious as to make intolerable its existence in a free and democratic society. The section furthers a government objective of great significance and impinges upon expression exhibiting only tenuous links with the rationale underlying the freedom of expression guarantee. Moreover, operating in the context of the procedural and remedial provisions of the *Canadian Human Rights Act*, s. 13(1) plays a minimal role in the imposition of moral, financial or incarcerating sanctions, the primary goal being to act directly for the benefit of those likely to be exposed to the harms caused by hate propaganda. It is therefore my opinion that the degree of limitation imposed upon the freedom of expression by s. 13(1) is not unduly harsh, and that the third requirement of the *Oakes* proportionality approach is satisfied.

C. *Section 13(1) and the Freedom of Expression: Conclusion Under Section 1 of the Charter*

Having found that the effects of s. 13(1) are acceptable in light of the important objective sought by Parliament, I conclude that the government has satisfactorily demonstrated the proportionality of the provision. Consequently, s. 13(1) is saved under s. 1 of the *Charter* as a limit reasonable in a free and democratic society. …

[McLachlin J dissenting (LaForest and Sopinka JJ concurring) thought that the restriction was not carefully tailored to its aims and was overly broad in its scope].

3.3.3 *Saskatchewan (Human Rights Commission) v. Whatcott*

***Saskatchewan (Human Rights Commission) v. Whatcott*, 2013 SCC 11, [2013] 1 SCR 467**

The judgment of the Court was delivered by

ROTHSTEIN J. —

…

[3] Four complaints were filed with the Saskatchewan Human Rights Commission ("Commission") concerning four flyers published and distributed by the respondent, William Whatcott. The flyers were distributed to the public and targeted homosexuals and were challenged by the complainants on the basis that they promoted hatred against individuals because of their sexual orientation. The Saskatchewan Human Rights Tribunal ("Tribunal") held that the flyers constituted publications that contravened s. 14 of *The Saskatchewan Human Rights Code*, S.S. 1979, c. S-24.1 ("*Code*") as they exposed persons to hatred and ridicule on the basis of their sexual orientation: (2005), 2005 CanLII 80912 (SK HRT), 52 C.H.R.R. D/264. Section 14(1)(b) of the *Code* prohibits the publication or display of any representation "that exposes or tends to expose to hatred, ridicules, belittles or otherwise affronts the dignity of any person or class of persons on the basis of a prohibited ground". The *Code* lists "sexual orientation" as a prohibited ground (s. 2(1)(m.01)(vi))….

…

[5] Two issues arise in this appeal. The first is whether s. 14(1)(b) of the *Code* is constitutional. If so, a second issue arises as to whether the Tribunal's application of that provision in the context of this case should have been upheld.

[6] I conclude that although s. 14(1)(b) of the *Code* infringes Mr. Whatcott's rights under both ss. 2(*a*) and 2(*b*) of the *Charter*, the infringement is justified under s. 1 of the *Charter*. This Court's approach in *Keegstra* and *Taylor*, with some modification, sets out an acceptable method for determining how to balance the competing rights and interests at play.

…

[35] In the present context, the courts have confirmed that when applying a prohibition based on hatred, the outcome does not depend on the subjective views of the publisher or of the victim of the alleged hate publication, but rather on an objective application of the test … The courts pose the question of whether, "when considered objectively by a reasonable person aware of the relevant context and circumstances, the speech in question would be understood as exposing or tending to expose members of the target group to hatred" … In the course of this assessment, a judge or adjudicator is expected to put his or her personal views aside and to base the determination on what he or she perceives to be the rational views of an informed member of society, viewing the matter realistically and practically.

…

[41] In my view, "detestation" and "vilification" aptly describe the harmful effect that the *Code* seeks to eliminate. Representations that expose a target group to detestation tend to inspire enmity and extreme ill-will against them, which goes beyond mere disdain or dislike. Representations vilifying a person or group will seek to abuse, denigrate or delegitimize them, to render them lawless, dangerous, unworthy or unacceptable in the eyes of the audience. Expression exposing vulnerable groups to detestation and vilification goes far beyond merely discrediting, humiliating or offending the victims. …

[42] … While hate speech often uses the device of inflammatory falsehoods and misrepresentations to persuade and galvanize its audience, the use of such tools is not necessary to a finding that the expression exposes its targeted group to hatred. Nor would false misrepresentations, alone, be sufficient to constitute hate speech. …

…

[44] In the years following *Taylor*, there has been considerable human rights jurisprudence and academic commentary about what constitutes hate speech. The types of expression and devices used to expose groups to hatred were summarized as the "hallmarks of hate" enumerated in *Warman v. Kouba*, 2006 CHRT 50 (CanLII), at paras. 24-81. Hate speech often vilifies the targeted group by blaming its members for the current problems in society, alleging that they are a "powerful menace" (para. 24); that they are carrying out secret conspiracies to gain global control (*Citron v. Zündel (No. 4)* (2002), 2002 CanLII 78205 (CHRT), 41 C.H.R.R. D/274 (C.H.R.T.)); or plotting to destroy western civilization (*Taylor*). Hate speech also further delegitimizes the targeted group by suggesting its members are illegal or unlawful, such as by labelling them "liars, cheats, criminals and thugs" (*Citron*, at para. 140); a "parasitic race" or "pure evil": *Warman v. Tremaine (No. 2)*, 2007 CHRT 2, 59 C.H.R.R. D/391, at para. 136.

[45] Exposure to hatred can also result from expression that equates the targeted group with groups traditionally reviled in society, such as child abusers, pedophiles (*Payzant v. McAleer* (1994), 1994 CanLII 2035 (CHRT), 26 C.H.R.R. D/271 (C.H.R.T.), aff'd (1996), 1996 CanLII 4026 (FC), 26 C.H.R.R. D/280 (F.C.T.D.)), or "deviant criminals who prey on children": *Warman v. Northern Alliance*, 2009 CHRT 10 (CanLII), at para. 43. One of the most extreme forms of vilification is to dehumanize a protected group by describing its members as animals or as subhuman. References to a group as "horrible creatures who ought not to be allowed to live" (*Northern Alliance*, at para. 43); "incognizant primates", "genetically inferior" and "lesser beasts" (*Center for Research-Action on Race Relations v. www.bcwhitepride.com*, 2008 CHRT 1 (CanLII), at para. 53); or "sub-human filth" (*Warman v. Winnicki (No. 2)*, 2006 CHRT 20, 56 C.H.R.R. D/381, at para. 101) are examples of dehumanizing expression that calls into question whether group members qualify as human beings.

[46] As these examples illustrate, courts have been guided by the *Taylor* definition of hatred and have generally identified only extreme and egregious examples of delegitimizing expression as hate speech. This approach excludes merely offensive or hurtful expression from the ambit of the provision and respects the legislature's choice of a prohibition predicated on "hatred".

…

[51] … Hate speech legislation is not aimed at discouraging repugnant or offensive ideas. It does not, for example, prohibit expression which debates the merits of reducing the rights of vulnerable groups in society. It only restricts the use of expression exposing them to hatred as a part of that debate. It does not target the ideas, but their mode of expression in public and the effect that this mode of expression may have.

[52] An assessment of whether expression exposes a protected group to hatred must therefore include an evaluation of the likely effects of the expression on its audience. Would a reasonable person consider that the expression vilifying a protected group has the potential to lead to discrimination and other harmful effects? This assessment will depend largely on the context and circumstances of each case.

…

[54] Dickson C.J. [in Taylor] emphasized this need to focus on *the effects* of the expression in his reasons in *Taylor.* He noted that "the purpose and impact of human rights codes is to prevent discriminatory effects rather than to stigmatize and punish those who discriminate" (p. 933 (emphasis added)). … Dickson C.J. reasoned that the preoccupation with the discriminatory effects was understandable, given that systemic discrimination is more widespread than intentional discrimination. Tribunals must focus on the likely effects of impugned expression in order to achieve the preventive goals of anti- discrimination statutes.

VII. Constitutional Analysis

Whether Section 14(1)(b) Infringes Freedom of Expression Under Section 2(b) of the Charter

[62] … The activity described in s. 14(1)(b) — the publication or display of certain types of expression — has expressive content and falls within the scope of s. 2(*b*) protection. The purpose of s.14(1)(b) is to prevent discrimination by curtailing certain types of public expression.

Section 1 — Whether the Infringement Is Demonstrably Justified in a Free and Democratic Society

…

Is the Objective for Which the Limit Is Imposed Pressing and Substantial?

…

[71] Hate speech is, at its core, an effort to marginalize individuals based on their membership in a group. Using expression that exposes the group to hatred, hate speech seeks to delegitimize group members in the eyes of the majority, reducing their social standing and acceptance within society. When people are vilified as blameworthy or undeserving, it is easier to justify discriminatory treatment. The objective of s. 14(1)(b) may be understood as reducing the harmful effects and social costs of discrimination by tackling certain causes of discriminatory activity.

…

[74] Hate speech, therefore, rises beyond causing emotional distress to individual group members. It can have a societal impact. If a group of people are considered inferior, subhuman, or lawless, it is easier to justify denying the group and its members equal rights or status. … As the majority becomes desensitized by the effects of hate speech, the concern is that some members of society will demonstrate their rejection of the vulnerable group through conduct. Hate speech lays the groundwork for later, broad attacks on vulnerable groups. These attacks can range from discrimination, to ostracism, segregation, deportation, violence and, in the most extreme cases, to genocide: …

[75] Hate speech is not only used to justify restrictions or attacks on the rights of protected groups on prohibited grounds. As noted by Dickson C.J., at p. 763 of *Keegstra*, hate propaganda opposes the targeted group's ability to find self-fulfillment by articulating their thoughts and ideas. It impacts on that group's ability to respond to the substantive ideas under debate, thereby placing a serious barrier to their full participation in our democracy. Indeed, a particularly insidious aspect of hate speech is that it acts to cut off any path of reply by the group under attack. It does this not only by attempting to marginalize the group so that their reply will be ignored: it also forces the group to argue for their basic humanity or social standing, as a precondition to participating in the deliberative aspects of our democracy.

…

[77] … I therefore have no difficulty in determining that the purpose of the legislation is pressing and substantial.

Proportionality

…

[80] … Hate speech seeks to marginalize individuals based on their group characteristics. As such, in order to satisfy the rational connection requirement, the expression captured under legislation restricting hate speech must rise to a level beyond merely impugning individuals: it must seek to marginalize the group by affecting its social status and acceptance in the eyes of the majority.

…

[82] Societal harm flowing from hate speech must be assessed as objectively as possible. The feelings of the publisher or victim are not the test: ... While the emotional damage from hate speech is indeed troubling, protecting the emotions of an individual group member is not rationally connected to the overall purpose of reducing discrimination. … Instead, the focus must be on the likely effect of the hate speech on how individuals external to the group might reconsider the social standing of the group. Ultimately, it is the need to protect the societal standing of vulnerable groups that is the objective of legislation restricting hate speech.

…

[84] … A prohibition of hate speech will only be rationally connected to the objective if its ambit is limited to expression publicly directed at a protected group, or at an individual on the basis that he or she is a member of that group.

…

[The Court held that the restriction on ridicule and belittlement in s. 14 was not a justified limit because it was not "not rationally connected to the legislative purpose of addressing systemic discrimination of protected groups" (para 92).]

…

(b) *Minimal Impairment*

…

Alternative Methods of Furthering the Legislature's Objectives

[102] Two alternatives have been suggested that would better serve the goal of eradicating hate speech than the provisions of the *Code*. One is that trust should be placed in the "marketplace of ideas" to arrive at the appropriate balancing of competing rights and conflicting views. The other is that the prosecution of hate speech ought to be left to the criminal law.

…

[104] … [I]n *Keegstra*, Dickson C.J. set out a compelling rationale for why Parliament's preference to regulate hate speech through legislation rather than to trust it to the hands of the marketplace was also reasonable. … In his view, paradoxically, hate speech undermines the principles upon which freedom of expression is based … While hate speech may achieve the self-fulfillment of the publisher, it does so by reducing the participation and self-fulfillment of individuals within the vulnerable group. These drawbacks suggest that this alternative is not without its concerns.

[105] Others suggest that to minimally impair expression, hate speech should be dealt with through criminal law prohibitions or other prohibitions restricting only speech which threatens, advocates or justifies violence …

[106] Having canvassed the proposed alternatives to the civil law remedy, I cannot say that any one represents such a superior approach as to render the others unreasonable. Section 14(1)(b) of the *Code* is within the range of reasonable alternatives that was available to the legislature.

…

3. *Political Discourse*

…

[117] Finding that certain expression falls within political speech does not close off an enquiry into whether the expression constitutes hate speech. Hate speech may often arise as a part of a larger public discourse but, as discussed in *Keegstra* and *Taylor*, it is speech of a restrictive and exclusionary kind. Political expression contributes to our democracy by encouraging the exchange of opposing views. Hate speech is antithetical to this objective in that it shuts down dialogue by making it difficult or impossible for members of the vulnerable group to respond, thereby stifling discourse. Speech that has the effect of shutting down public debate cannot dodge prohibition on the basis that it promotes debate.

…

(iv) Conclusion on Minimal Impairment

[145] The prohibition against hate speech involves balancing between freedom of expression and equality rights. People are free to debate or speak out against the rights or characteristics of vulnerable groups, but not in a manner which is objectively seen to expose them to hatred and its harmful effects. The only expression that should be suppressed by the prohibition is that which Dickson C.J. recognized in *Keegstra* as straying "some distance from the spirit of s. 2(*b*) [of the *Charter*]" (p. 766).

…

(c) *Whether the Benefits Outweigh the Deleterious Effects*

…

[148] As is apparent from the above analysis, in my opinion, the benefits of the suppression of hate speech and its harmful effects outweigh the detrimental effect of restricting expression which, by its nature, does little to promote the values underlying freedom of expression. Section 14(1)(b) of the *Code* represents a choice by the legislature to discourage hate speech and its harmful effects on both the vulnerable group and on society as a whole, in a manner that is conciliatory and remedial. In cases such as the present, the process under the legislation can provide guidance to individuals like Mr. Whatcott, so that they can continue expressing their views in a way that avoids falling within the narrow scope of expression captured by the statutory prohibition. The protection of vulnerable groups from the harmful effects emanating from hate speech is of such importance as to justify the minimal infringement of expression that results from the restriction of materials of this kind.

[The court also found that any breach of s. 2(a) was justified under s.1.]

[The court then applied s. 14 to the flyers that were distributed by Mr Whatcott. The court decided that two of the flyers contained text that breached the hate speech ban, while the other two did not. The court thought that a "reasonable observer" would conclude that two of the flyers were likely to expose gays and lesbians to hatred because they displayed several of the "hallmarks": "portray[ing] the targeted group as a menace that could threaten the safety and well-being of others," and children, in particular, drawing on authoritative sources, such as the Bible, "to lend credibility to the negative generalizations," and creating "a tone of hatred" through the use of "vilifying and derogatory representations" that described gays as "filthy" and "degenerated" (187–8). The court found that the other two flyers did not breach the code. In the court's view, while the flyers may have been offensive, a reasonable person, "aware of the relevant context and circumstances" would not read these flyers "as exposing or likely to expose persons of same-sex orientation to detestation and vilification" (196).]

3.3.4 Further reading

1. Bill-63: Online Harms Act (2024): https://www.parl.ca/DocumentViewer/en/44-1/bill/C-63/first-reading
2. Richard Moon, Freedom of Expression, Background Paper for the Public Order Emergency Commission, 2022 pp11 -18: https://publicorderemergencycommission.ca/files/documents/Policy-Papers/Freedom-of-Expression-Moon.pdf

3.3.5 Case note: Zundel

In *R v. Zundel,* 1992 CanLII 75 (SCC), [1992] 2 SCR 731, a writer and publisher of Holocaust denial material was prosecuted under s. 181 of the Criminal Code, which prohibits the wilful publication of "a statement, tale or news that [the publisher] knows is false and causes or is likely to cause injury or mischief to a public interest." The crime of spreading "false news" had been introduced in England in 1275 and was intended to protect the nobility from scurrilous attacks. The offence was included in the first Canadian *Criminal Code* in 1892, even though it had been repealed in England several years earlier. The case against Zundel was brought under this obscure provision because the Attorney General of Ontario had declined to give his consent to the prosecution of Zundel under the *Criminal Code* ban on the wilful promotion of hatred. The case consequently began as a private prosecution; however, the Crown took over the case prior to the trial. The jury in the case

decided that Zundel knew that his claims were false and found him guilty of the offence. However, the Supreme Court of Canada, in a majority judgment written by McLachlin J, decided that s. 181 breached s. 2(b) and could not be justified under s. 1. McLachlin J decided that lies and exaggerations fall within the scope of s. 2(b) because such statements convey a message and may sometimes be of public value:

> Exaggeration – even clear falsification – may arguably serve useful social purposes linked to the values underlying freedom of expression. A person fighting cruelty to animals may knowingly cite false statistics in pursuit of his or her beliefs and with the purpose of communicating a more fundamental message, e.g., "cruelty must be stopped." A doctor, in order to persuade people to be inoculated against a burgeoning epidemic, may exaggerate the number or geographical location of persons potentially infected with the virus. … All of this expression arguably has intrinsic value in fostering political participation and individual self-fulfillment. To accept the proposition that deliberate lies can never fall under s. 2(b) would be to exclude statements such as the examples above from the possibility of constitutional protection. I cannot accept that such was the intention of the framers of the Constitution. (*Zundel* 1992, 754)

Having decided that lies are protected speech, and therefore that s. 181 breached s. 2(b), McLachlin J went on to consider whether the restriction was justified under s. 1. In her view, neither the language of the provision nor its legislative history pointed to a legitimate purpose for the law. She argued that even if the dissenting judges were right that the purpose of the provision could now be viewed as the protection of racial and social tolerance, the ban on false news was vague and overbroad and so failed the minimal impairment element of the *Oakes* test. She was particularly concerned that, in applying the provision, a court would infer "knowledge of falsity" when the statement "diverge[d] from prevailing or officially accepted beliefs" (*Zundel* 1992). The consequence of this would be that an individual could be convicted "for virtually any statement which does not accord with currently accepted 'truths'" (*Zundel* 1992).

3.3.6 Questions

1. How does hate speech cause harm? Is its restriction compatible with the constitutional protection of free expression?
2. If hate speech should be restricted, is it better to do so though the criminal law, human rights codes, or other means?
3. Should lies be protected under s.2(b)? Do they have value, as McLachlin J. claimed in *Zundel*?

3.4 Harassing and bullying expression

There are a variety of laws in Canada that restrict insults directed at individuals or groups in particular contexts. It is accepted that racist, sexist, and other insults should be banned in the workplace, in schools, and in other similar environments, where they are difficult to avoid. The workplace environment is both closed and hierarchical and so a higher standard of civility may reasonably be expected. There is also increasing support for bans on racist and other types of insult in public spaces, such as a downtown street or public park.

When insults are directed at group members in the workplace or the streets, the abuser and the abused, occupy the same physical space – the school yard, the office, the street. The insults can be difficult to avoid whether they come from one or a few individuals in the workplace or from a succession of strangers in the streets. Most abuse, though, now takes place online – on X (Twitter), and other social media platforms. Social media has enlarged the space in which harassment and abuse occur. The parameters of the virtual space that abuser and abused occupy are less easily defined and can encompass a potentially large group of individuals. Abuse online can be anonymous, extensive, and persistent.

Several provinces have enacted cyber-bulling laws, which apply primarily in the education context. These laws prohibit a number of activities, such as threats, harassment, counselling suicide, and impersonating someone online. The *Criminal Code* prohibits criminal harassment (s. 264(1)) and uttering threats (s. 264.1(1)) and now includes a ban on publishing or transmitting intimate images of a person, without that person's consent (s. 62.1).

3.4.1 Case notes: Chaplinsky and Snyder

In *Chaplinsky v. New Hampshire,* 315 US 568, 569 1942, the US Supreme Court held that "fighting words" – those which "by their very utterance inflict injury or tend to incite an immediate breach of the peace" fell outside the scope of First Amendment protection. "Such words," said the court, "as ordinary people know, are likely to cause a fight" (*Chaplinsky* 1942, 320). This exception extends only to insults that are extreme and made face to face.

In *Snyder v. Phelps*, 562 US 443 (2010) the US Supreme Court held that the imposition of civil liability for emotional distress in a case involving a protest by the Westboro Baptist Church near a military funeral was prohibited under the First Amendment. Chief Justice Roberts for the majority of the court said: "Speech is powerful. It can stir people to action, move them to tears of both joy and sorry and – as it did here – inflict great pain. On the facts, before us, we cannot react to the pain by punishing the speaker. As a nation we have chosen a different course – to protect even hurtful speech on public issues to ensure we do not stifle public debate."

3.4.2 Ward v. Quebec (Commission des droits de la personne et des droits de la jeunesse)

***Ward v. Quebec (Commission des droits de la personne et des droits de la jeunesse)*, 2021 SCC 43, [2021] 3 SCR 176**

> English version of the judgment of Wagner C.J. and Moldaver, Côté, Brown and Rowe JJ. delivered by
>
> THE CHIEF JUSTICE AND CÔTÉ J. —
>
> Introduction
>
> [1] This appeal concerns the legal framework that applies to a discrimination claim involving a public figure's right to the safeguard of his dignity, on the one hand, and a professional comedian's freedom of expression, on the other. It invites us, incidentally, to clarify the scope of the jurisdiction of the Commission des droits de la personne et des droits de la jeunesse ("Commission") and the Human Rights Tribunal ("Tribunal") with respect to discrimination claims based on the *Charter of human rights and freedoms*, CQLR, c. C-12 ("*Charter*" or "*Quebec Charter*").
>
> [2] Very often, discrimination complaints are made in the context of employment, housing, or goods and services available to the public. In this case, the complaint that gave rise to the appeal is quite different, as it concerns a professional comedian, the appellant, Mike Ward, who mocked a public figure with a disability, Jérémy Gabriel.
>
> …
>
> Background
>
> …
>
> [9] At the time of the events alleged against Mr. Ward, Mr. Gabriel was a minor and a student in secondary school, and he had an artistic career as a singer. The circumstances in which Mr. Gabriel began that career, at the age of 8 and with his parents' support, are commendable. He was born with Treacher Collins syndrome, which caused certain malformations of the head as well as profound deafness. When he was 6 years old, he received a bone-anchored hearing aid that made it possible for him to hear 80 to 90 percent of sounds. Thanks to that hearing aid, he learned to speak and to sing.

[10] The first two years of his career, 2005 and 2006, were highlighted by several events that received media coverage (e.g., performance of the national anthem at a sporting event, an invitation to sing for Céline Dion, and a musical performance in Rome in the presence of Pope Benedict XVI). …

[11] Mr. Ward, for his part, is a professional comedian and a graduate of the École nationale de l'humour whose career began in 1993. His performances, for which he has won many awards, are, he says, in the style of dark comedy, a comedy genre in which shocking subjects or social taboos are "tackled".

[12] From September 2010 to March 2013, Mr. Ward gave a show called *Mike Ward s'eXpose*, the main theme of which was tolerance and the fact that [TRANSLATION] "we are all the same". Around 135,000 tickets were sold. This litigation centres on one of the routines in that show, called [TRANSLATION] *The Untouchables*. In that routine, Mr. Ward mocked certain figures in Quebec's artistic community whom he described as [TRANSLATION] "sacred cows" that could not be made fun of for various reasons, whether because of their wealth or their influence, or because "they are seen as weak" … Mr. Gabriel was one of the public figures referred to in the routine.

[13] In addition to that show, Mr. Ward made several videos on topical subjects that were posted on his website. The videos were about a number of public figures. One of them was posted in connection with the release of Mr. Gabriel's autobiography. In that video, Mr. Ward made disparaging comments about Mr. Gabriel's physical appearance.

[14] The evidence shows that students attending the same secondary school as Mr. Gabriel drew inspiration from some of the comments in that video to make fun of him. The evidence also shows that, at the time, Mr. Gabriel was already the subject of tasteless jokes by people who drew a connection between his performance for Pope Benedict XVI or his meeting with Cardinal Ouellet and pedophilia, well before Mr. Ward made his comments about him.

[15] In 2012, Mr. Gabriel's parents filed a complaint with the Commission, on their own behalf and on behalf of Mr. Gabriel, sometime after the broadcast of a television interview with Mr. Ward that included an excerpt from the routine called *The Untouchables* concerning their son. The Commission concluded that there was a basis for discrimination and referred the complaint to the Tribunal.

…

Issue

[22] The only issue is that of the legal framework that applies to a discrimination claim under the *Quebec Charter*, in a context involving freedom of expression, in order to determine whether, in this case, Mr. Ward interfered with Mr. Gabriel's right to the safeguard of his dignity and thereby in fact discriminated against him.

…

V. Relevant Provisions of the *Quebec Charter*

[23] The provisions of the *Quebec Charter* at issue in this appeal, as they read at the relevant time, are as follows:

> **CHAPTER I**
>
> FUNDAMENTAL FREEDOMS AND RIGHTS
>
> ...
>
> **3.** Every person is the possessor of the fundamental freedoms, including freedom of conscience, freedom of religion, freedom of opinion, freedom of expression, freedom of peaceful assembly and freedom of association.
>
> **4.** Every person has a right to the safeguard of his dignity, honour and reputation.
>
> ...
>
> **9.1.** In exercising his fundamental freedoms and rights, a person shall maintain a proper regard for democratic values, public order and the general well-being of the citizens of Québec.
>
> **CHAPTER I.1**
>
> In this respect, the scope of the freedoms and rights, and limits to their exercise, may be fixed by law.
>
> RIGHT TO EQUAL RECOGNITION AND EXERCISE OF RIGHTS AND FREEDOMS
>
> **10.** Every person has a right to full and equal recognition and exercise of his human rights and freedoms, without distinction, exclusion or preference based on race, colour, sex, pregnancy, sexual orientation, civil status, age except as provided by law, religion, political convictions, language, ethnic or national origin, social condition, a handicap or the use of any means to palliate a handicap. Discrimination exists where such a distinction, exclusion or preference has the effect of nullifying or impairing such right.

…

VIII. Analysis

…

[36] A plaintiff claiming the protection of s. 10 must satisfy a burden of proof that has three elements. First, the plaintiff must prove a "distinction, exclusion or preference" (*Quebec Charter*, s. 10), that is, "a decision, a measure or conduct [that] 'affects [him or her] differently from others to whom it may apply'" (*Bombardier*, at para. 42, quoting *Ontario Human Rights Commission v. Simpsons-Sears Ltd.*, 1985 CanLII 18 (SCC), [1985] 2 SCR 536, at p. 551). Second, the plaintiff must establish that one of the characteristics expressly protected in s. 10 was a factor in the differential treatment complained of (*Bombardier*, at paras. 52 and 56). Third, the plaintiff must show that the differential treatment impairs the full and equal exercise or recognition of a freedom or right guaranteed by the *Quebec Charter* (*Bombardier*, at para. 53). Where these three elements are established, the burden of justifying the discrimination falls on the defendant.

[37] No right is absolute, however. Section 9.1 of the *Charter* determines the scope of the fundamental right on which the alleged infringement of s. 10 is based (*Devine v. Quebec (Attorney General)*, 1988 CanLII 20 (SCC), [1988] 2 SCR 790, at p. 818). Section 9.1 read as follows at the relevant time:

> **9.1.** In exercising his fundamental freedoms and rights, a person shall maintain a proper regard for democratic values, public order and the general well-being of the citizens of Québec.
>
> In this respect, the scope of the freedoms and rights, and limits to their exercise, may be fixed by law.

[40] … Before it can be found that there has been discrimination in the recognition or exercise of a right provided for in any of ss. 1 to 9, the protection of that right must be called for in light of the "democratic values, public order and the general well-being of the citizens of Québec" referred to in s. 9.1, as it read at the relevant time. There is no discrimination if, in a particular context, s. 9.1 gives the right exercised by the defendant precedence over the right invoked by the plaintiff in combination with s. 10. This is why the elements of discrimination cannot be analyzed in isolation. To do so would make it possible to circumvent the reasonable limits on the right invoked in support of s. 10 by giving that right an unlimited scope. …

…

(4) Test That Applies Where There is a Conflict Between the Right to the Safeguard of Dignity and the Right to Freedom of Expression

…

[83] The test for resolving a conflict between the right to freedom of expression and the right to the safeguard of dignity requires … that it be determined, first, whether a reasonable person, aware of the relevant context and circumstances, would view the expression targeting an individual or group as inciting others to vilify them or to detest their humanity on the basis of a prohibited ground of discrimination. This first criterion is more in keeping with the requirements of the *Canadian Charter* as formulated in *Whatcott*. Hate speech within the meaning of *Whatcott* is therefore prohibited, as is expression that has the same effects on personal dignity without meeting the definition of hatred given in that case.

[84] Second, it must be shown that a reasonable person would view the expression, considered in its context, as likely to lead to discriminatory treatment of the person targeted. Discrimination within the meaning of the *Quebec Charter* … involves differential treatment that affects an individual's social acceptance. As a result, only expression that, considered in its context, is likely to jeopardize the social acceptance of the individual or group is discriminatory (*Whatcott*, at paras. 178 and 191). The analysis is focused not on the content of the expression as such, but on its likely effects on third parties, that is, the discriminatory treatment likely to result from it (*Whatcott*, at paras. 54, 58 and 82).

[85] In this regard, the mode of expression and the effect of the mode of expression are determinative. Expression that stirs up extreme and intrinsically dangerous emotions like hatred in an audience clearly does not have the same impact as expression that is calm and rational. This does not mean, of course, that speech that purports to be scientific or rational is incapable of arousing the contempt of the majority for the humanity of vulnerable groups. But in general, expression that appeals to an audience's reason or to emotions free of any real motivating force will be unlikely to lead to discriminatory treatment of the targeted individual or group.

…

[88] First, expression that attacks or ridicules people may inspire feelings of disdain or superiority in relation to them, but it generally does not encourage the denial of their humanity or their marginalization in the eyes of the majority (*Whatcott*, at paras. 89-91). It is true that ridicule, if pushed to the limit, could cross this line, but it will do so only in extreme and unusual circumstances.

[89] Second, humour, whether in good or in bad taste, rarely has [TRANSLATION] "the spillover effect needed to give rise to an attitude of hatred and discrimination among third parties" (Rainville, at p. 68). It involves well-known methods such as [TRANSLATION] "exaggeration, over-generalization, provocation and distortion of reality" (C.A. reasons, at para. 129, per Savard J.A.). The audience is able to identify these methods, when they are clear, and must be acknowledged to be discerning enough not to take everything said at face value (see, by analogy, *Bou Malhab*, at para. 74; S. Martin, "Rira bien qui rira le dernier: la caricature confrontée au droit à l'image" (2004), 16 *C.P.I.* 611, at pp. 621-22). This is all the more true where the expression comes from a person publicly known for their particular type of humour (see, by analogy, *Bou Malhab*, at para. 89) or where it targets a public figure whose fame exposes them to such commentary (see, by analogy, *WIC Radio Ltd. v. Simpson*, 2008 SCC 40, [2008] 2 SCR 420, at para. 48; *Trudeau v. AD4 Distribution Canada inc.*, 2014 QCCA 1740, at paras. 21-22 (CanLII)). Other than in exceptional cases, it would be surprising if expression in such circumstances had enough motivating force to lead to discriminatory treatment.

[90] These clarifications must not be interpreted as resulting in a form of impunity for comedians or as diminishing the protection given by the law to public figures. There is less of a risk that expression will lead to discrimination where it involves supposedly humorous comments that are made by a well-known comedian or that concern a person known to the public. And in the absence of a sufficiently serious risk, the claim must fail.

…

D. *Application to This Case*

[91] In summary, we are of the view that Mr. Gabriel was made subject to a distinction by being targeted by Mr. Ward's comments. However, in light of the Tribunal's finding that Mr. Ward [TRANSLATION] "did not choose Jérémy because of his handicap" but rather "because he was a public personality" (Tribunal reasons, at para. 86), it must be concluded that the distinction was not based on a prohibited ground. This conclusion on its own is sufficient to dispose of the appeal. Nonetheless, we believe that it will be helpful to analyze discrimination in its entirety in light of the particular context of this case.

…

(3) Impairing the Recognition of the Right to the Safeguard of Dignity

[103] The last element of discrimination requires establishing whether the differential treatment based on a prohibited ground impairs Mr. Gabriel's right to full and equal recognition of his right to the safeguard of his dignity. This step must begin with a determination of whether the protection of Mr. Gabriel's right to the safeguard of his dignity is called for in light of s. 9.1 of the *Charter*. For this purpose, this right must be balanced against Mr. Ward's right to freedom of expression.

[104] … It must first be asked whether a reasonable person, aware of the relevant context and circumstances, would view the expression targeting Mr. Gabriel as inciting others to vilify him or to detest his humanity on the basis of a prohibited ground of discrimination. It must then be asked whether this reasonable person would view the expression, considered in its context, as likely to lead to discriminatory treatment of Mr. Gabriel. In our opinion, the comments made by Mr. Ward meet neither of these two requirements.

[105] … The context here is that of a dark comedy show meant for an audience that had paid to hear this kind of talk. In his show, Mr. Ward said that it had become impossible in Quebec to mock people without risking legal proceedings. He said that he wanted to take risks and poke fun at the "untouchables", that is, people whom Quebecers like and who are successful and powerful. After mocking the physical appearance of many public figures, Mr. Ward came to Mr. Gabriel, whom he described to his audience as a young person with a loudspeaker on his head. Alluding to the complaints of those who did not really appreciate Mr. Gabriel's artistic talent, he said that he had defended Mr. Gabriel's right to live out his dream, believing that he was about to die. Mr. Ward added that, because Mr. Gabriel had not died, he had tried to drown him but had not succeeded. In ending the routine, he said that he had discovered from searches that Mr. Gabriel's illness was being ugly.

[106] As for the video, it was made in connection with the release of Mr. Gabriel's autobiography in 2008, two years after the launch of the show in issue. The comedian made the video available on his professional website for about a year. It consisted of a photograph of the young Mr. Gabriel in which only the eyes and mouth moved. Using a disguised voice, Mr. Ward made his target speak in the first person. In the video, Mr. Gabriel was presented as a young person with a loudspeaker on his head and a mouth that did not close all the way.

[107] Mr. Gabriel's testimony spoke volumes about the pain caused to him by those hurtful words, which date back to a time when he was still a young teenager. There is certainly nothing uplifting in the fact that a popular, well-known comedian used his platform to make fun of a young man with a disability. Be that as it may, the question here is not whether Mr. Ward's comments were in good or in bad taste; rather, a legal framework must be applied to comments that were made in a specific context. That legal framework is focused on the likely discriminatory effects of the comments, not on the emotional harm suffered by the person targeted.

[108] In our view, a reasonable person aware of the relevant circumstances would not view Mr. Ward's comments about Mr. Gabriel as inciting others to vilify him or to detest is humanity on the basis of a prohibited ground of discrimination. His comments, considered in their context, cannot be taken at face value. Although Mr. Ward said some nasty and disgraceful things about Mr. Gabriel's disability, his comments did not incite the audience to treat Mr. Gabriel as subhuman.

[109] In both his video and his show, Mr. Ward mocked some of Mr. Gabriel's physical characteristics. Making fun of a person's physical characteristics may be repugnant; it most certainly is when the person in question is a young person with a disability who contributes with determination to society. But expression of this kind does not, simply by being repugnant, incite others to detest or vilify the humanity of the person targeted (*Whatcott*, at paras. 90-91). The first requirement of the test is therefore not met, and the analysis could end here.

[110] That being said, even if we had found that the comments incited others to vilify Mr. Gabriel or to detest his humanity on the basis of a prohibited ground, the analysis of the second requirement of the test set out in this decision would also have led to the denial of his claim. A reasonable person could not view the comments made by Mr. Ward, considered in their context, as likely to lead to discriminatory treatment of Mr. Gabriel.

[111] At first instance, the Tribunal found that Mr. Gabriel's classmates [TRANSLATION] "were inspired by [Mr.] Ward's comments" to make fun of him (para. 114 (emphasis added)). That evidence is relevant only insofar as it tells us something about the likely effect of the comments. It must be remembered that the test is objective. It should therefore be kept in mind that something that occurs following a person's conduct is not necessarily a result of that conduct. Thus, the fact that people are inspired by certain comments does not mean that this is a likely effect of those comments. Of course, it is foreseeable that comments made by a well-known comedian will have repercussions outside their initial context, but this does not mean that those repercussions can necessarily be attributed to the comedian. It must still be determined whether, viewed objectively, the comments encouraged such repercussions. In our view, this is not the case here.

[112] The impugned comments involved open provocation and systematic exaggeration — methods that increased their derisory effect. They were made by a career comedian known for this type of humour. They exploited, rightly or wrongly, a feeling of discomfort in order to entertain, but they did little more than that. As a result, the comments made in the video and the show, considered in their context, were not likely to have a spillover effect that could lead to discriminatory treatment of Mr. Gabriel.

[113] Accordingly, the Commission did not meet the requirements for succeeding under ss. 4 and 10 of the *Quebec Charter*. But this conclusion does not mean that Mr. Gabriel was without recourse following these events. Other recourses were available. For example, though we express no opinion on the chances of success of these alternative recourses, Mr. Gabriel could have invoked the protection against harassment provided for in s. 10.1 of the *Charter* because of the fact that he had been bullied. He could also have brought an action in defamation. However, neither the Commission nor the Tribunal has jurisdiction over defamation. The combination of the norm of equality in the *Quebec Charter* and the right to the safeguard of dignity cannot confer such jurisdiction on them indirectly.

IX. Disposition

[114] The appeal is allowed without costs. The judgments of the Tribunal and the Court of Appeal are set aside as they relate to Mr. Gabriel.

[Justices Abella and Kasirer, in a dissenting judgment, decided that the speech in this case amounted to bullying, a "contemptuous affront" to Gabriel's identity (para 163), because it "played on harmful dehumanizing attitudes towards children with disabilities" and reached a large audience (para 218).]

3.4.3 Further reading

1. Cynthia Khoo, "Deplatforming Misogyny: Report on Platform Liability for Technology-Facilitated Gender-Based Violence," LEAF, 2021 (Executive Summary): https://www.leaf.ca/wp-content/uploads/2021/04/Executive-Summary-Deplatforming-Misogyny.pdf
2. David Lepofsky, "A Professional Comedian's Fundamental Right to Publicly Bully a Child Because of His Disability? Scrutinizing *Ward v. Quebec Human Rights Commission* Through a Disability Lens" 108 Supreme Court LR: https://digitalcommons.osgoode.yorku.ca/sclr/vol108/iss1/8/

3.4.4 Questions

1. In the *Ward* case should it have made a difference to the outcome that Mr. Gabriel was a minor?
2. In *Ward* the majority focused on the way in which the speech might affect the attitudes and actions of Mr. Ward's audience (and so the majority adopted a test similar to that followed in *Whatcott*). The dissenting judges, however, focused on the impact of the speech on Mr. Gabriel, and viewed it as a form of bullying. Which approach makes most sense to you?
3. Online harassment has become a significant problem. How is this form of harassment different from earlier forms? How can or should the law respond to it?

3.5 Defamation

In Canada, defamation can give rise to a civil action under the common law, but also, exceptionally, to a criminal prosecution. The *Criminal Code* prohibits, as "defamatory libel," any published material "that is likely to injure the reputation of any person by exposing him to hatred, contempt or ridicule, or that is designed to insult the person." The prohibition on defamatory libel in s. 301 of the code applies regardless of whether the libellous statement is true or false. While this provision remains on the books, several courts have held that it is unconstitutional. However, in *R. v. Lucas,* 1998 CanLII 815 (SCC), [1998] 1 SCR 439, the Supreme Court of Canada upheld the other part of the criminal ban on defamatory libel, s. 300, which prohibits libel that the speaker knows to be false. The court thought that preventing attacks on an individual's reputation was a "legitimate goal" of the criminal law: "Wilful and false" attacks on an individual's reputation harmed "the innate dignity of the individual" and their "fruitful participation in Canadian society" (*Lucas* at para 48). In the court's view, the offence was narrowly drawn, requiring the prosecution to establish beyond a reasonable doubt that the accused intended to defame the individual and that they knew their defamatory statements were false.

Defamation, under the common law, occurs when an individual makes a statement to one or more people about another individual that tends to lower the reputation of that other individual from the perspective of a reasonable person. Until *Grant v Torstar Corp*, 2009 SCC 61, 3 SCR 640, defamation was a strict liability wrong, in the sense that it was not necessary for the plaintiff to show that the defendant had acted maliciously or carelessly when making the defamatory statement. If an individual is able to show that they have been defamed, the person accused of having defamed them may raise one or more of a number of defences, including that their statement was true, that it was privileged, or that it amounted to fair comment. In *Grant*, the Supreme Court of Canada added to this list the defence of "responsible communication."

3.5.1 Grant v. Torstar Corp.

*****Grant v. Torstar Corp.***, 2009 SCC 61, [2009] 3 SCR 640**

The judgment of McLachlin C.J. and Binnie, LeBel, Deschamps, Fish, Charron, Rothstein and Cromwell JJ. was delivered by

THE CHIEF JUSTICE —

Introduction

…

[2] … [F]reedom of expression is not absolute. One limitation on free expression is the law of defamation, which protects a person's reputation from unjustified assault. The law of defamation does not forbid people from expressing themselves. It merely provides that if a person defames another, that person may be required to pay damages to the other for the harm caused to the other's reputation. However, if the defences available to a publisher are too narrowly defined, the result may be "libel chill", undermining freedom of expression and of the press.

[3] Two conflicting values are at stake — on the one hand freedom of expression and on the other the protection of reputation. While freedom of expression is a fundamental freedom protected by s. 2(b) of the *Charter*, courts have long recognized that protection of reputation is also worthy of legal recognition. The challenge of courts has been to strike an appropriate balance between them in articulating the common law of defamation. …

V. Analysis

Should the Common Law Provide a Defence Based on Responsible Communication in the Public Interest?

…

(1) The Current Law

[28] A plaintiff in a defamation action is required to prove three things to obtain judgment and an award of damages: (1) that the impugned words were defamatory, in the sense that they would tend to lower the plaintiff's reputation in the eyes of a reasonable person; (2) that the words in fact referred to the plaintiff; and (3) that the words were published, meaning that they were communicated to at least one person other than the plaintiff. If these elements are established on a balance of probabilities, falsity and damage are presumed … The plaintiff is not required to show that the defendant intended to do harm, or even that the defendant was careless. The tort is thus one of strict liability.

[29] If the plaintiff proves the required elements, the onus then shifts to the defendant to advance a defence in order to escape liability.

[30] Both statements of opinion and statements of fact may attract the defence of privilege, depending on the occasion on which they were made. Some "occasions", like Parliamentary and legal proceedings, are absolutely privileged. Others, like reference letters or credit reports, enjoy "qualified" privilege, meaning that the privilege can be defeated by proof that the defendant acted with malice … The law acknowledges through recognition of privileged occasions that false and defamatory expression may sometimes contribute to desirable social ends.

[31] In addition to privilege, statements of opinion, a category which includes any "deduction, inference, conclusion, criticism, judgment, remark or observation which is generally incapable of proof" (*Ross v. New Brunswick Teachers' Assn.*, 2001 NBCA 62, 201 D.L.R. (4th) 75, at para. 56, cited in *WIC Radio*, at para. 26), may attract the defence of fair comment. As reformulated in *WIC Radio*, at para. 28, a defendant claiming fair comment must satisfy the following test: (a) the comment must be on a matter of public interest; (b) the comment must be based on fact; (c) the comment, though it can include inferences of fact, must be recognisable as comment; (d) the comment must satisfy the following objective test: could any person honestly express that opinion on the proved facts?; and (e) even though the comment satisfies the objective test the defence can be defeated if the plaintiff proves that the defendant was actuated by express malice. *WIC Radio* expanded the fair comment defence by changing the traditional requirement that the opinion be one that a "fair-minded" person could honestly hold, to a requirement that it be one that "anyone could honestly have expressed" (paras. 49-51), which allows for robust debate. As Binnie J. put it, "[w]e live in a free country where people have as much right to express outrageous and ridiculous opinions as moderate ones" (para. 4).

…

[33] To succeed on the defence of justification, a defendant must adduce evidence showing that the statement was substantially true. This may be difficult to do. A journalist who has checked sources and is satisfied that a statement is substantially true may nevertheless have difficulty proving this in court, perhaps years after the event. The practical result of the gap between responsible verification and the ability to prove truth in a court of law on some date far in the future, is that the defence of justification is often of little utility to journalists and those who publish their stories.

…

[38] Two related arguments are presented in support of broadening the defences available to public communicators, such as the press, in reporting matters of fact.

[39] The first argument is grounded in principle. It asserts that the existing law is inconsistent with the principle of freedom of expression as guaranteed by s. 2(*b*) of the *Charter*. In the modern context, it is argued, the traditional rule has a chilling effect that unjustifiably limits reporting facts, and strikes a balance too heavily weighted in favour of protection of reputation. While the law should provide redress for baseless attacks on reputation, defamation lawsuits, real or threatened, should not be a weapon by which the wealthy and privileged stifle the information and debate essential to a free society.

[40] The second argument is grounded in jurisprudence. This argument points out that many foreign common law jurisdictions have modified the law of defamation to give more protection to the press, in recognition of the fact that the traditional rules inappropriately chill free speech. While different countries have taken different approaches, the trend is clear. Recent Canadian cases, most notably the decision of the Ontario Court of Appeal in *Quan*, have affirmed this trend. The time has arrived, it is argued, for this Court to follow suit.

…

[53] Freedom does not negate responsibility. It is vital that the media act responsibly in reporting facts on matters of public concern, holding themselves to the highest journalistic standards. But to insist on court-established certainty in reporting on matters of public interest may have the effect of preventing communication of facts which a reasonable person would accept as reliable and which are relevant and important to public debate. The existing common law rules mean, in effect, that the publisher must be certain before publication that it can prove the statement to be true in a court of law, should a suit be filed. Verification of the facts and reliability of the sources may lead a publisher to a reasonable certainty of their truth, but that is different from knowing that one will be able to prove their truth in a court of law, perhaps years later. This, in turn, may have a chilling effect on what is published. Information that is reliable and in the public's interest to know may never see the light of day.

[54] … Fear of being sued for libel may prevent the publication of information about matters of public interest. The public may never learn the full truth on the matter at hand.

[55] Against this, it is argued that false statements cannot advance the purposes of s. 2(*b*). This contention, however, is belied by the fact the existing defence of privilege concedes: sometimes the public interest requires that untrue statements should be granted immunity, because of the importance of robust debate on matters of public interest (e.g. Parliamentary privilege), or the importance of discussion and disclosure as a means of getting at the truth (e.g. police reports, employment recommendations).

[56] The argument also overlooks the fact that the *Charter*'s s. 2(*b*) protection is not confined to statements that a person can ultimately prove are true. As Professor Boivin puts it:

> Those who argue that false and defamatory publications have a weak claim to *Charter* protection omit to mention that it is only at trial, usually several years after publication, that a trier of fact determines whether a defence of justification is well founded. Moreover, it is only then that the defamatory nature of the publication is assessed. Surely freedom of expression encompasses more than statements which, after the fact, are either proven factually accurate or do not injure someone's reputation. [Emphasis added.]
>
> (D. W. Boivin, "Accommodating Freedom of Expression and Reputation in the Common Law of Defamation" (1997), 22 *Queen's L.J.* 229, at p. 270)

[57] I conclude that media reporting on matters of public interest engages the first and second rationales of the freedom of expression guarantee in the *Charter* [democracy and truth]. … It is simply beyond debate that the limited defences available to press-related defendants may have the effect of inhibiting political discourse and debate on matters of public importance, and impeding the cut and thrust of discussion necessary to discovery of the truth.

[58] This brings me to the competing value: protection of reputation. Canadian law recognizes that the right to free expression does not confer a licence to ruin reputations. In assessing the constitutionality of the *Criminal Code*'s defamatory libel provisions, for example, the Court has affirmed that "[t]he protection of an individual's reputation from wilful and false attack recognizes both the innate dignity of the individual and the integral link between reputation and the fruitful participation of an individual in Canadian society": *R. v. Lucas*, 1998 CanLII 815 (SCC), [1998] 1 SCR 439, at para. 48, *per* Cory J. This applies both to private citizens and to people in public life. People who enter public life cannot reasonably expect to be immune from criticism, some of it harsh and undeserved. But nor does participation in public life amount to open season on reputation.

[59] Related to the protection of reputation is a concern for personal privacy. This Court has recognized that protection of personal privacy is "intimately related" to the protection of reputation: *Hill*, at para. 121. …

…

[61] … The law must take due account of the damage to the plaintiff's reputation. But this does not preclude consideration of whether the defendant acted responsibly, nor of the social value to a free society of debate on matters of public interest. …

[62] The protection offered by a new defence [of responsible communication] based on conduct is meaningful for both the publisher and those whose reputations are at stake. If the publisher fails to take appropriate steps having regard to all the circumstances, it will be liable. The press and others engaged in public communication on matters of public interest, like bloggers, must act carefully, having regard to the injury to reputation that a false statement can cause. A defence based on responsible conduct reflects the social concern that the media should be held accountable through the law of defamation. … The requirement that the publisher of defamatory material act responsibly provides accountability and comports with the reasonable expectations of those whose conduct brings them within the sphere of public interest. People in public life are entitled to expect that the media and other reporters will act responsibly in protecting them from false accusations and innuendo. They are not, however, entitled to demand perfection and the inevitable silencing of critical comment that a standard of perfection would impose.

…

[65] Having considered the arguments on both sides of the debate from the perspective of principle, I conclude that the current law with respect to statements that are reliable and important to public debate does not give adequate weight to the constitutional value of free expression. While the law must protect reputation, the level of protection currently accorded by the law — in effect a regime of strict liability — is not justifiable. The law of defamation currently accords no protection for statements on matters of public interest published to the world at large if they cannot, for whatever reason, be proven to be true. But such communications advance both free expression rationales mentioned above — democratic discourse and truth-finding — and therefore require some protection within the law of defamation. When proper weight is given to the constitutional value of free expression on matters of public interest, the balance tips in favour of broadening the defences available to those who communicate facts it is in the public's interest to know.

[66] A consideration of the jurisprudence of other common law democracies favours replacing the current Canadian law governing redress for defamatory statements of fact on matters of public interest, with a rule that gives greater scope to freedom of expression while offering adequate protection of reputation. Different countries canvassed have taken different approaches. Most, however, give more weight to the value of freedom of expression and robust public debate than does the traditional Canadian approach.

[The court then discusses the relevant caselaw in the US, UK, NZ, SA and Australia]

…

B. *The Elements of the Defence of Responsible Communication*

…

(2) Formulating the Defence of Responsible Communication on Matters of Public Interest

[98] … I … would formulate the test as follows. First, the publication must be on a matter of public interest. Second, the defendant must show that publication was responsible, in that he or she was diligent in trying to verify the allegation(s), having regard to all the relevant circumstances.

(a) *Was the Publication on a Matter of Public Interest?*

[99] To be protected by the defence of responsible communication, the publication must be on a matter of public interest.

[100] …[W]hether a statement's publication is in the public interest involves factual issues. But it is primarily a question of law; the judge is asked to determine whether the nature of the statement is such that protection may be warranted in the public interest. …

[101] In determining whether a publication is on a matter of public interest, the judge must consider the subject matter of the publication as a whole. The defamatory statement should not be scrutinized in isolation. … If it is, and if the evidence is legally capable of supporting the defence, as I will explain below, the judge should put the case to the jury for the ultimate determination of responsibility.

[102] How is "public interest" in the subject matter established? First, and most fundamentally, the public interest is not synonymous with what interests the public. The public's appetite for information on a given subject — say, the private lives of well-known people — is not on its own sufficient to render an essentially private matter public for the purposes of defamation law. An individual's reasonable expectation of privacy must be respected in this determination. Conversely, the fact that much of the public would be less than riveted by a given subject matter does not remove the subject from the public interest. It is enough that some segment of the community would have a genuine interest in receiving information on the subject.

[103] The authorities offer no single "test" for public interest, nor a static list of topics falling within the public interest (see, e.g., *Gatley on Libel and Slander* (11th ed. 2008), at p. 530). Guidance, however, may be found in the cases on fair comment and s. 2(*b*) of the *Charter*.

[104] … Whenever a matter is such as to affect people at large, so that they may be legitimately interested in, or concerned at, what is going on; or what may happen to them or to others; then it is a matter of public interest on which everyone is entitled to make fair comment. [p. 198]

[105] To be of public interest, the subject matter "must be shown to be one inviting public attention, or about which the public has some substantial concern because it affects the welfare of citizens, or one to which considerable public notoriety or controversy has attached": Brown, vol. 2, at pp. 15-137 and 15-138. …

…

[The court found that in this case the evidence revealed a basis for several defences including the defence of responsible communication on a matter of public interest. The court therefore ordered a new trial].

3.5.2 Bou Malhab v. Diffusion Métromédia CMR inc.

***Bou Malhab v. Diffusion Métromédia CMR inc.*, 2011 SCC 9, [2011] 1 SCR 214**

English version of the judgment of McLachlin C.J. and Binnie, LeBel, Deschamps, Charron and Rothstein JJ. delivered by

DESCHAMPS J. —

…

[2] Through a class action, the appellant sought compensation for the injury allegedly suffered by the members of the group as a result of racist comments made by a radio host concerning Montréal taxi drivers whose mother tongue is Arabic or Creole. The respondents argued, successfully in the Court of Appeal, that the members had not been personally affected and cannot be compensated. I find that there was no personal injury in this case and that the rules of civil liability accordingly do not authorize compensation. I would therefore dismiss the appeal.

…

V. Analysis

[14] A. I will begin by considering the concept of defamation in Quebec civil law. I will then look at its specific characteristics where the allegedly defamatory comments were made about a group. Finally, I will apply these rules to the facts of this appeal.

Defamation in the Civil Law

[16] The concept of defamation requires that the right to the protection of reputation be reconciled with the right to freedom of expression, since that which belongs to the former is generally taken away from the latter. …

[17] Freedom of expression is protected by the *Canadian Charter of Rights and Freedoms*, s. 2(*b*), and the *Charter of human rights and freedoms*, R.S.Q., c. C-12, s. 3

("*Quebec Charter*"). …

[18] The right to the safeguard of reputation is guaranteed by the *Quebec Charter* (s. 4) and the *Civil Code of Québec*, S.Q. 1991, c. 64, arts. 3 and 35. Since good reputation is related to dignity (*Hill*, at paras. 120-21), it is also tied to the rights protected by the *Canadian Charter*. Reputation is a fundamental feature of personality that makes it possible for an individual to develop in society. It is therefore essential to do everything possible to safeguard a person's reputation, since a tarnished reputation can seldom regain its former lustre (*Hill*, at para. 108).

[19] Of course, there is no precise measuring instrument that can determine the point at which a balance is struck between the protection of reputation and freedom of expression. In reconciling these two rights, the principles on which a free and democratic society is based must be respected. The intersection point will change as society changes. …

…

(2) Constituent Elements of Defamation in Quebec Civil Law

[22] In Quebec, there is no specific form of action for punishing defamation. Actions in defamation come under the general system of civil liability established in art. 1457 *C.C.Q.* The plaintiff is entitled to compensation if fault, injury and a causal connection are all present. Fault is determined by looking at the defendant's conduct, while injury is assessed by looking at the impact of that conduct on the victim, and a causal link is established where the decision maker finds that a connection exists between the fault and the injury. This is an area of law where it is important to make a clear distinction between fault and injury. Proof of injury is not a basis for presuming that a fault was committed. Proof that a fault was committed does not, without more, establish the existence of a compensable injury.

…

[42] The instant case … raises the … question of group defamation. It presents some specific problems that need to be considered.

B. *Defamatory Nature of Comments Made About a Group of People*

(1) Need to Prove Personal Injury

[43] An action in defamation can succeed only if personal injury has actually been sustained by the plaintiff or plaintiffs. This requirement also applies where the defamatory comments are made about a group.

…

(3) Factors Used to Determine Whether Personal Injury Has Been Sustained

[57] In any action in defamation, injury is proved if the plaintiff satisfies the judge that the impugned comments are defamatory, that is, that an ordinary person would believe that they tarnished the plaintiff's reputation. The same test is used where the comments apply *a priori* to a group of individuals, but special attention will then have to be paid to the personal nature of the injury. The plaintiff or plaintiffs must prove that an ordinary person would have believed that each of them personally sustained damage to his or her reputation.

[58] The judge must thus analyse the impugned comments, taking into account all the circumstances in which they were made. Although it is impossible to draw up an exhaustive list of the criteria used to determine whether personal injury has been sustained, a number of factors can nevertheless help the judge in this process. …

(i) *Size of the Group*

[59] The size of the group is the factor to which the courts have attached the greatest importance in Quebec and elsewhere. Generally speaking, it is recognized that the larger the group, the more difficult it is to prove that personal injury has been sustained by the member or members bringing the action.

…

[64] However, the size of the group is not a decisive factor and must be balanced with other considerations. There is no maximum size beyond which the members of a group no longer have a cause of action in defamation. The personal nature of injury can be determined only through a contextual analysis. In the common law, this multi-factored approach involves assessing the "intensity of suspicion" the comments could create in the mind of a sensible person …

(ii) *Nature of the Group*

[65] In general, the more strictly organized and homogeneous the group, the easier it will be to establish that the injury is personal to each member of the group. …

[66] Conversely, the imputing of a single characteristic to all members of a group that is highly heterogeneous, has no specific organization or has flexible, broadly defined admission criteria would make an allegation of personal injury implausible. For example, the Quebec Court of Appeal has dismissed actions in defamation based on comments made about Scientology (*Cabay*) and the Falun Gong doctrine (*Zhang*).

[67] Where the group's members are identifiable or very visible in the community, it will be easier to prove that they sustained personal injury. In *A.U.P.E.*, for example, the Alberta trial court noted that correctional officers could easily be recognized by their uniforms and, from that fact, drew an inference in favour of the plaintiffs' position.

[68] Finally, in certain circumstances, the fact that a group has historically been stigmatized may mean that insults and offensive comments made about the group will stick more easily to its members. The vulnerability of the members of the group thus makes them targets more susceptible to personal defamation.

(iii) *Plaintiff's Relationship With the Group*

[69] The plaintiff's status, duties, responsibilities or activities in the group can make it easier to prove personal injury. …

[70] A person who is a well-known member of a group is more likely to suffer damage to his or her reputation as a result of comments made about the group. …

(iv) *Real Target of the Defamation*

[71] The judge must also consider the words, gestures or images used to convey the message in order to determine the real target of the attacks. The precision or generality of the allegations will influence the analysis of the personal nature of the injury. The more general, evasive and vague the allegations, the more difficult it will be to go behind the screen of the group. For example, attacks on a doctrine, policy, opinion or religion must be distinguished from attacks on the persons supporting it, since proving personal injury will be complicated in the former situation. …

[72] Moreover, where allegations apply to only one segment of a group, it will be more difficult for them to reflect personally on all members of the group. This occurs where the comments include an expression such as "some", "a few", "several", "most" or "all but one". …

(v) *Seriousness or Extravagance of the Allegations*

[73] As the Nova Scotia Court of Appeal stated in *Butler v. Southam*, "the more serious or inflammatory the allegation, the wider may be its sting" (para. 68)….

[74] In some circumstances, the seriousness of the allegations will have the opposite effect: an ordinary person will see exaggeration, excessive generalization or extravagance in the allegations and will give them less credence as a result. Thus, where there is no rational connection between an allegation and the members of a group, the statements made will not be accepted by an ordinary person because, as Lord Atkin explained in *Knupffer*, "the habit of making unfounded generalizations is ingrained in ill-educated or vulgar minds [and] the words are occasionally intended to be a facetious exaggeration" (at p. 122). …

…

(vi) *Plausibility of the Comments and Tendency to Be Accepted*

[76] Generally speaking, a plausible or convincing allegation will capture the ordinary person's attention more and thus make it easier for that person to connect the allegation with each or some of the group's members personally. Conversely, the ordinary person will quickly brush aside implausible allegations without connecting them with the group's members personally.

[77] The context of an allegation also has an impact on its plausibility and on the likelihood of its being accepted. The fact that a group is big, that it is heterogeneous, or that the comments are general or exaggerated are all factors that will reduce the probability that the ordinary person would believe the assertion.

C. *Application to the Facts of the Case at Bar*

[80] Injury is the only one of the three elements of civil liability that is in issue in this case. The wrongful nature of Mr. Arthur's conduct is not in dispute. The respondents concede that, as the Court of Appeal found, [TRANSLATION] "the impugned comments, which we are not trying to excuse by invoking some journalistic standard of conduct, were made without regard for their potential impact on other people even though

the person making them should have known that they were false, rude or exaggerated" (para. 27 of the reasons). The appellant is challenging the conclusion of the majority of the Court of Appeal that the members of the group did not sustain compensable injury. In light of the legal principles explained above, it is my opinion that the Court of Appeal's conclusion must be upheld.

[81] Mr. Arthur's comments were directed at the group made up of taxi drivers working in Montréal whose mother tongue is Arabic or Creole. Therefore, what needs to be asked is whether an ordinary person would have believed that the comments damaged the reputation of each member of that group, with the result that each of them sustained personal injury. …

[82] Mr. Arthur made accusations of uncleanliness, arrogance, incompetence, corruption and ignorance of official languages. By referring to Creole as speaking [TRANSLATION] [derogatory term directed at Blacks], he disparaged and expressed contempt for the language primarily used by Haitians to communicate with one another. As well, when he called drivers of Arab origin [TRANSLATION] [derogatory term directed at Arabs], he made fun of and even ridiculed them. His comments were scornful and racist, as has been found by all the courts that have had to consider them. It is thus easy to understand why the taxi drivers who were called to testify at the hearing said they were hurt by those comments, but this is a subjective perception, not the perception of the ordinary person. There is no doubt that such statements constituted civil fault. However, in this case, I am persuaded by an analysis of the trial judgment and a review of the entire record that an ordinary person might have been annoyed by Mr. Arthur's comments but could not have applied the insults, abuse and offensive accusations to each taxi driver personally.

[83] Admittedly, certain contextual elements work in favour of recognizing personal injury. The members of the group have the same job and are identifiable as taxi drivers when they are driving their vehicles. In interacting with the public or their coworkers, their accent may sometimes also make it possible to recognize their mother tongue. Moreover, they belong to visible minorities.

[84] Some of the words used by Mr. Arthur suggested that his attacks were directed more at Montréal taxi drivers whose mother tongue is Arabic or Creole than at the taxi industry in general. When Mr. Arthur used words such as [TRANSLATION] "Arabs", "Haitians", "immigrants" or "drivers", he seemed to be attacking more the drivers themselves, which favours the appellant's position. However, at other times, the words used by Mr. Arthur gave the impression that he was criticizing the taxi industry in Montréal generally … [E]ven assuming that the words used by Mr. Arthur referred more generally to the drivers than to the taxi industry as a whole, and even though the members of the group may be identifiable, I must conclude based on the other contextual elements that the drivers' personal reputations remained intact in the eyes of the ordinary person.

[85] First of all, the relevant group is of considerable size. The trial judge estimated that the group made up of Montréal taxi drivers whose mother tongue is Arabic or Creole has about 1,100 members. That is a large number. While I am not prepared to rule out the possibility that comments made about such a large group may in certain very specific circumstances reflect on each of its members personally, there are several reasons why that cannot be the case here.

[86] It is well known that the group in question is heterogeneous. Taxi drivers in general are not part of a structured or formalized association. Nor is there any indication that the group of drivers in question was organized in any special way that made it easier to recognize each of its members. Of course, the taxi drivers in question share a language and a job and belong to two visible minorities, but no one could reasonably believe that their common attributes extend to their personal knowledge of English and French, their knowledge of driving routes in the city of Montréal, their thoughtfulness with customers, their personal hygiene and the cleanliness of their vehicles. These are highly individual characteristics that do not readily lend themselves to generalization. … In such a heterogeneous group, it is implausible that all members would have the specific failings imputed to them by Mr. Arthur. Certain characteristics could be attributed to such a heterogeneous group only by extrapolation.

[87] … Mr. Arthur's statements conveyed the message that taxi drivers whose mother tongue is Arabic or Creole should be blamed for all the problems he said existed in the taxi industry in Montréal. There is simply nothing rational about this suggestion, as the trial judge pointed out (para. 87).

…

[89] … Mr. Arthur was a known polemicist in the area where his show was broadcast. He had become known for his distasteful and provocative language. …

[90] In light of these factors, I am of the opinion that an ordinary person would have understood the extravagant nature of the comments made. Mr. Arthur's allegations were undoubtedly serious and infuriating, but an ordinary person would nonetheless have recognized that they were an excessive generalization on the part of the host, based on an unpleasant personal experience. An ordinary person would not have believed the offensive allegations and would not have thought that Mr. Arthur was vouching for the validity of his racist and contemptuous insults. An ordinary person certainly would not have associated the allegations of ignorance, incompetence, uncleanliness, arrogance and corruption with each taxi driver whose mother tongue is Arabic or Creole personally.

…

[92] In short, having regard to all of the circumstances, I find that the group is of considerable size and is heterogeneous, that the characteristics attributed to the members of the group are individual and do not lend themselves well to extrapolation, and that the remarks are an extreme, irrational and sensationalist generalization. Accordingly, an ordinary person, while sensitive to such excessive remarks, would not in my view have formed a less favourable opinion of each Arab or Haitian taxi driver, considered individually. I therefore conclude that Mr. Arthur's comments, while wrongful, did not damage the reputation of each Montréal taxi driver whose mother tongue is Arabic or Creole. The plaintiff did not prove that a personal injury was sustained by the members of the group.

…

VI. Conclusion

[94] I have no doubt that racist speech can have a pernicious effect on the opinions of members of its audience. However, it should be noted that an action in defamation will not always be the appropriate recourse in cases concerning racism or discrimination. In the instant case, I am of the opinion that it is not the appropriate recourse. I would therefore dismiss the appeal. For the reasons given by the Court of Appeal on this question, no costs are awarded in this Court.

The following are the reasons delivered by

[95] ABELLA J. (dissenting)

…

> [106] In my view, an ordinary person would conclude that the remarks made by Mr. Arthur were defamatory of these plaintiffs and therefore injurious. Mr. Arthur's comments were not about the taxi industry in general. He targeted only Arab and Haitian taxi drivers and accused them of creating "Third World" public transportation in Montréal, of corruption in obtaining their permits, of incompetence, and of keeping unsanitary cars. He also said that neither Arab nor Haitian drivers knew their way around the city and that they could not communicate in either English or French. … [and used racist epithets to describe them].
>
> [107] These were highly stigmatizing remarks attacking members of vulnerable communities. There is a difference between provocation or controversy, including offensive statements, and statements that deliberately vilify vulnerable people. The trial judge concluded that the comments in this case were racist. When we are dealing with hortatory language seriously uttered that is blatantly racist, we are inherently dealing with words that diminish dignity and are an invitation to contempt. …
>
> [110] Under both the common law and civil law regimes, the fact that comments are aimed at a group is not, in itself, reason to deny a claim. If multiple individuals can show that they were defamed by the comments, each has a right of action. As the reasons of Deschamps J. make clear, the determination of whether the statements relate to each member of the group involves a contextual analysis of both the group and the comments. …
>
> …
>
> [116] While the group targeted by the statements in this case was large, it was not so diffuse as to be indeterminate. Mr. Arthur's criticisms were directed at Arab and Haitian taxi drivers in Montréal. This is a precisely defined and easily identified group.
>
> [117] Secondly, these were serious accusations. Mr. Arthur's allegations of corruption were particularly dramatic …
>
> …
>
> [119] Mr. Arthur's comments were aimed at a determinate group of individuals who were of particular racial backgrounds in a particular industry and in a particular city … The group was defined with sufficient precision and the statements specific enough to be harmful to the reputations of each of its members. If Mr. Arthur had named an individual taxi driver and accused him or her of similar corruption and incompetence, there seems to me to be little doubt that an ordinary person would find those comments to be defamatory and therefore injurious.
>
> [120] Moreover, I do not accept that his listeners would have inevitably treated Mr. Arthur's statements as less plausible because of his reputation. I appreciate that Mr. Arthur was not averse to comments of a provocative nature, and that his listeners knew that he was given occasionally to making offensive statements. But I do not accept that Mr. Arthur's comments would necessarily be seen to be hyperbolic by the ordinary person. They were made "seriously", not satirically or ironically.
>
> [121] The members of the group Mr. Arthur vilified interact with the public on a daily basis and their livelihoods depend upon their ability to attract customers. Mr. Arthur's defamatory comments were … made seriously and raised, objectively, the clear possibility not only of harm to reputation, but also of harmful economic consequences from customers who may have decided to avoid taxis driven by members of the group, members who were easily identified and who stood accused not only of incompetence, but of having used corruption to become taxi drivers. In my view, those comments would palpably have been seen by an ordinary person as being defamatory, and therefore injurious, of the plaintiffs.
>
> [122] I would therefore allow the appeal and restore the award of damages made by Guilbault J

3.5.3 Note on press freedom

Section 2(b) of the *Charter* provides that "everyone" has the "freedom of thought, belief, opinion and expression, including freedom of the press and other media of communication." The terms "press" and "media" in s. 2(b) seem to refer, not to particular institutions, but rather to the various methods or means of communication and perhaps to certain functions.

In *Canadian Broadcasting Corp. v. New Brunswick (Attorney General),* 1996 CanLII 184 (SCC), [1996] 3 SCR 480, Justice La Forest, writing for the majority of the Supreme Court of Canada, emphasized the importance of "a free and vigorous press" in informing the public and supporting meaningful debate in the public domain (*CBC* 1996 at para 23). In a more recent decision, Justice Abella (in a concurring judgment) stressed the importance of a "strong, independent and responsible press" that "holds people and institutions to account, uncovers the truth and informs the public" (*R.v. Vice Media Canada,* 2018 SCC 53, 125).

Prior to the internet, the functions of gathering and disseminating news were performed by particular institutions, generally large-scale newspapers and broadcasters. It was, at the time, natural to conflate institution and function. However, with the rise of the internet as the main vehicle for the communication of news and opinion, the link between function and institution has been broken. In addition to the online versions of traditional media, there are now many small-scale online news sites and blogs operated by citizen journalists. Low entry costs have made it possible for almost anyone to set up a website that provides information and opinion. In the new media landscape, s. 2(b) may protect certain activities, such as newsgathering, that are not in themselves expressive but are necessary to effective communication and meaningful public discourse – even though courts and commentators continue to refer to the rights of "the press." Those engaged in the activities of newsgathering and dissemination may have particular rights such as the protection of source confidentiality and access to locations that are not automatically open to others.

3.5.4 Further reading

1. Jamie Cameron, "Networking and the Law of Defamation" CFE, 2018. https://cfe.torontomu.ca/blog/2018/05/networking-law-defamation
2. Law Commission of Ontario*, Defamation Law in the Internet Age,* 2020 (Executive Summary). https://www.lco-cdo.org/wp-content/uploads/2020/03/Defamation-Final-Report-Eng-FINAL-1.pdf
3. Justin Safeyani, "Anti-SLAPP Laws: recent trends and lingering uncertainties", CFE Blog, 2024, https://cfe.torontomu.ca/blog/2024/05/anti-slapp-laws-ontario-recent-trends-and-lingering-uncertainties
4. Benjamin Oliphant, "Freedom of the Press as a Discrete Constitutional Guarantee" 59 McGill LJ 283 (2013) https://lawjournal.mcgill.ca/wp-content/uploads/pdf/21141-Article__2___Oliphant.pdf

3.5.5 Questions

1. Should the press have special rights? If so, should these rights be given to any person or group that gathers or provides information to the public?
2. Do you agree with the LCO Report 2020 that civil action is not an effective or even appropriate way to address online defamation?
3. Did the words of the radio host in *Bou Malhab* amount to hate speech under the Criminal Code?

3.6 Obscenity / pornography

Section 163 of the *Criminal Code* prohibits the production and publication of obscene material. Under s. 163(8), material is obscene if its dominant characteristic is the undue exploitation of sex or the combination of sex with violence, cruelty, crime, or horror. In *R. v. Brodie,* [1962] 1 SCR 681, a case that was decided shortly after the enactment of s. 163, the Supreme Court of Canada held that the principal test for

determining whether a particular instance of expression (in the form of an explicit sexual image) unduly exploited sex was whether the expression violated community standards.

In *R. v. Butler,* 1992 CanLII 124 (SCC), [1992] 1 SCR 452, an individual who operated an "adult" video rental store was charged with distributing obscene material. In his defence, he argued that the *Criminal Code* ban on obscene publications breached s. 2(b) of the Charter. Before considering the merits of the *Charter* challenge, the Supreme Court of Canada, in a judgment written by Justice Sopinka, reviewed "the legislative history of the provision as well as the extensive judicial interpretation and analysis which have infused the bare words of the statute" (*Butler* at 471). The court's (re)interpretation of the obscenity prohibition in *Butler* took place against a background of changing attitudes towards obscenity/pornography. The justification for the censorship of sexually explicit representations no longer emphasized the immoral or offensive character of sexual imagery. Censorship was instead justified on the grounds that sexually explicit representations could sometimes have harmful consequences. With this change in justification came a shift in the focus of restriction from sexually explicit material in general to sexually explicit material that depicts violent or degrading activity and a change in the language used to describe the restricted material from obscenity to pornography. The shift from obscenity to pornography was the consequence first of a growing commitment to the harm principle: the idea that the prevention of harm was the only legitimate basis for state coercion. This shift was accelerated by the demands of the *Charter*, and in particular its requirement that any restriction on expression be demonstrably justified. Second, the shift from obscenity to pornography was the consequence of a growing awareness of the problems of sexual subordination and violence and a widely held belief that certain kinds of sexual representation contributed to these harms.

3.6.1 R. v. Butler, 1992 CanLII 124 (SCC), [1992] 1 SCR 452

***R. v. Butler*,** 1992 CanLII 124 (SCC), **[1992] 1 SCR 452**

The judgment of Lamer C.J. and La Forest, Sopinka, Cory, McLachlin, Stevenson and Iacobucci was delivered by

SOPINKA J. -- This appeal calls into question the constitutionality of the obscenity provisions of the *Criminal Code*, R.S.C., 1985, c. C-46, s. 163. They are attacked on the ground that they contravene s. 2(b) of the *Canadian Charter of Rights and Freedoms*. …

…

2. Relevant Legislation

Criminal Code, R.S.C., 1985, c. C-46

163. (1) Every one commits an offence who,

(*a*) makes, prints, publishes, distributes, circulates, or has in his possession for the purpose of publication, distribution or circulation any obscene written matter, picture, model, phonograph record or other thing whatever; or

(*b*) makes, prints, publishes, distributes, sells or has in his possession for the purpose of publication, distribution or circulation a crime comic.

(2) Every one commits an offence who knowingly, without lawful justification or excuse,

(*a*) sells, exposes to public view or has in his possession for such a purpose any obscene written matter, picture, model, phonograph record or other thing whatever;

(*b*) publicly exhibits a disgusting object or an indecent show;

(*c*) offers to sell, advertises or publishes an advertisement of, or has for sale or disposal, any means, instructions, medicine, drug or article intended or represented as a method of causing abortion or miscarriage; or

(*d*) advertises or publishes an advertisement of any means, instructions, medicine, drug or article intended or represented as a method for restoring sexual virility or curing venereal diseases or diseases of the generative organs.

(3) No person shall be convicted of an offence under this section if he establishes that the public good was served by the acts that are alleged to constitute the offence and that the acts alleged did not extend beyond what served the public good.

(4) For the purposes of this section, it is a question of law whether an act served the public good and whether there is evidence that the act alleged went beyond what served the public good, bur it is a question of fact whether the acts did or did not extend beyond what served the public good.

(5) For the purposes of this section, the motives of an accused are irrelevant.

(6) Where an accused is charged with an offence under subsection (1), the fact that the accused was ignorant of the nature or presence of the matter, picture, model, phonograph record, crime comic or other thing by means of or in relation to which the offence was committed is not a defence to the charge.

(7) In this section, "crime comic" means a magazine, periodical or book that exclusively or substantially comprises matter depicting pictorially

(*a*) the commission of crimes, real or fictitious; or

(*b*) events connected with the commission of crimes, real or fictitious, whether occurring before or after the commission of the crime.

(8) For the purposes of this Act, any publication a dominant characteristic of which is the undue exploitation of sex, or of sex and any one or more of the following subjects, namely, crime, horror, cruelty and violence, shall be deemed to be obscene.

…

4. Analysis

…

B. *Judicial Interpretation of s. 163(8)*

…

(b) Tests of "Undue Exploitation of Sex"

In order for the work or material to qualify as "obscene", the exploitation of sex must not only be its dominant characteristic, but such exploitation must be "undue". In determining when the exploitation of sex will be considered "undue", the courts have attempted to formulate workable tests. The most important of these is the "community standard of tolerance" test.

i) *"Community Standard of Tolerance" Test*

In *Brodie*, Judson J. accepted the view espoused notably by the Australian and New Zealand courts that obscenity is to be measured against "community standards". … The community standards test has been the subject of extensive judicial analysis. It is the standards of the community as a whole which must be considered and not the standards of a small segment of that community such as the university community where a film was shown … With respect to expert evidence, it is not necessary and is not a fact which the Crown is obliged to prove as part of its case…

Our Court was called upon to elaborate the community standards test in *Towne Cinema Theatres Ltd. v. The Queen*, 1985 CanLII 75 (SCC), [1985] 1 SCR 494. Dickson C.J. reviewed the case law and found (at pp. 508-9):

> The cases all emphasize that it is a standard of *tolerance*, not taste, that is relevant. What matters is not what Canadians think is right for themselves to see. What matters is what Canadians would not abide other Canadians seeing because it would be beyond the contemporary Canadian standard of tolerance to allow them to see it. Since the standard is tolerance, I think the audience to which the allegedly obscene material is targeted must be relevant. The operative standards are those of the Canadian community as a whole, but since what matters is what other people may see, it is quite conceivable that the Canadian community would tolerate varying degrees of explicitness depending upon the audience and the circumstances. [Emphasis in original.]

Therefore, the community standards test is concerned not with what Canadians would not tolerate being exposed to themselves, but what they would not tolerate other Canadians being exposed to. The minority view was that the tolerance level will vary depending on the manner, time and place in which the material is presented as well as the audience to whom it is directed.

…

ii) *"Degradation or Dehumanization" Test*

There has been a growing recognition in recent cases that material which may be said to exploit sex in a "degrading or dehumanizing" manner will necessarily fail the community standards test. …

…

Among other things, degrading or dehumanizing materials place women (and sometimes men) in positions of subordination, servile submission or humiliation. They run against the principles of equality and dignity of all human beings. In the appreciation of whether material is degrading or dehumanizing, the appearance of consent is not necessarily determinative. Consent cannot save materials that otherwise contain degrading or dehumanizing scenes. Sometimes the very appearance of consent makes the depicted acts even more degrading or dehumanizing.

This type of material would, apparently, fail the community standards test not because it offends against morals but because it is perceived by public opinion to be harmful to society, particularly to women. While the accuracy of this perception is not susceptible of exact proof, there is a substantial body of opinion that holds that the portrayal of persons being subjected to degrading or dehumanizing sexual treatment results in harm, particularly to women and therefore to society as a whole. …

…

iii) *"Internal Necessities Test" or "Artistic Defence"*

…

… [T]he artistic defence is the last step in the analysis of whether the exploitation of sex is undue. Even material which by itself offends community standards will not be considered "undue", if it is required for the serious treatment of a theme. …

[T]he "internal necessities" test, or what has been referred to as the "artistic defence", has been interpreted to assess whether the exploitation of sex has a justifiable role in advancing the plot or the theme, and in considering the work as a whole, does not merely represent "dirt for dirt's sake" but has a legitimate role when measured by the internal necessities of the work itself.

(iv) *The relationship of the tests to each other*

…

Pornography can be usefully divided into three categories: (1) explicit sex with violence, (2) explicit sex without violence but which subjects people to treatment that is degrading or dehumanizing, and (3) explicit sex without violence that is neither degrading nor dehumanizing. Violence in this context includes both actual physical violence and threats of physical violence. Relating these three categories to the terms of s. 163(8) of the *Code*, the first, explicit sex coupled with violence, is expressly mentioned. Sex coupled with crime, horror or cruelty will sometimes involve violence. Cruelty, for instance, will usually do so. But, even in the absence of violence, sex coupled with crime, horror or cruelty may fall within the second category. As for category (3), subject to the exception referred to below, it is not covered. Some segments of society would consider that all three categories of pornography cause harm to society because they tend to undermine its moral fibre. Others would contend that none of the categories cause harm. Furthermore, there is a range of opinion as to what is degrading or dehumanizing. …

Because this is not a matter that is susceptible of proof in the traditional way and because we do not wish to leave it to the individual tastes of judges, we must have a norm that will serve as an arbiter in determining what amounts to an undue exploitation of sex. That arbiter is the community as a whole.

The courts must determine as best they can what the community would tolerate others being exposed to on the basis of the degree of harm that may flow from such exposure. Harm in this context means that it predisposes persons to act in an anti-social manner as, for example, the physical or mental mistreatment of women by men, or, what is perhaps debatable, the reverse. Anti-social conduct for this purpose is conduct which society formally recognizes as incompatible with its proper functioning. The stronger the inference of a risk of harm the lesser the likelihood of tolerance. The inference may be drawn from the material itself or from the material and other evidence. Similarly evidence as to the community standards is desirable but not essential.

In making this determination with respect to the three categories of pornography referred to above, the portrayal of sex coupled with violence will almost always constitute the undue exploitation of sex. Explicit sex which is degrading or dehumanizing may be undue if the risk of harm is substantial. Finally, explicit sex that is not violent and neither degrading nor dehumanizing is generally tolerated in our society and will not qualify as the undue exploitation of sex unless it employs children in its production.

…

The foregoing deals with the interrelationship of the "community standards test" and "the degrading or dehumanizing" test. How does the "internal necessities" test fit into this scheme? The need to apply this test only arises if a work contains sexually explicit material that by itself would constitute the undue exploitation of sex. The portrayal of sex must then be viewed in context to determine whether that is the dominant theme of the work as a whole. Put another way, is undue exploitation of sex the main object of the work or is this portrayal of sex essential to a wider artistic, literary, or other similar purpose? Since the threshold determination must be made on the basis of community standards, that is, whether the sexually explicit aspect is undue, its impact when considered in context must be determined on the same basis. The court must

determine whether the sexually explicit material when viewed in the context of the whole work would be tolerated by the community as a whole. Artistic expression rests at the heart of freedom of expression values and any doubt in this regard must be resolved in favour of freedom of expression.

C. *Does s. 163 Violate s. 2(b) of the Charter?*

…

In light of our recent decision in *R. v. Keegstra*, 1990 CanLII 24 (SCC), [1990] 3 SCR 697, the respondent, and most of the parties intervening in support of the respondent, do not take issue with the proposition that s. 163 of the *Criminal Code* violates s. 2(b) of the *Charter*. …

Meaning sought to be expressed need not be "redeeming" in the eyes of the court to merit the protection of s. 2(*b*), whose purpose is to ensure that thoughts and feelings may be conveyed freely in non-violent ways without fear of censure.

In this case, both the purpose and effect of s. 163 are specifically to restrict the communication of certain types of materials based on their content. In my view, there is no doubt that s. 163 seeks to prohibit certain types of expressive activity and thereby infringes s. 2(b) of the *Charter*.

Before turning to consider whether this infringement is justified under s. 1 of the *Charter*, I wish to address the argument advanced by the Attorney General of B.C. that in applying s. 2(*b*), a distinction should be made between films and written works. It is argued that by its very nature, the medium of the written word is such that it is, when used, inherently an attempt to convey meaning. In contrast, British Columbia argues that the medium of film can be used for a purpose "not significantly communicative". In its factum, British Columbia maintains that if the activity captured in hard core pornographic magazines and videotapes is itself not expression, the fact that they are reproduced by the technology of a camera does not magically transform them into "expression": the appellant cannot hide behind the label "film" to claim protection for the reproduction of activity the sole purpose of which is to arouse or shock.

In my view, this submission cannot be maintained. … First, I cannot agree with the premise that purely physical activity, such as sexual activity, cannot be expression. Second, in creating a film, regardless of its content, the maker of the film is consciously choosing the particular images which together constitute the film. In choosing his or her images, the creator of the film is attempting to convey some meaning. The meaning to be ascribed to the work cannot be measured by the reaction of the audience, which, in some cases, may amount to no more than physical arousal or shock. Rather, the meaning of the work derives from the fact that it has been intentionally created by its author. To use an example, it may very well be said that a blank wall in itself conveys no meaning. However, if one deliberately chooses to capture that image by the medium of film, the work necessarily has some meaning for its author and thereby constitutes expression. The same would apply to the depiction of persons engaged in purely sexual activity.

…

D. *Is s. 163 Justified Under s. 1 of the Charter?*

(a) Is s. 163 a Limit Prescribed by Law?

The appellant argues that the provision is so vague that it is impossible to apply it. Vagueness must be considered in relation to two issues in this appeal: (1) is the law so vague that it does not qualify as "a limit prescribed by law"; and (2) is it so imprecise that it is not a reasonable limit. …

…

Standards which escape precise technical definition, such as "undue", are an inevitable part of the law. … It is within the role of the judiciary to attempt to interpret these terms. If such interpretation yields an intelligible standard, the threshold test for the application of s. 1 is met. In my opinion, the interpretation of s. 163(8) in prior judgments which I have reviewed, as supplemented by these reasons, provides an intelligible standard.

(b) Objective

…

In my view … the overriding objective of s. 163 is not moral disapprobation but the avoidance of harm to society. In *Towne Cinema*, Dickson C.J. stated, at p. 507:

"It is harm to society from undue exploitation that is aimed at by the section, not simply lapses in propriety or good taste."

The harm was described in the following way in the Report on Pornography by the Standing Committee on Justice and Legal Affairs (MacGuigan Report) (1978), at p. 18:4:

> The clear and unquestionable danger of this type of material is that it reinforces some unhealthy tendencies in Canadian society. The effect of this type of material is to reinforce male-female stereotypes to the detriment of both sexes. It attempts to make degradation, humiliation, victimization, and violence in human relationships appear normal and acceptable. A society which holds that egalitarianism, non-violence, consensualism, and mutuality are basic to any human interaction, whether sexual or other, is clearly justified. In controlling and prohibiting any medium of depiction, description or advocacy which violates these principles.

…

I do not agree [with the appellant] that to identify the objective of the impugned legislation as the prevention of harm to society, one must resort to the "shifting purpose" doctrine. First, the notions of moral corruption and harm to society are not distinct, as the appellant suggests, but are inextricably linked. It is moral corruption of a certain kind which leads to the detrimental effect on society. Second, and more importantly, I am of the view that with the enactment of s. 163, Parliament explicitly sought to address the harms which are linked to certain types of obscene materials. The prohibition of such materials was based on a belief that they had a detrimental impact on individuals exposed to them and consequently on society as a whole. Our understanding of the harms caused by these materials has developed considerably since that time; however this does not detract from the fact that the purpose of this legislation remains, as it was in 1959, the protection of society from harms caused by the exposure to obscene materials. …

…

A permissible shift in emphasis was built into the legislation when, as interpreted by the courts, it adopted the community standards test. Community standards as to what is harmful have changed since 1959.

This being the objective, is it pressing and substantial? Does the prevention of the harm associated with the dissemination of certain obscene materials constitute a sufficiently pressing and substantial concern to warrant a restriction on the freedom of expression?

…

The enactment of the impugned provision is also consistent with Canada's international obligations (*Agreement for the Suppression of the Circulation of Obscene Publications* and the *Convention for the Suppression of the Circulation of and Traffic in Obscene Publications*). Finally, it should be noted that the burgeoning pornography industry renders the concern even more pressing and substantial than when the impugned provisions were first enacted. I would therefore conclude that the objective of avoiding the harm associated with the dissemination of pornography in this case is sufficiently pressing and substantial to warrant some restriction on full exercise of the right to freedom of expression. …

(c) Proportionality

…

In assessing whether the proportionality test is met, it is important to keep in mind the nature of expression which has been infringed. …

Shannon J., in *R. v. Wagner*, *supra*, described the materials, [observing] at p. 331:

> Women, particularly, are deprived of unique human character or identity and are depicted as sexual playthings, hysterically and instantly responsive to male sexual demands. They worship male genitals and their own value depends upon the quality of their genitals and breasts.

In my view, the kind of expression which is sought to be advanced does not stand on an equal footing with other kinds of expression which directly engage the "core" of the freedom of expression values.

This conclusion is further buttressed by the fact that the targeted material is expression which is motivated, in the overwhelming majority of cases, by economic profit. …

(ii) *Rational Connection*

… As the Attorney General of Ontario has argued in its factum, obscenity wields the power to wreak social damage in that a significant portion of the population is humiliated by its gross misrepresentations.

Accordingly, the rational link between s. 163 and the objective of Parliament relates to the actual causal relationship between obscenity and the risk of harm to society at large. On this point, it is clear that the literature of the social sciences remains subject to controversy. …

While a direct link between obscenity and harm to society may be difficult, if not impossible, to establish, it is reasonable to presume that exposure to images bears a causal relationship to changes in attitudes and beliefs. …

…

In the face of inconclusive social science evidence, the approach adopted by our Court in *Irwin Toy* is instructive. In that case, the basis for the legislation was that television advertising directed at young children is *per se* manipulative. The Court made it clear, at p. 994, that in choosing its mode of intervention, it is sufficient that Parliament had a reasonable basis …

…

… Parliament was entitled to have a "reasoned apprehension of harm" resulting from the desensitization of individuals exposed to materials which depict violence, cruelty, and dehumanization in sexual relations.

Accordingly, I am of the view that there is a sufficiently rational link between the criminal sanction, which demonstrates our community's disapproval of the dissemination of materials which potentially victimize women and which restricts the negative influence which such materials have on changes in attitudes and behaviour, and the objective. …

(iii) *Minimal Impairment*

In determining whether less intrusive legislation may be imagined, this Court stressed in the *Prostitution Reference*, *supra,* that it is not necessary that the legislative scheme be the "perfect" scheme, but that it be appropriately tailored in the context of the infringed right (at p. 1138). …

First, the impugned provision does not proscribe sexually explicit erotica without violence that is not degrading or dehumanizing. It is designed to catch material that creates a risk of harm to society. It might be suggested that proof of actual harm should be required. It is apparent from what I have said above that it is sufficient in this regard for Parliament to have a reasonable basis for concluding that harm will result and this requirement does not demand actual proof of harm.

Second, materials which have scientific, artistic or literary merit are not captured by the provision. As discussed above, the court must be generous in its application of the "artistic defence". …

Third, in considering whether the provision minimally impairs the freedom in question, it is legitimate for the court to take into account Parliament's past abortive attempts to replace the definition with one that is more explicit. … The attempt to provide exhaustive instances of obscenity has been shown to be destined to fail (Bill C-54, 2nd Sess., 33rd Parl.). It seems that the only practicable alternative is to strive towards a more abstract definition of obscenity which is contextually sensitive and responsive to progress in the knowledge and understanding of the phenomenon to which the legislation is directed. In my view, the standard of "undue exploitation" is therefore appropriate. The intractable nature of the problem and the impossibility of precisely defining a notion which is inherently elusive makes the possibility of a more explicit provision remote. …

Fourth, while the discussion in this appeal has been limited to the definition portion of s. 163, I would note that the impugned section, with the possible exception of subs. 1, which is not in issue here, has been held by this Court not to extend its reach to the private use or viewing of obscene materials. …

…

(iv) *Balance Between Effects of Limiting Measures and Legislative Objective*

The final question to be answered in the proportionality test is whether the effects of the law so severely trench on a protected right that the legislative objective is outweighed by the infringement. The infringement on freedom of expression is confined to a measure designed to prohibit the distribution of sexually explicit materials accompanied by violence, and those without violence that are degrading or dehumanizing. As I have already concluded, this kind of expression lies far from the core of the guarantee of freedom of expression. It appeals only to the most base aspect of individual fulfilment, and it is primarily economically motivated. The objective of the legislation, on the other hand, is of fundamental importance in a free and democratic society. It is aimed at avoiding harm, which Parliament has reasonably concluded will be caused directly or indirectly, to individuals, groups such as women and children, and consequently to society as a whole, by the distribution of these materials. It thus seeks to enhance respect for all members of society, and non-violence and equality in their relations with each other.

I therefore conclude that the restriction on freedom of expression does not outweigh the importance of the legislative objective.

5. Conclusion

I conclude that while s. 163(8) infringes s. 2(b) of the *Charter*, freedom of expression, it constitutes a reasonable limit and is saved by virtue of the provisions of s. 1. … [The Court ordered a new trial].

[Concurring reasons were given by Gonthier J. (L'Heureux-Dube J.)]

3.6.2 R. v. Labaye

***R. v. Labaye*, [2005] 3 SCR 728, 2005 SCC 80**

The judgment of McLachlin C.J. and Major, Binnie, Deschamps, Fish, Abella and Charron JJ. was delivered by

THE CHIEF JUSTICE —

1. Introduction

1 The appellant appeals from a conviction of keeping a "common bawdy- house" for the "practice of acts of indecency" under s. 210(1) of the *Criminal Code*, R.S.C. 1985, c. C-46. The issue is whether the acts committed in his establishment were acts of indecency within the meaning of our criminal law.

2 Defining indecency under the *Criminal Code* is a notoriously difficult enterprise. The *Criminal Code* offers no assistance, leaving the task to judges. The test developed by the cases has evolved from one based largely on subjective considerations, to one emphasizing the need for objective criteria, based on harm. This heightened emphasis on objective criteria rests on the principle that crimes should be defined in a way that affords citizens, police and the courts a clear idea of what acts are prohibited. …

3 This appeal requires us to apply the norms developed in recent cases to the operation of clubs established to facilitate group sex, a practice colloquially referred to as "swinging". This in turn invites further refinement of the objective criteria for indecency under the *Criminal Code.*

4 I conclude that the appellant's conviction should be quashed.

…

4. Analysis

4.1 *The Legal Test for Criminal Indecency*

4.1.1 The History of Criminal Indecency

13 Section 210(1) of the *Criminal Code* makes it an offence, punishable by two years in prison, to keep a common bawdy-house. A bawdy-house is defined in s. 197(1) of the *Code* as a place kept, occupied, or resorted to "by one or more persons for the purpose of prostitution or the practice of acts of indecency". The only question in this case is whether what went on at L'Orage [the club] constituted "acts of indecency".

…

22 The Court in *Little Sisters* confirmed that harm is an essential ingredient of obscenity. As Binnie J. pointed out, "the phrase 'degrading or dehumanizing' in *Butler* is qualified immediately by the words 'if the risk of harm is substantial' . . . . This makes it clear that not all sexually explicit erotica depicting adults engaged in conduct which is considered to be degrading or dehumanizing is obscene. The material must also create a substantial risk of harm which exceeds the community's tolerance" (para. 60 (emphasis added)).

…

24 Grounding criminal indecency in harm represents an important advance in this difficult area of the law. Harm or significant risk of harm is easier to prove than a community standard. Moreover, the requirement of a risk of harm incompatible with the proper functioning of society brings this area of the law into step with the vast majority of criminal offences, which are based on the need to protect society from harm.

…

4.1.2 Toward a Theory of Harm

…

28 The first step is to generically describe the type of harm targeted by the concept of indecent conduct under the *Criminal Code.* In *Butler* at p. 485 and *Little Sisters* at para. 59, this was described as "conduct which society formally recognizes as incompatible with its proper functioning".

29 Two general requirements emerge from this description of the harm required for criminal indecency. First, the words "formally recognize" suggest that the harm must be grounded in norms which our society has recognized in its Constitution or similar fundamental laws. This means that the inquiry is not based on individual notions of harm, nor on the teachings of a particular ideology, but on what society, through its laws and institutions, has recognized as essential to its proper functioning. Second, the harm must be serious in degree. It must not only detract from proper societal functioning, but must be *incompatible* with it.

30 It follows that the analysis to be performed in a particular case involves two steps. The first step is concerned with the *nature* of the harm. It asks whether the Crown has established a harm or significant risk of harm to others that is grounded in norms which our society has formally recognized in its Constitution or similar fundamental laws. The second step is concerned with the *degree* of the harm. It asks whether the harm in its degree is incompatible with the proper functioning of society. Both elements must be proved beyond a reasonable doubt before acts can be considered indecent under the *Criminal Code*.

…

4.1.3 The Nature of the Harm: Harm to Individuals or Society Contrary to Society's Norms

…

36 Three types of harm have thus far emerged from the jurisprudence as being capable of supporting a finding of indecency: (1) harm to those whose autonomy and liberty may be restricted by being confronted with inappropriate conduct; (2) harm to society by predisposing others to anti-social conduct; and (3) harm to individuals participating in the conduct. Each of these types of harm is grounded in values recognized by our Constitution and similar fundamental laws. The list is not closed; other types of harm may be shown in the future to meet the standards for criminality established by *Butler*. But thus far, these are the types of harm recognized by the cases.

37 Reference to the fundamental values of our Constitution and similar fundamental laws also eliminates types of conduct that do *not* constitute a harm in the required sense. Bad taste does not suffice: *Towne Cinema*, at p. 507. Moral views, even if strongly held, do not suffice. Similarly, the fact that most members of the community might disapprove of the conduct does not suffice: *Butler*, at p. 492. In each case, more is required to establish the necessary harm for criminal indecency.

…

4.1.3.1 *The Harm of Loss of Autonomy and Liberty Through Public Confrontation*

40 The first is the harm of public confrontation with unacceptable and inappropriate conduct. One reason for criminalizing indecent acts and displays is to protect the public from being confronted with acts and material that reduce their quality of life. Indecent acts are banned because they subject the public to unwanted confrontation with inappropriate conduct. This harm is conceptually akin to nuisance. … The harm is not the aesthetic harm of a less attractive community, but the loss of autonomy and liberty that public indecency may impose on individuals in society, as they seek to avoid confrontation with acts they find offensive and unacceptable. The value or interest protected is the autonomy and liberty of members of the public, to live within a zone that is free from conduct that deeply offends them.

41 Much harm in this category does not rise to the levels of harm required by *Butler* and *Little Sisters.* Tolerance requires that only serious and deeply offensive moral assaults can be kept from public view on pain of criminal sanction. We live in an age when sexual images, some subtle and some not so subtle, are widely dispersed throughout our public space. However, this does not negate the fact that even in our emancipated society, there may be some kinds of sexual conduct the public display of which seriously impairs the livability of the environment and significantly constrains autonomy. Sexual relations are an intensely personal, religious and age-sensitive matter. People's autonomy and enjoyment of life can be deeply affected by being unavoidably confronted with debased public sexual displays. Even when avoidance is possible, the result may be diminished freedom to go where they wish or take their children where they want. Sexual conduct and material that presents a risk of seriously curtailing people's autonomy and liberty may justifiably be restricted. … If the risk of harm is significant enough, it may rise to the degree of the test for criminal indecency in *Butler* — conduct which society formally recognizes as incompatible with its proper functioning.

…

4.1.3.2 *The Harm of Predisposing Others to Anti-social Acts or Attitudes*

45 The second source of harm is based on the danger that the conduct or material may predispose others to commit anti-social acts. … [A] particular harm envisaged in *Butler* was the "predispos[ition of] persons to act in an anti-social manner as, for example, the physical or mental mistreatment of women by men, or, what is perhaps debatable, the reverse" (p. 485).

46 This source of harm is not confined to explicit invitations or exhortations to commit anti-social acts. As discussed in *Butler*, the inquiry embraces attitudinal harm. Conduct or material that perpetuates negative and demeaning images of humanity is likely to undermine respect for members of the targeted groups and hence to predispose others to act in an anti-social manner towards them. Such conduct may violate formally recognized societal norms, like the equality and dignity of all human beings, …

4.1.3.3 *Harm to Participating Individuals*

48 A third source of harm is the risk of physical or psychological harm to individuals involved in the conduct at issue. … [B]ut some kinds of sexual activity may harm those involved. Women may be forced into prostitution or other aspects of the sex trade. They may be the objects of physical and psychological assault. Sometimes they may be seriously hurt or even killed. Similar harms may be perpetrated on children and men. Sexual conduct that risks this sort of harm may violate society's declared norms in a way that is incompatible with the proper functioning of society, and hence meet the *Butler* test for indecent conduct under the *Criminal Code*.

49 The consent of the participant will generally be significant in considering whether this type of harm is established. However, consent may be more apparent than real. Courts must always be on the lookout for the reality of victimization. Where other aspects of debased treatment are clear, harm to participating individuals may be established despite apparent consent.

50 Unlike the previous types of harm by confrontation and by inculcation, the third type of harm is only minimally dependent on whether the conduct is private or public, since its focus is not on harm to society or members of society, but on individuals involved in the acts. …

4.1.4 The Degree of the Harm: Harm Incompatible With the Proper Functioning of Canadian Society

52 At this stage, the task is to examine the degree of the harm to determine whether it is incompatible with the proper functioning of society. The threshold is high. It proclaims that as members of a diverse society, we must be prepared to tolerate conduct of which we disapprove, short of conduct that can be objectively shown beyond a reasonable doubt to interfere with the proper functioning of society.

53 The objective test for criminal indecency that this Court has long insisted must be our goal, requires careful and express analysis of whether the alleged harm is on the evidence in the particular case truly incompatible with the proper functioning of Canadian society. This involves value judgements. What is the "proper" functioning of society? At what point do we say an activity is "incompatible" with it?

54 Value judgements in this domain of the law, like many others, cannot be avoided. But this does not mean that the decision-making process is subjective and arbitrary. First, judges should approach the task of making value judgments with an awareness of the danger of deciding the case on the basis of unarticulated and unacknowledged values or prejudices. Second, they should make value judgments on the basis of evidence and a full appreciation of the relevant factual and legal context, to ensure that it is informed not by the judge's subjective views, but by relevant, objectively tested criteria. Third, they should carefully weigh and articulate the factors that produce the value judgements. By practices such as these, objectivity can be attained.

…

56 Incompatibility with the proper functioning of society is more than a test of tolerance. The question is not what individuals or the community think about the conduct, but whether permitting it engages a harm that threatens the basic functioning of our society. This ensures in part that the harm be related to a formally recognized value, at step one. But beyond this it must be clear beyond a reasonable doubt that the conduct, not only by its nature but also in degree, rises to the level of threatening the proper functioning of our society.

57 Whether it does so must be determined by reference to the values engaged by the particular kind of harm at stake. If the harm is based on the threat to autonomy and liberty arising from unwanted confrontation by a particular kind of sexual conduct, for example, the Crown must establish a real risk that the way people live will be significantly and adversely affected by the conduct. The number of people unwillingly exposed to the conduct and the circumstances in which they are exposed to it are critical under this head of harm. If the only people involved in or observing the conduct were willing participants, indecency on the basis of this harm will not be made out.

58 If the harm is based on predisposing others to anti-social behaviour, a real risk that the conduct will have this effect must be proved. Vague generalizations that the sexual conduct at issue will lead to attitudinal changes and hence anti-social behaviour will not suffice. The causal link between images of sexuality and anti-social behaviour cannot be assumed. Attitudes in themselves are not crimes, however deviant they may be or disgusting they may appear. What is required is proof of links, first between the sexual conduct at issue and the formation of negative attitudes, and second between those attitudes and real risk of anti-social behaviour.

59 Similarly, if the harm is based on physical or psychological injury to participants, it must again be shown that the harm has occurred or that there is a real risk that this will occur. Witnesses may testify as to actual harm. Expert witnesses may give evidence on the risks of potential harm. …

> 60 … [I]n most cases, expert evidence will be required to establish that the nature and degree of the harm makes it incompatible with the proper functioning of society. In every case, a conviction must be based on evidence establishing beyond a reasonable doubt actual harm or a significant risk of actual harm. The focus on evidence helps to render the inquiry more objective. It does not, however, transform the entire inquiry into a pure question of fact. A finding of indecency requires the application of a legal standard to the facts and context surrounding the impugned conduct. It is this legal standard that the harm-based test seeks to articulate.
>
> 61 Where actual harm is not established and the Crown is relying on risk, the test of incompatibility with the proper functioning of society requires the Crown to establish a significant risk. Risk is a relative concept. The more extreme the nature of the harm, the lower the degree of risk that may be required to permit use of the ultimate sanction of criminal law. Sometimes, a small risk can be said to be incompatible with the proper functioning of society. For example, the risk of a terrorist attack, although small, might be so devastating in potential impact that using the criminal law to counter the risk might be appropriate. However, in most cases, the nature of the harm engendered by sexual conduct will require at least a probability that the risk will develop to justify convicting and imprisoning those engaged in or facilitating the conduct.
>
> 4.1.5 Summary of the Test
>
> 62 Indecent criminal conduct will be established where the Crown proves beyond a reasonable doubt the following two requirements:
>
> 1. That, by its *nature*, the conduct at issue causes harm or presents a significant risk of harm to individuals or society in a way that undermines or threatens to undermine a value reflected in and thus formally endorsed through the Constitution or similar fundamental laws by, for example:
>
> (a) confronting members of the public with conduct that significantly interferes with their autonomy and liberty; or
>
> (b) predisposing others to anti-social behaviour; or
>
> (c) physically or psychologically harming persons involved in the conduct, and
>
> 2. That the harm or risk of harm is of a *degree* that is incompatible with the proper functioning of society.
>
> As the above makes clear, the categories of harm capable of satisfying the first branch of the inquiry are not closed, nor is any one of the listed categories in itself an integral part of the definition of harm. For example, predisposition to anti-social behaviour, while central to this Court's analysis in *Butler*, is but one illustration of the type of harm that undermines or threatens to undermine one of society's formally recognized values.
>
> 63 This test, applied objectively and on the basis of evidence in successive cases as they arise, is directed to articulating legal standards that enhance the ability of persons engaged in or facilitating sexual activities to ascertain the boundary between non-criminal conduct and criminal conduct. In this way, the basic requirements of the criminal law of fair notice to potential offenders and clear enforcement standards to police will, it is hoped, be satisfied.
>
> 4.2 *Application of the Test*
>
> …
>
> 65 The sexual acts at issue were conducted on the third floor of a private club, behind doors marked "*Privé*" and accessed only by persons in possession of the proper numerical code. The evidence establishes that a number of steps were taken to ensure that members of the public who might find the conduct inappropriate did not see the activities. Pre-membership interviews were conducted to advise of the nature of the activities and screen out persons not sharing the same interests. Only members and guests were admitted to the premises. A doorman controlled access to the principal door.
>
> 66 On these facts, none of the kinds of harm discussed above was established. …
>
> …
>
> 72 I would allow the appeal and set aside the conviction.

3.6.3 Case notes: Little Sisters, Ashcroft

1. In *Little Sisters Book and Art Emporium v. Canada (Minister of Justice),* 2000 SCC 69, customs officials had interfered with the importation of books by a gay and lesbian bookstore, on the grounds that these books were obscene. Canadian customs legislation prohibited the importation of material "deemed to be obscene" under s. 163, the obscenity provision of the *Criminal Code*, and gave customs officers the power to make this determination (subject to certain appeals). The court found that the legislation had been improperly applied by customs officers and that non-obscene gay and lesbian material ordered by the bookstore had routinely been held up at the border. However, the court decided that the overbroad application of the legislation was not due to any flaws in the legislation but simply to a misapplication of the law by customs officials. The court, therefore, declined to strike down the law and instead called for better training and guidance for these officials.
2. In *Ashcroft v. Free Speech Coalition,* 535 US 234 (2002), the US Supreme Court decided that a prohibition on the possession of a virtual/computer generated sexual image of a child could not be upheld under the First Amendment since the particular harm addressed by child pornography laws was the harm to children in its production. In a dissent, Justice Rehnquist noted that with the development of virtual technologies it may become increasingly difficult to distinguish between real and virtual images of children. Furthermore, if the harm of child pornography is not simply the abuse of children during the production process but also includes also the normalization of sex with children or the development of sexual arousal towards children, then virtual imagery may also be seen as harmful.

3.6.4 Further reading

1. Janine Benedet, "The Paper Tigress: Canadian Obscenity Law 20 Years after Butler." 93 Canadian Bar Review (2015): https://cbr.cba.org/index.php/cbr/article/view/4336
2. Richard Moon, *"R. v. Butler*: The Limits of the Supreme Court's Feminist Re-interpretation of Section 163", 25 Ottawa LR 361 (1993): https://rdo-olr.org/r-v-butler-the-limits-of-the-supreme-courts-feminist-re-interpretation-of-section-163/
3. Lara Karaian, "Indicting Deepfakes?: Why Gender-Based Violence Frameworks and Censorship aren't the Only (or Best) Way to Respond to AI Generated Pornography" CFE Blog, March 6, 2023: https://cfe.torontomu.ca/blog/2023/03/indicting-deepfakes-why-gender-based-violence-frameworks-and-censorship-arent-only-or
4. Elaine Craig, Mainstream Porn (M-Q Univ. Press, 2024): https://www.mqup.ca/mainstreaming-porn-products-9780228022398.php

3.6.5 Questions

1. Should the law prohibit artificially generated images of children engaged in sexual activity?
2. Is it possible to regulate pornography, given how quickly and widely it circulates online?
3. How does obscenity/pornography cause harm? Is pornography always harmful?
4. Have the courts truly moved on from the community standards test, as they claim?

4 Compelled speech

If it is wrong for the state to prevent an individual from communicating with others, then is it also wrong for the state to compel an individual to communicate? According to Justice Beetz: "The freedoms [thought, belief, opinion, and expression] guarantee to every person the right to express the opinions he may have: *a fortiori* they must prohibit compelling anyone to utter opinions that are not his own" (*National Bank v. RCIU,* [1984] SCR 269 at 296). In this description, the right not to express oneself (not to speak) is simply the other side of the freedom of expression right. Justice Lamer, in a later case, took the same view, "freedom of expression necessarily entails the right to say nothing or the right not to say certain things" (*Slaight Communications Inc v Davidson*, 1989 CanLII 92 (SCC), [1989] 1 SCR 1038 at 1080). Yet it is not at all clear that silence (non-speech) is valuable in the way that expression is (leaving aside those occasions when silence is itself expressive - the most obvious examples being a silent vigil or a moment of silence). But even if silence is not valuable in itself, being required to speak may be experienced as a personal invasion because of the importance of speech to the realization of individual agency and identity.

4.1 *Slaight Communications Inc. v. Davidson*

***Slaight Communications Inc. v. Davidson*,** 1989 CanLII 92 (SCC), **[1989] 1 SCR 1038**

The judgment of Dickson C.J. and Wilson, La Forest and L'Heureux-Dubé JJ. was delivered by

THE CHIEF JUSTICE –

The respondent, Mr. Ron Davidson, a radio time salesman, was dismissed by his employer, the appellant, Slaight Communications Incorporated, operating as Q107 FM Radio. A complaint was filed by Mr. Davidson under the *Canada Labour Code*, R.S.C. 1970, c. L-1, as amended by S.C. 1977-78, c. 27, s. 21, and an inquiry undertaken. As the matter could not be resolved or settled, [an adjudicator was appointed] … to render a decision in accordance with the provisions of … the *Canada Labour Code*. …

[The adjudicator found that Mr. Davidson have been dismissed without just cause].

…

> [The adjudicator] ordered payment of $46,628.96 plus interest and legal costs of $2,500. He made a further order, which is central to this appeal, reading:
>
> That the employer give the complainant a letter of recommendation, with a copy to this adjudicator, certifying that:
>
> (1) Mr. Ron Davidson was employed by Station Q107 from June, 1980, to January 20, 1984, as a radio time salesman;
>
> (2) That his sales "budget" or quota for 1981 was $248,000 of which he achieved 97.3 per cent;
>
> (3) That his sales "budget" or quota for 1982 was $343,500 of which he achieved 100.3 per cent;
>
> (4) That his sales "budget" or quota for 1983 was $402,200 of which he achieved 114.2 per cent;
>
> (5) That following termination in January, 1984, an adjudicator (appointed by the Minister of Labour) after hearing the evidence and representations of both parties, held that the termination had been an unjust dismissal.
>
> I further order that any communication to Q107, its management or staff, whether received by letter, telephone or otherwise, from any person or company inquiring about Mr. Ron Davidson's employment at Q107, shall be answered exclusively by sending or delivering a copy of the said letter of recommendation.

…

[Following a discussion of the authority of the adjudicator to make such an order under the Canada Labour Code, Dickson CJ then considered the application of the Charter to the order].

Two constitutional questions were stated in this appeal as follows:

> 1. Do the provisions of the adjudicator's order, pursuant to s. 61.5(9) of the *Canada Labour Code*, R.S.C. 1970, c. L-1, as amended, whereby the appellant was ordered to provide the respondent with a letter of recommendation of specified content combined with the further stipulation that any communication to the appellant relating to the respondent's employment with the appellant be answered exclusively by sending or delivering a copy of the letter of recommendation, infringe or deny the rights and freedoms guaranteed by s. 2(*b*) of the *Canadian Charter of Rights and Freedoms*?
>
> 2.If the provisions of the adjudicator's order infringe or deny the rights and freedoms guaranteed by s. 2(*b*) of the *Canadian Charter of Rights and Freedoms*, are they justified by s. 1 of the *Charter* and therefore not inconsistent with the *Constitution Act, 1982*?

…

I have had the benefit of reading the opinion of Justice Lamer and … agree with his conclusion that the positive order made by adjudicator Joliffe (to draw up and to give the respondent a specified letter of reference) infringes s. 2(*b*) of the *Charter* but is saved by s. 1. However, with regard to the negative order (that any inquiry about the respondent's employment at Q107 be answered exclusively by the letter of reference which is the subject of the positive order), I must respectfully disagree with the conclusion of Lamer J. that it is patently unreasonable, thereby obviating the need to consider the *Charter*. Furthermore, not only am I of the view that the negative order is reasonable in the administrative law sense but I also believe that it is reasonable and demonstrably justified in the sense of s. 1 of the *Charter*.

…

The Negative Order and Section 2(*b*) of the *Charter*

Adjudicator Joliffe's order that Slaight Communications Inc. answer any reference inquiry exclusively by sending the specified letter is an infringement of s. 2(*b*) freedom of expression. The government is attempting to prevent Q107 from expressing its opinion as to the qualifications of Mr. Davidson beyond the facts set out in the letter. The harm that it was aiming to prevent, decreased job prospects for Mr. Davidson, is only relevant to s. 1 analysis and not to s. 2(*b*) analysis.

IV

Section 1 of the *Charter*

…

1. *Importance of the Objective*

I am in firm agreement with the conclusions of Lamer J. about the importance of the objective sought to be achieved by the positive order, namely, counteracting the effects of the unjust dismissal by enhancing the ability of the employee to seek new employment without being lied about by the previous employer. This is also the objective of the negative order which, in the words of Mahoney J. in the Federal Court of Appeal, at p. 260, was designed to "forclos[e] the undermining of [the] effect" of the positive order. Both orders seek to achieve the same goal, the negative order complementing and reinforcing the positive order.

It cannot be overemphasized that the adjudicator's remedy in this case was a legislatively-sanctioned attempt to remedy the unequal balance of power that normally exists between an employer and employee. Thus, in a general sense, this case falls within a class of cases in which the governmental objective is that of protection of a particularly vulnerable group, or members thereof. …

…

The courts must be just as concerned to avoid constitutionalizing inequalities of power in the workplace and between societal actors in general. … As long as the proportionality test is met, it would not, on the facts of this case, be in accordance with those underlying principles and values for the *Charter* to be successfully invoked by an employer. The inequality in one employment relationship would be continued even after its termination with the result that the worker looking for a new job would be placed in an even more unequal bargaining position *vis-à-vis* prospective employers than is normally the case. On the facts of this case, constitutionally protecting freedom of expression would be tantamount to condoning the continuation of an abuse of an already unequal relationship.

2. *Proportionality*

(a) Rational Connection

The negative order is very much rationally linked to the objective, no less than the positive order. The adjudicator was plainly of the view that the respondent had been the subject of some kind of personal vendetta or "set-up" …

… [T]he representative of the employer was found to have engaged in bad faith and duplicitous conduct, giving misleading evidence about the Mr. Davidson's work performance both at the time of his dismissal and during the unjust dismissal hearing. Further, in deciding that reinstatement was not a viable remedy, the adjudicator gave as his reason that "[t]here is no sign that he would receive fair treatment by an employer which has made such vigorous efforts to justify the indefensible". With this proven history of promoting a fabricated version of the quality of Mr. Davidson's service and the concern that the employer would continue to treat him unfairly if he went back to work for the employer, it was rational for the adjudicator to attach a rider to the order for a reference letter so as to ensure that representatives of the employer did not subvert the effect of the letter by unjustifiably maligning its previous employee in the guise of giving a reference.

(b) Minimal Impairment

In my view, there was no less intrusive measure that the adjudicator could have taken and still have achieved the objective with any likelihood. To the extent there was a likelihood that representatives of Q107 would not be content to pass on the letter of reference absent the kind of untrue comments that had resulted in the finding of unjust dismissal, the letter of reference would have been rendered illusory to the same degree of likelihood.

While an order of additional monetary compensation would clearly be less intrusive upon the appellant's freedom of expression, it would not be an acceptable substitute. Even if the adjudicator had ordered that the Mr. Davidson could come back once he had secured a job and be granted compensation, above and beyond unemployment insurance, for the actual period out of work, this would only be compensation for the economic effects of lack of employment not the personal effects. This is directly contrary to the objective sought to be achieved by the order, which is securing new employment in the shortest order possible; the corollary of this objective is, of course, a concern to alleviate the personal problems associated with being out of work. …

…

… The letter was tightly and carefully designed to reflect only a very narrow range of facts which, we saw, were not really contested. … [T]he negative order seeks to prevent the employer from passing on an opinion, such prohibition being closely tied to the history of abuse of power which had been found to exist. Furthermore, that prohibition is very circumscribed. Firstly, it is triggered only in cases when the appellant is contacted for a reference and, secondly, there is no requirement to send the letter to anyone other than prospective employers. …

Finally, it cannot be ignored that a letter such as this may not have a great beneficial impact on an employee's job hunt. The letter is very neutral in tone, totally unembellished as it is by any opinion customary in letters of reference, and it refers to the fact of the finding of unjust dismissal. It seems to me that the adjudicator went no further than was necessary to achieve the objective and, even then, the measures adopted by the adjudicator cannot be said to have done more than to have enhanced, as opposed to having ensured, the chances of the respondent finding a job. The adjudicator did not in any sense pursue the objective without regard to the appellant's right to free expression.

(c) Deleterious Effects

It is clear to me that the effects of the measures are not so deleterious as to outweigh the objective of the measures. The importance of the above-discussed objective cannot be overemphasized. There are many diverse values that deserve protection in a free and democratic society such as that of Canada, only some of which are expressly provided for in the *Charter*. The underlying values of a free and democratic society both guarantee the rights in the *Charter* and, in appropriate circumstances, justify limitations upon those rights. As was said in *Oakes*, *supra*, at p. 136, among the underlying values essential to our free and democratic society are "the inherent dignity of the human person" and "commitment to social justice and equality". Especially in light of Canada's ratification of the *International Covenant on Economic, Social and Cultural Rights*, G.A. Res. 2200 A (XXI), 21 U.N. GAOR, Supp. (No. 16) 49, U.N. Doc. A/6316 (1966), and commitment therein to protect, *inter alia*, the right to work in its various dimensions found in Article 6 of that treaty, it cannot be doubted that the objective in this case is a very important one.

…

In normal course, the suppression of one's right to express an opinion about a subject or person will be a serious infringement of s. 2(*b*) and only outweighed by very important objectives. In the foregoing analysis, I have sought to show that the negative order was minimally intrusive in a relative sense and also that the careful tailoring of both parts of the order has made this a much less serious infringement of s. 2(*b*) …

Conclusion

In conclusion, I am of the opinion that both of the adjudicator's orders at issue (the positive order and the negative order) infringe s. 2(*b*) but are saved by s. 1. I would answer both constitutional questions in the affirmative and dismiss the appeal with costs.

[BEETZ J. (dissenting) thought that the order could not be supported because it forced "the employer to write, as if they were his own, statements of facts in which, rightly or wrongly, he may not believe, or which he may ultimately find or think to be inaccurate, misleading or false."

[LAMER J. (dissenting in part) held that the adjudicator had the power to order the employer to respond to any inquiries about Mr. Davidson with the specified letter. However, he did not think the relevant law should be read as authorizing the adjudicator to prohibit the employer from answering a request for information about Mr. Davidson "other than by sending this letter of recommendation". In his view, "This type of penalty is totalitarian and as such alien to the tradition of free nations like Canada, even for the repression of the most serious crimes."]

4.2 *Lavigne v. Ontario Public Service Employees Union*

Lavigne v. Ontario Public Service Employees Union**,** 1991 CanLII 68 (SCC), **[1991] 2 SCR 211**

The reasons of Wilson and L'Heureux-Dubé JJ. were delivered by

WILSON J. -- This is an appeal from the judgment of the Ontario Court of Appeal holding that the expenditure by a union of union dues extracted from non-members pursuant to a mandatory check-off clause in a collective agreement on union-related causes did not violate either s. 2(*d*) or s. 2(*b*) of the *Canadian Charter of Rights and Freedoms*.

I. The Facts

Since 1974 the appellant has been a teaching master at the Haileybury School of Mines. He is a member of the academic staff bargaining unit represented by the respondent Union, OPSEU. He has never become a member of the respondent Union, nor has he been required to become a member. He has, however, been required to pay dues to the respondent Union. The dues are deducted from his pay cheque under the terms of the collective agreement between the respondent Council of Regents and OPSEU. The dues are paid into the general revenues of the Union and may be used for any purpose contemplated by the Union's constitution.

Article 4 of OPSEU's constitution sets out the aims and purposes of the organization. Specifically, the Union is required to regulate labour relations between its members and their employers, including such things as collective bargaining. General objectives of the Union include the advancement of the "common interests, economic, social and political, of the members and of all public employees, wherever possible, by all appropriate means".

Mr. Lavigne is opposed to the use of his dues to support causes which come within the broader aims of the Union's constitution. OPSEU made several contributions out of its general revenues to which the appellant objected. It is not necessary to list these contributions in any detail. Suffice it to say that donations were made to disarmament campaigns including the campaign against cruise missile testing, to a campaign opposing the expenditure of municipal funds for the SkyDome stadium in Toronto, to the National Union of Mine Workers in the United Kingdom in support of their strike, to a health care workers' union in Nicaragua, and tickets were purchased for events sponsored by the New Democratic Party. Mr. Lavigne has also drawn attention to the fact that OPSEU passed a resolution in favour of free choice with respect to abortion.

…

V. Analysis

…

[Wilson J. found that the *Charter* applied since the college, a government actor, was a party to the agreement that compelled the payment of union dues. This was also the finding of the other judges on the Court].

…

3. *Freedom of Expression*

…

The test articulated in *Irwin Toy* has formed the basis of this Court's approach to freedom of expression questions … It is to be noted, however, that this test was framed in the context of governmental restrictions on expression and not, as in the present case, in the context of "forced" expression. Thus, the first issue which must be addressed is whether it is appropriate to apply *Irwin Toy* in this case.

…

How [does the *Irwin Toy* test apply] in cases where, instead of restricting expression, government is compelling expression? It seems to me that as long as the activity in which a plaintiff wishes to engage falls within the protected sphere of activity, the first step will be satisfied. If the government's purpose was to put a particular message into the mouth of the plaintiff, as is metaphorically alleged to be the case here, the action giving effect to that purpose will run afoul of s. 2(*b*). If, on the other hand, the government's purpose was otherwise but the effect of its action was to infringe the plaintiff's right of free expression, then the plaintiff must take the further step and demonstrate that such effect warrants constitutional disapprobation. It seems to me therefore that the interpretive approach established in *Irwin Toy* readily lends itself to the analysis of claims based on compelled expression and I will follow it in my approach to s. 2(*b*) in this case.

(a) The First Step

The first step, then, is to ask whether the activity in which the appellant wishes to engage falls within the sphere of conduct protected by s. 2(*b*), i.e., whether the activity conveys a meaning and, if so, whether the expression takes an acceptable form. …

…

It must … be determined whether the activity in which the appellant wishes to engage conveys a meaning. The nub of Mr. Lavigne's argument is that the scheme of mandatory dues check-off deprives him of his right to refuse to support the Union and the causes it supports. He says, in effect, that it deprives him of the right to take a contrary position on these causes or to refrain from taking any position on them at all. It compels him, he submits, to be identified with them and therefore conveys a meaning in the sense discussed in *Irwin Toy*.

It was noted in *Reference re ss. 193 and 195.1(1)(c) of the Criminal Code*, *supra*, that silence may in certain circumstances constitute expressive activity within the meaning of s. 2(*b*). At page 1184 Lamer J. said:

> Obviously, almost all human activity combines expressive and physical elements. For example sitting down expresses a desire not to be standing. Even silence, the apparent antithesis of expression, can be expressive in the sense that a moment's silence on November 11 conveys a meaning.

I do not think that Lamer J. was saying in this passage that silence in general conveys a meaning but that it may in some special circumstances such as the two minutes' silence on Armistice Day. Silence can, indeed, in some circumstances speak louder than words but the question raised by the plaintiff as far as silence is concerned is whether his s. 2(*b*) right to freedom of expression includes a right to take no position as well as a right to take a contrary position.

I do not consider it necessary in this case to decide whether freedom of expression under s. 2(*b*) encompasses a right not to express oneself at all on an issue since it seems to me clear that the essence of Mr. Lavigne's complaint is not that he wishes to take a neutral or no position in relation to some of the causes supported by the Union but that he is vigorously opposed to some of them and objects to being compelled, as he says, to be identified with them through the payment of the equivalent of union dues. His objection, as I understand it, is to being compelled to say something rather than to being denied the right to say nothing.

There is no question in my mind that the Union's contributions to various purposes convey meaning for it. Similarly, for some members of the bargaining unit represented by OPSEU the contribution of dues to the Union signifies for them support for the Union and perhaps more generally for the union movement and the interests it supports. Clearly, therefore, volunteering financial support is expressive for such people. Particularly in this day and age where money is an extremely powerful way of expressing support, the channelling of contributions is expressive indeed. It is also unquestionably true that a refusal to provide monetary assistance, to boycott, in other words, is equally expressive. I agree, therefore, with the appellant that the fact that he is denied the right to boycott the Union's causes prevents him from conveying a meaning which he wants to convey. The real question, however, is whether it is the action of government which has in either purpose or effect impinged upon this expressive activity.

(b) The Second Step

What was the purpose behind the government action in this case? I think it clear that it was never the intention of government in enacting the impugned sections of the *Colleges Collective Bargaining Act*, or in agreeing with OPSEU to incorporate the Rand formula into the collective agreement, to control the conveyance of meaning. Indeed, to suggest that it was seems to me to misapprehend the purpose of the agency shop and the vital role it plays in the regulation of Canadian labour relations.

The history behind the agency shop device in Canada demonstrates that the purpose of the Rand formula is simply to promote industrial peace through the encouragement of collective bargaining. I will have more to say on the purpose behind compulsory dues check-off schemes in my analysis of the application of s. 1 of the *Charter* later in these reasons. For the moment, suffice it to say that the Rand formula is but one aspect of a complex legislative regime which attempts to strike a balance between the interests of capital and labour. The Rand formula has grown in popularity in this country precisely because it is a fair means to achieve that balance without which collective bargaining cannot succeed. Compulsory dues check-off is a means by which to shore up union strength in bargaining relationships plagued by inequality. Its success in Canada has stemmed from the fact that in enhancing union security it does not work to suppress expression but to foster it.

Why is this so? Viewed closely, it is evident that there is nothing about the agency shop which purports to align those subject to its operation with the union or any of its activities. Indeed, the Rand formula specifically provides for dissent by stipulating that no member of the bargaining unit is required to join and thereby become a member of the union. Free expression was thus enhanced by giving unionists and non-unionists alike a voice in the administration of the employment relationship.

But does the Rand formula have the effect of depriving the appellant of his right to express himself freely? In *Irwin Toy*, as I indicated earlier, this Court held that, where a law only incidentally affects freedom of expression, a plaintiff, in order to reap the benefit of s. 2(*b*), must show that the expression in which he or she wishes to engage feeds the purpose behind the guarantee. …

The second way in which a possible freedom of expression impingement could arise in this context would be if Mr. Lavigne's capacity to engage in "expression" were reduced as a result of mandatory dues. Arguably, compelled payment of dues reduces the financial resources available to the objecting dues payor to support causes of his own choosing; this results in a burdening of freedom of expression. ...

…

I cannot see that the record for this application supports the argument that Mr. Lavigne's capacity to express his views about the Union, or about the causes it supports has been impaired in any way.

…

[I]t seems to me that this Court [in *Slaight Communication v. Davidson* and other cases] has already accepted that public identification and opportunity to disavow are relevant to the determination of whether s. 2(*b*) has been violated.

…

Quite apart from these decisions it would be my view that as a matter of principle concerns over public identification and opportunity to disavow should form part of the s. 2(*b*) calculus. I have only one reservation and that is that care should be exercised in considering whether or not one truly has the opportunity to disavow. Opportunity must be meaningful and we should not be too quick to ascribe to persons opportunities and abilities which they do not really possess. That aside, I favour the inclusion of these factors because both are directed to preserving and promoting the fundamental purpose of the s. 2(*b*) guarantee, namely to ensure that everyone has a meaningful opportunity to express themselves. If a law does not really deprive one of the ability to speak one's mind or does not effectively associate one with a message with which one disagrees, it is difficult to see how one's right to pursue truth, participate in the community, or fulfil oneself is denied.

I return, therefore, to the question whether the mandatory payment of dues infringes s. 2(*b*). To my mind, compelled financial support does not necessarily violate freedom of expression. For example, all members of the community are compelled to pay taxes on pain of legal penalty. It seems axiomatic that the payment of taxes does not signify in the eyes of others support for the uses to which tax money is put or support for the political party in power or, indeed, support for the idea of government at all. The constitutionality of compelled payments has in fact been recently litigated. In *MacKay v. Manitoba*, 1989 CanLII 26 (SCC), [1989] 2 SCR 357, this Court rejected a claim that *The Election Finances Act*, S.M 1982-83-84, c. 45, infringed taxpayers' freedom of expression. The Act provided for the payment of a portion of campaign expenses out of the Consolidated Revenue Fund of Manitoba to election candidates who received a designated proportion of the votes in provincial elections. Cory J. briefly disposed of this argument, stating at pp. 366-67:

> It was said that the statutory funding of candidates could, whenever a losing candidate or candidates received 10 per cent of the vote, force a taxpayer to support a candidate whose views are fundamentally opposed to that of the taxpayer. This enforced support of a contrary view was said to infringe the taxpayer's right to freedom of expression. I cannot accept that contention. The Act does not prohibit a taxpayer or anyone else from holding or expressing any position or their belief in any position. Rather, the Act seems to foster and encourage the dissemination and expression of a wide range of views and positions. In this way it enhances public knowledge of diverse views and facilitates public discussion of those views.

See also Prior v. Canada (1989), 101 N.R. 401 (F.C.A.) where a challenge on religious grounds to tax dollars being expended for military purposes failed for the same reason.

In my view, the present case is analogous to MacKay. The fact that the appellant is obliged to pay dues pursuant to the agency shop clause in the collective agreement does not inhibit him in any meaningful way from expressing a contrary view as to the merits of the causes supported by the Union. He is free to speak his mind as and when he wishes. Nor does his being governed by the Rand formula have such an effect. It is a

built-in feature of the Rand formula that Union activities represent only the expression of the Union as the representative of the majority of employees. It is not the voice of one and all in the bargaining unit. I find therefore that the appellant's s. 2(b) right has not been infringed.

4. Section 1 of the Charter

Although it is not necessary for me to consider s. 1 of the Charter in light of my conclusion that neither s. 2(d) nor s. 2(b) has been infringed, I am considering its application in case my conclusion is in error and for the sake of completeness.

[Wilson J. held that any breach of s.2(b) would be justified under s.1 since the objective of the "Rand Formula", to ensure industrial peace was substantial and compelling.]

[Wilson J. also found that the union dues requirement in this case did not breach s. 2(d).]

VI. Disposition

I would dismiss the appeal with costs to Ontario Public Service Employees Union, Canadian Labour Congress, Ontario Federation of Labour and National Union of Provincial Government Employees.

The reasons of La Forest, Sopinka and Gonthier JJ. were delivered by

LA FOREST J. –

…

I have had the advantage of reading the reasons of my colleague, Justice Wilson, and would dispose of the appeal as she does, but I have reached that conclusion by a different route and have therefore felt constrained to write.

…

Freedom of Expression

… This Court has, in *Irwin Toy Ltd. v. Quebec (Attorney General)*, 1989 CanLII 87 (SCC), [1989] 1 SCR 927, at p. 968, stated that "[a]ctivity is expressive if it attempts to convey meaning". I do not think that the appellant's contribution to the Union can be said to be an attempt to convey meaning. I fail to see how Lavigne, as one of many who either willingly or unwillingly contribute to the Union, can be said to be responsible for the use to which the money contributed is put. Nor would reasonable people regard him as responsible for the use to which that money was put. In short, the manner in which the Union expends its funds would properly be regarded as the expression of the opinions and positions of the Union *qua* corporate entity. It would not be regarded as an expression of the thoughts and opinions of the many individuals who contribute to the Union's coffers.

…

While I have no doubt that the contribution of money to a fund would in many circumstances constitute an activity capable of expressing meaning, I do not think it does in the circumstances of the present case. The appellant is one of many anonymous contributors to a fund which will be spent in the name of the Union as representative of the majority of employees. More particularly, the Rand formula is so designed that he is not even a member of the Union.

Disposition

For these reasons, I would dismiss the appeal with costs to the Ontario Public Service Employees Union, the Canadian Labour Congress, the Ontario Federation of Labour and the National Union of Provincial Government Employees

[LaForest J. found that the Rand Formula breached s. 2(d) "to the extent that these sums are expended on matters not substantially related to the labour relations process" but that this breach was justified under s.1.]

[MCLACHLIN J. held that "the payments at issue do not constitute expression under s. 2(*b*) of the *Charter* . She also held that they did not breach s. 2 (d).]

4.3 Case notes: *Barnette, RJR MacDonald, JTI-Macdonald*

1. In the United States, the right against compelled speech was recognized by the US Supreme Court in *West Virginia State Board of Education v. Barnette*, 319 US 624, 63 S Ct 1178 (1943). The case involved a resolution by the West Virginia school authorities that required all students to salute the flag during the school's opening exercises. Several students who were members of the Jehovah's Witness community refused to salute the flag and were, as a consequence, suspended from school. The resolution further provided that any student who was suspended from school for refusing to salute the flag would be considered a juvenile delinquent and could be removed from their family home. The US Supreme Court held that the resolution breached the First Amendment. In the court's opinion, the flag salute was an expression of loyalty that individuals should not be compelled to make. Justice Jackson declared:

   > If there is a fixed star in our constitutional constellation, it is that no official, high or petty can prescribe what shall be orthodox in politics, nationalism, religion, or other matters of opinion or force citizens to confess by word or act their faith therein … We think the action of the local authorities in compelling the flag salute and pledge transcends constitutional limitations on their power and invades the sphere of intellect and spirit which it is the purpose of the First Amendment to our Constitution to reserve from all official control. (*Barnette* 1943, 642)

2. In *RJR-MacDonald Inc v Canada (Attorney General)*, 1995 CanLII 64 (SCC), [1995] 3 SCR 199, a majority of the Supreme Court of Canada decided that a federal law requiring manufacturers to include specified health warnings on cigarette packages violated the Charter. McLachlin J, writing for the majority, held that the requirement breached s. 2(b) because it compelled the manufacturers "to say what they do not wish to say" and "in a way that associates them with the opinions in question" (*RJR-MacDonald* at 348). She accepted that the reasons for requiring manufacturers to include these warnings were substantial enough to justify a limitation under s. 1 of their "right not to speak." However, she thought it was a problem that manufacturers could not attribute the warnings to the government because the law prohibited the display of any message on the package other than brand name, trademark, and health warning. She suggested that consumers might mistakenly think that these were voluntary statements by the cigarette companies: "that it is the corporations themselves who are warning of the danger" (*RJR-MacDonald* at 348). Since, in her view, a warning attributed to the government would be no less effective than an unattributed warning, in advancing the government's objective (of informing the public), the compelled speech in this case was more intrusive than necessary and so could not be justified under s. 1 as a minimal impairment on the freedom.
3. A few years following the *RJR-MacDonald* (1995) decision, the federal government reintroduced a requirement that tobacco manufacturers include health warnings on their packaging. Under the new law, the companies were permitted to attribute the warnings to the government. The law, though, required that the warnings (including graphic images) take up at least 50 per cent of the packaging surface. The tobacco companies challenged this requirement, arguing that it was excessive and so interfered unnecessarily with their freedom of expression. In *Canada (AG) v. JTI-Macdonald Corp.,* 2007 SCC 30, the Supreme Court of Canada accepted that the warning

requirement “and specifically the requirement that 50 percent of the principal display surfaces of the package be devoted to the warnings” amounted to a breach of the companies’ s. 2(b) rights (*JTI-Macdonald* at132). The court, however, found that this infringement was justified under s. 1. In the court’s view, the law was designed to advance the important goal “of discouraging tobacco consumption and preventing new smokers from taking up the habit” and was reasonable in its scope, since it left the tobacco companies with half the package surface to communicate their message (*JTI-Macdonald* at 138).

4. The courts in both the United States and Canada have held that freedom of expression precludes the state from requiring a newspaper to publish a story or statement. The courts have struck down legislation granting limited public access to the print media, in the form of a right of reply to political criticism and a right against discrimination in the purchase of advertising space.
Both countries, though, have taken a different approach to broadcasting. The courts in Canada and the US have upheld legislation requiring broadcasters to be balanced in their presentation of news. In Canada, the courts have also upheld rules requiring broadcasters to include a certain amount of Canadian content. The regulation of social media is still taking shape, although in Canada it seems to be accepted that the state can require social media platforms and search engines to include certain material and speakers, without running afoul of s. 2(b).

4.4 Further reading

1. *Moody v. NetChoice, LLC and NetChoice, LLC v. Paxton,* 603 U.S: https://www.supremecourt.gov/opinions/23pdf/22-277new_8mjp.pdf
2. Richard Moon, “State Compelled Expression: Two Recent Cases”, CFE Blog, 2018: https://cfe.torontomu.ca/blog/2018/06/state-compelled-expression-two-recent-cases
3. Richard Moon, “More on Compelled Speech: Compulsory Union Dues”: https://cfe.torontomu.ca/blog/2018/07/more-compelled-speech-compulsory-union-dues

4.5 Questions

1. If compelled expression is objectionable because, in the words of the US Supreme Court, it invades the sphere of intellect and spirit, should it matter if others know that the expression has been compelled or if the compelled speaker has an opportunity to express their actual views?
2. Should the right not to speak extend to the payment of money such as compulsory union dues?
3. Should the right not to speak prevent the state from requiring a corporation to open its property, such as a shopping mall or a newsletter, to other views or voices?
4. Canadian law requires disclosures of many different kinds. The law requires house sellers to reveal latent defects, drug manufacturers to disclose risks and side effects, and doctors to inform their patients of the risks of different procedures. Why do you think the court took a different view the health warnings on tobacco packaging? Was the court treating these warning as matters of opinion?

5 Communicative power and access

If expression is a valuable activity, contributing to different individual and collective interests, then it is important that individuals have meaningful opportunities to communicate with others. Expression occurs in common spaces, face to face, or through different media such as the radio, newspaper, or internet. The ability to participate in public discourse depends on access to these communicative platforms or resources. Freedom of expression, though, is conventionally viewed as a negative right that protects the individual’s communicative activity from interference by the state but does not require the state to support expression. A court, as an adjudicative body, is not in a position to review and make adjustments to the distribution of communicative resources. However, as the Canadian cases show, this distinction between censorship and support (or between negative and positive freedom of expression claims) is not always easy to draw.

5.1 Access to state property

In determining whether and when an individual has a right to communicate on state-owned property, the Canadian courts have adopted a version of the US public forum doctrine, which gives individuals the right to access some properties (those that by tradition or designation are open to public communication) and not others (those that perform a function that would be significantly compromised by general access). The issue in access to state property cases is not, or not simply, whether the state has interfered with expression but is instead whether the individual has a meaningful opportunity to express themselves. It is a distributive issue that does not fit easily into the two-step structure of Charter adjudication.

5.1.1 Montréal (City) v. 2952-1366 Québec Inc.

***Montréal (City) v. 2952-1366 Québec Inc.*, [2005] 3 SCR 141, 2005 SCC 62**

The judgment of McLachlin C.J. and Bastarache, LeBel, Deschamps, Abella and Charron JJ. was delivered by

THE CHIEF JUSTICE AND DESCHAMPS J. —

1. Introduction

1. This appeal concerns the power of the city of Montréal (“City”) to prohibit noise produced in the street by a loudspeaker located in the entrance of an establishment. …

2. Origins of the Case

3 The respondent operates a club featuring female dancers in a commercial zone of downtown Montréal, in a building fronting Ste-Catherine Street. To attract customers and compete with a similar establishment located nearby, the respondent set up, in the main entrance to its club, a loudspeaker that amplified the music and commentary accompanying the show under way inside so that passers-by would hear them. …. The respondent was charged with producing noise that could be heard outside using sound equipment, in violation of arts. 9(1) and 11 of the By-law. These provisions read as follows:

9. … [T]he following noises, where they can be heard from the outside, are specifically prohibited:

(1) noise produced by sound equipment, whether it is inside a building or installed or used outside;

...

[The majority found that the by-law applied only to amplified sound]

[The majority found that the by-law fell within the jurisdiction of the municipality. The City has the power to adopt art. 9(1) of the By-law by virtue of its power to define and regulate nuisances pursuant to arts. 517(*l*) and 520(72) of the *Charter of the city of Montreal, 1960*.]

…

3.2 *Does Article 9(1) of the By-law Infringe Section 2(b) of the Canadian Charter?*

56 Does the City's prohibition on amplified noise that can be heard from the outside infringe s. 2(*b*) of the Canadian Charter? Following the analytic approach of previous cases, the answer to this question depends on the answers to three other questions. First, did the noise have *expressive content*, thereby bringing it within s. 2(*b*) protection? Second, if so, does the *method or location* of this expression remove that protection? Third, if the expression is protected by s. 2(*b*), does the By-law *infringe* that protection, either in purpose or effect? …

57 The first two questions relate to whether the expression at issue in this case falls within the protected sphere of s. 2(*b*). They are premised on the distinction made in *Irwin Toy* between content (which is always protected) and "form" (which may not be protected). While this distinction may sometimes be blurred …, it is useful in cases such as this, where method and location are central to determining whether the prohibited expression is protected by the guarantee of free expression.

3.2.1 Expressive Content

58 The first question is whether the noise emitted by a loudspeaker from inside the club had expressive content. The answer must be yes. The loudspeaker sent a message into the street about the show going on inside the club. The fact that the message may not, in the view of some, have been particularly valuable, or may even have been offensive, does not deprive it of s. 2(*b*) protection. Expressive activity is not excluded from the scope of the guarantee because of its particular message. Subject to objections on the ground of method or location, as discussed below, all expressive activity is presumptively protected by s. 2(*b*) …

59 It is clear that noise emitted by loudspeakers from buildings onto the street can have expressive content, and in this case it did. Therefore, the first part of the test in *Irwin Toy* is met and a *prima facie* case for s. 2(*b*) protection is established.

3.2.2 Excluded Expression

60 Expressive activity may fall outside the scope of s. 2(*b*) protection because of how or where it is delivered. While all *expressive content* is worthy of protection …, *the method or location* of the expression may not be. For instance, this Court has found that violent expression is not protected by the *Canadian Charter: Irwin Toy*, at pp. 969-70. Violence is not excluded because of the message it conveys (no matter how hateful) but rather because the method by which the message is conveyed is not consonant with *Charter* protection.

61 This case raises the question of whether the location of the expression at issue causes the expression to be excluded from the scope of s. 2(*b*) … Property may be private or public. Public property is government-owned. In this case, although the loudspeaker was located on the respondent's private property, the sound issued onto the street, a public space owned by the government. One aspect of free expression is the right to express oneself in certain public spaces. Thus, the public square and the speakers' corner have by tradition become places of protected expression. The question here is whether s. 2(*b*) of the Canadian Charter protects not only what the appellants were doing, but their right to do it *in the place where they were doing it*, namely a public street.

62 Section 2(*b*) protection does not extend to all places. Private property, for example, will fall outside the protected sphere of s. 2(*b*) absent state-imposed limits on expression, since state action is necessary to implicate the *Canadian Charter*. Public property, however, may be more problematic since, by definition, it implicates the state. Two countervailing arguments, both powerful, are pitted against each other where the issue is expression on public property.

63 The argument for s. 2(*b*) protection on all public property focuses on ownership. It says the critical distinction is between government-owned places and other places. The government as the owner of property controls it. It follows that restrictions on the use of public property for expressive purposes are "government acts". Therefore, it is argued, the government is limiting the right to free expression guaranteed by s. 2(*b*) of the *Canadian Charter* and must justify this under s. 1.

64 The argument against s. 2(*b*) protection on at least some government-owned property, by contrast, focuses on the distinction between public use of property and private use of property. Regardless of the fact that the government owns and hence controls its property, it is asserted, many government places are essentially private in use. Some areas of government-owned property have become recognized as public spaces in which the public has a right to express itself. But other areas, like private offices and diverse places of public business, have never been viewed as available spaces for public expression. It cannot have been the intention of the drafters of the *Canadian Charter*, the argument continues, to confer a *prima facie* right of free expression in these essentially private spaces and to cast the onus on the government to justify the exclusion of public expression from places that have always and unquestionably been off-limits to public expression and could not effectively function if they were open to the public.

…

72 Expressive activity should be excluded from the protective scope of s. 2(*b*) only if its method or location clearly undermines the values that underlie the guarantee. Violent expression, which falls outside the scope of s. 2(*b*) by reason of its method, provides a useful analogy. Violent expression may be a means of political expression and may serve to enhance the self-fulfillment of the perpetrator. However, it is not protected by s. 2(*b*) because violent means and methods undermine the values that s. 2(*b*) seeks to protect. Violence prevents dialogue rather than fostering it. Violence prevents the self-fulfillment of the victim rather than enhancing it. And violence stands in the way of finding the truth rather than furthering it. Similarly, in determining what public spaces fall outside s. 2(*b*) protection, we must ask whether free expression in a given place undermines the values underlying s. 2(*b*).

73 We therefore propose the following test for the application of s. 2(*b*) to public property; it adopts a principled basis for method or location-based exclusion from s. 2(*b*) ... The onus of satisfying this test rests on the claimant.

74 The basic question with respect to expression on government-owned property is whether the place is a public place where one would expect constitutional protection for free expression on the basis that expression in that place does not conflict with the purposes which s. 2(*b*) is intended to serve, namely (1) democratic discourse, (2) truth finding and (3) self-fulfillment. To answer this question, the following factors should be considered: (a) the historical or actual function of the place; and (b) whether other aspects of the place suggest that expression within it would undermine the values underlying free expression.

75 The historical function of a place for public discourse is an indicator that expression in that place is consistent with the purposes of s. 2(*b*). In places where free expression has traditionally occurred, it is unlikely that protecting expression undermines the values underlying the freedom. As a result, where historical use for free expression is made out, the location of the expression as it relates to public property will be protected.

76 Actual function is also important. Is the space in fact essentially private, despite being government-owned, or is it public? Is the function of the space — the activity going on there — compatible with open public expression? Or is the activity one that requires privacy and limited access? Would an open right to intrude and present one's message by word or action be consistent with what is done in the space? Or would it hamper the activity? Many government functions, from cabinet meetings to minor clerical functions, require privacy. To extend a right of free expression to such venues might well undermine democracy and efficient governance.

77 Historical and actual functions serve as markers for places where free expression would have the effect of undermining the values underlying the freedom of expression. The ultimate question, however, will always be whether free expression in the place at issue would undermine the values the guarantee is designed to promote. Most cases will be resolved on the basis of historical or actual function. However, we cannot discount the possibility that other factors may be relevant. Changes in society and technology may affect the spaces where expression should be protected having regard to the values that underlie the guarantee. The proposed test reflects this, by permitting factors other than historical or actual function to be considered where relevant.

78 The markers of historical and actual functions will provide ready answers in most cases. However, we must accept that, on the difficult issue of whether free expression is protected in a given location, some imprecision is inevitable. As some scholars point out, the public-private divide cannot be precisely defined in a way that will provide an advance answer for all possible situations: see, e.g., R. Moon, *The Constitutional Protection of Freedom of Expression* (2000), at pp. 148 *et seq*. This said, the historical and actual functions of a place is something that can be established by evidence. As courts rule on what types of spaces are inherently public, a central core of certainty may be expected to evolve with respect to when expression in a public place will undermine the values underlying the freedom of expression.

79 … Our jurisprudence requires broad protection at the s. 2(*b*) stage, on the understanding that governments can limit that protection if they can justify the limits under s. 1 of the *Canadian Charter*. The proposed test reflects this. However, it also reflects the reality that some places must remain outside the protected sphere of s. 2(*b*). People must know where they can and cannot express themselves and governments should not be required to justify every exclusion or regulation of expression under s. 1. … [T]he test must provide a preliminary screening process. Otherwise, uncertainty will prevail and governments will be continually forced to justify restrictions which, viewed from the perspective of history and common sense, are entirely appropriate. Restricted access to many government-owned venues is part of our history and our constitutional tradition. The *Canadian Charter* was not intended to turn this state of affairs on its head.

80 A final concern is whether the proposed test is flexible enough to accommodate future developments. Changes in society will inevitably alter the specifics of the debate about the venues in which the guarantee of free expression will apply. Some say, for example, that the increasing privatization of government space will shift the debate to the private sector. Others say that the new spaces for communication created by electronic communication through the Internet will raise new questions on the issue of where the right to free speech applies. We do not suggest how the problems of the future will be answered. But it seems to us that a test that focuses on historical and actual functions as markers for public and private domains, adapted as necessary to accord with new situations and the values underlying the s. 2(*b*) guarantees, will be sufficiently flexible to meet the problems of the future.

81 … [T]he expression at issue in this case falls within the protected sphere of s. 2(*b*) of the *Canadian Charter*. The content, as already noted, is expressive. Viewed from the perspective of locus, the expression falls within the public domain. Streets are clearly areas of public, as opposed to private, concourse, where expression of many varieties has long been accepted. There is nothing to suggest that to permit this medium of expression would subvert the values of s. 2(*b*).

3.2.3 The Infringement

82 This brings us to the third step of the *Irwin Toy* test. Having concluded that the expression falls within the protected scope of s. 2(*b*), we must ask whether the By-law impinges on protected expression, in purpose or effect.

83 Here, the purpose of the By-law is benign. However, its effect is to restrict expression. Where the effect of a provision is to limit expression, a breach of s. 2(*b*) will be made out, provided the claimant shows that the expression at issue promotes one of the values underlying the freedom of expression … .

84 The electronically amplified noise at issue here encouraged passers-by to engage in the leisure activity of attending one of the performances held at the club. Generally speaking, engaging in lawful leisure activities promotes such values as individual self-fulfillment and human flourishing. The disputed value of particular expressions of self- fulfillment, like exotic dancing, does not negate this general proposition … . It follows that the By-law has the effect of restricting expression which promotes one of the values underlying s. 2(*b*) of the *Canadian Charter*.

…

3.3 *Is the Limit Justified Under Section 1 of the Canadian Charter*?

86 We have concluded that the By-law amounts to a limitation on expression protected by s. 2(*b*). The remaining question is whether that limit is justified under s. 1 of the *Canadian Charter.*

…

89 We conclude that the objective of the limitation is pressing and substantial … Noise pollution is a serious problem in urban centers, and cities like Montréal are entitled to act reasonably and responsibly in seeking to curb it.

90 This brings us to proportionality. Proportionality is concerned with the *means* chosen to meet the objective. Here the City chose a two-pronged attack on noise pollution. First, it prohibited noises exceeding a stipulated degree of loudness: art. 8. Second, it prohibited particular noises — namely noise that can be heard from the outside and is produced by sound equipment, whether it is inside a building or installed or used outside: art. 9. Noise targeted by art. 9 is prohibited regardless of whether it affects an inhabited place: art. 11. It is important, however, to note that art. 9 does not represent an absolute ban. … the scheme of the By-law in this case anticipates routine granting of licences as exceptions to the prohibition. Article 20 of the By-law provides that the City may authorize the use of sound equipment prohibited by arts. 9 and 11 in particular circumstances, as for special events, celebrations and demonstrations. The City has exercised this authority and granted permits to use sound equipment on hundreds of occasions: at para. 115, *per* Chamberland J.A. There is no evidence that it has exercised this authority arbitrarily or to curb democratic discourse. Moreover, as discussed above, in para. 34, a contextual reading of the impugned provision leads to the conclusion that art. 9(1) only captures noise that interferes with the peaceful use and enjoyment of the urban environment. This is the essence of the regulatory scheme the City put in place to deal with noise pollution on its streets.

91 The first question is whether the limit on noise produced by sound equipment is rationally connected to the City's objective of limiting noise in the streets. Clearly it is. Amplified noise emitted into the street may interfere with the activities of people using the street and the buildings around it. People in urban neighbourhoods cannot expect to be free from the sounds of the many activities that go on around them. However, they can and do expect the level of this intrusion to be limited, so that they can enjoy a measure of peace and quiet. This was the City's objective. Presumptively prohibiting the emission of amplified noise was one of the means by which it sought to accomplish that objective.

92 The second question, and the most difficult, is whether the measure impairs the right in a reasonably minimal way.

…

94 … [I]n dealing with social issues like this one, where interests and rights conflict, elected officials must be accorded a measure of latitude. The Court will not interfere simply because it can think of a better, less intrusive way to manage the problem. What is required is that the City establish that it has tailored the limit to the exigencies of the problem in a reasonable way. …

95 Second, it is far from clear that regulation by degree of loudness would effectively deal with the problem of noise pollution and the conflict between commercial concerns seeking to maximize commercial expression and citizens seeking a relatively peaceful and calm environment. … Noise can be emitted randomly in unexpected places. Detecting and prosecuting violations could be difficult. Moreover, the regulation of sound levels alone would not prevent the possibility that multiple, simultaneous noises, each within the legal limit, could cumulatively exceed an acceptable sound level.

…

97 Rights should never be sacrificed to mere administrative convenience. Here, however, the City contends that for a variety of reasons there was really no other practical way to deal with the complex problem it was facing. Accordingly, the City's measures do not go beyond what was reasonably necessary in the circumstances and, as a result, its regulatory plan is entitled to deference.

98 It remains to consider whether the prejudicial effects on free expression flowing from the regulation of sound at issue are proportionate to the beneficial effects of the regulation. In our view, the test supports the conclusion that the By-law is valid.

99 The expression limited by the By-law consists of noise produced by sound equipment that interferes with the peaceful use and enjoyment of the urban environment. This limitation therefore goes to the permitted forms of expression on city streets, regardless of content. Against this stand the benefits of reducing noise pollution on the street and in the neighbourhood. We acknowledge that in balancing the deleterious and positive effects of the By-law, account must be taken of the fact that the activity was taking place on a street with an active commercial nightlife in a large and sophisticated city. This does not, however, mean that its residents must necessarily be subjected to abuses of the enjoyment of their environment. … We conclude that the beneficial effects of the By-law outweigh its prejudicial effects.

3.4 *Conclusion on the Constitutional Issue*

100 We conclude that the expression at issue falls within the protected sphere of s. 2(*b*) of the *Canadian Charter* and that the prohibition on noise produced by sound equipment in arts. 9 and 11 of the By-law limits that right. However, that limitation is justified under s. 1 of the *Canadian Charter* as a reasonable limit in a free and democratic society. We therefore conclude that the By-law is constitutional.

[Binnie J. dissenting found that the by-law applied to any sound projected on to the street even if it was not amplified and so decided that the by-law was overbroad in its application and could not be justified under s.1 of the Charter].

5.1.2 Greater Vancouver Transportation Authority v. Canadian Federation of Students — British Columbia Component

***Greater Vancouver Transportation Authority v. Canadian Federation of Students — British Columbia Component*, 2009 SCC 31, [2009] 2 SCR 295**

The judgment of McLachlin C.J. and Binnie, LeBel, Deschamps, Abella, Charron and Rothstein JJ. was delivered by

DESCHAMPS J.

…

Facts and Judicial History

…

[3] In the summer and fall of 2004, the respondents, the Canadian Federation of Students — British Columbia Component ("CFS") and the British Columbia Teachers' Federation ("BCTF"), attempted to purchase advertising space on the sides of buses operated by the transit authorities. The CFS, a society which represents thousands of college and university students in B.C., sought to encourage more young people to vote in a provincial election scheduled for May 17, 2005 by posting, on buses, advertisements about the election. The first advertisement, which was to run the length of the bus, would have depicted a silhouette of a crowd at a concert with the following text:

> Register now. Learn the issues. Vote May 17, 2005. ROCKTHEVOTEBC.com

The second advertisement was a "banner ad" placed along the top of the bus which would have read in one long line as follows:

> Tuition fees ROCKTHEVOTEBC.com Minimum wage ROCKTHEVOTEBC.com Environment ROCKTHEVOTEBC.com.

The BCTF, a society and trade union which is the exclusive bargaining agent for more than 40,000 public school teachers in B.C., sought to voice its concern about changes in the public education system by posting the following message:

> 2,500 fewer teachers, 114 schools closed. Your kids. Our students. Worth speaking out for.

[4] The transit authorities refused to post the respondents' advertisements on the basis that such advertisements were not permitted by their advertising policies. The transit authorities had adopted essentially identical advertising policies, which included the following provisions:

> POLICY:
>
> ...
>
> 2. Advertisements, to be accepted, shall be limited to those which communicate information concerning goods, services, public service announcements and public events.
>
> ...
>
> Standards and Limitations
>
> ...
>
> 7. No advertisement will be accepted which is likely, in the light of prevailing community standards, to cause offence to any person or group of persons or create controversy;
>
> ...
>
> 9. No advertisement will be accepted which advocates or opposes any ideology or political philosophy, point of view, policy or action, or which conveys information about a political meeting, gathering or event, a political party or the candidacy of any person for a political position or public office;

[5] The respondents commenced the present action, alleging that articles 2, 7 and 9 of the transit authorities' policies had violated their right to freedom of expression guaranteed by s. 2(*b*) of the *Charter*. The respondents restricted their claim for relief to a declaration, "pursuant to s. 52 of the *Constitution Act, 1982*, that [articles] 2, 7 and 9 of the advertising policies are unconstitutional and of no force and effect".

…

Issues

[12] There are four issues in this appeal: (1) whether the entities which operate the public transit systems in the GVRD and elsewhere in British Columbia are subject to the *Charter*; (2) if so, whether the impugned policies adopted by these entities infringe the respondents' right to freedom of expression; (3) if so, whether the limits imposed by those policies are "reasonable limits prescribed by law" within the meaning of s. 1 of the *Charter*; and (4) whether a declaration can be made under s. 52 of the *Constitution Act, 1982* with respect to the policies.

[The Court found that the Transit Authorities were government actors and therefore subject to the Charter]

Analysis

…

3.2 *Section 2(b) of the Charter*

[25] … [T]he transit authorities have earned revenues from advertising posted on their buses for years. BC Transit has permitted advertising inside its buses since the 1980s and on the outsides for over a decade, and TransLink has permitted advertising on the outsides of its buses ever since it came into existence in 1998. The transit authorities' policies, which regulate both the content and the form of advertisements, are at the heart of the debate. The respondents sought to post various advertisements on the sides of buses, and their requests were rejected by the transit authorities on the basis that articles 2, 7 and 9 of the policies prohibited political advertisements or advertisements of a controversial nature.

…

3.2.1 Application of *City of Montréal*

[37] In order to determine whether the transit authorities' advertising policies infringe s. 2(*b*) of the *Charter*, three questions must be asked: First, do the respondents' proposed advertisements have expressive content that brings them within the *prima facie* protection of s. 2(*b*)? Second, if so, does the method or location of this expression remove that protection? Third, if the expression is protected by s. 2(*b*), do the transit authorities' policies deny that protection? (*City of Montréal*, at para. 56) If the policies are found to have infringed s. 2(*b*) of the *Charter*, the analysis then shifts to determining whether the infringement is justified under s. 1 of the *Charter*.

[38] The answer to the first question is not in issue. The proposed advertisements unquestionably have expressive content. The answer to the third question is also

Uncontroversial … In the instant case, the very purpose of the impugned policies is to restrict the content of expression in the advertising space on the sides of buses. The wording of articles 2 and 7 clearly limits the content of advertisements. Article 9 is even more precise in excluding political speech. …

…

[39] Regarding the second question, the analysis is somewhat more elaborate. In *City of Montréal*, the majority of the Court set out the following test for determining whether expression in a government location is protected by s. 2(*b*) of the *Charter* (at para. 74): The basic question with respect to expression on government-owned property is whether the place is a public place where one would expect constitutional protection for free expression on the basis that expression in that place does not conflict with the purposes which s. 2(*b*) is intended to serve, namely (1) democratic discourse, (2) truth finding and (3) self-fulfillment. To answer this question, the following factors should be considered: (a) the historical or actual function of the place; and (b) whether other aspects of the place suggest that expression within it would undermine the values underlying free expression.

…

[42] The question is whether the historical or actual function or other aspects of the space are incompatible with expression or suggest that expression within it would undermine the values underlying free expression. One way to answer this question is to look at past or present practice. This can help identify any incidental function that may have developed in relation to certain government property. … While it is true that buses have not been used as spaces for this type of expressive activity for as long as city streets, utility poles and town squares, there is some history of their being so used, and they are in fact being used for it at present. As a result, not only is there some history of use of this property as a space for public expression, but there is actual use — both of which indicate that the expressive activity in question neither impedes the primary function of the bus as a vehicle for public transportation nor, more importantly, undermines the values underlying freedom of expression.

[43] The second factor from *City of Montréal* is whether other aspects of the place suggest that expression within it would undermine the values underlying the constitutional protection. … The very fact that the general public has access to the advertising space on buses is an indication that members of the public would expect constitutional protection of their expression in that government-owned space. … The bus is operated on city streets and forms an integral part of the public transportation system. The general public using the streets, including people who could become bus passengers, are therefore exposed to a message placed on the side of a bus in the same way as to a message on a utility pole or in any public space in the city. Like a city street, a city bus is a public place where individuals can openly interact with each other and their surroundings. Thus, rather than undermining the purposes of s. 2(*b*), expression on the sides of buses could enhance them by furthering democratic discourse, and perhaps even truth finding and self-fulfillment.

[44] The test crafted in *City of Montréal* was intended to be flexible enough to allow courts to take into consideration factors that might become relevant to the use of old or new places for public expression …

…

[46] I do not see any aspect of the location that suggests that expression within it would undermine the values underlying free expression. On the contrary, the space allows for expression by a broad range of speakers to a large public audience and expression there could actually further the values underlying s. 2(*b*) of the *Charter*. I therefore conclude that the side of a bus is a location where expressive activity is protected by s. 2(*b*) of the *Charter*.

[47] Consequently, I conclude that since the transit authorities' policies limit the respondents' right to freedom of expression under s. 2(*b*), the government must justify that limit under s. 1 of the *Charter*.

Is the Limit Justified Under Section 1 of the Charter?

[Deschamps J. found that the transit authorities' policies satisfied the prescribed by law requirement because they were intended to be binding and were "accessible and precise".]

…

3.3.4 Are the Limits Justified in a Free and Democratic Society?

…

> [76] I accept that the policies were adopted for the purpose of providing "a safe, welcoming public transit system" and that this is a sufficiently important objective to warrant placing a limit on freedom of expression. However, like the trial judge, I am not convinced that the limits on political content imposed by articles 2, 7 and 9 are rationally connected to the objective. I have some difficulty seeing how an advertisement on the side of a bus that constitutes political speech might create a safety risk or an unwelcoming environment for transit users. It is not the political nature of an advertisement that creates a dangerous or hostile environment. Rather, it is only if the advertisement is offensive in that, for example, its content is discriminatory or it advocates violence or terrorism — regardless of whether it is commercial or political in nature — that the objective of providing a safe and welcoming transit system will be undermined.
>
> [77] Had I found a rational connection between the objective and the limits imposed by articles 2, 7 and 9, I would nevertheless have concluded that the means chosen to implement the objective was neither reasonable nor proportionate to the respondents' interest in disseminating their messages pursuant to their right under s. 2(*b*) of the *Charter* to freedom of expression. The policies allow for commercial speech but prohibit all political advertising. In particular, article 2 of the policies limits the types of advertisements that will be accepted to "those which communicate information concerning goods, services, public service announcements and public events", thereby excluding advertisements which communicate political messages. Article 7, on the other hand, refers to prevailing community standards as a measuring stick for whether an advertisement is likely "to cause offence to any person or group of persons or create controversy". While a community standard of tolerance may constitute a reasonable limit on offensive advertisements, excluding advertisements which "create controversy" is unnecessarily broad. Citizens, including bus riders, are expected to put up with some controversy in a free and democratic society. Finally, article 9 represents the most overt restriction on political advertisements, as it bans all forms of political content regardless of whether the message actually contributes to an unsafe or unwelcoming transit environment. In sum, the policies amount to a blanket exclusion of a highly valued form of expression in a public location that serves as an important place for public discourse. They therefore do not constitute a minimal impairment of freedom of expression.
>
> …
>
> Remedy
>
> …
>
> 4.2 *Application of the Principles to the Transit Authorities' Policies*
>
> [90] The transit authorities' policies clearly come within the meaning of "law" for the purposes of s. 52(1) of the *Constitution Act, 1982*. They were adopted by government entities pursuant to a rule-making power. On the facts of the case, the transit authorities used their delegated rule-making power to adopt policies which unjustifiably limited the respondents' freedom of expression. Those policies are binding rules of general application that establish the rights of members of the public who seek to advertise on the transit authorities' buses. In my view, the transit authorities' advertising policies are "law" within the meaning of s. 52(1) of the *Constitution Act, 1982* and can therefore be declared of no force or effect to the extent of their inconsistency.

5.1.3 Case notes: Watson, Batty, Bracken

1. The *Access to Abortion Act* in British Columbia creates access zones around abortion clinics, as well as the homes and offices of abortion providers. These zones, which are carved out of space that is otherwise public, exclude protestors from the immediate vicinity of the clinics. The BC Court of Appeal in *R v. Watson and Spratt,* 2008 BCCA 234 held that the BC law was a reasonable restriction on the freedom of expression rights of anti-abortion protestors. In the court's view, the law was intended to ensure "equal access to abortion services," to enhance "privacy and dignity for women using the services," and to improve "security for service providers" (*Watson* at para 71). The court thought that "[w]omen entering the clinic should not be held hostage to the message the protestors wish to send" (*Watson* at para 82). The buffer zone established by the law "offers distance and therefore protection to the staff and patients of the clinic from the physical threats and emotional upset caused by the actions of the protestors and the proximity of their strong message" (*Watson* at para 76). The court also thought that because "the line between peaceful protest and virulent or even violent expression against abortion is easily and quickly crossed … a clear rule against any interference" is the best way to achieve the law's purpose (*Watson* at para 80). When the object of the law is to ensure unimpeded access, it is impractical to require the authorities to make a decision about "each individual approach to everyone entering the clinic" (*Watson* at para 80).
2. In *Batty v City of Toronto*, 2011 ONSC 6862, a judge of the Ontario Superior Court upheld a trespass notice issued by the City of Toronto that required the removal of structures, equipment, and debris from a park that had been put there by protestors. The judge accepted that part of the protestors' message was that "it is both possible and necessary to build a community structure different from that prevailing in most places of our society" (*Batty* at para 108). However, in the judge's view, the *Charter* did not give the protestors a right to "[appropriate] to their own use – without asking their fellow citizens – a large portion of the common public space for an indefinite period" (*Batty* 2011, 12). He noted that the trespass order only limited the form and scope of the protest and would not prevent the protestors from spending up to eighteen hours a day at the park continuing their protest.
3. In *Bracken v The Town of Fort Erie*, 2017 ONCA 668, the Ontario Court of Appeal emphasized that a "a protest does not cease to be peaceful simply because protestors are loud and angry" (*Bracken* at para 51). In that case a lone protestor standing at the entrance to the city hall had communicated his message using a megaphone.

5.1.4 Further reading

1. Richard Moon, Freedom of Expression, Background Paper for the Public Order Emergency Commission, 2022 pp 18-30: https://publicorderemergencycommission.ca/files/documents/Policy-Papers/Freedom-of-Expression-Moon.pdf
2. Jamie Cameron, "A Concept of Peaceful Assembly under Section 2 (c) of the Charter": https://cfe.torontomu.ca/blog/2024/10/concept-peaceful-assembly-under-s2c-charter

5.1.5 Questions

1. Why have Canadian courts adopted a version of the public forum doctrine and not simply relied on s.1 of the Charter to justify limits on access to state-owned properties?
2. In the *City of Montreal* case, when considering the third step of the *Irwin Toy* s. 2(b) test, the court held that the strip club's 'speech' advances the values underlying the freedom, and more particularly the value of individual self-realization. If the speech in this case satisfies the test, is there any speech that might fail the test?
3. In the *Vancouver Transportation* case advertisers had to pay for space on the public 'platform' - does that complicate the analysis?
4. When if ever should an individual be protected from speech they do not want to hear?
5. Is an encampment a form of expression? If it is, how does a court decide when its prohibition is justified?
6. Why do you think that public demonstrations are still so commonplace in the age of the internet?
7. What is the relationship between section 2(b) and s.2(c) (freedom of peaceful assembly)? Why do you think s.2(c) has played such a limited role in the cases dealing with protest?

5.2 Access to state platforms

Freedom of expression is generally described as a negative right that does not place any obligation on the state to support or facilitate expression. However, the Canadian courts have said that in exceptional cases the freedom may be breached when the state excludes a speaker from a publicly established platform or program for expression. The most obvious example of this is the classification of certain state properties, such as streets and parks, as public forums on which individuals ordinarily have a right to communicate. As noted earlier, the courts have treated the exclusion of communication from public forums as a limitation on expression rights under the *Charter*, and not simply as a refusal by the state to actively support individual expression.

When the state supports or subsidizes expression, it makes choices between different speakers or messages, giving support to some and denying it to others. In the case of an arts subsidy program, for example, the state chooses among different applicants on grounds such as aesthetic merit or artistic medium. If an applicant is unsuccessful because their work has been judged aesthetically inferior to that of other applicants, we do not ordinarily consider that the state has violated their freedom of expression rights. It is also generally accepted that the government is entitled to express or lend its support to particular views, such as national unity or the need for greater crime control. The state may also consult with some members of the community (or survey a section of the population) when deciding on a particular policy.

Yet sometimes when a speaker is denied access to a particular state-created opportunity or resource for communication they experience this denial not simply as a failure by the state to support their communication (which involves no constitutional wrong) but instead as state 'censorship' of their speech. Whether we view a state allocation decision as a denial of support for speech, or instead as suppression of speech, will depend on the purpose, scope, and stability of the particular support program. Certain state programs of support for expression are so well established, and so broad in scope, that they are viewed as part of the framework of public discourse. A decision by the state to exclude a particular speaker or viewpoint from such a program may be viewed as a breach of s.2(b).

5.2.1 Baier v. Alberta

***Baier v. Alberta*,** 2007 SCC 31 (CanLII), **[2007] 2 SCR 673, 2007 SCC**

ROTHSTEIN J. —

INTRODUCTION

1 This case concerns whether legislation that limits the ability of school employees to run for election and serve as school trustees in Alberta is constitutional.

…

II. FACTUAL BACKGROUND

3 The *Local Authorities Election Act*, R.S.A. 2000, c. L-21 ("LAEA"), governs the proceedings for election to municipal councils and school boards in Alberta. The LAEA sets out the qualifications required to be a candidate for school trustee. A person may be nominated as a candidate if he or she is eligible to vote, meets certain residency requirements, and is not otherwise ineligible (s. 21).

4 Ineligibility to be nominated as a candidate is dealt with in s. 22 of the LAEA. Prior to the amendments at issue in this appeal, it restricted school employees from running for election as a school trustee only in the jurisdiction in which they were employed ("own-employer restriction"). Any public school employees who wished to seek election to their employing school board were required to take a leave of absence and were deemed to have resigned if elected (ss. 22(1)(b) and 22(9)). There was no requirement to take a leave of absence or to resign if a school employee was elected as a school trustee to any other school board.

5 In 2004, Alberta legislated to expand the "own-employer" restriction into a province-wide restriction on school employees serving as school trustees. The *School Trustee Statutes Amendment Act, 2002*, S.A. 2002, c. 23 ("LAEA Amendments"), amended the LAEA by adding a provision stating that, unless on a leave of absence, a person is not eligible to be nominated as a candidate for election as a trustee of *any* school board if that person is employed by *any* school district or division, charter school, or private school in Alberta. If a school employee is ultimately elected as a school trustee, s. 22(9) of the LAEA is engaged, which deems the school employee to have resigned his or her position of employment in order to carry out the role of school trustee. There is therefore a deemed resignation even when a school employee is elected to a school board which is not his or her employer.

6 The appellants Baier, Ollenberger and McNiff are teachers who, at the time the LAEA Amendments were passed, were serving as school trustees on school boards that did not employ them. The appellant Keith is a teacher who intended to seek election to a school board. …

…

VI. ANALYSIS

A. *Freedom of Expression*

…

20 … [T]he Court has held that s. 2 generally imposes a negative obligation on government rather than a positive obligation of protection or assistance …

21 In *Haig*, this Court considered whether freedom of expression includes a positive right to be provided with a specific means of expression. L'Heureux-Dubé J. for the majority, noted that freedom of expression has typically been conceptualized in terms of negative rights rather than positive entitlements:

> The traditional view, in colloquial terms, is that the freedom of expression contained in s. 2(b) prohibits gags, but does not compel the distribution of megaphones. [p. 1035]

22 That case arose in the context of federal and Quebec referenda concerning proposed constitutional amendments in 1992. Mr. Haig had moved from Ontario to Quebec and was unable to vote in either the federal or Quebec referendum because of different residency requirements in the federal and provincial legislation. He challenged the federal legislation as violating his freedom of expression. The majority held that the right to vote in the referendum was governed by the *Referendum Act*, S.C. 1992, c. 30, and s. 2(*b*) did not require the government to extend that right to all. L'Heureux-Dubé J. stated:

> The Court is being asked to find that this statutorily created platform for expression has taken on constitutional status. In my view, though a referendum is undoubtedly a platform for expression, s. 2(*b*) of the *Charter* does not impose upon a government, whether provincial or federal, any positive obligation to consult its citizens through the particular mechanism of a referendum. Nor does it confer upon all citizens the right to express their opinions in a referendum. A government is under no constitutional obligation to extend this platform of expression to anyone, let alone to everyone. A referendum as a platform of expression is, in my view, a matter of legislative policy and not of constitutional law. [Emphasis added; p. 1041.]

23 The statutory platform analysis in *Haig* has been followed in a number of subsequent cases which have held that underinclusive legislative schemes or government action did not infringe s. 2. In *Native Women's Assn. of Canada v. Canada*, 1994 CanLII 27 (SCC), [1994] 3 SCR 627

("*NWAC*"), the Native Women's Association of Canada ("NWAC") alleged that the government's funding of some Aboriginal organizations, along with the opportunity to participate in constitutional discussions, required the government to bestow upon the NWAC an equal chance for expression of its views, and funding to enable it to do so. The Court determined that there was no positive duty on the government to provide funding to NWAC in the circumstances. Sopinka J., for the majority, stated:

[I]t cannot be said that every time the Government of Canada chooses to fund or consult a certain group, thereby providing a platform upon which to convey certain views, that the Government is also required to fund a group purporting to represent the opposite point of view. [p. 656] The freedom of expression guaranteed by s. 2(*b*) of the *Charter* does not guarantee any particular means of expression or place a positive obligation upon the Government to consult anyone. [p. 663]

26 While *Haig* [and] *NWAC* … found s. 2 was not offended by underinclusive legislation or underinclusive government action and that there was no right to a particular platform for expression, the Court left open the possibility that, in exceptional cases, positive action by government may be called for under s. 2. In *Haig*, for example, L'Heureux-Dubé J. left the door open to positive government action being required in some cases. At p. 1039, she stated:

> ... a situation might arise in which, in order to make a fundamental freedom meaningful, a posture of restraint would not be enough, and positive governmental action might be required. This might, for example, take the form of legislative intervention aimed at preventing certain conditions which muzzle expression, or ensuring public access to certain kinds of information.

27 In *Dunmore v. Ontario (Attorney General)*, [2001] 3 SCR 1016, 2001 SCC 94, a majority of the Court found such an exception to the general rule that s. 2 does not require positive government action. Labour legislation excluding agricultural workers from a protective regime was found to infringe s. 2(*d*). Bastarache J., for the majority, considered the factors relevant to establishing an exception:

> (1) Claims of underinclusion should be grounded in fundamental *Charter* freedoms rather than in access to a particular statutory regime (para. 24).
>
> (2) The claimant must meet an evidentiary burden of demonstrating that exclusion from a statutory regime permits a substantial interference with activity protected under s. 2 (para. 25), or that the purpose of the exclusion was to infringe such activity (paras. 31-33). The exercise of a fundamental freedom need not be impossible, but the claimant must seek more than a particular channel for exercising his or her fundamental freedoms (para. 25).
>
> (3) The state must be accountable for the inability to exercise the fundamental freedom: "[U]nderinclusive state action falls into suspicion not simply to the extent it discriminates against an unprotected class, but to the extent it substantially orchestrates, encourages or sustains the violation of fundamental freedoms" (para. 26).

…

29 While *Dunmore* concerned freedom of association rather than freedom of expression, the three factors for challenging underinclusive legislation were described as applicable to s. 2 in general. …

30 In cases where a government defending a *Charter* challenge alleges, or the *Charter* claimant concedes, that a positive rights claim is being made under s. 2(*b*), a court must proceed in the following way. First it must consider whether the activity for which the claimant seeks s. 2(*b*) protection is a form of expression. If so, then second, the court must determine if the claimant claims a positive entitlement to government action, or simply the right to be free from government interference. If it is a positive rights claim, then third, the three *Dunmore* factors must be considered. As indicated above, these three factors are (1) that the claim is grounded in a fundamental freedom of expression rather than in access to a particular statutory regime; (2) that the claimant has demonstrated that exclusion from a statutory regime has the effect of a substantial interference with s. 2(*b*) freedom of expression, or has the purpose of infringing freedom of expression under s. 2(*b*); and (3) that the government is responsible for the inability to exercise the fundamental freedom. If the claimant cannot satisfy these criteria then the s. 2(*b*) claim will fail. If the three factors are satisfied then s. 2(*b*) has been infringed and the analysis will shift to s. 1.

VII. APPLICATION TO THE CASE

Question 1

Do ss. 1(2)(a) and 1(2)(b) of the *School Trustee Statutes Amendment Act, 2002*, infringe s. 2(*b*) of the *Canadian Charter of Rights and Freedoms*?

A. *Expressive Activity*

31 The threshold to any s. 2(*b*) claim must be that there is expression involved. The appellants claim that "[s]tanding for election to the office of school trustee and serving as a school trustee" are expressive activities, the restriction of which they claim violates s. 2(*b*) (appellants' factum, at para. 27). These activities, they argue, represent "unique and important opportunities to engage in political debate, persuasion and voting on the governance, funding and management of the public and separate education systems" (*ibid.*). The respondent concedes that seeking nomination for school trustee and some of the activities of school trustees may be characterized as having an expressive nature (respondent's factum, at paras. 1 and 18).

32 It might be said that the expressive nature of school trusteeship is merely incidental, and that school boards are primarily concerned with school management rather than expression. However, there is nothing that requires that the activity in question be purely or predominantly expression to count as expression for s. 2(*b*) purposes (see e.g. *RWDSU v. Dolphin Delivery Ltd.*, 1986 CanLII 5 (SCC), [1986] 2 SCR 573, at p. 588).

33 The LAEA Amendments only restrict who has access to the platform of school trusteeship for expressive activity. They do not constrain the expressive activities of those with access to the platform i.e. those not ineligible to be school trustees. I interpret the appellants' complaint as "I do not have access to school trusteeship to express myself" rather than, "as a school trustee I cannot express a particular view". Expressive activity is in issue, although what is restricted is the platform on which that expression may take place rather than the content of the expression. I find that the expressive aspects of school trustee candidacy and school trusteeship are sufficient to continue consideration of whether s. 2(*b*) is violated.

B. *Is a Positive Right Claimed?*

…

35 To determine whether a right claimed is a positive right, the question is whether the appellants claim the government must legislate or otherwise act to support or enable an expressive activity. Making the case for a negative right would require the appellants to seek freedom from government legislation or action suppressing an expressive activity in which people would otherwise be free to engage, without any need for any government support or enablement.

36 The appellants in this case make a claim for the government to legislate to enable expressive activity. Their claim is thus a positive one. The appellants seek access to the statutory platform of school trustee candidacy and school trusteeship. The fact that the appellants had access to this statutory platform prior to the LAEA Amendments cannot convert their claim into a negative one. There is no meaningful distinction in this case between a hypothetical situation where the government for the first time provides for elected school boards with provisions to disqualify school employees from running and serving as trustees, and the present situation where pre-existing legislation has been amended to that end. To hold otherwise would mean that once a government had created a statutory platform, it could never change or repeal it without infringing s. 2(*b*) and justifying such changes under s. 1.

…

C. *Are the Dunmore Factors Met Here?*

43 Having determined that the appellants are making a positive claim that the government legislate their inclusion into the platform of school trusteeship, the question is whether their claim meets the grounds for an exception to the general rule that s. 2(*b*) only protects from government interference. This involves a consideration of the three factors identified by Bastarache J. in *Dunmore* as stated above.

44 First, claims of underinclusion should be grounded in fundamental *Charter* freedoms rather than in access to a particular statutory regime. In this case, the appellants assert the right to run for election and to serve as school trustees. The appellants argue that the unique role of a school trustee means that when a teacher seeks to be able to run as a school trustee it is a fundamental freedom. However, claiming a unique role is not the same as claiming a fundamental freedom. The appellants' claim, as they have articulated it, is grounded in access to the particular statutory regime of school trusteeship. As such it would not meet the first of the *Dunmore* criteria.

45 Even if the appellants could meet the first *Dunmore* factor, they would fail at the second. Under the second *Dunmore* criterion, the claimant must demonstrate that exclusion from a statutory regime has the effect of a substantial interference with activity protected under s. 2. The question is whether the LAEA Amendments substantially interfere with the appellants' freedom to express themselves on matters related to the education system.

…

48 In my view, the appellants have not established that their practical exclusion from school trusteeship substantially interferes with their ability to express themselves on matters relating to the education system. The LAEA Amendments may deprive them of one particular means of expression, but it has not been demonstrated that absent inclusion in this statutory scheme, they are unable to express themselves on education issues. As Bastarache J. noted in *Delisle* at para. 41, diminished effectiveness in the conveyance of a message does not mean that s. 2(*b*) is violated. There must be substantial interference with the fundamental freedom. School employees may express themselves in many ways other than through running for election as, and serving as, a school trustee.

…

53 The chambers judge found "the purpose of the LAEA Amendments ... does not infringe s. 2(*b*) as the legislation is meant to protect the democratic process by ensuring the business of school boards can be carried on without concerns about conflicts of interest" (para. 79). The party alleging improper purpose has the onus of demonstrating that to be true (*Delisle*, at para. 76, *per* Cory and Iacobucci JJ.). …

54 The appellants have not met the evidentiary burden of demonstrating that exclusion from the statutory regime permits a substantial interference with their freedom of expression on school board issues or education generally. Rather they seek a particular channel of expression. Nor have the appellants proved that the purpose of the LAEA Amendments was to infringe their freedom of expression. Therefore, their claim does not meet the second *Dunmore* factor. Because the appellants have not established a substantial interference with their ability to exercise their freedom of expression, it is unnecessary to consider the third *Dunmore* factor.

55 In finding against the appellants here, I leave open the possibility that there may be exceptional situations where exclusion from a statutory platform interferes substantially with fundamental freedom of expression and meets the *Dunmore* criteria. While s. 2(*b*) does not give a right to a specific statutory platform, so that restricting access to such a platform will not generally offend s. 2(*b*), and while *Dunmore* itself was decided under s. 2(*d*) rather than s. 2(*b*), there may be exceptional cases where exclusion from a platform so substantially interferes with freedom of expression that it may infringe s. 2(*b*). However, the case at bar is not such a case.

E. *Conclusion on Section 2(b)*

...

61 The appellants' claim is one of access to a statutory platform. It does not meet the criteria set out in *Dunmore* to warrant an exception to the general rule that freedom of expression under s. 2(*b*) of the *Charter* does not grant the right to a statutorily created platform for expression. The appellants' s. 2(*b*) claim must therefore be dismissed.

…

62 As s. 2(*b*) is not infringed, there is no need to consider s. 1.

[LeBel J. (Bastarache and Abella JJ. concurring) held that s. 2(b) does not protect the right to run for public office.]

[Fish J. (dissenting) thought that when the government creates a system of democratically elected boards to administer a particular public activity such as education, it cannot exclude a particular group of individuals, without having the justify that exclusion under s.1.].

5.2.2 Toronto (City) v. Ontario (Attorney General)

***Toronto (City) v. Ontario (Attorney General)*, 2021 SCC 34, [2021] 2 SCR 845**

The judgment of Wagner C.J. and Moldaver, Côté, Brown and Rowe JJ. was delivered by

THE CHIEF JUSTICE AND BROWN J. —

Introduction

…

[2] Section 92(8) of the *Constitution Act, 1867* assigns to provinces exclusive legislative authority regarding "Municipal Institutions in the Province". Municipalities incorporated under this authority therefore hold delegated provincial powers; like school boards or other creatures of provincial statute, they do not have independent constitutional status. … No constitutional norms or conventions prevent a province from making changes to municipal institutions without municipal consent …

[3] … After the closing of a nomination period for elections to the Toronto City Council, the Province legislated a new, reduced ward structure for the City of Toronto and a correspondingly reduced Council. The City says that doing so was unconstitutional, because it limited the s. 2(b) *Charter* rights of electoral participants and violated the unwritten constitutional principle of democracy. It also, says the City, ran afoul of the

constitutional requirements of effective representation, which it says flow from s. 2(b) of the *Charter* and s. 92(8) of the *Constitution Act, 1867* by virtue of that same unwritten constitutional principle of democracy.

[4] None of these arguments have merit, and we would dismiss the City's appeal. In our view, the Province acted constitutionally. As to the s. 2(b) claim, the City seeks access to a statutory platform which must be considered under the framework stated in *Baier.* The change to the ward structure did not prevent electoral participants from engaging in access to a statutory platform which must be considered under the framework stated in *Baier*. The change to the ward structure did not prevent electoral participants from engaging in further political expression on election issues under the new ward structure in the 69 days between the *Act* coming into force and the election day. There was no substantial interference with the claimants' freedom of expression and thus no limitation of s. 2(b).

…

II. Background

…

[7] On May 1, 2018, the City of Toronto campaign commenced and nominations opened in preparation for an election day on October 22, 2018. By the close of nominations on July 27, 2018, just over 500 candidates had registered to run in the 47 wards. That same day, the Government of Ontario announced its intention to introduce legislation reducing the size of Toronto City Council to 25 wards. On August 14, 2018, the *Better Local Government Act, 2018*, S.O. 2018, c. 11 ("*Act*"), came into force, reducing the number of wards from 47 to 25 (based on the boundaries of the federal electoral districts), and extending the nomination period to September 14.

…

III. Issues

[13] Two issues arise from the foregoing. First, did the *Act* limit (unjustifiably or at all) the freedom of expression of candidates and/or voters participating in the 2018 Toronto municipal election? And secondly, can the unwritten constitutional principle of democracy be applied, either to narrow provincial legislative authority over municipal institutions or to require effective representation in those institutions, so as to invalidate the *Act*?

IV. Analysis

A. *Freedom of Expression*

Principles of *Charter* Interpretation in the Context of Section 2(b)

…

[16] … [Section] 2(b) has been interpreted as "generally impos[ing] a negative obligation . . . rather than a positive obligation of protection or assistance" (*Baier*, at para. 20 (emphasis added), citing *Haig v. Canada*, 1993 CanLII 58 (SCC), [1993] 2 SCR 995, at p. 1035). A claim is properly characterized as negative where the claimant seeks "freedom from government legislation or action suppressing an expressive activity in which people would otherwise be free to engage" (*Baier*, at para. 35 (emphasis added)). Such claims of right under s. 2(b) are considered under this Court's *Irwin Toy* framework.

[17] In *Baier*, however, this Court explained that s. 2(b) may, in certain circumstances, impose positive obligations on the government to facilitate expression. Put differently, while s. 2(b) typically "prohibits gags", it can also, in rare and narrowly circumscribed cases, "compel the distribution of megaphones" (para. 21, quoting *Haig*, at p. 1035). Hence the Court of Appeal's statement in this case that "[f]reedom of expression is respected, in the main, if governments simply *refrain* from actions that would be an unjustified interference with it", and that positive claims under s. 2(b) may be recognized in only "exceptional and narrow" circumstances (paras. 42 and 48 (emphasis in original)).

[18] Central to whether s. 2(b) was limited by the Province here is, therefore, the appropriate characterization of the claim as between a negative and positive claim of right. In *Baier*, this Court shielded positive claims from the *Irwin Toy* framework and subjected them to an elevated threshold. This is necessary, given the ease with which claimants can typically show a limit to free expression under the *Irwin Toy* test. An elevated threshold for positive claims narrows the circumstances in which a government or legislature must legislate or otherwise act to support freedom of expression. To consider positive claims under *Irwin Toy* would be to force the government to justify, under s. 1, any decisions *not* to provide particular statutory platforms for expression.

…

(2) The *Baier* Framework

[22] The *Baier* framework applies if a claimant seeks to impose an obligation on the government (or legislature) to provide access to a particular statutory or regulatory platform for expression (para. 30; *Greater Vancouver Transportation Authority*, at para. 35). Here, therefore, if the City's claim would require the government or legislature to enact legislation or promulgate regulations, or otherwise act to provide a particular statutory or regulatory platform, it is advancing a positive claim (*Baier*, at para. 35).

[23] In *Baier*, this Court held that, to succeed, a positive claim must satisfy the three *Dunmore* factors: (1) Is the claim grounded in freedom of expression, rather than in access to a particular statutory regime? (2) Has the claimant demonstrated that lack of access to a statutory regime has the effect of a substantial interference with freedom of expression, or has the purpose of infringing freedom of expression? (3) Is the government responsible for the inability to exercise the fundamental freedom? [*Dunmore v. ON* is a SCC decision dealing with freedom of association.]

[24] These factors set an elevated threshold for positive claims. The first factor asks what the claimant is really seeking — in other words, whether the claim is grounded in freedom of expression or whether it merely seeks access to a statutory regime. Likewise, the second factor — which requires that the claimant establish a *substantial* interference with freedom of expression — sets a higher threshold than that stated in *Irwin Toy*, which asks only whether "the purpose or effect of the government action in question was to restrict freedom of expression" (p. 971; see also *Baier*, at paras. 27-28 and 45).

[25] So understood, these factors can usefully be distilled to a single core question: is the claim grounded in the fundamental *Charter* freedom of expression, such that, by denying access to a statutory platform or by otherwise failing to act, the government has either substantially interfered with freedom of expression, or had the purpose of interfering with freedom of expression? This is, to be clear, a single question which emphasizes the elevated threshold in the second *Dunmore* factor while encompassing the considerations of the first and third factors. Given what we see as the significant overlap among the factors — particularly between the first and second — this is, in our view, a salutary clarification of the *Baier* test, entirely consistent with this Court's approach in *Baier* and *Greater Vancouver Transportation Authority*. To be clear, s. 2(b) does not remove the authority that a legislature has to create or modify statutory platforms, because it does not include the right to access any statutory platform in particular. However, when a legislature chooses to provide such a platform, then it must comply with the *Charter* (*Haig*, at p. 1041).

[26] If, therefore, a claimant can demonstrate that, by denying access to a statutory platform, the government has substantially interfered with freedom of expression or acted with the purpose of doing so, the claim may proceed. Despite being a positive claim, the claimant has demonstrated a limit to its s. 2(b) right, and — subject to justification of such limit under s. 1 — government action or legislation may be required.

[27] There is no suggestion here that the Province acted *with the purpose* of interfering with freedom of expression, and we therefore confine our observations here to the claim presented — that is, a claim that a law has had *the effect* of substantially interfering with freedom of expression. In our view, a substantial interference with freedom of expression occurs where lack of access to a statutory platform has the effect of radically frustrating expression to such an extent that meaningful expression is "effectively preclude[d]" (*Ontario (Public Safety and Security) v. Criminal Lawyers' Association*, 2010 SCC 23, [2010] 1 SCR 815, at para. 33). While meaningful expression need not be rendered absolutely

impossible, we stress that effective preclusion represents an exceedingly high bar that would be met only in extreme and rare cases (*Baier*, at para. 27; *Dunmore*, at para. 25). For example, a statutory reduction of the length of an election campaign to two days may well, as a practical matter, be shown to have the effect of constituting a substantial interference with freedom of expression. In such a case, meaningful expression may very well be found to be effectively precluded.

[28] The height of this bar of effective preclusion is demonstrated by *Baier*. There, legislation was amended to prohibit school employees from running for election as school trustees, and the Court — applying the *Dunmore* factors — concluded that no substantial interference with freedom of expression was demonstrated. The claim was grounded merely in access to a particular statutory platform governing school trusteeship, rather than a substantial interference with freedom of expression. And, in any event, there was no interference, substantial or otherwise, with the appellants' ability to express views on matters relating to the education system. Their exclusion from the statutory scheme deprived them only of one particular *means* of such expression (paras. 44 and 48).

(3) Application

(a) *Nature of the Claim*

[29] The first question to answer in deciding this appeal is whether the City advances a positive claim. There are two ways in which the City's claim can be understood. Each leads to the conclusion that the claim is, in substance, a positive claim that must, therefore, show a substantial interference with freedom of expression.

[30] The first possible view of the City's claim is that of *restoring an earlier statutory platform*, specifically the 47-ward structure. That this is so is evident from the City's requested disposition, which asks that the next municipal election be conducted under the previous framework (A.F., at para. 152). The City, then, would have the Province act (either by enacting new legislation or repealing the impugned provisions of the *Act*) to restore the previous statutory platform. This reveals a straightforward positive claim. The fact that the City and the participants in the election had previously enjoyed access to the 47-ward structure is of no legal significance. In *Baier*, this Court viewed a claim for restoring the status quo as a positive claim, equating it with a demand to legislate a framework for the first time. Such an approach is necessary to prevent fettering; "[t]o hold otherwise would mean that once a government had created a statutory platform, it could never change or repeal it without infringing s. 2(*b*)" (para. 36).

[31] The second possible view of the City's claim is that of *maintaining an existing statutory platform*. The City frames its claim as asking the Province, once a municipal election period commences, to ensure access to whatever election platform existed at that time. In the City's view, what is otherwise political expression becomes what it calls "electoral expression" during an election period (A.F., at para. 54). Protection of this "electoral expression", it says, requires the maintenance of the particular electoral framework that was in place at the beginning of the electoral period. Framed thusly, the City's claim that the impugned provisions of the *Act* limited s. 2(b) turns squarely on the *timing* of the *Act*. Indeed, at the hearing of this appeal, the City conceded that barring any other potential issues, the Province was constitutionally permitted to enact this same legislation in the week *following* the election. Further, the City requested — in the event that this Court finds only that the timing of the *Act* was unconstitutional — a declaration to that effect, rather than a remedy that would restore the previous 47-ward structure.

[32] The City's focus on the timing of the *Act* cannot, however, convert its positive claim into a negative one. While its claim is couched in language of non-interference — something that superficially resembles a negative claim to be considered under the *Irwin Toy* framework — the City does not seek protection of electoral participants' expression from restrictions tied to content or meaning (as was the case, for example, in *Greater Vancouver Transportation Authority*); rather, it seeks a particular platform (being whatever council structure existed at the outset of the campaign) by which to channel, and around which to structure, that expression.

…

(b) *Application of Baier*

[36] As explained above, the *Baier* framework asks whether the claimant demonstrated that, by denying access to a statutory regime, the government has substantially interfered with freedom of expression. To repeat, this is a demanding threshold, requiring the City to show that the *Act* radically frustrated the expression of election participants such that meaningful expression was effectively precluded. In our view, the City cannot do so and therefore has not established a limit on s. 2(b).

[37] Here, the candidates and their supporters had 69 days — longer than most federal and provincial election campaigns — to re-orient their messages and freely express themselves according to the new ward structure. (Our colleague Abella J. is simply incorrect to suggest, at para. 104, that only one month of the campaign remained. It was twice that.) The *Act* did not prevent candidates from engaging in further political speech under the new structure. Candidates continued to campaign vigorously, canvassing and debating about issues unrelated to the impugned provisions, the size of council or the ward boundaries. And even had they not, nothing in the *Act* prevented them from doing so. It imposed no restrictions on the content or meaning of the messages that participants could convey. Many of the challengers who continued to campaign ultimately had, by any measure, successful campaigns, raising significant amounts of money and receiving significant numbers of votes. This would not have been possible had their s. 2(b) rights been so radically frustrated so as to effectively preclude meaningful expression.

[38] It is of course likely that some of the candidates' prior expression may have lost its relevance; pamphlets or other campaign paraphernalia with an old ward designation on them, for instance, had to be revised or discarded. But, with the new ward structure — and larger ward populations — came higher campaign expenditure limits, so candidates were able to raise more funds over the 69 days they had left in the campaign. This is, therefore, a complaint that the prior expression of the candidates was no longer meaningful or helpful in their project to secure election. It is, at its root, a complaint about diminished *effectiveness*.

[39] While diminished effectiveness might be enough to amount to a limit of s. 2(b) in its traditional negative orientation — see, for instance, *Harper v. Canada (Attorney General)*, 2004 SCC 33, [2004] 1 SCR 827, at para. 15, per McLachlin C.J. and Major J., dissenting in part, but not on this point, and *Libman v. Quebec (Attorney General)*, 1997 CanLII 326 (SCC), [1997] 3 SCR 569 — more is required under the *Baier* framework. In the context of a positive claim, only extreme government action that extinguishes the effectiveness of expression — for instance,

> instituting a two-day electoral campaign — may rise to the level of a substantial interference with freedom of expression; such an act may effectively preclude meaningful expression in the context of the election. That is simply not what happened here. Section 2(b) is not a guarantee of the effectiveness or continued relevance of a message, or that campaign materials otherwise retain their usefulness throughout the campaign.
>
> [40] Even accepting that the change in structure diminished the effectiveness of the electoral candidates' prior political speech by rendering some of their 47-ward campaign communications less relevant, this does not rise to the level of substantial interference. Again, the campaign that took place over 69 days following the imposition of the 25-ward system was vigorously contested by candidates whose freedom of expression was clearly not radically frustrated. …
>
> [41] The City says that the expression at issue here — again, what it calls "electoral expression" — is uniquely connected to, and dependent on, the framework of the election itself. Therefore, it says, the scope of s. 2(b) encompasses not only the expression itself but also the structure of the election. Put thusly, however, the claim is not dissimilar to the "unique role" of school trusteeship claimed by the appellants, and rejected by the Court, in *Baier*. Claiming a unique role or dependence on a statutory platform is not the same as claiming a fundamental freedom (*Baier*, at para. 44). Doing so is simply to seek access to that statutory platform. That is what the City seeks here.
>
> [42] In sum, the *Baier* threshold is not met here. The *Act* imposed no limit on freedom of expression.
>
> …
>
> V. Conclusion
>
> [85] We would dismiss the appeal.
>
> [The majority also dismissed claims based on s. 3 of the Charter and the unwritten principle of democracy].
>
> [Abella J dissenting (Karakatsanis, Martin and Kasirer JJ. concurring) argued that by altering the campaign rules, the provincial government had interfered with the candidates' freedom of expression. In her view, the *Baier* test was not applicable. She thought "[t]here is no reason to superimpose onto our constitutional framework the additional hurdle of dividing rights into positive and negative ones for analytical purpose" (*para* 155). She thought that the rule changes amounted to a form of censorship that could not be justified under s. 1. Individuals who had access to a particular platform were prevented from being able to fully or fairly express themselves on that platform.]

5.2.3 Further reading

1. Podcast interview with Natalie DesRosiers about the Supreme Court of Canada decision in City of Toronto v. Ontario, Aug 4, 2022: https://lawjournal.mcgill.ca/article/toronto-v-ontario/
2. Leonid Sirota, "Correct, But Wrong: *City of Toronto v. Ontario*" CanLII, 2022: https://canliiconnects.org/en/commentaries/86486

5.2.4 Questions

1. Do the tests set out in *Baier* 2007 or the simplified test in *City of Toronto* 2021 provide meaningful guidance to the courts in deciding these issues?
2. In none of these cases did the court find a 'positive right' to free expression that had been breached. Can you think of a situation in which the court might find such a right? Or is it the case that once the court classifies a claim as positive rather than negative, it has in effect already decided the issue?
3. Should running for public office be considered expression under s.2(b)?

5.3 Social media

The internet opened the public conversation to more voices, allowing individuals to bypass existing media structures and to communicate with a potentially large audience. Yet, at the same time, the internet, and social media in particular, have exacerbated other problems with our public discourse. In the internet era audiences are more fragmented and public opinion is more polarized. Disinformation and conspiracy theories seem to spread easily and widely, unimpeded by media filters. Advertising and other messages, drawing on user data collected by internet platforms and providers, are more efficiently targeted at sympathetic audiences and out of public view. This new environment has contributed to a new set of speech harms or risks, while at the same time making regulation of harmful speech far more difficult. Free speech doctrine developed in a very different communication environment and does not map easily onto this new landscape.

The regulation of online content can take several forms, including (1) rules requiring platforms and providers to remove material that is unlawful, (2) self-regulation by the platforms and providers relying on user agreements, and (3) state oversight of the systems established by platforms and providers to filter out illegal material – a form of co-regulation. Canada seems to be moving towards some version of the third option, in which the state consults with the major platforms about the design of their content codes and their procedures for the removal of material, and then monitors the effectiveness of these processes in blocking or removing unlawful material and protecting material that is lawful. Because the larger social media platforms must rely on automated systems for reviewing material (given the large volume of material posted daily on their platforms and the speed at which this material can spread), their "decisions" are bound to be imperfect, sometimes catching material that is not unlawful, and other times missing material that is. The identification of harmful posts, including hate speech and child pornography, is often context dependent and may turn, at least in part, on the reasons for the post and the audience to which it is directed. The object then of co-regulation is simply to manage systemic risks and ensure that "due care" is exercised in the creation and application of these processes.

5.3.1 Further reading

1. Bill C-63: The Online Harms Act: https://www.parl.ca/DocumentViewer/en/44-1/bill/C-63/first-reading
2. Micheal Vonn, "When is a Mayor not a Mayor?: Public vs Private in Twitter Blocking". CFE Blog, 2019: https://cfe.torontomu.ca/blog/2018/11/when-mayor-not-mayor-public-vs-private-twitter-blocking
3. Link: T. Wilbur, "Why this UBC prof sued Twitter for refusing to run a tweet promoting his documentary", Canadian Lawyer, 2023: https://www.canadianlawyermag.com/practice-areas/litigation/why-this-ubc-prof-sued-twitter-for-refusing-to-run-a-tweet-promoting-his-documentary/372752
4. Emily Laidlaw, "Mis- Dis- and Mal-Information and the Convoy: An Examination of the Role and Responsibilities of Social Media" Background Paper, Public Emergency Commission, 2022.
5. Zeynep Tufekci, "How Digital Media took us from Tahrir Square to Donald Trump , MIT: https://www.technologyreview.com/2018/08/14/240325/how-social-media-took-us-from-tahrir-square-to-donald-trump/
6. Richard Moon, "What happens when the assumptions underlying our commitment to free speech no longer hold?", 28 Constitutional Forum 2019: https://journals.library.ualberta.ca/constitutional_forum/index.php/constitutional_forum/article/view/29373
7. Greenspon and T. Owen, *Democracy Divided: Countering Disinformation and Hate in the Digital Public Sphere,* PPF, 2018: https://ppforum.ca/publications/social-marketing-hate-speech-disinformation-democracy/

5.3.2 Questions

1. Are there ways to regulate disinformation online that will not put at risk speech that should be protected?
2. What are the strengths and weaknesses of the "duty of care" approach adopted in the Online Harms Bill?
3. The US Court of Appeals (2nd Cir) in *Knight First Amendment* (2019) held that a public official (then President Trump) "who utilizes a social media account for all manner official purposes" is forbidden by the First Amendment "to exclude persons from an otherwise-open online dialogue because they expressed views with which the official disagrees" (*Knight First Amendment* 2019onto this new landscape). Are there any difficulties or challenges in treating a politician's social media account as a public forum under s.2(b)?
4. In the past, privately owned newspapers and broadcast stations were among the most important sites for public discourse. What are the particular challenges raised by the private ownership of the new public platforms, such as TikTok, Facebook, and Instagram?

Chapter 21: S 2(d): Freedom of Association

By Joel Bakan and Benjamin Oliphant

1 Introduction

Section 2(d) of the *Canadian Charter of Rights and Freedoms* provides that "everyone has the… (d) freedom of association". From this sparsely worded guarantee has emerged among the most controversial, and sometimes volatile, areas of constitutional jurisprudence over the decades following the adoption of the *Charter*.

This began in a trilogy of cases, most notably the *Reference Re Public Service Employee Relations Act (Alta.)*, 1987 CanLII 88 (SCC), [1987] 1 SCR 313 (the "***Alberta Reference***"), in which the Supreme Court of Canada adopted an interpretation of section 2(d) that many agreed was either too narrowly conceived, or too narrowly applied. This resulted in the Court denying constitutional protection to many activities that are often considered essential to the meaningful exercise of associational freedom in the labour relations context, such as collective bargaining and strike activity.

Since that time, however, the Court has gradually broadened its interpretation of section 2(d), in a series of important cases spanning from 2000 to 2015. The focus in these decisions moved away from an abstract definition of section 2(d) that was narrowly applied, to a more robust conception of section 2(d) that covered many of the core associational activities directly associated with labour unions.

This resulted in the protection of a range of labour rights that often bear a strong resemblance to the core rights contained in statutory labour codes across the country, including protections against unfair labour practices (in *Dunmore v. Ontario (Attorney General),* 2001 SCC 94), a meaningful right to collectively bargain (in *Health Services and Support - Facilities Subsector Bargaining Assn. v. British Columbia*, 2007 SCC 27), a right to choose independent unions or employee associations (in *Mounted Police Association of Ontario v. Canada (Attorney General)*, 2015 SCC 1), and a right to strike (*Saskatchewan Federation of Labour v. Saskatchewan*, 2015 SCC 4 ("***SFL***")). As Madam Justice Abella put it, with her characteristic flare, the Court has clearly determined that "the arc bends increasingly towards workplace justice" (*SFL*, para 2).

Notwithstanding this arc, interesting questions remain about the future scope and application of freedom of association in Canada. In the Supreme Court of Canada's most recent venture into this arena, in *Société des casinos du Québec inc. v. Association des cadres de la Société des casinos du Québec,* 2024 SCC 13, it confirmed that the standard for establishing a breach of freedom of association – "substantial interference" – is higher than for some other fundamental freedoms, such as freedom of expression. While the full implications of this approach for the protection of section 2(d) is not yet known, some have been harshly critical of applying a higher standard to interference with freedom of association than in the context of other fundamental freedoms (see e.g. Brian Langille, "The Condescending Constitution (Or, the Purpose of Freedom of association Is Freedom of Association)" (2016) 19:2 Canadian Lab & Emp LJ 335).

Others have wondered whether the Court has departed from the more typical structure of the fundamental freedoms, or has created a guarantee that is only meaningful for a single (albeit especially important) type of association – labour unions – rather than a definition that can be consistently applied to all of the many and varied associations and associational activities in which individuals may choose to participate. Some argue that, while the original trilogy was improperly applied to exclude any protections for many essential union activities, the Court since then has focused on expanding labour rights, often conditioned on the ability to access "Wagner Act" style majoritarian collective bargaining regimes, rather than the fundamental freedoms more commonly protected by section 2 of the *Charter* (see e.g. Benjamin J. Oliphant, "The Nature of the Fundamental Freedoms and the Sui Generis Right to Collective Bargaining: The Case of Vulnerable and Precarious Workers" (2018) 21:2 Canadian Lab & Emp LJ 319).

Other scholars believe that the Court has not yet gone far enough in interpreting and applying section 2(d) to ensure that it is truly effective and meaningful for those who need it the most. For instance, Professor Doorey has argued that the Court should apply a 'graduated model' of freedom of association, whereby individuals who cannot realistically obtain access to the more robust menu of labour rights contained in statutory labour codes are nevertheless provided with certain essential associational protections (David J. Doorey, "Graduated Freedom of Association: Worker Voice beyond the Wagner Model" (2013) 38:2 Queen's LJ 511).

Other scholars point out that many workers – such as vulnerable or precarious workers, or those involved in the gig economy – are often unable to exercise meaningful freedom of association in the workplace, and argue that section 2(d) must be reconsidered and expanded to ensure its meaningful application outside of more traditional employment relationships, or outside the common Wagner Act model paradigm (see e.g. Joel Bakan & Sujit Choudhry, "Constitutional Labour Rights in the Gig Economy Digital Platform Workers and Section 2(d) of the Charter" McGill LJ (forthcoming, 2025); Bethany Hastie, "(Re)Discovering the Promise of Fraser? Labour Pluralism and Freedom of Association" (2021) 66:3 McGill L J 427).

As you read through the materials in this Chapter, consider how the freedom of association can and should be understood and applied in the modern Canadian context. Who is currently denied meaningful protection for freedom of association in the workplace, under the approach adopted by the Supreme Court, and can this be justified under our best interpretation of section 2(d)? To what extent should section 2(d) be reconceived in light of fundamental changes to the world of work witnessed over the past few decades, including the move away from traditional, long-term stable employment? What other forms of associational activity, outside of the labour context, may be entitled to constitutional protection, and on what standard? These and other questions are explored in the readings and Guidance Questions outlined below.

2 Scope and purpose of freedom of association

2.1 Excerpt *from Reference Re Public Service Employee Relations Act (Alta.)*, 1987 CanLII 88 (SCC), [1987] 1 SCR 313 - per Dickson CJ, paras 78-97

The government of Alberta referred constitutional questions about provisions of provincial labour legislation to the Alberta Court of Appeal. The legislation in question was the *Public Service Employee Relations Act* (which applied to public service employees), the *Labour Relations Act* (which applied to firefighters and hospital employees); and the *Police Officers Collective Bargaining Act* (which applied to police officers). The impugned provisions prohibited employees from striking (with compulsory arbitration required as an alternative when collective bargaining did not produce an agreement) and stipulated certain conditions (including subjects that were not to be discussed in the arbitration as well as many mandatory considerations for the arbitrator) relating to the arbitration proceedings themselves. The Alberta Court of Appeal held that the prohibition on striking was not unconstitutional, and declined to comment on the constitutionality of provisions relating to arbitration proceedings. The decision was appealed to the Supreme Court of Canada. The majority of the Court held that the provisions did not violate s 2(d) of the *Charter* and were thus constitutional. Justices Dickson and Wilson dissented, finding that the provisions did violate s 2(d).

Dickson CJ –

78. A wide variety of alternative interpretations of freedom of association has been advanced in the jurisprudence summarized above and in argument before this Court.

79. At one extreme is a purely constitutive definition whereby freedom of association entails only a freedom to belong to or form an association. On this view, the constitutional guarantee does not extend beyond protecting the individual's status as a member of an association. It would not protect his or her associational actions.

80. In the trade union context, then, a constitutive definition would find a *prima facie* violation of s. 2(*d*) of the *Charter* in legislation such as s. 2(1) of the *Police Officers Act* which prohibits membership in any organization affiliated with a trade union. But it could find no violation of s. 2(*d*) in respect of legislation which prohibited a concerted refusal to work. Indeed, a wide variety of trade union activities, ranging from the organization of social activities for its members, to the establishment of union pension plans, to the discussion of collective bargaining strategy, could be prohibited by the state without infringing s. 2(*d*).

81. The essentially formal nature of a constitutive approach to freedom of association is equally apparent when one considers other types of associational activity in our society. While the constitutive approach might find a possible violation of s. 2(d) in a legislative enactment which prohibited marriage for certain classes of people, it would hold inoffensive an enactment which precluded the same people from engaging in the activities integral to a marriage, such as cohabiting and raising children together. If freedom of association only protects the joining together of persons for common purposes, but not the pursuit of the very activities for which the association was formed, then the freedom is indeed legalistic, ungenerous, indeed vapid.

82. In my view, while it is unquestionable that s. 2(d), at a minimum, guarantees the liberty of persons to be in association or belong to an organization, it must extend beyond a concern for associational status to give effective protection to the interests to which the constitutional guarantee is directed. In this respect, it is important to consider the purposive approach to constitutional interpretation mandated by this Court in *R. v. Big M Drug Mart Ltd.*, supra, at p. 344:

> This Court has already, in some measure set out the basic approach to be taken in interpreting the *Charter*. In *Hunter v. Southam Inc.*, 1984 CanLII 33 (SCC), [1984] 2 SCR 145, this Court expressed the view that the proper approach to the definition of the rights and freedoms guaranteed by the *Charter* was a purposive one. The meaning of a right or freedom guaranteed by the *Charter* was to be ascertained by an analysis of the purpose of such a guarantee; it was to be understood, in other words, in the light of the interests it was meant to protect.
>
> In my view this analysis is to be undertaken, and the purpose of the right or freedom in question is to be sought by reference to the character and the larger objects of the *Charter* itself, to the language chosen to articulate the specific right or freedom, to the historical origins of the concepts enshrined, and where applicable, to the meaning and purpose of the other specific rights and freedoms with which it is associated within the text of the *Charter*. The interpretation should be, as the judgment in *Southam* emphasizes a generous rather than a legalistic one, aimed at fulfilling the purpose of the guarantee and securing for individuals the full benefit of the *Charter*'s protection. At the same time it is important not to overshoot the actual purpose of the right or freedom in question, but to recall that the *Charter* was not enacted in a vacuum, and must therefore, as this Court's decision in *Law Society of Upper Canada v. Skapinker*, 1984 CanLII 3 (SCC), [1984] 1 SCR 357, illustrates, be placed in its proper linguistic, philosophic and historical contexts. [Emphasis added.]

83. A second approach, the derivative approach, prevalent in the United States, embodies a somewhat more generous definition of freedom of association than the formal, constitutive approach. In the Canadian context, it is suggested by some that associational action which relates specifically to one of the other freedoms enumerated in s. 2 is constitutionally protected, but other associational activity is not.

84. I am unable, however, to accept that freedom of association should be interpreted so restrictively. Section 2(*d*) of the *Charter* provides an explicit and independent guarantee of freedom of association. In this respect it stands in marked contrast to the First Amendment to the American Constitution. The derivative approach would, in my view, largely make surplusage of s. 2(*d*). The associational or collective dimensions of s. 2(*a*) and (*b*) have already been recognized by this Court in *R. v. Big M Drug Mart Ltd.*, *supra*, without resort to s. 2(*d*). The associational aspect of s. 2(*c*) clearly finds adequate protection in the very expression of a freedom of peaceful assembly. What is to be learnt from the United States jurisprudence is not that freedom of association must be restricted to associational activities involving independent constitutional rights, but rather, that the express conferral of a freedom of association is unnecessary if all that is intended is to give effect to the collective enjoyment of other individual freedoms.

85. I am also unimpressed with the argument that the inclusion of s. 2(*d*) with freedoms of a "political" nature requires a narrow or restrictive interpretation of freedom of association. I am unable to regard s. 2 as embodying purely political freedoms. Paragraph (*a*), which protects freedom of conscience and religion is quite clearly not exclusively political in nature. It would, moreover, be unsatisfactory to overlook our Constitution's history of giving special recognition to collectivities or communities of interest other than the government and political parties. Sections 93 and 133 of the *Constitution Act, 1867* and ss. 16-24, 25, 27 and 29 of the *Charter*, dealing variously with denominational schools, language rights, aboriginal rights, and our multicultural heritage implicitly embody an awareness of the importance of various collectivities in the pursuit of educational, linguistic, cultural and social as well as political ends. Just as the individual is incapable of resisting political domination without the support of persons with similar values, so too is he or she, in isolation, incapable of resisting domination, over the long term, in many other aspects of life.

86. Freedom of association is protected in s. 2(*d*) under the rubric of "fundamental" freedoms. In my view, the "fundamental" nature of freedom of association relates to the central importance to the individual of his or her interaction with fellow human beings. The purpose of the constitutional guarantee of freedom of association is, I believe, to recognize the profoundly social nature of human endeavours and to protect the individual from state-enforced isolation in the pursuit of his or her ends. In the famous words of Alexis de Tocqueville in *Democracy in America* (1945), vol. 1, at p. 196:

> The most natural privilege of man, next to the right of acting for himself, is that of combining his exertions with those of his fellow creatures and of acting in common with them. The right of association therefore appears ... almost as inalienable in its nature as the right of personal liberty. No legislator can attack it without impairing the foundations of society.

As social beings, our freedom to act with others is a primary condition of community life, human progress and civilized society. Through association, individuals have been able to participate in determining and controlling the immediate circumstances of their lives, and the rules, mores and principles which govern the communities in which they live. As John Stuart Mill stated, "if public spirit, generous sentiments, or true justice and equality are desired, association, not isolation, of interests, is the school in which these excellences are nurtured". (*Principles of Political Economy* (1893), vol. 2, at p. 352.)

87. Freedom of association is most essential in those circumstances where the individual is liable to be prejudiced by the actions of some larger and more powerful entity, like the government or an employer. Association has always been the means through which political, cultural and racial minorities, religious groups and workers have sought to attain their purposes and fulfil their aspirations; it has enabled those who would otherwise be vulnerable and ineffective to meet on more equal terms the power and strength of those with whom their interests interact and, perhaps, conflict. T. I. Emerson, "Freedom of Association and Freedom of Expression" (1964), 74 *Yale L.J.* 1 at p. 1, states that:

> More and more the individual, in order to realize his own capacities or to stand up to the institutionalized forces that surround him, has found it imperative to join with others of like mind in pursuit of common objectives.

88. What freedom of association seeks to protect is not associational activities *qua* particular activities, but the freedom of individuals to interact with, support, and be supported by, their fellow humans in the varied activities in which they choose to engage. But this is not an unlimited constitutional license for all group activity. The mere fact that an activity is capable of being carried out by several people together, as well as individually, does not mean that the activity acquires constitutional protection from legislative prohibition or regulation.

89. I believe that Bayda C.J.S. was right in holding that s. 2(*d*) normally embraces the liberty to do collectively that which one is permitted to do as an individual, a proposition which one American writer, Reena Raggi perceives to be the cornerstone of freedom of association:

> The basic principle for which recognition will be sought in the formulation of an independent constitutional right of association is that whatever action a person can pursue as an individual, freedom of association must ensure he can pursue with others. Only such a principle assures man that, in his struggle to be independent of government control, he will not be crippled simply because on occasion he strives to achieve that independence with the help of others.

("An Independent Right to Freedom of Association" (1977), 12 Harv. C.R.-C.L.L. Rev. 1, at p. 15.)

However, it is not in my view correct to regard this proposition as the exclusive touchstone for determining the presence or absence of a violation of s. 2(d). Certainly, if a legislature permits an individual to enjoy an activity which it forecloses to a collectivity, it may properly be inferred that the legislature intended to prohibit the collective activity because of its collective or associational aspect. Conversely, one may infer from a legislative proscription which applies equally to individuals and groups that the purpose of the legislation was a bona fide prohibition of a particular activity because of detrimental qualities inhering in the activity (e.g., criminal conduct), and not merely because of the fact that the activity might sometimes be done in association. The proposition articulated by Bayda C.J.S. is therefore a useful test of legislative purpose in some circumstances. There will, however, be occasions when no analogy involving individuals can be found for associational activity, or when a comparison between groups and individuals fails to capture the essence of a possible violation of associational rights. This is precisely the situation in this case. There is no individual equivalent to a strike. The refusal to work by one individual does not parallel a collective refusal to work. The latter is qualitatively rather than quantitatively different. The overarching consideration remains whether a legislative enactment or administrative action interferes with the freedom of persons to join and act with others in common pursuits. The legislative purpose which will render legislation invalid is the attempt to preclude associational conduct because of its concerted or associational nature.

90. I wish to refer to one further concern. It has been suggested that associational activity for the pursuit of economic ends should not be accorded constitutional protection. If by this it is meant that something as fundamental as a person's livelihood or dignity in the workplace is beyond the scope of constitutional protection, I cannot agree. If, on the other hand, it is meant that concerns of an exclusively pecuniary nature are excluded from such protection, such an argument would merit careful consideration. In the present case, however, we are concerned with interests which go far beyond those of a merely pecuniary nature.

91. Work is one of the most fundamental aspects in a person's life, providing the individual with a means of financial support and, as importantly, a contributory role in society. A person's employment is an essential component of his or her sense of identity, self-worth and emotional well-being. Accordingly, the conditions in which a person works are highly significant in shaping the whole compendium of psychological, emotional and physical elements of a person's dignity and self respect. In exploring the personal meaning of employment, Professor David M. Beatty, in his article "Labour is Not a Commodity", in *Studies in Contract Law* (1980), has described it as follows, at p. 324:

> As a vehicle which admits a person to the status of a contributing, productive, member of society, employment is seen as providing recognition of the individual's being engaged in something worthwhile. It gives the individual a sense of significance. By realizing our capabilities and contributing in ways society determines to be useful, employment comes to represent the means by which most members of our community can lay claim to an equal right of respect and of concern from others. It is this institution through which most of us secure much of our self-respect and self-esteem.

92. The role of association has always been vital as a means of protecting the essential needs and interests of working people. Throughout history, workers have associated to overcome their vulnerability as individuals to the strength of their employers. The capacity to bargain collectively has long been recognized as one of the integral and primary functions of associations of working people. While trade unions also fulfil other important social, political and charitable functions, collective bargaining remains vital to the capacity of individual employees to participate in ensuring fair wages, health and safety protections, and equitable and humane working conditions. As Professor Paul Weiler explains in Reconcilable Differences: New Directions in Canadian Labour Law (1980), at p. 31:

> An apt way of putting it is to say that good collective bargaining tries to subject the employment relationship and the work environment to the "rule of law". Many theorists of industrial relations believe that this function of protecting the employee from the abuse of managerial power, thereby enhancing the dignity of the worker as a person, is the primary value of collective bargaining, one which entitles the institution to positive encouragement from the law.

93. Professor Weiler goes on to characterize collective bargaining as "intrinsically valuable as an experience in self-government" (p. 33), and writes at p. 32:

> ...collective bargaining is the most significant occasion upon which most of these workers ever participate in making social decisions about matters that are salient to their daily lives. That is the essence of collective bargaining.

A similar rationale for endorsing collective bargaining was advanced in the *Woods Task Force Report on Canadian Industrial Relations* (1968), at p. 96:

> 296. One of the most cherished hopes of those who originally championed the concept of collective bargaining was that it would introduce into the work place some of the basic features of the political democracy that was becoming the hallmark of most of the western world. Traditionally referred to as industrial democracy, it can be described as the substitution of the rule of law for the rule of men in the work place.

94. Closely related to collective bargaining, at least in our existing industrial *relations* context, is the freedom to strike. A. W. R. Carrothers, E. E. Palmer and W. B. Rayner, *Collective Bargaining Law in Canada* (2nd ed. 1986), describe the requisites of an effective system of collective bargaining as follows at p. 4:

> What are the requirements of an effective system of collective bargaining? From the point of view of employees, such a system requires that they be free to engage in three kinds of activity: to form themselves into associations, to engage employers in bargaining with the associations, and to invoke meaningful economic sanctions in support of the bargaining.

95. The Woods Task Force Report at p. 129 identifies the work stoppage as the essential ingredient in collective bargaining:

> 408. Strikes and lockouts are an indispensable part of the Canadian industrial relations system and are likely to remain so in our present socio-economic-political society.

At page 138 the Report continues:

> 431. Collective bargaining is the mechanism through which labour and management seek to accommodate their differences, frequently without strife, sometimes through it, and occasionally without success. As imperfect an instrument as it may be , there is no viable substitute in a free society.

At page 175 the Report notes that the acceptance of collective bargaining carries with it a recognition of the right to invoke the economic sanction of the strike. And at page 176, it is said, "The strike has become a part of the whole democratic system".

96. The importance to collective bargaining of the ultimate threat of a strike has also been recognized in the cases. Lord Wright noted in *Crofter Hand Woven Harris Tweed Co. v. Veitch*, [1942] 1 All E.R. 142 (H.L.), at pp. 158-59, "The right of workmen to strike is an essential element in the principle of collective bargaining". As the editors of *Kahn-Freund's Labour and the Law* (3rd ed. 1983), point out in respect of this comment: "If the workers could not, in the last resort, collectively refuse to work, they could not bargain collectively" (p. 292). See also: *Broadway Manor*; *Dairy Workers* case; *Blount*, *per* Wright J. The necessity and lawfulness of strikes has also been acknowledged by this Court: *Perrault v. Gauthier* (1898), 1898 CanLII 37 (SCC), 28 SCR 241, at p. 256; *Canadian Pacific Railway Co. v. Zambri*, 1962 CanLII 11 (SCC), [1962] SCR 609, at pp. 618 and 621.

97. I am satisfied, in sum, that whether or not freedom of association generally extends to protecting associational activity for the pursuit of exclusively pecuniary ends--a question on which I express no opinion--collective bargaining protects important employee interests which cannot be characterized as merely pecuniary in nature. Under our existing system of industrial relations, effective constitutional protection of the associational interests of employees in the collective bargaining process requires concomitant protection of their freedom to withdraw collectively their services, subject to s. 1 of the *Charter*.

2.2 Excerpt from *Reference Re Public Service Employee Relations Act (Alta.)*, 1987 CanLII 88 (SCC), [1987] 1 SCR 313 - per MacIntyre J, paras 148-179

MacIntyre J

148. Freedom of association is one of the most fundamental rights in a free society. The freedom to mingle, live and work with others gives meaning and value to the lives of individuals and makes organized society possible. The value of freedom of association as a unifying and liberating force can be seen in the fact that historically the conqueror, seeking to control foreign peoples, invariably strikes first at freedom of association in order to eliminate effective opposition. Meetings are forbidden, curfews are enforced, trade and commerce is suppressed, and rigid controls are imposed to isolate and thus debilitate the individual. Conversely, with the restoration of national sovereignty the democratic state moves at once to remove restrictions on freedom of association.

149. It is clear that the importance of freedom of association was recognized by Canadian law prior to the *Charter*. It is equally clear that prior to the *Charter* a provincial Legislature or Parliament acting within its jurisdiction could regulate and control strikes and collective bargaining. The *Charter* has reaffirmed the historical importance of freedom of association and guaranteed it as an independent right. The courts must now define the range or scope of this right and its relation to other rights, both those grounded in the *Charter* and those existing at law without *Charter* protection.

150. In approaching this task, it must be recognized that the *Charter* should receive a broad and generous construction consistent with its general purpose, (see *Hunter v. Southam Inc*., 1984 CanLII 33 (SCC), [1984] 2 SCR 145, at p. 155). In *R. v. Big M Drug Mart Ltd*., 1985 CanLII 69 (SCC), [1985] 1 SCR 295, this Court dealt in some detail with the considerations which should govern an inquiry into the meaning of the rights and freedoms guaranteed by the *Charter*. At page 344, Dickson J. (now C.J.) speaking for the majority, said:

> This Court has already, in some measure, set out the basic approach to be taken in interpreting the *Charter*. In *Hunter v. Southam Inc*., 1984 CanLII 33 (SCC), [1984] 2 SCR 145, this Court expressed the view that the proper approach to the definition of the rights and freedoms guaranteed by the *Charter* was a purposive one. The meaning of a right or freedom guaranteed by the *Charter* was to be ascertained by an analysis of the purpose of such a guarantee; it was to be understood, in other words, in the light of the interests it was meant to protect.
>
> In my view this analysis is to be undertaken, and the purpose of the right or freedom in question is to be sought by reference to the character and the larger objects of the *Charter* itself, to the language chosen to articulate the specific right or freedom, to the historical origins of the concepts enshrined, and where applicable, to the meaning and purpose of the other specific rights and freedoms with which it is associated within the text of the *Charter*. The interpretation should be, as the judgment in *Southam* emphasizes, a generous rather than a legalistic one, aimed at fulfilling the purpose of the guarantee and securing for individuals the full benefit of the *Charter*'s protection. At the same time it is important not to overshoot the actual purpose of the right or freedom in question, but to recall that the *Charter* was not enacted in a vacuum, and must therefore, as this Court's decision in *Law Society of Upper Canada v. Skapinker*, 1984 CanLII 3 (SCC), [1984] 1 SCR 357, illustrates, be placed in its proper linguistic, philosophic and historical contexts. [Emphasis added.]

151. It follows that while a liberal and not overly legalistic approach should be taken to constitutional interpretation, the *Charter* should not be regarded as an empty vessel to be filled with whatever meaning we might wish from time to time. The interpretation of the *Charter*, as of all constitutional documents, is constrained by the language, structure, and history of the constitutional text, by constitutional tradition, and by the history, traditions, and underlying philosophies of our society.

The Value of Freedom of Association

152. The starting point of the process of interpretation is an inquiry into the purpose or value of the right at issue. While freedom of association like most other fundamental rights has no single purpose or value, at its core rests a rather simple proposition: the attainment of individual goals, through the exercise of individual rights, is generally impossible without the aid and cooperation of others. "Man, as Aristotle

observed, is a `social animal, formed by nature for living with others', associating with his fellows both to satisfy his desire for social intercourse and to realize common purposes." (L. J. MacFarlane, *The Theory and Practice of Human Rights* (1985), p. 82.) This thought was echoed in the familiar words of Alexis de Tocqueville:

> The most natural privilege of man, next to the right of acting for himself, is that of combining his exertions with those of his fellow creatures and of acting in common with them. The right of association therefore appears to me almost as inalienable in its nature as the right of personal liberty. No legislator can attack it without impairing the foundations of society.
>
> (*Democracy in America* (1945), vol. l, at p. 196.)

153. The increasing complexity of modern society, which has diminished the power of the individual to act alone, has greatly increased the importance of freedom of association. In the words of Professor T. I. Emerson in "Freedom of Association and Freedom of Expression" (1964), 74 *Yale L.J.* 1, at p. 1:

> Freedom of association has always been a vital feature of American society. In modern times it has assumed even greater importance. More and more the individual, in order to realize his own capacities or to stand up to the institutionalized forces that surround him, has found it imperative to join with others of like mind in pursuit of common objectives.

A similar point was made by C. Wilfred Jenks, a former Director-General of the I.L.O. (*Human Rights and International Labour Standards* (1960), at p. 49):

> In an age of interdependence and large-scale organisation, in which the individual counts for so little unless he acts in co-operation with his fellows, freedom of association has become the cornerstone of civil liberties and social and economic rights alike. It has long been the bulwark of religious freedom and political liberty; it has increasingly become a necessary condition of economic and social freedom for the ordinary citizen.

154. Our society supports a multiplicity of organized groups, clubs and associations which further many different objectives, religious, political, educational, scientific, recreational, and charitable. This exercise of freedom of association serves more than the individual interest, advances more than the individual cause; it promotes general social goals. Of particular importance is the indispensable role played by freedom of association in the functioning of democracy. Paul Cavalluzzo said in "Freedom of Association and the Right to Bargain Collectively" in Litigating the Values of a Nation: The Canadian Charter of Rights and Freedoms (1986), at pp. 199-200:

> Secondly, [freedom of association] is an effective check on state action and power. In many ways freedom of association is the most important fundamental freedom because it is the one human right which clearly distinguishes a totalitarian state from a democratic one. In a totalitarian system, the state cannot tolerate group activity because of the powerful check it might have on state power.

Associations serve to educate their members in the operation of democratic institutions. As de Tocqueville noted, supra, vol. II, at p. 116:

> ...[individuals] cannot belong to these associations for any length of time without finding out how order is maintained among a large number of men and by what contrivance they are made to advance, harmoniously and methodically, to the same object. Thus they learn to surrender their own will to that of all the rest and to make their own exertions subordinate to the common impulse, things which it is not less necessary to know in civil than in political associations. Political associations may therefore be considered as large free schools, where all the members of the community go to learn the general theory of association.

Associations also make possible the effective expression of political views and thus influence the formation of governmental and social policy. As Professor G. Abernathy observed in *The Right of Assembly and Association* (1961), at p. 242:

> ...probably the most obvious service rendered by the institution of association is influencing governmental policy. Concerted action or pressure on governmental agencies has a far greater chance of success than does the sporadic pressure of numerous individuals acting separately.

Freedom of association then serves the interest of the individual, strengthens the general social order, and supports the healthy functioning of democratic government.

155. In considering the constitutional position of freedom of association, it must be recognized that while it advances many group interests and, of course, cannot be exercised alone, it is nonetheless a freedom belonging to the individual and not to the group formed through its exercise. While some provisions in the Constitution involve groups, such as s. 93 of the *Constitution Act, 1867* protecting denominational schools, and s. 25 of the *Charter* referring to existing aboriginal rights, the remaining rights and freedoms are individual rights; they are not concerned with the group as distinct from its members. The group or organization is simply a device adopted by individuals to achieve a fuller realization of individual rights and aspirations. People, by merely combining together, cannot create an entity which has greater constitutional rights and freedoms than they, as individuals, possess. Freedom of association cannot therefore vest independent rights in the group.

156. Many of the scholarly writers on this subject have recognized and stated this proposition. Clyde W. Summers in "Freedom of Association and Compulsory Unionism in Sweden and the United States" (1964), 112 U. Pa. L. Rev. 647, at p. 647, said:

> Although commonly asserted by the organization, freedom of association is not simply a collective right vested in the organization for its benefit. Freedom of association is an individual right vested in the individual to enable him to enlarge his personal freedom. Its function is not merely to grant power to groups, but to enrich the individual's participation in the democratic process by his acting through those groups. [Emphasis added.]

Professor Emerson, supra, at p. 4, stated:

> ...a theory of association must begin with the individual. In a society governed by democratic principles it is the individual who is the ultimate concern of the social order. His interests and rights are paramount. Association is an extension of individual freedom. It is a method of making more effective, of giving greater depth and scope to, the individual's needs, aspirations and liberties.

and Reena Raggi in the article "An Independent Right to Freedom of Association" (1977), 12 Harv. C.R.-C.L.L. Rev. 1, stated the position clearly, at pp. 15-16:

> This notion that an association is no more than the sum of its individual members seems essential in a society in which it is "the individual who is the ultimate concern of the social order." In such a society it would hardly seem possible that an abstract entity such as an association should enjoy rights apart from and indeed greater than its individual members; to hold otherwise would contradict the equality of opportunity which is at the heart of this argument for freedom of association.

157. The recognition of this principle in the case at bar is of great significance. The only basis on which it is contended that the Charter enshrines a right to strike is that of freedom of association. Collective bargaining is a group concern, a group activity, but the group can exercise only the constitutional rights of its individual members on behalf of those members. If the right asserted is not found in

the Charter for the individual, it cannot be implied for the group merely by the fact of association. It follows as well that the rights of the individual members of the group cannot be enlarged merely by the fact of association.

The Scope of Freedom of Association in s. 2(*d*)

158. Various theories have been advanced to define freedom of association guaranteed by the Constitution. They range from the very restrictive to the virtually unlimited. To begin with, it has been said that freedom of association is limited to a right to associate with others in common pursuits or for certain purposes. Neither the objects nor the actions of the group are protected by freedom of association. This was the approach adopted in *Collymore v. Attorney-General*, [1970] A.C. 538. The facts of the case have been stated by the Chief Justice and need no repetition here. In its reasons, the Judicial Committee approved the words of Sir Hugh Wooding C.J., of the Court of Appeal of Trinidad and Tobago, which defined freedom of association in these terms, at p. 547:

> ...freedom of association means no more than freedom to enter into consensual arrangements to promote the common-interest objects of the associating group. The objects may be any of many. They may be religious or social, political or philosophical, economic or professional, educational or cultural, sporting or charitable. But the freedom to associate confers neither right nor licence for a course of conduct or for the commission of acts which in the view of Parliament are inimical to the peace, order and good government of the country.

159. This approach was followed in *Dolphin Delivery Ltd. v. Retail, Wholesale & Department Store Union, Local 580* (1984), 1984 CanLII 750 (BC CA), 10 D.L.R. (4th) 198, (affirmed by this Court on different grounds, 1986 CanLII 5 (SCC), [1986] 2 SCR 573), where Esson J.A., speaking for the British Columbia Court of Appeal on this issue, said, at p. 209:

> The freedom must be intended to protect the right of 'everyone' to associate as they please, and to form associations of all kinds, from political parties to hobby clubs. Some will have objects and will be in favour of means of achieving those objects, which the framers of the Charter cannot have intended to protect. The freedom to associate carries with it no constitutional protection of the purposes of the association, or means of achieving those purposes.

…

161. A second approach provides that freedom of association guarantees the collective exercise of constitutional rights or, in other words, the freedom to engage collectively in those activities which are constitutionally protected for each individual. This theory has been adopted in the United States to define the scope of freedom of association under the American Constitution. Professor L. H. Tribe in his treatise, *American Constitutional Law* (1978), describes the American position, as follows, at p. 702:

> ...[freedom of association] is *a right to join with others to pursue goals independently protected by the first amendment*--such as political advocacy, litigation (regarded as a form of advocacy), or religious worship.

Further, in *Roberts v. United States Jaycees*, 468 U.S. 609 (1984), Brennan J., writing for the majority of the United States Supreme Court, said, at p. 618:

> ...the Court has recognized a right to associate for the purpose of engaging in those activities protected by the First Amendment--speech, assembly, petition for the redress of grievances, and the exercise of religion. The Constitution guarantees freedom of association of this kind as an indispensable means of preserving other individual liberties.

162. It will be seen that this approach guarantees not only the right to associate but as well the right to pursue those objects of association which by their nature have constitutional protection.

163. A third approach postulates that freedom of association stands for the principle that an individual is entitled to do in concert with others that which he may lawfully do alone, and conversely, that individuals and organizations have no right to do in concert what is unlawful when done individually…

164. A fourth approach would constitutionally protect collective activities which may be said to be fundamental to our culture and traditions and which by common assent are deserving of protection. This approach was proposed by Kerans J.A. in *Black v. Law Society of Alberta*, 1986 ABCA 68 (CanLII), [1986] 3 W.W.R. 590 (Alta. C.A.) The court held in that case that legislative restrictions against partnerships for the practice of law between Alberta solicitors and non-resident solicitors violated freedom of association. Speaking for himself, Kerans J.A., stated, at p. 612:

> In my view, the freedom [of association] includes the freedom to associate with others in the exercise of Charter-protected rights and also those other rights which--in Canada--are thought so fundamental as not to need formal expression: to marry, for example, or to establish a home and family, pursue an education or gain a livelihood. [Emphasis added.]

165. A fifth approach rests on the proposition that freedom of association, under s. 2(*d*) of the *Charter*, extends constitutional protection to all activities which are essential to the lawful goals of an association. This approach was advanced in *Re Service Employees' International Union, Local 204 and Broadway Manor Nursing Home* (1983), 1983 CanLII 1928 (ON SC), 44 O.R. (2d) 392 by the Ontario Divisional Court. The court held that freedom of association included the freedom to bargain collectively and to strike, since, in its view, these activities were essential to the objects of a trade union and without them the association would be emasculated…

166. The sixth and final approach so far isolated in the cases, and by far the most sweeping, would extend the protection of s. 2(*d*) of the *Charter* to all acts done in association, subject only to limitation under s. 1 of the *Charter*. This is the position suggested by Bayda C.J.S. in the *Dairy Workers* case, *supra*. He said in his reasons for judgment, at pp. 620-21:

> To summarize, a person asserting the freedom of association under para. 2(*d*) is free (apart from s. l of the *Charter*) to perform in association without governmental interference any act that he is free to perform alone. Where an act by definition is incapable of individual performance, he is free to perform the act in association provided the mental component of the act is not to inflict harm. Such then is the "unregulated area" (to use Professor Lederman's expression) relative to the freedom of association. Such is the "sphere of activity within which the law (has guaranteed) to leave me alone", to use the words of the author of *Salmond on Jurisprudence* with an interpolation from s. 1 of the *Charter*. [Emphasis added.]

167. In presenting these six formulations of the concept of freedom of association, I do not mean to suggest that they are the only ones which might be developed. They do, however, embrace generally the concepts and arguments advanced before the Court. In examining these formulations, I will consider them within the context of the *Charter,* the pre-existing law of Canada, and the circumstances in which freedom of association is asserted.

168. As to the pre-existing law in Canada, it is sufficient to say that freedom of association is not a new right or freedom. It existed in Canada long before the *Charter* was adopted and was recognized as a basic right. It consisted in the liberty of two or more persons to associate together provided that they did not infringe a specific rule of common law or statute by having either an unlawful object or by pursuing their object by unlawful means (see *Halsbury's Laws of England* (3rd ed. 1954), vol. 7, at pp. 195-96; O. Hood Phillips and Paul Jackson, *Constitutional and Administrative Law* (6th ed. 1978), at p. 503). It may be observed as well that freedom of association was

recognized and applied in relation to trade unions. The law of Canada and of each province has long recognized that trade unions could, and did, exist as lawful associations with rights and obligations fixed by law and that individuals had the right to belong to, and participate in, the activities of trade unions (see *Collective Bargaining Law in Canada* (2nd ed. 1986), A. W. R. Carrothers, E. E. Palmer and W. B. Rayner, at pp. 1-108).

169. Freedom of association was acknowledged and accepted as part of our social and legal fabric. The *Charter* upon its adoption guaranteed freedom of association as a free-standing right in s. 2(*d*). I do not seek to limit the effect of that guarantee to the law as it stood before adoption. I do, however, suggest that the *Charter* guarantee, which by itself does not in any way define freedom of association, must be construed with reference to the constitutional text and to the nature, history, traditions, and social philosophies of our society. This approach makes relevant consideration of the pre-*Charter* situation and the nature and scope of the rights and obligations the law had ascribed to associations, in this case trade unions, before the adoption of the *Charter*.

170. Turning to the various approaches which have been briefly described above, I would conclude that both the fifth approach (which postulates that freedom of association constitutionally protects all activities which are essential to the lawful goals of an association) and the sixth (which postulates that freedom of association constitutionally protects all activities carried out in association, subject only to reasonable limitation under s. l of the *Charter*) are unacceptable definitions of freedom of association.

171. The fifth approach rejects the individual nature of freedom of association. To accept it would be to accord an independent constitutional status to the aims, purposes, and activities of the association, and thereby confer greater constitutional rights upon members of the association than upon non-members. It would extend *Charter* protection to all the activities of an association which are essential to its lawful objects or goals, but, it would not extend an equivalent right to individuals. The *Charter* does not give, nor was it ever intended to give, constitutional protection to all the acts of an individual which are essential to his or her personal goals or objectives. If *Charter* protection is given to an association for its lawful acts and objects, then the *Charter*-protected rights of the association would exceed those of the individual merely by virtue of the fact of association. The unacceptability of such an approach is clearly demonstrated by Peter Gall in "Freedom of Association and Trade Unions: A Double-Edged Constitutional Sword" in *Litigating the Values of a Nation: The Canadian Charter of Rights and Freedoms* (1986), at p. 247:

> A brief example illustrates this point. One of our levels of government may decide to ban the ownership of guns. This would not infringe any individual right under the Charter. But if some individuals have combined to form a gun club, does the Charter's protection of freedom of association mean that the principal activity of the gun club, namely the ownership and use of guns, is now constitutionally protected? One is quickly forced to the conclusion that it does not. The Charter does not protect the right to bear arms, regardless of whether that activity is carried out by an individual or by an association. The mere fact that it is the principal activity of the gun club does not give it a constitutional status. I doubt whether there would be much, if any, disagreement on this point. Thus, by referring to this hypothetical situation we see that the principal activities of associations are not necessarily protected under the concept of freedom of association.

172. The sixth approach, in my opinion, must be rejected as well, for the reasons expressed in respect of the fifth. It would in even more sweeping terms elevate activities to constitutional status merely because they were performed in association. For obvious reasons, the *Charter* does not give constitutional protection to all activities performed by individuals. There is, for instance, no *Charter* protection for the ownership of property, for general commercial activity, or for a host of other lawful activities. And yet, if the sixth approach were adopted, these same activities would receive protection if they were performed by a group rather than by an individual. In my view, such a proposition cannot be accepted. There is simply no justification for according *Charter* protection to an activity merely because it is performed by more than one person. This was recognized by Paul Cavalluzzo, *supra*, at pp. 202-03:

> The problem with this [the sixth] approach is that it sanctifies conduct because it is engaged in by more than one citizen. Although the state is given the opportunity to justify interference under section 1, why should there be constitutional value in numbers? Surely, more is required to reach the threshold of attaining constitutional protection. Freedom of association is not a fundamental freedom because there is some inherent value in group activity. Not all individual expressions are protected by freedom of expression at the threshold stage. Likewise, not all associational conduct is protected by freedom of association.

173. I am also of the view that the fourth approach, which postulates that freedom of association embraces those collective activities which have attained a fundamental status in our society because they are deeply rooted in our culture, traditions, and history, is an unacceptable definition. By focusing on the activity or the conduct itself, this fourth approach ignores the fundamental purpose of the right. The purpose of freedom of association is to ensure that various goals may be pursued in common as well as individually. Freedom of association is not concerned with the particular activities or goals themselves; it is concerned with how activities or goals may be pursued. While activities such as establishing a home, pursuing an education, or gaining a livelihood are important if not fundamental activities, their importance is not a consequence of their potential collective nature. Their importance flows from the structure and organization of our society and they are as important when pursued individually as they are when pursued collectively. Even institutions such as marriage and the family, which by their nature are collective, do not fall easily or completely under the rubric of freedom of association. For instance, freedom of association would have no bearing on the legal consequences of marriage, such as the control or ownership of matrimonial property. This is not to say that fundamental institutions, such as marriage, will never receive the protection of the *Charter*. The institution of marriage, for example, might well be protected by freedom of association in combination with other rights and freedoms. Freedom of association alone, however, is not concerned with conduct; its purpose is to guarantee that activities and goals may be pursued in common. When this purpose is considered, it is clear that s. 2(*d*) of the *Charter* cannot be interpreted as guaranteeing specific acts or goals, whether or not they are fundamental in our society.

174. Of the remaining approaches, it must surely be accepted that the concept of freedom of association includes at least the right to join with others in lawful, common pursuits and to establish and maintain organizations and associations as set out in the first approach. This is essentially the freedom of association enjoyed prior to the adoption of the *Charter*. It is, I believe, equally clear that, in accordance with the second approach, freedom of association should guarantee the collective exercise of constitutional rights. Individual rights protected by the Constitution do not lose that protection when exercised in common with others. People must be free to engage collectively in those activities which are constitutionally protected for each individual. This second definition of freedom of association embraces the purposes and values of the freedoms which were identified earlier. For instance, the indispensable role played by freedom of association in the democratic process is fully protected by guaranteeing the collective exercise of freedom of expression. Group advocacy, which is at the heart of all political parties and special interest groups, would be protected under this definition. As well, group expression directed at educating or informing the public would be protected from government interference (see the judgment of this Court in *Dolphin Delivery*, *supra*). Indeed, virtually every group activity which is important to the functioning of democracy would be protected by guaranteeing that freedom of expression can be exercised in association with others. Furthermore, religious groups would receive protection if their activities constituted the collective exercise of freedom of religion. Thus, the principal purposes or values of freedom of association would be realized by interpreting s. 2(*d*) as protecting the collective exercise of the rights enumerated in the *Charter*.

175. One enters upon more controversial ground when considering the third approach which provides that whatever action an individual can lawfully pursue as an individual, freedom of association ensures he can pursue with others. Conversely, individuals and organizations have no constitutional right to do in concert what is unlawful when done alone. This approach is broader than the second, since constitutional

protection attaches to all group acts which can be lawfully performed by an individual, whether or not the individual has a constitutional right to perform them. It is true, of course, that in this approach the range of *Charter*-protected activity could be reduced by legislation, because the Legislature has the power to declare what is and what is not lawful activity for the individual. The Legislature, however, would not be able to attack directly the associational character of the activity, since it would be constitutionally bound to treat groups and individuals alike. A simple example illustrates this point: golf is a lawful but not constitutionally protected activity. Under the third approach, the Legislature could prohibit golf entirely. However, the Legislature could not constitutionally provide that golf could be played in pairs but in no greater number, for this would infringe the *Charter* guarantee of freedom of association. This contrasts with the second approach, which would provide no protection against such legislation, because golf is not a constitutionally protected activity for the individual. Thus, the range of group activity protected by the third approach is greater than that of the second, but the greater range is to some extent illusory because of the power of the Legislature to say what is and what is not lawful activity for the individual. This approach, in my view, is an acceptable interpretation of freedom of association under the *Charter*. It is clear that, unlike the fifth and sixth approaches, this definition of freedom of association does not provide greater constitutional rights for groups than for individuals; it simply ensures that they are treated alike. If the state chooses to prohibit everyone from engaging in an activity and that activity is not protected under the Constitution, freedom of association will not afford any protection to groups engaging in the activity. Freedom of association as an independent right comes into play under this formulation when the state has permitted an individual to engage in an activity and yet forbidden the group from doing so. Moreover, unlike the fourth approach, the inquiry is firmly focussed on the fundamental purpose of freedom of association, namely, to permit the collective pursuit of common goals. As noted by the Chief Justice, at p. 367, "if a legislature permits an individual to enjoy an activity which it forecloses to a collectivity, it may properly be inferred that the legislature intended to prohibit the collective activity because of its collective or associational aspect. Conversely, one may infer from a legislative proscription which applies equally to individuals and groups that the purpose of the legislation was a *bona fide* prohibition of a particular activity because of detrimental qualities inhering in the activity (e.g., criminal conduct), and not merely because of the fact that the activity might sometimes be done in association." Finally, this approach fully realizes the value or purpose of association. Activities which the state permits an individual to pursue may be pursued in a group. Associations engaged in scientific, educational, recreational, and charitable pursuits would receive protection even though these activities or pursuits may not be independently protected by the *Charter,* provided these activities are not forbidden at law to individuals. The objective of guaranteeing the freedom of individuals to unite in organizations of their choice for the pursuit of objects of their choice would be achieved.

176. It follows from this discussion that I interpret freedom of association in s. 2(*d*) of the *Charter* to mean that *Charter* protection will attach to the exercise in association of such rights as have *Charter* protection when exercised by the individual. Furthermore, freedom of association means the freedom to associate for the purposes of activities which are lawful when performed alone. But, since the fact of association will not by itself confer additional rights on individuals, the association does not acquire a constitutionally guaranteed freedom to do what is unlawful for the individual.

177. When this definition of freedom of association is applied, it is clear that it does not guarantee the right to strike. Since the right to strike is not independently protected under the *Charter*, it can receive protection under freedom of association only if it is an activity which is permitted by law to an individual. Accepting this conclusion, the appellants argue that freedom of association must guarantee the right to strike because individuals may lawfully refuse to work. This position, however, is untenable for two reasons. First, it is not correct to say that it is lawful for an individual employee to cease work during the currency of his contract of employment. Belzil J.A., in the Alberta Court of Appeal, in the case at bar, dealt with this point in these words:

> The argument falters on the premise that cessation of work by one person is lawful. The rationale advanced for that premise is that the courts will not compel a servant to fulfil his contract of service, therefore cessation of work by a servant is lawful. While it is true that the courts will not compel a servant to fulfil his contract of service, the servant is nevertheless bound in law by his contract and may be ordered to pay damages for the unlawful breach of it. It cannot be said that his cessation of work is lawful.

The second reason is simply that there is no analogy whatever between the cessation of work by a single employee and a strike conducted in accordance with modern labour legislation. The individual has, by reason of the cessation of work, either breached or terminated his contract of employment. It is true that the law will not compel the specific performance of the contract by ordering him back to work as this would reduce "the employee to a state tantamount to slavery" (I. Christie, *Employment Law in Canada* (1980), p. 268). But, this is markedly different from a lawful strike. An employee who ceases work does not contemplate a return to work, while employees on strike always contemplate a return to work. In recognition of this fact, the law does not regard a strike as either a breach of contract or a termination of employment. Every province and the federal Parliament has enacted legislation which preserves the employer-employee relationship during a strike (see *Canada Labour Code*, R.S.C. 1970, c. L-1, as amended, s. 107(2); *Labour Relations Act*, R.S.A. 1980 (Supp.), c. L-1.1, as amended, s. 1(2); *Labour Code*, R.S.B.C. 1979, c. 212, as amended, s. 1(2); *The Labour Relations Act*, S.M. 1972, c. 75, as amended, s. 2(1); *Industrial Relations Act*, R.S.N.B. 1973, c. I-4, as amended, s. 1(2); *The Labour Relations Act*, 1977, S.N. 1977, c. 64, as amended, s. 2(2); *The Trade Union Act*, S.N.S. 1972, c. 19, as amended, s. 13; *Labour Relations Act*, R.S.O. 1980, c. 228, as amended, s. 1(2); *Labour Act*, R.S.P.E.I. 1974, c. L-1, as amended, s. 8(2); *Labour Code*, R.S.Q. 1977, c. C-27, as amended, s. 110; and *The Trade Union Act*, R.S.S. 1978, c. T-17, as amended s. 2(*f*); and see *Canadian Pacific Railway Co. v. Zambri*, 1962 CanLII 11 (SCC), [1962] SCR 609). Moreover, many statutes provide employees with reinstatement rights following a strike (Ontario, *Labour Relations Act*, s. 73; Quebec, *Labour Code*, s. 110.1; Manitoba, *The Labour Relations Act*, s. 11; and see *Canadian Air Line Pilots' Ass'n and Eastern Provincial Airways Ltd*. (1983), 5 CLRBR (NS) 368) and in the province of Quebec the employer is expressly prohibited from replacing employees who are lawfully on strike (s. 109.1).

178. Modern labour relations legislation has so radically altered the legal relationship between employees and employers in unionized industries that no analogy may be drawn between the lawful actions of individual employees in ceasing to work and the lawful actions of union members in engaging in a strike…

It is apparent, in my view, that interpreting freedom of association to mean that every individual is free to do with others that which he is lawfully entitled to do alone would not entail guaranteeing the right to strike. I am supported in this conclusion by the Chief Justice, who states at p. 367 in his judgment, "There is no individual equivalent to a strike. The refusal to work by one individual does not parallel a collective refusal to work. The latter is qualitatively rather than quantitatively different." Restrictions on strikes are not aimed at and do not interfere with the collective or associational character of trade unions. It is therefore my conclusion that the concept of freedom of association does not extend to the constitutional guarantee of a right to strike. This conclusion is entirely consistent with the general approach of the *Charter* which accords rights and freedoms to the individual but, with a few exceptions noted earlier, does not confer group rights. It is also to be observed that the *Charter*, with the possible exception of s. 6(2)(*b*) (right to earn a livelihood in any province) and s. 6(4), does not concern itself with economic rights. Since trade unions are not one of the groups specifically mentioned by the *Charter*, and are overwhelmingly, though not exclusively, concerned with the economic interests of their members, it would run counter to the overall structure and approach of the *Charter* to accord by implication special constitutional rights to trade unions.

2.3 Questions

1. What are the fundamental differences between the approach to freedom of association adopted by Chief Justice Dickson, compared with that adopted by Justice McIntyre? And on what points do both judgments agree?

2. Both Chief Justice Dickson and Justice McIntyre find that there is no analogy between certain individual activities and certain collective activities – but it leads them to opposite conclusions in this case. What are the core points of dispute that lead them to reach opposite conclusions on the application of section 2(d) in this context?
3. Justice McIntyre's approach to freedom of association – the freedom to do with others what one has the freedom to do alone – was found to not provide protection to strike action. Is his reasoning on this point convincing? (see David Beatty and Steve Kennett, "*Striking Back: Fighting Words, Social Protest and Political Participation in Free and Democratic Societies*" (1988) 67:4 Can Bar Rev 573).
4. As we will see in later sections, Chief Justice Dickson's judgment is often applauded for offering a "purposive" approach to freedom of association. But is Justice McIntyre's approach not also purposive? And if it is also a "purposive" interpretation, is there a disagreement about the purpose of section 2(d) that can help explain the opposing conclusions reached on scope of section 2(d) and the right to strike?

3 The "three aspects" of freedom of association

3.1 Excerpt from *Mounted Police Association of Ontario v. Canada (Attorney General)*, 2015 SCC 1 (CanLII), [2015] 1 SCR 3, paras 51-80

The Royal Canadian Mounted Police were excluded from the definition of "employee" in s 2(1) of the federal *Public Service Labour Relations Act* (previously the *Public Service Staff Relations* Act) and therefore from collective bargaining. Instead, the Police were subject to a non-unionized labour relations scheme imposed by s 96 of the *Royal Canadian Mounted Police Regulations* (which was replaced by a substantially similar s 56 in the 2014 regulations). The only way employees could raise issues was through the Staff Relations Representative Program, which was staffed by RCMP employees and ultimately left final decisions exclusively with RCMP management. Two groups of RCMP members challenged the constitutionality of the labour relations scheme in place for RCMP officers as well as the general exclusion of RCMP officers from the definition of "employee" under the *Public Service Labour Relations* Act. The Ontario Superior Court of Justice held that the labour regime was an unjustifiable infringement of s 2(d), but the Ontario Court of Appeal overturned that judgement. At the Supreme Court level, a majority of the Court held that both the exclusion from the federal statute and the regime provided for in the regulations were unjustifiable infringements of s 2(d). The declaration was suspended 12 months to allow Parliament time to respond. Justice Rothstein dissented, finding that both provisions were s 2(d) compliant.

> The Chief Justice and LeBel J. —
>
> [51] In his dissenting reasons in the *Alberta Reference*, Dickson C.J. identified three possible approaches to the interpretation of s. 2(*d*) — constitutive, derivative and purposive. We conclude that s. 2(*d*) protects each of the aspects of freedom of association with which these approaches are concerned.
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> [52] The narrowest approach, the "constitutive", would protect only the bare right to belong to or form an association. The state would thus be prohibited from interfering with individuals meeting or forming associations, but would be permitted to interfere with the *activities* pursued by the associations people form. This protection, while narrow, is not trivial; history is replete with examples of states that have banned associations or prevented people from associating, either absolutely or in terms of restrictions on the number of people who can associate for a particular purpose.
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> [53] The "derivative" approach would protect not only the right to associate, but also the right to associational *activity* that specifically relates to other constitutional freedoms. This approach prevails in the United States, where freedom of association is recognized insofar as it supports other constitutional rights, like freedom of religion and the political rights. Beyond this, however, associational activities would not be constitutionally protected.
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> [54] The purposive approach, adopted by Dickson C.J. in the *Alberta Reference*, defines the content of s. 2(*d*) by reference to the purpose of the guarantee of freedom of association: ". . . to recognize the profoundly social nature of human endeavours and to protect the individual from state-enforced isolation in the pursuit of his or her ends" (*Alberta Reference*, at p. 365). The object of Dickson C.J.'s words is a concrete one, not an abstract expression of a desire for a better life. Elaborating on this interpretive approach, Dickson C.J. states that the purpose of the freedom of association encompasses the protection of (1) individuals joining with others to form associations (the constitutive approach); (2) collective activity in support of other constitutional rights (the derivative approach); and (3) collective activity that enables "those who would otherwise be vulnerable and ineffective to meet on more equal terms the power and strength of those with whom their interests interact and, perhaps, conflict": *Alberta Reference*, at p. 366.
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> [55] The purposive approach thus recognizes that freedom of association is empowering, and that we value the guarantee enshrined in s. 2(*d*) because it empowers groups whose members' individual voices may be all too easily drowned out. This conclusion is rooted in "the historical origins of the concepts enshrined" in s. 2(*d*) (*Big M Drug Mart*, at p. 344).
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> [56] The historical emergence of association as a fundamental freedom — one which permits the growth of a sphere of civil society largely free from state interference — has its roots in the protection of religious minority groups: M. Walzer, "The Concept of Civil Society", in M. Walzer, ed., *Toward a Global Civil Society* (1995), 7, at p. 20. More recent history also illustrates how the freedom to associate has contributed to the women's suffrage and gay rights movements: J. D. Inazu, *Liberty's Refuge: The Forgotten Freedom of Assembly* (2012), at p. 45; and D. Carpenter, "Expressive Association and Anti-Discrimination Law After *Dale*: A Tripartite Approach" (2001), 85 *Minn. L. Rev.* 1515.
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> [57] Historically, those most easily ignored and disempowered as individuals have staked so much on freedom of association precisely because association was the means by which they could gain a voice in society. As Dickson C.J. put it in the *Alberta Reference*:
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> > Freedom of association is most essential in those circumstances where the individual is liable to be prejudiced by the actions of some larger and more powerful entity, like the government or an employer. Association has always been the means through which political, cultural and racial minorities, religious groups and workers have sought to attain their purposes and fulfil their aspirations; it has enabled those who would otherwise be vulnerable and ineffective to meet on more equal terms the power and strength of those with whom their interests interact and, perhaps, conflict. [Emphasis added; pp. 365-66.]
>
> [58] This then is a fundamental purpose of s. 2(*d*) — to protect the individual from "state-enforced isolation in the pursuit of his or her ends": *Alberta Reference*, at p. 365. The guarantee functions to protect individuals against more powerful entities. By banding together in the pursuit of common goals, individuals are able to prevent more powerful entities from thwarting their legitimate goals and desires. In this way, the guarantee of freedom of association empowers vulnerable groups and helps them work to right imbalances in society. It protects marginalized groups and makes possible a more equal society.
>
> [59] The flip side of the purposive approach to freedom of association under s. 2(*d*) is that the guarantee will not necessarily protect all associational activity. Section 2(*d*) of the *Charter* is aimed at reducing social imbalances, not enhancing them. For this reason, some collective activity lies outside the *Charter*'s protection. For example, associational activity that constitutes violence is not protected by s. 2(*d*): *Suresh v. Canada (Minister of Citizenship and Immigration)*, 2002 SCC 1, [2002] 1 SCR 3, at para. 107.

[60] Whether there are other categories of activity in addition to violence that are by their very nature entirely excluded from s. 2(*d*) protection need not be canvassed here. It suffices to note that a purposive interpretation of s. 2(*d*) confers *prima facie* protection on a broad range of associational activity, subject to limits justified pursuant to s. 1 of the *Charter*.

[61] The nature of a given associational activity and its relation to the underlying purpose of s. 2(*d*) may also be relevant to the s. 1 analysis, in the same way that the nature of particular expression is relevant in s. 2(*b*) cases….

[62] Section 2(*d*), we have seen, protects associational activity for the purpose of securing the individual against state-enforced isolation and empowering individuals to achieve collectively what they could not achieve individually. It follows that the associational rights protected by s. 2(*d*) are not merely a bundle of individual rights, but collective rights that inhere in associations. L'Heureux-Dubé J. put it well in *Advance Cutting*:

> In society, there is an element of synergy when individuals interact. The mere addition of individual goals will not suffice. Society is more than the sum of its parts. Put another way, a row of taxis do not a bus make. An arithmetic approach to *Charter* rights fails to encompass the aspirations imbedded in it. [para. 66]

[63] It has been suggested that collective rights should not be recognized because they are inconsistent with the *Charter*'s emphasis on individual rights, and because this would give groups greater rights than individuals. In our view, neither criticism is well founded.

[64] First, the *Charter* does not exclude collective rights. While it generally speaks of individuals as rights holders, its s. 2 guarantees extend to groups. The right of peaceful assembly is, by definition, a group activity incapable of individual performance. Freedom of expression protects both listeners and speakers: *R. v. National Post*, 2010 SCC 16, [2010] 1 SCR 477, at para. 28. The right to vote is meaningless in the absence of a social context in which voting can advance self-government: *Sauvé v. Canada (Chief Electoral Officer)*, 2002 SCC 68, [2002] 3 SCR 519, at para. 31. The Court has also found that freedom of religion is not merely a right to hold religious opinions but also an individual right to establish communities of faith (see *Alberta v. Hutterian Brethren of Wilson Colony*, 2009 SCC 37, [2009] 2 SCR 567). And while this Court has not dealt with the issue, there is support for the view that "the autonomous existence of religious communities is indispensable for pluralism in a democratic society and is thus an issue at the very heart of the protection" of freedom of religion (*Hutterian Brethren*, at para. 131, per Abella J., dissenting, citing *Metropolitan Church of Bessarabia v. Moldova*, No. 45701/99, ECHR 2001-XII (First Section), at para. 118). See also *Serbian Eastern Orthodox Diocese v. Milivojevich*, 426 U.S. 696 (1976).

[65] It has also been suggested that recognition of a collective aspect to s. 2(*d*) rights will somehow undermine individual rights and the individual aspect of s. 2(*d*). We see no basis for this contention. Recognizing group or collective rights complements rather than undercuts individual rights, as the examples just cited demonstrate. It is not a question of *either* individual rights *or* collective rights. Both are essential for full *Charter* protection.

[66] In summary, s. 2(*d*), viewed purposively, protects three classes of activities: (1) the right to join with others and form associations; (2) the right to join with others in the pursuit of other constitutional rights; and (3) the right to join with others to meet on more equal terms the power and strength of other groups or entities.

C. *The Right to a Meaningful Collective Bargaining Process*

[67] Applying the purposive approach just discussed to the domain of labour relations, we conclude that s. 2(d) guarantees the right of employees to meaningfully associate in the pursuit of collective workplace goals, affirming the central holdings of *Health Services* and *Fraser*. This guarantee includes a right to collective bargaining. However, that right is one that guarantees a process rather than an outcome or access to a particular model of labour relations.

[68] Just as a ban on employee association impairs freedom of association, so does a labour relations process that substantially interferes with the possibility of having meaningful collective negotiations on workplace matters. Without the right to pursue workplace goals collectively, workers may be left essentially powerless in dealing with their employer or influencing their employment conditions. This idea is not new. As the United States Supreme Court stated in *National Labor Relations Board v. Jones & Laughlin Steel Corp.*, 301 U.S. 1 (1937), at p. 33:

> Long ago we stated the reason for labor organizations. We said that they were organized out of the necessities of the situation; that a single employee was helpless in dealing with an employer; that he was dependent ordinarily on his daily wage for the maintenance of himself and family; that if the employer refused to pay him the wages that he thought fair, he was nevertheless unable to leave the employ and resist arbitrary and unfair treatment . . . . [Emphasis added.]

[69] Similarly, this Court recently affirmed the importance of freedom of expression in redressing the imbalance inherent in the employer-employee relationship in *Alberta (Information and Privacy Commissioner) v. United Food and Commercial Workers, Local 401*, 2013 SCC 62, [2013] 3 SCR 733, at paras. 31-32:

> A person's employment and the conditions of their workplace can inform their identity, emotional health, and sense of self-worth . . . .
>
> Free expression in the labour context can also play a significant role in redressing or alleviating the presumptive imbalance between the employer's economic power and the relative vulnerability of the individual worker . . . . It is through their expressive activities that unions are able to articulate and promote their common interests, and, in the event of a labour dispute, to attempt to persuade the employer. [Citations omitted.]

[70] The same reasoning applies to freedom of association. As we have seen, s. 2(*d*) functions to prevent individuals, who alone may be powerless, from being overwhelmed by more powerful entities, while also enhancing their strength through the exercise of collective power. Nowhere are these dual functions of s. 2(*d*) more pertinent than in labour relations. Individual employees typically lack the power to bargain and pursue workplace goals with their more powerful employers. Only by banding together in collective bargaining associations, thus strengthening their bargaining power with their employer, can they meaningfully pursue their workplace goals.

[71] The right to a meaningful process of collective bargaining is therefore a necessary element of the right to collectively pursue workplace goals in a meaningful way (*Health Services*; *Fraser*). Yet a process of collective bargaining will not be meaningful if it denies employees the power to pursue their goals. As this Court stated in *Health Services*: "One of the fundamental achievements of collective bargaining is to palliate the historical inequality between employers and employees . . ." (para. 84). A process that substantially interferes with a meaningful process of collective bargaining by reducing employees' negotiating power is therefore inconsistent with the guarantee of freedom of association enshrined in s. 2(*d*).

[72] The balance necessary to ensure the meaningful pursuit of workplace goals can be disrupted in many ways. Laws and regulations may restrict the subjects that can be discussed, or impose arbitrary outcomes. They may ban recourse to collective action by employees without adequate countervailing protections, thus undermining their bargaining power. They may make the employees' workplace goals impossible to

achieve. Or they may set up a process that the employees cannot effectively control or influence. Whatever the nature of the restriction, the ultimate question to be determined is whether the measures disrupt the balance between employees and employer that s. 2(*d*) seeks to achieve, so as to substantially interfere with meaningful collective bargaining: *Health Services*, at para. 90.

[73] Against this conception, the Attorney General of Canada, relying on *Fraser*, argues that collective bargaining is at best a "derivative right" from the basic or "core" right to associate (the constitutive approach). It follows, according to the Attorney General, that collective bargaining is protected only if state action makes it *effectively impossible* to associate for workplace matters. Here that impossibility is lacking, the Attorney General asserts, because the SRRP process is a means by which RCMP members can associate for workplace purposes. The Court of Appeal accepted this position. We disagree. We will address the terms "effectively impossible" and "derivative right" in turn.

[74] The reference in *Fraser* to the effective impossibility of achieving workplace goals must be understood with reference to the legislative schemes at issue. For instance, in discussing *Dunmore*, the majority in *Fraser* explained that Bastarache J. had "concluded that the absence of legislative protection for farm workers to organize in order to achieve workplace goals made meaningful association to achieve workplace goals impossible and therefore constituted a substantial interference with the right to associate guaranteed by s. 2(*d*) of the *Charter*" (para. 31 (emphasis added)). Similarly, the majority in *Fraser* explained that the legislation impugned in *Health Services* — legislation that unilaterally nullified terms concerning seniority and lay-offs in existing collective agreements and precluded future bargaining over those matters — "rendered the meaningful pursuit of [workplace] goals impossible and effectively nullified the right to associate of its employees" (para. 38).

[75] These passages from *Fraser* and *Health Services* use terms like "impossible" and "effectively nullified" to describe the effect of legislative schemes (including legislative exclusions), not the legal test for infringement of s. 2(*d*). Explaining the reasoning in *Dunmore*, the majority in *Fraser* states that: "The *effect* of a process that renders impossible the meaningful pursuit of collective goals is to substantially interfere with the exercise of the right to free association . . ." (para. 33 (emphasis in original)). In *Fraser*, the majority further explains that there cannot "be any doubt that legislation (or the absence of a legislative framework) that makes achievement" of collective workplace goals "substantially impossible, constitutes a limit on the exercise of freedom of association" (para. 32 (emphasis added)). It is clear that such passages do not adopt "substantial impossibility" as the threshold test for finding an infringement of freedom of association. Rather, the passages demonstrate that the majority in *Fraser* adopts substantial interference as the *legal test* for infringement of freedom of association.

[76] Dissenting in the case at bar, Rothstein J. highlights the fact that the majority reasons in *Fraser* "referred to the test of impossibility — either effective or substantial impossibility — *no less than 12 times*, tracing its origins in the decisions of *Dunmore* and *Health Services* . . . see *Fraser*, at paras. 31-34, 38, 42, 46-48, 62 and 98" (para. 213 (emphasis in original)). In virtually every case (see paras. 31-33, 38, 42, 46-48, 62 and 98), the "impossibility" in question refers explicitly to the *effect* of legislation or the absence of a legislative framework. A test of substantial interference or substantial impairment is also explicitly stated as the standard for finding a s. 2(*d*) infringement at paras. 31, 33, 47-48 and 62. Finally, the majority in *Fraser* reaffirmed the holding in *Health Services* that "[t]he fundamental inquiry is whether the state action would *substantially impair* the ability of 'union members to pursue shared goals in concert' (para. 96 (emphasis added))": para. 64 (emphasis in original); see *Health Services*, at paras. 92 and 96.

[77] This said, we agree that some of the passages in *Fraser* seem to unnecessarily complicate the analysis by referring to both effective impossibility (as the effect of certain state action) and substantial interference or impairment (as the test for infringement of s. 2(*d*)). For the reasons just discussed, however, such references should be understood consistently with the majority reasons in *Fraser*, read in their entirety, and with this Court's precedents in *Dunmore* and *Health Services*. More generally, they must be understood consistently with this Court's purposive and generous approach to s. 2(*d*), as explained above.

[78] We turn now to use of the term "derivative right" in *Fraser*. On the Court of Appeal's interpretation of *Fraser*, the right to a meaningful process of collective bargaining is "derivative" in the sense that it exists only where employees establish that it is effectively impossible for them to act collectively to achieve workplace goals (paras. 110-11 and 135). However, in *Fraser*, the majority explained that "collective bargaining is a derivative right" in the sense that it is "a 'necessary precondition' to the meaningful exercise of the constitutional guarantee of freedom of association": para. 66. The majority cited *Criminal Lawyers' Association* where the Court stated, at para. 30: "Access [to information in government hands] is a derivative right which may arise where it is a necessary precondition of meaningful expression on the functioning of government" (emphasis added). The Court of Appeal understood this to mean that the right to collective bargaining similarly *may arise* as a necessary precondition to meaningful association in the workplace only where some other condition is first met. The Court of Appeal took that condition to be the effective impossibility of acting collectively to achieve workplace goals.

[79] However, the majority in *Fraser* did not qualify the right to collective bargaining in this way. It held that collective bargaining is "a 'necessary precondition' to the meaningful exercise of the constitutional guarantee of freedom of association": para. 66. Similarly, at para. 99, "the right of an employees' association to make representations to the employer and have its views considered in good faith" is described as "a derivative right under s. 2(*d*) of the *Charter*, necessary to meaningful exercise of the right to free association" (emphasis added). To the extent the term "derivative right" suggests that the right to a meaningful process of collective bargaining only applies where the guarantee under s. 2(*d*) is otherwise frustrated, use of that term should be avoided. Furthermore, any suggestion that an aspect of a *Charter* right may somehow be secondary or subservient to other aspects of that right is out of keeping with the purposive approach to s. 2(*d*).

[80] To recap, s. 2(*d*) protects against substantial interference with the right to a meaningful process of collective bargaining. Historically, workers have associated in order "to meet on more equal terms the power and strength of those with whom their interests interact and, perhaps, conflict", namely, their employers: *Alberta Reference*, at p. 366. The guarantee entrenched in s. 2(*d*) of the *Charter* cannot be indifferent to power imbalances in the labour relations context. To sanction such indifference would be to ignore "the historical origins of the concepts enshrined" in s. 2(*d*): *Big M Drug Mart*, at p. 344. It follows that the right to a meaningful process of collective bargaining will not be satisfied by a legislative scheme that strips employees of adequate protections in their interactions with management so as to substantially interfere with their ability to meaningfully engage in collective negotiations.

3.2 Questions

1. The Court in *Mounted Police Association of Ontario* (*MPAO*) holds freedom of association extends protection to*:*

i. **individuals joining with others to form associations (the constitutive approach)** - *in what types of circumstances – whether inside or outside of the labour context – might the ability to join with others to form associations be engaged or infringed?*

ii. **collective activity in support of other constitutional rights (the derivative approach)** - *the Court suggests that section 2(d) would protect associational activity "that specifically relates to other constitutional freedoms". What does this mean? If the underlying activities are already constitutionally protected, what does section 2(d) add in these contexts?*

iii. **collective activity that enables "those who would otherwise be vulnerable and ineffective to meet on more equal terms the power and strength of those with whom their interests interact and, perhaps, conflict"** *– in what contexts, other than labour relations, might this aspect of section 2(d) be meaningfully applied to protect associational activity? For what other kinds of power imbalances in society might section 2(d) provide relief?*

2. *The Court in MPAO notes that "the associational rights protected by s. 2(d) are not merely a bundle of individual rights, but collective rights that inhere in associations". What are the implications of this finding, and why does the Court feel it must say this? Can it be reconciled with the placement of section 2(d) among the other fundamental freedoms, which are typically considered individual in nature? Why or why not?*

4 The right to join a union without interference

4.1 Excerpt from *Dunmore v. Ontario (Attorney General)*, 2001 SCC 94, [2001] 3 SCR 1016, paras 19-30, 35-48

The Ontario legislature passed the *Labour Relations and Employment Statute Law Amendment Act (LRESLAA)* in 1995, which, through s 80, repealed the *Agricultural Labour Relations Act* (*ALRA*). With the *ALRA* repealed, agricultural workers were excluded from any statutory labour relations regime. The claimants challenged that exclusion as infringing their s 2(d) and s 15(1) *Charter* rights. A majority of the Court held the exclusion violated the workers' s 2(d) rights and could not be justified under s 1. The majority declined to consider the s 15(1) claim since the s 2(d) claim was successful. The *LRESLAA* was held unconstitutional to the extent it gave affect to the exclusion of agricultural workers from Ontario's more general *Labour Relations Act,* with the declaration suspended for 18 months to allow the legislature time to respond. Justice L'Heureux-Dubé wrote a concurring opinion in which she agreed that s 2(d) was infringed, but also found an unjustifiable infringement of s 15(1) by holding that occupation status constitutes an "analogous ground" for the purposes of that analysis. Justice Major dissented, finding that there was no s 2(d) violation and that agricultural workers were not an analogous group for the purposes of s 15(1).

Bastarache J. --

(b) *State Responsibility Under Section 2(d)*

19 The content of the freedom to organize having been discussed, the next question that arises is the scope of state responsibility in respect of this freedom. This responsibility is generally characterized as "negative" in nature, meaning that Parliament and the provincial legislatures need only refrain from interfering (either in purpose or effect) with protected associational activity. Conversely, the *Charter* does not oblige the state to take affirmative action to safeguard or facilitate the exercise of fundamental freedoms.

20 However, history has shown, and Canada's legislatures have uniformly recognized, that a posture of government restraint in the area of labour relations will expose most workers not only to a range of unfair labour practices, but potentially to legal liability under common law inhibitions on combinations and restraints of trade. Knowing this would foreclose the effective exercise of the freedom to organize, Ontario has provided a statutory freedom to organize in its *LRA* (s. 5), as well as protections against denial of access to property (s. 13), employer interference with trade union activity (s. 70), discrimination against trade unionists (s. 72), intimidation and coercion (s. 76), alteration of working conditions during the certification process (s. 86), coercion of witnesses (s. 87), and removal of Board notices (s. 88). In this context, it must be asked whether, in order to make the freedom to organize meaningful, s. 2(*d*) of the *Charter* imposes a positive obligation on the state to extend protective legislation to unprotected groups. More broadly, it may be asked whether the distinction between positive and negative state obligations ought to be nuanced in the context of labour relations, in the sense that excluding agricultural workers from a protective regime substantially contributes to the violation of protected freedoms.

21 This precise question was raised in *Delisle*, *supra*, in which the appellant failed to establish that exclusion from a protective regime violated s. 2(*d*). The *Delisle* case involved RCMP officers who were employed by the Canadian government, so it is arguable that the Court's decision was not intended to apply where private employers are involved. However, Justice L'Heureux-Dubé recognized at para. 7 of a concurring judgment that s. 2(*d*) may require protection against unfair labour practices in certain circumstances:

> I recognize that in cases where the employer does not form part of government, there exists no *Charter* protection against employer interference. In such a case, it might be demonstrated that the selective exclusion of a group of workers from statutory unfair labour practice protections has the purpose or effect of encouraging private employers to interfere with employee associations. It may also be that there is a positive obligation on the part of governments to provide legislative protection against unfair labour practices or some form of official recognition under labour legislation, because of the inherent vulnerability of employees to pressure from management, and the private power of employers, when left unchecked, to interfere with the formation and administration of unions. [Emphasis added.]

This dictum was not rejected by the *Delisle* majority, which focused instead on the fact that an interference with associational activity had not been made out on the facts of the case. Indeed, in making this finding, I deferred judgment on the appellant's argument that underinclusion could have "an important chill on freedom of association because it clearly indicates to its members that unlike all other employees, they cannot unionize, and what is more, that they must not get together to defend their interests with respect to labour relations" (see *Delisle*, *supra*, at para. 30). In addition, I left open the possibility that s. 2 of the *Charter* may impose "a positive obligation of protection or inclusion on Parliament or the government . . . in exceptional circumstances which are not at issue in the instant case" (para. 33).

22 Even before *Delisle*, Le Dain J. recognized in the *Alberta Reference*, *supra*, that s. 2(*d*) protected workers' freedom to organize "without penalty or reprisal", making no distinction between workers employed by government or private entities (p. 391). What this dictum recognized, in my view, is that without the necessary protection, the freedom to organize could amount "to no more than the freedom to suffer serious adverse legal and economic consequences" (see H. W. Arthurs et al., *Labour Law and Industrial Relations in Canada* (4th ed. 1993), at para. 431). Perhaps more importantly for this appeal, this dictum implies that total exclusion from a regime protecting the freedom to organize could engage not only s. 15(1) of the *Charter*, but also s. 2(*d*) of the *Charter*. Where a group is denied a statutory benefit accorded to others, as is the case in this appeal, the normal course is to review this denial under s. 15(1) of the *Charter*, not s. 2(*d*) (see *Haig v. Canada*, 1993 CanLII 58 (SCC), [1993] 2 SCR 995; *Native Women's Assn. of Canada v. Canada*, 1994 CanLII 27 (SCC), [1994] 3 SCR 627 ("*NWAC*"); *Delisle*, *supra*). This was properly recognized by Sharpe J. who noted that "by 'dipping its toe in the water', and affording or enhancing the rights of some", the government is not obliged to "go all the way and ensure the enjoyment of rights by all" (p. 207). However, it seems to me that apart from any consideration of a claimant's dignity interest, exclusion from a protective regime may in some contexts amount to an affirmative interference with the effective exercise of a protected freedom. In such a case, it is not so much the differential treatment that is at issue, but the fact that the government is creating conditions which in effect substantially interfere with the exercise of a constitutional right; it has been held in the s. 2(*a*) context, for example, that "protection of one religion and the concomitant non-protection of others imports disparate impact destructive of the religious freedom of the collectivity" (see *Big M Drug Mart*, *supra*, at p. 337). This does not mean that there is a constitutional right to protective legislation *per se*; it means legislation that is underinclusive may, in unique contexts, substantially impact the exercise of a constitutional freedom.

23 This brings me to the central question of this appeal: can excluding agricultural workers from a statutory labour relations regime, without expressly or intentionally prohibiting association, constitute a substantial interference with freedom of association? A preliminary answer to this question may be found in *Haig*, *supra*, where L'Heureux-Dubé J. recognized that "a situation might arise in which, in order to make a fundamental freedom meaningful, a posture of restraint would not be enough, and positive governmental action might be required" (p. 1039). Although such a situation did not arise in that case, at least three observations are in order. First, the benefit sought in *Haig*, namely, participation in a national referendum, was, unlike inclusion in the *LRA*, not designed to safeguard the exercise of a fundamental freedom; thus,

this Court was able to reject the appellants' claim for positive state action on the grounds that it would constitutionalize a very limited statutory regime. Second, there was no evidence in *Haig* that without the benefit of the referendum, the appellant would have been incapable of expressing his views on Quebec secession; thus, the appellants failed to meet the minimum evidentiary burden required of a s. 2(*b*) claim (see *Haig*, at p. 1040). Finally, even had the appellant been unable to express his views on Quebec secession, that surely had nothing to do with his exclusion from the national referendum. Similar points may be made about *NWAC*, *supra*. In that case, this Court again recognized the possibility of positive government action in some cases, but concluded that the respondents' exclusion from a particular series of constitutional discussions did not suppress their overall freedom of expression. As in the *Haig* case, the decisive point was the nature of the state action sought, combined with the absence of an evidentiary foundation for the s. 2 claim. By contrast, the appellants argue in this case that they possess no independent ability to organize, either inside or outside of the relevant statutory context.

24 In my view, the cases of *Haig*, *NWAC* and *Delisle* function to circumscribe, but not to foreclose, the possibility of challenging underinclusion under s. 2 of the *Charter*. One limit imposed by these cases is that claims of underinclusion should be grounded in fundamental *Charter* freedoms rather than in access to a particular statutory regime…

25 Second, the underinclusion cases demonstrate that a proper evidentiary foundation must be provided before creating a positive obligation under the *Charter*. This requirement proved fatal in *Haig*, *NWAC* and *Delisle* because the claimants in all three cases were unable to prove that the fundamental freedom at issue, as opposed to merely their requested statutory entitlement, was impossible to exercise. On the contrary, it was concluded in *Haig* that "the referendum itself, far from stifling expression, provided a particular forum for such expression" (p. 1040). Similarly, it was concluded in *NWAC* that "[e]ven assuming that in certain extreme circumstances, the provision of a platform of expression to one group may infringe the expression of another and thereby require the Government to provide an equal opportunity for the expression of that group, there was no evidence in this case to suggest that the funding or consultation of the four Aboriginal groups infringed the respondents' equal right of freedom of expression" (p. 664). Finally, it was concluded in *Delisle* that "it is difficult to argue that the exclusion of RCMP members from the statutory regime of the *PSSRA* prevents the establishment of an independent employee association because RCMP members have in fact formed such an association in several provinces, including Quebec, where 'C' Division was created by Mr. Delisle himself" (para. 31). In my view, the evidentiary burden in these cases is to demonstrate that exclusion from a statutory regime permits a substantial interference with the exercise of protected s. 2(*d*) activity. Such a burden was implied by Dickson C.J. in the *Alberta Reference*, *supra*, where he stated that positive obligations may be required "where the absence of government intervention may in effect substantially impede the enjoyment of fundamental freedoms" (p. 361 (emphasis added)). It was also implied by this Court in *NWAC*, where Sopinka J. stated that "[i]t will be rare indeed that the provision of a platform or funding to one or several organizations will have the effect of suppressing another's freedom of speech" (p. 657 (emphasis added)). These dicta do not require that the exercise of a fundamental freedom be impossible, but they do require that the claimant seek more than a particular channel for exercising his or her fundamental freedoms.

26 Assuming an evidentiary foundation can be provided, a third concern is whether the state can truly be held accountable for any inability to exercise a fundamental freedom. In this case, it is said that the inability to form an association is the result of private action and that mandating inclusion in a statutory regime would run counter to this Court's decision in *Dolphin Delivery*, *supra*. However, it should be noted that this Court's understanding of "state action" has matured since the *Dolphin Delivery* case and may mature further in light of evolving *Charter* values. For example, this Court has repeatedly held that the contribution of private actors to a violation of fundamental freedoms does not immunize the state from *Charter* review; rather, such contributions should be considered part of the factual context in which legislation is reviewed (see *Lavigne*, *per* La Forest J., at p. 309; see, similarly, *R. v. Edwards Books and Art Ltd.*, 1986 CanLII 12 (SCC), [1986] 2 SCR 713, *per* Dickson C.J., at p. 766). Moreover, this Court has repeatedly held in the s. 15(1) context that the *Charter* may oblige the state to extend underinclusive statutes to the extent underinclusion licenses private actors to violate basic rights and freedoms (see *Vriend v. Alberta*, 1998 CanLII 816 (SCC), [1998] 1 SCR 493). Finally, there has been some suggestion that the *Charter* should apply to legislation which "permits" private actors to interfere with protected s. 2 activity, as in some contexts mere permission may function to encourage or support the act which is called into question (see *Lavigne*, *per* Wilson J., at p. 248). If we apply these general principles to s. 2(*d*), it is not a quantum leap to suggest that a failure to include someone in a protective regime may affirmatively permit restraints on the activity the regime is designed to protect. The rationale behind this is that underinclusive state action falls into suspicion not simply to the extent it discriminates against an unprotected class, but to the extent it substantially orchestrates, encourages or sustains the violation of fundamental freedoms.

27 The notion that underinclusion can infringe freedom of association is not only implied by Canadian *Charter* jurisprudence, but is also consistent with international human rights law. Article 2 of *Convention (No. 87) concerning Freedom of Association and Protection of the Right to Organize*, 67 U.N.T.S. 17, provides that "[w]orkers and employers, without distinction whatsoever, shall have the right to establish and . . . to join organisations of their own choosing" (emphasis added), and that only members of the armed forces and the police may be excluded (Article 9). In addition, Article 10 of Convention No. 87 defines an "organisation" as "any organisation of workers or of employers for furthering and defending the interests of workers or of employers" (emphasis added). Canada ratified Convention No. 87 in 1972. The Convention's broadly worded provisions confirm precisely what I have discussed above, which is that discriminatory treatment implicates not only an excluded group's dignity interest, but also its basic freedom of association. This is further confirmed by the fact that Article 2 operates not only on the basis of sex, race, nationality and other traditional grounds of discrimination, but on the basis of any distinction, including occupational status (see L. Swepston, "Human rights law and freedom of association: Development through ILO supervision" (1998), 137 *Int'l Lab. Rev.* 169, at pp. 179-180). Nowhere is this clearer than in Article 1 of *Convention (No. 11) concerning the Rights of Association and Combination of Agricultural Workers*, 38 U.N.T.S. 153, which obliges ratifying member states to secure to "all those engaged in agriculture" the same rights of association as to industrial workers; the convention makes no distinction as to the type of agricultural work performed. Although provincial jurisdiction has prevented Canada from ratifying Convention No. 11, together these conventions provide a normative foundation for prohibiting any form of discrimination in the protection of trade union freedoms (see J. Hodges-Aeberhard, "The right to organise in Article 2 of Convention No. 87: What is meant by workers 'without distinction whatsoever'?" (1989), 128 *Int'l Lab. Rev.* 177). This foundation is fortified by *Convention (No. 141) concerning Organisations of Rural Workers and Their Role in Economic and Social Development* (*I.L.O. Official Bulletin*, vol. LVIII, 1975, Series A, No. 1, p. 28) which extends, under Article 2, the freedom to organize to "any person engaged in agriculture, handicrafts or a related occupation in a rural area, whether as a wage earner or, . . . as a tenant, sharecropper or small owner-occupier".

28 In sum, while it is generally desirable to confine claims of underinclusion to s. 15(1), it will not be appropriate to do so where the underinclusion results in the effective denial of a fundamental freedom such as the right of association itself. This is not to say that such claims will be common: they are constrained by both s. 32 of the *Charter*, which demands a minimum of state action before the *Charter* can be invoked, as well as by the factors discussed above. However, a claim for inclusion should not, in my view, automatically fail a s. 2(*d*) analysis: depending on the circumstances, freedom of association may, for example, prohibit the selective exclusion of a group from whatever protections are necessary to form and maintain an association, even though there is no constitutional right to such statutory protection *per se*. In this sense, the burden imposed by s. 2(*d*) of the *Charter* differs from that imposed by s. 15(1): while the latter focuses on the effects of underinclusion on human dignity (*Law v. Canada (Minister of Employment and Immigration)*, 1999 CanLII 675 (SCC), [1999] 1 SCR 497), the former focuses on the effects of underinclusion on the ability to exercise a fundamental freedom. This distinction is contemplated by the wording of the *Charter* itself and is supported by subsequent jurisprudence of this Court (see, e.g., *Delisle*, *supra*, at para. 25).

29 Before concluding on this point, I reiterate that the above doctrine does not, on its own, oblige the state to act where it has not already legislated in respect of a certain area. One must always guard against reviewing legislative silence, particularly where no legislation has been enacted in the first place. By the same token, it must be remembered why the *Charter* applies to legislation that is underinclusive. Once the state has chosen to regulate a private relationship such as that between employer and employee, I believe it is unduly formalistic to consign that relationship to a "private sphere" that is impervious to *Charter* review. As Dean P. W. Hogg has stated, "[t]he effect of the governmental action restriction is that there is a private realm in which people are not obliged to subscribe to 'state' values, and into which constitutional norms do not intrude. The boundaries of that realm are marked, not by an *a priori* definition of what is 'private', but by the absence of statutory or other governmental intervention" (see *Constitutional Law of Canada* (loose-leaf ed.), at p. 34-27). I am not prepared to say that the relationship between farmers and their employees falls within that boundary. If, by investigating the effects of a statute that regulates this sphere, this Court is imposing "positive" obligations on the state, that is only because such imposition is justified in the circumstances.

(c) *Summary of Discussion on Section 2(d)*

30 In my view, the activities for which the appellants seek protection fall squarely within the freedom to organize, that is, the freedom to collectively embody the interests of individual workers. Insofar as the appellants seek to establish and maintain an association of employees, there can be no question that their claim falls within the protected ambit of s. 2(*d*) of the *Charter*. Moreover, the effective exercise of these freedoms may require not only the exercise in association of the constitutional rights and freedoms (such as freedom of assembly) and lawful rights of individuals, but the exercise of certain collective activities, such as making majority representations to one's employer. These activities are guaranteed by the purpose of s. 2(*d*), which is to promote the realization of individual potential through relations with others, and by international labour jurisprudence, which recognizes the inevitably collective nature of the freedom to organize. Finally, while inclusion in legislation designed to protect such freedoms will normally be the province of s. 15(1) of the *Charter*, claims for inclusion may, in rare cases, be cognizable under the fundamental freedoms. With this in mind, I turn to whether s. 3(*b*) of the *LRA* interferes with the appellants' protected freedoms, either in purpose or effect.

(…)

35 The history of labour relations in Canada illustrates the profound connection between legislative protection and the freedom to organize. It may be suggested that legislative protection is so tightly woven into the fabric of labour relations that, while there is no constitutional right to protective legislation *per se*, the selective exclusion of a group from such legislation may substantially impact the exercise of a fundamental freedom. To illustrate this point, I find it necessary to make three observations about the appellants' exclusion from the *LRA*. First, the *LRA* is designed to safeguard the exercise of a fundamental freedom, rather than to provide a limited statutory entitlement to certain classes of citizens. Second, the appellants in this case are substantially incapable of exercising their fundamental freedom to organize without the protective regime, as indicated by the record filed before this Court. Third, the appellants' exclusion from the *LRA* functions not simply to permit private interference with their fundamental freedoms, but to substantially reinforce such interferences. Central to all of these points, in my view, is that the freedom to organize constitutes a unique swatch in Canada's constitutional fabric, as difficult to exercise as it is fundamental, into which legislative protection is historically woven.

(i) The *LRA* is Designed to Safeguard the Exercise of the Fundamental Freedom to Associate

36 In assessing the appellant's claim for the repeal of s. 3(*b*) of the *LRA*, it is crucial to examine the essential ambition of the *LRA*. As numerous scholars have pointed out, the *LRA* does not simply enhance, but instantiates, the freedom to organize. The Act provides the only statutory vehicle by which employees in Ontario can associate to defend their interests and, moreover, recognizes that such association is, in many cases, otherwise impossible. This recognition is evident not only from the statute's protections against unfair labour practices, but from the express "right to organize" it inscribes in s. 5. At the same time, the activities for which the appellants seek protection antecede, at least notionally, the *LRA*'s enactment; as this Court held in *Delisle*, *supra*, "[t]he ability to form an independent association and to carry on [its] protected activities . . . exists independently of any statutory regime", even though the unprotected aspects of collective bargaining and the right to strike are creatures of statute (para. 33). What this means is that, while the inevitable effect of allowing this appeal may be to extend a statutory regime to agricultural workers, depending on the legislative response to this decision, the appellants are not seeking a constitutional "right" to inclusion in the *LRA*.

37 The freedom to organize lies at the core of the *Charter*'s protection of freedom of association. So central is this freedom to s. 2(*d*) that, during the legislative hearings preceding the *Charter*'s enactment, an express right to unionize was opposed on the grounds "that that is already covered in the freedom of association that is provided already in . . . the *Charter*" (emphasis added) (see *Minutes of Proceedings and Evidence of the Special Joint Committee of the Senate and of the House of Commons on the Constitution of Canada*, Issue No. 43, January 22, 1981, at pp. 69-70 (Kaplan)). As recently as *Delisle*, *supra*, L'Heureux-Dubé J. noted that "the right to freedom of association must take into account the nature and importance of labour associations as institutions that work for the betterment of working conditions and the protection of the dignity and collective interests of workers in a fundamental aspect of their lives: employment" (para. 6 (emphasis in original)). These remarks echo those of Dickson C.J., who noted in the *Alberta Reference*, *supra*, that "[w]ork is one of the most fundamental aspects in a person's life, providing the individual with a means of financial support and, as importantly, a contributory role in society" (p. 368) (see similarly, *McKinney v. University of Guelph*, 1990 CanLII 60 (SCC), [1990] 3 SCR 229, *per* La Forest J., at p. 300; *Machtinger v. HOJ Industries Ltd.*, 1992 CanLII 102 (SCC), [1992] 1 SCR 986, at p. 1002; *Wallace v. United Grain Growers Ltd.*, 1997 CanLII 332 (SCC), [1997] 3 SCR 701, *per* Iacobucci J., at para. 95). Moreover, the importance of trade union freedoms is widely recognized in international covenants, as is the freedom to work generally. In my view, judicial recognition of these freedoms strengthens the case for their positive protection. It suggests that trade union freedoms lie at the core of the *Charter*, and in turn that legislation instantiating those freedoms ought not be selectively withheld where it is most needed.

38 By protecting the freedom to organize, s. 2(*d*) of the *Charter* recognizes the dynamic and evolving role of the trade union in Canadian society. In addition to permitting the collective expression of employee interests, trade unions contribute to political debate. At the level of national policy, unions advocate on behalf of disadvantaged groups and present views on fair industrial policy. These functions, when viewed globally, affect all levels of society and constitute "an important subsystem in a democratic market-economy system" (see K. Sugeno, "Unions as social institutions in democratic market economies" (1994), 133 *Int'l Lab. Rev.* 511, at p. 519). For these reasons, the notion that minimum legislative protection cannot be extended to agricultural workers without extending full collective bargaining rights is misguided. Equally misguided is the notion that inherent difficulties in the formation of trade unions, or the fact that unions are in some cases experiencing a decline in membership, diminishes their social and political significance. On the contrary, unions remain core voluntary associations based on the principle of freedom of association.

(ii) Without the Protection of the *LRA*, Agricultural Workers Are Substantially Incapable of Exercising the Freedom to Associate

39 The fact that a regime aims to safeguard a fundamental freedom does not, of course, mean that exclusion from that regime automatically gives rise to a *Charter* violation. As I discussed in *Delisle*, *supra*, a group that proves capable of associating despite its exclusion from a protective regime will be unable to meet the evidentiary burden required of a *Charter* claim. In such a case, inclusion in a statutory

regime cannot be said to safeguard, but rather to enhance, the exercise of a fundamental freedom. In this case, by contrast, the appellants contend that total exclusion from the *LRA* creates a situation whereby they are substantially incapable of exercising their constitutional right to associate. Needless to say, this claim must be assessed against the factual record provided by both the appellants and the respondents.

40 As a preliminary matter, the appellants state that the repeal of the *ALRA* by the *LRESLAA* caused the immediate demise of the first agricultural workers' union in Ontario. While this is an alluring argument, in my view it obscures the true substance of the appellants' claim. As discussed above, what is ultimately impugned in this case is not simply the repeal of the *ALRA*, but the combined effect of the *LRESLAA* and the *LRA*. This implicates the decades-long exclusion of agricultural workers from the labour relations regime, from the first enactment of the *Collective Bargaining Act, 1943*, until the repeal of the *ALRA* in 1995. The *LRESLAA* occupies only a small space in this history; it ought not prove decisive in this appeal.

41 Nonetheless, the appellants argue that notwithstanding the *ALRA*, they have no realistic chance of associating without the protection of the *LRA*. This is mainly because the *LRA* protects workers from common law inhibitions on organizing activity, as well as from employer practices designed to obstruct the formation of unions (see Arthurs, *supra*, at para. 431; International Labour Organization, Committee on Freedom of Association, Report No. 308, Case No. 1900, "Complaint against the Government of Canada (Ontario), presented by the Canadian Labour Congress (CLC)", *I.L.O. Official Bulletin*, vol. LXXX, 1997, Series B, No. 3, at paras. 145-46 and 187). Perhaps more broadly, the *LRA* is described by the intervener Canadian Labour Congress as having "regulated, structured and channelled" the method through which Canadian workers are able to organize, to the point where organizing a workers' association is "virtually synonymous" with unionizing under the legislative scheme. As just noted, the mere fact of exclusion from protective legislation is not conclusive evidence of a *Charter* violation; as I observed in *Delisle*, *supra*, RCMP officers had the strength to form employee associations in several provinces despite their exclusion from the *PSSRA* (para. 31). That being said, it is possible to draw a distinction between groups who are "strong enough to look after [their] interests without collective bargaining legislation" and those "who have no recourse to protect their interests aside from the right to quit" (see *Canadian Industrial Relations: The Report of the Task Force on Labour Relations* (1968), at paras. 253-54). As Canada's leading Task Force on Labour Relations recognized as early as 1968, agricultural workers fall into the latter category (para. 254). Not only have agricultural workers proved unable to form employee associations in provinces which deny them protection but, unlike the RCMP officers in *Delisle*, they argue that their relative status and lack of statutory protection all but guarantee this result. Distinguishing features of agricultural workers are their political impotence, their lack of resources to associate without state protection and their vulnerability to reprisal by their employers; as noted by Sharpe J., agricultural workers are "poorly paid, face difficult working conditions, have low levels of skill and education, low status and limited employment mobility" (p. 216). Moreover, unlike RCMP officers, agricultural workers are not employed by the government and therefore cannot access the *Charter* directly to suppress an unfair labour practice (*Delisle*, at para. 32). It is no wonder, therefore, according to the appellants, that agricultural workers have failed to associate in any meaningful way in Ontario, while RCMP officers have successfully created independent employee associations in several provinces across Canada (*Delisle*, at para. 31).

42 The validity of this claim will depend in part on how strict a definition of the word "unionize" this Court adopts. The respondent Fleming Chicks and the intervener Labour Issues Coordinating Committee both adopt a very strict definition, arguing that UFCW's involvement in this litigation proves that the *LRA* has not functioned to stifle union activity. This claim is disputed by the appellants' chief expert, Professor Judy Fudge, who notes that legislative protection is a necessary precondition for collective bargaining under Canadian labour relations legislation. As stated earlier in these reasons, it is only the right to associate that is at issue here, not the right to collective bargaining. Nevertheless, to suggest that s. 2(*d*) of the *Charter* is respected where an association is reduced to claiming a right to unionize would, in my view, make a mockery of freedom of association. The record shows that, but for the brief period covered by the *ALRA*, there has never been an agricultural workers' union in Ontario. Agricultural workers have suffered repeated attacks on their efforts to unionize. Conversely, in those provinces where labour relations rights have been extended to agricultural workers, union density is higher than in Ontario (see Statistics Canada, *Annual Report of the Minister of Industry, Science and Technology under the Corporations and Labour Unions Returns Act, Part II, Labour Unions* (1992), at pp. 38-41). The respondents do not contest this evidence, nor do they deny that legislative protection is absolutely crucial if agricultural workers wish to unionize. Indeed, to suggest otherwise would contradict a widespread consensus among Parliament and the provincial legislatures that without certain minimum protections, the somewhat limited freedom to organize itself would be a hollow freedom. For these reasons, I readily conclude that the evidentiary burden has been met in this case: the appellants have brought this litigation because there is no possibility for association as such without minimum statutory protection.

(iii) The Exclusion of Agricultural Workers from the *LRA* Substantially Reinforces the Inherent Difficulty in Exercising the Freedom to Associate

43 Their freedom to organize having been substantially impeded by exclusion from protective legislation, it is still incumbent on the appellants to link this impediment to state, not just private action (see *Dolphin Delivery*, *supra*). On this point, the respondents argue that since agricultural workers are isolated, seasonal and relatively under-educated, this, along with the unfair labour practices of their employers, is what explains the difficulty in creating associations rather than the underinclusiveness of the legislation. On the other hand, the appellants argue that the above conditions are reinforced by legislation which fails to provide minimum protection of their freedom to organize and further isolates agricultural workers by excluding them from the general regime of labour relations.

44 In my view, the appellants' argument must prevail. What the legislature has done by reviving the *LRA* is not simply allow private circumstances to subsist; it has reinforced those circumstances by excluding agricultural workers from the only available channel for associational activity (see *Vriend*, *supra*, at paras. 99-103). The most poignant chapter in this legislative history, but by no means the decisive one, is the *LRESLAA*. Through this enactment, the Ontario government not only renewed its commitment to preventing agricultural unions from collective bargaining, but prohibited even the voluntary recognition of agricultural associations, whatever their attributes might be. At the same time, it must be presumed that the legislature understood the history of labour relations and remained of the view that a protective regime was essential to the exercise of freedom of association in this area.

45 The most palpable effect of the *LRESLAA* and the *LRA* is, in my view, to place a chilling effect on non-statutory union activity. By extending statutory protection to just about every class of worker in Ontario, the legislature has essentially discredited the organizing efforts of agricultural workers. This is especially true given the relative status of agricultural workers in Canadian society. In *Delisle*, *supra*, I linked RCMP officers' ability to associate to their relative status, comparing them with the armed forces, senior executives in the public service and judges. The thrust of this argument was that if the *PSSRA* sought to discourage RCMP officers from associating, it could not do so in light of their relative status, their financial resources and their access to constitutional protection. By contrast, it is hard to imagine a more discouraging legislative provision than s. 3(*b*) of the *LRA*. The evidence is that the ability of agricultural workers to associate is only as great as their access to legal protection, and such protection exists neither in statutory nor constitutional form. Moreover, agricultural workers already possess a limited sense of entitlement as a result of their exclusion from other protective legislation related to employment standards and occupational health and safety (see *Employment Standards Act Regulations*, R.R.O. 1990, Reg. 325, s. 3(1)(*i*), excluding most agricultural workers from Parts IV-VIII of the *Employment Standards Act*, R.S.O. 1990, c. E.14; *Occupational Health and Safety Act*, R.S.O. 1990, c. O.1, s. 3(2)). In this context, the effect of s. 3(*b*) of the *LRA* is not simply to perpetuate an existing inability to organize, but to exert the precise chilling effect I declined to recognize in *Delisle*.

> 46 Conversely, the didactic effects of labour relations legislation on employers must not be underestimated. It is widely accepted that labour relations laws function not only to provide a forum for airing specific grievances, but for fostering dialogue in an otherwise adversarial workplace. As P. Weiler has written, unionization introduces a form of political democracy into the workplace, subjecting employer and employee alike to the "rule of law" (see *Reconcilable Differences: New Directions in Canadian Labour Law* (1980), at pp. 31-32). In this context, the wholesale exclusion of agricultural workers from a labour relations regime can only be viewed as a stimulus to interfere with organizing activity. The exclusion suggests that workplace democracy has no place in the agricultural sector and, moreover, that agricultural workers' efforts to associate are illegitimate. As surely as *LRA* protection would foster the "rule of law" in a unionized workplace, exclusion from that protection privileges the will of management over that of the worker. Again, a contrast to *Delisle*, *supra*, is apposite: a government employer is less likely than a private employer to take exclusion from protective legislation as a green light to commit unfair labour practices, as its employees have direct recourse to the *Charter*.
>
> 47 For these reasons, I believe it is inappropriate for the Ontario Legislature to distance itself from the effects of the *LRA* and the *LRESLAA*. The enactment of the *Collective Bargaining Act, 1943* reflected the legislature's awareness of employer unfair labour practices and its concomitant recognition that legislation was necessary to enable workers' freedom of association. The *Collective Bargaining Act, 1943* was enacted against a background of staunch resistance to the labour movement; in large part, it was intended to prevent discrimination against union members. In this context, the exclusion of an entire category of workers from the *LRA* can only be viewed as a foreseeable infringement of their *Charter* rights. It was obviously open to the respondents to argue that the legislature has since altered its view of the need for protective legislation and that the *LRA* is not even required for the majority of workers today. However, by reviving the exclusion in 1995 and providing time-limited protection against penalty and reprisal, the legislature clearly acknowledged otherwise (see *LRESLAA*, s. 81(1)). In essence, after recognizing agricultural workers' need for protection, the legislature made things more difficult for them by excluding them from the protective regime put in place in 1943. For these reasons, the respondents cannot claim that circumstances have changed substantially since the enactment of the *Collective Bargaining Act, 1943*; rather, it can only justify the exclusion of agricultural workers on the basis of collateral concerns such as the protection of the family farm and the need to maintain a competitive agricultural sector – issues which, needless to say, must be considered under s. 1 of the *Charter*.
>
> 48 In sum, I believe it is reasonable to conclude that the exclusion of agricultural workers from the *LRA* substantially interferes with their fundamental freedom to organize. The inherent difficulties of organizing farm workers, combined with the threats of economic reprisal from employers, form only part of the reason why association is all but impossible in the agricultural sector in Ontario. Equally important is the message sent by s. 3(*b*) of the *LRA*, which delegitimizes associational activity and thereby ensures its ultimate failure. Given these known and foreseeable effects of s. 3(*b*), I conclude that the provision infringes the freedom to organize and thus violates s. 2(*d*) of the *Charter*.

4.2 Questions

1. In Dunmore, the Court found that the exclusion of farm workers from unfair labour practice protections available to employees in most other industries constituted a breach of section 2(d). What factors led the Court to conclude that the government had to extend similar protections to farm workers in this context?
2. The Court in Dunmore suggests that a government would not have had to extend such protections to the claimants in Dunmore if they had not already chosen to extend such protections to other workers. How can this approach be justified under a fundamental freedom? If the statutory protection is necessary to protect the fundamental freedom, would that not be the case regardless of whether the same protection was already offered to others? How does the Court address this argument?
3. Is the Court's recognition of a "positive" dimension to section 2(d) unique to that section, or generalizable to other Charter rights and freedoms?
4. Some have suggested that cases like Dunmore – where claimants are seeking access to "underinclusive" protective legislation equal to that afforded to other groups of workers – are really 'equality' cases, masquerading as freedom of association cases (see e.g. Brian Langille, "*Why are Canadian Judges Drafting Labour Codes - And Constitutionalizing the Wagner Act Model*" (2009) 15:1 Canadian Lab & Emp LJ 101). Is looking through an 'equality' lens a more viable way to address the type of problem in Dunmore? Why or why not? (see e.g. Fay Faraday, "Envisioning Equality: Analogous Grounds and Farm Workers' Experience of Discrimination," in Fay Faraday, Judy Fudge & Eric Tucker, eds, *Constitutional Labour Rights in Canada: Farm Workers and the Fraser Case* (Toronto: Irwin Press, 2012).)
5. Looking ahead, how does the reasoning in Dunmore support – or detract form – constitutional protection for other important labour rights afforded by modern collective bargaining association, such as the right to collective bargaining, and the right to strike? Is it possible to accept the reasoning in Dunmore without extending it to other important associational activities in the labour context? Is the right to join a union without interference somehow more 'essential' than other labour rights, and if so, in what way? In this regard, note how Dunmore is relied upon by the Court in subsequent cases.

5 The right to a meaningful process of collective bargaining

5.1 Excerpt from *Health Services and Support - Facilities Subsector Bargaining Assn. v. British Columbia*, 2007 SCC 27, [2007] 2 SCR 391, paras 19-20, 22, 31-36, 40-41, 69-70, 80-81, 87-109

The *Health and Social Services Delivery Improvement Act* – which was quickly legislated in response to challenges facing the BC health care system – gave health care employers increased flexibility to manage labour relations, including in ways that would have violated existing collective agreements. The *Act* also precluded meaningful collective bargaining on several issues. Unions representing the health care employees challenged the Act for violating their s 2(d) and s 15 *Charter* rights. At trial and on appeal, the courts held that there were no *Charter* violations. On appeal to the Supreme Court, a majority held that s 2(d) includes a right to collective bargaining, and that various provisions in Part 2 of the Act infringed that right and could not be upheld under section 1 because it effectively negated the outcomes of past collective bargaining agreements and pre-emptively undermining future collective bargaining. The majority held that the *Act* did not violate s 15 of the *Charter*. Justice Deschamps agreed with the majority that collective bargaining is within the scope of s 2(d), but dissented in finding that most of the impugned provisions (with the exception of one section) could be justified under s 1 of the *Charter*.

> The Chief Justice and Lebel J. –
>
> 19 At issue in the present appeal is whether the guarantee of freedom of association in s. 2(*d*) of the *Charter* protects collective bargaining rights. We conclude that s. 2(*d*) of the *Charter* protects the capacity of members of labour unions to engage, in association, in collective bargaining on fundamental workplace issues. This protection does not cover all aspects of "collective bargaining", as that term is understood in the statutory labour relations regimes that are in place across the country. Nor does it ensure a particular outcome in a labour dispute, or guarantee access to any particular statutory regime. What is protected is simply the right of employees to associate in a process of

collective action to achieve workplace goals. If the government substantially interferes with that right, it violates s. 2(*d*) of the *Charter*: *Dunmore*. We note that the present case does not concern the right to strike, which was considered in earlier litigation on the scope of the guarantee of freedom of association.

20 Our conclusion that s. 2(*d*) of the *Charter* protects a process of collective bargaining rests on four propositions. First, a review of the s. 2(*d*) jurisprudence of this Court reveals that the reasons evoked in the past for holding that the guarantee of freedom of association does not extend to collective bargaining can no longer stand. Second, an interpretation of s. 2(*d*) that precludes collective bargaining from its ambit is inconsistent with Canada's historic recognition of the importance of collective bargaining to freedom of association. Third, collective bargaining is an integral component of freedom of association in international law, which may inform the interpretation of *Charter* guarantees. Finally, interpreting s. 2(*d*) as including a right to collective bargaining is consistent with, and indeed, promotes, other *Charter* rights, freedoms and values.

(…)

(1) Reasons for Excluding Collective Bargaining from Section 2(d) in the Past Require Reconsideration

22 In earlier decisions, the majority view in the Supreme Court of Canada was that the guarantee of freedom of association did not extend to collective bargaining. *Dunmore*, opened the door to reconsideration of that view. We conclude that the grounds advanced in the earlier decisions for the exclusion of collective bargaining from the *Charter*'s protection of freedom of association do not withstand principled scrutiny and should be rejected.

(…)

31 We conclude that the reasons provided by the majorities in the *Alberta Reference and PIPSC* should not bar reconsideration of the question of whether s. 2(*d*) applies to collective bargaining. This is manifestly the case since this Court's decision in *Dunmore*, which struck down a statute that effectively prohibited farm workers from engaging in collective bargaining by denying them access to the Province's labour relations regime, as violating of s. 2(*d*) of the *Charter*. *Dunmore* clarified three developing aspects of the law: what constitutes interference with the "associational aspect" of an activity; the need for a contextual approach to freedom of association; and the recognition that s. 2(*d*) can impose positive obligations on government.

32 *Dunmore* accepted the conclusion of the majority in *Canadian Egg Marketing Agency v. Richardson*, 1997 CanLII 17020 (SCC), [1998] 3 SCR 157, that only the "associational aspect" of an activity and not the activity itself are protected under s. 2(*d*). It clarified, however, that equal legislative treatment of individuals and groups does not mean that the "associational aspect" of an activity has not been interfered with. A prohibition on an individual may not raise associational concerns, while the same prohibition on the collective may do so…

33 Second, *Dunmore* correctly advocated a more contextual analysis than had hitherto prevailed. Showing that a legislature has targeted associational conduct because of its "concerted or associational nature" requires a more contextual assessment than found in the early s. 2(*d*) cases. …

34 Finally, *Dunmore* recognized that, in certain circumstances, s. 2(*d*) may place positive obligations on governments to extend legislation to particular groups. Underinclusive legislation may, "in unique contexts, substantially impact the exercise of a constitutional freedom" (para. 22) …

36 In summary, a review of the jurisprudence leads to the conclusion that the holdings in the *Alberta Reference* and *PIPSC* excluding collective bargaining from the scope of s. 2(*d*) can no longer stand. None of the reasons provided by the majorities in those cases survive scrutiny, and the rationale for excluding inherently collective activities from s. 2(*d*)'s protection has been overtaken by *Dunmore*.

(…)

(a) *Canadian Labour History Reveals the Fundamental Nature of Collective Bargaining*

40 Association for purposes of collective bargaining has long been recognized as a fundamental Canadian right which predated the *Charter*. This suggests that the framers of the *Charter* intended to include it in the protection of freedom of association found in s. 2(*d*) of the *Charter*.

41 The respondent argues that the right to collective bargaining is of recent origin and is merely a creature of statute. This assertion may be true if collective bargaining is equated solely to the framework of rights of representation and collective bargaining now recognized under federal and provincial labour codes. However, the origin of a right to collective bargaining in the sense given to it in the present case (i.e., a procedural right to bargain collectively on conditions of employment), precedes the adoption of the present system of labour relations in the 1940s. The history of collective bargaining in Canada reveals that long before the present statutory labour regimes were put in place, collective bargaining was recognized as a fundamental aspect of Canadian society. This is the context against which the scope of the s. 2(*d*) must be considered.

(…)

(b) International Law Protects Collective Bargaining as Part of Freedom of Association

69 Under Canada's federal system of government, the incorporation of international agreements into domestic law is properly the role of the federal Parliament or the provincial legislatures. However, Canada's international obligations can assist courts charged with interpreting the *Charter*'s guarantees (see *Suresh v. Canada (Minister of Citizenship and Immigration)*, [2002] 1 SCR 3, 2002 SCC 1, at para. 46). Applying this interpretive tool here supports recognizing a process of collective bargaining as part of the *Charter*'s guarantee of freedom of association.

70 Canada's adherence to international documents recognizing a right to collective bargaining supports recognition of the right in s. 2(*d*) of the *Charter*. As Dickson C.J. observed in the *Alberta Reference*, at p. 349, the *Charter* should be presumed to provide at least as great a level of protection as is found in the international human rights documents that Canada has ratified.

(…)

(c) Charter Values Support Protecting a Process of Collective Bargaining Under Section 2(d)

80 Protection for a process of collective bargaining within s. 2(*d*) is consistent with the *Charter*'s underlying values. The *Charter*, including s. 2(*d*) itself, should be interpreted in a way that maintains its underlying values and its internal coherence. As Lamer J. stated in *Dubois v. The Queen*, 1985 CanLII 10 (SCC), [1985] 2 SCR 350, at p. 365:

> Our constitutional *Charter* must be construed as a system where "Every component contributes to the meaning as a whole, and the whole gives meaning to its parts" (P. A. Côté writing about statutory interpretation in *The Interpretation of Legislation in Canada* (1984), at p. 236). The courts must interpret each section of the *Charter* in relation to the others (see, for example, *R. v. Carson* (1983), 1983 CanLII 1812 (ON

CA), 20 M.V.R. 54 (Ont. C.A.); *R. v. Konechny*, 1983 CanLII 282 (BC CA), [1984] 2 W.W.R. 481 (B.C.C.A.); *Reference re Education Act of Ontario and Minority Language Education Rights* (1984), 1984 CanLII 1832 (ON CA), 47 O.R. (2d) 1 (C.A.); *R. v. Antoine*, *supra*).

(See also *Big M Drug Mart*, at p. 344; and *Nova Scotia (Attorney General) v. Walsh*, [2002] 4 SCR 325, 2002 SCC 83, at para. 63.)

81 Human dignity, equality, liberty, respect for the autonomy of the person and the enhancement of democracy are among the values that underly the *Charter*: *R. v. Zundel*, 1992 CanLII 75 (SCC), [1992] 2 SCR 731; *Corbiere v. Canada (Minister of Indian and Northern Affairs)*, 1999 CanLII 687 (SCC), [1999] 2 SCR 203, at para. 100; *R. v. Oakes*, 1986 CanLII 46 (SCC), [1986] 1 SCR 103. All of these values are complemented and indeed, promoted, by the protection of collective bargaining in s. 2(*d*) of the *Charter*.

(…)

(3) Section 2(*d*) of the *Charter* and the Right to Collective Bargaining

87. The preceding discussion leads to the conclusion that s. 2(*d*) should be understood as protecting the right of employees to associate for the purpose of advancing workplace goals through a process of collective bargaining. The next question is what this right entails for employees, for government employers subject to the *Charter* under s. 32, and for Parliament and provincial legislatures which adopt labour laws.

88 Before going further, it may be useful to clarify who the s. 2(*d*) protection of collective bargaining affects, and how. The *Charter* applies only to state action. One form of state action is the passage of legislation. In this case, the legislature of British Columbia has passed legislation applying to relations between health care sector employers and the unions accredited to those employers. That legislation must conform to s. 2(*d*) of the *Charter*, and is void under s. 52 of the *Constitution Act, 1982* if it does not (in the absence of justification under s. 1 of the *Charter*). A second form of state action is the situation where the government is an employer. While a private employer is not bound by s. 2(*d*), the government as employer must abide by the *Charter*, under s. 32, which provides: "This Charter applies ... (*b*) to the legislature and government of each province in respect of all matters within the authority of the legislature of each province." This case is concerned with an attack on government legislation; there is no allegation that the government of British Columbia, *qua* employer, violated s. 2(*d*) of the *Charter*.

89 The scope of the right to bargain collectively ought to be defined bearing in mind the pronouncements of *Dunmore*, which stressed that s. 2(*d*) does not apply solely to individual action carried out in common, but also to associational activities themselves. The scope of the right properly reflects the history of collective bargaining and the international covenants entered into by Canada. Based on the principles developed in *Dunmore* and in this historical and international perspective, the constitutional right to collective bargaining concerns the protection of the ability of workers to engage in associational activities, and their capacity to act in common to reach shared goals related to workplace issues and terms of employment. In brief, the protected activity might be described as employees banding together to achieve particular work-related objectives. Section 2(*d*) does not guarantee the particular objectives sought through this associational activity. However, it guarantees the process through which those goals are pursued. It means that employees have the right to unite, to present demands to health sector employers collectively and to engage in discussions in an attempt to achieve workplace-related goals. Section 2(*d*) imposes corresponding duties on government employers to agree to meet and discuss with them. It also puts constraints on the exercise of legislative powers in respect of the right to collective bargaining, which we shall discuss below.

90 Section 2(*d*) of the *Charter* does not protect all aspects of the associational activity of collective bargaining. It protects only against "substantial interference" with associational activity, in accordance with a test crafted in *Dunmore* by Bastarache J., which asked whether "excluding agricultural workers from a statutory labour relations regime, without expressly or intentionally prohibiting association, [can] constitute a substantial interference with freedom of association" (para. 23). Or to put it another way, does the state action target or affect the associational activity, "thereby discouraging the collective pursuit of common goals"? (*Dunmore*, at para. 16) Nevertheless, intent to interfere with the associational right of collective bargaining is not essential to establish breach of s. 2(*d*) of the *Charter*. It is enough if the *effect* of the state law or action is to *substantially interfere* with the activity of collective bargaining, thereby discouraging the collective pursuit of common goals. It follows that the state must not substantially interfere with the ability of a union to exert meaningful influence over working conditions through a process of collective bargaining conducted in accordance with the duty to bargain in good faith. Thus the employees' right to collective bargaining imposes corresponding duties on the employer. It requires both employer and employees to meet and to bargain in good faith, in the pursuit of a common goal of peaceful and productive accommodation.

91 The right to collective bargaining thus conceived is a limited right. First, as the right is to a process, it does not guarantee a certain substantive or economic outcome. Moreover, the right is to a general process of collective bargaining, not to a particular model of labour relations, nor to a specific bargaining method. As P. A. Gall notes, it is impossible to predict with certainty that the present model of labour relations will necessarily prevail in 50 or even 20 years ("Freedom of Association and Trade Unions: A Double-Edged Constitutional Sword", in J.M. Weiler and R.M. Elliot, eds., *Litigating the Values of a Nation: The Canadian Charter of Rights and Freedom*s (1986), 245, at p. 248). Finally, and most importantly, the interference, as *Dunmore* instructs, must be substantial — so substantial that it interferes not only with the attainment of the union members' objectives (which is not protected), but with the very process that enables them to pursue these objectives by engaging in meaningful negotiations with the employer.

92 To constitute *substantial interference* with freedom of association, the intent or effect must seriously undercut or undermine the activity of workers joining together to pursue the common goals of negotiating workplace conditions and terms of employment with their employer that we call collective bargaining. Laws or actions that can be characterized as "union breaking" clearly meet this requirement. But less dramatic interference with the collective process may also suffice. In *Dunmore*, denying the union access to the labour laws of Ontario designed to support and give a voice to unions was enough. Acts of bad faith, or unilateral nullification of negotiated terms, without any process of meaningful discussion and consultation may also significantly undermine the process of collective bargaining. The inquiry in every case is contextual and fact-specific. The question in every case is whether the process of voluntary, good faith collective bargaining between employees and the employer has been, or is likely to be, significantly and adversely impacted.

93 Generally speaking, determining whether a government measure affecting the protected process of collective bargaining amounts to substantial interference involves two inquiries. The first inquiry is into the importance of the matter affected to the process of collective bargaining, and more specifically, to the capacity of the union members to come together and pursue collective goals in concert. The second inquiry is into the manner in which the measure impacts on the collective right to good faith negotiation and consultation.

94 Both inquiries are necessary. If the matters affected do not substantially impact on the process of collective bargaining, the measure does not violate s. 2(*d*) and, indeed, the employer may be under no duty to discuss and consult. There will be no need to consider process issues. If, on the other hand, the changes substantially touch on collective bargaining, they will still not violate s. 2(*d*) if they preserve a process of consultation and good faith negotiation.

95 Turning to the first inquiry, the essential question is whether the subject matter of a particular instance of collective bargaining is such that interfering with bargaining over that issue will affect the ability of unions to pursue common goals collectively. It may help to clarify why the importance of the subject matter of bargaining is relevant to the s. 2(*d*) inquiry. As we have stated, one requirement for finding a breach

of s. 2(*d*) is that the state has "precluded activity because of its associational nature, thereby discouraging the collective pursuit of common goals" (*Dunmore*, at para. 16 (emphasis deleted)). Interference with collective bargaining over matters of lesser importance to the union and its capacity to pursue collective goals in concert may be of some significance to workers. However, interference with collective bargaining over these less important matters is more likely to fall short of discouraging the capacity of union members to come together and pursue common goals in concert. Therefore, if the subject matter is of lesser importance to the union, then it is less likely that the s. 2(*d*) right to bargain collectively is infringed. The importance of an issue to the union and its members is not itself determinative, but will bear on the "single inquiry" prescribed in *Dunmore* as it applies in the particular context of collective bargaining: does interference with collective bargaining over certain subject matter affect the ability of the union members to come together and pursue common goals? The more important the matter, the more likely that there is substantial interference with the s. 2(*d*) right. Conversely, the less important the matter to the capacity of union members to pursue collective goals, the less likely that there is substantial interference with the s. 2(*d*) right to collective bargaining.

96 While it is impossible to determine in advance exactly what sorts of matters are important to the ability of union members to pursue shared goals in concert, some general guidance may be apposite. Laws or state actions that prevent or deny meaningful discussion and consultation about working conditions between employees and their employer may substantially interfere with the activity of collective bargaining, as may laws that unilaterally nullify significant negotiated terms in existing collective agreements. By contrast, measures affecting less important matters such as the design of uniform, the lay out and organization of cafeterias, or the location or availability of parking lots, may be far less likely to constitute significant interference with the s. 2(*d*) right of freedom of association. This is because it is difficult to see how interfering with collective bargaining over these matters undermines the capacity of union members to pursue shared goals in concert. Thus, an interference with collective bargaining over these issues is less likely to meet the requirements set out in *Dunmore* for a breach of s. 2(*d*).

97 Where it is established that the measure impacts on subject matter important to collective bargaining and the capacity of the union members to come together and pursue common goals, the need for the second inquiry arises: does the legislative measure or government conduct in issue respect the fundamental precept of collective bargaining — the duty to consult and negotiate in good faith? If it does, there will be no violation of s. 2(*d*), even if the content of the measures might be seen as being of substantial importance to collective bargaining concerns, since the process confirms the associational right of collective bargaining.

98 Consideration of the duty to negotiate in good faith which lies at the heart of collective bargaining may shed light on what constitutes improper interference with collective bargaining rights. It is worth referring again to principle H of the ILO principles concerning collective bargaining, which emphasizes the need for good faith in upholding the right to collective bargaining and in the course of collective bargaining. Principle H thus states:

> The principle of good faith in collective bargaining implies recognizing representative organizations, endeavouring to reach an agreement, engaging in genuine and constructive negotiations, avoiding unjustified delays in negotiation and mutually respecting the commitments entered into, taking into account the results of negotiations in good faith.

99 Consistent with this, the *Canada Labour Code* and legislation from all provinces impose on employers and unions the right and duty to bargain in good faith (see generally Adams, at pp. 10-91 and 10-92). The duty to bargain in good faith under labour codes is essentially procedural and does not dictate the content of any particular agreement achieved through collective bargaining. The duty to bargain is aimed at bringing the parties together to meet and discuss, but as illustrated by Senator Walsh, chairman of the Senate committee hearing on the *Wagner Act*, the general rule is that: "The bill does not go beyond the office door." (Remarks of Senator Walsh, 79 Cong. Rec. 7659; see F. Morin, J.-Y. Brière and D. Roux, *Le droit de l'emploi au Québec* (3rd ed. 2006), at pp. 1026-27.)

100 A basic element of the duty to bargain in good faith is the obligation to actually meet and to commit time to the process (Carter et al., at p. 301)….

101 The parties have a duty to engage in meaningful dialogue and they must be willing to exchange and explain their positions. They must make a reasonable effort to arrive at an acceptable contract (Adams, at p. 10-107; Carrothers, Palmer and Rayner, at p. 453)….

102 Nevertheless, the efforts that must be invested to attain an agreement are not boundless. "[T]he parties may reach a point in the bargaining process where further discussions are no longer fruitful. Once such a point is reached, a breaking off of negotiations or the adoption of a 'take it or leave it' position is not likely to be regarded as a failure to bargain in good faith" (Carter et al., at p. 302).

103 The duty to bargain in good faith does not impose on the parties an obligation to conclude a collective agreement, nor does it include a duty to accept any particular contractual provisions (Gagnon, LeBel and Verge, at pp. 499-500). Nor does the duty to bargain in good faith preclude hard bargaining. The parties are free to adopt a "tough position in the hope and expectation of being able to force the other side to agree to one's terms" (*Canadian Union of Public Employees v. Nova Scotia Labour Relations Board*, 1983 CanLII 162 (SCC), [1983] 2 SCR 311, at p. 341).

104 In principle, the duty to bargain in good faith does not inquire into the nature of the proposals made in the course of collective bargaining; the content is left to the bargaining forces of the parties (Carter et al., at p. 300). However, when the examination of the content of the bargaining shows hostility from one party toward the collective bargaining process, this will constitute a breach of the duty to bargain in good faith. In some circumstances, even though a party is participating in the bargaining, that party's proposals and positions may be "inflexible and intransigent to the point of endangering the very existence of collective bargaining" (*Royal Oak Mines*, at para. 46). This inflexible approach is often referred to as "surface bargaining". This Court has explained the distinction between hard bargaining, which is legal, and surface bargaining, which is a breach of the duty to bargain in good faith:

> It is often difficult to determine whether a breach of the duty to bargain in good faith has been committed. Parties to collective bargaining rarely proclaim that their aim is to avoid reaching a collective agreement. The jurisprudence recognizes a crucial distinction between "hard bargaining" and "surface bargaining" ... Hard bargaining is not a violation of the duty to bargain in good faith. It is the adoption of a tough position in the hope and expectation of being able to force the other side to agree to one's terms. Hard bargaining is not a violation of the duty because there is a genuine intention to continue collective bargaining and to reach agreement. On the other hand, one is said to engage in "surface bargaining" when one pretends to want to reach agreement, but in reality has no intention of signing a collective agreement and hopes to destroy the collective bargaining relationship. It is the improper objectives which make surface bargaining a violation of the Act. The dividing line between hard bargaining and surface bargaining can be a fine one.
>
> (*Canadian Union of Public Employees*, at p. 341; see also *Royal Oak Mines*, at para. 46)

105 Even though the employer participates in all steps of the bargaining process, if the nature of its proposals and positions is aimed at avoiding the conclusion of a collective agreement or at destroying the collective bargaining relationship, the duty to bargain in good faith will be breached: see *Royal Oak Mines Inc*. To the words of Senator Walsh, that collective bargaining does not go beyond the office door, we would add that, on occasion, courts are nevertheless allowed to look into what is going on in the room, to ensure that parties are bargaining in good faith.

106 In Canada, unlike in the United States, the duty to bargain in good faith applies regardless of the subject matter of collective

bargaining. Under Canadian labour law, all conditions of employment attract an obligation to bargain in good faith unless the subject matter is otherwise contrary to the law and could not legally be included in a collective agreement (Adams, at pp. 10-96 and 10-97; J.-P. Villaggi, "La convention collective et l'obligation de négocier de bonne foi: les leçons du droit du travail" (1996), 26 *R.D.U.S.* 355, at pp. 360-61). However, the refusal to discuss an issue merely on the periphery of the negotiations does not necessarily breach the duty to bargain in good faith (Carter et al., at p. 302).

107 In considering whether the legislative provisions impinge on the collective right to good faith negotiations and consultation, regard must be had for the circumstances surrounding their adoption. Situations of exigency and urgency may affect the content and the modalities of the duty to bargain in good faith. Different situations may demand different processes and timelines. Moreover, failure to comply with the duty to consult and bargain in good faith should not be lightly found, and should be clearly supported on the record. Nevertheless, there subsists a requirement that the provisions of the Act preserve the process of good faith consultation fundamental to collective bargaining. That is the bottom line.

108 Even where a s. 2(*d*) violation is established, that is not the end of the matter; limitations of s. 2(*d*) may be justified under s. 1 of the *Charter*, as reasonable limits demonstrably justified in a free and democratic society. This may permit interference with the collective bargaining process on an exceptional and typically temporary basis, in situations, for example, involving essential services, vital state administration, clear deadlocks and national crisis.

109 In summary, s. 2(*d*) may be breached by government legislation or conduct that substantially interferes with the collective bargaining process. Substantial interference must be determined contextually, on the facts of the case, having regard to the importance of the matter affected to the collective activity, and to the manner in which the government measure is accomplished. Important changes effected through a process of good faith negotiation may not violate s. 2(*d*). Conversely, less central matters may be changed more summarily, without violating s. 2(*d*). Only where the matter is both important to the process of collective bargaining, and has been imposed in violation of the duty of good faith negotiation, will s. 2(*d*) be breached.

5.2 Excerpt from *Ontario (Attorney General) v. Fraser*, 2011 SCC 20 (CanLII), [2011] 2 SCR 3, paras 98-113

In response to *Dunmore*, Ontario enacted the *Agricultural Employees Protection Act (AEPA) which* affirmed agricultural workers' exclusion from the *Labour Relations Act,* but created a separate labour relations regime for them. The claimants challenged the *AEPA* for failing to provide effective protection for their rights to organize and bargain collectively (thus violating s 2(d)), and for excluding farm workers on the basis of occupation from protections other workers were entitled to (thus violating s 15). A majority of the Court held that the *AEPA* did not breach s 2(d) of the *Charter* since it provided for a meaningful process of collective bargaining, and that it did not breach s 15 since there was no evidence that the *AEPA* regime perpetuated existing prejudice or disadvantage. Justice Rothstein (with Justice Charron) concurred with the result but argued that *Health Sectors* should be reversed such that collective bargaining be removed from the scope of s 2(b). Justice Deschamps also concurred with the result, additionally noting that freedom of association should not be associated with the right to equality or any other *Charter* right. Justice Abella dissented, arguing that the *AEPA* did violate s 2(d) of the *Charter* for its insufficient protection of collective bargaining processes.

The Chief Justice and LeBel J. —

[98] The essential question is whether the *AEPA* makes meaningful association to achieve workplace goals effectively impossible, as was the case in *Dunmore*. If the *AEPA* process, viewed in terms of its effect, makes good faith resolution of workplace issues between employees and their employer effectively impossible, then the exercise of the right to meaningful association guaranteed by s. 2(*d*) of the *Charter* will have been limited, and the law found to be unconstitutional in the absence of justification under s. 1 of the *Charter*. The onus is on the farm workers to establish that the *AEPA* interferes with their s. 2(*d*) right to associate in this way.

[99] As discussed above, the right of an employees' association to make representations to the employer and have its views considered in good faith is a derivative right under s. 2(*d*) of the *Charter*, necessary to meaningful exercise of the right to free association. The question is whether the *AEPA* provides a process that satisfies this constitutional requirement.

[100] Under the *AEPA*, the right of employees' associations to make representations to their employers is set out in s. 5. The relevant sections are ss. 5(1), (5), (6) and (7):

> **5.** (1) The employer shall give an employees' association a reasonable opportunity to make representations respecting the terms and conditions of employment of one or more of its members who are employed by that employer.
>
> ...
>
> (5) The employees' association may make the representations orally or in writing.
>
> (6) The employer shall listen to the representations if made orally, or read them if made in writing.
>
> (7) If the representations are made in writing, the employer shall give the association a written acknowledgment that the employer has read them.

[101] Sections 5(6) and (7) are critical. They provide that the employer shall listen to oral representations, and read written representations, and acknowledge having read them. They do not expressly refer to a requirement that the employer consider employee representations in good faith. Nor do they rule it out. By implication, they include such a requirement.

[102] Three considerations lead us to conclude that any ambiguity in ss. 5(6) and (7) should be resolved by interpreting them as imposing a duty on agricultural employers to consider employee representations in good faith.

[103] The first consideration is the principle that a statute should be interpreted in a way that gives meaning and purpose to its provisions. This requires us to ask what the purpose of the requirements in ss. 5(6) and (7) is. There can only be one purpose for requiring the employer to listen to or read employee representations — to assure that the employer will in fact consider the employee representations. No labour relations purpose is served merely by *pro forma* listening or reading. To fulfill the purpose of reading or listening, the employer must consider the submission. Moreover, the employer must do so in good faith: consideration with a closed mind would render listening or reading the submission pointless.

[104] The second consideration is that Parliament and legislatures are presumed to intend to comply with the *Charter*: *Slaight Communications Inc. v. Davidson*, 1989 CanLII 92 (SCC), [1989] 1 SCR 1038, at p. 1078, *per* Lamer J. (as he then was), dissenting in part; *R. v. Sharpe*, 2001 SCC 2, [2001] 1 SCR 45, at para. 33. At the time the *AEPA* was adopted *Dunmore* had pronounced that the *Charter* requires meaningful exercise of the right to associate in pursuit of workplace goals. Since *Health Services*, it has been clear that this requires employers to consider employee representations in good faith. Any ambiguity in the *AEPA* should be resolved accordingly.

[105] The third consideration is the expressed intention of the Minister in debates on the legislation. When introducing the legislation, she stated:

> The government is advised that the Supreme Court of Canada decision regarding Dunmore versus Ontario obligates the government to extend legislative protections to agricultural workers. It obligates us to do this to ensure that employees have the right to form and join associations, as well as have the protection necessary to ensure that the freedom of association is meaningful. The government of Ontario will meet these obligations.
>
> (Legislative Assembly of Ontario, *Official Report of Debates (Hansard)*, No. 46A, 3rd Sess., 37th Parl., October 22, 2002, at p. 2340 (emphasis added))

[106] The government must, on the words of its Minister, have intended the legislation to achieve whatever is required to ensure meaningful exercise of freedom of association. As discussed above, meaningful exercise of the right to free association in the workplace context requires good faith consideration of employee representations. As pointed out by the respondents, the Minister also stated that the *AEPA* was not intended to "extend collective bargaining to agricultural workers". However, this may be understood as an affirmation that the *AEPA* did not institute the dominant Wagner model of collective bargaining, or bring agricultural workers within the ambit of the *LRA*, not that the Minister intended to deprive farm workers of the protections of collective bargaining that s. 2(*d*) grants.

[107] These considerations lead us to conclude that s. 5 of the *AEPA*, correctly interpreted, protects not only the right of employees to make submissions to employers on workplace matters, but also the right to have those submissions considered in good faith by the employer. It follows that s. 5 of the *AEPA* does not violate s. 2(*d*) of the *Charter*.

[108] It is argued that the record thus far under the *AEPA* gives little reason to think that the *AEPA* process will in fact lead to good faith consideration by employers. The evidence shows that the respondents attempted to engage employers in collective bargaining activities on a few occasions. On each occasion the employer ignored or rebuffed further engagement. The employers have refused to recognize their association and have either refused to meet and bargain with it or have not responded to the demands of the respondents.

[109] This history, scant as it is, does not establish that the *AEPA* violates s. 2(*d*). Indeed, the union has not made a significant attempt to make it work. As just discussed, properly interpreted, it does not violate s. 2(*d*). Moreover, the process has not been fully explored and tested. The *AEPA*, as Farley J. noted, contemplates a meaningful exercise of the right of association, and provides a tribunal for the resolution of disputes.

[110] Farley J. expressed cautious hope that the Tribunal created by the Act would prove efficacious and that the relief claimed might be granted:

> One would think it better to see how the Tribunal operates in fact before condemning it as powerless to deal with such abuses. . . . I am of the view that this condemnation is premature. A successful application would do one of several things: be effective positively as to action; or morally give the wrongdoing employer a "bloody nose"; or if truly an empty process, it would demonstrate the need for strengthening by legislative amendment. [para. 18]

[111] Farley J. accordingly found that the complaint was premature:

> ... it would seem to me to be a premature and unfair complaint that the Tribunal charged under the *AEPA* with dealing with complaints — namely the Agriculture, Food and Rural Affairs Appeal Tribunal — is bereft of expertise in labour relations given its bipartite composition of labour and agricultural experienced personnel. That Tribunal should be given a fair opportunity to demonstrate its ability to appropriately handle the function given to it by the *AEPA*. [para. 28]

[112] Section 11 of the AEPA specifically empowers the Tribunal to make a determination that there has been a contravention of the Act, and to grant an order or remedy with respect to that contravention. The Tribunal may be expected to interpret its powers, in accordance with its mandate, purposively, in an effective and meaningful way. Labour tribunals enjoy substantial latitude when applying their constituent statutes to the facts of a given case. As stated by the Ontario Labour Relations Board in Adams Mine, Cliffs of Canada Ltd. v. United Steelworkers of America (1982), 1 C.L.R.B.R. (N.S.) 384:

> The Act does not spell out each and every right and obligation of labour and management. This Board is left with the task of applying the Act's general language in the light of an infinite variety of circumstances which may arise. A rigid scheme of regulation is avoided and flexibility is provided although all within the limitations necessary to effectuate the dominant purpose of the Act. [pp. 399-400]

[113] We conclude the *AEPA* does not breach s. 2(*d*) of the *Charter*. It is therefore unnecessary to consider the s. 1 arguments that the respondents' demands for full *LRA* protections would be inappropriate because of the diverse nature of the agricultural sector, ranging from small family operations to larger commercial establishments.

5.3 Excerpt from *Meredith v. Canada (Attorney General)*, 2015 SCC 2 (CanLII), [2015] 1 SCR 125, para 1, 26-30

The claimants, members of the National Executive Committee of the RCMP's Staff Relations Representative Program (SSRP), challenged the constitutionality of the *Expenditure Restraint Act,* which was passed in 2009 to limit wage increases for RCMP employees to 1.5% each year from 2008-2010 without consulting the SSRP prior to making that change. All SSRP proposals for change were rejected by the RCMP Treasury Board, ultimately leading to the *Charter* challenge. The majority of the Court held that rolling back scheduled wage increases without prior consultation did not infringe s 2(d) rights to collective bargaining since there was still a process for RCMP members to consult on compensation-related issues, despite that overall process being deemed constitutionally insufficient in *MPAO.* Justice Rothstein agreed there was no s 2(d) violation but disagreed with the majority's finding that *MPAO* deemed the existing Pay Council processes insufficient. Justice Abella, dissenting, found a s 2(d) violation in rolling back the wage increases without providing opportunity for RCMP members to discuss those rollbacks, which nullified the right to meaningful consultation and collective bargaining.

> The Chief Justice and LeBel J. —
>
> [1] This appeal raises the question whether the *Expenditure Restraint Act*, S.C. 2009, c. 2, s. 393 ("*ERA*"), violates the guarantee of freedom of association in s. 2(*d*) of the *Canadian Charter of Rights and Freedoms*, and if so, whether the infringement is justified under s. 1. The appellants are serving members of the Royal Canadian Mounted Police ("RCMP") who were elected to the national executive of the Staff Relations Representative Program ("SRRP"). They argue that the *ERA*, by rolling back scheduled wage increases for RCMP members without prior consultation, violates the members' constitutional right to collective bargaining, as recognized in *Health Services and Support — Facilities Subsector Bargaining Assn. v. British Columbia*, 2007 SCC 27, [2007] 2 SCR 391.
>
> (…)
>
> [26] For the affected RCMP members, the *ERA* resulted in a rollback of scheduled wage increases from the previous Pay Council recommendations accepted by the Treasury Board, from between 2% and 3.5% to 1.5% in each of 2008, 2009 and 2010. The original increase would also have doubled service pay and increased the Field Trainer Allowance. Both of these were also eliminated by the *ERA*, subject to subsequent negotiations pursuant to s. 62 of that Act.

[27] The Attorney General of Canada acknowledges that wages are an important issue, but notes that the limits imposed by the *ERA* were time-limited in nature, were shared by all public servants, and did not permanently remove the subject of wages from collective bargaining. Accordingly, he suggests that the importance of the wage restraints does not rise to the level of a s. 2(*d*) violation. For the reasons that follow, we conclude that s. 2(*d*) was not breached.

[28] The facts of *Health Services* should not be understood as a minimum threshold for finding a breach of s. 2(*d*). Nonetheless, the comparison between the impugned legislation in that case and the *ERA* is instructive. The *Health and Social Services Delivery Improvement Act*, S.B.C. 2002, c. 2, Part 2, introduced radical changes to significant terms covered by collective agreements previously concluded. By contrast, the level at which the *ERA* capped wage increases for members of the RCMP was consistent with the going rate reached in agreements concluded with other bargaining agents inside and outside of the core public administration and so reflected an outcome consistent with actual bargaining processes. The process followed to impose the wage restraints thus did not disregard the substance of the former procedure. And the *ERA* did not preclude consultation on other compensation-related issues, either in the past or the future.

[29] Furthermore, the *ERA* did not prevent the consultation process from moving forward. Most significantly in the case of RCMP members, s. 62 permitted the negotiation of additional allowances as part of "transformation[al] initiatives" within the RCMP. The record indicates that RCMP members were able to obtain significant benefits as a result of subsequent proposals brought forward through the existing Pay Council process. Service pay was increased from 1% to 1.5% for every five years of service — representing a 50% increase — and extended for the first time to certain civilian members. A new and more generous policy for stand-by pay was also approved. Actual outcomes are not determinative of a s. 2(*d*) analysis, but, in this case, the evidence of outcomes supports a conclusion that the enactment of the *ERA* had a minor impact on the appellants' associational activity.

[30] Simply put, the Pay Council continued to afford RCMP members a process for consultation on compensation-related issues within the constitutionally inadequate labour relations framework that was then in place. The *ERA* and the government's course of conduct cannot be said to have substantially impaired the collective pursuit of the workplace goals of RCMP members. This said, our conclusions, as they relate to the *ERA*'s impact on the Pay Council process, should not be taken to endorse the constitutional validity of that process or of similar schemes.

5.4 Excerpt from *British Columbia Teachers' Federation v. British Columbia*, 2015 BCCA 184, per Donald JA, paras 275-280, 372-376 (as adopted by a majority of the Supreme Court of Canada in *British Columbia Teachers' Federation v. British Columbia*, 2016 SCC 49, [2016] 2 SCR 407)

The British Columbia Teachers' Federation (BCTF) challenged the constitutionality of two statutes (the *Education Services Collective Agreement Act,* and the *Public Education Flexibility and Choice Act*) which nullified certain terms of a previously expired collective agreement that, in accordance with its terms, continued in force between the BCTF and the BC Public School Employers' Association (BCPSEA). The *Acts* additionally prohibited the inclusion of similar terms in future agreements between the BCTF and the BCPSEA. The BCTF was provided no opportunity for consultations in relation to the passing of the two *Acts*. The trial judge held that the *Acts* infringed s 2(d) rights by voiding terms of an in-force collective agreement and by preventing future bargaining on those terms. Following this decision, a new law was passed (the *Education Improvement Act*) which did the same thing as the previous *Acts*, except this time the prohibition on future inclusion of deleted terms was for 14 months instead of an indeterminate period. The Province consulted with the BCTF prior to passing the *EIA*. The trial judge again held that the legislation unjustifiably infringed s 2(d) *Charter* rights. Justice Donald, dissenting in the BCCA decision, held that the trial judge correctly found that the Province failed to consult in good faith, thus unjustifiably infringing s 2(d). A majority of the Supreme Court of Canada adopted Justice Donald's reasons providing no reasons of its own, with Justices Côté and Brown dissenting.

Donald JA –

[275] I have had the privilege of reading the draft reasons for judgment of Chief Justice Bauman and Mr. Justice Harris. Insofar as my colleagues have determined the trial judge erred in her primary conclusion that pre-legislative consultation is always irrelevant for the purposes of determining a constitutional breach, and her secondary alternative conclusion that pre-legislative consultation was irrelevant in this case because the Province of British Columbia (the "Province") was not acting *qua* employer, I agree with those conclusions, but I prefer to give my own reasons for doing so.

[276] However, insofar as my colleagues have also found that the trial judge erred in her tertiary alternative conclusion – that the Province breached the teachers' s. 2(d) *Charter* right to freedom of association by failing to negotiate and consult in good faith – I must respectfully disagree. In my opinion, an appropriately deferential approach to the trial judge's findings of fact, along with an application of the constitutional test as set out by the Supreme Court of Canada in *Health Services and Support – Facilities Subsector Bargaining Assn. v. British Columbia*, 2007 SCC 27, [2007] 2 SCR 391 [*Health Services*], and *Ontario (Attorney General) v. Fraser*, 2011 SCC 20, [2011] 2 SCR 3 [*Fraser*], inexorably leads to the conclusion that the trial judge's finding that the passage of Bill 22 was unconstitutional must be upheld.

[277] In my opinion, the reasons given by my colleagues make an error similar in principle to that made by the Ontario Court of Appeal in *Fraser*, subsequently overruled by the Supreme Court of Canada, in that they have read into the constitutional good-faith test elements of a "Wagner-style" collective bargaining regime; specifically, a prohibition on reviewing the substantive reasonableness of the Province's negotiating position. The Supreme Court of Canada has made clear that s. 2(d) does not protect a particular regime for collective bargaining, but instead is a bulwark that protects the ability of employees to pursue workplace goals collectively: see *Fraser* at paras. 44-46.

[278] This error has led my colleagues to disregard key findings of fact made by the trial judge – findings that colour and characterize the lengthy history of the dispute between the Province and the British Columbia Teachers' Federation ("BCTF"). These findings of fact were made by a trial judge with particular knowledge of the relationship between the parties. Between the original Bill 28 Decision (2011 BCSC 469) and its follow-up, the Bill 22 Decision (the case under appeal, 2014 BCSC 121), the trial judge had the benefit of 29 days of evidence and submissions pertaining to this dispute over a period of more than three years, not to mention additional time spent on applications, etc. The appellate function is not to substitute the findings and inferences made by a judge who has had the full benefit of the trial process with an appeal division's own opinions of the facts, unless the trial judge has made such palpable and overriding errors of fact that the conclusion cannot stand. As I will explain, I disagree that the trial judge made any palpable and overriding errors of fact.

[279] After oral submissions were given in this appeal, the Supreme Court of Canada released three consequential decisions on freedom of association: *Mounted Police Association of Ontario v. Canada (Attorney General)*, 2015 SCC 1 [*MPAO*]; *Meredith v. Canada (Attorney General)*, 2015 SCC 2; and *Saskatchewan Federation of Labour v. Saskatchewan*, 2015 SCC 4 [*SFL*]. Accordingly, the parties subsequently provided additional written submissions to this Court on the application of those decisions to the case at bar. In those decisions, the Supreme Court of Canada has now held that employees are entitled to constitutional protection for not only collective representation, but independent representation selected by the employees: *MPAO*. As well, employees have a constitutionally protected right to strike in order to protect an approximately equal bargaining position with their employer: *SFL*. Most importantly, the Court has reiterated and emphasized that at the centre of s. 2(d) is a *Charter*-protected balance between employees and employer that will allow for meaningful collective bargaining: *MPAO* at para. 72.

> [280] As Madam Justice Abella wrote for the majority in *SFL* at para. 1: "Clearly the arc bends increasingly towards workplace justice." The case before us tasks this Court with determining whether workplace justice was provided to the teachers of the BCTF.
>
> (…)
>
> [372] The trial judge found as a fact that the Province began the consultation process with the BCTF with its mind made up. It intended to re-enact the same provisions already found to be unconstitutional in the Bill 28 Decision. The Province's stated purpose for doing so was already found by the trial judge to be unfounded and based on myth and hearsay. For a substantial portion of the consultation period, the Province refused to answer the BCTF's requests for the Province to explain its position, nor did the Province even read the substantive content of the BCTF's proposal: the terms of the Working Conditions.
>
> [373] In my opinion, it was reasonable on these facts alone for the trial judge to come to the conclusion that the Province was not consulting in good faith. As was made clear in Fraser, good faith negotiation requires parties to explain their position and read and consider the positions of opposing parties. The Province failed to meet this minimum standard in this case.
>
> [374] My colleagues suggest that the trial judge did not properly weigh five important contextual factors in her infringement analysis. While the trial judge's assessment of these "practical and contextual realities" should be assessed on a standard of palpable and overriding error, that makes no difference in this case because I am of the opinion that the trial judge's assessment in this regard was correct and I disagree with my colleagues' assessment. I will not repeat my colleagues' enumeration of the five factors, found at para. 42, but I will now address them.
>
> [375] First, the Province did not give the BCTF a meaningful opportunity to make representations. To be a meaningful opportunity, the Province must have considered the BCTF's representations in good faith, which it did not do. Second, the trial judge gave full consideration to the Province's policy objectives in her infringement analysis: see e.g., Bill 22 Decision at paras. 243, 244, 250, 308, 347, 349, 361, 394, 417. As I explained, I am confident that the Province is able to pursue its policy goals while respecting the fundamental freedoms protected by the *Charter*. Third, the Province cannot rely on a claim that the parties were at an impasse when Bill 22 was passed, because as I explained, a legitimate impasse can only occur if the Province had been negotiating in good faith. Fourth, as I will explain in greater detail below in my s. 1 analysis, the temporally limited prohibition on collective bargaining did not mitigate, but in fact entrenched, the substantial infringement resulting from the deletion of the Working Conditions. Fifth, as I explained above, the associated regulations passed by the Province do not mitigate the Province's substantial interference with the BCTF's freedom of association.
>
> [376] In summary, I agree with the trial judge that the Province did not consult in good faith. Since the Province did not consult in good faith, it did not retain a meaningful process that protected the BCTF's s. 2(d) right to collectively bargain toward important workplace goals. The unilateral deletion of the Working Conditions, which were of significant importance to the teachers, was therefore a substantial interference with BCTF's associational activity and a breach of s. 2(d).

5.5 Questions

1. The Court provides four primary reasons for departing from its previous conclusion that collective bargaining was not protected by section 2(d), three of which have proven particularly controversial:

i. **"the reasons evoked in the past for holding that the guarantee of freedom of association does not extend to collective bargaining can no longer stand"** – in particular, the Court relied heavily on the Dunmore judgment in finding that many of the core assumptions of the original trilogy had been passed aside. Do you agree with this analysis? Why or why not?

ii. **"an interpretation of s. 2(d) that precludes collective bargaining from its ambit is inconsistent with Canada's historic recognition of the importance of collective bargaining to freedom of association"** – is the Court's review of labour history a compelling factor in this case? (see e.g. Eric Tucker, "*The Constitutional Right to Bargain Collectively: The Ironies of Labour History in the Supreme Court of Canada*" (2008) 61 Labour/La Travail 151).

iii. **"collective bargaining is an integral component of freedom of association in international law, which may inform the interpretation of Charter guarantees"** – is the Court's conception of collective bargaining supported by international labour law, despite the fact that the Wagner Act model of good faith bargaining is largely unique to North America? (see Brian Langille, "*The Freedom of Association Mess: How We Got into It and How We Can Get out of It*" (2009) 54:1 McGill L J 177 and Roy J. Adams, "*Prospects for Labour's Right to Bargain Collectively after B.C. Health Services*" (2009) 59:1 UNBLJ 85).

2. The Court's subsequent decision in Fraser was largely seen as a departure from the more robust conception of collective bargaining adopted in BC Health Services. Do you agree? And if so, what can justify or account for the different approaches in the two cases?

3. In Dunmore, the Court discussed the importance of extending constitutional protections to vulnerable groups of workers who are most in need of statutory protections to make their freedom of association meaningful. Can that be reconciled with the different outcomes in the BC Health Services and Fraser decisions? How can denying the farm workers in Fraser the full statutory protection for meaningful collective bargaining be justifiable in light of their extreme vulnerability?

4. How does the right to meaningful collective bargaining (as described in BC Health Services), or the right to make representations and have them considered in good faith (as described in Fraser), apply outside of labour relations statutes? For instance, can these rights apply to precarious workers, such as gig workers, who are often unable to meet ordinary thresholds for certification under labour relations statutes, but nevertheless seek to engage in collective bargaining with their employers?

5. The public sector wage restraint legislation in the Meredith case clearly interfered with the ability to negotiate collective agreements, to at least some extent, as it imposed certain terms and conditions of employment and precluded others. On what basis did the Court conclude that this did not constitute a breach of section 2(d)? To what extent did the outcome of the legislative process – that is, the specific terms imposed – influence the Court's conclusion that the process itself was constitutionally sound?

6. What features distinguish the outcome in Meredith from the outcome in the BC Health Services and the BC Teachers Federation cases, especially in relation to the question of a meaningful process of collective bargaining?

7. Looking ahead, are there other important aspects or elements of collective bargaining – beyond the duty to bargain in good faith and the need to adhere to collective agreements concluded through such bargaining – that must be protected to make "collective bargaining" truly meaningful?

6 The right to employee choice and independence in employee associations

6.1 Excerpt from *Mounted Police Association of Ontario v. Canada (Attorney General)*, 2015 SCC 1 (CanLII), [2015] 1 SCR 3, paras 81-103

> The Chief Justice and LeBel J. —

[81] We have concluded that s. 2(*d*) protects the right of employees to associate for the purpose of meaningfully pursuing collective workplace goals. The government therefore cannot enact laws or impose a labour relations process that substantially interferes with that right. This raises the question — what are the features essential to a meaningful process of collective bargaining under s. 2(*d*)? In this section, we conclude that a meaningful process of collective bargaining is a process that provides employees with a degree of choice and independence sufficient to enable them to determine their collective interests and meaningfully pursue them.

[82] Collective bargaining constitutes a fundamental aspect of Canadian society which "enhances the human dignity, liberty and autonomy of workers by giving them the opportunity to influence the establishment of workplace rules and thereby gain some control over a major aspect of their lives, namely their work" (*Health Services*, at para. 82). Put simply, its purpose is to preserve collective employee autonomy against the superior power of management and to maintain equilibrium between the parties. This equilibrium is embodied in the degree of choice and independence afforded to the employees in the labour relations process.

[83] But choice and independence are not absolute: they are limited by the context of collective bargaining. In our view, the degree of choice required by the *Charter* for collective bargaining purposes is one that enables employees to have effective input into the selection of the collective goals to be advanced by their association. In the same vein, the degree of independence required by the *Charter* for collective bargaining purposes is one that ensures that the activities of the association are aligned with the interests of its members.

[84] In the following subsections, we lay out the theoretical underpinnings of choice and independence and we explain how they are inherent to the nature and purpose of collective bargaining. We then explain how the requirements of choice and independence can be respected by a variety of labour relations models, as long as such models allow collective bargaining to be pursued in a meaningful way.

(1) Choice and Independence Are Inherent to the Nature and Purpose of Collective Bargaining

(a) *Employee Choice*

[85] The function of collective bargaining is not served by a process which undermines employees' rights to choose what is in their interest and how they should pursue those interests. The degree of choice required by the *Charter* is one that enables employees to have effective input into the selection of their collective goals. This right to participate in the collective is crucial to preserve employees' ability to advance their own interests, particularly in schemes which involve trade-offs of individual rights to gain collective strength (J. E. Dorsey, "Individuals and Internal Union Affairs: The Right to Participate", in K. P. Swan and K. E. Swinton, eds., *Studies in Labour Law* (1983), 193).

[86] Hallmarks of employee choice in this context include the ability to form and join new associations, to change representatives, to set and change collective workplace goals, and to dissolve existing associations. Employee choice may lead to a diversity of associational structures and to competition between associations, but it is a form of exercise of freedom of association that is essential to the existence of employee organizations and to the maintenance of the confidence of members in them (*PIPSC*, at p. 380, per Cory J., in dissent; P. Davies and M. Freedland, *Kahn-Freund's Labour and the Law* (3rd ed. 1983), at p. 200).

[87] Accountability to the members of the association plays an important role in assessing whether employee choice is present to a sufficient degree in any given labour relations scheme. Employees choose representatives on the assumption that *their* voice will be conveyed to the employer by the people *they* choose (A. Bogg and K. Ewing, "A (Muted) Voice at Work? Collective Bargaining in the Supreme Court of Canada" (2012), 33 *Comp. Lab. L. & Pol'y J.* 379, at p. 405). A scheme that holds representatives accountable to the employees who chose them ensures that the association works towards the purposes for which the employees joined together. Accountability allows employees to gain control over the selection of the issues that are put forward to the employer, and the agreements concluded on their behalf as a result of the process of collective bargaining.

(b) *Independence From Management*

[88] The function of collective bargaining is not served by a process which is dominated by or under the influence of management. This is why a meaningful process of collective bargaining protects the right of employees to form and join associations that are independent of management (*Delisle*, at paras. 32 and 37). Like choice, independence in the collective bargaining context is not absolute. The degree of independence required by the *Charter* for collective bargaining purposes is one that permits the activities of the association to be aligned with the interests of its members.

[89] Just as with choice, independence from management ensures that the activities of the association reflect the interests of the employees, thus respecting the nature and purpose of the collective bargaining process and allowing it to function properly. Conversely, a lack of independence means that employees may not be able to advance their own interests, but are limited to picking and choosing from among the interests management permits them to advance. Relevant considerations in assessing independence include the freedom to amend the association's constitution and rules, the freedom to elect the association's representatives, control over financial administration and control over the activities the association chooses to pursue.

[90] Independence and choice are complementary principles in assessing the constitutional compliance of a labour relations scheme. *Charter* compliance is evaluated based on the *degrees* of independence and choice guaranteed by the labour relations scheme, considered with careful attention to the entire context of the scheme. The degrees of choice and independence afforded should not be considered in isolation, but must be assessed globally always with the goal of determining whether the employees are able to associate for the purposes of meaningfully pursuing collective workplace goals.

[91] We now turn to the practical implications of choice and independence for labour relations models.

(2) Labour Relations Models Must Permit Collective Bargaining to Be Pursued in a Meaningful Way

[92] A variety of labour relations models may provide sufficient employee choice and independence from management to permit meaningful collective bargaining. As discussed, choice and independence are not absolute in the context of collective bargaining. By necessity, a collective framework not only serves employees' interests, but imposes limits on individual entitlements in order to permit the pursuit of collective goals. Collective bargaining is "an exercise in solidarity in which individual interests are not simply aggregated but transformed in the process of democratic deliberation" (J. Fudge, "Introduction: Farm Workers, Collective Bargaining Rights, and the Meaning of Constitutional Protection", in F. Faraday, J. Fudge and E. Tucker, eds., *Constitutional Labour Rights in Canada: Farm Workers and the Fraser Case* (2012), 1, at p. 17; see also G. Murray and P. Verge, *La représentation syndicale: visage juridique actuel et futur* (1999), at pp. 2-3; Dorsey, at pp. 195 and 219). As Professor Wellington states: "Accommodating the interests of the dissenter and those of the majority is always difficult. The hallmark of a truly democratic society is its unwillingness to give up easily either majority rule or individual freedom" (*Labor and the Legal Process* (1968), at p. 129).

[93] This Court has consistently held that freedom of association does not guarantee a particular model of labour relations (*Delisle*, at para. 33; *Health Services*, at para. 91; *Fraser*, at para. 42). What is required is not a particular model, but a regime that does not substantially interfere with meaningful collective bargaining and thus complies with s. 2(*d*) (*Health Services*, at para. 94; *Fraser*, at para. 40). What is required in turn to permit meaningful collective bargaining varies with the industry culture and workplace in question. As with all s. 2(*d*) inquiries, the required analysis is contextual.

[94] The Wagner Act model of labour relations in force in most private sector and many public sector workplaces offers one example of how the requirements of choice and independence ensure meaningful collective bargaining. That model permits a sufficiently large sector of employees to *choose* to associate themselves with a particular trade union and, if necessary, to decertify a union that fails to serve their needs. The principles of majoritarianism and exclusivity, the mechanism of "bargaining units" and the processes of certification and decertification — all under the supervision of an independent labour relations board — ensure that an employer deals with the association most representative of its employees: G. W. Adams, *Canadian Labour Law* (2nd ed. (loose-leaf)), at paras. 2.3800 to 2.4030; D. D. Carter et al., *Labour Law in Canada* (5th ed. 2002), at pp. 286-87; P. Verge, G. Trudeau and G. Vallée, *Le droit du travail par ses sources* (2006), at pp. 41-42.

[95] The Wagner Act model, however, is not the only model capable of accommodating choice and independence in a way that ensures meaningful collective bargaining. The designated bargaining model (see, e.g., *School Boards Collective Bargaining Act, 2014*, S.O. 2014, c. 5) offers another example of a model that may be acceptable. Although the employees' bargaining agent under such a model is designated rather than chosen by the employees, the employees appear to retain sufficient choice over workplace goals and sufficient independence from management to ensure meaningful collective bargaining. This is but one example; other collective bargaining regimes may be similarly capable of preserving an acceptable measure of employee choice and independence to ensure meaningful collective bargaining.

[96] Labour schemes are responsive to the interests of the parties involved and the particular workplace context. Different models have emerged to meet the specific needs of diverse industries and workplaces. The result has been ongoing debate on the desirability of various forms of workplace representation and cooperation and on their coexistence: D. J. Doorey, "Graduated Freedom of Association: Worker Voice Beyond the Wagner Model" (2013), 38 *Queen's L.J.* 511; B. W. Burkett, "The Future of the *Wagner Act*: A Canadian-American Comparison" (2013), 38 *Queen's L.J.* 363; D. Taras, "Reconciling Differences Differently: Employee Voice in Public Policymaking and Workplace Governance" (2007), 28 *Comp. Lab. L. & Pol'y J.* 167; Adams, at paras. 1.290 to 1.340.

[97] The search is not for an "ideal" model of collective bargaining, but rather for a model which provides sufficient employee choice and independence to permit the formulation and pursuit of employee interests in the particular workplace context at issue. Choice and independence do not *require* adversarial labour relations; nothing in the *Charter* prevents an employee association from engaging willingly with an employer in different, less adversarial and more cooperative ways. This said, genuine collective bargaining cannot be based on the suppression of employees' interests, where these diverge from those of their employer, in the name of a "non-adversarial" process. Whatever the model, the *Charter* does not permit choice and independence to be eroded such that there is substantial interference with a meaningful process of collective bargaining. Designation of collective bargaining agents and determination of collective bargaining frameworks would therefore not breach s. 2(*d*) where the structures that are put in place are free from employer interference, remain under the control of employees and provide employees with sufficient choice over the workplace goals they wish to advance.

[98] The respondent argues that this view of s. 2(*d*) would require an employer, even a government employer, to recognize and bargain with every association chosen by employees, whatever the size. In our view, this result does not follow. Freedom of association requires, among other things, that no government process can substantially interfere with the autonomy of employees in creating or joining associations of their own choosing, even if in so doing they displace an existing association. It also requires that the employer consider employees' representations in good faith, and engage in meaningful discussion with them. But s. 2(*d*) does not require a process whereby *every* association will ultimately *gain* the recognition it seeks (see M. Coutu et al., *Droit des rapports collectifs du travail au Québec* (2nd ed. 2013), vol. 1, *Le régime général*, at para. 98). As we said, s. 2(*d*) can also accommodate a model based on majoritarianism and exclusivity (such as the Wagner Act model) that imposes restrictions on individual rights to pursue collective goals.

[99] In summary, a meaningful process of collective bargaining is a process that gives employees meaningful input into the selection of their collective goals, and a degree of independence from management sufficient to allow members to control the activities of the association, having regard to the industry and workplace in question. A labour relations scheme that complies with these requirements and thus allows collective bargaining to be pursued in a meaningful way satisfies s. 2(*d*).

[100] Before turning to the application of these principles to the constitutional questions raised in this case, we address Rothstein J.'s dissenting reasons. In Rothstein J.'s view, "[t]he essential feature of a labour relations regime that allows employees to exercise their constitutional right to make meaningful collective representations on their workplace goals is representativeness: the voice that speaks on behalf of employees must represent their interests and be ultimately accountable to them. Representativeness is the constitutional imperative required in order to ensure that s. 2(*d*) rights are protected in the collective bargaining context, nothing more" (para. 172).

[101] So stated, the notions of choice and independence, on the one hand, and representativeness, on the other, overlap considerably. However, we consider choice and independence best suited for the constitutional analysis at issue. If employees cannot choose the voice that speaks on their behalf, that voice is unlikely to speak up for their interests. It is precisely employee choice of representative that guarantees a representative voice. Similarly, if employees must "have confidence in their spokespersons" (Rothstein J.'s reasons, at para. 219), the way to ensure such confidence is through a sufficient degree of employee choice in the selection of representatives.

[102] Justice Rothstein argues that "the touchstone is representativeness" (para. 195). He acknowledges, however, that employees must be able to hold their representatives "to account" (paras. 193 and 222). Yet employees will be unable to hold representatives accountable if those employees lack sufficient choice in selecting their representatives or if their representatives are dependent on management (for instance, in determining the acceptable subject matter of employee grievances, or the relative priority of employee concerns).

[103] Representativeness and accountability rest on choice and independence. We conclude that the latter two principles are the most appropriate in assessing s. 2(*d*) compliance in the context of labour relations. That said, these principles are tools in an analysis that must in each case determine whether the right to the meaningful pursuit of collective workplace goals is respected. In our view, the disagreement between majority and Rothstein J. on the terminology of "choice and independence" versus "representativeness" is more semantic than real. The real difference lies in how the concepts are understood and applied.

6.2 Questions

1. The Court in Mounted Police Association of Ontario (MPAO) emphasizes that section 2(d) protects "choice" and "independence" in the pursuit of collective goals, but that "choice and independence are not absolute" in this context. What does the Court mean by this?
2. In the context of most other types of associations – from political parties to advocacy groups to book clubs – we have essentially absolute choice over which associations to join, in which collective activities we choose to engage, and we can typically choose these associations and engage in these activities independent of any other associations or entities. How does the context of these other associations differ from the labour relations context, and does that justify greater limitations on choice and independence in the labour relations arena?
3. The Court in MPAO suggests, in passing, that a designated bargaining model – where all workers in a particular employment context or industry, such as teachers, are statutorily required to bargain through a particular union – "may be" acceptable under section 2(d). What does this reveal about what the Court means when it discusses the need for employee 'choice' in relation to its collective bargaining representatives?

7 The right to strike

7.1 Excerpt from *Saskatchewan Federation of Labour v. Saskatchewan*, 2015 SCC 4, [2015] 1 SCR 245, paras 1-4, 32-34, 43-45, 51, 53-70, 75-97

The Saskatchewan Federation of Labour and other unions challenged the *Public Service Essential Services Act,* which limited the ability of public sector employees who perform essential services to go on strike. The *Act* contained no mechanism for resolving bargaining impasses. A majority of the Court held that the right to strike is an integral part of the rights contemplated by s 2(d) of the *Charter*, and thus found the *PSESA* to be an unjustifiable infringement of s 2(d). Justices Rothstein and Wagner dissented in part, arguing that s 2(d) does not encompass a right to strike since because meaningful collective bargaining could, in theory, occur without employees possessing the right or ability to strike. The declaration of invalidity for the *PSESA* was suspended for one year.

Abella J. —

[1] In the *Alberta Reference* (*Reference re Public Service Employee Relations Act (Alta.)*, 1987 CanLII 88 (SCC), [1987] 1 SCR 313), this Court held that the freedom of association guaranteed under s. 2(*d*) of the *Canadian Charter of Rights and Freedoms* did not protect the right to collective bargaining or to strike. Twenty years later, in *Health Services and Support — Facilities Subsector Bargaining Assn. v. British Columbia*, 2007 SCC 27 (CanLII), [2007] 2 SCR 391, this Court held that s. 2(*d*) protects the right of employees to engage in a meaningful process of collective bargaining. The rights were further enlarged in *Ontario (Attorney General) v. Fraser*, 2011 SCC 20 (CanLII), [2011] 2 SCR 3, where the Court accepted that a meaningful process includes employees' rights to join together to pursue workplace goals, to make collective representations to the employer, and to have those representations considered in good faith, including having a means of recourse should the employer not bargain in good faith. And, most recently, in *Mounted Police Association of Ontario v. Canada (Attorney General)*, 2015 SCC 1 (CanLII), [2015] 1 SCR 3, the Court recognized that a process of collective bargaining could not be meaningful if employees lacked the independence and choice to determine and pursue their collective interests. Clearly the arc bends increasingly towards workplace justice.

[2] The question in this appeal is whether a prohibition on designated employees participating in strike action for the purpose of negotiating the terms and conditions of their employment amounts to a substantial interference with their right to a meaningful process of collective bargaining and, as a result, violates s. 2(*d*) of the *Charter*. The question of whether other forms of collective work stoppage are protected by s. 2(*d*) of the *Charter* is not at issue here.

[3] The conclusion that the right to strike is an essential part of a meaningful collective bargaining process in our system of labour relations is supported by history, by jurisprudence, and by Canada's international obligations. As Otto Kahn-Freund and Bob Hepple recognized:

> The power to withdraw their labour is for the workers what for management is its power to shut down production, to switch it to different purposes, to transfer it to different places. A legal system which suppresses the freedom to strike puts the workers at the mercy of their employers. This — in all its simplicity — is the essence of the matter.
>
> (*Laws Against Strikes* (1972), at p. 8)

The right to strike is not merely derivative of collective bargaining, it is an indispensable component of that right. It seems to me to be the time to give this conclusion constitutional benediction.

[4] This applies too to public sector employees. Those public sector employees who provide essential services undoubtedly have unique functions which may argue for a less disruptive mechanism when collective bargaining reaches an impasse, but they do not argue for no mechanism at all. Because Saskatchewan's legislation abrogates the right to strike for a number of employees and provides no such alternative mechanism, it is unconstitutional.

(…)

[32] Given the fundamental shift in the scope of s. 2(*d*) since the *Alberta Reference* was decided, the trial judge was entitled to depart from precedent and consider the issue in accordance with this Court's revitalized interpretation of s. 2(*d*): *Canada (Attorney General) v. Bedford*, 2013 SCC 72 (CanLII), [2013] 3 SCR 1101, at para. 42.

[33] Dickson C.J.'s dissenting reasons in the *Alberta Reference* were influential in the development of the more "generous approach" in the recent jurisprudence. Recognizing that association "has always been vital as a means of protecting the essential needs and interests of working people" (at p. 368), and that Canada's international human rights obligations required protection for both the formation and essential activities of labour unions, including collective bargaining and the freedom to strike, Dickson C.J. concluded that "effective constitutional protection of the associational interests of employees in the collective bargaining process requires concomitant protection of their freedom to withdraw . . . their services [collectively], subject to s. 1 of the *Charter*" (at p. 371). (See also *Perrault v. Gauthier* (1898), 1898 CanLII 37 (SCC), 28 SCR 241, at p. 256, and *Canadian Pacific Railway Co. v. Zambri*, 1962 CanLII 11 (SCC), [1962] SCR 609, at pp. 618 and 621.)

[34] His views are supported by the history of strike activity in Canada and globally.

(…)

[43] As this Court noted in *Health Services*, the "unprecedented number of strikes, caused in large part by the refusal of employers to recognize unions and to bargain collectively, led to governments adopting the American *Wagner Act* model of legislation" (para. 54). In implementing statutorily protected bargaining rights, modern labour relations legislation was "designed to secure a greater measure of industrial peace to the public by encouraging collective bargaining and conciliation procedures rather than strikes as a method of resolving industrial disputes" (*Gagnon v. Foundation Maritime Ltd.*, 1961 CanLII 69 (SCC), [1961] SCR 435, at pp. 443-44, per Ritchie J.).

[44] Modern labour relations legislation in Canada accordingly limited certain forms of strike activities and replaced the freedom to collectively engage in the withdrawal of services with statutorily protected rights to organize and engage in collective bargaining. As Judy Fudge and Eric Tucker noted, this model gave workers collective bargaining protection as a trade-off for limitations imposed on the freedom to strike:

> The loss of the freedom to strike for recognition was accompanied by a certification procedure that enabled employees to obtain union representation through a democratic process, and also imposed on employers a duty to recognize and to bargain in good faith with certified unions. The loss of the freedom to strike during the life of a collective agreement came with a right to enforce the terms of that agreement through binding arbitration. And, of course, the postponement of strikes until after conciliation . . . also came with a statutory freeze on terms and conditions. Finally, the new regime also gave workers a right to strike in the Hohfeldian sense, by prohibiting employers from terminating the contract of employment merely because the worker was on strike. The scope of the right to resume employment varies from jurisdiction to jurisdiction, but it protects striking workers' jobs in most situations. [p. 350]

[45] As George W. Adams writes, "All statutes have a policy commitment to the postponement of the reciprocal rights of lockout and strike until the exhaustion of all settlement mechanisms" (¶ 1.250). The trade-off in the Wagner labour relations model, limiting the ability to strike in favour of an emphasis on negotiated solutions for workplace issues, remains at the heart of labour relations in Canada. That is not to say it is the only model available, but it is the prevailing model in this country and the one under the s. 2(*d*) microscope in this case.

(…)

[51] The preceding historical account reveals that while strike action has variously been the subject of legal protections and prohibitions, the ability of employees to withdraw their labour in concert has long been essential to meaningful collective bargaining. Protection under s. 2(*d*), however, does not depend solely or primarily on the historical/legal pedigree of the right to strike. Rather, the right to strike is constitutionally protected because of its crucial role in a meaningful process of collective bargaining.

(…)

[53] In *Health Services*, this Court recognized that the *Charter* values of "[h]uman dignity, equality, liberty, respect for the autonomy of the person and the enhancement of democracy" supported protecting the right to a meaningful process of collective bargaining within the scope of s. 2(*d*) (para. 81). And, most recently, drawing on these same values, in *Mounted Police* it confirmed that protection for a meaningful process of collective bargaining requires that employees have the ability to pursue their goals and that, at its core, s. 2(*d*) aims

> to protect the individual from "state-enforced isolation in the pursuit of his or her ends" . . . . The guarantee functions to protect individuals against more powerful entities. By banding together in the pursuit of common goals, individuals are able to prevent more powerful entities from thwarting their legitimate goals and desires. In this way, the guarantee of freedom of association empowers vulnerable groups and helps them work to right imbalances in society. It protects marginalized groups and makes possible a more equal society. [para. 58]

[54] The right to strike is essential to realizing these values and objectives through a collective bargaining process because it permits workers to withdraw their labour in concert when collective bargaining reaches an impasse. Through a strike, workers come together to participate directly in the process of determining their wages, working conditions and the rules that will govern their working lives (Fudge and Tucker, at p. 334). The ability to strike thereby allows workers, through collective action, to refuse to work under imposed terms and conditions. This collective action at the moment of impasse is an affirmation of the dignity and autonomy of employees in their working lives.

[55] Striking — the "powerhouse" of collective bargaining — also promotes equality in the bargaining process: England, at p. 188. This Court has long recognized the deep inequalities that structure the relationship between employers and employees, and the vulnerability of employees in this context. In the *Alberta Reference*, Dickson C.J. observed that

> [t]he role of association has always been vital as a means of protecting the essential needs and interests of working people. Throughout history, workers have associated to overcome their vulnerability as individuals to the strength of their employers. [p. 368]

And this Court affirmed in *Mounted Police* that

> ... s. 2(*d*) functions to prevent individuals, who alone may be powerless, from being overwhelmed by more powerful entities, while also enhancing their strength through the exercise of collective power. Nowhere are these dual functions of s. 2(*d*) more pertinent than in labour relations. Individual employees typically lack the power to bargain and pursue workplace goals with their more powerful employers. Only by banding together in collective bargaining associations, thus strengthening their bargaining power with their employer, can they meaningfully pursue their workplace goals.
>
> The right to a meaningful process of collective bargaining is therefore a necessary element of the right to collectively pursue workplace goals in a meaningful way . . . . [The] process of collective bargaining will not be meaningful if it denies employees the power to pursue their goals. [paras. 70-71]

Judy Fudge and Eric Tucker point out that it is "the possibility of the strike which enables workers to negotiate with their employers on terms of approximate equality" (p. 333). Without it, "bargaining risks being inconsequential — a dead letter" (Prof. Michael Lynk, "Expert Opinion on Essential Services", at par. 20; A.R., vol. III, at p. 145).

[56] In their dissent, my colleagues suggest that s. 2(*d*) should not protect strike activity as part of a right to a meaningful process of collective bargaining because "true workplace justice looks at the interests of all implicated parties" (para. 125), including employers. In essentially attributing equivalence between the power of employees and employers, this reasoning, with respect, turns labour relations on its head, and ignores the fundamental power imbalance which the entire history of modern labour legislation has been scrupulously devoted to rectifying. It drives us inevitably to Anatole France's aphoristic fallacy: "The law, in its majestic equality, forbids the rich as well as the poor to sleep under bridges, to beg in the streets, and to steal bread."

[57] Strike activity itself does not guarantee that a labour dispute will be resolved in any particular manner, or that it will be resolved at all. And, as the trial judge recognized, strike action has the potential to place pressure on *both* sides of a dispute to engage in good faith negotiations. But what it does permit is the employees' ability to engage in negotiations with an employer on a more equal footing (see *Williams v. Aristocratic Restaurants (1947) Ltd.*, 1951 CanLII 24 (SCC), [1951] SCR 762, at p. 780; *Mounted Police*, at paras. 70-71).

[58] Moreover, while the right to strike is best analyzed through the lens of freedom of association, expressive activity in the labour context is directly related to the *Charter*-protected right of workers to associate to further common workplace goals under s. 2(*d*) of the *Charter*: *Fraser*, at para. 38; *Alberta (Information and Privacy Commissioner)*, at para. 30. Strike action "bring[s the] debate on the labour conditions with an employer into the public realm": *Alberta (Information and Privacy Commissioner)*, at para. 28. Cory J. recognized this dynamic in *United Nurses of Alberta v. Alberta (Attorney General)*, 1992 CanLII 99 (SCC), [1992] 1 SCR 901:

> Often it is only by means of a strike that union members can publicize and emphasize the merits of their position as they see them with regard to the issues in dispute. It is essential that both the labour and management side be able to put forward their position so the public fully understands the issues and can determine which side is worthy of public support. Historically, to put forward their position, management has had far greater access to the media than have the unions. At times unions had no alternative but to take strike action and by means of peaceful picketing put forward their position to the public. This is often the situation today. [p. 916]

[59] As Dickson C.J. observed, "[t]he very nature of a strike, and its *raison d'être*, is to influence an employer by joint action which would be ineffective if it were carried out by an individual" (*Alberta Reference*, at p. 371).

[60] Alternative dispute resolution mechanisms, on the other hand, are generally not associational in nature and may, in fact, reduce the effectiveness of collective bargaining processes over time: Bernard Adell, Michel Grant and Allen Ponak, *Strikes in Essential Services* (2001), at p. 8. Such mechanisms can help avoid the negative consequences of strike action in the event of a bargaining impasse, but as Dickson C.J. noted in *RWDSU v. Saskatchewan*, 1987 CanLII 90 (SCC), [1987] 1 SCR 460, they do not, in the same way, help to realize what is protected by the values and objectives underlying freedom of association:

> . . . as I indicated in the *Alberta Labour Reference*, the right to bargain collectively and therefore the right to strike involve more than purely economic interests of workers . . . . [A]s yet, it would appear that Canadian legislatures have not discovered an alternative mode of industrial dispute resolution which is as sensitive to the associational interests of employees as the traditional strike/lock-out mechanism . . . . [pp. 476-77]

That is why, in the *Alberta Reference*, Dickson C.J. dealt with alternative dispute resolution mechanisms not as part of the scope of s. 2(*d*), but as part of his s. 1 analysis: pp. 374-75.

[61] The ability to engage in the collective withdrawal of services in the process of the negotiation of a collective agreement is therefore, and has historically been, the "irreducible minimum" of the freedom to associate in Canadian labour relations (Paul Weiler, *Reconcilable Differences: New Directions in Canadian Labour Law* (1980), at p. 69).

[62] Canada's international human rights obligations also mandate protecting the right to strike as part of a meaningful process of collective bargaining. These obligations led Dickson C.J. to observe that

> there is a clear consensus amongst the [International Labour Organization] adjudicative bodies that [*Convention (No. 87) concerning freedom of association and protection of the right to organize*, 68 U.N.T.S. 17 (1948)] goes beyond merely protecting the formation of labour unions and provides protection of their essential activities — that is of collective bargaining and the freedom to strike. [*Alberta Reference*, at p. 359]

[63] At the time of the *Alberta Reference*, Dickson C.J.'s reliance on Canada's commitments under international law did not attract sufficient collegial support to lift his views out of their dissenting status, but his approach has more recently proven to be a magnetic guide.

[64] LeBel J. confirmed in *R. v. Hape*, 2007 SCC 26 (CanLII), [2007] 2 SCR 292, that in interpreting the *Charter*, the Court "has sought to ensure consistency between its interpretation of the *Charter*, on the one hand, and Canada's international obligations and the relevant principles of international law, on the other": para. 55. And this Court reaffirmed in *Divito v. Canada (Public Safety and Emergency Preparedness)*, 2013 SCC 47 (CanLII), [2013] 3 SCR 157, at para. 23, "the *Charter* should be presumed to provide at least as great a level of protection as is found in the international human rights documents that Canada has ratified".

[65] Given this presumption, Canada's international obligations clearly argue for the recognition of a right to strike within s. 2(*d*). Canada is a party to two instruments which explicitly protect the right to strike. Article 8(1) of the *International Covenant on Economic, Social and Cultural Rights*, 993 U.N.T.S. 3, to which Canada acceded in May 1976, provides that the "States Parties to the present Covenant undertake to ensure . . . (*d*) *the right to strike, provided that it is exercised in conformity with the laws of the particular country*". (See also affidavit of Prof. Patrick Macklem (Expert Report), sworn December 21, 2010.) In Dickson C.J.'s view, the qualification that the right had to be exercised in conformity with domestic law appeared to allow for the regulation of the right, but not its legislative abrogation (*Alberta Reference*, at p. 351, citing *Re Alberta Union of Provincial Employees and the Crown in Right of Alberta* (1980), 1980 CanLII 1108 (AB KB), 120 D.L.R. (3d) 590 (Alta. Q.B.), at p. 597; see also Hepple, at p. 138).

[66] In addition, in 1990, just over two years after the *Alberta Reference* was decided, Canada signed and ratified the *Charter of the Organization of American States*, Can. T.S. 1990 No. 23. Article 45(c) states:

> Employers and workers, both rural and urban, have the right to associate themselves freely for the defense and promotion of their interests, *including the right to collective bargaining and the workers' right to strike*, and recognition of the juridical personality of associations and the protection of their freedom and independence, all in accordance with applicable laws;

[67] Besides these explicit commitments, other sources tend to confirm the protection of the right to strike recognized in international law. Canada is a party to the International Labour Organization (ILO) *Convention (No. 87) concerning freedom of association and protection of the right to organize*, ratified in 1972. Although *Convention No. 87* does not explicitly refer to the right to strike, the ILO supervisory bodies, including the Committee on Freedom of Association and the Committee of Experts on the Application of Conventions and Recommendations, have recognized the right to strike as an indissociable corollary of the right of trade union association that is protected in that convention: see Pierre Verge and Dominic Roux, "L'affirmation des principes de la liberté syndicale, de la négociation collective et du droit de grève selon le droit international et le droit du travail canadien: deux solitudes?", in Pierre Verge, ed., *Droit international du travail: Perspectives canadiennes* (2010), 437, at p. 460; Janice R. Bellace, "The ILO and the right to strike" (2014), 153 *Int'l Lab. Rev.* 29, at p. 30. Striking, according to the Committee of Experts, is "one of the essential means available to workers and their organizations for the promotion and protection of their economic and social interests": *Freedom of Association and Collective Bargaining* (1994), at para. 147; Jean-Michel Servais, "ILO Law and the Right to Strike" (2009-2010), 15 *C.L.E.L.J.* 147, at p. 150.

[68] Under the *International Covenant on Economic, Social and Cultural Rights* signatory states are not permitted to take "legislative measures which would prejudice, or apply the law in such a manner as would prejudice, the guarantees provided for in [*Convention No. 87*]": Article 8(3) of the *ICESCR*. The principles relating to the right to strike were summarized by the Committee on Freedom of Association as follows:

> **521.** The Committee has always recognized the right to strike by workers and their organizations as a legitimate means of defending their economic and social interests.
>
> **522.** The right to strike is one of the essential means through which workers and their organizations may promote and defend their economic and social interests.
>
> **523.** The right to strike is an intrinsic corollary to the right to organize protected by Convention No. 87.
>
> ...
>
> **526.** The occupational and economic interests which workers defend through the exercise of the right to strike do not only concern better working conditions or collective claims of an occupational nature, but also the seeking of solutions to economic and social policy questions and problems facing the undertaking which are of direct concern to the workers. [References omitted.]

(*ILO, Freedom of Association: Digest of decisions and principles of the Freedom of Association Committee of the Governing Body of the ILO* (5th rev. ed. 2006))

[69] Though not strictly binding, the decisions of the Committee on Freedom of Association have considerable persuasive weight and have been favourably cited and widely adopted by courts, tribunals and other adjudicative boards around the world, including our Court: Lynk, at para. 9; *Health Services*, at para. 76; *Alberta Reference*, at pp. 354-55, per Dickson C.J. The relevant and persuasive nature of the Committee on Freedom of Association jurisprudence has developed over time through custom and practice and, within the ILO, it has been the leading interpreter of the contours of the right to strike: Bellace, at p. 62. See also Roy J. Adams, "The Supreme Court, Collective Bargaining and International Law: A Reply to Brian Langille" (2008), 14 *C.L.E.L.J.* 317, at p. 321; Neville Rubin, in consultation with Evance Kalula and Bob Hepple, eds., *Code of International Labour Law: Law, Practice and Jurisprudence*, vol. I, *Essentials of International Labour Law* (2005), at p. 31.

[70] Canada is also a party to the *International Covenant on Civil and Political Rights*, 999 U.N.T.S. 171 (*ICCPR*), which incorporates *Convention No. 87* and the obligations it sets out: see Article 22(3); Tonia Novitz, "Connecting Freedom of Association and the Right to Strike: European Dialogue with the ILO and its Potential Impact" (2009-2010), 15 *C.L.E.L.J.* 465, at p. 472; Roy J. Adams, at p. 324.

(…)

[75] This historical, international, and jurisprudential landscape suggests compellingly to me that s. 2(*d*) has arrived at the destination sought by Dickson C.J. in the *Alberta Reference*, namely, the conclusion that a meaningful process of collective bargaining requires the ability of employees to participate in the collective withdrawal of services for the purpose of pursuing the terms and conditions of their employment through a collective agreement. Where good faith negotiations break down, the ability to engage in the collective withdrawal of services is a necessary component of the process through which workers can continue to participate meaningfully in the pursuit of their collective workplace goals. In this case, the suppression of the right to strike amounts to a substantial interference with the right to a meaningful process of collective bargaining.

[76] In their dissenting reasons, however, my colleagues urge deference to the legislature in interpreting the scope of s. 2(*d*). This Court has repeatedly held that the rights enumerated in the *Charter* should be interpreted generously: *Hunter v. Southam Inc.*, 1984 CanLII 33 (SCC), [1984] 2 SCR 145, at p. 156; *R. v. Big M Drug Mart Ltd.*, 1985 CanLII 69 (SCC), [1985] 1 SCR 295, at p. 344. It is not clear to me why s. 2(*d*) should be interpreted differently: *Health Services*, at para. 26; *R. v. Advance Cutting & Coring Ltd.*, 2001 SCC 70 (CanLII), [2001] 3 SCR 209, at para. 162; *Mounted Police*, at para. 47. In the context of constitutional adjudication, deference is a conclusion, not an analysis. It certainly plays a role in s. 1, where, if a law is justified as proportionate, the legislative choice is maintained. But the whole purpose of *Charter* review is to assess a law for constitutional compliance. If the touchstone of *Charter* compliance is deference, what is the point of judicial scrutiny?

[77] This brings us to the test for an infringement of s. 2(*d*). The right to strike is protected by virtue of its unique role in the collective bargaining process. In *Health Services*, this Court established that s. 2(*d*) prevents the state from substantially interfering with the ability of workers, acting collectively through their union, to exert meaningful influence over their working conditions through a process of collective bargaining (para. 90). And in *Mounted Police*, McLachlin C.J. and LeBel J. confirmed that

> [t]he balance necessary to ensure the meaningful pursuit of workplace goals can be disrupted in many ways. Laws and regulations may restrict the subjects that can be discussed, or impose arbitrary outcomes. They may ban recourse to collective action by employees without adequate countervailing protections, thus undermining their bargaining power. . . . Whatever the nature of the restriction, *the ultimate question to be determined is whether the measures disrupt the balance between employees and employer that s. 2(d) seeks to achieve, so as to substantially interfere with meaningful collective bargaining* . . . . [Emphasis added; para. 72.]

[78] The test, then, is whether the legislative interference with the right to strike in a particular case amounts to a substantial interference with collective bargaining. The *PSESA* demonstrably meets this threshold because it prevents designated employees from engaging in *any* work stoppage as part of the bargaining process. It must therefore be justified under s. 1 of the *Charter*.

[79] The maintenance of essential public services is self-evidently a pressing and substantial objective, as the Unions acknowledge. The Unions also accept the trial judge's further conclusion that the government's objective — ensuring the continued delivery of essential services — is rationally connected to the "basic structure of the legislation, including the sanctions imposed on employees and their unions to ensure compliance with its provisions".

[80] The determinative issue here, in my view, is whether the means chosen by the government are minimally impairing, that is, "carefully tailored so that rights are impaired no more than necessary" (*RJR-MacDonald Inc. v. Canada (Attorney General)*, 1995 CanLII 64 (SCC), [1995] 3 SCR 199, at para. 160).

[81] The trial judge concluded that the provisions of the *PSESA* "go beyond what is reasonably required to ensure the uninterrupted delivery of essential services during a strike". I agree. The *unilateral* authority of public employers to determine whether and how essential services are to be maintained during a work stoppage with no adequate review mechanism, and the absence of a meaningful dispute resolution mechanism to resolve bargaining impasses, justify the trial judge's conclusion that the *PSESA* impairs the s. 2(*d*) rights more than is necessary.

[82] In *Canadian Union of Public Employees, Local 301 v. Montreal (City)*, 1997 CanLII 386 (SCC), [1997] 1 SCR 793, L'Heureux-Dubé J. explained why public sector strike action engages singular considerations:

> When "public" employees strike, the pressure exerted on the employer is not largely financial, as in the private sector, but rather arises from the disruption of services upon which society depends for the daily activities of its members. While consumers may simply go to another source for goods and services provided by private enterprise, alternatives to the services targeted by the special regimes may be unavailable or very difficult and expensive to obtain. [para. 32]

[83] That is why the trial judge accepted that "the principle that it is unacceptable to risk the health and safety of others as a means to resolve a public sector collective bargaining dispute is well established in Canada".

[84] But it is important to keep in mind Dickson C.J.'s admonition in the *Alberta Reference* that "essential services" be properly interpreted:

> It is ... necessary to define "essential services" in a manner consistent with the justificatory standards set out in s. 1. The logic of s. 1 in the present circumstances requires that an essential service be one the interruption of which would threaten serious harm to the general public or to a part of the population. In the context of an argument relating to harm of a non-economic nature I find the decisions of the Freedom of Association Committee of the I.L.O. to be helpful and persuasive. These decisions have consistently defined an essential service as a service "whose interruption would endanger the life, personal safety or health of the whole or part of the population" (*Freedom of Association: Digest of Decisions and Principles of the Freedom of Association Committee of the Governing Body of the I.L.O.*, *supra*). In my view, and without attempting an exhaustive list, persons essential to the maintenance and administration of the rule of law and national security would also be included within the ambit of essential services. *Mere inconvenience to members of the public does not fall within the ambit of the essential services justification for abrogating the freedom to strike*. [Emphasis added; pp. 374-75.]

[85] In other words, the fact that a service is provided exclusively through the public sector does not inevitably lead to the conclusion that it is properly considered "essential". In some circumstances, the public may well be deprived of a service as a result of strike action without being deprived of any essential service at all that would justifiably limit the ability to strike during negotiations. As Ball J. wrote:

> ... all of the services provided by public sector workers are not essential. It cannot be credibly argued, for example, that the services provided by every employee of every governmental ministry, Crown corporation and agency, every city, town and village, and every educational institution, are so essential that their discontinuance would jeopardize the health and safety of the community. Can it be said that the community would be at risk if employees at casinos and liquor stores in Saskatchewan decided to withdraw their services in support of higher wages? [para. 96]

[86] This need for demarcated limits on both the right of essential services employees to strike and, concomitantly, on the extent to which services may justifiably be limited as "essential", is reflected too in international law. As the trial judge noted:

> International law also recognizes the necessity of limitations on the right to strike of essential service workers. . . . The jurisprudence under ILO Convention No. 87, the ICSECR [*sic*] and the ICCPR has been consistent. As expressed by Prof. Patrick Macklem:
>
> > Each of these instruments has been interpreted as enshrining the right to strike, and their respective supervisory bodies have insisted that the right to strike may be restricted or prohibited:
> >
> > (a) in the public service only for public servants exercising authority in the name of the state;
> >
> > (b) in essential services in the strict sense of the term (that is, services the interruption of which would endanger the life, personal safety or health of the whole or part of the population); or
> >
> > (c) in the event of an acute national emergency and for a limited period of time.
>
> (Paragraph 127, citing affidavit of Patrick Macklem sworn December 21, 2010.)

See also Lynk, at paras. 19-20; Verge and Roux, at pp. 461-62. And within the general category of essential services, the ILO has recognized that "certain classes of personnel . . . should not be deprived of the right to strike, because the interruption of their functions does not in practice affect life, personal safety or health": Servais, at p. 154.

[87] Under the *PSESA*, however, the categories of workers whose right to strike may be abrogated because they provide essential services is subject to the employer's unilateral discretion. The scheme requires a public employer and a trade union to first attempt to negotiate the terms of an essential services agreement. Section 6(2) of the *Act* contemplates that the employer must "advise the trade union" of the services it considers to be essential within the meaning of the *Act*. And where the employer is the Government of Saskatchewan, the prescribed essential services have been identified by regulation, without any room for further discussion about what constitutes an essential service. It is, as a result, not even clear that the scheme necessarily contemplates that the designation of certain services as essential will be the subject of negotiation under an agreement.

[88] Moreover, s. 7(2) of the *PSESA* states that under an essential services agreement, the number of employees within each classification "is to be determined without regard to the availability of other persons to provide essential services". As the trial judge found:

> The apparent purpose of s. 7(2) is to enable managers and non-union administrators to avoid the inconvenience and pressure that would ordinarily be brought to bear by a work stoppage. Yet if qualified personnel are available to deliver requisite services, it should not matter if they are managers or administrators. If anything s. 7(2) works at cross purposes to ensuring the uninterrupted delivery of essential services during a work stoppage. [para. 192]

[89] And in the event that an agreement cannot be reached, s. 9(2) gives a public employer the unilateral authority to dictate whether and how essential services will be maintained, including the authority to determine the classifications of employees who must continue to work during the work stoppage, the number and names of employees within each classification, and, for public employers other than the Government of Saskatchewan, the essential services that are to be maintained. As the trial judge found, "[o]f the unilateral designations made by public employers under s. 9(2) only one, that of the number of employees required to work, is subject to review by the [Saskatchewan Labour Relations Board]." There is no jurisdiction for the Board to even *consider* significant dimensions of an employer's unilateral designation with regard to the maintenance of essential services, such as whether any particular service is essential, or which job classifications involve the delivery of genuinely essential services.

[90] There is no evidence to support Saskatchewan's position that the objective of ensuring the continued delivery of essential services requires unilateral rather than collaborative decision-making authority. And its view that public employers can be relied upon to make fair decisions has the potential to sacrifice the right to a meaningful process of collective bargaining on the altar of aspirations. The history of barriers to collective bargaining over the past century represents a compelling reality check to such optimism.

[91] And even where an employee has been prohibited from participating in strike activity, the *PSESA* does not tailor his or her responsibilities to the performance of essential services alone. Section 18(1)(a) of the *PSESA* requires that in the event of a work stoppage, all essential services employees must continue "the duties of [their] employment with the public employer in accordance with the terms and conditions of the last collective bargaining agreement" and must not fail to continue those duties "without lawful excuse" (s. 18(2)). Requiring those affected employees to perform both essential *and* non-essential work during a strike action undercuts their ability to participate meaningfully in and influence the process of pursuing collective workplace goals.

[92] All this is in addition to the absence of an impartial and effective dispute resolution process to challenge public employer designations under s. 9(2) of the legislation, a particular concern in light of the significant definitional latitude given to public employers. As noted, the ILO's Committee on Freedom of Association defined essential services as those needed to prevent a "clear and imminent threat to the life, personal safety or health of the whole or part of the population" (*Freedom of Association*, at para. 581). The definition of "essential services" under the *PSESA* requires basic judgments to be made about when life, health, safety, or environmental concerns, among others, justify essential services designation. These are fundamental questions, yet all are permitted to be answered unilaterally by the employer under the *Act* with no access to an effective dispute resolution mechanism for reviewing disputed employer designations.

[93] Nor is there any access to a meaningful alternative mechanism for resolving bargaining impasses, such as arbitration. Paul Weiler persuasively explained why such an alternative is crucial for essential services employees:

> If we pull all the teeth of a union by requiring provision of imperative public safety services, such that any remaining strike option does not afford the union significant bargaining leverage, then I believe the union should have access to arbitration at its option. [Emphasis deleted; p. 237.]

[94] Not surprisingly, Dickson C.J. was alive to the profound bargaining imbalance the union inherits when the removal of the right to strike is not accompanied by a meaningful mechanism for resolving collective bargaining disputes:

> Clearly, if the freedom to strike were denied and no effective and fair means for resolving bargaining disputes were put in its place, employees would be denied any input at all in ensuring fair and decent working conditions, and labour relations law would be skewed entirely to the advantage of the employer. It is for this reason that legislative prohibition of freedom to strike must be accompanied by a mechanism for dispute resolution by a third party. I agree with the Alberta International Fire Fighters Association at p. 22 of its factum that "It is generally accepted that employers and employees should be on an equal footing in terms of their positions in strike situations or at compulsory arbitration where the right to strike is withdrawn". *The purpose of such a mechanism is to ensure that the loss in bargaining power through legislative prohibition of strikes is balanced by access to a system which is capable of resolving in a fair, effective and expeditious manner disputes which arise between employees and employers*. [Emphasis added.]

(Alberta Reference, at p. 380)

[95] The trial judge compared the *PSESA* with other Canadian essential services labour relations schemes and was struck by how uniquely restrictive the PSESA was:

> ... no other essential services legislation in Canada comes close to prohibiting the right to strike as broadly, and as significantly, as the [*PSESA*]. No other essential services legislation is as devoid of access to independent, effective dispute resolution processes to address employer designations of essential service workers and, where those designations have the effect of prohibiting meaningful strike action, an independent, efficient, overall dispute mechanism....
>
> ...
>
> Canadian legislation prohibiting strikes by firefighters and police officers, where the level of essentiality is very high, invariably provides compensatory access to arbitration to resolve collective bargaining disputes. The same is true for legislation prohibiting strikes by hospital workers. Although that legislation contains a variety of approaches for determining when and how access should be provided, the point is that it is invariably provided.
>
> There is a pragmatic reason why "no strike" legislation almost always provides for access to independent, effective dispute resolution processes: mechanisms of that kind can operate as a safety valve against an explosive buildup of unresolved labour relations tensions.

[96] Given the breadth of essential services that the employer is entitled to designate unilaterally without an independent review process, and the absence of an adequate, impartial and effective alternative mechanism for resolving collective bargaining impasses, there can be little doubt that the trial judge was right to conclude that the scheme was not minimally impairing. Quite simply, it impairs the s. 2(*d*) rights of designated employees much more widely and deeply than is necessary to achieve its objective of ensuring the continued delivery of essential services.

[97] *The Public Service Essential Services Act* is therefore unconstitutional.

7.2 Questions

1. The right to strike in Canada is tightly controlled under labour relations legislation. It is not permitted either as a means of forcing an employer to recognize a union (recognition strikes), or during the currency of a collective bargaining relationship (enforcement strikes). Indeed, it is typically only available to workers during a single period of time following the conclusion of a collective agreement, and even then, it is heavily regulated by labour boards. (see e.g. Judy Fudge & Eric Tucker, "The Freedom to Strike in Canada: A Brief Legal History" (2009) 15:2 Canadian Lab & Emp LJ 333.) Are these common restrictions on strike action justifiable and permissible under section 2(d)? Do they amount to a breach of section 2(d) that is saved by section 1? Or do they not amount to a breach of section 2(d) at all? Why or why not?
2. Under Canadian labour legislation, the decision of a group of employees to leave work in concert for reasons unrelated to achieving collective bargaining goals – such as a political protest – is nevertheless deemed a strike, which can be restrained by labour boards. Is this type of restriction a breach of section 2(d), and if so, is it justified under section 1? (see Brian Langille, "What is a Strike" (2009) 15:2 Canadian Lab & Emp LJ 355).
3. The Court in Saskatchewan Federation of Labour (SFL) described the test for a breach of 2(d) in the context of strike action as "whether the legislative interference with the right to strike in a particular case amounts to a substantial interference with collective bargaining". Does this mean that the right to strike is, in a meaningful sense, derived from the process of collective bargaining?
4. The Court also observed that while strike action exists outside of the Wagner Act model familiar in Canada, the Wagner Act model "is the prevailing model in this country and the one under the s. 2(d) microscope in this case". To what extent is the right to strike, as described in SFL, available to those who cannot access the majoritarian collective bargaining rights available under labour statutes? Can such an important aspect of a fundamental freedom be limited to those who are able to obtain access to certification under labour relations legislation?
5. Looking back through the history of the Court's jurisprudence, are there other ways to justify protection for the right to strike, that would not be directly tethered to the Wagner Act model of collective bargaining? And if so, would such approaches open up the door to protection for strike action for those who are not able to obtain certification through Canadian labour relations statutes? (see Steven Barrett & Benjamin Oliphant, "The Trilogy Strikes Back: Reconsidering Constitutional Protection for the Freedom to Strike" (2013) 45:2 Ottawa L Rev 201).

8 The modern "substantial interference" test under 2(D)

8.1 Excerpt from *Société des casinos du Québec inc. v. Association des cadres de la Société des casinos du Québec*, 2024 SCC 13, paras 21-44

The Association des cadres de la Société des casinos du Quebec challenged s 1(*l*)(1) of the Quebec *Labour Code,* which excluded first level managers from Quebec's statutory labour relations regime. The Association had applied to the Administrative Labour Tribunal (ALT) to be recognized as a certified union representing first-level managers at a Montreal casino. The ALT held that the exclusion unjustifiably infringed s 2(d). This decision was overturned by the Quebec Superior Court, finding that the claim was for positive rights, thus triggering the test from *Dunmore*, which it held was not met. The Court of Appeal restored the ALT's decision, prompting an appeal to the Supreme Court of Canada. A majority of that Court held that *Dunmore* was not overturned by either *MPAO* or *Fraser*, meaning there was just one test for s 2(d) claims – positive or negative. In applying that test, the majority held that the exclusion was not intended to interfere with freedom of association for managers, and the Association failed to show that the result of the exclusion constituted a substantial interference with section 2(d). Chief Justice Wagner and Justice Côté in their concurring opinion held that the *Dunmore* framework is better suited for positive claims, maintaining a distinction in how courts should approach positive and negative freedom of association claims. Justice Rowe agreed that the *Dunmore* framework should still apply to positive claims distinctly from negative ones.

> Jamal J.
>
> (1) A Review of This Court's Jurisprudence
>
> [The Court provides summaries of the *Dunmore*, *Health Services*, *Fraser*, *MPAO*, *Meredith*, and *Sask Federation of Labour* cases excerpted above.]
>
> (g) *Summary*
>
> [33] To sum up, this Court's s. 2(d) jurisprudence reveals that the Court has consistently applied a two-part framework that examines whether activities fall within the scope of s. 2(d) and whether government action has substantially interfered with those activities, in purpose or effect. This Court has also highlighted that its s. 2(d) jurisprudence since *Dunmore* should be viewed as a consistent body of case law.

[34] *Dunmore* was not overturned by this Court's decisions in *Mounted Police* or *Fraser*. Nor does this Court's jurisprudence create two tests, one for claims seeking positive intervention from the state and another for claims seeking negative protection against state interference. Although the *Dunmore* factors have not been identified and analyzed each time the Court has been asked to determine whether legislation or government action infringed s. 2(d) of the *Charter*, the underlying principles have been consistently reaffirmed. These principles, or *Dunmore* factors, circumscribe the possibility of successfully challenging underinclusive legislation, but they do not constitute a separate test. Rather, they provide guidance to ensure the analysis is focused on determining whether legislation or government action substantially interferes in purpose or effect with the claimant's ability to engage in activities within the scope of s. 2(d).

[35] It is not always necessary to consider each *Dunmore* factor expressly. Sometimes, the state's responsibility in causing the substantial interference is self-evident. Consider, for example, legislation that prohibits a type of associational activity, such as a ban on striking. The *Dunmore* factor of ensuring that the interference is attributable to the state rather than a private actor is still relevant, but it is so self-evident that the interference is attributable to the state that it need not be discussed expressly. In other cases, as Bastarache J. cautioned in *Dunmore*, a court must be careful in evaluating the evidence to disentangle the effects of the impugned legislation or government action from external elements and determine whether the legislation or government action "substantially orchestrates, encourages or sustains the violation" (para. 26).

[36] Nor does *Dunmore* establish a higher threshold for establishing an infringement of s. 2(d) in claims seeking state intervention. In all cases, the threshold for proving an infringement of s. 2(d) is substantial interference. This threshold was first explained in *Dunmore* (at para. 25) and has been consistently applied in this Court's subsequent s. 2(d) jurisprudence (*Health Services*, at paras. 19 and 90; *Fraser*, at paras. 2 and 47; *Mounted Police*, at para. 72; *Meredith*, at paras. 4 and 24-25; *Saskatchewan Federation of Labour*, at paras. 2 and 25).

[37] It may be harder for a claimant to meet their burden of proof when challenging underinclusive legislation or when seeking state intervention since, as noted above, the effects of underinclusive legislation can be hard to disentangle from other factors. As this Court noted in *Dunmore*, it will be in "unique contexts" that underinclusive legislation amounts to substantial interference (para. 22). In all cases, however, the threshold to establish an infringement of s. 2(d) remains substantial interference. A claimant alleging that underinclusive legislation infringes s. 2(d) need not meet an elevated threshold.

(2) Section 2(b) and Section 2(d) of the *Charter* Have Different Frameworks

[38] As noted above, the majority of this Court in *Toronto (City)*, at para. 21, a case involving freedom of expression under s. 2(b) of the *Charter*, had declined to consider and left open whether the *Dunmore* approach to s. 2(d) "remains applicable" after this Court's decisions in *Fraser* and *Mounted Police*. I have addressed why this Court's s. 2(d) jurisprudence already confirms that *Dunmore* remains good law and how this Court built on *Dunmore* in *Fraser* and *Mounted Police*.

[39] It is also useful to highlight briefly the different evolution of the frameworks under ss. 2(b) and 2(d) of the *Charter* to explain why the distinction between positive freedoms and negative rights is not relevant in determining the framework for s. 2(d) claims, even though it has been recently affirmed in *Toronto (City)* in the context of s. 2(b).

[40] At issue in *Toronto (City)* was whether legislation that reduced the number of wards in an ongoing municipal election infringed the electoral candidates' right to freedom of expression under s. 2(b) of the *Charter*. A majority of this Court affirmed the distinction between the tests for positive freedoms and negative rights claims in the context of s. 2(b), citing the Court's earlier decision in *Baier v. Alberta*, 2007 SCC 31, [2007] 2 SCR 673, which had also applied the three *Dunmore* factors under s. 2(b) (*Baier*, at para. 30). In *Toronto (City)*, the majority refined the framework for positive freedoms claims involving freedom of expression, distilling the framework to the single question of whether the "claim [is] grounded in the fundamental *Charter* freedom of expression, such that, by denying access to a statutory platform or by otherwise failing to act, the government has either substantially interfered with freedom of expression, or had the purpose of interfering with freedom of expression" (para. 25).

[41] As a result, in the context of claims under s. 2(b) of the *Charter*, the threshold for proving positive freedom claims is *substantial* interference with freedom of expression (*Toronto (City)*, at para. 25). However, the threshold for negative rights claims involving freedom of expression, as explained in *Irwin Toy Ltd. v. Quebec (Attorney General)*, 1989 CanLII 87 (SCC), [1989] 1 SCR 927, is whether the purpose or effect of the government action merely *restricts* freedom of expression (*Toronto (City)*, at para. 24, citing *Irwin Toy*, at p. 971, and *Baier*, at paras. 27-28 and 45).

[42] In the freedom of association context, by contrast, the threshold for both "positive" and "negative" freedom of association claims is the same: substantial interference (see *Dunmore*, at para. 25; *Health Services*, at paras. 19 and 90; *Fraser*, at paras. 2 and 47; *Mounted Police*, at para. 72; *Meredith*, at paras. 4 and 24-25; *Saskatchewan Federation of Labour*, at paras. 2 and 25). There is not a more stringent threshold for positive rights claims under s. 2(d). For freedom of association claims, the "elevated threshold in the second *Dunmore* factor" (*Toronto (City)*, at para. 25) of substantial interference already applies to all claims involving both positive and negative duties (Fudge, at pp. 545-46 and 550).

[43] Academic commentators have also noted that the standard of breach for a s. 2(d) claim "is strict, and bears little resemblance to the analogous tes[t] for expressive . . . freedom under section 2(b)" (J. Cameron and N. Des Rosiers, "The Right to Protest, Freedom of Expression, and Freedom of Association", in P. Oliver, P. Macklem and N. Des Rosiers, eds., *The Oxford Handbook of the Canadian Constitution* (2017), 737, at p. 749; see also Faraday, at p. 353).

[44] In summary, the frameworks under ss. 2(b) and 2(d) have evolved differently in this Court's jurisprudence. This helps explain why the distinction between positive freedoms and negative rights is not relevant in determining the applicable framework for s. 2(d) claims, even though it has been recently affirmed in the s. 2(b) context.

8.2 Questions

1. The Supreme Court of Canada in *Société des casinos du Québec inc. v. Association des cadres de la Société des casinos du Québec*, 2024 SCC 13 ("**Casinos**") confirmed that the test for a breach of freedom of association under section 2(d), one of "substantial interference", is higher than the test for a breach of freedom of expression under section 2(b). What is the Court's justification for this difference? Are there any other justifications for this difference that the Court did not offer?
2. Leaving aside the labour relations context, can it be said that the Government or legislature should be able to interfere with a person's freedom to join and belong to an association, and participate in its activities, as long as the interference is not "substantial"?

9 The right to not associate

9.1 Excerpts from *Lavigne v. Ontario Public Service Employees Union*, 1991 CanLII 68 (SCC), [1991] 2 SCR 211, per Wilson J., paras 69, 77-100

The claimant in this case was a community college teacher required to pay union dues pursuant to a collective bargaining agreement between the teachers' union and the Council of Regents (the employer). He objected to the union's use of membership dues for activities

unrelated to collective bargaining, including contributions to the NDP. The trial judge found that all provisions in the collective bargaining agreement that required union dues to be paid for non-bargaining related activities were unconstitutional. The Court of Appeal held that the *Charter* did not apply to the Council of Regents and even if it did, s 2(d) was not infringed since the claimant was equally free to associate with others and oppose the union. On appeal to the Supreme Court, the majority opinion , written by La Forest J., held that the *Charter* did apply to the Council and that s 2(d) is infringed when members are compelled to pay union dues to contribute to causes not directly related to collective bargaining. held, however, that the infringement could be justified under s 1 since unions need to be enabled to participate in broader societal debates and enable democracy in the workplace. Justices Wilson and L'Heureux-Dubé, in dissent, held that the *Charter* did not apply to the spending of union dues. If the *Charter* did apply, their opinion held that s 2(d) does not protect the right *not* to associate and even if it were to, such a right would not be infringed since Mr. Lavigne's claim was closely tied to the union's objects. Justice Cory held that the *Charter* did apply but agreed with Justices Wilson and L'Heureux-Dubé's opinion with respect to s 2(d). Justice McLachlin (as she then was) agreed that the Council of Regents was bound by the *Charter*, but found that s 2(d) was not infringed because that section protects the right against enforced ideological conformity and compelled union due payments did not force Mr. Lavigne to associate with the viewpoints to which the union was contributing.

Wilson J

69. The appellant argues that because he is compelled to contribute financially to the Union, he is thereby brought into association with OPSEU against his wishes. Mr. Lavigne maintains that it is this mandatory payment of dues alone which gives rise to a violation of s. 2(*d*) and that the manner in which the Union spends his dues is irrelevant as far as his associational rights are concerned. The respondent Union, on the other hand, argues that the scheme of mandatory dues deduction does not infringe s. 2(*d*). It maintains that s. 2(*d*) does not include a freedom not to associate, but guarantees only a freedom to associate, i.e., to join together collectively. OPSEU also contends that even if s. 2(*d*) does in fact protect the right of individuals not to associate, such a right has not been infringed in the present case. The principal issue raised by this ground of appeal is therefore whether s. 2(*d*) of the *Charter* only protects freedom to associate or whether it also safeguards the right of individuals to refuse to associate.

(…)

77 Hence, it would appear that this Court has been unanimous in finding on more than one occasion and in a variety of contexts that the purpose which s. 2(*d*) is meant to advance is the collective action of individuals in pursuit of their common goals. The lower courts have interpreted this Court's position as being that the *Charter* does not guarantee a freedom not to associate: see *Arlington Crane Service Ltd. v. Ontario (Minister of Labour)* (1988), 1988 CanLII 4802 (ON SC), 67 O.R. (2d) 225 (H.C.), and *Re Pruden Building Ltd. and Construction & General Workers' Union Local 92* (1984), 1984 CanLII 1205 (AB KB), 13 D.L.R. (4th) 584 (Alta. Q.B.).

78 The appellant seeks, however, to limit the scope of what was said in the *Alberta Reference* and its progeny. Mr. Lavigne argues that this Court's conclusion as to the scope of s. 2(*d*) was reached in the context of governmental intrusion upon collective action and that the question whether s. 2(*d*) includes a freedom not to associate has never actually been before the Court. The appellant urges the Court to expand the reach of s. 2(*d*) to include the right not to associate and cites a number of authorities in support of this position.

79 Mr. Lavigne relies on the decision of this Court in *Oil, Chemical and Atomic Workers International Union v. Imperial Oil Ltd.*, 1963 CanLII 44 (SCC), [1963] SCR 584. In that case, provincial law prohibited unions from making any contribution to political parties or political candidates out of the moneys they acquired through dues check-off schemes and required them to issue a declaration indicating their compliance with the legislation in this regard. Mandatory dues deduction and mandatory union membership were agreed upon between the employer and the union and a provision to that effect was incorporated into the collective agreement. When the union failed to make the statutory declaration, Imperial Oil refused to continue to make the deductions. The union then sued the company for the funds. In seeking to justify its actions the union argued that the legislation was *ultra vires* the province of British Columbia because it purported to regulate matters relating to federal elections and fundamental rights both of which were matters of federal rather than provincial jurisdiction under the *Constitution Act, 1867*.

80 In the course of finding that the legislation was in pith and substance in relation to property and civil rights and therefore within the jurisdiction of the provincial legislature, Martland J. remarked at p. 593:

> The *Labour Relations Act* has materially affected the civil rights of individual employees by conferring upon certified trade unions the power to bind them by agreement and the power to make agreements which will compel membership in a union. Such legislation falls within the powers of the Legislature.... The legislation which is under attack in the present proceedings, in my opinion, does nothing more than to provide that the fee paid as a condition of membership in such an entity by each individual employee cannot be expended for a political object which may not command his support. *That individual has been brought into association with the trade union by statutory requirement.* [Emphasis added.]

81 While this comment seems on its face to support Mr. Lavigne's argument, its significance in terms of the present appeal is diminished by the following considerations. Most importantly, the process of characterizing a law for the purposes of division of powers determinations is quite a different exercise from construing a law for purposes of the *Charter*. This point is made unequivocally clear by the decision of this Court in *Big M Drug Mart, supra*, and more recently in *Douglas College*, *supra*. Second, it is clear that what was at issue in *Oil, Chemical* was a "closed shop" rather than an "agency shop" provision. That is to say, the article negotiated between the union and the employer and incorporated into the collective agreement in that case made it a condition of employment that employees actually join the union rather than simply pay the equivalent of union dues. To the extent that this fact influenced the thinking of Martland J., that situation is clearly distinguishable from the present. Mr. Lavigne has not been compelled to become a member of the Union and, indeed, has exercised his prerogative to refrain from doing so.

82 The appellant also relies on the decision of the European Human Rights Commission in *Young, James and Webster v. United Kingdom* (1980), 3 E.H.R.R. 20. In that case a complaint was lodged that a closed shop clause negotiated into a collective agreement violated associational rights as guaranteed by Article 11 of the European Convention on Human Rights. The complainants were dismissed from their employment with British Rail after, the agreement having been ratified by the employer and the bargaining agent, they refused to join the union. The Commission agreed that a violation of the Convention had been established. It is my opinion, however, that *Young, James and Webster* actually provides scanty support for the appellant's position. As was the case in *Oil, Chemical* and unlike the present case, the impugned article of the collective agreement provided for a "closed shop". More crucial is the fact that the Commission expressly refused to base its decision on a right not to associate, a point which is made clear by the Commission's statement at pp. 26-27 that it did "not have to discuss the more general question whether or not the positive freedom guaranteed by Article 11(1) implies also a negative freedom". Indeed, the gist of the decision is that the complainants' positive associational rights were violated because they were prohibited from joining a union of their choosing. That the heart of the decision rested on this footing is made abundantly clear by the following remarks of the Commission at p. 26:

> As regards the individual to whom the rights mentioned in Article 11 are guaranteed, these words imply that a worker must be able to choose the union which in his opinion best protects his interests, *and if he considers that none of the existing trade unions does so effectively, to form together with others a new one*. This is particularly important since unions, as these cases show, may have political affiliations. [Emphasis added.]

83 Finally, Mr. Lavigne relies heavily on American authority in support of his submission as to the reach of s. 2(*d*), and in particular, the decision of the Supreme Court of the United States in *Abood v. Detroit Board of Education*, 431 U.S. 209 (1977). At issue there was the constitutionality of an agency shop provision negotiated in a collective agreement. Like Mr. Lavigne, the appellants in that case contended that the partial expenditure of their money by the union on political causes which they did not support infringed their constitutional rights under the First Amendment. The United States Supreme Court agreed and ordered the union to refund those portions of the dues which were earmarked for political causes.

84 Unlike the other sources upon which the appellant draws for support it is clear that the Supreme Court in *Abood* did indeed recognize a right not to associate. But while *Abood* is by far the strongest authority for the constitutional protection of such a right, this Court must exercise caution in adopting any decision, however compelling, of a foreign jurisdiction. This Court has consistently stated that even although it may undoubtedly benefit from the experience of American and other courts in adjudicating constitutional issues, it is by no means bound by that experience or the jurisprudence it generated. The uniqueness of the *Canadian Charter of Rights and Freedoms* flows not only from the distinctive structure of the *Charter* as compared to the American Bill of Rights but also from the special features of the Canadian cultural, historical, social and political tradition. Thus in *Re B.C. Motor Vehicle Act*, 1985 CanLII 81 (SCC), [1985] 2 SCR 486, Lamer J. stressed the pre-eminent role of s. 1 of our *Charter* which differentiates our constitution from that of our American neighbours. And in *McKinney, supra*, the concept of government was examined from a peculiarly Canadian perspective in order to construe what was meant by the word "government" in s. 32 of the *Charter*.

85 These observations are particularly apposite in this appeal since, as regards freedom of association, our *Charter* stands in marked contrast to the American Bill of Rights. A freedom to associate is not explicitly recognized in the Constitution of the United States. Protection of this freedom has been made possible only through its judicial recognition as a derivative of the First Amendment guarantee of freedom of speech. The constitutional interlocking of freedom of speech and freedom of association in the United States emerges clearly from the various opinions rendered in *Abood*. For instance, Stewart J. wrote at p. 233: "Our decisions establish with unmistakable clarity that the freedom of an individual to associate for the purpose of advancing beliefs and ideas is protected by the First and fourteenth Amendments." In the view of the majority it was the compelled expression of political views which formed the essence of the violation…

86 Under the *Charter*, in contrast, there is no necessary connection between association and speech in order to engage s. 2(*d*)…

87 In *R. v. Skinner, supra*, it was likewise made clear that, while *Charter* guaranteed freedoms are mutually reinforcing, they remain separate and distinct. For Dickson C.J. it was implicit that the application of s. 2(*d*) was not triggered where it was evident that the legislation was primarily aimed at human activity covered by another *Charter* guarantee, in that case the expressive activity protected by s. 2(*b*). It was my view, on the other hand, that both s. 2(*b*) and s. 2(*d*) could be invoked so long as the activities involved were the kind these provisions were meant to safeguard against legislative intrusion. In spite of these differences of opinion it was accepted by all in *Skinner* that freedom of association serves a very different function from freedom of expression.

88 In summary, none of the authorities cited by the appellant provide unequivocal support for his position that a right not to associate should be recognized as encompassed by s. 2(*d*). Precedent aside, the appellant suggests that if s. 2(*d*) protects the right to associate, it should also as a matter of simple logic protect the converse, i.e., the right not to associate. This Court rejected reasoning like this in *R. v. Turpin*, 1989 CanLII 98 (SCC), [1989] 1 SCR 1296, where it was argued that if s. 11(*f*) of the *Charter* guaranteed the right to be tried by a jury and an accused could waive that right, then the section must necessarily also guarantee him the right to be tried by a judge alone. This argument was met with the following response at p. 1321:

> There is no constitutional right to a non-jury trial. There is a constitutional right to a jury trial and there may be a "right", using that term loosely, in an accused to waive the right to a jury trial. An accused may repudiate his or her s. 11(*f*) right but such repudiation does not, in my view, transform the constitutional right to a jury trial into a constitutional right to a non-jury trial so as to overcome the mandatory jury trial provisions of the *Criminal Code*.

89 To my mind, the appellant has not advanced sufficiently compelling reasons to justify extending freedom of association, having regard to its purpose, to include a freedom not to associate. In the words of Dickson J. in *Big M Drug Mart, supra*, at p. 344, this would be "to overshoot the actual purpose of the right or freedom in question". The purpose behind s. 2(*d*) has already been fully and fairly discussed and there seem to me to be good reasons for affirming the interpretation given to the provision. For instance, Mr. Goudge argued that to include a negative freedom of association within the compass of s. 2(*d*) would set the scene for contests between the positive associational rights of union members and the negative associational rights of non-members. To construe the section in this way would place the Court in the impossible position of having to choose whose s. 2(*d*) rights should prevail. I agree with counsel for the respondent that an interpretation leading to such a result should be avoided if at all possible.

90 I should add that restricting the reach of s. 2(*d*) to positive associational rights best accords with a serious and non-trivial approach to *Charter* guarantees. In *Andrews v. Law Society of British Columbia*, 1989 CanLII 2 (SCC), [1989] 1 SCR 143, this Court rejected the "mere distinction" approach to construing the meaning of "discrimination" in s. 15 of the *Charter* because to do so would trivialize the very important promise of equality embodied in that section. If every difference in treatment gave rise to a violation of s. 15, the real value of the guarantee of equality would be lost. A similar approach may be taken toward s. 2(*d*). It is a fact of our civilization as human beings that we are of necessity involved in associations not of our own choosing. That being so it is naive to suggest that the Constitution can or should enable us to extricate ourselves from all the associations we deem undesirable. Such extrication would be impossible and even to attempt it would make a mockery of the right contained in s. 2(*d*).

91 Several examples were cited in oral argument which demonstrate how a right not to associate would lead to absurd results. The most compelling of these was the analogy drawn to the mandatory payment of taxes. Following the line of logic which the negative freedom analysis commands, our system of taxation arguably brings all taxpayers into forced association with the political party in power, its policies and the uses to which our tax money is put. If it were the case that s. 2(*d*) protected such compelled associations, all taxpayers with a grievance to air would theoretically be able to come before the courts and insist that each tax expenditure be subjected to analysis under s. 1.

92 The appellant sought to distinguish this situation on the footing that citizens subject to taxation agree to be bound by such a system when they choose to be "members" of a community governed by democratically elected representatives. To my mind, there is no distinction in principle between our overall system of government and the role of taxation within it and the mini-democracy of the workplace. Under our labour relations regime all members of the bargaining unit have an equal opportunity to participate in choosing who is to represent them and to join the ranks of the union or not as they see fit. Further, as in our system of representative democracy, members of a bargaining unit may also decide to oust their bargaining agent if dissatisfied with its performance. Hence, the system of compulsory dues check-off is no different in principle from the system of taxation in a democracy and Mr. O'Connor's attempt to differentiate between these two regimes is without merit.

93 I think it clear that even if it were the business of the courts in upholding the Constitution to scrutinize tax expenditures, a proposition with which I have some considerable difficulty, it would be unwise to devote our limited judicial resources to such endeavours. Indeed, this is precisely the difficulty which has arisen since the decision in *Abood, supra*. In that case the United States Supreme Court expressly refrained from deciding which expenditures were or were not made for "legitimate" collective bargaining purposes, leaving it up to the courts below to determine these matters. As a consequence litigation of this kind has been going on for years: see, e.g., *Ellis v. Brotherhood of Railway, Airline and Steamship Clerks*, 466 U.S. 435 (1984). In short, the recognition of compelled contributions as constitutionally impermissible has given rise to an endless train of disputes in the United States.

94 In Canada, by contrast, the courts have thus far sought to deal with the practical problems to which the recognition of negative associational claims gives rise in a very different fashion. To avoid the "floodgates" problem Canadian courts have attempted to differentiate between serious and trivial violations of s. 2(*d*). For instance, in *Merry v. Manitoba and Manitoba Medical Association* (1989), 1989 CanLII 7322 (MB KB), 58 Man. R. (2d) 221 (Q.B.), provincial law required all licensed medical practitioners to contribute annual dues to the Association regardless of their membership status. Merry, a licensed medical doctor who was not a member of the Association, applied for a declaration that the legislation violated his s. 2(*d*) rights. He objected to having to pay dues to the Association because it supported certain causes to which Dr. Merry was vehemently opposed. Rather than accepting that a violation of s. 2(*d*) had been established and proceeding to analyze the justiciability of the expenditures under s. 1, the court drew a distinction between constitutionally significant and constitutionally insignificant compelled associations. Similarly, the Court of Appeal in the present case dealt with the issue of the appellant's right to refrain from associating with the Union in the same manner, by characterizing his claim as falling within the realm of the constitutionally insignificant.

95 In my view, neither the approach of the Canadian nor that of the American courts particularly commends itself. As soon as the Court is placed in the position of having to choose between so-called meaningful and trivial constitutional claims, an opening for the exercise of arbitrary line drawing has been created. On the other hand, it would be an abdication of this Court's responsibility to ensure access to justice if it turned a blind eye to the problems which recognition of a right not to associate will generate. Cognizant of these problems commentators have proposed various approaches designed to curb constitutional excesses. In the United States, for example, Professor Cantor in his article "Forced Payments to Service Institutions and Constitutional Interests in Ideological Non-Association" (1983), 36 *Rutgers L. Rev.* 3, argues at p. 25 that:

> ...moral affront or upset to conscience from being used as a financial instrument is not, by itself, a serious constitutional injury. Indeed, such incursions upon conscience through forced "support" of distasteful causes is an inevitable concomitant of living in an organized society. While it would be *nice* to avoid all spiritual and ideological affronts to persons forced by government to pay monies, the critical issue for first amendment purposes is whether the payor is required to associate with or appear to endorse in some fashion a distasteful cause selected by government. [Emphasis in original.]

96 In Canada, similar limitations have been proposed in relation to s. 2(*d*). Professor Etherington, for example, has argued in his article, "Freedom of Association and Compulsory Union Dues: Towards a Purposive Conception of a Freedom to not Associate" (1987), 19 *Ottawa L. Rev.* 1, that what lies at the heart of the claim not to associate are interests in the preservation of the democratic political system and in the protection of individual liberty. Professor Etherington envisions four ways in which these interests might be endangered by forced contributions which a freedom of non-association should guard against: (1) government establishment of, or support for, particular political causes; (2) impairment of individual freedom to join or associate with causes of his or her choosing; (3) imposition of ideological conformity; and (4) personal identification of the individual payor with causes which he or she does not support.

97 In my view, Professor Etherington's and Professor Cantor's analyses both contain necessary and desirable limitations which must be affixed to any negative right to associate. And indeed, adoption of either approach would minimize the problems to which negative association rights can give rise. However, I remain of the view that s. 2(*d*) should not be expanded to protect the right not to associate. As Mr. Nelson suggested, other *Charter* guaranteed rights and freedoms adequately protect the type of interests which underlie claims based on a right not to associate. As was evident throughout this appeal, the real harm produced by compelled association is not the fact of the association itself but the enforced support of views, opinions or actions one does not share or approve. To hold that s. 2(*d*) does not include the right not to associate does not leave those who do not wish to associate without redress for these harms. Sections 2(*b*) and 7 of the *Charter*, in particular, would seem to me to be available in appropriate cases.

98 Having found that s. 2(*d*) includes only the positive freedom to associate, the question remains whether Mr. Lavigne's freedom of association has been violated in this case. The appellant has not been prevented from forming or joining associations of his choosing. It is my view, therefore, that the appellant's right to freely associate has not been infringed and this ground of appeal must accordingly fail.

99 I should perhaps add that even if this Court were to recognize a right not to associate under s. 2(*d*), I would still hold that this right has not been infringed in the present case. My main reason for so concluding is that, if a negative right does indeed exist, it surely can be no broader in scope than the positive right to associate previously defined by this Court.

100 Beginning with the *Alberta Reference* and culminating most recently in the decision in *P.I.P.S.*, *supra*, this Court has repeatedly stated that s. 2(*d*) does not protect the objects of an association. Unions have accordingly been denied constitutional protection for activities which are central, indeed fundamental, to their effective functioning within our system of collective bargaining. Mr. Lavigne submits, however, that while the objects of an association are irrelevant to the claims of collectivities of working people, they may legitimately be taken into account when assessing the claim of an individual who objects to being associated with the objects of such a collectivity. I do not believe it is open to the Court to engage in one-sided justice of this kind. Since s. 2(*d*) protects both individuals and collectivities, if the objects of an association cannot be invoked to advance the constitutional claims of unions, then neither, it seems to me, can they be invoked in order to undermine them. Even although the appellant has framed his claim in terms of his compelled association with the Union *simpliciter* (i.e., in terms of his having been forced to pay dues), it is clear that his only real objection is to certain forms of union expenditure. Mr. Lavigne's claim is thus inextricably connected to the objects of the association, a factor which this Court has consistently stated has no place in s. 2(*d*), and not merely to the existence of the association.

9.2 Excerpts from *Lavigne v. Ontario Public Service Employees Union*, 1991 CanLII 68 (SCC), [1991] 2 SCR 211, per La Forest J., paras 232-241

La Forest J

232. It is clear that the Rand formula cannot be attacked on the ground that it interferes with any right the appellant may have to associate with others in the pursuit of collective activities or common goals. If the formula can, of itself, be said to violate s. 2(d) of the Charter, it is because it interferes with what has been described as the negative aspect of freedom of association -- the freedom not to associate with others. Therefore, the initial question is whether the scope of s. 2(d) includes freedom from compelled association.

233 The historical origins, purposes and meaning of the s. 2(*d*) *Charter* guarantee were reviewed thoroughly by this Court in *Reference Re Public Service Employee Relations Act (Alta.)*, 1987 CanLII 88 (SCC), [1987] 1 SCR 313 (the *Alberta Reference*), in the context of a union's right to act collectively in launching a strike. The fundamental nature of the guarantee as articulated by the members of this Court

echoed the classic statement of freedom of association made over a century ago by Alexis de Tocqueville in *Democracy in America* (1945), vol. I, at p. 196:

> The most natural privilege of man, next to the right of acting for himself, is that of combining his exertions with those of his fellow creatures and of acting in common with them. The right of association therefore appears ... almost as inalienable in its nature as the right of personal liberty. No legislator can attack it without impairing the foundations of society.

In a complex modern democracy, it is nothing less than imperative that the individual be afforded the freedom to join with others in the pursuit of common goals.

234 The essence of the freedom is the protection of the individual's interest in self-actualization and fulfillment that can be realized only through combination with others. McIntyre J., with whom the majority agreed as to the characterization of the s. 2(*d*) right, made this clear in the *Alberta Reference, supra*, at p. 395:

> While freedom of association like most other fundamental rights has no single purpose or value, at its core rests a rather simple proposition: the attainment of individual goals, through the exercise of individual rights, is generally impossible without the aid and cooperation of others. "Man, as Aristotle observed, is a 'social animal, formed by nature for living with others', associating with his fellows both to satisfy his desire for social intercourse and to realize common purposes." (L.J. MacFarlane, *The Theory and Practice of Human Rights* (1985), p. 82.)

It is important to recognize that while it is true, as Wilson J. states in her reasons, at p. 251, that "freedom of association is meant to protect the collective pursuit of common goals", such protection is afforded ultimately to further individual aspirations. Association is but "an extension of individual freedom": Thomas Emerson, "Freedom of Association and Freedom of Expression" (1964), 74 *Yale L.J.* 1, at p. 4.

235 This is not to deny, however, that there is a community interest embodied in the freedom of association. This interest might be expressed as the interest of society at large in the contributions in political, economic, social and cultural matters which can be made only if people are free to work in concert. In addition, it is axiomatic that there is a community interest in sustaining democracy, an essential element of which is associational activity. The question, then, is whether the protection of this community interest and the antecedent individual interest requires that freedom from compelled association be recognized under s. 2(*d*) of the *Charter*.

236 In my view, the answer is clearly yes. Forced association will stifle the individual's potential for self-fulfillment and realization as surely as voluntary association will develop it. Moreover, society cannot expect meaningful contribution from groups or organizations that are not truly representative of their memberships' convictions and free choice. Instead, it can expect that such groups and organizations will, overall, have a negative effect on the development of the larger community. One need only think of the history of social stagnation in Eastern Europe and of the role played in its development and preservation by officially established "free" trade unions, peace movements and cultural organizations to appreciate the destructive effect forced association can have upon the body politic. Recognition of the freedom of the individual to refrain from association is a necessary counterpart of meaningful association in keeping with democratic ideals.

237 Furthermore, this is in keeping with our conception of freedom as guaranteed by the *Charter*. In *R. v. Big M Drug Mart Ltd.*, 1985 CanLII 69 (SCC), [1985] 1 SCR 295, Dickson J. had this to say, at pp. 336-37:

> Freedom can primarily be characterized by the absence of coercion or constraint. If a person is compelled by the state or the will of another to a course of action or inaction which he would not otherwise have chosen, he is not acting of his own volition and he cannot be said to be truly free. One of the major purposes of the *Charter* is to protect, within reason, from compulsion or restraint. Coercion includes not only such blatant forms of compulsion as direct commands to act or refrain from acting on pain of sanction, coercion includes indirect forms of control which determine or limit alternative courses of conduct available to others. Freedom in a broad sense embraces both the absence of coercion and constraint, and the right to manifest beliefs and practices. Freedom means that, subject to such limitations as are necessary to protect public safety, order, health, or morals or the fundamental rights and freedoms of others, no one is to be forced to act in a way contrary to his beliefs or his conscience. [Emphasis added.]

It is clear that a conception of freedom of association that did not include freedom from forced association would not truly be "freedom" within the meaning of the *Charter*.

238 This brings into focus the critical point that freedom from forced association and freedom to associate should not be viewed in opposition, one "negative" and the other "positive". These are not distinct rights, but two sides of a bilateral freedom which has as its unifying purpose the advancement of individual aspirations. The bilateral nature of the associational right is explicitly recognized in Art. 20 of the *United Nations Universal Declaration of Human Rights*, 1948, which provides as follows:

> 1. Everyone has the right to freedom of peaceful assembly and association.
>
> 2. No one may be compelled to belong to an association.

This construction of the associational right in two reflective strands serves to recognize the often over-looked potential for coercion in association. Governmental tyranny can manifest itself not only in constraints on association, but in forced association. There is no logical inconsistency in recognizing this reality. Nor do I accept the proposition that including the right to be free from compelled association within the reach of s. 2(*d*) will weaken or "trivialize" the cherished right to be free to form associations. It will do nothing but strengthen it. Moreover, the purposive approach to *Charter* interpretation demands such a result.

239 Finally, that some aspects of the freedom may be protected by ss. 7, 2(*a*) or 2(*b*) of the *Charter*, to cite the most obvious possibilities, should not dissuade us from giving full meaning to s. 2(*d*). All of the liberties guaranteed by the *Charter* are particular aspects of the broader freedom we enjoy in Canada. As the Court noted in *R. v. Lyons*, 1987 CanLII 25 (SCC), [1987] 2 SCR 309, at p. 326:

> Before entering into a detailed discussion of the issues, it may be useful to note that this case exemplifies the rather obvious point that the rights and freedoms protected by the *Charter* are not insular and discrete (see, e.g., my comments in this regard in *R. v. Rahey*, 1987 CanLII 52 (SCC), [1987] 1 SCR 588). Rather, the *Charter* protects a complex of interacting values, each more or less fundamental to the free and democratic society that is Canada (*R. v. Oakes*, 1986 CanLII 46 (SCC), [1986] 1 SCR 103, at p. 136), and the particularization of rights and freedoms contained in the *Charter* thus represents a somewhat artificial, if necessary and intrinsically worthwhile attempt to structure and focus the judicial exposition of such rights and freedoms. The necessity of structuring the discussion should not, however, lead us to overlook the importance of appreciating the manner in which the amplification of the content of each enunciated right and freedom imbues and informs our understanding of the value structure sought to be protected by the *Charter* as a whole and, in particular, of the content of the other specific rights and freedoms it embodies.

Accordingly, a person is not deprived of protection under a provision of the *Charter* merely because protection may also be derived under another. The rights overlap in defining Canadian society, and I see no reason for depriving a litigant of success because he has chosen one provision that legitimately appears to cover the matter of which he or she complains, rather than another. That would often be the effect if the individual rights and freedoms were construed as discrete rather than overlapping.

240 It does not necessarily follow, however, that s. 2(*d*) of the *Charter* protects us from any association we may wish to avoid. In a word, I do not think the freedom of association is necessarily a right to isolation. As a matter of metaphysical and sociological reality, "no man is an island", and the *Charter* must be taken to recognize this. At the very fundamental level, it could certainly not have been intended that s. 2(*d*) protect us against the association with others that is a necessary and inevitable part of membership in a democratic community, the existence of which the *Charter* clearly assumes. Thus, it could not be said that s. 2(*d*) entitles us to object to the association with the government of Canada and its policies which the payment of taxes would seem to entail given the comprehensive nature of its authority and functions. In Justice Holmes' phrase, the state is "the one club to which we all belong" and its activities will inevitably associate us with policies and groups with which we may not wish to be associated: see Robert Horn in *Groups and the Constitution* (1971), at p. 3.

241. Realistically, too, as I will more fully explain later, the organization of our society compels us to be associated with others in many activities and interests that justify state regulation of these associations. Thus I doubt that s. 2(d) can entitle us to be free of all legal obligations that flow from membership in a family. And the same can be said of the workplace. In short, there are certain associations which are accepted because they are integral to the very structure of society. Given the complexity and expansive mandate of modern government, it seems clear that some degree of involuntary association beyond the very basic foundation of the nation state will be constitutionally acceptable, where such association is generated by the workings of society in pursuit of the common interest. However, as will be seen, state compulsion in these areas may require assessment against the nature of the underlying associational activity the state has chosen to regulate.

(…)

9.3 Excerpts from *Lavigne v. Ontario Public Service Employees Union*, 1991 CanLII 68 (SCC), [1991] 2 SCR 211, per McLachlin J., paras 299-311

McLachlin J

299. The next question is whether s. 2(d) includes a right not to associate. While it is not necessary for my purposes to resolve that issue, I am inclined to the view that the interest protected by s. 2(d) goes beyond being free from state-enforced isolation, as contended by the interveners OFL and CLC. In some circumstances, forced association is arguably as dissonant with self-actualization through associational activity as is forced expression. For example, the compulsion to join the ruling party in order to have any real opportunity of advancement is a hallmark of a totalitarian state. Such compulsion might well amount to enforced ideological conformity, effectively depriving the individual of the freedom to associate with other groups whose values he or she [page344] might prefer. As La Forest J. suggests, at p. 318, "Forced association will stifle the individual's potential for self-fulfillment and realization as surely as voluntary association will develop it."

300 In my view, freedom from compelled association, whatever its ambit, could not extend to the payments here at issue. Freedom not to associate, like freedom to associate, must be based on the value of individual self-actualization through relations with others. The justification for a right *not* to associate would appear to be the individual's interest in being free from enforced association with ideas and values to which he or she does not voluntarily subscribe. For the purposes of this case, I shall refer to this as the interest in freedom from coerced ideological conformity.

301 It follows from this definition that negative associational activity falling under s. 2(*d*) is not to be determined by the type of the coerced activity impugned (e.g. mandatory payments), but by whether the activity associates the individual with ideas and values to which he or she does not voluntarily subscribe. This approach is similar to that taken toward the right of expression in *Irwin Toy Ltd. v. Quebec (Attorney General)*, 1989 CanLII 87 (SCC), [1989] 1 SCR 927, where it was held that the test for whether conduct falls within s. 2(*b*) of the *Charter* was not the activity *per se* (e.g. speech or conduct), but whether the activity was one intended to convey meaning.

302 If one accepts that the interest protected by the right not to associate is the interest in being free from enforced ideological conformity, then one cannot assume that payments fall within s. 2(*d*) simply because they be used to support a group cause. It is necessary to go further and ask whether the payments are such that they associate the individual with ideas and values to which he or she does not voluntarily subscribe. Applying an objective standard, the final test is this: are the payments such that they may rea sonably be regarded as associating the individual with ideas and values to which the individual does not voluntarily subscribe? This is not to suggest that public identification is an essential prerequisite to any involuntary association; the point, rather, is that before any involuntary association can be said to arise, there must be activity which can fairly be adjudged to bring an individual into association with ideas or values to which he or she does not voluntarily subscribe.

B. The Nature of the Payments

303 As asserted by Wilson J. in *Edmonton Journal*, context is vital in determining whether an impugned activity falls under a *Charter* guarantee. It is therefore necessary to consider the nature of the payment at issue in this case and the circumstances in which the issue arises.

304 The payments in question are compelled under legislation applying the Rand formula. The Rand formula has been part of Canadian labour relations for many years. It was designed to resolve the problem of persons such as Lavigne, whose employer contracts with a union of which they do not wish to be a member. The formula permits individual employees to choose not to belong to the union, but stipulates that they must pay union dues, in order to avoid the unfairness of giving non-union employees a "free ride". In essence, while not a member of the union, the person who opts out is required to pay dues on the basis that he or she benefits from the activities of the union on behalf of all employees.

305 The need for compromises such as the Rand formula arises from the fact that Canadian labour relations generally permit only one union to represent all employees in a designated work grouping. This may be contrasted with the quite different system prevailing in parts of Europe, where a worker may choose between several different unions. In a system which permits only one union, there may be workers who do not wish to associate themselves with it. The Rand formula allows a worker to choose whether or not to be a member of the union, but requires that in any event he or she pay dues. As such, it represents a carefully crafted balance between the interest of the majority in the union and individuals who may not wish to belong to the union. (It should not be overlooked in considering the dynamics of this balance that the individual members comprising the majority of the union may have a constitutionally protected right under s. 2(*d*) to pursue activities with which certain members may not wish to associate themselves.)

306 It is against this background that the payments at issue on this appeal must be viewed.

II. Does the Charter Apply?

307 The question is whether the payments here at issue constitute associational activity under s. 2(*d*) of the *Charter*, taking a purposive view of the right (i.e., viewing it in terms of the interests it is designed to protect) and a contextual view of the payments.

308 Assuming that a right not to associate exists, it follows from what I have already said that its purpose must be to protect the interest of individuals against enforced ideological conformity. Does the requirement that Lavigne make payments to the Union, which the Union may thereafter spend in part in support of causes which Lavigne does not support, fall within this interest?

309 In my view, it does not. The test, as set out above, is whether the payments can reasonably be regarded as associating the individual with ideas and values to which the individual does not voluntarily subscribe. The payments here at issue do not meet this test because under the Rand formula there is no link between the mandatory payment and conformity with the ideas and values to which Lavigne objects.

310 The fact that one pays money which may ultimately be expended in support of a cause does not necessarily associate one with the cause. In buying an automobile, for example, one does not by paying money to the dealer indicate any support for the way the dealer or the manufacturer of the vehicle may spend the portions of the price it retains as profit. The same applies to a payment to a telephone utility for a service some might regard as essential. In both situations, the payment is devoid of ideological content. It is merely an exchange for something one wants. Similarly, in paying taxes, one is not endorsing the purposes to which the government may devote those taxes. The transaction does not connote association on the part of the payor with the causes the government may support.

311. Mandatory payments under the Rand formula fall into the same category. The whole purpose of the formula is to permit a person who does not wish to associate himself or herself with the union to desist from doing so. The individual does this by declining to become a member of the union. The individual thereby dissociates himself or herself from the activities of the union. Fairness dictates that those who benefit from the union's endeavours must provide funds for the maintenance of the union. But the payment is by the very nature of the formula bereft of any connotation that the payor supports the particular purposes to which the money is put. By the analogy with government, the payor is paying by reason of an assumed or imposed obligation arising from this employment, just as a taxpayer pays taxes by reason of an assumed or imposed obligation arising from living in this country. By the analogy of commerce, the payor is simply paying for services and benefits received.

9.4 Excerpt from *R. v. Advance Cutting & Coring Ltd.*, 2001 SCC 70 (CanLII), [2001] 3 SCR 209, per Lebel J., paras 163, 205-232. 242-251

A group of contractors who were charged with hiring employees that were not certified to work on a construction project contrary to s. 119.1 of the Quebec *Act Respecting Labour Relations, Vocational Training and Manpower Management in the Construction Industry* defended against this charge by arguing that those employees could not obtain certification without registering with a trade union, and that this compelled association violated those workers' s 2(d) freedom of association rights. At all levels of court, the legislation was found to be constitutional. At the Supreme Court of Canada, the majority held that s 2(d) rights were not infringed since the obligation to unionize was strictly limited to an obligation to be part of a union, vote on a representative, and pay union dues – there was no evidence of forced ideological conformity. Even if s 2(d) was violated, the majority held that it could be saved by s 1. Justice L'Heureux-Dubé agreed that s 2(d) was not violated, but echoed Justice Wilson's opinion in *Lavigne* (which she had concurred with) that s 2(d) does not protect the right not to associate. Justice Iacobucci concurred with the majority in finding that s 2(d) includes a negative component, that right not to associate was infringed in this case, and the infringement could be justified under s 1. Chief Justice McLachlin as well as Justices Major, Bastarache, and Binnie dissented holding that s 2(d) contains a negative right not to associate and that it was infringed by the legislation and could not be saved by section 1.

Lebel J

163 The case at bar offers the possibility for an evolution in the relationship between the *Charter* and labour law. As has been seen above, the present case involves an attack on some forms of union security clauses. Under many shapes and forms, such arrangements often provide for an obligation to obtain or maintain union membership in order to retain or obtain employment. They may also address the financing of union activities. They may combine provisions relating to the checking off of union dues with others concerning the maintenance of union membership. A well-known and common form of union security, the Rand formula, which was discussed in the *Lavigne* case, has even become a standard part of the labour laws of some provinces, for example, under the Quebec *Labour Code*, R.S.Q., c. C-27, s. 47. Under this formula, union dues are withheld from the pay of an employee, whether or not he or she belongs to the union. (For an overview of those clauses, see R. P. Gagnon, L. LeBel and P. Verge, *Droit du travail* (2nd ed. 1991), at pp. 529-30.)

(…)

205 The present case presents a more difficult problem than the application of the Rand formula canvassed in *Lavigne.* The *Construction Act* imposes an obligation to join one of five unions. The question becomes whether this fact *per se* triggers the negative component and becomes a breach of s. 2(*d*) of the *Charter* that must be justified under s. 1. If we adopt this route, it might well mean that all forms of compulsory membership provided for or even authorized under statute would be open to challenge under the *Charter*.

206 A proper analysis of *Lavigne* and of the nature of the constitutional guarantee does not allow for such a result. Although differing in some respects, McLachlin J.'s and La Forest J.'s reasons both refused to view the negative right as a simple mirror image of the positive right of association. Both Justices accepted that the nature of a workplace and the status of the persons participating in its life and experience created associations that became unavoidable or "compelled". The use of the notion of ideological conformity by McLachlin J. or La Forest J.'s concerns for the safeguarding of broad liberty interests acknowledged the need for association, as well as the need to join, which may be required in some aspects of life in the workplace. At the same time, they intended to meet the need to safeguard democratic values and to foster them in the area of labour relations. Their reasons reflect the view that some forms of compelled association might breach s. 2(*d*) of the *Charter* if the fact of association imposes on an individual values and views of the world antithetical to his or her own.

207 The Court found a balance in *Lavigne*. This balance is now at stake in the present case. The majority of the Court in *Lavigne* found that there was a negative right not to associate. Although it acknowledged the need for such a right, it accepted a democratic rationale for putting internal limits on the right not to associate. La Forest J. regarded the Constitution's presumption of democracy as a reason for concluding that forced associations which flow from the functioning of democracy cannot be severed with the aid of the *Charter* (pp. 317 and 320-21). Democracy is not primarily about withdrawal, but fundamentally about participation in the life and management of democratic institutions like unions.

208 An approach that fails to read in some inner limits and restrictions to a right not to associate would deny the individual the benefits arising from an association. This Court has maintained, since the labour law trilogy of 1987, that the right of association intends to foster individual autonomy and attaches to individuals. At the same time, the exercise of the right of association also reinforces the ability of an individual to convey ideas and opinions, through a group voice, as the Court acknowledged in the *Libman* case, while discussing political and ideological associations. It should not be viewed as an inferior right, barely tolerated and narrowly circumscribed.

K. *Freedom of Association and the Employment Relationship*

209 In the present case, it must be acknowledged that the law challenged by the appellants legislates a form of union shop. All construction workers must elect one of five union groups as their collective bargaining representative. Their union dues go to these groups or their affiliates. If the appellants' arguments were to be accepted, the answer to the constitutional question would be short; the right not to associate would have been infringed and the law would not pass constitutional muster. A more refined approach elicits a different answer.

210 In spite of the acknowledgement of the existence of a right not to associate, the guarantee of freedom of association is not engaged by the legislative scheme challenged in the present appeal. Freedom of association, even with its negative component, does not express a right to isolation, as La Forest J. observed in *Lavigne*. To this I would add there is a unique quality of association connected to individual self-realization. It gives the associates, "the partners", a common strength that enables the furtherance of individual goals and aspirations in a way that escapes the efforts of a man or woman acting alone. The birth and development of a strong and diverse civil society in modern democracy bears witness to that special quality of a social activity. The community, as well as the individual, benefits from it. One cannot presume that the *Charter* addresses only the relationship between isolated individuals and the state. It is also concerned with the interaction of groups and "mini" societies within the broader Canadian society. The incorporation of a guarantee of freedom of association in the *Charter* signals the strong societal interest in a broad interpretation of freedom of association, although always in accord with the democratic values of Canada. It signals the importance of the social element of man's self-actualization. It demonstrates the importance of communication and of cooperation between human beings.

211 As La Forest J. stated in the *Lavigne* case, some forms of association arise from the human condition. Others find their source in the necessities and realities of life. Relationships born and organized around the workplace may create a need for a stronger bond between groups and persons undergoing the same experiences while at work.

212 As this Court has acknowledged, the employment relationship rests on an imbalance of power between ordinary workers and those who employ them. The power to direct the work and fix the conditions of employment is usually exercised unilaterally by employers. Entering into an employment relationship means accepting the existence and exercise of that power. Often, especially during periods of economic downturn or unemployment, the employee has little option but to accept what is offered.

213 The *Civil Code of Québec* identifies clearly the nature of the employment relationship when it defines the contract of employment as an agreement based on the acceptance of the authority of the employer:

> **2085.** A contract of employment is a contract by which a person, the employee, undertakes for a limited period to do work for remuneration, according to the instructions and under the direction or control of another person, the employer.

214 Professors P. Verge and G. Vallée, in a recent study of the principles of labour law, stated that the fundamental nature of the employment relationship, whatever its form and shape, rests on an inequality which reflects an imbalance of economic power. Subordination and inequality remain at the core of the relationship:

> [translation] Therefore, although the employment relationship may be reflected in different status levels within the company, it is nonetheless still an employment relationship. As a rule, in spite of variations in the length of employment or in the relationship itself, or even in the identity of the ultimate user of the work, the subordination to the employer which is characteristic of the relationship is still present. Viewed subjectively -- that is, in relation to the overall situation of the employee -- the insecurity of the employment in fact intensifies the employee's economic dependency on any employer for which he or she might work.
>
> (*Un droit du travail? Essai sur la spécificité du droit du travail* (1997), at p. 21)

See also Morin and Brière, *supra*, at pp. 212-13; Gagnon, *supra*, at pp. 51-52.

L. *The History of Labour Relations*

215 The existence of this fundamental inequality has provoked the long and continuing search for a new balance in labour relations. A common instrument has been the association of persons seeking to agree and thus acquire a degree of control over their working conditions. Since the industrial revolution, association and the right to associate have been viewed as critical tools in the fight for a more stable and sometimes more equitable employment relationship. (For a short outline of the history of labour law, see A. W. R. Carrothers, E. E. Palmer and W. B. Rayner, *Collective Bargaining Law in Canada* (2nd ed. 1986), at pp. 3-30; Gagnon, LeBel and Verge, *supra*, at pp. 16-32; G. W. Adams, *Canadian Labour Law* (2nd ed. (loose-leaf)), at pp. 1-1 to 1-11.)

216 Nevertheless, the right of association faces an inner tension in the striving to create a different work environment. The refusal of some to join the group weakens the efforts to achieve the goals of the majority. For these reasons, compelled associations in many forms became a reality of labour relations in several countries including Canada. Various forms of union security clauses ranging from the obligation to pay union dues to the obligation to hire only members of a certain union group were included in collective agreements and applied. In different ways, these arrangements attempted to resolve the tension and contradiction between the two competing aspects of the right of association.

217 Although *Lavigne* did not address the whole issue of union security, as it dealt only with an obligation imposed on non-members to pay union dues, it nevertheless held that some forms of compelled association in the workplace might be compatible with *Charter* values and the guarantee of freedom of association. The acknowledgement of a negative right not to associate would not justify a finding of an infringement of the guarantee whenever a form of compelled association arises. Otherwise, it would mean that the mere fact of association might amount to a breach of the *Charter*. An inquiry must take place into the nature of the commitment to an association. In the case of a legislated form of union security, the nature of the legislative scheme must also be closely scrutinized.

218 The *Construction Act* imposes an obligation to join a union group. The obligation remains, nevertheless, a very limited one. It boils down to the obligation to designate a collective bargaining representative, to belong to it for a given period of time, and to pay union dues. The Act does not require more. At the same time, the Act provides protection against past, present and potential abuses of union power. Unions are deprived of any direct control over employment in the industry. They may not set up or operate an office or union hall (ss. 104 and 119 of the Act). No discrimination is allowed against the members of different unions. Provided they hold the required competency certificates, all workers are entitled to work in the construction industry without regard to their particular union affiliation. Specific guarantees against discrimination are found in ss. 94 and 102. Section 96 grants members clear rights of information and participation in union life. The law allows any construction worker to change his or her union affiliation, at the appropriate time. As it stands, the law does not impose on construction workers much more than the bare obligation to belong to a union. It does not create any mechanism to enforce ideological conformity.

219 In *Lavigne*, both La Forest and McLachlin JJ. limited the right not to associate when certain liberty interests were affected. Their comments also imply that such liberty interests, no matter how broad, must be asserted and identified. In the *Lavigne* case, the appellant claimed, although unsuccessfully as it turned out, that some union activities in support of political and social causes breached his right not to associate. He did not ground his case on a bare assertion that he could not accept financing a union or joining it, without more.

220 As appears from the evidence, the situation is completely different in the case at bar. No witness came forward to assert that he felt or believed that joining a union associated him with activities he disapproved of, or with opinions he did not share. In order to trigger the negative guarantee in this case, ideological conformity or breach of another liberty interest would have to be found in the fact that unions, as other groups belonging to or participating in a democratic society, sometimes engage in public debate, take positions on issues concerning their members, or comment on broad social or political questions.

221 Our Court would have to presume that, because they take part in social debate, unions in Quebec or elsewhere act in breach of the democratic values of our society, and of the liberty interests and the freedom of opinion and expression of their members. Still, if union members assert such a concern, it may have to be addressed. Accommodation may become necessary to safeguard the democratic character of unions and of the society within which they operate. For example, concerns about equality rights may impose a review of some union practices and even of specific provisions of labour agreements. (See C. Brunelle, *Discrimination et obligation d'accommodement en milieu de travail syndiqué* (2001), at pp. 236 *et seq.*) It would be rash to attempt an exhaustive definition of all situations and cases where liberty interests falling within the scope of the negative right would have to be accommodated. Such liberty interests must, at least, be advanced, which was not the case in the courts below and in this Court.

222 The record supporting the appeal appears sketchy about the reasons why construction workers would object to belonging to a union. In the evidence introduced at trial before Judge Bonin, in the Court of Québec, the appellants offered a few witnesses. Most of them were either contractors or promoters, although a few construction workers gave evidence. In general, these witnesses voiced deep disagreement with the legislative and regulatory scheme in force in the Quebec construction industry. The employers affirmed that the rules governing employment and hiring prevented them from hiring whom they wanted. They also believed that the Office de la construction referred them incompetent workers. The construction workers complained about the absence of a right of free entry into the employment market. Some witnesses expressed their concern about the Quebec laws imposing strict professional certification on contractors and they expressed a preference for a freer regulatory environment.

223 No evidence was introduced about union practices that would impose values or opinions on their members. No evidence was offered about the internal life of construction unions or about the constraints they might seek to impose upon members. There was no indication that free expression is limited by union activities of such a nature that forced association would trigger the guarantee of s. 2(*d*). The nature of a particular legislative or regulatory system, in an important part of the economy like the construction industry, may certainly be subject to criticisms or political discussions. Nevertheless, personal disagreements with the extent of a strict regulatory system do not suffice to mount a successful *Charter* challenge. It should now be clear that the mere fact of compelled association will not, by itself, involve a breach of the *Charter*. More is needed in order to trigger the negative component of s. 2(*d*).

M. *Evidence of Ideological Coercion*

224 May the Court presume ideological coercion from the fact that, at times, Quebec unions, like other groups, have advocated particular causes? They have expressed varying, and often conflicting, views on social, economic and political issues. Even amongst themselves, they have differed about the direction of society, its priorities and those of the labour movement. The existence of those orientations, nevertheless, does not mean that ideological, political or philosophical conformity was being imposed on Quebec construction workers and that this fact in itself triggers the negative right not to associate and hence a *prima facie* violation of s. 2(*d*) of the *Charter*.

225 In order to reach such a result, the Court would have to take judicial notice of the presumed ideological bent of Quebec unions. The Court would have to judicially notice that ideological orientations or the adoption of social and political causes within the union movement mean that a form of intellectual conformity is being imposed by unions on their members, and that the liberty interests of those members are being jeopardized. Judicial notice certainly has its place in constitutional adjudication. Recently, in *R. v. Find*, [2001] 1 SCR 863, 2001 SCC 32, McLachlin C.J. reflected on its role. The key to judicial notice which emerges in *Find* will be a distinction between facts and inferences to be drawn from these facts. In *Find*, the facts regarding sexual assault were uncontested and accepted by judicial notice, but the inferences from those facts on which the appellant sought to rely, namely, that they led to widespread bias against those accused of sexual assault, could not be judicially noticed (para. 86). (See also *Law*, *supra*, at paras. 77 and 79, *per* Iacobucci J.)

226 The fact that unions intervene in political social debate is well known and well documented and might be the object of judicial notice. Indeed, our Court acknowledged the importance of this role in the *Lavigne* case. Several ideological currents have criss-crossed the history of the Quebec labour movement. It was never unanimous about its direction, even about the need to enter the political arena or to involve itself in broader societal issues beyond the horizon of the bargaining unit. (See P. Verge and G. Murray, *Le droit et les syndicats: aspects du droit syndical québécois* (1991), at p. 225.) These authors underscore the weakness of the formal links between the Quebec unions and political parties (pp. 238-39). They add that it is impossible to determine whether union political positions had any real influence on their members (p. 239). More recent studies of voting attitudes seem to indicate that, in fact, Canadian unions exert very little influence on the voting behaviour of their members, as at least one Canadian political party, the New Democratic Party, has found repeatedly to its sorrow (see A. Blais et al., "Making Sense of the Vote in the 2000 Canadian Election", paper prepared for the Annual Meeting of the Canadian Political Science Association, Quebec City, May 2001).

227 Taking judicial notice of the fact that Quebec unions have a constant ideology, act in constant support of a particular cause or policy, and seek to impose that ideology on their members seems far more controversial. It would require a leap of faith and logic, absent a proper factual record on the question. The assertion seems to rest on the tenuous line that, although we do not have any evidence to this effect, coercion on the individuals should be inferred from "ideological" trends present in the labour movement. This "fact" is unlike issues of notorious discrimination against certain groups in Canadian society, and unlike the disadvantage experienced by women and children after a divorce, both facts of which this Court has taken judicial notice (see *R. v. Williams*, 1998 CanLII 782 (SCC), [1998] 1 SCR 1128, and *Willick v. Willick*, 1994 CanLII 28 (SCC), [1994] 3 SCR 670). In this case, it cannot be said that some form of politicization and ideological conformity which allegedly flows from the political and social orientation of the labour movement is self-evident. Instead, such views evidence stereotypes about the union movement as authoritarian and undemocratic, and conjure images of workers marching in lock step without any free choice or free will, under the watchful eyes of union bosses and their goon squads.

228 In fact, democracy undergirds the particular form of union security provided for by the *Construction Act.* Throughout the conflicts and difficulties that marred the history of the construction industry, a critical flaw of the regime appeared to be the lack of participation in the life of unions and the need to reestablish and maintain member control over their affairs. While it also facilitated the evaluation of the representativeness of the unions, the obligation to choose and join a union answered this critical need in a way that a different union security arrangement, like the Rand Formula, would not have addressed. The dues check-off scheme, like the Rand formula, disposes of the free rider problem, but the employee remains outside the life of the union. In other security arrangements, a member may choose to remain aloof and refrain from attending meetings, voting for union officers and taking part in discussions. Affiliation means that he or she has, at least, gained the ability to influence the life of the association whether or not he or she decides to exercise this right.

229 In the case of the construction unions, a heightened degree of participation in the life of the associations appeared necessary in order to foster union democracy. At the same time, the legislative formula left workers a choice among the various groups active in the construction industry. These groups had held widely different views on the role of labour unions in society. Their orientations represented a broad spectrum of opinions, both about the orientation of society and about the functions of unions. The legislative solution represented an answer to some of the pressing problems that the Quebec construction industry had been confronted with during several years. The degree of relative peace and equilibrium reached by the time the present case started bears witness to the basic soundness of this legislative choice, which expresses a deep concern for democratic values. One might think that an absolute right to withdraw at will, even with payment of service fees for unions, would

not preserve and develop the internal democracy of union groups in the same manner. It would deprive the dues-paying worker of any influence on the life of the union and on the determination of working conditions meant to be extended to the entire industry or a sector thereof, as rules of public order.

230 Union members seem to act very independently from their union when it comes to the expression of their political choices and, even more so, to their voting preferences, come election time. Existence of attempted ideological conformity, let alone its realization, seems highly doubtful. In addition, in Quebec, the labour movement faces particular constraints flowing from the strict legislation on the financing of political parties and referendums. The *Election Act*, R.S.Q., c. E-3.3, forbids contributions by persons other than electors which, by definition, are not corporations, unions or associations: J. P. Boyer, *Money and Message*: *The Law Governing Election Financing, Advertising, Broadcasting and Campaigning in Canada* (1983), at pp. 219-40. The same limitations apply under the *Referendum Act*, R.S.Q., c. C-64.1. (See also *Libman*, *supra.*)

231 In this context, there is simply no evidence to support judicial notice of Quebec unions ideologically coercing their members. Such an inference presumes that unions hold a single ideology and impose it on their rank and file, including the complainants in this case. Such an inference would amount to little more than an unsubstantiated stereotype.

232 The appellants have based their case on the notion of some absolute right to refuse to associate and on their strong disagreement with the complex and extensive regulatory system governing the construction industry in Quebec. However, they presented no evidence that the legislation imposes a form of ideological conformity or threatens a liberty interest protected by the *Charter*, which is necessary to infringe the right not to associate under s. 2(*d*). The evidence does not even indicate whether unions are engaged in causes and activities that the appellants disapprove of. It is not a subject where judicial knowledge could and should replace proper evidentiary records unless the fact of joining a union would be, of itself, evidence of a particular ideological bent. One would have to presume that, because Quebec unions, as well as many other groups, take positions on social, economic and political issues, they impose an ideological coercion on their members or, in some way, impair the liberty interests protected by the *Charter*. The well-known fact of trade union participation in public life in Canada does not demonstrate that every union worker joining a union under a union security arrangement should be considered *prima facie* a victim of a breach of the *Charter*. After all, in *Lavigne*, our Court has accepted that the participation of labour unions in public life is an important aspect of their societal role. The application of the negative right not to associate may not rest on a generalized suspicion of the nature of unions and their management or internal life. Nor should the right of association be viewed primarily as an empty shell devoid of any positive or substantive meaning. Ironically, if another view prevails, what would be left in the *Charter*, at least in the field of labour relations, would be essentially a negative freedom not to associate. It would be used to deprive, inasmuch as possible, associations of workers of their effectiveness in the workplace and of their influence in society.

(…)

(1) American Jurisprudence

242 As explained by Dickson C.J. in *Reference re Public Service Employee Relations Act (Alta.)*, *supra*, at pp. 344 *et seq*., the American Constitution does not explicitly protect the freedom of association. This right is seen as primarily derived from the First Amendment, which provides:

> Congress shall make no law respecting an establishment of religion, or prohibiting the free exercise thereof; or abridging the freedom of speech, or of the press; or the right of the people peaceably to assemble, and to petition the Government for a redress of grievances.

243 The United States Supreme Court has also cited the liberty and due process clauses of the Fifth and the Fourteenth Amendments and even the Ninth Amendment in generating a constitutional freedom to associate. Nevertheless, the source of the right to associate was usually to be found in the First Amendment, as a corollary of freedom of speech.

244 While the United States Supreme Court has been willing to recognize a right not to associate, also based on the rights of free speech and belief, the history of its jurisprudence shows that the court has not invalidated every form of compelled association. It has attempted to draw a distinction between traditional union functions and political activities and has sought to protect the right of individual members to restrict the use of their dues in respect of causes they disapprove of. A more exhaustive review of this jurisprudence would not be useful, and I will only outline its most important features.

245 The Supreme Court refused to invalidate the provisions of a state constitution that restrained or prohibited some forms of closed shop or union shop (*Lincoln Federal Labor Union v. Northwestern Iron & Metal Co.*, 335 U.S. 525 (1949); *American Federation of Labor v. American Sash & Door Co.*, 335 U.S. 538 (1949)). On the other hand, the court found that the provisions of the *Railway Labour Act* which authorized a form of union shop did not infringe the First Amendment, absent evidence that it deprived employees of their freedom of thought and conscience: *Railway Employes' Department v. Hanson*, 351 U.S. 225 (1956), at p. 238.

246 In a later case, it held that the compulsory withholding of union dues from wages was only a device to compel otherwise "free riders" to share in the cost of negotiating and administering collective agreements. Yet such compulsory dues should not be used to compel employees to support causes that they oppose: *International Association of Machinists v. Street*, 367 U.S. 740 (1961). (See also *Brotherhood of Railway and Steamship Clerks v. Allen*, 373 U.S. 113 (1963).) In *Abood v. Detroit Board of Education*, 431 U.S. 209 (1977), the Supreme Court revisited the problem of the relationship between compelled union support and the guarantee of freedom of speech and opinion. On this occasion, it examined the validity and effect of an agency-shop clause similar to the Rand formula whereby every employee represented by the union, whether he or she had joined it or not, had to pay it a service fee equal to union dues. A group of employees objected to the enforcement of this provision. In their view, such a provision deprived them of their freedom of association protected by the First Amendment. They asserted that they were opposed to the payment of union dues to unions as well as to collective bargaining in the public sector and objected to various social and political activities carried on by their union. A majority of the Supreme Court held that the obligation to join the union was constitutionally justified "by the legislative assessment of the important contribution of the union shop to the system of labour relations established by Congress" (p. 222, *per* Stewart J.). Union dues could be exacted as long as they were used for collective bargaining, contract administration and grievance-adjustment purposes. Beyond that, the obligation to contribute to causes that members disapproved of violated their freedoms of association, speech and belief protected by the First Amendment.

247 Since *Abood*, a recurrent problem in the application of union-agency clauses has remained the proper delineation between core union functions and more peripheral activities, as dues may be collected from unwilling employees only for the traditional collective bargaining purposes. This analysis has required the creation of subtle distinctions within the broad range of possible union activities. Dissenting employees are now entitled to a procedure that mitigates the infringement of their First Amendment rights by preventing the use of their contributions for impermissible purposes (see *Ellis v. Brotherhood of Railway, Airline & Steamship Clerks*, 466 U.S. 435 (1984); *Chicago Teachers Union, Local No. 1 v. Hudson*, 475 U.S. 292 (1986); *Communications Workers of America v. Beck*, 487 U.S. 735 (1988); *Lehnert v. Ferris Faculty Association*, 500 U.S. 507 (1991)).

248 This Court has already chosen to diverge from the American approach taken to the right not to associate. Unlike in the United States, the *Lavigne* case held that a statutory system which allows for compulsory union dues is justified, even when the union spends the money for causes other than "traditional" union purposes, and even when some dues payers oppose some of the causes supported.

(2) The Jurisprudence of the European Court of Human Rights

249 My colleague Bastarache J. relies on the text of several international instruments to support the wide scope he gives to the negative freedom to not associate. An examination of the judicial interpretation of one of these instruments indicates that a negative right has been adopted but with limits. The appellants also invoked a number of judgments of the European Court of Human Rights…

250 Nevertheless, despite this silence of the Convention, since *Young, James and Webster*, Eur. Court H.R., judgment of 13 August 1981, Series A No. 44, the European Court has moved towards a recognition of the right not to associate as a necessary component of the guarantee of freedom of association under art. 11(1) of the Convention. In this case, in the opinion of the court, a union shop arrangement which imposed ideological conformity under the threat of dismissal from employment infringed art. 11 of the Convention and was not held to be justifiable. The court, nevertheless, held that not all forms of compelled association were inconsistent with art. 11. For example, a public interest law compelling doctors to join a professional regulatory body did not engage the guarantee of freedom of association (*Le Compte, Van Leuven and De Meyere*, Eur. Court H.R., judgment of 23 June 1981, Series A No. 43). In *Sigurjónsson v. Iceland*, Eur. Court H.R., judgment of 30 June 1993, Series A No. 264, the court clearly accepted that a right not to associate should be read into the guarantee of art. 11(1). In that case, it found that the legislative obligation to join a taxi-driver's union infringed the guarantee of freedom of association. It viewed this compulsion as a violation of the freedom of opinion of the complainant. On the other hand, the court held that art. 11 did not grant an employer the right to refuse to enter into a collective agreement as required by the relevant national legislation (*Gustafsson v. Sweden*, Eur. Court H.R., judgment of 25 April 1996, *Reports of Judgments and Decisions* 1996-II). In a recent judgment, outside the sphere of labour relations, an obligation to join hunter associations under a French law was declared invalid. On this occasion, the court reasserted the existence of the negative component of the guarantee of freedom of association (*Chassagnou and Others v. France* [GD], Nos. 25088/94, 28331/95 and 28443/95, ECHR 1999-III).

251 It must be understood, as well, that the European Convention is applied in a legal environment that reflects a different history of labour relations than in Canada or Quebec, in particular. The structures and methods of collective bargaining, the patterns of union organization and their status within the enterprise all differ deeply from the Canadian experience in the development of labour law and the management of labour relations. These labour systems may reject the principle of monopoly representation by a particular union or forms of union security like the union shop and the compulsory check off of union dues. On the other hand, the right to strike may be affirmed by the constitution itself, as in France. (See A. Mazeaud, *Droit du travail* (2nd ed. 2000), at pp. 204-5.) Many European nations recognize the broad societal role which unions play, and have entrenched union rights to participate in the management of private commercial and industrial enterprises. (See M. Weiss, "Workers' Participation in the European Union", in P. Davies et al., eds., *European Community Labour Law: Principles and Perspectives* (1996), 213; B. Bercusson, *European Labour Law* (1997), at pp. 248-61.) The labour laws of a country evidence a social and political compromise about the place of unions in that society and the proper balance between unions and employers. Thus, interesting as it may be, the consideration of European jurisprudence is not determinative, although it confirms an interpretation whereby a limited right to refuse to associate should be read into s. 2(*d*) of the *Charter*.

9.5 Excerpt from *R. v. Advance Cutting & Coring Ltd.*, 2001 SCC 70 (CanLII), [2001] 3 SCR 209, per L'Heureux-Dube J., paras 59-79

L'Heureux-Dube J

59 Although I agree that no one should be forced to associate, contrary to my colleague LeBel J. I am of the view that s. 2(*d*) of the *Charter* does not offer such constitutional protection for the reasons I articulated. Rather, and particularly on the narrowly circumscribed definition of that right and numerous built-in exceptions which my colleague LeBel J. adopts, the constitutional guarantee of freedom of expression under s. 2(*b*) will come into play if and when one is forced to associate as well as possibly s. 7 of the *Charter*. There is no need to create a "right not to associate" as a component of s. 2(*d*) of the *Charter* with all the consequences which might ensue and a protected right which, in my view, is not contemplated by s. 2(*d*).

60 The real concern expressed by McLachlin J. in *Lavigne* regarding "freedom from coerced ideological conformity" can be addressed without creating a protected "right not to associate", as Wilson J. pointed out in *Lavigne*: "To hold that s. 2(*d*) does not include the right not to associate does not leave those who do not wish to associate without redress for these harms. Sections 2(*b*) and 7 of the *Charter*, in particular, would seem to me to be available in appropriate cases" (p. 263).

61 I am also mindful of Dickson J.'s words in *R. v. Big M Drug Mart Ltd.*, 1985 CanLII 69 (SCC), [1985] 1 SCR 295, at p. 344, referred to by Wilson J. in *Lavigne*, at p. 259, that extending the protected right to freedom of association to include a freedom not to associate would be "to overshoot the actual purpose of the right or freedom in question…

The Fundamental Purpose of Freedom of Association

62 In *Reference re Public Service Employee Relations Act (Alta.)*, 1987 CanLII 88 (SCC), [1987] 1 SCR 313 (the "*Alberta Reference*"), McIntyre J., for the majority, stated at p. 408, that the "fundamental purpose of freedom of association . . . [is] to permit the collective pursuit of common goals…

63 In *Lavigne*, La Forest J., at p. 317, introduced the term "individual aspirations" when he noted that "[i]t is important to recognize that while it is true, as Wilson J. states in her reasons, at p. 251, that 'freedom of association is meant to protect the collective pursuit of common goals', such protection is afforded ultimately to further individual aspirations".

64 I interpret the meaning of "individual aspirations" as being a set which includes a subset under the rubric of "common goals" as well as a subset comprising "individual goals". In the context of freedom of association, I view La Forest J.'s "individual aspirations" as referring primarily to the subset of common goals. The pursuit of individual aspirations comprises both the pursuit of individual goals and the pursuit of common goals. The freedom to associate protects the giving effect to the latter. While it could be the case that in a given case only common goals are involved, the inclusion of individual goals within the term "individual aspirations" does not negate the argument.

65 I believe that it would not correspond with this Court's jurisprudence to characterize the purpose of s. 2(*d*) as meaning solely the protection of the common pursuit of individual goals, i.e. with no common goals in the equation.

66 There is an additional reason why the "common pursuit of individual goals" is not appropriate in the context of freedom of association analysis. In society, there is an element of synergy when individuals interact. The mere addition of individual goals will not suffice. Society is more then [sic] the sum of its parts. Put another way, a row of taxis do not a bus make. An arithmetic approach to *Charter* rights fails to encompass the aspirations imbedded in it.

67 In this context, negative rights are viewed as individual rights embodying individual goals: an individual is given the constitutional right not to belong to an association. But, if the "fundamental purpose of freedom of association, . . . [is] to permit the collective pursuit of common goals", then the very concept of a "negative freedom of association" becomes suspect. At issue is the definition of "common goals". In

such a context, the "collective pursuit of common goals" leads to an abstraction which is difficult to justify…

70 The course of judicial restraint suggests that no new constitutional doctrine should be developed if existing doctrine could resolve the issue. In this regard, I would make a comment on the case of *Sigurjónsson v. Iceland*, Eur. Court H.R., judgment of 30 June 1993, Series A No. 264, cited by LeBel J. in his reasons at para. 250, where he stated that in *Sigurjónsson*, the European Court of Human Rights ("ECHR") "clearly accepted that a right not to associate should be read into the guarantee of art. 11(1)". At p. 17, the majority of the ECHR stated:

> ... Sigurjónsson objected to being a member of the association in question partly because he disagreed with its policy in favour of limiting the number of taxicabs and, thus, access to the occupation; in his opinion the interests of his country were better served by extensive personal freedoms, including freedom of occupation, than State regulation. Therefore, the Court is of the view that Article 11 can, in the circumstances, be considered in the light of Articles 9 and 10, the protection of personal opinion being also one of the purposes of the freedom of association guaranteed by Article 11 (see the above-mentioned Young, James and Webster judgment, pp. 23-24, § 57). The pressure exerted on the applicant in order to compel him to remain a member of Frami contrary to his wishes was a further aspect going to the very essence of an Article 11 right; there was an interference too in this respect. [Emphasis added.]

71 It is apparent that the ECHR reached its conclusion by considering Mr. Sigurjónsson's individual goals in the context of art. 11 of the European Convention. The ECHR also held unanimously that it was "not necessary also to examine the case under Articles 9 or 10" (p. 20).

72 Similarly, in another case cited by LeBel J. at para. 250, *Chassagnou and Others v. France* [GD], Nos. 25088/94, 28331/95 and 28443/95, ECHR 1999-III, the ECHR applied a hybrid analysis, a methodology which would not be required in Canada. In that case, all the applicants were owners of small landholdings. By law, the applicants, who are opposed to hunting, had to become members of the approved municipal or intermunicipality hunters' associations set up in their municipalities and to transfer hunting rights over their land to these associations so that all hunters living in the relevant municipality could hunt there. The ECHR stated (at para. 117):

> To compel a person by law to join an association such that it is fundamentally contrary to his own convictions to be a member of it, and to oblige him, on account of his membership of that association, to transfer his rights over the land he owns so that the association in question can attain objectives of which he disapproves, goes beyond what is necessary to ensure that a fair balance is struck between conflicting interests and cannot be considered proportionate to the aim pursued.
>
> There has therefore been a violation of Article 11.

73 My opposition to the enshrinement of the negative right of association in s. 2(*d*) is not based on a desire to curtail the rights of those who feel aggrieved by the exclusion of the negative right of association. My argument has to do with my belief that we have the constitutional tools to deal with such a grievance.

74 As discussed above, the analysis followed in *Sigurjónsson* would be contrary to our jurisprudence for two reasons. First, it grounded its analysis primarily on individual goals, giving far lesser weight to communal goals. Secondly, a solution could have been found under arts. 9 or 10, but the ECHR decided otherwise.

75 This judicial parsimony should be ascribed to prudence, not miserliness. Constitutional remedies are powerful tools which ought to be used with prudence. When required, however, they should be applied with vigour and in a purposive manner.

76 An additional reason for caution is based on the fact that the impetus for efforts to establish the negative right to association has historically originated with those opposed to the establishment or maintenance of labour associations. Such a tainted pedigree raises the question of whether we should constitutionalize an initiative whose purpose was to defeat the right to associate. This concern is reflected in the dissenting opinion of Judge Thór Vilhjálmsson in the *Sigurjónsson* case, where he comments (at p. 21):

> The present case shows, in my opinion, that the classic freedom of association, which is expressly guaranteed in Article 11 of the Convention, is essentially different from the negative freedom of association. The freedom guaranteed by the Convention was originally one of the foundations of political freedom and activity. Since then, under the protection of this freedom, the trade unions, and their activities aimed at improving the lot of their members, have developed. The Icelandic case before the Court now shows that in certain circumstances it is not clear whether the negative freedom of association is likely to further the interests of those concerned in a way comparable to the clear benefits of the classic freedom. [Emphasis added.]

77 The creation and application of new judicial tools, featuring a questionable mark of origin, will inevitably generate new jurisprudence to which there are certain risks attached. Such a development may not be viewed as prudent, especially in light of the fact that there is no need to take such a risk because proven alternatives are available.

78 In any event the European Convention cannot dictate the way the Canadian *Charter* does protect fundamental rights and as my colleague LeBel J. asserts (at para. 251) "the consideration of European jurisprudence is not determinative". I do not however agree with his assertion that "it confirms an interpretation whereby a limited right to refuse to associate should be read into s. 2(*d*) of the *Charter*". In my view such a reading of s. 2(*d*) of the *Charter* is in no way implied in the European jurisprudence, since it is as compatible with my position that, if such a right exists, it is protected by s. 2(*b*) of the *Charter*.

79 Here, there is no negation of the right not to associate but only the way in which the Canadian *Charter* protects it. For these reasons, more extensively discussed in the reasons of Wilson J. in *Lavigne*, to which I refer as if herein recited at length, I conclude "that s. 2(*d*) includes only the positive freedom to associate" in the words of Wilson J. (p. 263). This being said, there is no reason for me to embark on a s. 1 analysis.

9.6 Excerpt from *R. v. Advance Cutting & Coring Ltd.*, 2001 SCC 70 (CanLII), [2001] 3 SCR 209, per Bastarache J., paras 2-20, 31-36

Bastarache J.,

2 LeBel J. concludes that s. 2(*d*) of the *Charter* implies a negative right not to associate; he states that the test for an infringement of this right is whether there is evidence of ideological coercion or conformity imposed by the forced association. Having found that no such ideological conformity exists in the present case, he finds no infringement of this right. With respect, I disagree both with the test used and his ultimate finding in the present case.

3 The test relied upon by LeBel J. is based primarily upon the decision of McLachlin J. (as she then was) in *Lavigne v. Ontario Public Service Employees Union*, 1991 CanLII 68 (SCC), [1991] 2 SCR 211. According to LeBel J., for ideological conformity to exist, there must be evidence of an imposition of union values or opinions on the member, evidence of a limitation of the member's free expression, or evidence that the union participates in causes and activities of which the member disapproves (para. 232). In other words, LeBel J.'s interpretation of ideological conformity is a narrow one where, in order to exist, there must be some impact on the member's moral convictions. This test, as formulated by LeBel J., is, in my opinion, too narrow and results in a negative right that is too constrained. I do not agree that McLachlin J.'s opinion in *Lavigne* need be interpreted so restrictively. In my view, the interpretation of ideological conformity must be broader and take place

in context. In this case, this context would take into account the true nature of unions as participatory bodies holding political and economic roles in society which, in turn, translates into the existence of ideological positions. To mandate that an individual adhere to such a union is ideological conformity.

4 It is evident that even prior to the coming into force of the *Charter*, ideological conformity was a major concern of the courts when considering forced association. In fact, this is shown by the Rand formula, which has been so important in the historical development of the union movement. According to Rand J., the democratic principle is an underlying value of prime importance in this analysis and any form of coercion affecting it must be taken very seriously. As noted by M. MacNeil, M. Lynk and P. Engelmann in *Trade Union Law in Canada* (loose-leaf ed.), at p. 2-13:

> Rand attempted to balance the interest of individuals in not being forced to associate with an organization against their will with the interest of the majority in preventing a minority from acquiring the fruits of collective bargaining without having to pay for it. [Emphasis added.]

5 At issue in the labour dispute arbitrated by Rand J. in 1946 was whether a union shop clause could be inserted into a collective agreement. He created an alternative to the union shop clause which became widely accepted and known as the 'Rand formula'. As noted above, in *Ford Motor Co. of Canada v. U.A.W.-I.C.O.* (1946), 46 C.L.L.C. ¶18,001, Rand J. was concerned with individual workers' rights and the democratic principles underlying union membership. He stated at p. 159:

> As I conceive it, from the social and economic structure in which we live I must select considerations which have attained acceptance in the public opinion of this country and which as principles are relevant to controversies of the nature of that before me;

At pp. 160 and 161, he noted that:

> [O]rganized labour itself develops and depends upon power, which in turn must be met in balancing controls in relation to the individual members or workers over whom it may be exercised, as well as to industry and public.
>
> ...
>
> The organization of labour must in a civilized manner be elaborated and strengthened for its essential function in an economy of private enterprise. For this there must be enlightened leadership at the top and democratic control at the bottom. ... Hitherto the tendency has been to treat labour as making demands quite unwarranted on any basis of democratic freedom in relation to property and business and the ordinary mode of settling labour disputes, a piecemeal concession in appeasement. I cannot see much effort to place conciliation on principle and although at once I disclaim any hope of doing more than to suggest principle through a slightly altered approach, I must at least make that attempt. [Emphasis added.]

He continued, at p. 163, discussing the balancing of union security with that of individual choice. He remarked:

> What is asked for is a union shop with a check-off. A union shop permits the employer to engage employees at large, but requires that within a stated time after engagement they join the union or be dismissed if they do not. This is to be distinguished from what is known as a "closed shop" in which only a member of the union can be originally employed, which in turn means that the union becomes the source from which labour is obtained.
>
> ... Where there is a closed or union shop, the check-off becomes less significant because of the fact that expulsion from the union requires dismissal from employment.
>
> In addition to the foregoing of which there may be many modifications, there is what is known as "maintenance of membership" which is a requirement that an employee member of a union maintain that membership as a condition to his continuing employment for a stated time, generally the life of an agreement. ...
>
> Basing my judgment on principles which I think the large majority of Canadians accept, I am unable in the circumstances to award a union shop. It would subject the Company's interest in individual employees and their tenure of service to strife within the union and between them and the union which, with extraordinary consequences, . . . and it would deny the individual Canadian the right to seek work and to work independently of personal association with any organized group. It would also expose him even in a generally disciplined organization to the danger of arbitrary action of individuals and place his economic life at the mercy of the threat as well as the action of power in an uncontrolled and here an unmatured group. [Emphasis added.]

Finally, at p. 165, he concluded that the mechanism chosen "preserves the basic liberties of [the] Company and employee" (emphasis added) aforementioned.

6 The Rand formula was discussed by this Court in *Lavigne*, *supra*. Wilson J. noted the reason for the success of this type of clause in Canada and distinguished it from situations where union membership was mandatory. She stated, at p. 272:

> Its success in Canada has stemmed from the fact that in enhancing union security it does not work to suppress expression but to foster it.
>
> Why is this so? Viewed closely, it is evident that there is nothing about the agency shop which purports to align those subject to its operation with the union or any of its activities. Indeed, the Rand formula specifically provides for dissent by stipulating that no member of the bargaining unit is required to join and thereby become a member of the union. Free expression was thus enhanced by giving unionists and non-unionists alike a voice in the administration of the employment relationship. [Emphasis added.]

Finding that the Rand formula infringes s. 2(*d*) of the *Charter* but is justified by s. 1, La Forest J. also noted, at p. 341, that the Rand formula does not mandate union membership. Further, McLachlin J. remarked, at p. 347:

> The whole purpose of the formula is to permit a person who does not wish to associate himself or herself with the union to desist from doing so. The individual does this by declining to become a member of the union. The individual thereby dissociates himself or herself from the activities of the union.

7 The infringement in the present case is much more important than that created by the Rand formula and requires justification that is therefore more extensive. It was decided in *Lavigne* that ideological conformity is at the core of freedom from association; it is not necessary to decide here whether it is the only factor to be considered in all cases, as will be shown later in these reasons.

8 In order to understand the entire scope of the negative right, one must consider the impact of other *Charter* values on its infringement, as required under the rules of *Charter* interpretation described in *R. v. Big M Drug Mart Ltd.*, 1985 CanLII 69 (SCC), [1985] 1 SCR 295…

9 …The whole context of the right must be considered. This was already a consideration of Rand J. in *Ford Motor*, *supra*, at p. 159, wherein he speaks of the social and economic structure in which we live and which gives rise to principles of law. This context includes, as I have said, a consideration of *Charter* values that come into play in the particular situation at issue. In this case, the fundamental values that must be protected in the workplace include freedom of conscience, mobility, liberty, freedom of expression and the right to work. The necessity of considering the totality of the rights and values that are interrelated when dealing with forced association in the workplace, in my opinion, points to the need to take a broad view of the *Charter* right not to associate.

10 This approach is supported by consideration of this freedom in light of international conventions and the jurisprudence of this Court.

11 The United Nations *Universal Declaration of Human Rights*, G.A. Res. 217 A (III), U.N. Doc. A/810, at 71 (1948), states:

Article 20

...

2. No one may be compelled to belong to an association.

In addition, the United Nations International Covenant on Economic, Social and Cultural Rights, 993 U.N.T.S. 3, provides that:

Article 8. 1. The States Parties to the present Covenant undertake to ensure:

(a) the right of everyone to form trade unions and join the trade union of his choice, subject only to the rules of the organization concerned, for the promotion and protection of his economic and social interests. No restrictions may be placed on the exercise of this right other than those prescribed by law and which are necessary in a democratic society in the interests of national security or public order or for the protection of the rights and freedoms of others; [Emphasis added.]

12 This Court has regularly made reference to and relied upon the aforementioned international documents in interpreting fundamental freedoms in the *Charter*…

13 It is interesting to note that the *African Charter on Human and Peoples' Rights*, which was referred to in *B. (R.) v. Children's Aid Society of Metropolitan Toronto*, 1995 CanLII 115 (SCC), [1995] 1 SCR 315, at para. 38 (the scope of the right to liberty in s. 7), provides, at art. 10:

2. Subject to the obligation of solidarity provided for in Article 29 no one may be compelled to join an association. [Emphasis added.]

14 In *Reference re Public Service Employee Relations Act (Alta.)*, 1987 CanLII 88 (SCC), [1987] 1 SCR 313 ("*Alberta Reference*"), and *Lavigne*, *supra*, this Court used these international agreements as interpretative tools in an analysis of s. 2(*d*) of the *Charter*. In *Alberta Reference*, Dickson C.J. (dissenting) noted, at p. 350, that the *International Covenant on Economic, Social and Cultural Rights* and the *International Covenant on Civil and Political Rights*, 999 U.N.T.S. 171, were adopted in an effort to make more specific the broad principles included in the *Universal Declaration of Human Rights*. I would like to note, however, that the specificity of the international covenants did not replace the broad principles enunciated in the Universal Declaration. These covenants clarify art. 20(1) of the Universal Declaration (the positive right), but do not minimize the negative right. Actually, the continuing importance of the negative right is seen in art. 8(1)(*a*) of the *International Covenant on Economic, Social and Cultural Rights*, wherein the joining of a union is referred to as the "right" of the worker to join a union of his or her "choice".

15 The importance of these documents in relation to s. 2(*d*) was discussed by La Forest J. in *Lavigne*, where he prescribed a broad and liberal interpretation of s. 2(*d*) in light of other *Charter* values…

Accordingly, a person is not deprived of protection under a provision of the *Charter* merely because protection may also be derived under another. The rights overlap in defining Canadian society, and I see no reason for depriving a litigant of success because he has chosen one provision that legitimately appears to cover the matter of which he or she complains, rather than another. That would often be the effect if the individual rights and freedoms were construed as discrete rather than overlapping.

16 He went on to discuss the scope of this *Charter* right. In doing so, he noted that s. 2(*d*) has limitations and that it was not meant to protect the people of Canada from the association with others that is "a necessary and inevitable part of membership in a democratic community" (p. 320). He mentioned governmental policies requiring the payment of taxes and the association with others that is compelled by the organization of our society, such as membership in a family. I am not persuaded that these are examples of true associations as envisaged within the meaning of s. 2(*d*) or that they constitute true exceptions to the freedom from association. In this, I think we have to be guided by the purpose of the section. On this point, it is worth quoting La Forest J., at pp. 322-23, where he stated:

At the core of the guarantee of freedom of association is the individual's freedom to choose the path to self-actualization. This is an aspect of the autonomy of the individual. It is of little solace to a person who is compelled to associate with others against his or her own will that no one will attribute the views of the group to that person. ... Consequently, the test should not be whether the payments "may reasonably be seen" as association, or must "indicate to any reasonable person" that the individual has associated himself with an ideological cause. An external manifestation of some link between the individual and the association is not a prerequisite to the invocation of the right; it is enough that the individual's freedom is impaired. [Emphasis added.]

I think this has to be read with the words of Dickson C.J. in *Oakes*, *supra*, at p. 136:

The Court must be guided by the values and principles essential to a free and democratic society which I believe embody, to name but a few, respect for the inherent dignity of the human person, commitment to social justice and equality, accommodation of a wide variety of beliefs, respect for cultural and group identity, and faith in social and political institutions which enhance the participation of individuals and groups in society. [Emphasis added.]

17 The recognition of the union movement as a fundamental institution is implicit here precisely because it is a participant in the political and social debate at the core of Canadian democracy. To suggest that the unions in the present case are not associated with any ideological cause is to ignore the history of the union movement itself. Although it has been accepted that freedom of association protects an activity by an association that is permitted by an individual, this does not mean that there is no distinctive function for an association, or that associational analogues to individual rights need be ignored. The collective character of the right to associate is undeniable because collective activity is not equivalent to the addition of individual activities. It is important, however, that belonging to important social institutions be free; this is how democracy will be enhanced.

18 Discussing limitations on the freedom from association, La Forest J. noted that some of the liberty interests at issue in the context of the right to be free from association were discussed by Professor B. Etherington in his article "Freedom of Association and Compulsory Union Dues: Towards a Purposive Conception of a Freedom to not Associate" (1987), 19 *Ottawa L. Rev.* 1, and include (at pp. 43-44):

1. governmental establishment of, or support for, particular political parties or causes;
2. impairment of the individual's freedom to join or associate with causes of his choice;
3. the imposition of ideological conformity; and
4. personal identification of an objector with political or ideological causes which the service association supports.

La Forest J. noted that this view is consistent with the reasons of Dickson J. in *Big M Drug Mart*, *supra*.

19 I agree with La Forest and McLachlin JJ. that there is a negative aspect to the s. 2(*d*) right. However, I do not think it is useful to distinguish between the factors proposed by Professor Etherington or to formulate a definitive opinion with regard to the various factors that could, in any given situation, provide a framework for the conclusion that freedom from association has been breached. With regard to the content of the right, it is sufficient to refer to ideological conformity in this case because that factor has already been recognized, because it is at play and because its scope is such that it encompasses all aspects of the case on its facts. I am left here with a number of options. For instance, I could accept that there is an internal qualification of the negative aspect of s. 2(*d*) and that it is triggered by the infringement of a liberty interest, other *Charter* values and/or the imposition of ideological conformity; or I could accept that there is a negative aspect to s. 2(*d*) and that a s. 1 justification is immediately required upon a finding that there has been state-imposed association. First, a distinction may be made between the exceptions to s. 2(*d*) protection, as discussed by La Forest J. and noted at para. 16 of these reasons, and true associations which are protected by s. 2(*d*). Although not necessary to determine in this case, as these exceptions are not brought into play by the factual situation in issue, it may be said that these "necessary" associations do not truly fall within the purpose of s. 2(*d*) protection since they do not involve persons coming together in the pursuit of a common goal or purpose as this is generally understood. Association in a labour organization would not in any case be part of the "necessary" associations category. Further, any element of necessity which would impact protections provided by s. 2(*d*) would, in my opinion, fall within a s. 1 justification of a s. 2(*d*) infringement rather than at the initial *Charter* breach analysis. Second, it should be added that even if forced associations in and of themselves should not be considered *ab initio* contrary to universal values or principles, once coercion is applied by government to association in circumstances where ideological conformity is imposed, I believe s. 2(*d*) is infringed and the government must justify this forced association pursuant to s. 1.

20 I would add here that I disagree with the statement of LeBel J. at para. 199 of his reasons that La Forest J. was of the opinion that the obligation to join a union whose purposes were limited to collective bargaining would not even engage s. 2(*d*). This inference, in my view, is not consistent with the fact that La Forest J.'s discussions of constitutional issues in *Lavigne* had nothing to do with mandatory membership (see p. 325). Furthermore, this is not relevant here, as will be demonstrated later, because the association in question goes beyond the purpose of collective bargaining.

(..)

31 This is a case where the freedom not to associate is markedly infringed. I respectfully disagree with LeBel J. when he advocates deference to the choices of government on giving content to the notions of "self-actualization" (para. 210) and "democracy" (paras. 228 and 229). I disagree with his view that the present matter "lie[s] largely beyond the area of expertise of courts" (para. 239). In my opinion, though problems may have been acute in this area, not all options are open to government. This is a clear situation of government coercion, the result of which mandates that workers in the construction industry in Quebec group together in a few unions which are specified and approved by government. The fact that there are five unions from which workers can choose in no way negates this infringement for it remains government-mandated group affiliation. Self-realization of the worker is violated in many ways. He or she must unionize. Within the prescribed regime, democracy is further restricted by limited choice. There is no guarantee that a majority of voters will exercise their right. A default provision can determine the outcome of elections. Those voting for minority associations may be left out of future negotiations.

32 The vast majority of Canadians must work for a living and, as such, working is a compelled fact of life; however, in the present situation, the appellants are not arguing that being forced to work with a particular group or to participate in employment-related activities violates s. 2(*d*). This is not a case where workers dispute the payment of mandated union dues; the restrictions in this case are much more severe than that in *Lavigne*. The Rand formula mandates payment of union dues for the betterment of all workers; in this case, the workers are being forced to join a union. As argued by the appellants, being forced by the government to join one of five specified unions differs drastically from being forced to pay union dues. The appellants state (factum, at para. 24):

> The objection to union membership can be anchored in profound moral, religious or political convictions and it is implicit in Canadian law that such convictions are to be respected.

I agree with this assertion. *Lavigne* focussed on the actual activities of the union in question and the purpose for which union dues were used. This situation, on the other hand, even if it is not based on the actual views held by the five unions, comprises a form of ideological conformity.

33 As I have said, it is not necessary to make a conclusive determination of whether these liberty interests are separate indices of a s. 2(*d*) infringement or whether they are merely subcategories of ideological conformity since, in this case, ideological conformity, which was explicitly accepted by both La Forest and McLachlin JJ. in *Lavigne*, exists. Workers may feel strongly about joining a union for various reasons, but whether they are moral, religious or political, these beliefs and convictions must be pushed aside if one wishes to work in the construction industry in Quebec. They are the only workers affected in this way. When considering freedom not to associate in light of other *Charter* values, including freedom of conscience and expression, liberty, mobility and the right to work, I cannot help but find that governmental mandatory union association infringes this important *Charter* right.

34 As I have said, ideological conformity is engaged in particular because the members of the associations necessarily participate in and indirectly support a system of forced association and state control over work opportunity. This is a situation whereby the democratic rights of workers are taken away. Being forced to accept and participate in a system that severely limits the democratic principle in the area of labour relations is a form of coercion that cannot be segregated totally from ideological conformity. If Parliament provided that a person must belong to a specific political party to work in the public service of Canada, the situation would be analogous. Some would argue that one does not have to believe, simply that one has to belong; as stated at para. 16, I believe there would still be clear ideological conformity.

35 Since ideological conformity is part of the broader test to which I subscribe, I conclude that the challenged statutory provisions infringe the negative right which forms part of s. 2(*d*).

36 I do not believe that this conclusion is inconsistent with previous jurisprudence. For example, the Rand formula differs from the case at bar because it does not negate the democratic principle; in that case, a majority of workers choose accreditation and approve the collective agreement. Workers can still choose to work in a non-unionized environment. The ultimate forced association is then justified by the majority principle and the underlying need to have a system of protection of workers that is effective. There is also a distinction to be made with the requirements of professional associations such as medical associations and law societies, where the need for protection of the public may require a forced association which is justified under s. 1 of the *Charter*. In this case, the provisions are not based on the protection of the public by way of assuring the competency of workers. To receive certification, a worker must be a member of one of the five chosen unions; to become a member, he or she must have been a resident of Quebec in the previous year, have worked a set number of hours in that year and must be under 50 years of age. Without having met these requirements, a worker is unable to work in Quebec regardless of his or her actual competence or experience in his or her chosen trade. The conditions related to forced association have nothing to do with the protection of the public. As stated by Judge Bonin of the Court of Québec, [translation] "[t]he certificate's main purpose was to maintain hiring priority". As such, a s. 1 justification is required. Before considering s. 1, however, I turn next to the examination of the positive right which is also part of s. 2(*d*).

9.7 Questions

1. The two major Supreme Court of Canada decisions addressing the 'freedom to not associate', Lavigne and Advance Cutting, were each split four ways, with four different judgments. What makes this issue so difficult and controversial? Would the freedom to not associate be treated differently outside of the labour context, and if so, why?
2. In Lavigne and Advance Cutting, respectively, Justices Wilson and Lebel place little weight on comparative or international law, both of which arguably offer greater protection for a right to not associate than the approaches adopted by these Justices under section 2(d). Should the experience of comparator jurisdictions or the requirements of international law pertaining to the right to not associate be paid greater attention in defining the scope of section 2(d) in this context? Why or why not?
3. The payment of monies – whether compelled in favour of causes one does not support, or prohibited in favour of causes one does support – has been an enduring source of constitutional controversy. Justice LaForest likens certain mandatory dues to the forced payment of religious tithes by non-believers, while Justice Wilson draws an analogy to the payment of taxes. Which analogy is more compelling in the context of union dues, or is there a different and better way to look at this issue? (for one thoughtful view on the subject, see Brian Etherington, "*Freedom of Association and Compulsory Union Dues: Towards a Purposive Conception of a Freedom to Not Associate*" (1987) 19:1 Ottawa L Rev 1).
4. In order to demonstrate a breach of the right to not associate, the majority in Advance Coring suggests that it is necessary to demonstrate that the impugned government action imposes "ideological conformity". Is this the appropriate standard in determining a breach of the right to not associate? Why or why not? And should the standard depend on the context of the restriction? (for a critical assessment of the decisions in Lavigne and Advance Cutting, see Jamie Cameron, "*Big M's Forgotten Legacy of Freedom*" in Newman, Ross, Bird eds The Forgotten Fundamental Freedoms of the Charter (Toronto: LexisNexis Canada Inc., 2020)).
5. The right to not associate limits the scope of employees' collective power, and thus effectively favours employers, even when invoked by an employee (as in Lavigne). What impact, if any, does this have on the Court's reasoning and conclusions?

Chapter 22: Democratic Rights

By Mary Liston and Michael Pal

1 Introduction

> "Voting is the cornerstone of our democracy. Denying citizens the right to vote not only strikes at the heart of their fundamental rights, but also comes at the expense of their dignity and their sense of self-worth": *Frank v. Canada,* 2019 SCC 1 at para 82.

The simple idea behind democracy is 'rule by the people'. To bring this ideal to life, democracy requires a legal basis and an institutional framework. This Chapter on "Democratic Rights" covers the rights and freedoms in the *Canadian Charter of Rights and Freedoms* directly relevant to political participation, the written and unwritten components of the Constitution of Canada which sustain the institutional structure of Canadian democracy, and aspects of Canadian public law related to both democratic rights and institutions.

Democracy in Canada has enduring core characteristics. Canada can be variously described as a representative democracy, a constitutional democracy, and a liberal democracy.

Canada is a representative democracy, with elections to select Members of Parliament (MP's) who will sit as our representatives in the House of Commons lying at the heart of political life. While mechanisms of direct democracy such as referendums have a circumscribed role, elections are the primary vehicle for assigning public authority in a democratic fashion. Democratic rights in Canada are focused as a result on ensuring a fair electoral process, such that:

- voters are provided a meaningful opportunity to participate and to be effectively represented;
- candidates and political parties have an equal opportunity to compete to wield public power; and,
- interest groups of various kinds, such as non-governmental organizations, corporations, and unions are free to shape public debate.

As a constitutional democracy, a complex legal superstructure creates and sustains the practice of Canadian democracy. This practice is shaped by the Constitution of Canada which, while multi-faceted, is best described as liberal in nature. Our constitutional tradition and text are informed by the political philosophy of liberalism, which endorses the concept of rights that limit arbitrary or irrational government action. These rights include the right to vote, the right to stand as a candidate for elected office, freedom of political expression, freedom of association, equality, and freedom of the press, among others.

Part of this liberal traditional involves counter-majoritarianism. While elections translate votes into seats in the House of Commons and can result in a majority government, this does not necessarily mean that a government will behave democratically. Democratic law-making and accountability is realized through scrutiny of the governing party or parties by Parliament. Citizens, through the ballot box, have the right to 'kick the bums out' if they are unhappy with the government of the day and can then instantiate a fresh start with a new government as a form of *direct* accountability. The conventions or 'rules' of responsible government (discussed below in section 1.2.1.1) aim to ensure that both our elected representatives and the unelected decisionmakers in the executive branch (ie, the modern administrative state) are also *indirectly* held accountable.

The judiciary is specially tasked to oversee government action through the practice of judicial review in administrative and constitutional law. Courts check the exercise of public power in a variety of ways, but one chief means is through the enforcement of rights against the other two branches of government.

Canadian democracy has historically and continues to be the subject of extensive critique for failing to live up to democratic ideals. Institutionally, the Senate performs an important function as the second legislative chamber, but as an unelected body with an outdated distribution of seats, it has been criticized since its inception for lacking democratic legitimacy. Parliament is formally supreme and sovereign, but in practice the political executive, namely the Prime Minister and cabinet, are dominant and exercise extensive day-to-day control over the legislature: see Mary Liston, 'The Most Opaque Branch: The (Un)Accountable Growth of Executive Power in Canadian Government' in Richard Albert, Paul Daly, and Vanessa MacDonnell, eds, *The Canadian Constitution in Transition* (University of Toronto Press, 2019).

Indigenous Peoples have, since Canada's founding, criticized the country's institutions for excluding them and failing to respect their right to self-government. As discussed below in sections 1.4.2 and Part 4 of this Chapter, the historical formal exclusion of participation by Indigenous Peoples in Canadian elections has left a long shadow today, including informal barriers to voting and standing as a candidate that persist.

In relation to democratic rights, a set of recurring problems appear in the caselaw: who can vote; who can run for office; who is the true winner in the wake of a contested election result; what is the role of political parties; how should elections be administered; and what is the correct balance between liberty and equality in the regulation of money in politics? These cases inevitably touch on broader issues around accountability for those wielding state power, the proper scope of democratic rights, and the appropriate role of courts when cases involving the institutional aspect of democracy arise.

This Chapter first sets out the legal context that informs our democratic rights. Part 2 then examines the constitutional and legal architecture that supports democracy. Part 3 turns to the caselaw on the right to vote. Part 4 looks at the distinctive ways that Indigenous communities elect their leadership. Finally, in Part 5 the Chapter briefly reflects on emerging issues. This Chapter largely focuses on the federal level in Canada, though it is important to note that the democratic issues examined here also occur at the provincial level.

1.1 Law and democracy in Canada

While the text of the Constitution of Canada structures democracy, the unwritten principle of democracy shapes interpretation of the text. Democracy is part of the 'web' or 'network' of unwritten principles in our jurisprudence and the democratic principle informs our constitutional architecture. We begin therefore with a discussion of the unwritten principle of democracy as it has been used in constitutional interpretation.

1.1.1 Unwritten principle of democracy

1.1.1.1 *Reference re Secession of Quebec*, 1998 CanLII 793 (SCC), [1998] 2 SCR 217

The *Secession Reference* (*Reference re Secession of Quebec,* 1998 CanLII 793 (SCC), [1998] 2 SCR 217 at para 49) identified democracy as one of the four foundational unwritten principles of the Constitution of Canada. Like the other unwritten principles, democracy is part of the 'architecture' of the Constitution and its 'basic constitutional structure' (para 50).

The *Secession Reference* (paras 61-69) stated that the democracy principle contained both an individual and institutional dimension. On the institutional dimension, the basic structure of the Constitution presupposes that Canada is a constitutional democracy with 'freely elected' legislatures in Ottawa and in the Provinces. This concise phrase contains within it an assumption that elections are part of the basic structure, that they must be free and fair, and that democracy operates at both the federal and provincial orders of government. The *Secession Reference* (para 62) also importantly cites pre-*Charter* cases where the Supreme Court struck down provincial laws for ostensibly violating the division of powers. These cases had the effect of protecting democracy by invalidating provincial laws that harmed the free press, the capacity of citizens to criticize the government, and other rights and freedoms critical to democracy. These cases are consistent with the *Secession Reference*'s claim that democracy has always been foundational to the Canadian Constitution.

The institutional dimension of the unwritten principle connects directly to the individual dimension in the form of democratic rights and freedoms. Democracy requires a host of individual rights, including the right to vote, freedom of political expression, freedom of association, and freedom of the press. If legislatures are to be 'freely elected,' then that fact necessitates a 'popular franchise' (para 65). While the history of exclusion of minority groups, women, and Indigenous Peoples from the right to vote is long (see sections 1.4.1 and 1.4.2), the *Secession Reference* identifies these limits on the franchise as aberrations that do not detract from the foundational democratic nature of the Canadian Constitution and political tradition.

Democracy has a complex relationship between political majorities and political minorities. The *Secession Reference* identifies the substantive goal of self-government as being at the core of the unwritten principle of democracy. Self-government, however, is understood as going beyond majority rule. Majority rule is central to democracy, but must be circumscribed by minority rights whether it be through individual rights or by acknowledge of the reality in a federation of national minorities operating as majorities at the provincial level. According to the Supreme Court, majority rule is also checked by a deliberative ideal of democracy as a 'continuous process of discussion' rather than an exercise of majority power (para 68):

> (c) *Democracy*
>
> 61 Democracy is a fundamental value in our constitutional law and political culture. While it has both an institutional and an individual aspect, the democratic principle was also argued before us in the sense of the supremacy of the sovereign will of a people, in this case potentially to be expressed by Quebecers in support of unilateral secession. It is useful to explore in a summary way these different aspects of the democratic principle.
>
> 62 The principle of democracy has always informed the design of our constitutional structure, and continues to act as an essential interpretive consideration to this day. A majority of this Court in *OPSEU v. Ontario, supra*, at p. 57, confirmed that "the basic structure of our Constitution, as established by the *Constitution Act, 1867*, contemplates the existence of certain political institutions, including freely elected legislative bodies at the federal and provincial levels". As is apparent from an earlier line of decisions emanating from this Court, including *Switzman v. Elbling,* 1957 CanLII 2 (SCC), [1957] SCR 285, *Saumur v. City of Quebec*, 1953 CanLII 3 (SCC), [1953] 2 SCR 299, *Boucher v. The King*, 1950 CanLII 2 (SCC), [1951] SCR 265, and *Reference re Alberta Statutes*, 1938 CanLII 1 (SCC), [1938] SCR 100, the democracy principle can best be understood as a sort of baseline against which the framers of our Constitution, and subsequently, our elected representatives under it, have always operated. It is perhaps for this reason that the principle was not explicitly identified in the text of the *Constitution Act, 1867* itself. To have done so might have appeared redundant, even silly, to the framers. As explained in the *Provincial Judges Reference, supra*, at para. 100, it is evident that our Constitution contemplates that Canada shall be a constitutional democracy. Yet this merely demonstrates the importance of underlying constitutional principles that are nowhere explicitly described in our constitutional texts. The representative and democratic nature of our political institutions was simply assumed.
>
> 63 Democracy is commonly understood as being a political system of majority rule. It is essential to be clear what this means. The evolution of our democratic tradition can be traced back to the *Magna Carta* (1215) and before, through the long struggle for Parliamentary supremacy which culminated in the English *Bill of Rights* of 1689, the emergence of representative political institutions in the colonial era, the development of responsible government in the 19th century, and eventually, the achievement of Confederation itself in 1867. "[T]he Canadian tradition", the majority of this Court held in *Reference re Provincial Electoral Boundaries (Sask.),* 1991 CanLII 61 (SCC), [1991] 2 SCR 158, at p. 186, is "one of evolutionary democracy moving in uneven steps toward the goal of universal suffrage and more effective representation". Since Confederation, efforts to extend the franchise to those unjustly excluded from participation in our political system — such as women, minorities, and aboriginal peoples — have continued, with some success, to the present day.
>
> 64 Democracy is not simply concerned with the process of government. On the contrary, as suggested in *Switzman v. Elbling, supra,* at p. 306, democracy is fundamentally connected to substantive goals, most importantly, the promotion of self-government. Democracy accommodates cultural and group identities: *Reference re Provincial Electoral Boundaries*, at p. 188. Put another way, a sovereign people exercises its right to self-government through the democratic process. In considering the scope and purpose of the *Charter*, the Court in *R. v. Oakes*, 1986 CanLII 46 (SCC), [1986] 1 SCR 103, articulated some of the values inherent in the notion of democracy (at p. 136):

> The Court must be guided by the values and principles essential to a free and democratic society which I believe to embody, to name but a few, respect for the inherent dignity of the human person, commitment to social justice and equality, accommodation of a wide variety of beliefs, respect for cultural and group identity, and faith in social and political institutions which enhance the participation of individuals and groups in society.
>
> 65 In institutional terms, democracy means that each of the provincial legislatures and the federal Parliament is elected by popular franchise. These legislatures, we have said, are "at the core of the system of representative government": *New Brunswick Broadcasting, supra*, at p. 387. In individual terms, the right to vote in elections to the House of Commons and the provincial legislatures, and to be candidates in those elections, is guaranteed to "Every citizen of Canada" by virtue of s. 3 of the *Charter*. Historically, this Court has interpreted democracy to mean the process of representative and responsible government and the right of citizens to participate in the political process as voters (*Reference re Provincial Electoral Boundaries, supra*) and as candidates (*Harvey v. New Brunswick (Attorney General),* 1996 CanLII 163 (SCC), [1996] 2 SCR 876). In addition, the effect of s. 4 of the *Charter* is to oblige the House of Commons and the provincial legislatures to hold regular elections and to permit citizens to elect representatives to their political institutions. The democratic principle is affirmed with particular clarity in that s. 4 is not subject to the notwithstanding power contained in s. 33.
>
> 66 It is, of course, true that democracy expresses the sovereign will of the people. Yet this expression, too, must be taken in the context of the other institutional values we have identified as pertinent to this Reference. The relationship between democracy and federalism means, for example, that in Canada there may be different and equally legitimate majorities in different provinces and territories and at the federal level. No one majority is more or less "legitimate" than the others as an expression of democratic opinion, although, of course, the consequences will vary with the subject matter. A federal system of government enables different provinces to pursue policies responsive to the particular concerns and interests of people in that province. At the same time, Canada as a whole is also a democratic community in which citizens construct and achieve goals on a national scale through a federal government acting within the limits of its jurisdiction. The function of federalism is to enable citizens to participate concurrently in different collectivities and to pursue goals at both a provincial and a federal level.
>
> 67 The consent of the governed is a value that is basic to our understanding of a free and democratic society. Yet democracy in any real sense of the word cannot exist without the rule of law. It is the law that creates the framework within which the "sovereign will" is to be ascertained and implemented. To be accorded legitimacy, democratic institutions must rest, ultimately, on a legal foundation. That is, they must allow for the participation of, and accountability to, the people, through public institutions created under the Constitution. Equally, however, a system of government cannot survive through adherence to the law alone. A political system must also possess legitimacy, and in our political culture, that requires an interaction between the rule of law and the democratic principle. The system must be capable of reflecting the aspirations of the people. But there is more. Our law's claim to legitimacy also rests on an appeal to moral values, many of which are imbedded in our constitutional structure. It would be a grave mistake to equate legitimacy with the "sovereign will" or majority rule alone, to the exclusion of other constitutional values.
>
> 68 Finally, we highlight that a functioning democracy requires a continuous process of discussion. The Constitution mandates government by democratic legislatures, and an executive accountable to them, "resting ultimately on public opinion reached by discussion and the interplay of ideas" (*Saumur v. City of Quebec, supra,* at p. 330). At both the federal and provincial level, by its very nature, the need to build majorities necessitates compromise, negotiation, and deliberation. No one has a monopoly on truth, and our system is predicated on the faith that in the marketplace of ideas, the best solutions to public problems will rise to the top. Inevitably, there will be dissenting voices. A democratic system of government is committed to considering those dissenting voices, and seeking to acknowledge and address those voices in the laws by which all in the community must live.
>
> 69 The *Constitution Act, 1982* gives expression to this principle, by conferring a right to initiate constitutional change on each participant in Confederation. In our view, the existence of this right imposes a corresponding duty on the participants in Confederation to engage in constitutional discussions in order to acknowledge and address democratic expressions of a desire for change in other provinces. This duty is inherent in the democratic principle which is a fundamental predicate of our system of governance.

The unwritten principle of democracy has been subject to less judicial elaboration than other principles such as federalism or the rule of law. Significant uncertainty exists as to whether the unwritten principle of democracy should be interpreted as primarily procedural in nature, therefore mostly ensuring free, fair, and competitive elections, or whether it offers a thicker, substantive standard: See Michael Pal, "The Unwritten Principle of Democracy" (2019) 65:2 McGill LJ 69.

1.1.1.2 *Toronto (City) v Ontario (Attorney General)*, 2021 SCC 34 (CanLII), [2021] 2 SCR 845

In *Toronto (City) v Ontario (Attorney General)*, 2021 SCC 34 (CanLII), [2021] 2 SCR 845 *(City of Toronto),* the Supreme Court of Canada shifted the role of unwritten principles in constitutional interpretation, including in relation to democracy. A majority of the Supreme Court held that the principle of democracy, like the other unwritten principles, cannot be the sole basis through which a reviewing court invalidates a statute. The reasoning of the majority was that the written text cannot be superseded by the unwritten principles.

At issue in the case was whether the unwritten principle of democracy could be the basis to invalidate a provincial law changing the number of wards in Toronto and their boundaries in the middle of a municipal election. While the majority allowed that unwritten principles can be used to guide interpretation of the text, they declined to use the democracy principle to interpret s.2(b) of the *Charter* in the context of a municipal election. The minority would have permitted unwritten principles to have the force of law in exceptional scenarios, particularly where there is a 'gap' in the constitutional text.

> (1) Interpretive and Gap-Filling Roles of Unwritten Constitutional Principles
>
> [49] The Constitution of Canada embodies written and unwritten norms. This Court has recognized that our Constitution describes an architecture of the institutions of state and of their relationship to citizens that connotes certain underlying principles (*Reference re Remuneration of Judges of the Provincial Court of Prince Edward Island*, 1997 CanLII 317 (SCC), [1997] 3 SCR 3, at para. 93; *Reference re Secession of Quebec*, 1998 CanLII 793 (SCC), [1998] 2 SCR 217, at paras. 50-51). These principles, such as democracy and the rule of law, "infuse our Constitution" (*Secession Reference*, at para. 50). Although not recorded outside of "oblique reference[s]" in the preamble to the *Constitution Act, 1867* and to the *Constitution Act, 1982* (para. 51), these principles are "foundational" (para. 49), without which "it would be impossible to conceive of our constitutional structure" (para. 51). These principles have "full legal force" and may give rise to substantive legal obligations (para. 54, quoting *Reference re Resolution to Amend the Constitution*, 1981 CanLII 25 (SCC), [1981] 1 SCR 753, at p. 845). "[L]ike all principles of political morality, [they] can guide and constrain the decision-making of the executive and legislative branches" (C.A. reasons, at para. 84, citing *British Columbia v. Imperial Tobacco Canada Ltd.*, 2005 SCC 49, [2005] 2 SCR 473, at para. 52).

The Court also set out how the unwritten principles may be used by the courts:

> [55] First, they may be used in the interpretation of constitutional provisions. Indeed, that is the "full legal force" that this Court described in *Secession Reference* (para. 54). In this way, the unwritten constitutional principles of judicial independence and the rule of law have aided in the interpretation of ss 96 to 100 of the *Constitution Act, 1867*, which have come to safeguard the core jurisdiction of the courts which fall within the scope of those provisions (*Provincial Court Judges Reference*, at paras. 88-89; *MacMillan Bloedel*, at paras. 10-11 and 27-28; *Trial*

Lawyers Association of British Columbia v. British Columbia (Attorney General), 2014 SCC 59, [2014] 3 SCR 31, at paras. 29-33). When applied to *Charter* rights, unwritten principles assist with purposive interpretation, informing "the character and the larger objects of the *Charter* itself, … the language chosen to articulate the specific right or freedom, [and] the historical origins of the concepts enshrined" (*Quebec (Attorney General)*, at para. 7, quoting *Big M Drug Mart Ltd.*, at p. 344; see also *R. v. Poulin*, 2019 SCC 47, at para. 32).

[56] Secondly, and relatedly, unwritten principles can be used to develop structural doctrines unstated in the written Constitution *per se*, but necessary to the coherence of, and flowing by implication from, its architecture. In this way, structural doctrines can fill gaps and address important questions on which the text of the Constitution is silent, such as the doctrine of full faith and credit (*Morguard Investments Ltd. v. De Savoye*, 1990 CanLII 29 (SCC), [1990] 3 SCR 1077; *Hunt v. T&N plc*, 1993 CanLII 43 (SCC), [1993] 4 SCR 289); the doctrine of paramountcy (*Huson v. The Township of South Norwich* (1895), 1895 CanLII 1 (SCC), 24 SCR 145); the remedy of suspended declarations of invalidity (*Reference re Manitoba Language Rights*, 1985 CanLII 33 (SCC), [1985] 1 SCR 721); and the obligations to negotiate that would follow a declaration of secession by a province (*Secession Reference*).

[57] Neither of these functions support the proposition advanced by the City that the force of unwritten principles extends to invalidating legislation. Indeed, the truth of the matter is to the contrary. Attempts to apply unwritten constitutional principles in such a manner as an independent basis to invalidate legislation, whether alone or in combination, suffer from a normative and a practical deficiency, each related to the other, and each fatal on its own.

[58] First, such attempts trespass into legislative authority to amend the Constitution, thereby raising fundamental concerns about the legitimacy of judicial review and distorting the separation of powers…

[59] Secondly, unwritten constitutional principles are "highly abstract" and "[u]nlike the rights enumerated in the *Charter* — rights whose textual formulations were debated, refined and ultimately resolved by the committees and legislative assemblies entrusted with constitution-making authority — the concep[t] of democracy . . . ha[s] no canonical formulatio[n]" (C.A. reasons, at para. 85). Unlike the written text of the Constitution, then, which "promotes legal certainty and predictability" in the exercise of judicial review (*Secession Reference*, at para. 53), the nebulous nature of the unwritten principles makes them susceptible to be interpreted so as to "render many of our written constitutional rights redundant and, in doing so, undermine the delimitation of those rights chosen by our constitutional framers" (*Imperial Tobacco*, at para. 65). Accordingly, there is good reason to insist that "protection from legislation that some might view as unjust or unfair properly lies not in the amorphous underlying principles of our Constitution, but in its text and the ballot box" (para. 66). In our view, this statement should be understood as covering all possible bases for claims of right (i.e., "unjust or unfair" *or otherwise normatively deficient*).

1.2 Textual sources and the unwritten constitution

Democracy in Canada is reflected in constitutional text as well as unwritten portions of the Constitution. In the *Constitution Act, 1867*, textual provisions include the establishment of the House of Commons and the Senate and the distribution of seats in both Houses of Parliament to the Provinces. In the *Constitution Act, 1982*, 'democratic rights' are set out in the sections 3-5 of the *Charter*. Other relevant provisions of the *Charter* include in particular s.2 in relation to freedom of political expression and association.

1.2.1 The textual locus for the principle of democracy

Canadian Charter of Rights and Freedoms

Democratic rights of citizens

3 Every citizen of Canada has the right to vote in an election of members of the House of Commons or of a legislative assembly and to be qualified for membership therein.

Maximum duration of legislative bodies

4 (1) No House of Commons and no legislative assembly shall continue for longer than five years from the date fixed for the return of the writs of a general election of its members.

Continuation in special circumstances

(2) In time of real or apprehended war, invasion or insurrection, a House of Commons may be continued by Parliament and a legislative assembly may be continued by the legislature beyond five years if such continuation is not opposed by the votes of more than one-third of the members of the House of Commons or the legislative assembly, as the case may be.

Annual sitting of legislative bodies

5 There shall be a sitting of Parliament and of each legislature at least once every twelve months.

A few points are important to highlight regarding s.3 in order to frame the discussion that follows. The right to vote is restricted to every Canadian citizen (restrictions on the right to vote are discussed more fully below in section 1.4.1). The right to vote is guaranteed by s.3 of the *Charter* for federal and provincial elections, but not municipal elections.

A majority of the Supreme Court laid down a firm line in the *City of Toronto* case on s.3 *not* protecting municipal voting rights:

[45] Section 3 guarantees citizens the right to vote and run for office in provincial and federal elections, and includes a right to effective representation. The text of s. 3 makes clear, however, that it guarantees "only the right to vote in elections of representatives of the federal and the provincial legislative assemblies" (*Haig*, at p. 1031 (emphasis added)) and "does not extend to municipal elections" (p. 1031 (emphasis added), citing P. W. Hogg, *Constitutional Law of Canada* (3rd ed. 1992), vol. 2, at p. 42-2). Simply put, ss. 2(b) and 3 record distinct rights which must be given independent meaning (*Thomson Newspapers Co. v. Canada (Attorney General),* 1998 CanLII 829 (SCC), [1998] 1 SCR 877, at paras. 79-80; *Harper*, at para. 67). Effective representation is not a principle of s. 2(b), nor can the concept be imported wholesale from a different *Charter* right.

Note that municipal voting rights are still protected by the equality guarantee in s.15 of the *Charter*, meaning that if municipality has elections, voting rights in those elections must be available equally to all within the meaning of s 15 (and s 1) of the *Charter.*

Section 3 is not subject to the notwithstanding clause in s.33 of the *Charter.* Section 3 is subject to section 1 through the *Oakes* test, such that limits on the right to vote can be upheld as valid if they are reasonable limits 'prescribed by law as can be demonstrably justified in a free and democratic society.' Across Canada, at both the federal and provincial levels, statutes prescribe limits on the right to vote. Some of these limits have not been found to be justifiable, while others remain.

Similarly, statutes prescribe limits on who is eligible to be a candidate in a federal or provincial election. Again, various limits on the ability to run for office have been invalidated, but some remain (discussed below in Part 1.4.1).

Finally, note that section 3 does not refer to the Senate. Sections 23 and 24 of the *Constitution Act, 1867* prescribe the qualifications for being a Senator, qualifications which were the main issue in the famous *Persons* case excerpted in section 1.4.1.2.

1.2.2 Democratic conventions and parliament privilege: the unwritten practices of democracy

For the unwritten portions of the Constitution of Canada, the unwritten principle addressed above is complemented by a number of constitutional conventions. Conventions dictate relationships between branches of government, particularly between the executive and legislative branches. For a convention to exist, there must be a rule that political actors feel is binding and which has a reason underlying it: *Re: Resolution to amend the Constitution*, 1981 CanLII 25 (SCC), [1981] 1 SCR 753. Courts can declare that a convention exists and whether it has been breached or not, but there are generally no legal remedies for a breach of a convention, only political ones. Whether courts would impose legal remedies for a breach of a convention in extraordinary circumstances is more possible in Canada than in the past: see *Miller v. the Prime Minister*, 2019 UKSC 0192 .

One of the most important conventions for Canadian democracy is 'responsible government.' Responsible government dictates that the government is accountable to the House of Commons. It is reflected in the fact that a government falls if it loses a vote in the House on a matter of confidence, including money bills. Important conventions also operate around the calling of elections and the operation of the House post-election.

Another set of rights that are largely unwritten stem from 'parliamentary privilege.' Members of Parliament and Senators have certain rights which are protected by parliamentary privilege. An example is the right of an MP not to be subject to civil liability for comments made in the House in parliamentary proceedings. These privileges have been partly codified into standing orders and some statutes and are recognized but also limited by the *Constitution Act, 1867*. The House and Senate as institutions also have some collective privileges. The courts have gradually narrowed privileges over time to protect only those necessary to the functioning of the legislative body: *Chagnon v Syndicat de la fonction publique et parapublique du Québec*, 2018 SCC 39 (CanLII), [2018] 2 SCR 687 (*Chagnon*).

Chagnon sets out the role of parliamentary privilege in Canadian democracy:

> [18] Legislative assemblies in Canada, including provincial legislative assemblies, received "certain very moderate [parliamentary] privileges" through the common law as an inherent and necessary component of their legislative function, and by virtue of the preamble of the *Constitution Act, 1867* (*New Brunswick Broadcasting Co. v. Nova Scotia (Speaker of the House of Assembly)*, 1993 CanLII 153 (SCC), [1993] 1 SCR 319, at p. 377, citing R. M. Dawson, *The Government of Canada* (5th ed. 1970), at p. 338; see also *New Brunswick Broadcasting*, at pp. 345 and 374-81; *Canada (House of Commons) v. Vaid*, 2005 SCC 30, [2005] 1 SCR 667, at para. 29(3); J. P. J. Maingot, *Parliamentary Immunity in Canada* (2016), at pp. 13 and 19).
>
> [19] Parliamentary privilege is defined as "the sum of the privileges, immunities and powers enjoyed by the Senate, the House of Commons and provincial legislative assemblies, and by each member individually, without which they could not discharge their functions" (*Vaid*, at para. 29(2)). These privileges, immunities, and powers exceed those afforded to the general population (*Erskine May's Treatise on The Law, Privileges, Proceedings and Usage of Parliament* (24th ed. 2011), by M. Jack, at p. 203). Therefore, parliamentary privilege "is an exemption from some duty, burden, attendance or liability to which others are subject" (Maingot, at p. 13). Decisions falling within the scope of parliamentary privilege cannot be reviewed by an external body, including a court (*Stockdale v. Hansard* (1839), 9 Ad. & E. 1, 112 E.R. 1112 (Q.B.), at p. 1168; *New Brunswick Broadcasting*, at pp. 350 and 382-84; *Vaid*, at para. 29(9)).
>
> [20] Many countries afford special protections to the legislative branch of government. For instance, numerous civil law and common law jurisdictions guarantee the immunity of elected representatives from liability for speech that relates to their legislative work.[1] Legislative immunities ensure the proper functioning of a representative democracy. They cultivate a space in which the voices of the people, including those who hold potentially unpopular opinions, can be heard and considered.[2]
>
> [21] Legislative privileges also allow legislative bodies to fearlessly hold the executive branch of government to account. They thus help preserve the separation and balance of power between the different branches of government (see e.g. *Gravel v. United States*, 408 U.S. 606 (1972), at p. 616; R. S. Mehta, "Sir Thomas' Blushes: Protecting Parliamentary Immunity in Modern Parliamentary Democracies" (2012), 17 *E.H.R.L.R.* 309, at p. 309).

1.2.3 Duration of legislative bodies

How long the House of Commons may continue between elections has been a long-standing constitutional issue. The constitutional convention is for elections to occur at least every four years. In a parliamentary system, elections can occur earlier if the government loses a confidence vote or when the Prime Minister recommends that the Governor General dissolve the House.

A statutory 'fixed-election date' in the *Canada Elections Act* at s.56.1 sets an election four years after the previous one. A statutory fixed-election date does not alter the Governor General's constitutional authority to dissolve Parliament earlier at the request of the Prime Minister (*Conacher v Canada (Prime Minister)*, 2009 FC 920, affirmed by 2010 FCA 131, leave to appeal to the SCC denied, [2010] S.C.C.A. No. 315) (excerpted below at subsection 1.4.5).

The *Charter* now sets an outer constitutional limit on the duration of the House of Commons or a provincial legislature, echoing earlier provisions in the *Constitution Act, 1867*. Section 4(1) of the *Charter* sets a maximum duration for the House of Commons or a provincial legislature at 5 years. This provision operates as a guarantee of periodic elections, so that the House or a legislature may remain democratically accountable.

Section 4(2) permits the House or a provincial legislature to continue beyond five years in narrow and extraordinary circumstances. In situations of 'real or apprehended war, invasion or insurrection' the five year limit does not apply. Note that the grounds for the extension do not include a public health emergency.

An extension of the time between elections to more than five years pursuant to s.4(2) requires a 2/3 majority vote in the House or a provincial legislature. This requirement will in most situations require Opposition legislators to vote with the government to obtain the requisite super-majority in the House or legislature. It is unclear if uses of s.4(2) would be subject to s.1 of the *Charter.* Section 1 requires pursuant to the *Oakes* test that any limits on a right in the *Charter* must be proportionate and demonstrably justified in a free and democratic society. If *Oakes* does not apply, then the super-majority requirement and the narrow grounds for invoking s.4(2), which relate to armed conflict, are the checks on its potential misuse.

1.3 The range of meanings for democracy and democratic rights

Part 1.1.1 discussed two key cases which together provide the fullest jurisprudential understanding of the unwritten principle of democracy in Canadian public law. Part 1.2 set out the key textual sources for the principle of democracy in the *Constitution Act, 1867* and the *Constitution Act, 1982*. Both the unwritten and written sources for this fundamental principle connect with a larger historical and philosophical conversation about the meaning of democracy and democratic rights.

The most basic understanding of democracy is the idea of government by majority rule which includes a process in which the governed consent to be governed. The Supreme Court emphasized this understanding of democracy—the "supremacy of the sovereign will of the people"—in the *Secession Reference* excerpted above (at paras 61-62). We can source this idea back to the ancient Greeks who, in the 5th century, created democracy as a system of government instantiated and run by eligible individuals (*demokratia*, or rule by the people). Who exactly is considered to be an eligible or qualified elector is a recurring problem for democracies—this is a constitutive question of membership in a political community, the answer to which has changed over time. The ancient Greeks limited the class of eligible persons to propertied male citizens. We will consider the history of exclusion and inclusion in Canadian democracy in Part 1.4 below. The most prominent contemporary exclusion is the section 3 *Charter* restriction on the right to vote and to hold office to 'citizens'; non-citizens, such as permanent residents and refugees, do not have a full set of democratic rights in our polity.

Elections are the process we use to facilitate and determine consent and sovereign will. In Canada, consent and sovereign will are manifested in the existence of freely elected legislative bodies at both the provincial (eg, legislative assemblies) and federal level (eg, the House of Commons). At the federal level, Parliament is not fully democratic since the second House—the Senate—is currently appointed, rather than elected. Provinces do not have second chambers.

Elections also communicate citizens' views about who best represents them in government and how that resulting government will realize particular public policy preferences. These public policy preferences can become the content of statutes and amendments as well as inform decisions made by executive actors in, for example, Cabinet and in the administrative state. In a direct democracy, *law* is made by the people themselves through processes like referenda.

The Westminster system traditionally contemplates government by the party that wins a majority of the seats in a first-past-the-post electoral process, but this is not the only valid and legitimate form of government. Majority, minority and coalition governments are all possible in the Westminster system and each type realizes electoral preferences in different ways. For a vigorous defence of the benefits of minority governments in Canada, see constitutional law scholar Peter H. Russell's *Two Cheers for Minority Government*, 2nd ed (Toronto: UofT Press, 2023). Proportional representation systems tend to track the popular vote better and also provide more room for smaller parties to have a share of the electoral results.

The fact that legislatures represent the preferences of the citizen-electorate (often, though not always, through one party receiving a majority) connects the democratic principle to the principle of parliamentary sovereignty. Before 1982, Canadian courts followed British tradition by charactering the parliamentary principle as 'supreme'—ie, parliamentary *supremacy*. As a result of section 52 of the *Constitution Act, 1982* which enshrines constitutional supremacy, this principle has been re-branded the principle of parliamentary *sovereignty*. Parliament is therefore still an independent branch of government with its own jurisdiction and rule-making powers which represents the will of the people (ie, sovereign), but it no longer reigns supreme over the other two branches. This fundamental change has had special import for the judicial branch which can now review executive action (as it has traditionally done) and can now fully review legislative action. Prior to 1982, courts could only review legislative action on federalism grounds so judicial power has significantly expanded in scope. Critics of judicial power worry that parliamentary supremacy has been replaced by judicial supremacy, a recurring theme in this casebook concerning the tension between judicial creativity and judicial activism (see, eg, Ran Hirschl, *Towards Juristocracy: The Origins and Consequences of the New Constitutionalism* (Cambridge, MA: Harvard UP, 2004)).

1.4 Historical significance of the right to vote

This section briefly considers the history of enfranchisement—meaning the right to vote—in Canada. As discussed above in Part 1.1.1, the principle of democracy is not expressly part of the first Canadian Constitution; rather, it is implied through the Preamble in *Constitution Act, 1867* which says that Canada's Constitution is "similar in principle to that of the United Kingdom".

Historically, legislative bodies could enact voting qualifications as they saw fit and could also, through clear statutory language, take away the right to vote. In Canada, provinces often protected the right to vote through human rights codes (eg, section 8 of the *Saskatchewan Human Rights Code*) or provincial charters (eg, section 22 of the *Quebec Charter of Rights and Freedoms*) and courts traditionally protected the right to vote through statutory interpretation. Significantly, no constitutional right to vote (or the right to stand as a candidate in an election) existed until 1982 with the *Charter*'s section 3 guarantee of democratic rights. When viewing the franchise over time, which Part 1.4.1 does in more detail, voting for most of the Canadian populace prior to the *Charter* was better conceived of as a *privilege* than a *right*. The inclusion in the *Charter* of s.3, with its constitutional protection for the right to vote, was therefore a seminal moment for Canadian democratic rights.

1.4.1 Extension of the franchise over time and current restrictions on the right to vote

At the time of Confederation, only men 21 years of age or older, who were British subjects and who owned property, were able to vote in federal elections (see, eg, section 41 New Brunswick and section 84 Ontario and Quebec in the *Constitution Act, 1867*). Indeed, only 15% of Canadians could vote in 1867, compared to 72% in 2011. At Confederation, the federal franchise was largely determined by criteria set by the provinces. Anyone who was excluded from voting provincially, could not vote federally. Control over the franchise shifted between the federal and the provincial levels until after the First World War.

This subsection presents a brief overview of the historical restrictions on the right to vote, how the franchise was expanded to include different people over time, and explains the current set of restrictions on this right.

1.4.1.1 Class and age

Until 1920, a property-based qualification required voters to own property of a certain value, and/or to pay rent, and/or to make a certain annual income in order to vote. Property restrictions on the right to vote were removed in 1920.

As a result of the *Wartime Elections Act* and *Military Voters Act* in 1917, all male members of the armed forces serving overseas could vote in a federal election. This change enabled some men under the age of 21 to vote.

In 1970, Parliament passed legislation that lowered the voting age from 21 to 18. Historically, then, the largest category of eligible voters has been men, with the expansion of the franchise to men of 18 years of age providing maximal historical inclusion in this category.

1.4.1.2 Women

At common law, women were generally denied the right to vote on the bases that, if married, they were not independent from their husbands, and also that they lacked the general competency to act in the public sphere. There are some pre-Confederation examples of women voting in Canada, but these instances remain an exception. At Confederation, both the federal level and all five of the existing provinces excluded women from the right to vote.

We can see the conventional legal view of women expressed in *Edwards v. Canada (Attorney General),* 1929 CanLII 438 (UK JCPC) where Lord Sankey discussed the historical perception of women as lacking the competency to engage in public matters:

> The exclusion of women from all public offices is a relic of days more barbarous than ours, but it must be remembered that the necessity of the times often forced on man customs which in later years were not necessary. Such exclusion is probably due to the fact that the deliberative assemblies of the early tribes were attended by men under arms, and women did not bear arms. … Yet the tribes did not dispise the advice of women. …
>
> In England no woman under the degree of a Queen or a Regent, married or unmarried, could take part in the government of the State. A woman was under a legal incapacity to be elected to serve in Parliament and even if a peeress in her own right she was not, nor is, entitled as an incident of peerage to receive a writ of summons to the House of Lords.
>
> … Women were, moreover, subject to a legal incapacity to vote at the election of Members of Parliament … . …
>
> No doubt in the course of centuries there may be found cases of exceptional women and exceptional instances, but as Lord Usher, MR., said in *De Souza v. Cobden,* [1891] 1 Q.B. 687, at p. 691:— "By the common law of England women are not in general deemed capable of exercising public functions, though there are certain exceptional cases where a well-recognised custom to the contrary has become established." An instance may be referred to in the case of women being entitled to act as churchwardens and as sextons, the latter being put upon the ground that a sexton's duty was in the nature of a private trust … . The tradition existed till quite modern times: see *Bebb v. Law Society*, [1914] 1 Ch. 286, where it was held by the Court of Appeal that by inveterate usage women were under a disability by reason of their sex to become attorneys or solicitors.

The JCPC famously ruled that 'persons' included both sexes and therefore women could be considered 'qualified Persons' able to be summoned to the office of Senator under section 24 of the *Constitution Act, 1867* .

Driving the extension of enfranchisement for women was, of course, the suffrage movement which had been advocating for the women's franchise since the middle of the 19th century, though the Canadian suffrage movement did not become fully active until the early years of the 20th century. The original draft of the *Electoral Franchise Act* of 1885 expanded the federal franchise to unmarried women and widows with property, but the final version reverted to the older eligibility requirement of being "male person[s]".

In the 19th century, women obtained the right to vote in some municipal and school board elections in some provinces. Women's suffrage was first achieved in 1916 in Manitoba where women who were of British descent or citizenship, 21 years of age or older, and not otherwise disqualified could vote provincially and/or hold provincial office. Saskatchewan and Alberta quickly followed that same year with the first women being elected into office in Alberta in 1917. Women won the franchise and the right to hold provincial office in Ontario in 1917 and also in British Columbia (with the exception of Asian and Indigenous women), while Nova Scotia followed in 1918.

Change happened again at the federal level during the First World War. In 1917, Parliament enacted the *Wartime Elections Act* and *Military Voters Act* which extended the right to vote to women serving in the armed forces and female relatives of soldiers. In 1918, women won the right to vote in federal elections if they met the same eligibility criteria as men, although First Nations women could only vote if they give up their status and treaty rights. In 1919, women became eligible to stand for office in the House of Commons.

Women won right to vote and hold elected office in the Yukon in 1919, in 1922 in Prince Edward Island, in 1925 in Newfoundland and Labrador, in 1940 in Quebec, and in 1951 in the Northwest Territories.

It was not until 1957 that Ellen Louks Fairclough became the first female member of federal Cabinet.

1.4.1.3 Minority groups

A number of minority groups were prevented from exercising their democratic rights in Canada: African Canadians, Asian and South Asian Canadians, and some Canadians of European descent from countries considered enemy powers during wartime.

The British *Slavery Abolition Act* of 1833 abolished slavery throughout the British colonies, but did not take effect in Canada until August 1, 1834. Black people become British citizens and therefore African Canadian men became entitled to vote. Unsurprisingly, racial discrimination continued to impede their ability to exercise the vote for decades after.

While Canada initially welcomed immigration from China in order to build the transcontinental railway, national sentiment turned and in the same year as the 'last spike' was driven for the CPR railway at Eagle Pass in British Columbia, the *Electoral Franchise Act* of 1885 barred Chinese Canadians from voting at the federal level. Provincial exclusion had occurred earlier in British Columbia which disenfranchised Chinese Canadians in 1872. Previously, Chinese men (indeed, every male inhabitant of that province) had been able to vote and in some districts, Chinese Canadian residents formed the majority of voters. Saskatchewan passed a similar disenfranchisement law in 1908, but restored the franchise to Chinese Canadians in 1944. In 1895, British Columbia amended the *Provincial Voters' Act* in order to disenfranchise male Chinese, Japanese, and South Asian (ie, so-called 'Indian' and 'Hindu') Canadians. The disenfranchisement of Chinese and Japanese Canadians in British Columbia was upheld by the JCPC in *Cunningham v Tomey Homma* [1903] A.C. 151 (at p2):

> There is no doubt that, if it is within the capacity of the Province to enact the electoral law, the claimant is disqualified by the express language of the Statute, but it is contended that the 91st and 92nd sections of the British North American Act have deprived the Province of the power of making any such provision as to disqualify a naturalized Japanese from electoral privileges. It is maintained that section 91(25) enacts that the whole subject of naturalization is reserved to the exclusive jurisdiction of the Dominion, while the Naturalization Act of Canada enacts that a naturalized alien shall within Canada be entitled to all political and other rights, powers, and privileges to which a natural-born British subject is entitled in Canada. To this it is replied that by section 92(1) the constitution of the Province and any amendment of it are placed under the exclusive control of the provincial Legislature. The question which their Lordships have to determine is which of these two views is the right one, and in determining that question the policy or impolicy of such an enactment as that which excludes a particular race from the franchise is not a topic which their Lordships are entitled to consider.

While the 1917 federal *Wartime Elections Act* extended the right to vote to women in the armed forces and female relatives of military men, citizens of 'enemy alien' birth, primarily Germans and Ukrainians Canadians due to those countries' membership in the Austro-Hungarian empire, and some pacifist communities like the Mennonites, Doukhobors, and Hutterites were disenfranchised. In 1931 the federal government granted the franchise to Japanese Canadian veterans. They were the first Japanese Canadians able to exercise their right to vote.

The *Dominion Elections Act* of 1920 enfranchised many who had been disenfranchised during the First World War, such as those originating from countries with which Canada had been at war. Nevertheless, the Act stated that anyone who was disenfranchised by provincial legislation because of race would remain disenfranchised from the federal vote, and this exclusion applied to Chinese Canadians in Saskatchewan, and Indigenous, Chinese, Japanese, and South Asian Canadians in British Columbia.

Conscientious objectors were once again deprived of their voting rights from 1938 to 1955. Canadians born in an enemy nation or whose primary language was that of an enemy country were also again denied the right to vote.

The federal *Citizenship Act* extended the right to vote federally and provincially to Chinese Canadian and South Asian Canadian men and women in 1947, but not to Indigenous peoples and Japanese Canadians. That same year, British Columbia removed the words 'Chinese' and 'Hindus' from the list of those persons considered ineligible to vote. Finally, the federal government amended the *Elections Act* in 1948 removing race as a ground for exclusion from voting in federal elections. This change enabled Japanese Canadians to be enfranchised, but not Indigenous Canadians.

Since the 1950s, then, with the exception of First Nations and Inuit peoples, Canada has not denied the franchise—federally or provincially—on the basis of race.

1.4.1.4 Persons with disabilities

From 1898 to 1993, many citizens with intellectual disabilities were not permitted to vote in federal elections. Until 1993, section 14(4)(*f*) of the Canada Elections Act stipulated that a person who was "restrained of his liberty of movement or deprived of the management of his property by reason of 'mental disease'" could not vote. This language was removed partly in response to a successful *Charter* challenge in 1988. In *Canadian Disability Rights Council v Canada*, 1988 CanLII 9443 (FC), [1988] 3 FC 62, Reed J held that section 14(4)(*f*) conflicted with section 3 of the *Charter* and could not be saved under section 1. She reasoned that:

> Section 1 of the Charter allows for limitations which are demonstrably justifiable in a free and democratic society. I have no doubt that one such limitation might be what I will call a requirement of mental competence or judgmental capacity. But, paragraph 14(4)(*f*) as presently drafted does not address itself only to mental competence or capacity in so far as that quality is required for the purposes of voting.
>
> It is more broadly framed than that. It denies people the right to vote on the basis of "mental disease". This clearly will include individuals who might suffer from a personality disorder which impairs their judgment in one aspect of their life only. There may be no reason on that basis to deprive them of the right to vote. What is more, paragraph 14(4)(*f*) does not deny all persons suffering from mental disease the right to vote, but only those whose liberty of movement has been restrained or whose property is under the control of a committee of estate. As counsel argued, a person mentally handicapped or suffering from a personality disorder might be supported at home or cared for by his or her family. That person would fall under neither of the categories in paragraph 14(4)(*f*) and would be entitled to vote.
>
> The limitation prescribed by paragraph 14(4)(*f*) is in that sense arbitrary. If it is intended as a test of mental competency, it is at the same time both too narrow and too wide. It catches people within its ambit who should not be there and, arguably, it does not catch people who perhaps should be.
>
> …
>
> I accept counsel for the plaintiffs' argument that the assumption that a person suffering from any mental disability is incapacitated for all purposes, including voting, is simply a false assumption.

As a result, narrower restrictions exist on the right to vote at the federal level for people with mental disabilities. The current Act provides:

> **52 (1)** The Chief Electoral Officer shall delete from the Register of Electors or Register of Future Electors the name of any person who
>
> (a) is dead;
>
> (b) is not an elector or future elector, as the case may be, subject to subsection 44(4);
>
> (c) requests in writing to have his or her name deleted;
>
> (d) is, by reason of mental incapacity, under a court-ordered protective regime, including guardianship, tutorship or curatorship, and whose authorized representative under the regime requests in writing that the person's name be deleted; or
>
> (e) is a future elector with a mental incapacity whose parent requests in writing that the future elector's name be deleted.

In 1992, Bill C-78 (*An Act to Amend Certain Acts with Respect to Persons with Disabilities*) amended the *Canada Elections Act* to make the voting and electoral processes more accessible to people with disabilities. These changes were partly in response to a 1992 Canadian Human Rights Tribunal decision—*Canadian Paraplegic Assn. v Canada (Elections Canada)*, 1992 CanLII 284 (CHRT)—which found that, by failing to provide adequate access for persons in wheelchairs at several Manitoba polling station during the 1984 federal election, Elections Canada had discriminated against persons with disabilities. The current Act states:

> **121 (1)** A polling station shall be in premises that are accessible to electors with a disability.

Further legislative change occurred in 1993 where Bill C-114 amended the *Canada Elections Act* to replace the onerous process of proxy voting with special ballot voting (ie, voting by mail) to all electors. This created a more level playing field for persons with disabilities and others who cannot or do not wish to vote at their local station either on election day or at advance polls. Other sections of the Act (see, eg, section 18) consider the means to communicate with voters who have disabilities and the use of technology to assist voters with disabilities.

Barriers still remain for people with mental and physical disabilities, however, in terms of being able to *access* the ballot box or because they require assistance in order to mark their ballot at the voting station. In another case concerning (in)accessibility of polling stations, *Hughes and Canadian Human Rights Commission v Elections Canada (Canadian Human Rights Tribunal,* February 12, 2010, the Canadian Human Rights Tribunal underscored the importance of elections and the right to vote electors who have disabilities:

> [40] The right to vote is protected in the *Canadian Charter of Rights and Freedoms*: section 3. It is a right, and I would argue, a responsibility or duty of citizens of this country. It is the legal duty of the State to ensure that all barriers, whenever possible, are removed so that citizens may vote. Nowhere is this more significant than for people with disabilities. Professor Frazee was eloquent in articulating the barriers that people with disabilities face in our society, structurally and attitudinally, including the intricacies of disability disadvantage. She set out the context as it would affect a person with a disability attempting to vote. Included in this was the impact of disabled voters going to separate but equal facilities to exercise their franchise or facilities with only back entrances available to them. There should be no hierarchy of citizenship when it comes to voting in Canada: no second class voters. Professor Frazee's expert evidence and Mr. Hughes' testimony showed the damaging impact on persons with disabilities going away from the polling site thinking that their presence was at best unexpected, and at worst unwelcome.
>
> [41] I also note the evidence of the 2006 Statistics Canada report showing the number of persons with various impairments and disabilities in Canada: 4.4 million Canadians with an activity limitation yielding a disability rate of 14.3%. What is more telling is the demographic trend upward of Canadians reaching the status of senior citizen and the resulting increase of persons with disabilities in Canada, including those with mobility impairments.

1.4.1.5 Absentee citizens, Expatriates and Prisoners

Absentee citizens, expatriate Canadians, and prisoners who were citizens were also historically excluded from the franchise. Section 3.1 Who has the right to cast a ballot considers how the Charter struck down these restrictions and changed the *Canada Elections Act*, with the result that all these citizens are now enfranchised.

Restrictions on persons temporarily absent from Canada were declared unconstitutional in *Hoogbruin v A.G.B.C.,* 1985 CanLII 335 (BC CA). The reviewing court held that where the sole reason BC voters were unable to exercise their right to vote was that no procedural mechanism like absentee ballots existed which would reasonably enable them to do offended s. 3 of the Charter. Moreover, the omission of provision for an absentee ballot contradicted the purpose of the provincial *Election Act*. The court also looked to the federal level and other provinces which enabled absentee voting to bolster its conclusion. This changed federally in 2018. Prior to the federal changes, Canadians living abroad for extended periods of time could only vote if they were in the federal civil service, the military, or worked for an international organization of which Canada was a member.

Persons who are absent from Canada can vote by a special mail-in ballot. To be included in the International Register of Electors, a Canadian vote must be qualified to vote (ie, a Canadian citizen at least 18 years old on election day) and have lived in Canada at some point in their life.

1.4.1.6 Current restrictions

In earlier times, members of certain occupations (eg, government workers, judges, and election officials) could not vote. Before the Charter, provincial civil servants unsuccessfully challenged their disqualification from the vote due to the restrictions on the political activity by public servants (see *Ontario (Attorney General) v OPSEU*, 1987 CanLII 71 (SCC), [1987] 2 SCR 2). Federally appointed judges first got the right to vote in 1988 as a result of *Muldoon v Canada,* 1988 CanLII 9407 (FC), [1988] 3 FC 628.

Prior to the *Elections Modernization Act*, S.C. 2018, c. 31, the Chief Electoral Officer of Canada and the Assistant Chief Electoral Officer could not vote due to an occupational restriction. The rationale for the restriction was to ensure that the CEO and Elections Canada would be perceived as neutral. This Act repealed the restriction contained in section 5 of the *Canada Elections Act*.

At this moment, to exercise the right to vote federally, one must be a Canadian citizen who is at least 18 years old on election day and can prove their identity and address. Unhoused individuals will not be denied their right to vote. Many types of identity cards are accepted and community shelters or soup kitchens can provide a letter confirming that person's identity and/or address. A registered voter can also 'vouch' for an unhoused individual to confirm their identity and address.

As it now stands, all disqualifications of citizens, and restrictions on the right to vote, are contrary to the *Charter* unless they can be justified under section 1. Key questions remain concerning whether non-citizens should be eligible to vote at the provincial or municipal levels of government and whether the voting age should be lowered below the age of 18 for citizens. Section 3.1 Who has the right to cast a ballot more closely examines recent legal challenges to the current age restriction on voting.

1.4.2 First Nations, Inuit, and Métis peoples

Before Confederation in 1867, Indigenous peoples were not overtly excluded from the franchise. Nevertheless, voting qualifications, the fact that many lived on reserves, and their status as 'wards' of the State effectively denied them the ability to vote. Indigenous men could vote if they explicitly gave up their status in order to assimilate. Two colonial statutes promoted this route: the *Gradual Civilization Act of* 1857 and the 1859 *Act Respecting Civilization and Enfranchisement of Certain Indians.* The link between colonial oppression and democratic rights is historically strong in Canada.

In 1876, the *Indian Act* implemented a number of harmful policies that pivoted around the right to vote. Section 86(1) required compulsory enfranchisement for First Nations who received a university degree and/or pursued a profession (eg, clergymen, medical doctors, lawyers). This version of the *Indian Act* also enabled First Nations peoples to vote if they give up their Indian status and treaty rights in exchange for enfranchisement. Giving up their status meant that they were no longer 'Indian,' a political result which was part of the overall assimilationist efforts of the federal government under then Prime Minister Sir John A Macdonald. Despite this, since most Indigenous men could not meet the property qualifications, they were effectively barred from voting even if they gave up their status. Additionally, status Indian women were barred from voting in band council elections. The *Corbiere* case, excerpted in section 4.1.1.1, considers in depth the discrimination and exclusion faced by Indigenous women and their children as a result of the 'marrying out' policy.

When Prime Minister Sir John A. Macdonald introduced the original draft of the *Electoral Franchise Act* in 1885, the Act contemplated expanding the franchise to First Nations living on reserves who met the property qualifications. The final version excluded this change partly in reaction to the North-West Resistance. In what can only be seen as retaliation, the final version excluded all 'Indians' in Manitoba, British Columbia, Keewatin, and the North-West Territories as well as those on reserves who did not own property of a certain value. These restrictions were removed by Prime Minister Wilfrid Laurier in 1898.

Many Indigenous Canadians signed up to serve in the First World War. The *Military Voters Act* in 1917 enabled First Nations men who were enrolled in the armed forces to vote federally without giving up their status. In order to increase both enfranchisement and assimilation, the federal government amended the *Indian Act* in 1920 to force the enfranchisement of approximately 5,000 First Nations individuals without their consent. In 1924, the federal franchise was extended to status Indian veterans of the First World War, including those living on reserves.

Given that enfranchisement usually involved loss of status and treaty rights, and the fact that Canadian society did not generally support extending the franchise to Indigenous persons, very little changed between the First and Second World Wars. Importantly, after both wars, Indigenous veterans who lived on a reserve lost the right to vote.

After the Second World War, provinces began to extend the franchise to members of First Nations communities: British Columbia (1949), Manitoba, (1952), Ontario (1954), Saskatchewan, the Northwest Territories and Yukon (1960), New Brunswick (1963), Prince Edward Island (1963), Alberta (1965), and finally Quebec (1969).

It was not until 1960 that amendments to the *Canada Elections Act* gave persons with the legal status of 'Indian' the right to vote and run as a candidate in Canadian elections. This change meant that First Nations women and men could vote no matter where they lived and without giving up their status.

Inuit peoples did not have the right to vote in the early days as they inhabited lands that were under the control of the Hudson's Bay Company. Legislation enacted in 1934 specifically disqualified Inuit peoples from voting in federal elections. This changed in 1950 when Inuit peoples became eligible to vote in federal elections. They could not effectively exercise this vote, however, until 1952 when more ballot boxes were placed in communities, especially those more isolated communities in the north. Members of Inuit nations now comprise the majority of voters in four northern regions: Inuvialuit, Nunavut, Nunavik, and Nunatsiavut (collectively known as Inuit Nunangat).

Throughout this history, so long as Métis individuals met existing qualifications, they could vote both provincially and federally. Métis women, along with most Canadian women, could vote in 1918.

As discussed above in section 1.3, the principle of democracy is comprised of a number of key features. According to the Supreme Court in the *Secession Reference*, the democratic principle is connected to the self-government of a sovereign people. While the Court was primarily considering the principle of self-government in relation to Canada and Quebec, this component of democracy is constitutionally crucial for

Indigenous peoples. Section 4 below considers both colonial and customary modes of self-government exercised through either Western-style voting or traditional practices to select leaders.

1.4.3 Voting and links to other constitution principles

Canada's history of the right to vote shows how the principle of democracy is inextricably linked to other important constitutional principles such as the rule of law, federalism, parliamentary sovereignty, responsible government, equality, and the protection of minorities. It also underscores how the colonial history of the franchise has negatively impacted Indigenous peoples and the principles of self-government and reconciliation in that context. What this history discloses is the denial, not just of democratic rights, but other important constitutional principles: the unequal treatment of women, lower income individuals, and persons with disabilities; the lack of protection for minority groups; and, the subordination of Indigenous sovereignty to colonial power.

Our electoral system imperfectly assists in ensuring that our representatives reflect a diverse society. The hope remains that Canadian democracy is an "evolutionary democracy moving in uneven steps toward the goal of universal suffrage and more effecting representation" (R*eference re Provincial Electoral Boundaries (Sask.),* 1991 CanLII 61 (SCC), [1991] 2 SCR 15 cited in the *Secession Reference* at para 63). In *Sauvé v Canada (Chief Electoral Officer),* [2002] 3 SCR 519, 2002 SCC 68, considered more fully below in Part 3.1, the Supreme Court highlighted this aspect of the democratic principle when it struck down section 51(e) of the *Canada Elections Act* which denied the right to vote to penitentiary inmates serving a sentence of two years of more. The Majority held that the section 3 right to vote is so fundamental for a well-functioning democracy that the government would have to provide a very compelling justification under section 1 to deny it. The Majority disagreed that the denial of such a fundamental right could legitimately advance democratic values such as inclusiveness, equality, and citizen participation. Moreover, the Majority rejected disenfranchisement as a valid form of state punishment, partly because the history of disenfranchisement has had such a deleterious effect on Indigenous peoples who are also disproportionately incarcerated in Canadian penitentiaries.

Our history shows that this more robust conception of the democratic principle, and constant political and legal activity by democratic citizens, has supported the extension of the franchise to men without property, women, minority groups, and Indigenous peoples.

1.4.4 Elections and judicial review of contested election results

Contested elections are a problem for any political system. One can only look to the United States where two examples of context elections have produced an enormous amount of discord and instability: 1) the constitutional case *Bush v. Gore*, 531 U.S. 98 (2000); and 2) President Trump's repeated assertions that the 2020 election result was illegitimate and that he should have won.

Canada's experience with contested election results has been much more low key. Historically, the judiciary have had little involvement in the electoral process. Before the *Charter*, judges' involvement mostly consisted of resolving election disputes as well as recounts in particularly close races.

The 41st federal election held on May 2, 2011 generated a number of disputes and accusations about electoral improprieties and errors such as dirty tricks, fraud, and improperly cast or counted votes in particular ridings. Conservative MP Ted Opitz narrowly won Etobicoke Centre by a plurality of only 26 votes over Liberal incumbent Borys Wrzesnewskyj. Errors and mistakes made by electoral officials in record keeping came to light. Wrzesnewskyj applied to have the election annulled on the basis that there existed "irregularities … that affected the result of the election" under s. 524(1)(*b*) of the *Canada Elections Act* ('Act'). Wrzesnewskyj contested the ballot results at the Ontario Superior Court of Justice. The Court granted the application, finding that 79 votes could be counted as 'irregularities' under the Act and that, since this number exceeded the plurality of 26 votes, the election results could not stand and would be overturned. Opitz appealed to the Supreme Court of Canada as of right.

1.4.4.1 *Opitz v Wrzesnewskyj*, 2012 SCC 55 (CanLII), [2012] 3 SCR 7

Opitz v Wrzesnewskyj, 2012 SCC 55 (CanLII), [2012] 3 SCR 7 marks the first time that the Supreme Court of Canada has ruled on an election outcome since the Second World War. In the Majority decision, jointly written by Justices Marshall Rothstein and Michael Moldaver, the SCC ruled that minor or technical administrative errors should not be sufficient to overturn an election. Chief Justice McLachlin penned a sharp dissent in which she agreed with the lower court and, by tallying up the disqualified votes differently, disagreed with the Majority's evidentiary conclusions. She therefore agreed that the election should be annulled. This case is an apt example of how a reviewing court has used the principles of statutory interpretation to determine the scope and meaning of the *Canada Elections Act*.

> The judgment of Deschamps, Abella, Rothstein and Moldaver JJ was delivered by
>
> ROTHSTEIN AND MOLDAVER JJ:
>
> I. Introduction
>
> [1] A candidate who lost in a close federal election attempts to set aside the result of that election. We are asked to disqualify the votes of several Canadian citizens based on administrative mistakes, notwithstanding evidence that those citizens were in fact entitled to vote. We decline the invitation to do so. The *Canadian Charter of Rights and Freedoms* and the *Canada Elections Act*, S.C. 2000, c. 9 ("Act"), have the clear and historic purposes of enfranchising Canadian citizens, such that they may express their democratic preference, and of protecting the integrity of our electoral process. Following these objectives and the wording of the Act, we reject the candidate's attempt to disenfranchise entitled voters and so undermine public confidence in the electoral process.
>
> [2] At issue in this appeal are the principles to be applied when a federal election is challenged on the basis of "irregularities". We are dealing here with a challenge based on administrative errors. There is no allegation of any fraud, corruption or illegal practices. Nor is there any suggestion of wrongdoing by any candidate or political party. Given the complexity of administering a federal election, the tens of thousands of election workers involved, many of whom have no on-the-job experience, and the short time frame for hiring and training them, it is inevitable that administrative mistakes will be made. If elections can be easily annulled on the basis of administrative errors, public confidence in the finality and legitimacy of election results will be eroded. Only irregularities that affect the result of the election and thereby undermine the integrity of the electoral process are grounds for overturning an election.
>
> [3] The 41st Canadian federal election took place on May 2, 2011. In the electoral district (or "riding") of Etobicoke Centre, 52,794 votes were cast. After a judicial recount, Ted Opitz was the successful candidate with a plurality of 26 votes. Borys Wrzesnewskyj was the runner-up.
>
> [4] Mr. Wrzesnewskyj applied under s. 524(1)(*b*) of the Act, to have the election annulled, on the basis that there were "irregularities … that affected the result of the election". The relevant provisions of the Act are contained in the Appendix to these reasons. The application was heard by Justice Lederer of the Ontario Superior Court of Justice (2012 ONSC 2873, 110 O.R. (3d) 350). Lederer J. concluded that 79 votes amounted to irregularities that affected the result of the election. He declared the election "null and void" (para. 154). Mr. Opitz appealed as of right to this Court and Mr. Wrzesnewskyj cross-appealed (s. 532(1) of the Act).
>
> …

III. Analysis

A. *The Canada Elections Act*

[10] The right of every citizen to vote, guaranteed by s. 3 of the *Charter*, lies at the heart of Canadian democracy. The franchise has gradually broadened in Canada over the course of history from male property owners 21 years of age and older to the present universal suffrage of citizens aged 18 and over. Universal suffrage is reflected in s. 3 of the Act, which provides that a person is "qualified" to vote if he or she is a Canadian citizen and is 18 years of age or older.

[11] Canada is divided into "electoral districts" (commonly known as "ridings"): *Charter*, s. 3, and *Constitution Act, 1867*, ss. 40, 51 and 51A. Etobicoke Centre is an electoral district. Section 6 of the Act requires that a qualified elector be ordinarily resident in one of the polling divisions within the electoral district. Persons who are qualified as electors are entitled to vote for a member of Parliament for the electoral district in which the elector is ordinarily resident.

[12] The Act also sets out detailed procedures for voting that turn the constitutional right of citizens to vote into a reality on election day. What follows is a brief description of the procedural provisions that give rise to the issues in this appeal.

[13] Electoral districts in Canada are subdivided into polling divisions, each of which contains at least 250 electors (s. 538 of the Act). For each polling division, a returning officer establishes one or more polling stations (s. 120(1)). Each polling division considered in this judgment had only one polling station. Each station is overseen by a deputy returning officer ("DRO") and a poll clerk (s. 32). Sometimes several polling divisions may have polling stations in the same building, at separate tables. Certain polling divisions cover only residents of two or more institutions, often senior citizens' residences. In such cases, the returning officer can establish "mobile" polling stations to be located in each of the institutions (ss. 125 and 538(5)). The Chief Electoral Officer ("CEO") is required to maintain a national register of electors ("NROE") containing the name, sex, date of birth and address of electors (s. 44). Between elections, the CEO updates the NROE using data from various government sources. Shortly after an election is called, the CEO prepares a preliminary list of electors ("PLE") for each polling division, based on the NROE (s. 93). A process of revision of the PLE is then undertaken (ss. 96 ff.). Before polling day, official lists of electors ("OLEs") are prepared for use at each polling station (s. 106).

[14] Many electors will be on the OLE of their assigned polling division, by "enumeration". Since age and citizenship are prerequisites for inclusion on the OLE, those listed do not have to establish their age and citizenship when they come to vote. To vote, these electors must prove their identity and residence by one of three means: (a) providing government-issued identification with photo and address (s. 143(2)(*a*)); (b) providing two pieces of authorized identification, at least one of which establishes their address (s. 143(2)(*b*)); or (c) taking a prescribed oath and being vouched for by someone on the OLE in the same polling division (s. 143(3)). Once identity and residence are established, the voter is given a ballot.

[15] Electors who are not on the OLE can have their names added on election day by the process of "registration" (s. 161(1)). To register, the elector must provide proof of identity and residence. Where the elector satisfies these requirements, the DRO will complete a registration certificate and the elector will sign it (s. 161(4)). Electors who register must also establish their age and citizenship. This is accomplished by signing a declaration to that effect, which appears on the registration certificate.

[16] Section 161(5) of the Act provides that, where a registration certificate is completed, the OLE is deemed to have been modified in accordance with the certificate. After polling day, the returning officer uses the registration certificates to update the OLE, and the CEO creates a final list of electors ("FLE") for each electoral district (s. 109). The FLE is an updated list containing the names of those electors who were enumerated on the OLE as well as those who voted by registration.

[17] Vouching is a procedure designed to enable persons to vote who lack appropriate identification. An elector may prove his or her identity by being vouched for by a person whose name appears on the list of electors for the same polling division. A voucher can only vouch once. A person who has been vouched for cannot vouch for someone else in the same election (s. 161(1)(*b*), (6) and (7)).

[18] The Act also establishes requirements for record-keeping by election officials. After the issue of the writ to call an election, a returning officer appoints one DRO and one poll clerk for each polling station in the electoral district for which he or she is responsible (s. 32). Once the DRO is satisfied that an elector's identity and residence have been proven, the name of the elector is crossed off the OLE and the elector is allowed to vote (s. 143(4)). Once the elector has voted, the poll clerk is required to indicate on the list that the vote was cast by placing a check mark in a box set aside for that purpose (s. 162(*b*)). The poll clerk is also required to make entries in a "poll book". The required entries include various matters, such as whether an elector has taken an oath, the type of oath he or she has taken and the fact that the elector has voted using a registration certificate (s. 162(*f*) and (*j*)).

B. *Interpreting the Relevant Statutory Provision*

(1) Part 20 of the Act

[19] Part 20 of the Act deals with contested elections. Section 524(1) provides:

> **524.** (1) Any elector who was eligible to vote in an electoral district, and any candidate in an electoral district, may, by application to a competent court, contest the election in that electoral district on the grounds that
>
> (*a*) under section 65 the elected candidate was not eligible to be a candidate; or
>
> (*b*) there were irregularities, fraud or corrupt or illegal practices that affected the result of the election.

[20] The remedy the court may provide is in s. 531(2):

> 531. …
>
> (2) After hearing the application, the court may dismiss it if the grounds referred to in paragraph 524(1)(*a*) or (*b*), as the case may be, are not established and, where they are established, shall declare the election null and void or may annul the election, respectively.

The use of the word "respectively" means that where the grounds in s. 524(1)(*a*) are established, a court *must* declare the election null and void; where the grounds in s. 524(1)(*b*) are established, a court *may* annul the election. Conversely, a court may not annul an election unless the grounds in s. 524(1)(*b*) are established.

[21] The French version of the Act confirms this interpretation:

> 531. …
>
> (2) Au terme de l'audition, [le tribunal] peut rejeter la requête; si les motifs sont établis et selon qu'il s'agit d'une requête fondée sur les alinéas 524(1)*a*) ou *b*), il doit constater la nullité de l'élection du candidat ou il peut prononcer son annulation.

[22] Under those provisions, if the grounds in para. (*a*) of s. 524(1) are established (the elected candidate was ineligible), then a court must declare the election null and void. In such circumstances it is as if no election was held. By contrast, if the grounds in para. (*b*) are established (there were irregularities, fraud or corrupt or illegal practices that affected the result of the election), a court *may* annul the election. Under these circumstances, a court must decide whether the election held was compromised in such a way as to justify its annulment.

[23] In deciding whether to annul an election, an important consideration is whether the number of impugned votes is sufficient to cast doubt on the true winner of the election or whether the irregularities are such as to call into question the integrity of the electoral process. Since voting is conducted by secret ballot in Canada, this assessment cannot involve an investigation into voters' actual choices. If a court is satisfied that, because of the rejection of certain votes, the winner is in doubt, it would be unreasonable for the court not to annul the election.

(2) Meaning of "Irregularities … That Affected the Result of the Election"

[24] This case involves interpreting the phrase "irregularities … that affected the result of the election". The phrase is composed of two elements: "irregularities" and "affected the result". As we shall explain, "irregularities" are serious administrative errors that are capable of undermining the electoral process — the type of mistakes that are tied to and have a direct bearing on a person's right to vote.

[25] "Affected the result" asks whether someone not entitled to vote, voted. Manifestly, if a vote is found to be invalid, it must be discounted, thereby altering the vote count, and in that sense, affecting the election's result. "Affected the result" could also include a situation where a person entitled to vote was improperly prevented from doing so, due to an irregularity on the part of an election official. That is not the case here and we need not address it.

[26] In construing the meaning of "irregularities … that affected the result", we have taken into account a number of aides to statutory interpretation, among them: (1) the constitutional right to vote and the objectives of the Act; (2) the text and context of s. 524; and (3) the competing democratic values engaged.

(a) The *Constitutional Right to Vote and the Objectives of the Act*

[27] Canadian democracy is founded upon the right to vote. Section 3 of the *Charter* provides:

> **3.** Every citizen of Canada has the right to vote in an election of members of the House of Commons or of a legislative assembly and to be qualified for membership therein.

[28] The fundamental purpose of s. 3 of the *Charter* was described in *Figueroa v. Canada (Attorney General)*, 2003 SCC 37, [2003] 1 SCR 912, by Iacobucci J., for the majority, at para. 30:

> In the final analysis, I believe that the Court was correct in *Haig* [*v. Canada*, 1993 CanLII 58 (SCC), [1993] 2 SCR 995], to define s. 3 with reference to the right of each citizen to play a meaningful role in the electoral process. Democracy, of course, is a form of government in which sovereign power resides in the people as a whole. In our system of democracy, this means that each citizen must have a genuine opportunity to take part in the governance of the country through participation in the selection of elected representatives. The fundamental purpose of s. 3, in my view, is to promote and protect the right of each citizen to play a meaningful role in the political life of the country. Absent such a right, ours would not be a true democracy.

[29] The constitutional guarantee of the right to vote in s. 3 of the *Charter* is a fundamental provision, not subject to constitutional override under s. 33 of the *Charter*. Section 3 provides that citizens have the right to vote "*in an election of members of the House of Commons or of a legislative assembly*". The right to vote in the election of "members of the House of Commons" reflects Canada's constitutional character as a parliamentary form of government. Citizens have the right to vote in a specific electoral district, choosing among various candidates who wish to be the Member of Parliament for that district: see *Henry v. Canada (Attorney General)*, 2010 BCSC 610, 7 B.C.L.R. (5th) 70, at para. 139.

[30] Section 6 of the Act recognizes that all persons meeting the three requirements of age, citizenship and residence are "entitled" to vote. It reads:

> **6.** Subject to this Act, every person who is qualified as an elector is entitled to have his or her name included in the list of electors for the polling division in which he or she is ordinarily resident and to vote at the polling station for that polling division.

Section 6 uses the term "polling division". Polling divisions exist within electoral districts for administrative simplicity and voter convenience on election day (J. P. Boyer, *Election Law in Canada: The Law and Procedure of Federal, Provincial and Territorial Elections* (1987), vol. I, at p. 101). The *Charter* right to vote is for the Member of Parliament for the electoral district in which the voter resides.

[31] On a plain reading of s. 6, qualification and residence in a polling division give an individual the entitlement or right to be included on the list of electors for that polling division, and to vote. Section 6 *does not* provide that inclusion on the list of electors is a prerequisite to the right to vote. Such a reading reverses the effect of the provision. Entitlement to be on the list and entitlement to vote are consequences of being a citizen, being of age and being resident in the polling division.

[32] In this regard, it should be noted that s. 6 is a complete definition of "entitlement" in the Act. The definition is not altered by any other provision. "Entitlement" consists only of the fundamental requirements of age, citizenship, and residence.

[33] In so concluding, we recognize that the opening words of s. 6 are "[s]ubject to this Act". However, a distinction must be made between the requirements of "entitlement" in s. 6 itself, which appears in Part 1 of the Act under the heading "Electoral Rights", and the procedural mechanisms applicable on election day which appear in Part 9 of the Act under the heading "Voting". The Act establishes procedures to allow those citizens who have the right to vote to do so on election day. For example, ss. 148.1 and 149, which appear in Part 9, require procedures to be followed in establishing identity and residence, and in registering, before voting. These are procedural provisions designed to satisfy election officials that voters have the attributes that entitle them to vote. The purpose of procedural provisions in the Act is to enfranchise those persons having a right to vote under s. 6, and to prevent persons without the right to vote, from voting.

[34] The procedural safeguards in the Act are important; however, they should not be treated as ends in themselves. Rather, they should be treated as a means of ensuring that only those who have the right to vote may do so. It is that end that must always be kept in sight.

[35] It is well accepted in the contested election jurisprudence that the purpose of the Act is to enfranchise all persons entitled to vote and to allow them to express their democratic preferences. Courts considering a denial of voting rights have applied a stringent justification standard: *Sauvé v. Canada (Attorney General)* (1992), 1992 CanLII 2786 (ON CA), 7 O.R. (3d) 481 (C.A.), and *Belczowski v. Canada*, 1992 CanLII 8580 (FCA), [1992] 2 F.C. 440 (C.A.), both aff'd 1993 CanLII 92 (SCC), [1993] 2 SCR 438.

[36] The words of an Act are to be read in their "entire context and in their grammatical and ordinary sense harmoniously with the scheme of the Act, the object of the Act, and the intention of Parliament": *Bell ExpressVu Limited Partnership v. Rex*, 2002 SCC 42, [2002] 2 SCR 559, at para. 26, citing E. A. Driedger, *Construction of Statutes* (2nd ed. 1983), at p. 87. The constitutional right to vote and the enfranchising purpose of the Act are of central importance in construing the words "irregularities … that affected the result".

[37] It is well recognized in the jurisprudence that where electoral legislation is found to be ambiguous, it should be interpreted in a way that is enfranchising: *Haig v. Canada*, 1993 CanLII 58 (SCC), [1993] 2 SCR 995. Although he was in dissent in that case, Cory J. made the following observations at pp. 1049-50, with which L'Heureux-Dubé J., for the majority, at p. 1028, expressed total agreement:

> The courts have always recognized the fundamental importance of the vote and the necessity to give a broad interpretation to the statutes which provide for it. This traditional approach is not only sound it is essential for the preservation of democratic rights. The principle was well expressed in *Cawley v. Branchflower* (1884), 1 B.C.R. (Pt. II) 35 (S.C.). There Crease J. wrote at p. 37:
>
> > The law is very jealous of the franchise, and will not take it away from a voter if the Act has been reasonably complied with … . It looks to realities, not technicalities or mere formalities, unless where forms are by law, especially criminal law, essential, or affect the subject-matter under dispute.
> >
> > To the same effect in *Re Lincoln Election* (1876), 2 O.A.R. 316, Blake V.C. stated (at p. 323):
> >
> > The Court is anxious to allow the person who claims it the right to exercise the franchise, in every case in which there has been a reasonable compliance with the statute which gives him the right he seeks to avail himself of. No merely formal or immaterial matter should be allowed to interfere with the voter exercising the franchise … .
> >
> > It can be seen that enfranchising statutes have been interpreted with the aim and object of providing citizens with the opportunity of exercising this basic democratic right. Conversely restrictions on that right should be narrowly interpreted and strictly limited. [Emphasis deleted.]

[38] While enfranchisement is one of the cornerstones of the Act, it is not free-standing. Protecting the integrity of the democratic process is also a central purpose of the Act. The same procedures that enable entitled voters to cast their ballots also serve the purpose of preventing those not entitled from casting ballots. These safeguards address the potential for fraud, corruption and illegal practices, and the public's perception of the integrity of the electoral process. (See *Henry*, at paras. 305-6.) Fair and consistent observance of the statutory safeguards serves to enhance the public's faith and confidence in fair elections and in the government itself, both of which are essential to an effective democracy: *Longley v. Canada (Attorney General)*, 2007 ONCA 852, 88 O.R. (3d) 408, at para. 64, leave to appeal refused, [2008] 1 SCR x.

(b) *The Text and Context of Section 524*

[39] Just as the enfranchising purpose of the Act informs the interpretation of the phrase "irregularities … that affected the result" in s. 524, so too does the text of the provision itself. Parliament's use of the word "irregularities" in s. 524 of the Act is significant. A different phrase, "any non-compliance with the provisions of the Act", could have been used. Moreover, if Parliament had intended that *any* deviation from the statutory procedure be a basis on which to annul an election, it would have spoken in terms of "non-compliance". Instead, it used "irregularities", suggesting that Parliament intended to restrict the scope of administrative errors that give rise to overturning an election.

[40] How is the meaning of "irregularities" restricted? The well-known "associated words" or "*noscitur a sociis*" rule of interpretation assists in this regard. The rule states that a term or an expression should not be interpreted without taking the surrounding terms into account. "The meaning of a term is revealed by its association with other terms: it is known by its associates": *2747-3174 Québec Inc. v. Quebec (Régie des permis d'alcool)*, 1996 CanLII 153 (SCC), [1996] 3 SCR 919, at para. 195 (emphasis deleted).

[41] Professor Sullivan defines the "associated words" rule as follows:

> The associated words rule is properly invoked when two or more terms linked by "and" or "or" serve an analogous grammatical and logical function within a provision. This parallelism invites the reader to look for a common feature among the terms. This feature is then relied on to resolve ambiguity or limit the scope of the terms. Often the terms are restricted to the scope of their broadest common denominator.
>
> (*Sullivan on the Construction of Statutes* (5th ed. 2008), at p. 227)

[42] The word "irregularities" appears as part of the following phrase: "irregularities, fraud or corrupt or illegal practices". These are words that speak to serious misconduct. To interpret "irregularity" as meaning any administrative error would mean reading it without regard to the related words.

[43] The common thread between the words "irregularities, fraud or corrupt or illegal practices" is the seriousness of the conduct and its impact on the integrity of the electoral process. Fraud, corruption and illegal practices are serious. Where they occur, the electoral process will be corroded. In associating the word "irregularity" with those words, Parliament must have contemplated mistakes and administrative errors that are serious and capable of undermining the integrity of the electoral process. (See *Cusimano v. Toronto (City)*, 2011 ONSC 7271, 287 O.A.C. 355, at para. 62.)

(c) *Competing Democratic Values*

[44] Central to the issue before us is how willing a court should be to reject a vote because of statutory non-compliance. Although there are safeguards in place to prevent abuse, the Act accepts some uncertainty in the conduct of elections, since in theory, more onerous and accurate methods of identification and record-keeping could be adopted. The balance struck by the Act reflects the fact that our electoral system must balance several interrelated and sometimes conflicting values. Those values include certainty, accuracy, fairness, accessibility, voter anonymity, promptness, finality, legitimacy, efficiency and cost. But the central value is the *Charter*-protected right to vote.

[45] Our system strives to treat candidates and voters fairly, both in the conduct of elections and in the resolution of election failures. As we have discussed, the Act seeks to enfranchise all entitled persons, including those without paper documentation, and to encourage them to come forward to vote on election day, regardless of prior enumeration. The system strives to achieve accessibility for all voters, making special provision for those without identification to vote by vouching. Election officials are unable to determine with absolute accuracy who is entitled to vote. Poll clerks do not take fingerprints to establish identity. A voter can establish Canadian citizenship verbally, by oath. The goal of accessibility can only be achieved if we are prepared to accept some degree of uncertainty that all who voted were entitled to do so.

[46] The practical realities of election administration are such that imperfections in the conduct of elections are inevitable. As recognized in *Camsell v. Rabesca*, 1987 CanLII 8600 (NWT SC), [1987] N.W.T.R. 186 (S.C.), it is clear that "in every election, a fortiori those in urban ridings, with large numbers of polls, irregularities will virtually always occur in one form or another" (p. 198). A federal election is only possible with the work of tens of thousands of Canadians who are hired across the country for a period of a few days or, in many cases, a single 14-hour day. These workers perform many detailed tasks under difficult conditions. They are required to apply multiple rules in a setting that is unfamiliar. Because elections are not everyday occurrences, it is difficult to see how workers could get practical, on-the-job experience.

[47] The provision for contesting elections in Part 20 of the Act serves to restore accuracy and reliability where it has been compromised. However, tension exists between allowing an application to contest an election on the basis of irregularities and the need for a prompt, final resolution of election outcomes. The Act provides, in s. 525(3):

(3) An application shall be dealt with without delay and in a summary way. …

[48] It should be remembered that annulling an election would disenfranchise not only those persons whose votes were disqualified, but every elector who voted in the riding. That voters will have the opportunity to vote in a by-election is not a perfect answer, as Professor Steven F. Huefner writes:

> … a new election can never be run on a clean slate, but will always be colored by the perceived outcome of the election it superseded. New elections may also be an inconvenience for the voters, and almost certainly will mean that a different set of voters, with different information, will be deciding the election. Moreover, there can be no guarantee that the new election will itself be free from additional problems, including fraud. In the long term, rerunning elections might lead to disillusionment or apathy, even if in the short term they excite interest in the particular contest. Frequent new elections also would undercut democratic stability by calling into question the security and efficiency of the voting mechanics.

("Remedying Election Wrongs" (2007), 44 *Harv. J. on Legis.* 265, at pp. 295-96)

[49] Permitting elections to be lightly overturned would also increase the "margin of litigation". The phrase "margin of litigation" describes an election outcome close enough to draw post-election legal action: Huefner, at pp. 266-67.

[50] The current system of election administration in Canada is not designed to achieve perfection, but to come as close to the ideal of enfranchising all entitled voters as possible. Since the system and the Act are not designed for certainty alone, courts cannot demand perfect certainty. Rather, courts must be concerned with the integrity of the electoral system. This overarching concern informs our interpretation of the phrase "irregularities … that affected the result".

(d) *Conclusion: The Meaning of "Irregularities ... That Affected the Result"*

[51] Having regard to the centrality of the constitutional right to vote, the enfranchising purpose of the Act, the language of s. 524, and the numerous democratic values engaged, we conclude that an "irregularit[y] ... that affected the result" of an election is a breach of statutory procedure that has resulted in an individual voting who was not entitled to vote. Such breaches are serious because they are capable of undermining the integrity of the electoral process.

(3) When Is an "Irregularit[y] … That Affected the Result" Established?

[52] An applicant who seeks to annul an election bears the legal burden of proof throughout. … As earlier noted, the present situation is governed by s. 531(2) of the Act. For ease of reference, the provision is reproduced below:

> (2) After hearing the application, the court may dismiss it if the grounds referred to in paragraph 524(1)(*a*) or (*b*), as the case may be, are not established and, where they are established, shall declare the election null and void or may annul the election, respectively.

[53] The word "established" places the burden squarely on the applicant. The applicable standard of proof is the civil standard, namely, proof on a balance of probabilities.

[54] Two approaches have been used in the past by courts to determine whether there was an "irregularit[y] … that affected the result" of an election. A strict procedural approach was followed by courts … . Under that approach, all votes cast pursuant to an irregular procedure were held to be invalid. The failure to comply with a procedural step aimed at determining entitlement was considered to directly affect the result of the election. In these cases, even where the elector's right to vote in the election could have been proven to the court after the fact, failure to comply with the procedural safeguards sufficed to discount the votes in question.

[55] A second approach, sometimes referred to as the "substantive" approach, emphasizes the substantive right of the elector to vote. An approach along these lines has been followed in other Canadian contested election cases… . On this approach, failure to follow a procedural safeguard is not determinative of whether the result of the election has been affected.

[56] In our view, adopting a strict procedural approach creates a risk that an application under Part 20 could be granted even where the result of the election reflects the will of the electors who in fact had the right to vote. This approach places a premium on form over substance, and relegates to the back burner the *Charter* right to vote and the enfranchising objective of the Act. It also runs the risk of enlarging the margin of litigation, and is contrary to the principle that elections should not be lightly overturned, especially where neither candidates nor voters have engaged in any wrongdoing. Part 20 of the Act should not be taken by losing candidates as an invitation to examine the election records in search of technical administrative errors, in the hopes of getting a second chance.

[57] The substantive approach is recommended by the fact that it focuses on the underlying right to vote, not merely on the procedures used to facilitate and protect that right. In our view, an approach that places a premium on substance is the approach to follow in determining whether there were "irregularities … that affected the result of the election". On this approach, a judge should look at the whole of the evidence, with a view to determining whether a person who was not entitled to vote, voted. Unlike the "strict procedural" approach, evidence going to entitlement is admissible. By the same token, direct evidence of a lack of entitlement is not required. Proof of an irregularity may itself be sufficient to discount a vote.

[58] There are two steps to this approach. First, an applicant must prove that there was an "irregularity": breach of a statutory provision designed to establish a person's entitlement to vote. We do not understand the minority to suggest otherwise. For example, a breach of s. 148.1 or s. 149 would amount to an "irregularity" because these provisions go to establishing entitlement.

[59] Second, an applicant must demonstrate that the irregularity "affected the result" of the election: someone not entitled to vote, voted. Where that is established, the vote is invalid, and must be rejected. Rejecting a vote affects the result of the election in the sense that it changes the vote count. It is at this second step that our approach departs from that of the minority.

[60] An "irregularity" constitutes evidence from which it may be inferred that a voter was not entitled to vote, because it is a breach of a procedure designed to establish the voter's entitlement. As indicated, proof of an irregularity may itself be sufficient to show that an invalid vote was cast, thereby affecting the result of the election.

[61] Under our approach, an applicant who has led evidence from which an irregularity could be found will have met his or her *prima facie* evidentiary burden. At that point, the respondent runs the risk of having the votes in issue set aside, unless he or she can adduce or point to evidence from which it may reasonably be inferred that no irregularity occurred, or that despite the irregularity, the votes in question were nevertheless valid. For example, where registration certificates cannot be located and there is a question as to whether they were completed as required, the respondent may point to evidence showing that they were completed, such as a list of names of people who voted by registration, or evidence from the polling officials that registration took place. Or, the respondent may show that the voters were entitled to vote by reference to their inclusion on a list of voters in the electoral district.

[62] Once all of the evidence from both parties is before the judge, the judge will decide, focusing on substance rather than form, whether the applicant has met his or her burden of establishing on a balance of probabilities that someone who voted was not entitled to do so. If the court is not so satisfied, then the applicant has failed to meet his or her onus.

C. *The Consequences of Statutory Non-Compliance*

[63] Our approach to contested elections allows a judge to consider evidence that an individual was entitled to vote on election day. It has to be remembered that "entitlement" is concerned with age, citizenship and residence. A judge may look at any evidence that is relevant to these criteria. This approach best ensures the accuracy of election results. Some prior jurisprudence in the lower courts suggests that this approach introduces uncertainty into election results. (See *Hogan*, at para.77.) With respect, this concern is unfounded.

[64] When a court decides a contested election case based on alleged "irregularities … that affected the result", it is faced with uncertainty as to the outcome of an election arising from allegations of errors in the administration of the election. A contested election decision, by addressing these alleged errors, is designed to remedy this uncertainty. An approach allowing for an examination of voter entitlement bolsters accuracy and confidence that only entitled persons cast ballots.

[65] Any concern that our approach would result in the inconsistent application of the Act is unfounded. The minority suggests that since some entitled voters may be turned away on election day by election officials properly following procedures in the Act, it is unfair for a court to allow votes to stand where there was an administrative procedural error but other evidence that the voter was entitled to vote (para. 167). However, unlike the rejection of a valid vote, turning away a voter on election day is not fatal to that person's right to vote. If at first that voter could not comply with a procedural requirement, with some additional effort, he or she can return to the polling station and obtain a ballot. As well, if a person feels that he or she should be permitted to vote, scrutineers may be available to help resolve the matter.

[66] By contrast, if a vote cast by an entitled voter were to be rejected in a contested election application because of an irregularity, the voter would be irreparably disenfranchised. This is especially undesirable when the irregularity is outside of the voter's control, and is caused solely by the error of an election official.

[67] For example, compare the situation of two voters who arrive at the polling station with inadequate identification. The DRO personally knows one of the voters, and vouches for him, enabling him to cast a ballot. The DRO does not live in the polling division, so he has vouched in a manner not permitted by the Act. However, the voter leaves the polling station believing that he has cast a valid vote. If a court later rejects the voter's vote, he is irreparably disenfranchised, through no fault of his own. In the case of the second voter, the DRO properly refuses to let her vote without proper identification. This voter can return to the polling station later in the day, accompanied by a voucher who lives in the polling division, and cast her ballot. She has not been disenfranchised.

[68] Nor will the approach that we endorse encourage non-compliance with the Act. The election process is open and public. Polling officials work in a public environment at a polling station where their actions can be observed by other election officials, candidates or candidates' representatives and members of the public present to vote. If there is a reasonable concern about whether a person is entitled to vote, any polling official, candidate or candidate's representative can ask that the person take an oath before voting (s. 144).

[69] In recognizing that mistakes are inevitable, this Court does not condone any relaxation of training and procedures. The Commissioner of Canada Elections appointed by the CEO has an obligation to ensure, as far as reasonably possible, that procedures are followed (s. 509). Failure to live up to this mandate would shake the public's confidence in the election system as a whole and render it vulnerable to abuse and manipulation.

[70] The Commissioner of Canada Elections is responsible for compliance with and enforcement of the Act (s. 509). The Chief Electoral Officer may refer any matter for investigation to the Commissioner, and, with respect to specific offences, may direct the Commissioner to "make any inquiry that appears to be called for in the circumstances", and the Commissioner shall do so (s. 510). Following an inquiry, the Commissioner may refer the matter to the Director of Public Prosecutions, who will decide whether to prosecute the offence (s. 511). Alternatively, the Commissioner may enter into an agreement with the offender aimed at providing for compliance with the Act (s. 517). Overturning an election is but one of several consequences that may flow from the failure of election officers to follow rules. A declaration that an election is annulled may be considered the ultimate public consequence of violating provisions of the Act, and accordingly should be reserved for serious cases.

D. *Should an Election Be Annulled? The "Magic Number" Test*

[71] To date, the only approach taken by Canadian courts in assessing contested election applications has been the "magic number" test referred to in *O'Brien* (p. 93). On this test, the election must be annulled if the rejected votes are equal to or outnumber the winner's plurality (*Blanchard*, at p. 320).

[72] The "magic number" test is simple. However, it inherently favours the challenger. It assumes that all of the rejected votes were cast for the successful candidate. In reality, this is highly improbable. However, no alternative test has been developed. No evidence has been presented in this case to support any form of statistical test that would be reliable and that would not compromise the secrecy of the ballot.

[73] Accordingly, for the purposes of this application, we would utilize the magic number test. The election should be annulled when the number of rejected votes is equal to or greater than the successful candidate's margin of victory. However, we do not rule out the possibility that another, more realistic method for assessing contested election applications might be adopted by a court in a future case.

E. *Summary*

[74] The following approach should be followed in determining whether there were "irregularities ... that affected the result of the election": An applicant must prove that a procedural safeguard designed to establish an elector's entitlement to vote was not respected. This is an "irregularity". An applicant must then demonstrate that the irregularity "affected the result" of the election because an individual voted who was not entitled to do so. In determining whether the result was affected, an application judge may consider any evidence in the record capable of establishing that the person was in fact entitled to vote despite the irregularity, or that the person was not in fact entitled to vote.

[75] If it is established that there were "irregularities … that affected the result of the election", a court may annul the election. In exercising this discretion, if a court is satisfied that, because of the rejection of certain votes, the winner is in doubt, it would be unreasonable for the court not to annul the election. For the purposes of this application, the "magic number" test will be used to make that determination.

…

The reasons of the Chief Justice and LeBel and Fish JJ were delivered by

The CHIEF JUSTICE (dissenting) —

I. Introduction

[138] I would dismiss the appeal. The election result in Etobicoke Centre should be annulled because of "irregularities … that affected the result of the election". The irregularities in this case concerned ballots cast by individuals who were not entitled to vote.

[139] An individual must be entitled to vote before casting a ballot for the Member of Parliament for the riding where she is ordinarily resident. The Act sets out a comprehensive scheme defining entitlement to vote: ss. 6, 143(2), (3), 148.1, 149 and 161. In general, there are three prerequisites to entitlement to vote: qualification, registration and identification. First, an individual must be *qualified* to vote, in terms of citizenship and age. Second, she must be *registered* to vote, generally either by being on the list of electors or filing a registration certificate. Third, she must be *identified* at the polling station in a way permitted under the Act, whether by providing appropriate pieces of identification or by taking an oath and being vouched for by another elector. There are different ways in which the requirements of entitlement to vote under the Act can be fulfilled, but if any of the prerequisites of entitlement are not satisfied, an individual is not permitted to cast a ballot.

[140] Whether a person is entitled to vote is a distinct question from whether she is qualified to vote. All Canadian citizens who are 18 years or older on election day are qualified electors: s. 3 of the Act. Being a qualified elector is a necessary but not sufficient condition for entitlement to vote. Qualified electors must fulfill all the prerequisites of an entitlement procedure under the Act before voting. These procedures ensure that election officials have verified the qualifications and identity of prospective voters before they cast their ballots. They are fundamental safeguards for the integrity of the electoral system.

[141] Votes cast by persons not entitled to vote are irregularities that can affect the result of the election under s. 524(1)(*b*) of the Act. If the number of such irregular votes is equal to or exceeds the winner's plurality, then the result of the election *is* affected and the election should be annulled. This is known as the "magic number" rule. In the present case, the winning candidate in Etobicoke Centre, Ted Opitz, had a plurality of 26 votes. Therefore, the application judge should have annulled the election only if the applicant established that 26 or more ballots were cast by non-entitled voters. The onus was on the applicant to establish the existence of irregularities sufficient to annul the election.

[142] While the application judge in this case improperly set aside some votes, he did not err with respect to 65 ballots cast by persons not entitled to vote. As this exceeds the plurality of 26 votes, under the "magic number" rule the appeal should be dismissed and the election annulled.

…

II. Analysis

A. *Applicable Principles of Statutory Construction*

[144] The overriding principle of statutory interpretation is that "the words of an Act are to be read in their entire context and in their grammatical and ordinary sense harmoniously with the scheme of the Act, the object of the Act, and the intention of Parliament" (E. A. Driedger, *Construction of Statutes* (2nd ed. 1983), at p. 87, quoted in *Rizzo & Rizzo Shoes Ltd. (Re)*, 1998 CanLII 837 (SCC), [1998] 1 SCR 27, at para. 21). The best indication of Parliament's intent is found in the language of the statutory provisions: *R. v. Knott*, 2012 SCC 42, [2012] 2 SCR 470, at para. 54.

[145] The words of the statute must be interpreted with a view to the objectives of the Act. Courts have considered different aspects of the purpose of the Act but none has identified the broad and overarching purpose of the legislation: see, e.g., *Harper v. Canada (Attorney General)*, 2004 SCC 33, [2004] 1 SCR 827; *Henry v. Canada (Attorney General)*, 2010 BCSC 610, 7 B.C.L.R. (5th) 70, at para. 139. The overarching purpose of the Act is to ensure the democratic legitimacy of federal elections in Canada. This broad purpose encompasses several discrete objectives. The first is to enfranchise individuals who are qualified to vote: *Haig v. Canada*, 1993 CanLII 58 (SCC), [1993] 2 SCR 995, at p. 1058 (*per* Cory J.). A second and complementary objective is to ensure that people who are not qualified to vote do not do so: see *Haig*, at p. 1027, *per* L'Heureux-Dubé J. A third objective is to promote efficiency and certainty in the electoral process. In considering these objectives, we must be careful to respect the words chosen by Parliament: *Canada (Canadian Human Rights Commission) v. Canada (Attorney General)*, 2011 SCC 53, [2011] 3 SCR 471, at para. 33.

B. *The Meaning of "Irregularities … That Affected the Result of the Election" Under Section 524(1)(b) of the Act*

[146] Any elector or any candidate in an electoral district may apply to a competent court to contest an election on the grounds that "there were irregularities, fraud or corrupt or illegal practices that affected the result of the election" (s. 524(1)(*b*)). If the elements of s. 524(1)(*b*) are established, a court may annul the election (s. 531(2)).

[147] In the ordinary sense of the word, something is "irregular" when it is "[n]ot in conformity with rule or principle" (*The Oxford English Dictionary* (2nd ed. 1989), vol. VIII, at p. 93). This suggests that under the Act, an election may be set aside as a result of non-compliance with the provisions of the Act, even in the absence of fraud or corrupt or illegal practices.

[148] The objective of efficiency and certainty in the electoral process suggests that there ought to be strict compliance with the requirements of the Act. The objective of ensuring that those not qualified to vote not do so pulls in the same direction. On the other hand, the objective of enfranchisement suggests that "irregularities" should not be interpreted in a technical or trivial way that improperly disenfranchises voters. The votes of Canadian citizens 18 years of age or over should not be set aside over trifles … . Based on the language and purposes of the Act, I conclude that "irregularities" under s. 524(1)(*b*) should be interpreted to mean failures to comply with the requirements of the Act, unless the deficiency is merely technical or trivial.

[149] Only irregularities that "affected the result of the election" permit the annulment of the election under s. 531(2). Irregularities must be of a type that *could* affect the result of the election, and impact a *sufficient number* of votes to have done so. An irregularity resulting in a vote being cast that should not have been is of a type that *could* affect the result of the election. To have actually affected the result of the election, the number of such votes must be equal to or exceed the winning candidate's plurality. If the irregularities are of this type and impact this number of votes, then a court can and should annul the election under s. 531(2). This is known as the "magic number" rule. …

[150] The critical question raised in this case is the following: What kinds of irregularities result in a vote being cast that should not have been? The answer lies in the principle of entitlement to vote, which is a central pillar of our electoral system.

C. *Entitlement to Vote*

[151] Every electoral system must strike a balance between enabling those who have the constitutional right to vote to do so, and ensuring that those who do not have that right are not allowed to vote. The formal system of entitlement is our mechanism for striking the right balance between these two valid concerns, while ensuring the efficiency and certainty of the electoral process. It aims to safeguard both the right to vote and the integrity of elections.

(1) Prerequisites to Entitlement to Vote

[152] In general, there are three prerequisites to entitlement to vote under the Act. These prerequisites concern qualification, registration and identification as a voter. Only when all of these elements are met is a person entitled to vote for the Member of Parliament for the riding where she is ordinarily resident.

(a) *Qualification*

[153] The first prerequisite of entitlement to vote is qualification. This means that the voter must be a Canadian citizen and 18 years of age or older. Section 3 of the Act defines a qualified elector as "[e]very person who is a Canadian citizen and is 18 years of age or older on polling day". Section 6 of the Act sets out the qualification prerequisite of entitlement to vote:

> **6.** Subject to this Act, every person who is qualified as an elector is entitled to have his or her name included in the list of electors for the polling division in which he or she is ordinarily resident and to vote at the polling station for that polling division.

[154] The words "[s]ubject to this Act" make clear that entitlement to vote is also conditioned on other prerequisites to entitlement found in the Act. In order to be given a ballot and permitted to vote on election day, it is not enough that a person be qualified. Entitlement to vote goes beyond qualification … .

(b) *Registration*

[155] The second prerequisite of entitlement to vote is registration, through (a) inclusion on the list of electors in the polling division where the voter is ordinarily resident or (b) filing a registration certificate. Other exceptional voter registration procedures exist under the Act, but these are not applicable in this case and will not be dealt with here. The Act makes clear that a voter *shall not* be allowed to vote unless one of these registration procedures is satisfied.

[156] Section 149 of the Act provides:

> **149.** An elector whose name does not appear on the official list of electors in his or her polling station shall not be allowed to vote unless
>
> …
>
> (*c*) the elector gives the deputy returning officer a registration certificate described in subsection 161(4).

[157] Inclusion on the list of electors is one way that an individual can satisfy the registration prerequisite of entitlement to vote. Prior to election day, election officials prepare a list of electors for each polling division, listing qualified electors who are ordinarily resident in that polling division (s. 106). These lists are then used by election officials at the polling station for each polling division on election day. If a person is on the list of electors, then s. 149 is no barrier to voting entitlement.

[158] If a person is not on the list of electors, s. 149(*c*) provides an alternative means of registering to vote: filing a registration certificate. A person is entitled to vote despite not being on the list of electors if she satisfies the registration certificate procedure.

[159] The registration certificate procedure under s. 149(*c*) requires a prospective voter to prove her identity and residence, and to sign a declaration that she is a Canadian citizen 18 years of age or older (s. 161). The declaration on the registration certificate states:

> I, the person whose name appears in Box 1, certify that I am a Canadian citizen, 18 years of age or over on polling day and have been ordinarily resident at the address appearing in box 2. … I certify that the information provided on this form is accurate.

If a person voting by registration certificate does not sign this declaration, she has not established her age and citizenship as required by the Act. The declaration is therefore a vital prerequisite of entitlement to vote. Upon completing the registration certificate, a person is deemed to be included on the list of electors (s. 161(5)).

(c) *Identification*

[160] The third prerequisite of entitlement to vote is identification. A prospective voter must prove her identity and residence at the polling station in a way permitted by the Act. Section 148.1(1) of the Act states:

> **148.1** (1) An elector who fails to prove his or her identity and residence in accordance with subsection 143(2) or (3) or to take an oath otherwise required by this Act shall not receive a ballot or be allowed to vote.

[161] A person can prove her identity and residence in two ways: (a) providing the necessary piece or pieces of identification (such as a driver's licence); or (b) taking a prescribed oath and being vouched for by another person in the manner set out in the Act. These two options are available both for individuals who are on the list of electors and for individuals voting by registration certificate (ss. 143(2), (3) and 161(1)).

[162] If the oath and vouching procedure is used, the person vouching for the prospective voter must (i) be on the list of electors for the same polling division, (ii) provide the required piece or pieces of identification to prove his identity and residence, (iii) state a prescribed oath, (iv) not have already vouched for another elector in the election, and (v) not have herself been vouched for in that election (ss. 143(3), (5), (6), 161(1)(*b*), (6) and (7)). If these conditions are not met, the vouching is invalid and the prospective voter's identity and residence have not been proved in a manner permitted by the Act.

[163] Only if all of the prerequisites to entitlement to vote are met is a person permitted to cast a ballot in a Canadian federal election. The Act expressly states that a person who is not entitled to vote shall not receive a ballot or be allowed to vote, even if he is qualified to vote, in the sense of meeting the citizenship and age requirements (ss. 148.1 and 149). The constitutionality of these entitlement provisions is not at issue in this appeal, so this Court must adhere to the unambiguous directions from Parliament as to the prerequisites to exercising the right to vote: *Pharmascience Inc. v. Binet*, 2006 SCC 48, [2006] 2 SCR 513, at para. 29; *Bell ExpressVu Limited Partnership v. Rex*, 2002 SCC 42, [2002] 2 SCR 559.

[164] My colleagues, with respect, merge the concepts of qualification and entitlement. They take the position that everyone who is qualified to vote and ordinarily resident in the electoral district is entitled to vote. Thus, a voter who is not on the electoral list and has not filed a registration certificate (s. 149) can be later held to have been "entitled" to vote if he was qualified to vote and ordinarily resident in the electoral district. I cannot accept this view.

[165] First, as discussed, in terms of registration, the plain words of the Act condition entitlement on either being on the list of electors or filing a registration certificate (s. 149). Sections 6, 148.1 and 149 together describe prerequisites of entitlement to vote. Both ss. 148.1 and 149 state that, unless their respective conditions are satisfied, the elector "shall not" be allowed to vote. These conditions require, in addition to qualification, fulfillment of the identification and registration prerequisites of entitlement to vote.

[166] Second, the objective of certainty in the electoral process requires that entitlement be established before receiving and casting a ballot. Nothing in the Act suggests that a person who on election day is not entitled to vote should be permitted to do so and to establish his entitlement later. If we decline to set aside votes cast by non-entitled people on the grounds that they are subsequently proven to be qualified and ordinarily resident in the electoral district, the result is a system where the only way to be confident in the accuracy of an election outcome is to investigate the identity, residence and qualification of voters after the election.

[167] Third, such an approach would be unfair. It disregards the fact that other qualified electors who did not follow the necessary steps to become entitled to vote may have rightly been turned away from the polling station and not permitted to vote on election day. The Act sets out the rules and procedures electors must follow in order to exercise their constitutional right to vote. Those rules must be applied fairly and consistently if the right is to have meaning.

…

V. Conclusion

[216] Of the 79 votes set aside by the application judge, I conclude that 65 were properly set aside …

This exceeds the 26-vote plurality in this electoral district.

[217] Therefore, the applicant succeeded in establishing the existence of "irregularities ... that affected the result of the election" under s. 524(1)(*b*) and the election is properly annulled as contemplated under s. 531(2) of the Act. There is no need to consider the cross-appeal. The appeal should be dismissed and the fresh evidence motion dismissed.

Note the presence of judicial anxieties concerning the remedy in *Opitz*. Annulling an election result may have the effect of opening up, not only particular election results across the country, but an entire election itself. Anxieties about the separation of powers also exist concerning the question of whose responsibility it is to correct a problem with the legislation: the courts or Parliament?

For a critical view on the utility of the 'magic number test' see Francis Hane and Heather Emptage, 'Disputed Election Results: A More Rigorous "Magic Number Test"' (2013) 22:3 Constitutional Forum 27-33, 2013 CanLIIDocs 716 where they argue that, properly understood, the statistical evidence would have shown that Wrzesnewskyj could have won the election, not Opitz. They propose a 'more rigorous' test that is simple, consistent with constitutional and Charter values as well as with the principle of the rarity of election annulments, and minimizes "election litigation by ensuring that votes which are legitimately cast remain valid." Do you agree?

1.4.5 Elections and judicial interpretation of fixed election date legislation

The 2006 federal election introduced a new idea for electoral reform: fixed election dates. This idea would change the traditional Westminster practice where a Prime Minister could exercise their discretion to call an election at any time during their (maximum) five-year term in power. This context continued to be informed, however, by the possibility of a successful non-confidence vote resulting in an election at any time. Bill C-16, *An Act to Amend the Canada Elections Act* introduced a number of amendments including section 56.1 which seemed to establish a fixed election date. These changes came into force in 2007. One goal of section 56.1 was to prevent parties in power from calling so-called 'snap' elections early in their mandate in order to take advantage of a political climate favoured an electoral win, thereby extending their term. Fixed election dates aim to level the playing field between the party in power and competing parties. Fixed term dates therefore represent a constitutional constraint on what traditionally has been considered the unfettered discretionary prerogative power of the Prime Minister.

In September 2008, Prime Minister Stephen Harper advised Governor General Michaëlle Jean to dissolve Parliament and set an election date of October 14, 2008. This request contradicted section 56.1 of the now amended *Canada Elections Act*. The Governor General, following convention, agreed to his request. The subsequent election resulted in a second minority government for the Conservative Party and one where they increased their number of seats. This second term, however, only lasted until March 25, 2011 when Harper's Cabinet was defeated in a no-confidence vote after being found in contempt of Parliament.

Democracy Watch (a national non-profit organization) launched a legal challenge asking the courts to review Prime Minister Harper's 'advice' to the Governor General to call the snap election. Democracy Watch's argument was that this advice violated the Prime Minister's statutory obligations in the *Canada Elections Act* not to call a snap election and that the Conservatives had timed a general election to their partisan advantage thereby defeating the very purpose of section 56.1.

The Federal Court rejected Democracy Watch's argument that a new constitutional convention had crystallized that limited the discretion of the Prime Minister to advise the Governor General to dissolve Parliament such that it was only to be exercised in accordance with the terms of section 56.1 of the *Canada Elections Act*, unless there had been a prior vote of non-confidence. The reviewing court also disagreed that the Prime Minister's decision contravened Section 3 of the Charter. These issues from *Conacher v Canada (Prime Minister)*, 2009 FC 920 (CanLII), [2010] 3 FCR 411 are excerpted below.

1.4.5.1 *Conacher v Canada (Prime Minister)*, 2009 FC 920 (CanLII), [2010] 3 FCR 411

SHORE J:

IV. Issues

[14] There are five issues in this application:

(1) Is the Prime Minister's decision appropriate subject-matter for a judicial review?

(2) Did section 56.1 of the *Canada Elections Act* create a constitutional convention whereby the discretion of the Prime Minister, to advise the Governor General to dissolve Parliament, is only to be exercised in accordance with the terms of section 56.1 of the *Canada Elections Act*, unless there has been a prior vote of non-confidence?

(3) Did the Prime Minister's decision of September 7, 2008 contravene section 56.1 of the *Canada Elections Act*?

(4) Did the Prime Minister's decision of September 7, 2008 to advise the Governor General to dissolve Parliament contravene section 3 of the *Canadian Charter of Rights and Freedoms*?

(5) Is declaratory relief an appropriate remedy in these circumstances?

V. Relevant provisions

[15] Section 56.1 of the *Canada Elections Act* states:

56.1 (1) Nothing in this section affects the powers of the Governor General, including the power to dissolve Parliament at the Governor General's discretion.

(2) Subject to subsection (1), each general election must be held on the third Monday of October in the fourth calendar year following polling day for the last general election, with the first general election after this section comes into force being held on Monday, October 19, 2009.

[16] The applicants' submissions also mention section 50 of the *Constitution Act, 1867*, section 3 of the Charter and section 41 of the *Constitution Act, 1982* [Schedule B, *Canada Act 1982*, 1982, c. 11 (U.K.) [R.S.C., 1985, Appendix II, No. 44]]:

Section 50 of the *Constitution Act, 1867* states:

50. Every House of Commons shall continue for Five Years from the Day of the Return of the Writs for choosing the House (subject to be sooner dissolved by the Governor General), and no longer.

Section 3 of the Charter, states:

3. Every citizen of Canada has the right to vote in an election of members of the House of Commons or of a legislative assembly and to be qualified for membership therein.

Section 41 of the *Constitution Act, 1982*, states:

41. An amendment to the Constitution of Canada in relation to the following matters may be made by proclamation issued by the Governor General under the Great Seal of Canada only where authorized by resolutions of the Senate and House of Commons and of the legislative assembly of each province:

(*a*) the office of the Queen, the Governor General and the Lieutenant Governor of a province;

(*b*) the right of a province to a number of members in the House of Commons not less than the number of Senators by which the province is entitled to be represented at the time this Part comes into force;

(*c*) subject to section 43, the use of the English or the French language;

(*d*) the composition of the Supreme Court of Canada; and

(*e*) an amendment to this Part.

…

VI. Analysis of the Court of the parties' submissions as to the respective issues …

Issue 3: Did the Prime Minister's decision of September 7, 2008 contravene section 56.1 of the *Canada Elections Act*?

[48] This is a question of statutory interpretation. The Supreme Court of Canada held that the preferred approach to statutory interpretation is to read the words of an Act in their entire context and "in their grammatical and ordinary sense harmoniously with the scheme of the Act, the object of the Act, and the intention of Parliament" (*Rizzo & Rizzo Shoes Ltd. (Re)*, 1998 CanLII 837 (SCC), [1998] 1 SCR 27, at paragraph 21).

[49] Section 56.1 has two parts: subsection 56.1(1) leaves the Governor General's power untouched and subsection 56.1(2) states when elections are to be held.

[50] The applicants submit that the objective of section 56.1 is to preclude the calling of "snap elections" by prohibiting prime ministers from requesting dissolution except in accordance with the terms of section 56.1(2) or if there has been a prior vote of non-confidence (applicants' memorandum of fact and law, at paragraph 60). They ask this Court to interpret section 56.1 to include these limitations.

[51] The respondents reply with evidence that shows section 56.1 was never intended to be legally binding on the Prime Minister (respondents' memorandum of fact and law, at paragraphs 14–15). They also submit that amendments to the Office of the Governor General cannot be accomplished by ordinary statute, but require a constitutional amendment under section 41 of the *Constitution Act, 1982*.

[52] The respondents submit the purpose of section 56.1 is to create a "statutory expectation" of a certain date for election, without making the expected election dates legally enforceable (respondents' memorandum of fact and law, at paragraph 38). This submission causes an interpretative problem, namely, if the respondents are correct, why did Parliament use the mandatory word "must" in subsection 56.1(2)? In order to resolve this problem, the Court must examine the section's constitutional and legislative context.

[53] It is important to examine the constitutional context because Canada has a system of constitutional supremacy that lays out the boundaries of Parliament's power. In this case, the constitutional context is that the Governor General has discretion to dissolve Parliament pursuant to Crown prerogative and section 50 of the *Constitution Act, 1867*. Any tampering with this discretion may not be done via an ordinary statute, but requires a constitutional amendment under section 41 of the *Constitution Act, 1982*, which requires unanimous consent of all provincial governments as well as the federal government before a change can be made to the "office of the Governor General". Subsection 56.1(1) explicitly leaves the Governor General's discretion untouched.

[54] The legislative context is reflected in the Hansard record and press releases from the Conservative government of the time. The applicants use Hansard extensively in their submissions to attempt to show the intention of Parliament. The respondents submit that Hansard, alone, should not be used in this context because it could lead to ambiguity in respect of the intention and meaning of the legislation itself (respondents' memorandum of fact and law, at paragraph 33).

[55] The respondents are correct that the Hansard record is ambiguous, especially in respect of the intended effects of section 56.1. For example, the applicants submit a statement from the Prime Minister to the House of Commons that the fixed-date legislation was "modelled on those of the provinces, to set elections every four years and set the next election for October 2009" (applicants' memorandum of fact and law, at paragraph 5 [see also *House of Commons Debates*, No. 029 (May 30, 2006), at page 1722]). This suggests an intention to change the electoral rules. The applicants' memorandum also contains a statement from Minister Rob Nicholson that "by providing that elections are to be held every four years in October, the bill establishes a statutory expectation that the relevant political and administrative officers will govern themselves accordingly to accomplish this end—working within the rules and conventions of parliamentary and responsible government" (applicants' memorandum of fact and law, at paragraph 8 [see also Standing Senate Committee on Legal and Constitutional Affairs. *Proceedings*, No. 18 (December 7, 2006), at page 18:145]). This suggests an intention to leave the existing electoral rules unchanged. The respondents also point to other statements of Minister Nicholson, such as "[t]he Governor General's legal power under the Constitution and the exercise of that power on the advice of the Prime Minister are fundamentally and inseparably linked. If one limits the Prime Minister's ability to advise, one risks constraining the Governor General's power in a way that would be unconstitutional" to show that there was never any intention for Bill C-16 to bind the Prime Minister (respondents' memorandum of fact and law, at paragraph 14 [see also Standing Committee on Procedure and House Affaires. Evidence, No. 018 (September 26, 2006), at page 2]). It is the Court's conclusion that the Hansard record is ambiguous and does not establish an intention to bind the Prime Minister.

[56] A quote from Hansard that is not raised by the parties is a statement by Minister Rob Nicholson before the Standing Committee on Procedure and House Affairs. When questioned about whether Bill C-16 would leave the Prime Minister with the power to recommend the dissolution of Parliament at any time before the prescribed date, Minister Nicholson said that Bill C-16 "is crafted in a way that the prerogatives of the Prime Minister to advise the Governor General, and the Governor General's prerogatives, are in no way diminished" [emphasis added] (applicants' record, Volume I, Exhibit "I" to the affidavit of Duff Conacher, at page 90 [see also Standing Committee on Procedure and House Affairs. Evidence, No. 18 (September 26, 2006), at page 5]). This statement is another example of the ambiguity of Hansard, if used alone, and the statement demonstrates an intention not to legally bind the Prime Minister's discretion.

[57] The applicants ask this Court to interpret section 56.1 to include a condition that the Prime Minister will not request dissolution unless there has been a prior vote of non-confidence. The applicants submit that Bill C-16 had the purpose of requiring that federal elections be held on specific dates unless there is a prior vote of non-confidence (applicants' memorandum of fact and law, at paragraph 1). The applicants submit statements from Hansard as evidence of this purpose (applicants' memorandum of fact and law, at paragraphs 6–9). It is on Hansard that the applicants hang their case and, as specified, the Hansard record, alone, is ambiguous. The applicants' submissions are not supported by the language of section 56.1. Subsection 56.1(1) states that the Governor General's discretion is not affected by section 56.1. Subsection 56.1(1) states that the Governor General's discretion is not affected by section 56.1. Subsection 56.1(2) states that elections must be held on certain dates and says nothing about votes of non-confidence.

[58] The applicants ask this Court to perform complicated interpretative footwork. One of the problems with their approach is that the text of section 56.1 is silent on votes of non-confidence. Section 56.1 cannot be read as legislating binding dates for elections because, as the respondents point out, the government could fall at any time as a result of a vote of non-confidence (respondents' memorandum of fact and law, at paragraph 38). The applicants agree that a request for dissolution following a vote of non-confidence would not violate section 56.1 (applicants' memorandum of fact and law, at paragraph 60). Based on this agreement, the imperative word "must" in subsection 56.1(2) loses some of its authority. It is the Court's conclusion that, based on this exemption, it would be simpler to interpret section 56.1 as not being binding on the Prime Minister than to interpret it as having two unwritten clauses, the first to bind the Prime Minister to the dates in subsection 56.1(2) and the other to exempt the Prime Minister when a vote of non-confidence, which section 56.1 neither defines nor mentions, occurs.

[59] It is also important that "vote of non-confidence" does not have a firm definition. Hogg writes that there are several ways that a government can lose the confidence of Parliament. He writes that if the House of Commons passes a motion of "no confidence", the government will have lost the confidence of the House. He also writes that "the defeat of the government on any important vote is usually regarded as a withdrawal of confidence" (emphasis added). He also writes that a defeat of the government on a minor matter is not usually considered to be a loss of confidence, but he does not rule out that possibility (Hogg, Volume 1, at page 288). A government losing the confidence of the House of Commons is an event that does not have a strict definition and often requires the judgment of the Prime Minister. If this Court is to interpret section 56.1 in the manner the applicants suggest, this Court would have to define a "vote of non-confidence" or else leave section 56.1 ambiguous. It is the Court's conclusion that votes of non-confidence are political in nature and lack legal aspects. The determination of when a government has lost the confidence of the House should be left to the Prime Minister and not be turned into a legal issue for the courts to decide.

Issue 4: Did the Prime Minister's decision of September 7, 2008 to advise the Governor General to dissolve Parliament contravene section 3 of the *Canadian Charter of Rights and Freedoms*?

[60] The applicants submit that the Prime Minister's decision contravened the principles of electoral fairness enshrined in section 3 of the Charter. The basis of the applicants' submission is their belief that the Prime Minister's discretion creates an unfair advantage for the Prime Minister's political party. The applicants submit that their interpretation of section 56.1 eliminates that which the applicants perceive as a potential problem in the electoral system and that it was unfair for the Prime Minister not to abide by the terms of that section (applicants' memorandum of fact and law, at paragraph 52).

[61] There are several problems with the applicants' submissions. First, the applicants do not provide any legal reasons to support their submission that the election of 2008 was unfair. The Supreme Court outlined the purpose of section 3 in the case of *Figueroa v. Canada (Attorney General)*, 2003 SCC 37, [2003] 1 SCR 912. In that case, the Court held that the purpose of section 3 is to protect the "right of each citizen to play a meaningful role in the electoral process" (at paragraph 26). The Supreme Court defined a "fair election" in the case of *Harper v. Canada (Attorney General)*, 2004 SCC 33, [2004] 1 SCR 827 as the right to "meaningfully participate" in the electoral process. The Court held that participation is "meaningful" when a citizen is able to vote in an informed manner (at paragraph 71). The applicants submit that the Prime Minister's discretion "differentiates between political parties" in a way that has an adverse impact on the ability of citizens to play a "meaningful role in the electoral process" (applicants' memorandum of fact and law, at paragraph 50). The respondents reply that there is no evidence that the applicants, or the political parties whose interests they purport to defend, were disadvantaged by the dissolution of Parliament on September 7, 2008 (respondents' memorandum of fact and law, at paragraphs 72, 75 and 76).

[62] Second, a finding that the election of 2008 violated section 3 would have an enormous impact on parties outside of this application. The respondents submit that a finding that the election of 2008 violated section 3 would mean that every federal election since April 17, 1982 also violated section 3 (respondents' memorandum of fact and law, at paragraph 78). Although the applicants try to limit their argument to so-called "snap elections" (elections that are called while the Prime Minister has the confidence of the House of Commons), the Governor General has complete discretion to dissolve Parliament and the Prime Minister has complete discretion to advise the Governor General to dissolve Parliament. Therefore, all Canadian federal elections could be perceived to be "snap elections" because none of them have any legal limitation on when they are to be called.

…

VII. Court Conclusions as to the Respective Issues

…

Issue 3: Did the Prime Minister's decision of September 7, 2008 contravene section 56.1 of the *Canada Elections Act*?

[73] It is vitally important under constitutional supremacy that the separation of powers be respected. Justice McLachlin (as she then was, prior to becoming Chief Justice) writes at page 389 of *New Brunswick Broadcasting Co. v. Nova Scotia (Speaker of the House of Assembly)*, 1993 CanLII 153 (SCC), [1993] 1 SCR 319:

> Our democratic government consists of several branches: the Crown, as represented by the Governor General and the provincial counterparts of that office; the legislative body; the executive; and the courts. It is fundamental to the working of government as a whole that all these parts play their proper role. It is equally fundamental that no one of them overstep its bounds, that each show proper deference for the legitimate sphere of activity of the other. [Emphasis added.]

[74] The applicants ask this Court to interpret section 56.1 in a manner that would make political issues justiciable. If their submission that section 56.1 is intended to force the Prime Minister to only request dissolution after a vote of non-confidence is accepted, litigants could take the Prime Minister to court to determine whether or not a government had lost the confidence of the House of Commons. Similarly, a court would be able to force the Prime Minister to dissolve Parliament, effectively dictating to the Governor General to exercise his or her discretion.

[75] It is the Court's conclusion that the applicants' submissions do not demonstrate a proper understanding of the separation of powers. This Court disposes of this matter to ensure that political issues (in time and context) are not made to be legal ones. The remedy for the applicants' contention is not for the Federal Court to decide, but rather one for the count of the ballot box.

Issue 4: Did the Prime Minister's decision of September 7, 2008 to advise the Governor General to dissolve Parliament contravene section 3 of the *Canadian Charter of Rights and Freedoms*?

[76] No evidence was submitted by the applicants to the Court that the 2008 election was "unfair", as based on the factors in *Figueroa* and *Harper*, above. In the case of *Figueroa*, the Supreme Court held that section 3 gives the right to "meaningful participation" in the electoral process (at paragraph 25). Although the applicants allege surprise and disruption prior to the election, it is insufficient to ground a claim on such an issue because, as the respondents submit, there is no evidence that Democracy Watch could not perform its normal functions during the election period (applicants' memorandum of fact and law, at paragraphs 20–22; respondents' memorandum of fact and law, at paragraph 74).

...

JUDGMENT

> THIS COURT ORDERS that the application of the applicants be denied, however, without costs due to the nature of the proceeding which necessitated that the separation of powers, on the issues in question, be explained for the understanding of the public.

Democracy Watch appealed the decision, but Federal Court of Appeal agreed with Justice Shore. Writing for the court in *Conacher v Canada (Prime Minister)*, 2010 FCA 131 (CanLII), [2011] 4 FCR 22, Justice Stratas concluded:

> [4] Section 56.1 must be interpreted in light of the constitutional status and role of the Governor General. Section 56.1 does not prohibit the Governor General from dissolving Parliament and setting an election date. In fact, this discretion and power (enshrined in section 50 of the *Constitution Act, 1867* [30 & 31 Vict., c. 3 (U.K.) (as am. By *Canada Act 1982*, 1982, c. 11 (U.K.), Schedule to the *Constitution Act, 1982*, Item 1) [R.S.C., 1985, Appendix II, No. 5]]) is specifically preserved by subsection 56.1(1). The Governor General's status, role, powers, and discretions are unaffected by section 56.1.
>
> [5] Various conventions are associated with the Governor General's status, role, powers, and discretions. Some of these conventions, which are open to debate as to their scope, concern the Prime Minister's advice to the Governor General about the dissolution of Parliament and how the Governor General should respond: Peter W. Hogg, *Constitutional Law of Canada*, 5th ed., Vol. 1, loose-leaf (Toronto: Carswell, 2007), at pages 9-29 to 9-33. In our view, given the connection between the Governor General and the Prime Minister in this regard, the preservation of the Governor General's powers and discretions under subsection 56.1(1) arguably may also extend to the Prime Minister's advice-giving role. In any event, it seems to us that if Parliament meant to prevent the Prime Minister from advising the Governor General that Parliament should be dissolved and an election held, Parliament would have used explicit and specific wording to that effect in section 56.1. Parliament did not do so. In saying this, we offer no comment on whether such wording, if enacted, would be constitutional.
>
> [6] The appellants forcefully argued that this interpretation leaves section 56.1 with no meaning. We disagree. Subsection 56.1(2) is a clear expression of the will of Parliament, a will that, on the express terms of subsection 56.1(1), in no way binds the Governor General. But under our constitutional framework and as a matter of law, the Governor General may consider a wide variety of factors in deciding whether to dissolve Parliament and call an election. In this particular case, this may include any matters of constitutional law, any conventions that, in the Governor General's opinion, may bear upon or determine the matter, Parliament's will as expressed in subsection 56.1(2), advice from the Prime Minister, and any other appropriate matters.
>
> [7] If the section were interpreted in the manner suggested by the appellants, the Prime Minister would be prohibited from advising the Governor General that an election should be held because of dire need or an event of grave importance. We do not accept that section 56.1 has that result. Such a drastic result would require the clearest of statutory wording. This is a further indication that section 56.1, as drafted, does not affect the Prime Minister's ability to give advice to the Governor General.
>
> [8] The appellants urge this Court to have regard to the purpose of section 56.1, as exemplified by Parliamentary statements in Hansard. We see no need to have to resort to Parliamentary statements, as the wording of section 56.1 is clear. In any event, the Court below found the Parliamentary statements concerning the purpose of section 56.1 to be unhelpful, as there are statements that go in opposite directions. Based on our review of this material, we see no reason to disagree with and interfere with that finding of the Court below.
>
> [9] In any event, the purpose behind section 56.1 that the appellants proffer—to prohibit dissolution of Parliament and the calling of a "snap election" at times other than those set out in subsection 56.1(2)—is not reflected in the wording chosen by Parliament in section 56.1. As we have held above, the wording of section 56.1 expresses the will of Parliament but leaves the Prime Minister and the Governor General able to act in the way they did.
>
> [10] Therefore, based on our interpretation of section 56.1, the Court below was correct in declining to issue a declaration that the Prime Minister contravened section 56.1.
>
> [11] Likewise, we agree with the Court below that the Prime Minister's act in advising the Governor General did not infringe the rights of Canadian citizens to vote and to run for office under section 3 of the Charter [*Canadian Charter of Rights and Freedoms*, being Part I of the *Constitution Act, 1982*, Schedule B, *Canada Act 1982*, 1982, c. 11 (U.K.) [R.S.C., 1985, Appendix II, No. 44]]. In this regard, the appellants submitted that the Prime Minister caused the election to take place before the times set out in subsection 56.1(2) and this may have caught certain political parties unprepared. To the extent that this may have caused any infringement of section 3 of the Charter, as a matter of law it was the Governor General that called the election, not the Prime Minister. Further, on this issue, the political parties allegedly affected by this are not before this Court. We query the appellants' standing to litigate those parties' section 3 rights; those parties were well placed to bring such a claim themselves: *Canadian Council of Churches v. Canada (Minister of Employment and Immigration)*, 1992 CanLII 116 (SCC), [1992] 1 SCR 236, at pages 254–256.
>
> [12] Finally, we decline to make a declaration that there is a new constitutional convention that limits the ability of the Prime Minister to advise the Governor General in these circumstances. The Court below found as a fact that no such convention exists. That finding is amply supported by the evidentiary record in this case.
>
> [13] As a result, we will dismiss the appeal. In these unusual circumstances and given the novel issues involved, we will not order costs.

The Supreme Court of Canada denied leave to appeal (*Duff Conacher et al. v The Prime Minister of Canada et al.,* 2011 CanLII 2101 (SCC)).

Craig Forcese and Aaron Freeman argue that the exception in this legislation is broader than is "absolutely necessary" (Craig Forcese, and Aaron Freeman. The Laws of Government: The Legal Foundations of Canadian Democracy (Toronto: Irwin Law, 2011), p 97)). Do you agree? Would you agree that one solution is to amend the legislation to require a lost confidence vote?

2 The Architecture of Democracy in Canada

The principle of democracy requires an institutional architecture in order to become effective and to enable it to endure over time. A complex institutional network sustains the laws of democracy. One constitutive element is the *Canada Elections Act*, the comprehensive statute that regulates federal elections and referendums (ie, the electoral process and its actors as well as the conduct and financing of political campaigns). It also establishes Elections Canada, the national agency charged with administering the statute and associated regulations. This statute is so important that it is certainly considered to be quasi-constitutional, if not near constitutional in legal status.

Recall that the democratic principle is only implied through the Preamble in the *Constitution Act, 1867*. It was assumed that Canadian elections would follow the British first-past-the-post model. While the *Constitution Act, 1867* enabled the creation of electoral districts, and mandated that a federal election should be held every five years, it lacked any details about who should vote, how they should vote, and what the rules of voting should be.

The CEO and Elections Canada are part of what is increasingly come to be seen as the 'fourth branch' of government. Statutory delegates and administrative agencies are conventionally considered part of the executive branch. But, a select set of these bodies benefit from stricter independence and/or quasi-constitutional status and, because of this relative autonomy from the other three branches, comprise a distinct

branch. Other examples of roles or agencies include the Auditor General, the Information Commissioner, the Bank of Canada, and Statistics Canada.

2.1 Canada Elections Act

Precursors to the *Canada Elections Act* include numerous statutes at both the provincial and federal levels in the 19th century. Federally, the first elections law was the 1874 *Dominion Elections Act*. These earlier legal frameworks became the *Canada Elections Act* in 1970.

The *Canada Elections Act* forms a near complete code for the administration of federal elections. It creates and empowers Elections Canada and sets rules for voter registration, voting, counting ballots, and election advertising. It covers a host of regulated entities, notably candidates, electoral district associations, political parties, leadership contestants, and third parties (individuals and groups other than political parties and their affiliated entities such as district associations)..

2.2 Chief Electoral Officer

Elections would lack integrity if they were administered by the government directly or by political parties with a vested interest in the outcome. Canada (like most other democracies) therefore has a non-partisan, independent election commission, namely Elections Canada. The head of Elections Canada is the Chief Electoral Officer (CEO). The CEO has a special role and status: they are a legislative officer. The CEO is not under the control of the political executive and, instead, reports directly to the House of Commons. The CEO must follow the tightly prescribed rules in the *Canada Elections Act,* though they possess significant discretionary authority in interpreting the legislation and in exercising powers in exigent or emergency situations.

Note that the existence of the office of the CEO and its powers are set out in a statute, subject to amendment by a majority in Parliament. Section 13 of the *Canada Elections Act* sets out the terms of the CEO's appointment:

> **13 (1)** There shall be a Chief Electoral Officer who shall be appointed by resolution of the House of Commons to hold office during good behaviour for a term of 10 years. He or she may be removed for cause by the Governor General on address of the Senate and House of Commons.

Is this a sufficient guarantee of independence? Federal judges are also required to be independent and are appointed until the retirement age of 75, whereas the CEO serves a 10 year term. A majority of democracies now empower their election commission in the domestic Constitution, partly to make it harder for a regular political majority to undermine its non-partisanship, independence, or powers.

2.3 Electoral boundaries and Electoral Boundary Commissions

The *Constitution Act, 1867* sets the rules determining how many seats each province is entitled to in the House of Commons. The distribution of seats has been a topic of paramount political importance to the provinces since Confederation. Seats are distributed generally on the basis of population, but with guarantees of a minimum number of seats for the less populous provinces. Section 51(1) requires that the seat allocation be adjusted every 10 years following the Census, which provides up to date population numbers. No province may have fewer seats in the House than it has Senators (s. 51A). Under the constitutional amendment procedures set out in Part V of the *Constitution Act, 1982,* the unanimous consent of Parliament and the provincial legislatures is required to change the rule (s.41(b) of the *Constitution Act, 1982*).

Parliament has also used its power in s.44 of the *Constitution Act, 1982* to unilaterally amend the Constitution in relation to the House of Commons and to amend s.51(1) of the *Constitution Act, 1867* so as to further guarantee a minimum number of seats for some provinces. The 'grandfather clause' in s.51(1)1 guarantees that no province may have fewer seats than it had in the 43rd Parliament. The effect of the amendment was to ensure that Quebec did not lose a seat in the redistribution that occurred after the 2021 Census.

Once each province is assigned its number of districts, the *Electoral Boundaries Readjustment Act* mandates that an electoral boundary commission in each province be empowered to establish the boundaries of electoral districts in that province: ss. 3-12.

These commissions are non-partisan and independent of government. They must weigh various factors set out in s.15 of the *Electoral Boundaries Readjustment Act* in determining the boundaries. These factors include populations in each riding of relatively equal numbers, community of interest or identity in the riding, and ridings of manageable geographic size. Unlike in the United States, district populations are permitted to vary significantly from representation by population under the statute.

2.3.1 Reference re Prov. Electoral Boundaries (Sask.), 1991 CanLII 61 (SCC), [1991] 2 SCR 158

The *Reference re Prov. Electoral Boundaries (Sask.),* 1991 CanLII 61 (SCC), [1991] 2 SCR 158 established that electoral maps and the decisions of boundary commissions must be in accordance with the *Charter.* Section 3 requires that commissions ensure the 'effective representation' of the population as a whole and its component groups. 'Effective representation' permits deviations from one person, one vote where doing so would lead to more effective representation:

> It is my conclusion that the purpose of the right to vote enshrined in s. 3 of the *Charter* is not equality of voting power *per se*, but the right to "effective representation". Ours is a representative democracy. Each citizen is entitled to be represented in government. Representation comprehends the idea of having a voice in the deliberations of government as well as the idea of the right to bring one's grievances and concerns to the attention of one's government representative; as noted in *Dixon v. B.C. (A.G.)*, 1989 CanLII 248 (BC SC), [1989] 4 W.W.R. 393, at p. 413, elected representatives function in two roles -- legislative and what has been termed the "ombudsman role".
>
> What are the conditions of effective representation? The first is relative parity of voting power. A system which dilutes one citizen's vote unduly as compared with another citizen's vote runs the risk of providing inadequate representation to the citizen whose vote is diluted. The legislative power of the citizen whose vote is diluted will be reduced, as may be access to and assistance from his or her representative. The result will be uneven and unfair representation.
>
> But parity of voting power, though of prime importance, is not the only factor to be taken into account in ensuring effective representation. Sir John A. Macdonald in introducing the *Act to re-adjust the Representation in the House of Commons*, S.C. l872, c. 13, recognized this fundamental fact (House of Commons Debates, Vol. III, 4th Sess., p. 926 (June 1, 1872)):
>
> > ...it will be found that,... while the principle of population was considered to a very great extent, other considerations were also held to have weight; so that different interests, classes and localities should be fairly represented, that the principle of numbers should not be the only one.
>
> Notwithstanding the fact that the value of a citizen's vote should not be unduly diluted, it is a practical fact that effective representation often cannot be achieved without taking into account countervailing factors.
>
> First, absolute parity is impossible. It is impossible to draw boundary lines which guarantee exactly the same number of voters in each district. Voters die, voters move. Even with the aid of frequent censuses, voter parity is impossible.

> Secondly, such relative parity as may be possible of achievement may prove undesirable because it has the effect of detracting from the primary goal of effective representation. Factors like geography, community history, community interests and minority representation may need to be taken into account to ensure that our legislative assemblies effectively represent the diversity of our social mosaic. These are but examples of considerations which may justify departure from absolute voter parity in the pursuit of more effective representation; the list is not closed.
>
> It emerges therefore that deviations from absolute voter parity may be justified on the grounds of practical impossibility or the provision of more effective representation. Beyond this, dilution of one citizen's vote as compared with another's should not be countenanced. I adhere to the proposition asserted in *Dixon, supra*, at p. 414, that "only those deviations should be admitted which can be justified on the ground that they contribute to better government of the populace as a whole, giving due weight to regional issues within the populace and geographic factors within the territory governed."

The 'effective representation' doctrine provides much room for interpretation by boundary commissions. The *Reference* neither dictated a particular range to determine how much deviation from voter parity is consistent with effective representation nor did it provide specific guidance on how to incorporate the interests of minority communities into the boundary design process. Commissions have in their work since the *Reference* moved closer to representation by population overall, but have adopted very divergent interpretations of how to account for voter parity and minority representation. See Michael Pal, "The Fractured Right to Vote: Democracy, Discretion, and Designing Electoral Districts" 2016 CanLIIDocs 337. Some commissions seek to enhance minority representation where this is deemed appropriate while others have viewed it as beyond their mandate, despite the language in the *Reference* about the 'social mosaic.'

Are widely varying interpretations of 'effective representation' by the commissions a breach of s.3? Or is it reflective of local circumstances and flexibility in a federal system?

3 Right to Vote

The right to vote is protected by s.3 of the *Charter.* Section 3 states that "Every citizen of Canada has the right to vote in an election of members of the House of Commons or of a legislative assembly and to be qualified for membership therein."

Section 3 guarantees a right to cast a ballot in federal and provincial elections. It has been interpreted by the courts as not applying to other types of elections, including municipal and First Nations band council elections, or referendums. The courts have held that s.3 protects more than the bare right to put a piece of paper in a ballot box, as it extends to protecting broader factors that ensure a fair and equitable democratic process through the doctrines of 'meaningful participation' and 'effective representation.'

The text of s.3 assigns the right to citizens only. Permanent residents of Canada and temporary visitors of various kinds are therefore excluded from its ambit. Notably, s.3 makes no reference in its text to residency, age, or criminal convictions. The courts in the *Charter*-era have therefore had to resolve whether limits on voting by residency or criminal status/imprisonment are consistent with the *Charter.*

3.1 Who has the right to cast a ballot

On the right to cast a ballot, the two leading cases in the *Charter*-era are *Sauvé v Canada (Chief Electoral Officer),* 2002 SCC 68 (CanLII) and *Frank v. Canada (Attorney General),* 2019 SCC 1 (CanLII), [2019] 1 SCR 3. In *Sauvé v. Canada (Sauvé #2),* a majority of the Supreme Court of Canada in a 5-4 split struck down a ban on voting by incarcerated individuals who were serving 2 or more years imprisonment. It had in an earlier companion case which struck down a blanket restriction that banned all incarcerated individuals from voting, no matter the duration of their sentence (*Sauvé #1: Sauvé v Canada (Attorney General)*, 1993 CanLII 92 (SCC), [1993] 2 SCR 438).

3.1.1 *Sauvé v Canada (Chief Electoral Officer)*, 2002 SCC 68 (CanLII)

At the heart of *Sauvé #2* was whether the Court should show deference to Parliament on the inherently political matter of which citizens are permitted to cast a ballot. The majority favoured a strict approach to justification on a foundational political right.

> A. The Approach to Section 1 Justification
>
> 7 To justify the infringement of a *Charter* right, the government must show that the infringement achieves a constitutionally valid purpose or objective, and that the chosen means are reasonable and demonstrably justified: *R. v. Oakes*, 1986 CanLII 46 (SCC), [1986] 1 SCR 103. This two-part inquiry — the legitimacy of the objective and the proportionality of the means — ensures that a reviewing court examine rigorously all aspects of justification. Throughout the justification process, the government bears the burden of proving a valid objective and showing that the rights violation is warranted — that is, that it is rationally connected, causes minimal impairment, and is proportionate to the benefit achieved.
>
> 8 My colleague Justice Gonthier proposes a deferential approach to infringement and justification. He argues that there is no reason to accord special importance to the right to vote, and that we should thus defer to Parliament's choice among a range of reasonable alternatives. He further argues that in justifying limits on the right to vote under s. 1, we owe deference to Parliament because we are dealing with "philosophical, political and social considerations", because of the abstract and symbolic nature of the government's stated goals, and because the law at issue represents a step in a dialogue between Parliament and the courts.
>
> 9 I must, with respect, demur. The right to vote is fundamental to our democracy and the rule of law and cannot be lightly set aside. Limits on it require not deference, but careful examination. This is not a matter of substituting the Court's philosophical preference for that of the legislature, but of ensuring that the legislature's proffered justification is supported by logic and common sense.
>
> …
>
> 15 The *Charter* charges courts with upholding and maintaining an inclusive, participatory democratic framework within which citizens can explore and pursue different conceptions of the good. While a posture of judicial deference to legislative decisions about social policy may be appropriate in some cases, the legislation at issue does not fall into this category. To the contrary, it is precisely when legislative choices threaten to undermine the foundations of the participatory democracy guaranteed by the *Charter* that courts must be vigilant in fulfilling their constitutional duty to protect the integrity of this system.
>
> 16 Nor can I concur in the argument that the philosophically based or symbolic nature of the government's objectives in itself commands deference. To the contrary, this Court has held that broad, symbolic objectives are problematic, as I discuss below: see *U.F.C.W., Local 1518 v. KMart Canada Ltd.*, 1999 CanLII 650 (SCC), [1999] 2 SCR 1083, at para. 59, *per* Cory J.; *Thomson Newspapers Co. v. Canada (Attorney General)*, 1998 CanLII 829 (SCC), [1998] 1 SCR 877, at para. 87, *per* Bastarache J.; *RJR-MacDonald Inc. v. Canada (Attorney General)*, 1995 CanLII 64 (SCC), [1995] 3 SCR 199, at paras. 143-44, *per* McLachlin J. (as she then was). Parliament cannot use lofty objectives to shield legislation from *Charter* scrutiny. Section 1 requires valid objectives and proportionality.
>
> …

The majority made the rare finding that the pressing and substantial purposes put forward by the Crown for the limit on the s.3 right to vote of incarcerated individuals failed to meet the necessary standard under the *Oakes* test. The Crown's stated objectives for limiting the right were overly "vague and symbolic."

> 21 Section 51(*e*) denying penitentiary inmates the right to vote was not directed at a specific problem or concern. Prisoners have long voted, here and abroad, in a variety of situations without apparent adverse effects to the political process, the prison population, or society as a whole. In the absence of a specific problem, the government asserts two broad objectives as the reason for this denial of the right to vote: (1) to enhance civic responsibility and respect for the rule of law; and (2) to provide additional punishment, or "enhanc[e] the general purposes of the criminal sanction". The record leaves in doubt how much these goals actually motivated Parliament; the Parliamentary debates offer more fulmination than illumination. However, on the basis of "some glimmer of light", the trial judge at p. 878 concluded that they could be advanced as objectives of the denial. I am content to proceed on this basis.
>
> 22 This leaves the question of whether the objectives of enhancing respect for law and appropriate punishment are constitutionally valid and sufficiently significant to warrant a rights violation. Vague and symbolic objectives such as these almost guarantee a positive answer to this question. Who can argue that respect for the law is not pressing? Who can argue that proper sentences are not important? Who can argue that either of these goals, taken at face value, contradicts democratic principles? However, precisely because they leave so little room for argument, vague and symbolic objectives make the justification analysis more difficult. Their terms carry many meanings, yet tell us little about why the limitation on the right is necessary, and what it is expected to achieve in concrete terms. The broader and more abstract the objective, the more susceptible it is to different meanings in different contexts, and hence to distortion and manipulation. One articulation of the objective might inflate the importance of the objective; another might make the legislative measure appear more narrowly tailored. The Court is left to sort the matter out.
>
> 23 At the end of the day, people should not be left guessing about why their *Charter* rights have been infringed. Demonstrable justification requires that the objective clearly reveal the harm that the government hopes to remedy, and that this objective remain constant throughout the justification process. As this Court has stated, the objective "must be accurately and precisely defined so as to provide a clear framework for evaluating its importance, and to assess the precision with which the means have been crafted to fulfil that objective": *per* Cory J. in *U.F.C.W., Local 1518*, *supra*, at para. 59; see also *Thomson Newspapers*, *supra*, at para. 96; *RJR-MacDonald*, *supra*, at para. 144. A court faced with vague objectives may well conclude, as did Arbour J.A. (as she then was) in *Sauvé No. 1*, *supra*, at p. 487, that "the highly symbolic and abstract nature of th[e] objective … detracts from its importance as a justification for the violation of a constitutionally protected right". If Parliament can infringe a crucial right such as the right to vote simply by offering symbolic and abstract reasons, judicial review either becomes vacuously constrained or reduces to a contest of "our symbols are better than your symbols". Neither outcome is compatible with the vigorous justification analysis required by the *Charter*.
>
> 24 The rhetorical nature of the government objectives advanced in this case renders them suspect. The first objective, enhancing civic responsibility and respect for the law, could be asserted of virtually every criminal law and many non-criminal measures. Respect for law is undeniably important. But the simple statement of this value lacks the context necessary to assist us in determining whether the infringement at issue is demonstrably justifiable in a free and democratic society. To establish justification, one needs to know what problem the government is targeting, and why it is so pressing and important that it warrants limiting a *Charter* right. Without this, it is difficult if not impossible to weigh whether the infringement of the right is justifiable or proportionate.
>
> 25 The second objective — to impose additional punishment on people serving penitentiary sentences — is less vague than the first. Still, problems with vagueness remain. The record does not disclose precisely why Parliament felt that more punishment was required for this particular class of prisoner, or what additional objectives Parliament hoped to achieve by this punishment that were not accomplished by the sentences already imposed. This makes it difficult to assess whether the objective is important enough to justify an additional rights infringement.
>
> 26 Quite simply, the government has failed to identify particular problems that require denying the right to vote, making it hard to say that the denial is directed at a pressing and substantial purpose. Nevertheless, despite the abstract nature of the government's objectives and the rather thin basis upon which they rest, prudence suggests that we proceed to the proportionality analysis, rather than dismissing the government's objectives outright. The proportionality inquiry allows us to determine whether the government's asserted objectives are in fact capable of justifying its denial of the right to vote. At that stage, as we shall see, the difficulties inherent in the government's stated objectives become manifest.

[The dissent would instead have shown deference to Parliament given legislators' superior comparative expertise on electoral matters and the fact that competing social and political philosophies provided different answers to the question of whether it was democratic to deprive the incarcerated person of the right to cast a ballot. The dissent concluded that those persons convicted of criminal offences had violated the 'social contract' and that it was reasonable to deprive them of the right to vote on that basis.]

> 92 As emerges from the submissions before this Court, there seem generally to be two options available for dealing with the issue at hand. The first, that chosen by the Chief Justice, is to prefer an inclusive approach to democratic participation for serious criminal offenders incarcerated for two years or more. This view locates democratic participation as a central dimension of rehabilitation, insofar as the incarcerated offenders remain citizens with the fullest exercise of their democratic rights. By the same token, the unrestricted franchise enhances democratic legitimacy of government, and confirms or enhances the citizenship or standing of prisoners in society. To do otherwise, it is suggested, undermines the "dignity" or "worth" of prisoners. The alternative view, adopted by Parliament, considers that the temporary suspension of the prisoner's right to vote, in fact, enhances the general purposes of the criminal sanction, including rehabilitation. It does so by underlining the importance of civic responsibility and the rule of law. This approach sees the temporary removal of the vote as a deterrent to offending or re-offending and the return of the vote as an inducement to reject further criminal conduct. In withdrawing for a time one expression of political participation concurrently with personal freedom, the significance of both are enhanced. Rather than undermine the dignity or worth of prisoners, the removal of their vote takes seriously the notion that they are free actors and attaches consequences to actions that violate certain core values as expressed in the *Criminal Code*.
>
> 93 Both of these approaches, however, entail accepting logically prior political or social philosophies about the nature and content of the right to vote. The former approach, that accepted by the reasons of the Chief Justice, entails accepting a philosophy that preventing criminals from voting does damage to both society and the individual, and undermines prisoners' inherent worth and dignity. The latter approach also entails accepting a philosophy, that not permitting serious incarcerated criminals to vote is a social rejection of serious crime which reflects a moral line which safeguards the social contract and the rule of law and bolsters the importance of the nexus between individuals and the community. Both of these social or political philosophies, however, are aimed at the same goal: that of supporting the fundamental importance of the right to vote itself. Further, both of these social or political philosophies are supported by the practices of the various Canadian provinces, the practices of other liberal democracies, and academic writings. Finally, neither position can be proven empirically — rather, the selection of one over the other is largely a matter of philosophical preference. What is key to my approach is that the acceptance of one or the other of these

social or political philosophies dictates much of the constitutional analysis which ensues, since the reasonableness of any limitation upon the right to vote and the appropriateness of particular penal theories and their relation to the right to vote will logically be related to whether or not the justification for that limitation is based upon an "acceptable" social or political philosophy.

94 The reasons of the Chief Justice hold, at para. 18, that the challenge of the government is to present a justification that is "convincing, in the sense that it is sufficient to satisfy the reasonable person looking at all the evidence and relevant considerations, that the state is justified in infringing the right at stake to the degree it has". I agree with this test, subject only to a recognition that as the context of the case at bar involves evaluating competing social or political philosophies, the analysis runs the risk of lapsing into the realm of *ipse dixit*. In the realm of competing social or political philosophies, reasonableness is the predominant s. 1 justification consideration.

95 The reasons of the Chief Justice apply something seemingly more onerous than the "justification" standard referred to just above. She describes the right to vote as a "core democratic right" and suggests that its exemption from the s. 33 override somehow raises the bar for the government in attempting to justify its restriction (paras. 13 and 14). This altering of the justification standard is problematic in that it seems to be based upon the view that there is only one plausible social or political philosophy upon which to ground a justification for or against the limitation of the right. This approach, however, is incorrect on a basic reading of s. 1 of the *Charter*, which clearly does not constrain Parliament or authorize this Court to prioritize one reasonable social or political philosophy over reasonable others, but only empowers this Court to strike down those limitations which are not reasonable and which cannot be justified in a free and democratic society.

Sauvé #2 is a central case in the debate about dialogue theory. Christopher Manfredi argued that *Sauvé #2* represented 'The Day the Dialogue Died' (2007 CanLIIDocs 725). *Sauvé* was what dialogue theorists had called a 'second-look case.' The Court was reviewing the constitutionality of the more narrowly-tailored law that Parliament had drafted after the blanket ban on voting by all incarcerated individuals was struck down in *Sauvé #1*. For Manfredi, if the Supreme Court did not defer to Parliament on its 'second look,' then there was no true dialogue between courts and Parliament.

Chief Justice McLachlin rejected the idea of general deference on 'second-look' cases. She viewed a stringent standard of justification as necessary to protect a foundational political right:

17 Finally, the fact that the challenged denial of the right to vote followed judicial rejection of an even more comprehensive denial, does not mean that the Court should defer to Parliament as part of a "dialogue". Parliament must ensure that whatever law it passes, at whatever stage of the process, conforms to the Constitution. The healthy and important promotion of a dialogue between the legislature and the courts should not be debased to a rule of "if at first you don't succeed, try, try again".

3.1.2 *Frank v Canada (Attorney General)*, 2019 SCC 1 (CanLII), [2019] 1 SCR 3

The other leading case is *Frank v Canada (Attorney General*), 2019 SCC 1 (CanLII), [2019] 1 SCR 3*,* which challenged a residency-based restriction on voting in federal elections. Canadian citizens living abroad for 5 or more years were prohibited from voting unless they returned to Canada and re-established residence. Following closely the reasoning in *Sauvé,* a majority of the Supreme Court struck down the prohibition. The majority rejected once again the 'social contract' reasoning favoured by the dissent in *Sauvé #2,* and the need for stringent justification given the foundational importance in a democracy of the right to vote.

Per the *Frank* majority:

[25] The right of every citizen to vote lies at the heart of Canadian democracy (*Sauvé #2*, at para. 1; *Opitz*, at para. 10). In *Sauvé #2*, a seminal decision on the right to vote, this Court reviewed the nature and purpose of s. 3 at length before striking down legislation which prevented inmates serving sentences of two years or more from voting in federal elections. McLachlin C.J., writing for the majority, stressed the critical importance of a broad and purposive interpretation of the right to vote. She stated that the framers of the *Charter* had "signaled the special importance of this right not only by its broad, untrammeled language, but by exempting it from legislative override under s. 33's notwithstanding clause" (para. 11). As a result, any intrusions on this core democratic right are to be reviewed on the basis of a stringent justification standard (para. 14).

[26] The central purpose of s. 3 is to ensure the right of each citizen to participate meaningfully in the electoral process (*Figueroa v. Canada (Attorney General)*, 2003 SCC 37, [2003] 1 SCR 912, at paras. 25-26). Civic participation is fundamentally important to the health of a free and democratic society. Democracy demands that each citizen have a genuine opportunity to participate in the governance of the country through the electoral process. If this right were not protected adequately, ours would not be a true democracy (*Figueroa*, at para. 30).

[27] Therefore, a broad interpretation of s. 3 enhances the quality of our democracy and strengthens the values on which our free and democratic state is premised (*Figueroa*, at para. 27). As a corollary, an overly narrow interpretation of the right to vote would diminish the quality of democracy in our system of government. As this Court observed in *Sauvé #2*, a government that restricted the franchise to a select group would effectively weaken the legitimacy of the country's democratic system and undermine its own claim to power (para. 34).

The majority held that residency in Canada was not an unstated, internal limit on the right to vote in s. 3 and noted that residency had to be considered in light of the increasing mobility of Canadian citizens:

[31] It follows that a broad and purposive interpretation of s. 3 does not allow for residence to operate as an internal limit on the right to vote. As this Court held in *Sauvé #2*, the ambit of the s. 3 right to vote "should not be limited by countervailing collective concerns … These concerns are for the government to raise under s. 1 in justifying the limits it has imposed on the right" (para. 11). This does not of course foreclose the possibility that an infringement of the right to vote could be justified in the context of a reasonable limits analysis or that legislative restrictions on the right to vote are necessarily unconstitutional. What it does mean, however, is that limits on the right to vote must, if raised, be justified under s. 1, and not indirectly incorporated into the scope of the right itself. Accordingly, residence is not an essential requirement of the right to vote; rather, it is a countervailing consideration which must be justified by the AGC under s. 1 of the Charter.

[32] Nor, in my view, does the jurisprudence establish that residence is essential to the Charter right to vote. In no case has this Court held that residence is an essential and implicit requirement of the right to vote. On the contrary, as I mentioned above, it is clear from the jurisprudence that a broad and liberal interpretation is particularly critical in the case of the right to vote and that s. 3 must be "construed as it reads" (*Sauvé #2*, at para. 11). And although this Court described residence as a "fundamental requirement" in *Opitz*, it did so in relation to the definition of the statutory entitlement to vote set out in s. 6 of the Act, not to the scope of the right to vote under s. 3 of the *Charter* (para. 32). Moreover, the issue in *Opitz* was whether an election should be set aside because of administrative errors, not the scope of the right to vote in the context of a *Charter* challenge to electoral legislation. I therefore do not take *Opitz* to stand for the proposition that residence is an essential requirement of the right to vote under the *Charter*.

[33] In any event, the role of residence in our electoral system must be understood in its historical context. The requirement emerged at a time when citizens were generally unable to travel as easily and extensively as they do today and tended to spend their lives in one community. At that time, the right to vote was linked to the ownership of land, and only male property owners could vote. The residence requirement was designed, in part, to prevent "plural voting", that is, to prevent a person who owned property in several ridings from casting a vote in each of them (*Haig v. Canada (Chief Electoral Officer)*, 1993 CanLII 58 (SCC), [1993] 2 SCR 995, at p. 1052).

> [34] Today, in contrast, we live in a globalized society. The ability of citizens not only to move, but to remain connected and maintain communications in so doing, is unprecedented. Many Canadians live abroad, and many do so for five years or more. The application judge cited evidence showing that in 2009, approximately 2.8 million Canadians — or 8 percent of Canada's population at the time — had been living abroad for one year or more, and that there were well over one million Canadians to whom the non-residence limit in the Act applied. He also noted that the results of one research project show that non-resident Canadian citizens maintain strong connections, both family- and employment-related, to Canada, as well as a strong sense of belonging. According to Penny J., the evidence revealed that, in addition to socio-cultural connections, many non-residents maintain strong economic ties to Canada by contributing to social insurance programs, paying taxes and receiving benefits. Further, he noted that 60 percent of surveyed respondents were solely Canadian citizens and, if denied the right to vote in Canada, would be unable to vote in any other country (see application judge's reasons, at paras. 19-30).
>
> [35] In sum, the world has changed. Canadians are both able and encouraged to live abroad, but they maintain close connections with Canada in doing so. The right to vote is no longer tied to the ownership of property and bestowed only on select members of society. And citizenship, not residence, defines our political community and underpins the right to vote.

Echoing Chief Justice McLachlin's majority reasons in *Sauvé #2,* the majority in *Frank* placed great emphasis on the fact that legislation depriving non-resident citizens of the right to vote sent an impermissible message that such Canadians were less 'worthy' than their fellow citizens:

> [82] Voting is the cornerstone of our democracy. Denying citizens the right to vote not only strikes at the heart of their fundamental rights, but also comes at the expense of their dignity and their sense of self-worth (*Sauvé #2*, at para. 35). As McLachlin C.J. noted in *Sauvé #2*: "When basic political rights are denied, proof of additional harm is not required" (para. 59). In other words, denial of the fundamental right to vote, *in and of itself*, inflicts harm on affected citizens. This is particularly true where there is simply no convincing rationale to support the denial. In the absence of evidence pointing to a concrete problem, the justification boils down to an argument based on worthiness: the non-resident citizens in question are deemed to be less deserving of the right to vote than the resident majority on the basis that they have voluntarily left Canada and severed their connection to the country. However, this Court has quite properly foreclosed the use of such worthiness rationales to justify restrictions on the right to vote in past cases. Worthiness cannot be used to justify the disenfranchisement of non-resident Canadian citizens in the case at bar.

The dissent preferred the reasoning of Gonthier J. in dissent in *Sauvé #2* and transferred it from the context of incarceration to residency. Canadians living abroad for an extended period of time had exempted themselves from the full weight of Canadian law by living out of the country's jurisdiction. These citizens had therefore deliberately through their own life choices breached the 'social contract' and could be deprived of the right to cast a ballot in response. The dissent also emphasized the role that residence inevitably plays in a first past the post electoral system with geographic districts, which Canada inherited from the U.K.:

> [154] Second, preserving the relationship between electors and their communities through limits on long-term non-resident voting protects the integrity of the Canadian electoral system, which is founded on geographical representation. In this sense, it serves "the broader concept of effective representation which best serves the interests of a free and democratic society" (*Ref. re Prov. Electoral Boundaries (Sask.),* at p. 189). The *Constitution Act, 1867,* establishes Canada as a parliamentary democracy with a "Constitution similar in Principle to that of the United Kingdom" having, accordingly, an electoral system resting on geographically-defined electoral districts for the House of Commons, the Senate and the provincial legislatures (Constitution Act, 1867, preamble, ss. 21, 22, 37 to 40, 52 and 69 to 72). In Canada, as in the United Kingdom and other Westminster democracies, the origins of the voting system are rooted in "the notion of territorial representation" (V. Bogdanor, "Introduction", in V. Bogdanor and D. Butler, eds., *Democracy and Elections: Electoral Systems and Their Political Consequences* (1983), at p. 2). Before us, the appellants acknowledged that "residence was a defining feature" of Canada's democratic system (transcript, at pp. 19-20).
>
> [155] Under our Westminster parliamentary system, then, Canadian electors vote for a Member of Parliament (specifically, a member of the House of Commons), who serves as the representative of the electorate in a geographically defined community (*Haig v. Canada (Chief Electoral Officer)*, 1993 CanLII 58 (SCC), [1993] 2 SCR 995, at p. 1031). At Confederation, this regional nature of the composition of the House of Commons was constitutionally entrenched (*Constitution Act, 1867,* ss. 37 and 40). (Although s. 40 is now considered spent, Parliament continues to provide for electoral districts under the *Electoral Boundaries Readjustment Act*, R.S.C. 1985, c. E-3; see A. Dodek, *The Canadian Constitution* (2nd ed. 2016), at p. 54.) While Parliament, as the aggregate of its members, represents "all constituencies, all of the territory, all parties, all interests, all citizens, all inhabitants" (J. Ajzenstat, *The Canadian Founding: John Locke and Parliament* (2007), at p. 61), the s. 3 voting right is premised upon electors voting for a representative of their community. This regional structure must therefore inform any consideration of the electoral system, and Canadians' participation therein.
>
> [156] Indeed, the regionally based composition of the House of Commons features prominently in our jurisprudence on the redrawing of boundaries, which permits "geography, demography and communities of interest" to be considered in determining constituency boundaries, even where such considerations may result in otherwise inequitable voting power disparities (*Reference re Prov. Electoral Boundaries (Sask.)*, at p. 172; see also R. MacGregor Dawson, *The Government of Canada* (4th ed. 1963), at p. 341). Likewise, the notion of "ordinarily resident" is central to the Act, as it determines the polling division in which an elector exercises his or her right to vote (ss. 3 and 6, and *Opitz*, at para. 11). It is defined as "the place that has always been, or that has been adopted as, his or her dwelling place, and to which the person intends to return when away from it" (s. 8). Limiting long-term non-resident voting thus ensures that the electors residing in a particular constituency, who share a community of interests that is typically derived from (at least in part) geographical proximity, retain the power to decide for themselves who would best advance those shared interests on their behalf in the House of Commons. It follows that the appellants' and the majority's (at para. 69) insistence that connections *to Canada* can be maintained *via*, for example, online news websites, misses the point of the 1993 amendments: connections *to particular communities* are not so easily maintained.
>
> [157] The majority itself equivocates as to the role that residence plays, or should play, in Canada's voting rights regime. While recognizing that residence is an "important device", and that it "underpins our geographically determined, constituency-based system of electoral representation", it then minimizes residence as merely an "instrumental necessity," and not an "essential requirement" of the right to vote (paras. 28 and 31-32). With respect, the distinction between an instrumental necessity and an essential quality — a distinction that underpins the majority's entire analysis — eludes us. It also flies in the face of this Court's acknowledgement in *Opitz* that residence is a fundamental requirement of the right to vote, not simply an organizing mechanism — an observation that applies equally in the *Charter* context (para. 32). And, in any event, the majority offers no reason why residence should not be understood as an essential requirement — a judgement that is clearly at odds with that of Parliament and this Court's jurisprudence and one which finds no justification in the majority's reasons.

The dissent put emphasis on the fact that the disenfranchisement was only temporary, as citizens could return to Canada and resume voting, in response to the majority's concern that prohibiting non-resident citizens from voting communicated that they were less worthy than resident citizens:

> [168] Further, any adult Canadian citizen can still exercise the right to vote at any point, provided that he or she re-establishes residence in Canada. Thus, the restriction at issue is not a permanent denial of the right to vote. Just like the age requirement, it represents a distinction "based on the experiential situation of all citizens" in that category (*Sauvé #2*, at para. 37); it is not a distinction based on moral worth (which

> was the Court's concern in *Sauvé #2*). The deleterious effects of the limit are therefore of less significance, and are outweighed by the other salutary effects that we have discussed — namely, ensuring reciprocity between exercising the right to vote and bearing the burden of Canadian laws, and protecting the integrity of Canada's electoral system.

Justice Rowe's concurrence focused on the issue of how residency requirements operate provincially. Some provinces require that individuals be resident in the jurisdiction for a period of months prior to being eligible to cast a ballot in provincial elections. In the context of the right to vote, Justice Rowe's reasoning would carve out greater space for residency requirements to be upheld as reasonable limits on the right to vote in provincial and territorial law than under federal law, given the need to protect the autonomy of smaller jurisdictions. The concurrence raised the unresolved general point of interpretation as to whether provisions of the *Charter* must necessarily have the same meaning when applied to federal as opposed to provincial legislation:

> [91] Section 3 protects the right to vote, but it does not follow as a corollary that there is a right to vote in the constituency or province of one's choosing. The provinces and territories have each crafted residence requirements that reflect the concerns and circumstances that are particular to their jurisdiction. For example, in Nunavut, to be eligible to vote in a territorial election, a person must have been resident in that territory for "a consecutive period of at least 12 months" (*Nunavut Elections Act*, S. Nu. 2002, c. 17, s. 7(1)). The *Nunavut Elections Act* also provides that "[n]o person is to be considered resident in a home or dwelling that the person occupies seasonally for a period not exceeding a total of 180 days a year, unless at the time of an election the person has no residence in any other place" (*Nunavut Elections Act*, s. 4(12)). In Ontario, as a general rule, individuals who are absent for more than two years lose their eligibility to vote in a provincial election (*Election Act*, R.S.O. 1990, c. E.6, s. 15(1.1)). In Quebec, persons must have been "domiciled" in the province for six months to be eligible to vote in a provincial election (*Election Act*, R.S.Q., c. E-3.3, s. 1). In my view, the concession by the AGC that the impugned measures infringe s. 3 does not prejudice provincial/territorial governments in arguing that their legislation does not. Nor does it decide the constitutionality of any other federal residence requirement. In any event, different considerations will apply at the s. 1 analysis of any established (or conceded) breach of s. 3 at the provincial level. I would note that in *Reference re Yukon Election Residence Requirements* (1986), 1986 CanLII 3944 (YK CA), 1 Y.R. 23 (C.A.), in considering the constitutionality of the territory's residence requirements, the Yukon Territory Court of Appeal considered the small margin by which many constituencies in the territory are won in elections (at para. 15), and the significant transient population passing through the territory (at para. 18), which could significantly impact local interests. Yukon residence requirements were upheld as constitutional in light of these circumstances. As this Court held in *Haig*, "[t]erritorial exigencies, such as those present in the northern territories, may justify a host of rules particular to a given province, and the possibility of such divergence is woven into the very fabric of Canadian federalism itself" (*Haig v. Canada (Chief Electoral Officer)*, 1993 CanLII 58 (SCC), [1993] 2 SCR 995, at p. 1029). Evidence of the circumstances relating to the various residence requirements in each of the provinces and territories may well affect the analysis of any alleged *Charter* infringement. It seems to me that all the above residence requirements would run afoul of the *Charter* if we take the view, which I do not, that residence bears no rational connection to electoral fairness and can *never* be the basis for limiting the right to vote. While their constitutionality awaits consideration another day (should they be challenged), the approach adopted in this case will surely be relevant.

The next major dispute about the right to cast a ballot under s.3 is likely to be about the voting age, as that is the last remaining significant restriction other than citizenship. Whereas the text of s.3 limits the rights holder to citizens, it does not mention age. The *Canada Elections Act* and most provincial electoral statutes limit voting to those aged 18 and above.

Does prohibiting 14 or 16 year-olds from voting send an impermissible message that they are unworthy, similar to the residency restriction struck down in Frank? Or is it reasonable given the fact that the law generally accepts a minimum age for a host of activities, including driving, marriage, working, and so on? Many of the potential rationales for limiting voting by those under-aged - such as a lack of education, capacity, experience, contributions to society, and so on - would result in the disenfranchisement of many adults if applied to them as a requirement to vote.

The dissent in *Frank* interpreted the majority in *Sauvé #2* as supporting age-based restrictions, though took that to mean that residency-based restrictions should also be upheld:

> [144] Another voting rights restriction in the Act prevents minors from voting. Again, such a restriction is irreconcilable with an absolutist approach to s. 3's guarantee that "[e]very citizen … has the right to vote". We appreciate that this Court, in *Sauvé #2*, sought to distinguish the age restriction as "regulating a *modality* of the universal franchise" (para. 37 (emphasis added)), thereby casting it as a categorically different restriction from other limits to the s. 3 right. Parliament, we are told in *Sauvé #2*, "is making a decision based on the experiential situation of all citizens when they are young" (para. 37). But this rationale would presumably apply to support *any* line-drawing exercise. For example, on this logic, Parliament, in "making a decision based on the experiential situation of all citizens when they are young", could permissibly set the voting age at 75 without running afoul of s. 3. More to the point of this appeal, however, the distinction between a *limit* on the s. 3 right and a mere *restriction on the modality* of voting is not evident. Why is an age requirement a permissible "modality" of regulating the right to vote, but a residence requirement is not? And more particularly, if (as the appellants suggest) the distinguishing feature of the age requirement is that "it's just a timing [issue] as to when [a citizen can vote]" (transcript, at p. 21), why would that same rationale not also apply to a residence requirement, since a long-term non-resident is permitted to vote if and when they re-establish residence in Canada — a matter that is, unlike age, entirely within his or her control?
>
> [145] The only coherent account for the Act's restriction on the right to vote for Canadian citizens under the age of 18 — especially in light of the appellants' contention that the s. 3 right necessarily applies to *all* citizens — is that such a limit to the s. 3 right is justified. And as with the impugned measure here, that justification necessarily reflects a certain normative or philosophical theory — one that trades off some considerations (ensuring an informed electorate that is capable of exercising rational and independent choice) against others (extending the scope of the franchise to all citizens) in a particular manner. Properly understood, the uncontested capacity of lawmakers to prohibit minors from voting — whether cast as a limit, or as a regulation of a modality of the right to vote — supports the notion that Parliament has a critical role to play in shaping the boundaries of the s. 3 right, and that it necessarily exercises that role in pursuit of certain philosophical, moral, or otherwise normative objectives. Further, the age restriction on voting plainly belies the notion that a lack of Canadian citizenship is the *only* constitutionally permissible basis upon which Parliament may deny someone the right to vote.

3.1.3 Section 3 and Section 33

The voting rights cases have engaged with the fact that the notwithstanding clause in s.33 of the *Charter* is inapplicable to s.3. In *Sauvé #2*, Chief Justice McLachlin interpreted the inapplicability of s.33 to democratic rights as a textual indication of the importance of the right to vote in a democracy and, consequently, the need for courts to zealously guard the right against undue intrusion:

> 11 At the first stage, which involves defining the right, we must follow this Court's consistent view that rights shall be defined broadly and liberally: *Hunter v. Southam Inc.*, 1984 CanLII 33 (SCC), [1984] 2 SCR 145, at p. 156; *R. v. Big M Drug Mart Ltd.*, 1985 CanLII 69 (SCC), [1985] 1 SCR 295, at p. 344; *Eldridge v. British Columbia (Attorney General)*, 1997 CanLII 327 (SCC), [1997] 3 SCR 624, at para. 53. A broad and purposive interpretation of the right is particularly critical in the case of the right to vote. The framers of the *Charter* signaled the special importance of this right not only by its broad, untrammeled language, but by exempting it from legislative override under s. 33's

> notwithstanding clause. I conclude that s. 3 must be construed as it reads, and its ambit should not be limited by countervailing collective concerns, as the government appears to argue. These concerns are for the government to raise under s. 1 in justifying the limits it has imposed on the right.
>
> …
>
> 13 The core democratic rights of Canadians do not fall within a "range of acceptable alternatives" among which Parliament may pick and choose at its discretion. Deference may be appropriate on a decision involving competing social and political policies. It is not appropriate, however, on a decision to limit fundamental rights. This case is not merely a competition between competing social philosophies. It represents a conflict between the right of citizens to vote — one of the most fundamental rights guaranteed by the *Charter* — and Parliament's denial of that right. Public debate on an issue does not transform it into a matter of "social philosophy", shielding it from full judicial scrutiny. It is for the courts, unaffected by the shifting winds of public opinion and electoral interests, to safeguard the right to vote guaranteed by s. 3 of the *Charter*.
>
> 14 *Charter* rights are not a matter of privilege or merit, but a function of membership in the Canadian polity that cannot lightly be cast aside. This is manifestly true of the right to vote, the cornerstone of democracy, exempt from the incursion permitted on other rights through s. 33 override. Thus, courts considering denials of voting rights have applied a stringent justification standard: *Sauvé v. Canada (Attorney General)* (1992), 1992 CanLII 2786 (ON CA), 7 O.R. (3d) 481 (C.A.) ("*Sauvé No. 1*"), and *Belczowski v. Canada*, 1992 CanLII 8580 (FCA), [1992] 2 F.C. 440 (C.A.).

A majority of the Supreme Court in *Frank* took the same view*:*

> [25] The right of every citizen to vote lies at the heart of Canadian democracy (*Sauvé #2*, at para. 1; *Opitz*, at para. 10). In *Sauvé #2*, a seminal decision on the right to vote, this Court reviewed the nature and purpose of s. 3 at length before striking down legislation which prevented inmates serving sentences of two years or more from voting in federal elections. McLachlin C.J., writing for the majority, stressed the critical importance of a broad and purposive interpretation of the right to vote. She stated that the framers of the *Charter* had "signaled the special importance of this right not only by its broad, untrammeled language, but by exempting it from legislative override under s. 33's notwithstanding clause" (para. 11). As a result, any intrusions on this core democratic right are to be reviewed on the basis of a stringent justification standard (para. 14)

The dissent in *Sauvé #2* opined that there was little historical evidence to support the majority's view on how to interpret the fact that s.3 is exempt from s.33:

> 96 The analysis cannot be skirted by qualifying the right to vote as a core democratic right. It does not follow from the fact that Parliament is denied the authority to remove or qualify the right to vote in its sole discretion under s. 33 that limitations on that right may not be justified under s. 1, or that a more onerous s. 1 analysis must necessarily apply. Constitutional writers and commentators point out that s. 33 was a political compromise, meant to bring together provinces opposed to the entrenchment of constitutional rights, with those in favour: P. Macklem et al., *Canadian Constitutional Law* (2nd ed. 1997), at pp. 597 and 646. Indeed Macklem et al. write at p. 597: "Added to the Charter at the last moment, this controversial provision captured the final political compromise among the provinces and federal government that facilitated the adoption of the Charter". There is little evidence of the intention behind excluding democratic rights (along with mobility rights, language rights, and enforcement provisions) from the ambit of s. 33, nor has this Court ever seriously considered the significance of such exclusion. The Chief Justice's conclusion at para. 11 that "[t]he framers of the *Charter* signaled the special importance of this right … by exempting it from legislative override …" requires examination before it can be used as support for nearly insulating the right to vote from s. 1 limitations. In fact, s. 33 and s. 1 are clearly different in their purpose, and the *Charter* clearly distinguishes their application to the right to vote. It does not behoove the Court to read s. 33 into s. 3 by finding in s. 3, when divorced from s. 1, the statement of a political philosophy which preempts another political philosophy which is reasonable and justified under the latter section. The *Charter* was not intended to monopolize the ideological space.

The dissenting opinion in *Frank* interprets the fact that s.3 is exempt from s.33 as compelling not robust judicial scrutiny of limits on the right to vote but, instead, judicial restraint and deference:

> [141] The majority's approach leaves no room for a meaningful limitations analysis by reasoning that "the *Charter* tethers voting rights to citizenship, and citizenship alone" (para. 29). This Court did not go so far in *Sauvé #2* as to state the s. 3 right in such absolutist terms; indeed, the very indication that the s. 3 right to vote "cannot lightly be cast aside" and is subject to a "stringent justification standard" confirms that this right can be justifiably limited (*Sauvé #2*, at para. 14). Further, the majority's point that s. 3 cannot be overridden by s. 33's notwithstanding clause should not, in our respectful view, be taken as conferring judicial license to strike down legislation on the basis of disagreement with Parliament's policy objectives in legislating on the exercise of the right to vote. Rather, it should encourage judicial restraint in considering those objectives, knowing that a finding of constitutional invalidity would absolutely foreclose Parliament from pursuing them. Three considerations support the view that Parliament is permitted, within limits, to shape the scope of voting rights under s. 1.

Who do you think has the better argument about the relationship between s.3 and s.33?

The fact that s.3 is exempt from the notwithstanding clause is proving to be consequential, since provincial governments have shown a new willingness to invoke s.33, including in relation to democratic rights. Section 33 does not apply to either s.3 (the right to vote), s.4(duration of a legislature), and s.5 (legislatures must meet at least once a year) of the *Charter*. Yet it still applies to other rights and freedoms necessary for democracy to function, including notably freedom of political expression in s.2(b). For further discussion, see Dwight Newman, "Key Foundations for the Notwithstanding Clause in Institutional Capacities, Democratic Participatory Values, and Dimensions of Canadian Identities" in Peter L. Biro, ed, *The Notwithstanding Clause and the Canadian Charter: Rights, Reforms, and Controversies* (McGill-Queen's University Press, 2024) 69; Michael Pal, "Democracy and the Notwithstanding Clause" 2024 CanLIIDocs 3217; and, Marion Sandilands and Danielle Bennett, "The Charter's Federal Spine: Why Are Certain Charter Rights Immune From the Notwithstanding Clause?" (2022) 43:2 NJCL 169.

Claimants in cases involving rights – such as expression, association, and equality – in the context of elections are now likely to frame their claims as being s.3 violations tied to the expressive, associational, or equality dimensions of 'meaningful participation' or 'effective representation.' Doing so allows them to avoid the prospect that they might win in court, thereby invaliding a law for breaching s.2 or s.15, only to have the law re-passed in identical form under s.33's ambit.

3.2 Challenges to the electoral system

There have been a number of challenges to the constitutionality of the electoral system itself under s.3. Like the United Kingdom , Canada has the first-past-the-post system where the winner of each riding is the individual who receives the largest number of votes. Most other democracies use some form of proportional representation, where there is a closer relationship between total votes cast and the seats in Parliament for each party than under first-past-the-post. A claim that first-past-the-post harms small parties and their supporters and therefore violates s.3 of the *Charter* was rejected by the Quebec Court of Appeal in *Daoust c Québec (Directeur general des élections),* 2011 QCCA 1634 (CanLII). The QCCA found that s.3 does not require proportional representation:

> [56] Once there is effective representation of citizens, which implies the possibility that each elector can exercise his right to vote periodically, freely, and secretly, be a candidate for office, vote for the party of his choice, and express himself in public, the right to vote enshrined in s. 3 of the *Canadian Charter* and s. 22 of the *Quebec Charter* is respected. [Footnote omitted.]

In *Fair Voting BC v Canada (Attorney General)*, 2024 ONCA 619 (CanLII), an Ontario court rejected the claim that first-past-the-post violated s.3 for disproportionately harming racial minorities and women, an argument which was not directly addressed in *Daoust*. In doing so, they also rejected the underlying claim of electoral reformers that first-past-the-post results in 'wasted votes' by those who vote for a losing candidate in a riding:

> [60] Having said that, the Supreme Court of Canada has indicated on several occasions that elected representatives are responsible to their electoral constituency as a whole, who have a right to meaningful participation in the electoral process but not to fashioning the post-election composition of Parliament in their own image: *Figueroa*, at para. 26. Thus, MPs are responsible to their entire constituency, which includes those who did not vote for them or their party as well as those who did: *Haig*, at 1031.
>
> [61] This understanding of the right of each citizen to play a meaningful role in the electoral process has been described as a "complete statement of the purpose of s. 3 of the *Charter*": *Figueroa*, at para. 25. Accordingly, the Supreme Court has been willing to state emphatically that no votes, including those cast for an unsuccessful party or candidate, are "wasted votes". The Court has instead viewed the views of voters supporting candidates who do not end up in Parliament in a positive light: "As a public expression of individual support for certain perspectives and opinions, such votes are an integral component of a vital and dynamic democracy": *Ibid*,, at para. 45.

3.3 Political parties and the *Charter*

The Supreme Court has interpreted s.3 as not just guaranteeing the right to cast a ballot, but also protecting the background factors that ensure fair political competition. This approach has been most evident in relation to political parties, which are essential features of contemporary democracy but not mentioned in the Constitution.

In *Figueroa v Canada (Attorney General)*, 2003 SCC 37 (CanLII), [2003] 1 SCR 912 (*Figueroa*), the head of the Communist Party of Canada argued that various provisions of the *Canada Elections Act* unduly harmed small political parties and, as a result, favoured large political parties. The Supreme Court agreed on the reasoning that while parties are not rights holders under s.3 (which says that 'Every citizen' has the right), individuals channel their participation through parties and that activity attracts s.3 protection. Legislation which limits 'meaningful participation' breaches s.3, according to the Court. While only large parties have a realistic shot of forming government, participation through small parties is equally protected by the *Charter*.

3.3.1 *Figueroa v Canada (Attorney General)*, 2003 SCC 37 (CanLII), [2003] 1 SCR 912

> 26 Support for the proposition that s. 3 should be understood with reference to the right of each citizen to play a meaningful role in the electoral process, rather than the election of a particular form of government, is found in the fact that the rights of s. 3 are participatory in nature. Section 3 does not advert to the composition of Parliament subsequent to an election, but only to the right of each citizen to a certain level of participation in the electoral process. On its very face, then, the central focus of s. 3 is the right of each citizen to participate in the electoral process. This signifies that the right of each citizen to participate in the political life of the country is one that is of fundamental importance in a free and democratic society and suggests that s. 3 should be interpreted in a manner that ensures that this right of participation embraces a content commensurate with the importance of individual participation in the selection of elected representatives in a free and democratic state. Defining the purpose of s. 3 with reference to the right of each citizen to play a meaningful role in the electoral process, rather than the composition of Parliament subsequent to an election, better ensures that the right of participation that s. 3 explicitly protects is not construed too narrowly.
>
> 27 An understanding of s. 3 that emphasizes the right of each citizen to play a meaningful role in the electoral process also is sensitive to the full range of reasons that individual participation in the electoral process is of such importance in a free and democratic society. As Dickson C.J. wrote in *R. v. Oakes*, 1986 CanLII 46 (SCC), [1986] 1 SCR 103, at p. 136:
>
> > The Court must be guided by the values and principles essential to a free and democratic society which I believe embody, to name but a few, respect for the inherent dignity of the human person, commitment to social justice and equality, accommodation of a wide variety of beliefs, respect for cultural and group identity, and faith in social and political institutions which enhance the participation of individuals and groups in society.
>
> In this passage, Dickson C.J. was addressing s. 1. Yet since reference to "a free and democratic society" is essential to an enriched understanding of s. 3, this passage indicates that the best interpretation of s. 3 is one that advances the values and principles that embody a free and democratic state, including respect for a diversity of beliefs and opinions. Defining the purpose of s. 3 with reference to the right of each citizen to meaningful participation in the electoral process, best reflects the capacity of individual participation in the electoral process to enhance the quality of democracy in this country.
>
> 28 As this Court frequently has acknowledged, the free flow of diverse opinions and ideas is of fundamental importance in a free and democratic society. In *R. v. Keegstra*, 1990 CanLII 24 (SCC), [1990] 3 SCR 697, at pp. 763-64, Dickson C.J. described the connection between the free flow of diverse opinions and ideas and the values essential to a free and democratic society in the following terms:
>
> > The connection between freedom of expression and the political process is perhaps the linchpin of the s. 2(b) guarantee, and the nature of this connection is largely derived from the Canadian commitment to democracy. Freedom of expression is a crucial aspect of the democratic commitment, not merely because it permits the best policies to be chosen from among a wide array of proffered options, but additionally because it helps to ensure that participation in the political process is open to all persons. Such open participation must involve to a substantial degree the notion that all persons are equally deserving of respect and dignity. The state therefore cannot act to hinder or condemn a political view without to some extent harming the openness of Canadian democracy and its associated tenet of equality for all.
>
> Put simply, full political debate ensures that ours is an open society with the benefit of a broad range of ideas and opinions: see *Switzman v. Elbling*, 1957 CanLII 2 (SCC), [1957] SCR 285, at p. 326; *RWDSU v. Dolphin Delivery Ltd.*, 1986 CanLII 5 (SCC), [1986] 2 SCR 573, at p. 583; *Edmonton Journal v. Alberta (Attorney General)*, 1989 CanLII 20 (SCC), [1989] 2 SCR 1326, at p. 1336; and *R. v. Sharpe*, [2001] 1 SCR 45, 2001 SCC 2, at para. 23. This, in turn, ensures not only that policy makers are aware of a broad range of options, but also that the determination of social policy is sensitive to the needs and interests of a broad range of citizens.
>
> 29 It thus follows that participation in the electoral process has an intrinsic value independent of its impact upon the actual outcome of elections. To be certain, the electoral process is the means by which elected representatives are selected and governments formed, but it is also the primary means by which the average citizen participates in the open debate that animates the determination of social policy. The right to run for office provides each citizen with the opportunity to present certain ideas and opinions to the electorate as a viable policy option; the right to vote provides each citizen with the opportunity to express support for the ideas and opinions that a particular candidate endorses. In each instance, the democratic rights entrenched in s. 3 ensure that each citizen has an opportunity to express an opinion about the formation of social policy and the functioning of public institutions through participation in the electoral process.

> 30 In the final analysis, I believe that the Court was correct in *Haig, supra*, to define s. 3 with reference to the right of each citizen to play a meaningful role in the electoral process. Democracy, of course, is a form of government in which sovereign power resides in the people as a whole. In our system of democracy, this means that each citizen must have a genuine opportunity to take part in the governance of the country through participation in the selection of elected representatives. The fundamental purpose of s. 3, in my view, is to promote and protect the right of each citizen to play a meaningful role in the political life of the country. Absent such a right, ours would not be a true democracy.

3.4 Right to stand as a candidate

A lesser-explored aspect of s.3 is its protection of the right to stand as a candidate: 'Every citizen has…the right to be qualified for membership therein [meaning election to the House and provincial legislatures].' The right serves to protect individuals who wish to run for office, but also acts as an indirect guarantee that voters will be able to select a representative of their choice.

Limits excluding groups of citizens from standing as a candidate should generally be assumed to breach s.3 and require justification under s.1 of the *Charter.* Individuals are barred from running as a candidate in federal and provincial electoral statutes if they have engaged in criminal activity of various kinds, particularly if the conviction is for offences related to the electoral process. In *Harvey v New Brunswick (Attorney General)*, 1996 CanLII 163 (SCC), [1996] 2 SCR 876 (*Harvey*)*,* the Supreme Court upheld a five-year ban on Mr. Harvey running for office after he had been convicted of electoral offences. The majority read the language in s.3 as providing an untrammeled right to stand as a candidate, so that any limit on that right had to be justified under s.1:

3.4.1 *Harvey v New Brunswick (Attorney General)*, 1996 CanLII 163 (SCC), [1996] 2 SCR 876

> 28 …I agree with the appellant that the provisions of s. 119(c) are *prima facie* unconstitutional as violating his rights under s. 3 of the Charter. My reasons are twofold. First, there is the language of s. 3. Admittedly in the English version the words "right to be qualified" are somewhat ambiguous. The use of the word "qualified" suggests that certain criteria must be met before a citizen can run for office. However, since there exists a right to be qualified, it would appear that qualification is automatic regardless of any criteria set out by statute. If it was Parliament's intent to confer on every citizen the right to be a candidate, clearer language should have been used. But we are not left in doubt. A more precise statement of the right appears in the equally authoritative French text, which uses the phrase "*Tout citoyen canadien ... est éligible aux élections* …". The word "*éligible*" translates as "eligible" in English and is defined in *Le Nouveau Petit Robert* (1994), at p. 733, as one who has met the relevant conditions so that they can be chosen. This suggests that the English version of s. 3 should be read as "[e]very citizen … is qualified for membership therein". In short, while the English version is somewhat lacking in clarity, the French version is straightforward and indicates that the right to be a candidate and to sit as a member of Parliament or a legislative assembly should be read in a broad manner.

The majority in *Harvey* viewed disqualification from running for office for electoral offences as justified for protecting electoral integrity:

> 41 I am also of the view that the five-year disqualification is rationally connected to the objective. A mandatory disqualification acts as a strong deterrent and helps to promote confidence in the electoral system. Again, the appellant's contention that the disqualification displays paternalism on the part of the legislature misses the point. The provision is meant to protect the public not only from a particular offender, but from offenders in general. In other words the legislature is aiming at both general and specific deterrence.
>
> 42 I would also reject the appellant's contention that the operation of s. 119(c) is arbitrary because it is mandatory in nature and applies to everyone convicted of a corrupt or illegal practice. While the section is mandatory, it only comes into play when an individual has been convicted of one of a number of prescribed offences each of which involves an attack on the integrity of the democratic process, albeit some may be more serious than others. If a Member of the Legislative Assembly is convicted of any of these offences the whole of the electoral process may be brought into disrepute. The argument that the penalty is arbitrary is also weakened by the fact that it is only imposed after a conviction in a court of law. Finally, the fact that the trial judge has no discretion with respect to this part of the penalty is no more arbitrary than any minimum sentence found in the *Criminal Code* or any other penal statute.

The *Harvey* majority accepted that a five-year disqualification was a significant penalty. An elected representative would have to vacate their seat if convicted of one of the electoral offences and would be ineligible to run in the by-election or the subsequent general election, as five years is the maximum constitutionally permitted duration between elections. The Court upheld the five year disqualification as not more than minimally impairing of the right to stand as a candidate:

> 46 The imposition of a five-year disqualification raises a more difficult issue. Accepting, as I do, that there is a rational connection between some term of disqualification and the desired objective, the question is reduced to what period of disqualification represents a minimal impairment of the appellant's s. 3 *Charter* rights. It clearly makes sense that the appellant should not be allowed to run in the by-election that arises from him vacating his seat, but how much further should it go? In settling on a five-year disqualification the legislature has ensured that the appellant is ineligible to run in the next general election. While it is true that there could be several elections within that time, the legislature has chosen a fixed term, presumably because of its added certainty. In addition, a five-year disqualification provides for a time of cleansing, allowing the integrity of the electoral process to be renewed both in real terms and in the mind of the electorate.

Existing restrictions in electoral statutes on standing as a candidate include administrative requirements of various kinds to ensure the integrity of the process. The courts have struck down limits on candidacy where they appear to have a disproportionate impact on a particular group of citizens. The requirement to pay a deposit in order to stand as a candidate, for example, was struck down for disadvantaging individuals who could not meet the financial requirement (*De Jong v Ontario (Attorney General)*, (2007) CanLII 44348 (ON SC)).

3.5 Campaign finance law

Campaign finance law has been a perpetual matter of controversy in Canada, because it brings together competing constitutional values. Freedom of political expression implies that political speech, and by necessity spending on election advertising and on contributions to political entities, should be as untrammelled as possible (See Richard Moon, *The Life and Death of Freedom of Expression* (University of Toronto Press, 2024) 93-121). Yet unlimited spending in an unequal society means that those with access to resources may dominate electoral discourse through advertising or have undue influence in the form of large contributions to parties and candidates. Such a dynamic can reasonably be seen as likely to lead to public policy that favours the wealthy and the well-organized.

In response to concerns about inegalitarian politics because of disparities in wealth leading to disparities in access and influence, federal election law restricts contributions to political parties, candidates, leadership contestants, and electoral district associations. Election law imposes spending limits on political parties, candidates, third parties, and electoral district associations. Many provinces have similar legislation, though there are outliers. These laws limit freedom of political expression in order to facilitate democratic equality.

The Supreme Court has upheld electoral laws limiting political spending on the theory that they reflect a valid 'egalitarian model' of elections even where there are limits on freedom of expression: Colin Feasby, '*Libman v. Quebec (A.G.)* and the Administration of the Process of Democracy Under the Charter: The Emerging Egalitarian Model, 1999 CanLIIDocs 57.

The Supreme Court of Canada in *Libman v Quebec (Attorney General)*, 1997 CanLII 326 (SCC), [1997] 3 SCR 569 (*Libman*), in the context of a referendum, struck down strict rules on spending by organized 'yes' and 'no' campaigns, because for some expressers they amounted to a 'total ban' on spending:

3.5.1 *Libman v Quebec (Attorney General)*, 1997 CanLII 326 (SCC), [1997] 3 SCR 569

> 75 While it is true that the impugned provisions do not totally prohibit the freedom of expression of these individuals and groups, which should normally make the infringement easier to justify (see: *Ramsden v. Peterborough (City)*, 1993 CanLII 60 (SCC), [1993] 2 SCR 1084, at pp. 1105-6; *RJR-MacDonald*, at pp. 343-44 and 353), the forms of expression provided for in s. 404 *Special Version* are so restrictive that they come close to being a total ban. While ss. 404(1) and (3) authorize expression by means of the print, radio or television media, they require that the opinion be circulated or broadcast "without payment, reward or promise of payment or reward". The ability to express a point of view through these media thus depends on a third party, which limits the effectiveness of this exception to regulated expenses considerably. Since not the slightest amount may be spent, it will ultimately be the radio or television broadcaster or the print publisher who will decide whether the opinion will be disseminated. Section 404(2) provides for the possibility of publishing a book during the referendum campaign provided that the publication was planned before the campaign began. This exception is also very limited, since in most cases it will be much more appropriate to write a book during the referendum campaign, and after having read the referendum question, than before. Furthermore, writing a book requires substantial resources that are not available to all those who would like to present their points of view in the referendum debate. Sections 404(4) and (5) provide that a person may pay, out of his or her own money, any expenses he or she incurs for transportation, meals and lodging while travelling "for referendum purposes", if these expenses are not reimbursed. However, it is not sufficient to permit people to pay their travelling expenses, as they still have to be able to pay to have their point of view heard once they reach their destination. The final relevant exception is found in s. 404(9), which authorizes incurring up to $600 in costs to hold a meeting, including the cost of renting a hall and convening the participants. Without ruling on the reasonableness of the amount in question, it must be recognized that this exception, like the others, is very restrictive, as it is limited to the organization of a meeting.

They noted, however, that spending limits with a different design would be constitutional on an egalitarian rationale. In doing so, they were agreeing with the influential recommendations of the Royal Commission on Electoral Reform and Party Financing (1991), also known as the Lortie Commission. The Lortie Commission remains the most comprehensive study of the various dimensions of election law reform in Canada:

> 52 Limits on independent spending are essential to maintain an equilibrium in the financial resources available to candidates and political parties and thus ensure the fairness of elections (Lortie Commission, *supra*, at p. 327). Furthermore, according to another survey conducted in 1991, 75 percent of Canadians supported limits on spending by interest groups (Lortie Commission, supra, at p. 337). These statistics also show the importance of controlling spending in order to maintain public confidence in the electoral system.
>
> 53 In our view, the Lortie Commission's comments on the importance of limits on independent spending for preserving the fairness of the Canadian electoral system should apply, *mutatis mutandis*, to the Quebec referendum system. In a referendum, "options" are submitted to voters rather than candidates or political parties. The national committees are the principal structure set up by the Quebec legislature to promote each of these options. Spending by the national committees is subject to limits to ensure that equivalent financial resources are available to the proponents of each option for addressing the public. Referendum period spending limits are essential to guarantee the fairness of the referendum. The appellant does not contest this limit on the national committees.
>
> 54 However, the spending limit system would lose all its effectiveness if independent spending were not also limited. Spending by individuals or groups who do not wish to or cannot join or affiliate themselves with one of the national committees must be limited for the same reasons as underlie the limits on independent spending during an election campaign. Independent spending during a referendum campaign directly or indirectly favours one of the options over the others. Even independent individuals and groups advocating abstention indirectly favour one of the options over the others (testimony of Professor Aucoin, Case on Appeal, at p. 155). Independent spending must therefore be controlled to ensure that the promotion of one of the options does not benefit from far greater financial resources. The limit on independent spending must also be stricter than that granted to the national committees. Since it cannot be assumed that each option will benefit from the same amount of independent spending in its favour, such spending must be restricted to preserve a balance in the promotion of the options and favour an informed and truly free exercise of the right to vote. In this light, the regulation of referendum spending pursues one of the objectives underlying freedom of expression, namely the ability to make informed choices (*Ford v. Quebec (Attorney General), supra*, at p. 767).
>
> 55 The appellant relied on *Somerville v. Canada (Attorney General)* (1996), 1996 ABCA 217 (CanLII), 136 D.L.R. (4th) 205, in support of his submissions concerning the unfairness of the limits on independent spending in the *Referendum Act*. In that case, the Alberta Court of Appeal declared certain provisions of *the Canada Elections Act*, R.S.C., 1985, c. E-2, relating to limits on independent spending similar to the ones at issue here to be unconstitutional. Among other things, these provisions allowed third parties to incur "advertising expenses" provided that they did not exceed $1000 and were not pooled. These advertising expenses included all expenses incurred "for the production, publication, broadcast and distribution of any advertising for the purpose of [directly] promoting or opposing" a party or candidate during an election (s. 259). In the view of the Alberta Court of Appeal, the impugned legislation violated the freedoms of expression and association guaranteed by the Canadian Charter . It stressed that the objective of limiting third party spending was itself inconsistent with the Canadian *Charter* because it gave preferential treatment to the expression of candidates and political parties, to the detriment of third parties.
>
> 56 However, it is our view that the objective of Quebec's referendum legislation is highly laudable, as is that of the *Canada Elections Act*. We agree in this respect with the analysis of the Lortie Commission and of the expert witness P. Aucoin regarding the need to limit spending both by the principal parties (the national committees in the case of a referendum) and by independent individuals and groups in order to preserve the fairness of elections and, in the present case, referendums. The system set up by the legislature to ensure a certain equality of resources between the options submitted to a referendum and thereby enhance democratic expression would become ineffective if independent individuals and groups were allowed unlimited spending or spending with a ceiling similar to that of the national committees. As we pointed out earlier, it cannot be presumed that the same financial resources will be available to the different independent individuals or groups or that those resources will be divided equally to support the various options. The legislature's objective can only be achieved through stricter limits on independent spending, which are supported by a large majority of Canadians.
>
> 57 The evidence adduced by the Attorney General of Quebec demonstrates the need to prevent an unequal distribution of financial resources among the options that would undermine the fairness of the referendum process. The evidence also shows that unless independent spending is controlled, any system for limiting the spending of the national committees would become futile. In our view, there is clearly a rational connection between limits on independent spending and the legislature's objective.

In *Harper v Canada (Attorney General)*, 2004 SCC 33 (CanLII), [2004] 1 SCR 827 (*Harper*), the Supreme Court was faced with a s.2(b) *Charter* challenge to federal rules applicable to third parties (interest groups and individuals other than political parties and candidates). The legislation applied registration and reporting requirements, anti-collusion provisions to prevent third parties from evading spending limits by collaborating with each other or with political parties, and, most importantly, a spending limit that applied during the official election campaign period.

The majority of the Supreme Court reiterated the doctrine from *Libman* that limits on spending by interest groups could be constitutional if they permitted some meaningful amount of spending. It also further developed the egalitarian model in its reasoning upholding the challenged portions of the *Canada Elections Act:*

3.5.2 *Harper v Canada (Attorney General)*, 2004 SCC 33 (CanLII), [2004] 1 SCR 827

> 72 The question, then, is what promotes an informed voter? For voters to be able to hear all points of view, the information disseminated by third parties, candidates and political parties cannot be unlimited. In the absence of spending limits, it is possible for the affluent or a number of persons or groups pooling their resources and acting in concert to dominate the political discourse. The respondent's factum illustrates that political advertising is a costly endeavour. If a few groups are able to flood the electoral discourse with their message, it is possible, indeed likely, that the voices of some will be drowned out; see *Libman, supra; Figueroa, supra*, at para. 49. Where those having access to the most resources monopolize the election discourse, their opponents will be deprived of a reasonable opportunity to speak and be heard. This unequal dissemination of points of view undermines the voter's ability to be adequately informed of all views. In this way, equality in the political discourse is necessary for meaningful participation in the electoral process and ultimately enhances the right to vote. Therefore, contrary to the respondent's submission, s. 3 does not guarantee a right to unlimited information or to unlimited participation.
>
> 73 Spending limits, however, must be carefully tailored to ensure that candidates, political parties and third parties are able to convey their information to voters. Spending limits which are overly restrictive may undermine the informational component of the right to vote. To constitute an infringement of the right to vote, these spending limits would have to restrict information in such a way as to undermine the right of citizens to meaningfully participate in the political process and to be effectively represented.
>
> 74 The question, then, is whether the spending limits set out in s. 350 interfere with the right of each citizen to play a meaningful role in the electoral process. In my view, they do not. The trial judge found that the advertising expense limits allow third parties to engage in "modest, national, informational campaigns" as well as "reasonable electoral district informational campaigns" but would prevent third parties from engaging in an "effective persuasive campaign" (para. 78). He did not give sufficient attention to the potential number of third parties or their ability to act in concert. Meaningful participation in elections is not synonymous with the ability to mount a media campaign capable of determining the outcome. In fact, such an understanding of "meaningful participation" would leave little room in the political discourse for the individual citizen and would be inimical to the right to vote. Accordingly, there is no infringement of s. 3 in this case and no conflict between the right to vote and freedom of expression.

One of the features of the legislation was that third parties faced much lower spending limits than political parties. Political parties could therefore spend much more during the campaign than third parties. The logic behind this policy was that there was a small number of political parties but an infinite number of potential third parties, so the differential limit was required to ensure that political parties could get their message out, given the fact that only political parties and candidates, not third parties, compete for elected office.

The dissent in *Harper* accepted egalitarian goals broadly, but would have struck down the law as imposing too onerous a set of restrictions, thereby chilling speech and, because of the lower spending limit for third parties, providing a near monopoly on debate to political parties:

> 19 The Canada Elections Act undercuts the right to listen by withholding from voters an ingredient that is critical to their individual and collective deliberation: substantive analysis and commentary on political issues of the day. The spending limits impede the ability of citizens to communicate with one another through public fora and media during elections and curtail the diversity of perspectives heard and assessed by the electorate. Because citizens cannot mount effective national television, radio and print campaigns, the only sustained messages voters see and hear during the course of an election campaign are from political parties.
>
> 20 It is clear that the right here at issue is of vital importance to Canadian democracy. In the democracy of ancient Athens, all citizens were able to meet and discuss the issues of the day in person. In our modern democracy, we cannot speak personally with each of our fellow citizens. We can convey our message only through methods of mass communication. Advertising through mail-outs and the media is one of the most effective means of communication on a large scale. We need only look at the reliance of political parties on advertising to realize how important it is to actually reaching citizens — in a word, to effective participation. The ability to speak in one's own home or on a remote street corner does not fulfill the objective of the guarantee of freedom of expression, which is that each citizen be afforded the opportunity to present her views for public consumption and attempt to persuade her fellow citizens. Pell J.'s observation could not be more apt: "[s]peech without effective communication is not speech but an idle monologue in the wilderness"; see *United States v. Dellinger*, 472 F.2d 340 (7th Cir. 1972), at p. 415.
>
> 21 This is the perspective from which we must approach the question whether the limitation on citizen spending is justified. It is no answer to say that the citizen can speak through a registered political party. The citizen may hold views not espoused by a registered party. The citizen has a right to communicate those views. The right to do so is essential to the effective debate upon which our democracy rests, and lies at the core of the free expression guarantee. That does not mean that the right cannot be limited. But it does mean that limits on it must be supported by a clear and convincing demonstration that they are necessary, do not go too far, and enhance more than harm the democratic process.

Note that in *Harper* the spending limits at issue only applied *during the official election campaign period.* The spending limits on third parties and political parties were therefore only applicable for a month to a month and a half during the usual four year period between elections, though at the most consequential moment for voter choice. Third parties and political parties became more sophisticated in their communications strategy and the media environment changed after *Harper.* Politics has become a 'permanent campaign' operating online and off-line 24/7/365. As the spending limit only applied during the campaign in most jurisdictions in Canada, unlimited spending was possible in the pre-campaign or 'pre-writ' period.

Some jurisdictions implemented pre-writ spending limits in response to increased spending prior to the permanent campaign. For example, federal legislation was amended to imposed a three month pre-writ period in the lead up to a fixed election date. Ontario initially implemented legislation imposing a 6 month pre-writ regulated period with a spending limit on third parties and political parties. The Ford government subsequently extended the regulated pre-writ period from 6 months to 12 months, but did not increase the spending limit.

The Supreme Court struck down the pre-writ limits on third parties in *Ontario (Attorney General) v Working Families Coalition (Canada) Inc.*, 2025 SCC 5 (CanLII) (*Working Families*). The Court was particularly concerned with the extension of the time period in which the spending limit applied without an increase in the permitted amount. They also found constitutionally deficient the relative amount of spending permitted to political parties and third parties. Disadvantaging third parties to such an extent was seen as disproportionate and a violation of s.3 not saved by s.1:

3.5.3 *Ontario (Attorney General) v Working Families Coalition (Canada) Inc.*, 2025 SCC 5 (CanLII)

> [6] The application judge relied on expert evidence suggesting that both a 6- and 12-month spending limit for third parties would promote electoral fairness, and concluded that the challenged provision did not violate s. 3 of the *Charter*. He determined that third parties could still advertise within the spending limit, and that expensive television advertisements did not contribute to policy debates. The application judge thus concluded that the law respected the right of voters to meaningfully participate in the electoral process through an informed vote.

[7] With respect, I disagree. An examination of the extent of low-cost advertising that third parties can still engage in does not capture the broader impacts of the spending limit that, by design, creates absolute disproportionality, or a disproportionality that is so marked on its face that it allows political parties to drown out the voices of third parties on political issues from reaching citizens during an entire year of legislative activity.

[8] This Court's interpretation of s. 3 has been "guided by the ideal of a 'free and democratic society' upon which the *Charter* is founded" (*Reference re Prov. Electoral Boundaries (Sask.)*, 1991 CanLII 61 (SCC), [1991] 2 SCR 158 (*Saskatchewan Reference*), at p. 181; *Figueroa v. Canada (Attorney General)*, 2003 SCC 37, [2003] 1 SCR 912, at paras. 26-27). To interpret the scope of s. 3's protection, this Court has emphasized free and open participation, respect for the diverse interests of a broad range of citizens, fairness in political discourse, and the importance of citizen participation in political life for public faith in our laws and institutions (*Saskatchewan Reference*, at pp. 181-82 and 188; *Figueroa*, at paras. 27-30; *Harper*, at paras. 70 and 72).

[9] In this way, this Court has held that the purpose of s. 3 is for voters to be effectively represented in government, and to play a meaningful role in the electoral process. A legislative measure that undermines or interferes with citizens' ability to meaningfully participate in the electoral process will infringe the right to vote. And meaningful participation requires that citizens be able to vote in an informed way (*Harper*, at paras. 71 and 73). An informed vote is foundational to the health of the electoral system and a properly functioning democracy.

[10] An egalitarian model of elections — endorsed by this Court in *Libman v. Quebec (Attorney General)*, 1997 CanLII 326 (SCC), [1997] 3 SCR 569, and *Harper* — aims to achieve a balance in the political discourse, such that no one participant in the electoral system can exert undue influence. These participants include candidates, political parties and third parties (*Harper*, at para. 87). Assessing whether spending limits may lead to a disequilibrium in that discourse is necessarily a comparative analysis. Given the competitive nature of elections, the capacities of different actors to participate fairly in the electoral process are interconnected and will be affected by how all actors are regulated (*Figueroa*, at para. 49). In principle, spending limits may level the playing field and ensure wealth cannot be mobilized to drown out other voices (*Harper*, at para. 72). However, limits that restrict rather than promote citizens' access to diverse information and views may violate their right to meaningfully participate in the political process (*Harper*, at para. 74).

[11] This Court's jurisprudence is clear that s. 3 does not require that all participants in the electoral system be treated equally. However, s. 3 will be infringed if spending limits allow any political actor or third party a disproportionate voice in the political discourse given their role in the electoral process, thus depriving voters of a broad range of views and perspectives on social and political issues.

[12] The issue in this case is not whether the evidence establishes that third parties can still provide some information to the public. It is about whether legislation that on its face limits third parties during a critical time in the democratic cycle, while imposing no limits at all on political parties for half that period, undermines voters' right to an informed vote that reflects their views. The application judge erred in law by failing to engage with the qualitative differences that permit political parties to drown out the voices of third parties.

[13] In my view, the spending limit infringes s. 3 of the *Charter*. The spending limit applies to issue-based political advertising during a full quarter of the standard life of a legislative assembly, during which citizens' s. 3 rights are engaged and the government is engaged in policy development and lawmaking. It has the clear potential to severely curtail voters' exposure to different views on the political issues that define their community in the year before the election period. During this period, the legislature will sit, as it must do under s. 5 of the *Charter*, debating policies and influencing the election agenda. Third parties are strictly limited in their ability to inform citizens while political parties face *no* restrictions in the first six months of the pre-writ year. This differential treatment creates a disproportionality in the political discourse. Further, this disproportionality in political discourse persists over the second six months: if third parties do provide their perspective during the first six months of the pre-writ year, they may be unable to contribute meaningful information closer to the election. As a result, on their face, the statutory provisions create an absolute disproportionality in the broader political discourse that deprives voters of a broad range of views and perspectives on issues during a critical period in the democratic cycle. This undermines the voter's right to an informed vote and to meaningful participation in the electoral process.

The dissent would have upheld the law on egalitarian grounds and viewed the spending limits as permitting meaningful participation:

[120] The right to meaningful participation is engaged by third party spending limits because third parties can be individual citizens or entities that act as a voice for multiple citizens during the electoral process. This Court has previously held that the s. 3 right to meaningful participation is engaged when legislation regulates political actors that serve as both a "vehicle and outlet" for individual citizens to participate in the electoral process (*Figueroa*, at para. 39). For example, in *Figueroa*, this Court confirmed that legislation that disadvantaged small political parties engaged the right to meaningful participation because political parties serve a participatory function for citizens in the electoral process (see paras. 39-46). Likewise, in *Harper*, this Court recognized that the right is engaged by the regulation of third parties because they are "important and influential participants in the electoral process" (para. 63).

[121] Both the expressive and informational components of the right to meaningful participation are engaged by third party spending limits. Third parties often use political advertisements to comment on the merits and faults of a particular candidate or party, bring new issues to the political discourse, and add new perspectives on issues associated with candidates and political parties (see Harper, at para. 55; see also *Libman*, at para. 49). Regulation of third party advertising may thus restrict citizens' opportunity to become informed of political issues, parties, and candidates.

[122] However, the right to meaningful participation under s. 3 does not guarantee a right to "unlimited participation" (*Harper*, at para. 72). When expression is unlimited, well-resourced third parties can dominate political discourse, drown out the voices of their opponents, and prevent other citizens from having the opportunity to speak and be heard (para. 72; *Libman*, at para. 47; *Figueroa*, at para. 49). Thus, the enactment of spending limits on third parties is not in itself a violation of s. 3.

[123] In fact, this Court has recognized that the right to meaningfully participate requires that citizens not be able to drown out the voices of others in the electoral process (*Figueroa*, at para. 49; *Harper*, at para. 72). Third party spending limits therefore can be consistent with and facilitate the expressive component of the right to meaningful participation. Such limits often indicate the legislature's commitment to an egalitarian model of election finance which is "premised on the notion that individuals should have an equal opportunity to participate in the electoral process" (*Harper*, at para 62; see also Sharpe and Roach, at p. 245). Without spending limits or measures to "provide a voice to those who might otherwise not be heard", it would be "possible for the affluent or a number of persons or groups pooling their resources and acting in concert to dominate the political discourse" (*Harper*, at paras. 62 and 72; see also *Libman*, at para. 47, citing the Royal Commission on Electoral Reform and Party Financing, *Reforming Electoral Democracy: Final Report* (1991), vol. 1, at pp. 323-24 ("Lortie Commission")). …

…

[156] The respondents submit that the 12-month $600,000 spending limit does not provide a reasonable opportunity for third parties to communicate their views and for citizens to become informed of them. The appellant submits that this Court should accept the application judge's conclusion that, although there is no perfect quantum or length for third party political advertising spending limits, the limit under the *EFA* does not prevent third parties from sufficiently communicating information to citizens.

[157] In our view, in addition to the communications that do not count against the spending limit, third parties can engage in a range of political advertising activities within the spending limit. The application judge's findings of fact supported his conclusion that the *EFA* does not deny some citizens a reasonable opportunity to disseminate political information throughout the pre-writ period without surpassing the $600,000 limit.

[158] The application judge found that television advertisements, the most expensive advertising medium, are the main form of advertising affected by the spending limit. He recognized that the spending limit curtails a third party's ability to engage in television advertising, noting that according to Stephen Freeman, a communications expert, a "'minimally effective', two-week advertising campaign" across multiple platforms that included television would cost at least $1.2 million (paras. 44-46 and 78; see Affidavit of Stephen Freeman, at p. 1672).

[159] The application judge correctly noted, however, that the right to meaningful participation under s. 3 is not synonymous with the ability of third parties to engage in an "effective persuasive campaign" or "the ability to mount a media campaign capable of determining the outcome" (*Harper*, at para. 74). As was the case in *Harper*, the $600,000 pre-writ spending limit here appears on the evidence to be "high enough to allow third parties to engage in a significant amount of low cost forms of advertising" (para. 115). While television advertising may be among the more persuasive tools for influencing citizens, a s. 3 analysis must remain focused on whether citizens have a reasonable opportunity to express viewpoints and become informed of facts, ideas, and others' perspectives.

[160] The application judge found that the evidence suggested television advertising had an attenuated impact on voters' ability to understand their political options and make an informed choice among them. The application judge carefully examined the television advertisements introduced as evidence by the respondents and found that they had low informational content (paras. 82 and 85-86). He found that these advertisements do not amount to "policy discourse" nor do they "convey any detailed information" (paras. 83 and 87). He concluded that while this kind of polemical advertisement "certainly constitutes legitimate free speech", it does not meaningfully inform voters (para. 87). Analogizing such advertisements to political cartoons in a newspaper's editorial page, he said that eliminating them "would be a serious interference with freedom of expression, but it could not be said to deprive readers of information needed to inform themselves since all of the print information would remain intact" (*ibid*.).

[161] The evidentiary record further supports the application judge's findings. As noted by Professor Tamara Small, "very few" third parties engaged in television-dominant advertising in Ontario prior to the imposition of spending limits (Affidavit of Tamara Small, reproduced in Exhibit Book, vol. XXIV, at pp. 10476-77). This evidence indicates that the impugned limit's effect on television advertising only impacts a small number of third parties in Ontario. Likewise, it bolsters the appellant's argument that the spending limit is working to ensure that well-funded third parties do not drown out the voices of third parties with fewer resources.

[162] The extent to which the application judge found that the spending limit curtails television advertising does not, in our view, rise to the level of an infringement of s. 3. Putting aside the application judge's commentary on the informational value of the television advertisements in the record, the thrust of his findings indicate that citizens have not been deprived of a reasonable opportunity to speak or be heard due to the availability of other media platforms for citizens to exchange ideas and opinions. Therefore, neither the expressive nor the informational component of s. 3 were infringed by the inability to run television advertisements.

[163] The application judge found that numerous forms of low-cost political advertising methods remain available to third parties. This is in addition to the forms of political communication enumerated in s. 1(1) that are expressly exempted from the spending limit, such as editorials, columns, or books. After reviewing the evidence from advertising and communications experts, he found that today's multimedia environment allows for a variety of forms of advertising that are inexpensive enough to remain within the spending limit. He specifically noted that:

> Blogs, advertisements in print media, op-eds, press releases, interviews, radio spots, mass mailings (via e-mail or traditional post), tweets, Facebook posts and other social media disseminations, can all be engaged in without great expense and readily within the *EFA*'s spending limits. It is not realistic to say that the statute works to "silence" any viewpoint or any electoral discourse in today's multi-media environment. These various media choices are all "highly effective" … in engaging with and informing the public of election issues. [para. 77]

[164] Several of the respondents' witnesses gave evidence that demonstrated how political advertising could be conducted and disseminated within the spending limit (see, e.g., Affidavit of Peter Macdonald, reproduced in Exhibit Book, vol. III, at pp. 945-46; Reply Affidavit of Patrick Dillon, at pp. 240-42). The application judge was only required to find that there was a reasonable opportunity for citizens to express their ideas and inform voters. On the evidence presented by the respondents, the application judge did not commit a reversible error in finding that the *EFA* does not prevent the "modest informational campaigns" that this Court held in *Harper* was a constitutionally-compliant degree of opportunity (para. 74).

[165] Justice Bastarache noted in *Harper* that "third parties tend to focus on one issue and may therefore achieve their objective less expensively" (para. 116). This is consistent with the application judge's finding that the limit under the *EFA* allows third parties to make efficient use of the alternative means of advertising listed above, at para. 82, to focus on the particular issues that matter to them. Moreover, the spending limit allows for advertising in diverse mediums, both traditional and online. In this context, on the evidentiary record before us, the respondents have not demonstrated that third parties will be unable to reach particular demographics.

[166] In sum, while the quantum and duration of the spending limit will have the effect of limiting the extent to which third parties can engage in television advertising, the evidence supports the finding that the limit does not deprive citizens of a reasonable opportunity to convey political information to other citizens through various forms of inexpensive and effective advertising within the spending limit.

[167] In light of this conclusion, we would further reject the respondents' position that the anti-coordination restrictions or the registration and reporting requirements contribute to a denial of a reasonable opportunity to speak and be heard. In our view, s. 37.10.1(3), which prevents third parties from circumventing the spending limit by acting in collusion, splitting themselves into multiple coordinated entities, or otherwise colluding or sharing information with political parties or each other, ensures that the most well-funded third parties and political parties cannot cover the field to the detriment of smaller participants. These restrictions do not curtail the right of meaningful participation, but rather give effect to it. Likewise, there is insufficient evidence to suggest that the interim reporting requirements for third parties under s. 37.10.2 burdens third parties to a degree that effectively denies them a reasonable opportunity to contribute to the political discourse.

The dissent also cast doubt on the majority's test of 'disproportionality.' The dissent viewed stricter spending limits on third parties than on political parties as necessary given that third parties are not seeking elected office:

[172] The respondents have failed to meet their burden. Again, this Court has noted that "[i]t is … important to limit independent spending more strictly than spending by candidates or political parties" (*Libman*, at para. 50). As the "primary political organizations" in the electoral process, the voices of political parties and candidates must have the opportunity to be heard clearly (Lortie Commission, at pp. 11-13, 209 and 228). Without stricter limits for third parties, "owing to their numbers, the impact of [independent] spending on one of the candidates or political parties to the detriment of the others could be disproportionate" (*Libman*, at para. 50). In other words, stricter limits for third parties may be necessary to ensure the citizens who wish to communicate their views via political parties and become informed of such views are not deprived of a reasonable opportunity to do so.

[173] The Court continued in *Libman* to explain that "[l]imits on independent spending are essential to maintain an equilibrium in the

> financial resources available to candidates and political parties and thus ensure the fairness of elections" (para. 52). By extension, asymmetry in the length of time in which third parties and political parties are subject to spending restrictions may assist in promoting electoral fairness and "balance […] the promotion of the [electoral] options" (para. 54). An infringement of the right to meaningful participation is only made out if a citizen can demonstrate that the asymmetry at issue has deprived them of a reasonable opportunity to speak and be heard.
>
> [174] Although some third parties engage in political advertising more than six months prior to the issue of the writ, the application judge's factual findings confirm that most election-specific advertising is concentrated around the issue of the writ and during the election period (para. 53). For example, the application judge invoked expert evidence by Professor Andrea Lawlor to the effect that "although third parties do attempt to engage in election-oriented advertising more than six months prior to the dropping of the writ [period], election-related advertising by third parties is generally concentrated around the election period" (para. 49). In addition, the application judge accepted evidence from two of the respondents' expert witnesses, who confirmed that the bulk of their election-related activity is concentrated around the issue of the writ and during the election period (para. 51).

After Working Families, what room is left for egalitarian campaign finance law? Would a more narrowly tailored law or one that permitted more spending by third parties be consistent with its reasoning? See Michael Pal, "Is the Permanent Campaign the End of the Egalitarian Model of Elections?" in Richard Albert, Paul Daly, and Vanessa MacDonnell, eds, *The Canadian Constitution in Transition* (University of Toronto Press, 2019).

4 Elections in Indigenous Communities

One way that leadership is selected in Indigenous communities is through the election of a chief and councillors for First Nations' bands. As part of the assimilationist colonial project, Western-style elections were imposed on First Nations through the *Indian Act* in the nineteenth century. Some communities, however, continued their traditional ways of recognizing leaders through, for example, hereditary systems. Still others maintained hybrid systems, where both elected and hereditary leadership co-existed.

Currently, selection of leadership can occur:

- through processes proscribed by the *Indian Act* and Indian Band Election Regulations;
- the optional First Nations Elections Act and First Nations Elections Regulations;
- through processes codified in a self-government agreement;
- using the communally recognized traditional processes (still anachronistically called 'custom').

4.1 Band councils, custom election codes, and self-government

Less than one-quarter of First Nations—or approximately 140 communities—hold elections under the *Indian Act* framework and its associated regulations.

The *First Nations Elections Act* (*FNEA*) and associated regulations came into force in 2015 after consultation with, and in collaboration with, several First Nations organizations. Approximately 75 communities conduct their elections under the *First Nations Elections Act* framework, having voluntarily decided to remove themselves from the *Indian Act*'s electoral system in order to be regulated by the *FNEA*. The FNEA does not alter the colonial elections model set out in the *Indian Act*, but merely provides an alternative electoral process. Like the *Indian Act,* elected chiefs and councils comprise governments under the *FNEA*. The *FNEA* does, however, reduce Ministerial control and regulate elections, neither of which the *Indian Act* does. For example, it provides for a longer term of office (4 instead of 2 years), common election days for groups of First Nations, advance polls, recounts and other procedural matters. Contested elections are not investigated by the Minister or subject to being set aside by Governor in Council; instead, election appeals are directed to superior provincial courts or federal courts which have the jurisdiction to set aside an election.

While elections under the *Indian Act* and the First Nations Elections Act may be democratic, they do not reflect or represent Indigenous self-government or sovereignty due to the continued oversight by the Minister of Indigenous Services. It is only through self-government and customary selection processes that Indigenous communities exercise a truly autonomous power to choose their leaders.

First Nations that hold elections under the *Indian Act* system can develop their own community election codes and request that the Minister of Indigenous Services remove them from the application of the *Indian Act*'s electoral provisions. While these election codes are usually written, the nature of the rules and how they work varies according to the community.

One of the legacies of colonialism is disputed leadership selection in Indigenous communities. Judicial review of elections—under any of the four processes list above—occurs frequently in the courts, especially at Federal Court and Federal Court of Appeal. Earlier cases usually involved disputed elections under the *Indian Act*, but increasingly these cases involve Indigenous laws and legal orders. This trend, a result of Canada's multijuridicalism, raises foundational questions about the suitability of these cases for judicial review given the specialized legal knowledge that they require for resolution, the desire to have these issues resolved within the communities using their own laws, a diversity of procedures and decision-makers, and the need to recognize Indigenous modes of self-government and Indigenous legal orders.

4.1.1 Disputed elections and membership in Indigenous communities: tensions among the Charter and principles of democracy, self-government, and reconciliation

Three cases are examined below: one involving the *Indian Act*, one involving customary election laws, and one involving the intersection of the *Charter* and a community under a self-government agreement. Judicial review under the *First Nations Elections Act* will not be considered here. Each case raises different issues for the principles of democracy, self-government, and reconciliation as well as regarding the appropriateness of judicial review for these matters. Proper recognition of Indigenous principles and laws is crucial. For example, it is important to distinguish consensus-driven modes of decision-making in Indigenous communities from majority decision-making in non-Indigenous modes of governance.

It also is important to highlight that control over membership in a community and electoral rights are indicia of sovereignty. Many cases involving disputes over membership for the purposes of voting or running for office, as well as disputed election procedures and results, are the subject of judicial review in constitutional and administrative law. Because it only recognizes 'bands,' one major effect of the *Indian Act* has been its fragmentation of political leadership and the lesser status it accords to band governance as a form akin to a local government or municipality.

With the growing recognition of self-government, the hope is that these disputes will be resolved internally using Indigenous laws and procedures though this hope remains uncertain given the ruling in *Dickson v Vuntut Gwitchin First Nation* in s. 4.1.1.4 below. Nevertheless, the principles of judicial review in both administrative and constitutional law (ie, the principle of deference) urge reviewing courts to respect the laws and choices made by First Nations communities and to limit judicial interference with Indigenous decision-making processes as much as possible.

4.1.1.1 *Corbiere v Canada (Minister of Indian and Northern Affairs)*, 1999 CanLII 687 (SCC), [1999] 2 SCR 203

In this foundational case, the Supreme Court of Canada struck down the *Indian Act*'s requirement that members must reside on the reserve in order to vote in band elections. The Court held that the distinction which denied off reserve members the ability to vote violated s. 15 of the *Charter*. As the case discusses, the residency requirement especially discriminated against Indigenous women living off the reserve due to the gendered impact of colonialism in Indigenous communities. Indigenous women who 'married out,' meaning marriage to someone outside their home community, were deprived of their Indigenous status and often residence on their home reserve. Indigenous women who had lost their status in this way, regained it under the 1985 amendments to the *Indian Act*, though complications remained for their children.

This case is important remedially for the application of the principle of equality to protect vulnerable persons and to re-empower off-reserve members. But it also represents both the problematic continuation of the *Indian Act*'s imposed system of Western-style governance and resort to non-Indigenous laws and dispute resolution processes through judicial review.

> The judgment of Lamer C.J. and Cory, McLachlin, Major and Bastarache JJ. was delivered by
>
> McLachlin and Bastarache JJ.
>
> …
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> 3 The narrow issue raised in this appeal is whether the exclusion of off-reserve members of an Indian band from the right to vote in band elections pursuant to s. 77(1) of the *Indian Act*, R.S.C., 1985, c. I-5, is inconsistent with s. 15(1) of the *Canadian Charter of Rights and Freedoms. ...*
>
> [McLachlin and Bastarache JJ set out the then-applicable test under *Law*. Note that this older test no longer applies. Chapter 24 discusses the evolution of the s. 15 test as well as the concept of analogous grounds more fully.]
>
> …
>
> 14 L'Heureux-Dubé J. ultimately concludes that "Aboriginality-residence" as it pertains to whether an Aboriginal band member lives on or off the reserve is an analogous ground. We agree. L'Heureux-Dubé J.'s discussion makes clear that the distinction goes to a personal characteristic essential to a band member's personal identity, which is no less constructively immutable than religion or citizenship. Off-reserve Aboriginal band members can change their status to on-reserve band members only at great cost, if at all.
>
> 15 Two brief comments on this new analogous ground are warranted. First, reserve status should not be confused with residence. The ordinary "residence" decisions faced by the average Canadians should not be confused with the profound decisions Aboriginal band members make to live on or off their reserves, assuming choice is possible. The reality of their situation is unique and complex. Thus no new water is charted, in the sense of finding residence, in the generalized abstract, to be an analogous ground. Second, we note that the analogous ground of off-reserve status or Aboriginality-residence is limited to a subset of the Canadian population, while s. 15 is directed to everyone. In our view, this is no impediment to its inclusion as an analogous ground under s. 15. Its demographic limitation is no different, for example, from pregnancy, which is a distinct, but fundamentally interrelated form of discrimination from gender. "Embedded" analogous grounds may be necessary to permit meaningful consideration of intra-group discrimination.
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> 16 Having concluded that the distinction made by the impugned law is made on an analogous ground, we come to the final step of the s. 15(1) analysis: whether the distinction at issue in this case in fact constitutes discrimination. In plain words, does the distinction undermine the presumption upon which the guarantee of equality is based — that each individual is deemed to be of equal worth regardless of the group to which he or she belongs?
>
> 17 Applying the applicable *Law* factors to this case — pre-existing disadvantage, correspondence and importance of the affected interest — we conclude that the answer to this question is yes. The impugned distinction perpetuates the historic disadvantage experienced by off-reserve band members by denying them the right to vote and participate in their band's governance. Off-reserve band members have important interests in band governance which the distinction denies. They are co-owners of the band's assets. The reserve, whether they live on or off it, is their and their children's land. The band council represents them as band members to the community at large, in negotiations with the government, and within Aboriginal organizations. Although there are some matters of purely local interest, which do not as directly affect the interests of off-reserve band members, the complete denial to off-reserve members of the right to vote and participate in band governance treats them as less worthy and entitled, not on the merits of their situation, but simply because they live off-reserve. The importance of the interest affected is underlined by the findings of the Royal Commission on Aboriginal Peoples, *Report of the Royal Commission on Aboriginal Peoples* (1996), vol. 1, *Looking Forward, Looking Back*, at pp. 137-91. The Royal Commission writes in vol. 4, *Perspectives and Realities*, at p. 521:
>
> > Throughout the Commission's hearings, Aboriginal people stressed the fundamental importance of retaining and enhancing their cultural identity while living in urban areas. Aboriginal identity lies at the heart of Aboriginal peoples' existence; maintaining that identity is an essential and self-validating pursuit for Aboriginal people in cities.
>
> And at p. 525:
>
> > Cultural identity for urban Aboriginal people is also tied to a land base or ancestral territory. For many, the two concepts are inseparable. … Identification with an ancestral place is important to urban people because of the associated ritual, ceremony and traditions, as well as the people who remain there, the sense of belonging, the bond to an ancestral community, and the accessibility of family, community and elders.
>
> 18 Taking all this into account, it is clear that the s. 77(1) disenfranchisement is discriminatory. It denies off-reserve band members the right to participate fully in band governance on the arbitrary basis of a personal characteristic. It reaches the cultural identity of off-reserve Aboriginals in a stereotypical way. It presumes that Aboriginals living off-reserve are not interested in maintaining meaningful participation in the band or in preserving their cultural identity, and are therefore less deserving members of the band. The effect is clear, as is the message: off-reserve band members are not as deserving as those band members who live on reserves. This engages the dignity aspect of the s. 15 analysis and results in the denial of substantive equality.
>
> 19 The conclusion that discrimination exists at the third stage of the *Law* test does not depend on the composition of the off-reserve band members group, its relative homogeneity or the particular historical discrimination it may have suffered. It is the present situation of the group relative to that of the comparator group, on-reserve band members, that is relevant. All parties have accepted that the off-reserve group comprises persons who have chosen to live off-reserve freely, persons who have been forced to leave the reserve reluctantly because of economic and social considerations, persons who have at some point been expelled then restored to band membership through Bill C-31 (*An Act to amend the Indian Act*, S.C. 1985, c. 27), and descendants of these people. It is accepted that off-reserve band members are the object of discrimination and constitute an underprivileged group. It is also accepted that many off-reserve band members were expelled from the reserves because of policies and legal provisions which were changed by Bill C-31 and can be said to have suffered double discrimination. But Aboriginals living on reserves are subject to the same discrimination. Some were affected by Bill C-31. Some left the reserve and returned. The relevant social facts in this case are those that relate to off-reserve band members as opposed to on-reserve band members. Even if all band members living off-reserve had voluntarily chosen this way of life and were not subject to discrimination in the broader Canadian society, they

would still have the same cause of action. They would still suffer a detriment by being denied full participation in the affairs of the bands to which they would continue to belong while the band councils are able to affect their interests, in particular by making decisions with respect to the surrender of lands, the allocation of land to band members, the raising of funds and making of expenditures for the benefit of all band members. The effect of the legislation is to force band members to choose between living on the reserve and exercising their political rights, or living off-reserve and renouncing the exercise of their political rights. The political rights in question are related to the race of the individuals affected, and to their cultural identity. As mentioned earlier, the differential treatment resulting from the legislation is discriminatory because it implies that off-reserve band members are lesser members of their bands or persons who have chosen to be assimilated by the mainstream society.

…

21 Having found that s. 77(1) is discriminatory, we must address the s. 1 argument of the appellants. The applicable test was recently described by Iacobucci J. in *Egan v. Canada*, 1995 CanLII 98 (SCC), [1995] 2 SCR 513, at para. 182. We are satisfied that the restriction on voting is rationally connected to the aim of the legislation, which is to give a voice in the affairs of the reserve only to the persons most directly affected by the decisions of the band council. It is admitted that although all band members are subject to some decisions of the band council, most decisions would only impact on members living on the reserve. The restriction of s. 15 rights is however not justified under the second branch of the s. 1 test; it has not been demonstrated that s. 77(1) of the *Indian Act* impairs the s. 15 rights minimally. Even if it is accepted that some distinction may be justified in order to protect legitimate interests of band members living on the reserve, it has not been demonstrated that a complete denial of the right of band members living off-reserve to participate in the affairs of the band through the democratic process of elections is necessary. Some parties and interveners have mentioned the possibility of a two-tiered council, of reserved seats for off-reserve members of the band, of double-majority votes on some issues. The appellants argue that there are important difficulties and costs involved in maintaining an electoral list of off-reserve band members and in setting up a system of governance balancing the rights of on-reserve and off-reserve band members. But they present no evidence of efforts deployed or schemes considered and costed, and no argument or authority in support of the conclusion that costs and administrative convenience could justify a complete denial of the constitutional right. Under these circumstances, we must conclude that the violation has not been shown to be demonstrably justified.

[The Majority considered the appropriate remedy in this case. The SCC rejected the Court of Appeal's remedy which was to grant a permanent constitutional exemption for the Batchewana Band instead of declaring s. 77(1) of the *Indian Act* to be unconstitutional. Instead, the Majority struck out the words "and is ordinarily resident on the reserve" in s. 77(1) of the *Indian Act* because they were found to be inconsistent with s. 15(1). This section of the *Indian Act* could not be saved under s. 1. The Court suspended the declaration for 18 months.]

The reasons of L'Heureux-Dubé, Gonthier, Iacobucci and Binnie JJ. were delivered by

L'Heureux-Dubé J.

25 L'Heureux-Dubé J. – Section 77(1) of the *Indian Act*, R.S.C., 1985, c. I-5, defines voter eligibility in bands whose election regime is governed by the Act's provisions. The section requires band members to be at least 18 years old, and "ordinarily resident on the reserve" to be entitled to vote. This appeal requires a determination of whether the residence requirement violates s. 15(1) of the *Canadian Charter of Rights and Freedoms*, and, if so, whether the legislation is justified under s. 1 of the *Charter*. The appeal also requires the Court to consider whether the legislation violates s. 15 in relation only to the Batchewana Band, or whether the violation occurs generally, as well as the appropriate remedy, if any, for the violation.

I. Factual Background

26 The chiefs and councils of *Indian Act* bands, pursuant to the definition of "council of the band" in s. 2(1), are chosen following the band's custom, or, if an order in council has been made under s. 74(1), by the procedures set out in the Act, including s. 77(1). The trial judge found that the policy of the Department of Indian and Northern Affairs Canada is that a band will not be deleted from the order in council placing it under the election procedures of the *Indian Act* unless the band council and the current "electors" so approve, either through a plebiscite or at a public meeting. Certain other conditions must also be met. The most recent order in council, the *Indian Bands Council Elections Order*, SOR/97-138, which came into effect on March 4, 1997, provides that 288 bands select their leadership in accordance with the *Indian Act*. This number represents just under half of the *Indian Act* bands in Canada.

27 The respondents are members of the Batchewana Indian Band, which has three reserves near the city of Sault Ste. Marie, Ontario: the Rankin, Goulais Bay, and Obadjiwan reserves. The Batchewana Band is included in the 1997 order in council, its councillors are not chosen in electoral sections, and voter eligibility for its elections is therefore governed by s. 77(1) of the *Indian Act*. The respondent John Corbiere resides on the Rankin Reserve, while the other three respondents are members of the Batchewana Band who do not live on any of the reserves. They take this action on their own behalf and on behalf of all non-resident members of the band. Of the 1,426 members of the band who were registered in 1991, 958 members, or 67.2 percent, lived off-reserve. The Batchewana Band's history, like that of many First Nations, involved the loss of most of its traditional land base. Prior to 1850, the Batchewana and other bands of the Ojibway occupied large areas of land along the eastern and northern shores of Lake Huron, the northern shore of Lake Superior, and various areas inland. In 1850, as part of the Robinson-Huron Treaty, this land was surrendered to the Crown and the Batchewana obtained a reserve of 246 square miles. In 1859, the band surrendered all of this reserve through the Pennefather treaty, leaving it only with Whitefish Island, a small island in the St. Marys River. Under this treaty, the band's members were promised that the band would be given land on the reserve of the Garden River Band near Sault Ste. Marie. This promise was never fulfilled. For 20 years, therefore, the band owned only approximately 15 acres of land.

28 After 1879, the band began to re-acquire land. In that year, the band council purchased what is now the Goulais Bay Reserve north of Sault Ste. Marie, and its size was increased by a donation from the Roman Catholic Church in 1885. When Whitefish Island was expropriated by three railway companies in 1900 and 1902, the Goulais Bay Reserve became the band's only land. Until the 1960s or early 1970s, therefore, most band members lived on the Garden River Reserve belonging to another band. In the 1940s, the band council, made up of and elected by non-residents, assembled land which became the Rankin Reserve in 1952. The main portion of this land is surrounded by the city of Sault Ste. Marie, and portions of it also border the St. Marys River and the Garden River Reserve. The third reserve, the Obadjiwan Reserve, which became part of the Batchewana Band's land base in 1962, is quite small and, like the Goulais Bay Reserve, is located in a rural area north of Sault Ste. Marie. The largest percentage of those who live on one of the band's reserves live on the Rankin Reserve.

29 Residence on the reserve was required, by law, for band members to be eligible to vote for band councils, beginning with *The Indian Advancement Act*, *1884*, S.C. 1884, c. 28, s. 5. This requirement was also contained in *The Indian Advancement Act*, R.S.C. 1886, c. 44, s. 5(1), the *Indian Act*, R.S.C. 1906, c. 81, s. 172(*b*), and the *Indian Act*, R.S.C. 1927, c. 98, s. 163(*a*). In addition, band members were required to be over 21 and male. To vote on the surrender or release of land, historically, the requirement was not as strict, requiring, for example, residence "on or near" the lands in question (*An Act providing for the organisation of the Department of the Secretary of State of Canada, and for the management of Indian and Ordinance Lands*, S.C. 1868, c. 42, s. 8(1)) and later, requiring voters on these questions to be resident "on or near" and "interested in" the reserve (*Indian Act*, R.S.C. 1927, c. 98, s. 51(2)). Voter eligibility provisions similar to the present ones, though they

provided for a minimum age of 21 years, were introduced in *The Indian Act*, S.C. 1951, c. 29, ss. 2(1)(*e*) and 76(1). From the first election in 1902 until 1962, the residency requirement was not enforced in Batchewana Band elections. Since that time, only band members living on one of the three reserves have been allowed to vote.

30 The number of Batchewana Band members has risen dramatically since 1985, and at the same time the percentage of band members living on the reserves has dramatically fallen. In 1985, 71.1 percent of the 543 registered members of the band lived on-reserve. In 1991, only 32.8 percent of the 1,426 registered members lived on the reserves. The parties agree that this trend is continuing. This dramatic increase in the number of off-reserve members occurred largely because of the passage of *An Act to amend the Indian Act*, S.C. 1985, c. 27 ("Bill C-31"), by Parliament. This legislation restored Indian status to most of those who had lost this status because of the operation of certain sections of the *Indian Act*, as well as to the descendants of such people. Prior to this legislation, women with Indian status who married non-Indian men lost their status, and their children did not get status, though men who married non-Indian women, and their children, maintained Indian status. Registered Indians who voluntarily "enfranchised" also lost Indian status. For the Batchewana Band, approximately 85 percent of the growth in band membership consisted of people who were reinstated to Indian status and band membership because of Bill C-31. Similar trends may be seen in many other bands.

II. Relevant Constitutional, Statutory, and Regulatory Provisions

[L'Heureux-Dubé J set out the relevant constitutional provisions: sections 1, 15(1), 24, and 25 from the *Canadian Charter of Rights and Freedoms*; and sections 35 and 52 of the *Constitution Act, 1982*.

L'Heureux-Dubé J then set out the relevant provisions from the *Indian Act*. These provisions demonstrate the extent of the Minister's discretionary power over Indigenous communities. L'Heureux-Dubé J also set out the provisions determining the jurisdiction of band councils to make by-laws. Only those provisions which relate to elections are excerpted here.]

Indian Act, R.S.C., 1985, c. I-5

2. (1) In this Act,

"band" means a body of Indians

(*a*) for whose use and benefit in common, lands, the legal title to which is vested in Her Majesty, have been set apart before, on or after September 4, 1951,

(*b*) for whose use and benefit in common, moneys are held by Her Majesty, or

(*c*) declared by the Governor in Council to be a band for the purposes of this Act;

"council of the band" means

(*a*) in the case of a band to which section 74 applies, the council established pursuant to that section,

(*b*) in the case of a band to which section 74 does not apply, the council chosen according to the custom of the band, or, where there is no council, the chief of the band chosen according to the custom of the band;

"elector" means a person who

(*a*) is registered on a Band List,

(*b*) is of the full age of eighteen years, and

(*c*) is not disqualified from voting at band elections;

74. (1) Whenever he deems it advisable for the good government of a band, the Minister may declare by order that after a day to be named therein the council of the band, consisting of a chief and councillors, shall be selected by elections to be held in accordance with this Act.

75. (1) No person other than an elector who resides in an electoral section may be nominated for the office of councillor to represent that section on the council of the band.

(2) No person may be a candidate for election as chief or councillor unless his nomination is moved and seconded by persons who are themselves eligible to be nominated.

77. (1) A member of a band who has attained the age of eighteen years and is ordinarily resident on the reserve is qualified to vote for a person nominated to be chief of the band and, where the reserve for voting purposes consists of one section, to vote for persons nominated as councillors.

(2) A member of a band who is of the full age of eighteen years and is ordinarily resident in a section that has been established for voting purposes is qualified to vote for a person nominated to be councillor to represent that section.

…

[Section III analysis of the lower court judgments has been omitted as has Section IV's statement of the issues. The first two subsections of the Section V analysis have also been omitted: whether the s. 15 analysis should focus only on the Batchewana Band and whether the Court should consider section 25 of the *Charter* and section 35 of the *Constitution Act, 1982*.]

C. *Section 15(1) Analysis*

[L'Heureux-Dubé J first set out the s15(1) framework from Law.]

…

(2) First Stage: Differential Treatment

57 The first stage of inquiry is easily satisfied in the present case. Section 77(1) of the *Indian Act* draws a distinction between band members who live on-reserve and those who live off-reserve, by excluding the latter from the definition of "elector" within the band. This constitutes differential treatment.

(3) Second Stage: Analogous Grounds

58 The differential treatment in this case is based on the status of holding membership in an *Indian Act* band, but living off that band's reserve. This combination of traits does not fall under one of the enumerated or already recognized analogous grounds. The fundamental consideration at the second stage, if the ground is not enumerated or already recognized as analogous, is whether recognition of the basis of differential treatment as an analogous ground would further the purposes of s. 15(1): *Law*, *supra*, at para. 93. These purposes are, as stated at para. 51 of *Law*:

[T]o prevent the violation of essential human dignity and freedom through the imposition of disadvantage, stereotyping, or political or social

> prejudice, and to promote a society in which all persons enjoy equal recognition at law as human beings or as members of Canadian society, equally capable and equally deserving of concern, respect and consideration.

…

62 Here, several factors lead to the conclusion that recognizing off-reserve band member status as an analogous ground would accord with the purposes of s. 15(1). From the perspective of off-reserve band members, the choice of whether to live on- or off-reserve, if it is available to them, is an important one to their identity and personhood, and is therefore fundamental. It involves choosing whether to live with other members of the band to which they belong, or apart from them. It relates to a community and land that have particular social and cultural significance to many or most band members. Also critical is the fact that as discussed below during the third stage of analysis, band members living off-reserve have generally experienced disadvantage, stereotyping, and prejudice, and form part of a "discrete and insular minority" defined by race and place of residence. In addition, because of the lack of opportunities and housing on many reserves, and the fact that the *Indian Act*'s rules formerly removed band membership from various categories of band members, residence off the reserve has often been forced upon them, or constitutes a choice made reluctantly or at high personal cost. For these reasons, the second stage of analysis has been satisfied, and "off-reserve band member status" is an analogous ground. It will hereafter be recognized as an analogous ground in any future case involving this combination of traits. I note that in making this determination, I make no findings about "residence" as an analogous ground in contexts other than as it affects band members who do not live on the reserve of the band to which they belong.

(4) Third Stage of Analysis

63 At the third stage, the appropriate focus is on how, in the context of the legislation and Canadian society, the particular differential treatment impacts upon the people affected by it. This requires examining whether the legislation conflicts with the purposes of s. 15(1): to recognize all individuals and groups as equally deserving, worthy, and valuable, to remedy stereotyping, disadvantage and prejudice, and to ensure that all are treated as equally important members of Canadian society. Determining whether legislation violates these purposes requires examining the legislation in the context in which it applies, with attention to the interests it affects, and the situation and history in Canadian society of those who are treated differentially by it. It must be examined how "a person legitimately feels when confronted with a particular law": *Law*, *supra*, at para. 53.

…

(a) Disadvantage, Vulnerability, Stereotyping, and Prejudice

70 Groups or individuals who are generally subject to unfair treatment in society because of their characteristics or circumstances are already demeaned in dignity, and further differential treatment of them is more likely to have a discriminatory impact, since it often perpetuates or increases that disadvantage: *Law*, *supra*, at para. 63. Pre-existing disadvantage, stereotyping, and vulnerability are important to the analysis in this case in three particular ways.

71 First, band members living off-reserve form part of a "discrete and insular minority", defined by both race and residence, which is vulnerable and has at times not been given equal consideration or respect by the government or by others in Canadian or Aboriginal society. Decision makers have not always considered the perspectives and needs of Aboriginal people living off reserves, particularly their Aboriginal identity and their desire for connection to their heritage and cultural roots. As noted by the Royal Commission on Aboriginal Peoples,

> [b]efore the Commission began its work, however, little attention had been given to identifying and meeting the needs, interests and aspirations of urban Aboriginal people. Little thought had been given to improving their circumstances, even though their lives were often desperate, and relations between Aboriginal people and the remainder of the urban population were fragile, if not hostile.
>
> The information and policy vacuum can be traced at least in part to long-standing ideas in non-Aboriginal culture about where Aboriginal people 'belong'.
>
> (Report of the Royal Commission on Aboriginal Peoples (1996), vol. 4, Perspectives and Realities, at p. 519.)

Similarly, there exist general stereotypes in society relating to off-reserve band members. People have often been only seen as "truly Aboriginal" if they live on reserves. The Royal Commission wrote:

> MANY CANADIANS THINK of Aboriginal people as living on reserves or at least in rural areas. This perception is deeply rooted and persistently reinforced. …
>
> … There is a history in Canada of putting Aboriginal people 'in their place' on reserves and in rural communities. Aboriginal cultures and mores have been perceived as incompatible with the demands of industrialized urban society. This leads all too easily to the assumption that Aboriginal people living in urban areas must deny their culture and heritage in order to succeed -- that they must assimilate into this other world. The corollary is that once Aboriginal people migrate to urban areas, their identity as Aboriginal people becomes irrelevant.
>
> (*Perspectives and Realities*, *supra*, at p. 519.)

72 Second, off-reserve band members experience particular disadvantages compared to those living on-reserve because of their separation from the reserve. They are apart from communities to which many feel connection, and have experienced racism, culture shock, and difficulty maintaining their identity in particular and serious ways because of this fact. Third, it should be noted that the context is one in which, due to various factors, Aboriginal women, who can be said to be doubly disadvantaged on the basis of both sex and race, are among those particularly affected by legislation relating to off-reserve band members, because of their history and circumstances in Canadian and Aboriginal society.

(b) *Relationship Between the Basis of the Differential Treatment and the Claimant's Characteristics or Circumstances*

73 The second factor set out by Iacobucci J. examines the relationship between the basis on which the differential treatment occurs and the characteristics of the claimant and others, with the goal of recognizing the human dignity and right to full participation in society of all of them. Some distinctions may correspond to the needs, capacities, or circumstances of a group in a manner that does not affect their human dignity or that of others, viewed from a subjective-objective perspective (*Law*, *supra*, at paras. 69-71).

74 In the case at bar, considering this factor involves examining the legislative context surrounding the distinction at issue. The voting rights at issue affect other sections of the legislation; it must be determined how the functions of electors and powers of the band council chosen by them relate to the needs, circumstances, and human dignity of the band members included and excluded by the voting scheme. In my opinion, if the powers of electors or the chief and council they vote for affect issues that are purely local, and do not affect the interests of off-reserve band members, the differential treatment between band members contained in s. 77(1) cannot be considered to violate the right to substantive equality of the off-reserve members. Such differential treatment would relate to the different positions and needs of the two groups and could not be said, in my opinion, to stereotype off-reserve members or suggest they are less deserving, worthy, or important band members from the perspective of someone affected by them. However, if the powers of the electors and the band council affect the interests and needs of both groups, this will be an indicator that the differential treatment is more likely to be discriminatory.

75 The band council chosen by the electors has by-law making powers under s. 81(1), which include the regulation of traffic on the reserve, control over the observance of law and order, and other such powers. Strayer J., the trial judge, found that these powers are mostly of a local nature, related to the governance of the reserve itself, and he suggested that they primarily affect residents. I would agree, in general, with this characterization, and I would add to the list of provisions affecting primarily local functions the powers contained in s. 85.1. However, I would note that several paragraphs of s. 81(1) affect in a particular way all band members, irrespective of residence on the reserve. Section 81(1)(*i*) allows the band council to allot land on the reserve, where this authority has been given by the Governor in Council. Sections 81(1)(*p*) and 81(1)(*p.*1) allow by-laws relating to residence and trespass on the reserve, which may affect the ability of non-residents to use the facilities and land on the reserve, and return to live there. The ability to live on the reserve, or to participate in activities on reserve lands if they desire, has been shown to be important to non-residents, and these functions of the band council affect their circumstances and needs directly and in a fundamental way: see *Perspectives and Realities*, *supra*, at p. 49.

76 Section 83 gives the council power to make money by-laws, which include taxation of land on the reserve, licensing of businesses, appropriation of moneys to defray band expenses, and payment of remuneration to chiefs and councillors. These powers, in my opinion, are a mixture of functions that affect residents on the reserve only, and also all members of the band. While the taxation of land and businesses on the reserve and the licensing of businesses are primarily local functions, appropriation of money for various band purposes and the amounts to be paid to chiefs and councillors are matters in which all band members have an interest. In addition, under s. 83(1)(*f*), the band may make by-laws relating to "the raising of money from band members to support band projects" which may have the potential to affect all band members.

77 Although the band council's powers under ss. 81(1) and 83(1) are similar, in many ways, to those of a municipality, the exclusion of non-residents from voting rights affects other powers of the band council that relate to the needs of all members of the band, whether or not they are ordinarily resident on the reserve. Section 64(1) allows the expenditure by the Minister, with the band council's consent, of the band's capital moneys for various purposes, including distributions per capita to members of the band, and construction of new housing. The band's capital moneys come from the sale of surrendered lands or capital assets of the band (s. 62), assets that belong, collectively, to all members of the band. As found by Strayer J., all band members have important interests in these expenditures. Similarly, under s. 66(1), the Minister, with the approval of the band council, can make orders appropriating the band council's revenue moneys; the band council may be authorized to do so under s. 69. Expenditures by the band council may include matters like education, creation of new housing, creation of facilities on reserves, and other matters that may affect off-reserve band members' economic interest in its assets and the infrastructure that will be available to help them return to the reserve if they wish. Finally, s. 39(1)(*b*) requires the consent of a majority of "electors" of the band for the surrender of band lands. The definition of "elector" in s. 2(1) excludes band members who are disqualified from voting in band elections, so the wording of s. 77(1) excludes off-reserve members from voting on the question of whether the lands they own in common will be surrendered.

78 The wording of s. 77(1), therefore, gives off-reserve band members no voice in electing a band council that, among other functions, spends moneys derived from land owned by all members, and money provided to the band council by the government to be spent on all band members. The band council also determines who can live on the reserve and what new housing will be built. The legislation denies those in the position of the claimants a vote in decisions about whether the reserve land owned by all members of the band will be surrendered. In addition, members who live in the vicinity of the reserve, as shown by the evidence of several of the plaintiffs in this case, may take advantage of services controlled by the band council such as schools or recreational facilities. Moreover, as a practical matter, representation of Aboriginal peoples in processes such as land claims and self-government negotiations often takes place through the structure of *Indian Act* bands. The need for and interest in this representation is shared by all band members, whether they live on- or off-reserve. Therefore, although in some ways, voting for the band council and chief relates to functions affecting reserve members much more directly than others, in other ways it affects all band members. Since interests are affected that are unrelated to the basis upon which the differential treatment is made (off-reserve residence status), considering the principle of respect for human dignity and substantive equality, this is an important indicator that the differential treatment is discriminatory.

(c) *Nature of the Affected Interest*

79 The fourth contextual factor which was described by Iacobucci J. in *Law*, *supra*, at paras. 74-75, and which is of particular importance in this case, is the nature of the affected interest. In general, the more important and significant the interest affected, the more likely it will be that differential treatment affecting this interest will amount to a discriminatory distinction within the meaning of s. 15(1).

80 Several social and legislative facts are important to analysing this contextual factor. The first is the important financial interest that non-residents have in the affairs of the band. As I outlined in the previous section, the band council must give consent for expenditures of the band's capital and revenue moneys. The band's electors also control decisions about the surrender of band lands which are owned collectively by all band members. Second, the band council controls the allotment of land and by-laws relating to trespass and residence, which affect in important ways the ability to return and live on the reserve. Third, the council makes decisions about the availability of services that may be important to non-residents, particularly those who may live near the reserve. Also important is the role of band leadership in the work of the Assembly of First Nations and other Aboriginal organizations at the regional, national and international levels. All these factors show that the functions and powers of the band council have important significance for the lives of off-reserve band members. Denying them voting rights when band leadership is chosen through a system of democracy affects significant interests they have in band governance.

81 The importance many band members place on maintaining a connection to their cultural roots is also particularly significant. Maintaining one's cultural identity will mean different things to different off-reserve band members, but to many it will entail an identification of interests with their band. When band leadership is chosen through a democratic system, one of the most powerful expressions of identification with that band is through the exercise of voting. When certain band members are not given any say in that system, the denial of that voice affects their belonging and connection to the band of which they are members.

82 Moreover, the band council has the power to affect directly the cultural interests of those off-reserve band members who identify with their band and reserve. The Royal Commission on Aboriginal Peoples stated that sources of traditional Aboriginal culture include "contact with the land, elders, Aboriginal languages and spiritual ceremonies" (*Perspectives and Realities*, *supra*, at p. 522). As outlined in the previous section, the band council has many powers affecting access to the reserve, management of the reserve lands, and the expenditure of money for the welfare of the band. Furthermore, the "electors" of the band can vote on the surrender of band lands. The band council therefore has considerable power to safeguard, develop and promote the sources of traditional Aboriginal culture and to affect the access of off-reserve band members to these sources.

83 Historical circumstances that have had and continue to have repercussions for the members of this group add to the reasons why the interest affected by this legislation is of important societal significance for those in the position of the claimants. Indeed, the creation of the group of off-reserve Aboriginal people can be seen as a consequence, in part, of historic policies toward Aboriginal peoples. The Royal Commission on Aboriginal Peoples describes the relationship between the federal government and Aboriginal peoples during the period from the early 1800s to 1969 as one of "displacement and assimilation" (*Report of the Royal Commission on Aboriginal Peoples*, vol. 1, *Looking Forward*, *Looking Back*, at pp. 137-91).

84 Maintaining a connection with the band of which they are members is of particular importance to those in the position of the claimants because they often live apart from reserves due to factors that are likely largely beyond their control. Lack of land, what are often scarce job opportunities on reserves, and the need to go far from the community for schooling, are among the reasons that members left the reserve in the past, and continue to leave. There are also particular issues affecting Aboriginal women's migration: *Perspectives and Realities*, *supra*, at pp. 573-76. The fact that those affected or their ancestors may well have had no choice but to leave the reserve signals that the interest in keeping a connection with the band of which they are members is particularly important to them because the separation from other members of the band and the reserve may well have been undesired or unchosen.

85 A considerable number of the band members who live off-reserve recently gained or regained this status under Bill C-31. This legislation modified sections of the *Indian Act* that denied Indian status to various categories of band members, though not all those who were restored to status became members of a band. It is, therefore, helpful to examine the history of the legislation that removed Indian status from them or from their ancestors. I must emphasize that this discussion is in no way related to the constitutionality of Bill C-31, in general or in the context of particular bands. Rather, I refer to it for the purpose of examining the context underlying the current legislative distinction and showing why the interest affected is an important one for band members.

86 Many of those affected are women, and the descendants of women, who lost their Indian status because they married men who did not have Indian status (see Indian and Northern Affairs Canada, *Impacts of the 1985 Amendments to the Indian Act (Bill C-31)*: *Summary Report* (1990)). Aboriginal women who married outside their band became members of their husband's band. See, for example, *The Indian Act*, S.C. 1951, c. 29, ss. 12 and 14, now repealed. Legislation depriving Aboriginal women of Indian status has a long history. The involuntary loss of status by Aboriginal women and children began in Upper and Lower Canada with the passage of *An Act to encourage the gradual Civilization of the Indian Tribes in the Province*, *and to amend the Laws respecting Indians*, S. Prov. C. 1857, 20 Vict., c. 26. A woman whose husband "enfranchised" had her status removed along with his. This legislation introduced patriarchal concepts into many Aboriginal societies which did not exist before: see Public Inquiry into the Administration of Justice and Aboriginal People, *Report of the Aboriginal Justice Inquiry of Manitoba* (1991), vol. 1, *The Justice System and Aboriginal People*, at pp. 476-79. As the Royal Commission on Aboriginal Peoples stated in *Perspectives and Realities*, *supra*, at p. 26:

> In the pre-Confederation period, concepts were introduced that were foreign to Aboriginal communities and that, wittingly or unwittingly, undermined Aboriginal cultural values. In many cases, the legislation displaced the natural, community-based and self-identification approach to determining membership – which included descent, marriage, residency, adoption and simple voluntary association with a particular group – and thus disrupted complex and interrelated social, economic and kinship structures. Patrilineal descent of the type embodied in the *Gradual Civilization Act*, for example, was the least common principle of descent in Aboriginal societies, but through these laws, it became predominant. From this perspective, the *Gradual Civilization Act* was an exercise in government control in deciding who was and was not an Indian.

This continued in the *Gradual Enfranchisement Act*, S.C. 1869, c. 6. This legislation, for the first time, instituted the policy that women who married men without Indian status lost their own status, and their children would not receive status. The rationale for these policies, given at the time, focussed on concerns about control over reserve lands, and the need to prevent non-Indian men from gaining access to them (*Perspectives and Realities*, *supra*, at p. 27). These policies were continued and expanded upon with the passage of the *Indian Act* in 1876, and amendments to it in subsequent years, particularly a major revision that took place in 1951.

87 The 1951 legislation was challenged under the *Canadian Bill of Rights*, S.C. 1960, c. 44 (reprinted in R.S.C., 1985, App. III), in *Attorney General of Canada v. Lavell*, 1973 CanLII 175 (SCC), [1974] SCR 1349. The majority of this Court, using an approach to equality that was later rejected in *Andrews*, *supra*, held that the provisions did not violate the right to equality in the *Canadian Bill of Rights* and that even if they did, they could not be struck down as inconsistent with it.

88 These were not the only people who lost their status. The enfranchisement provisions of the *Indian Act* were designed to encourage Aboriginal people to renounce their heritage and identity, and to force them to do so if they wished to take a full part in Canadian society. In order to vote or hold Canadian citizenship, status Indians had to "voluntarily" enfranchise. They were then given a portion of the former reserve land in fee simple, and they lost their Indian status. At various times in history, status Indians who received higher education, or became doctors, lawyers, or ministers were automatically enfranchised. Those who wanted to be soldiers in the military during the two World Wars were required to enfranchise themselves and their whole families, and those who left the country for more than five years without permission also lost Indian status. (See L. Gilbert, *Entitlement to Indian Status and Membership Codes in Canada* (1996), at pp. 23-30.)

89 This history shows that Aboriginal policy, in the past, often led to the denial of status and the severing of connections between band members and the band. It helps show why the interest in feeling and maintaining a sense of belonging to the band free from barriers imposed by Parliament is an important one for all band members, and especially for those who constitute a significant portion of the group affected, who have been directly affected by these policies and are now living away from reserves, in part, because of them.

90 All these facts emphasize the importance, for band members living off-reserve, of having their voices included when band leadership is chosen through a process of common suffrage as set out in this legislation. They show why the interest in s. 77(1) is a fundamental one, and why the denial of voting rights in this context has serious consequences from the perspective of those affected. They show why there is not only economic, but also important societal significance to the interests affected by the differential treatment contained in s. 77(1): *Law*, *supra*, at para. 74.

(d) *Conclusions on the Third Stage of Analysis*

91 In summary, therefore, a contextual view of the people affected and the differential treatment in question leads to the conclusion that this legislative distinction conflicts with the purposes of s. 15(1). The people affected by this distinction, in general, are vulnerable and disadvantaged. They experience stereotyping and disadvantage as Aboriginal people and band members living away from reserves. They form part of a "discrete and insular minority" defined by race and residence, and it is more likely that further disadvantage will have a discriminatory impact upon them. Second, the distinction in question does not correspond with the characteristics or circumstances of the claimants and on-reserve band members in a manner which "respects and values their dignity and difference": *Law*, *supra*, at para. 28. The powers of the band council affect cultural, political, and financial interests and needs that are shared by band members living on and off the reserve. Third, the nature of the interests affected is fundamental. Given the form of representative democracy provided for in the *Indian Act*, failure to give any voice in that process to certain members of the band affects an important attribute of membership, and places a barrier between them and a community which has particular importance to them. The council and electors also make decisions about important financial, cultural, and political interests of the members that have important significance within the band and Canadian society. Finally, the interest affected is also significant because of the ways in which, in the past, ties between band members and the band or reserve have been involuntarily or reluctantly severed. Those affected or their parents may have left the reserve for many reasons that do not signal a lack of interest in the reserve given the various historical circumstances surrounding reserve communities in Canada such as an often inadequate land base, a serious lack of economic opportunities and housing, and the operation of past Indian status and band membership rules imposed by Parliament.

92 In the context of this vulnerable group, and these important interests, this distinction reinforces the stereotype that band members who do not live on reserves are "less Aboriginal", and less valuable members of their bands than those who do. A reasonable person in the position of the claimants, fully apprised of the context, would see the differential treatment contained in s. 77(1) as suggesting that off-reserve band members are less worthy or valuable as band members and members of Canadian society, and giving them less concern, respect and consideration than band members living on reserves. Based upon this finding of discriminatory impact, the third stage of analysis, the identification of discrimination based on a violation of substantive equality and human dignity in the circumstances of this case, has been satisfied.

93 The factors discussed above outline the context surrounding the differential treatment contained in s. 77(1) of the *Indian Act*. This case involves people who have generally experienced significant historical disadvantage, and interests that are particularly important to those affected by the legislation. Taken together, they lead to a finding that from a subjective-objective perspective, the differential treatment in question violates off-reserve band members' equality rights. Yet neither of these factors should be seen as essential to my conclusions. I would also note that my discussion of the general history of off-reserve band members does not suggest that the conclusion that this legislation violates s. 15(1) would not apply to a band affected by s. 77(1) whose off-reserve members had a different composition or history from that of the general population of off-reserve band members in Canada. Every case of alleged discrimination, of course, must be considered in its own legislative and social context to determine whether it violates the constitutional rights of those affected, but in this case, both the general disadvantage and vulnerability of those affected, and the importance to all band members of the affected interests are compelling factors in my conclusions at the third stage of analysis.

94 The above analysis also does not suggest that any distinction between on-reserve and off-reserve band members would be stereotypical, interfere with off-reserve members' dignity, or conflict with the purposes of s. 15(1). There are clearly important differences between on-reserve and off-reserve band members, which Parliament could legitimately recognize. Taking into account, recognizing, and affirming differences between groups in a manner that respects and values their dignity and difference are not only legitimate, but necessary considerations in ensuring that substantive equality is present in Canadian society. The current powers of the band council, as discussed earlier, include some powers that are purely local, affecting matters such as taxation on the reserve, the regulation of traffic, etc. In addition, those living on the reserve have a special interest in many decisions made by the band council. For example, if the reserve is surrendered, they must leave their homes, and this affects them in a direct way it does not affect non-residents. Though non-residents may have an important interest in using them, educational or recreational services on the reserve are more likely to serve residents, particularly if the reserve is isolated or the non-residents live far from it. Many other examples can be imagined.

95 Recognizing non-residents' right to substantive equality in accordance with the principle of respect for human dignity, therefore, does not require that non-residents have identical voting rights to residents. Rather, what is necessary is a system that recognizes non-residents' important place in the band community. It is possible to think of many ways this might be done, while recognizing, respecting, and valuing the different positions, needs, and interests of on-reserve and off-reserve band members. One might be to divide the "local" functions which relate purely to residents from those that affect all band members and have different voting regimes for these functions. A requirement of a double majority, or a right of veto for each group might also respect the full participation and belonging of non-residents. There might be special seats on a band council for non-residents, which give them meaningful, but not identical, rights of participation. The solution may be found in the customary practices of Aboriginal bands. There may be a separate solution for each band. Many other possibilities can be imagined, which would respect non-residents' rights to meaningful and effective participation in the voting regime of the community, but would also recognize the somewhat different interests of residents and non-residents. However, without violating s. 15(1), the voting regime cannot, as it presently does, completely deny non-resident band members participation in the electoral system of representation. Nor can that participation be minimal, insignificant, or merely token.

96 Therefore, I conclude that the present wording of s. 77(1) violates the right to equality without discrimination of the off-reserve members of bands affected by it. This finding is a general one, and is in no way related to the specific situation of the Batchewana Band. Since the provision has been found to be discriminatory as it applies to all bands affected by it, there is no need to consider the specific circumstances of the Batchewana Band.

D. *Section 1*

[L'Heureux-Dubé J set out the section 1 analytic framework from *Oakes*. She found that the legislation had a valid purpose by restricting the vote to those living on the reserve because on-reserve residents had a more direct interest in the decisions of the band council and need to maintain voting control over the decisions that affect the future of the reserve. But, she also found that the complete exclusion of non-residents from the right to vote violated their equality rights. The legislation therefore did not minimally impair the affected rights and could not be justified under s. 1.]

…

E. *Remedy*

[L'Heureux-Dubé J considered the appropriate remedy. She rejected a constitutional exemption for the Batchewana Band on the basis that the legislation applies to all bands and that it would place a heavy burden on off-reserve band members from different bands to take legal action to vindicate their equality claim. She also rejected the remedy of 'reading in' voting rights for non-residents into the *Indian Act* because it would interfere too much with the legislative scheme and usurp Parliament's ability to choose amongst various possible options in order to meet constitutional obligations and tailor the remedy on a band-by-band basis.]

116 There are a number of ways this legislation may be changed so that it respects the equality rights of non-resident band members. Because the regime affects band members most directly, the best remedy is one that will encourage and allow Parliament to consult with and listen to the opinions of Aboriginal people affected by it. The link between public discussion and consultation and the principles of democracy was recently reiterated by this Court in *Reference re Secession of Quebec*, 1998 CanLII 793 (SCC), [1998] 2 SCR 217, at para. 68: "a functioning democracy requires a continuous process of discussion". The principle of democracy underlies the Constitution and the *Charter*, and is one of the important factors guiding the exercise of a court's remedial discretion. It encourages remedies that allow the democratic process of consultation and dialogue to occur. In P. W. Hogg and A. A. Bushell, "The *Charter* Dialogue Between Courts and Legislatures (Or Perhaps the *Charter of Rights* Isn't Such A Bad Thing After All)" (1997), 35 *Osgoode Hall L.J.* 75, the authors characterize judicial review under the *Charter* as a "dialogue" between courts and legislatures. The remedies granted under the *Charter* should, in appropriate cases, encourage and facilitate the inclusion in that dialogue of groups particularly affected by legislation. In determining the appropriate remedy, a court should consider the effect of its order on the democratic process, understood in a broad way, and encourage that process. As Iacobucci J. observed in *Vriend*, *supra*, at para. 176:

> [T]he concept of democracy means more than majority rule as Dickson C.J. so ably reminded us in *Oakes*, *supra*. In my view, a democracy requires that legislators take into account the interests of majorities and minorities alike, all of whom will be affected by the decisions they make.

117 Constitutional remedies should encourage the government to take into account the interests, and views, of minorities. In this way, the principle of democracy that was recognized as an underlying principle of the Constitution in *Reference re Secession of Quebec*, *supra*, and was emphasized as an important remedial consideration in *Schachter*, *supra*, and *Vriend*, *supra*, will best be given expression.

118 The above principles suggest, in my view, that the appropriate remedy is a declaration that the words "and is ordinarily resident on the reserve" in s. 77(1) are invalid, and that the effect of this declaration of invalidity be suspended for 18 months. The suspension is longer than the period that would normally be allotted in order to give legislators the time necessary to carry out extensive consultations and respond to the needs of the different groups affected. It will also allow Parliament, if it wishes, to modify s. 77(2) at the same time, which contains the same residency requirement for bands whose councillors are elected in electoral sections, and which, given the values espoused in this decision, will also require revision to conform with s. 15(1). Severing the offending words from the rest of the statute will ensure that, should Parliament choose not to act, all non-residents will be included as voters under s. 77(1), but the nature of band governance and the requirements for voting will otherwise remain the same.

119 I recognize that suspending the effect of the declaration, combined with the extension of the suspension for such a long period is, in the words of the Chief Justice in *Schachter*, *supra*, at p. 716, "a serious matter from the point of view of the *Charter*. A delayed declaration allows a state of affairs which has been found to violate standards embodied in the *Charter* to persist for a time despite the violation". However, this best embodies the principles of respect for *Charter* rights and respect for democracy that should guide remedial considerations. Should Parliament decide to change the scheme, it will have an extended period of time in which to consult with those affected by the legislation and balance the affected interests in a manner that respects Aboriginal rights and all band members' equality interests. Should Parliament not change the scheme, off-reserve band members will gain voting rights within the existing scheme.

...

Section VI Disposition has also been omitted.

4.1.1.2 *Kahkewistahaw First Nation v Taypotat*, 2015 SCC 30, [2015] 2 SCR 548

The Election Code for Kahkewistahaw First Nation included a Grade 12 education requirement for candidates who wished to be Chief or a Band Councillor. Louis Taypotat, had previously served as Chief for a total of 27 years, having been elected under the *Indian Act* provisions. He was 76 years old at the time of the challenge and had a Grade 10 education. As a Chief and as a community member, he had also participated in the communal process of developing the Election Code, a process that took 13 years and which was open and public. In order to become valid, an election code requires ministerial authorization, part of which includes acknowledgement that the election code complies with the *Charter*. Once the code has been approved, candidates for Chief or Band Councillor have to demonstrate to the local Electoral Officer that they have met the stipulated requirements before they are permitted to run.

For the first election under the *Kahkewistahaw Election Act*, Taypotat submitted his documents to run for the position of Chief, but the Electoral Officer rejected his candidacy because he did not have a Grade 12 or equivalent level of education. As a result of the denial of the opportunity to stand as Chief, Taypotat sought judicial review of the certification process that was authorized by the *Kahkewistahaw Election Act*, despite his involvement in the creation of the code. He argued that the education requirement violated s.15(1) of the *Charter* because educational attainment is analogous to race and age.

At the Federal Court, de Montigny J dismissed his application because of a lack of evidence regarding the section 15 argument. Taypotat appealed—with 9 out of 10 arguments dismissed by the Federal Court of Appeal—and the Federal Court did not reject his argument that residential school survivors without a Grade 12 education constituted an analogous group for the purposes of s. 15. Instead, it based its decision on the grounds of age and residence on a reserve, which were not pleaded.

The *Kahkewistahaw Election Act* provided in article 5 that: "We believe and accept the fact that democracy is founded on the principle that everyone is equal and that no one is above the law". But, this articulation of the principle of equality embedded in the Act was not argued before the court. Instead, the Supreme Court focused on the s. 15(1) equality arguments made under the *Charter*. This case illustrates the difficulty of successfully establishing 'analogous grounds' under the *Charter*.

The judgment of the court was delivered by

[1] Abella J. — In the 1996 Report of the Royal Commission on Aboriginal Peoples, education was identified as a top priority for promoting collective and individual well-being in Aboriginal communities, and for helping those communities prepare to assume the complete range of responsibilities associated with self-government:

> In our public hearings, Aboriginal parents, elders, youth and leaders came forward to tell us of the vital importance of education in achieving their vision of a prosperous future. Education is seen as the vehicle for both enhancing the life of the individual and reaching collective goals.
>
> ...
>
> Over the past two decades, as the determination to re-establish self-governing nations has gathered momentum, Aboriginal people have repeatedly stressed the importance of building their capacity to operate contemporary self-governing structures. …
>
> …
>
> … Education is essential to hone the talents needed to assume the responsibilities of the present and future … .
>
> (*Report of the Royal Commission on Aboriginal Peoples*, vol. 3, *Gathering Strength* (1996), at pp. 433 and 540-41)

…

[15] While facially neutral qualifications like education requirements may well be a proxy for, or mask, a discriminatory impact, this case falls not on the existence of the requirement, but on the absence of any evidence linking the requirement to a disparate impact on members of an enumerated or analogous group.

Analysis

[Abella J set out the approach to section 15.]

…

[22] The question in this case is which "enumerated or analogous group" faces discrimination, and whether Mr. Taypotat has established that the education requirement set out in the *Kahkewistahaw Election Act* has a disproportionate effect on the members of any such group.

[23] There is no question that education requirements for employment could, in certain circumstances, be shown to have a discriminatory impact in violation of s. 15. In *Griggs v. Duke Power Co.*, 401 U.S. 424 (1971), for example, the United States Supreme Court concluded that it was a violation of Title VII of the *Civil Rights Act of 1964* for an employer to require that employees have a high school diploma to work as,

among other things, a coal handler or in maintenance at a power plant. The effect of this facially neutral requirement was to disproportionately exclude African Americans from positions in the plant. The court concluded that:

> … practices, procedures, or tests neutral on their face, and even neutral in terms of intent, cannot be maintained if they operate to "freeze" the status quo of prior discriminatory employment practices. [p. 430]

As the court observed, employment requirements that are unrelated to measuring job capability can operate as "built-in headwinds" for minority groups, and will therefore be discriminatory: p. 432. See also *British Columbia (Public Service Employee Relations Commission) v. BCGSEU*, 1999 CanLII 652 (SCC), [1999] 3 SCR 3.

[24] In this case, however, there is virtually no evidence about the relationship between age, residency on a reserve, and education levels in the Kahkewistahaw First Nation to demonstrate the operation of such a "headwind". Nor is there any evidence about the effect of the education provisions on older community members, on community members who live on a reserve, or on individuals who belong to both of these groups.

[25] That may well be because the bases on which the Federal Court of Appeal decided the s. 15 issue — age and residence on a reserve — were not pleaded by Louis Taypotat either in his judicial review application or as a ground of appeal from the Federal Court to the Federal Court of Appeal. The Federal Court of Appeal instead appears to have raised the issues on its own initiative.

[26] In *R. v. Mian*, 2014 SCC 54 (CanLII), [2014] 2 SCR 689, at para. 41, this Court clarified that an appellate court may only raise new issues on its own initiative when failing to do so would risk an injustice. The court must also be satisfied that there is a "sufficient basis in the record on which to resolve the issue": para. 51. The Federal Court of Appeal's decision to raise the issue of residence on a reserve on its own initiative is particularly troubling because "residence on a reserve" has not been recognized as an analogous ground for the purposes of s. 15. *Corbiere* recognized *off-reserve* residence as an analogous ground, but declined to address whether residence on a reserve would similarly trigger the protection of s. 15: paras. 6 and 62. The Court's recognition of off-reserve residence as an analogous ground in *Corbiere* relied in part on the argument that First Nations people living off-reserve have experienced unique disadvantages relative to community members living on a reserve and that, for many, the decision to live off-reserve was either forced or heavily constrained. With respect, I would be reluctant to impose a simple mirror inference without argument or evidence from the parties.

[27] In this case, there was no factual record to support deciding the appeal as a violation of the s. 15 rights of community members who live on a reserve. Most significantly, the record is silent about the education levels of members of the Kahkewistahaw First Nation who live on a reserve. The only evidence on the record dealing with education and residence on a reserve covers First Nations persons between 20 and 24 in Saskatchewan as a whole. The data does not address education levels among other age groups: John Richards, *Closing the Aboriginal/non-Aboriginal Education Gaps* (2008) (online) (the "C.D. Howe Report"), at p. 4.

[28] Finally, even if it had been properly raised and argued by the parties, I have serious doubts about the merits of the argument that the education requirements in the *Kahkewistahaw Election Act* have the effect of imposing arbitrary disadvantage on community members based on their residence on the reserve. The *Kahkewistahaw Election Act* specifically requires that the Chief and three of the four Councillors *must* reside on the reserve during their term: ss. 9.04 and 9.05. Far from having the effect of excluding community members who live on the reserve, the *Kahkewistahaw Election Act* is specifically designed to foster their participation in community governance. As a result, in the context of the *Kahkewistahaw Election Act* as a whole, it is difficult to conclude that it has the effect of perpetuating arbitrary disadvantage against these community members.

[29] Accordingly, in my view the Court of Appeal erred in concluding that the education provisions in the *Kahkewistahaw Election Act* represent a *prima facie* violation of the s. 15 rights of community members who live on the reserve.

[30] Turning to the conclusion reached by the Federal Court of Appeal that the education requirements discriminate against older members of the community, we confront similar evidentiary vacuums. The Federal Court of Appeal relied on two pieces of statistical evidence in support of this conclusion. The first was data from the 2006 census, about which the Federal Court of Appeal took judicial notice. That data showed that

> 15% of Canadians between the age of 25 and 64 had less than a high school education. However, this number increases considerably with age, ranging from 11% for 25-34 year olds to 23% for 55-64 year olds: Statistics Canada, *Educational Portrait of Canada*, 2006 Census (Ottawa: Minister of Industry, 2008) at p. 10 (Catalogue number 97-560). [para. 52]

[31] Census data can certainly be a useful evidentiary tool to demonstrate that a law has a disadvantaging impact. But this case is about a particular Election Code in a particular First Nations community. I find it difficult to draw even a weak inference about the correlation between age and education among the almost 2000 members of the Kahkewistahaw First Nation from census data about the Canadian population generally. As a result, in my respectful view, the Court of Appeal erred in taking judicial notice of this data as a key to its conclusion that the Kahkewistahaw First Nation's Election Code would have a disadvantaging effect on older community members.

[32] The second statistical basis for the Federal Court of Appeal's finding was aggregate educational data in the C.D. Howe Report dealing with all aboriginal people in Canada: pp. 4-5. The Federal Court of Appeal used this data to conclude that the provision would have a disproportionate impact on older community members in the Kahkewistahaw First Nation. But the data relates to all Aboriginal people in Canada, including the Métis, the Inuit, and First Nations. It is less helpful in shedding light on the relationship between age and education in the specific context of the members of the Kahkewistahaw First Nation. It captures a vastly larger, more diverse population than the community affected by the Code in this case and does not meaningfully illuminate whether and to what extent the Grade 12 education requirement functions to disadvantage older community members of the Kahkewistahaw First Nation.

[33] Finally, in his submissions before this Court, Mr. Taypotat reframed the Federal Court of Appeal's conclusion slightly, asserting that the education provisions discriminate against *older community members who live on a reserve*, rather than, as the Court of Appeal found, against both older community members *and* those who live on the reserve. On this issue, too, the record is silent and we are left only with Mr. Taypotat's bare assertion. This is not to say that statistical evidence is invariably required to establish that a facially neutral law infringes s. 15. In some cases, the disparate impact on an enumerated or analogous group will be apparent and immediate. The evidence in this case, however, does not point to any such link between the education requirement and a disparate impact on the basis of an enumerated or analogous ground.

[34] I think intuition may well lead us to the conclusion that the provision has some disparate impact, but before we put the Kahkewistahaw First Nation to the burden of justifying a breach of s. 15 in its *Kahkewistahaw Election Act*, there must be enough evidence to show a *prima facie* breach. While the evidentiary burden need not be onerous, the evidence must amount to more than a web of instinct. The evidence before us, even in combination, does not rise to the level of demonstrating any relationship between age, residence on a reserve, and education among members of the Kahkewistahaw First Nation, let alone that arbitrary disadvantage results from the impugned provisions.

[35] I would therefore allow the appeal with costs and restore the decision of de Montigny J.

4.1.1.3 *Dickson v Vuntut Gwitchin First Nation*, 2024 SCC 10 (CanLII) (Dickson)

Of the three cases in this section, Vuntut Gwitchin First Nation exercises the fullest form of self-determination because it has a self-government agreement. Despite this self-government agreement, a majority of the justices at the Supreme Court of Canada held that the *Charter* applied. Rowe J, in dissent, concluded that the *Charter* was only meant to apply to federal and provincial governments, not Indigenous. The core issue was how to read section 25 of the *Charter*, especially in the context of self-government: should section 25 shield self-governing Indigenous communities unless they have voluntarily committed to the application of the *Charter*? In other words, if self-government is an Aboriginal right, then the *Charter* should not infringe that right by limiting Indigenous governments. Alternatively, and looking to the interaction of the *Charter* with both administrative and the common law, are self-governing Indigenous communities immune from the reach of *Charter* values? As it currently stands, section 25 provides circumscribed immunity from the *Charter*.

Read the reasons given by the majority, concurrence, and dissent. With which decision are you most in agreement?

The judgment of Wagner C.J. and Côté, Kasirer and Jamal JJ. was delivered by

Kasirer and Jamal JJ. —

I. Overview

[1] As a self-governing Indigenous community in the Yukon, the Vuntut Gwitchin First Nation (or the VGFN) has its own Constitution that provides for certain rights and freedoms for its citizens, rules for the organization of its government, as well as electoral rules and standards. At the heart of this appeal is a requirement in the VGFN Constitution that the elected Chief and Councillors reside on the settlement land of the First Nation, or relocate there within 14 days of the election. The VGFN's seat of government is based in Old Crow, a village located about 800 kilometres north of Whitehorse in the traditional territory of the Vuntut Gwitchin and constituting the VGFN's main community in its settlement land.

[2] Cindy Dickson, a citizen of the VGFN and of Canada, lives in Whitehorse and is constrained, for personal reasons, to stay there. She wishes to stand for election as a VGFN Councillor and says the residency requirement discriminates against her as a non-resident of the settlement land. She brought a petition in the Supreme Court of Yukon arguing that the requirement violates both her right to equality guaranteed under s. 15(1) of the *Canadian Charter of Rights and Freedoms* and her right to equality guaranteed by Article IV of the VGFN Constitution (in this Court, Ms. Dickson did not pursue her original challenge based on the equality guarantee in the VGFN Constitution).

[3] Here the debate has focused on the application of the *Charter* to the VGFN, the ambit of Ms. Dickson's equality right under s. 15(1), and the proper interpretation of s. 25 of the *Charter*. The VGFN says the *Charter* does not apply to it as a self-governing First Nation. Alternatively, should the *Charter* apply, the residency requirement does not violate Ms. Dickson's right to equality and, even if it did, the requirement is nevertheless valid as it is "shielded" by s. 25 of the *Charter*. Specifically, the VGFN submits that the residency requirement protects collective minority rights relating to its traditional Indigenous modes of government and leadership. As a collective Indigenous right, the provision of the VGFN Constitution cannot be abrogated or derogated from by Ms. Dickson's individual *Charter* right.

[4] This appeal raises two novel issues bearing on the application of the *Charter* to a self-governing Indigenous community. First, it invites the Court to consider whether, pursuant to s. 32(1) of the *Charter*, the VGFN is a government by nature or whether it is exercising a governmental activity so that Ms. Dickson's individual *Charter* right would apply to its residency requirement. Second, if the *Charter* does apply to the VGFN, the Court must determine whether s. 25 can be invoked by the VGFN to shield the residency requirement from Ms. Dickson's *Charter* challenge. Both the Supreme Court of Yukon and the Court of Appeal held that the *Charter* applied and that if Ms. Dickson's s. 15(1) equality right was infringed, the residency requirement was shielded by s 25. Ms. Dickson appealed on the question of the constitutional validity of the residency requirement, and the VGFN cross-appealed on the question of the application of the *Charter*.

[5] We would dismiss Ms. Dickson's appeal. The *Charter* applies to the VGFN and to its citizens like Ms. Dickson, principally, but not only, because the VGFN is a government by nature. The circumstances here show that for Indigenous communities, s. 32(1) and s. 25 are intimately connected. It is true that the application of individual *Charter* rights to a self-governing Indigenous community may be thought to inhibit the pursuit of rules designed to protect minority Indigenous rights and interests. But s. 25, by providing protection for collective Indigenous interests as a social and constitutional good for all Canadians, acts as a counterweight. Properly understood, s. 25 allows for the assertion of individual *Charter* rights except where they conflict with Aboriginal rights, treaty rights, or "other rights or freedoms" that are shown to protect Indigenous difference.

[6] While Ms. Dickson has succeeded in showing a *prima facie* infringement of her right to equality under s. 15(1) of the *Charter*, as a non-resident seeking election to the VGFN government, the VGFN has satisfied us that s. 25 protects its residency requirement from abrogation or derogation by her *Charter* right. Tied to ancient practices of government that connect leadership of the VGFN community to the settlement land, the residency requirement protects Indigenous difference and, pursuant to s. 25, cannot be abrogated or derogated from by Ms. Dickson's individual *Charter* right with which it is in irreconcilable conflict.

II. Background

A. *The Parties*

[7] The appellant, Cindy Dickson, is a Canadian citizen and a citizen of the respondent, the VGFN, whose traditional territory is in northern Yukon. The VGFN's seat of government is in the village of Old Crow, which is located in the VGFN's settlement land. Ms. Dickson currently lives in Whitehorse, the capital of the Yukon, about 800 kilometres south of Old Crow.

[8] Old Crow is the northernmost community in the Yukon and the most northwest in Canada. Because there are no all-season roads to Old Crow, the community is regularly accessible only by plane: it is a "fly in, fly out" community. About 260 VGFN citizens live in Old Crow; about 301 VGFN citizens live elsewhere, primarily in Whitehorse but also in other parts of Canada. The Vuntut Gwitchin were traditionally a nomadic people.

[9] During her lifetime, Ms. Dickson has lived in both Whitehorse and Old Crow, in other Yukon communities, and in Victoria, British Columbia. She was born in Whitehorse, lived in Old Crow from the age of 9 to 16, and then moved back to Whitehorse to finish high school because Old Crow did not have a full high school program. She visited during the summers and still owns a cabin there. She also has family and friends in Old Crow.

B. *Ms. Dickson's Constitutional Challenge*

[10] Ms. Dickson wishes to stand for election as a VGFN Councillor — a paid full-time position. In her petition before the Supreme Court of Yukon, she asserted that her right to equality under s. 15(1) of the *Charter*, or in the alternative, under the equality guarantee in Article IV of the VGFN Constitution, is unjustifiably infringed by a provision of the VGFN Constitution requiring the elected Chief and Councillors to reside on the VGFN's settlement land at the time of their election or to relocate there within 14 days after their election. She says she cannot move to Old Crow largely because her son requires access to medical care unavailable there, but also because her job and her son's father are in Whitehorse.

[11] The VGFN says the residency requirement reflects the VGFN's longstanding practice that its Chief and Councillors live on its traditional territory. As the trial judge found, the Vuntut Gwitchin have governed themselves according to their traditional practices since well before Confederation. From time immemorial, all VGFN Chiefs and Councillors have lived on the VGFN's traditional territory. In the last 30 years, they have always lived in Old Crow. Under funding arrangements with the federal and Yukon governments, most programs and services administered by the VGFN government are for VGFN citizens living on the VGFN's settlement land.

C. *Legal Framework for VGFN Self-Government and the Residency Requirement*

[12] Ms. Dickson's challenge to the residency requirement arises in the context of the legal framework established by the modern land claim treaty process and self-government agreements among the VGFN and the federal and Yukon governments. That framework involves an "umbrella agreement" negotiated with all 14 of the Yukon First Nations, as well as specific modern treaties and self-government agreements with 11 individual First Nations, including the VGFN, which have been approved and given effect by federal and territorial legislation.

[13] Ms. Dickson's challenge also arises in the context of the legal framework of self-government cultivated by the Vuntut Gwitchin since time immemorial. Many aspects of that framework are reflected in the VGFN Constitution. The residency requirement is said to be grounded in the culture, law, and values of the Vuntut Gwitchin, and to be an expression of their longstanding land-based governance system.

(1) The Umbrella Agreement

[14] In 1993, after 20 years of negotiation, representatives of all Yukon First Nations and the federal and Yukon governments concluded an "umbrella agreement" to establish a framework for modern comprehensive land claims agreements in the Yukon. The umbrella agreement contemplated specific agreements between the federal government, the Yukon government, and individual First Nations that would be constitutionally protected as treaties under s. 35 of the *Constitution Act, 1982*.

[15] The umbrella agreement has been described as a "monumental achievement" (*Beckman v. Little Salmon/Carmacks First Nation*, 2010 SCC 53, [2010] 3 SCR 103, at para. 2). It established a framework for Indigenous self-government and the management of land and resources by Yukon First Nations. Under treaties concluded after "lengthy negotiations between well-resourced and sophisticated parties", the Yukon First Nations "surrendered their Aboriginal rights in almost 484,000 square kilometres, roughly the size of Spain, in exchange for defined treaty rights in respect of land tenure and a quantum of settlement land (41,595 square kilometres), access to Crown lands, fish and wildlife harvesting, heritage resources, financial compensation, and participation in the management of public resources" (para. 9).

[16] The umbrella agreement has also been called a "model for reconciliation" (*First Nation of Nacho Nyak Dun v. Yukon*, 2017 SCC 58, [2017] 2 SCR 576, at para. 10). The 11 specific treaties negotiated under this agreement promote reconciliation "not only by addressing grievances over the land claims but by creating the legal basis to foster a positive long-term relationship" between Indigenous and non-Indigenous communities and by placing that relationship "in the mainstream legal system with its advantages of continuity, transparency, and predictability" (*Beckman*, at paras. 10 and 12). The Yukon treaties are modern treaties with a "*sui generis* nature" that "set out in precise terms a co-operative governance relationship" (*First Nation of Nacho Nyak Dun*, at para. 33).

(2) The VGFN Final Agreement

[17] In 1993, the VGFN and the federal and Yukon governments concluded the Vuntut Gwitchin First Nation Final Agreement, a land claim agreement under the framework of the umbrella agreement. The Final Agreement provides for the negotiation of a self-government agreement addressing a host of the VGFN's self-government powers "in conformity with the Constitution of Canada" (s. 24.1.2). It also states that any self-government agreement "shall not affect" the rights of VGFN persons "as Canadian citizens" and, unless otherwise provided under a self-government agreement or legislation enacted thereunder, "their entitlement to all of the services, benefits and protections of other citizens applicable from time to time" (s. 24.1.3). Among other things, the Final Agreement provides that, in order to be tax exempt under s. 149(1) of the *Income Tax Act*, R.S.C. 1985, c. 1 (5th Supp.), the VGFN would be conferred the status of a "municipality or public body performing the functions of government or a municipal corporation" (s. 24.8.1). Absent agreement to the contrary, the VGFN is restricted "to the provision of government or other public services", and is not permitted to engage in commercial activities (s. 24.8.2).

[18] Like the other Yukon First Nations land claim agreements, the VGFN's Final Agreement has been approved and given effect by federal and territorial legislation. It has also been given the status of a treaty under s. 35 of the *Constitution Act, 1982* (see *Yukon First Nations Land Claims Settlement Act*, S.C. 1994, c. 34, s. 6(1); *An Act Approving Yukon Land Claim Final Agreements*, R.S.Y. 2002, c. 240, s. 2). The federal legislation provides that the *Indian Act*, R.S.C. 1985, c. I-5, no longer applies to the VGFN settlement land, but otherwise federal and territorial laws generally continue to apply to the VGFN and its settlement land (*Yukon First Nations Land Claims Settlement Act*, ss. 12 and 13).

(3) The VGFN Self-Government Agreement, the Self-Government Legislation, and the VGFN Constitution

(a) *The VGFN's Self-Government Agreement*

[19] As contemplated by the Final Agreement, the VGFN and the federal and Yukon governments concluded the Vuntut Gwitchin First Nation Self-Government Agreement (1993), which states that the VGFN "shall have" self-government powers, including, among other things, the power to adopt a VGFN Constitution (s. 10.0), legislative powers (s. 13.0), and taxation powers (s. 14.0).

[20] As required by the Final Agreement, the Self-Government Agreement "shall not affect the rights of [VGFN] Citizens as Canadian citizens", and, unless otherwise provided pursuant to the Self-Government Agreement or a law enacted by the VGFN, "the entitlement of [VGFN] Citizens to all of the benefits, services, and protections of other Canadian citizens applicable from time to time" (s. 3.6).

[21] The Self-Government Agreement, unlike the Final Agreement, does not have the status of a treaty under s. 35 of the *Constitution Act, 1982* (Final Agreement, at s. 24.12.1). Even so, this does not preclude the VGFN from later acquiring constitutional protection for self-government under future constitutional amendments, if agreed to by the VGFN and the federal government (Final Agreement, at s. 24.12.2).

[22] The VGFN says that the Final Agreement and the Self-Government Agreement are silent regarding the application of the *Charter*, and that during the negotiations it opposed provisions that would have applied the *Charter* to VGFN self-government. The VGFN's position is that the "VGFN did not agree the *Charter* would apply. Instead, [it] enacted [its] own *Constitution*, which provides protection for individual rights of VGFN Citizens within contemporary VGFN self-governance" (R.F., at para. 3).

(b) *The Self-Government Legislation*

[23] The VGFN's Self-Government Agreement has been approved and given effect by federal and territorial legislation (*Yukon First Nations Self-Government Act*, S.C. 1994, c. 35; *First Nations (Yukon) Self-government Act*, R.S.Y. 2002, c. 90). The Yukon legislation approves the various self-government agreements and gives them "the force of law" (s. 2). The federal legislation regulates the exercise of self-government powers by Yukon First Nations in greater detail:

- Yukon First Nation self-government agreements are to be "in accordance with the Constitution of Canada" (preamble).

- Each of the Yukon First Nations is "a legal entity having the capacity, rights, powers and privileges of a natural person" (s. 7). Further, each Yukon First Nation "succeeds to the rights, titles, interests, obligations, assets and liabilities of its predecessor band [which was constituted as a band under the *Indian Act*] and that band ceases to exist" (ss. 2, 6(1) and Sch. I).
- The constitution of a Yukon First Nation "shall", among other matters, "in a manner consistent with its self-government agreement, provide for … the governing bodies of the first nation and their composition, membership, powers, duties and procedures" and "the recognition and protection of the rights and freedoms of citizens" (s. 8(1)(b) and (d)).
- Federal and territorial laws apply to Yukon First Nations (s. 16), except for the *Indian Act*, which no longer applies to Yukon First Nations, other than to register First Nation citizens as "Indians" (s. 17(1)).
- The federal legislation prescribes rules and procedures for a Yukon First Nation's exercise of lawmaking authority. Yukon First Nations must maintain a register of laws and adopt procedures for the registration of laws, and the federal legislation stipulates rules for the commencement and proof of laws (s. 10). The federal legislation also lists the specific legislative powers that Yukon First Nations may exercise (s. 11 and Sch. III).
- Each Yukon First Nation is deemed to be "a public body performing a function of government in Canada" in order to be tax exempt under s. 149(1)(c) of the *Income Tax Act* (s. 18(1)).
- For greater certainty, the Yukon First Nation settlement lands are stated to "remain lands reserved for the Indians within the meaning of class 24 of section 91 of the *Constitution Act, 1867*" (s. 22(4)).

(c) *The VGFN Constitution*

[24] In accordance with the federal legislation, the VGFN Constitution details how the VGFN is governed, and it is stated to be the supreme law of the VGFN, subject only to the VGFN's Self-Government Agreement (Article II(3)). The VGFN Constitution states that "[t]he seat of government for the Vuntut Gwitchin First Nation shall be located within Settlement Land" (Article II(2)). As noted above, the Self-Government Agreement decrees that it "shall not affect the rights of [VGFN] Citizens as Canadian citizens" (s. 3.6.1).

[25] The rights and freedoms set out in the VGFN Constitution are themselves "subject only to such reasonable limits as can be demonstrably justified in a free and democratic Vuntut Gwitchin society" (Article IV(1)). The VGFN Constitution guarantees certain rights of VGFN citizens (Article IV), including the right of individuals to be equal before and under the laws of the VGFN and the right to the equal protection and benefit of VGFN law without discrimination (Article IV(7)). The Constitution states that every VGFN citizen "has the right to make political choices, to participate in political activities, and to express a view on any public issue" (Article IV(3)). The Constitution also outlines the organization of the VGFN government (Article V), and establishes an elected Council to govern the VGFN consisting of one Chief and four Councillors (Article VIII).

[26] Under the VGFN Constitution, a VGFN citizen who seeks to run for the position of Chief or Councillor must be 18 years or older and have no indictable offence convictions for five years before the election (Article XI(1)). Candidates for office must also meet the residency requirement — they must reside on the VGFN's settlement land or relocate there "within 14 days after election day" (Article XI(2)). This is the provision challenged by Ms. Dickson.

[27] The validity of a VGFN law (including the VGFN Constitution) may be challenged in the Yukon Supreme Court until the VGFN establishes its own court (Article II(5)). To date, no VGFN court has been established.

III. Judicial History

[The summary of the lower court decisions is omitted.]

…

IV. Relevant Constitutional Provisions

[The Majority set out the relevant provisions of the *Charter*: sections 1, 15(1), 25, and 32(1).]

…

Vuntut Gwitchin First Nation Constitution

ARTICLE II — VUNTUT GWITCHIN FIRST NATION AUTHORITY/LOCATION

2. The seat of government for the Vuntut Gwitchin First Nation shall be located within Settlement Land as advised by the General Assembly.

3. This Constitution is the supreme law of the Vuntut Gwitchin First Nation, subject only to the:

(a) Vuntut Gwitchin First Nation Self-Government Agreement; and

(b) rights and freedoms set out in this Constitution.

ARTICLE XI — TERMS OF OFFICE AND QUALIFICATIONS

1. Any person desiring to run for Chief or Councillor must meet the following qualifications:

(a) Be 18 years or older;

(b) Be ordinarily resident in Canada;

(c) No indictable offence convictions for 5 years preceding the election; and

(d) Be a [VGFN] Citizen.

2. If an eligible candidate for Chief or Councillor does not reside on Settlement Land during the election and wins their desired seat they must relocate to Settlement Land within 14 days after election day.

V. Issues

[39] This appeal raises two issues. The first issue is whether the *Charter* applies to the VGFN's residency requirement. If the *Charter* applies, the second issue is whether the residency requirement unjustifiably infringes s. 15(1) of the *Charter* by barring Ms. Dickson from serving on the VGFN Council unless she moves from Whitehorse to Old Crow within 14 days of her election to the VGFN Council. The second issue requires the Court to consider the framework for analyzing whether Ms. Dickson's s. 15(1) *Charter* right, properly construed, abrogates or derogates from an Aboriginal, treaty, or other right or freedom pertaining to the Aboriginal peoples of Canada under s. 25 of the *Charter*, as well as the consequences that follow if it does, and those that follow if it does not.

VI. Analysis

A. *Does the Charter Apply to the VGFN's Residency Requirement?*

[The Court's discussion of s. 32(1) is omitted. See Chapter 18, Part 2.1.1 for discussion of this issue.]

…

(2) Indigenous Self-Government and the *Charter*

[46] Before considering whether the *Charter* applies to the VGFN's residency requirement, it is useful to review the historical and policy context for Indigenous self-government in Canada, including under the Charlottetown Accord of 1992, the federal government's "Inherent Right Policy" since 1995, and the final Report of the Royal Commission on Aboriginal Peoples published in 1996. It is also useful to review how courts have consistently applied the *Charter* to Indigenous governments.

[47] As a preliminary matter, we note that although this Court has yet to recognize an inherent right to Indigenous self-government as an Aboriginal right protected under s. 35 of the *Constitution Act, 1982* (see *R. v. Pamajewon*, 1996 CanLII 161 (SCC), [1996] 2 SCR 821, at para. 24; *Delgamuukw v. British Columbia*, 1997 CanLII 302 (SCC), [1997] 3 SCR 1010, at para. 171), an inherent right to Indigenous self-government has now been affirmed on the international plane by Article 4 of the *United Nations Declaration on the Rights of Indigenous Peoples*, U.N. Doc. A/RES/61/295, October 2, 2007. In 2016, the Canadian government supported the Declaration and committed to adopt and implement it in accordance with the Canadian Constitution. Recent federal legislation has affirmed the Declaration as "a universal international human rights instrument with application in Canadian law" and provides "a framework for the Government of Canada's implementation of the Declaration" (*United Nations Declaration on the Rights of Indigenous Peoples Act*, S.C. 2021, c. 14 ("*UNDRIP Act*"), s. 4). For example, the Declaration has been implemented specifically in respect of the provision of Indigenous child and family services under the *Act respecting First Nations, Inuit and Métis children, youth and families*, S.C. 2019, c. 24 (see *Reference re An Act respecting First Nations, Inuit and Métis children, youth and families*, 2024 SCC 5).

(a) *The Charlottetown Accord of 1992*

[48] Section 32(1) of the *Charter* does not expressly provide that the *Charter* applies to Indigenous governments. However, the *Draft Legal Text* of the Charlottetown Accord of 1992 had proposed to amend s. 32 of the *Charter* to recognize, in s. 32(1)(c), that the *Charter* applies "to all legislative bodies and governments of the Aboriginal peoples of Canada in respect of all matters within the authority of their respective legislative bodies" (p. 36). It had also proposed to add a new s. 35.1 of the *Constitution Act, 1982* to provide in part that "[t]he Aboriginal peoples of Canada have the inherent right of self-government within Canada" (p. 37). The Accord was approved by the federal, provincial, and territorial governments and by the Assembly of First Nations, Inuit Tapirisat of Canada, Native Council of Canada, and Métis National Council, but was not ratified because it did not receive the support of a majority of Canadians in a national referendum (see Hogg and Wright, §§ 4:3 and 28:42). Even so, it is noteworthy that these proposed constitutional amendments saw the inherent right to self-government as compatible with the obligation of Indigenous governments to comply with the *Charter*.

(b) *Federal Government Policy Since 1995*

[49] Despite the failure of the Charlottetown Accord, since 1995 the federal government's policy, first articulated under its "Inherent Right Policy", has been that Indigenous peoples in Canada have an inherent right to self-government guaranteed under s. 35 of the *Constitution Act, 1982*, but also that the *Charter* applies to Indigenous governments. The policy recognizes the historical fact that Indigenous peoples were living in self-governing communities before Europeans arrived, and seeks to ensure that Indigenous governments, like other governments in Canada, comply with the *Charter*. The federal government sees these two policy objectives as compatible. As the Government of Canada explained in its "Inherent Right Policy":

> The Government is committed to the principle that the *Canadian Charter of Rights and Freedoms* should bind all governments in Canada, so that Aboriginal peoples and non-Aboriginal Canadians alike may continue to enjoy equally the rights and freedoms guaranteed by the Charter. Self-government agreements, including treaties, will, therefore, have to provide that the *Canadian Charter of Rights and Freedoms* applies to Aboriginal governments and institutions in relation to all matters within their respective jurisdictions and authorities.
>
> The Charter itself already contains a provision (section 25) directing that it must be interpreted in a manner that respects Aboriginal and treaty rights, which would include, under the federal approach, the inherent right. The Charter is thus designed to ensure a sensitive balance between individual rights and freedoms, and the unique values and traditions of Aboriginal peoples in Canada.
>
> (Crown-Indigenous Relations and Northern Affairs Canada, *The Government of Canada's Approach to Implementation of the Inherent Right and the Negotiation of Aboriginal Self-Government*, last updated March 1, 2023 (online); see also Crown-Indigenous Relations and Northern Affairs Canada, *General Briefing Note on Canada's Self-government and Comprehensive Land Claims Policies and the Status of Negotiations*, last updated August 16, 2016 (online).)

[50] Since 1995, the federal government has negotiated many self-government agreements with Indigenous communities across Canada, which have recognized that the *Charter*, the *Canadian Human Rights Act*, R.S.C. 1985, c. H-6, and the *Criminal Code*, R.S.C. 1985, c. C-46, continue to apply to Indigenous peoples (Crown-Indigenous Relations and Northern Affairs Canada, *Self-government*, last updated August 25, 2020 (online); see, e.g., the Tsawwassen First Nation Final Agreement (2007), c. 2, s. 9, which provides that the *Charter* applies to the Tsawwassen government in respect of all matters within its authority; Nisga'a Final Agreement (1999), c. 2, s. 9; Maa-nulth First Nations Final Agreement (2009), s. 1.3.2). The federal government has also affirmed that self-government agreements negotiated before 1995 will, as a general principle, "continue to operate according to their existing terms" (*The Government of Canada's Approach to Implementation of the Inherent Right and the Negotiation of Aboriginal Self-Government*). This includes the Self-Government Agreement with the VGFN.

(c) *The Legal Policy Debate About Applying the Charter to Indigenous Governments*

[51] Shortly after the failure to ratify the 1992 Charlottetown Accord, the Royal Commission on Aboriginal Peoples extensively studied whether the *Charter* should apply to Indigenous governments exercising inherent self-government powers. The Royal Commission concluded that the *Charter* applies, but in accordance with s. 25, it should be "given a flexible interpretation that takes account of the distinctive philosophies, traditions and cultural practices of Aboriginal peoples" (*Report of the Royal Commission on Aboriginal Peoples* ("RCAP Final Report"), vol. 2, *Restructuring the Relationship* (1996), at p. 234). We will return later to the Royal Commission's perspective on the intimate connection between ss. 32 and 25 of the *Charter*. That perspective takes a broad view of the application of the *Charter* to Indigenous governments under s. 32(1), but also interprets the *Charter* under s. 25 with sensitivity to the collective rights of Indigenous peoples, to protect what the Royal Commission referred to as their "distinctive philosophies, traditions and cultural practices" — or what Professor Patrick Macklem has encapsulated in the term "[I]ndigenous difference" (*Indigenous Difference and the Constitution of Canada* (2001)). As we explain below, s. 25 was included in the *Charter* as a protection for the distinctive minority rights of Indigenous peoples that might be abrogated or derogated from by the application of individual *Charter* rights.

[52] The RCAP Final Report, published in 1996, described two approaches to addressing whether the *Charter* applies to Indigenous governments exercising inherent self-government powers. The first approach claims that Indigenous governments should be bound by the *Charter* as a matter of basic constitutional principle, because "it would be highly anomalous if Canadian citizens enjoyed the protection of the Charter in their relations with every government in Canada except for Aboriginal governments" (vol. 2, at p. 227). This approach does not see the *Charter* as necessarily inconsistent with Indigenous values, because the *Charter* itself is "modelled on international standards with universal application" (p. 228).

[53] The second approach described by the RCAP Final Report asserts that Indigenous governments should not be bound by the *Charter*, because Indigenous peoples did not "consen[t] to the application of the Charter in a binding constitutional instrument, such as a self-government treaty with the Crown" (vol. 2, at p. 228). It also claims that "some Charter provisions reflect individualistic values that are antithetical to many Aboriginal cultures, which place greater emphasis on the responsibilities of individuals to their communities" (p. 230). This approach claims that applying the *Charter* to Indigenous governments "could hamper and even stifle the efforts of Aboriginal nations to revive and strengthen their cultures and traditions" and "might operate as the unwitting servant of the forces of assimilation and domination" (p. 230).

[54] After studying these issues extensively, the Royal Commission settled on an intermediate approach embodying three basic principles. First, all Canadians — Indigenous and non-Indigenous alike — are "entitled to enjoy the protection of the Charter's general provisions in their relations with governments in Canada, no matter where in Canada the people are located or which governments are involved" (p. 230). Second, Indigenous governments "occupy the same basic position relative to the Charter as the federal and provincial governments" (p. 230). And third, the *Charter* should apply to Indigenous governments and be "interpreted in a manner that allows considerable scope for distinctive Aboriginal philosophical outlooks, cultures and traditions", based on the "interpretive rule … found in section 25 of the Charter" (p. 230).

[55] The Royal Commission's final recommendation was thus that the *Charter* applies to Indigenous governments, but under s. 25, the *Charter* must be interpreted flexibly to account for the distinctive philosophies, traditions, and cultural practices of Indigenous peoples (RCAP Final Report, vol. 2, at p. 234; see also Royal Commission on Aboriginal Peoples, *Partners in Confederation: Aboriginal Peoples, Self-Government, and the Constitution* (1993), at pp. 39-41; Royal Commission on Aboriginal Peoples, *Bridging the Cultural Divide: A Report on Aboriginal People and Criminal Justice in Canada* (1996), at pp. 262-64).

[56] The debate on whether the *Charter* should apply to Indigenous governments is complex and has generated a rich academic literature on both sides of the issue, some of which the Royal Commission drew on in reaching its conclusions and making its recommendations (see, e.g., B. Slattery, "First Nations and the Constitution: A Question of Trust" (1992), 71 *Can. Bar Rev.* 261; J. Borrows, "Contemporary Traditional Equality: The Effect of the *Charter* on First Nation Politics" (1994), 43 *U.N.B.L.J.* 19; P. W. Hogg and M. E. Turpel, "Implementing Aboriginal Self-Government: Constitutional and Jurisdictional Issues", in Royal Commission on Aboriginal Peoples, *Aboriginal Self-Government: Legal and Constitutional Issues* (1995), 375; K. McNeil, "Aboriginal Governments and the *Canadian Charter of Rights and Freedoms*" (1996), 34 *Osgoode Hall L.J.* 61; K. Wilkins, "… But We Need the Eggs: The Royal Commission, the Charter of Rights and the Inherent Right of Aboriginal Self-government" (1999), 49 *U.T.L.J.* 53; Macklem, at pp. 194-233; S. Grammond, *Terms of Coexistence: Indigenous Peoples and Canadian Law* (2013), at pp. 428-38; G. Otis, "La gouvernance autochtone avec ou sans la *Charte Canadienne*?" (2005), 36 *Ottawa L. Rev.* 207; G. Otis, "Gouvernance autochtone et droits ancestraux: une relation nouvelle entre la collectivité et l'individu?", in A. Lajoie, ed., *Gouvernance autochtone: aspects juridiques, économiques et sociaux* (2007), 40; D. L. Milward, *Aboriginal Justice and the Charter: Realizing a Culturally Sensitive Interpretation of Legal Rights* (2012), at pp. 62-77; M. Watson, "Reconciling Sovereignties, Reconciling Peoples: Should the Canadian Charter of Rights and Freedoms Apply to Inherent-right Aboriginal Governments?" (2019), 2:1 *Inter Gentes* 75; N. Metallic, "Checking our Attachment to the *Charter* and Respecting Indigenous Legal Orders: A Framework for *Charter* Application to Indigenous Governments" (2022), 31:2 *Const. Forum* 3; K. Gunn, "Towards a Renewed Relationship: Modern Treaties & the Recognition of Indigenous Law-Making Authority" (2022), 31:2 *Const. Forum* 17; A. Swiffen, "*Dickson v Vuntut Gwitchin First Nation*, Section 25 and a Plurinational *Charter*" (2022), 31:2 *Const. Forum* 27; R. Beaton, "Doctrine Calling: Inherent Indigenous Jurisdiction in *Vuntut Gwitchin*" (2022), 31:2 *Const. Forum* 39; R. Hamilton, "Self-Governing Nation or 'Jurisdictional Ghetto'? Section 25 of the *Charter of Rights and Freedoms* and Self-Governing First Nations in Canada" (2022), 27:1 *Rev. Const. Stud.* 279).

(d) *Courts Have Consistently Applied the Charter to Indigenous Governments*

[57] Against this policy backdrop, courts at all levels have recognized that the *Charter* applies to Indian band councils exercising governmental powers under the *Indian Act*, because such powers have a statutory foundation and are delegated by Parliament (see, e.g., *Corbiere v. Canada (Minister of Indian and Northern Affairs)*, 1999 CanLII 687 (SCC), [1999] 2 SCR 203; *Taypotat v. Taypotat*, 2013 FCA 192, 365 D.L.R. (4th) 485, at paras. 36-39, rev'd 2015 SCC 30, [2015] 2 SCR 548; *McCarthy v. Whitefish Lake First Nation No. 128*, 2023 FC 220, 524 C.R.R. (2d) 103, at para. 93; *Linklater v. Thunderchild First Nation*, 2020 FC 1065, 96 Admin. L.R. (6th) 233, at para. 16; *Horse Lake First Nation v. Horseman*, 2003 ABQB 152, 223 D.L.R. (4th) 184, at paras. 14-29; see also G. Régimbald and D. Newman, *The Law of the Canadian Constitution* (2nd ed. 2017), at §18.17; J. Woodward, *Aboriginal Law in Canada* (loose-leaf), at § 6:6; Brun, Tremblay and Brouillet, at p. 972; M. Buist, *Halsbury's Laws of Canada — Aboriginal* (2020 Reissue), at pp. 110-11).

[58] Courts have also recognized that the *Charter* applies to Indigenous governments operating under legislation outside the framework of the *Indian Act* (see, e.g., *Chisasibi Band v. Napash*, 2014 QCCQ 10367, [2015] 1 C.N.L.R. 16, at paras. 49-106).

[59] We now turn to consider in greater detail the legal framework for applying s. 32(1) of the *Charter*, before applying that framework to the VGFN's residency requirement.

[Discussion and the first part of the *Eldridge* framework for applying section 32(1) of the *Charter* has been omitted.]

…

[78] We agree with the submissions of Ms. Dickson and several government and Indigenous interveners that the VGFN as an Indigenous government illustrates indicia for "government by nature" identified by this Court in *Godbout*, and thus the *Charter* applies to the VGFN's residency requirement (R.F. on cross-appeal, at para. 34; I.F., A.G. Canada, at paras. 18-19; I.F., A.G. Quebec, at para. 6; I.F., A.G. Alberta, at para. 7; I.F., Congress of Aboriginal Peoples, at paras. 6-7; I.F., Band Members Alliance and Advocacy Association of Canada, at paras. 14-21).

[79] First, the VGFN Council consists of members who are elected by eligible voters of the VGFN and are democratically accountable to their constituents, much like members of Parliament or a provincial legislature (VGFN Constitution, Article VIII). If elected, members swear or affirm loyalty to the VGFN and obedience to the VGFN Constitution as a "sacred responsibility of government" (Sch. II).

[80] Second, the VGFN has general taxing powers that are materially indistinguishable from those of Parliament or the provinces. The VGFN has status as "a municipality or public body performing the functions of government or a municipal corporation" under the *Income Tax Act* (Final Agreement, s. 24.8.1). This status is contingent on the VGFN restricting its activities "to the provision of government or other public services" (s. 24.8.2; see also Self-Government Agreement, ss. 14.0 (Taxation) and 15.0 (Taxation Status); *Yukon First Nations Self-Government Act*, s. 18).

[81] Third, like Parliament and provincial legislatures, the VGFN is empowered to make, administer, and enforce coercive laws that are binding on VGFN citizens and on the public generally within its settlement land (Self-Government Agreement, s. 13.0; *Yukon First Nations*

Self-Government Act, ss. 9 to 12). To quote La Forest J. in *Godbout*, this is a "quintessentially governmental function" (para. 51 (emphasis deleted), citing *McKinney*, at p. 270).

[82] Fourth, although (as the trial judge found) the Vuntut Gwitchin have been self-governing since time immemorial, and even if the VGFN has lawmaking authority under an inherent right to self-government, the VGFN is also recognized as a legal entity under the federal implementing legislation. To that extent, it derives *at least some* of its lawmaking authority under federal law. In other words, at least one source of the VGFN's lawmaking authority flows from Parliament, in that the VGFN exercises powers that Parliament otherwise would have exercised through its legislative jurisdiction under s. 91(24) of the *Constitution Act, 1867*. This of course is not to suggest that Indigenous self-government is necessarily an emanation of federal authority. Parliament can, as here, be a source of the self-government authority, and it is this fact that triggers the application of the *Charter* in this case.

[83] In the first place, the federal legislation recognizes the VGFN as "a legal entity having the capacity, rights, powers and privileges of a natural person" (*Yukon First Nations Self-Government Act*, s. 7). It also states that the VGFN succeeds to the "rights, titles, interests, obligations, assets and liabilities" of the predecessor Vuntut Gwitchin Tribal Council that was constituted as a band under the *Indian Act*, and which henceforth is deemed to "ceas[e] to exist" (ss. 2, 6(1) and Sch. I). In highlighting this, we distinguish the VGFN as a legal entity recognized under federal legislation, and the Vuntut Gwitchin as an Indigenous people who do not rely on federal legislation to exercise self-government powers that the trial judge found they have exercised since time immemorial. In our view, in the present context it is sufficient for the VGFN to be recognized as a legal entity and to derive *a source* of its lawmaking authority from federal legislation, without necessarily deriving *all* of its lawmaking authority, or its existence, from federal legislation. In *Godbout*, La Forest J. spoke of municipalities deriving their "existence" from federal or provincial legislation, but this was because municipalities are entirely creatures of statute, whereas self-governing Indigenous governments manifestly are not. In short, Parliament can recognize the existence of an Indigenous government to which it confers some part of its lawmaking authority under s. 91(24) of the *Constitution Act, 1867*, without creating that Indigenous government and without necessarily being the only source of its lawmaking authority.

[84] In the second place, even if the VGFN has an inherent power of self-government that is not derived from federal legislation, it is undeniable that the VGFN also exercises powers conferred by Parliament under s. 91(24) of the *Constitution Act, 1867* that would otherwise be performed by the federal or territorial government, as indeed they were before the Self-Government Agreement was implemented by federal legislation. The VGFN exercises legislative powers that both the federal government and the VGFN have agreed shall be exercised by the VGFN under the Self-Government Agreement, as approved by the federal and territorial implementing legislation. The federal *Yukon First Nations Self-Government Act* is an exercise of Parliament's legislative authority under s. 91(24) of the *Constitution Act, 1867* to enact laws in relation to "Indians, and Lands reserved for the Indians". The legislation imposes rules agreed to by the VGFN, which pertain to the exercise of the VGFN's self-government powers, and which find their source at least in part under the *Constitution Act, 1867*, even if they also arise from the Vuntut Gwitchin's inherent self-government authority.

[85] It is also significant that the federal legislation expressly provides that lands transferred to a Yukon First Nation in accordance with a self-government agreement "remain lands reserved for the Indians within the meaning of class 24 of section 91 of the *Constitution Act, 1867*" (s. 22(4)). This reflects the reality that Parliament has not abandoned its legislative jurisdiction in relation to the transferred lands, even though the VGFN exercises self-government powers under the Self-Government Agreement. Indeed, as this Court stated in *R. v. Sparrow*, 1990 CanLII 104 (SCC), [1990] 1 SCR 1075, Parliament's "power" to legislate under s. 91(24) of the *Constitution Act, 1867* must be "reconciled" with its "duty" to Indigenous peoples under s. 35 of the *Constitution Act, 1982* (p. 1109). Parliament cannot abandon its constitutional duty to Indigenous peoples. Parliament's "power" to legislate under s. 91(24) of the *Constitution Act, 1867* and its "duty" to Indigenous peoples under s. 35 of the *Constitution Act, 1982* both subsist even after entering into a self-government agreement with an Indigenous people.

[86] In addition, whatever the source of the VGFN's self-government powers — whether it is an inherent right, federal legislation, or both — it is undeniable that the federal *Yukon First Nations Self-Government Act* also regulates the exercise of the VGFN's self-government powers and makes them binding against third parties. In short, all the VGFN's self-government powers under the Self-Government Agreement and implemented by the federal and territorial self-government legislation must be exercised in accordance with that legislation. In our view, this constitutes sufficient involvement by Parliament to trigger the application of the *Charter*.

[87] Although not determinative, it bears noting that the view that the *Charter* applies to the VGFN's exercise of self-government powers was also expressed by the Minister of Indian Affairs and Northern Development, the Hon. Ron Irwin, at the second reading of the federal self-government legislation before the House of Commons. He stated that "[t]he principles embodied in the Charter of Rights and Freedoms and the Constitution of Canada as a whole will continue to apply" (*House of Commons Debates*, vol. 133, No. 76, 1st Sess., 35th Parl., June 1, 1994, at p. 4716). He added that "First Nation constitutions will also provide protections for the rights and freedoms of First Nation citizens" (p. 4716). Thus, in the Minister's view, the citizens of self-governing First Nations would be entitled to invoke *Charter* rights alongside their rights under First Nations constitutions, just as Ms. Dickson did in this case. This Court has recognized that, while Hansard evidence has frailties, it may "play a limited role in the interpretation of legislation" (*Rizzo & Rizzo Shoes Ltd. (Re)*, 1998 CanLII 837 (SCC), [1998] 1 SCR 27, at para. 35). In our view, the Minister's statement before the House of Commons lends some support to the view that Parliament intended the exercise of self-government powers under the federal *Yukon First Nations Self-Government Act* to be subject to the *Charter*.

[88] We hasten to say that in concluding that the VGFN engages each of the four illustrative indicia identified by this Court in *Godbout* for an entity that is government by nature, we do not of course suggest that an Indigenous government such as the VGFN exercising self-government powers is similar to a municipality. Unlike municipalities, which have no independent constitutional status, are entirely creatures of statute, and exercise only those powers conferred by legislation, Indigenous peoples are expressly recognized under the *Constitution Act, 1867* (s. 91(24)), the *Charter* (s. 25), and the *Constitution Act, 1982* (ss. 35 and 35.1). Indigenous peoples pre-existed the arrival of European settlers and the founding of Canada as a country; they do not depend on federal, provincial, or territorial legislation to exist as autonomous self-governing peoples.

…

[91] We would also add that our conclusion that the *Charter* applies to the VGFN's residency requirement adopted under the framework of the federal self-government legislation differs from — and is narrower than — the conclusions apparently reached by the trial judge and Court of Appeal. The trial judge (at para. 130) and the Court of Appeal (at para. 98) both appeared to decide that the *Charter* applies to the exercise of the VGFN's self-government powers, whether viewed as an exercise of the VGFN's inherent right of self-government or under the self-government agreements with the federal and Yukon governments, as implemented by federal and territorial legislation. We conclude that the *Charter* applies to the VGFN's residency requirement only insofar as that requirement flows from an exercise of statutory power under s. 91(24) of the *Constitution Act, 1867*. We make no comment on whether an exercise of an inherent right of self-government untethered from federal legislation would be subject to the *Charter*, which in our view need not be decided in this case in view of the self-government arrangements in issue. As this Court has often noted, a "policy [of] restraint in constitutional cases is sound" as it is "based on the realization that unnecessary constitutional pronouncements may prejudice future cases, the implications of which have not been foreseen" (*Phillips v. Nova Scotia (Commission of Inquiry into the Westray Mine Tragedy)*, 1995 CanLII 86 (SCC), [1995] 2 SCR 97, at para. 9; see also *Canadian Council for Refugees v. Canada (Citizenship and Immigration)*, 2023 SCC 17, at para. 181; *Reference re Remuneration of Judges of the Provincial*

Court of Prince Edward Island, 1997 CanLII 317 (SCC), [1997] 3 SCR 3, at para. 301, per La Forest J., dissenting in part). This Court in *Reference re Secession of Quebec*, 1998 CanLII 793 (SCC), [1998] 2 SCR 217 ("*Secession Reference*"), at para. 105, referred to this as "the usual rule of prudence in constitutional cases". The rule of prudence is especially salutary in this appeal, which in our view can be decided without addressing whether an inherent Indigenous right of self-government operating outside a statutory framework would be subject to the *Charter*.

[92] In our view, therefore, the *Charter* applies to the VGFN's residency requirement because the VGFN is government by nature.

[93] Although in view of this conclusion it is unnecessary to consider the second branch of *Eldridge*, we will do so briefly for the sake of completeness.

[Analysis of the second branch of *Eldridge*—whether the *Charter* also applies to the residency requirement as a "government activity"—has been omitted.]

…

(d) *Conclusion*

[101] We conclude that the *Charter* applies to the residency requirement, either because the VGFN is government by nature, or because the enactment and enforcement of the residency requirement is a "governmental activity" operating under a statutory power of compulsion. We reach this conclusion by applying the *Eldridge* framework to the specific agreements, implementing legislation, and Indigenous constitution at issue in this case. We expressly refrain from commenting on whether the *Charter* would apply to an Indigenous government exercising an inherent self-government authority untethered from federal, provincial, or territorial legislation.

B. *Sections 15, 25, and 1 of the Charter*

(1) Overview

[102] Section 25 of the *Charter* is central to evaluating Ms. Dickson's claim that the residency requirement in the VGFN Constitution infringes her right to equality under s. 15(1) of the *Charter*. The VGFN agrees with the courts below that s. 25 operates as a shield to protect the residency requirement from challenge under the s. 15(1) *Charter* right. Ms. Dickson answers that s. 25 is not a bar to her claim. Properly balanced against the protection provided to Indigenous rights in s. 25 and considering s. 1 of the *Charter*, she says the residency requirement violates her right to be free from discrimination and cannot be justified in the circumstances.

…

[104] Over the life of the *Charter*, this Court has had relatively few occasions to consider the meaning of s. 25. When the Court has done so — as in *R. v. Kapp*, 2008 SCC 41, [2008] 2 SCR 483, and *Corbiere* — it has addressed the equality right in circumstances different from this case. This case involves a dispute between a First Nation and one of its own members, and invites the Court to interpret s. 25 in connection with a residency requirement that is itself part of the constitutional law of a self-governing First Nation.

[105] *Corbiere* did consider the constitutionality of a voting requirement that might be compared to the rule contested by Ms. Dickson, but the requirement in that case was under the *Indian Act* rather than an Indigenous constitution. *Kapp* involved a discrimination complaint based on s. 15(1) of the *Charter* and the possible relevance of s. 25 as an answer to that challenge, but that case was brought by a non-Indigenous person and did not concern an Indigenous law. And while *Taypotat* (SCC) involved a challenge under s. 15(1) of the *Charter* to a First Nation's rule on electoral qualifications brought by an Indigenous community member, the appeal was decided without addressing s. 25. Further complicating the relationship between the VGFN's collective right in s. 25 and the individual right invoked by Ms. Dickson is the reality that, ultimately, they are both rooted in Indigeneity (see generally Swiffen, at p. 34).

…

[107] The purpose of s. 25 is to uphold certain collective rights and freedoms of Indigenous peoples when those collective rights conflict with an individual's *Charter* rights. When an individual's *Charter* right would abrogate or derogate from an Aboriginal, treaty, or other right, s. 25 requires the collective Indigenous right to take precedence, even if the *Charter* claimant is a member of the First Nation concerned.

[108] When Aboriginal, treaty, or "other rights or freedoms" specified in s. 25 are engaged, the limits on a competing individual *Charter* right need not be justified as would ordinarily be the case under s. 1 of the *Charter*. Unlike s. 1, s. 25 reflects a constitutional choice to protect the collective rights and freedoms associated with Indigenous peoples in Canada as a distinct minority. "[R]espect for minority rights" was identified by the Court in the *Secession Reference*, at para. 49, as an underlying constitutional principle that infuses the Constitution as a whole. The protection of linguistic and religious minorities are examples of this underlying principle, as is the protection of the rights of Indigenous peoples as a distinctive minority. This Court stated that, in keeping with a long tradition of respect for minorities, s. 35 of the *Constitution Act, 1982* provides protection for existing Aboriginal and treaty rights, while s. 25 similarly set forth a "non-derogation clause in favour of the rights of [A]boriginal peoples" (*Secession Reference*, at para. 82). The Court allied the protection of s. 25 with the "strength [of the] promise" to the Indigenous peoples of Canada in s. 35 that it had explained in *Sparrow*, at p. 1083. That promise "recognized not only the ancient occupation of land by [A]boriginal peoples, but their contribution to the building of Canada, and the special commitments made to them by successive governments" (*Secession Reference*, at para. 82).

[109] Consonant with the principle of the protection of Indigenous peoples as a distinct minority, the "other rights or freedoms" in s. 25 are limited to those that protect Indigenous difference. All the collective Indigenous rights and freedoms referred to in s. 25 must be upheld, even when they conflict with individual *Charter* rights, in order to ensure respect for minority rights as a constitutional value.

[110] The protection of Aboriginal, treaty, and other rights in s. 25 is not, however, absolute. Priority is given to collective Indigenous rights only when they conflict with an individual's *Charter* right. In any given case, the individual and collective rights referred to in s. 25 may not actually be in conflict. Some individual rights are part of Indigenous law and coexist with collective interests, as both the *UNDRIP Act* and the VGFN Constitution itself make plain (see Metallic, at p. 15; G. Otis, "Élection, gouvernance traditionnelle et droits fondamentaux chez les peuples autochtones du Canada" (2004), 49 *McGill L.J.* 393, at pp. 409-11). In addition, s. 25 would not apply if the individual *Charter* right invoked conflicted with an Indigenous right that does not rest on Indigenous difference. In such circumstances, any limit on the individual right must be justified under s. 1 of the *Charter*. And like s. 35 rights, the primacy afforded to the collective rights under s. 25 is subject to the equality guarantee for "male and female persons" under s. 28 of the *Charter* and s. 35(4) of the *Constitution Act, 1982*.

[111] In the reasons that follow, we seek to develop a framework to apply s. 25 to the circumstances of this case. The parties and interveners have described s. 25 as either a "shield" or an "interpretative prism" (or "interpretive prism"), but in our respectful view, neither term offers a full account of the provision. Section 25 mandates that when a *Charter* right abrogates or derogates from an Aboriginal, treaty, or other right belonging to the Aboriginal peoples of Canada, it can "shield" collective Indigenous rights from certain applications of the *Charter*. But to determine whether the individual *Charter* right conflicts with the collective Indigenous right or freedom, s. 25 directs that the individual *Charter* right must first be "construed". Similarly, determining whether the residency requirement in the VGFN Constitution is an "other righ[t] or freedo[m] that pertain[s] to the aboriginal peoples of Canada" under s. 25 requires an exercise of interpretation.

[112] In what follows, we first consider s. 25 in light of its purpose, with due consideration to its text, the *Charter*'s character and larger object, and the provision's history. Second, we address the "other" collective rights and freedoms under s. 25 and their relationship to Indigenous difference. Finally, we discuss the scope of the so-called "shield" and "interpretative" aspects of s. 25, before considering whether the provision protects the residency requirement in the VGFN Constitution from Ms. Dickson's s. 15(1) challenge, and further, whether the VGFN needs to justify its residency requirement under s. 1 of the *Charter*.

(2) Purpose of Section 25

[The analysis of the purpose of section 25 has been omitted.]

…

(e) *Conclusion on the Purpose of Section 25*

[143] We thus conclude that the purpose of s. 25 is to protect certain Indigenous collective rights from the application of conflicting individual *Charter* rights or freedoms, when such application would diminish the Indigenous difference protected and recognized by the collective rights. When the application of the individual right would undermine in an essential or non-incidental way the Indigenous difference protected by the collective right, s. 25 directs that the collective right be given primacy. This differs from the process of determining whether the impairment of an individual *Charter* right is justified in a free and democratic society under s. 1 of the *Charter*, which is not solely targeted at protecting the collective minority right as a social and constitutional good.

[The analysis of the rights within the scope of as well as operation of section 25 has been omitted.]

…

(5) Summary of the Section 25 Framework

[178] The analysis above suggests a four-step framework under s. 25.

[179] First, the *Charter* claimant must show that the impugned conduct *prima facie* breaches an individual *Charter* right. If no *prima facie* case is made out, then the *Charter* claim fails and there is no need to proceed to s. 25.

[180] Second, the party invoking s. 25 — typically the party relying on a collective minority interest — must satisfy the court that the impugned conduct is a right, or an exercise of a right, protected under s. 25. That party bears the burden of demonstrating that the right for which it claims s. 25 protection is an Aboriginal, treaty, or other right. If the right at issue is an "other" right, then the party defending against the *Charter* claim must demonstrate the existence of the asserted right and the fact that the right protects or recognizes Indigenous difference.

[181] Third, the party invoking s. 25 must show irreconcilable conflict between the *Charter* right and the Aboriginal, treaty, or other right or its exercise. If the rights are irreconcilably in conflict, s. 25 will act as a shield to protect Indigenous difference.

[182] Fourth, courts must consider whether there are any applicable limits to the collective interest relied on. When s. 25's protections apply, for instance, the collective right may yield to limits imposed by s. 28 of the *Charter* or s. 35(4) of the *Constitution Act, 1982*.

[183] Finally, where s. 25 is found not to apply, the party defending against the *Charter* claim may show that the impugned action is justified under s. 1 of the *Charter*.

(6) Application of Sections 15(1) and 25 to This Case

[184] Applying the above analysis, we conclude that Ms. Dickson's s. 15(1) *Charter* right was *prima facie* breached by the residency requirement, which created a distinction based on non-resident status in a self-governing Indigenous community and reinforced and exacerbated her existing disadvantage as a non-resident member of the VGFN.

[185] Second, the VGFN has established that the residency requirement in the VGFN Constitution is an exercise of an Aboriginal, treaty, or other right under s. 25. It is an exercise of an "other right", namely, the right to set criteria for membership in its governing body — a right that protects Indigenous difference.

[186] Third, the VGFN has established that, properly interpreted, Ms. Dickson's s. 15(1) right and its right within the scope of s. 25 are irreconcilably in conflict, such that giving effect to Ms. Dickson's equality right would abrogate or derogate from the s. 25 identified right. This engages s. 25 as a protective shield, insulating the collective right from the individual *Charter* claim.

[187] Finally, we find that there are no other applicable limits to the application of s. 25 in this case.

[The Majority turned to section 15(1) to consider whether or not a prima facie breach existed in this case. They concluded that Ms. Dickson had demonstrated a prima facie breach, not on the analogous ground of 'Aboriginality-residence,' but on the newly articulated ground of 'non-resident status in a self-governing Indigenous community'. In coming to this conclusion, the Majority affirmed that the governing principles for identifying analogous grounds in *Corbiere* remain useful to determine whether or not distinctions based on non-resident status are discriminatory.]

…

3. *The Residency Requirement Reinforces, Perpetuates, or Exacerbates Disadvantage*

…

[201] .... As the Court of Appeal noted, the trial judge's conclusion that Ms. Dickson had been advantaged by living in Whitehorse stands contrary to *Corbiere*, and the evidence in that case, detailed above, remains applicable to non-resident citizens of Indigenous communities. The Royal Commission on Aboriginal Peoples observed perceptions of incompatibility between Indigenous cultures and urban life, leading to the "assumption that Aboriginal people living in urban areas must deny their culture and heritage in order to succeed — that they must assimilate into this other world. The corollary is that once Aboriginal people migrate to urban areas, their identity as Aboriginal people becomes irrelevant" (RCAP Final Report, vol. 4, *Perspectives and Realities* (1996), at p. 519). Similarly, the 2019 report issued by the National Inquiry into Missing and Murdered Indigenous Women and Girls found that, because of past government conduct, Indigenous women in urban areas have found themselves "alienated from their home communities, sometimes as single parents and sole providers for their children" and are "often hundreds of kilometres from their homes and social support systems, navigating racist barriers deeply embedded in urban services and experiences" (*Reclaiming Power and Place: The Final Report of the National Inquiry into Missing and Murdered Indigenous Women and Girls*, vol. 1a (2019), at p. 273).

[202] It is helpful to recall Abella J.'s explanation in *Taypotat* of the relevance of discriminatory disadvantage rooted in arbitrariness for the second branch of s. 15(1). A court should consider "whether the impugned law fails to respond to the actual capacities and needs of the members of the group and instead imposes burdens or denies a benefit in a manner that has the effect of reinforcing, perpetuating or exacerbating their disadvantage" (para. 20).

[203] Here, Ms. Dickson is being denied, or at least significantly deterred from, the exercise of a fundamental democratic right — the right to run for Council — because of her non-resident status. This distinction on the basis of the analogous ground of non-resident status in a self-governing Indigenous community reinforces, perpetuates, and exacerbates her disadvantage as a non-resident. Not allowing her to participate in the electoral politics of her community further distances her from that community, making it difficult "to preserve her identity as a VGFN citizen" (R.F. on cross-appeal, at para. 65). We conclude that Ms. Dickson has made out both branches of a *prima facie* s. 15(1) breach.

(b) *The Residency Requirement Falls Within the Scope of Section 25 as an "Other" Right*

[204] The adoption of the residency requirement is an exercise of an "other" right under s. 25. The VGFN has a right to restrict the membership and composition of its governing bodies. The VGFN's exercise of this right through the residency requirement protects interests associated with Indigenous difference. Whether or not the residency requirement might also be understood as an exercise of an inherent right to self-government, we conclude that it is an "other" right protected under s. 25.

[205] The trial judge found that the VGFN's right to adopt the residency requirement is an "other" right that pertains to the Aboriginal peoples of Canada (para. 212). He stated that even if such rights had to be of a "constitutional character", this criterion would be met since the residency requirement "is not simply a law passed by Chief and Council", but is rather "the will of the First Nation expressed at its General Assembly as part of its Constitution … based upon hundreds of years of leadership by those who reside on the land, understand the essence of being Vuntut Gwitchin and that the custom or tradition exists today" (para. 207).

[206] The Court of Appeal agreed that the residency requirement is protected under s. 25, explaining that the Vuntut Gwitchin have always emphasized "[their] leaders' connection to the land, their expectation of ongoing personal interaction between leaders and others, and their wish to resist the 'pull' of outside influences" (para. 147). The court concluded that the residency requirement reflected the exercise, in modern guise, of an ancient right pertaining to Aboriginal peoples.

[207] The VGFN argues that the residency requirement is an exercise of its inherent right to self-government. It asserts that this right to self-government, which includes its selection of leaders, is an Aboriginal or "other" right within the meaning of s. 25 (R.F., at para. 114). Alternatively, the VGFN submits that its right to adopt the residency requirement is also a right that exists under a land claim agreement, as the parties to the Final Agreement "intended to recognize VGFN's collective, exclusive right to be self-governing over [its] own lands and internal affairs under [its] own *Constitution* and laws" (para. 117).

[208] By contrast, Ms. Dickson argues that the residency requirement is not an exercise of an Aboriginal, treaty, or other right. She says that it is expressly not a treaty right, nor is it an Aboriginal right proven under the *Van der Peet* test. Ms. Dickson also submits that the right at issue is not an "other" right, because it does not have constitutional status, it does not pertain to a historical practice of the VGFN, and it is not a collective right since it creates intra-group distinctions between VGFN citizens.

[209] For a party seeking s. 25 protection to show that a collective Indigenous right, or its exercise, constitutes an "other" right or freedom, it must demonstrate the existence of the right and also show that the right, or its exercise, protects interests associated with Indigenous difference. In our view, both requirements are met here:

(i) The VGFN has a statutory right to provide for the membership and composition of its governing bodies.

(ii) There is no dispute that the VGFN has the right to enact a constitution providing for the membership and composition of its governing bodies. As we have seen, the Final Agreement, a s. 35 treaty, provides that negotiations regarding First Nation constitutions may include the composition, structure, and powers of the Yukon First Nation government institutions, as well as membership and election procedures (s. 24.5.1 generally, and see especially ss. 24.5.1.1, 24.5.1.2 and 24.5.1.3). The Self-Government Agreement and the federal *Yukon First Nations Self-Government Act* include similar language requiring First Nations like the VGFN to address such matters in their constitution (see Self-Government Agreement, s. 10.1.2, and the *Yukon First Nations Self-Government Act*, s. 8(1)(b), respectively). The Self-Government Agreement stipulates that the "Vuntut Gwitchin First Nation Constitution shall establish governing bodies and provide for their powers, duties, composition, membership and procedures" (s. 10.1). Finally, s. 8(1)(b) of the federal *Yukon First Nations Self-Government Act* directs that the constitution of a First Nation, consistent with its self-government agreement, shall provide for "the governing bodies of the first nation and their composition, membership, powers, duties and procedures". Such a right necessarily includes the right to set criteria for membership. It would be impossible to provide for a governing body's membership without setting out the parameters of such membership. The VGFN therefore has a right to restrict the membership of its governing body. As a result, we turn to the question of whether this right, or its exercise, protects or recognizes Indigenous difference.

(c) *The Residency Requirement Protects and Recognizes Interests Associated With Indigenous Difference*

[210] As the Court of Appeal observed, the right to impose residency-based restrictions on the membership of its governing bodies enables Vuntut Gwitchin society to preserve the distinctive emphasis it places on "its leaders' connection to the land" (para. 147). This is plainly a foundation for the connection between Indigenous difference and the residency requirement in the VGFN Constitution.

[211] At first instance, the trial judge made key factual findings about the historical and cultural context of residency. He noted that the historical evidence showed that "the Vuntut Gwitchin show a preference for leaders who demonstrate a knowledge of the land and traditions, commitment to community service, effective communication skills and wealth", and that "the consistent leadership theme narrated by the Elders is being accountable to the Vuntut citizens on a daily basis in Old Crow and at the annual General Assembly" (para. 7).

[212] The trial judge summarized his factual findings with respect to VGFN leadership and residency (at para. 44), including:

1. The Vuntut Gwitchin people have governed themselves according to their traditional practices pre-dating the creation of Canada in 1867.

2. Since time immemorial to the present day, all VGFN Chiefs and Councillors have been residents in the VGFN Traditional Territory.

3. Even in modern times, post the Final Agreement in 1993, the practice is for elected citizens to reside in Old Crow. Chief Tizya-Tramm, former Chiefs Bruce Charlie and Robert Bruce Jr. all resided in Whitehorse at various times but all returned to reside in Old Crow during their terms as Chiefs.

[213] The Court of Appeal also emphasized the significance of the connection between VGFN leadership and VGFN land, noting the evidence of a former VGFN Chief that "the very identity of the Vuntut Gwitchin has always been deeply rooted in the land itself" and that "Vuntut Gwitchin practices, customs and traditions related to leadership and governance are also rooted in the land itself" (para. 27 (emphasis deleted); A.R., vol. VI, at pp. 136-37). In the Chief's view, the VGFN's "decision-making processes are based on reaching consensus and having a Council who does not reside in our community would be wholly incompatible with our traditional governance" (C.A. reasons, at para. 28 (emphasis deleted), quoting A.R., vol. VI, at pp. 139-40).

[214] Before this Court, the VGFN relies on the findings of the courts below regarding the importance of residency to its self-government and identity as a representative body for the Vuntut Gwitchin. The VGFN argues that, by adopting the residency requirement, it "seeks to protect and promote VGFN's spiritual and economic relationship to the Traditional Territory; the Vuntut Gwitchin way of life including

democratic deliberation and consensus-based decision-making among Citizens; and the general welfare of the collective" (R.F., at para. 116). The VGFN argues that the residency requirement "is a provision that seeks to preserve and enhance 'Indigenous difference' through the continuation of an inherent Indigenous legal order that survived colonization and for which VGFN has secured space in the fabric of the Canadian legal system" (para. 121).

[215] Ms. Dickson submits that the residency requirement does not protect Indigenous difference. Relying on affidavit evidence from VGFN citizens, she claims that the residency requirement disconnects citizens living away from the community, "making it hard for them to preserve their culture and identity" (A.F., at para. 83). Because the requirement effectively excludes non-resident citizens from Council, she argues that it does not preserve or protect Indigenous difference, "but undermines it, treating [them] as … 'less valuable' member[s] of VGFN" (para. 90). Ms. Dickson also marshals arguments against the idea that the residency requirement is based on traditional VGFN identity. She submits that the requirement is a modern adoption of a democratic system of governance, "a recent addition … enacted in 2006" (para. 82; see also para. 84).

[216] The inquiry at this stage is whether the residency requirement protects Indigenous difference, such that it should be protected from abrogation or derogation by Ms. Dickson's s. 15(1) *Charter* right. We have considered Ms. Dickson's arguments that the residency requirement works to erode Indigenous difference by making non-resident citizens feel like "less valuable" members of the community and distancing them from the community's governance structure, on the one hand, and that the requirement is not based on traditional practices, on the other. However, we cannot accept Ms. Dickson's arguments that there is no evidence that the residency of the Councillors is "demonstrative of their knowledge of the land, or their interest in the land" or that the requirement is based on modern ideas of democracy (para. 83).

[217] In light of the evidence and the factual findings at trial, we are satisfied that the residency requirement *is* an exercise of a right that protects interests associated with Indigenous difference. Requiring VGFN leaders to reside on settlement land helps preserve the leaders' connection to the land, which is deeply rooted in the VGFN's distinctive culture and governance practices. The residency requirement promotes the VGFN's expectation that its leaders will be able to maintain ongoing personal interactions between leaders and other community members. It also bolsters the VGFN's ability to resist the outside forces that pull citizens away from its settlement land and prevents erosion of its important connection with the land. Such interests are associated with various aspects of Indigenous difference, including Vuntut Gwitchin cultural difference and prior sovereignty, as well as their participation in the treaty process that culminated in the enactment of the VGFN Constitution.

[218] Finally, we agree with both courts below that the residency requirement is of a "constitutional character" in a substantive, rather than formal, sense (trial reasons, at para. 207; C.A. reasons, at para. 147). The question of whether a "constitutional character" will always be required for s. 25 protection need not be decided: here it is clear that the residency requirement has a significant constitutional dimension. Beyond the mere fact that the residency requirement is part of the VGFN Constitution, it is an aspect of the First Nation's law that preserves and enshrines an important dimension of VGFN leadership traditions and practices, and VGFN leaders' connection to the land. We particularly note the Court of Appeal's conclusion that the residency requirement "is clearly intended to reflect and promote the VGFN's particular traditions and customs relating to governance and leadership — a matter of fundamental importance to a small first nation in a vast and remote location" (para. 147). On any reasonable understanding of what it means for a right or its exercise to have a "constitutional character", the residency requirement meets this standard.

(d) *The VGFN Has Established That the Conflict Between the Two Rights Is Irreconcilable*

[219] The Court must further determine whether the VGFN has established that the conflict between the two rights is irreconcilable, such that the s. 25 right would be protected from the abrogation or derogation that would flow from giving effect to Ms. Dickson's s. 15(1) right. We conclude that the VGFN has demonstrated that the conflict between the two rights is irreconcilable and that, as a result, s. 25 can be invoked to protect the VGFN residency requirement.

[220] The conflict is plain when the two rights are first properly interpreted, then compared to one another, as required by the s. 25 framework.

[221] With respect to the content of Ms. Dickson's s. 15(1) right, she has made out a *prima facie* case as a result of the distinction drawn on the basis of the analogous ground of non-resident status in a self-governing Indigenous community. She is unable to hold a position on the VGFN Council because she lives away from the settlement land. This distinction on the basis of her non-resident status reinforces and exacerbates the historical and continuing disadvantage faced by Indigenous people living away from their traditional lands.

[222] Turning to the content of the "other" right: at its core, the residency requirement protects and recognizes Indigenous difference by preserving the connection between the members of VGFN leadership and VGFN lands. The other ways the residency requirement protects these interests, such as promoting the VGFN's ability to resist the pull of outside influences, are bound up in this connection.

[223] Ms. Dickson argues that the VGFN could have adopted measures that would "giv[e] effect to both the individual democratic rights at stake, and VGFN's collective rights to govern and set eligibility criteria for their elected leaders" (A.F., at para. 13). For example, at the 2019 General Assembly, Ms. Dickson proposed that a single Councillor be selected from the VGFN citizens living in Whitehorse (para. 119). Ms. Dickson presents this alternative in the context of her argument on minimal impairment under s. 1 of the *Charter*. However, her suggestion that this alternative would give effect to both her individual *Charter* right and the VGFN's right warrants consideration under s. 25, as it is essentially an argument that the two rights are, in fact, reconcilable.

[224] The VGFN points to the Court of Appeal's holding that "to apply s. 15(1) would indeed derogate from the Vuntut Gwitchin's rights to govern themselves in accordance with their own particular values and traditions *and* in accordance with the 'self-government' arrangements entered into in 1993 with Canada and Yukon" (R.F., at para. 122, quoting C.A. reasons, at para. 149 (emphasis in original)).

[225] We agree with the Court of Appeal. Permitting one Councillor to reside in Whitehorse would undermine, in a non-incidental way, the VGFN's right to decide on the membership of its governing bodies. As set out above, the Indigenous difference protected by the residency requirement is inextricably tied to leaders' connection to the settlement land. The Court of Appeal cited evidence from the Executive Director of the VGFN that Ms. Dickson's initial proposal to eliminate the residency requirement was not supported because it conflicted "with the widely held view that Vuntut Gwitchin self-government and the protection of our culture is critically linked to the seat of our government being in Old Crow" (para. 30 (emphasis deleted); A.R., vol. VIII, at p. 158). In our view, for this Court to allow one of the four Councillors to reside in Whitehorse would unacceptably diminish this connection.

[226] As a result, we cannot accept that the effects of such a change to the composition of the VGFN Council on the interests that the residency requirement advances would be merely incidental. To borrow the words of Professor Macklem, giving effect to Ms. Dickson's *Charter* right in such a manner would pose "a real risk to the continued vitality of [I]ndigenous difference" (p. 232). Giving effect to Ms. Dickson's s. 15(1) right would abrogate or derogate from an "other" right that belongs to the VGFN. The two rights are, therefore, irreconcilably in conflict.

(e) *No Other Limits Apply*

[227] While s. 25 protections may be subject to other limits, including those imposed in relation to s. 28 of the *Charter* and s. 35(4) of the *Constitution Act, 1982*, no such restrictions are relevant here. The Court of Appeal found that s. 25's protections extended to the entire residency requirement, including the 14-day relocation rule. Before this Court, Ms. Dickson has not sought *Charter* relief regarding the 14-day relocation rule (A.R., vol. I, at pp. 209-10) or made arguments on severance. Given the burdens resting on *Charter* claimants under s. 25, we would not limit s. 25's protection in relation to that rule. Finally, because s. 25 applies to the residency requirement, the VGFN need not justify the residency requirement under s. 1 of the *Charter*.

[228] We conclude that s. 25 operates as a shield to protect the residency requirement from Ms. Dickson's s. 15(1) claim.

VII. Conclusion and Disposition

[Section VII has been omitted.]

The following are the reasons delivered by

Martin and O'Bonsawin JJ. —

…

[234] This claim raises numerous issues of fundamental importance concerning the extent to which the *Charter* protects the rights and freedoms of Indigenous people in respect of actions taken by Indigenous governments. In our view, the *Charter* applies to governmental action taken by self-governing Indigenous nations because they are both governmental in nature and because the purpose of s. 32(1) was to extend the *Charter*'s protections to address the power imbalance between the governed and those who govern in Canada. As the contours of Indigenous self-government evolve, it is essential that no *Charter*-free zones in Canada be created, that everyone be equally protected by its constitutionally entrenched guarantees, and that all forms of government be constrained by its limits.

[235] The inclusion of s. 25 in the *Charter*, which stipulates that individual *Charter* rights "shall not be construed so as to abrogate or derogate from any aboriginal, treaty or other rights or freedoms that pertain to the aboriginal peoples of Canada", was motivated by a specific concern about Indigenous difference and the distinct rights Indigenous peoples possess as "aboriginal peoples of Canada". Section 25 is a unique provision with a particular purpose, operating as an important interpretive aid to help protect these special collective rights held by Indigenous peoples from abrogation or derogation. Section 25 primarily protects against non-Indigenous people making claims that would have the effect of taking away from Indigenous peoples what is rightly theirs precisely because they are Indigenous peoples.

[236] We do not accept the broader proposition that s. 25 shields the actions of a self-governing Indigenous nation from *Charter* claims brought by members of that community. To interpret s. 25 in such a non-purposive manner would lead to the far-reaching result of creating and affirming *Charter*-free zones, with the consequence that minorities within Indigenous communities would not be protected from the actions of their own governments. All Canadians, including Indigenous people, need constitutional tools to hold their governments accountable for breaches of their entrenched rights and freedoms. It is against the purposes of the *Charter* and s. 25, as well as being profoundly inequitable, to deny members of self-governing Indigenous nations similar rights, remedies and recourse.

[237] We therefore apply the *Charter*, and the claimed s. 15(1) equality right, to the impugned residency requirement. We conclude that Ms. Dickson's s. 15(1) *Charter* claim must succeed. The residency requirement draws a discriminatory distinction between VGFN citizens that live on the settlement land and those that do not. The analogous ground of "Aboriginality-residence" applies in this context. We are not satisfied that the residency requirement falls within the ambit of s. 25 as the requirement is directed at the internal regulation of the VGFN and is not aimed at recognizing the special status of Indigenous collectives within the broader Canadian state. Even under a contextual and culturally sensitive approach to applying s. 1 of the *Charter* in this case, one grounded in and respectful of Indigenous difference, the residency requirement is not minimally impairing and therefore not demonstrably justified in a free and democratic society.

[238] We would allow the appeal and dismiss the cross-appeal for the reasons that follow.

II. Section 32(1) of the *Charter*

[Analysis of s. 32(1) of the *Charter* is omitted.]

…

B. *Application of Section 32(1) to the VGFN*

(1) Delegation Does Not Accurately Describe the Relationship Between the Crown and Self-Governing Indigenous Nations

[273] Recognition and acceptance of the VGFN's historic and ongoing self-governance is clear. The preamble to the VGFN Self-Government Agreement affirms that the "Vuntut Gwitchin have traditional decision-making structures and are desirous of maintaining these structures". It specifies that "the Parties wish to support and promote the contemporary and evolving political institutions and processes of the Vuntut Gwitchin First Nation". The VGFN Constitution preamble notes that the Constitution is adopted in furtherance of a "desir[e] to exercise our inherent right of self-government".

[274] The VGFN Self-Government Agreement has been recognized and affirmed by federal and territorial legislation (*Yukon First Nations Self-Government Act*, S.C. 1994, c. 35; *First Nations (Yukon) Self-government Act*, R.S.Y. 2002, c. 90). The stated purpose of the federal legislation is to "bring into effect self-government agreements" concluded with Indigenous nations, including the VGFN (ss. 4 and 5(1)). The territorial legislation provides, *inter alia*, for the approval of self-government agreements, including that of the VGFN, and the recognition of such agreements as having "the force of law" (ss. 1 and 2).

[275] Legislative recognition of the VGFN's self-governance authority does not transform it into delegated authority. The federal and territorial legislation confirms the self-government powers set out in the agreements and, as the VGFN puts it, "create[s] a space for their practical and contemporary exercise through legal recognition by Canada and Yukon" (R.F., at para. 51 (footnote omitted)). We agree with Ms. Dickson's submission that this statutory recognition "does not undermine the fact that [the] VGFN is a rights-holding Indigenous collective in Canada" that practiced its own legal traditions prior to European settlement and continues to do so (R.F. on cross-appeal, at para. 34). Given the historic and ongoing self-governance practices of Indigenous societies, it would be inapt to characterize Indigenous self-government as a delegated authority.

[276] As we have explained, however, it is not a prerequisite to the applicability of the *Charter* that an entity exercise delegated authority from Parliament or a provincial legislature. Therefore, we need not go further on the source of Indigenous self-government authority. Rather, under the first branch of *Eldridge*, the *Charter* applies to governmental action in respect of "matters within the authority" of Parliament and the provincial legislatures. The key question is whether the VGFN, as an entity, is a government by its very nature.

(2) The VGFN Is a Government by Its Very Nature

[277] We have no hesitation concluding that the VGFN is subject to the *Charter*. It is inherently governmental. The VGFN's long-standing history reinforces its governmental nature; as the trial judge noted, "[t]he Vuntut Gwitchin were constituted as a political entity prior to the assertion of British sovereignty and have governed themselves in accordance with their own laws since time immemorial" (2020 YKSC 22, 461 C.R.R. (2d) 230, at para. 11).

…

[280] The VGFN's structure and functions reflect its inherently governmental nature: it creates laws and makes decisions that benefit, order, and restrict the lives of its citizens. We accordingly conclude that the VGFN is a government by its very nature. Its enactment of the residency requirement must attract *Charter* scrutiny.

C. *Conclusion on Section 32(1)*

[281] "The *Charter* is a nation-building instrument" (J. Harrington, "Interpreting the *Charter*", in Oliver, Macklem and Des Rosiers, *The Oxford Handbook of the Canadian Constitution*, 621, at p. 622). It was intended to solidify a national identity and preserve individual rights and freedoms in the face of governmental action. This purpose aligns with its application to self-governing Indigenous nations, including the VGFN. All orders of government in Canada are bound to uphold the *Charter*'s protections as these protections represent an integral feature of the relationship between the governed and those who govern. Any narrower approach to s. 32(1) risks the creation of *Charter*-free zones and would undermine the balance intended to be struck by the introduction of constitutionally entrenched rights in Canada.

[282] Section 32(1) can be read to recognize the political and constitutional evolution that has occurred in respect of Indigenous self-government. Indigenous nations like the VGFN have been self-governing since time immemorial and our reasons affirm that, whatever the source of their self-government authority, self-governing Indigenous nations are subject to the *Charter* pursuant to s. 32(1) and in accordance with a modified *Eldridge* framework when they engage in governmental action.

III. Section 25 of the *Charter*

[283] The constitutional place of Indigenous peoples and the application of the *Charter* to them engages a series of special considerations. While the *Charter* primarily protects individual rights, Indigenous peoples also have collective rights and interests, including group title to land (*Tsilhqot'in Nation v. British Columbia*, 2014 SCC 44, [2014] 2 SCR 257) and the right to self-government recognized in the *United Nations Declaration on the Rights of Indigenous Peoples* (U.N. Doc. A/RES/61/295, October 2, 2007 ("*UNDRIP*"), Articles 3 and 4; see also *United Nations Declaration on the Rights of Indigenous Peoples Act*, S.C. 2021, c. 14). Although the original peoples in Canada, the various nations — even taken together — are presently a minority within the Canadian population and polity. They have been, and continue to be, subjected to the forces of colonialism in ways that distinguish them from other groups protected and recognized by the *Charter*. Section 25 plays a distinct role from other *Charter* provisions, operating to preserve a form of collective rights unique to Indigenous peoples in Canada while at the same time recognizing that when Indigenous governments make distinctions between their citizens, as all governments do, individuals and minorities within the collective should nevertheless benefit from all the constitutionally entrenched protections of the *Charter*.

…

[285] We take a view that is different from what Kasirer and Jamal JJ. propose concerning both the operation of s. 25 and the scope of the rights and freedoms captured by the provision. In our view, a purposive approach to s. 25 leads to the conclusion that this provision is an interpretive tool, not an impenetrable shield. Moreover, the rights within the scope of s. 25 are limited to those that are unique to Indigenous peoples because they are Indigenous and do not extend to all matters on which Indigenous governments may act. This conception ensures that s. 25 does not serve to effectively create extensive *Charter*-free zones in the context of Indigenous self-government, depriving Indigenous peoples of fundamental rights protections and immunizing governments "from the rights and freedoms floor established in the *Charter*" (I.F., Canadian Constitution Foundation, at para. 17). Though our analyses diverge, we understand Canadian constitutionalism as one wherein contending ideas are not a flaw that must be overcome, but are instead essential to our constitutional democracy (see J. Webber, *The Constitution of Canada: A Contextual Analysis* (2nd ed. 2021), at pp. 7-8).

[Discussion of how section 25 operates is omitted.]

(7) Conclusion on the Operation of Section 25

[320] For the foregoing reasons, s. 25 should serve as an interpretive prism and not operate as a shield. The extent to which this prism refracts and colours the *Charter*'s application will depend on who brings the claim, against whom, and when. Adapting for context can create a "strong hedge" around Aboriginal, treaty, and other rights in challenges brought by external parties, while ensuring that member-initiated challenges based on *Charter* principles can continue to exist (G. Christie, "Aboriginal Citizenship: Sections 35, 25 and 15 of Canada's *Constitution Act, 1982*" (2003), 7 *Citizsh. Stud.* 481, at p. 491).

[321] We add this. While we reject the shield approach to s. 25, we should not be taken as suggesting that the protection of fundamental rights can only occur through the *Charter*, or that self-governing Indigenous nations have no role to play in this regard. As governments in their own right, Indigenous nations can and often do entrench the rights of their citizens in constitutional documents. The VGFN Constitution, for example, provides that "[e]very individual is equal before and under the laws of the Vuntut Gwitchin First Nation and has the right to the equal protection [and] equal benefit of Vuntut Gwitchin First Nation law without discrimination" (Article IV(7)). The rights and freedoms set out in the VGFN Constitution are subject "only to such reasonable limits as can be demonstrably justified in a free and democratic Vuntut Gwitchin society" (Article IV(1)). The VGFN correctly notes that Ms. Dickson has the ability to bring a claim under Article IV(7) of the VGFN Constitution (R.F., at para. 95; see also 2021 YKCA 5, 495 C.R.R. (2d) 98, at paras. 156-57).

[322] Indigenous legal orders do not stand separate and apart from Canadian law; they form an integral part of it (*Mitchell*, at paras. 10-11; *Pastion v. Dene Tha' First Nation*, 2018 FC 648, [2018] 4 F.C.R. 467, at para. 8). This does not, however, immunize Indigenous governments from the responsibility of respecting the individual rights and freedoms articulated in the *Charter* see I.F., Canadian Constitution Foundation). In effect, the *Charter* establishes a "floor" of constitutionally protected rights and freedoms that must be respected by all governments, subject to the interpretive function performed by s. 25 when collective Indigenous rights are implicated.

[323] Nothing prevents Indigenous governments from protecting rights or interpreting them. Indigenous courts — including the Vuntut Gwitchin Court (which has yet to be established) — will have a meaningful role to play (see VGFN Constitution, Article XV; C.A. reasons, at paras. 23 and 25). The *Constitution Act, 1982*, which includes the *Charter*, is a pluralist document that is capable of incorporating and reflecting Indigenous and non-Indigenous perspectives alike. The living tree interpretive doctrine ensures that these perspectives can be built upon in the future. Professor Borrows writes that the dialectical interaction of traditional Indigenous practices and the *Charter* created a productive cultural exchange during constitutional conferences and invigorated equality movements within Indigenous communities. We agree that "[t]he process of injecting new understandings into customary ancient practices is very much in agreement with the cyclical world-view of many First Nations people and follows the culturally reproductive patterns of oral tradition" ((1994), at pp. 31-33 (footnote omitted)).

[324] The *Charter* and Indigenous peoples' right to self-determination can peacefully co-exist (I.F., Band Members Alliance and Advocacy Association of Canada). Our understanding of constitutional rights such as equality both consists of universally applicable animating norms and is coloured by relevant context. There is no doubt that the proliferation of Indigenous rights instruments and greater activity by Indigenous courts will shape other courts' understanding of the context in which *Charter* protections are engaged. Courts must learn from each other to give effect to individual rights, in whatever form, in their proper context.

B. *Rights Within the Scope of Section 25*

…

[328] It is not enough, in our view, for a right to *relate* to Indigenous peoples to bring it within the scope of s. 25 (see *Corbiere v. Canada (Minister of Indian and Northern Affairs)*, 1999 CanLII 687 (SCC), [1999] 2 SCR 203, at para. 52, per L'Heureux-Dubé J., concurring). We similarly view it as insufficient to attract the protection of s. 25, in the context of self-government, for an Indigenous nation to possess broad rights to govern its community. Not everything that Indigenous governments do represents the exercise of a unique collective right stemming from the community's distinctive culture. Self-governing Indigenous nations often govern in a manner no different than any other governmental entity.

[329] Accordingly, in the context of Indigenous self-government, intra-group distinctions will generally fall outside the ambit of s. 25, including laws that distinguish between members of the Indigenous community on the basis of personal grounds such as age, gender, gender identity, sexual orientation, or disability, to name a few. Professor Patrick Macklem explains that a broad interpretation of s. 25 "in the context of an internal restriction potentially sacrifices the interests of less powerful members of Aboriginal societies, in cases where the restriction may entail serious deleterious consequences to certain members and may bear only a loose relation to interests associated with indigenous difference" (*Indigenous Difference and the Constitution of Canada* (2001), at p. 226 (emphasis added); see also I.F., Congress of Aboriginal Peoples, at para. 18). Even though an Indigenous government may seek to justify such laws on cultural grounds, they are usually not aimed at recognizing the special status of Indigenous collectives within the broader Canadian state. Therefore, Indigenous governments that enact legislation drawing internal distinctions on the basis of personal characteristics unrelated to Indigenous identity will generally "be required to satisfy the *Oakes* test to resist a challenge" when an infringement of s. 15(1) of the *Charter* has been made out (*Kapp*, at para. 99, per Bastarache J.; see also Macklem, at pp. 226-27).

[330] Conversely, s. 25 could capture "laws that distinguish between Aboriginal people and non-Aboriginal people for the purpose of protecting interests associated with indigenous difference" (Macklem, at p. 225). Such laws can empower an Indigenous community "against threats posed to its difference by the larger society in which it is located" (p. 225 (footnote omitted)). For example, *Kapp* is precisely the type of case where the implicated collective Indigenous right would fit within the purpose of s. 25. *Kapp* concerned a federal program granting a special communal fishing licence to three Indigenous bands. The licence conferred the exclusive right to fish for salmon in the mouth of the Fraser River for a 24-hour period. A group of mainly non-Indigenous commercial fishers brought a s. 15(1) claim, alleging that the licence discriminated on the basis of race. In his concurring reasons concluding that s. 25 applied, Bastarache J. recognized that the licence was a unique right possessed by the Indigenous peoples to whom it was granted. He noted the unique relationship between the fishery and the British Columbia Indigenous communities (para. 119); in other words, the right was held by the Indigenous peoples because they were Indigenous. Therefore, in Bastarache J.'s view, s. 25 could be relied upon to resist a *Charter* claim brought by external, non-Indigenous litigants.

[331] Section 25 was not intended to create *Charter*-free zones. As Bastarache J. observed in *Kapp*, at para. 99:

> There is no reason to believe that s. 25 has taken Aboriginals out of the *Charter* protection scheme. … It is not at all obvious in my view that it is necessary to constrain the individual rights of Aboriginals in order to recognize collective rights under s. 25 … .

We are concerned, however, that Kasirer and Jamal JJ.'s broad interpretation of the rights within the scope of s. 25 may yield or justify this result. Members of Indigenous communities must be able to challenge the actions of their own governments.

…

[334] In our view, the "Indigenous difference" criterion does not serve a meaningful filtering function here. The focus must be on the collective right itself and whether it is unique to an Indigenous community on the basis of Indigeneity, not the justification for why an Indigenous nation exercised its self-government powers in a certain way. If all that is required to attract the protective effect of s. 25 is for an Indigenous nation to have broad self-government powers, and exercise those powers in a manner that is expressly linked to some aspect of Indigenous difference, the result will be broad immunity for Indigenous governments from *Charter* compliance. By definition, there will always be a link to Indigeneity when an Indigenous government acts, but that constant cannot meet the standard of an Aboriginal, treaty or other right under s. 25.

…

[337] In our view, a more precise conception of the provision's purpose leads to the conclusion that rights within the scope of s. 25 are limited to those that are truly unique to Indigenous peoples because they are Indigenous. In the context of Indigenous self-government, laws creating intra-group distinctions on the basis of a personal characteristic other than Indigeneity will generally not fall within s. 25's ambit.

…

IV. Application of Sections 15(1) and 25 to This Case

[The full analysis of the section 15(1) infringement has been omitted.]

…

[363] Due to the legacy of the *Indian Act*, some VGFN citizens are forced to make the challenging decision of whether to live proximate to other members of their community or jeopardize certain opportunities, including access to appropriate housing, social services, education, and employment. The "choice" to live outside their traditional territory puts them at risk of having their interests overlooked or having their views underrepresented within political spheres of power (see *Corbiere*, at para. 62, per L'Heureux-Dubé J.). While the context of off-reserve band members is not identical to that of Vuntut Gwitchin citizens living outside their traditional territory, the legacy of colonialism through the *Indian Act* is a common thread that connects the two groups, such that the analogous ground of "Aboriginality-residence" remains applicable in the instant case. Though the VGFN is no longer subject to the *Indian Act*, the discrimination faced by Indigenous people living away from their communities as identified in *Corbiere* continues to be experienced by VGFN citizens and was not erased when the VGFN entered into a self-government agreement (para. 62). We therefore agree with Ms. Dickson that the analogous ground of "Aboriginality-residence" applies here.

…

[370] First, the claimant must establish that the distinction denies a benefit or imposes a burden. The residency requirement denies Ms. Dickson the benefit of serving in government. This is a form of political exclusion (*Sharma*, at para. 52; *Fraser*, at para. 76, citing Sheppard, at pp. 62-63) that bars Ms. Dickson from a core aspect of democratic participation and the opportunity to affect decision-making processes that impact her.

[371] We agree with Ms. Dickson that "[t]he right to run for, and serve, in office is a defining feature of democracy" and "a pillar of democratic governments, protected in both s. 3 of the *Charter* and Article 25 of the *International Covenant on Civil and Political Rights*. It is not a 'narrow' right but a fundamental political right, and its denial is severe" (R.F. on cross-appeal, at para. 68, citing *Reference re Secession of Quebec*, 1998 CanLII 793 (SCC), [1998] 2 SCR 217, at para. 65; *Frank v. Canada (Attorney General)*, 2019 SCC 1, [2019] 1 SCR 3, at para. 82; *Sauvé v. Canada (Chief Electoral Officer)*, 2002 SCC 68, [2002] 3 SCR 519, at para. 59; *Harvey v. New Brunswick (Attorney General)*, 1996 CanLII 163 (SCC), [1996] 2 SCR 876, at paras. 23-30). The residency requirement satisfies the requirement that the distinction deny a benefit.

…

[374] Ms. Dickson argues that the distinction created by the residency requirement "perpetuates and reinforces the stereotype, observed in *Corbiere* and the cases that followed, that Indigenous citizens living outside their community are not interested in maintaining a meaningful connection with their nation and are less interested in the preservation of their land, sending the message they are less deserving members of the nation" (R.F. on cross-appeal, at para. 65). Further, she submits that the residency requirement exacerbates her inability to maintain a connection to her community and to preserve her identity as a citizen of the VGFN.

[375] We agree. For over a century, governments sought to encourage "enfranchisement", or assimilation of Indigenous people into mainstream Canadian society. The increase in Indigenous people living away from their home territories is intricately tied to a legacy of discrimination. Indigenous people were encouraged to renounce their identity, and it is "[a]s a result of this history [that] a large number of off-reserve status Indians who are nominally members of First Nations have little or no connection to the reserves or to 'home' communities" (I.F., Congress of Aboriginal Peoples, at para. 12). The unequal rights afforded to those living on- and off-reserve under the *Indian Act*, such as the exclusion of off-reserve band members from voting on band governance, splintered relations between those groups and in many cases permanently alienated off-reserve members from their communities. Historically, Canada has also enacted laws that deprived women of Indian status if they married non-status men. In 1985, Bill C-31, which became an *Act to amend the Indian Act*, S.C. 1985, c. 27, reversed this discriminatory policy and restored Indian status to many women and to some of their descendants. However, this led to an abrupt increase in the number of status Indian women living off-reserve (*Corbiere*, at paras. 30 and 85-86, per L'Heureux-Dubé J.).

[376] Indigenous people in urban centres "have experienced racism, culture shock, and difficulty maintaining their identity in particular and serious ways" (R.F. on cross-appeal, at para. 57, citing *Corbiere*, at para. 72, per L'Heureux-Dubé J.; see also Royal Commission, vol. 4, at pp. 519-26). In 2019, the report issued by the National Inquiry into Missing and Murdered Indigenous Women and Girls found that, as a result of past government conduct, Indigenous women in urban areas are "alienated from their home communities, sometimes as single parents and sole providers for their children" and are "often hundreds of kilometres from their homes and social support systems, navigating racist barriers deeply embedded in urban services and experiences" (*Reclaiming Power and Place: The Final Report of the National Inquiry into Missing and Murdered Indigenous Women and Girls*, vol. 1a (2019), at p. 273; see also R.F. on cross-appeal, at para. 61).

[377] Band members living off-reserve are a "discrete and insular minority" (*Corbiere*, at para. 71, per L'Heureux-Dubé J.). The repercussions of colonial and assimilationist policies persist. Just like off-reserve band members, other Indigenous people who live outside of their home community are vulnerable to being viewed as "less aboriginal" than their counterparts living on traditional territories (I.F., Congress of Aboriginal Peoples, at para. 9, citing *Lovelace v. Ontario*, 2000 SCC 37, [2000] 1 SCR 950, at paras. 71-72; *Corbiere*, at para. 18, per McLachlin and Bastarache JJ., and at paras. 71 and 92, per L'Heureux-Dubé J.).

[378] The residency requirement reinforces the stereotype that non-resident VGFN citizens are less worthy and entitled because they live off their traditional territory. The "powers of the band council … affect the interests and needs of both [on- and off-settlement land citizens]" (*Corbiere*, at para. 74, per L'Heureux-Dubé J.). By preventing Ms. Dickson and other VGFN citizens that live away from the settlement land from participating in government decision-making, the residency requirement at the very least perpetuates disadvantage. Direct evidence of this can be found in the record. VGFN citizens living outside of Old Crow, the only village on the settlement land, stated feeling as though they were not valued members of their community because of where they lived (A.R., vol. II, at pp. 22, 38 and 42). One citizen mentioned having inadequate access to information or decision-making, rendering it difficult for non-residents to stay connected to the community (p. 22). Another citizen stated feeling "disconnected and forgotten" because of where she lived, and that her views were not represented on council (p. 38). A third citizen stated that she feels it is more difficult for VGFN citizens who live outside of Old Crow to "participate in the governance of our nation and maintain a connection to the nation" (p. 42). By excluding non-resident citizens from meaningful democratic participation, the residency requirement reinforces the stereotype that to be "truly Aboriginal", one has to live on the reserve or the settlement land (*Corbiere*, at para. 71, per L'Heureux-Dubé J.; *Cardinal*, at para. 54).

[379] As observed in *Corbiere* (at para. 71 (emphasis added)), the Royal Commission noted that "[d]ecision makers have not always considered the perspectives and needs of Aboriginal people living off reserves, particularly their Aboriginal identity and their desire for connection to their heritage and cultural roots" (vol. 4, at p. 519). The right to vote, without ever being able to vote for someone who represents or understands the perspective of those who live away from the settlement land, is inadequate. Several cases from the Federal Court have similarly concluded that being able to vote is not a replacement for holding office as a council member. In *Esquega v. Canada (Attorney General)*, 2007 FC 878, [2008] 1 F.C.R. 795, rev'd on other grounds by 2008 FCA 182, [2009] 1 F.C.R. 448, the Federal Court found that the residency requirement in s. 75(1) of the *Indian Act* violated s. 15(1) of the *Charter*. Under the terms of this provision, "[n]o person other than an elector who resides in an electoral section may be nominated for the office of councillor to represent that section on the council of the band." Relying on *Corbiere*, the Federal Court found that "band members who live off-reserve have historically faced disadvantage as a result of legislation and policies designed to deny them the right to participate in band governance" and that "[s]uch legislation perpetuates the wrongful notion that band members who live off-reserve have no interest in participating in band governance and are therefore less worthy of doing so" (para. 88). The court also found that off-reserve members "hold a fundamental interest in participating in band council and making decisions on behalf of their band" (para. 91). The court concluded that s. 75(1) of the *Indian Act* discriminated "against off-reserve members by prohibiting them from participating in the representative governance of their band through band council on the basis of their 'Aboriginality-residence' status" (para. 92).

[380] Similarly, in *Joseph v. Dzawada'enuxw (Tsawataineuk) First Nation Band Council*, 2013 FC 974, [2014] 1 C.N.L.R. 149, the Dzawada'enuxw (Tsawataineuk) First Nation's 2011 election code provided governing positions for both resident and non-resident band members. However, while three quarters of the band members were non-resident, three out of the four positions on council were not available to them, including the position of the Chair. The court noted that even if the non-resident members were represented in council deliberations by the non-resident councillor, "when push comes to shove, that Councillor can be easily outvoted by the resident Councillors" (para. 57). The

court found that the distinction in the code created "a disadvantage by perpetuating the stereotype that non-resident Band members have reduced ability or interest in contributing to Band governance" and concluded that the restriction therefore violated s. 15(1) of the *Charter* (para. 58).

[381] In this case, the residency requirement is not absolute. Non-residents can run for office, so long as they "relocate to Settlement Land within 14 days after election day" (VGFN Constitution, Article XI(2)). Any burden of relocating is mitigated by a four-year paid salary and Vuntut Gwitchin staff housing (R.F., at para. 157, citing trial reasons, at para. 156). The VGFN argues this relocation requirement means that "there is no exclusion from participation generally and there is not a 'total' exclusion from candidacy, but instead a limited effect only on those who are ultimately elected" (R.F., at para. 157 (emphasis deleted)).

[382] We agree with Ms. Dickson that requiring a non-resident citizen to relocate to the settlement land to participate in community governance means requiring a person to change a constructively immutable characteristic (R.F. on cross-appeal, at paras. 70-71). "This Court has consistently held that differential treatment can be discriminatory even if it is based on choices made by the affected individual or group" (*Fraser*, at para. 86). Once it is accepted, as we have, that Aboriginality-residence is an analogous ground outside the reserve context, choice is no longer relevant as a matter of law (*Fraser*, at para. 91, citing *Miron*, at para. 153; see also J. Koshan and J. Watson Hamilton, *Tugging at the Strands: Adverse Effects Discrimination and the Supreme Court Decision in Fraser*, November 9, 2020 (online)). In *Cardinal*, the Federal Court struck down a requirement that elected councillors must relocate to the reserve within three months of being elected, finding that it perpetuates "the pre-existing disadvantage of the group it was intended to benefit" and "the stereotype that only members on the reserve are able to decide the affairs of the band" (paras. 58 and 65). Similarly, in the instant case, having found that there is a discriminatory distinction based on the analogous ground of Aboriginality-residence, Ms. Dickson's illusory choice to move back to the settlement land is no longer relevant under the s. 15(1) analysis. Asking Ms. Dickson to relocate once elected is to ask her to change a constructively immutable characteristic — akin to changing religion or citizenship. Relocating to Old Crow is not simply a matter of cost, and it is not sufficiently mitigated by the fact that VGFN councillors earn a salary or that housing will be arranged. As was recognized in *Corbiere*, claimants live apart from their home communities due to factors that are beyond their control such as "[l]ack of land, what are often scarce job opportunities on reserves, and the need to go far from the community for schooling" (para. 84, per L'Heureux-Dubé J.). In Ms. Dickson's case, she cannot move primarily due to her son's medical condition (A.R., vol. II, at p. 63).

[383] The distinction created by the residency requirement imposes a burden and denies a benefit to non-resident citizens like Ms. Dickson in a manner that has the effect of perpetuating the erroneous notion that citizens who do not live on the settlement land have no interest in and a reduced ability to participate in community governance. The distinction also reinforces the stereotype that non-resident citizens are less worthy to serve on the basis of where they live (*Cardinal*, at para. 52).

[384] We therefore conclude that Ms. Dickson's right to equality guaranteed by s. 15(1) of the *Charter* is infringed by the VGFN's enactment of the residency requirement.

B. *Does the Residency Requirement Fall Within the Scope of Section 25?*

[385] The second question is whether s. 25 is engaged. Does this case implicate a collective Indigenous right within the scope of s. 25?

[386] As we have explained, the rights within the scope of s. 25 are those that are unique to Indigenous peoples because they are Indigenous. Moreover, as s. 25 was not intended to create *Charter*-free zones, we agree with the Attorney General of Alberta's submission that a s. 25 right relating to self-government must be cast in terms of a "right to impose a specific rule [or] law" rather than a right to govern or regulate in general (I.F., at para. 73 (emphasis in original)). Otherwise, *Charter* protections could be minimized in relation to a broad range of inherently governmental action. Section 25 is narrower than that.

[387] The VGFN has the right to regulate the composition of its governing bodies. Its ability to do so stems from a number of sources, including s. 8(1)(b) of the *Yukon First Nations Self-Government Act* (the constitution shall provide for the "composition" and "membership" of the first nation's governing bodies), s. 24.5.1 of the VGFN Final Agreement (negotiations regarding the constitution may include the composition and structure of government institutions), and s. 10.1.2 of the VGFN Self-Government Agreement (the constitution shall establish governing bodies and provide for their "powers, duties, composition, membership and procedures").

[388] But is a self-governing Indigenous nation's right to regulate the composition of its governing bodies a unique collective right, belonging to Indigenous peoples because they are Indigenous? We cannot say that it is.

[389] There is growing recognition that Indigenous communities are law-makers, in addition to being rights-bearers. Self-government agreements, such as the Umbrella Final Agreement with Yukon First Nations and the VGFN Self-Government Agreement, are examples of this recognition. There is no doubt that Indigenous self-government, which for the VGFN has been a reality since time immemorial, is a means of recognizing and protecting Indigenous difference.

[390] However, not everything that an Indigenous government does can be fairly said to be the exercise of a unique right tied to the community's collective identity. Many laws and actions of a self-governing Indigenous nation will be best characterized as simply governmental. There is nothing unique about governments — whether federal, provincial, territorial, municipal, or Indigenous — enacting laws concerning the composition of their governing bodies. All governments do so. Governments across Canada also impose residency requirements for service in legislatures and other governing bodies (see, e.g., *Legislative Assembly Act*, R.S.Y. 2002, c. 136, ss. 4 and 8, referentially incorporating the *Elections Act*, R.S.Y. 2002, c. 63, ss. 3(c) and 6; *Legislative Assembly Act*, R.S.O. 1990, c. L.10, s. 6; *Local Authorities Election Act*, R.S.A. 2000, c. L-21, s. 21). The VGFN is not unique in this regard. As Ms. Dickson notes, the residency requirement reflects the VGFN's "adoption of a democratic system of governance" (A.F., at para. 84).

[391] The residency requirement draws an intra-group distinction on the basis of residency; it has the effect of excluding non-resident VGFN citizens like Ms. Dickson from a core aspect of democratic participation in their community. It is directed at the internal regulation of the VGFN and is not aimed at recognizing the special status of Indigenous collectives within the broader Canadian state. We are therefore not satisfied that the residency requirement constitutes the exercise of a right falling within the ambit of s. 25. As it infringes s. 15(1) of the *Charter*, it should be subject to a justification analysis under s. 1.

C. *In the Alternative, Does Section 25 Operate to Protect the Residency Requirement?*

[392] Alternatively, even if we were to share Kasirer and Jamal JJ.'s view that the residency requirement constitutes the exercise of a right within the scope of s. 25, we would nevertheless conclude that s. 25 would not give primacy to the collective right in this case. Given this conclusion, the VGFN should bear the burden of justifying the residency requirement, which infringes s. 15(1) of the *Charter*, under s. 1.

[393] We are not persuaded that the residency requirement — the impugned exercise of the collective Indigenous right — is necessary to the maintenance of the VGFN's distinctive culture. Ms. Dickson is an internal claimant seeking vindication of her individual *Charter* right in an attempt to participate in the collective governance of her community. This is not a case involving external forces seeking to undermine the VGFN's self-government rights broadly or, more specifically, its right to regulate the composition of its governing bodies.

[394] Similarly, any impact on the VGFN's right to regulate the composition of its governing bodies that results from giving effect to Ms. Dickson's equality rights under the *Charter* would be minor. We agree with Ms. Dickson that the VGFN would be well positioned to enact a residency requirement that reflects the community's unique circumstances but does not fully bar the hundreds of citizens that live away from the settlement land from a core aspect of democratic participation. Respect for equality rights can co-exist with robust Indigenous self-government.

[395] Accordingly, interpreting the competing rights in a manner that is respectful of the purpose of s. 25 reveals that giving effect to Ms. Dickson's *Charter* rights would not "abrogate or derogate from any aboriginal, treaty or other rights or freedoms that pertain to the aboriginal peoples of Canada". Section 25 does not operate to give primacy to the residency requirement over individual *Charter* rights in this case.

V. Section 1 of the *Charter*

[396] Our conclusion that s. 25 does not apply in this case does not mean that Indigenous difference is an irrelevant consideration in assessing the *Charter* claim. On the contrary — it has a significant role to play in the s. 1 justification analysis. Courts must respectfully take into account the perspective of the Indigenous community at all analytical stages. Like all s. 1 analyses, the assessment is contextual. As Professor Macklem explains:

> Because of the constitutional significance of indigenous difference, the judiciary ought to extend a wide margin of appreciation to Aboriginal forms of social and political organization when assessing the constitutionality of an internal restriction. Most Aboriginal nations in Canada, for example, place great emphasis on the interconnectedness of family and clan. Densely textured forms of social and political organization that reflect … the unique identity of an Aboriginal nation should not be dismantled through Charter litigation because they might appear to be foreign to Western norms of individualism. In the event of an infringement, an Aboriginal community should be required to justify the restriction in the name of indigenous difference by demonstrating its relevance to the community's past and future. [Emphasis added; footnote omitted; p. 226.]

[397] Section 1 of the *Charter* permits a government entity to justify an infringement of an individual's *Charter* rights. To establish that the s. 15(1) infringement is justified in this case, the VGFN has the onus of demonstrating that the residency requirement furthers a pressing and substantial objective and that the means chosen to achieve it are proportionate to it (*R. v. Oakes*, 1986 CanLII 46 (SCC), [1986] 1 SCR 103, at pp. 138-39).

A. *Pressing and Substantial Objective*

[398] The residency requirement serves to advance the pressing and substantial objective of "the promotion and maintenance of self-governance and connection to the homelands" (R.F., at para. 162). Requiring members of the governing body to reside on the settlement land fosters a real, substantial and present connection to the community. This facilitates the pursuit of meaningful and effective self-government by and for VGFN citizens, in the context of the cultural erosion that has occurred as a result of Crown policy (see R.F., at para. 169). We accept that the residency requirement was enacted for a pressing and substantial objective.

B. *Proportionality*

(1) Rational Connection

[399] The question at the first step of the proportionality inquiry is whether the measure that has been adopted is rationally connected to the objective it was designed to achieve. Ms. Dickson argues that VGFN culture is enhanced by broad participation of citizens who are knowledgeable about VGFN land and traditions and possess leadership skills, regardless of where they live. As many VGFN citizens do not live on the settlement land, mandating a non-resident councillor would better represent the "needs and issues" of the non-resident community (A.F., at para. 117, citing A.R., vol. VI, at p. 140). As such, the residency requirement is not rationally connected to its objectives.

[400] The VGFN submits that as a self-governing Indigenous community with a legal order rooted in its traditional territory, it is critical and logical that elected leaders be connected to the territory by being physically present on those lands. Currently, non-resident citizens can participate in and influence band governance by voting, but governance positions are limited to local citizens. This limitation is necessary to maintain traditional place-based decision-making structures, including the VGFN's practice of deliberative assembly (R.F., at para. 170, citing A.R., vol. VI, at pp. 139-40; trial reasons, at para. 12). The Gwitchin traditions encapsulate particular attributes of leadership, including the ability to maintain enduring relationships with their people and with the land (C.A. reasons, at para. 115, citing S. M. Beairsto, *Dinjii Kat Chih Ahaa: Gwich'in Notions of Leadership* (1999)).

[401] We accept the VGFN's statement on the rationale of the residency requirement. Moreover, the requirement for residential connection of an elected representative to the relevant jurisdiction is consistently expressed in non-Indigenous electoral rules (*Legislative Assembly Act* (Yukon), ss. 4 and 8, referentially incorporating the *Elections Act*, ss. 3(c) and 6; *Municipal Act*, R.S.Y. 2002, c. 154, ss. 48(1)(c), 50(1) and 193.04(1)(a)(iii); trial reasons, at para. 209). Such a requirement is no less relevant in the context of Indigenous self-government. We therefore conclude that the residency requirement is rationally connected to its purposes.

(2) Minimal Impairment

…

[403] Under s. 1, the means chosen by governments to achieve an objective are accorded a degree of deference (*C.P.*, at para. 179, per Kasirer J., concurring; *Quebec v. A*, at para. 439; *RJR-MacDonald*, at para. 160; *Alberta v. Hutterian Brethren of Wilson Colony*, 2009 SCC 37, [2009] 2 SCR 567, at paras. 37 and 53). The need for courts to defer to governmental decision-making is even more acute in the context of a self-governing Indigenous nation such as the VGFN. Indigenous peoples must be given latitude "to develop their cultures and societies in the way they see fit" (see I.F., Band Members Alliance and Advocacy Association of Canada, at para. 23).

[404] The residency requirement seeks to balance the legitimate competing social values of preserving the VGFN's collective identity and maximizing opportunities for VGFN citizens to participate in self-governance (R.F., at para. 172). While we accept that some distinction may be justified in order to protect the collective interests of citizens living on the settlement land, a minimally impairing measure must make at least some accommodation of the right to participate in community governance for non-resident citizens (see *Corbiere*, at para. 21; *Esquega* FC), at para. 96; *Clifton*, at para. 17). As the majority noted in *Hutterian Brethren*, at para. 55 (emphasis deleted), at the minimal impairment stage, "the court need not be satisfied that the alternative would satisfy the [pressing and substantial] objective to exactly the same extent or degree as the impugned measure". The availability of alternative measures that would "give sufficient protection, in all the circumstances, to the government's goal" should be considered (para. 55).

[405] A majority of the Court in *Corbiere* found the restriction on voting, while rationally connected to the aim of the legislation, was not minimally impairing (para. 21). The Court could not accept that a complete denial of voting rights of band members living off-reserve was necessary to achieve the objective. A similar conclusion was reached in *Esquega* ((FC), at para. 96). Without any efforts to seek alternatives to an outright ban, the Federal Court found that preventing off-reserve band members from participating in a governing role does not minimally

impair their equality rights (para. 95). While the VGFN's residency requirement is not a form of total political exclusion, as citizens living off-settlement retain their voting rights, it does exclude non-resident citizens from serving on council and therefore precludes them from a core aspect of democratic participation.

[406] We are sensitive to the VGFN's argument that colonialism and decades of assimilationist policies have eroded the VGFN's land and culture to the point where the residency requirement is one of the few mechanisms available to preserve what remains. However, it is these same policies that have forced individuals like Ms. Dickson to live away from the settlement land. The residency requirement wholly bars non-resident citizens from serving on the VGFN's council despite this reality.

[407] We also take account of the fact that successful candidates for a VGFN council position are able to access staff housing in Old Crow (trial reasons, at para. 44). Moreover, councillors receive a full-time salary during their term of office (paras. 44 and 156). We agree with the VGFN that these factors mitigate to some degree the burden associated with a non-resident having to move to the settlement land if elected (see R.F., at para. 172).

[408] However, while affording a margin of appreciation to the VGFN is important, there is no evidence that the VGFN has sought any meaningful alternatives to the residency requirement itself. As we have explained above, obliging Ms. Dickson to change a constructively immutable characteristic in order to assume a council position is simply too invasive. As a result, we conclude that the residency requirement is not minimally impairing.

[409] In the past, Ms. Dickson has asserted at a VGFN General Assembly gathering that a minimally restrictive rule would reserve one council seat for non-resident citizens (see A.F., at para. 119). While we would defer to the VGFN to modify its residency requirement in a manner it sees fit, some adjustment must be made to ensure that non-resident citizens' rights are impaired no more than is reasonably necessary.

(3) Salutary and Deleterious Effects

[410] Our conclusion that the residency requirement is not minimally impairing of Ms. Dickson's s. 15(1) *Charter* right is sufficient to conclude that it is not justified under s. 1. However, for the sake of completeness, we turn to the final step of the *Oakes* analysis.

[411] At this stage, the court considers whether there is proportionality between the overall effects of the *Charter*-infringing measure and the legislative objective (*Oakes*, at p. 139; *Hutterian Brethren*, at paras. 72-73). As we note above, we accept the VGFN's position that the residency requirement furthers self-government by maintaining the connection of the VGFN's elected leaders to traditional territory. The rule ameliorates the effects of colonial dislocation of the Vuntut Gwitchin peoples from control over that territory (R.F., at para. 173).

[412] However, the residency requirement mandates the political exclusion of non-resident citizens by denying them the ability to serve as an elected member of government. The ability to move back to the settlement land if elected is not a meaningful option for individuals like Ms. Dickson, who are displaced through no real choice of their own, and thus cannot be a mitigating consideration in these circumstances. As in *Frank*, this type of justification "is based on a misinterpretation of the nature of the choice available to non-resident citizens and also, more fundamentally, distorts the proper approach to the justification of a *Charter* infringement" (para. 81). The infringement of Ms. Dickson's *Charter* rights would not end if she resumed residence in Old Crow after becoming elected, and would not "detract from the harm done by an absolute prohibition" on her ability as a non-resident to hold a position on council if elected (para. 81). While the residency requirement is not a complete bar to democratic participation given that non-residents retain the right to vote, it nonetheless represents a significant incursion (para. 81).

[413] In our view, the VGFN has not shown that the benefits of the residency requirement outweigh the negative effects of the s. 15(1) breach at issue.

VI. Conclusion

[Martin and O'Bonsawin JJ concluded that the residency requirement infringed Ms. Dickson's s. 15(1) right to equality and could not be saved under s. 1. Section 25 did not operate to shield the collective Indigenous right to self-government. It was therefore declared to be of no force or effect.]

The following are the reasons delivered by

Rowe J. —

I. Overview

[417] Central to these reasons is the foundational premise that it is for Indigenous peoples to "define themselves and to choose by what means to make their decisions, according to their own laws, customs and practices" (*R. v. Desautel*, 2021 SCC 17, [2021] 1 SCR 533, at para. 86).

…

[419] In my view, the VGFN's enactment of the residency requirement in its Constitution is not subject to the *Charter*. In light of this conclusion, it is not necessary to address arguments concerning ss. 15(1) or 25 of the *Charter*. My reasons address and reject several arguments relating to the *Charter*'s application.

[420] First, the applicability of the *Charter* is determined under s. 32(1) of the *Charter*. Arguments made before this Court that seek to circumvent s. 32(1) by relying on other bases for *Charter* applicability are inconsistent with this Court's jurisprudence.

[421] Second, arguments that seek to bring the VGFN or its activities within s. 32(1) on the basis that the VGFN is *a* government are contrary to the text of s. 32(1), its history and place within the structure of the *Constitution Act, 1982*, and this Court's jurisprudence on the provision's purpose and scope. This jurisprudence confirms that the *Charter* applies to the federal and provincial governments. The meaning of "government" under s. 32(1) has been interpreted purposively so as to encompass the numerous manifestations of the federal and provincial governments, but other entities or their activities must exhibit a significant connection to one of those governments to fall within s. 32(1). Importantly, the rights of Indigenous peoples, including those relating to Indigenous governance, were dealt with separately in the *Constitution Act, 1982*, and their internal governance does not fall within the scope of the *Charter* unless there exists a significant connection to either the federal or a provincial government. While this connection may be present with band council structures imposed by the *Indian Act*, R.S.C. 1985, c. I-5, the same cannot be said for governance structures chosen by the Vuntut Gwitchin themselves, absent particular arrangements with the federal government or a provincial/territorial government.

[422] Third, the various arrangements between the VGFN and the federal and/or Yukon governments do not satisfy the significant connection necessary to bring the VGFN or its enactment of the residency requirement within the scope of s. 32(1). The VGFN's governance structures and internal decisions are rooted in the Vuntut Gwitchin's own legal traditions and choices and do not attract *Charter* scrutiny under s. 32(1).

[423] Fourth, imposing the *Charter* on the VGFN is not consistent with the objective of reconciliation and with the need to respect the ability and the right of the Vuntut Gwitchin to make decisions pursuant to their own laws, customs, and practices. This includes decisions about the adoption and amendment of protections for the rights and freedoms of VGFN citizens.

[424] Finally, contrary to Ms. Dickson's submissions, the VGFN never agreed to adopt the protections set out in the *Charter*. Rather, the VGFN has enacted its own protections for the rights of its citizens, many of which mirror the *Charter* but are adjusted to its people's own laws, customs, and practices. The protections in the VGFN Constitution include protections for equality rights. Ms. Dickson's challenge to a provision of the VGFN Constitution must be addressed pursuant to the VGFN's own internal structures and processes.

[425] Ultimately, this case is about whether, in crafting their own Constitution, the Vuntut Gwitchin can make their own choices about their affairs — including as to how they wish to protect fundamental rights and freedoms — or whether their choices are subject to judicial scrutiny under the *Charter*. I conclude that the choice is theirs. I would therefore dismiss Ms. Dickson's appeal and allow the VGFN's cross-appeal, on the basis that the *Charter* does not apply to the VGFN's enactment of the residency requirement.

[Section II regarding how the applicability of the *Charter* is determined under section 32 (1) and Section III regarding how the *Charter* applies to federal and provincial governments and entities or activities with a significant connection to those governments have been omitted.]

…

D. *Summary*

[469] It is clear that the *Charter* applies under s. 32(1) to the federal and provincial governments. While the jurisprudence recognizes that "government" takes on various forms in the modern administrative state, an entity or activity must bear a significant connection to the federal or a provincial government in order to fall within the scope of s. 32(1) of the *Charter*. Consequently, to determine whether the *Charter* applies to an entity such as the VGFN or to its activities, the focus must be on a connection to the federal or provincial government.

IV. The VGFN Arrangements Do Not Establish a Significant Connection to Either the Federal or the Yukon Government

[470] Having examined the scope of s. 32(1) of the *Charter*, I turn to whether the VGFN or its activities — namely, its enactment of the residency requirement — fall within that scope.

[471] In light of their flawed interpretation of this Court's s. 32(1) jurisprudence, many of the arguments made by the interveners, including the Attorney General of Canada, make no effort to demonstrate a significant connection to either the federal or the Yukon government. However, some of Ms. Dickson's arguments are directed to the VGFN's connection to the federal government by virtue of the various arrangements concerning self-government agreed to and adopted around 1993-1994 ("VGFN Arrangements"). She suggests that the VGFN Arrangements are sufficient to connect the VGFN to the federal government in the manner required under s. 32(1). These arguments are the focus of this section of my reasons.

[472] The VGFN Arrangements include multiple instruments. First, the signatories entered into the Vuntut Gwitchin First Nation Final Agreement (1993). It incorporates the terms of the Umbrella Final Agreement signed in 1993 between the federal and Yukon governments and the Council for Yukon Indians, which represented various Yukon First Nations, including the VGFN. The Final Agreement is a treaty protected by s. 35(1) of the *Constitution Act, 1982*. It implements a framework designed to "establis[h] institutions for self-government and the management of lands and resources" (*First Nation of Nacho Nyak Dun v. Yukon*, 2017 SCC 58, [2017] 2 SCR 576, at para. 10). Further to this framework, the signatories also agreed to the Vuntut Gwitchin First Nation Self-Government Agreement (1993). The Final Agreement stipulates that the Self-Government Agreement is not a treaty under s. 35, although its content and implementation flow directly from the parameters set out by the Final Agreement. Finally, legislation, including the federal *Yukon First Nations Self-Government Act*, S.C. 1994, c. 35 ("Federal Act"), was passed by Parliament and the Yukon legislature to give effect to the aforementioned agreements (see, e.g., Federal Act, s. 4). I note that the adoption of such legislation was expressly contemplated in the Umbrella Final Agreement and the Final Agreement, including a commitment to negotiate with and consult Yukon First Nations.

[473] Ms. Dickson's submissions relying on the VGFN Arrangements as establishing a significant connection to the federal government are often unclear, both in terms of their underlying assumptions and the branch of the *Eldridge* framework being relied upon. For clarity, I will examine her arguments within the framework set out in *Eldridge* and explain why they must be rejected under both branches.

A. *The Nature of the VGFN*

[474] The question under the first branch of *Eldridge* is whether there exists a significant connection between the VGFN and either the federal or the Yukon government, such that the VGFN is *itself* "government" in the sense required by s. 32(1). As I have explained, this is assessed based on either the nature of the entity or the degree of control exercised by the federal or the Yukon government over the entity. It is not suggested that the VGFN is controlled by the federal or the Yukon government, nor is it suggested that the VGFN is, by its very nature, part of the Yukon government; thus, the only question is whether the VGFN itself falls within the federal "government" by its very nature, as demonstrated by its creation, structure, and powers.

[475] Ms. Dickson suggests that "[t]he VGFN constitution and all VGFN laws" (R.F. on cross-appeal, at para. 29; see also para. 30) are given effect through a statutory delegation or grant of authority by the federal government to the Vuntut Gwitchin through the VGFN Arrangements. For example, she relies on the Federal Act to characterize the VGFN's "powers" as "creatures of legislation" and suggests that the VGFN's responsibilities were "transferred" to it by the federal government (para. 34). Taken together, the thrust of her position is that the VGFN Arrangements have the effect of the federal government *creating* and *structuring* VGFN governance and *delegating powers* to the VGFN in a manner sufficient to bring the VGFN within the scope of the federal government under s. 32(1).

[476] This argument fundamentally misconceives the special relationship between the Vuntut Gwitchin on one hand and the federal government as one of the successors to the Imperial Crown on the other. It also misconceives the restorative effect of the VGFN Arrangements on the Vuntut Gwitchin's internal governance structures.

[477] This Court's jurisprudence has consistently affirmed the special relationship between Indigenous peoples and the Crown (*Delgamuukw v. British Columbia*, 1997 CanLII 302 (SCC), [1997] 3 SCR 1010; *Rio Tinto Alcan Inc. v. Carrier Sekani Tribal Council*, 2010 SCC 43, [2010] 2 SCR 650, at paras. 59-60; *Nacho Nyak Dun*, at para. 33). This relationship stems from the prior existence of Indigenous peoples and their occupation of the territory that now encompasses Canada: "Long before Europeans explored and settled North America, aboriginal peoples were occupying and using most of this vast expanse of land in organized, distinctive societies with their own social and political structures" (*Mitchell v. M.N.R.*, 2001 SCC 33, [2001] 1 SCR 911, at para. 9; see also *R. v. Van der Peet*, 1996 CanLII 216 (SCC), [1996] 2 SCR 507, at para. 30). This Court has also repeatedly recognized the distinction between Indigenous and non-Indigenous legal traditions (*Delgamuukw*, at paras. 144-47; *R. v. Marshall*, 2005 SCC 43, [2005] 2 SCR 220, at para. 130), which reflects the fact that each tradition was developed by distinct structures of governance. The Vuntut Gwitchin are no exception: they had formed their own society long before the assertion of Crown sovereignty (trial reasons, at para. 11). Within this society, they developed their own laws, rules, and customs, pursuant to their own governance structures (para. 43).

[478] In the early period of Crown-Indigenous relations, the Imperial Crown largely did not interfere in matters of Indigenous peoples' internal governance and instead developed relationships with Indigenous leaders and communities (see, e.g., the *Royal Proclamation, 1763* (G.B.), 3 Geo. 3 (reproduced in R.S.C. 1985, App. II, No. 1), and the *Treaty of Niagara* (1764)). However, Crown respect for Indigenous governance eventually gave way to the "superimposition of European laws and customs" (*Manitoba Metis Federation Inc. v. Canada (Attorney General)*, 2013 SCC 14, [2013] 1 SCR 623, at para. 67, citing *Van der Peet*, at para. 248), particularly through the *Indian Act*'s band council system (trial reasons, at paras. 11-13). Internally, the Vuntut Gwitchin continued to make significant governance decisions collectively (trial reasons, at para. 12); however, their legal traditions were effectively relegated [translation] "to a space frequented by members of the community, but not third parties. In this way, [Indigenous] law has become invisible in the public space and in the structures and institutions of the dominant society that do not recognize it as having any validity" (G. Motard, "Regards croisés entre le droit innu et le droit québécois: territorialités en conflit" (2020), 65 *McGill L.J.* 421, at p. 442). As described by the trial judge, "[t]he displacement and alienation of Vuntut Gwitchin people from Vuntut Gwitchin Territory through imposed colonial laws and policies including residential schools, *Indian Act* administration and resource development without Vuntut Gwitchin consent or involvement has caused significant harm to the integrity and health of the Vuntut Gwitchin as a collective" (trial reasons, at para. 13). Such experiences are not unique to the Vuntut Gwitchin.

[479] It is in light of this historical context that modern treaties and similar agreements have sought to undo structures of imposed governance such as the *Indian Act*. To use the vocabulary of Professor Motard, they restore a "space" for Indigenous peoples to govern their own affairs pursuant to their own laws, customs, and practices. These acts of restoration are protected by binding commitments by the Crown to "relinquis[h] the historic control that the Canadian government has exerted", thereby "creating physical and jurisdictional space for such communities to express and foster cultural difference" (K. Manley-Casimir, "Toward a Bijural Interpretation of the Principle of Respect in Aboriginal Law" (2016), 61 *McGill L.J.* 939, at p. 974). The mutual commitments made within these agreements are necessary to ensure that Indigenous governance structures and traditions are not ignored by federal, provincial, or territorial institutions or rendered invisible in the face of conflicting laws. This is a legitimate concern, since Indigenous governance structures are emerging from a lengthy period in which this was what had occurred.

[480] The ongoing connection entailed by the mutual commitments in a modern treaty or other such agreement does not mean that the Indigenous governance structures *derive* their existence or authority from the federal government. Rather, such agreements are "*sui generis*" in nature (*Nacho Nyak Dun*, at para. 33); they "attempt to further the objective of reconciliation … by creating the legal basis to foster a positive long-term relationship between Aboriginal and non-Aboriginal communities" (*Beckman*, at para. 10). As Deschamps J. explained in *Beckman* regarding the various agreements with Yukon First Nations pursuant to the Umbrella Final Agreement, these agreements are "binding on the parties with respect to the matters they cover" and "[t]hrough these agreements, the First Nations concerned have taken control of their destiny" (para. 91).

[481] The VGFN Self-Government Agreement accomplishes these objectives by removing the band council structure under the *Indian Act*, which "cease[s] to exist" (s. 9.1). Various other components of the *Indian Act* are also rendered inapplicable through the ensuing Federal Act, alongside amendments to other statutes designed to give effect to the Crown's commitments toward Yukon First Nations (Federal Act, ss. 17(1) and 33 to 39). These developments had the consequence of restoring space for the Vuntut Gwitchin to govern their affairs pursuant to their own governance structures, rather than structures imposed by the Crown. This is an express purpose of the Self-Government Agreement:

> 2.1 The Vuntut Gwitchin First Nation has traditional decision-making structures and desires to maintain these traditional structures integrated with contemporary forms of government.

This is what occurred. The VGFN enacted its own Constitution, which sets out the VGFN's governance structures, including four branches of government: the General Assembly, the Elders Council, the Council, and the Vuntut Gwitchin Court (VGFN Constitution, Article V(1)). These structures constitute the "modern expression" of traditional Vuntut Gwitchin governance and were developed by the Vuntut Gwitchin through their traditional "governance practice of making significant decisions collectively through processes of community deliberation and discussion" (trial reasons, at para. 12). They do not owe their existence or authority to either the federal or the Yukon government.

[482] In spite of the foregoing, Ms. Dickson points to various provisions in the Federal Act to say that the VGFN Constitution and VGFN laws are "given the force of law in Canada" and thus derive their authority "as legislative instruments given force of law by Parliament" (R.F. on cross-appeal, at paras. 30-31; see also para. 29). This misunderstands what the Federal Act does. Statutes like the Federal Act are routinely adopted by the federal and provincial or territorial governments to ratify and implement modern treaties and agreements with Indigenous peoples. Indeed, the signatories to the VGFN Final Agreement and Self-Government Agreement expressly contemplated that Parliament and the Yukon legislature would enact legislation to implement these agreements, and that such legislation would be the product of negotiation and consultation with Yukon First Nations. This is not the sort of statute that would establish a significant connection between the federal government and the VGFN, as required under *Eldridge*. Indeed, the nature of the federal government's involvement within the VGFN Arrangements has the *opposite* effect of what is required by *Eldridge*, by ensuring that the federal government respects the VGFN's autonomy pursuant to commitments arrived at by agreement.

[483] Ms. Dickson also misconstrues the effect of particular provisions of the Federal Act. For example, she points to the fact that s. 8 of the Federal Act requires First Nations to enact a constitution. But this provision simply implements what Yukon First Nations had previously *agreed* to in the Umbrella Final Agreement. A written constitution fits within the restorative purpose of the VGFN Arrangements, because it is "an essential step in bridging the gap between Indigenous legal traditions and the Canadian legal system" (A. Geddes, "Indigenous Constitutionalism Beyond Section 35 and Section 91(24): The Significance of First Nations Constitutions in Canadian Law" (2019), 3 *Lakehead L.J.* 1, at p. 15; Final Agreement, s. 24.5; Self-Government Agreement, s. 10.1; Federal Act, s. 8(1)). It facilitates a transition from Crown-led to Indigenous-led governance by setting out, in a publicly accessible manner, the basic governance structures chosen *by the Vuntut Gwitchin*.

[484] Ms. Dickson also relies on s. 10 of the Federal Act. This is an administrative provision that again merely repeats the procedures agreed to by Yukon First Nations in the Umbrella Final Agreement and by the VGFN in the Self-Government Agreement. For example, s. 10 establishes a register of Yukon First Nation laws to make those laws easy to *access* (Self-Government Agreement, s. 21), a default rule for *when* laws come into force in order to avoid uncertainty (Federal Act, s. 10(4)), and an evidence provision on how the content of Yukon First Nations laws can be *proved* before Canadian legal institutions (s. 10(5)). Nothing in this provision suggests that the underlying exercises of VGFN governance derive their authority from the federal government.

[485] Nor does the fact that the VGFN agreed to a list of subject matters in the Final Agreement that would be the focus of further negotiation, or that the Federal Act and Self-Government Agreement entrenched VGFN authority in relation to particular subject matters, indicate a *delegation* of power by the federal government. Rather, the enumeration of specific subject matters is an important part of binding the federal government to respect the VGFN's spheres of governance authority. It would be impossible for the VGFN agreements to restore a protected space for Vuntut Gwitchin governance if the signatories did not make the *scope* of that space clear. To avoid this, the VGFN agreements seek to make the scope of the federal and territorial governments' commitments unequivocal. For example, the VGFN agreements recognize the VGFN's *exclusive* authority to regulate certain areas, with the corollary being that the Crown will withdraw from regulating these

areas in relation to the VGFN (see, e.g., Final Agreement, s. 13.1; Federal Act, s. 11(1)(a)). This focus on giving practical effect to the restoration of space for VGFN governance explains why significant portions of the VGFN agreements are devoted to the applicability (or inapplicability) of federal laws to VGFN citizens and the resolution of conflicts between federal and VGFN laws.

[486] Of course, the Federal Act is an act of Parliament and is therefore subject to the *Charter*. Thus, Ms. Dickson may challenge the Federal Act or any of its provisions pursuant to the *Charter*. I note that in *Stoffman*, *McKinney*, and *Harrison*, there existed a network of provincial legislation concerning the structure and by-laws of hospitals or universities, any of which could be challenged under the *Charter*, yet the *Charter* was found not to apply to those entities' *own* activities. As in those cases, Ms. Dickson is not challenging the Federal Act itself or any of its provisions, but rather a provision found within the VGFN Constitution concerning the VGFN's internal governance structures.

[487] Finally, the courts below and certain interveners seek to apply the *Charter* by analogizing the VGFN to *Indian Act* band councils or municipalities, which have been viewed as extensions of the federal and provincial governments respectively in the existing jurisprudence (see, e.g., I.F., Attorney General of Quebec, at para. 7; trial reasons, at paras. 124-25; C.A. reasons, at para. 84). These comparisons are misplaced.

[488] Band councils are "a creature of the *Indian Act*" whose powers and constraints arise by virtue of federal legislation (*Public Service Alliance of Canada v. Francis*, 1982 CanLII 195 (SCC), [1982] 2 SCR 72, at p. 78; see also pp. 76-77). By contrast, as I have explained, the VGFN Arrangements *remove* the band council layer of Crown-imposed governance and *sever* various connections to the federal government, in order for the Vuntut Gwitchin to restore and carry forward their own governance structures. I therefore disagree with the intervener the Attorney General of Quebec that it is [translation] "illogical for *Indian Act* band councils to be subject to the *Charter* but for other Indigenous governance entities not to be" (I.F., at para. 7). To the contrary, to proceed as if the Crown-imposed band council and the present-day VGFN are indistinguishable extensions of the federal government is to disregard the very purpose of the VGFN Arrangements and the "incredible accomplishment of replacing the *Indian Act* with the VGFN Constitution" (trial reasons, at para. 152; C.A. reasons, at para. 51).

[489] Similarly, as I have previously noted, municipalities "derive their existence and law-making authority from the provinces; that is, they exercise powers conferred on them by provincial legislatures" (*Godbout*, at para. 51), and they are subject to the province's "absolute and unfettered legal power to do with them as it wills" (*Toronto (City)*, at para. 2, citing *Ontario Public School Boards' Assn. v. Ontario (Attorney General)* (1997), 1997 CanLII 12352 (ON SC), 151 D.L.R. (4th) 346 (Ont. C.J. (Gen. Div.)), at p. 361). This is clearly not the case with the VGFN's governance structures, whose autonomy the federal and Yukon governments have bound themselves to respect.

[490] It is clear from the foregoing that the VGFN is not, by its nature, part of the apparatus of the federal government in the sense required under s. 32(1). Rather, its internal governance structures are rooted in the VGFN's own laws, customs, and practices. The VGFN Arrangements give the VGFN's unique governance structures effect within contemporary Canada through mutually binding commitments between the VGFN and the Crown.

B. *The Nature of the Residency Requirement*

…

[493] It is clear that the decision to enact the residency requirement is an autonomous act of Vuntut Gwitchin governance, not a decision "ascribable" to the federal government. The residency requirement is a provision of the VGFN's *own* Constitution. It was enacted by the VGFN, following a General Assembly with VGFN citizens, in keeping with the consensus-based practices of traditional Vuntut Gwitchin leadership selection (trial reasons, at para. 11). It was enacted to regulate the *internal* elections of the VGFN Council, which is one of the branches of VGFN government created by the Vuntut Gwitchin. It is clearly not the "implementation of a specific statutory scheme or a government program" (*Eldridge*, at para. 44) of the federal government and does not constitute what is required under the second branch of *Eldridge*. There is no specific, identifiable federal policy akin to what was found in *Eldridge*, where the Court concluded that hospitals "act as agents for the government in providing the specific medical services set out in the [*Hospital Insurance Act*]" (para. 51). That finding was based on the legislation that hospitals operate under and with a clear connection to the mandate of the provincial government. As La Forest J. explained, "it is the government, and not hospitals, that is responsible for defining both the content of the service to be delivered and the persons entitled to receive it" (para. 49). Hospitals were "merely the vehicles the legislature has chosen to deliver this program" (para. 50). Through its enactment of the residency requirement, the VGFN is not "merely the vehicl[e]" for a policy choice of the federal government.

[494] The case for applying the *Charter* to the residency requirement is even less compelling than in *Stoffman*, where the *Charter* was held not to apply to a hospital's by-laws. Although the by-laws were expressly subject to approval by the government before coming into force, they did not implement a specific governmental policy and were thus not subject to the *Charter*. Indeed, there was considerable variety between the by-laws adopted by different hospitals, which indicated that the policies were "left to the judgment of those entrusted with the responsibility of managing individual hospitals" (p. 508). Not only can there be considerable variety in the constitutions of various Yukon First Nations, but there is nothing akin to the oversight found in *Stoffman*. This is to be expected for arrangements which are about VGFN *self*-government.

[495] Thus, the VGFN Arrangements do not establish a "direct and … precisely-defined connection" between the residency requirement and the federal government (*Eldridge*, at para. 51). As under the first branch of *Eldridge*, nothing in the VGFN Arrangements transform the VGFN's internal decision to enact the residency requirement into an activity ascribable to the Crown. The residency requirement reflects the VGFN's *own* decision about its *own* elected leaders. On a proper understanding of the VGFN Arrangements, the enactment of the residency requirement is not an act that can be ascribed to either the federal or the Yukon government in the sense required by s. 32(1).

C. *Summary*

[496] Taken together, none of the aspects of the VGFN Arrangements show that either branch of the *Eldridge* framework applies. To the contrary, they reinforce that the VGFN is distinct from the Crown, including in enacting the residency requirement pursuant to its own laws, customs, and practices. To apply the *Charter* in this case would amount to viewing the VGFN as an extension of the federal or the Yukon government, or its enactment of the residency requirement as ascribable to one of them. Such an understanding is not only inconsistent with the VGFN Arrangements, but is also inconsistent with the special relationship between the federal and territorial governments and the Vuntut Gwitchin.

V. A Proper Application of Section 32(1) Promotes the Objective of Reconciliation

[497] A faithful application of this Court's jurisprudence leads inexorably to the conclusion that the VGFN and its enactment of the residency requirement do not fall within the scope of s. 32(1) of the *Charter*. Underlying Ms. Dickson and the interveners' arguments on the *Charter*'s applicability are, in reality, policy arguments: that the *Charter*'s protections *should* apply, because the VGFN is *a* government with significant authority over its citizens, and the inapplicability of the *Charter* under s. 32(1) would amount to creating a "'*Charter*-free' zon[e]" (R.F. on cross-appeal, at para. 43). Such policy arguments are not a sound basis in law to impose the *Charter* on the VGFN in a manner that effectively amends s. 32(1). Moreover, for the courts to impose the *Charter* on the VGFN would be contrary to the objective of reconciliation.

[498] Both the *Charter* and the diversity of Indigenous legal traditions are concerned with the protection of human dignity, but the *Charter* represents only one way to achieve this (L. E. Trakman, "Native Cultures in a Rights Empire Ending the Dominion" (1997), 45 *Buff. L. Rev.* 189; M. Boldt and J. A. Long, "Tribal Philosophies and the Canadian Charter of Rights and Freedoms", in M. Boldt and J. A. Long, eds., *The*

Quest for Justice: Aboriginal Peoples and Aboriginal Rights (1985), 165; N. Metallic, "Checking our Attachment to the *Charter* and Respecting Indigenous Legal Orders: A Framework for *Charter* Application to Indigenous Governments" (2022), 31:2 *Const. Forum* 3, at p. 15). The *Charter* exhibits one conception of how the individual interacts with the state, inspired by liberal enlightenment philosophy (*Van der Peet*, at para. 18; T. S. Axworthy, "Colliding Visions: the Debate Over the Charter of Rights and Freedoms 1980-81", in Weiler and Elliot, *Litigating the Values of a Nation* (1986), 13, at p. 15; Strayer, at p. 219). Thus, it has been suggested that "the rights guaranteed in the *Charter* erect around each individual, metaphorically speaking, an invisible fence over which the state will not be allowed to trespass" (*R. v. Morgentaler*, 1988 CanLII 90 (SCC), [1988] 1 SCR 30, at p. 164, per Wilson J., concurring).

[499] These philosophical underpinnings of the *Charter* may not necessarily be commensurate with some Indigenous worldviews (A. Swiffen, "Constitutional Reconciliation and the *Canadian Charter of Rights and Freedoms*" (2019), 24 *Rev. Const. Stud.* 85, at pp. 110-12; K. McNeil, "Aboriginal Governments and the *Canadian Charter of Rights and Freedoms*" (1996), 34 *Osgoode Hall L.J.* 61; J. Y. Henderson, *First Nations Jurisprudence and Aboriginal Rights: Defining the Just Society* (2006)) and with the structure of Indigenous governing bodies which seek to "maintain … traditional structures integrated with contemporary forms of government" (Self-Government Agreement, s. 2.1). For example, there may be tensions between the *Charter*'s general focus on negative rights and certain communities' preference for a more relational, reciprocal understanding of "relationships, duties, and responsibilities" (Henderson, at p. 126; Boldt and Long, at p. 167). Some scholars have noted the potential for cultural disconnect between the *Charter*'s anthropocentric focus on human rights-holders, and a more ecocentric or cosmocentric understanding of rights and responsibilities (A. Mills, "The Lifeworlds of Law: On Revitalizing Indigenous Legal Orders Today" (2016), 61 *McGill L.J.* 847, at pp. 864-65; Boldt and Long, at p. 166; Manley-Casimir, at p. 953). Finally, depending on the systems upon which Indigenous governance structures are created, Indigenous communities may see the balance between individual and collective rights, and between individuals and the state, differently (Trakman, at pp. 193-94).

[500] Even where the value systems and legal traditions of specific Indigenous communities point to the same result as the *Charter*, their mode of reasoning may differ. For example, Indigenous stories, customs, covenants, ceremonies and deliberative circles can be powerful sources of Indigenous law, including on the limits of government power (see, e.g., *In re: Certified Questions II*, 6 Nav. R. 105 (1989); Henderson, at pp. 127 and 163-77). These can form the basis for Indigenous communities to codify a charter of rights that is adapted to their culture, traditions, and outlook. Rather than a "monolithic form of rights analysis", Indigenous communities can craft protections for human rights which integrate their particular and distinct forms of Indigenous law (H. P. Glenn, *Legal Traditions of the World: Sustainable Diversity in Law* (5th ed. 2014), at p. 92). These alternative sources of rights and responsibilities can "serve the goal of human dignity as effectively as a western code of human rights" (p. 93). By contrast, the imposition of the *Charter* by the courts risks enabling litigants to "constitutionally interrogate the rich complexity of Aboriginal societies according to a rigid analytic grid of individual right and state obligation" (P. Macklem, *Indigenous Difference and the Constitution of Canada* (2001), at p. 195).

[501] Of course, the foregoing analysis is not to say that *Charter* protections are inherently in tension with the desires of Indigenous communities, including the VGFN. Indigenous value systems and legal traditions should not be treated as monolithic, and it should not be assumed that individual rights are necessarily in conflict with collective Indigenous governance (Metallic, at p. 15). Moreover, Indigenous communities are not static: interaction with other societies over centuries, and the adoption of different systems of governance via treaty, may increase the commensurability of *Charter* protections (G. Otis, "La gouvernance autochtone avec ou sans la *Charte Canadienne*?" (2005), 36 *Ottawa L. Rev.* 207). The *Charter* remains an exceptional achievement, which explains why a variety of Indigenous groups, especially women's groups, have supported its content (see, e.g., Swiffen, at pp. 110-12; Metallic, at p. 6).

[502] What is clear, however, is that the *Charter* should not be *imposed* on Indigenous communities. As noted by Professor McNeil, "[f]or the *Charter* to be unilaterally imposed on their governments today through a questionable interpretation of section 32(1) would turn the clock back to a time when the Aboriginal peoples were often not given the opportunity to participate when important decisions affecting their constitutional rights were made" (pp. 70-71). It is not for this Court to scrutinize the wisdom or fairness of the VGFN's choices by transposing an instrument designed by and for the federal and provincial governments onto the Vuntut Gwitchin, who did not participate in its creation or agree to its terms. To do so would be to subject the Vuntut Gwitchin to the sort of federal oversight from which it sought to remove itself through the VGFN Arrangements.

[503] Some scholars suggest that s. 25 can serve as a flexible way to remedy such concerns, without sacrificing *Charter* protection (see, e.g., P. W. Hogg and M. E. Turpel, "Implementing Aboriginal Self-Government: Constitutional and Jurisdictional Issues", in Royal Commission on Aboriginal Peoples, *Aboriginal Self-Government: Legal and Constitutional Issues* (1995), 375; Otis). This position may have superficial appeal, but it does not withstand closer scrutiny. First, whether s. 25 is used as a shield or an interpretative prism, the VGFN is still "subjected to having its legal order intensely scrutinized by standards foreign to it" (Metallic, at p. 8). For example, on the proposed approach of the Attorney General of Canada, courts would be tasked with evaluating the *prima facie* engagement of a *Charter* right, whether there is a "true conflict" between the *Charter* right and the Aboriginal right, and if so, whether the exercise of the implicated right is necessary "to the maintenance of the Indigenous group's distinctive culture" (I.F., at para. 27). This is highly intrusive, calling for the VGFN to justify the exercise of its authority by reference to standards not of their own choosing.

[504] Second, many claims may not be shielded by s. 25 at all. On the Attorney General of Canada's approach, s. 25 would be reserved for Aboriginal and treaty rights, and other rights of a "constitutional character" (I.F., at para. 44, citing *R. v. Kapp*, 2008 SCC 41, [2008] 2 SCR 483, at para. 63). Moreover, Indigenous governments would have the burden of demonstrating the existence of such a right or freedom. Decades of s. 35(1) litigation have shown that this is a lengthy and evidence-heavy process. As McLachlin C.J. noted in *Haida Nation v. British Columbia (Minister of Forests)*, 2004 SCC 73, [2004] 3 SCR 511, "proving rights may take time, sometimes a very long time" (para. 26). Ultimately, the s. 25 analysis would force Indigenous governments to expend significant resources in order to protect their laws from the scrutiny of an instrument which was imposed upon them.

[505] As for policy arguments suggesting that the inapplicability of the *Charter* under s. 32(1) would create a "*Charter*-free zone", such arguments are dismissive of Indigenous approaches to protecting their members. Indeed, they rest on the erroneous assumption that if the *Charter* is not imposed, Indigenous community members will have no protections.

[506] Indigenous communities can and have enacted protections to regulate the interaction between members and their governments. A number of related approaches have been given effect across Canada. An Indigenous community can choose, on its own initiative, to implement an instrument that incorporates protections for members (as the federal and provincial governments did in enacting the *Charter*). Alternatively, it can commit via agreement or treaty — including through self-government agreements — to enact such an instrument. In either case, however, the Indigenous community plays an active role in deciding *how* it wants to craft such an instrument. Thus, it may enact — or agree to enact — its own protections rooted in its legal traditions; it may adopt an instrument that is inspired by the *Charter*; or it may even agree to the application of *Charter* protections. This may also be a subject of discussion among parties during the negotiation of self-government agreements. I note in passing that since 1995, Canada's negotiation policy has been to seek the insertion of a provision accepting the application of the *Charter* within self-government agreements (see, e.g., the Nisga'a Final Agreement (1999) and the Tla'amin Final Agreement (2014)).

Numerous questions arise concerning the effect of such an agreement (e.g., is the *actual Charter* being applied, or are its protections being incorporated? How are such rights enforced, and by which adjudicative bodies? What happens if the *Charter* is amended pursuant to the amending formula between the federal and provincial governments?), but it is not possible to answer these questions in the present case.

[507] What is crucial, and what the arguments of Ms. Dickson and certain interveners fail to appreciate, is that the foregoing avenues are a product of Indigenous *choice*. Indigenous communities can choose how to implement effective protections — whether on their own initiative or by mutual agreement with federal, provincial, and territorial authorities — rather than being subjected to the *Charter* via a distorted interpretation of s. 32(1). As I explained, taking reconciliation seriously means respecting Indigenous peoples' ability to "define themselves and to choose by what means to make their decisions, according to their own laws, customs and practices" (*Desautel*, at para. 86).

VI. The VGFN Agreed to the Enactment of Its Own Rights Protections, Rather Than the Application of *Charter* Protections

[508] This brings me to the final argument for the *Charter*'s applicability to the VGFN and its enactment of the residency requirement. Ms. Dickson suggests that even if the *Charter* does not apply pursuant s. 32(1), the VGFN expressly agreed to the applicability of *Charter* protections to its Constitution and laws. This argument is without merit. The VGFN did not agree to the applicability of the *Charter*; to the contrary, it agreed to enact its *own* rights protection instrument that is similar to, but still distinct from, the *Charter*.

A. *The VGFN Arrangements Do Not Contain an Agreement as to the Applicability of the Charter*

…

[516] In short, none of the provisions of the Final Agreement or the Self-Government Agreement suggest, much less "clearly and unambiguously" state, that the VGFN agreed to the applicability of the *Charter*. However, as I explain below, this does not mean that the VGFN fails to have regard to fundamental rights or freedoms, or that Canada and the Yukon did not, during negotiations, seek to ensure some measure of rights protections.

B. *The VGFN Has Enacted Its Own Rights Protections*

[517] The signatories to the Self-Government Agreement agreed to the following provision concerning the VGFN Constitution:

> 10.1 The Vuntut Gwitchin First Nation Constitution shall:
>
> …
>
> 10.1.4 recognize and protect the rights and freedoms of Citizens;

Furthermore, s. 10.1.6 stipulates that the VGFN Constitution shall "provide for amending the Constitution by the Citizens" — that is, the citizens of the VGFN. Just as the federal and provincial governments have had the authority to amend the Constitution of Canada since patriation in 1982, s. 10.1.6 provides that the VGFN is able to amend its own Constitution, including the instrument stipulated in s. 10.1.4 recognizing and protecting the rights and freedoms of citizens.

[518] Section 10.1.4's inclusion in the Self-Government Agreement confirms the signatories' agreed-upon method for protecting the rights and freedoms of VGFN citizens in a manner that is reconcilable with Vuntut Gwitchin laws, customs, and practices. The provision makes no reference to the *Charter*. Instead, the signatories provided more generally for the recognition and protection of the rights and freedoms of citizens, without requiring the adoption of the *exact* rights and freedoms set out in the *Charter*, and while providing for the VGFN to amend those protections through its *own* governance structures.

[519] The VGFN has made good on its commitments by adopting Article IV of its Constitution on the "Rights of Citizens". Much of Article IV is clearly inspired by the *Charter*, and many of the enumerated rights are nearly identical in wording to *Charter* rights. Despite these similarities, Article IV of the VGFN Constitution is uniquely tailored to the VGFN's own traditions, values, or priorities. For example, the VGFN has chosen to recognize Gwich'in as its official language and to protect its use (Articles IV(15) to (18)). And the VGFN has enshrined a right to access personal information possessed or controlled by the VGFN government (Article IV(20)(a)) — a right with no analogue in the *Charter*. Crucially, for the purposes of the present case, the right to hold office in Vuntut Gwitchin Government is expressly "[s]ubject to residency and other requirements set out in Vuntut Gwitchin Law" (Article IV(4)). The residency requirement itself is part of the VGFN Constitution under Article XI(2) and was added pursuant to constitutional amendments in 2006. The VGFN has thus elevated its view of the importance of its leaders residing on Settlement Land to constitutional status, pursuant to its own priorities and its own values for community leadership.

[520] Article IV of the VGFN Constitution exemplifies how an Indigenous community can enact protections for fundamental rights and freedoms that are commensurate with its own laws, customs, and practices. Contrary to the suggestions of Ms. Dickson and various interveners, it is not the case that individual rights are not respected by the VGFN or that VGFN citizens are deprived of fundamental rights and exist in a rights-free zone. The VGFN has constitutionally entrenched rights and freedoms — many of which mirror those in the *Charter* — alongside procedures for VGFN citizens to challenge VGFN laws.

[521] Indeed, Ms. Dickson's own petition pursued an alternative claim that the residency requirement was invalid under the VGFN Constitution. This claim under the VGFN Constitution was mentioned briefly by the trial judge, but the courts below did not decide the claim on the merits, preferring to resolve the case under the *Charter*. The VGFN argues that Ms. Dickson's claim is properly addressed under the VGFN Constitution, rather than under the *Charter*. I agree. Ms. Dickson seeks to challenge an internal rule of the VGFN in order to participate in its governance; her claim must be addressed based on the rights enshrined within the VGFN Constitution, pursuant to the VGFN's own governance structures and processes.

VII. Conclusion

[522] The VGFN governs the affairs of the Vuntut Gwitchin pursuant to its own governance structures and processes. This fulfills the goal of self-government enshrined in the VGFN Arrangements: to restore the Vuntut Gwitchin to a place wherein they make and implement decisions according to their own laws, customs, and practices. Having regard to the architecture of the *Constitution Act, 1982*, the relationship between Indigenous peoples and the federal and provincial governments, and the jurisprudence of this Court, it is my view that decisions about how to implement protections for the fundamental rights and freedoms of its citizens also rest with the VGFN. This in no way lessens the rights and freedoms that they enjoy vis-à-vis the federal and provincial governments under the *Charter* as citizens of Canada. Giving effect to Vuntut Gwitchin self-government is a critical part of the promise of reconciliation. This necessarily entails the right for the Vuntut Gwitchin themselves to decide what is fair and just in accordance with those rights and freedoms that they choose to enshrine in their own Constitution.

[523] I would dismiss Ms. Dickson's appeal and allow the VGFN's cross-appeal, on the basis that the *Charter* does not apply to the VGFN's enactment of the residency requirement, and set aside the orders of the lower courts.

5 Emerging Issues and Conclusion

Canadian democracy is in a constant state of evolution, despite apparent stability with a parliamentary form of government, a first-past-the-post electoral system, federalism, and judicial review with the *Canadian Charter of Rights and Freedoms.*

This section sets out important emerging issues likely to shape, and challenge, Canadian democracy in the coming years.

5.1 Emerging issues

Democratic Decline and Resilience - Canada is one of the world's longest standing democracies. It is not immune from broader, global trends. A decrease in the number of democracies globally, and the quality of democracy within the remaining group, has triggered extensive debate about democratic decline. Scholarship indicates that would-be authoritarians undermine democracy through law, by hindering accountability institutions, decreasing judicial independence, attacking the free press, and so on. What are the vulnerable points in Canadian democracy? How resilient is Canadian democracy? See Richard Albert and Michael Pal, "The Democratic Resilience of the Canadian Constitution" in Mark Graber, Mark Tushnet, and Sanford Levinson, eds, *Constitutional Democracy in Crisis?* (Oxford University Press, 2018).

Foreign Interference in Elections - Another global trend concerns foreign interference in elections. While not a new problem, the internet, social media platforms, and online politics have facilitated foreign interference in Canadian federal, provincial, and municipal elections. The Hogue Inquiry (Public Inquiry into Foreign Interference in Federal Electoral Processes and Democratic Institutions) into foreign interference in federal elections concluded in 2025 that foreign interference through social media, particularly through the spread of disinformation (deliberate lies) and misinformation (information believed by the communicator to be true but which is false) existed and constituted the single biggest risk to Canadian democracy. Disinformation about the electoral system and the trustworthiness of electoral results is a now-standard tactic of foreign interference, designed to undermine confidence in democracy and the perceived legitimacy of elected representatives. The Hogue Inquiry and the Chief Electoral Officer have recommended a number of legislative changes to address the issue, but foreign interference seems likely to be an ongoing challenge to be managed for Canadian democracy.

The Notwithstanding Clause - As discussed in Chapter 17, the notwithstanding clause is a controversial and increasingly relevant part of the *Charter.* Section 33 can be invoked by Parliament or a provincial legislature so as to shield a statute from invalidation by the courts for breaching select *Charter* rights or freedoms. Section 33 does not apply to some core democratic rights, notably the right to vote in s.3. Section 33 does not apply to structural guarantees of democracy in the *Charter,* namely the requirements that the House of Commons or provincial legislature meet at least once a year (s.5) and that there be an election at least every 5 years absent emergencies of a narrowly-defined type (s.4). Section 33 does still apply to freedom of political expression (s.2(b)), which is central to democratic life, and freedom of association (s.2(d)), which protects third parties and political parties among other organizations also key to democracy. Are there special considerations which should apply if s.33 is used in relation to the electoral or democratic aspects of s.2(b) or s.2(d)? If legislatures continue to use s.33 in relation to electoral statutes, courts may be confronted with uses of the notwithstanding clause that can be said to harm democracy as a whole.

Artificial Intelligence - No discussion of emerging issues in the law is complete without considering AI. AI has the potential to change elections, as a tool used by parties and candidates as well as by third parties. Electoral law has been updated many times to account for new technologies, such as the radio, political advertising on television, political party websites, and social media communication. Election law will no doubt need to be updated to address the uses and, inevitably, abuses of AI in the electoral context. The constitutional dimension includes whether such laws will be justified infringements of the freedom of expression of entities using AI.

5.2 Conclusion

Canadian democratic rights are set out in the *Charter,* but are mainly brought to life by electoral statutes, legislatures, and the practice of electoral politics. At a difficult time for democracy globally, these rights are central to ensuring that the full promise of democracy is realized in Canada.

6 Other Resources

6.1 Secondary materials

- Albert, Richard and Michael Pal, "The Democratic Resilience of the Canadian Constitution" in Mark Graber, Mark Tushnet, and Sanford Levinson, eds, *Constitutional Democracy in Crisis?* (Oxford University Press, 2018), 117-38.
- Bourgeois, Donald J. and Jess Spindler, with Susan B. Campbell. *Election Law in Canada*. 2nd ed (Toronto: LexisNexis, 2021).
- Boyer, J. Patrick, *Political Rights: The Legal Framework of Elections in Canada* (Toronto: Butterworths, 1981).
- Canada. Royal Commission on Electoral Reform and Party Financing. *Reforming Electoral Democracy: Final Report.* Ottawa: Ministry of Supply and Services Canada, 1991.
- Dawood, Yasmin. 'Democracy and the Right to Vote: Rethinking Democratic Rights under the Charter' (2013) 51 *Osgoode Hall LJ* 251.
- Feasby, Colin. 'Freedom of Expression and the Law of the Democratic Process' (2005) 29 SCLR 237; 2005 CanLIIDocs 313.
- Forcese, Craig and Aaron Freeman. *The Laws of Government: The Legal Foundations of Canadian Democracy.* (Toronto: Irwin Law, 2011).
- Gutmann, Amy. 'Democracy.' In Robert E. Goodin, Philip Pettit, Thomas Pogge, eds. *A Companion to Contemporary Political Philosophy*. 2nd ed. (Wiley-Blackwell, 2017), Chapter 25, 521-31.
- Hirschl, Ran. *Towards Juristocracy: The Origins and Consequences of the New Constitutionalism.* (Cambridge, MA: Harvard UP, 2004).
- Liston, Mary. 'The Most Opaque Branch: The (Un)Accountable Growth of Executive Power in Canadian Government' in Richard Albert, Paul Daly, and Vanessa MacDonnell, eds, *The Canadian Constitution in Transition* (University of Toronto Press, 2019), 19-59.
- MacIvor, Heather, ed. *Election* (Toronto: Emond Montgomery, 2010).
- Pal, Michael. 'The Unwritten Principle of Democracy' (2019) 65:2 McGill LJ 269-303.
- Pal, Michael. 'Is the Permanent Campaign the End of the Egalitarian Model of Elections?' in Richard Albert, Paul Daly, and Vanessa MacDonnell, eds, *The Canadian Constitution in Transition* (University of Toronto Press, 2019), 338-64.

- Russell, Peter H. *Two Cheers for Minority Government*. 2nd ed (Toronto: UofT Press, 2023).
- Sharpe, Robert J., and Kent Roach. *The Charter of Rights and Freedoms*, 7th ed (Toronto: Irwin Law, 2021).
- Vallée, Pierre. *Droit electoral québécois: repères et enjeux contemporains*. (Montréal: Wilson & Lafleur, 2023).

6.2 Websites

- The Canadian Encyclopedia
- Children First Canada
- Democracy Watch
- Elections Canada
- Fair Vote Canada
- First Nations Digital Democracy Project

6.3 Other cases

- Allocation of Broadcasting Time: *Reform Party of Canada et al v Canada* (Alberta Court of Appeal, March 10, 1995)
- Candidacy Requirements: *Szuchewycz v Canada (Attorney General)* (Court of Queen's Bench of Alberta, October 25, 2017)
- Contested Election: *McEwing v Canada (Attorney General)* (Federal Court, May 23, 2013)
- Date of the General Election: *Aryeh-Bain v Canada (Attorney General)* (Federal Court, July 26, 2019)
- Electoral Boundaries: *Société des Acadiens et Acadiennes du Nouveau-Brunswick v Canada* (injunction denied in New Brunswick Court of Queen's Bench, April 29, 1997; action discontinued on May 7, 2002); *Raîche v Canada (Attorney General)* (Federal Court, May 11, 2004)
- Judicial review of a disputed election under the *First Nations Elections Act*: *Lorentz v Suhr*, 2022 FC 1138
- Merger of Registered Political Parties: *Ahenakew v MacKay* (Ontario Court of Appeal, June 3, 2004); *Stevens v Conservative Party* (Federal Court of Appeal, November 17, 2005)
- Proper interpretive approach to Indigenous laws in the context of electoral disputes at judicial review: *Henry v Roseau River Anishnabe First Nation,* 2017 FC 1039 (Federal Court, November 14, 2017)
- Premature Transmission of Election Results: *Canadian Broadcasting Corporation and Bell Media Inc. v Attorney General of Canada* (Ontario Superior Court of Justice, April 11, 2011)
- Publishing False Statement to Affect Election Results: *Canadian Constitution Foundation v Canada (Attorney General)*(Ontario Superior Court of Justice, February 19, 2021)
- Reimbursement of Election Expenses: *Barrette v. Canada (Attorney General)* (Quebec Court of Appeal, March 18, 1994); *Longley v Canada (Attorney General)* (Ontario Court of Appeal, December 6, 2007); *L.G. Callaghan et al. v the Chief Electoral Officer of Canada* (Federal Court of Appeal, February 28, 2011)
- Placement of Electoral Signs on Public Property: *Beaumier v City of Brampton* (Ontario Court of Justice, February 6, 1998); appeal dismissed by the Ontario Court of Appeal November 19, 1999
- Submission of the Return on Elections Expenses by Registered Political Parties: *Conservative Fund Canada v the Chief Electoral Officer of Canada* (Court of Appeal for Ontario, December 21, 2010) Leave to appeal to the Supreme Court of Canada denied.
- Regulation of Election Advertising by Third Parties: *Canada (Attorney General) v Somerville* (Alberta Court of Appeal, June 5, 1996); *Commissioner of Canada Elections v National Citizens Coalition* (Ontario Court of Justice, October 14, 2003)
- Uses of Political Contributions: *Longley v Minister of National Revenue* (Supreme Court of British Columbia, June 30, 1999)
- Voter Identification Rules: *Henry v Canada (Attorney General)* (Court of Appeal for British Columbia, January 28, 2014)

Chapter 23: Section 7

By Debra M Haak and Gillian MacNeil

1 Introduction

Section 1(a) of the Canadian Bill of Rights (1960) provides:

> It is hereby recognized and declared that in Canada there have existed and shall continue to exist without discrimination by reason of race, national origin, colour, religion or sex, the following human rights and fundamental freedoms, namely,
>
> (a) the right of the individual to life, liberty, security of the person and enjoyment of property, and the right not to be deprived thereof except by due process of law

Section 7 of the *Charter of Rights and Freedoms* provides:

> Everyone has the right to life, liberty and security of the person and the right not to be deprived thereof except in accordance with the principles of fundamental justice.

Notice the differences between these provisions. Peter Hogg suggested that property was not included in section 7 to reduce the class of governmental acts to which section 7 would apply. Similarly, he suggested the framers of section 7 replaced "due process of law" with "the principles of fundamental justice" to provide only procedural protections to life, liberty and security of the person rather than substantive protections. As you read this chapter, consider whether the scope of section 7 has, in fact, been limited in these ways. See Peter W Hogg, "The Brilliant Career of Section 7 of the Charter" (2012) 58 SCLR (2d) 195.

This chapter sets out the general framework for assessing the constitutionality of governmental action under section 7 of the *Charter*, the interests protected by section 7, and the principles of fundamental justice. It also briefly considers the relationship between section 7 and section 1 of the *Charter*. At the end of this chapter, you will find excerpts from legal texts and recently decided section 7 cases to help you think through the application of section 7 in areas of ongoing *Charter* dialogue like the commercial exchange of sex and medically assisted death, and in two other contemporary contexts: economic rights, and the environment.

2 The framework of section 7

To establish a violation of section 7, a claimant must demonstrate that state conduct has deprived them of their right to life, liberty or security of the person and that the impugned state conduct fails to accord with the principles of fundamental justice.

As you will see from the following cases, section 7 has impacted Canada's legislative approach to a wide range of important social and policy issues including: abortion, medical assistance in dying, supervised injection sites, and the commercial exchange of sex. Section 7 cases often involve subjects about which there is no societal consensus. Many of the key cases involve differently situated policy stakeholders making competing demands on the state and seeking recognition of their rights under the *Charter*. As you consider these cases, you may want to think about whether the current framework of section 7 and the current approach to section 1 in section 7 cases allow courts to meaningfully consider all the experiences, interests, values, and rights at stake in policymaking in highly contested policy spaces.

3 The right to life, liberty, and security of the person

The first step in a section 7 claim is establishing a deprivation of one of the rights protected by the section. Section 7 protects life, liberty, and security of the person - each of which has been interpreted to capture different interests. Each of the guaranteed rights is considered in turn, followed by a consideration of the causal connection that must be established between the negative impact on the claimant and the impugned state action.

3.1 The right to life

Judicial pronouncements on the scope of the right to life guaranteed by the *Charter* have been limited. In the following three cases, the right to life was considered in context of medical services. In the first case, *Chaoulli v Quebec*, the Supreme Court considered whether the prohibition on private health insurance in the province of Quebec violated section 7 of the *Charter* and section 1 of the Quebec *Charter of Human Rights and Freedoms*.

3.1.1 Chaoulli v Quebec (Attorney General)

***Chaoulli v Quebec (Attorney General)*, 2005 SCC 35, [2005] 1 SCR 791**

Per McLachlin, CJ and Major and Bastarache JJ (Deschamps J concurring, Binnie, LeBel and Fish JJ. dissenting) …

110 The issue at this stage is whether the prohibition on insurance for private medical care deprives individuals of their life, liberty or security of the person protected by s. 7 of the *Charter*.

111 …It is common ground that the effect of the prohibition on insurance is to allow only the very rich, who do not need insurance, to secure private health care in order to avoid the delays in the public system. Given the ban on insurance, most Quebeckers have no choice but to accept delays in the medical system and their adverse physical and psychological consequences.

112 Delays in the public system are widespread and have serious, sometimes grave, consequences. There was no dispute that there is a waiting list for cardiovascular surgery for life-threatening problems. Dr. Daniel Doyle, a cardiovascular surgeon who teaches and practises in Quebec City, testified that a person with coronary disease is [translation] "sitting on a bomb" and can die at any moment. He confirmed, without challenge, that patients die while on waiting lists: A.R., at p. 461. Inevitably, where patients have life-threatening conditions, some will die because of undue delay in awaiting surgery.

113 The same applies to other health problems. In a study of 200 subjects aged 65 and older with hip fractures, the relationship between pre-operative delay and post-operative complications and risk of death was examined. While the study found no relationship between pre-operative delay and post-operative complications, it concluded that the risk of death within six months after surgery increased significantly, by 5 percent, with the length of pre-operative delay: A. Laberge, P. M. Bernard and P. A. Lamarche, "Relationships between the delay before surgery for a hip fracture, postoperative complications and risk of death" (1997), 45 *Rev. Epidém. et Santé Publ.* 5, at p. 9.

114 Dr. Eric Lenczner, an orthopaedic surgeon, testified that the one-year delay commonly incurred by patients requiring ligament reconstruction surgery increases the risk that their injuries will become irreparable (A.R., at p. 334). Dr. Lenczner also testified that 95 percent of patients in Canada wait well over a year, and many two years, for knee replacements. While a knee replacement may seem trivial compared to the risk of death for wait-listed coronary surgery patients, which increases by 0.5 percent per month (A.R., at p. 450), the harm suffered by patients awaiting replacement knees and hips is significant. Even though death may not be an issue for them, these patients "are in pain", "would not go a day without discomfort" and are "limited in their ability to get around", some being confined to wheelchairs or house bound (A.R., at pp. 327-28).

115 Both the individual members of the Standing Senate Committee on Social Affairs, Science and Technology who intervened in this appeal and the Canadian Medical Association cited a Statistics Canada study demonstrating that over one in five Canadians who needed health care for themselves or a family member in 2001 encountered some form of difficulty, from getting an appointment to experiencing lengthy waiting times: C. Sanmartin et al., *Access to Health Care Services in Canada, 2001* (June 2002), at p. 17. Thirty-seven percent of those patients reported pain.

…

After finding the applicants' right to security of the person was engaged, the Court turned to whether their right to life was also engaged.

123 ….As we noted above, there is unchallenged evidence that in some serious cases, patients die as a result of waiting lists for public health care. Where lack of timely health care can result in death, s. 7 protection of life itself is engaged.

What follows next is a short excerpt from a case where the Supreme Court considered whether a ministerial decision not to exempt a safe injection facility for intravenous drug users from the criminal prohibitions on narcotics possession constituted a deprivation of section 7 interests that did not accord with the principles of fundamental justice that laws should not be arbitrary or grossly disproportionate. We will return to this case again later in this chapter. For now, focus on the right to life and the right to receive medical care.

3.1.2 Canada (Attorney General) v PHS Community Services Society

***Canada (Attorney General) v PHS Community Services Society*, 2011 SCC 44, [2011] 3 SCR 134**

The judgment of the Court was delivered by

[1] The Chief Justice — Since 2003, the Insite safe injection facility has provided medical services to intravenous drug users in the Downtown Eastside of Vancouver ("DTES"). Local, provincial and federal authorities came together to create a legal framework for a safe injection facility in which clients could inject drugs under medical supervision without fear of arrest and prosecution. Insite was widely hailed as an effective response to the catastrophic spread of infectious diseases such as HIV/AIDS and hepatitis C, and the high rate of deaths from drug overdoses in the DTES.

[2] In 2008, the federal government failed to extend Insite's exemption from the operation of criminal laws in the *Controlled Drugs and Substances Act*, S.C. 1996, c. 19 ("*CDSA*"). Faced with the threat that Insite would have to stop offering services, the claimants brought an action for declarations that the *CDSA* is inapplicable to Insite and that its application to Insite resulted in a violation of the claimants' s. 7 rights under the *Canadian Charter of Rights and Freedoms*, or, in the alternative, that the federal Minister of Health, in refusing to grant an extension of Insite's exemption, had violated the claimants' s. 7 rights.

[3] The question in this appeal is whether Insite is exempt from the federal criminal laws that prohibit the possession and trafficking of controlled substances … because the application of the criminal law would violate the *Charter*. For the reasons that follow, we conclude that the *CDSA* is applicable to Insite, and that … the actions of the federal Minister of Health in refusing to extend Insite's exemption under s. 56 of the *CDSA* are in violation of s. 7 of the *Charter*, and cannot be justified under s. 1. Accordingly, we order the Minister to grant Insite an extended exemption, and dismiss the appeal.

…

[91] The record supports the conclusion that, without an exemption from the application of the *CDSA*, the health professionals who provide the supervised services at Insite will be unable to offer medical supervision and counselling to Insite's clients. This deprives the clients of Insite of potentially lifesaving medical care, thus engaging their rights to life and security of the person. The result is that the limits on the s. 7 rights of staff will in turn result in limits on the s. 7 rights of clients.

In a more recent case, *Carter v. Canada (Attorney General)*, the Court considered the criminal prohibition on providing assistance in dying. In this excerpt, the Court explained the content of the right to life. We will return to *Carter* several times in this chapter, including in the contemporary issues section at the end of the chapter. Consideration of the constitutionally acceptable parameters of criminal prohibition of medically assisted death is ongoing.

3.1.3 Carter v Canada (Attorney General)

***Carter v Canada (Attorney General)*, 2015 SCC 5, [2015] 1 SCR 331**

The following is the judgment delivered by

The Court —

I. Introduction

[1] It is a crime in Canada to assist another person in ending her own life. As a result, people who are grievously and irremediably ill cannot seek a physician's assistance in dying and may be condemned to a life of severe and intolerable suffering. A person facing this prospect has two options: she can take her own life prematurely, often by violent or dangerous means, or she can suffer until she dies from natural causes. The choice is cruel.

[2] The question on this appeal is whether the criminal prohibition that puts a person to this choice violates her *Charter* rights to life, liberty and security of the person (s. 7) and to equal treatment by and under the law (s. 15). This is a question that asks us to balance competing values of great importance. On the one hand stands the autonomy and dignity of a competent adult who seeks death as a response to a grievous and irremediable medical condition. On the other stands the sanctity of life and the need to protect the vulnerable.

…

[4] We conclude that the prohibition on physician-assisted dying is void insofar as it deprives a competent adult of such assistance where (1) the person affected clearly consents to the termination of life; and (2) the person has a grievous and irremediable medical condition (including an illness, disease or disability) that causes enduring suffering that is intolerable to the individual in the circumstances of his or her condition. We therefore allow the appeal.

…

[40] The main issue in this case is whether the prohibition on physician-assisted dying found in s. 241(*b*) of the *Criminal Code* violates the claimants' rights under ss. 7 and 15 of the *Charter*. For the purposes of their claim, the appellants use "physician-assisted death" and "physician-assisted dying" to describe the situation where a physician provides or administers medication that intentionally brings about the patient's death, at the request of the patient. The appellants advance two claims: (1) that the prohibition on physician-assisted dying deprives competent adults, who suffer a grievous and irremediable medical condition that causes the person to endure physical or psychological suffering that is intolerable to that person, of their right to life, liberty and security of the person under s. 7 of the *Charter*; and (2) that the prohibition deprives adults who are physically disabled of their right to equal treatment under s. 15 of the *Charter*.

…

[57] The trial judge found that the prohibition on physician-assisted dying had the effect of forcing some individuals to take their own lives prematurely, for fear that they would be incapable of doing so when they reached the point where suffering was intolerable. On that basis, she found that the right to life was engaged.

[58] We see no basis for interfering with the trial judge's conclusion on this point. The evidence of premature death was not challenged before this Court. It is therefore established that the prohibition deprives some individuals of life.

[59] The appellants and a number of the interveners urge us to adopt a broader, qualitative approach to the right to life. Some argue that the right to life is not restricted to the preservation of life, but protects quality of life and therefore a right to die with dignity. Others argue that the right to life protects personal autonomy and fundamental notions of self-determination and dignity, and therefore includes the right to determine whether to take one's own life.

[60] In dissent at the Court of Appeal, Finch C.J.B.C. accepted the argument that the right to life protects more than physical existence (paras. 84-89). In his view, the life interest is "intimately connected to the way a person values his or her lived experience. The point at which the meaning of life is lost, when life's positive attributes are so diminished as to render life valueless, . . . is an intensely personal decision which 'everyone' has the right to make for him or herself" (para. 86). Similarly, in his dissent in *Rodriguez*, Cory J. accepted that the right to life included a right to die with dignity, on the ground that "dying is an integral part of living" (p. 630).

[61] The trial judge, on the other hand, rejected the "qualitative" approach to the right to life. She concluded that the right to life is only engaged when there is a threat of death as a result of government action or laws. In her words, the right to life is limited to a "right not to die" (para. 1322 (emphasis in original)).

[62] This Court has most recently invoked the right to life in *Chaoulli v. Quebec (Attorney General)*, 2005 SCC 35, [2005] 1 SCR 791, where evidence showed that the lack of timely health care could result in death (paras. 38 and 50, per Deschamps J.; para. 123, per McLachlin C.J. and Major J.; and paras. 191 and 200, per Binnie and LeBel JJ.), and in *PHS*, where the clients of Insite were deprived of potentially lifesaving medical care (para. 91). In each case, the right was only engaged by the threat of death. In short, the case law suggests that the right

to life is engaged where the law or state action imposes death or an increased risk of death on a person, either directly or indirectly. Conversely, concerns about autonomy and quality of life have traditionally been treated as liberty and security rights. We see no reason to alter that approach in this case.

[63] This said, we do not agree that the existential formulation of the right to life *requires* an absolute prohibition on assistance in dying, or that individuals cannot "waive" their right to life. This would create a "duty to live", rather than a "right to life", and would call into question the legality of any consent to the withdrawal or refusal of lifesaving or life-sustaining treatment. The sanctity of life is one of our most fundamental societal values. Section 7 is rooted in a profound respect for the value of human life. But s. 7 also encompasses life, liberty and security of the person during the passage to death. It is for this reason that the sanctity of life "is no longer seen to require that all human life be preserved at all costs" (*Rodriguez*, at p. 595, per Sopinka J.). And it is for this reason that the law has come to recognize that, in certain circumstances, an individual's choice about the end of her life is entitled to respect. It is to this fundamental choice that we now turn.

3.2 The right to liberty

The right to liberty contained in section 7 protects physical liberty. Accordingly, laws that provide for the possibility of detention or confinement constitute a deprivation of the section 7 right to liberty. The Supreme Court confirmed this early in section 7 case law, in *Re B.C. Motor Vehicle Act*, 1985 CanLII 81 (SCC), [1985] 2 SCR 486, writing:

> Obviously, imprisonment (including probation orders) deprives persons of their liberty. An offence has that potential as of the moment it is open to the judge to impose imprisonment.

The right to liberty contained in section 7 has also been extended to include circumstances where there is no threat of imprisonment or physical detention. In the next case, the Supreme Court reasoned that liberty includes protection from state interference with personal autonomy and fundamental decisions about how an individual lives their life.

3.2.1 B(R) v Children's Aid Society of Metropolitan Toronto

B(R) v Children's Aid Society of Metropolitan Toronto**,** 1995 CanLII 115 (SCC), **[1995] 1 SCR 315**

The judgment of La Forest, Gonthier and McLachlin JJ. was delivered by *La Forest J.*

LA FOREST J. -- This appeal raises the constitutionality of state interference with child-rearing decisions. The appellants are parents who argue that the Ontario *Child Welfare Act*, R.S.O. 1980, c. 66, infringes their right to choose medical treatment for their infant in accordance with the tenets of their faith. They claim that this right is protected under both ss. 7and 2(*a*) of the *Canadian Charter of Rights and Freedoms*.

Facts

Sheena B. was born four weeks prematurely, on June 25, 1983. Soon after, she was transferred to the Hospital for Sick Children in Toronto because of her physical condition. Within the first few weeks of her life she exhibited many physical ailments and received a number of medical treatments. Her parents, the appellants, consented to all the treatments provided during those initial weeks. At their request, the attending physicians avoided the use of a blood transfusion in the treatment of Sheena because, as Jehovah's Witnesses, the appellants objected to it for religious reasons; they also claimed it was unnecessary.

On July 30, the child's haemoglobin level had dropped to such an extent that the attending physicians believed her life was in danger and that she might require a blood transfusion to treat potentially life-threatening congestive heart failure. On July 31, following a hearing on short notice to the appellants, Judge Main of the Ontario Provincial Court (Family Division) granted the respondent Children's Aid Society a 72-hour wardship, on the basis of the evidence of Dr. Perlman that a transfusion might be necessary…On August 23, Sheena received a blood transfusion

…

Issues

The following constitutional questions were set by the Chief Justice:

1.Does the *Child Welfare Act*, R.S.O. 1980, c. 66, s. 19(1)(*b*)(ix), together with the powers in ss. 30(1)2 and 41 and the procedures in ss. 21, 27, 28(1), (10) and (12), deny parents a right to choose medical treatment for their infants, contrary to s. 7 of the *Canadian Charter of Rights and Freedoms*?

…

Section 7 of the *Charter*

Turning now to s. 7 of the *Charter*, the appellants argued that the right to choose medical treatment for their infant is a liberty interest protected under s. 7 of the *Charter*, and that the infringement of that interest in the present case did not conform with the principles of fundamental justice....

Section 7 of the Charter and Parental Liberty

…while this case can be disposed of solely on the issue of the right of parents to choose medical treatment for their infant, it is not without consequence for child protection as a whole. Intervention may well be compelling here, but this appeal raises the more general question of the right of parents to rear their children without undue interference by the state.

The appellants claim that parents have the right to choose medical treatment for their infant, relying for this contention on s. 7 of the *Charter*, and more precisely on the liberty interest. They assert that the right enures in the family as an entity, basing this argument on statements made by American courts in the definition of liberty under their Constitution. While, as I will indicate, American experience may be useful in defining the scope of the liberty interest protected under our Constitution, I agree that s. 7 of the *Charter* does not afford protection to the integrity of the family unit as such. The Canadian *Charter*, and s. 7 in particular, protects individuals. It is the individual's right to liberty under the *Charter* with which we are here concerned. The concept of the integrity of the family unit is itself premised, at least in part, on that of parental liberty. N. Bala and J. D. Redfearn, "Family Law and the `Liberty Interest': Section 7 of the Canadian Charter of Rights" (1983), 15 *Ottawa L. Rev.* 274, note that a general discussion of the "family unit" often obscures two separate interests, at p. 281:

> It is, however, possible to distinguish at least two different, yet interrelated interests. One is familial integrity -- an interest in upholding the family as an autonomous, independent unit in society. The other is parental authority -- a *parental* right to enjoy family life and control various aspects of a child's life, free from unnecessary outside interference. [Emphasis in original.]

The term "liberty" has yet to be authoritatively defined in this Court, although comments have been made on both ends of the spectrum. In *Singh v. Minister of Employment and Immigration*, 1985 CanLII 65 (SCC), [1985] 1 SCR 177, Wilson J., speaking for Dickson C.J., Lamer J. (as he then was) as well, noted that it was incumbent upon the Court to define "liberty", and conceded that the concept was susceptible of a

broad range of meanings. Although she did not venture to define the scope of the liberty interest protected under s. 7 of the *Charter*, she cited the following dictum of Stewart J. in *Board of Regents of State Colleges v. Roth*, 408 U.S. 564 (1972), at p. 572, as an example of the liberal interpretation the United States Supreme Court has given to the Fourteenth Amendment, at p. 205:

> "While this Court has not attempted to define with exactness the liberty ... guaranteed (by the Fourteenth Amendment), the term has received much consideration and some of the included things have been definitely stated. Without doubt, it denotes not merely freedom from bodily restraint but also the right of the individual to contract, to engage in any of the common occupations of life, to acquire useful knowledge, to marry, establish a home and bring up children, to worship God according to the dictates of his own conscience, and generally to enjoy those privileges long recognized ... as essential to the orderly pursuit of happiness by free men." *Meyer* v. *Nebraska*, 262 U.S. 390, 399. In a Constitution for a free people, there can be no doubt that the meaning of "liberty" must be broad indeed. See, *e.g.*, *Bolling* v. *Sharpe*, 347 U.S. 497, 499-500; *Stanley* v. *Illinois*, 405 U.S. 645.

In *R. v. Jones*, *supra*, speaking alone in dissent, Wilson J. gave a broad formulation of the concept of liberty. She stated, at p. 318:

> I believe that the framers of the Constitution in guaranteeing "liberty" as a fundamental value in a free and democratic society had in mind the freedom of the individual to develop and realize his potential to the full, to plan his own life to suit his own character, to make his own choices for good or ill, to be non-conformist, idiosyncratic and even eccentric -- to be, in to-day's parlance, "his own person" and accountable as such. John Stuart Mill described it as "pursuing our own good in our own way". This, he believed, we should be free to do "so long as we do not attempt to deprive others of theirs or impede their efforts to obtain it".

While she was of the view that s. 7 protected the right of parents to bring up and educate their children according to their conscientious beliefs, Wilson J. acknowledged that this freedom was not "untrammelled". Some limits could be placed on the interest, as "liberty" did not imply the right to bring up and educate one's children "as one sees fit".

On the other hand, Lamer J., speaking for himself alone in *Reference re ss. 193 and 195.1(1)(c) of the Criminal Code (Man.)*, 1990 CanLII 105 (SCC), [1990] 1 SCR 1123, rejected the line of American cases pertaining to contractual liberty, noting that such an extension of the liberty interest had also been subject to criticism in the United States. The text of the Canadian *Charter* -- which does not mention "property" -- and the context of its adoption were sufficiently different to mandate a distinct interpretation. According to him, s. 7, which appears in the *Charter* under the heading "Legal Rights", had to be construed in light of the rights enunciated in ss. 8 to 14, which set out traditional criminal law guarantees. Further, the term "liberty" had to be read in conjunction with its modifier, the principles of fundamental justice. Thus, a restriction on liberty had to occur as a result of an interaction with the justice system. Lamer J. appeared to limit "liberty" to its physical dimension, though he would appear to give the expression "security of the person" a somewhat broader ambit. He summarized his position as follows, at pp. 1177-78:

> Put shortly, I am of the view that s. 7 is implicated when the state, by resorting to the justice system, restricts an individual's physical liberty in any circumstances. Section 7 is also implicated when the state restricts individuals' security of the person by interfering with, or removing from them, control over their physical or mental integrity. Finally, s. 7 is implicated when the state, either directly or through its agents, restricts certain privileges or liberties by using the threat of punishment in cases of non-compliance.
>
> Although this may appear to be a limited reading of s. 7, it is my view that it is neither wise nor necessary to subsume all other rights in the *Charter* within s. 7. A full and generous interpretation of the *Charter* that extends the full benefit of its protection to individuals can be achieved without the incorporation of other rights and freedoms within s. 7. [Emphasis in original.]

Lamer J. added, however, that "[t]his is not to say that `liberty' as a value underlying the *Charter* does not permeate the document in a broader, more general sense, especially as it relates to the maintenance of Canada as a `free and democratic society'" (p. 1179). In that case, Lamer J. was concerned with the narrower issue of "economic liberty" and the right to choose one's profession. The case did not address an issue similar to that raised in the present appeal, where the interest claimed by the appellants is of a different nature altogether, and where the state does use the justice system to restrict it.

…

Although the English version of the *Charter* employs two different words, "freedom" and "liberty", both emanate from the same concept. In French, the term "*liberté*" is used in s. 2 as well as in s. 7.

The above-cited cases give us an important indication of the meaning of the concept of liberty. On the one hand, liberty does not mean unconstrained freedom; see *Re B.C. Motor Vehicle Act*, 1985 CanLII 81 (SCC), [1985] 2 SCR 486 (*per* Wilson J., at p. 524); *R. v. Edwards Books and Art Ltd.*, 1986 CanLII 12 (SCC), [1986] 2 SCR 713 (*per* Dickson C.J., at pp. 785-86). Freedom of the individual to do what he or she wishes must, in any organized society, be subjected to numerous constraints for the common good. The state undoubtedly has the right to impose many types of restraints on individual behaviour, and not all limitations will attract *Charter* scrutiny. On the other hand, liberty does not mean mere freedom from physical restraint. In a free and democratic society, the individual must be left room for personal autonomy to live his or her own life and to make decisions that are of fundamental personal importance. In *R. v. Morgentaler*, 1988 CanLII 90 (SCC), [1988] 1 SCR 30, Wilson J. noted that the liberty interest was rooted in the fundamental concepts of human dignity, personal autonomy, privacy and choice in decisions going to the individual's fundamental being. She stated, at p. 166:

> Thus, an aspect of the respect for human dignity on which the *Charter* is founded is the right to make fundamental personal decisions without interference from the state. This right is a critical component of the right to liberty. Liberty, as was noted in *Singh*, is a phrase capable of a broad range of meaning. In my view, this right, properly construed, grants the individual a degree of autonomy in making decisions of fundamental personal importance.

While I was in dissent in that case, I agree with this statement, and, indeed, I later observed in *R. v. Beare*, 1988 CanLII 126 (SCC), [1988] 2 SCR 387, at p. 412, that I was sympathetic to the view that s. 7 of the *Charter* included a right to privacy. On this point, the American experience can give us valuable guidance as to the proper meaning and limits of liberty. The United States Supreme Court has given a liberal interpretation to the concept of liberty, as it relates to family matters. It has elevated both the notion of the integrity of the family unit and that of parental rights to the status of constitutional values, through its interpretation of the Fifth and Fourteenth Amendments. …

Where to draw the line between interests and regulatory powers falling within the accepted ambit of state authority will often raise difficulty. But much on either side of the line is clear enough. On that basis, I would have thought it plain that the right to nurture a child, to care for its development, and to make decisions for it in fundamental matters such as medical care, are part of the liberty interest of a parent. As observed by Dickson J. in *R. v. Big M Drug Mart Ltd.*, *supra*, the *Charter* was not enacted in a vacuum or absent a historical context. The common law has long recognized that parents are in the best position to take care of their children and make all the decisions necessary to ensure their well-being. In *Hepton v. Maat*, 1957 CanLII 18 (SCC), [1957] SCR 606, our Court stated (at p. 607): "The view of the child's welfare conceives it to lie, first, within the warmth and security of the home provided by his parents". This recognition was based on the presumption that parents act in the best interest of their child. The Court did add, however, that "when through a failure, with or without parental fault, to furnish that protection, that welfare is threatened, the community, represented by the Sovereign, is, on the broadest social and national grounds, justified in displacing the parents and assuming their duties" (pp. 607-8). Although the philosophy underlying state intervention has changed over time,

most contemporary statutes dealing with child protection matters, and in particular the Ontario Act, while focusing on the best interest of the child, favour minimal intervention. In recent years, courts have expressed some reluctance to interfere with parental rights, and state intervention has been tolerated only when necessity was demonstrated. This only serves to confirm that the parental interest in bringing up, nurturing and caring for a child, including medical care and moral upbringing, is an individual interest of fundamental importance to our society.

The respondents have argued that the "parental liberty" asserted by the appellants is an obligation owed to the child which does not fall within the scope of s. 7 of the *Charter*. Some decisions seem to give credit to this thesis. In *Re C.P.L.*(1988), 1988 CanLII 5490 (NL SC), 70 Nfld. & P.E.I.R. 287 (Nfld. U.F.C.), for example, a case similar to the present one, Riche J. observed, at p. 303:

> The parents have individual rights which they hold as members of society. With respect to their children, they have obligations or responsibilities. The parents have a right to custody of their children while they are children and for as long as they discharge their obligations to those children. The parents maintain a right to attempt to raise their children in the same religious faith as their's [*sic*]. As between the parents and the children, the parents have few rights and many obligations.

Riche J. concluded that the right of the child to parental care, rather than the rights of the parents, had been breached in a manner that did not conform to the principles of fundamental justice.

While acknowledging that parents bear responsibilities towards their children, it seems to me that they must enjoy correlative rights to exercise them. The contrary view would not recognize the fundamental importance of choice and personal autonomy in our society. As already stated, the common law has always, in the absence of demonstrated neglect or unsuitability, presumed that parents should make all significant choices affecting their children, and has afforded them a general liberty to do as they choose. This liberty interest is not a parental right tantamount to a right of property in children. (Fortunately, we have distanced ourselves from the ancient juridical conception of children as chattels of their parents.) The state is now actively involved in a number of areas traditionally conceived of as properly belonging to the private sphere. Nonetheless, our society is far from having repudiated the privileged role parents exercise in the upbringing of their children. This role translates into a protected sphere of parental decision-making which is rooted in the presumption that parents should make important decisions affecting their children both because parents are more likely to appreciate the best interests of their children and because the state is ill-equipped to make such decisions itself. Moreover, individuals have a deep personal interest as parents in fostering the growth of their own children. This is not to say that the state cannot intervene when it considers it necessary to safeguard the child's autonomy or health. But such intervention must be justified. In other words, parental decision-making must receive the protection of the *Charter* in order for state interference to be properly monitored by the courts, and be permitted only when it conforms to the values underlying the *Charter*.

The respondents also argued that the infant's rights were paramount to those of the appellants and, on that basis alone, state intervention was justified. This was the conclusion reached by Whealy Dist. Ct. J. Children undeniably benefit from the *Charter*, most notably in its protection of their rights to life and to the security of their person. As children are unable to assert these, our society presumes that parents will exercise their freedom of choice in a manner that does not offend the rights of their children. If one considers the multitude of decisions parents make daily, it is clear that in practice, state interference in order to balance the rights of parents and children will arise only in exceptional cases. In fact, we must accept that parents can, at times, make decisions contrary to their children's wishes -- and rights -- as long as they do not exceed the threshold dictated by public policy, in its broad conception. For instance, it would be difficult to deny that a parent can dictate to his or her child the place where he or she will live, or which school he or she will attend. However, the state can properly intervene in situations where parental conduct falls below the socially acceptable threshold. But in doing so, the state is limiting the constitutional rights of parents rather then vindicating the constitutional rights of children. On this point, N. Bala and J. D. Redfearn, *supra*, observe, at. p. 301:

> . . . while the state may be justified in limiting parental rights, it is wrong to conceive of this as a situation where the court or state is somehow protecting *constitutional* rights of the child. Rather this should be viewed as a situation in which the state limits the constitutional rights of parents, and sometimes those of a child, to promote the welfare of the child. . . . However, it seems inappropriate to allow an agency of the state to invoke the Charter of Rights to limit the rights of a citizen. The Charter is intended to protect individuals from the state, not to justify state interference. [Emphasis in original.]

A similar approach, albeit in a different context, was taken in *R. v. Keegstra*, 1990 CanLII 24 (SCC), [1990] 3 SCR 697, where a majority of this Court agreed that it would be inappropriate to limit the scope of an individual's freedom of expression under s. 2(*b*) by reference to the conflicting s. 15 and s. 27 rights of others.

Once it is decided that the parents have a liberty interest, further balancing of parents' and children's rights should be done in the course of determining whether state interference conforms to the principles of fundamental justice, rather than when defining the scope of the liberty interest. Even assuming that the rights of children can qualify the liberty interest of their parents, that interest exists nonetheless. In the case at bar, the application of the Act deprived the appellants of their right to decide which medical treatment should be administered to their infant. In so doing, the Act has infringed upon the parental "liberty" protected in s. 7 of the *Charter*. I now propose to determine whether this deprivation was made in accordance with the principles of fundamental justice.

…

In the next case, the Supreme Court considers how expansive the right to make fundamental personal choices is.

3.2.2 R v Malmo-Levine; R v Caine

***R v Malmo-Levine; R v Caine*, 2003 SCC 74, [2003] 3 SCR 571**

The judgment of McLachlin C.J. and Gonthier, Iacobucci, Major, Bastarache and Binnie JJ. was delivered by Gonthier and Binnie JJ

…

81 The appellant Malmo-Levine argues that smoking marihuana is integral to his preferred lifestyle, and that the criminalization of marihuana in both its possession and trafficking aspects is an unacceptable infringement of his personal liberty.

82 The appellant Caine, on the other hand, takes aim at the potential for imprisonment for conviction of possession of marihuana, and argues that imprisonment for such an offence is not in accordance with the principles of fundamental justice. If the penalty falls, he says, the substantive offence must fall with it.

83 These "liberty" interests are, of course, very different. We propose therefore first to identify the s. 7 "interest" properly at stake, then secondly to discuss the applicable principles of fundamental justice. Thirdly we will examine whether the deprivation of the s. 7 interest thus identified is in accordance with the principles of fundamental justice relevant to these appeals. As will be seen, we find no s. 7 infringement. It will therefore not be necessary to move to s. 1 to determine if an infringement would be justified in a free and democratic society.

1. The Interests at Stake

84 We say at once that the availability of imprisonment for the offence of simple possession is sufficient to trigger s. 7 scrutiny: *Re B.C. Motor Vehicle Act*, 1985 CanLII 81 (SCC), [1985] 2 SCR 486. However, Malmo-Levine's position (which is supported by the intervener British Columbia Civil Liberties Association) requires us to address whether broader considerations of personal autonomy, short of imprisonment, are also sufficient to invoke s. 7 protection. The appellant Caine, whose factum talks of the "fun" or "social" use of cannabis, writes, at para. 30:

> It is submitted that a decision whether or not to possess and consume Cannabis (marijuana), even if potentially harmful to the user, is analogous to the decision by an individual as to what food to eat or not eat and whether or not to eat fatty foods, and as such is a decision of fundamental personal importance involving a choice made by the individual involving that individual's personal autonomy.

85 In *Morgentaler*, *supra*, Wilson J. suggested that liberty "grants the individual a degree of autonomy in making decisions of fundamental personal importance", "without interference from the state" (p. 166). Liberty accordingly means more than freedom from physical restraint. It includes "the right to an irreducible sphere of personal autonomy wherein individuals may make inherently private choices free from state interference": *Godbout v. Longueuil (City)*, 1997 CanLII 335 (SCC), [1997] 3 SCR 844, at para. 66; *B. (R.) v. Children's Aid Society of Metropolitan Toronto*, 1995 CanLII 115 (SCC), [1995] 1 SCR 315, at para. 80. This is true only to the extent that such matters "can properly be characterized as fundamentally or inherently personal such that, by their very nature, they implicate basic choices going to the core of what it means to enjoy individual dignity and independence": *Godbout*, *supra*, at para. 66. …

86 While we accept Malmo-Levine's statement that smoking marihuana is central to his lifestyle, the Constitution cannot be stretched to afford protection to whatever activity an individual chooses to define as central to his or her lifestyle. One individual chooses to smoke marihuana; another has an obsessive interest in golf; a third is addicted to gambling. The appellant Caine invokes a taste for fatty foods. A society that extended constitutional protection to any and all such lifestyles would be ungovernable. Lifestyle choices of this order are not, we think, "basic choices going to the core of what it means to enjoy individual dignity and independence" (*Godbout*, *supra*, at para. 66).

87 In our view, with respect, Malmo-Levine's desire to build a lifestyle around the recreational use of marihuana does not attract *Charter* protection. There is no free-standing constitutional right to smoke "pot" for recreational purposes.

…

3.3 The right to security of the person

The third interest, security of the person, is engaged by state interference with bodily integrity and severe state-imposed psychological distress. The next case considered this interest in the context of abortion, which was criminalized at the time.

3.3.1 R v Morgentaler

***R v Morgentaler*,** 1988 CanLII 90 (SCC), **[1988] 1 SCR 30**

Dickson CJ (Lamer J concurring): …

B. *Security of the Person*

The law has long recognized that the human body ought to be protected from interference by others. At common law, for example, any medical procedure carried out on a person without that person's consent is an assault. Only in emergency circumstances does the law allow others to make decisions of this nature. Similarly, art. 19 of the *Civil Code of Lower Canada* provides that "The human person is inviolable" and that "No person may cause harm to the person of another without his consent or without being authorized by law to do so". "Security of the person", in other words, is not a value alien to our legal landscape. With the advent of the *Charter*, security of the person has been elevated to the status of a constitutional norm. This is not to say that the various forms of protection accorded to the human body by the common and civil law occupy a similar status. "Security of the person" must be given content in a manner sensitive to its constitutional position. The above examples are simply illustrative of our respect for individual physical integrity. (See R. Macdonald, "Procedural Due Process in Canadian Constitutional Law", 39 *U. Fla. L. Rev.* 217 (1987), at p. 248.) Nor is it to say that the state can never impair personal security interests. There may well be valid reasons for interfering with security of the person. It is to say, however, that if the state does interfere with security of the person, the *Charter* requires such interference to conform with the principles of fundamental justice.

The appellants submitted that the "security of the person" protected by the *Charter* is an explicit right to control one's body and to make fundamental decisions about one's life. The Crown contended that "security of the person" is a more circumscribed interest and that, like all of the elements of s. 7, it at most relates to the concept of physical control, simply protecting the individual's interest in his or her bodily integrity.

…

It may well be that constitutional protection of the above interests is specific to, and is only triggered by, the invocation of our system of criminal justice. It must not be forgotten, however, that s. 251 of the *Code*, subject to subs. (4), makes it an indictable offence for a person to procure the miscarriage and provides a maximum sentence of two years in the case of the woman herself, and a maximum sentence of life imprisonment in the case of another person. Like Beetz J., I do not find it necessary to decide how s. 7 would apply in other cases.

The case law leads me to the conclusion that state interference with bodily integrity and serious state-imposed psychological stress, at least in the criminal law context, constitute a breach of security of the person. It is not necessary in this case to determine whether the right extends further, to protect either interests central to personal autonomy, such as a right to privacy, or interests unrelated to criminal justice.

I wish to reiterate that finding a violation of security of the person does not end the s. 7 inquiry. Parliament could choose to infringe security of the person if it did so in a manner consistent with the principles of fundamental justice. The present discussion should therefore be seen as a threshold inquiry and the conclusions do not dispose definitively of all the issues relevant to s. 7. With that caution, I have no difficulty in concluding that the encyclopedic factual submissions addressed to us by counsel in the present appeal establish beyond any doubt that s. 251 of the *Criminal Code* is *prima facie* a violation of the security of the person of thousands of Canadian women who have made the difficult decision that they do not wish to continue with a pregnancy.

At the most basic, physical and emotional level, every pregnant woman is told by the section that she cannot submit to a generally safe medical procedure that might be of clear benefit to her unless she meets criteria entirely unrelated to her own priorities and aspirations. Not only does the removal of decision-making power threaten women in a physical sense; the indecision of knowing whether an abortion will be granted inflicts emotional stress. Section 251 clearly interferes with a woman's bodily integrity in both a physical and emotional sense. Forcing a woman, by threat of criminal sanction, to carry a foetus to term unless she meets certain criteria unrelated to her own priorities and aspirations, is a profound interference with a woman's body and thus a violation of security of the person. Section 251, therefore, is required by the *Charter* to comport with the principles of fundamental justice.

Although this interference with physical and emotional integrity is sufficient in itself to trigger a review of s. 251 against the principles of fundamental justice, the operation of the decision-making mechanism set out in s. 251 creates additional glaring breaches of security of the person. The evidence indicates that s. 251 causes a certain amount of delay for women who are successful in meeting its criteria. In the context

of abortion, any unnecessary delay can have profound consequences on the woman's physical and emotional well-being.

…

It is no doubt true that the overall complication and mortality rates for women who undergo abortions are very low, but the increasing risks caused by delay are so clearly established that I have no difficulty in concluding that the delay in obtaining therapeutic abortions caused by the mandatory procedures of s. 251 is an infringement of the purely physical aspect of the individual's right to security of the person. I should stress that the marked contrast between the relative speed with which abortions can be obtained at the government-sponsored community clinics in Quebec and in hospitals under the s. 251 procedure was established at trial. The evidence indicated that at the government-sponsored clinics in Quebec, the maximum delay was less than a week. One must conclude, and perhaps underline, that the delay experienced by many women seeking a therapeutic abortion, be it of one, two, four, or six weeks' duration, is caused in large measure by the requirements of s. 251 itself.

The above physical interference caused by the delays created by s. 251, involving a clear risk of damage to the physical well-being of a woman, is sufficient, in my view, to warrant inquiring whether s. 251 comports with the principles of fundamental justice. However, there is yet another infringement of security of the person. It is clear from the evidence that s. 251 harms the psychological integrity of women seeking abortions. A 1985 report of the Canadian Medical Association, discussed in the Powell Report, at p. 15, emphasized that the procedure involved in s. 251, with the concomitant delays, greatly increases the stress levels of patients and that this can lead to more physical complications associated with abortion. A specialist in fertility control, Dr. Henry David, was qualified as an expert witness at trial on the psychological impact upon women of delay in the process of obtaining an abortion. He testified that his own studies had demonstrated that there is increased psychological stress imposed upon women who are forced to wait for abortions, and that this stress is compounded by the uncertainty whether or not a therapeutic abortion committee will actually grant approval.

…

In summary, s. 251 is a law which forces women to carry a foetus to term contrary to their own priorities and aspirations and which imposes serious delay causing increased physical and psychological trauma to those women who meet its criteria. It must, therefore, be determined whether that infringement is accomplished in accordance with the principles of fundamental justice, thereby saving s. 251 under the second part of s. 7.

The next case involved the longstanding blanket prohibition on what was then referred to as assisted suicide, contained in section 241(b) of the *Criminal Code*. This case predates the decision in *Carter*, introduced earlier in this chapter in relation to the right to life. You may want to think about how and why the Supreme Court's assessment of whether section 241(b) violates section 7 of the *Charter* changed. At the end of this chapter, you can see how Parliament responded to *Carter* and consider ongoing constitutional challenges to Canada's current legislative approach to medically assisted death.

3.3.2 Rodriguez v British Columbia (Attorney General)

Rodriguez v British Columbia (Attorney General), 1993 CanLII 75 (SCC), **[1993] 3 SCR 519**

The following facts are taken from the dissenting reasons of Lamer CJ:

I. Facts

The facts of this case are straightforward and well known. Sue Rodriguez is a 42-year-old woman living in British Columbia. She is married and the mother of an 8½-year-old son. Ms. Rodriguez suffers from amyotrophic lateral sclerosis (ALS), which is widely known as Lou Gehrig's disease; her life expectancy is between 2 and 14 months but her condition is rapidly deteriorating. Very soon she will lose the ability to swallow, speak, walk and move her body without assistance. Thereafter she will lose the capacity to breathe without a respirator, to eat without a gastrotomy and will eventually become confined to a bed.

Ms. Rodriguez knows of her condition, the trajectory of her illness and the inevitability of how her life will end; her wish is to control the circumstances, timing and manner of her death. She does not wish to die so long as she still has the capacity to enjoy life. However, by the time she no longer is able to enjoy life, she will be physically unable to terminate her life without assistance. Ms. Rodriguez seeks an order which will allow a qualified medical practitioner to set up technological means by which she might, by her own hand, at the time of her choosing, end her life.

Ms. Rodriguez applied to the Supreme Court of British Columbia for an order that s. 241(*b*) of the *Criminal Code*, R.S.C., 1985, c. C-46, be declared invalid, pursuant to s. 24(1) of the *Canadian Charter of Rights and Freedoms*, on the ground that it violates her rights under ss. 7, 12 and 15(1) of the *Charter*, and was therefore, to the extent it prohibits a terminally ill person from committing "physician-assisted" suicide, of no force and effect by virtue of s. 52(1) of the *Constitution Act, 1982*. Melvin J. of the Supreme Court of British Columbia dismissed the appellant's application: (1992), 18 W.C.B. (2d) 279, [1993] B.C.W.L.D. 347. The British Columbia Court of Appeal dismissed the appellant's appeal, McEachern C.J.B.C. dissenting: (1993), 1993 CanLII 1191 (BC CA), 76 B.C.L.R. (2d) 145, 22 B.C.A.C. 266, 38 W.A.C. 266, 14 C.R.R. (2d) 34, 79 C.C.C. (3d) 1, [1993] 3 W.W.R. 553.

The judgment of La Forest, Sopinka, Gonthier, Iacobucci and Major JJ. was delivered by

SOPINKA J. -- I have read the reasons of the Chief Justice and those of McLachlin J. herein. The result of the reasons of my colleagues is that all persons who by reason of disability are unable to commit suicide have a right under the *Canadian Charter of Rights and Freedoms* to be free from government interference in procuring the assistance of others to take their life. They are entitled to a constitutional exemption from the operation of s. 241 of the *Criminal Code*, R.S.C., 1985, c. C-46, which prohibits the giving of assistance to commit suicide (hereinafter referred to as "assisted suicide"). The exemption would apply during the period that this Court's order would be suspended and thereafter Parliament could only replace the legislation subject to this right. I must respectfully disagree with the conclusion reached by my colleagues and with their reasons. In my view, nothing in the *Charter* mandates this result which raises the following serious concerns:

1. It recognizes a constitutional right to legally assisted suicide beyond that of any country in the western world, beyond any serious proposal for reform in the western world and beyond the claim made in this very case. The apparent reason for the expansion beyond the claim in this case is that restriction of the right to the terminally ill could not be justified under s. 15.

2. It fails to provide the safeguards which are required either under the Dutch guidelines or the recent proposals for reform in the states of Washington and California which were defeated by voters in those states principally because comparable and even more stringent safeguards were considered inadequate.

3. The conditions imposed are vague and in some respects unenforceable. While the proposals in California were criticized for failure to specify the type of physician who is authorized to assist and the Dutch guidelines specify the treating physician, the conditions imposed by my colleagues do not require that the person assisting be a physician or impose any restriction in this regard. Since much of the medical profession is opposed to being involved in assisting suicide because it is antithetical to their role as healers of the sick, many doctors will refuse to assist, leaving open the potential for the growth of a macabre specialty in this area reminiscent of Dr. Kervorkian and his suicide machine.

4. To add to the uncertainty of the conditions, they are to serve merely as guidelines, leaving it to individual judges to decide upon application whether to grant or withhold the right to commit suicide. In the case of the appellant, the remedy proposed by the Chief Justice, concurred in by McLachlin J., would not require such an application. She alone is to decide that the conditions or guidelines are complied with. Any judicial review of this decision would only occur if she were to commit suicide and a charge were laid against the person who assisted her. The reasons of McLachlin J. remove any requirement to monitor the choice made by the appellant to commit suicide so that the act might occur after the last expression of the desire to commit suicide is stale-dated.

I have concluded that the conclusion of my colleagues cannot be supported under the provisions of the *Charter*. Reliance was placed on ss. 7, 12 and 15 and I will examine each in turn.

Section 7

The most substantial issue in this appeal is whether s. 241(*b*) infringes s. 7 in that it inhibits the appellant in controlling the timing and manner of her death. I conclude that while the section impinges on the security interest of the appellant, any resulting deprivation is not contrary to the principles of fundamental justice. I would come to the same conclusion with respect to any liberty interest which may be involved.

Section 7 of the *Charter* provides as follows:

7. Everyone has the right to life, liberty and security of the person and the right not to be deprived thereof except in accordance with the principles of fundamental justice.

The appellant argues that, by prohibiting anyone from assisting her to end her life when her illness has rendered her incapable of terminating her life without such assistance, by threat of criminal sanction, s. 241(*b*) deprives her of both her liberty and her security of the person. The appellant asserts that her application is based upon (a) the right to live her remaining life with the inherent dignity of a human person, (b) the right to control what happens to her body while she is living, and (c) the right to be free from governmental interference in making fundamental personal decisions concerning the terminal stages of her life. The first two of these asserted rights can be seen to invoke both liberty and security of the person; the latter is more closely associated with only the liberty interest.

(a) *Life, Liberty and Security of the Person*

The appellant seeks a remedy which would assure her some control over the time and manner of her death. While she supports her claim on the ground that her liberty and security of the person interests are engaged, a consideration of these interests cannot be divorced from the sanctity of life, which is one of the three *Charter* values protected by s. 7.

None of these values prevail a priori over the others. All must be taken into account in determining the content of the principles of fundamental justice and there is no basis for imposing a greater burden on the propounder of one value as against that imposed on another.

Section 7 involves two stages of analysis. The first is as to the values at stake with respect to the individual. The second is concerned with possible limitations of those values when considered in conformity with fundamental justice. In assessing the first aspect, we may do so by considering whether there has been a violation of Ms. Rodriguez's security of the person and we must consider this in light of the other values I have mentioned.

As a threshold issue, I do not accept the submission that the appellant's problems are due to her physical disabilities caused by her terminal illness, and not by governmental action. There is no doubt that the prohibition in s. 241(*b*) will contribute to the appellant's distress if she is prevented from managing her death in the circumstances which she fears will occur. Nor do I accept the submission that the appellant cannot avail herself of s. 7 because she is not presently engaged in interaction with the criminal justice system, and that she will likely never be so engaged. It was argued that the comments concerning security of the person found in *R. v. Morgentaler*, 1988 CanLII 90 (SCC), [1988] 1 SCR 30, and the *Reference re ss. 193 and 195.1(1)(c) of the Criminal Code (Man.)*, 1990 CanLII 105 (SCC), [1990] 1 SCR 1123, were not applicable to this case and that the appellant could not seek the protection of s. 7 at all, as that section is concerned with the interaction of the individual with the justice system. In my view, the fact that it is the criminal prohibition in s. 241(*b*) which has the effect of depriving the appellant of the ability to end her life when she is no longer able to do so without assistance is a sufficient interaction with the justice system to engage the provisions of s. 7 assuming a security interest is otherwise involved.

I find more merit in the argument that security of the person, by its nature, cannot encompass a right to take action that will end one's life as security of the person is intrinsically concerned with the well-being of the living person. This argument focuses on the generally held and deeply rooted belief in our society that human life is sacred or inviolable (which terms I use in the non-religious sense described by Dworkin (*Life's Dominion: An Argument About Abortion, Euthanasia, and Individual Freedom* (1993)) to mean that human life is seen to have a deep intrinsic value of its own). As members of a society based upon respect for the intrinsic value of human life and on the inherent dignity of every human being, can we incorporate within the Constitution which embodies our most fundamental values a right to terminate one's own life in any circumstances? This question in turn evokes other queries of fundamental importance such as the degree to which our conception of the sanctity of life includes notions of quality of life as well.

Sanctity of life, as we will see, has been understood historically as excluding freedom of choice in the self-infliction of death and certainly in the involvement of others in carrying out that choice. At the very least, no new consensus has emerged in society opposing the right of the state to regulate the involvement of others in exercising power over individuals ending their lives.

The appellant suggests that for the terminally ill, the choice is one of time and manner of death rather than death itself since the latter is inevitable. I disagree. Rather it is one of choosing death instead of allowing natural forces to run their course. The time and precise manner of death remain unknown until death actually occurs. There can be no certainty in forecasting the precise circumstances of a death. Death is, for all mortals, inevitable. Even when death appears imminent, seeking to control the manner and timing of one's death constitutes a conscious choice of death over life. It follows that life as a value is engaged even in the case of the terminally ill who seek to choose death over life.

Indeed, it has been abundantly pointed out that such persons are particularly vulnerable as to their life and will to live and great concern has been expressed as to their adequate protection, as will be further set forth.

I do not draw from this that in such circumstances life as a value must prevail over security of person or liberty as these have been understood under the *Charter*, but that it is one of the values engaged in the present case.

What, then, can security of the person be said to encompass in the context of this case? The starting point for the answer to this question is *Morgentaler*, *supra*, in which this Court struck down *Criminal Code* provisions which had the effect of preventing women access to therapeutic abortion unless they complied with an administrative scheme found to be contrary to principles of fundamental justice. In finding a violation of security of the person, Beetz J. held, at p. 90, that:

> "Security of the person" must include a right of access to medical treatment for a condition representing a danger to life or health without fear of criminal sanction.

Whether or not Beetz J. can be said to have restricted his reasoning to criminal prohibitions limiting access to medical treatment which improves health, he made it clear (at p. 90) that his reasons should not be taken as delineating the bounds of s. 7 in other contexts. In any event, Dickson C.J. does not appear to have limited his reasons in this manner. The former Chief Justice stated as follows, at pp. 54-57:

> Canadian courts have already had occasion to address the scope of the interest protected under the rubric of "security of the person". In *R. v. Caddedu* (1982), 1982 CanLII 2138 (ON SC), 40 O.R. (2d) 128, at p. 139, the Ontario High Court emphasized that the right to security of the person, like each aspect of s. 7, is a basic right, the deprivation of which has severe consequences for an individual. This characterization was approved by this Court in *Re B.C. Motor Vehicle Act*, at p. 501. The Ontario Court of Appeal has held that the right to life, liberty and security of the person "would appear to relate to one's physical or mental integrity and one's control over these..." (*R. v. Videoflicks Ltd.* (1984), 1984 CanLII 44 (ON CA), 48 O.R. (2d) 395, at p. 433.)
>
> ...
>
> The case law leads me to the conclusion that state interference with bodily integrity and serious state-imposed psychological stress, at least in the criminal law context, constitute a breach of the security of the person. It is not necessary in this case to determine whether the right extends further, to protect either interests central to personal autonomy, such as a right to privacy, or interests unrelated to criminal justice.
>
> ...
>
> Although this interference with physical and emotional integrity is sufficient in itself to trigger a review of s. 251 against the principles of fundamental justice, the operation of the decision-making mechanism set out in s. 251 creates additional glaring breaches of security of the person. [Emphasis added.]

Wilson J. took a broader view, preferring to decide the case under the rubric of the liberty interest in s. 7. Nonetheless, she agreed that security of the person "protects both the physical and psychological integrity of the individual" and that state control over the woman's capacity to reproduce "is a direct interference with her physical "person" as well" (p. 173).

> In my view, then, the judgments of this Court in *Morgentaler* can be seen to encompass a notion of personal autonomy involving, at the very least, control over one's bodily integrity free from state interference and freedom from state-imposed psychological and emotional stress. In *Reference re ss. 193 and 195.1(1)(c) of the Criminal Code (Man.)*, *supra*, Lamer J. also expressed this view, stating at p. 1177 that "[s]ection 7 is also implicated when the state restricts individuals' security of the person by interfering with, or removing from them, control over their physical or mental integrity". There is no question, then, that personal autonomy, at least with respect to the right to make choices concerning one's own body, control over one's physical and psychological integrity, and basic human dignity are encompassed within security of the person, at least to the extent of freedom from criminal prohibitions which interfere with these.
>
> The effect of the prohibition in s. 241(*b*) is to prevent the appellant from having assistance to commit suicide when she is no longer able to do so on her own. She fears that she will be required to live until the deterioration from her disease is such that she will die as a result of choking, suffocation or pneumonia caused by aspiration of food or secretions. She will be totally dependent upon machines to perform her bodily functions and completely dependent upon others. Throughout this time, she will remain mentally competent and able to appreciate all that is happening to her. Although palliative care may be available to ease the pain and other physical discomfort which she will experience, the appellant fears the sedating effects of such drugs and argues, in any event, that they will not prevent the psychological and emotional distress which will result from being in a situation of utter dependence and loss of dignity. That there is a right to choose how one's body will be dealt with, even in the context of beneficial medical treatment, has long been recognized by the common law. To impose medical treatment on one who refuses it constitutes battery, and our common law has recognized the right to demand that medical treatment which would extend life be withheld or withdrawn. In my view, these considerations lead to the conclusion that the prohibition in s. 241(*b*) deprives the appellant of autonomy over her person and causes her physical pain and psychological stress in a manner which impinges on the security of her person. The appellant's security interest (considered in the context of the life and liberty interest) is therefore engaged, and it is necessary to determine whether there has been any deprivation thereof that is not in accordance with the principles of fundamental justice.

The majority in *Rodriguez* found that while the prohibition engaged section 7, the deprivation did not fail to accord with principles of fundamental justice, ultimately upholding s 241(b) as constitutional. Four judges dissented in *Rodriguez*, including McLachlin JJ (as she then was), later part of the unanimous court that found the same provision unconstitutional in *Carter*.

We now turn to a more recent case involving criminal prohibitions on the commercial exchange of sex, referred to throughout the case as prostitution, a word that has largely fallen out of favour. While many now prefer to use the term sex work, that term is not always synonymous with the activity captured by criminal laws targeting only commercial acts involving sexual touching. For a discussion of the conceptual distinction, see Debra M Haak, "Re(de)fining Prostitution and Sex Work: Conceptual Clarity for Legal Thinking" (2019) 40 WRLSI 67. This is another area where the *Charter* and section 7 have played an important role in shaping policy. We consider it here for its contribution to our understanding of security of the person. We will revisit *Bedford* later in this chapter when considering the principles of fundamental justice and the *Charter* dialogue between the judiciary and the legislature that followed that decision.

3.3.3 Canada (Attorney General) v Bedford

***Canada (Attorney General) v Bedford*, 2013 SCC 72, [2013] 3 SCR 1101**

The judgment of the Court was delivered by

[1] The Chief Justice — It is not a crime in Canada to sell sex for money. However, it is a crime to keep a bawdy-house, to live on the avails of prostitution or to communicate in public with respect to a proposed act of prostitution. It is argued that these restrictions on prostitution put the safety and lives of prostitutes at risk, and are therefore unconstitutional.

[2] These appeals and the cross-appeal are not about whether prostitution should be legal or not. They are about whether the laws Parliament has enacted on how prostitution may be carried out pass constitutional muster. I conclude that they do not. I would therefore make a suspended declaration of invalidity, returning the question of how to deal with prostitution to Parliament.

1. The Case

[3] Three applicants, all current or former prostitutes, brought an application seeking declarations that three provisions of the *Criminal Code*, R.S.C. 1985, c. C-46, are unconstitutional.

[4] The three impugned provisions criminalize various activities related to prostitution. They are primarily concerned with preventing public nuisance, as well as the exploitation of prostitutes. Section 210 makes it an offence to be an inmate of a bawdy-house, to be found in a bawdy-house without lawful excuse, or to be an owner, landlord, lessor, tenant, or occupier of a place who knowingly permits it to be used as a bawdy-house. Section 212(1)(*j*) makes it an offence to live on the avails of another's prostitution. Section 213(1)(*c*) makes it an offence to either stop or attempt to stop, or communicate or attempt to communicate with, someone in a public place for the purpose of engaging in prostitution or hiring a prostitute.

[5] However, prostitution itself is not illegal. It is not against the law to exchange sex for money. Under the existing regime, Parliament has confined lawful prostitution to two categories: street prostitution and "out-calls" — where the prostitute goes out and meets the client at a designated location, such as the client's home. This reflects a policy choice on Parliament's part. Parliament is not precluded from imposing limits on where and how prostitution may be conducted, as long as it does so in a way that does not infringe the constitutional rights of prostitutes.

[6] The applicants allege that all three provisions infringe s. 7 of the *Canadian Charter of Rights and Freedoms* by preventing prostitutes from implementing certain safety measures — such as hiring security guards or "screening" potential clients — that could protect them from violent clients. The applicants also allege that s. 213(1)(*c*) infringes s. 2(*b*) of the *Charter*, and that none of the provisions are saved under s. 1.

…

[18] In considering the legislative scheme as it exists and the evidence before her, Himel J. found that each of the impugned laws deprived the applicants and others like them of their liberty (by reason of potential imprisonment) and their security of the person (because they increased the risk of injury). The increased risk of violence created by the laws constituted a "sufficient" cause, engaging the security of the person protected by s. 7. She stated:

> With respect to s. 210, the evidence suggests that working in-call is the safest way to sell sex; yet, prostitutes who attempt to increase their level of safety by working in-call face criminal sanction. With respect to s. 212(1)(*j*), prostitution, including legal out-call work, may be made less dangerous if a prostitute is allowed to hire an assistant or a bodyguard; yet, such business relationships are illegal due to the living on the avails of prostitution provision. Finally, s. 213(1)(*c*) prohibits street prostitutes, who are largely the most vulnerable prostitutes and face an alarming amount of violence, from screening clients at an early, and crucial stage of a potential transaction, thereby putting them at an increased risk of violence.
>
> In conclusion, these three provisions prevent prostitutes from taking precautions, some extremely rudimentary, that can decrease the risk of violence towards them. Prostitutes are faced with deciding between their liberty and their security of the person. Thus, while it is ultimately the client who inflicts violence upon a prostitute, in my view the law plays a sufficient contributory role in preventing a prostitute from taking steps that could reduce the risk of such violence. [paras. 361-62]

…

[57] In the discussion that follows, I first consider whether the applicants have established that the impugned laws impose limits on security of the person, thus engaging s. 7. I then examine the argument of the appellant Attorneys General that the laws do not cause the alleged harms. I go on to consider whether any limits on security of the person are in accordance with the principles of fundamental justice.

(1) Is Security of the Person Engaged?

[58] Section 7 provides that the state cannot deny a person's right to life, liberty or security of the person, except in accordance with the principles of fundamental justice. At this stage, the question is whether the impugned laws negatively impact or limit the applicants' security of the person, thus bringing them within the ambit of, or engaging, s. 7 of the *Charter*.

[59] Here, the applicants argue that the prohibitions on bawdy-houses, living on the avails of prostitution, and communicating in public for the purposes of prostitution, heighten the risks they face in prostitution — itself a legal activity. The application judge found that the evidence supported this proposition and the Court of Appeal agreed.

[60] For reasons set out below, I am of the same view. The prohibitions at issue do not merely impose conditions on how prostitutes operate. They go a critical step further, by imposing *dangerous* conditions on prostitution; they prevent people engaged in a risky — but legal — activity from taking steps to protect themselves from the risks.

(a) *Sections 197 and 210: Keeping a Common Bawdy-House*

[61] It is not an offence to sell sex for money. The bawdy-house provisions, however, make it an offence to do so in any "place" that is "kept or occupied" or "resorted to" for the purpose of prostitution (ss. 197 and 210(1) of the *Code*). The reach of these provisions is broad. "Place" includes any defined space, even if unenclosed and used only temporarily (s. 197(1) of the *Code*; *R. v. Pierce* (1982), 1982 CanLII 2153 (ON CA), 37 O.R. (2d) 721 (C.A.)). And by definition, it applies even if resorted to by only one person (s. 197(1); *R. v. Worthington* (1972), 1972 CanLII 1334 (ON CA), 10 C.C.C. (2d) 311 (Ont. C.A.)).

[62] The practical effect of s. 210 is to confine lawful prostitution to two categories: street prostitution and out-calls (application decision, at para. 385). In-calls, where the john comes to the prostitute's residence, are prohibited. Out-calls, where the prostitute goes out and meets the client at a designated location, such as the client's home, are allowed. Working on the street is also permitted, though the practice of street prostitution is significantly limited by the prohibition on communicating in public (s. 213(1)(*c*)).

[63] The application judge found, on a balance of probabilities, that the safest form of prostitution is working independently from a fixed location (para. 300). She concluded that indoor work is far less dangerous than street prostitution — a finding that the evidence amply supports. She also concluded that out-call work is not as safe as in-call work, particularly under the current regime where prostitutes are precluded by virtue of the living on the avails provision from hiring a driver or security guard. Since the bawdy-house provision makes the safety-enhancing method of in-call prostitution illegal, the application judge concluded that the bawdy-house prohibition materially increased the risk prostitutes face under the present regime. I agree.

[64] First, the prohibition prevents prostitutes from working in a fixed indoor location, which would be safer than working on the streets or meeting clients at different locations, especially given the current prohibition on hiring drivers or security guards. This, in turn, prevents prostitutes from having a regular clientele and from setting up indoor safeguards like receptionists, assistants, bodyguards and audio room monitoring, which would reduce risks (application decision, at para. 421). Second, it interferes with provision of health checks and preventive health measures. Finally — a point developed in argument before us — the bawdy-house prohibition prevents resort to safe houses, to which prostitutes working on the street can take clients. In Vancouver, for example, "Grandma's House" was established to support street workers in the Downtown Eastside, at about the same time as fears were growing that a serial killer was prowling the streets — fears which materialized in the notorious Robert Pickton. Street prostitutes — who the application judge found are largely the most vulnerable class of prostitutes, and who face an alarming amount of violence (para. 361) — were able to bring clients to Grandma's House. However, charges were laid under s. 210, and although the charges were eventually stayed — four years after they were laid — Grandma's House was shut down (supplementary affidavit of Dr. John Lowman, May 6, 2009, J.A.R., vol. 20, at p. 5744). For some prostitutes, particularly those who are destitute, safe houses such as Grandma's House may be critical. For these people, the ability to work in brothels or hire security, even if those activities were lawful, may be illusory.

[65] I conclude, therefore, that the bawdy-house provision negatively impacts the security of the person of prostitutes and engages s. 7 of the *Charter*.

(b) *Section 212(1)(j): Living on the Avails of Prostitution*

[66] Section 212(1)(*j*) criminalizes living on the avails of prostitution of another person, wholly or in part. While targeting parasitic relationships (*R. v. Downey*, 1992 CanLII 109 (SCC), [1992] 2 SCR 10), it has a broad reach. As interpreted by the courts, it makes it a crime for anyone to supply a service to a prostitute, because she is a prostitute (*R. v. Grilo* (1991), 1991 CanLII 7241 (ON CA), 2 O.R. (3d) 514 (C.A.); *R. v. Barrow* (2001), 2001 CanLII 8550 (ON CA), 54 O.R. (3d) 417 (C.A.)). In effect, it prevents a prostitute from hiring bodyguards, drivers and receptionists. The application judge found that by denying prostitutes access to these security-enhancing safeguards, the law prevented them from taking steps to reduce the risks they face and negatively impacted their security of the person (para. 361). As such, she found that the law engages s. 7 of the *Charter*.

[67] The evidence amply supports the judge's conclusion. Hiring drivers, receptionists, and bodyguards, could increase prostitutes' safety (application decision, at para. 421), but the law prevents them from doing so. Accordingly, I conclude that s. 212(1)(*j*) negatively impacts security of the person and engages s. 7.

(c) *Section 213(1)(c): Communicating in a Public Place*

[68] Section 213(1)(*c*) prohibits communicating or attempting to communicate for the purpose of engaging in prostitution or obtaining the sexual services of a prostitute, in a public place or a place open to public view. The provision extends to conduct short of verbal communication by prohibiting stopping or attempting to stop any person for those purposes (*R. v. Head* (1987), 1987 CanLII 2823 (BC CA), 59 C.R. (3d) 80 (B.C.C.A.)).

[69] The application judge found that face-to-face communication is an "essential tool" in enhancing street prostitutes' safety (para. 432). Such communication, which the law prohibits, allows prostitutes to screen prospective clients for intoxication or propensity to violence, which can reduce the risks they face (paras. 301 and 421). This conclusion, based on the evidence before her, sufficed to engage security of the person under s. 7.

[70] The application judge also found that the communicating law has had the effect of displacing prostitutes from familiar areas, where they may be supported by friends and regular customers, to more isolated areas, thereby making them more vulnerable (paras. 331 and 502).

[71] On the evidence accepted by the application judge, the law prohibits communication that would allow street prostitutes to increase their safety. By prohibiting communicating in public for the purpose of prostitution, the law prevents prostitutes from screening clients and setting terms for the use of condoms or safe houses. In these ways, it significantly increases the risks they face.

[72] I conclude that the evidence supports the application judge's conclusion that s. 213(1)(*c*) impacts security of the person and engages s. 7.

We will return again to *Bedford* when we consider principles of fundamental justice.

Last in our consideration of the interests protected by section 7, we return to *Carter*, where we see the Court considering liberty and security of the person together. *Are you able to clearly distinguish between these rights?*

3.3.4 Carter v Canada (Attorney General)

Carter v Canada (Attorney General), 2015 SCC 5 (CanLII), **[2015] 1 SCR 331; 2015 SCC 5**

(2) Liberty and Security of the Person

[64] Underlying both of these rights is a concern for the protection of individual autonomy and dignity. Liberty protects "the right to make fundamental personal choices free from state interference": *Blencoe v. British Columbia (Human Rights Commission)*, 2000 SCC 44, [2000] 2 SCR 307, at para. 54. Security of the person encompasses "a notion of personal autonomy involving . . . control over one's bodily integrity free from state interference" (*Rodriguez*, at pp. 587-88, per Sopinka J., referring to *R. v. Morgentaler*, 1988 CanLII 90 (SCC), [1988] 1 SCR 30) and it is engaged by state interference with an individual's physical or psychological integrity, including any state action that causes physical or serious psychological suffering (*New Brunswick (Minister of Health and Community Services) v. G. (J.)*, 1999 CanLII 653 (SCC), [1999] 3 SCR 46, at para. 58; *Blencoe*, at paras. 55-57; *Chaoulli*, at para. 43, per Deschamps J.; para. 119, per McLachlin C.J. and Major J.; and paras. 191 and 200, per Binnie and LeBel JJ.). While liberty and security of the person are distinct interests, for the purpose of this appeal they may be considered together.

[65] The trial judge concluded that the prohibition on assisted dying limited Ms. Taylor's s. 7 right to liberty and security of the person, by interfering with "fundamentally important and personal medical decision-making" (para. 1302), imposing pain and psychological stress and depriving her of control over her bodily integrity (paras. 1293-94). She found that the prohibition left people like Ms. Taylor to suffer physical or psychological pain and imposed stress due to the unavailability of physician-assisted dying, impinging on her security of the person. She further noted that seriously and irremediably ill persons were "denied the opportunity to make a choice that may be very important to their sense of dignity and personal integrity" and that is "consistent with their lifelong values and that reflects their life's experience" (para. 1326).

[66] We agree with the trial judge. An individual's response to a grievous and irremediable medical condition is a matter critical to their dignity and autonomy. The law allows people in this situation to request palliative sedation, refuse artificial nutrition and hydration, or request the removal of life-sustaining medical equipment, but denies them the right to request a physician's assistance in dying. This interferes with their ability to make decisions concerning their bodily integrity and medical care and thus trenches on liberty. And, by leaving people like Ms. Taylor to endure intolerable suffering, it impinges on their security of the person.

[67] The law has long protected patient autonomy in medical decision-making. In *A.C. v. Manitoba (Director of Child and Family Services)*, 2009 SCC 30, [2009] 2 SCR 181, a majority of this Court, per Abella J. (the dissent not disagreeing on this point), endorsed the "tenacious relevance in our legal system of the principle that competent individuals are — and should be — free to make decisions about their bodily integrity" (para. 39). This right to "decide one's own fate" entitles adults to direct the course of their own medical care (para. 40): it is this principle that underlies the concept of "informed consent" and is protected by s. 7's guarantee of liberty and security of the person (para. 100; see also *R. v. Parker* (2000), 2000 CanLII 5762 (ON CA), 49 O.R. (3d) 481 (C.A.)). As noted in *Fleming v. Reid* (1991), 1991 CanLII 2728 (ON CA), 4 O.R. (3d) 74 (C.A.), the right of medical self-determination is not vitiated by the fact that serious risks or consequences, including death, may flow from the patient's decision. It is this same principle that is at work in the cases dealing with the right to refuse consent to medical treatment, or to demand that treatment be withdrawn or discontinued…

[68] In *Blencoe*, a majority of the Court held that the s. 7 liberty interest is engaged "where state compulsions or prohibitions affect important and fundamental life choices" (para. 49). In *A.C.*, where the claimant sought to refuse a potentially lifesaving blood transfusion on religious grounds, Binnie J. noted that we may "instinctively recoil" from the decision to seek death because of our belief in the sanctity of

human life (para. 219). But his response is equally relevant here: it is clear that anyone who seeks physician-assisted dying because they are suffering intolerably as a result of a grievous and irremediable medical condition "does so out of a deeply personal and fundamental belief about how they wish to live, or cease to live" (*ibid.*). The trial judge, too, described this as a decision that, for some people, is "very important to their sense of dignity and personal integrity, that is consistent with their lifelong values and that reflects their life's experience" (para. 1326). This is a decision that is rooted in their control over their bodily integrity; it represents their deeply personal response to serious pain and suffering. By denying them the opportunity to make that choice, the prohibition impinges on their liberty and security of the person. As noted above, s. 7 recognizes the value of life, but it also honours the role that autonomy and dignity play at the end of that life. We therefore conclude that ss. 241(*b*) and 14 of the *Criminal Code*, insofar as they prohibit physician-assisted dying for competent adults who seek such assistance as a result of a grievous and irremediable medical condition that causes enduring and intolerable suffering, infringe the rights to liberty and security of the person.

[69] We note, as the trial judge did, that Lee Carter and Hollis Johnson's interest in liberty may be engaged by the threat of criminal sanction for their role in Kay Carter's death in Switzerland. However, this potential deprivation was not the focus of the arguments raised at trial, and neither Ms. Carter nor Mr. Johnson sought a personal remedy before this Court. Accordingly, we have confined ourselves to the rights of those who seek assistance in dying, rather than of those who might provide such assistance.

3.4 Causation

What is the required degree of connection between legislative action and any limits to section 7 guarantees? The Supreme Court clarified this in *Bedford*.

3.4.1 Canada (Attorney General) v Bedford

***Canada (Attorney General) v Bedford*, 2013 SCC 72, [2013] 3 SCR 1101**

[73] For the reasons discussed above, the application judge concluded — and I agree — that the impugned laws negatively impact and thus engage security of the person rights of prostitutes. However, the appellant Attorneys General contend that s. 7 is not engaged because there is an insufficient causal connection between the laws and the risks faced by prostitutes. First, they argue that the courts below erroneously measured causation by an attenuated standard. Second, they argue that it is the choice of the applicants to engage in prostitution, rather than the law, that is the causal source of the harms they face. These arguments cannot succeed.

(a) *The Nature of the Required Causal Connection*

[74] Three possible standards for causation are raised for our consideration: (1) "sufficient causal connection", adopted by the application judge (paras. 287-88); (2) a general "impact" approach, adopted by the Court of Appeal (paras. 108-9); and (3) "active and foreseeable" and "direct" causal connection, urged by the appellant Attorneys General (A.G. of Canada factum, at paras. 64-68; A.G. of Ontario factum, at paras. 12-17).

[75] I conclude that the "sufficient causal connection" standard should prevail. This is a flexible standard, which allows the circumstances of each particular case to be taken into account. Adopted in *Blencoe v. British Columbia (Human Rights Commission)*, 2000 SCC 44, [2000] 2 SCR 307, and applied in a number of subsequent cases (see, e.g., *United States v. Burns*, 2001 SCC 7, [2001] 1 SCR 283; *Suresh v. Canada (Minister of Citizenship and Immigration)*, 2002 SCC 1, [2002] 1 SCR 3), it posits the need for "a sufficient causal connection between the state-caused [effect] and the prejudice suffered by the [claimant]" for s. 7 to be engaged (*Blencoe*, at para. 60 (emphasis added)).

[76] A sufficient causal connection standard does not require that the impugned government action or law be the only or the dominant cause of the prejudice suffered by the claimant, and is satisfied by a reasonable inference, drawn on a balance of probabilities (*Canada (Prime Minister) v. Khadr*, 2010 SCC 3, [2010] 1 SCR 44, at para. 21). A sufficient causal connection is sensitive to the context of the particular case and insists on a real, as opposed to a speculative, link. Understood in this way, a sufficient causal connection standard is consistent with the substance of the standard that the Court of Appeal applied in this case. …

…

[78] Finally, from a practical perspective, a sufficient causal connection represents a fair and workable threshold for engaging s. 7 of the *Charter*. This is the port of entry for s. 7 claims. The claimant bears the burden of establishing this connection. Even if established, it does not end the inquiry, since the claimant must go on to show that the deprivation of her security of the person is not in accordance with the principles of fundamental justice. Although mere speculation will not suffice to establish causation, to set the bar too high risks barring meritorious claims. What is required is a sufficient connection, having regard to the context of the case.

(b) *Is the Causal Connection Negated by Choice or the Role of Third Parties?*

[79] The Attorneys General of Canada and Ontario argue that prostitutes choose to engage in an inherently risky activity. They can avoid both the risk inherent in prostitution and any increased risk that the laws impose simply by choosing not to engage in this activity. They say that choice — and not the law — is the real cause of their injury.

…

[85] For the following reasons, I cannot accept the argument that it is not the law, but rather prostitutes' choice and third parties, that cause the risks complained of in this case.

[86] First, while some prostitutes may fit the description of persons who freely choose (or at one time chose) to engage in the risky economic activity of prostitution, many prostitutes have no meaningful choice but to do so. …Realistically, while they may retain some minimal power of choice — what the Attorney General of Canada called "constrained choice" (transcript, at p. 22) — these are not people who can be said to be truly "choosing" a risky line of business (see *PHS*, at paras. 97-101).

[87] Second, even accepting that there are those who freely choose to engage in prostitution, it must be remembered that prostitution — the exchange of sex for money — is not illegal. The causal question is whether the impugned laws make this lawful activity more dangerous. …

[88] Nor is it accurate to say that the claim in this case is a veiled assertion of a positive right to vocational safety. The applicants are not asking the government to put into place measures making prostitution safe. Rather, they are asking this Court to strike down legislative provisions that aggravate the risk of disease, violence and death.

[89] It makes no difference that the conduct of pimps and johns is the immediate source of the harms suffered by prostitutes. The impugned laws deprive people engaged in a risky, but legal, activity of the means to protect themselves against those risks. The violence of a john does not diminish the role of the state in making a prostitute more vulnerable to that violence.

…

[92] For all these reasons, I reject the arguments of the Attorneys General that the cause of the harm is not the impugned laws, but rather the actions of third parties and the prostitutes' choice to engage in prostitution. As I concluded above, the laws engage s. 7 of the *Charter*. That conclusion remains undisturbed.

4 Principles of fundamental justice

4.1 What is a principle of fundamental justice?

For a claimant to establish that government action has deprived them of their life, liberty, or security of the person in a manner which limits their section 7 *Charter* right, the claimant must show that any deprivation of one of those protected interests was done in a way that does not accord with a principle of fundamental justice. Early in its *Charter* jurisprudence, the Supreme Court adopted a broad understanding of the principles of fundamental justice. In the *BC Motor Vehicle Reference*, Justice Lamer (writing for the majority) addressed the debate as to whether the principles of fundamental justice could be substantive or, whether they were purely procedural in nature. As readers will see in the following extract, Justice Lamer concluded that the principles of fundamental justice could be either procedural or substantive.

4.1.1 Re BC Motor Vehicle Act

***Re BC Motor Vehicle Act*, 1985 CanLII 81 (SCC); [1985] 2 SCR 486**

The judgment of Dickson C.J. and Beetz, Chouinard, Lamer and Le Dain JJ. was delivered by

1. Lamer J.--

Introduction

2. A law that has the potential to convict a person who has not really done anything wrong offends the principles of fundamental justice and, if imprisonment is available as a penalty, such a law then violates a person's right to liberty under s. 7 of the *Charter of Rights and Freedoms* (*Constitution Act, 1982* , as enacted by the *Canada Act, 1982*, 1982 (U.K.), c. 11).

3. In other words, absolute liability and imprisonment cannot be combined.

The Facts

4. On August 16, 1982, the Lieutenant-Governor in Council of British Columbia referred the following question to the Court of Appeal of that province, by virtue of s. 1 of the *Constitutional Question Act*, R.S.B.C. 1979, c. 63:

> Is s. 94(2) of the *Motor Vehicle Act*, R.S.B.C. 1979, as amended by the *Motor Vehicle Amendment Act, 1982*, consistent with the *Canadian Charter of Rights and Freedoms*?

5. On February 3, 1983, the Court of Appeal handed down reasons in answer to the question in which it stated that s. 94(2) of the Act is inconsistent with the *Canadian Charter of Rights and Freedoms*: (1983), 1983 CanLII 268 (BC CA), 42 B.C.L.R. 364, 147 D.L.R. (3d) 539, 4 C.C.C. (3d) 243, 33 C.R. (3d) 22, 5 C.R.R. 148, 19 M.V.R. 63, [1983] 3 W.W.R. 756. The Attorney General for British Columbia launched an appeal to this Court.

The Legislation

6. *Motor Vehicle Act*, R.S.B.C. 1979, c. 288, s. 94, as amended by the *Motor Vehicle Amendment Act, 1982*, 1982 (B.C.), c. 36, s. 19:

> **94.** (1) A person who drives a motor vehicle on a highway or industrial road while
>
> (a) he is prohibited from driving a motor vehicle under sections 90, 91, 92 or 92.1, or
>
> (b) his driver's licence or his right to apply for or obtain a driver's licence is suspended under section 82 or 92 as it was before its repeal and replacement came into force pursuant to the *Motor Vehicle Amendment Act, 1982*,
>
> commits an offence and is liable,
>
> (c) on a first conviction, to a fine of not less than $300 and not more than $2 000 and to imprisonment for not less than 7 days and not more than 6 months, and
>
> (d) on a subsequent conviction, regardless of when the contravention occurred, to a fine Of not less than $300 and not more than $2 000 and to imprisonment for not less than 14 days and not more than one year.
>
> (2) Subsection (1) creates an absolute liability offence in which guilt is established by proof of driving, whether or not the defendant knew of the prohibition or suspension.

Canadian Charter of Rights and Freedoms; Constitution Act, 1982:

1. The *Canadian Charter of Rights and Freedoms* guarantees the rights and freedoms set out in it subject only to such reasonable limits prescribed by law as can be demonstrably justified in a free and democratic society.

7. Everyone has the right to life, liberty and security of the person and the right not to be deprived thereof except in accordance with the principles of fundamental justice.

11. Any person charged with an offence has the right

...

(*d*) to be presumed innocent until proven guilty according to law in a fair and public hearing by an independent and impartial tribunal;

52. (1) The Constitution of Canada is the supreme law of Canada, and any law that is inconsistent with the provisions of the Constitution is, to the extent of the inconsistency, of no force or effect.

…

3. The Principles of Fundamental Justice

23. … The outcome of this case is dependent upon the meaning to be given to that portion of the section which states "and the right not to be deprived thereof except in accordance with the principles of fundamental justice". …

…

25. Given that, as the Attorney General for Ontario has acknowledged, "when one reads the phrase 'principles of fundamental justice', a single incontrovertible meaning is not apparent", its meaning must, in my view, be determined by reference to the interests which those words of the section are designed to protect and the particular role of the phrase within the section. As a qualifier, the phrase serves to establish the

parameters of the interests but it cannot be interpreted so narrowly as to frustrate or stultify them. For the narrower the meaning given to "principles of fundamental justice" the greater will be the possibility that individuals may be deprived of these most basic rights. This latter result is to be avoided given that the rights involved are as fundamental as those which pertain to the life, liberty and security of the person, the deprivation of which "has the most severe consequences upon an individual" (*R. v. Cadeddu* (1982), 1982 CanLII 2138 (ON SC), 40 O.R. (2d) 128 (H.C.), at p. 139).

26. For these reasons, I am of the view that it would be wrong to interpret the term "fundamental justice" as being synonymous with natural justice as the Attorney General of British Columbia and others have suggested. To do so would strip the protected interests of much, if not most, of their content and leave the "right" to life, liberty and security of the person in a sorely emaciated state. Such a result would be inconsistent with the broad, affirmative language in which those rights are expressed and equally inconsistent with the approach adopted by this Court toward the interpretation of *Charter* rights in *Law Society of Upper Canada v. Skapinker*, 1984 CanLII 3 (SCC), [1984] 1 SCR 357, *per* Estey J., and *Hunter v. Southam Inc.*, *supra*.

27. It would mean that the right to liberty would be narrower than the right not to be arbitrarily detained or imprisoned (s. 9), that the right to security of the person would have less content than the right to be secure against unreasonable search or seizure (s. 8). Such an interpretation would give the specific expressions of the "right to life, liberty and security of the person" which are set forth in ss. 8 to 14 greater content than the general concept from which they originate.

28. Sections 8 to 14, in other words, address specific deprivations of the "right" to life, liberty and security of the person in breach of the principles of fundamental justice, and as such, violations of s. 7. They are designed to protect, in a specific manner and setting, the right to life, liberty and security of the person set forth in s. 7. It would be incongruous to interpret s. 7 more narrowly than the rights in ss. 8 to 14. The alternative, which is to interpret all of ss. 8 to 14 in a "narrow and technical" manner for the sake of congruity, is out of the question (*Law Society of Upper Canada v. Skapinker*, *supra*, at p. 366).

29. Sections 8 to 14 are illustrative of deprivations of those rights to life, liberty and security of the person in breach of the principles of fundamental justice. For they, in effect, illustrate some of the parameters of the "right" to life, liberty and security of the person; they are examples of instances in which the "right" to life, liberty and security of the person would be violated in a manner which is not in accordance with the principles of fundamental justice. To put matters in a different way, ss. 7 to 14 could have been fused into one section, with inserted between the words of s. 7 and the rest of those sections the oft utilised provision in our statutes, "and, without limiting the generality of the foregoing (s. 7) the following shall be deemed to be in violation of a person's rights under this section". Clearly, some of those sections embody principles that are beyond what could be characterized as "procedural".

30. Thus, ss. 8 to 14 provide an invaluable key to the meaning of "principles of fundamental justice". Many have been developed over time as presumptions of the common law, others have found expression in the international conventions on human rights. All have been recognized as essential elements of a system for the administration of justice which is founded upon a belief in "the dignity and worth of the human person" (preamble to the *Canadian Bill of Rights*, R.S.C. 1970, App. III) and on "the rule of law" (preamble to the *Canadian Charter of Rights and Freedoms*).

31. It is this common thread which, in my view, must guide us in determining the scope and content of "principles of fundamental justice". In other words, the principles of fundamental justice are to be found in the basic tenets of our legal system. They do not lie in the realm of general public policy but in the inherent domain of the judiciary as guardian of the justice system. Such an approach to the interpretation of "principles of fundamental justice" is consistent with the wording and structure of s. 7, the context of the section, *i.e.*, ss. 8 to 14, and the character and larger objects of the *Charter* itself. It provides meaningful content for the s. 7 guarantee all the while avoiding adjudication of policy matters.

32. Thus, it seems to me that to replace "fundamental justice" with the term "natural justice" misses the mark entirely. It was, after all, clearly open to the legislator to use the term natural justice, a known term of art, but such was not done. We must, as a general rule, be loath to exchange the terms actually used with terms so obviously avoided.

33. Whatever may have been the degree of synonymy between the two expressions in the past, (which in any event has not been clearly demonstrated by the parties and interveners), as of the last few decades this country has given a precise meaning to the words natural justice for the purpose of delineating the responsibility of adjudicators (in the wide sense of the word) in the field of administrative law.

34. It is, in my view, that precise and somewhat narrow meaning that the legislator avoided, clearly indicating thereby a will to give greater content to the words "principles of fundamental justice", the limits of which were left for the courts to develop but within, of course, the acceptable sphere of judicial activity.

…

Conclusion

59. I have, in this judgment, undertaken a purposive analysis of the term "principles of fundamental justice" in s. 7 of the *Charter* in accordance with the method established by this Court in *R. v. Big M Drug Mart Ltd.*, *supra*. Accordingly, the point of departure for the analysis has been a consideration of the general objectives of the *Charter* in the light of the general principles of *Charter* interpretation set forth in *Law Society of Upper Canada v. Skapinker*, *supra*, and *Hunter v. Southam Inc.*, *supra*. This was followed by a detailed analysis of the language and structure of the section as well as its immediate context within the *Charter*.

…

61. Consequently, my conclusion may be summarized as follows:

62. The term "principles of fundamental justice" is not a right, but a qualifier of the right not to be deprived of life, liberty and security of the person; its function is to set the parameters of that right.

63. Sections 8 to 14 address specific deprivations of the "right" to life, liberty and security of the person in breach of the principles of fundamental justice, and as such, violations of s. 7. They are therefore illustrative of the meaning, in criminal or penal law, of "principles of fundamental justice"; they represent principles which have been recognized by the common law, the international conventions and by the very fact of entrenchment in the *Charter*, as essential elements of a system for the administration of justice which is founded upon the belief in the dignity and worth of the human person and the rule of law.

64. Consequently, the principles of fundamental justice are to be found in the basic tenets and principles, not only of our judicial process, but also of the other components of our legal system.

65. We should not be surprised to find that many of the principles of fundamental justice are procedural in nature. Our common law has largely been a law of remedies and procedures and, as Frankfurter J. wrote in *McNabb v. United States* 318 U.S. 332 (1942), at p. 347, "the history of liberty has largely been the history of observance of procedural safeguards". This is not to say, however, that the principles of

fundamental justice are limited solely to procedural guarantees. Rather, the proper approach to the determination of the principles of fundamental justice is quite simply one in which, as Professor L. Tremblay has written, "future growth will be based on historical roots" ("Section 7 of the Charter: Substantive Due Process?"(1984), 18 *U.B.C.L. Rev*. 201, at p. 254).

66. Whether any given principle may be said to be a principle of fundamental justice within the meaning of s. 7 will rest upon an analysis of the nature, sources, *rationale* and essential role of that principle within the judicial process and in our legal system, as it evolves.

67. Consequently, those words cannot be given any exhaustive content or simple enumerative definition, but will take on concrete meaning as the courts address alleged violations of s. 7.

68. I now turn to such an analysis of the principle of *mens rea* and absolute liability offences in order to determine the question which has been put to the Court in the present Reference.

Absolute Liability and Fundamental Justice in Penal Law

69. It has from time immemorial been part of our system of laws that the innocent not be punished. This principle has long been recognized as an essential element of a system for the administration of justice which is founded upon a belief in the dignity and worth of the human person and on the rule of law. It is so old that its first enunciation was in Latin *actus non facit reum nisi mens sit rea*.

70. As Glanville Williams said:

> There is no need here to go into the remote history of *mens rea*; suffice it to say that the requirement of a guilty state of mind (at least for the more serious crimes) had been developed by the time of Coke, which is as far back as the modern lawyer needs to go. "If one shoot at any wild fowl upon a tree, and the arrow killeth any reasonable creature afar off, without any evil intent in him, this is *per infortunium*."
>
> (Glanville Williams, *Criminal Law, The General Part*, 2nd ed. (London, 1961), at p. 30.)

71. One of the many judicial statements on the subject worth mentioning is of the highest authority, *per* Goddard C.J. in *Harding v. Price*, [1948] 1 K.B. 695, at p. 700, where he said:

> The general rule applicable to criminal cases is actus non facit reum nisi mens sit rea, and I venture to repeat what I said in *Brend v. Wood* (1946), 62 T.L.R. 462, 463: `It is of the utmost importance for the protection of the liberty of the subject that a court should always bear in mind that, unless a statute either clearly or by necessary implication rules out mens rea as a constituent part of a crime, the court should not find a man guilty of an offence against the criminal law unless he has a guilty mind'.

72. This view has been adopted by this Court in unmistakable terms in many cases, amongst which the better known are *Beaver v. The Queen*, 1957 CanLII 14 (SCC), [1957] SCR 531, and the most recent and often quoted judgment of Dickson J. writing for the Court in *R. v. City of Sault Ste. Marie*, *supra*.

73. This Court's decision in the latter case is predicated upon a certain number of postulates one of which, given the nature of the rules it elaborates, has to be to the effect that absolute liability in penal law offends the principles of fundamental justice. Those principles are, to use the words of Dickson J., to the effect that "there is a generally held revulsion against punishment of the morally innocent". He also stated that the argument that absolute liability "violates fundamental principles of penal liability" was the most telling argument against absolute liability and one of greater force than those advanced in support thereof.

74. In my view it is because absolute liability offends the principles of fundamental justice that this Court created presumptions against legislatures having intended to enact offences of a regulatory nature falling within that category. This is not to say, however, and to that extent I am in agreement with the Court of Appeal, that, as a result, absolute liability *per se* offends s. 7 of the *Charter*.

75. A law enacting an absolute liability offence will violate s. 7 of the *Charter* only if and to the extent that it has the potential of depriving of life, liberty, or security of the person.

…

Section 94(2)

89. No doubt s. 94(2) enacts in the clearest of terms an absolute liability offence, the conviction for which a person will be deprived of his or her liberty, and little more, if anything, need be added. …

…

93. In the final analysis, it seems that both the appellant and the respondent agree that s. 94 will impact upon the right to liberty of a limited number of morally innocent persons. … To me, that is sufficient for it to be in violation of s. 7.

…

Justice McIntyre, in a one-paragraph concurrence, agreed with Justice Lamer that the principles of fundamental justice were both procedural and substantive, and agreed with Justice Lamer's disposition of the case. Justice Wilson, in her concurrence, cast doubt on the utility of drawing a distinction between substance and procedure when interpreting the phrase "principles of fundamental justice".

While in the *BC Motor Vehicle Reference*, Justice Lamer held that "the principles of fundamental justice are to be found in the basic tenets of our legal system" (para 31, extracted above), he did not establish a clear framework for identifying those principles. That was done by Justice Sopinka, in his judgment in *Rodriguez v British Columbia (Attorney General)* introduced earlier in the chapter.

4.1.2 Rodriguez v British Columbia (Attorney General)

***Rodriguez v British Columbia (Attorney General)*, 1993 CanLII 75 (SCC); [1993] 3 SCR 519**

Sopinka J. --

…

(b)*The Principles of Fundamental Justice*

…

Discerning the principles of fundamental justice with which deprivation of life, liberty or security of the person must accord, in order to withstand constitutional scrutiny, is not an easy task. A mere common law rule does not suffice to constitute a principle of fundamental justice, rather, as the term implies, principles upon which there is some consensus that they are vital or fundamental to our societal notion of justice are required. Principles of fundamental justice must not, however, be so broad as to be no more than vague generalizations about what our society considers to be ethical or moral. They must be capable of being identified with some precision and applied to situations in a manner which yields an understandable result. They must also, in my view, be legal principles. …

…

This Court has often stated that in discerning the principles of fundamental justice governing a particular case, it is helpful to look at the common law and legislative history of the offence in question (*Re B.C. Motor Vehicle Act* and *Morgentaler*, *supra*, and *R. v. Swain*, 1991 CanLII 104 (SCC), [1991] 1 SCR 933). It is not sufficient, however, merely to conduct a historical review and conclude that because neither Parliament nor the various medical associations had ever expressed a view that assisted suicide should be decriminalized, that to prohibit it could not be said to be contrary to the principles of fundamental justice. Such an approach would be problematic for two reasons. First, a strictly historical analysis will always lead to the conclusion in a case such as this that the deprivation is in accordance with fundamental justice as the legislation will not have kept pace with advances in medical technology. Second, such reasoning is somewhat circular, in that it relies on the continuing existence of the prohibition to find the prohibition to be fundamentally just.

The way to resolve these problems is not to avoid the historical analysis, but to make sure that one is looking not just at the existence of the practice itself (i.e., the continued criminalization of assisted suicide) but at the rationale behind that practice and the principles which underlie it.

The appellant asserts that it is a principle of fundamental justice that the human dignity and autonomy of individuals be respected, and that to subject her to needless suffering in this manner is to rob her of her dignity. The importance of the concept of human dignity in our society was enunciated by Cory J. (dissenting, Lamer C.J. concurring) in *Kindler v. Canada (Minister of Justice)*, 1991 CanLII 78 (SCC), [1991] 2 SCR 779, at p. 813. Respect for human dignity underlies many of the rights and freedoms in the *Charter*.

That respect for human dignity is one of the underlying principles upon which our society is based is unquestioned. I have difficulty, however, in characterizing this in itself as a principle of fundamental justice within the meaning of s. 7. While respect for human dignity is the genesis for many principles of fundamental justice, not every law that fails to accord such respect runs afoul of these principles. To state that "respect for human dignity and autonomy" is a principle of fundamental justice, then, is essentially to state that the deprivation of the appellant's security of the person is contrary to principles of fundamental justice because it deprives her of security of the person. This interpretation would equate security of the person with a principle of fundamental justice and render the latter redundant.

…

Justice Sopinka's view that the principles of fundamental justice had to be legal principles about "which there is some consensus that they are vital or fundamental to our societal notion of justice", that "[t]hey must be capable of being identified with some precision and applied to situations in a manner which yields an understandable result" was affirmed in the subsequent judgments in *Malmo-Levine* (an extract of which you saw earlier in the section on the Court's development of the liberty interest) and *Canadian Foundation for Children, Youth, and the Law*.

4.1.3 R v Malmo-Levine; R v Caine

***R v Malmo-Levine; R v Caine*, 2003 SCC 74; [2003] 3 SCR 571**

The judgment of McLachlin C.J. and Gonthier, Iacobucci, Major, Bastarache and Binnie JJ. was delivered by

1 Gonthier and Binnie JJ. …

112 In *Re B.C. Motor Vehicle Act*, *supra*, Lamer J. (as he then was) explained that the principles of fundamental justice lie in "the basic tenets of our legal system. They do not lie in the realm of general public policy but in the inherent domain of the judiciary as guardian of the justice system" (p. 503). This Court provided further guidance as to what constitutes a principle of fundamental justice for the purposes of s. 7, in *Rodriguez*, *supra*, *per* Sopinka J. (at pp. 590-91 and 607):

> A mere common law rule does not suffice to constitute a principle of fundamental justice, rather, as the term implies, principles upon which there is some consensus that they are vital or fundamental to our societal notion of justice are required. Principles of fundamental justice must not, however, be so broad as to be no more than vague generalizations about what our society considers to be ethical or moral. They must be capable of being identified with some precision and applied to situations in a manner which yields an understandable result. They must also, in my view, be legal principles.
>
> . . .
>
> While the principles of fundamental justice are concerned with more than process, reference must be made to principles which are "fundamental" in the sense that they would have general acceptance among reasonable people. [Emphasis added.]

113 The requirement of "general acceptance among reasonable people" enhances the legitimacy of judicial review of state action, and ensures that the values against which state action is measured are not just fundamental "in the eye of the beholder only": *Rodriguez*, at pp. 607 and 590 (emphasis in original). In short, for a rule or principle to constitute a principle of fundamental justice for the purposes of s. 7, it must be a legal principle about which there is significant societal consensus that it is fundamental to the way in which the legal system ought fairly to operate, and it must be identified with sufficient precision to yield a manageable standard against which to measure deprivations of life, liberty or security of the person.

…

At issue in *Malmo-Levine* was whether the "harm principle" was a principle of fundamental justice: Justices Gonthier and Binnie found that it was not on the basis that it was not a legal principle and that, in any event, there was insufficient societal consensus that the harm principle was the only permissible basis for criminalizing conduct.

4.1.4 Canadian Foundation for Children, Youth and the Law v Canada (Attorney General)

***Canadian Foundation for Children, Youth and the Law v Canada (Attorney General)*, 2004 SCC 4; [2004] 1 SCR 76**

The judgment of McLachlin C.J. and Gonthier, Iacobucci, Major, Bastarache and LeBel JJ. was delivered by

1 The Chief Justice — The issue in this case is the constitutionality of Parliament's decision to carve out a sphere within which children's parents and teachers may use minor corrective force in some circumstances without facing criminal sanction. The assault provision of the *Criminal Code*, R.S.C. 1985, c. C-46, s. 265, prohibits intentional, non-consensual application of force to another. Section 43 of the *Criminal Code* excludes from this crime reasonable physical correction of children by their parents and teachers. It provides:

> Every schoolteacher, parent or person standing in the place of a parent is justified in using force by way of correction toward a pupil or child, as the case may be, who is under his care, if the force does not exceed what is reasonable under the circumstances.

The Canadian Foundation for Children, Youth and the Law (the "Foundation") seeks a declaration that this exemption from criminal sanction: (1) violates s. 7 of the *Canadian Charter of Rights and Freedoms* because it fails to give procedural protections to children, does not further the best interests of the child, and is both overbroad and vague; …

2 The trial judge and the Court of Appeal rejected the Foundation's contentions and refused to issue the declaration requested. Like them, I conclude that the exemption from criminal sanction for corrective force that is "reasonable under the circumstances" does not offend the *Charter*. …

…

8 Jurisprudence on s. 7 has established that a "principle of fundamental justice" must fulfill three criteria: *R. v. Malmo-Levine*, [2003] 3 SCR 571, 2003 SCC 74, at para. 113. First, it must be a legal principle. This serves two purposes. First, it "provides meaningful content for the s. 7 guarantee"; second, it avoids the "adjudication of policy matters": *Re B.C. Motor Vehicle Act*, 1985 CanLII 81 (SCC), [1985] 2 SCR 486, at p. 503. Second, there must be sufficient consensus that the alleged principle is "vital or fundamental to our societal notion of justice": *Rodriguez v. British Columbia (Attorney General)*, 1993 CanLII 75 (SCC), [1993] 3 SCR 519, at p. 590. The principles of fundamental justice are the shared assumptions upon which our system of justice is grounded. They find their meaning in the cases and traditions that have long detailed the basic norms for how the state deals with its citizens. Society views them as essential to the administration of justice. Third, the alleged principle must be capable of being identified with precision and applied to situations in a manner that yields predictable results. Examples of principles of fundamental justice that meet all three requirements include the need for a guilty mind and for reasonably clear laws.

9 The "best interests of the child" is a legal principle, thus meeting the first requirement. A legal principle contrasts with what Lamer J. (as he then was) referred to as "the realm of general public policy" (*Re B.C. Motor Vehicle Act*, *supra*, at p. 503), and Sopinka J. referred to as "broad" and "vague generalizations about what our society considers to be ethical or moral" (*Rodriguez*, *supra*, at p. 591), the use of which would transform s. 7 into a vehicle for policy adjudication. The "best interests of the child" is an established legal principle in international and domestic law. Canada is a party to international conventions that treat "the best interests of the child" as a legal principle: see the *Convention on the Rights of the Child*, Can. T.S. 1992 No. 3, Art. 3(1), and the *Convention on the Elimination of All Forms of Discrimination against Women*, Can. T.S. 1982 No. 31, Arts. 5(b) and 16(1)(d). Many Canadian statutes explicitly name the "best interests of the child" as a legal consideration: see, for example, *Immigration and Refugee Protection Act*, S.C. 2001, c. 27, ss. 25, 28, 60, 67, 68 and 69 ; *Youth Criminal Justice Act*, S.C. 2002, c. 1, ss. 25(8), 27(1), 30(3) and (4); *Divorce Act*, R.S.C. 1985, c. 3 (2nd Supp .), ss. 16(8), (10), 17(5) and (9). Family law statutes are saturated with references to the "best interests of the child" as a legal principle of paramount importance: though not an exhaustive list, examples include: *Family Relations Act*, R.S.B.C. 1996, c. 128, s. 24(1); *Child and Family Services Act*, R.S.O. 1990, c. C.11, s. 1(a); *Children's Law Reform Act*, R.S.O. 1990, c. C.12, s. 19(a). Clearly, the "best interests of the child" has achieved the status of a legal principle; the first requirement is met.

10 However, the "best interests of the child" fails to meet the second criterion for a principle of fundamental justice: consensus that the principle is vital or fundamental to our societal notion of justice. The "best interests of the child" is widely supported in legislation and social policy, and is an important factor for consideration in many contexts. It is not, however, a foundational requirement for the dispensation of justice. Article 3(1) of the *Convention on the Rights of the Child* describes it as "a primary consideration" rather than "the primary consideration" (emphasis added). Drawing on this wording, L'Heureux-Dubé J. noted in *Baker v. Canada (Minister of Citizenship and Immigration)*, 1999 CanLII 699 (SCC), [1999] 2 SCR 817, at para. 75:

> [T]he decision-maker should consider children's best interests as an important factor, give them substantial weight, and be alert, alive and sensitive to them. That is not to say that children's best interests must always outweigh other considerations, or that there will not be other reasons for denying an H & C claim even when children's interests are given this consideration.

It follows that the legal principle of the "best interests of the child" may be subordinated to other concerns in appropriate contexts. For example, a person convicted of a crime may be sentenced to prison even where it may not be in his or her child's best interests. Society does not always deem it essential that the "best interests of the child" trump all other concerns in the administration of justice. The "best interests of the child", while an important legal principle and a factor for consideration in many contexts, is not vital or fundamental to our societal notion of justice, and hence is not a principle of fundamental justice.

11 The third requirement is that the alleged principle of fundamental justice be "capable of being identified with some precision" (*Rodriguez*, *supra*, at p. 591) and provide a justiciable standard. Here, too, the "best interests of the child" falls short. It functions as a factor considered along with others. Its application is inevitably highly contextual and subject to dispute; reasonable people may well disagree about the result that its application will yield, particularly in areas of the law where it is one consideration among many, such as the criminal justice system. It does not function as a principle of fundamental justice setting out our minimum requirements for the dispensation of justice.

12 To conclude, "the best interests of the child" is a legal principle that carries great power in many contexts. However, it is not a principle of fundamental justice.

…

While many procedural and substantive principles of fundamental justice have been recognized, the Supreme Court has identified the principles of arbitrariness, gross disproportionality, and over-breadth as central to section 7 jurisprudence (see *Carter v Canada (Attorney General)*, 2015 SCC 5, [2015] 1 SCR 331 at para 72). To this list we would add the principle of fundamental justice that a law cannot be unconstitutionally vague. As the Supreme Court has recognized, a vague law creates the risk that individuals will be governed by the rule of persons, rather than the rule of law. See *Canadian Foundation for Children, Youth and the Law v Canada (Attorney General)*, 2004 SCC 4; [2004] 1 SCR 76, para 16 (below).

4.2 Vagueness

4.2.1 Canadian Foundation for Children, Youth and the Law v Canada (Attorney General)

***Canadian Foundation for Children, Youth and the Law v Canada (Attorney General)*, 2004 SCC 4; [2004] 1 SCR 76**

The Chief Justice …

…

C. *Vagueness and Overbreadth*

(1) Vagueness

13 The Foundation argues that s. 43 is unconstitutional because first, it does not give sufficient notice as to what conduct is prohibited; and second, it fails to constrain discretion in enforcement. The concept of what is "reasonable under the circumstances" is simply too vague, it is argued, to pass muster as a criminal provision.

14 Applying the legal requirements for precision in a criminal statute to s. 43, I conclude that s. 43, properly construed, is not unduly vague.

(a) *The Standard for "Vagueness"*

15 A law is unconstitutionally vague if it "does not provide an adequate basis for legal debate" and "analysis"; "does not sufficiently delineate any area of risk"; or "is not intelligible". The law must offer a "grasp to the judiciary": *R. v. Nova Scotia Pharmaceutical Society*, 1992 CanLII 72 (SCC), [1992] 2 SCR 606, at pp. 639-40. Certainty is not required.

As Gonthier J. pointed out in *Nova Scotia Pharmaceutical*, *supra*, at pp. 638-39,

> conduct is guided by approximation. The process of approximation sometimes results in quite a narrow set of options, sometimes in a broader one. Legal dispositions therefore delineate a risk zone, and cannot hope to do more, unless they are directed at individual instances. [Emphasis added.]

16 A law must set an intelligible standard both for the citizens it governs and the officials who must enforce it. The two are interconnected. A vague law prevents the citizen from realizing when he or she is entering an area of risk for criminal sanction. It similarly makes it difficult for law enforcement officers and judges to determine whether a crime has been committed. This invokes the further concern of putting too much discretion in the hands of law enforcement officials, and violates the precept that individuals should be governed by the rule of law, not the rule of persons. The doctrine of vagueness is directed generally at the evil of leaving "basic policy matters to policemen, judges, and juries for resolution on an *ad hoc* and subjective basis, with the attendant dangers of arbitrary and discriminatory application": *Grayned v. City of Rockford*, 408 U.S. 104 (1972), at p. 109.

17 *Ad hoc* discretionary decision making must be distinguished from appropriate judicial interpretation. Judicial decisions may properly add precision to a statute. Legislators can never foresee all the situations that may arise, and if they did, could not practically set them all out. It is thus in the nature of our legal system that areas of uncertainty exist and that judges clarify and augment the law on a case-by-case basis.

18 It follows that s. 43 of the *Criminal Code* will satisfy the constitutional requirement for precision if it delineates a risk zone for criminal sanction. This achieves the essential task of providing general guidance for citizens and law enforcement officers.

(b) *Does Section 43 Delineate a Risk Zone for Criminal Sanction?*

19 The purpose of s. 43 is to delineate a sphere of non-criminal conduct within the larger realm of common assault. It must, as we have seen, do this in a way that permits people to know when they are entering a zone of risk of criminal sanction and that avoids *ad hoc* discretionary decision making by law enforcement officials. People must be able to assess when conduct approaches the boundaries of the sphere that s. 43 provides.

20 To ascertain whether s. 43 meets these requirements, we must consider its words and court decisions interpreting those words. The words of the statute must be considered in context, in their grammatical and ordinary sense, and with a view to the legislative scheme's purpose and the intention of Parliament: *Rizzo & Rizzo Shoes Ltd. (Re)*, 1998 CanLII 837 (SCC), [1998] 1 SCR 27, at para. 21; *Bell ExpressVu Limited Partnership v. Rex*, [2002] 2 SCR 559, 2002 SCC 42, at para. 26. Since s. 43 withdraws the protection of the criminal law in certain circumstances, it should be strictly construed: see *Ogg-Moss v. The Queen*, 1984 CanLII 77 (SCC), [1984] 2 SCR 173, at p. 183.

21 Section 43 delineates who may access its sphere with considerable precision. The terms "schoolteacher" and "parent" are clear. The phrase "person standing in the place of a parent" has been held by the courts to indicate an individual who has assumed "*all* the obligations of parenthood": *Ogg-Moss*, *supra*, at p. 190 (emphasis in original). These terms present no difficulty.

22 Section 43 identifies less precisely what conduct falls within its sphere. It defines this conduct in two ways. The first is by the requirement that the force be "by way of correction". The second is by the requirement that the force be "reasonable under the circumstances".

…

23 I turn first to the requirement that the force be "by way of correction". These words, considered in conjunction with the cases, yield two limitations on the content of the protected sphere of conduct.

24 First, the person applying the force must have intended it to be for educative or corrective purposes: *Ogg-Moss*, *supra*, at p. 193. …

25 Second, the child must be capable of benefiting from the correction. This requires the capacity to learn and the possibility of successful correction. Force against children under two cannot be corrective, since on the evidence they are incapable of understanding why they are hit …

26 The second requirement of s. 43 is that the force be "reasonable under the circumstances". …

27 … the law has long used reasonableness to delineate areas of risk, without incurring the dangers of vagueness. … the criminal law is thick with the notion of "reasonableness".

…

29 Is s. 43's reliance on reasonableness, considered in this way, unconstitutionally vague? Does it indicate what conduct risks criminal sanction and provide a principled basis for enforcement? While the words on their face are broad, a number of implicit limitations add precision.

30 The first limitation arises from the behaviour for which s. 43 provides an exemption, simple non-consensual application of force. Section 43 does not exempt from criminal sanction conduct that causes harm or raises a reasonable prospect of harm. …

31 Within this limited area of application, further precision on what is reasonable under the circumstances may be derived from international treaty obligations. Statutes should be construed to comply with Canada's international obligations: *Ordon Estate v. Grail*, 1998 CanLII 771 (SCC), [1998] 3 SCR 437, at para. 137. Canada's international commitments confirm that physical correction that either harms or degrades a child is unreasonable.

…

34 Section 43's ambit is further defined by the direction to consider the circumstances under which corrective force is used. National and international precedents have set out factors to be considered. Article 3 of the *European Convention on Human Rights*, 213 U.N.T.S. 221, forbids inhuman and degrading treatment. The European Court of Human Rights, in determining whether parental treatment of a child was severe enough to fall within the scope of Article 3, held that assessment must take account of "all the circumstances of the case, such as the nature and context of the treatment, its duration, its physical and mental effects and, in some instances, the sex, age and state of health of the victim": Eur. Court H.R., *A. v. United Kingdom*, judgment of 23 September 1998, *Reports of Judgments and Decisions* 1998-VI, p. 2699. These factors properly focus on the prospective effect of the corrective force upon the child, as required by s. 43.

35 By contrast, it is improper to retrospectively focus on the gravity of a child's wrongdoing, which invites a punitive rather than corrective focus. … Obviously, force employed in the absence of any behaviour requiring correction by definition cannot be corrective.

36 Determining what is "reasonable under the circumstances" in the case of child discipline is also assisted by social consensus and expert evidence on what constitutes reasonable corrective discipline. …

37 Based on the evidence currently before the Court, there are significant areas of agreement among the experts on both sides of the issue (trial decision, at para. 17). Corporal punishment of children under two years is harmful to them, and has no corrective value given the cognitive limitations of children under two years of age. Corporal punishment of teenagers is harmful, because it can induce aggressive or antisocial behaviour. Corporal punishment using objects, such as rulers or belts, is physically and emotionally harmful. Corporal punishment which involves slaps or blows to the head is harmful. These types of punishment, we may conclude, will not be reasonable.

38 Contemporary social consensus is that, while teachers may sometimes use corrective force to remove children from classrooms or secure compliance with instructions, the use of corporal punishment by teachers is not acceptable. ... Section 43 will protect a teacher who uses reasonable, corrective force to restrain or remove a child in appropriate circumstances. Substantial societal consensus, supported by expert evidence and Canada's treaty obligations, indicates that corporal punishment by teachers is unreasonable.

39 Finally, judicial interpretation may assist in defining "reasonable under the circumstances" under s. 43. … the issue is not whether s. 43 has provided enough guidance in the past, but whether it expresses a standard that can be given a core meaning in tune with contemporary consensus.

40 When these considerations are taken together, a solid core of meaning emerges for "reasonable under the circumstances", sufficient to establish a zone in which discipline risks criminal sanction. Generally, s. 43 exempts from criminal sanction only minor corrective force of a transitory and trifling nature. On the basis of current expert consensus, it does not apply to corporal punishment of children under two or teenagers. Degrading, inhuman or harmful conduct is not protected. Discipline by the use of objects or blows or slaps to the head is unreasonable. Teachers may reasonably apply force to remove a child from a classroom or secure compliance with instructions, but not merely as corporal punishment. Coupled with the requirement that the conduct be corrective, which rules out conduct stemming from the caregiver's frustration, loss of temper or abusive personality, a consistent picture emerges of the area covered by s. 43. …

41 The fact that borderline cases may be anticipated is not fatal. As Gonthier J. stated in *Nova Scotia Pharmaceutical*, *supra*, at p. 639, "it is inherent to our legal system that some conduct will fall along the boundaries of the area of risk; no definite prediction can then be made. Guidance, not direction, of conduct is a more realistic objective".

42 Section 43 achieves this objective. It sets real boundaries and delineates a risk zone for criminal sanction. The prudent parent or teacher will refrain from conduct that approaches those boundaries, while law enforcement officers and judges will proceed with them in mind. It does not violate the principle of fundamental justice that laws must not be vague or arbitrary.

…

Justice Arbour, in her dissenting opinion, used the same vagueness standard relied on by the Chief Justice in her judgment in *Canadian Foundation for Children, Youth and the Law*. However, unlike the Chief Justice, Justice Arbour found that section 43 of the *Criminal Code* was unconstitutionally vague.

4.3 Arbitrariness, overbreadth and gross disproportionality

As noted above, the Supreme Court identified the principles of fundamental justice of arbitrariness, overbreadth, and gross disproportionality as having emerged as central to the section 7 analysis. These principles are not new. Writing in *R v Morgentaler*, 1988 CanLII 90 (SCC), [1988] 1 SCR 30 (*Morgentaler No 2*), Justice Beetz characterized some of the procedural requirements of then s 251 of the *Criminal Code* as being "manifestly unfair" on the basis that they "have no connection whatsoever with Parliament's objectives in establishing the administrative structure". That notion of "manifest unfairness" is now expressed through the principle of arbitrariness. The concept of gross disproportionality first emerged in the s 12 *Charter* context in the late 1980s (see for example *R v Smith*, 1987 CanLII 64 (SCC), [1987] 1 SCR 1045), while the concept of overbreadth seems to have made its first appearance at the Supreme Court level in 1990 (see *Reference re ss. 193 and 195.1(1)(c) of the Criminal Code (Man.)*, 1990 CanLII 105 (SCC), [1990] 1 SCR 1123). The most significant clarification of these principles has come in more recent cases beginning with the Supreme Court's 2011 decision in *Insite*.

4.3.1 Canada (Attorney General) v PHS Community Services Society

***Canada (Attorney General) v PHS Community Services Society*, 2011 SCC 44; [2011] 3 SCR 134**

…

[18] … [Insite] operates under the authority of the VCHA [the Vancouver Coastal Health Authority], and its personnel are guided by strict policies and procedures. It does not provide drugs to its clients, who must check in, must sign a waiver, and are closely monitored during and after injection. There are guidelines for staff to follow in the disposal of used injection equipment and the containment of leftover drugs.

…

[20] The federal *CDSA* is the federal government's response to the problem of illegal drug use across Canada. By way of the *CDSA*, the federal government has chosen an approach that favours a blanket prohibition on possession and trafficking in illegal drugs. At the same time, Parliament has recognized that there are good reasons to allow the use of illegal substances in certain circumstances. The federal Minister of Health can issue exemptions for medical and scientific purposes under s. 56 of the *CDSA*. Section 55 of the *CDSA* allows for the Governor in Council to make regulations for the medical, scientific and industrial use of illegal substances. In this manner, Parliament has attempted to balance the two competing interests of public safety and public health. In 2008, the federal exemption for Insite from the operation of the criminal drug laws expired. This action was started in an effort to keep Insite open.

…

VI. *Charter* Claims

[74] Three *Charter* claims fall for consideration.

[75] Ms. Tomic, Mr. Wilson and PHS argue that ss. 4(1) and 5(1) of the *CDSA*, which prohibit possession and trafficking respectively, are invalid because they limit the claimants' s. 7 rights to life, liberty and security of the person and are not in accordance with the principles of fundamental justice.

[76] In the alternative, they assert that their s. 7 rights have been infringed by the Minister's refusal to extend the exemption for Insite from the application of the federal drug laws.

[77] Finally, VANDU [the Vancouver Area Network of Drug Users] submits that the *CDSA*'s prohibition on possession of drugs limits the s. 7 *Charter* rights of all addicted drug users everywhere, not just at Insite.

…

C. *Has the Minister's Decision Violated the Claimants' Section 7 Rights?*

[116] The main issue, as the appeal was argued, was the constitutionality of the *CDSA* itself. I have concluded that, properly interpreted, the statute is valid. This leaves the question of the Minister's decision to refuse an exemption. … The issue was raised at the hearing and the parties afforded an opportunity to address it. It is therefore properly before us and the Attorney General of Canada cannot complain that it would be unfair to deal with it. Most importantly, justice requires us to consider this issue. The claimants have established that their s. 7 rights are at stake. They should not be denied a remedy and sent back for another trial on this point simply because it is the Minister's decision and not the statute that causes the breach when the matter has been pleaded and no unfairness arises.

[117] The discretion vested in the Minister of Health is not absolute: as with all exercises of discretion, the Minister's decisions must conform to the *Charter*: *Suresh v. Canada (Minister of Citizenship and Immigration)*, 2002 SCC 1, [2002] 1 SCR 3. If the Minister's decision results in an application of the *CDSA* that limits the s. 7 rights of individuals in a manner that is not in accordance with the *Charter*, then the Minister's discretion has been exercised unconstitutionally.

…

(1) Has the Minister Made a Decision?

…

[120] In my view, the record establishes that the Minister *has* made a decision on the request for an exemption for Insite, and that that decision was to refuse the exemption.

…

(2) Are the Claimants' Section 7 Rights Engaged by the Minister's Decision?

[126] The last ministerial exemption expired on June 30, 2008. … I conclude that the Minister's rejection of the application for a s. 56 exemption … engages the s. 7 rights of the claimants. …

(3) Does the Minister's Refusal to Grant an Exemption to Insite Accord With the Principles of Fundamental Justice?

[127] The next question is whether the Minister's decision that the *CDSA* applies to Insite is in accordance with the principles of fundamental justice. On the basis of the facts established at trial, which are consistent with the evidence available to the Minister at the relevant time, I conclude that the Minister's refusal to grant Insite a s. 56 exemption was arbitrary and grossly disproportionate in its effects, and hence not in accordance with the principles of fundamental justice.

[128] As noted above, the Minister, when exercising his discretion under s. 56, must respect the rights guaranteed by the *Charter*. This means that, where s. 7 rights are at stake, any limitations imposed by ministerial decision must be in accordance with the principles of fundamental justice. The Minister cannot simply deny an application for a s. 56 exemption on the basis of policy *simpliciter*; insofar as it affects *Charter* rights, his decision must accord with the principles of fundamental justice.

(a) *Arbitrariness*

[129] When considering whether a law's application is arbitrary, the first step is to identify the law's objectives. Decisions of the Minister under s. 56 of the *CDSA* must target the purpose of the Act. The legitimate state objectives of the *CDSA* (then the *Narcotic Control Act*, R.S.C. 1986, c. N-1) were identified by this Court in *Malmo-Levine* as the protection of health and public safety.

[130] The second step is to identify the relationship between the state interest and the impugned law, or, in this case, the impugned decision of the Minister. The relationship between the general prohibition on possession in the *CDSA* and the state objective was recognized in *Malmo-Levine* with respect to marihuana:

> The criminalization of possession is a statement of society's collective disapproval of the use of a psychoactive drug such as marihuana . . ., and, through Parliament, the continuing view that its use should be deterred. The prohibition is not arbitrary but is rationally connected to a reasonable apprehension of harm. In particular, criminalization seeks to take marihuana out of the hands of users and potential users, so as to prevent the associated harm and to eliminate the market for traffickers. [para. 136]

The question is whether the decision that the *CDSA* applies to the activities at Insite bears the same relationship to the state objective. As noted above, the burden is on the claimants to establish that the limit imposed by the law is not in accordance with the principles of fundamental justice.

[131] The trial judge's key findings in this regard are consistent with the information available to the Minister, and are those on which successive federal Ministers have relied in granting exemption orders over almost five years, including the facts that: (1) traditional criminal law prohibitions have done little to reduce drug use in the DTES; (2) the risk to injection drug users of death and disease is reduced when they inject under the supervision of a health professional; and (3) the presence of Insite did not contribute to increased crime rates, increased incidents of public injection, or relapse rates in injection drug users. On the contrary, Insite was perceived favourably or neutrally by the public; a local business association reported a reduction in crime during the period Insite was operating; the facility encouraged clients to seek counselling, detoxification and treatment. Most importantly, the staff of Insite had intervened in 336 overdoses since 2006, and no overdose deaths had occurred at the facility. (See trial judgment, at paras. 85 and 87-88.) These findings suggest not only that exempting Insite from the application of the possession prohibition does not undermine the objectives of public health and safety, but furthers them.

[132] The jurisprudence on arbitrariness is not entirely settled. In *Chaoulli*, three justices (*per* McLachlin C.J. and Major J.) preferred an approach that asked whether a limit was "necessary" to further the state objective (paras. 131-32). Conversely, three other justices (*per* Binnie and LeBel JJ.), preferred to avoid the language of necessity and instead approved of the prior articulation of arbitrariness as where "[a] deprivation of a right . . . bears no relation to, or is inconsistent with, the state interest that lies behind the legislation" (para. 232). It is unnecessary to determine which approach should prevail, because the government action at issue in this case qualifies as arbitrary under both definitions.

(b) *Gross Disproportionality*

[133] The application of the possession prohibition to Insite is also grossly disproportionate in its effects. Gross disproportionality describes state actions or legislative responses to a problem that are so extreme as to be disproportionate to any legitimate government interest: *Malmo-Levine*, at para. 143. Insite saves lives. Its benefits have been proven. There has been no discernable negative impact on the public safety and health objectives of Canada during its eight years of operation. The effect of denying the services of Insite to the population it serves is grossly disproportionate to any benefit that Canada might derive from presenting a uniform stance on the possession of narcotics.

(c) *Overbreadth*

[134] Having found the Minister's decision arbitrary and its effects grossly disproportionate, I need not consider this aspect of the argument.

[135] I conclude that, on the basis of the factual findings of the trial judge, the claimants have met the evidentiary burden of showing that the failure of the Minister to grant a s. 56 exemption to Insite is not in accordance with the principles of fundamental justice.

(4) Conclusion on the Challenge to Minister's Decision

[136] The Minister made a decision not to extend the exemption from the application of the federal drug laws to Insite. The effect of that decision, but for the trial judge's interim order, would have been to prevent injection drug users from accessing the health services offered by Insite, threatening the health and indeed the lives of the potential clients. The Minister's decision thus engages the claimants' s. 7 interests and constitutes a limit on their s. 7 rights. Based on the information available to the Minister, this limit is not in accordance with the principles of fundamental justice. It is arbitrary, undermining the very purposes of the *CDSA*, which include public health and safety. It is also grossly disproportionate: the potential denial of health services and the correlative increase in the risk of death and disease to injection drug users outweigh any benefit that might be derived from maintaining an absolute prohibition on possession of illegal drugs on Insite's premises.

…

As Chief Justice McLachlin noted in her reasons in *Insite* (para 132), the meaning of the principle of fundamental justice of arbitrariness was unsettled. While she did not decide in *Insite* on a final meaning of the term, the Court revisited the issue in the *Bedford* and *Carter* decisions.

4.3.2 Canada (Attorney General) v Bedford

***Canada (Attorney General) v Bedford*, 2013 SCC 72, [2013] 3 SCR 1101**

The judgment of the Court was delivered by

[1] The Chief Justice —

…

(3) Principles of Fundamental Justice

(a) The Applicable Norms

[93] I have concluded that the impugned laws deprive prostitutes of security of the person, engaging s. 7. The remaining step in the s. 7 analysis is to determine whether this deprivation is in accordance with the principles of fundamental justice. If so, s. 7 is not breached.

…

[96] The *Motor Vehicle Reference* recognized that the principles of fundamental justice are about the basic values underpinning our constitutional order. The s. 7 analysis is concerned with capturing inherently bad laws: that is, laws that take away life, liberty, or security of the person in a way that runs afoul of our basic values. The principles of fundamental justice are an attempt to capture those values. Over the years, the jurisprudence has given shape to the content of these basic values. In this case, we are concerned with the basic values against arbitrariness, overbreadth, and gross disproportionality.

[97] The concepts of arbitrariness, overbreadth, and gross disproportionality evolved organically as courts were faced with novel *Charter* claims.

…

[107] Although there is significant overlap between these three principles, and one law may properly be characterized by more than one of them, arbitrariness, overbreadth, and gross disproportionality remain three distinct principles that stem from what Hamish Stewart calls "failures of instrumental rationality" — the situation where the law is "inadequately connected to its objective or in some sense goes too far in seeking to attain it" (*Fundamental Justice: Section 7 of the Canadian Charter of Rights and Freedoms* (2012), at p. 151). As Peter Hogg has explained:

> The doctrines of overbreadth, disproportionality and arbitrariness are all at bottom intended to address what Hamish Stewart calls "failures of instrumental rationality", by which he means that the Court accepts the legislative objective, but scrutinizes the policy instrument enacted as the means to achieve the objective. If the policy instrument is not a rational means to achieve the objective, then the law is dysfunctional in terms of its own objective.
>
> ("The Brilliant Career of Section 7 of the Charter" (2012), 58 *S.C.L.R.* (2d) 195, at p. 209 (citation omitted))

…

[110] Against this background, it may be useful to elaborate on arbitrariness, overbreadth and gross disproportionality.

[111] Arbitrariness asks whether there is a direct connection between the purpose of the law and the impugned effect on the individual, in the sense that the effect on the individual bears some relation to the law's purpose. There must be a rational connection between the object of the measure that causes the s. 7 deprivation, and the limits it imposes on life, liberty, or security of the person (Stewart, at p. 136). A law that imposes limits on these interests in a way that bears *no connection* to its objective arbitrarily impinges on those interests. Thus, in *Chaoulli*, the law was arbitrary because the prohibition of private health insurance was held to be unrelated to the objective of protecting the public health system.

[112] Overbreadth deals with a law that is so broad in scope that it includes *some* conduct that bears no relation to its purpose. In this sense, the law is arbitrary *in part*. At its core, overbreadth addresses the situation where there is no rational connection between the purposes of the law and *some*, but not all, of its impacts. For instance, the law at issue in *Demers* required unfit accused to attend repeated review board hearings. The law was only disconnected from its purpose insofar as it applied to permanently unfit accused; for temporarily unfit accused, the effects were related to the purpose.

[113] Overbreadth allows courts to recognize that the law is rational in some cases, but that it overreaches in its effect in others. Despite this recognition of the scope of the law as a whole, the focus remains on the individual and whether the effect on the individual is rationally connected to the law's purpose. For example, where a law is drawn broadly and targets some conduct that bears no relation to its purpose in order to make enforcement more practical, there is still no connection between the purpose of the law and its effect on the *specific individual*. Enforcement practicality may be a justification for an overbroad law, to be analyzed under s. 1 of the *Charter*.

[114] It has been suggested that overbreadth is not truly a distinct principle of fundamental justice. The case law has sometimes said that overbreadth straddles both arbitrariness and gross disproportionality. Thus, in *Heywood*, Cory J. stated: "The effect of overbreadth is that in some applications the law is arbitrary or disproportionate" (p. 793).

[115] And in *R. v. Clay*, 2003 SCC 75, [2003] 3 SCR 735, the companion case to *Malmo-Levine*, Gonthier and Binnie JJ. explained:

> Overbreadth in that respect addresses the potential infringement of fundamental justice where the adverse effect of a legislative measure on the individuals subject to its strictures is grossly disproportionate to the state interest the legislation seeks to protect. Overbreadth in this aspect is, as Cory J. pointed out [in Heywood], related to arbitrariness. [Emphasis deleted; para. 38.]

[116] In part this debate is semantic. The law has not developed by strict labels, but on a case-by-case basis, as courts identified laws that were inherently bad because they violated our basic values.

[117] Moving forward, however, it may be helpful to think of overbreadth as a distinct principle of fundamental justice related to arbitrariness, in that the question for both is whether there is *no connection* between the effects of a law and its objective. Overbreadth simply allows the court to recognize that the lack of connection arises in a law that goes too far by sweeping conduct into its ambit that bears no relation to its objective.

[118] An ancillary question, which applies to both arbitrariness and overbreadth, concerns how significant the lack of correspondence between the objective of the infringing provision and its effects must be. Questions have arisen as to whether a law is arbitrary or overbroad when its effects are *inconsistent* with its objective, or whether, more broadly, a law is arbitrary or overbroad whenever its effects are *unnecessary* for its objective (see, e.g., *Chaoulli*, at paras. 233-34).

[119] As noted above, the root question is whether the law is inherently bad because there is *no connection*, in whole or in part, between its effects and its purpose. This standard is not easily met. The evidence may, as in *Morgentaler*, show that the effect actually undermines the objective and is therefore "inconsistent" with the objective. Or the evidence may, as in *Chaoulli*, show that there is simply no connection on the facts between the effect and the objective, and the effect is therefore "unnecessary". Regardless of how the judge describes this lack of connection, the ultimate question remains whether the evidence establishes that the law violates basic norms because there is *no connection* between its effect and its purpose. This is a matter to be determined on a case-by-case basis, in light of the evidence.

[120] Gross disproportionality asks a different question from arbitrariness and overbreadth. It targets the second fundamental evil: the law's effects on life, liberty or security of the person are so grossly disproportionate to its purposes that they cannot rationally be supported. The rule against gross disproportionality only applies in extreme cases where the seriousness of the deprivation is totally out of sync with the objective of the measure. This idea is captured by the hypothetical of a law with the purpose of keeping the streets clean that imposes a sentence of life imprisonment for spitting on the sidewalk. The connection between the draconian impact of the law and its object must be entirely outside the norms accepted in our free and democratic society.

[121] Gross disproportionality under s. 7 of the *Charter* does *not* consider the beneficial effects of the law for society. It balances the negative effect on the individual against the purpose of the law, *not* against societal benefit that might flow from the law. As this Court said in *Malmo-Levine*:

> In effect, the exercise undertaken by Braidwood J.A. was to balance the law's salutary and deleterious effects. In our view, with respect, that is a function that is more properly reserved for s. 1. These are the types of social and economic harms that generally have no place in s. 7. [para. 181]

[122] Thus, gross disproportionality is not concerned with the number of people who experience grossly disproportionate effects; a grossly disproportionate effect on one person is sufficient to violate the norm.

[123] All three principles — arbitrariness, overbreadth, and gross disproportionality — compare the rights infringement caused by the law with the objective of the law, not with the law's effectiveness. That is, they do not look to how well the law achieves its object, or to how much of the population the law benefits. They do not consider ancillary benefits to the general population. Furthermore, none of the principles measure the percentage of the population that is negatively impacted. The analysis is qualitative, not quantitative. The question under s. 7 is whether *anyone's* life, liberty or security of the person has been denied by a law that is inherently bad; a grossly disproportionate, overbroad, or arbitrary effect on one person is sufficient to establish a breach of s. 7.

…

(4) Do the Impugned Laws Respect the Principles of Fundamental Justice?

(a) Section 210: The Bawdy-House Prohibition

(i) The Object of the Provision

[130] The bawdy-house provision has remained essentially unchanged since it was moved to Part V of the *Criminal Code*, "Disorderly Houses, Gaming and Betting", in the 1953-54 *Code* revision (c. 51, s. 182). In *Rockert v. The Queen*, 1978 CanLII 31 (SCC), [1978] 2 SCR 704, Estey J. found "little, if any, doubt" in the authorities that the disorderly house provisions were not directed at the mischief of betting, gaming and prostitution *per se*, but rather at the harm to the community in which such activities were carried on in a notorious and habitual manner (p. 712). This objective can be traced back to the common law origins of the bawdy-house provisions (see, e.g., E. Coke, *The Third Part of the Institutes of the Laws of England: Concerning High Treason, and Other Pleas of the Crown and Criminal Causes* (1817, first published 1644), at pp. 205-6).

…

[132] There is no evidence to support a reappraisal of this purpose by Parliament. The doctrine against shifting objectives does not permit a new object to be introduced at this point (*R. v. Zundel*, 1992 CanLII 75 (SCC), [1992] 2 SCR 731). … I therefore agree with the lower courts that the objectives of the bawdy-house provision are to combat neighbourhood disruption or disorder and to safeguard public health and safety.

(ii) Compliance With the Principles of Fundamental Justice

[133] The courts below considered whether the bawdy-house prohibition is overbroad, or grossly disproportionate.

[134] I agree with them that the negative impact of the bawdy-house prohibition on the applicants' security of the person is grossly disproportionate to its objective. I therefore find it unnecessary to decide whether the prohibition is overbroad insofar as it applies to a single prostitute operating out of her own home (C.A., at para. 204). The application judge found on the evidence that moving to a bawdy-house would improve prostitutes' safety by providing the "safety benefits of proximity to others, familiarity with surroundings, security staff, closed-circuit television and other such monitoring that a permanent indoor location can facilitate" (para. 427). Balancing this against the evidence demonstrating that "complaints about nuisance arising from indoor prostitution establishments are rare" (*ibid.*), she found that the harmful impact of the provision was grossly disproportionate to its purpose.

[135] The Court of Appeal acknowledged that empirical evidence on the subject is difficult to gather, since almost all the studies focus on street prostitution. However, it concluded that the evidence supported the application judge's findings on gross disproportionality — in particular, the evidence of the high homicide rate among prostitutes, with the overwhelming number of victims being street prostitutes. The Court of Appeal agreed that moving indoors amounts to a "basic safety precaution" for prostitutes, one which the bawdy-house provision makes illegal (paras. 206-7).

[136] In my view, this conclusion was not in error. The harms identified by the courts below are grossly disproportionate to the deterrence of community disruption that is the object of the law. Parliament has the power to regulate against nuisances, but not at the cost of the health, safety and lives of prostitutes. A law that prevents street prostitutes from resorting to a safe haven such as Grandma's House while a suspected

serial killer prowls the streets, is a law that has lost sight of its purpose.

(b) Section 212(1)(j): Living on the Avails of Prostitution

(i) The Object of the Provision

[137] This Court has held, *per* Cory J. for the majority in *Downey*, that the purpose of this provision is to target pimps and the parasitic, exploitative conduct in which they engage:

> It can be seen that the majority of offences outlined in s. 195 are aimed at the procurer who entices, encourages or importunes a person to engage in prostitution. Section 195(1)(*j*) [now s. 212(1)(*j*)] is specifically aimed at those who have an economic stake in the earnings of a prostitute. It has been held correctly I believe that the target of s. 195(1)(*j*) is the person who lives parasitically off a prostitute's earnings. That person is commonly and aptly termed a pimp. [p. 32]

…

(ii) Compliance With the Principles of Fundamental Justice

[139] The courts below concluded that the living on the avails provision is overbroad insofar as it captures a number of non-exploitative relationships which are not connected to the law's purpose. …

[140] I agree with the courts below that the living on the avails provision is overbroad.

[141] The provision has been judicially restricted to those who provide a service or good to a prostitute because she is a prostitute, thus excluding grocers and doctors, for instance (*Shaw v. Director of Public Prosecutions*, [1962] A.C. 220 (H.L.)). It also has been held to require that exploitation be proven in the case of a person who lives with the prostitute, in order to exclude people in legitimate domestic relationships with a prostitute (*Grilo*). These refinements render the prohibition narrower than its words might suggest.

[142] The question here is whether the law nevertheless goes too far and thus deprives the applicants of their security of the person in a manner unconnected to the law's objective. The law punishes everyone who lives on the avails of prostitution without distinguishing between those who exploit prostitutes (for example, controlling and abusive pimps) and those who could increase the safety and security of prostitutes (for example, legitimate drivers, managers, or bodyguards). It also includes anyone involved in business with a prostitute, such as accountants or receptionists. In these ways, the law includes some conduct that bears no relation to its purpose of preventing the exploitation of prostitutes. The living on the avails provision is therefore overbroad.

…

(c) Section 213(1)(c): Communicating in Public for the Purposes of Prostitution

(i) The Object of the Provision

[146] The object of the communicating provision was explained by Dickson C.J. in the *Prostitution Reference*:

> Like Wilson J., I would characterize the legislative objective of s. 195.1(1)(*c*) [now s. 213(1)(*c*)] in the following manner: the provision is meant to address solicitation in public places and, to that end, seeks to eradicate the various forms of social nuisance arising from the public display of the sale of sex. My colleague Lamer J. finds that s. 195.1(1)(*c*) is truly directed towards curbing the exposure of prostitution and related violence, drugs and crime to potentially vulnerable young people, and towards eliminating the victimization and economic disadvantage that prostitution, and especially street soliciting, represents for women. I do not share the view that the legislative objective can be characterized so broadly. In prohibiting sales of sexual services in public, the legislation does not attempt, at least in any direct manner, to address the exploitation, degradation and subordination of women that are part of the contemporary reality of prostitution. Rather, in my view, the legislation is aimed at taking solicitation for the purposes of prostitution off the streets and out of public view.
>
> The *Criminal Code* provision subject to attack in these proceedings clearly responds to the concerns of home-owners, businesses, and the residents of urban neighbourhoods. Public solicitation for the purposes of prostitution is closely associated with street congestion and noise, oral harassment of non-participants and general detrimental effects on passers-by or bystanders, especially children. [pp. 1134-35]

[147] It is clear from these reasons that the purpose of the communicating provision is not to eliminate street prostitution for its own sake, but to take prostitution "off the streets and out of public view" in order to prevent the nuisances that street prostitution can cause. The *Prostitution Reference* belies the argument of the Attorneys General that Parliament's overall objective in these provisions is to deter prostitution.

(ii) Compliance With the Principles of Fundamental Justice

[148] The application judge concluded that the harm imposed by the prohibition on communicating in public was grossly disproportionate to the provision's object of removing the nuisance of prostitution from the streets. This was based on evidence that she found established that the ability to screen clients was an "essential tool" to avoiding violent or drunken clients (application decision, at para. 432).

[149] The majority of the Court of Appeal found that the application judge erred in her analysis of gross disproportionality by attaching too little importance to the objective of s. 213(1)(*c*), and by incorrectly finding on the evidence that face-to-face communication with a prospective customer is essential to enhancing prostitutes' safety (paras. 306 and 310).

[150] In my view, the Court of Appeal majority's reasoning on this question is problematic, largely for the reasons set out by MacPherson J.A., dissenting in part. Four aspects of the majority's analysis are particularly troubling.

[151] First, in concluding that the application judge accorded too little weight to the legislative objective of s. 213(1)(*c*), the majority of the Court of Appeal criticized her characterization of the object of the provision as targeting "noise, street congestion, and the possibility that the practice of prostitution will interfere with those nearby" (C.A., at para. 306). But the application judge's conclusion was in concert with the object of s. 213(1)(*c*) established by Dickson C.J. in the *Prostitution Reference*, which the majority of the Court of Appeal endorsed earlier in their reasons (para. 286).

[152] Compounding this error, the majority of the Court of Appeal inflated the objective of the prohibition on public communication by referring to "drug possession, drug trafficking, public intoxication, and organized crime" (para. 307), even though Dickson C.J. explicitly *excluded* the exposure of "related violence, drugs and crime" to vulnerable young people from the objectives of s. 213(1)(*c*). At most, the provision's effect on these other issues is an ancillary benefit — and, as such, it should not play into the gross disproportionality analysis, which weighs the actual objective of the provision against its negative impact on the individual's life, liberty and security of the person.

[153] The three remaining concerns with the majority's reasoning relate to the other side of the balance: the assessment of the impact of the provision.

[154] First, the majority of the Court of Appeal erroneously substituted its assessment of the evidence for that of the application judge. …

[155] Second, the majority ignored the law's effect of displacing prostitutes to more secluded, less secure locations. …

[156] Related to this is the uncontested fact that the communication ban prevents street workers from bargaining for conditions that would materially reduce their risk, such as condom use and the use of safe houses.

[157] Finally, the majority of the Court of Appeal …, in rejecting the application judge's conclusions, relied on its own speculative assessment of the impact of s. 213(1)(*c*):

> While it is fair to say that a street prostitute might be able to avoid a "bad date" by negotiating details such as payment, services to be performed and condom use up front, it is equally likely that the customer could pass muster at an early stage, only to turn violent once the transaction is underway. It is also possible that the prostitute may proceed even in the face of perceived danger, either because her judgment is impaired by drugs or alcohol, or because she is so desperate for money that she feels compelled to take the risk. [para. 312]

[158] It is certainly conceivable, as this passage suggests, that some street prostitutes would not refuse a client even if communication revealed potential danger. It is also conceivable that the danger may not be perfectly predicted in advance. However, that does not negate the application judge's finding that communication is an essential tool that can decrease risk. The assessment is qualitative, not quantitative. If screening could have prevented one woman from jumping into Robert Pickton's car, the severity of the harmful effects is established.

[159] In sum … I would restore the application judge's conclusion that s. 213(1)(*c*) is grossly disproportionate. The provision's negative impact on the safety and lives of street prostitutes is a grossly disproportionate response to the possibility of nuisance caused by street prostitution.

…

4.3.3 Carter v Canada (Attorney General)

Carter v Canada (Attorney General), 2015 SCC 5 (CanLII), **[2015] 1 SCR 331; 2015 SCC 5**

The following is the judgment delivered by

The Court…

B. The Principles of Fundamental Justice

[71] Section 7 does not promise that the state will never interfere with a person's life, liberty or security of the person — laws do this all the time — but rather that the state will not do so in a way that violates the principles of fundamental justice.

[72] Section 7 does not catalogue the principles of fundamental justice to which it refers. Over the course of 32 years of *Charter* adjudication, this Court has worked to define the minimum constitutional requirements that a law that trenches on life, liberty or security of the person must meet (*Bedford*, at para. 94). While the Court has recognized a number of principles of fundamental justice, three have emerged as central in the recent s. 7 jurisprudence: laws that impinge on life, liberty or security of the person must not be arbitrary, overbroad, or have consequences that are grossly disproportionate to their object.

[73] Each of these potential vices involves comparison with the object of the law that is challenged (*Bedford*, at para. 123). The first step is therefore to identify the object of the prohibition on assisted dying.

[74] The trial judge, relying on *Rodriguez*, concluded that the object of the prohibition was to protect vulnerable persons from being induced to commit suicide at a time of weakness (para. 1190). All the parties except Canada accept this formulation of the object.

[75] Canada agrees that the prohibition is intended to protect the vulnerable, but argues that the object of the prohibition should also be defined more broadly as simply "the preservation of life" (R.F., at paras 66, 108, and 109). We cannot accept this submission.

…

(1) Arbitrariness

[83] The principle of fundamental justice that forbids arbitrariness targets the situation where there is no rational connection between the object of the law and the limit it imposes on life, liberty or security of the person: *Bedford*, at para. 111. An arbitrary law is one that is not capable of fulfilling its objectives. It exacts a constitutional price in terms of rights, without furthering the public good that is said to be the object of the law.

[84] The object of the prohibition on physician-assisted dying is to protect the vulnerable from ending their life in times of weakness. A total ban on assisted suicide clearly helps achieve this object. Therefore, individuals' rights are not limited arbitrarily.

(2) Overbreadth

[85] The overbreadth inquiry asks whether a law that takes away rights in a way that generally supports the object of the law, goes too far by denying the rights of some individuals in a way that bears no relation to the object: *Bedford*, at paras. 101 and 112-13. Like the other principles of fundamental justice under s. 7, overbreadth is not concerned with competing social interests or ancillary benefits to the general population. A law that is drawn broadly to target conduct that bears no relation to its purpose "in order to make enforcement more practical" may therefore be overbroad (see *Bedford*, at para. 113). The question is not whether Parliament has chosen the least restrictive means, but whether the chosen means infringe life, liberty or security of the person in a way that has no connection with the mischief contemplated by the legislature. The focus is not on broad social impacts, but on the impact of the measure on the individuals whose life, liberty or security of the person is trammelled.

[86] Applying this approach, we conclude that the prohibition on assisted dying is overbroad. The object of the law, as discussed, is to protect vulnerable persons from being induced to commit suicide at a moment of weakness. Canada conceded at trial that the law catches people outside this class: "It is recognised that not every person who wishes to commit suicide is vulnerable, and that there may be people with disabilities who have a considered, rational and persistent wish to end their own lives" (trial reasons, at para. 1136). The trial judge accepted that Ms. Taylor was such a person — competent, fully informed, and free from coercion or duress (para. 16). It follows that the limitation on their rights is in at least some cases not connected to the objective of protecting *vulnerable* persons. The blanket prohibition sweeps conduct into its ambit that is unrelated to the law's objective.

[87] Canada argues that it is difficult to conclusively identify the "vulnerable", and that therefore it cannot be said that the prohibition is overbroad. Indeed, Canada asserts, "every person is *potentially* vulnerable" from a legislative perspective (R.F., at para. 115 (emphasis in original)).

[88] We do not agree. The situation is analogous to that in *Bedford*, where this Court concluded that the prohibition on living on the avails of prostitution in s. 212(1) (*j*) of the *Criminal Code* was overbroad. The law in that case punished everyone who earned a living through a relationship with a prostitute, without distinguishing between those who would assist and protect them and those who would be at least

potentially exploitive of them. Canada there as here argued that the line between exploitative and non-exploitative relationships was blurry, and that, as a result, the provision had to be drawn broadly to capture its targets. The Court concluded that that argument is more appropriately addressed under s. 1 (paras. 143-44).

(3) Gross Disproportionality

[89] This principle is infringed if the impact of the restriction on the individual's life, liberty or security of the person is grossly disproportionate to the object of the measure. As with overbreadth, the focus is not on the impact of the measure on society or the public, which are matters for s. 1, but on its impact on the rights of the claimant. The inquiry into gross disproportionality compares the law's purpose, "taken at face value", with its negative effects on the rights of the claimant, and asks if this impact is completely out of sync with the object of the law (*Bedford*, at para. 125). The standard is high: the law's object and its impact may be incommensurate without reaching the standard for *gross* disproportionality (*Bedford*, at para. 120; *Suresh v. Canada (Minister of Citizenship and Immigration)*, 2002 SCC 1, [2002] 1 SCR 3, at para. 47).

[90] The trial judge concluded that the prohibition's negative impact on life, liberty and security of the person was "very severe" and therefore grossly disproportionate to its objective (para. 1378). We agree that the impact of the prohibition is severe: it imposes unnecessary suffering on affected individuals, deprives them of the ability to determine what to do with their bodies and how those bodies will be treated, and may cause those affected to take their own lives sooner than they would were they able to obtain a physician's assistance in dying. Against this it is argued that the object of the prohibition — to protect vulnerable persons from being induced to commit suicide at a time of weakness — is also of high importance. We find it unnecessary to decide whether the prohibition also violates the principle against gross disproportionality, in light of our conclusion that it is overbroad.

…

In *Bedford*, the Supreme Court had apparently settled the meaning of the principle of fundamental justice of arbitrariness. *In light of what the Court said at paragraph 83 of Carter, has the meaning of arbitrariness become unsettled again?*

5 The relationship between section 7 and section 1

The Supreme Court has never found a violation of section 7 justified under section 1. As you read the following cases, think about whether the analysis undertaken by the courts, when assessing the principles of fundamental justice, may overlap with the test laid out in *Oakes*. Consider whether you think a violation of section 7 could ever be demonstrably justified.

5.1 *Re B.C. Motor Vehicle Act*

***Re B.C. Motor Vehicle Act*,** 1985 CanLII 81 (SCC), **[1985] 2 SCR 486**

Per Lamer, J (in obiter) …

83. Indeed, as I said, in penal law, absolute liability always offends the principles of fundamental justice irrespective of the nature of the offence; it offends s. 7 of the *Charter* if as a result, anyone is deprived of his life, liberty or security of the person, irrespective of the requirement of public interest. In such cases it might only be salvaged for reasons of public interest under s. 1.

84. In this latter regard, something might be added.

85. Administrative expediency, absolute liability's main supportive argument, will undoubtedly under s. 1 be invoked and occasionally succeed. Indeed, administrative expediency certainly has its place in administrative law. But when administrative law chooses to call in aid imprisonment through penal law, indeed sometimes criminal law and the added stigma attached to a conviction, exceptional, in my view, will be the case where the liberty or even the security of the person guaranteed under s. 7 should be sacrificed to administrative expediency. Section 1 may, for reasons of administrative expediency, successfully come to the rescue of an otherwise violation of s. 7, but only in cases arising out of exceptional conditions, such as natural disasters, the outbreak of war, epidemics, and the like.

Per Wilson J, concurring (in obiter) …

119. I have already indicated that in my view a law which interferes with the liberty of the citizen in violation of the principles of fundamental justice cannot be saved by s. 1 as being either reasonable or justified. The concepts are mutually exclusive. This is not, of course, to say that no limits can be put upon the right to life, liberty and security of the person. They clearly can, but only if they are imposed in accordance with the principles of fundamental justice and survive the tests in s. 1 as being reasonable and justified in a free and democratic society. Nor is the government precluded from resort to s. 33 of the *Charter* in order to dispense with the requirements of fundamental justice when, in a case of emergency, it seeks to impose restrictions on the s. 7 right. This, however, will be a policy decision for which the government concerned will be politically accountable to the people. As it is, s. 94 cannot, in my view, be saved by s. 1 if it violates s. 7. The sole question is whether it violates s. 7.

5.2 *R v Malmo-Levine; R v Caine*

***R v Malmo-Levine; R v Caine*,** 2003 SCC 74 (CanLII), **[2003] 3 SCR 571**

Per McLachlin, CJ and Gonthier, Iacobucci, Major, Bastarache and Binnie JJ; Arbour, LeBel and Deschamps JJ. dissenting in part …

96 We do not think that these authorities should be taken as suggesting that courts engage in a free-standing inquiry under s. 7 into whether a particular legislative measure "strikes the right balance" between individual and societal interests in general, or that achieving the right balance is itself an overarching principle of fundamental justice. Such a general undertaking to balance individual and societal interests, *independent of any identified principle of fundamental justice*, would entirely collapse the s. 1 inquiry into s. 7. The procedural implications of such a collapse are significant. Counsel for the appellant Caine, for example, urges that the appellants having identified a threat to the liberty or security of the person, the evidentiary onus should switch at once to the Crown *within s. 7* "to provide evidence of the significant harm that it relies upon to justify the use of criminal sanctions" (Caine's factum, at para. 24).

97 We do not agree. In *R. v. Mills*, 1999 CanLII 637 (SCC), [1999] 3 SCR 668, a majority of this Court pointed out that, despite certain similarities between the balancing of interests in ss. 7 and 1, there are important differences. Firstly, the issue under s. 7 is the delineation of the boundaries of the rights and principles in question whereas under s. 1 the question is whether an infringement may be justified (para. 66). Secondly, it was affirmed that under s. 7 it is the claimant who bears the onus of proof throughout. It is only if an infringement of s. 7 is established that the onus switches to the Crown to justify the infringement under s. 1. Thirdly, the range of interests to be taken into account under s. 1 is much broader than those relevant to s. 7. The Court said in *Mills*, at para. 67:

> Because of these differences, the nature of the issues and interests to be balanced is not the same under the two sections. As Lamer J. (as he then was) stated in *Re B.C. Motor Vehicle Act*, *supra*, at p. 503: "the principles of fundamental justice are to be found in the basic tenets of our legal system". In contrast, s. 1 is concerned with the values underlying a free and democratic society, which are broader in nature. In *R. v.*

Oakes, 1986 CanLII 46 (SCC), [1986] 1 SCR 103, Dickson C.J. stated, at p. 136, that these values and principles "embody, to name but a few, respect for the inherent dignity of the human person, commitment to social justice and equality, accommodation of a wide variety of beliefs, respect for cultural and group identity, and faith in social and political institutions which enhance the participation of individuals and groups in society". In *R. v. Keegstra*,1990 CanLII 24 (SCC), [1990] 3 SCR 697, at p. 737, Dickson C.J. described such values and principles as "numerous, covering the guarantees enumerated in the *Charter* and more".

98 The balancing of individual and societal interests within s. 7 is only relevant when elucidating a particular principle of fundamental justice. As Sopinka J. explained in *Rodriguez*, *supra*, "in arriving at these principles [of fundamental justice], a balancing of the interest of the state and the individual is required" (pp. 592-93 (emphasis added)). Once the principle of fundamental justice has been elucidated, however, it is not within the ambit of s. 7 to bring into account such "societal interests" as health care costs. Those considerations will be looked at, if at all, under s. 1. As Lamer C.J. commented in *R. v. Swain*, 1991 CanLII 104 (SCC), [1991] 1 SCR 933, at p. 977:

It is not appropriate for the state to thwart the exercise of the accused's right by attempting to bring societal interests into the principles of fundamental justice and to thereby limit an accused's s. 7 rights. Societal interests are to be dealt with under s. 1 of the *Charter*, where the Crown has the burden of proving that the impugned law is demonstrably justified in a free and democratic society.

5.3 *Canada (Attorney General) v Bedford*

***Canada (Attorney General) v Bedford*, 2013 SCC 72, [2013] 3 SCR 1101**

The judgment of the Court was delivered by

[1] The Chief Justice —

…

[129] It has been said that a law that violates s. 7 is unlikely to be justified under s. 1 of the *Charter* (*Motor Vehicle Reference*, at p. 518). The significance of the fundamental rights protected by s. 7 supports this observation. Nevertheless, the jurisprudence has also recognized that there may be some cases where s. 1 has a role to play (see, e.g., *Malmo-Levine*, at paras. 96-98). Depending on the importance of the legislative goal and the nature of the s. 7 infringement in a particular case, the possibility that the government could establish that a s. 7 violation is justified under s. 1 of the *Charter* cannot be discounted.

…

[161] The appellant Attorneys General have not seriously argued that the laws, if found to infringe s. 7, can be justified under s. 1 of the *Charter*. Only the Attorney General of Canada addressed this in his factum, and then, only briefly. I therefore find it unnecessary to engage in a full s. 1 analysis for each of the impugned provisions. However, some of their arguments under s. 7 of the *Charter* are properly addressed at this stage of the analysis.

[162] In particular, the Attorneys General attempt to justify the living on the avails provision on the basis that it must be drafted broadly in order to capture all exploitative relationships, which can be difficult to identify. However, the law not only catches drivers and bodyguards, who may actually be pimps, but it also catches clearly non-exploitative relationships, such as receptionists or accountants who work with prostitutes. The law is therefore not minimally impairing. Nor, at the final stage of the s. 1 inquiry, is the law's effect of preventing prostitutes from taking measures that would increase their safety, and possibly save their lives, outweighed by the law's positive effect of protecting prostitutes from exploitative relationships.

[163] The Attorneys General have not raised any other arguments distinct from those considered under s. 7. I therefore find that the impugned laws are not saved by s. 1 of the *Charter*.

Why do you think the Attorneys General did not make a serious section 1 argument in this case? Should the Attorneys General have made such an argument? In contrast with the decision in *Bedford*, the Supreme Court in *Carter* heard argument about section 1 and undertook a detailed analysis of the section. *What does this suggest about the difference between section 7 and section 1?*

5.4 *Carter v Canada (Attorney General)*

Carter v Canada (Attorney General), 2015 SCC 5 (CanLII), **[2015] 1 SCR 331; 2015 SCC 5**

The following is the judgment delivered by

The Court —

…

[79] Before turning to the principles of fundamental justice at play, a general comment is in order. In determining whether the deprivation of life, liberty and security of the person is in accordance with the principles of fundamental justice under s. 7, courts are not concerned with competing social interests or public benefits conferred by the impugned law. These competing moral claims and broad societal benefits are more appropriately considered at the stage of justification under s. 1of the *Charter* (*Bedford*, at paras. 123 and 125).

…

[94] In order to justify the infringement of the appellants' s. 7 rights under s. 1 of the *Charter*, Canada must show that the law has a pressing and substantial object and that the means chosen are proportional to that object. A law is proportionate if (1) the means adopted are rationally connected to that objective; (2) it is minimally impairing of the right in question; and (3) there is proportionality between the deleterious and salutary effects of the law: *R. v. Oakes*, 1986 CanLII 46 (SCC), [1986] 1 SCR 103.

[95] It is difficult to justify a s. 7 violation: see *Motor Vehicle Reference*, at p. 518; *G. (J.)*, at para. 99. The rights protected by s. 7 are fundamental, and "not easily overridden by competing social interests" (*Charkaoui*, at para. 66). And it is hard to justify a law that runs afoul of the principles of fundamental justice and is thus inherently flawed (*Bedford*, at para. 96). However, in some situations the state may be able to show that the public good — a matter not considered under s. 7, which looks only at the impact on the rights claimants — justifies depriving an individual of life, liberty or security of the person under s. 1 of the *Charter*. More particularly, in cases such as this where the competing societal interests are themselves protected under the *Charter*, a restriction on s. 7 rights may in the end be found to be proportionate to its objective.

[96] Here, the limit is prescribed by law, and the appellants concede that the law has a pressing and substantial objective. The question is whether the government has demonstrated that the prohibition is proportionate.

[97] At this stage of the analysis, the courts must accord the legislature a measure of deference. Proportionality does not require perfection: *Saskatchewan (Human Rights Commission) v. Whatcott*, 2013 SCC 11, [2013] 1 SCR 467, at para. 78. Section 1 only requires that the limits be "reasonable". This Court has emphasized that there may be a number of possible solutions to a particular social problem, and

suggested that a "complex regulatory response" to a social ill will garner a high degree of deference (*Hutterian Brethren*, at para. 37).

[98] On the one hand, as the trial judge noted, physician-assisted death involves complex issues of social policy and a number of competing societal values. Parliament faces a difficult task in addressing this issue; it must weigh and balance the perspective of those who might be at risk in a permissive regime against that of those who seek assistance in dying. It follows that a high degree of deference is owed to Parliament's decision to impose an absolute prohibition on assisted death. On the other hand, the trial judge also found — and we agree — that the absolute prohibition could not be described as a "complex regulatory response" (para. 1180). The degree of deference owed to Parliament, while high, is accordingly reduced.

Rational Connection

[99] The government must show that the absolute prohibition on physician-assisted dying is rationally connected to the goal of protecting the vulnerable from being induced to take their own lives in times of weakness. The question is whether the means the law adopts are a rational way for the legislature to pursue its objective. If not, rights are limited for no good reason. To establish a rational connection, the government need only show that there is a causal connection between the infringement and the benefit sought "on the basis of reason or logic": *RJR-MacDonald*, at para. 153.

[100] We agree with Finch C.J.B.C. in the Court of Appeal that, where an activity poses certain risks, prohibition of the activity in question is a rational method of curtailing the risks (para. 175). We therefore conclude that there is a rational connection between the prohibition and its objective.

[101] The appellants argue that the *absolute* nature of the prohibition is not logically connected to the object of the provision. This is another way of saying that the prohibition goes too far. In our view, this argument is better dealt with in the inquiry into minimal impairment. It is clearly rational to conclude that a law that bars all persons from accessing assistance in suicide will protect the vulnerable from being induced to commit suicide at a time of weakness. The means here are logically connected with the objective.

Minimal Impairment

[102] At this stage of the analysis, the question is whether the limit on the right is reasonably tailored to the objective. The inquiry into minimal impairment asks "whether there are less harmful means of achieving the legislative goal" (*Hutterian Brethren*, at para. 53). The burden is on the government to show the absence of less drastic means of achieving the objective "in a real and substantial manner" (*ibid.*, at para. 55). The analysis at this stage is meant to ensure that the deprivation of *Charter* rights is confined to what is reasonably necessary to achieve the state's object.

[103] The question in this case comes down to whether the absolute prohibition on physician-assisted dying, with its heavy impact on the claimants' s. 7 rights to life, liberty and security of the person, is the least drastic means of achieving the legislative objective. It was the task of the trial judge to determine whether a regime less restrictive of life, liberty and security of the person could address the risks associated with physician-assisted dying, or whether Canada was right to say that the risks could not adequately be addressed through the use of safeguards.

[104] This question lies at the heart of this case and was the focus of much of the evidence at trial. In assessing minimal impairment, the trial judge heard evidence from scientists, medical practitioners, and others who were familiar with end-of-life decision-making in Canada and abroad. She also heard extensive evidence from each of the jurisdictions where physician-assisted dying is legal or regulated. In the trial judge's view, an absolute prohibition would have been necessary if the evidence showed that physicians were unable to reliably assess competence, voluntariness, and non-ambivalence in patients; that physicians fail to understand or apply the informed consent requirement for medical treatment; or if the evidence from permissive jurisdictions showed abuse of patients, carelessness, callousness, or a slippery slope, leading to the casual termination of life (paras. 1365-66).

[105] The trial judge, however, expressly rejected these possibilities. After reviewing the evidence, she concluded that a permissive regime with properly designed and administered safeguards was capable of protecting vulnerable people from abuse and error. While there are risks, to be sure, a carefully designed and managed system is capable of adequately addressing them:

> My review of the evidence in this section, and in the preceding section on the experience in permissive jurisdictions, leads me to conclude that the risks inherent in permitting physician-assisted death can be identified and very substantially minimized through a carefully-designed system imposing stringent limits that are scrupulously monitored and enforced. [para. 883]

[106] The trial judge found that it was feasible for properly qualified and experienced physicians to reliably assess patient competence and voluntariness, and that coercion, undue influence, and ambivalence could all be reliably assessed as part of that process (paras. 795-98, 815, 837, and 843). In reaching this conclusion, she particularly relied on the evidence on the application of the informed consent standard in other medical decision-making in Canada, including end-of-life decision-making (para. 1368). She concluded that it would be possible for physicians to apply the informed consent standard to patients who seek assistance in dying, adding the caution that physicians should ensure that patients are properly informed of their diagnosis and prognosis and the range of available options for medical care, including palliative care interventions aimed at reducing pain and avoiding the loss of personal dignity (para. 831).

[107] As to the risk to vulnerable populations (such as the elderly and disabled), the trial judge found that there was no evidence from permissive jurisdictions that people with disabilities are at heightened risk of accessing physician-assisted dying (paras. 852 and 1242). She thus rejected the contention that unconscious bias by physicians would undermine the assessment process (para. 1129). The trial judge found there was no evidence of inordinate impact on socially vulnerable populations in the permissive jurisdictions, and that in some cases palliative care actually improved post-legalization (para. 731). She also found that while the evidence suggested that the law had both negative and positive impacts on physicians, it did support the conclusion that physicians were better able to provide overall end-of-life treatment once assisted death was legalized (para. 1271). Finally, she found no compelling evidence that a permissive regime in Canada would result in a "practical slippery slope" (para. 1241).

…

[114] At trial Canada went into some detail about the risks associated with the legalization of physician-assisted dying. In its view, there are many possible sources of error and many factors that can render a patient "decisionally vulnerable" and thereby give rise to the risk that persons without a rational and considered desire for death will in fact end up dead. It points to cognitive impairment, depression or other mental illness, coercion, undue influence, psychological or emotional manipulation, systemic prejudice (against the elderly or people with disabilities), and the possibility of ambivalence or misdiagnosis as factors that may escape detection or give rise to errors in capacity assessment. Essentially, Canada argues that, given the breadth of this list, there is no reliable way to identify those who are vulnerable and those who are not. As a result, it says, a blanket prohibition is necessary.

[115] The evidence accepted by the trial judge does not support Canada's argument. Based on the evidence regarding assessment processes in comparable end-of-life medical decision-making in Canada, the trial judge concluded that vulnerability can be assessed on an individual basis, using the procedures that physicians apply in their assessment of informed consent and decisional capacity in the context of

medical decision-making more generally. Concerns about decisional capacity and vulnerability arise in all end-of-life medical decision-making. Logically speaking, there is no reason to think that the injured, ill, and disabled who have the option to refuse or to request withdrawal of lifesaving or life-sustaining treatment, or who seek palliative sedation, are less vulnerable or less susceptible to biased decision-making than those who might seek more active assistance in dying. The risks that Canada describes are already part and parcel of our medical system.

[116] As the trial judge noted, the individual assessment of vulnerability (whatever its source) is implicitly condoned for life-and-death decision-making in Canada. In some cases, these decisions are governed by advance directives, or made by a substitute decision-maker. Canada does not argue that the risk in those circumstances requires an absolute prohibition (indeed, there is currently no federal regulation of such practices). In *A.C.*, Abella J. adverted to the potential vulnerability of adolescents who are faced with life-and-death decisions about medical treatment (paras. 72-78). Yet, this Court implicitly accepted the viability of an individual assessment of decisional capacity in the context of that case. We accept the trial judge's conclusion that it is possible for physicians, with due care and attention to the seriousness of the decision involved, to adequately assess decisional capacity.

[117] The trial judge, on the basis of her consideration of various regimes and how they operate, found that it is possible to establish a regime that addresses the risks associated with physician-assisted death. We agree with the trial judge that the risks associated with physician-assisted death can be limited through a carefully designed and monitored system of safeguards.

[118] Canada also argues that the permissive regulatory regime accepted by the trial judge "accepts too much risk", and that its effectiveness is "speculative" (R.F., at para. 154). In effect, Canada argues that a blanket prohibition should be upheld unless the appellants can demonstrate that an alternative approach eliminates all risk. This effectively reverses the onus under s. 1, requiring the claimant whose rights are infringed to prove less invasive ways of achieving the prohibition's object. The burden of establishing minimal impairment is on the government.

[119] The trial judge found that Canada had not discharged this burden. The evidence, she concluded, did not support the contention that a blanket prohibition was necessary in order to substantially meet the government's objectives. We agree. A theoretical or speculative fear cannot justify an absolute prohibition. As Deschamps J. stated in *Chaoulli*, at para. 68, the claimant "d[oes] not have the burden of disproving every fear or every threat", nor can the government meet its burden simply by asserting an adverse impact on the public. Justification under s. 1 is a process of demonstration, not intuition or automatic deference to the government's assertion of risk (*RJR-MacDonald*, at para. 128).

[120] Finally, it is argued that without an absolute prohibition on assisted dying, Canada will descend the slippery slope into euthanasia and condoned murder. Anecdotal examples of controversial cases abroad were cited in support of this argument, only to be countered by anecdotal examples of systems that work well. The resolution of the issue before us falls to be resolved not by competing anecdotes, but by the evidence. The trial judge, after an exhaustive review of the evidence, rejected the argument that adoption of a regulatory regime would initiate a descent down a slippery slope into homicide. We should not lightly assume that the regulatory regime will function defectively, nor should we assume that other criminal sanctions against the taking of lives will prove impotent against abuse.

[121] We find no error in the trial judge's analysis of minimal impairment. We therefore conclude that the absolute prohibition is not minimally impairing.

Deleterious Effects and Salutary Benefits

[122] This stage of the *Oakes* analysis weighs the impact of the law on protected rights against the beneficial effect of the law in terms of the greater public good. Given our conclusion that the law is not minimally impairing, it is not necessary to go on to this step.

[123] We conclude that s. 241(*b*) and s. 14 of the *Criminal Code* are not saved by s. 1 of the *Charter*.

Following these cases, the Ontario Court of Appeal found a law that violates section 7 justified under section 1.

5.5 *R v Michaud*

***R v Michaud*, 2015 ONCA 585**

The judgment of the court was delivered by

[1] **LAUWERS J.A.**: — Gene Michaud, the late appellant, was a commercial truck driver. He was required by law to equip his truck with a functional speed limiter set to a maximum speed of 105 km/h. The speed limiter on Mr. Michaud's truck was functional, but was set to 109.4 km/h. He was charged with contravening s. 68.1(1) of the *Highway Traffic Act*, R.S.O. 1990, c. H.8 ("*HTA*") and s. 14(1) of the equipment regulation, R.R.O. 1990, Reg. 587 (the "legislation"), which together impose the speed limiter requirement. Mr. Michaud admitted the facts.

[2] The justice of the peace at first instance acquitted Mr. Michaud on the basis that the legislation infringed his right to security of the person and thereby violated s. 7 of the *Canadian Charter of Rights and Freedoms* ... On appeal, the Ontario Court of Justice admitted fresh evidence, found no *Charter* violation and set aside the trial decision.

…

[114] In considering the application of s. 1 of the *Charter* to a breach of s. 7, the court must first determine whether the purposes, goals or objectives of the limit established by the impugned legislation are pressing and substantial.

(a) *Pressing and substantial objectives*

[115] It is not disputed that the government's goals in enacting the speed limiter legislation were to improve highway safety by preventing accidents and reducing the severity of collisions, and to reduce greenhouse gas emissions. The daily carnage on our roads shows that the operation of motor vehicles is one of the most common yet potentially dangerous activities carried out routinely by large numbers of individuals in modern society. I accept that these objectives are pressing and substantial.

[116] The s. 1 *Charter* analysis next considers whether the means by which those purpose are advanced are proportionate: (1) Is the limit rationally connected to the purpose? (2) Does the limit minimally impair the right? (3) Is there proportionality between the deleterious and salutary effects of the law? I address these requirements in turn.

(b) *Rational connection*

[117] The government must establish a rational "connection between the infringement and the benefit sought on the basis of reason or logic" (*RJR-MacDonald Inc.*, at para. 153; *Carter*, at para. 99). It must show that the limit is not arbitrary in the sense of being totally unconnected to the purpose for which it was enacted. In doing so, the government need only demonstrate [page107] a reasonable prospect that the limit will further the objective to some extent, not that it will certainly do so: *Alberta v. Hutterian Brethren of Wilson Colony*, [2009] 2 SCR 567, [2009] S.C.J. No. 37, 2009 SCC 37, at para. 48.

[118] The government argues that requiring trucks to be equipped with speed limiters set at 105 km/h is rationally connected to the objectives of the legislation. By controlling the maximum speed at which truck drivers can drive, speed limiters reduce both the frequency and severity of highway accidents. Highway accidents involving trucks can be very dangerous, and reducing the severity of accidents therefore would improve highway safety.

[119] The appeal judge relied on Dr. Saccomanno's evidence to conclude, at para. 63, that trucks are 20 to 30 times heavier than cars and require 20 to 40 per cent longer stopping distances. Dr. Saccomanno noted, at para. 19 of his affidavit, that "The severity of a crash is also expected to be lower when speed limiters are involved due to lower speed and reduced dissipation of kinetic energy." The trial justice's observation that, "once you are past a certain speed it does not matter" (p. 15), is not supported by the evidence and is counterintuitive. The appellant does not contest the link between speed and the severity of collisions.

[120] The expert evidence in this case, as accepted by the appeal judge, supports the Crown's argument. Beyond the argument about the permissible scope of the appeal addressed above in relation to the first issue, the appellant has not pointed to any palpable or overriding error in the appeal judge's finding of fact, at para. 135, that "the use of speed limiters does contribute to increased safety on the roads". Nor does the appellant point to any error in the appeal judge's finding of fact that speed limiters contribute to reducing greenhouse gas emissions.

[121] I therefore find that the speed limiter law is rationally connected to the goals of improving highway safety and reducing greenhouse gas emissions.

(c) *Minimal impairment*

[122] In the minimal impairment analysis, the court asks "whether there are less harmful means of achieving the legislative goal" while at the same time deferring to the legislature in instances where it is better situated to choose among a range of alternatives: *Hutterian Brethren*, at para. 53; *Carter*, at para. 102. In order to satisfy this branch of the *Oakes* test, an alternative must achieve the purpose of the legislation to the same extent: *Hutterian Brethren*, at para. 54. [page108]

[123] The Crown argues that the legislation is minimally impairing in improving highway safety by reducing the speed of trucks; it regulates individual truck drivers only to the degree required to ensure they approach compliance with valid and unchallenged speed limits. It even allows them a 5 per cent margin over the highest speed limit in Ontario.

[124] Although the appellant did not make a fully developed s. 1 argument, the implication of his s. 7 argument is that the legislation is not minimally impairing, because in some traffic conflicts involving trucks it would be safer for a truck driver to be able to accelerate beyond the speed enforced by the speed limiter. The implicit submission is that the legislature should have found a way to achieve highway safety without totally removing truck drivers' ability to accelerate above 105 km/h when it is in the interests of safety for them to be able to so do. For instance, the appellant argues, the use of traffic police officers and radar guns would accomplish the speed reduction objective.

[125] There are two implied assertions to the appellant's position: first, the government's regulatory approach is unsound; and second, the 105 km/h speed limit set for the limiter is itself arbitrary. I reject both assertions.

(i) *The government's regulatory approach is not unsound*

[126] The government could choose from the three types of regulation: "*ex ante*" or "precautionary"; "*ex post*" or deterrent to be enforced solely by penalties; or hybrid, being a combination of both. The hybrid model adopted by the government combines the effectiveness of both approaches in controlling the speed of trucks. This is entirely appropriate where human life or safety is at stake, and where there is scientific uncertainty as to the precise nature or magnitude of the possible risks.

[127] The *Highway Traffic Act* and its regulations constitute a complex regulatory response to the social problem of motor vehicle and highway safety. The regulatory structure is suffused with technical expertise related to safety, as the evidence in this case shows. There was a real debate between those who assert, like Dr. Saccomanno, that speed limiters enhance highway safety on balance, and those, like Ms. Cirillo, who assert that speed differences brought about by speed limiters cause traffic turbulence which increases the danger of collisions. Where there is debate about countervailing risks in a situation of uncertainty, the regulator must make the call and did so. This is precisely where the judicial "margin of appreciation" comes to the fore and courts ought to defer. [page109]

[128] As the Supreme Court noted in *Hutterian Brethren*, at para. 37:

> Where a complex regulatory response to a social problem is challenged, *courts will generally take a more deferential posture throughout the s. 1 analysis* than they will when the impugned measure is a penal statute directly threatening the liberty of the accused. . . . The bar of constitutionality must not be set so high that responsible, creative solutions to difficult problems would be threatened. A degree of deference is therefore appropriate.
>
> [Emphasis added; citations omitted]

[129] In *Carter*, the Supreme Court repeated, at para. 97, that "a complex regulatory response' to a social ill will garner a high degree of deference", citing *Hutterian Brethren*. However, the court added, at para. 98, that an "absolute prohibition could not be described as a complex regulatory response'".

[130] However, this is not a case in which the concept of prohibition can play a useful analytical role. Picking out one feature from a very complex regulatory structure is too granular an approach. Assuming that the limit could be seen as an absolute prohibition on excessive speeding by trucks, it does not automatically fail, as this court noted in *Cochrane v. Ontario (Attorney General)* (2008), 2008 ONCA 718 (CanLII), 92 O.R. (3d) 321, [2008] O.J. No. 4165 (C.A.), at para. 34 (pit bull ban).

[131] The legislature has determined that the objective of ensuring highway safety cannot be not achieved satisfactorily without a blanket prohibition on speeding by trucks, enforced by speed limiters. As stated in *Hutterian Brethren*, a minimal impairment analysis does not require the government to institute less impairing measures that do not achieve its objective.

[132] The choice of the hybrid form of safety regulation, and the specific decision to require trucks to be equipped with speed limiters, are uniquely within the purview of the regulator.

(ii) *The 105 km/h speed limit set for the limiter is not arbitrary*

[133] In the absence of specific evidence, the trial justice noted, at p. 17, that "it can only be surmised that the 105 km/ h [page110] figure was arrived at by the government without the benefit of science". His inference might actually be true given the state of the science. If so, is it fatal to the government's position? In my view, it is not.

[134] Once the policy decision was made to require truck speed limiters, the obvious question was: to what speed should trucks be limited? Although, as the appeal judge noted, truck speed limiters are becoming more prevalent in North America, the absence of experience on which the science would be based meant that Ontario had to select some number. Presumably, with experience, the number could change if it turned

out not to be well tailored. The setting of any number in a safety standard has a degree of arbitrariness about it, in that the number could easily be slightly higher or slightly lower, but this is not arbitrariness in a constitutional sense. There is nothing obviously outlandish or "totally out of sync" in the limit of 105 km/h.

[135] In oral argument, in response to a question from the bench, counsel for Mr. Michaud said that he would be content with a speed limiter set to 110 km/h, since Mr. Michaud had set his limiter at 109.4 km/h. The fact that the live dispute in this appeal could boil down to a 5 km/h difference of opinion as to the maximum speed shows how necessary the margin of appreciation for regulators really is, and illustrates the inadvisability of the courts undertaking too searching an analysis of the legislative response to public safety concerns. Those qualified to assess the evidence and determine the appropriate response are the regulators and policy makers who have developed expertise in precisely this type of regulation and the cost-benefit analysis it demands.

[136] I would find that the legislative choice to set truck speed limiters at 105 km/h falls within the reasonable range of policy choices open to the government. The number reflects a 5 per cent margin over the legal speeding limit and is well within the margin of appreciation or room to manoeuvre due to the regulator. I would find the speed limiter legislation to be minimally impairing.

(d) *The proportionality of the legislation's effects*

[137] The proportionality analysis under s. 1 of the *Charter* differs from the analysis undertaken at the second stage of s. 7 relating to the application of the principles of fundamental justice. The s. 1 analysis is prescribed by the Supreme Court in *Hutterian Brethren*: Is the limit on the right proportionate in effect to the public benefit conferred by the limit (para. 73)? This analysis "takes full account of the severity of the deleterious [page111] effects of a measure on individuals or groups'" (para. 76). It entails a broad assessment of whether the "benefits of the impugned law are worth the costs of the rights limitation" (para. 77), or whether "the deleterious effects are out of proportion with the public good achieved by the infringing measure" (para. 78).

[138] The task involves balancing the harm done to Mr. Michaud's s. 7 right to security of the person, along with other truck drivers affected by the legislation, against the benefit to the public resulting from truck speed limiters set to 105 km/h.

[139] At its highest, the evidence shows that in 2 per cent of the traffic conflicts involving trucks, it would be less dangerous if a truck driver could accelerate to avoid a collision. It follows that in 98 per cent of such traffic conflicts, the inability to accelerate does not expose the truck driver to harm. Braking, steering and other evasive manoeuvres are sufficient.

[140] Moreover, the fact that acceleration is used as an evasive technique in only 2 per cent of traffic conflicts does not support the appellant's assertion that, in those situations, he must be able to accelerate up to speeds faster than 105 km/h in any event. I note that it is not clear from the evidence what proportion of the 2 per cent is made up of trucks moving at maximum speed. Traffic conflicts also happen in situations where the truck is not at maximum speed, such as entering the highway (appeal decision, para. 113) or exiting (appeal decision, para. 114). The actual proportion of traffic conflicts that would engage a truck's need to accelerate would therefore be smaller than 2 per cent. The 2 per cent statistic might overstate the deleterious effects on Mr. Michaud and his colleagues having their speed limiters set to 105 km/h.

[141] With respect to Ms. Cirillo's contention that the speed limiters cause traffic turbulence, which is itself dangerous, the appeal judge found, at para. 70, that Ms. Cirillo "was not aware of any studies on speed limiters at all let alone a study that showed that speed limiters make speed variance more likely or that accident rates increase". The appeal judge found, in the context of making out Mr. Michaud's s. 7 claim where the onus was on the appellant, at para. 102, that Ms. Cirillo did not offer any evidence that speed limiters lead to the speed differential she identified as a greater cause of accidents than speeding. Finally, the appeal judge found, at para. 104, that, in light of Dr. Saccomanno's evidence, Ms. Cirillo did not establish that speed differential caused more accidents than speeding.

[142] The evidence shows that forced speed reduction for trucks saves lives. As noted, the appeal judge accepted Dr. Saccomanno's evidence that speed limiters contribute to increased [page112] highway safety (paras. 135, 140). There was undisputed evidence that speed limiters decrease the severity of accidents. There was also evidence that speed limiter reduce the frequency of accidents. The appeal judge accepted this evidence (para. 60).

[143] In light of these findings, the established salutary effects of the speed limiter legislation outweigh its less well-established deleterious effects. There is no evidence that the effects of the speed limiter legislation are "out of all proportion" to its objectives: *Bedford*, at para. 22.

(e) *Conclusion on the s. 1 Charter analysis*

[144] To summarize, I would find, on the evidence, that the purposes of the speed limiter legislation for trucks, being the improvement of highway safety and the reduction of greenhouse gases, are pressing and substantial. The means by which these purposes are advanced are proportionate in that the limiter legislation is rationally connected to the purposes; in terms of the margin of appreciation due to the regulator, the speed limiter legislation minimally impairs the s. 7 right to security of the person of truck drivers; and there is proportionality between the deleterious and salutary effects of the legislation, since the public benefits associated with improved highway safety exceed the detrimental effects on the s. 7 right of truck drivers.

[145] I would uphold the legislation under s. 1 of the *Charter*. The Crown has justified the breach of Mr. Michaud's s. 7 *Charter* right as a "reasonable" limit that is "demonstrably justified in a free and democratic society" under s. 1 of the *Charter*.

While the Supreme Court has not, to date, upheld a law found to violate section 7 under section 1, this possibility remains open.

5.6 *R v Safarzadeh Markhali*

The judgment of the Court was delivered by

R v Safarzadeh Markhali, 2016 SCC 14, [2016] 1 SCR 180

The Chief Justice —

[1] A person charged with a crime is held in custody pending trial unless released on bail. If found guilty at trial, an issue arises: In calculating the sentence, how much credit should the person receive for the time already spent in custody? A credit of one day for every day of pre-sentence custody will almost never put the person on equal footing with offenders released on bail, because the time spent in pre-sentence custody does not count for purposes of parole eligibility, earned remission and statutory release: *R. v. Summers*, 2014 SCC 26, [2014] 1 SCR 575, at para. 26. A one-for-one credit, in other words, results in longer incarceration for offenders detained in pre-sentence custody than for offenders released on bail. On account of this discrepancy and the reality that pre-sentence custody is generally more onerous than post-sentence custody, sentencing courts have historically given "enhanced" credit for time spent in pre-sentence custody.

[2] Parliament revised this regime in 2009. It did not do away with enhanced credit, but it capped that credit at one and a half days for each day of pre-sentence custody. Parliament also — which brings us to the issue in this case — removed a sentencing court's discretion to give any enhanced credit to offenders for pre-sentence custody, if they were denied bail primarily on the basis of their criminal record. The question is whether this law violates the right to liberty guaranteed by s. 7 of the *Canadian Charter of Rights and Freedoms*.

[3] For the reasons that follow, I conclude that the provision infringes s. 7 of the *Charter*, and is not justified under s. 1 of the *Charter*.

…

C. *Is the Infringement Justified Under Section 1 of the Charter?*

[57] It is difficult, but not impossible, to justify a s. 7 violation under s. 1. Laws that deprive individuals of liberty contrary to a principle of fundamental justice are not easily upheld. However, a law may be saved under s. 1 if the state can point to public goods or competing social interests that are themselves protected by the *Charter*: *Carter v. Canada (Attorney General)*, 2015 SCC 5, [2015] 1 SCR 331, at para. 95. Courts may accord deference to legislatures under s. 1 for breaches of s. 7 where, for example, the law represents a "complex regulatory response" to a social problem: *Alberta v. Hutterian Brethren of Wilson Colony*, 2009 SCC 37, [2009] 2 SCR 567, at para. 37.

6 Ongoing section 7 dialogue: commercial sex and medically assisted death

Charter cases are often followed by new legislation aimed at responding to the constitutional infirmities and sometimes pursuing the same objectives as the laws earlier found unconstitutional. The term "*Charter* dialogue" has been used to refer to this form of interaction between the judiciary and the legislature. See Peter W Hogg & Allison A Bushell, "The *Charter* Dialogue between Courts and Legislatures" (1997) 35:1 Osgoode Hall LJ 75 . Parliament responded to the Supreme Court's decisions in *Bedford* and *Carter* with new *Criminal Code* provisions aimed at addressing the constitutional deficiencies identified in those cases. Further constitutional challenges followed enactment of new criminal commodification offences and amendment of medically assisted death provisions. The following materials explain the ongoing *Charter* dialogue in these two policy areas, providing you with an opportunity to apply what you have learned about section 7.

6.1 Commercial exchange of sexual touching

As noted above, the Court in *Bedford* found that three criminal offence provisions relating to adult prostitution in Canada did not accord with principles of fundamental justice and were not demonstrably justified under section 1 of the *Charter*. The Court then declared the provisions to be invalid but suspended the declaration of invalidity for a period of one year to allow Parliament to decide how to respond.

Recall that in *Bedford*, the courts made several pronouncements about what the case before them was NOT about. The Application Judge began her decision as follows:

> It is important to state at the outset what this case is not about: the court has not been called upon to decide whether or not there is a constitutional right to sell sex or to decide which policy model regarding prostitution is better. That is the role of Parliament. Rather, it is this court's task to decide the merits of this particular legal challenge, which is whether certain provisions of the Criminal Code are in violation of the Charter…

The Supreme Court also set out at the beginning of its decision what it would and would not be addressing:

> These appeals and the cross-appeal are not about whether prostitution should be legal or not. They are about whether the laws Parliament has enacted on how prostitution may be carried out pass constitutional muster.

In response to the Supreme Court's decision in *Bedford*, Parliament enacted *An Act to amend the Criminal Code in response to the Supreme Court of Canada decision in Attorney General of Canada v Bedford and to make consequential amendments to other Acts*, short title, *The Protection of Communities and Exploited Persons Act (PCEPA).* Portions of the Preamble to PCEPA are excerpted below. As you read the following materials, think about whether the laws Parliament enacted after the decision in *Bedford* pass constitutional muster. You will want to consider the following questions. What activities are – and are not – captured by the new offence provisions? What are the goals of the new offences? How do those goals compare with the goals of the offence provisions at issue in *Bedford?* How do the answers to these questions impact whether the new laws violate section 7 of the *Charter*? How might the answers to these questions impact whether a violation of section 7 might be demonstrably justified under section 1?

6.1.1 Bill C-36 – The Protection of Communities and Exploited Persons Act – Preamble

> Whereas the Parliament of Canada has grave concerns about the exploitation that is inherent in prostitution and the risks of violence posed to those who engage in it;
>
> Whereas the Parliament of Canada recognizes the social harm caused by the objectification of the human body and the commodification of sexual activity;
>
> Whereas it is important to protect human dignity and the equality of all Canadians by discouraging prostitution, which has a disproportionate impact on women and children;
>
> Whereas it is important to denounce and prohibit the purchase of sexual services because it creates a demand for prostitution;
>
> Whereas it is important to continue to denounce and prohibit the procurement of persons for the purpose of prostitution and the development of economic interests in the exploitation of the prostitution of others as well as the commercialization and institutionalization of prostitution;
>
> Whereas the Parliament of Canada wishes to encourage those who engage in prostitution to report incidents of violence and to leave prostitution;
>
> And whereas the Parliament of Canada is committed to protecting communities from the harms associated with prostitution;

Four new criminal offences were enacted by PCEPA. Notice the exceptions to the material benefit offence. How do these exceptions respond to the Supreme Court's decision in *Bedford*? Do they?

6.1.2 New Offences – commodification of sexual activity

> **Obtaining sexual services for consideration**
>
> **286.1 (1)** Everyone who, in any place, obtains for consideration, or communicates with anyone for the purpose of obtaining for consideration, the sexual services of a person is guilty of [an offence]
>
> **Material benefit from sexual services**
>
> **(1)** Every person who receives a financial or other material benefit, knowing that it is obtained by or derived directly or indirectly from the commission of an offence under subsection 286.1(1), is guilty of [an offence]
>
> **Presumption**

(3) For the purposes of subsections (1) and (2), evidence that a person lives with or is habitually in the company of a person who offers or provides sexual services for consideration is, in the absence of evidence to the contrary, proof that the person received a financial or other material benefit from those services.

Exception

(4) Subject to subsection (5), subsections (1) and (2) do not apply to a person who receives the benefit

(a) in the context of a legitimate living arrangement with the person from whose sexual services the benefit is derived;

(b) as a result of a legal or moral obligation of the person from whose sexual services the benefit is derived;

(c) in consideration for a service or good that they offer, on the same terms and conditions, to the general public; or

(d) in consideration for a service or good that they do not offer to the general public but that they offered or provided to the person from whose sexual services the benefit is derived, if they did not counsel or encourage that person to provide sexual services and the benefit is proportionate to the value of the service or good.

No exception

(5) Subsection (4) does not apply to a person who commits an offence under subsection (1) or (2) if that person

(a) used, threatened to use or attempted to use violence, intimidation or coercion in relation to the person from whose sexual services the benefit is derived;

(b) abused a position of trust, power or authority in relation to the person from whose sexual services the benefit is derived;

(c) provided a drug, alcohol or any other intoxicating substance to the person from whose sexual services the benefit is derived for the purpose of aiding or abetting that person to offer or provide sexual services for consideration;

(d) engaged in conduct, in relation to any person, that would constitute an offence under section 286.3; or

(e) received the benefit in the context of a commercial enterprise that offers sexual services for consideration.

Procuring

286.3 (1) Everyone who procures a person to offer or provide sexual services for consideration or, for the purpose of facilitating an offence under subsection 286.1(1), recruits, holds, conceals or harbours a person who offers or provides sexual services for consideration, or exercises control, direction or influence over the movements of that person, is guilty of an indictable offence and liable to imprisonment for a term of not more than 14 years.

Advertising sexual services

286.4 Everyone who knowingly advertises an offer to provide sexual services for consideration is guilty of [an offence]

PCEPA also included an immunity from prosecution. Why do you think this immunity was included in the legislative scheme? How do you think this may impact the section 7 analysis?

Immunity — material benefit and advertising

286.5 (1) No person shall be prosecuted for

(a) an offence under section 286.2 if the benefit is derived from the provision of their own sexual services; or

(b) an offence under section 286.4 in relation to the advertisement of their own sexual services.

Immunity — aiding, abetting, etc.

(2) No person shall be prosecuted for aiding, abetting, conspiring or attempting to commit an offence under any of sections 286.1 to 286.4 or being an accessory after the fact or counselling a person to be a party to such an offence, if the offence relates to the offering or provision of their own sexual services.

The constitutionality of some of the new offence provisions enacted by PCEPA has been challenged in a series of criminal cases. All these cases involved charges against third parties (drivers or pimps/managers) who argued the Material Benefit Offence, the Procuring Offence, and the Advertising Offence violated sex workers' section 7 rights, relying on a device called a reasonable hypothetical. This allowed the applicants to ask the court to assess constitutionality without regard to the circumstances of the case before them but, rather, based on hypothetical circumstances that are reasonably likely to occur.

Excerpted below are portions of the decision of the Ontario Court of Appeal in *R v NS* upholding the impugned offence provisions as constitutional. *Do you agree with the decision of the Ontario Court of Appeal? Why or why not?* Think about whether and how your personal perspective on this subject may have influenced your view on whether the case is correctly decided.

6.1.3 R v NS

***R v NS*, 2022 ONCA 160**

On appeal from the acquittals entered by Justice Phillip Sutherland of the Superior Court of Justice, on May 17, 2021.

Hoy J.A.: …

[2] The respondent was charged with several offences relating to his sale of the complainant's sexual services. He successfully challenged the constitutionality of three of the new provisions of the *Criminal Code* enacted by Bill C-36 – s. 286.2 (material benefit), s. 286.3 (procuring), and s. 286.4 (advertising) – on the basis that they infringe the rights of a hypothetical person to security of the person and, in some cases, to liberty under s. 7 of the *Canadian Charter of Rights and Freedoms*: *R. v. N.S.*, 2021 ONSC 1628. The application judge found that the infringements were not a justifiable limit under s. 1 and struck down the impugned provisions.

[3] The Crown appeals.

[4] For the following reasons, I would allow the appeal, set aside the respondent's acquittals, and order a new trial.

…

[21] At the time of *Bedford*, it was not illegal to exchange sex for money. The PCEPA changed that. While some advocated for the decriminalization and regulation of the sex trade, Parliament adopted a variant of the so-called "Nordic Model", which had been adopted in several other countries. The Nordic Model views the sex trade as a form of sexual exploitation. It targets those who create the demand for prostitution and those who capitalize on it. Parliament did not accept that persons who provide sexual services for consideration should be viewed as "workers" and that prostitution should be legal sex "work"… It was concerned that prostitution was linked to human trafficking. As the Minister of Justice put it in debate at second reading, "[D]ecriminalization and legalization [of prostitution] lead to increased human trafficking for the purpose of sexual exploitation"

…

V. SECTION 7 AND THE PURPOSE OF THE PCEPA

…

[43] As explained in *Bedford*, a law's compliance with s. 7 of the *Charter* turns on a proper assessment of the law's objective. When an impugned provision engages s. 7, its purpose must be identified to determine whether the impairment of the s. 7 right is in accordance with the principles of fundamental justice. Does it respect the basic values against arbitrariness, overbreadth and gross disproportionality?

…

[59] I would describe the purposes of the PCEPA differently from the application judge. In my view, the PCEPA has three purposes: first, to reduce the demand for prostitution with a view to discouraging entry into it, deterring participation in it and ultimately abolishing it to the greatest extent possible, in order to protect communities, human dignity and equality; second, to prohibit the promotion of the prostitution of others, the development of economic interests in the exploitation of the prostitution of others, and the institutionalization of prostitution through commercial enterprises in order to protect communities, human dignity and equality; and, third, to mitigate some of the dangers associated with the continued, unlawful provision of sexual services for consideration. In particular, Parliament's latter objective is to ensure that, as much as possible, persons who continue to provide their sexual services for consideration, contrary to law, can avail themselves of the safety-enhancing measures identified in *Bedford* and report incidents of violence, without fear of prosecution.

[60] The main difference between the parties is how they would describe the PCEPA's purpose in relation to protection or safety. The Crown argues that the PCEPA permits some measures to enhance safety as an "ancillary objective". The respondent and the interveners argue that the application judge correctly described one of the purposes of the PCEPA as to protect sex workers from violence, abuse and exploitation to protect the health and safety of sex workers. As is apparent from my articulation of the purposes of the PCEPA, I disagree with that latter characterization.

[61] There is no doubt that Parliament was concerned about the safety of those who engage in the provision of sexual services for consideration. There was express discussion about this issue during the parliamentary debates. The short title of the PCEPA (the *Protection of Communities and Exploited Persons Act*), the recognition in the preamble of "the risks of violence posed to those who engage in [prostitution]", the statements in the Technical Paper and the fact that the PCEPA permits those who provide their sexual services for consideration to employ the safety measures identified in *Bedford* further indicate that the safety of those who provide sexual services for consideration was a concern of Parliament.

[62] The PCEPA, however, was an explicit response to *Bedford*. While Parliament addressed the specific safety issues which were the focus in *Bedford* – working from a fixed indoor location, hiring persons who may enhance safety, and the ability to negotiate conditions for the sale of sexual services in a public place – it also chose to criminalize prostitution by prohibiting the demand and reinforcing the prohibition on the exploitation of others by third parties. As noted above, Minister MacKay was clear that Parliament sought to "create the climate in which prostitutes can take certain specific measures, steps to further protect themselves or insulate themselves from violence." He was also clear, however, that the best way to protect them was to reduce prostitution itself. This is reflected in the scheme of the PCEPA as a whole.

[63] It is for these reasons that I characterize the safety-related purpose of the PCEPA (beyond the protection of communities, human dignity and equality, through its first and second purposes) as being limited to ensuring that persons who continue to provide their sexual services for consideration, contrary to law, can avail themselves of the safety-enhancing measures identified in *Bedford* and report incidents of violence.

The Ontario Court of Appeal thereafter found: the Material Benefit Offence was not engaged because the hypothetical facts fell within the exceptions in section 286.2(4); the Procuring Offence violated the liberty of the hypothetical person who proposed that her young homeless friend engage in prostitution (because of the possibility of imprisonment) but accorded with principles of fundamental justice; and the Advertising Offence did not violate any of the rights protected by section 7.

The Supreme Court of Canada recently upheld the Material Benefit Offence and the Procuring Offence in R v Kloubakov, clarifying the objectives of PCEPA as follows:

[66] We would reformulate the Alberta and Ontario courts of appeal's statement of the purposes of the PCEPA for two reasons. First, as this Court recently emphasized in R. v. Ndhlovu, 2022 SCC 38, "[t]he law's purpose should be succinct, precise, and characterized at the appropriate level of generality, which 'resides between the statement of an "animating social value" — which is too general — and a narrow articulation' that amounts to a virtual repetition of the challenged provision, divorced from its context" (para. 62, quoting R. v. Safarzadeh-Markhali, 2016 SCC 14, [2016] 1 SCR 180, at para. 27, quoting Moriarity, at para. 28). With respect, the three purposes articulated by the Alberta and Ontario courts of appeal are not sufficiently succinct or precise and involve a summary of the animating social values of the PCEPA.

[67] Second, as this Court also emphasized in Ndhlovu, "[a] law's purpose is distinct from the means used to achieve that purpose" (para. 63, citing Safarzadeh-Markhali, at para. 26, and Moriarity, at para. 27). The three purposes identified by the Alberta and Ontario courts of appeal do not reflect this distinction and combine purposes and means.

[68] In order to frame the purposes of the PCEPA more succinctly and to maintain the essential distinction between purpose and means, we would identify the PCEPA as having two, rather than three, purposes: (1) to reduce the demand for sex work; and (2) to protect sex workers from the risks of violence, abuse, and exploitation associated with the sex work industry. The second purpose has two aspects: (a) to protect sex workers from third parties who commercialize the sale of sexual services; and (b) to allow sex workers to protect themselves from the dangers posed by purchasers of sexual services.

All the new offences enacted by PCEPA were challenged together in a case outside the criminal context. The offences were upheld as constitutional by the Ontario Superior Court of Justice in Canadian Alliance for Sex Work Law Reform v. Attorney General, 2023 ONSC 5197 (CanLII). That decision has been appealed.

Those interested in this ongoing litigation and legal issues associated with it may want to consider the following resources: Debra M Haak, "The Initial Test of Constitutional Validity: Identifying the Legislative Objectives of Canada's New Prostitution Laws" (2017) 50:3 UBC Law Review 657; Debra M Haak, "Re(de)fining Prostitution and Sex Work: Conceptual Clarity for Legal Thinking" (2019) 40 Windsor Review of Legal & Social Issues 67; Debra M Haak, "The Good Governance of Empirical Evidence about Prostitution, Sex Work, and Sex Trafficking in Constitutional Litigation" (2021) 46:2 Queen's Law Journal 187; Debra M Haak, "The Case of the Reasonable Hypothetical Sex Worker" (2022) 60:1 Alberta Law Review 205; Debra M Haak, "Revisiting the Analytical Distinction Between Section 7 and Section 1 of the *Charter*: Legislative Objectives, Policy Goals, and Public Interests" (2023) 112 Supreme Court Law Review (2d) 115; and Debra M Haak, "Two Different Conceptions of Equality: Assessing the Constitutionality of Commercial Sex Laws in Canada" (2024) 2 Supreme Court Law Review (3d) 115.

6.2 Medical assistance in dying

You encountered the subject of medically assisted death in the *Rodriguez* and *Carter* cases considered earlier in this chapter. After the Supreme Court's decision in *Carter*, Parliament amended the *Criminal Code* to legally permit people with a grievous and irremediable medical condition whose natural death was reasonably foreseeable to access medical assistance in dying. Soon after, the first constitutional challenge to the new laws was heard in Quebec. Here you see some of the reasons of the Quebec Superior Court (in English translation). Consider whether you agree with this decision.

6.2.1 Truchon c Procureur general du Canada

***Truchon c Procureur general du Canada*, 2019 QCCS 3792**

BAUDOUIN, J.S.C.

[1] Is it permissible, in the absence of coercion or constraint, for a capable, adult person who is seriously ill with no chance of improvement, in an advanced state of irreversible decline in capability and enduring constant and intolerable suffering to receive medical assistance in dying even though he or she is not approaching death?

[2] Medical assistance in dying, legalized in the wake of the 2015 Supreme Court judgment in *Carter*, is strictly circumscribed in this country. To receive such assistance, a person must be of full age and eligible for publicly-funded healthcare. He or she must also be capable of making decisions with respect to his or her health, of making a voluntarily request, and of providing free and informed consent. There are also requirements relating to the person's medical condition.

[3] In Canada, the *Criminal Code* provides that a person must have a grievous and irremediable medical condition fulfilling the following criteria, all of which must be met: (a) they have a serious and incurable illness, disease or disability; (b) their medical condition is characterized by an advanced state of irreversible decline in capability; (c) they are subject to enduring physical or psychological suffering that is intolerable to them and that cannot be relieved under conditions they consider acceptable; and (d) their natural death has become reasonably foreseeable.

…

[5] The applicants, Mr. Jean Truchon and Ms. Nicole Gladu, who have been declared ineligible for medical assistance in dying, challenge the constitutional validity of the requirements in s. 241.2(2)(d) of the *Criminal Code* and subsection 3 of the first paragraph of s. 26 of the *Act respecting end-of-life care*, which respectively require that their natural death be reasonably foreseeable or that they be at the end of life in order to obtain such assistance.

[6] They argue that these requirements infringe upon their right to life, liberty and security of the person and their right to equality, which are guaranteed by ss. 7 and 15 of the *Canadian Charter of Rights and Freedoms*.

[7] In their view, these requirements also violate the principles set out in *Carter*, with the consequence of removing from them their right to obtain medical assistance in dying, which this decision had, in fact, granted them.

…

[9] The Attorney General of Canada argues that Parliament's response to *Carter*, which requires a reasonably foreseeable natural death, makes it possible to achieve the legislative objectives at issue. More specifically, he argues that permitting medical assistance in dying only for people whose deaths are reasonably foreseeable strikes a reasonable and appropriate balance between, on the one hand, the autonomy of persons who seek medical assistance in dying and, on the other, the interests of society and of vulnerable persons. Thus, this requirement appears to be consistent not only with the *Charter* but also with the spirit of the judgment in *Carter*.

…

6.2.2 Canada: legislative history of Bill C-14

[74] The judgment in *Carter*, rendered on February 6, 2015, shook up the country's established framework by decriminalizing assisted suicide under certain conditions. By declaring ss. 241(*b*) and 14 of the *Criminal Code* unconstitutional, the Supreme Court gave Parliament the option of establishing a legislative regime that complied with the principles in its judgment and ordered the suspension of the declaration of constitutional invalidity for one year.

[75] The government was granted an additional suspension period to complete its task.

…

[100] In April 2016, the government introduced Bill C-14 in the House of Commons. This came after several months of focused work that involved analyses of *Carter*, of the reports of the committees referred to above, of the consultations led by provincial physicians' associations and other medical associations, as well as of the substance of other legislative regimes to regulate medical assistance in dying, including the approach favoured by the Quebec legislator that would serve as a source of inspiration for Parliament.

[101] During the second reading of the Bill, the Minister of Justice described the government's process:

From the start, we have known from the Supreme Court of Canada's unanimous *Carter* decision, that it is not about whether or not to have medical assistance in dying; it is about how we will do it....

With all of this in mind, and in appreciating the limited time frame we have had to respond to the *Carter* decision, our government has chosen an approach that respects both the charter and the needs and values of Canadians.

First, it would permit physicians and nurse practitioners to provide medical assistance in dying, so that patients who are suffering intolerably from a serious medical condition, and whose death is reasonably foreseeable given all of their medical circumstances, can have a peaceful death and not be forced to endure slow and painful suffering.

> Second, it would commit to study the other situations in which a request for medical assistance in dying might be made; situations that were not in evidence before the court in the *Carter* litigation and were beyond the scope of its ruling.
>
> This evidenced-based approach will allow us to respect the autonomy and the charter rights of Canadians while ensuring robust protections for vulnerable persons. It is the right approach for our country.
>
> …
>
> [119] …[T]he House of Commons passed Bill C-14, which received royal assent and came into force on June 17, 2016. As a result, several provisions of the *Criminal Code* were amended by the addition of ss. 241.1 to 241.4 respecting medical assistance in dying. Sections 241.2(1) and (2) more specifically, provide the following:
>
> Eligibility for medical assistance in dying
>
> **241.2 (1)** A person may receive medical assistance in dying only if they meet all of the following criteria:
>
> **(a)** they are eligible — or, but for any applicable minimum period of residence or waiting period, would be eligible — for health services funded by a government in Canada;
>
> **(b)** they are at least 18 years of age and capable of making decisions with respect to their health;
>
> **(c)** they have a grievous and irremediable medical condition;
>
> **(d)** they have made a voluntary request for medical assistance in dying
>
> that, in particular, was not made as a result of external pressure; and
>
> **(e)** they give informed consent to receive medical assistance in dying after having been informed of the means that are available to relieve their suffering, including palliative care.
>
> Grievous and irremediable medical condition
>
> **(2)** A person has a grievous and irremediable medical condition only if they meet all of the following criteria:
>
> **(a)** they have a serious and incurable illness, disease or disability;
>
> **(b)** they are in an advanced state of irreversible decline in capability;
>
> **(c)** that illness, disease or disability or that state of decline causes them enduring physical or psychological suffering that is intolerable to them and that cannot be relieved under conditions that they consider acceptable; and
>
> **(d)** their natural death has become reasonably foreseeable, taking into account all of their medical circumstances, without a prognosis necessarily having been made as to the specific length of time that they have remaining.
>
> …
>
> **ANALYSIS**
>
> **Has *Carter* Created a Constitutional Right to Medical Assistance in Dying?**
>
> [467] In 2015, the Supreme Court's decision in *Carter* resolved the broad legal and social debate surrounding the legalization of a certain form of assisted suicide or euthanasia in Canada, which began over twenty years earlier. It laid the foundation for a new permissive regime that includes important guarantees and safeguards.
>
> [468] Previously, a highly divided Supreme Court in *Rodriguez* had upheld the general prohibition against assisted suicide in Canada. However, despite that decision, the country continued to debate the legalization of a certain form of euthanasia, and Canadian society's social and ethical evolution has since been marked by an increasing willingness to revisit our relationship with death and end-of-life care.
>
> [469] In 1983, well before *Rodriguez*, the Canadian Law Reform Commission had already noted that "the legal profession, the public and those working in the health professions are in favour of legal reforms or at least clarifications in the area of euthanasia, aiding suicide and cessation of treatment". Between 1991 and 2010, several draft bills and studies on the subject were debated in the House of Commons. The Senate submitted a report in 1995 on assisted suicide and euthanasia. In 2011, the Royal Society of Canada also published its report in favour of a certain degree of openness. In 2012, in Quebec, the Select Committee on Dying with Dignity tabled its report in the National Assembly, which served as the springboard for the enactment of the *Act respecting end-of- life care* that, for the first time in the country, provided for medical aid in dying as end-of-life care.
>
> [470] Meanwhile, society condemned a form of medical practice expressing therapeutic obstinacy and was aware of developments in foreign jurisdictions that had decided to allow euthanasia.
>
> [471] This historical context led to *Carter*, when, in 2012, the Honourable Lynn Smith of the Supreme Court of British Columbia heard a constitutional challenge to the *Criminal Code* provisions prohibiting assisted dying.
>
> [472] Of course, many remain opposed to any form of opening to or legalization of medical assistance in dying, either on cultural or religious grounds, or because they fear a change in the social paradigm of our relationship with death and, in particular, major shifts to the detriment of the most vulnerable persons in our society.
>
> [473] Also, during these same years, the case law on the principles of self- determination, autonomy and human dignity was evolving through a number of major Supreme Court decisions that attest to the rising importance of these values in our law. This trend had already been identified in *Jones*, *Morgentaler* and *Rodriguez*, but was subsequently consolidated in *Blencoe*, *Chaoulli* and *PHS Community Services Society*.
>
> [474] Thus, more than two decades after *Rodriguez*, the Supreme Court in *Carter* agreed to review the issue once again and analyze the rights enshrined in the Charter in light of social progress and with the goal of striking a balance between values that at first glance appear to be competing, namely, the autonomy, liberty and dignity of adults who wish to end their lives due to a grievous and irreversible medical condition, on the one hand, and the protection of the lives of vulnerable persons, on the other.
>
> [475] In this sense, *Carter* reaffirms the scope of the individual rights of life, liberty and security of the person and lays the foundation for the legalization of medical assistance in dying throughout Canada. It is, therefore, impossible to ignore it. As such, the teachings of the Supreme Court will guide the Court here.

The parties disagreed, however, on what *Carter* required. The applicants argued that the Supreme Court's ruling in *Carter* did not require that a person's natural death be reasonably foreseeable. The Attorney General argued that the reasonable foreseeability of natural death and end-of-life requirements were entirely consistent with the spirit of *Carter* where the factual circumstances related to Gloria Taylor, who was in the terminal stage of a neurodegenerative disease at the time she joined the litigation in that case. *What do you think Carter requires?*

The Quebec Superior Court found as follows:

> [532] For the reasons previously explained, the Court concludes that the Supreme Court's statements are general in nature and are not limited to people already in the terminal stage of their lives. Instead, they are intended to recognize the decision-making autonomy and the right of every person to make medical decisions affecting his or her own body, regardless of the timing and potential consequences of those decisions.
>
> [533] In this case, the applicants' position must be accepted. Mr. Truchon and Ms. Gladu are prevented from making this fundamental decision and from exercising this highly private decision-making autonomy that reflects their value and dignity as human beings. They do not control their physical integrity because the state, through the reasonably foreseeable natural death requirement, prevents them from accessing medical assistance in dying and, above all, forces them to endure painful physical and psychological suffering.
>
> [534] Therefore, the state, by enacting the reasonably foreseeable natural death requirement, directly interferes with their physical integrity, causes them physical and psychological pain and deprives them of the opportunity to make a fundamental decision that respects their personal dignity and integrity.
>
> [535] The Court has no hesitation in concluding that the reasonably foreseeable natural death requirement infringes Mr. Truchon and Ms. Gladu's rights to liberty and security, protected by section 7 of the *Charter*.
>
> …
>
> **Principles of Fundamental Justice**
>
> …
>
> [556] After having analyzed the new legislative regime, the challenged statutory provision, the parliamentary debates and the parties' submissions, the Court finds that the objective of s. 241.2(2)(*d*) Cr. C. is to protect vulnerable persons who might be induced to end their lives in a moment of weakness, by preventing errors when assessing requests for medical assistance in dying.
>
> [557] The impugned infringing measure lies in the exclusion of persons with a grievous and irremediable medical condition from eligibility for such assistance due to the fact that their natural death is not reasonably foreseeable.
>
> …
>
> [563] In practical terms, Parliament sought to limit potential errors that could be committed when assessing people's eligibility and their consequences by imposing a temporal restriction on access to medical assistance in dying. As many of the Attorney General's experts observed, providing medical assistance in dying to a person who will die in the coming days or weeks in any event has less of an impact than to a person who could still live for many years.
>
> …
>
> [576] …the object of the legislation is precisely to allow people who meet the state-imposed conditions to request medical assistance in dying. It is admitted that the applicants, having been examined and assessed by several experts, meet every legal requirement except for the one regarding end of life. There is no question of a potential error regarding their eligibility or of protecting them as vulnerable persons due to their medical condition.
>
> [577] The Court concludes that the reasonably foreseeable natural death requirement is overbroad as regards the applicants.
>
> …
>
> [582] The Court… concludes that the provision's prejudicial effects on the applicants' life, liberty and security are very serious and therefore grossly disproportionate to its object. It deprives the applicants of their fundamental choice regarding appropriate care, of their self-determination and of their right to decide the time of their death. Furthermore, it forces them to continue living while experiencing intolerable and pointless suffering, given the irremediable nature of their afflictions.
>
> [583] This requirement therefore creates an actual state-imposed obligation to live. In the Court's opinion, this is precisely what the Supreme Court wished to avoid for some of our fellow citizens.
>
> [584] The basis of *Carter* is to allow competent individuals to end their intolerable suffering when they have a serious and incurable illness with no hope of improvement and are powerless in the face of an advanced state of irreversible decline in capability. The principle stated by the Supreme Court is not to require that people continue to live against their will until, after a given period, they naturally reach the stage of imminent death where they can request medical assistance in dying, after having suffered pointlessly and at the cost of the total denial of their dignity.
>
> [585] The Court, therefore, concludes that the impugned requirement is disproportionate to the measure's object.
>
> …
>
> [587] In sum, the Court concludes that the reasonably foreseeable natural death requirement is overbroad and disproportionate, such that it is inconsistent with the principles of fundamental justice and infringes Mr. Truchon and Ms. Gladu's rights protected by section 7 of the *Charter*.

The Attorney General's section 1 argument was not successful, and Canada did not appeal the decision in Truchon. *Do you think the decision in Truchon should have been appealed? Do you think the decision is correct?*

In 2021, the *Criminal Code* was again amended to legally permit people whose natural death is not reasonably foreseeable but who are suffering intolerably from an irremediable medical condition or disability and who are in an advanced state of decline to access medical assistance in dying. In 2027, this amendment is scheduled to extend to people whose sole underlying medical condition is a mental health condition.

Concerns have been raised about the constitutionality of the current legislative regime. Here you see how constitutional challenges have been framed in two cases commenced in late 2024. *Do you think these challenges will be successful?*

6.2.3 Two Pending Claims

Notice of Application – *Claire Elyse Brosseau, John Scully and Dying with Dignity Canada v AG Canada* (August 19, 2024)

> 1. The Applicants, Claire Elyse Brosseau, John Scully, and Dying With Dignity Canada, make an application for the following relief:
>
> (a) a declaration that the exclusion in s. 241.2(2.1) of the Criminal Code, R.S.C. 1985, c. C.46, as amended…of individuals with the sole underlying medical condition of mental illness…from eligibility for medical assistance in dying infringes ss. 7 and 15 of the Canadian Charter of Rights and Freedoms ("Charter') and that these violations cannot be justified under s. 1 of the Charter…
>
> 2. The Applicant, Claire Elyse Brosseau ("Claire"), is an individual residing in Toronto. Claire has been diagnosed with bipolar I disorder. Claire also experiences disordered eating, and has a substance use disorder in remission, and a significant trauma history.

3. Claire's mental illness is grievous, irremediable, and her sole underlying medical condition for the purposes of MAID. Claire has been independently assessed as eligible for MAID, but for the Mental Illness Exclusion.

4. The Applicant, John Scully ("John"), is an individual residing in Toronto. John has been diagnosed with severe chronic post-traumatic stress disorder and major depressive disorder.

5. John's mental illnesses are grievous, irremediable, and his sole underlying medical conditions for the purposes of MAID. John has been independently assessed as eligible for MAID, but for the Mental Illness Exclusion.

Fresh as Amended Notice of Application – *KC, Kathrin Mentler, Inclusion Canada, Indigenous Disability Canada/The British Columbia Aboriginal Network on Disability Society, Council of Canadians with Disabilities and Disabled Women's Network of Canada v AG Canada* (September 25, 2024)

1. The Applicants make application for:

(a) a declaration that section 241.2(3.1) of the Criminal Code (R.S.C., 1985, c. C-46) ("Criminal Code") as amended and/or enacted by Bill C-7 An act to amend the Criminal Code (medical assistance in dying), which received Royal Assent on March 17, 2021 and is now law ("Bill C-7"), violates section 7 and/or section 15 of the Canadian Charter of Rights and Freedoms…;

(b) a declaration that sections 227, 241.2(2), 241.2(5.1)(b), 241.2(6), 241.3 and 245(2) of the Criminal Code violate section 7 and/or section 15(1) of the Charter, to the extent that they apply to any provision of medical assistance in dying… under section 241.2 of the Criminal Code to persons whose natural death is not reasonably foreseeable;

…

Bill C-7 Repeals the Natural Foreseeability of Death Requirement

19. In 2019, the Quebec Superior Court in Truchon…held that the MAiD regime created by Bill C-14 violated sections 7 and 15 of the Charter and Quebec's Act Respecting End-of-Life Care, CQLR c S-32.0001 because the reasonable foreseeability of natural death requirement denied access to MAiD to disabled persons who were suffering intolerably but were not at the end of their lives.

20. In 2021, in response to Truchon, Parliament enacted Bill C-7 which amended the MAiD regime provided for by Bill C-14.

21. Critically, Bill C-7 removed the criterion of reasonable foreseeability of natural death for a grievous and irremediable medical condition (previously, section 241.2(2)(d) of the Criminal Code). As a result, the MAiD regime, as amended by Bill C-7, is no longer restricted to persons at the end of their natural lives ("MAiD Track 2"). The exemptions carved out by MAiD Track 2 are based on a distinction between those who are disabled and those who are not. In contrast, the distinction between those who are eligible for MAiD Track 1, is based on a distinction between those who are dying (their natural death is reasonably foreseeable) and those who are not dying.

22. Bill C-7 decriminalized murder, aiding suicide and administering a noxious thing for many persons with disabilities if performed according to the criteria of the Criminal Code.

23. Bill C-7 only created exemptions for aiding suicide, administering a noxious thing and murder for people who are disabled. Persons who are experiencing intolerable suffering but who are not disabled, are not eligible for MAiD Track 2. MAiD Track 2 is exclusively offered to persons with disabilities.

24. Bill C-7's MAiD Track 2 increases the risk that persons with a disability will be induced to end their lives as a response to suffering. Medical and nurse practitioners are presenting the ending-of-life as a form of medical treatment for people who are disabled. Bill C-7 does not require that treatment options be exhausted before accessing MAiD, which makes choosing death easier. MAiD is portrayed as a no-fail, painless way to alleviate suffering which may incentivize death over other options. Ultimately, this increases the risk that people with disabilities will choose death rather than other solutions for their intolerable suffering. Death should not be a solution for disabled people who experience intolerable suffering but are otherwise not at the end of their lives.

25. By transforming death into a form of medical treatment for persons with disabilities, Parliament has legitimized the idea that death is an appropriate response to feeling like, or being perceived to be, a burden on the health-care system or one's family, and that it is an appropriate response to other suffering reported by persons with disabilities as motivating their wish to die, including loss of dignity or loss of the ability for meaningful activities or activities of daily living.

26. People with disabilities often deal with socioeconomic disadvantage, inadequate housing, institutionalization, social isolation, and other forms of marginalization. Understandably, these problems can lead to intolerable suffering for persons with disabilities, just as they can lead to intolerable suffering for people without disabilities. The difference is that persons with grievous and irremediable medical conditions may now access MAiD Track 2 as a solution to those problems. People without a disability may not choose death. Death as a valid and reasonable solution to suffering is uniquely validated and normalized for persons with disabilities (and only persons with disabilities).

27. Bill C-7 fundamentally changes the relationship between a patient with disabilities, and their medical or nurse practitioners and other care providers. It can undermine the trust a person should have in their service providers. Death is presented as a form of medical treatment but only because they have a disability. Individuals with disabilities have been and continue to be discouraged from accessing health-care services or from disclosing suffering for fear that their provider will recommend death as a solution. Further, a health-care provider communicating to a person with a disability that the person could or should consider MAiD, and that death is an option for their suffering, can shape that person's perceptions of their value, dignity and the degree to which they are, or are perceived to be, a burden. An offer of MAiD also communicates that their circumstances are hopeless and that the health care and other systems do not value their lives, and cannot be relied upon to save or support them. MAiD Track 2 thus narrows the range of options that are available, or that persons with disabilities may perceive as available, for dealing with suffering they are finding intolerable.

28. Bill C-7 has led and/or will lead to a discrepancy in the level of care offered to a person with a disability, and one without. Individuals without a disability will be offered certain supports to treat, or otherwise manage, their condition. By contrast, individuals with a disability will also be offered the chance to die; this may lead to a medical or nurse practitioner not pursuing all possible supports or the person with a disability dying by MAiD because MAiD is easier, more accessible, more available, or more affordable.

7 Contemporary topics: economic rights and the environment

The scope of the rights guaranteed by section 7 continues to evolve. The recognition of new principles of fundamental justice remains possible. Some of the contemporary issues pressing the boundaries of section 7 include economic rights and environmental concerns. The following materials are concerned with the application of section 7 in these contemporary contexts.

7.1 Economic rights

The Supreme Court has left unsettled the extent to which section 7 of the *Charter* operates outside the context of the administration of justice. Similarly, there remain questions as to whether section 7 may extend to economic rights (at least those which implicate a basic level of human security). There is similar uncertainty as to whether section 7 may impose positive rights on government actors (in the absence of a pre-existing legal obligation). These issues continue to arise in the context of claims involving economic and environmental rights.

As you read the following cases, consider: *is the approach of the courts in these cases consistent with the decisions in Bedford and Carter on questions of causation or the meaning of the protected interests? Should the Supreme Court revisit the extent to which section 7 protects a right to basic subsistence in light of more recent developments in section 7 jurisprudence?*

7.1.1 Irwin Toy Ltd v Quebec (Attorney General)

Irwin Toy Ltd v Quebec (Attorney General), 1989 CanLII 87 (SCC), **[1989] 1 SCR 927**

> What is immediately striking about [section 7] is the inclusion of "security of the person" as opposed to "property". This stands in contrast to the classic liberal formulation, adopted, for example, in the Fifth and Fourteenth Amendments in the American Bill of Rights, which provide that no person shall be deprived "of life, liberty or property, without due process of law". The intentional exclusion of property from s. 7, and the substitution therefor of "security of the person" has, in our estimation, a dual effect. First, it leads to a general inference that economic rights as generally encompassed by the term "property" are not within the perimeters of the s. 7 guarantee. This is not to declare, however, that no right with an economic component can fall within "security of the person". Lower courts have found that the rubric of "economic rights" embraces a broad spectrum of interests, ranging from such rights, included in various international covenants, as rights to social security, equal pay for equal work, adequate food, clothing and shelter, to traditional property -- contract rights. To exclude all of these at this early moment in the history of *Charter* interpretation seems to us to be precipitous. We do not, at this moment, choose to pronounce upon whether those economic rights fundamental to human life or survival are to be treated as though they are of the same ilk as corporate-commercial economic rights. In so stating, we find the second effect of the inclusion of "security of the person" to be that a corporation's economic rights find no constitutional protection in that section.

7.1.2 Gosselin v Quebec (Attorney General)

***Gosselin v Quebec (Attorney General)*, 2002 SCC 84; [2002] 4 SCR 429**

> The judgment of McLachlin C.J. and Gonthier, Iacobucci, Major and Binnie JJ. was delivered by
>
> The Chief Justice —
>
> I. Introduction
>
> 1 Louise Gosselin was born in 1959. She has led a difficult life, complicated by a struggle with psychological problems and drug and alcohol addictions. From time to time she has tried to work, attempting jobs such as cook, waitress, salesperson, and nurse's assistant, among many. But work would wear her down or cause her stress, and she would quit. For most of her adult life, Ms. Gosselin has received social assistance.
>
> 2 In 1984, the Quebec government altered its existing social assistance scheme in an effort to encourage young people to get job training and join the labour force. Under the scheme, which has since been repealed, the base amount payable to welfare recipients under 30 was lower than the base amount payable to those 30 and over. The new feature was that, to receive an amount comparable to that received by older people, recipients under 30 had to participate in a designated work activity or education program.
>
> 3 Ms. Gosselin contends that the lower base amount payable to people under 30 violates: … (2) s. 7 of the *Canadian Charter*, which prevents the government from depriving individuals of liberty and security except in accordance with the principles of fundamental justice; …
>
> 4 On this basis, Ms. Gosselin asks this Court to order the Quebec government to pay the difference between the lower and the higher base amounts to all the people who: (1) lived in Quebec and were between the ages of 18 and 30 at any time from 1985 to 1989; (2) received the lower base amount payable to those under 30; and (3) did not participate in the government programs, for whatever reason. On her submissions, this would mean ordering the government to pay almost $389 million in benefits plus the interest accrued since 1985. Ms. Gosselin claims this remedy on behalf of over 75 000 unnamed class members, none of whom came forward in support of her claim.
>
> 5 In my view, the evidence fails to support Ms. Gosselin's claim on any of the asserted grounds. Accordingly, I would dismiss the appeal.
>
> II. Facts and Decisions
>
> 6 In 1984, in the face of alarming and growing unemployment among young adults, the Quebec legislature made substantial amendments to the *Social Aid Act*, R.S.Q., c. A-16, creating a new scheme — the scheme at issue in this litigation. Section 29(*a*) of the *Regulation respecting social aid*, R.R.Q. 1981, c. A-16, r. 1, made under the Act continued to cap the base amount of welfare payable to those under 30 at roughly one third of the base amount payable to those 30 and over. However, the 1984 scheme for the first time made it possible for people under 30 to increase their welfare payments, over and above the basic entitlement, to the same (or nearly the same) level as those in the 30-and-over group.
>
> 7 The new scheme was based on the philosophy that the most effective way to encourage and enable young people to join the workforce was to make increased benefits conditional on participation in one of three programs: On-the-job Training, Community Work, or Remedial Education. Participating in either On-the-job Training or Community Work boosted the welfare payment to a person under 30 up to the base amount for those 30 and over; participating in Remedial Education brought an under-30 within $100 of the 30-and-over base amount. The 30-and-over base amount still represented only 55 percent of the poverty level for a single person. For example, in 1987, non-participating under-30s were entitled to $170 per month, compared to $466 per month for welfare recipients 30 and over. According to Statistics Canada, the poverty level for a single person living in a large metropolitan area was $914 per month in 1987. Long-term dependence on welfare was neither socially desirable nor, realistically speaking, economically feasible. The Quebec scheme was designed to encourage under-30s to get training or basic education, helping them to find permanent employment and avoid developing a habit of relying on social assistance during these formative years.
>
> 8 The government initially made available 30 000 places in the three training programs. The record indicates that the percentage of eligible under-30s who actually participated in the programs averaged around one-third, but it does not explain this participation rate. Although Ms. Gosselin filed a class action on behalf of over 75 000 individuals, she provided no direct evidence of any other young person's experience with the government programs. She alone provided first-hand evidence and testimony as a class member in this case, and she in fact participated in each of the Community Work, Remedial Education and On-the-job Training Programs at various times. She ended up dropping out of virtually every program she started, apparently because of her own personal problems and personality traits. The testimony from one social worker, particularly as his clinic was attached to a psychiatric hospital and therefore received a disproportionate number of welfare recipients who also had serious psychological problems, does not give us a better or more accurate picture of the situation of the other class members, or of the relationship between Ms. Gosselin's personal difficulties and the structure of the welfare program.
>
> 9 Ms. Gosselin challenged the 1984 social assistance scheme on behalf of all welfare recipients under 30 subject to the differential regime from 1985 to 1989 (when, for reasons unrelated to this litigation, it was replaced by legislation that does not make age-based distinctions). …

…

B. *Does the Social Assistance Scheme Violate Section 7 of the Canadian Charter?*

…

76 The first inquiry is whether the right here contended for — the right to a level of social assistance sufficient to meet basic needs — falls within s. 7. This requires us to consider the content of the right to life, liberty and security of the person, and the nature of the interests protected by s. 7.

77 As emphasized by my colleague Bastarache J., the dominant strand of jurisprudence on s. 7 sees its purpose as guarding against certain kinds of deprivation of life, liberty and security of the person, namely, those "that occur as a result of an individual's interaction with the justice system and its administration": *New Brunswick (Minister of Health and Community Services) v. G. (J.)*, 1999 CanLII 653 (SCC), [1999] 3 SCR 46, at para. 65. "[T]he justice system and its administration" refers to "the state's conduct in the course of enforcing and securing compliance with the law" (*G. (J.)*, at para. 65). This view limits the potential scope of "life, liberty and security of the person" by asking whom or what s. 7 protects against. Under this narrow interpretation, s. 7 does not protect against all measures that might in some way impinge on life, liberty or security, but only against those that can be attributed to state action implicating the administration of justice: see *Reference re ss. 193 and 195.1(1)(c) of the Criminal Code (Man.)*, 1990 CanLII 105 (SCC), [1990] 1 SCR 1123 (the "Prostitution Reference"), at pp. 1173-74, per Lamer J. (as he then was), writing for himself; *B. (R.) v. Children's Aid Society of Metropolitan Toronto*, 1995 CanLII 115 (SCC), [1995] 1 SCR 315, at paras. 21-23, per Lamer C.J., again writing for himself alone; and *G. (J.)*, *supra*, for the majority. This approach was affirmed in *Blencoe v. British Columbia (Human Rights Commission)*, [2000] 2 SCR 307, 2000 SCC 44, per Bastarache J. for the majority.

78 This Court has indicated in its s. 7 decisions that the administration of justice does not refer exclusively to processes operating in the criminal law, as Lamer C.J. observed in *G. (J.)*, *supra*. Rather, our decisions recognize that the administration of justice can be implicated in a variety of circumstances: see *Blencoe*, *supra* (human rights process); *B. (R.)*, *supra* (parental rights in relation to state-imposed medical treatment); *G. (J.)*, *supra* (parental rights in the custody process); *Winnipeg Child and Family Services (Northwest Area) v. G. (D.F.)*, 1997 CanLII 336 (SCC), [1997] 3 SCR 925 (liberty to refuse state-imposed addiction treatment). Bastarache J. argues that s. 7 applies only in an adjudicative context. With respect, I believe that this conclusion may be premature. An adjudicative context might be sufficient, but we have not yet determined that one is necessary in order for s. 7 to be implicated.

79 In my view, it is both unnecessary and undesirable to attempt to state an exhaustive definition of the administration of justice at this stage, delimiting all circumstances in which the administration of justice might conceivably be implicated. The meaning of the administration of justice, and more broadly the meaning of s. 7, should be allowed to develop incrementally, as heretofore unforeseen issues arise for consideration. The issue here is not whether the administration of justice is implicated — plainly it is not — but whether the Court ought to apply s. 7 despite this fact.

80 Can s. 7 apply to protect rights or interests wholly unconnected to the administration of justice? The question remains unanswered. In R. *v. Morgentaler*, 1988 CanLII 90 (SCC), [1988] 1 SCR 30, at p. 56, Dickson C.J., for himself and Lamer J. entertained (without deciding on) the possibility that the right to security of the person extends "to protect either interests central to personal autonomy, such as a right to privacy". Similarly, in *Irwin Toy Ltd. v. Quebec (Attorney General)*, 1989 CanLII 87 (SCC), [1989] 1 SCR 927, at p. 1003, Dickson C.J., for the majority, left open the question of whether s. 7 could operate to protect "economic rights fundamental to human . . . survival". Some cases, while on their facts involving the administration of justice, have described the rights protected by s. 7 without explicitly linking them to the administration of justice: *B.(R.)*, *supra*; *G. (D.F.)*, *supra*.

81 Even if s. 7 could be read to encompass economic rights, a further hurdle emerges. Section 7 speaks of the right not to be deprived of life, liberty and security of the person, except in accordance with the principles of fundamental justice. Nothing in the jurisprudence thus far suggests that s. 7 places a positive obligation on the state to ensure that each person enjoys life, liberty or security of the person. Rather, s. 7 has been interpreted as restricting the state's ability to deprive people of these. Such a deprivation does not exist in the case at bar.

82 One day s. 7 may be interpreted to include positive obligations. To evoke Lord Sankey's celebrated phrase in *Edwards v. Attorney-General for Canada*, 1929 CanLII 438 (UK JCPC), [1930] A.C. 124 (P.C.), at p. 136, the *Canadian Charter* must be viewed as "a living tree capable of growth and expansion within its natural limits": see *Reference re Provincial Electoral Boundaries (Sask.)*, 1991 CanLII 61 (SCC), [1991] 2 SCR 158, at p. 180, per McLachlin J. It would be a mistake to regard s. 7 as frozen, or its content as having been exhaustively defined in previous cases. In this connection, LeBel J.'s words in *Blencoe*, *supra*, at para. 188 are apposite:

> We must remember though that s. 7 expresses some of the basic values of the *Charter*. It is certainly true that we must avoid collapsing the contents of the *Charter* and perhaps of Canadian law into a flexible and complex provision like s. 7. But its importance is such for the definition of substantive and procedural guarantees in Canadian law that it would be dangerous to freeze the development of this part of the law. The full impact of s. 7 will remain difficult to foresee and assess for a long while yet. Our Court should be alive to the need to safeguard a degree of flexibility in the interpretation and evolution of s. 7 of the *Charter*.

The question therefore is not whether s. 7 has ever been — or will ever be — recognized as creating positive rights. Rather, the question is whether the present circumstances warrant a novel application of s. 7 as the basis for a positive state obligation to guarantee adequate living standards.

83 I conclude that they do not. With due respect for the views of my colleague Arbour J., I do not believe that there is sufficient evidence in this case to support the proposed interpretation of s. 7. I leave open the possibility that a positive obligation to sustain life, liberty, or security of the person may be made out in special circumstances. However, this is not such a case. The impugned program contained compensatory "workfare" provisions and the evidence of actual hardship is wanting. The frail platform provided by the facts of this case cannot support the weight of a positive state obligation of citizen support.

…

Do you think the Charter should apply outside the context of the administration of justice? Or should there be some requirement that a state actor is using the justice system to "trigger" the application of section 7? Why or why not?

Section 7 does not, on its face, apply to claims for economic rights, though as we see above, the Supreme Court left open the possibility that such claims could succeed. Because the *Charter* does not expressly protect economic rights, efforts to ground such rights in section 7 (and section 15(1)) have produced mixed results. While a majority of the Supreme Court dismissed Ms Gosselin's claim, individuals and groups have had some success in using section 7 to ground a right to basic, overnight, shelter. These cases generally arise in the context of efforts by municipalities to prevent the unhoused from constructing shelters in public places (for an early appellate level decision, see for example *Victoria (City) v Adams*, 2009 BCCA 563).

7.1.3 The Regional Municipality of Waterloo v Persons Unknown and to be Ascertained

***The Regional Municipality of Waterloo v Persons Unknown and to be Ascertained*, 2023 ONSC 670**

The Honourable Justice M.J. Valente

REASONS FOR JUDGMENT

Introduction

[1] The issue in this application of The Regional Municipality of Waterloo (the 'Region') concerns the prohibition against erecting any type of structure, including a tent, on the Region-owned property, municipally known as 100 Victoria Street North, in the city of Kitchener (the 'Property'). More generally, however, the Region's application touches on the unfortunate, complex and nationwide social issue of homelessness.

The Parties and their Respective Positions

[2] In its application, the Region takes the position that the homeless persons who have erected shelters and are living on the Property are in breach of By-Law number 13-050, *A By-Law Respecting the Conduct of Persons Entering Upon Buildings, Grounds and Public Transportation Vehicles Owned or Occupied by the Region* (the 'By-Law'). The Region seeks, in addition to other relief, a declaration that the homeless living on the Property are in breach of the By-Law together with interim and final orders restraining and enjoining them from breaching the By-Law by remaining and/or re-entering onto the Property pursuant to section 440 of the *Municipal Act*, 2001, S.O. 2001, c.25, as amended (the '*Municipal Act*').

[3] A number of the individuals living at the Property's encampment have filed notices of appearance. … The Named Respondents delivered a notice of constitutional question seeking remedies pursuant to sections 24(1) and 52(1) of the *Canadian Charter of Rights and Freedoms*, Part I of the *Constitution Act*, *1982*, being Schedule B to the *Canada Act* 1982 (U.K.), 1982 c. 11 (the '*Charter'*). The Named Respondents allege that the By-law and the trespass notice issued under it breach their section 7 (right to life, liberty and security of person) and section 15(1) (equality) *Charter* rights in a manner that is not demonstrably justified in a free and democratic society.

[4] Prior to the matter coming before me for argument, I ordered the appointment of *amicus curiae* "for the purpose of advocating on behalf of individuals living in the encampment… whose capacity to engage or instruct counsel is in question, who have not retained counsel, and who have no other identified way to participate in these proceedings."

…

[6] The Region's position is that it does not require the Court's assistance in the determination of its legal rights. It maintains that it may assert its legal rights to evict any trespasser on Region-owned property who are in breach of the By-Law. Rather, the Region brings this application to seek the direction of the Court in how it might enforce its legal rights. Once it has the Court's direction, including a ruling that the *Charter* rights of the Named Respondents have not been violated, the Region proposes to use this Court's order as a precedent for its treatment of other homeless encampments across the Region.

The By-Law

[7] It is undisputed that the *Municipal Act* gives the Region the express authority to pass by-laws respecting its public assets and the protection of persons and property (see *Municipal Act*, ss. 8, 9, and 11(2)). It is also acknowledged that the *Trespass to Property Act*, R.S.O. 1990, c.T21, as amended, ss. 3 to 8 (the '*TPA*') allows an occupier of premises to prohibit or regulate entry onto premises and that the Courts have recognized municipalities as occupiers.

[8] Pursuant to the *Municipal Act*, the Region enacted the By-Law in December 2013. The By-Law prohibits certain activities on lands owned or occupied by the Region. The prohibited activities include erecting, without authorization, any form of structure on the lands as well as bringing any dangerous, illegal or flammable goods on the lands that are likely to cause injury or damage to the lands.

[9] The purpose of the By-Law is to (i) prevent physical damage to the lands owned or occupied by the Region (the 'Designated Premises') (ii) prevent the disruption of the Region's operations on the Designated Premises; and (iii) regulate the use and enjoyment of the Designated Premises by other persons.

[10] The Region's remedies pursuant to the By-Law are to lay a charge and/or exercise its available remedies under the *TPA*. These include issuing a written notice or posting a sign prohibiting the impugned conduct and/or requiring the person engaged in the prohibited activity to leave the property in question.

[11] Prior to December 2021, the By-Law was used by the Region to address and regulate homeless encampment complaints. In late November 2021, the Region's by-law enforcement staff attended at a homeless encampment at 34 Stirling Street East, in the city of Kitchener (the 'Stirling Encampment') to enforce the provisions of the By-Law prohibiting unauthorized occupation of Region-owned public lands. To assist with the eviction of the encampment residents, and because of certain health and safety concerns for the Region staff and members of the public stemming from the presence of unsanitary conditions, broken glass, large items and drug paraphernalia, the Region's enforcement staff enlisted the help of a road maintenance crew with heavy equipment to clear the Stirling Encampment.

[12] While the Region's Planning, Development, and Legislative Services and Legal Services Report to Regional Council of December 15, 2021 (the 'December 2021 Report'), maintains that the steps undertaken to evict the Stirling Encampment occupants "were consistent with the requirements of the [B]y-law," the same Report concedes that "the manner in which these actions were carried out did not reflect the dignity of those living at the encampment."

[13] As a result, the Region conducted a review of its then existing encampment eviction process and proposed a draft policy to Regional Council to supplement the By-Law as it specifically applies to homeless encampments. The draft policy was approved by Regional Council on December 15, 2021 (the 'Encampment Policy'). The details of the Encampment Policy are discussed below.

100 Victoria Street North, Kitchener

[14] The Region acquired the Property in November 2012. The Property is located on the corner of Victoria and Weber Streets in the city of Kitchener and is approximately one-half acre in size. It is a gravel parking lot. The VIA Rail/GO Transit and bus stations are to the east of the Property, a commercial plaza lies directly to the west, and a Metrolinx owned rail corridor is to the north. To the south of the Property are a variety of businesses and a church, including St. John's Kitchen, which provides meals during weekdays to persons in need.

[15] In May 2018, the Region and the province of Ontario entered into a Transfer Payment Agreement for the partial funding of the King Victoria Transit Hub (the 'Hub'). The Hub is a new train/bus station for the Region in close proximity to the Property. The Hub will require construction on Region lands. While there are no plans for any construction on the Property, the Region intends to use the Property in the short-term for additional motor vehicle parking for the VIA Rail and GO Transit stations across the street due to an anticipated increased use of the stations with the decline of the pandemic and as a lay-down area for the construction of the Hub. No evidence was, however, proffered by the Region respecting the immediate need for increased parking spaces to accommodate anticipated demand and although the evidence of Ellen McGaghey, the Region's Director of Facilities and Fleet Management, is that the construction of the Hub is projected for spring 2023, Ms. McGaghey admitted in cross-examination that there is no firm construction start date.

[16] In the long-term, the Region intends to use the Property for approximately one hundred dedicated transit customer parking spaces for the new Hub train/bus station. As a term of the Transfer Payment Agreement, the one hundred dedicated parking spaces are required of the Region upon the completion of the first stage of the Hub. It is projected that the contractually required parking will be required some time in late 2024, but there is no firm completion date.

Homelessness in the Region

[17] In 2014, the Region was the first Canadian community to count the number of people found to be experiencing homelessness. In 2018, the federal and provincial governments mandated bi-annual "Point in Time Counts" of the number of people experiencing homelessness. Based on the Region's Point in Time Count that was completed in September 2021, there were approximately 1,085 people experiencing homelessness in the Region. According to Kelly-Anne Salerno, Assistant Director of Housing Operations and Administration for the Region, the approximate 1,100 count is the most reliable information available on the extent of homelessness in the Region. According to the September 2021 Point in Time Count report, the number of people experiencing homelessness in the Region tripled from 2018 to 2021.

[18] In addition to the number of homeless in the Region, the Point in Time Count report also contains data about the demographics of the homeless in the Region. Specifically, of the 1085 experiencing homelessness, 412 were living rough (living on the street, sleeping in parks or squatting in temporary shelter), 385 were experiencing hidden homelessness (provisionally accommodated; couch surfing), 191 were accessing emergency shelters and 63 were institutionalized. Of the individuals who completed a survey during the Point in Time Count, 75% had been experiencing homelessness for more than six months in the last year, 30% of those counted were women, 67% were men, 10% were transgender, Two-Spirit or non-binary. Additionally, of the individuals counted, 17% identified as Indigenous or First Nations and 15% identified as part of a racialized community.

The Encampment

[19] In or around December 2021, a small number of people began erecting tents on the Property without the Region's permission. Over the following six months, approximately 70 temporary shelters were erected to house some 50 people on the Property (the 'Encampment'). As of the hearing of the application, no current evidence was provided with respect to the number of tents and number of homeless persons living on the Property. The most reliable evidence is that, on July 27, 2022, the Region surveyed 53 residents living in the Encampment.

[20] In March 2022 the Region hired Barber Collins Security to monitor the Encampment, to respond to any disruptions and to respond to any complaints from the public, and specifically, from the businesses located in the plaza to the south of the Property. In May 2022, the Region authorized the Barber Collins security staff to be posted at the entrance of the St. John's Kitchen to permit overnight access to the washrooms located at this facility.

[21] As of July 2022, the Region's monthly costs associated with its response to the Encampment was approximately $80,000. This cost not only included security services, but also garbage pick-up and janitorial services to clean the St. John's Kitchen washrooms.

The Encampment Residents

[22] The composition of the residents of the Encampment is reflective of the demographics of the Region's homeless population. They are individual men and women, couples, members of the 2SLGBTQ+ community, Indigenous people, members of racialized communities, as well as persons suffering from disabilities and substance abuse and domestic abuse survivors.

…

Section 7 of the *Charter*

[78] Section 7 of the *Charter* provides:

> Everyone has the right to life, liberty and security of the person and the right not to be deprived thereof except in accordance with the principles of fundamental justice.

[79] The onus is on the rights claimant under section 7 of the *Charter* to establish on a balance of probabilities that the impugned legislation deprives him or her of either life, liberty, of security of the person, and that the deprivation is not in accordance with the principles of fundamental justice. Should the claimant be successful in this respect, then the burden shifts to the respondent, under section 1 of the *Charter*, to justify the deprivation as a "reasonable" limit that is "demonstrably justified in a free and democratic society: see *R. v. Michaud*, 2015 ONCA 585, 127 O.R. (3d) 81, at para. 60. …

[80] I add one qualification to the above section 7 analysis described by the Ontario Court of Appeal in *R. v. Michaud,* based on the statement of Chief Justice McLachlin in *Charkaoui v. Canada (Citizenship and Immigration)*, 2007 SCC 9, [2007] 1 SCR 350, who explained, at para.12, that the first of the two steps to be established by the moving party are meant to examine whether "there has been or could be a deprivation of the right to life, liberty or security of the person."

Section 7 and the History of the "Right to Shelter" Cases

[81] As homelessness continues to be a growing and problematic issue across Canada, the section 7 jurisprudence has continued to develop.

…

…

[82] The essence of the British Columbia decisions is the establishment of a constitutional right to shelter oneself when the number of homeless persons exceed the number of available and accessible indoor shelter spaces within a given jurisdiction.

[83] While the Region acknowledges the British Columbia jurisprudence, it submits that these decisions have been distinguished by Ontario decisions on the basis of an *obiter* comment of the British Columbia Court of Appeal in *Victoria (City) v. Adams*, 2009 BCCA 563, 100 B.C.L.R. (4th) 28, [*Adams BCCA*] and the Region urges me to follow these Ontario rulings.

[84] The British Court of Appeal stated, at para. 109:

> We agree with the trial judge that prohibiting the homeless from taking simple measures to protect themselves through the creation or utilization of rudimentary forms of overhead protection, in circumstances where there is no practicable shelter alternative, is a significant interference with their dignity and independence. The choice to shelter oneself in this context is properly included in the right to liberty under s. 7.

[85] However, the Court then goes on to comment in *obiter* as follows at para. 162:

> If there were adequate shelter beds or appropriate designated areas outside of parks to accommodate the homeless, the Bylaw provisions that we are concerned with might well be valid.

[86] In the recent Ontario decisions of *Black v. Toronto (City)*, 2020 ONSC 6398, 152 O.R. (3d) 529 [*Black*] and *Poff v. City of Hamilton*, 2021 ONSC 7224 [*Poff*] homeless individuals sought an injunction to prevent the municipality from evicting them from city parks. In both instances, the Ontario Courts considered the British Columbia decisions and distinguished them on the basis of a factual finding that there were adequate shelter spaces to accommodate all of the cities' homeless.

…

[90] In the alternative, to urge my following the *Black* and *Poff* decisions, the Region submits that provided I find that there is adequate capacity in the shelter system to accommodate the residents of the Encampment, I should nonetheless find that the By-Law does not violate the section 7 rights of the Encampment residents.

[91] Apart from the position that there are not sufficient available spaces in the Region to shelter its homeless population, the Named Respondents and *Amicus Curiae* submit that it is not simply the number of available shelter spaces that frames the section 7 rights but also whether those spaces are truly accessible to the homeless. They also argue that the Ontario decisions mentioned above are distinguishable from the case before me on the basis that the two encampments, each in the cities of Toronto and Hamilton, were located in municipal parks and not in a vacant lot. Whereas the Ontario Courts found that there was significant public interest in ensuring that everyone had access to the parks, there is no such public interest in the Property.

[92] Based on the record before me, I find that despite the Region's past and current impressive efforts to accommodate its homeless population, there are not sufficient shelter spaces. I find that the number of homeless persons in the Region far outnumber the available shelter beds such that many of the Region's homeless have no alternative but to sleep outside. The most reliable evidence is that the Region has a homeless population of approximately 1,100 individuals. Excluding the motel spaces (because their availability is at the discretion of the motel operators and in many cases the rooms are available only to those with acute or severe medical needs or families), the most current information is that the Region has a maximum capacity of 416 shelter spaces. Even with the inclusion of the rooms at the YWCA and Working Centre (the Cambridge Shelter Overflow beds having already been included in the 416 available shelter spaces) the Region has a current capacity to shelter approximately 553 individuals (calculated on the assumption that each of the 23 families to be housed through the YWCA motel booking have 4 members). The available shelter spaces, unfortunately, fall short by some 50% of what is required. This result, in my opinion, does not equate to "adequate safe alternatives to sleeping in encampments" in the words of Justice Schabas.

[93] Furthermore, I accept that it is simply not a matter of counting the number of spaces. To be of any real value to the homeless population, the space must meet their diverse needs, or in other words, the spaces must be truly accessible. If the available spaces are impractical for homeless individuals, either because the shelters do not accommodate couples, are unable to provide required services, impose rules that cannot be followed due to addictions, or cannot accommodate mental or physical disability, they are not low barrier and accessible to the individuals they are meant to serve. Although not binding on me, I adopt and follow the decisions of the British Columbia Supreme Court in *Shantz*, *Prince George (City) v. Stewart*, 2021 BCSC 2089, 57 B.C.L.R. (6th) 118 [*Stewart*], and *Bamberger,* all of which hold that in order for the shelter spaces to be truly available, they must in fact be low barrier or accessible to accommodate the homeless population.

…

Does the By-Law Deprive the Encampment Residents of One of the Protected Section 7 Rights?

(a) Life

[95] The Supreme Court of Canada established in *Carter v. Canada (Attorney General)*, 2015 SCC 5, [2015] 1 SCR 331 [*Carter*], that the right to life is engaged in a narrow set of circumstances. It observed, at para. 62, that:

> This Court has most recently invoked the right to life in *Chaoulli v. Quebec (Attorney General)*, 2005 SCC 35, [2005] 1 SCR 791, where evidence showed that the lack of timely health care could result in death (paras. 38 and 50, per Deschamps J.; para. 123, per McLachlin C.J. and Major J.; and paras. 191 and 200, per Binnie and LeBel JJ.), and in *PHS*, where the clients of Insite were deprived of potentially lifesaving medical care (para. 91). In each case, the right was only engaged by the threat of death. In short, the case law suggests that the right to life is engaged where the law or state action imposes death or an increased risk of death on a person, either directly or indirectly.

[96] Just as the British Columbia cases have found, and as Justice Schabas acknowledged in *Black*, so too do I conclude that the ability to provide adequate shelter for oneself is a necessity of life that falls within the right to life protected by section 7 of the *Charter*. Like Justice Ross in *Adams BCSC*, I have reached this conclusion because the very clear and uncontroverted evidence before me is that exposure to the elements without adequate shelter can result in serious harm, inducing death. The risk of harm is substantially increased during the late fall and winter months in the Region. Just as Chief Justice Hinkson was prepared to take judicial notice in *Stewart* that Prince George can be very cold in the fall and winter (at para. 64), so too am I prepared to take judicial notice of this reality facing the Region's homeless.

[97] Because the By-Law prohibits the erection of shelter protection that is necessary to protect homeless individuals from risk of serious harm, and there is currently inadequate shelter beds in the Region, I conclude that it violates the *Charter* protected right to life.

(b) Liberty

…

[101] I have found as a fact that there are not enough accessible shelter beds for the Region's homeless population. If evicted from the Encampment, the residents will likely be forced to live in the rough or set up camp somewhere else because there is an insufficient supply of low-barrier accessible beds in the Region. In these circumstances, creating shelter to protect oneself is, in my opinion, a matter critical to any individual's dignity and independence. The Region's attempt to prevent the homeless population from sheltering itself interferes with that population's choice to protect itself from the elements and is a deprivation of liberty within the scope of section 7.

(c) Security of the Person

[102] Security of the person includes the protection of both physical and psychological integrity. …

…

[104] In the case before me, the Region does not have adequate accessible shelter spaces for its homeless population of some 1100 individuals. The Region has made it clear that any order in its favour on this application will be used as a precedent to evict other encampments in the Region. As I have previously stated, an order in the Region's favour would therefore force the Encampment residents to choose between living outside in the rough or risk setting up an encampment elsewhere only to be evicted once again. At the end of the day, the By-Law's prohibition to the erection of temporary shelter exposes the homeless of the Region to risk of significant health problems, both physical and psychological in nature. The evidence before me is clear in that respect. Just as in *R v. Parker*, the state's action has deprived the homeless of access to shelter required for adequate protection. I therefore find that the Region's By-Law amounts to a deprivation of the security of the person.

[105] Whereas I find that in the circumstances of the Encampment residents, the constitutional right to shelter is invoked where the number of homeless individuals exceed the number of available and truly accessible indoor sheltering spaces, I also find that the Encampment residents' right to shelter is not limited to the overnight hours. I have reached this conclusion for two reasons. Like Chief Justice Hinkson found in *Shantz*, at para. 276, I find on the evidence that "there is a legitimate need for people to rest and shelter during the day" but, unlike the British Columbia's Supreme Court's Chief Justice, I find that there is no need in the case of the Encampment to balance their needs with the rights of the Region's other residents. Unlike in *Adams* and *Shantz*, the Property is not a park or other space designed with the purpose of being enjoyed by the public at large. Instead, the Property is a vacant lot to be used by the Region as a temporary parking lot and lay down construction area at some undefined future date. Therefore, based on these facts, there is no need to consider how the impact of the Encampment residents sheltering overnight may impair the interests and rights of other residents of the Region.

[106] Finally, I have considered the Region's submission that personal "choice" negates any claim to a breach of the section 7 protected rights. While some of the Encampment residents have chosen to live in the Encampment because they feel relatively safe and have a sense of community there rather than attempting to access a shelter that may not meet their needs, personal "choice", in my opinion, does not negate a claim that one's section 7 *Charter* rights have been breached. In my view, the overriding context in the matter before me is not one of freedom in the exercise of autonomous choice. As the Named Respondents submit, it is a context characterized by poverty, drug addiction, disability, and insufficient shelter alternatives.

[107] The question is not whether the Encampment residents' circumstances are self-made, but rather, whether enforcement of the By-Law will make the residents' already dire predicament worse.

Is the Deprivation in Accordance with the Principles of Fundamental Justice?

[108] Having found the By-Law constitutes a deprivation of the Unnamed Respondents' rights protected by section 7 of the *Charter*, the next issue is to determine whether this infringement is in accordance with the principles of fundamental justice.

(a) Overbreadth

[109] The Supreme Court of Canada makes clear in *Godbout* that the principles of fundamental justice require that any restriction on life, liberty, and security of the person must not be more broadly framed than necessary to achieve the legislative purpose. …

…

[111] In essence, whether a law is overbroad within the meaning of section 7 turns on the relationship between the law's purpose and its effect: see *R. v. Moriarity*, 2015 SCC 55, [2015] 3 SCR485, at para. 24; *R. v. Safarzadeh-Markhali*, 2016 SCC 14, [2016] 1 SCR 180, at para. 24. In *Adams BCSC*, Justice Ross applied the test for overbreadth from *Heywood* with approval of the British Columbia Court of Appeal.

…

[114] … If the Region's purpose is to prevent physical damage to the physical premises, prevent disruption to regional operations, and prevent the disruption of the use and enjoyment of the Designated Premises by others, the Region could have accomplished this goal without punishing everyone who erects a shelter when there is no accessible shelter alternative. The homeless population of the Region needs to be able to create some shelter. If there were sufficient, truly accessible shelter beds in the Region, and the homeless chose not to use them, the situation would be quite different, but that is not the case here. I have also concluded that the rights of the homeless population have been limited for no valid reason by means which are broader than are necessary to accomplish the stated objective because, based on the record before me, I am not convinced that the Encampment has caused damage of any significance to the Property's physical premises, disrupted the Region's operations, or disrupted its use by "other persons" including the Region which has no immediate need for the Property.

(b) Gross Disproportionality

[115] Gross disproportionality is another principle of fundamental justice. This principle is infringed when the impact of the restriction on the individual's life, liberty, or security of person is grossly disproportionate to any legitimate government interest: see *Shantz*, at para. 204. The focus is not on the impact of the law on society or the public or its effectiveness, which are matters for the section 1 analysis, but on its impact on the rights of the claimants: see *Carter,* at para. 89. The inquiry into gross disproportionality compares the law's objective with its negative effect on the rights of the claimant and "asks if this impact is completely out of sync with the object of the law": *Carter*, at para. 89.

[116] Gross disproportionality is not concerned with the number of people who experience grossly disproportionate effects but rather a grossly disproportionate effect on just one person is sufficient to violate the norm: see *Canada (Attorney General) v. Bedford*, 2013 SCC 72, [2013] 3 SCR 1101, at para. 122 [*Bedford*].

…

[118] … the evidence points to the conclusion that there are many benefits to encampment living. Both the Named Respondents and Dr. Sereda have attested to these benefits which include a safe place to rest, access to social services and healthcare, a sense of community (which correlates with mental health stabilization and emotional support), and privacy.

[119] Given that the accepted purpose of the By-Law is to prevent physical damage to the Designated Premises and disruption to the Region's operations as well as the use and enjoyment of the Designated Premises by others, I find that the proposed eviction of the Encampment residents is grossly disproportionate to the By-Law's goal. In short, the impact of the enforcement of the By-Law is "completely out of sync with the object of the law."

…

Disposition

[154] For all of the above reasons:

…

[157] I declare pursuant to section 52(1) of the *Constitution Act, 1982,* that the By-Law violates section 7 of the *Charter* in that it deprives the homeless residents of the Encampment of life, liberty and security of the person in a manner not in accordance with the principles of fundamental justice and is not saved by section 1 of the *Charter*.

[158] I declare that the By-Law is inoperative insofar, and only insofar, as it applies to prevent the residents of the Encampment from living on and erecting temporary shelters without a permit on the Property when the number of homeless persons exceeds the number of available accessible shelter beds in the Region.

[159] Finally, I order that the Region may apply to terminate my declaration upon it being in a position to satisfy this Court that the By-Law no longer violates the section 7 rights of the Encampment residents.

…

Cases involving the constitutionality municipal bylaws that impact the unhoused continue to be brought before the courts. In recent years, trial courts in British Columbia, Ontario, and Alberta have issued decisions in such cases. The British Columbia Court of Appeal has addressed one such case on its merits (see *Victoria (City) v Adams*, 2009 BCCA 563 (CanLII) in which the narrow question was whether a municipality that did not prohibit the unhoused from sleeping overnight in public parks could nonetheless prohibit the unhoused from erecting temporary, overnight, shelter in those parks). The cases heard by trial courts in more recent years have yet to be tested before provincial courts of appeal. *Do you agree that section 7 includes the right to basic, overnight, shelter?* Compare the claim and the reasons given in *The Regional Municipality of Waterloo* case extracted above with the claim and reasons in *Heegsma v Hamilton (City)*, 2024 ONSC 7154. *Which approach do you think is more consistent with the Supreme Court's interpretation of section 7?*

Do you think the interpretation of section 7 may extend to other "economic" rights? Or, do you think that to the extent section 7 protects "economic" rights, it is limited to the necessities of life (such as access to life-saving health care, or overnight shelter)? What are the reasons for your view? In thinking through these questions, consider the decision of Justice Arbour in *Gosselin*: note in particular Justice Arbour's critique of the Supreme Court's section 7 jurisprudence, and her analysis of Ms Gosselin's claim. *Does Justice Arbour provide a convincing alternative approach to the interpretation of section 7?*

7.2 The environment

In addition to efforts to use the *Charter* to advance the rights of the unhoused, there have been some efforts in recent years to use section 7 to protect the environmental rights of individuals, especially young people. The courts of Québec refused to certify a class action in which the claimants alleged that Canada's failure to fulfill its international obligations to reduce greenhouse gas emissions amounted to a violation of the section 7 rights of persons under the age of 35 (see *Environnement Jeunesse c Procureur général du Canada*, 2021 QCCA 1871). The Federal Court of Appeal has allowed two claims that the failure to address climate change is a violation of the section 7 rights of young people to proceed. This is subject to the claimants amending their pleadings (see *La Rose v Canada*, 2023 FCA 241, allowing appeals in part from *La Rose v Canada*, 2020 FC 1008, and *Misdzi Yikh v Canada*, 2020 FC 1059). The *Mathur* case in Ontario provides another example of claimants seeking to have the courts affirm that section 7 of the *Charter* encompasses the right to a healthy environment.

7.2.1 Mathur v Ontario

***Mathur v Ontario*, 2024 ONCA 762**

By the Court:

I. Overview

[1] This appeal involves the constitutionality of the greenhouse gas emission reduction target and plan enacted by the Ontario government ("Ontario") under climate change legislation. Specifically, can the alleged failure of Ontario to comply with its voluntarily imposed statutory obligations to combat climate change amount to a breach of the appellants' ss. 7 and 15 rights under the *Canadian Charter of Rights and Freedoms*?

[2] In 2018, Ontario enacted the *Cap and Trade Cancellation Act, 2018*, S.O. 2018, c. 13 ("*CTCA*"). Section 16 of the *CTCA* repealed the *Climate Change Mitigation and Low-carbon Economy Act, 2016*, S.O. 2016, c. 7 ("*Climate Change Act*"), which had contained greenhouse gas emission reduction targets, and s. 3(1) required the government to set new reduction targets (the "Target"). The Target implemented by Ontario, which is articulated in the "Preserving and Protecting our Environment for Future Generations - A Made-in-Ontario Environmental Plan" (the " Plan"), calls for a 30% reduction of greenhouse gas emissions from 2005 levels by 2030. This is a much smaller reduction than prescribed under the *Climate Change Act* and, according to the unchallenged expert evidence filed that the application judge accepted, falls short of the international scientific consensus of the reductions recommended to mitigate the most catastrophic effects of climate change.

[3] The appellants are seven Ontario youth, some of whom are Indigenous. They brought an application for a declaration that Ontario's Target and the enacting provisions of ss. 3 and 16 of the *CTCA* are unconstitutional as they violate their rights under ss. 7 and 15 of the *Charter*. They seek an order declaring their *Charter* rights have been violated and requiring Ontario to set a science-based emissions reduction target and to revise its climate change plan in accordance with international standards.

[4] The application judge dismissed their application. While she concluded that the issue of whether the appellants' ss. 7 and 15 *Charter* rights were violated was justiciable, she characterized the application as a positive rights case. She concluded that any deprivation of the right to life or security of the person was not contrary to the principles of fundamental justice under s. 7 and that s. 15 of the *Charter* did not impose a positive obligation on Ontario to take any specific steps to combat climate change. As a result, she determined that the appellants' ss. 7 and 15 rights were not breached.

[5] In our view, the application judge erred in her analytical approach. This is not a positive rights case. The application does not seek to impose on Ontario any new positive obligations to combat climate change. By enacting the *CTCA*, Ontario voluntarily assumed a positive statutory obligation to combat climate change and to produce the Plan and the Target for that purpose. Ontario was therefore obligated to produce a plan and a target that were *Charter* compliant. The application judge did not address whether Ontario failed to produce a plan and a target that was *Charter* compliant in accordance with its statutory mandate. As a result, the ss. 7 and 15 *Charter* issues raised by the appellants remain to be determined.

[6] The interveners raised relevant, important issues that were not determined by the application judge, either because they were not raised before her or did not affect her analysis, or because she declined to address them since they were not pleaded in the notice of application. They included whether the Target breached the *Charter* rights of Indigenous peoples in Ontario and their s. 35 rights under the *Constitution Act, 1982*; the integration of the public trust doctrine; the application of international law, including international environmental law, in the interpretation of *Charter* rights; the application of the best interests of the child principle; and the recognition and impact of certain unwritten constitutional principles, including societal preservation and ecological sustainability.

[7] For the reasons that follow, we allow the appeal. However, we decline to decide the application and to make the orders sought by the appellants in their notice of appeal. This court is not well placed to determine whether the declarations and directions sought should be granted. Although much of the expert evidence was uncontroverted, courts of first instance have a significant "institutional advantage in making the determinations necessary to a fair treatment" of ss. 7 and 15 claims: *Canadian Council for Refugees v. Canada (Citizenship and Immigration)*, 2023 SCC 17, 481 D.L.R. (4th) 581, at para. 176. Moreover, if the appellants wish to have the additional issues raised by the interveners adjudicated, they will have to obtain leave to amend their notice of application and the evidentiary record may have to be amplified.

[8] Consequently, while we clarify in these reasons the question that must be determined at a new hearing, we are careful not to decide that question or otherwise limit the analysis to be undertaken, including the application of s. 1 of the *Charter*, if pursued. Given the seriousness of these matters, the additional issues raised, and the potential need for further evidence, it would not be in the interests of justice nor practically feasible for this court to take on the role of finder of fact and conduct the required analysis: *Canadian Council for Refugees*, at para. 178. We therefore remit the application for a new hearing before the same or another justice of the Superior Court.

II. Background

[9] To understand the issues on appeal, we will set out a summary of the legislative and evidentiary background and the application judge's factual findings with respect to the evidentiary record that informed her analysis and conclusions. The application record includes the legislative history leading up to the *CTCA,* the Plan and the Target, including international climate change conventions that informed them and the predecessor legislation that the *CTCA* repealed. It also includes the appellants' expert evidence on the deleterious effects of climate change and proposed remedial action. While Ontario proffered its own expert evidence, it accepted that anthropogenic climate change is real and poses risks to human health and well-being. Further, Ontario did not argue the application of s. 1 of the *Charter*.

(a) Climate change legislation, international conventions, and uncontroverted evidence of harm

[10] In 1992, the United Nations adopted its *Framework Convention on Climate Change*, U.N. Doc. A/AC.237/18 (Part II)/Add.1, May 15, 1992 ("*UNFCCC*"), the objective of which was to stabilize greenhouse gas concentrations in the atmosphere. In 2015, the Paris Agreement, U.N. Doc. FCCC/CP/2015/10/Add.1, December 12, 2015, was adopted under the *UNFCCC*. Article 2 of the Paris Agreement calls on signatories to hold the increase in global average temperature to well below 2 degrees Celsius and pursue efforts to limit the temperature increase to 1.5 degrees Celsius above pre-industrial levels. Canada is a party to both the *UNFCCC* and the Paris Agreement. Canada's original target was set as a 30% reduction from 2005 greenhouse gas emissions by 2030. In 2022, Canada announced a target of a 40–45% reduction from 2005 greenhouse gas emissions by 2030.

[11] The global carbon budget means total cumulative global carbon emissions. Scientists use the concept of a global "carbon budget" to define how much more carbon dioxide can be emitted into the atmosphere before certain levels of global temperature warming will be locked in and irreversible. As already noted, the scientific consensus at present is that the level of global temperature warming should be held to 1.5 degrees Celsius. Once the carbon budget is used up or exceeded, global temperatures could stabilize at a new dangerously high global temperature, even if measures are later taken to reduce global carbon dioxide emissions to net zero.

[12] The application judge accepted the expert evidence adduced by the appellants and found that it established the following:

- Warming in Canada is, on average, about double the magnitude of global warming;
- Deaths in Ontario are projected to increase significantly if global temperatures rise above 1.5 degrees Celsius;
- Heat waves are increasing in frequency, which will increase heat-related morbidity and mortality;
- Climate change has increased the burden of certain infectious diseases (i.e., through ticks and mosquitos, through food and waterborne disease, and through fungus and parasites) and this burden is likely to continue to increase;
- Climate change will increase the frequency and severity of wildfires in Ontario and across Canada, and smoke will cause increasing mortality and morbidity for Ontarians;
- Climate change will increase flooding frequency and magnitude, which will lead to health risks associated with the contamination of drinking water and food, exposure to mould and carbon monoxide poisoning, and mental health issues;
- Climate change will lead to further increases in cyanobacterial blooms in Ontario, which produce toxins harmful to human and wildlife health and threaten water quality and fish stocks;
- Above 2 degrees Celsius of warming, climate change will lead to increased mercury in Ontario aquatic ecosystems, including in fish, which has been linked to a range of neurodevelopmental, cardiovascular, and immunologic effects;
- Climate change has been linked to serious and wide-ranging negative mental health impacts, including emotional reactions, depression, anxiety, post-traumatic stress disorder, grief and loss, increased drug and alcohol use, social and family stress, increased suicidal ideation and suicide, loss of cultural knowledge and continuity, and deterioration and loss of place-based connection;
- With each additional degree of warming, there is an increase in probability of large-scale displacement, regional food security crises, and climate-related violence and conflict; and
- Every incremental increase in global temperature increases the likelihood of large-scale, devastating climate tipping points being crossed.

[13] The application judge further accepted the expert evidence adduced by the appellants showing that climate change has disproportionate impacts on young people and Indigenous peoples, and made the following findings:

- Children are more sensitive to heat and respiratory and communicable diseases;
- Young people are especially at risk from the impacts of wildfire smoke, flooding, extreme heat, vector-borne diseases, and toxic contamination;
- Young people are more vulnerable to the impacts of climate change given increased reliance on caregivers for protection and adaptation;
- Climate change may differentially impact the mental health of children and youth;
- Indigenous youth face particular mental health challenges due to their strong ties to the land;
- Indigenous peoples in Ontario have already observed significant harmful effects from climate change, impacting food and water security and traditional and subsistence practices such as fishing, hunting, and plant harvesting;
- The loss of traditional foods and cultural practices is impacting Indigenous peoples' mental and physical well-being; and
- Indigenous peoples are particularly vulnerable to mental health impacts of climate change, which include anxiety, depression, grief, family stress, loss of identity, increased likelihood of substance usage, and suicidal ideation.

[14] The application judge concluded that: "Based on the evidence before [her], it is indisputable that, as a result of climate change, the [appellants] and Ontarians in general are experiencing an increased risk of death and an increased risk to the security of the person."

[15] The application judge noted that there is no fixed scientific formula to determine exactly what reductions must be made by Ontario to correspond with its "fair share" to reduce global greenhouse gas emissions to the scientifically accepted international standard. However, a fair inference flows from her findings, including that the Target cannot be meaningless, that there is no question that Ontario must do something. The application judge found that Ontario's greenhouse gases contribute to climate change in a way that is "real, measurable and not speculative" and that "[e]very tonne of [carbon dioxide] emissions adds to global warming and lead[s] to a quantifiable increase in global temperatures that is essentially irreversible on human timescales."

[16] What Ontario is prepared to do at present is reflected in the *CTCA*, which was enacted in 2018. Section 16 of the *CTCA* repealed the former *Climate Change Act.* The repealed *Climate Change Act* provided for the following emission reduction targets in Ontario in s. 6(1):

> The following targets are established for reducing the amount of greenhouse gas emissions from the amount of emissions in Ontario calculated for 1990:
>
> 1. A reduction of 15 per cent by the end of 2020.
>
> 2. A reduction of 37 per cent by the end of 2030.
>
> 3. A reduction of 80 per cent by the end of 2050.

[17] The *CTCA*, in contrast, does not prescribe emissions reduction targets. Section 3(1) provides as follows: "The Government shall establish targets for the reduction of greenhouse gas emissions in Ontario and may revise the targets from time to time." It accordingly does not itself set a new target but requires Ontario to do so.

[18] The Target is articulated in the Plan, which Ontario released a few months after the *CTCA* was enacted for consultation and public comment. The Plan states that it "reflects our government's commitment to address [the] pressing challenges" Ontarians face and commits the government to "use the best science, real-time monitoring where available, and strong, transparent enforcement to protect our air, land and water, prevent and reduce litter and waste, support Ontarians to continue to do their share to reduce greenhouse gas emissions, and help communities and families prepare for climate change."

[19] With respect to specifically addressing climate change, the Plan acknowledges the severe impacts of climate change:

> The climate is changing. Severe rain, ice and wind storms, prolonged heat waves and milder winters are much more common. Forests, waters and wildlife across the province are and will continue to be significantly impacted by these changes. People across the province – especially Northern communities – and all sectors of the economy are feeling the impacts of climate change and paying more and more for the costs associated with those impacts.

[20] The Plan further indicates that it fulfills the government's commitment under the *CTCA*: "The following chapter of our environment plan acts as Ontario's climate change plan, which fulfills our commitment under the [CTCA]" (emphasis added).

[21] The application judge accepted that the Plan set the Target and did not, as argued by Ontario before her and on this appeal, merely refer to a non-binding, aspirational goal. In the Plan, Ontario undertakes to reduce greenhouse gas emissions by 30% below 2005 levels by 2030 – which is consistent with Canada's commitment at the time when Canada signed on to the 2015 Paris Agreement, but a smaller reduction than under the repealed *Climate Change Act* and Canada's more recent commitment to reduce emissions by 40–45% from 2005 levels by 2030. The Plan states that:

> Ontario will reduce its emissions by 30% below 2005 levels by 2030.
>
> This target aligns Ontario with Canada's 2030 target under the Paris Agreement.
>
> This is Ontario's proposed target for the reduction of greenhouse gas emissions, which fulfills our commitment under the [*CTCA*]. [Emphasis deleted.]

[22] Ontario also undertakes that the Plan "will be reviewed on a four-year basis" and that Ontario "is committed to doing its part to address climate change. This includes leading by example". …

[23] The application judge observed that the United Nations' Intergovernmental Panel on Climate Change ("IPCC") released a report the same year the Target was set stating that global net anthropogenic carbon dioxide emissions must be reduced by approximately 45% below 2010 levels by 2030 and must reach net zero by 2050 to limit global average surface warming to 1.5 degrees Celsius. She found that the reports produced by the IPCC were a reliable and comprehensive source on existing scientific knowledge about climate change and its impacts. Based on the IPCC report, the application judge observed that Ontario would have to reduce its 2005 emissions by approximately 52% (i.e., 22% more than the 30% Target) by 2030 to limit average global warming to 1.5 degrees Celsius. She found that the gap between the IPCC prescription and the Target is "large, unexplained and without any apparent scientific basis."

…

[34] While the appellants raise several grounds of appeal, the appeal turns on whether the application judge erred in finding that the application sought to impose a freestanding positive obligation on Ontario and in failing to address whether the execution of Ontario's statutorily imposed obligation to combat climate change was constitutionally compliant. As we shall explain, we conclude that she did.

IV. Analysis

…

(b) Overview

[36] The application judge correctly noted at para. 106 of her reasons that the *Charter* applies to the Target and the *CTCA* and that, as a result, the *Charter* issues raised by the appellants are justiciable because "the Constitution requires that courts review legislation and state action for *Charter* compliance when citizens challenge them, even when the issues are complex, contentious and laden with social values."

[37] However, the application judge erred in viewing this case as a positive rights case. Given the application judge's findings in para. 123 of her reasons that Ontario enacted the Plan and the Target further to the mandate in the *CTCA* and that they are not meant to be meaningless, there can be no question that Ontario has assumed a statutory obligation to do something about climate change and to enact a Target and formulate a Plan that would do something about climate change. The question should have been whether the execution of that voluntarily imposed statutory obligation was *Charter* compliant.

…

(d) Section 7 of the *Charter*

[42] Section 7 of the *Charter* provides that everyone has the right to life, liberty and security of the person and the right not to be deprived thereof except in accordance with the principles of fundamental justice. The Supreme Court formulated the analysis under s. 7 as a two-step test: first, claimants must show that the law interferes with, or deprives them of, their life, liberty or security of the person; and second, they must show that the deprivation in question is not in accordance with the principles of fundamental justice: *Carter v. Canada (Attorney General)*, 2015 SCC 5, [2015] 1 SCR 331, at para. 55.

[43] The right to life is engaged where the impugned law or state action imposes death or an increased risk of death on a person, either directly or indirectly: *Carter*, at para. 62. The right to security of the person is engaged when the impugned law or state action negatively impacts or limits the claimant's security of the person: *Canada (Attorney General) v. Bedford*, 2013 SCC 72, [2013] 3 SCR 1101, at paras. 58-

60.

[44] The application judge found, correctly in our view, that based on the evidence before her, "it is indisputable that, as a result of climate change, the [appellants] and Ontarians in general are experiencing an increased risk of death and an increased risk to the security of the person". She framed the "relevant question" before her as follows: "whether subsection 3(1) of the *CTCA* and the Target impose an increased risk of death, directly or indirectly, and/or whether they negatively impact or limit the [appellants'] security of the person."

…

[49] The application judge erred in treating this as a positive rights case. Although she concluded the appellants' rights to life and security of the person were engaged after assuming, without deciding, that positive obligations can be imposed under s. 7 in the special context of climate change, her incorrect framing of the application as a positive rights case coloured her analysis.

[50] This incorrect framing also affected the application judge's consideration of whether the deprivations she found were in accordance with the principles of fundamental justice. The application judge correctly noted that a law is arbitrary where "there is no connection between the effect of a provision and its purpose": *Sharma*, at para. 111; or "where there is no rational connection between the object of the law and the limit it imposes on life, liberty or security of the person": *Carter*, at para. 83. She defined the objective of the Target as: "To reduce [greenhouse gases] in Ontario to address and fight climate change."

[51] The application judge was unable to find that the Target was arbitrary because she erroneously considered the question through the lens of a positive claim case, stating: "In my view, the principle against arbitrariness is not well-adapted to a positive claim case under section 7 as it is premised on there being a state interference limiting the right to life, liberty or security of the person, and not a failure on the part of the state to do something." Although concluding that "the Target falls short and its deficiencies contribute to increasing the risks of death and to the security of the person", the appellants' complaint was that "the Target does not go far enough".

[52] The application judge's analysis of the issue of gross disproportionality was similarly flawed. She correctly instructed herself that gross disproportionality asks whether the "seriousness of the deprivation is totally out of sync with the objective of the measure" by comparing the law's purpose, "taken at face value", with its negative effects on the rights of the claimant: *Carter*, at para. 89. However, she again mischaracterized the issue as the appellants' complaint that Ontario's Target did not go far enough concluding that "the principle against gross disproportionality cannot have any application in a case like this one where the issue under section 7 is that the government did not go far enough."

[53] The question before the application judge was not whether Ontario's Target did not go far enough in the absence of a positive obligation to do anything. Rather, she should have considered whether, given Ontario's positive statutory obligation to combat climate change that it had voluntarily assumed, the Target was *Charter* compliant. She erred by failing to consider the correct question.

…

(f) The relief requested by the appellants in their application

[66] The appellants' application is premised on the argument that Ontario is statutorily obliged to take positive steps to redress the future harms of climate change. They ask that the Target be replaced with a constitutionally compliant Target. As the application judge found, there is an unexplained gap between international standards and the Target. The appellants argue that the reality of the Target is that it allows more greenhouse gases into the atmosphere than recommended under international standards.

[67] Ontario sees this case as requesting that the court assume judicial control over environmental and climate policy. Moreover, Ontario says that the appellants' request that the Target conform to scientific standards is vague and imprecise. As a result, the remedy requested by the appellants is impossible to order.

[68] We disagree.

[69] First, the appellants' requested relief includes declaratory relief, including a declaration that the Target violates their ss. 7 and 15 *Charter* rights, which may be ordered without the necessity of telling Ontario precisely what to do to make its Target *Charter* compliant. As the Supreme Court stated in *Canada (Prime Minister) v. Khadr*, 2010 SCC 3, [2010] 1 SCR 44, at para. 47, a court can exercise its discretion to grant declaratory relief as a proper remedy and, "respectful of the responsibilities of the executive and the courts, … provide the legal framework for the executive to exercise its functions and to consider what actions to take … in conformity with the *Charter*."

[70] Second, the appellants are not requesting the court to order Ontario to set a particular target. As set out above, they seek an order directing Ontario to set a "science-based" target consistent with Ontario's share of the reductions necessary to limit global warming below 1.5 degrees Celsius above pre-industrial temperatures or, alternatively, well below 2 degrees Celsius. The unchallenged international standards and scientific consensus about global warming and climate change and the remaining carbon budget in the evidence on this application is not imprecise. If a breach of the appellants' *Charter* rights is declared, there are clear international standards based on accepted scientific consensus that can inform what a constitutionally compliant Target and Plan should look like. The international standards and the scientific evidence produced by the parties on the application clearly indicate how acceptable levels of greenhouse gas emissions are measured and calculated. Notably, this evidence also suggests that the amount of greenhouse gases that Ontario emits into the atmosphere can be calculated and that the level of reduction of gases that scientific experts opine should be implemented in order to conform with international standards are measurable.

[71] Finally, and importantly, Ontario's argument that ordering a "science-based" target would be "so devoid of content as to be effectively meaningless" is belied by its choice stated in the Plan to align its Target to Canada's 2030 target under the international standard of the Paris Agreement.

[72] In para. 145 of her reasons, the application judge noted that "it is appropriate in the context of this case to assess the Target in light of global targets that are based on scientific consensus/findings of the IPCC". The application judge noted the gap between the Target and international standards as follows:

> While…it is not this Court's role to determine how Ontario's "fair" share of the remaining carbon budget should be calculated, this Court can rely on the scientific consensus that [greenhouse gas emissions] must be reduced by approximately 45% below 2010 levels by 2030, and must reach "net zero" by 2050 in order to limited global average surface warming to 1.5 [degrees Celsius] and to avoid the significantly more deleterious impacts of climate change. …[I]n order to reduce its emissions by 45% by 2030 relative to the 2010 level, Ontario would have to reduce its emissions by approximately 52% below 2005 levels by 2030. This would require a 73% increase of the Target. Put differently, the reductions contemplated by the Target will only fulfil approximately 58% of the need to reduce [greenhouse gas emissions] by approximately 45% below 2010 levels by 2030.

[73] The application judge did not determine the question of remedy because of her dismissal of the application.

> [74] If the application is ultimately successful, the question of remedy can be determined by the court. While we do not wish to foreclose the range of potential remedies that may be appropriate, we note that ordering Ontario to produce a constitutionally compliant Plan and Target, for instance, is no different than in *Khadr*, where the Supreme Court left it to Canada to determine the precise *Charter* compliant steps it needed to take. Similarly, in *Chaoulli*, while finding *Charter* breaches, McLachlin C.J., Major and Bastarache JJ. did not order what exact measures the Quebec government was required to implement in order to render its health care scheme *Charter* compliant. [footnote omitted] Whether a similar or different remedy would be appropriate in this case if the application is successful is best left for the judge hearing the application.
>
> **V. Disposition**
>
> [75] For these reasons, the appeal is allowed and the application judge's order, including her costs disposition, is set aside. The issues raised on the application must be considered afresh and through the correct analytical lens.
>
> …

The Supreme Court denied an application for leave to appeal, and cross-appeal, the Ontario Court of Appeal's decision in this case: 2025 CanLII 38373. As with economic rights, no provision of the *Charter* expressly protects environmental rights. *Do you agree that section 7 includes the right to a healthy environment? What if a state actor has not already voluntarily undertaken to reduce greenhouse gas emissions? Should section 7 extend to imposing a positive obligation on state actors to take measures to address climate change generally?* In thinking about these questions, recall that in the *BC Motor Vehicle Act Reference*, then-Justice Lamer stated in part (at para 31):

> …the principles of fundamental justice are to be found in the basic tenets of our legal system. They do not lie in the realm of general public policy but in the inherent domain of the judiciary as guardian of the justice system. Such an approach to the interpretation of "principles of fundamental justice" is consistent with the wording and structure of s. 7, the context of the section, *i.e.*, ss. 8 to 14, and the character and larger objects of the *Charter* itself. It provides meaningful content for the s. 7 guarantee all the while avoiding adjudication of policy matters. (emphasis added)

As claimants continue to bring novel claims under section 7, is there a risk that they will ask the courts to cross the line from giving "meaningful content" to section 7, to "adjudicat[ing] … policy matters"?

Chapter 24: S. 15: Equality Rights

By Joshua Sealy-Harrington and Jennifer Koshan

1 The Text

The right to equality is protected by section 15 of the *Charter*. It provides:

> Equality Rights
>
> *Equality before and under law and equal protection and benefit of law*
>
> **15 (1)** Every individual is equal before and under the law and has the right to the equal protection and equal benefit of the law without discrimination and, in particular, without discrimination based on race, national or ethnic origin, colour, religion, sex, age or mental or physical disability.
>
> *Affirmative action programs*
>
> **(2)** Subsection (1) does not preclude any law, program or activity that has as its object the amelioration of conditions of disadvantaged individuals or groups including those that are disadvantaged because of race, national or ethnic origin, colour, religion, sex, age or mental or physical disability.

Another section referencing equality is found in section 28 of the *Charter*, which provides:

> *Rights guaranteed equally to both sexes*
>
> **28** Notwithstanding anything in this Charter, the rights and freedoms referred to in it are guaranteed equally to male and female persons.

For a discussion of the limited role section 28 has played under the *Charter* so far, see Kerri A Froc, "Is Originalism Bad for Women? The Curious Case of Canada's 'Equal Rights Amendment'" (2015) 19:2 Rev Const Stud 237.

2 Key Concepts: Equality, Discrimination, and Justification

2.1 *Andrews v. Law Society of British Columbia*, 1989 CanLII 2 (SCC), [1989] 1 SCR 143

Andrews was the first Supreme Court of Canada decision to interpret section 15(1) of the *Charter*. McIntyre J. wrote the majority reasons on section 15(1), but dissented in the result, finding that an impugned citizenship requirement for entry into the legal profession was reasonable under section 1 of the *Charter*.

> The reasons of McIntyre and Lamer JJ. were delivered by
>
> MCINTYRE J. (dissenting in part) -- This appeal raises only one question. Does the citizenship requirement for entry into the legal profession contained in s. 42 of the *Barristers and Solicitors Act*, R.S.B.C. 1979, c. 26, (the "Act") contravene s. 15(1) of the *Canadian Charter of Rights and Freedoms*? Section 42 provides:
>
> **42.** The benchers may call to the Bar of the Province and admit as a solicitor of the Supreme Court
>
> *(a)* a Canadian citizen with respect to whom they are satisfied that he . . .
>
> …
>
> The respondent, Andrews, was a British subject permanently resident in Canada at the time these proceedings were commenced. He had taken law degrees at Oxford and had fulfilled all the requirements for admission to the practice of law in British Columbia, except that of Canadian citizenship. He commenced proceedings for a declaration that s. 42 of the Act violates the *Charter*…. His action was dismissed at trial before Taylor J. in the Supreme Court of British Columbia in a judgment reported at (1985), 1985 CanLII 604 (BC SC), 22 D.L.R. (4th) 9. An appeal

was allowed in the Court of Appeal (Hinkson, Craig and McLachlin JJ.A., at (1986), 1986 CanLII 1287 (BC CA), 27 D.L.R. (4th) 600), and this appeal is taken by the Law Society of British Columbia, by leave granted November 27, 1986…. On January 28, 1987, the Chief Justice stated constitutional questions in the following terms:

> (1)Does the Canadian citizenship requirement to be a lawyer in the Province of British Columbia as set out in s. 42 of the *Barristers and Solicitors Act*, R.S.B.C. 1979, c. 26 infringe or deny the rights guaranteed by s. 15(1) of the *Canadian Charter of Rights and Freedoms*?
>
> (2)If the Canadian citizenship requirement to be a lawyer in the Province of British Columbia as set out in s. 42 of the *Barristers and Solicitors Act*, R.S.B.C. 1979, c. 26 infringes or denies the rights guaranteed by s. 15(1) of the *Canadian Charter of Rights and Freedoms*, is it justified by s. 1 of the *Canadian Charter of Rights and Freedoms*?

Following the judgment in his favour, the respondent Andrews was called to the Bar and admitted as a solicitor in the Province of British Columbia and is now a Canadian citizen….

…

The Concept of Equality

Section 15(1) of the *Charter* provides for every individual a guarantee of equality before and under the law, as well as the equal protection and equal benefit of the law without discrimination. This is not a general guarantee of equality; it does not provide for equality between individuals or groups within society in a general or abstract sense, nor does it impose on individuals or groups an obligation to accord equal treatment to others. It is concerned with the application of the law. No problem regarding the scope of the word "law", as employed in s. 15(1), can arise in this case because it is an Act of the Legislature which is under attack. Whether other governmental or *quasi*-governmental regulations, rules, or requirements may be termed laws under s. 15(1) should be left for cases in which the issue arises.

The concept of equality has long been a feature of Western thought. As embodied in s. 15(1) of the *Charter*, it is an elusive concept and, more than any of the other rights and freedoms guaranteed in the *Charter*, it lacks precise definition. As has been stated by John H. Schaar, "Equality of Opportunity and Beyond", in *Nomos IX: Equality*, ed. J. Roland Pennock and John W. Chapman (1967), at p. 228:

> Equality is a protean word. It is one of those political symbols - liberty and fraternity are others -- into which men have poured the deepest urgings of their heart. Every strongly held theory or conception of equality is at once a psychology, an ethic, a theory of social relations, and a vision of the good society.

It is a comparative concept, the condition of which may only be attained or discerned by comparison with the condition of others in the social and political setting in which the question arises. It must be recognized at once, however, that every difference in treatment between individuals under the law will not necessarily result in inequality and, as well, that identical treatment may frequently produce serious inequality. This proposition has found frequent expression in the literature on the subject but, as I have noted on a previous occasion, nowhere more aptly than in the well-known words of Frankfurter J. in *Dennis v. United States*, 339 U.S. 162 (1950), at p. 184:

> It was a wise man who said that there is no greater inequality than the equal treatment of unequals.

The same thought has been expressed in this Court in the context of s. 2(*b)* of the *Charter* in *R. v. Big M Drug Mart Ltd.*, 1985 CanLII 69 (SCC), [1985] 1 SCR 295, where Dickson C.J. said at p. 347:

> The equality necessary to support religious freedom does not require identical treatment of all religions. In fact, the interests of true equality may well require differentiation in treatment.

In simple terms, then, it may be said that a law which treats all identically and which provides equality of treatment between "A" and "B" might well cause inequality for "C", depending on differences in personal characteristics and situations. To approach the ideal of full equality before and under the law -- and in human affairs an approach is all that can be expected -- the main consideration must be the impact of the law on the individual or the group concerned. Recognizing that there will always be an infinite variety of personal characteristics, capacities, entitlements and merits among those subject to a law, there must be accorded, as nearly as may be possible, an equality of benefit and protection and no more of the restrictions, penalties or burdens imposed upon one than another. In other words, the admittedly unattainable ideal should be that a law expressed to bind all should not because of irrelevant personal differences have a more burdensome or less beneficial impact on one than another.

McLachlin J.A. in the Court of Appeal expressed the view, at p. 605, that:

> . . . the essential meaning of the constitutional requirement of equal protection and equal benefit is that persons who are "similarly situated be similarly treated" and conversely, that persons who are "differently situated be differently treated" . . .

In this, she was adopting and applying as a test a proposition which seems to have been widely accepted with some modifications in both trial and appeal court decisions throughout the country on s. 15(1) of the *Charter* [citations omitted]. The reliance on this concept appears to have derived, at least in recent times, from J. T. Tussman and J. tenBroek, "The Equal Protection of Laws" (1949), 37 *Calif. L. Rev.* 341. The similarly situated test is a restatement of the Aristotelian principle of formal equality -- that "things that are alike should be treated alike, while things that are unalike should be treated unalike in proportion to their unalikeness" (*Ethica Nichomacea,* trans. W. Ross, Book V3, at p. 1131a-6 (1925)).

The test as stated, however, is seriously deficient in that it excludes any consideration of the nature of the law. If it were to be applied literally, it could be used to justify the Nuremberg laws of Adolf Hitler. Similar treatment was contemplated for all Jews. The similarly situated test would have justified the formalistic separate but equal doctrine of *Plessy v. Ferguson*, 163 U.S. 637 (1896), a doctrine that incidentally was still the law in the United States at the time that Professor Tussman and J. tenBroek wrote their much cited article…

This approach was rejected in this Court by Ritchie J. in *R. v. Drybones*, 1969 CanLII 1 (SCC), [1970] SCR 282, in a … case involving a provision of the *Indian Act* making it an offence for an Indian to be intoxicated off a reserve. He said, at p. 297:

> . . . I cannot agree with this interpretation pursuant to which it seems to me that the most glaring discriminatory legislation against a racial group would have to be construed as recognizing the right of each of its individual members "to equality before the law", so long as all the other members are being discriminated against in the same way.

Thus, mere equality of application to similarly situated groups or individuals does not afford a realistic test for a violation of equality rights. For, as has been said, a bad law will not be saved merely because it operates equally upon those to whom it has application. Nor will a law necessarily be bad because it makes distinctions.

A similarly situated test focussing on the equal application of the law to those to whom it has application could lead to results akin to those in *Bliss v. Attorney General of Canada*, 1978 CanLII 25 (SCC), [1979] 1 SCR 183. In *Bliss*, a pregnant woman was denied unemployment benefits to which she would have been entitled had she not been pregnant. She claimed that the *Unemployment Insurance Act,*

1971, violated the equality guarantees of the *Canadian Bill of Rights* because it discriminated against her on the basis of her sex. Her claim was dismissed by this Court on the grounds that there was no discrimination on the basis of sex, since the class into which she fell under the Act was that of pregnant persons, and within that class, all persons were treated equally. This case, of course, was decided before the advent of the *Charter*.

…

For the reasons outlined above, the test cannot be accepted as a fixed rule or formula for the resolution of equality questions arising under the *Charter*. Consideration must be given to the content of the law, to its purpose, and its impact upon those to whom it applies, and also upon those whom it excludes from its application. The issues which will arise from case to case are such that it would be wrong to attempt to confine these considerations within such a fixed and limited formula.

It is not every distinction or differentiation in treatment at law which will transgress the equality guarantees of s. 15 of the *Charter*. It is, of course, obvious that legislatures may -- and to govern effectively -- must treat different individuals and groups in different ways. Indeed, such distinctions are one of the main preoccupations of legislatures. The classifying of individuals and groups, the making of different provisions respecting such groups, the application of different rules, regulations, requirements and qualifications to different persons is necessary for the governance of modern society. As noted above, for the accommodation of differences, which is the essence of true equality, it will frequently be necessary to make distinctions. What kinds of distinctions will be acceptable under s. 15(1) and what kinds will violate its provisions?

In seeking an answer to these questions, the provisions of the *Charter* must have their full effect.

…

The principle of equality before the law has long been recognized as a feature of our constitutional tradition and it found statutory recognition in the *Canadian Bill of Rights*. However, unlike the *Canadian Bill of Rights*, which spoke only of equality before the law, s. 15(1) of the *Charter* provides a much broader protection. Section 15 spells out four basic rights: (1) the right to equality before the law; (2) the right to equality under the law; (3) the right to equal protection of the law; and (4) the right to equal benefit of the law. The inclusion of these last three additional rights in s. 15 of the *Charter* was an attempt to remedy some of the shortcomings of the right to equality in the *Canadian Bill of Rights*. It also reflected the expanded concept of discrimination being developed under the various Human Rights Codes since the enactment of the *Canadian Bill of Rights*. The shortcomings of the *Canadian Bill of Rights* as far as the right to equality is concerned are well known. In *Attorney General of Canada v. Lavell*, 1973 CanLII 175 (SCC), [1974] SCR 1349, for example, this Court upheld s. 12(1)(*b*) of the *Indian Act* which deprived women, but not men, of their membership in Indian Bands if they married non-Indians. The provision was held not to violate equality before the law although it might, the Court said, violate equality under the law if such were protected. In *Bliss*, *supra*, this Court held that the denial of unemployment insurance benefits to women because they were pregnant did not violate the guarantee of equality before the law, because any inequality in the protection and benefit of the law was "not created by legislation but by nature" (p. 190). … It is readily apparent that the language of s. 15 was deliberately chosen in order to remedy some of the perceived defects under the *Canadian Bill of Rights*. The antecedent statute is part of the "linguistic, philosophic and historical context" of s. 15 of the *Charter*.

It is clear that the purpose of s. 15 is to ensure equality in the formulation and application of the law. The promotion of equality entails the promotion of a society in which all are secure in the knowledge that they are recognized at law as human beings equally deserving of concern, respect and consideration. It has a large remedial component. Howland C.J. and Robins J.A. (dissenting in the result but not with respect to this comment) in *Reference re an Act to Amend the Education Act* (1986), 1986 CanLII 2863 (ON CA), 53 O.R. (2d) 513, attempt to articulate the broad range of values embraced by s. 15. They state at p. 554:

> In our view, s. 15(1) read as a whole constitutes a compendious expression of a positive right to equality in both the substance and the administration of the law. It is an all-encompassing right governing all legislative action. Like the ideals of "equal justice" and "equal access to the law", the right to equal protection and equal benefit of the law now enshrined in the *Charter* rests on the moral and ethical principle fundamental to a truly free and democratic society that all persons should be treated by the law on a footing of equality with equal concern and respect.

It must be recognized, however, as well that the promotion of equality under s. 15 has a much more specific goal than the mere elimination of distinctions. If the *Charter* was intended to eliminate all distinctions, then there would be no place for sections such as 27 (multicultural heritage); 2(*a*) (freedom of conscience and religion); 25 (aboriginal rights and freedoms); and other such provisions designed to safeguard certain distinctions. Moreover, the fact that identical treatment may frequently produce serious inequality is recognized in s. 15(2), which states that the equality rights in s. 15(1) do "not preclude any law, program or activity that has as its object the amelioration of conditions of disadvantaged individuals or groups . . ."

Discrimination

The right to equality before and under the law, and the rights to the equal protection and benefit of the law contained in s. 15, are granted with the direction contained in s. 15 itself that they be without discrimination. Discrimination is unacceptable in a democratic society because it epitomizes the worst effects of the denial of equality, and discrimination reinforced by law is particularly repugnant. The worst oppression will result from discriminatory measures having the force of law. It is against this evil that s. 15 provides a guarantee.

Discrimination as referred to in s. 15 of the *Charter* must be understood in the context of pre-*Charter* history. Prior to the enactment of s. 15(1), the Legislatures of the various provinces and the federal Parliament had passed during the previous fifty years what may be generally referred to as Human Rights Acts. With the steady increase in population from the earliest days of European emigration into Canada and with the consequential growth of industry, agriculture and commerce and the vast increase in national wealth which followed, many social problems developed. The contact of the European immigrant with the indigenous population, the steady increase in immigration bringing those of neither French nor British background, and in more recent years the greatly expanded role of women in all forms of industrial, commercial and professional activity led to much inequality and many forms of discrimination. In great part these developments, in the absence of any significant legislative protection for the victims of discrimination, called into being the Human Rights Acts…. Since then every jurisdiction in Canada has enacted broad-ranging Human Rights Acts which have attacked most of the more common forms of discrimination found in society…

What does discrimination mean? The question has arisen most commonly in a consideration of the Human Rights Acts and the general concept of discrimination under those enactments has been fairly well settled. …

I would say then that discrimination may be described as a distinction, whether intentional or not but based on grounds relating to personal characteristics of the individual or group, which has the effect of imposing burdens, obligations, or disadvantages on such individual or group not imposed upon others, or which withholds or limits access to opportunities, benefits, and advantages available to other members of society. Distinctions based on personal characteristics attributed to an individual solely on the basis of association with a group will rarely escape the charge of discrimination, while those based on an individual's merits and capacities will rarely be so classed.

The Court in the case at bar must address the issue of discrimination as the term is used in s. 15(1) of the *Charter*. In general, it may be said that the principles which have been applied under the Human Rights Acts are equally applicable in considering questions of discrimination under s. 15(1). Certain differences arising from the difference between the *Charter* and the Human Rights Acts must, however, be considered. To begin with, discrimination in s. 15(1) is limited to discrimination caused by the application or operation of law, whereas the Human Rights Acts apply also to private activities. Furthermore, and this is a distinction of more importance, all the Human Rights Acts passed in Canada specifically designate a certain limited number of grounds upon which discrimination is forbidden. Section 15(1) of the *Charter* is not so limited. The enumerated grounds in s. 15(1) are not exclusive and the limits, if any, on grounds for discrimination which may be established in future cases await definition. The enumerated grounds do, however, reflect the most common and probably the most socially destructive and historically practised bases of discrimination and must, in the words of s. 15(1), receive particular attention. Both the enumerated grounds themselves and other possible grounds of discrimination recognized under s. 15(1) must be interpreted in a broad and generous manner, reflecting the fact that they are constitutional provisions not easily repealed or amended but intended to provide a "continuing framework for the legitimate exercise of governmental power" and, at the same time, for "the unremitting protection" of equality rights: see *Hunter v. Southam Inc.*, 1984 CanLII 33 (SCC), [1984] 2 SCR 145, at p. 155.

It should be noted as well that when the Human Rights Acts create exemptions or defences, … these generally have the effect of completely removing the conduct complained of from the reach of the Act…. In the *Charter*, however, while s. 15(1), subject always to subs. (2), expresses its prohibition of discrimination in absolute terms, s. 1 makes allowance for a reasonable limit upon the operation of s. 15(1). A different approach under s. 15(1) is therefore required. While discrimination under s. 15(1) will be of the same nature and in descriptive terms will fit the concept of discrimination developed under the Human Rights Acts, a further step will be required in order to decide whether discriminatory laws can be justified under s. 1. The onus will be on the state to establish this. This is a distinct step called for under the *Charter* which is not found in most Human Rights Acts, because in those Acts justification for or defence to discrimination is generally found in specific exceptions to the substantive rights.

Relationship Between s. 15(1) and s. 1 of the *Charter*

In determining the extent of the guarantee of equality in s. 15(1) of the *Charter*, special consideration must be given to the relationship between s. 15(1) and s. 1. It is indeed the presence of s. 1 in the *Charter* and the interaction between these sections which has led to the differing approaches to a definition of the s. 15(1) right, and which has made necessary a judicial approach differing from that employed under the *Canadian Bill of Rights*…

The distinguishing feature of the *Charter*, unlike the other enactments, is that consideration of such limiting factors is made under s. 1. This Court has described the analytical approach to the *Charter* in *R. v. Oakes*, 1986 CanLII 46 (SCC), [1986] 1 SCR 103; *R. v. Edwards Books and Art Ltd.*, 1986 CanLII 12 (SCC), [1986] 2 SCR 713, and other cases, the essential feature of which is that the right guaranteeing sections be kept analytically separate from s. 1. In other words, when confronted with a problem under the *Charter*, the first question which must be answered will be whether or not an infringement of a guaranteed right has occurred. Any justification of an infringement which is found to have occurred must be made, if at all, under the broad provisions of s. 1. It must be admitted at once that the relationship between these two sections may well be difficult to determine on a wholly satisfactory basis. It is, however, important to keep them analytically distinct if for no other reason than the different attribution of the burden of proof. It is for the citizen to establish that his or her *Charter* right has been infringed and for the state to justify the infringement.

Approaches to s. 15(1)

Three main approaches have been adopted in determining the role of s. 15(1), the meaning of discrimination set out in that section, and the relationship of s. 15(1) and s. 1. The first one, which was advanced by Professor Peter Hogg in *Constitutional Law of Canada* (2nd ed. 1985) would treat every distinction drawn by law as discrimination under s. 15(1). There would then follow a consideration of the distinction under the provisions of s. 1 of the *Charter*. He said, at pp. 800-801:

> I conclude that s. 15 should be interpreted as providing for the universal application of every law. When a law draws a distinction between individuals, on any ground, that distinction is sufficient to constitute a breach of s. 15, and to move the constitutional issue to s. 1. The test of validity is that stipulated by s. 1, namely, whether the law comes within the phrase "such reasonable limits prescribed by law as can be demonstrably justified in a free and democratic society".

He reached this conclusion on the basis that, where the *Charter* right is expressed in unqualified terms, s. 1 supplies the standard of justification for any abridgment of the right. He argued that the word "discrimination" in s. 15(1) could be read as introducing a qualification in the section itself, but he preferred to read the word in a neutral sense because this reading would immediately send the matter to s. 1, which was included in the *Charter* for this purpose.

The second approach put forward by McLachlin J.A. in the Court of Appeal involved a consideration of the reasonableness and fairness of the impugned legislation under s. 15(1). She stated, as has been noted above, at p. 610:

> The ultimate question is whether a fair-minded person, weighing the purposes of legislation against its effects on the individuals adversely affected, and giving due weight to the right of the Legislature to pass laws for the good of all, would conclude that the legislative means adopted are unreasonable or unfair.

She assigned a very minor role to s. 1 which would, it appears, be limited to allowing in times of emergency, war, or other crises the passage of discriminatory legislation which would normally be impermissible.

A third approach, sometimes described as an "enumerated or analogous grounds" approach, adopts the concept that discrimination is generally expressed by the enumerated grounds. Section 15(1) is designed to prevent discrimination based on these and analogous grounds. The approach is similar to that found in human rights and civil rights statutes which have been enacted throughout Canada in recent times.

…

The analysis of discrimination in this approach must take place within the context of the enumerated grounds and those analogous to them. The words "without discrimination" require more than a mere finding of distinction between the treatment of groups or individuals. Those words are a form of qualifier built into s. 15 itself and limit those distinctions which are forbidden by the section to those which involve prejudice or disadvantage.

I would accept the criticisms of the first approach made by McLachlin J.A. in the Court of Appeal. She noted that the labelling of every legislative distinction as an infringement of s. 15(1) trivializes the fundamental rights guaranteed by the *Charter* and, secondly, that to interpret "without discrimination" as "without distinction" deprives the notion of discrimination of content.

…

In rejecting the Hogg approach, I would say that it draws a straight line from the finding of a distinction to a determination of its validity under s. 1, but my objection would be that it virtually denies any role for s. 15(1).

> I would reject, as well, the approach adopted by McLachlin J.A. She seeks to define discrimination under s. 15(1) as an unjustifiable or unreasonable distinction. In so doing she avoids the mere distinction test but also makes a radical departure from the analytical approach to the *Charter* which has been approved by this Court. In the result, the determination would be made under s. 15(1) and virtually no role would be left for s. 1.
>
> The third or "enumerated and analogous grounds" approach most closely accords with the purposes of s. 15 and the definition of discrimination outlined above and leaves questions of justification to s. 1. However, in assessing whether a complainant's rights have been infringed under s. 15(1), it is not enough to focus only on the alleged ground of discrimination and decide whether or not it is an enumerated or analogous ground. The effect of the impugned distinction or classification on the complainant must be considered. Once it is accepted that not all distinctions and differentiations created by law are discriminatory, then a role must be assigned to s. 15(1) which goes beyond the mere recognition of a legal distinction. A complainant under s. 15(1) must show not only that he or she is not receiving equal treatment before and under the law or that the law has a differential impact on him or her in the protection or benefit accorded by law but, in addition, must show that the legislative impact of the law is discriminatory.
>
> Where discrimination is found a breach of s. 15(1) has occurred and -- where s. 15(2) is not applicable -- any justification, any consideration of the reasonableness of the enactment; indeed, any consideration of factors which could justify the discrimination and support the constitutionality of the impugned enactment would take place under s. 1. This approach would conform with the directions of this Court in earlier decisions concerning the application of s. 1 and at the same time would allow for the screening out of the obviously trivial and vexatious claim. In this, it would provide a workable approach to the problem.
>
> It would seem to me apparent that a legislative distinction has been made by s. 42 of the *Barristers and Solicitors Act* between citizens and non-citizens with respect to the practice of law. The distinction would deny admission to the practice of law to non-citizens who in all other respects are qualified. Have the respondents, because of s. 42 of the Act, been denied equality before and under the law or the equal protection of the law? In practical terms it should be noted that the citizenship requirement affects only those non-citizens who are permanent residents. The permanent resident must wait for a minimum of three years from the date of establishing permanent residence status before citizenship may be acquired. The distinction therefore imposes a burden in the form of some delay on permanent residents who have acquired all or some of their legal training abroad and is, therefore, discriminatory.
>
> The rights guaranteed in s. 15(1) apply to all persons whether citizens or not. A rule which bars an entire class of persons from certain forms of employment, solely on the grounds of a lack of citizenship status and without consideration of educational and professional qualifications or the other attributes or merits of individuals in the group, would, in my view, infringe s. 15 equality rights. Non-citizens, lawfully permanent residents of Canada, are -- in the words of the U.S. Supreme Court in *United States v. Carolene Products Co.*, 304 U.S. 144 (1938), at pp. 152-53, n. 4, subsequently affirmed in *Graham v. Richardson*, 403 U.S. 365 (1971), at p. 372 -- a good example of a "discrete and insular minority" who come within the protection of s. 15.
>
> [In separate concurring reasons, Wilson J and La Forest J agreed that the Act's citizenship requirement infringed section 15(1). Wilson J wrote the majority reasons on section 1, holding that the *Oakes* test should apply without modification to section 15(1) and that the infringement of section 15(1) could not be justified.]

2.2 Notes and Questions

1. *Andrews* is often said to have adopted "substantive equality" as the underlying purpose of section 15, although the Court did not use that term until *Eldridge v. British Columbia (Attorney General)*, 1997 CanLII 327 (SCC), [1997] 3 SCR 624. **How would you define substantive equality and distinguish its approach from that of formal equality? Is formal equality sufficient in some cases to achieve equality of results? What is the connection between substantive (in)equality and systemic (in)equality?** For a discussion of these concepts see Colleen Sheppard, *Inclusive Equality: The Relational Dimensions of Systemic Discrimination in Canada* (Montreal: McGill-Queen's University Press, 2010); Carissima Mathen, "Equality before the Charter: Reflections on *Fraser v Canada (Attorney (General)*" (2022) 104 SCLR (2d) 105; William Black, Jennifer Koshan and Lynn Smith, "The Equality Rights", in Stéphane Beaulac and Errol Mendes, eds, *Canadian Charter of Rights and Freedoms*, 6th Edition (LexisNexis, 2025).

   The connection between section 15(2) and substantive equality is discussed below in Part 5 of this Chapter.

2. The test for determining a violation of section 15(1) was articulated in *Andrews*, at para 174, as follows:

   > discrimination may be described as a distinction, whether intentional or not but based on grounds relating to personal characteristics of the individual or group, which has the effect of imposing burdens, obligations, or disadvantages on such individual or group not imposed upon others, or which withholds or limits access to opportunities, benefits, and advantages available to other members of society.

   The analytical framework for section 15(1) has been subject to differing interpretations over the years. Although the Court has always required proof of a distinction (either direct or indirect) based on enumerated or analogous grounds as a first step, the question of what constitutes "discrimination" has changed over time. For example, in *Law v Canada (Minister of Employment and Immigration*), 1999 CanLII 675 (SCC), [1999] 1 SCR 497, the Court's definition of discrimination focused on human dignity, with the purpose of section 15(1) said to be:

   > to prevent the violation of essential human dignity and freedom through the imposition of disadvantage, stereotyping, or political or social prejudice, and to promote a society in which all persons enjoy equal recognition at law as human beings or as members of Canadian society, equally capable and equally deserving of concern, respect and consideration. (at para 88 per Iacobucci, J, writing for a unanimous Court)

   While this might seem like a fulsome definition of equality, the Court set out four contextual factors relevant to the assessment of human dignity, some of which were difficult for claimants to prove: (1) Pre-existing disadvantage, stereotyping, prejudice, or vulnerability experienced by the individual or group at issue; (2) The correspondence, or lack thereof, between the ground or grounds on which the claim is based and the actual need, capacity, or circumstances of the claimant or others; (3) The ameliorative purpose or effects of the impugned law upon a more disadvantaged person or group in society; and (4) The nature and scope of the interest affected by the impugned law (*Law* at para 88).

   The focus on human dignity as a measure of discrimination and four contextual factors – especially factors (2) and (3) – were barriers to proving equality claims during the *Law* era (see e.g. Bruce Ryder, Cidalia C. Faria, and Emily Lawrence, "What's *Law* Good For?: An Empirical Overview of Charter Equality Rights Decisions" (2004) 24:1 SCLR (2d) 103). The problems with this approach were recognized in *R. v. Kapp*, 2008 SCC 41 (CanLII), [2008] 2 SCR 483 at para 22, where the majority reasons authored by McLachlin C.J. and Abella J. noted that the human dignity test was overly abstract and malleable and subject to formalistic interpretation. *Kapp* reformulated the analytical framework for section 15(1) as:

   > (1) Does the law create a distinction based on an enumerated or analogous ground? (2) Does the distinction create a disadvantage by perpetuating prejudice or stereotyping? (at para 17)

This test was also subject to critique, in part because prejudice and stereotyping were too narrow a focus for assessing discrimination. See e.g. Margot E. Young, "Unequal to the Task: 'Kapp'ing the Substantive Potential of Section 15" (2010) 50 SCLR (2d) 183.

Most recently, the test for section 15(1) violations has largely returned to the formulation from *Andrews,* with "discrimination" at step 2 focused on whether the law reinforces, perpetuates, or exacerbates disadvantage. See *Dickson v. Vuntut Gwitchin First Nation*, 2024 SCC 10 (CanLII) at para 188, where Kasirer and Jamal JJ., for the majority, stated that a section 15(1) claimant must prove that:

> the impugned law or state action: (a) on its face or in its impact, creates a distinction based on enumerated or analogous grounds; and (b) imposes a burden or denies a benefit in a manner that has the effect of reinforcing, perpetuating, or exacerbating disadvantage.

Some commentators have argued that the changing test for section 15(1) creates confusion for claimants and lower courts (not to mention students). See e.g. Jennifer Koshan and Jonnette Watson Hamilton, "The Continual Reinvention of Section 15 of the Charter" (2013) 64 UNB LJ 19. Others have argued that shifting approaches to the test are predictable and don't matter to the outcome as much as ideological divisions amongst members of the Court and different conceptions of equality (i.e., corrective of state wrongs versus distributive in addressing socio-economic inequalities) and the role of courts in advancing these types of equality. See e.g. Fay Faraday, "The Elephant in the Room and Straw Men on Fire" (2021) 30 Const F 15; Joshua Sealy-Harrington, "The Alchemy of Equality Rights" (2021) 30 Const F 53; Richard Moon, "Comment on *Fraser v Canada (AG):* The More Things Change" (2021) 30 Const F 85. Some commentators also note how the four equality rights in the text of section 15(1) have been overshadowed by the Court's focus on "discrimination." See Mary Eberts and Kim Stanton, "The Disappearance of the Four Equality Rights and Systemic Discrimination from Canadian Equality Jurisprudence" (2018) 38:1 NJ Con Law 89. For an alternative version of *Andrews* that takes the four equality rights seriously, see Melina Buckley, "Reference re: *Andrews v Law Society of British Columbia*" (2018) 30:2 CJWL 197.

How important is the test for section 15(1) in achieving its purpose, substantive equality?

3. *Andrews* recognized that both direct and indirect/adverse effects discrimination are prohibited by section 15(1). Step 1 of the current formulation of the test for section 15(1) incorporates both types of discrimination by looking for a grounds-based distinction in the law or state action "on its face or in its impact." *Andrews* is a good example of a case involving direct discrimination, as the citizenship requirement was evident on the face of the legislation. Cases involving claims of adverse effects discrimination – i.e., where the government action is said to be facially neutral, with differential or disproportionate impacts on protected grounds – are discussed in Part 3 of this Chapter below.

4. *Andrews* emphasized that equality is a comparative concept, while at the same time warning "against a sterile similarly situated test focussed on treating 'likes' alike" (*Kapp, supra* at para 15). Despite this warning, comparative analysis under section 15(1) has sometimes been undertaken in a formalistic manner that has resulted in the rejection of equality rights claims (see e.g. *Hodge v. Canada (Minister of Human Resources Development)*, 2004 SCC 65 (Can LII), [2004] 3 SCR 357; *Auton (Guardian ad litem of) v. British Columbia (Attorney General)*, 2004 SCC 78 (CanLII), [2004] 3 SCR 657; for commentary see e.g. Daphne Gilbert and Diana Majury, "Critical Comparisons: The Supreme Court of Canada Dooms Section 15" (2006), 24 Windsor Y.B. Access Just. 111).

   In a companion case to *Kapp*, *Withler v. Canada (Attorney General)*, 2011 SCC 12 (CanLII), [2011] 1 SCR 396, the Court recognized the problems with a formalistic or "mirror" comparative analysis, in which the appropriate comparator group was that which "'mirrors the characteristics of the claimant (or claimant group) relevant to the benefit or advantage sought' except for the personal characteristic on which the claim was based" (*Withler*, at para 49). Writing for a unanimous Court, McLachlin C.J. and Abella J. had this to say about the proper approach to comparison:

   > It is unnecessary to pinpoint a particular group that precisely corresponds to the claimant group except for the personal characteristic or characteristics alleged to ground the discrimination. Provided that the claimant establishes a distinction based on one or more enumerated or analogous grounds, the claim should proceed to the second step of the analysis. This provides the flexibility required to accommodate claims based on intersecting grounds of discrimination. It also avoids the problem of eliminating claims at the outset because no precisely corresponding group can be posited. (*Withler*, at para 63)

   The Court also noted that multiple comparators may be relevant in some cases (at paras 58, 72). At the same time, they stated that in adverse effects discrimination cases, comparison may not be as straightforward and "the claimant will have more work to do at the first step. Historical or sociological disadvantage may assist in demonstrating that the law imposes a burden or denies a benefit to the claimant that is not imposed on or denied to others. The focus will be on the effect of the law and the situation of the claimant group" (at para 64). Comparison is also relevant at step 2, where it "may bolster the contextual understanding of a claimant's place within a legislative scheme and society at large, and thus help to determine whether the impugned law or decision perpetuates disadvantage or stereotyping" (at para 65). **Is it possible to conceive of an approach to equality rights that is not comparative? If a claimant group has particular needs that are not shared by other groups, how might comparative analysis be undertaken in such a case?**

5. *Andrews* kept separate the section 15(1) and section 1 stages of analysis by rejecting the BC Court of Appeal's suggestion that the reasonableness and fairness of the impugned legislation should be considered under section 15(1). However, *Andrews* did state that "a law expressed to bind all should not because of *irrelevant personal differences* have a more burdensome or less beneficial impact on one than another" (at para 165). This attention to the "relevance" of the ground(s) at play has come up in different ways since *Andrews.* It was the focus of a majority of members of the Court in a 1995 trilogy of cases: *Miron v. Trudel*, 1995 CanLII 97 (SCC), [1995] 2 SCR 418; *Egan v. Canada*, 1995 CanLII 98 (SCC), [1995] 2 SCR 513; and *Thibaudeau v. Canada*, 1995 CanLII 99 (SCC), [1995] 2 SCR 627. Similarly, *Law v. Canada* stipulated that whether the impugned law corresponded to the actual needs, capacities, and circumstances of the claimant group was a contextual factor under section 15(1) (at paras 70-71). Other cases have focused on whether the law imposes "arbitrary" disadvantage on the claimant (see e.g. *Kahkewistahaw First Nation v. Taypotat*, 2015 SCC 30 (CanLII), [2015] 2 SCR 548) or have reviewed the broader legislative context and government objectives in assessing section 15(1) (see e.g. *Withler*, *supra*). Whether these are required considerations under section 15(1), or are better left to section 1, was explicitly addressed in *Fraser v. Canada (Attorney General)*, 2020 SCC 28 (CanLII), [2020] 3 SCR 113 and *R. v. Sharma,* 2022 SCC 39 (CanLII), which are excerpted in Part 14.3.

   Does assessment of the relevance or arbitrariness of personal characteristics in relation to the impugned law or state action improperly import section 1 matters into section 15(1)? Does it return to a formal equality approach where the focus is on treating likes alike? Why might courts be inclined to use this approach in the section 15(1) analysis? For discussion see e.g. Sheilah Martin, "Balancing Individual Rights to Equality and Social Goals" (2001) 80 Can B Rev 299; Denise Réaume, "The Relevance of Relevance to Equality Rights" (2006) 31 Queen's LJ 696; Sonia Lawrence, "Equality and Anti-discrimination: The Relationship between Government Goals and Finding Discrimination in Section 15" in Peter Oliver et al, ed, *Oxford Handbook of the Canadian Constitution* (Oxford University Press, 2017).

3 Adverse Effects Discrimination

As discussed above—in Part 2: "Key Concepts: Equality, Discrimination, and Justification"—section 15 has been interpreted to include more than simply "direct" or "intentional" discrimination, which is an explicit departure from the formal equality doctrine in American constitutional law under the Equal Protection Clause. Indeed, adverse effects discrimination had been recognized in human rights jurisprudence in Canada since the mid-1980s, which influenced the interpretation of section 15 of the *Charter* in *Andrews* and subsequent cases.

At the same time, the cases below explore the contested boundaries of adverse effects claims, and relatedly, the meaning of substantive equality under section 15 in various circumstances of social hierarchy, e.g., disability (*Eldridge*), sexuality (*Vriend*), gender (*Fraser*), and race/Indigeneity (*Sharma*).

3.1 *Eldridge v. British Columbia (Attorney General)*, 1997 CanLII 327 (SCC), [1997] 3 SCR 624

Eldridge concerned disability discrimination. It addressed "whether a provincial government's failure to provide funding for sign language interpreters for deaf persons when they receive medical services" infringes s. 15(1) of the *Charter* (at para 1). The Court unanimously held that it did, and discussed discrimination in the following terms.

> The judgment of the Court was delivered by
>
> //*La Forest J.*//
>
> …
>
> 58 … While this Court has not adopted a uniform approach to s. 15(1), there is broad agreement on the general analytic framework … A person claiming a violation of s. 15(1) must first establish that, because of a distinction drawn between the claimant and others, the claimant has been denied "equal protection" or "equal benefit" of the law. Secondly, the claimant must show that the denial constitutes discrimination on the basis of one of the enumerated grounds listed in s. 15(1) or one analogous thereto …
>
> 59 … There is no question that the distinction here is based on a personal characteristic that is irrelevant to the functional values underlying the health care system. Those values consist of the promotion of health and the prevention and treatment of illness and disease, and the realization of those values through the vehicle of a publicly funded health care system. There could be no personal characteristic less relevant to these values than an individual's physical disability.
>
> 60 The only question in this case, then, is whether the appellants have been afforded "equal benefit of the law without discrimination" within the meaning of s. 15(1) of the *Charter*. On its face, the medicare system in British Columbia applies equally to the deaf and hearing populations. It does not make an explicit "distinction" based on disability by singling out deaf persons for different treatment. Both deaf and hearing persons are entitled to receive certain medical services free of charge. The appellants nevertheless contend that the lack of funding for sign language interpreters renders them unable to benefit from this legislation to the same extent as hearing persons. Their claim, in other words, is one of "adverse effects" discrimination.
>
> 61 This Court has consistently held that s. 15(1) of the *Charter* protects against this type of discrimination. In *Andrews*, *supra*, McIntyre J. found that facially neutral laws may be discriminatory. "It must be recognized at once", he commented, at p. 164, ". . . that every difference in treatment between individuals under the law will not necessarily result in inequality and, as well, that identical treatment may frequently produce serious inequality"; see also *Big M Drug Mart Ltd.*, *supra*, at p. 347. Section 15(1), the Court held, was intended to ensure a measure of substantive, and not merely formal equality.
>
> 62 As a corollary to this principle, this Court has also concluded that a discriminatory purpose or intention is not a necessary condition of a s. 15(1) violation … A legal distinction need not be motivated by a desire to disadvantage an individual or group in order to violate s. 15(1). It is sufficient if the effect of the legislation is to deny someone the equal protection or benefit of the law. As McIntyre J. stated in *Andrews*, at p. 165, "[t]o approach the ideal of full equality before and under the law . . . the main consideration must be the impact of the law on the individual or the group concerned". In this the Court has staked out a different path than the United States Supreme Court, which requires a discriminatory intent in order to ground an equal protection claim under the Fourteenth Amendment of the Constitution ...
>
> 63 This Court first addressed the concept of adverse effects discrimination in the context of provincial human rights legislation. In *Simpsons-Sears*, the Court was faced with the question of whether a rule requiring employees to be available for work on Friday evenings and Saturdays discriminated against those observing a Saturday Sabbath. Though this rule was neutral on its face in that it applied equally to all employees, the Court nevertheless found it to be discriminatory. Writing for the Court, McIntyre J. commented as follows, at p. 551:
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> > A distinction must be made between what I would describe as direct discrimination and the concept already referred to as adverse effect discrimination in connection with employment. Direct discrimination occurs in this connection where an employer adopts a practice or rule which on its face discriminates on a prohibited ground. For example, "No Catholics or no women or no blacks employed here." . . . On the other hand, there is the concept of adverse effect discrimination. It arises where an employer for genuine business reasons adopts a rule or standard which is on its face neutral, and which will apply equally to all employees, but which has a discriminatory effect upon a prohibited ground on one employee or group of employees in that it imposes, because of some special characteristic of the employee or group, obligations, penalties, or restrictive conditions not imposed on other members of the work force.
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> …
>
> 66 … [I]n the present case the adverse effects suffered by deaf persons stem not from the imposition of a burden not faced by the mainstream population, but rather from a failure to ensure that they benefit equally from a service offered to everyone. It is on this basis that the trial judge and the majority of the Court of Appeal found that the failure to provide medically related sign language interpretation was not discriminatory. Their analyses presuppose that there is a categorical distinction to be made between state-imposed burdens and benefits, and that the government is not obliged to ameliorate disadvantage that it has not helped to create or exacerbate.
>
> …
>
> 69 While this approach has a certain formal, logical coherence, in my view it seriously mischaracterizes the practical reality of health care delivery. Effective communication is quite obviously an integral part of the provision of medical services. At trial, the appellants presented evidence that miscommunication can lead to misdiagnosis or a failure to follow a recommended treatment. This risk is particularly acute in emergency situations, as illustrated by the appellant Linda Warren's experience during the premature birth of her twin daughters. That adequate communication is essential to proper medical care is surely so incontrovertible that the Court could, if necessary, take judicial notice of it. As Professor Pothier observes, for the hearing population "conversation between doctor and patient is so basic to the provision of medical services that it is taken for granted"; see Dianne Pothier, "M'Aider, Mayday: Section 15 of the *Charter* in Distress" (1996), 6 *N.J.C.L.* 295, at p. 335.
>
> …
>
> 72 Once it is accepted that effective communication is an indispensable component of the delivery of medical services, it becomes much more difficult to assert that the failure to ensure that deaf persons communicate effectively with their health care providers is not discriminatory. In their effort to persuade this Court otherwise, the respondents and their supporting interveners maintain that s. 15(1) does not

oblige governments to implement programs to alleviate disadvantages that exist independently of state action. Adverse effects only arise from benefit programs, they aver, when those programs exacerbate the disparities between the group claiming a s. 15(1) violation and the general population. They assert, in other words, that governments should be entitled to provide benefits to the general population without ensuring that disadvantaged members of society have the resources to take full advantage of those benefits.

73 In my view, this position bespeaks a thin and impoverished vision of s. 15(1). It is belied, more importantly, by the thrust of this Court's equality jurisprudence. It has been suggested that s. 15(1) of the *Charter* does not oblige the state to take positive actions, such as provide services to ameliorate the symptoms of systemic or general inequality … Whether or not this is true in all cases, and I do not purport to decide the matter here, the question raised in the present case is of a wholly different order. This Court has repeatedly held that once the state does provide a benefit, it is obliged to do so in a non-discriminatory manner … In many circumstances, this will require governments to take positive action, for example by extending the scope of a benefit to a previously excluded class of persons … Moreover, it has been suggested that, in taking this sort of positive action, the government should not be the source of further inequality …

74 The same principle has been applied by this Court in its interpretation of the equality provisions of provincial human rights legislation. In *Brooks v. Canada Safeway Ltd*., 1989 CanLII 96 (SCC), [1989] 1 SCR 1219, the Court found that an employer's accident and sickness insurance plan, which disentitled pregnant women from receiving benefits for any reason during a certain period, discriminated on the basis of pregnancy and hence sex. In so holding, it resoundingly rejected the reasoning of *Bliss v. Attorney General of Canada*, 1978 CanLII 25 (SCC), [1979] 1 SCR 183, at p. 190, which had held that the inequality resulting from a similar benefit program was "not created by legislation but by nature".

…

77 This Court has consistently held, then, that discrimination can arise both from the adverse effects of rules of general application as well as from express distinctions flowing from the distribution of benefits. Given this state of affairs, I can think of no principled reason why it should not be possible to establish a claim of discrimination based on the adverse effects of a facially neutral benefit scheme. Section 15(1) expressly states, after all, that "[e]very individual is equal before and under the law and has the right to the equal protection and equal benefit of the law without discrimination . . ." (emphasis added). The provision makes no distinction between laws that impose unequal burdens and those that deny equal benefits. If we accept the concept of adverse effect discrimination, it seems inevitable, at least at the s. 15(1) stage of analysis, that the government will be required to take special measures to ensure that disadvantaged groups are able to benefit equally from government services. As I will develop below, if there are policy reasons in favour of limiting the government's responsibility to ameliorate disadvantage in the provision of benefits and services, those policies are more appropriately considered in determining whether any violation of s. 15(1) is saved by s. 1 of the *Charter*.

…

80 In my view, therefore, the failure of the Medical Services Commission and hospitals to provide sign language interpretation where it is necessary for effective communication constitutes a *prima facie* violation of the s. 15(1) rights of deaf persons. This failure denies them the equal benefit of the law and discriminates against them in comparison with hearing persons.

3.2 *Vriend v. Alberta*, 1998 CanLII 816 (SCC), [1998] 1 SCR 493

Vriend concerned discrimination against sexual minorities. It addressed Alberta's "comprehensive scheme for the protection of individuals from discrimination in the private sector" (at para 94), but which excluded "sexual orientation" as a prohibited ground of discrimination. The Court unanimously held that this exclusion infringed section 15(1) of the *Charter*, albeit in three different opinions. The majority opinion—co-authored by Cory and Iacobucci JJ.—discussed discrimination as follows.

The judgment of Lamer C.J. and Gonthier, Cory, McLachlin, Iacobucci and Bastarache was delivered by

1 CORY AND IACOBUCCI JJ. …

…

75 The respondents have argued that because the *IRPA* merely omits any reference to sexual orientation, this "neutral silence" cannot be understood as creating a distinction. They contend that the *IRPA* extends full protection on the grounds contained within it to heterosexuals and homosexuals alike, and therefore there is no distinction and hence no discrimination. It is the respondents' position that if any distinction is made on the basis of sexual orientation that distinction exists because it is present in society and not because of the *IRPA*.

76 These arguments cannot be accepted. They are based on that "thin and impoverished" notion of equality referred to in *Eldridge* (at para. 73). It has been repeatedly held that identical treatment will not always constitute equal treatment (see for example *Andrews*, *supra*, at p. 164). It is also clear that the way in which an exclusion is worded should not disguise the nature of the exclusion so as to allow differently drafted exclusions to be treated differently …

77 The respondents concede that if homosexuals were excluded altogether from the protection of the *IRPA* in the sense that they were not protected from discrimination on any grounds, this would be discriminatory. Clearly that would be discrimination of the most egregious kind. It is true that gay and lesbian individuals are not entirely excluded from the protection of the *IRPA*. They can claim protection on some grounds. Yet that certainly does not mean that there is no discrimination present. For example, the fact that a lesbian and a heterosexual woman are both entitled to bring a complaint of discrimination on the basis of gender does not mean that they have equal protection under the Act. Lesbian and gay individuals are still denied protection under the ground that may be the most significant for them, discrimination on the basis of sexual orientation …

80 If the mere silence of the legislation was enough to remove it from s. 15(1) scrutiny then any legislature could easily avoid the objects of s. 15(1) simply by drafting laws which omitted reference to excluded groups. Such an approach would ignore the recognition that this Court has given to the principle that discrimination can arise from underinclusive legislation. This principle was expressed with great clarity by Dickson C.J. in *Brooks v. Canada Safeway Ltd.*, 1989 CanLII 96 (SCC), [1989] 1 SCR 1219, at p. 1240. There he stated: "Underinclusion may be simply a backhanded way of permitting discrimination".

81 It is clear that the *IRPA*, by reason of its underinclusiveness, does create a distinction. The distinction is simultaneously drawn along two different lines. The first is the distinction between homosexuals, on one hand, and other disadvantaged groups which are protected under the Act, on the other. Gays and lesbians do not even have formal equality with reference to other protected groups, since those other groups are explicitly included and they are not.

82 The second distinction, and, I think, the more fundamental one, is between homosexuals and heterosexuals. This distinction may be more difficult to see because there is, on the surface, a measure of formal equality: gay or lesbian individuals have the same access as heterosexual individuals to the protection of the *IRPA* in the sense that they could complain to the Commission about an incident of

discrimination on the basis of any of the grounds currently included. However, the exclusion of the ground of sexual orientation, considered in the context of the social reality of discrimination against gays and lesbians, clearly has a disproportionate impact on them as opposed to heterosexuals. Therefore the *IRPA* in its underinclusive state denies substantive equality to the former group …

84 [T]he respondents' contention that the distinction is not created by law, but rather exists independently of the *IRPA* in society, cannot be accepted. It is, of course, true that discrimination against gays and lesbians exists in society. The reality of this cruel and unfortunate discrimination was recognized in *Egan*. Indeed it provides the context in which the legislative distinction challenged in this case must be analysed. The reality of society's discrimination against lesbians and gay men demonstrates that there is a distinction drawn in the *IRPA* which denies these groups equal protection of the law by excluding lesbians and gay men from its protection, the very protection they so urgently need because of the existence of discrimination against them in society. It is not necessary to find that the legislation creates the discrimination existing in society in order to determine that it creates a potentially discriminatory distinction …

86 The omission of sexual orientation as a protected ground in the *IRPA* creates a distinction on the basis of sexual orientation. The "silence" of the *IRPA* with respect to discrimination on the ground of sexual orientation is not "neutral". Gay men and lesbians are treated differently from other disadvantaged groups and from heterosexuals. They, unlike gays and lesbians, receive protection from discrimination on the grounds that are likely to be relevant to them …

94 The effects of the exclusion of sexual orientation from the protected grounds listed in the *IRPA* must be understood in the context of the nature and purpose of the legislation. The *IRPA* is a broad, comprehensive scheme for the protection of individuals from discrimination in the private sector …

95 The commendable goal of the legislation, then, is to affirm and give effect to the principle that all persons are equal in dignity and rights. It prohibits discrimination in a number of areas and with respect to an increasingly expansive list of grounds.

96 The comprehensive nature of the Act must be taken into account in considering the effect of excluding one ground from its protection. It is not as if the Legislature had merely chosen to deal with one type of discrimination. In such a case it might be permissible to target only that specific type of discrimination and not another … The case at bar presents a very different situation. It is concerned with legislation that purports to provide comprehensive protection from discrimination for all individuals in Alberta. The selective exclusion of one group from that comprehensive protection therefore has a very different effect.

97 The first and most obvious effect of the exclusion of sexual orientation is that lesbians or gay men who experience discrimination on the basis of their sexual orientation are denied recourse to the mechanisms set up by the *IRPA* to make a formal complaint of discrimination and seek a legal remedy. Thus, the Alberta Human Rights Commission could not hear Vriend's complaint and cannot consider a complaint or take any action on behalf of any person who has suffered discrimination on the ground of sexual orientation. The denial of access to remedial procedures for discrimination on the ground of sexual orientation must have dire and demeaning consequences for those affected. This result is exacerbated both because the option of a civil remedy for discrimination is precluded and by the lack of success that lesbian women and gay men have had in attempting to obtain a remedy for discrimination on the ground of sexual orientation by complaining on other grounds such as sex or marital status. Persons who are discriminated against on the ground of sexual orientation, unlike others protected by the Act, are left without effective legal recourse for the discrimination they have suffered …

99 Apart from the immediate effect of the denial of recourse in cases of discrimination, there are other effects which, while perhaps less obvious, are at least as harmful. In *Haig*, the Ontario Court of Appeal based its finding of discrimination on both the "failure to provide an avenue for redress for prejudicial treatment of homosexual members of society" and "the possible inference from the omission that such treatment is acceptable" (p. 503). It can be reasonably inferred that the absence of any legal recourse for discrimination on the ground of sexual orientation perpetuates and even encourages that kind of discrimination. The respondents contend that it cannot be assumed that the "silence" of the *IRPA* reinforces or perpetuates discrimination, since governments "cannot legislate attitudes". However, this argument seems disingenuous in light of the stated purpose of the *IRPA*, to prevent discrimination. It cannot be claimed that human rights legislation will help to protect individuals from discrimination, and at the same time contend that an exclusion from the legislation will have no effect.

100 However, let us assume, contrary to all reasonable inferences, that exclusion from the *IRPA*'s protection does not actually contribute to a greater incidence of discrimination on the excluded ground. Nonetheless that exclusion, deliberately chosen in the face of clear findings that discrimination on the ground of sexual orientation does exist in society, sends a strong and sinister message. The very fact that sexual orientation is excluded from the *IRPA*, which is the Government's primary statement of policy against discrimination, certainly suggests that discrimination on the ground of sexual orientation is not as serious or as deserving of condemnation as other forms of discrimination. It could well be said that it is tantamount to condoning or even encouraging discrimination against lesbians and gay men. Thus this exclusion clearly gives rise to an effect which constitutes discrimination.

101 The exclusion sends a message to all Albertans that it is permissible, and perhaps even acceptable, to discriminate against individuals on the basis of their sexual orientation. The effect of that message on gays and lesbians is one whose significance cannot be underestimated. As a practical matter, it tells them that they have no protection from discrimination on the basis of their sexual orientation. Deprived of any legal redress they must accept and live in constant fear of discrimination. These are burdens which are not imposed on heterosexuals.

102 Perhaps most important is the psychological harm which may ensue from this state of affairs. Fear of discrimination will logically lead to concealment of true identity and this must be harmful to personal confidence and self-esteem. Compounding that effect is the implicit message conveyed by the exclusion, that gays and lesbians, unlike other individuals, are not worthy of protection. This is clearly an example of a distinction which demeans the individual and strengthens and perpetrates the view that gays and lesbians are less worthy of protection as individuals in Canada's society. The potential harm to the dignity and perceived worth of gay and lesbian individuals constitutes a particularly cruel form of discrimination.

103 Even if the discrimination is experienced at the hands of private individuals, it is the state that denies protection from that discrimination. Thus the adverse effects are particularly invidious …

104 In excluding sexual orientation from the *IRPA*'s protection, the Government has, in effect, stated that "all persons are equal in dignity and rights", except gay men and lesbians. Such a message, even if it is only implicit, must offend s. 15(1), the "section of the *Charter*, more than any other, which recognizes and cherishes the innate human dignity of every individual" (*Egan*, at para. 128). This effect, together with the denial to individuals of any effective legal recourse in the event they are discriminated against on the ground of sexual orientation, amount to a sufficient basis on which to conclude that the distinction created by the exclusion from the *IRPA* constitutes discrimination …

107 In summary, this Court has no choice but to conclude that the *IRPA*, by reason of the omission of sexual orientation as a protected ground, clearly violates s. 15 of the Charter. The *IRPA* in its underinclusive state creates a distinction which results in the denial of the equal benefit and protection of the law on the basis of sexual orientation, a personal characteristic which has been found to be analogous to the grounds enumerated in s. 15. This, in itself, would be sufficient to conclude that discrimination is present and therefore there is a violation of s. 15. The serious discriminatory effects of the exclusion of sexual orientation from the Act reinforce this conclusion. As a result, it is clear that the *IRPA*, as it stands, violates the equality rights of the appellant Vriend and of other gays and lesbians …

3.3 *Fraser v. Canada (Attorney General)*, 2020 SCC 28 (CanLII), [2020] 3 SCR 113

Fraser concerned sex discrimination. It addressed a pension scheme that excluded job-sharing employees—disproportionately, women with childcare obligations—from a buy-back option that let those employees top up their pension contributions to qualify for equivalent pension entitlements as other employees—disproportionately, men—who worked full time. The top-up contributions were paid entirely by the employees and not their employer, the RCMP (see para 14). Writing for a majority of the Court, Abella J. found the exclusion discriminatory under s. 15(1), and provided the Court's most detailed examination of adverse effects/systemic discrimination, while Brown, Rowe, and Côté JJ. dissented.

The judgment of Wagner C.J. and Abella, Moldaver, Karakatsanis, Martin and Kasirer JJ. was delivered by

[1] ABELLA J. …

…

[28] Ms. Fraser does not suggest that the negative pension consequences of job-sharing are explicitly based on sex. Rather, she claims that they have an adverse *impact* on women with children.

[29] How adverse impact or systemic discrimination is applied has received extensive academic consideration (see, for example, Colleen Sheppard, *Inclusive Equality: The Relational Dimensions of Systemic Discrimination in Canada* (2010), at pp. 19-21; Evelyn Braun, "Adverse Effect Discrimination: Proving the *Prima Facie* Case" (2005), 11 *Rev. Const. Stud.* 119; Jonnette Watson Hamilton and Jennifer Koshan, "Adverse Impact: The Supreme Court's Approach to Adverse Effects Discrimination under Section 15 of the *Charter*" (2015), 19 *Rev. Const. Stud.* 191; Michèle Rivet and Anne-Marie Santorineos, "Juger à l'ère des droits fondamentaux" (2012), 42 *R.D.U.S.* 363, at p. 374; Diane L. Demers, "La discrimination systémique: variation sur un concept unique" (1993), 8 *C.J.L.S.* 83; Lisa Philipps and Margot Young, "Sex, Tax and the *Charter*: A Review of *Thibaudeau v. Canada*" (1995), 2 *Rev. Const. Stud.* 221). As Prof. Colleen Sheppard notes:

> Why is it so critical to expand on our understanding of adverse effect discrimination? If we do not, there is a significant risk that discrimination embedded in apparently neutral institutional policies, rules, or procedures will not be recognized as discriminatory. This risk is accentuated by the necessity in anti-discrimination law to connect the experience of exclusion, harm, prejudice, or disadvantage to a recognized ground of discrimination. . . . We need a sophisticated and coherent theory of adverse effect discrimination to assist claimants, lawyers, and adjudicators with the complexities of the manifestations of systemic discrimination.
>
> ("Of Forest Fires and Systemic Discrimination: A Review of *British Columbia (Public Service Employee Relations Commission) v. B.C.G.S.E.U.*" (2001), 46 *McGill L.J.* 533, at p. 542; see also Braun, at p. 122)

[30] It is helpful to start by defining the concept. Adverse impact discrimination occurs when a seemingly neutral law has a disproportionate impact on members of groups protected on the basis of an enumerated or analogous ground (see Watson Hamilton and Koshan (2015), at p. 196; Sheppard (2001), at p. 549; see also *Withler v. Canada (Attorney General)*, 2011 SCC 12 (CanLII), [2011] 1 SCR 396, at para. 64; *Taypotat*, at para. 22). Instead of explicitly singling out those who are in the protected groups for differential treatment, the law indirectly places them at a disadvantage (Sophia Moreau, "What Is Discrimination?" (2010), 38 *Philosophy & Public Affairs* 143, at p. 155).

[31] Increased awareness of adverse impact discrimination has been a "central trend in the development of discrimination law", marking a shift away from a fault-based conception of discrimination towards an effects-based model which critically examines systems, structures, and their impact on disadvantaged groups (Denise G. Réaume, "Harm and Fault in Discrimination Law: The Transition from Intentional to Adverse Effect Discrimination" (2001), 2 *Theor. Inq. L.* 349, at pp. 350-51; see also Béatrice Vizkelety, *Proving Discrimination in Canada* (1987), at p. 18; Sheppard (2010), at pp. 19-20). Accompanying this shift was the recognition that discrimination is "frequently a product of continuing to do things 'the way they have always been done'", and that governments must be "particularly vigilant about the effects of their own policies" on members of disadvantaged groups (Fay Faraday, "One Step Forward, Two Steps Back? Substantive Equality, Systemic Discrimination and Pay Equity at the Supreme Court of Canada" (2020), 94 *S.C.L.R.* (2d) 301, at p. 310; Sophia Moreau, "The Moral Seriousness of Indirect Discrimination", in Hugh Collins and Tarunabh Khaitan, eds., *Foundations of Indirect Discrimination Law* (2018), 123, at p. 145).

[32] *Griggs v. Duke Power Co.*, 401 U.S. 424 (1971) was one of the first cases to apply this concept and is a classic example of adverse impact discrimination. An employer required employees to have a high school diploma and pass standardized tests to work in certain departments at a power plant. Neither requirement was significantly related to successful job performance; both, however, had the effect of disqualifying African Americans at a substantially higher rate than white applicants.

[33] The United States Supreme Court held that the education and testing requirements infringed Title VII of the *Civil Rights Act of 1964*, Pub. L. 88-352, 78 Stat. 241 (1964). The court emphasized that the *Act* prohibits "practices that are fair in form, but discriminatory in operation":

> Congress has now provided that tests or criteria for employment or promotion may not provide equality of opportunity merely in the sense of the fabled offer of milk to the stork and the fox. On the contrary, Congress *has now required that the posture and condition of the job seeker be taken into account*. It has — to resort again to the fable — provided that the vessel in which the milk is proffered be one all seekers can use. The Act proscribes not only overt discrimination but also practices that are fair in form, but discriminatory in operation. . . . Good intent or absence of discriminatory intent does not redeem employment procedures or testing mechanisms that operate as "built-in headwinds" for minority groups and are unrelated to measuring job capability. [Emphasis added; pp. 431-32.]

[34] *Griggs* explains that the application of "neutral" rules may not produce equality in substance for disadvantaged groups. Membership in such groups often brings with it a unique constellation of physical, economic and social barriers. Laws which distribute benefits or burdens without accounting for those differences — without accounting for the "posture and condition of the job seeker", as in *Griggs* — are the prime targets of indirect discrimination claims. I agree with Profs. Lisa Philipps and Margot Young that

> we are not always conscious of the ways in which the distinctions we draw . . . will implicate group identities and single out specific groups for distinctive treatment. This is because the constellations of factors or characteristics that go into the construction of identities often masquerade as unconnected, purely individual traits, behaviours, choices, or situations. Yet, in social reality they may be tightly linked to one group or another. So the law has had to recognize that state action may be discriminatory even though on its face and in terms of the intentions informing it there is no obvious evidence that such discrimination is occurring. [p. 258]
>
> (See also Sandra Fredman, *Discrimination Law* (2nd ed. 2011), at pp. 38 and 108.)

[35] Addressing adverse impact discrimination can be among the "most powerful legal measures available to disadvantaged groups in society to assert their claims to justice" (Hugh Collins and Tarunabh Khaitan, "Indirect Discrimination Law: Controversies and Critical Questions", in Hugh Collins and Tarunabh Khaitan, eds., *Foundations of Indirect Discrimination Law* (2018), 1, at p. 30). Not only is such discrimination "much more prevalent than the cruder brand of openly direct discrimination", [5] it often poses a greater threat to the equality aspirations of disadvantaged groups:

> . . . even more common are situations where the discrimination occurs in a context like an employment relationship, government program or statute, or educational setting, and there is no single identifiable "villain", no single action identifiable as "discriminatory", and the outward appearance of a neutral set of rules or practices being applied across the board. This invisible structure, with its accompanying set of practices, is a powerful limit on the equality aspirations of many who must deal within that structure but have characteristics that do not match those of persons intended to benefit from the structure.
>
> (Mary Eberts and Kim Stanton, "The Disappearance of the Four Equality Rights and Systemic Discrimination from Canadian Equality Jurisprudence" (2018), 38 *N.J.C.L.* 89, at p. 92)

[36] By recognizing the exclusionary impact of such discrimination, courts can better address "discrimination in its diverse forms", including at "the systemic or institutional level" (Vizkelety, at p. viii; see also Colleen Sheppard, "Mapping anti-discrimination law onto inequality at work: Expanding the meaning of equality in international labour law" (2012), 151 *Int'l Lab. Rev.* 1, at p. 8; Faraday, at p. 319). Remedying adverse effects discrimination allows courts

> [to] go to the heart of the equality question, to the goal of transformation, to an examination of the way institutions and relations must be changed in order to make them available, accessible, meaningful and rewarding for the many diverse groups of which our society is composed.
>
> (*Meiorin*, at para. 41, quoting Shelagh Day and Gwen Brodsky, "The Duty to Accommodate: Who Will Benefit?" (1996), 75 *Can. Bar Rev.* 433, at p. 462) …

[47] There is no doubt … that adverse impact discrimination "violate[s] the norm of substantive equality" which underpins this Court's equality jurisprudence (*Withler*, at para. 2). At the heart of substantive equality is the recognition that identical or facially neutral treatment may "frequently produce serious inequality" (*Andrews*, at p. 164). This is precisely what happens when "neutral" laws ignore the "true characteristics of [a] group which act as headwinds to the enjoyment of society's benefits" (*Eaton v. Brant County Board of Education*, 1997 CanLII 366 (SCC), [1997] 1 SCR 241, at para. 67; *Eldridge*, at para. 65).

[48] The "animating norm" of the current s. 15 framework guaranteeing substantive equality is also the core value engaged in cases of adverse effects discrimination (*Withler*, at para. 2; Watson Hamilton and Koshan (2015), at pp. 192 and 197). This Court has never suggested that cases of adverse impact discrimination should be resolved under a different approach (see, for example, *Andrews*, at pp. 173-74; *Eldridge*, at paras. 59-60; *Vriend*, at paras. 81-82 and 87-89; *Law*, at paras. 36-39; *Taypotat*, at paras. 19-22; *Alliance*, at para. 25). On the contrary, we have clarified that the same approach applies regardless of whether the discrimination alleged is direct or indirect. *Withler* leaves little doubt on this point:

> The substantive equality analysis under s. 15(1), as discussed earlier, proceeds in two stages . . . . The role of comparison at the first step is to establish a "distinction".
>
> . . .
>
> In some cases, identifying the distinction will be relatively straightforward, because a law will, on its face, make a distinction on the basis of an enumerated or analogous ground (direct discrimination) . . . . In other cases, *establishing the distinction will be more difficult, because what is alleged is indirect discrimination: that although the law purports to treat everyone the same, it has a disproportionately negative impact on a group or individual that can be identified by factors relating to enumerated or analogous grounds* . . . . In that kind of case, the claimant will have more work to do *at the first step.* Historical or sociological disadvantage may assist in demonstrating that the law imposes a burden or denies a benefit to the claimant that is not imposed on or denied to others. The focus will be on the effect of the law and the situation of the claimant group. [Emphasis added; paras. 61-62 and 64.]

[49] In the human rights context, the Court has not used different legal tests for direct and indirect discrimination since *Meiorin* (paras. 50-54; see also *British Columbia (Superintendent of Motor Vehicles) v. British Columbia (Council of Human Rights)*, 1999 CanLII 646 (SCC), [1999] 3 SCR 868, at paras. 18-19; *Moore v. British Columbia (Education)*, 2012 SCC 61 (CanLII), [2012] 3 SCR 360, at para. 61). A unified approach, in my view, is equally justified under the *Charter*.

[50] To prove discrimination under s. 15(1), claimants must show that a law or policy creates a distinction based on a protected ground, and that the law perpetuates, reinforces or exacerbates disadvantage. These requirements do not require revision in adverse effects cases. What is needed, however, is a clear account of how to identify adverse effects discrimination, because the impugned law will not, on its face, include any distinctions based on prohibited grounds (*Withler*, at para. 64). Any such distinctions must be discerned by examining the *impact* of the law (*Alliance*, at para. 25).

[51] This inquiry has frequently been described as a search for a "disproportionate" impact on members of protected groups (see *Vriend*, at para. 82; *Withler*, at para. 64; *Taypotat*, at paras. 21-23; *Action Travail*, at p. 1139; *Egan v. Canada*, 1995 CanLII 98 (SCC), [1995] 2 SCR 513, at para. 138, per Cory and Iacobucci JJ. dissenting; Moreau (2010), at p. 154; Braun, at pp. 124-25; Vizkelety, at p. 176; Watson Hamilton and Koshan (2015), at p. 196; Collins and Khaitan, at pp. 3-4; Dianne Pothier, "M'Aider, Mayday: Section 15 of the *Charter* in Distress" (1996), 6 *N.J.C.L.* 295, at p. 322).

[52] In other words, in order for a law to create a distinction based on prohibited grounds through its effects, it must have a disproportionate impact on members of a protected group. If so, the first stage of the s. 15 test will be met.

[53] How does this work in practice? Instead of asking whether a law explicitly targets a protected group for differential treatment, a court must explore whether it does so indirectly through its impact on members of that group (see *Eldridge*, at paras. 60-62; *Vriend*, at para. 82). A law, for example, may include seemingly neutral rules, restrictions or criteria that operate in practice as "built-in headwinds" for members of protected groups. The testing requirement in *Griggs* is the paradigmatic example; other examples include the aerobic fitness requirement in *Meiorin*, and the policy requiring employees to work on Saturdays in *Simpsons-Sears* (see also *Central Alberta Dairy Pool v. Alberta (Human Rights Commission)*, 1990 CanLII 76 (SCC), [1990] 2 SCR 489). To assess the adverse impact of these policies, courts looked beyond the facially neutral criteria on which they were based, and examined whether they had the effect of placing members of protected groups at a disadvantage (Moreau (2018), at p. 125).

[54] In other cases, the problem is not "headwinds" built into a law, but the *absence* of accommodation for members of protected groups (Tarunabh Khaitan, *A Theory of Discrimination Law* (2015), at p. 77; Dianne Pothier, "Tackling Disability Discrimination at Work: Toward a Systemic Approach" (2010), 4 *McGill J.L. & Health* 17, at pp. 23-24). *Eldridge* is a good example. Under the health care scheme in that case, *all* patients lacked access to sign language interpreters — but this lack of access had a disproportionate impact on those who had hearing loss and required interpreters to meaningfully communicate with health care providers (paras. 69, 71 and 83).

[55] Disproportionate impact can be proven in different ways. In *Eldridge*, it was established because "the *quality* of care received by [those with hearing loss] was inferior to that available to hearing persons" (para. 83 (emphasis added)). In *Griggs* and *Meiorin*, by contrast, the relevant impact was the higher *rate* at which African Americans and women were disqualified from employment. Both are examples of how a law or policy can have a disproportionate impact on members of a protected group. *Griggs*, *Meiorin*, and other leading cases leave no doubt that

disproportionate impact can be established if members of protected groups are denied benefits or forced to take on burdens more frequently than others. A difference in "quality" of treatment, as in *Eldridge*, may strengthen a claim of disproportionate impact, but it is not a necessary element (Philipps and Young, at pp. 244-45; see also Pothier (1996), at p. 322; Selene Mize, "Indirect Discrimination Reconsidered" (2007), *N.Z.L. Rev.* 27, at p. 39).

[56] Two types of evidence will be especially helpful in proving that a law has a disproportionate impact on members of a protected group. The first is evidence about the situation of the claimant group. The second is evidence about the results of the law.

[57] Courts will benefit from evidence about the physical, social, cultural or other barriers which provide the "full context of the claimant group's situation" (*Withler*, at para. 43; see also para. 64). This evidence may come from the claimant, from expert witnesses, or through judicial notice (see *R. v. Spence*, 2005 SCC 71 (CanLII), [2005] 3 SCR 458). The goal of such evidence is to show that membership in the claimant group is associated with certain characteristics that have disadvantaged members of the group, such as an inability to work on Saturdays or lower aerobic capacity (*Homer v. Chief Constable of West Yorkshire Police*, [2012] 3 All E.R. 1287 (S.C.), at para. 14; *Simpsons-Sears*; *Meiorin*, at para. 11). These links may reveal that seemingly neutral policies are "designed well for some and not for others" (*Meiorin*, at para. 41). When evaluating evidence about the group, courts should be mindful of the fact that issues which predominantly affect certain populations may be under-documented. These claimants may have to rely more heavily on their own evidence or evidence from other members of their group, rather than on government reports, academic studies or expert testimony.

[58] Courts will also benefit from evidence about the outcomes that the impugned law or policy (or a substantially similar one) has produced in practice. Evidence about the "results of a system" may provide concrete proof that members of protected groups are being disproportionately impacted (*Action Travail*, at p. 1139; Vizkelety, at pp. 170-74). This evidence may include statistics, especially if the pool of people adversely affected by a criterion or standard includes *both* members of a protected group *and* members of more advantaged groups (Sheppard (2001), at pp. 545-46; Braun, at pp. 120-21).

[59] There is no universal measure for what level of statistical disparity is necessary to demonstrate that there is a disproportionate impact, and the Court should not, in my view, craft rigid rules on this issue. The goal of statistical evidence, ultimately, is to establish "a disparate pattern of exclusion or harm that is statistically significant and not simply the result of chance" (Sheppard (2001), at p. 546; see also Vizkelety, at p. 175; Fredman (2011), at pp. 186-87). The weight given to statistics will depend on, among other things, their quality and methodology (Vizkelety, at pp. 178-84).

[60] Ideally, claims of adverse effects discrimination should be supported by evidence about the circumstances of the claimant group *and* about the results produced by the challenged law. Evidence about the claimant group's situation, on its own, may amount to merely a "web of instinct" if too far removed from the situation in the actual workplace, community or institution subject to the discrimination claim (*Taypotat*, at para. 34). Evidence of statistical disparity, on its own, may have significant shortcomings that leave open the possibility of unreliable results. The weaknesses with each type of evidence can be overcome if they are both present (Braun, at p. 135; Vizkelety, at p. 192; *Vancouver Area Network of Drug Users v. Downtown Vancouver Business Improvement Association* (2018), 2018 BCCA 132 (CanLII), 10 B.C.L.R. (6th) 175 (C.A.), at para. 98). Prof. Colleen Sheppard (2001) recognizes this possibility:

> While in some cases the overwhelming correspondence between certain categories and the gender or racial composition of the category makes the sex or race discrimination claims relatively easy to substantiate, in other cases the statistical preponderance may be less marked. In such cases it may also be important to consider the qualitative components of the harm that constitutes discrimination. [p. 548]

[61] This is not to say, of course, that both kinds of evidence are always required. In some cases, evidence about a group will show such a strong association with certain traits — such as pregnancy with gender — that the disproportionate impact on members of that group "will be apparent and immediate" (*Taypotat*, at para. 33; see also Fredman (2011), at pp. 187-88; Sheppard (2001), at pp. 544-45; *Gaz métropolitain inc. v. Commission des droits de la personne et des droits de la jeunesse*, 2011 QCCA 1201, at paras. 27 and 47 (CanLII); *Oršuš v. Croatia*, No. 15766/03, ECHR 2010-II, at para. 153).

[62] Similarly, clear and consistent statistical disparities can show a disproportionate impact on members of protected groups, even if the precise reason for that impact is unknown. Prof. Sandra Fredman has argued forcefully against requiring claimants to specify "the reason why" they are being disadvantaged by a rule or policy:

> To require the complainants to show the 'reason why' the PCP [policy, criteria or practice] disadvantages the group as a whole is to fundamentally misunderstand the meaning of indirect discrimination. It is the disparate impact on the group of a PCP itself which constitutes the prima facie discrimination . . . .
>
> ("Direct and Indirect Discrimination: Is There Still a Divide?", in Hugh Collins and Tarunabh Khaitan, eds., *Foundations of Indirect Discrimination Law* (2018), 31, at p. 46; see also Sandra Fredman, "The Reason Why: Unravelling Indirect Discrimination" (2016), 45 *Indus. L.J.* 231.)

[63] I agree. If there are clear and consistent statistical disparities in how a law affects a claimant's group, I see no reason for requiring the claimant to bear the additional burden of explaining *why* the law has such an effect. In such cases, the statistical evidence is itself a compelling sign that the law has not been structured in a way that takes into account the protected group's circumstances (see Fredman (2011), at p. 181; Vizkelety, at pp. 174-76; *Action Travail*, at p. 1139) …

[68] Some further observations.

[69] First, whether the legislature *intended* to create a disparate impact is irrelevant (Sheppard (2001), at pp. 543-44; Watson Hamilton and Koshan (2015), at pp. 196-97; Faraday, at p. 310). Proof of discriminatory intent has never been required to establish a claim under s. 15(1) (*Andrews*, at pp. 173-74; *Eldridge*, at para. 62; *Vriend*, at para. 93; *Alliance*, at para. 28; *Centrale*, at para. 35). Nor is an ameliorative purpose sufficient to shield legislation from s. 15(1) scrutiny (*Centrale*, at paras. 8 and 35; *Alliance*, at paras. 32-33).

[70] Second, if claimants successfully demonstrate that a law has a disproportionate impact on members of a protected group, they need not independently prove that the protected characteristic "caused" the disproportionate impact (Tarunabh Khaitan and Sandy Steel, "Wrongs, Group Disadvantage and the Legitimacy of Indirect Discrimination Law", in Hugh Collins and Tarunabh Khaitan, eds., *Foundations of Indirect Discrimination Law* (2018), 197, at pp. 203-4 and 220; Fredman (2018), at p. 46; Braun, at p. 146; Watson Hamilton and Koshan (2015), at p. 197; *West Yorkshire Police*, at paras. 12-14; *Essop*, at paras. 24-27). Put differently, there was no need for the claimant in *Griggs* to address whether his exclusion was based on his *race* or *lack of a high school education*. The whole point of the adverse impact analysis was to show that the use of a high school education as a criteria for employment had a disproportionate impact on African Americans (Fredman (2011), at p. 189).

[71] It is also unnecessary to inquire into whether the law itself was responsible for creating the background social or physical barriers which made a particular rule, requirement or criterion disadvantageous for the claimant group. Returning to *Griggs*, this would amount to asking whether Duke Power Co. was responsible for lower rates of high school education among African Americans. Plainly, it was not — but this was entirely irrelevant to whether a disproportionate impact had been established. Section 15(1) has always required attention to the

systemic disadvantages affecting members of protected groups, even if the state did not create them (*Alliance*, at para. 41; *Centrale*, at para. 32; *Vriend*, at paras. 84 and 97; *Eldridge*, at paras. 64-66; *Eaton*, at para. 67; *R. v. Turpin*, 1989 CanLII 98 (SCC), [1989] 1 SCR 1296, at pp. 1331-32).

[72] Third, claimants need not show that the criteria, characteristics or other factors used in the impugned law affect all members of a protected group in the same way. This Court has long held that "[t]he fact that discrimination is only partial does not convert it into non-discrimination" (*Brooks v. Canada Safeway Ltd.*, 1989 CanLII 96 (SCC), [1989] 1 SCR 1219, at p. 1248, quoting James MacPherson, "Sex Discrimination in Canada: Taking Stock at the Start of a New Decade" (1980), 1 C.H.R.R. C/7, at p. C/11). In *Brooks*, the Court held that a corporate plan which denied benefits to employees during pregnancy discriminated on the basis of sex. The employer argued that the plan did not deny benefits to "women", but only to "women who are pregnant" (p. 1248, quoting MacPherson, at p. C/11). Writing for the Court, Dickson C.J. explained that practices amounting to "partial discrimination" are no less discriminatory than those in which all members of a protected group are affected (pp. 1247-48).

[73] The Court reiterated this principle in *Janzen v. Platy Enterprises Ltd.*, 1989 CanLII 97 (SCC), [1989] 1 SCR 1252, where it held that the sexual harassment of two female employees was discrimination on the basis of sex. The Court rejected the employer's argument that sex discrimination had not occurred because only some of the female employees at the store had been sexually harassed. Dickson C.J. reiterated the approach to partial discrimination he had previously set out in *Brooks*:

> If a finding of discrimination required that every individual in the affected group be treated identically, legislative protection against discrimination would be of little or no value. *It is rare that a discriminatory action is so bluntly expressed as to treat all members of the relevant group identically*. In nearly every instance of discrimination the discriminatory action is composed of various ingredients with the result that some members of the pertinent group are not adversely affected, at least in a direct sense, by the discriminatory action. *To deny a finding of discrimination in the circumstances of this appeal is to deny the existence of discrimination in any situation where discriminatory practices are less than perfectly inclusive*. It is to argue, for example, that an employer who will only hire a woman if she has twice the qualifications required of a man is not guilty of sex discrimination if, despite this policy, the employer nevertheless manages to hire some women. [Emphasis added; pp. 1288-89.]

[74] The Court's approach in *Brooks* and *Janzen* "had obvious implications for claims based on multiple grounds of discrimination" (Dianne Pothier, "Connecting Grounds of Discrimination to Real People's Real Experiences" (2001), 13 *C.J.W.L.* 37, at p. 58). As Dianne Pothier has explained:

> It is an easy step to move from saying, as in *Janzen,* that not all women need be affected to constitute sex discrimination to also accepting that different groups of women . . . can be differently affected by, or have different experiences of, sex discrimination. *Janzen* also meant that a claim based on, for example, both gender and race could not be defeated simply by saying that it could not be sex discrimination because white women were unaffected or that it could not be race discrimination because Black men were unaffected. [p. 58]

[75] The Court subsequently confirmed that "heterogeneity within a claimant group does not defeat a claim of discrimination" (*Quebec v. A*, at para. 354). In *Quebec v. A*, for example, the Court held that certain provisions of the *Civil Code of Québec* that distinguished between *de facto* and legally married spouses for the purposes of support and division, discriminated on the basis of marital status. It reached this conclusion even though there was "a range of need or vulnerability among *de facto* spouses" (para. 354). Similarly, in *Nova Scotia (Workers' Compensation Board) v. Martin*, 2003 SCC 54 (CanLII), [2003] 2 SCR 504, the Court held that a provincial compensation scheme that provided lesser benefits to those suffering from chronic pain, discriminated on the basis of disability. The Court confirmed that "differential treatment can occur on the basis of an enumerated ground despite the fact that not all persons belonging to the relevant group are equally mistreated" (para. 76; see also *Centrale*, at para. 28; Pothier (2010), at pp. 35-36; Watson Hamilton and Koshan (2015), at pp. 197-98; Braun, at p. 147; Sheppard (2001), at p. 549).

[76] This brings us to the second step of the s. 15 test: whether the law has the effect of reinforcing, perpetuating, or exacerbating disadvantage (*Alliance*, at para. 25). This inquiry will usually proceed similarly in cases of disparate impact and explicit discrimination. There is no "rigid template" of factors relevant to this inquiry (*Quebec v. A*, at para. 331, quoting *Withler*, at para. 66). The goal is to examine the impact of the harm caused to the affected group. The harm may include "[e]conomic exclusion or disadvantage, [s]ocial exclusion . . . [p]sychological harms . . . [p]hysical harms . . . [or] [p]olitical exclusion", and must be viewed in light of any systemic or historical disadvantages faced by the claimant group (Sheppard (2010), at pp. 62-63 (emphasis deleted)).

[77] The purpose of the inquiry is to keep s. 15(1) focussed on the protection of groups that have experienced exclusionary disadvantage based on group characteristics, as well as the protection of those "who are members of more than one socially disadvantaged group in society" (Colleen Sheppard, "Grounds of Discrimination: Towards an Inclusive and Contextual Approach" (2001), 80 *Can. Bar Rev.* 893, at p. 896; see also *Withler*, at para. 58). As the Court noted in *Quebec v. A* when discussing the second stage of the s. 15 test:

> The root of s. 15 is our awareness that certain groups have been historically discriminated against, and that the perpetuation of such discrimination should be curtailed. [para. 332]

(See also *Taypotat*, at para. 20.)

[78] Notably, the presence of social prejudices or stereotyping are not necessary factors in the s. 15(1) inquiry. They may assist in showing that a law has negative effects on a particular group, but they "are neither separate elements of the *Andrews* test, nor categories into which a claim of discrimination must fit" (*Quebec v. A*, at para. 329), since

> > [w]e must be careful not to treat *Kapp* and *Withler* as establishing an additional requirement on s. 15 claimants to prove that a distinction will perpetuate prejudicial or stereotypical attitudes towards them. Such an approach improperly focuses attention on whether a discriminatory *attitude* exists, not a discriminatory impact, contrary to *Andrews*, *Kapp* and *Withler*. [Emphasis in original; para. 327.]
>
> (See also paras. 329-31.)

[79] The perpetuation of disadvantage, moreover, does not become less serious under s. 15(1) simply because it was *relevant* to a legitimate state objective. I agree with Dean Mayo Moran that adding relevance to the s. 15(1) test — even as one contextual factor among others — risks reducing the inquiry to a search for a "rational basis" for the impugned law ("Protesting Too Much: Rational Basis Review Under Canada's Equality Guarantee", in Sheila McIntyre and Sanda Rodgers, eds., *Diminishing Returns: Inequality and the Canadian Charter of Rights and Freedoms* (2006), 71, at pp. 81-84; Eberts and Stanton, at pp. 90 and 119-20; Sheila McIntyre, "Deference and Dominance: Equality Without Substance", in Sheila McIntyre and Sanda Rodgers, eds., *Diminishing Returns: Inequality and the Canadian Charter of Rights and Freedoms* (2006), 95, at pp. 108-13). The test for a *prima facie* breach of s. 15(1) is concerned with the discriminatory impact of legislation on disadvantaged groups, not with whether the distinction is justified, an inquiry properly left to s. 1 (*Andrews*, at pp. 181-82; *Turpin*, at pp. 1325-26; *Miron v. Trudel*, 1995 CanLII 97 (SCC), [1995] 2 SCR 418, at paras. 129-30; *Eldridge*, at paras. 77 and 79; *Quebec v. A*, at para. 333; *Centrale*, at para. 35).

> [80] Similarly, there is no burden on a claimant to prove that the distinction is arbitrary to prove a *prima facie* breach of s. 15(1). It is for the government to demonstrate that the law is *not* arbitrary in its justificatory submissions under s. 1 (see Eberts and Stanton, at p. 117; Jonnette Watson Hamilton and Jennifer Koshan, "*Kahkewistahaw First Nation v. Taypotat*: An Arbitrary Approach to Discrimination" (2016), 76 *S.C.L.R.* (2d) 243, at pp. 259-60; Alicja Puchta, "*Quebec v A* and *Taypotat*: Unpacking the Supreme Court's Latest Decisions on Section 15 of the *Charter*" (2018), 55 *Osgoode Hall L.J.* 665, at p. 704).
>
> [81] In sum, then, the first stage of the s. 15 test is about establishing that the law imposes differential treatment based on protected grounds, either explicitly or through adverse impact. At the second stage, the Court asks whether it has the effect of reinforcing, perpetuating, or exacerbating disadvantage (*Alliance*, at para. 25).
>
> [82] Where possible, the two inquiries should be kept distinct, but there is clearly potential for overlap in adverse effects cases based on "the impossibility of rigid categorizations" (Sheppard (2010), at p. 21). What matters in the end is that a court asks and answers the necessary questions relevant to the s. 15(1) inquiry, not whether it keeps the two steps of the inquiry in two impermeable silos …
>
> Application
>
> [83] Returning to the claim before us in this appeal, as previously noted, full-time RCMP members who work regular hours, who are suspended, or who go on unpaid leave can obtain full pension credit for those periods of service under the pension plan. Full-time members who temporarily reduce their hours under a job-sharing agreement, however, are classified as part-time workers under the *Regulations* and are unable to acquire full-time pension credit for their service.
>
> [84] Under the pension scheme, therefore, a full-time RCMP member's temporary reduction in working hours results in their losing out on potential pension benefits. The question is whether this arrangement has a disproportionate impact on women …
>
> [97] In my respectful view, the use of an RCMP member's temporary reduction in working hours as a basis to impose less favourable pension consequences plainly has a disproportionate impact on women. The relevant evidence — the results of the system — showed that:
>
> - RCMP members who worked reduced hours in the job-sharing program were predominantly women with young children.
> - From 2010-2014, 100 percent of members working reduced hours through job-sharing were women, and most of them cited childcare as their reason for doing so.
>
> [98] These statistics were bolstered by compelling evidence about the disadvantages women face as a group in balancing professional and domestic work. Evidence submitted by Ms. Fraser indicated that women have historically borne the overwhelming share of childcare responsibilities, that part-time workers in Canada are disproportionately women, and that they are far more likely than men to work part-time due to child care responsibilities. As a result, they experience less stable employment and periods of "scaling back at work", including within police services.
>
> [99] This evidence finds firm support in commission reports, judicial decisions and academic work …
>
> [106] All of these sources — and more — show the clear association between gender and fewer or less stable working hours. They provide powerful support for Ms. Fraser's core argument: that the RCMP's use of a temporary reduction in working hours as a basis for imposing less favourable pension consequences has an adverse impact on women. The first part of the s. 15(1) test has therefore been met.
>
> [107] This leads me to the second part of the s. 15(1) inquiry: whether this adverse impact reinforces, exacerbates or perpetuates disadvantage.
>
> [108] There is no doubt that it does. I agree with Ms. Fraser that the negative pension consequences of job-sharing perpetuate a long-standing source of disadvantage to women: gender biases within pension plans, which have historically been designed "for middle and upper-income full-time employees with long service, typically male" (*Report of the Royal Commission on the Status of Pensions in Ontario* (1980), at p. 116) …
>
> [113] Pension design choices have, in sum, "far-reaching normative, political and tangible economic implications for women" (Shilton (2013), at p. 140, quoting Bernd Marin, "Gender Equality, Neutrality, Specificity and Sensitivity — and the Ambivalence of Benevolent Welfare Paternalism", in Bernd Marin and Eszter Zólyomi, eds., *Women's Work and Pensions: What is Good, What is Best? Designing Gender-Sensitive Arrangements* (2010), 203, at p. 210). Because the RCMP's design perpetuates a long-standing source of economic disadvantage for women, the second stage of the s. 15(1) test is satisfied and there is a *prima facie* breach of s. 15 based on the enumerated ground of sex.

The majority opinion went on to find the RCMP's section 15 breach unjustified under section 1. It did so at the first step of the justificatory analysis, concluding that "[t]he Attorney General … has identified no pressing and substantial policy concern, purpose or principle that explains why job-sharers should not be granted full-time pension credit for their service" (at para 126). Indeed, the majority described the RCMP's scheme as "entirely detached from the purposes of both the job-sharing scheme and the buy-back provisions, which were intended to ameliorate the position of RCMP members who take leave to care for their children" (*ibid*). The majority further noted that "[t]he distinction becomes even more difficult to understand when considering that buy-back rights are available to members who have been suspended" (*ibid*), but *not* members who job share. As noted above, the top-up contributions were paid entirely by the employees and not their employer. Despite this, the dissent by Brown and Rowe JJ. characterized the majority's opinion as providing a "freestanding positive obligation" on the state to "remedy" and even "*eradicate*" social inequality (see paras 209-212; emphasis in original). Those dissenters went on to form the majority in *Sharma*, excerpted next.

3.4 *R. v. Sharma*, 2022 SCC 39 (CanLII)

Sharma concerned discrimination relating to race/Indigeneity. It involved "a 20-year-old Indigenous mother to an infant daughter [who] was owing two months' rent, and facing eviction" (at para 116). Ms. Sharma pled guilty to importing over a kilogram of cocaine, a task she did for her then-partner in exchange for $20,000. But she challenged the constitutionality of a *Criminal Code* provision prohibiting a conditional sentence for her offence, in part, on the grounds that the prohibition was discriminatory against Indigenous offenders given "[t]he overrepresentation of Indigenous people in Canada's prisons […] a present-day product of this country's colonial past" (at para 114). A narrow majority of the Court—including the three *Fraser* dissenters—found the prohibition non-discriminatory, while the remaining four judges (per Karakatsanis J.) found the prohibition discriminatory. Relevant excerpts from the majority opinion follow.

> The judgment of Wagner C.J. and Moldaver, Côté, Brown and Rowe JJ. was delivered by
>
> BROWN AND ROWE JJ. —
>
> … [32] Deciding the issues raised in this appeal requires us to resolve three particular uncertainties associated with the s. 15(1) framework:
>
> (a) whether the claimant must prove that the impugned law or state conduct *caused* (in the sense of *created or contributed to*) the disproportionate impact on the claimant;
>
> (b) whether *the entire legislative context* is relevant to the s. 15(1) inquiry; and

(c) whether s. 15(1) imposes a *positive obligation* on the legislature to enact remedial legislation, and relatedly, whether the legislature can *incrementally* address disadvantage.

[33] On a careful reading, this Court's jurisprudence answers these questions. In so saying, we do not alter the two-step test for s. 15(1). Rather, we seek to bring clarity and predictability to its application, with a view to assisting parties to *Charter* challenges, judges adjudicating them, and legislators seeking to further s. 15's equality guarantee …

(1) Guidance on the Section 15(1) Framework

…

(b) Step One: Proving the Law, on its Face or in its Impact, Creates or Contributes to a Distinction on the Basis of a Protected Ground

[39] Two questions arise. First, what is the *standard* by which courts should measure impact? And secondly, how may claimants *prove* impact?

[40] We start with the difference between impact and *disproportionate* impact. All laws are expected to impact individuals; merely showing that a law impacts a protected group is therefore insufficient. At step one of the s. 15(1) test, claimants must demonstrate a *disproportionate* impact on a protected group, as compared to non-group members. Said differently, leaving a gap between a protected group and non-group members *unaffected* does not infringe s. 15(1).

[41] The disproportionate impact requirement necessarily introduces comparison into the first step. As McIntyre J. explained in *Andrews*: "[Equality] is a comparative concept, the condition of which may only be attained or discerned by comparison with the condition of others in the social and political setting in which the question arises" (p. 164; see also *Fraser*, at para. 55). This Court no longer requires a "mirror comparator group" (*Withler*, at paras. 55-64; *Fraser*, at para. 94). However, *Withler* confirms that comparison plays a role at both steps of the s. 15(1) analysis. At the first step, the word "distinction" itself implies that the claimant is treated differently than others, whether directly or indirectly (*Withler*, at para. 62, cited in *Fraser*, at para. 48).

[42] As we have explained, in adverse impact cases, the law appears facially neutral. At step one, the claimant must present sufficient evidence to prove the impugned law, in its impact, *creates or contributes to* a disproportionate impact on the basis of a protected ground (*Fraser*, at para. 60, citing *Taypotat*, at para. 34; *Alliance*, at para. 26; *Symes v. Canada*, 1993 CanLII 55 (SCC), [1993] 4 SCR 695, at pp. 764-65). Causation is thus a central issue …

[49] In confirming the claimant's causation burden at step one, we are mindful of the evidentiary hurdles and the asymmetry of knowledge (relative to the state) that many claimants face. In *Fraser*, Abella J. referred to two types of evidence that are helpful in proving that a law has a disproportionate impact: evidence about the "full context of the claimant group's situation" (*Withler*, at para. 43, cited in *Fraser*, at para. 57) and evidence about "the outcomes that the impugned law or policy . . . has produced in practice" (*Fraser*, at para. 58.) Ideally, claims of adverse impact discrimination should be supported by *both* (para. 60). To give proper effect to the promise of s. 15(1), however, a claimant's evidentiary burden cannot be unduly difficult to meet. In that regard, courts should bear in mind the following considerations:

(a) No specific form of evidence is required.

(b) The claimant need not show the impugned law or state action was the *only* or the *dominant* cause of the disproportionate impact — they need only demonstrate that the law was *a* cause (that is, the law created *or contributed to* the disproportionate impact on a protected group).

(c) The causal connection may be satisfied by a reasonable inference. Depending on the impugned law or state action at issue, causation may be obvious and require no evidence. Where evidence is required, courts should remain mindful that statistics may not be available. Expert testimony, case studies, or other qualitative evidence may be sufficient. In all circumstances, courts should examine evidence that purports to demonstrate a causal connection to ensure that it conforms with standards associated to its discipline.

(d) Courts should carefully scrutinize scientific evidence (see National Judicial Institute, *Science Manual for Canadian Judges* (2018); see also National Research Council and Federal Judicial Center, *Reference Manual on Scientific Evidence* (3rd ed. 2011)).

(e) If the scientific evidence is novel, courts should admit it only if it has a "reliable foundation" (*R. v. J.-L.J.*, 2000 SCC 51, [2000] 2 SCR 600, at para. 33; see also *R. v. Trochym*, 2007 SCC 6, [2007] 1 SCR 239, at para. 36).

[50] In summary, the first step asks whether the impugned provisions create or contribute to a disproportionate impact on the claimant group based on a protected ground as compared to other groups. If a claimant establishes that the law or state action creates or contributes to a disproportionate impact, the court should proceed to the second step. But to be clear, while the evidentiary burden at the first step should not be undue, it must be fulfilled. The particular evidentiary burden on claimants will depend on the claim. What remains consistent is that there is a burden on claimants at step one.

(c) Step Two: Proving the Law Imposes Burdens or Denies Benefits in a Manner That Has the Effect of Reinforcing, Perpetuating, or Exacerbating Their Disadvantage

(i) Evidentiary Burden

[51] It has never been the view of this Court that every distinction is discriminatory (*Andrews*, at p. 182). Hence the importance of the second step of the s. 15(1) test, requiring the claimant to establish that the impugned law imposes burdens or denies benefits in a manner that has the effect of reinforcing, perpetuating, or exacerbating the group's disadvantage. The question becomes, what does it mean to reinforce, perpetuate, or exacerbate disadvantage?

[52] Courts must examine the historical or systemic disadvantage of the claimant group. Leaving the situation of a claimant group unaffected is insufficient to meet the step two requirements …

[53] This Court has outlined several factors that may assist a judge in determining whether claimants have met their burden at step two: arbitrariness, prejudice, and stereotyping. These factors are not necessary components; while "[t]hey may assist in showing that a law has negative effects on a particular group, . . . they 'are neither separate elements of the *Andrews* test, nor categories into which a claim of discrimination must fit'" (*Fraser*, at para. 78, citing *Quebec (Attorney General) v. A*, 2013 SCC 5, [2013] 1 SCR 61, at para. 329). Nonetheless, courts may usefully consider whether these factors are present:

(a) **Stereotyping or prejudice:** These factors played a critical role at step two in *Ontario (Attorney General) v. G*, 2020 SCC 38. There, the Court held that the impugned law had a discriminatory impact because it furthered stereotypes and "prejudicial notions" about persons with disabilities (para. 62), reinforced "the stigmatizing idea that those with mental illness are inherently and permanently dangerous" and, in so doing, perpetuated the disadvantage they experienced (para. 65).

(b) **Arbitrariness:** A distinction that does not withhold access to benefits or impose burdens, or that is based on an individual's actual capacities, will rarely be discriminatory (*Andrews*, at pp. 174-75). Abella J. described the role that arbitrariness can play in the analysis in both *Quebec v. A* (at paras. 221 and 331) and *Taypotat* (at paras. 16, 18, 20, 28 and 34). *Taypotat* focused on "arbitrary — or discriminatory —

disadvantage, that is, whether the impugned law fails to respond to the actual capacities and needs of the members of the group and instead imposes burdens or denies a benefit in a manner that has the effect of reinforcing, perpetuating or exacerbating their disadvantage" (para. 20 (emphasis added)).

[55] … [I]t is helpful to underline three points regarding the evidentiary burden at step two:

(a) The claimant need not prove that the legislature *intended* to discriminate (*Fraser*, at para. 69; *Ontario v. G*, at para. 46, citing *Eldridge v. British Columbia (Attorney General)*, 1997 CanLII 327 (SCC), [1997] 3 SCR 624, at para. 62; *Andrews*, at p. 173).

(b) Judicial notice can play a role at step two. As this Court recognized in *Law*, "a court may take judicial notice of notorious and undisputed facts, or of facts which are capable of immediate and accurate demonstration, by resorting to readily accessible sources of indisputable accuracy" (para. 77, citing J. Sopinka, S. N. Lederman and A. W. Bryant, *The Law of Evidence in Canada* (1992), at p. 976). Of note here, the Court has taken judicial notice of the history of colonialism and how it translates into higher levels of incarceration for Indigenous peoples (*R. v. Ipeelee*, 2012 SCC 13, [2012] 1 SCR 433, at para. 60).

(c) Courts may *infer* that a law has the effect of reinforcing, perpetuating, or exacerbating disadvantage, where such an inference is supported by the available evidence (*Law*, at para. 75). One must bear in mind, however, that inference is not mere assertion; nor is it *a priori* reasoning.

(ii) Legislative Context

[56] To determine whether a distinction is discriminatory under the second step, courts should also consider the broader legislative context.

[57] Such an approach is well-supported in our jurisprudence. In *Vriend v. Alberta*, 1998 CanLII 816 (SCC), [1998] 1 SCR 493, this Court held "[t]he comprehensive nature of the Act must be taken into account in considering the effect of excluding one ground from its protection" (para. 96). … Where the impugned provision is part of a larger legislative scheme (as is often so), the Court explained, that broader scheme must be accounted for (para. 3), and the "ameliorative effect of the law on others and the multiplicity of interests it attempts to balance will also colour the discrimination analysis" (para. 38 (emphasis added)) …

[58] Most recently, in *C.P.*, the constitutionality of s. 37(10) of the *Youth Criminal Justice Act*, S.C. 2002, c. 1 ("*YCJA*") was at issue. The impugned provision did not provide young persons an automatic right of appeal to this Court where an appellate judge below dissents on a question of law, as the *Criminal Code* provides to adult offenders. Chief Justice Wagner, writing for four members of this Court, explicitly and carefully considered the entire legislative scheme, observing that the *YCJA* is designed to balance multiple goals — not only enhanced procedural protections, but also timely intervention and prompt resolution (para. 146). He further explained that an "approach requiring line-by-line parity with the *Criminal Code* without reference to the distinct nature of the underlying scheme of the *YCJA* would indeed be contrary to the contextual approach" (para. 145). In choosing not to provide young persons with an automatic right to appeal, he concluded "Parliament did not discriminate against them, but responded to the reality of their lives" (para. 162). Therefore, step two was not satisfied …

[59] Relevant considerations include: the objects of the scheme, whether a policy is designed to benefit a number of different groups, the allocation of resources, particular policy goals sought to be achieved, and whether the lines are drawn mindful as to those factors (*Withler*, at para. 67; see also paras. 3, 38, 40 and 81).

[60] A contextual approach is particularly significant when analyzing the constitutionality of sentencing regimes. Here, the impugned provisions cannot properly be considered in a manner that is divorced from the broader context of sentencing law as provided for in Part XXIII of the *Criminal Code*. Part XXIII reflects a balance or interaction among the statutory principles set out in s. 718 of the *Criminal Code*, including rehabilitation, denunciation and deterrence, reparations to victims, separation from society, and the principle of restraint in s. 718.2(e). Also relevant to the legislative context is the internal limit contained in s. 718.2(e). The provision instructs courts to consider for all offenders "all available sanctions, other than imprisonment, that are reasonable in the circumstances and consistent with the harm done to victims or to the community . . ., with particular attention to the circumstances of Aboriginal offenders" (see *Proulx*, at paras. 94-101).

[61] Parliament has the exclusive authority to legislate in matters of sentencing policy. There is no constitutional right to any particular sentence, including a conditional sentence … Parliament had no positive obligation to create the conditional sentence regime. This Court stated in *Proulx* that Parliament could "have easily excluded specific offences" from the conditional sentencing regime when it came into force in 1996 (para. 79). It chose to do so later, and may choose to do so in the future. That is inherent in the role of Parliament, informed by experience and by the wishes of the electorate. As we explain in greater detail below, Parliament is not bound by its past policy choices, and sentencing legislation must be assessed on its own to determine whether it is constitutionally compliant, without having regard to the prior legislative scheme (*Alliance*, at para. 33). In the context of equality claims regarding criminal sentencing policy, an area of law that involves multi-faceted and complex policy considerations, the s. 15(1) analysis must be conducted with sensitivity and due regard to the present legislative scheme.

(iii) The Scope of the State's Obligations to Remedy Social Inequalities

[62] Given the questions raised in this appeal, it is important to confirm two principles related to the government's obligations under s. 15(1).

[63] First, s. 15(1) does not impose a general, positive obligation on the state to remedy social inequalities or enact remedial legislation (*Thibaudeau v. Canada*, 1995 CanLII 99 (SCC), [1995] 2 SCR 627, at para. 37; *Eldridge*, at para. 73; *Auton (Guardian ad litem of) v. British Columbia (Attorney General)*, 2004 SCC 78, [2004] 3 SCR 657, at para. 41; *Alliance*, at para. 42). Were it otherwise, courts would be impermissibly pulled into the complex legislative domain of policy and resource allocation, contrary to the separation of powers. In *Alliance*, this Court struck down amendments to Quebec's pay equity legislation that "interfere[d] with access to anti-discrimination law" by undermining existing legislative pay equity protections (para. 39). But in so doing, Abella J. expressly *declined* to impose a "freestanding positive obligation on the state to enact benefit schemes to redress social inequalities" (para. 42).

[64] Secondly, this Court in *Alliance* confirmed that, when the state does legislate to address inequality, it can do so *incrementally* …

[65] Incrementalism is deeply grounded in *Charter* jurisprudence. In *R. v. Edwards Books and Art Ltd.*, 1986 CanLII 12 (SCC), [1986] 2 SCR 713, the Court accepted that the state may implement reforms "one step at a time, addressing itself to the phase of the problem which seems most acute to the legislative mind" (p. 772 (emphasis added)). Expanding on the passage in *Edwards Books*, La Forest J. confirmed in *McKinney v. University of Guelph*, 1990 CanLII 60 (SCC), [1990] 3 SCR 229, that a legislature "must be given reasonable leeway to deal with problems one step at a time, to balance possible inequalities under the law against other inequalities resulting from the adoption of a course of action, and to take account of the difficulties, whether social, economic or budgetary, that would arise if it attempted to deal with social and economic problems in their entirety" (p. 317). He also emphasized that, generally, courts "should not lightly use the *Charter* to second-guess legislative judgment as to just how quickly it should proceed in moving forward towards the ideal of equality" (p. 318). See also *Schachter v. Canada*, 1992 CanLII 74 (SCC), [1992] 2 SCR 679; *Gosselin v. Quebec (Attorney General)*, 2002 SCC 84, [2002] 4 SCR 429; and *Auton*, at paras. 61-62.

(2) Application to the Impugned Provisions

[66] For the reasons that follow, we are of the view that Ms. Sharma's claim fails at the first step of the s. 15(1) analysis. The impugned provisions do not create or contribute to a disproportionate impact on Ms. Sharma as an Indigenous offender.

[67] The sentencing judge rejected Ms. Sharma's s. 15(1) claim, concluding that there was "difficulty on this record" identifying an impact that he would classify as a distinction (para. 257). He held that Ms. Sharma adduced "no statistical information" demonstrating that the legislation caused a distinction (*ibid.*).

[68] The Court of Appeal disagreed with the sentencing judge's conclusion on the first step, relying on the observation that "Aboriginal offenders start from a place of substantive inequality in the criminal justice system" (para. 70). Since the impugned provisions removed a remedial provision designed to address overincarceration of Indigenous offenders, the effect was to "exacerbate the discriminatory effect" (para. 83).

[69] The Court of Appeal collapsed the two-step s. 15(1) framework into a single step. In doing so, it erred in two ways. First, it failed to clearly delineate Ms. Sharma's evidentiary burden at each step of analysis, using broad evidence of historic disadvantage to satisfy the causation burden at both steps:

> The distinction that is created by the impact of the impugned provisions relates to the overincarceration of Aboriginal offenders, not their overrepresentation in the criminal justice system. By removing the ability to impose a conditional sentence instead of a prison sentence for an offence, the effect on an Aboriginal offender is to undermine the purpose and remedial effect of s. 718.2*(e)* in addressing the substantive inequality between Aboriginal and non-Aboriginal people manifested in overincarceration within the criminal justice system, which has been acknowledged by Parliament and the courts as requiring redress. [Emphasis added; para. 79.]

[70] Secondly, when analyzing Ms. Sharma's evidence at the first step, the court erred by using the second-step s. 15(1) requirements:

> Where a law establishes a new benefit, but does so in a discriminatory manner, that law will "create" a distinction. But where, as here, a law removes a remedial provision that was put in place to alleviate the discriminatory effect of other laws, then the removal of that remedial provision may not create a new distinction, but it will reinforce, perpetuate, or exacerbate the discriminatory effect that was intended to be alleviated by the remedial provision. [Emphasis added; para. 83.]

[71] To recall, the focus at the first step is on a disproportionate impact, not historic or systemic disadvantage. The Court of Appeal addressed the wrong question at step one, focusing on the link between colonial policies and overincarceration of Indigenous peoples. While the situation of the claimant group is relevant at step one (see *Fraser*, at paras. 56-57), it is not sufficient on its own to establish disproportionate impact. Nor is it enough to show that the law restricts an ameliorative program.

[72] To explain this point, we must directly address Ms. Sharma's argument before this Court. Ms. Sharma submits that "conditional sentences are inextricably connected with s. 718.2(e), which *does* draw a race-based distinction, by expressly identifying Indigenous offenders as requiring particular consideration in the sentencing process. Any modification to the *Gladue* framework necessarily impacts Indigenous offenders differently than non-Indigenous offenders" (R.F., at para. 63 (emphasis in original)). She further submits that "[w]hile the Impugned Provisions apply to both Indigenous and non-Indigenous offenders, the undermining of the *Gladue* framework affects only Indigenous offenders" (para. 63). Our colleague adopts this argument, saying the distinction flows "from the combined effect of ss. 718.2(e) and 742.1" (para. 211).

[73] We accept that there is a link between the *Gladue* framework relating to s. 718.2(e) and the conditional sentence regime. Both were adopted as part of the same legislation aimed at reducing the use of prison as a sanction and expanding the use of restorative justice principles in sentencing (*Gladue*, at para. 48; *Proulx*, at paras. 15 and 18-21; *Wells*, at para. 6). However, Ms. Sharma's burden at step one was to demonstrate that the specific provisions she challenged created or contributed to a disproportionate impact on Indigenous offenders. While she did not have to prove that the impugned provisions removed access to a conditional sentence *because* she was Indigenous or that the impugned provisions were the *only* or the *dominant* cause of the disproportionate impact, she *did* have to demonstrate a causal connection.

[74] The sentencing judge did not accept that the impugned provisions disproportionately impact Indigenous offenders, for good reason. Dr. Murdocca testified that it was "unknown if recent statutory amendments that have restricted the use of conditional sentences may affect Aboriginal offenders disproportionately compared to non-Aboriginal offenders" (A.R., vol. II, at pp. 86-90 (emphasis added)). In light of all the evidence, the sentencing judge determined Ms. Sharma failed to satisfy step one. While the Court of Appeal overturned the sentencing judge's conclusion, it failed to identify *any* evidence supporting Ms. Sharma's argument that the impugned provisions created or contributed to a disproportionate impact on Indigenous offenders (see paras. 68-89). In saying this, we recognize that the Court of Appeal relied on fresh evidence, adduced by interveners, and expert evidence from Dr. Murdocca. It examined this evidence, however, at step two of its analysis (see paras. 90-105) …

[76] In short, the Court of Appeal erred by removing Ms. Sharma's evidentiary burden at step one. This is inconsistent with the sentencing judge's finding that Ms. Sharma failed to establish a distinction on the basis of a protected ground (para. 257). The Court of Appeal improperly substituted its own view of the matter. In this case, while Ms. Sharma was not required to adduce a specific type of evidence, she had to demonstrate that the impugned provisions created or contributed to a disproportionate impact. Ms. Sharma, for example, could have presented expert evidence or statistical data showing Indigenous imprisonment disproportionately increased for the specific offences targeted by the impugned provisions, relative to non-Indigenous offenders, after the *SSCA* came into force. Such evidence might establish that the removal of conditional sentences created or contributed to a disproportionate impact on Indigenous offenders.

[77] By overturning the sentence, the Court of Appeal not only departed from its proper role but misapplied the jurisprudence of this Court. In light of the sentencing judge's findings, Ms. Sharma's argument before this Court — that the impugned provisions "necessarily impac[t] Indigenous offenders differently" — cannot be accepted.

[78] Ms. Sharma argued that removing the availability of conditional sentences undermined a trial judge's ability to give effect to s. 718.2(e). She alleges that the removal of one "accommodation", the availability of conditional sentences for certain offences, disproportionately impacts Indigenous offenders. We do not accept this argument. It is clear that s. 718.2(e) is still meaningfully operable, as it was given effect in this case. As long as judges retain broad discretion to impose a range of available sentences, we query whether altering a single sentencing provision could undermine s. 718.2(e) in the manner Ms. Sharma suggests.

[79] It is undisputed that the sentencing judge must take account of the particular circumstances of Indigenous offenders, as that is what Parliament has directed in s. 718.2(e). How this is to be done may take various forms and the *Criminal Code* provides judges broad discretion to craft a proportionate sentence, given the offender's degree of responsibility, the gravity of the offence and the specific circumstance of each case (*R. v. Lacasse*, 2015 SCC 64, [2015] 3 SCR 1089, at para. 58). For instance, sentencing judges may consider other non-carceral options such as suspended sentences and probation. They may also reduce sentences below the typical range.

[80] It is true that suspended sentences are "primarily a rehabilitative sentencing tool", whereas conditional sentences "address both punitive and rehabilitative objectives" (*Proulx*, at para. 23). Suspended sentences are not irrelevant to applying s. 718.2(e). *Proulx* does not prohibit judges from using suspended sentences "to endeavour to achieve a truly fit and proper sentence in the particular case" (*Gladue*, at

para. 33). Where conditional sentences are unavailable, judges may give effect to s. 718.2(e) by considering suspended sentences with openness and flexibility.

[81] In any event, and as we say, it is clear that s. 718.2(e) was given effect in the circumstances of this case. The judge sentenced Ms. Sharma to 18 months' incarceration, taking into account her experience as an Indigenous person under the *Gladue* framework, which was well below the established range for similar offences (sentencing reasons, at para. 80). As a reminder, s. 718.2(e) does not guarantee that Indigenous offenders will not receive carceral sentences …

[83] Given the above, there is no need to consider step two. Section 15(1) is not infringed.

3.5 Notes and Questions

1. The *Sharma* majority explained: "we do not alter the two-step test for s. 15(1). Rather, we seek to bring clarity and predictability to its application" (at para 33). Having now read *Eldridge*, *Vriend*, and *Fraser*, **is this claim by the *Sharma* majority credible, or are there any tensions between *Sharma* and that prior section 15 jurisprudence? As a thought experiment, consider both the content and tone of the *Sharma* majority, and reflect on whether, unbridled by precedent, it would have decided in favour of the plaintiffs in *Eldridge*, *Vriend*, or *Fraser*.**
2. Professor Jonnette Watson Hamilton observes that *Fraser* "is only the third adverse effects claim under s. 15(1) … to succeed since section 15 came into force in 1985", with the "other two cases" being *Eldridge* and *Vriend* ("Cautious Optimism: Fraser v Canada (Attorney General)", 2021 CanLIIDocs 1012). **Why have adverse effects claims been so infrequently successful? And given the importance of those claims emphasized in *Fraser*, is there a gap between legal principle and practice relating to substantive inequality?**
3. Professor Joshua Sealy-Harrington criticizes Canada's "Charter of Whites" for failing to engage with racial inequality:

   > I will be blunt: were "race" not listed as a protected ground under the Charter, it is not apparent to me that there would have been much difference in the Supreme Court's first four decades of equality jurisprudence – at least, not for Indigenous and Black people, who are the focus of my analysis here. The protected grounds enumerated in the Charter are "race, national or ethnic origin, colour, religion, sex, age or mental or physical disability." Yet the Supreme Court has barely considered racial discrimination claims. Race is, thus, *first listed yet last enforced* – a constitutional token to a promise of racial equality left not only with little success but with little attempt (Joshua Sealy-Harrington, "The *Charter* of Whites: Systemic Racism and Critical Race Equality in Canada" (2023) 39 Windsor Y B Access Just 544 ↗)

   What explains this constitutional silence? If there is systemic racism in Canada (for example, in criminal punishment, border regulation, or labour markets), why is it so scarcely considered by Canadian courts?
4. Pre-*Fraser*, Professors Jonnette Watson Hamilton and Jennifer Koshan argued that "the Court's approach to section 15(1) of the Charter, while accepting adverse effects discrimination in principle, has used direct discrimination as the paradigmatic case, and as a result, the Court's approach has had an adverse impact on adverse effects discrimination claims" (Jonnette Watson Hamilton & Jennifer Koshan, "Adverse Impact: The Supreme Court's Approach to Adverse Effects Discrimination under Section 15 of the Charter" (2015) 19:2 Rev Const Stud 191). **Post-*Fraser* (and *Sharma*) how would you say that the Court conceptualizes the "paradigmatic case" of discrimination? Did *Fraser* shift that paradigmatic case? And did *Sharma* reverse that shift?**
5. The *Fraser* dissent by Brown and Rowe JJ. concluded that the "practical effect" of the majority imposed "a positive obligation" on the state to "*eradicate*" social inequality (at para 212; emphasis in original). In stark contrast, the majority explained that the RCMP's pension scheme was discriminatory "not because women continue to have disproportionate responsibility for childcare and less stable working hours than men, but because the pension plan 'institutionalize[s] those traits as a basis on which to unequally distribute' pension benefits to job-sharing participants." **Which characterization of the majority opinion is more persuasive? And insofar as social inequality necessarily entangles with law and policy, is it possible to interpret substantive inequality *without* reference to social inequality?**
6. The idea of "choice" has loomed large in equality jurisprudence, both under human rights codes (see e.g., *Stewart v. Elk Valley Coal Corp.*, 2017 SCC 30 (CanLII), [2017] 1 SCR 591 at paras 32-35, 50, and 97-102) and under section 15 the *Charter*.

   For example, in *Fraser* the lower courts relied heavily on choice: the Federal Court found no discrimination because women make a "difficult" choice to job share (at para 137) and the Federal Court of Appeal found no discrimination because women "elected to job-share" (at para 53). These judgments focused on the differential access to pension benefits as between job-sharers and those on leave without pay, and thus as a matter of choice of job status rather than gendered adverse impact for part-time workers. Even the dissenting opinions at the Supreme Court, while equivocal on the relevance of choice, still seemed to reason that choice should, in cases like this, limit the scope of substantive equality (at paras 197 and 249-250). In stark contrast, the majority opinion expressly rejected this over-emphasis on choice when analyzing discrimination:

   > [86] In relying on Ms. Fraser's "choice" to job-share as grounds for dismissing her claim, the Federal Court and Court of Appeal, with respect, misapprehended our s. 15(1) jurisprudence. This Court has consistently held that differential treatment can be discriminatory even if it is based on choices made by the affected individual or group.
   >
   > [87] In *Brooks*, for example, Dickson C.J. rejected an employer's argument that providing unequal benefits to pregnant women is not sex discrimination because pregnancy is "voluntary" (pp. 1237-38) …
   >
   > [91] The case before us highlights the flaws of over-emphasizing choice in the s. 15 inquiry. For many women, the decision to work on a part-time basis, far from being an unencumbered choice, "often lies beyond the individual's effective control" (*Miron*, at para. 153; *Quebec v. A*, at para. 316; see also Watson Hamilton and Koshan (2015), at p. 202). Deciding to work part-time, for many women, is a "choice" between either staying above or below the poverty line …
   >
   > [92] By invoking the "choice" to job-share as a basis for rejecting the s. 15(1) claim, the Federal Court and Court of Appeal removed the "challenged inequality from scrutiny, effectively taking it off the radar screen so as to circumvent examination of the equality issues at stake" (Majury, at p. 219). It is an approach that this Court's s. 15 jurisprudence eschews.

   This tension over "choice" has a long history in section 15 jurisprudence in both adverse effects and direct discrimination cases. Consider *Gosselin v. Québec (Attorney General)*, 2002 SCC 84 (CanLII), [2002] 4 SCR 429, which concerned a Quebec welfare scheme that provided residents under age 30 with financial support that was "far below not just the government's poverty line, but its basic survival amount" unless they participated in certain employment training programs (at para 252; per Bastarache J., dissenting but not on this point).

   The Court divided 5-4 on whether the welfare scheme was discriminatory, with a clear divergence on how—or whether—choice should inform equality analysis.

McLachlin C.J., writing for the majority, held the scheme was not discriminatory. She implicitly criticized the choices of the claimant, who "received social assistance" during "most of her adult life" (at para 1) and "ended up dropping out of virtually every [job-training] program she started, apparently because of her own personal problems and personality traits" (at para 8). In the Chief Justice's words, "[w]hatever sympathy Ms. Gosselin's economic circumstances might provoke" (at para 19), the 'benevolent paternalism' of Quebec's welfare scheme was not discriminatory:

> 42 The government's longer-term purpose was to provide young welfare recipients with precisely the kind of remedial education and skills training they lacked and needed in order eventually to integrate into the workforce and become self-sufficient. This policy reflects the practical wisdom of the old Chinese proverb: "Give a man a fish and you feed him for a day. Teach him how to fish and you feed him for a lifetime." This was not a denial of young people's dignity; it was an affirmation of their potential.

Indeed, the Chief Justice characterized the scheme's coercion of young welfare recipients not simply as *non*-discriminatory, but *anti*-discriminatory:

> 65 … [T]he regime set up under the *Social Aid Act* sought to promote the self-sufficiency and autonomy of young welfare recipients through their integration into the productive workforce, and to combat the pernicious side effects of unemployment and welfare dependency. The participation incentive worked towards the realization of goals that go to the heart of the equality guarantee: self-determination, personal autonomy, self-respect, feelings of self-worth, and empowerment. These are the stuff and substance of essential human dignity: see *Law*, *supra*, at para. 53. I respectfully disagree with the suggestion that the incentive provisions somehow indicated disdain for young people or a belief that they could be made productive only through coercion. On the contrary, the program's structure reflected faith in the usefulness of education and the importance of encouraging young people to develop their skills and employability, rather than being consigned to dependence and unemployment. In my view, the interest promoted by the differential treatment at issue in this case is intimately and inextricably linked to the essential human dignity that animates the equality guarantee set out at s. 15(1) of the *Canadian Charter*.

In significant contrast, four separate dissenting opinions found the welfare scheme discriminatory based on a different understanding and analysis of choice.

For example, L'Heureux-Dubé J. emphasized the impacts of Quebec's welfare scheme and noted how its practical limitations left the vast majority of young recipients "unable" to qualify for adequate support:

> 130 As a result of s. 29(*a*), adults under 30 were uniquely exposed by the legislative scheme to the threat of living beneath what the government itself considered to be a subsistence level of income. Of those eligible to participate in the programs, 88.8 percent were unable to increase their benefits to the level payable to those 30 and over. Ms. Gosselin was exposed to the risk of severe poverty as a sole consequence of being under 30 years of age. Ms. Gosselin's psychological and physical integrity were breached. There is little question that living with the constant threat of poverty is psychologically harmful. There is no dispute that Ms. Gosselin lived at times below the government's own standard of bare subsistence. In 1987, the monthly cost of proper nourishment was $152. The guaranteed monthly payment to young adults was $170. I cannot imagine how it can be maintained that Ms. Gosselin's physical integrity was not breached.
>
> 131 The sole remaining question is whether a reasonable person in Ms. Gosselin's position, apprised of all the circumstances, would perceive that her dignity had been threatened. The reasonable claimant would have been informed of the legislature's intention to help young people enter the marketplace. She would have been informed that those 30 and over have more difficulty changing careers, and that those under 30 run serious social and personal risks if they do not enter the job market in a timely manner. She would have been told that the long-term goal of the legislative scheme was to affirm her dignity.
>
> 132 The reasonable claimant would also likely have been a member of the 88.8 percent who were eligible for the programs and whose income did not rise to the levels available to all adults 30 years of age and over. Even if she wished to participate in training programs, she would have found that there were intervals between the completion of one program and the starting of another, during which the amount of her social assistance benefit would have plunged. The reasonable claimant would have made daily life choices in the face of an imminent and severe threat of poverty … The reasonable claimant would have perceived that as a result of her deep poverty, she had been excluded from full participation in Canadian society. She would have perceived that her right to dignity was infringed as a sole consequence of being under 30 years of age, a factor over which, at any given moment, she had no control. While individuals may be able to strive to overcome the detriment imposed by merit-based distinctions, Ms. Gosselin was powerless to alter the single personal characteristic that the government's scheme made determinative for her level of benefits.

Relatedly, LeBel J. reasoned, in effect, that the Chief Justice's analysis of choice relied on the very stereotypes that section 15 was intended to challenge:

> 405 In this case, the distinction based on age … does not reflect either the needs or the abilities of social aid recipients under 30 years of age. The ordinary needs of young people are not so different from the needs of their elders as to justify such a pronounced discrepancy between the two groups' benefits. As well, young people are no more able to find or keep a job during an economic slowdown than are their elders. In fact, young people are the first to feel the impact of an economic crisis on the labour market. Because they have little experience or seniority, they are at the top of the list for termination and lay-off … Also, because the distinction made by the social aid scheme was justified by the fact that young people are able to survive a period of economic crisis better, I, like Bastarache J., am of the opinion that this distinction perpetuated a stereotypical view of young people's situation on the labour market …
>
> 407 I am prepared to concede that the Quebec government knew that young people are particularly vulnerable during an economic slowdown. As well, I readily acknowledge that the government sincerely believed that it was helping young people by making the payment of full benefits conditional on participation in an employability program. Nonetheless, the distinction made by the social aid scheme did not reflect the needs of young social assistance recipients under the age of 30. By trying to combat the pull of social assistance, for the "good" of the young people themselves who depended on it, the distinction perpetuated the stereotypical view that a majority of young social assistance recipients choose to freeload off society permanently and have no desire to get out of that comfortable situation. There is no basis for that vision of young social assistance recipients as "parasites". It has been disproved by numerous experts.

Which analysis of "choice" do you find more persuasive? In *Fraser*, should a woman's choice to job share factor into whether her lower pension is understood as discriminatory? And in *Gosselin*, should a youth's choice to attend employment training factor into whether denying them adequate welfare is understood as discriminatory? Notice that, in both *Fraser* (gender) and *Gosselin* (age), the claim fundamentally concerns the intersection of protected grounds with economic marginalization. **Might this nexus with economic inequality contribute to certain judges' appetite for choice-based reasoning? How does this nexus impact your understanding of the relationship between choice and discrimination? More specifically, do women and youth meaningfully "choose" economic disadvantage, or does the logic of choice *individualize* broader systems (e.g., capitalism and patriarchy) that should be accounted for in a robust constitutional analysis?**

While both *Fraser* and *Gosselin* involve "choices", one might construct these choices differently in relation to substantive equality. **What about the choices in *Fraser* and *Gosselin* is similar? And what about the choices differs? Are there certain groups—or circumstances—where society might consider state coercion more legitimate? And if that legitimacy is connected to potential stereotypes about those groups, how should courts navigate constitutional scrutiny of that coercion?**

More broadly, whereas discrimination historically involved more overt classificatory schemes of oppression—e.g., segregation based on race and voting based on gender (and race)—modern discrimination tends to involve systemic disparities in otherwise "neutral" schemes. Presumably with this social context in mind, Abella J. in *Fraser* described "[a]ddressing adverse impact discrimination" as "among the 'most powerful legal measures available to disadvantaged groups in society to assert their claims to justice.'" She continued: "Not only is such discrimination 'much more prevalent than the cruder brand of openly direct discrimination', it often poses a greater threat to the equality aspirations of disadvantaged groups" (at para 35). **What modern forms of discrimination cannot be evaded—or, at least, mitigated—by "choices" made by protected groups to assimilate to dominant norms? How, then, should "choice" generally be accounted for in analysis of substantive inequality?**

Choice is also implicit in the Supreme Court's approach to analogous grounds of discrimination, which we turn to next.

4 Analogous Grounds of Discrimination

4.1 *Corbiere v. Canada (Minister of Indian and Northern Affairs)*, 1999 CanLII 687 (SCC), [1999] 2 SCR 203

As discussed above—under Part 1: "The Text"—section 15(1) guarantees equality "without discrimination and, in particular, without discrimination based on race, national or ethnic origin, colour, religion, sex, age or mental or physical disability." And as excerpted earlier—under Part 2.1: "*Andrews v. Law Society of British Columbia*"—this constitutional text has been interpreted as contemplating enumerated *and* analogous grounds of discrimination from the very outset of the Court's equality jurisprudence: "The enumerated grounds in s. 15(1) are not exclusive and the limits, if any, on grounds for discrimination which may be established in future cases await definition" (at 175; Supreme Court Reports). The main "future case" considering such limits on protected grounds was *Corbiere*, which remains the Court's leading decision on the framework for identifying analogous grounds. It considered "whether the exclusion of off-reserve members of an Indian band from the right to vote in band elections" under the *Indian Act* infringed s. 15(1) of the *Charter* (at para 3). At the time of *Corbiere*, *Law v Canada* provided a three-step framework for section 15(1) focused on (1) distinction, (2) grounds, and (3) discrimination. In *Corbiere*, the Court unanimously held that "Aboriginality-residence"—i.e., "off-reserve Band member status"—was an analogous ground of discrimination. But it included two opinions: a 5-judge majority and a 4-judge concurrence that left ambiguous the nature of disagreement between them, including with respect to their analysis of analogous grounds. Given that ambiguity, key passages from both the majority and concurring opinions are included below.

> The judgment of Lamer C.J. and Cory, McLachlin, Major and Bastarache JJ. was delivered by
>
> //McLachlin and Bastarache JJ.//
>
> 1 We have read the reasons for judgment of Justice L'Heureux-Dubé. We believe that this case can be resolved on simpler grounds. We will therefore briefly outline the reasoning upon which we base our own decision.
>
> 2 L'Heureux-Dubé J. has set out in detail the facts in this case as well as a description of its judicial history. We adopt this factual background.
>
> 3 The narrow issue raised in this appeal is whether the exclusion of off-reserve members of an Indian band from the right to vote in band elections pursuant to s. 77(1) of the *Indian Act*, R.S.C., 1985, c. I-5, is inconsistent with s. 15(1) of the *Canadian Charter of Rights and Freedoms* …
>
> 6 We agree with L'Heureux-Dubé J. that Aboriginality-residence (off-reserve band member status) constitutes a ground of discrimination analogous to the enumerated grounds. However, we wish to comment on two matters: (1) the suggestion by some that the same ground may or may not be analogous depending on the circumstances; and (2) the criteria that identify an analogous ground.
>
> 7 The enumerated grounds function as legislative markers of suspect grounds associated with stereotypical, discriminatory decision making. They are a legal expression of a general characteristic, not a contextual, fact-based conclusion about whether discrimination exists in a particular case. As such, the enumerated grounds must be distinguished from a finding that discrimination exists in a particular case. Since the enumerated grounds are only indicators of suspect grounds of distinction, it follows that decisions on these grounds are not always discriminatory; if this were otherwise, it would be unnecessary to proceed to the separate examination of discrimination …
>
> 8 The same applies to the grounds recognized by the courts as "analogous" to the grounds enumerated in s. 15. To say that a ground of distinction is an analogous ground is merely to identify a type of decision making that is suspect because it often leads to discrimination and denial of substantive equality. Like distinctions made on enumerated grounds, distinctions made on analogous grounds may well not be discriminatory. But this does not mean that they are not analogous grounds or that they are analogous grounds only in some circumstances. Just as we do not speak of enumerated grounds existing in one circumstance and not another, we should not speak of analogous grounds existing in one circumstance and not another. The enumerated and analogous grounds stand as constant markers of suspect decision making or potential discrimination. What varies is whether they amount to discrimination in the particular circumstances of the case.
>
> 9 We therefore disagree with the view that a marker of discrimination can change from case to case, depending on the government action challenged. It seems to us that it is not the ground that varies from case to case, but the determination of whether a distinction on the basis of a constitutionally cognizable ground is discriminatory. Sex will always be a ground, although sex-based legislative distinctions may not always be discriminatory. To be sure, *R. v. Turpin*, 1989 CanLII 98 (SCC), [1989] 1 SCR 1296, suggested that residence might be an analogous ground in certain contexts. But in view of the synthesis of previous cases suggested in *Law*, *supra*, it is more likely that today the same result, dismissal of the claim, would be achieved either by finding no analogous ground or no discrimination in fact going to essential human dignity.
>
> 10 If it is the intention of L'Heureux-Dubé J.'s reasons to affirm contextual dependency of the enumerated and analogous grounds, we must respectfully disagree. If "Aboriginality-residence" is to be an analogous ground (and we agree with L'Heureux-Dubé J. that it should), then it must always stand as a constant marker of potential legislative discrimination, whether the challenge is to a governmental tax credit, a voting right, or a pension scheme. This established, the analysis moves to the third stage: whether the distinction amounts, in purpose or effect, to discrimination on the facts of the case.
>
> 11 Maintaining the distinction in *Law*, *supra*, between the enumerated or analogous ground analysis and the third-stage contextual discrimination analysis, offers several advantages. Both stages are concerned with discrimination and the violation of the presumption of the equal dignity and worth of every human being. But they approach it from different perspectives. The analogous grounds serve as jurisprudential markers for suspect distinctions. They function conceptually to identify the sorts of claims that properly fall under s. 15. By

screening out other cases, they avoid trivializing the s. 15 equality guarantee and promote the efficient use of judicial resources. And they permit the development over time of a conceptual jurisprudence of the sorts of distinctions that fall under the s. 15 guarantee, without foreclosing new cases of discrimination. A distinction on an enumerated or analogous ground established, the contextual and fact-specific inquiry proceeds to whether the distinction amounts to discrimination in the context of the particular case.

12 Our second concern relates to the manner in which a new analogous ground may be identified. In our view, conflation of the second and third stages of the *Law* framework is to be avoided. To be sure, *Law* is meant to provide a set of guidelines and not a formalistic straitjacket, but the second and third stages are unquestionably distinct: the former asks whether the distinction is on the basis of an enumerated or analogous ground, the latter whether that distinction on the facts of the case affronts s. 15. Affirmative answers to both inquiries are a precondition to establishing a constitutional claim.

13 What then are the criteria by which we identify a ground of distinction as analogous? The obvious answer is that we look for grounds of distinction that are analogous or like the grounds enumerated in s. 15 — race, national or ethnic origin, colour, religion, sex, age, or mental or physical disability. It seems to us that what these grounds have in common is the fact that they often serve as the basis for stereotypical decisions made not on the basis of merit but on the basis of a personal characteristic that is immutable or changeable only at unacceptable cost to personal identity. This suggests that the thrust of identification of analogous grounds at the second stage of the *Law* analysis is to reveal grounds based on characteristics that we cannot change or that the government has no legitimate interest in expecting us to change to receive equal treatment under the law. To put it another way, s. 15 targets the denial of equal treatment on grounds that are actually immutable, like race, or constructively immutable, like religion. Other factors identified in the cases as associated with the enumerated and analogous grounds, like the fact that the decision adversely impacts on a discrete and insular minority or a group that has been historically discriminated against, may be seen to flow from the central concept of immutable or constructively immutable personal characteristics, which too often have served as illegitimate and demeaning proxies for merit-based decision making.

14 L'Heureux-Dubé J. ultimately concludes that "Aboriginality-residence" as it pertains to whether an Aboriginal band member lives on or off the reserve is an analogous ground. We agree. L'Heureux-Dubé J.'s discussion makes clear that the distinction goes to a personal characteristic essential to a band member's personal identity, which is no less constructively immutable than religion or citizenship. Off-reserve Aboriginal band members can change their status to on-reserve band members only at great cost, if at all.

15 Two brief comments on this new analogous ground are warranted. First, reserve status should not be confused with residence. The ordinary "residence" decisions faced by the average Canadians should not be confused with the profound decisions Aboriginal band members make to live on or off their reserves, assuming choice is possible. The reality of their situation is unique and complex. Thus no new water is charted, in the sense of finding residence, in the generalized abstract, to be an analogous ground. Second, we note that the analogous ground of off-reserve status or Aboriginality-residence is limited to a subset of the Canadian population, while s. 15 is directed to everyone. In our view, this is no impediment to its inclusion as an analogous ground under s. 15. Its demographic limitation is no different, for example, from pregnancy, which is a distinct, but fundamentally interrelated form of discrimination from gender. "Embedded" analogous grounds may be necessary to permit meaningful consideration of intra-group discrimination …

The reasons of L'Heureux-Dubé, Gonthier, Iacobucci and Binnie JJ. were delivered by

//*L'Heureux-Dubé J.*//

58 The differential treatment in this case is based on the status of holding membership in an *Indian Act* band, but living off that band's reserve. This combination of traits does not fall under one of the enumerated or already recognized analogous grounds. The fundamental consideration at the second stage, if the ground is not enumerated or already recognized as analogous, is whether recognition of the basis of differential treatment as an analogous ground would further the purposes of s. 15(1): *Law*, *supra*, at para. 93. These purposes are, as stated at para. 51 of *Law*:

> [T]o prevent the violation of essential human dignity and freedom through the imposition of disadvantage, stereotyping, or political or social prejudice, and to promote a society in which all persons enjoy equal recognition at law as human beings or as members of Canadian society, equally capable and equally deserving of concern, respect and consideration.

59 The analysis at the analogous grounds stage involves considering whether differential treatment of those defined by that characteristic or combination of traits has the potential to violate human dignity in the sense underlying s. 15(1): *Egan v. Canada*, 1995 CanLII 98 (SCC), [1995] 2 SCR 513, at para. 171, *per* Cory J. In *Law*, the concept of human dignity as it relates to s. 15(1) was described by Iacobucci J., at para. 53, as follows:

> Human dignity means that an individual or group feels self-respect and self-worth. It is concerned with physical and psychological empowerment and integrity. Human dignity is harmed by unfair treatment premised on personal traits or circumstances which do not relate to individual needs, capacities, or merits. It is enhanced by laws which are sensitive to the needs, capacities, and merits of different individuals, taking into account the context underlying their differences. Human dignity is harmed when individuals and groups are marginalized, ignored, or devalued, and is enhanced when laws recognize the full place of all individuals and groups within Canadian society. Human dignity within the meaning of the equality guarantee does not relate to the status or position of an individual in society *per se*, but rather concerns the manner in which a person legitimately feels when confronted with a particular law.

The analogous grounds inquiry, like the other two stages of analysis, must be undertaken in a purposive and contextual manner: *Law*, *supra*, at para. 41. The "nature and situation of the individual or group at issue, and the social, political, and legal history of Canadian society's treatment of that group" must be considered: *Law*, *supra*, at para. 93. As stated by Wilson J. in *Andrews*, *supra*, at p. 152, cited with approval in *Law* at para. 29, the determination of whether a ground qualifies as analogous under s. 15(1):

> . . . is not to be made only in the context of the law which is subject to challenge but rather in the context of the place of the group in the entire social, political and legal fabric of our society. While legislatures must inevitably draw distinctions among the governed, such distinctions should not bring about or reinforce the disadvantage of certain groups and individuals by denying them the rights freely accorded to others.

60 Various contextual factors have been recognized in the case law that may demonstrate that the trait or combination of traits by which the claimants are defined has discriminatory potential. An analogous ground may be shown by the fundamental nature of the characteristic: whether from the perspective of a reasonable person in the position of the claimant, it is important to their identity, personhood, or belonging. The fact that a characteristic is immutable, difficult to change, or changeable only at unacceptable personal cost may also lead to its recognition as an analogous ground: *Miron v. Trudel*, 1995 CanLII 97 (SCC), [1995] 2 SCR 418, at para. 148; *Vriend v. Alberta*, 1998 CanLII 816 (SCC), [1998] 1 SCR 493, at para. 90. It is also central to the analysis if those defined by the characteristic are lacking in political power, disadvantaged, or vulnerable to becoming disadvantaged or having their interests overlooked: *Andrews*, *supra*, at p. 152; *Law*, *supra*, at para. 29. Another indicator is whether the ground is included in federal and provincial human rights codes: *Miron*, *supra*, at para. 148. Other criteria, of course, may also be considered in subsequent cases, and none of the above indicators are necessary for the recognition of an analogous ground or combination of grounds: *Miron*, *supra*, at para. 149.

> 61 I should also note that if indicia of an analogous ground are not present in general, or among a certain group in Canadian society, they may nevertheless be present in another social or legislative context, within a different group in Canadian society, or in a given geographic area, to give only a few examples. Here, to illustrate, the nature of the decisions band members make about whether to live on or off a reserve are different from those made by many other Canadians in relation to their place of residence. So are other factors related to the analogous grounds analysis that still affect them. The second stage must therefore be flexible enough to adapt to stereotyping, prejudice, or denials of human dignity and worth that might occur in specific ways for specific groups of people, to recognize that personal characteristics may overlap or intersect (such as race, band membership, and place of residence in this case), and to reflect changing social phenomena or new or different forms of stereotyping or prejudice. As this Court unanimously held in *Law*, *supra*, at para. 73: "The possibility of new forms of discrimination denying essential human worth cannot be foreclosed".
>
> 62 Here, several factors lead to the conclusion that recognizing off-reserve band member status as an analogous ground would accord with the purposes of s. 15(1). From the perspective of off-reserve band members, the choice of whether to live on- or off-reserve, if it is available to them, is an important one to their identity and personhood, and is therefore fundamental. It involves choosing whether to live with other members of the band to which they belong, or apart from them. It relates to a community and land that have particular social and cultural significance to many or most band members. Also critical is the fact that as discussed below during the third stage of analysis, band members living off-reserve have generally experienced disadvantage, stereotyping, and prejudice, and form part of a "discrete and insular minority" defined by race and place of residence. In addition, because of the lack of opportunities and housing on many reserves, and the fact that the *Indian Act*'s rules formerly removed band membership from various categories of band members, residence off the reserve has often been forced upon them, or constitutes a choice made reluctantly or at high personal cost. For these reasons, the second stage of analysis has been satisfied, and "off-reserve band member status" is an analogous ground. It will hereafter be recognized as an analogous ground in any future case involving this combination of traits. I note that in making this determination, I make no findings about "residence" as an analogous ground in contexts other than as it affects band members who do not live on the reserve of the band to which they belong …
>
> 125 Since writing these reasons, I have had the advantage of reading the opinion of my colleagues McLachlin and Bastarache JJ. To the extent that their reasons suggest a departure from the approach to defining analogous grounds taken in *Andrews*, *Turpin, Egan*, *Miron*, and *Law*, I must respectfully disagree with their analysis. However, this being said, in my view there is no substantive difference in our respective reasons in the approach to the case at bar.

4.2 Notes and Questions

1. The 'respectful disagreement' between the majority and concurring opinions in *Corbiere* is unclear. For example, the majority writes tentatively about the concurrence: "*If it is the intention* of L'Heureux-Dubé J.'s reasons to affirm contextual dependency of the enumerated and analogous grounds, we must respectfully disagree" (at para 10). Similarly, the concurrence writes tentatively about the majority: "*To the extent that* their reasons suggest a departure from the approach to defining analogous grounds taken in *Andrews*, *Turpin, Egan*, *Miron*, and *Law*, I must respectfully disagree with their analysis" (at para 125). Nevertheless, the majority and concurrence identically conclude that "Aboriginality-residence" is an analogous ground and will be recognized as such in future cases, with the majority affirming what the concurrence's "discussion makes clear" and the concurrence saying that "there is no substantive difference in [their] respective reasons in the approach to the case at bar" (at paras 14, 125). **What differences do you ascertain between the majority and concurring opinions in *Corbiere*? And how might those differences impact the future recognition of analogous grounds under the *Charter*?**
2. In addition to Aboriginality-residence, the Supreme Court of Canada has recognized as analogous grounds citizenship (*Andrews v. Law Society of British Columbia*, 1989 CanLII 2 (SCC), [1989] 1 SCR 143), marital status (*Miron v. Trudel*, 1995 CanLII 97 (SCC), [1995] 2 SCR 418), and sexual orientation (*Egan v. Canada*, 1995 CanLII 98 (SCC), [1995] 2 SCR 513). In contrast, it has rejected as analogous grounds occupation (*Baier v. Alberta*, 2007 SCC 31 (CanLII), [2007] 2 SCR 673), province of residence (*R. v. Turpin*, 1989 CanLII 98 (SCC), [1989] 1 SCR 1296), and substance orientation, i.e., the "recreational" or "lifestyle" choice of using marijuana (*R. v. Malmo-Levine; R. v. Caine*, 2003 SCC 74 (CanLII), [2003] 3 SCR 571). **Do you agree with these recognitions and rejections? And what do they convey about the nature of analogous grounds under section 15(1) of the *Charter*?**
3. *Dickson v. Vuntut Gwitchin First Nation*, 2024 SCC 10 (CanLII) was another case challenging a residency requirement for participation in an Indigenous community's election, but it arose in a distinct context: whereas *Corbiere* involved elections under the *Indian Act*, *Dickson* involved elections relating to a modern treaty. A majority of the Court applied the *Corbiere* approach in recognizing a new analogous ground: "non-resident status in a self-governing Indigenous community" (at para 198). They held that this ground was more appropriate than "Aboriginality-residence" in a case involving a modern treaty. In contrast, two dissenting justices found that the analogous ground of Aboriginality-residence remained applicable, despite this distinct setting. **What does *Dickson* suggest about the contextual nature of analogous grounds? Does this division provide further clarity—or confusion—concerning the tension in *Corbiere* about the "contextual dependency" of analogous grounds?**

   Whether framed as "Aboriginality-residence" (*Corbiere*) or "non-resident status in a self-governing Indigenous community" (*Dickson*), only part of the story of the complex factors influencing the residence of Indigenous people is told through these grounds.

   In *Corbiere*, Justice L'Heureux-Dubé noted that:

   > [72] Aboriginal women, who can be said to be doubly disadvantaged on the basis of both sex and race, are among those particularly affected by legislation relating to off-reserve band members, because of their history and circumstances in Canadian and Aboriginal society.

   This history includes the *Indian Act*'s "marrying out" provisions, under which "Indian" women and their descendants lost their status when they married men who did not have Indian status, whereas Indian men passed their status on to non-Indian women through marriage. This loss of status often resulted in Indigenous women and children leaving their communities. Even when their band membership was ultimately restored through legislative reform to the *Indian Act,* these women and their descendants were disproportionately represented in the category of non-residents (see *Corbiere*, at paras 86-89).

   Moreover, in *Dickson*, the residency requirement was challenged by a woman who could not live in her Nation's home community, in part, because she was the mother of a child who required medical care in a larger urban centre.

   Could *Corbiere* and *Dickson* have been framed, instead, as adverse effect claims challenging the residency requirements based on the intersection of sex with Indigeneity? How would such a shift in framing impact the analysis of discrimination, or potential remedies? And what challenges might such a framing present?
4. Professor Joshua Sealy-Harrington notes that "immutability" is a vexing paradigm for conceptualizing protected grounds under the *Charter*:

> [H]ow would the Court characterize the actual immutability of generally stable, yet changeable, enumerated grounds such as sex and colour? How would the Court characterize the immutability of enumerated grounds that change over time but often due to factors beyond our control, such as age and temporary disability? With respect to potential analogous grounds, how would the Court characterize the actual immutability of characteristics that are difficult, but not impossible, to change, such as weight and poverty? To date, an adequate answer to these questions remains elusive, and they must be discussed further to develop a robust and predictable approach to analogous grounds (Joshua Sealy-Harrington, "Assessing Analogous Grounds: The Doctrinal and Normative Superiority of a Multi-Variable Approach" (2013) 10 JL & Equal 37 at 49).

Is "immutability"—or even "constructive immutability"—a coherent paradigm for conceptualizing protected grounds under the *Charter*? What does it helpfully capture? And what might it unhelpfully obscure? To assist in reflecting on whether "immutability" comprehensively captures substantive inequality, consider the well-documented "pandemic" of violence against transgender people (see Florence Ashley, "Don't Be So Hateful: The Insufficiency of Anti-Discrimination and Hate Crime Laws in Improving Trans Wellbeing" (2018) 68:1 UTLJ 1 at 1). In Canada, while the Supreme Court has characterized transgender people as "undeniably a marginalized group in Canadian society" (*Hansman v Neufeld*, 2023 SCC 14 (CanLII) at para 84), it has not yet formally recognized gender identity as an analogous ground. That said, gender identity has been accepted as an analogous ground by several lower courts (see e.g. *Egale Canada v Alberta*, 2025 ABKB 394; *Centre for Gender Advocacy v Attorney General of Quebec*, 2021 QCCS 191). In stark contrast are these recent remarks from Justice Barrett of the U.S. Supreme Court rejecting transgender status as a "suspect class" in *United States v. Skrmetti*, 605 U.S. (2025) (Concurring opinion of Justice Barrett, at 4):

> The Sixth Circuit held that transgender individuals do not constitute a suspect class, and it was right to do so. To begin, transgender status is not marked by the same sort of "'obvious, immutable, or distinguishing characteristics'" as race or sex … In particular, it is not defined by a trait that is "'definitively ascertainable at the moment of birth.'" … The plaintiffs here, for instance, began to experience gender dysphoria at varying ages—some from a young age, others not until the onset of puberty … Meanwhile, the plaintiffs acknowledge that some transgender individuals "detransition" later in life—in other words, they begin to identify again with the gender that corresponds to their biological sex … Accordingly, transgender status does not turn on an "immutable . . . characteristi[c]."

Setting aside the well-theorized social construction of identities like race and sex/gender (see e.g., Michael Omi & Howard Winant, *Racial Formation in the United States*, 3rd ed (New York, NY: Routledge, 2015); Paisley Currah, *Sex Is as Sex Does: Governing Transgender Identity* (New York, NY: NYU Press, 2022), are religion, mental disability, or physical disability "definitively ascertainable at the moment of birth"? If not, how can one reconcile unambiguous protected grounds with such narrow articulations of analogous grounds and equality law doctrine?

5. Above—under Part 3: "Adverse Effects Discrimination"—we included a guiding question about "choice" and its impact on analysis of discrimination. But the idea of choice has also impacted the identification of analogous grounds.

   As noted, choice has not categorically prohibited the recognition of analogous grounds. Indeed, many of those grounds which have been recognized to date—e.g., Aboriginality-residence, citizenship, and marital status—involve elements of choice, albeit under conditions of severe constraint. But other "choices" have received *different*—even *inverse*—jurisprudential treatment.

   Recall *Gosselin v. Québec (Attorney General)*, 2002 SCC 84 (CanLII), [2002] 4 SCR 429, which concerned a Quebec welfare scheme that provided young residents with financial support that was "far below not just the government's poverty line, but its basic survival amount" unless they participated in certain employment training programs (at para 252; per Bastarache J., dissenting but not on this point).

   McLachlin C.J., writing for the majority, strictly limited her analysis to "age", the enumerated ground underlying the claim (see para 19), and was generally unsympathetic to young welfare recipients who, in her view, chose below-subsistence welfare by failing to complete training programs. In contrast, Bastarache J.'s dissenting opinion (which Arbour J. was in "general agreement" with; at para 395) alluded to an analogous ground of "beneficiaries of social assistance" and considered "the vulnerability of … welfare recipients" essential to a contextual analysis:

   > 236 The appellant argues that people on social assistance have always suffered disadvantage because they are victims of stereotypical assumptions regarding the reasons for being welfare recipients, and are therefore marginalized from society. In making such an argument, the appellant is not comparing social assistance recipients under 30 to those 30 and over, but instead, comparing the relative position of young social assistance recipients to members of society as a whole. This raises the question of determining what is the proper comparator …
   >
   > 238 … The fact that people on social assistance are in a precarious, vulnerable position adds weight to the argument that differentiation that affects them negatively may pose a greater threat to their human dignity. The fact that their status as beneficiaries of social assistance was not argued as constituting a new analogous ground should not be a matter of concern at this stage of the analysis, since it has already been determined at the second stage of the *Law* test that the differentiation has been made on the basis of an enumerated ground. The issue, at this stage, is to determine whether, in the context of this case, a differentiation based on an enumerated ground is threatening to the appellant's human dignity. If the vulnerability of the appellant's group as welfare recipients cannot be recognized at this stage, can we really be said to be undertaking a contextual analysis?

   Which analysis of "choice" do you find more persuasive in *Gosselin*? Specifically, do the choices of low-income people alter their status as a marginalized community? And, drawing on the enumerated grounds (to which novel protected grounds are analogized), does the ability for racial minorities to assimilate to white norms, religious minorities to convert to Christianity, or anyone's ability to avoid certain disabilities through prudence, negate race, religion, or disability as suspect grounds of legislative distinction?

6. Beyond the brief discussion in *Gosselin* excerpted above, poverty as an analogous ground of discrimination has been a long-standing controversy under section 15. In 1994, Professor Martha Jackman presciently critiqued the *Charter*'s substantive limitations without protection against poverty-based discrimination:

   > [G]iven the severe impact of poverty on social conditions, opportunities and status in Canadian society, the *Charter*'s guarantee of substantive equality will remain meaningless for a vast number of Canadians unless poverty itself is recognized as a prohibited ground of discrimination under section 15 (Martha Jackman, "Constitutional Contact with the Disparities in the World: Poverty as a Prohibited Ground of Discrimination under the Canadian Charter and Human Rights Law" (1994) 2:1 Rev Const Stud 76 at 78).

   Some victories related to poverty have been constitutionally vindicated, albeit by lower courts—for example, in successful legal challenges relating to the unhoused (see e.g., *Victoria (City) v. Adams*, 2009 BCCA 563 (CanLII); *The Regional Municipality of Waterloo v. Persons Unknown and to be Ascertained*, 2023 ONSC 670 (Can LII)). Still, to date, poverty remains unrecognized as a protected ground of discrimination, despite ongoing—indeed, expanding—struggles for economic equality in Canada (see e.g., "What Does Ontario Law

Say About Clearing Encampments?" *The Agenda*, February 6, 2023, https://www.youtube.com/watch?v=G9gMCAmMWys; "Shelter Is Survival" British Columbia Civil Liberties Association (2025), https://bccla.org/campaign/shelter-is-survival/#:~:text=On%20January%2030%2C%202025%2C%20BCCLA,cruel%2C%20dehumanizing%2C%20and%20deadly).

If low-income people experience substantive inequality in Canadian society, on what normative or doctrinal basis are they so often excluded from constitutional protection against discrimination? Is there a level of economic inequality that could emerge such that poverty-based claims eventually become more constitutionally legible? Or are there specific manifestations of economic inequality—for example, "receipt of social assistance" (*Falkiner v. Ontario (Minister of Community and Social Services)*, 2002 CanLII 44902 (ON CA))—that, while narrower than "poverty", could still challenge substantive economic inequality in meaningful ways if recognized as an analogous ground by the Supreme Court?

7. In *Fraser*—discussed above under Part 3.3: "*Fraser v. Canada*"—the majority held that the RCMP's pension scheme was discriminatory because it systemically disadvantaged employees with caregiving responsibilities, who were mostly women. However, the plaintiffs also argued that the pension scheme discriminated based on the analogous ground of "family/parental status". The majority said the following with respect to this proposed ground of discrimination:

> [T]his is not the right case to resolve whether family/parental status should be recognized as an analogous ground under s. 15(1). Not only is recognizing a new analogous ground unnecessary to fully and fairly resolve Ms. Fraser's discrimination claim, a robust intersectional analysis of gender and parenting — as this case shows — can be carried out under the enumerated ground of sex, by acknowledging that the uneven division of childcare responsibilities is one of the "persistent systemic disadvantages [that] have operated to limit the opportunities available" to women in Canadian society (*Taypotat*, at para. 17; see also *Withler*, at para. 43; *Quebec v. A*, at paras. 327-32; *Alliance*, at para. 28; *Centrale*, at para. 35). Human rights cases in other jurisdictions confirm that claims of parental discrimination can be brought as claims of adverse impact discrimination on the basis of sex (see Fredman (2011), at pp. 181-82; Shilton (2018), at p. 36; *London Underground Ltd. v. Edwards (No. 2)*, [1999] I.C.R. 494 (E.W.C.A.); *Phillips v. Martin Marietta Corp.*, 400 U.S. 542 (1971); *Bostock v. Clayton County, Georgia*, 140 S. Ct. 1731 (2020), at p. 1743).

One response to this reasoning is that *Fraser* was a missed opportunity to recognize family status as an analogous ground to provide "more precise and nuanced protection for women caregivers at the intersection of gender and family in light of the particular inequalities this group faces", as well as protections for diverse family forms (see Jennifer Koshan, "Intersections and Roads Untravelled: Sex and Family Status in *Fraser v Canada*" (2021) 30:2 Constitutional Forum 29). **In the context of caregiving responsibilities, what is gained—and lost—analytically when that context is analyzed as a setting of inequality based on *gender*, rather than based on *family status*? Do these grounds differ in terms of focus? Or scale? Or remedy?**

Alternatively, continuing with *Fraser*'s logic: **Could a "robust intersectional analysis" of race and poverty be used as an alternative means for promoting the substantive equality of low-income people who, in Canada, are disproportionately racialized? Or could such an intersectional analysis be conducted for race and criminalization, given the overrepresentation of Black and Indigenous people in the context of policing, prosecutions, and prisons? See generally: Shreya Atrey, *Intersectional discrimination* (Oxford, UK: Oxford University Press, 2019).**

5 Affirmative Action and Section 15(2)

Prior to 2008, courts considered the ameliorative purpose of legislation as a factor relevant to whether there was discrimination, without formal reliance on section 15(2) of the *Charter* (see e.g. *Law v. Canada (Minister of Employment and Immigration)*, 1999 CanLII 675 (SCC), [1999] 1 SCR 497 at paras 72-73; *Lovelace v. Ontario*, 2000 SCC 37 (CanLII), [2000] 1 SCR 950 at paras 84-87). *Kapp,* excerpted below, was the first Supreme Court of Canada decision to give section 15(2) independent force in the section 15 analysis.

5.1 *R. v. Kapp*, 2008 SCC 41 (CanLII), [2008] 2 SCR 483

The judgment of McLachlin C.J. and Binnie, LeBel, Deschamps, Fish, Abella, Charron and Rothstein JJ. was delivered by

THE CHIEF JUSTICE AND ABELLA J. —

A. Introduction

[1] The appellants are commercial fishers, mainly non-aboriginal, who assert that their equality rights under s. 15 of the *Canadian Charter of Rights and Freedoms* were violated by a communal fishing licence granting members of three aboriginal bands the exclusive right to fish for salmon in the mouth of the Fraser River for a period of 24 hours on August 19-20, 1998.

[2] The appellants base their claim on s. 15(1). The essence of the claim is that the communal fishing licence discriminated against them on the basis of race. The Crown argues that the general purpose of the program under which the licence was issued was to regulate the fishery, and that it ameliorated the conditions of a disadvantaged group. These contentions, taken together, raise the issue of the interplay between s. 15(1) and s. 15(2) of the *Charter*. Specifically, they require this Court to consider whether s. 15(2) is capable of operating independently of s. 15(1) to protect ameliorative programs from claims of discrimination — a possibility left open in this Court's equality jurisprudence.

[3] We have concluded that where a program makes a distinction on one of the grounds enumerated under s. 15 or an analogous ground but has as its object the amelioration of the conditions of a disadvantaged group, s. 15's guarantee of substantive equality is furthered, and the claim of discrimination must fail. As the communal fishing licence challenged in this appeal falls within s. 15(2)'s ambit — one of its objects being to ameliorate the conditions of the participating aboriginal bands — the appellants' claim of a violation of s. 15 cannot succeed….

…

2. *Section 15(2)*

[27] Under *Andrews*, as previously noted, s. 15 does not mean identical treatment. McIntyre J. explained that "every difference in treatment between individuals under the law will not necessarily result in inequality", and that "identical treatment may frequently produce serious inequality" (p. 164). McIntyre J. explicitly rejected identical treatment as a *Charter* objective, based in part on the existence of s. 15(2). At p. 171, he stated that "the fact that identical treatment may frequently produce serious inequality is recognized in s. 15(2)".

[28] Rather than requiring identical treatment for everyone, in *Andrews*, McIntyre J. distinguished between difference and discrimination and adopted an approach to equality that acknowledged and accommodated differences…. In other words, not every distinction is discriminatory. By their very nature, programs designed to ameliorate the disadvantage of one group will inevitably exclude individuals from

other groups. This does not necessarily make them either unconstitutional or "reverse discrimination." *Andrews* requires that discriminatory conduct entail more than *different* treatment. As McIntyre J. declared at p. 167, a law will not "necessarily be bad because it makes distinctions".

[29] In our view, the appellants have established that they were treated differently based on an enumerated ground, race. Because the government argues that the program ameliorated the conditions of a disadvantaged group, we must take a more detailed look at s. 15(2).

[30] The question that arises is whether the program that targeted the aboriginal bands falls under s. 15(2) in the sense that it is a "law, program or activity that has as its object the amelioration of conditions of disadvantaged individuals or groups". As noted, the communal fishing licence authorizing the three bands to fish for sale on August 19-20 was issued pursuant to an enabling statute and regulations — namely the *ACFLR*. This qualifies as a "law, program or activity" within the meaning of s. 15(2). The more complex issue is whether the program fulfills the remaining criteria of s. 15(2) — that is, whether the program "has as its object the amelioration of conditions of disadvantaged individuals or groups".

[31] Even before the enactment of the *Charter*, this Court in *Athabasca Tribal Council v. Amoco Canada Petroleum Co.*, 1981 CanLII 193 (SCC), [1981] 1 SCR 699, recognized that ameliorative programs targeting a disadvantaged group do not constitute discrimination. The issue in the case was whether the Energy Resources Conservation Board had jurisdiction to require an "affirmative action" program for the hiring of aboriginal people as a condition of its approval of a tar sands plant. The Court unanimously concluded that there was no such jurisdiction, but Ritchie J., writing for four of the judges (Laskin C.J., himself, Dickson J. and McIntyre J.), addressed the affirmative action aspect of the case, concluding that a program designed to benefit the aboriginal community was not discrimination within the meaning of *The Individual's Rights Protection Act* of Alberta, S.A. 1972, c. 2. …

[32] The Royal Commission Report on *Equality in Employment*, whose mandate was to determine whether there should be affirmative action in Canada and on which McIntyre J. relied to develop his theories of discrimination and equality, set out the principles underlying s. 15(2), at pp. 13-14:

> In recognition of the journey many have yet to complete before they achieve equality, and in recognition of how the duration of the journey has been and is being unfairly protracted by arbitrary barriers, section 15(2) permits laws, programs, or activities designed to eliminate these restraints. While section 15(1) guarantees to individuals the right to be treated as equals free from discrimination, section 15(2), though itself creating no enforceable remedy, assures that it is neither discriminatory nor a violation of the equality guaranteed by section 15(1) to attempt to improve the condition of disadvantaged individuals or groups, even if this means treating them differently.
>
> Section 15(2) covers the canvas with a broad brush, permitting a group remedy for discrimination. The section encourages a comprehensive or systemic rather than a particularized approach to the elimination of discriminatory barriers.
>
> Section 15(2) does not create the statutory obligation to establish laws, programs, or activities to hasten equality, ameliorate disadvantage, or eliminate discrimination. But it sanctions them, acting with statutory acquiescence.

[33] In essence, s. 15(2) of the *Charter* seeks to protect efforts by the state to develop and adopt remedial schemes designed to assist disadvantaged groups. This interpretation is confirmed by the language in s. 15(2), "does not preclude".

[34] This Court dealt explicitly with the relationship between s. 15(1) and s. 15(2) in *Lovelace v. Ontario*, [2000] 1 SCR 950, 2000 SCC 37. The Court, *per* Iacobucci J., appeared unwilling at that time to give s. 15(2) independent force, but left the door open for that possibility, at para. 108:

> [A]t this stage of the jurisprudence, I see s. 15(2) as confirmatory of s. 15(1) and, in that respect, claimants arguing equality claims in the future should first be directed to s. 15(1) since that subsection can embrace ameliorative programs of the kind that are contemplated by s. 15(2). By doing that one can ensure that the program is subject to the full scrutiny of the discrimination analysis, as well as the possibility of a s. 1 review. *However, . . . we may well wish to reconsider this matter at a future time in the context of another case.* [Emphasis added.]

[35] Iacobucci J. in *Lovelace* perceived two possible approaches to the interpretation of s. 15(2). He believed that the Supreme Court could either read s. 15(2) as an interpretive aid to s. 15(1) (the approach adopted in *Lovelace*) or read it as an exception or exemption from the operation of s. 15(1).

[36] He favoured the interpretive aid approach, while acknowledging that the exemption approach had some support. …

[37] In our view, there is a third option: if the government can demonstrate that an impugned program meets the criteria of s. 15(2), it may be unnecessary to conduct a s. 15(1) analysis at all. As discussed at the outset of this analysis, s. 15(1) and s. 15(2) should be read as working together to promote substantive equality. The focus of s. 15(1) is on *preventing* governments from making distinctions based on enumerated or analogous grounds that have the effect of perpetuating disadvantage or prejudice or imposing disadvantage on the basis of stereotyping. The focus of s. 15(2) is on *enabling* governments to pro-actively combat discrimination. Read thus, the two sections are confirmatory of each other. Section 15(2) supports a full expression of equality, rather than derogating from it. "Under a substantive definition of equality, different treatment in the service of equity for disadvantaged groups is an expression of equality, not an exception to it": P. W. Hogg, *Constitutional Law of Canada* (5th ed. Supp. 2007), vol. 2, at p. 55-53.

[38] But this confirmatory purpose does not preclude an independent role for s. 15(2). Section 15(2) is more than a hortatory admonition. It tells us, in simple clear language, that s. 15(1) cannot be read in a way that finds an ameliorative program aimed at combatting disadvantage to be discriminatory and in breach of s. 15.

[39] Here the appellants claim discrimination on the basis of s. 15(1). The source of that discrimination — the very essence of their complaint — is a program that may be ameliorative. This leaves but one conclusion: if the government establishes that the program falls under s. 15(2), the appellants' claim must fail.

[40] In other words, once the s. 15 claimant has shown a distinction made on an enumerated or analogous ground, it is open to the government to show that the impugned law, program or activity is ameliorative and, thus, constitutional. This approach has the advantage of avoiding the symbolic problem of finding a program discriminatory before "saving" it as ameliorative, while also giving independent force to a provision that has been written as distinct and separate from s. 15(1). Should the government fail to demonstrate that its program falls under s. 15(2), the program must then receive full scrutiny under s. 15(1) to determine whether its impact is discriminatory.

[41] We would therefore formulate the test under s. 15(2) as follows. A program does not violate the s. 15 equality guarantee if the government can demonstrate that: (1) the program has an ameliorative or remedial purpose; and (2) the program targets a disadvantaged group identified by the enumerated or analogous grounds. In proposing this test, we are mindful that future cases may demand some adjustment to the framework in order to meet the litigants' particular circumstances. However, at this early stage in the development of the law surrounding s. 15(2), the test we have described provides a basic starting point — one that is adequate for determining the issues before us on this appeal, but leaves open the possibility for future refinement.

[42] We build our analysis of s. 15(2) and its operation around three key phrases in the provision. The subsection protects "any law, program or activity that *has as its object* the *amelioration* of conditions of *disadvantaged* individuals or groups". While there is some overlap in the considerations raised by each of these terms, it may be useful to consider each of them individually.

(a) "Has as Its Object"

[43] In interpreting this phrase, two issues arise. The first is whether courts should look to the *purpose* or to the *effect* of legislation. The second is whether, in order to qualify for s. 15(2) protection, a program must have an ameliorative purpose as its sole object, or whether having such a goal as one of several objectives is sufficient.

[44] The language of s. 15(2) suggests that legislative goal rather than actual effect is the paramount consideration in determining whether or not a program qualifies for s. 15(2) protection. … Scholars have nonetheless disagreed about the appropriate approach, often using the "subjective" (goal-based) and "objective" (effect-based) language.

[45] Scholars and judges who have supported judicial examination of the actual *effect* of a program offer one primary argument to defend their view. They express concern that a "subjective" test will permit the government to defeat a discrimination claim by declaring that the impugned law has an ameliorative purpose. … David Lepofsky and Jerome Bickenbach believe that the "better view is that the defendant must establish that the impugned program has some serious likelihood of achieving its ameliorative goal" ("Equality Rights and the Physically Handicapped", in A. F. Bayefsky and M. Eberts, eds., *Equality Rights and the Canadian Charter of Rights and Freedoms* (1985), 323, at p. 355). They justify this perspective with the argument that "if ameliorative legislative purpose were the sole test under section 15(2), a legislature could easily circumvent the egalitarian requirements under section 15(1) by including in any potentially discriminatory legislation a clause which provides that 'this Act has as its object the amelioration of the conditions of . . . a disadvantaged group'" (p. 355).

[46] In our opinion, this concern can be easily addressed. There is nothing to suggest that a test focussed on the goal of legislation must slavishly accept the government's characterization of its purpose. Courts could well examine legislation to ensure that the declared purpose is genuine. Courts confronted with a s. 15(2) claim have done just that. For example, in *Manitoba Rice Farmers Association v. Human Rights Commission (Man.)* (1987), 1988 CanLII 7193 (MB CA), 50 Man. R. (2d) 92 (Q.B.) (rev'd in part (1988), 55 Man. R. (2d) 263 (C.A.)), Simonsen J. explained, at para. 51:

> A bald declaration by government that it has adopted a program which "has as its object the amelioration of conditions of disadvantaged individuals or groups including those that are disadvantaged because of race . . ." does not *ipso facto* meet the requirements to sanctify the program under s. 15(2) of the *Charter*. The government cannot employ such a naked declaration as a shield to protect an activity or program which is unnecessarily discriminatory.

[47] In that vein, proponents of the approach that focusses on the ameliorative goal of the program, rather than its effect, argue that doing so will prevent courts from unduly interfering in ameliorative programs created by the legislature. They note that Canadian *Charter* drafters wished to avoid the American experience, whereby judges overturned affirmative action programs under the banner of equality. The purpose-driven approach also reflects the language of the provision itself, which focusses on the "object" of the program, law or activity rather than its impact. Moreover, the effects of a program in its fledgling stages cannot always be easily ascertained. The law or program may be experimental. If the sincere purpose is to promote equality by ameliorating the conditions of a disadvantaged group, the government should be given some leeway to adopt innovative programs, even though some may ultimately prove to be unsuccessful. The government may learn from such failures and revise equality-enhancing programs to make them more effective.

[48] Given the language of the provision and its goal of enabling governments to pro-actively combat discrimination, we believe the "purpose"-based approach is more appropriate than the "effect"-based approach: where a law, program or activity creates a distinction based on an enumerated or analogous ground, was the government's goal in creating that distinction to improve the conditions of a group that is disadvantaged? In examining purpose, courts may therefore find it necessary to consider not only statements made by the drafters of the program but also whether the legislature chose means rationally related to that ameliorative purpose, in the sense that it appears at least plausible that the program may indeed advance the stated goal of combatting disadvantage. The Manitoba Court of Queen's Bench suggested that it favoured an analysis of this kind in *Manitoba Rice Farmers Association*, at para. 54:

> In order to justify a program under s. 15(2), I believe there must be a real nexus between the object of the program as declared by the government and its form and implementation. It is not sufficient to declare that the object of a program is to help a disadvantaged group if in fact the ameliorative remedy is not directed toward the cause of the disadvantage. There must be a unity or interrelationship amongst the elements in the program which will prompt the court to conclude that the remedy in its form and implementation is rationally related to the cause of the disadvantage.

[49] Analysing the means employed by the government can easily turn into assessing the *effect* of the program. As a result, to preserve an intent-based analysis, courts could be encouraged to frame the analysis as follows: Was it rational for the state to conclude that the means chosen to reach its ameliorative goal would contribute to that purpose? For the distinction to be rational, there must be a correlation between the program and the disadvantage suffered by the target group. Such a standard permits significant deference to the legislature but allows judicial review where a program nominally seeks to serve the disadvantaged but in practice serves other non-remedial objectives.

[50] The next issue is whether the program's ameliorative purpose needs to be its exclusive objective. Programs frequently serve more than one purpose or attempt to meet more than one goal. Must the ameliorative object be the sole object, or may it be one of several?

[51] We can find little justification for requiring the ameliorative purpose to be the sole object of a program. It seems unlikely that a single purpose will motivate any particular program; any number of goals are likely to be subsumed within a single scheme. To prevent such programs from earning s. 15(2) protection on the grounds that they contain other objectives seems to undermine the goal of s. 15(2).

[52] The importance of the ameliorative purpose within the scheme may help determine the *scope* of s. 15(2) protection, however. Consider that an ameliorative program may coexist with or interact with a larger legislative scheme. If only the program has an ameliorative purpose, does s. 15(2) extend to protect the wider legislative scheme? We offer as a tentative guide that s. 15(2) precludes from s. 15(1) review distinctions made on enumerated or analogous grounds that serve and are necessary to the ameliorative purpose.

(b) "Amelioration"

[53] Section 15(2) protects programs that aim to "ameliorate" the condition of disadvantaged groups identified by the enumerated or analogous grounds. Although the word does not at first seem liable to misunderstanding, courts have previously understood the term (and s. 15(2)) to apply in surprising circumstances. In *R. v. Music Explosion Ltd.* (1989), 1989 CanLII 7484 (MB QB), 62 Man. R. (2d) 189, the Manitoba Court of Queen's Bench upheld a Winnipeg bylaw that restricted young people under 16 from operating an amusement device without the consent of a guardian or a parent on the grounds that it was protected by s. 15(2). Smith J. declared that the bylaw "is obviously for the benefit of the special needs of young persons" (para. 21). On appeal, the decision was reversed. The Court of Appeal explained: "[T]his

legislation does not confer special benefits upon young people, but rather imposes a limitation. Nor is the purpose of the legislation the amelioration of their condition" ((1990), 1990 CanLII 11042 (MB CA), 68 Man. R. (2d) 203, at para. 18). Courts have also used s. 15(2) to uphold provisions of the *Criminal Code* … and of the *Young Offenders Act* ...

[54] These precedents suggest that the meaning of "amelioration" deserves careful attention in evaluating programs under s. 15(2). We would suggest that laws designed to restrict or punish behaviour would not qualify for s. 15(2) protection. Nor, as already discussed, should the focus be on the effect of the law. This said, the fact that a law has no plausible or predictable ameliorative effect may render suspect the state's ameliorative purpose. Governments, as discussed above, are not permitted to protect discriminatory programs on colourable pretexts.

(c) "Disadvantaged"

[55] The interpretation of "disadvantaged", explored in *Andrews*, *Miron v. Trudel*, 1995 CanLII 97 (SCC), [1995] 2 SCR 418, and *Law*, and other cases in the context of s. 15(1), requires little further elaboration here. "Disadvantage" under s. 15 connotes vulnerability, prejudice and negative social characterization. Section 15(2)'s purpose is to protect government programs targeting the conditions of a specific and identifiable disadvantaged group, as contrasted with broad societal legislation, such as social assistance programs. Not all members of the group need to be disadvantaged, as long as the group as a whole has experienced discrimination.

3. *Application of Section 15(2) to This Case*

[56] The appellants have argued they were denied a benefit on the basis of race, a ground enumerated in s. 15 of the *Charter*. As discussed above, once the appellants have demonstrated such a distinction, the government may attempt to show the program is protected under s. 15(2). The government conferred the communal fishing licence valid for August 19-20 to particular aboriginal bands. Therefore, we are satisfied that the appellants have demonstrated a distinction imposed on the basis of race, an enumerated ground under s. 15.

[57] We have earlier suggested that a distinction based on the enumerated or analogous grounds in a government program will not constitute discrimination under s. 15 if, under s. 15(2), (1) the program has an ameliorative or remedial purpose; and (2) the program targets a disadvantaged group identified by the enumerated or analogous grounds. The question is whether the program at issue on this appeal meets these conditions.

[58] The first issue is whether the program that excluded Mr. Kapp and other non-band fishers from the fishery had an ameliorative or remedial purpose. The Crown describes numerous objectives for the impugned pilot sales program. These include negotiating solutions to aboriginal fishing rights claims, providing economic opportunities to native bands and supporting their progress towards self-sufficiency. The impugned fishing licence relates to all of these goals. The pilot sales program was part of an attempt — albeit a small part — to negotiate a solution to aboriginal fishing rights claims. The communal fishing licence provided economic opportunities, through sale or trade, to the bands. Through these endeavours, the government was pursuing the goal of promoting band self-sufficiency. In these ways, the government was hoping to redress the social and economic disadvantage of the targeted bands. The means chosen to achieve the purpose (special fishing privileges for aboriginal communities, constituting a benefit) are rationally related to serving that purpose. It follows that the Crown has established a credible ameliorative purpose for the program.

[59] The government's aims correlate to the actual economic and social disadvantage suffered by members of the three aboriginal bands. The disadvantage of aboriginal people is indisputable. In *Corbiere v. Canada (Minister of Indian and Northern Affairs)*, 1999 CanLII 687 (SCC), [1999] 2 SCR 203, the Court noted "the legacy of stereotyping and prejudice against Aboriginal peoples" (para. 66). The Court has also acknowledged that "Aboriginal peoples experience high rates of unemployment and poverty, and face serious disadvantages in the areas of education, health and housing" (*Lovelace*, at para. 69). More particularly, the evidence shows in this case that the bands granted the benefit were in fact disadvantaged in terms of income, education and a host of other measures. This disadvantage, rooted in history, continues to this day. The communal fishing licence, by addressing long-term goals of self-sufficiency and, more immediately, by providing additional sources of income and employment, relates to the social and economic disadvantage suffered by the bands. The fact that some individual members of the bands may not experience personal disadvantage does not negate the group disadvantage suffered by band members.

[60] Mr. Kapp suggests that the focus must be on the particular forms of disadvantage suffered by the bands who received the benefit, and argues that this program did not offer a benefit that effectively tackled the problems faced by these bands. As discussed above, what is required is a correlation between the program and the disadvantage suffered by the target group. If the target group is socially and economically disadvantaged, as is the case here, and the program may rationally address that disadvantage, then the necessary correspondence is established.

[61] We conclude that the government program here at issue is protected by s. 15(2) as a program that "has as its object the amelioration of conditions of disadvantaged individuals or groups". It follows that the program does not violate the equality guarantee of s. 15 of the *Charter*.

5.2 Notes and Questions

1. The constitutionality of affirmative action policies, particularly those on the basis of race, have been especially controversial in the United States, which does not have a provision such as section 15(2) of the *Charter* in its Constitution. Under the US Constitution, distinctions based on race are subject to strict scrutiny by the courts, but arguments have been made by proponents of affirmative action that such policies should not be subject to this standard.

   In a number of cases in the 1990s and early 2000s, a deeply divided Supreme Court of the United States held that —subject to strict parameters — certain affirmative action programs could be constitutionally permissible. For example, in *Grutter v. Bollinger*, 539 U.S. 306 (2003), a majority of the Court held that the United States Constitution "does not prohibit [a] law school's narrowly tailored use of race in admissions decisions to further a compelling interest in obtaining the educational benefits that flow from a diverse student body." Justice O'Connor, writing for the majority, held that sometime in the future, perhaps in twenty-five years, racial affirmative action would no longer be necessary in order to promote diversity. And twenty years later, a majority of the Supreme Court of the United States struck a significant blow to affirmative action's already marginal constitutional status in America by holding that Harvard University's race-conscious admissions policy violates the Equal Protection Clause of the Fourteenth Amendment (see *Students for Fair Admissions, Inc. v. President and Fellows of Harvard College*, 600 U.S. 181 (2023)). No longer "compelling", a majority of the Supreme Court now labelled the benefits of diversity "not sufficiently coherent" to justify affirmative action, which it considered tantamount to racial segregation. This controversy has also extended into scholarship. For example, in "A Critique of Our Constitution Is Color-Blind" (1991) 44:1 Stan L Rev 1, Neil Gotanda rejects "superficial critiques of affirmative action programs" that legitimize "the continued subordination of the black community." Over thirty years before *Students for Fair Admissions*, Gotanda rejected a "symmetrical standard of review" (i.e., conceptualizing affirmative action as tantamount to racial segregation) based on the plain fact that America's "racial history is skewed":

   > The history of segregation is not the history of Blacks creating racial categories to legitimate slavery, nor is it a history of segregated institutions aimed at subordinating whites. Indeed racial categories themselves, with their metaphorical themes of white racial purity and nonwhite contamination, have different meanings for Blacks and whites. If judicial review is to consider the past and continuing character of racial subordination, then an affirmative action program aimed at alleviating the effects of racial subordination should not automatically be subject to the same standard of review as Jim Crow segregation laws.

Under what past/present circumstances do you think that affirmative action programs ought to be constitutionally permissible? Were/are those circumstances present in America? Were/are they present in Canada?

2. *Kapp* found that the impugned fishing strategy drew a distinction based on race before turning to section 15(2). Commentators have questioned this finding given the context of protecting Aboriginal fishing rights, including the Court's reliance on the ground of "race". See e.g. Sebastien Grammond, "Disentangling 'Race' and Indigenous Status: The Role of Ethnicity" (2008) 33 Queens LJ 48 7; June McCue, "Kapp's Distinctions: Race-Based Fisheries, the Limits of Affirmative Action for Aboriginal Peoples and Skirting Aboriginal People's Unique Constitutional Status Once Again" (2008) 5 Directions 56; Constance MacIntosh, "Developments in Aboriginal Law: The 2008-9 Term" (2008) 49 SCLR (2d) 1. For an alternative judgment in *Kapp* that aligns with these critiques see Sonia Lawrence, "*R v Kapp*" (2018) 30:2 CJWL 268.

3. *Kapp* emphasized the government's ameliorative objectives in applying section 15(2). It involved a claim of so-called "reverse discrimination" by a more advantaged group seeking to remove the 24-hour fishing priority for the Indigenous bands in question. **What do these aspects of the decision mean for well-intentioned programs that nevertheless have the effect of disadvantaging the targeted group in some respects, e.g., by seeking a benefit for women but ultimately reinforcing their systemic inequality? And what about programs that focus on the needs of one group but neglect other groups with similar needs, e.g., by providing a benefit to people with physical disabilities but not mental disabilities?**

   These questions were answered in part in three Supreme Court decisions subsequent to *Kapp*.

   Alberta (Aboriginal Affairs and Northern Development) v. Cunningham, 2011 SCC 37 (Can LII), [2011] 2 SCR 670, involved a challenge to Alberta's *Métis Settlement Act (MSA)*, which recognized settlement lands and self-government rights for Métis communities and provided for the preservation and enhancement of Métis culture and identity. The claimants were members of a Métis community in Alberta who were also eligible for benefits under the *Indian Act.* When they registered under the latter statute, their membership in the Métis settlement was revoked by virtue of a provision in the *MSA*. *Cunningham* can therefore be seen as a challenge to an underinclusive scheme that excluded Métis persons who qualified as "Indians." On behalf of a unanimous Court, McLachlin C.J. held that the claimants' exclusion did not infringe section 15(1) because the *MSA* was protected as an ameliorative program under section 15(2). The Court found that the government's objective was to preserve the identity, culture and self-governance of the Métis, a constitutionally recognized disadvantaged group. Modifying the test from *Kapp* somewhat (see *Kapp*, at para 52), they also found that it was sufficient that the exclusion of Métis persons who registered under the *Indian Act* "served or advanced" the MSA's ameliorative purpose (*Cunningham*, at para 45).

   Two 2018 decisions involving challenges brought by unions to 2009 amendments to Quebec's pay equity legislation also raised the application of section 15(2). *Quebec (Attorney General) v. Alliance du personnel professionnel et technique de la santé et des services sociaux*, 2018 SCC 17 (CanLII), [2018] 1 SCR 464, concerned aspects of the 2009 scheme that replaced employers' continuous obligations to make pay equity adjustments with pay equity audits every 5 years that denied any retroactive compensation unless an employer acted in bad faith, arbitrarily, or with discrimination. *Centrale des syndicats du Québec v. Quebec (Attorney General)*, 2018 SCC 18 (CanLII), [2018] 1 SCR 522, challenged a six-year delay in pay equity adjustments for women in workplaces with no male comparators. Writing for a majority of the Court in both cases, Abella J. held that the 2009 amendments amounted to sex discrimination contrary to section 15(1) of the *Charter* and that section 15(2) did not apply. On the latter point, she stated that the purpose of section 15(2) is to save ameliorative laws and programs from "reverse discrimination" type challenges (*Alliance*, at para 31; *Centrale*, at para 38). Citing *Kapp* as an example, she described reverse discrimination as a claim by a group or person "outside the scope of intended beneficiaries who alleges that ameliorating the situation of the intended beneficiaries discriminates against them" (*Centrale*, at para 38). In contrast, a claim "by the very group the legislation seeks to protect" was found to be outside the scope of section 15(2): "[i]t stands the purpose on its head to suggest that s. 15(2) can be used to deprive the program's intended beneficiaries of the right to challenge the program's compliance with s. 15(1)" (*Alliance*, at paras 32, 38). The dissenting justices on the section 15 issue in these cases (Côté, Brown and Rowe JJ., with Wagner J. joining them in *Centrale*) saw section 15(2) as a viable argument for the Quebec government, giving it wide scope to protect its pay equity legislation as an ameliorative program.

   Does the suggestion in *Alliance* and *Centrale* that section 15(2) is aimed at guarding against "reverse discrimination" types of claims mean that underinclusive ameliorative programs can now be challenged by excluded disadvantaged groups under section 15(1) without the government being able to rely on section 15(2)? Alternatively, how might *Cunningham* be distinguished in future cases involving underinclusive ameliorative programs where a member of an excluded disadvantaged group seeks to participate in the program?

   For commentary on section 15(2), particularly its application to underinclusive ameliorative programs, see Jena McGill, "Ameliorative Programs and the Charter: Reflections on the Section 15 (2) Landscape since *R v Kapp*" (2017) 95 *Can B Rev* 213; Jonnette Watson Hamilton & Jennifer Koshan; "The Supreme Court, Ameliorative Programs and Disability: Not Getting It" (2013) 25 CJWL 56. For alternative judgments in *Kapp* that contemplate challenges to underinclusive ameliorative programs, see Jena McGill, "*R v Kapp*" (2018) 30:2 CJWL 221; Kasari Govender and C. Tess Sheldon, "*R v Kapp*" (2018) 30:2 CJWL 248. Govender and Sheldon use the term "equality regressive" rather than "reverse discrimination" to describe the type of claim brought by Kapp et al. **Is it useful to think about the purpose of section 15(2) as preventing equality regressive claims?**

Chapter 25: Language Rights

By Brenna Haggarty and Alexandra Heine

1 Introduction

Canadian law recognizes that language is more than a means of communication – it is an expression of culture, identity, and community. Recognizing the central role of language in Canada, Sections 16 to 23 of the *Charter* enshrine a set of constitutional protections, collectively known as language rights. These provisions of the *Charter* reflect Canada's bilingual history and affirm the equal status of English and French in key areas of public life. These rights are not subject to the notwithstanding clause, meaning governments cannot override them by invoking s. 33 of the *Charter*.

Sections 16 to 20 establish the framework for official bilingualism at the federal level and in New Brunswick – Canada's only officially bilingual

province. These provisions govern the use of English and French in Parliament, federal institutions, and the courts, as well as the public's right to access services from government institutions in either official language.

Sections 21 and 22 serve as interpretive and protective provisions, ensuring that existing or future language rights are not limited by the *Charter*'s language guarantees.

Section 23 represents a unique set of constitutional rights. It focuses on minority language educational rights, guaranteeing Canadian citizens belonging to official language minorities the right to have their children educated in their own language under specific conditions. This provision plays a central role in preserving the linguistic and cultural vitality of minority language communities across Canada.

While language rights were recognized before 1982, their entrenchment in the *Charter* marked a significant turning point. Unlike many other *Charter* rights, language rights are both individual and institutional, reflecting a blend of personal entitlement and broader commitments to national unity and cultural preservation.

Despite their elevated constitutional status, the Supreme Court of Canada interpreted language rights in a narrow and restrictive manner in a trilogy of cases decided in 1986. In *Société des Acadiens v. Association of Parents*, 1986 CanLII 66 (SCC), [1986] 1 SCR 549, *MacDonald v. City of Montreal*, 1986 CanLII 65 (SCC), [1986] 1 SR 460, and *Bilodeau v. Attorney General of Manitoba*, 1986 CanLII 64 (SCC), [1986] 1 SCR 449, the Court characterized language rights as a product of political compromise, distinguishing them from other legal rights that are typically interpreted more expansively. As a result, in these cases language rights were seen as limited in scope, closely tied to the specific constitutional or legislative provisions that created them.

The Supreme Court's restrictive approach to language rights gave way to a generous and purposive interpretation rather quickly.

In *Mahe v. Alberta,* 1990 CanLII 133 (SCC), [1990] 1 SCR 342, the Supreme Court affirmed that section 23 of the *Charter* guarantees not just access to minority language education, but a measure of control by minority language communities over their children's education, recognizing the critical role of education in sustaining linguistic and cultural vitality. The Court continued this trend in *Reference Re Manitoba Language Rights*, 1992 CanLII 115 (SCC), [1992] 1 SCR 212 and *Reference re Public Schools Act (Manitoba)*, 1993 CanLII 119 (SCC), [1993] 1 SCR 839, where it underscored the constitutional obligation to ensure the equal status of English and French in legislation and education, even in the face of practical and institutional challenges.

The Supreme Court's purposive and rights-affirming approach culminated in *R v Beaulac*, 1999 CanLII 684 (SCC), [1999] 1 SCR 768, a landmark decision in which the Court directly overturned its earlier restrictive interpretation of language rights. While that case focused on s. 530 of the *Criminal Code* (a quasi-constitutional provision that gives every accused person the right to be tried in the official language of their choice), the Court seized the opportunity to decisively declare that "[l]anguage rights must in all cases be interpreted purposively, in a manner consistent with the preservation and development of official language communities in Canada" (at para 25, emphasis in original). Writing for the majority, Justice Bastarache emphasized that language rights are not mere procedural entitlements, but rather fundamental rights that serve the dual purpose of protecting individual dignity and fostering collective identity. This decision marked a clear and enduring jurisprudential shift, recognizing all language rights as a vital component of Canada's constitution.

This chapter focuses primarily on Section 16 and Section 23 — the provisions that anchor Canada's commitment to official language equality and the educational rights of official language minorities. It will explore how Canadian Courts, specifically the Supreme Court of Canada, have interpreted and applied these two provisions.

2 Section 16 of the *Charter*

Section 16 of the *Charter* is the foundational provision for official bilingualism in Canada. It reads:

> Official languages of Canada
>
> 16 (1) English and French are the official languages of Canada and have equality of status and equal rights and privileges as to their use in all institutions of the Parliament and government of Canada.
>
> Official languages of New Brunswick
>
> (2) English and French are the official languages of New Brunswick and have equality of status and equal rights and privileges as to their use in all institutions of the legislature and government of New Brunswick.
>
> Advancement of status and use
>
> (3) Nothing in this Charter limits the authority of Parliament or a legislature to advance the equality of status or use of English and French.

Section 16 affirms the equal status of English and French as the official languages of Canada and, in doing so, lays the groundwork for the language rights that follow in Sections 17 to 20. While Section 16 is often viewed as declaratory, the Supreme Court of Canada has recognized that Section 16 is not merely aspirational and can serve as a guide for interpreting the scope and purpose of related language rights.

2.1 Guiding questions

- What does Section 16 of the *Charter* establish regarding official languages in Canada?
- How does Section 16 differ from other language rights provisions in the *Charter*?
- To what extent does Section 16 create substantive rights versus declaratory recognition of official bilingualism in Canada?

2.2 Thibodeau v. Air Canada, 2014 SCC 67, [2014] 3 SCR 340

In *Thibodeau v. Air Canada*, 2014 SCC 67, Michel and Lynda Thibodeau filed complaints after experiencing a lack of French-language services during three international flights and at an airport in 2009. The Office of the Commissioner of Official Languages upheld four of their complaints, confirming that Air Canada had violated section 22 of the *Official Languages Act* by failing to provide services in French. The Thibodeaus sought damages and structural orders through the Federal Court, which awarded them $6,000 in damages and required Air Canada to implement a monitoring system to ensure future compliance. The Federal Court of Appeal overturned the Federal Court, citing the *Convention for the Unification of Certain Rules for International Carriage by Air* (the "*Montreal Convention*"), an international treaty which limits liability for international air carriers.

The Supreme Court of Canada dismissed the Thibodeau's appeal, holding that the *Montreal Convention* barred the award of damages and that the structural order was not justified in the circumstances. While the Supreme Court acknowledged the fundamental importance of language rights, it found that international treaty obligations limited the remedies available in this case.

Even though the Thibodeau's language rights claim was unsuccessful in upholding their language rights and Section 16 of the *Charter* was not a central issue in this case, the Supreme Court nonetheless affirmed the interpretive significance of Section 16 of the *Charter*. The majority described it as a "reflect[ion]" of "Canada's foundational commitment to the equality of the French and English languages" (para 4).

***Thibodeau v. Air Canada*, 2014 SCC 67, [2014] 3 SCR 340**

The judgment of McLachlin C.J. and LeBel, Rothstein, Cromwell and Karakatsanis JJ. was delivered by

Cromwell J. —

I. Introduction

[1] Air Canada failed to provide services in French on some international flights as it was obliged to do under the *Official Languages Act*, R.S.C. 1985, c. 31 (4th Supp.) (the "*OLA*"). Two passengers, the appellants Michel and Lynda Thibodeau, applied to the Federal Court for damages and for orders, referred to as "structural" or "institutional" orders, requiring Air Canada to take steps in order to ensure future compliance with the *OLA*. The airline defended against the claims for damages by relying on the limitation on damages liability set out in the *Convention for the Unification of Certain Rules for International Carriage by Air*, 2242 U.N.T.S. 309 (the "*Montreal Convention*"), which is part of Canadian federal law by virtue of the *Carriage by Air Act*, R.S.C. 1985, c. C-26, a federal statute.

[2] The Federal Court rejected Air Canada's defence, awarded damages and granted a structural order (2011 FC 876, [2013] 2 F.C.R. 83). However, the Federal Court of Appeal set that ruling aside in part, holding that the *Montreal Convention* precluded the damages remedy for the events that took place on board Air Canada flights and that a structural order was not appropriate (2012 FCA 246, [2013] 2 F.C.R. 155). The main issue on the further appeal to this Court is whether the Federal Court of Appeal erred in these conclusions.

[3] The issue of damages sits at the intersection of Canada's domestic commitment to official languages and its international commitment to an exclusive and uniform scheme of damages liability for international air carriers. The question thus implicates two important values.

[4] On one hand, we have Canada's duty to comply with its international undertaking, by its ratification of the *Montreal Convention* and its adoption of the *Montreal Convention* into domestic law, to establish and give effect to limitations on liability for international air carriers. Air Canada maintains that upholding a damages remedy against the airline would be inconsistent with this important international undertaking. On the other hand, we have Canada's foundational commitment to the equality of the French and English languages, a commitment reflected, among other places, in s. 16 of the *Canadian Charter of Rights and Freedoms* and in the *OLA*. These language rights are "basic to the continued viability of [this] nation": *R. v. Mercure*, 1988 CanLII 107 (SCC), [1988] 1 SCR 234, at p. 269, *per* La Forest J. The appellants say that a damages remedy must be available for breach of language rights in order to fulfill the purposes of the *OLA*.

[5] This appeal requires us to resolve this tension by interpreting the *OLA* and the *Montreal Convention* in accordance with their text and purpose. As I see it, when they are properly interpreted, there is no conflict between the general remedial powers under the *OLA* and the exclusion of damages under the *Montreal Convention* and there is no need to consider which would prevail if there were.

[6] The *Montreal Convention*'s uniform and exclusive scheme of damages liability for international air carriers does not permit an award of damages for breach of language rights during international carriage by air. To hold otherwise would do violence to the text and purpose of the *Montreal Convention*, depart from Canada's international obligations under it and put Canada off-side a strong international consensus concerning its scope and effect. The general remedial power under the *OLA* to award appropriate and just remedies cannot — and should not — be read as authorizing Canadian courts to depart from Canada's international obligations under the *Montreal Convention*.

[7] I also conclude that the Federal Court of Appeal was correct to set aside the structural order as it was impermissibly vague and unclear.

[8] I would therefore dismiss the appeals.

…

[111] The appellants suggest that the quasi-constitutional status of the *OLA* prevents a harmonious interpretation of s. 77(4) of the *OLA* and Article 29 of the *Montreal Convention*: Commissioner's factum, at paras. 90-95. The argument goes that to read s. 77(4) as not permitting an award of damages in the context of international air travel would run counter to the *OLA*'s status as quasi-constitutional legislation and therefore would run counter to Parliament's intention. With respect, I cannot accept this submission.

[112] Section 77(4) of the *OLA* is certainly part of a quasi-constitutional statutory scheme designed to both reflect and to actualize the "equality of status" of English and French as the official languages of Canada and the "equal rights and privileges as to their use in all institutions of the Parliament and government of Canada" as declared in s. 16(1) of the *Charter*: see, e.g., *R. v. Beaulac*, 1999 CanLII 684 (SCC), [1999] 1 SCR 768; *Lavigne*, at para. 23. Like s. 24(1) of the *Charter*, s. 77(4) of the *OLA* confers a wide remedial authority and should be interpreted generously to achieve its purpose. These factors, however, do not alter the correct approach to statutory interpretation which requires us to read "the words of an Act . . . in their entire context and in their grammatical and ordinary sense harmoniously with the scheme of the Act, the object of the Act, and the intention of Parliament": *Lavigne*, at para. 25, quoting E. A. Driedger, *Construction of Statutes* (2nd ed. 1983), at p. 87. As I see it, the *OLA*, read in its full context, demonstrates that Parliament did not intend to prevent s. 77(4) from being read harmoniously with Canada's international obligations given effect by another federal statute.

[113] It is unlikely that, by means of the broad and general wording of s. 77(4), Parliament intended this remedial power to be read as an exclusive and exhaustive statement in relation to the Federal Court's remedial authority under the *OLA*, overriding all other laws and legal principles. The appellants' position in effect is that Parliament, through s. 77(4), intended that courts should be able to grant damages even though doing so would be in violation of Canada's international undertakings as incorporated into federal statute law. This proposition runs afoul of the principle of interpretation that Parliament is presumed not to intend to legislate in breach of Canada's international law obligations: see, e.g., *Daniels*, at p. 541; *Zingre v. The Queen*, 1981 CanLII 32 (SCC), [1981] 2 SCR 392, at pp. 409-10; *Ordon Estate v. Grail*, 1998 CanLII 771 (SCC), [1998] 3 SCR 437, at paras. 128-31; Sullivan, at pp. 539-42.

…

[117] In short, there are no indicators here of a conflict between these two provisions in the narrow and strict sense of conflict which applies in this context, and there is no hint in the text, scheme or purpose of the *OLA* that the brief, broad, general and highly discretionary provision in s. 77(4) was intended to permit courts to make orders in breach of Canada's international undertakings which have been incorporated into federal law.

[118] I conclude that there is no conflict between these provisions and that, in fashioning an appropriate and just remedy under the *OLA* in a case of international carriage by air, the Federal Court must apply the limitation on damages set out in Article 29 of the *Montreal Convention*. In light of that conclusion, I do not need to consider which provision would prevail in the event of conflict.

2.3 *Conseil scolaire francophone de la Colombie-Britannique v. British Columbia*

In *Conseil scolaire francophone de la Colombie-Britannique v. British Columbia*, 2013 SCC 42, a French language school board and a federation of Francophone parents sought to introduce exhibits written in French into evidence. Their goal was to prove that they had standing to bring an action alleging violations of French-language education rights under the *Charter*. The British Columbia Supreme Court dismissed the application, holding that civil proceedings in British Columbia courts must be conducted in English, based on an old English statute received into provincial law and confirmed by the *Supreme Court Civil Rules*. The British Columbia Court of Appeal upheld this decision.

A majority of the Supreme Court of Canada dismissed the appeal. It agreed that the English statute remained in force and that, even absent the statute, the *Supreme Court Civil Rules* require that exhibits filed in court be in English.

Although the applicants were unsuccessful, the Court acknowledged the interpretive importance of Section 16 of the *Charter*, while emphasizing that it must be balanced with other constitutional principles. The majority noted that Subsection 16(3) "protects legislative initiatives intended to increase the equality of the official languages but does not […] confer any rights" (at para. 57).

***Conseil scolaire francophone de la Colombie-Britannique v. British Columbia*, 2013 SCC 42, [2013] 2 SCR 774**

The judgment of McLachlin C.J. and Rothstein, Moldaver and Wagner JJ. was delivered by

WAGNER J. —

[55] Finally, the appellants urge this Court to adopt an approach to these issues based on *Charter* values and constitutional principles. The appellants argue that the *Charter* requires that legislation, including received legislation, be interpreted in a manner consistent with *Charter* values. The Court has of course repeatedly noted the role that *Charter* values play in the evolution of the common law and in statutory interpretation: *RWDSU v. Dolphin Delivery Ltd.*, 1986 CanLII 5 (SCC), [1986] 2 SCR 573; *R. v. Zundel*, 1992 CanLII 75 (SCC), [1992] 2 SCR 731; *R. v. National Post*, 2010 SCC 16, [2010] 1 SCR 477. The *Charter* explicitly provides that English and French are the official languages of Canada: s. 16. The Court has also recognized the important role of linguistic minorities in Canada: *Reference re Secession of Quebec*, 1998 CanLII 793 (SCC), [1998] 2 SCR 217, at para. 79.

[56] However, the *Charter* also reflects a recognition that Canada is a federation and that each province has a role to play in the protection and advancement of the country's official languages. This is evident from ss. 16 to 20, which require bilingualism in the federal government, in Parliament, in courts established by Parliament, and in the province of New Brunswick. The *Charter* does not require any province other than New Brunswick to provide for court proceedings in both official languages. In addition, s. 16(3) provides that the legislatures may act to advance the use of English and French. In my view, therefore, while it is true that the *Charter* reflects the importance of language rights, it also reflects the importance of respect for the constitutional powers of the provinces. Federalism is one of Canada's underlying constitutional principles: *Reference re Secession of Quebec*, at paras. 55-60. Thus, it is not inconsistent with *Charter* values for the British Columbia legislature to restrict the language of court proceedings in the province to English.

[57] This being said, in light of s. 16(3) of the *Charter*, which specifically provides that provincial legislatures may advance the equality of status of English and French, it would be open to the British Columbia legislature to enact legislation, like that proposed in 1971, to authorize civil proceedings in French. Such legislation would no doubt further the values embodied in s. 16(3), which protects legislative initiatives intended to increase the equality of the official languages but does not, as this Court has already held, confer any rights. However, given the absence of any such initiative by the British Columbia legislature, it is not possible for this Court to impose one on it.

2.4 *DesRochers v. Canada (Industry)*

In DesRochers v. Canada (Industry), 2009 SCC 8, the Corporation de développement économique communautaire CALDECH ("CALDECH") filed a complaint with the Commissioner of Official Languages of Canada (the "Commissioner"), alleging that the North Simcoe Community Futures Development Corporation ("North Simcoe") was not providing economic development services in French to the Francophone population of Huronia. The Commissioner found the Department of Industry Canada ("Industry Canada"), which was responsible for providing community economic development services in Huronia, in breach of its duties under Parts IV and VII of the Official Languages Act and recommended corrective action. Despite some measures being taken, follow-up reports concluded that Industry Canada remained non-compliant.

CALDECH sought relief in the Federal Court, which dismissed its application, finding that while a breach had occurred when the complaint was filed, services were being provided in both languages by the time of the application. The Federal Court of Appeal allowed the appeal, holding that the application should have been granted, but that no remedy beyond costs was appropriate. The Supreme Court of Canada dismissed the further appeal, agreeing that no further remedy was needed. However, the Supreme Court held that the Federal Court of Appeal had applied an overly narrow view of linguistic equality. In interpreting Section 20 of the Charter, the Court stressed that substantive equality under section 16 requires more than identical services in each language, noting that "substantive equality will not result from the development and implementation of identical services for each language community" (para 51).

***DesRochers v. Canada (Industry)*, 2009 SCC 8, [2009] 1 SCR 194**

English version of the judgment of the Court delivered by

CHARRON J. —

[2] It is common ground in this appeal that the rights being claimed are of constitutional origin, since the relevant provisions of the *OLA* implement the constitutional right of any member of the public to be served by federal institutions in the official language of his or her choice (*Lavigne v. Canada (Office of the Commissioner of Official Languages)*, 2002 SCC 53, [2002] 2 SCR 773). The Chief Justice stated the following constitutional question:

> Do s. 20(1) of the *Canadian Charter of Rights and Freedoms* and Part IV of the *Official Languages Act*, R.S.C. 1985, c. 31, read in light of the principle of equality set out in s. 16(1) of the *Charter*, require Industry Canada to provide services of equal quality in both official languages?

…

[14] After the second follow-up report was published in 2004, Mr. DesRochers and CALDECH applied to the Federal Court under s. 77(1) of the *OLA* for, *inter alia*, the following remedies: an order declaring that the respondents had violated and were continuing to violate Parts IV and VII of the *OLA* and ss. 16(1) and 20(1) of the *Canadian Charter of Rights and Freedoms*; an order enjoining the respondents to comply with those provisions of the *OLA* and the *Charter*; damages; an order granting CALDECH permanent and stable funding; and costs. The Commissioner intervened in the proceedings in the courts below and was granted leave to participate in the appeal to this Court as an appellant.

…

[48] The respondents contend that the order being sought should not be granted. Their view is that depending on the nature of the service, the government might, in order to fulfil its language duties, be required to change its *method* of providing the service, but not the *content* of the service itself. They argue that "[t]his would amount to giving official language minority communities, *via* subsection 20(1) of the *Charter* and Part IV of the *Act*, a right to participate in defining the content of programs, which even a generous reading of those provisions, having regard to subsection 16(1) of the *Charter*, does not authorize."

[49] According to the respondents, what is being claimed here is not the equal provision of available services in both languages, but the provision of services other than those being offered that better reflect the socio-demographic characteristics of the linguistic minority community. They assert that the appellants are basically claiming a right to parallel services provided by a Francophone organization. In the respondents' view, linguistic equality does not have as broad a scope as this, but is instead achieved "by guaranteeing equal linguistic access to the services offered, not by access to distinct services". They therefore submit that the Federal Court of Appeal was correct to conclude that the rights being claimed in this case exceed the scope of Part IV of the *OLA*.

[50] In reply to the respondents' arguments, the appellants stress that the purpose of this application is not to claim a right to parallel services managed by the linguistic minority community. In their opinion, there is ample evidence that the needs of the French-speaking minority community are indeed different from those of the English-speaking majority community and that North Simcoe, unlike CALDECH, has not succeeded in reaching the French-language business community. The appellants therefore request, in addition to the above-mentioned order, that the government be ordered to provide funding to CALDECH, at least until substantive equality is achieved in the services provided by North Simcoe both in terms of rights and privileges as to the *use* of the official languages and in terms of the *status* of those languages in the federal institution.

5.5 *Application to the Case at Bar*

[51] It seems clear to me that the respondents are correct to say that the principle under s. 20(1) of the *Charter* and Part IV of the *OLA* of *linguistic* equality in the provision of government services involves a guarantee in relation to the services *provided* by the federal institution. However, it is not entirely accurate to say that linguistic equality in the provision of services cannot include access to services *with distinct content*. Depending on the nature of the service in question, it is possible that substantive equality will not result from the development and implementation of identical services for each language community. The content of the principle of linguistic equality in government services is not necessarily uniform. It must be defined in light of the nature and purpose of the service in question. […]

…

[54] Given the nature of the services at issue here, I therefore disagree with Létourneau J.A.'s view that the principle of linguistic equality does not entail a right to "access to equal regional economic development services" (para. 33), or that the respondents did not have a duty under Part IV of the *OLA* to "take the necessary steps to ensure that Francophones are considered equal partners with Anglophones" (para. 38) in the definition and provision of economic development services. With respect, it seems to me that Létourneau J.A. did not fully consider the nature and objectives of the program in question in so defining the scope of the duties resulting from the guarantee of linguistic equality. What matters is that the services provided be of equal quality in both languages. The analysis is necessarily comparative. Thus, insofar as North Simcoe, in accordance with the programs' objectives, made efforts to reach the linguistic majority community and involve that community in program development and implementation, it had a duty to do the same for the linguistic minority community.

2.5 *Charlebois v. Saint John (City)*

In *Charlebois v. Saint John (City)*, 2005 SCC 74, Charlebois filed an application, in French, against the City of Saint John. The City, as well as the Attorney General of New Brunswick, moved to strike the application. The City's pleadings were filed in English. The Attorney General's pleadings were in French, but some citations were in English. Charlebois objected to receiving pleadings in English, asserting that Section 22 of New Brunswick's *Official Languages Act* ("*OLA*") obligated the City to proceed in the official language that he had chosen for the proceedings.

The majority of the Supreme Court, affirming the decisions of the courts below, held that Section 22 did not apply to municipalities. The City was not required to adopt the language chosen by Charlebois because the word "institution" in Section 22, as defined in Section 1 of the *OLA*, did not include municipalities. The obligations relating to municipalities under the *OLA* were more limited and specific. The majority emphasized that the liberal and purposive interpretive approach to language rights cannot override the ordinary rules of statutory interpretation.

Justice Bastarache, writing on behalf of the dissenting justices, criticized the majority's approach as being overly formalistic and inconsistent with the rules of interpretation applicable to language rights. He opined that Section 22 of the *OLA* did apply to municipalities, and that any internal inconsistencies in the *OLA* should be reconciled in a way that furthers the protection of minority rights, consistent with Section 16(3) of the *Charter*. In his view, general obligations in the *OLA* should apply broadly unless clear exceptions are provided.

***Charlebois v. Saint John (City)*, 2005 SCC 74, [2005] 3 SCR 563**

The judgment of McLachlin C.J. and Major, Fish, Abella and Charron JJ. was delivered by

CHARRON J. —

1 The issue on this appeal is whether the City of Saint John is obliged to use, in any oral or written pleadings or any process issuing from a court, the official language chosen by the appellant Mario Charlebois in the civil proceedings brought by him against the City. Section 22 of the *Official Languages Act*, S.N.B. 2002, c. O-0.5 ("*OLA*"), imposes such a duty on "Her Majesty in right of the Province or an institution" who is a party to the civil proceedings. The issue turns on whether or not the word "institution" in s. 22 and defined under s. 1 of the *OLA* includes municipalities. Both courts below have concluded that it does not and that, consequently, s. 22 does not apply to the City of Saint John. I agree with that conclusion and would dismiss the appeal.

…

13 In its preamble, the *OLA* proclaims the purposes of the Act are expressly tied to the language guarantees and obligations enshrined in the Canadian Constitution. There is no dispute that the *OLA* is the province's legislative response to its obligations under the *Canadian Charter of Rights and Freedoms* in relation to institutional bilingualism in New Brunswick. […]

14 In *Charlebois v. Moncton*, Mr. Charlebois, the same litigant as in this case, challenged the validity of a municipal by-law which was enacted only in English. The specific question before the New Brunswick Court of Appeal was whether s. 18(2) of the *Charter* included municipal by-laws. On a remedial and purposive reading of the *Charter* language guarantees, the court held that it was appropriate to include municipal by-laws in the province of New Brunswick's constitutional obligation to enact its statutes in both English and French. In the course of its analysis on this question, the court also expressed its opinion that municipalities are "institutions of the legislature and government of New Brunswick" within the meaning of s. 16(2) of the *Charter*. By way of remedy, the court declared the unilingual by-

laws invalid but suspended the effect of the declaration of invalidity for one year to enable the City of Moncton and the Government of New Brunswick to comply with the constitutional obligations set out in the court's reasons. The court also provided some guidance on how the province may choose to meet its obligations. It stated as follows, at paras. 127-28:

> In the context of this case, I believe that a declaration of invalidity subject to a temporary suspension of the effect of the declaration provides the City of Moncton and the provincial government with the flexibility necessary to develop an appropriate solution that will ensure that the appellant's rights under subsection 18(2) are realized. In this regard, this Court would be loathe to interfere with and impose standards on the legislature. It is obvious that the government has a choice in the institutional means by which its obligations can be met. For example, the exhaustive inquiry of the task force on official languages in New Brunswick (*Towards Equality of Official Languages in New Brunswick*, at pages 337-84) dealt with the linguistic composition of the population of New Brunswick municipalities. The report acknowledged that a possible approach that would meet the constitutional obligation of the principle of equality of official languages might be to implement a language policy whereby municipal services would be available in both official languages only where numbers warrant. This is a quantitative approach in which certain municipalities might be declared bilingual on the basis of a percentage of the population representing an official language minority. The percentage would have to be determined by the legislature.
>
> In this connection, it should be remembered that section 1 of the *Charter* allows restrictions of *Charter* rights only by such reasonable limits prescribed by law as can be demonstrably justified in a free and democratic society. Under this general limitation, the legislature can strike a balance or achieve a compromise between the exercise of a guaranteed right and the safeguarding of society's best interests. However, while certain limits imposed on the exercise of the right guaranteed under subsection 18(2) may be justifiable, this provision creates a requirement of legislative bilingualism that cannot be reduced to unilingualism or a bilingualism that is left to the discretion of municipal councils. This would amount to a denial of the constitutional language right guaranteed by subsection 18(2). Moreover, by implication, the bilingualism requirement in regard to municipal by-laws extends to the process of enactment.

15 Bastarache J. finds that it would have been more appropriate for the New Brunswick Court of Appeal in this case "to take a positive stance and see whether it was necessary to limit the scope of the newly defined term in light of the difficulties posed by the drafting of the *OLA*" (para. 32 (emphasis added)). I disagree. First, it is noteworthy that *Charlebois v. Moncton* dealt with s. 18(2) of the *Charter*; hence, the court's finding that municipalities are "institutions" for the purpose of s. 16(2) is *obiter dictum*. The question as to whether municipalities are institutions within the meaning of s. 16(2) has never been determined by this Court, it is not before us on this appeal, and I express no opinion on whether or not this interpretation is correct. Second, it is also noteworthy that the province's constitutional obligations, even as defined in *Charlebois v. Moncton*, do not mandate a single specific solution. As aptly noted by the court in the above-noted excerpt, there is room for flexibility. The current *OLA* is the province's legislative response to its constitutional obligations. It would be inappropriate to pre-empt the analysis with a blanket presumption of *Charter* consistency. Daigle J.A. therefore was quite correct in pursuing the analysis. This brings us back to the question of statutory interpretation that occupies us: what approach did the province of New Brunswick adopt in respect of its municipalities to meet its constitutional obligations?

…

23 In my respectful view, the approach advocated by Mr. Charlebois and the AJEFNB, and adopted by Bastarache J., exceeds the scope of this Court's decision in *R. v. Beaulac*, 1999 CanLII 684 (SCC), [1999] 1 SCR 768. This Court in *Beaulac* held that a liberal and purposive approach to the interpretation of constitutional language guarantees and statutory language rights should be adopted in all cases. I take no issue with this principle; however, as Bastarache J. acknowledges (at para. 40), this does not mean that the ordinary rules of statutory interpretation have no place. In this case, it is particularly important to keep in mind the proper limits of *Charter* values as an interpretative tool. In *Bell ExpressVu Limited Partnership v. Rex*, [2002] 2 SCR 559, 2002 SCC 42, Iacobucci J., writing for a unanimous court, firmly reiterated that

> to the extent this Court has recognized a "*Charter* values" interpretive principle, such principle can *only* receive application in circumstances of genuine ambiguity, i.e., where a statutory provision is subject to differing, but equally plausible, interpretations. [Emphasis in original; para. 62.]

24 In the context of this case, resorting to this tool exemplifies how its misuse can effectively pre-empt the judicial review of the constitutional validity of the statutory provision. It risks distorting the Legislature's intent and depriving it of the opportunity to justify any breach, if so found, as a reasonable limit under s. 1 of the *Charter*. In this respect, Daigle J.A. properly instructed himself and rightly found, at para. 58, that the contextual and purposive analysis of the *OLA* "removed all ambiguity surrounding the meaning of the word 'institution'". Absent any remaining ambiguity, *Charter* values have no role to play.

25 For these reasons, I would dismiss the appeal with costs.

2.6 Thibodeau v. Air Canada, 2019 FC 1102

Thibodeau v. Air Canada, 2019 FC 1102 involved another application by Michel and Lynda Thibodeau in which they sought a remedy under the *Official Languages Act* ("*OLA*") for alleged violations of their language rights by Air Canada. They argued that Air Canada violated their language rights by using unilingual English signage and making less detailed boarding announcements in French. Despite Air Canada acknowledging some violations and paying damages, the Thibodeaus sought a declaration, formal apology, and additional remedies, arguing the violations were systemic.

The Federal Court ruled that Air Canada's practices violated the *OLA* and ordered an apology and damages. However, it declined to issue a mandatory order or punitive damages, as it did not find a systemic issue. The Commissioner of Official Languages of Canada intervened, emphasizing the principle of "substantive equality" and supporting the Court's authority to grant remedies under the *OLA*.

***Thibodeau v. Air Canada*, 2019 FC 1102**

> [40] As the Commissioner notes, the equality of the official languages has four components. Section 16 of the Charter and section 2 of the Act provide for the equality of status between French and English, as well as the equality of the rights and privileges with regard to their use. Equality of access and of quality arise from the decision in *Beaulac*, which describes the nature of language obligations by stating that " substantive equality is the correct norm to apply in Canadian law" and that there must be "equal access to services of equal quality for members of both official language communities in Canada" (*Beaulac* at paragraph 22).
>
> [41] The decision in *DesRochers* reinforces the language obligations of institutions. It defines the nature and scope of the principle of language equality in communications and the provision of services under section 20 of the Charter and Part IV of the Act. More specifically, the Supreme Court defines the scope of the notion of "services of equal quality" and states from the outset that "[s]ubstantive equality, as opposed to formal equality, is to be the norm" (*DesRochers* at paragraph 31).
>
> …

[48] Therefore, with regard to using only the word ”exit”, I cannot agree with Air Canada’s argument that this is an acceptable word in French to designate an exit or way out. It seems clear that this word is used in a theatrical context to designate someone who is exiting the stage. Air Canada refers to the *Grand Robert de la langue française*, the *Dictionnaire de français Larousse* and the *Multidictionnaire de la langue française*, but none of those dictionaries refer to the word ”exit” as meaning a physical exit, in the sense of a way out. The testimony of Ms. Dugas did not convince me that the word ”exit” is universally recognized in French to designate an exit or way out. Moreover, paragraph 525.811(g) of the *Airworthiness Manual*, which Air Canada cites in its memorandum, describes the English terms in French. Therefore, it is not clear that this paragraph supports Air Canada’s position because: (1) it permits the use of the word ”exit” in the legend and not on the signage itself; (2) Parliament deemed it relevant to specify, in the French version, that the word ”exit” is equivalent to ”issue” in French, which does not support the position that the word ”exit” is universally recognized in French; and (3) the *Airworthiness Manual* sets out airworthiness standards, whereas the Act imposes language obligations.

[49] With respect to the words ”exit” and ”sortie”, I am of the opinion that the difference in the size of the characters suggests an inequality in the status of the two official languages. While Air Canada relies on the decision in *DesRochers* to argue that the service was rendered in both languages and that that is sufficient, the problem is not related to the quality of the service, but rather to the equality in status, which is recognized by section 16 of the Charter and section 2 of the Act.

[50] The difference in the size of the characters is not necessary to ensure substantive equality, and it seems rather obvious that a difference in the size of characters tends to affirm the predominance of one language over another.

…

[51] Similarly, the difference in the size of characters in the words ”warning” and ”avis” suggests an inequality in the status of French and English, which violates section 16 of the Charter and section 2 of the Act. Displaying the word ”warning” in larger characters than the word ” avis” tends to affirm the predominance of the English language.

…

[52] I cannot agree with Air Canada’s argument that the engraving of only the word ”lift” would not be subject to the requirements of the Act because it is the initiative of the manufacturer. Air Canada has no authority as to whether such a communication is subject to the Act.

[53] The engraving of the word ”lift” is a communication from Air Canada to its passengers and, being unilingual, it violates the requirements of the Act. If Air Canada displays this word, it must also display the French equivalent.

[54] It is not disputed that the English announcement contains more information than the French announcement. The service provided is clearly not identical, and this distinction between the two languages cannot be justified by the noble objective of ensuring substantive equality (*École Rose-des-vents* at paragraph 33; *DesRochers* at paragraph 51).

[55] Consequently, I conclude that Air Canada violated its language obligations with respect to the four issues raised.

2.7 *The Right Honourable Prime Minister of Canada et al. v. La Société de l’Acadie du Nouveau-Brunswick and The Attorney General for New Brunswick*

In The Right Honourable Prime Minister of Canada et al. v. La Société de l’Acadie du Nouveau-Brunswick and The Attorney General for New Brunswick, 2024 NBCA 70, the New Brunswick Court of Appeal addressed the constitutional language obligations of the Lieutenant Governor of New Brunswick. The Société de l’Acadie du Nouveau-Brunswick (the “SANB”) challenged the appointment of Brenda Murphy, a unilingual English speaker, to the position, arguing that it violated Sections 16(2), 16.1(2), and 20(2) of the Charter, which pertain to the equality of English and French in New Brunswick.

At first instance, the applications judge agreed with the SANB. She found that the Lieutenant Governor, as the Crown’s representative in a constitutionally bilingual province, must be able to fulfill official and ceremonial duties in both official languages to uphold the constitutional principle of substantive equality between English and French speaking communities in New Brunswick. The applications judge concluded that appointing a unilingual English speaker was inconsistent with the Charter.

The Court of Appeal overturned that decision. It held that while the Charter guarantees institutional bilingualism – meaning that government services and institutions must be able to operate in both official languages – it does not impose a personal bilingualism requirement on individual officer holders such as the Lieutenant Governor. The Court of Appeal emphasized that constitutional language rights protect the public’s ability to receive services in either official language, not the linguistic abilities of individual officials. On February 27, 2025, the Supreme Court granted the SANB’s application for leave to appeal.

***The Right Honourable Prime Minister of Canada et al. v. La Société de l’Acadie du Nouveau-Brunswick and The Attorney General for New Brunswick*, 2024 NBCA 70**

[8] On December 3, 2019, the Société de l’Acadie du Nouveau-Brunswick filed an application with the Court of Queen’s Bench of New Brunswick challenging the appointment on the grounds that the appointment of a unilingual individual to the office of Lieutenant Governor of New Brunswick violated the constitutional guarantees respecting official languages that apply in New Brunswick. In its application, the SANB sought, *inter alia*, declaratory relief pertaining to the language rights guaranteed by ss. 16(2), 18(2) and 20(2) of the *Canadian Charter of Rights and Freedoms*, a declaration quashing the Prime Minister’s advice to the Governor General recommending Ms. Murphy’s appointment, and a declaration that the Order in Council appointing her was unlawful and of no force and effect.

…

[15] The Attorney General of New Brunswick argues that ss. 16(2), 16.1(1) and (2), 18(2) and 20(2) of the *Charter* do not require personal bilingualism and that the application judge’s finding that the Lieutenant Governor of New Brunswick must be bilingual is untenable in law.

…

[48] Canada argues there is nothing in ss. 16(2), 16.1, 18(2) and 20(2) of the *Charter* that requires the Lieutenant Governor of New Brunswick to be fluent in both official languages of the province. It submits the SANB has suggested that these provisions as a whole create a unique state bilingualism regime in New Brunswick that gives rise to a constitutional obligation that the Lieutenant Governor be bilingual. It submits the judge accepted SANB’s argument and treated these provisions indiscriminately to derive a new language obligation, namely the personal bilingualism of the Lieutenant Governor of New Brunswick.

…

[50] Subsections 16(2) and 20(2) are the two constitutional provisions that impose institutional language obligations on all institutions of the legislature and government of New Brunswick. Canada argues that, even if ss. 16(2) and 20(2) apply to the institution of the Lieutenant Governor as a component of the “legislature” and the “government of New Brunswick,” their wording does not support a finding

that they require the holder of this office to be bilingual. Canada submits that, as derived from the specific wording of these provisions, the obligation to implement language rights is directed at institution rather than individual, indicating that the person holding office is distinct from the institution he or she represents.

…

[52] The SANB argues the only interpretation of ss. 16(2), 16.1, 18(2) and 20(2) that is consistent with the principles of constitutional interpretation that apply to language rights leads to the conclusion the Lieutenant Governor of New Brunswick must be bilingual. It submits that, according to Canada, institutional bilingualism applies to the interpretation of all relevant provisions and is based on the notion entertained by Canada of an institutional language obligation or institutional bilingualism.

…

(b*) Subsection 16(2)*

[96] Subsection 16(2) of the *Charter* is to New Brunswick what s. 16(1) is to the federal government. Subsection 16(2) provides that "English and French […] have equality of status and equal rights and privileges as to their use in all institutions of the legislature and government of New Brunswick" (emphasis added). The dispute before this Court brings to light two conflicting theories respecting the interpretation of this provision. While some argue that s. 16(2) is a purely symbolic provision, others consider it to confer substantive rights. These two theories are summarized as follows in *Les droits linguistiques au Canada*:

> [TRANSLATION]
>
> […] According to the first theory, this provision would be purely declaratory in nature. The supporters of this theory argue that this section 16 is purely symbolic, a declaratory provision that cannot be implemented, a sort of preamble to the rule governing the interpretation of sections 17 to 22 of the *Charter*. According to the supporters of the second theory, this section has a specific meaning capable of supporting a claim for relief if the stated equality is not achieved. Section 16 would therefore also impose obligations on governments. […] [Footnote omitted; at p. 520]

…

[106] On its face, applying an approach that consists of giving the wording of s. 16(2) a broad, liberal and purposive interpretation that is consistent with the protection and development of Canada's official linguistic communities, one does not automatically arrive at an interpretation that would impose on the Lieutenant Governor of New Brunswick the obligation to be fluent in both official languages.

[107] If a constitutional requirement of personal bilingualism were to apply to the Lieutenant Governor of New Brunswick as a result of likening the office to one of the "institutions" to which s. 16(2) (or s. 20(2)) extends, we would need to ask ourselves how to distinguish the individuals heading these other institutions so that these individuals would not be subject to this requirement, while protecting the framework of institutional bilingualism. The judge bases her answer on the distinction she makes between the Lieutenant Governor and certain elected representatives such as the Premier and the Ministers, noting that they are elected by the citizens (at para. 47). However, this response does not deal with other individuals, such as the Chief Justice of New Brunswick and the Attorney General of New Brunswick, who also personify institutions. We will not deal with that question today. With all due respect, ss. 16(2) and 20(2) apply to "institutions" without making the distinction made by the judge. In *Charlebois v. Saint John (City)*, Charron J., writing for the majority, stated as follows:

> In its preamble, the [*Official Languages Act*, S.N.B. 2002, c. O-0.5] proclaims the purposes of the Act are expressly tied to the language guarantees and obligations enshrined in the Canadian Constitution. There is no dispute that the OLA is the province's legislative response to its obligations under the Canadian Charter of Rights and Freedoms in relation to institutional bilingualism in New Brunswick. […] [Emphasis added; para. 13]

She continued her analysis by reproducing, in part, ss. 16 to 20 of the *Charter*, thereby clearly establishing that these provisions create institutional obligations rather than personal obligations.

…

[111] In our view, the use of the words "in" and "use" in s. 16(2) indicates that the purpose is to establish an equality of status as well as equal rights and privileges with respect to the use of the official languages within institutions. By giving these words their ordinary and grammatical meaning, we note that the provision deals with the actions to be taken within an institution and not with the bilingualism of a particular individual. In our view, the use of the words "in" and "use" suggests that the purpose is to grant equality of status to the English and French languages in their use within institutions. In other words, it refers to the actions that are to be taken within institutions and does not require that any one person be bilingual.

[112] Even if we assume that the institution of Lieutenant Governor cannot be completely separated from the individual that embodies it, it is difficult to interpret the wording of s. 16(2) as requiring the personal bilingualism of the Lieutenant Governor, because this provision establishes equality of status and equal rights and privileges with respect to the "use" of English and French "in all institutions of the legislature and government of New Brunswick." The use of both official languages "in" the institution that is the Lieutenant Governor does not depend on the personal language skills of the Lieutenant Governor. The failure of a Lieutenant Governor to be fluent in both official languages does not violate the equality of status and the equal rights and privileges with respect to their use within the institution.

…

[146] Subsection 16(2) establishes equality of status, rights and privileges with respect to the "use" of English and French "in all institutions of the legislature and government of New Brunswick." The use of both official languages "in" the institution pertaining to the Lieutenant Governor is not dependent upon the personal linguistic capabilities of that individual. The appointment of a unilingual Lieutenant Governor in New Brunswick does not violate s. 16(2).

2.8 *Girouard v. Canada (Attorney General)*

In *Girouard v. Canada (Attorney General)*, 2020 FCA 129, the Federal Court of Appeal upheld the dismissal of Justice Michel Girouard's application for judicial review of the Canadian Judicial Council's ("CJC") recommendation for his removal from the Superior Court of Quebec. Girouard argued that his language rights under Section 16(1) of the *Charter* were violated during the CJC's inquiry, specifically regarding access to untranslated documents. The Court found that Section 16(1) does not confer substantive language rights but serves a declaratory or interpretive purpose. It concluded that Girouard's right to communicate in his official language of choice was respected, and the procedural fairness requirements were met.

***Girouard v. Canada (Attorney General),* 2020 FCA 129, leave to appeal to SCC ref'd 39379 (25 February 2021)**

> [5] After carefully reviewing the case and considering all of the arguments put forward by counsel for Justice Girouard challenging that judgment, I am of the opinion that the appeal should be dismissed. In my view, the Federal Court did not err in finding that the Council's decision to recommend Justice Girouard's removal was reasonable. Moreover, I find that there was no breach of the principles of procedural fairness and that Justice Girouard was given full opportunity to be heard and to make submissions. Although it might have been desirable for certain portions of the transcript of the hearings before the second Inquiry Committee to have been translated, I nonetheless find that Justice Girouard was not prejudiced by this and that it would not be appropriate to set aside the Council's decision on that ground, as I will explain later.
>
> …
>
> E. *Were the appellant's language rights respected?*
>
> [101] The appellant recognizes that section 133 of the C.A., 1867, sections 14 and 19 of the Charter and sections 14 to 16 of the *Official Languages Act* do not apply to the Council because it is not a court within the meaning of those provisions. In any event, Justice Girouard was given the opportunity to argue his case and testify in the official language of his choice, and those provisions were therefore respected. The appellant also acknowledges that he cannot avail himself of section 20 of the Charter and section 22 of the *Official Languages Act* because the language rights guaranteed by those statutes in the delivery of public services do not apply here.
>
> [102] The only argument the appellant put forward before us is based on subsection 16(1) of the Charter, under which French and English " have equality of status and equal rights and privileges as to their use in all institutions of the Parliament and government of Canada." According to Justice Girouard, this Court should recognize that this provision confers substantive rights and can fill the gaps of the other provisions guaranteeing language rights in the Charter.
>
> [103] In my view, this argument is erroneous, and, moreover, the appellant did not cite any decisions in support of his claim. Subsection 16(1) of the Charter is a provision that is declaratory or interpretive in nature, and it is not for this Court to change the state of the law on this issue. In any event, the equality of status and equal rights and privileges for both official languages enshrined in that provision have been completely respected, and the appellant's right to communicate with the second Inquiry Committee and the Council in the official language of his choice was in no way fettered. What the appellant is claiming is the right to be understood by the decision maker in the language of his choice. As the Supreme Court noted in *Société des Acadiens v. Association of Parents*, 1986 CanLII 66 (SCC), [1986] 1 SCR 549, at page 580, (1986), 27 D.L.R. (4th) 406 and *MacDonald v. City of Montreal*, 1986 CanLII 65 (SCC), [1986] 1 SCR 460, at pages 500–501, (1986), 27 D.L.R. (4th) 321, this right does not fall within the ambit of section 16 of the Charter but rather within the procedural safeguards. Contrary to the arguments of counsel for the appellant, this aspect of the aforementioned judgments was not rejected by the Supreme Court at paragraph 41 of *R. v. Beaulac*, 1999 CanLII 684 (SCC), [1999] 1 SCR 768, (1999), 173 D.L.R. (4th) 193. It is one thing to say that language rights must be interpreted "purposively, in a manner consistent with the preservation and development of official language communities in Canada" (at paragraph 25); it is another to use subsection 16(1) to add rights and fill what could be perceived as gaps in the range of the rights protected at sections 16 to 23 of the Charter.
>
> [104] For these reasons, I agree with the Federal Court that the appellant's language rights were not violated.

3 Section 23 of the *Charter*

Section 23 of the *Charter* grants a defined category of Canadian citizens the right to have their children receive instruction in one of the two official languages where it is the minority language:

> Language of instruction
>
> 23 (1) Citizens of Canada
>
> (a) whose first language learned and still understood is that of the English or French linguistic minority population of the province in which they reside, or
>
> (b) who have received their primary school instruction in Canada in English or French and reside in a province where the language in which they received that instruction is the language of the English or French linguistic minority population of the province,
>
> have the right to have their children receive primary and secondary school instruction in that language in that province.
>
> Continuity of language instruction
>
> (2) Citizens of Canada of whom any child has received or is receiving primary or secondary school instruction in English or French in Canada, have the right to have all their children receive primary and secondary school instruction in the same language.
>
> Application where numbers warrant
>
> (3) The right of citizens of Canada under subsections (1) and (2) to have their children receive primary and secondary school instruction in the language of the English or French linguistic minority population of a province
>
> (a) applies wherever in the province the number of children of citizens who have such a right is sufficient to warrant the provision to them out of public funds of minority language instruction; and
>
> (b) includes, where the number of those children so warrants, the right to have them receive that instruction in minority language educational facilities provided out of public funds.

3.1 Guiding questions

- Who are the rights holders under Section 23?
    - What are the three categories?
- Does Section 23 have an internal limit?
    - What is it?
- Is the right to instruction in minority language educational facilities limited to a right to a distinct physical structure?
    - If not, what else does it include?
- What are the objectives of Section 23?
- What is the framework that the Supreme Court established in *Mahe*?
- How did the Supreme Court expand on or clarify the *Mahe* framework in *Conseil scolaire* (2020)?

- What is the test used to assess the quality of instruction provided to official language minorities, as established in *Rose-des-vents*?
    - Does the test vary with the number of minority language students?

3.2 Mahe v. Alberta

In *Mahe v. Alberta*, 1990 CanLII 133 (SCC), [1990] 1 SCR 342, the appellants claimed that their rights under Section 23 were not satisfied by the existing educational system in Edmonton. They brought an action against the province seeking, *inter alia* declarations that: (i) there was a sufficient number of children of the French linguistic minority in the Edmonton area to warrant publicly-funded French language instruction and facilities pursuant to Section 23 , and (ii) the rights granted pursuant to that section entitled the appellants to have their children educated in facilities equivalent to those provided to English speaking children, and to be granted powers equal to those granted to the parents of such children.

At the heart of the appeal was the claim that the phrase “minority language educational facilities” referred to in Section 23(3)(b) includes administration by distinct school boards. The Court found that where the numbers warrant, Section 23 confers upon minority language parents a right to management and control over the educational facilities in which their children are taught. Where the number of Section 23 students does not warrant granting an independent school board (the maximum level of management and control), but is significant enough to warrant a higher level of rights and services, it may be sufficient to require linguistic minority representation on an existing school board.

The Court found that there were sufficient numbers of students in the Edmonton area to justify the creation of an independent school. However, the number of students were insufficient to require the establishment of an independent Francophone school board. Accordingly, the Court found that minority language parents should enjoy the right to representation on existing school boards and an appropriate degree of management and control. The Court directed the province to enact legislation consistent with Section 23.

Mahe v. Alberta, 1990 CanLII 133 (SCC), [1990] 1 SCR 342

The judgment of the Court was delivered by The Chief Justice –

[Page 362]

(1) *The purpose of s. 23*

The general purpose of s. 23 is clear: it is to preserve and promote the two official languages of Canada, and their respective cultures, by ensuring that each language flourishes, as far as possible, in provinces where it is not spoken by the majority of the population. The section aims at achieving this goal by granting minority language educational rights to minority language parents throughout Canada.

My reference to cultures is significant: it is based on the fact that any broad guarantee of language rights, especially in the context of education, cannot be separated from a concern for the culture associated with the language. Language is more than a mere means of communication, it is part and parcel of the identity and culture of the people speaking it. It is the means by which individuals understand themselves and the world around them. …

…

[Page 363]

A further important aspect of the purpose of s. 23 is the role of the section as a remedial provision. It was designed to remedy an existing problem in Canada, and hence to alter the status quo. As Kerans J.A. succinctly put it, “the very existence of the section implies the inadequacy of the present regime” (p. 534). The remedial nature of s. 23 was clearly acknowledged by this Court in the *Attorney General of Quebec v. Quebec Association of Protestant School Boards*, 1984 CanLII 32 (SCC), [1984] 2 SCR 66, at p. 79:

> The special provisions of s. 23 of the *Charter* make it a unique set of constitutional provisions, quite peculiar to Canada.
>
> This set of constitutional provisions was not enacted by the framers in a vacuum. When it was adopted, the framers knew, and clearly had in mind the regimes governing the Anglophone and Francophone linguistic minorities in various provinces in Canada so far as the language of instruction was concerned. They also had in mind the history of these regimes, both earlier ones such as Regulation 17, which for a time limited instruction in French in the separate schools of Ontario . . . as well as more recent ones such as *Bill 101* and the legislation which preceded it in Quebec. Rightly or wrongly, -- and it is not for the courts to decide, -- the framers of the Constitution manifestly regarded as inadequate some -- and perhaps all -- of the regimes in force at the time the *Charter* was enacted, and their intention was to remedy the perceived defects of these regimes by uniform corrective measures, namely those contained in s. 23 of the *Charter*, which were at the same time given the status of a constitutional guarantee. [Emphasis added.]

See also *Lavoie v. Nova Scotia (Attorney General)* (1989), 1989 CanLII 5221 (NS CA), 91 N.S.R. (2d) 184 (N.S.C.A.), at p. 193.

…

[Page 364]

In my view the appellants are fully justified in submitting that “history reveals that s. 23 was designed to correct, on a national scale, the progressive erosion of minority official language groups and to give effect to the concept of the ’equal partnership’ of the two official language groups in the context of education.”

…

[Page 365]

(2) *The Context of s. 23(3)(b): An Overview of s. 23*

The proper way of interpreting s. 23, in my opinion, is to view the section as providing a general right to minority language instruction. Paragraphs (*a*) and (*b*) of subs. (3) qualify this general right: para. (*a*) adds that the right to instruction is only guaranteed where the “number of children” warrants, while para. (*b*) further qualifies the general right to instruction by adding that where numbers warrant it includes a right to “minority language educational facilities”. In my view, subs. (3)(*b*) is included in order to indicate the upper range of possible institutional requirements which may be mandated by s. 23 (the government may, of course, provide more than the minimum required by s. 23).

[Page 366]

Another way of expressing the above interpretation of s. 23 is to say that s. 23 should be viewed as encompassing a “sliding scale” of requirement, with subs. (3)(*b*) indicating the upper level of this range and the term “instruction” in subs. (3)(*a*) indicating the lower level. The idea of a sliding scale is simply that s. 23 guarantees whatever type and level of rights and services is appropriate in order to provide minority language instruction for the particular number of students involved.

The sliding scale approach can be contrasted with that which views s. 23 as only encompassing two rights -- one with respect to instruction and one with respect to facilities -- each providing a certain level of services appropriate for one of two numerical thresholds. On this interpretation of s. 23, which could be called the "separate rights" approach, a specified number of s. 23 students would trigger a particular level of instruction, while a greater, specified number of students would require, in addition, a particular level of minority language educational facilities. Where the number of students fell between the two threshold numbers, only the lower level of instruction would be required.

…

[Pages 367-368]

There are outer limits to the sliding scale of s. 23. In general, s. 23 may not require that anything be done in situations where there are a small number of minority language students. There is little that governments can be required to do, for instance, in the case of a solitary, isolated minority language student. Section 23 requires, at a minimum, that "instruction" take place in the minority language: if there are too few students to justify a programme which qualifies as "minority language instruction", then s. 23 will not require any programmes be put in place. However, the question of what is the "minimum" programme which could constitute "instruction", and the further question of how many students might be required in order to warrant such a programme, are not at issue in this appeal and I will not be addressing them. The question at issue here concerns only the "upper level" of the possible range of requirements under s. 23 -- that is, the requirements where there are a relatively large number of s. 23 students.

…

[Pages 369-370]

(4) *Management and Control -- The Text of s. 23(3)(b)*

In my view, the words of s. 23(3)(*b*) are consistent with and supportive of the conclusion that s. 23 mandates, where the numbers warrant, a measure of management and control. Consider, first, the words of subs. (3)(*b*) in the context of the entire section. Instruction must take place somewhere and accordingly the right to "instruction" includes an implicit right to be instructed in facilities. If the term "minority language educational facilities" is not viewed as encompassing a degree of management and control, then there would not appear to be any purpose in including it in s. 23. This common sense conclusion militates against interpreting "facilities" as a reference to physical structures. Indeed, once the sliding scale approach is accepted it becomes unnecessary to focus too intently upon the word "facilities". Rather, the text of s. 23 supports viewing the entire term "minority language educational facilities" as setting out an upper level of management and control.

I recognize that the English text of subs. (3)(*b*) is perhaps ambiguous: the phrase "minority language educational facilities" could either mean the facilities <u>of</u> the minority, or the facilities <u>for</u> the minority. The French text, however, is clearer. …

23. . . .

(3) Le droit . . .

b) comprend, lorsque le nombre de ces enfants le justifie, le droit de les faire instruire dans des <u>établissements d'enseignement de la minorité linguistique</u> financés sur les fonds publics. [Emphasis added.]

The underlined phrase in the French text -- which utilizes the possessive "*de la*" -- is more strongly suggestive than the English text that the facilities <u>belong</u> to the minority and hence that a measure of management and control should go to the linguistic minority in respect of educational facilities.

…

[Pages 371-373]

(5) *Management and Control -- The Purpose of s. 23*

The foregoing textual analysis of s. 23(3)(*b*) is strongly supported by a consideration of the overall purpose of s. 23. That purpose, as discussed earlier, is to preserve and promote minority language and culture throughout Canada. In my view, it is essential, in order to further this purpose, that, where the numbers warrant, minority language parents possess a measure of management and control over the educational facilities in which their children are taught. Such management and control is vital to ensure that their language and culture flourish. It is necessary because a variety of management issues in education, e.g., curricula, hiring, expenditures, can affect linguistic and cultural concerns. I think it incontrovertible that the health and survival of the minority language and culture can be affected in subtle but important ways by decisions relating to these issues. To give but one example, most decisions pertaining to curricula clearly have an influence on the language and culture of the minority students.

Furthermore, as the historical context in which s. 23 was enacted suggests, minority language groups cannot always rely upon the majority to take account of all of their linguistic and cultural concerns. Such neglect is not necessarily intentional: the majority cannot be expected to understand and appreciate all of the diverse ways in which educational practices may influence the language and culture of the minority. In commenting on various setbacks experienced by the Francophone minority in Ontario, the Court of Appeal of that province noted that "[l]ack of meaningful participation in management and control of local school boards by the Francophone minority made these events possible" (*Reference Re Education Act of Ontario*, *supra*, at p. 531). A similar observation was made by the Prince Edward Island Court of Appeal in *Reference Re Minority Language Educational Rights (P.E.I.)*, *supra*, at p. 259:

It would be foolhardy to assume that Parliament intended to . . . leave the sole control of the program development and delivery with the English majority. If such were the case, a majority language group could soon wreak havoc upon the rights of the minority and could soon render such a right worthless.

I agree with the sentiments expressed in these statements. If section 23 is to remedy past injustices and ensure that they are not repeated in the future, it is important that minority language groups have a measure of control over the minority language facilities and instruction.

(6) *The Meaning of the Phrase "Management and Control"*

Section 23 clearly encompasses a right to management and control. On its own, however, the phrase "management and control" is imprecise and requires further specification. This can be accomplished by considering what type of management and control is needed in order to fulfill the purpose of s. 23. …

[Page 374]

In some circumstances an independent Francophone school board is necessary to meet the purpose of s. 23. However, where the number of students enrolled in minority schools is relatively small, the ability of an independent board to fulfill this purpose may be reduced and other approaches may be appropriate whereby the minority is able to identify with the school but has the benefit of participating in a larger organization through representation and a certain exclusive authority within the majority school board. Under these circumstances, such an arrangement avoids the isolation of an independent school district from the physical resources which the majority school district enjoys and

facilitates the sharing of resources with the majority board, something which can be crucial for smaller minority schools. By virtue of having a larger student population, it can be expected that the majority board would have greater access to new educational developments and resources. Where the number of s. 23 students is not sufficiently large, a complete isolation of the minority schools would tend to frustrate the purpose of s. 23 because, in the long run, it would contribute to a decline in the status of the minority language group and its educational facilities. Graduates of the minority schools would be less well-prepared (thus hindering career opportunities for the minority) and potential students would be disinclined to enter minority language schools.

…

[Pages 375-376]

…What is essential, however, to satisfy that purpose is that the minority language group have control over those aspects of education which pertain to or have an effect upon their language and culture. This degree of control can be achieved to a substantial extent by guaranteeing representation of the minority on a shared school board and by giving these representatives exclusive control over all of the aspects of minority education which pertain to linguistic and cultural concerns.

…

[Page 377]

In my view, the measure of management and control required by s. 23 of the Charter may, depending on the numbers of students to be served, warrant an independent school board. Where numbers do not warrant granting this maximum level of management and control, however, they may nonetheless be sufficient to require linguistic minority representation on an existing school board. In this latter case:

(1) The representation of the linguistic minority on local boards or other public authorities which administer minority language instruction or facilities should be guaranteed;

(2) The number of minority language representatives on the board should be, at a minimum, proportional to the number of minority language students in the school district, i.e., the number of minority language students for whom the board is responsible;

(3) The minority language representatives should have exclusive authority to make decisions relating to the minority language instruction and facilities, including:

(a) expenditures of funds provided for such instruction and facilities;

(b) appointment and direction of those responsible for the administration of such instruction and facilities;

(c) establishment of programs of instruction;

(d) recruitment and assignment of teachers and other personnel; and

(e) making of agreements for education and services for minority language pupils.

…

[Page 384]

(8) *The "Numbers Warrant" Provision*

What is being considered when a court addresses the "numbers warrant" question -- existing demand, potential demand, or something else? The appellants' position was that the existing demand for Francophone services is not a reliable indicator of demand because the demand for any service will to some extent follow the provision of that service. The respondent, on the other hand, argued that the courts cannot simply use the total number of potential s. 23 students as a gauge, since it is highly unlikely that all of these students will take advantage of a proposed service. There is some force to both of these arguments; accordingly, the approach I have taken mediates between the concerns which they raise. In my view, the relevant figure for s. 23 purposes is the number of persons who will eventually take advantage of the contemplated programme or facility. It will normally be impossible to know this figure exactly, yet it can be roughly estimated by considering the parameters within which it must fall -- the known demand for the service and the total number of persons who potentially could take advantage of the service.

The numbers warrant provision requires, in general, that two factors be taken into account in determining what s. 23 demands: (1) the services appropriate, in pedagogical terms, for the numbers of students involved; and (2) the cost of the contemplated services. The first, pedagogical requirements, recognizes that a threshold number of students is required before certain programmes or facilities can operate effectively. …

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Cost, the second factor, is not usually explicitly taken into account in determining whether or not an individual is to be accorded a right under the *Charter*. In the case of s. 23, however, such a consideration is mandated. Section 23 does not, like some other provisions, create an absolute right. Rather, it grants a right which must be subject to financial constraints, for it is financially impractical to accord to every group of minority language students, no matter how small, the same services which a large group of s. 23 students are accorded. I note, however, that in most cases pedagogical requirements will prevent the imposition of unrealistic financial demands upon the state. Moreover, the remedial nature of s. 23 suggests that pedagogical considerations will have more weight than financial requirements in determining whether numbers warrant.

3.3 *Arsenault-Cameron v. Prince Edward Island*

In *Arsenault-Cameron v. Prince Edward Island*, 2000 SCC 1 (CanLII), [2000] 1 SCR 3, the appellants made a request to the Commission scolaire de langue française de l'Île-du-Prince-Édouard (the "Commission scolaire") for the establishment of a French school for grades one to six in the Summerside region of Prince Edward Island for the 1995 to 1996 school year.

Thirty-four students pre-registered in January 1995. Twenty-nine of those children were from Summerside, four were from Miscouche, and one was from Kensington. Based on the results, the Commission scolaire made a conditional offer of French first language instruction in Summerside. The Minister of Education refused to approve this offer and offered instead to maintain transportation services to a French school in Abram's Village, which is located 28 kilometers from Summerside, 20 kilometers from Miscouche, and 40 kilometers from Kensington. To find a solution, the Commission scolaire proposed to provide French language instruction in Summerside through another school. The Minister also rejected this proposal.

The appellants initiated proceedings against the province seeking a declaration that they had the right to have their children receive French first language instruction in a facility in Summerside.

The Supreme Court of Canada held that the number of children that could be assembled for instruction in Summerside was sufficient to warrant the provision of French language instruction out of public funds and that the parents of those children had the right to receive that service in the Summerside area.

***Arsenault-Cameron v. Prince Edward Island*, 2000 SCC 1 (CanLII), [2000] 1 SCR 3**

The judgment of the Court was delivered by Major and Bastarache JJ. —

27 As this Court recently observed in *R. v. Beaulac*, 1999 CanLII 684 (SCC), [1999] 1 SCR 768, at para. 24, the fact that constitutional language rights resulted from a political compromise is not unique to language rights and does not affect their scope. Like other provisions of the *Charter*, s. 23 has a remedial aspect; see *Mahe*, *supra*, at p. 364. It is therefore important to understand the historical and social context of the situation to be redressed, including the reasons why the system of education was not responsive to the actual needs of the official language minority in 1982 and why it may still not be responsive today. It is clearly necessary to take into account the importance of language and culture in the context of instruction as well as the importance of official language minority schools to the development of the official language community when examining the actions of the government in dealing with the request for services in Summerside. As this Court recently explained in *Beaulac*, at para. 25, "[l]anguage rights must in all cases be interpreted purposively, in a manner consistent with the preservation and development of official language communities in Canada" (emphasis in original). A purposive interpretation of s. 23 rights is based on the true purpose of redressing past injustices and providing the official language minority with equal access to high quality education in its own language, in circumstances where community development will be enhanced.

28 In light of the importance of this remedial purpose, the trial judge properly began his reasons by explaining the historical background of the official language minority in Prince Edward Island and in Summerside, as had the court in *Reference re: School Act*, *supra*. From this review, the trial judge was prepared to decide whether the s. 23 rights had been infringed.

29 The historical and contextual analysis is important for courts in determining whether a government has failed to meet its s. 23 obligations. It should also guide governmental actors in reaching appropriate decisions to give effect to s. 23. In this case, the Minister was of the view that it would be more beneficial for the children to receive their instruction in a homogeneous school located at the heart of the Acadian community. Insisting on the individual right to instruction, the Minister appeared to ignore the linguistic and cultural assimilation of the Francophone community in Summerside, thereby restricting the collective right of the parents of the school children. ...

B. *The Notion of Equality*

31 As discussed above, the object of s. 23 is remedial. It is not meant to reinforce the *status quo* by adopting a formal vision of equality that would focus on treating the majority and minority official language groups alike; see *Mahe*, *supra*, at p. 378. The use of objective standards, which assess the needs of minority language children primarily by reference to the pedagogical needs of majority language children, does not take into account the special requirements of the s. 23 rights holders. The Minister and the Appeal Division inappropriately emphasized the impact of three elements on equality between the two linguistic communities: duration of the bus rides, size of schools and quality of education. Section 23 is premised on the fact that substantive equality requires that official language minorities be treated differently, if necessary, according to their particular circumstances and needs, in order to provide them with a standard of education equivalent to that of the official language majority. Before examining this issue in more detail, however, it is important to deal briefly with the "numbers warrant" analysis which was discussed in both the trial and appeal divisions.

C. *The Determination of Numbers Under Section 23*

32 The province has a duty to provide official minority language instruction where the numbers warrant. As Dickson C.J. pointed out in *Mahe*, *supra*, the "sliding scale" approach to s. 23 means that the numbers standard will have to be worked out by examining the particular facts of each case that comes before the courts. The relevant number is the number who will potentially take advantage of the service, which can be roughly estimated as being somewhere between the known demand and the total number of persons who could potentially take advantage of the service; see *Mahe*, at p. 384. Lamer C.J. defined the number in *Reference re Public Schools Act (Man.)* in this way, at p. 850: "the number of persons who can eventually be expected to take advantage of a given programme or facility".

33 The Appeal Division erred in adopting a different and more restrictive standard. Instead of considering the demographic data to assess potential demand, McQuaid J.A. focussed solely on actual demand (at p. 350):

> The survey conducted by the respondents, which is the best evidence of potential demand for the instruction, revealed that 49 children in grades one to six would take advantage of instruction in the French language in the Summerside area in the 1996-97 school year, with the addition of 15 over the next two years….

The trial judge had found, based on current enrolment of s. 23 children aged 6 to 11, as well as demographic projections for children up to 5 years of age in the area, that the relevant number of children who could potentially take advantage of French language education was 306. This was a projection covering a ten-year period. In this case, the appropriate estimate of the potential number of students who might attend the facility in any given year is 155, the uncontested number projected by the expert witness, Ms. Angéline Martel. Therefore, according to the approach advocated in *Mahe*, the relevant number would be between 49 and 155….

34 Although the plaintiffs must establish their rights under s. 23, including the sufficiency of numbers, it is not possible for minority right holders to obtain more accurate and complete information with regard to enrolment projections than what was made available here, nor is it reasonable to impose more on them. The province has the duty to actively promote educational services in the minority language and to assist in determining potential demand. This duty is in effect enshrined in the *School Act* at s. 7(1)(b) and recognized in *Reference re Public Schools Act (Man.)*, *supra*, at pp. 862-63. The province cannot avoid its constitutional duty by citing insufficient proof of numbers, especially if it is not prepared to conduct its own studies or to obtain and present other evidence of known and potential demand.

D. *The Determination of What the Numbers Warrant Under Section 23*

38 *Mahe* explains that the numbers warrant provision requires that two factors be considered in determining the demands of s. 23. First, it requires a determination of the appropriate services, in pedagogical terms, for the number of students involved. Then it requires an examination of the costs of the contemplated service. In addressing the first concern, pedagogical requirements, it is important to consider the value of linguistic minority education as part of the determination of the services appropriate for the number of students. The pedagogical requirements established to address the needs of the majority language students cannot be used to trump cultural and linguistic concerns appropriate for the minority language students.

…

41 The second factor to be considered is the cost of the contemplated services. At the hearing before this Court, the province explained that costs were not a consideration in the Minister's decision. This is consistent with the fact that the Minister had maintained at trial that the Board's plan to provide French language instruction locally to such a small group was not pedagogically viable. The trial judge concluded that the Minister had simply decided that a facility in Summerside was not a "practical option". This conclusion, as mentioned earlier, was based on the availability of space at École Évangéline (pp. 336-37). It can therefore be assumed for the purpose of analysis that the second factor in assessing sufficient numbers in *Mahe*, i.e. costs, is not at issue in this case.

E. *The Role of the French Language Board*

43 …. Where a minority language board has been established in furtherance of s. 23, it is up to the board, as it represents the minority official language community, to decide what is more appropriate from a cultural and linguistic perspective. The principal role of the Minister is to develop institutional structures and specific regulations and policies to deal with the unique blend of linguistic dynamics that has developed in the province (for example, see *Reference re Public Schools Act (Man.)*, *supra*, at p. 863).

…

51 … We would instead affirm the conclusion of Hallett J. in the similar case of *Lavoie v. Nova Scotia (Attorney-General)* (1988), 1988 CanLII 5674 (NS SC), 50 D.L.R. (4th) 405 (N.S.S.C.T.D.), at p. 415, where he said: "Sending elementary school children on bus trips of 30 to 45 minutes each way when it is not necessary, is unreasonable if appropriate priorities are kept in mind." The question is also, whose priorities? Obviously, it has to be the priorities of the minority community because the determination of such priorities lies at the core of the management and control conferred on the minority language rights holders and their legitimate representatives by s. 23. Of course, these priorities must be determined and exercised in light of the role of the Minister.

F. *The Role of the Minister*

52 This is not to say that the Minister's role is not important. In *Mahe*, *supra*, Dickson C.J. accepted, at p. 393, that "the government should have the widest possible discretion in selecting the institutional means by which its s. 23 obligations are to be met". This discretion is however subject to the positive obligation on government to alter or develop "major institutional structures" to effectively ensure the provision of minority language instruction and facilities and parental control on the scale warranted by the relevant number of children of the minority (see *Mahe*, at p. 365).

…

G. *The Requirement for Local Facilities*

56 The duty to promote French language and culture in Prince Edward Island cannot mean that the government can impose the concentration of all minority language students in one predominantly French region. Both a textual and purposive analysis of s. 23(3) of the *Charter* indicate that when the numbers of s. 23 children in a specific area warrant the provision of minority language instruction, that instruction should take place in facilities located in the community where those children reside. Section 23(3)(*a*) states that the right to minority language instruction applies "wherever in the province" (emphasis added) the number of children is sufficient to warrant such instruction. The words "wherever in the province" link the right to instruction to the geographic place where the conditions for the exercise of that right are present. As noted in *Reference re: School Act*, *supra*, at p. 516, the term "wherever in the province" when construed in relation to the numbers warrant test "will limit a particular area within the province in which minority language education will have to be provided".

57 Some have expressed concern that geographical boundaries are difficult to define, that they may change and that educational authorities should not be restricted in their ability to define the area for the reasonable assembly of students. …. The determination of the appropriate area for the provision of minority language instruction and facilities is something that has to be decided in each case with due consideration to the numbers involved as well as all of the important factors specific to the case. It is however important to note that the s. 23 standard is not neutral but favours community development. This is why Dickson C.J. stated in *Mahe*, *supra*, at p. 386: "In some instances it may be necessary to provide transportation for students, or perhaps to provide boarding, in order to meet the requirements of s. 23" (emphasis added). …

…

V. Conclusion

…

62 In particular, the Appeal Division failed to take into account the minority language children's specific circumstances and the importance of the French Language Board in deciding matters that affect the linguistic and cultural development of the community. The French Language Board has the exclusive power to decide how it will provide services to the minority in the Summerside area, within the legitimate constraints set out by the province, its decisions also being subject to the rights of individual beneficiaries under s. 23.

3.4 *Doucet Boudreau v. Nova Scotia (Minister of Education)*

In *Doucet-Boudreau v. Nova Scotia (Minister of Education)*, 2003 SCC 62, [2003] 3 SCR 3, French-speaking parents from five Nova Scotian communities sought timely construction of homogeneous French-language schools for their children.

The trial judge found that the province had long failed to prioritize its Section 23 obligations and that delay risked assimilation. The trial judge ordered the government to use its "best efforts" to open the schools by specified dates, and retained jurisdiction to receive periodic progress reports, pursuant to Subsection 24(1). The Court of Appeal overturned the trial judgment.

The Supreme Court restored the trial judge's decision. Emphasizing the remedial, urgent, and future-oriented character of Section 23 rights and the broad wording of Subsection 24(1), the Court held that superior courts may craft innovative remedies, including ongoing supervisory orders, when needed to make constitutional rights meaningful.

***Doucet Boudreau v. Nova Scotia (Minister of Education)*, 2003 SCC 62, [2003] 3 SCR 3**

The judgment of the majority of the Court was delivered by Iacobucci and Arbour JJ. —

1 This appeal involves the nature of remedies available under s. 24(1) of the *Canadian Charter of Rights and Freedoms* for the realization of the minority language education rights protected by s. 23 of the *Charter*. The specific issue is whether a trial judge may, after ordering that a provincial government use its best efforts to build French-language school facilities by given dates, retain jurisdiction to hear reports on the progress of those efforts. The issue of broader and ongoing judicial involvement in the administration of public institutions is not before the Court in this case.

…

28 The minority language education rights protected under s. 23 of the *Charter* are unique. They are distinctively Canadian, representing "a linchpin in this nation's commitment to the values of bilingualism and biculturalism" (*Mahe*, *supra*, at p. 350). Section 23 places positive obligations on governments to mobilize resources and enact legislation for the development of major institutional structures (*Mahe*, at p. 389). While the rights are granted to individuals (*Schools Reference*, at p. 865), they apply only if the "numbers warrant", and the specific programs or facilities that the government is required to provide varies depending on the number of students who can potentially be expected to participate (*Mahe*, *supra*, at p. 366; *Schools Reference*, *supra*, at p. 850; *Arsenault-Cameron*, *supra*, at para. 38). This requirement gives the exercise of minority language education rights a unique collective aspect even though the rights are granted to individuals.

29 Another distinctive feature of the right in s. 23 is that the "numbers warrant" requirement leaves minority language education rights particularly vulnerable to government delay or inaction. For every school year that governments do not meet their obligations under s. 23, there is an increased likelihood of assimilation which carries the risk that numbers might cease to "warrant". Thus, particular entitlements afforded under s. 23 can be suspended, for so long as the numbers cease to warrant, by the very cultural erosion against which s. 23 was designed to guard. In practical, though not legal, terms, such suspensions may well be permanent. If delay is tolerated, governments could potentially avoid the duties imposed upon them by s. 23 through their own failure to implement the rights vigilantly. The affirmative promise contained in s. 23 of the *Charter* and the critical need for timely compliance will sometimes require courts to order affirmative remedies to guarantee that language rights are meaningfully, and therefore necessarily promptly, protected [citations ommitted].

30 To put the matter of judicial remedies in greater context, it is useful to reflect briefly on the role of courts in the enforcement of our laws.

…

43 A remedy under s. 24(1) is available where there is some government action, beyond the enactment of an unconstitutional statute or provision, that infringes a person's *Charter* rights (see *Schachter v. Canada*, 1992 CanLII 74 (SCC), [1992] 2 SCR 679, at pp. 719-20). In the present appeal, the difficulty does not lie with the legislation: no provision or omission in the *Education Act* prevented the government from providing minority language education as required by the *Constitution Act, 1982*. On the contrary, the *Education Act*, as amended in 1996, establishes a French-language school board to provide homogeneous French-language education to children of s. 23 entitled parents. Neither is the problem rooted in any particular government action; rather, the problem was inaction on the part of the provincial government, particularly its failure to mobilize resources to provide school facilities in a timely fashion, as required by s. 23 of the *Charter*. Section 24(1) is available to remedy this failure.

…

87 Section 24(1) of the *Charter* requires that courts issue effective, responsive remedies that guarantee full and meaningful protection of *Charter* rights and freedoms. The meaningful protection of *Charter* rights, and in particular the enforcement of s. 23 rights, may in some cases require the introduction of novel remedies. A superior court may craft any remedy that it considers appropriate and just in the circumstances. In doing so, courts should be mindful of their roles as constitutional arbiters and the limits of their institutional capacities. Reviewing courts, for their part, must show considerable deference to trial judges' choice of remedy, and should refrain from using hindsight to perfect a remedy. A reviewing court should only interfere where the trial judge has committed an error of law or principle.

88 The remedy crafted by LeBlanc J. meaningfully vindicated the rights of the appellant parents by encouraging the Province's prompt construction of school facilities, without drawing the court outside its proper role. The Court of Appeal erred in wrongfully interfering with and striking down the portion of LeBlanc J.'s order in which he retained jurisdiction to hear progress reports on the status of the Province's efforts in providing school facilities by the required dates.

3.5 *Solski (Tutor of) v. Quebec (Attorney General)*

Solski (Tutor of) v. Quebec (Attorney General), 2005 SCC 14 (CanLII), [2005] 1 SCR 201, involved section 73(2) of the Quebec *Charter of the French Language*, which allowed children to enter the English-language school system only if the "major part" of their previous schooling in Canada was in English. Parents whose children had received part of their education in English outside Quebec argued that the Minister's strict interpretation (i.e., that "major part" means more than 50 percent of either elementary or secondary schooling) violated Section 23(2)).

The Supreme Court of Canada held that the Minister's quantitative test was unconstitutional. The Court wrote that "major part" must be understood qualitatively. Decision makers must undertake a holistic, contextual assessment of the child's genuine educational experience, considering time spent in each language, the stage of education at which the choice of language of instruction was made, program availability, and learning needs. This qualitative assessment determines whether there is evidence of a real commitment to minority-language schooling.

In the result, the Court read down Subsection 73(2) to mean "a significant part", which cured the defect in the Minister's interpretation of the provision.

***Solski (Tutor of) v. Quebec (Attorney General)*, 2005 SCC 14, [2005] 1 SCR 201**

The judgment was delivered by the Court –

…

24 The main question in this appeal is to decide the proper interpretation of s. 23(2) of the *Canadian Charter* and whether the *CFL*'s "major part" threshold is consistent with this constitutional requirement. …

…

25 Section 73(2) of the *CFL* establishes the eligibility requirements for a child to receive instruction in English in Quebec. It provides:

> **73.** The following children, at the request of one of their parents, may receive instruction in English: . . .
>
> (2) a child whose father or mother is a Canadian citizen and who has received or is receiving elementary or secondary instruction in English in Canada, and the brothers and sisters of that child, provided that that instruction constitutes the major part of the elementary or secondary instruction received by the child in Canada.

The Minister has interpreted the "major part" requirement in a disjunctive and strictly mathematical manner. The Minister will consider either the child's primary school attendance or the child's secondary school attendance, but will not consider them cumulatively (appellant's record, vol. III, at pp. 400-435). Further, the Minister will determine eligibility solely on the basis of the number of months spent in each language….

…

27 We cannot accept that the strict mathematical approach is consistent with s. 23(2) of the *Canadian Charter*. Section 23(2) is designed to identify a single category of beneficiaries. It must receive a broad interpretation consistent with the constitutional objective of protecting minority language communities.

28 Based on the proper interpretation of s. 23(2), which we will set out in detail below, we are of the view that in order to comply with this constitutional provision, the *CFL*'s "major part" requirement must involve a qualitative rather than a strict quantitative assessment of the child's educational experience through which it is determined if a significant part, though not necessarily the majority, of his or her instruction, considered cumulatively, was in the minority language. Indeed, the past and present educational experience of the child is the best indicator of genuine commitment to a minority language education. The focus of the assessment is both subjective, in that it is necessary to examine all of the circumstances of the child, and objective, in that the Minister, the ATQ and the courts must determine whether the admission

of a particular child is, in light of his or her personal circumstances and educational experience, past and present, consistent with the general purposes of s. 23(2) and, in particular, the need to protect, preserve and reinforce the minority language community by granting individual rights to a specific category of beneficiaries.

…

(1) Scope of Section 23(2)

38 A number of factors, including those mentioned above (i.e., the time spent in each program, at what stage of education the choice of language of instruction was made, what programs are or were available, and whether learning disabilities or other difficulties exist), may be considered in the course of a qualitative assessment of a child's overall educational experience in order to determine if it is sufficient to meet the requirements of s. 23(2).

(2) Factors to Consider

(a) *How Much Time Was Spent in Each Program?*

39 Although it is not a conclusive factor, it is nonetheless important to consider the time a child spent in the minority language program, cumulatively, at the primary and secondary levels, where relevant, when determining if that child's total educational experience is sufficient to meet the requirements of s. 23(2). This factor is relevant because the more time a child spends in such a program, the easier it is to find a true intention to adopt that language of instruction over the other; this factor is a marker of an existing affiliation with the official minority language community. It cannot be enough, in light of the objectives of s. 23, for a child to be registered for a few weeks or a few months in a given program to conclude that he or she qualifies for admission, with his or her siblings, in the minority language programs of Quebec.

40 Since the time spent by a child in the minority language education program may evidence a more significant connection with the language of the minority than that of the majority, the purpose of s. 23(2) to provide continuity of minority language education rights, to accommodate mobility and to ensure family unity is engaged. The question of whether there is a sufficient connection with the language of the minority must therefore be viewed from both a subjective and an objective perspective. Subjectively, do the circumstances show an intention to adopt the minority language as the language of instruction? Objectively, do the educational experiences and choices to date support such a connection?

41 That being said, it is important to remember that s. 23(2) of the *Canadian Charter* does not specify a minimum amount of time a child must spend in a minority language education program before his or her educational experience can qualify under s. 23(2), nor does it require that the time spent in the minority language education program be greater than the time spent in the majority language education program. Thus, this factor must not be applied in a strict, mathematical matter. Nor should it be considered in isolation. Rather, the time spent in each program must be considered in concert with the other factors discussed below and always in light of the purposes of s. 23(2).

(b) *At What Stage of Education Was the Choice of Language of Instruction Made?*

42 Another factor that may be relevant in determining whether a child's educational experience is sufficient to meet the requirements of s. 23(2) will be the stage of education at which the choice of language of instruction was made. It may be important to consider what education came first. In some cases the initial choice of language will be a better indicator of intention to permanently adopt one language rather than the other; in other cases it will not. The reasons behind any change may be revealing. Choosing the minority language as one enters secondary school might also evidence a stronger, more informed commitment to that language than if the choice was made during the early, primary years of schooling, given the more stringent academic demands associated with secondary education, as well as its impact on post-secondary education opportunities. As stated above, once a commitment to instruction in the minority language is shown on the facts of the case, the purpose of s. 23(2) to provide continuity of minority language education rights, to accommodate mobility and to ensure family unity is engaged.

(c) *What Programs Are or Were Available?*

43 In determining whether a child's education experience is sufficient to meet the requirements of s. 23(2), it is also important to consider the past and present availability of minority language education programs. For example, if a child completes grade 1 in the minority language but then spends the next three school years in an area where minority language is unavailable, it is clear that he or she has not received the "major part" of his or her education to date in the minority language under the restrictive interpretation of s. 73 of the *CFL*. However, under a purposive interpretation of s. 23(2) of the *Canadian Charter*, the time spent in the majority language educational system, when a minority language school was unavailable, ought not to be considered as indicative of a choice to adopt the majority language as the child's language of instruction. One aspect of the purpose of s. 23(2) is to accommodate mobility. This purpose would be frustrated and parents and their children, as well as the minority language community as a whole, would be unjustly penalized if children were barred from continuing with instruction in the minority language once they moved to an area in which it was available again simply because they temporarily lived in an area in which it was unavailable. There again it is obvious that the situation of students moving to Quebec will be unique, the availability of instruction in English in the territories and other provinces being unquestioned. As mentioned earlier, the geographical context is always important.

44 It is also important to consider the availability of minority language education programs from a socio-cultural perspective and with respect to the circumstances of each child. When considering the situation in a province other than Quebec, one must remember that a child could have been sent to a majority language school by assimilated parents who then, in the latter stages of the child's educational experience, have changed their minds and sent the child to a minority language school in order to help the child reintegrate the minority language community and adopt its culture. It may be that the choice to enrol the child in a minority language education program, even though the program may have been available throughout the child's educational experience, did not become a viable choice until the child's assimilated parents decided to help their child reforge a connection with the minority language community and culture. In this context, the remedial purpose of s. 23(2) is engaged, and, as stated above, this right must be interpreted so as to facilitate the reintegration of children who have been isolated from the cultural community the minority school is designed to protect and develop. In these circumstances, it would be beneficial and in line with the purpose of s. 23(2) for the siblings of this child to receive minority language education. All this is to emphasize that the application of s. 23 must take into account the very real differences between the situation of the minority language community in Quebec and the minority language communities in the territories and other provinces. Therefore, while certain educational experiences may not qualify for minority language education under the "major part" requirement, defined qualitatively, in s. 73 of the *CFL*, this does not mean that they could not qualify under other provincial minority language education legislative schemes, which are necessarily responsive to their own province's unique historical and social context.

(d) *Do Learning Disabilities or Other Difficulties Exist?*

45 Another relevant factor in some circumstances will be whether the child is having difficulty learning in one language as compared to the other. For example, if a child completes grades 1, 2 and 3 in the minority language and then switches to the majority language for grades 4, 5 and 6 and experiences learning difficulties in that language, it would be unacceptably punitive to force that child to continue in

the majority language, especially when it may be that the child has made a more significant connection with the minority language community, given the fact that he or she finds that instruction in that language is more conducive to learning.

46 A "major part" requirement, defined qualitatively, i.e., as meaning a "significant part", as described in para. 28 is a valid qualifier for "*parcours scolaire*" or "educational experience". The "major part" requirement must make room for the nuances and subjectivity required to determine whether the admission of a particular child, considering his or her personal circumstances, is consistent with the objectives of s. 23 and the specific need to protect and reinforce the minority language community.

47 The purpose of the s. 23(2) criteria is to guarantee continuity of minority language education rights and mobility to children being educated in one of the official languages. If children are in a recognized education program regularly and legally, they will in most instances be able to continue their education in the same language. This is consistent with the wording of s. 23(2) and the purposes of protecting and preserving the minority-language community, as well as with the reality that children properly enrolled in minority-language schools are entitled to a continuous learning experience and should not be uprooted and sent to majority-language schools. Uprooting would not be in the interest of the minority language community or of the child. Nevertheless, a qualitative assessment of the situation to determine whether there is evidence of a genuine commitment to a minority language educational experience is warranted, with each province exercising its discretion in light of its particular circumstances, obligation to respect the objectives of s. 23, and educational policies.

48 The approach will be both subjective and objective. This does not imply an artificial "snapshot" approach. Provincial governments are entitled to verify that registration and overall attendance in the program, the past and present educational experience of the child, are consistent with participation in the class of beneficiaries defined in s. 23(2).

3.6 *Association des parents de l'école Rose des vents v. British Columbia (Education)*

In *Association des parents de l'école Rose-des-vents v. British Columbia (Education)*, 2015 SCC 21, [2015] 2 SCR 139, l'école élémentaire Rose-des-vents was the only publicly-funded French-language elementary school for students living west of the Main Street in Vancouver. The school was established in 2001. By 2011, 344 students were enrolled; however, the school only had a nominal capacity of 215 students and an operating capacity of 199 students. It was a small school, with narrow hallways and no coat hooks or lockers. The washrooms were inadequate, the library was small, and only three of the classrooms met the recommended size. Further, of the 344 students, 293 were transported by bus as they did not live within the one kilometer "walk limit". By contrast, the English-language schools in the area were much larger, with much better facilities, and most of the students lived within one kilometer of the school.

The appellants filed a petition against the Province and the Conseil scolaire francophone de la Colombie-Britannique. They alleged that the respondents had breached the parents' minority language education rights under Section 23 of the *Charter*.

The Supreme Court of Canada explained that Section 23 gives an official language minority the right to an education experience that is equivalent in quality to the experience provided to the majority.

The Court stated that the focus must be on substantive equivalence, not on formal equivalence. In other words, it is not enough that public spending per student is the same for the minority and the majority; the quality of the overall educational experience must be meaningfully similar to that of the experience provided to the majority. The Court held that substantive equivalence must be assessed from the perspective of a linguistic minority parent who has to choose between the minority and a majority language school. Courts must consider whether reasonable parents would be deterred from sending their children to a school of the official language minority because it is meaningfully inferior to an available majority language school.

The comparator group that will generally be appropriate for that assessment will be the neighbouring majority language schools that represent a realistic alternative for rights holders. The comparative exercise must be alive to the varied factors that reasonable parents use to assess equivalence. The exercise is contextual and holistic, accounting for not only physical facilities, but also quality of instruction, educational outcomes, extracurricular activities, and travel times, among other factors.

Issues of practicality or cost are not relevant to the inquiry into equivalence. Those issues may, however, be relevant at the breach justification and remedies stages of the analysis, under Sections 1 or 24, respectively.

In the result, the Supreme Court agreed with the petition judge that the disparity between the minority and majority language schools limited enrollment and contributed to assimilation.

***Association des parents de l'école Rose des vents v. British Columbia (Education)*,** 2015 SCC 21 (CanLII), **[2015] 2 SCR 139**

The judgment of the Court was delivered by Karakatsanis J. —

[25] Section 23 is a remedial right that differs from many other *Charter* rights. The provision is an important marker of Canada's commitment to bilingualism, and to the bicultural founding character of this country. It imposes a constitutional duty on the provinces and territories to provide minority language education to children of s. 23 rights holders where numbers warrant. This commitment sets Canada apart among nations, as Justice Vickers of the Supreme Court of British Columbia explained in *Assn. des Parents Francophones*:

> From its genesis, Canada brings to the world a unique history and culture of cooperation and tolerance. It is rooted in the commitment of French and English people, who had earlier been separated by geography, a history of divisive disputes, language and culture, to live together, to work together and to share the resources of a new nation. Section 23 restates a fundamental part of that commitment relating to language and culture and acknowledges the vision and faith of our nation's pioneers. Our distinct place in the world's family of nations is dependent on governments honouring the commitment entered into more than two centuries ago which has been reaffirmed by this generation of Canadians through the enactment of particular provisions of the *Canadian Charter of Rights and Freedoms*. [para 24]

[26] Section 23 is concerned with the preservation of culture as well as language. As the Royal Commission on Bilingualism and Biculturalism noted, "[l]anguage and culture are not synonymous, but the vitality of the language is a necessary condition for the complete preservation of a culture" (*Report of the Royal Commission on Bilingualism and Biculturalism*, Book II, *Education* (1968), at p. 8). As this Court noted in *Mahe v. Alberta*, 1990 CanLII 133 (SCC), [1990] 1 SCR 342, at p. 362, "any broad guarantee of language rights, especially in the context of education, cannot be separated from a concern for the culture associated with the language. Language is more than a mere means of communication, it is part and parcel of the identity and culture of the people speaking it": see also M. Bastarache, "Education Rights of Provincial Official Language Minorities (Section 23)", in G.-A. Beaudoin and E. Ratushny, eds., *The Canadian Charter of Rights and Freedoms* (2nd ed. 1989), 687, at p. 695.

…

[28] One distinctive feature of s. 23 is that it is particularly vulnerable to government inaction or delay. Delay in implementing this entitlement or in addressing s. 23 violations can result in assimilation and can undermine access to the right itself….

(2) "Numbers Warrant" and the "Sliding Scale" of Section 23 Rights

[29] The s. 23 right to equivalent educational facilities for minority language rights holders where numbers warrant provides a means to counteract the assimilation that occurs when the children of rights holders attend majority language schools. In *Mahe*, this Court explained that s. 23 guaranteed a "sliding scale" of minority language education rights (p. 366). At the upper limit of the sliding scale, numbers will warrant the provision of the highest level of services to the minority language community. In such cases, rights holders are entitled to full educational facilities that are distinct from, and equivalent to, those found in the schools of the majority language group (*Reference re Public Schools Act (Man.), s. 79(3), (4) and (7)*, 1993 CanLII 119 (SCC), [1993] 1 SCR 839, at pp. 854-55; *Mahe*, at p. 378). These facilities must be accessible and, where possible, located in the community where the children reside (*Arsenault-Cameron*, at para. 56). The upper threshold of the sliding scale can include separate minority language school boards (*Mahe*, at p. 374).

…

(3) What Is the Test for Equivalence?

…

[33] The focus in giving effect to s. 23 rights, then, should be on substantive equivalence, not on *per capita* costs and other markers of formal equivalence. In the present case, there is evidence that the CSF receives a 15% premium in its operational funding from the Province, as compared to other school boards in the province. Given economies of scale, higher *per capita* costs for a minority language board or school are not unexpected (*Mahe*, at p. 378). However, there is no particular *per capita* number that will satisfy the requirements of s. 23 in any given instance. Rather, what is paramount is that the educational experience of the children of s. 23 rights holders at the upper end of the sliding scale be of meaningfully similar quality to the educational experience of majority language students. As this Court noted in *Arsenault-Cameron*, "[s]ection 23 is premised on the fact that substantive equality requires that official language minorities be treated differently, if necessary, according to their particular circumstances and needs, in order to provide them with a standard of education equivalent to that of the official language majority" (para. 31).

(a) *What Analytical Perspective Is Relevant in Assessing Equivalence?*

…

[34] The first step in any s. 23 analysis is to determine the entitlement of the parents, who are the holders of the right. This requires assessing what level of service the number of rights holders in a given community warrants. In the present case, a court has previously determined, and the parties accept, that numbers warrant the highest level of French-language educational instruction and facilities, which necessarily includes an element of management and control for the rights holders. This being established, the issue in this case is how to determine whether the Parents have, in fact, been provided the substantive equivalence to which they are entitled.

(b) *What Geographic Scope Is Relevant for the Assessment of Equivalence?*

…

[37] If rights holders consider which school their child should attend, or whether to withdraw their child from a minority language school, they will look to nearby majority language schools as alternatives. It follows that the comparator group that will generally be appropriate for the assessment of substantive equivalence of a minority language school will be the neighbouring majority language schools that represent a realistic alternative for rights holders. To compare the facilities of a minority language school to facilities outside of the area would not realistically capture the choice available to rights holders, who cannot send their children to a school located across the province. Of course, the precise geographic scope of the comparator group, and the relative usefulness of this sort of comparison, will vary with the circumstances (*Arsenault-Cameron*, at para. 57).

(c) *What Factors Are to Be Compared in Assessing Equivalence?*

…

[39] Thus, the comparative exercise is contextual and holistic, accounting for not only physical facilities, but also quality of instruction, educational outcomes, extracurricular activities, and travel times, to name a few factors. Such an approach is similar to the way parents make decisions regarding their children's education. Of course, the extent to which any given factor will represent a live issue in assessing equivalence will be dictated by the circumstances of each case. The relevant factors are considered together in assessing whether the overall educational experience is inferior in a way that could discourage rights holders from enrolling their children in a minority language school.

…

(4) Is There a Role for Costs and Practicalities Within the Equivalence Test?

…

[50] To summarize, issues of costs and practicalities are considered in determining where a minority language community falls on the sliding scale of rights guaranteed under s. 23. Where the community is entitled to the highest level of educational services, on an equal footing with the majority language community, costs and practicalities will not be relevant to a determination of whether the rights holders are receiving the services to which they are entitled. It may be, however, that costs and practicalities will be relevant in attempts to justify a breach of s. 23, and in attempts to fashion an appropriate and just remedy for a breach.

3.7 *Conseil scolaire francophone de la Colombie Britannique v. British Columbia*

In *Conseil scolaire francophone de la Colombie-Britannique v. British Columbia*, 2020 SCC 13, [2020] 1 SCR 678, the Conseil scolaire francophone de la Colombie-Britannique brought a claim against the province. They argued, *inter alia*, that inadequate capital funding and small, scattered facilities breached Section 23.

The Supreme Court of Canada reversed the decisions below on the basis that they adopted an inordinately narrow interpretation of section 23 and its role in the Canadian constitutional order.

In its decision, the Supreme Court refined the framework in *Mahe*, where the Court explained that "situating a given number of students on the sliding scale requires that the analysis focus on (1) the services appropriate, in pedagogical terms, for the number of students involved; and (2) the cost of the contemplated services" (*Conseil scolaire francophone de la Colombie-Britannique v. British Columbia*, 2020 SCC 13, at para. 52).

The Supreme Court explained that to determine where the situation falls on the sliding scale, the number of students who will avail themselves of the minority language education must first be established. Second, courts must consider whether the proposed school is appropriate considering pedagogy and costs. A comparative approach is to be used, asking whether the number of minority language

students for a proposed school is comparable to the number of students at particular majority language schools in the province. A majority language school of comparable size to a proposed minority language school will yield a presumption that the minority language community is entitled to a homogenous school. The burden of proof is on the claimants at these two stages.

In exceptional cases, the province can rebut a presumptive entitlement to a homogenous school by showing on a balance of probabilities either that the majority language schools used as comparators are not appropriate for that purpose or that the school proposed by the minority is not appropriate from the standpoint of pedagogy or cost.

If the number of students is comparable, and the presumption has not been rebutted, the number is at the high end of the sliding scale and the minority is therefore entitled to have its children receive instruction in a homogeneous school. If that is not the case, other options exist, such as separate administrators, separate report cards, offerings of courses in the minority language, and even giving control over a certain portion of a school. In such a situation, the court must show deference to the level of services proposed by the minority language school board.

The Supreme Court also took the opportunity to address the unresolved issue of whether the approach developed in *Rose-des-vents* regarding the quality of education was applicable in the context of small minority schools whose size is not comparable to that of the majority language schools.

The Supreme Court explained that children of Section 23 rights holders must receive an educational experience that is substantively equivalent to the experience provided to the majority, regardless of the size of the school or program in question. The substantive equivalence test applies everywhere on the sliding scale. However, where a minority language school is not comparable in size to nearby majority language schools, a judge must consider whether reasonable parents who are aware of the inherent characteristics of small schools would be deterred from sending their children to a school of the official language minority because the educational experience there is meaningfully inferior to the experience at available majority language schools.

In the result, the Court ordered the province to provide new or improved schools in several communities and awarded *Charter* damages for under-funding of bus transportation.

***Conseil scolaire francophone de la Colombie Britannique v. British Columbia*, 2020 SCC 13, [2020] 1 SCR 678**

Judgment of the majority delivered by The Chief Justice —

V. Analysis

A. *What Is the Approach to Take in Order to Situate a Given Number of Students on the Sliding Scale?*

[51] This appeal is an opportunity for the Court to clarify the approach to be taken in order to situate a given number of students on the sliding scale. The sliding scale, which serves to determine the level of services to which an official language minority is entitled, is used to decide whether the minority is entitled to a homogeneous school, to educational facilities shared with the majority or to another appropriate solution. It is also used to decide whether the minority is entitled to a separate school board. This Court has stated the principles the courts must apply in this exercise, but has never explained the approach that should be taken.

[52] In *Mahe*, this Court explained that situating a given number of students on the sliding scale requires that the analysis focus on "(1) the services appropriate, in pedagogical terms, for the number of students involved; and (2) the cost of the contemplated services" (p. 384). Obviously, however, given the remedial nature of s. 23, pedagogical requirements will have more weight than cost (p. 385). *Mahe* did not include an exhaustive definition of these two factors, but their scope can be established by reviewing the case law and terminology.

[53] To begin, the word "pedagogy" is defined as "the theory or principles of education; a method of teaching based on such a theory" (*Oxford English Dictionary* (online)). Similarly, the French word "*pédagogie*" is defined as [translation] "the whole of the methods used to educate children and adolescents" (*Le Dictionnaire Larousse* (online)). In *Mahe*, the Court, per Dickson C.J., stressed "that a threshold number of students is required before certain programmes or facilities can operate effectively" (p. 385). The Court has also referred, in a case in which it was asked to rule on the pedagogical needs factor, to a proposed school's ability to "mee[t] all curriculum requirements" (*Arsenault-Cameron*, at para. 39).

[54] Both the definition of "pedagogy" and the concerns expressed by the Court in the past show that this factor relates to the pedagogical viability of the official language minority's proposal. This factor is concerned with answering the following question: In light of the number of students at issue, will the level of services proposed by the minority make it possible to meet all curriculum requirements, that is, those related to the knowledge and skills the students must acquire while in school?

[55] The second factor, cost, is a particular constraint on the application of s. 23, because "it is financially impractical to accord to every group of minority language students, no matter how small, the same services which a large group of s. 23 students are accorded" (*Mahe*, at p. 385). Financial considerations comprise the cost of building a new school or launching a program, and the associated operating costs. The cost factor takes into account the fact that public funds are limited and must therefore be used wisely. Once the costs associated with the contemplated project are established, the court must ask, in accordance with the *Mahe* framework, whether they are justified in light of the number of students in question. It is well established that cost is a less important factor than the official language minority's pedagogical needs.

…

[57] To take the pedagogical and cost considerations discussed in *Mahe* into account, I propose that the following approach be taken in order to situate a given number of students on the sliding scale. This approach is designed to recognize the remedial nature of s. 23 "so as to give effect to the equal partnership of Canada's two official language groups in the context of education" (*Rose-des-vents*, at para. 27 (emphasis added), citing *Arsenault-Cameron*, at para. 26, *Mahe*, at p. 364). It is based on the premise that a homogeneous school, that is, a separate facility under the control of the official language minority, is warranted where such a school is available to a comparable number of majority language students.

(1) First Step: Establishing the Number of Students in Question

[58] The first step in situating the number of students in question on the sliding scale is to determine how many students will eventually avail themselves of the contemplated service. This is the starting point for the "numbers warrant" analysis. The burden of proof regarding the number of students who will eventually avail themselves of the service is on the claimants from the official language minority. To discharge it, the claimants must adduce evidence that would enable the court to rule on this issue. That evidence might include expert testimony, various statistical tools such as the census, and statistical models that take into account the demographics of the community in question, its geographical location and any other factor that might have an impact on the number of students.

[59] Long-term projections are necessary. As this Court noted in *Mahe*, "the relevant figure for s. 23 purposes is the number of persons who will eventually take advantage of the contemplated programme or facility" (p. 384). An approach based on a short-term projection of enrolment rather than on the number of students who will eventually avail themselves of the service would be contrary to s. 23 and to this

Court's case law. The effect of such an approach, which might be said to be "temporal" in nature, would be to place on the minority the burden of asking the government for enhancements to the services provided to it each time the number of students reached a new level on the sliding scale and, if necessary, going to court to assert its rights in this regard. That would not be a desirable result. An approach focused on enrolment over the long term might limit the frequency with which such steps need to be taken.

[60] The number of students who will eventually avail themselves of the service lies between the known demand and the total number of children of s. 23 rights holders (*Mahe*, at p. 384). In my view, it is not necessary in this case to fix a precise number of years as the length of a long-term projection. On the one hand, such projections must take into account the fact that plans for school construction or expansion projects are prepared on a long-term basis. On the other hand, the projections must not relate to a future so remote that they do not allow a reliable number to be obtained.

…

(2) Second Step: Taking a Comparative Approach in Order to Determine Whether the School Contemplated by the Minority Is Appropriate from the Standpoint of Pedagogy and Cost

[61] At the second step, the court must determine whether the school or program proposed by the minority is appropriate from the standpoint of pedagogy and cost for the number of students in question. I favour a simple approach, that is, a comparative approach, which also has the advantage of limiting the need to resort to litigation.

[65] … a province-wide comparison is required.

…

[69] I thus find that the existence of majority language schools that serve a given number of students, regardless of where they are located in the province, supports a presumption that it is appropriate from the standpoint of pedagogy and cost to create a comparably sized school for the minority. The province can, however, rebut this presumption by showing on a balance of probabilities either that the majority language schools used as comparators are not appropriate for that purpose or that the school proposed by the minority is not appropriate from the standpoint of pedagogy or cost. I also wish to be clear that the claimants, who are responsible for identifying comparator schools, must endeavour to submit to the court a reasonable number of schools that, to the best of their knowledge, are appropriate comparators in light of the principles set out in these reasons. This will favour judicial economy by ensuring, for example, that courts and parties do not have to analyze hundreds of schools in detail.

…

[75] There are two possible ways for the province to rebut this presumption. It has the choice of arguing (1) that the *comparator schools* identified by the claimants are not appropriate comparators from the standpoint of pedagogy or cost, or (2) that *the school contemplated by the minority* does not meet the requirements from the standpoint of pedagogy or cost. I will explain these different possibilities.

[76] First, the province can show that the *comparator school* is not an appropriate comparator. To do so, it might establish that the school in question does not meet the requirements of the provincial curriculum. Here are some examples. A school that serves a student population with very particular needs — disabled students or students in a specialized arts program — is one in which the learning outcomes might justify its having a small number of students. Such schools have very particular educational plans, which explains their departure from the province's usual standards.

…

[80] Second, the province can show that *the school contemplated by the minority* is not appropriate. To do so, it might establish that the service in question would not suffice to achieve the requirements of the provincial curriculum. This can be shown by means of expert testimony or any other evidence the province considers relevant. If, for example, the province wants to show that there are too few students from the official language minority and that this would prevent the socialization objectives of the provincial curriculum from being achieved, it must explain precisely what the objectives of the curriculum are and how the number of students in question would not suffice to achieve them. The province is in the best position to do this, as the education ministry's experts are the people who develop the curriculum's standards. As well, it is the provincial education ministry that issues diplomas and ensures that schools meet academic standards. It is therefore entirely appropriate that the ministry be responsible for showing how, even if the contemplated service would be provided to a number of students comparable to the numbers in majority language schools, it would not suffice to satisfy the province's academic standards.

…

(3) Third Step: Determining the Level of Services That Must Be Provided

[84] At the third step, the level of services to be provided to the official language minority must be determined. If the court has found at the second step that the number of students is comparable and that the presumption has not been rebutted, that number is at the high end of the sliding scale and the minority is therefore entitled to have its children receive instruction in a homogeneous school

[85] If, on the other hand, the court has found at the second step that the number of minority language students is not comparable, the number then falls below the high end and a homogeneous school is therefore not required. In such circumstances, there is a range of services that can be provided to the minority. These services vary from the provision of certain courses in the minority language to control over a portion of a school shared with the majority. These different levels of services represent a variety of possibilities.

…

[87] At the lower levels of the sliding scale, it is obviously not possible to use the comparative approach I set out above in order to determine what is appropriate from the standpoint of pedagogy and cost. I reiterate that at this stage, the court will have found that the number of minority language students in question is not comparable to the numbers at majority language schools, even at the smallest of those schools. Given that the parties have not proposed a specific approach in this regard and that this case does not turn on such an approach, it would be premature to rule on this issue.

[88] I will simply say that, in such a context, governments must be deferential to the proposals made by the school board, and their decisions must be guided by pedagogical and financial considerations, as defined above. However, the cost issue will rarely be decisive, as the sharing of facilities obviously produces economies of scale. The focus must be on whether the contemplated service is able to meet the pedagogical requirements established by the province in a setting that is respectful of the minority's language and culture. This last factor, the need "to consider the value of linguistic minority education as part of the determination of the services appropriate for the number of students" (*Arsenault-Cameron*, at para. 38), is particularly important in cases in which the number of students in question falls in the lower levels of the sliding scale. Where a number of students falls at the high end of the scale and therefore warrants a separate facility, it goes without saying that the educational setting will be respectful of the minority's language and culture.

…

B. *Does the Test Used to Assess the Quality of Instruction Provided to Official Language Minorities Vary With the Number of Minority Language Students?*

[104] Section 23 gives an official language minority the right to an educational experience that is equivalent in quality to the experience provided to the majority. In *Rose-des-vents*, this Court discussed the proper approach for determining what constitutes instruction that is equivalent in quality in a case in which the number of minority language students was comparable to the numbers of students in local majority language schools.

…

[116] In short, the *Rose-des-vents* approach continues to apply where the number of students at a minority language school is comparable to the numbers of students attending nearby majority language schools. Where a minority language school is not comparable in size to nearby majority language schools, a judge must consider whether reasonable parents who are *aware of the inherent characteristics of small schools* would be deterred from sending their children to a school of the official language minority because the educational experience there is meaningfully inferior to the experience at available majority language schools.

3.8 Commission scolaire francophone des Territoires du Nord-Ouest v. Northwest Territories (Education, Culture and Employment), 2023 SCC 31

In *Commission scolaire francophone des Territoires du Nord Ouest v. Northwest Territories (Education, Culture and Employment),* 2023 SCC 31, five parents who did not meet the requirements under Section 23 applied to the Minister of Education of the Northwest Territories (the "Minister") for their children's admission to a French first language education program.

In each case, the Commission scolaire francophone des Territoires du Nord-Ouest recommended admission because it would promote the development of the Francophone community of the Northwest Territories. Despite that, the Minister denied each of the applications for admission on the ground that the non-rights holder parents did not meet the conditions established by the ministerial directive on enrolment in French first language programs, which created categories of eligible non-rights holders.

On judicial review, the Minister's decisions were quashed because they did not reflect a proportionate balancing of the protections conferred by section 23. That decision was reversed on appeal.

On further appeal, the Supreme Court of Canada upheld the reviewing judge's ruling. In doing so, the Supreme Court provided authoritative guidance on applying the *Doré*/*Loyola* framework when administrative discretion affects minority-language education.

The Supreme Court explained that even if a discretionary decision does not infringe a *Charter* right granted by Section 23, that provision still has to be considered by administrative decision-makers if the *Charter* values underlying the provision are engaged by the discretionary decision.

The Minister failed to persuade the Court that the Minister identified the relevant Section 23 values and proportionately balanced them against statutory objectives. The decisions ignored the benefits of bolstering the Francophone community, misstated cost impacts, discounted the school board's expertise, and improperly assessed how the admission of the children would affect the consistency and fairness of the admissions process in the future. Such deficiencies rendered the decisions unreasonable.

In its decision, the Court also reaffirmed that Section 23 values are engaged even where the applicants are non-rights holders, because broadened enrollment can help preserve and develop minority language communities.

***Commission scolaire francophone des Territoires du Nord-Ouest v. Northwest Territories (Education, Culture and Employment)*, 2023 SCC 31**

The judgment of the Court was delivered by Côté J. —

[62] Here is where the essence of the parties' disagreement lies: the appellants submit that the impugned decisions engage the values underlying s. 23 of the *Charter*, whereas the respondent takes the opposite view. The respondent maintains that the protections afforded by s. 23 are not engaged because the appellant parents are not rights holders under this provision; as non-rights holders, they are unable to show that the right guaranteed by s. 23 was infringed by the Minister's decisions. In other words, the respondent argues that the *Doré* framework applies only in cases where an administrative decision *directly* infringes a *right* (R.F., at para. 57). According to the respondent, *Charter* values serve only to interpret the scope of the rights that reflect them (*Loyola*, at paras. 4 and 36).

[63] I note that it is not in dispute that no infringement of s. 23 can be established with respect to the appellant parents, as non-rights holders. The CSFTNO does, of course, represent the interests of rights holders and plays a fundamental role in managing and controlling minority language schools and in expressing their special needs (*Conseil scolaire francophone de la Colombie-Britannique*, at para. 86; *Arsenault-Cameron*, at para. 44; *Mahe*, at pp. 373-80). However, it is not necessary to determine whether the CSFTNO, as a representative of rights holders, might itself enjoy the benefit of the s. 23 rights for the purposes of this case.

[64] Indeed, it has consistently been held that the *Doré* framework applies not only where an administrative decision *directly* infringes *Charter* rights but also in cases where it simply engages a value underlying one or more *Charter* rights, without limiting these rights (*Doré*, at paras. 35 et seq.; *Loyola*, at para. 4; *Trinity Western University*, at para. 57).

[65] This is the case because administrative decision makers have an obligation to consider the values relevant to the exercise of their discretion, in addition to respecting *Charter* rights. There can be no doubt about this, because "[t]he Constitution — both written and unwritten — dictates the limits of all state action" (*Vavilov*, at para. 56). As L'Heureux-Dubé J. clearly stated in *Baker v. Canada (Minister of Citizenship and Immigration)*, 1999 CanLII 699 (SCC), [1999] 2 SCR 817, a discretionary decision, to be reasonable, must be made in accordance with the "fundamental values of Canadian society" as reflected in the *Charter* (para. 56). Relying on this statement, Abella J. held in *Doré* that discretionary decisions must "*always*" take *Charter* values into consideration (para. 35 (emphasis in original))

[66] An administrative decision maker must consider the *relevant* values embodied in the *Charter*, which act as constraints on the exercise of the powers delegated to the decision maker. I refer in this regard to the considerations identified by this Court in *Vavilov*: ". . . a decision, to be reasonable, must be justified in relation to the constellation of law and facts that are relevant to the decision . . ." (para. 105). In practice, it will often be evident that a value must be considered, whether because of the nature of the governing statutory scheme (at para. 108), because the parties raised the value before the administrative decision maker (at paras. 127-28), or because of the link between the value and the matter under consideration (P. Daly, "The *Doré* Duty: Fundamental Rights in Public Administration" (2023), 101 *Can. Bar Rev.* 297, at p. 309). For example, it is obvious that the development of policies and the making of decisions that are likely to have an impact on a minority language educational environment require consideration of the values underlying s. 23 of the *Charter* (p. 309). A decision cannot be unreasonable because the decision maker failed to consider a *Charter* value that was not relevant for the purposes of its decision. However, if the decision maker takes a relevant value into account in its decision while opting to prioritize another objective, it must be concluded that the decision engages the *Charter*.

[67] Once the reviewing court has determined that the impugned administrative decision infringes *Charter* rights or limits the values underlying them, the court must, under the approach laid down in *Doré*, determine whether the decision is reasonable through an analysis of its proportionality. This involves assessing whether the exercise of discretion reflects a "proportionate balancing" of *Charter* rights and the values underlying them, on the one hand, with the statutory objectives in respect of which the discretion was granted, on the other (para. 57; *Loyola*, at paras. 37 and 39; *Trinity Western University*, at para. 58).

[68] The focus of judicial review is "on the decision actually made by the decision maker, including both the decision maker's reasoning process and the outcome" (*Vavilov*, at para. 83). As is the case for any other decision, the context constrains "what will be reasonable for an administrative decision maker to decide" when it exercises its discretion in a manner that limits *Charter* protections (para. 89; *Loyola*, at para. 41; *Trinity Western University*, at para. 81). To be reasonable, a decision must reflect the fact that the decision maker considered the *Charter* values that were relevant to the exercise of its discretion (E. Fox-Decent and A. Pless, "The Charter and Administrative Law: Substantive Review", in C. M. Flood and P. Daly, eds., *Administrative Law in Context* (4th ed. 2022), 399, at p. 410). The decision must also show that the decision maker "meaningfully" (*Vavilov*, at para. 128) addressed the *Charter* protections to "reflect" the impact that its decision may have on the concerned group or individual (para. 133).

[69] This means that when the decision maker gives precedence to the legislature's intention over *Charter* protections in order to achieve the statutory objectives, it must do so in a manner that is "proportionate to the resulting limitation on the *Charter* right" (*Trinity Western University*, at para. 82). A decision that has a "disproportionate impact" on *Charter* protections can in no way show that the decision maker meaningfully considered these protections or that its reasoning reflects the significant impact that the decision may have (para. 80). Such a decision is therefore unreasonable.

…

[78] Here, there is a clear link between s. 23 of the *Charter* and the Minister's decisions, because the decisions were likely to have an impact on a minority language educational environment….

[79] Section 23(3)(a) of the *Charter* guarantees certain categories of citizens the right to instruction in the minority official language where "the number of children of citizens who have such a right is sufficient". This Court has interpreted this constitutional provision as having three purposes: the right is "at once preventive, remedial and unifying" in nature (*Conseil scolaire francophone de la Colombie-Britannique*, at para. 15). As the Court stated about the provision in *Conseil scolaire francophone de la Colombie-Britannique*, "[i]t is intended not only to prevent the erosion of official language communities, but also to redress past injustices and promote the development of those communities" (para. 15).

[80] In practical terms, this means that the preservation and development of minority language communities are among the values underlying s. 23. Protection of the right to instruction in the minority official language, explicitly entrenched in the Constitution, is a reflection of these values, insofar as education is a *means* of realizing the societal ideal that they embody. These values require preserving and developing the vitality not only of the minority language, but also of the minority culture…..

[81] The admission of children of parents who are not rights holders under s. 23 of the *Charter* can have an impact on the preservation and development of minority language communities. In *Gosselin*, this Court pointed out that minority language schools must not become "centres of assimilation" by allowing the presence of children from the majority language community to end up swamping the children from the minority language community (para. 31). A few years later, in *Yukon Francophone School Board, Education Area #23 v. Yukon (Attorney General)*, 2015 SCC 25, [2015] 2 SCR 282, this Court noted that, although the Yukon Francophone School Board had no authority to set admission criteria for children of non-rights holders because such authority had not been delegated to it, "nothing stops the Board from arguing that the Yukon's approach to admissions prevents the realization of s. 23's purpose" (para. 74).

…

[83] Thus, the decisions rendered by provincial and territorial governments regarding the admission of children of non-rights holder parents to minority language schools, even when they do not directly infringe the right guaranteed by s. 23, can nevertheless have a significant impact on the preservation and development of minority language communities. It follows that these values are always relevant when the government exercises such a discretion and that they must therefore be taken into account. For the purposes of this appeal, this means that the Minister was required to consider the values of preservation and development of minority language communities in exercising her discretion to decide whether to admit children of non-rights holder parents to the schools of the Francophone minority in the Northwest Territories.

Chapter 26: Enforcement of Rights

By Sonia Lawrence

"we are endowed with rights' slips off the legal tongue … 'we are endowed with remedies' has a more prosaic ring…"[105]

This Chapter considers the remedial provisions of the Constitution and the development of Canadian jurisprudence in the area of Charter remedies. Despite the former Chief Justice's recognition that remedies might be less exciting than rights,[106] this Chapter assumes a keen interest in remedies and a certain recognition that "we should look at rights and remedies as part of a single package".[107] As Kent Roach has written, "Rights without effective remedies are not just useless: they tell a false and legitimating story about the state of the world"[108] and so "any study of the Charter that does not include remedies will be radically incomplete"[109]. Understanding the right requires understanding the scope for remedy.[110]

1 Introduction

1.1 Remedies and Standing

1.1.1 *R. v. Big M. Drug Mart Ltd*, [1985] CanLII 69

39. Any accused, whether corporate or individual, may defend a criminal charge by arguing that the law under which the charge is brought is constitutionally invalid. Big M is urging that the law under which it has been charged is inconsistent with s. 2(a) of the Charter and by reason of s. 52 of the Constitution Act, 1982 , it is of no force or effect. [emphasis added]

40. Whether a corporation can enjoy, or exercise freedom of religion is therefore irrelevant.

1.2 Relationship between Sections 24 and 52

Constitutional remedies are provided in the text of the Constitution via section 52 and section 24. Their interpretation and application raise fundamental questions about the relationship between the courts in their zone of institutional competence and the appropriate role of the legislatures in theirs.

Section 52(1) is the supremacy clause, and it indicates that all *laws* inconsistent with the Constitution of Canada will have no force or effect. Courts are clearly empowered by the text to determine the consistency or inconsistency of the constitution,

> 52.(1) The Constitution of Canada is the supreme law of Canada, and any law that is inconsistent with the provisions of the Constitution is, to the extent of the inconsistency, of no force or effect.

In contrast, section 24(1) applies only to the *Charter*, not the rest of the Constitution. This remedial section allows Courts to remedy breaches of the *Charter*.

> 24. (1) Anyone whose rights or freedoms, as guaranteed by this Charter, have been infringed or denied may apply to a court of competent jurisdiction to obtain such remedy as the court considers appropriate and just in the circumstances.
>
> (2) Where, in proceedings under section (1), a court concludes that evidence was obtained in a manner that infringed or denied any rights or freedoms guaranteed by this Charter, the evidence shall be excluded if it is established that, having regard to all circumstances, the admission of it in the proceedings would bring the administration of justice into disrepute.[111]

The differences between section 24(1) and section 52 of the Canadian Charter reflect their distinct functions and scopes. Section 52 applies to all laws that are inconsistent with the Constitution, and its focus is exclusively on laws—meaning it does not extend to actions or conduct. It considers the degree to which a law conflicts with the Charter, and if such inconsistency is found, the law is deemed "of no force and effect." This results in a remedy that applies to the law itself and can be pursued by anyone. Sections 52 and 24(1) are not mutually exclusive. The breadth of section 24(1) means that a court can offer both a section 52 remedy and a section 24(1) remedy in a particular case.

1.2.1 *R. v. Big M. Drug Mart Ltd*, [1985] CanLII 69

> 37. Section 24(1) sets out a remedy for individuals (whether real persons or artificial ones such as corporations) whose rights under the Charter have been infringed. It is not, however, the only recourse in the face of unconstitutional legislation. Where, as here, the challenge is based on the unconstitutionality of the legislation, recourse to s. 24 is unnecessary and the particular effect on the challenging party is irrelevant.
>
> 38. Section 52 sets out the fundamental principle of constitutional law that the Constitution is supreme. The undoubted corollary to be drawn from this principle is that no one can be convicted of an offence under an unconstitutional law. The respondent did not come to court voluntarily as an interested citizen asking for a prerogative declaration that a statute is unconstitutional. If it had been engaged in such "public interest litigation" it would have had to fulfill the status requirements laid down by this Court in the trilogy of "standing" cases (Thorson v. Attorney General of Canada, 1974 CanLII 6 (SCC), [1975] 1 SCR 138, Nova Scotia Board of Censors v. McNeil, 1975 CanLII 14 (SCC), [1976] 2 SCR 265, Minister of Justice of Canada v. Borowski, 1981 CanLII 34 (SCC), [1981] 2 SCR 575) but that was not the reason for its appearance in Court.

1.2.2 *R. v. Ferguson*, *2008 SCC 6 (CanLII),* [2008] 1 SCR 96

> (3) The Remedial Scheme of the Charter
>
> [48] As I noted at the outset, remedies for breaches of the Charter are governed by s. 24(1) of the Charter and s. 52(1) of the Constitution Act, 1982 .
>
> [49] When a law produces an unconstitutional effect, the usual remedy lies under s. 52(1), which provides that the law is of no force or effect to the extent that it is inconsistent with the Charter . A law may be inconsistent with the Charter either because of its purpose or its effect: R. v. Big M Drug Mart Ltd., 1985 CanLII 69 (SCC), [1985]1 SCR 295; R. v. Edwards Books and Art Ltd., 1986 CanLII 12 (SCC), [1986] 2 SCR 713. Section 52 does not create a personal remedy. A claimant who otherwise has standing can generally seek a declaration of invalidity under s. 52 on the grounds that a law has unconstitutional effects either in his own case or on third parties... .
>
> [50] Section 24(1), by contrast, is generally used as a remedy, not for unconstitutional laws, but for unconstitutional government acts committed under the authority of legal regimes which are accepted as fully constitutional... The acts of government agents acting under such regimes are not the necessary result or "effect" of the law, but of the government agent's applying a discretion conferred by the law in an unconstitutional manner. Section 52(1) is thus not applicable. The appropriate remedy lies under s. 24(1).
>
> [51] .... ss. 52(1) and 24(1) serve different remedial purposes. Section 52(1) provides a remedy for laws that violate Charter rights either in purpose or in effect. Section 24(1), by contrast, provides a remedy for government acts that violate Charter rights. It provides a personal remedy against unconstitutional government action and so, unlike s. 52(1), can be invoked only by a party alleging a violation of that party's own constitutional rights: Big M; R. v. Edwards, 1996 CanLII 255 (SCC), [1996] 1 SCR 128. ...
>
> [53] The jurisprudence of this Court allows a s. 24(1) remedy in connection with a s. 52(1) declaration of invalidity in unusual cases where additional s. 24(1) relief is necessary to provide the claimant with an effective remedy: R. v. Demers, [2004] 2 SCR 489, 2004 SCC 46. ....

1.2.3 Kent Roach, Dialogic remedies, International Journal of Constitutional Law, Volume 17, Issue 3, July 2019, Pages 860–883, https://doi.org/10.1093/icon/moz056

Roach argues that "[n]ew [remedial] models based on "dialogue" between courts and legislatures,….attempt to provide a role for courts in interpreting rights while allowing governments to engage in robust policymaking"

Students of remedy might find the following parts especially useful in setting the theoretical context for remedies as a zone of tension between the powers of courts and legislatures.

1. Introduction
2. The place of remedies in constitutional theory
3.6. The two-track approach applied to Canada's assisted dying case

1.2.4 Note: Interpretation as Charter Enforcement

R. v. Butler, 1992 CanLII 124 (SCC) illustrates the way that courts sometimes have to interpret complex pieces of legislation in order to begin the Charter analysis. In cases where the legislation is capable of a narrower, and more likely to be constitutional interpretation and a broader, more likely to violate the *Charter* interpretation, the court will choose the one which is constitutional at the outset, before embarking on the Charter analysis. This interpretive exercise occurs before the Charter analysis begins but is significant to the outcome of the Charter challenge. This approach is not remedial as such, but it is another tool the court can use to require constitutional compliance.

2 Remedies under section 52(1) of the *Constitution Act, 1982*

2.1 General principles of section 52 *Charter* Remedies

Although the text of section 52 could be read to mean that once once inconsistency with the Constitution is established, the law is of no force and effect at all. However, caselaw reveals otherwise. Depending on the specifics of the inconsistency between the Constitution and the law in question, courts have engaged in the following remedial actions under section 52:

1. **Declarations of invalidity**: A full declaration of invalidity applying to the challenged provision or the challenged Act. Words and phrases like "of no force and effect", nullified, and "struck down" represent this kind of declaration.
2. **Severance**: Partial declarations of invalidity through severing parts of a challenged statute where only a part of the statute is determined to be invalid. The invalid part is struck down (declared invalid) and severed (cut) from the rest of the statute.
3. **Reading in:** Adding words to statutes to make them compliant with the Constitutio
4. **Reading down:** Reading *down* sees a court limiting the reach of legislation by declaring it to be of no force and effect to a precisely defined extent. Reading down is an appropriate remedy when "the offending portion of a statute can be defined in a limited manner" (*Ontario (Attorney General) v. G,* 2020 SCC 38 para 113).

The following two techniques can be applied in addition to the ones above.

1. Courts have **temporarily suspended whole or partial declarations of invalidity,** delaying their coming into force, a technique which the text of section 52 does not appear to contemplate.
2. Even more controversially, courts have also discussed the idea that they could offer **constitutional exemptions** from otherwise valid legislation which might be unconstitutional in application to particular groups or individuals or in particular rare cases. As Peter Sankoff has written, "… very few courts have attempted to explain the legal basis upon which the exemption is ultimately granted. Vague reference is often made to s.24 of the *Charter* or s.52(1) of the *Constitution Act*, 1982, but too often details have been absent" (Sankoff, Peter, Constitutional Exemptions: Myth or Reality?. National Journal of Constitutional Law, Vol. 11, 2000,via SSRN *at 16).* Since it seems most likely that the exemptions offered in *Carter v. Canada (Attorney General),* 2016 SCC 4 (CanLII), are section 24(1) remedies, in this text they appear under that heading.

2.1.1 Ontario (Attorney General) v. G, 2020 SCC 38 (some citations omitted)

This Chapter offers two excerpts from this Ontario AG v. G. The excerpt offered here focuses on general principles of section 52 remedies. The next one, below, looks more closely at suspensions of declarations of invalidity.

> The judgment of Wagner C.J. and Abella, Moldaver, Karakatsanis, Martin and Kasirer JJ. was delivered byKarakatsanis J. —
>
> [82] As I shall explain, this Court's leading decision on remedies for laws that violate the Charter, *Schachter v. Canada*, 1992 CanLII 74 (SCC), [1992] 2 SCR 679, has provided helpful guidance on how to craft a responsive and effective remedy for unconstitutional laws for nearly three decades. But, in some respects, this Court's remedial jurisprudence has moved beyond *Schachter*. By employing and building on *Schachter*'s guidance in determining the form and breadth of declarations of invalidity, suspending the effect of those declarations, and exempting individuals from suspensions, this Court's remedial practice has come to coalesce around a group of core remedial principles. Recognizing those remedial principles and explicitly identifying approaches that strike the right balance between them will encourage greater consistency and transparency in remedial decision making.
>
> (1) Principled Remedial Discretion
>
> …
>
> [85] Section 52(1) of the Constitution Act, 1982, provides in absolute terms that laws inconsistent with the Constitution are of no force or effect to the extent of the inconsistency. Although it states the legal result where there is conflict between a law and the Constitution, s. 52(1) does not explicitly provide courts with a grant of remedial jurisdiction.[2] A general declaration pursuant to courts' statutory or inherent jurisdiction is the means by which they give full effect to the broad terms of s. 52(1).
>
> [86] That a law is "of no force or effect" only "to the extent of the inconsistency" with the Constitution means that a court faced with a constitutional challenge to a law must determine to what extent it is unconstitutional and declare it to be so. Our jurisprudence teaches us that a measure of discretion is inevitable in determining how to respond to an inconsistency between legislation and the Constitution.
>
> [87] There is a theory, consonant with the Blackstonian declaratory theory of the law, that "judges never make law, but merely discover it" (*Canada (Attorney General) v. Hislop*, 2007 SCC 10, [2007] 1 SCR 429, at para. 79). On this view, when a law is unconstitutional, courts and other decision-makers have no remedial discretion — s. 52(1) renders unconstitutional laws of no force or effect from the moment of their enactment.
>
> [88] However, while s. 52(1) is the substantive basis of constitutional invalidity, the public and the state will often disagree about whether a given law is unconstitutional and, if so, to what extent. Our legal order, grounded in related principles of constitutional supremacy and the rule of law, requires that there be an institution empowered to finally determine a law's constitutionality; s. 52(1) confirms "[t]he existence of an impartial and authoritative judicial arbiter" to determine whether the law is of no force and effect (*Reference re Supreme Court Act, ss. 5 and 6*, 2014 SCC 21, [2014] 1 SCR 433, at para. 89). Even in the absence of a formal declaration, s. 52(1) operates to prevent the application of unconstitutional laws. For example, because of the limits of its statutory jurisdiction, a tribunal or a provincial court's determination that legislation is unconstitutional has no legal effect beyond the decision itself; nevertheless, it must refuse to give effect to legislation it considers unconstitutional. Thus, the reach of a judicial determination of the unconstitutionality of a law will be limited in the absence of statutory or inherent jurisdiction to issue a general declaration of invalidity.
>
> [89] As I will explain, while s. 52(1) recognizes the primacy of the Constitution, including the fundamental rights and freedoms of individuals and groups guaranteed by the Charter, fashioning constitutional remedies inevitably implicates other — at times, competing — constitutional principles (K. Roach, "Principled Remedial Discretion Under the Charter" (2004), 25 S.C.L.R. (2d) 101, at pp. 112-13). Courts must strike an appropriate balance between these principles in determining how to give effect to s. 52(1) in a manner that best aligns with our broader constitutional order.
>
> [90] Kent Roach argues, and the intervener the Asper Centre submits, that Charter remedies should be granted in accordance with "principled discretion": a middle ground between "strong" or "pure" discretion, which would give judges free rein to fashion remedies as they see fit, and "rule-based" discretion, which would tightly constrain judges with hard-and-fast rules (Roach (2004), at pp. 102 and 107-13). I agree.

[91] Pure discretion has the benefit of being endlessly adaptable to any factual context, but has the clear downside of permitting results based on "the wills and whims of a person or a group of people" (Roach (2004), at p. 107, quoting P. Birks, "Three Kinds of Objections to Discretionary Remedialism" (2000), 20 Uwa. L. Rev. 1, at p. 15). It also fails to encourage transparent reasoning — if the decision-maker can do anything, there is less incentive to explain the basis for the decision. Rule-based discretion, by contrast, has the benefit of being applicable in different contexts in a predictable way. However, it does not encourage courts to engage with the purposes behind the rules and tends to lead to mechanical application of those rules, which can produce unfair results in individual cases.

[92] A review of this Court's jurisprudence shows that it favours principled discretion, which requires judges to consider multiple, competing remedial principles and resolve conflicts between them while justifying their prioritization of certain considerations over others.

[93] "Remedial principles", in this sense, are more general than rules and, unlike rules, may conflict and be weighed differently (Roach (2004), at pp. 111-13, citing R. Dworkin, Taking Rights Seriously (1977)). Articulating the core general principles that structure the exercise of principled remedial discretion will assist in promoting principled, transparent, and consistent approaches to s. 52(1) remedies.

[94] *Schachter* provided remedial principles of this kind, identifying twin principles of respect for the purposes of the Charter and respect for the legislature, and thereby guiding the discretion of Canadian courts for nearly three decades. But in the process of applying that approach, this Court has sometimes articulated additional relevant or analogous principles. As I will explain, when legislation violates the Charter, courts have been guided by the following fundamental remedial principles, grounded in the Constitution, in determining the appropriate remedy, applying them at every stage:

A. *Charter* rights should be safeguarded through effective remedies.

B. The public has an interest in the constitutional compliance of legislation.

C. The public is entitled to the benefit of legislation.

D. Courts and legislatures play different institutional roles.

[95] Safeguarding rights lies at the core of granting Charter remedies because the Charter exists to protect rights, freedoms, and inherent dignity; this purpose inheres in the Charter as a whole. The Court's purposive approach to constitutional remedies ensures that the effective vindication and protection of rights is at the core of the remedies it grants for legislation that violates the *Charter*.

[96] The rule of law is explicitly recognized in the preamble to the Charter, which says that "Canada is founded upon principles that recognize . . . the rule of law". It is also implicitly recognized in the preamble to the Constitution Act, 1867, which says Canada has "a Constitution similar in Principle to that of the United Kingdom".. Two facets of the rule of law are foundational here: the government must act within the law and there must be positive laws to preserve order in society. This Court has recognized that adherence to the principle of the rule of law means that the impact of legislation, even unconstitutional legislation, extends beyond those whose rights are violated — it is bad for all of society for unconstitutional legislation to "remain on the books". But the public interest cuts both ways — the public is also entitled to the benefit of legislation, which individuals rely upon to organize their lives and protect them from harm. Laws validly enacted by democratically elected legislatures "are generally passed for the common good" and there is accordingly a "public interest" in legislation that "weighs heavily in the balance" of remedial discretion.

[97] Legislation is enacted by the legislature, which is sovereign in the sense that, within its constitutional ambit, it has "exclusive authority to enact, amend, and repeal any law as it sees fit" (Reference re pan-Canadian securities regulation, 2018 SCC 48, [2018] 3 SCR 189, at para. 54; Constitution Act, 1867, ss. 91 to 95; Constitution Act, 1982, ss. 44 and 45). This fact serves as an important constraint on courts' exercise of their remedial authority. Parliamentary sovereignty is an expression of democracy, because it accords exclusive legislative authority to Parliament and the provincial legislatures, each of which includes an elected chamber without whose consent no law can be made.

[98] Even so, the courts remain "guardians of the Constitution and of individuals' rights under it" (*Hunter v. Southam Inc.,* 1984 CanLII 33 (SCC), [1984] 2 SCR 145, at p. 169) — "[d]eference ends . . . where the constitutional rights that the courts are charged with protecting begin" (*Doucet-Boudreau v. Nova Scotia (Minister of Education),* 2003 SCC 62, [2003] 3 SCR 3, at para. 36). This is because "[i]t is emphatically the province and duty of [the courts] to say what the law is" (*Marbury v. Madison*, 5 U.S. (1 Cranch) 137 (1803), at p. 177).

[99] These remedial principles — fundamental aspects of our constitutional order, including democracy and the rule of law — are reflected in the Court's remedial decisions since the Charter came into force.

(2) *Schachter*

[100] In *Schachter*, this Court set out a general approach to granting remedies for legislation that violates the Charter. *Schachter* endorsed remedies tailored to the breadth of rights violations, thereby allowing constitutionally compliant aspects of unconstitutional legislation to be preserved. *Schachter* also recognized that, in rare circumstances, the effect of a declaration of invalidity could be suspended for a period of time to protect the public interest.

[101] At the core of *Schachter* was its recognition that flexibility is necessary to arrive at appropriate remedies involving legislation, and its endorsement of remedies short of a full declaration of invalidity. Lamer C.J. made clear that "[d]epending upon the circumstances, a court may simply strike down, it may strike down and temporarily suspend the declaration of invalidity, or it may resort to the techniques of reading down or reading in" (p. 695).

[102] Different types of remedy can be granted because the circumstances may implicate general remedial principles in different ways. *Schachter* recognized the "twin guiding principles" of "respect for the role of the legislature and the purposes of the Charter" (p. 715) that play a key role in determining the type of remedy that would be ordered.

[103] *Schachter* held that the first step in choosing the appropriate remedy is defining the extent of the inconsistency between the legislation and the Charter. The second step is determining the form of the declaration. Beyond the extent of the inconsistency, *Schachter* said that the form of a remedy would be influenced by courts' respect for the role of the legislature. The general rule is that tailored remedies should only be granted when a court can fairly conclude that the legislature would have enacted the law as it would be modified by the court (pp. 697 and 700).

[104] *Schachter* also endorsed the use of suspended declarations — declarations that legislation is unconstitutional, but whose effect is suspended for some period of time. Lamer C.J. reasoned that a delayed order could be justified based on the effect of an immediate declaration on the public and that, by contrast, the roles of courts and legislatures should not enter into the question of whether to suspend a declaration (p. 717).

[105] Finally, *Schachter* considered how s. 52(1) remedies could be combined with individual remedies for Charter violations. Lamer C.J. concluded that individual remedies under s. 24(1) of the Charter "will rarely be available in conjunction with" remedies involving legislation (p. 720).

[106] Much of *Schachter* remains good guidance three decades later. However, as I will explain, the jurisprudence on Charter remedies has built upon the foundation of *Schachter* and moved beyond it in some ways. While *Schachter* wisely advised courts to consider the principled basis for their remedial decisions, those remedial principles have since been further developed. In part, the guidelines *Schachter* endorsed for determining the extent of rights violations were tied to an articulation of the *Oakes* test that has since been overtaken. Aspects of its discussion of suspended declarations have been overlooked by courts and criticized in academic commentary for their failure to rely on coherent principles and encourage transparent application. Finally, its admonition against combining s. 52(1) and individual remedies has frequently not been followed.

[107] Since *Schachter*, this Court has granted at least 60 s. 52(1) remedies for Charter breaches. In my view, the guidelines given in *Schachter* should be clarified and updated in light of those decisions.

(3) The Form and Breadth of Section 52(1) Declarations

[108] As our jurisprudence demonstrates, and the language of s. 52(1) directs, the first step in crafting an appropriate s. 52(1) remedy in a given case is determining the extent of the legislation's inconsistency with the Constitution. Courts should bear in mind both "the manner in which the law violates the Charter and the manner in which it fails to be justified under s. 1" (*Schachter*, at p. 702) in crafting tailored remedies. (While this general guideline remains useful, courts should bear in mind that the *Oakes* test has evolved since *Schachter* was decided, such that it now focuses on justifying the infringing measure rather than the law as a whole (compare *Schachter*, at pp. 703-5 and RJR-MacDonald, at para. 144).) The nature and extent of the underlying Charter violation lays the foundation for the remedial analysis because the breadth of the remedy ultimately granted will reflect at least the extent of the breach.

[109] Defining the extent of the constitutional defect by reference to the substantive violation of the Charter safeguards the rights of all those directly affected by ensuring that the law is cured of all its constitutional defects. It also serves the broader public interest in having government act in accordance with the Constitution. These remedies reach beyond the claimant — and can even be granted when the claimant is not directly affected by the law — because "[n]o one should be subjected to an unconstitutional law" (Nur, at para. 51; see also R. v. Big M Drug Mart Ltd., 1985 CanLII 69 (SCC), [1985] 1 SCR 295, at p. 313). This step of the analysis therefore reflects the Charter's rights-protecting purpose, the public's interest in constitutional compliance, and the text of s. 52(1) — the law is of no force or effect to the full extent of its inconsistency with the Constitution.

[110] For example, in some cases where a criminal offence's effects on particular groups of people or in certain circumstances have been found unconstitutional, all of those people and circumstances have been exempted from criminal liability (see, e.g*., Carter v. Canada (Attorney General),* 2015 SCC 5, [2015] 1 SCR 331; *R. v. Sharpe*, 2001 SCC 2, [2001] 1 SCR 45, as interpreted in *R. v. Barabash*, 2015 SCC 29, [2015] 2 SCR 522; *R. v. Appulonappa*, 2015 SCC 59, [2015] 3 SCR 754, as interpreted in *R. v. Rajaratnam*, 2019 BCCA 209, 376 C.C.C. (3d) 181; *R. v. Smith*, 2015 SCC 34, [2015] 2 SCR 602). The same is true for mandatory minimum penalties, which can be invalidated even when the applicant is not directly affected (see, e.g., Nur; Lloyd).

[111] On the other hand, it also follows from s. 52(1) that to the extent they are not inconsistent with the Constitution, the public is entitled to the benefit of laws passed by the legislature. Tailored remedies that address the precise constitutional flaw can permit a court to both safeguard the constitutional rights of all those affected and preserve the constitutional aspects of the law. Many of the Court's tailored remedies reflect both these principles. The criminal offences considered in *Carter, Sharpe, Smith*, and *Appulonappa*, for example, were declared of no force or effect only to the extent that they violated rights, preserving their constitutionally compliant effects.

[112] The second step is determining the form that a declaration should take. In doing so, *Schachter* explained that remedies other than full declarations of invalidity should be granted when the nature of the violation and the intention of the legislature allows for them. Full statutory schemes or Acts are rarely struck down in their entirety — to my knowledge, this Court has only done so on eight occasions.[3] To ensure the public has the benefit of enacted legislation, remedies of reading down, reading in, and severance, tailored to the breadth of the violation, should be employed when possible so that the constitutional aspects of legislation are preserved (*Schachter*, at p. 700; *Vriend*, at paras. 149-50). Crucially, in Canada, the declaration issued cures the law's unconstitutionality. A declaration that fails to do so, like the kind suggested by my colleagues, Justice Côté and Justice Brown, at para. 248 of their reasons, is more akin to the declaration of "inconsistency" or "incompatibility" made in jurisdictions where courts do not have the authority to strike down unconstitutional legislation (see, e.g., *Attorney-General v. Taylor*, [2018] NZSC 104, [2019] 1 N.Z.L.R. 213; Human Rights Act 1998 (U.K.), 1998, c. 42, s. 4(4) and (6)).

[113] Reading down is when a court limits the reach of legislation by declaring it to be of no force and effect to a precisely defined extent. Reading down is an appropriate remedy when "the offending portion of a statute can be defined in a limited manner" (*Schachter*, at p. 697). Inversely, reading in is when a court broadens the grasp of legislation by declaring an implied limitation on its scope to be without force or effect. Reading in is an appropriate remedy when the inconsistency with the Constitution can be defined as "what the statute wrongly excludes rather than what it wrongly includes" (*Schachter*, at p. 698, emphasis in original). Severance is when a court declares certain words to be of no force or effect, thereby achieving the same effects as reading down or reading in, depending on whether the severed portion serves to limit or broaden the legislation's reach. Severance is appropriate where the offending portion is set out explicitly in the words of the legislation. These forms of remedy illustrate a court's flexibility in responding to a constitutional violation.

[114] However, if granted in the wrong circumstances, tailored remedies can intrude on the legislative sphere. *Schachter* cautioned that tailored remedies should only be granted where it can be fairly assumed that "the legislature would have passed the constitutionally sound part of the scheme without the unsound part" and where it is possible to precisely define the unconstitutional aspect of the law (p. 697, citing *Attorney-General for Alberta v. Attorney-General for Canada*, 1947 CanLII 347 (UK JCPC), [1947] A.C. 503 (P.C.), at p. 518). If it appears unlikely that the legislature would have enacted the tailored version of the statute, tailoring the remedy would not conform to its policy choice and would therefore undermine parliamentary sovereignty (*Schachter*, at pp. 705-6; *Hunter*, at p. 169). The significance of the remaining portion of the statute must be considered, and tailored remedies should not be granted when they would interfere with the legislative objective of the law as a whole (*Schachter*, at pp. 705-15). For example, in *Vriend*, Iacobucci J. read "sexual orientation" into the Individual's Rights Protection Act, R.S.A. 1980, c. I-2, because the term was sufficiently precise and because the legislature would rather have included that protection than sacrificed the entire scheme (paras. 155-60 and 167-69). In *R. v. Hall*, 2002 SCC 64, [2002] 3 SCR 309, McLachlin C.J. severed part of the tertiary ground for denying bail because the rest of the provision "is capable of standing alone without doing damage to Parliament's intention" (para. 44). This Court has granted a remedy short of full invalidity of a statutory provision at least 24 times.[4] Nonetheless, a tailored remedy will frequently not be appropriate. This Court has opted to fully invalidate a provision at least 55 times.[5] These include the cases dealing with mandatory minimum penalties referenced above — the goal of a mandatory minimum sentence is to remove judicial discretion, so tailoring the declaration to reintroduce that discretion would distort the provision so that it no longer conformed to its legislative purpose (*R. v. Ferguson*, 2008 SCC 6, [2008] 1 SCR 96, at paras. 50 and 53).

[115] Lamer C.J. was also conscious of the limitation of the judicial role, explaining in *Schachter* that tailored remedies should not be granted when they do not "flo[w] with sufficient precision from the requirements of the Constitution", because although courts are capable of determining what the Constitution requires, they are not well-suited to making "ad hoc choices from a variety of options" (p. 707).

[116] In sum, consistent with the principle of constitutional supremacy embodied in s. 52(1) and the importance of safeguarding rights, courts must identify and remedy the full extent of the unconstitutionality by looking at the precise nature and scope of the Charter violation. To ensure the public retains the benefit of legislation enacted in accordance with our democratic system, remedies of reading down, reading in, and severance, tailored to the breadth of the violation, should be employed when possible so that the constitutional aspects of legislation are preserved (*Schachter*, at p. 700; *Vriend*, at paras. 149-50). To respect the differing roles of courts and legislatures foundational to our constitutional architecture, determining whether to strike down legislation in its entirety or to instead grant a tailored remedy of reading in, reading down, or severance, depends on whether the legislature's intention was such that a court can fairly conclude it would have enacted the law as modified by the court. This requires the court to determine whether the law's overall purpose can be achieved without violating rights. If a tailored remedy can be granted without the court intruding on the role of the legislature, such a remedy will preserve a law's constitutionally compliant effects along with the benefit that law provides to the public. The rule of law is thus served both by ensuring that legislation complies with the Constitution and by securing the public benefits of laws where possible.

…

(6) General Remedial Principles for Legislation That Violates the *Charter*

[153] As I have explained, running through this Court's remedial practice — from determining the form and breadth of remedies involving legislation, to suspending the effect of those remedies, to exempting litigants from suspensions — are recurring touchstones. These guide the principled discretion that this Court exercises when granting remedies for legislation that violates the Charter.

[154] Safeguarding rights lies at the core of that remedial approach. Section 52(1) calls for courts to invalidate any legislation to the extent it violates the Charter. The Charter "constrain[s] government action in conformity with certain individual rights and freedoms, the preservation of which [is] essential to the continuation of a democratic, functioning society in which the basic dignity of all is recognized" (*Richardson*, at para. 57). The fundamental principle that courts should provide meaningful remedies for the violation of constitutional rights (*Doucet-Boudreau*, at para. 25) shapes the form and breadth of the declaration, acts as a strong counterweight against suspending the effect of such a declaration, and weighs in favour of granting an individual remedy in tandem with a suspension.

[155] It is a defining feature of our society, reflected in s. 52(1) and required by the rule of law, that state laws and state action must comply with the Constitution (*SWUAV*, at para. 31; *Canadian Council of Churches v. Canada (Minister of Employment and Immigration),* 1992 CanLII 116 (SCC), [1992] 1 SCR 236, at p. 250; *Secession Reference*, at para. 72). That the public has an interest in the constitutional compliance of the laws that govern it can be seen throughout this Court's remedial decisions. Courts ensure that a remedy covers the full scope of Charter violations; while this plays an important rights-protecting function, it also serves the public interest, ensuring that the government acts in accordance with the law — "[c]ompliance with Charter standards is a foundational principle of good governance" (Ward, at para. 38). The importance of constitutional compliance weighs against suspension of the declaration, and in favour of an individual exemption from any suspension.

[156] Another aspect of the rule of law, reflected in s. 52(1)'s caution that laws are of no force or effect only "to the extent of the inconsistency" with the Constitution, is the entitlement to a positive order of laws that organizes society and protects it from harm. The public has an interest in preserving legislation duly enacted by its democratically elected legislatures, to the extent it is not unconstitutional. This is why courts will tailor remedies to retain constitutional aspects of an unconstitutional law where possible and will temporarily suspend the effect of a declaration when an immediate order would undermine the public interest by depriving the public of laws passed for its benefit. In contrast, concerns about legal instability may weigh against suspension.

[157] Finally, running through this Court's remedial practice for unconstitutional legislation is respect for the role of the legislature coupled with an understanding of the duties of the judicial role. When determining the form and breadth of remedies, courts will preserve as much of the law as possible to respect the legislature's policy choices, following its discernible intention when doing so. But courts will not shrink from performing their duty to protect rights through s. 52(1) remedies, determining the full extent of inconsistencies with the Constitution and declaring legislation to be of no force or effect when necessary. Suspensions can be granted when the legislature's democratic role as policymaker would be so seriously undermined by an immediately effective declaration that it outweighs important countervailing principles. In such circumstances, if an exemption would undermine that role, it will weigh against an individual remedy.

[158] As I have explained, these constitutional considerations, drawn from our constitutional text and the broader architecture of our constitutional order and the rule of law, have repeatedly arisen in this Court's decisions on s. 52(1) remedies for Charter violations and give rise to four foundational principles:

A. Charter rights should be safeguarded through effective remedies.

B. The public has an interest in the constitutional compliance of legislation.

C. The public is entitled to the benefit of legislation.

D. Courts and legislatures play different institutional roles.

[159] In my view, these remedial principles provide the groundwork for meaningful remedies in different contexts. They provide guidance to courts and encourage them to transparently explain remedial results. They will not always lead to agreement on the correct outcome; their value is in transparency, helping those who disagree articulate their specific points of disagreement.

2.2 *Schachter v. Canada* [1992] 2 SCR 67 (citations omitted)

[from the headnote]

Respondent's spouse received 15 weeks of maternity benefits in 1985 under s. 30 of the *Unemployment Insurance Act, 1971*. Although respondent had intended to stay home with the newborn as soon as his spouse was able to return to work after the birth, he ultimately took three weeks off without pay. He had first applied for benefits under s. 30 in respect of the time he had to take off work, but, since s. 30 was limited to maternity benefits, modified his application to one under s. 32 for "paternity benefits". Section 32 provides for parental benefits for adoptive parents for 15 weeks following the placement of their child with them. These benefits are to be shared between the two parents in accordance with their wishes. The respondent's application was denied on the basis that he was "not available for work", a ground of disentitlement for all applicants except those applying for maternity benefits or adoption benefits.

….[at trial the] judge found a violation of s. 15 of the *Canadian Charter of Rights and Freedoms* in that s. 32 discriminated between natural parents and adoptive parents with respect to parental leave. He granted declaratory relief under s. 24(1) of the *Charter* and extended the same benefits to natural parents as were granted to adoptive parents …. The violation of s. 15 was subsequently ceded by appellants.

[By the time the Supreme Court heard the appeal, the Federal government had amended the provision] to extend parental benefits to natural parents on the same footing as they are provided to adoptive parents for a period totalling 10 weeks rather than the original 15.

The judgment of Lamer C.J. and Sopinka, Gonthier, Cory and McLachlin JJ. was delivered by

LAMER C.J. --

IV. *Remedial Options Appropriate to this Case*

A. The Nature of the Right Involved

The right which was determined to be violated here is a positive right: the right to equal benefit of the law. Positive rights by their very nature tend to carry with them special considerations in the remedial context. It will be a rare occasion when a benefit conferring scheme is found to have an unconstitutional purpose. Cases involving positive rights are more likely to fall into the remedial classifications of reading down/reading in or striking down and suspending the operation of the declaration of invalidity than to mandate an immediate striking down. Indeed, if the benefit which is being conferred is itself constitutionally guaranteed (for example, the right to vote), reading in may be mandatory. For a court to deprive persons of a constitutionally guaranteed right by striking down underinclusive legislation would be absurd. Certainly the intrusion into the legislative sphere of extending a constitutionally guaranteed benefit is warranted when the benefit was itself guaranteed by the legislature through constitutional amendment.

Other rights will be more in the nature of "negative" rights, which merely restrict the government. However, even in those cases, the rights may have certain positive aspects. For instance, the right to life, liberty and security of the person is in one sense a negative right, but the requirement that the government respect the "fundamental principles of justice" may provide a basis for characterizing s. 7 as a positive right in some circumstances. Similarly, the equality right is a hybrid of sorts since it is neither purely positive nor purely negative. In some contexts it will be proper to characterize s. 15 as providing positive rights.

The benefit with which we are concerned here is a monetary benefit for parents …not one which Parliament is constitutionally obliged to provide to the included group or the excluded group. What Parliament is obliged to do, by virtue of the conceded s. 15 violation, is equalize the provision of that benefit. The benefit itself is not constitutionally prohibited; it is simply underinclusive. Thus striking down the provision immediately would be inappropriate as such a course of action would deprive eligible persons of a benefit without providing any relief to the respondent. Such a situation demands, at the very least, that the operation of any declaration of invalidity be suspended to allow Parliament time to bring the provision into line with constitutional requirements. …. The question which remains is whether this is a case in which it is appropriate to go further and read the excluded group into the legislation. This question must be answered with reference to the specific legislation under consideration.

B. The Context of the Unemployment Insurance Act, 1971

It is not difficult to discern the legislative objective of this scheme as a whole. The following overall objective emerges from Justice La Forest's judgment concerning the same legislative scheme in *Tétreault-Gadoury*, *supra*, at p. 41:

> . . . to create a social insurance plan to compensate unemployed workers for loss of income from their employment and to provide them with economic and social security for a time, thus assisting them in returning to the labour market.

It is, however, not as simple to discern the objective of the particular provision. It is not clear on the text of the provision alone that the purpose of it is to extend benefits to parents of newborns caring for them at home, a purpose which reading in the excluded group would further. Indeed, on the express language of the provision, one could quickly conclude that the benefits were only intended to be conferred on adoptive parents and that natural parents were deliberately excluded…[W]e have not been provided with the further assistance of a s. 1 argument here or in the courts below [because the government conceded the section 15 violation in this case].

Without a mandate based on a clear legislative objective, it would be imprudent for me to take the course of reading the excluded group into the legislation. A consideration of the budgetary implications of such a course of action further underlines this conclusion. … Here, the excluded group sought to be included likely vastly outnumbers the group to whom the benefits were already extended.

Given the nature of the benefit and the size of the group to whom it is sought to be extended, to read in natural parents would in these circumstances constitute a substantial intrusion into the legislative domain. This intrusion would be substantial enough to change potentially the nature of the scheme as a whole. If this Court were to dictate that the same benefits conferred on adoptive parents under s. 32 be extended to natural parents, the ensuing financial shake-up could mean that other benefits to other disadvantaged groups would have to be done away with to pay for the extension. Parliament and the provincial legislatures are much better equipped to assess the whole picture in formulating solutions in cases such as these. Clearly, the appropriate action for the Court to take is to declare the provision invalid but to suspend that declaration to allow the legislative body in question to weigh all the relevant factors in amending the legislation to meet constitutional requirements.

I think it significant and worthy of mention that in this case Parliament did amend the impugned provision following the launching of this action, and that that amendment was not the one that reading in would have imposed. Parliament equalized the benefits given to adoptive parents and natural parents but not on the same terms as they were originally conferred by s. 32. The two groups now receive equal benefits for ten weeks rather than the original fifteen. This situation provides a valuable illustration of the dangers associated with reading in when legislative intention with respect to budgetary issues is not clear. In this case, reading in would not necessarily further the legislative objective and it would definitely interfere with budgetary decisions in that it would mandate the expenditure of a greater sum of money than Parliament is willing or able to allocate to the program in question. ….

The reasons of La Forest and L'Heureux-Dubé JJ. were delivered by

LA FOREST J. -- I have had the benefit of reading the reasons of the Chief Justice and I agree with his proposed disposition and answers to the constitutional questions….

Ordinarily, a case is dealt with in light of facts that define the scope of the Court's pronouncement. Here we are forced to deal with the tests for reading down or reading in in a manner that may give the impression that they are of universal application. But it must be underlined that the case is one involving a scheme of social assistance which may dictate a quite different approach from that which one would follow in other areas. Thus this Court has repeatedly stated in cases like *R. v. Wong*, 1990 CanLII 56 (SCC), [1990] 3 SCR 36, for example, that it was not the business of the courts to invent schemes that had the effect of increasing police powers (at pp. 56-57). The rationale for this was not so much the complexity of possible schemes (as the Chief Justice appears to suggest at one stage), but rather that this could distract the courts from their fundamental duty under the *Charter* to protect the rights guaranteed to the individual.

The simple fact is, as I noted before, that it is for Parliament and the legislatures to make laws. It is the duty of the courts to see that those laws conform to constitutional norms and declare them invalid if they do not. This imposes pressure on legislative bodies to stay within the confines of their constitutional powers from the outset. Reliance should not be placed on the courts to repair invalid laws. In social assistance schemes, there is perhaps more room (and certainly more temptation) for judicial intervention, in cases like *Tétreault-Gadoury v. Canada (Employment*

and Immigration Commission), 1991 CanLII 12 (SCC), [1991] 2 SCR 22, for example, where the remedy is obvious and Parliament would clearly enact it rather than have the whole scheme fail. But when one is dealing with laws that impinge on the liberty of the subject, the judicial stance should be one that does not encourage the legislature to overreach, and the courts should be slow indeed to provide a corrective.

….

Where I am most doubtful about the Chief Justice's reasons is in closely tying the process of reading down or reading in with the checklist set forth in *R. v. Oakes*, 1986 CanLII 46 (SCC), [1986] 1 SCR 103. Though this may be useful at times, it may, I fear, encourage a mechanistic approach to the process, rather than encourage examination of more fundamental issues, such as those to which I have referred above, issues that go well beyond the factual context.

2.3 *Vriend v. Alberta*, 1998 CanLII 816 (SCC), [1998] 1 SCR 493 (citations omitted)

The remedial decision in *Vriend* (see other excerpts from this case in Chapter 24, Part 3.2) might be a bit of a surprise, as the Court seems to read in the very thing the Alberta legislature expressly decided against in paras 4-6 below. The majority responds to such concerns starting at para 165 below.

The judgment of Lamer C.J. and Gonthier, Cory, McLachlin, Iacobucci and Bastarache was delivered by

[1] CORY AND IACOBUCCI JJ. -- In these joint reasons Cory J. has dealt with the issues pertaining to standing, the application of the Canadian Charter of Rights and Freedoms, and the breach of s. 15(1) of the Charter. Iacobucci J. has discussed s. 1 of the Charter, the appropriate remedy, and the disposition.

CORY J.

[2] The Individual's Rights Protection Act, R.S.A. 1980, c. I-2 ("IRPA" or the "Act"), was first enacted in 1973. When the legislation was introduced in 1972, the Minister responsible commented upon and emphasized the nature and importance of the Act, stating: "it is . . . the commitment of this legislature that we regard The Individual's Rights Protection Act in primacy to any other legislative enactment. . . . [W]e have committed ourselves to suggest that Alberta is not the place for partial rights or half freedoms, but that Alberta hopefully will become the place where each and every man and woman will be able to stand on his own two feet and be recognized as an individual and not as a member of a particular class" (Alberta Hansard, November 22, 1972, at p. 80-63). These are courageous words that give hope and comfort to members of every group that has suffered the wounds and indignities of discrimination. Has this laudable commitment been met?

I. Factual Background

A. History of the IRPA

[3] The IRPA prohibits discrimination in a number of areas of public life, and establishes the Human Rights Commission to deal with complaints of discrimination. The IRPA as first enacted (S.A. 1972, c. 2) prohibited discrimination in public notices (s. 2), public accommodation, services or facilities (s. 3), tenancy (s. 4), employment practices (s. 6), employment advertising (s. 7) or trade union membership (s. 9) on the basis of race, religious beliefs, colour, sex, marital status (in ss. 6 and 9), age (except in ss. 3 and 4), ancestry or place of origin. The Act has since been expanded to include other grounds, in a series of amendments (S.A. 1980, c. 27; S.A. 1985, c. 33; S.A. 1990, c. 23; S.A. 1996, c. 25). These additions were apparently, at least in part, made in response to the enactment of the Charter and its judicial interpretation. In the most recent amendments the name of the Act was changed to the Human Rights, Citizenship and Multiculturalism Act. In 1990, the Act included the following list of prohibited grounds of discrimination: race, religious beliefs, colour, gender, physical disability, mental disability, age, ancestry and place of origin. At the present time it also includes marital status, source of income and family status.

[4] Despite repeated calls for its inclusion sexual orientation has never been included in the list of those groups protected from discrimination. In 1984 and again in 1992, the Alberta Human Rights Commission recommended amending the IRPA to include sexual orientation as a prohibited ground of discrimination. In an attempt to effect such an amendment, the opposition introduced several bills; however, none went beyond first reading. Although at least one Minister responsible for the administration of the IRPA supported the amendment, the correspondence with a number of cabinet members and members of the Legislature makes it clear that the omission of sexual orientation from the IRPA was deliberate and not the result of an oversight. The reasons given for declining to take this action include the assertions that sexual orientation is a "marginal" ground; that human rights legislation is powerless to change public attitudes; and that there have only been a few cases of sexual orientation discrimination in employment brought to the attention of the Minister.

[5] In 1992, the Human Rights Commission decided to investigate complaints of discrimination on the basis of sexual orientation. This decision was immediately vetoed by the Government and the Minister directed the Commission not to investigate the complaints.

[6] In 1993, the Government appointed the Alberta Human Rights Review Panel to conduct a public review of the IRPA and the Human Rights Commission. When it had completed an extensive review, the Panel issued its report, entitled Equal in Dignity and Rights: A Review of Human Rights in Alberta (1994) (the "Dignity Report"). The report contained a number of recommendations, one of which was that sexual orientation should be included as a prohibited ground of discrimination in the Act. In its response to the Dignity Report (Our Commitment to Human Rights: The Government's Response to the Recommendations of the Alberta Human Rights Review Panel (1995)), the Government stated that the recommendation regarding sexual orientation would be dealt with through this case.

B. Vriend's Dismissal from King's College and Complaint to the Alberta Human Rights Commission

[7] In December 1987 the appellant Delwin Vriend was employed as a laboratory coordinator by King's College in Edmonton, Alberta…. In early January 1991, the Board of Governors of the College adopted a position statement on homosexuality, and shortly thereafter, the President of the College requested Vriend's resignation. He declined to resign, and on January 28, 1991, Vriend's employment was terminated by the College…..

[8] On June 11, 1991, Vriend attempted to file a complaint with the Alberta Human Rights Commission on the grounds that his employer discriminated against him because of his sexual orientation. On July 10, 1991, the Commission advised Vriend that he could not make a complaint under the IRPA, because the Act did not include sexual orientation as a protected ground.

[9] Vriend, the Gay and Lesbian Awareness Society of Edmonton (GALA), the Gay and Lesbian Community Centre of Edmonton Society and Dignity Canada Dignité for Gay Catholics and Supporters (collectively the "appellants") applied by originating notice of motion to the Court of Queen's Bench of Alberta for declaratory relief. The appellants challenged the constitutionality of ss. 2(1), 3, 4, 7(1) and 8(1) of the IRPA on the grounds that these sections contravene s. 15(1) of the Charter because they do not include sexual orientation as a prohibited ground of discrimination.

…

5. Conclusion Regarding Section 15

[107] In summary, this Court has no choice but to conclude that the IRPA, by reason of the omission of sexual orientation as a protected ground, clearly violates s. 15 of the Charter. The IRPA in its underinclusive state creates a distinction which results in the denial of the equal benefit and protection of the law on the basis of sexual orientation, a personal characteristic which has been found to be analogous to the grounds enumerated in s. 15. This, in itself, would be sufficient to conclude that discrimination is present and therefore there is a violation of s. 15. The serious discriminatory effects of the exclusion of sexual orientation from the Act reinforce this conclusion. As a result, it is clear that the IRPA, as it stands, violates the equality rights of the appellant Vriend and of other gays and lesbians. It is therefore necessary to determine whether this violation can be justified under s. 1…

…

[128] …I conclude that the exclusion of sexual orientation from the IRPA does not meet the requirements of the Oakes test and accordingly, it cannot be saved under s. 1 of the Charter.

I. Remedy

A. Introduction: The Relationship Between the Legislatures and the Courts Under the Charter

[129] Having found the exclusion of sexual orientation from the IRPA to be an unjustifiable violation of the appellants' equality rights, I now turn to the question of remedy under s. 52 of the Constitution Act, 1982. Before discussing the jurisprudence on remedies, I believe it might be helpful to pause to reflect more broadly on the general issue of the relationship between legislatures and the courts in the age of the Charter.

[130] Much was made in argument before us about the inadvisability of the Court interfering with or otherwise meddling in what is regarded as the proper role of the legislature, which in this case was to decide whether or not sexual orientation would be added to Alberta's human rights legislation. Indeed, it seems that hardly a day goes by without some comment or criticism to the effect that under the Charter courts are wrongfully usurping the role of the legislatures. I believe this allegation misunderstands what took place and what was intended when our country adopted the Charter in 1981-82.

[131] When the Charter was introduced, Canada went, in the words of former Chief Justice Brian Dickson, from a system of Parliamentary supremacy to constitutional supremacy). Simply put, each Canadian was given individual rights and freedoms which no government or legislature could take away. However, as rights and freedoms are not absolute, governments and legislatures could justify the qualification or infringement of these constitutional rights under s. 1 as I previously discussed. Inevitably disputes over the meaning of the rights and their justification would have to be settled and here the role of the judiciary enters to resolve these disputes. Many countries have assigned the important role of judicial review to their supreme or constitutional courts.

[132] We should recall that it was the deliberate choice of our provincial and federal legislatures in adopting the Charter to assign an interpretive role to the courts and to command them under s. 52 to declare unconstitutional legislation invalid.

[133] However, giving courts the power and commandment to invalidate legislation where necessary has not eliminated the debate over the "legitimacy" of courts taking such action. As eloquently put by A. M. Bickel in his outstanding work The Least Dangerous Branch: The Supreme Court at the Bar of Politics (2nd ed. 1986), "it thwarts the will of representatives of the. . . people" (p. 17). So judicial review, it is alleged, is illegitimate because it is anti-democratic in that unelected officials (judges) are overruling elected representatives (legislators).

[134] To respond, it should be emphasized again that our Charter's introduction and the consequential remedial role of the courts were choices of the Canadian people through their elected representatives as part of a redefinition of our democracy. Our constitutional design was refashioned to state that henceforth the legislatures and executive must perform their roles in conformity with the newly conferred constitutional rights and freedoms. That the courts were the trustees of these rights insofar as disputes arose concerning their interpretation was a necessary part of this new design.

[135] So courts in their trustee or arbiter role must perforce scrutinize the work of the legislature and executive not in the name of the courts, but in the interests of the new social contract that was democratically chosen. All of this is implied in the power given to the courts under s. 24 of the Charter and s. 52 of the Constitution Act, 1982.

[136] Because the courts are independent from the executive and legislature, litigants and citizens generally can rely on the courts to make reasoned and principled decisions according to the dictates of the constitution even though specific decisions may not be universally acclaimed. In carrying out their duties, courts are not to second-guess legislatures and the executives; they are not to make value judgments on what they regard as the proper policy choice; this is for the other branches. Rather, the courts are to uphold the Constitution and have been expressly invited to perform that role by the Constitution itself. But respect by the courts for the legislature and executive role is as important as ensuring that the other branches respect each others' role and the role of the courts.

[137] This mutual respect is in some ways expressed in the provisions of our constitution as shown by the wording of certain of the constitutional rights themselves. For example, s. 7 of the Charter speaks of no denial of the rights therein except in accordance with the principles of fundamental justice, which include the process of law and legislative action. Section 1 and the jurisprudence under it are also important to ensure respect for legislative action and the collective or societal interests represented by legislation. In addition, as will be discussed below, in fashioning a remedy with regard to a Charter violation, a court must be mindful of the role of the legislature. Moreover, s. 33, the notwithstanding clause, establishes that the final word in our constitutional structure is in fact left to the legislature and not the courts. (see P. Hogg and A. Bushell, "The Charter Dialogue Between Courts and Legislatures" (1997), 35 Osgoode Hall L.J. 75).

[138] As I view the matter, the Charter has given rise to a more dynamic interaction among the branches of governance. This interaction has been aptly described as a "dialogue" by some. In reviewing legislative enactments and executive decisions to ensure constitutional validity, the courts speak to the legislative and executive branches. As has been pointed out, most of the legislation held not to pass constitutional muster has been followed by new legislation designed to accomplish similar objectives. By doing this, the legislature responds to the courts; hence the dialogue among the branches.

[139] To my mind, a great value of judicial review and this dialogue among the branches is that each of the branches is made somewhat accountable to the other. The work of the legislature is reviewed by the courts and the work of the court in its decisions can be reacted to by the legislature in the passing of new legislation (or even overarching laws under s. 33 of the Charter). This dialogue between and accountability of each of the branches have the effect of enhancing the democratic process, not denying it.

[140] There is also another aspect of judicial review that promotes democratic values. Although a court's invalidation of legislation usually involves negating the will of the majority, we must remember that the concept of democracy is broader than the notion of majority rule, fundamental as that may be. In this respect, we would do well to heed the words of Dickson C.J. in *Oakes*, supra, at p. 136:

> The Court must be guided by the values and principles essential to a free and democratic society which I believe to embody, to name but a few, respect for the inherent dignity of the human person, commitment to social justice and equality, accommodation of a wide variety of beliefs, respect for cultural and group identity, and faith in social and political institutions which enhance the participation of individuals and groups in society.

[141] So, for example, when a court interprets legislation alleged to be a reasonable limitation in a free and democratic society as stated in s. 1 of the Charter, the court must inevitably delineate some of the attributes of a democratic society. Although it is not necessary to articulate the complete list of democratic attributes in these remarks, Dickson C.J.'s comments remain instructive.

[142] Democratic values and principles under the Charter demand that legislators and the executive take these into account; and if they fail to do so, courts should stand ready to intervene to protect these democratic values as appropriate. As others have so forcefully stated, judges are not acting undemocratically by intervening when there are indications that a legislative or executive decision was not reached in accordance with the democratic principles mandated by the Charter.

[143] With this background in mind, I now turn to discuss the jurisprudence on the specific question of the choice of the appropriate remedy that should apply in this appeal.

B. Remedial Principles

[144] The leading case on constitutional remedies is *Schachter*, supra. Writing on behalf of the majority in *Schachter*, Lamer C.J. stated that the first step in selecting a remedial course under s. 52 is to define the extent of the Charter inconsistency which must be struck down. In the present case, that inconsistency is the exclusion of sexual orientation from the protected grounds of the IRPA. As I have concluded above, this exclusion is an unjustifiable infringement upon the equality rights guaranteed in s. 15 of the Charter.

[145] Once the Charter inconsistency has been identified, the next step is to determine which remedy is appropriate. In *Schachter*, this Court noted that, depending upon the circumstances, there are several remedial options available to a court in dealing with a Charter violation that was not saved by s. 1. These include striking down the legislation, severance of the offending sections, striking down or severance with a temporary suspension of the declaration of invalidity, reading down, and reading provisions into the legislation.

[146] Because the Charter violation in the instant case stems from an omission, the remedy of reading down is simply not available. Further, I note that given the considerable number of sections at issue in this case and the important roles they play in the scheme of the IRPA as a whole, severance of these sections from the remainder of the Act would be akin to striking down the entire Act.

[147] The appellants suggest that the circumstances of this case warrant the reading in of sexual orientation into the offending sections of the IRPA. However, in the Alberta Court of Appeal, O'Leary J.A. and Hunt J.A. agreed that the appropriate remedy would be to declare the relevant provisions of the IRPA unconstitutional and to suspend that declaration for a period of time to allow the Legislature to address the matter. McClung J.A. would have gone further and declared the IRPA invalid in its entirety. With respect, for the reasons that follow, I cannot agree with either remedy chosen by the Court of Appeal.

[148] In *Schachter*, Lamer C.J. noted that when determining whether the remedy of reading in is appropriate, courts must have regard to the "twin guiding principles", namely, respect for the role of the legislature and respect for the purposes of the Charter, which I have discussed generally above. Turning first to the role of the legislature, Lamer C.J. stated at p. 700 that reading in is an important tool in "avoiding undue intrusion into the legislative sphere. . . . [T]he purpose of reading in is to be as faithful as possible within the requirements of the Constitution to the scheme enacted by the Legislature."

[149] He went on to quote the following passage from Carol Rogerson in "The Judicial Search for Appropriate Remedies Under the Charter: The Examples of Overbreadth and Vagueness", in R. J. Sharpe, ed., Charter Litigation (1987), 233, at p. 288:

> Courts should certainly go as far as required to protect rights, but no further. Interference with legitimate legislative purposes should be minimized and laws serving such purposes should be allowed to remain operative to the extent that rights are not violated. Legislation which serves desirable social purposes may give rise to entitlements which themselves deserve some protection.

[150] As I discussed above, the purpose of the IRPA is the recognition and protection of the inherent dignity and inalienable rights of Albertans through the elimination of discriminatory practices. It seems to me that the remedy of reading in would minimize interference with this clearly legitimate legislative purpose and thereby avoid excessive intrusion into the legislative sphere whereas striking down the IRPA would deprive all Albertans of human rights protection and thereby unduly interfere with the scheme enacted by the Legislature.

[151] I find support for my position in *Haig*, supra, where the Ontario Court of Appeal read the words "sexual orientation" into s. 3(1) of the Canadian Human Rights Act, R.S.C., 1985, c. H-6. At p. 508, Krever J.A., writing for a unanimous court, stated that it was

> inconceivable . . . that Parliament would have preferred no human rights Act over one that included sexual orientation as a prohibited ground of discrimination. To believe otherwise would be a gratuitous insult to Parliament.

[152] Turning to the second of the twin guiding principles, the respondents suggest that the facts of this case are illustrative of a conflict between two grounds, namely, religion and sexual orientation. If sexual orientation were simply read into the IRPA, the respondents contend that this would undermine the ability of the IRPA to provide protection against discrimination based on religion, one of the fundamental goals of that legislation. This result is alleged to be "inconsistent with the deeper social purposes of the Charter".

[153] I concluded above that the internal balancing mechanisms of the IRPA were an adequate means of disposing of any conflict that might arise between religion and sexual orientation. Thus, I cannot accept the respondents' assertion that the reading in approach does not respect the purposes of the Charter. In fact, as I see the matter, reading sexual orientation into the IRPA as a further ground of prohibited discrimination can only enhance those purposes. The Charter, like the IRPA, is concerned with the promotion and protection of inherent dignity and inalienable rights. Thus, expanding the list of prohibited grounds of discrimination in the IRPA allows this Court to act in a manner which, consistent with the purposes of the Charter, would augment the scope of the IRPA's protections. In contrast, striking down or severing parts of the IRPA would deny all Albertans protection from marketplace discrimination. In my view, this result is clearly antithetical to the purposes of the Charter.

[154] In *Schachter*, Lamer C.J. noted that the twin guiding principles can only be fulfilled if due consideration is given to several additional criteria which further inform the determination as to whether the remedy of reading in is appropriate. These include remedial precision, budgetary implications, effects on the thrust of the legislation, and interference with legislative objectives.

[155] As to the first of the above listed criteria, the court must be able to define with a "sufficient degree of precision" how the statute ought to be extended in order to comply with the Constitution. I do not believe that the present case is one in which this Court has been improperly called upon to fill in large gaps in the legislation. Rather, in my view, there is remedial precision insofar as the insertion of the words "sexual orientation" into the prohibited grounds of discrimination listed in the preamble and ss. 2(1), 3, 4, 7(1), 8(1), 10 and 16(1) of the IRPA will, without more, ensure the validity of the legislation and remedy the constitutional wrong.

[156] In her reasons in this case, Hunt J.A. concluded that there was insufficient remedial precision to justify the remedy of reading in. She expressed two concerns. Firstly, she held that adequate precision likely would not be possible without a definition of the term "sexual orientation". With respect, I cannot agree. Although the term "sexual orientation" has been defined in the human rights legislation of the Yukon Territory, it appears undefined in the Canadian Human Rights Act, the human rights legislation of Nova Scotia, New Brunswick, Quebec, Ontario, Manitoba, Saskatchewan, British Columbia, and s. 718.2(a)(i) of the Criminal Code, R.S.C., 1985, c. C-46, as amended by

S.C. 1995, c. 22, s. 6. In addition, "sexual orientation" was not defined when it was recognized by this Court in Egan, supra, as an analogous ground under s. 15 of the Charter. In my opinion, "sexual orientation" is a commonly used term with an easily discernible common-sense meaning.

[157] In addition, I concur with the comments of R. Khullar (in "*Vriend*: Remedial Issues for Unremedied Discrimination" (1998), 7 N.J.C.L. 221) who stated (at pp. 237-38) that,

> [i]f there is any ambiguity in the term "sexual orientation," it is no greater than that encompassed by terms such as "race," "ethnic origin" or "religion," all of which are undefined prohibited grounds of discrimination in the Charter which have not posed any undue difficulty for the courts or legislatures to understand and apply.

[158] Hunt J.A. was also troubled by the possible impact of reading in upon s. 7(2) of the IRPA. This section states that s. 7(1) (employment), as regards age and marital status, "does not affect the operation of any bona fide retirement or pension plan or the terms or conditions of any bona fide group or employee insurance plan". As the Court of Appeal heard no argument on this point and as there was no evidence before the court to explain the rationale behind this provision, Hunt J.A. held that, if the protections of the IRPA were to be extended to gay men and lesbians, it would be necessary to decide whether this group would be included or excluded from s. 7(2). She found that this was something the court was in no position to do. In light of this difficulty, Hunt J.A. was concerned that the reading in remedy "would engage the court in the kind of 'filling in of details' against which Lamer, C.J.C., cautions in *Schachter* [supra]" (p. 69).

[159] In my view, whether gay men and lesbians are included or excluded from s. 7(2) is a peripheral issue which does not deprive the reading in remedy of the requisite precision. I agree with K. Roach who noted that the legislature "can always subsequently intervene on matters of detail that are not dictated by the Constitution" (Constitutional Remedies in Canada (1994 (loose-leaf)), at p. 14-64.1). I therefore conclude on this point that, in the present case, there is sufficient remedial precision to justify the remedy of reading in.

[160] Turning to budgetary repercussions, in the circumstances of the present appeal, such considerations are not sufficiently significant to warrant avoiding the reading in approach. On this issue, the trial judge stated (at p. 18):

> There will undoubtedly be some budgetary impact on the Human Rights Commission as a result of the addition of sexual orientation as a prohibited ground of discrimination. But, unlike *Schachter* [supra], it would not be substantial enough to change the nature of the scheme of the legislation.

Although the scope of this Court's review of the IRPA is considerably broader than that which the trial judge was asked to undertake, as I noted above, having not heard anything persuasive to the contrary, I am not prepared to interfere with the trial judge's findings on this matter.

[161] As to the effects on the thrust of the legislation, it is difficult to see any deleterious impact. All persons covered under the current scope of the IRPA would continue to benefit from the protection provided by the Act in the same manner as they had before the reading in of sexual orientation. Thus, I conclude that it is reasonable to assume that, if the Legislature had been faced with the choice of having no human rights statute or having one that offered protection on the ground of sexual orientation, the latter option would have been chosen. As the inclusion of sexual orientation in the IRPA does not alter the legislation to any significant degree, it is reasonable to assume that the Legislature would have enacted it in any event.

…

[163] Lamer C.J. went on to note that, "[w]here the group to be added is smaller than the group originally benefitted, this is an indication that the assumption that the legislature would have enacted the benefit in any case is a sound one" (p. 712). In the present case, gay men and lesbians are clearly a smaller group than those already benefited by the IRPA. Thus, in my view, reading in remains the less intrusive option.

[164] The final criterion to examine is interference with the legislative objective. In *Schachter*, Lamer C.J. commented upon this factor as follows (at pp. 707-8):

> The degree to which a particular remedy intrudes into the legislative sphere can only be determined by giving careful attention to the objective embodied in the legislation in question. . . . A second level of legislative intention may be manifest in the means chosen to pursue that objective.

[165] With regard to the first level of legislative intention, as I discussed above, it is clear that reading sexual orientation into the IRPA would not interfere with the objective of the legislation. Rather, in my view, it can only enhance that objective. However, at first blush, it appears that reading in might interfere with the second level of legislative intention identified by Lamer C.J.

[166] As the Alberta Legislature has expressly chosen to exclude sexual orientation from the list of prohibited grounds of discrimination in the IRPA, the respondents argue that reading in would unduly interfere with the will of the Government. McClung J.A. shares this view. In his opinion, the remedy of reading in will never be appropriate where a legislative omission reflects a deliberate choice of the legislating body. He states that if a statute is unconstitutional, "the preferred consequence should be its return to the sponsoring legislature for representative, constitutional overhaul" (p. 35). However, as I see the matter, by definition, Charter scrutiny will always involve some interference with the legislative will.

[167] Where a statute has been found to be unconstitutional, whether the court chooses to read provisions into the legislation or to strike it down, legislative intent is necessarily interfered with to some extent. Therefore, the closest a court can come to respecting the legislative intention is to determine what the legislature would likely have done if it had known that its chosen measures would be found unconstitutional. As I see the matter, a deliberate choice of means will not act as a bar to reading in save for those circumstances in which the means chosen can be shown to be of such centrality to the aims of the legislature and so integral to the scheme of the legislation, that the legislature would not have enacted the statute without them.

[168] Indeed, as noted by the intervener Canadian Jewish Congress, if reading in is always deemed an inappropriate remedy where a government has expressly chosen a course of action, this amounts to the suggestion that whenever a government violates a Charter right, it ought to do so in a deliberate manner so as to avoid the remedy of reading in. In my view, this is a wholly unacceptable result.

[169] In the case at bar, the means chosen by the legislature, namely, the exclusion of sexual orientation from the IRPA, can hardly be described as integral to the scheme of that Act. Nor can I accept that this choice was of such centrality to the aims of the legislature that it would prefer to sacrifice the entire IRPA rather than include sexual orientation as a prohibited ground of discrimination, particularly for the reasons I will now discuss.

[170] As mentioned by my colleague Cory J., in 1993, the Alberta Legislature appointed the Alberta Human Rights Review Panel to conduct a public review of the IRPA and the Alberta Human Rights Commission. The Panel issued a report making several recommendations including the inclusion of sexual orientation as a prohibited ground of discrimination in all areas covered by the Act. The Government responded to this recommendation by deferring the decision to the judiciary: "This recommendation will be dealt with through the current court case *Vriend* v. Her Majesty the Queen in Right of Alberta and Her Majesty's Attorney General in and for the Province of Alberta" (Our Commitment to Human Rights: The Government's Response to the Recommendations of the Alberta Human Rights Review Panel, supra, at p. 21).

[171] In my opinion, this statement is a clear indication that, in light of the controversy surrounding the protection of gay men and lesbians under the IRPA, it was the intention of the Alberta Legislature to defer to the courts on this issue. Indeed, I interpret this statement to be an express invitation for the courts to read sexual orientation into the IRPA in the event that its exclusion from the legislation is found to violate the provisions of the Charter. Therefore, primarily because of this and contrary to the assertions of the respondents, I believe that, in these circumstances, the remedy of reading in is entirely consistent with the legislative intention.

[172] In addition to the comments which I outlined above, McClung J.A. also criticizes the remedy of reading in on a more fundamental level. He views the reading of provisions into a statute as an unacceptable intrusion of the courts into the legislative process. Commenting upon the trial judge's decision to read sexual orientation into the IRPA he stated (at pp. 29-30):

> To amend and extend it, by reading up to include "sexual orientation" was a sizeable judicial intervention into the affairs of the community and, at a minimum, an undesirable arrogation of legislative power by the court. . . . [T]o me it is an extravagant exercise for any s. 96 judge to use the enormous review power of his or her office in this way in order to wean competent legislatures from their "errors."

[173] McClung J.A. goes on to suggest that, by reading in, the trial judge overrode the express will of the electors of the Province of Alberta who, speaking through their parliamentary representatives, have decided that sexual orientation is not to be included in the protected categories of the IRPA.

[174] With respect, for the reasons outlined in the previous section of these reasons, I do not accept that extending the legislation in this case is an undemocratic exercise of judicial power. Rather, I concur with the comments of W. Black, who states (supra, at p. 128) that:

> . . . there is no conflict between judicial review and democracy if judges intervene where there are indications that a decision was not reached in accordance with democratic principles. Democracy requires that all citizens be allowed to participate in the democratic process, either directly or through equal consideration by their representatives. Parliamentary sovereignty is a means to this end, not an end in itself.

[175] In my view, the process by which the Alberta Legislature decided to exclude sexual orientation from the IRPA was inconsistent with democratic principles. Both the trial judge and all judges in the Court of Appeal agreed that the exclusion of sexual orientation from the IRPA was a conscious and deliberate legislative choice. While McClung J.A. relies on this fact as a reason for the courts not to intervene, the theories of judicial review developed by several authors (see e.g. Black, supra; J. H. Ely, Democracy and Distrust: A Theory of Judicial Review (1980); P. Monahan, "A Theory of Judicial Review Under the Charter", in Politics and the Constitution: The Charter, Federalism and the Supreme Court of Canada (1987), at pp. 97-138; D. M. Beatty, Constitutional Law in Theory and Practice (1995)) suggest the opposite conclusion.

[176] As I have already discussed, the concept of democracy means more than majority rule as Dickson C.J. so ably reminded us in Oakes, supra. In my view, a democracy requires that legislators take into account the interests of majorities and minorities alike, all of whom will be affected by the decisions they make. Where the interests of a minority have been denied consideration, especially where that group has historically been the target of prejudice and discrimination, I believe that judicial intervention is warranted to correct a democratic process that has acted improperly.

…

[178] …. When a court remedies an unconstitutional statute by reading in provisions, no doubt this constrains the legislative process and therefore should not be done needlessly, but only after considered examination. However, in my view, the "parliamentary safeguards" remain. Governments are free to modify the amended legislation by passing exceptions and defences which they feel can be justified under s. 1 of the Charter. Thus, when a court reads in, this is not the end of the legislative process because the legislature can pass new legislation in response, as I outlined above (see also Hogg and Bushell, supra). Moreover, the legislators can always turn to s. 33 of the Charter, the override provision, which in my view is the ultimate "parliamentary safeguard."

[179] On the basis of the foregoing analysis, I conclude that reading sexual orientation into the impugned provisions of the IRPA is the most appropriate way of remedying this underinclusive legislation. The appellants suggest that this remedy should have immediate effect. I agree. There is no risk in the present case of harmful unintended consequences upon private parties or public funds (see e.g. Egan, supra). Further, the mechanisms to deal with complaints of discrimination on the basis of sexual orientation are already in place and require no significant adjustment. I find additional support for my position in both Haig, supra, and Newfoundland (Human Rights Commission) v. Newfoundland (Minister of Employment and Labour Relations) (1995), 1995 CanLII 6252 (NL SC), 127 D.L.R. (4th) 694 (Nfld. S.C.), where sexual orientation was read into the impugned statutes without a suspension of the remedy. There is no evidence before this Court to suggest that any harm resulted from the immediate operation of the remedy in those cases.

2.4 Suspensions of declarations of invalidity

2.4.1 Ontario (Attorney General) v. G, 2020 SCC 38 (citations omitted)

This Chapter offers two excerpts from this Ontario AG v. G. The excerpt offered here looks closely at suspensions of declarations of invalidity. The other, above, focuses on general principles of section 52 remedies.

The judgment of Wagner C.J. and Abella, Moldaver, Karakatsanis, Martin and Kasirer JJ. was delivered by Karakatsanis J. —

I. Introduction

[1] People with mental illnesses face persistent stigma and prejudicial treatment in Canadian society, which has imposed profound and widespread social, political, and legal disadvantage on them. In particular, discriminatory perceptions that those with mental illnesses are inherently and indefinitely dangerous persist. …

[2] This appeal requires the Court to apply the equality guarantee to the manner in which those found not criminally responsible on account of mental disorder (NCRMD) of sexual offences are treated by Ontario's sex offender registry regime. It also provides an opportunity to set out a consistent set of principles applicable to granting remedies for legislation that violates the Charter.

[3] In Ontario, Christopher's Law (Sex Offender Registry), 2000, S.O. 2000, c. 1 (Christopher's Law), requires those who are either convicted or found NCRMD of a sexual offence to physically report to a police station to have their personal information added to the province's sex offender registry. They must continue to report in person at least once a year to keep their information up to date. They must also report every time certain information changes. Even when individuals are no longer required to report or when they die, information previously gathered about them under the registry is retained.

[4] Those who are found guilty of a sexual offence can be exempted from reporting in the first place by receiving a discharge under s. 730 of the Criminal Code, R.S.C. 1985, c. C-46, can be removed from the registry upon receipt of a free pardon, and can be exempted from continuing to report upon receipt of either a free pardon or criminal record suspension. There is therefore some opportunity, based on an individualized

assessment, to be exempted from the sex offender registry. By contrast, everyone found NCRMD must report upon discharge by a provincial review board or court, without exception, no one found NCRMD can ever be removed from the registry, and no one found NCRMD can ever be exempted from reporting. This is so even if they have received a discharge from a review board.

[5] G, the respondent, was found NCRMD of two sexual offences and then absolutely discharged by the Ontario Review Board (ORB). His record in the 19 years since those offences occurred has been spotless. Nevertheless, as Christopher's Law currently stands, G will have to report and will be a registered "sex offender" for the rest of his life. His information will remain in the registry even after he passes away. He has no opportunity for removal.

[6] ….Christopher's Law draws discriminatory distinctions between people found guilty and people found NCRMD of sexual offences on the basis of mental disability, contrary to s. 15(1) of the Charter. These discriminatory distinctions cannot be justified in a free and democratic society. ….

II. Background

[7] In September 2001, G experienced his first and only manic episode. A month later, he was charged with two counts of sexually assaulting his then-wife, one count of unlawfully confining her, and one count of harassment. The two incidents underlying the charges occurred as a result of that manic episode.

[8] In June 2002, G was found NCRMD. When G appeared before the ORB in July 2002, he received a conditional discharge. In August 2003, the ORB ordered that he be absolutely discharged on the basis that "[t]here is simply no evidence to find that [G] is a significant risk to the safety of the public". G has not engaged in criminal activity since being absolutely discharged approximately 17 years ago. He has adhered to treatment and his symptoms have been in full remission. He has maintained stable employment and has strong and supportive relationships with his family.

[9] G was placed on the provincial sex offender registry in August 2004, and on the federal registry in January 2005. Since then, G has fully complied with his reporting obligations. He has reported in person annually as required by Christopher's Law and has complied with other requirements imposed by the federal Sex Offender Information Registration Act, S.C. 2004, c. 10 (SOIRA).

….

D. What Is the Appropriate Remedy?

[80] The parties submit that the effect of any declaration that Christopher's Law is of no force or effect should be suspended, but disagree on whether G should be immediately exempted from that suspension. ….

[81] In recent years, academic commentators have urged that remedies for unconstitutional laws be determined in a more principled, coherent, and transparent way. In particular, our jurisprudence dealing with suspensions of declarations of invalidity, and the exemption of individuals from those suspensions, has been criticized for unduly compromising the protection of rights by failing to grant meaningful remedies, and for diminishing the quality of decision making by failing to transparently explain the basis for a suspension. …

[83] …. suspensions of declarations of invalidity should be rare, granted only when an identifiable public interest, grounded in the Constitution, is endangered by an immediate declaration to such an extent that it outweighs the harmful impacts of delaying the declaration's effect. And when declarations are suspended, granting individual exemptions pursuant to s. 24(1) of the Charter will often balance the interests of the litigant, the broader public, and the legislature in a manner that is "appropriate and just".

[paragraphs between 82-116 appear in the earlier excerpt from Ontario AG v G, found *here*]

(4) Suspending the Effect of Section 52(1) Declarations

[117] There are times when an immediately effective declaration of invalidity would endanger an interest of such great importance that, on balance, the benefits of delaying the effect of that declaration outweigh the cost of preserving an unconstitutional law that violates Charter rights.

[118] In total, this Court has suspended declarations of invalidity in 23 out of approximately 90 decisions in which it declared legislation to be of no force or effect for violating the Charter.[6] ….. Suspensions were initially recognized to be available when necessary to protect against serious threats to the rule of law. Then, in *Schachter*, this Court took an approach to granting suspensions based on determining whether cases fit into one of a list of categories — threats to the rule of law, threats to public safety, or underinclusive benefits — based on the public interest in the law's interim application. Since then, many cases have gone beyond the *Schachter* categories to grant suspensions for other reasons, including concerns related to the roles and capacities of courts and legislatures. The 12 declarations of invalidity for Charter violations after *Schachter* between 1992 and 1997 — from *Zundel* to *Benner* — took immediate effect. By contrast, between 2003 and 2015 — from *Trociuk* to *Carter* — 13 out of 17 s. 52(1) declarations were suspended. Those more recent cases have been criticized for suspending declarations too frequently and without sufficient explanation. This case gives the Court an opportunity to recalibrate the remedial principles that guide the judicial discretion to delay the effect of a declaration of invalidity.

[119] Suspensions of declarations of invalidity have attracted significant concern even as they have come to be used in jurisdictions around the world, including Canada, Germany, South Africa, Hong Kong, and Indonesia. While most accept that there will be some circumstances when the immediate enforcement of rights must give way to other constitutional concerns, opinions vary on the appropriate underlying principles and the right balance between them. Some argue suspensions should only be granted in "extreme cases" in order to prevent "legal chaos". Others suggest that suspensions can be granted to "remand complex issues to legislative institutions", giving them the first opportunity to respond to a finding of unconstitutionality. Still others endorse an approach based on proportionality, which would import considerations from the Oakes test to require the government to demonstrate that a suspension is justified. But all commentators recognize some discretion to grant suspensions in Canada.

…

[125] *Schachter's* categorical approach has resulted in uncertainty about when suspensions will be granted. Some decisions have gone beyond the *Schachter* categories. ….In other cases, failing to fit into a *Schachter* category has been given as an explanation for declining to grant a suspension. At times, the Court has provided no explanation for suspending the effect of its declaration….

[126] A principled approach makes it possible to reconcile these cases on suspended declarations, and encourage consistency and transparency. …. The categorical approach in *Schachter* has been overtaken by the underlying remedial principles that animated those categories.

[127] As well, the relevance of some of the underlying principles has evolved in our jurisprudence. Lamer C.J. specifically noted in *Schachter* that "whether to delay the application of a declaration of [invalidity] should . . . turn not on considerations of the role of the courts and the legislature, but rather on considerations . . . relating to the effect of an immediate declaration on the public" (p. 717, emphasis added).

[128] ….. Respecting the legislature cannot come at the expense of the functions the Constitution assigns to the judiciary: giving effect to constitutional rights and making determinations of law.

….

[130] In determining whether to exercise remedial discretion to suspend a declaration of invalidity, the Court should consider whether and to what extent the government has demonstrated that an immediately effective declaration would have a limiting effect on the legislature's ability to set policy. In the vast majority of cases, as Bruce Ryder recognizes, "[a] suspended declaration neither enlarges nor diminishes the range of constitutional choices open to a legislature" (p. 285)… By contrast, there may be some cases where an immediate declaration could create legal rights that could narrow the range of constitutional policy choices available to the government or undermine the effectiveness of its policy choices. As I shall explain, this case offers an example of a situation in which the legal rights created by the declaration of invalidity could undermine the effectiveness of the legislature's policy choices. Even so, avoiding such restrictions on the ability to legislate is but a relevant consideration, and may not be sufficient to justify a suspension of invalidity.

[131] The benefit achieved (or harm avoided) by the suspension must then be transparently weighed against countervailing fundamental remedial principles, namely the principles that Charter rights should be safeguarded through effective remedies and that the public has an interest in constitutionally compliant legislation. This includes considering factors such as the significance of the rights infringement (*Bedford*, at para. 167) — for example, the weight given to ongoing rights infringement will be especially heavy when criminal jeopardy is at stake — and the potential that the suspension will create harm such as legal uncertainty (Leckey, at pp. 594-95). Albeit in different constitutional contexts, the Constitutional Courts of South Africa and Germany have similarly recognized that the propriety of a constitutional remedy short of an immediate declaration of invalidity is a question of balancing the harms of failing to immediately protect rights against the harms of an immediate declaration.

[132] However, a balancing approach does not mean that suspensions will be easier to justify. A categorical approach may have been intended to provide narrow circumstances in which an unconstitutional law may continue to apply temporarily, but it has not had that effect. A balancing approach permits courts to engage with the underlying principles and ensure that a delayed declaration is not ordered unless there are compelling reasons to do so. The appropriate balance will result in suspensions only in rare circumstances…

[133] ….that the government bears the onus of demonstrating that the importance of another compelling interest grounded in the Constitution outweighs the continued breach of constitutional rights. In each case, the specific interest, and the manner in which an immediate declaration would endanger that interest, must be identified and, where necessary, supported by evidence. Suspensions of declarations of invalidity will be rare. Indeed, this aligns with this Court's recent practice. This Court has not suspended the effect of a declaration of invalidity since its decision in *Carter* over five years ago, making 13 immediately effective declarations that legislation was of no force or effect for violating the Charter over that period.[9]

[134] When deciding whether to grant a suspension, a court must also determine its length. ….

[135] In my view, the onus to demonstrate the appropriate length of time remains with the government and there is no "default" length of time such as 12 months. ….It is the government's responsibility to make a case for the length of the suspension it seeks.

[136] I add this. My colleagues contend that s. 33 of the *Charter* is an express and, thus, more legitimate source of authority that allows Parliament or a provincial legislature to suspend the effect of a declaration of invalidity. Since the Constitution gives Parliament and the provincial legislatures this power, my colleagues suggest that suspension is legislative in nature and at odds with the judicial role.

[137] This is an unsustainable proposition. ….. Court-ordered suspension leaves Parliament and the legislatures free to respond to the declaration of invalidity, including by using s. 33. The court cannot shirk its responsibility to remedy constitutional violations simply because s. 33 permits Parliament or a legislature to exceptionally override certain Charter rights and freedoms.

[138] The court has the authority — and responsibility — to determine whether a declaration of invalidity should be suspended. It is not for the courts to direct or encourage Parliament and the provincial legislatures to use their exceptional authority to override Charter rights and freedoms.

[139] In sum, the effect of a declaration should not be suspended unless the government demonstrates that an immediately effective declaration would endanger a compelling public interest that outweighs the importance of immediate constitutional compliance and an immediately effective remedy for those whose Charter rights will be violated. The court must consider the impact of such a suspension on rights holders and the public, as well as whether an immediate declaration of invalidity would significantly impair the legislature's democratic authority to set policy through legislation. The period of suspension, where warranted, should be long enough to give the legislature the amount of time it has demonstrated it requires to carry out its responsibility diligently and effectively, while recognizing that every additional day of rights violations will be a strong counterweight against giving the legislature more time.

(5) Individual Remedies — Exemptions From Suspensions

[140] Where a declaration of invalidity is suspended, it often raises the issue of whether the claimant should receive an individual remedy or exemption from that suspension. The Attorney General argues that individual exemptions from suspensions should not be granted except in extreme circumstances where the claimant will not benefit from the declaration absent an exemption. He says individual exemptions create uncertainty and undermine the rule of law by applying laws to everyone except the claimants who challenged them. He says granting individual exemptions usurps the role of the legislature by imposing judicial discretion where the statute precludes it.

….

[142] …s. 24(1) is too flexible to be restricted in this way. As other jurisprudence of this Court suggests, individual exemptions from suspensions will often be an "appropriate and just" remedy when an individual claimant has braved the storm of constitutional litigation and obtained a declaration whose benefit "enures to society at large" (*Demers*, at para. 99, per LeBel J.). On the other hand, where an exemption would undermine the rationale for the suspension, this will be a strong countervailing factor against granting an exemption.

….

[144] This Court has said that to be "appropriate and just", a s. 24(1) remedy should meaningfully vindicate the right of the claimant, conform to the separation of powers, invoke the powers and function of a court, be fair to the party against whom the remedy is ordered, and allow s. 24(1) to evolve to meet the challenges of each case (*Doucet-Boudreau*, at paras. 55-59). In particular, an effective remedy that meaningfully vindicates the rights and freedoms of the claimant will take into account the nature of the rights violation and the situation of the claimant, will be relevant to the claimant's experience and address the circumstances of the rights violation, and will not be "smothered" in procedural delays and difficulties (para. 55). The court's approach to s. 24(1) remedies must stay flexible and responsive to the needs of a given case (para. 59).

[145] This Court's jurisprudence makes clear that granting individual remedies while the effects of declarations of invalidity are suspended can be appropriate and just. ….

[146] A rule that individual claimants cannot be exempted from suspensions of declarations of invalidity would improperly fetter the broad discretion afforded under s. 24(1) of the Charter for courts to grant remedies they "conside[r] appropriate and just in the circumstances." [and] would often be unfair to the claimant, especially given that it is a court's decision to grant a suspension that makes the individual remedy necessary. ….

[147] ….. The importance of safeguarding constitutional rights weighs heavily in favour of an individual remedy. The concern for vindicating individual rights with effective remedies reaches back to Blackstone and Dicey, and continues to have force in the present day.

[148] Exempting only the claimant from a suspension may appear unfair at first glance. But the claimant is not in the same position as others subject to the impugned law in a key respect: the claimant who brings a successful constitutional challenge has done the public interest a service by ensuring that an unconstitutional law is taken off the books — the claimant has pursued the "right of the citizenry to constitutional behaviour by Parliament" . While, as the Attorney General submits, it is in the public interest for laws to apply to everyone uniformly, immediate remedies for claimants are also in the public interest. The practical realities of bringing a constitutional challenge may reduce the incentive for rights claimants to bring cases that carry substantial societal benefits. Individual exemptions can temper any further disincentive caused by suspensions. As a result, courts should focus not only on the case or legislation before them, but also encourage Charter compliance in the long term through their s. 24(1) remedies.

[149] [T]here must be a compelling reason to deny the claimant an immediately effective remedy. Two examples seem apparent.

[150] First, a court must consider whether and to what degree granting an exemption in the claimant's particular circumstances would undermine the interest motivating the suspension in the first place. Thus, the ability of the legislature to fashion policy responses to the declaration and the public interest in the interim operation of the legislation will be important considerations in determining whether an exemption can be granted. For example, when the effect of a declaration is suspended to protect public safety, an individual exemption would not be appropriate and just if it would endanger public safety. Evidence of the individual claimant's situation, which the court will likely have, will inform whether this is the case.

[151] Second, courts may also have a compelling reason to refrain from granting an individual exemption where practical considerations like judicial economy make it inappropriate to do so. For instance, if a large group or class of claimants comes forward, it may not be practical — or even possible — to conduct the individual assessments necessary to grant them all individual exemptions.

[152] …. …. Thus, if an exemption is otherwise appropriate and just, [claimants] should be exempted from suspensions in the absence of a compelling reason not to. Exemptions from suspensions will often be necessary to balance the interests of the litigant, the broader public, and the legislature.

[paras 153-159 appear in the earlier excerpt from Ontario A.G. v G., found *here*]…..

(7) Application to This Case

(a) What Form and Breadth Should the Remedy Take?

[160] The first step in determining the breadth and form of a s. 52(1) remedy is determining the extent of the law's inconsistency with the Charter…

[161] Here, Christopher's Law limits s. 15(1) of the Charter by requiring those found NCRMD to comply with the sex offender registry upon discharge without providing them with any opportunities for exemption and removal based on individualized assessment. It draws distinctions based on the enumerated ground of mental disability by extending opportunities for exemption and removal to those found guilty of a sexual offence but denying them to those found NCRMD. Those distinctions are discriminatory because they perpetuate the historical and enduring disadvantage experienced by persons with mental illnesses.

[162] The s. 15(1) infringement was found not to be minimally impairing of the right because making any form of individualized assessment that could lead to exemption and removal available to those found NCRMD would be less impairing of the right.

[163] Turning to the second step, a court must determine whether a tailored remedy would be appropriate, rather than a declaration of invalidity applying to the whole of the challenged law.

[164] Given the limited and precisely defined nature of the violation in the context of the overall scheme of the sex offender registry, some form of tailored remedy was clearly appropriate to respond to the unconstitutionality. The legislature would no doubt have enacted Christopher's Law to apply to those convicted of a sexual offence even if it could not include those found NCRMD and granted a discharge.

[165] In this case, reading in an individualized assessment requirement would intrude on the legislative sphere — there are many ways to provide for such an assessment and "it is the legislature's role to fill in the gaps, not the court's" (*Schachter*, at p. 705).

[166] On the other hand, a declaration reading down Christopher's Law such that it is of no force or effect to the extent it applies to everyone unconstitutionally affected effectively vindicates rights without interfering with aspects of the statute's operation unaffected by the finding of unconstitutionality. Granting a tailored remedy here will better protect the public's interest in legislation enacted for its benefit and will better respect the role of the legislature, while also safeguarding Charter rights and realizing the public's interest in constitutionally compliant legislation.

…

(b) Was the Effect of the Declaration Properly Suspended?

…

[172] The Attorney General has identified public safety as the public interest that justifies a suspension. The importance of this interest, and its appropriate weight in the analysis, is informed by the danger posed by those found NCRMD of sexual offences and granted absolute discharges by a provincial review board.

[173] The Criminal Code requires provincial review boards to absolutely discharge any person found NCRMD who does not pose a significant risk of committing a serious criminal offence (*Winko*, at para. 57). If a person poses that type of risk, the review board may discharge them subject to conditions it considers appropriate (Criminal Code, s. 672.54(b)). The review board's "paramount consideration" in making any disposition is public safety.

[174] The application judge found those discharged after an NCRMD finding to be at a statistically higher risk of offending than the general population. Those who are absolutely discharged therefore may pose some elevated risk of committing criminal offences. …..

[175] The application judge found that the registry contributed to public safety by enhancing the ability of police to prevent and investigate sexual offences. Immediately relieving a group of people who may pose some risk of committing sexual offences from the obligation to report or permitting them to seek removal of their information could detract from this enhanced ability. The threat to public safety is therefore

meaningful. However, given that persons found NCRMD who pose the highest demonstrable risk to reoffend are not given absolute discharges, this threat is limited.

[176] The other public interest at stake is respect for the legislature's ability to enact its preferred rights-respecting scheme. Granting an immediate declaration of invalidity could risk compromising the legislature's ability to fulfil its role as policymaker because allowing everyone found NCRMD of a sexual offence and absolutely discharged to be removed from the sex offender registry could restrict the effectiveness of the new version of Christopher's Law eventually enacted by the Ontario legislature in response to these reasons. Identifying those individuals and requiring them to register and report again — or to undergo individualized assessment of some kind — would likely be impracticable because their information simply would not be retained in the interim.

[177] Balanced against these considerations is the significance of the rights violation that the suspension would temporarily prolong. Christopher's Law treats those found NCRMD and discharged in accordance with a persistent, demeaning stereotype. The law compels them to report in person to a police station, subjects them to the spectre of random police checks at their residence, and retains their personal information without providing an opportunity to determine whether they pose sufficient risk to justify that intrusion on their liberty and privacy. Importantly, granting a suspension also runs counter to the public's interest in constitutionally compliant legislation.

[178] Here, there is an ongoing threat to public safety, although it is limited as the group of individuals whose information would no longer be tracked consists entirely of persons who the Review Board has deemed do not pose a significant threat to public safety. The legislature's ability to address that gap in public safety would, however, be appreciably restricted by an immediate declaration. This is a close call. But on balance, the combination of these two legitimate interests (public safety and preserving the legislature's latitude to respond to the finding of unconstitutionality) justifies temporarily depriving those affected of the immediate benefit of this judgment and allowing the violation to persist.

[179] The parties agree with the 12-month suspension ordered by the Court of Appeal. I see no basis to interfere with that determination. However, in future, courts will expect more detailed submissions on the length of time required.

(c) Should G Have Been Exempted From the Suspension?

[180] The final question is whether it was appropriate and just to exempt G from the suspension. The Attorney General submits that, because of a lack of "expert forensic risk assessment", it was not.

[181] Although judges may not have the expertise to conduct such forensic assessments themselves, they are well-suited to deciding and frequently charged with making determinations relating to public safety and risk in other contexts, including those that lead to exemption and removal from the sex offender registry. When judges decide whether to absolutely or conditionally discharge someone found guilty of an offence, they consider the best interests of the accused and the public interest (Criminal Code, s. 730). Further, a judge deciding whether to make a termination or exemption order in respect of a person subject to the federal sex offender registry must determine whether the impact of compliance on the applicant "would be grossly disproportionate to the public interest in protecting society through the effective prevention or investigation of crimes of a sexual nature" (Criminal Code, ss. 490.016(1) and 490.023(2); Bill C-16, Sex Offender Information Registration Act, 3rd Sess., 37th Parl., 2004, s. 20). These are not decisions that require expert forensic evidence. …

[182] The Court of Appeal granted G an individual exemption from Christopher's Law. … The exercise of the court's discretion deserves deference. The ORB, an expert tribunal, determined that G was not at significant risk of committing a serious criminal offence 17 years ago. His record since his release has been spotless and there is no indication that he poses a risk to public safety. An exemption would ensure he receives an effective remedy — nearly six years have passed since he filed his notice of application and his case has been argued in three levels of court.

[183] The individual exemption to the suspension by definition lasts only as long as the suspension by itself. Whether G will be caught by new legislation, while highly unlikely, will depend on whether he comes within its terms. Courts cannot grant an exemption to legislation that has not yet been enacted, because they cannot predict the outcome of the legislative process.

…

2.4.2 R. v. Albashir, 2021 SCC 48 (citations omitted): Are suspended declarations retroactive or purely prospective?

***December 20, 2013*:** In *Canada (Attorney General) v. Bedford*, 2013 SCC 72 (CanLII), [2013] 3 SCR 1101, https://canlii.ca/t/g2f56, the Supreme Court of Canada declared Section 210, as it relates to prostitution, and ss. 212(1)(j) and 213(1)(c) inconsistent with the Canadian Charter of Rights and Freedoms and hence void. The word "prostitution" was struck from the definition of "common bawdy-house" in s. 197(1) of the Criminal Code as it applies to s. 210 only of the Criminal Code invalid. The Court suspended the declaration of invalidity for one year.

March 15, 2014-December 5, 2014: Albashir said to have committed offences under one of the provisions challenged in Bedford, s.212.(1)(j) ("Every one who (j) lives wholly or in part on the avails of prostitution of another person, is guilty of an indictable offence and liable to imprisonment for a term not exceeding ten years").

December 22, 2016: Albashir and two co-accused were charged under the provisions declared invalid in *Bedford*, and some newer provisions, for offences committed between March 15, 2014 and December 5, 2014, during the suspension period.

***January 29, 2018*:** Conclusion of trial. "At the trial [(2018 BCSC 736 (Masuhara J) *unpublished*] the judge quashed two counts on the indictment that charged the appellants under s. 212(1)(j) (counts 6 and 13). He did so because he found that although the appellants committed these offences while Bedford's declaration of non-constitutionality was suspended, they could not be convicted and sentenced for an offence that did not meet constitutional requirements". (*R. v. Mohsenipour,* 2023 BCCA 6 (CanLII), <https://canlii.ca/t/jtstm> at 11].

On appeal the BCCA restored the conviction (2020 BCCA 160). Albashir and Mohsenipour appealed to the Supreme Court of Canada.

The judgment of Wagner C.J. and Abella, Moldaver, Karakatsanis, Côté, Martin and Kasirer JJ. was delivered by

Karakatsanis J. —

[1] *Ontario (Attorney General) v. G*, *2020 SCC 38*, this *Court* provided a framework for identifying those exceptionally rare cases where a declaration of constitutional invalidity should be temporarily suspended to permit the legislature to respond. A suspended declaration is only justified where a compelling public interest, grounded in the *Constitution*, outweighs the harms of temporarily maintaining the unconstitutional law. This case requires us to determine the legal consequences of suspending declarations of invalidity of a criminal offence. In particular, can persons who commit that offence prior to the expiry of the suspension be convicted once the suspension expires and the declaration takes effect? The answer depends on whether the declaration (or any remedial legislation) has retroactive or purely prospective application.

[2] Retroactive declarations change the law for all time, both reaching into the past and affecting the future. Once the declaration takes effect, the law is deemed to have been invalid from the moment of its enactment. Conversely, when the declaration is purely prospective, the law was valid from its enactment but is invalid once the declaration takes effect.

[3] *In Canada (Attorney General) v. Bedford* this *Court* found *s. 212(1)*(j) of the *Criminal Code, R.S.C. 1985, c. C-46*, which prohibited living on the avails of sex work, to be unconstitutionally overbroad because it criminalized non-exploitative actions that could enhance the safety and security of sex workers. … This declaration did not take immediate effect but rather was suspended for one year. The *Court* did not explicitly state whether this declaration would apply retroactively or purely prospectively at the conclusion of the period of suspension.

[4] Parliament enacted remedial legislation before the suspension expired. The former s.212(1)(j) was replaced with a new provision that prohibits obtaining a material benefit from sexual services but exempts legitimate, non-exploitative conduct. The new legislation did not include any transitional or retroactive provisions.

[5] The appellants were found by the trial judge to be parasitic, exploitative pimps during the one-year period of suspension, contrary to s. 212(l)(j). The prosecution proceeded after the suspension expired. The appellants successfully applied to quash the resulting charges at trial. The British Columbia Court of Appeal allowed the Crown's appeals…. and entered convictions on each count. The appellants now ask this *Court* to set aside the Court of Appeal's order and restore the trial judge's order quashing the counts.

[6] I would dismiss the appeals and affirm the appellants' convictions. The purpose animating the suspension *in Bedford* was to avoid the deregulation of sex work (thus maintaining the protection of vulnerable sex workers) while Parliament crafted replacement legislation. In light of that purpose, I conclude that the declaration of invalidity was purely prospective, effective at the end of the period of suspension. Thus, the appellants were liable under *s. 212(1)*(j) for their conduct during the suspension period, and could be charged and convicted under this provision even after the suspension expired.

[7] The temporal application of a declaration is grounded in foundational constitutional principles and the presumptions to which they give rise.

[8] As I shall explain, judicial declarations are presumptively retroactive but that presumption is rebutted when retroactivity would defeat the compelling public interests that required the suspension. However, this does not leave those who may be personally prejudiced by a *Charter* breach during the suspension without a remedy. Where the remedial declaration operates prospectively, the findings of unconstitutionality by this *Court* can operate retroactively in individual cases, giving remedial effect to both *s. 24(1)* of the *Charter* and *s. 52(1)* of the *Constitution Act, 1982*. Such a result respects the constitutional roles of both the legislature and the judiciary, ensures that the public and vulnerable persons maintain the protections of the criminal law, ensures that Parliament has the option to design a specific regime, and gives remedial protection to those whose *Charter* rights have been violated.

….

I. Background

A. *Bedford* and Responding Legislation

[10] On December 20, 2013, this *Court* released its *decision in Bedford*. ….

…

[12] Two weeks before the suspension expired, Parliament enacted remedial legislation, replacing the living on the avails offence with the offence of obtaining a material benefit from sexual services provided for consideration: *Criminal Code, s. 286.2*. The new offence includes a number of exceptions but they do not apply in abusive or exploitative situations: *Criminal Code, s. 286.2(5)*. Parliament did not state whether the amendments were to apply retroactively or prospectively.

B. Supreme Court of British Columbia, *2018 BCSC 736 (Masuhara J.)*

[13] About two years after the declaration took effect, the appellants, Tamim Albashir and Kasra Mohsenipour, were charged with numerous offences arising out of an "escort" operation. They managed practically all aspects of the operation — clients, service locations, advertising, supplies, and transportation.

…

[15] …., on the trial judge's findings the appellants were precisely the type of "controlling and abusive pimps" that were the legitimate targets of the living on the avails offence: *Bedford*, at para. 142.

[16] Despite that, the trial judge … quashed the charges because, once the *Bedford* suspension expired, the offence was unconstitutional.

[17] The trial judge relied on this Court's decision in *Canada (Attorney General) v. Hislop*, 2007 SCC 10, [2007] 1 SCR 429, as saying that suspended s. 52(1) declarations have a "delayed retroactive effect", unless the court clearly states otherwise: para. 345. Thus, "[o]nce the suspension expires, the law will always have been unconstitutional" and the effect of the *Bedford* suspension expiring was that "s. 212(1)(j) has always been invalid": paras. 345 and 350.

…

II. Analysis

…

[25] The key issue on appeal is whether s. 212(1)(j) was retroactively invalid such that it could not subsequently ground a conviction. The answer to this turns on the temporal nature of judicial remedies. I will then consider the relationship between a declaration of invalidity under s. 52(1) and individual remedies under s. 24(1).

A. Temporal Nature of Remedies

[26] When a court makes a declaration of invalidity under s. 52(1), the temporal effect of that constitutional remedy is rooted in the nature of the remedy itself. Constitutional remedies must be purposively interpreted in their "proper linguistic, philosophic and historical contexts". They must also be interpreted in a "generous and expansive" manner that is sensitive to evolving circumstances.

[27] When legislation violates a Charter right, three foundational constitutional principles guide the interpretation of constitutional remedies: constitutionalism, the rule of law, and the separation of powers.

…

[29] This supremacy clause [s.52(1)] has existed in other forms since Canada's original constitution, the Constitution Act, 1867. The Canadian judiciary's role in reviewing the constitutionality of legislation thus has a considerable history.

[30] When a court finds legislation to be inconsistent with the Constitution, it must consider not only the principle of constitutional supremacy in s. 52(1), but other — at times competing — constitutional imperatives to determine an appropriate remedy. In this way, courts are also guided in their remedial discretion by the principles of the rule of law and the separation of powers. They can take into account, for example, the

entitlement of the public to the benefit of legislation, as well as the different institutional roles that courts and legislatures are called to play: *G*, at para 94.

[31] Thus, despite the absolute language of s. 52(1), when a court exercises its remedial jurisdiction to grant a declaration of unconstitutionality, it has discretion to give the principle of constitutional supremacy immediate effect or to suspend the declaration for a given period of time: G, at paras. 120-21. In rare circumstances, a compelling public interest will warrant a suspension, although this suspension must not last longer than is necessary for the government to address the constitutional infirmity: G, at paras. 132 and 135.

…

[33] Unlike a formal declaration under s. 52(1) that renders the legislation invalid, s. 24(1) is an entirely personal remedy that can only be invoked by a claimant alleging a violation of their own constitutional rights: R. v. Ferguson, 2008 SCC 6, [2008] 1 SCR 96, at para. 61.

…

[35] There is a strong presumption against retroactive application of legislation because the rule of law requires that people be able to order their affairs in light of an established legal order: R. Sullivan, Statutory Interpretation (3rd ed. 2016), at p. 354. As Professor Sullivan aptly puts it, when legislation is retroactive, "the content of the law becomes known only when it is too late to do anything about it": p. 354. Even so, the rule of law does not prohibit retroactive legislation. When they can do so within the confines of the Charter (for example, when it does not offend the protections of s. 11(g) or (i)), legislatures can decide how and when their laws will apply. It may thus be open to them to correct a constitutional infirmity retroactively.

…

[37] No one in this case has argued that the remedial legislation was intended to be retroactive. Thus, in the absence of retroactive legislative intent either explicitly or by necessary implication, the strong presumption that legislation is prospective is not challenged.

[38] Whereas the rule of law dictates a presumption that legislation is prospective, the inverse is true for judicial remedies. Generally, legal determinations of this Court are effective immediately, and all courts are bound to apply this Court's decisions about the constitutional infirmities of legislation in outstanding matters before them. In this sense, this Court's decisions are retroactive, applying even to cases arising before the decision. As one author notes, "it is the basic role of courts to decide disputes after they have arisen. That function requires that judicial decisions operate (at least ordinarily) with retroactive effect".

[39] When a court makes a s. 52(1) declaration of invalidity, the same presumption of retroactivity arises. The appellants say that this arises from the Blackstonian theory that judges do not create but merely discover the law so that a constitutionally invalid law is "invalid from the moment it is enacted".

[40] A strict Blackstonian theory, however, cannot easily be reconciled with modern constitutional law. Many fundamental principles that are essential to our constitutional system curtail the retroactive reach of judicial remedies. Res judicata, for example, prevents the reopening of settled matters due to later judicial pronouncements, even maintaining convictions for offences later declared unconstitutional if the accused has exhausted their appeals such that they are no longer "in the judicial system". Similarly, the *de facto* and qualified immunity doctrines validate and preclude financial liability for government actions taken under laws that are later found to be unconstitutional. These doctrines balance the generally retroactive nature of judicial remedies with the need for finality and stability. Finally, it is also difficult to square the Blackstonian view with the judicial discretion to suspend a declaration of invalidity: *G*, at paras. 87-89. Thus, the theory is subject to numerous exceptions and qualifications. It cannot preclude purely prospective constitutional remedies. ….

[41] That said, the general presumption that declarations of constitutional invalidity have retroactive effect is firmly rooted in principles of constitutional interpretation and s. 52(1).

[42] Section 52(1), the cornerstone of constitutionalism, enshrining the supremacy of the Constitution, must be read in light of all constitutional principles. A s. 52(1) declaration will generally be both immediate and retroactive. Retroactive remedies that immediately apply to everybody who is still "in the system" maximize the protection and vindication of Charter rights, as a general system of delayed prospective remedies would risk leaving those harmed in the past by an unconstitutional law without a remedy. Furthermore, legislatures would have lesser incentives to ensure that new legislation complies with the Charter if they could rely on the second chances provided by consequence-free prospective declarations.

…

B. Temporal Nature of Suspended Declarations

[44] When compelling public interests outweigh the continued violation of Charter rights, courts may suspend a declaration of invalidity: *G*, at paras. 117 and 126. The tool of a suspended declaration allows courts to temper the retroactive effects of a declaration. However, a court's decision to suspend a declaration does not alter the presumptively retroactive application of the declaration but merely changes when it comes into effect. The presumption of retroactivity persists, although it may be rebutted explicitly or by necessary implication. For example, this Court's first experience issuing a suspended declaration of invalidity was in *Manitoba Language Reference*. Nearly all of Manitoba's legislation was found to be unconstitutional because it was enacted in English only. Because an immediate retroactive remedy would have created a legal vacuum in Manitoba, with catastrophic consequences for the rule of law, the Court suspended its declaration of invalidity to give the legislature time to pass new, constitutionally sound laws: p. 758. Nonetheless, the declaration was retroactive.

[45] In *Hislop*, this Court explained some circumstances where "judges may rule prospectively": para. 96. In these circumstances, the presumption of retroactivity is rebutted and a s. 52(1) declaration will operate prospectively. A prospective remedy could be appropriate if there is a "substantial change in the law": para. 99. ….

[46] In my view, a suspended declaration of invalidity may provide another exception to the presumption of retroactivity where the purpose of the suspension, by necessary implication, requires a purely prospective declaration. Suspended declarations will only issue where the government demonstrates that compelling public interests, grounded in the Constitution, outweigh the continued breach of constitutional rights and require that the legislature have an opportunity to remedy the constitutional infirmity. Furthermore, declarations of invalidity will be issued only if more tailored remedies, such as reading in, reading down, or severance, are inappropriate. When these rare and exceptional circumstances arise, a retroactive application of the declaration at the conclusion of the suspension could frustrate the purpose — the compelling public interests — that required a period of transition, creating uncertainty and removing the protection that justified the suspension in the first place. The necessary implication of the suspension may be that the declaration, when it comes into effect, must operate purely prospectively so that it does not defeat the very purpose of the suspension.

[47] The appellants suggest that concerns with self-defeating retroactive declarations can be alleviated by Parliament enacting retroactive remedial legislation. Ultimately, however, the choice of whether to make remedial legislation retroactive belongs to the legislature. ….

[48] … the courts must exercise their duty to craft coherent, principled s. 52(1) remedies that give effect to the interests and the various foundational principles of the Constitution at stake — including when establishing the temporal application of a declaration.

[49] The appellants further submit that a declaration cannot be prospective unless the court explicitly directs. While such precision is strongly advised, this Court has rarely stated explicitly when a declaration will apply purely prospectively. … the necessary implications of transition periods or suspended declarations of invalidity demonstrate that, even in the absence of explicit language, the Court's declaration operates purely prospectively.[1]

[50] For example, in *R. v. Brydges*, 1990 CanLII 123 (SCC), [1990] 1 SCR 190, this Court found that the right to counsel under s. 10(b) of the Charter includes the right to be informed of the existence and availability of legal aid and duty counsel: p. 211. Recognizing that police officers generally fulfilled their informational duties by reading from printed caution cards, the declaration was suspended for 30 days to allow police departments across Canada to prepare new caution cards that included information about legal aid and duty counsel: p. 217. The prospective application of this declaration is necessarily implied from the reason for the suspension. It would have defeated the purpose of the suspension to suspend the declaration because police officers could not realistically comply with the judgment for the next 30 days, only to then have the declaration apply retroactively to everybody detained in the previous 30 days.

[51] Suspended declarations invalidating legislation have also operated in this way. For example, in *R. v. Bain*, 1992 CanLII 111 (SCC), [1992] 1 SCR 91, this Court held that the Crown's disproportionate number of juror stand-asides was unconstitutional, but suspended that declaration for six months to "avoid a hiatus": p. 104. Again, the necessary implication of the suspension was that the declaration applied purely prospectively. A retroactive application, invalidating any juries selected during the suspension period, would have defeated the very purpose of the suspension.

…

[53] …. *G* emphasized the importance of transparently explaining the reasons for suspending a s. 52(1) declaration: paras. 125-26 and 159. …. I would expect courts in the future to explicitly state the temporal application of their s. 52(1) declarations to avoid any confusion. ….

C. Temporal Nature of the Bedford Suspended Declaration

[54] ….. The key issue in this case is whether, in the absence of explicit language, the presumption of retroactivity is rebutted by necessary implication. In my view, the purpose of the *Bedford* suspension required the declaration to operate purely prospectively.

[55] The *Bedford* suspension emanated from a concern about immediately leaving sex work entirely unregulated: para. 167. A retroactive declaration would have rendered the regulatory system of criminal offences that was maintained by the suspension entirely unenforceable once the suspension expired, undermining the protection of the vulnerable victims that was at the root of the finding of unconstitutionality and defeating the purpose of the suspension.

[56] Nor would a retroactive declaration have given effect to and vindicated Charter rights. …the Court issued a declaration of invalidity rather than reading the provisions down, recognizing that a judicially crafted exclusion for non-exploitative protective services could have unforeseen impacts on other aspects of the regulatory scheme: para. 165. The suspension temporarily maintained in effect both the constitutional "protection" and unconstitutional "prevention" aspects of the offence…. Far from vindicating the Charter rights of sex workers, as *Bedford* sought to do, a retroactive declaration would have gravely imperiled those rights.

[57] Conversely, prospective application is far more consonant with the purpose of the Bedford suspension and more protective of sex workers' rights. As *Bedford* intended, the status quo regulation continued for one year. In that time, sex workers retained the full protection of the criminal law against parasitic and exploitative conduct, thus providing them the benefit of the law.

[58] Given the purely prospective nature of the declaration in *Bedford*, the specific challenge in this case is to determine what happens to those who committed the *Bedford* offences prior to the expiry of the suspension. Any answer involves some degree of legal uncertainty. This uncertainty reinforces why suspensions must be rare. Where suspensions are necessary, the court should also consider whether any measures during the suspension may minimize the impact of the ongoing Charter breaches. …. Of course, the legislature can always legislate a different approach, including retroactively, within the confines of the Constitution.

D. Protection of Rights Under Prospective Remedies

…

Remedies Available Following a Prospective Declaration

[62] While s. 52(1) is the usual remedy against unconstitutional laws and s. 24(1) is "generally used" against unconstitutional acts, both can be combined to provide relief in cases where it is appropriate to do so: *Ferguson*, at paras. 59-60 and 63. A declaration under s. 52(1) provides general relief against the law, whereas an individual remedy under s. 24(1) — such as an exemption or a stay of proceedings — can mitigate the effects of that law or of actions taken under the law in specific cases. In *Ferguson*, this Court held that, while constitutional exemptions under s. 24(1) are not appropriate substitutes for s. 52(1) challenges to the unconstitutionality of legislation, s. 24(1) can be combined with s. 52(1) when additional relief is necessary to provide an effective remedy in a specific case: para. 63.

[63] Similarly, in *G*, this Court held that there was no rule against granting both a suspended s. 52(1) declaration and a retroactive s. 24(1) remedy. There are numerous examples in our jurisprudence of a personal constitutional remedy being granted during the period of suspension of a declaration under s. 52(1)…

[64] The same reasoning holds when the suspended declaration is prospective. This is because there is a conceptual distinction between the legal findings as to the constitutional validity of a law and the particular relief ordered…

[65] …When a judge is asked to consider whether a particular accused's Charter rights have been breached under s. 24(1), the constitutional findings of this Court are binding, even when the declaration itself is not operative. While this Court's decision to suspend the declaration or to make it purely prospective keeps the law temporarily alive so as not to create a legal vacuum that would compromise compelling public interests, this does not preclude personal remedies for violations of Charter rights before the coming into force of the declaration. Whether a remedy is appropriate in the circumstances is a separate question.

…

[67] Thus, s. 24(1) remedies may be available even during the period of suspension if the accused can demonstrate that conviction under the legislation found to be constitutionally infirm would be a breach of their own Charter rights, and if granting an individual remedy would not undermine the purpose of suspending the s. 52(1) declaration.

[68] Applying this reasoning to this case, a person charged under s. 212(1)(j) for conduct prior to or during the suspension may seek an individual remedy under s. 24(1). …. While the constitutional flaw related to the s. 7 rights of sex workers, this finding has direct implications for providers of security-enhancing services who are charged under s. 212(1)(j). The liberty of these accused is put in jeopardy, despite the

finding in Bedford that this aspect of the living on the avails offence bears no relation to its purpose.

[69] This risk may be mitigated through a personal remedy under s. 24(1). …. when an application judge finds as a fact that the accused before them acted within the safety-enhancing unconstitutional overbreadth overbreadth, s. 24(1) may be available to stay the charges. Doing so upholds the Constitution fully and maximizes rights protection.

…

[71] In sum, the fact that the Bedford declaration was purely prospective does not mean someone will be convicted of s. 212(1)(j) in violation of their Charter rights. While the law remains valid and can ground legal convictions, no one should be convicted of the offence if its overbreadth violates their rights. However, where the conduct does not fall within the area of overbreadth identified by this Court, individuals may be charged, prosecuted, and convicted under s. 212(1)(j) for conduct that occurred while the law still governed.

III. Conclusion

[72] A suspended declaration of invalidity may be purely prospective where the purpose of the suspension requires such a temporal application. In Bedford, this Court's remedy was purely prospective, because the purpose of the suspension — avoiding deregulation that would leave sex workers vulnerable — would be frustrated by a retroactive remedy. As the remedy was purely prospective, the appellants could be charged for their conduct prior to the declaration taking effect. Thus, an accused could be convicted for conduct caught by s. 212(1)(j) before the effective date of the declaration. However, an accused who could demonstrate that their personal rights were prejudiced by the constitutional infirmity could seek relief under s. 24(1), provided their conduct did not undermine the public interests the suspension was designed to protect.

[73] Because the appellants engaged in exploitative and parasitic conduct, the exact conduct that was always legitimately criminalized, a s. 24(1) remedy is not available to them. I would dismiss the appeals.

3 Remedies under section 24(1)

3.1 General principles

In contrast to section 52, section 24(1) applies only to breaches of the Charter, but it can capture governmental actions where section 52 only applies to laws. The courts have wide discretion in deciding whether a section 24(1) remedy is appropriate at all and, if so, what form it should take. Section 24(1) can offer remedies in addition to invalidity when invalidity alone does not provide "appropriate and just" redress. A section 24(1) might apply only to the applicant, the one whose rights were breached, or the benefit of the remedy might be enjoyed more broadly.

The breadth of remedial possibilities under section 24(1) is vast. Remedies might include stopping particular actions (defensive remedies) like a ordering a stay of proceedings, declaring a law invalid, declaring a particular interpretation of government policy to be invalid, or quashing a conviction. Section 24(1) can also support affirmative remedies, including mandatory injunctions ordering particular government actions, or financial remedies

The scope of remedies under section 24(1) is not limited by those offered by the courts in the past. Some of the more creative or unexpected remedies under section 24(1) include ordering the government to provide a lawyer to a particular claimant where the failure to do so was found to breach the Charter (New Brunswick v. G(J) 1999 CanLII 653 (SCC), [1999] 3 SCR 46), and the one offered in the first case below, *Doucet-Boudreau*.

3.2 Declarations under section 24(1)

3.2.1 Little Sisters Book and Art Emporium v. Canada (Minister of Justice), 2000 SCC 69 (CanLII), [2000] 2 SCR 1120, <https://canlii.ca/t/5239> (citations omitted)

[From the headnote:]

The appellant bookstore, of which the individual appellants are the directors and controlling shareholders, carried a specialized inventory catering to the gay and lesbian community which consisted largely of books that included gay and lesbian literature, travel information, general interest periodicals, academic studies related to homosexuality, AIDS/HIV safe-sex advisory material and gay and lesbian erotica. Since its establishment in 1983, the store has imported 80 to 90 percent of its erotica from the United States. Code 9956(*a*) of Schedule VII of the *Customs Tariff* prohibits the importation of "[b]ooks, printed paper, drawings, paintings, prints, photographs or representations of any kind that . . . are deemed to be obscene under subsection 163(8) of the *Criminal Code*". At the entry level, Customs inspectors determine the appropriate tariff classification, pursuant to s. 58 of the *Customs Act*.

The classification exercise under Code 9956 largely consists of the Customs inspector making a comparison of the imported materials with the illustrated manual accompanying Memorandum D9-1-1, which describes the type of materials deemed obscene by Customs. At the relevant time, an item considered "obscene" and thus prohibited was subject (under s. 60 of the Act) to a re-determination upon request, by a specialized Customs unit, and upon a further appeal subject to a further re-determination by the Deputy Minister or designate. Once these administrative measures have been exhausted, an importer may appeal the prohibition under s. 67 of the Act to a judge of the superior court of the province where the material was seized, with a further appeal on a question of law to the Federal Court of Canada, and then with leave to the Supreme Court of Canada. Section 152(3) provides that in any proceeding under the Act the burden of proof in any question in relation to the compliance with the Act or the regulations in respect of any goods lies on the importer.

After a lengthy trial the trial judge found not only that the Customs officials had wrongly delayed, confiscated, destroyed, damaged, prohibited or misclassified materials imported by the appellant bookstore on numerous occasions, but that these errors were caused by the "systemic targeting" of the store's importations. He concluded that the Customs legislation infringed s. 2(*b)* of the *Canadian Charter of Rights and Freedoms*, but was justified under s. 1. Although he denied a remedy under s. 52(1) of the *Constitution Act, 1982*, the trial judge issued a declaration under s. 24(1) of the *Charter* that the Customs legislation had at times been construed and applied in a manner contrary to ss. 2(*b)* and 15(1) of the *Charter*. The Court of Appeal, in a majority judgment, dismissed the appellants' appeal.

3.2.1.1 Majority – Binnie J

[154] In my view, the appellants have established that:

1. Section 152(3) of the *Customs Act* should not be construed and applied so as to place the onus on an importer to establish that goods are not obscene within the meaning of s. 163(8) of the *Criminal Code*. The burden of proving obscenity rests on the Crown or other person who alleges it.

2. The rights of the appellants under s. 2(*b)* and s. 15(1) of the *Charter* have been infringed in the following respects:

(a) They have been targeted as importers of obscene materials despite the absence of any evidence to suggest that gay and lesbian erotica is more likely to be obscene than heterosexual erotica, or that the appellants are likely offenders in this regard;

(b) In consequence of the targeting, the appellants have suffered excessive and unnecessary prejudice in terms of delays, cost and other losses in having their goods cleared (if at all) through Canada Customs;

(c) The reasons for this excessive and unnecessary prejudice include:

(i) failure by Customs to devote a sufficient number of officials to carry out the review of the appellants' publications in a timely way;

(ii) the inadequate training of the officials assigned to the task;

(iii) the failure to place at the disposal of these officials proper guides and manuals, failure to update Memorandum D9-1-1 and its accompanying illustrative manual in a timely way, and the failure to develop workable procedures to deal with books consisting mostly or wholly of written text;

(iv) failure to establish internal deadlines and related criteria for the expeditious review of expressive materials;

(v) failure to incorporate into departmental guides and manuals relevant advice received from time to time from the Department of Justice;

(vi) failure to provide the appellants in a timely way with notice of the basis for detention of publications, the opportunity to make meaningful submissions on a re-determination, and reasonable access to the disputed materials for that purpose; and

(vii) failure to extend to the appellants the equal benefit of fair and expeditious treatment of their imported goods without discrimination based on sexual orientation.

[155] It is apparent that this catalogue particularizes in greater detail the declaration issued by the trial judge, namely:

THIS COURT DECLARES that Tariff Code 9956(a) of Schedule VII and s. 114 of the *Customs Tariff*, S.C. 1987, c. 41 (3rd Supplement) and ss. 58 and 71 of the *Customs Act*, S.C. 1986, c. 1 (2nd Supplement) have at times been construed and applied in a manner contrary to s. 2(b) and s. 15(1) of the *Canadian Charter of Rights and Freedoms*.

…

[157] Having rejected that s. 52 argument, except as to the reverse onus provision, the remaining question is whether the Court should attempt to fashion a more structured s. 24(1) remedy. I conclude, with some hesitation, that it is not practicable to do so. The trial concluded on December 20, 1994. We are told that in the past six years, Customs has addressed the institutional and administrative problems encountered by the appellants. In the absence of more detailed information as to what precisely has been done, and the extent to which (if at all) it has remedied the situation, I am not prepared to endorse my colleague's conclusion that these measures are "not sufficient" (para. 262) and have offered "little comfort" (para. 265). Equally, however, we have not been informed by the appellants of the specific measures (short of declaring the legislation invalid or inoperative) that in the appellants' view would remedy any continuing problems.

[158] The most detailed suggestion the appellants have made in the way of a s. 24(1) remedy is the following request:

> . . . in the final alternative an injunction restraining Customs from applying and administering the *Customs Tariff*, S.C. 1987, c. 41 (3rd Supplement) s. 114, Schedule VII, Code 9956(a) and the *Customs Act*, S.C. 1986 (2nd Supp.), s. 58 and s. 71, as amended, permanently or until such time as there is no risk that the unconstitutional administration will continue.

The first branch of the proposed injunction ("permanently") amounts to a s. 52 declaration of inoperability, which I do not consider justified. The second branch ("until such time") sets an unrealistic standard ("no risk"). If diluted to a call for constitutional behaviour, the result would add little to the general duty that falls on any government official to act in accordance with the Constitution, injunction or no injunction, and would scarcely advance the objectives of either clarity or enforceability. A more structured s. 24(1) remedy might well be helpful but it would serve the interests of none of the parties for this Court to issue a formal declaratory order based on six-year-old evidence supplemented by conflicting oral submissions and speculation on the current state of affairs. The views of the Court on the merits of the appellants' complaints as the situation stood at the end of 1994 are recorded in these reasons and those of my colleague Iacobucci J. These findings should provide the appellants with a solid platform from which to launch any further action in the Supreme Court of British Columbia should they consider that further action is necessary.

3.2.1.2 Dissenting in Part: Iacobucci J

[253] Given Smith J.'s finding that there were "grave systemic problems" in the administration of the law -- a conclusion with which I wholeheartedly agree -- the primarily declaratory remedy relied on by Binnie J. is simply inadequate. Systemic problems call for systemic solutions. I believe that Customs' history of improper censorship, coupled with its inadequate response to the declarations of the courts below, confirms that only striking down the legislation in question will guarantee vindication of the appellants' constitutional rights. Having concluded that the law must fall, I will offer some broad guidelines for future reform.

(i) Legislation Must Ensure Constitutional Application

[254] As was already illustrated in reviewing this Court's decisions in *Morgentaler*, *Hunter v. Southam*, and *Bain*, it is legislation itself, not merely its application, that must make an effort to ensure that constitutionally protected rights are not infringed. In this case, it is true that nothing in the Customs legislation itself forces Customs to ignore evidence of literary and artistic merit; to make decisions without even allowing written submissions from the parties affected; and to discriminate against gay and lesbian materials. However, the legislation does call for prior restraint by an investigatory rather than adjudicatory body, and does not provide for any meaningful safeguards aimed at preventing the inevitable flaws that result from such a system.

[255] Effectively, the respondents call on this Court to trust them. Our jurisprudence, most explicitly in *Bain* has consistently rejected … the government's invitation to trust them. Instead, we demanded that the legislature enact laws that affirmatively safeguarded constitutional rights, rather than leaving them to the mercy of administrators.

[256] …., the respondents' approach would mean that every unconstitutional law requires no more than a declaratory remedy; after all, Parliament is fully capable of amending a law to bring it into compliance with the Constitution at any time. I therefore disagree with Binnie J.'s conclusion that, with the exception of s. 152(3) of the *Customs Act*, a declaratory remedy is sufficient in this case. While the government is free to delegate powers, it must do so in a way that ensures -- or at the very least attempts to ensure -- that *Charter* rights will be respected.

…

(ii) Declaratory Relief Is Insufficient

[258] The need to strike down the Customs legislation as it applies to expressive materials is reinforced by comparison with the alternate remedy adopted by both the courts below, and by Binnie J. in this Court. …. [D]eclarations are often preferable to injunctive relief because they are more flexible, require less supervision, and are more deferential to the other branches of government. However, declarations can suffer from vagueness, insufficient remedial specificity, an inability to monitor compliance, and an ensuing need for subsequent litigation to ensure compliance: see *ibid*., at para. 12.320.

…

[260] … Striking down the applicability of the Customs legislation to expressive materials will not make the appellants worse off; it will fully vindicate their rights. While the appellants are admittedly not entitled to any particular legislative scheme, they are entitled to a remedy that will prevent further systematic and consistent violations of their constitutional rights. Only invalidating the impugned Customs legislation will achieve that goal.

[261] A final reason that declaratory relief is inappropriate in this case is the difficulties the appellants face in enforcing it. This case has been a massive undertaking for the appellants. Proving the constitutional violations recognized by Smith J. required the production of an enormous record. Unfortunately, if the appellants are unsatisfied with the government's compliance with the declaration affirmed by this Court, they have little choice but to try to assemble a similar record documenting the enforcement of the Customs regime since the declaration was made. This is obviously a heavy burden, and indeed unfair. A stronger remedy is necessary to vindicate the appellants' rights.

…

[267] The need for structural reform is reinforced by Customs' long history of excessive, inappropriate censorship. Before the appellants launched this case, Customs illegally prohibited depictions of anal penetration; it systematically targeted Little Sisters and other alternative bookstores; it favoured books by mainstream authors like Bret Easton Ellis and Madonna, in comparison to gay and lesbian authors; and it failed to consider artistic merit in spite of *Butler*'s clear instruction to always err on the side of protecting expressive freedom. Customs has entirely fulfilled Emerson's dire predictions of how a system of prior restraint will work in practice.

[268] These are not the kinds of problems that can be solved by simply directing Customs to behave themselves. In all the circumstances, further indulgence misses the mark; what is needed is the firm guidance that only new legislation from Parliament can provide…

…

(iv) Remedial Options

…

[274] Freedom of speech means not just the right to question the dominant political structure, but to question the dominant society and culture. Unfortunately, the Customs legislation has systematically stifled that right. I sincerely hope that Parliament will recognize this grave injustice. In that hope, I will offer several suggestions as to how the current legislative scheme could be constitutionally improved…

[275] First, I believe that new legislation must provide for a number of basic standards to properly safeguard the fundamental expressive rights at stake. At a minimum, there should be a procedure to allow citizens to be promptly informed of the fact that expressive materials which they are attempting to import have been detained, along with the preliminary reasons for this detention. The importer should then have a right to examine the detained materials and to make effective representations as to why the detained materials are not obscene. …. As pointed out by Binnie J., the onus must be on the state to establish, on a balance of probabilities, that the detained materials are in fact obscene under s. 163(8) of the *Criminal Code*. Determinations should be made in a prompt fashion, and brief reasons must be given when materials are determined to be obscene. A time limit to exhaust the administrative decision and internal appeal mechanisms should be provided, with any materials not released or prohibited within the prescribed time being automatically released. Of course, a further right of appeal must continue to exist to the superior court of a province. The goal would be to create an open, expeditious process that allows for greater interaction between the individuals affected and the state.

[276] Second, I believe that Parliament should give consideration to the establishment of a specialized administrative tribunal to expeditiously review obscenity determinations made by front-line Customs officers…

…

[279] Finally, and as a further alternative, I believe that Parliament may wish to consider relying on the criminal law to deal with the importation of obscene materials into the country in lieu of a prior restraint regime. …

[281] No doubt there are many other steps that could be taken to improve the current system. I put these suggestions forward to show that there is a variety of approaches available to Parliament to underscore the importance of ensuring Canadians have access to as many expressive materials as possible while realizing the practical constraints that are involved. Because the present regime essentially treats books like any other commodity, I hope that Parliament will review and revise the current Customs legislation to reflect the seminal importance of freedom of expression in our Canadian democracy.

IV. Conclusion

[282] In conclusion, I respectfully cannot agree with my colleague Binnie J. that the only amendment needed to the existing legislation is to shift the onus from the importer to the government. Without the opportunity for importers to make effective representations and a statutory guarantee that decisions will be made in a timely fashion, I question the significance of a shift in onus. In my opinion, the record in this appeal amply bears out Smith J.'s conclusion that there are "grave systemic" flaws in the enforcement of the Customs legislation. But I cannot agree that the remedy is simply to issue a declaration and take it on faith that Canada Customs – an agency which, it bears repeating, has a long and ignominious record of excessive censorship throughout this century – will reform its ways.

3.2.1.3 Aftermath and Access to Justice

Little Sisters Book and Art Emporium v. Canada (Commissioner of Customs and Revenue), [2007] 1 SCR 38, 2007 SCC 2 [*Little Sisters #2*], provides an important postscript to *Little Sisters #1* above. As Binnie J. foreshadowed in *Little Sisters #1* at 158, the bookstore did "consider that further action [was] necessary". However, the issue which made it back to the Supreme Court was whether Little Sisters was eligible for an advance costs award, since they could not afford the litigation costs. When the Supreme Court ruled against Little Sisters, that was the ended this round of litigation.

3.2.2 Canada (Prime Minister) v. Khadr, *2010 SCC 3 (CanLII), [2010] 1 SCR 44 (citations omitted)*

The following is the judgment delivered by THE COURT —

I. Introduction

[1] Omar Khadr, a Canadian citizen, has been detained by the United States government at Guantanamo Bay, Cuba, for over seven years. The Prime Minister asks this Court to reverse the decision of the Federal Court of Appeal requiring the Canadian government to request the United

States to return Mr. Khadr from Guantanamo Bay to Canada.

[2] For the reasons that follow, we agree with the courts below that Mr. Khadr's rights under s. 7 of the Canadian Charter of Rights and Freedoms were violated. However, we conclude that the order made by the lower courts that the government request Mr. Khadr's return to Canada is not an appropriate remedy for that breach under s. 24(1) of the Charter. Consistent with the separation of powers and the well-grounded reluctance of courts to intervene in matters of foreign relations, the proper remedy is to grant Mr. Khadr a declaration that his Charter rights have been infringed, while leaving the government a measure of discretion in deciding how best to respond. We would therefore allow the appeal in part.

II. Background

[3] Mr. Khadr was 15 years old when he was taken prisoner on July 27, 2002, by U.S. forces in Afghanistan. He was alleged to have thrown a grenade that killed an American soldier in the battle in which he was captured. About three months later, he was transferred to the U.S. military installation at Guantanamo Bay. He was placed in adult detention facilities.

[4] On September 7, 2004, Mr. Khadr was brought before a Combatant Status Review Tribunal which affirmed a previous determination that he was an "enemy combatant". He was subsequently charged with war crimes and held for trial before a military commission. In light of a number of procedural delays and setbacks, that trial is still pending.

[5] In February and September 2003, agents from the Canadian Security Intelligence Service ("CSIS") and the Foreign Intelligence Division of the Department of Foreign Affairs and International Trade ("DFAIT") questioned Mr. Khadr on matters connected to the charges pending against him and shared the product of these interviews with U.S. authorities. In March 2004, a DFAIT official interviewed Mr. Khadr again, with the knowledge that he had been subjected by U.S. authorities to a sleep deprivation technique, known as the "frequent flyer program", in an effort to make him less resistant to interrogation. During this interview, Mr. Khadr refused to answer questions. In 2005, von Finckenstein J. of the Federal Court issued an interim injunction preventing CSIS and DFAIT agents from further interviewing Mr. Khadr in order "to prevent a potential grave injustice" from occurring: *Khadr v. Canada*, 2005 FC 1076, [2006] 2 F.C.R. 505, at para. 46. ….

[6] Mr. Khadr has repeatedly requested that the Government of Canada ask the United States to return him to Canada: in March 2005 during a Canadian consular visit; on December 15, 2005, when a welfare report noted that "[Mr. Khadr] wants his government to bring him back home" (Report of Welfare Visit, Exhibit "L" to Affidavit of Sean Robertson, December 15, 2005 (J.R., vol. IV, at p. 534)); and in a formal written request through counsel on July 28, 2008.

[7] The Prime Minister announced his decision not to request Mr. Khadr's repatriation on July 10, 2008, during a media interview. The Prime Minister provided the following response to a journalist's question, posed in French, regarding whether the government would seek repatriation:

> [TRANSLATION] The answer is no, as I said the former Government, and our Government with the notification of the Minister of Justice had considered all these issues and the situation remains the same. . . . We keep on looking for [assurances] of good treatment of Mr. Khadr. (http://watch.ctv.ca/news/clip65783#clip65783, at 3'3", referred to in Affidavit of April Bedard, August 8, 2008 (J.R., vol. II, at pp. 131-32).)

[8] On August 8, 2008, Mr. Khadr applied to the Federal Court for judicial review of the government's "ongoing decision and policy" not to seek his repatriation (Notice of Application filed by the respondent, August 8, 2008 (J.R., vol. II, at p. 113)). He alleged that the decision and policy infringed his rights under s. 7 of the Charter….

III. The Issues

[11] Mr. Khadr argues that the government has breached his rights under s. 7 of the Charter, and that the appropriate remedy for this breach is an order that the government request the United States to return him to Canada.

[12] Mr. Khadr does not suggest that the government is obliged to request the repatriation of all Canadian citizens held abroad in suspect circumstances. Rather, his contention is that the conduct of the government of Canada in connection with his detention by the U.S. military in Guantanamo Bay, and in particular Canada's collaboration with the U.S. government in 2003 and 2004, violated his rights under the Charter, and requires as a remedy that the government now request his return to Canada. ….

[24] We conclude that Canadian conduct in connection with Mr. Khadr's case did not conform to the principles of fundamental justice. That conduct may be briefly reviewed. The statements taken by CSIS and DFAIT were obtained through participation in a regime which was known at the time to have refused detainees the right to challenge the legality of detention by way of habeas corpus. It was also known that Mr. Khadr was 16 years old at the time and that he had not had access to counsel or to any adult who had his best interests in mind. As held by this Court in Khadr 2008, Canada's participation in the illegal process in place at Guantanamo Bay clearly violated Canada's binding international. In conducting their interviews, CSIS officials had control over the questions asked and the subject matter of the interviews. Canadian officials also knew that the U.S. authorities would have full access to the contents of the interrogations (as Canadian officials sought no restrictions on their use) by virtue of their audio and video recording. The purpose of the interviews was for intelligence gathering and not criminal investigation. While in some contexts there may be an important distinction between those interviews conducted for the purpose of intelligence gathering and those conducted in criminal investigations, here, the distinction loses its significance. Canadian officials questioned Mr. Khadr on matters that may have provided important evidence relating to his criminal proceedings, in circumstances where they knew that Mr. Khadr was being indefinitely detained, was a young person and was alone during the interrogations. Further, the March 2004 interview, where Mr. Khadr refused to answer questions, was conducted knowing that Mr. Khadr had been subjected to three weeks of scheduled sleep deprivation….

[25] This conduct establishes Canadian participation in state conduct that violates the principles of fundamental justice. Interrogation of a youth, to elicit statements about the most serious criminal charges while detained in these conditions and without access to counsel, and while knowing that the fruits of the interrogations would be shared with the U.S. prosecutors, offends the most basic Canadian standards about the treatment of detained youth suspects.

[26] We conclude that Mr. Khadr has established that Canada violated his rights under s. 7 of the Charter.

B. Is the Remedy Sought Appropriate and Just in All the Circumstances?

[27] … The issue on this appeal is whether the breach of s. 7 of the *Charter* entitles Mr. Khadr to the remedy of an order that Canada request of the United States that he be returned to Canada. Two questions arise at this stage: (1) Is the remedy sought sufficiently connected to the breach? and (2) Is the remedy sought precluded by the fact that it touches on the Crown prerogative power over foreign affairs?

[28] The judge at first instance held that the remedy sought was open to him. … [W]e conclude that the trial judge, on the record before us, erred in the exercise of his discretion in granting the remedy sought.

[29] First, is the remedy sought sufficiently connected to the breach? …

[30] An appropriate and just remedy is "one that meaningfully vindicates the rights and freedoms of the claimants"… The first hurdle facing Mr. Khadr, therefore, is to establish a sufficient connection between the breaches of s. 7 that occurred in 2003 and 2004 and the order sought in these judicial review proceedings. In our view, the sufficiency of this connection is established by the continuing effect of these breaches into the present. Mr. Khadr's Charter rights were breached when Canadian officials contributed to his detention by virtue of their interrogations at Guantanamo Bay …. As the information obtained by Canadian officials during the course of their interrogations may be used in the U.S. proceedings against Mr. Khadr, the effect of the breaches cannot be said to have been spent. It continues to this day. As discussed earlier, the material that Canadian officials gathered and turned over to the U.S. military authorities may form part of the case upon which he is currently being held. The evidence before us suggests that the material produced was relevant and useful. There has been no suggestion that it does not form part of the case against Mr. Khadr or that it will not be put forward at his ultimate trial. We therefore find that the breach of Mr. Khadr's s. 7 Charter rights remains ongoing and that the remedy sought could potentially vindicate those rights.

…

[32] We conclude that the necessary connection between the breaches of s. 7 and the remedy sought has been established for the purpose of these judicial review proceedings.

[33] Second, is the remedy sought precluded by the fact that it touches on the Crown prerogative over foreign affairs? A connection between the remedy and the breach is not the only consideration. As stated in *Doucet-Boudreau*, an appropriate and just remedy is also one that "must employ means that are legitimate within the framework of our constitutional democracy" (para. 56) and must be a "judicial one which vindicates the right while invoking the function and powers of a court" (para. 57). The government argues that courts have no power under the Constitution of Canada to require the executive branch of government to do anything in the area of foreign policy. It submits that the decision not to request the repatriation of Mr. Khadr falls directly within the prerogative powers of the Crown to conduct foreign relations, including the right to speak freely with a foreign state on all such matters.

[34] The prerogative power is… a limited source of non-statutory administrative power accorded by the common law to the Crown: Hogg, at p. 1-17.

….

[37] The limited power of the courts to review exercises of the prerogative power for constitutionality reflects the fact that in a constitutional democracy, all government power must be exercised in accordance with the Constitution. This said, judicial review of the exercise of the prerogative power for constitutionality remains sensitive to the fact that the executive branch of government is responsible for decisions under this power, and that the executive is better placed to make such decisions within a range of constitutional options. The government must have flexibility in deciding how its duties under the power are to be discharged: see, e.g., *Reference re Secession of Quebec*, 1998 CanLII 793 (SCC), [1998] 2 SCR 217, at paras. 101-2. But it is for the courts to determine the legal and constitutional limits within which such decisions are to be taken. It follows that in the case of refusal by a government to abide by constitutional constraints, courts are empowered to make orders ensuring that the government's foreign affairs prerogative is exercised in accordance with the constitution.

….

[39] Our first concern is that the remedy ordered below gives too little weight to the constitutional responsibility of the executive to make decisions on matters of foreign affairs in the context of complex and ever-changing circumstances, taking into account Canada's broader national interests. For the following reasons, we conclude that the appropriate remedy is to declare that, on the record before the Court, Canada infringed Mr. Khadr's s. 7 rights, and to leave it to the government to decide how best to respond to this judgment in light of current information, its responsibility for foreign affairs, and in conformity with the Charter.

….

[41] In some situations, courts may give specific directions to the executive branch of the government on matters touching foreign policy. For example, in *Burns*, the Court held that it would offend s. 7 to extradite a fugitive from Canada without seeking and obtaining assurances from the requesting state that the death penalty would not be imposed. The Court gave due weight to the fact that seeking and obtaining those assurances were matters of Canadian foreign relations. Nevertheless, it ordered that the government seek them.

[42] The specific facts in *Burns* justified a more specific remedy. ….

[43] The present case differs from *Burns*. Mr. Khadr is not under the control of the Canadian government; the likelihood that the proposed remedy will be effective is unclear; and the impact on Canadian foreign relations of a repatriation request cannot be properly assessed by the Court.

[44] This brings us to our second concern: the inadequacy of the record. The record before us gives a necessarily incomplete picture of the range of considerations currently faced by the government in assessing Mr. Khadr's request. We do not know what negotiations may have taken place, or will take place, between the U.S. and Canadian governments over the fate of Mr. Khadr. As observed by Chaskalson C.J. in *Kaunda v. President of the Republic of South Africa*, [2004] ZACC 5, 136 I.L.R. 452, at para. 77: "The timing of representations if they are to be made, the language in which they should be couched, and the sanctions (if any) which should follow if such representations are rejected are matters with which courts are ill-equipped to deal." It follows that in these circumstances, it would not be appropriate for the Court to give direction as to the diplomatic steps necessary to address the breaches of Mr. Khadr's Charter rights.

[45] Though Mr. Khadr has not been moved from Guantanamo Bay in over seven years, his legal predicament continues to evolve. [This evolution]… signals caution in the exercise of the Court's remedial jurisdiction.

[46] In this case, the evidentiary uncertainties, the limitations of the Court's institutional competence, and the need to respect the prerogative powers of the executive, lead us to conclude that the proper remedy is declaratory relief. A declaration of unconstitutionality is a discretionary remedy…. A court can properly issue a declaratory remedy so long as it has the jurisdiction over the issue at bar, the question before the court is real and not theoretical, and the person raising it has a real interest to raise it. Such is the case here.

[47] The prudent course at this point, respectful of the responsibilities of the executive and the courts, is for this Court to allow Mr. Khadr's application for judicial review in part and to grant him a declaration advising the government of its opinion on the records before it which, in turn, will provide the legal framework for the executive to exercise its functions and to consider what actions to take in respect of Mr. Khadr, in conformity with the Charter.

IV. Conclusion

[48] …. This Court declares that through the conduct of Canadian officials in the course of interrogations in 2003-2004, as established on the evidence before us, Canada actively participated in a process contrary to Canada's international human rights obligations and contributed to Mr. Khadr's ongoing detention so as to deprive him of his right to liberty and security of the person guaranteed by s. 7 of the Charter, contrary to the principles of fundamental justice. …

3.2.2.1 Aftermath of *Canada (Prime Minister) v. Khadr*, 2010 SCC 3 (CanLII), [2010] 1 SCR 44

Less than a week after the decision in Khadr (2010) was released in January 2010, then Foreign Affairs Minister Lawrence Cannon said that the government would not ask for Khadr's repatriation from an American detention centre in Cuba. In October 2010, Khadr accepted a plea deal in America. He has said his lawyers believed this was the only way that he could return to Canada. Khadr was not returned to Canada until 2012, at the age of 26. He remained in prison until May 2015 when he was released on bail. In July 2017 the Canadian government provided an apology and a reported $10.5m settlement.[112]

3.2.3 Association des parents de l'école Rose-des-vents v. British Columbia (Education), 2015 SCC 21 (CanLII), [2015] 2 SCR 139, <https://canlii.ca/t/gh9nr> (citations omitted)

> [65] … there is a tradition in Canada of state actors taking *Charter* declarations seriously: see, e.g., P. W. Hogg, *Constitutional Law of Canada* (5th ed. Supp.), at p. 40-37. As this Court noted in *Doucet-Boudreau*, "[t]he assumption underlying this choice of remedy is that governments will comply with the declaration promptly and fully" (para. 62)…
>
> …
>
> [67] The declaratory relief granted by the judge at the conclusion of the first phase of litigation defers to the parties, allowing them to determine among themselves the best course of action to remedy the lack of equivalence (see *Mahe*, at pp. 392-93). To the extent that there are disputes between a provincial ministry of education and a minority language school board over how best to ensure compliance with the requirements of s. 23, these disputes should be worked out between those parties whenever possible. While parents may have representation on school boards, and thus have a degree of input over school board priorities, school boards are also governmental actors. It does not play to the institutional strength of courts to have judges participate deeply in operational questions, such as detailed decisions surrounding the construction of a new school facility. In the face of competing resource demands and the imperfect realities of day-to-day management of an education system, s. 23 of the Charter requires good faith on the part of all interested parties to ensure substantive equivalence for rights holders.
>
> [68] As this Court noted in *Doucet-Boudreau*, "[f]or every school year that governments do not meet their obligations under s. 23, there is an increased likelihood of assimilation", which undermines the remedial goals of s. 23 (para. 29). The situation is urgent

3.2.4 Canada (Attorney General) v. PHS Community Services Society, 2011 SCC 44 (CanLII), [2011] 3 SCR 134, <https://canlii.ca/t/fn9cf> (citations omitted)

See other excerpts from this case in Chapter 23, Part 4.3.1.

> [146] One option would be to issue a declaration that the Minister erred in refusing to grant a further exemption to Insite in May 2008, and return the matter to the Minister to reconsider the matter and make a decision that respects the claimants' *Charter* rights.
>
> [147] However, this remedy would be inadequate.
>
> [148] The infringement at stake is serious; it threatens the health, indeed the lives, of the claimants and others like them. The grave consequences that might result from a lapse in the current constitutional exemption for Insite cannot be ignored. These claimants would be cast back into the application process they have tried and failed at, and made to await the Minister's decision based on a reconsideration of the same facts. Litigation might break out anew. A bare declaration is not an acceptable remedy in this case.
>
> [149] Nor is the granting of a permanent constitutional exemption appropriate where the remedy is for a state action, not a law. In any event, such exemptions are to be avoided: *R. v. Ferguson*, 2008 SCC 6, [2008] 1 SCR 96. Moreover, the Minister should not be precluded from withdrawing an exemption to Insite should changed circumstances at Insite so require. The flexibility contemplated by s. 56 of the *CDSA* would be lost.
>
> [150] In the special circumstances of this case, an order in the nature of mandamus is warranted. I would therefore order the Minister to grant an exemption to Insite under s. 56 of the *CDSA* forthwith. (This of course would not affect the Minister's power to withdraw the exemption should the operation of Insite change such that the exemption would no longer be appropriate.) On the trial judge's findings of fact, the only constitutional response to the application for a s. 56 exemption was to grant it. The Minister is bound to exercise his discretion under s. 56 in accordance with the *Charter*. On the facts as found here, there can be only one response: to grant the exemption. There is therefore nothing to be gained (and much to be risked) in sending the matter back to the Minister for reconsideration.
>
> [151] This does not fetter the Minister's discretion with respect to future applications for exemptions, whether for other premises, or for Insite. As always, the Minister must exercise that discretion within the constraints imposed by the law and the *Charter*.
>
> [152] The dual purposes of the *CDSA* — public health and public safety — provide some guidance for the Minister. Where the Minister is considering an application for an exemption for a supervised injection facility, he or she will aim to strike the appropriate balance between achieving the public health and public safety goals. Where, as here, the evidence indicates that a supervised injection site will decrease the risk of death and disease, and there is little or no evidence that it will have a negative impact on public safety, the Minister should generally grant an exemption.
>
> [153] The *CDSA* grants the Minister discretion in determining whether to grant exemptions. That discretion must be exercised in accordance with the *Charter*. This requires the Minister to consider whether denying an exemption would cause deprivations of life and security of the person that are not in accordance with the principles of fundamental justice. The factors considered in making the decision on an exemption must include evidence, if any, on the impact of such a facility on crime rates, the local conditions indicating a need for such a supervised injection site, the regulatory structure in place to support the facility, the resources available to support its maintenance, and expressions of community support or opposition.

3.3 Structural Injunctions

3.3.1 Doucet-Boudreau v. Nova Scotia (Minister of Education), 2003 SCC 62 (CanLII), [2003] 3 SCR 3 (citations omitted)

[From the headnote:]

The appellants are Francophone parents living in five school districts in Nova Scotia. They applied for an order directing the Province and the Conseil scolaire acadien provincial to provide, out of public funds, homogeneous French-language facilities and programs at the secondary school level. The trial judge noted that the government did not deny the existence or content of the parents' rights under s. 23 of the *Canadian Charter of Rights and Freedoms* but rather failed to prioritize those rights and delayed fulfilling its obligations, despite clear reports showing that assimilation was "reaching critical levels". He found a s. 23 violation and ordered the Province and the Conseil to use their "best efforts" to provide school facilities and programs by particular dates. He retained jurisdiction to hear reports on the status of the efforts. The Province appealed the part of the order in which the trial judge retained his jurisdiction to hear reports. The majority of the Court of Appeal allowed the appeal and struck down the impugned portion of the order. On the basis of the common law principle of *functus officio*, the majority held that

the trial judge, having decided the issue between the parties, had no further jurisdiction to remain seized of the case. They also held that, while courts have broad ranging powers under s. 24(1) of the *Charter* to fashion remedies, the *Charter* does not extend a court's jurisdiction to permit it to enforce its remedies.

…

[31] Canada has evolved into a country that is noted and admired for its adherence to the rule of law as a major feature of its democracy. But the rule of law can be shallow without proper mechanisms for its enforcement. In this respect, courts play an essential role since they are the central institutions to deal with legal disputes through the rendering of judgments and decisions. But courts have no physical or economic means to enforce their judgments. Ultimately, courts depend on both the executive and the citizenry to recognize and abide by their judgments.

[32] Fortunately, Canada has had a remarkable history of compliance with court decisions by private parties and by all institutions of government. That history of compliance has become a fundamentally cherished value of our constitutional democracy; we must never take it for granted but always be careful to respect and protect its importance, otherwise the seeds of tyranny can take root.

[33] This tradition of compliance takes on a particular significance in the constitutional law context, where courts must ensure that government behaviour conforms with constitutional norms but in doing so must also be sensitive to the separation of function among the legislative, judicial and executive branches. While our Constitution does not expressly provide for the separation of powers, the functional separation among the executive, legislative and judicial branches of governance has frequently been noted. In *New Brunswick Broadcasting Co. v. Nova Scotia (Speaker of the House of Assembly)*, 1993 CanLII 153 (SCC), [1993] 1 SCR 319, McLachlin J. (as she then was) stated, at p. 389:

> Our democratic government consists of several branches: the Crown, as represented by the Governor General and the provincial counterparts of that office; the legislative body; the executive; and the courts. It is fundamental to the working of government as a whole that all these parts play their proper role. It is equally fundamental that no one of them overstep its bounds, that each show proper deference for the legitimate sphere of activity of the other.

[34] In other words, in the context of constitutional remedies, courts must be sensitive to their role as judicial arbiters and not fashion remedies which usurp the role of the other branches of governance by taking on tasks to which other persons or bodies are better suited. Concern for the limits of the judicial role is interwoven throughout the law. The development of the doctrines of justiciability, and to a great extent mootness, standing, and ripeness resulted from concerns about the courts overstepping the bounds of the judicial function and their role *vis-à-vis* other branches of government.

[35] In addition, it is unsurprising, given how the *Charter* changed the nature of our constitutional structure by requiring that all laws and government action conform to the *Charter*, that concerns about the limits of the judicial role have animated much of the *Charter* jurisprudence and commentary surrounding it ….. Thus, in *Vriend*, *supra*, this Court stated, at para. 136:

> In carrying out their duties, courts are not to second-guess legislatures and the executives; they are not to make value judgments on what they regard as the proper policy choice; this is for the other branches. Rather, the courts are to uphold the Constitution and have been expressly invited to perform that role by the Constitution itself. But respect by the courts for the legislature and executive role is as important as ensuring that the other branches respect each others' role and the role of the courts.

[36] Deference ends, however, where the constitutional rights that the courts are charged with protecting begin. …

[37] Returning to this appeal, we believe that [trial judge] LeBlanc J. was duly guided by historical and contextual factors in crafting a remedy that would meaningfully protect, indeed implement, the applicants' rights to minority official language education for their children while maintaining appropriate respect for the proper roles of the executive and legislative branches.

[38] As indicated earlier, the history of French-language education in Nova Scotia has been disappointing, resulting in high rates of assimilation that have continued well into the period when this litigation began. While the situation is not what it was in the eighteenth and nineteenth centuries when French-language education in Acadia was for the most part either expressly prohibited or unavailable, the promise of s. 23 had yet to be fulfilled in the five school districts at issue in this appeal when the appellants brought their application demanding homogeneous French-language facilities before the Supreme Court of Nova Scotia in 1998. Through the mid-1990s, s. 23 parents had pressured the government to provide homogeneous French-language facilities in presentations to Legislative Committees and in written and oral submissions to Ministers of Education. They had submitted petitions, letters, and expert analyses on assimilation to the Province. In 1996, amendments to the *Education Act* provided for a French-language school board, the Conseil scolaire acadien provincial, geared toward the fulfilment of the Province's s. 23 obligations. The school board then decided to provide the facilities at issue in this appeal. From 1997 to 1999, the provincial government announced the construction of homogeneous French-language schools in Petit-de-Grat, Clare, and Argyle. The schools were never built, and the construction projects were officially put on hold in September 1999.

[39] The reason for the delay, broadly speaking, was the government's failure to give due priority to s. 23 rights in educational policy setting. Indeed, LeBlanc J. observed that the real issue between the parties by the time of trial was the date on which the programs ought to be implemented, rather than any question as to whether they were required in the first place. The government cited a lack of consensus in the community, a consequent fear that enrollment would drop, and lack of funds as reasons for its decision to place the previously announced school construction projects on hold pending cost-benefit reviews. LeBlanc J. rightly concluded that none of these reasons justified the government's failure to fulfill its obligations under s. 23. He found that the government had been treating the provision of s. 23 schools no differently from programs or facilities generally, without attention to purposes of s. 23 of the *Charter* and the role that homogeneous schools play in French linguistic and cultural preservation and flourishing (para. 205). Meanwhile, assimilation continued (para. 210) and enrollment in the Conseil's schools was dropping. Programs were in jeopardy (paras. 229-30).

[40] It is in this urgent context of ongoing cultural erosion that LeBlanc J. crafted his remedy. He was sensitive to the need for timely execution, the limits of the judicial role, and the desirability of allowing the government flexibility in the manner of fulfilling its constitutional obligations when he ordered the government to make best efforts to provide facilities by particular dates and retained jurisdiction to hear progress reports. However, the urgency of the context does not by itself create jurisdiction in a superior court to issue a remedy of unlimited scope under s. 24(1) of the *Charter*. We now turn to the question of whether LeBlanc J.'s order was within the jurisdiction of a superior court.

(2) The Jurisdiction of a Superior Court to Issue a Remedy Under Section 24(1) of the *Charter*

…

[43] ….In the present appeal, the difficulty does not lie with the legislation: no provision or omission in the *Education Act* prevented the government from providing minority language education as required by the *Constitution Act, 1982*. On the contrary, the *Education Act*, as amended in 1996, establishes a French-language school board to provide homogeneous French-language education to children of s. 23 entitled parents. Neither is the problem rooted in any particular government action; rather, the problem was inaction on the part of the provincial government, particularly its failure to mobilize resources to provide school facilities in a timely fashion, as required by s. 23 of the *Charter*. Section 24(1) is available to remedy this failure.

….

[51] The power of the superior courts under s. 24(1) to make appropriate and just orders to remedy infringements or denials of *Charter* rights is part of the supreme law of Canada. It follows that this remedial power cannot be strictly limited by statutes or rules of the common law. We note, however, that statutes and common law rules may be helpful to a court choosing a remedy under s. 24(1) insofar as the statutory provisions or common law rules express principles that are relevant to determining what is "appropriate and just in the circumstances".

(3) The Meaning of "Appropriate and Just in the Circumstances"

[52] What, then, is meant in s. 24(1) by the words "appropriate and just in the circumstances"? Clearly, the task of giving these words meaning in particular cases will fall to the courts ordering the remedies since s. 24(1) specifies that the remedy should be such as the court considers appropriate and just. Deciding on an appropriate and just remedy in particular circumstances calls on the judge to exercise a discretion based on his or her careful perception of the nature of the right and of the infringement, the facts of the case, and the application of the relevant legal principles…

[53] … In our view, judicial restraint and metaphors such as "dialogue" must not be elevated to the level of strict constitutional rules to which the words of s. 24 can be subordinated. The same may be said of common law procedural principles such as *functus officio* which may to some extent be incorporated in statutes…

[54] While it would be unwise at this point to attempt to define, in detail, the words "appropriate and just" or to draw a rigid distinction between the two terms, there are some broad considerations that judges should bear in mind when evaluating the appropriateness and justice of a potential remedy. These general principles may be informed by jurisprudence relating to remedies outside the *Charter* context, such as cases discussing the doctrine of *functus* and overly vague remedies, although, as we have said, that jurisprudence does not apply strictly to orders made under s. 24(1).

[55] First, an appropriate and just remedy in the circumstances of a *Charter* claim is one that meaningfully vindicates the rights and freedoms of the claimants. Naturally, this will take account of the nature of the right that has been violated and the situation of the claimant. A meaningful remedy must be relevant to the experience of the claimant and must address the circumstances in which the right was infringed or denied. An ineffective remedy, or one which was "smothered in procedural delays and difficulties", is not a meaningful vindication of the right and therefore not appropriate and just…

[56] Second, an appropriate and just remedy must employ means that are legitimate within the framework of our constitutional democracy. As discussed above, a court ordering a *Charter* remedy must strive to respect the relationships with and separation of functions among the legislature, the executive and the judiciary. This is not to say that there is a bright line separating these functions in all cases. A remedy may be appropriate and just notwithstanding that it might touch on functions that are principally assigned to the executive. The essential point is that the courts must not, in making orders under s. 24(1), depart unduly or unnecessarily from their role of adjudicating disputes and granting remedies that address the matter of those disputes.

[57] Third, an appropriate and just remedy is a judicial one which vindicates the right while invoking the function and powers of a court. It will not be appropriate for a court to leap into the kinds of decisions and functions for which its design and expertise are manifestly unsuited. The capacities and competence of courts can be inferred, in part, from the tasks with which they are normally charged and for which they have developed procedures and precedent.

[58] Fourth, an appropriate and just remedy is one that, after ensuring that the right of the claimant is fully vindicated, is also fair to the party against whom the order is made. The remedy should not impose substantial hardships that are unrelated to securing the right.

[59] …. s. 24, because of its broad language and the myriad of roles it may play in cases, should be allowed to evolve to meet the challenges and circumstances of those cases. That evolution may require novel and creative features when compared to traditional and historical remedial practice because tradition and history cannot be barriers to what reasoned and compelling notions of appropriate and just remedies demand….

[From the headnote:]

Here, the remedy ordered by the trial judge was appropriate and just in the circumstances. He exercised his discretion to select an effective remedy that meaningfully vindicated the s. 23 rights of the appellants in the context of serious rates of assimilation and a history of delay in the provision of French-language education.

The order is a creative blending of remedies and processes already known to the courts in order to give life to the rights in s. 23. Given the critical rate of assimilation found by the trial judge, it was appropriate for him to grant a remedy that would in his view lead to prompt compliance. The remedy took into account, and did not depart unduly or unnecessarily from, the role of the courts in our constitutional democracy. The remedy vindicated the rights of the parents while leaving the detailed choices of means largely to the executive. The reporting order was judicial in the sense that it called on the functions and powers known to courts. The range of remedial orders available to courts in civil proceedings demonstrates that constitutional remedies involving some degree of ongoing supervision do not represent a radical break with the past practices of courts. Further, although the common law doctrine of *functus officio* cannot strictly pre-empt the remedial discretion in s. 24(1), an examination of the *functus* question indicates that the trial judge issued an order that is appropriately judicial. The retention of jurisdiction did not include any power to alter the disposition of the case and did nothing to undermine the provision of a stable basis for launching an appeal. Finally, in the context, the reporting order was not unfair to the government.

While, in retrospect, it would certainly have been advisable for the trial judge to provide more guidance to the parties as to what they could expect from the reporting sessions, his order was not incomprehensible or impossible to follow. It was not vaguely worded so as to render it invalid.

3.3.2 Little Sisters Book and Art Emporium v. Canada (Justice), 1996 CanLII 3500 (BC SC)

This excerpt is from the trial level decision, where at para 14-22 the BCSC rejected a structural injunction requested by Little Sisters prior to the first Supreme Court decision.

14. The relief sought in items 2 and 3 above is what counsel have characterized as a "structural injunction". The plaintiffs contend that, because the deficiencies identified in the administration of the customs legislation are systemic and not able to be corrected quickly, there is a probability that unconstitutional decisions will continue to be made for some period of time. They point, in this regard, to the evidence that Canada Customs continues to inspect imported shipments bound for Little Sisters. As well, they say I should draw an inference that there will be resistance by Customs officers to compliance with the Court's declaration from the circumstances leading to the amendment of Memorandum D-9-1-1 with respect to anal penetration as a ground of prohibition, and from the fact that Customs has not released or reclassified materials prohibited on that ground. Further, they submit that there will be a continuing controversy as to whether and when the administrative deficiencies have been corrected and that the parties and the public generally would benefit from the more precise terms of injunctive relief to augment the general language of the declaration.

> 15 The Minister argues that the government acted immediately to implement the changes in administrative procedures mandated by my findings. …. These circumstances, he submits, do not warrant the Court intruding into the functions of the executive branch of the government.
>
> 16 The plaintiffs urge judicial activism in a field where Canadian courts have traditionally acted with restraint….
>
> 20 The likelihood of unconstitutional decisions occurring during the period of reform is significantly lessened by the interim procedures adopted by Canada Customs. Moreover, the appeal procedures provided in the Customs Act remain available to aggrieved importers. Further, I am not prepared to draw an inference that customs officials will be resistant to reform. Their actions since publication of my reasons for judgment belie that suggestion. These considerations do not warrant the Court departing at this time from its traditional stance in relation to the other branches of government.

3.3.3 *Thibodeau v. Air Canada,* 2012 FCA 246 (CanLII), [2013] 2 FCR 155, <https://canlii.ca/t/fsxh5> [citations omitted]

The Federal Court, in a judgment dated July 13, 2011, held that Air Canada had by its own admission failed to comply with the requirements of the *Official Languages Act* on four occasions (referring to specific flights without bilingual flight attendants, announcements about weather, arrival time and baggage collection that were not provided in French).

The trial judge, inter alia, ordered Air Canada to "introduce, within six months of this judgment, a proper monitoring system and procedures to quickly identify, document and quantify potential violations of its language duties, as set out at Part IV of the OLA and at section 10 of the ACPPA, particularly by introducing a procedure to identify and document occasions on which Jazz does not assign flight attendants able to provide services in French on board flights on which there is significant demand for services in French." On appeal, the Federal Court of Appeal reasoned as follows:

> [57] In my view, the orders issued in *Doucet-Boudreau* and *Quigley v. Canada (House of Commons)*, 2002 FCT 645, [2003] 1 F.C. 132 (*Quigley*), to which the Commissioner refers to support the wording of the order in this case, are more precise and adhere more closely to the principle of specificity discussed hereinabove. Thus, in *Doucet-Boudreau*, at paragraph 7, the order read as follows:
>
> 3. In Île Madame-Arichat (Petit-de-Grat), the Respondent CSAP shall use its best efforts to provide a homogeneous French program for grades 9 through 12 by September 2000 and the Respondent Department of Education shall use its best efforts (a) to provide a homogeneous French facility (on an interim basis) for grades 9 through 12 by September 2000 and (b) to provide a permanent homogeneous French facility by January 2001.
>
> 4. In Argyle, the Respondent CSAP shall use its best efforts to provide a homogeneous French program for grades Primary through 12 by September 2000 and the Respondent Department of Education shall provide a homogeneous French facility for grades Primary through 12 by September 2001.
>
> 5. In Clare, the Respondent CSAP shall provide a homogeneous French program for grades Primary through 12 by September 2000 and the Respondent Department of Education shall take immediate steps to provide homogeneous French facilities for grades Primary through 12 by September 2001.
>
> [58] In *Quigley*, at paragraph 60, the formal judgment read as follows:
>
> IT IS ORDERED that:
>
> 1. A declaration will issue that the current method of the respondents, Canada (House of Commons) and Canada (Board of Internal Economy) for providing television broadcasts of parliamentary proceedings contravenes section 25 of the Act.
>
> 2. The above-named respondents shall, within one year of the date of this decision, take the necessary steps to bring its practices into compliance with section 25 of the Act.
>
> [59] In both cases, the respondents were able to know exactly what was expected of them, while having a certain amount of latitude in the choice of the method used to achieve the result ordered. However, this case is fundamentally different, in that Part IV of the OLA encompasses all communications with the public by Air Canada and its subcontractors, whether on board airplanes, in airports or call centres, both in Canada and abroad. These are continuous obligations, which Air Canada meets essentially through its bilingual staff which is responsible for interacting with the public at about 161 500 000 points of contact per year ….
>
> [60] The order, as drafted, would have to be interpreted by the court hearing contempt of court proceedings. In such a case, the order would not be able to remedy the harm. The court would have to address the meaning of the words "reasonable efforts" both qualitatively and quantitatively. Even when read in the context of the institutional order accompanying it, whose interpretation presents challenges which I will discuss below, the general order is still vague and lacking in specificity.

3.3.4 Further reading on Structural Injunctions

1. Hirsch, Danielle Elyce. "A Defense of Structural Injunctive Remedies in South African Law" (2007) 9:1 Or Rev Intl L 1.
2. McAllister, Debra. Charter Remedies and Jurisdiction to Grant Them: The Evolution of Section 24(1) and Section 52(1), 2004 25 *Supreme Court Law Review* 1, 2004 CanLIIDocs 437, https://canlii.ca/t/t2m9. See parts VII.3 and VIII.4.
3. Roach, Kent. Principled Remedial Discretion Under the Charter, 2004 25 Supreme Court Law Review 101, 2004 CanLIIDocs 439, https://canlii.ca/t/t2mc. See part II.
4. Sharpe, Robert J. Injunctions and the Charter, 1984 22-3 Osgoode Hall Law Journal 473, 1984 CanLIIDocs 458, <https://canlii.ca/t/7njjt>

3.4 Constitutional Exemptions

Can s. 24(1) be relied upon to grant an individual a "constitutional exemption" from the application of a law? The general answer is "yes," but with some limitations.

3.4.1 R. v. Ferguson, 2008 SCC 6 (CanLII), [2008] 1 SCR 96 [citations omitted]

> [from the headnote]
>
> During an altercation with a detainee held in a cell at an RCMP detachment, the accused, an RCMP officer, shot and killed the detainee. The accused was charged with second-degree murder but was convicted by a jury of the lesser offence of manslaughter. Notwithstanding the mandatory minimum sentence of four years imposed by a s. 236(*a*) of the *Criminal Code* for manslaughter with a firearm, the trial judge imposed a conditional sentence of two years less a day. He granted the accused a constitutional exemption from the four-year sentence because, on the circumstances of this case, he found that the minimum mandatory sentence constituted cruel and unusual punishment in violation of s. 12 of the *Canadian Charter of Rights and Freedoms*.
>
> The judgment of the Court was delivered by The Chief Justice —

[25] Having found that the four-year minimum sentence of imprisonment required by s. 236(*a*) does not violate Constable Ferguson's right not to suffer cruel and unusual punishment contrary to s. 12 of the *Charter*, it is not necessary to consider whether a constitutional exemption would have been available had we found a violation of s. 12. …..[H]owever, there has been considerable debate and disagreement in the lower courts as to whether the remedy of a constitutional exemption is available. The matter having been fully argued, it is appropriate to settle the question of whether a constitutional exemption would have been available to Constable Ferguson, had the minimum sentence violated s. 12 of the *Charter*.

[26] … The only issue is whether a law imposing such punishment can be permitted to stand subject to constitutional exemptions in particular cases, or whether the only remedy is a declaration that the law is inconsistent with the *Charter* and hence falls under s. 52 of the *Constitution Act, 1982*.

…

[28] The usual remedy for a mandatory sentencing provision that imposes cruel and unusual punishment contrary to s.12 of the *Charter* is a declaration that the law is of no force and effect under s. 52 of the *Constitution Act, 1982*. …

[29] …[Ferguson's] argument for a constitutional exemption proposes that the law remain in force, but that it not be applied in cases where its application results in a *Charter* violation. The judge would thus be free to impose a sentence below the minimum set by law, which would nevertheless continue to stand.

[30] ….The first prong of the argument is that where a mandatory minimum sentence that is constitutional in most of its applications generates an unconstitutional result in a small number of cases, it is better to grant a constitutional exemption in these cases than to strike down the law as a whole. The s. 52(1) remedy of declaring invalid a law that produces a result inconsistent with the *Charter* is a blunt tool. A law that may be constitutional in many of its applications — and indeed ruled constitutional on a reasonable hypothetical analysis — is struck down because in one particular case, or in a few cases, it produces an unconstitutional result. Would it not be better, the argument goes, to allow the law to stand, while providing an individual remedy in those cases — arguably rare — where its application offends the *Charter*?

[31] The second and complementary prong of the argument asserts that the remedy is available on the wording of the *Charter* and the jurisprudence. Section 24(1), it is argued, grants courts a wide discretion to grant such constitutional remedies as are "appropriate and just". Granting a constitutional exemption and substituting a constitutional sentence removes the law's inconsistency with the *Charter*, making s. 52(1) inapplicable. The cases that have considered the matter, while inconclusive, do not rule constitutional exemptions out as a remedy for unconstitutional sentences flowing from mandatory minimum sentence laws. More generally, granting constitutional exemptions for unconstitutional effects of mandatory minimum sentence laws fits well with the Court's practices of severance, reading in and reading out in order to preserve the law to the maximum extent possible: see *Schachter v. Canada*, 1992 CanLII 74 (SCC), [1992] 2 SCR 679.

[32] Attractive as they are, the arguments for constitutional exemptions in a case such as this are, on consideration, outweighed and undermined by counter-considerations. I reach this conclusion on the basis of four considerations: (1) the jurisprudence; (2) the need to avoid intruding on the role of Parliament; (3) the remedial scheme of the *Charter*; and (4) the impact of granting constitutional exemptions in mandatory sentence cases on the values underlying the rule of law.

(1) The Jurisprudence

[33] This Court has not definitively ruled whether constitutional exemptions are available as a remedy for mandatory minimum sentences that produce unconstitutional sentences. In concurring opinions, judges of this Court have expressed both positive and negative evaluations of constitutional exemptions as remedies for unconstitutional minimum sentences.

…

[35] Lower courts have taken contradictory positions on the availability of constitutional exemptions from mandatory minimum sentences. The Ontario and New Brunswick courts of appeal have held against the availability of constitutional exemptions from mandatory sentence laws…. By contrast, such exemptions have been granted in Saskatchewan and the Northwest and Yukon Territories and have been recognized in *obiter* in British Columbia…. The Quebec Court of Appeal has expressed both positive and negative views on the question in *obiter*: ....

…

[37] …. In summary, the majority of this Court in *Seaboyer* has commented critically on the use of constitutional exemptions as a stand-alone remedy in the case of mandatory laws generally, a view supported by Wilson J. in *Osborne* and consistent with the majority's reasoning in *Corbiere*. In *Smith*, Le Dain J. rejected their use in the context here at issue, mandatory minimum sentence laws. On the other side of the issue are the remarks of L'Heureux-Dubé and Arbour JJ. in their respective concurring opinions in *Rose* and *Morrisey.*

[38] I conclude that while the availability of constitutional exemptions for mandatory minimum sentencing laws has not been conclusively decided, the weight of authority thus far is against them and sounds a cautionary note.

(2) Intrusion on the Role of Parliament

[40] …. This Court has thus emphasized that in considering alternatives to striking down, courts must carefully consider whether the alternative being considered represents a lesser intrusion on Parliament's legislative role than striking down. …. In this case, the effect of granting a constitutional exemption would be to so change the legislation as to create something different in nature from what Parliament intended. It follows that a constitutional exemption should not be granted.

[41] When a court opts for severance or reading in as an alternative to striking down a provision, it does so on the assumption that had Parliament been aware of the provision's constitutional defect, it would likely have passed it with the alterations now being made by the court by means of severance or reading in. …. If it is not clear that Parliament would have passed the scheme with the modifications being considered by the court — or if it is probable that Parliament would *not* have passed the scheme with these modifications — then for the court to make these modifications would represent an inappropriate intrusion into the legislative sphere. In such cases, the least intrusive remedy is to strike down the constitutionally defective legislation under s. 52. It is then left up to Parliament to decide what legislative response, if any, is appropriate.

…

[46] …. granting a constitutional exemption from a mandatory minimum sentence law that results in an unconstitutional sentence goes directly against Parliament's intention. To allow constitutional exemptions for mandatory minimum sentences is, in effect, to read in a discretion to a provision where Parliament clearly intended to exclude discretion. If it would be inappropriate to read in such a discretion under s. 52, then necessarily it would be inappropriate to allow judges to grant constitutional exemptions having the same effect under s. 24(1). It cannot be assumed that Parliament would have enacted the mandatory minimum sentencing scheme with the discretion that allowing constitutional exemptions would create. For the Court to introduce such a discretion would thus represent an inappropriate intrusion into the legislative sphere.

> [47] I conclude that these considerations are sufficient to exclude constitutional exemptions as an appropriate remedy for unconstitutional mandatory minimum sentences. In the absence of any provision providing for discretion, a court that concludes that a mandatory minimum sentence imposes cruel and unusual punishment in an exceptional case before it is compelled to declare the provision invalid.
>
> (3) The Remedial Scheme of the Charter
>
> …
>
> [51]. …. this Court has repeatedly affirmed that the validity of laws is determined by s. 52 of the *Constitution Act, 1982*, while the validity of government action falls to be determined under s. 24 of the *Charter*. We are here concerned with a *law* that is alleged to violate a *Charter* right. This suggests that s. 52(1) provides the proper remedy.
>
> [52] It is argued that s. 24(1), while normally applicable to government acts, can also be used to provide a stand-alone remedy for the unconstitutional effects of mandatory minimum sentence laws.
>
> …
>
> [55] The presence of s. 52(1) with its mandatory wording suggests an intention of the framers of the *Charter* that unconstitutional laws are deprived of effect to the extent of their inconsistency, not left on the books subject to discretionary case-by-case remedies: see *Osborne*, *per* Wilson J. In cases where the requirements for severance or reading in are met, it may be possible to remedy the inconsistency judicially instead of striking down the impugned legislation as a whole: *Vriend*; *Sharpe*. Where this is not possible — as in the case of an unconstitutional mandatory minimum sentence — the unconstitutional provision must be struck down. The ball is thrown back into Parliament's court, to revise the law, should it choose to do so, so that it no longer produces unconstitutional effects. In either case, the remedy is a s. 52 remedy that renders the unconstitutional provision of no force or effect to the extent of its inconsistency. To the extent that the law is unconstitutional, it is not merely inapplicable for the purposes of the case at hand. It is null and void, and is effectively removed from the statute books.
>
> [56] ….[I]f the unconstitutional effects of laws are remediable on a case-by-case basis under s. 24(1), in theory all *Charter* violations could be addressed in this manner, leaving no role for s. 52(1). …[T]he risk is that the role intended for s. 52(1) would be undermined and that laws that should be struck down — over-inclusive laws that pose a real risk of unconstitutional treatment of Canadians — would remain on the books, contrary to the intention of the framers of the *Charter*.
>
> (4) The Rule of Law
>
> [57] Constable Ferguson's principal argument for constitutional exemptions, as we have seen, is an appeal to flexibility. Yet this flexibility comes at a cost: constitutional exemptions buy flexibility at the cost of undermining the rule of law.
>
> [58] The principles of constitutionalism and the rule of law lie at the root of democratic governance.. It is fundamental to the rule of law that "the law must be accessible and so far as possible intelligible, clear and predictable".
>
> [59] Constitutional exemptions for mandatory minimum sentence laws raise concerns related to the rule of law and the values that underpin it: certainty, accessibility, intelligibility, clarity and predictability.
>
> [60] …When a constitutional exemption is granted, the successful claimant receives a personal remedy under s. 24(1), but the law remains on the books, intact. … As constitutional exemptions are actually granted, the law in the statute books will in fact increasingly diverge from the law as applied.
>
> [61] Constitutional exemptions from mandatory minimum sentences leave the law uncertain and unpredictable, … how is the judge to decide whether the case before her is rare? The bright line required for constitutional certainty is elusive.
>
> [62] The divergence between the law on the books and the law as applied — and the uncertainty and unpredictability that result — exacts a price paid in the coin of injustice. First, it impairs the right of citizens to know what the law is in advance and govern their conduct accordingly — a fundamental tenet of the rule of law. Second, it risks over-application of the law… Third, it invites duplication of effort. The matter of constitutionality would not be resolved once and for all as under s. 52(1); in every case where a violation is suspected, the accused would be obliged to seek a constitutional exemption. In so doing, it creates an unnecessary barrier to the effective exercise of the convicted offender's constitutional rights, thereby encouraging uneven and unequal application of the law. A final cost of constitutional exemptions from mandatory minimum sentence laws is to the institutional value of effective law making and the proper roles of Parliament and the courts. Allowing unconstitutional laws to remain on the books deprives Parliament of certainty as to the constitutionality of the law in question and thus of the opportunity to remedy it. Legislatures need clear guidance from the courts as to what is constitutionally permissible and what must be done to remedy legislation that is found to be constitutionally infirm. In granting constitutional exemptions, courts would be altering the state of the law on constitutional grounds without giving clear guidance to Parliament as to what the Constitution requires in the circumstances: Rosenberg and Perrault, at p. 391. Bad law, fixed up on a case-by-case basis by the courts, does not accord with the role and responsibility of Parliament to enact constitutional laws for the people of Canada.
>
> V. Conclusion
>
> [63] I conclude that constitutional exemptions should not be recognized as a remedy for cruel and unusual punishment imposed by a law prescribing a minimum sentence. If a law providing for a mandatory minimum sentence is found to violate the *Charter*, it should be declared inconsistent with the *Charter* and hence of no force and effect under s. 52 of the *Constitution Act, 1982*.
>
> [64] I would dismiss the appeal…

3.4.2 Carter v. Canada (Attorney General), 2016 SCC 4 (CanLII), [2016] 1 SCR 13

See other excerpts from this case in Chapter 23, Parts 4.3.3 and 5.4.

This case seems to illustrate the conditions under which exemptions might be appropriate. In this case which followed *Carter* #1 (*Carter v. Canada (Attorney General)*, 2015 SCC 5 (CanLII) para 128-129), the Court considered an extension on the 12 month suspension of the declaration of invalidity. A new government had been elected during the suspension period, and it was the new government which sought the extension. The Court also decided 5:4 to revisit their decision in Carter #1 *not* to create an exemption mechanism during the period of suspension:

> [6] This is the first time the Court has been asked to consider whether to grant individual exemptions during an *extension* of a suspension of a declaration of invalidity. Parliament was given one year to determine what, if any, legislative response was appropriate. In agreeing that more time is needed, we do not at the same time see any need to unfairly prolong the suffering of those who meet the clear criteria we set out in *Carter*. An exemption can mitigate the severe harm that may be occasioned to those adults who have a grievous, intolerable and irremediable medical condition by making a remedy available now pending Parliament's response. The prejudice to the rights flowing from the four-month extension outweighs countervailing considerations…We would, as a result, grant the request for an exemption so that those who wish to seek

> assistance from a physician in accordance with the criteria set out in para. 127 of our reasons in *Carter*, may apply to the superior court of their jurisdiction for relief during the extended period of suspension. Requiring judicial authorization during that interim period ensures compliance with the rule of law and provides an effective safeguard against potential risks to vulnerable people.

Exemptions were provided in more than 30 reported cases based on Carter #2, but as Kent Roach has written, "we do not know how many people who would have qualified for medical assistance in dying under Carter were unable or unwilling to litigate to receive an individual remedy".[113]

3.4.2.1 Further Reading on remedies in *Carter v Canada*

1. Leckey, Robert, "Assisted dying, suspended declarations, and dialogue's time" Project MUSE (2019) 69:5 University of Toronto Law Journal 64–83, online: <https://muse.jhu.edu/pub/50/article/743314 ☞>.
2. Emmett Macfarlane, Dialogue, Remedies, and Positive Rights: Carter v Canada as a Microcosm for Past and Future Issues Under the Charter of Rights and Freedoms, 2017 49-1 *Ottawa Law Review* 107, 2017 CanLIIDocs 85, https://canlii.ca/t/72c.

3.5 Charter Damages

3.5.1 Mackin v. New Brunswick (Minister of Finance) 2002 SCC 13: Damages and Limited Immunity [citations omitted]

Mackin and a few other judges claimed that section 11(d) was violated by the abolition of the position of supernumerary judges in New Brunswick. The Minister did not offer any section 1 argument, and a violation of section 11(d) was found by the Courts. However the damages claim was rejected as follows.

> (1) Damages
>
> 78 According to a general rule of public law, absent conduct that is clearly wrong, in bad faith or an abuse of power, the courts will not award damages for the harm suffered as a result of the mere enactment or application of a law that is subsequently declared to be unconstitutional. In other words "[i]nvalidity of governmental action, without more, clearly should not be a basis for liability for harm caused by the action". In the legal sense, therefore, both public officials and legislative bodies enjoy limited immunity against actions in civil liability based on the fact that a legislative instrument is invalid. With respect to the possibility that a legislative assembly will be held liable for enacting a statute that is subsequently declared unconstitutional, R. Dussault and L. Borgeat confirmed in their *Administrative Law: A Treatise* (2nd ed. 1990), vol. 5, at p. 177, that:
>
> > In our parliamentary system of government, Parliament or a legislature of a province cannot be held liable for anything it does in exercising its legislative powers. The law is the source of duty, as much for citizens as for the Administration, and while a wrong and damaging failure to respect the law may for anyone raise a liability, it is hard to imagine that either Parliament or a legislature can as the lawmaker be held accountable for harm caused to an individual following the enactment of legislation. [Footnotes omitted.]
>
> 79 …The limited immunity given to government is specifically a means of creating a balance between the protection of constitutional rights and the need for effective government. In other words, this doctrine makes it possible to determine whether a remedy is appropriate and just in the circumstances. Consequently, the reasons that inform the general principle of public law are also relevant in a Charter context. [I]f [government acts] good faith and without abusing their power under prevailing law and only subsequently are their acts found to be unconstitutional, they will not be liable. Otherwise, the effectiveness and efficiency of government action would be excessively constrained. …[I]it is only in the event of conduct that is clearly wrong, in bad faith or an abuse of power that damages may be awarded
>
> 80 Thus, it is against this backdrop that we must read the following comments made by Lamer C.J. in *Schachter*, *supra*, at p. 720:
>
> > An individual remedy under s. 24(1) of the *Charter* will rarely be available in conjunction with an action under s. 52 of the *Constitution Act, 1982*. Ordinarily, where a provision is declared unconstitutional and immediately struck down pursuant to s. 52, that will be the end of the matter. No retroactive s. 24 remedy will be available. [Emphasis added.]
>
> 81 In short, although it cannot be asserted that damages may never be obtained following a declaration of unconstitutionality, it is true that, as a rule, an action for damages brought under s. 24(1) of the *Charter* cannot be combined with an action for a declaration of invalidity based on s. 52 of the *Constitution Act, 1982*.
>
> 82 … I do not find any evidence that might suggest that the government of New Brunswick acted negligently, in bad faith or by abusing its powers. Its knowledge of the unconstitutionality of eliminating the office of supernumerary judge has never been established. On the contrary, Bill 7 came into force on April 1, 1995, more than two years before this Court expressed its opinion in the *Provincial Court Judges Reference*, *supra*, which, it must be recognized, substantially altered the situation in terms of the institutional independence of the judiciary. Consequently, it may not reasonably be suggested that the government of New Brunswick displayed negligence, bad faith or wilful blindness with respect to its constitutional obligations at that time.
>
> 83 Furthermore, I cannot accept the statement of Ryan J.A. of the Court of Appeal that the failure of the Minister of Justice to keep his promise to refer Bill 7 to the Law Amendments Committee was an instance of bad faith that justified the awards of damages. Even if admitted to be true, such evidence is far from establishing a negligent or unreasonable attitude on the part of government. In fact, it has no probative value as to whether, in the circumstances, the legislation was enacted wrongly, for ulterior motives or with knowledge of its unconstitutionality.
>
> 84 The claim of the respondent judges for damages is accordingly dismissed.

3.5.2 Vancouver (City) v. Ward, 2010 SCC 27 (CanLII), [2010] 2 SCR 28

On August 1, 2002, police received a tip that someone planned to throw a pie at then Prime Minister of Canada Jean Chretien, during his appearance in Vancouver that day. Ward, a lawyer, was misidentified as the would-be pie thrower based on a description police received from the tipster.

> "When the VPD officers noticed him, Mr. *Ward* was running and appeared to be avoiding interception. The officers chased Mr. *Ward* down and handcuffed him. Mr. *Ward* loudly protested his detention and created a disturbance, drawing the attention of a local television camera crew. The television broadcast showed that Mr. *Ward* had a "very agitated look on his face", "appeared to be yelling for the benefit of the onlookers" and was "holding back" as he was being escorted down the street." (para 7).

Ward was arrested for breach of the peace. At the lockup police strip searched him ("Mr. Ward complied in part but refused to take off his underwear. The officers did not insist on complete removal and Mr. Ward was never touched during the search." at para 8). Police had also impounded his car while waiting for a warrant to search it. After the strip-search was completed, Mr. Ward was placed in a small cell before being released 4.5 hours post-arrest.

> [from the headnote]

With respect to the strip search and the car seizure, the trial judge held that, although the Province and the City did not act in bad faith and were not liable in tort for either incident, the Province's strip search and the City's vehicle seizure violated W's right to be free from unreasonable search and seizure under s. 8 of the *Charter*. The trial judge assessed damages under s. 24(1) of the *Charter* at $100 for the seizure of the car and $5,000 for the strip search. The Court of Appeal, in a majority decision, upheld the trial judge's ruling.

The judgment of the Court was delivered by

The Chief Justice —

…

A. When Are Damages Under Section 24(1) Available?

(1) The Language of Section 24(1) and the Nature of Charter Damages

…

[20] ….Briefly, an appropriate and just remedy will: (1) meaningfully vindicate the rights and freedoms of the claimants; (2) employ means that are legitimate within the framework of our constitutional democracy; (3) be a judicial remedy which vindicates the right while invoking the function and powers of a court; and (4) be fair to the party against whom the order is made: *Doucet-Boudreau*, at paras. 55-58.

[21] Damages for breach of a claimant's *Charter* rights may meet these conditions. They may meaningfully vindicate the claimant's rights and freedoms. They employ a means well-recognized within our legal framework. They are appropriate to the function and powers of a court. And, depending on the circumstances and the amount awarded, they can be fair not only to the claimant whose rights were breached, but to the state which is required to pay them. I therefore conclude that s. 24(1) is broad enough to include the remedy of damages for *Charter* breach. That said, granting damages under the *Charter* is a new endeavour, and an approach to when damages are appropriate and just should develop incrementally. *Charter* damages are only one remedy amongst others available under s. 24(1), and often other s. 24(1) remedies will be more responsive to the breach.

[22] The term "damages" conveniently describes the remedy sought in this case. However, it should always be borne in mind that these are not private law damages, but the distinct remedy of constitutional damages…The nature of the remedy is to require the state (or society writ large) to compensate an individual for breaches of the individual's constitutional rights. An action for public law damages — including constitutional damages — lies against the state and not against individual actors. Actions against individual actors should be pursued in accordance with existing causes of action. However, the underlying policy considerations that are engaged when awarding private law damages against state actors may be relevant when awarding public law damages directly against the state. Such considerations may be appropriately kept in mind.

(2) Step One: Proof of a *Charter* Breach

[23] Section 24(1) is remedial. The first step, therefore, is to establish a *Charter* breach. This is the wrong on which the claim for damages is based.

(3) Step Two: Functional Justification of Damages

[24] A functional approach to damages finds damages to be appropriate and just to the extent that they serve a useful function or purpose…

…

[31] …[D]amages under s. 24(1) of the *Charter* are a unique public law remedy, which may serve the objectives of: (1) compensating the claimant for loss and suffering caused by the breach; (2) vindicating the right by emphasizing its importance and the gravity of the breach; and (3) deterring state agents from committing future breaches. Achieving one or more of these objects is the first requirement for "appropriate and just" damages under s. 24(1) of the *Charter*.

(4) Step Three: Countervailing Factors

…

[33] … A complete catalogue of countervailing considerations remains to be developed as the law in this area matures. At this point, however, two considerations are apparent: the existence of alternative remedies and concerns for good governance.

[34] A functional approach to damages under s. 24(1) means that if other remedies adequately meet the need for compensation, vindication and/or deterrence, a further award of damages under s. 24(1) would serve no function and would not be "appropriate and just". The *Charter* entered an existent remedial arena which already housed tools to correct violative state conduct. Section 24(1) operates concurrently with, and does not replace, these areas of law. Alternative remedies include private law remedies for actions for personal injury, other *Charter* remedies like declarations under s. 24(1), and remedies for actions covered by legislation permitting proceedings against the Crown.

[35] …. The claimant need not show that she has exhausted all other recourses. Rather, it is for the state to show that other remedies are available in the particular case that will sufficiently address the breach. For example, if the claimant has brought a concurrent action in tort….the resulting award of damages would adequately address the *Charter* breach [and]… an award of *Charter* damages would be duplicative. ….

[36] The existence of a potential claim in tort does not therefore bar a claimant from obtaining damages under the *Charter*. Tort law and the *Charter* are distinct legal avenues. However, a concurrent action in tort, or other private law claim, bars s. 24(1) damages if the result would be double compensation.

[37] Declarations of *Charter* breach may provide an adequate remedy for the *Charter* breach, particularly where the claimant has suffered no personal damage…

[38] Another consideration that may negate the appropriateness of s. 24(1) damages is concern for effective governance. Good governance concerns may take different forms. At one extreme, it may be argued that any award of s. 24(1) damages will always have a chilling effect on government conduct and hence will impact negatively on good governance. The logical conclusion of this argument is that s. 24(1) damages would never be appropriate. Clearly, this is not what the Constitution intends. Moreover, insofar as s. 24(1) damages deter Charter breaches, they promote good governance. Compliance with *Charter* standards is a foundational principle of good governance.

[39] In some situations, however, the state may establish that an award of *Charter* damages would interfere with good governance such that damages should not be awarded unless the state conduct meets a minimum threshold of gravity… duly enacted laws should be enforced until declared invalid, unless the state conduct under the law was "clearly wrong, in bad faith or an abuse of power"… The rule of law would be

undermined if governments were deterred from enforcing the law by the possibility of future damage awards in the event the law was, at some future date, to be declared invalid. Thus, absent threshold misconduct, an action for damages under s. 24(1) of the *Charter* cannot be combined with an action for invalidity based on s. 52 of the *Constitution Act, 1982*: *Mackin*, at para. 81.

[40] The *Mackin* principle recognizes that the state must be afforded some immunity from liability in damages resulting from the conduct of certain functions that only the state can perform. Legislative and policy-making functions are one such area of state activity. The immunity is justified because the law does not wish to chill the exercise of policy-making discretion…

(5) Step Four: Quantum of Section 24(1) Damages

…

[47] As discussed earlier, damages may be awarded to compensate the claimant for his loss, to vindicate the right or to deter future violations of the right. These objects, the presence and force of which vary from case to case, determine not only whether damages are appropriate, but also the amount of damages awarded. Generally, compensation will be the most important object, and vindication and deterrence will play supporting roles. This is all the more so because other *Charter* remedies may not provide compensation for the claimant's personal injury resulting from the violation of his *Charter* rights. However, as discussed earlier, cases may arise where vindication or deterrence play a major and even exclusive role.

[48] Where the objective of compensation is engaged, the concern is to restore the claimant to the position she would have been in had the breach not been committed, as discussed above. As in a tort action, any claim for compensatory damages must be supported by evidence of the loss suffered.

…

[50] In other cases, like this one, the claimant's losses will be non-pecuniary. Non-pecuniary damages are harder to measure. Yet they are not by that reason to be rejected. Again, tort law provides assistance. Pain and suffering are compensable. Absent exceptional circumstances, compensation is fixed at a fairly modest conventional rate, subject to variation for the degree of suffering in the particular case. In extreme cases of catastrophic injury, a higher but still conventionally determined award is given on the basis that it serves the function purpose of providing substitute comforts and pleasures…

[51] When we move from compensation to the objectives of vindication and deterrence, tort law is less useful. Making the appropriate determinations is an exercise in rationality and proportionality and will ultimately be guided by precedent as this important chapter of *Charter* jurisprudence is written by Canada's courts. That said, some initial observations may be made.

[52] A principal guide to the determination of quantum is the seriousness of the breach, having regard to the objects of s. 24(1) damages. ….Generally speaking, the more egregious the conduct and the more serious the repercussions on the claimant, the higher the award for vindication or deterrence will be.

[53] Just as private law damages must be fair to both the plaintiff and the defendant, so s. 24(1) damages must be fair — or "appropriate and just" — to both the claimant and the state. …. Large awards and the consequent diversion of public funds may serve little functional purpose in terms of the claimant's needs and may be inappropriate or unjust from the public perspective. In considering what is fair to the claimant and the state, the court may take into account the public interest in good governance, the danger of deterring governments from undertaking beneficial new policies and programs, and the need to avoid diverting large sums of funds from public programs to private interests.

[54] Courts in other jurisdictions where an award of damages for breach of rights is available have generally been careful to avoid unduly high damage awards. This may reflect the difficulty of assessing what is required to vindicate the right and deter future breaches, as well as the fact that it is society as a whole that is asked to compensate the claimant. ….The private law measure of damages for similar wrongs will often be a useful guide. ….

…

[57] To sum up, the amount of damages must reflect what is required to functionally serve the objects of compensation, vindication of the right and deterrence of future breaches, insofar as they are engaged in a particular case, having regard to the impact of the breach on the claimant and the seriousness of the state conduct. The award must be appropriate and just from the perspective of the claimant and the state.

(6) Forum and Procedure

[58] For a tribunal to grant a *Charter* remedy under s. 24(1), it must have the power to decide questions of law and the remedy must be one that the tribunal is authorized to grant.. Generally, the appropriate forum for an award of damages under s. 24(1) is a court which has the power to consider *Charter* questions and which by statute or inherent jurisdiction has the power to award damages. Provincial criminal courts are not so empowered and thus do not have the power to award damages under s. 24(1).

[59] As was done here, the claimant may join a s. 24(1) claim with a tort claim. It may be useful to consider the tort claim first, since if it meets the objects of *Charter* damages, recourse to s. 24(1) will be unnecessary. This may add useful context and facilitate the s. 24(1) analysis. This said, it is not essential that the claimant exhaust her remedies in private law before bringing a s. 24(1) claim.

3.5.2.1 Note: *Conseil scolaire francophone de la Colombie-Britannique v. British Columbia*, 2020 SCC 13, [2020] 1 SCR 678

This decision confirms the availability of Charter damages in cases involving unconstitutional policies.

3.5.3 Canada (Attorney General) v. Power, 2024 SCC 26 [citations omitted]

The judgment of Wagner C.J. and Karakatsanis, Martin, O'Bonsawin and Moreau JJ. was delivered by The Chief Justice and Karakatsanis J. —

…

[2] The facts as pleaded indicate that the respondent Joseph Power's *Charter* rights were violated when Parliament enacted legislation that retrospectively changed the availability of criminal record suspensions for certain offenders. These changes made Mr. Power permanently ineligible for a record suspension. As a result, he was unable to maintain his employment. The appellant Attorney General of Canada concedes that the retrospective application of the legislation violates s. 11(h) and (i) of the Charter in a manner that cannot be justified by s. 1 (A.R., at pp. 89 and 91). Mr. Power brings a claim against Canada for damages under s. 24(1). ..

[3] This appeal raises the question of whether damages can ever be an appropriate and just remedy under s. 24(1) of the *Charter* in respect of the enactment of legislation later declared unconstitutional. Canada submits that it enjoys absolute immunity from s. 24(1) damages for the enactment of unconstitutional legislation. …

[4] We disagree. The state is not entitled to an absolute immunity from liability for damages when it enacts unconstitutional legislation that infringes *Charter* rights. Rather, as this Court held in *Mackin v. New Brunswick (Minister of Finance)*, 2002 SCC 13, [2002] 1 SCR 405, the state enjoys a limited immunity in the exercise of its law-making power. Accordingly, damages may be awarded under s. 24(1) for the enactment of legislation that breaches a *Charter* right. However, the defence of immunity will be available to the state unless it is established that the law was clearly unconstitutional, or that its enactment was in bad faith or an abuse of power. This is a high threshold. But it is not insurmountable.

[5] An absolute immunity fails to properly reconcile the constitutional principles that protect legislative autonomy, such as parliamentary sovereignty and parliamentary privilege, and the principles that require the government be held accountable for infringing *Charter* rights, such as constitutionality and the rule of law. Each of these principles constitutes an essential part of our constitutional law and they must all be respected to achieve an appropriate separation of powers. By shielding the government from liability in even the most egregious circumstances, absolute immunity would subvert the principles that demand government accountability. The necessary reconciliation of these principles demands that we affirm the limited immunity threshold recognized in *Mackin*.

[6] We would dismiss the appeal.

….

[24] Canada and Mr. Power advance opposing views on how to interpret and apply s. 24(1) in the context of a claim for damages for unconstitutional legislation that violates a *Charter* right. Canada submits that important constitutional principles require an absolute immunity for such damages. Mr. Power submits that the government is only entitled to a limited immunity.

(2) Section 32(1): Application of the *Charter*

…

[30] Clearly, the federal and provincial legislatures are subject to *Charter* scrutiny. As this Court has explained, the words of s. 32(1) express that "the *Charter* is essentially an instrument for checking the powers of government over the individual". The *Charter* "is intended to constrain governmental action inconsistent with those rights and freedoms" (*Hunter*, at p. 156). As explained further below, ss. 32(1) and 24 of the *Charter*, along with s. 52(1) of the *Constitution Act, 1982*, entrench the court's role in holding the government to account for *Charter* violations.

(3) Remedies for Breaches of *Charter* Rights

…

[39] The broad discretion afforded under s. 24(1) and a purposive approach to remedies combine to give meaning to the idea that *Charter* rights are only as meaningful as the remedies provided for their breach. In this way, s. 24(1) is "a cornerstone upon which the rights and freedoms guaranteed by the Charter are founded, and a critical means by which they are realized and preserved" (*Dunedin*, at para. 20).

[40] In *Doucet-Boudreau*, the Court noted that s. 24 must be allowed to evolve to meet the different contexts in which *Charter* violations occur, and must remain flexible and responsive to the needs of a given case (para. 59). In general terms, the Court explained that a just and appropriate remedy under s. 24(1) will: (1) meaningfully vindicate the claimant's rights and freedoms; (2) employ means that are legitimate within the framework of our constitutional democracy; (3) be a judicial remedy which vindicates the right while invoking the function and powers of a court; and (4) be fair to the party against whom the order is made (paras. 55-58).

(4) Damages as a Section 24(1) Remedy

[41] An award of damages against the state for exceeding its legal powers has long been recognized as an important requirement of the rule of law.

[42] In *Ward*, this Court set out a four-step test for determining whether damages are an appropriate and just remedy:

1. Has a Charter right been breached?
2. Would damages fulfill one or more of the related functions of compensation, vindicating the right, or deterring future breaches?
3. Has the state demonstrated that countervailing factors defeat the functional considerations that support a damage award and render damages inappropriate or unjust?
4. What is the appropriate quantum of damages?

[43] Canada's argument for absolute immunity to a claim for damages rests on two propositions that implicate the countervailing factors considered at the third step.

[44] First, Canada relies on the availability of an alternative remedy. Canada asserts that the availability of a declaration of invalidity under s. 52(1) will always render damages inappropriate and unjust. Canada asserts that damages will never be appropriate for the enactment of legislation subsequently declared unconstitutional because the declaration of unconstitutionality will always be sufficient. Canada submits that judicial review of a decision under the invalid law may also be appropriate in certain cases.

[45] While there is a general presumption against combining remedies under ss. 24(1) and 52(1) (*Schachter*, at p. 720; *Mackin*, at paras. 78-81), there is no categorical restriction. This Court has instead adopted a functional and flexible approach to combining remedies that is driven by principled and purposive considerations. It is true that the existence of an alternative remedy is a countervailing consideration (*Ward*, at para. 33). However, the concern with alternative remedies is to avoid duplication and double recovery (para. 35; *Brazeau v. Canada (Attorney General)*, 2020 ONCA 184, 149 O.R. (3d) 705, at para. 43). Provided an award of *Charter* damages is not duplicative, the potential to combine declarations and damages must remain available in situations where a declaration would fail to satisfy the functional need for compensation, vindication or to meaningfully deter future breaches (*Albashir*, at paras. 61-67; *Ward*, at para. 56; see also P. W. Hogg and W. K. Wright, *Constitutional Law of Canada* (5th ed. Supp.), at § 40:13). …

[46] The second countervailing consideration that Canada raises … are concerns for good governance. Canada submits that Charter damages would interfere with Parliament's law-making functions, impeding the state's ability to govern effectively. While this Court has held that good governance concerns may defeat an award of damages, we have also cautioned that the mere suggestion that damages will have a chilling effect on government is not sufficient to defeat the applicant's functional entitlement to Charter damages established at steps one and two of the four-step test (*Ward*, at para. 38). Indeed, damages may promote good governance by encouraging constitutional compliance and deterring Charter breaches. ….

(5) Constitutional Principles

[47] Canada argues that anything less than absolute immunity is inconsistent with three longstanding and foundational constitutional principles: parliamentary sovereignty, the separation of powers, and parliamentary privilege. Mr. Power responds that these principles do not necessitate absolute immunity and, moreover, that such immunity is inconsistent with other foundational constitutional principles, including constitutionalism and the rule of law. Each of these principles inform the separation of powers. We will briefly consider each in turn, before addressing the parties' substantive submissions later in the analysis.

(a) Parliamentary Sovereignty, Separation of Powers, and Parliamentary Privilege

[48] Canada rightly notes that parliamentary sovereignty, the separation of powers and parliamentary privilege are constitutional principles that ensure that democratically elected officials are free to make laws and to hold the executive to account, without undue interference from an unelected judiciary. The preamble to the Constitution Act, 1867 states that Canada has "a Constitution similar in Principle to that of the United Kingdom". Parliamentary sovereignty, the separation of powers and parliamentary privilege are core features of the British Constitution. As a result, these are also important constitutional principles in Canada.

[49] As for parliamentary sovereignty, there are important differences between the United Kingdom and Canada. In the United Kingdom, the "laws enacted by the Crown in Parliament are the supreme form of law". In Canada, it is the Constitution that is the supreme law: the legislature can "make or unmake any law it wishes, within the confines of its constitutional authority". In other words, in Canada the principle of parliamentary sovereignty must not be confused with parliamentary supremacy.

[50] The separation of powers is part of the foundational architecture of our constitutional order. It is a constitutional principle which recognizes that the three branches of government have different functions, institutional capacities and expertise; and that each must refrain from *undue* interference with the others. The separation of powers allows each branch to fulfill its distinct but complementary institutional role without undue interference and to create a system of checks and balances within our constitutional democracy.

[51] Parliamentary privilege plays an essential role in our democratic and constitutional order by allowing legislative officials to carry out their function, including vigorously debating laws and holding the executive to account.

[52] This Court has characterized parliamentary privilege as "the sum of the privileges, immunities and powers enjoyed by the Senate, the House of Commons and provincial legislative assemblies, and by each member individually, without which they could not discharge their functions". Courts cannot review conduct within an area of parliamentary privilege, even for compliance with the *Charter* (*New Brunswick Broadcasting*, at p. 384). The sphere of activity for which privilege is claimed must therefore be closely scrutinized, and it will only receive protection if it is closely and directly connected with the fulfillment by the assembly or by its members of their functions as a legislative and deliberative body (*Chagnon*, at para. 27; *Vaid*, at para. 46).

(b) Constitutionalism and the Rule of Law

[53] Mr. Power submits that none of these principles are absolute and that none mandate absolute immunity. Rather, these principles must be reconciled with the role of courts as guardians of the Constitution, as reflected in the principles of the rule of law and constitutionality, both of which require courts to award meaningful and effective remedies for breaches of the Charter (Reference re Secession of Quebec, 1998 CanLII 793 (SCC), [1998] 2 SCR 217, at para. 72; *Doucet-Boudreau*, at para. 25).

[54] The rule of law is "a fundamental postulate of our constitutional structure" (Roncarelli, at p. 142) and is "clearly implicit in the very nature of a Constitution" (Reference re Manitoba Language Rights, 1985 CanLII 33 (SCC), [1985] 1 SCR 721, at p. 750). It protects "individuals from arbitrary state action" by providing "that the law is supreme over the acts of both government and private persons" (Reference re Secession of Quebec, at paras. 70-71).

[55] The Constitution is the supreme law of Canada. The principle of constitutionalism finds clear expression in s. 52(1) of the Constitution Act, 1982. Thus, "with the adoption of the Charter, the Canadian system of government was transformed to a significant extent from a system of Parliamentary supremacy to one of constitutional supremacy".

[56] These principles "lie at the root of our system of government" (Reference re Secession of Quebec, at para. 70). Together, they explain the duty that courts have "to act as vigilant guardians of constitutional rights and the rule of law" (*Doucet-Boudreau*, at para. 110). Thus, courts play a fundamental role in holding the executive and legislative branches of government to account in Canada's constitutional order.

[57] We agree with Mr. Power that these constitutional principles must be respected in determining the judicial reach of meaningful remedies for breaches of the *Charter*. Together, they inform the appropriate balance underlying the extent of immunity for the enactment of unconstitutional legislation.

B. This Court Has Recognized a Limited Immunity for the Enactment of Unconstitutional Legislation

…

(1) *Mackin* Set a High Threshold for Damages

[59] We agree with Mr. Power and the courts below that in *Mackin*, this Court considered precisely the same issue: the availability of Charter damages for the enactment of Charter-infringing unconstitutional legislation.

[60] The applicants in *Mackin* were two provincial court judges. They challenged a provincial statute that eliminated the system of supernumerary judges in favour of a panel of retired judges paid on a per diem basis. They claimed that the statute violated the right to judicial independence enshrined in s. 11(d) of the Charter and sought s. 24(1) damages and s. 52(1) declaratory relief.

[61] The Court agreed with the judges that the legislation was unconstitutional and declared it to be of no force or effect. Turning to the claim for damages, Gonthier J. explained that while legislative bodies enjoy immunity from damages for the "mere enactment or application of a law that is subsequently declared to be unconstitutional" (para. 78 (emphasis added)), such immunity will give way to liability when the law was "clearly wrong, in bad faith or an abuse of power" (para. 79 (emphasis added)). He concluded that damages were not justified in that case because there was no evidence to suggest that this threshold was satisfied (para. 82).

[62] In our view, the following three points can be distilled from *Mackin*.

[63] First, *Mackin* concerned only the enactment of legislation. The state's actions under the law was not at issue: it was the legislation itself that abolished the supernumerary judicial status, thereby depriving the judges of their status and income — and thus, their independence. Accordingly, we do not accept Canada's argument that *Mackin* never contemplated a claim for damages against the state for the enactment of unconstitutional legislation. The *Mackin* principle of limited immunity was plainly set out in the context of the "enactment" of law, and as applying to "legislative bodies" (para. 78).

[64] Second, the Court did not deny the judges' claim because the state enjoyed an absolute immunity for the enactment of legislation, but because the threshold was not satisfied. Gonthier J. found that there was no evidence to suggest the government of New Brunswick acted in bad faith or abused its power. He explained that the government could not have known of later developments in the law concerning judicial

independence at the time the statute was enacted. In reaching this conclusion, Gonthier J. looked to the state's motives, knowledge and conduct during the legislative process. He found the state had a "perfectly legitimate purpose" when it passed the invalid law: "efficiency, flexibility and cost savings" (para. 70). He also found that there was no evidence the state acted with "wilful blindness with respect to its constitutional obligations" (para. 82), nor that the state enacted the law with "knowledge" of its unconstitutionality, nor for an "ulterior motiv[e]" (para. 83).

[65] Third, the threshold for liability established in *Mackin* was expressly designed to reconcile competing constitutional principles. Gonthier J. explained that the "limited immunity given to government is specifically a means of creating a balance between the protection of constitutional rights and the need for effective government" (para. 79). To award damages merely because legislation was unconstitutional would fail to strike the right balance because it would not give effect to the need for effective government. Yet, at the same time, he recognized that "the government and its representatives are required to exercise their powers in good faith and to respect the 'established and indisputable' laws that define the constitutional rights of individuals" (*ibid.*).

[66] For these reasons, Gonthier J. held that the "clearly wrong, in bad faith or an abuse of power" threshold provides the appropriate qualification on the state's liability for the enactment of an unconstitutional law.

(2) The *Mackin* Threshold Has Not Been Overruled by Subsequent Cases

[67] Canada further argues that if *Mackin* established a limited immunity, this Court has overruled that immunity in subsequent cases.

[68] We do not agree. Rather, we agree with Mr. Power and the courts below that the post-*Mackin* jurisprudence does not depart from the limited immunity threshold.

[69] The first category of cases said to have overruled *Mackin* are those Canada says demonstrate that the limited immunity threshold in *Mackin* has been restricted in application to situations of executive action, such that it no longer applies in the realm of legislative power. We reject this argument.

[70] True, some of this Court's cases have referred to the threshold applying to executive conduct under the law. For example, in *Ward*, McLachlin C.J. referred to *Mackin* as applying to "state conduct under the law" (para. 39). And in *Henry v. British Columbia (Attorney General)*, 2015 SCC 24, [2015] 2 SCR 214, Moldaver J. referred to it as applying to "state action taken pursuant to a law" (para. 42). But those cases involved such executive conduct. There is no inconsistency here. As explained above, Gonthier J. said in *Mackin* that the threshold applied to the "enactment or application" of legislation later declared unconstitutional (para. 78 (emphasis added)). Indeed, the *Mackin* threshold was described in general terms in *Ward* as recognizing "that the state must be afforded some immunity from liability in damages resulting from the conduct of certain functions that only the state can perform. Legislative and policy-making functions are one such area of state activity" (para. 40 (emphasis added)).

[71] Similarly, in *Conseil scolaire francophone de la Colombie-Britannique v. British Columbia*, 2020 SCC 13, [2020] 1 SCR 678, this Court considered a different type of situation again: whether the *Mackin* threshold applied to government decisions made under government policies. Canada points out that at one point the *Mackin* threshold is described as applying to "acts carried out pursuant to a law that is subsequently declared to be invalid" (para. 168). But, at another point, the threshold is described as applying to "those who make laws" or "the legislature" (*ibid.*). Both are consistent with *Mackin*, and the Court was unanimous on this point. Although dissenting in the result, Brown and Rowe JJ. noted that "a key holding" in *Mackin* was its broad formulation of the immunity threshold and that it "plainly encompasses acts of both the legislatures and other public officials" (paras. 286-87 (emphasis deleted)).

[72] Canada also argues that the principles set down in *Mikisew* overrule *Mackin*. We do not agree. Canada is right that Mikisew says that courts should not meddle with the law-making process, including in the enactment of legislation. However, *Mikisew* is readily distinguishable. This appeal concerns remedies for an invalid law that breaches Charter rights. *Mikisew* concerned whether to impose a procedural step in the form of a duty to consult under s. 35 of the Constitution Act, 1982 within the legislative process (paras. 31 and 52). And, while the majority in *Mikisew* accepted that it is "rarely appropriate for courts to scrutinize the law-making process" (para. 2), and that the judiciary "should forebear from intervening" in this process (para. 32), it also noted that after-the-fact review remains available in some circumstances (para. 52).

…

C. *Mackin* Should Not Be Overruled

…

[77] …. [W]e would not overturn *Mackin*. Limited immunity respects the constitutional principles underpinning both legislative autonomy and accountability. … In order to fulfill its institutional function, the legislative branch requires an independent space for elected representatives to carry out their parliamentary duties, to freely debate and decide what laws should govern, and to exercise the unfettered ability to hold the executive branch of the state to account. But absolute immunity would subvert the principles that command government compliance with the Charter and the courts' role in enforcing its fundamental guarantees.

(1) Limited Immunity Respects All of the Constitutional Principles

[79] Our constitutional jurisprudence has not created hierarchies of constitutional principles. It has aimed to provide flexibility and accommodation in the pursuit of good governance and fundamental rights. This is especially important in an era of increased transparency and accountability. Our constitutional remedies must reflect the interdependency of principles, and balance the need for both government autonomy and accountability.

[80] [T[he *Mackin* threshold is consistent with and best reconciles each of the constitutional principles engaged by this appeal.

[81] First, parliamentary sovereignty is not undermined by the *Mackin* threshold. ….Limited immunity does not impair Parliament's power to make and repeal laws within the confines of the Constitution.

[82] Second, limited immunity is consistent with the separation of powers. The separation of powers does not mean that each branch is completely "separate" or works in isolation. The separation of powers in Canada is not strict (*Reference re Secession of Quebec*, at para. 15; *Cooper v. Canada (Human Rights Commission)*, 1996 CanLII 152 (SCC), [1996] 3 SCR 854, at para. 10). We have "never adopted a watertight system of separation of judicial, legislative and executive functions" (*Doucet-Boudreau*, at para. 107). Rather, our Court has always emphasized that each branch cannot exercise "undue" interference, which depends entirely on the circumstances and the constitutional principles engaged. The availability of an after-the-fact judicial remedy for unconstitutional legislation does not interfere with the law-making process. However, respect for the legislative role requires a high threshold for liability for the enactment of unconstitutional legislation. The high bar for liability established in *Mackin* ensures that the judiciary does not unduly interfere with the government's ability to carry out its legislative function. ….

[83] Like parliamentary privilege, discussed below, the separation of powers supports the need for some immunity, but not absolute immunity. …. Insofar as an award of damages provides any guidance to the legislature at all, it merely says that "the government and its representatives are required to exercise their powers in good faith and to respect the 'established and indisputable' laws that define the constitutional rights of

individuals" (*Mackin*, at para. 79). While the separation of powers demands a core of legislative autonomy, it also demands legislative accountability through the role of the courts.

[84] Third, courts can respect parliamentary privilege when applying the limited immunity threshold. Parliamentary privilege provides the legislature with the tools to execute its core functions. It operates by "shielding some areas of legislative activity from external review" (*Chagnon*, at para. 1). …. Parliamentary privilege cannot be subordinated or diminished by other parts of the Constitution.

[85] But *Charter* damages for the enactment of unconstitutional legislation are not claimed against any individual members involved in the legislative process. The action is against the state. An action for public law damages "is not a private law action in the nature of a tort claim for which the state is vicariously liable but [a distinct] public law action directly against the state for which the state is primarily liable" (*Ward*, at para. 22).The nature of the remedy requires "the state (or society writ large) to compensate an individual for breaches of the individual's constitutional rights" (*Ward*, at para. 22). For these reasons, the Attorney General for the Crown or a government agency is the appropriate defendant in *Charter* damages claims (Roach, *Constitutional Remedies*, at § 11:13).

…

[88] This Court has emphasized that parliamentary privilege must not be extended beyond the scope necessary to protect the legislature's core democratic functions (*Chagnon*, at para. 25; *Vaid*, at para. 41). In both *Vaid* and *Chagnon*, this Court rejected claims of parliamentary privilege, recognizing that the scope of each category of privilege must be carefully scrutinized, in part on the basis that the matters protected by the claimed privilege cannot be externally reviewed, including by courts on *Charter* grounds. In *Vaid*, this Court held that the parliamentary privilege to control parliamentary proceedings did not extend so far as to preclude a human rights claim on the basis of discrimination by the chauffeur to the Speaker of the House of Commons. In *Chagnon*, this Court held that the parliamentary privilege to either manage employees or to exclude strangers from the National Assembly does not prevent judicial review of the dismissal of security guards employed by the National Assembly. Because of its inherent nature, parliamentary privilege means that its existence and scope must be strictly anchored to its rationale, delimited by the purposes it serves. Such an approach helps to reconcile the privilege with the *Charter*, by ensuring that it is only as broad as is necessary for the proper function of a constitutional democracy.

[89] A limited immunity reconciles the importance of parliamentary privilege with the *Charter* by ensuring that the privilege is no broader than is justified for a functioning constitutional democracy. In this respect, we agree that "parliamentary privilege, like parliamentary institutions themselves, must operate within — and never trump — the constitutional framework from which those bodies have emerged, and upon which they depend for their lawful authority and powers. In a country respectful of the rule of law, the courts must continue to maintain the supremacy of constitutional norms" (W. J. Newman, "Parliamentary Privilege, the Canadian Constitution and the Courts" (2008), 39 *Ottawa L. Rev.* 573, at p. 609).

…

[91] To be clear though, parliamentary privilege may prevent claimants from adducing certain types of evidence relating to the legislative process. In this way, parliamentary privilege may limit a claimant's practical ability to satisfy the threshold in a given case. Indeed, it may well be that a claimant will not be able to lead any evidence. But this possibility does not foreclose the availability of such a cause of action in principle. ….

[92] It does not improperly undermine parliamentary privilege for the courts, engaged in a proper judicial task, to examine evidence and adjudicate an assertion of privilege in the context of a claim for damages. Courts regularly assess such evidence, including Hansard, in determining the background and purpose of legislation under a s. 1 analysis (see, e.g., *R. v. Big M Drug Mart Ltd.*, 1985 CanLII 69 (SCC), [1985] 1 SCR 295; *R. v. Morgentaler*, 1993 CanLII 74 (SCC), [1993] 3 SCR 463, at p. 484; *R. v. Moriarity*, 2015 SCC 55, [2015] 3 SCR 485, at para. 31; *R. v. Sharma*, 2022 SCC 39, at paras. 88-90). Indeed, this Court has in other contexts assessed whether the legislature acted in good faith in enacting a law, or whether the state had actual or constructive knowledge of the unconstitutional effects of a law. Granted, the purpose of the review may be different in a claim for *Charter* damages. But these examples reveal that the judicial assessment of the nature of legislation and Parliament's purpose or objective in enacting it can be accomplished without violating parliamentary privilege.

[93] Fourth, an absolute immunity does not accommodate the principles recognized in this Court's jurisprudence on constitutional remedies. It leaves little room for the principles that underpin legislative accountability — including the broad and purposive approach to rights and remedial provisions in the *Charter*, as well as constitutionalism and the rule of law. All these principles militate against absolute immunity. …

…

[95] ….An absolute immunity would undermine the purpose and text of s. 24(1), which asks courts to look at the specific context of a given violation to determine whether a remedy is appropriate and just. The *Charter* requires courts to enforce constitutional rights. Enforcement means ensuring that remedies are commensurate with the extent of the violation (*Corbiere*, at para. 46). In this way, the separation of powers also protects the judiciary's independence to carry out its constitutional duties: "Nothing less [is] required to maintain the normative ordering of the Canadian legal system" (*Doucet-Boudreau*, at para. 109).

…

[97] In setting a high bar for immunity, *Mackin* has stood the test of time. It has been good law for over two decades. It has resulted neither in chilling good governance, nor in a floodgate of claims against the state for damages….

(2) Clarifying the *Mackin* Threshold

[99] The question remains how to best articulate the qualified immunity threshold. The parties and interveners point to a number of different descriptions within *Mackin* and ask us to clarify the threshold.

[100] In *Mackin*, Gonthier J. used several formulations to describe the circumstances in which damages may be an appropriate and just remedy for legislation later declared unconstitutional. …

…

[103] … We would clarify that this inquiry is better understood as a focus on whether the legislation is "clearly unconstitutional", which directs a judge to look objectively at the legislation itself, particularly the nature and extent of its constitutional invalidity. Underlying this objective assessment is a presumption of the legislature's knowledge of and respect for basic *Charter* rights.

[104] … we would reject any of the formulations suggested by the interveners that would set the threshold so high that it immunizes the government from liability for unprecedented but egregious constitutional breaches. Thus, the threshold will be met where the legislation was "clearly unconstitutional" in the sense that, at the time of its enactment, it would clearly violate *Charter* rights . Such egregious or obvious violations of *Charter* rights are clearly wrong. We would not set the test as high as Jamal J.'s proposed articulation of the clearly unconstitutional threshold.

[105] A finding of clear unconstitutionality will usually imply that the state either knew that the law was clearly unconstitutional, or was reckless or wilfully blind as to its unconstitutionality. As Sharpe and Juriansz JJ.A. helpfully explained in *Brazeau*, where the law is clearly unconstitutional, the state may have shown a "'clear disregard' for *Charter* rights" by "proceeding with a course of action in the face of a known risk that the *Charter* will be violated or by deliberately failing to inquire about the likelihood of a *Charter* breach when the state knows that there is a good reason to inquire" (para. 87, citing *Ward*, at para. 43).

[106] … other rare situations may require judges to ask whether there is evidence that the state acted in bad faith or abused its power in enacting the invalid law…

[107] We would not attempt to define bad faith or abuse of power in the law-making process with exactitude without the benefit of a full record and submissions…

[108] When it comes time to assess an allegation of bad faith or abuse of power on the basis of specific facts, other contexts of bad faith and abuse of power may provide guidance (see, e.g., *Roncarelli*, at p. 141). However, we note that these concepts are "flexible" and their "content will vary from one area of law to another" (*Entreprises Sibeca Inc. v. Frelighsburg (Municipality)*, 2004 SCC 61, [2004] 3 SCR 304, at para. 25). In the context of the state's law-making function, in which Parliament and legislative bodies are entitled to enact any law within their constitutional confines, bad faith and abuse of power may require a higher degree of misconduct than in other contexts. These are legal standards applied by courts, they are not means of evaluating the wisdom or policy of the enactment process or the enacted law.

[109] Our colleague Jamal J. accepts the clearly unconstitutional standard but rejects bad faith and abuse of power. He reasons that while clearly unconstitutional is an objective standard, based on the enactment of the legislation, bad faith and abuse of power inherently implicate conduct that is beyond judicial review. We disagree. In our view, bad faith or abuse of power could be satisfied without violating parliamentary privilege. Moreover, like bad faith and abuse of power, the clearly unconstitutional standard implicates Parliament's conduct in enacting legislation. As we explained, a finding of clear unconstitutionality amounts to a conclusion that in "enacting" the legislation, lawmakers knew the law was unconstitutional, or were reckless or wilfully blind as to its unconstitutionality. Changing the verb "enacting" to the noun "enactment" does not change the nature of the inquiry.

…

[112] Thus, we would clarify that "clearly wrong" reflects an objective assessment into whether the legislation was clearly unconstitutional at the time it was enacted, and that bad faith and abuse of power remain part of the threshold. To that extent we would restate the *Mackin* threshold relating to the enactment of legislation later found to be unconstitutional: the good governance defence will prevail unless the law was clearly unconstitutional, in bad faith or an abuse of power. The exacting nature of the threshold means that an applicant's failure to provide detailed particulars will be fatal to their claim at the pleadings stage (*Henry* (2015), at para. 43). Bald or vague assertions will necessarily fall short.

(3) The Threshold Is Assessed at Step Three of the *Ward* Framework

[114] In our view, the four-part test in *Ward* governs all claims for *Charter* damages. Immunity is not a preliminary question in a claim for *Charter* damages based on invalid legislation. The state's limited immunity defence fits best as a consideration at the third step of the *Ward* test. In order for an inquiry into the state's limited immunity to arise under s. 24(1), a claimant must first demonstrate that their rights were violated as a result of an unconstitutional law, and that damages are an otherwise appropriate and just remedy for that violation (*Ward*, at paras. 23-24). This Court and others have recognized that the *Mackin* threshold and other immunity considerations are an expression of the principles underlying the good governance concerns considered at the third stage of *Ward* (*Ward*, at paras. 39 and 68; *Ernst*, at para. 42; *Brazeau*, at paras. 46-48; Roach, *Constitutional Remedies*, at §§ 11:11 and 11:20; P. W. Hogg, P. J. Monahan and W. K. Wright, *Liability of the Crown* (4th ed. 2011), at pp. 204-5; Hogg and Wright, at § 40:19). Like good governance concerns in other contexts, the limited immunity threshold functions to ensure damages that may otherwise interfere with effective government are not awarded unless the state conduct meets a minimum threshold of gravity (*Ward*, at para. 39; *Henry* (2015), at paras. 39-41).

[115] Limited immunity ends at the point where it no longer strikes a justifiable constitutional balance. If the state enacts legislation that is subsequently declared invalid and that is clearly unconstitutional, in bad faith or in an abuse of power, good governance concerns can no longer justify shielding the government from liability for violating *Charter* rights. Damages may instead "promote good governance" by supporting the "foundational principle of good governance" that state action must comply with the Constitution (*Ward*, at para. 38). If the *Mackin* threshold is not met, the balance of constitutional principles tilts in favour of state immunity. In such cases, the constitutional imperative that the government be afforded the autonomy to govern effectively will defeat the claim to damages.

VI. Conclusion

[116] ….the state may be liable for *Charter* damages for enacting invalid legislation only if it is clearly unconstitutional or was in bad faith or an abuse of power.

[The dissenting justices in *Power* argued for an absolute immunity for preparing and drafting primary legislation due to parliamentary privilege, but agreed that damages might be available for "clearly unconstitutional" enactments. They wanted to remove the "bad faith" and "abuse of power" grounds in *Mackin* as they infringe on parliamentary privilege].

3.5.4 Damages in Charter class actions

Those noting the low quantum of damages in *Ward* might be interested in the more recent proliferation of class action Charter claims.

3.5.4.1 *Brazeau v. Canada (Attorney General),* 2020 ONCA 184 (CanLII), <https://canlii.ca/t/j5s7r>

Appeal of successful Charter class action claim in which the Government of Canada was ordered to pay $20 million in damages to inmates subject to solitary confinement pursuant to "administrative segregation" contrary to section 7 (there were other claims under section 9, which were rejected, and under section 12, which were partly vindicated). The case illustrates the application of the *Ward* framework, use of evidence from international law, application of the

[1] **SHARPE and JURIANSZ JJ.A.** (TROTTER J.A. concurring): — …..

[2] In [*Brazeau v. Canada (Attorney General)*, [2019] O.J. No. 1451, 2019 ONSC 1888 (S.C.J.)],the class consists of offenders in federal custody between November 1, 1992 and the present who were placed in administrative segregation; were diagnosed with or suffered from serious mental illness,… and were still alive on July 20, 2013.

[4] In *Canadian Civil Liberties Assn. v. Canada (Attorney General)* (2019), 144 O.R. (3d) 641, [2019] O.J. No. 1537, 2019 ONCA 243, this court struck down ss. 31-37 of the *Corrections and Conditional Release Act*, S.C. 1992, c. 20 ("CCRA"), which authorized administrative segregation in federal penitentiaries, on the grounds that administrative segregation amounts to solitary confinement and that subjecting an inmate to solitary confinement for longer than 15 days constitutes cruel and unusual punishment [page710] contrary to s. 12 of the *Charter*. The

court stated, at para. 5, that "prolonged administrative segregation [more than 15 days] causes foreseeable and expected harm which may be permanent, and which cannot be detected through monitoring until it has already occurred". The CCRA lacked the safeguards necessary to prevent inmates from remaining in segregation for more than 15 days and, thus, to prevent grossly disproportionate treatment: at paras. 113-115. …[T]he application judge [found] that the legislation violated s. 7 of the Charter because it does not provide for an independent review of the decision to place an inmate in administrative segregation: 2017 ONSC 7491 (S.C.J.).

[5] The Court of Appeal for British Columbia in *British Columbia Civil Liberties Assn. v. Canada (Attorney General),* [2019] B.C.J. No. 1151, 2019 BCCA 228, 377 C.C.C. (3d) 420, struck down ss. 31-37 of the *CCRA* on the grounds that they violated s. 7 of the *Charter* by authorizing prolonged administrative segregation (more than 15 days) that deprives persons of life, liberty or security in a manner that is grossly disproportionate to the law's objectives, and because they did not provide for independent review of administrative segregation decisions.

[6] Both decisions were released after *Brazeau* was decided.

[7] In June 2019, Bill C-83, An Act to amend the Corrections and Conditional Release Act and another Act, 1st Sess., 42nd Parl., 2019 (S.C. 2019, c. 27), received royal assent, and entered into force in November 2019. That legislation replaces ss. 31-37 of the *CCRA* with a scheme of "Structured Intervention Units" ("SIUs") that are to provide inmates with four hours a day out of their cells and at least two hours of meaningful human contact in place of administrative segregation, as well as a mechanism for independent review.

[8] The appellant, the Attorney General of Canada, received leave to appeal CCLA and BCCLA to the Supreme Court …[2019] S.C.C.A. No. 96; [2019] S.C.C.A. No. 308. …. Canada accepts, however, that unless and until CCLA is reversed by the Supreme Court…CCLA establishes the *Charter* breaches relied upon by the respondents. [The appeal was discontinued ↗]

[9] The motion judge granted summary judgment …., finding Canada liable in damages for breach of the class members' *Charter* rights. …..

[10] …In *Brazeau*, he ordered that the aggregate damages, less approved legal fees and disbursements, be appropriated for "additional mental health or program resources for structural changes to penal institutions": at para. 458. He retained supervisory jurisdiction over distribution of the funds to implement these "structural changes": at para. 459.

[11] The central issue …. is the availability of damages for the breaches of ss. 7 and 12 of the *Charter*. …[There is also the issue of ….the propriety of the damage award to implement structural changes. …

A. Facts

[12] As *CCLA* has found that administrative segregation as practiced in Canadian penitentiaries violates s. 12 of the *Charter*, and as Canada did not appeal the Superior Court's finding of the s. 7 violation, our review of the facts will be brief.

[paras 13-18 review the breach of section 7]

B. The Legislation

[19] In *CCLA*, at paras. 7-18, this court provided the following helpful outline of ss. 31-37 of the CCRA, which deal with administrative segregation, and other relevant provisions.

[the outline is omitted]

…

[20] Prior to the introduction of the new "SIU" regime in late 2019, the most significant commissioner's directive in the administrative segregation context was CD-709, which set out guidelines for administrative segregation. Various sections of the Corrections and Conditional Release Regulations also dealt with the segregation regime: see SOR/92-620, ss. 19-23, as they appeared before November 30, 2019. [page717]

C. Issues

…

(4) Did the motion judge err by awarding Charter damages…?

(5) Did the motion judge err by directing that damages be used to implement "structural changes" (*Brazeau*)?

D. Analysis

(4) Charter damages

…

[39] Before us, little issue was taken with the motion judge's findings that Charter rights have been breached in each case. … Nor is issue taken that damages would fulfill one or more of the related functions of compensation, vindication of the right and deterrence of future breaches. The disagreement focuses on the third stage.

[40] At the third stage, the evidentiary burden shifts to the state to attempt to demonstrate that a damage award would be inappropriate or unjust. While the chief justice, at para. 33, says there is no "complete catalogue of countervailing considerations", she discusses two: the availability of alternative remedies and "concerns for good governance". We address each of these in turn.

(a) Alternative remedies

[43] We are not persuaded that the mere existence or possibility of a tort claim precluded the motion judge from awarding Charter damages. *Ward* does not establish a firm rule that a court should not award Charter damages simply because there is a possible private law claim for the same damages. The concern expressed with respect to alternative remedies is the need to avoid duplication and double recovery. *Ward* contemplates concurrent claims for private law and Charter damages, provided an award of Charter damages is not "duplicative": at para. 35. If there is another avenue to damages, "a further award of damages under s. 24(1) would serve no function and would not be 'appropriate and just'" (emphasis added): at para. 34. Nor does *Ward* create a hierarchy of remedies with Charter remedies coming last. A claimant is not required to "show that she has exhausted all other recourses": at para. 35. The evidentiary burden is the reverse. It is for the state "to show that other remedies are available in the particular case that will sufficiently address the breach": at para. 35.

[44] The state can only complain if the award of Charter damages duplicates the available private law damages. Double recovery will not occur in this case. …

[45] The other possible alternative remedy is the declaration granted … that the class members' Charter rights were violated. In our view, the availability of a declaration should not displace damages in these cases. A declaration would fail to satisfy the need for compensation or provide meaningful deterrence of future breaches of the Charter right.

(b) Concerns for good governance

[46] The second countervailing consideration that makes a damage award inappropriate and unjust, which the chief justice discussed in *Ward*, was "concerns for good governance". ….

[47] In *Mackin*, [the court held] a limited immunity that protects government "against actions in civil liability based on the fact that a legislative instrument is invalid": *Mackin*, at para. 78.

…

[49] The chief justice added, at para. 42 of *Ward*, that *Mackin* was not exhaustive and that other situations might arise where "the state might seek to show that s. 24(1) damages would deter state agents from doing what is required for effective governance".

…

[51] Canada submits that by striking down the administrative segregation provisions of the CCRA in *CCLA*, this court determined that government has immunity from the class claims advanced here under the *Mackin* principle. We do not agree. The applicant in *CCLA* was a public interest litigant with no standing to claim damages under s. 24(1) and the issue of damages was not before the court.

[52] Even if *CCLA* is not determinative, Canada argues the *Mackin* principle applies because the source of the breaches of both ss. 7 and 12 of the Charter is the Act.

[53] The respondents seek to distinguish the s. 12 breaches in the cases before us from *Mackin* by pointing out that in *Mackin*, it was the statute and nothing else that deprived the plaintiff of the income and status he would otherwise have enjoyed. Here, … the CCRA did not require the correctional authorities to act in a certain way but rather left it to them to determine when to resort to administrative segregation. .. [and]provisions of the CCRA … appear to safeguard against the routine use of prolonged administrative segregation.

[54] …The constitutional infirmity found in *CCLA* was that "ss. 31-37 of the Act authorize and do not safeguard against" (emphasis added) treatment that offends s. 12 of the Charter: at para. 119. The s. 12 Charter breach was in part a product of the legislation but, at least in part, it was a product of the practices and policies adopted by the correctional authorities.

[55] While that is so, it does not exclude consideration of the good governance concern as a possible limitation on the liability of the state for Charter damages. *Mackin*, at para. 78 refers not only to harm suffered as a result of the mere enactment of a law that is subsequently declared to be unconstitutional, but also to its application. …. *Mackin* considerations have been subsumed in the third step of the *Ward* test for Charter damages.

[56] We accept that at the third stage of the *Ward* test, the more general good governance concern does come into play …. These are class-wide claims that do not rest upon proof of individual or specific acts of maladministration. They challenge the regulatory scheme and the systemic practices and policies adopted by the correctional authorities in the application of the CCRA. This court held in CCLA, at paras. 116-118, that the constitutional infirmity in ss. 31-37 of the CCRA was not the maladministration of the legislative scheme but rather the systematic way administrative segregation was used by the correctional authorities and the failure of the CCRA to safeguard against such treatment.

[57] The correctional authorities adopted practices and policies under the umbrella of ss. 31-37 of the CCRA … plainly premised on the routine use of long-term administrative segregation as a way of maintaining peace and safety in federal penitentiaries.

[58] This can be inferred from the extraordinary number of placements of inmates in administrative segregation for lengthy periods: almost 22,000 placements from 2011 to 2019, averaging 59 days…from the regulatory requirements for reviews of long-term placements in [page724] administrative segregation lasting longer than 60 days…. Commissioner's directive 709 establishes the National Long-Term Segregation Review Committee to review the case of every inmate who reaches 60 days in administrative segregation and at least every 30 days thereafter: s. 68. These reviews presume the regular use of lengthy, indeterminate periods in administrative segregation.

[59] When a regulatory regime is challenged, the state is entitled to assert that "concerns for good governance" immunity must be considered. The regulatory regime is the sort of policy choice for which, in the words of *Ward*, "the state might seek to show that s. 24(1) damages would deter state agents from doing what is required for effective governance": at para. 42.

[60] Considering the damages that flow from the breach of s. 7 of the Charter leads to this conclusion more directly. That is because the s. 7 breach for the lack of independent review of administrative segregation decisions, as found by the application judge in CCLA and not appealed to this court, is premised directly on the provisions of the statute. It is not possible to disentangle the damages that flow from the s. 7 breach from those that flow from the s. 12 breach. ….

[61] We are satisfied that the good governance concern arises for the Charter breaches in these cases.

(c) Appropriate fault threshold

[62] This brings us to what appears to be the real issue at the third stage of the inquiry. It is the issue that lies at the heart of this case. *Ward* states, at para. 39, that where an award of Charter damages would interfere with good governance, "damages should not be awarded unless the state conduct meets a minimum threshold of gravity". The issue is whether the imposition of administrative segregation meets the minimum threshold of gravity.

[63] The question at stage three [page725] of *Ward* is whether the state is sufficiently at fault to warrant lifting its prima facie good governance immunity.

[64] …The court in *Mackin* used various terms to describe the fault threshold required to trigger liability. At one point, the court referred to the general public law principle that in such cases, there is no liability unless the enactment of the law was "clearly wrong, in bad faith or an abuse of power": at para. 78. The court also said the government and its representatives will not be liable "if they act in good faith and without abusing their power under prevailing law and only subsequently are their acts found to be unconstitutional": at para. 79. At three other points in the judgment, the court refers to "negligence": at para. 82 ("negligently, in bad faith or by abusing its powers" and "negligence, bad faith or wilful blindness") and at para. 83 ("a negligent or unreasonable attitude on the part of government").

[66] In *Ward*, the chief justice said that where good governance concerns arise, "a minimum threshold, such as clear disregard for the claimant's Charter rights, may be appropriate": at para. 43. However, "[d]ifferent situations may call for different thresholds" in a manner analogous to private law, ranging from malice for [page726] malicious prosecution to negligence for claims based on inadequate police investigation: at para. 43.

[67] As we are dealing with a regulatory regime premised on administrative segregation of indeterminate duration rather than legislation requiring that result, we consider it appropriate to apply the minimum threshold of fault described in *Ward*, namely, "a clear disregard for the claimant's Charter rights": at para. 43.

[68] Canada submits that fault cannot be found …because the legal characterization of administrative segregation as a form of solitary confinement and cruel and unusual punish-ment has only recently evolved. While the use of solitary confinement as a means of maintaining security in prisons has been debated for some time, Canada argues that it could not have known that administrative segregation violates s. 12 of

the Charter until this court's decision in CCLA.

…

[71] As we will explain, a ban on the use of solitary confinement for inmates with mental illness, some form of cap for all inmates, and the need for independent review of segregation decisions have been urged since the 1990s. The move to the 15-day cap as an international standard was well underway by 2011 and ultimately codified in the United Nations Standard Minimum Rules for the Treatment of Prisoners (the Nelson Mandela Rules)…

[72] Another reason for rejecting Canada's plea that it should be allowed to take a gradual approach is the gravity of the Charter breach and harm caused to the class members. As this court recognized in CCLA, at para. 58, citing *Ogiamien v. Ontario (Ministry of Community Safety and Correctional Services)*, [2017] O.J. No. 4401, 2017 ONCA 667, …at para. 9, there is a high threshold for establishing that punishment or treatment is cruel and unusual. It must be "so excessive as to outrage standards of decency"; "grossly disproportionate for the offender, such that Canadians would find the punishment abhorrent or intolerable": CCLA, at para. 58. In the appeals presently before this court, the Charter breach has caused severe harm to very vulnerable people and the state's conduct has been condemned as being cruel, excessive, abhorrent and intolerable. The state should be expected to be particularly vigilant to avoid inflicting such harm.

…

[74] … The record in this case establishes that since the 19th century, there has been a consistent stream of medical opinion that incarceration in solitary confinement causes and exacerbates mental illness. …. Stuart Grassian, a psychiatrist qualified as an expert in both appeals, stated … summarizing a journal article …. "the fact that solitary confinement has a particular, severe psychiatric toxicity was clearly known by well before the end of the nineteenth century, and became a source of international alarm in the 1950's". In CCLA, this court accepted the application judge's finding in that case that "there is no serious question the practice of keeping an inmate in administrative segregation for a prolonged period is harmful and offside responsible medical opinion": at para. 98.

[75] In international law, for at least 30 years, there has been a growing recognition of the need to eliminate use of solitary confinement for prisoners with mental illness and strictly limit its use for all prisoners. Principle 7 of the Basic Principles for the Treatment [page728] of Prisoners, …, states that efforts to abolish solitary confinement as a punishment, or to restrict its use, should be undertaken and encouraged.

[76]…In 1994, the Committee for the Prevention of Torture and Inhuman or Degrading Treatment or Punishment of the Council of Europe stated that "[s]olitary confinement can, in certain circumstances, amount to inhuman and degrading treatment; in any event, all forms of solitary confinement should be as short as possible". …

[77] In 2008, the United Nations Special Rapporteur of the Human Rights Council on Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment informed the General Assembly that "the prolonged isolation of detainees may amount to cruel, inhuman or degrading treatment or punishment and, in certain instances, may amount to torture. . . . In the opinion of the Special Rapporteur, the use of solitary confinement should be kept to a minimum, used in very exceptional cases, for as short a time as possible, and only as a last resort": UNGAOR, 63rd Sess., UN Doc. A/63/175, (2008), at paras. 77 and 83.

[78] In 2011, the UN Special Rapporteur …concluded that at 15 days, solitary confinement becomes "prolonged solitary confinement" because the medical literature [page729] establishes that "some of the harmful psychological effects of isolation can become irreversible": at para. 26. He concluded that any imposition of solitary confinement beyond 15 days constitutes torture or cruel, inhuman or degrading treatment or punishment, in contravention of various norms codified in the International Covenant on Civil and Political Rights…

[79] These international developments were certainly brought home to Canada's correctional authorities. The Office of the Correctional Investigator is created by Part III of the CCRA. The Correctional Investigator's mandate is to serve as an independent ombudsman for federally sentenced offenders: CCRA, s. 167(1). The Correctional Investigator's 2011-12 Annual Report, at p. 13, stated:

> In August 2011, the UN Special Rapporteur of the Human Rights Council on Torture and other Cruel, Inhumane or Degrading Treatment or Punishment reported on the effects of or indefinite solitary confinement. Among other findings and recommendations, Juan E. Méndez noted:
>
> > . . . . .Prolonged solitary confinement in excess of 15 days should be subject to an absolute prohibition, and indefinite solitary confinement should be abolished.. . . .
> >
> > I once more recommend, in keeping with Canada's domestic and international human rights commitments, laws and norms, an absolute prohibition on the practice of placing mentally ill offenders and those at risk of suicide or serious self-injury in prolonged segregation.

[80] In 2012, the UN Committee against Torture expressed concern about Canada's "use of solitary confinement, in the forms of disciplinary and administrative segregation, often extensively prolonged, even for persons with mental illness": Report of the Committee against Torture, UNGAOR, 67th Sess., Supp. No. 44, UN Doc. A/67/44 (2012), at p. 120. The report recommended that Canada … "[a]bolish the use of solitary confinement for persons with serious or acute mental illness": at pp. 120-21.

[81] In 2013, the Inter-American Commission on Human Rights stated that, as the prohibition on torture and cruel, inhuman and degrading treatment is universal, all member states, including Canada, must adopt concrete measures to eliminate prolonged or indefinite isolation in all circumstances. The [page730] Commission also affirmed that solitary confinement must never be applied to persons with mental disabilities.

[82] Finally, in 2015, the United Nations General Assembly unanimously adopted the Mandela Rules, imposing a 15-day limit on incarceration in solitary confinement for all prisoners and a complete prohibition on solitary confinement for mentally ill prisoners. Canada not only voted for the Mandela Rules but played a role in their development: …. No publicly available minutes of the Expert Group's meetings suggest that Canada took any exception to the suggested limits on solitary confinement.

[83] The attack on solitary confinement was not restricted to the international level. In 1996, Louise Arbour's Commission of Inquiry into Certain Events at the Prison for Women in Kingston recommended a 30-day consecutive and a 60-day non-consecutive annual limit on solitary confinement: at p. 105. ….

[84] In 2013, the Coroner's Inquest Touching the Death of Ashley Smith recommended an absolute prohibition on the practice of placing female inmates in conditions of long-term segregation, clinical seclusion, isolation, or observation. The recommendation defined long-term as any period in excess of 15 days.

…

[86] In our view, the record establishes that from the late 2000s it was widely recognized and accepted that placing inmates suffering from mental illness into solitary confinement caused them serious harm and therefore should be avoided. It was also widely recognized from 2011 that the prolonged solitary confinement of any inmate caused serious harm and should be avoided.

[87] As we have stated, in this case the minimum fault threshold required to overcome the claim of good governance immunity is "clear disregard" for Charter rights. Drawing on criminal law principles, we view the *Ward* fault standard of "clear disregard" for Charter rights as analogous to recklessness or wilful blindness. …A "clear disregard" for Charter rights connotes either proceeding with a course of action in the face of a known risk that the Charter will be violated or by deliberately failing to inquire about the likelihood of a Charter breach when the state knows that there is a good reason to inquire.

[88] In assessing Canada's fault in failing to respect the Charter rights of inmates to be free from cruel and unusual punishment, it is therefore important to consider the failure of Canada's correctional authorities to respond positively to pleas for limiting the use of solitary confinement, which has been frequently pointed out and criticized.

[89] While a 15-day upper limit only gradually emerged as a firm standard in or around 2011, there was an earlier recognition that prolonged solitary confinement was harmful and there were repeated recommendations that it be eliminated or only used for as short a time as possible. Canada refused to accept any limit or cap. By 2011, the UN Special Rapporteur recommended the 15-day cap that was finally adopted by the General Assembly in 2015 as part of the Mandela Rules. As we have noted, Canada participated in the adoption of the Mandela Rules. Similarly, Canada chose to ignore repeated recommendations for some form of independent review of administrative segregation. Canada also continued to place inmates suffering from mental illness in administrative segregation despite repeated warnings of the harm that this practice caused.

[90] The importance of independent review has been internally and externally flagged for the CSC for nearly a quarter of a century: the Arbour Commission's 1996 report, a 1997 report of [page732] a CSC task force on segregation, and subsequent reports of the Correctional Investigator in 2002-2003, 2005-2006, 2014-2015, 2016-2017 have all either recommended the adoption of in-dependent review mechanisms or identified lack of independent review as an area of serious concern. …

[91] The motion judge concluded his detailed review of Canada's refusal to make any changes to administrative segregations in *Brazeau* as follows, at paras. 130-131:

> For decades, the Federal Government's regime for administrative segregation has been criticized for the absence of a robust and timely adjudicative review process for placements in administrative segregation infused with the rule of law. The Arbour Commission of Inquiry and the Task Force on Administrative Segregation recommended that a placement in administrative segregation be reviewed within three days to determine whether it should be continued.

For decades, the Federal Government's regime for administrative segregation has been criticized for the failure to adequately monitor the segregated inmate's current mental health status, with a special emphasis on the evaluation of the risk for self-harm.

[92] Those findings are well supported by the record. For over 30 years, Canada's correctional authorities have steadfastly refused to heed warnings about the harm caused by administrative segregation and the need for independent review.

…

[100] In our view, Canada's failure to alter its administrative segregation policies in the face of this mounting and concerted criticism from the medical profession, a Royal Commission, a coroner's inquest, the Correctional Investigator, and various international agencies meets the standard of a "clear disregard for Charter rights".

[101] We are satisfied that this "clear disregard" dates back to at least the start dates for these claims: July 20, 2009 for inmates suffering from mental illness, in Brazeau... Canada was repeatedly told of the harm administrative segregation caused, of the need to impose a cap on the length of time inmates were subjected to the practice, of the need not to use administrative segregation for inmates suffering from mental illness, and of the need for proper independent review of administrative segregation decisions. Canada was repeatedly told that its policies and practices caused serious harm to inmates and amounted to cruel and unusual treatment. Canada had to know that there was a serious risk that its administrative segregation practices and policies failed to meet the standards of the Charter under both ss. 7 and 12. In our view, the respondents have established the "clear disregard" fault threshold applies in these cases. Thus, Canada is not insulated from liability for Charter damages by countervailing good governance considerations.

(5) Quantum of damages and damages for "structural changes"

…

[105] In *Brazeau*, the motion judge … awarded $20 million as a base level of damages. He found that entire amount to be appropriate for vindication and deterrence and left the issue of compensation for the individual issues stage of the proceedings. He then took the unusual course, at paras. 458-459, of ordering that the $20 million, after deduction for legal fees and disbursements, be used by Canada for "additional mental health or program resources for structural changes to penal institutions as the court on further motion may direct".

[106] The motion judge erred in law in making this order.

[107] First, he did so on his own motion and without submissions from the parties as to the appropriateness of such an order. The rights of both the class members and Canada were affected by the order and they should have been given the opportunity to argue the point. The order was, to say the least, unusual, and by making it without the benefit of submissions from the parties, the motion judge denied them procedural fairness. [page736]

…

[110] …, the order made by the motion judge ran afoul of the principle set out in *Doucet-Boudreau*, at para. 56, that Charter remedies "must employ means that are legitimate within the framework of our constitutional democracy"; "respect the relationships with and separation of functions among the legislature, the executive and the judiciary"; and that courts must not "depart unduly or unnecessarily from their role of adjudicating disputes and granting remedies that address the matter of those disputes".

[111] As *Doucet-Boudreau* itself shows, there is room in some situations for innovative remedies that include ongoing, post-judgment involvement by the court to ensure compliance with the Charter. At issue in that case was the affirmative promise of s. 23 of the Charter for minority language education in the urgent context of cultural erosion of minority rights through assimilation: at paras. 38-40. The Supreme Court upheld the propriety of a trial judge maintaining jurisdiction to receive reports to monitor the government's progress in establishing the required facilities. ….

[112] But the order at issue in the *Brazeau* appeal is not a "reporting order" to monitor state compliance with a defined affirmative right; the order made in this case provides for a much more active form of judicial involvement. The motion judge assumed the power to direct the state to divert a damage award for harm suffered and use the damages as he saw fit to provide such "additional mental health or program resources for structural [page737] changes to penal institutions": at paras. 456-459. That order was not fair to either the class or Canada and it amounted to an unjustifiable assumption of judicial control over a complex public institution. It was not an "appropriate and just remedy" and therefore it must be set aside.

[113] We were invited to maintain the aggregate damage award of $20 million and order it distributed to the class members. Given the serious error of law made by the motion judge, we set aside his award of damages and remit the issue of damages to be determined on proper principles.

3.5.4.1.1 *See also Francis v. Ontario,* 2021 ONCA 197 (CanLII), upholding *Francis v. Ontario,* 2020 ONSC 1644 (CanLII), <https://canlii.ca/t/j6l4t>.

4 Constitutional Remedies in other Jurisdictions

Constitutional remedies engage the question of the power of courts over legislatures. They often must analyse the proper interpretation of the remedial provisions of a constitution. Looking to how courts in other constitutional democracies have offered constitutional remedies can illuminate the contextual nature of constitutional jurisprudence and highlight interpretive choices made in the Canadian context. The decision of the Constitutional Court of South Africa, below, is but one of many cases which can expand our thinking about constitutional remedies beyond the national context of Canada.

4.1 South Africa: *Minister of Health and Others v Treatment Action Campaign and Others (No 2)* (CCT8/02) [2002] ZACC 15; 2002 (5) SA 721 (CC); 2002 (10) BCLR 1033 (CC) (5 July 2002)

CONSTITUTIONAL COURT OF SOUTH AFRICA

THE COURT:

Introduction

[1] The HIV/AIDS[114] pandemic in South Africa has been described as "an incomprehensible calamity" and "the most important challenge facing South Africa since the birth of our new democracy" and government's fight against "this scourge" as "a top priority". It "has claimed millions of lives, inflicting pain and grief, causing fear and uncertainty, and threatening the economy". These are not the words of alarmists but are taken from a Department of Health publication in 2000 and a ministerial foreword to an earlier departmental publication.[115]
[2] This appeal is directed at reversing orders made in a high court against government because of perceived shortcomings in its response to an aspect of the HIV/AIDS challenge. The court found that government had not reasonably addressed the need to reduce the risk of HIV-positive mothers transmitting the disease to their babies at birth. More specifically the finding was that government had acted unreasonably in (a) refusing to make an antiretroviral drug called nevirapine[3] available in the public health sector where the attending doctor considered it medically indicated and (b) not setting out a timeframe for a national programme to prevent mother-to-child transmission of HIV.

[3] The case started as an application in the High Court in Pretoria on 21 August 2001. The applicants were a number of associations and members of civil society concerned with the treatment of people with HIV/AIDS and with the prevention of new infections. In this judgment they are referred to collectively as "the applicants". The principal actor among them was the Treatment Action Campaign (TAC). The respondents were the national Minister of Health and the respective members of the executive councils (MECs) responsible for health in all provinces save the Western Cape.[116] They are referred to collectively as "the government" or "government".

[4] Government, as part of a formidable array of responses to the pandemic, devised a programme to deal with mother-to-child transmission of HIV at birth and identified nevirapine as its drug of choice for this purpose.[117] The programme imposes restrictions on the availability of nevirapine in the public health sector. This is where the first of two main issues in the case arose. The applicants contended that these restrictions are unreasonable when measured against the Constitution, which commands the state and all its organs to give effect to the rights guaranteed by the Bill of Rights. This duty is put thus by sections 7(2) and 8(1) of the Constitution respectively:

"7(2) The state must respect, protect, promote and fulfil the rights in the Bill of Rights.

. . . .

8(1) The Bill of Rights applies to all law, and binds the legislature, the executive, the judiciary and all organs of state."

At issue here is the right given to everyone to have access to public health care services and the right of children to be afforded special protection. These rights are expressed in the following terms in the Bill of Rights:

"27(1) Everyone has the right to have access to –

(a) health care services, including reproductive health care;

. . . .

(2) The state must take reasonable legislative and other measures, within its available resources, to achieve the progressive realisation of each of these rights.

. . . .

28(1) Every child has the right –

. . . .

(c) to basic nutrition, shelter, basic health care services and social services".

[5] The second main issue also arises out of the provisions of sections 27 and 28 of the Constitution. It is whether government is constitutionally obliged and had to be ordered forthwith to plan and implement an effective, comprehensive and progressive programme for the prevention of mother-to-child transmission of HIV throughout the country. …

[8] On 14 December 2001 the High Court made an order…[requiring the government to plan and implement an effective, comprehensive and progressive programme for the prevention of mother-to-child transmission of HIV]…

[9] Because of the importance and urgency of the matter, an early date was allocated for the hearing of government's appeal against the order of the High Court. ….

Factual background
[10] The two principal issues had been in contention between the applicants and government for some considerable time prior to the launching of the application in the High Court. …

[12] Nevirapine had been registered in 1998 by the Medicines Control Council, a specialist body created by the Medicines and Related Substances Control Act 101 of 1965 to determine the safety of drugs before their being made available in South Africa. In terms of this Act registration of a drug by definition entails a positive finding as to its quality, safety and efficacy. In January 2001 the World Health Organization recommended the administration of the drug to mother and infant at the time of birth in order to combat HIV …

[14] ….The Minister….quite clearly intimated that neither undertaking was or would be given. The decision was to confine the provision of nevirapine in the public sector to the research sites and their outlets.

[15] It can be accepted that an important reason for this decision was that government wanted to develop and monitor its human and material resources nationwide for the delivery of a comprehensive package of testing and counselling, dispensing of nevirapine and follow-up services to pregnant women attending at public health institutions. ….These research and training sites could provide vital information on which in time the very best possible prevention programme for mother-to-child transmission could be developed.

[17] The crux of the problem, however, lies elsewhere: what is to happen to those mothers and their babies who cannot afford access to private health care and do not have access to the research and training sites? ….What is plain … is that for a protracted period nevirapine would not be supplied at any public health institution other than one designated as part of a research site.

The issues

…

[22] In their argument counsel for the government raised issues pertaining to the separation of powers. This may be relevant in two respects – (i) in the deference that courts should show to decisions taken by the executive concerning the formulation of its policies; and (ii) in the order to be made where a court finds that the executive has failed to comply with its constitutional obligations. These considerations are relevant to the manner in which a court should exercise the powers vested in it under the Constitution. ….

[36] The state is obliged to take reasonable measures progressively to eliminate or reduce the large areas of severe deprivation that afflict our society. The courts will guarantee that the democratic processes are protected so as to ensure accountability, responsiveness and openness, as the Constitution requires in section 1. As the Bill of Rights indicates, their function in respect of socio-economic rights is directed towards ensuring that legislative and other measures taken by the state are reasonable. As this Court said in *Grootboom*, "[i]t is necessary to recognise that a wide range of possible measures could be adopted by the State to meet its obligations". [118]

[37] …. in dealing with such matters the courts are not institutionally equipped to make the wide-ranging factual and political enquiries necessary for determining what the minimum-core standards called for by the first and second amici should be, nor for deciding how public revenues should most effectively be spent. There are many pressing demands on the public purse. As was said in *Soobramoney*:

> "The State has to manage its limited resources in order to address all these claims. There will be times when this requires it to adopt a holistic approach to the larger needs of society rather than to focus on the specific needs of particular individuals within society."[119]

[38] Courts are ill-suited to adjudicate upon issues where court orders could have multiple social and economic consequences for the community. The Constitution contemplates rather a restrained and focused role for the courts, namely, to require the state to take measures to meet its constitutional obligations and to subject the reasonableness of these measures to evaluation. Such determinations of reasonableness may in fact have budgetary implications, but are not in themselves directed at rearranging budgets. In this way the judicial, legislative and executive functions achieve appropriate constitutional balance.

…

[The Constitutional Court concluded that it was not constitutionally reasonable to restrict the use of nevirapine to the research and training sites.]

[94] We are … conscious of the daunting problems confronting government as a result of the pandemic. And besides the pandemic, the state faces huge demands in relation to access to education, land, housing, health care, food, water and social security. These are the socio-economic rights entrenched in the Constitution, and the state is obliged to take reasonable legislative and other measures within its available resources to achieve the progressive realisation of each of them. In the light of our history this is an extraordinarily difficult task. Nonetheless it is an obligation imposed on the state by the Constitution.

[95] The rigidity of government's approach when these proceedings commenced affected its policy as a whole. If, as we have held, it was not reasonable to restrict the use of nevirapine to the research and training sites, the policy as a whole will have to be reviewed. Hospitals and clinics that have testing and counselling facilities should be able to prescribe nevirapine where that is medically indicated. The training of counsellors ought now to include training for counselling on the use of nevirapine. As previously indicated, this is not a complex task and it should not be difficult to equip existing counsellors with the necessary additional knowledge. In addition, government will need to take reasonable measures to extend the testing and counselling facilities to hospitals and clinics throughout the public health sector beyond the test sites to facilitate and expedite the use of nevirapine for the purpose of reducing the risk of mother-to-child transmission of HIV.

The powers of the courts

[96] Counsel for the government contended that even if this Court should find that government policies fall short of what the Constitution requires, the only competent order that a court can make is to issue a declaration of rights to that effect. That leaves government free to pay heed to the declaration made and to adapt its policies in so far as this may be necessary to bring them into conformity with the court's judgment. This, so the argument went, is what the doctrine of separation of powers demands.

[97] In developing this argument counsel contended that under the separation of powers the making of policy is the prerogative of the executive and not the courts, and that courts cannot make orders that have the effect of requiring the executive to pursue a particular policy.

…

[99] The primary duty of courts is to the Constitution and the law, "which they must apply impartially and without fear, favour or prejudice". [120] The Constitution requires the state to "respect, protect, promote, and fulfil the rights in the Bill of Rights". [121] Where state policy is challenged as inconsistent with the Constitution, courts have to consider whether in formulating and implementing such policy the state has given effect to its constitutional obligations. If it should hold in any given case that the state has failed to do so, it is obliged by the Constitution to say so. In so far as that constitutes an intrusion into the domain of the executive, that is an intrusion mandated by the Constitution itself. There is also no merit in the argument advanced on behalf of government that a distinction should be drawn between declaratory and mandatory orders against government. Even simple declaratory orders against government or organs of state can affect their policy and may well have budgetary implications. Government is constitutionally bound to give effect to such orders whether or not they affect its policy and has to find the resources to do so. Thus, in the *Mpumalanga* case, [122] this Court set aside a provincial government's policy decision to terminate the payment of subsidies to certain schools and ordered that payments should continue for several months. Also, in the case of *August* **[123]** the Court, in order to afford prisoners the right to vote, directed the Electoral Commission to alter its election policy, planning and regulations, with manifest cost implications.

[100] The rights that the state is obliged to "respect, protect, promote and fulfil" include the socio-economic rights in the Constitution…

[101] A dispute concerning socio-economic rights is thus likely to require a court to evaluate state policy and to give judgment on whether or not it is consistent with the Constitution. If it finds that policy is inconsistent with the Constitution it is obliged in terms of section 172(1)(a) to make a declaration to that effect. But that is not all. Section 38 of the Constitution contemplates that where it is established that a right in the Bill of Rights has been infringed a court will grant "appropriate relief". It has wide powers to do so and in addition to the declaration that it is obliged to make in terms of section 172(1)(a) a court may also "make any order that is just and equitable".[124]

[102] In Fose v Minister of Safety and Security[125] this Court held that

> "[a]ppropriate relief will in essence be relief that is required to protect and enforce the Constitution. Depending on the circumstances of each particular case the relief may be a declaration of rights, an interdict, a *mandamus* or such other relief as may be required to ensure that the rights enshrined in the Constitution are protected and enforced. If it is necessary to do so, the courts may even have to fashion new remedies to secure the protection and enforcement of these all-important rights."[126]

The judgment (per Ackermann J) went on to state:

> "I have no doubt that this Court has a particular duty to ensure that, within the bounds of the Constitution, effective relief be granted for the infringement of any of the rights entrenched in it. In our context an appropriate remedy must mean an effective remedy, for without effective remedies for breach, the values underlying and the right entrenched in the Constitution cannot properly be upheld or enhanced. Particularly in a country where so few have the means to enforce their rights through the courts, it is essential that on those occasions when the legal process does establish that an infringement of an entrenched right has occurred, it be effectively vindicated. The courts have a particular responsibility in this regard and are obliged to 'forge new tools' and shape innovative remedies, if needs be, to achieve this goal."[127]

…

[104] The power to grant mandatory relief includes the power where it is appropriate to exercise some form of supervisory jurisdiction to ensure that the order is implemented…

[105] This Court has said on other occasions that it is also within the power of courts to make a mandatory order against an organ of state[128] and has done so itself. For instance, in the *Dawood* case, a mandamus was issued directing the Director-General of Home Affairs and immigration officials to exercise the discretion conferred upon them in a manner that took account of the constitutional rights involved.[129] In the *August* case a mandatory order, coupled with an injunction to submit a detailed plan for public scrutiny, was issued by this Court against an organ of state – the Electoral Commission.[130]

[106] We thus reject the argument that the only power that this Court has in the present case is to issue a declaratory order. Where a breach of any right has taken place, including a socio-economic right, a court is under a duty to ensure that effective relief is granted. The nature of the right infringed and the nature of the infringement will provide guidance as to the appropriate relief in a particular case.[131] Where necessary this may include both the issuing of a mandamus and the exercise of supervisory jurisdiction.

[107] An examination of the jurisprudence of foreign jurisdictions on the question of remedies shows that courts in other countries also accept that it may be appropriate, depending on the circumstances of the particular case, to issue injunctive relief against the state. In the United States, for example, frequent use has been made of the structural injunction – a form of supervisory jurisdiction exercised by the courts over a government agency or institution. Most famously, the structural injunction was used in the case of Brown v Board of Education[132] where the US Supreme Court held that lower courts would need to retain jurisdiction of Brown and similar cases. These lower courts would have the power to determine how much time was necessary for the school boards to achieve full compliance with the Court's decision and would also be able to consider the adequacy of any plan proposed by the school boards "to effectuate a transition to a racially nondiscriminatory school system".[133]

[108] Even a cursory perusal of the relevant Indian case law demonstrates a willingness on the part of the Indian courts to grant far-reaching remedial orders. Most striking in this regard is the decision in *M.C. Mehta v State of Tamil Nadu and Others*[134] where the Supreme Court granted a wide-ranging order concerning child labour that included highly detailed mandatory and structural injunctions.

[109] Although decisions of the German Federal Constitutional Court are mostly in the form of declaratory orders, the Court also has the power to prescribe for a temporary period which steps have to be taken in order to create a situation in conformity with the Basic Law.[135] The most far-reaching execution order was probably that made by the Court in the *Second Abortion Case*,[136] declaring several provisions of the Criminal Code unconstitutional and void and replacing them by a detailed interim law to remain in place until new legislation came into force.

[110] In Canada, it appears that both the supreme and the lower courts have the power to issue mandatory orders against organs of state.[137] Canadian courts have, however, tended to be relatively cautious in this regard. For example, in *Eldridge v British Columbia (Attorney General)*,[138] the Supreme Court of Canada considered a declaration of unconstitutionality preferable to "some kind of injunctive relief" on the basis that "there are myriad options available to the government that may rectify the unconstitutionality of the current system". The Canadian courts have also tended to be wary of using the structural injunction.[139]

[111] In the United Kingdom, although injunctive relief may be granted against officers of the Crown, the House of Lords has held that this should only be done in the "most limited circumstances. In the majority of situations so far as final relief is concerned, a declaration will continue to be the appropriate remedy on an application for judicial review involving officers of the Crown. As has been the position in the past, the Crown can be relied upon to co-operate fully with such declarations."[140]

[112] What this brief survey makes clear is that in none of the jurisdictions surveyed is there any suggestion that the granting of injunctive relief breaches the separation of powers. The various courts adopt different attitudes to when such remedies should be granted, but all accept that within the separation of powers they have the power to make use of such remedies – particularly when the state's obligations are not performed diligently and without delay.

[113] South African courts have a wide range of powers at their disposal to ensure that the Constitution is upheld. These include mandatory and structural interdicts. How they should exercise those powers depends on the circumstances of each particular case. Here due regard must be paid to the roles of the legislature and the executive in a democracy. What must be made clear, however, is that when it is appropriate to do so, courts may – and if need be must – use their wide powers to make orders that affect policy as well as legislation.

[114] A factor that needs to be kept in mind is that policy is and should be flexible. …Court orders concerning policy choices made by the executive should therefore not be formulated in ways that preclude the executive from making such legitimate choices.

[The government had already, in the period since the case had started, expanded the availability of nevirapine and increased the budget allocation for HIV prevention and treatment.]

[121] We have earlier referred to section 172(1)(a) of the Constitution, which requires a court deciding a constitutional matter to "declare that any law or conduct that is inconsistent with the Constitution is invalid to the extent of its inconsistency". A declaration to that effect must therefore be made in this matter. The declaration must be in a form which identifies the constitutional infringement. Whether remedial action

must also be specified is a separate question involving a different enquiry.

…

Relief

[124] What remains to be considered is whether it is appropriate in the circumstances of the present case to grant further relief. We have come to the conclusion that it is appropriate to do so, though in terms differing from the orders made by the High Court.

[125] …. We have held that its policy fails to meet constitutional standards because it excludes those who could reasonably be included where such treatment is medically indicated to combat mother-to-child transmission of HIV. That does not mean that everyone can immediately claim access to such treatment, although the ideal… is to achieve that goal. Every effort must, however, be made to do so as soon as reasonably possible. The increases in the budget to which we have referred will facilitate this.

[126] …. all sectors of the community, in particular civil society, should co-operate in the steps taken to achieve this goal. In our view that will be facilitated by spelling out the steps necessary to comply with the Constitution.

[127] We will do this on the basis of the policy that government has adopted as the best means of combating mother-to-child transmission of HIV, which is to make use of nevirapine for this purpose. Government must retain the right to adapt the policy, consistent with its constitutional obligations, should it consider it appropriate to do so. The order that we make has regard to this.

…

[129] The order made by the High Court included a structural interdict requiring the appellants to revise their policy and to submit the revised policy to the court to enable it to satisfy itself that the policy was consistent with the Constitution…. We do not consider, however, that orders should be made in those terms unless this is necessary. The government has always respected and executed orders of this Court. There is no reason to believe that it will not do so in the present case.

…

[132] Government policy is now evolving. …What now remains is for the other provinces to follow suit. The order that we make will facilitate this.

[133] … Having regard to the nature of the problem, the steps that have to be taken to comply with the order that we make should be taken without delay.

…

Orders

[135] We accordingly make the following orders:

1. The orders made by the High Court are set aside and the following orders are substituted.

2. It is declared that:

a) Sections 27(1) and (2) of the Constitution require the government to devise and implement within its available resources a comprehensive and co-ordinated programme to realise progressively the rights of pregnant women and their newborn children to have access to health services to combat mother-to-child transmission of HIV.

b) The programme to be realised progressively within available resources must include reasonable measures for counselling and testing pregnant women for HIV, counselling HIV-positive pregnant women on the options open to them to reduce the risk of mother-to-child transmission of HIV, and making appropriate treatment available to them for such purposes.

c) The policy for reducing the risk of mother-to-child transmission of HIV as formulated and implemented by government fell short of compliance with the requirements in subparagraphs (a) and (b) in that:

i) Doctors at public hospitals and clinics other than the research and training sites were not enabled to prescribe nevirapine to reduce the risk of mother-to-child transmission of HIV even where it was medically indicated and adequate facilities existed for the testing and counselling of the pregnant women concerned.

ii) The policy failed to make provision for counsellors at hospitals and clinics other than at research and training sites to be trained in counselling for the use of nevirapine as a means of reducing the risk of mother-to-child transmission of HIV.

3. Government is ordered without delay to:

a) Remove the restrictions that prevent nevirapine from being made available for the purpose of reducing the risk of mother-to-child transmission of HIV at public hospitals and clinics that are not research and training sites.

b) Permit and facilitate the use of nevirapine for the purpose of reducing the risk of mother-to-child transmission of HIV and to make it available for this purpose at hospitals and clinics when in the judgment of the attending medical practitioner acting in consultation with the medical superintendent of the facility concerned this is medically indicated, which shall if necessary include that the mother concerned has been appropriately tested and counselled.

c) Make provision if necessary for counsellors based at public hospitals and clinics other than the research and training sites to be trained for the counselling necessary for the use of nevirapine to reduce the risk of mother-to-child transmission of HIV.

d) Take reasonable measures to extend the testing and counselling facilities at hospitals and clinics throughout the public health sector to facilitate and expedite the use of nevirapine for the purpose of reducing the risk of mother-to-child transmission of HIV.

4. The orders made in paragraph 3 do not preclude government from adapting its policy in a manner consistent with the Constitution if equally appropriate or better methods become available to it for the prevention of mother-to-child transmission of HIV.

5. The government must pay the applicants' costs, including the costs of two counsel.

6. The application by government to adduce further evidence is refused.

Chaskalson CJ Langa DCJ

Ackermann J Du Plessis AJ Goldstone J

Kriegler J Madala J Ngcobo J

O'Regan J Sachs J Skweyiya AJ

4.2 Richard H Fallon, “Constitutional Remedies: In One Era and Out the Other” (10 March 2023), online: Harvard Law Review https://harvardlawreview.org/print/vol-136/constitutional-remedies-in-one-era-and-out-the-other/

> In addressing questions about the present state and likely future of the law of constitutional remedies, this Article relies on two assumptions. First, we cannot understand what substantive constitutional rights are, or what it means to have a substantive right, without attention to the extent — if any — of available and possibly constitutionally guaranteed remedies. Second, we cannot understand the current law defining the relationship between substantive constitutional rights and rights of access to courts to vindicate them without understanding the historical and constitutional background from which the current law developed and, in increasingly important respects, from which the current law now deviates.
>
> …[T]his Article advances a single, central argument that combines empirical and normative aspects: shaping the right-remedy relationship is a crucial lawmaking function that has historically been shared between Congress and the courts, especially the Supreme Court. Contrary to some of the Court’s critics, the relationship between rights and remedies is not conceptually determinate.[49] One cannot deduce entitlements to particular remedies directly from the concept of a right without reliance on other premises and consideration of multiple contingent factors.[50] At the same time, ….nothing in the Constitution’s history or tradition mandates that the Supreme Court must leave the provision of remedies that are necessary to the effective enforcement of substantive rights entirely to Congress. Nor is Congress’s authority to grant or withhold remedies for constitutional violations, sometimes including damages and injunctions, wholly unconstrained. If we have entered an era in which a majority of the Justices believe otherwise, the situation is, in my view, a deeply regrettable one, which will cheapen what it means to have a constitutional right.[52] Rights that exist in name will increasingly fall vulnerable to flouting in the absence of political commitments to enforcing them. We also risk erosion of the rule-of-law ideal that the government and its officials should be accountable for their violations of law in actions before the courts.53 Although some of my concerns and theses in this Article are familiar, my aim is to achieve a relatively panoptic perspective on historical trends and normative themes in the law of constitutional remedies, to bring criticisms of the Supreme Court’s restrictions of available remedies up to date, and to forecast likely future developments — a number of which I find alarming.” pp 1307-1308

4.3 Other cases to consider

4.3.1 Swann v. Charlotte -Mecklenburg Board of Education, 402 U.S. 1 (1971),

This case illustrates complex structural injunctions (in this case, about busing plans intended to desegregate schools) in the aftermath of *Brown v. Board of Education of Topeka*, 347 U.S. 483 (1954) in which the Supreme Court of the United States ended *de jure* segregation on the basis of race in U.S. public schools.

5 Further Reading on Remedies

1. Roach, Kent, Remedies for Human Rights Violations: A Two-Track Approach to Supra-national and National Law, 1st ed (Cambridge University Press, 2021).
2. Halberstam, Daniel, “On Structural Injunctions to Remedy Persistent Organizational and Structural Discrimination under EU Equality Law: Race, Sex, and Beyond” Zotero.
3. Joyce, Samuel Buckberry, “Climate Injunctions: The Power of Courts to Award Structural Relief Against Federal Agencies” Zotero 42.
4. Leckey, Robert, “Assisted dying, suspended declarations, and dialogue’s time” Project MUSE (2019) 69:5 University of Toronto Law Journal 64–83, online: <https://muse.jhu.edu/pub/50/article/743314>.
5. ———, “The harms of remedial discretion” (2016) 14:3 IJCLAW 584–607, online: <https://academic.oup.com/icon/article-lookup/doi/10.1093/icon/mow042>.
6. Macfarlane, Emmett, “Dialogue, Remedies, and Positive Rights: Carter v Canada as a Microcosm for Past and Future Issues under the Charter of Rights and Freedoms” HeinOnline (2017) 49:1 Ottawa L Rev 107–130, online: <https://heinonline.org/HOL/P?h=hein.journals/ottlr49&i=115>.
7. Mackey, Allison, “Troublesome Indigestion: The “Return” of Omar Khadr and Post-Racial Politics of Citizenship in Canada” (2016) 35 TOPIA 107–135, online: <https://utppublishing.com/doi/10.3138/topia.35.107>.
8. Pilkington, Marilyn, “Damages as a Remedy for Infringement of the Canadian Charter of Rights and Freedoms” (1984) Canadian Bar Review Volume 62, Number 4 (1984), p 517-576, online: <https://digitalcommons.osgoode.yorku.ca/scholarly_works/645>.
9. ———, “Enforcing the Charter: The Supervisory Role of Superior Courts and the Responsibility of Legislatures for Remedial Systems” (2004) 25:1 The Supreme Court Law Review: Osgoode’s Annual Constitutional Cases Conference, online: <https://digitalcommons.osgoode.yorku.ca/sclr/vol25/iss1/2>.
10. Roach, Kent, “A World Rich in Rights but Poor in Remedies” jps.library.utoronto.ca (2022) 19:1 Journal of Law & Equality, online: <https://jps.library.utoronto.ca/index.php/utjle/article/view/40293>.
11. ———, “Charter Remedies” in Peter Oliver, Patrick Macklem & Nathalie Des Rosiers, eds, The Oxford Handbook of the Canadian Constitution, 1st ed (Oxford University Press, 2017) 673. Available at https://utoronto.scholaris.ca/server/api/core/bitstreams/fafb32f8-74c0-4228-b65f-782f4238d8ba/content
12. ———, “Joe’s Justice: Substantive, Procedural and Remedial Equality” (2022) 104:1 The Supreme Court Law Review: Osgoode’s Annual Constitutional Cases Conference, online: <https://digitalcommons.osgoode.yorku.ca/sclr/vol104/iss1/9>.
13. ———, “Principled Remedial Discretion Under the Charter” (2004) 25:1 The Supreme Court Law Review: Osgoode’s Annual Constitutional Cases Conference, online: <https://digitalcommons.osgoode.yorku.ca/sclr/vol25/iss1/3>.
14. ———, “The Separation and Interconnection of Powers in Canada: The Role of Courts, the Executive and the Legislature in Crafting Constitutional Remedies” HeinOnline (2018) 5:2 J Int’l & Comp L 315–336, online: <https://heinonline.org/HOL/P?h=hein.journals/jintcl5&i=319>.
15. Rowe, Justice Malcolm & Diane Shnier, “The Limits of the Declaratory Judgment” www.erudit.org (2022) 67:3 McGill LJ 295–328, online: <https://www.erudit.org/en/journals/mlj/2022-v67-n3-mlj07900/1098444ar/abstract/>.
16. Swart, Mia, “Left Out in the Cold? Crafting Constitutional Remedies for the Poorest of the Poor” (2005) 21:2 South African Journal on Human Rights 215–240, online: <https://doi.org/10.1080/19962126.2005.11865134>.

17. Levinson, Daryl J, “Rights Essentialism and Remedial Equilibration” (1 June 1999) Rochester, NY, online: <https://papers.ssrn.com/abstract=155564 >.

18. Parkes, Debra L, “From Smith to Smickle: The Charter’s Minimal Impact on Mandatory Minimum Sentences” (12 December 2012) Rochester, NY, online: <https://papers.ssrn.com/abstract=2188611 >.

[1] Statistics Canada, “Canadian Identity, 2013” online: https://www150.statcan.gc.ca/n1/pub/89-652-x/89-652-x2015005-eng.htm#n1-refa (accessed April 30, 2025).

[2] *Statute of Westminster*, 1931, 22 Geo. V, c. 4 (U.K.).

[3] See, e.g. *Reference re Secession of Quebec*, 1998 CanLII 793 (SCC), [1998] 2 SCR 217, at para. 32.

[4] See Peter W Hogg, *Constitutional Law of Canada*, 5th ed (Toronto: Thomson Reuters, 2007) (loose-leaf updated 2021, release 1), ch 9.4.

[5] *Re: Resolution to amend the Constitution*, 1981 CanLII 25 (SCC), [1981] 1 SCR 753.

[6] The desire for free trade among the British North American colonies is reflected in s. 121 of the *Constitution Act, 1867*, which provides: “All Articles of the Growth, Produce, or Manufacture of any one of the Provinces shall, from and after the Union, be admitted free into each of the other Provinces.” See Malcolm Lavoie, “R. v. Comeau and Section 121 of the Constitution Act, 1867: Freeing the Beer and Fortifying the Economic Union,” 2017 40-1 Dalhousie Law Journal 189, 2017 CanLIIDocs 3512; *R. v. Comeau*, 2018 SCC 15 (CanLII), [2018] 1 SCR 342.

[7] Thus, between 1867 and 1999, six more provinces (Prince Edward Island, Saskatchewan, Manitoba, Alberta, British Columbia, and Newfoundland and Labrador) and three territories (Northwest Territories, Yukon and Nunavut) joined the three initial colonies of confederation.

[8] *Edwards v. Canada (Attorney General)*, [1930] AC 124, 1929 CanLII 438 (UK JCPC).

[9] As enacted by the *Constitution Act*, 1965, S.C. 1965, c. 4, which came into force on June 2, 1965.

[10] See *Reference re Secession of Quebec*, 1998 CanLII 793 (SCC), [1998] 2 SCR 217, at para 43.

[11] See, e.g. Carissima Mathen, “Federalism and the Notwithstanding Clause,” (2024) 32-3 *Constitutional Forum* 1, 2024 CanLIIDocs 491.

[12] A.V. Dicey, *Introduction to the Study of the Law of the Constitution* (London: MacMillan, 1885) at p. 53.

[13] See, e.g. W.H.P. Clement, *The Law of the Canadian Constitution*, 3d ed. (Toronto: Carswell, 1916) at 335.

[14] Right Honourable Beverley McLachlin, “Defining Moments: The Canadian Constitution”, Remarks delivered on 5 February 2013 at the Canadian Club of Ottawa, online: Supreme Court of Canada .

[15] See, e.g. *Dickson v. Vuntut Gwitchin First Nation*, 2024 SCC 10 (CanLII), at para 323; *R. v. Bissonnette*, 2022 SCC 23 (CanLII), [2022] 1 SCR 597, at para 65; *Reference re Code of Civil Procedure (Que.), art. 35*, 2021 SCC 27 (CanLII), [2021] 2 SCR 291, at para 53; *References re Greenhouse Gas Pollution Pricing Act*, 2021 SCC 11 (CanLII), [2021] 1 SCR 175, at para 479; *Quebec (Attorney General) v. 9147-0732 Québec inc.*, 2020 SCC 32 (CanLII), [2020] 3 SCR 426, at para 76; *Reference re Same-Sex Marriage*, 2004 SCC 79, [2004] 3 SCR 698, at para. 22; *Hunter v. Southam Inc.*, 1984 CanLII 33 (SCC), [1984] 2 SCR 145

[16] *Canada (Attorney General) v. Power*, 2024 SCC 26, paras. 50, 82.

[17] *Ontario (Attorney General) v. Ontario (Information and Privacy Commissioner),* 2024 SCC 4, para. 3, emphasis added.

[18] David E. Smith, “Parliament and the Crown: Canadian Perspective” in Philippe Lagassé and Michel Bédard (eds.), *The Crown and Parliament* (Montreal: Éditions Yvon Blais, 2015), 49-60, at 50

[19] Warren J. Newman, “The Crown, the Queen, and the Structure of the Constitution” in D. Michael Jackson and Christopher McCreery (eds.), *A Resilient Crown: Canada’s Monarchy at the Platinum Jubilee* (Toronto: Dundurn Press, 2022), 13-30 at 14. See in general Marcella Firmini and Jennifer Smith, “The Crown in Canada” in Nathalie Des Rosiers, Patrick Macklem and Peter Oliver (eds.), *The Oxford Handbook of the Canadian Constitution* (Oxford: Oxford University Press, 2017), 129-150

[20] Frederick Maitland, *The Constitutional History of England* (Cambridge: Cambridge University Press, 1911), 418.

[21] *Calvin’s Case* (1608) 7 Co. Rep. 1a, 11b.

[22] *Bl. Comm.* I, 153; *Willion v. Berkley* (1561) 1 Plowd. 223, 234.

[23] Janet McLean, *Searching for the State in British Legal Thought* (Cambridge: Cambridge University Press, 2012), 2.

[24] *Director of Public Prosecutions Act*, SC 2006, c. 9, s. 3(3)(a).

[25] E.g., *Crown Attorneys Act*, RSO 1990, c C. 49; *Crown Counsel Act*, RSBC 1996, c 87; *Crown Attorneys Act*, CCSM c C330.

[26] *Crown Liability and Proceedings Act*, RSC 1985, c. C-50. See in general Peter W Hogg, Patrick Monahan & Wade K Wright, *Liability of the Crown*, 4th ed. (Toronto: Carswell, 2011.

[27] See in general Marie-France Fortin, “The Crown – L’État (v.f.): Une traduction canadienne” dans François Larocque, Stéphanie Chouinard et François Chardonneau (dir), *L’oeuvre de Pierre Foucher: Quarante ans d’engagement pour la justice et les minorités linguistiques* (Ottawa: Presses de l’Université d’Ottawa, 2022), 53-60.

[28] *The Queen v Keyn* (1876), 2 Ex D 63, 197; *Lyons (Mayor of) v East India Co* (1836), 1 Moo Ind App 175, 282.

[29] *R. v. Desautel*, 2021 SCC 17, [2021] 1 SCR 533, para. 22.

[30] *Ontario (Attorney General) v. Restoule*, 2024 SCC 27.

[31] *Haida Nation v British Columbia (Minister of Forests)*, 2004 SCC 73, [2004] 3 SCR 511, para 20; *Taku River Tlingit First Nation v British Columbia (Project Assessment Director)*, 2004 SCC 74, [2004] 3 SCR 550, para 42.

[32] *Manitoba Metis Federation Inc. v. Canada (Attorney General)*, 2013 SCC 14, [2013] 1 SCR 623, para. 140.

[33] *Reference Re Offshore Mineral Rights*, 1967 CanLII 71 (SCC), 1967 SCC 71, [1967] SCR 792, 816.

[34] *Report of the Inter-Imperial Relations Committee of the Imperial Conference 1926* (November 1926), 2.

[35] *Act of Settlement, 1701*, 12 & 13 Will, c. 2 (Eng), art. 1.

[36] *Succession to the Crown Act, 2013* (UK), c. 20.

[37] *Succession to the Throne Act*, SC 2013, c. 6.

[38] *Motard v. Canada (Attorney General)*, 2019 QCCA 1826; leave to appeal denied 2020 SCC 29392. See in general Mark D. Walters, "Succession to the Throne and the Architecture of the Constitution of Canada" in Philippe Lagassé and Michel Bédard (eds.), *The Crown and Parliament* (Montreal: Éditions Yvon Blais, 2015), 263-292.

[39] *RWDSU v. Dolphin Delivery Ltd.*, 1986 CanLII 5 (SCC), [1986] 2 SCR 573, para. 33.

[40] *Reference re Secession of Quebec*, 1998 CanLII 793 (SCC), 1998 SCC 793, [1998] 2 SCR 217, para. 49. In general, Mark D. Walters, "The British Legal Tradition in Canadian Constitutional Law" in Nathalie Des Rosiers, Patrick Macklem and Peter Oliver (eds.), *The Oxford Handbook of the Canadian Constitution* (Oxford: Oxford University Press, 2017), 105-134.

[41] *Bl. Comm.* I, 183.

[42] *Bl. Comm.* I, 222-23.

[43] E.g., *Manitoba Act, 1870,* 33 Vict. c. 3 (Can), ss. 6, 7.

[44] E.g., Order of Her Majesty in Council admitting British Columbia into the Union, dated the 16th day of May, 1871, art. 14.

[45] E.g., *The Alberta Act*, *1905*, 4-5 Edw. VII, c. 3 (Can), s. 3: "The provisions of *The British North America Acts, 1867 ...* shall apply to the province of Alberta in the same way and to the like extent as they apply to the provinces heretofore comprised in the Dominion, as if the said province of Alberta had been one of the provinces originally united, except in so far as varied by this Act ...").

[46] *Northwest Territories Act*, SC 2014, c. 2, s. 2, ss. 4(1), 8; *Yukon Act*, SC 2002, c. 7, ss. 4(1), 8; *Nunavut Act*, SC 1993, c. 28, ss. 5(1), 11.

[47] *Lenoir v. Ritchie*, 1879 CanLII 37 (SCC), 1879 SCC 37, 3 SCR 575, 634.

[48] *The King v. Carroll*, 1949 CanLII 56 (SCC), 1949 SCC 56, [1950] SCR 73, 79.

[49] See in general Andrew Heard, "The Provincial Crown and Lieutenant Governors" in D. Michael Jackson (ed.), *Royal Progress: Canada's Monarchy in the Age of Disruption* (Toronto: Dundurn Press, 2020), 43-77; Christopher McCreery, "The Provincial Crown: The Lieutenant Governor's Expanding Role" in E. Michael Jackson and Philippe Lagassé (eds.), *Canada and the Crown: Essays on Constitutional Monarchy* (Montreal and Kingston: McGill-Queen's University Press, 2013), 141-159.

[50] *Mitchell v. Peguis Indian Band*, 1990 CanLII 117 (SCC), 1990 SCC 117, [1990] 2 SCR 85, 101-102.

[51] David E. Smith, *The Invisible Crown: The First Principle of Canadian Government* (Toronto: University of Toronto Press, 1995), 11-12.

[52] *Fédération Franco-ténoise v. Canada*, 2001 FCA 220, [2001] 3 FC 641, para. 43.

[53] *Crown Liability and Proceedings Act,* SO 2019, c. 7.

[54] *Land Titles Act*, RSO 1990, c. L.5, s. 30(5).

[55] *Civil Code of Quebec,* SQ 1991, c 64, art 1376.

[56] *Civil Code of Quebec,* SQ 1991, c 64, art 918.

[57] See in general Philippe Lagassé and Patrick Baud, "The Crown and Constitutional Amendment in Canada" in in Philippe Lagassé and Michel Bédard (eds.), *The Crown and Parliament* (Montreal: Éditions Yvon Blais, 2015), 203-240; Andrew Heard, "Canada's Entrenched Monarchy: The "Offices" of the Queen and Her Representatives" in in D. Michael Jackson and Christopher McCreery (eds.), *A Resilient Crown: Canada's Monarchy at the Platinum Jubilee* (Toronto: Dundurn Press, 2022), 43-62.

[58] *Reference re the Exercise by the Governor General of the Royal Prerogative of Mercy*, 1933 CanLII 40 (SCC), 1933 SCC 40, [1933] SCR 269, 272-273.

[59] *Ross River Dena Council Band v. Canada*, 2002 SCC 54 (CanLII), [2002] 2 SCR 816, para. 54. See in general Craig Forcese, "The Executive, The Royal Prerogative, and the Constitution" in Nathalie Des Rosiers, Patrick Macklem and Peter Oliver (eds.), *The Oxford Handbook of the Canadian Constitution* (Oxford: Oxford University Press, 2017), 151-169; Patrick F. Baud, "The Crown's Prerogatives and the Constitution of Canada" (2021) 3 *Journal of Commonwealth Law* 219-71

[60] *Ross River Dena Council Band v. Canada*, ibid., para. 54.

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[61] *Canadian Broadcasting Corp. v. Attorney General (Ontario)*, 1959 CanLII 2 (SCC), 1959 SCC 2, [1959] SCR 188, 196.

[62] *Bhatnager v. Canada (Minister of Employment and Immigration)*, 1988 CanLII 9393 (FC), 1988 FC 9393, [1988] 3 FC 383, 384.

[63] *Mikisew Cree First Nation v. Canada (Governor General in Council)*, 2018 SCC 40, [2018] 2 SCR 765, para. 128.

[64] A.V. Dicey, *Introduction to the Study of the Law of the Constitution*, 8th ed. (London: Macmillan, 1915), 198.

[65] *Roncarelli v. Duplessis*, 1959 CanLII 50 (SCC), 1959 SCC 50, [1959] SCR 121, 184.

[66] *Law of the Constitution*, 405.

[67] 'Proceedings in Parliament Relating to the Liberty of the Subject' (1628) 3 St Tr 59–234.

[68] E.g., Eric A. Posner and Adrian Vermeule, *The Executive Unbound: After the Madisonian Republic* (New York: Oxford University Press, 2011).

[69] E.g., *National Defence Act*, RSC, 1985, c. N-5 or the *Department of Foreign Affairs, Trade and Development Act*, SC 2013, c. 33.

[70] *Bonanza Creek Gold Mining Co. v. The King*, 1916 UK JCPC 423, [1916] AC 566.

[71] *R. v. Hauser*, 1979 CanLII 13 (SCC), 1979 SCC 13, [1979] 1 SCR 984, 1020-21.

[72] *Canada (Information Commissioner) v. Canada (Minister of National Defence)*, 2011 SCC 25, [2011] 2 SCR 306, para. 81.

[73] *Attorney General of Quebec v. Blaikie et al.*, 1981 CanLII 14 (SCC), 1981 SCC 14, [1981] 1 SCR 312, 319.

[74] *Dunsmuir v. New Brunswick*, 2008 SCC 9, [2008] 1 SCR 190, para. 27.

[75] *Fédération Franco-ténoise v. Canada (C.A.)*, 2001 FCA 220, [2001] 3 FC 641, para. 58.

[76] *Formea Chemicals Ltd. v. Polymer Corp. Ltd.*, 1968 CanLII 20 (SCC), 1968 SCC 20, [1968] SCR 754, 758-9.

[77] RSC 1985, c. O-7.

[78] *Clyde River (Hamlet) v. Petroleum Geo-Services Inc.*, 2017 SCC 40, [2017] 1 SCR 1069, paras. 28, 29.

[79] *Canada (Attorney General) v PHS Community Services Society,* 2011 SCC 44 (CanLII), [2011] SCC 44, [2011] 3 SCR 134, para. 68.

[80] E.g., *Department of Employment and Social Development Act*, S.C. 2005, c. 34; *Department of Industry Act*, S.C. 1995, c. 1; *Department of Crown-Indigenous Relations and Northern Affairs Act*, S.C. 2019, c. 29; *Department of the Environment Act*, R.S.C., 1985, c. E-10; *Department of Citizenship and Immigration Act*, S.C. 1994, c. 31.

[81] *Financial Administration Act*, RSC 1985, c. F-11; *Public Service Rearrangement and Transfer of Duties Act*, R.S.C., 1985, c. P-34.

[82] Alissa Malkin, "Government Reorganization and the Transfer of Powers: Does Certainty Matter?" (2008) 39 *Ottawa L Rev* 537, 540.

[83] The *Manual of the Official Procedure of the Government of Canada* (Privy Council Office, 1968), 329, says ministers "must" be sworn in as privy councillors.

[84] E.g., the *Public Service Employment Act*, RSC 1985, c. P-33, s. 2(1) defines "Minister" for the purposes of the Act as "any member of the Queen's Privy Council for Canada holding the office of a minister of the Crown". Certain statutes authorize the governor in council to "designate a member of the Queen's Privy Council for Canada to be the Minister for the purposes of this Act" (e.g., *National Security and Intelligence Committee of Parliamentarians Act*, SC 2017, c. 15, s. 3; *Extractive Sector Transparency Measures Act*, SC 2014, c. 39, s. 5; *Canadian Multiculturalism Act*, RSC 1985, c. 24 (4th Supp), s. 2).

[85] One exception is the Minister of Justice who is identified as the "legal member of the Queen's Privy Council for Canada": *Department of Justice Act*, RSC 1985, c. J-2, s. 4.

[86] E.g., *Constitution Act*, RSBC 1996, c. 66, s. 9(1); *Executive Council Act,* SNL 1995, c. E-16.1, s. 4(1); *Executive Government Administration Act*, SS 2014, c E-13.1, s. 4(1).

[87] *Executive Power Act*, SQ, c. E-18.

[88] Order in Council regarding the Prime Minister, 1935 P.C. 3374.

[89] *Angus v. Canada (C.A.)*, 1990 CanLII 7938 (FCA), 1990 FCA 7938 (FCA), [1990] 3 FC 410 423-24.

[90] Mark D. Walters, "Judicial Review of Ministerial Advice to the Crown" (2016) 25 *Constitutional Forum* 33-42.

[91] *Canada (Attorney General) v. Power*, 2024 SCC 26, paras. 50, 82.

[92] *Attorney General of Quebec v. Blaikie et al.*, 1981 CanLII 14 (SCC), 1981 SCC 14, [1981] 1 SCR 312, 320.

[93] Walter Bagehot, *The English Constitution* (1872), 14.

[94] *Mikisew Cree First Nation v. Canada (Governor General in Council)*, 2018 SCC 40, [2018] 2 SCR 765, para. 33.

[95] *Mikisew Cree*, ibid., para. 51.

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